SUPPLEMENT NO. 117
VOLUMES I AND II
October 2026

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30726, adopted August 6, 2026.

See the Code Comparative Table—Volume II for further information.

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CD14:5—CD14:6.1	CD14:5—CD14:6.1
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SUPPLEMENT NO. 116
VOLUMES I AND II
August 2026

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30653, adopted May 7, 2026.

See the Code Comparative Table—Volume II for further information.

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	VOLUME I
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SUPPLEMENT NO. 115
VOLUMES I AND II
May 2026

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30596, adopted March 26, 2026.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 114
VOLUMES I AND II
January 2026

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30523, adopted November 13, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 113
VOLUMES I AND II
September 2025

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30431, adopted August 21, 2025.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 112
VOLUMES I AND II
July 2025

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30348, adopted May 8, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 111
VOLUMES I AND II
April 2025

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30235, adopted February 27, 2025.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 110
VOLUMES I AND II
January 2025

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30194, adopted December 19, 2024.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Referendum of November 5, 2024 (M.C.S., Ordinance No. 29864).

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 109
VOLUMES I AND II
October 2024

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 30032, adopted August 22, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 108
VOLUMES I AND II
July 2024

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29938, adopted May 16, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 107
VOLUMES I AND II
April 2024

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29812, adopted February 22, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 106
VOLUMES I AND II
January 2024

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29726, adopted November 16, 2023.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Referendum of October 14, 2023 (M.C.S., Ord. No. 29371).

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxi	xv—xxxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CHT:33—CHT:58	CHT:33—CHT:58.1
CHTCT:1	CHTCT:1
CD2:3—CD2:7	CD2:3—CD2:7
CD2:23—CD2:25	CD2:23—CD2:25
CD2:35—CD2:38.1	CD2:35—CD2:38.2
CD34:1—CD34:27	CD34:1—CD34:26
CD62:1	CD62:1
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CD70:7—CD70:10	CD70:7—CD70:10
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CD70:57—CD70:62	CD70:57—CD70:62.1
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CD110:31—CD110:34.2	CD110:31—CD110:34.2

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CCT:59	CCT:59
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SUPPLEMENT NO. 105
VOLUMES I AND II
October 2023

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29590, adopted August 10, 2023.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxxi	xv—xxxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:23	SH:23
CD2:41—CD2:44	CD2:41—CD2:44
CD6:5—CD6:8	CD6:5—CD6:8
CD26:5—CD26:6.2	CD26:5—CD26:6.2
CD26:43, CD26:44	CD26:43—CD26:44.1
CD26:73—CD26:75	CD26:73—CD26:75
CD70:7—CD70:20	CD70:7—CD70:20
CD70:49, CD70:50	CD70:49—CD70:50.1
CD82:5, CD82:6	CD82:5, CD82:6
CD82:55—CD82:58	CD82:55—CD82:58
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SLT:1—SLT:11	SLT:1—SLT:11
CDi:1—CDi:2.1	CDi:1—CDi:2.1
CDi:17—CDi:22.1	CDi:17—CDi:22.1
CDi:35, CDi:36	CDi:35—CDi:36.1
CDi:51—CDi:53	CDi:51—CDi:53
CDi:61—CDi:62.1	CDi:61—CDi:62.1

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CDi:77, CDi:78	CDi:77, CDi:78
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SUPPLEMENT NO. 104
VOLUMES I AND II
July 2023

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29478, adopted May 25, 2023.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxxi	xv—xxxi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:21, SH:22	SH:21—SH:23
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SUPPLEMENT NO. 103
VOLUMES I AND II
April 2023

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29356, adopted February 16, 2023.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

M.C.S., Ord. No. 28999, Referendum of November 8, 2022.

See the Charter Comparative Table for further information.

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CDi:93—CDi:100	CDi:93—CDi:100
CDi:109—CDi:110.1	CDi:109—CDi:110.1
CDi:159—CDi:160.1	CDi:159—CDi:160.1

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SUPPLEMENT NO. 102
VOLUMES I AND II
January 2023

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29262, adopted November 17, 2022.

See the Code Comparative Table—Volume II for further information.

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CD2:5, CD2:6	CD2:5, CD2:6
CD2:36.1—CD2:38	CD2:37—CD2:38.1
CD6:3—CD6:7	CD6:3—CD6:8
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CD14:5, CD14:6	CD14:5—CD14:6.1
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CD114:1—CD114:3	CD114:1—CD114:3
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CD146:39—CD146:40.1	CD146:39—CD146:40.1
CD150:7—CD150:9	CD150:7—CD150:9
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SUPPLEMENT NO. 101
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September 2022

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29132, adopted August 4, 2022.

See the Code Comparative Table—Volume II for further information.

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CD54:5	CD54:5
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SUPPLEMENT NO. 100
VOLUMES I AND II
June 2022

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 29019, adopted May 5, 2022.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:21	SH:21
CD2:5—CD2:7	CD2:5—CD2:7
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SUPPLEMENT NO. 99
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April 2022

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28948, adopted February 17, 2022.

See the Code Comparative Table—Volume II for further information.

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CD2:5—CD2:7	CD2:5—CD2:7
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SUPPLEMENT NO. 98
VOLUMES I AND II
January 2022

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28844, adopted November 4, 2021.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 97
VOLUMES I AND II
September 2021

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28762, adopted August 5, 2021.

See the Code Comparative Table—Volume II for further information.

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xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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	CD54:6.1—CD54:6.3
CD54:11, CD54:12	CD54:11, CD54:12
CD54:47—CD54:52	CD54:47—CD54:52
CD66:1—CD66:3	CD66:1—CD66:3
CD66:7—CD66:12	CD66:7—CD66:12.1
CD70:55—CD70:58	CD70:55—CD70:58
CD102:9—CD102:11	CD102:9—CD102:11
	VOLUME II
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CD162:5—CD162:8	CD162:5—CD162:8
CD162:77—CD162:102.1	CD162:77—CD162:98
CCT:55	CCT:55, CCT:56
SLT:1—SLT:11	SLT:1—SLT:11
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CDi:87, CDi:88	CDi:87, CDi:88
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Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 96
VOLUMES I AND II
June 2021

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28678, adopted May 20, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19, SH:20	SH:19, SH:20
CD30:7, CD30:8	CD30:7—CD30:8.1
CD30:59—CD30:64	CD30:59—CD30:65
CD38:1—CD38:13	CD38:1—CD38:12
CD84:3, CD84:4	CD84:3—CD84:4.1
CD84:11—CD84:14	CD84:11—CD84:14.1
CD102:9—CD102:11	CD102:9—CD102:11
VOLUME II	
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CD154:112.1—CD154:120	CD154:113—CD154:120.1
CD162:9—CD162:11	CD162:9—CD162:11
CD162:101, CD162:102	CD162:101—CD162:102.1
CD162:109, CD162:110	CD162:109—CD162:110.1
CCT:51—CCT:55	CCT:51—CCT:55
SLT:1—SLT:11	SLT:1—SLT:11
CDi:29, CDi:30	CDi:29—CDi:30.1
CDi:95, CDi:96	CDi:95, CDi:96
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SUPPLEMENT NO. 95
VOLUMES I AND II
May 2021

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28626, adopted March 11, 2021.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Amendment of January 1, 2020.

See the Charter Comparative Table for further information.

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VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19, SH:20	SH:19, SH:20
CHT:i	CHT:i
CHT:iii	CHT:iii
CHT:v	CHT:v
CHT:1—CHT:81	CHT:1—CHT:7
	CHT:9—CHT:81
CHTCT:1	CHTCT:1
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CD30:9, CD30:10	CD30:9, CD30:10
CD30:73—CD30:80	CD30:73—CD30:82
CD54:1—CD54:4.1	CD54:1—CD54:4.1
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CD54:34.3—CD54:38	CD54:35—CD54:38.2
CD58:3—CD58:6	CD58:3—CD58:6.1
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CD86:3—CD86:10	CD86:3—CD86:10.1
CD106:1, CD106:2	CD106:1, CD106:2
CD106:5, CD106:6	CD106:5—CD106:6.1
CD134:7, CD134:8	CD134:7, CD134:8
CD142:7—CD142:10	CD142:7—CD142:10
	VOLUME II
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CD147:1	CD147:1
	CD147:3—CD147:5
	CD148:1
CD154:5, CD154:6	CD154:5, CD154:6
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CD154:84.5—CD154:100	CD154:85—CD154:100.5
CD154:111, CD154:112	CD154:111, CD154:112
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CDi:89, CDi:90	CDi:89, CDi:90
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SUPPLEMENT NO. 94
VOLUMES I AND II
January 2021

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28555, adopted December 3, 2020.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19, SH:20
CD2:1, CD2:2	CD2:1, CD2:2
CD2:15, CD2:16	CD2:15—CD2:16.1
CD2:47—CD2:50	CD2:47—CD2:50
CD26:1, CD26:2	CD26:1, CD26:2
CD26:5	CD26:5
CD26:7—CD26:8.3	CD26:7—CD26:8.4.3
CD26:13—CD26:16	CD26:13—CD26:16.1
CD26:45	CD26:45—CD26:50
CD66:3	CD66:3
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CD70:12.1, CD70:12.2	CD70:12.1—CD70:12.2.1
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CD90:1	CD90:1
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CD154:3—CD154:10	CD154:3—CD154:10
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Remove Old Pages	*Insert New Pages*
CD154:111, CD154:112	CD154:111—CD154:112.1
CD154:124.1—CD154:130.1	CD154:125—CD154:130.3
CCT:53	CCT:53
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CDi:15, CDi:16	CDi:15, CDi:16
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CDi:29—CDi:34	CDi:29—CDi:34.1
CDi:59—CDi:62.1	CDi:59—CDi:62.1
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SUPPLEMENT NO. 93
VOLUMES I AND II
September 2020

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28465, adopted August 20, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19
CD26:1, CD26:2	CD26:1, CD26:2
CD26:6.1—CD26:8.4	CD26:7—CD26:8.3
CD70:1—CD70:12.1	CD70:1—CD70:9
	CD70:11—CD70:12.7
CD70:57, CD70:58	CD70:57, CD70:58
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VOLUME II	
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CD146:65—CD146:70	CD146:65—CD146:70
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CD150:31—CD150:50.1	CD150:31—CD150:50.2
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CDi:45—CDi:48	CDi:45—CDi:48

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CDi:61—CDi:62.1	CDi:61—CDi:62.1
CDi:83, CDi:84	CDi:83, CDi:84
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SUPPLEMENT NO. 92
VOLUMES I AND II
July 2020

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28372, adopted June 4, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:19	SH:19
CD26:8.32.3—CD26:32.4.1	CD26:8.32.3—CD26:32.4.1
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SUPPLEMENT NO. 91
VOLUMES I AND II
March 2020

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28312, adopted February 6, 2020.

See the Code Comparative Table—Volume II for further information.

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	VOLUME I
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD10:1—CD10:5	CD10:1—CD10:5
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SUPPLEMENT NO. 90
VOLUMES I AND II
January 2020

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28248, adopted November 21, 2019.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CCT:51	CCT:51
CDi:1, CDi:2	CDi:1, CDi:2
CDi:21—CDi:24	CDi:21—CDi:24
CDi:37—CDi:40.1	CDi:37—CDi:39
CDi:51, CDi:52	CDi:51, CDi:52
CDi:72.1—CDi:74	CDi:73—CDi:74.1

Remove Old Pages	*Insert New Pages*
CDi:79, CDi:80	CDi:79, CDi:80
CDi:97, CDi:98	CDi:97, CDi:98
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CDi:133—CDi:135	CDi:133—CDi:135
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SUPPLEMENT NO. 89
VOLUMES I AND II
September 2019

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28187, adopted September 5, 2019.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD26:8.31—CD26:8.32.4	CD26:8.31—CD26:32.4.1
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CD154:123—CD154:124.1	CD154:123—CD154:124.2
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CDi:19—CDi:24	CDi:19—CDi:24
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CDi:45, CDi:46	CDi:45, CDi:46
CDi:57—CDi:60	CDi:57—CDi:60.1
CDi:67, CDi:68	CDi:67, CDi:68
CDi:85	CDi:85
CDi:99, CDi:100	CDi:99, CDi:100
CDi:115—CDi:130	CDi:115—CDi:128
CDi:143—CDi:146	CDi:143—CDi:146

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SUPPLEMENT NO. 88
VOLUMES I AND II
June 2019

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 28101, adopted May 23, 2019.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD2:48.1—CD2:61	CD2:49—CD2:63
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CD30:14.16.1—CD30:16.16	CD30:15—CD30:16.31
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CD162:48.13—CD162:48.16	CD162:48.13—CD162:48.16

Remove Old Pages	*Insert New Pages*
CD162:48.27—CD162:48.30	CD162:48.27—CD162:48.30
CD162:71, CD162:72	CD162:71, CD162:72
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CDi:19, CDi:20	CDi:19, CDi:20
CDi:29—CDi:38	CDi:29—CDi:37
CDi:52.1—CDi:54	CDi:53—CDi:54.1
CDi:59—CDi:66	CDi:59—CDi:64
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CDi:108.1—CDi:110	CDi:109, CDi:110
CDi:147—CDi:150	CDi:147—CDi:150
CDi:155—CDi:158.1	CDi:155—CDi:158.1
CDi:163—CDi:166	CDi:163—CDi:166

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SUPPLEMENT NO. 87
VOLUMES I AND II
March 2019

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27992, adopted February 7, 2019.

See the Code Comparative Table—Volume II for further information.

The Home Rule Charter is current:

As amended through January 1, 2019.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:17, SH:18	SH:17, SH:18
CHT:i—CHT:81	CHT:i
	CHT:iii
	CHT:v
	CHT:1—CHT:7
	CHT:9—CHT:81
CHTCT:1	CHTCT:1
CD26:1, CD26:2	CD26:1, CD26:2
CD26:8.109	CD26:8.109, CD26:8.110
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CD34:5—CD34:8.1	CD34:5—CD34:8.1
CD66:1—CD66:3	CD66:1—CD66:3
CD66:27—CD66:34.2	CD66:27—CD66:34
CD70:5—CD70:6.2	CD70:5—CD70:6.2
CD70:17—CD70:20	CD70:17—CD70:20
CD70:24.3—CD70:24.5	CD70:24.3—CD70:24.5

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CD154:114.1—CD154:124	CD154:115—CD154:124.1
CD162:9—CD162:48.21	CD162:9—CD162:11
	CD162:13—CD162:48.30
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CDi:107, CDi:108	CDi:107—CDi:108.1
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SUPPLEMENT NO. 86
VOLUMES I AND II
December 2018

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27933, adopted November 29, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11, SH:12	SH:11, SH:12
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CD2:1, CD2:2	CD2:1, CD2:2
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CD2:12.5, CD2:12.6	CD2:12.5—CD2:12.7
CD2:46.1—CD2:48	CD2:47—CD2:48.3
CD26:5, CD26:6	CD26:5, CD26:6
CD26:22.5, CD26:22.6	CD26:22.5—CD26:22.6.1
CD26:23—CD26:26	CD26:23—CD26:26
CD50:6.1—CD50:12	CD50:7—CD50:12
CD54:1, CD54:2	CD54:1, CD54:2
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CD66:3	CD66:3
CD66:33, CD66:34	CD66:33—CD66:34.2
CD70:3—CD70:6.2	CD70:3—CD70:6.2
CD70:15—CD70:20	CD70:15—CD70:20
CD70:31—CD70:36	CD70:31—CD70:38
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CD84:11—CD84:21	CD84:11—CD84:22
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CD138:1, CD138:2	CD138:1, CD138:2
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CD146:39, CD146:40	CD146:39—CD146:40.1
CD154:6.1—CD154:10	CD154:7—CD154:10
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SUPPLEMENT NO. 85
VOLUMES I AND II
October 2018

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27816, adopted July 26, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 84
VOLUMES I AND II
June 2018

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27795, adopted June 7, 2018.

See the Code Comparative Table—Volume II for further information.

Included in the Home Rule Charter is:

Amended through June 1, 2018.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 83
VOLUMES I AND II
March 2018

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27671, adopted February 8, 2018.

See the Code Comparative Table—Volume II for further information.

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CD2:19—CD2:20.2	CD2:19—CD2:20.2
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SUPPLEMENT NO. 82
VOLUMES I AND II
December 2017

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27607, adopted December 1, 2017.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 81
VOLUMES I AND II
September 2017

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27485, adopted August 10, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 80
VOLUMES I AND II
June 2017

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27404, adopted May 4, 2017.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 79
VOLUMES I AND II
March 2017

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27292, adopted February 9, 2017.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:75—CDi:82	CDi:75—CDi:82
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SUPPLEMENT NO. 78
VOLUMES I AND II
January 2017

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 27211, adopted December 1, 2016.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Referendum of November 8, 2016.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 77
VOLUMES I AND II
September 2016

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26972, adopted July 14, 2016.

See the Code Comparative Table—Volume II for further information.

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CD26:8.1--CD26:8.4	CD26:8.1—CD26:8.4
CD70:5—CD70:6.2	CD70:5—CD70:6.2
CD70:11- CD70:12.1	CD70:11—CD70:12.1
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SUPPLEMENT NO. 76
VOLUMES I AND II
June 2016

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26906, adopted May 5, 2016.

See the Code Comparative Table—Volume II for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 75
VOLUMES I AND II
March 2016

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26810, adopted February 18, 2016.

See the Code Comparative Table—Volume II for further information.

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CD10:34.3—CD10:34.7	CD10:34.3—CD10:34.7
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SUPPLEMENT NO. 74
VOLUMES I AND II
December 2015

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26696, adopted November 19, 2015.

See the Code Comparative Table—Volume II for further information.

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xv—xxx	xv—xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 73
VOLUMES I AND II
September 2015

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26513, adopted July 23, 2015.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 72
VOLUMES I AND II
June 2015

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26429, adopted May 14, 2015.

See the Code Comparative Table—Volume II for further information.

The Home Rule Charter is:

Amended through November 4, 2014.

See the Charter Comparative Table—Volume I for further information.

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SUPPLEMENT NO. 71
VOLUMES I AND II
March 2015

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26263, adopted February 26, 2015.

See the Code Comparative Table—Volume II for further information.

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CD146:57—CD146:62	CD146:57—CD146:62
CD162:19—CD162:26.1	CD162:19—CD162:26.1
CCT:43	CCT:43
SLT:1—SLT:11	SLT:1—SLT:11
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CDi:15—CDi:22	CDi:15—CDi:22.1
CDi:27—CDi:36	CDi:27—CDi:36
CDi:47—CDi:58	CDi:47—CDi:58.1
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SUPPLEMENT NO. 70
VOLUMES I AND II
December 2014

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26158, enacted November 20, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 69
VOLUMES I AND II
October 2014

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 26000, adopted August 21, 2014.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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VOLUME II	
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CD154:126.1—CD154:130	CD154:127—CD154:130
	CCT:43

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SUPPLEMENT NO. 68
VOLUMES I AND II
August 2014

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25940, adopted July 10, 2014.

See the Code Comparative Table—Volume II for further information.

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xv—xxxv	xv—xxxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 67
VOLUMES I AND II
May 2014

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25793, adopted April 10, 2014.

See the Code Comparative Table—Volume II for further information.

The Home Rule Charter is:

Amended through October 19, 2013.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxv	xv—xxxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11, SH:12
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CHT:iii	CHT:iii
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CD162:31—CD162:36.1	CD162:31—CD162:36.1
CD162:71, CD162:72	CD162:71, CD162:72
CD166:1, CD166:2	CD166:1, CD166:2
CD166:11, CD166:12	CD166:11—CD166:13
CCT:41, CCT:42	CCT:41, CCT:42
CHTi:1—CHTi:9	CHTi:1—CHTi:9
CDi:23, CDi:24	CDi:23, CDi:24
CDi:31, CDi:32	CDi:31, CDi:32
CDi:39, CDi:40	CDi:39, CDi:40
CDi:59, CDi:60	CDi:59, CDi:60
CDi:65—CDi:78	CDi:65—CDi:77
CDi:89, CDi:90	CDi:89, CDi:90
CDi:95—CDi:98	CDi:95—CDi:98
CDi:113, CDi:114	CDi:113, CDi:114
CDi:133, CDi:134	CDi:133, CDi:134
CDi:143, CDi:144	CDi:143, CDi:144
CDi:149—CDi:154	CDi:149—CDi:154
CDi:159, CDi:160	CDi:159, CDi:160
CDi:165—CDi:167	CDi:165—CDi:167

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SUPPLEMENT NO. 66
VOLUMES I AND II
January 2014

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25651, adopted January 9, 2014.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxv	xv—xxxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:11	SH:11
CD2:46.1—CD2:46.4	CD2:46.1—CD2:46.4
CD26:3, CD26:4	CD26:3, CD26:4
CD26:21, CD26:22	CD26:21, CD26:22
CD34:1, CD34:2	CD34:1, CD34:2
CD34:5—CD34:8.2	CD34:5—CD34:8.2
CD62:9, CD62:10	CD62:9—CD62:10.1
CD138:9—CD138:12.2	CD138:9—CD138:12.2
VOLUME II	
xv—xxxv	xv—xxxv
CD162:71, CD162:72	CD162:71, CD162:72
CCT:41, CCT:42	CCT:41, CCT:42
SLT:7, SLT:8	SLT:7, SLT:8
CDi:25, CDi:26	CDi:25, CDi:26

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SUPPLEMENT NO. 65
VOLUMES I AND II
October 2013

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25485, September 12, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
iii	iii
iv.i	iv.i
xv—xxxiv	xv—xxv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9—SH:11
CD2:1, CD2:2	CD2:1, CD2:2
CD2:15—CD2:18.2	CD2:15—CD2:17
CD6:1	CD6:1
CD6:3—CD6:11	CD6:3—CD6:7
CD26:1—CD26:6	CD26:1—CD26:6
CD26:8.2.97—CD26:22.5	CD26:9—CD26:22.9
CD46:1	CD46:1
CD46:3—CD46:15	CD46:3, CD46:4
CD54:38.1—CD54:40.3	CD54:39—CD54:40.3
CD58:3—CD58:12	CD58:3—CD58:12.1
CD58:25—CD58:31	CD58:25—CD58:31
CD70:5—CD70:6.1	CD70:5, CD70:6
CD70:11, CD70:12	CD70:11—CD70:12.1
CD70:22.1—CD70:40	CD70:23—CD70:31
CD90:1	CD90:1
CD90:5—CD90:7	CD90:5—CD90:9
CD110:1—CD110:3	CD110:1—CD110:4
CD110:7, CD110:8	CD110:7, CD110:8
CD110:17—CD110:29	CD110:17—CD110:41
CD118:1	CD118:1

Remove Old Pages	*Insert New Pages*
CD118:3—CD118:5	CD118:3—CD118:9
	VOLUME II
xv—xxxiv	xv—xxxv
CD146:47—CD146:54	CD146:47—CD146:62
CD162:35, CD162:36	CD162:35—CD162:36.1
CD162:71, CD162:72	CD162:71, CD162:72
CCT:41	CCT:41, CCT:42
SLT:1—SLT:11	SLT:1—SLT:11
CDi:1—CDi:140	CDi:1—CDi:167

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SUPPLEMENT NO. 64
VOLUMES I AND II
June 2013

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25305, May 2, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xxxiv	xv—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5—SH:9
CD2:5—CD2:6.1	CD2:5—CD2:6.1
CD2:36.1—CD2:46	CD2:37—CD2:46.4
CD6:3, CD6:4	CD6:3, CD6:4
CD18:1—CD18:21	CD18:1—CD18:4
	CD18:5—CD18:31
CD26:8.2.9, CD26:8.2.10	CD26:8.2.9—CD26:8.2.10.1
CD26:8.2.59, CD26:8.2.60	CD26:8.2.59—CD26:8.2.60.1
CD28:3, CD28:4	CD28:3, CD28:4
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	VOLUME II
xv—xxxiv	xv—xxxiv
CD146:1, CD146:2	CD146:1, CD146:2
CD154:18.1	CD154:18.1
CD154:93—CD154:94.1	CD154:93—CD154:94.1
CD158:1—CD158:26.1	CD158:1—CD158:6
	CD158:7—CD158:26.3
CD162:71, CD162:72	CD162:71, CD162:72
CCT:31—CCT:40	CCT:31—CCT:41
SLT:1—SLT:11	SLT:1—SLT:11
CDi:1, CDi:2	CDi:1, CDi:2
CDi:9—CDi:12	CDi:9—CDi:12.1
CDi:30.1—CDi:34	CDi:31—CDi:34.1
CDi:43—CDi:44.1	CDi:43—CDi:44.1

Remove Old Pages	*Insert New Pages*
CDi:51—CDi:62	CDi:51—CDi:62.3
CDi:71, CDi:72	CDi:71, CDi:72
CDi:79—CDi:88	CDi:79—CDi:88
CDi:90.3—CDi:92	CDi:91—CDi:92.1
CDi:100.1—CDi:102	CDi:101—CDi:102.1
CDi:107, CDi:108	CDi:107, CDi:108
CDi:139, CDi:140	CDi:139, CDi:140

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SUPPLEMENT NO. 63
VOLUMES I AND II
March 2013

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25196, February 7, 2013.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxiv	xv—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5, SH:6
CD2:3—CD2:4.1	CD2:3, CD2:4
CD2:19—CD2:20.5	CD2:19—CD2:20.3
CD70:5—CD70:6.1	CD70:5—CD70:6.1
CD70:21—CD70:22.4	CD70:21—CD70:22.5
VOLUME II	
xv—xxxiv	xv—xxxiv
CD150:110.5—CD150:112.1	CD150:111—CD150:112.2
CD162:71, CD162:72	CD162:71, CD162:72
CD170:37—CD170:44	CD170:37—CD170:46
CCT:39, CCT:40	CCT:39, CCT:40
CDi:19—CDi:20.1	CDi:19—CDi:20.1
CDi:27, CDi:28	CDi:27, CDi:28
CDi:42.1—CDi:44	CDi:43—CDi:44.1
CDi:57, CDi:58	CDi:57—CDi:58.1
CDi:93—CDi:94.1	CDi:93, CDi:94
CDi:107, CDi:108	CDi:107, CDi:108

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SUPPLEMENT NO. 62
VOLUMES I AND II
December 2012

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 25102, November 15, 2012.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxiv	xv—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD2:18.1—CD2:19	CD2:18.1—CD2:19
CD22:1—CD22:2.1	CD22:1, CD22:2
CD22:5—CD22:12.1	CD22:5—CD22:12
CD34:1, CD34:2	CD34:1, CD34:2
CD34:5—CD34:8.2	CD34:5—CD34:8.2
CD50:1, CD50:2	CD50:1, CD50:2
CD50:11, CD50:12	CD50:11, CD50:12
CD62:1	CD62:1
CD62:3—CD62:9	CD62:3—CD62:19
CD110:3	CD110:3
CD110:18.1—CD110:25	CD110:19—CD110:29
CD142:7—CD142:9	CD142:7—CD142:10
VOLUME II	
xv—xxxiv	xv—xxxiv
CD154:8.1—CD154:10	CD154:9, CD154:10
CD154:135—CD154:137	CD154:135—CD154:137
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SLT:1—SLT:11	SLT:1—SLT:11
CDi:1, CDi:2	CDi:1, CDi:2
CDi:7—CDi:20.1	CDi:7—CDi:20.1
CDi:25—CDi:30.1	CDi:25—CDi:30.1
CDi:35—CDi:38	CDi:35—CDi:38

Remove Old Pages	*Insert New Pages*
CDi:45—CDi:60.1	CDi:45—CDi:60.3
CDi:65, CDi:66	CDi:65, CDi:66
CDi:70.1—CDi:90.1	CDi:71—CDi:90.3
CDi:97, CDi:98	CDi:97, CDi:98
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CDi:119, CDi:120	CDi:119—CDi:120.1
CDi:125—CDi:130	CDi:125—CDi:130.1

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SUPPLEMENT NO. 61
VOLUMES I AND II
September 2012

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24994, August 23, 2012.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxiv	xv—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:45—CD2:57	CD2:45—CD2:58
CD70:3—CD70:6.1	CD70:3—CD70:6.1
CD70:21—CD70:22.4	CD70:21—CD70:22.4
CD142:7—CD142:9	CD142:7—CD142:9
VOLUME II	
xv—xxxiv	xv—xxxiv
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CD162:1, CD162:2	CD162:1, CD162:2
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CD162:41, CD162:42	CD162:41—CD162:42.2
CCT:39	CCT:39
CDi:16.1—CDi:20.1	CDi:17—CDi:20.1
CDi:54.1—CDi:56	CDi:55—CDi:56.1
CDi:129, CDi:130	CDi:129, CDi:130

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SUPPLEMENT NO. 60
VOLUMES I AND II
June 2012

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24876, June 7, 2012.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxxiv	xv—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1—SH:3	SH:1—SH:3
CD54:32.3—CD54:34	CD54:33—CD54:34.1
CD70:2.1—CD70:6	CD70:3—CD70:6.1
CD70:22.1—CD70:22.3	CD70:22.1—CD70:22.4
VOLUME II	
xv—xxxiv	xv—xxxiv
CD146:15—CD146:18.1	CD146:15—CD146:18.2
CD154:16.1—CD154:18.1	CD154:17—CD154:18.1
CD162:1—CD162:4	CD162:1—CD162:4.1
CD162:9—CD162:48.5	CD162:9—CD162:48.20
CCT:39	CCT:39
CDi:3—CDi:4.1	CDi:3—CDi:4.1
CDi:13, CDi:14	CDi:13, CDi:14
CDi:26.1—CDi:28	CDi:27—CDi:28.1
CDi:35, CDi:36	CDi:35, CDi:36
CDi:49—CDi:54	CDi:49—CDi:54.1
CDi:74.1—CDi:76	CDi:75—CDi:76.1
CDi:83, CDi:84	CDi:83, CDi:84
CDi:93, CDi:94	CDi:93—CDi:94.1
CDi:99, CDi:100	CDi:99—CDi:100.1
CDi:129—CDi:132	CDi:129—CDi:132.1

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SUPPLEMENT NO. 59
VOLUMES I AND II
April 2012

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24747, adopted February 16, 2012.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xvi.i	xvi.i
xxix—xxxii	xxix—xxxii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1—SH:3
CD2:3, CD2:4	CD2:3—CD2:4.1
CD2:18.1—CD2:19	CD2:18.1—CD2:19
CD2:43—CD2:46	CD2:43—CD2:46.1
CD54:36.1—CD54:38	CD54:37—CD54:38.1
CD110:1, CD110:2	CD110:1, CD110:2
CD110:8.1—CD110:10	CD110:9—CD110:10.1
CD110:17, CD110:18	CD110:17, CD110:18
CD114:7—CD114:10	CD114:7—CD114:10
CD114:25, CD114:26	CD114:25—CD114:26.1
CD114:36.1—CD114:38	CD114:37—CD114:38.1
	VOLUME II
xvi.i	xvi.i
xxix—xxxii	xxix—xxxii
CD146:1, CD146:2	CD146:1, CD146:2
CD146:7, CD146:8	CD146:7—CD146:8.2
CD162:1, CD162:2	CD162:1, CD162:2
CD162:9—CD162:18	CD162:9—CD162:18.1
CD162:23—CD162:28	CD162:23—CD162:28.1
CD162:67, CD162:68	CD162:67, CD162:68
CD162:73, CD162:74	CD162:73, CD162:74
CD170:38.1—CD170:44	CD170:39—CD170:44

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CCT:37, CCT:38	CCT:37—CCT:39
CDi:89, CDi:90	CDi:89, CDi:90
CDi:103, CDi:104	CDi:103, CDi:104
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SUPPLEMENT NO. 58
VOLUMES I AND II
December 2011

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24665, November 3, 2011.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD34:1—CD34:6.1	CD34:1—CD34:6.1
CD46:11, CD46:12	CD46:11—CD46:12.1
CD54:3—CD54:4.1	CD54:3—CD54:4.1
CD54:39, CD54:40	CD54:39—CD54:40.3
CD82:3, CD82:4	CD82:3, CD82:4
CD82:17—CD82:22	CD82:17—CD82:22.18
CD134:1, CD134:2	CD134:1, CD134:2
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	VOLUME II
CD154:25—CD154:28.2	CD154:25—CD154:28.2
CD154:35, CD154:36	CD154:35—CD154:36.1
CD162:1—CD162:4	CD162:1—CD162:4
CD162:9—CD162:12	CD162:9—CD162.12.1
CD162:17, CD162:18	CD162:17, CD162:18
CD162:25, CD162:26	CD162:25—CD162.26.1
CD162:35, CD162:36	CD162:35—CD162:36.1
CD162:45, CD162:46	CD162:45, CD162:46
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CCT:37, CCT:38	CCT:37, CCT:38
SLT:5, SLT:6	SLT:5—SLT:6.1
CDi:29—CDi:30.1	CDi:29—CDi:30.1
CDi:39—CDi:40.1	CDi:39—CDi:40.1

Remove Old Pages	*Insert New Pages*
CDi:44.1—CDi:50	CDi:45—CDi:50.1
CDi:65—CDi:70.1	CDi:65—CDi:70.1
CDi:88.1—CDi:88.3	CDi:88.1—CDi:88.3
CDi:105—CDi:108	CDi:105—CDi:108.1
CDi:129, CDi:130	CDi:129, CDi:130

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SUPPLEMENT NO. 57
VOLUMES I AND II
October 2011

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24560, August 18, 2011.

See the Code Comparative Table—Volume II for further information.

Included in the Charter is:

Referendum of October 2, 2010.

See the Charter Comparative Table—Volume I for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
xv—xvi.i	xv—xvi.i
xix—xx.i	xix—xx.i
xxxi—xxxiv	xxxi—xxxiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CHT:i	CHT:i
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	CHT:v
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CHTCT:1	CHTCT:1
CD26:5, CD26:6	CD26:5, CD26:6
CD26:22.3, CD26:22.4	CD26:22.3—CD26:22.5
CD26:24.1—CD26:26	CD26:25—CD26:26.3
CD28:11, CD28:12	CD28:11, CD28:12
CD30:9, CD30:10	CD30:9, CD30:10
CD30:74.1—CD30:76.1	CD30:75—CD30:76.1
CD66:3	CD66:3
CD66:36.3—CD66:38	CD66:37—CD66:38.1
CD70:1, CD70:2	CD70:1—CD70:2.1
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CD134:1, CD134:2	CD134:1, CD134:2
CD134:8.1—CD134:10	CD134:9—CD134:10.1
CD138:11—CD138:12.2	CD138:11—CD138:12.2
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SLT:1—SLT:10	SLT:1—SLT:11
CHTi:3—CHTi:9	CHTi:3—CHTi:9
CDi:3—CDi:4.1	CDi:3—CDi:4.1
CDi:15, CDi:16	CDi:15—CDi:16.1
CDi:23—CDi:26	CDi:23—CDi:26.1
CDi:35, CDi:36	CDi:35, CDi:36
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CDi:48.1—CDi:58.2	CDi:49—CDi:58.2
CDi:64.1—CDi:70	CDi:65—CDi:70.1
CDi:77—CDi:88.2	CDi:77—CDi:88.3
CDi:93—CDi:112	CDi:93—CDi:112.6
CDi:117—CDi:139	CDi:117—CDi:140

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SUPPLEMENT NO. 56
VOLUMES I AND II
July 2011

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24416, enacted May 5, 2011.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
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xix, xx	xix, xx
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CD2:45—CD2:56	CD2:45—CD2:57
CD6:3—CD6:10	CD6:3—CD6:11
CD28:17—CD28:20	CD28:17—CD28:20.1
CD30:16.19—CD30:18	CD30:17—CD30:18.2
CD34:1, CD34:2	CD34:1, CD34:2
CD34:5, CD34:6	CD34:5—CD34:6.1
CD54:3—CD54:4.1	CD54:3—CD54:4.1
CD54:18.1, CD54:18.2	CD54:18.1, CD54:18.2
CD54:35, CD54:36	CD54:35—CD54:36.1
CD54:41—CD54:42.1	CD54:41—CD54:42.2
CD54:46.1—CD54:46.4	CD54:46.1—CD54:46.4
CD70:9—CD70:10.2	CD70:9—CD70:10.2
CD114:7—CD114:10.1	CD114:7—CD114:10.1
CD138:9—CD138:12	CD138:9—CD138:12
CD142:1—CD142:9	CD142:1—CD142:9
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Remove Old Pages	*Insert New Pages*
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CD154:57, CD154:58	CD154:57, CD154:58
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CDi:29—CDi:30.1	CDi:29—CDi:30.1
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CDi:87, CDi:88	CDi:87, CDi:88

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SUPPLEMENT NO. 55
VOLUMES I AND II
March 2011

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24318, enacted February 17, 2011.

See the Code Comparative Table—Volume II for further information.

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xxix, xxx	xxix, xxx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD66:15—CD66:20	CD66:15—CD66:19
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SUPPLEMENT NO. 54
VOLUMES I AND II
January 2011

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24239, enacted December 1, 2010.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD2:12.3—CD2:12.5	CD2:12.3—CD2:12.6
CD2:18.1—CD2:20.1	CD2:19—CD2:20.5
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CD28:15, CD28:16	CD28:15, CD28:16
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CD138:8.3—CD138:12.1	CD138:9—CD138:12.2
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SUPPLEMENT NO. 53
VOLUMES I AND II
September 2010

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 24044, enacted July 15, 2010.

See the Code Comparative Table — Volume II for further information.

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CD150:105—CD150:108	CD150:105—CD15:108.1
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CDi:45, CDi:46	CDi:45—CDi:46.1
CDi:51—CDi:56	CDi:51—CDi:56.1
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SUPPLEMENT NO. 52
VOLUMES I AND II
June 2010

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23971, enacted May 6, 2010.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 51
VOLUMES I AND II
March 2010

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23886, enacted February 25, 2010.

See the Code Comparative Table—Volume II for further information.

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CD134:8.1, CD134:8.2	CD134:8.1, CD134:8.2
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SUPPLEMENT NO. 50
VOLUMES I AND II
December 2009

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23805, enacted November 19, 2009.

See the Code Comparative Table—Ordinances—Volume II for further information.

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SUPPLEMENT NO. 49
VOLUMES I AND II
September 2009

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23668, enacted August 6, 2009.

See the Code Comparative Table—Ordinances—Volume II for further information.

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SUPPLEMENT NO. 48
VOLUMES I AND II
June 2009

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23553, enacted May 21, 2009.

See the Code Comparative Table—Ordinances for further information.

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xxiv.i—xxxiv	xxv—xxxiv
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CD110:16.1—CD110:18.1	CD110:17—CD110:18.2
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SUPPLEMENT NO. 47
April 2009

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23421, adopted March 5, 2009.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of December 8, 2008.

See the Charter Comparative Table for further information.

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Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 46
VOLUMES I AND II
January 2009

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23327, adopted November 20, 2008.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 45
VOLUMES I AND II
October 2008

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23213, adopted August 29, 2008.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 44
VOLUMES I AND II
June 2008

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 23108, adopted May 15, 2008.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 43
VOLUMES I AND II
March 2008

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22983, adopted January 24, 2008.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 42
VOLUMES I AND II
November 2007

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22861, adopted October 18, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 41
VOLUMES I AND II
July 2007

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22618, adopted May 3, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 40
VOLUMES I AND II
March 2007

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22526, adopted February 15, 2007.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 39
VOLUMES I AND II
December 2006

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22412, adopted October 5, 2006.

See the Code Comparative Table for further information.

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CCT:31	CCT:31
CDi:12.1—CDi:14	CDi:13—CDi:14.1
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SUPPLEMENT NO. 38
VOLUMES I AND II
October 2006

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22323, adopted July 20, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:6.1	CD2:6.1
CD2:45	CD2:45
CD70:43, CD70:44	CD70:43, CD70:44
	VOLUME II
CCT:31	CCT:31
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SUPPLEMENT NO. 37
VOLUMES I AND II
June 2006

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22243, adopted May 25, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xv—xxxiii	xv—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD10:32.1—CD10:33	CD10:32.1—CD10:33
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CD34:1, CD34:2	CD34:1, CD34:2
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CD78:1, CD78:2	CD78:1, CD78:2
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CD162:43—CD162:46.1	CD162:43—CD162:46.1
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SUPPLEMENT NO. 36
VOLUMES I AND II
March 2006

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANIA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22131, adopted January 19, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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CD154:71—CD154:72.1	CD154:71—CD154:72.4
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SUPPLEMENT NO. 35
VOLUMES I AND II
December 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22085, adopted November 17, 2005.

See the Code Comparative Table for further information.

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xxix, xxx	xxix, xxx
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CDi:47, CDi:48	CDi:47, CDi:48
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SUPPLEMENT NO. 34
VOLUMES I AND II
November 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22057, adopted October 12, 2005.

See the Code Comparative Table for further information.

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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 25, Revision
VOLUMES I AND II
July 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement is printed to correct an error in the Checklist of Up-to-date pages. Please insert and remove as directed below.

Remove old pages	*Insert new pages*
VOLUME I	
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)

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SUPPLEMENT NO. 33
VOLUMES I AND II
June 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21953, adopted May 5, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD154:71—CD154:72.1	CD154:71—CD154:72.1
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CDi:20.1—CDi:22	CDi:21—CDi:22.1
CDi:61—CDi:66	CDi:61—CDi:66
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CDi:115—CDi:118.1	CDi:115—CDi:118.1
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SUPPLEMENT NO. 32
VOLUMES I and II
April 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21822, adopted January 20, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xxiii, xxiv	xxiii—xxiv.i
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CDi:123—CDi:126	CDi:123—CDi:126
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SUPPLEMENT NO. 31
VOLUMES I and II
January 2005

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21659, adopted August 19, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 30
VOLUMES I AND II
October 2004

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21622, adopted August 5, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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CDi:45—CDi:46.1	CDi:45—CDi:46.1
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SUPPLEMENT NO. 29
VOLUMES I and II
July 2004

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,548, adopted May 20, 2004.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of April 6, 2004.

See the Charter Comparative Table for further information.

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CD158:7—CD158:14	CD158:7—CD158:14.1
CD158:19—CD158:26	CD158:19—CD158:26.1
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SUPPLEMENT NO. 28
VOLUMES I AND II
March 2004

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,408 adopted January 22, 2004.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xxi, xxii	xxi, xxii
xxvii, xxviii	xxvii—xviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:1, CD2:2	CD2:1, CD2:2
CD2:9—CD2:10.2	CD2:9—CD2:10.2
CD2:43—CD2:45	CD2:43—CD2:45
CD18:7, CD18:8	CD18:7, CD18:8
CD54:17—CD54:18.1	CD54:17—CD54:18.3
CD114:1—CD114:3	CD114:1—CD114:3
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CCT:27	CCT:27
CDi:1—CDi:2.1	CDi:1—CDi:2.1
CDi:19—CDi:20.1	CDi:19—CDi:20.1
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SUPPLEMENT NO. 27
VOLUMES I AND II
December 2003

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,323, adopted November 6, 2003.

See the Code Comparative Table—Ordinances—Volume II for further information.

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	VOLUME I
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CDi:81—CDi:88	CDi:81—CDi:88.1

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SUPPLEMENT NO. 26
VOLUMES I AND II
September 2003

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,155, adopted July 2, 2003.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
VOLUME I	
xxix—xxxiii	xxix—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 25
VOLUMES I AND II
June 2003

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,095, adopted May 1, 2003.

See the Code Comparative Table for further information.

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	VOLUME I
xxi—xxxiii	xxi—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 24
VOLUMES I AND II
May 2003

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,067, adopted April 16, 2003.

See the Code Comparative Table for further information.

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	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	VOLUME II
CD154:91—CD154:94.1	CD154:91—CD154:94.1
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SUPPLEMENT NO. 23
VOLUMES I AND II
January 2003

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,874, adopted October 10, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xxvii—xxxiii	xxvii—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD6:4.1	CD6:4.1
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SUPPLEMENT NO. 22
VOLUMES I AND II
October 2002

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,765, adopted June 20, 2002.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD2:8.3—CD2:10	CD2:9—CD2:10.2
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SUPPLEMENT NO. 21
VOLUMES I AND II
July 2002

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,684, adopted May 2, 2002.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xxvi.i—xxviii	xxvii—xxviii.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 20
VOLUMES I AND II
April 2002

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,466, adopted November 30, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xxiii—xxvi.i	xxiii—xxvi.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD34:5—CD34:8	CD34:5—CD34:8.1
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SUPPLEMENT NO. 19
December 2001

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,372, adopted September 20, 2001.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
VOLUME I	
xxv, xxvi	xxv—xxvi.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD10:7, CD10:8	CD10:7, CD10:8
CD50:3, CD50:4	CD50:3—CD50:4.1
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xxv, xxvi	xxv—xxvi.i
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SUPPLEMENT NO. 18
October 2001

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,076, adopted August 2, 2001.

See the Code Comparative Table for further information.

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	VOLUME I
xvii—xxxiii	xvii—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 17
June 2001

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,013, adopted January 18, 2001.

See the Code Comparative Table for further information.

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	VOLUME I
xvii—xxxiii	xvii—xxxiii
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CCT:23, CCT:24	CCT:23—CCT:25
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SUPPLEMENT NO. 16
VOLUMES I AND II
February 2001

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,919 adopted November 16, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
xix—xx.i	xix, xx
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD66:13—CD66:20	CD66:13—CD66:17
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SUPPLEMENT NO. 15
VOLUMES I AND II
October 2000

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,791, adopted August 3, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 14
VOLUMES I AND II
JULY 2000

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,676, adopted May 18, 2000.

See the Code Comparative Table for further information.

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	VOLUME I
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD34:3—CD34:6	CD34:3—CD34:6.1
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SUPPLEMENT NO. 13
VOLUMES I AND II
May 2000

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,594, adopted March 16, 2000.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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xxiii—xxxiii	xxiii—xxxiii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 12
VOLUMES I and II
January 2000

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,421, adopted October 21, 1999.

See the Code Comparative Table for further information.

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xv—xxxiii	xv—xxxiii
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SUPPLEMENT NO. 11
VOLUMES I and II
July 1999

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,286, adopted June 17, 1999.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 10
VOLUMES I and II
April 1999

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,119, adopted February 18, 1999.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 9
VOLUMES I AND II
January 1999

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18, 939, enacted October 15, 1998.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 8
VOLUMES I AND II
November 1998

CODE OF ORDINANCES

City and County of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18,854, enacted August 20, 1998.

See the Code Comparative Table for further information.

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	VOLUME I
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SUPPLEMENT NO. 7
VOLUMES I AND II
August 1998

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18,794, enacted July 1, 1998.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 6
VOLUMES I AND II
April 1998

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18,636, enacted February 19, 1998.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 5
VOLUMES I AND II
July 1997

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18,234, enacted May 15, 1997.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 4
November 1996

CODE OF ORDINANCES

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17,794, enacted October 3, 1996.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 3
VOLUMES I AND II
September 1996

CODE

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17,639, enacted July 3, 1996.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
April 1996

CODE

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17,360, enacted December 28, 1995.

See the Code Comparative Table for further information.

Included in the Charter is:

Referendum of November 18, 1995.

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 1
August 1995

CODE

City of

NEW ORLEANS, LOUISIANA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17,097 enacted June 15, 1995.

See the Code Comparative Table for further information.

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CODE OF THE

CITY OF

NEW ORLEANS, LOUISIANA

VOLUME I

Published in 1995 by Order of the City Council

Adopted: November 16, 1995
Effective: December 31, 1995

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of the

CITY OF

NEW ORLEANS, LOUISIANA

(2018)

LaToya Cantrell
Mayor

Helena Moreno, *Councilmember-At-Large, Division 1*
Jason Rogers Williams, *Councilmember-At-Large, Division 2*
Joseph "Joe" Giarrusso III, *Councilmember, District A*
Jay H. Banks, *Councilmember, District B*
Kristin Gisleson Palmer, *Councilmember, District C*
Jared C. Brossett, *Councilmember, District D*
Cyndi Nguyen, *Councilmember, District E*
City Council

Sharonda Williams
City Attorney

Lora W. Johnson
Clerk of the Council

OFFICIALS

of the

CITY OF

NEW ORLEANS, LOUISIANA

AT THE TIME OF THIS CODIFICATION

Marc H. Morial
Mayor

Jim Singleton, *Councilmember-At-Large*
Peggy Wilson, *Councilmember-At-Large*
Suzanne Haik Terrell, *Councilmember, District A*
Oliver M. Thomas, *Councilmember, District B*
Troy A. Carter, *Councilmember, District C*
Roy E. Glapion, Jr., *Councilmember, District D*
Ellen Hazeur-Distance, *Councilmember, District E*
City Council

Avis Marie Russell
City Attorney

Emma J. Williams
Clerk of the Council

PREFACE

This Code constitutes a complete recodification of the general and permanent ordinances of the City of New Orleans, Louisiana.

Source materials used in the preparation of the Code were the 1956 Code, as supplemented through April 7, 1994, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1956 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter

of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CHARTER	CHT:1
CHARTER COMPARATIVE TABLE	CHTCT:1
CODE	CD1:1
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CODE COMPARATIVE TABLES	CCT:1
STATE LAW REFERENCE TABLE	SLT:1
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CODE INDEX	CDi:1

Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Alyce Whitson and Chantal Parker, Supervising Editors, and Ron McLaughlin, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Emma Williams, Clerk of the Council, Bruce Naccari, former First Assistant City Attorney, and the other members of the city staff, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law

of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION
Tallahassee, Florida

ADOPTING ORDINANCE

ORDNANCE
(AS AMENDED)
CITY OF NEW ORLEANS

CITY HALL: July 6, 1995
CALENDAR NO: 20,071

NO. 17271 MAYOR COUNCIL SERIES

BY: COUNCILMEMBERS WILSON, GLAPION AND HAZEUR-DISTANCE

AN ORDINANCE amending and readopting in its entirety Ordinance No. 828, M.C.S., known as the Code of the City of New Orleans so as to effect a comprehensive restatement and reorganization thereof to be designated and cited as "The Code of the City of New Orleans, Louisiana, 1995"; to remove obsolete and superseded matter; to provide a penalty for violation thereof; to provide for the manner of amending said Code; to provide when said restated Code and this ordinance shall become effective; to provide for the coordination of the publication of this ordinance and all other general ordinances of the City under a system of common indexing and to provide for citation of the same as "The Comprehensive Code of Local Ordinances of the City of New Orleans," and otherwise to provide with respect thereto.

WHEREAS, pursuant to Section 3-114 of the Home Rule Charter of the City of New Orleans, the City Council has caused general revisions to the text of the City Code of 1956 to be prepared, containing all of the ordinances of the City of general application which are appropriate for continuation as law, omitting however therefrom certain ordinances which have heretofore been either separately published or determined to be no longer applicable; and

WHEREAS, the Council has caused copies of such revised Code to be prepared and made available for public distribution and more than 90 days have elapsed following July 11, 1995, the date on which the Council noted in the official journal the availability of copies of such proposed Code to the public; and there has been compliance with all applicable state laws; now, therefore.

SECTION 1. THE COUNCIL OF THE CITY OF NEW ORLEANS HEREBY ORDAINS, as authorized by Section 3-114 of the Home Rule Charter of the City of New Orleans, that Ordinance No. 828 M.C.S., as amended to date, be and the same is hereby amended and reordained in its entirety, so that the text thereof shall read as set forth in the text, attached hereto as an exhibit and incorporated herein by reference, constituting and comprehending the ordinances of the City of New Orleans of general application which are appropriate for continuation as law (excepting those excepted in Section 7 hereof), as codified and printed and heretofore made available for public distribution, and to be published by Municipal Code Corporation, consisting of Chapters 1 through 170, each inclusive, which shall constitute and may be cited as "The Code of the City of New Orleans, 1995" or as the "City Code of 1995."

SECTION 2. That the provisions of the City Code of 1995 shall become effective and shall be enforced on and after December 31, 1995, or on the last day of the month next following the month in which this ordinance becomes law, whichever is the later date, and all ordinances of general application in force on said date and not contained in said City Code of 1995 or excepted and preserved by Section 7 hereof are hereby repealed on and after said day, except as hereinafter provided. Any and all violations against any provision of said City Code of 1995 which consist of one or more acts or omissions occurring on or after said date shall be charged and prosecuted as in violation of Ordinance No. 828, M.C.S., as revised by this ordinance, and the particular Section or Sections of the City Code of 1995 violated, as said Code reads on the effective date or as same may be thereafter amended.

SECTION 3. The repeal provided for in Section 2 hereof shall neither be construed to revive any ordinance or part thereof that has been replaced by a subsequent ordinance that is repealed by this ordinance, nor to affect any offense or act committed or done nor any omission made, nor any penalty or forfeiture incurred or any contract or right established or accruing before the day this ordinance shall become effective.

Any and all taxes, fees or other revenues due to the City or any other person or entity under any law of the City of New Orleans in effect prior to the effective date of this ordinance shall remain due and shall be paid to the city or to the person or entity to whom it is owed, who may enforce payment and collect the same as provided by applicable state and/or City law. Notwithstanding the adoption of this ordinance and/or repeal of any ordinance or part thereof which is repealed by this ordinance, any violation of any such ordinance or of Ordinance No. 828 M.C.S., as the same read prior to the effective date of this ordinance shall be subject to prosecution and upon conviction shall be penalized as provided by said ordinance as it read at the time of said violation. The repeal provided in this Ordinance shall not impair or vitiate any penalty or forfeiture incurred or for which any person became liable prior to the effective date hereof; nor shall it vitiate any contractual or other right which has been established or made exigible against the City prior to the effective date hereof.

SECTION 4. Unless another penalty is expressly provided, every person who does anything prohibited or fails to do any act required by any provision of the City Code of 1995, or of the Home Rule Charter of the City of New Orleans, or any ordinance, rule or regulation adopted under the authority or issued in pursuance thereof, shall be punished by a fine not exceeding the maximum fine which may be imposed for violation of an ordinance of this City by the Municipal Court or the Traffic Court of New Orleans, as the case may be, or by a term of imprisonment for not more than six months or both such a fine and such a term of imprisonment. Each act of violation and each day upon which any such violation shall occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any section of the City Code of 1995, the Home Rule Charter of the City of New Orleans, or any ordinance or rule or regulation adopted or issued under the authority or in pursuance thereof, whether or not such penalty is reenacted in the amendatory ordinance or other instrument. In addition to the penalty prescribed above, the City may pursue other remedies

such as abatement of nuisances, injunctive relief, civil penalties and revocation of licenses or permits, unless controlling law requires an election of one or more remedies to the exclusion of one or more others.

SECTION 5. Whenever funds are provided for the publication of any official supplements to said City Code of 1995, which publication shall be under the direction of the Clerk of Council, all later ordinances which are of general application or parts of ordinances which have general application, or amendments thereof or of the Code, and which are not adopted as an amendment to one of the ordinances listed or described in Section 7 hereof, shall be classified and arranged in accordance with the style and form followed in the attached text of the City Code of 1995 and given proper chapter and section numbers, and all violations involving same occurring on or after the date of publication of such supplement or supplements shall be charged and prosecuted as in violation of Ordinance No. 828, M.C.S., as amended and the particular Section or Sections of the City Code of 1995, as amended, involved or as they may be thereafter amended.

SECTION 6. Ordinances adopted after February 16, 1995, that amended or refer to ordinances that have been codified in the City Code of 1995 shall be treated as provided in Section 5 hereof and construed as if they amend or refer to like provisions of said Code. The provisions of this ordinance shall not be deemed to repeal any ordinances adopted after February 16, 1995, except to the extent that the same conflicts directly with the provisions of the City Code of 1995.

SECTION 7. A) The ordinances of general application, including but not limited to the following, are appropriate for continuation, are not repealed by this Ordinance and are preserved:

Fire Prevention Code (Ordinance Number 4912 M.C.S., as amended).

Comprehensive Zoning Ordinance (Ordinance Number 4264 M.C.S., as amended).

Standard Amusement Code (11626 M.C.S., as amended).

Standard Building Code (Ordinance Number 17166 M.C.S., as amended).

Standard Gas Code (Ordinance Number 17,168 M.C.S., as amended).

Standard Mechanical Code (Ordinance Number 17167 M.C.S., as amended).

Ordinances creating, authorizing the creation of, and/or regulating the French Market Corporation, Piazza d'Italia Development Corporation, Municipal Yacht Harbor Corporation, Upper Pontalba Building Restoration Corporation, Canal Street Development Corporation and/or Rivergate Development Corporation and/or any other Public Belt Corporation, public trust, special tax district, and/or special local agency of the City.

B) This ordinance shall not be construed to repeal any ordinance or resolution promising or guaranteeing the payment of money for the City or authorizing the issue of any bonds of the City or any evidence of the City's indebtedness, or any contract or obligation assumed by the City; nor any administrative ordinances, rules, regulations, or resolutions of the Council not in conflict or inconsistent with the provisions of the Code; nor the annual appropriations, property tax or license tax ordinance; nor any ordinance

levying or imposing any tax for one year only; nor any ordinances fixing the compensation of city officers and employees; nor any temporary or special ordinance; nor any ordinance dedicating, opening, vacating or closing any street or streets or public parks or squares or changing the name of any such street, park or square; nor any ordinance or resolution of the City providing for local improvements or levying assessments for local improvements; nor any right or franchise conferred by ordinance or resolution of the City providing for local improvements or levying assessments for local improvements; nor any ordinance authorizing or granting a specific lease; nor any right or franchise conferred by ordinance or resolution of the City on any person or corporation; nor any right or franchise conferred by contract between the City and any person or corporation; nor any ordinances or resolution or other action of the City providing the servitudes, switchtracks, grants and rights to the Public Belt Railroad Commission of the City of New Orleans; nor any ordinance or resolution fixing the rates or regulating services of a specific public utility.

C) The City Code of 1995, as amended, and the ordinances listed in subsection (A) of this Section shall together constitute and may be referred to as "The New Orleans Comprehensive Code of Local Ordinances." The sections and other component portions of said Ordinance may be cited as "NOCCOLO-_____, _____" with the name of either the City Code of 1995 or the name of one of the ordinances listed in Subsection (A) stated in the first blank and the designation of the appropriate section or portion of said City Code or other ordinance stated in the second blank.

D) When funds are available, the Clerk shall cause each publication of the City Code of 1995, as amended, and each supplement thereto, to include a comprehensive integrated index to the City Code of 1995; the Home Rule Charter of the City of New Orleans, and the ordinances listed in Subsection (A) of this section.

E) The ordinances listed in Subsection (A) may be published either separately from or together with the City Code of 1995; provided, that, prior to any reprinting, republication, or supplementation of each such ordinance, the officer or agency proposing such reprinting, republication, or supplementation shall report the proposed action in writing to the Council at least thirty days prior to the expenditure of any public funds for said purpose. The written report shall include an analysis of the costs and benefits of possible publication of said ordinance in the same format and by the same agency and/or contractor as the agency and/or contractor responsible for publication and/or supplementation of the City Code of 1995, as amended.

F) Every contractor or agency responsible for the printing or publishing or supplementation of City ordinances shall be required to provide the text thereof to the Clerk of Council in an electronic format prescribed by the City Council, or if the City Council does not prescribe the format by an ordinance or resolution, by the Chief Administrative Officer. The Clerk shall retain said electronically stored and formatted text for use by the officers and employees of the City and its boards so that electronically stored texts or portions thereof may be made available to the print-handicapped, the blind or other disabled persons in order to ensure their access thereto.

SECTION 8. This ordinance with the text of the City Code of 1995 hereby adopted shall be printed and published in book form, and this ordinance, but without the Code, shall be published in the official journal.

SECTION 9. The provisions of Section 1-8, 1-10, 1-11, 1-12 and 1-13, of the City Code of 1995 with regard to the repeal, severability, amendment to, correction of errors in, and penalization of violations of ordinances shall apply as well to the other ordinances which constitute a part of the New Orleans Comprehensive Code of Local Ordinances and to any ordinances amendatory to any one or more of them and to all ordinances of the Council in which no contrary provision is expressly included.

ADOPTED BY THE COUNCIL OF THE CITY OF NEW ORLEANS November 16, 1995.

PEGGY WILSON
PRESIDENT OF COUNCIL

DELIVERED TO THE MAYOR ON November 17, 1995

APPROVED: November 27, 1995

MARC H. MORIAL
MAYOR

Returned by the mayor on November 28, 1995 AT 12:37 P.M.

EMMA J. WILLIAMS
CLERK OF COUNCIL

YEAS: Carter, Glapion, Hazeur, Singleton, Thomas, Wilson - 6

NAYS: 0

ABSENT: Terrell, (Out of Country) - 1

EMBL

THE FOREGOING IS CERTIFIED
TO BE A TRUE AND CORRECT COPY
/s/Emma J. Williams
CLERK OF COUNCIL

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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24110	9- 2-2010	Include	54
24111	9- 2-2010	Include	54
24126	9- 2-2010	Include	54
24132	9-16-2010	Include	54
24156	10-21-2010	Include	54
24225	12- 1-2010	Include	54
24226	12- 1-2010	Include	54
24227	12- 1-2010	Include	54
24231	12- 1-2010	Include	54
24239	12- 1-2010	Include	54
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24242	12-16-2010	Include	55
24293	2-17-2011	Include	55
24308	2-17-2011	Include	55
24309	2-17-2011	Include	55
24310	2-17-2011	Include	55
24311	2-17-2011	Include	55
24312	2-17-2011	Include	55
24313	2-17-2011	Include	55
24314	2-17-2011	Include	55
24315	2-17-2011	Include	55
24316	2-17-2011	Include	55
24317	2-17-2011	Include	55
24318	2-17-2011	Include	55
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024193	11- 4-2010	Include	56
24240	12-16-2010	Include	56
24246	12-16-2010	Include	56
24247	12-16-2010	Include	56
24248	12-16-2010	Include	56
24249	12-16-2010	Include	56
24259	1- 6-2011	Include	56

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24321	3- 3-2011	Include	56
24322	3- 3-2011	Include	56
24328	3- 3-2011	Include	56
24337	3- 3-2011	Include	56
24341	3- 3-2011	Include	56
24350	3-17-2011	Include	56
24372	4- 7-2011	Include	56
24384	4- 7-2011	Include	56
24395	4-28-2011	Include	56
24403	4-28-2011	Include	56
24404	4-28-2011	Include	56
24407	5- 5-2011	Include	56
24416	5- 5-2011	Include	56
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	10- 2-2010	Include	57
24428	6- 2-2011	Include	57
24429	6- 2-2011	Include	57
24430	6- 2-2011	Include	57
24431	6- 2-2011	Include	57
24432	6- 2-2011	Include	57
24433	6- 2-2011	Include	57
24435	6- 2-2011	Include	57
24437	6- 2-2011	Include	57
24452	6- 2-2011	Include	57
24470	6-16-2011	Include	57
22055	9- 8-2005	Include	57
22056	9- 8-2005	Include	57
24554	8-18-2011	Include	57
24560	8-18-2011	Include	57
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24563	9- 1-2011	Include	58
024572	9- 1-2011	Include	58
24573	9- 1-2011	Include	58
24574	9- 1-2011	Include	58
24588	9- 1-2011	Include	58
24590	9-22-2011	Include	58
24596	9-22-2011	Include	58
24628	10-20-2011	Include	58
24629	10-20-2011	Include	58
24636	10-20-2011	Include	58
24644	10-21-2011	Include	58
24663	11- 3-2011	Include	58
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24667	11-17-2011	Include	59
24668	11-17-2011	Include	59

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24673	11-17-2011	Include	59
24682	12- 1-2011	Include	59
24683	12- 1-2011	Include	59
24706	12-15-2011	Include	59
24713	12-15-2011	Include	59
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24724	1- 5-2012	Include	59
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24842	4-19-12	Include	60
24843	4-19-12	Include	60
24844	4-19-12	Include	60
24845	4-19-12	Include	60
24846	4-19-12	Include	60
24847	4-19-12	Include	60
24848	4-19-12	Include	60
24849	4-19-12	Include	60
24850	4-19-12	Include	60
24851	4-19-12	Include	60
24852	4-19-12	Include	60
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24854	4-19-12	Include	60
24855	4-19-12	Include	60
24859	4-19-12	Include	60
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24861	4-19-12	Include	60
24862	4-19-12	Include	60
24863	4-19-12	Include	60
24864	4-19-12	Include	60
24865	4-19-12	Include	60
24866	4-19-12	Include	60
24867	4-19-12	Include	60
24875	6- 7-12	Include	60
24876	6- 7-12	Include	60
Supp. No. 61			
24894	6-28-12	Include	61
24948	7-12-12	Include	61
24950	7-12-12	Include	61
24960	7-26-12	Include	61
24961	7-26-12	Include	61
24962	7-26-12	Include	61

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
24963	7-26-12	Include	61
24975	7-26-12	Include	61
24994	8-23-12	Include	61
Supp. No. 62			
25014	9- 6-12	Include	62
25017	9-20-12	Include	62
25019	9-20-12	Include	62
25023	9-20-12	Include	62
24927	7-12-12	Omit	62
24928	7-12-12	Omit	62
24929	7-12-12	Omit	62
24930	7-12-12	Omit	62
24931	7-12-12	Omit	62
24932	7-12-12	Omit	62
24933	7-12-12	Omit	62
24934	7-12-12	Omit	62
24935	7-12-12	Omit	62
24936	7-12-12	Omit	62
24937	7-12-12	Omit	62
24938	7-12-12	Omit	62
24939	7-12-12	Omit	62
24940	7-12-12	Omit	62
24941	7-12-12	Omit	62
24942	7-12-12	Omit	62
24943	7-12-12	Omit	62
24944	7-12-12	Omit	62
24945	7-12-12	Omit	62
24946	7-12-12	Omit	62
24947	7-12-12	Omit	62
24949	7-12-12	Omit	62
24951	7-12-12	Omit	62
24952	7-12-12	Omit	62
24953	7-26-12	Omit	62
24954	7-26-12	Omit	62
24955	7-26-12	Omit	62
24958	7-26-12	Omit	62
24959	7-26-12	Omit	62
24964	7-26-12	Omit	62
24965	7-26-12	Omit	62
24966	7-26-12	Omit	62
24967	7-26-12	Omit	62
24968	7-26-12	Omit	62
24969	7-26-12	Omit	62
24970	7-26-12	Omit	62
24971	7-26-12	Omit	62
24972	7-26-12	Omit	62

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
24973	7-26-12	Omit	62
24974	7-26-12	Omit	62
24976	7-26-12	Omit	62
24977	7-26-12	Omit	62
24978	8- 9-12	Omit	62
24985	8- 9-12	Omit	62
24986	8- 9-12	Omit	62
24987	8- 9-12	Omit	62
24988	8-23-12	Omit	62
24989	8-23-12	Omit	62
24990	8-23-12	Omit	62
24991	8-23-12	Omit	62
24992	8-23-12	Omit	62
24993	8-23-12	Omit	62
24998	8-23-12	Omit	62
25000	8-23-12	Omit	62
25001	8-23-12	Omit	62
25002	8-23-12	Omit	62
25008	9- 6-12	Omit	62
25009	9- 6-12	Omit	62
25010	9- 6-12	Omit	62
25011	9- 6-12	Omit	62
25012	9- 6-12	Omit	62
25013	9- 6-12	Omit	62
25015	9-20-12	Omit	62
25016	9-20-12	Omit	62
25018	9-20-12	Omit	62
25020	9-20-12	Omit	62
25021	9-20-12	Omit	62
25022	9-20-12	Omit	62
25027	9-20-12	Omit	62
25028	9-20-12	Omit	62
25029	9-20-12	Omit	62
25030	9-20-12	Omit	62
25031	9-20-12	Omit	62
25032	10- 4-12	Include	62
25041	10- 4-12	Omit	62
25054	10-18-12	Include	62
25056	10-18-12	Include	62
25098	11-15-12	Include	62
25102	11-15-12	Include	62
Supp. No. 63			
25118	12- 6-12	Include	63
25126	12-20-12	Include	63
25156	1-10-13	Include	63
25159	1-10-13	Include	63

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25196	2- 7-13	Include	63
Supp. No. 64			
22930	12- 6-07	Include	64
24823	4- 5-12	Omit	64
25060	11- 1-12	Omit	64
25061	11- 1-12	Omit	64
25062	11- 1-12	Omit	64
25063	11- 1-12	Omit	64
25064	11- 1-12	Omit	64
25066	11- 1-12	Omit	64
25073	11- 1-12	Omit	64
25074	11- 1-12	Omit	64
25075	11- 1-12	Omit	64
25076	11- 1-12	Omit	64
25077	11- 1-12	Omit	64
25078	11- 1-12	Omit	64
25079	11- 1-12	Omit	64
25080	11- 1-12	Omit	64
25081	11- 1-12	Omit	64
25082	11- 1-12	Omit	64
25083	11- 1-12	Omit	64
25084	11-15-12	Omit	64
25085	11-15-12	Omit	64
25086	11-15-12	Omit	64
25087	11-15-12	Omit	64
25094	11-15-12	Omit	64
25095	11-15-12	Omit	64
25096	11-15-12	Omit	64
25097	11-15-12	Omit	64
25099	11-15-12	Omit	64
25100	11-15-12	Omit	64
25103	11-30-12	Omit	64
25104	11-30-12	Omit	64
25105	11-30-12	Omit	64
25106	11-30-12	Omit	64
25107	11-30-12	Omit	64
25108	11-30-12	Include	64
25109	11-30-12	Include	64
25110	11-30-12	Omit	64
25112	11-30-12	Omit	64
25115	11-30-12	Omit	64
25116	11-30-12	Omit	64
25117	12- 6-12	Omit	64
25119	12- 6-12	Omit	64
25124	12- 6-12	Omit	64
25125	12- 6-12	Omit	64

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25127	12-20-12	Omit	64
25128	12-20-12	Omit	64
25129	12-20-12	Omit	64
25130	12-20-12	Omit	64
25131	12-20-12	Omit	64
25132	12-20-12	Omit	64
25133	12-20-12	Omit	64
25134	12-20-12	Omit	64
25135	12-20-12	Omit	64
25136	12-20-12	Omit	64
25137	12-20-12	Omit	64
25138	12-20-12	Omit	64
25139	12-20-12	Omit	64
25140	1-10-13	Omit	64
25145	1-10-13	Omit	64
25146	1-10-13	Omit	64
25147	1-10-13	Omit	64
25148	1-10-13	Omit	64
25149	1-10-13	Omit	64
25150	1-10-13	Omit	64
25151	1-10-13	Omit	64
25152	1-10-13	Omit	64
25153	1-10-13	Omit	64
25154	1-10-13	Omit	64
25155	1-10-13	Omit	64
25157	1-10-13	Omit	64
25158	1-10-13	Omit	64
25161	1-24-13	Omit	64
25162	1-24-13	Omit	64
25163	1-24-13	Omit	64
25164	2- 7-13	Omit	64
25166	2- 7-13	Omit	64
25175	2- 7-13	Omit	64
25176	2- 7-13	Omit	64
25177	2- 7-13	Omit	64
25178	2- 7-13	Omit	64
25179	2- 7-13	Omit	64
25180	2- 7-13	Omit	64
25181	2- 7-13	Omit	64
25182	2- 7-13	Omit	64
25183	2- 7-13	Omit	64
25184	2- 7-13	Omit	64
25185	2- 7-13	Omit	64
25186	2- 7-13	Omit	64
25187	2- 7-13	Omit	64
25188	2- 7-13	Omit	64

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25189	2- 7-13	Omit	64
25190	2- 7-13	Omit	64
25191	2- 7-13	Omit	64
25192	2- 7-13	Omit	64
25193	2- 7-13	Omit	64
25194	2- 7-13	Omit	64
25195	2- 7-13	Omit	64
25198	2-21-13	Omit	64
25199	2-21-13	Omit	64
25200	2-21-13	Omit	64
25201	2-21-13	Omit	64
25202	2-21-13	Omit	64
25203	2-21-13	Omit	64
25204	2-21-13	Omit	64
25205	3- 7-13	Include	64
25206	3- 7-13	Include	64
25207	3- 7-13	Omit	64
25208	3- 7-13	Omit	64
25209	3- 7-13	Omit	64
25210	3- 7-13	Omit	64
25211	3- 7-13	Omit	64
25212	3- 7-13	Omit	64
25213	3- 7-13	Omit	64
25214	3- 7-13	Omit	64
25215	3- 7-13	Omit	64
25216	3- 7-13	Omit	64
25223	3- 7-13	Omit	64
25224	3- 7-13	Omit	64
25225	3- 7-13	Omit	64
25226	3- 7-13	Omit	64
25227	3- 7-13	Omit	64
25228	3- 7-13	Omit	64
25229	3- 7-13	Omit	64
25230	3- 7-13	Omit	64
25231	3- 7-13	Omit	64
25232	3- 7-13	Omit	64
25233	3- 7-13	Omit	64
25234	3- 7-13	Omit	64
25235	3- 7-13	Omit	64
25236	3- 7-13	Omit	64
25237	3- 7-13	Omit	64
25238	3- 7-13	Omit	64
25239	3- 7-13	Omit	64
25240	3- 7-13	Omit	64
25241	3- 7-13	Omit	64
25242	3- 7-13	Include	64

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25243	3-21-13	Omit	64
25245	3-21-13	Omit	64
25246	3-21-13	Omit	64
25247	3-21-13	Omit	64
25248	3-21-13	Omit	64
25249	3-21-13	Omit	64
25250	3-21-13	Omit	64
25251	3-21-13	Omit	64
25252	3-21-13	Omit	64
25253	3-21-13	Omit	64
25254	3-21-13	Omit	64
25255	3-21-13	Omit	64
25256	3-21-13	Omit	64
25257	3-21-13	Omit	64
25258	3-21-13	Omit	64
25259	3-21-13	Omit	64
25260	3-21-13	Include	64
25261	3-21-13	Omit	64
25262	3-21-13	Omit	64
25263	3-21-13	Omit	64
25264	4-11-13	Omit	64
25265	4-11-13	Omit	64
25266	4-11-13	Omit	64
25267	4-11-13	Omit	64
25268	4-11-13	Omit	64
25269	4-11-13	Omit	64
25270	4-11-13	Omit	64
25271	4-11-13	Omit	64
25274	4-11-13	Omit	64
25275	4-11-13	Omit	64
25276	4-11-13	Omit	64
25277	4-11-13	Omit	64
25278	4-11-13	Omit	64
25279	4-11-13	Omit	64
25280	4-11-13	Omit	64
25281	4-11-13	Omit	64
25282	4-11-13	Omit	64
25283	4-11-13	Omit	64
25284	4-11-13	Include	64
25285	4-11-13	Omit	64
25286	4-11-13	Omit	64
25289	4-11-13	Omit	64
25295	4-18-13	Include	64
25305	5- 2-13	Include	64

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
Supp. No. 65			
25057	11- 1-12	Omit	65
25058	11- 1-12	Omit	65
25059	11- 1-12	Omit	65
25065	11- 1-12	Omit	65
25072	11- 1-12	Omit	65
25197	2-21-13	Omit	65
25292	4-18-13	Omit	65
25293	4-18-13	Omit	65
25294	4-18-13	Omit	65
25296	5- 2-13	Omit	65
25297	5- 2-13	Omit	65
25298	5- 2-13	Omit	65
25299	5- 2-13	Omit	65
25300	5- 2-13	Omit	65
25301	5- 2-13	Omit	65
25302	5- 2-13	Omit	65
25303	5- 2-13	Omit	65
25304	5- 2-13	Omit	65
25307	5- 2-13	Omit	65
25312	5- 2-13	Omit	65
25313	5- 2-13	Omit	65
25314	5-16-13	Omit	65
25315	5-16-13	Omit	65
25316	5-16-13	Omit	65
25317	5-16-13	Omit	65
25318	5-16-13	Include	65
25319	5-16-13	Omit	65
25320	5-16-13	Omit	65
25321	5-16-13	Omit	65
25322	5-16-13	Omit	65
25323	5-16-13	Omit	65
25324	5-16-13	Omit	65
25325	5-16-13	Omit	65
25326	5-16-13	Omit	65
25327	5-16-13	Omit	65
25328	6- 6-13	Include	65
25329	6- 6-13	Omit	65
25330	6- 6-13	Omit	65
25339	6- 6-13	Omit	65
25340	6- 6-13	Omit	65
25341	6- 6-13	Omit	65
25342	6- 6-13	Omit	65
25343	6- 6-13	Omit	65
25344	6- 6-13	Omit	65
25345	6- 6-13	Omit	65

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25346	6- 6-13	Omit	65
25348	6- 6-13	Omit	65
25349	6- 6-13	Omit	65
25352	6- 6-13	Omit	65
25353	6- 6-13	Omit	65
25354	6- 6-13	Omit	65
25355	6- 6-13	Omit	65
25356	6-20-13	Include	65
25357	6-20-13	Include	65
25366	6-20-13	Include	65
25369	6-20-13	Include	65
25371	6-20-13	Include	65
25372	6-20-13	Include	65
25376	6-20-13	Include	65
25400	7-11-13	Include	65
25407	7-25-13	Include	65
25408	7-25-13	Include	65
25428	8- 8-13	Include	65
25429	8- 8-13	Include	65
25432	8- 8-13	Include	65
25454	8-22-13	Include	65
25455	8-22-13	Include	65
25469	9-12-13	Include	65
25485	9-12-13	Include	65
Supp. No. 66			
25522	10-10-13	Include	66
25552	10-24-13	Include	66
25582	11-21-13	Include	66
25583	11-21-13	Include	66
25599	11-21-13	Include	66
25615	11-21-13	Omit	66
25627	12- 5-13	Include	66
25651	1- 9-14	Include	66
Supp. No. 67			
25511	10-10-13	Omit	67
25512	10-10-13	Omit	67
25513	10-10-13	Omit	67
25517	10-10-13	Omit	67
25518	10-10-13	Omit	67
25519	10-10-13	Omit	67
25520	10-10-13	Omit	67
25521	10-10-13	Omit	67
25524	10-10-13	Omit	67
25527	10-10-13	Omit	67
25528	10-10-13	Omit	67
25529	10-10-13	Omit	67

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25530	10-10-13	Omit	67
25531	10-10-13	Omit	67
25532	10-10-13	Omit	67
25533	10-10-13	Omit	67
25534	10-10-13	Omit	67
25535	10-10-13	Omit	67
25536	10-10-13	Omit	67
25537	10-10-13	Omit	67
25538	10-10-13	Omit	67
25539	10-10-13	Omit	67
25540	10-10-13	Omit	67
25541	10-10-13	Omit	67
25542	10-10-13	Omit	67
25543	10-10-13	Omit	67
25544	10-10-13	Omit	67
25545	10-10-13	Omit	67
25546	10-10-13	Omit	67
25547	10-10-13	Omit	67
25548	10-10-13	Omit	67
25549	10-10-13	Omit	67
25550	10-10-13	Omit	67
(Amend. of)	10-19-13	Include	67
25557	10-24-13	Omit	67
25558	10-24-13	Omit	67
25559	10-24-13	Omit	67
25659	1-23-14	Include	67
25661	1-23-14	Include	67
25699	2-20-14	Include	67
25700	2-20-14	Include	67
25704	2-20-14	Include	67
25711	2-20-14	Include	67
25712	2-20-14	Include	67
25719	3-13-14	Include	67
25722	3-13-14	Include	67
25728	3-27-14	Include	67
25746	3-27-14	Include	67
25774	4-10-14	Include	67
25793	4-10-14	Include	67
Supp. No. 68			
25834	5- 8-14	Include	68
25851	5- 8-14	Include	68
25900	6- 5-14	Include	68

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
25919	6-19-14	Include	68
25920	6-19-14	Include	68
25921	6-19-14	Include	68
25940	7-10-14	Include	68
Supp. No. 69			
25965	8-14-14	Include	69
25988	8-14-14	Include	69
26000	8-21-14	Include	69
Supp. No. 70			
26003	9- 4-14	Include	70
26011	9- 4-14	Include	70
26025	9- 4-14	Include	70
26026	9- 4-14	Include	70
26027	9- 4-14	Include	70
26035	9- 4-14	Include	70
26036	9- 4-14	Include	70
26037	9-18-14	Include	70
26038	9-18-14	Include	70
26070	10- 2-14	Include	70
26071	10- 2-14	Include	70
26074	10-16-14	Include	70
26094	10-16-14	Include	70
26118	11- 6-14	Include	70
26145	11-20-14	Include	70
26146	11-20-14	Include	70
26158	11-20-14	Include	70
Supp. No. 71			
26168	12- 4-14	Include	71
26201	1-22-15	Include	71
26257	2-26-15	Include	71
26262	2-26-15	Include	71
26263	2-26-15	Include	71
Supp. No. 72			
24834	4- 5-12	Include	72
(Amend. of)	11- 4-14	Include	72
26288	3-12-15	Include	72
26289	3-12-15	Include	72
26305	3-26-15	Include	72
26306	3-26-15	Include	72
26328	3-26-15	Include	72
26332	4- 9-15	Include	72
26333	4- 9-15	Include	72
26338	4- 9-15	Include	72
26339	4- 9-15	Include	72
26340	4- 9-15	Include	72
26341	4- 9-15	Include	72

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
26366	4- 9-15	Include	72
26367	4-23-15	Include	72
26376	4-23-15	Include	72
26379	4-23-15	Include	72
26392	5- 7-15	Include	72
26415	5-14-15	Include	72
26429	5-14-15	Include	72
Supp. No. 73			
24814	4- 5-12	Omit	73
24815	4- 5-12	Omit	73
24816	4- 5-12	Omit	73
24817	4- 5-12	Omit	73
24818	4- 5-12	Omit	73
24819	4- 5-12	Omit	73
24820	4- 5-12	Omit	73
24821	4- 5-12	Omit	73
24822	4- 5-12	Omit	73
24824	4- 5-12	Omit	73
24825	4- 5-12	Omit	73
24826	4- 5-12	Omit	73
24827	4- 5-12	Omit	73
24828	4- 5-12	Omit	73
24829	4- 5-12	Omit	73
24831	4- 5-12	Omit	73
24832	4- 5-12	Omit	73
24833	4- 5-12	Omit	73
24838	4- 5-12	Omit	73
26432	6- 4-15	Include	73
26435	6- 4-15	Include	73
26459	6-18-15	Include	73
26460	6-18-15	Include	73
26469	7- 9-15	Include	73
26476	7- 9-15	Include	73
26477	7- 9-15	Include	73
26494	7- 9-15	Include	73
26505	7- 9-15	Include	73
26513	7-23-15	Include	73
Supp. No. 74			
26521	8- 6-15	Include	74
26557	8- 6-15	Include	74
26583	9-17-15	Include	74
26584	9-17-15	Include	74
26587	9-17-15	Include	74
26589	9-17-15	Include	74
26590	9-17-15	Include	74
26591	9-17-15	Include	74

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
26595	10- 1-15	Include	74
26596	10- 1-15	Include	74
26599	10- 1-15	Include	74
26604	10- 1-15	Include	74
26607	10- 1-15	Include	74
26608	10- 1-15	Include	74
26642	10-15-15	Include	74
26644	10-15-15	Include	74
26646	11- 5-15	Include	74
26651	11- 5-15	Include	74
26658	11- 5-15	Include	74
26696	11-19-15	Include	74
Supp. No. 75			
26716	12- 1-15	Include	75
26724	12- 1-15	Include	75
26733	12- 1-15	Include	75
26738	12- 1-15	Include	75
26751	1- 7-16	Include	75
26785	2- 4-16	Include	75
26786	2- 4-16	Include	75
26807	2- 4-16	Include	75
26810	2-18-16	Include	75
Supp. No. 76			
26815	3-17-16	Include	76
26816	3-17-16	Include	76
26841	4- 7-16	Include	76
26854	4- 7-16	Include	76
26879	4-21-16	Include	76
26901	4-21-16	Include	76
26905	5- 5-16	Include	76
26906	5- 5-16	Include	76
Supp. No. 77			
14176	11- 8-90	Include	77
26928	5-19-16	Include	77
26933	6- 9-16	Include	77
26949	6- 9-16	Include	77
26962	6-23-16	Include	77
26972	7-14-16	Include	77
Supp. No. 78			
27049	9- 8-16	Include	78
27050	9- 8-16	Include	78
27051	9- 8-16	Include	78
27065	9- 8-16	Include	78
27133	10-20-16	Include	78
27148	11- 3-16	Include	78
27149	11- 3-16	Include	78

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
27150	11- 3-16	Include	78
27151	11- 3-16	Include	78
27173	11- 3-16	Include	78
27180	11- 3-16	Include	78
(Amend. of)	11- 8-16	Include	78
27189	11-17-16	Include	78
27204	12- 1-16	Include	78
27210	12- 1-16	Include	78
27211	12- 1-16	Include	78
Supp. No. 79			
27232	1-12-17	Include	79
27256	1-12-17	Include	79
27260	1-12-17	Include	79
27266	1-26-17	Include	79
27267	1-26-17	Omit	79
27269	1-12-17	Include	79
27270	1-26-17	Include	79
27292	2- 9-17	Include	79
Supp. No. 80			
27303	2-23-17	Include	80
27308	3-19-17	Include	80
27309	3-19-17	Include	80
27348	3-23-17	Include	80
27363	4-20-17	Include	80
27364	4-20-17	Include	80
27365	4-20-17	Include	80
27366	4-20-17	Include	80
27367	4-20-17	Include	80
27368	4-20-17	Include	80
27404	5- 4-17	Include	80
Supp. No. 81			
27414	6-15-17	Include	81
27415	6-15-17	Include	81
27426	6-15-17	Include	81
27429	6-15-17	Include	81
27441	6-15-17	Include	81
27442	6-15-17	Include	81
27443	6-15-17	Include	81
27445	6-15-17	Include	81
27465	7-27-17	Include	81
27485	8-10-17	Include	81
Supp. No. 82			
27501	8-24-17	Include	82
27526	9-14-17	Omit	82
27543	9-14-17	Include	82
27545	9-28-17	Include	82

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
27554	10-26-17	Include	82
27565	10-26-17	Include	82
27596	11-16-17	Include	82
27607	12- 1-17	Include	82
Supp. No. 83			
27621	12-14-17	Include	83
27623	12-14-17	Include	83
27625	12-14-17	Include	83
27630	12-14-17	Include	83
27638	1-11-18	Include	83
27643	1-11-18	Include	83
27644	1-11-18	Include	83
27652	1-11-18	Include	83
27654	1-11-18	Include	83
27666	2- 8-18	Include	83
27671	2- 8-18	Include	83
Supp. No. 84			
27700	3- 8-18	Include	84
27701	3- 8-18	Include	84
27702	3- 8-18	Include	84
27704	3- 8-18	Include	84
27715	4- 5-18	Include	84
27725	4- 5-18	Include	84
27727	4- 5-18	Include	84
27734	4-19-18	Include	84
27735	4-19-18	Include	84
27738	4-19-18	Include	84
27737	4-19-18	Include	84
27740	4-19-18	Include	84
27744	4-19-18	Include	84
27745	4-19-18	Include	84
27746	4-19-18	Include	84
27747	4-19-18	Include	84
27748	5- 3-18	Include	84
27757	5- 3-18	Include	84
27764	5- 3-18	Include	84
27766	5- 3-18	Include	84
27783	5-24-18	Include	84
(Amend. of)	6- 1-18	Include	84
27795	6- 7-18	Include	84
Supp. No. 85			
27799	6-21-18	Include	85
27816	7-26-18	Include	85
Supp. No. 86			
25747	3-27-14	Include	86
27849	9- 6-18	Include	86

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
27862	9- 6-18	Include	86
27872	9-20-18	Include	86
27878	9-20-18	Include	86
27881	10- 4-18	Include	86
27886	10- 4-18	Include	86
27887	10- 4-18	Include	86
27888	10- 4-18	Include	86
27889	10-18-18	Include	86
27896	10-18-18	Include	86
27900	10-18-18	Include	86
27901	10-18-18	Include	86
27922	11- 1-18	Include	86
27923	11- 1-18	Include	86
27924	11- 1-18	Include	86
27933	11-29-18	Include	86
Supp. No. 87			
27945	12-20-18	Include	87
27946	12-20-18	Include	87
27962	12-20-18	Include	87
27963	12-20-18	Include	87
27968	12-20-18	Include	87
(Amend. of)	1- 1-19	Include	87
27970	1-10-19	Include	87
27972	1-10-19	Include	87
27980	1-10-19	Include	87
27986	1-24-19	Include	87
27992	2- 7-19	Include	87
Supp. No. 88			
25794	4-24-14	Include	88
25795	4-24-14	Include	88
25813	4-24-14	Include	88
25816	4-24-14	Include	88
25818	4-24-14	Include	88
27999	3-14-19	Include	88
28032	3-14-19	Include	88
28046	3-28-19	Include	88
28047	3-28-19	Include	88
28053	4-11-19	Include	88
28074	4-25-19	Include	88
28081	5- 9-19	Include	88
28091	5-23-19	Include	88
28101	5-23-19	Include	88
Supp. No. 89			
28108	6- 6-19	Include	89
28120	6- 6-19	Include	89
28121	6- 6-19	Include	89

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
28127	6- 6-19	Include	89
28132	6-20-19	Include	89
28157	8- 8-19	Include	89
28180	9- 5-19	Include	89
28186	9- 5-19	Include	89
28187	9- 5-19	Include	89
Supp. No. 90			
28210	10- 3-19	Include	90
28213	10-17-19	Include	90
28214	10-17-19	Include	90
28215	10-17-19	Include	90
28217	10-17-19	Include	90
28235	11- 7-19	Include	90
28241	11-21-19	Include	90
28248	11-21-19	Include	90
Supp. No. 91			
28191	10- 3-19	Include	91
28296	1-16-20	Include	91
28302	1-30-20	Include	91
28303	1-30-20	Include	91
28304	1-30-20	Include	91
28312	2- 6-20	Include	91
Supp. No. 92			
27526	9-14-17	Include	92
28340	5- 7-20	Include	92
28342	5- 7-20	Include	92
28343	5- 7-20	Include	92
28353	5-21-20	Include	92
28372	6- 4-20	Include	92
Supp. No. 93			
28387	7- 2-20	Include	93
28421	7-16-20	Include	93
28422	8- 6-20	Include	93
28436	8- 6-20	Include	93
28452	8-20-20	Include	93
28453	8-20-20	Include	93
28458	8-20-20	Include	93
28459	8-20-20	Include	93
28460	8-20-20	Include	93
28462	8-20-20	Include	93
28464	8-20-20	Include	93
28465	8-20-20	Include	93
Supp. No. 94			
28490	9- 3-20	Include	94
28495	9-17-20	Include	94
28499	9-17-20	Include	94

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
28500	9-17-20	Include	94
28501	9-17-20	Include	94
28509	10- 1-20	Include	94
28517	10-15-20	Include	94
28519	10-15-20	Include	94
28520	10-15-20	Include	94
28541	11- 5-20	Include	94
28546	11-19-20	Include	94
28552	11-19-20	Include	94
28555	12- 3-20	Include	94
Supp. No. 95			
28158	8- 8-19	Include	95
(Amend. of)	1- 1-20	Include	95
28558	12-17-20	Include	95
28559	12-17-20	Include	95
28568	12-17-20	Include	95
28571	12-17-20	Include	95
28587	1-28-21	Include	95
28617	3-11-21	Include	95
28623	3-11-21	Include	95
28624	3-11-21	Include	95
28626	3-11-21	Include	95
Supp. No. 96			
28150	7-25-19	Include	96
28518	10-15-20	Include	96
28631	3-25-21	Include	96
28640	3-25-21	Include	96
28671	5- 6-21	Include	96
28678	5-20-21	Include	96
Supp. No. 97			
28701	6-17-21	Include	97
28718	7- 1-21	Include	97
28743	8- 5-21	Include	97
28744	8- 5-21	Include	97
28745	8- 5-21	Include	97
28755	8- 5-21	Include	97
28762	8- 5-21	Include	97
Supp. No. 98			
28789	9-23-21	Include	98
28793	10- 7-21	Include	98
28794	10- 7-21	Include	98
28795	10- 7-21	Include	98
28796	10- 7-21	Include	98
28801	10-21-21	Include	98
28825	11- 4-21	Include	98
28841	11- 4-21	Include	98

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
28842	11- 4-21	Include	98
28844	11- 4-21	Include	98
Supp. No. 99			
28777	8-19-21	Include	99
28864	12- 1-21	Include	99
28881	12-16-21	Include	99
28882	12-16-21	Include	99
28883	12-16-21	Include	99
28884	12-16-21	Include	99
28885	12-16-21	Include	99
28886	12-16-21	Include	99
28912	1- 6-22	Include	99
28913	1- 6-22	Include	99
28930	1-20-22	Include	99
28948	2-17-22	Include	99
Supp. No. 100			
28953	3-10-22	Include	100
28972	3-24-22	Include	100
28986	4- 7-22	Include	100
29002	4-21-22	Include	100
29009	4-21-22	Include	100
29010	4-21-22	Include	100
29018	5- 5-22	Include	100
29019	5- 5-22	Include	100
Supp. No. 101			
29059	6- 9-22	Include	101
29062	6-23-22	Include	101
29064	6-23-22	Include	101
29085	7- 7-22	Include	101
29087	7- 7-22	Include	101
29089	7- 7-22	Include	101
29090	7- 7-22	Include	101
29116	7-21-22	Include	101
29117	7-21-22	Include	101
29126	8- 4-22	Omit	101
29127	8- 4-22	Include	101
29130	8- 4-22	Include	101
29132	8- 4-22	Include	101
Supp. No. 102			
28530	10-15-20	Include	102
29153	9- 1-22	Include	102
29154	9- 1-22	Include	102
29169	10- 6-22	Include	102
29176	10- 6-22	Include	102
29179	10- 6-22	Include	102
29186	10- 6-22	Include	102

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
29188	10- 6-22	Include	102
29189	10- 6-22	Include	102
29190	10- 6-22	Include	102
29236	10-20-22	Include	102
29238	11- 3-22	Include	102
29241	11- 3-22	Include	102
29242	11- 3-22	Include	102
29245	11- 3-22	Include	102
29246	11- 3-22	Include	102
29247	11- 3-22	Include	102
29248	11- 3-22	Include	102
29257	11-17-22	Include	102
29258	11-17-22	Include	102
29262	11-17-22	Include	102
Supp. No. 103			
28999	11- 8-22	Include	103
29267	12- 1-22	Include	103
29275	12- 1-22	Include	103
29278	12-15-22	Include	103
29281	12-15-22	Include	103
29282	12-15-22	Include	103
29283	1- 5-23	Include	103
29309	1-19-23	Include	103
29313	1-19-23	Include	103
29314	2- 2-23	Include	103
29315	2- 2-23	Include	103
29322	2- 2-23	Include	103
29323	2- 2-23	Include	103
29345	2-16-23	Include	103
29356	2-16-23	Include	103
Supp. No. 104			
29239	11- 3-22	Include	104
29357	3- 9-23	Include	104
29358	3- 9-23	Include	104
29363	3- 9-23	Include	104
29369	3- 9-23	Include	104
29381	3-23-23	Include	104
29382	3-23-23	Omit	104
29383	3-23-23	Include	104
29391	4- 6-23	Include	104
29397	4- 6-23	Include	104
29411	4-20-23	Include	104
29413	4-20-23	Include	104
29414	4-20-23	Include	104
29418	4-20-23	Include	104
29426	5-11-23	Include	104

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
29440	5-11-23	Include	104
29462	5-11-23	Include	104
29475	5-25-23	Include	104
29476	5-25-23	Include	104
29478	5-25-23	Include	104
Supp. No. 105			
29483	6- 8-23	Include	105
29494	6-22-23	Include	105
29497	6-22-23	Include	105
29499	6-22-23	Include	105
29501	7-13-23	Include	105
29567	7-27-23	Include	105
29568	7-27-23	Include	105
29572	7-27-23	Include	105
29584	8-10-23	Include	105
29585	8-10-23	Include	105
29590	8-10-23	Include	105
Supp. No. 106			
29370	3- 9-23	Include	106
29371	3- 9-23	Include	106
29633	9- 7-23	Include	106
29637	9- 7-23	Include	106
29639	9- 7-23	Include	106
29643	9- 7-23	Include	106
29654	9-21-23	Include	106
29656	10- 5-23	Include	106
29687	10-19-23	Include	106
29714	11- 2-23	Include	106
29726	11-16-23	Include	106
Supp. No. 107			
29740	12- 4-23	Include	107
29754	12- 1-23	Include	107
29755	12- 1-23	Include	107
29758	12- 1-23	Include	107
29759	12- 1-23	Include	107
29764	12-14-23	Include	107
29765	12-14-23	Include	107
29777	1- 4-24	Include	107
29783	1-18-24	Include	107
29784	1-18-24	Include	107
29785	1-18-24	Include	107
29792	1-18-24	Include	107
29804	2- 1-24	Include	107
29805	2- 1-24	Include	107
29812	2-22-24	Include	107

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
Supp. No. 108			
29820	3- 7-24	Include	108
29825	3- 7-24	Include	108
29852	3-21-24	Omit	108
29862	3-21-24	Include	108
29865	3-21-24	Include	108
29866	3-21-24	Include	108
29867	3-21-24	Include	108
29868	3-21-24	Include	108
29874	3-21-24	Include	108
29875	3-21-24	Include	108
29878	3-21-24	Include	108
29891	4-18-24	Include	108
29899	5- 2-24	Include	108
29908	5- 2-24	Include	108
29924	5- 2-24	Include	108
29938	5-16-24	Include	108
Supp. No. 109			
29063	6-23-22	Include	109
29940	6- 6-24	Include	109
29972	7-11-24	Include	109
29980	7-11-24	Include	109
29981	7-11-24	Include	109
30010	8- 8-24	Include	109
30012	8- 8-24	Include	109
30017	8- 8-24	Include	109
30031	8-22-24	Include	109
30032	8-22-24	Include	109
Supp. No. 110			
29676	10- 5-23	Include	110
29821	3- 7-24	Include	110
29828	3- 7-24	Include	110
29864	3-21-24	Include	110
29884	4- 4-24	Include	110
29990	7-25-24	Include	110
29992	7-25-24	Include	110
30002	7-25-24	Include	110
30003	7-25-24	Include	110
30004	7-25-24	Include	110
30050	9- 5-24	Include	110
30058	9-19-24	Include	110
30067	9-19-24	Include	110
30068	9-19-24	Include	110
30071	9-19-24	Include	110
30072	9-19-24	Include	110
30074	10-10-24	Include	110

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
30078	10-10-24	Include	110
30100	10-10-24	Include	110
30104	10-24-24	Include	110
30114	10-24-24	Include	110
30127	11- 7-24	Include	110
30146	11-21-24	Include	110
30147	11-21-24	Include	110
30151	11-21-24	Include	110
30154	11-21-24	Include	110
30159	11-21-24	Include	110
30162	12- 5-24	Include	110
30192	12-19-24	Include	110
30194	12-19-24	Include	110
Supp. No. 111			
30206	1- 9-25	Include	111
30213	1- 9-25	Include	111
30222	1-30-25	Include	111
30233	2-13-25	Omit	111
30235	2-27-25	Include	111
Supp. No. 112			
30241	3-13-25	Include	112
30244	3-13-25	Include	112
30247	3-13-25	Include	112
30248	3-13-25	Include	112
30250	3-13-25	Include	112
30252	3-27-25	Include	112
30253	3-27-25	Include	112
30254	3-27-25	Include	112
30255	3-27-25	Include	112
30265	3-27-25	Include	112
30291	4-10-25	Include	112
30299	4-10-25	Include	112
30300	4-10-25	Include	112
30304	4-10-25	Include	112
30319	4-24-25	Include	112
30320	4-24-25	Include	112
30322	4-24-25	Include	112
30330	4-24-25	Include	112
30339	4-24-25	Include	112
30346	5- 8-25	Include	112
30348	5- 8-25	Include	112
Supp. No. 113			
30356	6-12-25	Include	113
30367	6-12-25	Include	113
30370	6-12-25	Omit	113
30376	6-26-25	Include	113

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
30377	6-26-25	Include	113
30381	6-26-25	Include	113
30389	7-10-25	Include	113
30396	7-10-25	Include	113
30405	7-24-25	Include	113
30408	7-24-25	Include	113
30423	8-21-25	Include	113
30431	8-21-25	Include	113
Supp. No. 114			
30448	9-11-25	Include	114
30449	9-11-25	Include	114
30450	9-11-25	Include	114
30451	9-11-25	Include	114
30471	9-25-25	Include	114
30476	10- 9-25	Include	114
30481	10- 9-25	Include	114
30483	10- 9-25	Include	114
30501	10-23-25	Include	114
30508	11- 6-25	Include	114
30514	11- 6-25	Include	114
30522	11- 6-25	Include	114
30523	11-13-25	Include	114
Supp. No. 115			
30397	7-10-25	Include	115
30410	7-24-25	Include	115
30535	12- 1-25	Include	115
30544	12-18-25	Include	115
30545	12-18-25	Include	115
30564	3-12-26	Include	115
30596	3-26-26	Include	115
Supp. No. 116			
30643	4-23-26	Include	116
30645	4-23-26	Include	116
30650	5- 7-26	Include	116
30651	5- 7-26	Include	116
30653	5- 7-26	Include	116
Supp. No. 117			
30676	6-24-26	Include	117
30680	6-24-26	Include	117
30681	6-24-26	Include	117
30698	7- 9-26	Include	117
30701	7- 9-26	Include	117
30708	7-23-26	Include	117
30714	7-23-26	Include	117

M.C.S., Ord. No.	Date Adopted	Include/ Omit	Supp. No.
30715	7-23-26	Omit	117
30724	8- 6-26	Include	117
30726	8- 6-26	Include	117

HOME RULE CHARTER

OF THE

CITY OF NEW ORLEANS

EFFECTIVE MAY 1, 1954

(AS AMENDED THROUGH NOVEMBER 15, 2025)

CITY OF NEW ORLEANS

LaToya Cantrell
Mayor

THE COUNCIL OF THE CITY OF NEW ORLEANS

Helena Moreno
Councilmember-at-Large
Division 1

Jean-Paul "JP" Morrell
Councilmember-at-Large
Division 2

Joseph "Joe" Giarrusso III
Councilmember District "A"

Lesli D. Harris
Councilmember District "B"

Freddie King III
Councilmember District "C"

Eugene J. Green, Jr.
Councilmember District "D"

Oliver M. Thomas, Jr.
Councilmember District "E"

MEMBERS OF THE CHARTER COMMITTEE OF THE CITY OF NEW ORLEANS (1951)

Harry McCall, *Chairman*

Lester J. Lautenschlaeger, *Vice-Chairman*

Moise W. Dennery, *Secretary*

Denis A. Barry, *Treasurer*

Robert A. Ainsworth, Jr.
Clifton L. Ganus
A. P. Harvey
Eugene A. Nabors
Ralph P. Nolan
Mrs. Martha G. Robinson
Robert W. Starnes
Edgar B. Stern, Sr.

CHARTER REVISION ADVISORY COMMITTEE (1994)

David A. Marcello, *Chair*

Charlotte G. Bordenave, *Vice-Chair*

Philip M. Baptiste
Cora Basile
Jane Booth
Bill Bowers
Ellenese Brooks-Simms
Wilbert E. Brown, Sr.
Gilbert Buras
Dana Combes
Joseph DeRose
Henry A. Dillon, III
C. B. Forgotston, Jr.
Ronald J. French
Antoine Garibaldi
Moses Gordon, II
Harold Green
Gary Groesch
Bobby M. Harges
Gladstone Jones, III
Henry P. Julien, Jr.
Diana Lewis
Lee Madere
Carla Major
Ronald Mason, Jr.
Louis F. Miron
Geneva Morris
Joel Myers
T. F. Rinard
Dolores O. Robertson
Elsie Rose
Marty Rowland
Deborah Rhea Slattery
Fritz Wagner
Christian Washington
Charles D. Williams
Betty Wisdom
Warren G. Woodfork, Sr.

PART I

HOME RULE CHARTER*

Article I. Incorporation and Form of Government

Section 1-101. Incorporation.
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*__Editor's note—__Printed herein is the Home Rule Charter of the City of New Orleans, effective May 1, 1954, as amended through January 1, 2020. Subsequent amendments to the Charter, as amended through January 1, 2020, are indicated by parenthetical history notes following the amended provisions. The absence of a history note indicates that the provision remains unchanged from the Charter as amended through January 1, 2020. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citations to state statutes has been used. Additions made for clarity are indicated by brackets.

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PREAMBLE

We, the people of the City of New Orleans and Parish of Orleans, trusting in God and grateful for the freedoms we enjoy, do ordain, establish, approve, and adopt this Home Rule Charter through which the City of New Orleans intends to possess and exercise the broadest rights, powers, privileges and authority of self-government permitted under the Constitution and Laws of the State, pursuant to Section 22 of Article XIV of the Constitution of the State of Louisiana of 1921, as amended by Act 551 of 1950 and as continued by all appropriate Sections of the Constitution of the State of Louisiana of 1974, particularly but not exclusively Sections 4 and 6 of Article VI.

ARTICLE I. INCORPORATION AND FORM OF GOVERNMENT

Section 1-101. Incorporation.

The inhabitants of the City of New Orleans, within the boundaries now established by law or as may hereafter be established, shall be and continue a body politic and corporate by the name of "City of New Orleans," hereinafter in this Charter called "City." By that name it shall have perpetual succession and enjoy all of the powers hereinafter recited.

Section 1-102. Form of Government.

The government provided by this Charter shall be known as the Mayor-Council form of government. The Mayor shall be aided by a Chief Administrative Officer who, in the performance of the duties of office, shall be responsible to the Mayor.

Section 1-103. Boundaries of the City.

The boundaries of the City shall be as follows: Commencing at a point in the middle of the Mississippi River on the projected division line between the Parish of Orleans and the Parish of Jefferson, in the vicinity of Carrollton, and thence along the said projected line to the left bank of said river, and thence along the division line between the Parish of Orleans and the Parish of Jefferson to the south shore of Lake Pontchartrain, and thence to a point in the middle of Lake Pontchartrain on the projected said Parish division line, and thence along the middle of Lake Pontchartrain to the middle of the Rigolets, and thence along the middle of the Rigolets to Lake Borgne, and thence along the main shore of Lake Borgne, including all islands within one marine league distance thereof, to the middle of Fisherman's Canal, and thence along the middle of Fisherman's Canal to the line of the south side of Florida Walk, and thence along the said line of Florida Walk to the lower line of the United States Barracks, and thence along the said line of the United States Barracks to the left bank of the Mississippi River, and thence to a point in the middle of the Mississippi River on the projected line of the said United States Barracks, and thence along the middle of the Mississippi River to the point of commencement; and commencing at a point in the middle of the Mississippi River, abreast of a point on the right bank of the said river established by the Board of State Engineers, opposite Ptolemy Street, and thence to said point, and thence running as follows, viz: South, 42 deg. 30 min.; east, 4 miles and about 1,080 feet and south, 3 deg. 10 min.; west about 620 feet. Thence along the back line of properties south, 57 deg. east 2,143 feet 4½ in.; north 2 deg. 45 min.; east 1,910 feet 7 in.; south 53 deg. 30 min.; east 5,162 feet 2 in.; north 6 deg. 15 min.; east 4,932 feet 7 in. to township line, 1 mile, 138 feet 9 3/4 in.; south 76 deg. east 3,111 feet 4½ in. to township line, 445 feet 10 in.; south 72 deg. east 947 feet 9½ in.; south 65 deg. 30 min.; east 955 feet to range line 1,337 feet 8 in.; south 83 1/3 deg. east 860 feet 6 in.; north 61 deg. 7 min.; east 524 feet 7 in. to range line, 1,366 feet 6 in.; south 81 deg. 15 min.; east 2,368 feet 6 in. to range line 4,383 feet 2 in.; south 61 deg. 53 min.; east 1½ miles and about 2,770 feet 2 in. south 31 deg. 35 min.; east 1½ miles and 2,163 feet to line of Jeanne La Salles, and thence to a point in the middle of the Mississippi River on a projection of the said line, and thence along the middle of the Mississippi River to the point of commencement, and any additional area hereafter included in the Parish of Orleans, and legally incorporated by ordinance of the Council into the City of New Orleans.

ARTICLE II. POWERS

CHAPTER 1. POWERS

Section 2-101. Powers.

(1) The City shall retain, to the same extent as if herein repeated, all rights, powers, privileges and authority that it has or could claim under the law of this State at the time of the adoption hereof, except as herein expressly modified.

(2) In addition to the foregoing, the City shall have all rights, powers, privileges and authority herein conferred or herein enlarged and all rights, powers, privileges and authority whether expressed or implied that may hereafter be granted to a similar corporation by any general law of the State or that may be necessary or useful to enjoy a home rule charter.

(3) The rights, powers, privileges and authority heretofore enjoyed, herein retained or herein claimed shall subsist, notwithstanding the repeal of any law, until any such right, power, privilege or authority be altered or taken away by amendment to this Charter in the manner provided for by the Constitution or as herein provided.

(4) The City, in addition to the rights, powers, privileges and authority expressly conferred upon it by this Charter, shall have the right, power, privilege and authority to adopt and enforce local police, sanitary and similar regulations and to do and perform all of the acts pertaining to its local affairs, property and government which are necessary or proper in the legitimate exercise of its corporate powers and municipal functions.

(5) No enumeration of any right, power, privilege or authority hereinafter made and no repeal of any law under which the City derives any right, power, privilege or authority shall be construed as limiting or abolishing any right, power, privilege or authority hereinabove set forth.

(6) The rights, powers, privileges and authority of the City of New Orleans under this Charter shall be construed liberally in order to establish the broadest measure of local self-government in any and all matters not prohibited or reserved to the state by the Louisiana Constitution.

CHAPTER 2. BILL OF RIGHTS

Section 2-201. Preamble to the Bill of Rights.

This Bill of Rights is aspirational in nature. It incorporates guiding principles from the United Sates Constitution as well as the Louisiana Constitution. It reflects the beliefs, convictions and goals of the citizens of New Orleans.

Section 2-202. Bill of Rights.

(1) All persons are born free and equal in dignity and rights. They are endowed with reason and conscience and should act toward one another with respect.

(2) All government, of right, originates with the people, is founded on their will along, and is instituted to protect the rights of the individual and to provide for the general welfare of the people.

(3) The people have the right to a government responsive to their will and the right to take part in the government of the City, either directly or through freely chosen representatives.

(4) The people have the right to lawful and peaceful assembly, to petition the government for redress of grievance, and to equal access to public services.

(5) The people have the right to life, liberty, and security of person, the right to live free from fear or violence, and the right to safe neighborhoods conducive to the enjoyment of liberty.

(6) No law shall deprive any person of any rights, privileges, or immunities secured by the Constitution and laws of the United States or the State of Louisiana, nor shall any law discriminate against any person because of race, color, religion, or national origin. No law shall arbitrarily and capriciously or unreasonably discriminate against a person because of birth, disability, sex, sexual orientation, gender identification, culture, language social origin, or political affiliations.

(7) The people have the right to freedom of opinion and expression. No law shall restrain freedom of speech or freedom of the press.

(8) The people have the right to freedom of thought, conscience, and religion. No law shall be enacted respecting an establishment of religion.

(9) The people have the right to a government of the highest ethical standards, free from corruption, untainted by graft, and conducted in accordance with sound fiscal planning and administration.

(10) The natural resources of the City and the healthful, scenic, historic, and aesthetic quality of the municipal environment shall be protected, conserved, and replenished insofar as possible consistent with the health, safety, and welfare of the people.

(11) The people have the right to live in economic prosperity and to receive fair living wages for their labor, equal pay, comprehensive healthcare coverage and paid leave for the purposes of medical, family, bereavement, and vacation time.

(12) The people have the right to a safe workplace which complies with all Federal, state, and local workplace laws and regulations including wage and hour laws, as well as the right to organize and to associate freely in pursuit of workplace and economic justice.

(13) This Bill of Rights shall not create any enforceable rights, duties, obligations or causes of action under this Charter beyond those guaranteed by the Constitution of the United States or the Constitution of the State of Louisiana.
(M.C.S., Ord. No. 29828, § 4, 3-7-24, eff. 1-1-25)

ARTICLE III. THE COUNCIL

Section 3-101. Legislative Powers.

(1) All legislative powers of the City shall be vested in the Council and exercised by it in the manner and subject to the limitations hereinafter set forth.

(2) The Council shall have the right to levy any and all classes of taxes, excises, licenses, liens and fees necessary for the proper operation and maintenance of the municipality for the payment of debt, and for capital improvements that are not expressly prohibited by the Constitution provided that no specific tax or service charge affecting real property or motor vehicles shall be levied unless approved by a majority of the qualified electors voting thereon in an election held for that purpose. A specific tax or service charge affecting real property or motor vehicles is one which is imposed as a fixed sum on each article of a class without regard to its value provided, however, that the term "service charge affecting real property or motor vehicles" shall not be construed or interpreted to include or mean any charge, (including but not limited to a sanitation charge), fee, license, permit or rate imposed or levied pursuant to the regulatory authority of the City of New Orleans in the operation of the City, its departments, boards, agencies and commissions (whether attached or unattached) including, but not limited to, the Sewerage and Water Board.

Section 3-102. Number and Terms of Councilmembers.

The Council shall consist of seven members, of whom five shall be elected from districts, one from the City at-Large as Councilmember-at-Large, Division "1" and one from the City at-Large as Councilmember-at-Large, Division "2", each to be voted on as separate offices. The terms of councilmembers shall be four years beginning the second Monday in January next following their election except that a councilmember elected to fill a vacancy shall serve only for the remainder of the unexpired term.

The two Councilmember-at-large offices shall not be considered to be new or different offices for purposes of Section 3-105(3) herein.

Section 3-103. Council Districts.

(1) The City shall be divided into five Council Districts. Each District shall serve as the basis for electing a district councilmember. The five Districts shall be those existing on January

1,1995, except as thereafter changed in accordance with the provisions of this Charter. The Council shall maintain maps and written descriptions of the Council districts for public review and inspection and shall make copies available, through sale or otherwise, to the public.

(2) It shall be the mandatory duty of the Council to redistrict the City by ordinance, which shall not be subject to veto by the Mayor, within six months after the official publication by the United States of the population of the City by precinct as enumerated in each decennial census. Each council district shall contain as nearly as possible the population factor obtained by dividing by five the City's population as shown by the decennial census. At the expiration of the six month period, if the Council shall have failed to redistrict the City as herein required, the responsibility for redistricting shall pass to a Redistricting Commission, consisting of the presidents or chancellors or a person designated by the president or chancellor of Dillard University, Loyola University, Southern University of New Orleans, Tulane University, the University of New Orleans and Xavier University and a designee selected by each member of the Council. Each member of the Redistricting Commission shall be an elector of and domiciled in the City of New Orleans. The City Attorney shall notify the university presidents or chancellors and the members of the Council of the need for activation of the Redistricting Commission and shall request that they make appointments to the Commission within ten days. The City Attorney shall convene the first meeting of the Commission no sooner than fourteen nor later than twenty-one days following the delivery of notice to the university presidents or chancellors and the members of the Council. A majority of the members initially appointed shall constitute a quorum for purposes of the first meeting of the Commission, at which the members there assembled shall proceed forthwith to make, by majority vote, any appointments not theretofore designated by the appointing authorities. Thereafter, a quorum shall consist of a majority of all thirteen members of the Commission. No later than forty days following the City Attorney's notice to the university presidents or chancellors and the members of the Council, the Redistricting Commission shall, by majority vote, adopt a redistricting plan. The plan shall immediately be delivered to the Clerk of Council and shall become legally effective upon its receipt by the Council Clerk. Following the expiration of the six month period, the members of the Council shall not receive any further salaries until the Redistricting Commission shall have delivered such redistricting plan to the Clerk of Council, and the Director of Finance shall not issue checks for such salaries for said periods.

Section 3-104. Qualifications of Councilmembers.

(1) A councilmember shall be a citizen of the United States and a qualified elector of and domiciled in the City and shall not hold any other public office or position, except that the councilmember may hold the office of Notary Public, office in the military or naval forces or a position as a public school, public college, or public university administrator, teacher, instructor, or professor. Candidates for councilmember-at-large shall have been domiciled in the City for two years immediately preceding their election. Except as provided in paragraph (2) of this Section, candidates for district councilmember shall have been domiciled in the districts from which elected for at least two years immediately preceding their election. Any councilmember who ceases to be domiciled in the district from which elected shall thereby vacate the office.

(2) At the next regular election for members of the Council following Council redistricting, an elector may qualify as a candidate from any district created in whole or in part from a district existing prior to redistricting, if the elector was domiciled in that prior district for at least two years immediately preceding qualification. The seat of any member who changes domicile from the district represented or, if elected after redistricting, whose domicile is not within the district represented within one year after taking office shall be vacated thereby, any declaration of retention of domicile to the contrary notwithstanding.

Section 3-105. Election of Councilmembers.

(1) At an election to be held every four years at the time of the election of the Mayor in accordance with the election laws of the state, one councilmember shall be elected from each council district and two from the City at large. Each elector may vote for one district councilmember from that elector's district, and may also vote for two councilmember-at-large.

(2) A vacancy in the office of any councilmember shall be filled as follows:

(a) If the unexpired term is less than one year, the remaining members of the Council shall select by a majority vote of all of its members a citizen with the requisite qualifications to fill the vacancy for the unexpired term. Vacancies shall

be filled only at a regular meeting of the Council after reasonable notice of the vacancy to all remaining members of the Council. Should the Council fail to fill any vacancy within thirty days after its occurrence, the Mayor shall appoint a citizen with the requisite qualifications to fill the vacancy for the unexpired term. A citizen selected or appointed to fill such vacancy shall be ineligible to qualify as a candidate for that office at the next election.

(b) (i) If the unexpired term is for one year or more, the vacancy shall be filled by special election, to be called by the Council within ten days after its occurrence and to be held in accordance with the election laws of the State, at which time the electors of the City, or should the vacant office be that of a district councilmember, the electors of that district, shall elect a citizen with the requisite qualifications to fill the vacancy for the remainder of term; provided that if any special or general election is to be held in the City after sixty days and within six months after occurrence of the vacancy, then the election shall be held in conjunction with such other election.

(ii) During the period between the time of vacancy and the filling of such vacancy by special election, the Council, by majority vote of its entire membership, shall select a citizen with the requisite qualifications to fill the vacancy. Should the Council fail to fill any vacancy within thirty days after its occurrence, the Mayor shall appoint a citizen with the requisite qualifications to fill the vacancy during the interim period. A citizen selected or appointed to fill the vacancy shall be ineligible to qualify as a candidate for that office at the next election called to fill the vacancy.

(3) A person who has served as a councilmember representing a Council district for more than one and one-half terms in two consecutive terms shall not be elected as a councilmember representing a Council district for the succeeding term. A person who has served as a councilmember-at-large for more than one and one-half terms in two consecutive terms shall not be elected as a councilmember-at-large for the succeeding term.

Section 3-106. Salaries and Removal of Councilmembers.

(1) The salary of each councilmember shall be as provided by ordinance, provided that each councilmember shall receive the same salary and that no increase of salary shall be effective during the term in which said increase is voted. No change in the salaries of councilmembers made during the last six months of any term shall be valid as to any councilmember elected for a succeeding term.

(2) Councilmembers shall be removed from office only in the following manner and for the following reasons:

(a) If a councilmember pleads guilty or nolo contendere to a federal or state felony charge, the Council shall, by majority vote of its entire membership, declare that the seat of the councilmember is vacant due to the disqualification of the incumbent for felonious behavior and shall forthwith proceed to fill the vacancy in accordance with the applicable provisions of Section 3-105 of this Charter. Should the Council fail to fill any vacancy within thirty days after its occurrence, the Mayor shall appoint a citizen with the requisite qualifications to fill the vacancy.

(b) (i) If a councilmember is convicted of a federal or state felony, that councilmember shall be automatically suspended from the seat without compensation. The suspension without compensation shall continue until the conviction is final and all appellate review of the original trial court proceedings is exhausted, at

which time the Council shall, by majority vote of its entire membership, declare that the seat of the councilmember is vacant due to the disqualification of the incumbent for felonious behavior and shall forthwith proceed to fill the vacancy in accordance with the applicable provisions of Section 3-105 of this Charter. Should the Council fail to fill any vacancy within thirty days after its occurrence, the Mayor shall appoint a citizen with the requisite qualifications to fill the vacancy. During the period of suspension, the councilmember shall not perform any official act, duty, or function nor shall the councilmember receive any compensation, pay, allowance, emolument, or privilege of the office. If the conviction is reversed on appeal, the councilmember shall be entitled to and shall receive full back pay from the date of suspension with legal interest on portions thereof, from the date that the Councilmember, but for the suspension, would have been paid that portion. Additionally, the Councilmember shall have restored all rights, duties, powers, allowances, emoluments, and privileges of office.

(ii) During this suspension, the Council shall, by a majority vote of its entire membership, declare that the seat of the councilmember is temporarily vacant due to suspension and shall forthwith proceed to fill the vacancy in accordance with the applicable provisions of Section 3-105(2)(a) of this Charter. Should the Council fail to fill any vacancy within thirty days after its occurrence, the Mayor shall appoint a citizen with the requisite qualifications to fill the vacancy. Any citizen appointed to fill a temporary vacancy under the terms of this section shall serve in the appointed capacity until the conviction of the councilmember is reversed on appeal or until expiration of the term of office of the suspended councilmember, whichever comes first.

(c) If a councilmember is recalled from office in accordance with applicable state or municipal law, the vacancy shall be filled forthwith in accordance with the applicable provisions of Section 3-105 of this Charter.

Section 3-107. Organization of the Council; Officers; Rules; Employees.

(1) The members of the Council shall take office on the same day as the Mayor in accordance with Section 4-201 of this Charter. The Council shall meet in the Council Chamber at the City Hall for organization at noon on the day its members take office, at which time it shall elect one at-large member as President and any one of its other members as Vice-President, both of whom shall serve at pleasure of the Council. It shall also elect a Clerk of Council who shall not be selected from its own membership. In the event of the President's absence or disability, the Vice-President shall act as President. All councilmembers, including the President, shall have the right to vote in the Council at all times, except when a councilmember-at-large is serving as Acting Mayor, in which case the councilmember-at-large may vote on such matters and for the limited purposes as provided in Section 4-204 of this Charter. Five members of the Council shall constitute a quorum.

(2) The Council shall adopt rules governing its officers and employees, the organization of committees, and the transaction of its business.

(3) The Council shall adopt such reasonable rules and regulations, which are used herein synonymously, affecting the public, including regulations relating to petitions or applications to be presented to it and the hearing and determination thereof, as are not inconsistent with applicable law and as are necessary to the performance of the functions assigned to it, provided that no such regulations shall become effective until they shall have been published in

the official journal at least one week prior to their adoption and shall have been subsequently adopted by the Council. The regulations shall also be published in the official journal after adoption by the Council. Such regulations shall be kept and indexed by the Clerk of Council, who shall make them available to members of the public upon request.

(4) Consistent with civil service law and regulations, the Council may employ such employees as may be necessary for the proper discharge of its functions and shall establish by ordinance a pay plan for all its employees who are in the unclassified service.

(5) The rules of the Council shall provide for regular meetings, which shall be held twice a month, provided that the Council may call additional regular meetings during the months of November and December by giving at least seventy-two hours advance public notice of an additional regular meeting. The Council's rules shall fix the time, date, and place of all regular meetings. Special meetings of the Council may be called by the Mayor or President of the Council and shall be called by the President upon petition of a majority of all members of the Council.

(6) Any person shall be entitled upon request in writing to the Clerk of Council and subject to such regulation as the Council may have prescribed, to a reasonable hearing on any proposed ordinance. The Council may in its discretion provide for such hearing by the entire Council or a Committee thereof.

(7) The Clerk of Council shall maintain a current and comprehensive index of all ordinances, resolutions, motions, rules, and regulations. Further, the Clerk of Council shall publish or cause to be published a current City Charter.

Section 3-108. Council Meetings to be Public.

The meetings of the Council and its committees shall be open to the public in accordance with applicable state and municipal law.

Section 3-109. Applicability of Certain General Provisions.

The Council and its employees shall be subject to the provisions of this Charter relative to the procurement of personal property, printing, engraving, and publication, contracting for public utility services, maintenance of equipment, disposal of personal property, payment for services and other expenses, distribution of printed matter and any applicable civil service law, rules and regulations.

Section 3-110. Mayor May Appear Before Council.

The Mayor shall have the right to attend any meeting of the Council or any of its committees and may express views on matters pending before the Council but shall have no right to introduce any motion, resolution, ordinance, or amendments thereof, nor to vote thereon.

Section 3-111. Legislation by Ordinance.

Every act of the Council which is to become law shall be by ordinance and shall begin with the words: "The Council of the City of New Orleans hereby ordains:". Repetition of the ordaining clause in succeeding portions of an ordinance shall not be required.

Section 3-112. Introduction, Consideration, and Passage of Ordinances.

(1) Proposed ordinances must be complete and in writing and may be introduced by any member at any meeting of the Council. Every ordinance shall embrace but one object except those approving the annual operating and capital budgets and codifications.

(2) After a proposed ordinance has been introduced, copies of it shall forthwith be prepared and distributed to each member of the Council and the Mayor and made available to the public.

(3) A proposed ordinance shall not be altered or amended during its consideration so as to nullify its original purpose or so as to accomplish an object not germane to its original purpose.

(4) A proposed ordinance shall lie over at least six calendar days beginning the day after its introduction before being finally considered by the Council.

(5) Proposed ordinances on any of the following specified subjects can be adopted only at a regular meeting of the Council and shall not be adopted until at least twenty calendar days have transpired beginning on the day after the date of introduction of the ordinance and not until a notice of the introduction of such proposed ordinance shall have been published in the official journal of the City not less than seven calendar days nor more than fourteen calendar days after the introduction thereof, which notice shall state the substance of the proposed ordinance and the date of the meeting at which the Council shall begin its consideration thereof:

(a) Levying or increasing the rate of any tax or excise.

(b) Imposing any license, requiring any permit, establishing any charge for services rendered, or increasing the rate of any license, fee, or utility charge.

(c) The adoption, amendment, or comprehensive revision of the Master Plan or the Comprehensive Zoning Ordinance, including without limitation text amendments, zoning or rezoning, or changing the zoning districts or classifications.

(d) Alienating any immovable property or granting any servitude, franchise, or privilege.

(6) The Clerk of Council shall distribute to all members of the Council and shall make available to the public copies of any proposed ordinance as soon as possible, but no later than two business days after introduction of the proposed ordinance.

(7) An amendment to a pending ordinance shall not require an additional period of days to lie over before it may be adopted by the Council, unless such amendment introduces new subject matter which is subject to the provisions of Section 3-112(5) as provided above.

(8) Each proposed ordinance shall be read by title when called for final passage.

(9) Votes at final passage shall be taken by ayes and nays and the names of the councilmembers voting for and against each proposed ordinance or amendment shall be entered upon the journal of proceedings to be kept of all transactions of the Council.

(10) No proposed ordinance shall be adopted except by the affirmative vote of a majority of all members of the Council.

(11) Should the Council by unanimous vote of a quorum declare the existence of an emergency due to act of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property, the Council by unanimous vote of a quorum may waive all of the requirements of this Section pertaining to procedure, except those relating to the number of votes required for passage and the recordation of the vote in the official journal.

Section 3-113. Submission of Ordinances to the Mayor.

(1) Every ordinance adopted by the Council shall be signed by its presiding officer and presented promptly by the Clerk to the Mayor.

(2) The Mayor, within ten calendar days of receipt of an ordinance, shall return it to the Clerk with or without his approval or with his disapproval. If the ordinance has been approved it shall become law upon its return to the Clerk; if the ordinance is neither approved nor disapproved it shall become law at twelve o'clock noon on the tenth calendar day after its adoption; if the ordinance is disapproved, the Mayor shall submit to the Council through the Clerk a written statement of the reasons for the veto. The Clerk shall record upon the ordinance the date of its delivery to and receipt from the Mayor.

(3) Ordinances vetoed by the Mayor shall be presented by the Clerk to the Council at its next regular meeting, and should the Council then or at its next regular meeting adopt the ordinance by an affirmative vote of two-thirds of all its members, it shall become law.

(4) The Mayor may disapprove or reduce any item or items of appropriation in any ordinance except any such item or items appropriated for the purpose of auditing or investigating any part or all of the Executive Branch. Subject only to the foregoing exceptions, the approved part or parts of any ordinance making an appropriation shall become law, and the part or parts disapproved shall not become law unless subsequently passed by the Council over the Mayor's veto as provided herein.

(5) All ordinances which have become law shall immediately be deposited in the official archives of the Clerk of Council. The Clerk shall note on the face of the ordinance the date and time it has become law, and the ordinance shall become effective at noon on the following day, provided that ordinances adopted to meet emergencies shall become effective at the time they become law. Except as otherwise provided in this Charter, the Clerk shall cause each ordinance which has become law to be published in full in the official journal.

Section 3-114. Codification of Ordinances.

(1) The Council shall cause to be maintained a code of ordinances, hereinafter referred to as the "code," containing all of the ordinances of the City of general application which are appropriate for continuation as law. The code may consist of parts which may be published, bound, and distributed separately. The code shall be maintained by the Clerk of Council, or the Council may execute a contract for its maintenance by professional persons or organizations experienced in the revision and codification of ordinances or statutes.

(2) The City Attorney shall direct the inclusion of ordinances in the code and shall direct the removal from the code of ordinances that have been declared unconstitutional or illegal by a court of competent jurisdiction in a final judgment or that are the subject of a permanent injunction. The City Attorney shall notify the Mayor and the Council of intended action pursuant to this paragraph, and such action shall become effective upon approval by a majority of the entire Council or, if no action is taken at the first or second regular meeting subsequent to its receipt of the notice of intended action, the City Attorney's action shall become effective on the Monday following the second regular Council meeting subsequent to receipt of the notice.

(3) The Council may adopt or amend any standard code of technical regulation by reference thereto in an adopting or amending ordinance. The procedures and requirements governing such an adopting or amending ordinance shall be those as prescribed for ordinances generally, except that the adopting ordinance shall be construed to include copies of the codes of technical regulations referenced in the adopting ordinance, as if fully reproduced therein. A copy of each adopted code of technical regulations and the adopting ordinance and any amendment thereto shall be deposited with the Clerk of Council in accordance with Section 3-113(5) of this Charter. The adopted codes of technical regulations may be published separately from other sections of the code, in which event said codes shall be collectively referred to as the codes of technical regulations.

(4) When the code, including the codes of technical regulations, or any general revision shall have been prepared, the Council shall cause copies of the same to be prepared and made available for public distribution and placed in the City Archives of the New Orleans Public Library. No ordinance approving such code or revision shall be adopted until ninety days have elapsed following the date on which the Council shall have noted in the official journal the availability of copies of such proposed code to the public, nor until compliance with all applicable state and municipal laws. The code and general revisions need not be printed in the official journal but the Council shall cause the code or revisions to be published, bound, and distributed as provided in this Section.

(5) All proposed ordinances of general application introduced after approval of the code shall be adopted as amendments to the code and shall indicate the section numbers to be assigned to the text of such ordinances in the code.

Section 3-115. Consideration and Adoption of the Annual Operating Budget Ordinance.

(1) The Council, upon receipt of the operating budget, shall immediately publish a notice in the official journal, setting forth:

(a) A summary of the official forecast of the Revenue Estimating Conference, a summary of the proposed budget of revenues, and a summary of the estimated expenditures.

(b) The detail of recommended new sources of revenue or increased rates for existing taxes, licenses, fees, or other revenues.

(c) The availability of copies of the budget at the office of the Clerk of Council.

(d) The date, time, and place at which the Council will commence its public hearings upon the proposed budget, which shall not begin sooner than the fifth business day after the date of the publication of such notice.

(2) The Council, upon conclusion of the public hearings but not later than the first day of December, shall adopt the operating budget ordinance in the form submitted by the Mayor and in accordance with Section 6-201(2)(b) of this charter, but it may increase, decrease, or delete any item of appropriation recommended by the Mayor. Upon concurrence of two-thirds of its members, it may add new items of appropriation or subdivide items of appropriation, provided, however, that all appropriations for personal services shall be made only in lump sum amounts and not by specific positions or rates of pay, except as otherwise provided by applicable law.

(3) Amendments to the annual operating budget ordinance shall be considered and approved by the Council under the same procedures prescribed for its original adoption, but no amendment shall increase the aggregate of authorized expenditures to an amount greater than the estimate of revenues for the year. No state law, executive order, rule, or regulation requiring increased expenditures for any purpose that requires approval of the City shall become effective until approved by an ordinance identifying the legislative appropriation, local revenue, or other specific source of funds from which such increased expenditures shall be paid and only after affording the Revenue Estimating Conference a period of seven days within which to review and comment on the proposed source of funds.

Section 3-116. Budget of Revenues.

(1) The Council, at the meeting at which the annual operating budget ordinance is adopted and within the limits of its power and subject to other provisions of this Charter, shall ordain such taxes and other revenue measures as will yield sufficient revenue which together with available surplus will balance said budget.

(2) The annual operating budget ordinance shall not become effective until the budget has been balanced. The Department of Finance shall not approve any expenditure under any portion of an annual operating budget ordinance until sufficient estimated revenues have been provided to finance the proposed expenditures.

(3) Revenues shall be estimated only upon the basis of generally accepted accounting principles as defined by the Governmental Accounting Standards Board, or any successor organization, for the fiscal year.

Section 3-117. The Capital Program and Capital Budget.

(1) The Council shall approve a capital program and adopt a capital budget before it ordains the annual operating budget.

(2) The Capital Program.

(a) The capital program shall detail all permanent physical improvements that are planned to be financed in whole or in part from funds that are or may become subject to control or appropriation by the Council during each of the ensuing five years. For each separate project there shall be shown the amount and the sources of the money that has been expended or encumbered, or is to be expended or encumbered before the next fiscal year,

and also the amount and the sources of the money planned to be expended during each of the ensuing five years.

(b) The Council may not amend the capital program as submitted to it, until it has requested and received through the Mayor the recommendations of the City Planning Commission with respect to the proposed amendment. The Council shall not be bound by such recommendations and may act without them if they are not received within fifteen days from the date they are requested.

(3) The Capital Budget Ordinance.

(a) The capital budget ordinance shall show in detail the capital expenditures to be made or incurred in accordance with the capital program during the next year. Amounts budgeted shall constitute appropriations from the funds indicated when available.

(b) Amendments to the capital budget ordinance must conform to the capital program, as amended.

Section 3-118. Adoption of Pay Plans.

All persons employed by the City or any of its boards, whether as officers or otherwise, and paid either in part or in whole from appropriations made by the Council, except those whose compensation is fixed in this Charter, shall be compensated only in accordance with pay plans adopted by the Council. The pay plan for those persons in the classified service shall be in accordance with the prevailing provisions of the civil service law and the rules and regulations adopted thereunder. Council employees who are in the unclassified service shall be compensated in accordance with the provisions of Section 3-107(4) of this Charter. The pay of all other persons shall be upon the basis of a pay plan recommended by the Mayor and adopted by ordinance.

Section 3-119. Creation of General Debt.

(1) The Council shall exercise all powers previously vested in the Commission Council in connection with the creation of debt by the Board of Liquidation, City Debt, on behalf of the City of New Orleans; provided, however, that except as expressly authorized elsewhere in this Charter, the Council shall not have authority to submit to the people any proposition creating any bonded indebtedness for the following purposes:

(a) The payment of any operating expense.

(b) The payment of any judgment resulting from the failure of the City to pay any item or items of operating expense,

(c) The payment for any equipment or any public improvement of a normal life of less than ten years.

The City shall have the authority, except as otherwise prohibited by this Charter, to incur any debt of a term longer than one year permitted under the Constitution and applicable state and municipal law with the approval of a majority of all members of the City Council.

(2) The foregoing limitations shall not apply should the Council unanimously declare the existence of an emergency due to act of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property.

Section 3-120. Creation of Special Assessment Debt.

The Council may authorize the issuance of certificates of indebtedness to finance assessable public improvements only to the extent provided in this Charter and in the manner provided by law.

Section 3-121. Anticipation of Revenues.

The Council may, subject to such limitations as may be contained in the Constitution, borrow in any calendar year in anticipation of the collection of the taxes of that year, and for any of the purposes for which such taxes are levied, such sums as shall not be in excess of seventy-five per cent of the amount of the uncollected taxes of such year.

Section 3-122. Official Journal.

(1) The Clerk of Council shall annually offer a contract for the publication of the official journal of the City to be awarded to the lowest competitive bidder meeting the specifications contained in the bid documents. The requirements for the official journal shall be established by ordinance.

(2) The ordinance establishing requirements shall also stipulate that the official journal will accept for publication, at not more than the same rates, the official publications of the various officers, departments and boards of the City.

(3) Unless prohibited by applicable and preemptive state law, the Council may provide by ordinance that any item required by this Charter to be published in the official journal may instead be published electronically or in a register. The Chief Administrative Officer shall be responsible for implementation of said ordinance. Any contract for such publication shall be subject to applicable public bid laws and competitive selection procedures.

Section 3-123. Publication of Ordinances and Official Acts.

(1) All ordinances and other official acts of the Council shall be published promptly after their adoption by one insertion in the official journal, except as otherwise provided by applicable state or municipal law or this Charter.

(2) The Council may provide for or require the publication in the official journal of all or any part of the proceedings, notices, and actions of officers, departments and boards of the City.

Section 3-124. Investigations.

(1) The Council shall have the power to conduct investigations of:

(a) The operation of any office, department or board administering the affairs of the City.

(b) Any subject upon which it may legislate.

(c) Any entity which receives funds from the City or which is funded in whole or in part by City taxes, fees, fines, bond proceeds, or other revenue generated by or under the authority of the City. Such investigation shall be limited to the use or expenditure of such funds.

(d) Any entity which was created or exists under the authority of the City.

(2) In conducting investigations, the Council shall have the right to administer oaths, subpoena witnesses and compel the production of books and papers pertinent thereto.

Section 3-125. Removal of Unclassified Appointees.

The Council may bring charges against any person appointed to the unclassified service for lack of qualifications, incompetence, neglect of duty, failure to comply with a lawful directive of the Civil Service Commission or gross misconduct in reference to that person's duties. The charges shall be presented in writing to the appointing authority and to the accused, and if the appointing authority does not remove the accused, the Council may order a public hearing thereon, at which the accused and the appointing authority shall have the right to be heard, to be represented by counsel, and to require the attendance of witnesses and the production of relevant books and papers. If, after hearing, the accused be found guilty as charged, the accused may be suspended or dismissed from the City service by the affirmative vote of a majority of the entire membership of the Council.

Section 3-126. Temporary Prohibitions.

(1) The Council may by the affirmative vote of a majority of its membership impose a moratorium ordinance, interim zoning district, or other temporary prohibition on zoning, permitting, and other similar functions where necessary to protect the public health, safety, or welfare for a temporary period. All such temporary prohibitions shall specify the type of review required and the city agency responsible for the review; the agency shall complete its review and provide its report to the Council within the time limits established for such temporary prohibitions. No moratorium ordinance, interim zoning district, or other temporary prohibition shall remain in effect for more than one year, provided that the

Council may by ordinance authorize one extension for an additional period of 180 days. In the event that the agency responsible for the required review has not completed its review and submitted its report within the initial period or the 180 day extension, the Council may by ordinance extend the temporary prohibition for one additional period of up to 180 days. Thereafter, no moratorium ordinance, interim zoning district, or similar prohibition of substantially the same legal effect on substantially the same geographic area may be imposed until at least one year after the expiration of the prior moratorium ordinance, interim zoning district, or other temporary prohibition. A moratorium ordinance adopted pursuant to this section shall not be required to lie over for the twenty-day period specified in Section 3-112(5) of this chapter.

(2) Any moratorium ordinance, interim zoning district, or other temporary prohibition in effect on January 1, 1996 shall be limited to a term of one year in duration from that date subject to extensions as provided in paragraph (1) above.

(3) Any moratorium ordinance, interim zoning district, or other temporary prohibition shall provide for a right of appeal to the Council for waivers or exceptions thereto. Such waivers or exceptions may be granted by an ordinance adopted by a majority of all members of the Council.

Section 3-127. Creation of Advisory Committees.

The Council may appoint advisory committees which shall exist for not more than one year from the date of appointment, but which may be reappointed from year to year. The members of advisory committees shall not be paid; their function shall be limited to counsel and advice, and their expenses, if any, shall be paid from appropriations to the Council. Advisory committees shall have no employees, but the Council may cause its employees to furnish such service as may be needed by said committees.

Section 3-128. Granting of Franchises.

(1) The Council shall have the power to grant franchises, privileges and permits, fixed or indeterminate, for the use of the streets and other public places for the furnishing of any service to the City or to its inhabitants subject to applicable state or municipal law. All franchises, privileges and permits and any renewals, extensions and amendments thereof, shall be granted only by ordinance. All such proposed ordinances shall be submitted to the Department of Utilities or its successor and it shall render to the Council a written report containing recommendations thereon.

(2) Each such proposed ordinance granting a franchise, privilege, or permit, after having been introduced in the Council, shall be laid over and published once in full in the official journal. There shall then be published in the official journal once during each calendar week for the two successive weeks immediately following said publication in full, notices of intention, briefly describing the content of the proposed ordinance and citing where it can be seen. If any time during such period of publication, any citizen shall file notice with the Clerk of Council of a desire to be heard with respect to the proposed ordinance, it shall be the duty of the Council, after notice thereof in the official journal, to hold a public hearing thereon. After publication or public hearing as the case may be, the Council may approve, disapprove or amend the proposed ordinance. Should the Council desire to amend such proposed ordinance, it shall, before final passage, request the recommendation of the Department of Utilities or its successor with respect to the proposed changes. The Council shall not be bound by such recommendation and may act without it if it is not received within fifteen days from the date it is requested.

(3) The City shall be reimbursed by the grantee for all costs of publishing the preliminary ordinance, notices of intention and public hearing, and final ordinance.

(4) Should a proposed ordinance granting a franchise, privilege, or permit affect any portion of the Master Plan of the City Planning Commission, the Council shall before final consideration and passage request a recommendation from the City Planning Commission with respect thereto.

Section 3-129. Terms.

(1) Franchises, privileges and permits shall specify their purpose and the streets or other public areas which they affect. No perpetual franchise shall be granted.

(2) The Council shall, when granting an indeterminate permit, and may in other instances, reserve to the City the right to purchase the property of the utility devoted to the service furnished.

(3) The Council may require adequate consideration for the privilege of using the streets or other public areas in the ordinance granting a franchise, privilege or permit.

(4) No assignment of any franchise, privilege or permit shall be valid without the approval of the Council.

Section 3-130. Establishment of Rates.

(1) The Council of the City of New Orleans shall have all powers of supervision, regulation, and control consistent with the maximum permissible exercise of the City's home rule authority and the Constitution of the State of Louisiana and shall be subject to all constitutional restrictions over any street railroad, electric, gas, heat, power, waterworks, and other public utility providing service within the City of New Orleans including, but not limited to the New Orleans Public Service, Inc. and the Louisiana Power and Light Company, their successors or assigns.

(2) In the exercise of its powers of supervision, regulation and control of any street railroad, electric, gas, heat, power, waterworks, or other public utility, the Council shall, in cases involving the establishment, change or alteration of rates, charges, tolls, prices, fares or compensation for service or commodities supplied by such utilities, cause notice of the matter to be served upon the person, firm or corporation affected thereby, so that such person, firm or corporation shall have an opportunity, at a time and place to be specified in said notice, to be heard in respect to said matter. The Council shall make all necessary and reasonable rules and regulations to govern applications for the fixing or changing of rates and charges of public utilities and all petitions and complaints relating to any matter pertaining to the regulation of public utilities, and shall prescribe reasonable rules and regulations to govern the trial, hearing and rehearing of all matters referred to herein, under the same procedure as provided for ordinances granting franchises.

(3) The City of New Orleans may institute or participate in any proceeding affecting the City Council's powers of supervision, regulation and control granted hereunder over public utilities or affecting in any way the interests of the ratepayers of the City of New Orleans, and any recovery or benefit derived from any such proceeding shall be allocated by the City Council as it deems fit and proper, pursuant to such reasonable rules and regulations as the Council may adopt.

(4) The City Council's powers of supervision, regulation and control over any street railroad, electric, gas, heat, power, waterworks, or other public utility shall include, inter alia, the power to allocate any funds, awards, recovery or any other benefit obtained by any public utility supervised, regulated or controlled under the provisions of this Chapter from any person, firm or corporation in connection with or in any way related to negotiations, judicial or administrative proceedings, directly or indirectly related to or in connection with any matter which is under the powers and authority herein granted to the City Council affecting the ratepayers in the City of New Orleans, and such allocations shall be made by ordinance or resolution, provided same shall be in accordance with the provisions hereof.

(5) The powers of supervision, regulation, and control over any street railroad, electric, gas, heat, power, waterworks, or other public utility, shall include the authority to assess against such public utilities all costs, fees, and expenses incurred by the City of New Orleans in (a) the exercise of its powers of supervision, regulation, and control thereof, (b) the conduct of or participation in judicial, administrative or other proceedings which directly or indirectly affect the ratepayers of the City of New Orleans, including but not limited to the costs, fees and expenses of all services provided by consultants, engineers, attorneys, experts and such other persons, firms

or corporations having expertise in the supervision, regulation or control of a public utility and (c) any costs, fees, and expenses otherwise related to such other matters over which the Council has jurisdiction.

(6) The orders of the Council fixing or establishing any rate, fare or charge for any commodity furnished, service rendered, or to be rendered, by any street railroad, electric, gas, heat, power, waterworks, or other public utility, or allocating any funds or other benefits, shall go into effect at such time as may be fixed by the Council and shall remain in effect and be complied with, unless and until changed, set aside or suspended by the Council or by a court of competent jurisdiction. Such order of the Council shall be upon a resolution or an ordinance in open council meeting and passed by an affirmative vote of a majority of all members of the Council.

(7) The orders of the Council shall be enforced by the imposition of such reasonable penalties as the Council may provide, and any party in interest may appeal from orders of the Council to the Civil District Court for the Parish of Orleans by filing suit against the Council within thirty (30) days from the date of the order of the Council, and not thereafter.

(8) The Council shall supervise, regulate, and control any street railroad, electric, gas, heat, power, waterworks, or other public utility, including but not limited to New Orleans Public Service, Inc. and Louisiana Power and Light Company, and their respective successors and assigns. The Council shall have the right and authority to obtain from the street railroad, electric, gas, heat, power, waterworks, or other public utility, supervised, regulated and controlled by it all information, papers, books, records, documents, and such other materials as shall be necessary and proper for the exercise of said powers, regulatory or otherwise and all costs, fees, and expenses in connection therewith shall be borne by the public utility required to furnish or produce same.

(9) No matter subject to the supervision, regulation and control of the Council, as provided herein, shall be affected, augmented, diminished, or modified in any manner or form except as provided herein or by subsequent order or action of the Council or by order or judgment of a court of competent jurisdiction.

Section 3-131. Special Permits.

(1) The Council may by ordinance provide for the issuance of revocable permits limited as to time and purpose for the use of the streets and other public places when the furnishing of a public service to the City or to its inhabitants is temporarily required.

(2) The Council may by ordinance provide for the issuance of certificates of public necessity and convenience and for the regulation and supervision of all passenger vehicles offered for hire on the streets and other places.

ARTICLE IV. EXECUTIVE BRANCH

CHAPTER 1. ORGANIZATION AND GENERAL PROVISIONS

Section 4-101. Executive Powers.

All executive and administrative powers of the City shall be vested in and exercised by the Executive Branch.

Section 4-102. Organization.

The Executive Branch shall consist of the Office of Mayor, of which the Mayor shall be the head; the Administrative Office, of which the Chief Administrative Officer shall be the head; the department heads; the unattached boards in Article V of this Charter; and the following departments and boards; all of which are hereby created and established or continued and recognized:

(1) *Departments:*

Department of Law

Department of Police

Department of Fire

Department of Safety and Permits

Department of Sanitation

Department of Public Works

Department of Recreation

Department of Human Services

Department of Health

Department of Finance

Department of Property Management

Department of City Civil Service

Department of Utilities

Department of Parks and Parkways

(2) *Boards and Commissions:*

(a) Departmental:

In the Department of City Civil Service:

Civil Service Commission

(b) Attached to Departments or Commissions:

To the Department of Safety and Permits:

Board of Building Standards and Appeals

To the City Planning Commission:

Board of Zoning Adjustments

To the Department of Property Management:

Delgado Albania Plantation Commission

To the Department of Finance:

Board of Trustees of the Municipal Employees' Retirement System

Board of Trustees of the Police Pension Fund

Board of Trustees of the Firemen's Pension and Relief Fund

The foregoing boards shall be attached to but shall not be a part of the departments or commissions, as indicated; and the head of each department shall be an ex-officio member of the boards attached thereto to the extent permitted by law, and except as otherwise provided herein. The responsibilities of the departments with respect to such boards shall be limited to the general oversight of their operations for the purpose of providing information thereon to the Mayor, Chief Administrative Officer and the Council.

(c) Other:

Board of City Trusts

Central Business District Historic District Landmarks Commission

New Orleans Historic District Landmarks Commission

Mosquito Control Board

Section 4-103. Other Administrative Agencies Prohibited.

(1) No department nor board shall be created except as provided in this Charter; but if any constitutional or legislative office or board operating in or with respect to any function of the City be abolished, the Council, in its discretion, shall have the right by ordinance to establish a corresponding office or board, in such manner as the Council may deem proper.

(2) The names, functions, or assignment of functions of departments, officers, boards, and commissions included in this Article may be amended, and such departments, officers, boards, and commissions may be consolidated, subdivided, reorganized, or abolished by amendment in accordance with the provisions of Section 9-201(2), except for the Mayor, the Administrative Office, and the Departments of Law, Police, Fire, Finance, and City Civil Service, which shall be subject to amendment only in accordance with Section 9-201(1).

Section 4-104. Creation of Advisory Committees.

The Mayor, department heads with the approval of the Mayor, and boards may each appoint advisory committees which shall exist for not more than one year from the date of appointment, but which may be reappointed from year to year. The members of advisory committees shall not be paid; their function shall be limited to counsel and advice; and their expenses, if any,

shall be paid from appropriations to the appointing authority. Advisory committees shall have no employees, but the appointing authority may cause its employees to furnish such services as may be needed by said committees.

Section 4-105. Assignment of Activities.

(1) All duties, functions or activities of the City not assigned herein or otherwise assigned by applicable state or municipal law may be assigned or reassigned by the Mayor to appropriate offices, or to existing departments and boards.

(2) Any office or unit established after the effective date of this Charter shall be placed in one of the offices, departments or boards created or recognized by this Charter.

Section 4-106. Appointment and Removal of Department Heads.

(1) The City Attorney shall be appointed and may be removed by the Mayor.

(2) All other department heads shall be appointed and may be removed by the Chief Administrative Officer with the approval of the Mayor, except where other appointing authority is designated by this Charter or by applicable State law.

(3) No appointing authority shall appoint any person in the unclassified service until satisfied by proper investigation that the person to be appointed is of good moral character and is fully qualified by experience or ability properly to perform the duties and execute the functions assigned to the position.

(4) Appointments to head any executive branch department established by Article IV of the Charter, when made by the Mayor or by the Chief Administrative Officer, shall require confirmation by the Council, in accordance with a confirmation process to be established by Council rule. The Council may, by ordinance, require Council confirmation of any appointment to head any other department, office or unit to which executive powers have been assigned or transferred in accordance with Sections 4-105 or 9-201(2) of the Charter.

(5) The Mayor or Chief Administrative Officer, as appropriate, may appoint one or more persons to fill a position governed by this section on an interim basis without first obtaining Council confirmation. Interim appointments may not exceed 120 days, unless extended by the Council. Successive interim appointments or other means intended to circumvent the Council's right to confirm executive branch appointees shall be prohibited. If the Council fails to adopt a motion confirming, disapproving, or extending an interim appointment before the expiration of the interim period, the appointee shall be deemed confirmed. (M.C.S., Ord. No. 28999, § 4, 4-21-22, eff. 1-1-23)

Section 4-107. Powers and Duties of Officers and Department Heads.

(1) Subject to the provisions of applicable civil service law, rules and regulations, officers and department heads shall have the power and duty to appoint, promote, supervise, discipline, and remove all officers and employees in their respective offices or departments; to determine their compensation subject to the approved pay plans and budgetary limitations; and to assign duties to employees and supervise the performance thereof.

(2) Each officer or department head shall, subject to the approval of an immediate superior, prescribe such rules as are necessary for the organization and internal government of the office or department.

(3) (a) The Mayor, or each officer or department head with the consent of the Mayor, shall submit to the Council for its approval any regulations affecting the public and necessary to the performance of the functions assigned to such office or department. No such regulation shall become effective until approved by resolution of the Council or as otherwise provided in paragraph (3)(d) of this section.

(b) Prior to July 1,1996, the Council shall by ordinance provide for public notice and comment on proposed regulations affecting the public. The ordinance shall provide for an emergency adoption procedure by

which regulations may in certain specified circumstances be made immediately effective, but any regulation so adopted shall not remain in effect for more than 180 days after the date of its adoption. After its adoption, the ordinance governing promulgation of regulations may be amended only by an ordinance approved with a two-thirds vote of the entire membership of the Council.

(c) Prior to submission of any proposed regulation to the Council, the officer or department head shall publish notice of the intention to adopt such regulation once in the official journal. Following its final promulgation, every regulation shall be published once again in the official journal, unless deemed too lengthy for publication by the officer or department head, who shall in such case publish a summary of its contents and notice of its availability to the public.

(d) The City Attorney shall maintain and periodically cause to be published a comprehensive and current compilation of all regulations promulgated in accordance with this process and having legal effect in the City of New Orleans. Regulations shall become effective at 12:01 A.M. on the twenty-second day beginning on the day following approval by the Council. If the Council neither approves nor disapproves any regulations submitted to it within forty-five days of submittal, the regulations shall become legally effective upon the expiration of such forty-five days. Any such regulation may be rescinded or amended by the same process as when originally submitted. All regulations shall be subordinate to the ordinances of the Council. All regulations heretofore adopted by the City of New Orleans are hereby ratified and continued in existence until modified in accordance with the procedure established in this Section.

Section 4-108. Powers and Duties of Boards and Commissions.

All boards shall have the same powers and duties with respect to their functions as those prescribed in this chapter for officers and department heads, unless otherwise provided by this Charter or applicable state or municipal law. They may delegate such powers and duties to their executive officers, provided that all matters involving appointment, discipline, removal or pay shall become null unless approved by the board within sixty days.

Section 4-109. Public Benefit Corporations.

(1) If authorized by the Mayor and approved by the Council by ordinance, the City may establish public benefit corporations, development corporations, public trusts, and other entities authorized by state law for public purposes, including development, management, and promotion of assets of the City, subject to such budgetary, personnel or other requirements as may be established by ordinance.

(2) Public benefit corporations, development corporations, public trusts, and other entities authorized by state law and established prior to January 1, 1996, the effective date of this amendment to this Charter, are hereby recognized. Such entities may be continued, modified or abolished in accordance with the terms of applicable enabling statutes, ordinances, articles of incorporation, by-laws, or trust indentures in effect prior to January 1, 1996 or as thereafter revised.

CHAPTER 2. THE MAYOR

Section 4-201. Election and Term.

The electors of the City shall elect a Mayor at an election to be held in accordance with the election laws of the State. The Mayor shall take office on the second Monday in January and every four years thereafter following election. A person who has served as Mayor for more than one and one-half terms in two consecutive terms shall not be eligible for election as Mayor for the succeeding term.

Section 4-202. Qualifications.

The Mayor shall be a citizen of the United States and a qualified elector of the City, and shall have been domiciled in the City for at least five years immediately preceding the election.

Section 4-203. Compensation.

The salary and other compensation of the Mayor shall be provided by ordinance. No change in the salary and other compensation made during the last six months of any term shall be valid as to the Mayor elected for the succeeding term. The Council shall provide in the annual operating budget a contingent fund of no less than $5000 to be expended by the Mayor for such public purposes as the Mayor may deem proper.

Section 4-204. Vacancy in Office.

(1) A vacancy in the office of Mayor caused by death, resignation, removal, suspension or disqualification shall be filled as follows:

(a) If the unexpired term is for less than one year, the district councilmembers shall,

by majority vote, elect one of the two councilmembers-at-large to be Mayor for the unexpired term, and a vacancy shall thereupon exist in the office of councilmember-at-large.

(b) If the unexpired term is for one year or more, the vacancy shall be filled by special election, to be called by the Council within ten days after the vacancy occurs and to be held at the earliest available date permitted under the election laws of the state, at which time the electors of the City shall elect a citizen with the requisite qualifications to fill the vacancy for the remainder of the term; provided that if any special or general election is to be held in the City after sixty days and within six months after the occurrence of the vacancy, then the election shall be held in conjunction with such other election.

(c) Pending the election of a Mayor when the length of the unexpired term is one year or more, the district councilmembers shall, by majority vote, appoint one of the two councilmembers-at-large to be acting Mayor during the period from the occurrence of the vacancy until a Mayor is elected and assumes office.

(2) In the absence of the Mayor, the office shall be filled by an acting Mayor who shall be appointed by the Mayor from the two councilmembers-at-large. If within ten days the Mayor should fail to so appoint an acting Mayor, the district councilmembers shall, by majority vote, appoint one of the councilmembers-at-large as acting Mayor.

(3) The appointment of a councilmember-at-large as acting Mayor shall not be deemed to create a vacancy in the office of councilmember-at-large, but while serving as acting Mayor the councilmember shall not perform duties as a member of the Council, except in the case of an ordinance requiring a two-thirds vote of the Council or in order to break a tie vote of the Council, in which case the acting Mayor may vote as a councilmember. A councilmember-at-large appointed acting Mayor shall receive compensation only at the level of a councilmember. A councilmember-at-large no longer serving as acting Mayor may vote on a matter addressed when serving as acting Mayor.

Section 4-205. Suspension and Removal.

The Mayor shall be subject to suspension or removal from office only in the following manner and for the following reasons:

(1) (a) In the event that a Mayor is afflicted with a mental or physical condition that renders the Mayor temporarily or permanently unable to discharge the powers and duties of office, the Chief Administrative Officer, the City Attorney, the Director of the Department of Health or a physician designated by the Director of that Department or its successor, and a physician appointed by the deans of the Louisiana State University Medical School and the Tulane University Medical School shall so certify by unanimous written declaration before a Notary Public and shall promptly deliver their declaration to the Clerk of Council. If the declaration certifies that the Mayor is temporarily incapable of performing the duties of office, the Council shall be required to vote on the matter within seven days from delivery of the declaration; upon rendering an affirmative vote of two-thirds of its entire membership, the Council shall declare the office temporarily vacant due to the incapacity of the incumbent. Thereafter, the district Councilmembers shall forthwith, by majority vote, appoint one of the Councilmembers-at-large as acting Mayor. If the declaration certifies that the Mayor is permanently incapable of performing the duties of office, the Council shall be required to vote on the matter within seven days from the delivery of the declaration; upon rendering an affirmative vote of two-

thirds of its entire membership, the Council shall declare that the seat of the Mayor is vacant due to the incapacity of the incumbent and shall proceed forthwith to fill the vacancy in accordance with the provisions of Section 4-204 of this Charter.

(b) Any Mayor who has been determined to be temporarily or permanently unable to discharge the powers and duties of office shall continue to receive from the city a sum which together with the Mayor's disability benefits and retirement allowance, if any, shall equal the annual salary which such Mayor was receiving at the time of the determination of temporary or permanent incapacity, payable in the same manner as the Mayor was previously compensated until the expiration of the term for which such Mayor had been elected or such Mayor's death, whichever shall occur first. The Mayor shall apply for any retirement allowance or disability benefits to which entitled, and the disability allowance provided for in this section shall not reduce or suspend such retirement allowance or disability benefits, notwithstanding any other provision of law.

(2) In the event that a Mayor pleads guilty or nolo contendere to a federal or state felony charge, the Council shall, by a majority vote of its entire membership, declare that the seat of the Mayor is vacant due to the disqualification of the incumbent for felonious behavior and shall forthwith proceed to fill the vacancy in accordance with the provisions of Section 4-204 of this Charter.

(3) (a) If the Mayor is convicted of a federal or state felony, the Mayor shall be automatically suspended from the seat without compensation. The suspension without compensation shall continue until the conviction is final and all appellate review of the original trial court proceedings is exhausted, at which time the Council shall, by a majority vote of its entire membership, declare that the seat of the Mayor is vacant due to the disqualification of the incumbent for felonious behavior and shall forthwith proceed to fill the vacancy in accordance with the provisions of Section 4-204 of this Charter. During the period of suspension, the Mayor shall not perform any official act, duty, or function nor shall the Mayor receive any compensation, pay, allowance, emolument, or privilege of the office. If the conviction is reversed on appeal, the Mayor shall be entitled to and shall receive full back pay from the date of suspension with legal interest on portions thereof from the date that the Mayor, but for the suspension, would have been paid that portion. Additionally, the Mayor shall have restored all rights, duties, powers, allowances, emoluments, and privileges of office.

(b) During this suspension, the Council shall, by a majority vote of its entire membership, declare that the seat of the Mayor is temporarily vacant due to suspension. Thereafter, the district councilmembers shall, by majority vote, appoint one of the councilmembers-at-large as acting Mayor. Any councilmember-at-large appointed to fill a temporary vacancy under the terms of this section shall serve in the appointed capacity until the conviction of the Mayor is reversed on appeal or until expiration of the term of office of the suspended Mayor, whichever comes first.

(4) In the event that a Mayor is recalled from office in accordance with state or municipal law, the vacancy shall be filled forthwith in accordance with the provisions of Section 4-204 of this Charter.

(5) In the event that the Mayor fails to meet the qualifications for office, the Mayor shall thereby vacate the office and the vacancy shall be filled forthwith in accordance with the provisions of Section 4-204 of this Charter.

Section 4-206. Powers and Duties.

(1) *Executive and Administrative Powers.* The Mayor shall be the chief executive officer of the City. The Mayor shall have the power and shall be required to:

(a) Exercise general oversight of the activities of boards and other agencies of City government and coordinate them with other activities of the City.

(b) Exercise directly or through the Chief Administrative Officer supervision over all other executive and administrative work of the City and provide for the coordination of administrative activities.

(c) See that the provisions of this Charter, the ordinances of the City, and all other laws are enforced.

(d) Appoint the Chief Administrative Officer and the City Attorney.

(e) Appoint, with approval of a majority of all members of the Council, members of all boards except as otherwise provided in this Charter or by applicable state or municipal law.

(f) Submit annually to the Council for its consideration and approval an operating budget, a capital program and a capital budget.

(g) Recommend to the Council a pay plan for all officers and employees in the unclassified service except those provided for under Section 3-107 of this Charter.

(h) Sign contracts, bonds or other instruments requiring the assent of the City except those which the Director of Finance or other officer is authorized to sign.

(i) See that the terms and conditions of all contracts are faithfully executed.

(2) *Powers with Respect to Council.* The Mayor may:

(a) Present to the Council messages or information which in the Mayor's opinion are necessary or expedient.

(b) Attend Council meetings and have a voice in the proceedings.

(c) Call special sessions of the Council.

(d) Veto ordinances.

(3) *Other Powers.* The Mayor shall have the authority to exercise such other powers and perform such other duties as may be prescribed by this Charter or by state or municipal law, including but not limited to the following:

(a) Participate but not vote in the proceedings of all boards or other agencies of City government of which the Mayor is not made an ex officio member.

(b) Remove at pleasure all officers appointed by the Mayor without Council confirmation.

(c) Issue executive orders establishing policies and procedures for the executive branch and see that they are published promptly thereafter.

(d) Subject to such limitations as may be established by ordinance or other applicable law, declare a state of emergency due to acts of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property.

(e) Study, devise, and implement programs to improve housing and neighborhood conditions in the City.

(f) Study, devise, and implement programs to foster economic development in the City.

(g) Provide for cooperation and coordination among criminal justice agencies and officials.

(h) Seek compliance with federal, state, and local environmental and safety laws and regulations, permit requirements, and

regulatory orders by all City officers, employees, boards, commissions, contractors, and recipients of municipal funds.

(i) Perform such other duties as are conferred upon the Mayor by the Charter or its enabling legislation and by applicable state or municipal law.

Section 4-207. Office.

The Mayor's office shall be in the City Hall, and the Mayor shall be custodian of the corporate seal.

Section 4-208. The Chief Administrative Officer.

(1) The position of Chief Administrative Officer shall be in the Office of the Mayor, but the employees of the Administrative Office shall be in the classified service except as provided by applicable civil service law. The Chief Administrative Officer shall be the Mayor's principal assistant and the budget officer of the City and shall be appointed solely on the basis of ability to perform the duties and functions of the office. The salary of the Chief Administrative Officer shall be provided for in the pay plan submitted by the Mayor to the Council.

(2) Should the Mayor fail to appoint a Chief Administrative Officer within sixty days of the occurrence of any vacancy in the position, the Council shall make the appointment.

CHAPTER 3. THE ADMINISTRATIVE OFFICE

Section 4-301. The Administrative Office.

The Chief Administrative Officer shall be the head of the Administrative Office and shall be authorized to employ necessary staff.

Section 4-302. Duties of the Chief Administrative Officer.

The Chief Administrative Officer shall:

(1) Supervise the heads of all departments, except the Departments of Law and City Civil Service. The Mayor may from time to time by written notice relieve the Chief Administrative Officer of the responsibility of supervising the heads of one or more departments, except the Departments of Finance and Property Management, for such portions of time as the Mayor may designate. Should the Mayor remove a department head from the supervisory authority of the Chief Administrative Officer, the Mayor shall immediately assume full responsibility for the supervision of such department head.

(2) Appoint or remove, with the approval of the Mayor, the heads of all departments, except those whose appointment or removal is otherwise provided for by this Charter or applicable State law.

(3) Give general oversight to the Departments of Law, City Civil Service and the City Planning Commission for the purpose of coordinating their activities with those of other agencies of the City and develop measures to promote cooperation and coordination in the delivery of services and the carrying out of functions and activities by unattached boards and other municipal public bodies with those of other agencies of city government.

(4) Keep the Mayor advised concerning the activities and policies of all offices, departments and boards, make or cause to be made investigations and studies of the internal organization and procedures of any office, department or board, and require such reports from any of them as are deemed necessary.

(5) Prescribe accepted standards of administrative practice to be followed by all offices, departments and boards.

(6) Prepare the annual operating and capital budgets, and supervise the execution of the budget ordinances.

(7) Make information available to the Mayor, the Council, and the public concerning the current status of the financial affairs

of the City and all offices, departments and boards receiving appropriations from the City.

(8) Attend meetings of any board or committee of which the Mayor is a member when requested by the Mayor, and participate in the discussion and deliberations of such board or committee, including the authority to introduce any motion or resolution or vote thereon when the Mayor is not also in attendance.

(9) Attend meetings of the Council at its request and make available such information as it may require.

(10) Perform all other duties required by this Charter or assigned in writing by the Mayor.

CHAPTER 4. DEPARTMENT OF LAW

Section 4-401. Functions.

The Department of Law, headed by a City Attorney, shall:

(1) Direct and supervise the legal affairs of the City.

(2) Provide legal advice to the Mayor and Council when requested and when directed by the Mayor to all officers, departments, and boards concerning any matter affecting the interests of the City.

(3) Have charge of all legal matters in which the City has an interest or to which the City is a party, with power and authority, when directed by the Mayor or the Council, to institute and prosecute or to intervene in any and all suits or other proceedings, civil or criminal, as may be deemed necessary for the assertion or protection of the rights and interests of the City.

(4) Prepare proposed ordinances when requested by the Mayor or any member of the Council.

(5) Prepare or approve as to form and legality all contracts, documents and instruments creating any legal or conventional obligation affecting the City.

(6) Perform all other duties required by this Charter, the Mayor or the Council and not inconsistent with the functions of this Department.

Section 4-402. City Attorney and Legal Staff.

(1) The City Attorney shall be a licensed attorney who is domiciled in and an elector of the City, who has been admitted to practice law before the Supreme Court of Louisiana for at least five years, and who shall have actively practiced law in Louisiana for at least five years immediately preceding appointment.

(2) The professional staff of the Department shall consist of licensed attorneys who are domiciled in and electors of the City and who have been admitted to practice law before the Supreme Court of Louisiana.

Section 4-403. Special Counsel.

(1) No special counsel shall be retained to represent the City or any officer, department, or board except the Sewerage and Water Board, the Department of City Civil Service, the Public Belt Railroad Commission, and the Board of Liquidation, City Debt, and except as may herein be otherwise provided.

(2) The Council may, by two-thirds vote of its entire membership, employ special counsel for itself.

(3) The Council may, by two-thirds vote of its entire membership, authorize any officer, department or board to employ special counsel for any special matter presenting a real necessity for such employment, provided any such authorization shall specify the compensation, if any, to be paid for said services.

Section 4-404. Notaries.

(1) The City Attorney shall be responsible for designating one or more Notaries Public, who shall be attorneys licensed to practice law in the State of Louisiana and none of whom shall be members of the Council, before whom shall be passed all contracts and other transactions required by the City Attorney or other counsel to

be in authentic form. The Department of Law shall establish uniform reasonable processing fees approved by the Council for all Notaries Public performing such services. Said services shall be paid by those transacting business with the City, and these funds shall become part of the general fund of the City when utilizing the services of Notaries Public from among professional staff within the Department of Law. Notaries within the Department of Law shall be utilized to perform such services, except where the City Attorney certifies a special need to exist and the Council, by two-thirds vote of its entire membership, approves the special need to appoint the notary who is not within the Department of Law. Designated notaries within the Department of Law shall receive no compensation for the notarial functions performed under this Section other than that compensation provided by the regularly applicable City pay plan.

(2) A certified copy of every act or contract to which the City is a party shall be filed with the Department of Law and shall form a part of the archives of said Department.

Section 4-405. Service of Legal Processes.

Legal process against the City shall be served upon the Mayor, the acting Mayor, or the City Attorney.

Section 4-406. Independent and Impartial Representation of the City; Removal.

(1) The principal client of the City Attorney and the Law Department is the City of New Orleans. This obligation to represent the City supersedes any duty to represent any other person, department, branch, board, or office and must be performed in strict accordance with the ethical rules governing institutional clients.

(2) In fulfilling the obligation to represent the City, the City Attorney must consult regularly with the Mayor and the Council and attempt to represent the policies and interests of both branches even-handedly and impartially. When faced with conflicting directives from the executive and legislative branches or with a directive that contravenes applicable law, the City Attorney must exercise independent legal judgment and act at all times in a manner that serves the best interest of the City and complies with applicable law.

(3) The City Attorney may not represent one branch of City government in a court proceeding directly adverse to another branch of City government without the consent of the adverse party.

(4) The Council may, by ordinance, prescribe additional rules implementing the policies and provisions of this Section, including rules regulating representational conflicts involving the City Attorney and the activities of the professional staff of the Law Department in representing the legal interests of the City and in carrying out the functions set forth in this Chapter.

(5) The Council may, by a vote of five members, prevent or overturn the removal of the City Attorney by the Mayor if it finds that the City Attorney was removed without valid cause or for a reason inconsistent with the policy of independence established herein.

(6) The requirements of this Section apply to the City Attorney and the professional staff of the Law Department.
(M.C.S., Ord. No. 30410, § 4, 7-24-25, eff. 1-13-26)

CHAPTER 5. DEPARTMENT OF POLICE

Section 4-501. Functions.

The Department of Police, headed by a Superintendent of Police, shall:

(1) Organize, administer, supervise and discipline the police force of the City.

(2) Enforce traffic regulations and investigate traffic accidents.

(3) Operate and maintain communication systems either separately or in conjunction with others.

(4) Make all legal searches, seizures, and arrests and exercise all legal authority incident thereto which is now or may

hereafter be conferred by law upon police officers, and maintain temporary lockups for the confinement of prisoners.

(5) Serve subpoenas when directed by proper authority.

(6) Assist all city departments and agencies in the enforcement of functions assigned to them.

(7) Enforce the ordinances of the City and all state and municipal laws, and prevent the violation thereof.

(8) Maintain peace; protect life, property, and all other rights and liberties of the people; and do and perform all other lawfully assigned acts.

(9) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Section 4-502. Emergency and Special Police.

(1) Emergency Police:

(a) In case of riot, general conflagration, flood or similar grave emergency, the Mayor may authorize the Superintendent to appoint emergency police. Such appointments shall be for a period of not more than thirty days and may be extended for like periods only by the express authorization of the Mayor and two-thirds vote of the Council.

(b) Emergency police shall have such powers as may be vested in them by the Superintendent; shall be subject to the rules and regulations governing the regular police force; and shall receive compensation at the regular rates for the grades to which appointed.

(2) Special Police:

(a) The Superintendent may, in the manner prescribed by ordinance and subject to standards set by the Superintendent in regulations, deputize persons not members of the police force to exercise limited police powers. When exercising such powers with respect to privately owned

property or places, a person so deputized shall not be paid from public funds and shall not be entitled to public employee benefits for such services. Regular city employees exercising such powers with respect to public property or places shall be entitled only to the compensation and benefits attached to their regular employment.

(b) The Superintendent shall prescribe the rules and regulations governing the exercise of police power by persons so deputized and may suspend or cancel the deputization in the superintendent's discretion.

(3) The Superintendent shall not appoint or deputize any person who is not of good moral character to exercise police functions under this section.

Section 4-503. Other Police Prohibited.

No officer, department or board operating in or for the City, other than the Department of Police, shall have a police force.

CHAPTER 6. DEPARTMENT OF FIRE

Section 4-601. Functions.

The Department of Fire, headed by a Superintendent of Fire, shall:

(1) Organize, administer, supervise and discipline the fire force of the City.

(2) Extinguish fires and investigate their causes.

(3) Operate and maintain communication systems either separately or in conjunction with others.

(4) Administer and enforce ordinances, regulations, and all state and municipal laws relating to fire prevention and safety of persons.

(5) Respond either separately or in conjunction with others to situations involving hazardous materials and to other emergency situations involving the safety of persons or property.

(6) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Section 4-602. Police and Emergency Authority.

The Superintendent of Fire or the Superintendent's representative shall have the powers of a police officer while going to or attending any fire or alarm of fire. The Superintendent or acting Superintendent shall have the authority in an emergency to cause to be demolished any structure when such demolition is essential to the extinguishment or control of fire or other emergency situation in the judgment of the Superintendent or Acting Superintendent.

CHAPTER 7. DEPARTMENT OF SAFETY AND PERMITS

Section 4-701. Definition.

As used in this Chapter, "permit" shall mean any license, permit, or other authorization required by law, ordinance or regulation for other than revenue purposes.

Section 4-702. Functions.

The Department of Safety and Permits, headed by a Director of Safety and Permits, shall:

(1) Administer and enforce the zoning and building code ordinances and all state and municipal laws and regulations under which permits are required, as to all officers, departments, boards and governmental agencies and to all persons, firms and corporations, public and private, except as may be otherwise provided herein or by applicable state or municipal law.

(2) Issue permits and to that end:

(a) Receive all applications for permits and determine whether the applicant

is entitled thereto according to laws, ordinances and regulations under which the permit is required. No permit shall be issued until after certification by the appropriate office, department or board interested or affected, if any.

(b) Issue the permit if the application is approved and the fee paid, or notify the applicant in writing of any refusal and the reasons therefor.

(3) Make or cause inspections, tests or examinations to be made when prerequisite for the issuance of a permit and no certification is required from another office department or board. When such certification is required, the Chief Administrative Officer shall by rule provide for the making of the necessary inspections, tests or examination.

(4) Revoke, suspend, or cancel any permit which has been violated or which has been issued in violation of the zoning or building code ordinances or other applicable state or municipal law. Any revocation, suspension or cancellation shall be in writing and shall state the reasons therefore.

(5) Provide clerical and other staff assistance required by the boards which are a part of or attached to this Department.

(6) Provide data for the undertaking of studies of housing accommodations in the City in cooperation with the City Planning Commission or any other appropriate agencies.

(7) Recommend terms to be incorporated in any franchise, permit, or privilege to be granted by the City for issuance of Certificates of Public Necessity and Convenience for the regulation and supervision of all passenger vehicles for hire on the streets and other public places as provided by ordinance pursuant to Section 3-131(2) of the City Charter.

(8) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Annotation: Sec. 4-702. Functions. The duties herein described in sub-section (8) were formerly performed by the now dissolved Department of Utilities. (See Ordinance No. 21,028 M.C.S.)

Section 4-703. Board of Building Standards and Appeals.

(1) Composition. There shall be attached to the Department a Board of Building Standards and Appeals to consist of five members who are domiciled in and electors of the City to be appointed by the Mayor with the approval of the Council. The Director of this Department shall not be a member of this Board.

(2) Functions. The Board shall:

(a) Hear and determine appeals on all matters arising under ordinances or regulations pertaining to the design, construction, alteration and demolition of buildings.

(b) Hear and determine appeals where it is alleged there is an error in any order, requirement, decision, or determination made by an administrative official in the enforcement of building regulations of the City.

CHAPTER 8. DEPARTMENT OF SANITATION

Section 4-801. Functions.

The Department of Sanitation, headed by a Director of Sanitation, shall:

(1) Provide for the collection and disposal of garbage and other refuse, either directly or by contract.

(2) Provide for the management and operation of disposal facilities, either directly or by contract.

(3) Clean the streets.

(4) Enforce ordinances and state and federal laws and regulations involving solid waste.

(5) Develop and implement integrated waste management plans.

(6) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

CHAPTER 9. DEPARTMENT OF PUBLIC WORKS

Section 4-901. Functions.

The Department of Public Works, headed by a Director of Public Works, shall:

(1) Provide for the design, construction, paving, maintenance, and marking of streets, bridges, and related structures and approaches.

(2) Supervise, regulate and control installations in, above or under streets.

(3) Establish elevations and control grades of streets.

(4) Collect and compile traffic data as directed by the Mayor or by ordinance; prepare engineering studies with regard to vehicular and pedestrian traffic as directed by the Mayor or by ordinance; prescribe regulations governing traffic and parking on streets and other public places; and determine the type, need, and location of all traffic control devices and markings and install, design, construct, operate, and maintain them.

(5) Coordinate construction and maintenance projects with other departments, boards, and agencies of government and public utilities.

(6) Coordinate or manage public works projects in the process of construction or acquisition and monitor their present status, the amounts spent or to be spent thereon, and the work required to complete each undertaking with a schedule for such completion.

(7) Keep the Mayor, the Council, the Chief Administrative Officer, and the City Planning Commission informed as to the status of public construction and maintenance projects.

(8) Recommend terms to be incorporated in contracts for supplying utility services for City buildings or facilities and for supplying street lighting services to the City and shall supervise performance under such contracts.

(9) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Annotation: Sec. 4-901. Functions. The duties herein described in sub-section (8) were formerly performed by the now dissolved Department of Utilities. (See Ordinance No. 21,028 M.C.S.)

CHAPTER 10. DEPARTMENT OF RECREATION*

CHAPTER 11. DEPARTMENT OF HUMAN SERVICES

Section 4-1101. Composition.

The Department of Human Services shall be headed by a Director of Human Services, appointed by the Chief Administrative Officer to serve at the Chief Administrative Officers pleasure.

Section 4-1102. Functions.

The Department of Human Services shall:

(1) Administer welfare and human services programs of the City.

(2) Supervise and operate all social welfare and human services institutions of the City, except as may be otherwise be provided herein.

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*__Historical Note:__ In accordance with Section 9-201 of the Home Rule Charter of the City of New Orleans, the Charter was amended following an election on Saturday, October 2, 2010, according to the terms set forth in Ordinance No. 23,998 M.C.S. The duties and responsibilities of the Department of Recreation as previously set forth in this section of the Home Rule Charter, have been assumed by the New Orleans Recreation Development Commission, as set forth in Article V, Chapter 10, Section 5-1001 through Section 5-1003 of the Home Rule Charter.

(3) Cooperate with all other welfare and human services organizations and agencies.

(4) Supervise the appropriations to any charitable institution utilized by the City for the care, maintenance and asylum of destitute persons and supervise contracts made by the City with such institutions.

(5) Perform such other duties as are required by this Charter, provided by applicable state and municipal law, or assigned in writing by the Major.

CHAPTER 12. DEPARTMENT OF HEALTH

Section 4-1201. Composition.

(1) The Department of Health shall be headed by a Director of Health, to be appointed by the Chief Administrative Officer with the approval of the Mayor.

(2) The Director shall have had at least five years experience in the administration of health programs in either the public or private sector, shall possess a degree in medicine or an advanced degree in nursing or public health, and shall possess such other qualifications as may be required of a health officer by applicable state law.

Section 4-1202. Functions.

The Department of Health, subject to applicable state and municipal law, shall:

(1) Protect the health of the people of the City.

(2) Enforce the State Sanitary Code.

(3) Adopt and enforce local health and sanitary regulations.

(4) Make such health inspections and examinations as may be required by law and, with the approval of the Council, institute and conduct programs of public health.

(5) Investigate the causes and institute measures for the control of epidemic, preventable and communicable disease.

(6) Operate or provide for emergency medical services.

(7) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Section 4-1203. Powers.

The powers, duties and functions of the Department shall be as provided by applicable state and municipal law.

Section 4-1204. Health Officer.

The Chief Administrative Officer may appoint a health officer to serve in the Department of Health or in another Department designated by the Chief Administrative Officer. The health officer may be in the unclassified civil service in accordance with applicable state and municipal law, or the services of the health officer may be provided for by contract. The health officer shall possess a degree in medicine or an advanced degree in nursing or public health and shall possess such other qualifications as may be required of a health officer by applicable state and municipal law.

CHAPTER 13. DEPARTMENT OF FINANCE

Section 4-1301. Functions.

(1) The Department of Finance, headed by the Director of Finance, shall:

(a) Collect all taxes, license and permit fees, and other moneys which may be due to or receivable by the City or any of its officers, departments, or boards; provided that where economy of administration or public convenience requires, the Director may by rule authorize the receipt of moneys directly by officers, departments or boards, or may assign employees of the Department to make such collections.

(b) Collect, when directed or authorized by law, all taxes, license and permit fees, and other moneys which may be receivable by the State or any public office, department or board not subject to the provision of this Charter.

(c) Sell property upon which taxes are not paid within the period prescribed by law.

(d) Prepare tax rolls and bills, including those required by state law.

(e) Issue receipts for moneys collected by the Department.

(f) Maintain the treasury of the City, and deposit the moneys belonging thereto in the depository banks to the credit of the proper funds.

(g) Contract for services to be rendered by independent contractors, and purchase materials, supplies and equipment. The Department shall, from time to time, secure from all officers, departments and boards estimates of their needs for articles of common use and shall, when practicable, consolidate requisitions in order to secure the benefits of quantity purchases, and to that end, when authorized by the Council, may cooperate with other public agencies when making such purchases.

(h) Acquire immovable property upon the recommendations of the Department of Property Management and dispose of immovable property upon such recommendations when authorized by ordinance.

(i) Dispose of movable property not needed by the City.

(j) Keep accurate and complete accounts of all receipts and disbursements.

(k) Maintain a perpetual inventory of all equipment owned or controlled by the City.

(l) Permit no disbursements to be made except pursuant to authorizations adopted under the terms of this Charter or applicable State law.

(m) Provide information pertaining to financial affairs of the City.

(n) Maintain and supervise any central warehouse.

(o) Prescribe, maintain and supervise the general and cost accounting systems for all officers, departments and boards.

(p) Prepare all payrolls and pension rolls.

(q) Approve all disbursements of funds held by the City.

(r) Prepare the necessary assessment rolls for assessable public improvements, issue appropriate bills, assist in the issuance and servicing of indebtedness in connection therewith, and in the collection, custody and payment of all moneys in connection therewith.

(s) Designate, subject to any conditions which may be imposed by ordinance, the banks to be used as City Depositories and require them to fulfill all conditions which the City may impose.

(t) Recommend terms to be incorporated in any franchise, permit, or privilege to be granted by the City, except as noted in Section 4-702(8) of this Charter.

(u) Recommend rates and revisions thereof, to be charged by any public utility subject to regulations by the City.

(v) Supervise and investigate, within lawful limits, the public utilities operating in the City for compliance with franchise or other privileges, rate orders, and any matter concerning the interests of the City or its residents with respect to the operations of public utility.

(w) Recommend to the Mayor that legal proceedings be instituted to secure compliance with any franchise granted by the Council and with the provisions of law relating thereto.

(x) Make public reports and recommendations to the Mayor on any matter concerning the interests of the City with respect to the operations of public utilities.

(y) Perform all other functions required by this Charter or assigned in writing by the Mayor.

(2) The Director of Finance may require from any officer or employee of the City or any other person such sworn information as may be necessary for the proper performance of the functions of the Department.

(3) The Department of Finance may, at any reasonable time, inspect the books, papers, records, documents, materials, facilities, and plants, wherever located, of any public utility which is subject to the supervision, regulation, and control of the Council, and may require such written reports from such utility as it deems necessary and appropriate in the discharge of its duties and responsibilities as set forth in this Chapter and otherwise provided by law and all costs and expenses in connection therewith shall be borne by the public utility required to furnish or produce same.

Annotation: Sec. 4-1301. Functions. The duties herein described in subsections (t) through (x) of paragraph (1) and paragraph (3) were formerly performed by the now dissolved Department of Utilities. (See Ordinance No. 21,028 M.C.S.)

Section 4-1302. Disposition of Disputed Claims.

(1) The Director of Finance shall execute no settlement of any disputed claim for any tax, license or debt due the city without the approval of the City Attorney and that of the Mayor or the Chief Administrative Officer.

(2) The Director of Finance and the City Attorney, and either the Mayor or the Chief Administrative Officer, shall investigate all disputed claims against the City, and shall make recommendations to the Council for the payment or other disposition thereof.

Section 4-1303. Board of Trustees of the Firemen's Pension and Relief Fund.

The Board of Trustees of the Firemen's Pension and Relief Fund shall be attached to this Department.

Section 4-1304. Board of Trustees of the Police Pension Fund.

The Board of Trustees of the Police Pension Fund shall be attached to this Department, and the Director of Finance shall be a member of said Board.

Section 4-1305. Board of Trustees of the Municipal Employees' Retirement System.

(1) Retirement System and Board of Trustees. The system shall be under the management of a Board of Trustees consisting of the Director of Finance, the Director of Personnel, one person who is domiciled in and an elector of the City elected by the employee members of the System, one person who is domiciled in and an elector of the City elected by the retiree members of the System, and one person who is domiciled in and an elector of the City appointed by the Mayor with the approval of the Council. The terms of the elected and appointed members shall be three years.

(2) Custody and Payment of Funds. The Director of Finance shall be the Treasurer of the Municipal Employees' Retirement Fund and shall administer the Fund subject to the provisions of this Charter, and the direction of the Board of Trustees.

(3) Features of System. The Council may by ordinance, and from time to time, change the Municipal Employees' Retirement System subject to the following limitations:

(a) An annual actuarial evaluation of the System shall be made in accordance with accepted standards for the actuarial valuation of the present and projected assets and liabilities of public employee retirement systems.

(b) The System shall be maintained on a joint contributory basis by the City and the members of the System.

(c) Members of the System who cease to be employees of the City prior to retirement shall have the right to withdraw the contributions which have been made by them, together with interest which shall have been earned by their contributions.

(d) Should any amendment be made to the ordinance establishing the System which will have the effect of increasing the obligations of the City to the Fund, the City shall during the year in which the amendment is made and in each of the

five years next ensuing, provide for payments by the City, in addition to its regular contributions, equal to the actuarial estimate of the City's share of the cost of benefits provided by such amendment, including one-twentieth of any accrued liability assumed by the City in such amendment.

(4) The Council may provide by ordinance for a retirement policy based on age or other factors in accordance with applicable law.

CHAPTER 14. DEPARTMENT OF PROPERTY MANAGEMENT

Section 4-1401. Functions.

The Department of Property Management, headed by the Director of Property Management, shall:

(1) Maintain all buildings owned or operated by the City for a public purpose and perform all custodial functions in connection therewith; provided that where buildings are occupied exclusively by a single officer, department or board, the Director of Property Management, the Chief Administrative Officer or the Mayor may assign to the occupant responsibility for the performance of custodial functions in such buildings.

(2) Manage and have custody of all immovable property in which the City has an interest, including all cemeteries owned by the City except where such management or custody has been otherwise assigned by this Charter, by contract, or by ordinance.

(3) Make recommendations to the Director of Finance concerning the leasing, acquisition or disposition of immovable property.

(4) Assign space to the officers, departments and boards in City buildings.

(5) Award all concessions on City property subject to requirements which may be imposed by ordinance.

(6) Maintain a complete and accurate record of the ownership of all immovable property situated in the City, and of all immovable property of the City wheresoever located. The public records of the department shall include a perpetual index, maintained apart from all other records, listing and briefly describing all corporeal and incorporeal immovable property owned or controlled by the City or agencies of the City, including unattached boards and public benefit corporations. The index shall be designed for ease and efficiency of use by the public.

(7) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Section 4-1402. Delgado Albania Plantation Commission.

(1) *Composition.* There shall be attached to the Department of Property Management the Delgado Albania Plantation Commission. The Commission shall consist of five persons domiciled in and electors of the City who shall have had experience in the management and operation of sugar plantations or related activities. The Director of Finance shall be an ex-officio member of the Commission. The Mayor shall appoint the members with the approval of the Council for terms of five years, so arranged that the term of one member shall expire each year.

(2) *Functions.* The Commission shall:

(a) Provide for the administration, operation and maintenance of the Delgado Albania Plantation.

(b) See that all expenditures authorized for the operation, maintenance and development of the plantation are made in accordance with the provisions of this Charter.

(c) Have authority, with the approval of the Council, to borrow money to produce crops, and mortgage and pledge as security thereof, the crops and chattels of said plantation.

(d) Transmit annually to the Board of City Trusts for the account of the Delgado Community College and its successor such portion of the income of the plantation as may be fixed by the Council.

(3) *Manager.* The Commission may appoint a manager who shall be its executive officer and who shall serve as its pleasure.

CHAPTER 15. DEPARTMENT OF CITY CIVIL SERVICE

Section 4-1501. Composition.

The Department of City Civil Service shall consist of a City Civil Service Commission, a Director of Personnel, and an executive staff as provided by applicable State law.

Section 4-1502. Purpose of Department.

The purpose of this Department shall be as provided by applicable State law and to guarantee to all citizens a fair and equal opportunity for public service under the merit system.

Section 4-1503. Functions.

The functions of the Department shall be as provided by applicable State law, and when consistent therewith, the Council and executive officers of the City may impose additional functions upon the Department by ordinance or rule.

Section 4-1504. Prohibitions.

(1) *Party Membership; Elections.* No member of the commission and no officer or employee in the classified service shall participate or engage in political activity; be a candidate for nomination or election to public office, except by seeking nomination as the classified city employee serving on the commission; be a member of any national, state, or local committee of a political party or faction; make or solicit contributions for any political party, faction, or candidate; or take active part in the management of the affairs of a political party, faction, candidate, or any political campaign, except to exercise the right as a citizen to express an opinion privately, to serve as a commissioner or official watcher at the polls, and to vote as desired.

(2) *Contributions.* No person knowingly shall solicit contributions for political purposes from any classified employee or official or use or attempt to use a position in the city service to punish or coerce the political action of a classified employee.

(3) *Political Activity Defined.* As used in this Article, "political activity" means an effort to support or oppose the election of a candidate for political office or to support a particular political party in an election. The support of or opposition to issues involving bonded indebtedness, tax referenda, or constitutional amendments shall not be prohibited.

Section 4-1505. Duration.

Should the State cease to provide for a system of personnel administration applicable to the City, the provisions of Article VIII of this Charter shall immediately become operative.

CHAPTER 16. DEPARTMENT OF UTILITIES*

Section 4-1601. Functions.

(1) The Department of Utilities, headed by a Director of Utilities, shall:

(a) Recommend terms to be incorporated in any franchise, permit, or privilege to be granted by the City.

(b) Recommend rates, and revisions thereof, to be charged by any public utility subject to regulation by the City.

(c) Supervise and investigate, within lawful limits, the public utilities operating in the City for compliance with franchise or

*__Historical Notes:__ In accordance with Section 9-201(2) and Section 4-105 of the Home Rule Charter of the City of New Orleans, Executive Order CRN-02-05 was issued and Ordinance No. 21028 M.C.S. was adopted by the City Council, dissolving the Department of Utilities. Its duties and responsibilities, as previously set forth in this chapter of the Home Rule Charter, have been assumed by the Departments of Finance, Safety and Permits and Public Works.

other privileges, rate orders, and any matter concerning the interests of the City or its residents with respect to the operations of public utilities.

(d) Recommend to the Mayor that legal proceedings be instituted to secure compliance with any franchise granted by the Council and with the provisions of law relating thereto.

(e) Make public reports, and recommendations to the Mayor, or any matter concerning the interests of the City with respect to the operations of public utilities.

(f) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

(g) Recommend terms to be incorporated in contracts for supplying utility services for City buildings or facilities and for supplying street lighting services to the City and shall supervise performance under such contracts.

Section 4-1602. Inspections and Reports.

The Department may, at any reasonable time, inspect the books, papers, records, documents, materials, facilities, and plants, wherever located, of any public utility which is subject to the supervision, regulation, and control of the Council, and may require such written reports from such utility as it deems necessary and appropriate in the discharge of its duties and responsibilities as set forth in this Chapter and otherwise provided by law and all costs and expenses in connection therewith shall be borne by the public utility required to furnish or produce same.

CHAPTER 17. DEPARTMENT OF PARKS AND PARKWAYS

Section 4-1701. Functions.

The Department of Parks and Parkways, headed by a Director, shall:

(1) Administer, control and manage all parks, except as otherwise provided by applicable state or municipal laws.

(2) Cultivate, place, maintain and remove trees, shrubs, flowers, grass and other plants on public grounds.

(3) Embellish parks, parkways, highways and other public grounds.

Historical Notes: Sec. 4-1701. Functions. The duty previously described in sub-section (4) were reassigned to the New Orleans Recreation Development Commission effective January 1, 2011.

CHAPTER 18. DEPARTMENT OF CODE ENFORCEMENT

Section 4-1801. Functions.

The Department of Code Enforcement, headed by a Director of Code Enforcement, shall:

(1) Make or cause to be made inspections of substandard structures and property and authorize demolition or remediation of property when hazardous to the public health, safety, or welfare.

(2) Enforce municipal, state, and federal laws and regulations for the keeping of streets, vacant lots and other places free from weeds and deleterious matter.

(3) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Annotation: Section 4-1801 Functions. The duties herein described were formerly performed by the Departments of Safety & Permits (subsection (1)) and Sanitation (subsection (2)). (See Ordinance No. 29,371 M.C.S.)

CHAPTER 19. BOARD OF CITY TRUSTS

Section 4-1901. Composition.

The Board of City Trusts shall consist of the Mayor, the President of the Council, the Director of Finance who shall be its Treasurer, and eight electors who shall be domiciled in the City appointed by the Mayor with the approval of the Council for terms of eight years, so arranged that the term of one member shall expire each year. The eight members shall be appointed two each from the professions of investment banking, law, and accounting and two at large.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-1902. Powers.

The Board shall:

(1) Safeguard and administer the investment of all money and other movable property and administer all revenue producing immovable property:

(a) Held by the City as trustee or otherwise for public or charitable purposes.

(b) Held by the City for the perpetual care of plots in City owned cemeteries.

(2) Maintain the immovable property under its jurisdiction through prudent expenditure of the revenues thereof or, with the approval of the Council, through other means.

(3) Adopt as a regulation an investment list that fulfills the standards of prudence then applicable to private trusts.

(4) Recommend to the Mayor and the Council the acceptance or rejection of any trust or conditional donation offered to the City. The Mayor may agree to follow such recommendations only upon the affirmative vote of a majority of the members of the Council. The Mayor may decline to follow such recommendations, only upon the affirmative vote of two-thirds of the members of the Council. Such recommendations shall not be required for the acceptance of donations of movable property if the only conditions are that the movable be used or consumed for a designated purpose or by a designated agency.

(5) Supervise the maintenance by the Director of Finance of appropriate separate accounts for each trust fund and each trust proceeds fund.

(6) Authorize withdrawals from trust funds and trust proceeds funds only upon certification in writing made by the officer, department or board entitled thereto of the purpose of such withdrawal and that it is to be used in accordance with the terms and conditions specified in the trust or conditional donation. If the Board and the beneficiary disagree, the Mayor shall procure a written opinion from the City Attorney which shall be binding upon both the Board and the beneficiary.

(7) Advise the Mayor and Council on all matters relevant to the execution, disposition or modification of trusts and conditional donations.

(8) Review periodically all trusts and conditional donations and recommend to the Council the advisability of abandoning any or all of them.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-1903. Limitations.

The City shall not:

(1) Accept any conditional donation which is contrary to the constitution, the statutes, this Charter, municipal ordinances or the regulations adopted by the Board.

(2) Continue to operate a going business as a permanent investment donated to the City for public purposes or in trust, unless expressly required to do so by the terms of the donation.

(3) Make or hold investments not included in the Board's investment list, except property of the original trust or donation, or required thereby to be acquired.

(4) Modify any trust except upon approval of the Council and, when necessary, a court of proper jurisdiction.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-1904. Standard of Performance.

The members of the Board shall be held to the standards of a prudent administrator.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-1905. Lease and Sale of Property.

Immovable property under the jurisdiction of the Board shall be leased or sold only in accordance with the provisions of this Charter.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-1906. Preservation of Existing Trusts.

If any trusts or conditional donations would by their terms revert to the settler, donor, or other persons as a result of any provisions of this Charter, then such provisions shall be suspended as to such trusts and donations.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

CHAPTER 20. CENTRAL BUSINESS DISTRICT HISTORIC DISTRICT LANDMARKS COMMISSION

Section 4-2001. Composition.

The Commission shall consist of eleven electors who are domiciled in the City, appointed by the Mayor subject to the approval of the Council for terms of four years organized on a staggered basis, or may be organized as otherwise provided by ordinance of the Council.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-2002. Functions.

The Commission shall:

(1) Promote Central Business District historic districts and landmarks for the educational, cultural, economic, and general welfare of the public, especially the residents of New Orleans.

(2) Assist in preserving, protecting, and regulating buildings, sites, monuments, structures, and districts of historic interest or importance within the Central Business District of New Orleans.

(3) Assist in preserving and enhancing the environmental quality of the Central Business District.

(4) Establish and improve property values through support of preservation activities.

(5) Foster economic development and encourage balanced growth.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

CHAPTER 21. NEW ORLEANS HISTORIC DISTRICT LANDMARKS COMMISSION

Section 4-2101. Composition.

The New Orleans Historic District Landmarks Commission shall consist of nine to fifteen electors who are domiciled in the City, appointed by the Mayor subject to the approval of the Council for terms of four years so arranged that the term of two to four members shall expire each year, or may be organized as otherwise provided by ordinance of the Council. For each historic district created by ordinance of the Council, at least one member of the Commission shall be appointed who is a resident or who owns property in the district.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-2102. Functions.

The Commission shall:

(1) Promote historic districts and landmarks for the educational, cultural, economic, and general welfare of the public.

(2) Assist in preserving, protecting, and regulating buildings, sites, monuments, structures, and districts of historic interest or importance within the City.

(3) Assist in preserving and enhancing the environmental quality of neighborhoods.

(4) Establish and improve property values through support of preservation activities.

(5) Foster economic development and manage growth.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

CHAPTER 22. NEW ORLEANS MOSQUITO CONTROL BOARD

Section 4-2201. Composition.

The New Orleans Mosquito Control Board shall consist of one councilmember selected by the Council, the Mayor or a representative designated by the Mayor, the Director of the Department of Health, the Director of the Department of Parks and Parkways and six other

electors domiciled in the City, who shall be appointed by the Mayor with the approval of the City Council and who shall serve six year terms, provided that the terms shall be so arranged that the term of one member shall expire each year. There shall be at all times not less than one qualified entomologist on the Board.
(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

Section 4-2202. Functions.

The Board shall:

(1) Administer and evaluate mosquito control activities.

(2) Monitor the populations of disease and virus transmitting mosquitoes and consult with appropriate authorities.

(M.C.S., Ord. No. 29371, § 4, 3-9-23, eff. 1-1-24)

ARTICLE V. EXECUTIVE BRANCH—UNATTACHED BOARDS AND COMMISSIONS

CHAPTER 1. BOARD OF LIQUIDATION, CITY DEBT

Section 5-101. Composition.

(1) The Board of Liquidation, City Debt, shall be composed of six members and of three ex-officio members, who shall be the Mayor and the two councilmembers-at-large.

(2) Effective on January 1,1996, the terms of the six citizens serving on the Board shall change from terms for life to fixed terms. The members shall conduct a drawing to determine who shall serve for terms of two, four, six, eight, ten, and twelve years. Upon the expiration of a term, a Board member who is domiciled in and an elector of the City shall be appointed by the Mayor with the approval of the Council from a list of three names submitted jointly by a committee consisting of the President of the Board of Liquidation, who shall chair the committee, and the Presidents or Chancellors of Dillard University, Loyola University, Southern University of New Orleans, Tulane University, the University of New Orleans, and Xavier University. Members so appointed shall serve for terms of twelve years. Any vacancy on the Board shall be filled in accordance with the provisions of Section 9-105 of this Charter.

Section 5-102. Functions.

Except as otherwise provided in this Charter, the Board of Liquidation, City Debt shall continue to exercise and have the powers, duties, and functions which it exercised on the effective date of this Charter. It shall have the power to issue bonds in any manner permitted by state or municipal law and this Charter and to manage its affairs, under this Charter on behalf of the City of New Orleans, in accordance with the provisions of applicable state or municipal law.

CHAPTER 2. PUBLIC BELT RAILROAD COMMISSION

Section 5-201. Composition.

The Public Belt Railroad Commission shall be composed of the Mayor, who shall be ex-officio president, and nine commissioners who shall be appointed as provided by Ordinance.

Section 5-202. Functions.

The Commission shall have such powers, duties and functions as are provided by law.

CHAPTER 3. SEWERAGE AND WATER BOARD

Section 5-301. Organization.

The Sewerage and Water Board in existence at the adoption of this Charter shall be continued. The Board shall be composed of the Mayor; the chair of the Public Works, Sanitation, and Environment Committee of the New Orleans City Council or its successor committee, a member of the committee appointed by the chair, or a civil engineer appointed by the chair; two syndicate members of the Board of Liquidation, City Debt;

and seven citizens who are domiciled in and electors of the City appointed as provided by applicable state and municipal law.

Historical Annotation: This section was amended effective January 1, 2011, pursuant to the provisions of R.S. 33:4072 and the amendment approved by the election on Saturday, October 2, 2010. It was further amended effective January 1, 2014, pursuant to the provisions of R. S. 33:4671 and the amendment approved by the election on Saturday, October 19, 2013.

Section 5-302. Functions.

The powers, duties and functions of the Sewerage and Water Board are provided by applicable state and municipal law. The Board shall coordinate its repair, maintenance, and construction projects with City agencies, including the City Planning Commission and the Departments of Public Works and Parks and Parkways, in order to minimize disruption of the City's streets, sidewalks, and other public spaces.

Section 5-303. Privatization.

(1) Before any contract(s) relating to privatization of any Sewerage and Water Board management or administrative function, drainage, sewer, or water operation may be validly executed, a decision to enter into any such contract(s) must be first approved by a majority of the electors of the City voting on the matter at an election which shall be called by the Council as follows: After approval by the Sewerage and Water Board but before execution of any such proposed privatization contract(s), the Council shall provide by ordinance that the proposed contract shall be published at length in the official journal not less than sixty days prior to the election, and shall be submitted to the electors of the City at the first available election for members of Congress, Mayor of New Orleans, or Governor of Louisiana, if the date of such election is not less than ninety days after the effective date of such ordinance, or at a special election called for that purpose, the date of which shall be held on the first available election date not less than ninety days after the effective date of the ordinance. The foregoing is not applicable to any such proposed privatization contract(s) valued at $5,000,000.00 (year 2001 U.S. dollars) or less.

(2) The decision to enter into any such contract(s) for privatization approved by a majority of the electors of the City voting on same shall become effective at the time and under the conditions fixed in the proposed privatization contract(s) so approved by a majority of electors.

Annotation: Act No. 768 of the 2003 Regular Session of the State Legislature, which amended R.S. 33:4159.10, established procedures for privatization of public sewerage and water drainage or water disposal or treatment facilities in municipalities having a population in excess of four hundred seventy-five thousand, in accordance with the most recent federal decennial census. The provisions of this act are consistent with this provision of the charter.

CHAPTER 4. CITY PLANNING COMMISSION

Section 5-401. Creation and Composition.

The City Planning Commission shall consist of nine members who are electors of and domiciled in the City, appointed by the Mayor with the approval of the City Council for a term of nine years, staggered so that the term of one member shall expire each year.

Annotation: Pursuant to the provisions of Section 10 of Ordinance No. 23,141 M.C.S., this section as written became effective on Tuesday, November 4, 2008.

Section 5-402. Functions.

The City Planning Commission shall:

(1) Prepare, adopt, amend, and recommend to the Council a twenty year Master Plan for the physical development of the City consistent with the requirements of Section 5-404. The Master Plan shall consist of a statement of development goals, objectives, and policies for the physical growth and development of the City, and shall include maps and a text setting forth principles, standards, and proposals. The Master Plan shall include, but not be limited to, the following elements: Vision, Goals, and Policy; Land Use; Transportation; Housing; Community Facilities and Infrastructure; and Historic Preservation. The elements are to be interrelated with each other and shall provide the overall guidance for city policy and priorities. The Land Use element

shall consist of text setting forth land use issues and policies, and a Future Land Use Map setting forth categories of allowable uses and density, for the City. The entire area of the City shall be addressed within the Master Plan, as well as those land areas outside of the Parish of Orleans under the control or ownership of the City.

(2) Prepare, adopt, amend and modify regulations governing the subdivision of land, including platting and replatting, which regulations shall provide for the proper arrangement of streets and public utilities; open spaces for light, air and recreational areas; space for vehicular parking; the sizes and shapes of lots in order to avoid congestions of population and to provide for the amenities of human habitation; and the manner and extent to which streets shall be paved and public utilities installed in such subdivisions, consistent with the provisions of this Charter.

(3) Prepare and recommend to the Council, all to be consistent with the Master Plan:

(a) Plats, together with revisions and amendments thereof, showing the exact location of lines of recommended new, extended, widened, or narrowed streets, and the estimated time within which the land needed for future street development as shown on the plat.

(b) The Official Map of the City and amendments thereto, upon which shall be shown all existing and established streets, recommended street lines, all streets or street lines located on final or recorded plats of subdivisions, and the location of existing or planned parks and other open spaces. Street locations on final or recorded plats of subdivisions shall constitute amendments to the Official Map and shall be placed thereon.

(c) A zoning ordinance and revisions and amendments thereof for the purpose of promoting the public health, safety, aesthetics, and general welfare of the City, and implementing the Master Plan, which ordinance may contain regulations with respect to the location, height, bulk, size of buildings and other structures; the size of yards, courts, and other open spaces; the density of population; and the use of buildings, structures and land for trade, industry, business, residence, or other purposes. The zoning ordinance shall include an official Zoning Map, and the ordinance and the map may be periodically amended by the City Council provided any amendments are consistent with the Master Plan in accordance with Section 5-404(3). The text, diagrams and maps in the Land Use Element of the Master Plan that address the location and extent of future land uses, and the zoning ordinance that implements those provisions, may also address urban form and design. They may differentiate neighborhoods, districts, and corridors, provide for a mixture of land uses and building types within each, and provide specific measures for regulating relationships between buildings, and between buildings and outdoor public areas, including streets, sidewalks, and other rights-of-ways.

(d) Plans for the clearance of slum areas, public housing developments, and the rehabilitation or redevelopment of blighted areas.

(e) Plans for the replanning, improvement, and reconstruction of neighborhood and community centers and of areas or districts destroyed or seriously damaged by fire, earthquake, hurricane, flood or other disaster.

(f) Such other studies as may be requested or directed by the Council.

(4) Prepare the capital improvement plan and assist the Chief Administrative Officer in the preparation of the annual capital budget. The capital improvement plan and the capital budget shall be consistent with the Master Plan.

(5) Prepare such studies as may be requested by the Mayor.

Section 5-403. Director and Staff.

The City Planning Commission may appoint a Director who shall serve at its pleasure. The Director shall be the executive officer of the Commission and shall be responsible for the supervision of the staff. The Commission may, subject to the provisions of this Charter, appoint such employees as it may deem necessary and may contract with planning experts, engineers, architects and other consultants for such services as it may require.

Section 5-404. Master Plan.

(1) *Preparation of the Master Plan.* The City Planning Commission shall prepare the Master Plan. Prior to completion of the Master Plan, the Commission shall hold at least one public meeting for each planning district or other designated neighborhood planning unit to solicit the opinions of citizens that live or work in that district or planning unit; it shall also hold at least one public hearing to solicit the opinions of citizens from throughout the community. In addition, it shall take affirmative steps to involve neighborhoods in master planning activities and comply with the requirements of any neighborhood participation program that the City, pursuant to Section 5-411, shall adopt by ordinance. Each public hearing or meeting shall be duly advertised in a newspaper of general circulation at least fifteen (15) but not more than (45) forty-five days in advance. Upon completion of the public meetings and hearing(s) and completion of the Master Plan, and following the adoption of the plan by resolution, the Commission shall forward the Master Plan to the City Council for adoption by ordinance. Within ninety (90) days of its receipt, the Council shall adopt the Master Plan, reject it, or propose modification. If it rejects the plan, or proposes any modification, the Council shall refer it to the Commission for public hearing and comment. The City Planning Commission shall consider and provide a recommendation to the City Council on the rejection or modification within (90) ninety days of receipt from the City Council. The Council shall take final action within ninety (90) days of receipt of the recommendation from the City Planning Commission. Should the City Council fail to act on the Master Plan as required by this section after its submission by the Planning Commission, or after a resubmission by the Commission after the Council has modified or rejected the Plan, the Master Plan initially submitted to the Council by the Commission shall be deemed adopted by the Council. Following the adoption by the City Council of that part of the Master Plan relating to the Major Street Plan, the Commission shall by resolution adopt and may so modify or extend regulations governing the subdivision of land.

(2) *Publication and Filing.* Upon adoption by the Council, certified copies of the plan and regulations and the ordinances by which they were adopted shall be filed with the Clerk of Council and with such offices as may be required by applicable state or municipal law. Regulations governing the subdivision of land shall be published once after adoption in the official journal.

(3) *Legal Effects of Master Plan.*

(a) Following adoption of the Master Plan, no public project or facility and no public utility, whether publicly or privately owned, shall be authorized or significantly altered except in conformity with the adopted Master Plan.

(b) The Master Plan prepared by the Commission and adopted by the Council shall include as a part of the Land Use Element a table specifying the relationship between the land use designation and the zoning classification included in the Land Use Element of the Master Plan and reflected on the Future Land Use Map. The comprehensive zoning ordinance shall be simultaneously amended to include said table. Said table shall be amended, or updated as required, to

accommodate amendments, or revisions, to the comprehensive zoning ordinance or Land Use Element of the Master Plan.

(c) All land development regulations and amendments thereto, including amendments to the zoning ordinance and the zoning map, as well as all other Land Use Actions, including but not limited to, preliminary or final approval of a subdivision plan; site plan; approval of a planned unit development, or similar site specific development plan; approval of conditional use; granting of a variance, or a decision by local government to construct a capital improvement; and/or acquire land or community facilities, including transportation facilities, shall be consistent with the Master Plan adopted by the City Council.

(d) A Land Use Action is consistent with the Master Plan if the Land Use Action:

(i) Furthers, or at least does not interfere with, the goals, policies, and guidelines, including design guidelines, that are contained in the Land Use Element of the Master Plan.

(ii) Is compatible with the proposed future land uses, densities, and intensities designated in the Land Use Element of the Master Plan.

(4) *Mandatory Review of the Plan and Amendments to the Plan.* At least once every five years, but not more often than once per calendar year, and at any time in response to a disaster or other declared emergency, the Commission shall review the Master Plan and shall determine, after one or more public hearings, whether the plan requires amendment or comprehensive revision. If amendment or comprehensive revision is required, the Commission shall prepare and recommend amendments or comprehensive revisions and readopt the plan in accordance with the procedures of this section. The Commission shall hold at least one public meeting for each planning district or other designated neighborhood planning unit affected by amendments or revision in order to solicit the opinions of citizens that live or work in that district or planning unit; it shall also hold at least one public hearing to solicit the opinions of citizens from throughout the community. In addition, it shall comply with the requirements of any neighborhood participation program that the City, pursuant to Section 5-411, shall adopt by ordinance. Each public hearing or meeting shall be duly advertised in a newspaper of general circulation at least fifteen (15) but not more than (45) forty-five days in advance. Upon completion of the public hearings and meetings and following the adoption by resolution of the amendment or comprehensive revision, the Commission shall forward the amendment or revision to the City Council for adoption by ordinance. Within ninety (90) days of its receipt, the Council shall adopt the amendment or revision to the Master Plan, reject the amendment or revision, or propose modification. If it proposes any modification, the Council shall refer it to the Commission for public hearing and comment. The City Planning Commission shall consider and provide a recommendation to the City Council on the modification within ninety (90) days of receipt from the City Council. The City Council shall take final action on the proposed amendment or revision within ninety (90) days of receipt of the recommendation from the City Planning Commission. Should the City Council fail to act within the deadlines established by this section, the proposed amendments or revisions to the Master Plan are deemed denied.

(5) *Legal Effect of Subdivision Regulations.* All proposed subdivisions of land to be made after the adoption of the regulations governing subdivision of land shall be submitted to the Commission for its approval for conformity with the subdivision regulations, and Master Plan, and no such proposed subdivision shall be made or recorded unless approved by the Commission. Approval of a plat of a subdivision shall not be deemed an acceptance by the City of any street or other open space shown on the plat.

(6) The City shall make adequate appropriations to the Commission to implement the mandate of this section.

(M.C.S., Ord. No. 30397, § 4, 7-10-25, eff. 1-1-26)

Section 5-405. Planned Street Lines and the Official Map.

The Council, upon recommendation of the Commission, and consistent with the Master Plan, may by ordinance do the following:

(1) Adoption. The Council, upon the recommendation of the Commission, may by ordinance adopt:

(a) Plats showing the exact location of planned or mapped lines of street widenings and extensions or of future streets.

(b) An Official Map showing all public streets then existing and established by law; all planned streets or street lines previously adopted under this Section; all streets or street lines as located on final or recorded plats of subdivisions as previously approved by the Commission; and all existing or planned parks and other public open spaces.

(2) Notice to Owner of Record. No plat showing the location of a planned or mapped street shall be adopted before Notice shall have been sent by registered mail to the owners of record of the land on or abutting the future street lines designated upon the plat.

(3) Legal Effect.

(a) Upon the adoption of any plat showing the location of a planned or mapped street, the owners of the property within the lines of such planned or mapped street shall for the period specified in the ordinance be prohibited from erecting any structure within such lines. The owner of any property so affected shall be entitled to appeal to the Board of Zoning Adjustments under the same procedure described for appeals in zoning cases.

(b) After the adoption of the Official Map or any plat showing the lines of planned or mapped streets, no change in any street shall be made by the Council until such proposed change shall have been submitted to the Commission for its approval or disapproval for conformity with the Official Map. Pending the adoption of the Official Map, the Council shall not vacate, narrow, or extend any existing street without having secured the approval of the Commission thereon.

(c) The adoption of any plat showing the location of a planned or mapped street or the placing of any street or street line on the Official Map shall not, in and of itself, constitute or be deemed to constitute the opening or establishment of any street nor the taking or acceptance of any land for street purposes.

(4) Amendment of Official Map. New streets and street locations on recorded plats of subdivisions as approved by the Commission or on plats adopted by the Council shall be forthwith placed upon the Official Map as additions or modifications thereto, when the Council accepts the dedication of the streets and street locations shown thereon. Other amendments to the Official Map may be made by the Council at any time after having secured the advice of the Commission.

Section 5-406. Zoning Ordinance.

(1) Except when adopted pursuant to a zoning plan proposed and recommended by the Commission, the City Council shall refer all proposed zoning ordinances and amendments to the Commission for its recommendations. Any zoning ordinance or amendment adopted by the Council must be consistent with the Master Plan. Inconsistent ordinances and amendments shall be null and void as provided by Sec. 5-404(3)(c).

(2) Prior to making recommendations on any zoning ordinance or amendment thereto, and prior to adopting regulations governing the subdivision of land, the Commission shall hold a public hearing thereon at which interested persons shall be afforded a reasonable opportunity to be

heard. Notice of the time and place of the hearing shall be published at least three times in the official journal.

(3) Simultaneous with any amendment to the Master Plan, the Commission shall review the comprehensive zoning ordinance and shall determine, after one or more public hearings, whether the ordinance requires revision and amendment.

(4) The City shall make adequate appropriations to the Commission to implement the mandate of this section.

Annotation: Pursuant to the provisions of Section 10 of Ordinance No. 23,141 M.C.S., this section as written became effective on Tuesday, November 4, 2008.

Section 5-407. Approval of the Commission.

When under this Charter the approval of the Commission is required of any proposal, the approval shall be by the affirmative vote of a majority of the members of the Commission. Should the Commission fail to act within ninety (90) days of the submission of the proposal to the Director of the Commission, its approval shall be presumed unless the person, governing authority, office, department, board or commission submitting the proposal shall agree to a longer period of time for consideration by the Commission. In the case of amendments to the zoning ordinance, the Commission shall report its findings within a reasonable period of time, to be fixed by ordinance, without a presumptive approval being granted.

Section 5-408. Board of Zoning Adjustments.

(1) Composition. There shall be attached to the Commission a Board of Zoning Adjustments to consist of seven members who shall be domiciled in and electors of the City, appointed by the Mayor with the approval of the Council for a term of five years, staggered so that the term of one or two members shall expire each year. Neither the Director nor any member of the Commission shall be a member of the Board. The Mayor may, by Executive Order approved by the Council in accordance with the procedures established in Section 9-201(2) of this Charter, reassign or attach the functions of the Board to another department or board within the Executive Branch.

(2) Functions. The Board shall:

(a) Hear and determine appeals from applicants who have been refused building permits because of a violation or conflict with the zoning ordinance or the official map of the City.

(b) Hear and decide appeals where error is alleged in any order, requirement, decision, or determination made by an administrative official in the enforcement of the zoning ordinance of the City.

(c) Have the power to permit variations from the zoning regulations in classes of cases or situations and in accordance with the principles, conditions, and procedures specified in and subject to the limitations imposed by the zoning ordinances of the City.

Annotation: Pursuant to the provisions of Section 10 of Ordinance No. 23,141 M.C.S., this section as written became effective in November 2008.

Section 5-409. Orientation and Continuous Education Training for Planning Commission and Board of Zoning Adjustments Members.

(1) *Training.* Each Planning Commission and Board of Zoning Adjustments member shall attend a minimum of six hours of orientation training concerning the duties and responsibilities of the Planning Commission, or Board of Zoning Adjustments, either prior to taking office or no later than one year after office is assumed. All training shall be approved by, and under the supervision of, the City Planning Commission.

(2) *Continuing Education.* All members of the City Planning Commission and the Board of Zoning Adjustments shall receive within each calendar year at least six hours of continuous education in any of the subjects listed in subsection (3) of this section. All training shall be approved by, and under the supervision of, the City Planning Commission.

(3) *Education Subjects.* The subjects for the education required by subsections (1) and (2) of this section shall include, but not be limited to, the following: land use, land use planning, land use law, zoning, transportation, community facilities, historic preservation, ethics, public utilities, parliamentary procedure, public hearing procedure, economic development, housing, public buildings, land subdivision, and powers and duties of the Planning Commission and Board of Zoning Adjustments.

(4) *Removal from Position.* Members of the Planning Commission and Board of Zoning Adjustments shall be subject to removal by a majority vote of the members of their respective Commission or Board if they fail to complete the requisite number of hours of orientation training and continuing education within the time allotted in this section.

(5) *Validity of Decisions.* A failure of one or more members of the Planning Commission or Board of Zoning Adjustments to complete the orientation training or continuing education requirements shall not effect, impact, or invalidate a decision of the Commission or Board.

Section 5-410. Other Functions.

Functions not specifically assigned to the Commission by this chapter may be assigned to the Commission or reassigned by an Executive Order of the Mayor approved by the Council in accordance with the procedures established in Section 9-201(2) of this Charter.

Section 5-411. Neighborhood Participation.

The City shall establish by ordinance a system for organized and effective neighborhood participation in land use decisions and other issues that affect quality of life. It shall provide for timely notification to a neighborhood of any proposed Land Use Action affecting the neighborhood; it shall also provide the opportunity for meaningful neighborhood review of and comment on such proposals. In addition, it shall provide the opportunity for meaningful neighborhood participation in the formulation of the Master Plan or any amendment thereto.

Annotation: Pursuant to the provisions of Section 10 of Ordinance No. 23,141 M.C.S., this section as written became effective in May 2010.

Section 5-412. Definitions.

For purposes of this Article:

"Future Land Use Map" means a map in the Land Use Element of the Master Plan that sets forth categories of allowable land uses and density for the purpose of directing the future development and redevelopment of private and public property in the City

"Land Use Action" means the preliminary or final approval of a zoning map amendment, a zoning ordinance text change, subdivision plat, site plan, planned unit development, or conditional use; the granting of a variance, adoption of a development agreement, or issuance of a certificate of appropriateness; a decision by the City or any of its administrative authorities to construct a capital improvement, acquire land for community facilities, including transportation facilities, or for redevelopment. Approval as used in this paragraph includes approval subject to conditions.

"Zoning Map" means the Official Zoning District Maps adopted with the New Orleans Comprehensive Zoning Ordinance, setting forth the boundaries of each land use designation and showing authorized land uses and densities for such uses within each designated area.

Annotation: Pursuant to the provisions of Section 10 of Ordinance No. 23,141 M.C.S., Sections 5-402, 5-403, 5-404, 5-405, 5-406, 5-407, 5-409, 5-410 and 5-412 of this chapter became effective thirty-six months from the date of the election on these amendments (Tuesday, November 4, 2008), or once the Master Plan and the Comprehensive Zoning Ordinance under revision at that time are completed and adopted by the City Planning Commission, whichever is sooner.

CHAPTER 5. PUBLIC LIBRARY BOARD

Section 5-501. Composition.

The Public Library Board shall consist of electors who are domiciled in the City and who

shall be appointed by the Mayor with the approval of the Council for terms of nine years, so arranged that the term of one member shall expire each year.

Section 5-502. Functions.

The Board shall:

(1) Control and provide for the administration of the libraries, reading rooms, bookmobiles and related facilities.

(2) Purchase directly or through the Department of Finance books, pamphlets, films, maps, recordings, periodicals, prints and pictures, computer hardware, software, and such materials, equipment, and other property as may be necessary for the performance of its functions.

(3) Develop library facilities to serve the needs and interests of the public.

(4) Maintain the City archives.

(5) Determine the purposes for which any moneys or property derived from any trust or donation made for library purposes shall be expended or used, subject only to the terms of such trust or donation.

(6) Perform such other duties as are required by this Charter or assigned in writing by the Mayor.

Section 5-503. Librarian.

The Board shall appoint a professional Librarian who shall serve at its pleasure and who shall be in charge of the libraries and other facilities under the jurisdiction of the Board. The Librarian shall meet the qualifications required of Parish Librarians, as specified under applicable state and municipal law.

CHAPTER 6. NEW ORLEANS AVIATION BOARD

Section 5-601. Composition.

The New Orleans Aviation Board shall consist of nine members who shall be appointed by the Mayor with the approval of the Council for terms of five years, so arranged that the term of one or two members shall expire each year.

Section 5-602. Functions.

The Board shall:

(1) Administer, operate and maintain all municipal airports and aviation facilities.

(2) Represent the City in all technical matters pertaining to aeronautics in consultation with state, national or international aeronautics officers or agencies.

(3) Provide for the regulation and policing of municipal airports and aviation facilities in accordance with applicable state and municipal law.

Section 5-603. Aviation Director.

The Board may appoint an Aviation Director who shall serve at its pleasure and who shall be the executive officer of the Board.

CHAPTER 7. VIEUX CARRÉ COMMISSION

Section 5-701. Composition.

There shall be a Vieux Carré Commission consisting of nine electors, domiciled in the City, appointed by the Mayor with the approval of the Council, for a term of four years, as provided by Article 14, Section 22A of the Louisiana Constitution of 1921, and retained by Article 6, Section 17 of the Louisiana Constitution of 1974. At least one Mayoral at-large appointment shall be domiciled within the area bounded by the Mississippi River, the downtown side of Iberville Street, the river side of North Rampart Street and the uptown side of Esplanade Avenue. In selecting persons for appointment to at-large positions on the Vieux Carré Commission, the Mayor shall take such steps as are necessary to ensure that persons from all areas of the City are given due consideration for such appointments.

Section 5-702. Functions.

The Commission shall:

(1) Preserve those buildings in the Vieux Carré section of the City as defined by the Constitution, having an historical or architectural value.

(2) Make such recommendations to the Council as it deems appropriate concerning measures for the preservation of the Vieux Carré.

Section 5-703. Enforcement.

The Council shall by ordinance or otherwise carry into effect provisions of the Constitution and this chapter relating to the Vieux Carré section and shall provide for the enforcement of such provisions by appropriate legal proceedings including resort to injunctive process.

CHAPTER 8. AUDUBON COMMISSION

Section 5-801. Audubon Commission.

The Audubon Park Commission shall hereinafter be known as the Audubon Commission and shall be continued in existence from January 1, 1996, the effective date of this amendment, with the same powers, duties, and functions as enjoyed by the Commission previously. The powers, duties, functions, administration, and operation of the Commission shall be as provided for in this chapter of the Charter and other applicable state and municipal law.

Section 5-802. Powers, Duties, and Functions.

The powers, duties, functions, administration, and operation of the Audubon Commission shall be as provided in this chapter to administer, operate, and maintain facilities administered by the Commission, including Audubon Park, the Aquarium of the Americas, Woldenberg Riverfront Park, the Species Survival Center, the Louisiana Nature Center and other educational, cultural and recreational facilities, and to perform such other duties as are provided by applicable law, subject to the provisions of the City's Master Plan, its land use regulations, and its permitting authority. The Commission shall not accept, assume, or exercise any power or function which relates to taxation or the police power or which imposes a financial obligation on the city derived from any state law unless approved by ordinance of the Council.

Section 5-803. Administration.

(1) Any capital or operating funds appropriated by the City Council to the Commission in accordance with the provisions of this Charter shall be administered by the Commission subject to all provisions of the Charter applicable to such appropriations. All other funds received by the Commission, including but not limited to funds generated from the operation of facilities by the Commission, millage revenues, donations, and federal, state, or local funds, shall be administered solely by the Commission in accordance with the procedures specified in this section.

(2) The Commission shall prepare and transmit its operating and capital budgets annually to the Mayor and Council no later than the first day of December of each year.

(3) The Commission shall prepare and transmit to the Mayor and Council an independent audit prepared by a Certified Public Accountant or firm of Certified Public Accountants within 120 days of the end of its fiscal year. Notwithstanding the preparation and transmittal of such an audit by the Commission, the Council may include the Commission in the independent audit authorized pursuant to Section 6-107 of this Charter.

(4) The Commission shall comply with all state and municipal public bid laws dealing with the procurement and disposition of property.

(5) The Commission may accept any trust or conditional donation without the necessity of review by the Board of City Trusts or its successor, provided that the Commission shall not accept any trust or conditional donation which imposes a financial obligation unless the acceptance is approved in accordance with procedures established by ordinance or in accordance with procedures established in this Charter for the acceptance of a trust or conditional

donation. In no event shall acceptance of any trust or conditional donation by the Commission impose any financial obligation on the City unless approved as provided by this section.

(6) The Commission may retain counsel, whose duties may include the performance of notarial work for transactions required to be in authentic form.

CHAPTER 9. NEW ORLEANS ALCOHOLIC BEVERAGE CONTROL BOARD

Section 5-901. Composition.

The New Orleans Alcoholic Beverage Control Board shall consist of seven members who are electors of and domiciled in the City, one appointed by each member of the Council, for terms of four years. The terms of office of the members of the Board shall expire on June thirtieth of the year that the Mayor and Councilmembers take office.

Section 5-902. Functions.

The Board shall:

(1) Hear and decide cases for suspension or revocation of City alcoholic beverage permits.

(2) If provided by ordinance, hear and decide appeals from persons who have been denied alcoholic beverage permits by an administrative official in the enforcement of applicable state or municipal laws.

The Board shall have the right to administer oaths, subpoena witnesses and compel the production of books and papers in connection with its activities.

The Board may employ necessary staff in accordance with applicable Civil Service law and subject to appropriations by the Council. The Board's operation and procedures shall be governed by Chapter 1 of Article IX of this Charter and by applicable state and municipal law.

CHAPTER 10. NEW ORLEANS RECREATION DEVELOPMENT COMMISSION

Section 5-1001. Composition.

The New Orleans Recreation Development Commission shall consist of thirteen members who are electors of and domiciled in the City appointed by the Mayor with the approval of the City Council. Terms for members of the Commission shall be for five years initially. Not more than thirty days from the effective date of this section, the Council shall adopt an ordinance providing for terms of Commission members to be staggered, commencing on the expiration of the initial five year terms.

Not more than thirty days from the effective date of this Section, the City Council shall adopt an ordinance providing for the composition of the Commission, including the requisite qualifications of its members. In the development of said ordinance, the Council shall consider factors such as diversity, geographic location, relevant skills and any other expertise beneficial to the operation of the recreation facilities and programs for the City.

Section 5-1002. Powers, Duties, and Functions.

The powers, duties, functions, administration, and operation of the New Orleans Recreation Development Commission shall be as provided in this chapter and as may be further provided for by ordinance of the Council and any Cooperative Endeavor Agreement that may be entered into for that purpose. The Commission shall not accept, assume, or exercise any power or function which relates to taxation or the police power or which imposes a financial obligation on the City derived from state law unless prior approved by ordinance of the Council.

Annotation: Powers, Duties, and Functions of the New Orleans Recreation Development commission are set forth in Ordinance No. 24,126 M.C.S., adopted on September 2, 2010.

Section 5-1003. Administration.

(1) Any capital or operating funds appropriated by the City Council to the former Department of Recreation or to the Commission in

accordance with the provisions of the Charter shall be administered by the Commission subject to all provisions of the Charter applicable to such appropriations. All other funds received by the Commission, including funds generated from the operation of facilities and programs by the Commission, millage revenues, donations, and federal, state or local funds, shall be administered solely by the Commission within the procedures specified in this section.

(2) The Commission shall operate on a fiscal year schedule consistent with that of the City and shall prepare and transmit its operating and capital budgets to the Mayor and Chief Administrative Officer in accordance with Section 6-101 and Section 6-104 of this Charter.

(3) The Commission shall prepare and transmit to the Mayor, Council and Inspector General of the City of New Orleans an independent audit prepared by a Certified Public Accountant or firm of Certified Public Accountants within 120 days of the end of its fiscal year. Notwithstanding the preparation and transmittal of such an audit by the Commission, the Council may include the Commission in the independent audit authorized pursuant to Section 6-107 of this Charter.

(4) Except for any private property the use of which is acquired through lease or other temporary agreement, all property acquired for or by the Commission, or that is under the administrative control of the Commission shall be property of the City. The Commission shall comply with the provisions of this Charter and all state and municipal public bid laws related to the acquisition and/or disposition of property.

(5) The Commission may accept any trust or conditional donation without the necessity of review by the Board of City Trusts or its successor(s), provided that the Commission shall not accept any trust or conditional donation which imposes any financial obligation on the City unless the acceptance is approved in accordance with procedures established in this Charter for the acceptance or any trust or conditional donation. In no event shall acceptance of any trust or conditional donation impose any financial obligation on the City unless approved as provided by this Charter.

(6) The Commission may retain counsel, whose duties may include the performance of notarial work for transactions required to be in authentic form.

(7) All meetings of the Commission and any of its committees shall be conducted in accordance with the Louisiana Open Meetings Act, R.S. 42:4.1, *et seq*. All documents of the Commission shall be public records available to the public in accordance with the Louisiana Public Records Act, R.S. 44:1 et seq.

Historical Annotation: In accordance with Section 9-201 of the Home Rule Charter of the City of New Orleans, the Charter was amended following an election on Saturday, October 2, 2010, according to the terms set forth in Ordinance No. 23,998 M.C.S. The duties and responsibilities previously performed by the Department of Recreation and one of the duties of the Department Parks & Parkways were transferred to the New Orleans Recreation Development Commission.

CHAPTER 11. HUMAN RIGHTS COMMISSION

Section 5-1101. Composition.

The Human Rights Commission shall consist of fifteen members who are electors of and domiciled in the city, eight appointed by the Mayor with the approval of the City Council and seven appointed by the City Council from one nomination to be made by each Councilmember. Of the fifteen members first appointed, five shall be appointed for a term of one year, five for two years, and five for three years. Thereafter, all members of the Commission shall be appointed for terms of three years..

Section 5-1102. Powers, Duties, and Functions.

The Human Rights Commission shall safeguard all individuals in the City of New Orleans from discrimination, and its powers, duties, and functions shall be as provided by applicable state and municipal law.

Section 5-1103. Staff.

The Human Rights Commission may employ staff as provided by applicable state and municipal law.

ARTICLE VI. FINANCIAL ADMINISTRATION PROCEDURES

CHAPTER 1. BUDGETING AND AUDITING

Section 6-101. Revenue Estimating Conference.

(1) The Revenue Estimating Conference shall be composed of the Mayor, who shall serve as chair, the Chief Administrative Officer, the Director of Finance, a member of the Council selected by the Council, and a faculty member of a college or university in New Orleans who has expertise in forecasting revenues or in a related field. The faculty member shall be appointed by the Mayor and confirmed by the Council to serve for a term concurrent with that of the Mayor and shall be subject to removal under the same procedure as provided in this Charter for removal of board members.

(2) The conference shall prepare and publish initial and revised estimates of money which is to be recognized for the current and next fiscal year by the City general fund and all other City operating funds, such estimates to be based upon standards promulgated by the Governmental Accounting Standards Board and which shall be known as the "official forecast." The conference shall meet at least quarterly. The Mayor may call meetings of the conference at any time in accordance with applicable state and municipal law and shall call meetings when requested to do so by Motion of the City Council. In each estimate, the conference shall designate the money which is nonrecurring or will recur only in a limited number of years. Conference decisions to adopt these estimates shall be by a unanimous vote of its members. The most recently adopted estimate, as defined above, shall be the official forecast and shall constitute a recommendation to the Mayor and City Council of the amount of revenues to be included in the operating budget for the year for which the forecast is made.

Section 6-102. Preparation of the Annual Operating Budget.

(1) The Chief Administrative Officer shall annually, and not later than the first day of August, make available sufficient data relating to the current and preceding year's appropriations and expenditures for each fund to each office, department, board, the Council, pension and retirement system, trust proceeds fund, debt service fund or other entity which is receiving or seeks to receive an appropriation from the Council payable from any operating fund of the City or which expends City funds. All data required under this section shall be in a format which adheres to generally accepted accounting principles as defined by the Governmental Accounting Standards Board or any successor organization, except as provided in Section 6-103 (1).

(2) Any entity which seeks an appropriation from any operating fund of the City shall submit detailed data to the Chief Administrative Officer in accordance with a schedule prescribed by the Chief Administrative Officer for compilation and recommendations for review by the Mayor prior to the Mayor's submission of the proposed budget to the City Council.

(3) The Chief Administrative Officer, after consulting with the Council and the heads of offices, departments and boards, shall prepare a preliminary budget for the consideration of the Mayor. The preliminary budget shall include all budget requests and the recommendations of the Chief Administrative Officer with respect to each request, an estimate of revenues from each source, and a statement of the total estimated revenues and total recommended expenditures for each operating fund.

(4) The Mayor shall review the preliminary budget and may hold either formal or informal hearings thereon, at which the heads of each office, department or board may be given an opportunity to be heard with respect to their requests. The Chief Administrative Officer shall

then prepare the operating budget under the direction of the Mayor. Such budget shall set forth each item of expenditure recommended by the Mayor and estimates of revenues which will be available for expenditure. If the estimate of any revenue differs by more than three percent from the estimate of that revenue in the official forecast, information on the difference and an explanation thereof shall be submitted to the Council with the operating budget. Where the estimated revenues from existing sources are insufficient to meet the recommended expenditures, the Mayor shall provide recommendations of new sources of revenues to balance the budget. The operating budget shall be presented to the Council with a message from the Mayor outlining reasons for the requested appropriations and shall be accompanied by proposed revenue and operating budget ordinances to give effect to the budget as presented. The mere enumeration of a function, power, or activity in this Charter shall not, in and of itself, mandate that the Council appropriate specific funds with respect thereto.

(5) The proposed ordinance for the operating budget shall provide lump sum appropriations under the following classes for each budget unit:

(a) Personal services of officers and employees.

(b) Other operating expenses.

(c) Debt service.

(d) Such other classes as the Mayor may annually establish.

(6) The proposed ordinance for the operating budget shall authorize the transfer of all amounts authorized by the capital budget ordinance from the general fund and any special revenue funds to the capital projects funds to be financed from such transfers.

(7) There shall be appended to the operating budget a statement of the transactions of each of the pension and retirement systems, expendable trust funds, and debt service funds, for the preceding year, for the current year to June thirtieth, anticipated transactions for the remainder of the current year and for the ensuing fiscal year, and a projection of anticipated revenues and expenditures of the City, including all dedicated and undedicated funds and the funds of each unattached board and commission for the next five fiscal years.

(8) The operating budget and the proposed revenue and operating budget ordinances shall be submitted to the Council not later than the first day of October. Sufficient copies of the operating budget shall be supplied by the Mayor to the Clerk of Council for distribution to members of the Council and to interested citizens.
(M.C.S., Ord. No. 29370, § 4, 3-9-23, eff. 1-1-24)

Section 6-103. Administration and Enforcement of the Operating Budget Ordinance.

(1) The adoption of the operating budget ordinance shall constitute an appropriation of the sums specified therein for the purposes and from the funds indicated. Such appropriation shall be considered valid only for the year for which made, and any part of such appropriation which is not encumbered or expended shall lapse at the end of the year.

(2) Following the adoption of the operating budget ordinance, the head of each office, department and board shall submit to the Chief Administrative Officer schedules showing the expenditures anticipated for each quarter of the fiscal year.

(3) The approval of an expenditure schedule by the Chief Administrative Officer shall constitute a budgetary allotment which shall be binding upon such office, department or board, and the Department of Finance shall approve or issue no requisition, purchase order, voucher or check that is not in accordance with such allotment.

(4) The allotments herein provided may be altered at any time by the Chief Administrative Officer upon his own initiative or at the request of the head of an office, department or board and shall be altered at the direction of the Mayor. The Mayor shall direct appropriate revisions in allotments to keep expenditures within the revenues received or anticipated.

(5) The Director of Finance and his surety shall be liable for any moneys withdrawn from any operating fund other than in accordance with the operating budget ordinance and allotments.

Section 6-104. Preparation of the Capital Program and Capital Budget.

(1) The City Planning Commission annually and not later than the fifteenth day of September shall prepare and submit to the Mayor a capital program.

(2) Each office, department, board, the Council, pension and retirement system, expendable trust fund, and debt service fund or other entity annually shall present to the City Planning Commission, in accordance with a schedule prescribed by the Chief Administrative Officer, a list of all the expenditures for permanent physical improvements which it is making or believes should be made in conjunction with its work during the next five years.

(a) Each list shall show the projects in process of construction or acquisition, their present status, the amounts spent or to be spent thereon to the close of the current year, the work which is required to complete each undertaking with a schedule for such completion, the amount and source of the moneys spent, and the amount and source of moneys required during each of the five succeeding years to complete each undertaking.

(b) Each proposal shall contain a justification of the project, its estimated cost, method of financing, the estimated cost of annual operation and maintenance, the proposed dates of initiation and completion of the project, the financial requirements during each of the five ensuing years and the source of such moneys.

(3) The Chief Administrative Officer shall furnish to the Commission a statement of the moneys likely to be available from the General Fund and special revenue funds and the amount of bonds which the Mayor believes it would be proper for the City to issue during each of the next five years. The Commission shall then prepare the capital program for the next five years, in which it shall recommend the projects to be undertaken within the period in priority order and shall state the sources of moneys to be used for each project during each year of the period.

(4) Upon receipt of the capital program from the Commission, the Mayor shall prepare a message to the Council setting forth recommendations with regard thereto. The Chief Administrative Officer, under the direction of the Mayor, shall prepare a proposed capital budget ordinance for the first year covered by the capital program. Not later than the first day of October, the Mayor shall submit to the Council the capital program as prepared by the Commission, the capital budget message, and the proposed capital budget ordinance.
(M.C.S., Ord. No. 29370, § 4, 3-9-23, eff. 1-1-24)

Section 6-105. Administration and Enforcement of the Capital Budget Ordinance.

(1) The adoption of the capital budget ordinance shall constitute an appropriation of the sums specified therein for the purposes and from the funds indicated. Such appropriation shall be considered valid only for the year for which made, and any part of such appropriation which is not encumbered or expended shall lapse at the end of the year. Officers authorized to make expenditures under the capital budget ordinance may proceed without other authority from the Council to incur obligations or make expenditures for proper purposes to the extent that the moneys are available.

(2) Accounting officers of the City shall be responsible for the enforcement of the capital budget ordinance to the same extent as the Director of Finance is responsible for the enforcement of the operating budget ordinance.

Section 6-106. Fiscal Year.

The fiscal year of the City shall be the calendar year unless changed by ordinance. If the fiscal year is modified, the time limits specified in this

Chapter shall be modified by the ordinance to conform to substantially the same general time schedule as that specified herein.

Section 6-107. Encumbrance Defined.

For the purpose of this Charter, the term "encumbrance" shall mean a commitment for expenditure of an appropriation evidenced by a valid requisition properly approved.

Section 6-108. Independent Audit.

(1) The Council shall execute an agreement with a Certified Public Accountant or firm of Certified Public Accountants for the purpose of securing an audit of the accounts of the City and may execute such an agreement for the purpose of securing an audit of the accounts of any office or public body that receives or expends City funds, including non-municipal offices and public bodies.

(2) As soon as practicable and in no event later than six months after the close of the fiscal year, the accountant or accountants shall submit to the Council a report upon the transactions of the year just completed.

(3) No certified public accountant selected to make the audit or any of the partners of the firm of certified public accountants selected to make the examination shall be a member, an officer, or an employee of a department, board or other agency of the City.

(4) If the person or firm selected to make the audit informs the Council that any office or entity receiving or expending City funds has failed or refused to provide information or permit inspections necessary or reasonably desirable for completion of the audit, the City Council may issue and the City Attorney shall promptly seek enforcement of subpoenas to compel the requested inspection or information.

CHAPTER 2. FUND ADMINISTRATION

Section 6-201. Operating Funds.

(1) Except as otherwise provided in this Chapter, all moneys of the City held by the Director of Finance or other officers for the purpose of defraying any operating expense shall constitute "operating funds."

(2) The Director of Finance shall establish and maintain the following operating funds:

(a) The General Fund. Except as otherwise provided by this Charter or applicable state law, all taxes, licenses, fees, and other receipts, revenues and income of the City shall be deposited daily to the credit of the "General Fund of the City of New Orleans".

(b) The Savings Fund.

(i) Except as otherwise provided by this charter or applicable state law, a percentage of the City's annual general fund shall be appropriated by the City Council and deposited into the "Savings Fund of the City of New Orleans" pursuant to the following formula:

(A) When none of the conditions in Section 6-201(2)(b)(ii)(A) through (C) has been met, the percentage required to be appropriated shall be the difference between the existing balance of the Savings Fund and 5% of the average of the previous five years of actual general fund expenditures as certified by the Revenue Estimating Conference at its first meeting after the submission of the independent audit as provided in Section 6-108.

(B) When one or more of the conditions in Section 6-201(2)(b)(ii)(A) through (C) has been met, the percentage required to be appropriated shall be zero.

(ii) Appropriations from the Savings Fund may only be made by the City Council upon an affirmative vote of two-thirds of all its members and only when one or more of the following conditions have been met:

(A) a declaration by the City Council by a two-thirds vote of all of its members of the

existence of an emergency due to act of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property;

(B) a determination by the City Council by a two-thirds vote of all of its members that a significant loss in city revenues due to an economic downturn of serious proportions has occurred or is occurring; and/or

(C) a mandate by the United States Government that has been determined by the City Attorney to be in accordance with law.

(c) Other Operating Funds. The Council shall by ordinance establish such other operating funds as are required to comply with the provisions of any law, contract or donation under which the City receives moneys or to comply with generally accepted accounting principles.

(d) The Housing Trust Fund.

(i) An amount not less than two percent of the general fund operating budget for that year, adopted pursuant to Section 3-115(2), shall be appropriated annually by the City Council and deposited into the "Housing Trust Fund"; provided, however, that the Council, by unanimous vote of a quorum, may appropriate less than two percent in the event of a declared state of emergency due to act of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property. The minimum funding requirements under this Section may be satisfied from any revenue source other than funding received through federal and state housing-related grants and programs.

(ii) All funds maintained in the Housing Trust Fund shall be used exclusively for the purposes of ensuring the availability of affordable housing for low- to moderate-income residents within the City.

(iii) The Council may by ordinance establish restrictions on expenditures from the Housing Trust Fund that further the purposes thereof.

(3) No moneys shall be disbursed from operating funds except in accordance with an appropriation made by the operating budget ordinance and allotments thereunder, the capital budget ordinance as provided for in this Charter, or applicable state and municipal law. No operating expense shall be paid from any fund other than an operating fund, except to the extent specifically authorized by ordinance to be paid from other funds.

(4) The Council may authorize by ordinance the creation of petty cash accounts to permit payment for small purchases which are impractical to pay by check. No petty cash account shall be for a greater amount than is necessary to finance transactions for one month. Officers or employees having custody of petty cash accounts shall be bonded, shall use the funds only for public purposes, shall submit appropriate documentation for all expenditures, and shall comply with any requirements imposed by ordinance.
(M.C.S., Ord. No. 29864, § 4, 3-21-24, eff. 1-1-25)

Section 6-202. Pension and Retirement Funds.

(1) All funds maintained for the purpose of paying any pension or retirement benefits, payments or refunds, or for providing any reserve or accumulation with respect thereto, shall constitute "pension and retirement funds."

(2) No payments shall be made from any pension or retirement fund for any purpose other than to pay benefits authorized to be paid from such funds; to make investments as may be provided by law; or to refund contributions to the members of such funds. All operating expenses of pension and retirement systems shall be payable only from operating funds.

(3) The governing authority of any pension or retirement fund may arrange with the Board of City Trusts for the administration of the reserves held by such pension or retirement fund.

Section 6-203. Debt Service Funds.

(1) All moneys or securities held for the purpose of paying the principal, sinking fund installments, interest, or other valid expenses in connection with the servicing or payment of any obligation which becomes due and payable more than one year from its date shall constitute "debt service funds."

(2) The Director of Finance and other officers, departments or boards when required by law or by the terms of any bond, note, certificate or other evidence of indebtedness, shall maintain such funds as may be necessary to enable the City to perform its contractual obligations.

(3) Moneys held in any debt service fund by any officer, department or board shall be disbursed only in accordance with the provisions of law or contract relating thereto. No appropriations shall be required as a prerequisite to disbursement from such fund.

Section 6-204. Capital Projects Funds.

(1) All moneys received or held for the purpose of defraying the cost of any capital expenditure shall constitute "capital projects funds".

(2) Capital projects funds shall consist of moneys derived from the proceeds of the sale of immovable property, from proceeds of bonds, notes, certificates or other evidences of indebtedness for capital expenditures, including proceeds of temporary loans negotiated in anticipation thereof, from appropriations or grants from other governments or governmental agencies for capital expenditures, from allocations made by any operating budget ordinance for capital expenditures, from proceeds from any insurance settlement for loss sustained to immovable property, from proceeds of assessments for street improvements to the extent not dedicated to repayment of debt, or from transfers from any reserve fund maintained for ultimate capital expenditures.

(3) Capital projects funds shall be expended only in accordance with the terms of the capital budget ordinance, the terms of loans negotiated, or the terms of tax levies.

Section 6-205. Nonexpendable Trust Funds.

(1) All moneys acquired by donation which are to be invested or held intact, temporarily or permanently, and all other property acquired by donation shall constitute "nonexpendable trust funds."

(2) The Director of Finance shall be the treasurer for any other trusts held by or in the name of the City, its officers, departments or boards, except insofar as specifically and irrevocably otherwise provided under the terms of the donation or trust. The Director shall receive and deposit to the credit of such funds and accounts all the moneys belonging thereto, and shall make disbursement therefrom only in accordance with resolutions or other appropriate authorizations furnished by the Board of City Trusts or other persons, officers, departments or boards having power so to authorize.

Section 6-206. Expendable Trust Funds.

(1) All moneys derived from the interest, dividends, or other earnings of trust funds or from the sale of trust fund assets that are to be expended for any purpose under the terms of any donation or trusts shall constitute "expendable trust funds."

(2) The Director of Finance shall maintain separate funds and bank accounts for each such expendable trust fund, shall receive and deposit to the credit of such funds and accounts all of the moneys belonging thereto, and shall make disbursement therefrom only in accordance with resolutions or other appropriate authorization furnished by the Board of City Trusts or other persons, officers, departments or boards having power so to authorize.

Section 6-207. Other Funds.

The Mayor, with the approval of the Council, may establish other funds when necessary and when no appropriate class of funds exists in accordance with generally accepted accounting principles, and the Director of Finance may create funds required to comply with generally accepted accounting principles.

Section 6-208. Deposit of Funds.

Money received by officers and employees shall be deposited promptly to the City's account in depository banks. The bank account may indicate the name of the fund, department, board or beneficiary for whom the money is deposited.

CHAPTER 3. PROCUREMENT AND DISPOSITION OF PROPERTY

Section 6-301. Procurement of Movable Property.

(1) The Department of Finance shall be responsible for the procurement of all movable property to be paid for from any appropriation made by the Council.

(2) (a) Before procuring any movable property, the Department of Finance shall ascertain whether or not movable property is available for transfer to satisfy any requisition, and if such is available, the transfer shall be made in lieu of all or a portion of the procurement with appropriate credits and charges to the budget units involved.

(b) If such property is not available for transfer, the Department of Finance shall procure it from the lowest responsible bidder who conforms to the terms and specifications prepared by the Department, except in cases where competitive bids are not required by state or municipal law.

Section 6-302. Procurement of Immovable Property.

(1) The Bureau of Purchasing shall be responsible for the procurement of all immovable property, but only in conformity with the instructions of the Department of Property Management.

(2) Requisitions for the procurement of immovable property which have been approved by the appropriate accounting officer as to availability of unencumbered fund balances shall be submitted to the Department of Property Management, which department shall ascertain whether property owned or leased by the City is available for the purpose requested. If such property is available, the Director of Property Management shall arrange for its assignment or transfer in cooperation with the budget units involved. If

such property is not available, the Department of Finance shall procure the necessary property by purchase, lease, exchange or expropriation.

(3) No immovable property shall be acquired by the City without the approval of the City Planning Commission as to its use, and where necessary, the approval of the Board of City Trusts. If either fails to act within thirty days of a request for approval, its approval shall be presumed.

(4) All expropriation proceedings shall be instituted in the name of the City through the Department of Law.

Section 6-303. Insurance.

(1) Insurance against fire, windstorm, and other hazards may be procured for the protection of the property of the City in such amounts and under such conditions as the Council shall ordain.

(2) The City may, without waiver of its governmental immunity, procure public liability, bodily injury, and property damage insurance covering such risks and in such amounts as the Council may ordain, provided all such policies of insurance shall contain a stipulation that the insurer shall not assert the governmental immunity of the City as a defense of any suit on such policies.

(3) All insurance shall be procured by the Department of Finance from companies licensed by the state to insure the types and amounts of risks involved.

Section 6-304. Surety Bonds.

Except as herein otherwise provided, the Council shall determine which officers and employees shall be required to furnish surety bonds and shall determine the amount of each such bond. The Department of Finance shall procure all such surety bonds from companies licensed to do business in the state. All such bonds shall be in favor of the City, and the premiums thereon shall be borne by the City.

Section 6-305. Disposition of Movable Property.

Boards, department heads, and other officers having movable property which is not useful to them shall from time to time and at least annually furnish a list thereof to the Department of Finance. The Department of Finance shall examine such property, and if the same is found to be usable, it shall be returned to the central storehouse or inventoried for subsequent issue upon requisition. If it is found to be unusable for public purposes, the Director of Finance, after fixing a minimum price shall cause the property to be exchanged or sold at public auction to the highest bidder for not less than the minimum price established after advertisement in the official journal twice, and the proceeds shall be placed in the General Fund. By ordinance approved by two-thirds of all its members, the Council may authorize the sale without public bid of movable property not needed for public purposes at a shop or store operated by or under the authority of the City of New Orleans, and the proceeds shall be placed in the General Fund or another fund as specified in the ordinance.

Section 6-306. Disposition of Immovable Property.

(1) The Department of Property Management shall from time to time, and not less than once in two years, review the immovable property of the City and make recommendations to the Council and the City Planning Commission for the disposition of such property as is no longer needed.

(2) With the prior approval of the Mayor and the City Planning Commission, the Council may ordain the sale or exchange of immovable property no longer needed. In its resolution of approval, the City Planning Commission may impose restrictions as to future use of such property in order to insure that its use will be in conformity with the plans developed or in process of development by the Commission. The Director of Finance, after fixing a minimum price, shall, either individually or through a person appointed by the Director, cause the property to be sold at public auction to the highest bidder for not less than

the minimum price after advertisement in the official journal three times, and the net proceeds shall be placed the Capital Projects Fund. However, immovable property may be transferred for purposes of rehabilitation without public auction, in accordance with procedures authorized by state law.

Section 6-307. New Orleans Municipal Trust Fund.

(1) Notwithstanding the provisions of Section 6-306 of this Chapter, all net proceeds resulting from a sale of any immovable property owned by the City having a sale price of more than five million dollars, including but not limited to the New Orleans International Airport, shall be placed in an expendable trust fund to be designated as the New Orleans Municipal Trust Fund. Specific donations or bequests to the New Orleans Municipal Trust Fund shall also be placed in the fund. The Council may from time to time appropriate additional funds to be placed in the Municipal Trust Fund. No appropriations shall be made from the fund except in accordance with paragraph (2) of this section.

(2) The Council may by ordinance make appropriations from the New Orleans Municipal Trust Fund to the General Fund provided that the total appropriations in any fiscal year shall not exceed eighty percent of the amount reasonably anticipated to be earned on the amount contained in the fund during that fiscal year. The Council may by ordinance approved by a two-thirds vote of all its members appropriate to the Capital Projects Fund in any fiscal year up to fifty percent of the amount contained in the Municipal Trust Fund on the first day of that fiscal year.

(3) The provisions of this section may be declared inapplicable to all or any portion of the proceeds of a sale of immovable property owned by the City if a resolution is adopted by affirmative vote of not less than two-thirds of the membership of the Council which states the Council's determination that:

(a) The immovable property was used for an essential public service, such as sewerage, water, drainage, recreation, port, or railroad purposes, and the proceeds from the sale are necessary to continue to provide the service, either for replacement of the property sold or for capital improvements by the City department, board or agency for whose benefit the property was used; or

(b) The immovable property was used primarily for office space or other essential support of City employees or activities, and the proceeds from the sale of the property are necessary to provide for replacement of that space or support; or

(c) The immovable property is or was acquired pursuant to the terms of a donation, trust, contract, or law which would preclude the deposit of the proceeds from the sale of the property into the Municipal Trust Fund.

The Council shall hold a public hearing on any resolution to declare this section inapplicable to a sale of immovable property, which hearing shall be advertised in the official journal once a week during the two weeks preceding the public hearing.

(4) If the City disposes of immovable property by means of an exchange of property with additional cash compensation to the City, and the total value of the property and cash exceeds five million dollars, the provisions of this section shall apply to the cash proceeds of the transaction.

(5) Despite its name, the Municipal Trust Fund shall not be subject to the provisions of Chapter 18 of Article IV of this Charter. However, conditional donations to the Municipal Trust Fund shall be subject to the provisions of Chapter 18 of Article IV of the Charter.

Section 6-308. Contracts.

(1) All formal written contracts to which the City is a party, except those executed pursuant to paragraph (5)(c) of this section, shall be signed by the Mayor or, under the Mayor's authorization, by the Chief Administrative Officer or the Director of Property Management. Contracts may be proposed by any officer, department or

board but, before being presented for signature, shall be approved by the Department of Law as to form and legality. The City shall establish and maintain a program to encourage disadvantaged business enterprises to participate in any such contracts.

(2) Prior to signature, contracts involving financial obligations by the City shall be approved also by the Department of Finance as to the availability of funds in the amounts and for the purposes set forth therein. Such contracts shall not extend beyond the term for which an appropriation to finance such obligations shall have been made. This paragraph shall not apply to obligations for the procurement of services from regulated utilities, telecommunication services, and sanitation services.

(3) All construction of public buildings shall be done by contract in conformity with applicable state or municipal law.

(4) Contracts for the leasing of property belonging to the City for periods of more than one year shall be subject to requirements which may be imposed by ordinance.

(5) (a) Except in the purchase of unique or noncompetitive articles, competitive bids shall be secured before any purchase, by contract or otherwise, is made or before any contract is awarded for construction, alteration, repair or maintenance or for the rendering of any services to the City, other than professional services, and the purchase shall be made from or the contract shall be awarded to the lowest responsible bidder after advertisement prescribed by ordinance or by applicable state or municipal law.

(b) Contracts for professional services administered by the offices, departments, boards, and other agencies of the Executive Branch shall be awarded on the basis of a competitive selection process which shall be established by executive order of the Mayor. The competitive selection shall be made by a selection committee composed of at least three (3) individuals from within local government with relevant subject matter expertise who will review and evaluate proposals and make selections in meetings noticed and open to the public. The Committee's records shall be public. The Mayor shall not be a member of any such selection committee but may authorize, by executive order, exceptions to such competitive selection process resulting from emergencies that pose a threat to public health, safety, and welfare, as authorized by law.

(c) Contracts for professional services administered by the Council, pursuant to its Charter functions, legislative authority and responsibilities, and regulatory authority and responsibilities, shall be awarded on the basis of a competitive selection process which shall be established by rule of the Council. Such contracts shall be signed by the Council president upon authorization by Motion adopted by a majority of the entire membership of the Council, except that pursuant to Section 4-403(2), contracts to employ special counsel shall require a two-thirds vote of the Council's entire membership. The Council rule may except contracts executed solely to assist the office of an individual councilmember.

(d) Each such order or rule and any amendment thereto shall be published once in the official journal and shall be the subject of a public hearing at least seven days prior to its effective date. The Executive Branch or Council competitive selection processes may include a threshold amount below which the competitive selection process shall not be required. The amount of the threshold shall be established by ordinance.

(6) The Director of Finance shall require of successful bidders a performance bond and, where appropriate, a labor and materials bond. The Director may in the exercise of sound discretion permit a bidder to file an annual bond to cover bids that may be made by, or the performance of contracts that may be awarded to, such bidder during an annual period. Such bond shall be in such amount as the Department of Finance may

determine and may be increased or decreased from time to time as the Department may require, in order to keep it commensurate with the bids made or contracts awarded during the annual period.

(7) The Council may by ordinance provide for the manner of executing other contracts and may in the case of any contract require the signatures of other officers in addition to those specified in this Section as it may deem proper for the protection of the interests of the City.

ARTICLE VII. FINANCING STREET IMPROVEMENTS

Section 7-101. The Improvements of Streets.

(1) The Council shall, by ordinance, provide for the paving and improvement of streets.

(2) The Department of Public Works shall submit to the Council for its approval the plans and specifications for the improvement of any street, provided that such plans shall not conflict with the Master Plan previously adopted by the City Planning Commission. Upon approval of plans and specifications by the Council, the Department of Finance shall advertise for bids for such work unless it is to be performed by the Department of Public Works or unless such work is part of a program undertaken in cooperation with any other governmental agency.

Section 7-102. Cost.

(1) Costs to be Paid by Developers of Subdivisions. The Department of Public Works with the approval of the Council may require that streets in such subdivisions be paved or repaved, and the Council may require that the subdivider pay such portion of the total cost of such paving as it may deem reasonable. To assure said payment, the subdivider shall furnish a bond or cash in an amount fixed by the Council. No such bond shall be accepted until it has been approved as to form by the City Attorney and as to sufficiency by the Director of Finance.

(2) Costs To Be Paid By Owners of Abutting Property. The Council may levy assessments for paving against abutting property in the manner and subject to the limitations contained in Sections 42 through 50, both inclusive, of Louisiana Act 159 of 1912, as amended by Louisiana Act 338 of 1936, for the protection, enforcement and collection of special assessments for the financing of paving and other street improvements.

Section 7-103. Retention of Existing Rights.

All liens, privileges, preferences, processes and immunities vested in, granted to or enjoyed by the City of New Orleans prior to the effective date of this Charter under the Constitution and statutes of this state, including, without limitation those vested, granted or enjoyed under Sections 42 through 50, both inclusive, of Louisiana Act 159 of 1912, as amended by Louisiana Act 338 of 1936, for the protection, enforcement and collection of special assessments for the financing of paving and other street improvements, shall continue to be available to the City.

ARTICLE VIII. DEPARTMENT OF CIVIL SERVICE

Section 8-101. Effective Date of This Article.

This Article shall have effect only in the absence of an applicable State law upon the same subject matter. The members of the Civil Service Commission serving on the day prior to the effective date of this Article shall complete the terms for which they were appointed and shall serve as members of the Civil Service Commission established by this Article.

Section 8-102. Department of Civil Service.

The Department of Civil Service shall consist of a Civil Service Commission, a Director of Personnel, and the employees subordinate to the Director. The Department shall be a part of the Executive Branch.

Section 8-103. Civil Service Commission.

(1) *Creation, Membership and Appointment:*

(a) The Commission shall consist of seven members who shall be electors of and domiciled in the City.

(b) The presidents or chancellors of Dillard University, Loyola University, Tulane University of Louisiana, University of New Orleans, Southern University of New Orleans, and Xavier University, after giving consideration to representation of all groups, each shall nominate three persons. In addition, the employees in the classified service of the City shall nominate three persons in the classified service of the City by means of an election called for that purpose and conducted in accordance with procedures specified by the rules of the commission. The City Council shall appoint one member of the commission from the three persons nominated by each nominating authority. If the Council fails to make an appointment within thirty days of receipt of a nomination, the nominee whose name is first on the list of nominees automatically shall become a member of the Commission.

(c) A vacancy shall be filled by appointment in accordance with the procedure for the original appointment and from the same source. Within thirty days after a vacancy occurs or, in the case of the classified employee serving on the Commission, within ninety days after a vacancy occurs, the university president or chancellor concerned or the classified city employees shall submit three required nominations. Within thirty days thereafter, the City Council shall make the appointment. If the City Council fails to appoint within the thirty days, the nominee whose name is first on the list of nominees automatically shall become a member of the Commission. If one of the nominating authorities fails to submit nominees in the time required or if one of the named institutions ceases to exist, the City Council shall make the appointment.

(d) A member of the Civil Service Commission may be removed by the City Council, for cause, after being served with written specifications of the charges against said member and being afforded an opportunity for a public hearing thereon by the City Council.

(2) *Functions.* The Commission shall:

(a) Appoint the Director, after competitive examination, who shall be in the classified service.

(b) Adopt classification plans, pay plans, and rules and regulations, and any amendments thereto after public hearing.

(c) Hear and dispose of appeals as provided in this Article.

(d) Advise the Mayor, the Chief Administrative Officer, the Director and any other officer of the City concerning personnel matters.

(e) Have the right to remove the Director for cause, after charges have been preferred against the Director and the Director has been provided a reasonable opportunity to be heard with respect to them and to produce evidence with respect thereto.

(f) Investigate and publicly hear any written charges brought by any person if filed within sixty days after the alleged violation of any provision of this Article or rules and regulations adopted thereunder.

(g) Order the withholding of compensation from any person found to be employed contrary to the provisions of this Article or rules and regulations adopted thereunder. Such order shall be directed to the appointing authority employing such person and said officer shall withhold payment of compensation to such person until authorized by the Commission, under the penalty of personal liability

for any sum paid contrary to the order of the Commission, and under such other penalties as may be provided.

(h) Approve or disapprove, after receiving the recommendations of the Director, any agreements entered into between the City and any political subdivision or public body of the State to furnish the services and facilities of the Department to it in the administration of its personnel. Any such agreement shall provide for reimbursement to the City of the reasonable cost of the services and facilities furnished.

(i) Be vested with broad and general rule-making and subpoena powers for the administration and regulation of the classified service, including the power to adopt rules for regulating employment, promotion, demotion, suspension, reduction in pay, removal, certification, qualifications, political activities, employment conditions, layoffs, compensation and disbursements to employees, and other personnel matters and transactions; to adopt a uniform pay and classification plan; to require an appointing authority to institute an employee training and safety program; and generally to accomplish the objectives and purposes of the merit system of civil service as herein established, It may make recommendations with respect to employee training and safety. No rule, regulation, or practice of the Commission or Department or any official of the city shall favor or discriminate against any applicant or employee because of membership or non-membership in any private organization; but this shall not prohibit the City or any agency thereof from contracting with any employee organization with respect to wages, hours, grievances, working conditions, or other conditions of employment in a manner not inconsistent with this Charter, applicable state or municipal law, or valid rule or regulation of the Commission.

Section 8-104. Director's Functions.

The Director shall:

(1) Head the Department and, with the approval of the Commission, appoint such employees and other persons as may be necessary.

(2) Conduct competitive entrance and promotional examinations for appointments in the classified service limited to persons of good moral character.

(3) Give wide publicity to all announcements of competitive examinations.

(4) Prepare and recommend to the Commission appropriate rules and regulations.

(5) Prepare, and upon adoption by the Commission, install and maintain classification plans based on the authority, duties and responsibilities of positions in the classified service.

(6) Prepare and recommend pay plans for employees in the classified service.

(7) Establish and maintain a service record of all appointed officers and employees of the City.

(8) With the approval of the Commission, require an appointing authority to institute an employee training and safety program.

(9) Investigate the operation and effect of the personnel provisions of this Charter and rules and regulations promulgated thereunder, and report publicly his findings and recommendations to the Commission and to the Mayor.

(10) Examine the payrolls of every office, department or board from time to time, but not less than semi-annually, to ascertain if the persons who names appear thereon have been appointed and are being compensated in accordance with the provisions of this Charter.

(11) Perform such other functions as the Director or the commission may deem proper to enforce the provisions of this Article.

(12) Cooperate, when authorized by the commission, with governmental agencies of other jurisdictions charged with personnel administration in conducting joint tests and establishing lists from which eligibles shall be certified for appointment and promotion in accordance with the provisions of this Article.

Section 8-105. The Classified and Unclassified Service.

The Civil Service of the City shall be divided into the unclassified and classified service. Persons not included in the unclassified service are in the classified service.

(1) The following shall be in the unclassified service:

(a) Officers elected by the people, and persons appointed to fill vacancies in elective offices.

(b) The Chief Administrative Officer, and all department heads except the Director of Personnel.

(c) One principal assistant or deputy and one person holding a confidential position for the Chief Administrative Officer, for each department head except the Department of Civil Service, for the council, and for each elected officer, board, authority, and commission established or recognized by this Charter.

(d) Employees in the office of the mayor and city Attorney.

(e) Members of boards and advisory committees.

(f) Bona fide students of schools employed by municipal agencies.

(g) Railroad employees whose working conditions and retirement benefits are regulated by federal agencies in accordance with federal law.

(2) Additional positions may be added to the unclassified service and may be revoked by rules adopted by the Commission.

(3) The provisions and requirements of this Article as to methods of filling vacancies, establishment of promotional lists and employment lists, eligibility and original entrance competitive tests may be waived by the Commission in its discretion in whole or in part in case of original appointment for unskilled labor. Such laborers may be selected and appointed by the appointing authority under the rules and regulations of the Commission. Any such employee shall acquire permanent status in the classified service if such employee passes a satisfactory work test prescribed by the Director.

Section 8-106. Appointments and Promotions in Classified Service.

Permanent appointments and promotions in the classified service shall be made only after certification by the Department under a general system based upon merit, efficiency, fitness and length of service as ascertained by examinations which, so far as practicable, shall be competitive, and all positions in the classified service shall be filled from those eligible under such certification.

Section 8-107. Adoption and Content of Rules and Regulations.

(1) *Adoption.* The Civil Service rules and regulations in effect on the day prior to the effective date of this Article shall remain in effect and be continued until amended or repealed by the Commission. The Commission shall have power to amend and repeal the rules and regulations on the recommendation of the director or on its own initiative, subject to the requirement of a prior public hearing with respect to each such proposed modification.

(2) *Content.* The rules and regulations shall:

(a) Regulate employment, promotion, removal, qualifications and other personnel matters.

(b) Provide for the filling of vacancies in the classified service by demotion, transfer,

reinstatement, reemployment, promotion, original appointment or temporary appointment.

(c) Provide for the establishment, maintenance, consolidation and cancellation of eligible lists and the removal of names therefrom.

(d) Regulate employment conditions.

(e) Establish requirements of desirable training, experience and other qualifications of applicants.

(f) Establish work test periods of not less than six nor more than twelve months before appointees acquire permanent status as classified employees.

(g) Contain uniform provisions covering the method and manner of conduction examinations; leaves of absence; layoffs; reinstatements; transfers; abolition of positions; promotions on a competitive basis, except where the Commission finds it impracticable; sick and annual leaves; hours of work; on the job training programs; and a uniform service rating system, including the manner in which ratings are to be used in promotions, salary increases, suspensions and separations.

(h) Fix the procedure and the time within which appeals must be taken and heard.

(i) Provide, in the discretion of the Commission, for compliance with standards established by any federal agency as a condition precedent to the receipt of federal funds.

(j) Establish the method of certification of eligibles for appointment or promotion; provided that appointing authorities shall be entitled to the certification of not less than three eligibles for each vacancy, except that if more than one vacancy is to be filled, an additional eligible shall be certified for each additional vacancy; and except that special and different rules and regulations may be established for reemployment lists and reinstatements; and establish emergency, provisional or conditional appointments, or appointments for a limited period where status in the classified service is not obtained and certification is not required.

(k) Provide the extent to which preference shall be given in appointments and promotions to persons domiciled in the City or residents of the City; to persons honorably discharged or discharged under honorable conditions from the armed forces; to the unremarried widows of such persons; and to disabled veterans or their wives when the veterans are unable to work. Such preferences shall be given only to persons who have met the minimum requirements imposed for each test and have received at least the average rating required for eligibility.

(l) Define and prohibit political activities in addition to those specifically prohibited by this Article.

Section 8-108. Classification.

(1) The Director shall, with the approval of the Commission, allocate each position in the classified service to the appropriate class therein on the basis of authority, duties and responsibilities. Thereafter, as new positions are created or additional classes established, or existing classes are divided, combined, altered or abolished, the Director shall make proper allocations or reallocations of positions to new or existing classes.

(2) Class titles shall be used to designate positions in all official records, documents, vouchers and communications, and no person shall be appointed to or employed in a position in the classified service under any title which has not been approved by the Director.

(3) Any employee affected by the allocation or reallocation of a position, or by any changes in the classification plan, shall be afforded a reasonable opportunity to be heard by the Director.

Section 8-109. Promotions.

Vacancies in positions in the classified service of the City shall, as far as practicable, be filled by promotion after competitive tests from lower

classes. A change from a position from one class to another with a higher maximum rate of pay shall be considered a promotion.

Section 8-110. Pay Plan.

Employees in the classified service may be compensated only in accordance with a pay plan recommended by the Commission and adopted by the council. Such plan shall include minimum rates steps for each class. Amendments to a pay plan may be adopted by the Council when recommended by the Commission. Any rule or determination of the Commission affecting wages or hours shall have the effect of law and become effective only after approval by the Council.

Section 8-111. Appeals.

(1) Any person aggrieved by action contrary to the provisions of this Article may appeal to the Commission for redress pursuant to its rules and regulations.

(2) In the conduct of investigations or hearings, any member of the Commission or the Director shall have the power to administer oaths, subpoena witnesses and compel the production of pertinent books and papers.

(3) If the Commission, after a hearing, orders a dismissed or suspended employee reinstated, it may reinstate such employee under such conditions as it deems proper, and may order full pay for lost time.

Section 8-112. Prohibitions.

(1) *Prohibited Political Activities.*

(a) Promotion, demotion or action on account of political or religious affiliation prohibited. No person shall be appointed or promoted to, or dismissed from any position in the classified service, or in any way favored or discriminated against with respect to employment because of political or religious opinions or affiliations.

(b) Party Membership; Election. No member of the commission and no officer or employee in the classified service shall participate or engage in political activity; be a candidate for nomination or election to public office except to seek nomination as the classified City employee serving on the City Civil Service Commission; be a member of any national, state, or local committee of a political party or faction; make or solicit contributions for any political party, faction, or candidate; or take active part in the management of the affairs of a political party, faction, candidate, or any political campaign, except to exercise the right as a citizen to express an opinion privately, to serve as a commissioner or official watcher at the polls, and to vote as desired.

(c) Contributions. No person shall solicit contributions for political purposes from any classified employee or official or use or attempt to use a position in the city service to punish or coerce the political action of a classified employee.

(d) Political Activity Defined. As used in this Article, "political activity" means an effort to support or oppose the election of a candidate for political office or to support a particular political party in an election. The support of issues involving bonded indebtedness, tax referenda, or constitutional or City charter amendments shall not be prohibited.

(2) *Other Prohibited Activities.*

(a) False Statements and Fraud Prohibited. No person shall make any false statement, certificate, mark, rating or report with regard to any test, certification or appointment made under any provision of this Article or commit or attempt to commit any fraud preventing the impartial execution of this Article and of the rules and regulations adopted hereunder.

(b) Consideration for Advantage Prohibited. No persons shall, directly or indirectly, give, render, pay, offer, solicit or accept any money, service or other thing of value to obtain any appointment, proposed appointment, promotion or proposed promotion to, or any advantage in, a position in the classified service.

(c) Elected Officers Prohibited from Classified Position. No Person holding any elective public office shall hold a position in the classified service.

(d) Demotion or Dismissal of Employees. No classified employee of permanent status shall, except for cause, be disciplined, demoted or dismissed.

Section 8-113. Penalties.

(1) Any person who shall willfully fail to appear in response to a subpoena or fail to answer any questions or fail to produce any books or papers pertinent to any investigation or hearing by the Commission shall be guilty of a misdemeanor.

(2) If any member of the Commission or any employee in the City Service shall willfully refuse or fail to appear before the Commission or any officer authorized to conduct any hearing or inquiry, or having appeared shall refuse to testify or answer any question relating to the affairs or government of the City or the conduct of any officer or employee of the City on the ground that the testimony or answers would tend to incriminate the party called to appear or testify, or shall refuse to waive immunity from prosecution on account of any matter about which the party called to appear or testify may be asked to testify at any such hearing or inquiry, the party shall forfeit office or position and shall not be eligible thereafter for appointment to any position in the City Service.

(3) If at a public hearing following written charges of the violation of any provision of this Article or any rules or regulations adopted thereunder, the Commission should determine that any employee has willfully violated any provision of this Article, or of rules or regulations adopted thereunder, the commission may direct the appointing authority to dismiss such employee and such employee shall be dismissed.

(4) Any person who willfully violates any provision of this Article or of the rules or regulations issued thereunder shall be guilty of a misdemeanor, and shall upon conviction be punished by a fine of not less than one hundred dollars, nor more than one thousand dollars, or by imprisonment for a term of not less than one month nor for more than six months, or by both such fines and imprisonment.

(5) In addition to the penalties hereinabove provided, the Commission may render an order that any person who has violated any provision of this Article shall not be eligible for employment in the City Service for a period not exceeding ten years.

Section 8-114. Appropriations.

The City shall make adequate annual appropriations to enable the Civil Service Commission and department to implement this Article efficiently and effectively.

ARTICLE IX. GENERAL PROVISIONS

CHAPTER 1. BOARDS AND COMMISSIONS IN GENERAL

Section 9-101. Definition of Board.

The term "board" as used in this Charter shall be construed as applying to boards, commissions authorities and other public bodies except the Council.

Section 9-102. Organization.

(1) Except as otherwise provided by applicable state or municipal law, the terms of all appointments made to boards shall expire on June 30th of the year of such expiration.

(2) Annually at the first meeting on or after July 1st each year, each board shall elect from its members a chair, a vice-chair, a secretary, and such other officers as it shall deem necessary and proper, all of whom shall serve until June 30th of the following year or until their successors have been elected and qualified, except as otherwise provided by applicable state or municipal law.

(3) Officers of boards may be removed from their offices by an affirmative vote of a majority of the members of the board at any regular

meeting, or at a special meeting if the call for such meeting shall have stated the removal as one of the purposes thereof.

(4) Members of boards shall serve without compensation but may receive reimbursement for expenses incurred in the conduct of the official business of the board.

(5) Each board shall set forth in its rules the time, date, and place of its regular meetings.

(6) The secretary of each board shall keep minutes of its transactions which shall at all times be available for public inspection.

Section 9-103. Power of Delegation.

Boards may delegate powers of appointment, determination of compensation, discipline or removal to their executive officers provided that all personnel actions so delegated shall be reported promptly to the board and such actions shall become null unless approved by the board within sixty days of the date of the action.

Section 9-104. Appointment and Removal of Board Members.

(1) If the appointment of a board member requires approval of the Council, such approval shall be granted only by the affirmative vote of a majority of all members of the Council.

(2) A member of a board may be removed by the appointing authority, provided that such removal shall be only for reasonable cause set forth in writing. Any member so removed shall have reasonable opportunity to be heard publicly before the Council, and in such event the removal shall be effective only if approved by a majority of the Council.

(3) A board member for whose office there exist residence or domicile requirements shall forfeit the office immediately upon the removal of residence or domicile in a manner that would render the board member not longer qualified for appointment to the office held.

Section 9-105. Vacancies.

A vacancy on a board shall be filled in the same manner as the member was originally appointed, provide that appointment to fill a vacancy shall be only for the unexpired term.

Section 9-106. Prohibited Activities of Board Members.

(1) No member or officer of a board shall borrow money or receive anything of value from any contractor doing business with the board under the penalty of dismissal from the board. Not member, officer, or employee of any board shall have any interest in any contract let by the board. Any member of any board who is a director or stockholder in any corporation or who is an agent or attorney for any person who is financially interested in any subject before the board shall reveal such interest to the board and shall not discuss or vote on the subject at any meeting of the board or any of its committees.

(2) Any member of a board who shall qualify as a candidate for any public elective office or who shall accept an appointive office or position of public employment for which compensation is paid by the City of New Orleans shall forfeit membership on the board.

The provisions of this paragraph shall not apply to ex officio board members nor to any board member who serves in such capacity by virtue of an elective office in city government.

Section 9-107. Quorum.

A majority of the existing membership of a board shall constitute a quorum. All actions taken by boards shall require the affirmative vote of the majority of the existing members thereof, provided that regulations may be adopted only upon the affirmative vote of two-thirds of the existing members thereof. The Mayor or, in the Mayor's absence, the Chief Administrative Officer shall not be counted as part of the existing membership of a board under this section, but if present, may be counted to establish a quorum or required vote.

CHAPTER 2. AMENDMENTS TO THE CHARTER

Section 9-201. Method of Amendment.

(1) Except as provided in subparagraph 2 of this section, this Charter may be amended or replaced only by the affirmative vote of a majority of the qualified electors of the City voting upon such amendments or proposed Charters. Proposals to amend or replace this Charter by the affirmative vote of a majority of the qualified electors of the City voting thereon may originate only in the following manner:

(a) By ordinance of the Council.

(b) By petition of not less than ten percent or ten thousand, whichever is fewer, of the duly qualified registered voters of the City filed with the Council, setting forth the proposed amendments or substitute home rule Charter.

This method of amendment shall apply to the entirety or any portion of this Charter.

(2) Except for the sections pertaining to the Mayor, the Administrative Office, and the Departments of Law, Police, Fire, Finance, and City Civil Service, amendments to Article IV of this Charter to rename or reassign powers or functions of departments or boards or to consolidate, subdivide, reorganize, or abolish departments or boards may be initiated by an executive order of the Mayor, which shall be published once in the official journal and submitted to the Council on or before the date of such publication for public review and comment. The Council shall hold a public hearing on the proposed amendment. The Council shall not alter the terms of the proposed amendment, but may vote to approve or disapprove the measure. If approved by a majority vote of the entire membership of the Council, the amendment shall become legally effective upon certification by the Clerk of the Council or at a later date if so specified in the executive order. If disapproved by a majority vote of the entire membership of the Council, the amendment shall not become legally effective. If the Council neither approves nor disapproves within sixty days of the date of publication of the executive order, the amendment shall become legally effective upon the expiration of such sixty days or at a later date if so specified in the executive order. Any amendment thus adopted shall be published promptly after its adoption in the official journal, and duly authenticated copies of the amendment shall be filed promptly by the City Attorney in the offices of the Secretary of State, the Recorder of Mortgages, and the Clerk of Council. This method of amendment may not be utilized during the last year of a term in office for the Mayor and members of the City Council.

Section 9-202. Calling of an Election.

(1) Any ordinance of the Council providing for amendment of the Charter or a substitute charter shall provide that the ordinance be submitted to the electors of the City at the next primary or general election for members of Congress, Mayor of New Orleans, or Governor of Louisiana to be held in the City, provided that the date of such election is not less than ninety days after the effective date of such ordinance, or if the public interest so requires, at a special election called for that purpose, the date of which shall be fixed at not less than ninety days after the effective date of such ordinance.

(2) Within sixty days of the receipt of a petition proposing an amendment to the Charter or a substitute charter, the Council shall provide by ordinance that the proposed amendment or substitute charter shall be published at length in the official journal not less than sixty days prior to the election, and shall be submitted to the electors of the City at the first available election for members of Congress, Mayor of New Orleans, or Governor of Louisiana, if the date of such election is not less than ninety days after the effective date of such ordinance, or when the petition so demands, at a special election called for the purpose, the date of which shall be held on the first available election date not less than ninety days after the effective date of such ordinance.

Section 9-203. Results of Elections.

(1) Any amendment to the Charter or substitute charter approved by a majority of the electors of the City voting on same shall become

effective at the time and under the conditions fixed in such amendment or substitute charter, but not until duly authenticated copies thereof have been filed by the City Attorney within thirty days after said election in the offices of the Secretary of State and Recorder of Mortgages for the Parish of Orleans, provided that no substitute charter or amendment abolishing any elective office, reducing the remuneration, or shortening the term thereof, shall become effective until after the expiration of the current term of the incumbent officials elected to such office.

(2) The City Attorney shall file authenticated copies of approval Charter amendments as required herein within thirty days after the election at which the amendments were approved or within the time period required by applicable state or municipal law if such time period is less than thirty days. The City Attorney shall also cause to be published in the official journal the full text of any amendment approved pursuant to the provisions of this Charter.

CHAPTER 3. MISCELLANEOUS PROVISIONS

Section 9-301. Title to Property.

(1) All public property held by the City of New Orleans or by any officer, department or board of the City of New Orleans at the effective date of this charter or by any association or corporation performing municipal functions or receiving an appropriation from the general fund at the effective date of this charter shall be the property of the City.

(2) Title to all property acquired under this charter by any officer, department or board shall be vested in the City.

Section 9-302. Leases and Concessions.

No lease or concession shall be granted to any corporation in which one or more City officers, employees, or board members hold or control the majority financial interest.

Section 9-303. Facsimile Signatures.

Whenever any person is required to sign negotiable instruments or multiple bonds, the signature may be a facsimile.

Section 9-304. Annual Reports.

(1) Not later than sixty days after the close of the fiscal year, each office, department or board shall make an annual written report of its activities to the Chief Administrative Officer in such form and under such rules as may be prescribed by the Chief Administrative Officer.

(2) Not later than one hundred twenty days after the close of the fiscal year, the Chief Administrative Officer shall make an annual written report to the Mayor concerning the activities of all offices, departments and boards, and the Mayor shall then transmit a copy thereof to the Council.

(3) A copy of all annual report required under this Section shall be filed in the archives of the City.

Section 9-305. Reconstitution of Government in Event of Disaster.

In case of public disaster resulting in the death or disability of the Mayor or the majority of the Council, the remaining members of the Council shall successively appoint a sufficient number of additional members to fill the vacancies therein which have been created. Such appointees shall to the extent practicable possess the qualifications required for original membership on the Council. The Council so constituted shall proceed to elect one of its members as Mayor if that office is vacant. The Council shall then fill the vacancy created by such election.

Section 9-306. Penalties for Violations.

(1) The Council shall by ordinance provide for penalties for willful violation of any provisions of this charter and may provide for penalties for violations of ordinances, rules and regulations. The Council shall have authority to provide for imposition of the maximum fines and terms of imprisonment allowed by law for such violations.

The Council may provide that in the event of violation of safety ordinances or regulations, each day's offense shall constitute a separate offense, and may provide for penalties to be imposed separately for each day of such offense.

(2) The Council may by ordinance and in accordance with applicable state or municipal law provide for procedures, rules, or orders to facilitate enforcement of the provisions of this Charter, ordinances, rules or regulations or to complement the penalties established for violations of this Charter, ordinances, rules or regulations of the City of New Orleans.

Section 9-307. General and Specific Provisions.

To the extent that any specific provision contained in this Charter conflicts with any general provision, the specific provision shall prevail.

Section 9-308. Officials to Serve Until Successors are Elected.

Each elected official and each appointed official of the City shall serve until a successor has been elected or appointed and qualified.

Section 9-309. Prohibited Activities of Officers and Employees.

No officer or employee of the City shall have a financial interest in any contract with the City. For the purposes of this section, "contract" shall mean a remunerative contract to provide goods or services to the City or for public work and shall not include a contract with the City which a city officer or employee is required to execute in order to receive state or federally funded grants, loans, or other public assistance, nor shall it include an incentive, benefit, or compensation approved by the Civil Service Commission.

Section 9-310. Limitation on Number of Casinos.

If authorized by law, permits may be issued by the City of New Orleans for the establishment of gambling casinos; provided that, unless it is otherwise provided by applicable and preemptive State law, no more than one land based gambling casino shall be permitted in the City of New Orleans. The casino shall be permitted only on land owned by the City of New Orleans in the area generally bounded by Poydras Street, Tchoupitoulas Street, Canal Street, and Convention Center Boulevard, known as the Rivergate site.

Section 9-311. Retention of Rights.

All remedies, processes, privileges, preferences and immunities enjoyed by the City of New Orleans prior to the effective date of this Charter under the Constitution and statues of this State for the protection, enforcement and collection of taxes, special assessments, and other rights shall continue to be available to the City.

Section 9-312. Severability Clause.

If any part of this Charter is for any reason declared unconstitutional or invalid, the other separable parts hereof shall not be affected thereby.

Section 9-313. Rejection of Bids.

In all sales or purchases of property the City may reserve the right to reject all bids.

Section 9-314. Cooperative Endeavors.

(1) The City of New Orleans may enter into cooperative endeavors with the state or its political subdivisions or political corporations, with the United States or its agencies, or with any public or private association, corporation, or individual with regard to the procurement and development of immovable property, joint planning and implementation of public works, joint use of facilities, joint research and program implementation activities, joint funding initiatives, and other similar activities in support of public education, community development, housing rehabilitation, economic growth, and other public purposes.

(2) In order to further these objectives, each department and board of City government shall prepare within sixty days following the first day of each calendar year a report to the Mayor

regarding opportunities for coordination between the department or board and other entities as previously enumerated in this section. Within thirty days following the receipt of such reports, the Mayor shall direct such departments or boards as the Mayor deems appropriate to initiate discussions with certain specified entities relative to cooperative endeavor agreements. Each department or board so directed shall within sixty days thereafter report to the Mayor on the status of discussions regarding cooperative endeavor agreements. Copies of the Mayor's directives to initiate discussions and copies of the status reports from the departments or boards shall be provided to all members of the City Council and to the City Council Chief of Staff.

(3) The Mayor and an authorized official of the other entity or entities shall sign each cooperative endeavor agreement thus negotiated. Any proposed cooperative endeavor agreement having a term greater than one year shall, prior to its execution by the Mayor, be published once in the official journal and submitted to the Council for approval, but not modification, by a majority of its entire membership.

CHAPTER 4. OFFICE OF INSPECTOR GENERAL; ETHICS REVIEW BOARD; OFFICE OF INDEPENDENT POLICE MONITOR

Section 9-401. Office of Inspector General.

(1) The Council shall by ordinance create an Office of Inspector General (OIG) and otherwise provide with respect thereto.

(2) The OIG shall provide for a full-time program of investigation, audit, inspections, and performance review to provide increased accountability and oversight of entities of city government or entities receiving funds through the city, and to assist in improving agency operations and deterring and identifying, fraud, waste, abuse, and illegal acts. The OIG is specifically authorized to conduct audits of City entities.

(3) The OIG may retain special counsel notwithstanding the provisions of Section 4-403 of this Charter.

Section 9-402. Ethics Review Board.

(1) The Council shall by ordinance establish an Ethics Review Board and shall authorize it to enforce the provisions of the Code of Ethics. Six members of the Board, all of whom are domiciled in and electors of the City, shall be appointed by the Mayor from lists of three nominees each submitted by the presidents or chancellors of the public and private universities located within the City of New Orleans, and one additional member shall be appointed by the Mayor, all appointments subject to approval by a majority of the members of the City Council. No member of the Ethics Review Board may hold any elective or appointed position with the city nor any other government or political party office. A vacancy on the Board shall be filled in the same manner as the original appointment. A member of the Board may be removed by the Mayor only for cause in accordance with the procedures established in Section 9-104 of the Charter and by the council in accordance with the procedures and for the reasons established in Section 3-125 of this Charter. The City Council shall authorize the Ethics Review Board to establish additional recommendations for the Code of Ethics, to issue advisory opinions, to promulgate rules regarding the interpretation and enforcement of the Code of Ethics, to refer cases for investigation on referral or complaint, to retain counsel, and to impose fines.

(2) The City Council, upon recommendation from the Ethics Review Board, shall by ordinance establish ethical rules governing the conduct of City employees, elected officials, contractors, and other persons who are the recipients of public funds, who are engaged in the performance of a governmental function, or who are in a position to influence the conduct of City employees or officials. The Code of Ethics shall incorporate by reference and adopt the provisions of the Louisiana Code of Governmental Ethics and shall provide for such other, more stringent provisions as the Council may deem appropriate. The Code of Ethics shall prohibit the Ethics Review Board

from hearing any alleged violation that constitutes a violation of the State Code of Governmental Ethics if the Ethics Review Board ascertains that the entity designated by the State to enforce said State Code has considered or is considering the alleged violation.

(3) Once adopted, the ordinances referenced in this section may be amended only by an ordinance receiving a two-thirds favorable vote of the entire membership of the Council.

Section 9-403. Office of Independent Police Monitor.

(1) The Council shall by ordinance create an Office of Independent Police Monitor (OIPM) and otherwise provide with respect thereto.

(2) The OIPM shall monitor the New Orleans Police Department, particularly in the areas of: civilian and internally-generated complaints, internal investigations, discipline, uses of force, critical incidents and in-custody deaths. The Office of Independent Police Monitor shall also review and analyze the numbers and types of complaints; assess the quality and timeliness of New Orleans Police Department investigations; review the adequacy of data collection and analysis; review the New Orleans Police Department Public Integrity Bureau's policies, procedures, and resource needs; conduct risk management reviews; review the operations and effectiveness of New Orleans Police Department "early warning system"; review specific issues regarding supervision, training, and discipline; and conduct relevant pattern analysis.

(3) The OIPM may retain special counsel notwithstanding the provisions of Section 4-403 of this Charter.

Section 9-404. Shared Funding.

The OIG, the Ethics Review Board, and the Office of the Independent Police Monitor shall receive an annual appropriation from the Council in an amount not less than 0.75% (three-quarters of one percent) of the General Fund operating budget, adopted pursuant to Section 3-115(2), which individual appropriation may not be vetoed by the Mayor, notwithstanding the Mayor's authority pursuant to Section 3-113(4) to disapprove or reduce any item or items of appropriation, and also notwithstanding the Mayor's authority pursuant to Section 3-113(2) to disapprove any ordinance in its entirety. The Council may by ordinance, adopted by unanimous vote of a quorum, provide for deviation from this percentage in cases of natural disaster or other extreme circumstances. Of the budget percentage specified in this paragraph, .04% shall be allocated for the operation of the Ethics Review Board and .16% shall be allocated for the operation of the Office of Independent Police Monitor. The local ethics entities may by memorandum of understanding reallocate these funds between or among themselves as they deem adequate to implement their functions efficiently and effectively.

Section 9-405. Independent External Evaluation.

The Council shall by ordinance establish independent external evaluation procedures that provide separately for review of the operations and performance of the Office of Inspector General, Office of Independent Police Monitor, and Ethics Review Board. The evaluation reports shall be filed with the Clerk of the Council and the City Attorney and shall be public records.

CHAPTER 5. MINIMUM WAGE*

Section 9-501. Purpose.

This Chapter is intended to provide for a minimum wage to be paid to employees who work in the City of New Orleans that will make it reasonably possible for them to earn a sufficient income to afford the basic necessities of

*__Annotation:__ The Louisiana Supreme Court ruled in the case entitled *New Orleans Campaign for a Living Wage* v. *The City of New Orleans*, 02-0991 (La. 9/2/02) 825 So. 2d 1098, that "(1) [the] statute prohibiting local governmental subdivisions from establishing [a] minimum wage rate was [a] legitimate exercise of state's police power, and (2) [the] city's minimum wage law abridged [the] police power of [the] state and, therefore, was unconstitutional." Thus, while adopted by a vote of the people at an election held February 2, 2002, this Chapter of the Home Rule Charter has never taken effect.

food and shelter. This Chapter is intended to follow the scheme for calculating wages paid for the different types of employees as set forth in the Fair Labor Standards Act of 1938, 29 U.S.C. 201 et seq. (the "Act"). The minimum wage provided in Section 9-503 herein exceeds the minimum wage provided in the current Act because the minimum wage provided in the current Act is insufficient to provide a living wage under conditions existing in the City of New Orleans.

Section 9-502. Definitions.

(1) *"Employer"* includes a person, partnership, joint venture, association corporation, company, trust or any organized group of persons acting directly or indirectly in the interest of an employer in relation to an employee performing work in the City of New Orleans, Louisiana.

(2) *"Employee"* includes an individual employed and performing work in the City of New Orleans for or on behalf of an employer, and neither: (a) excluded from the definition of "employee" as provided in subsections (e)(1), (2), and (4) of Section 3 of the Act; (b) exempted from the minimum wage under subsections (a), (d), and (g) of Section 13 of the Act; (c) employed at a reduced wage in compliance with the provisions of Section 14 of the Act and/or pursuant to a valid permit or certificate issued under authority of Section 14 of the Act; (d) a state or city civil service employee whose wages are regulated by a civil service commission; nor (e) employed on any public works contract governed by the Louisiana Public Bid Law.

(3) *"Wage"* paid to any employee shall include compensation paid to such employee in the form of legal tender of the United States, checks on banks convertible into cash on demand and shall include the reasonable cost to the employer of furnishing such employees with board, lodging or other facilities, if such board, lodging or other facilities are customarily furnished by such employer to his/her employees, provided that the cost of board, lodging or other facilities shall not be included as part of the wage paid to any employee (a) if it is primarily for the benefit or convenience of the employer or (b) to the extent it is excluded therefrom under the terms of a bona fide collective-bargaining agreement applicable to the particular employee. In determining the wage of a tipped employee, the amount paid such employee by his/her employer shall be deemed to be increased on account of tips by an amount determined by the employer, but not by an amount in excess of fifty (50) percent of the minimum wage provided in Section 9-503, except that the amount of the increase on account of tips determined by the employer may not exceed the value of tips actually received by the employee. The previous sentence shall not apply with respect to any tipped employee unless (a) such employee has been informed by the employer of the provisions of this subsection, and (b) all tips received by such employee have been retained by the employee, except that this subsection shall not be construed to prohibit the pooling of tips among employees who customarily and regularly receive tips.

(4) *"Tipped Employee"* means any employee engaged in an occupation in which s/he customarily and regularly receives more than $100 per month in tips.

Section 9-503. Minimum Wage.

An employer shall pay to each employee a wage at an hourly rate not less than six dollars fifteen cents ($6.15) or one dollar ($1.00) greater than the prevailing federal minimum wage, whichever is greater.

Section 9-504. Increase Not Precluded.

(1) Nothing in this Chapter shall preclude the City Council of the City of New Orleans from increasing the minimum wage provided in Section 9-503 by ordinance.

(2) This Chapter shall not be construed to diminish any right of employees to bargain collectively with their employer through representatives chosen by the employees to establish wages that exceed the minimum wage provided herein.

(3) Nothing in this Chapter shall be construed to prohibit the City of New Orleans from requiring that prevailing wages be paid on public works contracts.

Section 9-505. Enforcement.

An employer who pays to an employee less than the minimum wage provided in Section 9-503 commits a misdemeanor punishable by a fine of up to $200 for each day and each employee that wages are paid in violation thereof. Every employer employing any employees subject to this Chapter shall post and keep posted a notice stating the Chapter's minimum wage in conspicuous places in every establishment where such employees are employed.

Section 9-506. Severability.

If any part of this Chapter or application of the same to any person or set of circumstances is for any reason held to be unconstitutional, invalid or unenforceable, such invalidity shall not affect any other provision or application of this Chapter which can be given effect without the invalid provision or application.

Section 9-507. Effective Date.

This amendment to the Charter shall be effective ninety (90) days after approval by a majority of the electors of the City voting on the same.

ARTICLE X. SCHEDULE

Section 10-101. Purpose of Article.

The purpose of this Article is to carry this Charter into complete operation and to insure that no inconvenience may arise from the adoption thereof.

Section 10-102. Agencies Abolished.

(1) All officers, departments, boards, commissions and committees, including all bureaus, divisions, sections, units or other organizational units heretofore performing functions in The City of New Orleans are hereby abolished, except those required to be continued by provisions of the Constitution, general laws, contracts and donations, and all such shall continue to exist only for such time as may be required by any such provision.

(2) The New Orleans Railroad Terminal Board shall have the duties and powers assigned to it by ordinances and contracts of the City, and shall be continued until its obligations have been completely discharged. The Board shall have the right to employ its own counsel.

(3) Whenever, under the provisions of this Charter, a department, board, or agency is eliminated by merger or otherwise, references herein to said department, board, or agency shall be construed to refer to the department, board, or agency that assumes the respective duties or functions previously performed by the department, board, or agency which has been eliminated.

Section 10-103. Ordinances, Resolutions and Motions.

All ordinances, resolutions and motions of the city of New Orleans and all orders, rules and regulations made by any officer, department, board or other unit thereof not inconsistent with this charter shall remain in full force and effect until altered or repealed by the proper authority or until they expire by their own limitation.

Section 10-104. Inconsistent Provisions of Ordinances and Laws.

The provisions of all ordinances and other laws which are inconsistent with this Charter shall be superseded by the provisions of this charter at its effective date, except that ordinances that are inconsistent with those provisions of this Charter that require action by the Council to make them effective shall remain in full force until such action is had.

Section 10-105. Lawful Obligations of the City.

All lawful obligations of The City of New Orleans existing on the effective date of this Charter and all fines, taxes, penalties, forfeitures, obligations and rights, due, owing or accruing to the City of New Orleans, and all writs, prosecutions, actions and proceedings by or against The

City of New Orleans shall continue and remain unaffected by the adoption of this charter. All prosecutions instituted prior to the effective date of this Charter and all offenses committed prior thereto may be prosecuted as theretofore.

Section 10-106. Pending Proceedings.

All petitions, hearings and other proceedings pending before any officer, department, board or other unit abolished by this Charter and all investigations begun by such officer, department, board or other unit and not completed at the effective date of this Charter may be completed by such officer, department, board or other unit as may be designated by the Mayor.

Section 10-107. Effect of Ordinances.

(1) All ordinances of the City of New Orleans in force at the effective date of this Charter affecting, concerning or relating to any official, board, or public body of The City of New Orleans, the title, power, functions or duties of which are changed by this Charter shall, when not inconsistent with any of the provisions hereof, be construed as referring and applying to the official, board, or public body in which like powers are vested by this Charter.

(2) All rights, powers, functions and duties vested in any officer of The City of New Orleans or any person or body acting for it shall be vested in and exercised by the officer, person or body to whom or to which similar rights, powers, functions and duties are assigned by this Charter.

(3) References in any law or ordinance to officers of the City as heretofore constituted shall be construed to apply to such officer or person in the City government as organized under this Charter corresponding nearest to the officer referred to in such law or ordinance; and, in the event no such person or officer is provided for under this Charter, then the Council shall select an officer or person in the City government to serve in lieu of such other officer with like powers and effects.

Section 10-108. Previous Charters and Laws Superseded.

This Charter shall supersede all previous charters and all amendments thereto, except as herein otherwise provided.

Section 10-109. Gender of Words.

Whenever in this Charter a word is used with reference to a nature person, denoting the person's gender, it shall apply to both sexes, unless otherwise expressly provided.

Section 10-110. Sectional Headings.

No title or subtitle, heading or subheading or marginal note, printed in or with this Charter, shall be considered or construed to be part of this Charter; they have been inserted only for convenience in reference.

Section 10-111. Records and Equipment.

All books, papers, maps, charts, plans, and other equipment appertaining to any office, department, board or other unit of The City of New Orleans abolished by this Charter shall be delivered to the head of the office, department, board or other unit of the City to which they rightfully appertain.

Section 10-112. Assignment of Employees.

All employees of The City of New Orleans shall, at the effective date of this Charter, be temporarily assigned by the Mayor or by the Chief Administrative Officer to the proper office, department or board until permanently reassigned or dismissed.

Section 10-113. Status of Present Employees.

(1) Permanent employees in the classified service at the effective date of this Charter shall be continued in their respective classifications without further examination, until lawfully separated therefrom.

(2) Employees of the City in the unclassified service whose positions may become classified shall be continued in their positions pending compliance with the City Civil Service law, rules and regulations.

Section 10-114. Retirement Rights.

No pension or retirement rights shall be affected by the adoption of this Charter, and services of employees shall be deemed continuous.

Section 10-115. Implementation of this Charter.

(1) The Council shall as promptly as possible pass any ordinances which may be necessary to carry into effect the provisions of this Charter.

(2) To facilitate the transition to a cash basis of estimating and budgeting, the Council may estimate and budget $1,500,000 in accrued receipts for 1955, $1,000,000 in accrued receipts for 1956, and $500,000 in accrued receipts for 1957. Any estimated accrued receipts included in the budget of revenues of each of these years shall be deducted from the estimate of cash receipts for the next succeeding year. The provisions of this Charter requiring receipts of the general Fund of the City of New Orleans shall be estimated only upon the basis of the cash to be received therefrom within the fiscal year that shall become fully effective on January 1, 1958.

Section 10-116. Effective Dates.

(1) The reorganization of the form of government effected by this Charter shall occur on May 1, 1954, and the first officials elected pursuant to this Charter shall take office on the date.

(2) The provisions of this charter relating to the qualification of candidates for official positions and for the conducting of elections shall become effective on July 1, 1953.

Section 10-117. Wards.

The wards of The City of New Orleans shall remain as wards of the City until lawfully changed.

Section 10-118. Municipal Districts.

The municipal districts of the City of New Orleans shall remain as municipal districts of the City until lawfully changed.

Section 10-119. Status of Employees at Effective Date of Article VIII.

(1) Permanent employees in the classified service at the effective date of Article VIII of this Charter, shall be continued in their respective classifications without further examinations, until lawfully separated therefrom.

(2) Employees of the City and employees of any other governmental agency who become classified employees of the City at or after the effective date of Article VIII of this Charter and who were not appointed after civil service test and certification, shall be continued in their respective positions provided that within one year after having become classified employees they shall pass a qualifying test prescribed by the Department of Civil Service. Those who fail to so qualify shall be dismissed from their positions within thirty days after the establishment of an eligibility list for their respective positions. Nothing herein shall preclude the reclassification or reallocation as provided by the civil service rules and regulations of any position held by any such employee.

Section 10-120. Application of Laws.

As used in this Charter, the terms "by law" and "municipal law" are defined as follows:

(1) *"By law"* means by applicable federal, state, or municipal law; and,

(2) *"Municipal law"* means this Charter or ordinances adopted pursuant to this Charter.

Section 10-121. Transitional Provisions.

Amendments to this Charter approved at an election held on November 18, 1995 shall become effective on January 1, 1996.

CHARTER COMPARATIVE TABLE

This table shows the location of the sections of the basic Charter and any amendments thereto.

M.C.S., Ordinance Number	Referendum Date	Section		Section this Charter
—	10- 3-92	1-101—10-119		1-101—10-119
—	11-18-95	1-101—10-121		1-101—10-121
—	10- 8-01	5-303		5-303
			Added	Annotation
—	2- 2-02	9-501—9-507	Added	9-501—9-507
—	4- 6-04	4-1301, 4-901, 4-702		4-1301, 4-901, 4-702
—	12- 8-08	1-101—10-121		1-101—10-121
—	10- 2-10	1-101—10-121		1-101—10-121
—	10-19-13	1-101—10-121		1-101—10-121
—	11- 4-14	1-101—10-121		1-101—10-121
—	11- 8-16	1-101—10-121		1-101—10-121
—	6- 1-18	1-101—10-121		1-101—10-121
—	1- 1-19	1-101—10-121		1-101—10-121
28158	11-16-19	1	Added	5-1101—5-1103
—	1- 1-20	1-101—10-121		1-101—10-121
28999	11- 8-22	4		4-106
29370	10-14-23	4		6-102
				6-104
29371	10-14-23	4		4-702
				4-801
			Added	Art. IV, Ch. 18, § 4-1801
			Rnbd	Art. IV, Ch. 18, §§ 4-1801—4-1806
			as	Art. IV, Ch. 19, §§ 4-1901—4-1906
			Rnbd	Art. IV, Ch. 19, §§ 4-1901, 4-1902
			as	Art. IV, Ch. 20, §§ 4-2001, 4-2001
			Rnbd	Art. IV, Ch. 20, §§ 4-2001, 4-2002
			as	Art. IV, Ch. 21, §§ 4-2101, 4-2102
			Rnbd	Art. IV, Ch. 21, §§ 4-2101, 4-2102
			as	Art. IV, Ch. 22, §§ 4-2202, 4-2202
29828	11- 5-24	4		6-201
29864	11- 5-24	4		2-202
30397	11-15-25	4		5-404
30410	11-15-25	4	Added	4-406

PART II

CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Catchlines of sections.
Sec. 1-4. References to chapters or sections.
Sec. 1-5. History notes.
Sec. 1-6. References and editor's notes.
Sec. 1-7. Code does not affect prior offenses, rights, etc.
Sec. 1-8. Effect of repeal of ordinances.
Sec. 1-9. Certain ordinances not affected by Code.
Sec. 1-10. Amendments to Code.
Sec. 1-11. Supplementation of Code.
Sec. 1-12. Severability of parts of Code.
Sec. 1-13. General penalty; continuing violations.
Sec. 1-14. Petition for pardon.
Sec. 1-15. Mayor may grant pardon.
Sec. 1-16. Council may grant pardon.
Secs. 1-17—1-19. Reserved.
Sec. 1-20. Employment with the city; compliance with the Military Selective Service Act.
Sec. 1-21. Violations within the downtown development district; penalties; enforcement; continuing violations.

Sec. 1-1. How Code designated and cited.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated as the "Code of the City of New Orleans, Louisiana, 1995" and may be so cited. Such ordinances may also be cited as the "New Orleans City Code, 1995."
(Code 1956, § 1-1)

Charter reference—Codification of ordinances, § 3-114.

Sec. 1-2. Definitions and rules of construction.

In the interpretation and construction of this Code the following definitions and rules of construction shall be observed, unless they are inconsistent with the manifest intent of the council or the context clearly requires otherwise:

Board, commission, officer, department, etc. Whenever any officer, department, board, commission or other city agency is referred to by title only, such reference shall be construed as if followed by the words "of the City of New Orleans, Louisiana." Whenever, by the provisions of this Code, any officer, department, board, commission or other agency of the city is assigned any duty or empowered to perform any act or duty, reference to such officer, department, board, commission or other agency shall mean and include any authorized representative, if not prohibited by law.

Charter. Whenever the word "Charter" is used it shall mean and refer to the Home Rule Charter of the City of New Orleans.

City. The word "city" means the City of New Orleans in the Parish of Orleans, State of Louisiana, except as otherwise provided.

City council. The words "city council" or "council" shall mean the city council of the City of New Orleans, Louisiana.

Code. The word "Code" shall mean and refer to the "Code of the City of New Orleans, 1995."

Computation of time. The time within which any act provided by law is to be done shall be computed by excluding the first day and including the last, unless the last day is Sunday or a legal holiday, and then it shall also be excluded. If the day succeeding such Sunday or holiday is also a holiday or a Sunday, then such succeeding day shall also be excluded.

State law reference—Similar provisions, LSA-C.C.P. art. 5059.

Council. The words "council" or "city council" shall mean the city council of the City of New Orleans, Louisiana.

Gender. The masculine pronoun shall include the feminine and the neuter.

State law reference—Similar provisions, R.S. 1:8.

In the city. The words "in the city" or "within the city" mean and include all territory over which the city now has or shall hereafter acquire jurisdiction for the exercise of its police powers or other regulatory powers.

Joint authority. Words purporting to give a joint authority to three or more public officers or other persons shall be construed as giving such authority to a majority of such officers or persons.

Month. The word "month" means a calendar month.

Number. Words used in the singular number include the plural and the plural includes the singular.

State law reference—Similar provisions, R.S. 1:7.

Oath. The word "oath" shall be deemed to include an affirmation and the word "sworn" shall be construed to include the word "affirmed."

Occupant; tenant. The words "occupant" and "tenant," applied to a building or land, mean any person who holds a written or oral lease of or actually occupies the whole or part of such building or land, either alone or with others.

Or; and. The word "or" is used in the disjunctive and does not mean and/or. But "or" may be read "and" and "and" may be read "or" if the sense requires it.

Owner. The word "owner" applied to a building or land shall include any part owner, joint owner, tenant in common, tenant in partnership or joint tenant of the whole or a part of such building or land.

Parish. The word "parish" means the Parish of Orleans in the State of Louisiana.

Person. The word "person" means any individual, partnership, corporation, joint stock association or any city or state or any subdivision thereof; and includes any trustee, receiver, assignee or personal representative thereof.

State law reference—Similar provisions, R.S. 1:10.

Personal property. The term "personal property" includes every species of property except real property as defined by this section.

Preceding; following. The words "preceding" and "following" mean next before and next after, respectively.

Property. The word "property" shall include real and personal property.

R.S. Whenever the abbreviation "R.S." is used, it shall refer to the latest edition or supplement of the Louisiana Revised Statutes.

Real property. The words "real property" include lands, tenements and hereditaments and embraces all chattels real.

Sidewalk. The word "sidewalk" means that portion of a street between the curblines or the lateral lines of a roadway and the adjacent property lines intended for the use of pedestrians.

State. The word "state" means the State of Louisiana.

Street. The word "street" means and includes public streets, avenues, boulevards, highways, roads, alleys, lanes, viaducts, bridges and the approaches thereto and all other public thoroughfares in the city.

Tense. Words in the present tense include the future.

Written; in writing. The words "written" and "in writing" may include printing and any other mode of representing words and letters, but when the written signature of any person is required by law to any official or public writing or bond required by law, it shall be in the proper handwriting of such person or, in case he is unable to write, by his proper mark.

Year. The word "year" means a calendar year unless otherwise expressed.
(Code 1956, § 1-2)

Sec. 1-3. Catchlines of sections.

The catchlines of the several sections of this Code, printed in boldface type, and the catchlines to certain of the subsections of certain sections, printed in italics, are intended as mere catchwords to indicate the contents of the section or subsection and shall not be deemed or taken to be titles of such sections or subsections, nor as any part of the section or subsection, nor unless expressly so provided shall they be so deemed when any of such sections or subsections, including the catchlines, are amended or reenacted.
(Code 1956, § 1-3)

Sec. 1-4. References to chapters or sections.

All references to chapters or sections are to the chapters and sections of this Code, unless otherwise specified.

State law reference—Similar provisions, R.S. 1:14.

Sec. 1-5. History notes.

The history notes appearing in parentheses after sections of this Code are not intended to have any legal effect, but are merely intended to indicate the source of matter contained in the section.

Sec. 1-6. References and editor's notes.

References and editor's notes following certain sections are inserted as an aid and guide to the reader and are not controlling or meant to have any legal effect.

Sec. 1-7. Code does not affect prior offenses, rights, etc.

Nothing in this Code or the ordinance adopting this Code shall affect any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code.

Sec. 1-8. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinance in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect or any suit, prosecution or pro-

ceeding pending at the time of the repeal for an offense committed or cause of action arising under the ordinance repealed.

Sec. 1-9. Certain ordinances not affected by Code.

(a) Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following when not inconsistent with this Code:

(1) Any offense or act committed or done or any penalty or forfeiture incurred before the effective date of this Code.

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city or authorizing the issue of any bonds of the city or any evidence of the city's indebtedness or any contract, right, agreement, lease, deed or other instrument or obligation assumed by the city.

(3) Any administrative ordinances or resolutions of the city not in conflict or inconsistent with this Code.

(4) Any right or franchise granted by any ordinance.

(5) Any ordinance or resolution dedicating, naming, establishing, locating, relocating, opening, paving, widening, repairing, vacating, etc., any street or public way in the city.

(6) Any appropriation ordinance.

(7) Any ordinance levying or imposing taxes, charges, rates or fees.

(8) Any ordinances prescribing through streets, parking and traffic regulations, speed limits, one-way traffic, limitations on load of vehicles or loading zones.

(9) Any rezoning ordinance or amendment to the zoning map.

(10) Any ordinance establishing and prescribing the street grades of any street in the city.

(11) Any ordinance providing for local improvements and assessing taxes therefor.

(12) Any ordinance dedicating or accepting any plat or subdivision in the city.

(13) Any ordinance annexing territory or excluding territory or any ordinance extending the boundaries of the city.

(14) Any ordinance establishing positions, classifying positions, setting salaries of city officers and employees or any personnel regulations.

(15) Any temporary or special ordinances.

(16) Any ordinance calling elections or prescribing the manner of conducting the election in accordance with state law.

(17) Any ordinance regarding storm drainage.

(18) Any ordinance or provision regarding building standards.

(b) All such ordinances are recognized as continuing in full force and effect to the same extent as if set out at length in this Code and are on file in the city clerk's office.

Sec. 1-10. Amendments to Code.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of this Code and printed for inclusion therein, or in the case of repealed chapters, sections and subsections or any part thereof, by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby, and the subsequent ordinances as numbered and printed, or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new code of ordinances by the city council.

(b) The titles and ordaining clauses of proposed ordinances amending the Code shall refer to the "Code of the City of New Orleans section _____." It shall not be required that the titles, ordaining clauses, or bodies of such ordinances refer to the Mayor/Council Series number of the Code. Amendments to any of the provisions of this

Code should be made by amending such provisions by specific reference to the section of this Code in substantially the following language: "That section _____ of the Code of the City of New Orleans, Louisiana, is hereby amended to read as follows: . . . ." The new provisions may then be set out in full as desired.

(c) If a new section not existing in the Code is to be added, the following language may be used: "That the Code of the City of New Orleans, Louisiana, is hereby amended by adding a section (or article or chapter) to be numbered as follows _____, which said section shall read as follows: . . . ." The new section may then be set out in full as desired.

(d) When the city council desires to enact an ordinance of a general and permanent nature on a subject not existing in the Code, which the city council desires to incorporate into the Code, a section in substantially the following language may be made a part of the ordinance: "Section _____. It is the intention of the city council and it is hereby ordained that the provisions of this ordinance shall become and be made a part of the Code of the City of New Orleans, Louisiana, and the sections of this ordinance may be renumbered to accomplish such intention."

(e) All sections, articles, chapters or provisions of this Code desired to be repealed should be specifically repealed by section number or chapter number, as the case may be.

Sec. 1-11. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive permanent and general parts of ordinances passed by the city council or adopted by initiative and referendum during the period covered by the supplement and all changes made thereby in the Code and shall also include all amendments to the Charter during the period. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier, meaning the person, agency or organization authorized to prepare the supplement, may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions;

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement and make changes in catchlines, headings and titles;

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers;

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ through _____." The inserted section numbers will indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code; and

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code, but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement, or already embodied in the Code.

Sec. 1-12. Severability of parts of Code.

Should any section, paragraph, sentence, clause, phrase or word of this Code be declared invalid or unconstitutional by a court of competent jurisdic-

tion, such invalidity or unconstitutionality shall not affect any of the remaining words, phrases, clauses, sentences, paragraphs or sections of this Code, as they would have been enacted by council without the incorporation in this Code of any such invalid or unconstitutional word, phrase, clause, sentence, paragraph or section.
(Code 1956, § 1-5)

Sec. 1-13. General penalty; continuing violations.

Whenever in this Code or in any ordinance of the city any act is prohibited or is made or declared to be unlawful or an offense or whenever in this Code or any such ordinance the doing of any act is declared to be unlawful, when no specific penalty is provided therefor, the first violation of any such provision of this Code or any such ordinance shall be punishable by the greater of (i) a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both, or (ii) the maximum penalty authorized by state law for the violation. The second or any subsequent offense of any such provision of this Code or any such ordinance shall be punishable by the greater of (i) a fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both, or (ii) the maximum penalty authorized by state law for the violation. A provision for the revocation or refusal of a permit or other provision not imposing a fine or imprisonment shall not be deemed a provision for a specific penalty within the meaning of the foregoing sentence. Each day that any violation of any safety ordinance or regulation contained in this Code shall continue shall constitute a separate offense.
(Code 1956, § 1-6; M.C.S., Ord. No. 29357, § 1, 3-9-23; M.C.S., Ord. No. 29868, § 1, 3-21-24)

Cross reference—Warning citations for juveniles, § 102-1.

State law reference—Penalty, R.S. 13:2500.

Sec. 1-14. Petition for pardon.

(a) Any person convicted of violating a city ordinance may petition the mayor or the council for a pardon. The petition shall be in writing and shall set forth the date of the conviction, the violation, and the reasons supporting the pardon.

(b) The city attorney can recommend and request pardons on behalf of an individual or for a class of municipal crimes. In such a case, the city attorney shall make the request in writing to the mayor or the city council.

(c) The issuance of a pardon shall be in the sole and absolute discretion of the mayor or council. No person shall be entitled to a hearing on any petition or request submitted under this section.
(Code 1956, § 1-12; M.C.S., Ord. No. 28743, § 1, 8-5-21, eff. 9-15-21)

Sec. 1-15. Mayor may grant pardon.

The mayor may grant a pardon to any person or class of persons accused or convicted of violating a city ordinance. The mayor shall notify the council in writing within ten days of a pardon. The mayor's pardon power under this section may be exercised without regard to whether a petition or request for a pardon has been made.
(Code 1956, § 1-13; M.C.S., Ord. No. 28743, § 1, 8-5-21, eff. 9-15-21)

Sec. 1-16. Council may grant pardon.

The council may grant a pardon to any person or class of persons accused or convicted of violating a city ordinance. The council's pardon power under this section may be exercised without regard to whether a petition or request for a pardon has been made.
(Code 1956, § 1-14; M.C.S., Ord. No. 28743, § 1, 8-5-21, eff. 9-15-21)

Secs. 1-17—1-19. Reserved.

Sec. 1-20. Employment with the city; compliance with the Military Selective Service Act.

The chief administrative officer shall provide for appropriate procedures to encourage compliance with the Military Selective Service Act, including but not limited to the following:

(1) The chief administrative officer shall inform all persons seeking employment with the city that the failure to comply

with the Military Selective Service Act, 50 App. USCA § 453, is a bar to employment with the federal government; and

(2) The chief administrative officer shall require that all persons seeking employment with the city of New Orleans verify, in writing on a form to be provided by the chief administrative officer, that they complied with the requirements of the Military Selective Service Act, 50 App. USCA § 453.

(3) The chief administrative officer is authorized to and shall coordinate such policies and procedures with the New Orleans City Civil Service Commission.

(M.C.S., Ord. No. 19,218, § 1, 5-6-99)

Sec. 1-21. Violations within the downtown development district; penalties; enforcement; continuing violations.

(a) This section shall apply to violations of those provisions of the Code of the City of New Orleans specified in subsection (b) herein that occur within the downtown development district ("DDD"), as defined in section 146-193 of the Code of the City of New Orleans.

(b) This section shall apply to violations of any Code provisions subject to administrative adjudication and cited in section 6-34 of the Code of the City of New Orleans.

(c) Anyone who fails to comply with any one or more of the provisions cited in section 6-34, or who does anything otherwise prohibited therein or fails to do anything required therein, shall be subject to one or more of the following penalties:

(i) A fine of no more than $500.00 per violation;

(ii) Imprisonment of not more than six months;

(iii) Placement of a lien, pursuant to section 6-39, against the immovable property upon which the violation exists;

(iv) Any other penalty provided for in the Code of the City of New Orleans that applies to said violation.

Each day that a violation of one of the provisions cited in section 6-34 continues within the downtown development district shall constitute a separate offense.

After 30 days from the initial notice of violation to the owner and/or violator, in addition to any other fines or penalties provided for herein, the downtown development district is hereby authorized to seek any and all legal remedies, including, without limitation, injunctive proceedings against the owner and/or violator.

(d) The downtown development district and/or any interested party shall inform the department of safety and permits, the department of health, the department of sanitation, the New Orleans Police Department and/or any other appropriate department or agency of instances which warrant the issuance of citations for noncompliance with the code provisions cited in section 6-34. The DDD and/or any interested party shall also inform the central business district historic district landmarks commission ("CBDHDLC") of noncompliance within any historic district. Violations shall be brought by the appropriate department or agency to the administrative adjudication hearing officer for hearing and decision in accordance with the provisions of chapter 6 of the Code of the City of New Orleans.

(i) The downtown development district may hire one or more full- or part-time hearing officers for the purpose of hearing health, sanitation, building, zoning, housing and environmental offenses for citations issued within the district. The salary of the hearing officer(s) shall be paid by the downtown development district. The hearing officer(s) shall be trained by the law department of the city, pursuant to a cooperative endeavor agreement with the city. The cooperative endeavor agreement shall additionally provide for the empowerment of the hearing officer(s) pursuant to the provisions of section 6-33 of the City Code. In the alternative, the mayor is hereby authorized to appoint one or more full- or part-time administrative hearing officers, pursuant to chapter

6 of the Code of the City of New Orleans, who shall be dedicated exclusively to matters within the downtown development district, and whose salary shall be paid by the downtown development district pursuant to a cooperative endeavor agreement with the city. The mayor is expressly authorized to enter into such cooperative endeavor agreement(s) for terms exceeding one year.

(ii) In the event that a hearing officer is hired by the downtown development district, or by the city to handle downtown development district matters, all violations of the provisions of section 6-34 that occur within the downtown development district shall be heard and decided by the said hearing officer(s), in accordance with chapter 6 of the Code of the City of New Orleans. In the event that the hearing officer has a conflict of interest that prohibits him/her from hearing a matter within the downtown development district, the matter may be assigned to another administrative hearing officer for hearing and decision.

(iii) The downtown development district is authorized to hire one or more full- or part-time inspectors to perform health, sanitation, building, zoning, housing and environmental inspections of properties located within the district. The salary of the inspector(s) shall be paid by downtown development district. Inspector(s) shall be trained by the appropriate city departments(s), and empowered to act by the appropriate authority, pursuant to a cooperative endeavor agreement with the city. In the alternative, the department of safety and permits is hereby authorized to hire and/or designate one or more full- or part-time inspectors who shall be dedicated exclusively to matters within the downtown development district, and whose salary shall be paid by the downtown development district pursuant to a cooperative endeavor agreement with the city. The mayor is expressly authorized to enter into such cooperative endeavor agreement(s) for terms exceeding one year.

(M.C.S., Ord. No. 22662, § 1, 6-7-07)

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ARTICLE I. IN GENERAL

Sec. 2-1. City flower.

The flower known by the botanical name of "Nerium," commonly known as Oleander, is hereby declared to be the official flower of the city and as such may be displayed in the streets and parks of the city, and otherwise appropriately used.
(Code 1956, § 1-7)

Sec. 2-2. Official flag of city—Described.

The official flag of the city shall be according to the design accepted and approved by the Bienville Bicentennial Celebration Committee through its flag committee which consists of a white field five-sevenths wide, with a brilliant crimson stripe one-seventh wide at the top, and a brilliant blue stripe one-seventh wide at the bottom, the relative proportions of the flag to be two by three. There shall be three fleur-de-lys in the center of the white field, the height of each of which shall be one-fourth of the height of the white field and to locate their position there must be drawn an inverted equilateral triangle with an altitude of one-third the height of the white field, each angle marking the center of the fleur-de-lys, the whole according to the design marked exhibit B-B attached to the ordinance from which this section was derived.
(Code 1956, § 1-8)

Sec. 2-3. Same—When displayed.

The official flag of the city shall be displayed on the City Hall whenever the council is in session and on all municipal buildings throughout the city on all legal holidays and whenever otherwise directed by the mayor or the council.
(Code 1956, § 1-9)

Sec. 2-4. Mardi Gras legal holiday.

Mardi Gras is hereby declared and constituted a legal holiday in the city in accordance with the provisions of R.S. 1:55.
(Code 1956, § 1-10)

Cross reference—Carnival, Mardi Gras, ch. 34.

Sec. 2-5. Friday, December 24, legal holiday.

When Christmas Day, December 25, falls on a Saturday, the preceding Friday, December 24, is hereby declared and constituted a legal holiday in the city pursuant to the provisions of R.S. 1:55A(4.).
(Code 1956, § 1-11)

Sec. 2-6. Official journal and auxiliary official journal.

(a) *Official journal.* There shall be only one official journal selected annually. The official journal of New Orleans shall be a newspaper or general news publication or a joint venture consisting of no more than two members, each of which must be a newspaper or general news publication. The official journal, including each constituent member of a joint venture, must meet the following requirements or qualify according to subsection (b) below:

(1) Maintain a general circulation within the city of not less than 10,000 per issue for at least one year prior to the time the official journal contract is awarded;

(2) Have periodicals or bulk class mailing permit at the United States Post Office located within the city;

(3) Be domiciled in the city;

(4) Have been published at regular intervals of not less than weekly for at least two years prior to the time it is awarded the official journal contract;

(5) Have not failed to publish during that two-year period three or more consecutive issues unless such failure was caused by fire, flood, strike or natural disaster; and

(6) Be capable of advertising official proceedings and official information according to the publication schedule and format required by the applicable provisions of the Home Rule Charter, the City Code, the Comprehensive Zoning Ordinance, Civil Service Rules, Chief Administra-

tive Office Policy Memoranda, Louisiana Revised Statutes, and the Louisiana Constitution.

For the purposes of meeting the minimum general circulation requirement, a joint venture may not aggregate the circulation of its constituent members. For the purposes of this section, a "general news publication" shall mean a printed publication containing news and information of general interest to the community provided:

(1) The publication contains not more than 75 percent advertising in over half the issues during the preceding 12 months;

(2) The publication is not owned or published as an auxiliary to another nonpublishing business;

(3) The publication's news and information are not primarily about advertisers; and

(4) The publication is published for the dissemination of current news and intelligence of varied, broad, and general public interest, and is not devoted to or targeted at the interests of, or published for the entertainment or instruction of, or has a circulation primarily targeted to, any particular sect, denomination, labor, or fraternal organization or other limited or narrowly definable class of citizens.

(b) Notwithstanding the above requirements, any newspaper or general news publication that is deemed qualified under state law to publish judicial advertisements and legal notices in Orleans Parish on January 1, 2018, shall also be deemed qualified under this section to serve as the official journal of New Orleans, but only if said newspaper or general news publication is capable of advertising official proceedings and official information according to the publication schedule and format required by the applicable provisions of the Home Rule Charter, the City Code, the Comprehensive Zoning Ordinance, Civil Service Rules, Chief Administrative Office Policy Memoranda, Louisiana Revised Statutes, and the Louisiana Constitution.

(c) *Annual contract.* The clerk of council shall annually offer a contract for the publication of the official journal to be awarded to the lowest competitive bidder meeting the specifications contained in the bid documents. The official journal contract shall require that the entity awarded the contract must also accept for publication, at not more than the rates established by the contract for the official journal, the official publications of the various offices, departments and boards of the city. Each bidder shall file a notarized, sworn affidavit with the clerk of council disclosing all owners, investors, stockholders, trustees, partners, assignees, or members of the entity that owns or controls the bidder, and any parties holding options to acquire any interest in the bidder. The affidavit shall be submitted with the bid, and shall also disclose the names of any other parties that effectively control or exercise a controlling interest in any portion of the bidder. Language shall be included in the official journal contract requiring that the clerk of council be immediately notified by certified mail of any change in ownership or control of the official journal. Any such change in ownership or control may, at the option of the city, permit termination of the contract upon providing 30 days' notice, and shall allow the clerk of council to offer a new annual contract for publication of the official journal, as provided herein. If the clerk is not so notified of any such change within 30 days of the effective date of such change, the contract may be terminated by the city. If the official journal fails to provide a minimum general circulation within the city of 10,000, fails to maintain a periodicals or bulk class mailing permit at the United States Post Office located within the city, or fails to publish an issue on schedule containing requested official journal business, which failure is not caused by fire, flood, strike or natural disaster, the contract may be terminated by the city. Further, failure to publish three consecutive issues on schedule containing requested official journal business shall permit termination of the contract by the city. The successful bidder must agree in the official journal contract to indemnify and hold the City of New Orleans harmless from and against any and all claims, harms, and costs, including but not limited to attorney's fees, arising out of or in connection

with the official journal contract and the performance of the duties of the official journal as contained in the official journal contract, including but not limited to the failure by the official journal to publish matters as directed and/or in accordance with applicable provisions of the Home Rule Charter, the City Code, the Comprehensive Zoning Ordinance, Civil Service Rules, Chief Administrative Office Policy Memoranda, Louisiana Revised Statutes, and the Louisiana Constitution.

(d) *Auxiliary official journal.* In addition to the official journal, designated pursuant to the requirements aforesaid, the council, by resolution, may select an auxiliary official journal and authorize therein the additional publication of official publications, including but not limited to advertisements, public notices, official proceedings, and official information at rates not exceeding the rates for publication in the official journal.

(e) *Additional publications.* So long as the requirements imposed hereinabove are met, the publication of advertisements, public notices, official proceedings, and official information by additional means is allowed and may be accomplished as circumstances dictate and permit.

(f) *Clerk of council.* The clerk of council shall monitor all aspects of publication of the official journal and the auxiliary official journal.

(Code 1956, § 2-10; M.C.S., Ord. No. 18,337, § 1, 7-17-97; M.C.S., Ord. No. 19,082, § 1, 1-21-99; M.C.S., Ord. No. 27704, § 1, 3-8-18)

Charter reference—Official Journal, § 3-122.

State law reference—Auxiliary official journals, R.S. 43:181.

Sec. 2-7. Professional services competitive selection threshold.

Neither the competitive selection process for professional services established by executive order nor the competitive selection process for professional services established by council rule shall be required for contracts which will have a maximum of $15,000.00 or less.

(M.C.S., Ord. No. 17,423, § 1, 2-15-96)

Sec. 2-8. Contracts, cooperative endeavor agreements, and grants.

Except with regards to (i) donations to the city; (ii) immovable property transactions which are conducted at public auction, not including leases of property; (iii) agreements with federal or state governmental entities and/or the various agencies/political subdivisions thereof; (iv) legal claims resolutions; or (v) contracts to satisfy emergency needs during a declared state of emergency, the provisions of this section shall apply to city contracts, professional services agreements, cooperative endeavor agreements and grants.

(a) It shall be unlawful for the mayor, the president of the city council, or any designee of either the mayor or the president, to execute a contract or cooperative endeavor agreement with any person, corporation, or entity which owes delinquent taxes to the city. Prior to the execution of any contract or cooperative endeavor agreement, the director of finance shall review such agreement and shall attest by signature on a form to be provided by the chief administrative officer that the person or entity with whom the agreement is to be executed is not delinquent in any taxes owed to the city. No payment shall be made under any contract or cooperative endeavor agreement if the recipient owes delinquent taxes to the city.

(b) It shall be unlawful for the city or any agent thereof to award any grant to a recipient which owes delinquent taxes to the city. Prior to final approval of any grant award, the agency administering the grant(s) shall obtain assurances that the recipient is current on all taxes owed to the city. No payment shall be made under any grant if the recipient owes delinquent taxes to the city.

(c) It shall be unlawful for the mayor, the president of the city council, or any designee of either the mayor or the president, to execute a contract or cooperative endeavor agreement with, or award

any grant to, any person, corporation, or entity, whose principal(s), member(s) and/or officer(s) have within the preceding five years been convicted of, or pled guilty to, a felony under state or federal statutes for embezzlement, theft of public funds, bribery, falsification or destruction of public records. All contracts, cooperative endeavor agreements and grant agreements shall contain a sworn statement and requirement that the person or entity responsible for performing the contract, cooperative endeavor or grant, or providing the service provided for therein, is compliant with the provisions of this section.

(d) In addition to the prohibition provided in subsection (c), it shall also be unlawful for the mayor, the president of the city council, or any designee of either the mayor or the president to execute a contract or cooperative endeavor agreement with, or award any grant to, any person, corporation, or entity that fails to indicate compliance with the hiring practices provided in section 2-13(a)—(f) of this Code, or provide written reasons why deviation from section 2-13(a)—(f) is necessary. All contracts, cooperative endeavor agreements, and grant agreements shall provide a sworn statement relative to the requirement that the person, corporation, or entity responsible for executing the contract or agreement, or providing the service provided for therein, is compliant with the provisions of this subsection. No payment shall be made under any new or renewal contract, cooperative endeavor agreement, or grant unless the recipient is compliant with this subsection. This subsection shall apply to any agreements executed on or after March 1, 2019. This subsection shall not apply to any agreements executed before March 1, 2019. The provisions of this subsection shall not apply to the New Orleans Police Department, New Orleans Fire Department, New Orleans Aviation Board, the New Orleans Office of Homeland Security and Emergency Preparedness, or the Youth Study Center (Department of Human Services).

(e) If a contract is awarded and is found to be in violation of this section, said contract shall be voidable.

(f) The chief administrative office shall produce a report annually of all city contracts, cooperative endeavor agreements, and grants executed or renewed from the previous year confirming that they are in compliance with this section. This report must be submitted annually by March 31 to the chair of the city council governmental affairs committee for review.

(g) Every contractor, vendor, or supplier that is a party to a contract, professional services agreement, cooperative endeavor agreement, or grant agreement with the city shall protect its employees from the hazards of extreme heat with regular rest breaks in an area protected from direct sunlight. Such protection shall include at a minimum one 10-minute rest break, or one 15-minute rest break, for every two hours spent working outdoors or in an un-airconditioned work location, when the heat index measures 80—89 degrees Fahrenheit, or 90 degrees Fahrenheit or more, respectively.

(M.C.S., Ord. No. 18,066, § 1, 2-6-97; M.C.S, Ord. No. 23911, § 1, 3-11-10; M.C.S., Ord. No. 24110, § 1, 9-2-10; M.C.S., Ord. No. 24628, §§ 1, 2, 10-20-11; M.C.S., Ord. No. 27889, § 1, 10-18-18, eff. 3-1-19; M.C.S., Ord. No. 30448, § 1, 9-11-25)

Sec. 2-8.1. Cost recovery in contracts, cooperative endeavor agreements, and grants.

(a) It shall be unlawful for the mayor, the president of the city council, or any designee of either the mayor or the president to execute a cooperative endeavor agreement, award a grant, or enter into any contract involving the use of city funds or the extension of a thing of value or an economic benefit by the city to a third party unless the agreement contains a provision obligat-

ing the third party, to the maximum extent permitted by law, to reimburse the city or to disgorge any thing of value or economic benefit received from the city if the third party fails to meet its contractual obligations. The form and content of the provision shall be approved by the city attorney. Any cooperative endeavor agreement, grant, or contract that fails to contain the provisions required by this section shall be voidable by the city.

(b) Consistent with the purpose of this section, which is to maximize the city's ability to recoup economic benefits when third parties fail to meet their obligations, the city attorney may omit the provision required in subsection (a) when its inclusion would be impractical and contravene the financial best interest of the city.

(c) The chief administrative officer shall submit, contemporaneously with the annual reporting required pursuant to section 70-462, a report regarding compliance with section 2-8.1.

At a minimum, the report shall identify: (i) the number of cooperative endeavor agreements, grants, and similar contracts executed during the preceding year and (ii) a reasonably detailed explanation of the city's efforts to monitor compliance with these agreements, to enforce their terms, and to pursue recovery of economic benefits.
(M.C.S., Ord. No. 28214, § 1, 10-17-19)

Sec. 2-8.2. Legal services contracts.

(a) It shall be unlawful for the mayor or any designee of the mayor to enter into any agreement for legal services on behalf of the city, any city department or any city employee in an official capacity that does not contain the following provision:

> 'Notwithstanding and in addition to any other duties and ethical obligations, [Contractor] acknowledges and agrees that the New Orleans City Council ("Council") shall be included within the definition "client" for purposes of compliance with Rule 1.4 of the Louisiana Rules of Professional Conduct. [Contractor] agrees to keep the Council informed regarding the status of the contracted representation and to respond promptly and fully to requests for briefings and information, including without limitation through participation in executive sessions, and to reasonable requests for advance notice of legal filings. To the extent the performance of any obligations under this section gives rise, or may give rise, to a conflict of interest such that [Contractor] cannot ethically comply with its duties to the Council under Rule 1.4, [Contractor] shall promptly notify the City Attorney and the Council President of the conflict or potential conflict.'

(b) The provisions of subsection (a) shall not apply to a contract entered into for the express purpose of engaging in litigation directly adverse to the council.

(c) In addition to any other legally required authorizations, no waiver of a conflict of interest involving any contract governed by subsection (a) shall become effective unless approved by resolution of the council.
(M.C.S., Ord. No. 29765, § 1, 12-14-23)

Sec. 2-8.3. OIG cooperation provisions.

(a) It shall be unlawful for the mayor or any designee of the mayor to enter into any contract on behalf of the city, any city department or any city employee in an official capacity or for the president of the city council to enter into any contract on behalf of the city council that does not contain the following provision:

> [Party] will abide by all provisions of City Code § 2-1120, including but not limited to City Code § 2-1120(12), which requires [Party] to provide the Office of Inspector General with documents and information as requested. Failure to comply with such requests shall constitute a material breach of this contract. [Party] agrees that it is subject to the jurisdiction of Orleans Parish Civil District Court for purposes of challenging a subpoena.

(b) For purposes of this section, the term "contract" shall be construed as broadly as possible and shall include professional services agreements, public works contracts, donations, leases, cooperative endeavor agreements, memoranda of understanding, and any agreement contemplating the provision of goods, property or services to the city, regardless of whether any compensation is paid.
(M.C.S., Ord. No. 29783, § 1, 1-18-24)

Sec. 2-9. Alternative means for official publications; New Orleans Register; electronic publication.

(a) *New Orleans Register.* The New Orleans Register is hereby established which shall, at least on a monthly basis, publish official publications, including, but not limited to, advertisements, public notices, official proceedings, and official information required by:

(1) Home Rule Charter sections: 3-113, 3-123, 4-107, 5-404, and 9-201;

(2) Louisiana Revised Statutes chapters: 18:1292, 33:3524, 33:4083, and 33:4091;

(3) Other laws mandating publication of adopted actions in the official journal or in a publication other than a newspaper.

The New Orleans Register or the instrument containing same shall be made available by paid annual subscription, by single issue purchase, and by placing a copy as reference material in all branches of the New Orleans Public Library. If printed and published by the City of New Orleans, subscription rates and single issue prices shall be established by ordinance. The New Orleans Register shall be domiciled in the City of New Orleans.

(b) *Legal requirements of publication.* Publication in the official journal of all publications required by section 2-6(a) hereinabove, shall satisfy any legal requirements of publication. Additional publication in the New Orleans Register is mandated by this subsection solely to provide additional notification and as a service to the public. Failure to meet the publication requirements of this subsection shall not constitute a basis for challenging whether legal publication requirements have been met. In addition to the publication requirements of section 2-6(a) hereinabove, publications required by the following may also be published in the New Orleans Register:

(1) Home Rule Charter sections: 3-112, 3-114, 3-115, 3-128, 5-407, 6-305, 6-306, 6-307, 6-308, 9-202, and 9-314;

(2) City Code sections: 2-925, 22-49, 38-89, 66-104, 84-78, 84-107, 84-188, 84-217, 86-83, 90-37, 102-114, 150-188, 154-813, 154-814, 158-92, 162-1531, 166-153, and 170-452;

(3) Comprehensive Zoning Ordinance articles: 14.9, and 16.9.2;

(4) Louisiana Revised Statutes chapters: 18:535, 18:536, 18:1285, 33:108, 33:112, 33:113, 33:2414, 33:2867, 33:3303, 33:3333, 33:3452, 33:3522, 33:3523, 33:4084, 33:4085, 33:4096, 33:4100, 33:4109, 33:4114, 33:4121, 33:4128, 33:4141, 33:4151, 33:4712, 33:4717.2, 33:4724, 33:4726, 34:367, 38:2212, 38:2319.5, 39:1306, 39:1426, and Act No. 170 of 1968;

(5) Louisiana Constitution: article III, section 13, and article VI, section 35B;

(6) Civil Service Rule V, section 2.5;

(7) Chief Administrative Office Policy Memoranda: No. 8, and No. 43R; and

(8) Other laws mandating publication in the official journal for pending or proposed actions or in a newspaper.

(c) *Electronic publication.* Electronic publication is the act of rendering information into a digital form or otherwise making information accessible to electronic storage as any combination of graphic images or stored characters and distributing that information through or by one or more of the following: computer disk, CD ROM, facsimile, cable television, the Internet, wireline or wireless transmission, or any other means. Publications listed in subsections (a) and (b) hereinabove may also be published electronically. The electronic publication office shall be domiciled in the City of New Orleans.

(d) *Additional publications.* So long as the requirements imposed hereinabove are met, the publication of advertisements, public notices, official proceedings, and official information by additional means is allowed and may be accomplished as circumstances dictate and permit.

(e) *Chief administrative officer.* The chief administrative officer shall be responsible for implementation of the requirements of this section, including but not limited to the printing and distribution of the New Orleans Register and dissemination of any information by electronic publication. Pending implementation of the requirements of this section, publications required to be placed in the New Orleans Register may instead be published in the official journal and any auxiliary official journal. The clerk of council shall monitor all aspects of publication, printing, and distribution of the New Orleans Register and any electronic publication.
(M.C.S., Ord. No. 18,338, § 1, 7-17-97)

Sec. 2-10. Standard-size paper.

(a) As used in this section:

(1) *Standard size* means 8½ inches × 11 inches.

(2) *City agency* means any city office, department, commission, board, agency, or authority of this city.

(b) Standard-size paper shall be used for city business by all city agencies.

(c) The chief administrative officer is authorized to issue a policy memorandum providing exceptions to this section and establishing a schedule for implementation of the standard size paper requirement. The memorandum should establish procedures to curtail the procurement of legal-size file folders, file cabinets, and envelopes. Existing supplies of legal-size paper shall be provided to agencies such as the law department that may have a continuing need to produce documents in non-standard size.

(d) Effective April 1, 2004, all council documents shall be prepared and submitted in standard size format. The clerk of council shall request the submitting agency to reformat any legislative instruments on legal-size paper submitted prior to April 1, 2004, that remain on the council's calendar after the effective date.

(e) The provisions of this section shall not apply to proclamations or certificates issued by the mayor or council.
(M.C.S., Ord. No. 21408, § 1, 1-22-04)

Sec. 2-11. City council parking area.

The City Hall surface parking lot at the corner of LaSalle and Perdido Streets shall be reserved on a seven-day-per-week, 24-[hour]-per-day basis for the exclusive use of members of the city council, their designees, and council staffers assigned parking spaces in the lot. If circumstances require that the lot be used for other purposes, or if the lot will otherwise be unavailable to the city council, it shall be the duty of the chief administrative officer, the director of property management, the director of homeland security, or any such other official responsible for the lot's unavailability to request that the circumstances dictating the lot's unavailability be presented to the council's ground transportation and parking committee for its consideration and approval. In the event of an emergency or there is otherwise insufficient time or opportunity to present the matter to the committee, the aforesaid responsible official shall provide written notice of such unavailability to each member of the council and to the council chief of staff as soon as possible but in no event less than 24 hours prior to the lot's unavailability.
(M.C.S., Ord. No. 21429, § 1, 3-4-04)

Sec. 2-12. Notices of meetings of public bodies of the city.

(a) The purpose of this section is to supplement the provisions of the Louisiana Public Meetings Law, R.S. 42:4.1 et seq., by requiring that meeting notices of public bodies of the city government be posted at a location on the first floor of City Hall in addition to any location required by state law. This section applies to the city council, the executive branch, and all boards and commissions recognized, created or authorized by or pursuant to the City Charter or ordinance, and committees or subcommittees thereof, including advisory committees, and public trusts, public benefit corporations, special districts, including all such entities involved in the city's competitive selection process and other public bodies whose board members are appointed or approved by the mayor or city council. This section shall also apply to all city government public bodies including those located outside of City Hall.

(b) With the exception of the city council, it shall be the duty of the person acting as chairperson or director of a public body subject to the provisions of this section to ensure that a copy of the meeting notices for that particular public body required by R.S. 42:7 are submitted for posting on a notice board maintained on the first floor of City Hall by the mayor's office of public advocacy, or its successor. Such notices may be delivered to the mayor's office of public advocacy, or its successor by hand, mail, fax, or e-mail, provided that delivery of the meeting notice shall allow posting of the notice at City Hall at least 24 hours in advance of the meeting.

(c) It shall be the duty of the president of the city council to ensure that copies of all public meeting notices for the city council are posted in accordance with R.S. 42:4.1 et seq. on a notice

board maintained by the council adjacent to the office of the clerk of council. It shall likewise be the duty of council committee chairs to cause notice of meetings of their respective committees to be posted on the council's notice board. A directive to the council chief of staff by the council president or committee chair shall constitute compliance with the provisions of this paragraph.

(d) It shall be the duty of the director of the mayor's office of public advocacy or its successor to maintain a notice board or boards as contemplated by this section on the first floor of City Hall and to ensure that all meeting notices received pursuant to this section are promptly posted, and in compliance with the provisions set forth in this section. The meeting notice board(s) shall be of a design that ensures that notices shall be viewable by the public and prevents tampering with or removing the meeting notices prior to the day after the date of the posted meeting. Expired notices shall be removed promptly, but not later than 72 hours after the end of a meeting. If an electronic meeting notice board is used, the mayor's office of public advocacy or its successor shall, in the event of any malfunction of the electronic board, cause the repair of the board or provide an alternative notice posting in accordance with the provisions of this section within ten working days of the date of the malfunction. The posting requirements of this section shall not be applicable during a period of electronic notice board malfunction.

(e) All public bodies of the city government are encouraged to transmit to the mayor's office of technology or its successor meeting notices in the manner provided in paragraph (b). The mayor's office of technology or its successor is encouraged to post such notices on the city website. Noncompliance with this paragraph shall not constitute a violation of the law.

(f) All public bodies of the city government are encouraged to post notices of their meetings on the internet and shall provide e-mail notices of meetings to interested parties who so request.

(g) The provisions of this section shall become effective on July 31, 2008. The requirements of this section may be deferred beyond July 31, 2008, by motion of the council.

(h) In accordance with R.S. 42:7, in cases of extraordinary emergency, such notice shall not be required; however, the public body shall give such notice of the meeting as it deems appropriate and circumstances permit.

(i) For the purposes of this section, it shall be the duty of the chief administrative officer, after consultation with the department of law, within 30 days of the effective date of this section, [to] issue notice to all entities subject to the provisions of this section explaining their responsibilities under this section. A copy of this notice shall be submitted to the clerk of council and is encouraged to be posted on the city's website.

(j) Penalties.

(1) The general penalty provision of the City Code contained in section 1-13 shall not apply to this section.

(2) The provisions of state law, R.S. 42:4.1 et seq., shall be enforced as provided therein and not through municipal action.

(3) Any board member or unclassified employee who is given a duty under this section who willfully fails to perform the duty may be subject to the provisions of section 3-125 or subsection 9-104(2) of the City Charter, which provide for suspension, dismissal, or removable from office.

(M.C.S., Ord. No. 23100, § 1, 5-1-08)

Sec. 2-13. Review of employment candidates' criminal history.

(a) Applicants to the City of New Orleans, for both classified and unclassified positions, will be considered for employment opportunities based on the merits of their skills and experience related to the position for which they are applying. The hiring department or office (hereafter "hiring department") will conduct interviews of qualified individuals prior to requesting a criminal background check, and no job application submitted prior to such interview shall inquire into an applicant's criminal history. This policy is known as "Ban the Box".

(b) For all positions, the job announcement, recruitment information, and position description shall provide the following information: "The hiring department will conduct interviews of qualified individuals prior to requesting a criminal background check, and no job application submitted prior to such interview shall inquire into an applicant's criminal history. If this position is subject to a background check for any convictions related to its responsibilities and requirements, employment will be contingent upon successful completion of a background investigation including criminal history. Criminal history will not automatically disqualify a candidate."

(c) Following the appropriate recruitment procedure for classified and unclassified personnel, the hiring department will conduct interviews, select up to three applicants per position, and send an authorization to release information form to each applicant following the interview. An enclosure letter to accompany the form informs the applicant that a criminal background check will occur, asks the applicant to disclose any prior convictions, and notifies the applicant that he or she will receive a copy of any report received by the city.

(d) The hiring department shall not consider the following criminal records in its review of the criminal background check:

(1) Records of arrest or charges not followed by a valid conviction;

(2) Sealed, dismissed, or expunged convictions;

(3) Misdemeanor convictions where no jail sentence may be imposed;

(4) Non-felony convictions committed when the applicant was younger than 18 years old, regardless of whether they have been expunged; or

(5) Any felony conviction that does not demonstrate a direct and specific nexus to the duties and essential functions of the position sought. In determining whether a felony conviction has a direct and specific nexus to the duties and essential functions of the position, the hiring department shall consider:

(i) The nature and gravity of the offense;

(ii) The time that has passed since the offense or completion of the sentence;

(iii) The specific duties and responsibilities of the position;

(iv) Whether the applicant has multiple felony convictions; or

(v) Any mitigating factors, including evidence of restitution and rehabilitation on the part of the applicant.

The determination as to whether a criminal felony conviction has a direct and specific nexus to the duties and essential functions of the position sought shall be made in writing.

(e) If the applicant's criminal history includes evidence of a criminal conviction not excluded from consideration under subsection (d), the hiring department shall provide the applicant with an opportunity to respond and submit evidence that the information is inaccurate or that mitigation or rehabilitation has occurred since the conviction, using forms and processes established by the chief administrative officer. After receiving the response form from the applicant with any supplemental information or after the expiration of five business days from notifying the applicant of his or her opportunity for response, whichever occurs first, the hiring department may make a final employment decision using any supplemental information provided by the applicant to consider the nature of the crime, the time elapsed, the nature of the job, and mitigating factors, including those recommended by the U.S. Equal Employment Opportunity Commission in guidance document number 915.002. Evidence of mitigation or rehabilitation may be established by the passage of time since the offense or release from incarceration without any subsequent arrest or conviction; compliance with terms and conditions of probation or parole; completion of mandatory or voluntary drug or alcohol treatment programs, if

relevant; and documentation of current fitness or suitability for the position, including but not limited to letters of reference, certificates of program completion, or records of educational attainment.

(f) If an applicant with a felony conviction is not hired, the hiring department shall document the basis for that decision in writing. This writing shall indicate whether the hiring decision was based, in whole or in part, upon the applicant's criminal history and, if applicable, whether and how the determination that a particular felony conviction demonstrated a direct and specific nexus to the duties and essential functions of the position sought was made, as well as how any mitigating information provided pursuant to subsection (e) was evaluated. To the extent the hiring decision was not based on the existence of the felony conviction, the department shall state in writing the reason the applicant was not selected.

(g) Any information pertaining to an applicant's background check obtained in connection with the hiring process shall remain confidential and shall not be used, distributed, or disseminated by the hiring department, except as otherwise required by law.

(h) The chief administrative office (hereafter "enforcement agency") is authorized to enforce this section and oversee complaints from persons denied employment in violation thereof.

(i) Chief administrative office human resources division shall maintain a record of completed application forms, criminal background checks, and any supplemental information provided by an applicant for a minimum of three years, and shall provide the enforcement agency with access to such records to monitor compliance with this section.

(j) The enforcement agency shall annually conduct an audit of the city's hiring practices to review compliance with this section, and shall provide an annual report to the city council summarizing the findings and recommendations.

(k) If a current city employee's job title or appointing authority changes, then a criminal history check may be performed at the discretion of the appointing authority, and considered using the procedures and criteria outlined in this section.

(l) The law department shall be available to provide quarterly training to appointing authorities or human resources personnel, as needed.

(m) This section shall not apply to any hiring conducted during an emergency, or for positions in the New Orleans Police Department, New Orleans Fire Department, the New Orleans Aviation Board, the New Orleans Office of Homeland Security and Emergency Preparedness, or the Juvenile Justice Intervention Center (Department of Human Services).

(n) Any applicant who is denied employment in violation of this section shall have the right to bring a civil action in Civil District Court to enforce the provisions of this section.
(M.C.S., Ord. No. 27889, § 1, 10-18-18, eff. 3-1-19; M.C.S., Ord. No. 30367, § 1, 6-12-25; M.C.S., Ord. No. 30408, § 1, 7-24-25)

Sec. 2-14. Prohibited salary history inquiry and use.

(a) Definitions. The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Applicant* means any person applying for a classified or unclassified position of employment with the City of New Orleans.

(2) *Inquire* means to communicate any question or statement to an applicant, an applicant's current or prior employer, or a current or former employee or agent of the applicant's current or prior employer, in writing or otherwise, for the purpose of obtaining an applicant's salary history, or to conduct a search of publicly available records or reports for the purpose of obtaining an applicant's salary history, but does not include informing an applicant in writing or otherwise about

the position's proposed or anticipated salary or salary range, or include salary history unilaterally and voluntarily provided by an applicant.

(b) No officer, employee, or agent of the City of New Orleans shall:

(1) Inquire about the salary history of an applicant; or

(2) Screen applicants based on their current or prior wages, benefits, other compensation, or salary histories, including requiring that an applicant's prior wages, benefits, other compensation, or salary history satisfy minimum or maximum criteria; or

(3) Rely on the salary history of an applicant in deciding whether to offer employment to an applicant, or in determining the salary, benefits, or other compensation for such applicant during the hiring process; or

(4) Refuse to hire or otherwise disfavor, injure, or retaliate against an applicant for not disclosing his or her salary history to an employer.

(c) Once an offer of employment that includes a proposed salary is made, the applicant may offer information about salary history in order to negotiate a higher salary. The applicant may be provided with the salary range for the position in the pay plan.

(d) The prohibitions contained in this section shall not apply to:

(1) Any attempts to verify an applicant's disclosure of non-salary-related information or conduct a background check, provided that if such verification or background check discloses the applicant's salary history, such disclosure shall not be relied upon for purposes of determining the salary, benefits, or other compensation of such applicant during the hiring process, including the negotiation of a contract.

(e) The chief administrative office is authorized to enforce this section and oversee complaints for any suspected violation of this section.

(f) Nothing contained in this section shall be construed as creating a private right of action. Further, this section shall not impair any rights under any collective bargaining agreement or supersede any federal, state, or local law.
(M.C.S., Ord. No. 28215, § 1, 10-17-19)

Sec. 2-15. Credit card usage.

No credit card provided by or through the city may be issued to or otherwise used by any person who owns property in Orleans Parish with delinquent and outstanding ad valorem taxes, unless paid under protest and timely challenged in accordance with state law, or who owes an outstanding financial obligation to the city arising from unreimbursed travel costs or damage to city property.
(M.C.S., Ord. No. 30330, § 1, 4-24-25)

Secs. 2-16—2-30. Reserved.

ARTICLE II. MAYOR*

Sec. 2-31. Representation of city at certain corporate meetings.

The mayor shall represent the interest of the city at all meetings of stockholders or elections for directors in any corporation or company in which, by existing laws, the city may be entitled to vote and he may, in all such cases exercise any right to which the city may be entitled and cast the vote of the city at all such meetings and elections.
(Code 1956, § 2-1)

Sec. 2-32. Administer oaths.

The mayor of the city shall have power to administer oaths.
(Code 1956, § 2-2)

Sec. 2-33. Scholarships to Tulane University.

(a) The mayor and administrators of the city were authorized to award five scholarships to the University of Louisiana, now Tulane University of Louisiana, by Ordinance Number 6767, Administration Series, adopted on December 21, 1880. Subsequently, the mayor was authorized to select scholarship recipients in accordance with various requirements contained in Ordinance Number 7540, Administration Series, adopted on January 3, 1882; Ordinance Number 3457, Commission Council Series, adopted on June 7, 1916; and Ordinance Number 2268, Mayor Council Series, adopted on August 24, 1961. This amendment authorizes the mayor and administrators to award ten scholarships to Tulane University. The provisions of this section shall supplement and shall supersede any conflicting provisions of such ordinances.

(b) In an effort to ensure parity citywide and to the extent reasonably possible, two scholarships shall be awarded to two residents and domiciliaries of each councilmanic district. In the event distribution of the scholarships on such basis proves unworkable, the scholarships shall be awarded to individuals without regard to domicile in councilmanic districts.

(c) The mayor is authorized to select ten students annually to receive scholarships to attend Tulane University of Louisiana in accordance with the following provisions and requirements:

(1) Any student who is a graduate of a high school located in the parish and who is a resident of, and legally domiciled in, the parish may apply for the mayoral scholarship. Applicants meeting the following criteria, and who are admitted to an undergraduate division of Tulane University, shall be eligible to compete for the scholarship awards:

a. Demonstrated academic performance (based on grades, quality and difficulty of high school course work, and standardized test scores);

b. Established financial need as determined by federal guidelines;

c. Participation in extracurricular activities or community service, as well as a demonstrated ability of leadership;

d. Letters of recommendations from high school guidance counselor, principal or headmaster.

(2) Application for the scholarship will be made to Tulane University in conjunction with the normal undergraduate admission process. All parish schools shall receive information about the mayoral scholarship. Students shall sign a waiver of confidentiality relative to the mayoral scholarship program as part of the application process.

(3) Applicants will submit their application for admission to an undergraduate division and the completed mayoral scholarship application form to Tulane no later than February 15. Applicants will submit their Financial Aid Form (FAF) no later

*__Charter reference—__Mayor, §§ 4-201—4-208.

__Cross references—__Bonds for city officers and employees, § 2-351; ethics, § 2-681 et seq.; the mayor may close alcoholic beverage establishments under certain circumstances, § 10-186; elections, ch. 58; the mayor to sign all checks on the Wisner capital land fund, § 70-41.

than February 1. Failure to meet these deadlines will automatically disqualify the nominee.

(4) By March 1 of each year the mayor shall appoint a mayoral scholarship selection committee ("the committee"). The committee will consist of seven members described as follows:

a. Two members shall be principals or counselors from public high schools located in the parish.

b. One member shall be a high school principal or counselor from a private or parochial high school located in the parish.

c. Two members shall be representatives of institutions of higher education to be selected by the presidents of Tulane University, Dillard University, University of New Orleans (UNO), Southern University in New Orleans (SUNO), Loyola University and Xavier University.

d. One member shall be nominated by the city council and one member shall be an at-large appointment of the mayor.

Members of the committee shall serve for one year only, and a new committee will be selected each year on a rotation basis using the guidelines described above.

(5) By March 1, Tulane will certify to the mayor the names of all students who applied for the mayoral scholarship and to the committee the names of all applicants who have been admitted into an undergraduate division of Tulane University and who are eligible for the mayoral scholarships based upon the criteria described in subsection (c)(1) of this section.

(6) By March 15, the committee shall submit to the mayor a list of 30 names selected from the list certified by Tulane University. This list shall be a public record and shall be submitted to the city council.

(7) By April 1, the mayor shall select ten names from the list submitted by the committee as recipients of the mayoral scholarships.

(8) The selected scholars must notify Tulane of their acceptance of the offer of admission to Tulane and the scholarship no later than April 15.

(9) Formal appointments will be made by the mayor subject to the confirmation by the city council, no later than May 30 on a form supplied by Tulane. The mayor, in conjunction with Tulane University, will announce publicly by April 30 the names of the recipients of the mayoral scholarships.

(10) If a scholarship recipient declines to enroll at Tulane, the mayor shall award the scholarship to an eligible student remaining on the list submitted by the committee.

(11) Mayoral scholarship awards shall be for a four-year period.

(12) No person who is elected to public office in the state, including U.S. Senators and Representatives, state elected officials including members of the legislature, state, municipal and parish officials, nor persons elected to serve on political party committee shall be eligible to receive a mayoral scholarship.

(13) No elected official, as described above, shall award a mayoral scholarship to his own relative.

(14) No person related to an elected official (child, brother, sister, parent, spouse, aunt, uncle, nephew, niece, first cousin, mother-in-law, father-in-law, sister-in-law, or brother-in-law) as described above, shall be eligible to receive a mayoral scholarship unless the relationship of the recipient is certified by Tulane as having ranked among eligible applicants with the highest academic credentials and highest level of financial need under federal guidelines established for financial need.

(15) All public and elected officials participating in this scholarship selection process shall be subject to the provisions of the codes of ethics for the state and the city.

(16) No appointed official of the city, including appointments to boards and commissions, nor any unclassified person appointed to or employed by the city or any board or commission of the city, shall be eligible to receive scholarships under the provisions of this section.

(17) No person who is related to an appointed official or unclassified employee of the city or any board or commission of the city, as mentioned in subsection (c)(12) of this section shall be eligible to receive a scholarship under the provisions of this section if the relative is the child, brother, sister, parent, spouse, aunt, uncle, nephew, niece, first cousin, mother-in-law, father-in-law, sister-in-law, or brother-in-law, of such appointed official or unclassified employee.

(Code 1956, § 2-2.1; M.C.S., Ord. No. 16,625, 9-1-94; M.C.S., Ord. No. 16,980, § 1, 4-6-95; Ord. No. 20,729, § 1, 5-16-02; M.C.S., Ord. No. 29805, § 1, 2-1-24)

Cross reference—Schools, ch. 126.

Sec. 2-34. Salary of mayor.

Pursuant to section 4-203 of the Home Rule Charter of the City of New Orleans, effective on the first Monday in May, 2010, the mayor of the city shall receive an annual salary of $140,000.00.

Each succeeding first Monday in May, on an annual basis, the mayor of the city shall receive a salary increase of two and one-half percent of the mayor [salary] paid to him in the year of his term immediately preceding such increase; provided that the increase provided for in this paragraph shall not be effective until completion of the first year following the taking of office, except in the event that a person is elected to serve a consecutive term as mayor.

(M.C.S., Ord. No. 23749, § 2, 10-1-09)

Secs. 2-35—2-55. Reserved.

ARTICLE III. CITY COUNCIL*

Sec. 2-56. Reference to members in official documents.

(a) All forms, letterheads, legislation and other documents produced or published by the city government which make reference to the city council or its members shall refer to the members as "councilmember," "councilmembers" or "members of the council" and not to "councilman," "councilmen," "councilwoman," "councilwomen" or "councilperson." The provisions of this section shall not apply to those legal documents which, in the opinion of the city attorney, require the use of the term "councilmen" or "councilman" to comply with the designation prescribed in the home rule charter.

(b) The provisions of this section are prospective. All existing forms, letterheads, legislation and other documents may continue to be used until the supply of such forms, letterheads or other documents is depleted.

(c) Upon submission of a comprehensive revision of the Home Rule Charter to the voters of the city, proposed amendments to the Charter shall reflect the designation of person serving on the council as councilmember or councilmembers.

(Code 1956, § 1-21)

Sec. 2-57. Subpoenas of city council; administration of oaths.

The city council, pursuant to section 3-124 of the Home Rule Charter, may issue subpoenas and subpoenas duces tecum directed to any person who may be found and served within the boundaries of the city, directing such person to appear and testify under oath or otherwise before and/or answer questions presented by the city council or its designated agent. Subpoenas shall be issued by the clerk of council upon the written request of the president of the council or by the president of the council upon the written request of any three councilmembers. A subpoena shall

*__Charter reference—__The council, §§ 3-101—3-131.

Cross references—Bonds for city officers and employees, § 2-351; ethics, § 2-681 et seq.; election precincts, § 58-36 et seq.

be served upon the person to whom the subpoena is directed by a commissioned police officer or by any other person of full legal age and capacity whom the president of the council signing such subpoena may designate. Any person appearing before the city council, or at such place designated by the council or its designated agent for the purpose of giving testimony or for the purpose of answering questions presented by the council or its designated agent, whether such appearance is voluntary or pursuant to a subpoena, may be required by the president of the council to swear or affirm that the testimony proffered or the answers to be given by such person are true, correct, and complete to the best of such person's information, knowledge, and belief, provided, however, that no person shall be compelled to give testimony, or answer questions, or produce documents or objects when such person lawfully and explicitly declines so to do upon grounds afforded by the Fifth Amendment of the Constitution of the United States of America and/or section 13 of article I of the Constitution of the State of Louisiana of 1974. Any oath or affirmation required by the city council shall be administered by a notary public duly commissioned in and for the parish.
(Code 1956, § 2A-1)

Sec. 2-58. Contempt of the council.

(a) Contempt of the city council is the willful or contumacious refusal or failure by any person to appear and testify under oath or otherwise before and/or answer questions presented by the city council or its designated agent pursuant to and at the time and place designated by a subpoena of the council issued pursuant to section 3-124 of the Home Rule Charter of the city or any other provision of law authorizing the council to issue subpoena, and/or the willful or contumacious refusal or failure to produce document or objects for the inspection by the council or its designated agent pursuant to and at the time and place designated by a subpoena of the council issued pursuant to section 3-124 of the Home Rule Charter or any other provision of law authorizing the council to issue subpoenas, and/or the intentional or grossly contumacious giving of false testimony under oath or affirmation before the council or its designated agent, pursuant to and at the time and place designated by a subpoena of the council issued pursuant to section 3-124 of the Home Rule Charter of the city or any other provision of law authorizing the council to issue subpoenas.

(b) Any act or omission constituting contempt of the city council shall be unlawful and punishable as a misdemeanor.
(Code 1956, § 2A-2)

Sec. 2-59. Council approval of certain grants.

(a) *Background.* The city council approves various grants to individuals, corporations, and other persons pursuant to law or contractual agreements. The grants may include, but are not limited to, grants from the economic development fund, the neighborhood housing assistance fund, Entergy and Harrah's. The purpose of this section is to establish minimum information and reporting requirements for persons or entities seeking approval of all such grants and to ensure that pertinent information is made available to the public.

(b) *Questionnaires.* Prior to approval of any grant request subject to the approval of the city council, the applicant for said grant shall submit a completed questionnaire on forms approved and provided by the council. At a minimum, the following information shall be required:

(1) The name, physical address, telephone number, taxpayer identification number, website address (if applicable) of the applicant and a statement from the director of finance that the applicant owes no back taxes to the city and holds all necessary licenses or permits from the city.

(2) If the applicant is a corporation or other entity that is required to register with the secretary of state, certification that the entity is currently in good standing with the secretary of state.

(3) Where applicable, a list of all officers and directors of the entity.

(4) A list of all current contractors and subcontractors of the person or entity. For each contractor or subcontractor, a list of officers, directors, certificate of good standing with the secretary of state and a statement from the director of finance that the contractor or subcontractor owes no back taxes to the city.

(5) A copy of the applicant's most recent financial audit, if available.

(6) A statement indicating the applicant's sources of funding, including private donations, self-generated funds, and funding from city, state, or federal sources.

(7) A statement of the applicant's accomplishments to the date of the grant application. References, media accounts, and similar supporting documentation should be included.

(8) To the applicant's best knowledge and belief and ability's a list of all political campaign contributions made by officers, directors, and employees of the entity within 12 months prior to the date of the application. Information provided in compliance with the provisions of this section shall not be used to disqualify any applicant or application from the grant application process. The reporting requirements of this subparagraph shall expire at the end of the grant period.

(9) A statement as to whether, to the applicant's best knowledge and belief, any member of the New Orleans City Council may have reason for recusal from voting under the provisions of the Louisiana Code of Governmental Ethics. For informational purposes, pertinent excerpts from the ethics code shall be included in the questionnaire.

(c) *Initial questionnaire.* The initial questionnaire that shall be used in connection with this section is attached hereto as Exhibit A and made a part of M.C.S., Ordinance No. 25728, the ordinance adopting this section. (The clerk shall insert the M.C.S. Number of this ordinance in the blank space prior to submission of this section for codification.) This questionnaire may be amended by a motion adopted by a majority of all members of the city council.

(d) *Reporting requirements and amendments to information supplied on questionnaire.* Any grant agreement approved pursuant to this section shall require that the applicant update questionnaire information within 14 days of any change of information and such updates shall be provided to the clerk of council. Further, the grant agreement shall require that semiannual reports and narrative reports on the progress of grant activities be made available upon request to the clerk of council. Such reports shall indicate the use of grant funds for the preceding first or third quarter, as may be applicable.

(e) *Public records.* All questionnaires, reports, and updates are public records and shall be made available for public inspection upon request at the office of the clerk of council.

(f) The City Council/Cox Communications Louisiana's Community Grant Program shall not be subject to this section.
(M.C.S., Ord. No. 22410, § 1, 10-5-06; M.C.S., Ord. No. 25728, § 1, 3-27-14; M.C.S., Ord. No. 26494, § 1, 7-9-15)

Editor's note—Exhibit A, referenced above, is not set out herein, but is on file and available for inspection in the city offices.

Sec. 2-60. Salaries of councilmembers.

Pursuant to section 3-106(1) of the Home Rule Charter, effective on the first Monday in May, 2010, each councilmember shall receive an annual salary of $83,507.00.

Each succeeding first Monday in May, on an annual basis, each councilmember shall receive a cost of living adjustment according to the rate of inflation defined by the Federal Bureau of Labor Statistics.
(M.C.S., Ord. No. 23749, § 1, 10-1-09)

Sec. 2-61. Quarterly oversight and review of public safety agencies.

(a) The below-referenced agencies funded in part or wholly by city funds shall appear at a public meeting of the criminal justice committee

no less than four times a year to present on their ongoing efforts to promote public safety. Appearance at a council budget hearing shall satisfy this appearance requirement for the fourth quarter of any year.

(b) The following agencies and their leadership shall appear at the above quarterly review:

(1) New Orleans Police Department

(2) Orleans Parish District Attorney

(3) Orleans Parish Criminal District Court, including the Chief Judge, Deputy Chief Judge, and Magistrate Judge

(5) Orleans Parish Sheriff

(6) Office of the Independent Police Monitor

(7) Juvenile Justice Intervention Center

(8) Orleans Parish Coroner

(9) Orleans Parish Municipal and Traffic Court

(c) The foregoing agencies shall meet and confer at least one week prior to each quarterly review to identify (i) areas relating to public safety in need of improvement, (ii) opportunities for greater cooperation among the agencies, (iii) issues that should be brought to the attention of the criminal justice committee, and (iv) potential solutions to problems that would benefit from criminal justice committee support.

(d) The review shall include presentations on the agency's year-to-date budget, operational challenges, legislative needs or any other matters relevant to the council's oversight.

(e) The leader of the police department's professional standards and accountability bureau (PSAB) shall also present an overview of all audits conducted by PSAB in the past quarter (consistent with an audit plan to be shared with the criminal justice committee at the beginning of each year), the recommendations resulting from those audits, and the remedial measures implemented as a result of those recommendations.

(f) The police department shall also report on significant data compiled during the prior quarter on its drone program. Significant data includes, but is not limited to:

(1) Material changes in number of drone flights;

(2) Material changes in types and purposes of drone use;

(3) Any deviations from department policy on approved or restricted drone use;

(4) Any safety concerns because of drone use;

(5) Any equipment concerns because of drone use;

(6) Equipment, supplies, and attachments used during drone deployment; and

(7) All agencies, offices and the city departments requesting drone deployment.

(M.C.S., Ord. No. 29063, § 1, 6-23-22; M.C.S., Ord. No. 29980, § 1, 7-11-24; M.C.S., Ord. No. 30100, § 1, 10-10-24; M.C.S., Ord. No. 30726, § 1, 8-6-26)

Sec. 2-61.5. Date of receipt by the council.

Except as otherwise expressly provided by law, receipt of any document required to be transmitted to the council, directly or through the clerk of council, shall be deemed to occur on the date when the communication transmitting the document appears and is formally marked as "received" on the agenda of a regular or special council meeting.

(M.C.S., Ord. No. 29812, § 1, 2-22-24)

Editor's note—M.C.S., Ord. No. 29812, § 1, adopted Feb. 22, 2024, set out provisions intended for use as § 2-61. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 2-61.5.

Sec. 2-62. Monthly disclosures of raw data.

(a) The below referenced agencies funded in part or wholly by city funds shall submit raw data in machine readable format to the city council no less than once per month.

(b) The following agencies shall submit raw data as requested by the city council in machine readable format to a centralized data repository to which the city council has access with appropriate privacy protections applied as needed:

(1) New Orleans Police Department.

(2) Orleans Parish District Attorney.

(3) Orleans Criminal District Court.

(4) Orleans Juvenile Court.

(5) Orleans Parish Municipal & Traffic Court.

(6) Orleans Parish Sheriff.

(7) Juvenile Justice Intervention Center.

(8) Office of the Independent Police Monitor.

(c) In addition to the aforementioned agencies, the New Orleans Police Department shall submit raw data in machine readable format to the city council in a readily accessible manner with appropriate privacy protections applied as needed. The New Orleans Police Department's submission shall include the following specific datasets:

(1) Homicides — To include item number, date, victim race/gender, weapon used, motive, and clearance status.

(2) Nonfatal shooting datasets — To include item number, date, victim race/gender, weapon used, motive, and clearance status.

(3) Staffing by position, rank, hire date, and job location.

(4) Overtime expenditures and purposes.

(5) Number of separations by officer rank each month.

(6) Requests for video from the Real-Time Crime Center and Louisiana State Analytical and Fusion Exchange Center including item number and whether relevant video was found.

(7) Drone flight logs.

(d) In addition to the datasets required in subsection (c) above, the police department shall also publish the following complete datasets to the public, except any data that is exempt from disclosure pursuant to La. Rev. Stat. § 44:3:

(1) Calls for Service.

(2) Electronic Police Reports.

(3) Use of Force.

(4) Misconduct cases including case disposition.

(5) Stop and Search.

(6) Aggregated crime statistics. Statistics shall be published at least monthly and include all major UCR Part I or NIBRS Summary Report System crime categories as well as nonfatal shootings. The data shall include aggregated statistics for the current year and each of the last five years to date (YTD).

(7) Drone deployment data, including at least the following information:

a. Flight takeoff point;

b. Deployment time and date;

c. Flight duration;

d. Intended purpose of deployment;

e. Whether the use was effective for the intended purpose;

f. Purpose the drone usage supported, from one or more of the following categories:

i. Call for service;

ii. Emergency event, special event, or disaster response (including post-event review);

iii. Forensics collection;

iv. Tactical operations;

v. Training;

vi. Rescue response;

vii. Missing person search;

viii. Suspect search;

ix. Crime scene investigations;

x. Post-critical incident review or reconstruction; and

xi. Other (specified);

g. Whether the deployment was under the Drone as a First Responder (semi-autonomous remote drone) program;

h. Identification of deployed drone;

i. Police division, district and sector involved;

j. Identity of operator in command;

k. Identity of supervising officer;

l. Identity of designated visual observer;

m. Summary of activities conducted and actions taken;

n. Safety concerns regarding deployment, if any;

o. Equipment concerns regarding deployment, if any;

p. Drone attachments used, if any; and

q. Agency, office, or city department requesting drone deployment.

(e) The civil service department shall produce current staffing, hiring, and applications for the police department in machine readable format updated at least monthly.
(M.C.S., Ord. No. 29130, § 1, 8-4-22; M.C.S., Ord. No. 30726, § 1, 8-6-26)

Sec. 2-63. Budget submission and monitoring requirements for certain agencies.

(a) The following agencies that are involved in the criminal legal system and are funded in part or wholly by city funds shall be subject to the budget submission and monitoring requirements in this section:

(1) Clerk of Orleans Parish Criminal District Court,

(2) Municipal and Traffic Court of New Orleans,

(3) Orleans Parish Communications District,

(4) Orleans Parish Coroner,

(5) Orleans Parish Criminal District Court,

(6) Orleans Parish District Attorney,

(7) Orleans Parish Juvenile Court,

(8) Orleans Parish Sheriff, and

(9) Orleans Public Defender.

(b) In accordance with Home Rule Charter section 6-102(2), each agency shall submit detailed data to the chief administrative officer in accordance with a schedule prescribed by the chief administrative officer for compilation and recommendations for review by the mayor prior to the mayor's submission of the proposed annual budget to the city council. Such data submission shall provide enough detail to allow the city to provide appropriations to each agency in the following categories, in accordance with Home Rule Charter section 6-102(5): personal services of officers and employees, other operating expenses, debt service, and such other classes of appropriations as the mayor may annually establish. Such data submission shall be formatted in accordance with a template provided by the chief administrative officer and approved by the chair of the city council's budget, audit, and board of review committee.

(c) On or before January 1 of each year, each agency shall provide a detailed budget to the clerk of council following the adoption of the city's annual budget, to reflect the agency's anticipated revenues and expenditures based on the city's adopted budget for that year. Such budget shall be formatted in accordance with a template provided by the chief administrative officer and approved by the chair of the city council's budget, audit, and board of review committee. The department of finance shall not disburse any funds to any agency referenced in this section unless and until the chief administrative officer and the chair of the city council's budget, audit, and board of review committee receives the detailed budget as required above.

(d) On or before the last day of each month other than January, each agency shall provide an expenditure report to the clerk of council reflecting the following for the previous calendar month: (1) actual personnel spending (year-to-date), (2) personnel spending projections through the end

of the year, (3) actual other operating expenditures (year-to-date), (4) other operating expenditure projections through the end of the year, and (5) staffing and vacancy data. Such reports shall be formatted in accordance with a template provided by the chief administrative officer and approved by the chair of the city council's budget, audit, and board of review committee. Personnel projection submissions shall include a description of the methodology used in determining the projections and a list of any applicable assumptions.

(e) In the event an agency seeks an additional partial-year appropriation from the city during a budget year, such agency shall submit a single letter detailing such supplemental budget request to both the chief administrative officer and chair of the city council's budget, audit, and board of review committee.

(f) In accordance with section 6-103(1) of the Home Rule Charter, each appropriation made to each agency shall be considered valid only for the year for which it is made, and any part of such appropriation which is not encumbered or expended shall lapse at the end of the year. Any such amount that has been paid by the city to such agency but not encumbered or expended at the end of each year shall be expressly identified and reported to the chief administrative officer and chair of the city council's budget, audit, and board of review committee by March 31 of the following year, at which time the agency's appropriation from the city for that year shall be reduced by a corresponding amount.
(M.C.S., Ord. No. 29754, § 1, 12-1-23)

Secs. 2-64—2-85. Reserved.

ARTICLE IV. BOARDS, COMMITTEES AND COMMISSIONS*

DIVISION 1. GENERALLY

Sec. 2-86. Diversity in composition.

(a) There are numerous boards, commissions, and other similar entities performing governmental functions in the city, a city with a great cosmopolitan population consisting of large numbers of people of every race, color, creed, religion, age, physical condition, national origin and ancestry, including many persons with disabilities. The composition of such boards and commissions should reflect the diversity of our population. Boards, commissions, and other entities that are truly reflective of the demographics of the city promote mutual understanding and decisions made by boards constituted of a membership that reflects the diversity of the city's population should be responsive to the needs and aspirations of all members of our community. It is the policy of the city that the mayor and all other appointing authorities and nominating

*__Charter references—__Boards and commissions generally, §§ 4-102(2), 4-104, 4-108; appointment, § 4-206(1)(e); meetings attended by chief administrative officer, § 4-302(8); board of building standards and appeals, § 4-703; examining and licensing boards, § 4-704; board of trustees of the police pension fund, § 4-1304; board of trustees of the municipal employees' retirement system, § 4-1305; department of parks and parkways, art. IV, ch. 17; board of city trusts, art. IV, ch. 18; mosquito control board, art. IV, ch. 21; board of zoning adjustment, § 5-409; board of liquidation, art. V, ch. 1; public belt railroad commission, art. V, ch. 2; sewerage and water board, art. V, ch. 3; planning commission, art. V, ch. 4; public library board, art. V, ch. 5; aviation board, art. V, ch. 6; Vieux Carré Commission, art. V, ch. 7; alcoholic beverage control board, art. V, ch. 9; civil service commission, § 8-103; boards and commissions, general requirements, art. IX, ch. 1; annual reports, § 9-304.

__Cross references—__Ethics, § 2-681 et seq.; alcoholic beverage control board, § 10-76; New Orleans aviation board, § 22-36 et seq.; board of appeals for airport zoning for the New Orleans International Airport, § 22-226 et seq.; board of examiners, § 26-56 et seq.; citizens advisory committee on housing improvement, § 26-176 et seq.; New Orleans human relations commission, § 86-36 et seq.; blue ribbon committee on carnival, Mardi Gras, § 86-86; public library board, § 94-1; parkway and park commission, § 106-61 et seq.; Audubon Park commission, § 106-101 et seq.; board of trustees of the retirement system, § 114-86 et seq.; planning commission, § 118-36 et seq.; tax review committee, § 150-151 et seq.

organizations for boards, commissions, and other legal entities performing functions for or on behalf of the city should consider the demographic composition of the board or other entity in proposing or making appointments to the board or other entity to ensure that the board's composition will be reflective of the city as a whole.

(b) It shall be the duty of the chief administrative officer to notify all appointing authorities and nominating organizations for boards, commissions, and other similar entities performing city governmental functions in the city of the provisions of this section within 30 days of the effective date of the ordinance from which this section was derived and periodically thereafter. (Code 1956, § 1-23)

Sec. 2-87. Attendance of board members.

1. For purposes of this section, the term "board" shall refer to all city boards, commissions, authorities and other public bodies except the council, as defined in section 9-101 of the Home Rule Charter of the City of New Orleans ("Charter").

2. Every city board shall submit an annual report to the city council and the office of the mayor containing the attendance records for every person serving as a member of the respective board on the date of submission.

(a) The report shall be submitted no later than February 1 of each calendar year, and shall cover the period January 1 through December 31, inclusive, immediately preceding the date of submission.

(b) The report shall list every board meeting that was scheduled to take place during the relevant period, including any meetings that were cancelled due to a lack of a quorum, and shall identify for each member whether the member was "present" or "absent" for each meeting.

(1) It shall be the responsibility of each board member to advise the board not less than 24 hours before the start of any scheduled meeting whether he or she intends to be present at the meeting.

a. Regardless of the member's stated intent, he or she will be deemed "present" or "absent" according to their actual attendance, or failure to attend, the meeting.

b. In the event that a meeting is cancelled in advance of its scheduled start due to an anticipated lack of a quorum, each member shall be deemed "present" or "absent" from the meeting according to his or her stated intent.

i. Any member who fails to timely advise the board as to whether they intend to be present shall be deemed "absent" from the cancelled meeting.

(2) A board member who is physically present at a meeting shall nonetheless be deemed "absent" from that meeting if:

a. The member leaves the meeting prior to its completion; and

b. The meeting is suspended or adjourned at any point after the member leaves due to a lack of a quorum.

(c) The absence of any board member from more than 25 percent of all scheduled board meetings in any 12-month period shall constitute reasonable cause for their removal by the appointing authority pursuant to subsection 9-104(2) of the Charter.

(1) The appointing authority shall initiate the removal process within 180 days of the end of the 12-month period that is being considered.

(2) Any member so removed shall have reasonable opportunity to be heard publicly before the council, and in

such event the removal shall be effective only if approved by a majority of the council.

3. A city board shall submit to the city council and the office of the mayor the most recent attendance records for any member of the respective board who has been nominated for reappointment to that board.

(a) The board shall submit the member's attendance records for all scheduled board meetings within one year prior to the date of their nomination for reappointment. However, the board need not resubmit attendance records for any meetings that were previously submitted as part of an annual attendance report pursuant to this Section.

(b) The board shall submit the required records within five business days of receiving notice of the member's nomination for reappointment.

(M.C.S., Ord. No. 24132, § 1, 9-16-10)

Sec. 2-87.1. Submittal of board questionnaire prior to appointment.

Prior to an individual's appointment to any board, commission, authority or other public body as defined in this division (hereafter "board"), said individual shall submit a completed and notarized questionnaire on forms provided by the council research office. Failure to submit said questionnaire shall preclude appointment. Any material misrepresentation submitted on a questionnaire shall provide cause for removal of an appointed board member. The requirements of this section shall not apply to appointments of elected officials, nor shall they apply to security districts created and approved pursuant to LA. R.S. 33:9100.21.

(M.C.S., Ord. No. 27887, § 1, 10-4-18)

Sec. 2-87.2. Board membership and governance reporting requirements.

Any city board, commission, authority or other public body as defined in this division (hereafter "board"), shall be subject to the following reporting requirements:

(1) No later than February 1 of each calendar year, every board shall submit to the clerk of council and to the mayor a complete list of its current membership including: the appointing authority, requisite qualifications of membership, if any, and the current membership terms (appointment date and expiration date) for each appointed member.

(2) Within 30 days of receipt of notice or the actual occurrence of any vacancy on a board, the board shall submit written notice to the clerk of council and to the mayor alerting each of the vacancy.

(3) No later than February 1 of each calendar year, each board that is governed by Articles of Incorporation, By-Laws, or any similar civil instrument of governance (hereafter governing documentation), shall submit a copy of its most recent governing documentation, which shall include any amendments adopted by the board that calendar year, if any. If no amendments to the governing documentation occurred within the calendar year, notification shall still be submitted, which provides that no amendments were adopted that year. If amendments require council approval as provided by law, no such amendments shall become effective until approved by the council.

(4) No later than February 1 of each calendar year, every board shall submit to the clerk of council and the mayor any changes to the information submitted on the approved membership questionnaire submitted prior to appointment, including but not limited to: any change in residence and/or domicile, elector status, mailing, or business addresses, phone numbers, or e-mail addresses.

The requirements of this section shall not apply to appointments of elected officials, nor shall they apply to security districts created and approved pursuant to LA. R.S. 33:9100.21.

(M.C.S., Ord. No. 27887, § 1, 10-4-18)

Sec. 2-88. Budgetary reporting requirements.

Any city board, commission, authority and other public body as defined in this division

(hereafter "board"), shall be subject to the following reporting and presentation requirements if the board receives any city funding; or administers or manages any assets owned by the city:

(1) Submittal of budgetary documentation to the council fiscal office no later than one week following the mayor's presentation of the executive budget to the council submitting a proposed budget for the following fiscal year on forms approved and provided by the council fiscal office.

(2) Appear before and make a presentation of the board's proposed budget for the following fiscal year to the council's budget, audit, and board of review committee, or to the full council as part of the annual public hearings on the proposed budget as enumerated in section 3-115 of the Home Rule Charter.

The requirements of this section shall not apply to security districts created and approved pursuant to LA. R.S. 33:9100.21.
(M.C.S., Ord. No. 27887, § 1, 10-4-18)

Secs. 2-89—2-105. Reserved.

DIVISION 2. RESERVED*

Secs. 2-106—2-130. Reserved.

DIVISION 3. DELGADO ALBANIA PLANTATION COMMISSION†

Sec. 2-131. Committees and employees authorized.

The Delgado Albania Plantation Commission may designate and appoint, from among its members, various committees with such powers and duties as it may have and prescribe, it may select and employ such necessary persons to carry out the purposes for which it is created.
(Code 1956, § 17-1)

Sec. 2-132. Attorney.

The city attorney shall be ex officio the attorney for the Delgado Albania Plantation Commission.
(Code 1956, § 17-1)

Sec. 2-133. Rules and regulations.

The Delgado Albania Plantation Commission shall make such rules and regulations as it may deem advisable and necessary for the conduct of its affairs not inconsistent with the laws of the city and the laws of the state.
(Code 1956, § 17-2)

Sec. 2-134. Meetings.

The Delgado Albania Plantation Commission shall meet monthly, but meetings may be held at any time by the commission on the written request of any three members or on the call of the chairman or the mayor.
(Code 1956, § 17-3)

Sec. 2-135. Contracts.

Any contract affecting the Delgado Albania Plantation or the operation thereof shall be submitted to the council for its approval before execution and all contracts shall be made in the name of the city and shall be entered into and executed in accordance with the provisions of law affecting contracts of the city.
(Code 1956, § 17-4)

Sec. 2-136. Annual report and recommendations.

The Delgado Albania Plantation Commission shall make annual reports to the mayor and council, containing a statement of its activities. It shall make its recommendations for the future, but recommendations may be made by the council to the commission, at any time.
(Code 1956, § 17-5)

*__Editor's note—__M.C.S., Ord. No. 17,443, § 1, adopted March 7, 1996, repealed div. 2, which pertained to board of welfare and derived from §§ Code 1956, §§ 68-1—68-4.

†__Charter references—__Composition, functions, manager of the commission, § 4-1402; boards and commissions generally, §§ 9-101—9-107; annual report, § 9-304.

__Cross reference—__Streets, sidewalks and other public places, ch. 146.

Sec. 2-137. Revolving fund.

(a) There is hereby established a revolving fund, in accordance with section 6-208 of the City Charter, to be designated as the "Revolving Fund of the Delgado Albania Plantation Commission," into which money shall be paid and which shall be administered as set forth in this section.

(b) All revenues accruing from the operation, or leasing of the property shall be placed in such fund and deposited to the account of such fund in a bank which has been designated as a city depository, in accordance with the procedure set forth in the Charter.

(c) The Delgado Albania Plantation Commission, through the director of the department of property management, shall submit annually to the council, not later than December 1, in each year, a proposed budget of revenues and expenditures covering the operation of the Delgado Albania Plantation for the following calendar year, which shall be first approved by the council before any disbursements are made therefrom. Funds placed in such revolving fund of the Delgado Albania Plantation Commission shall be used and disbursed solely in the manner provided in section 4-1403 of the Charter.
(Code 1956, § 17-6)

Cross references—Finance, ch. 70; funds, § 70-81 et seq.

Secs. 2-138—2-155. Reserved.

DIVISION 4. EDWARD WISNER DONATION ADVISORY COMMITTEE*

Sec. 2-156. Establishment and membership.

An advisory committee, to be known as the "Edward Wisner Donation Advisory Committee," is hereby constituted and created. The advisory committee shall be composed of five members. One member shall be the mayor of the city or some one designated by him to act in his place. The mayor or his designee shall be the chairman of the committee. The other members of the committee are to be selected and appointed as follows: one by the administrators of the Tulane Educational Fund, one by the board of administrators of the Charity Hospital, one by the Salvation Army of America and one jointly by the heirs, legatees or assigns of the late Edward Wisner or a majority in interest thereof.
(Code 1956, § 19-1)

Sec. 2-157. Terms of office.

The persons appointed to the Edward Wisner Donation Advisory Committee shall serve until their respective successors have been appointed and notified in writing to the mayor.
(Code 1956, § 19-2)

Sec. 2-158. Rules and regulations.

The Edward Wisner Donation Advisory Committee may adopt such rules and regulations as it may deem advisable and as are not in conflict with this division or with the terms of the compromise agreement with the widow and heirs of Edward J. Wisner authorized by Ordinance No. 11,243, Commission Council Series.
(Code 1956, § 19-3)

Sec. 2-159. Function.

Subject to the control and direction of the council, the powers, duties and functions of the Edward Wisner Donation Advisory Committee shall be the supervision, direction and administra-

*__Charter reference—__Boards and commissions general requirements, art. IX, ch. 1.

Cross reference—Mayor to sign all checks on the Wisner capital land fund, § 70-41.

tion of all of the lands, funds and avails constituting and comprising the Wisner donation, or the avails or fruits thereof, and to consult with and advise the mayor in his capacity as trustee upon all matters pertaining to such trust and the mayor when acting upon the advice of the committee, or a majority thereof, shall be deemed to be acting for and in behalf of all the parties at interest. To that end all matters relating to the trust shall in the first instance be referred to and handled by the committee.
(Code 1956, § 19-4)

Sec. 2-160. Payment of expenses.

All expenses necessary or proper, incurred by the Edward Wisner Donation Advisory Committee shall be paid on the advice of the committee and the approval of the mayor out of any funds belonging to the trust estate.
(Code 1956, § 19-5)

Sec. 2-161. Reports to council.

The Edward Wisner Donation Advisory Committee shall, at least once a year, deliver to the mayor for transmission to the council a report of its actions.
(Code 1956, § 19-6)

Sec. 2-162. Prohibited contracts and expenditures.

The city shall not, in connection with an economic-development project or for an economic-development purpose, provide any public funds or enter into any contract in which it is contemplated that public funds will be provided, directly or indirectly, to any person or entity:

A. Engaged in litigation in which that person or entity

1. Asserts a claim of ownership to any portion of the corpus of the Wisner donation, as described in this division, or the avails or fruits thereof accruing on or after August 4, 2014, or

2. Otherwise contests the claim to full ownership of the former corpus of the Edward Wisner donation, or to the avails or fruits thereof, asserted by the city or by a political subdivision or unit thereof;

B. Engaged in litigation in which that person or entity asserts that it is currently a beneficiary of the Wisner donation by virtue of an extension of the Wisner donation entered into on or after August 4, 2014 or by the creation of a new trust constituting the former corpus of the Wisner donation occurring on or after August 4, 2014; or

C. Holding an ownership interest in the former corpus of the Wisner donation, either directly or in the capacity of trust beneficiary, by virtue of a final judgment from court of competent jurisdiction rendered on or after the effective date of this ordinance.

(M.C.S., Ord. No. 30154, § 1, 11-21-24)

Secs. 2-163—2-185. Reserved.

DIVISION 5. MUSIC AND ENTERTAINMENT COMMISSION OF NEW ORLEANS*

Sec. 2-186. Purposes.

It is hereby found and determined that promotion and encouragement of this city's world-renowned musicians and composers and the music and entertainment industry in general would be a significant contribution to economic development in the community. It is further found and determined that a single entity should be established to promote our industry and to act as a liaison between the government and the private sector.
(Code 1956, § 18A-11)

Sec. 2-187. Established, appointment.

There is hereby established an advisory committee to be known as the Music and Entertainment Commission of New Orleans. The

*__Charter reference—__Boards and commissions general requirements, art. IX, ch. 1.

__Cross reference—__Amusements and entertainments, ch. 14.

commission should be created in accordance with the provisions of section 4-104 of the Charter to consist of nine members. Two members should be appointed by the mayor, and the mayor should further appoint one member designated by each member of the council.
(Code 1956, § 18A-12)

Sec. 2-188. Reports.

The music and entertainment commission shall provide periodic reports to the mayor and the council regarding its activities and shall make such recommendations as it deems advisable to promote the purposes of this division.
(Code 1956, § 18A-13)

Secs. 2-189—2-210. Reserved.

DIVISION 6. NEW ORLEANS CIVIL SERVICE COMMISSION*

Sec. 2-211. Appointment of successor to member nominated by president of St. Mary's Dominican College.

The city council shall appoint the successor to the member of the New Orleans City Civil Service Commission nominated by the President of St. Mary's Dominican College in the following manner. The appointment shall be made by the council from a list of four nominees submitted by the chancellors of the University of New Orleans and Southern University at New Orleans. Within 30 days after a vacancy occurs, the university chancellor or chancellors concerned shall submit the required nominations. On the initial list of four nominations submitted by the chancellors of the University of New Orleans and Southern University at New Orleans, the nominations of the chancellor of Southern University at New Orleans shall precede those of the chancellor of the University of New Orleans, and on subsequent lists the first two nominees shall be alternately those of the chancellor of the University of New Orleans and the chancellor of Southern University at New Orleans. Within 30 days thereafter, the council shall make the appointment. For the purposes of this section, Southern University at New Orleans and the University of New Orleans shall be considered one nominating authority; however, if either chancellor fails to submit nominees timely, or if one of these institutions ceases to exist, the council shall make the appointment from the two nominees submitted.
(Code 1956, § 1-19)

Secs. 2-212—2-235. Reserved.

DIVISION 7. NEW ORLEANS FILM AND VIDEO COMMISSION†

Sec. 2-236. Purposes.

It is hereby found and determined that the establishment of this city as a major site for on-location productions by the film and television industry would be of tremendous significance to economic development within the city and would further serve to bring to national and international attention the bountiful natural and architectural assets and the beauty and history of our city. It is further found and determined that the establishment of a single entity for promotion of this city as a major on-location site for film and video productions and to serve as a contact for information pertaining to locations and logistics and performing liaison work with local residents, businesses, and governmental agencies is necessary. It is further found and determined that an effective film commission is essential to any jurisdiction desiring to invigorate its economy through attraction of the film and television industry.
(Code 1956, § 18A-1)

Sec. 2-237. Established, appointment.

There should be established an advisory committee to be styled the New Orleans Film and

*__Charter references__—Civil service commission, § 8-103; boards and commissions general requirements, art. IX, ch. 1.

__Cross reference__—Personnel, ch. 114.

†__Charter reference__—Boards and commissions general requirements, art. IX, ch. 1.

__Cross references__—Amusements and entertainments, ch. 14; businesses, ch. 30; New Orleans film commission trust fund, § 70-256 et seq.

Video Commission. The commission should be created in accordance with the provisions of section 4-104 of the Charter to consist of nine members. Two members should be appointed by the mayor, and the mayor should further appoint one member designated by each member of the council.
(Code 1956, § 18A-2)

Sec. 2-238. Reports.

The New Orleans Film and Video Commission shall provide periodic reports to the mayor and the council regarding its activities and shall make such recommendations as it deems advisable to promote the purposes of this division.
(Code 1956, § 18A-3)

Secs. 2-239—2-260. Reserved.

DIVISION 8. NEW ORLEANS CHILDREN AND YOUTH PLANNING BOARD*

Sec. 2-261. Children and youth planning board.

There is hereby created, in accordance with La. R.S. 46.1941.1 et seq., a board to be known as the New Orleans Children and Youth Planning Board.
(M.C.S., Ord. No. 25400, § 2, 7-11-13)

Sec. 2-262. Purposes and function of the board.

The purpose of the New Orleans Children and Youth Planning Board is to participate in the formulation of and to prepare a comprehensive plan for services and programs for the children and youth of New Orleans, as follows: to assist in the development, implementation, and operation of services which encourage positive development, diversion of children and youth from the criminal justice and foster care system, reduction in the commitments of youth to state institutions, and providing community response to the growing rate of juvenile delinquency. The coordination and implementation of services shall include, but are not limited to, preventive, early intervention, diversion, alternatives to home displacement, alternatives to incarceration, and treatment services, the assessment, alignment, coordination, prioritization, and measurement of all available services and programs that address the needs of children and youth including those at risk for, or identified with, social, emotional, or developmental problems, including, but not limited to educational failure, abuse, neglect, exposure to violence, juvenile or parental mental illness, juvenile or parental substance abuse, poverty, developmental disabilities and delinquency. The Board is intended to encourage collaborative efforts among local stakeholders for assessing the physical, social, behavioral, and educational needs of children and youth in their respective communities and for assisting in the development of comprehensive plans to address such needs. The board shall perform all services authorized by La. R.S. 46:1941.1 et seq.
(M.C.S., Ord. No. 25400, § 2, 7-11-13)

Sec. 2-263. Composition; terms.

All appointments to the New Orleans Children and Youth Planning Board shall be made by the Council of the City of New Orleans and shall be for a period of two years. The board shall consist of not less than 11 and not more than 25 members and shall include the following:

(1) Representative of the New Orleans City Council;

(2) Chief Judge of Juvenile Court, or designee;

(3) Orleans Parish District Attorney, or designee;

(4) Director of Metropolitan Human Services District, or designee;

(5) Director of the Office of Criminal Justice, or designee;

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*__Editor's note—__M.C.S., Ord. No. 25400, § 1, adopted July 11, 2013, repealed the former Art. IV, Div. 8, §§ 2-261—2-269. Section 2 of said ordinance enacted a new Div. 8 as set out herein. The former Div. 8 pertained to New Orleans Metropolitan Youth Commission and derived from Code 1956, §§ 39A-1—39A-6; M.C.S., Ord. No. 21779, § 1, adopted Nov. 18, 2004; M.C.S., Ord. No. 23213, § 1, adopted August 29, 2008; M.C.S., Ord. No. 24240, § 1, adopted Dec. 16, 2010; M.C.S., Ord. No. 25102, § 1, adopted Nov. 15, 2012.

__Charter reference—__Boards and commissions general requirements, art. IX, ch. 1.

(6) Director of the City of New Orleans Health Department, or designee;

(7) Superintendent of the Juvenile Detention Center for Orleans Parish, or designee;

(8) Superintendent of the New Orleans Police Department, or designee;

(9) Director of the New Orleans Recreation Development Commission, or designee;

(10) Director of City of New Orleans Job One office, or designee;

(11) Superintendent of Orleans Parish Public School System, or designee;

(12) Director of City of New Orleans Office of Youth and Families, or designee;

(13) Director of the Office of Family Services (formerly office of community services), or designee;

(14) Regional Director of the Office of Juvenile Justice (formerly office of youth development), or designee;

(15) Executive Director of the New Orleans Public Library, or designee;

(16) Representative of the local business community;

(17) Youth representative;

(18) Representative of the faith-based community;

(19) Representative of a local university;

(20) Representative of a local nonprofit organization providing services to children: parents;

(21) Juvenile Public Defender for Orleans Parish, or designee;

(22) Representative of a local nonprofit organization providing services to children: Out of school time;

(23) Representative of a local nonprofit organization providing services to children: Out of school youth;

(24) Representative of a local nonprofit organization providing services to children: Early childhood; and

(25) Representative of a local nonprofit organization providing services to children: Special needs.

(M.C.S., Ord. No. 25400, § 2, 7-11-13; M.C.S., Ord. No. 26026, § 1, 9-4-14; M.C.S., Ord. No. 28509, § 1, 10-1-20)

Sec. 2-264. Subgroup established—Youth advisory board.

(a) Pursuant to La. R.S. Section 46:1941.8(D), the New Orleans Children and Youth Planning Board is authorized to establish committees or subgroups, but any such committee or subgroup shall be subject to the provisions of R.S. 42:12 and 42:25, and all votes taken of members shall be recorded and shall become matters of public record.

(b) To ensure the New Orleans Children and Youth Planning Board can fulfill its purpose and functions, pursuant to section 2-262, a subgroup of the board titled the youth advisory board is hereby established. The youth advisory board shall consist of not less than 11 and not more than 25 individuals between the ages of 14 and 24 years, with all members being residents of the City of New Orleans. Appointments shall be selected on an annual basis by the New Orleans Children and Youth Planning Board or its Executive Director.

(M.C.S., Ord. No. 28509, § 1, 10-1-20)

Secs. 2-265—2-290. Reserved.

DIVISION 9. PUBLIC BELT RAILROAD COMMISSION*

Sec. 2-291. Appointment and terms of members of the Public Belt Railroad Commission of the City of New Orleans.

(a) The Public Belt Railroad Commission of the City of New Orleans is and shall be composed of the Mayor of the City of New Orleans and nine

*__Charter references__—Public belt railroad commission, art. V, ch. 2; boards and commissions general requirements, art. IX, ch. 1.

citizens from within the New Orleans-Metairie-Kenner Metropolitan Statistical Area; three to be appointed by the Mayor of the City of New Orleans, by and with the approval of the Council of the City of New Orleans, and six as provided hereinbelow. There shall be six nominating entities:

(1) The New Orleans Board of Trade;

(2) The New Orleans Chamber of Commerce;

(3) The New Orleans Black Chamber of Commerce;

(4) The Business Council of New Orleans and the River Region;

(5) The board of the Port of New Orleans; and

(6) The presidents of Xavier, Dillard, Loyola, and Tulane Universities.

Each nominating entity shall prepare a list of three nominations and the mayor may select one member from each list submitted as follows: one member from the list submitted by the New Orleans Board of Trade; one member from the list submitted by the New Orleans Chamber of Commerce; one member from the list submitted by the New Orleans Regional Black Chamber of Commerce; one member from the list submitted by the Business Council of New Orleans and the River Region; one member from the list submitted by the board of the Port of New Orleans; and one member from the list submitted by the presidents of Xavier, Dillard, Loyola and Tulane Universities; should any of the foregoing nominating entities cease to exist or be without a legal successor, the members appointed therefrom shall serve out their allotted terms, and their successors shall thereafter be appointed by the mayor, by and with the consent of the city council, from nominations submitted by the presidents of Xavier, Dillard, Loyola and Tulane Universities.

(b) The tenure of office shall be staggered four-year terms. The Mayor of the City of New Orleans shall be the president of said commission and shall have a right to vote at all meetings and upon all questions.

(c) The president pro tem shall be chosen by the commission from those members appointed from the nominating entities described in subsection (a). The control, operation, management and development of the Public Belt Railroad system shall be exclusively vested in the commission, which shall always be separate and distinct from that of any railroad. No director, attorney, officer or employee of any railroad shall ever be a member of the commission, or an officer, attorney, or employee of the Public Belt Railroad Commission, and no rights or privileges shall be granted to any railroad company to control, use or operate the Public Belt Railroad system or any part thereof. The Public Belt Railroad system shall be and remain the sole property of the people of the city at all times, and shall in no way or manner ever be hypothecated or alienated.

(d) The city, by and through the commission, shall have the power to make contracts, acquire lands, leases and other forms of property necessary for the operation of a railroad system, either by purchase, expropriation, or otherwise, and shall have the right to operate within or without the parish.
(Code 1956, § 51-1; M.C.S., Ord. No. 24713, § 1, 12-15-11)

Sec. 2-292. Liability of city.

The city shall not become liable for any of the debts and charges of the Public Belt Railroad Commission and the property acquired by such commission, for and in the name of the city, shall not be in any manner responsible for the debts and charges of the commission. The object being to confine the payments of all the expenses of the commission to the earnings of the commission.
(Code 1956, § 51-2)

Secs. 2-293—2-300. Reserved.

DIVISION 10. RESERVED*

Secs. 2-301—2-315. Reserved.

*__Editor's note—__M.C.S., Ord. No. 25118, § 1, adopted Dec. 6, 2012, repealed § 2-301, which pertained to Canal Street Development Corporation—Revolving fund and derived from M.C.S., Ord. No. 17,459, § 1, adopted March 7, 1996.

DIVISION 11. NEW ORLEANS RECREATION DEVELOPMENT COMMISSION*

Sec. 2-316. Authority.

This section [division] is established pursuant to requirements set forth in article V, chapter 10, sections 5-1001, 5-1002, and 5-1003 of the Home Rule Charter relative to the membership composition and length of terms of the New Orleans Recreation Development Commission ("commission"), its powers, duties and functions, and its administration.
(M.C.S., Ord. No. 24126, § 1, 9-2-10)

Sec. 2-317. Effective date.

This division shall have effect only upon adoption of the amendment to the Home Rule Charter proposed in Ordinance No. 23998 M.C.S.
(M.C.S., Ord. No. 24126, § 1, 9-2-10)

Sec. 2-318. Function.

The commission shall:

(a) Plan, supervise, and conduct a comprehensive and coordinated program of cultural and physical recreation;

(b) Promote cooperative planning with public and private entities concerned with recreation;

(c) Manage, maintain, and operate recreational facilities owned or operated by the city;

(d) Appoint a director of the commission who shall serve at its pleasure. The director shall be the executive officer of the commission and shall be responsible for the supervision of the staff;

(e) Conduct an annual evaluation of the director of the commission;

(f) Adopt a comprehensive community visioning process that will result in a five year strategic plan for the commission. The commission shall adopt such a plan every five years from the completion of the strategic plan; and

(g) Other related duties as may be provided by ordinance of the council.

(M.C.S., Ord. No. 24126, § 1, 9-2-10; M.C.S., Ord. No. 27744, § 1, 4-19-18)

Sec. 2-319. Composition and terms of membership.

The commission shall be known as the "New Orleans Recreation Development Commission" and shall be composed of 13 members as follows:

(a) The mayor shall appoint, subject to the approval of the city council, one individual from each of the following nominating entities whereby a nominating entity may nominate himself or herself or a designee:

(i) The mayor;

(ii) The chief administrative officer;

(iii) The New Orleans City Council President, to rotate each year with the new city council president. Designees shall be limited to a councilmember serving on the city council at the time of designation.

(iv) The Chairman of the Orleans Parish School Board;

(v) The Chairman of the New Orleans Public Library Board; and

(vi) The Chairman of the New Orleans Recreation Development Foundation ("foundation").

(b) The mayor shall appoint, subject to the approval of the city council, two duly qualified electors who are domiciled in the city, who shall possess expertise or experience in at least one of the following subject areas: arts or culture; sports; accounting or finance; business; law; or who shall be a consumer of activities of the New Orleans Recreation Development Commission, including but not limited to, a coach of a youth sports team, parent or guardian of a child who

*__Editor's note—__M.C.S., Ord. No. 24126, § 1, adopted Sept. 2, 2010, added §§ 2-301 through 2-306 to the Code. Inasmuch as § 2-301 already existed, said ordinance has been redesignated as §§ 2-316—2-321 at the discretion of the editor.

is a consumer of activities of the commission, youth sports-related booster club member, or someone experienced in providing cultural or recreational programming to senior citizens.

(c) The mayor shall appoint, subject to approval of the city council, five duly qualified electors who are domiciled in the city who shall possess expertise or experience in at least one of the following subject areas: arts or culture; sports; accounting or finance; business; law; or who shall be a consumer of activities of the New Orleans Recreation Development Commission, including but not limited to, a coach of a youth sports team, parent or guardian of a child who is a consumer of activities of the commission, youth sports-related booster club member, or someone experienced in providing cultural or recreational programming to senior citizens. In its deliberations, the mayor and the council shall consider factors such as diversity and geographic location of appointments, relevant skills and any other expertise beneficial to the operation of the recreation facilities and programs for the city. There shall be a member from each council district. The appointments shall be made after consultation and collaboration between the mayor and the member of the city council in whose district the nominee resides.

(d) The members serving pursuant to subsection (a) shall serve during the term of office or appointment of the nominating entity that nominated them and their membership on the commission shall be vacated if the nominating entity leaves office.

(e) The members serving pursuant to subsection (b) shall serve term of office concurrent with the term of office of the mayor who appointed them. Reappointment of members shall be permitted.

(f) The members serving pursuant to subsection (c) shall serve for terms of five years, staggered as follows:

(i) *Council district A:* Five-year term commencing July 1, 2019 and expiring June 30, 2024;

(ii) *Council district B:* Five-year term commencing July 1, 2020 and expiring June 30, 2025;

(iii) *Council district C:* Five-year term commencing July 1, 2018 and expiring June 2023;

(iv) *Council district D:* Five-year term commencing July 1, 2021 and expiring June 30, 2026; and

(v) *Council district E:* Five-year term commencing July 1, 2022 and expiring June 30, 2027.

Reappointment of members shall be permitted.

(g) Any vacancy on the commission shall be filled by the same appointing authority and nominating source required by subsections (a), (b) and (c).

(M.C.S., Ord. No. 24126, § 1, 9-2-10; M.C.S., Ord. No. 25900, § 1, 6-5-14; M.C.S., Ord. No. 27744, § 1, 4-19-18)

Sec. 2-320. Organization.

(a) The commission shall convene its organizational meeting not later than January 31 of each year. At such time, or prior thereto, the commission shall elect a chairperson and other officers. The chairperson and other officers shall serve a term of one year as officers, but may be removed for cause by a vote of a majority of the commission. Reappointment of the chairperson and other officers shall be permitted.

(b) At its organizational meeting, the commission shall establish and cause to be published in the official journal a schedule for its regular meetings for the year, which shall not be less than one per month.

(c) The commission may also create such standing and special committees as may be beneficial to the conduct of its business.

(d) All meetings of the commission and any of its committees shall be conducted in accordance with the Louisiana Open Meetings Law, R.S. 42:4.1 et seq.

(e) Documents of the commission shall be public records available to the public in accordance with the Louisiana Public Records Law, R.S. 44:1 et seq.

(f) The commission shall promulgate and adopt rules, regulations and/or bylaws in accordance with the City Code.
(M.C.S., Ord. No. 24126, § 1, 9-2-10; M.C.S., Ord. No. 27744, § 1, 4-19-18)

Sec. 2-321. New Orleans Recreation Development Foundation.

Within 90 days of the effective date of this division, the mayor and city council shall by cooperative endeavor agreement or by ordinance, cause to be formed the New Orleans Recreation Development Foundation to be organized as a Louisiana nonprofit corporation. The foundation shall serve as a fundraising body to support the activities of the commission. The foundation shall seek tax-exempt status under the Internal Revenue Code as a nonprofit corporation. The initial members of the board of directors of the foundation shall be the co-chairs of the NORD Citizens Advisory Panel. The initial members of the board of directors shall have the responsibility of establishing the size of the board of directors and identifying and appointing additional members of the foundation board of directors to fulfill its mission of raising funds to support the commission.

(a) The foundation shall convene its organizational meeting not later than January 31 of each year. At such time the foundation shall elect a chairperson and other officers. The chairperson and other officers shall serve a term of one year as officers, but may be removed for cause by a vote of a majority of the foundation. Reappointment of the chairperson and other officers shall be permitted.

(b) At its organizational meeting, the foundation shall establish and cause to be published in the official journal a schedule for its regular meetings for the year, which shall not be less than six times per year.

(c) The foundation shall also create such standing and special committees as may be beneficial to the conduct of its business,

(d) All meetings of the foundation and any of its committees shall be conducted in accordance with the Louisiana Open Meetings Act, R.S. 42:4.1 et seq.

(e) Documents of the foundation shall be public records available to the public in accordance with the Louisiana Public Records Act, R.S. 44:1 et seq.

(f) The foundation shall hold its inaugural meeting prior to January 1, 2011.

(g) The foundation shall promulgate and adopt rules, regulations and/or bylaws in accordance with City Code.
(M.C.S., Ord. No. 24126, § 1, 9-2-10)

DIVISION 12. SEWERAGE AND WATER BOARD

Sec. 2-322. Reporting to the city council.

The sewerage and water board shall make three sets of reports to the city council pursuant to La. Rev. Statute § 33:4091. The reports shall be submitted in the following manner:

(1) The report required by La. Rev. Stat. § 33:4091(A) shall be submitted to the clerk of council such that the report shall be received on the city council agenda for the council meeting on or before the first of May.

(2) The report required by La. Rev. Stat. § 33:4091(B) and (C) shall be submitted to the clerk of council such that the report will be received on the city council agenda for the first meeting during the quarterly reporting period.

(3) The report shall be submitted in a form that follows revised statute 33:4091 such

that the information is provided in sections titled the same as the subsections of the statute.

(4) The council president may refer the report to a committee.

Upon the city council's confirmation of a member of the board of the sewerage and water board, the chief of the staff of the city council shall mail a copy of this division, Louisiana Revised Statutes § 33:4091 and M.C.S., Ordinance 25124 (Nov. 15, 2012) to the board member.
(M.C.S., Ord. No. 27654, § 1, 1-11-18)

Secs. 2-323—2-325. Reserved.

ARTICLE V. OFFICERS AND EMPLOYEES*

DIVISION 1. GENERALLY

Sec. 2-326. Officials indemnified against suits for official acts.

In any case in which the mayor, city councilmember, or any other officer of the city in a policy-making position may be sued by any individual for acts performed in the execution of his/her duty, the city shall provide legal representation for such official through the office of the city attorney, and will pay the amount of any judgment that may be obtained against him and all costs and other expenses of suit and otherwise indemnify him from all loss, injury or damage to which he may be subjected in the premises, with the exception of punitive damages or any damages that arise out of actions found to have been committed outside the course and scope of his/her job. In the event that such official chooses to hire private counsel to represent his/her interests, the costs of such representation shall be paid by the official, and not by the city, unless the employment of such private counsel is necessary as the result of a conflict of interests; said conflict to be determined by the city attorney and council's special counsel, if a council employee is involved, keeping in mind the totality of the circumstances and the best interests of all parties involved.
(Code 1956, § 2-9; M.C.S., Ord. No. 23101, § 1, 5-15-08)

State law references—Authority to compromise; judgment; notice of judgment; payments, R.S. 13:5109; power to contract for group liability insurance, R.S. 33:5153.

Sec. 2-327. Duties of morgue keepers.

The morgue keepers shall take possession of, and safely keep until the arrival of the coroner of the parish, the bodies of all deceased persons brought to the morgue, in the same condition as when received. They shall prevent any person from disturbing or desecrating in any manner whatsoever such bodies until after examination thereof by the coroner or his deputy. They shall perform all other duties that the coroner may deem proper for the satisfactory conduction of his office.
(Code 1956, § 2-14)

Secs. 2-328—2-350. Reserved.

DIVISION 2. BONDS†

Sec. 2-351. Required for certain officials.

The following named officers and employees of the city government shall be required to furnish surety bonds in favor of the city, the premiums thereon to be borne by the city, in the amounts hereinafter set forth:

(1)	Mayor	$50,000.00
(2)	Chief administrative officer	50,000.00
(3)	Assistant chief administrative officer	50,000.00
(4)	Director of the department of finance	50,000.00
(5)	Deputy director of the department of finance	25,000.00
(6)	Purchasing agent, bureau of	

*__Charter reference—__Officers of the executive branch, art. IV.

__Cross references—__Ethics, § 2-681 et seq.; special police force, § 90-86 et seq.; federal old age and survivor's benefits, § 114-311 et seq.

†__Charter reference—__Bonds of city officials, § 6-304.
__State law reference—__Bonds, R.S. 42:181 et seq.

	purchasing	50,000.00
(7)	Comptroller, bureau of accounting	50,000.00
(8)	Treasurer, bureau of treasury	50,000.00
(9)	Collector of revenue, bureau of revenue	50,000.00
(10)	Administrator, bureau of food stamps administration	50,000.00
(11)	Manager, bureau of electronic data processing	50,000.00
(12)	Internal audit, chief, bureau of internal audit	50,000.00
(13)	Executive assistant to mayor	50,000.00
(14)	Director of the department of safety and permits	25,000.00
(15)	Director of the department of sanitation	25,000.00
(16)	Director of the department of streets	25,000.00
(17)	Director of the department of property management	50,000.00
(18)	Director of the department of utilities	25,000.00
(19)	Superintendent of police	10,000.00
(20)	Superintendent of fire	10,000.00
(21)	Administrator, division of public buildings	25,000.00
(22)	Criminal sheriff	10,000.00
(23)	Chief deputy sheriff	5,000.00
(24)	Criminal sheriff deputies	2,000.00
(25)	Warden, parish prison	5,000.00

(Code 1956, § 2-4)

Cross references—Mayor, § 2-31 et seq.; city council, § 2-56 et seq.; finance, ch. 70.

Sec. 2-352. Execution.

When a bond is required to be given in favor of the city or any officer or department of the city, such bond shall be signed and executed before a city notary, appointed as such pursuant to the provisions of section 4-404 of the Charter. A city notary shall deliver, free of charge, a duly authenticated copy of each bond executed before him.

(Code 1956, § 2-5)

State law reference—Procedure for bonds, R.S. 42:184, 42:186.

Sec. 2-353. Warrants not issued until bonds completed.

The director of the department of finance shall not issue warrants to officers or employees of the city in any instance until they complete their bonds in accordance with the ordinance under which they hold office.

(Code 1956, § 2-6)

State law reference—Effect of failure to give new bond, R.S. 42:191.

Sec. 2-354. Failure to supply surety amounts to declination of office.

Any person appointed to office by the council who shall neglect to furnish the name or names of his sureties within two weeks after his appointment will be considered as having declined to qualify and the council shall proceed to a new election, unless satisfactory reasons be given for the delay.

(Code 1956, § 2-7)

State law reference—Acceptance of bonds, R.S. 42:184.

Sec. 2-355. Continuance of bonds during continuance in office.

The city attorney and the director of the department of finance shall, in all bonds of city officers, provide that such bonds shall continue in force during the continuance of such officers in the employment to which they may have been elected or appointed so that their reappointment or reelection shall not impair the obligation of such bonds.

(Code 1956, § 2-8)

Secs. 2-356—2-375. Reserved.

DIVISION 3. CITY ATTORNEY*

Sec. 2-376. Compensation limited.

The salary paid the city attorney shall be a full compensation for all services rendered to the city or any officer thereof and no fee or extra compensation shall in any case be paid him.
(Code 1956, § 2-20)

Sec. 2-377. Recordation of judgments in favor of city.

The city attorney shall cause to be recorded in the mortgage office the judgments in favor of the city of amounts of $10.00 and upward.
(Code 1956, § 2-21)

Sec. 2-378. Statement to accompany settlements of judgments.

All settlements of judgments recovered in form of the city shall be accompanied by a written statement signed by the city attorney, which shall be filed in the department of finance.
(Code 1956, § 2-22)

Sec. 2-379. Reporting of legal judgments.

In August of each calendar year, the city attorney shall provide the city council with a report on the status of final judgments and final orders rendered against the city or against any person or political subdivision for whom the city is legally responsible. The report shall identify each unpaid judgment individually and include the date of each judgment, the court, the amount of the judgment, the unpaid principal balance, and all accrued, unpaid interest. The report shall separately identify any money judgment(s) satisfied since July 31 of the preceding year and the amount of the payment(s). The report shall be limited to final, non-appealable judgments and orders requiring the payment of money and need not include judgments or orders involving purely injunctive or declaratory relief or those that do not otherwise create any monetary obligation.
(M.C.S., Ord. No. 30032, § 1, 8-22-24)

*__Charter references—__Department of law, §§ 4-401—4-405; city attorney, § 4-402.

Secs. 2-380—2-400. Reserved.

DIVISION 4. CLERK OF THE COUNCIL

Sec. 2-401. Distribution of copies of minutes.

The clerk of the council shall mail or send to each member of council a printed copy of the minutes of each meeting of the council, as early thereafter as they shall have been printed, in order to enable each member to analyze such minutes in time before the next meeting of the council.
(Code 1956, § 2-3)

__State law reference—__Minutes of public meetings, R.S. 42:7.1.

Sec. 2-402. Forward zoning ordinances to assessor.

The clerk of council shall transmit a certified copy of any ordinance affecting the zoning of real estate to the assessor in whose district the property affected is located.
(Code 1956, § 2-3.1)

__Cross reference—__Ordinances, motions and resolutions, § 2-811 et seq.

Sec. 2-403. Collect reimbursement for costs associated with use of council chamber after hours.

When the clerk of the council authorizes use of the city council chamber after regular working hours by a city government agency which is supported by funds other than the city's general fund, or by a state or federal government agency pursuant to the provisions of regulation 7 of the council's rules and regulations, the clerk shall collect from the user agency an amount sufficient to reimburse the city for the cost of the sound technician needed to operate the sound system for the user agency. The reimbursement shall be based upon the rates contained in the then-current contract between the city and the sound technician.
(Code 1956, § 2-3.2)

Secs. 2-404—2-430. Reserved.

ARTICLE VI. DEPARTMENTS*

DIVISION 1. GENERALLY

Sec. 2-431. Employees not to make entries in pencil.

No employee of the several departments of the city, including those of the municipal and traffic courts, shall make entry in pencil on their books or original entry, whether in memorandum or otherwise, but in all cases such entries shall be made in their inception in ink.
(Code 1956, § 2-13)

Secs. 2-432—2-450. Reserved.

DIVISION 2. BUDGET ANALYSIS AND RESEARCH STAFF†

Sec. 2-451. Established.

There is hereby established a budget analysis and research staff of the council to be composed of a councilmanic fiscal office and a council research staff including such personnel as the council may from time to time authorize.
(Code 1956, § 2-15)

Sec. 2-452. Appropriations and personnel.

The council shall, by ordinance, appropriate funds for the operation of the budget analysis and research staff and authorize employment of additional personnel for such staff as they may be required.
(Code 1956, § 2-16)

Sec. 2-453. Duties of fiscal office.

(a) The councilmanic fiscal officer shall serve as director of the councilmanic fiscal office and shall be solely responsible to the council.

(b) The councilmanic fiscal officer shall have the following duties and responsibilities:

(1) To develop fiscal information regarding existing programs;

(2) To evaluate proposed programs and budgets;

(3) To review and evaluate all requests for appropriations by departments and agencies;

(4) To analyze annual operating and capital budget requests of departments and agencies;

(5) To analyze and evaluate budgetary recommendations of the chief administration office;

(6) To perform budgetary studies at the requests of individual councilmembers;

(7) To analyze and evaluate capital budget requests, recommendations and expenditures;

(8) To make short- and long-range studies of projected revenues;

(9) To evaluate councilmanic budgetary proposals for fiscal effect;

(10) To make recommendations to the council regarding councilmanic participation in budget studies; fiscal policy, fiscal research and departmental operations;

(11) To monitor departmental operations, to monitor efficiency in government;

(12) To submit a report periodically to the council regarding analyses and evaluations performed;

(13) To monitor annual budgetary expenditures on an on-going basis;

(14) To monitor the progress of capital budget programs and submit progress reports to the council.

***Charter reference—**Departments, § 4-102(1), art. IV, chs. 4—16, art. VIII.

Cross references—Division of housing and neighborhood development, § 26-201 et seq.; ethics, § 2-681; archives department, § 94-36 et seq.; department of recreation, § 106-131 et seq.; federal old age and survivor's benefits, § 114-311 et seq.

†**Charter reference—**Organization of the council, employees, § 3-107(4).

Cross reference—Finance, ch. 70.

(c) The council fiscal officer shall provide staff support for the parish board of review, including administration of consultant contracts which may be deemed necessary by the board. When authorized to do so by resolution of the board of review, the fiscal office staff may collect a processing fee not to exceed $25.00 for each application for assessment abatement which is incomplete or defective when received by the fiscal staff. Such fee shall be collected from the applicant and shall be used to defray the cost of notification to the applicant of such defect or incompletion and to defray the cost of processing the supplemental information which may be provided in response to such notification.
(Code 1956, § 2-17)

Sec. 2-454. Duties of research staff.

(a) The research director shall serve as chief of the council research staff and shall be solely responsible to the council.

(b) The council research staff shall have the following duties and responsibilities:

(1) To perform research into the formulation and preparation of legislation;

(2) To prepare ordinances, motions and resolutions for the council;

(3) To perform administrative duties for the council;

(4) To analyze and review planning and zoning proposals;

(5) To analyze and review policies regarding personnel;

(6) To prepare summaries of legislation for the council;

(7) To function as a support unit for the councilmanic fiscal office.

(Code 1956, § 2-18)

Sec. 2-455. Other investigations directed by council.

The budget analysis and research staff may also conduct such research and investigations into administrative or executive departments or city affairs generally as the council may direct.
(Code 1956, § 2-19)

Secs. 2-456—2-475. Reserved.

DIVISION 3. CHIEF ADMINISTRATIVE OFFICE*

Subdivision I. Generally

Sec. 2-476. Executive branch organizational chart.

(a) The chief administrative officer shall create and maintain a detailed organizational chart outlining the organizational structure of the executive branch, including all departments and offices, together with any discrete operational units housed therein.

(b) The organizational chart, which shall be publicly available through the city website, shall identify the head of each department, office, or unit. The chart shall further identify any department, office, or unit that is headed by a person serving in an temporary, acting, or interim capacity and any for which the head position is vacant.

(c) The organizational chart shall be updated not less than monthly to reflect any reorganization of the executive branch, as well as any changes in personnel. Each monthly update shall be accompanied by a brief appendix identifying the changes from the previous month.
(M.C.S., Ord. No. 29282, § 1, 12-15-22, eff. 1-1-23)

Sec. 2-477. Reporting of interim appointments.

The chief administrative officer shall notify the clerk of council in writing within three days of the occurrence of the appointment of any person to a position for which council confirmation is required, regardless of whether on a permanent, temporary, acting or interim basis, and including without limitation any interim appointment made pursuant to section 4-106(5) of the Home Rule Charter.

*__Charter reference—__Chief administrative office, art. IV, ch. 3.

The notice required by this section shall state the date of the appointment.
(M.C.S., Ord. No. 29282, § 1, 12-15-22, eff. 1-1-23)

Secs. 2-478—2-500. Reserved.

*Subdivision II. Reserved**

Secs. 2-501—2-550. Reserved.

DIVISION 4. DEPARTMENT OF FINANCE†

Subdivision I. Generally

Sec. 2-551. Payments to vendors accounting.

On the last day of each calendar month, the director of finance shall transmit a written report to the clerk of council for referral to the council's budget, audit, and board of review committee and setting the date of the hearing required by this section, detailing all outstanding vendor invoices received and payable by the city. Such report must be submitted in comma-separated value or similar spreadsheet format and must separately identify for each invoice the name of the vendor, invoice number, date of the invoice, and amount of the invoice. For any invoice 30 days past due, the report must include the reason for delayed payment, and the date on which it is reasonably anticipated the invoice will be paid.

The director of each department that procured the invoiced good(s) or service(s) included in the report and a knowledgeable representative of the department of finance shall appear before the council each month for a hearing regarding why the vendors or contractors have not been paid.

For purposes of this section, the term "vendor" means any person who has submitted an invoice for goods and services procured by the city. The term does not include city employees seeking reimbursement or persons receiving garnished city wages.
(M.C.S., Ord. No. 29643, § 1, 9-7-23; M.C.S., Ord. No. 29884, § 2, 4-4-24, eff. 4-30-24)

Secs. 2-552—2-575. Reserved.

Subdivision II. Bureau of Food Stamps Administration

Sec. 2-576. Establishment.

The bureau of food stamps administration is established within the department of finance to distribute U.S. Department of Agriculture Food Stamps to those persons who have been qualified to receive them by the state department of public welfare and to keep records thereof. All transactions concerned with such functions shall be in accordance with the guidelines and provisions of respective city, state and federal departments and agencies.
(Code 1956, § 2-65)

Sec. 2-577. Coordination jurisdiction.

The bureau of food stamps administration will be responsible for the coordination of food stamps distribution from all outlets operating in the city.
(Code 1956, § 2-66)

Sec. 2-578. Authority.

The bureau of food stamps administration is empowered to enter into agreements and contracts in the distribution of food stamps and in the record keeping procedures and security measures concerned therein.
(Code 1956, § 2-67)

Sec. 2-579. Administration.

The bureau of food stamps administration should be administered by the department of finance. The department of finance shall be responsible for executing the hereinabove stated purposes of the bureau of food stamps administra-

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***Editor's note—**M.C.S., Ord. No. 23383, § 1, adopted Jan. 22, 2009, repealed subdiv. II, which pertained to office of municipal investigation and derived from Code 1956, §§ 2-74(a)—(r); and M.C.S., Ord. No. 9445, § 1, adopted Oct. 6, 1983.

†**Charter references—**Department of finance, art. IV, ch. 13; financial administration procedures, art. VI.

Cross reference—Finance, ch. 70.

tion and shall appoint such employees as deemed necessary in compliance with the civil service provision and the Charter and ordinances.
(Code 1956, § 2-68)

Secs. 2-580—2-600. Reserved.

Subdivision III. Bureau of Revenue

Sec. 2-601. Bureau established.

In accordance with the provisions of section 4-1302 of the Charter, there is hereby established within the department of finance an agency to be known and designated as the Bureau of Revenue.
(Code 1956, § 2-26)

Sec. 2-602. Duties.

The duties and functions of the bureau of revenue shall be to collect taxes, license and permit fees and other moneys which may be due to or receivable by the city or any of its officers, departments or boards, the collection of which is not otherwise assigned by the director of the department of finance to any other agency of the department.
(Code 1956, § 2-27)

Secs. 2-603—2-620. Reserved.

DIVISION 5. DEPARTMENT OF SAFETY AND PERMITS*

Subdivision I. Generally

Secs. 2-621—2-640. Reserved.

Subdivision II. Central Relocation Division

Sec. 2-641. Establishment and functions.

The central relocation division is established within the department of safety and permits to coordinate and administer relocation activities in and for the city. This division will establish and maintain a plan for the identification of relocation housing needs and resources; establish and maintain a certification procedure for all agencies causing displacement, provide relocation services, and process relocation payments to displaced families, individuals, business concerns and nonprofit organizations in accordance with the guidelines and provisions of respective city, state, and federal departments and agencies.
(Code 1956, § 30-72)

Sec. 2-642. Administration.

The central relocation division shall be administered by the relocation coordinator. The relocation coordinator shall be responsible for executing the hereinabove stated purposes of the central relocation division and shall be appointed and shall appoint such employees as deemed necessary in compliance with the civil service provision of the Charter and ordinances.
(Code 1956, § 30-75)

Sec. 2-643. Authority.

The central relocation division is empowered to enter into agreements and contracts in the relocation of persons and businesses.
(Code 1956, § 30-74)

Sec. 2-644. Coordination jurisdiction.

The central relocation division will be responsible for the coordination of relocation needs of all agencies operating in the city.
(Code 1956, § 30-73)

Secs. 2-645—2-670. Reserved.

DIVISION 6. DEPARTMENT OF CODE ENFORCEMENT

Sec. 2-671. Reporting of exemptions.

(a) On or before the last day of each even numbered month, the director of code enforcement shall send the council a report identifying each tax-exempt property that, in the director's determination, satisfies the criteria for revocation under section 150-90. This report shall

*__Charter reference—__Department of safety and permits, art. IV, ch. 7.

include the name and address of all owners of the property, as reflected in the records of the assessor.
(M.C.S., Ord. No. 29755, § 2, 12-1-23)

Secs. 2-672—2-674. Reserved.

DIVISION 7. DEPARTMENT OF CIVIL SERVICE

Sec. 2-675. Triennial market pay study.

The department of civil service shall complete a comprehensive market pay study of the city's classified pay plan once every three years. The department shall submit recommended changes to the pay plan together with the pay study results to the city council within 90 days of completion of the study.
(M.C.S., Ord. No. 30058, § 1, 9-19-24)

Secs. 2-676—2-680. Reserved.

ARTICLE VII. ETHICS*

DIVISION 1. GENERALLY

Secs. 2-681—2-690. Reserved.

DIVISION 2. FINANCIAL DISCLOSURE†

Sec. 2-691. Financial statements; penalty.

(a) Effective June 1, 1991, within 60 days of taking the oath of office of mayor or member of the council, each such person shall file a financial statement with the city attorney. Thereafter, such person shall file annually on or before May 15 a financial statement and within 60 days after the date upon which such person ceases to discharge his duties as mayor or member of the council, a financial statement shall be filed. The financial statement shall include information required in section 2-692 and shall be current as of the date on which it is filed. Attached to the financial statement shall be the affidavit of such person filing same that the information contained in statement is true and correct to the best of his knowledge, information and belief.

(b) Within 60 days of being appointed as the chief administrative officer, a mayoral executive assistant at or above range 67 of the unclassified pay plan of the city and a director of a city department, or on regular reporting dates, such appointee shall comply with all provisions of this article. For the purposes of the article the phrase "director of a city department" shall mean the heads of the following chartered city departments only:

(1) The city attorney;

(2) The superintendent of police;

(3) The superintendent of fire;

(4) Director of the department of safety and permits;

(5) Director of the department of sanitation;

(6) Director of the department of streets;

(7) Director of the department of recreation;

(8) Director of the department of welfare;

(9) Director of the department of health;

(10) Director of the department of finance;

(11) Director of the department of property management;

(12) Director of the department of city civil service;

(13) Director of the department of utilities.

(c) Whoever fails to file a financial statement required by this article, or knowingly and willfully fails to timely file any such statement, or knowingly and willfully fails to disclose or to accurately disclose any information required by this article shall be guilty of a misdemeanor and upon conviction thereof shall be fined not more than $100.00. Whoever willfully and intentionally files a false report required by this article

*__Cross references—__City council, § 2-56 et seq.; boards, committees and commissioners, § 2-86 et seq.; officers and employees, § 2-326 et seq.; departments, § 2-431 et seq.

__State law reference—__Code of governmental ethics, R.S. 42:1101 et seq.

†__Cross reference—__Mayor, § 2-31 et seq.

shall be guilty of a misdemeanor and upon conviction thereof shall be fined $100.00, or imprisoned for not more than 90 days, or both. (Code 1956, § 2-75; M.C.S., Ord. No. 23544, § 1, 5-7-09)

Sec. 2-692. Contents of financial statement.

(a) Except as provided hereinbelow, the financial statement required by section 2-691 hereinabove shall be filed on a form prescribed by the city attorney and shall include the following information for the preceding calendar year. For elected officials only, alternatively the requirement for filing the financial statement required by section 2-691 hereinabove may be satisfied by filing a duplicate original of the financial disclosure statement required to be filed with the state board of ethics, pursuant to R.S. 42:1124.2 et seq.

(1) The full name and residence address of the individual who is required to file;

(2) The full name of the individual's spouse, if any, and the spouse's occupation and principal business address;

(3) The name, address and nature of association with and the amount of interest in each business in which the individual or spouse is a director, officer, owner, partner, member, or trustee, or in which the individual or spouse, either individually or collectively, holds an interest worth in excess of ten percent; a brief description of the nature and purpose of the business; and a brief description of any activities in which the business was engaged during the preceding year;

(4) The name, address, type and amount of each source of income, in excess of $1,000.00, received by the individual or spouse, and the nature of the services rendered therefor, if any. For income derived from mental health, medical health, or legal services rendered, the individual need only show the amount of the income and not the identity of any individual patient or client;

(5) A brief description, location and address of each parcel of real property, the fair market value of which exceeds $2,000.00, in which the individual or spouse, either individually or collectively, has an interest;

(6) A brief description, amount, and date of any purchase, sale, exchange, donation, gift, or other acquisition or disposition, in excess of $1,000.00 of any real property, and of any stocks, bonds, commodities futures, or other forms of securities, including, but not limited to, any option to acquire and/or dispose of any stocks, bonds, commodities futures, other forms of securities, negotiable instruments, movable or immovable property, or any other interest;

(7) The name, adder/ss, and amount of each liability owed to any creditor by the individual or spouse which exceeds $10,000.00, excluding any loan secured by a personal motor vehicle, household furniture, or appliances, if such loans do not exceed the purchase price of the item which secures it.

(b) When an amount is required to be disclosed pursuant to this article, it shall be sufficient to report the amount by category of value. The categories shall be:

(1) Category I, less than $5,000.00 (including no revenue and losses);

(2) Category II, $5,000.00—$24,999.00;

(3) Category III, $25,000.00—$49,999.00;

(4) Category IV, $50,000.00—$99,999.00;

(5) Category V, $100,000.00—$199,999.00;

(6) Category VI, $200,000.00 or more.

Amounts required to be disclosed shall be valued at actual or fair market value, whichever is greater.

(c) For purposes of this article, the following words shall have the following meanings:

Business means any corporation, partnership, sole proprietorship, firm, enterprise, franchise, association, business, organization, self-employed

individual, holding company, trust, or any other legal entity or person. The term shall include both non-profit and for-profit entities.

Income means any income from whatever source derived, including, but not limited to, the following items: Compensation for services, including fees, salaries, commissions, and similar items; income derived from business; gains derived from dealings in property; interest; rents; royalties; dividends; annuities; income from life insurance and endowment contracts; pensions; income from discharge of indebtedness; distributive share of partnership income; and income from interest in an estate or trust.

(d) The financial statement shall be filed with the city attorney and shall be accompanied by the affidavit of the public official filing it certifying that the information contained in the financial statement is true and correct to the best of his knowledge, information and belief. The financial statement shall be a public record, subject to the provisions of R.S. 44:1 through 44:41. The city attorney shall additionally file a copy of his financial statement with the clerk of council who shall preserve the city attorney's financial statement as a public record.

(e) For the purposes of this section, an individual or spouse shall not transfer any asset, interest, or liability required to be disclosed pursuant to the subsection (a) of this section to any person or business for the purpose of avoiding disclosure, unless such transfer is irrevocable. A transfer shall not be irrevocable if there exists any contract, letter, counter letter, note, or any other legally enforceable agreement or authority which if exercised or enforced would require or authorize any asset, interest, or liability transferred by an individual or spouse to a person or business to revert back to such individual or spouse.
(Code 1956, § 2-76; M.C.S., Ord. No. 23544, § 1, 5-7-09; M.C.S., Ord. No. 29784, § 1, 1-18-24)

Secs. 2-693—2-715. Reserved.

DIVISION 3. CODE OF ETHICS

Subdivision I. Generally

Sec. 2-716. Civil penalties.

(a) Classified employees shall be subject to disciplinary action by their appointing authority for violation of this division.

(b) Unclassified employees and appointed officials shall be subject to suspension or dismissal in accordance with section 3-125 of the Charter for violation of this division.

(c) Members of boards, commissions, and agencies shall be removed and/or shall forfeit their appointment in accordance with section 9-104 of the Charter for violation of this division.

(d) Elected officials shall be subject to censure by city council resolution for violation of this division.
(Code 1956, § 22B-31)

Sec. 2-717. Criminal penalties.

Any person who violates the provisions of this division shall be punished by a fine not exceeding $500.00 or by imprisonment for not more than six months or both such fine and imprisonment.
(Code 1956, § 22B-32)

Sec. 2-718. Advisory opinions.

The ethics review board shall prepare and promulgate procedures for requesting official advisory opinions pertaining to the city code of ethics. All such official advisory opinions shall be in writing. All such official advisory opinions shall be distributed to all agencies of city government and be accessible to all city employees.
(Code 1956, § 22B-33; M.C.S., Ord. No. 17,613, § 1, 6-20-96)

Sec. 2-719. Ethics review board.

An ethics review board is hereby established and authorized to enforce the provisions of the code of ethics of the city.

(1) *Powers.* Pursuant to section 9-402 of the Home Rule Charter, the ethics review

board may establish additional recommendations for the code of ethics, issue advisory opinions, promulgate rules regarding the interpretation and enforcement of the city's code of ethics, refer cases for investigation on referral or complaint, retain counsel, and impose fines.

(2) *Membership.* The board shall consist of seven members. Six members of the board, all of whom are domiciled in and electors of the city, shall be appointed by the mayor from lists of three nominees each submitted by the presidents or chancellors of Dillard University, Loyola University, Southern University in New Orleans (SUNO), Tulane University, University of New Orleans (UNO), and Xavier University. One additional member shall be appointed by the mayor. Each appointment is subject to approval by a majority of the members of the city council.

(3) *Qualifications.* No member may hold any elective or appointed position with the city nor any other government or political party office or have held such position within two years before appointment to the ethics review board.

(4) *Removal.* A member of the ethics review board may be removed by the mayor only for cause in accordance with the procedures established in section 9-104 of the Home Rule Charter and by the council in accordance with the procedures and for the reasons established in section 3-125 of the Home Rule Charter.

(5) *Vacancy.* Within ten days of a president's or chancellor's recommended appointee's vacancy being created, the mayor shall request the university presidents or chancellors to submit within 30 days lists of three nominees each to the mayor for consideration to fill the unexpired term. Within 30 days of receiving the lists of nominees, the mayor shall submit a selection to the council for its consideration. Within 30 days of an unaffiliated appointee's vacancy being created, the mayor shall submit a suggested replacement to the council for its consideration. Within 30 days of receiving a mayoral nomination, the council shall approve or reject the appointment.

(6) *Term.* The terms of the initial members shall be as follows: One member shall be appointed for a term to expire on June 30 of the first year; one member shall be appointed for a term to expire on June 30 of the second year; one member shall be appointed for a term to expire on June 30 of the third year; one member shall be appointed for a term to expire on June 30 of the fourth year; one member shall be appointed for a term to expire on June 30 of the fifth year; one member shall be appointed for a term to expire on June 30 of the sixth year; and one member shall be appointed for a term to expire on June 30 of the seventh year. At the expiration of the term of each initial member and of each succeeding member, a successor shall be appointed to serve for a term of seven years. Each such term shall expire on June 30 of the seventh year.

(7) *Public meetings.* The meetings of the ethics review board shall be open to the public in accordance with applicable state and municipal law.

(8) *Quorum.* Four members of the ethics review board shall constitute a quorum for the purpose of transacting the business of the board.

(9) *Rules and regulations.* The ethics review board, pursuant to section 4-107 of the Home Rule Charter, shall adopt rules and regulations governing the transaction of its business.

(10) *Staff.* The board may employ necessary staff in accordance with applicable civil service law and subject to appropriations by the council. The board's operation and procedures shall be governed by chapter 1 of article IX of the Home Rule Charter and by applicable state and municipal law.

(11) *Investigations.* For purposes of an investigation or a hearing, the ethics review board may administer oaths and affirmations, subpoena witnesses, compel their attendance, take evidence, and require the production of any records which the ethics review board deems relevant or material to an investigation or hearing.

(12) *Financial Disclosure.* Members shall annually file a financial disclosure state-

ment in accordance with the Louisiana Code of Governmental Ethics, La. R.S. § 42:1124.2.1.

(13) *Amendment.* Pursuant to section 9-402(3) of the Home Rule Charter, this section may only be amended by an ordinance receiving a two-thirds favorable vote of the entire membership of the city council.

(M.C.S., Ord. No. 17,612, § 1, 6-20-96; M.C.S., Ord. No. 26651, § 1, 11-5-15)

Sec. 2-720. External review of the ethics review board.

Pursuant to section 9-405 of the Home Rule Charter, the ethics review board shall be subject to an independent, external peer review every three years. Such peer review shall be paid for by the ethics review board. When completed, the recommendations and findings of such peer review shall be submitted to the ethics review board and the clerk of the council. The ethics review board shall comply with the recommendations of the peer review within 90 days, provided that the recommendations and findings are accepted and approved by the city council. Copies of the final report resulting from this peer review shall be furnished to the clerk of the council, the city attorney, and the office of the mayor. The final report shall also be made available to the public.
(M.C.S., Ord. No. 27747, § 1, 4-19-18)

Sec. 2-721. Resources of the ethics review board.

Pursuant to section 9-404 of the Home Rule Charter of the city, the ethics review board shall be funded by an annual appropriation by the city council as part of the city's operating budget.
(M.C.S., Ord. No. 27747, § 1, 4-19-18)

Secs. 2-722—2-740. Reserved.

Subdivision II. State Code of Governmental Ethics

Sec. 2-741. State code of ethics.

The state code of governmental ethics (state ethics code) is established by R.S. 42:1101 et seq. The state ethics code applies to all officials and employees of the city and its various departments, boards, commissions, offices, and other agencies.
(Code 1956, § 22B-10)

Sec. 2-742. Dissemination of state ethics code.

The chief administrative officer shall cause a copy of the state code of governmental ethics to be given to each official and employee of the city and its various departments, boards, offices and other agencies.
(Code 1956, § 22B-11)

Sec. 2-743. Advisory opinions; complaints.

The chief administrative officer shall advise all officials and employees of procedures for obtaining advisory opinions from the state ethics commission and for filing complaints under the state code of governmental ethics.
(Code 1956, § 22B-12)

Sec. 2-744. City ethics code supplemental.

The city code of ethics in subdivision III of this division is intended to supplement the provisions of the state code of governmental ethics. In some matters, the city ethics code is intended to be more restrictive than the state code of governmental ethics. If any provisions of the state code of governmental ethics are more restrictive than any provisions contained in the code of ethics for the city, the provisions of the state code of governmental ethics prevail.
(Code 1956, § 22B-13)

Sec. 2-745. Incorporation of State Code of Ethics.

The City Code of Ethics adopts and incorporates by reference the following parts of the Louisiana Code of Governmental Ethics, Louisiana Revised Statutes Title 42, Chapter 15: Part I (General Provisions); Part II (Ethical Standards for Public Servants); and Part IIa (Unethical Election Practices).
(M.C.S., Ord. No. 26841, § 1, 4-7-16)

Secs. 2-746—2-765. Reserved.

Subdivision III. City Code of Ethics

Sec. 2-766. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Board applies to boards, commissions, authorities, and other public bodies that are subject to the provisions of the Home Rule Charter of the city, except the city council.
(Code 1956, § 22B-21)

Cross reference—Definitions generally, § 1-2.

Sec. 2-767. Application.

The code of ethics for the city shall apply to all officials of the government of the city, whether elected or appointed; to all employees, whether classified or unclassified; and to members and/or employees of all boards, agencies, commissions, advisory committees, public trusts, and public benefit corporations of the city.
(Code 1956, § 22B-1)

Sec. 2-768. Purpose.

The code of ethics is established to remind each public official and employee that individually and collectively, public officials and employees must adhere to high ethical standards not simply to avoid sanctions or criticism, but because it is the right thing to do. Standards and guidelines established by or pursuant to the code of ethics should be construed and implemented with sensitivity, integrity, and a good faith commitment to advance rather than evade or circumvent the evident or stated spirit and purpose of ethical rules. Public officials and employees should not give unduly narrow or legalistic constructions to specific provisions of applicable ethics codes, standards, or rules and regulations.
(Code 1956, § 22B-3)

Sec. 2-769. Responsibility of public office.

Public officials and employees are agents of public purpose and hold office for the benefit of the public. They are bound to uphold the constitution of the United States and the constitution of this state and to carry out impartially the laws of the nation, state and city and thus to foster respect of all government. They are bound to observe in their official acts the highest standards of morality and to discharge faithfully the duties of their office regardless of personal considerations, recognizing that the public interest must be their primary concern.
(Code 1956, § 22B-2)

Sec. 2-770. Nonpartisanship and nondiscrimination.

Public officials and employees should take action and make decisions based on the merits, objectively and without partisanship. In taking action and making decisions, public officials and employees should not discriminate against any person because of racial, ethnic, religious, political, sexual or personal prejudice or because of age, disability or sexual orientation.
(Code 1956, § 22B-4)

Sec. 2-771. Development of internal standards.

Each department, board, office, or other agency of city government is encouraged to develop internal minimum standards of ethical conduct or behavior for situations or transactions that may be unique to the particular department, board, office or other agency. The opinions of employees and customers of the agency should be sought and used in the development of such internal standards, rules, regulations and guidelines for ethical conduct. Members of all boards and commissions of the city shall act as prudent administrators.
(Code 1956, § 22B-5)

Sec. 2-772. Freedom from reprisal and disclosure of improper acts.

(a) Any public employee who reports information which the employee reasonably believes is a violation of any ordinance, statute, policy, order, rule, regulation or other ethical mandate shall be free from discipline or reprisal for reporting such acts of alleged impropriety. An employee with authority to hire and fire, supervisor, agency head, or elected official may not subject to

reprisal any public employee because of such employee's efforts to disclose such acts of alleged impropriety.

(b) The provisions of this section are in addition to the protection afforded by the state code of governmental ethics and the rules of the city civil service commission to public employees who report acts of impropriety to the employee's agency head, civil service, the ethics review board, or the state board of ethics for elected officials or commission on ethics for public employees.
(Code 1956, § 22B-6; M.C.S., Ord. No. 17,613, § 1, 6-20-96)

Sec. 2-773. Matters of public information.

The State Public Records Law, R.S. 44:1 et seq. applies to public records of all departments, boards, offices and other agencies of city government. With certain exceptions, the records and documents in the possession of city government officials and employees are public records that citizens, the news media, and other interested parties are entitled to review and copy. When citizens make a request to review public documents, city officials and employees should respond with courtesy and as expeditiously as possible within the requirements of the state Public Records Law. Officials and employees who have questions as to whether particular information is confidential under the state Public Records Law should contact their supervisor or request assistance from the law department. The chief administrative officer shall advise all officials and employees of the provisions and requirements of the state Public Records Law.
(Code 1956, § 22B-7)

Sec. 2-774. Other laws, rules, and policies related to standards of conduct.

City officials and employees should be generally aware that laws, rules, and policies established by the federal and state government and agencies thereof and by the chief administrative officer and supervisors in city government prescribe standards of conduct for government and city employees. Some of these rules, laws, and policies are the following:

(1) The state Code of Governmental Ethics, R.S. 42:1101 et seq., popularly known as the State Ethics Code.

(2) The state Dual Office Holding Law, R.S. 42:61 et seq.

(3) Civil Service Law, La. Const., art. 10, and the rules of the city civil service commission.

(4) Policy and circular memoranda issued by the chief administrative officer.

(5) Departmental rules and regulations issued by department heads and supervisors.

(6) The state Public Records Act, R.S. 44:1 et seq., sometimes referred to by citizens as the Freedom of Information Act.

(7) The state Open Meetings Law, R.S. 42:4.1 et seq., popularly known as the Sunshine Law.

(Code 1956, § 22B-8)

Sec. 2-775. Dissemination of code of ethics.

The provisions of the code of ethics for the city shall be distributed to each elected or appointed official and employee of the city. Upon election or appointment to office or employment with the city, all public servants shall be given a copy of the code of ethics. The chief administrative office shall establish rules providing for the dissemination of the code of ethics.
(Code 1956, § 22B-9)

Sec. 2-776. Specific prohibitions.

The provisions of sections 2-777 through 2-783 shall be considered as specific prohibitions applicable to city officials and/or employees and/or board members as the case may be.
(Code 1956, § 22B-21)

Sec. 2-777. Prohibited financial interests.

No city officer or employee shall have a financial interest in any contract with the city, and no contract for professional or other services shall

be awarded on the basis of fee kickbacks. For purposes of this section, the word "contract" shall include remunerative contracts to provide goods or services to the city or for public work and shall not include:

(1) A contract with the city which a city official or employee is required to enter in order to receive state or federally-funded grants, loans or other public assistance, or

(2) A sale of abandoned property, as defined by R.S. 33:4720.12(1), to a city employee, when said sale is approved by the mayor, the director of the department by which the employee is employed, and the city attorney, and when such sale is for the purposes of rehabilitation.

No former city officer or employee shall be employed or otherwise compensated for services by any contractor or vendor if (i) the former city officer or employee was a scoring member of a committee convened to evaluate bids and proposals that the city solicited for public works or goods or services, and (ii) the committee awarded the contract for public works or services to such contractor or vendor. This prohibition on employment shall continue for a period of two years following the officer's or employee's termination of public service or employment with the city, or for a period of three years following the final meeting of the committee, regardless of the officer's or employee's participation in such meeting, whichever occurs first. A violation of this section is ground for termination of the contract for public works or goods or services awarded by the committee.
(Code 1956, § 22B-21(a); M.C.S., Ord. No. 20966, § 1, 2-6-03; M.C.S., Ord. No. 30346, § 1, 5-8-25)

Sec. 2-778. Leases, concessions restricted.

No lease or concession shall be granted to any corporation in which one or more city officers, employees, or board members hold or control the majority financial interest.
(Code 1956, § 22B-21(b))

Sec. 2-779. Borrowing from, interest in contractors.

No member, officer or employee of a board shall borrow money or receive anything of value from any contractor doing business with the board. No member, officer or employee of a board shall have any interest in any contract let by the board of which he is a member.
(Code 1956, § 22B-21(c))

Sec. 2-780. Forfeiture of board membership.

Any member of a board who shall qualify as a candidate for any public elective office or who shall accept an appointive office or position of public employment for which compensation is paid by the city shall forfeit membership on the board. The provisions of this paragraph shall not apply to ex officio board members nor to any board member who serves in such capacity by virtue of an elective office in city government.
(Code 1956, § 22B-21(d); M.C.S., Ord. No. 22810, § 1, 9-6-07)

Sec. 2-781. Political activities.

With regard to employees in classified service, the provisions of section 4-1504 of the Charter and article 10, section 9 of the state constitution prohibit certain political activities.
(Code 1956, § 22B-21(e))

Sec. 2-782. Recusal of board members.

Except as otherwise provided in this subdivision, no member of a board, commission, advisory committee, or other entity covered by this article who is excepted from the provisions of R.S. 42:1112 of the state code of governmental ethics with regard to voting or participating in a transaction involving a charitable, religious, nonprofit educational, public service, or civic organization because of the provisions of R.S. 42:1123(1) shall vote on or participate in a transaction otherwise prohibited by R.S. 42:1112 and, in such a case, the member shall, verbally or in writing at a public meeting, announce his recusal from participation in the transaction and the reason for recusal. The intent of this section is to require recusal of board, commission, or commit-

tee members who serve on the boards of certain nonprofit corporations in cases where a conflict of interest arises. The provisions of this section shall not apply to the council. The council may provide in its rules and regulations for the recusal of its members.
(Code 1956, § 22B-21(f))

Sec. 2-783. When financial interests permitted.

Nothing in this subdivision shall deprive city officials or employees from having a financial interest in any activity or enterprise which is not in conflict with their respective positions or with any provisions of this article, the city Code, the Charter, applicable civil service or departmental rules, or applicable state or federal law.
(Code 1956, § 22B-21)

Sec. 2-784. Prohibited campaign contributions and financial benefits.

(a) No councilmember or candidate seeking the office of councilmember shall accept or otherwise receive a campaign contribution or any other financial benefit of any value from:

(1) Any entity that provides an electric or gas utility, cable, telecommunications or technology service regulated by the city council;

(2) Any political action committee, director, member, manager, or officer of an entity from which contributions are prohibited under subsection 2-784(a)(1);

(3) Any person, firm or entity with a professional service contract awarded by the city council; or

(4) Any person, firm or entity with a professional service contract awarded by the New Orleans Sewerage and Water Board.

(5) Any outside attorney or consultant of Entergy New Orleans LLC, as listed in its quarterly report, submitted pursuant to Resolution R-21-153.

(b) No councilmember or candidate seeking the office of councilmember shall accept or otherwise receive a campaign contribution or any other financial benefit of any value from a person or entity when he or she knows or has reason to believe that the donor will be reimbursed for the donation in whole or in part from a person or entity identified in subsection (a)(1)—(4).
(Code 1956, § 22B-30; M.C.S., Ord. No. 17,613, § 1, 6-20-96; M.C.S., Ord. No. 28986, § 1, 4-7-22)

Sec. 2-785. Required disclosures.

No later than 30 days from the deadline of qualifying as a candidate seeking the office of councilmember, the candidate shall submit an affidavit to the ethics review board and the City of New Orleans Law Department that affirms or denies the following:

(1) Acceptance of compensation or financial benefit of any value from an entity regulated by the city council or contracted to provide a service to the city council in the previous five years; and/or

(2) Any time served on the board of a corporation or entity that is either regulated by the city council or contracted to provide a service to the city council in the previous five years.
(M.C.S., Ord. No. 28986, § 2, 4-7-22)

Sec. 2-786. Filing of complaints.

(a) Any person may file a complaint concerning violations of this article with the ethics review board or municipal court.

(b) Complaints concerning violations of this subdivision involving the mayor shall follow the same procedure as for those involving a councilmember, as authorized under section 3-124 of the Charter, except that a majority vote of the elected membership of the council shall be required to call a public hearing and to adopt a resolution of censure for violations under this subdivision.
(M.C.S., Ord. No. 28986, § 2, 4-7-22)

Secs. 2-787—2-810. Reserved.

ARTICLE VIII. ORDINANCES, MOTIONS, AND RESOLUTIONS*

Sec. 2-811 Definitions.

(a) *By request* means any ordinance, motion, or resolution and amendments thereto that are not originated by a member of the city council.

(b) *Legislative instrument* shall mean an ordinance, motion, resolution of the city council, and any amendment thereto.

***Editor's note—**M.C.S., Ord. No. 28074, § 1, adopted April 25, 2019, amended Art. VIII in its entirety to read as herein set out. Former Art. VIII, §§ 2-811—2-819, pertained to similar subject matter, and derived from Code 1956, §§ 2-23—2-25.4; ; M.C.S., Ord. No. 26341, § 1, adopted April 9, 2015.

Charter reference—Ordinances, §§ 3-111—3-123.

Cross reference—Clerk of the council to forward all zoning ordinances to the assessor, § 2-402.

(c) *Ordinance* shall mean a legislative act of the city council that may become law after adoption.

(d) *Motion* shall mean a legislative document that gives city council authorization or approval for a certain act.

(e) *Resolution* shall mean a legislative document that expresses the wishes or intent of the city council.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-812. Form of ordinances, motions and resolutions.

(a) Non-fiscal ordinances, motions and resolutions shall be submitted in a uniform format as prescribed by the clerk of council.

(b) All ordinances shall number each section consecutively with each line in each section being numbered in a like manner, so that the first line in each section commences with line 1.

(c) Any ordinance that amends or repeals any sections of this Code, in whole or in part, shall be accompanied by a "redline" version, in which proposed additions are underlined and deletions are shown as strikethroughs; and, wherever practicable, shall set forth the entirety of the section or subsection of the Code being amended or repealed so as to clearly identify the context and effect of the proposed changes.
(M.C.S., Ord. No. 28074, § 1, 4-25-19; M.C.S., Ord. No. 29639, § 1, 9-7-23; M.C.S., Ord. No. 29924, § 1, 5-2-24)

Sec. 2-813. Submission of ordinances, motions and resolutions that are by request.

(a) Any by request legislative instrument shall be submitted to the clerk of council for introduction in the manner prescribed in the council's rules and regulations. The requesting department or agency shall be responsible for timely submittal and all administrative requirements for facilitating introduction—including completing the council's requisite legislative summary and furnishing copies as required by the council rules and regulations to the clerk of council.

(b) Each such legislative instrument shall be accompanied by a detailed, written summary, which provides the purpose of the instrument on forms established by the city council, which shall provide at a minimum the following:

(1) The requesting department or agency;

(2) The name of the individual to contact for questions regarding the legislative instrument, including their telephone number and email address;

(3) The name and initials of the councilmember(s) who will be sponsoring the document; and

(4) A detailed and complete synopsis of the purpose of the legislative instrument including an explanation as to why the proposed legislative instrument is needed, and any resulting changes to law or policy, or its effect, if the measure is adopted by the council.

(c) The clerk of council shall not accept for introduction any legislative instrument governed by this section unless it is accompanied by the appropriate, properly completed legislative summary form; nor shall the clerk of council accept any legislative instrument which has not been initialed by at least one councilmember sponsoring the document.

(d) The provisions of subparts a) through c) of this section shall not apply to legislative instruments submitted as part of the annual adoption of the city's operating and capital budgets for the following year and submitted in accordance with sections 6-102 and 6-104 of the Home Rule Charter of the City of New Orleans.

(e) The provisions of this section are suspended during a declaration of emergency as provided by state law.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-814. Roll call votes.

All ordinances, motions, resolutions and amendments thereto shall include a space for a roll call vote. Following final consideration of an ordinance, motion or resolution by the council, including its amendments, if any, the clerk of council shall

indicate the names of councilmembers voting for or against or absent at the roll call on the legislation. The clerk of council shall prescribe the format for including the roll call vote on an ordinance, motion, resolution, and amendments thereto.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-815. Original ordinance not to leave possession of the clerk of council.

No ordinance containing a police regulation, franchise, grant, contract or specification shall, after its approval by the mayor or, in case of his or her disapproval, after its passage by the council over his or her veto, leave the possession of the clerk of the council. But when, under the law, such ordinance should be promulgated, the clerk of council shall transmit a certified copy of such ordinance which shall be published in the form as transmitted.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-816. Ordinances not revived by reference to title.

No ordinance shall be revived by mere reference to its title, any desire to amend, revive or revisit an ordinance after final council action shall require reintroduction.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-817. Technical corrections.

In preparing an ordinance for publication in the official journal pursuant to section 3-113(5) of the Charter of the city or in preparing a certified true copy of an ordinance, motion or resolution of the council, the clerk of council shall not alter the sense, meaning or effect of any act of the council of the city but may, with the approval of the city attorney and in consultation with the council chief of staff:

(1) Renumber and arrange sections or parts of sections;

(2) Transfer sections of divide sections so as to give distinct subject matters a number separate section, but without changing the meaning;

(3) Insert or change the wording of headnotes;

(4) Change reference numbers to agree with renumbered chapters or sections;

(5) Substitute the proper sections or chapter numbers for the terms "this ordinance." "the preceding section," and the like;

(6) Strike out figures where they are merely repetitions or written words and vice versa;

(7) Change capitalization for the purpose of uniformity;

(8) Correct manifest typographical and grammatical errors; and

(9) Make any other purely formal or clerical changes in keeping with the purpose of the revision.

(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-818. Corrections to ordinances following introduction.

With the approval of the city attorney in consultation with the council chief of staff, the clerk of council may insert proper dates, motion numbers or other similar data in legislative instruments containing blank spaces for the insertion of such information or make those technical changes authorized under this section to legislative instrument following introduction and prior to placement on the council agenda. But in no event shall the insertion of any such information alter the preamble of an ordinance or the original intent of the legislative instrument.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-819. Severability of ordinances.

(a) Unless otherwise specifically provided therein, the provisions of each ordinance of the council are severable, whether or not a provision to that effect is included in the ordinance. If any provision or item of an ordinance, or the application thereof, is held invalid, such invalidity shall not affect other provisions, items, or applications of the ordinance which can be given effect without the invalid provision, item, or application.

(b) This section shall apply to ordinances of the council of general and specific application including but not limited to ordinances relating to this Code, the building code, the comprehensive zoning law, and the fire prevention code of the city.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-820. Repeal of ordinances.

(a) Unless otherwise specifically provided therein, all ordinances or parts of ordinances in conflict with a provision of an ordinance subsequently adopted by the council are repealed by the ordinance subsequently adopted whether or not a provision to that effect is included in the ordinance subsequently adopted.

(b) This section shall apply to ordinances of the council of general and specific application including but not limited to ordinances relating to this Code, the building code, the comprehensive zoning laws, and the fire prevention code of the city.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Sec. 2-821. Fiscal notes.

For the ordinances which amend the operating budget of revenues, the operating budget of expenditures, or the annual capital budget, the chief administrative officer, in consultation with the appropriate department or agency, shall prepare a fiscal note which describes the fiscal impact which is expected to result from adoption of the proposed legislation. The fiscal note shall be delivered to the councilmembers, the clerk of council and the council fiscal officer at the time of introduction of the legislation or during the layover period required by the Charter. A fiscal note shall also be provided upon a motion adopted by an affirmative vote of a majority of committee members during a committee meeting or majority of the full council during a regular council meeting. The fiscal note shall be delivered to the councilmembers, the clerk of council, and the council fiscal officer within two weeks of the date of adoption of the motion requesting the fiscal note. The council, by motion, may extend the requisite delivery period. Such fiscal note shall conform to a format proposed by the chief administrative officer and approved by motion of the council. The council shall not adopt legislation for which a fiscal note is required until the fiscal note has been received from the chief administrative officer unless a waiver of this requirement is approved by two-thirds of the councilmembers.
(M.C.S., Ord. No. 28074, § 1, 4-25-19)

Secs. 2-822—2-850. Reserved.

ARTICLE IX. CITY PROPERTY

DIVISION 1. GENERALLY

Secs. 2-851—2-870. Reserved.

DIVISION 2. INVENTORY OF PROPERTY*

Sec. 2-871. Perpetual list of immovable property.

(a) The director of the department of property management shall compile and maintain a database of each parcel of unoccupied immovable property owned by the city, including vacant land, and shall annually inspect each parcel to determine whether it is maintained in a safe and suitable condition and to identify any needed capital improvements or repairs.

(b) The database required by this section, which shall be made publicly available through an online dashboard and map, shall include the municipal address of the property; its present use and any known former uses; the zoning designation; the date of acquisition; and a description of any buildings or other improvements located on the property including the date on which they were constructed, if known.

(c) In addition to the information required by subsection (b), the database shall indicate the present condition of each parcel or, in the case of a parcel containing more than one building or

*__Charter reference—__Department of property management, art. IV, ch. 14.

other significant improvements, of each building or other improvement on the parcel using the following property designations:

- New: New construction.
- Excellent: No functional inadequacies of any major consequence and all major components are in like-new condition.
- Very Good: No obvious maintenance is required, but major components are not new. Appearance and utility are above standard.
- Good: All major components still functional. Some evidence of deferred maintenance and normal obsolescence with age and a few minor repairs are needed.
- Fair: In need of repairs, but structurally sound. Lacking extensive graffiti. Grass and foliage not significantly overgrown. No major flaws such as extensive roof damage or other major issues that would lead to additional deterioration of property. Structure is secured to prevent unauthorized entry.
- Poor: Badly worn, much repair needed including possible structural repair. Many items need refinishing or overhauling, deferred maintenance obvious, significantly overgrown grass and foliage, extensive graffiti, inadequate building utility and services.
- Dilapidated: Excessive deferred maintenance, abuse, and/or neglect. Potentially in danger of collapse. Approaching abandonment or major reconstruction. Property that has fallen into a state of disrepair or deterioration through neglect and/or is structurally unsound requiring major repair.

All properties with the property condition designations of Poor or Dilapidated shall also include a cost estimate to return the property to Fair condition and a construction timeline.
(Code 1956, § 2-62; M.C.S., Ord. No. 29179, § 1, 10-6-22)

Sec. 2-872. Perpetual list of leased property.

The director of the department of property management shall compile and perpetually maintain a list of the immovable property of the city under lease or rental agreement. Such list shall include the description, acquisition, improvements, if any, the present use of the immovable property; the terms, consideration and conditions of each lease or rental agreement; and recommendations relative to the continuation or revision of each lease.
(Code 1956, § 2-63)

Sec. 2-873. Listings to be furnished to mayor and council annually.

The director of the department of property management shall transmit to the mayor and the council the listings required under this division on or before September 1 of each year.
(Code 1956, § 2-64; M.C.S., Ord. No. 29179, § 1, 10-6-22)

Sec. 2-874. Information regarding property transactions to be furnished to council.

Any party executing any agreement, contract, or lease with the city for acquisition of real property from or by the city including leasing of real property either as lessor or lessee shall provide the city council with a sworn statement listing all owners or principles, including the basis for acquiring ownership or interest in the transaction, if the agreement involves an expenditure by or payment to the city of more than $50,000.00 or the exchange of real property where such property has an appraised valuation totaling $50,000.00 or more or such property can reasonably be construed to have a fair market value in excess of $50,000.00 or such agreement involves the payment of rent by either party in excess of $5,000.00 per year. The list shall be provided prior to the execution of any agreement, contract, or lease, relating to the property and shall be filed as a public record with the clerk of council.
(Code 1956, § 2-64.1)

Secs. 2-875—2-895. Reserved.

DIVISION 3. PASSENGER VEHICLES

Sec. 2-896. Exemptions.

(a) Except as provided in subpart (b), the provisions of this division shall not apply to a vehicle owned or leased by the city assigned

specifically to individual elected officials of the city for their use or to vehicles used by bodyguards or drivers for the mayor and council.

(b) Any vehicle described in subpart (a) shall be subject to section 2-905.
(Code 1956, § 2-78; M.C.S., Ord. No. 28930, § 1, 1-20-22)

Sec. 2-897. Scope.

The provisions of this division shall apply to every passenger type vehicle owned or leased by the city including sedans, pick-up trucks, vans and station wagons. Motorcycles or motorized scooters shall not be deemed to be passenger type vehicles for the purposes of this division except as provided in section 2-901.
(Code 1956, § 2-79)

Sec. 2-898. Assignment of take home vehicles.

(a) Within the executive branch of government, passenger-type vehicles may be assigned to employees with authorization to drive the vehicle to his/her residence and return to his/her duty station on a daily basis. Vehicles will be assigned to employees with authorization to drive the vehicles to his/her residence and return to his/her duty station on a daily basis strictly according to the following criteria:

(1) The vehicle is used to perform a critical function that contributes to the overall operations and recovery of the City and maintenance of its infrastructure; and

(2) The vehicle is used to respond to critical needs on a 24-hour basis.

(b) The provisions of this section shall not apply to the department of police, the department of fire, emergency medical service, office of emergency preparedness, department of safety and permits, the department of code enforcement, the department of property management, nor to the sewerage and water board.
(Code 1956, § 2-80; M.C.S., Ord. No. 23653, § 1, 8-6-09)

Sec. 2-899. Marking and identification of vehicles.

All passenger type vehicles owned or leased by the city shall be marked and identified as being city vehicles and shall be numbered and marked with decals or stickers of a uniform size approved by the chief administrative officer or, for police vehicles, by the superintendent of police. The provisions of this section shall not apply to vehicles assigned for the use of elected officials. The superintendent of police may, with the written approval of the chief administrative officer, designate a fixed number of vehicles which may remain unmarked for covert or undercover operations; in all such cases, it shall be unlawful for any person other than a police officer to operate such an unmarked vehicle.
(Code 1956, § 2-81)

Sec. 2-900. Motor pool.

(a) A city passenger vehicle motor pool shall be established within the chief administrative office. A pool of vehicles shall be provided for the use of city employees during the course and scope of their employment during working hours. The chief administrative officer is authorized to establish all necessary rules, regulations, and procedures necessary to establish a city motor pool.

(b) A police department motor pool shall be established within the department of police. A pool of vehicles shall be provided for the use of police officers during the course and scope of their employment during working hours. The superintendent of police, with the approval of the chief administrative officer, is authorized to establish all necessary rules, regulations and procedures necessary to establish a police motor pool.
(Code 1956, § 2-82)

Sec. 2-901. Reserved.

Editor's note—M.C.S., Ord. No. 23421, § 1, adopted March 5, 2009, repealed § 2-901, which pertained to prohibition on out of parish use and derived from Code 1956, § 2-83.

Sec. 2-902. Reports.

(a) The chief administrative officer shall provide the clerk of council with a quarterly report as either a hard copy, or on a compact disc,

flash drive or some other suitable electronic storage device identifying each passenger-type vehicle owned or leased by the city which has been assigned to an employee with authorization to drive the vehicle to his residence and return to his duty station on a daily basis. Information included in such reports shall contain at minimum the following information for each vehicle:

(1) The vehicle total per department;

(2) The city asset number;

(3) The license plate number;

(4) The vehicle identification number (VIN);

(5) The name and job title of the operator;

(6) The one-way distance (in miles) of the operator's residence from his duty station;

(7) The odometer reading at the beginning and end of the reporting period;

(8) The vehicle description (year, make and model);

(9) The amount of gasoline (in gallons) used per vehicle during the reporting period.

(b) The chief administrative officer shall provide the clerk of council a quarterly report identifying each pool vehicle owned or leased by the city. Information included in such reports shall contain at minimum the following for each vehicle:

(1) The department of primary use (if applicable);

(2) The city asset number;

(3) The license plate number;

(4) The vehicle identification number (VIN);

(5) The main storage lot location for the majority of the time period in question.

In addition, the chief administrative officer shall maintain a log for each city pool vehicle owned or leased by the city, and shall furnish copies of such logs to the clerk of council on a quarterly basis. The submission of said logs shall be organized by department. Information collected in such reports shall contain at minimum the per-trip usage information for each vehicle including:

(1) Date of use;

(2) The operator name for each reported use;

(3) Odometer readings at beginning and end of each use;

(4) Brief description of the purpose of each vehicle use;

(c) Each quarterly report submitted under (a) or (b) above shall also include the purchase or lease price of all vehicles purchased or leased after May 31, 2009, for both take-home and pool vehicles.

(Code 1956, § 2-84; M.C.S., Ord. No. 23573, § 1, 6-18-09)

Charter reference—Duties of chief administrative officer, § 4-302.

Sec. 2-903. Schedule.

Not later than January 1, 1986, the chief administrative officer shall implement a plan for the assignment of passenger type vehicles in accordance with the provisions of this division and for the establishment of city and police motor pools. All passenger type vehicles which are not assigned to individual employees or assigned to a motor pool shall be declared surplus in accordance with the provisions of article 6 of the Charter and sold at public auction. Concurrently, the chief administrative officer shall implement all necessary revisions of parking space allocations in city and police parking facilities to accommodate the establishment of the motor pools.

(Code 1956, § 2-85)

Charter reference—Duties of chief administrative officer, § 4-302.

Sec. 2-904. Council reports.

(a) The chief of staff of the city council shall present annually as part of the budget process, but by no later than June 15, a status report and needs assessment of all take-home and pool vehicles assigned to the council, including those vehicles used by elected officials. This report shall be submitted to the ground transportation

and parking committee or its successor as may be designated by the council and considered by the committee by no later than at its second regularly scheduled meeting following receipt. The committee then shall forward its recommendations to the council, which shall consider the report, including any modifications, for approval prior to submitting the council's annual budget to the chief administrative officer.

(b) On a quarterly basis, the chief of staff of the city council shall furnish to the chief administrative officer, in accordance to CAO timeline, information pertaining to the council vehicle fleet including take-home and pool vehicles (including vehicles used by elected officials) as provided for in section 2-902 above and Policy Memorandum No. 5 (R) or its latest revision.

(c) The CAO shall furnish to the council, no later than December 1st of each calendar year, a report on the fuel efficiency of the city's vehicle fleet and its progress in phasing out internal combustion vehicles in favor of vehicles using sustainable propulsion technologies. This report must by broken down by department and must include, but need not be limited to, the following information:

(1) The average fuel economy for the city's entire vehicle fleet, including both owned and leased vehicles. Average fuel economy shall be calculated by adding the EPA combined city/highway miles-per-gallon figure for each vehicle, as reflected in the U.S. Department of Energy's fuel economy website, and dividing that total by the number of vehicles.

(2) The total number of vehicles owned or leased by the city powered exclusively by fossil fuels.

(3) The totally number of vehicles powered by alternative propulsion technologies, broken down by technology type.

(4) The total number of exemptions granted in the preceding year pursuant to section 2-905(b) and the reasons therefor.

(M.C.S., Ord. No. 23567, § 1, 6-4-09; M.C.S., Ord. No. 28930, § 1, 1-20-22)

Sec. 2-905. Elimination of fossil-fuel-powered vehicles.

(a) The city shall not purchase, lease, or otherwise acquire passenger vehicles powered by fossil-fuel-burning internal combustion engines, including non-plug-in electric hybrids. This prohibition shall be phased in as follows:

(1) Beginning in 2023, the city shall no longer purchase, lease, or otherwise acquire any passenger vehicle that does not meet the then-current model year greenhouse gas emissions thresholds for that vehicle type, as established pursuant to Section 141 of the 2007 Energy Independence and Security Act (42 U.S.C. § 13212) and the implementing regulations.

(2) Beginning in 2025, the city shall no longer purchase, lease, or otherwise acquire passenger vehicles powered by fossil-fuel-burning internal combustion engines and may purchase, lease, or otherwise acquire only passenger vehicles powered by alternative propulsion technologies, including plug-in electric hybrid vehicles, battery-electric vehicles, hydrogen fuel cell vehicles, and any vehicle propelled by a zero-tailpipe-emissions technology, as defined by the U.S. Department of Energy and/or the U.S. Environmental Protection Agency.

(b) Any exemption from section 2-905(a) must be approved by council motion. Exemptions are disfavored and may be granted only on a case-by-case basis. Prior to entering negotiations for vehicle acquisition, the department seeking an exemption must submit a written request to the city council for the acquisition that sets forth a substantial public-safety justification for the exemption. The written request shall be forwarded to the council's budget committee for consideration before it may be considered by the full council. The council shall accept, modify, or deny the exemption by motion.

(M.C.S., Ord. No. 28930, § 2, 1-20-22; M.C.S., Ord. No. 29499, § 1, 6-22-23)

Secs. 2-906—2-924. Reserved.

DIVISION 4. LEASE OF IMMOVABLE PROPERTY

Sec. 2-925. Conditions of lease.

A lease of city-owned immovable property for a period of more than one year, or for a period of less than one year when the lessee has the option of renewal thereof for an additional term, which together with the primary term would total more than one year, shall be valid only if the following conditions have been satisfied:

(1) The property has been advertised by the department of property management for sealed bid, in the official journal at least three times in a period of not less than two weeks; the cost of advertising shall be borne by the eventual successful bidder.

(2) The division of real estate and records, department of property management has established an acceptable rental range, based on fair rental value, and has evaluated all bids received and submitted its evaluation and recommendation as to the highest responsible bidder to the bureau of purchasing, department of finance. If the bid does not fall within the specific range, the division of real estate and records shall include in its recommendation an explanation of why the bid should be accepted despite its failure to meet that criterion. The evaluation may include an appraisal of fair rental value, estimated by an outside independent fee appraiser, if, in the discretion of the division of real estate and records, such an appraisal is deemed needed as supplemental information to assist in the evaluation.

(3) The department of property management has presented its recommendations to the mayor or his designee and has prepared an appropriate ordinance for submission to the city council.

(4) An ordinance authorizing the mayor to enter into a lease for the specified city-owned immovable property with the successful bidder, has been introduced and adopted by a majority vote of the city council, declaring the property as not being needed at this time for public purposes. Such ordinance may be adopted by a majority vote of the council on or after the day of the first legal city council meeting that is held within 21 days after the date of introduction of the ordinance. Copies of all signed lease agreements shall be filed with the division of real estate and records, department of property management, and all leases shall be maintained and enforced by them.

(M.C.S., Ord. No. 16,438, § 1(33A-1), 4-21-94)

Sec. 2-926. Exceptions to division.

The provisions of this division shall not apply to leases which meet one of the following criteria:

(1) The property is administered by the aviation board and the board is required to enter into a lease with agencies of the United States government that provide services and facilities, when such services or facilities cannot be secured from any other source than the specific United States government agencies;

(2) The property is leased to a public benefit corporation, organized pursuant to an ordinance adopted by the city council, which will manage the property for the benefit of the city, in which case the procedural requirements for subleasing of the property or portions of the property shall be governed by the ordinances authorizing the public benefit corporation and the lease by the city to the public benefit corporation;

(3) The property is leased to the state or federal government, or political subdivision thereof for a use approved by a majority vote of the council, or the property is to be used for the purpose of vending governed by the Randolph-Shepard Act or related or similar state or city laws; or

(4) The lease is a lease previously awarded and executed, or a lease previously awarded but not yet executed because of court action or otherwise.

(M.C.S., Ord. No. 16,438, § 1(33A-2), 4-21-94)

Sec. 2-926.1. Conditions of certain short term leases.

The lease of city-owned immovable property for a period of less than a year, where the rent is in excess of $100.00 per month, and which together with a previous lease, will total more than a year, must be approved by motion of the city council prior to execution by the mayor.
(M.C.S., Ord. No. 18,228, § 1, 5-15-97)

Sec. 2-927. Provisions of division.

The council by a majority vote, may authorize the leasing of property in another manner permitted by law other than prescribed in this division.
(M.C.S., Ord. No. 16,438, § 1(33A-3), 4-21-94)

Sec. 2-928. Public benefit corporations.

Notwithstanding any other provision of this chapter to the contrary, no lease or other agreement entrusting property to a public benefit corporation shall be approved or executed unless it includes a clause requiring prior approval by ordinance of any and all subleases of the public benefit corporation.
(M.C.S., Ord. No. 16,438, § 1(33A-4), 4-21-94)

Sec. 2-929. Vending locations for the blind and visually disabled.

All departments, agencies, boards or commissions occupying property owned by the city containing one or more of the following specified vendor locations, to-wit: Vending stand and immediately adjacent space on the first floor, west wing of City Hall, 1300 Perdido St., ("CH location"); vending stand on the first floor of the civil district courthouse, 421 Loyola Avenue, ("CDC location"); vending stand in the criminal courts building, 2700 Tulane Avenue, ("CCB location"); vending stand in the municipal court building, 727 South Broad Street, ("MCB location"); and vending stand in the New Orleans Police Complex, 715 South Broad Street ("NOPC location"), (CH location, CDC location, CCB location, MCB location and NOPC location hereinafter collectively referred to as "preference locations") shall give preference in the operation of the preference locations for vending stands, vending machines, and other small business concessions to blind and visually disabled persons under the administration of the Louisiana State Department of Social Services (formerly the Louisiana Health and Human Resources Administration). No blind or visually disabled person shall be required to pay any fee, service charge or equivalent thereof upon the operation of a vending stand, vending machines and other small business concessions in the preference locations, nor shall the security of the operation within the preference locations of the vending stand, vending machines or other small business concessions be disturbed in any way, without reasonable and just cause.
(M.C.S., Ord. No. 21921, § 1, 4-21-05)

Sec. 2-930. Occupancy by city employees and elected officials; fair-market rent required.

(a) No immovable property owned or controlled by the city or by a public benefit corporation may be used for residential occupancy by a city employee or elected official, except upon payment of fair market rent pursuant to a written lease agreement.

(b) No public funds may be used to pay any rents due in connection with a lease governed by this Section.

(c) The Upper Pontalba building in the Vieux Carre shall be managed and controlled exclusively by the French Market Corporation, which shall lease all units within said building to the public for fair-market rent. The French Market Corporation shall lease all units in the same manner and without preference to any city employee or elected official.

(d) This section shall not apply to or otherwise prohibit the temporary housing of essential personnel in city-owned immovable property during a declared state of emergency.
(M.C.S., Ord. No. 29414, § 1, 4-20-23; M.C.S., Ord. No. 29585, § 1, 8-10-23)

DIVISION 5. SHORT-TERM RENTAL OF SPACE WITHIN PUBLIC BUILDINGS

Sec. 2-931. Rental of facilities in multi-service centers.

(a) For nonprofit agencies with current annual leases in multi-service centers, the following rates shall apply for additional rentals beyond normal business hours:

(1) *For rental of meeting rooms:*

Minimum rental shall be for a period of two hours, which shall include one-half hour before and one-half hour after the scheduled event for setup and closure of facilities	$50.00
Each additional hour or portion thereof	$25.00

(2) *For rental of facilities in City of New Orleans multi-service centers for parties, balls, dances, etc.:*

Minimum rental shall be for a period of four hours	$120.00
Each additional hour or portion thereof	$35.00
Cleanup deposit	$75.00

(3) *Method of payment.* Advance payment in full shall be made by certified check or money order payable to the City of New Orleans and remitted to the department of property management not less than five business days prior to the event for which rental is requested.

(4) *Rental agreement.* No later than tender of payment, the renter shall sign an agreement, in a form approved by the city attorney, which sets forth the terms and conditions of the rental, and which specifies the time and duration of the event.

(b) For organizations and agencies without current annual leases in multi-service centers, the following rates shall apply:

(1) *For rental of meeting rooms in City of New Orleans multi-service centers, fees shall be charged according to the following schedule:*

Minimum rental shall be for a period of three hours, which shall include one-half hour before and one-half hour after the scheduled event for setup and closure of facilities	$75.00
Each additional hour or portion thereof	$25.00

(2) *For rental of facilities in City of New Orleans multi-service centers for parties, balls, dances, etc., fees shall be charged according to the following schedule:*

Minimum rental shall be for a period of four hours	$350.00
Each additional hour or portion thereof	$100.00
Cleanup deposit	$100.00

(3) *Method of payment.* Advance payment in full shall be made by certified check or money order payable to the City of New Orleans and remitted to the department of property management not less than five business days prior to the event for which rental is requested.

(4) *Rental agreement.* No later than tender of payment, the renter shall sign an agreement, in a form approved by the city attorney, which sets forth the terms and conditions of the rental, and which specifies the time and duration of the event.

(M.C.S., Ord. No. 19,129, § 1, 3-4-99)

Sec. 2-932. Facility fee waivers.

(a) Notwithstanding anything in the Code to the contrary, the director of the department of property management shall have the exclusive authority, at the request of an event sponsor, to

waive any facility usage fee authorized by this division for special events lasting not more than one day that are sponsored by:

1. a non-profit organization in good standing with the Louisiana Secretary of State;
2. any organization exempt from taxation under Section 501 of the Internal Revenue Code; or
3. an educational institution.

(b) To qualify for a facility usage fee waiver, the event must, in the director's discretion, promote a valid educational, charitable, social, cultural benefit to the City of New Orleans, which must be evidenced by an attestation of a representative of the sponsoring organization on forms prepared by the director.

(c) No sponsoring organization may receive more than one fee waiver pursuant to this section per calendar year.

(d) For an event that satisfies the criteria set forth in this section and is open to the general public, the director may waive up to 100 percent of the facility usage fee in accordance with policies and procedures established by the department.

(e) For an event that satisfies the criteria set forth in this section and is not open to the general public, the director may waive up to 50 percent of the facility usage fee in accordance with policies and procedures established by the department.

(f) No entrance or admission fees may be charged in connection with any event granted a fee waiver under this section.

(g) Any fee waiver authorized by this section shall not include any direct costs to the city.

(h) Any fee waiver granted pursuant to this section shall not include any required security or damage deposits imposed. The sponsoring organization shall be responsible to the city for damage resulting from or occurring during the event.

(i) The department of property management shall compile and maintain as a public record a database of all fee waivers granted pursuant to this section. The database shall contain the sponsoring entity, a description of the event and its public purpose, the date of the event and the amount of the waiver.

(j) Denial of a fee waiver requested pursuant to this section shall not be appealable to the council.

(k) Events consisting primarily of film or television production shall not be eligible for a fee waiver under this section.
(M.C.S., Ord. No. 29825, § 1, 3-7-24)

Secs. 2-933—2-970. Reserved.

ARTICLE X. DOMICILE EMPLOYEES*

Sec. 2-971. Short title.

This article shall be known as the City Domicile Ordinance.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Sec. 2-972. Definitions.

The following terms, when used in this article, shall have the meanings assigned in this section unless the context clearly indicates otherwise:

"Actual domicile" means a person's principal domestic establishment, the determination of which shall be based upon such actual facts as where a person sleeps, takes his meals, has established his household, and surrounds himself with his family and the comforts of home, as contrasted with a business establishment, a residence that is not a principal home, or a mere declaration of domicile. For the purposes of this article, a person may have only one actual domicile, and that actual domicile shall be deemed to be the residence which meets the following criteria more than any other residence:

(1) He or she usually sleeps there;

*__Editor's note—__M.C.S., Ord. No. 25242, § 1, adopted March 7, 2013, effective March 17, 2013, amended Art. X in its entirety to read as herein set out. Former Art. X, §§ 2-971—2-979, pertained to domicile of officers and employees, and derived from Code 1956, §§ 2-801—2-809.

(2) He or she keeps most clothing, toiletries, household appliances, and similar personal property of daily utility there;

(3) He or she is registered to vote there;

(4) He or she or a spouse with whom he or she lives has a telephone there in his or her name which is not usually on call forward to another residence;

(5) He or she directly receives and opens most non-city mail addressed to him or her there;

(6) He or she is free to enter the premises without notice to or permission from others.

For the purposes of this article, voters registered in another parish or county are presumed not to have their actual domicile in Orleans Parish.

"City of New Orleans" or *"city"* means the municipal corporation of the City of New Orleans and all of the attached, unattached and departmental boards and commissions, independent agencies, instrumentalities, and public benefit corporations of the city, including the Sewerage and Water Board, the New Orleans Aviation Board, the Public Belt Railroad Commission, the Audubon Park Commission, and any local public agencies that use employees in the city civil service, receive city appropriations or the proceeds of city taxes or city bonds or that are created, funded, or subject to regulation by the city, including the offices of the clerks of the municipal court and the traffic court.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Sec. 2-973. Policy.

Except as otherwise expressly provided in this article, it shall be the policy of the city to provide employment, promotions, reemployment or reinstatement, and retention of employment opportunities with the city to persons who do or will have an actual domicile in Orleans Parish within 180 days of their employment commencing and who thereafter maintain their actual domicile in Orleans Parish.
(M.C.S., Ord. No. 25242, § 1, 3-7-13; M.C.S., Ord. No. 26035, § 1, 9-4-14)

Sec. 2-974. Prohibitions on the hiring or appointing authority.

Except as otherwise specifically authorized in this article, no employee of the city who has responsibility for or authority over the hiring or appointment of employees of the city shall knowingly permit any person to violate the city domicile ordinance.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Sec. 2-975. Exemptions.

(a) The domicile requirement imposed by this article shall not apply to any employee of the city who was hired by the city prior to January 1, 2013, except that no employee who was previously exempted and later changed his/her actual domicile to Orleans Parish shall be entitled to retain the benefits of this exemption if that employee establishes a new actual domicile outside of Orleans Parish.

(b) The domicile requirement imposed by this article shall not apply to any commissioned law enforcement officers or recruits hired by the New Orleans Police Department (NOPD); firefighters or recruits hired by the New Orleans Fire Department (NOFD); emergency medical technicians hired by New Orleans Emergency Medical Services (NOEMS); juvenile detention officers and corrections staff of the Juvenile Justice Intervention Center; and mechanics, maintenance specialists, and maintenance technicians of the Equipment Maintenance Division. Furthermore, appropriate sensitivity training to address racial, gender, religious, and sexual orientation discrimination shall be provided for all law enforcement officers. For the purposes of this subsection, the word "hired" has the same meaning as the word "employed." Domicile waivers for juvenile detention officers and corrections staff of the Juvenile Justice Intervention Center, and mechanics, maintenance specialists, and maintenance technicians of the Equipment Maintenance Division shall be terminated on December 31, 2024.

(c) The domicile requirement imposed by this article shall not apply to any employee of the New Orleans Aviation Board during the term of his or her employment with such board and for six months thereafter, if the actual domicile of

the employee is nearer to the employee's job site than the distance from the job site to the nearest point of Orleans Parish.

(d) Effective between April 1, 2025 and March 31, 2027, the requirement imposed by this article shall not apply to inspectors hired or employed by the departments of safety and permits, code enforcement and public works, and the Vieux Carré Commission and the historic district landmarks commission. An inspector hired or employed between April 1, 2025 and March 31, 2027 and exempted from the domicile requirements pursuant to this subsection shall be entitled to retain the benefits of this exemption unless and until such inspector establishes a new domicile in Orleans Parish.

(e) Part-time employees, those employees who are not classified as full-time employees, shall be exempt from the domicile requirement imposed by this article.

(f) Additional exemptions to the domicile requirement imposed by this article may be granted upon a showing of extreme hardship by an employee, on an individual, case-by-case basis, by the appointing authority of the employee subject to the approval of the chief administrative officer. Any employee who seeks to request an exemption to the domicile requirement imposed by this article shall file with the appointing authority and the chief administrative office a request for such an exemption, on a form prescribed by the chief administrative officer.

(g) Except as otherwise expressively provided in this article, under no circumstances shall any officer or employee who does not maintain an actual domicile in Orleans Parish be administered with any different treatment or negatively impacted in any way during his or her employment than an employee who is domiciled in New Orleans.

(h) The chief administrative officer shall promulgate administrative policies and procedures for the administration of and enforcement of this section within 90 days of the effective date of this ordinance. The chief administrative officer shall provide all employees exempted under this section with notice of all policies and procedures promulgated pursuant to this section.
(M.C.S., Ord. No. 25242, § 1, 3-7-13; M.C.S., Ord. No. 25793, § 1, 4-10-14; M.C.S., Ord. No. 26035, §§ 2, 3, 9-4-14; M.C.S., Ord. No. 29314, § 1, 2-2-23; M.C.S., Ord. No. 30222, § 1, 1-30-25; M.C.S., Ord. No. 30248, § 1, 3-13-25)

Sec. 2-976. Administration.

The chief administrative officer may promulgate administrative policies and procedures and internal regulations for the administration and enforcement of this article which may include uniform provisions for proof of actual domicile, reporting changes of actual domicile and other matters.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Sec. 2-977. Dismissal.

Knowing failure to comply with any of the provisions of this article by officers and employees of the city shall be cause for dismissal or other disciplinary actions.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Sec. 2-978. State of emergency.

In the event that a state of emergency is declared pursuant to section 4-206(3)(d) of the Home Rule Charter, the mayor, by executive order, may suspend any or all provisions of this article.
(M.C.S., Ord. No. 25242, § 1, 3-7-13)

Secs. 2-979—2-999. Reserved.

ARTICLE XI. REGULATIONS

Sec. 2-1000. Departmental regulations.

This section sets forth procedures for approval of regulations affecting the public and necessary to the functions of municipal entities.

(a) Definitions:

(1) *Municipal entity* includes any city board, commission, department, officer, or other unit of city government, including but

not limited to public benefit corporations, authorized by law or otherwise permitted to enact regulations.

(2) *Person* includes an individual, partnership, corporation, association, limited liability company, joint stock association, or organization but does not include any public entity of any kind.

(3) *Regulation* means each statement, guide, or requirement of conduct or action of a municipal entity, which affects the public and which has general applicability and the effect of implementing or interpreting substantive law or policy or which prescribes the procedure or practice requirements of a municipal entity but does not include:

a. Any statement concerning only the internal management or discipline of a municipal entity;

b. Any intra-municipal entity memoranda;

c. Standards of administrative practice prescribed by the chief administra-

tive officer concerning only the internal management or discipline of the executive branch;

d. Rules of the civil service commission; or

e. Requirements otherwise meeting the definition of regulation as defined hereinabove that have been established by ordinance.

A regulation may be of general applicability even though it may not apply to the entire city, provided its form is general and it is capable of being applied to every member of an identifiable class. The term includes the amendment or repeal of an existing regulation.

(4) *Regulation making* means the process for adopting or promulgating, amending, or repealing a regulation.

(b) An interested person may petition a municipal entity requesting the promulgation, amendment, or repeal of a regulation. The chief administrative officer shall prescribe the form for petitions and the procedure for their submission, consideration, and disposition. Within 60 days after submission of a petition, the municipal entity shall either deny the petition in writing, stating its reasons for the denial, or shall initiate the regulation making proceedings in accordance with this section.

(c) Any municipal entity proposing regulations shall arrange for public notice, consisting of at least one advertisement in the official journal indicating intent to adopt such regulations, and a public hearing to be held by the municipal entity to provide the opportunity for comments on the proposed regulations. The public notice shall provide the time, place, and date for the public hearing; a statement describing the subjects and issues involved; the general fiscal impact; and name, title and telephone number of the person to be contacted for additional information. The public hearing shall be scheduled no sooner than 72 hours and no later than 30 days after publication of the last public notice. Any and all comments and suggestions, written or oral, made at or as a result of the aforesaid public hearing shall be considered by the municipal entity in formulating the version of proposed regulations to be submitted for consideration by the council.

(d) Within 30 days after the aforesaid public hearing, each municipal entity shall submit to the chief administrative officer and the council the proposed regulations and a report detailing the comments and suggestions made at the municipal entity's public hearing, any other comments and suggestions received, the fiscal impact, and a draft resolution which, if adopted by the council, would implement the regulations.

(e) Coincidental with submission of any proposed regulations to the council, the municipal entity shall make copies of same available upon its premises for review by members of the public and shall furnish a copy of same to the main library of the New Orleans Public Library for public review.

(f) The council shall then proceed to consider the proposed regulations by means of a resolution approving or disapproving same.

(g) Effective date of regulations. In accordance with section 4-107(3)(d) of the Home Rule Charter, in the event the council adopts the resolution approving the proposed regulations, they shall become effective and shall become legally enforceable at 12:01 a.m. on the twenty-second day beginning on the day following approval by the council unless a later date is required by statute or specified in the regulation. If a later date is required, the later date shall be the effective date and shall become the date on which the regulation becomes legally enforceable. If the council neither approves nor disapproves regulations submitted to it within 45 days of submittal, the regulations shall become legally effective at 12:01 a.m. on the day following expiration of such 45-day period.

(h) Pursuant to section 4-107(3)(c) of the Home Rule Charter, every regulation shall be published once in the official journal or in a register approved by the council in accordance with section 3-122 of the Home Rule Charter unless deemed too lengthy for publication by the

municipal entity, which shall in such case publish a summary of its contents and notice of its availability to the public.

(i) Pursuant to section 4-107(3)(d) of the Home Rule Charter, all regulations heretofore adopted by the city are hereby ratified and continued in existence until modified in accordance with the procedures established in this section.

(j) Emergency adoption procedure:

(1) If a municipal entity finds that an imminent peril to public health, safety or welfare requires immediate implementation of new or amended regulations and the municipal entity determines that there is not sufficient time to complete the procedures set forth hereinabove, the municipal entity may immediately promulgate in writing and implement such emergency regulations, and they shall become effective immediately upon their promulgation or at a specified date not more than 30 days thereafter.

(2) Within 24 hours of promulgation of the emergency regulations, the municipal entity shall provide a written report to the chief administrative officer and the city council, detailing the emergency regulations in their entirety; the reasons why immediate implementation is necessary in order to avoid imminent peril to the public health, safety or welfare; the date upon which the emergency regulations will expire, not to exceed 90 days; and the general fiscal impact of the emergency regulations. If not so submitted within 24 hours, the emergency regulations shall become null and void immediately.

(3) In order to invalidate emergency regulations implemented by a municipal entity prior to the end of the 90-day period, the council may adopt a resolution nullifying the emergency regulations or the chief administrative officer may issue a written directive nullifying the emergency regulations.

The emergency regulations shall become invalid and null at noon the day following:

a. Council action nullifying the emergency regulations; or

b. The date of the chief administrative officer's directive.

(4) Emergency regulations may be renewed by the municipal entity once for a period not exceeding an additional 90 days provided that the municipal entity has initiated permanent nonemergency regulation making within 60 days following emergency promulgation and provided that the municipal entity notifies the chief administrative officer and the city council in writing of the need to renew at least ten days prior to the end of the initial 90-day period.

(5) In the event the council disapproves a resolution seeking to implement permanently the emergency regulations during either the initial 90-day period or the 90-day renewal period, the emergency regulations shall become invalid and ineffective at noon on the day following such council action.

(6) The municipal entity shall maintain upon its premises for public review copies of such emergency regulations and shall furnish a copy of same to the main library of the New Orleans Public Library for public review.

(k) Any amendments to this section governing promulgation of regulations may only be approved by two-thirds vote of the entire membership of the council pursuant to section 4-107(3)(d) of the Home Rule Charter.
(M.C.S., Ord. No. 17,611, § 1, 6-20-96)

Secs. 2-1001—2-1100. Reserved.

ARTICLE XII. SCHEDULE OF FEES, CHARGES, AND LICENSES AND PERMITS*

Sec. 2-1101. Establishment of fee schedule and provisions for proposed adjustments.

Except as otherwise provided, the CAO shall annually prepare ordinances to adjust the fees, permits, licenses, and service charges enumerated below, in accordance with the procedure set forth below. The ordinances shall be presented to the council for introduction at the same council meeting as the ordinances setting forth the operating budgets of revenues and expenditures for the upcoming fiscal year.

(a) *Calculation of adjustment.* Change in cost of doing business will be measured by fluctuation in the Consumer Price Index (CPI), U.S. average, "All Urban Consumers" as published by the U.S. Department of Labor, Bureau of Labor Statistics. This fluctuation will be measured as of June 30 each year, and made effective for the next full calendar year.

(b) *Effective date of adjustment.* The first date for this adjustment to be applied will be January 1, 2002, based on the increase from June 30, 2000, to June 30, 2001, with subsequent years to follow in like sequence. The increase shall be equal to the net percentage change in the CPI or three percent, whichever is greater. The increase shall not be applicable to fines or penalties.

(c) *Fee schedules available to the public.* The director of each department shall make available to the public a schedule of all fees, service charges, licenses, permits, and all other charges, exclusive of taxes, collected and/or assessed by the respective department. The schedule shall be updated annually, and shall be made available no later than December 1 each year for charges applicable effective January 1 in the following year.

(Ord. No. 19,998, § I, 1-18-01)

*__Editor's note—__Ord. No. 19,998, § I, adopted January 18, 2001, enacted provisions specifically intended for use as Art. XII of this chapter, but did not specify section numbers for these provisions. Therefore, at the discretion of the editor, these provisions have been set out herein as §§ 2-1101—2-1104.

Sec. 2-1102. Administrative fees, admission fees, registration fees, rental fees, charges for use of special equipment.

Except as otherwise provided, the fees enumerated in this section shall be charged according to a schedule proposed annually by the chief administrative officer and approved by the city council in accordance with the method set forth in section 2-1101 above, provided that until a proposed schedule is approved by the city council, the schedule of fees previously approved shall remain in effect.

(A) *Recreation facility rentals.*

(1) *Recreation and gymnasium rentals.*

(a) *Basketball and volleyball.*

	Practice (Per hour)	*Game (Per hour)*
College or University	$35.00	$134.00
All others	$12.00	$40.00

(b) *Parties, balls, dances, etc.*

First four hours or portion thereof: $470.00.

Each additional hour or portion thereof: $134.00.

(c) *Meetings and small gatherings (per hour):* $50.00 to $64.00.

(2) *Pool rentals.*

Gert Town and Joe Brown Pools: $520.00.

(3) *Stadium rentals.*

(a) *Games.*

	Day (4 hours)	*Night (4 hours)*
Behrman Stadium	$781.00	$1,042.00
All others	$507.00	$781.00

(b) *Practice.*

University: $50.00 (per hour).

All others: $24.00 (per hour).

(4) *Playground rentals.*

Parties and special events:

First four hours or portion thereof: $520.00.

Each additional hour or portion thereof: $129.00.

(5) *Tennis court rentals.*

Per hour:	*Day (8:00 a.m. to 4:00 p.m.)*	*Evening (4:00 p.m. to 7:00 p.m.)*	*Weekends*
State and city employees	$5.00	$7.00	$5.00
All others	$5.00	$7.00	$7.00
Tennis lessons	$10.00	$10.00	$10.00

(6) *NORD Theatre tickets:* $10.00.

(7) *Registration fees.*

(a) Fees for the programs and/or services enumerated in section (b) below shall be charged on a graduated scale based on family income. Proof of income may consist of documentation provided for participation in programs of the Orleans Parish Schools, or other documentation approved by the director of recreation.

(b) Fee schedule.

	Below Average Income	*Average Income*	*Above Average Income*
Summer camp	$15.00	$44.00	$64.00
After school, per month	8.00	18.00	31.00
Holiday camps, per day	5.00	10.00	15.00
Extended care, per hour	3.00	3.00	3.00
Seasonal sports, each	15.00	43.00	64.00

(8) *Deposits and security requirements.*

(a) *Deposits.*

Minimum clean-up deposit: $195.00.

Deposits must be paid to the department of recreation at least two business days prior to any requested rental.

(b) *Security.* For all athletic events and parties, uniformed security will be required. Security arrangements must be approved by the director of recreation at least two business days prior to any requested rental.

(B) *Fees for use of equipment.* Fees for use of equipment unique to a particular department may be charged at a rate set by the director and approved by the chief administrative officer, subject to annual review and adjustment. Such fees may include reimbursement at overtime rates for city personnel required to operate or monitor equipment.

(Ord. No. 19,998, § I, 1-18-01; Ord. No. 20,523, § I, 2-7-02; Ord. No. 20,525, § I, 2-7-02; M.C.S, Ord. No. 20925, § 1, 11-26-02; Ord. No. 21,079, § I, 5-1-03; M.C.S., Ord. No. 21350, § 1, 12-2-03; M.C.S., Ord. No. 21785, § 1, 12-1-04; M.C.S., Ord. No. 22093, § 1, 12-1-05; M.C.S., Ord. No. 22459, § I, 12-1-06; M.C.S., Ord. No. 22910, § I, 11-30-07; M.C.S., Ord. No. 23336, § 1, 12-1-08; M.C.S., Ord. No. 23812, § 1, 12-1-09; M.C.S., Ord. No. 24226, § 1, 12-1-10; M.C.S., Ord. No. 24682, § I, 12-1-11; M.C.S., Ord. No. 25108, § I, 11-30-12; M.C.S., Ord. No. 25582, § 1, 11-21-13; M.C.S., Ord. No. 26145, § 1, 11-20-14)

Sec. 2-1103. Fees for services.

Except as otherwise provided, the fees enumerated in this section shall be charged according to a schedule proposed annually by the chief administrative officer and approved by the city council in accordance with the method set forth in section 2-1101 above, provided that until a proposed schedule is approved by the city council, the schedule of fees previously approved shall remain in effect.

(a) *Department of Law; notarial fees.* Notarial work for all city contracts, requiring to be notarized:

Contract value under $1,000.00	$241.00
$1,000.00 to $49,999.99	$449.00
$50,000.00 to $499,999.99	$1,138.00
$500,000.00 to $999,999.99	$2,444.00

$1,000,000.00 or greater	$4,888.00

In addition to the above fees, the contractor shall pay the actual costs of recording all acts and photocopying at the rate of $0.50 per page. All affidavits of acceptance or substantial completion are $70.00 plus actual recordation costs.
(M.C.S., Ord. No. 22460, § 1, 12-1-06; M.C.S., Ord. No. 22911, § I, 11-30-07; M.C.S., Ord. No. 23337, § 1, 12-1-08; M.C.S., Ord. No. 23813, § I, 12-1-09; M.C.S., Ord. No. 24227, § I, 12-1-10; M.C.S., Ord. No. 24683, § I, 12-1-11; M.C.S., Ord. No. 25109, § I, 11-30-12; M.C.S., Ord. No. 25583, § 1, 11-21-13; M.C.S., Ord. No. 26146, § 1, 11-20-14; M.C.S., Ord. No. 26716, § 1, 12-1-15; M.C.S., Ord. No. 27189, § 1, 11-17-16; M.C.S., Ord. No. 27933, § 1, 11-29-18; M.C.S., Ord. No. 28248, § 1, 11-21-19; M.C.S., Ord. No. 28552, § 1, 11-19-20; M.C.S., Ord. No. 28864, § 1, 12-1-21; M.C.S., Ord. No. 29267, § 1, 12-1-22; M.C.S., Ord. No. 29740, § 1, 12-4-23; M.C.S., Ord. No. 30146, § 1, 11-21-24; M.C.S., Ord. No. 30535, § 1, 12-1-25)

Sec. 2-1104. Licenses and permits; application fees.

Except as otherwise provided, the fees enumerated in this section shall be charged according to a schedule approved annually by the chief administrative officer in accordance with the method set forth in section 2-1101 above, provided that until a proposed schedule is approved by the city council, the schedule of fees previously approved shall remain in effect.
(Ord. No. 19,998, § I, 1-18-01)

Sec. 2-1105. Stormwater fee-in-lieu of compliance.

Subject to the submittal and approval provisions provided in the Building Code of the City of New Orleans, there shall be a fee-in-lieu rate of $44.00 per cubic foot of required storage for properties that do not physically comply with the Stormwater Code of the City of New Orleans. The appropriate amount of this fee shall be calculated by the department of safety and permits. This fee shall be amended as needed to account for inflation and any new data that provides for improved costs.
(M.C.S., Ord. No. 27701, § 1, 3-8-18)

Secs. 2-1106—2-1119. Reserved.

ARTICLE XIII. OFFICE OF INSPECTOR GENERAL (OIG)

Sec. 2-1120. Office of inspector general.

(1) *Creation of the city office of inspector general.* Pursuant to section 9-401 of the Home Rule Charter of the city, this article establishes the city office of inspector general.

(2) *Purpose.* The purpose of this section is to establish a full-time program of oversight to prevent and detect fraud, waste and abuse, and to promote efficiency and effectiveness in city programs and operations. This oversight includes audits, criminal and administrative investigations, inspections and evaluations, and monitoring. The scope of oversight activities includes all entities subject to the jurisdiction of the office of inspector general, as set out in paragraph (12).

(3) *Appointment.*

(a) *Appointing authority and procedure.*

1. In the case of a vacancy in the position of inspector general, the ethics review board shall be responsible for appointing a new inspector general.
    a. The appointing authority shall convene within 60 days of a vacancy in the position of inspector general to initiate the selection process for a new inspector general.
    b. The appointing authority shall conduct a nationwide search to fill the position of inspector general.
    c. Appointment of an inspector general shall be by an affirma-

tive vote of a majority of all the authorized membership of the appointing authority.

d. The chairperson of the appointing authority may appoint an interim inspector general to serve until such time as a successor inspector general is appointed.

i. The eligible candidates for interim inspector general are: an existing first assistant inspector general, deputy inspector general, or other office of inspector general management personnel.

ii. The appointing authority may, by a majority vote of all of its members, overrule the chairperson's appointment and appoint an alternative eligible candidate as interim inspector general.

2. The appointing authority shall approve the inspector's general's annual salary each year at a meeting of its board.

(b) *Qualifications for appointment.*

1. In considering a candidate for the position of inspector general, the appointing authority shall evaluate and consider any and all qualifications that are relevant to the position of inspector general, including, but not limited to:

a. The candidate's integrity;

b. The candidate's potential for strong leadership;

c. The candidate's demonstrated experience and/or ability in accounting, auditing, finance, law, management analysis, public administration, investigation, criminal justice administration, or other closely related fields;

d. The candidate's demonstrated experience and/or ability in working with local, state and federal law enforcement agencies and the judiciary; and

e. Any other qualifications deemed relevant by the appointing authority.

2. The appointing authority's decision to appoint a particular candidate shall not under any circumstances be based in any part upon the candidate's age, gender, race, sexual orientation, religious affiliation or political affiliation.

3. A qualified candidate for inspector general shall be a person who:

a. Holds a bachelor's degree from an accredited institution of higher education;

b. Possesses demonstrated knowledge, skills, abilities and experience in conducting audits, investigations, inspections, and performance reviews; and

c. Has at least five years of experience in any one, or a combination, of the following fields:

i. As an inspector general;

ii. As a federal law enforcement officer;

iii. As a federal or state court judge;

iv. As a licensed attorney with experience in the areas of audit or investigation of fraud, mismanagement, waste, corruption, or abuse of power;

v. As a senior-level auditor or comptroller; or

vi. As a supervisor in an office of inspector general or similar investigative agency.

4. A highly qualified candidate shall be a qualified candidate who:
   a. Has managed and completed complex investigations involving allegations of fraud, waste,

abuse, illegal acts, theft, public corruption, deception or conspiracy; or

b. Holds an advanced degree in law, accounting, public administration, or other relevant field.

5. The inspector general shall obtain professional certification as a certified inspector general within one year of appointment. Such certification shall be paid for by the office of inspector general.

(c) *Term of office.*

1. The inspector general shall be appointed for a term of four years, which term shall begin when the inspector general begins employment with the city.

2. The inspector general may be reappointed to subsequent four year terms at the discretion of the appointing authority.

(d) *Restrictions on appointment.*

1. A former or current elected official or employee of New Orleans city government, including a former or current elected official or employee of governmental entities that receive funds directly or indirectly from the city or its citizens, may not be appointed inspector general within four years following the end of such individual's period of service. This restriction shall not prohibit the reappointment of an inspector general currently holding the position of New Orleans Inspector General.

a. Notwithstanding the foregoing restriction, employees of the office of inspector general who have served in the office for two or more years may be immediately eligible for appointment to the position of inspector general.

2. A former or current elected official or employee of the state or its political subdivisions may not be appointed inspector general within two years following that individual's period of service.

a. Notwithstanding the foregoing restriction, employees of the office of inspector general of the state or its political subdivisions who have served in any such office for two or more years may be immediately eligible for appointment to the position of inspector general.

3. The inspector general shall not hold, nor be a candidate for, any elective office while inspector general, or for four years thereafter. The inspector general shall not hold office in any political party or political committee, nor shall he/she participate in any political campaign of any candidate for public office, nor make any campaign contribution or campaign endorsement, while inspector general.

a. An officer or employee of the office of the inspector general shall not hold, or be a candidate for, any elective office while an officer or employee, or for four years thereafter. An officer or employee of the office of the inspector general shall not hold office in any political party or political committee, or participate in any political campaign of any candidate for public office, or make any campaign contribution or campaign endorsement, while an officer or employee of the office of inspector general.

(4) *Removal from office.* Following a public hearing by the appointing authority, the inspector general may be removed from office for cause by an affirmative vote of two-thirds of the entire

authorized membership of the ethics review board, which must then publicly report the reasons for removal to the city council.

(a) Causes for removal may include abuse of power or authority; conviction of a state or federal felony [charge]; entry of a guilty or nolo contendere plea to a state or federal felony charge; discrimination; ethical misconduct in office; unprofessional conduct; or other acts tarnishing the integrity of the office of inspector general.

(5) *Resources.*

(a) Pursuant to section 9-404 of the Home Rule Charter of the city, the office of inspector general shall be funded by an annual appropriation by the city council as part of the city's operating budget.

(b) The office of inspector general shall prepare and transmit an annual operating budget to the chief administrative officer, identifying in the budget all proposed expenditures for the following fiscal year.

(6) *Organizational placement.*

(a) The office of the inspector general shall be considered a city law enforcement agency for the purposes of this chapter, but shall not be a police force. Pursuant to section 4-502(2)(a) of the Home Rule Charter of the city, upon the request of the inspector general, the superintendent of police shall deputize investigative employees of the office of inspector general with limited police powers. Such deputies shall not be granted arrest power, and shall be deputized solely for the purpose of carrying out the duties of the office of inspector general and only in connection with the investigation of a matter within the purview of the office of inspector general.

(b) The office of inspector general shall be at all times operationally independent from the legislative and executive branches of the city government, including the Council of the City of New Orleans, and the office of the mayor.

1. "Operationally independent" shall be defined as "not prevented, impaired, or prohibited from initiating, carrying out, or completing any audit, investigation, inspection or performance review."

2. Pursuant to section 9-401(3) of the Home Rule Charter of the City of New Orleans, the office of inspector general may retain special counsel.

(c) The office of inspector general is authorized and encouraged to work cooperatively with the ethics review board in carrying out its functions and duties as laid out in this section. Upon request of the ethics review board, the office of inspector general may conduct preliminary inquiries or investigations on behalf of the ethics review board. The office of inspector general may also file and present formal charges to the ethics review board for adjudication when there exists probable cause of a violation of the City of New Orleans Code of Ethics.

(7) *Records disclosure.* All records of the office of inspector general shall be exempt from public disclosure and shall be considered confidential, unless it is necessary for the inspector general to make such records public in the performance of his or her duties. Unauthorized disclosure of information by the inspector general or any employee of the office of inspector general is subject to review and disciplinary action by the appointing authority. The office of inspector general is subject to all state laws concerning public records.

(8) *Reporting the results of inspector general findings.*

(a) Upon completion of any audit, evaluation or investigation, the office of inspector general shall report the results of its findings and any recommendations to the ethics review board.

(b) Prior to concluding an audit or evaluation report, which contains findings as to the person or entity which is the subject of the audit or evaluation, the office of inspector general shall provide the affected person or entity with an internal review copy of the report. Such person or entity shall have 30 days from the transmittal date of the report to submit a written explanation or rebuttal of the findings before the report is finalized, and such timely submitted written explanation or rebuttal shall be attached to the finalized report.

(c) This section shall not apply when the inspector general, in conjunction with a district attorney, attorney general, or United States Attorney, determines that supplying the affected person or entity with such report would jeopardize a pending criminal investigation.

(d) This section shall not apply when, upon completion of any audit, evaluation or investigation, the inspector general determines that:

1. There was no criminality, but rather employee misconduct;

2. The affected individual was presented with the allegations, and had an opportunity to rebut; and

3. Making the report public could jeopardize confidentiality of sources and means.

(9) *Annual reports.* The inspector general shall report annually to the ethics review board on the activities of the office of inspector general for the preceding calendar year.

(a) Such report shall be submitted no later than March 31 and shall include information on all matters undertaken, costs incurred, costs recovered, matters concluded, and any results. The report shall also describe accomplishments of the office of inspector general.

(b) Copies of the report shall be provided to the city council and the office of the mayor upon completion, and to any other entity subject to the jurisdiction of the inspector general upon request.

(c) Upon issuance, members of the media and the public shall be promptly advised of the issuance of the report. A copy of the report shall be made available to the public on the office of inspector general's website.

(10) *Authority.* The office of inspector general is authorized to engage in the following specific functions:

(a) Audit, evaluate, investigate, and inspect the activities, records, and individuals with contracts, subcontracts, procurements, grants, agreements, and other programmatic and financial arrangements undertaken by city government and any other function, activity, process, or operation conducted by city government.

(b) Audit the efficiency and effectiveness of city government operations and functions and conduct reviews of city government's performance measurement system.

(c) Review the reliability and validity of the information provided by city government performance measures and standards.

(d) Initiate such investigations, audits, inspections, and performance reviews of city government as the inspector general deems appropriate.

(e) Receive complaints of fraud, waste, abuse, inefficiency, and ineffectiveness from any source and investigate those complaints that the inspector general deems credible.

(f) Engage in prevention activities, including, but not limited to, the prevention of fraud, waste, abuse, and illegal acts; review of legislation; review of rules, regulations, policies, procedures, and transactions; and the supplying, providing, and conducting of programs for training, education, certification and licensing.

(g) Conduct joint investigations and projects with other oversight or law enforcement agencies, including, but not limited to, the district attorney, attorney general, and the United States Attorney.

(h) Issue reports and recommend remedial actions to be taken by the city council, the office of the mayor, or municipal departments or agency heads to overcome or correct operating or maintenance deficiencies and inefficiencies identified by the office of inspector general.

(i) Issue public reports as set forth in subsections (8) and (9).

(j) Monitor implementation of recommendations made by the office of inspector general and other audit, investigative, and law enforcement agencies.

(k) Establish policies and procedures to guide functions and processes conducted by the office of inspector general.

(l) Require reports from the office of the mayor, city council, or city departments, agencies, boards, commissions, or public benefit corporations regarding any matter within the jurisdiction of the office of inspector general.

(m) File a complaint with the ethics review board or state board of ethics upon detecting a potential violation of any state ethics law or city ethics ordinance or code.

(n) Attend all city meetings relating to the procurement of goods or services by the city, including meetings involving third-party transactions.

1. The office of inspector general may pose any questions and raise any concerns at such meetings consistent with its functions, authority and powers of the office of inspector general.

2. The office of inspector general shall be notified in writing prior to any meeting of a selection or negotiation committee relating to the procurement of goods or services. The required notice shall be given as soon as possible after a meeting has been scheduled, but in no event later than 24 hours prior to the scheduled meeting.

a. An audio recorder or court stenographer may be utilized to record any selection or negotiation committee meetings attended by the office of the inspector general.

(o) Assist any city department, agency, board, commission, public benefit corporation, the office of the mayor, the city council, any city council member, or the governing body of any agency, board, commission, or public benefit corporation, upon request, with implementation of any suggested legislation or legislative policy. In such an event, the inspector general may assign personnel to conduct, supervise, or coordinate such activity.

(p) Do all things necessary to carry out the functions and duties set forth in this section, including promulgate rules and regulations regarding the implementation of responsibilities, duties and powers of the office of inspector general.

(11) *Duties.*

(a) When efficiency problems are noted, the inspector general has an affirmative duty to provide a standard of efficient practice to the unit in question, and assess whether adequate resources are available for implementation of a program. This may be done in the form of a public letter or other appropriate vehicle.

(b) The office of inspector general shall maintain information regarding the cost of investigations and cooperate with appropriate local, state, and federal administrative and prosecutorial agencies in recouping such costs from nongovernmental entities involved in willful misconduct. The office of inspector general shall also work with state and federal prosecutorial agencies to maximize

the recovery of the costs of investigation and funds lost as a result of willful misconduct by nongovernmental authorities.

(c) Upon discovering credible information of corruption, fraud, waste, abuse or illegal acts in carrying out his duties and responsibilities as inspector general, the inspector general shall report to the district attorney, or the United States Attorney, or other appropriate law enforcement agency.

(d) Duties to refer matters.

1. Whenever the inspector general has reasonable grounds to believe there has been a violation of federal or state law, the inspector general shall refer the matter to the district attorney, the United States Attorney or other appropriate law enforcement agency.

   a. After referring the matter to an appropriate law enforcement agency, the office of inspector general may assist the law enforcement agency in concluding any investigation.

2. When the inspector general has reason to believe he must recuse himself from a matter, because of a potential conflict of interest, the inspector general shall refer such matter to the district attorney, the United States Attorney or other appropriate law enforcement agency.

3. The inspector general shall refer audit, investigative, inspection, or performance review findings to the ethics review board, the state board of ethics, or to any other federal, state or local agency he deems appropriate.

(e) The office of inspector general shall submit any proposed changes to its governing policies to the city council for review and acceptance.

(12) *Powers.*

(a) The office of inspector general shall have access to all records, information, data, reports, plans, projections, matters, contracts, memoranda, correspondence, audits, reviews, papers, books, documents, computer hard drives, e-mails, instant messages, recommendations, and any other material of the city council, office of the mayor, all city departments, agencies, boards, commissions, public benefit corporations or of any individual, partnership, corporation, or organization involved in any financial capacity or official capacity with city government that the inspector general deems necessary to facilitate an investigation, audit, inspection, or performance review. This includes any and all information relative to the purchase of supplies and services or anticipated purchase of supplies and services from any contractor by any city department, agency, board, commission, or public benefit corporation, and any other data and material that is maintained by or available to the city which in any way relates to the programs and operations with respect to which the inspector general has duties and responsibilities.

(b) The inspector general may request information, cooperation, and assistance from any city department, agency, board, commission, or public benefit corporation. Upon receipt of a request for such information, cooperation, and assistance from the inspector general, each person in charge of any city department, or the governing body of any city agency, board, commission, or public benefit corporation shall furnish the inspector general or his authorized representative with such information, cooperation, and assistance.

(c) The office of inspector general shall have direct and prompt access to all employees of the city, including, but not limited to, any elected official, deputy mayor, or head of any city department, agency, board, commission, or public benefit corporation.

(d) At all times, the office of inspector general shall have access to any building or facility that is owned, operated or leased by the city or any department, agency, board, commission or public benefit corporation of the city, or any property held in trust to the city.

(e) No subpoena is required for the information or documents mentioned in this paragraph. All information and documents are to be provided upon written request from the office of inspector general.

(13) *Professional standards.* Standards for initiating and conducting audits, investigations, inspections, and performance reviews by the office of inspector general will conform to the Principles and Standards for Offices of Inspectors General (Green Book) promulgated by the Association of Inspectors General. The office of inspector general shall develop an operations manual available to the public that contains principles based on these standards.

(14) *Physical facilities.* The city shall provide the ethics review board and the office of inspector general with office space, which shall be located in close proximity to, but not within, City Hall. The city shall also provide the ethics review board and the office of inspector general with sufficient and necessary equipment, office supplies, and office furnishings to enable the ethics review board and the office of inspector general to perform their functions and duties.

(15) *Organizational structure.*

(a) The office of inspector general and the ethics review board shall have the power to establish personnel procedures and procurement procedures for their respective offices. The office of inspector general and the ethics review board shall have the power to appoint, employ, contract, and remove such assistants, employees, consultants, and personnel, including legal counsel, as deemed necessary for the efficient and effective administration of the activities of their respective offices.

(b) The office of inspector general shall include, but not be limited to, a division of criminal investigations, a division of audit, a division of inspections, and a division of performance review.

(16) *External review of the office of inspector general.*

(a) Completed reports of audits, inspections and performance reviews, and public reports of investigation, shall be subject to an annual quality assurance review by a third-party advisory committee, known as the quality assurance review advisory committee for the office of inspector general.

1. The quality assurance review advisory committee for the office of inspector general shall include a representative appointed by the city council, who shall serve as chair of the committee; a representative appointed by the office of the mayor; and a representative appointed by the ethics review board.

a. The committee shall be renewed annually, although representatives may be reappointed at the discretion of the appointing entities.

b. The chair shall be responsible for:

i. Providing each committee member with materials for the annual review;

ii. Setting a public meeting at which the committee will present its written review. The public meeting shall take place after the publication of the OIG's annual report mandated by subsection (9), but before May 31;

iii. Presenting the committee's written review to the office of inspector general

at least 15 calendar days prior to the date of its public meeting.

c. Committee members must be domiciled in Orleans Parish.

d. A committee member may not hold any elective or appointed position with the city nor any other government or political party office, nor be employed by any entity that is subject to review by the office of inspector general. Additionally, a member may not have held any of these positions within two years before appointment to the committee.

2. As the entity being reviewed, the office of inspector general does not participate on the committee, but will provide full cooperation, including access to all completed reports. The inspector general will appear before the committee at its annual public meeting.

(b) The office of inspector general shall be subject to an independent, external peer review by the Association of Inspectors General every three years. Such peer review shall be paid for by the office of inspector general. When completed, the Association of Inspectors General shall submit its recommendations and findings of such peer review to the inspector general. The office of inspector general shall comply with the recommendations of the peer review within 90 days, provided that the recommendations and findings are accepted and approved by the ethics review board. Copies of the final report resulting from this peer review shall be furnished to the ethics review board, the clerk of the council, the city attorney, and the office of the mayor. The final report shall also be made available to the public.

(17) *Annual work plan.* The inspector general shall present to the ethics review board an annual work plan for the ensuing calendar year. The plan shall be submitted no later than September 1 of each year and shall include:

(a) Risk assessment criteria used in establishing the work plan;

(b) A schedule of projects and anticipated completion dates; and

(c) Quality assurance procedures planned for implementation.

(18) *Subpoena power.*

(a) For purposes of an investigation, audit, inspection, or performance review, the office of the inspector general may administer oaths and affirmations, subpoena witnesses, compel their attendance and testimony under oath, take evidence, and require the production of any records which the Inspector General deems relevant or material to an investigation, audit, inspection or performance review.

(b) In the performance of its duties, the office of the inspector general may compel the attendance of witnesses to be deposed under oath or the production of public and private records by issuing a subpoena. The subpoena may be served by certified mail, return receipt requested, at the addressee's residence or business address, or by representatives appointed by the Office of Inspector General.

1. The procedure for obtaining approval of such a subpoena shall be in accordance with the requirements of state law.

2. Any subpoena for production of private records shall be in compliance with all applicable constitutionally established rights and processes.

3. Any request for financial records in the possession or under the control of a bank pursuant to this chapter

is subject to and shall comply with the requirements and procedures of R.S. 6:333.

(c) Any person or entity that is the subject of a subpoena issued by the office of inspector general may challenge the sufficiency or scope, or both, of the subpoena by filing a protective order or motion to quash in the Orleans Parish Civil District Court.

(d) If a person or entity refuses to comply with a subpoena issued by the office of inspector general, the Orleans Parish Civil District Court may issue an order requiring the person or entity to appear before the court to show cause why an order should not be issued ordering such person to comply with the subpoena.

1. Any costs and attorney's fees incurred [by] the office of inspector general may be taxed against the person who failed or refused to comply with the terms of the subpoena.

(19) *Reserved.*

(20) *Cooperation.*

(a) It shall be the duty of every city officer, employee, department, agency, board, commission, public benefit corporation, contractor, subcontractor, licensee of the city, and applicant for certification of eligibility for a city contract or program, to cooperate with the office of inspector general in any investigation, audit, inspection, performance review, or hearing pursuant to this chapter.

(b) It shall be the duty of every city officer, employee, department, agency, board, commission, public benefit corporation, contractor, subcontractor, and licensee of the city to report to the office of inspector general any instance of fraud or abuse.

(c) With the exception of those contracts specified in subsection (1) of this paragraph, every city contract and every contract amendment where the original contract does not include this statement, and every bid, proposal, application or solicitation for a city contract, and every application for certification of eligibility for a city contract or program shall contain the following statement:

"It is agreed that the contractor or applicant will abide by all provisions of City Code § 2-1120, including, but not limited to, City Code § 2-1120(12), which requires the contractor to provide the Office of Inspector General with documents and information as requested. Failure to comply with such requests shall constitute a material breach of the contract. In signing this contract, the contractor agrees that it is subject to the jurisdiction of the Orleans Parish Civil District Court for purposes of challenging a subpoena."

1. The provisions of subparagraph (c) shall not apply to contracts with other government agencies or to contracts where the city is the recipient of funds.

(d) Any employee, appointed officer or elected official of the city who violates any provision of this chapter shall be subject to discharge or such other discipline as may be specified in an applicable collective bargaining agreement, in addition to any other penalty provided in the City Charter or ordinances.

(21) *Allegations by public employees.* The office of inspector general may receive and investigate allegations or information from any public employee concerning the possible existence of any activity constituting fraud, waste, abuse, and illegal acts. The office of inspector general shall not, after receipt of a complaint or information from an employee, disclose the identity of the employee without the written consent of said employee, unless the inspector general determines such disclosure is necessary and unavoidable during the course of the investigation. In such event the employee shall be notified in writing at least seven days prior to such disclosure. Any employee who has authority to take, direct others to take, recommend, or approve any personnel

action shall not, with respect to such authority, take or threaten to take any action against any employee as a reprisal for making a complaint or disclosing information to the office of inspector general, unless the complaint was made or information disclosed with the knowledge that it was false or with willful disregard for its truth or falsity.

(M.C.S., Ord. No. 22444, § 1, 11-2-06; M.C.S., Ord. No. 22553, § 1, 3-1-07; M.C.S., Ord. No. 22888, § 1, 11-1-07; M.C.S., Ord. No. 24395, § 1, 4-28-11; M.C.S., Ord. No. 24950, § 1, 7-12-12; M.C.S., Ord. No. 27309, § 1, 3-9-17; M.C.S., Ord. No. 27745, § 1, 4-19-18; M.C.S., Ord. No. 28046, § 1, 3-28-19; M.C.S., Ord. No. 28825, § 1, 11-4-21)

ARTICLE XIV. OFFICE OF THE INDEPENDENT POLICE MONITOR

Sec. 2-1121. Office of independent police monitor.

(1) *Creation of the independent police monitor.* Pursuant to section 9-403 of the Home Rule Charter of the city, this article establishes the city office of independent police monitor. The independent police monitor shall be assisted by a deputy independent police monitor, an executive director of community relations, and other necessary staff in accordance with applicable civil service law.

(a) *Appointment procedures.*

1. In the case of a vacancy in the position of independent police monitor, the ethics review board shall be responsible for appointing a new independent police monitor.
    a. The appointing authority shall convene within 60 days of a vacancy in the position of independent police monitor to initiate the selection process for a new independent police monitor.
    b. The appointing authority shall conduct a nationwide search to fill the position of independent police monitor.
    c. Appointment of an independent police monitor shall be by an affirmative vote of a majority of all the authorized membership of the appointing authority.
    d. The chairperson of the appointing authority may appoint an interim independent police monitor to serve until time as a successor independent police monitor is appointed.
        i. The eligible candidates for interim independent police monitor are: an existing deputy independent police monitor or other office of independent police monitor management personnel.
        ii. The appointing authority may, by a majority vote of all of its members, overrule the chairperson's appointment and appoint an alternative eligible candidate as interim independent police monitor.
2. The ethics review board shall approve the independent police monitor's annual salary each year at a meeting of its board.

(b) *Term of office.*

1. The independent police monitor shall be appointed for a term of four years. The initial term shall begin January 1, 2018. Thereafter, each term shall begin when the independent police monitor begins employment with the city.
2. The independent police monitor may be reappointed to subsequent four year terms at the discretion of the ethics review board.

(2) *Qualifications.* The independent police monitor shall be an attorney with substantial experience in criminal, civil rights, and/or labor law, or corporate and/or governmental investigations; or an individual with at least five years' experience in law enforcement oversight, preferably with a graduate degree. Knowledge of law enforcement, particularly of internal investigations of wrongdoing and uses of force, is essential. The monitor shall possess impeccable integrity, sound judgment, and an ability to relate effectively with all those who have a stake in law enforcement including, but not limited to, residents of and visitors to New Orleans, the police department, other law enforcement agencies, and relevant parts of city government. The monitor shall possess an understanding of the city's ethnic diversity, cultural traditions, and socioeconomic situation.

(3) *Duties and responsibilities.* The independent police monitor shall monitor the New Orleans Police Department, particularly in the areas of: civilian and internally-generated complaints; internal investigations; discipline; use of force; critical incidents; and in-custody deaths. The independent police monitor shall review and analyze the numbers and types of complaints; assess the quality and timeliness of New Orleans Police Department investigations; review the adequacy of data collection and analysis; review the public integrity bureau's policies, procedures, and resource needs; conduct risk management reviews; review the operations and effectiveness of New Orleans Police Department "early warning system"; review specific issues regarding supervision, training, and discipline; and conduct relevant pattern analysis.

(4) *Complaints.* The independent police monitor shall receive complaints alleging misconduct by New Orleans Police Department personnel that he will refer to the New Orleans Police Department Office of Internal Investigations for investigation. The independent police monitor shall develop relationships with community and civic groups that may receive civilian and anonymous complaints against New Orleans Police Department personnel as a supplement to existing complaint intake mechanisms.

(5) *Investigatory power.* The New Orleans Police Department will advise the independent police monitor within seven days of receipt by the New Orleans Police Department of any complaint of misconduct, classified as a formal disciplinary investigation, disciplinary citation, informal disciplinary investigation, or information documentation. The independent police monitor shall have the power to review the classification of all internal investigations and, in circumstances where the independent police monitor believes an investigation was misclassified, to recommend to the New Orleans Police Department that it be reclassified.

(6) *Public reporting requirements.* The independent police monitor shall have the power to recommend that an internal investigation be reopened if he determines that the investigation was not thorough or fair. The reopening-of-case-recommendation provision only applies to the very limited instance where the statutory time limit permits. If the New Orleans Police Department declines to accept the recommendations of the independent police monitor relative to the classification of an investigation, a line of questioning, reopening an investigation not deemed to have been appropriately completed, or any other recommendation, the independent police monitor shall issue a public report relative to the refusal. All completed investigations reviewed by the independent police monitor shall be accompanied by a report in writing to the New Orleans Police Department stating whether the investigation was considered fair, thorough, timely or insufficient.

(7) *Police commendations.* The independent police monitor shall also compile data regarding commendations and shall identify officers, units, and precincts that have been commended by the public for doing exceptional work. Such information shall be presented in public reports. The independent police monitor will note patterns in commendations and urge the New Orleans Police Department to share commendation information widely within the department and identify practices and initiatives that should be emulated broadly throughout the department. No provision of this section shall violate the Police Officers' Bill of Rights.

(8) *Civilian complainants.* Civilian complainants who have tried unsuccessfully to obtain a meaningful status report on a complaint they initiated, may, upon request, receive such a status report from the independent police monitor. Civilian complainants who are dissatisfied with the outcome of an investigation they initiated may request a review by the independent police monitor of the completed New Orleans Police Department investigation. When he deems it appropriate, the independent police monitor may recommend that such an investigation be reopened and report to the complainant whether he has recommended any further investigation. The reopening-of-case-recommendation provision only applies to the very limited instance where the statutory time limit permits.

(9) *Civil claims and lawsuits.* The independent police monitor shall review patterns relating to civil claims and lawsuits alleging New Orleans Police Department misconduct, payout amounts over time, units disproportionately represented as subjects of claims and lawsuits, related training, and other issues. The independent police monitor shall review the investigation of the underlying incidents described in such claims and lawsuits, whether those investigations predated the filing of a claim or lawsuit or the investigations were initiated following such filings.

(10) *Recommendations to police superintendent.* The independent police monitor shall evaluate complaint trends and other information and investigation practices. The independent police monitor shall make recommendations to the superintendent to improve upon policies and practices based on national best practices.

(11) *Training review.* The independent police monitor shall periodically review training sessions and schedules to identify best practices and any need for improvements to training curriculum or frequency.

(12) *Public accountability.* The independent police monitor shall distribute information about its office, duties and functions. The independent police monitor shall issue complaint and commendation forms in languages and formats accessible to residents. The independent police monitor shall be required to hold at least one public outreach meeting in each council district of the city at least once every four months. The independent police monitor shall be required to meet with each police association a minimum of three times each year.

(13) *Civil service commission to establish rules and regulations.* The New Orleans Police Department and the civil service commission shall work cooperatively to establish rules and regulations that require both to cooperate with the independent police monitor as he actively monitors disciplinary and nondisciplinary proceedings. Those policies shall provide for, among other things: timely notification prior to disciplinary proceedings; complete access to the proceedings of departmental boards and civil service hearings involving the disciplining of officers; and complete access to all materials to which those boards and the civil service commission have access. The policies shall also provide for the ability of the independent police monitor to attend disciplinary and nondisciplinary proceedings, to review disciplinary and nondisciplinary documents, to make determinations as to whether departmental rules or policies have been violated, to make recommendations regarding appropriate discipline, and to review the appropriateness of disciplinary sanctions. The independent police monitor in conjunction with the New Orleans Police Department internal investigations office shall make recommendations to the civil service commission relative to improving police disciplinary procedures.

(14) *Review of data collection and analysis.* The independent police monitor shall review New Orleans Police Department data collection and analysis to enable it to track trends in relation to types and sources of civilian and internally-generated complaints, processing and investigation, and determinations stemming from complaints, discipline imposed by type of complaint, use of the early warning system to intervene with an officer in need of additional training, supervision, or other issues of concern that arise during a review by the independent police monitor. The New Orleans Police Department shall provide the appropriate database and personnel to facilitate this section.

(15) *Mediation of civilian complaints.* The independent police monitor shall establish and administer a mediation program for civilian complaints, guided by best practices identified in other jurisdictions with such mediation programs. Consent of the civilian complainant, the police officer involved, and the New Orleans Police Department shall be required before a case can be scheduled for mediation by a trained neutral mediator from outside the New Orleans Police Department.

(16) *Public reporting requirement.* The independent police monitor shall be required to issue at least one public report each year, by May 30, to the ethics review board and New Orleans City Council detailing its monitoring and review

activities and the appropriate statistical information from the internal investigations office, and other divisions of the New Orleans Police Department. The independent police monitor shall be required to report upon problems it has identified, recommendations made and recommendations adopted by the New Orleans Police Department. The report shall also identify commendable performance by the New Orleans Police Department and improvements made by the department to enhance the department's professionalism, accountability, and transparency. The criminal justice committee of the New Orleans City Council shall conduct a hearing on each annual report within 30 days of submission. Additional reports relating to policy and training recommendations, matters of significant public interest, or other concerns may be issued throughout the year, such reports shall be submitted to the ethics review board and criminal justice committee of the New Orleans City Council and simultaneously released to the public. The committee will have discretion as to whether to conduct a public hearing relating to such reports.

(17) *Penalties for violating this section.* It shall be the duty of all city employees, classified or unclassified to cooperate with the independent police monitor in his work pursuant to this section. Any city employee who violates any provision of this chapter shall be subject to investigation, and if warranted, to discharge or such other discipline consistent with civil service rules and procedures in addition to any other penalty provided in the City Charter or ordinances.

(18) *Negotiation of protocols.* The independent police monitor and the New Orleans Police Department shall be required to negotiate protocols within 90 days of the appointment of the independent police monitor.

(19) *Retention of powers by inspector general.* Nothing in this section shall be construed to limit the existing powers of the office of inspector general granted by statute, ordinance, rule or regulation. The office of inspector general shall retain all the powers and duties granted by federal and state statute, court ruling, ordinance, executive order, rule and regulation, contract or other means.

(20) *Removal of independent police monitor from office.* Following a public hearing by the ethics review board, the independent police monitor shall be removed from office for cause by an affirmative vote of two-thirds of the entire authorized membership of the ethics review board, which must then publicly report the reasons for removal to the city council.

(a) Causes for removal may include abuse of power or authority; conviction of a state or federal felony [charge]; entry of a guilty or nolo contendere plea to a state or federal felony charge; discrimination; ethical misconduct in office; unprofessional conduct; or other acts tarnishing the integrity of the office of independent police monitor.

(21) *Records disclosure.* All records of the office of the independent police shall be exempt from public disclosure and shall be considered confidential, unless the independent police monitor is legally required to make such records public. Unauthorized disclosure of information by the independent police monitor or any employee of the office of the independent police is subject to review and disciplinary action by the appointing authority. The office of the independent police monitor is subject to all state laws concerning public records.

(22) *External review of the office of the independent police monitor.*

(a) Completed reports, inspections, performance reviews, public reports of investigation, and other records, shall be subject to an annual quality assurance review by a third-party advisory committee, known as the quality assurance review advisory committee for the office of the independent police monitor.

1. The quality assurance review advisory committee for the office of the independent police monitor shall include a representative appointed by the city council, who shall serve as chair of the committee; a representative appointed by the office of the mayor; and a representative appointed by the ethics review board.

a. The committee shall be renewed annually, although representatives may be reappointed at the discretion of the appointing entities.

b. The chair shall be responsible for:

i. Providing each committee member with materials for the annual review;

ii. Setting a public meeting at which the committee will present its written review. The public meeting shall take place after the publication of the office of the independent police monitor's annual report mandated by subsection (16), but before July 31;

iii. Presenting the committee's written review to the office of the independent police monitor at least 15 calendar days prior to the date of its public meeting.

c. Committee members must be domiciled in Orleans Parish.

d. A committee member may not hold any elective or appointed position with the city nor any other government or political party office, nor be employed by any entity that is subject to review by the office of the independent police monitor. Additionally, a member may not have held any of these positions within two years before appointment to the committee.

2. As the entity being reviewed, the office of the independent police monitor does not participate on the committee, but will provide full cooperation, including access to all completed reports. The police monitor will appear before the committee at its annual public meeting.

(b) The office of independent police monitor shall be subject to an independent, external peer review every three years. Such peer review shall be paid for by the office of independent police monitor. When completed, the recommendations and findings of such peer review shall be submitted to the ethics review board and independent police monitor. The office of independent police monitor shall comply with the recommendations of the peer review within 90 days, provided that the recommendations and findings are accepted and approved by the ethics review board. Copies of the final report resulting from this peer review shall be furnished to the ethics review board, the clerk of the council, the city attorney, and the office of the mayor. The final report shall also be made available to the public.

(23) *Resources.*

(a) Pursuant to section 9-404 of the Home Rule Charter of the city, the office of independent police monitor shall be funded by an annual appropriation by the city council as part of the city's operating budget.

(b) The office of independent police monitor shall prepare and transmit an annual operating budget to the chief administrative officer, identifying in the budget all proposed expenditures for the following fiscal year.

(24) *Right to special counsel.* Pursuant to section 9-403(3) of the Home Rule Charter of the city, the office of the independent police monitor may retain special counsel to provide legal advice and representation on its behalf, notwithstanding the provisions of section 4-403 of the Charter. (M.C.S., Ord. No. 23146, § 1, 7-18-08; M.C.S., Ord. No. 23886, § 1, 2-25-10; M.C.S., Ord. No. 24950, § 2, 7-12-12; M.C.S., Ord. No. 27308, § 1, 3-9-17; M.C.S., Ord. No. 27727, § 1, 4-5-18; M.C.S., Ord. No. 27746, § 1, 4-19-18)

Secs. 2-1122—2-1199. Reserved.

ARTICLE XV. EMERGENCY POWERS

Sec. 2-1200. Emergency declarations; duty to inform council.

(a) When the mayor issues a declaration of emergency, or any continuation, modification, or termination thereof, the city attorney shall promptly notify the council in writing and provide a copy of such declaration, continuation, modification, or termination.

(b) A declaration of emergency shall expire 90 days after issuance unless it is continued. A declaration of emergency cannot be continued or modified unless the mayor, or a designee of the mayor, appears before the council's governmental affairs committee before the expiration of the declaration with the following:

(1) Initial reason(s) for the issuance of the declaration of emergency;

(2) Reason(s) why a continuance or modification is in the best interest of the city;

(3) Details on any emergency-related procurement; and

(4) Responses to questions regarding any matter germane to the declaration.

(M.C.S., Ord. No. 29411, § 1, 4-20-23)

Secs. 2-1201—2-1250. Reserved.

Chapters 3–5

RESERVED

Chapter 6

ADMINISTRATIVE PROCEDURES*

Article I. In General

Secs. 6-1—6-30. Reserved.

Article II. Public Health, Housing, Environmental, Historic District, Fire, Vegetation, Zoning, Nuisance and Building Code

Sec. 6-31. Definitions.
Sec. 6-32. Authorization.
Sec. 6-33. Appointment of hearing officer.
Sec. 6-34. Authority of hearing officer.
Sec. 6-35. Powers of a hearing officer.
Sec. 6-36. Procedure for hearing.
Sec. 6-37. Penalties.
Sec. 6-38. Costs.
Sec. 6-39. Liens.
Sec. 6-40. Enforcement of liens—Additional requirements.
Sec. 6-41. Appeal.
Sec. 6-42. Remedies not exclusive.
Sec. 6-43. Recordkeeping.
Sec. 6-44. Transfer of ownership.
Secs. 6-45, 6-46. Reserved.

*__Cross reference—__Administration, ch. 2.

__State law reference—__Administrative adjudication of health, housing and environmental violations, R.S. 13:2575.

ARTICLE I. IN GENERAL

Secs. 6-1—6-30. Reserved.

ARTICLE II. PUBLIC HEALTH, HOUSING, ENVIRONMENTAL, HISTORIC DISTRICT, FIRE, VEGETATION, ZONING, NUISANCE AND BUILDING CODE*

Sec. 6-31. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them, except where the context clearly indicates a different meaning.

Code violation is a civil violation of any provision of the Code of New Orleans related to public health, housing, environmental, historic district, nuisance or vegetation ordinances, the New Orleans' Comprehensive Zoning Ordinance, as amended, the Building Code of the City of New Orleans, as amended, or the Fire Code of the City of New Orleans, as amended.

Order, judgment or *notice of judgment* means an administrative act of the hearing officer.

Unoccupied means having no legal occupant(s), vacant.

Violator means person(s), natural or juridical, who has been found liable for a code violation and/or ordered to abate or correct a violation in an order issued under this article.
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 26513, § 1, 7-23-15)

Sec. 6-32. Authorization.

Any agency of the city having a responsibility for the enforcement of Code violation may enforce violations of such ordinances by the owners of immovable property or their agents, tenants, or representatives, or by any person permitted as a short-term rental owner or operator, using the administrative adjudication procedures established in this article.
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 29397, § 1, 4-6-23)

Sec. 6-33. Appointment of hearing officer.

(a) Administrative adjudication proceedings under this article shall be conducted before hearing officers who have been licensed to practice law in Louisiana for at least two years.

(b) Hearing officers shall be appointed by the mayor, and shall serve at the pleasure of the mayor.

(c) Hearing officers shall be sworn before the city attorney to uphold the Constitution, the laws and constitution of the State of Louisiana, and the Charter and ordinances of the City of New Orleans, and to abide by the provisions of the Louisiana Code of Governmental Ethics and the City of New Orleans' Code of Ethics.
(M.C.S., Ord. No. 25455, § 1, 8-22-13)

Sec. 6-34. Authority of hearing officer.

Hearing officers who have been appointed and sworn in accordance with section 6-33 shall have the authority to hear and decide any and all Code violations.
(M.C.S., Ord. No. 25455, § 1, 8-22-13)

Sec. 6-35. Powers of a hearing officer.

The hearing officer shall have the power to:

(a) Administer oaths and affirmations.

(b) Issue orders compelling the attendance of witnesses, respondents, alleged violators, and violators and the production of documents.

(c) Determine whether or not an alleged violator is liable for code violations.

(d) Levy fees, costs, and monetary penalties.

(e) Order violators to correct violations within a stipulated time.

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*__Editor's note—__M.C.S., Ord. No. 25455, § 1, adopted August 22, 2013, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 6-31—6-46, pertained to public health, housing and environmental, and derived from Code 1956, §§ 2B-1—2B-13. See the Code Comparative Table for complete derivation.

__Cross references—__Courts, ch. 50; enforcement of health violations, § 50-5.

__State law reference—__Administrative Procedure Act, R.S. 49:950 et seq.

(f) Take any and/or all necessary and lawful measures to effect corrections of the violation if the violator fails to do so within the time allocated by the hearing officer.

(g) Record orders, judgments, notices of judgments, or liens in the mortgage office.

(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 26513, § 1, 7-23-15)

Sec. 6-36. Procedure for hearing.

(a) Whenever a city agency having enforcement responsibility determines that a Code violation exists, including violations involving unpermitted short-term rentals, a notice of violation shall be provided to the owner, or in case of a property whose primary purpose is commercial, the owner, agent, occupant, or lessee. A notice of violation involving a permitted short-term rental shall be sent to both the owner and operator of the short-term rental.

(b) A notice of violation shall:

(1) Be in writing;

(2) Provide the municipal address of the cited property, if applicable;

(3) Provide the date of the inspection, if applicable;

(4) Identify the Code violations;

(5) Provide the mailing address and telephone number of the enforcement agency;

(6) Provide the time, date and location of the administrative hearing;

(7) Provide notice that the failure to appear at the hearing shall be considered an admission of liability for the alleged violations;

(8) Provide the risk of fees, penalties, costs, and liens that may be imposed for continued violations; and

(9) Provide the risk of remedial measures that may be ordered by a hearing officer to correct or abate Code violation.

(c) Any person charged with a Code violation must be notified of an administrative hearing pursuant to this article at least 15 days before the hearing. Notice shall be personally served or sent to the alleged violator by regular and certified or registered U.S. Mail at the address listed in the assessor's office of the parish or, in the case of a permitted short-term rental, at the current address on file with the department of safety and permits for the owner or operator, as appropriate. If the violation involves a property whose purpose is primarily commercial and the alleged violator includes the occupant(s) or lessee(s), notice shall be personally served or sent by regular and certified or registered U.S. Mail to the address listed in the records of the bureau of revenue and to its registered agent(s). The date of the postmark shall be deemed to be the date of delivery. Any notification so sent and returned by the U.S. Post Office shall be considered as having fulfilled the notification requirement. Proof of notification and attempts at service shall be entered in the record for each case before the hearing.

(d) In addition to the service provided in subsection (c), a copy of the notice of violation(s) shall be affixed in a prominent location on the property upon which violation(s) are alleged or, if safe access to the property is not reasonably practicable, on some prominent fixture on the adjacent public right-of-way as near as possible to the property at least five days in advance of the date of the hearing. It shall be unlawful for any person other than an agent of the city to remove a notice posted on the public right-of-way prior to the commencement of the hearing. This section shall not apply to violations involving permitted short-term rentals.

(e) Any person charged with Code violation(s) may present any relevant evidence and testimony at such hearing and may be represented. An alleged violator's physical presence shall not be required at the hearing if documentary evidence, duly verified by such person, is submitted to the hearing officer via the agency of the city having a responsibility for the enforcement the Code violation(s), prior to the date of the hearing. Nothing contained herein shall be construed to limit the authority or the ability of a hearing officer to determine an alleged violator's liability based solely upon submitted documentary evidence.

(f) Any order compelling the attendance of witnesses or the production of documents may be enforced by the municipal court or by any other court of competent jurisdiction.

(g) Any administrative adjudication hearing held under the provisions of this article shall be conducted in accordance with the rules of evidence of the Administrative Procedure Act, R.S. 49:950 et seq. Testimony of any person shall be taken under oath and shall be recorded.

(h) At the initial hearing, if the hearing officer sets daily fines, the date of a subsequent hearing to determine if the violation(s) have been remediated shall be set. The date of such subsequent hearing shall be within 60 days of the initial hearing date. Such setting of a subsequent hearing date during the initial hearing shall constitute proper notice. If at the subsequent hearing it is determined that the violation(s) have not been remediated, daily fines shall begin to accrue from the date of initial hearing. Daily fines shall continue to accrue until the hearing officer determines that violation(s) have been remediated.

The hearing officer shall issue a final order, judgment, or notice of judgment within 30 days of the initial hearing, excluding legal holidays. A copy of the final order, judgment, or notice of judgment may be personally served and shall be sent to the violator by regular and certified or registered U.S. Mail within 14 days of issuance. The order, judgment, or notice of judgment shall:

(1) Be signed by the hearing officer;

(2) State whether or not the alleged violator is liable for each violation and any specific determinations thereto;

(3) Provide the amount of fees, costs, and penalties assessed for each violation;

(4) Provide the defects to be corrected and the extent by which each violation shall be corrected, repaired, and/or abated;

(5) Provide the reasonable period of time by which each violation shall be corrected, repaired and/or abated;

(6) Notify the violator(s)' of their right to appeal; and

(7) Notify the violator that the city may act to abate violation(s) if the violator fails to act in accordance with the order, judgment, or notice of judgment, where applicable.

(i) The city may enforce any order assessing fees, costs, and penalties, and/or stipulating a required correction, repair, or abatement measure.
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 26513, § 1, 7-23-15; M.C.S., Ord. No. 29189, § 1, 10-6-22; M.C.S., Ord. No. 29397, § 1, 4-6-23)

Sec. 6-37. Penalties.

(a) The penalty for each violation shall not exceed the maximum amount authorized by La. R.S. 33:1375 or the maximum amount allowable under applicable state law for the underlying violation, whichever is greater. Nothing herein shall be construed to authorize a penalty in excess of any jurisdictional limit imposed by state law.

(b) Each day that violation(s) continue after due notice has been served shall be deemed a separate offense. Regardless of the number of structures on a parcel or lot, each violation on each unit of each structure shall be counted as a separate violation.

(c) A schedule of monetary penalties may be established by ordinance providing penalty amounts, consistent with subpart (a), for specific code violation(s).
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 26513, § 1, 7-23-15; M.C.S., Ord. No. 29189, § 1, 10-6-22; M.C.S., Ord. No. 29572, § 1, 7-27-23)

Editor's note—M.C.S., Ord. No. 29572, § 2, states: That the provisions of this ordinance shall apply to violations occurring on or after August 1, 2023.

Sec. 6-38. Costs.

(a) Costs and expenses that may be recovered and enforced against a violator under this article include, but are not limited to:

(1) The city's direct cost for abatement;

(2) Costs of salary and all applicable overhead of city staff and contract personnel

involved in the investigation, enforcement, and/or remediation or abatement of a violation;

(3) City costs for equipment use or rental;

(4) Attorney's fees;

(5) Hearing and/or court costs including but not limited to hearing officer and witness fees;

(6) Costs of engineering and other technical services and studies as may be required;

(7) Costs of monitoring programs necessary for correcting, monitoring, abating or mitigating violations;

(8) Any other fee, cost, or expense reasonably and rationally related to the city's enforcement action(s) to bring violation(s) into compliance or to abate and/or correct a violation of local, state or federal law.

(b) At any point in the enforcement process after the time for voluntary compliance has expired, or following the conclusion of the city's enforcement/abatement action(s), the city agency having enforcement responsibility shall notify the violator of the proposed full cost recovery against the real property that was the subject of enforcement/abatement action. The notice issued must provide a cost schedule and contain a date not less than 30 days from the date of mailing providing a hearing with an administrative hearing officer to appeal the accuracy and reasonableness of the costs.

(c) If payment is not received within 30 days of the mailing of the notice of the full cost recovery, or following any appeal hearing upholding all or part of the costs, whichever occurs later, the city may lien the property that was subject to the enforcement/abatement action for all applicable costs by recording the cost recovery notice or administrative hearing judgment affirming appropriate costs in the Records Division of the Office of the Clerk of Civil District Court for the Parish of Orleans.
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 27799, § 1, 6-21-18)

Sec. 6-39. Liens.

(a) The city shall have a lien and privilege against the immovable property in, on, or upon which violation(s) occurred. The lien and privilege shall secure all fines, fees, costs, and penalties that are assessed by the city and described in the order, judgment, or notice of judgment and the notice or statement of costs. The recordation of the order, judgment, or notice of judgment and the notice or statement of costs in the mortgage office of the parish shall constitute a lien and privilege against the land upon which violation(s) exists. Any lien and privilege recorded against an immoveable property under this article shall be included in the next annual ad valorem tax bill.

(b) The city, upon recordation of the order, judgment, notice of judgment, or lien, may:

1. Apply to the clerk of district court for issuance of a writ in accordance with Code of Civil Procedure Article 2253, under the authority of R.S. 13:2575 and 13:2576, upon describing with particularity the immovable property and the manner in which the writ is to be enforced; or

2. Institute a suit against the owner of record in any court of competent jurisdiction to enforce the order, judgment, notice of judgment, or lien.

(c) In order for the lien and privilege to arise, the order, judgment, notice of judgment or lien shall be final and not subject to appeal when recorded in the mortgage office."

(d) Any monies collected pursuant to this chapter shall first satisfy all outstanding municipal liens recorded against an immovable property and only when all outstanding municipal liens are satisfied in full shall monies be applied towards an immovable property's ad valorem taxes.

(e) The provisions of subsection (d) shall not apply to monies received as a result of the enforcement of a lien and privilege encumbering an occupied residential property with a valid homestead exemption, except in circumstances where the property is currently permitted for

short-term rental use or where the lien and privilege arises from a violation of Chapter 26, Title XI of the Code of the City of New Orleans.
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 29002, § 1, 4-21-22)

Sec. 6-40. Enforcement of liens—Additional requirements.

(a) Upon the city instituting legal proceedings to obtain a writ to cause the seizure and sale of a property with outstanding liens, pursuant to section 6-39 (b)(1), the property shall also be unoccupied.

(b) Unoccupied properties that maintain a valid homestead per article VII, sections 18(G)(5) and 20(A)(10) of the Constitution of Louisiana, shall be exempt from this section upon presentation of a signed affidavit from the assessor or his designee, attesting that the owner is approved for an extension of the special assessment level. This affidavit shall be renewed annually. The owner shall also submit, along with the aforementioned affidavit, a copy of their annual affidavit of intent to return and reoccupy the homestead that is filed with the assessor as required by article VII, section 20(A)(10) of the Louisiana Constitution. This provision shall expire on December 31, 2015.

(c) Any person with a legally protected interest in a property must be provided notice that is reasonably calculated to apprise them of the seizure and upcoming sale of the property.
(M.C.S., Ord. No. 25455, § 1, 8-22-13)

Sec. 6-41. Appeal.

Any person determined by the hearing officer to be liable for a code violation may appeal the determination to the civil district court for the parish. Such appeal shall be instituted by filing, within 30 calendar days of the mailing of the hearing officer's order, a petition with the clerk of the civil district court along with payment of such costs as may be required by the clerk of court. After filing a petition for appeal, the clerk of court shall schedule a hearing and notify all parties of the date, time, and place of such hearing. Service of notice of appeal under this subsection shall not stay the enforcement and collection of the judgment unless the person who files the appeal furnishes security prior to filing notice of appeal with the Department of Finance in the amount fixed by the hearing officer sufficient to assure satisfaction of the finding of the hearing officer relative to the fine(s), fee(s), monetary penalty/penalties, cost(s) of the hearing, and cost(s), if any, of correcting the violation(s).
(M.C.S., Ord. No. 25455, § 1, 8-22-13; M.C.S., Ord. No. 26513, § 1, 7-23-15)

Sec. 6-42. Remedies not exclusive.

The regulations, procedures, and remedies established by this chapter are nonexclusive and may be pursued independently of each other and in addition to other remedies provided by law.
(M.C.S., Ord. No. 25455, § 1, 8-22-13)

Sec. 6-43. Recordkeeping.

(a) At its commencement by notice of violation, every adjudication proceeding shall be assigned a docket number and a style in the form of "City of New Orleans versus" followed by the name of the alleged violator. The records pertaining to each proceeding shall be maintained as a separate file in a manner similar to the fashion in which the clerks of court maintain the records of civil cases.

(b) Each agency charged with the enforcement of an ordinance within the scope of this article shall, with the advice of the department of law, maintain a log or index of all adjudication proceedings which shall set forth information, including but not limited to the following:

(1) The style and docket number of the case and the date it was commenced;

(2) Alleged Code violation(s);

(3) Date of the alleged violation(s);

(4) Address or other description of the property upon which the alleged violation(s) exist or have occurred;

(5) Date(s) of any hearings, trials or continuances and the dates of their commencement and/or termination and, if the case is terminated, of its final disposition;

(6) Statement(s) as to the dates of any hearing and of any final order in the case and as to whether and when any lien was filed;

(7) Statement(s) as to the date of filing and disposition of any appeal.

(M.C.S., Ord. No. 25455, § 1, 8-22-13)

Sec. 6-44. Transfer of ownership.

It is a violation for any property owner(s) to transfer a property that receives a notice of violation without notifying the enforcement agency of the city that sent said notice of violation. Anyone found in violation of this section shall be fined $500.00.

(M.C.S., Ord. No. 25455, § 1, 8-22-13)

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Chapters 7–9

RESERVED

Chapter 10

ALCOHOLIC BEVERAGES*

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*__Cross references—__Businesses, ch. 30; open containers of alcoholic beverages in motor vehicles prohibited, § 54-407; law enforcement, ch. 90; taxation, ch. 150.

__State law reference—__Alcoholic beverages, R.S. 26:1 et seq.

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ARTICLE I. IN GENERAL

Sec. 10-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverage means any fluid or solid capable of being converted into a fluid, suitable for human consumption and having an alcoholic content of more than one-half of one percent of alcohol by volume.

Applicant means a natural or juridical person that submits an application for consideration of any permitting available and/or required by this chapter.

Beverages of high alcoholic content means alcoholic beverages containing more than six percent alcohol by volume.

Beverages of low alcoholic content means alcoholic beverages containing not more than six percent alcohol by volume.

Bottler of wine means any wine wholesaler who imports wine into the city in bulk and puts it in closed containers for distribution to other wholesale dealers or retail dealers in the city.

Brewery means a facility licensed as a "manufacturer or brewer" as defined in Title 26, Section 241, of the Louisiana Revised Statutes. The facilities may include on-site tasting facilities as an accessory use with retail sales of only those alcoholic beverages produced at the facility for consumption on or off the premises. On-site tasting facilities shall be subject to the use and parking standards of a bar and any limitations provided for in state and/or local law.

Caterer means any businesses that does not operate as a restaurant or bar, but who operates a fully equipped kitchen where food is prepared for the purpose of furnishing food and alcoholic beverage service for private functions, occasions, or events. At least 70 percent of their gross annual revenue for the business must be derived from the sale of food or food-related product, and at least 40 percent of the gross revenue per event catered must be derived from the sale of food or food-related product. The aforementioned food and alcohol sales requirements do not apply to "attached caterer" permit holders.

Cordial liquors and specialties means liquor obtained by the process of mixing or redistilling with or over fruit, flowers, plants or juices therefrom and to which sugar or dextrose, or both, have been added in an amount not less than 2½ percent by weight of the finished product.

Dealer means any person who, as a business, manufactures, blends, rectifies, distills, processes, imports, stores, uses, handles, holds, sells, offers for sale, solicits orders for the sale of, distributes, delivers, serves or transports any alcoholic beverage in the city or engages therein in any business transaction relating to any such beverage.

Director means the director of the department of finance or the department of safety and permits, as determined by the authorized duties in the relevant section.

Distillery means a facility licensed as a "manufacturer" as defined in Title 26, Section 2, of the Louisiana Revised Statutes. The facilities may include on-site tasting facilities as an accessory use with retail sales of only those alcoholic beverages produced at that facility for consumption on or off the premises. On-site tasting facilities shall be subject to the use and parking standards of a bar and any limitations provided for in state and/or local law.

Handle means sell, use, distribute, store, consume or otherwise handle.

Liquor means all distilled or rectified alcoholic beverages.

Liter means a metric unit of capacity equal to 1,000 cubic centimeters at four degrees centigrade, and is equivalent to 33.814 United States fluid ounces. For the purposes of this section, a liter is subdivided into 1,000 equal milliliters.

Malt beverage means a beverage obtained by alcoholic fermentation of an infusion or concoction of barley or other grain, malt and hops in water and shall include, among other things, beer, ale, stout, lager beer, porter and the like, containing more than one-half of one percent of alcohol by volume.

Manager means an individual designated by the permittee to exercise responsibility over the establishment to ensure compliance with the applicable requirements in this chapter, in the absence of the permittee. The manager designation as defined herein does not establish that the individual is an "employer" or "executive employee" for purposes of compliance with 29 U.S.C. Section 203.

Manufacturer or *brewer* means any person, who directly or indirectly, personally or through any agency whatsoever, engages in the distilling, making, blending or processing whatsoever of any alcoholic beverages and sells his own product to other persons or dealers; but, should he deal in any liquors other than those that he manufactures, he shall be classified both as manufacturer and a dealer and shall be required to qualify as such and secure a permit for each such type of business.

Microbrewer means any person who, directly or indirectly, personally or through any agency, person, or establishment, engages in the making, blending, rectifying, brewing, or other processing of beer or other malt beverages for sale in an amount not to exceed 12,500 barrels per year.

Micro-brewery means a facility licensed as a "microbrewer" as defined in Title 26, Section 241, of the Louisiana Revised Statutes. The facilities may include on-site tasting facilities with retail sales of alcoholic beverages for consumption on or off the premises. On-site tasting facilities with retail sales of only those alcoholic beverages produced at that facility shall be a permitted accessory use, subject to the use and parking standards of a bar and any limitations provided for in state and/or local law. On-site tasting facilities with retail sales of alcoholic beverages purchased from a licensed wholesale dealer shall be considered to be a bar under the terms of this Ordinance and the CZO.

Micro-distillery means a facility licensed as a "microdistiller" as defined in Title 26, Section 2, of the Louisiana Revised Statutes. The facilities may include on-site tasting facilities with retail sales of alcoholic beverages for consumption on or off the premises. On-site tasting facilities with retail sales of only those alcoholic beverages produced at the facility shall be a permitted accessory use, subject to the use and parking standards of a bar and any limitations provided for in state and/or local law. On-site tasting facilities with retail sales of alcoholic beverages produced at that facility and any other alcoholic beverages purchased from a licensed wholesale dealer shall be considered to be a bar under the terms of this Ordinance and the CZO.

Outlet means any person or dealer who draws or removes any alcoholic beverages from its container for sale or consumption on or off the premises. For the purposes of this chapter, package houses are outlets.

Package house means a place where a person or dealer sells alcoholic beverages in closed containers, prepared for transportation and consumption off the premises.

Premises means the land together with all buildings, improvements, equipment and personal property located thereon which is controlled by an applicant or licensee.

Property means the land upon which a licensed premises is located plus authorized and acknowledged parking area for the licensed business.

Responsible party means the owner or designated manager exercising responsibility over the establishment.

Retail dealer means every person who offers for sale, exposes for sale, has in his possession for sale or distributes or sells alcoholic beverages in any quantity to persons other than licensed wholesale or retail dealers and shall include every person or dealer who has secured a retail permit or license for the sale of alcoholic beverages from either the federal government or the state.

Sparkling wine means champagne and any other effervescent wine charged with carbon dioxide, whether artificially or as the result of secondary fermentation of the wine within the container.

Special event means fairs, picnics and other social events sponsored by a person, corporation or organization when such functions will not continue for a period in excess of three days.

Stamp means the city alcoholic beverage tax stamp or stamps by the use of which the tax levied under this chapter is paid.

Still wine means any noneffervescent wine and shall include any fortified wine or vermouth and any artificial or imitation wine, fruit juice or compound sold as still wine.

Wholesale dealer means those persons who sell alcoholic beverages to licensed wholesale dealers or licensed retail dealers within the city or to any person for delivery beyond the borders of the city and shall include every person or dealer who has secured a wholesale permit or license for the sale of alcoholic beverages from either the federal government or the state.

Wine wholesaler means any person other than an outlet who sells only sparkling wine and still wine, in the original package or closed container, prepared for distribution and consumption off the premises.
(Code 1956, § 5-2; M.C.S., Ord. No. 18,048, § 1, 2-6-97; Ord. No. 20,356, § 1, 9-6-01; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Cross reference—Definitions generally, § 1-2.

State law reference—Definitions, R.S. 26:2, 26:241.

Sec. 10-2. Reserved.

Editor's note—M.C.S., Ord. No. 27266, § 1, adopted Jan. 26, 2017, repealed § 10-2, which pertained to application to clubs, fairs, etc.; exemption of charitable organizations and derived from Code 1956, § 5-3; M.C.S., Ord. No. 21428, § 1, adopted Feb. 19, 2004; M.C.S., Ord. No. 23276, § 1, adopted Nov. 6, 2008.

Sec. 10-3. Products not subject to chapter.

(a) This chapter shall not apply to the sale of:

(1) Patent, antiseptic and toilet preparations;

(2) Flavoring extracts, syrups and food products that are not usable for beverage purposes in their original state; or

(3) Scientific, chemical, mechanical and industrial products.

(b) This chapter shall not apply to the manufacture or sale of alcohol which is for an industrial use or purpose, which is not manufactured or sold for beverage purposes and which is so denatured as to be unfit for human use or consumption.

(c) Any person who shall knowingly sell any of the products enumerated in this section for beverage purposes or who shall sell any of them under circumstances from which he may reasonably deduce the intention of the purchaser to use them for such purposes shall be subject to the penalties provided in this chapter.
(Code 1956, § 5-4)

State law reference—Exempt products, R.S. 26:3, 26:421.

Sec. 10-4. Enforcement.

(a) This chapter shall not give the police power of the department of police to the departments of finance or safety and permits, but on the contrary, the enforcement of this chapter is hereby vested in the department of police and it shall be the duty and authority of the department of police to enforce the provisions of this chapter.

(b) The departments of finance, safety and permits, and law, as provided herein, shall have administrative enforcement jurisdiction over provisions of this chapter and may bring enforcement action under the provisions of this chapter before the alcoholic beverage control board or may seek administrative relief through the provisions of chapter 6 of this Code.

(c) Any applicant seeking to contest a determination made by the director of the department of safety and permits regarding the issuance or renewal of a permit for the sale of alcoholic beverages, and the satisfaction of application and eligibility requirements thereto, shall appeal to the alcoholic beverage control board within 30 days of the department's written determination.
(Code 1956, § 5-5; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Cross reference—Law enforcement, ch. 90.

Sec. 10-5. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-5, which pertained to police investigation of alcoholic beverage outlets and employees and derived from Code 1956, § 5-58.

Sec. 10-6. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-6, which pertained to enumeration of certain violations and derived from Code 1956, § 5-125; M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018.

Sec. 10-7. Possession of weapons where alcoholic beverages are sold, consumed on the premises.

It shall be unlawful for any person to have in his possession a firearm, or other instrumentality customarily used or intended for probable use as a dangerous weapon, in any premises where alcoholic beverages are sold and consumed on the premises, except the owner or lessee of the premises, or their employees; sheriffs; state police; city police, or persons vested with police power when in the actual discharge of their duties.
(Code 1956, § 67-3.1)

State law reference—Weapons generally, R.S. 40:1751 et seq.

Sec. 10-8. Reserved.

Editor's note—M.C.S., Ord. No. 18,049, § 1, adopted Feb. 6, 1997, repealed § 10-8, which pertained to determination of premises where alcoholic beverages sold and derived from § 67-5.2 of the 1956 Code.

Sec. 10-9. Accessories as guilty as principals.

Any person who aids, abets or otherwise participates in anywise in any violation of this chapter or in any of the offenses punishable under its terms shall be guilty and punishable to the same extent as a principal.
(Code 1956, § 5-126)

Sec. 10-10. False swearing.

Any person or any agent or employee of any person who shall make false oath to any report or application required by the provisions of this chapter shall be guilty of the crime of false swearing.
(Code 1956, § 5-127)

Sec. 10-11. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-11, which pertained to chapter printed as separate pamphlet and derived from Code 1956, § 5-6.

Sec. 10-12. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-12, which pertained to administrative and enforcement advisory committee and derived from M.C.S., Ord. No. 18,139, § 1, adopted April 3, 1997.

Secs. 10-13—10-45. Reserved.

ARTICLE II. PERMITS

DIVISION 1. GENERALLY

Sec. 10-46. Unlawful to sell without permit.

It shall be unlawful for any person, whether as a manufacturer, rectifier, distiller, micro-distiller, brewer, micro-brewer, importer, manufacturer's agent, wholesaler or retail dealer, knowingly to sell, donate or deliver in any place to any person alcoholic beverages unless such person holds a city and state permit for the sale of such alcoholic beverages.
(Code 1956, § 5-19; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law reference—Operation without permit prohibited, R.S. 26:75, 26:275.

Sec. 10-47. Permit prerequisite to engaging in business.

It shall be unlawful for any person to sell, offer for sale, import, manufacture, distill, rectify or have in possession, for sale, handling, storage or distribution, either at wholesale, retail or otherwise, any alcoholic beverage or to engage in the business of dealer without first having obtained from the department of safety and permits a permit to engage in such business.
(Code 1956, § 5-7; M.C.S., Ord. No. 27737, § 1, 4-19-18)

State law reference—Similar provisions, R.S. 26:71, 26:271.

Sec. 10-48. Permits prior to purchase of alcoholic beverages.

All retail dealers must possess a permit as a condition precedent to purchasing, receiving, or engaging in the business of dealing in alcoholic beverages. The location of such business shall be approved by the department of safety and permits for compliance with the comprehensive zoning ordinance and building code prior to the issuance of a permit. An application may be withheld and a solicitor or his wholesaler who sells or delivers alcoholic beverages to the applicant may have their permits suspended or revoked for violation hereof.
(Code 1956, § 5-7.1)

Sec. 10-49. Wholesale and retail dealers permits required.

Before engaging in the business of dealing in alcoholic beverages, all wholesale and retail dealers shall obtain from the department of safety and permits a permit to conduct each separate wholesale or retail business, and shall renew the permit annually.
(Code 1956, § 5-8; M.C.S., Ord. No. 16,718, 10-20-94; M.C.S., Ord. No. 21658, § 1, 8-19-04; M.C.S., Ord. No. 27737, § 1, 4-19-18)

State law references—Similar provisions, R.S. 26:71, 26:271; authority of municipalities to require permits and payment of fees, R.S. 26:74, 26:274.

Sec. 10-50. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-50, which pertained to permit to manufacture berry or orange wine and derived from Code 1956, § 5-10.

Sec. 10-51. Retail sale of sacramental wines by religious supply houses.

(a) Those licensed religious supply houses engaging in the sale of sacramental wines to any priest, minister, rabbi or other clergyman for use in the regular course of their religious duties shall not be required to pay the city retail alcoholic beverage permit fee. Such licensed religious supply house shall sell only those wines that are originally labelled "Sacramental Wine" and such stock and display of these wines shall not exceed ten percent of all display area.

(b) The knowing sale by any religious supply house that is permitted under the provisions of this section of any sacramental wine to any person other than a priest, minister, rabbi or other clergyman for use in the regular course of their religious duty shall be grounds for the revocation of any permit granted under this article.
(Code 1956, § 5-8.1)

Sec. 10-52. Special events permits.

(a) The director of the department of safety and permits or the director's designee may, upon receipt of written or electronic approval by the office of a member of the city council, authorize the issuance of alcoholic beverage permits for special events when such functions will not continue for a period in excess of three days. No more than 12 such permits may be issued to any one organization within a single calendar year. The department of safety and permits may issue an alcoholic beverage permit or permits to the applicant named in the letter notwithstanding any ordinance or moratorium to the contrary upon payment, if applicable, of the alcoholic beverage permit fee specified in this section.

(b) The fees for permits issued pursuant to this section, including all processing fees, shall be as follows. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District:

	Nonprofit	*All Others*
(1) Sale of beverages of low alcoholic content	$25.00	$50.00
(2) Sale of beverages of high alcoholic content	$25.00	$50.00

	Nonprofit	*All Others*
(3) Sale of beverages of high and low alcoholic content	$50.00	$100.00
(4) Free distribution of alcoholic beverages at picnics or other special events	No charge	
(5) Alcoholic beverage permit processing fee	$100.00	$200.00

Any alcoholic beverage permit for a special event issued in accordance with this section shall be valid only for the dates, times and locations authorized by the letter which may also authorize alternative dates, times or locations in anticipation of inclement weather or other circumstances.

(c) Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the city confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal liens.

(Code 1956, § 5-3.1; Ord. No. 20,025, § I, 2-1-01; Ord. No. 20,081, § 1, 3-15-01; M.C.S., Ord. No. 25711, § 1, 2-20-14; M.C.S., Ord. No. 27266, § 1, 1-26-17; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 30681, § 1, 6-24-26)

Cross references—Mayoralty permits, § 30-66 et seq.; carnival, Mardi Gras, ch. 34.

Sec. 10-53. Class A permits.

The director of the department of safety and permits shall issue the following types of Class A retail alcoholic beverage permits:

(1) *Class A - General:*

a. A Class A - General retail permit for alcoholic beverages shall be issued only to a retail outlet where alcoholic beverage is sold on the premises for consumption on or off the premises by paying customers. Such an establishment must be equipped with a permanent wet bar equipped with a nonmovable sink and backbar or similar equipment for public display and to inform the public of brands and flavors offered for sale.

b. A Class A - General retail establishment shall be staffed by a bartender whose primary duty is to open and/or prepare alcoholic beverage products for consumption on or off the premises by paying customers, or prepared with an appropriate lid or cover on the container for takeout service. Such an establishment must meet all state and city health and zoning requirements as set forth by the state or the city.

c. Except as otherwise provided in this section, a Class A - General retail permit shall be issued only to an establishment where city and state law provides that no person under the age of 18 years is allowed on the premises except as provided by R.S. 26:90(A)(8)(a) and 26:286(A)(8)(a).

(2) *Class A - Restaurant permit:*

a. A Class A - Restaurant permit shall be issued only to a "restaurant establishment" as defined in subsection b. below. Every restaurant shall have a valid Class "R" permit issued by the state.

b. For purposes of this section, "restaurant establishment" shall be defined as an establishment:

i. Which operates a place of business whose purpose and primary function is to take orders for and serve food and food items;

ii. Which serves alcoholic beverages in conjunction with meals;

iii. Which serves food on all days of operation;

iv. Which maintains separate sales figures for alcoholic beverages; and

v. Which operates a fully equipped kitchen used for the prepara-

tion of uncooked foods for service and consumption of such foods on the premises of the establishment; and

vi. Which grosses at least 50 percent of its average monthly revenue from the retail sale of food, food items that are prepared for service and consumption on the premises of the establishment, and nonalcoholic beverages.

(3) *Class A - Restaurant—Conditional permit:*

a. Any retail establishment may be issued a Class A - Restaurant—Conditional permit provided it meets the requirements of subsection (2)b.i., ii., iii., iv., v., and vi. of this section during the hours of 7:00 a.m. and 9:00 p.m. each day of operation.

b. Notwithstanding subsection (1)c. of this section or any other law to the contrary, any establishment which qualifies and receives a Class A - Restaurant—Conditional permit in accordance with this subsection may permit any person under the age of 18 on their premises between the hours of 7:00 a.m. and 11:00 p.m., provided that persons under 17 years of age are subject to city curfew laws as provided in section 54-414 et seq.

(4) *Class A - Hotel permit:*

a. A Class A - Hotel permit shall be issued only to a hotel as defined in the Comprehensive Zoning Ordinance and as licensed as such by the department of safety and permits.

b. A Class A - Hotel permit shall permit a hotel to serve alcoholic beverages if service is open to all guests, which may be open to the general public, to guest rooms through room service or in-room mini-bars, and at amenities open exclusively to hotel customers and other paying guests, such as pool areas or in spas.

(5) *Class A - Caterer permit—Stand alone or Attached:*

a. A Class A - Caterer permit, *Stand-alone*, shall be issued only to a caterer as defined herein. A stand-alone caterer permit allows businesses to sell and serve alcoholic beverages at catered events or gatherings off its premises.

b. A Class A - Caterer permit, *Attached,* allows businesses that hold a current alcohol permit to sell and serve alcoholic beverages at an event other than on the premises for which the holder's regular permit is issued, on a temporary basis, limited to three consecutive days in duration. This attached permit shall only be issued to holders of a current alcohol permit limited to the following:

a. Restaurants;

b. Bars; and

c. Retail dealers whose primary purpose is the sale of packaged alcoholic beverages.

c. The holder of this permit shall maintain a business office address, and must keep this address on file with the department, but may provide service at remote locations, including but not limited to reception facilities and other event venues which are permitted by the department of safety and permits to host events and which comply with all other applicable laws and licensure requirements.

d. The holder of this permit is subject to all State of Louisiana limitations on gross annual and per event alcohol sales caps and must maintain separate sales figures for alcoholic beverages available to the director of finance.

e. This permit shall not be issued in lieu of a special event permit.

(6) *Class A - Educational permit:*

a. Class A - Educational permit shall be issued only to university or vocational educational facilities as defined in the Comprehensive Zoning Ordinance, and licensed as such by the department of safety and permits.

b. A Class A - Educational permit shall allow a university or vocational

educational facility to provide alcoholic beverage service to guest at functions, occasions, and/or events at the permitted location.

c. This permit shall only be issued if the location's base zoning district authorizes an alcoholic beverage outlet by-right.

(M.C.S., Ord. No. 18,142, § 1, 3-20-97; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-54. Class B permits.

A Class B-General retail permit shall be issued only to an outlet where alcoholic beverage is sold for consumption off premises by paying customers.
(M.C.S., Ord. No. 18,143 § 1, 3-20-97)

Secs. 10-55—10-75. Reserved.

DIVISION 2. ADMINISTRATION*

Sec. 10-76. Authority of alcoholic beverage control board.

(a) Pursuant to the authority contained in the Home Rule Charter of the City of New Orleans and La. R.S. 33:4785, the alcoholic beverage control board shall have the power and authority to conduct hearings, suspend or revoke city alcoholic beverage permits, impose other remedial sanctions as set forth in section 10-160, and decide appeals from persons who have been denied alcoholic beverage permits by an administrative official in the enforcement of applicable state or municipal laws.

(b) No board member shall have ownership, leasehold interest in nor be an employee of a permitted alcoholic beverage outlet.
(Code 1956, §§ 5-58.1(a), 5-58.3; M.C.S., Ord. No. 18,051, § 1, 2-6-97; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Charter reference—Alcoholic beverage control board, art. V, ch. 10.

Cross reference—Boards, committees and commissions, § 2-86 et seq.

*__Cross reference—__Administration, ch. 2.

Sec. 10-77. Procedure.

The alcoholic beverage control board shall be governed by provisions of the Administrative Procedure Act, R.S. 49:950 et seq., unless the procedure or proceedings are specifically established by R.S. 33:4787 or 33:4788 or is inconsistent with the provisions of the city charter, in which case the provisions of the charter shall prevail.
(Code 1956, § 5-58.3)

Sec. 10-78. Suspension, revocation procedure.

(a) Upon petition fully filed by either the mayor or the superintendent of police, the director of the department of finance, the director of the department of safety and permits, or the city attorney, setting forth the causes for suspension, revocation, or other remedial sanctions as set forth in section 10-160, a hearing shall be held by the alcoholic beverage control board to determine whether the permit of the person charged shall be suspended or revoked, or whether remedial sanctions shall be imposed. A notice shall be served upon the holder of the permit stating the time and place of the hearing to be held by the board, which shall be not less than ten calendar days from the date such notice is given. The notice shall be sent by the clerk of the council and shall enumerate the cause or causes for suspending or revoking the permit, or for imposing remedial sanctions. The notice shall be mailed by regular and registered or certified mail to the holder of the permit at the address of the place of business as given in the application for the permit, or it may be served on the holder of the permit in person by a police officer or employee of the department of finance or the department of safety and permits.

(b) Except as provided in subpart (e) herein, no permit shall be suspended or revoked, nor any remedial sanction imposed, except by majority vote of the alcoholic beverage control board. All petitions shall be prepared and prosecuted by the department of law. If proper notice has been served upon the defendant, the hearing may proceed without his presence if he fails to appear. Certified copies of convictions involving causes

for suspension or revocation or for remedial sanctions being imposed in either the municipal courts or in the criminal district court of this parish shall constitute prima facie proof of a violation by the permit holder.

(c) When an alcoholic beverage permit is revoked for any legal cause by any lawful authority, no city permit shall be issued covering such premises for a year after the date of the revocation. When a permit has been suspended by lawful authorities, no new permit shall be issued to the same premises for a period of 14 days beginning from the last date of suspension. After the effective date of the ordinance from which this section was derived, if any licensee shall have received a second suspension connected with the same premises involving prostitution, pandering or obscenity no new permits shall be issued for the same establishment for a period of six months and one day, from date of such suspension.

(d) If a license is revoked because of discontinuance of a nonconforming land use pursuant to the comprehensive zoning ordinance, Ordinance No. 4264, as amended, the license shall not be issued except after the department of safety and permits has verified compliance with the requirements of the comprehensive zoning ordinance.

(e) In accordance with La. R.S. 33:4785(b) and La. R.S. 33:4786 and except as otherwise modified by La. R.S. 33:4787 and La. R.S. 33:4788, the board shall possess the emergency suspension powers granted to an agency by Section 49:961 of the Administrative Procedure Act. The board may not exercise the preceding powers unless and until the board promulgates rules and regulations, which must be approved by the council in accordance with section 2-1000 of the Code, defining the circumstances when emergency suspension is permitted, establishing notice requirements and hearing procedures in compliance with the United States and Louisiana Constitutions, and setting forth such other provisions that the board deems necessary or desirable to protect public safety and welfare while affording due regard to the rights and livelihoods of license holders. In promulgating the foregoing, the board is directed to review and consider all available and legal options and to establish defined criteria for what constitutes an emergency to public safety and welfare; provided however, that an emergency suspension shall not be issued unless notice is given to the premittee and a pre-suspension hearing is provided. Nothing herein shall limit or modify the authority of the city to address emergencies pursuant to the authority granted by other sections of the Home Rule Charter, the Code of the City of New Orleans and other applicable law.

(Code 1956, § 5-58.1(f)—(h); M.C.S., Ord. No. 18,052, § 1, 2-6-97; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law references—Authority to establish alcoholic beverage control board, R.S. 33:4785 et seq.; cause necessary to withholding, suspending, or revoking of permit, R.S. 26:291; local regulatory ordinances, R.S. 26:493.

Sec. 10-79. Notice.

Where the holder of, or applicant for, an alcoholic beverage permit and the owner of the real property are different and a permit has been denied, suspended or revoked, or remedial sanctions have been imposed under this article, in addition to the notification required to be given to the holder thereof, or applicant therefor, the department of finance, the department of safety and permits, or the alcoholic beverage control board, as appropriate, shall notify one or more of the owners of the real property upon which the business, in the name of which the alcoholic beverage permit was issued, is located.

(Code 1956, § 5-59; M.C.S., Ord. No. 18,053, § 1, 2-6-97; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Sec. 10-80. Standing before board.

Any person desiring to appear before the alcoholic beverage control board relative to the appeal of the denial of an alcoholic beverage permit by the department of safety and permits or the suspension or revocation of an alcoholic beverage permit by the alcoholic beverage control board or the imposition of remedial sanctions by the alcoholic beverage control board shall have standing before the board.

(Code 1956, § 5-60; M.C.S., Ord. No. 18,054, § 1, 2-6-97; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Sec. 10-81. Rules of procedure.

The alcoholic beverage control board shall adopt rules and regulations relating to the conduct of its proceedings; provided, however, that such rules and regulations shall not become effective until such time as they are inscribed in its rules of procedures.
(Code 1956, § 5-60)

Secs. 10-82—10-100. Reserved.

DIVISION 3. APPLICATION

Sec. 10-101. Form and content.

All applications for permits to engage in any business or operation regulated by this chapter shall be in writing and sworn to before a notary public or any other officer authorized by law to administer oaths. Applications shall contain the full name of the applicant, with his or her correct home address, the correct address for the premises to be permitted, and a mailing address, if different, as well as an e-mail address where the applicant will receive notices provided by this chapter, and shall contain sworn statements showing that the applicant is a natural person, and that he or she, and his or her spouse, if any, possess the below qualifications. The Department of Safety and Permits and New Orleans Police Department shall be charged with the duty of making investigations to ensure that all of the required qualifications provided herein and elsewhere in this chapter are satisfied before permit issuance, and continue to exist during the duration of the permit, along with any renewals relative thereto. Such requirements are as follows:

(1) That the applicant is over 18 years of age.

(2) If requested by the department of safety and permits, the applicant must give concise and correct previous home addresses in which the applicant has lived for a period of the past five years prior to making application for a permit. The department of safety and permits may also request that if such applicant has engaged in the sale of alcoholic beverages within five years of the date of the application, then the applicant shall also give a correct and concise address of previous businesses so conducted within the past five years, together with the name under which the business was conducted.

(3) That the applicant has not been convicted of a felony under the laws of the United States, this state, or of any other state or sovereignty (a) during the previous five years or (b) during the minimum period necessary to comply within La. R.S. 26:80 and 26:280, whichever is less. Any convictions for charges expunged or pardoned shall not be considered.

(4) That the applicant has been a citizen or resident alien of the United States continuously for a period of not less than two years preceding the date of the filing of such application. However, the requirements as to United States citizenship and residency do not apply to wholesalers or retailers who held permits on or prior to January 1950.

(5) That the applicant has designated an agent located in this city to receive service of process and submits to personal jurisdiction within Orleans Parish. An applicant who is a resident of Orleans Parish may designate him or herself as such agent.

(6) That the applicant is the owner of the premises wherein the business or operation is to be conducted or has a bona fide written lease for the same. A true copy of such lease or rental agreement shall be filed with the application.

(7) That the applicant is not the spouse of a person who is ineligible for a permit, unless legally separated. However, the age, residency and citizenship of an applicant's spouse shall in no event be a ground for denial of a permit. Additionally, a permit may be granted or renewed, even though the applicant's spouse has been convicted of a felony, if the applicant

had state and local permits prior to the felony conviction, and if the applicant either:

a. Has a regime of separation of property, pursuant to La. Civil Code Article 2370, and is the owner of the premises or has bona fide written lease therefor, or;

b. Owns the permitted premises as the applicant's separate property, pursuant to La. Civil Article 2341.

(8) That the applicant has not had a license or permit to sell or deal in alcoholic beverages issued by the United States, this state, this city or by any other state, sovereignty, parish or county revoked within a one year period prior to the application for nonpayment of proper license taxes or other taxes in connection with such business; and that the applicant has not had a license or permit to sell or deal in beverage alcohol, issued by the aforementioned governmental jurisdictions authorized to issue permits or licenses, revoked for any other reason other than the nonpayment of taxes within two years prior to the application.

(9) That if any applicant is a partnership or anyone in partnership with or financed by another, all members of the partnership and/or all the persons in any way financially interested in the business must also be qualified to obtain a permit. The application shall state the full names of all partners and persons financially interested and furnish their proper addresses, and each must furnish his sworn affidavit showing his qualifications as required of an applicant.

(10) That a current federal wagering stamp has not been issued to any applicant; or, if the applicant is a corporation, that a current federal wagering stamp has not been issued to it or to any of its managers, officers, directors, stockholders or employees, or, if the applicant is a partnership, that there has not been issued to it or to any of its managers, employers, officers or partners, including partners in commendam, a current federal wagering stamp.

(11) A copy of the application shall be served on the owner of the premises where the applicant intends to operate and do business. Such service shall be made at the last known address of such owner or on his agent, and proof of such service shall be furnished by the applicant to the city.

(12) A retail dealer shall provide its monthly revenue from the sale of food and nonalcoholic beverages, and its alcoholic beverage sales, for the calendar year preceding the submission of a renewal application. The required record of sales figures shall be submitted on a form supplied and approved by the department of finance.

(13) There are no outstanding property or sales taxes owed at the ABO location. If the applicant is a lessee and the denial of a permit is based upon delinquent property taxes, the alcoholic beverage control board may waive this requirement if it finds the lessee is acting in good faith and a waiver will avoid undue hardship to the lessee. This exception shall not apply if the property owner and the applicant are under common ownership or control.

(Code 1956, § 5-20; M.C.S., Ord. No. 18,190, § 1, 4-3-97; M.C.S., Ord. No. 27065, § 1, 9-8-16; M.C.S., Ord. No. 28191, § 1, 10-3-19; M.C.S., Ord. No. 30449, § 1, 9-11-25)

State law reference—Application for permit, R.S. 26:77 et seq., 26:277 et seq.

Sec. 10-102. Additional requirements.

(a) If the applicant for a permit under the provisions of this chapter is a state corporation, one of the officers of such corporation and the person who shall conduct or manage the business shall all possess the qualifications required of an applicant, to be shown by the sworn affidavit of each, together with fingerprints and photographs as required of an applicant. However,

the requirement as to residence does not apply to officers of a corporation, if the corporation was the holder of a permit on January 1, 1950.

(b) If the applicant for a permit under the provisions of this chapter is a domestic limited liability company, one of the members or managers of such limited liability company and the person who shall conduct or manage the business shall all possess the qualifications required of an applicant, to be shown by the sworn affidavit of each, together with fingerprints and photographs as required of an applicant.
(Code 1956, § 5-22; M.C.S., Ord. No. 18,055, § 1, 2-6-97)

State law reference—Similar provisions, R.S. 26:80(c), 26:280(c).

Sec. 10-103. Additional requirements.

(a) If the applicant for a permit under the provisions of this chapter is a foreign corporation, the registered, authorized and qualified agent in this state shall possess the qualifications required of an applicant, as well as the person who is to conduct or manage the business, such qualifications to be shown by a sworn affidavit of each, together with fingerprints and photographs, as required of an applicant.

(b) If the applicant for a permit under the provisions of this chapter is a foreign limited liability company, then the registered, authorized and qualified agent in this state shall possess the qualifications required of an applicant, as well as the person who is to conduct or manage the business, such qualifications to be shown by a sworn affidavit of each, together with fingerprints and photographs, as required of an applicant.
(Code 1956, § 5-23; M.C.S., Ord. No. 18,056, § 1, 2-6-97)

State law reference—Similar provisions, R.S. 26:80(c), 26:280(c).

Sec. 10-104. Additional affidavit required of partner, etc.

Each person who is a partner or financially interested with the applicant in any proposed business or operation shall furnish with the application for a permit regulated by this chapter his sworn affidavit showing his qualifications as required of an applicant.
(Code 1956, § 5-24)

State law reference—Similar provisions, R.S. 26:80(B), 26:280(B).

Sec. 10-105. Additional requirements when business to be conducted by manager, etc.

(a) If an applicant's business permitted under the provisions of this chapter is to be conducted wholly or partly by one or more managers or other representatives, such person must also possess the qualifications required of the applicant, as shown by affidavits, fingerprints and photographs as required of an applicant.

(b) Persons applying for a manager's permit need not be a citizen of the United States but only shall have maintained a residence in this state continuously for a period of not less than two years prior to the date of filing for such manager's permit.
(Code 1956, § 5-25)

State law reference—Similar provisions, R.S. 26:80(D), 26:280(D).

Sec. 10-106. How application mailed.

All applications for permits regulated by this chapter shall be mailed or delivered to the department of safety and permits and, when an applicant must also apply for one or more local permits, all applications shall be mailed and delivered to the respective authorities, including the state, within 24 hours of each other. If the applicant fails in this respect the application may be withheld and the permit denied.
(Code 1956, § 5-26; M.C.S., Ord. No. 27737, § 1, 4-19-18)

State law reference—Submission of applications, R.S. 26:79, 26:279.

Sec. 10-107. Issuance of temporary permit.

(a) The department of safety and permits shall issue a 90-day temporary alcoholic beverage outlet permit, and, if applicable, a temporary mayoralty permit for live entertainment and recommend to the department of finance the

approval of a temporary occupational license within ten calendar days of the submission of a complete application, provided that:

(1) The use specified in the alcoholic beverage outlet permit application, occupational license, and if applicable, the temporary mayoralty permit for live entertainment, is a permitted use, valid conditional use, or valid legal non-conforming use within the zoning district of the subject property.

(2) Neither the applicant nor the listed business owner(s) have been found guilty of a violation related to alcoholic beverage sales or public safety within the previous 365 days.

(3) Neither the applicant nor the listed business owner(s) have applied for more than one temporary alcoholic beverage outlet permit for the subject property within 365 days of submission of a complete application.

(b) Within five calendar days of the issuance of a temporary alcoholic beverage outlet permit, the department of finance shall issue a 90-day temporary occupational license pursuant to section 150-953 of this Code.

(c) For the purposes of this section, a "complete application" means the submission of the following:

(1) Application for an occupational license, an alcoholic beverage outlet permit, and, if applicable, a temporary mayoralty permit for live entertainment;

(2) State alcoholic beverage permit;

(3) State health permit;

(4) State fire marshal approval;

(5) Approval of the district councilmember for the subject property for the temporary alcoholic beverage outlet permit, the temporary occupational license, and, if applicable, the temporary mayoralty permit for live entertainment; and

(6) Payment of all applicable permit and license fees.

(d) Each of the temporary alcoholic beverage outlet permit, temporary occupational license, and, if applicable, temporary mayoralty permit for live entertainment expire 90 days after issuance and shall not, on its own, entitle the applicant to an alcoholic beverage outlet permit, occupational license, or mayoralty permit for live entertainment or automatic renewal thereof, as issued under the authority of this chapter.

(e) If a building permit has been issued to the applicant for construction or renovation of the applicant's premises, the department of safety and permits shall not issue a temporary alcoholic beverage outlet permit until a temporary or final certificate of occupancy is issued in connection with the construction or renovation of the applicant's premises.

(f) Temporary alcoholic beverage outlet permits, temporary occupational licenses, and, if applicable, temporary mayoralty permits for live entertainment shall not be renewed.

(g) The provisions of this section shall cease to be effective on July 1, 2027. Nevertheless, any temporary alcoholic beverage outlet permit issued prior to this sunset date shall remain valid until its 90-day expiration date.

(h) The director of the department of safety and permits may deny a temporary alcoholic beverage outlet permit when there is one or more outstanding health, safety, or building violations associated with the subject property, that, in the opinion of the director, present a serious threat to the health, safety, or welfare of the public; provided, however, the director shall provide written justification to the applicant within five days of denying the permit. The written justification shall specifically identify and explain the serious threat to the health, safety, or welfare of the public. If the applicant disagrees with the denial of the permit by the director of the department of safety and permits, the applicant may appeal the denial of the permit to the chief administrative officer or his designee within 15 calendar days of the director's decision to deny the permit.

(i) The failure to grant or deny any of the temporary permits created by this section or license created by section 150-153(b) within 15 calendar days results in the automatic issuance of the temporary alcoholic beverage outlet permit, a temporary occupational license, and, if applicable, a temporary mayoralty permit for live entertainment.

(j) Within five calendar days of denying a temporary alcoholic beverage outlet permit, or, if applicable, a temporary mayoralty permit for live entertainment, the department of safety and permits shall inform the applicant in writing of the specific reason(s) for denying the temporary permit. Within five calendar days of denying a temporary occupational license, the department of finance shall inform the applicant in writing the specific reason(s) for denying a temporary occupational license. If the applicant disagrees with the denial of a temporary alcoholic beverage outlet permit, temporary occupational license, or, if applicable, temporary mayoralty permit for live entertainment, the applicant may appeal the denial to the chief administrative officer or his designee with 15 calendar days of the denial decision.

(M.C.S., Ord. No. 30254, § 1, 3-27-25; M.C.S., Ord. No. 30643, § 1, 4-23-26)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 30254, M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-107, which pertained to application held for investigation and derived from Code 1956, § 5-27.

Sec. 10-108. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-108, which pertained to issue of temporary number pending investigation and derived from Code 1956, § 5-28.

Sec. 10-109. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-109, which pertained to operation under temporary number to cease if application rejected and derived from Code 1956, § 5-29.

Sec. 10-110. Investigation by administrative agencies.

(a) The department of safety and permits shall conduct whatever investigations may be required to properly certify that the proposed business location complies with:

(1) The building code of the city, as amended;

(2) The comprehensive zoning ordinance of the city, as amended;

(3) Section 10-236, as amended, regarding the proximity of such business to playgrounds, churches, public libraries or schools; providing that the department of safety and permits may issue permits to business locations which do not comply with section 10-236, but which are lawfully permitted to sell alcoholic beverages for the year 1985 and providing that if the property is a legal nonconforming use, that it has maintained its status as a nonconforming use in accordance with the provisions of the comprehensive zoning ordinance, as amended;

(4) Section 10-312, as amended, regarding the certification of the distances of adjacent property from the proposed business within certain portions of the Vieux Carré; and

(5) Other ordinances affecting land use, including special conditions on the use of property or sale of the alcoholic beverages at a location which has been imposed by ordinance.

(6) Compliance with all applicable provisions of the Code of Ordinances of the City of New Orleans.

The department of safety and permits shall not issue permits if the location does not comply with such requirements.

(b) The department of safety and permits shall also forward a copy of the application to the police department for the purposes of making proper investigations of the statements contained therein, and the police department shall certify, in writing, to the department of safety and

permits with reference thereto; also, relative to any other matters which might affect the qualifications of all persons required to qualify under this chapter. The department of safety and permits shall not issue permits if the department of safety and permits finds that all persons required to qualify under this chapter are not qualified to be issued an alcoholic beverage permit.
(Code 1956, § 5-30; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Sec. 10-111. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-111, which pertained to investigation by department of health and derived from Code 1956, § 5-32.

Sec. 10-112. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-112, which pertained to additional investigation and coordination by Vieux Carré Commission and derived from Code 1956, § 5-33.

Sec. 10-113. Continued investigation and revocation on subsequent findings.

All applicable administrative agencies shall continue investigating the qualifications of all applicants for permits under the provisions of this chapter. Subsequent to the issuance of permits, should it be ascertained that the applicant was not qualified for the permit under the provisions of this chapter, or that the applicant falsified the application, the department of safety and permits shall take immediate steps, on its own volition or at the written request of any other local authority, to begin the process to suspend or revoke the permit.
(Code 1956, § 5-41; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Sec. 10-114. Denial of permit for lack of qualifications.

If the applicant for a permit under this chapter or any other person required to have the same qualifications does not possess the required qualifications, the permit shall be denied.
(Code 1956, § 5-34)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-115. Misstatement or lack of qualifications ground for denial or revocation of permit.

Any misstatement or suppression of facts in any application for a permit under this chapter or accompanying affidavit shall be grounds for refusal of the permit or suspension or revocation thereof if already issued. Likewise, if the applicant or any other person required to have the same qualifications does not possess such qualifications or if any of them has violated or failed to

comply with any requirements of this chapter, the permit shall be denied or revoked if already issued.
(Code 1956, § 5-36)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-116. All partners, etc., must be qualified.

If any applicant for a permit under the provisions of this chapter is a partnership or anyone in partnership with, or financed by another, all members of the partnership or all the persons in any way financially interested in the business must also be qualified to obtain a permit.
(Code 1956, § 5-40)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-117. Permit not to be issued to agent or associate of unqualified person.

If a permit is granted to any person who is or has been engaged in any regulated beverage business with any person whose application for a permit has been denied, the permit may be suspended or revoked. No permit shall be issued to any person who himself may be qualified but who is an interposed person, agent, employee or representative for the owner or proprietor of the business and, if issued, the permit shall be revoked when the facts are discovered.
(Code 1956, § 5-37)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-118. Denial of permit for conviction of crime.

If the applicant for a permit under the provisions of this chapter has been convicted within a period of five years of a felony or of a misdemeanor involving moral turpitude, the permit shall be denied.
(Code 1956, § 5-35)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-119. Permit not issued to tax delinquent applicant.

No permit under the provisions of this chapter or renewal thereof shall be issued to any person or dealer who is delinquent in payment of any taxes due the city or state arising from the operation of a business dealing in alcoholic beverages.
(Code 1956, § 5-38; M.C.S., Ord. No. 16,722, 10-20-94)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-120. Permittees prior to 1950 need not be citizens.

The requirements as to state citizenship do not apply to wholesalers or retailers who held permits under the provisions of this chapter on or prior to January, 1950.
(Code 1956, § 5-39)

State law references—Qualifications of applicants, R.S. 26:80, 26:280; misstatement or suppression of fact, R.S. 26:84, 26:282; authority of commissioner and local authorities to withhold permit, R.S. 26:86, 26:283; procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-121. Procedure for withholding or denying permits.

(a) The procedure for withholding or denying permits shall be brought about in the manner as set out in this section.

(b) Upon receipt of an application for a permit or upon receipt of an affidavit for a renewal of a permit, the department of safety and permits shall conduct an investigation to determine

whether the application meets all of the requirements of this chapter. After the department of safety and permits has completed its investigation and received reports regarding the application from the other departments of the city, as required in this division, then the department shall determine whether the application for the permit or the affidavit for a renewal of a permit shall be granted or denied.

(c) If the department of safety and permits finds that the application for the permit or the affidavit for a renewal of a permit is not in compliance with this chapter or that the applicant does not meet the qualifications required by this chapter, then the department shall deny the application for a permit or affidavit for renewal of a permit. This denial shall be communicated to the applicant by registered or certified mail, giving the specific reason for such denial.

(d) In order to afford every person a full opportunity to be heard, it is hereby provided that when an application for a permit or a renewal thereof is denied, the applicant, within ten days from the date of notification of such denial, may petition in writing to the alcoholic beverage control board for a review of the action taken by the department of safety and permits in denying or withholding the issuance of a permit or a renewal thereof. Upon receipt of such written petition for a review of the action taken, the alcoholic beverage control board shall notify the petitioner of the date and time of the hearing. The hearing shall be held no later than 35 days after the date on which the petition is filed. Such hearing may be conducted by a member or members of the alcoholic beverage control board designated by such board.

(e) At this hearing, the director of the department of safety and permits or the director's duly designated representative and the city attorney or an assistant city attorney shall be present to assist in presenting the facts in the particular case to the alcoholic beverage control board or its designate. At such a hearing, the applicant shall appear in person and may be represented by counsel.

(f) After reviewing the file in the case and considering the evidence, the alcoholic beverage control board or its designate shall determine whether the action of the department of safety and permits in denying the issuance of the permit or a renewal of a permit should be upheld or reversed. Should the applicant fail to appear for the hearing, the alcoholic beverage control board shall nevertheless decide the matter without further delay.

(Code 1956, § 5-44.1; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Charter reference—Alcoholic beverage control board, functions, § 5-1002.

State law references—Procedure for determination to issue or withhold permit, R.S. 26:87, 26:284; local regulatory ordinances, R.S. 26:493.

Sec. 10-122. Fees.

Applicant for permits under this chapter shall pay for each permit on or before starting business according to the following schedule:

(1) Retailers of beverages of low alcoholic content, whether to be sold in package or to be consumed on the premises for which the permit is issued, $135.00.

(2) Wholesalers of beverages of low alcoholic content, $135.00.

(3) Retailer of beverages of high alcoholic content, whether to be sold in package or to be consumed on the premises for which the permit is issued, $500.00.

(4) Wholesalers of beverages of high content, $500.00.

(5) Whenever the premises for which permits are issued to a retailer of beverages of low and high alcoholic content occupies a single building situated both in the parish and an adjoining parish, the respective permit fees as fixed in subsections (1) and (3) of this section shall be reduced to such amounts which, together with the permit fees paid to such adjoining parish, will equal the sum of $135.00 in the case of beverages of low alcoholic content, and $500.00 in the case of beverages of high alcoholic content; provided, however, that in no event shall the permit fees to be

paid the city under such circumstances be less than 50 percent of the fees prescribed by subsections (1) and (3) of this section.

(6) Retailers of sparkling or still wine with an alcoholic content less than 20 percent to be sold in package only, $300.00. The provisions of this subsection apply only where no other high or low alcoholic beverage permits are issued for the designated premises.

(7) Manager's permit, $100.00 per year. Such permit shall be valid for one year from date of issuance and shall be nontransferable and valid in any retail alcoholic beverage outlet in the city.

(8) Upon application to the bureau of revenue for a new alcoholic beverage outlet permit or for an alcoholic beverage permit that constitutes a change of ownership only (excluding yearly renewals of existing permits) in the Vieux Carré section of the city, any area of the city under the jurisdiction of the New Orleans Historic District Landmarks Commission (NO HDLC) or the Central Business District Historic District Landmarks Commission (CBD HDLC), or any area of the city that is subject to any moratorium on the issuance of alcoholic beverage permits at the time of application, the Vieux Carré Commission, Historic District Landmarks Commission, and/or the department of safety and permits shall charge a $50.00 nonrefundable processing fee on each such application received by the bureau of revenue and reviewed by the respective commission or department. Upon issuance of a valid alcoholic beverage outlet permit by the bureau of revenue, an additional $125.00 will be charged by the Vieux Carré Commission, Historic District Landmarks Commission and/or the department of safety and permits. All such fees will be collected by the bureau of revenue. In accordance with section 166-1, the Vieux Carré section of the city is hereby defined to comprise all that area within the city limits within the following boundaries: River, uptown side of Esplanade Avenue, the river side of North Rampart Street and the lower side of Iberville Street.

(9) Not less than 26 percent of the revenues generated by the fees established in paragraphs (1) and (2) above shall be allocated annually for enforcement of laws and regulations concerning sale of alcoholic beverages; the mayor's recommended budget shall specifically identify the allocation.

(Code 1956, § 5-9; M.C.S., Ord. No. 18,141, §§ 1, 2, 3-20-97; Ord. No. 19,964, § I, 12-12-00; M.C.S., Ord. No. 24293, § 1, 2-17-11; M.C.S., Ord. No. 29309, § 1, 1-19-23)

State law reference—Permit fees, R.S. 26:71, 26:74, 26:271, 26:274.

Sec. 10-123. Permit fees due annually and penalties thereto.

(a) The permit fees fixed and established for retailers and wholesalers of beverages of low alcoholic content, as provided in section 10-122, shall be due and payable on April 1 for the ensuing year. Failure to timely pay permit fees shall result in the imposition of delinquency penalties, as provided in subpart (b). If not renewed by June 30, in addition to penalties, an applicant shall be required to submit a new application.

(b) The delinquency penalty relative to low content shall be 25 percent over and above the regular fee, beginning five days after April 1, if the failure to pay is for not more than 30 days. There shall be an additional five percent penalty for each additional 30 days or fraction thereof during which the failure continues, but in no event shall delinquency penalties continue to accrue after June 30 when a new application is required.

(c) The permit and fees fixed and established for retailers and wholesalers of beverages of high alcoholic content, as provided in section 10-122, shall be due and payable on April 1 for the ensuing year. Failure to timely pay permit fees shall result in the imposition of delinquency penalties, as provided in subpart (d). If not

renewed by June 30, in addition to penalties, an applicant shall be required to submit a new application.

(d) The delinquency penalty relative to high content shall be five percent over and above the regular fee, beginning five days after April 1, if the failure to pay is for not more than 30 days. There shall be an additional five percent penalty for each additional 30 days or fraction thereof during which the failure continues, but in no event shall the delinquency penalties continue to accrue after June 30 when a new application is required.

(e) Should it become necessary for the city to make a claim in any court of competent jurisdiction for all or a portion of any of the permit fees and penalties provided in this chapter, an additional charge often percent may be added for attorney fees.

(Code 1956, § 5-11; M.C.S., Ord. No. 16,719, 10-20-94; M.C.S, Ord. No. 21652, § 1, 8-19-04; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law reference—Delinquency penalty, R.S. 26:88.

Sec. 10-124. Department of safety and permits, authority.

The department of safety and permits shall coordinate with the New Orleans Police Department and the department of finance in determining if an applicant satisfies the requirements of this chapter, prior to permit issuance or renewal. But the department of safety and permits shall ultimately determine permit eligibility, subject to appeal as provided in section 10-4(c).

(Code 1956, § 5-12; M.C.S., Ord. No. 16,720, 10-20-94; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-125. Permits to be displayed.

(a) All permits issued under the provisions of this chapter shall be displayed in a conspicuous place at all times on the premises. If the establishment's ability to sell alcoholic beverages is granted by ordinance from the city council, the operating provisos relative to that use shall also be displayed. Failure to display the aforementioned shall constitute a violation of this chapter.

(b) All permits issued under the provisions of this chapter shall include the following information:

(1) The name of the permit holder;

(2) The location of the permitted business;

(3) The account number and permit number of the permitted business;

(4) The type of permit: low alcoholic content, high alcoholic content, or both;

(5) Whether the permit is for alcoholic beverage consumption on premise or off-premise;

(6) The issuance date of the permit;

(7) The expiration date of the permit;

(8) The date the permit renewal application is due;

(9) A statement that the permit must be displayed in a conspicuous location; and

(10) A statement that the permit is not transferable, assignable, or heritable and is only for the business and address listed thereon.

(Code 1956, § 5-16; M.C.S., Ord. No. 28191, § 1, 10-3-19; M.C.S., Ord. No. 30450, § 1, 9-11-25)

State law reference—Necessity of display, R.S. 26:76, 26:276.

Sec. 10-126. Information to be provided—Effects of alcohol during pregnancy.

(a) Each alcoholic beverage permittee shall inform all purchasers and potential consumers of alcoholic beverages who enter upon the premises to which the permit applies of the possible dangers to infants born to women who consume alcoholic beverages during pregnancy. Each alcoholic beverage permittee shall discharge this duty by providing the following warning on an informational sign posted in the restrooms of their facility:

> WARNING: Drinking alcoholic beverages during pregnancy may cause severe mental and physical birth defects.

Such signs shall be not less than ten inches by ten inches in size and shall be conspicuously

displayed so as to be readable. Letters thereon shall be not less than three-eighths inch in height and shall be printed on contrasting background and in a legible manner.

(b) The permittee shall not be obliged to provide such warning on an informational sign posted in the restrooms of their facility if they are providing such warning on an informational card distributed to all patrons and/or on menus used in their establishment. Such cards shall be not less than three inches by five inches in size and shall be printed on contrasting background and in a legible manner.

(c) The permittee shall be exempt from providing such warning on an informational sign or card if the permittee's license is limited to the sale of alcoholic beverages for consumption only off of the licensed premises.
(Code 1956, § 5-16.1)

Sec. 10-127. Price schedule to be posted and available to patrons.

(a) Every person holding a city liquor permit or a city beer permit whose principal business or operation consists of selling alcoholic beverages shall post in his retail alcoholic beverage outlet in at least two places on such premises signs showing the current prices charged for drinks containing alcoholic beverages or beer; provided, that any charge less than $1.00 need not be posted.

(b) At least one such sign shall be placed above the bar in such establishment. The other shall be placed in some other conspicuous place on the premises. Both such signs shall list all the drinks sold; shall be composed of lettering not less than one inch in height; and shall be kept well lighted. The owner of such establishment shall also make available, on request of any patron, a printed paper schedule of such drinks.

(c) If prices of drinks vary in accordance with the hour of the day, such sign shall also contain this information. Any new changes in prices shall be immediately posted in such schedules. Failure to comply with any portion of this section by any liquor or beer permit holders or any agent thereof shall constitute a violation of this chapter.
(Code 1956, § 5-78)

Sec. 10-128. Maintenance of responsible person on permitted premises.

(a) No alcoholic beverage outlet shall operate without someone in attendance with managing authority over such establishment. Every place not directly supervised and managed by the owner permittee shall designate a manager to exercise responsibility over the establishment. Each alcoholic beverage outlet must have an owner or manager on the premises at all times. No owner or manager can simultaneously be in attendance in more than one alcoholic beverage outlet. No alcoholic beverage outlet shall remain open unless the owner or the designated manager is in attendance therein. Owners and managers of such establishments shall notify the department of safety and permits of any change in the managers employed by such establishment within five days of such change. Except spousal requirements, managers must possess all the personal qualifications prescribed by law for owners. Failure of the owner to comply with this section shall constitute a penal violation of this Code.

(b) Designated managers shall obtain from the department of safety and permits a "Manager's Identification Card", that contains the name and photo of the manager, in a form prescribed by the department. The alcoholic beverage outlet shall maintain a "personnel roster" of each manager in the following manner:

Manager ID No.	*Name*	*Present Address*	*Date Employed*	*Date Terminated*
1234	Jane Doe	123 Apple	1/3/2019	2/26/2019

(Code 1956, § 5-67; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law reference—Qualifications of managers, R.S. 26:80(D), 26:280(D).

Sec. 10-129. Personal nature of permits.

Any permit issued in accordance with the provisions of this chapter shall be a personal privilege and good from the time of issuance

until its expiration as provided in section 10-133, unless sooner revoked or suspended in accordance with law.
(Code 1956, § 5-13; M.C.S., Ord. No. 16,721, 10-20-94)

State law reference—Personal nature of permits, R.S. 26:76(A), 26:276(A).

Sec. 10-130. Effect of death, receivership, etc., on permits.

Permits under the provisions of this chapter shall not be transferable and shall become void on the death of the holder. But upon the dissolution of a partnership by death, the surviving partner may operate under the partnership permit for the remainder of the term and the heirs or legal representatives of deceased persons and receivers and trustees in bankruptcy, appointed by competent authority, may operate under the permit of the person so succeeded in possession by such heirs, representatives, receivers or trustees in bankruptcy.
(Code 1956, § 5-14)

State law reference—Personal nature of permits, R.S. 26:76, 26:276.

Sec. 10-131. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-131, which pertained to change of manager(s) and derived from Code 1956, § 5-15; M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018.

Sec. 10-132. Applications for permit renewals.

(a) Every alcoholic beverage outlet permit issued under the authority of this chapter shall expire on May 31 of each year, and must be recertified annually by the department of safety and permits. Applications for renewal shall be submitted by April 1 of each year. The original permit shall be renewed by the permittee to whom it was issued.

(b) If a person holding permits under this chapter fails to file an application for renewal in accordance with this chapter by April 1, the department of safety and permits may temporarily withhold the issuance of a renewed alcoholic beverage outlet permit pending proceedings before the alcoholic beverage control board.

(c) Renewals are subject to all the rules and provisions of this chapter and may be withheld or denied accordingly.

(d) If the department of safety and permits denies an application for renewal or fails to issue a renewal permit for any reason, including but not limited to, a recommendation of denial from any other department or agency of the city, the Director shall promptly issue a written notification and explanation of the denial to both the applicant and the alcoholic beverage control board. This notification shall clearly state the reasons for the denial and inform the applicant of their right to request an appeal to the alcoholic beverage control board. Upon the applicant's timely request for an appeal, the director shall issue a temporary renewal permit to allow continued operations pending the outcome of the appeal. Notwithstanding the foregoing, applicants who have submitted a renewal application after April 1 shall not be eligible for a temporary renewal permit. The provisions of this subsection (d) shall cease to be effective on July 1, 2027. Nevertheless, any temporary alcoholic beverage permit issued prior to this sunset date shall remain valid until its 60-day expiration date.
(Code 1956, § 5-42; M.C.S., Ord. No. 16,723, § 5-42, 10-20-94; M.C.S., Ord. No. 21659, § 1, 8-19-04; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 30254, § 2, 3-27-25)

State law references—Renewal of permit, R.S. 26:88, 26:285; local regulatory ordinances, R.S. 26:493.

Sec. 10-133. Notice to permittees during the renewal process.

(a) The department of safety and permits shall notify the alcoholic beverage outlet permittee who is eligible for renewal of all relevant renewal dates, including the expiration date of the permit, the deadline to apply for renewal, and the penalties for failure to renew timely.

(b) The department shall send the notice no later than February 1 of each year by U.S. Mail to the address identified in the permit application or most recent renewal application and the address of the permitted alcoholic beverage outlet, if different; and e-mail to the e-mail address identified by the permittee.

(c) Failure by the department to provide notice in accordance with this section shall not relieve the permittee of any obligation under this chapter except for the delinquency penalties set forth in section 10-123. Such failure shall be considered by the alcoholic beverage control board in assessing late fees, fines, and other penalties.
(M.C.S., Ord. No. 30451, § 1, 9-11-25)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 30451, § 1, adopted Sept. 11, 2025, M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-133, which pertained to staggering expiration dates and derived from M.C.S., Ord. No. 16,723, § 5-42.1, adopted Oct. 20, 1994; M.C.S., Ord. No. 21653, § 1, adopted August 19, 2004.

Sec. 10-134. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-134, which pertained to fingerprints, etc., may be required again for renewals and derived from Code 1956, § 5-43.

Sec. 10-135. Renewal denied person convicted of crime.

No permit under the provisions of this chapter shall be issued to any applicant whose permit has been revoked within five years if such applicant has been convicted and sentenced for any felony whatsoever, or any misdemeanor involving moral turpitude.
(Code 1956, § 5-44)

State law references—Renewal of permit, R.S. 26:88(c), 26:285(c); local regulatory ordinances, R.S. 26:493.

Sec. 10-136. Neighborhood compatibility.

(a) Under the provisions of this chapter, no permit shall be issued or renewed for any applicant who has not submitted evidence of complying with the following requirements:

(1) All alcoholic beverage outlets shall establish a litter abatement program, certified by the department of safety and permits. Such program shall include the following items:

a. All trash receptacles, excluding dumpsters, shall be located inside of a structure and shall be placed in the public right-of-way on pick-up days only;

b. All litter shall be cleared from the site of the ABO, the adjacent public right-of-way and any accessory parking lot on a daily basis;

c. The applicant shall sweep the public right-of-way adjacent to the petitioned site and any accessory parking lot daily and shall periodically clear it with a watering hose as needed;

d. Assignment must be made of a particular individual, be it the manager, owner, etc., as the contact person to notify should a violation of the litter abatement program occur;

(2) The applicant shall screen any dumpster used in conjunction with the petitioned site which is visible from the public right-of-way or parking area with a six-foot opaque fence with gates. No dumpster is permitted to be placed within the public right-of-way.

(b) Any individual who has knowledge of any alleged violations of this chapter may submit allegations to the department of safety and permits for review and investigation.
(M.C.S., Ord. No. 19,389, § 1, 9-16-99; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Secs. 10-137—10-155. Reserved.

DIVISION 4. REVOCATION OR SUSPENSION OF PERMIT

Sec. 10-156. Procedures for investigation, revocation, suspension, and for imposition of remedial sanctions.

The procedures governing the investigation of alcoholic beverage permit holders, and the revocation or suspension of alcoholic beverage permits, and the imposition of remedial sanctions are contained in this division.
(Code 1956, § 5-57; M.C.S., Ord. No. 18,058, § 1, 2-6-97)

State law references—Authority to establish alcoholic beverage control board, R.S. 33:4785 et seq.; cause necessary to withholding, suspending, or revoking of permit, R.S. 26:291; local regulatory ordinances, R.S. 26:493.

Sec. 10-157. Grounds for revocation or suspension of permit or remedial sanctions.

(a) Any city retail alcoholic beverage permit may be suspended or revoked, with or without remedial sanctions as set forth in section 10-160, for any one of the following reasons:

(1) Selling or serving alcoholic beverages to any person under the age of 21 years.

(2) Selling or serving alcoholic beverages to any intoxicated person.

(3) Unless otherwise permitted by law, allowing or permitting any person under the age of 18 years to visit or loiter on any premises where alcoholic beverages are the principal commodity sold.

(4) Allowing or permitting any disturbance of the peace or improper conduct on the permitted premises. Improper conduct, as specified in this subsection, shall consist of convictions of chapter 54 of the Code of the City of New Orleans - the city's Criminal Code.

(5) Selling any alcoholic beverage not allowed by the city alcoholic beverage permit.

(6) Employing anyone under the age of 18 years when the sale of alcoholic beverages constitutes the main business. Where the sale of alcoholic beverages does not constitute the main business, an employee under 18 shall not sell or dispense alcoholic beverages.

(7) Misstating or suppressing any fact in the application for the city permit.

(8) Operating a retail alcoholic beverage outlet in the city with any person whose alcoholic beverage permit has been revoked or denied, either as partner, agent, spouse, employer, employee, or interposed party.

(9) Failure to pay any sales, amusement or other excise taxes, liens, or fines due to the city or state in connection with the premises.

(10) Violation at the premises of any health or sanitation ordinance of the city or the state.

(11) Violation at the location of any provision of the comprehensive zoning ordinance, M.C.S., Ordinance Number 4,264, as amended; provided, however, that any premises which has acquired a nonconforming use for the sale of alcoholic beverages under such comprehensive zoning ordinance shall not be considered to be in violation thereof by reason of application for renewal of an existing permit or for a new permit if the business conducted on said premise has transferred to a new party, except if such alcoholic beverage permit has not been legally used continuously for a period of six months or more at such location.

(12) Violation at the premises of any of the provisions of the city building code.

(13) Violation at the premises of any special condition, restriction, or proviso relative to land use or sale of alcoholic beverages at the premises imposed by ordinance of the council or specifically contained in any alcoholic beverage permit for the premises.

(14) Conviction of the permit holder of a felony, or the knowing retention of a manager convicted of a felony, under the laws of the United States or any state; or the knowing retention of an employee of the permit holder that is convicted of a felony committed on the permitted premises or in connection with the business. If a juridical entity, a permit holder includes: all partners, officers and directors and all stockholders or members owning in the aggregate more than ten percent of the stock or of the membership interest in a limited liability company and the person or persons who shall conduct or manage the business.

(15) Fraud on the part of an administrative official or employee or on the part of the applicant in connection with the issu-

ance of an alcoholic beverage permit for which, absent such fraud, the permit would not otherwise have been issued.

(16) Error or mistake on the part of an administrative official or employee or on the part of the applicant in connection with the issuance of an alcoholic beverage permit for which, absent such error or mistake, the permit would not otherwise have been issued.

(17) Determination of the existence of a public nuisance, as defined in titles 13, 14 and 40 of Louisiana Revised Statutes or any other applicable law, by a court of competent jurisdiction.

(18) Accepting food coupons distributed by the United States Department of Agriculture as payment for alcoholic beverages and/or tobacco products.

(19) Failing to provide the required information, pursuant to section 10-126, alerting patrons of the possible dangers to infants born to women who consume alcoholic beverages during pregnancy.

(20) Maintaining or creating a nuisance within the meaning of article 667 of the Louisiana Civil Code.

(21) Molesting passersby as prohibited in section 10-158.

(22) Three or more violations of litter ordinances within a period of one year.

(23) Maintaining and operating a retail alcoholic beverage outlet in the city where two or more instances of "drug related criminal activity" or "criminal activity involving violence or weapons" or "maintenance of a nuisance", have occurred as defined in R.S. 13:4711, or weapons on or around the premises within a five-year period, and where the permit holder is deemed responsible or failed to take reasonable action to prevent such conduct. This provision is not intended to penalize an ABO that cooperates with law enforcement in investigating suspected illegal activity.

(24) Failure to comply with requests for audits or installment payments for sales tax, liens, or fines.

(25) Any other violation of this chapter.

(26) Sale without permit. To sell or offer for sale at wholesale or at retail any of the articles taxed in this chapter without first having obtained a city and state permit, and maintaining both at all times during sale(s).

(27) Violation of Code or rules. To violate any lawful rule or regulation made pursuant to this chapter, or violation(s) of the health or sanitary regulations of the City Code or any other provisions that ensure that the business does not disturb the peace or improperly operate.

(28) Refusal of inspection. To refuse to allow, on demand, the department of finance, department of safety and permits, or any office or agent of the city to make at any time a full inspection of any place of business where any of the articles taxed in this chapter are sold or otherwise to hinder or prevent such inspection.

(29) Concealing violations. To use any artful device or deceptive practice to conceal any violation of this chapter, or to mislead any agent of a department tasked with the enforcement of this chapter, or to do any other act tending to defraud the city of its revenue.

(30) Failure to produce invoices. For any retail dealer or his agent or employee to fail to produce, on demand of the department of finance, all invoices of alcoholic beverages bought by him or received at his place of business within six months prior to such demand, unless he can show by satisfactory proof that the nonproduction of such invoices was due to providential or other causes beyond his control.

(31) False invoices. For any person to make, use, present or exhibit to the department of finance or any of its agents any invoices of alcoholic beverages which bear an

untrue date or falsely state the nature or quantity of the goods listed on the invoices as provided by this chapter.

(32) State revocation. If the state suspends or revokes or fails to renew an outlet's permit for the sale of alcoholic beverages.

(33) Intentionally allowing or permitting illegal gambling on the premises.

(b) Allowing or permitting of any of the practices set forth herein provides cause for the alcoholic beverage control board to suspend or revoke a permit, and/or issue remedial sanctions to the permit holder, his servant, agent or employee(s).

(c) The causes for revocation, suspension, and/or for remedial sanctions being imposed set forth in this section shall also constitute penal violations of this Code and shall be in addition to any other regulations or prohibitions now contained in this chapter, except nonpayment of excise taxes.

(Code 1956, § 5-58.1(b)—(e); M.C.S., Ord. No. 17,515, § 1, 5-2-96; M.C.S., Ord. No. 18,059, § 1, 2-6-97; M.C.S., Ord. No. 18,060, § 1, 2-6-97; M.C.S., Ord. No. 21589, § 1, 7-1-04; M.C.S., Ord. No. 22554, § 1, 3-1-07; M.C.S., Ord. No. 23646, § 1, 7-23-09; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law reference—Acts prohibited on licensed premises, R.S. 26:90, 26:286.

Sec. 10-158. Molesting passersby.

City retail alcoholic beverage permits issued to retail dealers in connection with the sale of alcoholic beverages of low or high alcoholic content may be suspended or revoked by the alcoholic beverage control board whenever the owner, operator or manager of any establishment whose principal business is the sale of alcoholic beverages for consumption on the premises, or any other person, for or on behalf of such owner, operator or manager, shall permit or allow any doorman, barker, solicitor or other representative or employee of such establishment to touch, grab, manhandle or molest, by the use of any obscene gestures or words, or otherwise, any passersby for the purpose of importuning, inducing, persuading or soliciting such passersby to enter such establishment for the purpose of purchasing any merchandise sold therein, or witnessing any form of entertainment which may be staged therein.

(Code 1956, § 5-58.2)

Sec. 10-159. Illegal gambling prohibited on premises; possession of federal wagering stamps.

(a) No person holding an alcoholic beverage permit and no servant, agent or employee of such a permittee shall intentionally conduct illegal gambling as defined by law on the premises described in the application for the permit.

(b) No person holding an alcoholic beverage permit and no servant, agent or employee of such a permittee shall be the holder of a federal wagering stamp. Any unlawful act or violation of any of the provisions of this section upon the part of any manager, employee, officer, director or stockholder of any applicant or holder of a permit shall not be cause for suspension, revocation or denial of a permit unless it shall appear that the applicant or the holder of a permit had guilty knowledge thereof, or after being informed of such violation fails to take immediate action to prevent a recurrence of such a violation or violations by the person responsible for such violation.

(Code 1956, § 5-73)

State law reference—Similar provisions, R.S. 26:90(6), 26:286(6).

Sec. 10-160. Fines and penalties.

(a) Relative to monetary and taxation violations of this chapter, the alcoholic beverage control board may revoke or suspend an outlet's alcoholic beverage permit, and/or impose one or more of the following remedial sanctions in addition to or as an alternative to any penalty available by law:

(1) The first violation of any such provision of this article shall be punishable by a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both. The second or any subsequent offense of any such provision of this article shall be punishable by a

fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both. Each day that any violation of this article shall continue shall constitute a separate offense.

(2) Bond for payment of fines.

(b) Relative to all other violations, the alcoholic beverage control board may revoke or suspend an outlet's alcoholic beverage permit, and/or impose one or more of the following remedial sanctions in addition to or as an alternative to any penalty available by law:

(1) The first violation of any such provision of this article shall be punishable by a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both. The second or any subsequent offense of any such provision of this article shall be punishable by a fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both. Each day that any violation of this article shall continue shall constitute a separate offense.

(2) Limitations on operating hours.

(3) Limitations on the use of the premises.

(4) Institution of security measures at the premises, including:

a. Requiring that the alcoholic beverage outlet install video surveillance systems outside the premises, as dictated by the city, that are capable of archiving video footage for a period of not less than 30 days;

b. Installing lighting systems on the exterior of the premises and/or around the perimeter of the premises; and/or

c. Requiring security guards on premises during particular days/times.

(5) Sound proofing measures.

(6) Bond for payment of fines.

(7) Augmenting litter abatement measures.

(c) An outlet may petition the board for an order modifying or terminating a remedial sanction that has been in effect for a period of at least one year. An applicant whose petition for a modification or termination of a remedial sanction has been denied may not reapply for such order before one year from the date of denial by the board.
(M.C.S., Ord. No. 18,050, § 1, 2-6-97; M.C.S., Ord. No. 28191, § 1, 10-3-19; M.C.S., Ord. No. 30252, § 1, 3-27-25)

Sec. 10-161. Impact of state suspension or revocation.

(a) In accordance with La. R.S. 26:75, no person shall do any act for which a permit is required by this chapter or by Title 26 of the Louisiana Revised Statutes unless he or she possesses proper state and local permits. If a permit holder no longer possess a current and valid state license, any permit issued pursuant to this chapter shall be suspended during the period that the permit holder does not possess a current and valid state permit.

(b) Except when prompted by state action, the alcoholic beverage control board will send written notice of any decision to suspend or revoke an alcoholic beverage permit within three business days of the signing of the board's judgment, and provide such decision to those state officers, departments, or agencies with jurisdiction over or interest in such permits, including but not limited to the Louisiana Office of Alcohol and Tobacco Control, requesting that the state take similar action.
(M.C.S., Ord. No. 28191, § 1, 10-3-19)

Secs. 10-162—10-185. Reserved.

ARTICLE III. RESTRICTIONS AND REGULATIONS

DIVISION 1. GENERALLY

Sec. 10-186. Closure of bars under certain circumstances.

The mayor or the council may, on election days, in the case of riots, fights and disturbances

of any kind; and whenever in the judgment of the mayor or the council it becomes necessary for the maintenance of peace and the preservation of public order, close barrooms or drinking houses. The refusal or neglect of any person to close any barroom or drinking house shall constitute a violation of this chapter and be a misdemeanor. (Code 1956, § 5-79)

Cross reference—Mayor, § 2-31 et seq.

State law reference—Proclamation of state of emergency, R.S. 14:329.6.

Sec. 10-187. Restrictions on use of force by persons employed by bars, lounges, and nightclubs located within the Vieux Carré.

(a) Persons employed by bars, lounges, and nightclubs located within the Vieux Carré may not use any more physical force than necessary to protect themselves or others, including the patrons of the establishment, in accordance with the following specifications:

(1) The use of force or violence by an employee of a bar, lounge, or nightclub upon the person of another is justifiable only when committed for the purpose of preventing a forcible offense against a person or a forcible offense or trespass against property in a person's lawful possession; provided that the force or violence used must be reasonable and necessary to prevent such offense.

(2) The use of a sleeper choke hold, which is defined as compression of the neck by the fist or other object used to occlude the upper airway resulting in collapse of the airway and the carotid arteries causing a decrease in oxygen to the brain, by any employee of a bar, lounge, or nightclub while in the actual discharge of their duties, is strictly prohibited.

(b) Every person employed by a bar, lounge, or nightclub located within the Vieux Carré in a capacity in which the job duties, in whole or in part, involve providing security, within 45 days after commencing employment, must successfully complete every two years the training course required by the Louisiana Responsible Vendor Program, R.S. 26:931 through 26:939, which shall include security personnel training modules and an appropriate course content for early identification and risk minimization of alcohol-related disorderly conduct and any other

matters which compromise internal safety during business operations. This shall be in addition to the server training requirements of the Louisiana Responsible Vendor Program.

(c) In any instance when any physical force is necessary to overcome resistance or aggression, or to otherwise gain control of a patron or others, the employee shall complete a "use of force report," which shall be executed on a form provided by the alcoholic beverage control board. The report shall be maintained on the premises for a period of three years and shall be available for review by the New Orleans Police Department or any authorized law enforcement agency upon request. In any case where injury has occurred, the New Orleans Police Department shall be immediately notified.

(d) It shall be unlawful for any person except owner/manager employed by a bar, lounge, or nightclub located within the Vieux Carré to have on his person a firearm, or other instrumentality customarily used or intended for probable use as a dangerous weapon, while in the actual discharge of their duties.

(e) Upon receipt of an application for employment, a criminal background check shall be performed by the bar, lounge, or nightclub located within the Vieux Carré prior to hiring any individual in a capacity in which the job duties, in whole or in part, involve providing security.

(f) Each owner of a bar, lounge, or nightclub located within the Vieux Carré has an affirmative obligation to secure written acknowledgement from every employee that he/she has received and read a copy of this section and that he/she understands said law. The employee's signed acknowledgement must remain on the premises at all times.

(g) Any time that an officer of the New Orleans Police Department arrives on the scene of any incident at a bar, lounge, or nightclub located within the Vieux Carré, the owner(s)/employee(s) of the establishment must immediately cease any and all use of force and permit the New Orleans Police Department to assume control of enforcement procedures.

(h) Any city alcoholic beverage permit shall be subject to suspension, revocation, or other remedial sanctions as set forth in section 10-160 for any violation of the provisions of this section.

(i) The provisions of this section shall only apply to bars, lounges, and nightclubs located between the river, the uptown side of Esplanade Avenue, the riverside of Rampart Street and the lower side of Iberville Street. The provisions of this section are not intended to apply to restaurants and hotels as defined by the occupational license even though they might have a licensed bar on premises.
(M.C.S., Ord. No. 22027, § 1, 8-4-05)

Secs. 10-188—10-210. Reserved.

DIVISION 2. LOCATION OF ESTABLISHMENT

Subdivision I. Generally

Secs. 10-211—10-235. Reserved.

*Subdivision II. Near Schools, Churches, Playgrounds and Public Libraries**

Sec. 10-236. Restrictions as to property near schools, place of worship, etc.

(a) No Class A permits other than Class A - Restaurant, Class A - Hotel, or Class A - Educational permits shall be granted to any alcoholic beverage outlet within a 300 foot radius of any playground, place of worship, public library, or school. The provisions of this section shall not apply to legal ABO locations that are currently and validly permitted to sell alcoholic beverages on the effective date of this ordinance. These provisions are further exempted as follows:

(1) Those nonprofit organizations operating upon any city playground or park which sells low content alcoholic beverages during scheduled athletic recreational

*__State law reference—__Authority to limit location of establishment, R.S. 26:81, 26:281.

and/or festival events under a concession rights agreement issued by the department of recreation;

(2) Those nonprofit church or school related or associated organizations or groups which conduct on such church or school property fairs, festivals, meetings or other similar events under and by the authority of the church or school, whose proceeds are used or intended to be used for the benefit of the related church or school;

(3) Any person or corporation who are within the 300-foot prohibited limit, and who obtain by approval of a sworn affidavit of not less than 75 percent of the property owners within such 300 foot radius as recorded by the Assessor of Orleans Parish.

(b) The word "school" as used in this section shall not include a school for business education conducted as a business college or school within the city.

(Code 1956, § 5-45; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Cross reference—Streets, sidewalks and other public places, ch. 146.

Sec. 10-237. Restrictions on retail sales of package liquor near place of worship, schools, etc.

(a) No permit shall be granted for the opening of any use that includes the retail sales of packaged alcoholic beverages within a 300 foot radius of any playground, place of worship, public library, or school.

(b) The provisions of this section shall not apply to a use that includes the retail sales of package alcoholic beverages where the wholesale cost of package liquor stocked and displayed does not exceed 15 percent of the wholesale cost of other merchandise stocked and displayed and where package liquor display does not constitute more than ten percent of all display area and where package liquor is not advertised outside or off the premises. Any permit obtained under this subsection shall be limited to the type or types of establishments represented in the original application. A sworn statement of continued use shall be required before each periodic renewal of such permit and the operation of any additional type or variation of type shall be a violation of this section and cause for the immediate revocation of such license by the department of safety and permits.

(c) The provisions of this section shall not apply to legal ABO locations that are currently and validly permitted to sell alcoholic beverages on the effective date of this ordinance.

(Code 1956, § 5-45.01; M.C.S., Ord. No. 27737, § 1, 4-19-18; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-238. How distance measured.

(a) Pursuant to La. R.S. 26:81(C)(2) the 300-foot radius provided for in sections 10-236 and 10-237 shall be measured as a 300 foot radius from all lot lines of a lot upon which the establishment seeking to be licensed will be located, to the nearest point of the property line of a playground, place of worship, public library, or school.

(b) In section 10-236 and 10-237, "schools" does not include university or vocational education facilities as defined in the Comprehensive Zoning Ordinance.

(c) It shall be unlawful for any person or any other legal entity who is engaged in the operation of any barroom, saloon, cabaret or other place where alcoholic beverages are sold at retail, to be consumed on the premises, to keep or allow to be kept any benches or seats on the sidewalks in the vicinity of any such business establishment.

(d) If a retail or wholesale business has an interruption of the continuity of business for a period in excess of six months, in order to reopen for business, the requirements set forth above must be complied with.

(e) The restrictions contained in this section do not apply to premises which were maintained continuously as a bona fide hotel, railway car or fraternal organization for a period of one year prior to the passage of Ordinance No. 18,537, C.C.S.

(Code 1956, § 5-46; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law reference—Similar provisions, R.S. 26:81, 26:281.

Sec. 10-239. Section 10-236 not applicable to hotels, etc.

The restrictions contained in section 10-236 do not apply to premises which are maintained as a bona fide hotel, restaurant, fraternal organization, bus terminal or railroad station, nor to any premises licensed to deal in alcoholic beverages for a period of one year prior to May 1, 1953.
(Code 1956, § 5-47)

Secs. 10-240—10-260. Reserved.

*Subdivision III. Residential Districts**

Sec. 10-261. Alcoholic beverage outlets prohibited in residential districts.

No alcoholic beverage outlet shall be granted a permit to sell alcohol in any residential district unless expressly authorized by the Comprehensive Zoning Ordinance of the city, now or hereafter amended.
(Code 1956, § 5-45.1; M.C.S., Ord. No. 17,239, § 1, 10-19-95; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-262. Exceptions to section 10-261.

(a) Permits may be granted for the sale of beverages of high or low alcoholic content, to be consumed on the premises, in single-family residential districts to those private recreational clubs operated exclusively for the use of private members and their guests provided that such club must be located on a site having a minimum of three acres.

(b) Permits may be granted for wine tastings and limited retail sale of wine in single-family residential districts and rural residential districts to farms at least ten acres in size that include cultivation, processing, and fermentation of grapes, berries or citrus fruits relative to the products raised on the premises.

(c) Permits may be granted to approved non-residential uses authorized in Regional Parks pursuant to the standards of the comprehensive zoning ordinance.
(Code 1956, § 5-45.2; M.C.S., Ord. No. 22191, § 1, 4-6-06; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-263. Package liquor stores in residential districts prohibited.

(a) No permit shall be granted or license issued for the establishment or opening of any package liquor store in any residential district of the city as defined in the comprehensive zoning ordinance, as now or hereafter amended. The provisions of this section shall not be construed to apply to any premises which, at the time of the passage of this section, were lawfully operated as bona fide package liquor stores, and for which the proper licenses and permits have been granted.

(b) For the purpose of this section package liquor stores will mean any place where a person or dealer sells alcoholic beverages in closed containers, prepared for transportation and consumption off the premises.

(c) The provisions of this section shall not apply to retail and service facilities operating as an accessory use within a building containing an approved planned development.
(Code 1956, § 5-45.3; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Secs. 10-264—10-285. Reserved.

Subdivision IV. Reserved†

Secs. 10-286—10-310. Reserved.

Subdivision V. Reserved‡

Secs. 10-311—10-340. Reserved.

*__State law reference__—Authority to limit location of establishment, R.S. 26:81, 26:281.

†__Editor's note__—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed Subdiv. IV, § 10-286, which pertained to Area near new French Market—Sale, etc., of alcoholic beverages in area prohibited and derived from Code 1956, § 5-48; M.C.S, Ord. No. 23568, § 1, adopted June 4, 2009.

‡__Editor's note__—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed Subdiv. V, §§ 10-311—10-318, which pertained to Vieux Carré Boundaries as defined in section 166-2 of the Code of the City of New Orleans and derived from Code 1956, §§ 5-49—5-56; M.C.S., Ord. No. 18,926, § 1,

*Subdivision VI. Reserved**

Secs. 10-341—10-365. Reserved.

DIVISION 3. AGE

Sec. 10-366. Sales to persons under 21.

(a) It shall be unlawful for any person holding an alcoholic beverage permit issued pursuant to this chapter or any agent, associate, employee, representative, or servant of any such person to sell or serve alcoholic beverages to any person under the age of 21 years unless such person submits identification listed in section 10-370 which establishes the age of the person as 21 years or older and the authenticity or correctness of the identification appears valid on its face.

(b) Upon the first conviction of a violation of this section, the offender shall be punished by a fine of not less than $100.00.
(Code 1956, § 5-62; M.C.S., Ord. No. 17,515, § 1, 5-2-96)

State law reference—Acts prohibited on licensed premises, R.S. 26:90A(1), 26:286A(1).

Sec. 10-367. Persons under 18 not to sell liquor.

No person under the age of 18 years shall be employed in an establishment mentioned in this chapter for the sale and handling of alcoholic beverages.
(Code 1956, § 5-63; M.C.S., Ord. No. 17,515, § 1, 5-2-96)

State law reference—Acts prohibited on licensed premises, R.S. 26:90A(8), 26:286A(8).

Sec. 10-368. Persons under 18 not to play pool, billiards or video poker on premises.

No person shall be permitted to play pool, billiards or video poker on the licensed premises who is under 18 years of age.
(Code 1956, § 5-64; M.C.S., Ord. No. 16,724, 10-20-94; M.C.S., Ord. No. 17,515, § 1, 5-2-96)

State law reference—Acts prohibited on licensed premises, R.S. 26:90A(10), 26:286A(10).

Sec. 10-369. Persons under 18 not permitted on premises.

No person under the age of 18 years shall be invited or permitted on premises wherein the business of selling liquor is conducted as the principal business.
(Code 1956, § 5-65; M.C.S., Ord. No. 17,515, § 1, 5-2-96)

State law reference—Acts prohibited on licensed premises, R.S. 26:90A(3), 26:286A(3).

Sec. 10-370. Proof of age.

(a) For the purposes of this chapter, only the following documents shall constitute valid proof of a person's age, which proof shall establish the age of the person as 21 years of age or older:

(1) A valid, current, state driver's license which contains a photograph of the person presenting the driver's license.

(2) A valid, current driver's license of another state which contains a photograph of the person and the birthdate of the person submitting the driver's license; provided that, for any state that does not include a photograph on its driver's license, a driver's license of that state may be accepted as proof of age if a supplementary identification card containing a photograph of the holder, such as a student identification card, is also presented.

(3) A valid, current, special identification card issued by the state pursuant to R.S. 40:1321 containing a photograph of the person submitting the identification card.

(4) A valid, current passport or visa issued by the United States of America, or

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adopted Oct. 6, 1998; M.C.S., Ord. No. 18,927, § 1, adopted Oct. 6, 1998; M.C.S., Ord. No. 18,928, § 1, adopted Oct. 6, 1998.

***Editor's note—**M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed Subdiv. VI, § 10-341, which pertained to Central Business District Area and derived from Code 1956, § 5-56.1; M.C.S., Ord. No. 16,748, adopted Nov. 3, 1994; M.C.S., Ord. No. 16,998, § 1, adopted April 20, 1995; M.C.S., Ord. No. 17,197, § 1, adopted Sept. 7, 1995; M.C.S., Ord. No. 18,009, § 1, adopted Jan. 9, 1997; M.C.S., Ord. No. 18,464, § 1, adopted Oct. 1, 1997; M.C.S., Ord. No. 18,537, § 1, adopted Nov. 25, 1997.

another country or nation, that contains a permanent attached photograph of the person and date of birth of the person submitting the passport or visa.

(5) A valid, current military or federal identification card issued by the United States of America containing a photograph of the person and date of birth of the person submitting the identification card.

(b) No driver's license or special identification card (I.D. card) as described in subsection (a) of this section shall be accepted as proof of age unless the I.D. card appears to be valid, authentic, and correct on its face and no I.D. card shall be accepted; if the I.D. card is expired, defaced, mutilated, altered, or does not depict a photograph of the person who presents the I.D. card as proof of age; provided that, a driver's license of another state which does not contain a photograph may be accepted as proof of age in accordance with subsection (a)(2) of this section.

(c) Except as otherwise provided in this section, no other document including but not limited to a birth certificate, student identification card, or selective service card shall be accepted as or constitute proof of age for the purposes of this chapter.

(Code 1956, § 5-65.1; M.C.S., Ord. No. 17,515, § 1, 5-2-96)

State law reference—Acts prohibited on licensed premises, R.S. 26:90A(1), 26:286A(1).

Sec. 10-371. Dancers and performers under 21 not permitted.

No servant, agent, independent contractor, or employee under the age of 21 shall be allowed or permitted to dance, perform, or entertain while unclothed or in such attire, costume, or clothing that does not completely and opaquely cover genitals, pubic region, buttock, and female breast below a point immediately above the top of the areola. No employee of such an establishment shall be under the age of 18. It shall be the responsibility of the business owners and operators of an establishment where alcoholic beverages of high or low alcoholic content are sold to prohibit any servant, agent, independent contractor, or employee of the establishment from violating this section.

If the alcoholic beverage control board determines that an alcoholic beverage outlet is in violation of this section, the penalties shall be as follows:

First offense: The alcoholic beverage permits shall be suspended for a period of no less than seven calendar days.

Second offense: The alcoholic beverage permits shall be suspended for a period of no less than 30 calendar days.

Third offense: Alcoholic beverage permits shall be suspended for a period of no less than 90 calendar days.

Fourth offense: Alcoholic beverage permits shall be suspended for one year or revoked, as determined by the board.

Nothing contained herein shall prohibit the alcoholic beverage control board from imposing additional remedial sanctions as set forth in section 10-160.

(Code 1956, § 5-72.1; M.C.S., Ord. No. 26751, § 1, 1-7-16)

State law reference—Acts prohibited on licensed premises, R.S. 26:90(D), 26:286(D).

Secs. 10-372—10-400. Reserved.

DIVISION 4. TIME AND PLACE

Sec. 10-401. Sales restricted to within premises.

(a) Any location with an alcoholic beverage permit issued pursuant to this chapter is prohibited from conducting sales through a window, door, or other opening to a customer located on the sidewalk or other public way.

(b) The provisions of this section shall not apply to the sale of alcohol which is an incidental service to online grocery ordering from a store with a valid Class B retail permit.

(Code 1956, § 5-18; M.C.S., Ord. No. 18,144, § 1, 3-20-97; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-402. Restroom facilities required for customers.

No person, partnership, firm, corporation or dealer engaged in the sale of alcoholic beverages shall engage in such activity unless the premises at which such activity is to be conducted has a restroom accessible and available to the customers and staff. Each restroom shall be equipped with a commode and a sink with the sink being connected to hot and cold running water. Soap and sanitary towels, or other appropriate hand-drying devices, shall be available at the sink at all times. Common towels are prohibited.
(M.C.S., Ord. No. 21548, § 1, 5-20-04)

Sec. 10-403. Sidewalk seats not permitted without permit.

(a) No person owning, operating, or having control of an alcoholic beverage outlet shall place benches or seating on the public sidewalks outside the business establishment without a valid sidewalk use permit, issued by the city in accordance with section 146-531 et seq.

(b) In no event shall an adult performance venue authorized to sell alcoholic beverages for consumption on premises be permitted to place any benches or seating on the public sidewalks outside the business establishment.
(Code 1956, § 5-68; M.C.S., Ord. No. 28191, § 1, 10-3-19)

State law references—Location of business limited, R.S. 26:81, 26:281; local regulatory ordinances, R.S. 26:493.

Sec. 10-404. Consumption of alcoholic beverages in parking lots prohibited.

Any person possessing an alcoholic beverage permit shall not permit or allow the sale or consumption of alcoholic beverages on the parking or driveway area of the licensed premises except during carnival parade season.
(Code 1956, § 5-68.1; M.C.S., Ord. No. 18,067, § 1, 2-6-97)

State law references—Location of business limited, R.S. 26:81, 26:281; local regulatory ordinances, R.S. 26:493.

Sec. 10-405. Sales of beverages on Sundays.

Pursuant to the authority contained in R.S. 51:195, any person may engage at retail on Sundays to the extent authorized by and in accordance with the provisions of this Code, the comprehensive zoning ordinance for the city, and other applicable ordinances of the city.
(Code 1956, § 5-79.1)

Secs. 10-406—10-425. Reserved.

DIVISION 5. OTHER PROHIBITED ACTS*

Sec. 10-426. Prohibited use of federal food stamps coupons as payment for alcoholic beverages and/or tobacco products.

It shall be unlawful for any person holding an alcoholic beverage permit or any servant, agent or employee of such a permittee, to accept food coupons distributed by the United States Department of Agriculture as payment for alcoholic beverages and/or tobacco products.
(Code 1956, § 5-79.2)

Sec. 10-427. Sales to intoxicated persons.

No alcoholic beverage shall be sold or served to any person who is obviously intoxicated.
(Code 1956, § 5-61)

State law reference—Similar provisions, R.S. 26:90(A)(2), 26:286(A)(2).

Sec. 10-428. Enlargement of premises without consent prohibited.

Enlargement or modification of the licensed premises is prohibited without prior approval having been inscribed on the permit by the department of safety and permits.
(Code 1956, § 5-69; M.C.S., Ord. No. 27737, § 1, 4-19-18)

Sec. 10-429. Anaesthetics not to be kept on premises.

No person owning, operating or having control of any place where alcoholic beverages are sold shall own, possess, have, use or permit to be used or permit to be kept on or brought on such premises any anesthetics, including, but not

*__State law reference—__Acts prohibited on premises, R.S. 26:90, 26:286.

being limited to, rohypnol, chloral hydrate, ether, chloroform or any other chemical substance that can incapacitate a person.
(Code 1956, § 5-70; M.C.S., Ord. No. 28191, § 1, 10-3-19)

Sec. 10-430. Reserved.

Editor's note—M.C.S., Ord. No. 28191, § 1, adopted Oct. 3, 2019, repealed § 10-430, which pertained to prostitution on premises prohibited and derived from Code 1956, § 5-71.

Sec. 10-431. Lewd, etc., behavior prohibited.

No person shall be permitted to create any disturbance of the peace, use obscene language, behave in a lewd, immoral or improper manner or conduct entertainment of such a nature in any business premises mentioned in this chapter.
(Code 1956, § 5-72)

State law reference—Similar provisions, R.S. 26:90(B), 26:286(B).

Sec. 10-432. Illegal to employ persons to solicit business.

It shall be unlawful for any owner, operator or manager of an establishment selling alcoholic beverages for consumption therein to employ or allow on such premises or to acquiesce in the presence on such premises of any person, whether paid or unpaid, for the purpose of requesting, inducing or soliciting any patron or person present on the premises to purchase for himself or for the solicitor or any person any beverage or other product sold by such establishment for consumption on the premises.
(Code 1956, § 5-74)

State law reference—Similar provisions, R.S. 26:90(7), 26:286(7).

Sec. 10-433. Illegal to act as solicitor.

(a) It shall also be unlawful for any person while in any establishment described in section 10-432 to solicit or induce any person on such premises to purchase for himself or for such solicitor or any other person any beverage or other product of whatever kind sold in such establishment and, for the purpose of this chapter, it shall be immaterial whether or not such solicitor realizes or expects to realize any profit or reward as a result of any such solicitation.

(b) The provisions of this section shall not apply to any proprietor, manager, bartender or waiter, whether they be male or female, when those persons are asking the customer if he or she desires to purchase a drink or product for the customer, himself, or herself. But the proprietor, manager and the employees shall not request drinks or products for themselves or any other person other than the customer being served.
(Code 1956, § 5-75)

Sec. 10-434. Nudity, sexual conduct of employees.

(a) The following acts or conduct on the premises of licensed alcoholic beverage outlets are prohibited:

(1) Employment or use of any person in the sale or service of alcoholic beverages in or upon the licensed premises while such person is unclothed or in such attire, costume, or clothing as to expose to view any portion of the female breast below the top of the areola or of any portion of the pubic hair, anus, cleft of the buttocks, vulva, or genitals.

(2) Employment or use of the services of any hostess or other person to mingle with the patrons while such hostess or other person is unclothed or in such attire, costume, or clothing as described in subsection (1) of this subsection.

(3) Encouraging or permitting any person on the licensed premises to touch, caress, or fondle the breasts, buttocks, anus, or genitals of any other person.

(4) Permitting any employee or person to wear or use any device or covering, exposed to view, which simulates the breast, genitals, anus, pubic hair, or any portion thereof.

(b) It shall be unlawful for any alcoholic beverage permittee to permit any person on the licensed alcoholic beverage outlet premises to perform acts of or acts which simulate:

(1) Sexual intercourse, masturbation, sodomy, bestiality, oral copulation, flagellation, or any sexual acts which are prohibited by law.

(2) The touching, caressing, or fondling of the breast, buttocks, anus, or genitals.

(3) The displaying of the pubic hair, anus, vulva, genitals, nipple of the female breast.

(Code 1956, § 5-76)

State law reference—Similar provisions, R.S. 26:90(B) et seq., 26:286(B) et seq.

Sec. 10-435. Entertainment of burlesque or striptease shows to be from stage or platform.

All shows, acts, entertainment, dances, exhibitions or other form of entertainment presented in any place or establishment described in section 10-432 or elsewhere, wherein a striptease or burlesque performance is conducted or engaged in, shall be performed entirely upon a stage or platform which shall be raised at least 18 inches above the floor. Nothing contained in sections 10-186, 10-366 through 10-371, and 10-403 through 10-436 of this Code, as amended shall be construed as repealing section 54-253, M.C.S., Ordinance No. 828, as amended defining and prohibiting the offense of obscenity or any other part of this Code.

(Code 1956, § 5-76.2)

State law reference—Similar provisions, R.S. 26:90(E), 26:286(E).

Sec. 10-436. Penalty for second offense.

Any person who is convicted a second time for the violation of sections 10-432 to 10-434 shall be sentenced to a term of imprisonment of not less than 60 days nor more than 90 days and to a fine of not less than $50.00 and not more than $100.00, at the discretion of the court.

(Code 1956, § 5-77)

Secs. 10-437—10-470. Reserved.

ARTICLE IV. GALLONAGE TAXES*

DIVISION 1. GENERALLY

Secs. 10-471—10-500. Reserved.

DIVISION 2. IMPOSITION

Sec. 10-501. Rates of tax on beverages of high alcoholic content.

Excise or license taxes are imposed upon dealers of alcoholic beverages referred to in this article at the following prices and rates:

(1) Liquors and sparkling wines at the rate of $0.40 per standard wine gallon or fraction thereof.

(2) Still wines having an alcoholic content of 14 to 24 percent volume, at the rate of $0.10 per standard wine gallon or fraction thereof.

(3) Still wines having an alcoholic content of under 14 percent by volume, at the rate of $0.05 per standard wine gallon.

(4) Barrels containing not over 50 gallons for still wines containing 14 to 24 percent of alcohol by volume, at the rate of $0.10 per standard wine gallon in such containers.

(5) Kegs containing not over five gallons and still wines containing 14 to 24 percent alcohol by volume, at the rate of $0.10 per standard wine gallon in such containers.

(6) Barrels containing still wines having under 14 percent of alcohol by volume, at the rate of $0.05 per standard wine gallon in such containers.

(7) Kegs containing not over five gallons of still wines having under 14 percent of alcohol by volume, at the rate of $0.05 per standard wine gallon in such containers.

*__Cross reference—__Taxation, ch. 150.

State law reference—Gallonage taxation, R.S. 26:341 et seq.

(8) Barrel, keg or bottle for still wines having an alcoholic content in excess of 24 percent by volume, at the rate of $0.40 per standard wine gallon.

(9) Beer, ale, stout, lager beer, porter and the like, together with any other beverages of high alcoholic content up to 24 percent of alcohol by volume shall take the same rate of tax as provided for in subsections (1) to (8) in this section.

(Code 1956, § 5-81; M.C.S., Ord. No. 27173, § 1, 11-3-16, eff. 1-1-17)

Sec. 10-502. Additional tax on beverages of low alcoholic content.

In addition to all license taxes presently imposed, or permitted to be imposed, there is hereby levied a tax on dealers of all beverages of low alcoholic content, of $1.50 per standard 31-gallon barrel, or at a like rate of any other quantity or fractional parts of such beverages sold and consumed within the city, to be collected from dealers pursuant to section 10-511 of this division.

(Code 1956, § 5-82; M.C.S., Ord. No. 27173, § 1, 11-3-16, eff. 1-1-17)

State law reference—Similar provisions, R.S. 26:492.

Sec. 10-503. Sacramental wine not taxed.

No tax levied under this division shall apply to or be imposed upon any priest, minister, rabbi or other clergyman possessing or using wines for religious or sacramental purposes and no regulatory provisions contained in this chapter shall be construed as affecting or in any way applying to wines in the possession of any priest, minister, rabbi or other clergyman in the regular course of his religious duties and any tax so collected shall be refunded by the department of finance to such priest, minister, rabbi or other clergyman under rules and regulations and after proof satisfactory to the department has been made that such taxes have been paid.

(Code 1956, § 5-83)

State law reference—Similar provisions, R.S. 26:421(E).

Sec. 10-504. Tax not applicable to sales to United States.

The tax imposed by this chapter shall not apply to sales to the United States Government or any agency or department thereof for bona fide use in any institution of such government or agency or department thereof when not acquired for purposes of barter or resale. When the tax is paid by the United States Government or any agency or department thereof, it shall be refunded by the city upon proper showing and authentic proof thereof satisfactory to the department of finance.

(Code 1956, § 5-84)

State law reference—Similar provisions, R.S. 26:422.

Sec. 10-505. Tax not applicable to imports in interstate commerce.

The tax imposed by this division shall not apply when an alcoholic beverage is brought into the city in interstate commerce, unless such shipment shall come to rest, in the city by arrival at its destination therein for delivery into the possession of the consignee.

(Code 1956, § 5-85)

Sec. 10-506. Liquor for export not taxed.

No tax is hereby levied on such alcoholic beverages produced or manufactured in or imported into the city for export or for sale outside of the city limits.

(Code 1956, § 5-86)

State law reference—Similar provisions, R.S. 26:366.

Sec. 10-507. Presumption that goods are for use in city.

It shall be presumed that all alcoholic beverages produced and manufactured in the city, imported into the city or held in the city by any person, are to be handled, distributed, sold, used or consumed within the city and are subject to the tax herein levied. But such presumption shall be prima facie only and subject to proof furnished to the department of finance.

(Code 1956, § 5-87)

State law reference—Similar provisions, R.S. 26:353.

Sec. 10-508. Illegal export sales taxable.

Any shipment by any person in the city of any alcoholic beverages for ultimate delivery to any person in another parish, municipality or other political subdivision in this state shall not, when

the local laws of such parish, municipality or political subdivision of this state prohibit the sale or traffic in alcoholic beverages therein, be recognized as a bona fide out-of-city shipment and the alcoholic beverages in question shall, in all respects, be taxable, and be otherwise subject to the provisions of this chapter.
(Code 1956, § 5-88)

Sec. 10-509. Liquor given away to be taxed.

When a person gives away any alcoholic beverage as a sample or for advertising or any other purpose whatever, it shall be taxed in the same manner as if it were sold, consumed, stored or otherwise used, distributed or handled in the city.
(Code 1956, § 5-89)

State law reference—Similar provisions, R.S. 26:352.

Sec. 10-510. Tax on less than half-pint container.

The tax levied in this division shall be required for a container having less than one-half pint by volume and when the tax computed at the rates herein prescribed shall be for a fraction less than a one-half pint by volume such fractional part shall be rated as not less than one-half pint.
(Code 1956, § 5-90)

Sec. 10-511. Who is liable for tax.

The taxes levied in sections 10-501 and 10-502 of this division shall be collected, as far as practicable, from the dealer who first handles the alcoholic beverages in the city. If for any reason the dealer who first handled the taxable alcoholic beverages has escaped payment of the taxes, those taxes shall be collected from any dealer in whose hands the taxable beverages are found.
(Code 1956, § 5-91; M.C.S., Ord. No. 27173, § 1, 11-3-16, eff. 1-1-17)

State law reference—Taxes collected from dealer, R.S. 26:344.

Sec. 10-512. Tax refundable in certain cases.

The department of finance may make and promulgate rules and regulations providing for the refund to a dealer of taxes paid on alcoholic beverages which:

(1) Being damaged and unfit for sale, are destroyed by such dealer under proper authorization or are returned to the dealer or manufacturer for credit to such dealer; or

(2) Are sold in interstate commerce or outside of the city on and after proper showing and authentic proof by the dealer, satisfactory to the department that such alcoholic beverages were destroyed, returned to the manufacturer or dealer, shipped interstate or sold outside of the city.

(Code 1956, § 5-92)

State law reference—Similar provisions, R.S. 26:347.

Sec. 10-513. Withdrawal of industrial alcohol tax free.

(a) Alcohol produced at any industrial alcohol plant or stored in any blended warehouse may, under permit and regulations, be withdrawn tax-free, as provided by existing laws, from such plant or warehouse for transfer to any denaturing plant for denaturation or may, under permit and regulations, before or after denaturing, be removed from any such plant or warehouse for any lawful tax-free purpose.

(b) Alcohol may be withdrawn, under permit and regulations, from any industrial plant or bonded warehouse tax free by the United States or any governmental agency thereof by any of the several states and territories or any municipal subdivisions thereof, or by the District of Columbia, for the use of any university or college of learning or laboratory exclusively in scientific research or for use in any hospital or sanitarium.
(Code 1956, § 5-93)

State law reference—Similar provisions, R.S. 26:423.

Secs. 10-514—10-535. Reserved.

DIVISION 3. COLLECTION*

Sec. 10-536. Authority of department of finance.

The department of finance shall collect all permit fees, delinquent fees and penalties and supervise and enforce the collection of all excise or license taxes, penalties, and delinquent fees that may be due under the provisions of this chapter.
(Code 1956, § 5-94)

State law reference—Secretary to collect taxes, R.S. 26:451.

Sec. 10-537. Collection by state department of revenue and taxation of excise tax on malt beverages.

(a) The excise tax of $1.50 per standard barrel of 31 gallons on malt beverages shall be collected by the secretary of the department of revenue and taxation, and the amount thereof collected and remitted by him to the department of finance in accordance with the provisions of R.S. 26:492.

(b) If a dealer in beverages of low alcoholic content fails to file a return and pay the tax due on the beverages within the time provided in R.S. 26:346, he shall be subject to a penalty of five percent on the amount of the tax if the period of delinquency is ten days or less or 20 percent on the amount of the tax if the period of delinquency is greater than ten days. If an attorney is called on to assist in collection, there shall be an additional sum due equal to ten percent of both the amount of the penalties and tax due.
(Code 1956, § 5-95)

Sec. 10-538. How tax on beverages of low alcoholic content collected.

The excise or license tax on beverages with a low alcoholic content shall be collected by direct payment monthly from bonded dealers, importers, and manufacturers.
(Code 1956, § 5-96)

*__State law reference—__Collection of taxes, R.S. 26:451 et seq.

Sec. 10-539. Rules and regulations for collection.

The department of finance may make and promulgate rules and regulations to provide for the collection of the excise or license taxes due on all alcoholic beverages taxable under the provisions of this chapter, so as to prevent any alcoholic beverages being sold, handled, used, imported, stored, distributed or consumed within the city without the tax prescribed in this chapter having been paid.
(Code 1956, § 5-97)

State law reference—Similar provisions, R.S. 26:453.

Sec. 10-540. Reserved.

Editor's note—M.C.S., Ord. No. 27737, § 1, adopted April 19, 2018, repealed § 10-540, which pertained to how funds collected; credited and derived from Code 1956, § 5-98.

Sec. 10-541. Price of stamps; quantity discount.

The director of the department of finance shall redeem all unaffixed tax stamps purchased by manufacturers and wholesalers purchased by such manufacturers and wholesalers in order to comply with the former provisions of this section requiring such purchases by making a refund in the amount of the face value of the stamps less any discount received at the time of the purchase of such stamps. The inventory of stamps now held by the manufacturers and wholesalers shall be refunded or applied as a credit to taxes due by them in ten equal monthly installments.
(Code 1956, § 5-101)

State law reference—Refunds, R.S. 26:347.

Sec. 10-542. Original containers not to be refilled.

It shall be a violation of this chapter for any person to refill an original container with an alcoholic beverage or to have in his possession any original container that has been refilled with a beverage of high alcoholic content, taxable under this chapter.
(Code 1956, § 5-104)

State law reference—Standards of fill, R.S. 26:351.

Sec. 10-543. Inspection of records to determine whether tax paid.

The department of finance may inspect any or all books, records and memoranda of any person including any common, public or contract carrier for the purpose of determining whether or not the taxes prescribed by this chapter have been paid.

(Code 1956, § 5-105)

State law reference—Examination of dealers' records, R.S. 26:357.

Sec. 10-544. Annual reports and remittances.

(a) Every wholesale dealer that delivers alcoholic beverages to retail dealers within the city shall submit to the department of finance an annual summary report by March 1st detailing the preceding year's sales. The annual summary report shall provide the following information:

1. The corporate/business name and address of each retail dealer sold alcoholic beverages by the wholesale dealer; and
2. A monthly breakdown of total alcohol sales, both high-alcohol and low-alcohol, sold to the retail dealer by category (for example: liquor, beer, wine).

The report shall be submitted in a form and manner prescribed by the department of finance. Failure to submit such report within 30 days from March 1st shall result in a penalty of $100.00 per day when such records are not produced for the first 90 days after March 1st, and $200.00 per day for each day between 91—180 days. For any wholesale dealer who fails to produce such records after 181 days, the penalty shall be $500.00 per day.

(b) The taxes levied in this article shall be due and paid by every wholesaler, manufacturer or dealer with the gallonage tax report referred to in subsection (a) of this section and shall be computed upon the basis of the number of gallons sold, or otherwise disposed of by every wholesaler, manufacturer or dealer during the preceding calendar month. Gallons sold or disposed of shall be deemed conclusively to be gallons on hand at the beginning of the calendar month plus purchases during the calendar month less gallons on hand at the end of the calendar month, less any exempt sales.

(c) The monthly gallonage tax report required by this section shall be made on forms prescribed and furnished by the director of the department of finance and shall include such information as the director of the department of finance may by rule require. Reports shall be accompanied by the taxpayer's remittance in full of the correct amount of taxes due and owing for the period covered by the report.

(d) For accurately reporting and timely remitting the taxes all taxpayers shall be allowed a discount of six percent of the amount of the tax otherwise due. One-sixth of the discount shall be paid by the dealer to the director of the department of finance and shall be retained by the director to defray the cost of administration. When a check or other instrument given in payment of taxes is returned unpaid, the discount is forfeited.

(Code 1956, § 5-105.1; M.C.S., Ord. No. 27065, § 2, 9-8-16)

State law reference—Payment and reporting of taxes, R.S. 26:354—26:360.

Sec. 10-545. Examination of records to determine imports, exports, etc.

The department of finance may examine at all reasonable hours the books, records and other documents of all such persons, including dealers, transportation companies, agencies or firms operating in the city, whether such companies, agencies or firms conduct their business by rail, water or otherwise, in order to determine what persons or dealers are importing or exporting, or otherwise shipping alcoholic beverages which are liable for the tax hereby imposed. If any such person shall refuse to permit such examination of its books, records or other documents, the city, through the department of finance or the council, may proceed by rule and require such person to show cause why the department should not be permitted to examine its books, records or other documents.

(Code 1956, § 5-106)

State law reference—Payment and reporting of taxes, R.S. 26:354—26:360.

Secs. 10-546—10-565. Reserved.

DIVISION 4. VIOLATIONS*

Sec. 10-566. Authority to search for violations.

The department of safety and permits may search and examine any warehouse, boat, store, storeroom, automobile, truck, conveyance, vehicle or other place of storage, except a private residence which may be searched only in the manner provided for by law, and any means of transportation, whenever there is probable cause to believe that the terms of this chapter have been or are being violated.
(Code 1956, § 5-107; M.C.S., Ord. No. 27737, § 1, 4-19-18)

State law reference—Authority to search, R.S. 26:371(C).

Sec. 10-567. Limitations on authority.

(a) Notwithstanding the provisions of section 10-566 no place, other than such as is open to the public, shall be invaded and searched except by an officer named in a search warrant issued by a competent court having the power of a committing magistrate, upon the filing with such court of an affidavit reciting that affiant has reason to believe and believes that the named place is being utilized as a site for the violation of the provisions of this chapter, together with such additional evidence as the court may require to make a prima facie case. No house, room or apartment used as, or which apparently is, a bona fide residence, shall be subject to invasion and search except by an officer designated in a search warrant issued by a competent court having the powers of a committing magistrate, upon the filing in such court of an affidavit by two reliable persons reciting that they have reason to believe and do believe that such place of residence is being used as a cloak or cover for a violation of the provisions of this chapter, and setting forth the specific violations being committed therein, together with such additional corroborating evidence as the court may, in its discretion, require to establish the probable existence of the alleged violation of this chapter.

(b) The court shall preserve in its records, subject to inspection at any time by the public, the affidavit hereinabove referred to.
(Code 1956, § 5-108)

State law reference—Similar provisions, R.S. 26:371(B), (D).

Sec. 10-568. When operator lives on premises.

Under the terms and conditions of this chapter, and the agreement under which permits are granted for such places of business, where the operator resides in or on the same premises and where the permit allows the storage or sale of alcoholic beverages anywhere on such premises, such premises are hereby declared to be entirely and completely commercial, so far as the agreement for the search of the entire premises is concerned (though this provision does not affect the zoning laws) and, as such, shall, notwithstanding the provisions of section 10-567 be subject to invasion and search without a search warrant, unless the holder of such permit specifically defines and limits the area in which such alcoholic beverages are to be stored or sold, in which case the area so defined shall not have any opening into any portion or part of the property used as residential, either through an adjoining room, hallway, stairs, yard or otherwise, but the commercial and residential parts of the premises must be completely separate and distinct from each other and divided and separated from each other by a solid partition from floor to ceiling without any openings whatever therein in order that such person or dealer may claim or demand a search warrant or for the term "bona fide residence" to apply to such case.
(Code 1956, § 5-109)

State law reference—Similar provisions, R.S. 26:371(B).

Sec. 10-569. Execution of search warrant.

Any warrant issued under this division shall be directed to a duly authorized peace officer and the premises described in the warrant shall be searched and all alcoholic beverages or any property used or designed or intended to be used in the keeping for sale or sale of any alcoholic

*__State law reference—__Forfeitures and penalties, R.S. 26:354 et seq.

beverages on such premises shall be seized by such officer and the keeper of such place and such other persons as may be involved in such violation or the person to whom such alcoholic beverages or property belongs shall be apprehended and brought before the court issuing the warrant, to abide the further orders of the court. The officer to whom the search warrant is directed shall make proper return thereon of the action taken thereunder, describing the alcoholic beverages or property so seized, if any.
(Code 1956, § 5-110)

State law reference—Execution of search warrant, R.S. 26:371(B).

Sec. 10-570. Seizure of vehicle used in transportation.

Any automobile, truck, boat, conveyance, vehicle or other means of transportation, other than a common carrier, caught or detected transporting any of the articles taxed by this chapter, without the proper permit or the required tax having been paid may be seized by the department of finance in order to secure it as evidence in a trial brought under this chapter.
(Code 1956, § 5-111)

State law reference—Similar provisions, R.S. 26:371(A).

Sec. 10-571. Disposition of property seized.

The alcoholic beverages or property seized under the provisions of sections 10-569 and 10-570 shall be held by the officer, without the right of having them released upon writ or claim, except alcoholic beverages seized in a bona fide dwelling house, which shall be released to their owner upon his giving bond, with good and solvent surety, for the value of such alcoholic beverages, conditioned for the return of such alcoholic beverages to the officer upon the order of the court. The court, after the trial of the accused, shall order all alcoholic beverages and property illegally held by the accused at the time of seizure to be immediately and publicly sold or destroyed by the sheriff or peace officer designated by the court.
(Code 1956, § 5-112)

State law reference—Similar provisions, R.S. 26:371(C).

Sec. 10-572. Claim by innocent owner or holder of lien.

Any person who:

(1) Claims title to any alcoholic beverage seized under the provisions of this chapter, or claims to be entitled to any lien existing thereon prior to the date of seizure; and

(2) Did not in any respect participate in the violation of this chapter for which such beverage was seized;

may file with the department of finance, under oath, a detailed statement of his claim, with a sworn declaration that the claimant did not in any way participate in such violation of this chapter.
(Code 1956, § 5-113)

State law reference—Similar provisions, R.S. 26:373.

Sec. 10-573. Release of property under bond.

Upon the filing of the statement referred to in the preceding section the property may be released by the department of finance and delivered to the claimant if claimant shall furnish to the department of finance a good and solvent surety bond with a surety company qualified to do business in the state as surety on the bond in a penal sum of not less than double the appraised value of the goods seized, and in no event less than $50.00, which bond shall be conditioned to pay the department of finance the appraised tax value of the goods, and all costs if the claimant does not prosecute his claim to successful judgment.
(Code 1956, § 5-114)

State law reference—Similar provisions, R.S. 26:373.

Sec. 10-574. Further proceedings to establish rights of claimant.

If it is not practical to make service upon the claimant to the seized property or in case the claimant is a nonresident, the procedure outlined by the state laws and in this chapter may be used in order that the issue may be presented in a court of competent jurisdiction, thereby affording the claimant a fair opportunity to be heard.

If a bond has been furnished by the claimant and the property has been released to him, the judgment of the court, if the contention of the department of finance is sustained, shall be directed against both the claimant and the surety on the bond and shall include all costs from the beginning of the seizure up to the final disposition of the case.
(Code 1956, § 5-115)

State law reference—Similar provisions, R.S. 26:373.

Sec. 10-575. Waiver of forfeiture when violation unintentional.

The department of finance may waive any proceedings for the forfeiture of the seized taxable articles or any part thereof if it is found that the violation of the law, for which the goods were seized, was unintentional or without intention to defraud the city of its tax, but only if the offender shall pay to the city double the amount of the necessary tax.
(Code 1956, § 5-116)

State law reference—Waiver of forfeiture of beverages of high alcoholic content, R.S. 26:374.

Sec. 10-576. Compromises.

The department of finance may make a compromise with any claimant, before or after the claim is filed in court.
(Code 1956, § 5-117)

State law reference—Similar provisions, R.S. 26:458.

Sec. 10-577. Record of compromises and waivers.

A record of all compromises and waivers of forfeiture shall be kept by the department of finance and shall be open to public inspection.
(Code 1956, § 5-118)

State law references—Waiver of forfeiture of beverages of high alcoholic content, R.S. 26:374; compromises, R.S. 26:458.

Sec. 10-578. Destruction of certain seized liquors.

The department of finance may, after it has held for a period of not less than six months any seized liquors which are damaged, opened, unsaleable or unfit for human consumption and which have not been claimed by the person from whom they were seized, destroy such articles which are damaged, opened, unsaleable or unfit for human consumption without the necessity of court proceedings, and such articles shall be destroyed in the presence of the director of the department of finance, and two other witnesses. The department of finance shall prepare a proces-verbal describing all such articles to be destroyed, to whom such articles belong and the address of the place where seized, and such proces-verbal shall be signed by the director and the two other witnesses and shall be preserved among the records of the department for a period of not less than three years from the date upon which such damaged, opened, unsaleable or unfit for human consumption articles are so destroyed.
(Code 1956, § 5-119)

State law references—Penalty for keeping blind tiger; destruction or sale of beverages, R.S. 26:712.

Sec. 10-579. Failure to pay tax ground for attachment.

Failure to pay any tax, penalty, delinquent fee or costs accruing under this chapter, or failure to furnish the sworn statements as required by this section shall be construed as an attempt to avoid the payment of such tax, penalty, delinquent fee or costs and shall be sufficient grounds for attachment of any alcoholic beverage belonging to such person, wherever they may be found, whether such delinquent taxpayer be a resident or nonresident of the city, and whether such alcoholic beverage is in the possession of such delinquent taxpayer or in the possession of some other person.
(Code 1956, § 5-120)

State law reference—Similar provisions, R.S. 26:348(B)(1).

Sec. 10-580. Procedure.

Failure to pay the tax, penalty, delinquent fees or costs referred to in section 10-579 shall, ipso facto, without demand or putting in default, cause the tax, penalties, delinquent fee or fees or costs to become immediately delinquent and the department of finance and the council through that department may on motion in a court of competent jurisdiction take a rule on such person without deposit or advance in costs, to show cause why such person should not be ordered to

cease from further pursuit of business until such time as he has paid the delinquent tax, penalty, fee or costs.
(Code 1956, § 5-121)

State law reference—Similar provisions, R.S. 26:348(B)(1).

Sec. 10-581. How alcoholic beverages brought into city.

It shall be a violation of this chapter for any person to receive any shipment of alcoholic beverages from without the city other than by common authorized license carriers, under the jurisdiction of the Interstate Commerce Commission, by steamship or as otherwise provided in this chapter. The department of finance may grant a special permit under special circumstances to any wholesale dealer to transfer merchandise from one bonded wholesale dealer to another within the state and to any wholesale dealer to import merchandise into the city in vehicles or conveyances owned by such wholesale dealer.
(Code 1956, § 5-122)

State law reference—Transportation of alcoholic beverages, R.S. 26:361, 26:362.

Sec. 10-582. Dealers to be bonded.

Every dealer producing, manufacturing, importing or holding any alcoholic beverage within the city for any purpose shall be bonded to the city to collect and pay the taxes levied by this article.
(Code 1956, § 5-123)

State law reference—Similar provisions, R.S. 26:348.

Sec. 10-583. Dealers not to be in possession of unstamped liquor.

No manufacturer or wholesale dealer in the city shall have in his possession any alcoholic beverages outside of his bonded interparish or interstate stockroom, unless such alcoholic beverages be in containers of no greater capacity than a gallon. No retail dealer shall have in his possession at any time any alcoholic liquors in containers of not more than one-gallon capacity. But the department of finance may authorize the sale and handling of wines in containers of a content greater than one gallon.
(Code 1956, § 5-124)

State law reference—Similar provisions, R.S. 26:351.

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Chapter 14

AMUSEMENTS AND ENTERTAINMENTS*

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ARTICLE I. IN GENERAL

Sec. 14-1. Permit required for music or other entertainment.

(a) Except as otherwise provided in this chapter, it shall be unlawful to keep any piano, organ or other musical instrument whatsoever for the purpose of performing upon it or having it performed upon in any public park or place of public resort or recreation or in any regularly licensed theatre or restaurant or having any other character of entertainment in such places, unless and until the applicant shall have first applied for and obtained from the director of the department of safety and permits a permit authorizing music or other form of entertainment in such place and location, and subject to any conditions imposed by law.

(b) Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the city confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal liens.
(Code 1956, § 63-1; M.C.S., Ord. No. 29257, § 1, 11-17-22; M.C.S., Ord. No. 30681, § 2, 6-24-26)

Sec. 14-2. Amusement games in outdoor amusement parks.

(a) Amusement games of skill or amusement games where skill predominates or where the player has the dominant control of the outcome, whether mechanical or manual, whether the contestants participate against each other or not, and which through the outcome of such amusement game or contest do not return to the player or contestant thereof anything but additional free games or awards of merchandise prizes are hereby sanctioned; provided, that the aforesaid games are conducted and operated at outdoor amusement parks, as defined in R.S. 47:354, and licensed to operate in accordance with the provisions of such section.

(b) The provisions of this section shall not apply to any game or games requiring a federal coin-operated gaming device stamp or gaming stamp as presently provided for under existing federal laws.
(Code 1956, § 63-1.1)

State law reference—Regulation of amusement rides and attractions by city, authorized, R.S. 4:7.

Sec. 14-3. Bungee jumping prohibited.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Bungee catapulting or reverse bungee jumping means the sport, activity or practice whereby a person is attached to a bungee cord which is stretched and then released, thus catapulting or otherwise launching the jumper into the air from a fixed position, ultimately intending to bring the person to a stop at a point above the surface.

Bungee cord means the elastic rope made by rubber, latex or other elastic type materials, whether natural or synthetic, to which the jumper is attached. It lengthens and shortens and thus produces a bouncing action.

Bungee jumping means the sport, activity, or other practice of jumping, diving, stepping out, dropping or otherwise being released into the air while attached to a bungee cord, whereby the cord stops the fall, lengthens and shortens, allows the person to bounce up and down, and is intended to finally bring the person to a stop at a point above the surface.

(b) *Prohibition.* It shall be unlawful for any person to engage in the act, sport, or practice of bungee jumping or bungee catapulting or to conduct bungee operations whether mobile or stationery, permanent or temporary, on property owned or leased by the city.

(1) No person shall place equipment utilized in bungee jump operations including cranes, platforms or towers, etc., on property owned or leased by the city.

(2) No person shall use air-space above property owned or leased by the city,

such that, should an accident occur, a person would fall on property owned or leased by the city.

(c) *Violations.* Whoever violates the provisions of this section shall be subject to a mandatory sentence of six months incarceration and/or a fine of not less than $500.00.
(Code 1956, § 63-1.1a)

Cross reference—Offenses and miscellaneous provisions, ch. 102.

State law reference—Regulations of bungee jumping by city, authorized, R.S. 4:7.

Sec. 14-4. Places reserved for mayor and police.

Managers of places of amusement shall reserve, free of charge, places for the mayor, the judges of the municipal court and the superintendent of police and such other of the police as may be necessary to preserve order.
(Code 1956, § 63-2)

Sec. 14-5. Duties of policemen on guard at theatres, etc.

The police officers on guard at theatres, shows, balls or exhibitions of any kind shall be and remain within such balls, theatres or other places of amusement or at or about the entrance thereto and any person connected with such entertainment as owner, agent or employee who shall refuse permission or attempt to interfere with such police officers in the performance of such duty shall be liable to a fine and imprisonment.
(Code 1956, § 63-3)

Sec. 14-6. Officers may enter theatres, etc.

The mayor, the judges of the municipal court and the superintendent of police or any corporal, sergeant or other officer of the police force, specially designated by the superintendent of police, may at any time and at all times enter during performances, theatres, balls and other public entertainments to inspect them and receive reports of police officers on duty.
(Code 1956, § 63-4)

Sec. 14-7. Reserved.

Sec. 14-8. Closing permanently place of public resort.

The mayor shall cause to be closed any place of public resort whenever the maintenance of order and the public safety or tranquility may require it.
(Code 1956, § 63-6)

Sec. 14-9. Prohibition against selling unassigned seating admission tickets.

It shall be unlawful for any promotion corporation, management firm, entrepreneur or sponsoring organization to sell admission tickets to any concerts, programs, plays or events that do not specify a particular reserved seat in any assembly center, auditorium, stadium, theatre or any other place of assembly in the city when the seating capacity of the facility is 2,000 or more.
(Code 1956, § 63-6.1)

State law reference—Regulation of shows and concerts by city, authorized, R.S. 4:7.

Sec. 14-10. Exemptions from unassigned seating prohibition.

The prohibition in section 14-9 shall not apply to high school and college athletic events, including club sponsored athletic events; nor to religious events sponsored by bona fide religious organizations; nor to events where the sponsor has applied for and received a specific exemption from the superintendent of police or his designated agent.
(Code 1956, § 63-6.2)

Sec. 14-11. Criteria for granting exemptions to the unassigned seating prohibition.

In determining whether an event shall be exempt from the prohibition in section 14-9, the superintendent of police, or his designated agent, shall consider the following factors: The facility where the event is to be scheduled; the size, age and anticipated conduct of the audience; and the hazard to the health, safety and welfare of participants, spectators and the community associ-

ated with exempting this particular event. Applications for exemptions to section 14-9 shall be filed with the superintendent of police, or his designated agent, at least 30 calendar days prior to the event date.
(Code 1956, § 63-6.3)

Sec. 14-12. Authority of officer in charge.

For crowd control purposes inside or outside of assembly centers, auditoriums, stadiums, theatres and other places of assembly in the city, the police

officer in charge of the scene of the event shall have the authority to order the placement or removal of barriers, the opening or closing of doors or other passageways, the establishment of checkpoints, or any other crowd control measures deemed necessary. The size, manner, nature and conduct of the crowd, in light of all other facts and circumstances at the time including the number of personnel on the scene to control and/or accommodate the crowd, will be taken into consideration by the police officer in charge when determining appropriate crowd control measures.
(Code 1956, § 63-6.4)

Sec. 14-13. Liabilities of the events management and sponsors.

Nothing in sections 14-1 through 14-12 shall be construed in any way to lessen in any fashion the liability of those responsible for the management and operation of the event. Those responsible for the management and operation of an event shall employ enough personnel to ensure adequate levels of security, safety, health and sanitation.
(Code 1956, § 63-6.5)

Sec. 14-14. Obscene, etc., entertainments.

No person shall, as owner, manager, director, agent or in any other capacity, prepare, advertise, give, present or participate in any obscene, indecent, immoral or impure show or entertainment or in any show or entertainment manifestly tending to corrupt morals.
(Code 1956, § 63-16)

Sec. 14-15. Showing obscene pictures prohibited.

It shall be unlawful for any person, whether as owner, agent, lessee, employer or employee, to operate or exhibit at any moving picture show, theatorium, nickelodeon, theatre or other similar place of amusement in the city any obscene, lewd or vulgar picture, film, slide, view or other representation.
(Code 1956, § 63-17)

Cross reference—Offenses affecting morality, § 54-231 et seq.

Sec. 14-16. Conduct of spectators.

All persons attending any public spectacle are forbidden to commit, either at the doors or in the theatre, lobbies, galleries or corridors, any disorderly acts, to behave riotously, to make any noise, to use violence, insult, indecency or to offer any kind of aggression, to have their hats on while the curtain is raised or to smoke in the theatre, the galleries, lobbies or corridors. Every person who, on being thereto required by any police officer on duty at the public spectacle shall neglect or refuse to observe what is prescribed in this section shall be guilty of an offense.
(Code 1956, § 63-19)

Secs. 14-17—14-35. Reserved.

ARTICLE II. BUILDINGS GENERALLY*

Sec. 14-36. Monthly inspection of wiring, quarterly report.

The department of safety and permits shall supervise and inspect the electric wiring of all theatres, buildings used for public entertainment and places of public amusement at least once a month and furnish the mayor and council with a quarterly report of the condition of such wiring and installation.
(Code 1956, § 63-7)

Sec. 14-37. Recommendations of department.

The department of safety and permits may make recommendations for the installation of electrical energy and its operation in theatres, buildings used for public entertainment and places of public amusement which, in its judgment, may be necessary for the protection of the public interest.
(Code 1956, § 63-8)

Sec. 14-38. Failure to comply forfeits license.

Any failure on the part of any owner, agent or manager of any theatre, building used for public entertainment or place of amusement to comply

*Cross reference—Buildings, building regulations and housing standards, ch. 26.

State law reference—Regulation of theatres by city, authorized, R.S. 4:7.

with the recommendations of the department of safety and permits shall work a forfeiture of their license or permit to give performances and the mayor shall revoke such license upon the report of the director of the department of safety and permits advising such revocation.
(Code 1956, § 63-9)

Sec. 14-39. Obstruction of aisles, etc., of motion picture theatres.

No owner, lessee, proprietor or manager of any theatre, theatorium, nickelodeon, hall, place, opera house or building in the city where theatrical or other performances or exhibitions of moving pictures are given and an admission fee is charged shall permit or suffer any person to congregate, gather, stand or be seated in the aisles, lobbies, entrances or exits of any such building at any time when such theatrical or other performances or exhibition of moving pictures is to take place.
(Code 1956, § 63-10)

Sec. 14-40. Examination of places of public resort; prevention of accidents.

The mayor and the department of safety and permits, as often as they may deem it necessary, shall examine whether theatres and places of public resort are constructed with the requisite solidity and carefully kept in repair, so that the public may assemble there without danger. They shall adopt suitable measures to prevent accidents that might occur from any negligence in that respect on the part of the proprietors, tenants or other persons having the management or direction of such theatres or places of public resort.
(Code 1956, § 63-11)

Sec. 14-41. Registration with the department of health.

Any person operating any theatre, moving picture show or other place of public amusement within the city shall register in the office of the department of health the name of such theatre, moving picture show or other place of amusement, its location and the name of the owner, if an individual, if a firm, the name of its members, and if a corporation, the name of the president.
(Code 1956, § 63-12)

Sec. 14-42. Cleaning and disinfecting.

Every theatre, moving picture show or other place of public amusement or recreation where the public congregate shall be cleansed daily and disinfected at least once each week and at such other time as may be required, with a disinfectant and in a manner to be approved by the department of health or such officer or inspector as may be designated by it.
(Code 1956, § 63-13)

Sec. 14-43. Fire alarm boxes on stages.

A city fire alarm box shall be placed on the stage of every theatre in the city for the purpose of communicating fire alarms direct to headquarters at the city hall, thus avoiding delays in case of emergency.
(Code 1956, § 63-20)

Cross reference—Fire alarms, § 74-46 et seq.

Sec. 14-44. Marking and diagram of exits.

The owner, lessee, manager or other person having charge or control of any theatre in the city shall cause each door and means of exit to be used in the case of fire or panic to be conspicuously numbered so as to be visible to the audience by whom it is to be used and shall have printed in conspicuous type a plan or diagram and explanation showing each of such exits thereon and referring to the numbers aforesaid.
(Code 1956, § 63-21)

Sec. 14-45. Department to enforce; inspections.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it and to that end its officers, members, agents, employees, inspectors and appointees may enter any premises or place in the city for the purpose of inspection for violations thereof.
(Code 1956, § 63-14)

Sec. 14-46. Responsibility of members, partners, etc.

(a) When an association of individuals is charged with the violation of any provision of this article, each individual of such association of in-

dividuals, or, if a foreign association of individuals, the local agent or person locally in charge thereof, shall be deemed to represent such association of individuals for the purpose of enforcing this article, and shall be held responsible and punishable for each violation thereof.

(b) When a firm is charged with such violation each member thereof, and if a foreign firm, the local agent or person locally in charge of such firm, shall be deemed to represent such firm for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.

(c) When a corporation shall be charged with such violation, the president, or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation or, if a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 63-15)

Secs. 14-47—14-65. Reserved.

ARTICLE III. CIRCUSES*

Sec. 14-66. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Conducted and *conducting* mean not only the exhibition of the circus but also all acts incident to its operation and to bringing it to or removing it from the city.
(Code 1956, § 63-23)

Cross reference—Definitions generally, § 1-2.

Sec. 14-67. Permit required.

Every operator of an itinerant circus shall, before conducting his circus in the city, obtain from the director of the department of safety and permits a permit to do so.
(Code 1956, § 63-22)

Sec. 14-68. Bond required of operator.

The permit required by this article shall be issued only after the operator shall have filed with the director of the department of safety and permits, a bond payable to the city, in the sum of $1,000.00 to indemnify the city for any damages it may sustain during the time such circus shall be conducted in the city as a result of the fault of the operator of such circus or of his agents, servants or employees. Such bond shall contain a stipulation that such operator and his surety consent and yield to the jurisdiction of the civil courts of the state for the parish and waive any plea to the jurisdiction of the court on account of their residence elsewhere upon suit for damages such as are referred to in this section.
(Code 1956, § 63-24)

Sec. 14-69. Cash deposit in lieu of bond.

In lieu of filing the bond required by this article with the director of the department of safety and permits any operator may deposit with the director of the department of finance the sum of $1,000.00 in cash as security to the city against such damages as are mentioned in section 14-68 and upon presentation to the director of the department of safety and permits of the receipt of the director of the department of finance for such deposit the permit required by this article shall be issued.
(Code 1956, § 63-25)

Secs. 14-70—14-120. Reserved.

ARTICLE IV. DANCES AND BALLS†

DIVISION 1. GENERALLY

Sec. 14-121. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings as-

*Cross references—Businesses, ch. 30; parades, § 154-1651 et seq.

†Cross reference—Carnival, Mardi Gras, ch. 34.

cribed to them in this section, except where the context clearly indicates a different meaning:

Alcoholic beverage means any fluid, or solid capable of being converted into a fluid, suitable for human consumption and having an alcoholic content of more than one-half of one percent of alcoholic volume.

Beer means a malt beverage containing one-half of one percent or more of alcohol by volume and not more than four percent of alcohol by weight, and shall not be inclusive of any beverage designated by label or otherwise by any other name than beer.

Cabaret means any room, space, structure, building, resort open to the public, enclosed or unenclosed, where food or beer or wine, or other alcoholic beverage is served on the premises, including restaurants and cafes, and where patrons are provided with a space for dancing, or are permitted to dance.

Dancing means a series of rhythmic and patterned bodily movements usually performed to music; motion that arises from emotion.

Dancing school/studio means any room, place, space, building or academy in which classes in dancing are held and instruction in dancing is given for hire.

Municipal dance means any dance sponsored by an agency or political subdivision, including but not limited to the city, county, state or federal government. A dance held in buildings owned or under the control of such governmental or municipal agency is deemed a municipal dance.

Operator (dance hall operator) means the person who conducts, manages, maintains or controls, either directly or indirectly, any dance hall as defined and designated in this article.

Permittee means any holder of a permit issued under this article, whether acting as principal, agent, or employee.

Person financially interested means, for a corporation, any person who is an officer or a director of a corporation or a shareholder holding more than ten percent of the shares thereof and for a noncorporate business shall include any person who shares in the profits of the business on the basis of gross or net revenue but not including any person who receives a portion of such gross or net revenue in return for the privilege or permitting any other persons to maintain any amusement, such as dancing, in their place of business.

Private dance means a dance given at any home or any dance given or held by a club, admission to which is granted to members and their invited guests and from which the general public is excluded.

Public dance means any dance or ball to which admission can be had by payment of a fee, or by the purchase, possession or presentation of a ticket or token, or in which a charge is made for caring for clothing, or any other dance to which the public generally may gain admission with the payment of a fee directly or indirectly, or without payment of a fee.

Public dance for minors means any public dance at which minors are permitted on the premises as patrons.

Public dance hall means any room, place, space or building where a public dance is held or conducted.

Resident means, for the purposes of the neighborhood petition requirements of section 14-159, a person or his agent owning property within a radius of 300 feet of the proposed location; a head of a household of a dwelling unit located within a radius of 300 feet of the proposed location; or a person operating a business located within a radius of 300 feet of the proposed location.

Taxi dance hall means any place where persons are permitted or employed to act as dancing partners for customers who pay a fee for the privilege of dancing with such persons, regardless of whether such fee is on a per dance basis, a time basis, or any other basis; provided that the term "taxi dance hall" shall not apply to bona fide private dancing schools offering regular courses of instructions in dancing to pupils regularly enrolled in such schools.

Teenager means any person over the age of 13 years and under the age of 18 years.

Teen club means an establishment, including discotheques, having a minimum entertainment floor area of 5,000 square feet, with or without providing live entertainment and/or a permanent area for dancing and which may not serve food. The entertainment floor area shall be composed of a nonalcoholic wetbar, dance floor and/or live entertainment stage area, and table area. No alcoholic beverages shall be possessed, sold, served, or consumed on the premises.

Wine means the product obtained from the alcoholic fermentation of the juice of sound ripe grapes, fruits, or berries.
(Code 1956, §§ 63-25.1, 63-27)

Cross reference—Definitions generally, § 1-2.

Sec. 14-122. Classification of public dance halls.

Public dance halls are hereby designated and rated as follows:

(1) Class A, cabarets and nightclubs.

(2) Class B, places or buildings owned, rented or operated by clubs and used for dancing by members or rented to others for such purposes.

(3) Class C, all dance halls under the terms of this article not otherwise specifically classified.

(4) Class D, dance schools and studios.

(5) Class E, teen clubs.
(Code 1956, § 63-26.2)

Sec. 14-123. Prohibited acts.

(a) It shall be unlawful for any operator, directly or indirectly, or by any servant, agent or employee to:

(1) Use any flammable stage or movable equipment without first obtaining the approval of the fire department;

(2) Permit the creation of a public nuisance through the emanation of loud music into parking areas and the immediate neighborhood so as to disturb the public peace;

(3) Permit illegal activities on the premises;

(4) Permit smoking in the area designated for dancing;

(5) Permit overcrowding in the area designated for dancing;

(6) Employ a person who is under the age of 18; nor shall any person under 18 be allowed to participate in any talent show, audition for any talent show or provide any entertainment. The provisions of this subsection shall not be applicable to teen clubs;

(7) Permit any person under the age of 18 to be upon the premises, unless accompanied by a parent or legal guardian, except where other sections of this article expressly allow persons under 18 to be on the premises.

(b) A copy of the acts prohibited under subsection (a) of this section shall be issued with all public dance hall permits and shall be displayed next to the permit.
(Code 1956, § 63-26.7)

Sec. 14-124. Taxi dance halls.

(a) It shall be unlawful for any person to operate, manage, or direct the operation of any taxi dance hall, as defined in section 14-121, or to employ or permit any person to dance therein.

(b) No person shall be permitted to be employed on a salary, contract or commission basis in any dance hall for the purpose of dancing with the patrons of such dance hall.

(c) No person shall be permitted to frequent a taxi dance hall.
(Code 1956, § 63-28B)

Sec. 14-125. Permission and license tax required for giving ball.

It shall be unlawful for any person to give, within the limits of the city, any public balls of any description unless permission in writing is previously obtained from the director of the department of finance to give such ball and after payment of the license tax.

(1) *Closing balls illegally held.* Whenever the provisions of this section shall be violated the mayor shall cause the ball to be closed immediately by the police.

(2) *Prolongation of ball beyond permit hours.* No public ball shall be prolonged beyond the hour fixed by the permit of the director of the department of finance.

(Code 1956, § 63-29)

Cross reference—Carnival, Mardi Gras, ch. 34.

Sec. 14-126. Premises to be open for inspection at all times.

All portions of the establishment or premises under this article shall at all times be open for inspection by the police department or other city departments for the purpose of enforcing any of the provisions of this article or other ordinances of the city relating to the health, safety, and welfare of the public.

(Code 1956, § 63-26.8)

State law reference—Similar provisions, R.S. 4:363.

Secs. 14-127—14-135. Reserved.

DIVISION 2. DANCE HALLS*

Sec. 14-136. Permit required.

It shall be unlawful for any person, as owner, or operator or lessee or their authorized agents and/or representatives to operate within the city limits any public dance hall, without a permit issued by the department of finance.

(Code 1956, § 63-26)

Sec. 14-137. Permit application.

(a) Persons desiring to obtain a public dance hall permit required by this article shall file a written application with the department of finance, bureau of revenue. The applications shall include the following information:

(1) The name, address and telephone number of the applicant and/or his agent who shall be the operator of the public dance hall.

(2) The location and the name of the owner of the property on which the establishment is to be located.

(3) The business name (assumed name) to be used by the applicant.

(4) The number of persons projected to be on the premises at any one time.

(5) The name and address of the licensed security agency which services the establishment.

(6) Certification that the premises is adequate for the purpose, and conforms with existing health, safety, fire and zoning ordinances.

(b) A permit shall not be issued until the applicant is in full compliance with the provisions of this article as well as the pertinent rules and regulations of the department of safety and permits, the department of health, the fire department, and the city planning commission.

(Code 1956, § 63-26.1)

Sec. 14-138. Application and license fees.

A fee shall be charged for the processing and issuance of a permit under this division in addition to a fee for the permit.

(1) A fee schedule shall be established by the director of the department of finance and posted at the bureau of revenue.

(2) An application fee shall be charged for each new applicant and any existing permittee seeking to move his business to a new location or to open up any new additional public dance hall or expand any existing public dance hall premises where a city building permit is required.

(3) Owners and operators shall be required to pay an annual application fee for a permit renewal upon the expiration of the current permit.

(4) Upon payment of the application fee and approval of the permit application by the director of the department of finance an annual permit will be issued.

(Code 1956, § 63-26.3)

*State law reference—Department of police of New Orleans authorized to place matrons or policewomen in dance halls, R.S. 4:361 et seq.

Sec. 14-139. Application and permit fee schedule.

(a) Annual application and permit fees for outstanding permits and for new applications shall be levied in accordance with the following schedule:

Type	*Application Fee*	*Permit Fee*
Class A	$100.00	$100.00
Class B	100.00	75.00
Class C	75.00	75.00
Class D	75.00	50.00
Class E	50.00	50.00

(b) All fees for applications and permits collected under this division shall be paid in advance and placed in a special revolving fund. If no permit is issued, the application fee shall be applied to cover the cost of processing such application. The first period permit fee shall be refunded.

(c) If a permit is revoked, suspended, or terminated or the operation of the establishment is discontinued, no refund of any portion of any of the fees paid for the application or permit shall be made.

(d) Permits issued pursuant to the provisions of this division shall not be transferable between persons or locations.

(e) A penalty of ten percent of the application fee shall be assessed for all renewal applications filed after January 15.

(f) Any permit lost or destroyed or defaced shall be replaced with a duplicate for a fee of $10.00.
(Code 1956, § 63-26.4(a)–(e), (g))

Sec. 14-140. Display of permit.

All permits issued under this division shall be posted or displayed in a prominent place on the premises for which the permit is issued.
(Code 1956, § 63-26.4(f))

Sec. 14-141. Suspension, revocation, and/or termination.

(a) Any permit issued pursuant to the provisions of this division shall be revoked or suspended upon any one or more of the following grounds:

(1) The permittee, his employee, agent, or any person connected or associated with the permit as a partner, director, officer, stockholder or manager, or any person financially interested has violated any of the rules and regulations promulgated for or ordinances pertinent to the establishment and operation of a dance hall as required by the fire department, the department of safety and permits, the department of finance, and/or the city planning commission or any state or federal law in conducting or operating a dance hall.

(2) False, misleading or fraudulent statement of material fact in the application.

(3) There exists a clear and present danger of serious damage or danger to the public if the permit is not suspended or revoked.

(4) The permittee has been convicted of a crime which is either a felony or a crime involving moral turpitude and which is related to the operation of a dance hall.

(5) The permittee is a corporation and is no longer qualified to transact business in the state.

(b) To suspend or revoke a permit, the director of the department of finance shall notify the owner/operator in writing by hand delivery or registered mail. The notice shall state the reasons for such action and that the permit shall be surrendered to the bureau of revenue on demand.

(c) Permits issued pursuant to this division shall terminate upon failure of the permittee to pay any license fee not paid by January 15 of the new license period.

(d) Appeals from the suspension, revocation or termination of a permit shall be filed with the director of the department of finance or tendered and processed in accordance with the appropriate administrative or civil adjudication procedures designated by the director.
(Code 1956, § 63-26.5)

Sec. 14-142. Exceptions.

(a) A permit shall not be required for any municipal dance hall under the authority of the city, the parish school board, any political subdivision

of the city, or any state or federal government department or agency.

(b) A permit shall not be required of any hotel, motel, cafe, restaurant, banquet hall or catering facility where no charge or admission is imposed for the privilege of entry or dancing.
(Code 1956, § 63-26.6)

Sec. 14-143. Public dances for minors, permit.

(a) Owners or operators of public dance halls other than teen clubs who wish to conduct a public dance or municipal dance to be attended exclusively by minors shall be required to obtain a special public dance for minors permit from the department of finance, bureau of revenue. Such permit shall be issued for a duration of 24 hours. The applicant shall provide proof that the premises where the dance is to be held holds a current public dance hall permit or is exempt from the requirements for same as reflected in section 14-142.

(b) Public dance for minors permits shall be issued only under the following conditions:

(1) The general adult public shall not be permitted admission to the premises while the special permit is in effect.

(2) The owner or operator or applicant must agree to comply with the provisions of sections 14-160 through 14-170 for teen clubs.

(3) Any establishment holding a special permit for minors shall require all minors to vacate the premises and shall close its operations for at least one hour prior to reopening the establishment to adults.

(Code 1956, § 63-26.11)

Sec. 14-144. Dressing rooms for entertainers.

Owners and operators of public dance halls shall provide separate and adequate dressing rooms for male and female entertainers where live entertainment is provided.
(Code 1956, § 63-26.9)

Sec. 14-145. Employment of minors.

It shall be unlawful for any person under the age of 18 to act as a cashier, door keeper, or to work or be employed in any capacity whatever in or about any public dance hall, or assist in any way whatsoever in conducting same. The provisions of this section shall not be applicable to teen clubs, dance studios, or dance schools.
(Code 1956, § 63-26.10)

Sec. 14-146. Dance halls required to have telephone.

It shall be unlawful for any owners or proprietors of any hall where public balls or theatre or other similar public entertainment is held to rent them for any such purpose unless such hall shall be connected by telephone with the head office and various precinct stations of the department of police.
(Code 1956, § 63-26.12)

Secs. 14-147—14-154. Reserved.

DIVISION 3. TEEN CLUBS

Sec. 14-155. Definition.

The term "teen club" includes teenage dance halls, discotheques, nonalcoholic bars for teenagers, dry cabarets, juice bars, milk bars, teenage cabarets or other public resorts to be frequented exclusively by teenagers for entertainment or amusement, including but not limited to music, music videos, and dancing. Such establishments shall not be licensed to sell alcoholic beverages.
(Code 1956, § 63-27)

Cross reference—Definitions generally, § 1-2.

Sec. 14-156. Permit required.

It shall be unlawful for any person to operate within the city any teen club without having been issued a permit by the department of finance.
(Code 1956, § 63-27.1)

Sec. 14-157. Application for permit.

(a) The application for a teen club permit shall be filed with the department of finance, bureau of revenue in a format as prescribed by same and shall include the following information:

(1) Full name and any name by which the person or applicant is or has been known.

(2) Date and place of birth.

(3) Driver's license number if available.

(4) Fingerprints.

(5) A current photograph.

(6) Any prior felony or misdemeanor convictions except minor traffic violations.

(7) Home and business address and telephone number.

(8) Any revocation or suspension of a license issued pursuant to this division.

(9) The name of any local, authorized agent who will be managing or operating the establishment at the indicated location and proof of their authority to act on behalf of the owner.

(10) If the owner/operator is a corporation or a person financially interested in the applicant business is a corporation, the owner shall provide a list of the names and addresses of all persons financially interested in that corporation.

(11) Certification that the premises where the teen club is to be located is adequate for the purpose and that the premises conforms with the existing health, safety, fire and zoning ordinances of the city.

(12) The name and address of the licensed security agency which will provide the security officers for the establishment.

(13) A copy of the neighborhood petition, as required by section 14-159, which was circulated for the approval of persons owning property, living, or doing business within 300 feet of the proposed location.

(14) The size of the premises, room, space or building proposed to be used for such purposes.

(15) Certification of the maximum number of persons that may be accommodated on the premises.

(b) Any change in the information required to be provided above concerning the applicant or agent shall be reported to the bureau of revenue within ten days of the change. All other information must be updated at the time of permit renewal.

(Code 1956, § 63-27.1(a), (b))

Sec. 14-158. Exemptions.

The provisions of this division shall not apply to any of the following:

(1) Private dances given at private homes.

(2) Dances or balls held in the city auditorium or coliseum.

(3) Dances for school children held in the auditorium or gymnasium of any public school under the supervision of the school authorities.

(Code 1956, § 63-27.7)

Sec. 14-159. Neighborhood petition.

(a) No permit to operate a teen club under this division shall be issued until the applicant for such permit has filed a petition signed by a minimum of 65 percent of the residents within a radius of 300 feet of the proposed location, indicating their approval of the establishment of a teen club.

(b) The director of the department of finance shall adopt rules and regulations governing the procedure for securing the petition of consent provided for in this section. The rules shall provide that the circulator of the petition requesting a waiver shall subscribe to an affidavit attesting to the fact that the petition was circulated in accordance with the rules of the department and that the circulator personally witnessed the signatures on the petition and that the same were affixed to the petition by the person whose name appeared thereon.

(c) An official petition form shall be prepared by the department and shall state in boldfaced type the official definition of a public dance hall, including its allowed hours of operation and the fact that the consent of 65 percent of the residents within 300 feet of the subject establishment is required. The petition form to be circulated for a public dance hall shall be the official form prepared by the department. No other form shall be used or will be accepted as a valid petition.
(Code 1956, § 63-27.5)

Sec. 14-160. Supervision.

A sufficient number of adult supervisors who are employees of the teen club shall be provided to ensure compliance with the provisions of this division. For the purposes of this section, a sufficient number shall constitute, at a minimum, a ratio of one adult to every 35 teenagers on the premises. All employees shall be considered supervisory staff.
(Code 1956, § 63-27.2(a))

Sec. 14-161. Lighting of premises.

The premises of the teen club shall be adequately lighted at all times when in operation. For the purposes of this section, the volume of illumination shall at no time be less than one footcandle in any part of the building or premises accessible to participants.
(Code 1956, § 63-27.2(b))

Sec. 14-162. Parking facilities.

All off-street parking facilities for a teen club, under the direct or indirect control of the permittee, shall be adequately lighted and supervised to ensure compliance with this section and any other laws of the city. Required off-street parking shall be determined at no less than a rate of one space per 200 feet of floor area.
(Code 1956, § 63-27.2(c))

Sec. 14-163. Hours of operation.

A teen club shall not operate during regular elementary or high school hours. All applicable curfew hours shall be enforced by the operator of the facility. The hours during which teen clubs shall not be allowed to operate are as follows:

(1) *Fridays and Saturdays,* between the hours of 11:30 p.m. and 12:00 noon.

(2) *Sundays through Thursdays,* between the hours of 10:30 p.m. and 12:00 noon.

(3) *New Year's Day,* between the hours of 1:00 a.m. and 12:00 noon.

(Code 1956, § 63-27.2(d))

Sec. 14-164. Admissions.

(a) It shall be the responsibility of the operator or permittee of a teen club to ascertain the correct legal age of all persons seeking admission and such persons who do not meet the age requirement of this subsection shall be excluded.

(1) On nights preceding a regular school attendance day no person under the age of 17 shall be permitted to attend after 9:00 p.m. unless accompanied by a parent or legal guardian.

(2) On nights preceding a school holiday or during vacation periods no person under the age of 15 shall be permitted to attend after 9:00 p.m. unless accompanied by a parent or legal guardian.

(3) All persons over the age of 20 shall be denied admission unless such person is a parent or legal guardian.

(4) All persons under the age of 13 shall be denied admission.

(5) Teenagers under the age of 15 shall not be admitted unless accompanied by a parent or legal guardian or unless a parent or legal guardian has signed and filed with the operator, agent, or owner of the establishment a consent form for such minor to be there unaccompanied by such parent or guardian. Such form must be signed by the parent or guardian in the presence of the owner, operator or agent. The form shall contain the parent or guardian's telephone number and address. In addition to the con-

sent form such teenager shall also be required to provide proper identification before being admitted.

(6) Teenagers between the ages of 15 and 18 shall be admitted upon providing proof of age.

Proof of age shall be required of all persons entering teen clubs. Such proof may be established by identification issued by a governmental agency, the patron's school, or the department of motor vehicles, and must contain the patron's name, date of birth, and picture that has been taken within the preceding two years.

(b) Admission shall be denied to any person showing evidence of drinking any alcoholic beverages or showing evidence or symptoms of being intoxicated as a result of the ingestion of any chemical substance.
(Code 1956, § 63-27.2(e))

Sec. 14-165. Attendance.

Except in emergency situations, no patron shall be permitted to leave the premises of a teen club and thereafter reenter prior to closing. No pass or other identification permitting reentry shall be issued.
(Code 1956, § 63-27.2(f))

Sec. 14-166. Denial of entry on request of the parent or legal guardian.

No person having charge or control of any premises regulated under this division shall allow any teenager to enter or remain on or at the premises after having received a written notice signed by the parent or legal guardian of such teenager.
(Code 1956, § 63-27.2(g))

Sec. 14-167. Alcoholic beverages.

No alcoholic beverages are to be possessed, sold, served, or consumed on the premises for which a permit was issued under this division.
(Code 1956, § 63-27.2(h))

Sec. 14-168. Location.

(a) The teen club shall not be located within a 300-foot radius of a cocktail lounge or barroom or other establishment where alcoholic beverages are sold or consumed.

(b) The establishment shall not be located within a 300-foot radius of any residential district.
(Code 1956, § 63-27.2(i))

Sec. 14-169. Smoking.

There shall be no smoking on the premises of a teen club. The sale of tobacco products to minors is prohibited.
(Code 1956, § 63-27.2(j))

Sec. 14-170. Occupancy.

The maximum number of persons allowed on the premises of a teen club, as required by the fire codes of the city, shall be posted.
(Code 1956, § 63-27.2(k))

Sec. 14-171. Criminal history of supervisory staff.

(a) No person, as the owner or operator or agent of a teen club, shall employ any person as a supervisory employee who has been convicted of a misdemeanor or a felony in the last five years or any person who has been arrested and is out on bond or bail or out on his own recognizance pending trial.

(b) No person shall be employed who has been convicted of a crime involving moral turpitude. Upon a showing of just cause a licensee may petition the director of the department of finance for a waiver of this provision. Just cause shall include but is not limited to a demonstration that the prior conviction or arrest would not have an adverse effect on the employee's ability to supervise teenagers.
(Code 1956, § 63-27.3)

Sec. 14-172. Security.

The owner, operator or agent of a teen club shall provide security at least one hour prior to opening and one hour after closing both on the

premises and in the parking facility serving the establishment. The number of licensed security officers which shall be required is as follows:

(1) For any number of persons from one to 75, two security officers.

(2) For any number of persons from 75 to 150, three security officers.

(3) For each additional 50 persons, one additional security officer.

(Code 1956, § 63-27.4)

Sec. 14-173. Operation after 1:00 a.m.

(a) If the teen club intends to operate after the closing time set forth in this division the premises must first be vacated by all customers, and thereafter only those persons 18 years of age or older who present valid identification containing proof of age as set forth in this section may be permitted to enter the premises.

(b) Any establishment holding a teen club permit shall require all minors to vacate the premises and shall close its operation for at least one hour prior to reopening the establishment to adults.

(Code 1956, § 63-27.6)

Sec. 14-174. Lighting and drinking fountains.

(a) Each permittee shall provide, at all times, adequate lighting in every part of the establishment, at one footcandle throughout the establishment.

(b) There shall be at least one sanitary drinking fountain for each 2,500 square feet of floorspace or fraction thereof.

(Code 1956, § 63-27.8)

Secs. 14-175—14-185. Reserved.

DIVISION 4. DANCE STUDIOS AND SCHOOLS*

Sec. 14-186. Permit required.

Owners, operators or agents of dance studios or dance schools shall be required to obtain a permit for such establishments in accordance with the requirements of section 14-136 et seq.

(Code 1956, § 63-28)

Sec. 14-187. Sanitation of premises.

Owners and operators of dance studios and schools shall at all times maintain the premises in a clean and sanitary condition and shall provide proper drinking facilities.

(Code 1956, § 63-28A(a))

Sec. 14-188. Minors.

Owners and operators of dance studios and schools shall be responsible for the protection and safety of minor children while such minors are students or patrons on the premises.

(Code 1956, § 63-28A(b))

Sec. 14-189. Minimum age of teachers.

(a) Owners and operators of dance studios and schools shall employ dancing teachers 18 years of age or over; except that minor students, 16 and 17 years of age, acting in the capacity of teacher as part of their study of dancing, shall in all instances be supervised by an employee over 18 years of age. Classes taught by such minors shall be restricted to children under the age of 16.

(b) All minors 16 and 17 years of age, employed in any capacity by a dance studio, shall secure work permits from the state department of labor. Such employment and classes shall be terminated not later than 10:00 p.m.

(Code 1956, § 63-28A(c))

Sec. 14-190. Dance fee.

Owners and operators of dance studios and schools shall not employ or permit any persons as dance partners on a fee per dance basis.

(Code 1956, § 63-28A(d))

Secs. 14-191—14-210. Reserved.

***State law reference**—Dance studios, generally, R.S. 51:1551 et seq.

ARTICLE V. GAMBLING*

DIVISION 1. GENERALLY

Sec. 14-211. General prohibition.

(a) Gambling is the intentional conducting, or directly assisting in the conducting, as a business, of any game, contest, lottery, or contrivance whereby a person risks the loss of anything of value in order to realize a profit. Whoever commits the crime of gambling shall be fined not more than $500.00, or imprisoned for not more than six months, or both.

(b) The conducting, or directly assisting in the conducting, as a business, of any game, contest, lottery, or contrivance on board a commercial cruiseship used for the international carriage of passengers whereby a person risks the loss of anything of value in order to realize a profit is not gambling and shall not be suppressed by any law enforcement officer. This subsection shall apply only to commercial cruiseships for the carriage of passengers which are sailing from a port outside the continental limits of the United States to a port in any parish of this state having a population of more than 475,000 or any such ship which is sailing from a port in such a parish to a port outside the continental limits of the United States, provided that the ship is not docked or anchored but is navigating en route between such ports.

(c) The conducting or assisting in the conducting of authorized lottery activities or operations in accordance with provisions of R.S. 47:9000 through 47:9081 shall not be considered gambling for purposes of this section.

(d) The intentional conducting or assisting in the conducting of gaming activities upon a riverboat as defined and authorized in R.S. 4:501 through 4:562, whereby a person risks the loss of anything of value in order to realize a profit is not gambling and shall not be suppressed by any law enforcement officer.

(e) The intentional conducting or assisting in the conducting of gaming operations at the official gaming establishment as defined and authorized in R.S. 4:601 et seq. shall not constitute gambling.
(Code 1956, §§ 27-1—27-2.3)

State law reference—Similar provisions, R.S. 14:90.

Sec. 14-212. Exclusion.

No act or activity shall be prohibited by this article if it has been excluded by the legislature from the definition of gambling; and no penalty shall be imposed for any violation of this article which would exceed the maximum penalty which may be imposed for the offense of committing the same act or engaging in the same activity under laws adopted by the legislature for the suppression of gambling.

Sec. 14-213. Persons under the age of twenty-one entering gaming area—Prohibition.

(a) A person under the age of 21 shall not play any licensed gaming device or slot machine in or about a gaming area.

(b) A person under the age of 21 shall not enter into or be present in or about a gaming area.

(c) For the purposes of this section, a "gaming area" is defined as follows: That portion of a gaming riverboat or land-based casino in which gaming activities may be conducted. For purposes of this section, gaming activities means "any activity involving any banking or percentage game which is played with cards, dice, or any electronic, electrical or mechanical device or machine for money, property, or anything of value, but does not include video poker, a lottery, bingo, pull-tabs, raffles, electronic video bingo, cable television bingo, or race horse wagering."
(M.C.S., Ord. No. 18,701, § 1, 4-16-98)

Sec. 14-214. Same—Penalties for violators.

Any person who violates any of the provisions of section 14-213 may be imprisoned for not more than six months or fined not more than $500.00 dollars or both.
(M.C.S., Ord. No. 18,701, § 2, 4-16-98)

*Cross reference—Criminal code, ch. 54.
State law reference—Gambling, R.S. 14:90 et seq.

Secs. 14-215—14-225. Reserved.

DIVISION 2. BETTING POOLS*

Sec. 14-226. License fees generally.

(a) There is hereby levied, for general municipal purposes, a license fee of 2.26 percent on the total daily betting pool, on each person, association, corporation, or other entity conducting a race meeting within the parish.

(b) The license fee imposed under this section shall become the property of the city upon the placing of a wager on a race meeting within this parish.

(c) The license fee levied under this section shall be due and payable monthly on the 20th day of each month.

(d) For the purpose of ascertaining the amount of the license fee payable under this section, all persons, associations, corporations, or other entities conducting race meetings within the parish on or before the 20th day of each month, shall transmit to the director of the department of finance, upon forms prescribed and furnished by him, returns showing the gross amounts wagered during the preceding calendar month. Such returns shall show such further information as the director may require to enable him to correctly compute and collect the fee herein levied. Each return shall be signed by the race conductor filing it and his signature thereon shall constitute a warranty on his part that, to the best of his knowledge and belief, it is true and correct. Every race conductor, at the time of making the return required hereunder, shall compute and remit to the director the required fees due for the proceeding calendar month and failure to do so shall cause such fee to become delinquent. Should any return be prepared by a person other than the race conductor, such person shall also affix his signature thereto and warrant the correctness thereof.
(Code 1956, § 27-19(a)—(d))

*State law reference—Parish license fees for conducting race meetings, R.S. 4:163.1.

Sec. 14-227. False returns.

Any race conductor and/or other person on behalf of such race conductor signing and filing a return under this division subsequently found to be grossly incorrect, false or fraudulent shall be guilty of a misdemeanor and, upon conviction thereof, shall be subject to a fine of not more than $300.00 or imprisonment for not more than 149 days or both, in the discretion of the court.
(Code 1956, § 27-19(e))

Sec. 14-228. Records, reports—Required.

Every race conductor required to make a report and pay any fee under this division shall keep and preserve suitable records of the daily gross wager receipts upon which the fee is imposed under this division and such other books of accounts, ledgers or other information as may be required by the director. These records are to be preserved for a period of three years. All books of account, ledgers and other records of the gross wager receipts shall be open to the inspection, examination and photocopying at all reasonable hours, by the director or any of his duly authorized agents.
(Code 1956, § 27-19(f))

Sec. 14-229. Same—Penalty for violation.

The failure of any race conductor to keep records required by this division or permit the inspection, examination and photocopying thereof by the director or his duly authorized agents, shall be a misdemeanor punishable, upon conviction, by a fine of not more than $300.00 or imprisonment for not more than 149 days or both.
(Code 1956, § 27-19(f))

Sec. 14-230. Penalty for delinquency.

When any license fee payor under this division fails to pay the license fee or any portion thereof on or before the date prescribed for its payment, interest at the rate of 1¼ percent per month shall be added to the amount of the fee due from the due date until paid. In addition to the interest that may be so due, there shall also be collected a penalty of five percent of the fee if the failure to pay is not more than 30 days, with an additional five percent for each 30 days or fraction thereof during which the failure to pay continues. In the

event a suit is filed to collect the fees, interest and/or penalties due, there shall also be collected attorney's fees at the rate of 25 percent on the total amount of fees, interest and penalties due.
(Code 1956, § 27-19(g))

Sec. 14-231. Payment of penalties, interest.

All penalties and interest imposed by this division shall be payable to and recoverable by the director of the department of finance in the same manner as if they were part of the fees imposed.
(Code 1956, § 27-19(h))

Sec. 14-232. Distribution of race tips prohibited.

No person shall be allowed to hawk, peddle or distribute any card, paper or slip, either written by hand or machine, printed or otherwise, supposed to contain what are known as tips on races or any other event, on any street, sidewalk, doorway, steps or streetcar within the city. Nothing in this section shall refer to daily or weekly newspapers.
(Code 1956, § 27-2)

Secs. 14-233—14-275. Reserved.

ARTICLE VI. RIVERBOAT GAMING*

Sec. 14-276. Fee levied.

(a) In accordance with Louisiana Revised Statute 27:93 (2000), there is hereby levied an admission fee of $2.50 for each passenger boarding or embarking upon a riverboat operating on a river, lake, or other waterway with a licensed berth in the city and which is authorized to originate its excursions in the city by the state riverboat gaming commission.

(b) In the alternative, the city may calculate the $2.50 admission fee based upon a monthly percentage of the adjusted gross revenues of the riverboat. The percentage shall accurately reflect an amount equal to the total monthly admission fees charged at $2.50 per passenger

(c) Pursuant to paragraph (b) of this section, the alternative calculation of the $2.50 admission fee for the Belle of Orleans, L.L.C., shall be 5.47 percent of the adjusted gross revenues collected per month by Belle of Orleans, L.L.C.

(d) Adjusted gross revenue means the revenue figure as currently reported by Belle Orleans, L.L.C. to the office of state police, as audited by that office, and used in the computation of state tax. It is the amount as currently defined in Louisiana Revised Statute 27:44(15) (2000), Louisiana Register sections 42 L.R. § 2723(V)(3)(d), 42 L.R § 2735(A), 42 L.R. 2735(C), 42 L.R. § 2736(A), 42 L.R. § 2736(B), 42 L.R. § 2736(C), less the increases in the Caribbean Stud Poker Progressives, as currently authorized by the office of state police.
(Code 1956, § 55A-1; Ord. No. 19,967, § 1, 12-14-00)

Sec. 14-277. When due and payable.

The fee levied by this article shall be due and payable at the time when the passenger boards a riverboat subject to the provisions of this article. The riverboat operator is hereby charged with the duty and obligation to collect and remit the fee to the department of finance. For the purposes of this article, the term "passenger" shall not include an employee of the riverboat operators during his working hours; a contractor or supplier of the riverboat operator performing work or providing goods or services in connection with the riverboat's operation, or a person employed by or acting on behalf of the federal, state or local government while on official government business on the riverboat.
(Code 1956, § 55A-2)

Sec. 14-278. Collection by operator.

The fee authorized in this article may be assumed by the riverboat operator.
(Code 1956, § 55A-3)

*__Cross references—__Businesses, ch. 30; finance, ch. 70.
__State law references—__Riverboat economic development and gaming control act, R.S. 4:501 et seq.; power of local governing authority, restricted, R.S. 4:552(B).

Sec. 14-279. Collection of excess fee prohibited.

Whoever advertises or collects in the guise of a riverboat gaming admission fee in excess of the fee actually due is guilty of a misdemeanor.
(Code 1956, § 55A-4)

Sec. 14-280. Report and remittance.

Every riverboat operator subject to the terms of this division shall make reports of the previous month's business on or before the 20th day of the following month, such reports to be accompanied by a certified check, money order or cash for the amount of the fee due as indicated by the report. The monthly report submitted to the department of finance shall be on forms prescribed by the department and shall be signed by the person or riverboat operator remitting the fee, or his duly authorized representative. Such signature shall constitute a warrant on the part of the riverboat operator and the person signing the report that he has read and examined it and that, to the best of his knowledge and belief, the statement and figures therein contained are true, correct and complete.
(Code 1956, § 55A-5)

Sec. 14-281. Inspections.

In order that the department of finance may have additional means of checking and verifying the accuracy of such reports, all the records, books and other documents of riverboat operators and those making such reports as required by the preceding section shall be open for inspection by the department of finance agent at all reasonable hours for a period of four years, commencing with the calendar year in which the fee becomes due and continuing for a period of the three subsequent consecutive calendar years thereafter.
(Code 1956, § 55A-6)

Sec. 14-282. Penalties—Civil.

To further enforce the collection of the fees due under this article, independent of and in addition to the enforcement of the criminal penalties herein provided for under this section, the department of finance and/or the department of law are hereby vested with authority, on motion in a court of competent jurisdiction, to invoke and include in a rule or summary proceeding against a riverboat operator and/or the person responsible for remittance of the fee requiring them to show cause in not less than two nor more than ten days after service thereof, exclusive of holidays, which matter may be tried out of term and in chambers, and shall always be tried by preference, why such riverboat operator should not be enjoined and restrained from further pursuit of the business. In case such rule is made absolute, the order thereon rendered shall be considered a judgment in favor of the city, prohibiting, restraining and enjoining such riverboat operator from further pursuit of the business until such time as he has paid the delinquent fee, penalties, interest, attorney's fees and costs due, and every violation of the injunction shall be considered as a contempt of court and punishable as such according to law.
(Code 1956, § 55A-7)

Sec. 14-283. Same—Additional.

(a) If any fee due under this article is not collected and remitted within the time prescribed herein it shall become delinquent and the riverboat operator, in addition to being liable for the fee plus interest, shall be subject to penalties of 20 percent of the amount of the fee and interest or $500.00, whichever is greater, and attorney's fees of ten percent of the sum of the fee, interest and penalty in all cases where an attorney is required to assist in the collection.

(b) Any person signing and filing a daily or monthly report subsequently found to be grossly incorrect, false or fraudulent or violating any of the other provisions of this article shall, upon conviction, be guilty of a misdemeanor.
(Code 1956, § 55A-8)

Secs. 14-284—14-305. Reserved.

ARTICLE VII. PUBLIC INDOOR AND OUTDOOR ENTERTAINMENTS*

Sec. 14-306. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Live entertainment means live performances by musical act, theatrical play or act, including stand-up comedy, magic, dance clubs, disc jockey performances, and musical accompaniment, as that term is used in the Comprehensive Zoning Ordinance of the City of New Orleans, performed in conjunction with a bar, standard restaurant, amusement facility, winery, micro-distillery, distillery, brewery, reception facility, or cultural facility, but excluding such activity performed for the practice or private enjoyment of the residents of a dwelling and their guests, and as otherwise provided in the Comprehensive Zoning Ordinance of the City of New Orleans.
(Code 1956, § 63-40; M.C.S., Ord. No. 29257, § 1, 11-17-22)

Cross reference—Definitions generally, § 1-2.

Sec. 14-307. Prohibited in R zoning districts.

Except as otherwise provided in this chapter and the comprehensive zoning ordinance, it shall be unlawful for any person, landowner or lessee, to organize, promote, conduct or cause to be conducted live entertainment, amusement or assembly of persons in any residential zoning district of the city.
(Code 1956, § 63-41; M.C.S., Ord. No. 29257, § 1, 11-17-22)

Sec. 14-308. Permit required.

No person, owner, occupant, or tenant shall allow, authorize, or cause to be performed indoor or outdoor live entertainment at his or her property without first having obtained approval from the department of safety and permits and as permitted by the comprehensive zoning ordinance. A separate permit is required for indoor live entertainment and outdoor live entertainment.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Sec. 14-309. Same—Application.

(1) The department of safety and permits shall administer annual live entertainment permit applications and regularly publish listing of properties with annual indoor and outdoor live entertainment permits and status of same, including those permits issued as conditional uses under the comprehensive zoning ordinance.

(2) The live entertainment permit application shall require the following to be submitted for review by the director of the department of safety and permits:

(a) Noise abatement plan addressing the intended use of amplification, noise levels, need for soundproofing, and compliance with the sound ordinance;

(b) A security and operation plan, including exterior security camera provisions, approved by the director of the department of safety and permits;

(c) Approval of the city council for a conditional use where required by the comprehensive zoning ordinance; and

(d) A management plan demonstrating the on-site presence of a manager during the event; layout of performance areas, visitor facilities, such as seating areas and restrooms, and all ingress and egress points to the site; provisions for recycling and waste removal; days and hours of operation, including set-up and take-down times; and a description of crowd control and security measures.

(3) Failure to adhere to the submitted plans shall be considered a violation of this section.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

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*__Editor's note—__M.C.S., Ord. No. 29257, § 1, adopted Nov. 17, 2022, amended the title of Art. VII to read as herein set out. The former Art. VII was titled "Public Outdoor Musical Entertainments."

Cross reference—Businesses, ch. 30.

State law reference—Regulation of concerts by city, authorized, R.S. 4:7.

Sec. 14-310. Fee schedule for annual permits.

Permits required by this article shall be paid for by the applicant at the time of issuance according to the following schedule. These fees shall be nonrefundable and shall not be waived. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District.

(1) For live entertainment conducted indoors, whether or not admission is charged or fee exacted in any manner, per year.

Gross sales of:	*Nonprofit*	*All Others*
$0—$10,000	125.00	250.00
$10,001—$50,000	250.00	500.00
Over $50,000	375.0	750.00

(2) For live entertainment conducted outdoors, whether or not admission is charged or fee exacted in any manner, per year:

Gross sales of:	*Nonprofit*	*All Others*
$0—$10,000	125.00	250.00
$10,001—$50,000	250.00	500.00
Over $50,000	375.00	750.00

(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Sec. 14-311. Permit duration and renewal.

(1) Permits shall be valid from the date of issuance through March 31 of each calendar year. Renewal applications and fees shall be due and payable on April 1 for the ensuing year. Failure to pay permit fees shall result in the imposition of delinquency penalties, as provided in subpart (2).

(2) The delinquency penalty shall be 25 percent over and above the regular fee, beginning five days after April 1, if the failure to pay is for not more than 30 days. There shall be an additional five percent penalty for each additional 30 days or fraction thereof during which the failure continues.

(3) Should it become necessary for the city to make a claim in any court of competent jurisdiction for all or a portion of any of the permit fees and penalties provided in this article, an additional charge of ten percent may be added for attorney fees.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Sec. 14-312. Permits to be displayed.

All permits issued under the provisions of this article shall be displayed in a conspicuous place on the premises at all times. If the establishment's ability to host live entertainment is granted by conditional use ordinance from the city council, the operating provisos relative to that use shall also be displayed. Failure to comply with this section shall constitute a violation of this article.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Sec. 14-313. Enforcement.

(1) Any violation of this article, or applicable provisions of the comprehensive zoning ordinance, or any conditional use pertaining to live entertainment, or any other applicable law is prohibited, and shall subject the permittee to penalties, which may include revocation or suspension of the live entertainment permit, fines or fees, and any other remedy allowed by law.

(2) Notice and hearing requirements for determining violation(s) shall be in accordance with the administrative procedures provided in chapter 6, article II of this Code.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Sec. 14-314. Denial or rescission.

Any misstatement or suppression of facts in any application for a permit under this article shall be grounds for refusal of the permit or rescission thereof if already issued.
(M.C.S., Ord. No. 29257, § 2, 11-17-22)

Secs. 14-315—14-330. Reserved.

ARTICLE VIII. ROLLER COASTERS AND SIMILAR RIDES*

Sec. 14-331. Approval required of plans.

Any person intending or desiring to construct and operate for public amusement any device, contrivance or structure of any kind or nature whatsoever, such as a loop-the-loop, chute-the-chute, scenic railway or roller coaster in any park, vacant lot, building or other place of public resort in the city shall, before attempting to construct such, submit the plans to the department of safety and permits and obtain from it a certificate that the proposed device, contrivance or structure is safe and free from any elements of danger to persons who may use or come in contact therewith.
(Code 1956, § 63-35)

Sec. 14-332. Certificate required as prerequisite to operation.

Before any device, contrivance or structure under this article is permitted to operate and before the public is permitted to use or come in contact therewith, the person that proposes to operate such shall first obtain a certificate from the director of the department of safety and permits that the structure is safe in all respects and that it has been constructed with the requisite solidity and that all of the materials used in the construction are sound and free from defect. Such certificate must show that the inspection contemplated by this section was actually made by the director of the department of safety and permits or one of his duly qualified assistants.
(Code 1956, § 63-36)

Sec. 14-333. Frequency of inspection.

The director of the department of safety and permits shall inspect all structures of the character set forth in section 14-331 as often as he may deem necessary; but such inspection shall be made at least once in every 30 days. If any such structure is found to be unsafe or in bad repair the director shall notify the owner or operator thereof. If the operator fails to stop the operation of such device, contrivance or structure immediately he shall be punished in the manner provided in section 1-13.
(Code 1956, § 63-37)

Secs. 14-334—14-355. Reserved.

ARTICLE IX. SHOOTING GALLERIES†

Sec. 14-356. Consent required; enclosure.

It shall not be lawful for any person to erect or in any manner establish or continue any pistol or shooting gallery within the limits of the city without having first obtained the consent of two-thirds of the persons residing within one square [sic] of the place where any pistol or shooting gallery is intended to be established and the permission of the council. Any person establishing such shooting gallery shall have it enclosed as to prevent the report of firearms being heard in the streets on which it may be located.
(Code 1956, § 63-38)

Cross reference—Businesses, ch. 30.

*__Cross reference—__Businesses, ch. 30.

__State law reference—__Regulation of roller coasters and other amusement rides by city, authorized, R.S. 4:7.

†__State law reference—__Regulation of shooting galleries by city, authorized, R.S. 4:7.

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ARTICLE I. IN GENERAL

Sec. 18-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agency means the agency or entity, including its officers and agents, designated by the City of New Orleans to maintain an animal control program for the city.

Cat means any felis catus four months of age or older.

Community cat means a feral or free-roaming cat that is without visibly-discernible identification of any kind and has been sterilized, vaccinated, and ear-tipped. Community cats are exempt from licensing, feeding bans and registration requirements.

Community cat caregiver means any person other than an owner, keeper, custodian or harborer, who provides food or water to a community cat or community cats.

Cruelty to animals means the intentional or criminally negligent mistreatment of any animal by any act, or omission whereby unjustifiable physical pain, suffering, or death is caused to or permitted upon such animal.

Director means the Director of the Department of Health for the City of New Orleans or his duly authorized representative.

Dog means any canis lupis familiaris over four months of age.

Ear-tipped means removing approximately a quarter-inch off the tip of a cat's left ear while the cat is anesthetized for sterilization.

Feral cat means a cat that is born in the wild, is the offspring of an owned or feral cat and is not socialized, or is a formerly-owned cat that has been abandoned and is no longer socialized.

Ferocious animals means any wild or exotic animal that by virtue of its size, temperament, natural environment or present circumstances is capable of threatening the safety of a living being or one that may be given to extreme fierceness, unrestrained violence or brutality.

Keeper and/or *custodian* means any person other than the owner harboring or having in his possession any dog, cat or companion animal (excluding wild, exotic or ferocious animals).

Licensed veterinarian means a practicing veterinarian in the city who is licensed by and is in good standing with the Louisiana State Board of Veterinary Examiners.

Owner means any person owning, possessing, harboring, keeping, maintaining, or having or assuming the care, custody or control of an animal or fowl.

Wild or *exotic animals* means:

(1) Any live monkey (nonhuman primate), raccoon, skunk, wolf, squirrel, coyote, fox, leopard, panther, tiger, lion, lynx, serval cat, or any other warm-blooded animal not otherwise defined;

(2) Any venomous or constricting snake (such as Boidae family) that will grow to an adult size greater than three feet;

(3) Any tarantula which can normally be found in the wild state;

(4) Any member of crocodilian including, but not limited to, alligators, crocodiles, caimans and gharials;

(5) Any exotic animal hybrid; or

(6) Any rooster, cockerel, cock, or chanticleer.

Ferrets, nonvenomous snakes (other than constricting snakes that will grow to an adult size larger than three feet), rabbits, box or aquatic turtles, laboratory rats and skunks which have been bred and raised in captivity which have never known the wild, and pocket pets or pet rodents including, but not limited to, hamsters, gerbils, guinea pigs, chinchillas, sugar gliders or hedgehogs shall be excluded from this definition. (Code 1956, § 7-1(a)—(j); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Cross reference—Definitions generally, § 1-2.

Sec. 18-2. Cruelty and abuse of animals prohibited.

(a) It shall be unlawful for any person to ill-treat, tease, molest, or abandon an animal or fowl. It shall be unlawful to overdrive, overload or cruelly beat, mutilate, kill, torture, poison, abuse, or cause to procure to be overdriven, overloaded, or cruelly beaten, mutilated, killed, tortured, poisoned or abused, any animal or fowl.

(1) A feral cat that has been trapped for the purpose of sterilization, vaccination or ear tipping and is returned to the location where it was trapped shall not be deemed abandoned.

(b) It is unlawful for any person keeping an animal or fowl to fail to provide for that animal or fowl:

(1) Clean, sanitary, safe and humane conditions;

(2) Sufficient quantities of appropriate food daily served in a sanitary container or dish;

(3) Proper shelter as defined in section 18-2.1;

(4) Adequate quantities of visible clean and fresh water available at all times provided in a sanitary manner; and

(5) Medical attention and/or necessary veterinary care when an animal is sick, diseased, or injured. This shall include necessary efforts to maintain an animal's coat and skin in a reasonably healthy condition and free of fleas and ticks. Upon request of the agency, written proof of veterinary care must be provided.

(6) Sufficient living space for the animal to move about freely to exercise, lie down, as well as sit and stand.

An animal shall be considered abandoned if any of the above requirements are not met for more than 24 hours.

(c) Individuals, institutions or corporations who trap domestic animals or wildlife in humane traps are responsible for monitoring the traps and ensuring the safety of the animals trapped until they are removed by the agency or a certified wildlife removal company. Failure to monitor the wellbeing of the trapped animals resulting in injury or death of the trapped animal whether intentional or through negligence shall be unlawful and considered cruelty to animals.

(d) It shall be unlawful to leave any animal in an unattended motor vehicle or transport an animal in any motor vehicle without adequate ventilation. Temporary or permanent medical injury, distress, or death caused to an animal in a vehicle regardless of ventilation shall be considered cruelty.

(e) It shall be unlawful to transport any animal on a public road in any open-bed vehicle unless the animal is safely and humanely restrained (at a minimum by a harness with double tethering for dogs) so that the animal is unable to jump or fall out of the vehicle. If transporting an animal in a kennel or cage in an open bed vehicle, the kennel or cage must be double-tethered to prevent the kennel from moving.

(Code 1956, § 7-6; Ord. No. 20,760, § 1, 6-20-02; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law references—Municipalities, authority to punish, R.S. 3:2392; cruelty to animals, offense, R.S. 14:402.1.

Sec. 18-2.1. Minimum standards of care for animals.

(a) *Shelter and care.*

(1) A shelter must be sanitary, of sound construction, and provide adequate protection from the cold and heat. The shelter must be placed in a dry area free of debris, feces, and standing water. It must have at least three solid sides and a solid, immovable, weatherproof roof, have a solid sanitary floor that sits at least 1.5 inches off of the ground, be adequately ventilated, provide adequate light, and provide shelter from wind, rain, sun and the elements at all times. Suitable drainage must be provided so that water is not standing in or around the shelter.

(2) A shelter must be large enough for the animal to stand, turn around, and lie down without touching the sides or top of the shelter.

(3) All areas where animals are kept shall be cleaned regularly so that fecal matter is disposed of so not to attract insects or rodents, become unsightly or cause objectionable odors. For cats and dogs, floors of animal housing areas should be made of an impervious material to facilitate cleaning and drainage. Sealed concrete is ideal.

(4) If multiple animals are present in one location, each animal must have a separate and clean food bowl. Each animal must have access to shelter and the owner must meet all standards as detailed in this section.

(5) When outdoor temperatures reach freezing levels, all cats, except feral and community cats, dogs, and companion animals (excluding wild, exotic and ferocious animals) must be moved indoors or to an area that provides shelter from the weather. All cats, except feral and community cats, and dogs must be moved indoors for their safety for the duration of an extreme weather advisory issued for a specific time period by the NOAA's National Weather Service including but not limited to: heat, tornado, tropical storm, or hurricane. Animals must remain indoors and provided care for the duration of the advisory unless being walked on a leash by their owners, guardian or custodian.

(6) No dog or cat shall wear a muzzle unless the owner is present or the dog or cat is under veterinary care.

(7) If the agency determines upon inspection that an animal owner or keeper is not in compliance with the provisions of this section, the agency shall provide written notice to the owner or keeper as such. Failure by the owner to comply within five business days of receiving notice shall result in the temporary impoundment of all animals on the offending property(s) by the agency and the issuance of a summons or citation to the owner pursuant to section 18-36. The agency may remove any animal from the property in less than five business days, if the removal is deemed necessary by the agency to protect the health and well-being of the animal. All animals shall be promptly returned to the owner or keeper upon a determination by the society that the owner or keeper has come into compliance with this section or determination by the municipal court that the owner or keeper was not in violation of this section. The owner or keeper shall compensate the agency for the costs of keeping and care of the animal(s) for every day that the animal was in the possession of the agency pursuant to the fee schedule laid out in section 18-56, except that the owner or keeper shall not be required to compensate the agency if the municipal court determines that the keeper or owner was not in violation of this of this section.

(b) *Tethering.* It shall be unlawful to tether a dog, except as follows. A dog may be restrained to an overhead running line, pulley, or trolley system under the following conditions:

(1) The tether is attached to the dog by means of a suitable, properly-fitted collar or harness not exceeding two inches in width. Choke or prong collars are not permitted. The tether must have a swivel on both ends.

(2) The tether provides access to adequate space for the dog to move about freely and cannot become entangled in such a way that would prevent the dog's mobility or cause strangulation.

(3) At minimum, the tether should be four times the length of the dog from the tip of nose to the tip of the tail and the tether must allow the dog to lie down with its head flat on the ground and provide an additional 12 inches of slack.

(4) The tether is made of a durable, lightweight material that will not cause unnecessary stress on the dog. The tether shall not weigh more than three percent of the dog's total body weight. Thick chains and other heavy lines are prohibited.

(5) The tether allows the dog to move at least 30 feet. Otherwise, the dog must be removed from the tether at least twice a day for exercise and/or socialization for a minimum of 60 minutes each day.

(6) The tether does not inhibit the animal's access to shelter, shade, food and water; and

(7) Intact dogs may not be tethered under any circumstances.

(8) Dogs may not be tethered unsupervised between the hours of 11:00 p.m. and 6:00 a.m.

(Ord. No. 20,760, § 2, 6-20-02; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-3. Bringing sick animals into city.

No person shall bring into or maintain within the limits of the city any animal sick with a reportable disease declared by the director to be of an epidemical nature.

(Code 1956, § 7-21; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Unlawful transportation of diseased animals, R.S. 3:2097.

Sec. 18-4. Report of sickness, isolation of animals.

All owners or persons in charge of animals, including veterinary surgeons, and all other persons shall at once report to the director any case coming to their knowledge of animals sick with a reportable disease declared by the director to be infectious, contagious or of epidemical nature, or any case which may be regarded as suspicious or exhibiting symptoms of any such disease, and shall at once isolate any sick animal from the well stock.

(Code 1956, § 7-22; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Restraint of sick animals, R.S. 3:2132.

Sec. 18-5. Cremation of animals dying of disease; disinfection of place.

Upon the death of any animal from any disease of an epidemical nature, or from any suspicious cause, the owner of such animal or his agent shall immediately report such fact to the director and then proceed to cremate the animal or have it cremated in such a manner and at such time and place as the director may indicate. He shall also disinfect or have disinfected the place where any such sickness or death occurs in such manner as the director may prescribe.

(Code 1956, § 7-23; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Cremation or burial of animal carcasses, R.S. 3:2131.

Sec. 18-6. Owner not to withhold information from director.

It shall be unlawful for any owner or person in charge of any animal to purposefully withhold from the director any information relative to any infectious, contagious, suspicious, suspected or reportable case of illness among animals.

(Code 1956, § 7-24; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-7. Wild or exotic animals as pets prohibited.

No person shall keep or permit to be kept any wild, or exotic animal as a pet.

(Code 1956, § 7-18; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-8. Display of notice where wild or exotic animals are sold.

No person shall offer for sale wild or exotic animals as pets. Zoos and educational institutions that are accredited and that meet all state and federal regulations may sell wild and exotic animals to other zoos or educational institutions with similar accreditations and that also meet all state and federal regulations.

(Code 1956, § 7-19; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-9. Keeping ferocious animals in the city.

No ferocious animals shall be kept within the limits of the city on the premises of individuals or in menageries unless such animals are under the charge of an armed guard day and night.
(Code 1956, § 7-13)

Cross reference—Dangerous or vicious dogs, § 18-291 et seq.

State law reference—Regulation of menageries by city, authorized, R.S. 4:7.

Sec. 18-10. Ferocious animals may be destroyed.

The agency, through its agents, as well as law enforcement agents may destroy any ferocious animal which cannot be safely taken up or impounded, but it shall be unlawful for any other person to willfully kill any animal unless in protection of life or limb.
(Code 1956, § 7-26; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Destruction of dangerous or vicious dog, permitted, R.S. 3:2773(D).

Sec. 18-11. Feeding or annoying animals in zoo, park, etc.

It shall be unlawful for any person to feed without authorization any beast, fowl, bird, reptile or animal of any kind whatsoever confined in a cage or enclosure in any zoo, park, or other public place, or to annoy any animal by throwing or putting any object into any such cage or enclosure.
(Code 1956, § 7-15; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-12. Places where animals are kept are to be kept clean.

All places where animals are kept shall be kept clean and wholesome by removal of all fecal matter, odor, urine, deceased animals and other offensive matters and by suitable cleansing as often as may be necessary, under the rules and regulations established by the director.
(Code 1956, § 7-11; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Cross reference—Nuisances, § 66-241 et seq.

Sec. 18-13. Soiling of public and private property by animals.

(a) If any public or private property is soiled or contaminated by an animal, whether such nuisance shall take place in the presence of the owner or keeper or not, or if the owner or the keeper is a minor, the parents or guardian thereof shall be deemed guilty of violating this section. This section shall not apply in a designated off-leash area or "dog park" in which the owner or keeper, or parents or guardian thereof, shall abide by the regulations imposed by the management of such area which shall include, but not be limited to, immediate cleanup and proper disposal of animal waste by the owner or keeper, or parent or guardian thereof.

(b) Any person who is in violation of this section, shall be punished by a fine of not less than $100.00 and no less than three seven-hour days of trash cleanup duties.
(Code 1956, § 7-25; M.C.S., Ord. No. 16,828, 12-15-94; M.C.S., Ord. No. 22996, § 1, 2-15-08)

Cross references—Nuisances, § 66-241 et seq.; streets, sidewalks and other public places, ch. 146.

Sec. 18-14. Cats and dogs to be confined, exceptions.

(a) Except as provided herein below, all cats and dogs are to be confined within a secure, enclosed fence that is a minimum of four feet tall and shelter as outlined in section 18-2.1(a)(1) or properly tethered as outlined in section 18-2.1(b) at all times, unless accompanied by an owner, driver or keeper.

(b) Dogs which are properly licensed and vaccinated as stipulated in this chapter may be allowed outside of an enclosure if under a secure leash and accompanied by their owner or keeper but are not to be allowed to trespass upon any public property, if so prohibited by another ordinance, or upon private property. Designated dog parks or "off-leash" areas are exempt from the provisions of this section. The area of City Park known as NOLA Bark generally bounded by Zachary Taylor Drive, Diagonal Drive, and Magnolia Drive is such an exempted area.

(c) All indoor/outdoor cats that are privately owned must be microchipped or ear tipped.

(d) Community cats may be allowed outside so long as the cats do not prove to be a nuisance to neighbors. Any ear-tipped cat collected under the provisions of this section shall be released on-site unless suffering from an obvious injury or illness. Any non-ear-tipped cat collected under the provisions of this section shall not be returned to its owner until such time as said owner shall have the cat spayed or neutered, ear tipped or microchipped, and vaccinated against rabies, and all nuisance complaints are resolved. Repairing damage caused to private property as well as any required modifications required to abate the nuisance shall be the responsibility of the registered caregiver.

(e) Notwithstanding the provisions of this section allowing otherwise, no dogs other than dogs in parades in which dogs are the main attraction or sole participants, dogs confined on the property of their owners, dogs assigned to law enforcement canine units, seeing-eye dogs and/or dogs assisting physically challenged individuals, are allowed within 200 yards of any parade route one hour before, during, or one hour after a scheduled parade.
(Code 1956, § 7-12; M.C.S., Ord. No. 18,635, § 1, 2-19-98; M.C.S., Ord. No. 19,031, § 1, 12-17-98; M.C.S., Ord. No. 22996, § 2, 2-15-08; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-15. Sale of rabbits and other animals.

(a) All rabbits sold or adopted in Orleans Parish by individuals or pet shops must be spayed or neutered prior to sale or adoption unless certified by a veterinarian as unfit for surgery due to age or other medical condition.

(b) The auctioning, raffling or giving away as a prize or premium or advertising device of any animal at public or private events, including at fundraising events, is hereby prohibited.

(c) Individuals and retail establishments selling, adopting or placing animals must maintain the following information for a 12-month period after the sale of the animal and make it available for inspection to the agency:

(1) The source of each animal available for sale or sold including the name, address, and phone number of animal breeder;

(2) A valid health certificate issued by a Louisiana licensed veterinarian prior to sale in Orleans Parish; and

(3) A copy of all information provided to the purchaser regarding veterinary care requirements for the specific type of animal for sale.

Willful failure to comply with this section may result in a citation under section 18-18(b).
(Code 1956, § 7-9; M.C.S., Ord. No. 21363, § 1, 12-1-03; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-16. Sale, etc., of artificially colored or dyed animals.

No animal that has been dyed or otherwise colored artificially may be sold or offered for sale, raffled, offered or given as a prize, premium or advertising device; or, displayed in any store, carnival or other public place.
(Code 1956, § 7-10)

State law reference—Similar provisions, R.S. 3:2363.

Sec. 18-17. Animal fighting, facilities for same, prohibited.

It shall be unlawful for any person to hold, operate, attend, sponsor or in any way further a contest that pits animals against each other and for anyone to maintain facilities for this purpose.
(Code 1956, § 7-36)

State law reference—Dogfighting, R.S. 14:102.5 et seq.

Sec. 18-18. Fines and other penalties for violations.

(a) Violations of this chapter shall be deemed to be violations of a public health and environmental ordinance; and shall be subject to civil administrative adjudication pursuant of chapter 6.

(b) Any person who commits any act prohibited or omits the doing of any act required by this chapter for which a lesser penalty is not specifically prescribed herein, shall be guilty of a misdemeanor and upon conviction thereof in the municipal court shall be liable for a fine not to exceed $500.00, and/or a term of imprisonment not to exceed six months, and/or community service and all costs associated with the feeding and

keeping of the animals in section 18-56. In addition, the presiding judge may in his/her discretion impose any other sanction or take any action that he/she deems necessary for the protection of public health or safety or the well-being of any animal that is connected to the proceeding at hand.
(Code 1956, § 7-43.7; M.C.S., Ord. No. 18,638, § 1, 3-5-98; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-19. Responsibility of association members, partners and corporate officers.

When an association of individuals is charged with violation of any provision of this chapter, each individual of such association or, if it is a foreign association, the local agent or person locally in charge thereof shall be deemed to represent such association of individuals for the purpose of enforcing this chapter and shall be held responsible and punishable for each violation thereof. When a firm is charged with such violation, each member thereof or, if it is a foreign firm, the local agent or person locally in charge of such firm shall be deemed to represent such firm for the purpose of enforcing this chapter, and shall be held responsible and punishable for each violation thereof. When a corporation is charged with such violation, all or any officers of such corporation may be held responsible and punishable for each violation of this chapter or if it is a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this chapter and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 7-57)

Sec. 18-20. Unnatural stimulation of horses; willful pulling of reins; penalty.

(a) No person shall administer or apply or cause to be administered or applied to any horse which has been entered in any race, any drug, chemical, or other substance whatsoever, or any electric battery or other apparatus, which might have the effect of unnaturally depressing, stimulating or exciting any horse during any race. No jockey mounted on any horse during a race shall willfully pull the reins, or do anything whatsoever that has the effect of diminishing the chance of the horse winning any race whether such action on the part of the jockey is of his own accord, by instruction from the owner of the horse, or as a result of conspiracy with any other person.

(b) The violation of this section shall be punishable by a fine of not less than $100.00 or by imprisonment for not less than 30 days or both such fine and imprisonment.
(Code 1956, § 42-114)

State law reference—Similar provisions, R.S. 4:175.

Secs. 18-21—18-35. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Sec. 18-36. Certain powers of the director and the agency.

The director and the agency may exercise all powers necessary or convenient to carry out the provisions of this chapter including issuing summonses for violations of the provisions of this chapter. Upon discovering a violation of this chapter the director, the agency or any other persons authorized by law, shall issue a summons or citation to the person(s) legally responsible for the violation. The summons or citation need not be served at the time the violation is discovered. The summons shall recite the violation charged and:

(1) If a lesser violation as outlined in section 18-18, the fine to be assessed therefor. The summons or citation shall also apprise the violator that he has five days from the date of the issuance of the summons or citation to remit by U.S. Mail or in person the fine at the office of the agency. The summons or citation shall further contain a trial date and recite that if after the expiration of five days, the fine has not been paid, a copy of the summons or citation will be forwarded to the clerk of the municipal court and a hearing will be held on the trial date.

*__Cross reference—__Administration, ch. 2.

(2) If a misdemeanor as outlined in section 18-18, the trial date upon which a hearing will be held at municipal court.

The director, the executive director of the agency, or the chief or assistant chief humane officer of the agency shall have the power to administer oaths and affirmations in connection with charges made under this section. The city shall furnish such police officers as may be necessary to assist in the enforcement of this chapter and also in the enforcing of any other law or ordinance relative to the curbing of cruelty to animals.
(Code 1956, § 7-2; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Agents of corporation as special police officers, R.S. 3:2391.

Sec. 18-37. Reserved.

Editor's note—M.C.S., Ord. No. 25205, § 1, adopted March 7, 2013, repealed § 18-37, which pertained to society designated an employee of the city with duty to operate veterinary medicine clinics and derived from Code 1956, § 7-2.1.

Sec. 18-38. Interference with director or society.

(a) Any person who shall hinder, molest or interfere with the director or the society in the performance of any function authorized by this chapter shall be guilty of a violation of this section.

(b) When called upon, the police are to assist the director or the society in the enforcement of this chapter.
(Code 1956, § 7-3)

Sec. 18-39. Landlords and agents to provide information.

The owner, or his agent, of property inhabited by others must furnish the names of the inhabitants, to the director, or the society if such information is necessary to enforce any section of this chapter.
(Code 1956, § 7-4)

Sec. 18-40. Director may order animals impounded.

If the director in the performance of his duties determines that any animal is being maintained in an environment that may be detrimental to its health and safety or to the public health and safety he may order the society to impound such animal.
(Code 1956, § 7-5)

Secs. 18-41—18-55. Reserved.

DIVISION 2. CITY ANIMAL SHELTER*

Sec. 18-56. Compensation of agency.

The agency shall receive the total fees that may accrue from the keeping and feeding of the animals impounded under this chapter according to the following schedule:

Stray or owned animal impounded by the agency: $35.00 for the first day, $25.00 each additional day.

Stray or owned animal brought to the agency by the public: $25.00 for each day.

Stray or owned animal without current rabies license or vaccination: $25.00 in addition to daily care rate.

Stray or owned animal without microchip: $35.00 for microchip insertion.

Stray or owned animal with medical conditions requiring veterinary care: Reimbursement of the actual, documented cost of veterinary services.

Stray or owned animal intact: $50.00 for spay/neuter surgery.

Fees may be waived or reduced at the discretion of the agency or its agents.
(Code 1956, § 7-27; M.C.S., Ord. No. 25205, § 1, 3-7-13)

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*__Editor's note—__**Editor's note—**M.C.S., Ord. No. 25205, § 1, adopted March 7, 2013, amended the title of Div. 2 to read as herein set out. Formerly, said division was entitled "City Pound."

State law reference—Authority to regulate animals running at large, R.S. 3:2531, 3:2731.

Sec. 18-57. Impoundment authorized.

All animals and animal-drawn vehicles taken up by the police, the agency or other citizens for violating the provisions of this chapter shall be placed in the city animal shelter.
(Code 1956, § 7-28; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-58. Release of impounded animals.

No animal or vehicle taken up and impounded under this chapter shall be released therefrom without payment of the full fee chargeable therefor.
(Code 1956, § 7-29)

State law reference—Pet overpopulation control, R.S. 3:2471 et seq.

Sec. 18-59. Disposition of impounded animals.

Animals impounded shall be held for a period of three days for any owner to claim the animal, except dog(s) that at the time of impoundment are wearing a collar bearing a tag showing the name and address of its owner. Owner(s) of dog(s) bearing a collar with a tag shall receive written notice of the dog's impoundment and shall be allowed seven days from the date of the notice to reclaim the dog. All animals unredeemed after their respective hold periods shall become property of the agency and disposition determined under section 18-268.
(Code 1956, § 7-31; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Pet overpopulation control, R.S. 3:2471 et seq.

Sec. 18-60. Attempt to release animal unlawful.

Whoever shall attempt to rescue forcibly or by artifice any animal referred to in this chapter while such animal is being carried to the shelter or when in the shelter, or attack or interfere with the person conveying such animal to the shelter or in charge of the animal in the shelter shall be guilty of a violation of this Code.
(Code 1956, § 7-30; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-61. Minimum standards for animal housing facilities.

All facilities with occupancy licenses issued by Orleans Parish for operating a kennel, animal shelter or housing facility for rescued animals, homeless or owned animals must meet or exceed the minimum standards established by Association of Shelter Veterinarians in the Guidelines for Standards of Care in Animal Shelter (2010) and any standards of care set forth in the City Code. The agency is authorized to inspect these facilities. Failure to make modifications to meet the standards shall result in a fine of up to $500.00 per day. The foregoing provisions shall not apply during an extreme weather advisory or emergency situation, or in the case of mass seizure or rescue of animals.
(Code 1956, § 7-32; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-62. Owner liable for damages.

For any damage caused by any animal to private or public property, the owner of such animal shall be held responsible and liable for the repairs thereof.
(Code 1956, § 7-33)

Secs. 18-63—18-85. Reserved.

ARTICLE III. EXHIBITIONS AND DISPLAYS*

DIVISION 1. GENERALLY

Sec. 18-86. Definitions.

The following words, terms and phrases, when used in this article, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Carnival means amusement activities, such as rides, merry-go-round, booths for the conduct of games of skill, food-dispensing facilities and side-

*__State law reference—__*Regulation of exhibitions by city, authorized, R.S. 4:7.

shows. It does not include gaming devices, lotteries, punchboards or other activities not in violation of the Code.

Dangerous animal means animals other than domestic dogs and cats which in a wild state are carnivorous or which, because of their nature or physical makeup, are capable of inflicting serious physical harm or death to human beings, including but not limited to such animals which belong to the cat family, snakes which are poisonous or otherwise present a risk of serious physical harm or death to human beings as a result of their nature or physical makeup, including all constrictors; and all bears, wolverines, badgers, lions, tigers, alligators, crocodiles and other such animals as the director of the department of health shall determine by written rules to be dangerous.

Exhibitions means circuses, menageries, carnivals, sideshows and other similar amusement enterprises which are open to the public or for admission to which a fee is charged, a donation collected or registration required. Exhibitions include retail events such as the Home and Garden Show, neighborhood markets or festivals, reptile show or other events where animals are featured for sale or adoption, viewing or competition.
(Code 1956, § 7-17(a); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Cross reference—Definitions generally, § 1-2.

Sec. 18-87. Exceptions.

The provisions of this article shall not be construed to apply to permanent zoological parks performing animal exhibitions properly licensed by the State of Louisiana or the City of New Orleans, circuses, veterinary clinics, bona fide education or medical institutions, or museums.

Permit, fee, and insurance is not required for exhibitions by 501(c)3 organizations registered with the Secretary of State of Louisiana; however, veterinary records must be maintained and on hand.
(Code 1956, § 7-17(g); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-88. Penalties.

Any person convicted of a violation of the provisions of this article shall be subject to a minimum fine of $500.00 or imprisonment for not less than 30 days and not to exceed six months, or community service, or a combination of the foregoing, for each violation.
(Code 1956, § 7-17(h); M.C.S., Ord. No. 18,638, § 2, 3-5-98)

Secs. 18-89—18-110. Reserved.

DIVISION 2. PERMIT

Sec. 18-111. Exhibition permit.

It shall be unlawful to conduct or operate within the city limits any animal exhibitions or carnivals involving ferae naturae or domestic animals in exhibitions which are open to the public without first securing a permit therefor from the City of New Orleans' Department of Finance, Bureau of Revenue, with the approval of the director of the department of health in accordance with rules and regulations as promulgated by the department of health.
(Code 1956, § 7-17(b); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-112. Conditions for issuance of permit.

Prior to the issuance of a permit, the applicant shall furnish suitable evidence of his or her intention and ability to comply with the following conditions:

(1) Maintenance of site, i.e., keeping same clean, free of trash, animal waste, papers and other debris and litter and providing an adequate number of trash containers properly located.

(2) Security to keep order and provide a safe environment for both the public and the animals.

(3) Proof of compliance with safety and permit requirements for mechanical, structural and electrical and other hazards.

(4) Proof of public liability insurance and bonding in the amount of $250,000.00.

(Code 1956, § 7-17(b)(1); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-113. Permit fees.

Any person, organization or entity that wishes to hold an animal exhibition, circus or carnival in Orleans Parish must first obtain a permit from the City of New Orleans. Fees for these events are as follows:

(1) For activities involving less than five animals, a 72-hour permit fee of $150.00.

(2) For activities involving more than five animals, a 72-hour permit fee of $250.00

Permits may be renewed for each additional 72-hour period. Willful failure to comply with this section may result in a citation under section 18-18(b).
(Code 1956, § 7-17(b)(2); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-114—18-134. Reserved.

DIVISION 3. REGULATIONS

Sec. 18-135. Application of division.

The prohibitions in this division apply to events and activities taking place on either public or private facilities or property and apply regardless of the purpose of the event or activities and irrespective of whether or not a fee is charged to spectators.
(Code 1956, § 7-17(f))

Sec. 18-136. Wild, exotic, etc., animals—Keeping prohibited.

No person shall keep or permit to be kept on his premises any wild, exotic, ferocious, dangerous or vicious animal for display or for exhibition purposes, whether gratuitously or for a fee, unless permitted by federal and state laws.
(Code 1956, § 7-17(c); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-137. Same—Fighting, harassing.

No person may sponsor, promote, or train an animal to participate in, or contribute to the involvement of an animal in, or attend as a spectator, any event or activity in which an animal:

(1) Engages in unnatural or generally-repugnant behavior;

(2) Is wrestled or fought (such as bear wrestling, cockfighting and dog fighting);

(3) Is mentally or physically harassed;

(4) Is displayed in such a way that the animal is abused or stressed mentally or physically; or

(5) Is induced or encouraged to perform through the use of chemical, mechanical, electrical or manual devices in a manner that will cause or is likely to cause physical injury or suffering.

(Code 1956, § 7-17(d); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-138. Maintenance of equipment.

All equipment used on performing animals under this division shall fit properly and be in good working condition.
(Code 1956, § 7-17(e))

Sec. 18-139. Veterinary records for animals in exhibitions.

Individuals corporations or organizations, showcasing animals for adoption, sale, competition, viewing or educational purposes must have a physical copy of vaccination records for all animals and provide this copy to the agency upon request.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-140—18-165. Reserved.

ARTICLE IV. RABIES CONTROL*

Sec. 18-166. Impoundment of animals suspected of rabies.

The society, of its own authority or if ordered by the director, shall impound any animal suspected

*__Cross reference__—Health and sanitation, ch. 82.
__State law reference__—Rabies control law, R.S. 40:1275 et seq.

of being infected with rabies. The disposition of any animal so suspected and impounded shall be at the discretion of the director. The society shall be responsible for informing the director of any animal so impounded.
(Code 1956, § 7-34)

Sec. 18-167. Impoundment of animal that bites a person, etc.

(a) The agency, of its own authority or if ordered by the director, shall impound or cause to be impounded or confined any dog or other animal that has bitten a human being within the city, for a period of at least ten days, for quarantine at an approved rabies quarantine facility.

(b) The agency, of its own authority or if ordered by the director, may extend the length of the quarantine period.

(c) The agency shall be responsible for informing the director of all incidents in which a human being has been bitten by an animal.

(d) At the discretion of the agency or the director, any dog so impounded and determined to have a current vaccination against rabies may be released to the custody of its owners, or keeper or custodian for the duration of the quarantine period if it was not in violation of any other local ordinances or state or federal laws. The agency may inspect the property to ensure the owner is able to maintain the quarantined animal safely for a $25.00 inspection fee payable to the agency. The owner may quarantine the animal at a private veterinary clinic at the owner's expense. The owner, keeper, or custodian shall provide the agency with a signed certification from a Louisiana licensed veterinarian certifying that "no signs of rabies were observed" which cannot be issued until after the ten day quarantine period. The owner must provide the signed certification to the agency within 48 hours of its issuance by the veterinarian. The owner, keeper or custodian of any dog so released is not to consider the quarantine period concluded until notified by the director or the agency.
(Code 1956, § 7-35; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-168. Dogs and cats to be vaccinated.

The owner or keeper of every dog or cat between three and four months old shall, at his expense, have such dog or cat vaccinated by a Louisiana licensed veterinarian with rabies vaccine. Twelve months later, the animal shall be revaccinated. Thereafter, such dog or cat shall be revaccinated every 36 months by a licensed Louisiana veterinarian, under rules and regulations to be prescribed by the director. The veterinarian must provide to the owner the date when the dog or cat must be revaccinated.
(Code 1956, §§ 7-37, 7-53.1; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-169. Rabies vaccination required.

It shall be unlawful for any person to own, keep, maintain, harbor or possess any dog or cat in the city unless such dog or cat, if it is over four months old, is vaccinated with rabies vaccine by a licensed veterinarian and a tag evidencing such vaccination is affixed to the collar or harness as provided in section 18-228. For their safety, eartipped cats who have been vaccinated against rabies are not required to wear the license tag on a collar and are exempted from this requirement.
(Code 1956, §§ 7-38, 7-53.2; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-170. Proof of rabies vaccination.

Upon request of the director or the agency, the owner, or keeper of any dog or cat must furnish evidence as required in section 18-230 that such dog or cat has been vaccinated by a licensed Louisiana veterinarian and is current on its vaccination against rabies as required in section 18-168.
(Code 1956, §§ 7-39, 7-53.3; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-171. Possession of rabies vaccination.

Rabies vaccination may only be distributed by, harbored by and administered by a Louisiana licensed veterinarian. The transportation of the vaccine to and from a veterinarian by a licensed pharmaceutical vendor or the agency is exempt.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-172. Bite to person's head or neck.

If a dog bites a person on the head or neck and the owner has no record of the dog ever being vaccinated against rabies by a veterinarian, the dog may be euthanized immediately and a tissue sample sent to the State of Louisiana for testing.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-173—18-200. Reserved.

ARTICLE V. DOGS AND CATS

DIVISION 1. GENERALLY

Sec. 18-201. Cats passing through city or exhibited at animal shows.

None of the provisions of this article shall apply to cats owned by nonresidents passing through the city or cats brought to the city and entered for exhibition at any animal show, except as provided in this article.
(Code 1956, § 7-53.15)

Sec. 18-202. Cats or dogs brought from other places.

(a) Any person may bring or cause to be brought any cat or dog into the city from outside the city and, if such cat or dog is vaccinated under the laws from the place from which he is brought, such person may keep such cat or dog in the city for a period not exceeding 30 days without getting a rabies license for it under this division from a Louisiana licensed veterinarian.

(b) Any cat or dog brought into Orleans Parish from outside the State of Louisiana must have a health certificate from a licensed veterinarian in the state from which they came, issued no more than 30 days prior to arrival in Louisiana, certifying that the animal is free from contagious diseases. Certification shall be filed with the agency within ten days of arrival in the City of New Orleans.

(1) For dogs, this means the dog has been vaccinated for rabies, distemper, hepatitis, parvo virus, parainfluenza, and bordatella.

(2) For cats, this means the cat has been vaccinated for rabies, rhinotracheitis, calicivirus and panleukopenia.

Failure to comply with the provisions of this section shall result in a violation of no less than $100.00 per animal.
(Code 1956, § 7-53.16; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-203—18-225. Reserved.

DIVISION 2. LICENSING*

Sec. 18-226. Use of proceeds.

Proceeds from the fees set forth in this division shall be used for the support of animal control activities within the city.
(Code 1956, § 7-40.1)

Sec. 18-227. Annual issuance of city dog or cat licenses by licensed veterinarians.

To assist in the control of rabies and the enforcement of this article, each licensed veterinarian shall issue to the owner or keeper of any dog or cat an annual municipal dog or cat license tag on which shall appear the license number assigned to that dog or cat. Such dog or cat license tag shall be issued with proof of rabies vaccine as specified in section 18-168.
(Code 1956, § 7-40; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-228. Collection of license tag fee by licensed veterinarian; remittance to city.

(a) Following administration of the rabies vaccination and upon issuance of the annual municipal dog or cat license tag, the licensed veterinarian issuing such license tag shall collect (i) an administrative fee in the amount of $2.00 for each annual dog or cat license tag

*__State law reference—__Licensing, authorized, R.S. 3:2731 et seq.

issued; and (ii) on behalf of and for remittance to the city, an annual dog or cat license tag fee, as follows:

(1) $20.00 for each spayed or neutered dog or cat.

(2) $30.00 for each unspayed or unneutered dog or cat.

(b) Upon issuance of a replacement annual dog or cat license tag, which requires proof of a current rabies vaccination for the dog or cat, the licensed veterinarian shall collect (i) an administrative fee in the amount of $2.00 for each replacement annual dog or cat license tag issued; and (ii) on behalf of and for remittance to the city, a replacement annual dog or cat license tag fee of $16.00.

(c) Notwithstanding the foregoing, if the owner or keeper of the dog or cat cannot pay all or part of the annual dog or cat license tag fee due to financial hardship and applies, on forms provided by the agency, to the veterinary clinic at the agency, or a veterinary clinic authorized by the agency, attesting to such hardship, the agency or authorized clinic may issue the annual dog or cat license tag or replacement license tag for a reduced or waived fee.
(Code 1956, § 7-41; Ord. No. 19,934, § 1, 12-1-00; Ord. No. 20,032, § 1, 2-1-01; M.C.S., Ord. No. 23843, § 1, 1-7-10; M.C.S., Ord. No. 25205, § 1, 3-7-13; M.C.S., Ord. No. 30650, § 1, 5-7-26)

Sec. 18-229. Annual vaccination drive.

During any organized rabies vaccination drive, as such is ordered or authorized by the director and is conducted on a citywide basis, the annual municipal dog or cat license tag fee shall be $10.00 for each spayed or neutered dog or cat, and $20.00 for each unspayed or unneutered dog or cat; except that, if the owner or keeper of the dog or cat cannot pay all or part of the license tag fee due to financial hardship and applies, on forms provided by the agency, to the veterinary clinic at the agency, or a veterinary clinic authorized by the agency, attesting to such hardship, the agency or authorized clinic may issue the annual dog or cat license tag for a reduced or waived fee.
(Code 1956, § 7-41.1; M.C.S., Ord. No. 30650, § 1, 5-7-26)

Sec. 18-230. Remittance of tag fee together with registration papers.

The annual municipal dog or cat license tag fee authorized and required to be collected under section 18-227, exclusive of the administrative fee, shall be remitted by each veterinarian to the city for deposit into the rabies license fund, through the director of the department of finance or his designee, together with dog or cat registration papers which shall include a description of the animal to which they pertain, the date of the administration of the rabies vaccination, the name and address of the owner, or keeper of the dog or cat and the notation that annual license tag fees shall be due annually, such registration papers to be in a format prescribed by the director after consultation with the director of the department of finance. The monies that are placed in this fund shall be dedicated for the agency for its use and benefit for providing animal control services for the city.
(Code 1956, § 7-42; M.C.S., Ord. No. 23853, § 1, 1-21-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-231. Notice to be provided.

(a) At least 15 days prior to the expiration of the annual license, the director may forward to the registered animal owner notice that the annual license fee is due and payable together with a receipt card by which the registered owner may prove payment, only after obtaining the signature of the licensed veterinarian administering the rabies vaccination or documenting that the vaccination is current and collecting the annual fee for remittance to the city.

(b) The director or his designee may forward a delinquent notice 30 days after the annual anniversary of the license. Such notice may state that annual and late fees are due and payable.

(c) The director or his designee may forward a registered letter 90 days after the annual license. Such registered letter may restate annual and late fees due and shall advise the registered owner that fees are due and may advise the registered owner that failure to remit same within 15 days shall constitute a violation of a public health and environmental ordinance, subject to civil administrative adjudication pursuant to chapter 6.

(d) Failure to receive notice shall not relieve the animal owner of the obligations under this article.

(e) Whoever fails to comply with the provisions of this division shall be liable, in addition to the fee, for a penalty of $10.00 collectable by the veterinarian at the time the new license is issued.
(Code 1956, § 7-42.1; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-232. Fees remitted by 20th day of each month.

All applicable fees collected by licensed veterinarians shall be remitted by each veterinarian to the rabies license fund, through the director of the department of finance or his designee, together with the registration papers contemplated by section 18-230 and the hardship documentation contemplated by sections 18-228 and 18-229, not later than the 20th day of each month following the month in which the fees are collected.
(Code 1956, § 7-42.2; M.C.S., Ord. No. 25205, § 1, 3-7-13; M.C.S., Ord. No. 30650, § 1, 5-7-26)

Sec. 18-233. Responsibility of licensed veterinarian to assist owner in the preparation of registration papers.

The Louisiana licensed veterinarian administering rabies vaccinations, issuing dog or cat municipal license tags, and collecting and remitting annual license tag fees shall assist the dog or cat owner or keeper in the preparation of the dog or cat rabies license registration papers described in section 18-230 and shall advise such owner, or keeper of his obligation to renew the municipal license tag annually.
(Code 1956, § 7-43; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-234. License fee renewal obligation.

The director shall file all dog or cat registration papers received by the city and shall notify owners of registered dogs or cats that license renewal fees of $20.00 for spayed or neutered dogs and cats and $30.00 for unspayed or unneutered dogs and cats are due on every annual anniversary of the administration of the rabies vaccination or issuance of the municipal dog or cat license tag. Such notice shall also inform dog and cat owners of the option to seek a reduced fee as specified in sections 18-228 and 18-229.
(Code 1956, § 7-43.1; M.C.S., Ord. No. 25205, § 1, 3-7-13; M.C.S., Ord. No. 30650, § 1, 5-7-26)

Sec. 18-235. Reserved.

Editor's note—M.C.S., Ord. No. 25205, § 1, adopted March 7, 2013, repealed § 18-235, which pertained to receipt of notice, annual vaccination, annual license renewal fees due and derived from Code 1956, § 7-43.2.

Sec. 18-236. Veterinarians to comply with provisions of sections 18-227 through 18-234.

Licensed veterinarians practicing within the city shall comply with all provisions of sections 18-227 through 18-234. Willful failure to comply with this section may result in a citation under section 18-18(b) and may result in loss of occupational license.
(Code 1956, § 7-43.3; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-237. Reserved.

Editor's note—Ord. No. 19,934, § 2, adopted December 1, 2000, repealed former § 18-237, which pertained to replacement tag, and derived from the Code of 1956, § 7-43.4.

Sec. 18-238. Duplicate tags prohibited.

No person shall knowingly reproduce or counterfeit a license tag without the authorization of the director or knowingly place or cause to

be placed upon any dog or cat a license tag bearing a spurious license number or any license number other than the license number assigned pursuant to this article to that particular dog or cat.
(Code 1956, § 7-43.5)

Sec. 18-239. Additional fees.

The director may authorize the manufacture and issuance of personalized license tags, showing the name and address of the owner or another brief message, in addition to the license number. The owner or keeper who chooses a personalized license tag or who requests a replacement of the same shall be liable to pay a personalization fee in the amount of $2.00 plus the unit cost of acquisition of the personalized tags, as determined by the director, which shall be in addition to all other fees required by this chapter including the regular license fee. The personalization fee shall be paid each time a personalized tag is issued or replaced, but thereafter the annual renewal fees shall be paid at the standard rate. The veterinarian shall remit the personalized tag fee at the same time and in the same manner as the annual license fee.
(Code 1956, § 7-43.6; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-240. Agency to pay for tags if owner unable or blind.

If the keeper or owner certifies his inability to pay the cost of licensing and/or vaccination, the agency may, at its discretion, have rabies vaccination effected by a licensed veterinarian under its supervision and obtain a certificate of such vaccination and issue the license and vaccination tags, without cost.
(Code 1956, §§ 7-44, 7-53.8; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-241. Counterfeiting or improper use of tags.

No person shall:

(1) Counterfeit or imitate the license or vaccination tags as provided for in this division;

(2) Put on a dog or cat any such counterfeit or imitation tag; or

(3) Use such a tag on a dog or cat for which it was not issued.

(Code 1956, §§ 7-45, 7-53.9)

Sec. 18-242. Improper removal of tag.

No person shall maliciously or wantonly remove or cause to be removed, directly or indirectly, any tag from the dog or cat of another person.
(Code 1956, §§ 7-46, 7-53.10)

Secs. 18-243—18-265. Reserved.

DIVISION 3. IMPOUNDMENT*

Sec. 18-266. Authorized.

Should any dog or cat be found in the city in violation of any of the provisions of this article, the agents of the agency may take the necessary steps to apprehend it, and any owner or keeper of a dog or cat or occupant of any premises who refuses to deliver for inspection any such dog or cat suspected of being in violation of any of the provisions of this article upon the demand of any such agent shall be guilty of a misdemeanor.
(Code 1956, §§ 7-47, 7-53.11; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-267. Use of vehicles.

The agency may patrol the streets of the city with proper and suitable vehicles, employ proper agents and perform all such acts as may be necessary to catch efficiently and impound any dog or cat which may be found in the streets, parks or public places of the city not bearing the license and vaccination tag provided for in this article.
(Code 1956, §§ 7-48, 7-53.12; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-268. Disposition.

(a) The agency, after seizing and impounding a dog or cat bearing a collar and tag showing the name and address of the owner shall retain it for

*__State law reference—__Dogs not to run at large, R.S. 3:2771.

a period of seven days. If the dog or cat is not bearing such a collar and tag, then the agency shall retain it for a period of three days. The agency shall scan every dog or cat for a microchip and attempt to contact the owner if the microchip is located and the owner's information is registered. If such dog or cat is not claimed by the owner within the specified time period, the agency may place it with any suitable person, with full ownership to such dog or cat being vested in the person selected. Any person claiming a dog or cat seized by the agency under the provisions of this division and proving ownership thereof shall be entitled to possession of such dog or cat upon procuring a license for such dog or cat as provided in this division, having such dog or cat vaccinated, or exhibiting a certificate of a licensed veterinarian that such dog or cat has been vaccinated with rabies vaccine, having a microchip implanted, paying to the agency the sum for keeping and feeding as stipulated in the schedule section 18-56 and meeting all housing requirements.

(b) The agency shall have the right and authority to euthanize unowned animals it determines are unsuitable as pets after the hold period has expired. Suitability shall be determined by the agency.

(Code 1956, § 7-53.13; M.C.S., Ord. No. 25205, § 1, 3-7-13)

State law reference—Pet overpopulation control, R.S. 3:2471 et seq.

Sec. 18-269. Shelter and records.

The agency shall maintain a proper shelter for all animals seized by it, shall keep proper records in which shall be registered each animal brought to its shelter, a brief description of it, by whom brought, where secured, the time of its being

released, to whom released or destroyed and the amount of fees received. Such records shall be open at all reasonable times for public inspection. The agency shall make out and furnish monthly to the director of the department of finance a detailed statement of: (1) the amount of fees received, and (2) the number of animals, according to species, adopted, reclaimed or euthanized by the agency in a month.
(Code 1956, § 7-53.17; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-270—18-290. Reserved.

DIVISION 4. POTENTIALLY DANGEROUS, DANGEROUS OR VICIOUS DOGS*

Sec. 18-291. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Minor injury means any physical injury stemming from a bite that results in a superficial wound as a scratch, laceration, bruise, or minor tissue swelling; a wound that does not require hospitalization, sutures or urgent medical treatment; or significant damage to any item closely connected to the victim's body, such as clothing or an item that is held in their hand.

Moderate injury means any physical injury that results in a puncture wound or deep laceration requiring sutures, but that does not result in temporary or permanent disfigurement, permanent pain, or risk of death.

Provocation means the act of exciting, stimulating, irritating, enraging or arousing a dog to the point of aggression. This includes, but is not limited to, biting or approaching the dog in a menacing fashion. An unauthorized intruder or a wild or domestic animal shall be deemed to have provoked a dog by the act of entering the owner's apartment, house, business, or enclosed premises not normally accessible to the public.

Severe injury means any physical injury that results in broken bones or disfiguring lacerations requiring multiple sutures or cosmetic surgery. Severe injury to persons includes any of the following:

(1) A physical condition serious enough to require hospitalization or prolonged treatment;

(2) Physical harm involving a substantial risk of death;

(3) Physical harm involving partial permanent incapacity or total permanent incapacity;

(4) Physical harm causing permanent disfigurement or temporary serious disfigurement;

(5) Physical harm causing acute pain lasting long enough to result in substantial suffering or causing any degree of prolonged or incurable pain; or

(6) Moderate injury over more than one part of the body.

Unauthorized intruder means any person who enters a dog owner's apartment, house, business, or enclosed premises not normally accessible to the public with the knowledge that they do not have the dog owner's permission to do so.
(Code 1956, § 7-1(m); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Cross reference—Definitions generally, § 1-2.

Sec. 18-292. Determination of potentially dangerous or dangerous characteristics.

(a) A dog may be deemed "potentially dangerous" if it commits any of the following acts when unprovoked:

(1) The dog bites a human being, except an unauthorized intruder, resulting in a minor or moderate injury;

*__Editor's note—__M.C.S., Ord. No. 25205, § 1, adopted March 7, 2013, amended the title of Div. 4 to read as herein set out. Formerly, said division was entitled "Dangerous or Vicious Dogs."

Cross reference—Keeping ferocious animals in the city, § 18-9.

State law reference—Destruction of dangerous or vicious dog, permitted, R.S. 3:2773(D).

(2) The dog bites a domestic animal resulting in moderate injury; or

(3) The dog chases or approaches a person upon the streets, sidewalks, or public grounds in a terrorizing or menacing fashion or apparent attitude of attack.

The designation of "potentially dangerous" shall expire 36 months after the classification if the dog has not committed any of the above-listed acts during that time.

(b) A dog may be deemed "dangerous" if it commits any of the following acts when unprovoked:

(1) The dog bites a human being, except an unauthorized intruder, resulting in a moderate or severe injury; or

(2) The dog causes severe injury to any domestic animal.

(c) A dog shall be deemed "dangerous" if it commits any of the following acts when unprovoked:

(1) The dog kills any domestic animal; or

(2) The dog is already classified as "potentially dangerous" and commits any of the acts enumerated in section 18-292(a).

No dangerous dog shall be given away, adopted or sold without the permission of the agency and notice to the receiving owner of the dangerous designation.
(Code 1956, § 7-1(k); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-293. Vicious dogs.

(a) No person shall keep or permit to be kept within Orleans Parish any vicious dog.

(b) A dog may be deemed "vicious" if, when unprovoked, it bites a human being, other than an unauthorized intruder, resulting in a severe injury.

(c) A dog shall be deemed "vicious" if, when unprovoked, it:

(1) Kills any person; or

(2) Is already classified as a "dangerous" dog and commits any of the acts enumerated in section 18-292(b) or (c).
(Code 1956, § 7-1(l)(1)—(4); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-294. Responsibility for classification.

(a) A hearing shall be conducted in the municipal court for the purpose of determining the classification of a dog as potentially dangerous, dangerous or vicious based upon all evidence introduced at hearing, including investigative reports and recommendations submitted by the agency. The burden of proof for all classifications shall rest with the agency and shall be by a preponderance of the evidence.

(b) The presiding judge shall consider the nature of the attack and the extent and severity of any injuries sustained as a result in making the determination of classification. The judge shall not base the determination on the breed of the dog.
(Code 1956, § 7-1(l)(5); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-295. Provocation.

The provisions of this division shall not apply to any dog which was provoked.
(Code 1956, § 7-1(o); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-296. Proper handling of a potentially dangerous dog.

(a) A potentially dangerous dog must be under the supervision and control of an owner over 16 years old when off of the owner's property.

(b) The dog can only be walked with a secure collar and a leash not to exceed six feet in length. The dog may not be taken to any public or private dog parks.

(c) Based on the size and behavior of the dog, the owner may be required to muzzle the dog when it is on public property or those areas of private property that are unfenced and normally accessible to the public. The muzzle shall not injure the dog nor interfere with its vision or respiration.

(d) The dog must be spayed or neutered and micro-chipped, at the owner's expense, prior to being returned to the owner unless it is certified as unfit for surgery with documentation provided by a Louisiana licensed veterinarian with a specific diagnosis.

(e) The dog must be evaluated by a board certified veterinary behaviorist, certified animal behaviorist or recognized expert and must successfully complete training and any other treatment deemed necessary at the owners expense.
(Code 1956, § 7-1(n); M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-297. Proper enclosure and requirements for keeping a dangerous dog.

(a) While on the owner's property, a dangerous dog shall be securely confined indoors or in a securely locked pen or structure, suitable to prevent the entry of young children and designed to prevent the animal from escaping. Such an outdoor pen or structure shall have a sealed cement floor and be surrounded by a chain link fence that is anchored to the cement slab. The pen must also have a chain link top that is securely fastened to the top of the pen. The top must also have a solid cover to protect the animal from the elements and a dog house of proper size within the enclosure. The outdoor enclosure size will be determined by the size of the dog or dogs being housed and must be reviewed and approved by the agency.

(b) The director, after reviewing the circumstances associated with each situation, shall make a determination as to whether the enclosure meets its requirements. Such enclosure must assure the safety of the public as well as confinement of the dog in a humane, sanitary and healthful environment.

(c) Indoor confinement is a room that is secured by a deadbolt lock to which owner has a key. The dog must remain in this room and it must remain locked when anyone is entering or exiting the house or when someone outside of the immediate family is inside the house. The room size will be determined by the size of the dog or dogs being housed and must be reviewed and approved by the agency.

(d) The dog must not be walked in public parks, public or private dog parks, on public sidewalks or any areas outside of the owner's property except to go to the veterinarian. The dog shall be muzzled in a manner that prevents the dog from biting but shall not injure the dog or interfere with its vision or respiration and shall be in the direct control of the owner over 16 years old with a secure collar and a leash no longer than six feet in length when traveling to or from the veterinarian.

(e) The dog must be spayed or neutered and micro-chipped prior to being returned to the owner at the owner's expense unless it is certified as unfit for surgery with documentation provided by a Louisiana licensed veterinarian with a specific diagnosis.

(f) The dog must be evaluated by a board certified veterinary behaviorist, certified animal behaviorist or recognized expert and must successfully complete training and any other treatment as deemed by the expert at the owner's expense.

(g) The owner shall pay all documented medical damages adjudicated to be owed by a court of law to the victim. If the owner is unable to pay for the damages, the dog shall become the property of the agency.

(h) The agency shall be notified by the owner if owner is moving the dog to new housing. The agency shall perform dangerous dog housing inspection at the new residence if within Orleans Parish.

(i) A dog that has been deemed dangerous in another parish or state, must register with the agency and meet the same requirements listed above. A dog that has been deemed vicious in another parish or state may not be housed in Orleans Parish, provided that the determination of viciousness was based, at least in part, on factor(s) other than the breed of the dog.

(j) A sign indicating that a dangerous dog is housed must be visible from the street and affixed to the exterior fence or on the front door if no fence is available. The sign must be at least 8" × 11" with letters no smaller than three inches high.

(k) The owner shall pay an annual $100.00 fee to the agency for the inspection of compliance with these requirements.

(l) No more than two dogs may be kept on a property if either or both of the dogs have been deemed dangerous.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-298. Required reporting.

(a) Any person who knows or has reason to know that a dog has bitten or inflicted serious bodily injury to a human, and who intentionally harbors or conceals that dog from the agency, shall be fined no less than $100.00.

(b) Any health care provider who examines or treats any person who has been bitten by a dog or upon whom a dog has inflicted serious bodily injury shall report such bite or injury to the agency. Such report shall be made immediately, if possible, and in any event shall be made within 24 hours of examining the patient. The report shall include as much of the following information as is available:

(1) The patient's name, date of birth, sex, and current home and work addresses;

(2) The nature of the bite or injury that is the subject of the report;

(3) Any information about the location of the biting animal and the name and address of any known owner; and

(4) The name and address of the health care provider.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-299. Dogs seized because of dog fighting.

(a) A dog that is seized in connection with a charge of a dog fighting against its owner or keeper may be rehomed by the agency or a rescue group only under the following circumstances. All of the foregoing requirements must be met prior to the transfer of legal possession of the dog to the new owner or keeper.

(1) The agency or rescue group must have acquired legal possession of the dog;

(2) The dog must be sterilized and microchipped at the expense of the agency, new owner or rescue group;

(3) The dog must be evaluated by a certified applied behaviorist, board certified veterinary behaviorist, certified animal behaviorist, licensed veterinarian with demonstrable experience with abused or fighting dogs, or other recognized animal behavior expert at the owner's or rescue group's expense. The evaluator shall complete a report detailing the specific animal behavior test(s) that were administered as part of the evaluation and the results of those tests.

a. The evaluator's report shall include any recommendations for additional training, testing or other treatment deemed necessary by the evaluator, and shall specify whether said training, testing or other treatment should be completed prior to transfer of the dog to the new owner or keeper. In the event that the evaluator recommends additional testing, training or other treatment prior to transfer of the dog, all such testing, training or other treatment shall be completed at the agency's, rescue group's or new owner's or keeper's expense before the new owner or keeper takes possession of the dog.

b. The evaluator's report shall include any recommendations for conditions of rehoming the dog, such as a recommendation that the dog not be placed in a home where another dog or a child already resides. Under no circumstances shall a dog be placed in a home in contravention of the recommendation(s) of the evaluator; and

(4) The adopting owner must be given notice that the dog was seized in connection with a charge of dog fighting, and be given notice of any and all recommendations included in evaluator's report, and be provided with a copy of the full report.

(b) Any owner or keeper of a dog that was seized in connection with a charge of dog fighting against the dog's previous owner or keeper shall adhere to the following requirements at all times:

(1) The dog must be under the supervision and control of a person over 16 years old when off the owner's or keeper's property;

(2) The dog must be waked with a secure collar, and a leash not to exceed six feet in length when off of the owner's or keeper's property; and

(3) The dog may not be taken to any designated dog parks.

The above-listed requirements shall expire 18 months after seizure of the dog or upon a finding of not guilty or dismissal of the dog fighting charge(s) against the dog's previous owner or keeper.
(M.C.S., Ord. No. 25205, § 1, 3-7-13)

Secs. 18-300—18-304. Reserved.

DIVISION 5. SPAYING AND NEUTERING OF DOGS

Sec. 18-305. Definitions.

(a) *Intact* is defined as an animal that has not been surgically spayed or neutered by a licensed veterinarian.

(b) *Violation* is defined as each separate instance when the owner or keeper (as defined in section 18-1) is cited for being in violation of any part of the provisions of this division.

Fines are issued per dog, not per owner or keeper.
(M.C.S., Ord. No. 23970, § 1, 5-6-10)

Sec. 18-306. Spaying and neutering requirements.

Owner or keepers must spay or neuter all dogs over six months old. Owner or keeper may obtain an intact dog permit if the owner or keeper intends to keep the animal intact. Proof of spay/neuter or of intact dog permit must be provided by the owner or keeper when requested by the society.
(M.C.S., Ord. No. 23970, § 1, 5-6-10)

Sec. 18-307. Exceptions.

No person may own, keep, or harbor any dog within the city that has not been spayed or neutered unless:

(a) The dog is under six months of age;

(b) A licensed veterinarian certifies that the dog should not be spayed or neutered for a specific reason. The certificate must list the veterinarian's license number and the date by which the dog can be spayed or neutered. Within 30 days of the effective date of this division, or within 30 days of taking possession or ownership of an intact dog, the owner or keeper must submit written documentation which can be verified by the agency and the owner or keeper must apply for and obtain an intact dog permit.

(c) The dog has been present in the city for less than 30 days;

(d) The owner or keeper has obtained, or has submitted, an application for an intact dog permit in accordance with the provisions of this chapter;

(e) The dog is used by a government or law enforcement agency or an agent thereof for government, search and rescue, law enforcement, or other government purposes.
(M.C.S., Ord. No. 23970, § 1, 5-6-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-308. Requiring an intact dog permit.

No person shall harbor or keep any intact dog within the city without first obtaining a permit as provided in this chapter.
(M.C.S., Ord. No. 23970, § 1, 5-6-10)

Sec. 18-309. Granting or denying a permit.

The agency maintains the right to grant or deny an intact dog permit. However, an aggrieved

owner has the right to appeal a decision of the agency to the city council within 30 days of the decision.

(a) *Permit nontransferable.* The agency shall issue to the owner or keeper of any dog a nontransferable permit that expires annually.

(b) *Multiple owners.* If more than one owner or keeper is involved in the breeding process, each party must be listed on the application for an intact dog permit.

(c) *Individual permits.* The permit shall be applied for and issued to each dog individually.

(d) *Permit requirements.* The permit may be applied for from the agency if all of the following conditions are met:

(1) The owner or keeper has submitted the appropriate forms and fees required by the agency in order to seek consideration for an intact dog permit including, but not limited to, a written description of the dog, proof of current vaccinations administered by a Louisiana licensed veterinarian, and photograph of the dog.

(2) The dog has been microchipped and the registered microchip number is included on the application.

(3) The owner can provide proof of current vaccinations for rabies, distemper and parvo virus.

(4) Owners or keepers shall not allow female dogs to breed before 18 months of age or to have more than one litter per year.

(5) The intact permit number must be displayed when advertising the puppies for sale or adoption.

(6) No animal under six weeks old may be sold, adopted or given away.

(7) Upon approval of his/her application, the applicant must pay the initial $75.00 permit application fee plus the $20.00 annual permit fee. The annual intact permit renewal fee will be $20.00, due and payable at the end of the 12-month period.

(e) *Permit denial.* At the agency's discretion, the permit may be denied if one or more of the following occur and have not been corrected and brought into compliance within ten days of notification of noncompliance:

(1) The applicant fails to pay the permit fee within two weeks of notification that the application has been approved. If the owner or keeper does not provide payment, the owner or keeper will be cited in violation of this chapter, and all fines and penalties will be applied.

(2) The applicant has failed to meet all permit requirements listed in subsections (d)(1) through (4).

(3) The applicant has been cited for allowing dogs to roam at large, been found to be guilty of cruelty, has had his/her dog identified as dangerous or vicious; or has been determined within the past 12 months to have violated any provisions of chapter 18.

(M.C.S., Ord. No. 23970, § 1, 5-6-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-310. Delinquency.

(a) When a permit is more than 30 days delinquent, the agency shall forward the name, address and vital information of the owner or keeper to the city health department and issue a citation.

(b) Failure to receive notice shall not relieve the animal owner or keeper of the obligations under this article [division].

(M.C.S., Ord. No. 23970, § 1, 5-6-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-311. Fines for failure to comply with permit requirements.

(a) A violation of this division 5 shall be an infraction punishable by a fine not to exceed $100.00 per dog for the first violation, a fine not to

exceed $250.00 per dog upon a second violation, and impoundment along with a fine not to exceed $500.00 per dog upon the third and subsequent violations.

(b) If, after 15 days of a first citation, the owner or keeper fails to provide proof of a permit or proof of having the dog spayed/neutered, the owner/keeper shall be cited for an additional violation.

(c) If the dog is impounded for a third or subsequent violation, the owner or keeper must pay the surgery deposit to the agency or obtain an intact dog permit within ten days of impoundment or the owner or keeper shall relinquish the dog(s) to the agency for disposition.

(d) If a permit is not renewed on time, a $10.00 per day late fee will be assessed in addition to the renewal fee. If the permit is not renewed within 15 days of the annual expiration, a first violation shall be issued.

(e) In the event that the agency determines that payment of any fees by the owner or keeper of the impounded dog would cause extreme financial difficulty to the owner or keeper, the agency may waive all or any portion of the fees assessed for compliance with this section.
(M.C.S., Ord. No. 23970, § 1, 5-6-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-312. Duplicate permits prohibited.

No person shall knowingly reproduce or counterfeit an intact dog permit or issue the permit to a dog other than the dog for whom the permit application was made and the permit number assigned pursuant to this article without the express authorization of the agency. Any person who is found to be in possession of a counterfeit intact dog permit will be in violation of this chapter and shall be issued a citation in accordance with section 18-311.

No person shall counterfeit a veterinary certification. Any person who is found to be in possession of a counterfeit veterinary certification shall be in violation of this chapter and shall be issued a citation in accordance with section 18-353.
(M.C.S., Ord. No. 23970, § 1, 5-6-10; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-313. Use of proceeds.

Proceeds from the fees and fines set forth in this division shall be used to support animal control activities within the city.
(M.C.S., Ord. No. 23970, § 1, 5-6-10)

Secs. 18-314—18-325. Reserved.

ARTICLE VI. LIVESTOCK AND FOWL AND OTHER BIRDS

Sec. 18-326. Humane treatment.

Stores, shops, vendors and others offering chicks, ducklings, goslings or other live creatures for sale, raffle or as a prize, premium or advertising device or displaying chicks, ducklings or goslings or other live creatures shall provide the necessary brooders or other heating devices and shall see that such creatures shall not be overcrowded, and shall keep adequate food and water available at all times. Vendors or other persons selling any live creature shall furnish to the purchaser an instruction sheet for the proper care of same.
(Code 1956, § 7-7)

State law reference—Similar provisions, R.S. 3:2363.

Sec. 18-327. Sale of chicks, ducklings and goslings and other fowl.

(a) The sale or donation of chicks, ducklings and goslings and other fowl younger than four weeks of age is prohibited except in quantities of 12 to an individual.

(b) The auctioning, raffling or giving away as a prize, premium or advertising device of any fowl, chick, duckling or gosling and other fowl for the purpose of inducing trade or business or competition at public or private events is prohibited.
(Code 1956, § 7-8)

State law reference—Similar provisions, R.S. 3:2363.

Sec. 18-328. Cattle not to be driven through streets.

It is hereby made an offense to drive, or to attempt to drive, through the streets of the city, cattle which arrive in the city either by boat, truck or by railroad.
(Code 1956, § 7-20; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-329. Authority of director.

The director may adopt reasonable rules and regulations governing the keeping of hogs within the city and issue annual permits therefor to such persons as may be found, after proper inspection and investigation, to have conformed strictly to such rules and regulations.
(Code 1956, § 7-56)

Sec. 18-330. Keeping of hogs prohibited in certain areas.

It shall be unlawful for any person to keep a hog or to permit one to run at large within any of the following prescribed limits:

(1) On the east bank of the Mississippi River, anywhere except in the following described area:

In any part of the Third Municipal District, bounded by the south property line of Old Gentilly Road from its intersection with the west property line of Arpent Lot 74 and extending in an easterly direction to the western boundary line of Paris Road (Louisiana Highway 61) thence in a southerly direction along the western boundary of Paris Road (Louisiana Highway 61) to the existing intracoastal waterway, thence along such waterway in a westerly direction to a point of intersection with the western boundary of Arpent Lot 74, as projected, thence in a northerly direction to the Old Gentilly Road and the point of beginning.

(2) In the Fifth Municipal District (Algiers), anywhere except in the portion lying east of intracoastal canal, alternate route and bounded by intracoastal canal, alternate route, Mississippi River and the Orleans-Plaquemines Parish line.

(Code 1956, § 7-54)

State law reference—Similar provisions, R.S. 3:2891 et seq.

Sec. 18-331. Hogs may be kept only under satisfactory conditions.

It shall be unlawful for any person to keep a hog on any premises except under conditions satisfactory to the director.
(Code 1956, § 7-55)

Sec. 18-332. Treatment and removal of manure.

(a) Any person, whether as owner or occupant, having or permitting on his premises less than six horses, mules, cows or other animals shall remove or cause to be removed daily all manure and straw, hay or similar material used for bedding and contaminated with manure or urine from the stalls, barns and other areas occupied by such animals, which matter shall be stored in leakproof containers have solid metal covers, tightly fitted so as to render the contents thereof inaccessible to flies. All such stored matter shall be removed from such premises not less than twice weekly from March 15 to December 1 and not less than once each week from December first to March 15.

(b) Any person, whether as owner or occupant, having or permitting on his premises more than five horses, mules, cows or other animals shall remove or cause to be removed daily all manure and straw, hay or similar material used for bedding and contaminated with manure or urine from the stalls, barns and other areas occupied by such animals, which matter shall be stored either in leakproof containers having solid metal covers, tightly fitted so as to render the contents thereof inaccessible to flies, or in leakproof containers the bottoms of which shall be treated daily with a chemical or chemicals approved by the health department, the contents of which containers and the areas surrounding such containers within the distance of not less than 20 feet from all outside walls of such containers shall be sprayed daily with a fly-deterrent chemical or chemicals approved by the health department. All such containers shall be emptied, and the contents thereof shall be removed from the premises daily. The area in and around all barns and stables housing such animals shall be sprayed not less than once each week with a fly-deterrent chemical or chemicals approved by the health department.

(c) Whoever violates the provisions of this section shall be fined not less than $50.00 nor more than $100.00 or imprisoned for not more than 90 days or both such fine and imprisonment. Each

day any person continues to violate any provision of this section shall constitute a separate offense.
(Code 1956, § 29-60)

Cross reference—Nuisances, § 66-241 et seq.

Sec. 18-333. Use of manure as fertilizer.

From June 1 to October 1 manure shall not be used as a fertilizer on gardens, sidewalks, lots or other open areas unless and until thoroughly mixed with soil and so covered with soil that flies will not be attracted thereto.
(Code 1956, § 29-61)

Sec. 18-334. Dumping or storing manure.

No manure shall be dumped and left on the street, sidewalk, alley or open area or lot in any inhabited section nor be used to grade, in whole or in part, any sidewalk, street, alley, open area or lot in any such section. Any site used as a public dump for manure shall not be within 300 feet of any building used in whole or in part for dwelling purposes.
(Code 1956, § 29-62)

Sec. 18-335. Conveying manure through the streets.

Manure shall be conveyed through the streets of the city in such vehicles only as are properly protected against flies by suitable covering.
(Code 1956, § 29-63)

Sec. 18-336. Manure stacked for fertilizing purposes.

All manure stacked or piled for fertilizing purposes, on any truck farm or garden in a thickly settled neighborhood shall be so stacked or piled at a distance of not less than 25 feet from any building used, in whole or in part, for dwelling purposes and shall be stored in a closed bin or screened receptacle so as to prevent access of flies thereto.
(Code 1956, § 29-64)

Sec. 18-337. Agent responsible in owner's absence.

Wherever any duty is put upon the owner of any premises, stable, lot, open area or public place, in this article, in the owner's absence, the agent of such owner shall comply with the provisions of this article and for the purposes thereof any person receiving or collecting rent or attending to such property in any manner shall be deemed to be the agent of the owner.
(Code 1956, § 29-65)

Sec. 18-338. Information to be filed by person keeping horses or mules.

Every person within the limits of the city, having one or more horses or mules housed or stabled within the city shall file with the agency the following information:

(a) Name of the owner;

(b) Number and kind of animals housed or stabled on the premises;

(c) Address of place (street and number) where the animals are stabled;

(d) Proof of annual negative Coggins' test result;

(e) Proof of annual vaccinations, including Eastern and Western Encephalitis, West Nile virus, and rabies; and;

(f) Any other information as the department may deem necessary for the enforcement of proper sanitary regulations on the premises.

Such information shall also be required for equine exhibited or used for transportation in parades.
(Code 1956, § 29-57; M.C.S., Ord. No. 25205, § 1, 3-7-13)

Sec. 18-339. Pigeons not to be allowed at large.

It shall be unlawful for any person owning or harboring pigeons to allow them to go at large within the city. But this section shall not be construed to prohibit the flying, racing or exercising of the Antwerp or homing pigeon at such time that such flying, racing or exercising shall be

under the continuous personal supervision of a person or the agent of a person owning or harboring such Antwerp or homing pigeons.
(Code 1956, § 7-14)

State law reference—Killing or catching when banded prohibited, penalty, R.S. 56:122.

Sec. 18-340. Feeding birds in Jackson Square area.

(a) It shall be unlawful for any person to dispense or distribute feed for or to feed any bird or fowl or throw or place on the ground any bread, breadcrumbs, seed, bird food, popcorn, or similar food in the area bounded by Decatur Street, St. Peter Street, Royal Street and St. Ann Street in the Vieux Carre area of the city.

(b) The provisions of this section shall not apply to any person who is authorized in writing by the director of the department of health to feed or dispense to birds or fowl food or food containing birth control drugs or chemicals. Any informational signs placed in the aforementioned area in connection with the enforcement of this section shall be approved by the Vieux Carre Commission and the superintendent of the parkway and parks commission.

(c) The provisions of this section shall be enforced by summons. The fine for violations of the provisions of this section shall be a fine of not more than $25.00. Upon discovery of a violation of this section, agents of the department of police or the Vieux Carre Commission shall issue a summons to the person found in violation of this section. The summons shall be returnable to the municipal court, where the defendant shall be served by affidavit.
(Code 1956, § 7-15.1)

Cross reference—Streets, sidewalks and other public places, ch. 146.

Sec. 18-341. Killing animals, birds or wild fowl in public squares, parks or designated bird sanctuaries prohibited.

(a) In any public square, park or designated bird sanctuary, it shall be unlawful for any person to molest or kill any bird, fowl or animal, to trap, hunt, shoot or attempt to shoot or molest in any manner any bird or wild fowl or to rob bird nests therein. Provided, however, if starlings or similar birds are found to be congregating in such numbers in a particular locality that they constitute a nuisance or menace to health or property in the opinion of the director then in such event the director shall meet with representatives of the Audubon Agency, bird club, garden club or humane agency, or as many of such organizations as are found to exist in the city, after having given at least three days' actual notice of the time and place of such meeting to the representatives of such organizations. If as a result of such meeting, no satisfactory alternative is found to abate such nuisance, then such birds may be destroyed in such numbers and in such manner as is deemed advisable by the director.

(b) The entire area known as the Lake Vista Subdivision which is bounded by Robert E. Lee Boulevard, Marconi Drive, Lakeshore Drive and Beauregard Avenue is hereby designated as a bird sanctuary.

(c) The entire area known as Joe W. Brown Park which is bounded by Read Road to the west, proposed Wright Road to the east, Lake Forest Boulevard to the north, and Dwyer Road to the south, is hereby designated as a bird sanctuary.

(d) The area known as Tall Timbers Subdivision which is bounded by General DeGaulle Drive, Woodland Drive, proposed Tullis Drive, and the drainage servitude canal which bounds Tall Timbers Subdivision to the west is hereby designated as a bird sanctuary.

(e) That area bounded by Robert E. Lee Boulevard from West End Boulevard to the Outfall Canal and extending to Lake Pontchartrain on the north, known as East and West Lakeshore is hereby designated as a bird sanctuary and shall be called "Lakeshore Bird Sanctuary."

(f) The entire area known as the Village de L'est Subdivision which is bounded by Bayou Chef to the south, the Michoud Line to the west, and North Lemans Street and Bayou Michoud to the north and the east, is hereby designated as a bird sanctuary.

(g) The entire area known as Walnut Bend, which is bounded by the north side of MacArthur Boulevard, the Magellan Canal and General Col-

lins Avenue on the west, the south side of General Meyer Avenue, and Kabel Drive on the east, is hereby designated as a bird sanctuary.

(h) That area bounded by Downman Road, Crowder Boulevard, Morrison Road and Hayne Boulevard is hereby designated as a bird sanctuary.

(i) That area bounded by a line from the intersection of the Maxent Canal and Interstate 10; south along Maxent Canal and Chef Menteur Highway; west along Chef Menteur Highway to Levee 33; northward along Levee 33, including Parcels 1-B and 11-E to the Michoud line; then in a northerly direction along the Michoud line to Interstate 10; easterly along Interstate 10 to the Maxent Canal; is hereby designated as a bird sanctuary and shall be called "New Orleans East Bird Sanctuary."

(j) That area bounded by Read Boulevard, I-10 Service Road East, Bullard Avenue and Lake Forest Boulevard is hereby designated as a bird sanctuary.

(k) That area bounded by Poland Avenue, North Roman Street, Pauline Street and St. Claude Avenue is hereby designated as a bird sanctuary.

(l) That area of neutral ground in Bullard Avenue bounded by Morrison Road and Wales Street is hereby designated as a bird sanctuary.

(m) That area known as Longue Vue House and Gardens, which is bounded by Palmetto Street, I-10 Service Road West, Metairie Road and Bamboo Road, is hereby designated as a bird sanctuary.

(n) That area known as Brechtel Park, which is bounded by Lennox Boulevard, Tullis Drive, Algiers Outfall Canal and Farrar Canal, is hereby designated as a bird sanctuary.

(o) That area bounded by Robert E. Lee Boulevard from Bayou St. John to the London Avenue Outfall Canal and extending to Lake Pontchartrain north, known as Lake Terrace, is hereby designated as a bird sanctuary and shall be called "Lake Terrace Bird Sanctuary."

(p) That area bounded by a line extending east from the Jefferson Parish line along Oak Street to Broadway Street; north along Broadway Street to South Claiborne Avenue; west along South Claiborne Avenue to Leonidas Street; south along Leonidas Street to Spruce Street; west along Spruce Street to the Jefferson Parish line, and south along the Jefferson Parish line to Oak Street; is hereby designated as a bird sanctuary and shall be called the "Carrollton Bird Sanctuary."

(Code 1956, § 7-16; M.C.S., Ord. No. 17,209, § 1, 9-21-95; M.C.S., Ord. No. 20791, § 1, 7-12-02; M.C.S., Ord. No. 21923, § 1, 4-21-05; M.C.S., Ord. No. 25205, § 1, 3-7-13; M.C.S., Ord. No. 26928, § 1, 5-19-16)

Cross reference—Streets, sidewalks and other public places, ch. 146.

State law reference—Similar provisions, R.S. 56:761.

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ARTICLE I. IN GENERAL

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ARTICLE II. NEW ORLEANS AVIATION BOARD*

Sec. 22-36. Established; members.

There is hereby created a municipal board to be known as the New Orleans Aviation Board, which shall be so constituted and have such powers, duties and functions as set forth in this article. The aviation board shall consist of five members to be appointed by the mayor, with the approval of the council, for terms of five years, so arranged that the term of one member shall expire each year.
(Code 1956, § 4-1)

Sec. 22-37. Committees.

The aviation board may designate and appoint from among its members various committees with such powers and duties as the board may prescribe.
(Code 1956, § 4-2)

Sec. 22-38. Employees.

The aviation board may fix the number of its paid employees and regulate their compensation, subject to the approval of the council.
(Code 1956, § 4-3)

Sec. 22-39. Meetings.

The aviation board shall meet at least quarterly, in each year, but other meetings may be held at any time by the board on the written request of at least three members of the board, on the call of the president or upon the request of the mayor.
(Code 1956, § 4-4)

***Charter references**—Boards and commissions, general requirements, art. IV, ch. 1; New Orleans Aviation Board, art. V, ch. 7.

Cross references—Boards, committees and commissions, § 2-86 et seq.; check signed by the director of finance and any two members of the aviation board on the aviation board account, § 70-42.

Sec. 22-40. Operation of airports, etc.

The aviation board shall have the custody of and shall be charged with the administration, operation and maintenance of all municipally owned airports or other aviation facilities, including particularly the New Orleans International Airport (Moisant Field) in Jefferson Parish, and any further airports or aviation facilities, which may hereafter be constructed, operated and maintained by the city under authority of law.
(Code 1956, § 4-5)

Sec. 22-41. Rules and regulations.

The aviation board may adopt all necessary rules and regulations to enable it to perform its functions.
(Code 1956, § 4-6)

Sec. 22-42. Power and authority generally.

The aviation board shall have the fullest power, authority and responsibility permitted by the charter of the city, consistent with ordinances heretofore adopted and with its contractual obligations with airline lessees of New Orleans International Airport (Moisant Field), to:

(1) Administer, operate and maintain all municipal airports and aviation facilities;

(2) Represent the city in all technical matters pertaining to aeronautics, in consultation with state, national or international aeronautic offices or agencies.

(Code 1956, § 4-12.1)

Sec. 22-43. Execution of contracts, granting concessions.

In the carrying out of its rights, duties and responsibilities the aviation board, acting through its proper officers, shall have full power to execute contracts and grant concessions appertaining to airport property and operations, which contracts and concession grants, when duly executed by such board, shall be binding upon and represent commitments regarding the same on the part of the city.
(Code 1956, § 4-12.2)

Sec. 22-44. Purchase of property.

The aviation board shall have full power, in accordance with law, to purchase movable property of all kinds and nature deemed by the board necessary for the exercise of its functions; provided, however, that, when practicable, purchases of movable property may be coordinated with the department of finance in order to secure the benefits of quantity purchases. Immovable property shall be acquired by the department of finance upon the recommendation of the department of property management. Plans for the improvement of the airport shall be approved by the city planning commission.
(Code 1956, § 4-12.3)

Sec. 22-45. Separate system of accounts.

Due to the needs of special accounting requirements in connection with leases with tenants of the airport, particularly the airline lessees, and in complying with Federal Aviation Agency requirements resulting from grant agreements with the Federal Aviation Agency, which grant agreements, amendments and supplements thereto the aviation board is hereby specifically authorized to execute with the Federal Aviation Agency and by the execution of the same bind the city as therein specified, such board is hereby authorized to establish and maintain a separate system of accounts and the department of finance is hereby expressly authorized to approve such system of accounts under section 4-1301(o) of the city charter.
(Code 1956, § 4-12.4)

Sec. 22-46. Employment of special consultants and assistants.

In furtherance of the rights, duties and responsibilities of the aviation board set forth herein, such board is specifically authorized, subject to applicable civil service laws and regulations, to employ such special consultants and assistants, including real estate agents and appraisers, negotiators, engineers, surveyors and attorneys, as such board, in its discretion, may deem appropriate, subject to the requirement that the employment of any special counsel by such board shall be subject to council approval, as provided in section 4-403 of the charter.
(Code 1956, § 4-12.5)

Sec. 22-47. Revolving fund.

(a) There is hereby established a revolving fund, in accordance with section 6-208 of the charter of the city, to be designated as the "Revolving Fund of the New Orleans Aviation Board" into which money shall be paid and which shall be administered as hereinafter set forth.

(b) All funds on hand on the effective date of the ordinance from which this section was derived in the "City of New Orleans Aviation Board Account," created by Ordinance No. 15,839 C.C.S., and all revenues accruing on and after that date from the operations of the municipal airports and aviation facilities, including all concessions and other operations located on any property of the city dedicated to the airport and other aviation purposes, shall be placed in the fund established by this section and deposited to the account of such fund in a bank which has been designated as a city depository in accordance with the procedure set forth in the city charter.
(Code 1956, § 4-12.6)

Cross reference—Funds, § 70-81 et seq.

Sec. 22-48. Collection of revenues, etc.

The council hereby authorizes and approves the delegation by the director of the department of finance to the aviation board of the functions of collecting all revenues described in section 22-47 and awarding all concessions located on property of the city which is dedicated to airport or other aviation purposes.
(Code 1956, § 4-12.7)

Sec. 22-49. Annual budget; use of funds of revolving fund.

The aviation board shall prepare, in accordance with its accounting records, adopt and submit annually to the council, not later than November 1 in each year, a budget of revenues and expenditures for the following calendar year, which shall be first approved by the council before any disbursements are made therefrom. This annual budget may, from time to time, be amended by

the board. Funds placed in the revolving fund of the board shall be used exclusively:

(1) First, for the payment of the expenses of administering, operating and maintaining the municipal airports and aviation facilities in accordance with the annual or amended budget of revenues and expenditures adopted by the board after publication thereof in the official journal of the city and after approval thereof by the council;

(2) Second, for the further development of any municipally-owned airports and aviation facilities; and

(3) Third, for the retirement in principal and interest of any bonds issued by the city in accordance with the vote of the property taxpayers of the city for the construction or further development of any airport or airports or aviation facilities belonging exclusively to the city.

(Code 1956, § 4-12.8)

Sec. 22-50. Expenditures from revolving fund.

Expenditures from the revolving fund of the aviation board, established by section 22-47, shall be made by the department of finance upon submission by properly designated officers of the board of evidence that the articles or services for which payment is requested have been procured, received or rendered in accordance with law and that payment therefor is due, in accordance with the budget of revenues and expenditures provided for in section 22-49; provided, however, that in cases of emergency the chairman or vice-chairman of the board is hereby authorized to make changes in budgeted expenditures and requisition the department of finance accordingly, on condition that the budget of revenues and expenditures shall be amended promptly thereafter by the board as provided in section 22-49.

(Code 1956, § 4-12.9)

Sec. 22-51. Permanent physical improvements.

The aviation board shall each year submit to the city planning commission, on or before August 15th, a list of all expenditures for permanent physical improvements it is making or proposes to make during the succeeding five years for inclusion in the capital program and capital budget; provided that nothing in this section shall be deemed to restrict the board's authority to make expenditures from its revolving fund for maintenance and renewal and replacement purposes on aviation properties under its administration in accordance with section 22-49.

(Code 1956, § 4-12.10)

Sec. 22-52. Quarterly statement and annual audit.

After each calendar quarter the aviation board shall file with the council a detailed statement of its receipts and of its expenditures, predicated upon its annual or amended budget and annually the accounts of the board shall be audited and a report thereof filed with the council.

(Code 1956, § 4-13)

Secs. 22-53—22-80. Reserved.

ARTICLE III. PUBLIC TRANSPORTATION*

Sec. 22-81. Application of article.

The provisions of this article shall apply to all persons, individual and corporate who operate public service buses, limousines or taxicabs from New Orleans International Airport.

(Code 1956, § 4-13.1; M.C.S., Ord. No. 25098, § 1, 11-15-12)

Sec. 22-82. Signage.

The aviation board will erect and maintain such signs as may be deemed necessary for the information of the travelling public. All signs

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***Editor's note—**M.C.S., Ord. No. 25098, § 8, adopted Nov. 15, 2012, repealed §§ 22-86, 22-94, 22-99, 22-101—22-103, which derived from Code 1956, § 4-13.1(f), (m), (o), (p), (u), (w). Section 8 of said ordinance renumbered the remaining sections accordingly.

Cross references—Businesses, ch. 30; public transit vehicles, ch. 122; vehicles for hire, ch. 162; taxicabs, § 162-601 et seq.; limousines, § 162-841 et seq.; tour vehicles and buses, § 162-896 et seq.

concerning public service transportation will reflect clearly the proper rates, worded correctly, so as not to mislead the public. No signs other than those authorized by the board will be permitted.
(Code 1956, § 4-13.1(d))

Sec. 22-83. Violations, denial, suspensions, revocation.

Whoever violates any rules and regulations of the New Orleans Aviation Board may be subject to denial, suspension and/or revocation of the use permit issued under the authority of the aviation board. The procedure for determining eligibility for a use permit and/or determination whether a violation has occurred and imposing an appropriate remedy shall be established by the New Orleans Aviation Board.
(Code 1956, § 4-13.1(v); M.C.S., Ord. No. 25098, § 2, 11-15-12)

Sec. 22-84. Authorization to operate.

All persons operating public service vehicles from New Orleans International Airport shall be possessed of a proper contract, franchise, permit or other document authorized by the aviation board and permitting such operation. Such documents shall require compliance with the board's rules and regulations for the operation of the airport.
(Code 1956, § 4-13.1(a))

Sec. 22-85. Taxi airport use permit.

Every person desiring to operate a taxicab from the airport shall first obtain a taxi airport use permit, decal or other document authorized by the New Orleans Aviation Board permitting such operation. Such permit shall be issued only upon full compliance with rules and regulations, policies and procedures of the New Orleans Aviation Board.
(Code 1956, § 4-13.1(e); M.C.S., Ord. No. 25098, § 3, 11-15-12)

Cross reference—Taxicabs, § 162-601 et seq.

Sec. 22-86. Possession of necessary documents.

All drivers of taxicabs shall possess all necessary licenses, documents, etc., which are required by the state or any of its political subdivisions for taxicab operation, and each taxicab shall be similarly certified.
(Code 1956, § 4-13.1(g); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-87. See editor's note at beginning of Art. III.

Sec. 22-87. Responsibility for employees.

Employees of any firm or corporation are the responsibility of the contracting firm and their infraction of rules and regulations will be enforced against the contracting firm. Individuals holding permits from the aviation board are subject to suspension or revocation of such permits as further set forth in these rules and regulations.
(Code 1956, § 4-13.1(b); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-88. See editor's note at beginning of Art. III.

Sec. 22-88. Solicitation prohibited.

No person shall act in the capacity of solicitant for any fare or business of any other nature; so called "starters" or information clerks are expressly prohibited and particularly in the public baggage claim area. This does not prohibit information being given from any properly identified booth or office. Soliciting through porters is prohibited; handling of baggage by any employee of a firm, or by any individual permit holder, is prohibited. During periods of active loading, all persons engaged in the purveying of public transportation shall remain in close proximity to their vehicles. The deputy director may, at his discretion, set physical limits for such persons.
(Code 1956, § 4-13.1(c); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-89. See editor's note at beginning of Art. III.

Sec. 22-89. Insurance requirements.

All owners and/or operators of taxicabs shall possess at all times, and shall make available for inspection on demand, documents establishing that they currently meet all insurance requirements imposed by law or regulation.
(Code 1956, § 4-13.1(t); M.C.S., Ord. No. 25098, §§ 4, 8, 11-15-12)

Editor's note—Formerly § 22-90. See editor's note at beginning of Art. III.

Sec. 22-90. Establishment of rates.

Taxicab rates to destinations in Orleans Parish shall be those rates established by the city council through the New Orleans Taxicab Bureau.
(Code 1956, § 4-13.1(i); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-91. See editor's note at beginning of Art. III.

Sec. 22-91. Meter, posting of rates.

Every taxicab shall be equipped with a meter, and will at no time be permitted to operate unless the meter is functioning properly. The meter shall be set at the rate prescribed by the laws or regulations of the municipality or parish in which the cab may operate. The established rates shall be posted on the inside of each cab licensed by the aviation board and shall be of a size and type readily legible to any passenger.
(Code 1956, § 4-13.1(h); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-92. See editor's note at beginning of Art. III.

Sec. 22-92. Loading of customers.

Taxicabs shall await and load customers at the airport in the manner authorized by the New Orleans Aviation Board.
(Code 1956, § 4-13.1(j); M.C.S., Ord. No. 25098, §§ 5, 8, 11-15-12)

Editor's note—Formerly § 22-93. See editor's note at beginning of Art. III.

Sec. 22-93. Transportation of passenger to destination.

(a) All taxicab drivers are required to give the airport regulatory agency (regulators) the destination of the passenger or passengers in their vehicles. Failure to forward this information or the willful giving of the wrong information constitutes a violation.

(b) The driver must transport the passenger to his desired destination within the metropolitan area. All drivers are to be familiar with the metropolitan area and should have local area maps for ready reference. Any driver unable to transport a passenger to any point in the metropolitan area will revert to the rear of the cab line.

(c) Attempts by any cab drivers to influence the destination of any passengers, or acceptance of money or other gratuities by a cab driver from anyone, given for the purpose of inducing passengers to change their requested destination, or any solicitation by drivers on behalf of operators of off airport businesses will result in revocation of driver's taxi airport use permit.

(d) The attempt by any operator of a taxicab to influence the destination of a fare, or ability to generate a fare out of turn by gratuities to any regulator shall constitute an indefinite revocation of the operator airport use permit.
(Code 1956, § 4-13.1(k), (n), (r), (s); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-95. See editor's note at beginning of Art. III.

Sec. 22-94. Cruising prohibited.

Cruising of taxis or solicitation of passengers by any means at the airport is expressly prohibited.
(Code 1956, § 4-13.1(l); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-96. See editor's note at beginning of Art. III.

Sec. 22-95. General conduct of drivers.

All drivers shall conduct themselves in an orderly and courteous manner. Drivers shall conduct their business in an honest and scrupulous manner and abide by all the prevailing laws prescribed for the operation of taxicabs.
(Code 1956, § 4-13.1(l); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-97. See editor's note at beginning of Art. III.

Sec. 22-96. Maintenance of vehicle—Generally.

Each driver shall be fully responsible for the exterior and interior of his/her taxicab. Each driver shall be required to maintain his/her taxicab and his/her person in a neat and clean condition at all times. Dashboards must be maintained free and clear of all paraphernalia and other items not necessary for the operation of such taxicab. Each taxicab must be air conditioned, and operating in a first class condition. Each

taxicab must comply with all applicable vehicle standards imposed by law or regulation, including but not limited to the rules and regulations of the New Orleans Aviation Board.
(Code 1956, § 4-13.1(o); M.C.S., Ord. No. 25098, §§ 6, 8, 11-15-12)

Editor's note—Formerly § 22-98. See editor's note at beginning of Art. III.

Sec. 22-97. Inspections authorized.

All taxicabs being operated from the airport shall be at all times subject to inspection, including spot inspections, by the New Orleans Aviation Board and/or appropriate local governing authorities.
(Code 1956, § 4-13.1(q); M.C.S., Ord. No. 25098, §§ 7, 8, 11-15-12)

Editor's note—Formerly § 22-100. See editor's note at beginning of Art. III.

Sec. 22-98. Discrimination against persons.

No taxicab owner or operator shall discriminate against any person or group of persons (cab load) due to race, creed, sex, national origin or physical handicap. No operator shall be allowed to operate at this facility unless in conformity with this rule.
(Code 1956, § 4-13.1(x); M.C.S., Ord. No. 25098, § 8, 11-15-12)

Editor's note—Formerly § 22-104. See editor's note at beginning of Art. III.

Secs. 22-99—22-135. Reserved.

ARTICLE IV. OPERATION OF AIRCRAFT

Sec. 22-136. Federal Aviation Administration rules.

(a) No person shall operate or cause to be operated any aircraft over or within the corporate limits of the city or the boundaries of New Orleans International Airport (Moisant Field) in violation of any of the air traffic rules established by the Federal Aviation Administration of the United States or its successor.

(b) The term "aircraft" as used in this section means any contrivance used or designed for navigation of or flight in the air except a parachute or other contrivance used primarily as safety equipment.
(Code 1956, § 4-14)

Sec. 22-137. Aircraft equipped with loudspeaking devices, carrying banners or distributing printed matter.

(a) The term "aircraft" as used in this section shall mean any type of heavier-than-air or lighter-than-air aircraft now invented or yet to be invented, including, but not limited to airplanes, helicopters, balloons, etc.

(b) No person shall make any flights by aircraft carrying banners, distributing circulars or other printed matter from the air, or operate a loud-speaking or sound-amplifying device within or over the corporate limits of the city, either on his own account or for hire or gratuitously, without first obtaining a permit to do so from the bureau of safety and permits, and the payment of a permit fee of $20.00 for each flight; provided, however, that the permits provided for in this section may be issued by the bureau of safety and permits for periods not longer than one month rather than for individual flights for a fee of $100.00 for the period.

(c) Permits shall state the day and hours on which the flight is to be held. No permit shall be issued for the period beginning at 10:00 p.m. and ending at 10:00 a.m. on the following day.

(d) Any person violating any of the provisions of this section shall, upon conviction thereof, be fined in a sum not exceeding $100.00 or by imprisonment for a term not exceeding 90 days, or both, for each violation.
(Code 1956, § 4-15)

Secs. 22-138—22-165. Reserved.

ARTICLE V. AIRPORT ZONING FOR NEW ORLEANS INTERNATIONAL AIRPORT*

DIVISION 1. GENERALLY

Sec. 22-166. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Airport means New Orleans International Airport (Moisant Field).

Airport hazard means any structure or tree or use of land which obstructs the airspace required for the flight of aircraft in landing or taking off at the airport or is otherwise hazardous to such landing or taking off of aircraft.

Landing area means the area of the airport used for the landing, taking-off or taxiing of aircraft.

Nonconforming use means any structure, tree or use of land which does not conform to a regulation prescribed in this article or an amendment thereto, as of the effective date of such regulation.

Owner means the city or the aviation board, or their legally constituted successors.

Structure means any object constructed or installed by man, including, but without limitation, buildings, towers, smokestacks, and overhead transmission lines.

Tree means any object of natural growth.
(Code 1956, § 4-19)

Cross reference—Definitions generally, § 1-2.

Sec. 22-167. Administration.

The owner is hereby designated the administrative agency charged with the duty of administering and enforcing the regulations prescribed in this article. The duties of the owner shall include that of hearing and deciding all permits under sections 22-201 and 22-202, but the owner shall not have or exercise any of the powers or duties herein delegated to the board of appeals.
(Code 1956, § 4-20)

*__State law references—__Airport zoning, authority of city, R.S. 2:381 et seq.; airport authorities law does not limit city's authority to limit hazards by zoning, R.S. 2:611.

Sec. 22-168. Zones.

All of the land within the boundaries of the airport and within the prescribed areas is hereby divided into airport approach zones, airport transition zones and airport turning zones, the boundaries of which are shown on the zoning maps, designated Exhibit "A," dated August 20, 1951, covering New Orleans International Airport (formerly Moisant Field) attached to the original ordinance from which this article has been codified and made a part hereof.
(Code 1956, § 4-21)

Sec. 22-169. Height limit.

Except as otherwise provided in this article, no structure or tree shall be erected, altered, allowed to grow or maintained in any airport approach zone, airport transition zone, or airport turning zone to a height in excess of the height limit herein established for each zone. The following height limitations are herein established for each of the aforementioned zones at New Orleans International Airport (Moisant Field):

(1) *Approach zone.* On a 50 to one slope beginning at a point 200 feet from the ends of the instrument runway (10-28) and at the same elevations as the ends of the runway and on a 40 to one slope beginning at a point 200 feet from the ends of all other runways and at the same elevations as aforesaid and each slope or plane extending from the ends of the runways as aforesaid to the intersection of each with the horizontal surface 150 feet above the established airport elevation of three feet mean sea level (MSL).

(2) *Transition zone.* On a seven to one slope from each side of the runways and the approach zones to the intersection with the horizontal surface of 150 feet above the established airport elevation.

(3) *Turning zone.* A maximum height of 150 feet above the established airport eleva-

tion of three feet MSL, making the height limitation of 153 feet MSL within the turning zone but outside the approach and transition zones; the turning zone extends 18,500 feet in every direction from the radii point which is located on the centerline of the instrument runway (10-28) 3,500 feet W. N. W. from the E. S. E. end of such runway.

(Code 1956, § 4-22)

Sec. 22-170. Use restrictions.

Notwithstanding any other provision of this article, no use may be made of land within any airport approach zone, airport turning zone or airport transition zone in such a manner as to:

(1) Create electrical interference with radio communication between the airport and aircraft;

(2) Make it difficult for flyers to distinguish between airport lights and others;

(3) Result in glare in the eyes of the flyers using the airport;

(4) Impair visibility in the vicinity of the airport; or

(5) Otherwise endanger the landing, taking-off or maneuvering of aircraft.

(Code 1956, § 4-23)

Sec. 22-171. Existing nonconforming uses.

The regulations prescribed in sections 22-169 and 22-170 shall not be construed to require the removal, lowering or other change or alteration of any structure or tree not conforming to the regulations as of November 23, 1951, or otherwise to interfere with the continuance of any such nonconforming use. Nothing contained in this section shall require any change in the construction, alteration or intended use of any structure the construction or alteration of which was begun prior to November 23, 1951, and was diligently prosecuted and completed before November 23, 1953.

(Code 1956, § 4-24)

State law reference—Similar provisions, R.S. 2:384(D).

Sec. 22-172. Variances.

Any person desiring to erect any structure, increase the height of any structure, permit the growth of any tree or otherwise use his property not in accordance with the regulations prescribed in this article may apply for a variance therefrom. Such variance shall be allowed when a literal application or enforcement of these regulations would result in practical difficulty or unnecessary hardship and the relief granted would not be contrary to the public interest but do substantial justice and be in accordance with the spirit of this article.

(Code 1956, § 4-25)

State law reference—Similar provisions, R.S. 2:385(B).

Sec. 22-173. Conflicting regulations.

Where there exists a conflict between any of the regulations or limitations prescribed in this article and any other regulations applicable to the same area, whether the conflict be with respect to the height of structures or trees, and the use of land, or any other matter, the more stringent limitation or requirement shall govern and prevail.

(Code 1956, § 4-53)

Sec. 22-174. Illumination of structures.

(a) A red obstruction lighting system shall be utilized on all communications towers and support structures that are between 165 and 200 feet in height, as follows:

(1) At least one red flashing beacon should be installed at the top of the structure in such a manner as to ensure an unobstructed view of one or more lights by a pilot.

(2) Two or more steady-burning white lights should be installed on diagonally or diametrically opposite positions at a height equal to one-half of the total structure height.

(3) If a rod, antenna, or other appurtenance located on the tower, 40 feet or less in height, is incapable of supporting a red flashing beacon, then the beacon may be placed at the base of the appurtenance. If

the mounting location does not allow unobstructed viewing of the beacon by a pilot, then additional beacons should be added.

(4) If a rod, antenna, or other appurtenance is located on the tower, exceeding 40 feet in height, is incapable of supporting a red flashing beacon, a supporting mast with one or more beacons should be installed adjacent to the appurtenance. Adjacent installations shall not exceed the height of the appurtenance and shall be within 40 feet of the tip to allow the pilot an unobstructed view of at least one beacon.

(b) All lighting systems on communications towers and support structures standing between 165 and 200 feet above ground level are subject to inspection and enforcement by the Department of Safety and Permits.
(M.C.S., Ord. No. 22412, 10-5-06)

Secs. 22-175—22-200. Reserved.

DIVISION 2. PERMITS

Sec. 22-201. Permits required.

No material change shall be made in the use of land and no structure or tree shall be erected, altered, planted or otherwise established in violation of height limitations in any airport approach zone, airport turning zone or airport transition zone unless a permit therefor shall have been applied for and granted. Each such application shall indicate the purpose for which the permit is desired, with sufficient particularity to permit it to be determined whether the resulting use, structure or tree would conform to the regulations prescribed in this division. If such determination is in the affirmative, the permit applied for shall be granted.
(Code 1956, § 4-26)

State law reference—Similar provisions, R.S. 2:385(A).

Sec. 22-202. Alteration of existing use.

Before any existing use, structure or tree may be replaced, substantially altered or repaired, rebuilt, allowed to grow higher or replanted within any airport approach zone, airport turning zone or airport transition zone a permit must be secured authorizing such replacement, change or repair. No such permit shall be granted that would allow the establishment or creation of an airport hazard or permit a nonconforming use, structure or tree to be made or to become higher or become a greater hazard to air navigation than it was on November 23, 1951, or than it is when the application for a permit is made. Except as indicated all applications for a permit for replacement, change or repair of an existing use, structure or tree shall be granted.
(Code 1956, § 4-27)

State law reference—Similar provisions, R.S. 2:385(A).

Sec. 22-203. Consent to hazard marking and lighting.

Any permit or variance granted under sections 22-172 to 22-202 may, if such action is deemed advisable to effectuate the purposes of this article and reasonable in the circumstances, be so conditioned as to require the owner of the structure or trees in question to permit the owner, at its own expense, to install, operate and maintain thereon such markers and lights as may be necessary to indicate to flyers the presence of an airport hazard.
(Code 1956, § 4-28)

State law reference—Similar provisions, R.S. 2:385(C).

Secs. 22-204—22-225. Reserved.

DIVISION 3. BOARD OF APPEALS*

Sec. 22-226. Powers generally.

The zoning board of appeals and adjustment of the city is hereby authorized to act as the board of appeals hereunder and to exercise the following powers:

(1) To hear and decide appeals from any order, requirement, decision or determination made by the owner in the enforcement of this article;

***Cross reference—**Boards, committees and commissions, § 2-86 et seq.

State law reference—Board of appeal, powers, R.S. 2:386(C).

(2) To hear and decide special exceptions to the terms of this article upon which such board may be required to pass by subsequent ordinances; and

(3) To hear and decide specific variances under sections 22-201 and 22-202.

(Code 1956, § 4-29)

Sec. 22-227. Right of appeal.

Any person aggrieved or taxpayer affected by any decision of the owner made in its administration of this article, if of the opinion that the decision of the owner is an improper application of this article, may appeal to the board of appeals for which provision is made in section 22-226.
(Code 1956, § 4-30)

Sec. 22-228. When and how appeal taken.

All appeals referred to in section 22-227 must be taken within a reasonable time, as provided by the rules of the board of appeals, by filing with the owner and with the board a notice of appeal specifying the grounds thereof. The owner shall forthwith transmit to the board all the papers constituting the record upon which the action appealed from was taken.
(Code 1956, § 4-31)

Sec. 22-229. Effect of appeal as stay.

An appeal under this division shall stay all proceedings in furtherance of the action appealed from, unless the owner certifies to the board of appeals, after the notice of appeal has been filed with it, that by reason of the facts stated in the certificate a stay would in its opinion cause imminent peril to life or property. In such case proceedings shall not be stayed otherwise than by order of the board on notice to the owner and on due cause shown.
(Code 1956, § 4-32)

Sec. 22-230. Hearing of appeal and decision.

The board of appeals shall fix a reasonable time for the hearing of the appeal, give public notice and due notice to the parties in interest and decide the same within a reasonable time. Upon the hearing any party may appear in person or by agent or by attorney.
(Code 1956, § 4-33)

Sec. 22-231. Procedure; meetings; records.

The board of appeals shall adopt rules for its governance and procedure in harmony with the provisions of this article. Meetings of the board shall be held at the call of the chairman and at such other times as the board may determine. The chairman or, in his absence, the acting chairman may administer oaths and compel the attendance of witnesses. All hearings of the board shall be public. The board shall keep minutes of its proceedings, showing the vote of each member upon each question or, if a member is absent or fails to vote, indicating such fact and shall keep records of its examinations and other official actions, all of which shall immediately be filed in the office of the board and shall be public records.
(Code 1956, § 4-34)

Sec. 22-232. Order of board.

The board of appeals may, in conformity with the provisions of this article, reverse or affirm,

wholly or partly, or modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made and to that end shall have all the powers of the owner.
(Code 1956, § 4-35)

Sec. 22-233. Findings of fact, conclusions of law.

The board of appeals shall make written findings of fact and conclusions of law, giving the facts upon which it acted and its legal conclusions from such facts in reversing, affirming or modifying any order, requirement, decision or determination which comes before it under the provisions of this article.
(Code 1956, § 4-36)

Sec. 22-234. What majority vote of board may do.

The concurring vote of a majority of the members of the board of appeals shall be sufficient to reverse any order, requirement, decision or determination of the owner, to decide in favor of the applicant on any matter upon which it is required to pass under this article or to effect any variation in this article.
(Code 1956, § 4-37)

Sec. 22-235. Conclusiveness of findings of fact.

Findings of fact of the board of appeals, if supported by substantial evidence, shall be conclusive on appeal.
(Code 1956, § 4-38)

Sec. 22-236. Judicial review.

Any person aggrieved or taxpayer affected by any decision of the board of appeals may appeal to the district court, as provided in R.S. 2:387.
(Code 1956, § 4-39)

Sec. 22-237. Conflicting laws.

When this article imposes a greater or more stringent restriction upon the use of land than is imposed or required by any other law, ordinance or regulation the provisions of this article shall govern.
(Code 1956, § 4-40)

Secs. 22-238—22-265. Reserved.

ARTICLE VI. AIRPORT ZONING, NEW ORLEANS LAKEFRONT AIRPORT*

DIVISION 1. GENERALLY

Sec. 22-266. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Airport means the New Orleans Lakefront Airport.

Airport elevation means nine feet above mean sea level.

Approach surface means a surface longitudinally centered on the extended runway centerline, extending outward and upward from the end of the primary surface and at the same slope as the approach zone height limitation slope set forth in section 22-268. In plan the perimeter of the approach surface coincides with the perimeter of the approach zone.

Approach, transitional, horizontal, and conical zones mean zones set forth in section 22-267.

Conical surface means a surface extending outward and upward from the periphery of the horizontal surface at a slope of 20 to one for a horizontal distance of 4,000 feet.

Hazard to air navigation means an obstruction determined to have a substantial adverse effect on the safe and efficient utilization of the navigable airspace.

Height means, for the purpose of determining the height limits in all zones set forth in this ar-

*State law references—Airport zoning, authority of city, R.S. 2:381 et seq.; airport authorities law does not limit city's authority to limit hazards by zoning, R.S. 2:611.

ticle and shown on the zoning map, the mean sea level elevation unless otherwise specified.

Horizontal surface means a horizontal plane 150 feet above the established airport elevation, the perimeter of which in plan coincides with the perimeter of the horizontal zone.

Larger than utility runway means a runway that is constructed for and intended to be used by propeller driven aircraft of greater than 12,500 pounds maximum gross weight and jet powered aircraft.

Nonconforming use means any preexisting structure, object of natural growth, or use of land which is inconsistent with the provisions of this article or an amendment thereto.

Nonprecision instrument runway means a runway having an existing instrument approach procedure utilizing air navigation facilities with only horizontal guidance, or area type navigation equipment, for which a straight-in nonprecision instrument approach procedure has been approved or planned.

Obstruction means any structure, growth, or other object, including a mobile object, which exceeds a limiting height set forth in section 22-268.

Precision instrument runway means a runway having an existing instrument approach procedure utilizing an instrument landing system (ILS) or a precision approach radar (PAR). It also means a runway for which a precision approach system is planned and is so indicated on an approved airport layout plan or any other planning document.

Primary surface means a surface longitudinally centered on a runway. When the runway has a specially prepared hard surface, the primary surface extends 200 feet beyond each end of that runway; for military runways or when the runway has no specially prepared hard surface, or planned hard surface, the primary surface ends at each end of that runway. The width of the primary surface is set forth in section 22-267. The elevation of any point on the primary surface is the same as the elevation of nearest point on the runway centerline.

Runway means a defined area at an airport prepared for landing and take-off of aircraft along its length.

Structure means an object, including a mobile object, constructed or installed by man, including but without limitation, buildings, towers, cranes, smokestacks, earth formation, and overhead transmission lines.

Transitional surfaces means these surfaces extend outward at 90-degree angles to the runway centerline and the runway centerline extended at a slope of seven feet horizontally for each foot vertically from the sides of the primary and approach surfaces to where they intersect the horizontal and conical surfaces. Transitional surfaces for those portions of the precision approach surfaces, which project through and beyond the limits of the conical surface, extend a distance of 5,000 feet measured horizontally from the edge of the approach surface and at 90-degree angles to the extended runway centerline.

Tree means any object of natural growth.

Utility runway means a runway that is constructed for and intended to be used by propeller driven aircraft of 12,500 pounds maximum gross weight and less.

Visual runway means a runway intended solely for the operation of aircraft using visual approach procedures.

(Code 1956, § 4-42)

Cross reference—Definitions generally, § 1-2.

Sec. 22-267. Airport zones.

In order to carry out the provisions of this article, there are hereby created and established certain zones which include all of the land lying beneath the approach surfaces, transitional surfaces, horizontal surfaces, and conical surfaces as they apply to New Orleans Lakefront Airport. Such zones are shown on New Orleans Lakefront Airport Zoning Map consisting of one sheet, prepared by the Orleans Levee Board, Number 4105 dated August, 1980, which is attached to the ordinance from which this article was derived and made a part hereof by reference. An area located in more

than one of the following zones is considered to be only in the zone with the more restrictive height limitation. The various zones are hereby established and defined as follows:

(1) *Utility runway visual approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 250 feet wide. The approach zone expands outward uniformly to a width of 1,250 feet at a horizontal distance of 5,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(2) *Utility runway nonprecision instrument approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 500 feet wide. The approach zone expands outward uniformly to a width of 2,000 feet at a horizontal distance of 5,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(3) *Runway larger than utility visual approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 500 feet wide. The approach zone expands outward uniformly to a width of 1,500 feet at a horizontal distance of 5,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(4) *Runway larger than utility with a visibility minimum greater than three-fourths mile nonprecision instrument approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 500 feet wide. The approach zone expands outward uniformly to a width of 3,500 feet at a horizontal distance of 10,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(5) *Runway larger than utility with a visibility minimum as low as three-fourths mile nonprecision instrument approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 1,000 feet wide. The approach zone expands outward uniformly to a width of 4,000 feet at a horizontal distance of 10,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(6) *Precision instrument runway approach zone.* The inner edge of this approach zone coincides with the width of the primary surface and is 1,000 feet wide. The approach zone expands outward uniformly to a width of 16,000 feet at a horizontal distance of 50,000 feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(7) *Transitional zones.* The transitional zones are the areas beneath the transitional surfaces.

(8) *Horizontal zone.* The horizontal zone is established by swinging arcs of 5,000 feet radii for all runways designated utility or visual and 10,000 feet for all others from the center of each end of the primary surface of each runway and connecting the adjacent arcs by drawing lines tangent to those arcs. The horizontal zone does not include the approach and transitional zones.

(9) *Conical zone.* The conical zone is established as the area that commences at the periphery of the horizontal zone and extends outward therefrom a horizontal distance of 4,000 feet.

(Code 1956, § 4-43)

Sec. 22-268. Airport zone height limitations.

Except as otherwise provided in this article, no structure shall be erected, altered, or maintained, and no tree shall be allowed to grow in any zone created by this article to a height in excess of the applicable height herein established for such zone. Such applicable height limitations are hereby established for each of the zones in question as follows:

(1) *Utility runway visual approach zone.* Slopes 20 feet outward for each foot upward beginning at the end of and at the same eleva-

tion as the primary surface and extending to a horizontal distance of 5,000 feet along the extended runway centerline.

(2) *Utility runway nonprecision instrument approach zone.* Slopes 20 feet outward for each foot upward beginning at the end of and at the same elevation as the primary surface and extending to a horizontal distance of 5,000 feet along the extended runway centerline.

(3) *Runway larger than utility visual approach zone.* Slopes 20 feet outward for each foot upward beginning at the end of and at the same elevation as the primary surface and extending to a horizontal distance of 5,000 feet along the extended runway centerline.

(4) *Runway larger than utility with a visibility minimum greater than three-fourths mile nonprecision instrument approach zone.* Slopes 34 feet outward for each foot upward beginning at the end of and at the same elevation as the primary surface and extending to a horizontal distance of 10,000 feet along the extended runway centerline.

(5) *Runway larger than utility with a visibility minimum as low as three-fourths mile nonprecision instrument approach zone.* Slopes 34 feet outward for each foot upward beginning at the end of and at the same elevation as the primary surface and extending to a horizontal distance of 10,000 feet along the extended runway centerline.

(6) *Precision instrument runway approach zone.* Slopes 50 feet outward for each foot upward beginning at the end of and at the same elevation as the primary surface and extending to a horizontal distance of 10,000 feet along the extended runway centerline; thence slopes upward 40 feet horizontally for each foot vertically to an additional horizontal distance of 40,000 feet along the extended runway centerline.

(7) *Transitional zones.* Slope seven feet outward for each foot upward beginning at the sides of and at the same elevation as the primary surface and the approach surface, and extending to a height of 150 feet above the airport elevation which is nine feet above mean sea level. In addition to the foregoing, there are established height limits sloping seven feet outward for each foot upward beginning at the sides of and the same elevation as the approach surface, and extending to where they intersect the conical surface. Where the precision instrument runway approach zone projects beyond the conical zone, there are established height limits sloping seven feet outward for each foot upward beginning at the sides of and the same elevation as the approach surface, and extending a horizontal distance of 5,000 feet measured at 90-degree angles to the extended runway centerline.

(8) *Horizontal zone.* Established at 150 feet above the airport elevation or at a height of 159 feet above mean sea level.

(9) *Conical zone.* Slopes 20 feet outward for each foot upward beginning at the periphery of the horizontal zone and at 150 feet above the airport elevation and extending to a height of 350 feet above the airport elevation.

(10) *Excepted height limitations.* Nothing in this article shall be construed as prohibiting the construction or maintenance of any structure, or growth of any tree to a height up to 50 feet above the surface of the land.

(Code 1956, § 4-44)

Sec. 22-269. Use restriction.

Notwithstanding any other provisions of this article, no use may be made of land or water within any zone established by this article in such a manner as to create electrical interference with navigational signals or radio communication between the airport and aircraft, make it difficult for pilots to distinguish between airport lights and others, result in glare in the eyes of pilots using the airport, impair visibility in the vicinity of the airport, create bird strike hazards, or otherwise in any way endanger or interfere with the landing, takeoff, or maneuvering of aircraft intending to use the airport.

(Code 1956, § 4-45)

Sec. 22-270. Nonconforming uses.

(a) *Regulations not retroactive.* The regulations prescribed in this article shall not be construed to require the removal, lowering, or other change or alteration of any structure or tree not conforming to the regulations as of the effective date of the ordinance from which this article was derived, or otherwise interfere with the continuance of a nonconforming use. Nothing contained in this section shall require any change in the construction, alteration, or intended use of any structure, the construction or alteration of which was begun prior to the effective date of the ordinance from which this article was derived, and is diligently prosecuted.

(b) *Marking and lighting.* Notwithstanding the preceding provision of this section, the owner of any existing nonconforming structure or tree is hereby required, at the owner's option, to either install, operate and maintain or to permit the installation, operation, and maintenance thereon of such markers and lights as shall be deemed necessary by the director of aviation, New Orleans Lakefront Airport, to indicate to the operators of aircraft in the vicinity of the airport the presence of such airport obstruction. Such markers and lights shall be installed, operated, and maintained at the expense of New Orleans Lakefront Airport. (Code 1956, § 4-46)

State law reference—Similar provisions, R.S. 2:384(D), 2:385(C).

Secs. 22-271—22-300. Reserved.

DIVISION 2. PERMITS*

Sec. 22-301. Future uses.

(a) Except as specifically provided in subsections (1), (2), and (3) of this section, no material change shall be made in the use of land, no structure shall be erected or otherwise established, and no tree shall be planted in any zone hereby created unless a permit therefor shall have been applied for and granted. Each application for a permit shall indicate the purpose for which the permit is desired, with sufficient particularity to permit it to be determined whether the resulting use, structure, or tree would conform to the regulations herein prescribed. If such determination is in the affirmative, the permit shall be granted. No permit for a use inconsistent with the provisions of this article shall be granted unless a variance has been approved in accordance with section 22-304.

(1) In the area lying within the limits of the horizontal zone and conical zone, no permit shall be required for any tree or structure less than 75 feet of vertical height above the ground, except when, because of terrain, land contour, or topographic features, such tree or structure would extend above the height limits prescribed for such zones.

(2) In areas lying within the limits of the approach zones but at a horizontal distance of not less than 4,200 feet from each end of the runway, no permit shall be required for any tree or structure less than 75 feet of vertical height above the ground, except when such tree or structure would extend above the height limit prescribed for such approach zones.

(3) In the areas lying within the limits of the transition zones beyond the perimeter of the horizontal zone, no permit shall be required for any tree or structure less than 75 feet of vertical height above the ground, except when such tree or structure, because of terrain, land contour, or topographic features, would extend above the height limit prescribed for such transition zones.

(b) Nothing contained in any of the foregoing exceptions shall be construed as permitting or intending to permit any construction, or alteration of any structure, or growth of any tree in excess of any of the height limits established by this article except as set forth in subsection 22-268(10). (Code 1956, § 4-47(1))

Sec. 22-302. Existing uses.

No permit shall be granted under this division that would allow the establishment or creation of an obstruction or permit a nonconforming use, structure, or tree to become a greater hazard to air navigation than it was on the effective date of

*State law references—Permits; variances; obstruction marking and lighting, R.S. 2:385.

the ordinance from which this article was derived or any amendments thereto or than it is when the application for a permit is made. Except as indicated, all applications for such a permit shall be granted.
(Code 1956, § 4-47(2))

Sec. 22-303. Nonconforming uses abandoned or destroyed.

Whenever the department of safety and permits determines that a nonconforming tree or structure has been abandoned or more than 80 percent torn down, physically deteriorated, or decayed, no permit shall be granted that would allow such structure or tree to exceed the applicable height limit or otherwise deviate from the zoning regulations.
(Code 1956, § 4-47(3))

Sec. 22-304. Variances.

Any person desiring to erect or increase the height of any structure, or permit the growth of any tree, or use property, not in accordance with the regulations prescribed in this article, may apply to the board of zoning adjustment for a variance from such regulations. The application for variance shall be accompanied by a determination from the Federal Aviation Administration as to the effect of the proposal on the operation of air navigation facilities and the safe, efficient use of navigable airspace. Such variances shall be allowed where it is duly found that a literal application or enforcement of the regulations will result in unnecessary hardship and relief granted, will not be contrary to the public interest, will not create a hazard to air navigation, will do substantial justice, and will be in accordance with the spirit of this article. Additionally, no application for variance to the requirements of this article may be considered by the board of zoning adjustment unless a copy of the application has been furnished to the director of aviation, New Orleans Lakefront Airport, for advice as to the aeronautical effects of the variance. If the director of aviation does not respond to the application within 15 days after receipt, the board of zoning adjustment may act on its own to grant or deny such application.
(Code 1956, § 4-47(4))

Sec. 22-305. Obstruction marking and lighting.

Any permit or variance granted under this division may, if such action is deemed advisable to effectuate the purpose of this article and be reasonable in the circumstances, be so conditioned as to require the owner of the structure or tree in question to install, operate, and maintain, at the owner's expense, such markings and lights as may be necessary.
(Code 1956, § 4-47(5))

Chapters 23–25

RESERVED

Chapter 26

BUILDINGS, BUILDING REGULATIONS AND HOUSING STANDARDS*

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***Editor's note—**The New Orleans Building Code enacted by M.C.S., Ord. No. 11,625, and all amendments to the building code are omitted from this Code but were exempted from the general repealer clause contained in the ordinance by which this Code was adopted and therefore remain in effect. The original building code, the ordinance by which it was adopted and all ordinances amending that Code are on file in the office of the clerk of the council. The building code is published in loose-leaf form and may be obtained from the department of safety and permits. In addition, the fire prevention code of the city, enacted by M.C.S., Ord. No. 347 and all amendments to the fire prevention code, have been omitted from this Code but were exempted from the general repealer clause contained in the ordinance by which this Code was adopted and therefore remain in effect. The original fire prevention code, the ordinance by which it was adopted and all ordinances amending that Code are on file in the office of the clerk of the council. The fire prevention code has been published and a copy may be obtained from the department of safety and permits.

Charter reference—Department of safety and permits, §§ 4-701—4-706.

Cross references—Standards for buildings, housing, places of entertainment and amusement, § 14-36 et seq.; nuisances, § 66-241 et seq.; fire prevention and protection, ch. 74; floods, ch. 78; flood damage prevention, § 78-36 et seq.; discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.; manufactured homes and parks, ch. 98; signs, ch. 134; utilities, ch. 158.

State law reference—Building generally, R.S. 40:1491—40:1749.22.

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ARTICLE I. IN GENERAL

Sec. 26-1. Fraudulent practices in certain construction, erection, improvement or repair work.

(a) No person who is a party to a contract pertaining to the construction, erection, improvement or repair of any building or structure in the city shall do, or attempt, or cause or allow to be done or attempted by his agents or employees any of the following, which are defined as fraudulent practices for purposes of this section:

(1) Misrepresent to the owner of the property in question, or to the agent or representative of such owner, any material fact concerning the work proposed to be done by the contractor or subcontractor or the total price to be paid by the owner, including all financing charges, or the time and/or method of such payment; or make any promise concerning these matters, intended to influence the owner, or his agent or representative, knowing such promise to be false.

(2) Fail to timely begin and to complete; or to abandon, without good cause, the work undertaken to be done.

(3) Misrepresent to the owner of the property in question, or to the agent or representative of such owner, during the term of the contract for the work to be done, or after the execution of any evidence of indebtedness, any material fact concerning work already performed, as to quality or quantity, or concerning materials furnished or labor expended on the work in question.

(4) Wilful departure in any significant manner from the contract or the plans or specifications connected therewith without consent of the other contracting party and without reasonable cause which results in damage to the other party.

(5) Obtain a signed, written contract of the type referred to herein, or a promissory note, mortgage, pledge or other evidence of indebtedness in connection or conjunction therewith or in connection or conjunction with construction, erection, improvement or repair work on real property even without a signed, written contract, in which the full amount of money due to be paid, including discounts, interests, penalties, forfeitures, late charges, attorney fees or whatever, is not clearly and explicitly set forth in one sum or in such a manner as to be apparent.

(6) Fail to comply with all the requirements of the ordinances of the city applicable to such work, including particularly failure to obtain the required building permit and inspections from the city.

(b) This section is not applicable to contractors or subcontractors who have obtained a license and maintained a current license under the provisions of R.S. 37:2151—37:2163 provided that the particular contract involved exceeds $50,000.00.
(Code 1956, §§ 30-48, 30-49)

Sec. 26-2. Approval of demolitions within central business district.

(a) Permits for demolitions of existing structures within any area of the central business district (including any area located within the following boundaries: Iberville Street and projections thereof, the Mississippi River, the Pontchartrain Expressway and South and North Claiborne Avenue), less and except local historic districts with demolition control, shall be issued only after a city council motion has been passed authorizing such a demolition permit to be issued.

(b) The city council shall consider the recommendation of the city planning commission in making such a determination. The city planning commission's recommendation shall be made as a result of a meeting between the staff of the city planning commission, the department of safety and permits and the staff of the historic district landmarks commission as well as consideration given but not limited to the following:

(1) The architectural significance of the subject structure.

(2) The historical significance of the subject structure.

(3) The urban design significance of the subject structure as it relates to:

a. Pedestrian perception and movement;

b. Height, area and bulk of the structure as it relates to the street scene and to other buildings in the vicinity.

(4) The proposed length of time the subject site is planned to remain undeveloped.

(5) The proposed plan for redevelopment, if any, and its relationship to subsection (b)(3) of this section.

(6) If a parking lot or building is proposed as an interim use then need shall be based on but not limited to the following:

a. A plan of the location of existing and proposed parking facilities within the central business district;

b. Effect on traffic circulation both vehicular and pedestrian;

c. Parking inventory of buildings within a nine square block area of the proposed parking facility.

(c) Procedure for application:

(1) The department of safety and permits shall not issue a demolition permit to an applicant and shall refer an applicant to the city planning commission.

(2) The city planning commission shall obtain necessary information from applicant to do an analysis based on criteria contained in subsections (b)(1) through (6) and collect site plan review fee. Notwithstanding the provisions of this subsection, a fee of $500.00 shall be applicable for all demolition requests within the central business district.

(3) The city planning commission shall recommend an action to city council within 60 days from date of application in correct form.

(4) The city council shall take action by motion and shall do so only after receiving city planning commission recommendation. However, the council may act without planning commission recommendation if not received within 60 days of application in correct form.

(5) The applicant applies to the department of safety and permits with council motion approval of demolition.

(Code 1956, § 11-45; M.C.S., Ord. No. 23820, § 1, 12-1-09)

Sec. 26-3. Preservation of structures in National Register Historic Districts.

(a) All structures within National Register Historic Districts, pursuant to 16 U.S.C. 470 et seq., section 26-11, and other applicable laws, now or as amended, that are not exempt pursuant to section 26-6(f) herein, shall require city council approval prior to demolition.

(b) The purpose of requiring council approval of demolition of structures within National Register Historic Districts is:

(1) To attempt to preserve those buildings that have a historical or architectural value or buildings that contribute to the overall character of the neighborhood.

(2) To preserve and stabilize neighborhoods through the protection of those structures that represent the character and quality of the neighborhood or the architectural history of New Orleans.

(3) To promote redevelopment that contributes to the historic character of the neighborhood.

(Ord. No. 19,791, § 1, 8-3-00; M.C.S., Ord. No. 22882, § 1, 11-1-07; M.C.S., Ord. No. 23005, § 1, 2-21-08; M.C.S., Ord. No. 23764, § 1, 11-5-09; M.C.S., Ord. No. 23820, § 1, 12-1-09; M.C.S., Ord. No. 26037, § 1, 9-18-14; M.C.S., Ord. No. 28464, § 1, 8-20-20; M.C.S., Ord. No. 28520, § 1, 10-15-20)

Sec. 26-4. Application required for demolition.

(a) Any demolition of a structure within National Register Historic Districts, not expressly exempt by section 26-6(f), shall be reviewed and approved by the New Orleans City Council at a public hearing.

(b) Applications may only be filed by the owner of the subject property, an authorized agent of such owner, or a governmental agency. All applications subject to review, excluding applications that are initiated by a government agency, shall be accompanied by an additional application review fee of $250.00 per residential property and $500.00 per commercial property. This fee shall be in addition to any fees and applications required by the department of safety and permits for a standard demolition permit. For city initiated demolitions, all application submittals are required.

(c) To initiate review, the applicant shall submit to the department of safety and permits a completed application on forms created by the department for this purpose, which shall require at a minimum:

(1) The name of the owner(s);

(2) The name of the applicant(s), if different than the owner;

(3) Signature of the owner(s), or proof that the agent filing on behalf of an owner is authorized to do so;

(4) If the applicant is not the owner, the relationship to the owner (lessee, contractor, architect, etc.);

(5) The contact information for the applicant (phone number, address, email, etc.);

(6) The municipal address of the property;

(7) The following information regarding the property:

i. The Council district where the property is located;

ii. If the property is located in a National Register Historic District;

iii. If the property is in a Historic District Landmarks Commission District; and

iv. If the property is in the Vieux Carré (French Quarter).

(8) The approximate length of time the owner(s) owned the property;

(9) A written statement regarding why demolition is being sought;

(10) The cost of the demolition;

(11) A written statement regarding the future development plans for the property, specifically including:

i. The proposed plan for maintaining the lot between demolition and redevelopment, including any lot/weed maintenance and trash/debris removal plans;

ii. If fencing is proposed on the perimeter of the lot after demolition, the kind of fencing proposed;

iii. If redevelopment is planned, the timing expectations for completing the development along with the proposed use and if the redevelopment meets zoning requirements (if known); and

iv. If no immediate redevelopment is planned, the length of time the lot is anticipated to remain vacant.

(12) The number of residential units to be demolished, if applicable.

(d) In addition to the completed application form, the following additional documentation shall be affixed and incorporated into the application:

(1) Four color photographs of the structure to be demolished (full views of the front, rear, left, and right sides) labeled with the municipal address of the property and the view shown;

(2) A printed copy of the assessor's aerial map, with the subject property indicated;

(3) Recorded act of sale (if the property has recently changed ownership), or proof of ownership by the owner listed on the application;

(4) If re-development is planned, a copy of proposed site plans and exterior elevation plans (can be hand drawn);

(5) Estimated cost of the demolition from a licensed contractor; and

(6) A photograph indicating the posting of signage, no smaller than a standard-sized paper (eight and one-half by 11 inches) with a font large enough to be visible from the right-of-way, providing public notice that a demolition is being requested for the location, with the municipal address being visible, along with contact information for the district city council office, as provided by the department of safety and permits.

i. Once the owner receives notice from the clerk of council as to the date, time, and location of their demolition hearing, the posting shall be updated to include this information. Photographic proof of this revised posting shall be submitted to the clerk of council at least five days in advance of the scheduled hearing date.

ii. The postings shall be in a prominent location on the structure. If safe access to the structure is not reasonably practicable, the applicant shall place the sign on some prominent fixture on the adjacent public right-of-way as near as possible to the structure.

(7) If the city initiated demolition, written proof also shall be furnished providing mailed notice to the owner of record that the city is planning on initiating demolition of the structure.

(Ord. No. 19,791, § 1, 8-3-00; M.C.S., Ord. No. 23005, § 1, 2-21-08; M.C.S., Ord. No. 26037, § 1, 9-18-14; M.C.S., Ord. No. 28464, § 1, 8-20-20; M.C.S., Ord. No. 28520, § 1, 10-15-20)

Sec. 26-5. Application review.

(a) The department of safety and permits shall receive the demolition application forms, along with all required submittals, to ensure the application is complete. The department shall submit the application package to the clerk of council with five days of determining the application is complete.

(b) Each application submitted by the department shall contain a transmittal cover letter that provides a checklist indicating the inclusion of the necessary information and documentation required pursuant to section 26-4.

(c) Upon receipt of the department's completed submittal, the clerk of council shall formally receive the application materials as a communication at the next available regular council meeting, which shall set the suggested public hearing date for city council review. In no event shall an initial suggested public hearing date be more than 45 days from the formal receipt.

(d) Prior to the public hearing, the council research office (CRO) shall review the application and provide a written report analyzing the following:

(1) The current condition of the structure as evidenced by application photographs;

(2) The reason for the demolition request, and the cause for the current condition of the structure, if known;

(3) The architectural and historical significance of the structure, working in consultation with historic district landmark commission (HDLC);

(4) The neighborhood context of the structure and the overall effect demolition will have on the block face and surrounding area;

(5) The proposed length of time the site is anticipated to remain undeveloped if demolition is granted; and

(6) Are there proposed plans for redevelopment? If so, do those plans appear to comply with all zoning laws, or will those plans require additional entitlements in

order to build, working in consultation with the city planning commission and department of safety and permits.

(e) The CRO's report shall be submitted to the clerk of council for formal receipt on the city council agenda.
(Ord. No. 19,791, § 1, 8-3-00; M.C.S., 23005, § 1, 2-21-08; M.C.S., Ord. No. 26037, § 1, 9-18-14; M.C.S., Ord. No. 28464, § 1, 8-20-20; M.C.S., Ord. No. 28520, § 1, 10-15-20)

Sec. 26-6. Application approval.

(a) Subject to the exceptions listed herein, applications for demolitions within National Register Historic Districts shall be approved or denied by city council motion. Approvals shall expressly authorize the department of safety and permits to issue a demolition permit.

(b) Failure of the council to conduct a public hearing or act on an application within 45 days of formal receipt of the application on the regular city council agenda shall be deemed a denial of the application. Any denial by the council precludes reapplication for the same property for six months.

(c) The council may approve the demolition application subject to reasonable conditions provided in the written motion, when such conditions are necessary to protect the public welfare in relation to the preservation of the National Register Historic Districts' overall integrity, including:

(1) Requiring demolition to be completed within a reasonable timeframe;

(2) Requiring redevelopment within a reasonable timeframe; and/or

(3) Requiring deconstruction or salvage of historic elements.

(d) Within 15 calendar days of a final decision of the city council, any party, including adjacent property owners, neighborhood associations, or other interested individuals or organizations aggrieved by the decision of the city council may appeal that decision to the Civil District Court for the Parish of Orleans. An appeal of a final decision of the city council shall not affect a stay of such decision unless specifically authorized by order of the court.

(e) If the city council passes a motion authorizing the department of safety and permits to issue a demolition permit for a structure pursuant to this section, the applicant shall obtain the demolition permit within one year of passage of the city council motion. If the applicant fails to do so, the authorization shall be deemed null and void.

(f) The following National Register Historic District demolitions are exempt from the required city council review and approval:

(1) Single-story accessory structures that are not visible from the public right-of-way and are not used for residential or commercial space;

(2) Partial demolition, defined as less than 25 percent of the floor area, as defined by the New Orleans Building Code, of the structure. In no event shall a partial demolition include any portion of any primary facade, as defined by the Comprehensive Zoning Ordinance. Applications proposing the demolition of any portion of a primary facade shall be reviewed by the city council;

(3) Structures located within a historic district landmark commission (HDLC) or Vieux Carré Commission (VCC) jurisdiction, which are subject to the demolition permit review procedures set forth in Chapter 84 or Chapter 166 of the City Code;

(4) Structures in the Central Business District, which are subject to the demolition review procedures set forth in section 26-2 of the City Code;

(5) Structures that do not appear on the 1983 Sanborn maps, as verified by the department of safety and permits, in consultation with the city planning commission staff; and

(6) Structures for which emergency demolition has been determined to be necessary due to partial collapse or conditions which

have otherwise compromised the overall structural integrity, upon the recommendation of the chief building inspector and the department of code enforcement demolition coordinator and the concurrence of the directors of the departments of code enforcement and safety and permits, in consultation with the historic district landmark commission.

(Ord. No. 19,791, § 1, 8-3-00; M.C.S., Ord. No. 21549, § 1, 5-20-04; M.C.S., Ord. No. 22131, § 1, 1-19-06; M.C.S., Ord. No. 22196, § 1, 4-20-06; M.C.S., 23005, § 1, 2-21-08; M.C.S., Ord. No. 26037, § 1, 9-18-14; M.C.S., Ord. No. 26810, § 1, 2-18-16; M.C.S., Ord. No. 28464, § 1, 8-20-20; M.C.S., Ord. No. 28520, § 1, 10-15-20; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Sec. 26-7. Illegal demolitions.

(a) If a demolition occurs or commences on any structure subject to city council review and approval without securing the necessary and proper permits, the director of the department of safety and permits shall issue the owner a post-demolition permit at a cost of 15 percent of the building value as recorded by the tax assessor.

(b) Failure to obtain a post-demolition permit shall result in the city issuing a permit at its expense, in which event the city may file an affidavit by the director of the department of safety and permits to this effect in the office of the Recorder of Mortgages for Orleans Parish, notice of which shall constitute a lien and privilege against the property. Any lien and privilege recorded against an immoveable property pursuant to this section shall be included in the next annual ad valorem tax bill.

(c) An owner assessed a post-demolition permit may appeal its cost to the city council within 30 days of the assessment of said fee.

(1) An appeal shall be filed in writing to the clerk of council, providing the following information:

a. The municipal address of the property;

b. The council district of the property;

c. Four color photographs of the structure (full views of the front, right, left and rear sides) prior to the demolition, if available. If pre-demolition photographs are not available, the owner shall note as such in the communication;

d. Photographs of the property after the demolition;

e. A printed copy of the assessor's aerial map, with the subject property indicated;

f. The amount of the post-demolition fee assessed by the department of safety and permits and the requested fee modification;

g. The reason for the demolition without securing council approval; and

h. The proposed redevelopment plans for the property, along with timing expectations for completing the redevelopment.

(2) The clerk of council shall formally receive a completed appeal request as a communication on the next available regular council agenda, which shall set the suggested public hearing date for city council review. In no event shall an initial suggested public hearing date be more than 45 days from the formal receipt of the completed appeal request.

(3) Applications for appeals shall be approved, modified, or denied via city council motion.

(4) Failure of the council to conduct a public hearing or act on the appeal request within 45 days of formal receipt shall be deemed a denial of the appeal.

(5) Within 15 calendar days of a final decision of the city council, the owner aggrieved by the decision of the city council may appeal that decision to the Civil District Court for the Parish of Orleans.

(d) Nothing in this section precludes the department of safety and permits from assessing additional fees related to an illegal demolition, including but not limited to those specified in Section 109.2 of the International Building Code, as adopted in section 26-14 of the Code of the City of New Orleans.
(Ord. No. 19,791, § 1, 8-3-00; M.C.S., 23005, § 1, 2-21-08; M.C.S., Ord. No. 26037, § 1, 9-18-14; M.C.S., Ord. No. 28464, § 1, 8-20-20; M.C.S., Ord. No. 28520, § 1, 10-15-20)

Sec. 26-8. Reserved.

Editor's note—M.C.S., Ord. No. 28464, § 1, adopted August 20, 2020, repealed § 26-8, which pertained to violations of conditions contained in the council motion and derived from Ord. No. 19,791, § 1, adopted August 3, 2000; M.C.S., 23005, § 1, adopted Feb. 21, 2008; M.C.S., Ord. No. 23327, § 1, adopted Nov. 20, 2008; M.C.S., Ord. No. 26037, § 1, adopted Sept. 18, 2014. The user's attention is directed to § 26-6.

Sec. 26-9. Reserved.

Editor's note—M.C.S., Ord. No. 28464, § 1, adopted August 20, 2020, repealed § 26-9, which pertained to penalties and derived from M.C.S., Ord. No. 22226, § 1, adopted May 3, 2006; M.C.S., Ord. No. 22882, § 2, adopted Nov. 1, 2007; M.C.S., 23005, § 1, adopted Feb. 21, 2008; M.C.S., Ord. No. 26037, § 1, adopted Sept. 18, 2014. The user's attention is directed to § 26-7.

Sec. 26-10. Reserved.

Editor's note—M.C.S., Ord. No. 28464, § 1, adopted August 20, 2020, repealed § 26-10, which pertained to criteria to be evaluated by NCDAC members and derived from M.C.S., Ord. No. 26933, § 1, adopted June 9, 2016.

Sec. 26-11. National Register Historic Districts.

The National Register Historic District shall encompass areas located within the following boundaries and any National Register Historic Districts created in the future:

CBD. The area bounded by Camp Street, Howard (Andrew Higgins), Convention Center Boulevard, and the Pontchartrain Expressway.

Carrollton. The area bounded by Leake Avenue, the Orleans-Jefferson parish line, Earhart Boulevard, and Lowerline Street.

Uptown. Tchoupitoulas Street from Louisiana Avenue to State Street, State Street to the riverfront railroad tracks, the riverside railroad tracks to Henry Clay Avenue, Henry Clay Avenue to Tchoupitoulas Street, Tchoupitoulas Street to the Audubon Park boundary, the Audubon Park boundary to the riverfront, the riverfront to Lowerline Street, Lowerline Street to South Claiborne Avenue, South Claiborne Avenue to Louisiana Avenue, and Louisiana Avenue to Tchoupitoulas Street.

The Garden District. The area bounded by the lake side of Magazine Street between Josephine Street and Louisiana Avenue, the rear property lines of buildings on the uptown side of Louisiana Avenue, the lakeside of Carondelet Street, and the downtown side of Josephine Street.

Central City. South Claiborne Avenue from Martin Luther King Boulevard to Washington Avenue, Washington Avenue from South Claiborne Avenue to LaSalle Street, LaSalle Street from Washington Avenue to Louisiana Avenue, Louisiana Avenue from LaSalle Street to Carondelet Street, Carondelet Street from Louisiana Avenue to Josephine Street, Josephine Street from Carondelet Street to St. Charles Avenue, the rear property lines of buildings on the riverside of St. Charles Avenue from Josephine Street to the Pontchartrain Expressway, the Pontchartrain Expressway from St. Charles Avenue to Simon Bolivar, Simon Bolivar from the Pontchartrain Expressway to Martin Luther King Boulevard, and Martin Luther King Boulevard from Simon Bolivar to South Claiborne Avenue.

The Lower Garden District. St. Charles Avenue from the Pontchartrain Expressway to St. Andrew Street, the rear property lines of properties on the uptown side of St. Andrew from St. Charles Avenue to Magazine Street, Magazine Street to Jackson Avenue, the rear property lines of buildings on the uptown side of Jackson Avenue from Magazine Street to Tchoupitoulas Street, Tchoupitoulas Street from

Jackson Avenue to Race Street, Race Street from Tchoupitoulas Street to Annunciation Street, Annunciation Street from Race Street to the Pontchartrain Expressway, and the Pontchartrain Expressway from Annunciation Street to St. Charles Avenue.

Mid-City. St. Louis Street to North Claiborne Avenue to North Broad Avenue, North Broad Avenue from St. Louis Street to Conti Street, Conti Street from North Broad Avenue to N. Virginia Street, N. Virginia Street from Conti Street to Rosedale Drive, Rosedale Drive from N. Virginia Street to Conti Street, Conti Street from Rosedale Drive to N. Virginia Street, N. Virginia Street from Conti Street to Bienville Avenue, Bienville Avenue from N. Virginia Street to City Park Avenue, City Park Avenue from Bienville Street to Conti Street, Conti Street from City Park Avenue to Bernadotte Street, Bernadotte Street from Conti Street to Interstate 10, Interstate 10 from Bernadotte Street to Tulane Avenue, Tulane Avenue from Interstate 10 to Cortez Street to Jeff Davis Parkway, Jeff Davis Parkway to Perdido Street, Perdido Street from Jeff Davis Parkway to Galvez Street, Galvez Street from Perdido Street to Tulane Avenue, Tulane Avenue from Perdido Street to South Claiborne Avenue, and South Claiborne Avenue to St. Louis Street.

Parkview. City Park Avenue from Moss Avenue to St. Louis Street, St. Louis Street from City Park Avenue to North Carrollton Avenue, North Carrollton Avenue from St. Louis Street to Toulouse Street, Toulouse from North Carrollton Avenue to North Hagan Street, North Hagan Street from Toulouse Street to Lafitte Street, Lafitte Street from North Hagan Street to North Rocheblave Street, North Rocheblave Street from Lafitte Street to Orleans Avenue, Orleans Avenue from North Rocheblave Street to Moss Avenue, and Moss Avenue from Orleans Avenue to City Park Avenue.

New Marigny. The rear property lines of buildings on the lake side of St. Claude Avenue between St. Bernard Avenue and Press Street, Press Street from St. Claude Avenue to North Tonti Street, North Tonti Street from Press Street to St. Roch Avenue, the rear property lines of buildings on the downtown side of St. Roch Avenue between North Tonti Street and Florida Avenue, Florida Avenue from the rear property lines of buildings on the downtown side of St. Roch Avenue and buildings on the uptown side of St. Roch Avenue, the rear property lines of buildings on the uptown side of St. Roch Avenue between Florida Avenue and North Tonti Street, North Tonti Street from St. Roch Avenue to Interstate 10, Interstate 10 from North Tonti Street to St. Bernard Avenue, and St. Bernard Avenue from Interstate 10 to St. Claude Avenue.

South Lakeview. The area bounded by the Norfolk-Southern Railroad tracks from where they intersect the northbound lane of Canal Boulevard, southward to where they cross Virginia Court between Rosedale Drive and Clayton Street, north on Virginia Court to Clayton Avenue, east on Clayton Avenue to General Diaz Street, north on General Diaz Street to Hidalgo Street, west on Hidalgo Street to Canal Boulevard, and north on Canal Boulevard to the Norfolk-Southern Railroad Bridge.

(M.C.S., Ord. No. 28520, § 1, 10-15-20)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 28520, § 1, adopted Oct. 15, 2020, M.C.S., Ord. No. 28464, § 1, adopted August 20, 2020, repealed § 26-11, which pertained to National Register districts and derived from M.C.S., Ord. No. 20511, § 1, adopted Jan. 3, 2002; M.C.S., Ord. No. 23005, § 1, adopted Feb. 21, 2008.

Sec. 26-12. Approval of demolitions of public housing.

New permits for demolition, issued after the effective date of this section, for existing structures used at any time during their existence for the purpose of providing public housing for the citizens of New Orleans, shall be issued only

after a city council motion has been passed authorizing such a demolition permit to be issued.

Public housing, as used in this section, is housing under the management and control of the Housing Authority of New Orleans and/or the Department of Housing and Urban Development.
(M.C.S., Ord. No. 23005, § 1, 2-21-08)

Sec. 26-13. Excavation within the Agriculture landfill site.

(a) The requirements of this section shall be applicable to the Agriculture Street landfill site located in Orleans Parish, City of New Orleans. The approximately 95-acre site is bounded by Higgins Boulevard on the north, the above-grade railroad rights-of-way on the south and west, and the cul-de-sac at the southern end of Clouet Street, near the railroad tracks, to Higgins Boulevard between Press and Montegut streets on the east.

(b) Upon application for an excavation permit within the boundaries of the Agriculture Street landfill site, the department of safety and permits shall provide the applicant with a copy of the Protocol on Post-Removal Maintenance for Property Owners. Owners or lessees of land within the Agriculture Street landfill site who seek to excavate soil to a depth of greater than 18 inches shall provide notice to the department of safety and permits and shall first apply for an excavation permit certifying in such excavation permit application their intent to excavate and to comply with the U.S. Environmental Protection Agency's Protocol on Post-Removal Maintenance for Property Owners for the handling of contaminated soils and repair of the soil/geotextile mat. In not less than three days after applying for an excavation permit, an excavation permit may be issued to the applicant. No fees shall be charged for residential properties in connection with obtaining an excavation permit.
(M.C.S., Ord. No. 22893, § 1, 11-15-07; M.C.S., Ord. No. 23005, § 1, 2-21-08)

Sec. 26-14. International Building Code—Adopted.

(a) *Code adopted.* The building code of the city be and the same is hereby amended in its entirety and reordained to read as set forth in the International Building Code, 2021 Edition, except that the text of said document shall read as modified by the amendments set forth in section 26-15. In the event of conflict these amendments shall supersede and take priority over any amended or unamended section. If an amendment is in conflict with only part of a section, it shall be construed as superseding only the part of the section with which it is in conflict.

(b) *City not liable.* Nothing contained in this building code shall be construed to relieve or lessen the responsibility or liability of any person for injury or damage to persons or property caused by or resulting from any defects of any nature in any work performed by said person or in any equipment owned, controlled, installed, operated or used by him, nor shall the city or any officer, agent or employee thereof incur, or be held to assume, any liability by reason or in consequence of any permit, permission, certificate of inspection of [or] approval authorized therein, or issued or given as herein provided, or by any reason of or in consequence of any things done or acts performed pursuant to any provisions of this building code.

(c) *Prior violations.* All suits at law or in equity and all prosecutions resulting from the violation of any building ordinances heretofore in effect, which are now pending in any of the courts of this state, or of the United States, shall not be abated or abandoned by reason of the adoption of this building code, but shall be prosecuted to their finality the same as if this building code has not been adopted; and nothing in this building code shall be so construed as to abandon, abate, or dismiss any litigation or prosecution now pending, or which may have heretofore been instituted or prosecuted.

(d) *Retroactive clause.* In the case of violations of building ordinances committed before the effective date of this ordinance, the building ordinance existing at the time such violations were committed shall apply and govern.

(e) *Legal effect.* The requirements imposed by this building code shall be in addition to any other requirements imposed by other any other

applicable law. The more restrictive requirements shall supersede the less restrictive requirements.
(M.C.S., Ord. No. 22938, §§ 1—4, 12-20-07; M.C.S., Ord. No. 25921, § 1, 6-19-14; M.C.S., Ord. No. 27441, § 1, 6-15-17; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-15. Same—Amendments.

That the following provisions of the International Building Code, 2021 Edition, shall be deleted in their entirety and the following shall be substituted in lieu thereof:

CHAPTER 1
SCOPE AND ADMINISTRATION

SECTION 101 - GENERAL

101.1 Title. These regulations shall be known as the Building Code of The City of New Orleans, Louisiana, hereinafter referred to as "this code".

101.1.1 Definitions. Except as expressly provided in this code, the following terms and their variant forms shall mean the following:

1. *Department* means the Department of Safety and Permits.
2. *Director* means the Director of the Department of Safety and Permits.
3. *IBC* means the current version of the International Building Code as published by the International Code Council.
4. *IRC* means the current version of the International Residential Code as published by the International Code Council.

101.2 Scope. The provisions of the International Building Code shall apply to the construction, alteration, relocation, enlargement, replacement, repair, equipment, use and occupancy, location, maintenance, removal and demolition of every building or structure or any appurtenances connected or attached to such buildings or structures.

Exceptions. Detached one-and two- family dwellings and multiple single-family dwellings (townhouses) not more than three stories a grade plane in height with a separate means of egress and their accessory structures shall comply with the International Residential Code. (See Chapter 35, this Code.) Appendix "J" of the International Residential Code is hereby adopted.

101.2.1 Appendices. Provisions in the appendices shall not apply unless specifically adopted.

101.3 Intent. The purpose of this code is to establish the minimum requirements to provide a reasonable level safety to protect the public health and general welfare through structural strength, means of egress facilities, stability, sanitation, adequate light and ventilation, energy conservation, and safety to life and property from fire and other hazards attributed to the built environment and to provide reasonable level of safety to fire fighters and emergency responders during emergency operations.

101.3.1 Quality Control. Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein.

101.3.2 Permitting and Inspection. The inspection or permitting of any building or plan by the City of New Orleans, under the requirement of this Code shall not be construed in any court as a warranty of the physical condition of such building or the adequacy of such plan. Neither the City of New Orleans nor any employee thereof shall be liable in tort for damages for any defect or hazardous or illegal condition or inadequacy in such building or plan, or for any failure of any component of such building, which may occur subsequent to such inspection or permitting.

101.4 Referenced Codes. The other codes listed in Sections 101.4.1 through 101.4.6 and referenced elsewhere in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference.

101.4.1 Electrical. The provisions of the Chapter 27 of this Code shall apply to the installation

of electrical systems, including alterations, repairs, replacement, equipment, appliances, fixtures, fittings and appurtenances thereto.

101.4.2 Gas. The provisions of the International Fuel Gas Code shall apply to the installation of gas piping from the point of delivery, gas appliances and related accessories as covered in this code. These requirements apply to gas piping systems extending from the point of delivery to the inlet connections of appliances and the installation and operation of residential and commercial gas appliances and related accessories.

101.4.3 Mechanical. The provisions of the International Mechanical Code shall apply to the installation, alterations, repairs, and replacement of mechanical systems, including equipment, appliances, fixtures, fittings and/or appurtenances, including ventilating, heating, cooling, air conditioning and refrigeration systems, incinerators, and other energy-related systems.

101.4.4 Plumbing. The provisions of the International Plumbing Code shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, appurtenances, and where connected to a water or sewerage system and all aspects of a medical gas system.

101.4.5 Fire Prevention. The provisions of the International Fire Code shall apply to matters affecting or relating to structures, processes and premises from the hazard of fire and explosion arising from the storage, handling or use of structures, materials or devices; from conditions hazardous to life, property or public welfare in the occupancy of structures or premises; and from the construction, extension, repair, alteration or removal of fire suppression automatic sprinkler systems and alarm systems or fire hazards in the structure or on the premises from occupancy or operation.

101.4.6 Energy. The provisions of the International Energy Conservation Code shall apply to all matters governing the design and construction of buildings for energy efficiency. These provisions are not applicable in areas where state mandated energy requirements are in effect.

101.4.7 Existing Buildings. The provisions of the International Existing Building Code shall apply to matters governing the repair, alteration, change of occupancy, addition to and relocation of existing buildings.

SECTION 102 - APPLICABILITY

102.1 General. Where there is a conflict between a general requirement and a specific requirement, the specific requirement, shall be applicable. Where, in any specific case, different sections of this code specify different materials methods of construction or other requirements, the most restrictive shall govern.

102.2 Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state or federal law.

102.3 Application of References. References to chapter or section numbers, or to provisions not specifically identified by number, shall be construed to refer to such chapter, section or provision of this code.

102.4 Referenced Codes and Standards. The codes and standards referenced in this code shall be considered part of the requirements of this code to the prescribed extent of each such reference and as further regulated in Sections 102.4.1 and 102.4.2.

(A) 102.4.1 Conflicts. Where conflicts occur between provisions of this code and referenced codes and standards, the provisions of this code shall apply.

(A) 102.4.2 Provisions in referenced code and standards. Where the extent of the reference to a referenced code or standard includes subject matter that is within the scope of this code or the International Codes listed in Section 101.4, the provisions of this code or the International Codes listed in Section 101.4, as applicable, shall take precedence over the provisions in the referenced code or standard.

102.5 Partial Invalidity. In the event that any part or provision of this code is held to be

illegal or void, this shall not have the effect of making void or illegal any of the other parts or provisions.

102.6 Existing Structures. The legal occupancy of any structure existing on the date of adoption of this code shall be permitted to continue without change, except as is specifically covered in this code, the International Existing Building Code or the International Fire Code or as is deemed necessary by the Director for the general safety and welfare of the occupants and the public.

102.7 Encroachments. The owner of any building or structure with encroachments in/above/on/under the city's public rights-of-way is wholly responsible for the proper maintenance and use thereof and shall defend, indemnify, and hold harmless the city from all actions, claims, costs, damages and expense to which the city may be subjected by reason of any injury or alleged injury to any person or property resulting or alleged to result from such encroachments. The owner shall pay all sums so recovered against the city in any suit on account of such alleged injuries to which the city may be made a party, together with all such costs, damages and expenses as may be suffered by the city, all in a manner as to hold the city harmless from all such actions or claims. For purposes of this section encroachments are privately-owned structures or infrastructure (or a component part of the structure or infrastructure), that occupies the space on/over/under/into the public right-of-way and are effectively permanently-attached to the structure on the adjacent legal lot of record. Examples of these encroachments include but are not limited to: balconies, galleries, roof overhang, and steps.

SECTION 103 - DEPARTMENT OF SAFETY AND PERMITS

103.1 General. The Department of Safety and Permits headed by the Director is the agency responsible for administration and enforcement of this code. The Director has the authority to render interpretations of this code and to adopt policies and procedures in order to clarify the application of its provisions, as well as rules and regulations pursuant to Section 2-1000 of the Code of the City of New Orleans. The interpretations, policies, procedures, rules, and regulations shall be in compliance with the intent of this code. The policies, procedures, rules, and regulations shall not have the effect of waiving requirements specifically provided for in this code.

103.2 Applications and Permits. The Director shall receive applications, review construction documents and issue permits for the erection, and alteration, demolition and moving of building and structures, inspect the premises for which such permits have been issued and enforce compliance with the provisions of this code.

103.2.1 Determination of substantially improved or substantially damaged existing buildings and structures in flood hazard areas. For applications for reconstruction, rehabilitation, repair, alteration, addition or other improvement of existing buildings or structures located in flood hazard areas, the Director shall determine if the proposed work constitutes substantial improvement or repair of substantial damage. Where the Director determines that the proposed work constitutes substantial improvement or repair of substantial damage, and where required by this code, the Director shall require the building to meet the requirements of Section 1612 of this code and Chapter 78 of the Code of the City of New Orleans.

103.3 Notices and Orders. The Director shall issue all necessary notices or orders to ensure compliance with this code.

103.4 Inspections. The Director shall make the required inspections, or the Director shall have the authority to accept reports of inspection by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The Director is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise.

103.5 Identification. The Director and employees of the Department of Safety and Permits shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

103.6 Right of Entry. Where it is necessary to make an inspection to enforce the provisions of this code, or where the Director has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous or hazardous, the Director is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this code, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the Director shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Director shall have recourse to the remedies provided by law to secure entry.

103.7 Department records. The Director shall keep official records of applications received, permits and certificates issued, fees collected, reports of inspections, and notices and order issued. Such records shall be retained in accordance with the public record law of the State of Louisiana.

103.8 Liability. The Director, members of the Board of Building Standards and Appeals or employees charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be civilly rendered liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against an officer or employee because of an act performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be defended by legal representative of the jurisdiction until the final termination of the proceedings. The Director or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this code.

103.9 Approved Materials and Equipment. Materials, equipment and devices approved by the Director shall be constructed and installed in accordance with such approval.

103.9.1 Used Materials and Equipment. The use of used materials which meet the requirements of this code for new materials is permitted. Used equipment and devices shall not be reused unless approved by the Director.

103.10 Modifications. Wherever there are practical difficulties involved in carrying out the provisions of this code, the Director shall have the authority to grant modifications for individual cases, upon application of the owner or owner's representative, provided the Director shall first find that special individual reason makes the strict letter of this code impractical and the modification is in compliance with the intent and purpose of this code and that such modification does not lessen health, accessibility, life and fire safety, or structural requirements. The details of action granting modifications shall be recorded and entered in the files of the department of Safety and Permits.

103.10.1 Flood hazard areas. The Director shall not grant modifications to any provision required in flood hazard areas as established by Section 1612.3 unless a determination has been made that:

1. A showing of good and sufficient cause that the unique characteristics of the size, configuration or topography of the site render the elevation standards of Section 1612 inappropriate.
2. A determination that failure to grant of the variance would result in exceptional hardship by rendering the lot undevelopable.
3. A determination that the granting of a variance will not result in

increased flood heights, additional threats to public safety, extraordinary public expense, cause fraud on or victimization of the public, or conflict with existing laws or ordinances.

4. A determination that the variance is the minimum necessary to afford relief, considering the flood hazard.

Submission to the applicant of written notice specifying the difference between the design flood elevation and the elevation to which the building is to be built, stating that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced floor elevation, and stating that construction below the design flood elevation increases risks to life and property.

103.11 Alternative Materials, Design and Methods of Construction and Equipment. The provisions of this code are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this code, provided that any such alternative has been approved. An alternative material, design or method of construction shall be approved where the Director finds that the proposed design is satisfactory and complies with the intent of the provisions of this code, and that the materials, method or work offered is, for the purpose intended, at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability and safety.

103.11.1 Research Reports. Supporting data where necessary to assist in the approval of materials or assemblies not specifically provided for in this code shall consist of valid research reports from approved sources. Product Evaluation Reports, as listed by ICC-ES, could be used to consider alternate materials or methods for acceptance and shall be referenced on the plans submittal package submitted for obtaining the permit.

103.11.2 Tests. Whenever there is insufficient evidence of compliance with the provisions of this code, or evidence that a material or method does not conform to the requirements of this code, or in order to substantiate claims for alternative materials or methods, the Director shall have the authority to require tests as evidence of compliance to be made at no expense to the jurisdiction. Test methods shall be as specified in this code or by other recognized test standards. In the absence of recognized and accepted test methods, the Director shall approve the testing procedures. Tests shall be performed by an approved agency. Reports of such tests shall be retained by the Director for the period required for retention of public records.

103.11.3 Requirements Not Covered by Code. Any requirements necessary for the strength or stability of an existing or proposed building or structure, or for the public safety, health and general welfare, not specifically covered by this Code, shall be determined by the Director.

103.12 Employees. The Director shall appoint all employees of the Department of Safety and permits subject to the existing Civil Service Laws of the State of Louisiana and the City of New Orleans. The person or persons appointed shall be persons fully qualified by technical training and experience, in both theory and practice, in the field in which their services will be utilized.

103.13 Construction or Demolishing Privileges. Materials or equipment for use in connection with the construction, demolishing, repair or maintenance of a building shall not be placed upon any portion of public-right-of-way (street or sidewalk), adjacent to the building or otherwise, without a permit issued by the Director of Department of Public Works. (See Chapter 33 of this Code, "Safeguards during Construction" for additional information.)

103.13.1 Any person having the use as described herein of any portion of the street or sidewalk shall cause red lights to be placed and maintained in a conspicuous place in front of all obstructions from sunset to sunrise each night, during the time such obstructions remain on the street or sidewalk and, further, shall cause barricades to be placed and maintained

in a conspicuous place in front of all obstructions twenty-four (24) hours a day. Said person shall agree to indemnify and hold harmless the City of New Orleans, its officials, agents and employees from and against all claims, suits, liabilities, damages, losses and expenses, including, but not limited to, costs, attorney's fees and interest, for all injuries to persons, and for all damage to the property of the City or others, caused by or resulting from failure to properly light and guard the obstruction or caused by or resulting from the negligence of himself, his employers or his agents, in connection with said use of the street or sidewalk, and further, said person shall indemnify and hold harmless the City of New Orleans, its officials, agents and employees from and against all claims of strict liability brought against the City in connection with injury against all persons or property occurring in connection with said use of the street or sidewalk.

103.13.2 All surface and subsurface media taken from excavations and construction/demolition debris or rubbish taken from buildings shall not be stored upon the sidewalks or streets, but shall be removed daily as rapidly as accumulated. Media, debris, and/or rubbish not removed from the site daily must be stored in a refuse container or other device to prevent said materials from becoming a public nuisance; in the case of demolition of a building or structure, removal or storage of debris must commence within seventy-two (72) hours of completion of the demolition. The Director may grant additional time for proper removal or storage of said materials upon good cause shown. In cases where materials are dry and likely to produced dust when handled, dust suppression measures (including, but not limited to, keeping said materials damp or covered) shall be utilized to prevent airborne particulate pollution to adjacent and surrounding property. All materials shall be handled in full compliance with applicable Federal and State guidelines (EPA, LDEQ, etc.), including placement of silt fencing barriers, or comparable devices, around any portions of a site which may result in media, debris, and/or rubbish entering the storm water system. Debris or rubbish created on upper floors shall be lowered by elevator in closed receptacles or by closed chutes discharging directly to containers or trucks. Failure to comply with the requirements contained herein shall be a violation of this Code.

103.13.3 Any temporary structures used by a builder shall be removed upon completion of the work. The street and sidewalk shall be cleared of all materials as soon as the use of the street for storage is no longer required.

103.13.4 In consideration of the foregoing permission to use streets and sidewalks for the piling and storing of materials and tools, or the use of equipment, the owner of the building shall be obligated in the event that any of the street or sidewalk pavements or the surface of the paved streets be damaged by the piling or storing of materials, tools, or the use of equipment. The owner shall restore the same within 30 days after completion and acceptance of building to the original condition in which they were before materials or tools were piled or stored thereon, or before the use of equipment.

103.13.5 In every building of reinforced concrete construction, forms of combustible materials shall be stripped from the concrete and removed from the building as soon as practicable.

103.14 Demolition Requirement. When drawings and detail statements are filed with the Director for the construction of a new building, if any existing building or part of an existing building is to be demolished, such facts shall be stated in the statement so filed. In demolishing a building, story after story shall be completely removed. No material shall be placed upon the floor of such building in the course of demolishing, but brick, timbers and other structural parts of each story shall be lowered to the ground immediately upon displacement. The owner, architect, Builder or contractor for a structure to be demolished, shall give not less than a twenty-four (24) hour notice in writing to the Director of such intended demolition. The material being removed shall be properly wetted down to lay the dust incident to its removal. Immediately following the displacement or demolition of

plaster, masonry, concrete, and other dust-raising materials, they shall again be thoroughly hosed down to insure against dust or other objectionable features before further removal or disturbance. Public ways and Drainage Systems shall be protected from contamination. All remaining exposed walls of adjoining buildings must be left perfectly safe, and all proper safeguards for the public shall be taken. Any surface holes or irregularities, wells, septic or underground storage tanks, basements, cellars, sidewalk vaults, or coal chutes remaining after demolition of any building or structure shall be filled with material as approved by the Director, and shall be graded in such a manner as to provide effective surface drainage. In demolishing buildings, covered walkways in accordance with the requirements of Chapter 33 may be required when, in the opinion of the Director, such walkways are necessary for public safety.

103.14.1 All demolition contracts for properties to be demolished in which the city is a party shall contain language to mandate that demolition contractors recycle all salvageable construction materials from such demolition projects and to prohibit such contractors from depositing any salvageable construction materials in any landfills or from otherwise disposing of such materials. Salvageable construction materials shall include but are not be limited to wooden door frames, wooden window frames, brackets, doors, windows, any decorative millwork, structural lumber, bricks, cinder blocks, ironwork, baseboards, roofing slate, tile, shingles floorboards, glasswork, gable ends and shutters, weather boards, cabinets, bathtubs, plumbing and wiring.

103.14.2 Removal of Debris. Removal from a site of any debris or rubbish resulting from a fire and/or any attendant demolition of a building or structure must commence within seventy-two (72) hours of the fire. It is the duty of the property owner or his/her agent to remove or cause to be removed from the sidewalk, street, and property all such debris within six (6) days after notice is by the Director. All non-regulated or non-contaminated materials generated by site work shall be deposited, at a minimum, in a permitted Type III construction and demolition debris and wood waste landfill.

103.14.3 Moving of Buildings. No building or part of any building shall be moved or relocated within the City limits without first obtaining permission from the proper City authorities. See Chapter 26 of the New Orleans City Code for additional requirements.

103.14.4 State Laws. Laws of the State of Louisiana regulating the protection of workmen, and the public, in construction shall be deemed a part of this Code.

103.14.5 Penalties. Any person, firm or corporation who shall be the owner of any such building or buildings, or parts thereof, chimneys, staging, or other structure which has become dangerous or unsafe, and a menace to life and limb, and who shall fail, neglect or refuse to comply with the orders of the Director within the time hereinbefore specified, shall be deemed and held guilty of a violation of this Code. Each day that the said person, firm or corporation remains in violation, shall constitute a separate violation; and the fact that the Director may cause said building, buildings or parts thereof, chimneys, staging or other structure to be demolished at the expense of the person, firm or corporation owning the same, shall not preclude the Director from preferring charges against the person, firm or corporation who shall fail, neglect or refuse to comply with the orders of the Director.

SECTION 104 - UNSAFE BUILDINGS, STRUCTURES, INSTALLATION AND MACHINERY

104.1 Definitions. For purposes of this section, the following definition shall apply.

104.2 Public Nuisance. A building or structure is deemed to be a public nuisance if by reason of the condition in which it is permitted to be or remain, it may endanger the health, life, limb, or property of a person, or cause any

hurt, harm, damages, injury or loss to a person or persons in one or more of the following circumstances.

1. By reasons of being dilapidated, decayed, rodent or insect infested unsafe or unsanitary is detrimental to health, morals, safety, public welfare, and the well-being of the community, endangers life or property or is conducive to ill health, delinquency and crime.
2. By reason of being a fire hazard.
3. By reason of the conditions which require its continued vacancy, the public nuisance, and its surrounding grounds are not reasonably or adequately maintained thereby causing deterioration and creating a blighting influence or condition on nearby properties and thereby depreciating the value, use and enjoyment to an extent that it is harmful to the public health, welfare, morals, safety and the economic stability of the area, community, or neighborhood in which such a public nuisance is located. A vacant structure that is not secured against entry shall be deemed unsafe.

104.3 Unsafe Mechanical or Electrical Installations. Any premises, building or buildings, part or parts of a building, mechanical or electrical installations and equipment, chimneys, staging or other structure that from any cause may now be or shall at any time hereafter become dangerous or unsafe, shall be taken down and removed, or made safe.

104.4 Menace to Public Safety. The Director shall determine as a matter of fact whether or not said public nuisance is in imminent danger of collapse and constitutes a menace to the public's health, safety or welfare.

104.5 Imminent Danger. If the Director determines that the public nuisance is in imminent danger of collapse, and constitutes a menace, he shall have the authority to cause the demolition of said nuisance by a municipal department or private company without previous notice to the owner, executor, administrator, agent, lessee, or any person or persons who may have a vested or contingent interest in said nuisance. Prior to causing the demolition, a photograph of the public nuisance in imminent danger of collapse shall be taken.

104.6 Public Nuisance. If the Director or his duly authorized representative determines that said public nuisance is not in imminent danger of collapse, but is a nuisance, as defined in Section 104.2 of this code, the following procedure shall be followed:

1. A determination shall be made by the Director or his representative whether the nuisance must be removed or repaired. If the nuisance is in the Vieux Carré District, the Director or his representative shall obtain the written recommendations of the Vieux Carré Commission before complying with Section (d) below. If the nuisance is located in an historic district established or adopted by the City Council or is a structure or portion thereof, designated as a landmark by the appropriate commission, the Director shall obtain the written recommendation of the Historic District Landmarks Commission having jurisdiction over the nuisance or area of work.
2. The Director shall give notice as provided in Section 104.11. Said notice shall direct the person or person notified to certify to the director within three days from the time of notification of his or their assent or refusal to repair or remove same.
3. If the person or persons so notified assents with the requirements of Section 104.6 above, permits shall be secured and the work shall be initiated within ten (10) days of the notice and performed as expeditiously as possible and shall be continuously prosecuted until completed to the satisfaction of the Director or his representative.

4. If the person or persons fails to certify to the director within three days from the time of notification of his or their assent, or refuses to comply with the Director's notice and order to repair or demolish the nuisance in question, shall empower the Director to seek relief:
    a. By requesting the City Attorney file charges in the Municipal Court of the City of New Orleans; and/or
    b. By requesting a public hearing before the City Council of the City of New Orleans so an owner(s) can show cause why said nuisance should not be demolished. Any owner shall be given reasonable advanced notice of the date and time of the City Council public hearing; and/or
    c. By seeking relief through Civil District Court or another Court of competent jurisdiction; and/or
    d. Via administrative adjudication as provided in Chapter 6 of the Code of the City of New Orleans.
5. Any person who fails to appear or who does not receive a continuance from the City Council, a Court of competent jurisdiction, or an administrative hearing officer shall be deemed in violation of this Code and the demolition hearing shall proceed without further notice.

104.7 Demolition of Nuisance. Upon a determination of the City Council, a Court of competent jurisdiction, or an administrative hearing officer that the nuisance should be demolished or, in the case of imminent danger as in Section 104.5, the Director shall employ such labor, furnish such materials and take such steps as in his judgment may be necessary to demolish said nuisance.

104.8 Bids for Demolition of Nuisance. The Director shall then proceed to effect the said demolition by advertising for bids through the City Purchasing Bureau, which bids shall be submitted to the Council for acceptance or rejection and final disposition. The City may do the work of demolition itself, or through the use of its own employees. The service of another governmental entity shall be employed in accordance with an intergovernmental agreement approved and executed as a written contract.

104.9 Lien and Privilege. Any and all expenses and costs incurred by the City of New Orleans in the enforcement of Section 104 shall be borne by the person or persons owning the public nuisance and shall constitute a lien and privilege and shall be due and collectible as provided by law.

104.10 Legal Action. The fact that the City may cause said premises, building, buildings, or parts thereof, chimneys, staging or other structure to be demolished or repaired at the expense of the person, firm or corporation owning the same, shall not preclude the Director from taking legal action in a court of competent jurisdiction against the person, firm or corporation who shall fail, neglect or refuse to comply with the orders of the Director and the violation or disregard of such orders shall be considered a violation of this Code.

104.11 Notice to Owners. For purposes of this Ordinance, notice is required to be given to the owner(s) of the nuisance. Notice shall be personally served or sent via regular and certified or registered U.S. mail at the address listed in the assessor's office of the parish. The date of postmark shall be deemed to be the date of delivery. Any notification so sent and returned by the U.S. Post Office shall be considered as having fulfilled the notification requirement. A copy of the notice shall also be affixed in a prominent location on or near the nuisance property.

104.12 Discontinue Utilities. The Director shall have authority to request discontinuance of service of the utility companies when seeking relief as provided in Section 104.6. The Director shall have the authority to request

discontinuance of service of the utility companies whenever a nuisance as provided in this Section constitutes an emergency that immediately threatens the health, safety and welfare of the public.

SECTION 105 - PERMITS

105.1 Required. Any owner or authorized agent who intends to construct, enlarge, alter, repair, move, demolish, or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas or mechanical system, the installation of which is regulated by this code, or to cause any such work to be done, shall first make application to the Director and obtain the required permit.

105.1.1 Annual Permit. In lieu of an individual permit for each alteration to an already approved electrical, gas, or mechanical installation, the Director is authorized to issue an annual permit upon application therefor to any person, firm or corporation regularly employing one or more qualified trade persons in the building, structure or on the premise owned or operated by the applicant for the permit.

105.1.2 Annual Permit Records. The person to whom an annual permit is issued shall keep a detailed record of alterations made under such annual permit. The Director shall have access to such records at all times or such records shall be filed with the official as designated.

105.2 Work Exempt from Permit. Exemptions from permit requirements of this Code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this Code or any other laws or ordinances of the City of New Orleans including Vieux Carré Commission and Historic District Landmarks Commission requirements. A building permit shall not be required for the following, unless in the opinion of the Director it involves hazardous or complex conditions which require permitting and inspection:

1. Less than 50% per exterior wall removal and replacement of deteriorated weather boards, aluminum, or vinyl siding. (Note: Sheathing replacement is not exempt from permitting requirements removal and replacement of deteriorated weather boards, aluminum, or vinyl siding. Plywood sheathing is considered to be a structural material for a structural permit, other materials that are used as a substrate for finishes are not considered structural).
2. Removal and replacement of deteriorated floorboards.
3. Removal and replacement of unenclosed and uncovered deteriorated porches and steps that are five feet or less in height above grade - front and rear and sides, when not in conflict with the Comprehensive Zoning Ordinance. Roofs over otherwise unenclosed porches along with their framing is not exempt from permitting.
4. Interior painting, papering and similar finish work.
5. Paving of yard when in compliance with the Comprehensive Zoning Ordinance.
6. Retaining walls which are not over three ft. in height.
7. Exterior painting when not requiring protective scaffolding over public property or lead-based paint removal.
8. Repairs to stucco when not requiring protective scaffolding over public property.
9. Replacement of less than 50% of the roofing and/or gutter work with respect to one and two family dwellings.
10. Fences up to seven ft. in height, when in compliance with the Comprehensive Zoning Ordinance.
11. Masonry walls up to three ft. in height from grade or structure, when

used as a fence and when in compliance with the Comprehensive Zoning Ordinance.

12. Swings and other playground equipment accessory to detached one- and two-family dwellings.
13. Tents with an area less than 150 sq. ft. and not located in a Fire District, pursuant to Section 425 of this code and Section 3103 of the International Fire Code.
14. Uncovered decks, when part of a residential use, that do not exceed 200 sq. ft. in area and thirty in. high from grade at any point, that are not attached to a dwelling unit, and that do not serve as an exit door.
15. Replacement of cabinets and countertops when it does not also include replacement of plumbing fixtures or any fixed equipment.

The above exemptions supersede the exemptions listed in the unamended Code and are in addition to any works listed as exempt in the IRC or IBC, unless deemed applicable by the Department of Safety and Permits.

Exemption from permit requirements does not imply that these items are exempt from code requirements and still may require permitting from the HDLC or VCC.

Electrical: Repairs and Maintenance: Minor repair work, including the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles.

Radio and Television Transmitting Stations: The provisions of this code shall not apply to electrical equipment used for radio and television transmissions but do apply to equipment and wiring for power supply, and the installations of towers and antennas.

Temporary Testing Systems: A permit shall not be required for the installation of any temporary system required for the testing or servicing of electrical equipment or apparatus.

Gas:

1. Portable heating appliance.
2. Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe.

Mechanical:

1. Portable heating appliance.
2. Portable ventilation equipment.
3. Portable cooling unit.
4. Steam, hot or chilled water piping within any heating or cooling equipment regulated by this code.
5. Replacement of any part which does not alter its approval or make it unsafe.
6. Portable evaporative cooler.
7. Self-contained refrigeration system containing 10 pounds (5 kg) or less of refrigerant and actuated by motors of 1 horsepower (746 W) or less.

105.2.1 Emergency Repairs. Where equipment replacements and repairs must be performed in an emergency situation, the permit application shall be submitted within the next working business day to the Director.

105.2.2 Repairs. Application or notice to the Director is not required for ordinary repairs to structures, replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles. Such repairs shall not include the cutting away of any wall, partition or portion thereof, the removal or cutting of any structural beam or load bearing support, or the removal or change of any required means of egress, or rearrangement of parts of a structure affecting the egress requirements; nor shall ordinary repairs include addition to, alteration of, replacement or relocation of any standpipe, water supply, sewer, drainage, drain leader, gas, soil, waste, vent or similar piping, electric wiring or mechanical or other work affecting public health or general safety.

105.2.3 Public Service Agencies. A permit shall not be required for the installation, alteration or repair of generation, transmission, distribution or metering or other related equipment that is under the ownership and control of public service agencies by established right.

105.3 Application for Permit. To obtain a permit, the applicant shall first file an application therefor in writing on a form furnished by the department of Safety and Permit for that purpose. Such application shall:

1. Identify and describe the work to be covered by the permit for which application is made.
2. Adequately describe the land on which the proposed work is to be done (legal description, street address or similar description that will readily identify and definitely locate the proposed building or work).
3. Provide the address of the owner, if different from the land on which the proposed work is to be done.
4. Indicate the use and occupancy for which the proposed work is intended.
5. Be accompanied by construction documents and other information as required in Section 107.
6. State the fair-market valuation of the proposed work.
7. Be signed by the applicant, or the applicant's authorized agent.
8. Give such other data and information as required by the Director.

105.3.1 Action on Application. The Director shall conduct an initial review of an application for a permits and amendments thereto within 15 business days after filing. If the application is for a structural renovation, elevation, or new construction permit, the Director may extend the initial review period up to an additional 15 days, provided that the Director notifies the applicant in writing prior to the expiration of the initial review period and identifies in such notice which aspects of the proposed work require the extended review period. If the application or the construction documents do not conform to the requirements of pertinent laws, the Director shall reject such application in writing, stating the reasons therefor. If the Director is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the Director shall issue a permit therefor as soon as practicable.

105.3.1.1 Action on Application by Other Departments. When an application for a permit requires review by any department or agency other than the Department of Safety and Permits, including, but not limited to, the Sewerage and Water Board and Department of Public Works, "except for the City Planning Commission, Historic District Landmarks Commission, Central Business District Landmarks Commission, and Vieux Carre Commission," and such review is not complete within 15 days of the filing of the application, the Director shall not delay issuance of a permit under this code but shall identify on the permit the other department or agency approval required but not received at the time of issuance.

Notwithstanding the foregoing, the applicant shall not proceed with any part of the proposed work that is dependent on final approval of the other department or agency until such approval is provided.

105.3.2 Time Limitation of Application. An application for a permit for any proposed work shall be deemed to have been abandoned 180 days after the date of filing, unless such application has been pursued in good faith or a permit has been issued; except that the Director is authorized to grant one or more extensions of time for additional periods not exceeding 180 days each. The extension shall be requested in writing and justifiable cause demonstrated.

105.4 Validity of Permit. The issuance or granting of a permit shall not be construed to be a permit for, or an approval of, any violation of any of the provisions of this code, the Comprehensive Zoning Ordinance, or any other ordinance of the City of New Orleans. Permits presuming to give authority to violate or

cancel the provisions of this code or other ordinances of the jurisdiction shall not be valid. The issuance of a permit based on construction documents and other data shall not prevent the Director from requiring the correction of errors in the construction documents and other data. The Director is also authorized to prevent occupancy or use of a structure where in violation of this code or of any other ordinances of this jurisdiction.

105.5 Expiration. A permit becomes invalid unless the work authorized by the permit is commenced within 180 days after its issuance, or if the work authorized on the permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The Director is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated.

105.6 Suspension or Revocation. The Director is authorized to suspend or revoke a permit issued under the provisions of this code wherever the permit is issued in error or on the basis of incorrect, inaccurate or any false statement or misrepresentation, or in violation of any ordinance or regulation or any of the provisions of this code.

105.7 Placement of Permit. The building permit or copy shall be displayed on the site of the work until the completion of the project.

SECTION 106 - FLOOR AND ROOF DESIGN LOADS

106.1 Live loads posted. Where the live loads for which each floor or portion thereof of a commercial or industrial building is or has been designed to exceed 50 psf (2.40 kN/m2), such design live loads shall be conspicuously posted by the owner in that part of each story in which they apply, using durable signs. It shall be unlawful to remove or deface such notices.

106.2 Issuance of certificate of occupancy. A certificate of occupancy required by Section 111 shall not be issued until the floor load signs, required by Section 106.1, have been installed.

106.3 Restrictions on loadings. It shall be unlawful to place, or cause or permit to be placed, on any floor or roof of a building, structure or portion thereof, a load greater than is permitted by this code.

SECTION 107 - SUBMITTAL DOCUMENTS

107.1 General. Submittal documents consisting of construction documents, statement of special inspections, geotechnical report and other data shall be submitted in two or more sets with each permit application. Submittal construction documents shall be prepared by or under the direct supervision of a Louisiana Registered Architect or a Louisiana Registered Civil Engineer, within the purview of the State of Louisiana licensing law provisions and said construction documents shall be imprinted with his/her seal designating him/her as the professional of record. Construction documents involving mechanical, gas and electrical installations except as follows, shall be prepared by or under the direct supervision of a Louisiana Registered Mechanical or Electrical Engineer, as applicable, or by a Louisiana Registered Architect as permitted by Louisiana state law, within the purview of the State of Louisiana licensing law provisions, and said drawings and specifications shall be imprinted with his/her seal designating, him/her as the professional of record and further, said drawings are to be submitted at the time of application for building permits. Where special conditions exist, the Director is authorized to require additional construction documents to be prepared by a registered design professional. The Director may waive the requirements of construction documents, if he/she finds that the nature of the work applied for is such that construction documents are not necessary to obtain compliance with the adopted codes.

Exceptions:

1. The submission of construction documents involving mechanical, gas and electrical installations is not neces-

sary when the electrical work does not exceed $35,000 or when the mechanical work does not exceed $35,000, in the opinion of the Director.

2. The submission of construction documents involving mechanical, gas and electrical installations is not necessary for the construction and or the repair work for one and two family dwellings.

3. The submission of construction documents for accessory structures up to 200 sq. ft. in area and up to 30 in. high from grade.

4. The submission of construction documents for uncovered decks up to 600 sq. ft. in area and up to 30 in. high from grade.

The Director may also waive the submission of construction documents if he/she finds that the nature of the work applied for is such that reviewing of construction is not necessary to obtain compliance with this Code. Where there are unusual conditions because of type of occupancy or type of construction, the Director may depart from the limitations set forth above and require submission of construction documents.

107.2 Construction documents. Construction documents shall be in accordance with Section 107.2.1 through 107.2.5.

107.2.1 Information on construction documents. Construction documents shall be dimensioned and drawn upon suitable material. Submission via electronic media is required for all applications for permit. Construction documents shall be of sufficient clarity to indicate the location, nature and extent of the work proposed and show in detail that it will conform to the provisions of this code and relevant laws, ordinances, rules and regulations, as determined by the Director.

107.2.2 Fire protection system shop drawings. Shop drawings for the fire protection system(s) shall be submitted to indicate conformance to this code and the construction documents and shall be approved prior to the start of system installation. Shop drawings shall contain all information as required by the referenced installation standards in Chapter 9 of this Code.

107.2.3 Means of egress. The construction documents shall show in sufficient detail the location, construction, size and character of all portions of the means of egress including the path of the exit discharge to the public way in compliance with the provisions of this code. In other than occupancies in Groups R-2, R3, and I-1, the construction documents shall designate the number of occupants to be accommodated on every floor, and in all rooms and spaces.

107.2.4 Exterior wall envelope. Construction documents for all buildings shall describe the exterior wall envelope in sufficient detail to determine compliance with this code. The construction documents shall provide details of the exterior wall envelope as required, including flashing, intersections with dissimilar materials, corners end details, control joints, intersections at roof, eaves or parapets, means of drainage, water-resistive membrane and details around opens. The construction documents shall include manufacturer's installation instructions that provide supporting documentation that the proposed penetration and opening details described in the construction documents maintain the weather resistance of the exterior wall envelope. The supporting documentation shall fully describe the exterior wall system which was tested, where applicable, as well as the test procedure used.

107.2.5 Site plan. Construction documents submitted with the application for permit shall be accompanied by a site plan showing to scale the size and location of new construction and existing structures on the site, distances from lot lines, the established street grades and the proposed finished grades and, as applicable, flood hazard areas, floodways, and design flood elevations; and it shall be drawn in accordance with an accurate boundary line survey. In the case of demolition, the site plan shall show construction to be demolished and the location and size of existing structures and construction that are to remain on the

site or plot. The Director authorized to waive or modify the requirement for a site plan when the application for permit is for alteration or repair or when otherwise warranted.

107.2.5.1 Design flood elevations. Where design flood elevations are not specified, they shall be established in accordance with Section 1612.3.1. and Chapter 78 of this Code.

107.2.6 Structural information. The construction documents shall provide the information specified in Section 1603.

107.3 Examination of documents. The Director shall examine or cause to be examined the accompanying submittal documents and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of this code and other pertinent laws or ordinances.

107.3.1 Approval of construction documents. When the Director issues a permit, the construction documents shall be approved, in writing or by stamp, as "Reviewed for Code Compliance." One set of construction documents so reviewed shall be retained by the Director. The other set shall be returned to the applicant, shall be kept at the site of work and shall be open to inspection by the Director or a duly authorized representative.

107.3.2 Previous approvals. This code shall not require changes in the construction documents, construction or designated occupancy of a structure for which a lawful permit has been heretofore issued or otherwise lawfully authorized, and the construction of which has been pursued in good faith within 180 days after the effective date of this code and has not been abandoned.

107.3.3 Phase Approval. At the discretion of the Director, the Department may issue a limited release to perform some limited, specified scope of work prior to the building permit being issued.

This limited release will state with specificity the limits of the work authorized to be performed thereunder. The Director will require applicants to submit related documentation, including but not limited to overall building plans, in order to receive a limited release to perform a portion of the work. Final construction documents must be provided for the scope of work requested to be released.

A phase release to perform work is not a building permit. The recipient of a limited release must agree to indemnify and hold harmless the City of New Orleans from any consequences resulting from performing any work prior to the issuance of a final building permit. All building permits and plan review fees are due at the time of the issuance of the phase release to perform work. A copy of the phase release to perform work must be displayed in accordance with Section 107.3.3 herein.

107.3.4 Revision of approved construction documents. It shall be unlawful to erase, materially alter or modify any lines, figures, letters, words or coloring contained in the construction documents stamped by the Director. If during the progress of the execution of such work it is desired to deviate in any manner affecting the construction or other essentials of the building from the terms of the applications plans, or specifications or statement of cost of work, notice of such intention to alter or deviate shall be given in writing to the Director, and his written assent shall be obtained before such alterations or deviations may be made. If such change or deviation affects structural design, exit arrangement, occupancy change, etc., then new construction documents thereof shall be submitted to the Director for approval, and, if necessary, an additional permit shall be secured. Failure to obtain approval as required herein shall be a violation of this Code.

107.3.5. Design professional in responsible charge. When it is required that documents be prepared by a registered design professional, the Director shall be authorized to require the owner to engage and designate on the building permit application a registered design professional who shall act as the registered design professional in responsible charge. The Director shall be notified in writing by the owner if the registered design professional in responsible charge is changed or is unable to continue to

perform the duties. The registered design professional in responsible charge shall be responsible for reviewing and coordinating submittal documents prepared by others, including phase and deferred submittal items, for compatibility with the design of the building.

107.3.5.1 Deferred submittals. For the purposes of this section, deferred submittals are defined as those portions of the design that are not submitted at the time of the application and that are to be submitted to the Director within a specified period.

107.4 Third-Party Building Plan Review. Third-party building plan review service providers, as provided herein, may perform certain building plan reviews which may be accepted by the City of New Orleans through the Director of the Department of Safety and Permits, pursuant to La. R.S. 40:1730.24. The Director may accept reports of approved certified third-party plan review providers in accordance with the following regulations, provided that all plan reviews be in compliance with all state and local laws and rules, including but not limited to the Comprehensive Zoning Ordinance (CZO):

(1) Registration Required

a. Any company or individual wishing to act as a third-party building plan review provider in the City of New Orleans must first file a registration application with the Department on a form provided for that purpose. The Director shall not accept third-party building plan review reports from any company or individual not first registered with the Department or that are in violation of any of the requirements contained herein. All companies providing plan review services and all individuals performing plan reviews services, either independently or on behalf of a registered company must register with the Department separately, and must comply with the following registration requirements:

i. Any company or individual must be registered with the Louisiana State Uniform Construction Code Council, to be evidenced by State registration number at the time of registration and/or renewal.

ii. Any company or individual may only be registered in the field(s) in which they are certified by the International Code Council, to be evidenced by submission of ICC certification at the time of registration and/or renewal.

iii. No company or individual may perform third-party building plan reviews on buildings or structures in which they have any direct or indirect financial or professional interest. Companies and individuals must disclose all parties with a legal, financial, or beneficial interest at the time of registration and/or renewal.

iv. Any company or individual must disclose any and all relationships, including but not limited to: direct or indirect financial interests, employer/employee, subcontractor, advisor, consultant, or referrals of any kind with any current City of New Orleans employee. "City of New Orleans employee"

includes any city officer, full-time or part-time employee, department, agency, board, commission, and public benefit corporation.

v. Any company or individual must hold a valid Occupational License or Registration from the Department of Finance, in compliance with Chapters 30 and 150 of the City Code, to be evidenced by submission of such license or registration at the time of registration and/or renewal.

vi. Any company or individual must be insured and shall furnish proof of commercial general liability insurance of not less than $500,000 and shall name the City of New Orleans as an additional insured party, to be evidenced by submission of certificate of insurance at the time of registration and/or renewal.

vii. Any company or individual holding a Louisiana license as a building, residential or Home Improvement contractor is prohibited from registering as a third-party building plan review provider.

viii. Any company or individual holding a New Orleans electrical or mechanical license is prohibited from registering as a third-party building plan review service provider.

ix. The Director shall have the authority to accept or deny the credentials of any third-party building plan review provider both at the time of registration or any time thereafter.

x. Employees of the Department of Safety and Permits are prohibited from acting as third-party building plan review providers, pursuant to La. R.S. § 42:1111, which prohibits public employees from receiving payment for any service substantially similar to standard job responsibilities.

b. Registration Fees and Term of Registration

i. To obtain an initial registration or renew a registration, applicants shall pay the applicable fee:

1. New Registration (Company or Individual): $200.00
2. Renewal (Company or Individual): $75.00
3. Delinquent Fee: $30.00 per month, or portion thereof past expiration date, in addition to the renewal fee.

c. Individual registration shall expire on the registrant's date of birth; company registration shall expire on the anniversary date of registration.

d. New registration applications may be submitted at any time; renewals may be submitted not more than 30-days prior to registration expiration.

e. Any registration not renewed prior to expiration is considered invalid and inspection reports will not be accepted.

f. Any registration not timely renewed shall terminate. Subsequent re-registration will be considered a new registration.

(2) Plan Review Documentation from Third-Party Building Plan Review Service Providers

a. Third-party building plan review providers shall submit written reports to the Director in the form and manner to be established by the Department.

i. All written reports must contain:

1. A building plan review form developed for such purpose and provided by the Department and completed and stamped by the third-party building plan review service provider. The form must clearly indicate the name, affiliation, and registration number of the third-party building plan review service provider; and the name and contact information for the design professional responsible for the building plans being reviewed.

2. The report shall include detailed references to building plan as submitted with the permit application.

(3) Third-Party Building Plan Review Services Not Authorized to Use City Insignia

a. Third-party building plan review service providers shall not produce, develop, purchase, utilize, or secure any sticker, form, or report which bears the Seal of the City of New Orleans, the words "City of New Orleans" or "Department of Safety and Permits," or any variation thereof, or any other symbol or image which implies, infers, or states that the third-party building plan review service provider is acting on behalf of the City of New Orleans or any department, agency, or administrative entity thereof.

i. Failure to abide by this Section shall be due cause for immediate revocation of third-party registration.

(4) Authority of the Department of Safety and Permits

a. The Director shall randomly conduct audits of third-party building plan reviews to verify the accuracy and reliability of third-party building plan review service providers.

i. Upon receipt of a request or complaint, or as otherwise determined by the Director the Director shall review specific building plans previously reviewed by a third-party provider.

ii. A third-party provider whose plan reviews failed an audit three times may

have their registration to provide plan reviews revoked.

b. If the Department denied a permit following its review of the building plan, any report from a third-party building plan review service provider on the same project will not be accepted unless there is specific documentation included detailing correction of the issues resulting in the original denial.

c. In the event that the Department of Safety and Permits and a third-party building plan review service provider disagree on requirements of the relevant Code provisions, the final determination of requirements shall be made by the Director in his/her capacity as the Code-designated authority for rendering of interpretations in compliance with the intent and purpose of this Code, pursuant to the Home Rule Charter.

d. The Director may, at any time, invalidate third-party building plan review service provider registration if said service provider violates the procedures herein regulating their interaction with the City. The Department shall provide written reasons for the invalidation to the provider.

SECTION 108 - TEMPORARY STRUCTURES AND USES

108.1 General. The Director is authorized to issue a permit for temporary structures and temporary uses as determined by the Director. Such permit shall be limited as to time of service, but shall not be permitted for more than 180 days. The Director is authorized to grant extensions for demonstrated cause.

108.2 Conformance. Temporary structures and uses shall conform to the structural strength, fire safety, means of egress, accessibility, light, ventilation and sanitary requirements of this code as necessary to ensure the public health, safety and general welfare.

108.3 Temporary power. The Director is authorized to give permission to temporarily supply and use power in part of an electric installation before such installation has been fully completed and the final certificate of completion has been issued. The part covered by the temporary certificate shall comply with the requirements specified for temporary lighting, heat or power in NFPA 70.

108.4. Termination of approval. The Director is authorized to terminate such permit in NFPA 70 for a temporary structure or use and to order the temporary structure or use to be discontinued.

SECTION 109 - FEES

109.1 PAYMENT OF FEES. A permit is not valid until the fees prescribed by law are paid. An amendment to a permit will not be released until the additional fee, if any, has been paid.

109.2 Work commencing before permit issuance. Any person who commences any work on a building or a structure before obtaining the necessary building permit shall be subject to a fee of 200% of all fees in addition to the required permit fee. Where work for which a permit is required by this code is commenced after an application is made to obtain a building permit but prior to the review and approval of such permit, such work shall be subject to fee of 100% of all fees in addition to the required permit fees. The fee for commencing demolition shall not be more than the replacement value of the structure or the demolished portion thereof as determined by the provisions of Section 109.4.

109.3 Accounting. The Director is to collect fees for certificates and permits and shall give receipts for same; he shall deposit daily all sums collected under this Code to the Bureau of the Treasury, to the account of the General Fund, except guarantee deposit fees shall be kept in a separate account by the Director of Finance.

The Director shall keep a permanent, accurate account of all fees and other monies collected and received under this Code.

109.4 Building permit valuations. The applicant for a permit shall provide a construction contract indicating the fair market value of the permitted construction's value at time of application. Permit valuations shall be based on the fair market value of the work and include total value of work, including materials and labor, for which the permit is being issued, such as electrical, gas, mechanical, plumbing equipment and permanent systems. The Director shall be prohibited from requiring a contract to specify contractor overhead and/or profit. If, in the opinion of the Director, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed estimates to meet the approval of the Director. Final building permit valuation shall be set by the Director.

109.5 Related fees. The payment of the fee for the construction, alteration, removal or demolition for work done in connection with or concurrently with the work authorized by a building permit shall not relieve the applicant or holder of the permit from the payment of other fees that are prescribed by law.

109.6 Schedule of Permit Fees. On all buildings, structures or alterations requiring a building permit, a fee for each building permit shall be paid as required at the time of filing application, in accordance with the following schedule:

1. Permit fees for all work requiring permits, except for removal or demolition. These fees include the certificate of use and occupancy (with or without plans). $60.00 plus $5.00 per $1,000.00 or fraction thereof of construction value.
2. When plans are required and filed with an application for a building permit, the Department of Safety and Permits shall collect a plan checking fee of $120.00 or one-tenth of 1% for the total valuation of all construction work, whichever is greater, before acceptance of the submitted application. Total valuation shall be the same as that used in determining building permit fees. These fees are nonrefundable.
3. When plans are submitted for a re-review process, the Department of Safety and Permits shall collect a re-review plan checking fee. The amount of the fee shall be determined as one-twentieth of one percent for the total valuation of all construction work. The total valuation shall be the same as used in determining building permit fees. There shall be a minimum fee of $45.00 and a maximum of $5,000.00 per application for re-review.
4. Permit fees for removal or demolition shall be as follows:
   a. $95.00 plus $5.00 for each $1,000.00 of demolition cost.
5. An extra inspection or wasted trip fee of $50.00 shall be incurred for each inspection called for by the owner or the owner's representative when, in the opinion of the Director, the work to be inspected is incomplete and/or not suitable for inspection. This charge is for any and all extra inspections made necessary as a result of blatantly incomplete work, inaccessibility to perform the inspection or for alterations to work previously accepted. This fee is in addition to any regular required permit fees.
6. A fee of $60.00 for each residential unit or phase and $125.00 for each commercial unit or phase shall be incurred to process the request for a Temporary Certificate of Occupancy.
7. On all buildings, structures, or alterations which fall within the Vieux Carré, as defined in Section 65-6 of the Code of the City of New Orleans, and which require a permit from the Vieux Carré Commission

in addition to requiring a building permit under this Code, an additional 50 percent surcharge is added to the permit fee and the plan checking fee as enumerated in subsections 1, 2 and 3 of Section 108.6. above.

8. On all buildings, structures, or alterations which fall within an officially designated Historic District, or any officially designated landmark, or which otherwise may require Historic District Landmarks Commission staff review, an additional 50 percent surcharge is added to the permit fee and the plan checking fee as enumerated in subsections 1, 2, and 3 of this Section.

9. Review Fee. The cost to implement the stormwater management plans should be included in the total valuation of all construction work, and thus would be included in the current structure for calculating building permit fees.

109.7 Refunds. Subject to the discretion of the Director of Safety and Permits, the applicant for a permit or holder of a permit shall not be entitled to a refund of any fee paid.

SECTION 110 - INSPECTIONS

110.1 General. Construction or work for which a permit is required is subject to inspection by the Director and the construction or work shall remain accessible and exposed for inspection purposes until approved. Approval as a result of an inspection shall not be construed to be an approval of a violation of the provisions of this code or of other ordinances of the city. Inspections presuming to give authority to violate or cancel the provisions of this code or of other ordinances of the city shall not be valid. It shall be the duty of the permit applicant to cause the work to remain accessible and exposed for inspection purposes. Neither the Director nor the city shall be liable for expense entailed in the removal or replacement of any material required to allow inspection.

110.2 Preliminary inspection. Before issuing a permit, the Director is authorized to examine or cause to be examined buildings, structures and sites for which an application has been filed.

110.3 Required inspections. The Director, upon notification, shall make the inspections set forth in Sections 110.3.1 through 110.3.9.

110.3.1 Footing or foundation inspection. Footing and foundation inspections shall be made after excavations for footings are complete and any required reinforcing steel is in place. For concrete foundations, any required forms shall be in place prior to inspection. Materials for the foundation shall be on the job, except where concrete is ready mixed in accordance with ASTM C 94, the concrete need not be on the job.

110.3.2 Concrete slab or under-floor inspection. Concrete slab and under-floor inspections shall be make after in-slab or under-floor reinforcing steel and building service equipment, conduit, piping accessories and other ancillary equipment items are in place, but before any concrete is placed or floor sheathing installed, including the subfloor.

110.3.3 Lowest floor elevation. Upon placement of the lowest floor, including the basement, and prior to further vertical construction, the elevation certification required in Section 120 shall be submitted the Director.

110.3.4 Frame inspection. Framing inspections shall be made after the roof deck or sheathing, all framing, fire blocking and bracing are in place and pipes, chimneys and vents to be concealed are complete and the rough electrical, plumbing, heating wires, pipes and ducts are approved.

110.3.5 Lath or gypsum board inspection. Lath and gypsum board inspections shall be made after lathing and gypsum board, interior and exterior, is in place, but before any plastering is applied or before gypsum board joints and fasteners are taped and finished. Exception: Gypsum board that is not part of a fire-resistive assembly or a shear assembly.

110.3.6 Fire-and smoke-resistant penetrations. Protection of joints and penetrations in fire-resistance-rated assemblies, smoke barriers and smoke partitions shall not be concealed from view until inspected and approved.

110.3.7 Other inspections. In addition to the inspections specified above, the Director is authorized to make or require other inspections of any construction work to ascertain compliance with the provisions of this code and other laws that are enforced by the Department of Safety & Permits.

110.3.8 Special inspections. For special inspections, see Chapter 17 of this Code.

110.3.9. Final inspection. The final inspection shall be made after all work required by the building permit is completed.

110.3.9.1 Flood hazard documentation. If located in a flood hazard area, documentation of the elevation of the lowest floor as required in Section 1612.5 of this Code shall be submitted to the Director prior to the final inspection. All improvements and documentation shall be in compliance with Chapter 78 of this Code.

110.10 Inspection agencies. Third-party inspection services, as provided herein, may perform certain construction inspections which may be accepted by the City of New Orleans through the Director of Safety and Permits. The Director may accept reports of approved inspection agencies, provided such agencies satisfy the requirements as to qualifications and reliability, and in accordance with the following regulations:

(1) Registration Required

a. Any company or individual wishing to act as a third-party inspection service provider in the City of New Orleans must first file a registration application with the Director on a form provided for that purpose. Inspection reports will not be accepted from any company or individual not first registered with the Department or that may be in violation of any of the requirements contained herein. Separate registration is required for all companies providing inspection services and all individuals performing inspections, either independently or on behalf of a registered company.

i. Any company or individual must be registered with the Louisiana State Uniform Construction Code Council, to be evidenced by State registration number at the time of registration and/or renewal.

ii. Any company or individual may only be registered in the field(s) in which they are certified by the International Code Council, to be evidenced by submission of ICC certification at the time of registration and/or renewal.

iii. No company or individual may perform inspections on buildings or structures in which they have any direct or indirect financial or professional interest. Companies and individuals must disclose all parties with a legal, financial, or beneficial interest at the time of registration and/or renewal.

iv. Any company or individual must disclose any and all relationships, including but not limited to: direct or indirect financial interests, employer/employee, subcontractor, advisor,

consultant, or referrals of any kind with any current City of New Orleans employee. City of New Orleans employee includes any city officer, employee, department, agency, board, commission, and public benefit corporation.

v. Any company or individual must hold a valid Occupational License or Registration from the Department of Finance, in compliance with Chapters 30 and 150 of the City Code, to be evidenced by submission of such license or registration at the time of registration and/or renewal.

vi. Any company or individual must be insured and shall furnish proof of commercial general liability insurance of not less than $500,000 and shall name the City of New Orleans as an additional insured party, to be evidenced by submission of certificate of insurance at the time of registration and/or renewal.

vii. Any company or individual holding a Louisiana license as a building, residential or Home Improvement contractor is prohibited from registering as a third-party inspection service provider.

viii. Any company or individual holding a New Orleans electrical or mechanical license is prohibited from registering as a third-party inspection service provider.

ix. The Director shall have the authority to accept or deny the credentials of any third-party inspection service provider both at the time of registration or any time thereafter.

x. Employees of the Department of Safety and Permits are prohibited from acting as third-party inspection service providers, pursuant to La. R.S. § 42:1111, which prohibits public employees from receiving payment for any service substantially similar to standard job responsibilities.

b. Registration Fees and Term of Registration

i. To obtain an initial registration or renew a registration, applicants shall pay the applicable fee:

1. New Registration (Company or Individual): $200.00

2. Renewal (Company or Individual): $75.00

3. Delinquent Fee: $30.00 per month, or portion thereof past expiration date, in addition to the renewal fee.

c. Individual registration shall expire on the registrant's date of birth; corporate registration shall expire on the anniversary date of registration.

d. New registration applications may be submitted at any time; renewals may be submitted not more than 30-days prior to registration expiration.

e. Any registration not renewed prior to expiration is considered invalid and inspection reports will not be accepted.

f. Any third-party inspection service provider registration not timely renewed shall terminate. Subsequent re-registration will be considered a new registration.

(2) Inspection Documentation from Third-Party Inspection Service Providers

a. Third-party inspection service providers are required to submit written inspection reports to the Director in form and manner to be established by the Department.

i. All written reports must contain:

1. An inspection pass/fail form, in a form provided by the City and made available for that purpose. This form must clearly indicate the name, affiliation, and registration number of the third-party inspection service provider; and the name and contact information for the contractor responsible for the work being inspected.

2. All inspection reports are required to include photographic documentation of the observed conditions.

ii. Reports and photographs may be submitted electronically if deemed appropriate by the Director.

b. Survey Requirements

i. No footings or foundations may be poured for new construction or additions to existing structures until:

1. A survey, indicating the setbacks of the proposed structure from all property lines, is submitted to the Zoning Administration Division.

2. The Zoning Administration Division reviews the setbacks for compliance with the standards of the Comprehensive Zoning Ordinance and for conformity with the submitted and approved plans.

3. The submitted survey has been stamped to indicate approval or denial of the setbacks.

ii. Foundation inspections are not considered "passed" until these requirements are met.

iii. For elevation of existing structures, the survey requirements (above) are required to be met prior to the issuance of a Certificate of Completion. An inspection may not be indicated as "passed" until such time as these requirements are met.

(3) Third-Party Inspection Services Not Authorized to Use City Insignia

a. Third party inspection service providers are not authorized to produce, develop, purchase, utilize, or secure any sticker, form, or inspection report which bears the Seal of the City of New Orleans, the words "City of New Orleans" or "Department of Safety and Permits," or any variation thereof, or any other symbol or image which implies, infers, or states that the third-party inspection service provider is acting on behalf of the City of New Orleans or any department, agency, or administrative entity thereof.

i. Failure to abide by this Section will be considered due cause for immediate revocation of third party registration.

b. Any publicly posted documentation of inspection results (i.e. pass/fail stickers, etc.) must be approved for content and form by the Department.

i. The name of the company or individual providing third-party inspection services must be clearly discernible on any documentation so utilized.

(4) Authority of the Department of Safety and Permits

a. The Director retains the right and responsibility for conducting third party audit inspections to verify the accuracy and reliability of third party inspection providers.

i. Third party audit inspections will be randomly conducted; however, the Director has the authority to cause inspection of specific properties where third party inspections have been performed upon receipt of a request or complaint, or as otherwise determined by the Director at his discretion.

b. Where a property has been previously inspected by the Department of Safety and Permits and such inspection has resulted in a "fail," a subsequent inspection by a third party inspection provider will not be accepted unless there is specific documentation included detailing correction of the original conditions.

c. In the event that the Department of Safety and Permits and a third party inspection service provider disagrees on requirements of the relevant code, the final determination of requirements shall be made by the Director in his capacity as the Code-designated authority for rendering of interpretations in compliance with the intent and purpose of this Code, pursuant to the Home Rule Charter.

d. The Director may, at any time, invalidate third-party inspection service provider registration if said third-party inspection service provider violates the procedures herein regulating their interaction with the City.

110.11 Roofing and Reroofing Inspections. The submission of verified geotagged photographic documentation or video of all phases of roofing or re-roofing processes that require a permit is allowable in lieu of an in-person inspection.

110.12 Inspection requests. It shall be the duty of the holder of the building permit or their

duly authorized agent to notify the Director when work is ready for inspection. It shall be the duty of the permit holder to provide access to and means for inspection of such work for any inspections that are required by this code.

110.13 Approval required. Work shall not be done beyond the point indicated in each successive inspection without first obtaining the approval of the Director. The Director, upon notification, shall make the requested inspections and shall either indicate the portion of the construction that is satisfactory as completed, or shall notify the permit holder or an agent of the permit holder wherein the same fails to comply with this code. Any portions that do not comply shall be corrected and such portion shall not be covered or concealed until authorized by the Director.

110.14 Existing Building Inspections. Before issuing a permit the Director may examine or cause to be examined any building for which an application has been received for a permit to enlarge, alter, repair, move, demolish, or change the occupancy. He/she shall inspect all buildings and structures, from time to time, during and upon completion of the work for which a permit was issued. He/she shall make a record of every such examination and inspection and of all violations of this Code.

SECTION 111 - CERTIFICATE OF OCCUPANCY

111.1 Use and Occupancy. No building or structure shall be used or occupied, and no change in the existing occupancy classification of a building or structure or portion thereof shall be made until the Director has issued a certificate of occupancy. Issuance of a certificate of occupancy shall not be construed as an approval of a violation of the provisions of this code or of other ordinances of the city.

111.2 Change in use. Changes in the character or use of an existing structure shall not be made except as specified in the International Existing Building Code.

111.2.1 Alterations. Any building or structure which is enlarged, altered, raised, repaired, or built upon to an extent exceeding an expenditure of 50% of the replacement value after alterations, shall be made to comply in its entirety with the requirements for a new building or structure. Where the expenditures are less than 50% of the said replacement value, only portions added, altered, or replaced need be made to conform. Replacement value shall be determined by the Director, as provided in Section 109.4 of this Code.

111.3 Issuing Certificate of Occupancy. Only after the final inspection, upon completion of a building erected in accordance with this Code, approved building plan(s), permit(s), and any other applicable ordinance, shall the Director issue a certificate of occupancy stating the nature of the occupancy permitted.

111.4 Temporary occupancy. The Director is authorized to issue a temporary certificate of occupancy before the completion of the entire work covered by the permit, provided that such portion or portions shall be occupied safely. The Director shall set a time period during which the temporary certificate of occupancy is valid.

111.4.1 Rapid Temporary Certificate of Occupancy (RTCO). The Director shall issue a Rapid Temporary Certificate of Occupancy valid for a period not exceeding 60 days for work that includes only interior non-structural modifications that do not impact the structural integrity of the building and do not involve a change of use, or otherwise violate this code or any other laws or ordinances of the City of New Orleans.

1. The Director retains the authority to revoke the RTCO if it is determined that the changes adversely affect safety or otherwise violate this code or any other laws or ordinances of the City of New Orleans.
2. The work authorized under an RTCO shall be subject to a follow-up inspection within 10 days of the occupancy commencement to ensure ongoing compliance with safety standards.

3. The RTCO shall be automatically revoked if the completed work is inconsistent with the details provided in the application.

4. The applicant shall remain responsible for adhering to this code and any other applicable laws or ordinances of the City of New Orleans and the State of Louisiana during the temporary occupancy period. Non-compliance may result in penalties or revocation of the RTCO.

111.5 Revocation. The Director is authorized to, in writing, suspend or revoke a certificate of occupancy or completion issued under the provisions of this code wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of any ordinance or regulation or any of the provisions of this code.

111.6 Existing Building Certificate of Occupancy. A certificate of occupancy for any existing building may be obtained by applying to the Director and supplying the information and data necessary to determine compliance with this Code for the occupancy intended. Where necessary, in the opinion of the Director, two sets of detailed drawings, or a general inspection, or both, may be required. When, upon examination and inspection, it is found that the building conforms to the provisions of this Code for such occupancy, a certificate of occupancy may be issued.

SECTION 112 - SERVICE UTILITIES

112.1 Connection of service utilities. No person shall make connections from a utility, source of energy, fuel or power to any building or system that is regulated by this code for which a permit is required, until released by the Director.

112.2 Temporary connection. The Director shall have the authority to authorize the temporary connection of the building or system to the utility source of energy, fuel or power.

112.3 Authority to disconnect service utilities. The Director shall have the authority to authorize disconnection of utility service to the building, structure or system regulated by this code and the codes referenced in case of emergency where necessary to eliminate an immediate hazard to life or property. The Director shall notify the serving utility, and wherever possible the owner and occupant of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practical thereafter.

SECTION 113 - BOARD OF BUILDING STANDARDS AND APPEALS

113.1 General. The Director has the authority and it is his duty, subject to the provisions of law and of this Code, to pass upon a question relative to the mode, manner of construction or materials to be used in the erection or alteration of any building or other structure erected or to be erected within the City of New Orleans, which is affected by the provisions of this Code, or of any existing law applicable to the City of New Orleans and relating to the design, construction, alteration, maintenance, repair, and removal of buildings or other structures therein, and to require that such design, mode, manner of construction, or materials shall conform to the true intent and meaning of the several provisions of this Code. If the Director, rejects or refuses to issue a building permit, or to approve the design, mode, manner of construction or materials proposed to be followed or used in the erection and alteration of any such building or structure, or when it is claimed that the rulings of the Director or the provisions of this Code do not apply, or that a more desirable and equally safe form of construction, from the owner's point of view can be employed in a specific case, or whenever the owner of a building or structure shall object to any decision given by the Director, relative to the extent of damage sustained by any building or structure, by fire or otherwise, or to the extent or value of repairs, alterations or improvements of any

existing building or replacement value thereof, the owner of the building may appeal from the decision of the Director to the Board of Building Standards and Appeals.

113.2 Appointment. There shall be in the City of New Orleans a Board to be called "Board of Building Standards and Appeals" hereinafter referred to as the "Board". The Board shall consist of five members to be appointed by the Mayor, one member to be a Louisiana State Registered Architect, one member to be a Louisiana State Registered Civil Engineer, one member to be a Louisiana State Licensed General Contractor, one member to be a Louisiana State Registered Mechanical or Electrical Engineer, and one member to be an engineer experienced in fire protection.

113.3 Terms of Office. The term of office shall be five (5) years each, but each member shall serve until his successor is appointed and qualified. Said terms shall terminate on June 30 of the respective year. Any member may be removed by the Mayor, with approval of the Council, for malfeasance, incapacity or neglect of duty. Each member shall comply with the provisions of the Louisiana State Code of Ethics.

113.4 Board Officers and Quorum. Each member shall take an oath of office in a form prescribed by the City Attorney, and the Board shall elect one of its members as Chairman and one as Vice-Chairman. The Board shall meet when called by the Chairman to consider appeals which meeting shall be considered a regular meeting; or by the Director of the Department of Safety and Permits for the transaction of such business as he may designate, which shall not be held more often than twice in each month of each year. No appeal shall be considered at a meeting of the Board unless it is submitted at least nine working days prior to the date of the meeting. The Board shall meet when notified by the Director for the purpose of recommending appropriate changes in this code and then refer the same to the City Council for consideration and action. A majority of the existing membership of a board shall constitute a quorum. All actions taken by boards shall require the affirmative vote of the majority of the existing members thereof, provided that regulations may be adopted only upon the affirmative vote of two-thirds of the existing members thereof.

113.5 Legal Advisor. The City Attorney is the legal advisor to the Board.

113.6 Fees. Application for an appeal shall be accompanied by a check payable to the "City of New Orleans" for fees as follows:

1 and 2 family dwelling	$200.00
All others	$800.00
Townhouses, each	$200.00
(Not to exceed $600.00)	
Rehearing.	$200.00
Special Board Meeting	$1600.00

In cases when an application for a waiver is made AFTER THE FACT, the application fee for retention shall be tripled.

113.7 Duties and Powers. It shall be the duty of the Board:

1. To hear and decide appeals where it is alleged there is error in any order, requirement, decision, or determination made by the Director in the enforcement of this Code.
2. To hear and decide all matters referred to it or upon which it is required to pass under this Code.
3. To pass upon appeals where there are practical difficulties or unnecessary hardships in the way of carrying out the strict letter of this Code, to vary or modify the application of any of the regulations or provisions of such sections relating to the construction or alteration of buildings or structures so that the spirit of this Code shall be observed, public safety and welfare secured and substantial justice done.
4. To interpret the intent or meaning of this Code for the advice of the Director. In exercising the above-mentioned powers, the Board may

reverse or affirm wholly or in part, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the Director from whom the appeal is taken. The concurring vote of three members of the Board shall be necessary to recall any requirement, decision or determination of the Director, or to decide in favor of the applicant on any matters on which it is required to pass under this Code, or to effect any variation in this Code.

113.8 Amendments. All technical amendments to this Code shall first be reviewed by the Board of Building Standards and Appeals, and shall be accompanied by its recommendation prior to consideration by the City Council.

113.9 Rehearing. In cases when the Board rules against an application, and the applicant subsequently elects to modify his/her original building plan and submit the modified plan to the Board for rehearing, the applicant must pay a rehearing fee of $200.00 to the Department of Safety & Permits, which shall be deposited in the City's General Fund.

113.10 Actions. All cases in which application for appeals have been filed with the Board shall be heard, and the Board shall inform the Director of its decisions, stating the waivers or denials granted and conditions, if any, as they may require in each action. The decisions shall specify the variations allowed and the reason therefore, and shall be filed in the office of the Director within 30 days of the public hearing. When building conditions are very unusual, requiring site visit, research and the like, the Director may grant a reasonable extension of time. Failure to file the decision shall not delay issuance of permits in accordance with a favorable vote so long as conditions attached to the permits are in accord with the action of the Board. Copies of the decision shall be sent to the applicant and all parties involved in the appeal. If the order or refusal of the Director is affirmed, the order or refusal shall have full force and effect. If the order or refusal is modified or annulled, the Director shall issue a permit in accordance with the decision.

113.11 Appeal to Courts. A person, or any officer, department, commission, board, bureau, or any other agency of the City of New Orleans jointly or singularly aggrieved by a decision of the Board of Building Standards and Appeals may present to the Civil District Court of the Parish of Orleans, within thirty (30) days after filing of the decision in the office of the Board, a writ of certiorari asking for such relief and under such rules and regulations as are provided for such matters in appropriate legislation of the State of Louisiana.

SECTION 114 - VIOLATIONS

114.1 Unlawful acts. It shall be unlawful for a person, firm or corporation to erect, construct, alter, extend, repair, move, remove, demolish or occupy any building, structure or equipment regulated by this code, or cause same to be done, in conflict with or in violation of any of the provisions of this code.

114.2 Notice of violation. The Director is authorized to serve a notice of violation or order on the person responsible for the erection, construction, alteration, extension, repair, moving, removal, demolition or occupancy of a building or structure in violation of the provisions of this code, or in violation of a permit or certificate issued under the provisions of this code. The order shall direct the discontinuance of the illegal action or condition and the abatement of the violation.

114.3 Prosecution of violation. If the notice of violation is not complied with promptly, the Director is authorized to seek an administrative adjudication for any violation as provided in Chapter 6 of the Code of the City of New Orleans, or request the City Attorney to institute the appropriate proceeding at law or in equity to restrain, correct or abate such violation, or to require the removal or termination of the unlawful occupancy of the building

or structure in violation of the provisions of this code or of the order or direction made pursuant thereto.

114.4 Violation penalties. A person who violates a provision of this code or fails to comply with any of the requirements thereof or who erects, constructs, alters or repairs a building or structure in violation of the approved construction documents or directive of the Director, or of a permit or certificate issued under the provisions of this code, is subject to penalties as prescribed by law. If necessary, the Director may request for penalties that include the disconnection of utilities or the cancellation of a certificate of occupancy until all required repairs are completed.

SECTION 115 - STOP WORK ORDER

115.1 Authority. The Director is authorized to issue a stop work order whenever he finds any work regulated by this code being performed in a manner contrary to the provisions of this code, any permit issued pursuant to this code, or in a dangerous or unsafe manner.

115.2 Issuance. The stop work order shall be in writing and shall be posted in a conspicuous location on the property. Upon issuance of a stop work order, the cited work shall immediately cease. When an emergency exists, the Director shall not be required to give a written notice prior to stopping the work.

115.3 Unlawful continuance. A person, who continues any work after having been served with a stop work order, except the work that person is directed to perform to remove a violation or unsafe condition, is subject to penalties as prescribed by law.

SECTION 116 - STREET ADDRESS

When issuing building permits, the Director shall designate thereon the street number that the building when completed will bear. Buildings shall have approved address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or alphabet letters. Numbers shall be a minimum of 4 inches high with a minimum stroke width of 0.5 inch. Addresses shall be assigned by the Director, pursuant to adopted administrative regulations.

SECTION 117 - ZONING RESTRICTIONS

The provisions of the Comprehensive Zoning Ordinance of the City of New Orleans shall not be deemed to be modified by any provision of this Code. The provisions of the Comprehensive Zoning Ordinance shall be controlling, except that whenever this Code imposes greater restrictions by reason of the type of construction used, the provisions of this Code shall control.

SECTION 118 - FIRE PREVENTION

The provisions of the Fire Prevention Ordinance shall not be deemed to be modified by any provisions of this Code except that wherever the requirements of this Code are more restrictive, the requirements of this Code shall apply.

SECTION 119 - MINIMUM HOUSING RESTRICTIONS

The provisions of Chapter 26 of the City Code "Housing Standards - Minimum Housing Standards Code", as amended, shall not limit, restrict, contravene, or vitiate the provisions of this Code as adopted herein or hereafter amended. Wherever there is a conflict between the Minimum Housing Standards and the Building Code, the more restrictive provisions shall be enforced.

SECTION 120 - LOT FILL OR LOT GRADE

120.1 General. It is unlawful to place fill on a lot or site or part thereof or grade a lot or site in a manner that allows runoff to drain onto abutting lots or sites. The requirement for prevention of water runoff to abutting sites or lots may be met by use of a retaining wall. Lots or sites shall generally be graded to drain the water toward the street(s) side(s) of the lot or site. Any retaining walls installed pursuant to the provisions of this section shall be constructed of concrete.

120.2 Notarized certificate. Prior to issuance of a Certificate of Occupancy by the Department of Safety and Permits, the applicant shall present a notarized certificate signed by

the owner stipulating that all filling, grading and sidewalk and driveway installations have met the requirements of the applicable sections of the Code of the City of New Orleans. Compliance with all filling, grading and sidewalk and driveway installation requirements shall be completed before final inspection by the Department of Safety and Permits.

120.2.1 Slab Foundations Certificate. The Department of Safety and Permits shall inscribe on the building permit the minimum floor elevation in accordance with the Federal Flood Insurance Rate Map and Chapter 78 of the Code of the City of New Orleans. In addition, the top of the slab shall not be less than 18 inches above the highest point of the curb in front of the lot or site. The builder shall obtain from a Land Surveyor or Civil Engineer, licensed in the State of Louisiana, a Certificate of Construction Bench Mark describing a mark of known elevation of the slab. Also, the Certificate of Construction Bench Mark must contain the elevations in the four corners of the lot. This certificate shall be furnished to the Department of Safety and Permits at the time of the building permit application. Before framing begins, a Certificate of Slab Elevation shall be submitted by the applicant to the Department of Safety and Permits. This certificate shall contain as built minimum sill height or floor elevation and shall be signed by a Civil Engineer or Land Surveyor, licensed in the State of Louisiana. If the slab is built below the stipulated elevation, the Director is empowered to order the removal or correction of said floor and the Department of the Director is empowered to cancel the building permit.

120.2.2 Pier or Chain Wall Foundation Certificate. The Department of Safety and Permits shall inscribe on the building permit the minimum floor elevation in accordance with the Federal Flood Insurance Rate Map and Chapter 78 of the Code of the City of New Orleans. In addition, the top of the finished lowest habitable floor shall not be less than 18 inches above the highest point of the curb in front of the lot or site. All construction below the Base Flood Elevation shall be of flood-resistant materials. Furthermore, the underside of a raised structure shall have a minimum of 18 inches from the underside of the sill to the ground beneath the entire structure. The builder shall obtain from a Land Surveyor or Civil Engineer, licensed in the State of Louisiana, a Certificate of Construction Bench Mark describing a mark of known elevation in immediate proximity to the property. This will be used in establishing the elevation of the piers or chain wall. This Certificate shall be furnished to the Department of Safety and Permits at the time of building permit application. Before framing begins, a Certificate of Floor Elevation shall be submitted by the applicant to the Department of Safety and Permits. This certificate shall contain "as built" minimum sill height or floor elevation and shall be signed by a Civil Engineer or Land Surveyor, licensed in the State of Louisiana. If the "as built" minimum floor elevation is built below the stipulated elevation, the Director is empowered to order the removal or correction of said floor and the Director is empowered to cancel the building permit.

120.3 Modifications. In the Central Business District (including the area known as the Vieux Carré), in built-up commercial areas and in areas where a satisfactory system of lot grades and building elevations already have been established, the Department of Safety and Permits may modify or vary the requirements of 120.2.1 and 120.2.2 provided the new construction in the above-mentioned areas shall always be equal to or above the average lower floor elevation in the particular block or area. However, the above modifications are allowed only in Flood Zone "X". In accordance with NFIP regulations at 44 CFR 60.3 and information in the NFIP Flood Plain Management Bulletin for Historic Structures (FEMA p-467-2), all Historic Structures shall be exempted from the substantial improvement and substantial damage requirements under the definition of "substantial improvement". To qualify for this exemption, the applicant shall provide an approval from the State Historic Preservation Office (SHPO) stating

that the structure is and will continue to be a "Historic Structure" (including "contributing" to a historic district).

SECTION 121 - STORMWATER

121.1 General. These regulations shall be known as the Stormwater Code of the City of New Orleans.

121.2 Permit Required. No building, clearing, grubbing, grading, foundation, or other land development permits shall be issued until all requirements of this Stormwater Code have been met.

121.3 Intent. The stormwater management requirements established by this Stormwater Code are intended to:

(a) Assist in the development of a resilient New Orleans by encouraging sustainable practices for site design, construction, and maintenance;

(b) Reduce urban runoff and mitigate the effect of new development, redevelopment, or infill development on the existing drainage system by ensuring the preservation of permeable surfaces and requiring the installation of stormwater control measures (SCMs) to slow surface flow of stormwater runoff and promote filtration, plant uptake, absorption, and infiltration into subsoils to reduce subsidence rates;

(c) Improve the built environment in the city by incorporating design features that mimic natural processes, conserve natural areas, manage rainfall on site, and detain water;

(d) Leverage the benefits of rainwater through proper management;

(e) Manage water as a system with right-size solutions in an equitable manner;

(f) Encourage visible green infrastructure and minimize the use of subsurface engineering devices;

(g) Reduce and safely manage the use of pollutants and chemical-laden products;

(h) Diminish the heat island effect by limiting paving and increasing vegetated land cover, particularly trees;

(i) Improve education by increasing stormwater project visibility; and

(j) Increase flexibility in permissible design approaches to promote innovation in stormwater management.

121.4 Definitions. For purposes of this section, the following definition shall apply.

Best management practices (BMP): Devices, practices, or methods used to manage stormwater runoff on construction sites by controlling peak runoff rate, improving water quality, and managing runoff volume.

Bioretention: The process of collecting stormwater in a treatment area consisting of soil and plant materials to facilitate infiltration and filtration of pollutants through physical, chemical, and biological processes.

Bypass Volume: Any amount of stormwater that is not detained, retained, or filtered by the stormwater feature.

Construction Activity: Construction or demolition activity, clearing, grubbing, or excavation, or any other activity that may result in land disturbance.

Design Storm Event: A 10-year, 24-hour storm event.

Detention: Slowing, dampening, or attenuating runoff flows entering the storm drainage system by temporarily holding water in areas such as surface and subsurface green infrastructure, detention basins, reservoirs, on rooftops, or within the drainage system itself, and releasing the water at a desired rate of discharge.

Development: Any human-induced change to improved or unimproved property, including but not limited to, construction, installation, or expansion of a building or other

structure; land division; drilling; and site alteration such as dredging, grubbing, grading, paving, excavating, filling, or clearing. Development includes both new development and the redevelopment, modification, or alteration of existing property, whether publicly or privately owned or managed.

Development Site: The land, whether publicly or privately owned, where any development activities are planned, conducted, or maintained. It includes contiguous areas of disturbance including across property lines, private streets and alleys, and other rights-of-way, regardless of individual parcel ownership, on any portion or part, or during any stage, of a larger common plan of development or sale.

Drainage Area: A catchment area formed by natural or man-made topography that drains to a given point.

Infiltration: The penetration and vertical movement of water through the earth's surface.

Municipal Separate Storm Sewer System ("MS4"): A conveyance or system of conveyances, including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains, separate from a sanitary sewer, that conveys runoff from individual parcels and public rights-of-way to storm drains, treatment facilities or receiving waters.

Off-Street Parking Space: The storage space for a motor vehicle on a lot, not including the parking lot drive aisle or parking spaces on streets, alleys, or rights-of-way.

Permeable Paving: A pavement system designed to allow vertical movement of stormwater through the pavement surface and into an aggregate base. Concrete bases and mortar are prohibited. Materials include, but are not limited to, pervious concrete, porous asphalt, aggregate if stabilized with a grid-system that prevents compaction and washout; and permeable pavement, such as open-jointed blocks, pavers, or bricks that provide void spaces between to allow stormwater infiltration.

Qualified Stormwater Manager: An individual responsible for implementing, maintaining, and revising the stormwater pollution prevention plan (SWPPP).

Siltation: Water pollution caused by particulate terrestrial clastic material, with a particle size dominated by silt or clay. It refers both to the increased concentration of suspended sediments and to the increased accumulation (temporary or permanent) of fine sediments on bottoms where they are undesirable.

Stormwater Runoff: Any part of precipitation that flows over the land during or following a rain event.

Stormwater: Water that originates as precipitation on a particular site, basin, or watershed.

Stormwater Control Measure (SCM): Any man-made or natural structure, system, landscape feature, channel, or improvement designed, constructed, installed, or used to detain, retain, infiltrate, filter, or otherwise control stormwater runoff quality, rate, or quantity. The term stormwater control measure is synonymous with the term green infrastructure.

121.5 Green Infrastructure Toolkit.

(a) The Green Infrastructure Toolkit is an online manual published by the Department of Safety and Permits that sets forth design criteria or other engineering and design information necessary to comply with the Stormwater Code, including stormwater and water quality calculations through the Stormwater Calculator, recommended plant materials, specifications and construction details needed to comply with the Stormwater Code.

(b) An applicant must use the Green Infrastructure Toolkit to complete the permit application for a development. All design calculations and

other output from the toolkit must be submitted digitally with the application.

(c) The Department of Safety and Permits shall update the Green Infrastructure Toolkit at least every five years. The Director of the Department of Safety and Permits may delegate the responsibility of drafting and updating the Green Infrastructure Toolkit to another department or office of the City of New Orleans.

121.6 Requirements.

(a) An applicant must submit a stormwater management plan when the development site, viewed as a whole, satisfies any of the following circumstances, including during any period of construction:

(1) Development that increases the runoff rate above pre-construction runoff rate for the development site;

(2) When the development footprint encompasses one acre or more; or

(3) Any site where the current or intended principal use is stormwater management.

(b) The following types of developments are exempt from the requirements of this Stormwater Code:

(1) Single- and two-family dwellings, and any residential dwelling of four units or less, together with any accessory structures on a lot containing same.

(2) Interior renovations that do not change the runoff rate.

(3) Maintenance activities, such as top-layer grinding (grind and overlay), repaving when aggregates or gravels are not exposed, or reroofing when the structure or existing roof drainage is not altered.

121.7 Design Standards. Stormwater management plans must meet the following standards:

(a) The first 1.25 inches of rainfall from each drainage area on a development site shall be managed by detention or retention and by filtering and infiltrating stormwater on the same development site. The site may be entitled to a 10 percent bypass volume, provided that the total required volume is still managed, and fee-in-lieu payments are made on any bypass volume more than 10 percent of the standard runoff calculation;

(b) The post-development peak stormwater runoff rate from a development site shall not exceed the predevelopment peak stormwater runoff rate from that development site for a design storm event; and

(c) The quality of the first 1.25 inches of stormwater leaving the site post-development shall be treated to meet the standards for pollutant reduction set forth in the Green Infrastructure Toolkit Stormwater Calculator. The rate of discharges shall not exceed the prohibitions outlined in Section 16.1 Rules Governing Discharges into the Public Storm Drain System MS4 of the Rules of the Sewerage and Water Board of New Orleans Governing Use of Sewerage, Water and Drainage Systems and Plumbing.

121.8 Design Requirements.

(a) Stormwater control measures (SCMs) must be designed in accordance with the latest version of the Green Infrastructure Toolkit. The Green Infrastructure Toolkit Stormwater Calculator must be used when designing the SCMs.

(b) Stormwater management plans must be supported by a combination of SCMs, in the following order of priority:

(1) Create conditions that promote detention, filtration, and

infiltration of stormwater runoff on site using pervious paving, bioretention areas, green roofs, and other methods.

(2) Additional stormwater runoff that cannot be infiltrated is detained, stored, and filtered with stormwater control measures (SCMs).

(c) All stormwater control measures (SCMs) must be designed to provide an emergency overflow system and incorporate measures to provide a non-erosive velocity of flow along its length and at any outfall.

(d) All stormwater control measures (SCMs) must be designed to drain from a full condition within a maximum of 48 hours from the end of a rainfall event to prevent breeding of mosquitos and other waterborne pests.

121.9 Permeable Paving and Pervious Paving Materials.

(a) Except as otherwise required for persons with disabilities, all non-residential, surface-level, off-street uncovered parking spaces in the City shall be paved using permeable paving that complies with the criteria described below. This requirement applies to all new paving installations and to any development site with existing surface-level, off-street parking spaces. The removal of impermeable paving is not required for any existing parking space that is already subject to an approved, post-construction stormwater management plan that satisfies the requirements of section 121.16, below. To the extent practicable, permeable paving must be used in place of impervious paving materials in all other permitted locations. For all materials to be used in a public right-of-way, review and approval from the Department of Public Works is required.

(b) *Permeable Paving Standards and Certification.* Any installation of permeable paving is subject to the following:

(1) *Types of Permeable Paving.* The types of permeable paving facilities and permitted uses are tabulated above. The Department of Safety and Permits in consult with the Department of Public Works may allow additional types of permeable paving as new technologies or applications become available. Porous asphalt is prohibited.

Type/Application	**Driving Lane**	**Parking Stall**	**Sidewalk**
Pervious Concrete		•	•
Permeable Interlocking Unit Pavers	•	•	•
Other Unit Pavers*		•	•
Permeable Articulating Concrete Blocks	•	•	•
Porous Flexible Paving			•
Porous Bound Aggregate			•
*Spaced minimum ¼" to allow for infiltration. **Must comply with the Americans with Disabilities Act Design Standards.			

(2) *Contributing Drainage Area.* The maximum ratio of contributing drainage area to permeable paving area is 4:1, unless otherwise approved by the Department of Safety and Permits. To the extent possible, stormwater runoff from pervious areas must be avoided as it contributes sediment that clogs permeable paving and

increases maintenance requirements. At least 90 percent of the area draining to permeable paving must be impervious, not including the permeable paving area itself.

(3) *Infiltration Rates.* All permeable paving installations are subject to infiltration testing after installation. Testing is conducted according to the ASTM International C1701 or C1781 standards, as appropriate. All types of permeable paving must maintain a minimum infiltration rate of 200 inches per hour.

(4) *Required Depth.* All permeable paving installations must have a minimum aggregate sub-base of a depth capable of meeting the design performance requirements, and in compliance with the Green Infrastructure Toolkit. Depth is measured from the base of the permeable pavement system. All aggregate must be double-washed before installation.

(5) *Biennial Certification.* All permeable paving installations more than 800 square feet in total area are subject to an initial certification period of 24 months, starting from the date that the Department of Safety and Permits issues a certificate of occupancy for the subject property. Permeable paving installations more than 800 square feet in total area must be recertified every two years. The property owner shall apply for re-certification of the permeable paving installation during the three-month period prior to expiration.

121.10 Stormwater Pollution Prevention Plan (SWPPP) for Construction Activities. Any development project of one acre or more in size must submit a stormwater pollution prevention plan (SWPPP) to manage stormwater runoff and pollution during construction. The SWPPP must comply with the Louisiana Pollutant Discharge Elimination System (LPDES) General Permit for construction sites. Sites over five acres in size must also submit the Notice of Intent required by the Louisiana Department of Environmental Quality. The following provides the minimum requirements for development site stormwater pollution prevention control. Both temporary and permanent construction controls must be used to accomplish the following minimum requirements. All projects, public or private, must meet each of the minimum requirements below. Additional controls may be required by the Director of the Department of Safety and Permits when such minimum requirements are not sufficient to prevent erosion or transport of sediment or other pollutants from the site.

(a) *Mark Clearing Limits and Environmentally Critical Areas.* Within the boundaries of the development site and prior to beginning construction activity, including clearing and grading, clearly mark all clearing limits, easements, setbacks, all environmentally critical areas and their buffers, and all trees and drainage courses that are to be preserved within the construction area.

(b) *Establish Construction Access.* Limit construction vehicle access, whenever possible, to one route. Stabilize access points and minimize tracking sediment onto public roads. Promptly remove any sediment tracked off site.

(c) *Retain Top Layer.* Within the boundaries of the development site, the duff layer, topsoil, and native vegetation, if any, shall be retained in an undisturbed state to the maximum extent feasible. If it is not feasible to retain the top layer in place, it should be stockpiled on site, covered to prevent erosion, and replaced immediately upon completion of the construction activity to the maximum extent feasible.

(d) *Protect Downstream Properties and Receiving Waters.* Protect properties and receiving waters downstream from the development site from erosion due to increases in the volume, velocity, and peak flow rate of drainage water from the project site. If it is necessary to construct flow control facilities, including, but not limited to silt fencing along site boundaries, to meet this requirement, these facilities must be protected from siltation during the construction phase of the development.

(e) *Prevent Erosion and Sediment Transport from the Site by Vehicles.* Whenever construction vehicle access routes intersect paved roads, the transport of sediment onto the paved road shall be minimized. If sediment is transported onto a paved road surface, the roads shall be cleaned thoroughly at the end of each day. Sediment shall be removed from paved roads by shoveling or sweeping and shall be transported to a controlled sediment disposal area. If sediment is tracked off-site, roads shall be cleaned thoroughly at the end of each day, or at least twice daily during wet weather. Street washing is allowed only after sediment is removed, and wastewater from such street washing must be prevented from entering the drainage system and receiving waters.

(f) *Stabilize Soils.* Prevent on-site erosion by stabilizing all exposed and unworked soils, including stockpiles and earthen structures such as dams, dikes, and diversions. Soils must be stabilized at the end of the shift before a holiday or weekend if needed based on the weather forecast. Soil stockpiles must be stabilized from erosion, protected with sediment trapping measures, and located away from storm drain inlets, waterways, and drainage channels. Before the completion of the development project, permanently stabilize all exposed soils that have been disturbed during construction.

(g) *Protect Storm Drains.* Prevent sediment from entering all storm drains, including ditches that receive drainage water from the project. Storm drain inlets protection devices shall be cleaned or removed and replaced as recommended by the product manufacturer, or more frequently if required to prevent failure of the device or flooding. Storm drain inlets made operable during construction must be protected so that drainage water does not enter the drainage system without first being filtered or treated to remove sediments. Before a severe rainfall event, storm drain inlet protection must be secured or removed from all catch basins at a development site to prevent restriction of stormwater runoff into the catch basins. Storm drain inlet protection devices must be removed at the conclusion of the development project. The use of straw or hay bales is prohibited.

(h) *Stabilize Channels and Outlets.* All temporary on-site drainage systems must be designed, constructed, and stabilized to prevent erosion. Stabilization must be provided at the outlets of all drainage systems that is adequate to prevent erosion of outlets, adjacent stream banks, slopes, and downstream reaches.

(i) *Control Pollutants.* To control potential pollutants the following measures must be taken:

(1) All pollutants, including sediment, waste materials, and demolition debris, that occur on site are handled and disposed of in a manner that does not cause contamination

of drainage water and complies with all applicable disposal laws.

(2) All chemicals, liquid products, petroleum products, and other materials that have the potential to pose a threat to human health or the environment are contained, covered, and protected from vandalism.

(3) On-site fueling tanks include secondary containment around a primary container as an additional layer of protection or barrier to prevent the spread of hazardous materials in case of a leak or spill.

(4) Contaminated surfaces are cleaned immediately following any discharge or spill incident.

(5) Fertilizers and pesticides are applied in accordance with the manufacturers' instructions and in a manner and at application rates that do not result in discharge of these products into the drainage water.

(6) For any paint removal, paint preparation, pressure washing or sandblasting activities that may result in particles entering the air or landing on the ground, best management practices (BMPs) steps are implemented to prevent or minimize to the maximum extent practicable the release of such particles into the environment. Discharge of waste from such activities to the municipal separate storm sewer system is prohibited.

(7) A stormwater pollution prevention plan (SWPPP) coordinator, such as a quality stormwater manager (QSM), is identified on the permit and ensures that all development site best management practices (BMPs) are site-tested, inspected, and repaired or replaced, as needed, at least weekly and before and after a major rain event, or as necessary. Each inspection by the coordinator is documented in the SWPPP.

(8) The best management practices (BMPs) are maintained in good working order.

(j) *Maintain Best Management Practices (BMPs).* All best management practices (BMPs) set forth in the stormwater pollution prevention plan (SWPPP) are maintained and repaired as needed to ensure such measures continue to function as intended. All best management practices (BMPs) are removed within five days after final site stabilization is achieved or after the temporary control measures are no longer needed, whichever is later. Trapped sediment is removed or stabilized on site. Disturbed soil areas resulting from removal are permanently stabilized.

(k) *Concrete Waste Management for Construction Activities.* Concrete waste from washout of ready-mix trucks, concrete pumps, and other concrete equipment causes chemical changes in runoff by increasing sediment and changing the pH of the water used in the concrete waste washout. Concrete waste management is the practice of capturing all concrete wastes and protecting the drainage system from any discharge contaminated by concrete. This concrete waste includes sweepings from concrete or other concrete slurry wastes.

(1) *Applications.* Concrete waste management is required of all construction sites, phases, subdivisions, or developments

with concrete work, including, but not limited to, the use of concrete delivered by truck or other concrete coated equipment, mortar-mixing stations, or where concrete dust, debris, or slurry is created by either construction or demolition. Additionally, the operator of any vehicle used to deliver or apply concrete products must employ concrete waste management practices.

i. All applicants must provide and identify a concrete washout facility for use by those providing concrete or concrete-related services on site or shall arrange for the removal of concrete waste.

ii. In some cases, particularly in the case of construction or renovation by an owner-builder of a single structure, the concrete provider must dispose of or washout any excess concrete or debris in a manner consistent with this section even if the site does not lend itself to a separate washout facility.

(2) *Design Criteria.* Concrete washout facilities must have a minimum of six cubic feet of containment volume for every 10 cubic yards of concrete to be poured. Facilities built above the ground must have a minimum freeboard of six inches. Facilities built below grade must have a minimum freeboard of 12 inches. Prefabricated washout facilities are allowed if they meet the criteria required of temporary facilities in terms of capacity, protection from runoff and clean-out requirements. All concrete washout facilities must:

i. Be located as far away from storm drains, ditches, or other bodies of water as is practicable;

ii. Be accessible in all weather conditions with sufficient controls to keep mud or debris from the streets surrounding the facility;

iii. Physically restrict all runoff from the area by using a temporary pit or bermed area. Artificial berms may be created from straw or sand provided that the berm is staked and is double- or triple-lined with polyethylene sheeting of sufficient thickness and without holes, tears, or defects that compromise the impermeability of the material;

iv. Be clearly marked by signage; and

v. Be lined with polyethylene sheeting of sufficient thickness and which is free from holes, tears, or defects that compromise the impermeability of the material.

(3) *Maintenance and Shutdown Requirements.*

i. The temporary pit or bermed area must be cleaned and maintained on a regular basis and must be cleaned immediately of any liquid or other contaminant found outside the washout facility.

ii. The washout facility must be removed or cleaned out when the facility is no longer required for work in the area or when the facility is at 75 percent capacity. To remove or clean the facility, the hardened concrete must be removed and disposed of. Materials used to construct the temporary facility must also be removed and disposed of when they are no longer suitable for use or no longer needed.

iii. Any holes or depressions caused by the creation and use of the facility must be backfilled and repaired and the soil stabilized.

iv. All concrete waste material must be properly discharged.

121.11 Permit Submittal Documents. All documentation which must be submitted with each permit application must be prepared by or under the direct supervision of a Louisiana-licensed landscape architect or a Louisiana-licensed civil engineer and imprinted with such licensed professional's seal. Where special conditions exist, the Director of the Department of Safety and Permits may require additional documents to be prepared by a Louisiana-licensed design professional. All such documentation must be submitted in two or more sets with each permit application and must include the following:

(a) *Project Description.* A summary of existing conditions and proposed stormwater management design.

(b) *Existing Site & Stormwater Drainage Plan.* A site assessment detailing the current drainage conditions on the property. This must include:

(1) Location and boundaries of all existing property lines, lot names, easements or servitudes, or other land divisions for the development site;

(2) Location and boundaries of all adjacent rights-of-way, streets, private roads, drainage rights-of-way, or other features;

(3) Existing drainage areas delineated with flow lines indicating direction of flow;

(4) All above ground and subsurface infrastructure and invert elevations, including but not limited to existing drain lines, culverts, catch basins, headwalls, manholes, and existing SCMs;

(5) Location of all existing roof and yard drains, downspouts, or other features and their connections to SCMs;

(6) Existing topography and any significant topographic features;

(7) Soil classifications; and

(8) All existing buildings, structures, land covers and site features, including but not limited to curb cuts, interior streets, driveways, parking and loading areas, landscaped areas, and lawns.

(c) *Proposed Site & Stormwater Management Plan.* A detailed illustrated plan of the proposed stormwater management site design. This plan must include:

(1) Location and boundaries of all property lines, lot names, easements or servitudes, or other land divisions for the development site;

(2) Location and boundaries of all adjacent rights-of-way, streets, private roads, drainage rights-of-way, or other features;

(3) Proposed drainage areas delineated with flow lines indicating direction of flow;

(4) All proposed above ground and subsurface infrastructure and invert elevations, including, but not limited to, drain lines, culverts, catch basins, headwalls, manholes, and stormwater control measures (SCMs);

(5) Location of all proposed roof and yard drains, downspouts, or other features and their connections to stormwater control measures (SCMs);

(6) Proposed topography and grading plan;

(7) All proposed buildings, structures, land covers and site features, including but not limited to curb cuts, interior streets, driveways, parking and loading areas, landscaped areas, and lawns; and

(8) Sections and details of all proposed stormwater control measures (SCMs) showing depth, dimensions, compositional layers, drainage media, overflows, connections into and out of all drainage related features and project specification in compliance with the Green Infrastructure Toolkit.

(d) *Calculations.* Calculations for pre- and post-development runoff rate, required detention volume and capacity of stormwater control measures (SCMs), and empirically estimated pollutant load calculations completed and provided using the latest version of the City of New Orleans Stormwater Calculator.

(e) *Infiltration Test Results.* All plans must include the results of at least one infiltration test per stormwater control measure (SCM), signed and sealed by a professional engineer or landscape architect licensed in the State of Louisiana, conducted according to the ASTM International C1701 or C1781 standards, as appropriate.

(1) Infiltration test results must be incorporated into the required stormwater management design, including a narrative from the design professional that indicates the test results and identifies compliance with such requirements.

(f) *Operations & Maintenance Plan.* Site-specific operations and maintenance schedule for each stormwater control measure (SCM) including routine maintenance, frequency of inspections, indications of failure, corrective actions (repair and replacement), and a sample inspection report for the site. The operations and maintenance plan must comply with the Green Infrastructure Toolkit maintenance manual.

(g) *Stormwater Pollution Prevention Plan (SWPPP).* Narrative and plans demonstrating appropriate erosion and sediment control during construction including designer specifications for construction to protect best management practices (BMPs), avoid soil compaction, and prevent best management practices (BMP) failure.

(h) *Planting Plan.* When plants, trees, or shrubs are utilized in stormwater control measure (SCM) design.

(i) *End User Awareness Plan.* All developments subject to the Stormwater Code must post permanent informational signage (in accordance with requirements set forth by the Office and Resilience and Sustainability) for the public in prominent internal spaces such as lobbies, public customer areas, public employee areas. Signage must be located near green infrastructure

features, and, at a minimum, provide details on the type of green infrastructure installed, amount of stormwater runoff being maintained, plant types (where applicable), and water quality improvements. For developments that have utilized the fee-in-lieu process described in section 121.13, below, and do not have stormwater infrastructure, signage must educate the public on topics such as, but not limited to, green infrastructure, funding opportunities for green infrastructure, and best practices to manage stormwater. Under no circumstances is a development site exempt from this signage requirement.

121.12 Procedure.

(a) *Application Procedure.* A building permit application for a development site subject to this Stormwater Code must include a stormwater management plan.

(b) *Completeness Review.* Upon receipt and review of all documents required by the Stormwater Code, the Department shall notify the applicant if additional materials are needed to complete the review.

(c) *Review of Plans.* The Department shall notify the applicant of any deficiencies in the proposed stormwater management plan. Failure of the applicant to respond to deficiencies within a period of six months will result in expiration of the building permit application.

(d) *Issuance of Building Permit.* Once a plan has demonstrated compliance with the requirements of the Stormwater Code to the satisfaction of the Director of the Department of Safety and Permits or a representative, the Department shall issue a building permit, provided that all other applicable legal and permitting requirements are satisfied.

(e) *Stormwater Pollution Prevention Plan (SWPPP).* Upon issuance of a building permit and until a certificate of occupancy is issued, the stormwater pollution prevention plan must be implemented on the development site.

(f) *Changes to Approved Plans.* No departure or deviation shall be made from stormwater management plan and supporting documentation, specifications, or description after issuance of the permit unless new information is submitted, approved by the Director of the Department of Safety and Permits and incorporated in the permit. No person may modify, remove, fill, landscape, or alter any stormwater control measures (SCMs) without the written approval of the Director of the Department of Safety and Permits.

(g) *Post-Construction Certification.* Prior to the issuance of a certificate of occupancy, post-construction certification must be obtained in accordance with section 121.15, below.

(h) *Annual Inspection.* Re-certification of all stormwater control measures (SCMs) and associated infrastructure is required on an annual basis in accordance with the Stormwater Code.

(i) *Expiration.* An approved stormwater management plan is deemed invalid:

(1) If the work authorized by the permit is not commenced within six months after its issuance;

(2) If the work authorized by the permit is suspended for more than six months after its issuance; or

(3) If the work authorized by the permit is suspended or

abandoned for a period of six months after the time the work commences.

The expiration period may be extended for one or more periods of not more than 90 days each. The extension must be requested in writing with justifiable cause demonstrated to the Director of the Department of Safety and Permits. The Director of the Department of Safety and Permits may grant an extension, which shall be in writing.

121.13 Fee In Lieu of Compliance.

(a) *Submittal Requirements.* A request to pay a fee in lieu of compliance with the requirements of the Stormwater Code must be filed with the Director of the Department of Safety and Permits and must include:

(1) Documentation of lack of practicability of on-site compliance, including existing and proposed site and stormwater drainage plans;

(2) Calculations for the required volume, existing and proposed runoff rate, and existing and proposed pollutant loads prepared by a Louisiana-licensed landscape architect or professional engineer; and

(3) The estimated and itemized cost of construction, materials and annual maintenance of stormwater control measures (SCMs) that is feasible on-site.

(b) *Approval Standards.* In reviewing fee-in-lieu of compliance applications, the Director of the Department of Safety and Permits or the Director of the Department of Public Works shall consider if stormwater management within the site is achieved to the maximum extent practicable.

(c) *Payment.* Calculation of the fee is based on the per cubic foot volume of stormwater requiring management as provided herein, at the rate established in Section 2-1105 of the Code of the City of New Orleans.

(d) *Condition.* The fee paid in accordance with this section is intended to offset the 1.25-inch detention volume standard. In no event shall the post-development peak runoff rate exceed the pre-development runoff rate for a design storm event.

(e) *Deviations.* Existing development sites where the conditions do not allow runoff from a certain portion of the site to flow into a stormwater control measure (SCM) may apply to manage the entire quantity on a separate portion of the development site (allowing for bypass runoff) or apply for partial fee-in-lieu payment for the volume of stormwater not detained.

121.14 Enforcement of Regulations. The Department of Safety and Permits shall not issue a certificate of occupancy for any development site until its stormwater management plans are certified. Failure to implement the stormwater management plan is cause for the withholding of the certificate of occupancy. The applicant shall maintain all stormwater control measures (SCMs) and associated infrastructure in perpetuity in accordance with the associated maintenance plan or program. The development site owner or authorized agent shall inspect all stormwater control measures (SCMs) and associated infrastructure monthly and shall keep records indicating all maintenance actions required and taken each month. These records may be requested by the Department of Safety and Permits at any time and, once requested, shall be timely provided to the department by the property owner. Failure to maintain compliance with the approved stormwater management plan is cause for the application of fines and penalties, as allowed under City Code. All landscape and stormwater control measures (SCMs) and associated infrastructure must be maintained in conformance with the approved plan, are

subject to periodic inspection by the Department of Safety and Permits and must be recertified annually as required by the Stormwater Code. Failure to maintain the stormwater control measures (SCMs) or certify the stormwater management plan is cause for revocation of the certificate of occupancy, and the application of fines and penalties as allowed under the City Code.

121.15 Fees. There is a fee of $250 for annual certification of stormwater management plans. There is a penalty of $500 for annual recertification of stormwater management plans that have passed the expiration date. Failure to submit plans 30 days after expiration shall subject a property to administrative adjudication with a daily penalty of $500.

121.16 Post-Construction Certification.

(a) *Requirements for Certificate of Occupancy.* The Department of Safety and Permits shall not issue a certificate of occupancy until it receives the following:

(1) Digital as-built plans showing the final design and specifications for all SCMs, the field location, size, depth of all measures, controls, and planted vegetation, and devices, as installed; and

(2) Affidavit signed by the civil engineer or landscape architect of record attesting that the stormwater control measures (SCMs) have been installed in accordance with all approved plans and specifications, and in compliance with all other applicable standards.

(b) *Initial Certification.* Stormwater control measures (SCMs) and associated infrastructure are subject to an initial certification period of 12 months, starting from the date that the department issues a certificate of occupancy for a property with an approved stormwater management plan.

(c) *Annual Certification.* Recertification of all stormwater control measures (SCMs) and associated infrastructure is required annually.

(1) No more than 30 days prior to recertification, a Louisiana-licensed landscape architect or professional engineer, as applicable, shall conduct an inspection of all stormwater control measures (SCMs) and associated infrastructure, and shall certify that the stormwater control measures (SCMs) and associated infrastructure follow the recorded as-built stormwater management plans and designs, and with all other applicable standards.

(2) The property owner shall be eligible to apply for re-certification not more than three months prior to the expiration of the previous certification.

(3) The property owner or operator shall retain detailed records of any maintenance performed on, or changes made to, stormwater control measures (SCMs) and associated infrastructure for review on an as-needed basis.

SECTION 122 - INDEPENDENT STRUCTURAL PEER REVIEW

122.1 General. The purpose of this section is to provide for an independent and objective structural review of a project, conducted by an approved structural engineer, to increase the welfare and safety of the public, users and workers with respect to the finished product. The provisions of this section specify where independent structural peer review is required, how and by whom it is to be performed. These provisions shall become effective on the ninetieth day following adoption of this ordinance.

122.2 Definition of Structure. For the purpose of this section, "structure" includes the

structural frame; the load supporting parts of floors, roofs, walls, and foundations; and other primary structural items.

122.3 Where required. An independent structural peer review of the structure shall be performed and a report provided for the following buildings:

a. Buildings greater than 75 feet in height (measured from grade level to the average height of the highest roof surface); or

b. Buildings where an independent structural peer review is specifically requested by the Building Official.

122.4 Structural Peer Reviewer. The structural peer review shall be performed by a qualified independent structural engineer, to be known as the peer reviewer, who has been retained by or on behalf of the owner of the property. This peer reviewer shall meet specific qualification requirements, including but not limited to, demonstrable experience in the structural design and/or peer review of structures similar in scope and complexity. The Department of Safety and Permits shall establish a qualification program for peer reviewers and compile a list of such persons from which the property owner shall select. The peer reviewer shall not engage in any activities that may conflict with their objective judgment and integrity, such as having a financial and/or other interest in the design, construction, installation, manufacture or maintenance of structures or components that they are reviewing.

122.5 Scope of Structural Peer Review. The peer reviewer shall review the plans and specifications submitted with the original permit application, and all subsequent revisions thereto, for compliance with the structural and foundation design provisions of the Building Code and all related structural codes and technical standards. At a minimum, the peer reviewer shall perform the following tasks:

a. Confirm that the design loads conform to this Code;

b. Confirm that other structural design criteria and design assumptions conform to the applicable codes and are in accordance with generally accepted engineering practice;

c. Review geotechnical and other engineering investigations that are related to the foundation and structural design and confirm that the design properly incorporates the results and recommendations of the investigations;

d. Confirm that the structure has a complete load path;

e. Perform independent calculations for a representative fraction of the systems, members and details to check their adequacy. The number of representative systems, members and details verified shall be sufficient to form a basis for the reviewer's conclusions;

f. Verify that the design engineer of record complied with the structural integrity provisions of the applicable codes;

g. Verify that performance-specified structural components (such as certain precast concrete elements) have been appropriately specified and coordinated with the primary building structure;

h. Review the structural and architectural plans for the building. Confirm that the structural plans are in general conformance with the architectural plans regarding loads and other conditions that may affect the structural design;

i. Confirm that major mechanical items are accommodated in the structural plans;

j. Confirm that all items within the definition of "structure" under Section 122.2 are in accordance with the applicable codes; and

k. Attest to the general completeness of the structural plans and specifications.

122.6 Structural Design Criteria. If the design criteria and design assumptions are not shown on the drawings or in the computations, the structural engineer of record shall provide a statement of these criteria and assumptions for the reviewer. In addition, the structural calculations prepared by the structural engineer of record shall be submitted to the peer reviewer upon his/her request.

122.7 Structural Peer Review Report. The peer reviewer shall submit a report to the Department of Safety and Permits stating whether or not the structural design shown on the plans and specifications generally conforms to the structural and foundational requirements of the applicable codes. The report shall demonstrate, at a minimum, compliance with items (a.) through (k.) of Section 122.5. In addition, the report shall also include the following:

a. The codes and standards used in the structural design of the project;

b. The structural design criteria, including loads and performance requirements; and

c. The basis for design criteria that are not specified directly in applicable codes and standards. This should include reports by specialty consultants such as wind reports and geotechnical reports. Generally, the report should confirm that existing conditions at the site have been investigated as appropriate and that the design of the proposed structure is in general conformance with these conditions.

122.8 Phased Submission. If an application is submitted for a permit for the construction of foundations or any other part of a building before the construction documents for the whole building have been submitted, the peer review and report shall be phased. The peer reviewer shall be provided with sufficient information on which to make a peer review of the phased submission, in accordance with this Chapter.

122.9 Response to reviewer recommendations and disputes. The contents of the peer review report shall be presented to the structural engineer of record and the owner of the property before being submitted to the Department of Safety and Permits. The structural engineer of record must respond to any recommendations presented in the report, but is not obligated to agree with them. If the structural engineer of record and the peer reviewer are unable to resolve all differences, the structural engineer of record must document any disagreements for submission to the Department of Safety and Permits. Upon review, the Department may make a decision or may accept a change of the peer reviewer; however, the peer reviewer cannot be changed without the express consent of the Department. If a request is made for a change of the peer reviewer prior to completion of the peer review report, the current peer reviewer shall submit a written letter to the Director of Safety and Permits detailing the circumstances surrounding the withdrawal request and a report of the peer review findings to date.

122.10 Responsibility. The structural engineer of record shall retain sole responsibility for the structural design. The activities and reports of the peer reviewer shall not relieve the structural engineer of record of this responsibility. The peer reviewer's report states his or her opinion regarding the design by the structural engineer of record. The standard of care to which the peer reviewer shall be held in the performance of the peer review and report is that the level of skill and care are consistent with structural peer review services performed by professional engineers licensed in the State of Louisiana for similar types of projects.

122.11 Promulgated rules to effectuate intent. The Department of Safety and Permits shall promulgate regulations needed to effectuate the intent of this section in accordance with Section 2-1000 of the Code of the City of New

Orleans and submit such regulations to the City Council for approval no later than ninety days after adoption of this ordinance.

SECTION 123 - OBSERVATION BY PROFESSIONALS OF RECORD

123.1 General. The purpose of this section is to provide for periodic physical observation of work by the engineer of record, or a certified third party engineer retained by or on behalf of such engineer, throughout the construction period. These provisions shall become effective on the ninetieth day following adoption of this ordinance.

123.2 Applicability. The provisions of this section shall apply to the new construction of any commercial structure, regardless of size, and to any residential structure taller than three floors.

123.3 Required observations. Wherever the applicable construction codes or city policies require observation or inspection of such projects included in Section 123.2, the engineer of record for that particular function, or a certified third party engineer retained by or on behalf of the engineer of record, shall physically observe the premises and report his or her findings to the Department of Safety and Permits. The Department shall not approve an observation absent a favorable observation by the pertinent engineer. The Department of Safety and Permits shall approve the use of a third party engineer for such observation, and in any event, the engineer of record shall sign off on an observation conducted by his or her representative. Observations mandated by this section are intended to supplement those observations, inspections, and approvals provided by City inspectors, to ensure that work is completed according to design.

123.4 Promulgated rules to effectuate intent. The Department of Safety and Permits shall promulgate regulations needed to effectuate the intent of this section in accordance with Section 2-1000 of the Code of the City of New Orleans and submit such regulations to the City Council for approval no later than ninety days following adoption of this ordinance.

CHAPTER 2
DEFINITIONS

Building Official: The Director of the Department of Safety and Permits, or his duly authorized representative or employee.

CHAPTER 4
SPECIAL DETAILED REQUIREMENTS BASED ON USE AND OCCUPANCY

SECTION 425 - TENTS

425.1 Permit Required. Tents, with an area up to 150 sq. ft. and not located in the inner city fire limits, require only a Certificate of Compliance from Fire Prevention. Tents, with an area exceeding 1,200 sq. ft. and all tents located in the inner city fire limits, require a certificate of compliance from the Fire Department and a Building Permit from the Department of Safety and Permits. Tents shall conform to Section 3103 of the International Fire Code.

SECTION 426 - PREFABRICATED AND MODULAR BUILDINGS

426.1 Scope. This section covers the installation of prefabricated and modular buildings within the City of New Orleans.

426.2 Definition. Structures transportable in one or more sections and which are built on a permanent chassis shall be considered as prefabricated and/or modular buildings.

426.3 General. Prefabricated and Modular Buildings shall be designed with a permanent foundation and must comply with the provisions of this code. It shall be the duty of the permit applicant to provide a label or seal of compliance with the provisions of this code, issued by an agency approved by the City of New Orleans. In the alternative, the permit applicant shall cause the work to be accessible and exposed for inspection purposes. The permit applicant is responsible for expense entailed in the removal or replacement of any material required to allow inspection.

426.4 Construction Documents. One digital set of construction documents prepared by a Louisiana Registered Architect or Civil Engineer shall be submitted to the depart-

ment along with an application for a permit. Construction documents shall include, among other things, plans, elevations, sections, foundation details, construction benchmark etc. The construction documents shall be drawn to scale and shall be of sufficient clarity to indicate the location, nature and extent of the proposed work and show in detail that the prefabricated and/or modular building will conform to the provisions of this code. All Prefabricated assemblies installed in the City of New Orleans shall either be thoroughly opened up for inspections by City Inspection Bureaus such as Electrical, Building etc., or have to be inspected and certified by one of the third party agencies approved by the City of New Orleans, for compliance with all applicable codes. The City approved third-party agencies are, any agencies listed by ICC-ES.

SECTION 427 - FENCES

427.1 Fences—General. Fences, walls, and other structures erected to physically separate or secure properties shall be constructed of a quality to ensure structural integrity. A maximum spacing of eight (8) feet shall be maintained for all vertical posts unless otherwise designed by a licensed professional and approved by the Director as permitted by law. Structural posts shall be embedded in concrete. Use of scrap materials for fencing, walls, or other barriers is not permitted.

427.2 Security Fencing. No razor wire, barbed wire, barbed tape or any other similar security fencing material or product shall be permitted in residential districts. No security style fencing shall per permitted within five (5) feet of an adjacent right-of-way or municipal easement. Any security fencing materials must be affixed with a minimum clearance of eight (8) feet from any sharp edge or point to adjacent grade below.

427.3 Electrified Fencing. As per Section 2741 of this code, no fence shall be electrified in the City of New Orleans.

CHAPTER 9
FIRE PROTECTION SYSTEMS

SECTION 917 - HYDRANTS, WATER MAINS & FIRE LANES

917.1 Fire Protection on Private Property. Requirement for fire hydrants, water mains, fire lanes and driveways for the use of fire apparatus to combat fires on private property shall be installed in the following developments and land uses as specified below:

1. Residential land use developments involving 2 acres or more.
2. Medium and High Density Residential Land Uses.
3. Large Scale Commercial Land Use Development involving 2 acres or more.
4. Large Scale Industrial Land Use Development involving 2 acres or more.
5. Light Industrial and Heavy Industrial Land Uses.
6. New Subdivisions in excess of five building sites.
7. New Subdivisions or Re-subdivisions requiring additional streets.
8. Conditional land uses when approved by the Fire Department and International Plumbing Code.
9. Any Private Development, land and buildings and containing 2 acres or more that does not already have public streets, water mains and fire hydrants.
10. Campus development involving two acres or more.

917.2 Detail Requirements. All firefighting systems required by this Code shall comply in all respects with:

1. International Fire Code, 2021 as amended by the City of New Orleans.
2. International Plumbing Code, 2021, as amended by the City of New Orleans.

3. Requirements of the Sewerage and Water Board which include but are not limited to:
   (a) Connection to the public water supply, all connections to be made with a detector check valve, furnished and installed by the Sewerage and Water Board, the cost of installation charged to the applicant.
   (b) If domestic water is also taken off the fire main, full-flow meters will be installed in lieu of the detector check valve.
   (c) Granted Servitudes as required by the Sewerage and Water Board for servicing of water mains and fire hydrants which are to be installed according to the Sewerage and Water Board's specifications and the above code requirements.

917.3 Furnish layout plans for approval.

917.3.1 Plans shall be drawn to scale and shall include, but are not limited to, the following essential details:

1. The scale shall conform to the following:
   1.1 Projects containing more than 200 acres, not more than 200 ft. to one inch.
   1.2 Projects containing 50 acres to 200 acres, not more than 100 ft. to one inch.
   1.3 Projects containing less than 50 acres, not more than 60 ft. to one inch.
   1.4 Projects containing 10 acres or less, not more than 50 ft. to one inch.
2. Size and location of water supply.
3. Size and location of all mains, the class and type of mains to be installed and the depths to which it is to be buried.
4. Size, type and location of all meters and valves.
5. Number and size of hose outlets, thread detail, setting grade and location of all hydrants.
6. Location and size of sprinkler and standpipe risers supplied by the system.
7. Fire lane and driveway widths and turning radius.

917.4 Water Distribution System. Water mains shall conform to the Specifications and/or International Plumbing Code, and the applicable provisions of the codes and requirements mentioned herein.

917.4.1 Sizing of water mains. The following is adopted minimum size of water mains along with other provisions to be used for fire hydrant supply:

1. Large Scale Commercial and Industrial Land Use Developments (includes campus developments):
   1.1 12-in or larger mains can be used as a loop system around the area and shall be supplied by separate feeder mains.
   1.2 8-in mains can be used within the area when it completes a gridiron to be supplied by 12-in or larger mains at each end.
   1.3 Adjustment in main size above 12 in shall be made when additional fire flow is required for sprinklers, standpipes and special protective equipment for hazardous occupancy or processes.
2. Heavy Industrial Land Uses:
   2.1 12 inch mains to be used throughout.
   2.2 Adjustment in main size to above 12 in. to be made when additional fire flow is required.
3. Low, Medium and High Density Residential Land Uses: Large Scale

Residential Land Use Developments (except when located in the Inner Fire Limits):

3.1 8-in or larger mains to be used when supplied by at least two 8-in or larger feeders, separated from each other and when it completes a gridiron not exceeding 600 ft. to the side with a hydrant at each corner and intermediate hydrant between corners. However, the 6 inch mains are not to be dead-ended.

4. Requests for variations from the above specified sizes may be approved by the Director provided such requests are accompanied by engineering design calculations for the intended land use prepared by a Louisiana Registered Engineer experienced in such work.

917.5 Fire Flow. Fire flow at a residual pressure of 20 psi is required with the following flows:

1. Low and medium density (one and two family) residential land uses 1,000 to 2,500 gpm. Distribution based on ratio of one hydrant to each 150,000 to 140,000 sq. ft. of average area served.

2. Large scale residential land use development 1,500 to 3,500 gpm. Distribution based on ratio of one hydrant to each 140,000 to 120,000 sq. ft. of average area served.

3. Medium and high density (apartments) residential land uses 3,500 to 4,000 gpm. Distribution based on ratio of one hydrant to each 120,000 to 110,000 sq. ft. of average area served.

4. All commercial land uses including campus development. (except those within the Inner Fire Limits) 3,500 to 4,000 gpm. Distribution based on ratio of one hydrant to each 110,000 to 100,000 sq. ft. of average area served.

5. Light industrial land uses and large scale industrial land use developments 4,000 to 8,000 gpm. Distribution based on ratio of one hydrant to each 100,000 to 60,000 sq. ft. of average area served.

6. Heavy industrial land uses 8,000 to 12,000 gpm. Distribution based on ratio of one hydrant to each 60,000 to 40,000 sq. ft. of average area served.

7. Additional fire flow is required in excess of the specified fire flow for extra hazardous occupancy, processes or conditional uses.

917.6 Fire Hydrants. Hydrants shall meet the specifications of the Sewerage and Water Board.

917.6.1 Type of Hydrant. Hose outlets size and threads to conform to the hose connections used by the Sewerage and Water Board.

917.6.2 Hydrant Spacing. Hydrants shall be spaced as indicated below:

1. Hydrants should be located no closer than 50 ft. from buildings in industrial districts. In other districts hydrants shall be located where the chance of fire and falling walls would not endanger hydrants.

2. Spacing shall not be more than 350 ft. apart in residential districts.

3. In industrial areas and shopping centers, hydrants shall be located to permit all sides of the building to be reached by a hose lay not in excess of 300 ft.

4. In multiple housing developments, commercial districts and large scale developments, hydrants shall be located to permit all sides of the building to be reached by a hose lay not in excess of 400 ft.

917.6.3 Hydrant Setting. Hydrants shall be protected from mechanical injury and shall be installed as indicated below:

1. Hydrant settings, center of hose outlets should be not less than 18 in above the final grade line.
2. Hydrant locations shall not be less than 18 in nor more than 30 in from the curb of a street or driveway, have no obstructions within 15 ft. on each side and shall be accessible so fire department pumpers can be connected with no more than 15 ft. of hose.

917.7 Fire Lanes. Fire lanes as indicated below shall be provided for Fire Department access.

917.7.1 Low Density Residential Development. Every part of a structure must be accessible from a street or highway, with a maximum of 150 ft. of hose in a low density Residential Development. In instances where the maximum hose lay is exceeded, specific plans of the structure and its location must be reviewed and approved by the Department of Fire.

917.7.2 Other Developments. In all other residential districts, commercial and industrial developments, and large scale developments, no building of any type construction for any occupancy shall be constructed, unless every part of the structure is accessible from a street or highway with 150 ft. of fire hose, or provided that said structure may be erected at a greater distance if fire lanes are constructed as designated by this Code requirement.

917.7.3 Detail Requirements.

1. Fire lanes shall be located from whichever portion of any structure can be reached with 150 ft. of fire hose. Private streets, built in accordance with the regulations of City of New Orleans, Department of Public Works, Standard Plans and Specifications, may be considered as fire lanes.
2. Any such fire lanes more than 100 ft. long, shall either connect at both ends to a dedicated street or be provided with a turn-around having a minimum radius of 50 ft.; or other circulation system approved by the Department of Fire.
3. Fire lanes shall have a minimum width of 20 ft. and a minimum height clearance of 14 ft.
4. Fire lanes and road surfaces shall be constructed in accordance with the regulations of the City of New Orleans, Department of Public Works, Standard Plans and Specifications.

CHAPTER 11
ACCESSIBILITY

SECTION 1101.1

These provisions are not applicable in areas where State mandated accessibility requirements are in effect.

CHAPTER 16
STRUCTURAL DESIGN

SECTION 16

1609.2 Protection of Openings. Level 3 Renovations under the International Existing Building Code must be in compliance with the International Building Code requirements for Protection of Openings.

CHAPTER 18
SOILS AND FOUNDATIONS

SECTION 1811 - SPECIAL PROVISIONS FOR THE CITY OF NEW ORLEANS

This Section offers provisions associated with the design and construction of foundations. However, it does not and cannot replace education or experience, and it must be used in conjunction with professional judgment. Not all aspects of this Section may be applicable in all circumstances. The provisions of this Section are not intended to represent or replace the standard of care by which the adequacy of a given professional service must be judged,

nor should the provisions be applied without consideration of a project's many unique aspects.

1811.1 GENERAL. Foundation analysis and design in the City of New Orleans shall be conducted in conformance with Section 1813. Where there is conflict between a requirement of Section 1813 and a requirement of another section of the International Building Code (IBC), the requirement of Section 1813 shall govern.

1811.2 GEOTECHNICAL INVESTIGATION

1811.2.1 Foundation capacity shall be determined by geotechnical investigation unless otherwise provided for in section 1811. The geotechnical investigation shall be performed under the direction of a Louisiana Registered Civil Engineer experienced in geotechnical engineering. The geotechnical investigation shall consist of undisturbed soil borings and laboratory tests or other applicable methods and procedures to define subsurface conditions. The type and extent of the subsurface investigation program shall be consistent with generally accepted geotechnical engineering practice, and it shall be influenced by the importance, type, size, planned grade changes, and location of the proposed construction.

1811.2.2 An engineering analysis shall be made by a Louisiana Registered Civil Engineer experienced in geotechnical engineering that establishes information applicable to the design and construction of the foundation. This information includes the allowable soil bearing capacity, allowable pile or pier capacity, depth of foundation, expected movements (settlement, heave, etc.), depth to groundwater, and other items related to foundation design and construction.

Data required for 1811.2.2 shall be obtained from a minimum of:

1. One (1) soil boring (or equivalent) for structures two stories or less and 10,000 sq. ft. or less of ground floor area.
2. Two (2) soil borings for other structures greater than 10,000 sq. ft. and less than or equal to 15,000 sq. ft. or less of ground floor area.
3. One (1) soil boring for each additional 15,000 sq. ft. of ground floor area.

Deviations from the above may be allowed by the Director if supported by adequate geotechnical data.

1811.3 FOUNDATIONS

1811.3.1 Foundations shall be supported on piles unless an engineering analysis from a Louisiana Registered Civil Engineer experienced in geotechnical engineering is provided. Such analysis would indicate the suitability of a spread foundation and establish allowable soil bearing capacity. Foundations shall be constructed of masonry, plain concrete, reinforced concrete, or of pile or pier materials described in Section 1811.

1811.3.2 Any person or entity contemplating foundation construction that may make use of, be adjacent to, or involve public property shall determine in advance of construction the existence of public or private underground or overhead utilities that may be occupying said public property. Such person shall secure the proper approval from public and private agencies concerned and shall observe all precautions necessary to avoid damage or disturbance to said utilities (telephone, telegraph, cable, fiber optic, sewerage, drainage, water, gas, electricity and the like).

1811.3.3 Temporary buildings (See Section 107) and buildings not exceeding one story in height and no more than 500 sq. ft. in area or which otherwise do not require a permit under this code shall be exempt from these requirements.

1811.4 SPREAD FOUNDATIONS

1811.4.1 Design

1811.4.1.1 Spread foundations shall be constructed on suitable naturally occurring soil or on properly selected, placed, compacted, and controlled structural (engineered) fill. When structural fill is used, the in-place

density and moisture content shall be independently verified by testing during construction. Footings are to be designed so that the allowable bearing capacity of the soil shall not be exceeded and the anticipated movements shall be within tolerable limits for the planned structure. The bottom of a spread foundation shall be at least 12 in. below the undisturbed ground surface.

1811.4.2 Soil Bearing Capacity

1811.4.2.1 The Director may accept the allowable soil bearing capacity established by the engineering analysis in 1811.2.2 as meeting the minimum requirements. Such analysis shall be performed by a Louisiana Registered Civil Engineer experienced in geotechnical engineering.

1811.4.2.2. The Director may accept other adequate proof as to the allowable soil bearing capacity at a particular location.

1811.4.3 Differential Settlement

1811.4.3.1 Where footings are supported by soils of widely different bearing capacity, differential settlement can occur. Therefore, the allowable bearing values of the more yielding soil shall be reduced or special provisions shall be made in the design to reduce the likelihood for excessive or structurally intolerable differential settlements to occur.

1811.4.4 Excavations

1811.4.4.1 When excavating for buildings and/or associated structures, such excavations shall be made safe to prevent danger or damage to life and property. Permanent excavations shall have retaining walls of sufficient strength made of steel, masonry, reinforced concrete, mechanically stabilized earth, or other suitable materials to retain embankments, together with any surcharge loads. Excavations for any purpose shall not extend within 1 ft. of the angle of repose or natural slope of the soil under any footing, foundation, or load-bearing element, unless such footing, foundation, or load-bearing element is first properly underpinned or protected against movement.

1811.5 PILE FOUNDATIONS

1811.5.1 Design

1811.5.1.1 All pile foundations shall be designed by a Louisiana Registered Civil Engineer. Piles shall be designed to include all applied weights and forces including the weight of mats or caps and the weight of earth or fill on top of the mats or caps considering the effect of buoyancy; the weight of the piles shall be given due consideration in the foundation design. In cases where piles are loaded eccentrically, provisions shall be made for such eccentricities. Further analyses should be performed for laterally loaded piles or piles subjected to dynamic loading (machinery, etc.). Consideration also should be given in design to the influence of negative skin friction (downdrag) on foundation performance.

1811.5.1.2 Except for lightly loaded piles (as defined elsewhere in Section 1811) where the minimum spacing is 2 ft., the minimum pile spacing for all other piles shall be either 3 ft., or three pile diameters (widths), or as determined by the expression:

$SPAC = 0.05 (L_1) + 0.025 (L_2) + 0.0125 (L_3)$, in which:

SPAC = Center-to center spacing of piles, ft.

L_1 = Pile penetration up to 100 ft.

L_2 = Pile penetration from 101 to 200 ft.

L_3 = Pile penetration beyond 201 ft.

1811.5.1.3 Greater spacing than the minimum value may be required to satisfy group perimeter shear as provided in 1811.5.3.1 and to assure that piles will not interfere with or intersect each other during installation.

1811.5.1.4 Piles extending above the ground surface, surrounded by relatively weak soil, or standing in free water, that are used as load-carrying members, shall be designed structurally in their unrestrained length in accordance with applicable column formulas as referenced in the IBC; due consideration to effective unsupported length must be given. Location of pile fixity shall be determined with due regard to soil properties.

1811.5.1.5 Where subsurface investigation records or site conditions indicate possible deleterious action of pile materials because of soil constituents, changing water levels, electrolysis, corrosion, or other factors, such materials shall be adequately protected. The effectiveness of such methods of processes for the particular purpose shall have been thoroughly established by satisfactory service records or other evidence that demonstrates the effectiveness of such protective measures. Cutoff of untreated timber piles shall not be higher than the lowest groundwater level anticipated for the life of the structure as determined by an engineering investigation based on established data, but in no case shall the cutoff be less than 7 ft. below the natural ground surface. Structural steel piles driven below the permanent water table and into natural soil need not be protected against electrolysis and/or corrosion unless previous site history or field conditions warrant otherwise.

1811.5.1.6 The design and installation of pile foundations shall be under the direct supervision of a Louisiana Registered Civil Engineer who shall certify to the Director that the piles, as installed, satisfy the design criteria.

1811.5.1.7 Pile foundations shall be designed and installed on the basis of a geotechnical investigation and report which shall include soil borings and laboratory tests or other subsurface exploration at locations and depths sufficient to determine the position and adequacy of the bearing soils except where sufficient data upon which to base the design and installation is available. The investigation and report shall include, but not be limited to, the following:

1. Descriptions of the soil and groundwater conditions.
2. Recommended pile types and predicted capacities.
3. Pile installation criteria.
4. Field observation procedures.
5. Probe piles and pile load test requirements.
6. Designation of bearing stratum or strata.
7. Estimated movements (settlement, heave, etc.)
8. Other applicable installation and performance considerations such as: lateral capacity, dynamic loads, vibrations, downdrag, fill placement, groundwater lowering, etc.

1811.5.1.8 Allowable stresses greater than those specified for each pile type in this Code may be permitted when supporting data justifying such higher stresses are filed with the Director.

1811.5.2 Pile Load Capacity for a Single Pile

1811.5.2.1 Pile Load Test Case. The pile load testing procedure for a single pile shall be conducted in general accordance with ASTM D 1143 under the direction of a Louisiana Registered Civil Engineer. It is required to notify the Director in writing prior to conducting pile load tests. The load-carrying capacity for a single pile in compression shall be established by any of the following methods:

Method 1: When the total test load applied equals twice the proposed load capacity for a single pile, it shall be left in place at least 48 hr., the last 24 hr. of which shall be free from settlement. If after deducting rebound following the total release of this load, the net settlement at the top of the pile does not exceed 0.01 in. per ton of total test load, the pile shall be considered adequate to support the proposed load capacity for a single pile.

Method 2: Where the pile is loaded to failure, the loading value where the load settlement curve begins to show an accelerated deviation from its previous trend may be considered the "yield point" for the given soil and pile. One-half of this value or one-half of the value at which the net settlement is estimated as ½ in., whichever is smaller, shall be considered as the allowable load capacity for a single pile.

Method 3: The failure load of a pile, one-half of which shall be used as the allowable load capacity for a single pile, shall be defined as that load which produces a settlement or movement of the tip equal to ¼ inch. The movement of the tip can be determined by actual measurement or by either of the following two load distribution cases, both involving the measurement of the butt movement. In each case, the failure load shall be defined as that load producing a movement of the butt equal to the elastic deformation of the pile under the failure load plus ¼ inch.

1811.5.2.2 Arbitrary Load Distribution Case. In determining the elastic deformation of the pile, the assumption may be made that the soil-pile friction value is constant from tip to butt and that tip bearing is ignored. For a prismatic pile of one material, the butt movement shall be calculated by the expression:

$D_f = (P_f L / AE) + 0.25$ in., in which:

D_f = Butt movement, in.

P_f = Failure load, kips

L = Pile length, in.

A = Pile cross-sectional area, sq. in.

E = Modulus of elasticity of pile material, ksi.

1811.5.2.3 Actual Load Distribution Case. In determining the elastic deformation of the pile, the actual distribution of stress into the soil may be used provided that sufficient soil data have been obtained.

1811.5.2.4 A variation of the load capacity of a load-tested pile shall be allowed without additional load tests provided that the load capacity is derived primarily from skin friction. The change in load capacity for a single pile may be increased by not more than 20% with an increase in length of 20%. A decrease in length of not more that 10% may be accompanied with a decreased in capacity of 20%. Such stipulation shall be made in writing by a Louisiana Registered Civil Engineer experienced in geotechnical engineering if the pile foundation will be subject to downdrag forces, lateral loads, vibration loads, etc.

1811.5.2.5 Where the number of piles required for a structure is 100 or less, the load per pile does not exceed 150 psf of embedded pile area, and the actual pile penetration into the supporting soil is not less than 40 ft., the Director may waive, upon specific request, the load test requirements. The basis for such a waiver shall be data developed by the geotechnical investigation and geotechnical engineering analysis (see 1811.2 and 1811.5.1.7). The allowable load on a single pile shall not exceed the value determined by the geotechnical engineering analysis.

1811.5.2.6 The Director may, upon specific request, accept as adequate proof of the load capacity of a single pile, load test results from other piles subject to all of the following conditions.

1. The previously load-tested pile must be located within 300 ft. (measured in any direction) from the new pile in question, but not to exceed 500 ft. to the farthest footprint of the building or structure.
2. The load test(s) must have been performed on the same type and length of piles that are to be used at the new location.
3. Adequate soil information (see 1813.2 and 1811.5.1.7) establishes the geotechnical similarity of the soils at each location. The variations described in 1811.5.2.4 shall not be permitted in conjunction with this provision.

1811.5.3 Pile Group Capacity

1811.5.3.1. The supporting value of piles depending primarily on friction when driven in clusters or groups may be investigated on the basis of group perimeter shear by the expression:

$Q_a = (PLc / FS_F) + [2.6q_u (1 + 0.2\ w/b)] / FS_B$, in which:

Q_a = Allowable load-carrying capacity of pile group, lb.

P = Perimeter distance of pile group, ft.

L = Length of pile, ft.

C = Average (weighted) cohesion or shear strength of material between the surface and the depth of the pile tip, psf.

$_u$ = Average unconfined compressive strength zone below pile tips, psf; the thickness of the zone shall consider the pile group size and shape, as well as the soil stratigraphy and soil properties.

W = Width of base of pile group, ft.

B = Length of base of pile group, ft.

A = Base area of pile group, sq. ft.

FS_F = Factor of safety for the group friction area = 2

FS_B = Factor of safety for the group base area = 3

1811.5.3.2 The soil properties (c and qu) used in the above formula shall be based on data obtained from the geotechnical investigation as described in 1811.2 and 1811.5.1.7. In the application of this formula, the weight of the piles, pile caps and mats, considering the effect of buoyancy, shall be included.

1811.5.4 Pile Splices

1811.5.4.1 Splices shall be such that the resultant vertical and lateral loads at the splice location are adequately transmitted. Splices shall be so constructed as to provide and maintain the joint integrity and position of the component parts of the pile during installation and in service.

1811.5.4.2 Technical data shall be submitted to the Director to substantiate the suitability of the splice(s) for the proposed application.

1811.5.4.3 The Director shall maintain a file of permitted splices so that repetitive submissions of technical data will not be necessary, unless factors involving a particular application so warrant.

1811.6 WOOD-CONCRETE COMPOSITE PILES

1811.6.1 Definition. A wood-concrete composite pile is defined as a pile having an untreated timber pile lower section and a steel cased cast-in-place concrete upper section. The butt of the untreated lower section shall be located in accordance with the requirements of 1811.5.1.5. The two sections shall be jointed by a mechanical connector approved by the Director.

1811.6.2 Materials. The timber section shall conform to the requirements of this Code; the concrete portion of the steel-cased cast-in-place concrete upper section also shall conform to the requirements of this Code. The steel casing shall be a minimum of 11-in. I.D. and sufficiently water tight to exclude water and foreign matter intrusion during concrete placement. The connector shall be manufactured or fabricated of structural grade steel and shall consist, in general, of a drive-shoe of 12 ga or thicker material that is firmly attached to the steel casing. The drive-shoe shall be capable of penetrating a minimum of 4 in. into the timber section.

1811.6.3 Allowable Stresses. The allowable unit stresses in the timber section shall conform to the requirements of the Code. The allowable unit stresses in the concrete of the steel-cased cast-in place concrete upper section also shall conform to the requirements of this Code. The concrete in the steel-cased case-in-place concrete upper section shall have a minimum design compressive strength (f'c) at 28 days 2,500 psi as measured on concrete cylinders made, stored, and tested in general accordance with ASTM procedures. The wood-concrete composite pile shall not be designed for single pile capacity in excess of 25 tons in compression nor shall it be designed for tension (uplift) loads.

1811.6.4 Splices. Except as provided for in this Section, the pile splice connector shall conform to the requirements of 1813.5.4. The splice shall withstand a minimum moment capacity of 4 ft.-kips, with no applied axial load. The splice shall withstand a minimum tensile force of 10 tons.

1811.6.5 Construction Considerations. After installation to final depth and immediately before filling with concrete, it should be veri-

fied and documented that the inside of the steel casing is clean from top to bottom and that it is not collapsed or otherwise damaged. Any accumulated water or other foreign matter in a casing shall be removed before placing the concrete. Concrete should not be placed until all piles within a radius of 40 ft. have been driven, or the driving within a 40-ft. Radius shall be discontinued until the concrete has been placed and adequate strength has developed. The concrete placed in the casing does not need to be vibrated, but care shall be taken in placing concrete to prevent the formulation of voids. High-slump concrete that is properly designed and proportioned may be used.

1811.7 HIGH-CAPACITY PILES

1811.7.1 General. This Section addresses prestressed concrete and steel piles that have allowable load capacities greater than 40 tons. These special provisions apply only to the transfer of stress into the pile caps. At the option of the Louisiana Registered Civil Engineer responsible for the foundation design, the use of high-capacity piles may be used, in which event, all applicable provisions of this Section shall apply.

1811.7.2 Precast Concrete Piling. The load from the pile shall be transferred to the concrete foundation over the area of the pile butt provided that:

1. An allowable working stress of 0.80 fc in the concrete foundation is not exceeded.
2. The distance from the centerline of the pile to the edge of the concrete foundation is at least 1.5 times the pile width or diameter, but not less than 2ft 6 inches.
3. The minimum f' c of the concrete foundation is 3,000 psi.
4. The minimum embedment of the pile into the concrete foundation is 6 inches.
5. Two-way continuous reinforcement is placed a minimum of 2 in. above the pile butt and its area per lineal foot in each direction shall be at least equal to the design pile load in kips divided by 3 times the yield stress of the reinforcement in kips per square inch.

1811.7.3 Steel Piling. In the case of steel piling, the load of the pile shall be transferred to the concrete foundation in either of two ways.

1. By bearing through a steel cap plate of a least the same dimension as the pile secured to and properly bearing on the pile butt and into the concrete mat foundation provided that:
   - 1.1 An allowable working stress of 0.80f'c in the concrete foundation is not exceeded.
   - 1.2 The distance from the centerline of pile to the edge of the concrete foundation is at least 1.5 times the pile width or diameter, but not less than 2 ft. 6 inches.
   - 1.3 The minimum fc of the concrete foundation is 3,000 psi.
   - 1.4 The minimum embedment of the pile into the concrete foundation is 6 inches.
   - 1.5 Two-way continuous reinforcement is placed a minimum of 2 in. above the pile butt and its area per lineal foot in each direction shall be at least equal to the design pile load in kips divided by 3 times the yield stress of the reinforcement in kips per square inch.
2. By direct transfer from the pile into the concrete foundation provided that:
   - 2.1 An allowable working stress of 12,000 psi in the concrete foundation is exceeded.
   - 2.2 The minimum concrete foundation thickness is 3 feet.
   - 2.3 The distance from the centerline of pile to the edge of the

concrete foundation is at least 1.5 times the pile width or diameter, but not less than 2 ft. 6 inches.

2.4 The minimum fc of the concrete foundation is 3,000 psi.

2.5 The minimum embedment of the pile into the concrete foundation is 6 inches.

2.6 The maximum thickness of the pile material is 5/8 inches.

2.7 Two-way continuous reinforcement is placed a minimum of 2 in. above the pile butt and its area per lineal foot in each direction shall be at least equal to the design pile load in kips divided by 3 times the yield stress of the reinforcement in kips per square inch.

1811.8 ALTERNATIVES

1811.8.1 For either concrete or steel piling, any other approach following a rational analysis using accepted rules and theories of engineering mechanics and strength of materials, as well as recognized allowable stresses of materials as referenced in this Code shall be submitted to the Director for evaluation and approval.

1811.9 SPECIAL PILES AND SPECIAL CONDITIONS

1811.9.1 Pile types not specifically mentioned in Section 1813, including piles used to underpin and relevel existing structures, and piles under conditions not specifically covered in Section 1811, shall be permitted. The use of such piles is subject to the approval of the Director, upon submission of acceptable test data, calculations, and other information relative to the properties and load-carrying capacity of such piles. Test data shall consists of at least five (5) consecutive field tests which shall include, but shall not be limited to, the driving, loading, extraction, and examination of the piles. The calculations shall follow rational engineering analysis and they shall be performed by a Louisiana Registered Civil Engineer.

1811.10 COMBINATION PILES

1811.10.1 Individual segments of a combination pile shall comply with the requirements for piles of that type of section. Splices shall be in accordance with the requirements of 1813.5.4.

1811.11 LIGHTLY LOADED PILES

1811.11.1 General Requirements. For purposes of this document, a lightly loaded pile shall conform to the provisions of 1813.11.2. Lightly loaded piles shall comply with all applicable requirements of this Section except as provided in this Section. Piles shall be properly held in place or adequately tied together at their butt end. Pile butts shall be protected by a minimum of 3 in. of concrete around their perimeter. All piles for a building or structure shall extend to the same tip penetration and bear in the same stratum unless adequate provisions for differential settlement within the building or structure have been made. The Director shall be notified by the party installing the piles at least 24 hr. in advance of any pile driving.

1811.11.2 Size Requirements. Except as provided in this Section, timber piles depending predominantly on skin friction for their load-carrying capacity shall have a minimum tip diameter of 6 in. and a minimum butt diameter of 8 inches. Timber piles depending predominantly on tip bearing (end bearing) for their load-carrying capacity shall have a minimum tip diameter of 6 in. with a natural taper to the butt. Piles for accessory buildings 1,000 sq. ft. or less in area shall be treated timber piles having a minimum 4-3/4 in. tip diameter with a natural taper to the butt. Segmental jack-down piles of either concrete or steel that are mechanically connected, epoxied, or welded together, shall have a minimum outside dimension of 6 inches. Helical steel piles also may be acceptable to the Director. Cast-in-place concrete piles that have a minimum diameter of 6 in. and a maximum length of 10 ft. the last 2 ft. of which must penetrate into a supporting sand stratum, are also acceptable if verified by a geotechnical investigation performed in accordance with this Code.

1811.11.3 Design Requirements. Except as provided in this Section, the maximum allowable load capacity for a single pile shall not exceed 8 tons; an allowable load capacity of up to 12 tons may be permitted if substantiated by a geotechnical investigation and a pile load test. Piles for one- and two-family dwellings and their accessory buildings that comply with the size requirement of 1811.11.2 shall be exempt from the load test and may be designed as per 1811.12.2.3. The minimum pile spacing shall be 24 in. on center. The maximum load capacity limitations stated here refer to stresses in the pile material and not to the allowable load bearing value of the soil which may be more or less. The requirements of 1811.5.2.5 are applicable for lightly loaded piles except that the load per pile shall not exceed 90 psf of embedded pile area, the actual penetration into the supporting soil shall not be less than 30 ft. and a geotechnical investigation or a pile load test may not be required.

1811.11.4 Driving and Length Requirements. Except as noted in 1811.11.2, and unless driven to refusal, the minimum pile length shall be 30 feet. When refusal occurs between 7 and 30 ft. below the natural ground surface, the load bearing capacity of the pile shall not exceed the values shown in Table 1811.11.4, unless substantiated by a geotechnical investigation or a pile load test.

Table 1811.11.4
Maximum Allowable Single Pile Load Capacity When Refusal Occurs City of New Orleans, Louisiana

Pile Tip Embedment, ft.	*Maximum Allowable Single Pile Capacity (Compression), tons*
7 to 10	1
11 to 20	2
21 to 30	4

1811.11.5 Material Requirements. Lightly loaded timber piles shall conform to ASTM D25 except for size. Preservative and minimum final retention shall be in accordance with AWPA Standard C3. A certificate of treatment shall be furnished by the supplier.

1811.11.6 Wind Pressure and Computed Loads. Please refer to Section 16 in the IBC for guidance.

1811.12 LIGHTLY LOADED PILES - RESIDENTIAL

1811.12.1 Scope. This portion of the Code covers piles foundation design for one-and two-family dwellings. Because most of the areas within the City of New Orleans have either soils with low bearing values, exhibit initial and continuing subsidence, or require fill to reach grade, all foundations for residential structures will be supported by pile foundations except as provided for in 1811.12.2.4 and except in areas GM 19 and GM 20 (see map). When uncertainties exist, a geotechnical investigation should be conducted.

1811.12.2 Pile Foundations

1813.12.2.1 All pile foundations shall be designed by a Louisiana Registered Civil Engineer or Louisiana Registered Architect. Residential piles shall comply with all applicable requirements of 1811.12. Piles shall be properly held in place or adequately tied together at their butt end. Pile butts shall be protected by a minimum of 3 in. of concrete around their perimeter. All piles for a building or structure shall extend to the same depth and bear in the same stratum unless adequate provisions for differential settlement within the building or structure have been made. During construction, the contractor shall be responsible for vibration monitoring and control as needed for the protection of adjacent property. A notarized affidavit from the piling contractor is required to be submitted to the Department of Safety And Permits by the owner or general contractor. The affidavit shall substantiate the number, size, type, treatment, and embedment of the piles. The affidavit also shall contain a certification that the piles comply with this Code and the permit drawings.

1811.12.2.2 PILE SPECIFICATIONS — MINIMUM

1811.12.2.2.1 Piles shall be treated modified ANSI Class 5 timber piles. Modified Class 5 timber piles shall have a minimum tip diameter of 6 inches and a minimum butt diameter of 8 inches. For piles less than 30 ft. long, the tip diameter shall be at least 6 inches with a natural taper to the butt. Composite Class 5 piles including steel or concrete sections with a minimum 6 inches diameter are permitted with the use of an approved connector. Treated ANSI Class 9 timber piles shall have a minimum tip diameter of 4-3/4 inches with a natural taper to the butt. ANSI Class 9 piles may only be used for accessory structures of 1,000 square feet or less in area.

1811.12.2.2.2 PARTIALLY EXPOSED BUTT PILES - INCOMPLETE EMBEDMENT. Treated piles designed and used for partial exposure or incomplete embedment in the ground shall be ASTM D25 Southern pine and comply with Sections 1811.12.2.2.2 and 1811.12.2.2.2.1. For pilings that are exposed from grade a distance measured less than five (5) feet, a piling with a minimum 6" diameter tip and minimum 8" diameter butt shall be used. For pilings that are exposed from grade a distance measured five (5) feet or greater, a piling with a minimum 7" diameter tip and minimum 12" diameter tip shall be used. Treatment of pilings shall meet AWPA Standards P5-08, U1-08, T1-08, with retention equal to 1.6 pounds per cubic foot.

1811.12.2.2.2.1 CONNECTIONS FOR EXPOSED BUTT CONDITIONS. Connections from wood banding materials to piling shall be made of minimum diameter of 5/8-inch (5/8 inches), galvanized (or equivalent) steel connectors with a minimum 2-1/2 inches (2.5 inches) head or galvanized washer. A minimum of one-half (0.5) of the diameter of the butt end shall remain for connection of wood banding materials. In addition, a minimum of 3-1/2" (3.5 inches) shall remain of the diameter of the butt end shall remain for connection of wood banding materials. At least one of the sill members shall rest inside the notch of the piling. If this condition is not met, another member the width of the sill should be bolted into the side of the piling and below the sill for support. Any gaps between the sill and pile shall be filled with pressure treated (or equivalent) blocking.

1811.12.2.3 MAXIMUM PILE LOAD CAPACITIES (CLASS 5 AND 9) Maximum allowable pile load capacities have been established for various types and embedments of piles. These values are tabulated for each area and are shown below in Table 1811.12.2.3(1) for Class 5 pilings and Table 1811.12.2.3(2) for Class 9 pilings. Also, each area is delineated on maps on file with the Department of Safety and Permits. ANSI Class 9 piles may only be used for accessory structures of 1,000 square feet or less in area.

Table 1811.12.2.3(1)
Maximum Allowable Single Pile Load Capacity without Investigations or Load Tests
City of New Orleans, Louisiana

Maximum Allowable for Class 5 Pilings

Map Area	*ANSI Pile Classification*	*Pile Tip Embedment, ft.*	*Single Pile Capacity, (Compression), tons*
GM-1	Class 5	30	5
GM-21	Class 5	35	6
	Class 5	40	8*

Maximum Allowable for Class 5 Pilings

Map Area	*ANSI Pile Classification*	*Pile Tip Embedment, ft.*	*Single Pile Capacity, (Compression), tons*
GM-2	Class 5	30	5
GM-5 & GM-3 (1, 2, 3a, 4, 7)	Class 5	35	6
	Class 5	30	7
GM-3 (3b, 6, 8)	Class 5	30	3
GM-8, GM-9	Class 5	35	4
GM-12,GM-16, GM-17, GM-18 & GM-22	Class 5	40	5
GM-4, GM-10, GM-11 & GM-15	Class 5	18 - 33	8*♣
GM-6, GM-7, GM-13, GM-14	Class 5	10 - 25	8*♣

* Pile tip embedded in sand stratum.

ˆ ANSI Class 9 piles to be used only for accessory buildings of 1,000 sq. ft. or less or utility usage.

♣ The allowable capacity of these piles is governed by 1811.11.4 unless a site-specific geotechnical investigation recommends otherwise. Areas not specifically covered in the above table or by the previously referenced maps shall require a geotechnical investigation.

1811.12.2.4 Requirements of the Code regarding the need for a pile foundation or the maximum design load capacity for the particular type of pile may be superseded by a geotechnical investigation that is performed on the site in accordance with 1811.2 or a pile load test which is performed in accordance with 1811.5.2. The Director may waive the distance requirement provided a written request, which demonstrates just cause for the waiver, is presented by a Louisiana Registered Civil Engineer or Louisiana Registered Architect.

1811.12.2.5 The minimum center-to-center pile spacing shall be the greater of 24 in. or 0.05 L where 'L' is the pile length in feet.

Table 1811.12.2.3(2)
Maximum Allowable Single Pile Load Capacity without Investigations or Load Tests
City of New Orleans, Louisiana

Maximum Allowable for Class 9 Pilings
(ONLY PERMITTED FOR ACCESSORY STRUCTURES LESS THAN 1,000 SQ. FT.)

Map Area	*ANSI Pile Classification*	*Pile Tip Embedment, ft.*	*Single Pile Capacity, (Compression), tons*
GM-1	Class 9	30	4ˆ
GM-21	Class 9	35	5*
GM-2	Class 9	30	4ˆ
GM-5 & GM-3 (1, 2, 3a, 4, 7)	Class 9	35	5
GM-3 (3b, 6, 8)	Class 9	30	2.5ˆ
GM-8, GM-9	Class 9	35	3
GM-12,GM-16, GM-17, GM-18 & GM-22	Class 9	40	4

Maximum Allowable for Class 9 Pilings
(ONLY PERMITTED FOR ACCESSORY STRUCTURES LESS THAN 1,000 SQ. FT.)

Map Area	*ANSI Pile Classification*	*Pile Tip Embedment, ft.*	*Single Pile Capacity, (Compression), tons*
GM-4, GM-10, GM-11 & GM-15	Class 9	18 - 33	5*^♣
GM-6, GM-7, GM-13, GM-14	Class 9	10 - 25	5*^♣

* Pile tip embedded in sand stratum.

^ ANSI Class 9 piles to be used only for accessory buildings of 1,000 sq. ft. or less or utility usage.

♣ The allowable capacity of these piles is governed by 1813.11.4 unless a site-specific geotechnical investigation recommends otherwise. Areas not specifically covered in the above table or by the previously referenced maps shall require a geotechnical investigation.

1811.12.2.4 Requirements of the Code regarding the need for a pile foundation or the maximum design load capacity for the particular type of pile may be superseded by a geotechnical investigation that is performed on the site in accordance with 1811.2 or a pile load test which is performed in accordance with 1811.5.2. The Director may waive the distance requirement provided a written request, which demonstrates just cause for the waiver, is presented by a Louisiana Registered Civil Engineer or Louisiana Registered Architect.

1811.12.2.5 The minimum center-to-center pile spacing shall be the greater of 24 in. or 0.05 L where 'L' is the pile length in feet.

CHAPTER 27
ELECTRICAL

2701 - GENERAL

2701.1 - Scope - This chapter governs the electrical components, equipment and systems used in buildings and structures covered by this code. Electrical components, equipment and systems shall be designed and constructed in accordance with the provisions of the 2020 National Electrical Code, (NFPA-70). Where there is conflict between a requirement of Chapter 27 and a requirement of the National Electrical Code, the requirement of Chapter 27 shall govern.

For low voltage installations refer to *Section 2735 (E) - BASIC STANDARDS* of this Chapter.

2702 - CERTIFIED ELECTRICAL CONTRACTOR OR ELECTRICIAN

Any person holding an electrical license issued by the Electrical Inspection Division of the Department of Safety and Permits is deemed a certified electrical contractor or electrician.

2703 - ELECTRICAL CONTRACTORS LICENSE REQUIREMENT

No person shall undertake any work as a Class "A" Electrical Contractor, Class "B" Fabrication Contractor, Class "C" Maintenance Electrician, Class "D" Journeyman Electrician, Class "E" Electrician Trainee, or Class "E" Student Trainee unless that person is registered with the Electrical Inspection Division of the Department of Safety and Permits and received a license in the respective classification. A person performing electrical work without the proper license shall be held in violation of this code.

2704 - CLASSIFICATION OF ELECTRICIANS

Class "A" Electrical Contractor - A Class "A" electrical license holder engaging in the business of installing or contracting to install or repairing or contracting to repair electrical conductors, motors, generators, fixtures, signs,

or any electrical apparatus, equipment or material for all systems operating at a potential of forty-nine (49) volts or more.

Class "B" Fabrication Contractor - A Class "B" electrical license holder engaging in the business or contracting for the fabrication, assembly, and repair of electrical apparatus, equipment or material.

Class "C" Maintenance Electrician - A Class "C" electrical license holder who is employed as a Maintenance Electrician by a person, firm or corporation owning or operating any place of business. Said license is valid only while the Maintenance Electrician remains in the employment of a person, firm or corporation. A Maintenance Electrician may only perform work on existing electrical installations in the building or place of business in which he is employed.

No new electrical apparatus, equipment or material shall be installed under this classification.

Class "D" Journeyman Electrician - A Class "D" electrical license holder engaged in the trade of installing or repairing electrical materials or apparatus, equipment or material. A Journeyman electrician must be employed by and work under the supervision of a Class "A" Electrical Contractor.

If deemed necessary by the Director, the Class "D" Journeyman Electrician shall provide an employment record showing proof of employment with the designated Class "A" Electrical Contractor.

2705 - Supervision and Responsibility for Work

A licensed electrician of the proper classification shall be present at all times and in direct supervision in the actual work of installing, maintaining, altering or repairing electrical conductors, material or equipment for which a permit is required by this Code.

A Class "A" Electrical Contractor shall be liable and responsible for layout and technical supervision of any work which requires the securing of permits, and a Class "A" Electrical Contractor or a Class "D" Journeyman Electrician shall be in direct "on the job" supervision at the worksite for work carried out as specified within this Code. If such supervision and control is not being maintained, the Director shall take the necessary action for such violation or shall order the work to be discontinued. The person, firm or corporation to whom the permit has been issued shall discontinue further work until the Director is assured that proper supervision and control has been employed or supplied.

Nothing herein shall be construed as prohibiting the employment of a Class "E" Electrician Trainee to assist the duly licensed and qualified Class "A" Electrical Contractor or Class "D" Journeyman Electrician under the provisions of this Chapter. The numeric ratio of Class "E" Electrician Trainees to Class "A" Electrical Contractors or Class "D" Journeyman Electricians should be consistent with proper supervision, training, and safety. In no instance shall such ratio provide for more than three (3) Class "E" Electrician Trainees for every Class "A" Electrical Contractor or Class "D" Journeyman Electrician employed at the same jobsite unless approved by the Director.

Class "E" Electrician "Student Trainees" shall be under the same supervision, training and safety requirements and constraints as the Class "E" Electrician Trainee.

2706 - LICENSE APPLICATIONS

2706.1 General - Applicants for a Class "A" Electrical Contractor, Class "B" Fabrication Contractor, Class "C" Maintenance Electrician, Class "D" Journeyman Electrician, Class "E" Electrician Trainee and Class "E" Student Trainee license shall submit the application for certification, properly completed on forms furnished by the Electrical Inspection Division. All applications and renewals shall be made to the Director.

All license applicants shall meet the following requirements.

1. Each applicant shall pass the required electrical examination prior to the issuance of any new license

issuance (except Class "E" Electrician Trainee and the Student Trainee).

2. Each applicant shall furnish to the Electrical Inspection Division two passport type photos, 1 inch by 1½ inches in size.

3. Each license shall identify the name of the person to whom the license is issued and the expiration date.

4. Each applicant must be at least eighteen (18) years of age.

5. Each applicant for a Class "A" or Class "B" license shall have had at least 5 years of experience in the occupation or business governed by the license for which he is applying; or be a graduate of a trade school or technical college of recognized standing and in addition have had four (4) years of practical experience in that class of occupation or business governed by the license for which he is applying.

6. Each applicant for a Class "A" or Class "B" license must have and maintain an established place of business and have someone in attendance in order to receive communications from the Electrical Inspection Division of the Department of Safety and Permits, or other persons concerned, during regular business hours.

7. A Class "A" Electrical or Class "B" Fabrication license holder shall represent only one firm, corporation or business at any one time.

8. A license holder must have his license in his immediate possession at all times when performing work for which he is certified and shall display it upon demand of an agent of the Department of Safety and Permits.

2706.1.1 - Each Applicant for a Class "C" Maintenance Electrician license must have had at least five (5) years of experience working under the supervision of a Class "A" Electrical Contractor in that particular line or class of occupation in which he desires to engage.

2706.1.2 - Each applicant for a Class "D" Journeyman Electrician license must have at least five (5) years continuous experience working at the electrical trade as an electrician trainee or have a minimum of four (4) years of schooling in the electrical trade at a recognized state trade school or a state approved apprenticeship training program and must have a passing grade in the above programs, plus four (4) years of experience working as an electrician trainee.

2706.1.3 - Each applicant for a Class "E" Electrician Trainee license must have a letter of recommendation from a certified Class "A" Electrical Contractor recommending the applicant for licensing. An individual may not hold a Class "E" Electrician Trainee license for more than five (5) years from the initial issue date. Note: Any exception to this time limit for a longer or extended period must be in writing to and with the written approval of the Director.

2706.2 - Duration of License - All Class "A", "B", "C", "D" & "E" licenses issued under this Code expire on the applicant's date of birth.

For the initial license, the expiration date shall be on the date of birth in the year following the date of issuance. Licenses that have been expired for a period of up to two (2) years shall be renewed only after payment of the license registration fee and required delinquent fees.

Licenses that have been expired for a period of more than two (2) years shall require an application as a new candidate.

2706.3 - License Issuance - When a candidate passes the examination, the original examination results and the completed application for the appropriate license must be submitted to the Electrical Inspection Division to qualify for license issuance. The appropriate license must be obtained by the qualified applicant

within one year of the examination date. The issued license must be signed by the Director or his designee.

2706.4 - Revoked License - Licenses issued under this code may be revoked for any reason or finding defined in Section 2706.5. Upon such finding the Director may order such revocation. However, the Director may find that the public interest is adequately protected by a warning or a suspension for a definite period of time not to exceed two years. No license shall be suspended or revoked except by the Director. Upon revocation, the Director shall not accept an application for a new license or a renewal within two (2) years from the date of such revocation, except for medical recovery supported by a physician's opinion, after Directors review and approval.

2706.4.1 - Code Violation Hearing - If needed, the Chief Electrical Inspector shall initiate a hearing, in conjunction with the Chief Building Official and the Director, to review a code violation he has determined to exist, that would affect any electrical license issued by the Electrical Inspection Division to be suspended or revoked.

2706.5 - Revocation and Suspension Reasons

1. Interfering, impeding, or obstructing the legal operation of, or intentionally damaging, any item governed by this Code. In addition, threatening, abusing, insulting, interfering with, impeding or obstructing any individuals in connection with the operations or inspections of any equipment regulated by this code, or the administration of this Code.
2. Violating, on more than one occasion, either willfully or maliciously, or by reason of incompetence, any provision of this code
3. Conviction of any offense involving the defrauding of any person for whom a service has been rendered or contracted to be rendered under this chapter.
4. Fraud or misrepresentation in obtaining a license or permit.
5. Conviction of drunkenness or the use of narcotics.
6. Adjudication of insanity.
7. Securing a permit for electrical work not actually performed by the Class "A" Electrical Contractor or by certified (licensed) individuals under his control, supervision, direction and responsibility.
8. Securing a permit under any pretext for an installation concerning which the applicant has no valid contract.
9. Performing any electrical work as defined herein for which no electrical permit has been obtained.
10. Refusing to finish the electrical work for which a permit was taken and for which full payment has been accepted.
11. Performing any electrical work as defined herein for which an electrical permit has been obtained and which work is being performed by improperly certified (licensed) individuals under his control, supervision, direction and responsibility.
12. False, misleading or deceptive advertising.
13. Any medical reason wherein a physician's medical opinion is provided to the Director indicating that the person certified is unable to satisfactorily perform the duties and functions expected of a Class "A", Class "B", Class "C", Class "D", or Class "E" Electrical license holder, and that any further performance in the electrical field would be a danger to himself and endanger the life and property of others.

2706.6 - Notice of revocation or suspension hearing. A notice shall be served upon the holder of the license stating the time and place of the hearing to be held by the Director.

The notice shall be sent by the Director and shall enumerate the cause or causes for suspending or revoking the license. The notice may be mailed by registered or certified mail to the holder of the license at the address of his place of business as given by him on his application for the license, or it may be served on him in person by a Police Officer or employee of the Department of Safety and Permits.

2706.7 Appeal Procedure. An appeal from the decision of the Director may be taken to the Board of Building Standards and Appeals, within ten (10) days of written notification to the appellant.

2707 - INSURANCE

Before a Class "A" Electrical Contractor or a Class "B" Fabrication Contractor license is issued or renewed, each certified Class "A" Electrical Contractor or Class "B" Fabrication Contractor must provide evidence of the following to the Director when he registers with the Electrical Inspection Division.

2707.1 - MINIMUM INSURANCE REQUIREMENTS:

(1) Workers' Compensation Insurance in accordance with Louisiana state law.

(2) Comprehensive general liability insurance coverage with limits of not less than $500,000 per occurrence for bodily injury and $250,000 per occurrence for property damage, with coverage extended as follows:

(A) Operations-premises liability:

(B) Independent contractor's liability-broad form:

(C) Contractual liability - broad form:

(D) Completed operations and products liability.

The required insurance shall be issued by a company duly registered and authorized to write such insurance in the State of Louisiana. Compliance with this section shall be considered as having been met when a copy of the policy, or a license of insurance has been filed with and approved by the Department of Safety and Permits.

The policy shall include an endorsement that the Department of Safety and Permits will be notified at least 10 days in advance in the event the policy or policies are canceled or permitted to lapse by not renewing before the expiration date of the license.

2708 - FEDERAL IDENTIFICATION NUMBER AND OCCUPATIONAL LICENSE

Before a Class "A" Electrical Contractor or a Class "B" Fabrication Contractor license is issued or renewed, each certified Class "A" Electrical Contractor or Class "B" Fabrication Contractor must provide his Federal Identification (ID) number and his City of New Orleans Occupational License Number or Certificate of Registration Number to the Director when he registers with the Electrical Inspection Division.

2709 - APPLICATIONS FOR EXAMINATION AND LICENSES

All examination applications shall be made directly to the nationally recognized testing company approved by the City of New Orleans prior to the deadline dates published in accordance with their information brochure.

2710 - EXAMINATIONS

1. The written examination for a Class "A" Electrical Contractor and a Class "B" Fabrication Contractor shall include the following:
   a. National Electric Code, (NFPA-70) questions,
   b. Practical wiring questions,
   c. Practical questions on electrical equipment,
2. The written examination for a Class "C" Maintenance Electrician and a Class "D" Journeyman Electrician shall include the following:
   a. National Electric Code, (NFPA-70) questions,
   b. Practical wiring questions,

c. Practical questions on electrical equipment.

2711 - RE-EXAMINATIONS

If an applicant fails to make a passing grade on the required examination, he is permitted to apply to be re-examined at the next regularly scheduled examination date. There is no limit to the number of examinations a candidate is allowed to take.

2712 - LICENSE FEES

To obtain an initial license, or renew a license, an applicant shall pay the applicable annual license fee as follows:

Type	*License*
Class "A" Electrical Contractor	$125.00
Class "A" Electrical Contractor (INACTIVE)	$30.00
Class "B" Fabrication Contractor	$125.00
Class "C" Maintenance Electrician	$60.00
Class "D" Journeyman Electrician	$60.00
Class "E" Electrician Trainee	$30.00

License fees shall be made payable to "The City of New Orleans". Payment shall be made prior to license issuance. Examination fees are established by and paid directly to the nationally recognized testing company under contract with the City of New Orleans. No examination fees are to be directed to the Electrical Inspection Division or made payable to the "City of New Orleans." Licenses may be renewed for one or two years with annual fees due accordingly. In the case of two-year renewals, licensees are required to provide proof of insurance annually.

2712.1 - ACCEPTANCE OF OTHER JURISDICTIONAL CERTIFICATION

The Electrical Inspection Division of the Department of Safety and Permits will extend to an electrical contractor or journeyman electrician, that is licensed in another jurisdiction, the recognition and acceptance of his certification without the requirement of additional examination provided that the jurisdiction requires passing of an examination given by a nationally recognized testing agency before issuance of such license.

If approved by the Director, the applicant shall present a copy of his license for the City of New Orleans files and complete the necessary applications set forth by the Electrical Inspection Division of the City of New Orleans. The applicant shall pay the appropriate fee for the classification of license for which he is applying.

2713 - PAYMENT OF FEES: DATES FOR RENEWAL OF ACTIVE LICENSES

The initial license registration fee shall be paid to the Electrical Inspection Division at the time the application for the license is presented.

The renewal license registration fee is due and payable to the Electrical Inspection Division on or before the first regular day of business after the applicant's date of birth. No renewal license shall be issued unless all work specified on permit(s) filed more than three (3) months prior to the applicant's date of birth has been completed, or a written reason, sufficient to the Director, has been submitted and approved, indicating why the job installation(s) remains incomplete.

A license issued at any time during any calendar year shall expire, unless sooner revoked, on the applicant's date of birth. Application and renewal fees for the license renewal for the subsequent year shall be submitted to the Electrical Inspection Division prior to the first regular day of business after the applicant's date of birth.

Should a Class "A" Electrical Contractor or a Class "B" Fabrication Contractor fail to renew his license prior to the first regular day of business after his date of birth, or fail to complete the work specified on his permit(s) issued more than three (3) months prior to his date of birth without explanation, a delinquent fee of ten ($10.00) per month shall be added to the renewal fee beginning on the first regular

day of business after his date of birth and extending through his date of birth in the following year.

No permit application shall be processed, nor shall any permit be issued to any applicant who has not been issued a current active license for the year of the permit application.

Failure to renew a Class "A" Electrical Contractor or a Class "B" Fabrication Contractor license that has been expired for more than a one (1) year period shall require examination as a new applicant.

Should a Class "C" Maintenance Electrician license holder fail to renew his license prior to the first regular day of business after his date of birth a delinquent fee of five ($5.00) per month shall be added to the renewal fee beginning on the first regular day of business after his date of birth and extending through his date of birth in the following year. Should a Class "D" Journeyman Electrician license holder fail to renew his license prior to the first regular day of business after his date of birth a delinquent fee of five ($5.00) per month shall be added to the renewal fee beginning on the first regular day of business after his date of birth and extending through his date of birth in the following year.

Failure to renew the Class "C", or Class "D" license that has been expired for more than a one (1) year period shall require examination as a new applicant.

Should a Class "E" Electrician Trainee fail to renew his license prior to the first regular day of business after his date of birth a delinquent fee of five ($5.00) per month shall be added to the renewal fee beginning on the first regular day of business after his date of birth and extending through his date of birth in the following year.

The Class "E" five (5) year license time limit for the applicant remains unchanged from his initial issued date, regardless of failure to renew his license in a timely manner.

The Class "E" "Student Trainee" three (3) issue limit remains unchanged from his initial issuance date. Any subsequent issue of this license shall not be considered as a renewal or a continuation of any previous issue.

2714 - INACTIVE LICENSE

A Class "A" Electrical Contractor may, by written request to and approval of the Director, change his license to an inactive status. The Class "A" Electrical Contractor that has changed his license to inactive, must maintain his inactive license in a current status by paying the annual renewal fee as required in this Code. The inactive status license must be renewed each year and the Director must be notified in writing that the contractor desires to remain in the inactive status for the ensuing year. There shall be no limit to the number of years the Class "A" Electrical Contractor may continue to carry his license in this inactive status No license renewal shall be made for any Class "A" Electrical Contractor that has allowed his inactive license to lapse and remain lapsed for a period of more than (2) years, until he has passed an examination as a new applicant.

The inactive Class "A" license shall expire on his date of birth in the following year. The Class "A" Electrical Contractor may revert his license back to an active status by a written request to and approval by the Director. Reverting the license back to the active status requires the payment of the full active fee as required in this Code.

No Class "A" Electrical Contractor shall engage in business as an electrical contractor while his license is in an inactive status. An inactive license holder can, however engage in electrical work under the supervision of an active Class "A" license holder. Only one change to an inactive status is allowed during any twelve (12) month period.

2715 - PROHIBITION AGAINST LICENSE TRANSFER

No Class "A" or Class "B" Electrical license holder shall assign or in any way convey his license to anyone by power of attorney or any other process or become involved in any type of agreement, assignment or use whereby he

will not have supervision, direction, control or responsibility for the electrical work for which he has obtained an electrical permit from the Electrical Inspection Division of the Department of Safety and Permits.

No Class "C", Class "D" or Class "E" Electrical license holder shall assign or in any way convey his license to anyone by power of attorney or any other processor become involved in any type of agreement, assignment or use whereby he will not have control of his own issued license.

2716 - LIMITATIONS OF LICENSE

A Class "A" Electrical license holder or Class "B" Fabrication license holder shall be limited to operations described in this Code. The use of his license shall not be applicable to more than one electrical contracting firm, company or corporation at one time. The license holder shall be allowed to file electrical permits only for the firm of which he is employed and registered in accordance with this Code.

A Class "C" Maintenance Electrician shall not engage in the business of installing or repairing electrical wiring and apparatus outside the plant or premises of the person, firm or corporation by whom he is employed.

A Class "D" Journeyman Electrician shall be limited to operations described in this Code. A Class "E" Electrician Trainee and "Student Trainee" shall be limited to operations described in this Code.

2717 - ELECTRICIAN'S AND OWNER'S RESPONSIBILITIES

(A) The Class "A" Electrical Contractor license holder shall keep on file with the Director, a letter designating which person, partnership, firm or corporation he/she represents. He/she shall notify the Director within ten days of any status change. The Class "A" Electrical Contractor license holder shall represent only one person, partnership, firm or corporation.

(B) Every Class "A" license holder certified in accordance with these regulations shall be responsible for any defects of construction installed by him/her until such time as a Certificate of Approval has been issued by the Director. Also, any and all defects (discrepancies) that may have been concealed by such Class "A" Electrical Contractor and discovered after a Certificate Approval has been issued shall be the responsibility of and corrected by said Class "A" Electrical Contractor.

At the discretion of the Director, inspections may be withheld until all outstanding discrepancies on the same installation, which are in violation of the Code, have been corrected by the Class "A" Electrical Contractor.

(C) A Class "C" Maintenance Electrician or a Class "A" Electrical Contractor with a maintenance contract shall be required in any building that requires an operating (stationary) engineer as defined in the amendments to the International Mechanical Code, 2021 Edition.

The Class "C" Maintenance Electrician or the Class "A" Electrical Contractor with the maintenance contract, shall file an annual inspection report with the Electrical Inspection Division. This inspection report shall be to inspect the current electrical service or apparatus in the building designated within, or contracted as a part of, the maintenance responsibilities.

If electrical discrepancies or new electrical installations are discovered to exist as a result of this inspection, notification of same will be provided to the owner of the building or the "on-site" representative of the person, firm or corporation utilizing the building.

(D) All power and control wiring shall be installed by a Class "A" Electrical license holder.

Exception: Control wiring for HVAC appliances and electric water heaters ONLY (120 volts or less) may be installed by a non-electrical contractor.

The installing non-electrical contractor must be a licensed Class "A" Master Gasfitter, Master Plumber or a Class "A" Air Conditioning and Refrigeration Contractor.

The Electrical Inspection Division shall inspect the installation of all jacketed cable-only control wiring systems governed by this exception.

The Electrical Division shall inspect all control wiring systems installed in raceways.

All wiring must be installed in accordance with the National Electric Code, (NFPA-70) and this Code.

(1) All wiring for electrical appliances shall be supplied and installed from the main source of electric service through a remote disconnect switch to the electrical appliance by a Class "A" Electrical Contractor.

Exception: On the installation of HVAC appliances and electric water heaters, [ten tons, ten tons including supplemental heat, or ten kw or less] a non-electrical contractor may make ONLY the final electrical connections from the existing remote disconnect switch to the replaced unit, not to exceed eight feet.

If a remote disconnect switch is not present or is not within eight feet of the electrical appliance, a remote disconnect switch must be installed and the distance location must be corrected by a Class "A" Electrical Contractor.

(2) The installing non-electrical contractor must be a licensed Master Plumber, Class "A" Master Gasfitter, or Class "A" Air Conditioning and Refrigeration Contractor.

The non-electrical contractors may troubleshoot or replace factory installed power elements that are a part of the appliance only when these power elements or the unit in which they are contained conform to standard electrical materials.

(E) A Class "A" Electrical license shall not be required for the following allied contractors who are performing only their trade work on a system or apparatus having electrical work regulated by this code:

1. Plumbing
2. Air Conditioning and Refrigeration, (HVAC.)
3. Gasfitting
4. Sheet metal
5. Insulating
6. Operating (stationary) Engineers as defined in the amendments to the International Mechanical Code, 2021 Edition.

(F) Whenever a Class "A" Electrical Contractor is replaced by another Class "A" Electrical Contractor in order to complete an electrical installation, the succeeding Class "A" Electrical Contractor must provide the following in order to take over the job:

1. A letter from the owner or prime contractor to the Director attesting that the original Class "A" Electrical Contrac-

tor will no longer be utilized for the electrical installation at the listed job;

2. File a new permit application for the entire electrical installation;

3. Pay all fees, with the amount of the fees based upon the total required for the new application less the amount already paid by the original Class "A" Electrical Contractor.

Whenever a Class "A" Electrical Contractor replaces another, he/she then becomes the Class "A" Electrical Contractor of record for the entire electrical installation. All future correspondence from the Electrical Inspection Division regarding that installation will be directed to the new Class "A" Electrical Contractor. Any deviation from the above due to extenuating circumstances must be coordinated in writing to and with the approval of the Director.

2718 - PERMIT REQUIRED

(1) Every Class "A" license holder proposing to install, repair or alter any electrical equipment or wires designated to carry electricity at a potential of forty-nine (49) volts or more for any purpose or service in or on any building or premises, shall file an application for a permit with the Electrical Inspection Division of the Department of Safety and Permits.

Permit applications shall only be accepted from Class "A" or Class "B" license holders with current and active licenses and when properly completed and signed by the license holder.

No work may be commenced until the permit application is approved and the acceptance is acknowledged by the Electrical Inspection Division, except when failure to commence the work would be life threatening or the work is an emergency due to a disaster or any uncontrolled event or occurrence.

The permit fee for any work commenced prior to obtaining the required permit, excepting the emergency or life threatening conditions, shall be the listed permit fee plus a fee of five (5) times the listed fee for such work. The determination of the extent of the amount of the fee for violations of this section, by any Contractor, shall be in the discretion of the Director.

The applications for permits shall be in accordance with application forms provided by the Electrical Inspection Division of the Department of Safety and Permits.

A permit shall be construed to be authorization to proceed with the work and shall NOT be construed as authority to violate, cancel, alter, or set aside any of the provisions of this Code, or any other ordinances adopted by the City of New Orleans, including the Comprehensive Zoning Ordinance nor shall such issuance of a permit prevent the Director from thereafter requiring a correction of errors in plans or in construction, or of violations of this Code.

Every issued permit shall become invalid:

1. if the work authorized by the permit is not commenced within six (6) months after its issuance, or

2. if the work authorized by the permit is suspended for more than six (6) months after its issuance, or

3. If the work authorized by the permit is suspended or abandoned for a period of six (6) months after the time the work is commenced. One or

more extensions of time, for periods of not more than ninety (90) days each, may be allowed for the permit. The extension must be requested in writing and justifiable cause demonstrated to the Director. When an extension is granted it shall be in writing by him.

(2) If deemed necessary, upon request by the Director, The Class "A" Electrical Contractor proposing to install any electrical apparatus shall provide a written contract or affidavit between him and the owner/general contractor. The contract or affidavit shall indicate the scope of the work to be accomplished at the job location by the Class "A" Electrical Contractor.

2719 - CONSTRUCTION DOCUMENTS:

Construction documents involving electrical installations are to be submitted at the time of application for building permits, as provided in Section 106 - Construction Documents of these New Orleans Amendments for details.

2720 - CERTIFICATES OF APPROVAL

The Director or his designee shall sign and issue all Certificates of Approval for the installation, repair or alteration of all electrical work. Said certificate shall not be issued until all work has been inspected and found to comply with all the requirements of National Electric Code, (NFPA-70), and this Code. Said certificate shall contain electrical data, name of the owner or owners, and exact location of the building or premises where the installed work was accomplished.

The Director shall keep a record of the equipment inspected in each building giving the description of the equipment, the name of the owner or owners of the building, the inspection date and the amount collected for such inspections and the name of the installer for whom the inspection was made.

2721 - SPECIAL EVENTS: WIRING

A Special Event includes but is not limited to fairs, festivals, carnivals, circuses, road shows, trade shows, concerts, displays, expositions and such other functions with a temporary status generally taking place outdoors and indoors at a permanent location or building utilizing the electrical service at that location or building for electric service to support the Special Event. This includes the temporary installation of wiring or electrical equipment of any description to be powered by the use of any self-generated power equipment rented or owned by any of the types of Special Event.

A permit is required for the Special Event temporary installation wiring or electric equipment of any description.

All Certificates of Approval issued for Special Events wiring or electrical equipment of any description may be revoked at the discretion of the Director if the continued use of such wiring or electrical equipment for the Special Event is deemed unsafe and not in the interest of the safety, health and welfare of the general public for which the event was initially allowed.

All permits shall automatically expire at the end of ninety (90) days.

2722 - CONNECTION OF ELECTRIC SERVICE

The Director has the sole responsibility and shall notify and authorize the Utility Company, via facsimile or telephone, to make the final electric meter connection of the building or premises electric system to the Utility Company's service facilities. To follow this authorization, the Director shall issue an "Entergy Permit & Inspection Desk Electrical Meter Release Authorization" form for that designated municipal address of the electric meter installation. No other person, firm or corporation shall be authorized to make the final connection.

The connection of electricity from a privately owned source of electric supply to electrical wiring system or equipment within or on any

building or premises shall not be made until a special permit is secured from the Director authorizing such connections.

2723 - ELECTRICAL METER RELEASE STIPULATIONS

(a) If any municipal address or location has been without electric service for a period of time exceeding six (6) months, an electrical permit must be obtained and an inspection must be made in accordance with this Code, before the electric service can be reconnected.

(b) "Entergy Permit & Inspection Desk electric Meter Release Authorization" approvals, issued for electrical meter service connection by the Utility Company within residential, commercial or industrial establishments, shall expire six (6) months from the date of issuance to the Utility Company. If a meter is not installed prior to the expiration date a new release authorization shall be required.

The new release authorization shall be issued only after a re-inspection of the location has been made by the Director.

2724 - DISCONTINUANCE OF ELECTRIC SERVICE

(A) If the Director determines the construction, repair or installation of any electrical wiring, appliance or equipment at any municipal address or location to be in a dangerous, hazardous or perilous condition and imminently threatening to the safety, health and welfare of the users, occupants or the general public, immediate notification shall be given to the Utility Company to disconnect the meter or remove the electric service to the building or location. No utility service shall be resumed until the necessary corrections have been completed as required by this Code.

(B) If the Director determines any electrical installation, wiring, equipment or appliances in any building to be unsafe or in a dangerous condition, or any electrical construction, installation, or repair work has been installed or is being used in violation of this Code or is being used in violation of the use provisions of the Comprehensive Zoning Ordinance, as interpreted by the Director in his authority pursuant to the City of New Orleans Home Rule Charter and such violations have not been corrected within ten (10) days of such determination, the Director shall send written notice to the person, firm or corporation responsible for the violation(s) to correct the condition(s) within the time specified in the written notice. This period may not be extended except by written permission from the Director.

Failure to comply with this notice shall empower the Director to:

1. request that charges be filed in the Municipal Court of the City of New Orleans; and
2. seek relief through Civil District Court or another Court of competent jurisdiction; and
3. notify as provided in Chapter 6, Article II, of the Code of the City of New Orleans.

If the above Courts and/or Administrative Agency determination that the owner and person is in violation of the provisions of this Code or the provisions of the Comprehensive Zoning Ordinance and such violations have not been corrected within 10 days of said determination, the Director shall have authority to discontinue the service of the utility company until such time the violations have been corrected. When the violations have been corrected and the location is

re-inspected by the Director, he shall notify the utility company that the electrical service may be reconnected.

The Zoning Administrator must ascertain, and corroborate to the Director, that the Zoning violations have been corrected prior to reconnecting the utility service.

2725 - WORK BY OTHER THAN ELECTRICAL CONTRACTORS

No person, firm or corporation, erecting, repairing, or altering buildings, erecting signs, altering, changing or installing plumbing or engaged in any other work shall close in or conceal any wiring or raceways nor cut, break, destroy, disconnect or in any other manner interfere with the arrangements of any electrical conductors or appliances whatever inside or outside of any building or premises without receiving a permit from the Director; before the permit is issued, the person, firm or corporation shall serve the Director with a written notice at least forty-eight (48) hours before the contemplated work is to be commenced. The work of altering, changing or disconnecting electrical conductors or appliances must be done under the supervision of a Class "A" Electrical license holder.

2726 - DISPLAY OF CONTRACTOR'S SIGN, PUBLIC ADVERTISING OR ADVERTISEMENT OF SERVICES

Every location where work of an electrical nature is being done shall have displayed on a conspicuous place in front, an identifying sign indicating electrical work is being performed, and the words "CLASS "A" ELECTRICAL CONTRACTOR" in letters not less than two (2) inches high. The display of such a sign by other than a duly certified Class "A" Electrical Contractor shall constitute a violation of this Code.

The sign shall contain the license number of the Class "A" Electrical Contractor, and the name, address, and telephone number of the firm or corporation in letters not less than two (2) inches high.

Every Class "A" Electrical Contractor shall install a sign on each work vehicle utilized in the performance of his duties and responsibilities as a Class "A" Electrical Contractor as defined in Section 2705 of this Code. The vehicle sign shall contain the license number of the Class "A" Electrical Contractor, and the name, address and the telephone number of the firm or corporation, in letters not less than two (2) inches high.

Every Class "A" Electrical Contractor advertising or proposing to advertise to the general public for the purposes of obtaining any of the types of electrical work as defined in this Code, shall provide his license number, and the name, address and telephone number of the firm or corporation. The display of a sign or advertising for the purposes of obtaining work by a person other than the duly certified Class "A" Electrical Contractor constitutes a violation of this Code. False, misleading or deceptive advertising shall constitute an attempt to circumvent the general health, welfare and safety of the public and shall constitute a violation of this Code.

2727 - FEES FOR ADDED INSPECTIONS

1. *Wasted Trip Inspection* - When a Class "A" license holder, after notice has been given by the Director, is found to have violated any of the requirements of this Code, or when through any such violation by any Class "A" license holder doing the work, it shall become necessary to make extra inspections because of a wasted trip, a fee of $190.00 shall be charged. This charge is for each and any extra inspections made necessary as a result of incomplete work, inaccessibility to perform the inspection or for alterations to work previously accepted. This fee is in addition to any regular required permit fees and shall be received before any further inspections are made by the Electrical Inspection Division.
2. *Fire Marshal Inspection* - When any person, firm or corporation requests

a complete electrical inspection of existing installations to comply with the State Fire Marshal Act, a fee of $30.00 shall be charged.

3. *After Hour Inspections* - When a person, firm or corporation requests an inspection of installed electrical equipment to be performed at a time other than the designated working hours of the Electrical Inspectors of the Department of Safety and Permits a fee shall be charged. The request and reason for the after hour inspection must be made to and approved by the Director for inspector assignment. A fee of $220.00 shall be paid by the person, firm or corporation requesting the after hour inspection. Payment of this fee must be made to the "City of New Orleans" within forty- eight (48) hours of the request for the inspection and is to be paid in addition to any regular required permit fees in this Code. No further inspections are to be made by the Electrical Inspection Division until the required fee has been received.

2728 - EXEMPTIONS

The provisions in this Chapter do not apply to Companies regulated by the Louisiana Public Service Commission, or the Council of the City of New Orleans, with the following exceptions.

1. Telephone and telegraph companies - a permit is required where electrical work is performed on the primary side of the source of power from the Utility Company at a voltage over fifty (50) volts and which consumes more than five hundred (500) watts of energy.
2. Utility Company - a permit is required where electrical work is performed on the secondary side of the source of power from the Utility Company.
3. Regional Transit Authority (RTA) - a permit is required where electrical work is performed on the secondary side of the source of power from the Utility Company.

2729 - PLENUM SPACES

If it is necessary to install electrical equipment in plenum spaces used for supply or return air systems, see International Building Code, 2021 Edition and the 2020 National Electric Code, (NFPA-70), for requirements.

2730 - EMERGENCY SYSTEMS, EXIT AND EMERGENCY ILLUMINATION

Means of egress shall be illuminated at all times in accordance with the International Building Code, 2015 Edition and the National Electric Code, (NFPA-70).

2731 - TEMPORARY DECORATIVE LIGHTING

No person, firm or corporation shall install wiring of a temporary decorative character in or about any municipal address or location without having first secured from the Director written permission authorizing the work to be installed. The Director shall be authorized to grant written and limited approval for any temporary installations which may, in his opinion, be necessary. Temporary installations of decorative lighting of residences or their premises otherwise complying with this Code may be exempted from this requirement by the Director.

Temporary as defined within this Section shall include seasonal or holiday installations lasting for a limited time not to exceed thirty (30) days.

2732 - ELECTRICAL SIGNS

Before any electrically illuminated or electrically powered sign may be erected or placed in position upon, above, or attached to the outside of any building, structure or premises, an electrical permit shall be secured from the Director.

The sign erector shall also secure a building permit prior to the erection of such sign as required by The International Building Code, 2021 Edition, as amended, Section 3107, signed by a Class "A" Electrical license holder,

acknowledging intention to erect and notify the Director when the installation is completed. When an erector has been determined to be in violation of the Code and refuses to correct same, no further permits will be issued to him/her. All sign contractors shall be properly registered pursuant to Chapter 134 of the City Code.

Written notice shall be given by the sign contractor and by the Class "A" license holder to the Director upon completion of the installations. The Director shall then inspect the sign and determine whether or not it is installed in conformity with applicable ordinances.

Signs that are approved and labeled and such signs of billboard type, skeleton, ornamental, lettering and neon tubing inside and outside of buildings, which are wired in conformity with the National Electric Code, (NFPA-70) shall be considered as being in conformity with the requirements of this Code. Electric service shall not be connected to any sign or billboard until all work on same is completed, and then only when the Certificate of Approval is issued by the Director and the electric meter authorization is issued to the Utility Company.

2733 - AUTOMATIC EARLY WARNING PROTECTIVE DEVICES

Early warning protective devices shall conform to The International Building Code, 2015 [2021] Edition, as amended.

2734 - FEES: PERMITS

(A) The electrical permit fee schedule is as follows:

1. Forty dollars ($40.00) per construction loop (All construction loop permits issued may be revoked at any time at the discretion of the Director, however all such permits shall automatically expire at the end of ninety (90) days with the exception of those providing required construction power to the project still under construction.)
2. Forty dollars ($40.00) minimum per permit application for all installations, plus (A) & (B) below:
   (A) Thirty cents (.30) per ampere of service or protective device rating.
   (B) Three dollars ($3.00) per connected circuit in each and every panel. (Within the meaning of the terms of this code, each main feeder, sub-main or branch circuit for power, light or any other purpose or service shall be considered a circuit. Each fused or other type of automatic cutout protected wire of a final branch multi-wire circuit shall be also be considered a circuit.)
3. A minimum fee of forty dollars ($40.00) shall apply for the repair or replacement of any existing electrical equipment of the same capacity, excluding circuits and service.
4. A fee of forty dollars ($40.00) shall apply for each illuminated sign, whether indoors or outdoors.
5. A fee of sixty dollars ($60.00) shall apply to each Elevator, Moving Stair, Dumbwaiter, and man lift.
6. A fee of sixty dollars ($60.00) shall apply for any elevator repair work, modernization or current changeover.
7. A fee of forty dollars ($40.00) shall apply for change of address.
8. A fee of forty dollars ($40.00) shall apply for low voltage.

2735 - BASIC STANDARDS

(A) No electrical work for light, heat or power shall be installed or placed in

or on any building, structure or premises, unless this work is in conformity with current approved methods of construction. Compliance with the regulations in the National Electric Code, (NFPA-70) shall be prima facie evidence of conformity with such approved methods. No electrical equipment shall be installed below grade elevation, including service, switchboards and panel boards.

(B) All installed electrical wiring shall conform to the requirements of the International Building Code, 2021 Edition, as amended, the 2020 National Electric Code, (NFPA-70) and such other applicable safety codes as enforced by the Department of Safety and Permits.

(C) All electrical devices, fittings, materials, equipment, and appliances shall be those approved for the purpose for which they are used. Only such electrical devices, fittings, materials, equipment, and appliances, that are constructed in conformity with their listing or labeled by a testing laboratory acceptable to the Director, shall be installed. The satisfactory listing or labeling of these devices, fittings, materials, equipment, and appliances shall be prima facie evidence of conformity with the requirements of this Code.

(D) The Director or his designee is hereby authorized to seize, de-energize or cause to make inoperable any electrical apparatus deemed by him to be dangerous, hazardous or perilous, when such electrical apparatus is either being used in a manner for which it is not approved or being used for a purpose for which it does not conform electrically. Large or bulky electrical apparatus that is not capable of being moved or transported to a location designated by the Chief Administrative Officer for storage shall be de-energized and "locked off" so as to be inoperable or incapable of being used. The seized electrical apparatus that is capable of being moved shall be transported to a location designated by the Chief Administrative Officer for storage. The custodian of the storage area shall maintain records of the impounded electrical apparatus and the date on which it was impounded and shall hold the apparatus in the storage area for a period of not more than thirty days. Any electrical apparatus so held or "locked off" may be redeemed by the owner thereof upon the payment of a fee to the City of New Orleans through the custodian thereof, consisting of a total of $150.00 plus $10.00 per day storage fee for each day the apparatus is stored. Any electrical apparatus impounded and stored or "locked off" and not redeemed by the owner thereof within thirty days may be transferred or assigned to the custody of the Department of Finance to be sold at public auction in the same manner as surplus property of the City.

(E) Low voltage installation wiring shall:

1. be properly attached to structural components.
2. be removed if it is abandoned as a result of a new low voltage installation.
3. be installed in a neat and workmanlike manner.
4. be installed so as not to impair or degrade the fire rating or structural integrity of a penetrated wall ceiling in accordance with Article 300.21 of the NEC.
5. be properly listed and labeled in accordance with Article 110.3 (B) of the NEC.

2736 - FIRE PUMPS

All wiring of fire pump installations shall be in accordance with the National Electric Code, (NFPA-70), and Centrifugal Fire Pumps, (NFPA-20), (See Chapter 35 of the International Building Code, 2021 ed., as amended).

2737 - STANDARD ELECTRICAL MATERIALS

Before any electrical material, appliance, or equipment (including prefabricated or preassembled electrical units or systems) is used, it shall be constructed in conformity with current standards, and be classified and listed by, including but not limited to, Underwriters Laboratory (UL), Factory Mutual (FM), Canadian Standards Association (CSA), Electrical Testing Laboratories (ETL), MET Laboratories and others listed by the ICC-ES to insure safety to life and property.

2738 - ALTERNATE MATERIALS AND METHODS

The provisions of this Code are not intended to prevent the use of any material or method of construction not specifically prescribed by this Code, provided an alternate has been approved by the Director. The Director may approve an alternate, provided he finds that the alternate for the purpose intended is at least the equivalent of that prescribed in this Code in quality, strength, effectiveness, fire resistance, durability and safety. The Director shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate. The Director may recommend an amendment to this Code in order to make permissible the use of the alternate. If, in the opinion of the Director, the evidence and proof are not sufficient to justify approval or recommendation for an amendment, the applicant may refer the entire matter to the Board of Building Standards and Appeals as specified in Section 113 of the International Building Code, 2021 Edition, as amended.

2739 - TESTS OF MATERIALS AND SYSTEMS OF CONSTRUCTION

Where new and alternate systems of construction, qualities of materials or tests are proposed for use, tests may be required by the Director. The required tests shall be made at the expense of the owner or his agent by a testing laboratory or other organization approved for the purpose by the Director. Certified copies of the test reports shall be filed with the Director for his approval before the systems of construction or materials are used. The owner or his agent shall notify the Director of the time and location of the tests so that he or his representative may be present.

2740 - COMPLIANCE REQUIREMENTS

All electrical contractors and electricians certified under this Chapter must also comply with all applicable laws and regulations of the State of Louisiana, in order to be considered in compliance with this Chapter.

2741 - ELECTRIC FENCE

No fence shall be electrified in the City of New Orleans.

2742 - GROUND RODS

At least (2) 5/8" copper-clad (8 ft.) ground rods, installed at least 6 feet apart with not less than 13 mills of copper coating shall be installed or (1) high grade stainless steel (8 ft.) ground rod at the service.

CHAPTER 32
ENCROACHMENTS

SECTION 32

3202.3.2 Windows, balconies, architectural features and mechanical equipment. Where the vertical clearance above grade to projecting windows, balconies, architectural features, or mechanical equipment is more than eight feet, one inch of encroachment is permitted for each additional one inch of clearance above eight feet. Encroachments into the public Right of Way must obtain approval from the appropriate city department.

CHAPTER 35
REFERENCED STANDARDS

The following additional Standards are referenced in various Sections of this code.

NFPA 20-05, Centrifugal Fire Pumps..... 2736

NFPA 70-05, National Electrical Code 2701

CHAPTER 36
INTERNATIONAL RESIDENTIAL CODE

The following Chapters of the International Building Code, (2021) as amended shall also be applicable to the construction of any one and two family dwelling when the structure is designed and constructed in accordance with the International Residential Code, 2021.

Chapter 1…Administration

Chapter 18…Soils and Foundations (Where applicable to one and two family dwellings

The following Chapters of International Residential Code are deleted in their entirety.

Chapter 1…Administration

Chapter 12…Mechanical Administration

Chapter 13…General Mechanical System Requirements

Chapter 14…Heating and Cooling Equipment and Appliances

Chapter 15…Exhaust System

Chapter 16…Duct Systems

Chapter 17…Combustion Air

Chapter 18…Chimneys and Vents

Chapter 19…Special Appliances, Equipment and Systems

Chapter 20…Boilers/Water Heaters

Chapter 21…Hydronic Piping

Chapter 22…Special Piping and Storage Systems

Chapter 23…Thermal Energy Systems

Chapter 24…Fuel Gas

Chapter 25…Plumbing Administration

Chapter 26…General Plumbing Requirements

Chapter 27…Plumbing Fixtures

Chapter 28…Water Heaters

Chapter 29…Water Supply and Distribution

Chapter 30…Sanitary Drainage

Chapter 31…Vents

Chapter 32…Traps

Chapter 33…Storm Drainage

Chapter 34…General Requirements

Chapter 35…Electrical Definitions

Chapter 36…Services

Chapter 37…Branch Circuit and Feeder Requirements

Chapter 38…Wiring Methods

Chapter 39…Power and Lighting Distribution

Chapter 40…Devices and Luminaries

Chapter 41…Appliance Installation

Chapter 42…Swimming Pools

Chapter 43…Class 2 Remote-Control Signaling and Power - Limited Circuits

All electrical work with respect to one and two family dwellings shall be in accordance with the National Electrical Code, NFPA 70 (See Chapter 35 of the International Building Code).

All mechanical and gas work with respect to one and two family dwellings shall be in accordance with the International Mechanical Code and International Fuel Gas Code, if and when the IRC does not provide direction (See Section 104 of the International Building Code).

APPENDIX AJ
EXISTING BUILDINGS AND STRUCTURES

Section AJ109.3 Extensive Alterations, Repairs or Renovations. Where the total cost of all work included, that is enlarged, altered, raised, repaired, or built upon and exceeds 50 percent of the fair market value of the building (excluding the value of the site), the work shall be considered to be a reconstruction and shall comply with the requirements of these provisions for reconstruction work.

The Department of Safety and Permits will determine if the cost information provided is reasonable for the work proposed.

CHAPTER 3
BUILDING PLANNING

R302.1 Exterior walls. Exterior walls with a fire separation distance less than 3 feet (914 mm) shall have not less than a one-hour fire-resistive rating with exposure from both sides. Projections shall not extend to a point closer than 2 feet (610 mm) from the line used to determine the fire separation distance.

Projections extending into the fire separation distance shall have not less than one-hour fire-resistive construction on the underside. The above provisions shall not apply to walls which are perpendicular to the line used to determine the fire separation distance.

R302.1 Openings. Openings shall not be permitted in the exterior wall of a dwelling or accessory building with a fire separation distance less than 3 feet (914 mm). This distance shall be measured perpendicular to the line used to determine the fire separation distance.

Exceptions:

1. Openings shall be permitted in walls that are perpendicular to the line used to determine the fire separation distance.
2. Foundation vents installed in compliance with this code are permitted.

R302.2 Townhouses. Each townhouse shall be considered a separate building and shall be separated by fire-resistance-rated wall assemblies meeting the requirements of Section R302 for exterior walls.

Exception: A common 2-hour fire-resistance-rated concrete masonry wall is permitted for townhouses if such walls do not contain plumbing or mechanical equipment, ducts or vents in the cavity of the common wall. Electrical installations shall be installed in accordance with The National Electrical Code (See Chapter 35 of IBC). Penetrations of electrical outlet boxes shall be in accordance with Section R317.3.

R302.4 Penetrations. Penetrations located in the exterior wall of a dwelling with a fire separation distance less than 3 feet (914 mm) shall be protected in accordance with Section R317.3)

Exception: Penetrations shall be permitted in walls that are perpendicular to the line used to determine the fire separation distance.

APPENDIX D

SECTION D101 - GENERAL

D101.1 Scope. For the purpose of this Code, fire district shall include that territory or portions of the City as described in Section D101.1.2.

D101.1.1 Mapping. The fire district complying with the provisions of Section D101.1 shall be shown on a map that shall be available to the public.

D101.1.2 Fire District. The area included within the following described boundaries is hereby designated " Fire District." Commencing at the center line of John Churchill Chase Street at the Mississippi River, thence along the center line of John Churchill Chase Street to the center line of Camp Street, thence along the center line of Calliope Street to the center line of St. Charles Avenue, thence along the center line of St. Charles Avenue to the intersection of Howard Avenue, thence along the center line of Howard Avenue to the center line of Claiborne Avenue, thence along the center line of Claiborne Avenue to the center line of St. Peter Street, thence along the center line of St. Peter Street to the Mississippi River, thence along the Mississippi River to the point of commencement.

SECTION D102 - BUILDING RESTRICTIONS

D102.1 Types of construction permitted. Within the fire district every building hereafter erected shall be either Type I, II, III or IV, except as permitted in Section D104.

D102.2 Other specific requirements.

D102.2.1 Exterior walls. Exterior walls of buildings located in the fire district shall comply with the requirements in Table 601 except as required in Section D102.2.6.

D102.2.2 Group H prohibited. Group H occupancies shall be prohibited from location within the fire district.

D102.2.3 Construction type. Every building shall be constructed as required based on the type of construction indicated in Chapter 6 of the International Building Code.

D102.2.4 Roof covering. Roof covering in the fire district shall conform to the requirements of Class A or B roof coverings as defined in Section 1505.

D102.2.5 Structural fire rating. Walls, floors, roofs, and their supporting structural members shall be a minimum of 1-hour fire-resistance-rated construction.

Exceptions:

1. Buildings of Type IV construction.
2. Buildings equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1.
3. Automobile parking structures.
4. Buildings surrounded on all sides by a permanently open space of not less than 30 feet (9144 mm).
5. Partitions complying with Section 603.1 (8).

D102.2.6 Exterior walls. Exterior load-bearing walls of Type II buildings shall have a fire-resistance rating of 2 hours or more where such walls are located within 30 feet (9144 mm) of a common property line or an assumed property line. Exterior nonload-bearing walls of Type II buildings located within 30 feet (9144 mm) of a common property line or an assumed property line shall have fire-resistance ratings as required by Table 601, but not less than 1 hour. Exterior walls located more than 30 feet (9144 mm) from a common property line or an assumed property line shall comply with Table 601.

Exception: In the case of one story buildings that are 2,000 square feet (108 M_2) or less in area, exterior walls located more than 15 Feet (4572 mm) from a common property line or an assumed property line need only comply with Table 601.

D102.2.7 Architectural trim. Architectural trim on buildings located in the fire district shall be constructed of approved noncombustible materials or fire retardant treated wood.

D102.2.8 Permanent canopies. Permanent canopies are permitted to extend over adjacent open spaces provided:

1 The canopy and its supports shall be of noncombustible material, fire-retardant-treated wood, Type IV construction, or of 1-hour fire resistance rated construction.

1.1 *Exception:* Any textile covering for the canopy shall be flame resistant as determined by tests conducted in accordance with NFPA 701 after both accelerated water leaching and accelerating weathering.

2 Any canopy covering, other than textiles, shall have a flame spread index not greater than 25 when tested in accordance with ASTM E 84 in the form intended for use.

3 The canopy shall have at least one long side open.

4 The maximum horizontal width of the canopy shall not exceed 15 feet (4572 mm).

5 The fire resistance of exterior walls shall not be reduced.

D102.2.9 Roof structures. Structures, except aerial supports 12 feet (3658 mm) high or less, flag poles, water tanks and cooling towers, placed above the roof of any building within the fire district shall be of noncombustible material and shall be supported by construction on non-combustible material.

D102.2.10 Plastic signs. The use of plastics complying with Section 2611 for signs is permitted provided the structure of the sign in which the plastic is mounted or installed is noncombustible.

D102.2.11 Plastic veneer. Exterior plastic veneer is not permitted in the fire district.

D102.2.12 Temporary Buildings. Temporary structures such as reviewing stands and other miscellaneous structure conforming to the requirements of this Code and shed, canopies or fences used for the protection of the public around and in conjunction with construction work may be erected in the Fire Limits and outer Fire Limits by permit from the Director for a limited period of time, and such building or structure shall be completely removed upon the expiration of the time limit stated in such permit.

D102.2.13 Other minor structures. A special permit of 90 days may be issued for other minor, one story, temporary structures used for shelter purposes only and not exceeding 100 sq. ft. in area.

SECTION D103 - CHANGES TO BUILDINGS

D103.1 Existing buildings within the fire district. An existing building shall not hereafter be increased in height or area unless it is of a type of construction permitted for new buildings within the fire district or is altered to comply with the requirements for such type of construction. Nor shall any existing building be hereafter extended on any side, nor square footage or floors added within the existing building unless such modifications are of a type of construction permitted for new buildings within the fire district.

D103.2 Other alterations. Nothing in Section D103.1 shall prohibit other alterations within the fire district provided there is no change of occupancy that is otherwise prohibited and provided the fire hazard is not increased by such alteration.

D103.3 Moving buildings. Buildings shall not hereafter be moved into the fire district or to another lot in the fire district unless the building is of a type of construction permitted in the fire district.

SECTION D104 - BUILDINGS LOCATED PARTIALLY IN THE FIRE DISTRICT

D104.1 General. Any building located partially in the fire district shall be of a type of construction required for the fire district, unless the major portion of such building lies outside of the fire district and no part is more than 10 feet (3048mm) inside the boundaries of the fire district.

SECTION D105 - EXCEPTIONS TO RESTRICTIONS IN FIRE DISTRICT

D105.1 General. The preceding provisions of this appendix shall not apply in the following instances:

1. Temporary buildings used in connection with duly authorized construction.
2. A private garage used exclusively as such, not more than one story in height, nor more than 650 square feet (60 m2) in area, located on the same lot with a dwelling.
3. Fences not over 7 feet (2438 mm) high.
4. Coal tipples, material bins, and trestles constructed of Type IV construction.
5. Water tanks and cooling towers conforming to Section 1509.3 and 1509.4.
6. Greenhouses less than 15 feet (4572mm) high.
7. Porches on dwellings not over one story in height, and not over 10 feet (3048 mm) wide from the face of the building, provided such porch does not come within 5 feet (1524 mm) of any property line.
8. Sheds open on a long side not over 15 feet (4572 mm) high and 500 square feet (46 m2) in area.
9. One- and two-family dwellings where of a type of construction not permitted in the fire District can be extended 25 percent of the floor area existing at the time of inclusion in the fire district by any type of construction permitted by this code.

10. Wood decks less than 600 square feet (56 m2) where constructed of 2-inch (51 mm) nominal wood, pressure treated for exterior use.
11. Wood veneers on exterior walls conforming to Section 1405.4.
12. Exterior plastic veneer complying with Section 2605.2 where installed on exterior walls required to have a fire-resistance rating not less than 1 hour, provided the exterior plastic veneer does not exhibit sustained flaming as defined in NFPA 268.

SECTION D106 - REFERENCED STANDARDS

ASTM E 84-04	Test Methods for Surface Burning Characteristics of Building Materials	D102.2.8
NFPA 268-01	Test Method for Determining Ignitability of Exterior Wall Assemblies Using a Radiant Heat Energy Source	D105.1
NFPA 701-99	Methods of Fire Test for Flame-resistant Textiles and Films	D102.2.8

(M.C.S., Ord. No. 22938, §§ 8—18, 12-20-07; M.C.S., Ord. No. 25206, §§ 1, 2, 3-7-13; M.C.S., Ord. No. 25921, § 1, 6-19-14; M.C.S., Ord. No. 26262, § 1, 2-26-15; M.C.S., Ord. No. 27441, § 1, 6-15-17; M.C.S., Ord. No. 27702, § 1, 3-8-18; M.C.S., Ord. No. 28187, § 1, 9-5-19; M.C.S., Ord. No. 28342, § 1, 5-7-20; M.C.S., Ord. No. 28701, § 1, 6-17-21; M.C.S., Ord. No. 28793, § 1, 10-7-21; M.C.S., Ord. No. 30151, § 1, 11-21-24, eff. 1-1-25; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-16. International Mechanical Code—Adopted.

(a) *Code adopted.* The International Mechanical Code, 2021 Edition is hereby adopted except that the text of the code shall read as modified by the amendments set forth in section 26-17 and in the event of conflict the amendments shall supersede and take priority over any amended or unamended section. If an amendment is in conflict with only part of a section, it shall be construed as superseding only the part of the section with which it is in conflict.

(b) *City not liable.* Nothing contained in this International Mechanical Code shall be construed to relieve or lessen the responsibility or liability of any person for injury or damage to persons or property caused by or resulting from any defects of any nature in any work performed by said person or in any equipment owned, controlled, installed, operated or used by him, nor shall the city, or any officer, agent or employee thereof incur, or be held to assume, any liability by reason or in consequence of any permit, permission, certificate of inspection or approval authorized therein, or issued or given as herein provided, or by any reason of or in consequence of any things done or acts performed pursuant to any provisions of this International Mechanical Code.

(c) *Prior violations.* All suits at law or in equity and all prosecutions resulting from the violation of any building ordinances heretofore in effect, which are now pending in any of the courts of this state, or of the United States, shall not be abated or abandoned by reason of the adoption of this International Mechanical Code, but shall be prosecuted to their finality the same as if this International Mechanical Code had not been adopted; and nothing in this International Mechanical Code shall be so construed as to abandon, abate, or dismiss any litigation or prosecution now pending, or which may have heretofore been instituted or prosecuted.

(d) *Retroactive clause.* In the case of violations of mechanical ordinances committed before the effective date of this ordinance, the mechanical ordinance existing at the time such violations were committed shall apply and govern.
(M.C.S., Ord. No. 22939, §§ 2—5, 12-20-07; M.C.S., Ord. No. 25920, § 1, 6-19-14; M.C.S., Ord. No. 27443, § 1, 6-15-17; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-17. Same—Amendments.

Chapter 1 of the International Mechanical Code, 2021 Edition, shall be deleted in its entirety, and the following shall be substituted in lieu thereof:

CHAPTER 1
ADMINISTRATION

SECTION 101 - GENERAL

101.1 - Title. These regulations shall be known as The International Mechanical Code, 2021

Edition, as amended by the City of New Orleans hereinafter referred to as "this code."

The Director of the Department of Safety and Permits, as the appointing authority of the Department, and all of its Divisions, is hereinafter referred to in this code as "the Director."

101.2 - Scope. The provisions of this code regulate the design, installation, maintenance, alteration and inspection of mechanical systems that are permanently installed and utilized to provide control of environmental conditions and related processes within buildings. This code shall also regulate those mechanical systems, system components, mechanical appliances, the stationary equipment, and the hoisting and portable equipment specifically addressed herein. The installation of fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems shall be regulated by the International Fuel Gas Code.

101.2.1 - Appendices. Provisions in the appendices shall not apply unless specifically adopted.

101.3 - Intent. The purpose of this code is to provide minimum standards to provide a reasonable level of safety, to protect the health and general welfare of the public and property, by regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance or use of mechanical systems and by the certification of the operators of the equipment specified herein.

101.3.1 - Quality Control. Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein.

101.4 - Severability or partial invalidity. In the event any section, subsection, sentence, clause, phrase or portion of this code is, for any reason, held to be unconstitutional, illegal or void, such decision shall not affect the validity of the any of the remaining portions of this code.

SECTION 102 - APPLICABILITY

102.1 - General. Where, in a specific case, different sections of this code specify different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

102.1.1 - Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state or federal law.

102.2 - Existing installations. Except as otherwise provided for in this Chapter, no provision in this code shall require the removal, alteration or abandonment of, nor prevent the continued utilization and maintenance of, a mechanical system or mechanical equipment lawfully in existence at the time of the adoption of this code.

102.3 - Maintenance. Mechanical systems, both existing and new and parts thereof shall be maintained in proper operating condition in accordance with the original design and in a safe and sanitary condition. Devices or safeguards which are required by this code shall be maintained in compliance with the code edition under which they were installed. The owner or the owner's authorized agent shall be responsible for maintenance of the mechanical systems. To determine compliance with this provision, the Director has the authority to require the mechanical system to be reinspected.

102.4 - Additions, alterations or repairs. Additions, alterations, renovations or repairs to a mechanical system shall conform to that required for a new mechanical system without requiring the existing mechanical system to comply with all of the requirements of this code. Additions, alterations or repairs shall not cause an existing mechanical system to become unsafe, hazardous or overloaded.

Minor additions, alterations, renovations and repairs to existing mechanical systems shall meet the provisions for new construction,

unless such work is done in the same manner and arrangement as was in the existing system, is not hazardous and is approved.

102.5 - Change in occupancy. It is unlawful to make a change in the occupancy of any structure which will subject the structure to any special provisions of this code applicable to the new occupancy without approval. The Director shall certify that such structure meets the intent of the provisions of law governing building construction for the proposed new occupancy and that such change of occupancy does not result in any hazard to the public health, safety or welfare.

102.6 - Historic buildings. The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings when such buildings or structures are judged by the Director to be safe and in the public interest of health, safety and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation or moving of buildings.

102.7 - Moved buildings. Except as determined by Section 102.2, mechanical systems that are a part of buildings or structures moved into or within the jurisdiction shall comply with the provisions of this code for new installations.

102.8 - Referenced codes and standards. The codes and standards referenced herein shall be those that are listed in Chapter 15 and such codes and standards shall be considered as part of the requirements of this code to the prescribed extent of each such reference. Where differences occur between provisions of this code and the referenced standards, the provisions of this code shall apply.

102.9 - Requirements not covered by this code. Requirements necessary for the strength, stability or proper operation of an existing or proposed mechanical system, or for the public safety, health and general welfare, not specifically covered by this code, shall be determined by the Director.

SECTION 103 - DUTIES AND POWERS

103.1 - General. The Director of the Department of Safety and Permits is hereby authorized and directed to enforce the provisions of this code. The Director shall have the authority to render interpretations of this code and to adopt policies and procedures in order to clarify the application of its provisions. The interpretations, policies and procedures shall be in compliance with the intent and purpose of this code. The interpretations, policies and procedures shall not have the effect of waiving requirements specifically provided for in this code.

103.2 - Records. The Director shall keep, or cause to be kept, a record of the business of the Department in accordance with the public record law of the State of Louisiana.

103.3 - Application and Permits. The Director shall receive applications, review construction documents and issue permits for the installation and alteration of mechanical systems, inspect the premises for which the permits have been issued and enforce compliance with the provisions of this code.

103.4 - Notices and Orders. The Director shall issue all necessary notices or orders to ensure compliance with this code.

103.5 - Inspections. The Director shall make all of the required inspections, or shall accept reports of inspections by approved agencies or individuals, in a manner deemed appropriate by the Director and subject to regulation as provided in the New Orleans Amendments to the International Building Code or through written administrative policy. All reports of inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual. The Director is authorized to engage such expert opinion as deemed necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

103.6 - Identification. The Director shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

103.7 - Right of Entry. When it is necessary to make an inspection to enforce the provisions of this code, or when the Director has reasonable cause to believe that there exists, in a structure or upon any premises, a condition which is contrary to or in violations of this code which makes the structure or premises unsafe, dangerous or hazardous, the Director is authorized to enter the structure or premises at all reasonable times to inspect or to perform the duties imposed upon him by this code. If such structure or premises is occupied, the Director shall present credentials to the occupant and request entry. If such structure or premises is unoccupied, the Director shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Director has recourse to every remedy provided by law to secure entry.

103.8 - Liability. The Director, designee or any employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered civilly liable personally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or be reason of an act or omission in the discharge of official duties.

Any suit instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of his duties and under the provisions of this code shall be defended by the legal representative for the Department of Safety and Permits until the final termination of the proceedings. The Director or any of his subordinates shall not be liable for costs in an action, suit or proceeding that is instituted in pursuance of the provisions of this code; and any officer in the Mechanical Inspection Division, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act of inclusion or omission in the performance of official duties as required by this code.

SECTION 104 - PERMIT AND FEE REQUIREMENTS

104.1 - Permit Required - A permit is required to erect, install, enlarge, alter, repair, remove, convert or replace a mechanical system, the installation of which is regulated by this code. No work may commence until the required permit is issued except where the work must be performed in an emergency situation.

Exceptions: (1) approved self-contained refrigeration equipment up to 1 H.P.; (2) approved self-contained factory-built air conditioning unit, commonly referred to as "window unit," used in private residences and without ducts, (providing the air conditioning unit does not project over public property).

104.2 - Permit Applications. Each permit application, with the required fee, shall be filed with the Mechanical Inspection Division on a form furnished for that purpose and shall contain a description of the proposed work and its location. An application must be filed by a Class "A" Air Conditioning and Refrigeration Contractor with an active license and must be signed by the license holder.

104.3 - Permit Validity - Each permit application must be properly completed with the signature of the license holder, and the proper fees paid, before being processed, approved and assigned a formal mechanical permit number.

No work may commence until the permit application is approved and issued by the Mechanical Inspection Division except when failure to commence the work would be life threatening or the work is an emergency due to disaster or any uncontrolled event or occurrence.

A permit shall be construed to be authorization to proceed with the work and shall not be construed as authority to violate, cancel, alter, or set aside any of the provisions of this Code, or any other ordinances adopted by the City of New Orleans, including the Comprehensive Zoning Ordinance nor shall such issuance of a permit prevent the Director from thereafter

requiring a correction of errors in the Construction Documents or in the installation, construction, or of violations of this Code.

104.4 - Permit Expiration. Every permit issued shall expire if the work authorized by such permit does not commence within six (6) months after the date of its issuance, or if the work authorized by such permit is suspended for more than six (6) months after the date of its issuance, or if the work authorized by such permit is suspended or discontinued for a period of six (6) months after the date the work began. One or more extensions of time may be allowed for the permit provided the extension is requested in writing and justifiable cause is demonstrated to the Director. When the Director grants an extension, it shall be in writing to the requestor, and the period shall not exceed ninety (90) days each.

104.5 - Permit Fees. Installations, reinstallations, alterations, or replacement or addition of prime movers (condensers) shall pay the fees listed below:

From 1 to 3 Tons	$15.00
For each Ton over 3 Ton . . .	$ 3.00
Cooling towers	
1 to 50 tons	$40.00
51 tons to 100 tons . . .	$65.00
Over 100 tons	$85.00

Additional fees for the associated gas and/or electric heating units are listed on the Mechanical Inspection Division Permit Application form.

The total fee for any work begun prior to obtaining the required permit, excepting the emergency or life threatening conditions, shall be the listed fee plus a penalty fee of five (5) times the listed fee for such work.

104.6 - Alteration Permits. Alteration permits fees shall be based on contract price at a rate of $30.00 for the first $1,500.00 of cost or part thereof plus $10.00 for each additional $1,000.00 or part thereof.

104.7 - Definitions. For purposes of definitions under this Code,

1. One (1) Ton shall be considered to be equal to or less than 12,000 Btu per hour.
2. 3,413 Btu shall be considered equal to one (1) KW.
3. One boiler horsepower shall be considered equal to 33,465 Btu per hour.
4. Hot Water Boilers: Any vessel in which water is heated, steam is generated, steam is superheated, or any combination thereof, under pressure or vacuum for use external to itself, by the direct application of heat, that is heat resulting from the combustion of fuel, electrical elements, nuclear fuel, or waste gasses.

SECTION 105 - CONSTRUCTION DOCUMENTS

Construction Documents involving mechanical installations are to be submitted at the time of application for building permits. See Article 106 - Construction Documents of the New Orleans Amendments to the International Building Code for details.

SECTION 106 - ANNUAL INSPECTION AND FEES

106.1 - All Air Conditioning systems and Water Heaters in commercial and industrial installations shall be subject to inspections for installation safety by the Mechanical Inspection Division according to the following schedules and fees:

ANNUAL INSPECTIONS FEE

Commercial and Industrial Installations

Refrigeration and/or Air Conditioning systems (up to 99 tons) …$15.00/system

Refrigeration and/or Air Conditioning systems (100 or more tons) …$35.00/system

Cooling Towers…$20.00/system

Water Heaters …$10.00/system

Generators …$15.00/system

106.2 - All inspection fees are due and payable upon receipt of the "ANNUAL INSPECTION MECHANICAL EQUIPMENT" bill. Fees will be doubled after 30 days if bill remains unpaid. After 60 days action will be taken to have the utilities disconnected until payment and/or corrections has been received.

106.3 - Inspections And Posting.

106.4. Installation Inspection. The installer of every Class A, B or C system shall notify the Director not less than 36 hours prior to the day on which the installations are to be inspected. Failure to notify the Director as required shall be deemed a violation of this Code. The Director shall make all inspections promptly, and shall issue within 72 hours of inspection, a Certificate of Approval to the installer upon satisfactory completion of such inspections. Saturdays, Sundays and holidays shall not be included in this 72 hour period. Inspections of installations in any building or facility shall be made before the piping and connections of the system are covered and/or made inaccessible.

106.5 - Biennial Inspections And Fees.

106.5.1. Upon approval of the Director, an owner may elect to have all equipment listed in 106.1 to 106.4 inspected every two years in lieu of an annual inspection. This biennial inspection shall not be applicable to any equipment, systems, building, structure or plant that requires a building safety summary or an attending stationary engineer. The fees associated with a biennial inspection shall be twice those listed in Section 106.1.

SECTION 107 - CERTIFICATES OF APPROVAL

The Director shall sign and issue all Certificates of Approval for the installation, repair or alteration of all air conditioning and/or refrigeration work. Said certificate shall not be issued until all work has been inspected by him and found to comply with all the requirements of this Code. Said certificate shall contain mechanical data, name of the owner or owners, and exact location of the building or premises where the installed work was accomplished. The Mechanical Inspection Division shall keep a record of the equipment inspected in each building giving the description of the equipment, the name of the owner or owners of the building, the inspection date and the amount collected for such inspections and the name of the installer for whom the inspection was made.

SECTION 108 - POSTING OF ANNUAL CERTIFICATE OF APPROVAL.

The owner shall post the issued Certificate of Approval in the machinery room within 10 feet of the pressure imposing element. The Director shall maintain a file and record of the Certificates of Approval issued at each location.

108.1 - Instructions. Every owner of every Class A, B or C system shall conspicuously post, as near as practical to the unit, the amount of refrigerant charge, kind of refrigerant, operating directions, and precautions to be observed in case of a breakdown or leak, including the following:

1. Instructions for shutting down the system in case of an emergency.
2. The name, address and day and night telephone numbers for obtaining service.
3. The name, address and telephone number of the municipal inspection department having jurisdiction and instruction to notify said department immediately in case of emergency.
4. A sign showing location of main plant switch.
5. The name or license number of Operating Engineer in charge.
6. Location of nearest fire alarm box.
7. Instructions for letting out refrigerant in case of fire.

SECTION 109 - AIR CONDITIONING AND REFRIGERATION CONTRACTOR CERTIFICATION

109.1 - License Required. A person, firm or corporation engaging in the business of install-

ing, constructing, reconstructing, altering, repairing, or servicing any air conditioning or refrigeration system or apparatus or parts thereof, (excluding plug-in types), and who does not hold, or does not employ a person who holds, a Class "A" Air Conditioning and Refrigeration contractor's is in violation of this code.

A Class "A" Air Conditioning and Refrigeration Contractor license issued under this chapter shall not be required for the following allied contractors who are performing only their trade work on a system or apparatus having air conditioning or refrigeration work regulated by this code:

1. Electrical
2. Plumbing
3. Gasfitting
4. Sheet-metal
5. Insulating

   All of the above must, however, perform their trade work in association with or in support of an air conditioning or refrigeration system.

6. Stationary Engineers certified in accordance with this Code, may perform work on the air conditioning and refrigeration systems, apparatus or parts thereof to include installation, construction, alteration, reconstruction, repair or service. This work is allowed only within the building, mechanical plant or plants, in which the certified Stationary Engineer is hired to operate, provided however, the necessary Mechanical Inspection Division permits required by this Code have first been obtained. A Stationary Engineer applying for a permit with the Mechanical Inspection Division for the above work at his building, mechanical plant in which he is hired to operate shall provide his Boiler, Air Conditioning or Refrigeration License number. His license must be current and the status must be "Active".

SECTION 110 - APPLICATIONS FOR EXAMINATIONS

Examination applicants for the Class "A" Air Conditioning and Refrigeration Contractor License or the Class "B" Journeyman Mechanic License shall complete and submit the application to the nationally recognized testing company approved by the City of New Orleans. The application forms shall be furnished by them and they shall be properly completed in accordance with their information brochure. All applications for examination shall be submitted to the recognized testing company under contract with the City of New Orleans, prior to the deadline dates published in their issued information brochure. The application shall be accompanied by the appropriate examination fee.

SECTION 111 - EXAMINATIONS

Applicants for examinations shall meet the following requirements:

1. Applicants must be at least eighteen (18) years of age.
2. An applicant for a Contractor license must furnish satisfactory proof of having at least five (5) years experience in the field of installation and repair of air conditioning or refrigeration systems. Satisfactory completion of a Mechanical Engineering Curriculum or Registration as a Professional Engineer shall constitute satisfactory completion of this requirement.
3. An applicant for a Contractor license must have someone in attendance in order to receive communications from the Mechanical Inspection Division of the Department of Safety and Permits, or other persons concerned, during business hours.
4. An applicant for a Contractor's License must show successful completion and graduation in a

course of study in air conditioning and refrigeration systems offered by a trade school or technical college of recognized standing having at least a two year curriculum. This shall account for four years experience.

5. A Class "A" Air Conditioning and Refrigeration Contractor license may be assigned to only one firm, corporation or business at any time.

6. An applicant for a Class "B" Journeyman Mechanic license must furnish satisfactory proof of having at least four (4) years experience working in the field of installation and repair of air conditioning or refrigeration trade or show successful completion and graduation from an HVAC program at a state accredited trade school or college having at least a two-year standardized associate degree curriculum in air conditioning and refrigeration. Applicants who have completed said HVAC program shall be allowed to test.

7. Each applicant that has passed the examination shall furnish the Mechanical Inspection Division two bust pictures (passport type), 1 inch by 1½ inches in size. Requirement #7 shall not be required if application is made in person.

8. License Issue - Mechanical Inspection Division shall issue the appropriate license. Licenses issued in accordance with the provisions of this code shall not be assignable or transferable to any other person.

   Each license issued shall identify the name and address of the person to whom the license is issued, the date issued and the expiration date. Before any license is issued under this code the applicant must pay the fee required for such license as defined in this code.

SECTION 112 - EXAMINATIONS

112.1. - Examinations shall be held on dates as identified in the issued Candidate Information Brochure of the nationally recognized testing company under contract with the City of New Orleans.

112.2 - When a candidate passes the examination the appropriate license must be issued within 1 year. The license must be signed by the Director.

The license holder must have his license in his immediate possession at all times while performing the work for which he is licensed and shall display it upon demand.

All licenses shall be issued by the Mechanical Inspection Division.

112.3 - Re-examinations. If an applicant fails to make a passing grade on the examination, he is permitted to apply to be re-examined at the next regularly scheduled examination date. There is no limit to the number of examinations a candidate is allowed to take.

112.4 - Definition Of License Classifications.

Class "A" Air Conditioning and Refrigeration Contractor. Any person, firm or corporation engaging in the business of installing or contracting to install or repairing or contracting to repair air conditioning, refrigeration or any mechanical equipment associated with the refrigeration process.

Class "B" Journeyman Mechanic. Any person engaged in the trade of installing or repairing air conditioning and/or refrigeration equipment, materials or apparatus. A Class "B" Journeyman Mechanic must be employed by and work under the supervision of a Class "A" Air Conditioning and Refrigeration Contractor.

112.5 - License Revocation Or Suspension. Licenses issued under this code may be revoked or suspended for reasons defined in this code. However, the Director may find that the public health, safety & welfare will be adequately protected by a warning or a suspension for a

definite period of time not to exceed two years. Upon such finding the Director shall issue such warning or order such suspension. Upon revocation, the Mechanical Inspection Division shall not accept an application for a new license or a renewal within two (2) years from the date of such revocation unless a shorter time period is granted at the discretion of the Director based on the circumstances of the revocation or suspension.

If an Air Conditioning and Refrigeration Contractor license is suspended or revoked, a new license shall be issued to such person only after application as a new applicant, and passing the required examination.

112.6 - Revocation Or Suspension Reasons.

1. Interfering, impeding, or obstructing the legal operation of, or intentionally damaging, any item governed by this Code. In addition, threatening, abusing, insulting, interfering with, impeding or obstructing any individuals in connection with the operations or inspections of any equipment regulated by this code, or the administration of this Code.
2. Violating, either willfully or maliciously, or by reason of incompetence, any provision of this code.
3. Conviction of any offense involving the defrauding of any person for whom a service has been rendered or contracted to be rendered under this chapter.
4. Fraud or misrepresentation in obtaining a license or permit.
5. Conviction of drunkenness or the use of narcotics.
6. Adjudication of insanity.
7. Securing a permit for mechanical work not actually performed by the Class "A" Air Conditioning and Refrigeration Contractor or by certified employees under his control, supervision, direction and responsibility.
8. Securing a permit under any pretext for an installation concerning which the applicant has no valid contract.
9. Performing any air conditioning or refrigeration work as defined herein for which no mechanical permit has been obtained.
10. Refusing to finish work for which a permit was taken and for which payment was accepted.
11. False, misleading or deceptive advertising.
12. Any medical reason wherein a physician's medical opinion is provided to the Director indicating the person certified is unable to satisfactorily perform the duties and functions expected of a Class "A" Air Conditioning and Refrigeration, or a Class "B" Journeyman Mechanic license holder, and any further performance in the air conditioning or refrigeration field as a result of present continued activity or any future license renewal would be a danger to himself and endanger the life and property of others.

112.6.1 - License Renewal. The Director may withhold the renewal of any license by the same process used for revocation or suspension of issued licenses, as described in this Code.

112.7 - Code Violation Hearing. If needed, the Director shall initiate a hearing, in conjunction with the Building Official or the Chief Mechanical Inspector to review a code violation the Chief Mechanical Inspector has determined to exist, that would effectuate any license issued by the Mechanical Inspection Division to be suspended or revoked.

112.8 - Notice Of Hearing. Any time the Director is shown the existence of one or more violations that are grounds for revocation, or there is filed with the Mechanical Inspection

Division a complaint of any person alleging the existence of any such violations, and if the Director has determined these grounds to be valid, it shall be his duty to serve upon the alleged violator a notice of the alleged grounds for revocation. The notice shall be served upon the holder of the license stating the time, date, and place of a violation hearing. The written notice shall be served not less than 15 days prior to the hearing. The notice shall enumerate the cause or causes for suspending or revoking the license. The notice may be mailed by regular and registered or certified mail to the holder of the license at the address of his place of business as given by him on his application for the license, or it may be served on him in person by a Police Officer or employee the Mechanical Inspection Division of the Department of Safety and Permits. The alleged violator shall have the right to appear at such hearing, be represented by counsel, produce evidence, and cross-examine witnesses. If after such hearing, it is determined that one or more of the above grounds do exist for suspension or revocation, the Chief Mechanical Inspectors final action shall be coordinated with the Building Official or the Director. The Chief Mechanical Inspector shall enter a written finding to the Director of the Department of Safety and Permits.

112.9 - Legal Advisor. The City Attorney shall be legal advisor to the Director.

112.10 - Appeal Procedure. An appeal from this decision may be taken to the Board of Building Standards and Appeals within ten (10) days of written notification to the appellant.

SECTION 113 - INSURANCE

Before a Class "A" Air Conditioning and Refrigeration Contractor license is issued (initial) or re-issued (renewal), each certified Class "A" Air Conditioning and Refrigeration Contractor must provide evidence of the following to the Director when he registers with the Mechanical Inspection Division.

113.1 - Minimum Insurance Requirements.

1. Workers' Compensation Insurance in accordance with Louisiana state law.
2. Comprehensive general liability insurance coverage with limits of not less than $500,000 per occurrence for bodily injury and $250,000 per occurrence for property damage, with coverage extended as follows:
   a. Operations-premises liability;
   b. Independent contractor's liability-broad form;
   c. Contractual liability - broad form;
   d. Completed operations and products liability.

   All such insurance shall be issued by a company duly registered and/or authorized to write such insurance in the State of Louisiana. Compliance with this section shall be considered as having been met when a copy of the policy or a certificate of insurance has been filed with and approved by the Department of Safety and Permits. Such policy shall include an endorsement thereon that the Department of Safety and Permits will be notified at least 10 days in advance in the event the policy or policies are canceled or permitted to lapse by not renewing before the expiration date of the certificate.

SECTION 114 - FEDERAL IDENTIFICATION NUMBER AND OCCUPATIONAL LICENSE

Before a Class "A" Air Conditioning and Refrigeration Contractor license is issued (initial) or re-issued (renewal), each certified Class "A" Air Conditioning and Refrigeration Contractor must provide his Federal Identification (ID) number and his City of New Orleans Occupational License Number or Certificate of Registration Number to the Director when he registers with the Mechanical Inspection Division.

SECTION 115 - LICENSE FEES

(A) To register a license an applicant shall pay the applicable fee as follows:

1. Class "A" Air Conditioning and

	Refrigeration Contractor	$125.00
2.	Class "A" Air Conditioning and Refrigeration Contractor (Inactive)	$30.00
3.	Class "B" Journeyman Mechanic	$60.00

(B) Fees for license registration shall be remitted to the Mechanical Inspection Division and made payable to the "City of New Orleans."

115.1 - Payment Of Fees: Dates For Renewal Of Active Licenses. The registration fee shall be paid at the time the application is presented for the initial or renewal license issuance.

The Class "A" Air Conditioning and Refrigeration Contractor License shall expire on the applicant's date of birth. The renewal registration fee for the Class "A" Air Conditioning and Refrigeration Contractor is due and payable to the "City of New Orleans" on the first regular day of business after the applicant's date of birth. No license renewal shall be issued unless all work specified on permit(s) filed more than three months prior to the applicant's date of birth has been completed, or a written reason, sufficient to the Director, has been submitted and approved, indicating why the job installation(s) remains incomplete.

A single license shall be issued to any contractor applicant successfully satisfying all of the requirements of the City for both of the trades of Class "A" Master Gasfitter and Class "A" Air Conditioning and Refrigeration Contractor. His issued license shall be known as the "Dual Contractor License". The "Dual Contractor License" shall also expire on the applicant's date of birth. Application and renewal fees for the "Dual Contractor License" shall be submitted to the Director prior to the first regular day of business after the applicant's date of birth.

Application and renewal fees for the Air Conditioning and Refrigeration Contractor license shall be submitted to the Director prior to the applicant's date of birth.

License holders may choose between one-year and two-year renewal periods.

1. The renewal fee for a one-year renewal shall be due annually on the first regular business day after the applicant's date of birth.
2. The renewal fee for a two-year renewal shall be due biennially on the first regular business day after the applicant's date of birth.

Should a Class "A" Air Conditioning and Refrigeration Contractor fail to renew his license prior to the first regular day of business after his date of birth, or fail to complete the work specified on his permit(s) issued more than three (3) months prior to his date of birth, a delinquent fee of $10.00 per month shall be added to the renewal fee beginning on the first regular day of business after his date of birth.

No permit application shall be processed, nor shall any permit be issued to any applicant who has not been issued a current valid license for the year of the permit application.

Failure to renew a Class "B" Journeyman Mechanic license prior to the first regular day of business after his date of birth shall require a delinquent fee of $5.00 per month added to the renewal fee beginning on the first regular day of business after his date of birth.

Failure to renew any Class "A" Air Conditioning and Refrigeration, or Class "B" Journeyman Mechanic expired licenses within a one year period shall require a new application and re-examination and shall be considered as a new applicant.

SECTION 116 - INACTIVE LICENSE

A Class "A" Air Conditioning and Refrigeration Contractor, who so desires may, by written request to and approval of the Director, change his license to an inactive status. The Class "A" Air Conditioning and Refrigeration Contractor may continue his inactive status by paying an annual renewal fee of $25.00. The inactive Air Conditioning and Refrigeration license expires on the applicant's date of birth of the year of issue. The inactive status

license must be renewed each year and the Director must be notified in writing that the contractor desires to remain in the inactive status for the ensuing year.

The Class "A" Air Conditioning and Refrigeration Contractor may revert his license back to an active status by a written request to and approval by the Director. Reverting the license back to the active status requires the payment of the full active fee as required in this Code.

No Class "A" Air Conditioning and Refrigeration Contractor shall engage in the business as an air conditioning or refrigeration contractor while his license is in an inactive status. An inactive license holder can, however engage in air conditioning and refrigeration work under the supervision of an active first class license holder.

Only one Air Conditioning and Refrigeration Contractor status change to inactive shall be allowed in any twelve (12) month period.

SECTION 117 - PROHIBITION AGAINST LICENSE TRANSFER

No Class "A" Air Conditioning and Refrigeration Contractor shall assign or in any way convey his license to anyone by power of attorney or any other process or become involved in any type of agreement, assignment or use whereby he will not have supervision, direction, control or responsibility for the air conditioning and/or refrigeration work for which he has obtained a permit from the Mechanical Inspection Division of the Department of Safety and Permits.

No Class "B" Journeyman Mechanic shall assign or in any way convey the use of his license, or any rights thereunder, to anyone by power of attorney or any other process.

SECTION 118 - AIR CONDITIONING AND REFRIGERATION CONTRACTORS' AND OWNER'S RESPONSIBILITIES

118.1 - The Class "A" Air Conditioning and Refrigeration license holder shall keep on file with the Director, a letter designating which person, partnership, firm or corporation he represents. He shall notify the Director within 10 days of any status change. The Class "A" Air Conditioning and Refrigeration license holder shall represent only one person, partnership, firm, or corporation.

118.2 - Every Class "A" Air Conditioning and Refrigeration Contractor, certified in accordance with these regulations, shall be responsible for any defects of construction installed by him until such time as a Certificate of Approval has been issued by the Director. Also, any and all defects (discrepancies) that may have been concealed by such Class "A" Air Conditioning and Refrigeration Contractor and discovered after a Certificate of Approval has been issued shall be the responsibility of and corrected by said Class "A" Air Conditioning and Refrigeration Contractor.

After the issuance of the Certificate of Approval by the Director, the person, firm or corporation in whose name the utility service is contracted for, shall be responsible for any and all defects.

SECTION 119 - DISPLAY OF AIR CONDITIONING AND REFRIGERATION CONTRACTOR'S SIGN

Every location where the installation of air conditioning and/or refrigeration work or any work of a mechanical nature is being done, shall have displayed in a conspicuous place, a sign giving the name and address of the person, firm or corporation doing the air conditioning and/or refrigeration work. The sign shall include the license number, name, address and telephone number of the person, firm or corporation and the words "CLASS "A" AIR CONDITIONING AND REFRIGERATION CONTRACTOR" in letters not less than two (2) inches high. Failure to display such sign by the installing Class "A" Air Conditioning and Refrigeration contractor or the display of such a sign by other than duly certified Class "A" Air Conditioning and Refrigeration Contractors shall constitute an attempt to circumvent the safety and welfare of the general public and shall be in violation of this Code.

119.1 - Every Class "A" Air Conditioning and Refrigeration Contractor shall permanently install a sign on each work vehicle utilized in

the performance of his duties and responsibilities as a Class "A" Air Conditioning and Refrigeration Contractor as defined in this Code. The vehicle sign shall contain the license number of the Class "A" Air Conditioning and Refrigeration Contractor, the name, address and the telephone number of the person, firm or corporation, in letters not less than two (2) inches high.

119.2 - Public Advertising Or Advertisement Of Services.

1. Every Class "A" Air Conditioning and Refrigeration Contractor advertising or proposing to advertise to the general public for the purposes of obtaining any of the types of air conditioning and/or refrigeration work, in Orleans Parish, as defined in this Code, shall provide his license number, the name, address and telephone number of the person, firm or corporation.
2. Advertising for the purposes of obtaining work in Orleans Parish as defined in this Code, by any person other than a certified Class "A" Air Conditioning and Refrigeration Contractor shall constitute an attempt to circumvent the general health, welfare and safety of the public and shall constitute a violation of this Code.
3. The display of such a sign or advertising for the purposes of obtaining work by any person other than a duly certified Class "A" Master Gasfitter Contractor shall constitute a violation of this Code.
4. Deceptive or false advertising shall constitute an attempt to circumvent the general health, welfare and safety of the public and shall constitute a violation of this Code.

SECTION 120 - BOILERS, HEATING SYSTEMS AND UNFIRED PRESSURE VESSELS

120.1 - All power boilers and low pressure heating boilers shall be inspected annually.

EXCEPTIONS:

1. This Section shall not apply to boilers, heating systems or unfired pressure vessels in marine or railroad service, which is under the inspection regulations of the United States Government.
2. This Section shall not apply to low-pressure boilers, low-pressure hot water or steam heating systems and hot water supply systems located in a private residence or dwelling of two (2) families or less.
3. This Section shall not apply to any unfired pressure vessel of 35 gallons capacity or less or any vessel designed for pressures not exceeding 250 psi provided they comply with the rules for construction and installation in this Code and are stamped as required by ASME B31.9.

120.2 - All unfired pressure vessels over 35 gallons shall be inspected at least once annually.

120.3. All boilers, heating systems or unfired pressure vessels shall be inspected by the Director during their installation.

120.4 - The owner or user shall apply a hydrostatic test to a boiler, heating system or unfired pressure vessel when advised to do so by the Director.

SECTION 121 - ANNUAL OPERATING CERTIFICATE FEES AND PERMITS

121.1 - The following fees shall be charged annually:

Boilers thru 20 HP	$20.00
Boilers 21 HP thru 100 HP	$25.00
Boilers over 100 HP	$30.00
Unfired Pressure Vessels which cannot be inspected internally	$15.00
Unfired Pressure Vessels which can be inspected internally	$20.00

121.2 - Every person, firm or corporation proposing to install or repair boilers, heating systems, hot water supply systems or unfired pressure vessels shall file a written request for a permit with the Director and pay the following fees:

Boilers - 1 thru 10 HP	$25.00
Each additional HP.	$3.00
Unfired Pressure Vessels not designed for internal inspections.	$20.00
Unfired Pressure Vessels designed for internal inspections thru 200 gallons nominal fluid capacity	$25.00
Over 200 gallons, each additional 100 gallon capacity.	$35.00
Repairs for the first $1,500.00 of cost.	$35.00
Each $1,000.00 over the first $1,500.00 or part thereof	$10.00

Permits obtained after installation has begun shall pay the regular fee plus a penalty fee of five (5) times the regular fee amount.

SECTION 122 - REVOCATION OF CERTIFICATES

When a boiler, heating system or unfired pressure vessel is found to be in a dangerous condition and its continued operation would be a source of danger to life and property, the Director shall immediately revoke the Certificate of Approval and the owner or user shall be ordered to cease operating same immediately. If the owner or user refuses to comply with the order, the Director shall have the authority to order the Utility Company to disconnect the service from the building, premises or structure where the dangerous boiler, heating system or unfired pressure vessel is being operated.

SECTION 123 - SPECIAL EVENTS AIR CONDITIONING AND REFRIGERATION

A Special Event shall include, but not be limited to fairs, festivals, carnivals, circuses, road shows, trade shows, concerts, displays, expositions and/or such other functions with a temporary status generally taking place outdoors and/or indoors at a permanent location or building utilizing the electrical service at that location or building to power the temporary installation of air conditioning and/or refrigeration equipment or other mechanical equipment to support the Special Event. This includes the temporary installation of air conditioning and/or refrigeration equipment or other mechanical equipment of any description to be powered by the use of self-generated electrical equipment either rented or owned by any of the types of Special Event. A permit is required for the Special Event temporary installation air conditioning and/or refrigeration or other mechanical equipment of any description. All Certificates of Approval issued for the Special Events air conditioning and/or refrigeration equipment or mechanical equipment of any description may be revoked at the discretion of the Director if the continued use of such mechanical equipment for the Special Event is deemed unsafe and not in the interest of the safety, health and welfare of the general public for which the event was initially allowed.

SECTION 124 - DISCONTINUANCE OF UTILITY SERVICES

(A) Whenever the Director determines the construction, repair or installation of any air conditioning and/or refrigeration system, or power source, or mechanical equipment at any municipal address or location to be in an unsafe, dangerous, hazardous or perilous condition and imminently threatening to the safety, health and welfare of the users, occupants or the general public, immediate notification shall be given to the utility company to disconnect the meter or remove any utility service to the building or location. No utility service shall be resumed until the necessary corrections have been completed as required by this Code.

(B) Whenever, in the opinion of the Director, any air conditioning and/or refrigeration installation of mechanical equipment or

power source in any building or any mechanical construction, installation, or repair work has been installed or is being used in violation of this Code or is being used in violation of the use provisions of the Comprehensive Zoning Ordinance, as interpreted by the Director in his authority pursuant to the City of New Orleans Home Rule Charter, the Director shall send written notice to the person, firm or corporation responsible for the violation(s) to correct such condition(s) within the time specified in the written notice. This period may not be extended except by written permission from the Director.

Failure to comply with this notice shall empower the Director to:

1. File charges in the Municipal Court of the City of New Orleans; and/or
2. Seek relief through Civil District Court or another Court of competent jurisdiction; and/or
3. Notify, as provided in Chapter 6, Article II, of the Code of the City of New Orleans, the owner of record to appear before an Administrative Hearing Officer to show cause why the said owner and/or person should not be adjudicated as a violator.

If the above Courts and/or Administrative Agency determines that the owner and/or person is in violation of the provisions of this Code or the use provisions of the Comprehensive Zoning Ordinance, as interpreted by the Director in his authority pursuant to the City of New Orleans Home Rule Charter, and such violations have not been corrected within the time period stipulated by the judge or hearing officer, the Chief Mechanical and/or Chief Electrical Inspector shall have authority to order the service of the utility company to be discontinued until such time the violations have been corrected. When the violations have been corrected and the location is re-inspected by the Director, he shall notify the utility company in writing that the utility service(s) may be reconnected. Corrections of all such violations must be performed by licensed contractors.

(C) If any premises or location has been without gas service or electrical power for a period exceeding six (6) months, a permit must be obtained and a re-inspection made prior to the connection of any utility service.

SECTION 125 - WORK BY OTHER THAN MECHANICAL CONTRACTORS

No person, firm or corporation, erecting, repairing, or altering buildings, erecting signs, altering, changing or installing plumbing or engaged in any other work, shall close in or conceal any wiring or raceway, nor cut, break, destroy, disconnect or in any other manner interfere with the arrangements of any air conditioning and/or refrigeration equipment whether inside or outside of any building or premises without receiving a permit from the Director. Before such permit will be issued, said person, firm or corporation shall provide the Director with a written notice at least forty-eight (48) hours before such contemplated work is to commence. The work of altering, changing or disconnecting such air conditioning and/or refrigeration equipment, by other than a mechanical contractor, must be done under the supervision of a Class "A" Air Conditioning and Refrigeration Contractor.

SECTION 126 - EXTRA INSPECTIONS FEES

(A) *Extra Inspection or wasted trip* - When any person, firm or corporation, after notice has been given to the Director, shall be found to have violated any of the requirements of this Code, or when through any such violation by any person, firm or corporation doing the work, it shall become necessary to make extra inspections because of a wasted trip, a fee of $75.00 shall be charged.

This charge is for each and any extra inspection made necessary as a result of blatantly incomplete work, inaccessibility to perform the inspection or for altera-

tions to work previously accepted. This fee is in addition to any regular required permit fees.

(B) *Fire Marshal Inspection* - When any person, firm or corporation requests a complete mechanical inspection of existing installations as ordered by and/or in compliance with the Louisiana State Fire Marshal Act, a fee of $25.00 shall be charged.

(C) *After Hour Inspections* - When any person, firm or corporation requests a mechanical inspection of any installed mechanical equipment to be performed at a time other than the regular designated working hours of the Mechanical Equipment Inspectors of the Department of Safety and Permits, the request and reason for the after hour inspection must be made to and approved by the Director prior to any inspector assignment. A fee of $175.00 shall be charged to the person, firm or corporation requesting this after-hour inspection. Payment of this fee must be made to the "City of New Orleans" within forty-eight (48) hours of the request for the inspection and is to be paid in addition to any regular required permit fees in this Code.

SECTION 127 - EXEMPTIONS

Nothing in this Code shall apply to companies regulated by the Louisiana Public Service Commission or the utility company where mechanical work is performed on the utility company property or on the supply side of any utility company meter.

SECTION 128 - BASIC STANDARDS

No air conditioning and/or refrigeration work shall be installed or placed in or on any building, structure or premises, unless this work is in conformity with approved methods of construction. Compliance with the regulations in the applicable safety codes shall be "prima facie" evidence of conformity with such approved methods.

All mechanical devices, fittings, materials, equipment, and appliances shall be those approved for the purpose for which they are used. Only such mechanical devices, fittings, materials, equipment, and appliances, that are constructed in conformity with their listing or labeled by a testing laboratory acceptable to the Director, shall be installed. The satisfactory listing or labeling of these devices, fittings, materials, equipment, and appliances shall be the "prima facie" evidence of conformity with the requirements of this Code.

128.1 - General - Storage Rooms And Mechanical Rooms. All Storage Rooms, Mechanical Rooms, Boiler Rooms, and other rooms containing electrical and/or mechanical equipment shall comply with Section 315 of the International Fire Code, as adopted by the City of New Orleans. Rooms shall not be used for general storage and shall be free and clear of all obstructions that may prevent access and maintenance.

SECTION 129 - STANDARD AIR CONDITIONING AND REFRIGERATION MATERIALS

Before any air conditioning and refrigeration material, appliance, or equipment is used, it shall be constructed in conformity with the current methods (to include, but not be limited to: Underwriters Laboratories, Inc. (UL), Factory Mutual (FM), Canadian Standards Association (CSA),American Gas Association (AGA) and others listed by the SBCCI Public Safety Testing & Evaluation Service, Inc. (PST & ESI) to insure safety to life and property.

SECTION 130 - ALTERNATIVE MATERIALS, METHODS AND EQUIPMENT

The provisions of this Code are not intended to prevent the installation or use of any material or to prohibit any method of construction not specifically prescribed by this Code, provided any such alternative has been approved by the Director. The Director shall approve any such alternative, provided he finds that the alternative for the purpose intended is at least the equivalent of that prescribed in this Code in quality, strength, effectiveness, fire resistance, durability and safety. The Director shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternative. The Director may recommend an

amendment to this Code in order to make permissible the use of said alternate. If in the opinion of the Director, the evidence and proof are not sufficient to justify approval or recommendation for an amendment, the applicant may refer the entire matter to the Board of Building Standards and Appeals as specified in Article 112 of the New Orleans Amendments to the International Building Code, as amended.

SECTION 131 - TESTS OF MATERIALS AND SYSTEMS OF CONSTRUCTION

Where new and/or alternative systems of construction, qualities of materials or tests are proposed for use, tests may be required by the Director. Such tests shall be made at the expense of the owner or his agent by a testing laboratory or other organization approved by the Director. When required by the Director, such tests shall be witnessed by him or his designee. The owner or his agent shall notify the Director of the time and location of all such tests so that he may be present. Certified copies of all test reports shall be filed with the Director for his final approval before the systems of construction or materials are used.

SECTION 132 - ELEVATORS, MOVING STAIRS AND DUMBWAITERS

132.1. - Each elevator, dumbwaiter, hoist, moving stair and chair lift, used or proposed to be used in this City, shall be inspected by the Director; if found to be suitable and to conform to the requirements of this Code, the Director shall issue the owner or user thereof, an inspection certificate. Such inspection certificate shall be valid for twelve (12) months from its date of issuance and shall be posted in a conspicuous place.

132.2 - The Director may at any time suspend an inspection certificate when, in his opinion, the elevator, moving stairs, dumbwaiter or hoist for which it was issued may not continue to be operated without danger to the public safety. Such suspension of an inspection certificate shall continue in effect until said elevator, moving stairs, dumbwaiter or hoist shall have been made to conform to the requirements of this Code.

132.3 - Not more than twelve (12) months shall lapse between inspections of elevators, moving stairs, dumbwaiters, hoists and other installations as listed in ANSI A17.1. Interval inspections as prescribed by ANSI A17.1 shall be "prima facie" evidence of compliance with this article.

SECTION 133 - FEES FOR ANNUAL OPERATING CERTIFICATES

For each elevator, moving stairs, dumbwaiter, hoist	$55.00

133.1 - Every person, firm or corporation proposing to install or repair elevators, moving stairs dumbwaiters, or hoists shall file a written request for an installation permit with the Director and pay the following fees:

For each elevator, moving stairs, dumbwaiter, or manlift (2 thru 10 floors).	$65.00
For each elevator, moving stairs, dumbwaiter, or manlift (over 10 floors).	$110.00
For each Workman's Hoist (passenger)	$270.00
For each Builders Hoist. . . .	$220.00

133.2 - The repair fees for elevators, moving stairs, or dumbwaiter shall be in accordance with this Code.

133.3 - Permits obtained after the installation has begun shall be the listed permit fee plus a penalty fee of five (5) times the listed fee for such work.

SECTION 134 - INSPECTION BY LICENSED INSURANCE COMPANIES

134.1 - Commissioned Inspectors. All inspections required on insured boilers, unfired pressure vessels, refrigeration and/or air conditioning systems and water heaters may be conducted by licensed insurance company inspectors, subject, however, to certain conditions hereinafter set forth. The burden of proving that these conditions have been fulfilled is incumbent on the licensed insurance company.

Any insurance company licensed by the State of Louisiana to inspect and insure boilers, unfired pressure vessels, refrigeration and/or air conditioning systems and water heaters may make application to the Director to have inspectors employed by said insurance companies commissioned as Special Inspectors of the City of New Orleans. Such inspectors shall receive no salary or remuneration of any kind from, nor shall any of their expenses be paid by the City of New Orleans.

The duration of the commissioned Special Inspector shall be conditioned upon his continued employment with the licensed insurance company making the original application, and upon said insurance company's maintenance of the standards required of this Code. The Special Inspector Commission is issued for only one licensed insurance company. The Special Inspector shall notify the Director of any change in status of his employment within 10 days of the change.

All applicants for a Special Inspector's Commission to inspect boilers, unfired pressure vessels, refrigeration and/or air conditioning systems and water heaters shall hold a *Boiler and Pressure Vessel Inspector Commission* issued by the National Board of Boiler and Pressure Vessel Inspectors.

Any licensed insurance company desiring to qualify an inspector under the provisions of this Article must maintain a regular inspection service in the City of New Orleans and must have at least one duly commissioned Special Inspector.

Every licensed insurance company employing these Special Inspectors shall furnish the Director an inspection report of all mechanical equipment insured and inspected by them, the location of the equipment, the owner or user of the equipment and the date the present inspection certificate on the equipment expires. The report list shall include any added or deleted equipment from the submitted report of the previous year.

Inspections of all boilers, heating systems, unfired pressure vessels, air conditioning and/or refrigeration systems and water heaters, when such objects are insured and inspected as required by this Code. Equipment inspected by an inspector employed by a licensed insurance company and commissioned by the Director as a Special Inspector, will be accepted. This equipment will be exempted from City inspections upon the payment of applicable inspection fees. The inspection of the initial installation of the above objects shall be made by the Director and the inspection fees shall be paid to the City by the owner or user as required. The inspection of all replacement installations which requires the Director's approval of plans and specifications shall also be made by the Director and the applicable inspection fees shall be paid to the City by the owner or user.

134.2 - Fees. For Commercial and Industrial installations, the licensed insurance company shall collect for the City of New Orleans a $10.00 annual certificate fee for each insured boiler, unfired pressure vessel, refrigeration and/or air conditioning system or other insured equipment and a $5.00 annual certificate fee for each water heater.

The fee shall be paid by the owner or user of such insured equipment. These fees shall be made payable to "The City of New Orleans" and submitted to the Mechanical Inspection Division at the time the annual data inspection report is filed with the Director. On all refrigeration and/or air conditioning systems, no exemption from City inspections shall be granted or recognized unless the complete and entire system, exclusive of the prime mover, is insured and inspected.

Special Inspectors shall make all inspections as required by this Code. The inspection reports furnished to the Director shall be on appropriate ASME or National Board of Boiler and Pressure Vessel Inspectors forms or any other form prescribed by the City of New Orleans.

If an inspection report indicates that violations of this Code exist, the licensed insurance company shall cause those violations to be corrected. If said violations are not corrected within thirty (30) days, the licensed insurance

company shall report the violation to the Director and he shall cause those violations to be corrected and shall collect from the owner or user the City inspection fee as prescribed within this Code.

If the licensed insurance company fails to inspect and file with the Director a complete report of inspection of the insured boiler, heating system, unfired pressure vessel, mechanical amusement device, air conditioning and/or refrigeration system and water heater within a thirty (30) day period after the expiration date of the last issued certificate on the described objects, an inspection of the described objects shall be made by City inspectors and City inspection fees, as prescribed in this Code shall be collected from the owner or user.

The licensed insurance company shall notify the Director immediately whenever an inspection indicates an unsafe, dangerous or hazardous condition.

The licensed insurance company shall also notify the Director within thirty (30) days on an appropriate ASME or National Board of Boiler and Pressure Vessel Inspector form or form prescribed by the City of New Orleans of all new insurance and discontinuance in insurance on boilers, heating systems, unfired pressure vessels, refrigeration and/or air conditioning systems, and water heaters. If said companies or inspectors fail to comply with the above conditions and requirements, the Director may suspend or revoke commission inspection privileges granted hereunder.

SECTION 135 - STATIONARY ENGINEER

It is unlawful for a person, owner, occupant, firm, partnership, association, or corporation having control or management of any building, structure or plant, to operate or permit to be operated any boiler, steam engine, internal combustion engine, refrigeration and/or air conditioning equipment, in the City of New Orleans without a properly qualified person having the necessary license on the premises at all times while such stationary equipment is in operation.

The exact location of the building, structure or plant shall be indicated on the face of the issued license and this issued license shall be limited to that indicated location only.

Upon failure to comply with the above, thereby creating an unsafe and dangerous condition for the general public, the Director, shall notify the owner in writing to correct such condition within 10 days. This period may not be extended except by written permission from the Director of the Department of Safety and Permits. Upon failure to comply with this notice, the respective Electrical and/or Mechanical Division Chiefs shall request the Utility Company to discontinue either the electric and/or gas service, until such time that a person with a valid license is operating the stationary equipment in the discrepant building, structure or plant. If the utilities have been discontinued, and license compliance has been completed, either the Chief Electrical Inspector or the Chief Mechanical Inspector, or both, shall notify the Utility Company that electric and/or gas service may be restored. (See Sections 153 and 154 of this code for exemptions to these requirements)

SECTION 136 - DEFINITIONS AND REFERENCES

The air conditioning and refrigeration tonnage referred to in this Code shall be in accordance with the most current edition of ASHRAE Standard 15. See Section 104.7 for additional definitions.

SECTION 137 - EQUIPMENT AND SYSTEMS REQUIRING STATIONARY ENGINEERS AND CLASSIFICATION OF LICENSES

137.1 - A First Class License is required for an operator to operate the following:

1. Boilers - unlimited.
2. Steam engines - unlimited.
3. Internal combustion engines - unlimited.
4. Refrigeration and/or air conditioning systems using Group A1, B2 Refrigerants - unlimited.

A Second Class License shall be required for any operator to oversee or manage any of the above equipment under the direct supervision and guidance of a First Class Engineer. The First Class Engineer must be continuously available to advise the Second Class Engineer(s) whom he supervises.

137.2 - A Second Class License is required for an operator to operate the following:

1. Boilers up to 150 horsepower.
2. Steam engines up to 150 horsepower.
3. Internal combustion engines up to 150 horsepower.
4. Refrigeration and/or air conditioning systems using Group A1, B2 Refrigerants; up to 200 tons, but not more than 15 systems.
5. Air Conditioning systems using Group A1 Refrigerants; up to 200 tons but not more than 15 systems, maximum size of any individual unit 60 tons.

A Third Class License shall be required for any operator to oversee or manage any of the above equipment under the direct supervision and guidance of a Second Class Engineer.

The Second Class Engineer must be continuously available to advise the Third Class Engineer(s) whom he supervises.

137.3 - A Third Class License is required for an operator to operate the following:

1. Boilers up to 75 horsepower.
2. Steam engines up to 75 horsepower.
3. Internal combustion engines up to 75 horsepower.
4. Refrigeration and/or air conditioning systems using Group A1, B2 Refrigerants, up to 100 tons.

SECTION 138 - ANNUAL LICENSE REGISTRATION FEES

138.1 - Stationary Engineers License. Every applicant for a license, either upon the original application or for a renewal thereof, shall be required to pay the following registration fees:

First Class Operating Engineer's License

1.	Active status	$55.00
2.	Duplicate issue . .	$55.00
3.	Inactive status. . .	$25.00

Second Class Operating Engineer's License

1.	Active status	$40.00
2.	Duplicate issue . .	$40.00

Third Class Operating Engineer's License

1.	Active status	$35.00
2.	Duplicate issue . .	$35.00

138.3 - Examination Registration. Every examination application for an Operating (Stationary) Engineer or Hoisting and Portable Engineer shall be made on forms furnished by the nationally recognized testing company under contract with the City of New Orleans. Examination fees shall be charged for each examination and must be paid in advance of the examination to the nationally recognized testing company under contract with the City of New Orleans.

The minimum passing grade for a stationary engineer or a hoisting and portable engineer is 70 percent. The examinations are identified in the issued brochure and administered by the nationally recognized testing company under contract with the City of New Orleans.

If an applicant fails to make a passing grade on the examination, he is permitted to apply to be re-examined at the next regularly scheduled examination date. There is no limit to the number of examinations a candidate is allowed to take.

SECTION 139 - ACCEPTANCE OF OTHER TESTING AGENCY CERTIFICATION

139.1 - Any Stationary Engineer that has passed the examination of and received certification by The National Institute for the Uniform Licensing of Power Engineers, Inc. (NIULPE), for any of the levels of classifications listed in Section 137 will be acknowledged and recognized by the Mechanical Inspection

Division of the Department of Safety and Permits in lieu of the requirement of an additional examination by the nationally recognized testing agency under contract with the City of New Orleans. The applicant must provide documented evidence of his declared education or training for approval. The level of category and classification shall be determined by the Director. If approved, the Stationary Engineer License will be issued upon presenting the NIULPE certificate, completion of the necessary application forms of the Mechanical Inspection Division and payment of the applicable license registration fee.

139.2 - NCCCO - Testing Agency For Cranes.

SECTION 140 - ACCEPTANCE OF OTHER JURISDICTIONAL CERTIFICATION

The Mechanical Inspection Division of the Department of Safety and Permits will extend to any mechanical contractor, operating engineer or hoisting and portable engineer, that is licensed by another jurisdictional authority, the recognition and acceptance of his certification without the requirement of additional examination provided that the jurisdiction requires passing of an examination given by a nationally recognized testing agency before issuance of license. If approved by the Director, the applicant shall present a copy of his license for the City of New Orleans files and complete the necessary applications as set forth by the Mechanical Inspection Division of the City of New Orleans. The applicant shall pay the appropriate fee for the classification of license for which he is applying. This extended license registration offer does not apply to marine or railroad engineers or any type or classification of engineer not specifically approved by the Director.

SECTION 141 - EXAMINATION FEES

Examination fees are determined by the nationally recognized testing agency under contract with the City of New Orleans.

SECTION 142 - ISSUANCE OF MULTIPLE LICENSES

The Mechanical Inspection Division shall issue a maximum of only one additional or second, license to any successful applicant upon written request to the Director. Payment of an amount equal to the cost of the issuance of the first license shall apply. The issuance of this additional, or second, license shall be available to any First (1st) Class, Second (2nd) Class, or Third (3rd) class stationary engineer (in all classifications) for the purposes of second employment, as long as the second employment is not in conflict with this Code. A "duplicate" license shall be issued only in the event that the applicant is employed at a second location and the exact location of the second employment shall also be indicated on the face of the license.

The issuance of this additional, or second, license shall be affixed with the identical endorsements as the first (original) issued license and the face of the additional, or second, license shall be prominently identified with the word "DUPLICATE". Each additional, or second, license shall expire on the same day as the first (original) issued license. The Director shall not issue any additional or "DUPLICATE" licenses with an inactive status. The "DUPLICATE" license issue is not to be used for split time service by the engineer employed by persons, firms or corporations that own or are in charge of properties at multiple locations. The "DUPLICATE" license does not apply to the Special Operators.

SECTION 143 - RENEWAL OF LICENSE

143.1 - Each license evidencing the necessary satisfactory qualifications of the applicant, according to the classifications stated thereon shall expire on the applicant's birth date, and must be renewed annually in order to permit the holder thereof to engage in the profession, trade or calling of Stationary Engineer or Hoisting and Portable Engineer in the City of New Orleans, according to the classification stated on said license. Each applicant shall furnish, to the Mechanical Inspection Division, two photographs (passport type), 1 in. × 1½ inches in size, at the time of applying for the initial license issuance or for license renewal. The photographs shall have been taken within a three (3) month period prior to the date it is affixed to the issued license.

143.2 - Inactive License. First class engineers not actively pursuing or involved in the practice of their trade as a Stationary Engineer may request, at their next renewal date, that their license be placed in an inactive status. The inactive license status shall apply only to a first class license holder. The fee for the issuance of the inactive license shall be in accordance with this Code. Licenses may be placed on an inactive status only on the date of renewal and only once during any twelve month period. The face of the inactive license shall be affixed with the identical endorsements as the active license and the face of the license shall be prominently identified with the word inactive. The inactive license may be reverted back to the active status at any time; however the full fee for the issuance of an active license will be required, in accordance with this Code. Inactive licenses do not apply to Hoisting and Portable Engineers or Special Operators.

143.2.1 - The first class engineers request to make any status change of his license shall be made in writing to the Director. All license status changes shall be coordinated with and approved by the Director, and become a part of the license holder's history record. The initial issuance of any first class stationary engineer's license shall always be with an active status. The new inactive license shall have the same expiration date as the original active license. No inactive status license shall be approved or issued by the Director for any additional, or second, license issue, in accordance with this Code. There shall be no limit to the number of years a Stationary Engineers license may remain in the inactive status.

143.2.2 - A first class stationary engineer in control of or operating any type of equipment while their current license is inactive will be in violation of this Code.

SECTION 144 - FAILURE TO RENEW LICENSE

License renewal is due on the first regular day of business after the applicant's birth date. Each applicant failing to make a timely application for renewal of his license shall pay a delinquent fee of $5.00 for each month or part thereof that his license is delinquent, to a maximum of two (2) years.

If a Stationary Engineer or Hoisting and Portable engineer's license has expired for a period in excess of two (2) years after their issue date or renewal date, a re-examination is required. Any justifying excuse acceptable to the Director shall be considered to approve the payment of the delinquent fees in lieu of the re-examination requirement.

If a Special Operator license holder has been expired for a period in excess of two (2) years, re-examination is required.

SECTION 145 - QUALIFICATIONS OF APPLICANTS

A citizen in the United States, over the age of 18 years, may apply for an examination as indicated in this code. The applicant, however, must have served the necessary apprenticeship requirements, and must comply with the following qualifications. All applicants must furnish one (1) letter of reference, and one (1) personal request letter. The letter of reference should be from the applicant's present or former employer, attesting to his experience and competence. The personal request letter must be addressed to the Director indicating the classification and desired type of equipment for which he wishes to be examined.

SECTION 146 - EXPERIENCE REQUIREMENTS

146.1 - An applicant for a license as a first-class engineer shall be an operating engineer, with four (4) years of practical experience in the management, operation or construction of steam engines, boilers, internal combustion engines, refrigeration or air conditioning equipment except that those who are graduates of a recognized technical college or a graduate of a U.S. Department of Labor recognized apprenticeship training school, are required to have two (2) years of practical experience.

146.2 - An applicant for a license as a second-class engineer shall be an operating engineer, having at least three (3) years of practical experience in the management, operation or

construction of steam engines, boilers, internal combustion engines, refrigeration or air conditioning equipment; except that those applicants who are graduates from a recognized technical college, trade school or a graduate of a U.S. Department of Labor recognized apprenticeship training school, are required to have one and one-half (1½) years of practical experience.

146.3 - An applicant for a license as a third-class engineer shall have at least 2 years experience as an apprentice or junior engineer or fireman, etc., except that graduates of a recognized technical college, trade school or a graduate of a U.S. Department of Labor recognized apprenticeship training school, are required to have one (1) year of practical experience.

146.4 - An applicant for a Special Operator license to operate boilers, steam or internal combustion engines specified in this Code, shall be an operating engineer, having at least 2 years practical experience as an apprentice in the operation of steam engines, boilers, or internal combustion engines. Applicants for a Special Operator licenses coming under the classifications of this Code must, to the satisfaction of the Director, establish their familiarity with the operation of the equipment in their care.

146.5 - An applicant for a license to operate all HOISTING AND PORTABLE equipment as defined in this Code, must have at least two (2) years experience. Applicants for licenses coming under the classifications of this Code must, to the satisfaction of the Director, establish their familiarity with the type of equipment they are to operate. Hoisting and Portable applicants must furnish one (1) letter of reference, and one (1) personal request letter. The letter of reference should be from the applicant's present supervisor verifying the particular type(s) of equipment to be operated. The personal request letter must be addressed to the Director, specifying the particular type(s) of equipment for which the applicant wishes to be examined.

SECTION 147 - VALIDITY OF LICENSES

All licenses as provided for in this Code must bear the signature of the Director in order to be valid.

SECTION 148 - LICENSE SUSPENSION OR REVOCATION

Licenses issued under this code may be revoked or suspended for reasons defined in this code. However, the Director may find that the public interest will be adequately protected by a warning or a suspension for a definite period of time not to exceed two years. Upon such finding the Director shall issue such warning or order such suspension. Upon revocation, the Mechanical Inspection Division shall not accept an application for a new license or a renewal within two (2) years from the date of such revocation, except for medical recovery supported by a physician's report, after The Director's review and approval. A shorter time period may be granted at the discretion of the Director based on the circumstances of the revocation or suspension. If any stationary engineer or hoisting & portable license is suspended or revoked by the Director, a new license shall be issued to such person only after application as a new applicant, and passing the required examination.

148.1 - Revocation Reasons.

1. Violating on more than one occasion, either willfully of maliciously or by reason of incompetence, any provision of this code.
2. Fraud or misrepresentation in obtaining a license.
3. False or deceptive advertising.
4. Conviction of drunkenness or the use of narcotics.
5. Adjudication of Insanity.
6. Any medical reason wherein a physician's medical opinion is provided to the Director indicating that the person certified is unable to satisfactorily perform the duties and functions expected of a Stationary Engineer, Hoisting and Portable

Engineer or Special Operator license holder, and that any further performance in the trade would be a danger to himself and/or endanger the life and property of others.

SECTION 149 - NOTICE OF REVOCATION OR SUSPENSION HEARING

Any time the Director is shown the existence of one or more violations that are grounds for revocation, or there is filed with the Mechanical Inspection Division a complaint of any person alleging the existence of any such violations, and if the Director has determined these grounds to be valid, it shall be his duty to serve upon the alleged violator a notice of the alleged grounds for revocation. The notice shall be served upon the holder of the license stating the time, date, and place of a violation hearing.

The notice shall be served not less than 15 days prior to said hearing. The notice shall be sent by the Director and shall enumerate the cause or causes for suspending or revoking the license.

The notice shall enumerate the cause or causes for suspending or revoking the license. The notice may be mailed by registered or certified mail to the holder of the license at the address of his place of business as given by him on his application for the license, or it may be served on him in person by a Police Officer or employee the Mechanical Inspection Division of the Department of Safety and Permits.

All petitions shall be prepared and prosecuted by the Law Department. If proper notice has been served upon the defendant, the hearing may proceed without his presence if he fails to appear. Certified copies of convictions involving cause for suspension or revocation in either the Municipal Courts of New Orleans or in the Criminal District Court of Orleans Parish shall constitute "prima facie" proof of a violation by the license holder.

SECTION 150 - APPEAL PROCEDURE

A decision of the Director may be appealed to the Board of Building Standards and Appeals within ten (10) days of written notification to the appellant.

SECTION 151 - LICENSE VERIFICATION

Any investigations, inquiries or questions regarding the proper certification of the Stationary Engineers at any building location or the Hoisting & Portable Engineers at any construction site shall be directed to the Chief Mechanical Inspector and performed by the duly authorized inspectors of the Department of Safety and Permits.

SECTION 152 - LICENSES DISPLAYED

152.1 - Licenses must be displayed or posted in a conspicuous place in the engine or boiler room or mechanical equipment room, for identification purposes. This license must continuously remain displayed or posted during the tenure of employment of the stationary engineer to whom the license is issued The displayed or posted license shall not be removed after any shift duty or at a time when the stationary engineer to whom the license is issued is not on duty. The "DUPLICATE" license must be issued for any added license display or posting required in accordance with this Code. Copies or reproductions of the issued license by any method or procedure shall be a violation of this code.

152.2 - Engineers who have qualified for a license for the operation of Hoisting and Portable equipment must carry the license on their person while in charge of and/or operating such hoisting and portable equipment as defined in this Code. The issued license must have the Engineers current bust picture (passport type) 1 inch × 1½ inch in size, as a part of the license, for identification purposes.

SECTION 153 - EXEMPTIONS FROM ENGINEER REQUIREMENTS

153.1 - This Code does not apply in any way to engineers:

1. in charge of railroad locomotives of franchised railroads; or
2. employed by a person, firm or corporation operating under Certificate of Public Necessity and Convenience (CPNC); or

3. employed by the United States Government, the State of Louisiana, any of its Boards, Commissions or agencies, or political subdivisions, with the exception of the City of New Orleans; or

4. in charge of steamboats and steamships.

153.2 - Building Safety Summary - Air Conditioning And Cooling. Air conditioning systems using group A1 Refrigerant and/or any open-circuit, water-cooled HVAC systems NOT exceeding a total aggregate size of 300 Tons open may be exempt from the provisions of Section 135 of this Code provided such systems are under automated control by devices that will cause the system to be de-energized from electric power and go to a shutdown condition upon experiencing an equipment malfunction or fault condition and further provided that a Building Safety Summary is submitted and approved, on a case by case basis, by the Director.

The Building Safety Summary shall be prepared by a Registered Louisiana Professional Engineer and shall include as a minimum:

1. emergency procedures in effect in the building; and,

2. a description of the automated HVAC equipment installed in the building; and,

3. a complete description of the operation of the shutdown system under emergency conditions; and

4. Provide details of a Priority Safety Floor Plan consisting of a building floor plan showing the locations of all major mechanical and electrical equipment (i.e. water heaters, boilers, fire pumps, main electrical switchgear and service entrance, domestic and fire water service entrance, etc.) This plan is to be displayed in a prominent location for use by first responders to quickly locate major mechanical and electrical equipment and services. A copy of this Plan shall be located in the main business office.

No Institutional (Group I) facilities or shall be exempt from any provision of this code.

Open-circuit cooling systems shall comply with Section 154 of the Code.

153.3 - Self-contained air conditioning units used for residential, commercial, or industrial purposes having an aggregate of not over 100 tons, using Group A1 Refrigerant, shall be exempt from the provisions of Section 135 of this Code, provided they are protected with the necessary safety devices. Units 5 tons and under shall not be considered in calculating the aggregate tonnage.

153.4 - Equipment Exempted From Stationary Engineer - Boilers. Individual hot water boilers under 200,000 Btu input and operating at a pressure not exceeding 160 psi and temperatures not exceeding 210 degrees F. shall be exempted from the provisions of this Code, provided they are protected with necessary approved safety devices, are listed and are automatically controlled, and are subject to an annual inspection as per Section 106 of this code. Said inspections shall be made by Mechanical Inspectors of the Department of Safety and Permits or Commissioned Inspectors of an authorized insurance company commissioned by the Director of the City of New Orleans, in accordance with the New Orleans Amendments to the International Mechanical Code.

153.5 - Provisions For Exclusion From Full Time Stationary Engineer. Any building, structure or plant with Hot Water Boilers (as defined in Section 104.7 of this Code) exceeding the provisions of Section 153.5 may be exempt from the Stationary Engineer requirements of Section 135 of this code on a case by case basis determined by the Director and provided a licensed 1st Class Stationary Engineer is present at the premises for a minimum of one (1), seven (7) hour shift per day while such building is regularly open for business. A Stationary Engineer must be available on-call, while not on the premises. In

addition, equipment and safety procedures shall be as per Sections 153.5.1 thru 153.5.3 of this code.

153.5.1 - Limitations For Stationary Engineer Exemption - Boilers.

1. Hot Water Boilers stamped A.S.M.E. 'H', with a maximum pressure not exceeding 160psi and a maximum temperature not exceeding 240 degrees F. and a maximum input not exceeding 1,500,000 Btus.
2. Hot Water Heaters stamped A.S.M.E. 'HLW' or ANSI Z 21 with a maximum pressure not exceeding 160psi and maximum temperature not exceeding 210 degrees F. and a maximum input not exceeding 1,500,000 Btus and individual storage capacity not exceeding 250 gallons or an aggregate storage capacity not exceeding of 750 gallons.
3. No building, structure, or plant with Hot Water Boilers exceeding a total aggregate input of 4,500,000 Btus shall be exempt from any provision of this code.
4. No building, structure or plant with Hot Water Boilers fitted with a water column or sight glass or requiring regular blow down shall be exempt from any provisions of this code.
5. No Institutional (Group I) facility shall be exempt from any provisions of this code.

153.5.2 - Building Safety Summary - Boilers. Buildings, structures, or plants may be allowed to comply with Section 153.5 provided a Building Safety Summary is submitted and approved, on a case by case basis, by the Director. A Building Safety Summary shall be prepared by a Registered Louisiana Professional Engineer and shall include as a minimum:

1. Emergency procedures in effect in the building; and
2. Details of automated system to monitor and provide redundancy for the manufactured, installed and code required safety features including discharge pressure and temperature gauges. The automated system shall operate at or below the factor safety set points and de-energize equipment in the event of a system malfunction. Once the equipment has been de-energized, the automation system shall send an alarm to a responsible person; and
3. A signed service agreement with a Licensed Class A Mechanical Contractor registered in the City of New Orleans. This contractor, if necessary, shall be available on a 24-hour basis to respond to and repair the system malfunction; and
4. Provide details of a Priority Safety Floor Plan consisting of a building floor plan showing the locations of all major mechanical and electrical equipment (i.e. water heaters, boilers, fire pumps, main electrical switchgear and service entrance, domestic and fire water service entrance, etc.) This plan is to be displayed in a prominent location for use by first responders to quickly locate major mechanical and electrical equipment and services. A copy of this Plan shall be located in the main business office.

153.5.3 - ADDITIONAL REQUIREMENTS. In addition to the requirements and limitations set forth in 153.5.1 and 153.5.2, the following shall be required of all buildings, structures, plants or equipment in accordance with 153.5:

1. If equipment is de-energized by the automated system, a manual reset will be required to re-energize the equipment. Equipment shall only be re-energized by a licensed Stationary Engineer or Mechanical Contractor with a Class A registration with the City of New Orleans.
2. Maintain and service equipment in accordance with manufacturer's

recommendations and in compliance with jurisdictions having authority and maintain for inspections, all maintenance, service and repair records.

3. Perform City and State required annual inspections of the equipment and provide the City Mechanical Inspection Department with copies of the inspection reports. Display State Fire Marshal inspection certificates behind glass in the Boiler Room.

4. Maintain a daily log of equipment temperature and pressure readings and condition of the temperature and pressure relief valves.

5. Actuate pressure relief valves at a minimum interval of six (6) months or in accordance with manufacturer's instructions, whichever is sooner. Maintain logs of pressure relief valve actuation.

6. Provide discharge temperature and pressure gauges for all applicable equipment.

7. Maintain water treatment logs and perform water testing for all applicable equipment.

SECTION 154 - COOLING TOWERS AND WATER COOLED CHILLERS

The owner, occupant, firm, partnership, association or corporation having control of any Building, Structure or Plant operating an open circuit Cooling Tower, Evaporative Condenser or any other aerosol producing equipment shall maintain a 'Water Management Plan' in accordance with ASHRAE Standard 188 - 2015 - Legionellosis: Risk Management for Building Water Systems and ASHRAE 12 - Minimizing the Risk of Legionellosis Associated with Building Water Systems and comply with all relevant sections herein. Equipment shall be maintained, monitored, cleaned and sanitized as defined in the Water Management Plan in accordance with ASHRAE Standard 188 - 2015 and Sections 154.1 thru 154.3

154.1 - Requirements For Water Management Plan. In accordance with ASHRAE 188, the following shall be required of all buildings containing open circuit equipment as per Section 154:

1. Recirculating water to be monitored for pH and biocide levels at least twice per week by the designated responsible person.

2. Equipment shall be drained or partially drained, cleaned of scale, sediment, sludge algae and biofilm and sanitized at least once per year.

3. Disinfectant pretreatment shall be required prior to re-energizing any equipment that has been non-operable, on standby or shut down for any period exceeding 72 hours Water shall be tested by means of bacteria dip slide after equipment restart and in accordance with Requirement #7 of Section 154.1.

4. Maintain for immediate use, an Emergency Decontamination kit, to be used should the presence of Legionella be detected.

5. Records for maintenance, cleaning, sampling, monitoring, sanitizing and any other event having effect on such equipment shall be maintained in a Water Management Log and shall be readily available for inspection by the Director.

6. Equipment shall be inspected and a water sample shall be tested by method of bacteria dip slide at least once per month by a qualified water treatment specialist.

7. A water sample shall be taken by a qualified water treatment specialist at least once every 6 months and shall be tested for Legionella and other bacteria by an independent US Centers for Disease Control and

prevention Elite program certified laboratory or any Laboratory approved by the Director and after any of the following occurrences or any other time as determined by the Director. Water samples shall also be tested after any of the following occurrences:

a. any time a bacteria dip slide test indicates levels of bacteria above control points or levels exceeding those stated in table 1 (dip slide)

b. after any power failure or shut down of sufficient duration to allow the growth of bacteria

c. after any loss of biocide treatment sufficient enough to allow the growth of bacteria

8. Water samples are to be taken prior to the addition of any biocide and to be representative of the water condition during normal operation. Results of all water sample testing and equipment inspections shall be recorded in the Water Management Log.

9. The Director shall be notified within 24 hours of any of the above occurrences.

10. Corrective action to be taken for the following bacteriological dip slide indicator results.

154.2 - Corrective Actions For Testing (Dipslide Testing). As per Section 154.2, the following corrective actions shall be taken for the following bacteriological dip slide indicator results:

1. Less than 10,000 CFU/ml: Maintain water chemistry and biocide levels.

2. Equal to or greater than 10,000 CFU/ml AND less than 100,000 CFU/ml: Initiate immediate disinfection by increasing biocide concentration or using a different biocide within 24 hours, review treatment program, retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached.

3. Equal to or greater than 100,000 CFU/ml and less than 1,000,000 CFU/ml: Initiate immediate disinfection by increasing biocide concentration or using a different biocide within 24 hours, reviewing treatment program, performing visual inspection to evaluate need to perform cleaning and further disinfection. Retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached.

4. Equal to or greater than 1,000,000 CFU/ml: Initiate immediate disinfection by increasing biocides within 24 hours. Within 48 hours perform remediation of the tower by hyperhalogenating2, cleaning, and flushing. Review treatment program, retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached.

154.3 - Corrective Actions For Testing (Lab Legionella Testing). As per Section 154.3, the following corrective actions shall be taken for the following Legionella laboratory testing cultures:

1. Less than 10 CFU/ml: Maintain water chemistry and biocide levels.

2. Equal to or greater than 10 CFU/ml and less than 100 CFU/ml: Initiate immediate disinfection by increasing biocide concentration or using a different biocide within 24 hours: review treatment program; and retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached.

3. Equal to or greater than 100 CFU/ml and less than 1,000 CFU/ml: Initiate immediate disinfection by

increasing biocide concentration or using a different biocide (within 24 hours), reviewing treatment program, performing visual inspection to evaluate need to perform cleaning and further disinfection. Retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached.

4. Equal to or greater than 1,000 CFU/ml: Initiate immediate disinfection by increasing biocides within 24 hours. Within 48 hours perform full remediation of the tower by hyperhalogenating2, draining, cleaning, and flushing. Review treatment program, retest water within 3-7 days. Subsequent test results must be interpreted in accordance with this Section until level 1 is reached. For Legionella results at this level, notify Director within 24 hours of receiving test.

154.4 - Provisions For Exclusion From Full Time Stationary Engineer. Any building, structure or plant operating open-circuit, water-cooled HVAC systems exceeding a total aggregate size of 300 Tons and cooled by use of Open Circuit Cooling Towers or Evaporative Condensers may be exempt from the Stationary Engineer requirements of Section 135 of this code on a case by case basis determined by the Director and provided a licensed 1st Class Air Conditioning Stationary Engineer is present at the premises for a minimum of one (1), seven (7) hour shift per day while such building is regularly open for business. A Stationary Engineer must be available on-call, while not on the premises. In addition, equipment and safety procedures shall be as per Sections 154.1 thru 154.3 of this code.

Whenever in the opinion of the Director any open circuit Cooling Tower, Evaporative Condenser or any other aerosol producing equipment is in violation of this Code. The Director shall have the authority to order the immediate shutdown of the discrepant equipment and undertake any course of action as defined in section 124 and 137 of this Code. An approved permit shall be required prior to reenergizing any equipment shut down by violation of this code

SECTION 155 - PENALTY TO OWNER: FINES

A person, firm or corporation owning or controlling any steam engine, boiler, internal combustion engine, or any other system coming within the provisions of this Code, who authorizes or permits a person not having a proper and valid license as required under this Code, to take charge of or operate any steam engine, boiler, or any portion of a steam or internal combustion engine, refrigeration and/or air conditioning equipment, and hoisting and portable equipment as defined in this Code, shall be in violation of this Code and shall, upon conviction before any court of competent jurisdiction, be penalized within the limits and as provided by the laws of the State of Louisiana.

SECTION 156 - PENALTY TO ENGINEER: FINES

A person engaged in the practice, calling, or profession as an operating engineer, or engaged in the operation of any boiler, steam engine, internal combustion engine, refrigeration and/or air conditioning equipment and hoisting or portable equipment as defined in this Code, under the terms of this Code, without being at the time the holder of a proper and valid license issued by the Mechanical Inspection Division provided herein, shall be in violation of this Code and shall, upon conviction before any court of competent jurisdiction, be penalized within the limits and as provided by the laws of the State of Louisiana.

SECTION 157 - ALTERATION, REPRODUCTION, TRANSFER OR RENTING OF LICENSE

It is a violation of this Code for a license holder to alter, reproduce, transfer, lend or rent his license to another individual for their use. It is a violation of this Code for any license holder to use any license that is not a part of his own record.

SECTION 158 - SIMULTANEOUS CHARGE OF MORE THAN ONE PLANT

It is unlawful for a licensed operating engineer, from the Mechanical Inspection Division, to be concurrently or simultaneously in charge of more than one plant or location at the same time.

(M.C.S., Ord. No. 22939, § 9, 12-20-07; M.C.S., Ord. No. 25920, § 1, 6-19-14; M.C.S., Ord. No. 27443, § 1, 6-15-17; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-18. International Fuel Gas Code—Adopted.

(a) *Code adopted.* The International Fuel Gas Code, 2021 Edition, and appendices, are hereby adopted, except that the text of the code shall be as modified by the amendments set forth in section 26-19, and in the event of conflict the amendments shall supersede and take priority over any amended or unamended section. If an amendment is in conflict with only part of a section, it shall be construed as superseding only the part of the section with which it is in conflict.

(b) *City not liable.* Nothing contained in this International Fuel Gas Code, 2021 Edition, shall be construed to relieve or lessen the responsibility or liability of any person for injury or damage to persons or property caused by or resulting from any defects of any nature in any work performed by the person or in any equipment owned, controlled, installed, operated or used by him, nor shall the City of New Orleans, or any officer, agent or employee thereof incur, or be held to assume, any liability by reason or in consequence of any permit, permission, certificate of inspection or approval authorized therein, or issued or given as herein provided, or by any reason of or in consequence of any things done or acts performed pursuant to any provisions of this International Fuel Gas Code, 2021 Edition.

(c) *Prior violations.* All suits at law or in equity and all prosecutions resulting from the violation of any gas ordinances heretofore in effect, which are now pending in any of the courts of this state, or of the United States, shall not be abated or abandoned by reason of the adoption of this International Fuel Gas Code, 2021 edition, but shall be prosecuted to their finality the same as if this International Fuel Gas Code, 2021 Edition, has not been adopted. Nothing in this International Fuel Gas Code, 2021 Edition, shall be so construed as to abandon, abate, or dismiss any litigation or prosecution now pending, or which may have heretofore been instituted or prosecuted.

(d) *Retroactive clause.* In the case of violations of gas ordinances committed before the effective date of this section, the gas ordinance existing at the time the violations were committed shall apply and govern.

(M.C.S., Ord. No. 22940, §§ 2—5, 12-20-07; M.C.S., Ord. No. 25919, § 1, 6-19-14; M.C.S., Ord. No. 27442, § 1, 6-15-17; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-19. Same—Amendments.

Chapter 1 of the International Fuel Gas Code, 2021 Edition, shall be deleted in its entirety, and the following shall be substituted in lieu thereof:

CHAPTER 1
ADMINISTRATIVE

SECTION 101 - TITLE AND SCOPE

101.1 - Title. These regulations shall be known and cited as The International Fuel Gas Code, 2021 edition, as amended by the City of New Orleans hereinafter referred to as "this code". The Director of the Department of Safety and Permits as the appointing authority of the Department, and all of its Divisions, is referred to as "the Director."

101.2 - Scope. The provisions of this Code shall apply to the design, installation, maintenance, alteration and inspection of fuel gas piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems permanently installed and utilized to provide control of environmental conditions and related processes within buildings. This Code shall also apply to the fuel gas piping and equipment, fuel gas-fired appliances and

fuel gas-fired appliance venting systems and related accessories specifically addressed as follows:

1. Coverage of piping systems shall extend from the point of delivery to the connections with gas utilization equipment. (See "point of delivery".)
2. Systems with an operating pressure of 125 psig or less.

   Piping systems for gas-air mixtures within the flammable range with an operating pressure of 10 psig.

   LP-Gas piping systems with an operating pressure of 20 psig or less..
3. Piping systems requirements shall include design, materials, components, fabrication, assembly, installation, testing, inspection, operation, and maintenance.
4. Requirements for gas utilization equipment and related accessories shall include installation, combustion and ventilation air and venting.

This code shall not apply to the following:

1. Portable LP-Gas equipment of all types that are not connected to a fixed fuel piping system.
2. Installation of farm equipment such as brooders, dehydrators, dryers, and irrigation equipment.
3. Raw material (feedstock) applications except for piping to special atmosphere generators.
4. Oxygen-fuel gas cutting and welding systems.
5. Industrial gas applications using gases such as acetylene and acetylenic compounds, hydrogen, ammonia, carbon monoxide, oxygen and nitrogen.
6. Petroleum refineries, pipeline compressor or pumping stations, loading terminals, compounding plants, refinery tank farms, and natural gas processing plants.
7. Integrated chemical plants or portions of the plants where flammable or combustible liquids or gases are produced by chemical reactions or used in chemical reactions.
8. LP-Gas installations at utility gas plants.
9. Liquefied natural gas (LNG) installations.
10. Fuel gas piping in power and atomic energy plants.
11. Proprietary items of equipment, apparatus, or instruments such as gas generating sets, compressors, and calorimeters.
12. LP-Gas equipment for vaporization, gas mixing, and gas manufacturing.
13. Temporary LP-Gas piping for buildings under construction or renovation that is not to become part of the permanent piping system.
14. Installation of LP-Gas systems for rainroad switch heating.
15. Installation of LP-Gas and compressed natural gas (CNG) systems on vehicles.
16. Except as provided in Section 401.1.1, gas piping, meters, gas pressure regulators, and other appurtenances used by the gas utility company in the distribution of gas, other than undiluted LP-Gas.
17. Building design and construction, except as specified herein.
18. Piping systems for mixtures of gas and air within the flammable range with an operating pressure greater than 10 psig (69kPa gauge).
19. Portable fuel cell appliances that are neither connected to a fixed piping system nor interconnected to a power grid.

101.2.1 - Other fuels. The requirements for the design, installation, maintenance, alteration and inspection of mechanical systems operating with fuels other than fuel gas shall be regulated by the International Mechanical Code, as amended by the City of New Orleans.

101.3 - Appendices. Provisions in the appendices shall not apply unless specifically adopted.

101.4 - Intent. The purpose of this code is to provide a reasonable level of safety, health, safety and general welfare by regulating and controlling the design, construction, installation, quality of materials, location, operation and maintenance or use of fuel gas systems.

101.4.1 - Quality Control. Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein.

101.5 - Severability or partial invalidity. If a section, subsection, sentence, clause, phrase or portion of this code is, for any reason, held to be unconstitutional, illegal or void, the decision shall not affect the validity of the any of the remaining portions of this code.

SECTION 102 - APPLICABILITY

102.1 - General. Where, in a specific case, different sections of this code specify different materials, methods of construction or other requirements, the most restrictive shall govern. Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

102.1.1 - Other Laws. The provisions of this code shall not be deemed to nullify any provisions of local, state or federal law.

102.2 - Existing installations. Except as otherwise provided for in this Chapter, no provision in this code shall require the removal, alteration or abandonment of, nor prevent the continued utilization and maintenance of, fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems or equipment lawfully in existence at the time of the adoption of this code.

102.2.1 - Existing Buildings Additions, alterations, renovations or repairs related to building or structural issues shall be regulated by the International Building Code.

102.3 - Maintenance. Fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems, both existing and new and parts thereof shall be maintained in proper operating condition in accordance with the original design and in a safe and sanitary condition. Devices or safeguards which are required by this code shall be maintained in compliance with the code edition under which they were installed. The owner or the owner's designated agent shall be responsible for maintenance of the fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems. To determine compliance with this provision, the Director shall have the authority to require the fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems to be reinspected.

102.4 - Additions, alterations or repairs. Additions, alterations, renovations or repairs to the fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems shall conform to that required for a new system without requiring the existing system to comply with all of the requirements of this code. Additions, alterations or repairs shall not cause an existing system to become unsafe, hazardous or overloaded.

Minor additions, alterations, renovations and repairs to existing fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems shall meet the provisions for new construction, unless the work is done in the same manner and arrangement as was in the existing system, is not hazardous and is approved.

102.5 - Change in occupancy. It shall be unlawful to make a change in the occupancy of any structure which will subject the structure to any special provisions of this code applicable to the new occupancy without approval. The

Director shall certify that the structure meets the intent of the provisions of law governing building construction for the proposed new occupancy and that the change of occupancy does not result in any hazard to the public health, safety or welfare.

102.6 - Historic buildings. The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings when the buildings or structures are judged by the Director to be safe and in the public interest of health, safety and welfare regarding any proposed construction, alteration, repair, enlargement, restoration, relocation or moving of buildings.

102.7 - Moved buildings. Except as determined by Section 102.2, fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems that are a part of buildings or structures moved into or within the jurisdiction shall comply with the provisions of this code for new installations.

102.8 - Referenced codes and standards. The codes and standards referenced herein shall be those that are listed in Chapter 15 and the codes and standards shall be considered as part of the requirements of this code to the prescribed extent of each reference. Where differences occur between provisions of this code and the referenced standards, the provisions of this code shall apply.

102.9 - Requirements not covered by this code. Requirements necessary for the strength, stability or proper operation of an existing or proposed mechanical system, or for the public safety, health and general welfare, not specifically covered by this code, shall be determined by the Director.

SECTION 103 - DUTIES AND POWERS

103.1 - General. The Director of the Department of Safety and Permits is authorized and directed to enforce the provisions of this Code. The Director has the authority to render interpretations of this Code and to adopt policies and procedures in order to clarify the application of its provisions. The interpretations, policies and procedures shall be in compliance with the intent and purpose of this Code. The interpretations, policies and procedures shall not have the effect of waiving requirements specifically provided for in this Code.

103.2 - Records. The Director shall keep, or cause to be kept, a record of the business of the Department in accordance with the public records law of the State of Louisiana.

103.3 - Application and Permits. The Director shall receive applications, review construction documents and issue permits for the installation and alteration of fuel gas distribution piping and equipment, fuel gas-fired appliances and fuel gas-fired appliance venting systems, inspect the premises for which the permits have been issued and enforce compliance with the provisions of this Code.

103.4 - Notices and Orders. The Director shall issue all necessary notices or orders to ensure compliance with this Code.

103.5 - Inspections. The Director shall make the required inspections, or accept reports of inspections by approved agencies or individuals. All reports of the inspections shall be in writing and certified by a responsible officer of the approved agency or by the responsible individual. The Director is authorized to engage the expert opinion necessary to report upon unusual technical issues that arise, subject to the approval of the appointing authority.

103.6 - Identification. The Director shall carry proper identification when inspecting structures or premises in the performance of duties under this code.

103.7 - Right of Entry. When it is necessary to make an inspection to enforce the provisions of this code, or when the Director has reasonable cause to believe that there exists in a structure or upon any premises a condition which is contrary to or in violations of this code which makes the structure or premises

unsafe, dangerous or hazardous, the Director is authorized to enter the structure or premises at all reasonable times to inspect or to perform the duties imposed upon him by this Code. If the structure or premises is occupied, the Director shall present credentials to the occupant and request entry. If the structure or premises is unoccupied, the Director shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the Director has recourse to every remedy provided by law to secure entry.

103.8 - Liability. The Director, designee or any employee charged with the enforcement of this Code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this Code or other pertinent law or ordinance, shall not thereby be rendered liable personally and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or be reason of an act or omission in the discharge of official duties.

Any suit instituted against any officer or employee because of an act performed by that officer or employee in the lawful discharge of his duties and under the provisions of this code shall be defended by the legal representative for the Department of Safety and Permits until the final termination of the proceedings. The Director or any of his subordinates shall not be liable for costs in an action, suit or proceeding that is instituted pursuant to the provisions of this code; and any officer in the Mechanical Inspection Division, acting in good faith and without malice, shall be free from liability for acts performed under any of its provisions or by reason of any act of inclusion or omission in the performance of official duties as required by this Code.

SECTION 111 - CLASSIFICATION OF GASFITTERS

111.1 - Definition.

Class "A" Master Gasfitter - A Class "A" gasfitter license holder engaged in the business of installing or contracting to install or repairing or contracting to repair gas piping, gas appliances or any other gas fired apparatus.

Class "B" Journeyman Gasfitter - A Class "B" gasfitter license holder engaged in the trade of installing and/or repairing gas piping, materials or apparatus. A Class "B" Journeyman Gasfitter must be employed by and work under the supervision of a Class "A" Master Gasfitter.

111.2 - Gasfitters' License. No person shall undertake any work as a Class "A" Master Gasfitter or a Class "B" Journeyman Gasfitter, unless that person has registered with the Mechanical Inspection Division of the Department of Safety and Permits of the City of New Orleans and received a license in his respective classification.

A person, firm or corporation engaging in the business of installing, constructing, reconstructing, altering, assembling, repairing, or servicing gas piping, gas appliance, gas water heater, apparatus, gas fired systems or parts thereof who does not hold or does not employ a person who holds the Class "A" Master Gasfitter or Class "B" Journeyman Gasfitter license shall be held in violation of this Code.

A Class "A" Master Gasfitter license issued under this chapter shall not be required for the following allied contractors performing ONLY their trade and are working on a gas system or apparatus as regulated by this Code:

1. Electrical
2. Plumbing
3. Air Conditioning and Refrigeration (HVAC)
4. Sheet metal
5. Insulating
6. Operating Engineering (stationary) as defined in The New Orleans Amendments to the International Mechanical Code, 2015 Edition.

All of the above trades must, however, perform their trade work in association with or in

support of the gas installation or the system utilizing gas appliances or equipment at the time the gas permit is active.

111.3 - Code Violation Hearing. If needed, the Chief Mechanical Inspector shall initiate a hearing, in conjunction with the Chief Building Official or the Director, to review a code violation he has determined to exist, that would cause a gas license issued by the Mechanical Inspection Division to be suspended or revoked.

111.4 - Applications For Examinations.

General - A gasfitter candidate shall submit his examination fee and application to the nationally recognized testing company under contract with the City of New Orleans. The forms shall be furnished by the testing company and must be completed in accordance with their information brochure requirements.

Examination fees and applications shall be submitted directly to the nationally recognized testing company under contract with the City of New Orleans to the address within their brochure.

Applicants shall meet the following requirements:

1. Applicants must be at least eighteen (18) years of age.
2. Applicants for a Class "A" examination shall have had at least four (4) years experience in the occupation or business governed by the license for which he is applying or shall be a graduate of a trade school or technical college of recognized standing and in addition shall have had three (3) years of practical experience in that class of occupation or business governed by the license for which he is applying.
3. Applicants for a Class "B" Journeyman Gasfitter examination must have at least four (4) years continuous experience working at the gasfitting trade or have a minimum of three (3) years of schooling in the gasfitting trade, at a recognized state trade school, with a passing grade.
4. Class "A" Master Gasfitter applicants must have someone in attendance or answering device to receive communications from the Mechanical Inspection Division, or other persons concerned, during regular business hours.
5. Class "A" Master Gasfitter license holder shall represent only one firm, corporation or business.

111.5 - Examinations. Exam shall be held on dates identified in the issued Candidate Information Brochure of National Recognized Testing Company under contract with the City of New Orleans.

111.5.1 - Re-examination. If an applicant fails to make a passing grade on his examination, he is permitted to apply to be re-examined at the next regularly scheduled examination date. There is no limit to the number of examinations a candidate is allowed to take.

*111.6 - Passing Of Examination.*An applicant making a passing grade must obtain his license within one year (1) after being notified that he has passed the examination.

An applicant who has passed the gas examination and is obtaining his license shall furnish to the Mechanical Inspection Division two passport type photos, 1 inch by 1½ inches in size. Each license shall identify the name of the person to whom the license is issued and the expiration date. Each license shall bear the signature of the Chief Mechanical Inspector.

The license holder must have his license in his immediate possession at all times while performing the work for which he is licensed and shall display it upon demand.

111.6.1 - Acceptance Of Other Jurisdictional Certification. The Mechanical Inspection Division of the Department of Safety and Permits will extend to a Class "A" Master Gasfitter or Class "B" Journeyman Gasfitter license in another jurisdiction, the recognition and acceptance of his certification without the requirement of additional examination provided that the jurisdiction requires passing of an examination given by a nationally recognized testing agency before issuance of such license.

If approved by the Director, the applicant shall, present a copy of his license for the files and complete the necessary applications as required by the Mechanical Inspection Division. The applicant shall pay the appropriate registration fee for the classification of license for which he is applying.

111.7 - Insurance. Before a Class "A" Master Gasfitter license is initially issued or renewed to a certified Class "A" Master Gasfitter he must provide evidence of the following to the Director when he registers with the Mechanical Inspection Division.

(A) Workers' Compensation Insurance in accordance with Louisiana state law.

(B) Comprehensive general liability insurance coverage with limits of not less than $500,000 per occurrence for bodily injury and $250,000 per occurrence for property damage, with coverage extended as follows:

1. Operations-premises liability;
2. Independent contractor's liability-broad form;
3. Contractual liability-broad form;
4. Completed operations and products liability.

All insurance shall be issued by a company duly registered and/or authorized to write insurance in the State of Louisiana. Compliance with this section shall be considered as having been met when a copy of the policy or a license of insurance has been filed with and approved by the Director of the Department of Safety and Permits.

The policy shall include an endorsement thereon that the Director of the Department of Safety and Permits will be notified at least 10 days in advance in the event the policy or policies are canceled or permitted to lapse by not renewing before the expiration date of the license.

111.8 - Federal Identification And Occupational License. When a Class "A" Master Gasfitter registers with the Mechanical Inspection Division, he must provide his Federal Identification Number and his Parish occupational license number.

111.9 - License Fees.

(A) To obtain a license, an applicant shall pay the applicable registration fee as follows:

Type:	*Fee*
Class "A" gasfitter.....	$110.00
Class "A" gasfitter (INACTIVE)	$25.00
Class "B" Journeyman Gasfitter	$55.00

(B) All license registration fees shall be made payable to "The City of New Orleans".

111.10 - Payment Of Fees: Dates For Renewal Licenses. The initial Class "A" Master Gasfitter license fee and required documentation shall be presented to the Mechanical Inspection Division when the application for the license registration is made.

The annual license renewal registration fee is due and payable to the Mechanical Inspection Division on or before the first regular day of business after the applicant's birth date.

License holders may choose between one-year and two-year renewal periods.

1. The renewal fee for a one-year renewal shall be due annually on the first regular business day after the applicant's date of birth.

2. The renewal fee for a two-year renewal shall be due biennially on the first regular business day after the applicant's date of birth.

No Class "A" Master Gasfitter license renewal shall be issued unless all work specified on permit(s) filed more than three months prior to the applicant's birth date has been completed, or a written reason has been submitted to and approved by the Director, indicating why the work specified on the permit has not been completed.

A license issued during a calendar year shall expire, unless sooner revoked or rescinded, on the applicant's birth date in the following year.

If a Class "A" Master Gasfitter fails to renew his license prior to the first regular day of business after his birth date, or fail to complete the work specified on his permit(s) issued more than three months prior to his birth date without explanation, a delinquent fee of ten ($10.00) dollars per month shall be added to his renewal fee beginning on the first regular day of business after his date of birth, and lasting for a period of one (1) year.

No permit application shall be processed, nor shall a permit be issued to an applicant that has not been issued a current valid Class "A" Master Gasfitter license.

If a Class "B" Journeyman Gasfitter license holder fails to renew his license prior to the first regular day of business after his date of birth, a delinquent fee of ten ($10.00) dollars per month shall be added to his renewal fee beginning on the first regular day of business after his birth date.

If a Class "A" Master Gasfitter or Class "B" Journeyman Gasfitter license has been expired for more than a two (2) years period, an application and examination as a new applicant shall be required.

111.11 - Inactive License. A Class "A" Master Gasfitter Contractor may, by written request to and with the approval of the Director, change his active license to an inactive status. A Class "A" Master Gasfitter that has changed his license to inactive, must maintain this inactive license in a current status by paying an annual renewal fee as required in this Code.

The inactive status is reserved for those individuals retired or not actively involved in the gasfitting business. There shall be no limit to the number of years the Class "A" Master Gasfitter may continue to carry his license in the inactive status.

A Class "A" Master Gasfitter may request his inactive license revert back to an active status by submitting the request in writing to and with the approval of the Director, and payment of the full active license fee.

Only one inactive change request shall be approved in a one twelve (12) month period. Inactive licenses shall have the same expiration date as active licenses.

No Class "A" Master Gasfitter shall engage in gasfitting business while his license is in an inactive status. However, when the Class "A" Master Gasfitter's license is in an inactive status he may work as a gasfitter, but only under the supervision of a Class "A" Master Gasfitter with a current active status license.

This inactive status does not apply to a Class "B" Journeyman Gasfitter license holder.

111.12 - Prohibition Against License Transfer. A Class "A" Master Gasfitter shall not assign or convey his license to anyone by power of attorney or other process or become involved in a type of agreement, assignment or use where he will not have supervision, direction, control or responsibility for the gasfitting work for which he has obtained a permit from the Mechanical Inspection Division.

111.13 - Limitations Of License. A Class "A" Master Gasfitter license holder and a Class "B" Journeyman Gasfitter shall be limited to operations described in this code. The use of his license shall not be applicable to more than one contracting firm, company or corporation at any one time. A Class "A" Master Gasfitter shall be allowed to file permits only

for the firm or corporation registered with the Mechanical Inspection Division. This firm or corporation is considered as his employer.

111.14 - License Revocation Or Suspension. Licenses issued under this code may be revoked or suspended for reasons as defined in this code. The Director shall initiate action for the license holder to show cause as to why the revocation or suspension would not be in order. However, the Director may find that the public interest would be adequately protected by a warning or a suspension for a definite period of time not to exceed two years. Upon a finding, the Director shall issue a warning or order a suspension.

Upon revocation, the Mechanical Inspection Division shall not accept an application for a new license or a renewal within two (2) years from the date of a revocation unless a shorter time period is granted at the discretion of the Director based on the circumstances of the revocation or suspension.

A gasfitter license shall only be issued after he has applied as a new applicant and passed the appropriate gas examination administered by the nationally recognized testing agency under contract with the City of New Orleans.

(a) *Revocation or Suspension Reasons* -

1. Interfering, impeding, or obstructing the legal operation of, or intentionally damaging, any item governed by this Code. In addition, threatening, abusing, insulting, interfering with, impeding or obstructing any individuals in connection with the operations or inspections of any equipment regulated by this code, or the administration of this Code.
2. Violating, either willfully or maliciously, or by reason of incompetence, a provision of this code.
3. Conviction of an offense involving the victimizing, deception or defrauding of a person for whom a service has been rendered or contracted to be rendered under this chapter.
4. Fraud or misrepresentation in obtaining a license or permit for an installation involving gas fired appliances or the trade of gasfitting.
5. Conviction of drunkenness or the use of narcotics.
6. Adjudication of insanity.
7. Securing a permit for gasfitting work not actually performed by the Class "A" Master Gasfitter or by certified employees under their control.
8. Securing a permit under pretext for an installation for which the applicant has no valid contract.
9. Performing gasfitting work as defined herein for which no gas permit has been obtained.
10. Refusing to finish work for which a permit was taken and for which payment was accepted.
11. False, misleading or deceptive advertising.
12. A license that is issued based on inaccurate or erroneous information.
13. A medical reason wherein a physician's medical opinion is provided to the Director indicating the person certified is unable to satisfactorily perform the duties and functions expected of a Class "A" Master Gasfitter or a Class "B" Journeyman Gasfitter license holder, and where further performance in the gasfitting field as a result of present continued activity or a future license renewal would be a

danger to himself and endanger the life and property of others.

(b) *Notice of revocation or suspension hearing* - The Mechanical Inspection Division may withhold the renewal of an applicant's license by the same process used for revocation or suspension of issued licenses, as described below.

If a report to the Director shows the existence of one or more of the above grounds for revocation or suspension, or there is a written complaint of a person alleging the existence of the grounds, and, if the Director investigates and determines the grounds to be valid, it shall be his duty to serve the alleged violator a written notice of the alleged grounds for revocation or suspension. The written notice shall be served upon the holder of the license and shall indicate the time, date, and place of a hearing to be held. The written notice shall be served not less than 15 days prior to the hearing.

The notice shall be sent by the Director and shall list the cause or causes for suspending or revoking the license. The notice may be mailed by regular and registered or certified mail to the license holder at the business address given by him on the application for his license, or it may be served in person by a Police Officer or employee of the Department of Safety and Permits.

The license holder shall have the right to appear at the hearing, be represented by counsel, produce evidence, and cross examine witnesses.

If the notice has been served upon him and he fails to appear, the hearing may proceed without his presence.

Certified copies of convictions involving causes for suspension or revocation in either the Municipal courts of New Orleans or in the Criminal District Court of this Parish shall constitute prima facie evidence of a violation by the license holder.

All petitions shall be prepared and prosecuted by the Law Department.

111.14.1 - Appeal Procedure. An appeal from the decision of the Director may be taken to the Board of Building Standards and Appeals within ten (10) days of written notification to the appellant.

111.15 - Gasfitter And Owner's Responsibilities. A Class "A" Master Gasfitter licensed in accordance with these regulations shall be responsible for defects of construction installed by him until the time as a Certificate of Approval has been issued by the Director. Also, all defects that may have been concealed by a Class "A" Master Gasfitter and discovered before the Certificate of Approval has been issued shall be the responsibility of and corrected by the Class "A" Master Gasfitter.

After the Certificate of Approval has been issued by the Director, the owner in whose name the gas meter is contracted for, shall be responsible for all defects.

111.16 - Permit Required. A Class "A" license holder proposing to install, repair or alter any equipment shall file an application for a permit with the Mechanical Inspection. A permit application shall only be accepted from a Class "A" Master Gasfitter with a current and active license. The permit application must be properly completed and personally signed by him.

No work may be commenced until the permit application is approved and issued by the Mechanical Inspection Division, except when failure to commence the work would be life-threatening or the work is an emergency due to a disaster or an uncontrolled event or occurrence.

The total fee for any work begun prior to obtaining the required permit, excepting the

emergency or life-threatening conditions, shall be the listed permit fee plus a fee of five (5) times the listed fee for the work.

The application for the permit shall be in accordance with application forms provided by the Mechanical Inspection Division.

111.17 - Permit And Inspection Fees.

Five gas outlets and first 100 feet of gas line	$15.00
Each additional outlet over 5, (for residential only)	$1.00
Each 100' of pipe or part thereof over first 100'	$12.00
Water heater (gas or electric)	
Under 50,000 BTU	$20.00
Between 50,000 and 200,000 BTU	$25.00
Special equipment (including: commercial ranges, floor furnaces, panel heaters, unit heaters, duct heaters, space heaters, and swimming pool boilers)	
Under 50,000 BTU	$20.00
Between 50,000 and 200,000 BTU	$25.00
Over 200,000 BTU	$35.00
Incinerators	
Up to 200,000 BTU	$40.00
Over 200,000 BTU	$65.00
Range Hoods - Commercial	
25 sq. ft. or less of hood area	$20.00
Over 25 sq. ft. of hood area	$35.00

Alteration Permits. Alteration permits fees shall be based on contract price at a rate of $35.00 for the first $1,500.00 of cost or part thereof plus $10.00 for each additional $1,000.00 or part thereof.

These fees shall cover all inspections of the work for which a permit is issued, as well as the issuance of the Certificate of Approval. There will be no charge for inspections of gas systems turned off because of fire, flood, or other causes as described above under "Permits Requirements".

A permit shall be construed to be authorization to proceed with the work and shall not be construed as authority to violate, cancel, alter, or set aside provisions of this Code, or other ordinances adopted by the City of New Orleans, including the Comprehensive Zoning Ordinance. Nor shall the issuance of a permit prevent the Director from thereafter requiring a correction of errors in plans or in construction, or of violations of this Code.

Every permit issued shall become invalid if :

1. the work authorized by the permit is not started within 6 months after its issuance, or
2. if the work authorized by the permit is suspended for more than 6 months after its issuance, or
3. if the work authorized by the permit is suspended or abandoned for a period of six (6) months after the time the work was started

One or more extensions of time, for periods of not more than ninety (90) days each may be allowed for the permit, provided the extension is requested in writing and justifiable cause for the extension request is demonstrated to the Director. When an extension is granted it shall be in writing to the requestor from the Director.

111.18 - Construction Documents. Construction documents involving gas piping and gas equipment installations are to be submitted at the time of application for building permits. See Section 107 - Construction Documents of the New Orleans Amendments to the International Building Code, for details.

111.19 - Certificates Of Approval. The Director shall sign and issue all Certificates of Approval for the installation, repair or alteration of all gasfitting work. The Certificate of Approval shall not be issued until all work has been

inspected and found to comply with the requirements of this Code, and all other applicable safety codes and specifications.

The Certificate of Approval shall contain installed gas equipment data, name of the owner or owners, and exact location of the building or premises where the work was accomplished.

A register shall be kept recording the address of each building, proper description and location of the equipment inspected, the name of the owner or owners of the building, the date of the inspection. The person or persons for whom the inspection was made and the amount collected for the inspection shall also be listed.

111.20 - Special Events. A Special Event shall include but not be limited to fairs, festivals, carnivals, circuses, road shows, trade shows, concerts, displays, expositions or other functions with a temporary status generally taking place outdoors and/or indoors at a permanent location or building and utilizing the gas service at the location or building for support of the event.

A permit is required for a Special Event temporary installation of cooking, heating or gas appliance. Permit fees are governed by Section 111.17.

All certificates of approval issued for a Special Event may be revoked at the discretion of the Director if the continued use of the gas equipment for the Special Event is so deemed unsafe and not in the interest of the safety, health and welfare of the general public for which the event was initially allowed.

All Special Event permits shall automatically expire at the end of ninety (90) days from the date of the initial issuance.

111.21 - Connection Of Gas Service. The Director has the sole responsibility and shall notify and authorize the utility company, via facsimile or telephone, to make the final gas meter connection of the building or premises gas system to the Utility Company's service facilities. To follow this authorization, the Director shall issue "Entergy Permit & Inspection Desk Gas Meter Installation Authorization" for that designated municipal address of the gas meter installation. No other person, firm or corporation shall be authorized to make this final connection.

The connection of gas from a privately owned source of supply to a gas system or equipment within or on a building or premises shall not be made until a special permit is secured from the Director authorizing the connections.

111.22 - Discontinuance Of Gas Service.

(A) When the Director determines the construction, repair or installation of a gas installation, piping, equipment or appliances at a municipal address or location to be in an unsafe, dangerous, hazardous or perilous condition and imminently threatening to the safety, health and welfare of the users, occupants or the general public, immediate notification shall be given to the utility company to disconnect the meter or remove utility service to the building or location. No utility service shall be resumed until the necessary corrections have been completed as required by this Code.

(B) When in the opinion of the Director, a gas installation, piping, equipment or appliances in a building or a gasfitter construction, installation, or repair work has been installed or is being used in violation of this Code or is being used in violation of the use provisions of the Comprehensive Zoning Ordinance, the Director shall send written notice to the person, firm or corporation responsible for the violation(s) to correct the condition(s) within the time specified in the written notice. The period may not be extended except by a written request to and a written approval from the Director.

Failure to comply with this notice shall empower the Director to:

1. request that charges be filed in the Municipal Court of the City of New Orleans; and/or

2. seek relief through Civil District Court or another Court of competent jurisdiction; and/or
3. notify as provided in Chapter 6, Article II, of the Code of the City of New Orleans, to appear before an Administrative Hearing Officer to show cause why the owner and/or person should not be adjudicated as a violator.

If the determination of the above Courts and/or Administrative Agency is made that the owner and/or person is in violation of the provisions of this Code or the provisions of the Comprehensive Zoning Ordinance and the violations have not been corrected within the time period stipulated by the judge or hearing officer, the Director shall have the authority to discontinue the service of the utility company until the time as corrections are made and the location is re-inspected and the utility company is notified in writing by the Director that the utility service(s) may be reconnected.

The Zoning Administrator must ascertain, and corroborate to the Director, that the above zoning violations have been corrected prior to reconnecting the utility service.

111.23 - Gas Meter Release Authorization. "Entergy Permit and Inspection Desk Gas Meter Release Authorization" issued for gas meter service connection by the utility company within residential, commercial or industrial establishments shall be subject to renewal at the expiration of six (6) months from date of issuance by the Mechanical Inspection Division, if the meter is not installed prior to the expiration date.

The release shall be issued only after a re-inspection of the location has been made and approved by the Director.

111.24 - Work By Other Than Gasfitters. No person, firm or corporation, erecting, repairing, or altering buildings, erecting signs, altering, changing, installing, plumbing or engaged in other work shall close in, conceal, cut, break, destroy, disconnect or in other manner interfere with the arrangements of any gas piping or gas appliances whether inside or outside of a building or premises without receiving a permit from the Director; before the permit will be issued, the person, firm or corporation shall serve the Director with a written notice at least forty-eight (48) hours before the contemplated work is to be commenced. The work of altering, changing or disconnecting the gas piping or gas appliances must be done under the supervision of a certified Class "A" Master Gasfitter; in addition, this existing installation must be inspected by the Director before he issues the permit.

111.25 - Display Of Master Gasfitter Contractor's Sign And Public Advertising Or Advertisements Of Services. Every location where work of a gasfitting nature is being done shall have displayed on a conspicuous place in front, a sign giving the name and address of the person, firm or corporation doing the gasfitter work and the words "CLASS "A" MASTER GASFITTER CONTRACTOR." The display of a sign by other than duly certified Class "A" Gasfitter Contractors shall constitute a violation of this Code.

The sign shall contain the name and license number of the Class "A" Master Gasfitter Contractor, and the name, address, and telephone number of his firm or corporation. All information on the sign shall be in letters not less than two (2) inches high.

All Class "A" Master Gasfitter Contractors shall install a sign on each work vehicle utilized in the performance of his duties and responsibilities as a Class "A" Master Gasfitter Contractor as defined in Article 111.1 of this Code. The vehicle sign shall contain the license number of the Class "A" Master Gasfitter Contractor, and the name, address and the telephone number of his firm or corporation, in letters not less than two (2) inches high.

Class "A" Master Gasfitter Contractors advertising or proposing to advertise to the general public for the purposes of obtaining

work as defined in this Code, shall provide their name and license number, and the name, address and telephone number of his firm or corporation. The display of signs or advertising for the purposes of obtaining work by a person other than the licensed Class "A" Master Gasfitter Contractor shall constitute a violation of this Code.

False, misleading or deceptive advertising shall constitute an attempt to circumvent the general health, welfare and safety of the public and shall constitute a violation of this Code.

111.26 - Extra Inspections Fees.

(a) *Extra Inspection or wasted trip* - When a Class "A" license holder has requested the Director make an inspection of an installation, the Director is to respond with a scheduled inspection. If, upon making the scheduled inspection, the Director determines the license holder has violated a requirement of this Code making extra inspections necessary, a fee of $150.00 shall be charged to the license holder. This charge is for each extra inspection made necessary as a result of blatantly incomplete work, inaccessibility to perform the inspection or for alterations to work previously accepted. This fee is in addition to the regular required permit fees.

(b) *Fire Marshal Inspection* - When a Class "A" license holder requests a complete gas inspection of existing installations to comply with the State Fire Marshal Act, a fee of $30.00 shall be charged.

(c) *After Hour Inspections* - When a Class "A" Master Gasfitter requests a gas inspection to be performed at a time other than the designated working hours of the Mechanical Equipment Inspectors, the request and reason for the after hour inspection must be made to and approved by the Director prior to an inspector assignment.

A fee of $175.00 shall be paid by the person, firm or corporation requesting the after hour inspection. Payment of this fee must be made to the "City of New Orleans" within forty-eight (48) hours of the request for the inspection and is to be paid in addition to the regular required permit fees in this Code.

111.27 - Exemptions. Nothing in this Code shall apply to companies regulated by the Louisiana Public Service Commission or the utility company where gas work is performed on the utility company property and on the supply side of the utility company meter.

111.28 - Plenum Spaces. For requirements in plenum spaces, used for supply or return air systems, see International Building Code, 2015 edition, as amended, and NFPA-54.

111.29 - Basic Standards. No gasfitter work for light, heat or power shall be installed or placed in or on a building, structure or premises, unless this work is in conformity with current approved methods of construction. Compliance with the regulations in NFPA-54, the American Gas Association (AGA) and Underwriters Laboratories (UL) shall be prima facie evidence of conformity with approved methods.

Gas devices, fittings, materials, equipment, and appliances shall be those approved for the purpose for which they are used. Only gas devices, fittings, materials, equipment, and appliances, which are constructed in conformity with their listing or labeled by a testing laboratory acceptable to the Director shall be installed. The satisfactory listing or labeling of these gas devices, fittings, materials, equipment, and appliances shall be the prima facie evidence of conformity with the requirements of this Code. Installed gas piping and appliances shall conform to the requirements of the New Orleans Amendments to The International Fuel Gas Code, 2021 Edition, and The National Fuel Gas Code, (NFPA-54).

111.30 - Standard Gasfitter Materials. Before gasfitter material, appliance, or equipment is used, it shall be constructed in conformity with the current methods (to include but not be limited to Underwriters Laboratory [UL], Factory Mutual [FM], Canadian Standards Association [CSA], American Gas Association [AGA], and others listed by the SBCCI PST & ESI (Public Safety Testing & Evaluation Service, Inc.) to insure safety to life and property.

111.31 - Alternate Materials And Methods. Provisions of this code are not intended to prevent the use of material or methods of construction not specifically prescribed by this code, provided an alternate has been approved by the Director. The Director may approve an alternate, provided he finds that the alternate for the purpose intended is at least the equivalent of that prescribed in this code in quality, strength, effectiveness, fire resistance, durability and safety. The Director shall require that sufficient evidence or proof be submitted to substantiate any claim made regarding the alternate. The Director may recommend an amendment to this Code in order to make permissible the use of the alternate. If in the opinion of the Director, the evidence and proof are not sufficient to justify approval or recommendation for an amendment, the applicant may refer the entire matter to the Board of Building Standards and Appeals as specified in Article 113 of The International Building Code, 2021 Edition as amended.

111.32 - Tests Of Materials And Systems Of Construction. Where new and/or alternate systems of construction, qualities of materials or tests are proposed for use, tests may be required by the Director. These tests shall be made at the expense of the owner or his agent by a testing laboratory or other organization approved for the purpose by the Director. Certified copies of all test reports shall be filed with the Director for his approval before the systems of construction or materials are used. The owner or his agent shall notify the Director of the time and location of all the tests so that he may be present.

(M.C.S., Ord. No. 22940, § 9, 12-20-07; M.C.S., Ord. No. 25919, § 1, 6-19-14; M.C.S., Ord. No. 27442, § 1, 6-15-17; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Sec. 26-20. Filing floor plans for emergency assistance.

(a) Every city owned building and structure currently utilized as an institutional use, as defined by the city's Comprehensive Zoning Ordinance, shall submit to the City's Office of Homeland Security floor plans or architectural renderings, which generally indicate a view from above of each floor therein, and the location of exterior and interior walls and the location of major features of the building, such as staircases, doors, and windows to assist first responders in rescue efforts during emergency events.

(b) Buildings and structures being utilized as institutional uses but not city owned are encouraged to and may submit to the Office of Homeland Security floor plans or architectural renderings for assistance during emergency events.

(c) Any plan submitted to the Office of Homeland Security is exempt from public disclosure pursuant to La. R.S. 44:3.1.

(d) For purposes of this section, an "emergency event" is the existence of a condition or the occurrence in or near a building that poses a direct and immediate threat to occupant life and necessitates the deployment of police, fire and other emergency resources for purposes of its mitigation. "Emergency" does not include a medical emergency affecting a single individual.
(M.C.S., Ord. No. 27972, § 1, 1-10-19)

Sec. 26-21. International Fire Code—Adopted.

(a) *Code adopted.* The International Fire Code, 2021 Edition, is hereby adopted as the Fire Code of the City of New Orleans, except that the text of the code shall read as modified by the amendments set forth in section 26-22. In the event of conflict these amendments shall supersede and take priority over any amended or unamended section. If an amendment is in conflict with only part of a section, it shall be construed as superseding only the part of the section with which it is in conflict.

(b) *City not liable.* Nothing contained in this code shall be construed to relieve or lessen the responsibility or liability of any person for injury

or damage to persons or property caused by or resulting from any defects of any nature in any work performed by said person or in any equipment owned, controlled, installed, operated or used by him, nor shall the city or any officer, agent or employee thereof incur, or be held to assume, any liability by reason or in consequence of any permit, permission, certificate of inspection or approval authorized therein, or issued or given as herein provided, or by any reason of or in consequence of any things done or acts performed pursuant to any provisions of this code.

(c) *Prior violations.* All suits at law or in equity and all prosecutions resulting from the violation of any fire ordinances heretofore in effect, which are now pending in any of the courts of this state, or of the United States, shall not be abated or abandoned by reason of the adoption of this code, but shall be prosecuted to their finality the same as if this code had not been adopted; and nothing in this code shall be so construed as to abandon, abate, or dismiss any litigation or prosecution now pending, or which may have heretofore been instituted or prosecuted.

(d) *Retroactive clause.* In the case of violations of fire ordinances committed before the effective date of this ordinance, the fire ordinance existing at the time such violations were committed shall apply and govern.

(e) *Legal effect.* The requirements imposed by this code shall be in addition to any other requirements imposed by other any other applicable law. The more restrictive requirements shall supersede the less restrictive requirements.

(M.C.S., Ord. No. 28108, § 1, 6-6-19; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Cross reference—Fire prevention and protection, ch. 74.

Sec. 26-22. International Fire Code—Amendments.

That the following provisions of the International Fire Code, 2021 Edition, shall be deleted in their entirety and the following shall be substituted in lieu thereof:

CHAPTER 1
SCOPE AND ADMINISTRATION

SECTION 101 — SCOPE AND GENERAL PROVISIONS

101.1 Title. These regulations shall be known and may be cited as the 2021 Fire Prevention Code of the City of New Orleans, hereinafter referred to as 'this code.'

SECTION 102 — APPLICABILITY

102.6 Historic buildings. The provisions of this code relating to the construction, alteration, repair, enlargement, restoration, relocation or moving of buildings or structures shall not be mandatory for existing buildings or structures identified and classified by the state or local jurisdiction as historic buildings when, in the opinion of the code official, such buildings or structures do not constitute a distinct hazard to life or property. Fire protection in designated historic buildings and structures shall be provided in accordance with an approved fire protection plan developed in accordance with the provisions of NFPA 909 and 914. Fire protection in designated historic buildings and structures may, at the discretion of the code official, be provided in accordance with an approved fire protection plan developed in accordance with the provisions of NFPA 909 and 914 or may be appealed to the Board of Building Standards and Appeals for equivalent fire protection.

SECTION 103 — FIRE PREVENTION DIVISION

103.1 General. There is hereby established a fire prevention bureau to be called the Fire Prevention Division and the person in charge shall be known as the Chief of Fire Prevention. For the purpose of this code, the Chief of Fire Prevention shall be referred to as the Code Official, Fire Official, or Fire Code Official. The function of the division shall be the implementation, administration and enforcement of the provisions of this code.

103.1.1 The Department of Fire Prevention will operate pursuant to LA RS 40:1563.

103.4 Liability. The Code Official, officer, or authorized fire department employee charged with the enforcement of this code, while acting for the jurisdiction, shall not thereby be rendered liable personally, and is hereby relieved from all personal liability for any damage accruing to persons or property as a result of an act required or permitted in the discharge of official duties. No person who institutes or assists in the prosecution of a criminal proceeding under this code shall be liable to damages hereunder unless he/she acted with actual malice and without reasonable grounds for believing that the person accused or prosecuted was guilty of any unlawful act or omission.

103.5 Liability for Damages. The City of New Orleans does not assume any liability under this code for any damage to persons or property, if any, by reason of the inspection or re-inspection of buildings or structures authorized hereunder, or failure to inspect or re-inspect such buildings, or by reason of any permit issued hereunder or approval and disapproval of any equipment authorized herein.

103.5.1 The City of New Orleans hereby releases the Louisiana Fire Marshal and any other State entity from responsibility or liability for those inspections performed by the fire department, or the consequences thereof, within the City of New Orleans.

SECTION 104 — GENERAL AUTHORITY AND RESPONSIBILITIES

104.6 Official records. The Code Official shall keep official records as required by Sections 104.6.1 through 104.6.4. Such official records, except exhibition, convention, and special event plans, shall be retained for a time period not less than required by state statute.

104.6.3 Fire records. The fire department shall keep a record of fires occurring within its jurisdiction and of facts concerning the same.

104.7.2 Technical assistance. To determine the acceptability of technologies, processes, products, facilities, materials and uses attending the design, operation or use of a building or premises or equipment or activities subject to the inspection of the Fire Prevention Division, the Code Official is authorized to require the owner or agent to provide, without charge to the jurisdiction, a technical opinion and report. The opinion and report shall be prepared by a qualified engineer, specialist, laboratory, or fire safety specialty organization acceptable to the code official and shall analyze the fire safety properties of the design, operation or use of the building or premises or equipment or activities and the facilities and appurtenances situated thereon, to recommend necessary changes. The code official is authorized to require design submittals to be prepared by, and bear the stamp of, a registered design professional.

104.10 Investigations. The code official is hereby authorized and directed to enforce all the provisions of this code. For such purposes he and his designated officers and authorized fire department employees may exercise police powers as authorized by Section 40:1563.1 of the Louisiana Revised Statutes and applicable state and municipal law.

It shall be the duty of the officers of the fire prevention division to do the following:

1. Investigate the origin, cause and circumstances of fires, to determine whether arson has been committed.
2. Perform other departmental investigations as directed by the Superintendent.
3. Administer oaths and affirmations, examine witnesses, and receive evidence.
4. Issue subpoenas and subpoenas duces tecum in the same manner and with the same effect as if issued by the Council of the City of New Orleans.
5. Conduct criminal follow-up investigations in order to determine the identity of person(s) responsible for committing arson.
6. Obtain and execute warrants for those person(s) responsible for committing arson.
7. If arson has been established, arrest the arsonist(s).

104.12 Tampering with fire equipment. No person shall molest, tamper with, damage or otherwise disturb any apparatus, equipment or appurtenance belonging to or under the supervision and control of the fire department.

104.13 Tampering with barriers, etc. No person, unless authorized or a public officer acting within the scope of his public duties, shall remove, unlock, destroy, tamper with, or otherwise molest in any manner any lock, gate, door, barricade, fire scene tape, chain, enclosure, sign, tag or seal which has been lawfully installed by the fire official or by his order or under his control.

104.14 Removal of Fire Equipment. No personal shall remove, tamper with, or otherwise disturb any fire hydrant or fire appliance required to be installed or maintained under the provisions of this code except for the purpose of extinguishing fire, training purposes, recharging, or making necessary repairs, or when permitted by the fire official. Whenever a fire appliance is removed as herein permitted, it shall be replaced or reinstalled as soon as the purpose for which it was removed has been accomplished.

SECTION 105 — PERMITS

105.2.1 Refusal to issue permits. If the application for a permit describes a use that does not conform to the requirements of this code and other pertinent laws and ordinances, the fire code official shall not issue a permit.

105.2.2 Inspection authorized. Before a new operational permit is approved, the code official is authorized to inspect the receptacles, vehicles, buildings, devices, premises, storage spaces, or areas to be used to determine compliance with this code or any operational constraints required.

105.3.7 Information on the permit. The code official shall issue all permits required by this code on an approved form furnished for that purpose. The permit shall contain a general description of the operation or occupancy and its location and any other information required by the code official. Issued permits shall bear the signature of the Code Official and the person issuing said permit.

105.6 Required operational permits. The code official is authorized to issue operational permits for the operations set forth in Sections 105.6.1 through 105.6.53.

105.6.14 Exhibits and Trade Shows. An operational permit or "NOFD Reviewed Stamp" is required to operate exhibits and trade shows.

105.6.32 Open burning. An operational permit is required for the kindling or maintaining of an open fire or a fire on any public street, alley, road, or other public or private ground. Instructions and stipulations of the permit shall be strictly adhered to.

105.6.32.1 Outdoor Rubbish Fire/Land Clearing. No person shall kindle or maintain an outdoor rubbish fire without a permit. A firewatch may be required.

105.6.32.2 Open flame devices. An operational permit is required to utilize or maintain an open flame device for display, entertainment, amusement, or non-food warming purposes. Any device used to produce an open flame must be used as intended by the manufacturer of that device and shall comply with applicable safety industry standard(s). A Firewatch may be required.

105.6.38 Pyrotechnic and Flame special effects. An operational permit is required for use and handling of pyrotechnic and flame special effects materials and/or devices.

105.6.42 Airports, rooftop heliports and helistops. An operational permit is required for the operation of an airport, rooftop heliport or helistop.

105.6.44 Storage of tires, scrap tires and tire byproducts. An operational permit is required to establish, conduct or maintain storage of tires, scrap tires and tire byproducts that exceeds 2,500 cubic feet of total volume of tires, scrap tires or tire byproducts and for indoor storage of tires, scrap tires, and tire byproducts.

105.6.45 Temporary membrane structures, tents, tarps and canopies. An operational permit is required to erect air-supported temporary

membrane structures, tents, tarps, or canopies having an aggregate area in excess of 150 square feet.

Exceptions:

1. Tents used exclusively for recreational camping purposes.
2. Funeral tents and curtains or extensions attached thereto, when used for funeral services.

105.6.49 Landfills (Type III Construction Demolition). An operational permit is required to operate a construction demolition landfill.

105.6.50 Institutional Facilities. An operational permit is required to operate an institutional facility as follows:

a. Daycare.

b. Group Home.

c. Residential Board & Care.

105.6.51 Annual Mobile and/or Temporary Vendors. A current operational permit is required to operate a mobile and/or temporary vendor stand.

105.6.51.1 Mardi Gras Mobile and/or Temporary Vendors. An operational permit is required to operate a Mardi Gras mobile and/or Mardi Gras temporary vendor stand.

105.6.52 Christmas Tree Retail Lots. An operational permit is required to engage in the business of retail sales of natural Christmas trees.

105.6.53 Special Event. A Special Event Permit is required through the City of New Orleans One Stop for Permits and Licenses to engage in, operate, or conduct any 'Special Event' not otherwise listed in the 'Permit Section' of this code but by the nature of such event, structures, systems, equipment, appliances, devices, materials, or activities are governed by provision of this code or in the opinion of the Code Official constitutes a fire or crowd control danger to the public.

105.7 Required construction permits. The code official is authorized to issue construction permits for work as set forth in Sections 105.7.1 through 105.7.18.

105.7.8 Flammable and combustible liquids.

4. Plans and specifications for the installation or removal of every above-ground or underground combustible or flammable liquid storage tank shall be submitted to the Fire Official for approval.

105.7.18 Temporary membrane structures, tents, tarps, and canopies. A construction permit is required to erect air-supported temporary membrane structures, tents, tarps, or canopies having an aggregate area in excess of 150 square feet.

Exceptions:

1. Tents used exclusively for recreational camping purposes.
2. Funeral tents and curtains or extensions attached thereto, when used for funeral services.

SECTION 106 — INSPECTIONS

SECTION 107 — MAINTENANCE

107.2 Confidence Testing. Equipment requiring periodic testing or operation to ensure maintenance shall be tested or operated as follows:

1. Confidence testing shall apply to all commercial establishments within the Parish of Orleans, including residential occupancies.
2. The building owner or his authorized representative shall be responsible for assuring that fire and life safety systems required by the building code or local/state fire codes are maintained in operable condition at all times. Testing of such fire and life safety systems shall be required as specified by this section, and shall be deemed reasonable proof that such systems are operable.

3. All fire and life safety systems will be tested and certified only by qualified personnel as determined by the Code Official.

4. Test results shall be recorded on forms stipulated by the New Orleans Fire Department (Copies available at New Orleans Fire Prevention Office at no cost). The completed forms shall be forwarded to the New Orleans Fire Prevention Division, 317 Decatur Street - New Orleans, LA 70130- Attention: Confidence Testing Unit. Copies shall also be maintained on the premises at all times and made available for Fire Department inspections.

5. The Fire Official shall be notified at least 48 hours before any test required by this section is performed. N.O.F.D. personnel may witness any required test and shall notify the building owner or his authorized representatives of the test they wish to witness and arrange agreeable appointments for witnessing the tests.

6. The systems to be tested and frequency of tests will be as follows:

CONFIDENCE TESTING SCHEDULE

TYPE OF SYSTEM	TEST FREQUENCY	FORM NUMBER
(1) Fire Alarm	Annually	CTF-1
(2) Stairway Door	Annually	CTF-2
(3) Fire Pump	Annually	CTF-3
(4) Standpipe/Hose Cabinet	Annually	CTF-4
(5) Automatic Sprinkler System	Annually	CTF-5
(6) Shaft Pressure	Annually	CTF-6
(7) Emergency Power	Annually	CTF-7
(8) Elevators	Annually	CTF-8
(9) Tempered Windows/Smoke Removal	Annually	CTF-9
(10) Foam Systems	Annually	CTF-10
(11) Fire Escapes Fire escapes approved as per IFC 1104.6	Annually	CTF-11 (Testing Information) and Certifying letter from Engineer
(12) Halon/CO2 and all other gaseous systems	Annually	CTF-12 (Test Instructions) and Serviceman's Tag
(13) Range Hoods	Six (6) months	CTF-13 and Serviceman's Tag
Portable Fire Extinguishers	Annually	Louisiana Licensed Serviceman's Tag

SECTION 108 — BOARD OF BUILDING STANDARDS AND APPEALS

108.1 General. The Code Official has the authority and it is his duty, subject to the provisions of law and of this code, to pass upon a question relative to the mode, manner of construction or materials to be used in the erection or alteration of any building or other structure erected or to be erected within the City of New Orleans, which is affected by the provisions of this code, or of any existing laws applicable to the City of New Orleans and relating to the design, construction, alteration, maintenance, repair, and removal of buildings or other structures therein, and to require that such design, mode, manner of construction, or materials shall conform to the true intent and meaning of the several provisions of this code. If the Code Official rejects or refuses to issue a permit, or to approve the design, mode, manner of construction or materials proposed to be followed or used in the erection and alteration of any such building or structure, or when it is claimed that the rulings

of the Code Official or the provisions of this code do not apply, or that more desirable and equally safe form of construction, from the owner's point of view, can be employed in a specific case, or whenever the owner of a building or structure shall object to any decision given by the Code Official, relative to the extent of damage sustained by any building or structure, by fire or otherwise, or to the extent or value of repairs, alterations or improvements of any existing building or replacement value thereof, the owner of the building may appeal from the decision of the Code Official to the Board of Building Standards and Appeals.

108.2 Appeals. Whenever the owner of an alleged unsafe structure or alleged public nuisance does not agree with the order from the Fire Department as to the corrections to be made, he shall have the right to appeal to the Board of Building Standards and Appeals within fifteen (15) days from the date of the order stating how he proposes to make the structure safe and, if required by the Board, shall submit detailed engineering analysis or recommendations accompanied by plans and specifications prepared by a Louisiana registered architect or a Louisiana registered civil engineer, or other substantiating data concerning the removal or other remedial steps to be taken to render the structure safe. In cases of emergency, and when the Code Official considers the structure in imminent danger of collapse, no appeal to the Board shall be permitted.

108.3 Actions. All cases in which application for appeals have been filed with the Board shall be heard, and the Board shall inform the Code Official of its decisions, stating the waivers or denials granted and conditions, if any, as they may require in each action. The decisions shall specify the variations allowed and the reason therefore, and shall be filed in the office of the Code Official within thirty (30) days of the public hearing. When building conditions are very unusual, requiring site visit, research and the like, the Code Official may grant a reasonable extension of time. Failure to file the decision shall not delay issuance of permits in accordance with a favorable vote so long as conditions attached to the permits are attached in accordance with the action of the Board. Copies of the decision shall be sent to the applicant and all parties involved in the appeal. If the order or refusal of the Code Official is affirmed, the order or refusal shall have full force and effect. If the order or refusal is modified or annulled, the Code Official shall issue an approval in accordance with the decision.

108.4 Appeals to Courts. A person, or any officer, department, commission, board, bureau, or any other agency of the City of New Orleans jointly or singularly aggrieved by a decision of the Board of Building Standards and Appeals may present to the Civil District Court of the Parish of Orleans, within thirty (30) days after filing of the decision in the office of the Board, a writ of certiorari asking for such relief and under such rules and regulations as are provided for such matters in appropriate legislation of the State of Louisiana.

SECTION 109 — VIOLATIONS

109.4 Violation penalties. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the Code Official, or of a permit or certificate used under provisions of this code, shall be fined not more than $500 or imprisoned for not more than six months, or both. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

109.4.2 Cease and Desist. The Code Official, in order to carry out the purposes of this code for which he is given the responsibility, supervision, licensure, or regulation, shall have the authority to order any person to cease and desist from any act or practice when it appears that such act or practice has violated, is violating, or will violate any provision of this code. When an order to cease and desist has been made via written notice of a violation, the recipient shall abate the violation. If the notice of violation is not complied with promptly, the Code Office is authorized to seek an administrative adjudication for any violation as provided in Chapter 6 of the Code of the City of New Orleans.

SECTION 110 — UNSAFE BUILDINGS

110.1.3 Imminent Danger. For any structure that is deemed by the Fire Code Official to be in imminent danger of collapse and/or constitutes a menace, the Fire Code Official shall have the authority to order the demolition of such structure for immediate abatement.

SECTION 111 — STOP WORK ORDER

111.4 Failure to comply. Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable to a fine of not less than $300.00 or more than $500.00. Each day that a violation continues after due notice has been served shall be deemed a separate offense.

113.2 Schedule of Fees for Permits and / or Inspections. There shall be no fee for an annual Commercial Occupancy maintenance inspection and any required permit associated with that inspection, or for a follow-up inspection where any previously identified violation has been abated and no new violations are found. Any other inspection shall be subject to the following schedule of fees, which shall be the responsibility of the occupant/business owner:

SQUARE FOOTAGE FEE SCHEDULE

MORE THAN SQ. FT.	LESS THAN SQ. FT.	INSPECTION FEE
-0-	10,000	50.00
10,000	50,000	75.00
50,000	100,000	100.00
100,000	150,000	125.00
150,000	200,000	150.00

For any area in excess of 200,000 square feet, add $25.00 for each additional 50,000 square feet or any part thereof as per schedule.

FEES IN ADDITION TO INSPECTION OF PREMISES ARE AS FOLLOWS:

All permits are renewable annually unless otherwise stated

Firewatch Administrative Fee	10% of total firewatch detail cost
Explosive Shipment Transporting (see late charges)	$50.00 per shipment
*Tents, Tarps, Canopies, or Temporary Membrane Structures (150 sq. ft. or greater)	$100.00 per event if ten or fewer total structures $500.00 per event if more than ten total structures
Blasting Operations	$75.00 per day
Bonfires	$75.00 per day
Paint Burning	$50.00 per day
**2015 Fire Prevention Code Amendments	$25.00 per packet
Cutting or Welding or Hot Work	$100.00 annually
Plan Review (Exhibit/Exposition, code compliance, fire evacuation, special event, etc.)	Per square footage fee schedule
Photo static copies of files or other records	$1.00 per page single sided
Pyrotechnic Displays (see late charges)	$100.00 per display
***Pyrotechnic Displays (Seasonal/Annual)	$500.00 per season or annually. Any modification to approved display will be deemed a new display
Class "B" Pyrotechnic License (NFPA 1123/ Outdoor)	$50.00 annually

Class "C" Pyrotechnic License (NFPA 1126/ Indoor)	$50.00 annually
Class "D" Flame Effect License	$25.00 annually
Class "B" and "C" Pyrotechnic License	$100.00 annually
NOFD "NO SMOKING" Signs	$5.00 each
Flammable or Combustible Liquid Storage Tank Installation or Removal	$75.00 per tank
Fumigations	Per square footage fee schedule for structures $500.00 annually for shipping containers
Fire Incident Report (Suppression Generated)	$25.00 each
Fire Investigative Report	$50.00 each
Arson Investigative Report	$100.00 each
Open Flame Device	$50.00 per month
Outdoor Rubbish Fire/Land Clearing	$75.00 per day
Special Event	Minimum $50.00 per event or as per square footage fee schedule
Annual Mobile and/or Temporary Vendor and Mardi Gras Mobile and/or Temporary Vendor. All permits expire January 31.	$50.00 per vehicle or stand
Any Permit not specifically listed above	Per square footage fee schedule

*Any structure erected for a period longer than 180 days shall comply with applicable sections of the International Building Code.

**Copies of 2015 International Fire Code books may be obtained by contacting 1-888-ICC-SAFE (422-7233).

***Seasonal/Annual Pyrotechnic Permits are issued at discretion of fire official for standard repetitive displays.

LATE FEES/CHARGES

Any operation which is commenced without a permit for which a permit is required.	Charges are tripled
Any operation which requires a firewatch, but commence without a firewatch being in place.	Administrative fees are tripled
All annual permits and licenses must be renewed within ten days of expiration date. Does not include pyrotechnic licenses.	If late, charges are doubled
Pyrotechnic/special effect permits must be applied for at least five working days prior to the display.	If late, charges are doubled
Explosive Shipment permits must be applied for at least 24 hours prior to shipment.	If late, charges are tripled
Fumigation permits must be applied for at least 24 hours prior to fumigation.	If late, charges are tripled
Exhibit/Exhibitions plans submitted or re-submitted less than 10 working days of move-in/start of event	Charges are doubled

EXCEPTIONS TO FEES AND CHARGES

a) Premises owned and operated by city, state, or federal government. Private contractors operating or providing services within these facilities are NOT EXEMPT.

b) Inspection of private residences consisting of two (2) or less units.

c) Fees for permits and/or inspections of tents, tarps, canopies, or temporary membrane structures (150 square feet or greater) shall be reduced by one half of the scheduled cost if the sponsoring person or organization is a nonprofit. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District.

SECTION 114 — EMERGENCY RESPONSE INFORMATION PACKET

114.1 All owners/managers/operators of any high-rise structure, hospital, nursing home, industrial/manufacturing facility and any mercantile or storage establishment over 15,000 square feet gross area; or other occupancies deemed necessary by fire official shall be responsible for completion and installation of an emergency response information packet, herein after referred to as a "Firepak."

114.2 The Firepak envelope and pertinent information sheets contained within shall be provided by the Fire Prevention Division and available to the public during normal business hours at no cost.

114.3 The Firepak envelope and information sheets contained within shall be kept or stored on the ground floor in an accessible area within the fire command station, security office, and the location shall be approved by the Fire Official.

114.4 The pertinent information sheets within the Firepak shall contain the following:

1) The building address, occupancy type, square footage, height, number of elevators, location of master electrical shut-off and whether or not portions of the building can be isolated electrically, location of gas shut-off and whether or not an emergency generator has been installed. This information shall be included with a plot plan provided by the owner/manager/operator.

2) The names and telephone numbers of the building owner, manager, engineer, electrician, security chief, alarm service company and elevator service company.

3) The characteristics of building communications and the location of the security office and/or fire command station.

4) The characteristics of the sprinkler and standpipe systems, including fire pump.

5) The maximum number of employees occupying the building.

6) The number and location of employees with physical disabilities.

7) The location of supply storage.

8) The location and nature of chemical hazards.

9) The location and nature of radiological hazards.

10) The location and nature of biological hazards.

11) Whether or not any guard dogs are used for security purposes, and if so, the location of dogs and the name and telephone number of the handler.

12) Whether or not the roof supports any dead loads.

13) Whether or not there are any supporting columns in the building.

14) Type of roof supports and floor supports.

15) Whether or not the building has a basement.

16) Whether or not the building has fire doors.

17) Whether or not the building has an HVAC system, and if so, whether or not selective isolation can take place.

114.5 All owners/managers/operators shall be responsible for completion of the information sheets referred to in Section 114.4 in its entirety. Names and telephone numbers on the notification form shall be updated as changes in staff occur.

CHAPTER 2
DEFINITIONS

SECTION 202 — GENERAL DEFINITIONS

Commercial Occupancy. For the purpose of this code, all permanent building, premises, or occupiable space, other than one or two family dwellings, whose fire and life safety conditions are regulated by this code.

Department of Fire Prevention. The term Department of Fire Prevention shall be synonymous with 'fire prevention bureau', 'Fire Prevention Division' or similar term.

Exhibitor. An individual or entity engaged in the display of the products or services offered.

Exhibit. A space or portable structure used for the display of products or services.

Exposition. An event in which the display of products or services is organized to bring together the provider and user of the products or services.

Exposition Facility. A convention center, hotel, or other building at which exposition events are held.

Fire Code Official. Also known as the Chief of Fire Prevention, Code Official, Fire Official, or duly authorized representative, charged with the administration and enforcement of the Fire Prevention Code.

Fire Watch. A temporary measure intended to ensure continuous and systematic surveillance of a building or portion thereof by one or more individuals approved by the Fire Code Official for the purposes of identifying and controlling fire hazards, detecting early signs of unwanted fire, raising an alarm of fire and notifying the fire department.

Fire Watch Personnel. Uniformed fire service personnel subject to the Fire Official's orders at all times when so employed. The term 'fire watch personnel' shall be synonymous with 'firewatch,' 'standby personnel,' 'standby firefighter,' 'standby firewatch' or similar term.

Qualified Personnel. People who are regularly engaged in the business of installing, maintaining and testing specific systems as listed on the testing schedule, and are certified as such by the LA State Fire Marshal's Office or those persons approved by the Chief of Fire Prevention or his duly authorized representative. *Note: Approval may require a written and/or field examination.*

Test. A complete check of the system per nationally recognized standards to determine that the system functions as designed.

CHAPTER 3
GENERAL REQUIREMENTS

SECTION 301 — GENERAL

301.3 Standby Firewatch Personnel. Whenever it is essential for public safety in a place of public assembly or any other place where people congregate, due to the number of persons or the nature of the performance, exhibition, display, contest or activity, or inadequate signaling/suppression or fire protection systems, or life safety features, the Fire Official may require the employment of one or more approved firewatch personnel to be on duty at such place. Said firewatch personnel shall be subject to the Fire Official's orders at all times when so employed and shall be in uniform and remain on duty during the times such places are open to the public or while such activity is being conducted.

SECTION 307 — OPEN BURNING, RECREATIONAL FIRES AND PORTABLE OUTDOOR FIREPLACES

307.1.1 Prohibited open burning. Outdoor burning of waste material or other combustible material is prohibited unless conducted in the situations enumerated in Section 307.1.1.1 if no public nuisance is or will be created and if the burning is not prohibited by and is conducted in compliance with other applicable laws and with regulations and orders of governmental entities having jurisdiction, including air control regula-

tions and orders. The authority to conduct outdoor burning under this code does not exempt or excuse the person responsible from the consequences of or the damages or injuries resulting from the burning. Said responsible person, or a duly authorized representative, must be present at the site of the burning while the burning is being conducted.

307.1.1.1 Outdoor burning permitted. Outdoor burning of trees, brush, grass, and other vegetation in land clearing operations may be permitted if the following conditions are met:

1. Prevailing winds at the time of the burning must be away from any habitations, the ambient air of which may be affected by smoke from the burning;
2. Care must be used to minimize the amount of dirt on the material being burned;
3. The fire shall be constantly attended by firewatch personnel until the fire is extinguished. The firewatch shall have a 2½ inch fire hose connected to an approved water supply, or other fire extinguishing equipment readily available for use. All fire extinguishing equipment shall be provided by permit applicant.
4. Heavy oil, asphaltic materials, items containing natural or synthetic rubber, or any materials other than plant growth which produce unreasonable amounts of smoke may not be burned nor may these substances be used to start a fire.
5. The burning may be conducted only between the hours of 8:00 a.m. to 1 hour before sunset. Piles of combustible material shall be of such size to allow complete reduction in the allotted time interval.

   Exception: Burning conducted utilizing an approved air curtain incinerator, fire box, or similar equipment may be conducted for extended hours.
6. The burning must be controlled such that a traffic hazard is not created.

307.1.2 Training. The prohibition specified in Section 307.1.1 shall not apply to fires set for the purpose of training public firefighting personnel or building occupants, when authorized by the Fire Official.

307.2.2 Firewatch. An approved firewatch may be required.

307.4 Location. The location of the burning must be at least 1,000 feet (304.8 m) from any dwelling or structure.

Exception: Burning conducted utilizing an approved air curtain incinerator, fire box, or similar equipment may be conducted at lesser distances from dwellings or structures.

307.4.3 Portable Chimneys (Chimineas) and Outdoor Fireplaces. The outdoor burning of solid fuel (e.g., wood, charcoal) in portable chimneys and outdoor fireplaces used solely for recreational purposes is allowed, provided that the following conditions are met:

1. Fire is supervised at all times by an adult and the smoke does not become a nuisance for adjacent property owners/occupants.
2. Embers are contained within appliance by use of a spark arrester or similar device that prevents the embers from escaping.
3. Appliance is Underwriters Laboratory (U.L.) listed.
4. Appliance is used on a non-combustible surface and is a minimum of ten (10) feet away from all structures and combustible materials.

SECTION 308 — OPEN FLAMES

308.1.9 Cooking operations. Any cooking operation, conducted within structure, tent, or enclosed space (fixed or mobile), which produces smoke or grease laden vapors and is not protected by an approved exhaust hood with an approved fire extinguisher shall necessitate the employment of one or more firewatch personnel.

SECTION 310 — SMOKING

310.9 Provisions not exclusive. Any prohibition, restriction, or requirement under this section

shall be in addition to any and all other prohibitions, restrictions, or requirements imposed by law, including but not limited to Chapter 66, Article II of the Code of the City of New Orleans.

SECTION 311 — VACANT PREMISES

311.2.2.1 Fire notification systems/protection in unoccupied portions of structures within the Inner Fire Limits. Each multistory structure within the Inner Fire Limits with an occupied first floor and unoccupied upper floors shall have an approved off-site monitored smoke/fire alarm system servicing the unoccupied upper floors.

SECTION 314 — INDOOR DISPLAYS

314.4.1 Firewatch required. When a vehicle is parked inside a place of assembly within a structure of mixed occupancy, such as a hotel, the requirements of Section 314.4 shall apply and additionally a standby firewatch person shall be employed as per Section 301.3. The Fire Official shall designate the number of standby firewatch personnel to be employed dependent upon the number of vehicles displayed and the configuration of such display. The standby firewatch personnel shall remain on duty for the entire duration of the vehicle display.

SECTION 319 — CONSTRUCTION DEBRIS LANDFILLS

319.1 Type III construction debris landfill. It shall be unlawful for any person, firm, or corporation to store or process any commercial, industrial, and/or construction debris or solid waste, as defined by the rules and regulations of the Louisiana Department of Environmental Quality, upon any public place, including the public sidewalks, streets, and other public places, within the corporate limits of the City of New Orleans or upon any property owned by or under the jurisdiction of the City of New Orleans, or upon any private property within the City without a permit. Any person, firm, or corporation wishing to operate a construction debris landfill, as defined by the Louisiana Department of Environmental Quality regulations for Type III facilities, must first secure a permit from the Department of Fire. Prior to issuing such a permit or permit renewal, the applicant shall furnish the Department of Fire written approval from the, Department of Safety and Permits, Department of Sanitation, Department of Public Works, and City Planning Commission certifying that the permit applicant is in compliance with the applicable rules and regulations set forth by each respective department or commission.

319.2 Storing or processing commercial debris. Any person, firm, or corporation wishing to store or process any commercial, industrial, and/or construction debris or waste on any open lot or parcel of ground within the jurisdiction of the City of New Orleans shall do so within the constraints set forth in the following requirements, subject to be verified and renewed annually:

1. A permit application shall be filed with the New Orleans Fire Prevention Division outlining the details of the proposed operation. Supplied information is to include the name, address, and telephone number of the property owner, the business owner, the agent for service, the lessee and lessor. The applicant must also submit a survey of the property that is to be utilized identifying the square number, lot number and municipal address. The survey must be performed and certified by a registered Louisiana professional land surveyor. The applicant must also submit evidence of a drainage runoff plan to assure that drainage or runoff from the property before, during, and after the filling shall not drain on adjacent property. The drainage plan must be certified by a registered Louisiana professional civil engineer. Landfill site ingress and egress shall meet the standards of the New Orleans Department of Public Works and under no circumstances shall the driveway impede the maximum flow created by any drainage ditches along the property adjacent to the property boundaries.

2. A three feet by five feet (3' × 5') sign that is plainly visible and legible from the

street or roadway shall be provided for all new and existing businesses that shall display the following information:

a. Name of business;

b. Municipal address;

c. Hours of operation;

d. Fire Department permit number;

e. Louisiana Department of Environmental Quality site identification number; and

f. A description of the types of waste that can be received.

3. The landfill site may only be operated between the times of dawn to dusk, seven days a week.

4. Designated area shall be completely enclosed on all boundary lines facing a roadway with a proper, suitable, and substantial fence constructed of wood, metal, or masonry material, in sound condition, substantially free from deterioration, not less than seven feet (7') nor more than ten feet (10') high to prevent the ready entry of unauthorized persons on the premises or land to ensure proper screening of the enclosed area from public view. The fence shall be maintained in a constant state of good repair and no signage or advertising material shall be placed upon the fence.

5. An all-weather road having a minimum width of twenty feet (20') shall be provided throughout the site rendering all areas of the site readily accessible to firefighting equipment.

6. Smoking shall be prohibited within the construction debris area.

7. A telephone or radio communication equipment capable of fire department notification shall be provided by the operator/owner/applicant.

8. An operable bulldozer, front-end loader, or similar equipment shall be available on the site. A trained equipment operator shall be present during operation hours. A $50,000.00 surety bond shall be posted with the New Orleans Fire Department by the landfill operator/owner and/or property owner in order to cover the costs of:

a. Providing additional digging equipment, moving equipment, or other services related to and necessary for fighting and extinguishing a fire at the facility.

b. Conducting and completing closure activities of the facility as prescribed by local, state, and federal regulations.

c. Satisfying any outstanding fines/penalties that have been imposed by the City and reduced to a judgement or lien against the property in question.

9. A twelve inch (12") layer of soil/cover material shall be utilized to cover exposed construction debris every fifteen (15) calendar days. A log shall be kept available at the site to verify the dates that soil/cover material was utilized.

10. Burning of any materials or solid waste at the landfill facility shall be prohibited.

11. One (1) fire hydrant, supplied with a water line of no less than six inches (6") in diameter, shall be provided within eighty-five feet (85') of the front/main entry gate. Additionally:

a. Hydrants shall meet the specifications of the Sewerage and Water Board of New Orleans.

b. Hose outlet size and threads are to conform to the hose connections used by the Sewerage and Water Board of New Orleans.

c. The center of hydrant hose outlets shall not be less than eighteen inches (18") above the final grade.

12. It shall be the responsibility of every construction debris business operator or the owner of the land upon which the business is being operated to maintain

the grass so that it does not exceed eighteen inches (18") in height. Additionally, the aforementioned person(s) shall maintain the area that begins outside the front fence and extends to the street's median, including the removal of any trash, debris, soil, litter, or solid waste in that area.

13. Adhere to all other provisions of City, State, and federal laws.

14. Adhere to all provisions of the Louisiana Department of Environmental Quality regulations on construction and demolition debris and wood waste landfills and processing facilities (Type III).

15. Should any of the requirements of Sections 319.1 through 319.2 not be met at any time, the departments of Safety and Permits, Fire, or Sanitation shall have the authority to cite the violator(s) and, after serving notice via United States mail services, hold a hearing before a duly authorized administrative hearing officer in accordance with Chapter 6 of the Code of the City of New Orleans. If after said hearing, a violation is determined to have occurred and be a continuing violation, the respective department may revoke any permit(s) issued, stop any and all processes and operations, and apply the $50,000.00 surety bond toward:

    a. Costs of conducting and completing closure activities of the facility as prescribed by local, state, and federal regulations; or

    b. Satisfaction of any outstanding fines or penalties assessed against the facility, by the City, which have been reduced to a judgment or lien against the property.

16. This ordinance shall have effect on any current owner/operator and/or property owner/operator and /or property owner operating an existing Type III Construction Demolition Landfill.

SECTION 320 — COMPOSTING

320.1 Scope. This section applies to storage and composting of agricultural waste material (hay, straw, manure, or other similar products) exceeding three thousand (3,000) cubic feet.

320.2 Permits. A permit is required from the Fire Official when storage exceeds three thousand (3,000) cubic feet. Should any of the requirements of this section not be met at any time, the Fire Official shall have the authority to cite the violator(s), and, after having given notice via United States mail service, hold a hearing before a duly authorized administrative hearing officer in accordance with Chapter 6 of the Code of the City of New Orleans. If, after the hearing, a violation is determined to have occurred and be a continuing violation, the Fire Official may revoke any permits issued, stop any and all processes and operations, and apply the $10,000.00 surety bond required by Section 320.3.

320.3 Surety bond. A $10,000.00 surety bond shall be posted with the New Orleans Fire Department by the operator/owner and/or property owner in order to cover the cost of: (1) providing additional digging equipment, moving equipment or other services related to and necessary for fighting and extinguishing a fire at the facility; (2) conducting and completing closure activities of the facility as prescribed by local, state, and federal regulations; (3) satisfying any outstanding fines or penalties which have been imposed by the City and reduced to a judgment or lien against the property in question.

320.4 General.

320.4.1 Agricultural waste material shall be stored in piles with maximum measurements of twenty (20) feet wide by fifty (50) feet long by fifteen (15) feet high.

320.4.2 Aisles between piles shall be no less than fifteen (15) feet in width.

320.4.3 Piles shall be irrigated as necessary to keep moisture levels between forty (40) to sixty (60) percent. Significant rain fall may be used to satisfy irrigation requirements.

320.4.4 Minimum ten (10) feet buffer zone is required for agricultural waste material storage set back where property lines adjoin other properties.

320.4.5 An operable front-end loader or backhoe or similar earth moving equipment shall be available on the site. A fire extinguisher with a minimum rating of 2-A:10-B:C must be on earth moving equipment at all times for use on equipment fires.

320.4.6 A trained equipment operator shall be present on site during operating hours.

320.4.7 Telephone or radio communication equipment capable of fire department notification shall be on the site during operating hours.

320.4.8 A plan for fire control and other emergencies shall be developed and routinely rehearsed by all personnel.

320.4.9 All other local, state, and federal regulations must be adhered to by owner/operator and/or property owner.

320.4.10 At closure, excess material shall be removed and the site shall be restored to usable condition.

320.4.11 Agricultural Waste Material and Composting sites must have a water supply meeting one of the following conditions:

1. Water Tank
   a. minimum three thousand (3,000) gallon capacity.
   b. minimum 250 gpm rated fire pump.
   c. 2½ inch hose capable of reaching all parts of the site.
2. Natural Body of Water
   a. minimum 250 gpm rated fire pump.
   b. 2½ inch hose capable of reaching all parts of the site.
3. Hydrant (for sites less than 100,000 square feet)
   a. Hydrant must be located within one hundred fifty (150) feet of site.
   b. ¾ inch water supply outlet shall be provided and located such that all piles on site can be reached with seventy-five (75) feet of ¾ inch hose.

320.5 Fuel Storage. See Chapter 57 for fuel storage requirements.

CHAPTER 9
FIRE PROTECTION SYSTEMS

SECTION 901 — GENERAL

901.5 Installation acceptance testing. Before final approval and acceptance of fire suppression, alarm, detection, or any other fire protection device, including standby power facilities and fire ventilating systems in any building or structure, the installation shall be subjected to an acceptance test. The appropriate acceptance test shall be conducted by qualified personnel and deemed adequate to determine that the system or fire protection device has been properly installed and will function as intended. Acceptance test results shall be recorded on forms stipulated by the New Orleans Fire Department (forms available at the New Orleans Fire Prevention Office at no cost). The completed forms shall be forwarded to the New Orleans Fire Prevention Division, 317 Decatur Street, New Orleans, Louisiana 70130, Attention: Confidence Testing Unit. It shall be unlawful to occupy portions of a structure until the required fire protection systems that serve within that portion of the structure have been tested and approved.

901.7 Systems out of service. The Fire Official shall be notified before disconnection and interruption of any fire protection, tests, repairs, alterations or additions are started and upon completion, and shall be advised of the extent of and reason for such work. Fire protection service shall be restored promptly.

Where a required fire alarm system is out of service for more than eight (8) hours in a twenty-four (24) hour period, or a required automatic sprinkler system is out of service for more than ten (10) hours in a twenty-four (24) hour period, the owner, occupant, or authorized representative shall notify the authority having jurisdiction

and the building shall be evacuated unless the authority having jurisdiction allows an approved firewatch for all parties left unprotected by the shutdown until the system(s) has (have) been returned to service. When in the opinion of the Fire Official a required standpipe is out of service for more than ten (10) hours in a twenty-four (24) hour period, the owner, occupant, or authorized representative shall notify the authority having jurisdiction and the building shall be evacuated unless the authority having jurisdiction allows an approved firewatch for all parties left unprotected by the shutdown until the system has been returned to service.

901.7.4 Preplanned impairment programs.

9. Shall be in accordance with the Louisiana State Fire Marshal approval.

SECTION 906 — PORTABLE FIRE EXTINGUISHERS

906.2.2 Inspection tags. Portable fire extinguishers shall have current date tags issued and affixed by an individual or company license by the Louisiana State Fire Marshal.

SECTION 907 — FIRE ALARM AND DETECTION SYSTEMS

907.9.1 One- and two-family dwellings. Every existing dwelling including one- and two-family dwellings shall be protected by an approved listed smoke alarm including, at a minimum, an operable single station ten-year, sealed lithium battery smoke alarm. In dwellings and dwelling units, a smoke alarm shall be mounted in accordance with NFPA 72 and International Residential Code standards. Single station smoke alarms shall be 10-year lithium battery-powered. Single station smoke alarms may be combination smoke and carbon monoxide detector. Multiple station smoke alarms may be connected to an approved household fire warning system and shall be listed to meet the installation requirements of NFPA 72 and the International Residential Code.

SECTION 912 — FIRE DEPARTMENT CONNECTIONS

912.3.1 NOFD fire hose threads. New Orleans Fire Department fire hose connections shall meet the New Orleans Sewerage and Water Board specifications:

Large hose (2½ inches) — 7½ threads per inch (National Standard Thread)

Small hose (1½ inches) — 11½ threads per inch (Iron Pipe Thread)

CHAPTER 10
MEANS OF EGRESS

SECTION 1029 — ASSEMBLY

1029.9.9 Plan submittal of exit ways and aisles. A scale-drawn plan indicating the seating arrangements, location and width of exit ways and aisles, and the arrangement of furnishings or equipment, must be submitted by the building owner, manager, or authorized agent to the Fire Official for approval. The approved plan shall constitute the only acceptable arrangement until revised or additional plans are submitted and approved.

1029.9.10 Exposition plan. Plans for expositions, exhibits, trade shows, and similar events shall be submitted in an acceptable format to the Fire Official for approval prior to the move-in of any events.

CHAPTER 24
FLAMMABLE FINISHES

SECTION 2403 — PROTECTION OF OPERATIONS

2403.2.7 Welding warning signs. Welding, cutting, and similar spark-producing operations shall not be conducted in or adjacent to flammable vapor areas or dipping or coating operations unless precautions have been taken to provide safety. Conspicuous signs with the following warning shall be posted in the vicinity of flammable vapor areas, dipping operations and paint storage rooms:

NO WELDING
THE USE OF WELDING OR CUTTING EQUIPMENT IN OR NEAR THIS AREA IS DANGEROUS BECAUSE OF FIRE AND EXPLOSION HAZARDS. WELDING AND CUTTING SHALL BE DONE ONLY UNDER THE SUPERVISION OF THE PERSON IN CHARGE. NO WELDING SHALL BE CONDUCTED WITHIN TWENTY (20) FEET OF ANY SPRAY BOOTH.

CHAPTER 31
TENTS AND OTHER MEMBRANE STRUCTURES

SECTION 3103 — TEMPORARY TENTS AND MEMBRANE STRUCTURES

3103.2 Approval required. Air-supported temporary membrane structures, tents, tarps, or canopies having an area in excess of 150 square feet (13.9 m2) shall not be erected, operated or maintained for any purpose without first obtaining a permit and approval from the fire code official.

Exceptions:

1. Tents used exclusively for recreational camping purposes.
2. Funeral tents and curtains or extensions attached thereto, when used for funeral services.

3103.6 Construction documents. A detailed site and floor plan for tents, canopies, or membrane structures with tables, chairs, or other movables shall be provided with each application for approval. The tent, canopy, or membrane structure floor plan shall indicate details of the means of egress facilities, seating capacity, arrangement of the seating and location and type of heating and electrical equipment.

SECTION 3104 — TEMPORARY AND PERMANENT TENTS AND MEMBRANE STRUCTURES

3104.15.5.1 Firewatch required. Any cooking operation within an air-supported temporary membrane structure, tent, tarp, or canopy that produces smoke or grease laden vapors and is not protected by an exhaust hood with an approved fire suppression system shall necessitate the employment of one or more approved firewatch personnel.

CHAPTER 56
EXPLOSIVES AND FIREWORKS

SECTION 5601 — GENERAL

5601.1.6 Transportation of explosives. Transportation of explosives in the following amounts shall require a New Orleans Police Department escort consisting of at least two motorcycle police officers:

USDOT 1.1, 1.2 or Class A:	Greater than 15 pounds N.E.C. (6.8 kg)
USDOT 1.2, 1.3, 1.4 or Class B:	Greater than 300 pounds N.E.C. (136 kg)
USDOT 1.4G or 1.5D or Class C:	Greater than 600 pounds N.E.C. (272 kg)

5601.2.4 Financial responsibility. Before a permit is issued pursuant to Section 5601.2, the applicant shall file with the jurisdiction a corporate surety bond in the principal sum of $1,000,000.00 or a public liability insurance policy for the same amount, for the purpose of the payment of all damages to persons or property which arise from, or are caused by, the conduct of any act authorized by the permit upon which any judicial judgment results. The fire code official is authorized to specify a greater or lesser amount when, in his or her opinion, conditions at the location of use indicate a greater or lesser amount is required. Government entities shall be exempt from this bond requirement.

SECTION 5608 — FIREWORKS DISPLAY

5608.2 Permit application. A permit must be obtained from the Fire Official to manufacture (compound), store, or use any fireworks or pyrotechnic special effects material in connection with motion picture, television, theatrical or group entertainment production. A permit for use shall be granted only to a competent opera-

tor approved by the Fire Official and who has an appropriate license from the New Orleans Fire Prevention Division.

5608.2.3 Standby personnel and equipment. The Fire Official may require the employment of one or more experienced New Orleans Fire Department firewatch personnel during the discharge of any permitted outdoor, indoor, or special effects pyrotechnic display. Said NOFD firewatch personnel shall be in uniform and subject to the Fire Official's orders at all times when so employed. Use of NOFD equipment may be required at the expense of the applicant.

5608.2.4 Commercial displays: license required. No person may engage in the business of producing commercial displays of fireworks without possessing a license issued by the New Orleans Fire Prevention Division. Conducting commercial displays of fireworks includes the display or discharge of Class 'B' or 'C' fireworks or 'D effects as entertainment before the public or a private group which has been admitted or permitted to view the display. See schedule of fees for Class 'B,' 'C,' or 'D' pyrotechnic or flame effects licenses. All pyrotechnic licenses are valid for one year following the date of issuance.

5608.2.5 Commercial displays: application for license. A person applying for a license to produce commercial displays of fireworks must:

1. Be a U.S. citizen.
2. Be at least 21 years of age.
3. Submit an application on the form provided by the New Orleans Fire Prevention Division.
4. Applicant must furnish the following:
    a. A copy of his user permit from the Louisiana Department of Public Safety and Corrections and/or the Office of the State Fire Marshal as provided in R.S. 40:1472.3 and R.S. 51:650 *et seq*.
    b. A copy of his distributor and/or importer permit(s) from the State Fire Marshal's Office as provided in R.S. 51:656.
    c. A copy of his ATF documentation of clearance and permit(s) and/or license(s).

5608.2.6 Examination criteria. Applicant must successfully pass a written examination with a minimum score of 70 percent covering one or more of the following categories:

1. For an applicant seeking a Class 'B' license, the examination will cover the design, construction, storage, and use of fireworks as per NFPA 1123: Code for Fireworks Display and the New Orleans Fire Prevention Code including precautions and procedures for the safety and protection of spectators.
2. For an applicant seeking a Class 'C' license, the examination will cover the design, construction, storage and use of fireworks and systems used to produce flame effects as per NFPA 1126: Standard for the Use of Pyrotechnics Before a Proximate Audience, NFPA 160: Standard for the Use of Flame Effects Before an Audience, and the New Orleans Fire Prevention Code including precautions and procedures for the safety and protection of spectators.
3. For an applicant seeking a Class 'D' license, the examination will cover the design, construction/fabrication, installation, testing, control, operation, maintenance, equipment, procedures, and systems used to produce flame effects as per NFPA 160: Standard for the Use of Flame Effects Before an Audience, and the New Orleans Fire Prevention Code including precautions and procedures for the safety and protection of spectators.
4. For an applicant seeking a Class 'B' and 'C' license, the exams will cover those topics outlined in Subsections 1 and 2.
5. The tests noted above shall be developed and administered by members of the New Orleans Fire Prevention Division or a duly appointed agent/designee.
6. If a minimum score of 70 percent is not attained, the applicant must wait at

least 30 days before retesting. The fees listed in Section 113.2 shall be applicable to all retests. A licensee whose license has been expired for 2 years or more and makes application for renewal must retake and pass the written test(s).

5608.2.7 Suspension, revocation, or refusal to renew a license or certificate. The Chief of Fire Prevention may suspend, revoke, or refuse to renew a license for a pyrotechnics technician/operator of commercial displays of fireworks if the licensee or registrant has caused or allowed a life safety hazard at a location at which the technician/operator:

1. Stores, handles, or prepares fireworks, special effect or pyrotechnic devices; or
2. Produces or conducts a commercial display of fireworks or special effects.

5608.2.7.1 Report. If an incident resulting in a life safety hazard is caused or allowed by a licensed technician/operator or registrant, he shall submit to the Chief of Fire Prevention upon request a report explaining the incident. Failure to submit the report shall constitute a violation for which a citation may be issued and, if after proper notice has been given and a hearing before a duly authorized administrative hearing officer has been conducted, may result in the revocation of the license or certificate.

5608.2.7.2 Disposal of product. A person whose license or certificate has been revoked must dispose of the fireworks, special effect or pyrotechnic devices in his possession within 30 days after receiving written notice to do so by the Chief of Fire Prevention. In complying with this subsection, the licensee or registrant may transfer the fireworks, special effects or pyrotechnic devices only to a person who is licensed to produce commercial displays of fireworks or who is otherwise permitted to lawfully purchase and possess fireworks or pyrotechnic devices.

CHAPTER 57
FLAMMABLE AND COMBUSTIBLE LIQUIDS

SECTION 5704 — STORAGE

5704.2.9.6.1 Locations where above-ground tanks are prohibited. Storage of flammable or combustible liquids in above-ground tanks outside of buildings is prohibited within the Inner Fire Limits as per the New Orleans Building Code.

Exception: All above-ground tanks that were legally installed prior to adoption of this code.

Plans and specifications for the installation or removal of every above-ground or underground combustible or flammable liquid storage tank shall be submitted to the Fire Official for approval.

5704.2.11.4.2 Leak detection. Underground storage tank systems shall be provided with an *approved* method of leak protection from any component of the system that is designed and installed in accordance with NFPA 30. Underground flammable or combustible liquid tanks of 1,000 gallons (3.79 cubic meters) capacity or larger shall be equipped at the time of installation with a vertical 6 inch (152 mm) diameter or larger perforated pipe installed within the sand or gravel backfill of the tank excavation hole to the depth of the lowest point of any tank or its foundation. A removable cover for inspection shall be provided over the perforated pipe. The cover shall be designed to withstand traffic over the tank area. A single pipe may serve more than one tank provided it will monitor leakage from the other tanks.

CHAPTER 80
REFERENCED STANDARDS

NFPA

NFPA-1 (2015) Uniform Fire Code

NFPA-101 (2015) Life Safety Code

NFPA-160 (2011) Standard for the Use of Flame Effects Before an Audience

NFPA-909 (2005) Code for the Protection of Cultural Resource Properties, Museums, Libraries, and Places of Worship

NFPA-914 (2010) Code for Fire Protection of Historic Structures

NFPA-1123 (2014) Code for Fireworks Display

NFPA-1124 (2006) Code for Manufacture, Transportation, Storage, and Retail Sales of Fireworks and Pyrotechnic Articles

NFPA-1126 (2011) Standard for the Use of Pyrotechnics Before a Proximate Audience

(M.C.S., Ord. No. 28108, § 1, 6-6-19; M.C.S., Ord. No. 30235, § 1, 2-27-25)

Cross reference—Fire prevention and protection, ch. 74.

Sec. 26-23. International Energy Conservation Code—Adopted.

(a) *Code adopted.* The International Energy Conservation Code, 2021 Edition, is hereby adopted.

(b) *City not liable.* Nothing contained in this code shall be construed to relieve or lessen the responsibility or liability of any person for injury or damage to persons or property caused by or resulting from any defects of any nature in any work performed by said person or in any equipment owned, controlled, installed, operated or used by him/her, nor shall the city or any officer, agent or employee thereof incur, or be held to assume, any liability by reason or in consequence of any permit, permission, certificate of inspection or approval authorized therein, or issued or given as herein provided, or by any reason of or in consequence of any things done or acts performed pursuant to any provisions of this code.

(c) *Prior violations.* All suits at law or in equity and all prosecutions resulting from the violation of any energy conservation ordinances heretofore in effect, which are now pending in any of the courts of this state, or of the United States, shall not be abated or abandoned by reason of the adoption of this code, but shall be prosecuted to their finality the same as if this code had not been adopted; and nothing in this code shall be so construed as to abandon, abate, or dismiss any litigation or prosecution now pending, or which may have heretofore been instituted or prosecuted.

(d) *Retroactive clause.* In the case of violations of energy conservation ordinances committed before the effective date of this ordinance, the energy conservation ordinance existing at the time such violations were committed shall apply and govern.

(e) *Legal effect.* The requirements imposed by this code shall be in addition to any other requirements imposed by any other applicable law. The more restrictive requirements shall supersede the less restrictive requirements.

(M.C.S., Ord. No. 30235, § 1, 2-27-25)

Secs. 26-24—26-35. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Secs. 26-36—26-55. Reserved.

DIVISION 2. BOARDS OF EXAMINERS†

Sec. 26-56. Clerical help, files, etc., of certain examining boards.

The director of the department of safety and permits shall be responsible for furnishing all clerical and other assistance as may be needed in the performance of their duties by the board of electrical examiners, the board of mechanical examiners and the board of examiners of operating engineers. Files and other records of such boards shall be maintained by the director.

(Code 1956, § 11-4)

Secs. 26-57—26-75. Reserved.

DIVISION 3. INSPECTIONS

Sec. 26-76. Coordination of inspections.

The department of code enforcement shall be responsible for the development of a program for the coordination of all regulatory inspections made by the department of safety and permits with the sanitary and housing inspections made by the department of health, the plumbing inspections made by the sewerage and water board, the

*__Cross reference—__Administration, ch. 2.

†__Editor's note—__Further provisions regarding the boards of examiners are in the New Orleans Building Code which is on file in the clerk of the council's office.

__Cross reference—__Boards, committees and commissions, § 2-86 et seq.

fire inspections made by the department of fire and such other inspections as may be performed by other departments, bureaus and divisions of the city.
(Code 1956, § 11-5; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Charter references—Inspections by department of safety and permits, § 4-702(3); inspections by the department of health, § 4-1202(4).

State law reference—Sewerage and water board, R.S. 33:4701—33:4092.

Sec. 26-76.1. Emergency electrical inspection procedures.

Pursuant to [Home Rule Charter] section 3-112 (11) which authorizes enactment of emergency procedures class A electricians and electrical contractors holding a license deemed valid by the Louisiana State Licensing Board for Contractors and determined to be in compliance with state and national electrical training standards shall be authorized to conduct electrical inspections on commercial and residential properties in Orleans Parish, certify compliance with (11,625 M.C.S.) the uniform building code of the city and report inspection results to Entergy of New Orleans to initiate electrical service connections and to the department of safety and permits and shall conduct inspections in lieu of required inspection by city electrical inspectors for the duration of emergency procedures until termination by the city council.
(M.C.S., Ord. No. 22130, § 1, 1-19-06)

Sec. 26-77. Verification of compliance with building restrictions.

In subdivisions or areas designated herein that are subject to building restrictions, any applicant for a permit must provide verification of compliance with any such applicable building restrictions by the Orleans Levee District on the permit application and on each separate page of the applicant's plans.
(M.C.S., Ord. No. 19,015, § 1, 12-1-98)

Sec. 26-78. Conditions for granting permits.

A permit for construction, addition, or alteration of a building in any subdivision or area designated herein shall comply with any applicable building restrictions, and its issuance shall be conditioned upon the following:

(1) The Orleans Levee District shall provide to the department of safety and permits official copies of building restrictions pertaining to all properties under its auspices, and shall provide updated copies of such restrictions as they are added or modified;

(2) The director of the city planning commission shall cause to have added to the official zoning base maps a notation showing that the areas designated herein are subject to the requirement of verification of compliance with building restrictions by the Orleans Levee District;

(3) Applicants for permits in the areas designated herein shall obtain verification of compliance from the Orleans Levee District which shall be shown on the permit application and on each separate page of the applicant's plans;

(4) The department of safety and permits shall not issue any permit in the areas designated herein until the foregoing requirements have been met in their entirety.

(M.C.S., Ord. No. 19,015, § 1, 12-1-98)

Sec. 26-79. Areas subject to verification requirements.

Only the following areas are subject to the foregoing requirements:

(1) *Lakeshore:* Bounded by Lake Pontchartrain, the Orleans Outfall Canal, Allen Toussaint Boulevard, and Lakeshore Drive.

(2) *Lake Vista:* Bounded by Lake Pontchartrain, Bayou St. John, Allen Toussaint Boulevard, and the Orleans Outfall Canal.

(3) *Lake Terrace:* Bounded by Lake Pontchartrain, the London Avenue Outfall Canal, Allen Toussaint Boulevard, and Bayou St. John.

(4) *Lake Oaks:* Bounded by Lakeshore Drive, the eastern boundary of Lake Oaks Park, Leon C. Simon Drive, St. Roch Avenue, the rear property line of lots fronting on the riverside of New York Street, and Elysian Fields Avenue.

(M.C.S., Ord. No. 19,015, § 1, 12-1-98; M.C.S., Ord. No. 28972, § 1, 3-24-22)

Sec. 26-80. Inspection of multi-family dwellings.

(a) Any multi-family dwelling consisting of ten units or more shall be subject to an inspection, if requested in accordance with this section, following an incident of gun violence on the premises or within the curtilage thereof. The inspection shall, at a minimum, evaluate all common areas of the dwelling, including, but not limited to, hallways, stairwells, landings, and any other spaces generally accessible by residents. In addition, the inspection may include any other area to which an inspector is able to secure lawful access.

(b) A councilmember or the superintendent of police may request an inspection of any multi-family dwelling consisting of ten units or more by written request to the director of code enforcement.

(c) Once a written request for an inspection is made, the requested inspection shall occur within ten days of the director receiving the request.

(d) A written report of the outcome of the requested inspection, including but not limited to a list of any violations and follow-up enforcement actions, shall be provided to the requesting councilmember or superintendent no later than five days from the date of the inspection.

(e) The provisions of this section shall be in addition to, and shall not limit or supersede, any other duty or right of the city to perform inspections pursuant to applicable law.

(M.C.S., Ord. No. 29426, § 1, 5-11-23)

Secs. 26-81—26-110. Reserved.

ARTICLE III. PLUMBING*

Sec. 26-111. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agent means any person who legally represents the owner or any person who receives the rent for such premises in whole or in part.

Occupant means any person living on the premises.
(Code 1956, § 48-2)

Cross reference—Definitions generally, § 1-2.

Sec. 26-112. Application of article.

The provisions of this article shall apply to all private markets and buildings on wharves as well as all places of business, hotels, rooming-houses, restaurants, and all other premises, whether used for public or private business or boarding or residential purposes.
(Code 1956, § 48-1)

Sec. 26-113. Enforcement; inspections.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it and to that end its officers, members, agents, employees, inspectors and appointees may enter any premises or place in the city for the purpose of inspection for violations hereof.
(Code 1956, § 48-8)

Sec. 26-114. Plumbing required where sewerage system exists.

It shall be unlawful for any person to throw, empty, introduce or discharge into any open or subsurface drain or into any pipe therewith connected, in any part of the city where sewerage exists or where sewerage connections can be and are required by law to be made, anything whatsoever, whether liquid, semiliquid or solid, taken or coming from any water closet, urinal, cuspidor, sink tank or stable or anything foul, obnoxious, harmful or deleterious to health or to cause or permit any such thing to be done by any other person.
(Code 1956, § 48-3)

Sec. 26-115. Discharges in water closets restricted.

It shall be unlawful for any person to introduce or discharge into any water closet or any opening or fixture connected to the sewerage system any rags, wastes, large wads of paper, strings or similar objects or any solid objects which would tend to obstruct the soil, waste, drain lines or cause such obstruction or to use in any water closet any other material than soft toilet paper in sheets not exceeding six inches square.
(Code 1956, § 48-4)

Sec. 26-116. Maintenance generally.

Every person, whether owner, agent or occupant of every premises connected with the sewer or water system of the city shall maintain the fixtures and plumbing in such premises in good sanitary and usable condition and so as to maintain a free and unobstructed flow of water, fluids and odors through the pipes and escapes respectively provided therefor and so as to prevent obstructions therein and leaks therefrom of fluids or water or the escape of noxious, dangerous or offensive odors.
(Code 1956, § 48-5)

Sec. 26-117. Repairs required.

Whenever any of the following is broken or leaks so as to allow the escape of water, fluids or odors or the free flow of the fluids or odors through them is wholly or in part obstructed, every owner, agent or occupant shall repair or replace, as may be necessary, the defective or broken plumbing or fixtures and stop such leak or escapes within the period fixed in section 26-119:

(1) Any water closet, tank, sink, bathtub, washstand, urinal, laundry tub, surgeon's or dentist's sink or cuspidor or other plumbing fixtures;

*Cross reference—Utilities, ch. 158.

State law reference—Plumbers, general requirements, R.S. 37:1361 et seq.

(2) Any sewer, soil, water, waste, vent or other pipe or conduit; or

(3) Any drain, trap, sewer or other plumbing.

(Code 1956, § 48-6)

Sec. 26-118. Rules of sewerage and water board.

The installation and repair of all plumbing and plumbing fixtures shall be of materials of the standards and installed and inspected in the manner provided for in the Rules of the Sewerage and Water Board of New Orleans Governing Use of Sewerage, Water and Drainage Systems and Plumbing which is available from the sewerage and water board plumbing department.
(Code 1956, § 48-7)

Sec. 26-119. Notice required before prosecution for violation.

No affidavit shall be filed against any person, whether owner, agent or occupant, charged with the duty of complying with the provisions of this article until 15 days shall have elapsed after a communication shall have been deposited in the United States mail addressed by the department of health to such person at his office, residence or other known address or to the premises upon which such violation shall be alleged to lie or delivered personally to such person which shall designate the character of the violation with which such person will be charged and the location of the premises upon which the offense is alleged to lie.
(Code 1956, § 48-10)

Sec. 26-120. Responsibility of partners, officers, etc.

When an association of individuals is charged with the violation of any provision of this article, each individual of such association, or, if a foreign association, the local agent or person locally in charge thereof, shall be deemed to represent such association for the purpose of enforcing this article, and shall be responsible and punishable for each violation thereof. When a firm is charged with such violation each member thereof and, if a foreign firm, the local agent or person locally in charge of such firm, shall be deemed to represent such firm for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof. When a corporation shall be charged with such violation the president or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation or, if a foreign corporation, the local agent or person locally in charge thereof, shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 48-9)

Sec. 26-121. Penalties; certain violations.

Violators of this article shall, upon conviction or plea of guilty be punished as follows:

(1) The first conviction of a violation of this article shall be punishable by a fine of not less than $50.00 or more than $100.00;

(2) The second conviction of a violation shall be punishable by a fine of $100.00; and

(3) Each subsequent conviction of a violation shall be punishable by a fine of $100.00 and imprisonment of no less than five days and no more than 90 days.

(Code 1956, § 48-1.1)

Secs. 26-122—26-145. Reserved.

ARTICLE IV. MINIMUM PROPERTY MAINTENANCE CODE*

DIVISION 1. POLICY AND SCOPE

Sec. 26-146. Title.

These regulations shall be known as the Minimum Property Maintenance Code, hereinafter referred to as "this code."

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*__Editor's note—__M.C.S., Ord. No. 25454, § 1, adopted August 22, 2013, effective Sept. 1, 2013, amended Art. IV in its entirety to read as herein set out. Former Art. IV, §§ 26-146—26-149, 26-150, 26-151—26-160, 26-161—26-164, 26-165—26-170, 26-171—26-175, 26-176—26-208, 26-209—26-217, 26-218—26-229, 26-230—26-243, 26-244—26-247, 26-261—26-263, pertained to Minimum Housing Standards

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-147. Policy and purpose.

The purpose of this code is to protect the health, safety and welfare of the public insofar as they are affected by the maintenance of structures and premises and any occupancy thereof. This code shall be construed to secure this express intent. Existing structures and premises that do not comply with these provisions shall be altered or repaired to provide the minimum level of health, safety and welfare required by this code.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-148. Scope.

The provisions of this code shall apply to all residential and nonresidential structures and all premises and shall constitute the minimum requirements and standards for premises, structures, accessory structures, equipment and facilities for light, ventilation space, heating, sanitation, protection from the elements, life safety, safety from hazards, and for safe and sanitary maintenance; the responsibility of owners, operators, and occupants; the occupancy of existing structures and premises; and for administration, enforcement and penalties thereto.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-149. Applicability.

(a) It shall be unlawful for any person, natural or juridical, to be in conflict with or in violation of any of the provisions of this code.

(b) Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with all other applicable codes. Nothing in this code shall be construed to cancel, modify, or set aside any provision of the New Orleans' Comprehensive Zoning Ordinance, as amended, or the Building Code of the City of New Orleans, as amended.

(c) Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall govern. Where differences occur between provisions of this code and another applicable code, the provisions of this code shall apply. Where, in a specific case, different sections of this code specify different requirements, the most restrictive shall govern. The provisions of this code shall not be deemed to nullify any provision of state or federal law.

(d) The provisions of this code shall not be construed to abolish or impair existing remedies relating to the removal or demolition of any building or structure which is dangerous, unsafe, and/or unsanitary.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 2. DEFINITIONS

Sec. 26-150. Definitions.

(a) The following terms shall, for the purposes of this code, have the meanings ascribed to them in this section.

(b) Terms not defined in this section but defined in the New Orleans' Comprehensive Zoning Ordinance, as amended, or the Building Code of the City of New Orleans, as amended, shall have the meanings ascribed to them in the zoning or building code.

(c) Where terms are not defined in this section or in the New Orleans' Comprehensive Zoning Ordinance, as amended, or the Building Code of the City of New Orleans, as amended, they shall have their ordinarily accepted meanings such as the context implies.

(d) Words are interchangeable insofar as words stated in the present tense include the future; words stated in the masculine gender include the feminine; the singular number includes the plural and the plural, the singular.

(e) Whenever the words "structure," "accessory structure," "building," or "dwelling unit" are stated in this code, they shall be construed as though they were followed by the words "or any part thereof."

Accessory structure. A structure that is incidental to that of the main structure. Examples include: garages, carports, sheds, laundry rooms, green houses, and tool rooms.

Abate. Repair, rehabilitate, vacate, demolish, or any other action provided by the administrative hearing officer to correct the condition(s) in violation of this code.

Administrative hearing officer. An administrative adjudication hearing officer acting pursuant to Chapter 6 of the Code of the City of New Orleans.

Anchored. Secured in a manner that provides positive connection.

Approved. Acceptable to the code official.

Bathroom. A room containing plumbing fixtures including a bathtub or shower.

Bedroom. Any room or space used or intended to be used for sleeping purposes.

Building. Any structure used or intended for supporting or sheltering any use or occupancy.

Code official. The director of the department of code enforcement, or his/her designee, who is charged with the administration and enforcement of this code, or their duly authorized representative.

Cover crops. Cultivated plants temporarily planted to slow erosion, improve soil health, enhance water availability, smother weeds, help control pests and diseases, and increase biodiversity. Cover crops shall not be considered weeds.

Debris removal. The taking away from a premises the scattered remains of rubble, wreckage, or something broken or destroyed.

Demolition. Tearing down, razing, and removal of all resulting debris and material.

Deteriorate. Weaken, disintegrate, corrode, rust, decay, or otherwise lose effectiveness.

Dwelling unit. A single unit providing complete, independent, living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

Equipment. Necessary items for a particular purpose.

Exterior property. The open space on the premises and/or property under the control of owners or operators of such premises.

Habitable space. Space in a structure for living, sleeping, eating or cooking. Bathrooms, toilet rooms, closets, halls, storage, or utility spaces, and similar areas are not considered habitable spaces.

Imminent danger. A condition which immediately threatens the health, safety, and welfare of an individual or the public.

Infestation. The presence, within or contiguous to, a structure or premises of insects, rats, vermin or other pests.

Inoperable motor vehicle. A vehicle which cannot be driven upon the public streets for reasons including but not limited to: being unlicensed, wrecked, abandoned, in a state of disrepair, or incapable of being moved under its own power.

Occupant. Any individual legally living or sleeping in a building, or having legal possession of a space within a building.

Occupy. To reside or have one's place of business within a structure.

Openable area. The part of a window, skylight or door which is available for unobstructed ventilation and which opens directly to the outdoors.

Operator. Any person who has charge, care or control of a structure or premises which is let or offered for occupancy.

Owner. Any natural or juridical person recorded in the official public record of the Parish as holding title to real property.

Premises. A lot, plot, or parcel of land, together with all or any part of any buildings or structures on the lot, plot, or parcel of land, considered as a unit devoted to a particular use, including accessory structures and open spaces required or used in connection with that particular use.

Stormwater management system. Any natural or manmade device, retention area, reservoir, apparatus or landscaping feature that retains storm water runoff within the boundary of a

property lot for the purpose of facilitating ground absorption, evaporation, or otherwise slowing or reducing runoff into the public domain.

Structure. That which is built or constructed.

Toilet room. A room containing a water closet or urinal but not a bathtub or shower.

Undeveloped land. A lot, plot, or parcel of vacant land that has never housed a structure.

Uninhabitable. Not fit for habitation.

Vacant structure. A structure that:

(1) Is without visible signs of continuous human habitation by persons legally entitled to be on the premises; and

(2) Is substantially devoid of functional contents pertaining to the operations or activities customary to occupancy; or

(3) Is unsecured, such that it is accessible without force to trespassers or other unauthorized persons.

Vacancy may be indicated by: the absence of utility usage, broken windows, broken doors, or collapsing or dilapidating features that pose a danger to the health or safety of surrounding residents or properties.

Any property that is capable of lawful occupancy and actively being marketed by its owner(s) for sale or rent shall not be deemed vacant.

Vacant land. A lot, plot, or parcel of land without a structure.

Ventilation. The natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

Workmanlike. Executed in a skilled manner and performed with the same degree of care, skill, and diligence as would be ordinarily exercised by a competent practitioner of the same profession performing similar work under the same or similar circumstances; suitable for its intended purpose and free from defects in workmanship or materials.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 28490, § 1, 9-3-20; M.C.S., Ord. No. 29758, § 1, 12-1-23; M.C.S., Ord. No. 30481, § 1, 10-9-25)

DIVISION 3. ADMINISTRATION

Sec. 26-151. Department of code enforcement.

The department of code enforcement shall be responsible for the administration and enforcement of this code and the director may delegate his or her authority as needed for the enforcement this code.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Sec. 26-152. Liability.

The code official and any employee charged with the enforcement of this code shall not be rendered personally liable for any damage that may occur to persons or property as a result of any act in the discharge of official duties. The code official or any employee thereof shall not be liable for costs in any action, suit or proceeding that is instituted in pursuance of the provisions of this code.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-153. General duties.

(a) The code official is hereby authorized and directed to enforce the provisions of this code. The code official shall have the authority to render interpretations of this code and to adopt policies and procedures, in conjunction with the chief administrative officer, in order to clarify the application of its provisions. Such interpretations, policies, and procedures shall be in compliance with the intent and purpose of this code. Such policies and procedures shall not have the effect of waiving requirements specifically provided for in this code. The code official and any designee(s) thereof charged with the enforcement of this code are authorized to make inspections and/or to administer and enforce the provisions of this code.

(b) Requirements not specifically covered by this code but necessary for the strength, stability or proper operation of an existing fixture, structure, or equipment, or for the public safety, health and general welfare, shall be determined by the code official.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-154. Inspections.

The code official shall make all of the required inspections, or may accept reports of inspection by approved individuals. All reports of such inspections shall be in writing and shall be certified by the person conducting the inspection. The code official is authorized to engage such expert opinion(s) as necessary to report upon technical issues that may arise.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-155. Right of entry.

(a) In the performance of his or her duties, the code official may enter any land, structure, or premises in the city to enforce this Code, at any reasonable time, as provided in this section.

(b) Prior to entering any land, structure, or premises to enforce this code, the code official must give notice of his or her intent to enter. Notice shall be in writing and provide the date and time at which the code official will be present to make the inspection, and inform the person notified that he or she may request to reschedule the inspection to another date and time by contacting the code official before the stated date.

(c) If the property is occupied, notice shall be provided by certified or registered mail to the occupant or the person with apparent right of possession, with a courtesy copy mailed to the owner at the owner's last known address as provided in the assessor's records, and conspicuously posted at or near the entrance to the structure or premises. If the property is vacant, the notice shall be mailed or delivered to the last known address of the owner as provided in the assessor's records.

(d) After notice has been given, if the person notified fails to arrange for, denies, or unduly delays the entry, the code official may request that the law department file in a court of competent jurisdiction a petition for right of entry to authorize entry for the inspection. The court of competent jurisdiction shall grant the petition upon determining that:

(1) The notice required by subparts (b) and (c) of this section have been given; and

(2) The petition establishes probable cause that an inspection will reveal violation(s) of this code.

(e) The petition for right of entry shall be verified by the code official and accompanied by a sworn and signed affidavit containing facts within the personal knowledge of the affiant that probable cause exists.

(f) Any inspection conducted pursuant to an order permitting right of entry shall be made within 15 calendar days of the date the order is issued, unless otherwise provided in the order. The order shall be void upon expiration of the inspection period.

(g) Neither an order nor prior notice is required in any of the following named circumstances:

(1) Entry is by permission of an owner or occupant upon the code official presenting credentials and requesting entry, or at the request of an owner or occupant of the land, structure, or premises or by a person with apparent right of possession;

(2) If the land, structure, or premises is vacant, visibly open and obviously accessible to members of the general public and violations of this code are in plain view;

(3) Immediately after an accident or disaster that causes the code official to believe that immediate entry is necessary for investigative purposes or to protect property or public health or safety.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 4. GENERAL REQUIREMENTS—VACANT AND OCCUPIED PREMISES

Sec. 26-156. Generally.

(a) The provisions of this division shall govern the minimum conditions and the responsibilities of persons for the maintenance of all premises, including structures and the exterior of property. The owner of a premises shall maintain the structures and exterior property in compliance with the requirements contained herein, except as otherwise provided for in this code.

(b) A person shall not occupy as an owner-occupant or permit another person to occupy premises which are not in a sanitary and safe condition and which do not comply with the requirements of this chapter.

(c) All vacant land, including undeveloped land, and all lots, plots, or parcels of land containing vacant structures shall be maintained in a clean, safe, secure and sanitary condition as provided in this division so as not to adversely affect the public health or safety.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 28490, § 1, 9-3-20)

Sec. 26-157. Exterior property area—Sanitation.

All exterior property and premises shall be maintained in a clean, safe and sanitary condition, free from any accumulation of trash, litter, debris, garbage, waste, rubbish or other similar material. Every occupant of a structure shall dispose of all rubbish in a clean and sanitary manner by placing such trash in approved container(s), as provided in Chapter 138 of the Code of the City of New Orleans.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-158. Same—Grading.

All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any structure located thereon. Drainage systems shall divert water away from the property and away from adjacent property lines. All drainage systems should discharge towards the public-right-of-way. Approved stormwater management systems shall be exempt from this section.

Sec. 26-159. Same—Sidewalks and driveways.

All sidewalks, walkways, driveways, parking spaces and similar areas shall be kept in a proper state of repair and maintained free from hazardous conditions, including but not limited to, deterioration, deformation, fractures, fissures, spalling, or detached, dislodged or failing connections.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-160. Same—Weeds and plant growth.

(a) Except as provided in subsection (b), all premises and exterior property, including vacant land, shall be maintained free from weeds or plant growth more than ten inches tall on the entirety of the lot, plot, or parcel. All noxious weeds shall be prohibited. Weeds shall be defined as all grasses, annual plants, and vegetation, other than trees or shrubs. Said term shall not include cultivated flowers, gardens, or cover crops.

(b) Undeveloped land shall be maintained free from weeds or plant growth more than ten inches tall within ten feet of any lot line and within 50 feet of any lot line adjoining a parcel of property containing an occupied structure. Weeds shall be defined as all grasses, annual plants, and vegetation, other than trees or shrubs. Said term shall not include cultivated flowers, gardens, or cover crops.

(c) Without limiting any other remedy for violation of this chapter, or Chapters 6 and 66 of the Code of the City of New Orleans, a hearing officer may authorize the city or its agents to enter upon any property found in violation of this section for the purpose of maintaining or removing illegal or excessive weeds and plant growth. The cost of such maintenance or removal shall be paid by the owner or agent responsible for the property.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 28490, § 1, 9-3-20; M.C.S., Ord. No. 28623, § 1, 3-11-21; M.C.S., Ord. No. 30481, § 1, 10-9-25)

Sec. 26-161. Same—Rodent harborage.

(a) All structures and exterior property shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by approved processes which will not be injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent re-infestation.

(b) The owner of any structure shall be responsible for pest elimination within the structure prior to renting or leasing the structure.

(c) The occupant of any structure shall be responsible for the continued rodent and pest-free condition of the structure, except when the infestations are caused by defects in the structure, and then the owner shall be responsible for pest elimination.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-162. Same—Exhaust vents.

Pipes, ducts, conductors, fans or blowers shall not discharge gases, steam, vapor, hot air, grease, smoke, odors or other gaseous or particulate wastes directly upon abutting or adjacent public or private property, as provided in the Mechanical Code of the City of New Orleans, as amended.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-163. Same—Accessory structures and fences.

All accessory structures, including detached garages, fences and walls, shall be maintained structurally sound and in good repair.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-164. Same—Motor vehicles.

Except as provided for in other regulations, no inoperative and/or unlicensed motor vehicle shall be parked, kept or stored on any premises, and no vehicle shall at any time be in a state of major disassembly, disrepair, or in the process of being stripped or dismantled. Painting of vehicles is prohibited.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-165. Same—Defacement of property.

No person shall willfully or wantonly damage, mutilate or deface any exterior surface of any structure or building on any private or public property by placing thereon any marking, carving, or graffiti. It shall be the responsibility of the owner to restore said surface to an approved state of maintenance and repair.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-166. Same—Swimming pools, spas, and hot tubs.

All swimming pools, spas, and hot tubs shall be maintained in a clean and sanitary condition and in good repair with a functioning filtration system. Private swimming pools, hot tubs and spas shall be completely surrounded by a fence or barrier at least six feet in height above the finished ground level, measured on the side of the fence or barrier which faces away from the pool. Access gates mush be self-closing and self-latching.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-167. Exterior structure—Protective treatment.

(a) All exterior surfaces, including but not limited to: doors, door and window frames, cornices, porches, trim, balconies, decks, and fences, shall be maintained in good condition.

(b) Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Substantial peeling, flaking and chipped paint shall be eliminated and surfaces repainted.

(c) All siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors and skylights, shall be maintained weather resistant and water tight.

(d) All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion, and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Surfaces designed for stabilization by oxidation are exempt from this requirement.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-168. Same—Premises identification.

Buildings shall have approved address numbers placed in a position to be plainly legible and visible from the street or road fronting the property. These numbers shall contrast with their background. Address numbers shall be

Arabic numerals or alphabetic letters. Numbers shall be a minimum of four inches in height with a minimum width of .5 inches.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-169. Same—Structural members.

All structural members shall be maintained free from deterioration and shall be capable of safely supporting the imposed dead and live loads of the structure's legal use and occupancy.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-170. Same—Foundation walls.

All foundation walls must be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-171. Same—Exterior walls.

Exterior walls must be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface coated where required to prevent deterioration.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-172. Same—Roofs.

The roof and flashing shall be sound, tight and not have defects that admit rain. Roofs must be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters and downspouts must be maintained in good repair and free from obstructions. Roof water shall not be discharged in a manner that it falls onto adjacent property. Roof tiles, shingles, and any other attachments shall be properly attached and kept in good condition.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-173. Same—Drainage.

Drainage from roofs, paved areas, yards, courtyards, and other open areas shall not pool to permit stagnant water likely to afford a breeding place for mosquitoes or to become contaminated or polluted in such a manner as to injure the public health or create offensive conditions. Drainage systems shall divert water away from the property and away from adjacent property lines. All drainage systems should discharge towards the public-right-of-way. Approved stormwater management systems shall be exempt from this section.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-174. Same—Decorative features.

All cornices, belt courses, corbels, terra cotta trim, wall facings and similar decorative features shall be maintained in good repair with proper anchorage and in a safe condition.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-175. Same—Overhang extensions.

All overhang extensions including but not limited to canopies, marquees, signs, metal awnings, fire escapes, standpipes and exhaust ducts shall be maintained in good repair and be properly anchored so as to be kept in a sound condition. When required, all exposed surfaces or metal or wood shall be protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-176. Same—Stairways, decks, porches and balconies.

Every exterior stairway, deck, porch, balcony and gallery, and all appurtenances attached thereto, shall be maintained structurally sound, safe and in good repair, with proper anchorage and capable of supporting the imposed loads.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-177. Same—Chimneys and towers.

All chimneys, cooling towers, smoke stacks, and similar appurtenances shall be maintained structurally safe and sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-178. Same—Handrails and guardrails.

All handrails and guardrails shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-179. Same—Window, skylight, door frames.

Every window, skylight, door and frame shall be kept in sound condition, good repair and weather tight. All glazing materials shall be maintained free from substantial cracks and holes. Every window, other than fixed windows, shall be operable and capable of being held in position by window hardware.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-180. Same—Insect screens.

All existing insect screens shall be intact, free from holes or breaks, and tightly fitted.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-181. Same—Doors.

All exterior doors, door assemblies and hardware shall be maintained in good condition and all exterior doors shall lock tightly to secure the door.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-182. Same—Gates.

All exterior gates, gate assemblies, and hardware shall be maintained in good condition. Latches at all entrances shall tightly secure the gates.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-183. Interior structure—Structural members.

All structural members shall be maintained structurally sound, and capable of supporting the imposed loads of the structure's legal use and occupancy.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-184. Same—Interior surfaces.

All interior surfaces shall be maintained in a good, clean and sanitary condition. Peeling, chipping, flaking or abraded paint shall be repaired, removed or covered. Cracks or loose plaster, decayed wood and other defective surface conditions shall be corrected. Holes in interior walls shall be sealed as necessary.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-185. Same—Stairs and walking surfaces.

Every stair and walking surface shall be maintained in a sound condition and good repair.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-186. Same—Handrails.

Every handrail shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-187. Same—Interior doors.

Every interior door shall fit reasonably well within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers or tracks as intended by the manufacturer.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 5. LIGHT, VENTILATION AND OCCUPANCY LIMITATIONS—OCCUPIED PREMISES

Sec. 26-188. Generally.

(a) The provisions of this division shall govern the minimum conditions and standards for light, ventilation and space for occupying a structure. The owner of the structure shall provide and maintain light, ventilation and space conditions in compliance with the requirements contained herein.

(b) A person shall not occupy as an owner-occupant or permit another person to occupy any premises that does not comply with the requirements of this division.

(c) Artificial light or mechanical ventilation complying with the Building Code of the City of New Orleans, as amended, shall be permitted in lieu of the means for natural light and ventilation herein prescribed.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-189. Light in habitable spaces.

(a) Every habitable space shall have at least one window facing directly to the outdoors or to a courtyard. The minimum total glazed area for every habitable space shall be eight percent of the floor area of such room. Wherever walls or portions of a structure face a window of any room and obstructions are located less than three feet from the window and extend to a level above the ceiling of the room, the window shall not be deemed to face directly to the outdoors nor to a courtyard and shall not be included in the calculation of aggregate glazed area.

(b) Natural light for rooms or spaces without exterior glazing areas may be provided through an adjoining room if the unobstructed opening to the adjoining room is eight percent of the floor area of the interior room or space, but at a minimum of 25 square feet. The exterior glazing area shall be based on the total floor area being served.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-190. Light in stairway and hallway.

Every common hall and stairway in residential occupancies, other than in one and two family dwellings, shall be lighted at all times with at least a 60-watt standard incandescent light bulb for each 200 square feet of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than 30 feet. In other than residential occupancies, means of egress, including exterior means of egress, stairways shall be illuminated at all times the building space served by the means of egress is occupied, and illumination shall remain in the event of a power outage.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-191. Light in other spaces.

All other spaces shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions, and the safe occupancy of the space and utilization of appliances, equipment and fixtures.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-192. Ventilation in habitable spaces.

(a) Every habitable space shall have at least one openable window to provide natural ventilation. The total openable area of the window in every room shall be equal to at least 45 percent of the minimum glazed area required in section 26-189.

(b) When rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but at a minimum of 25 square feet. The ventilation openings to the outdoors shall be based on the total floor area being ventilated.

(c) A window need not be openable when a mechanical ventilation system is provided and is capable of providing one cubic foot of fresh air per one square foot of floor area for the room being ventilated.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-193. Ventilation of bathrooms and toilet rooms.

Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces as provided in section 26-192, except that a window shall not be required in a bathroom or toilet room with a mechanical ventilation system. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be recirculated.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-194. Process ventilation.

Where injurious, toxic, irritating or noxious fumes, gases, dusts or mists are generated, a local exhaust ventilation system shall be provided

to remove the contaminating agent at the source. Air shall be exhausted to the exterior and not be recirculated to any space.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-195. Minimum room width.

A habitable room, other than a kitchen, shall not be less than seven feet in any horizontal dimension.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-196. Minimum ceiling height.

(a) Habitable spaces, hallways, corridors, laundry areas, bathrooms and toilet rooms shall have a minimum ceiling height of seven feet. The required height is measured from the finished floor to the lowest projection from the ceiling.

(b) Exceptions:

(1) In one- and two-family dwellings, beams and girders spaced a minimum of four feet on center and projecting a maximum of six inches below the required ceiling height.

(2) Rooms occupied exclusively for sleeping, study or similar purposes and having a sloped ceiling over all or part of the room, with a minimum clear ceiling height of seven feet over a minimum of one-third of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a minimum clear ceiling height of five feet shall be included.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-197. Bedroom and living room requirements.

Every bedroom and living room shall comply with the following requirements:

(1) Every living room shall contain at least 120 square feet and every bedroom shall contain a minimum of 70 square feet, and every bedroom occupied by more than one person shall contain a minimum of 50 square feet of floor area for each occupant thereof.

(2) Bedrooms shall comply with the applicable provisions of this code including, but not limited to, the light, ventilation, room area, ceiling height and room width requirements of this article.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-198. Prohibited occupancy.

Kitchens and non-habitable spaces shall not be used for sleeping purposes.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-199. Overcrowding.

(a) Dwelling units shall not be occupied by more occupants than permitted by the minimum area requirements established in the table below:

Space	*1—2 occupants*	*3—5 occupants*	*6 or more occupants*
Living room	120	120	150
Dining room	No requirement	80	100
Bedrooms	Comply with section 26-197		

(b) The minimum occupancy area required by the table in subpart (a) of this section shall not be included as a sleeping area in determining the minimum occupancy area for sleeping purposes. All sleeping areas shall comply with section 26-197.

(c) Combined living room and dining room spaces shall comply with the requirements of the table in subpart (a) of this section if the total area is equal to that required for separate rooms and if the space is located so as to function as a combination living room/dining room.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-200. Efficiency units.

Nothing in this article shall prohibit an efficiency living unit from meeting the following requirements:

(a) A unit occupied by not more than one occupant shall have a minimum clear floor area of 120 square feet. A unit

occupied by not more than two occupants shall have a minimum clear floor area of 220 square feet. A unit occupied by three occupants shall have a minimum clear floor area of 320 square feet. The required areas shall be exclusive of the areas required by subparts (b) and (c).

(b) The unit shall be provided with a kitchen sink, cooking appliance and refrigeration facilities, each having a minimum clear working space of 30 inches in front. Light and ventilation conforming to this code shall be provided.

(c) The unit shall be provided with a separate bathroom containing a water closet, lavatory and bathtub or shower.

(d) The maximum number of occupants shall be three.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 6. PLUMBING AND FIXTURE REQUIREMENTS—OCCUPIED PREMISES

Sec. 26-201. Generally.

(a) The provisions of this division shall govern the minimum plumbing systems, facilities and plumbing fixtures for occupying a structure. The owner of the structure shall provide and maintain such plumbing facilities and plumbing fixtures in compliance with the requirements contained herein.

(b) A person shall not occupy as an owner-occupant or permit another person to occupy any premises that does not comply with the requirements of this division.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-202. Required facilities.

Every dwelling unit shall contain a bathtub or shower, lavatory, a flush-type water closet and a kitchen sink which shall be maintained in a sanitary and good working condition. The lavatory shall be placed in the same room as the water closet or located in close proximity to the door leading directly into the room in which the water closet is located. A kitchen sink shall not be used as a substitute for the required lavatory.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-203. Privacy.

Toilet rooms and bathrooms shall be arranged to afford privacy and shall not constitute the only passageway to a hall or other space, or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-204. Reserved.

Editor's note—M.C.S., Ord. No. 25552, § 1, adopted Oct. 24, 2013, repealed § 26-204, which pertained to floor surface and derived from M.C.S., Ord. No. 25454, § 1, adopted August 22, 2013.

Sec. 26-205. Plumbing fixtures.

All plumbing fixtures shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks, and defects and be capable of performing the function for which the plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-206. Fixture clearances.

Plumbing fixtures shall have adequate clearances for usage and cleaning.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-207. Plumbing system hazard.

When a plumbing system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, inadequate venting, cross connection, backsiphonage, improper installation, deterioration, or damage or for similar reasons, and the hazard poses an imminent danger to its occupants, the code official shall order correction of the defects to eliminate the hazard and may order the premises to be vacated until the defects are corrected.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-208. Water system.

Every sink lavatory, bathtub or shower, water closet or other plumbing fixture shall be properly connected to the public water system. All kitchen sinks, lavatories, laundry facilities, bathtubs and showers shall be supplied with hot and cold running water.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-209. Contamination.

The water supply shall be maintained free from contamination, and all water inlets for plumbing fixtures shall be located above the flood level rim of the fixture.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-210. Supply.

The water supply system shall be installed and maintained to provide a supply of water to plumbing fixtures in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-211. Water heater.

Water heating facilities shall be properly installed and maintained in compliance with the applicable building regulations of the City of New Orleans, and capable of providing an adequate amount of water to be drawn at every required sink, lavatory, bathtub, shower and laundry facility at a minimum temperature of 110 degrees Fahrenheit. A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom or other occupied room normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure-relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-212. Sanitary drainage.

All plumbing fixtures shall be properly connected to the public sewer system or to an approved private system if the public system is not available.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-213. Maintenance.

Every plumbing stack, vent, waste and sewer line shall function properly and be kept free from obstructions, leaks and defects.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 7. MECHANICAL AND ELECTRICAL REQUIREMENTS—OCCUPIED PREMISES

Sec. 26-214. Generally.

(a) The provisions of this division shall govern the minimum mechanical and electrical facilities and equipment for occupying a structure. The owner of the structure shall provide and maintain such mechanical and electrical facilities and equipment in compliance with the requirements contained herein.

(b) A person shall not occupy as an owner-occupant or permit another person to occupy any premises that does not comply with the requirements of this division.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-215. Heating facilities.

Every dwelling unit shall be provided with heating facilities capable of maintaining a minimum room temperature of 68 degrees Fahrenheit in all habitable rooms, bathrooms and toilet rooms. Cooking appliances shall not be used to provide space heating to meet the requirements of this section.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-216. Room temperature measurement.

The required room temperature shall be measured three feet above the floor near the center of the room and two feet inward from the center of each exterior wall.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-217. Mechanical appliances.

All mechanical appliances, fireplaces, solid-fuel-burning appliances and cooking appliances shall be properly installed and maintained in a safe working condition, and shall be capable of performing the intended function.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-218. Removal of combustion products.

All fuel-burning equipment and appliances shall be connected to an approved chimney or vent. Combustible and flammable items shall not be stored in the same area as fuel burning equipment or appliances.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-219. Clearances.

All required clearances to combustible materials shall be maintained.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-220. Safety controls.

All safety controls for fuel-burning equipment shall be maintained in effective operation.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-221. Combustion air.

A supply of air for complete combustion of the fuel and for ventilation of the space containing the fuel-burning equipment shall be provided for the fuel-burning equipment.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-222. Electrical facilities.

An occupied building shall be provided with an electrical system.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-223. Service.

The size and usage of appliances and equipment shall serve as a basis for determining the need for additional facilities in accordance with NFPA 70, or as subsequently amended. Dwelling units shall be served by a three-wire, 120/240 volt, single-phase electrical service having a rating of not less than 60 amperes.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-224. Electrical system hazards.

Where it is found that the electrical system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration or damage, or for similar reasons, and the hazard poses an imminent danger to its occupants, the code official shall order correction of the defects to eliminate the hazard and may order the premises to be vacated until the defects are corrected.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-225. Installation.

All electrical equipment, wiring and appliances shall be properly installed and maintained in a safe and approved manner.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-226. Receptacles.

Every habitable space in a dwelling shall contain at least two separate and remote receptacle outlets. Every laundry area shall contain at least one grounded-type receptacle or a receptacle with a ground fault circuit interrupter. Every bathroom shall contain at least one receptacle. Any new bathroom receptacle outlet shall have ground fault circuit interrupter protection. All receptacle outlets shall have the appropriate faceplate cover for the location.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-227. Lighting fixtures.

Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room and other similar rooms shall contain at least one lighting fixture.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-228. Wiring.

Flexible cords shall not be used for permanent wiring, or for running through doors, windows, or cabinets, or concealed within walls, floors, or ceilings.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-229. Duct systems.

Duct systems shall be maintained free of obstructions and shall be capable of performing the required function.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-230. Fire and carbon monoxide protection systems.

(a) All systems, devices, and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination thereof shall be maintained in an operable condition at all times in accordance with the Fire Code of the City of New Orleans, as amended. All dwelling units shall have an operable fire detection system and alarm. Such system may be hard wired or battery operated using a ten-year, sealed lithium battery. The code official or duly authorized representative may test the system and alarm to determine if it is functioning and operable.

(b) All systems, devices, and equipment to detect the presence of carbon monoxide and actuate an alarm shall be maintained in an operable condition at all times in accordance with the Fire Code of the City of New Orleans, as amended. All dwelling units shall have an operable carbon monoxide detector with a long-life sealed battery. The code official or duly authorized representative may test the system and alarm to determine if it is functioning and operable.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 30078, § 1, 10-10-24)

DIVISION 8. PROCEDURE AND SPECIFIC DETERMINATIONS

Sec. 26-231. Procedure.

Whenever the code official determines that violation(s) of this code exists or has grounds to believe that violation(s) have occurred - notice, hearing, appeal and all procedures and remedies thereto, including the collection of resultant debts and liens, shall be as provided in Chapter 6, Article II of the Code of the City of New Orleans.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-232. Penalties.

A penalty may be imposed for each noticed violation existing on, in or upon each individual housing unit. The penalty for each noticed violation shall not exceed the maximum provided in section 6-37. Each day that a violation continues after due notice has been served shall be deemed a separate offense.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 29189, § 2, 10-6-22)

Sec. 26-233. Specific determination—Order to vacate.

When an occupied premises is found by the hearing officer to be unsafe, unfit for human occupancy, and/or unlawful, an order to vacate shall be issued.

(1) A premises is unsafe if it is found to be dangerous to the life, health, property or safety of the public or to any occupants therein because the premises is damaged, decayed, dilapidated, structurally unsafe, of faulty construction and/or unstable.

(2) A premises is unfit for human occupancy when the premises is in disrepair, is unsanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment as required by this code.

(3) A premises is unlawful when its residential use is occupied by more persons than permitted under this code.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-234. Order to vacate—Contents.

At the hearing, if, in the opinion of the hearing officer the facts justify it, a premises is unsafe, unfit, and/or unlawful, an order to vacate shall be issued ordering that the premises be abated within a certain delay. The order shall provide the specific violations of this code that justify the finding that the premise is unsafe, unfit and/or unlawful. All occupants shall vacate within five days of the issuance of an order on the record at the hearing. The premises shall remain vacated until the code official determines that the violations creating the unsafe, unfit and/or unlawful premises have been abated. Upon this determination, the code official shall issue a letter of re-occupancy to the owner, and at that time the posting of the order to vacate, as provided in section 26-235, may be removed.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-235. Order to vacate—Posting.

Upon a premises being determined to be unsafe, unfit, and/or unlawful by a hearing officer, the premises shall be placarded bearing notice of the order to vacate within 48 hours of said determination. The notice shall be signed by the code official, provide the date of the determination, and advise the public that the premises or structure has been deemed unsafe, unfit, and/or unlawful and that the public is warned to keep away. The order shall be posted on the door of the premises and shall provide the date and time by which all occupants shall vacate.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-236. Specific determination—Blight and public nuisance.

A hearing officer may declare any premise a blight and public nuisance if either subsection (a) or (b) of this section is met.

(a) Any commercial or residential premises that is uninhabitable and hazardous because its physical condition constitutes a threat to public health and safety, and any structure thereon that lacks the facilities and equipment required by this code, may be declared a blight and public nuisance by a hearing officer. Any land that is uninhabitable and hazardous because its physical condition constitutes a threat to public health and safety may be declared a blight and public nuisance by a hearing officer.

(b) Any vacant structure that is not an accessory structure located on a residential or commercial premises may be declared a blight and public nuisance by a hearing officer based on the following factors:

(1) The vacant structure is in a condition not immediately fit for the use or occupancy of a structure of its type;

(2) The vacant structure has not had electrical service, water service, sewer service, or other utilities customarily required to make a structure of its type fit for use or occupancy during the preceding six months; or

(3) Construction reasonably calculated to permit the use or occupancy of the vacant structure has not occurred during the preceding six months, as evidenced by the absence of an open construction permit or such other evidence as the city may reasonably provide.

(c) An owner or occupant cited pursuant to subsection (b) may avoid a declaration of blight and public nuisance for a vacant structure by promptly undertaking and diligently completing the work necessary to permit occupancy or use of the vacant structure. Such efforts shall be evidenced by a written contract with a licensed contractor dated not less than 45 days before the hearing and containing a scope of work reasonably calculated to further the use or occupancy of the vacant structure. In such an event, continuance hearings before the hearing officer shall

be held every 90 days until the renovation of the vacant structure is complete and is again fit for use or occupancy. The owner or occupant shall be limited to not more than four continuances. In the event the owner or occupant fails to bring the vacant structure into compliance by the end of the expiration of the fourth continuance, the hearing officer may order the vacant structure declared a blight and public nuisance. If the owner or occupant fails during any continuance hearing to demonstrate ongoing good-faith efforts to bring the vacant structure into compliance, the hearing officer may order the vacant structure declared a blight and public nuisance.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 29391, § 1, 4-6-23)

Sec. 26-237. Declaration or certification of blight or public nuisance; expropriation authorization—Unoccupied property.

(a) Upon recommendation by the code official, at or following an administrative hearing conducted pursuant to Chapter 6 of this Code, the hearing officer, upon finding that any vacant or unoccupied immovable property or any component parts thereof is in an uninhabitable and hazardous condition as provided in section 26-236, or otherwise constitutes a blight or public nuisance pursuant to applicable state law, may enter an order declaring or certifying the property to be blighted or a public nuisance and may authorize the expropriation thereof. The order shall identify the specific violations of this code that justify the finding.

(b) If the city demolishes any uninhabitable and hazardous structure located on a premises, the blight and public nuisance order shall not be deemed satisfied.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 30471, § 1, 9-25-25)

Sec. 26-237.1. Declaration or certification of blight or public nuisance—Occupied property.

(a) Upon recommendation by the code official, at or following an administrative hearing conducted pursuant to this code, the hearing officer may declare or certify any occupied immovable property to be blighted or a public nuisance when the property contains any garage, shed, barn, house, building, apartment, or structure, that by reason of the condition in which it is permitted to remain, may endanger the health, life, limb, or property of any person, or cause any hurt, harm, damages, injury, or loss to any person and manifests any one or more of the following conditions:

(1) The property is dilapidated, decayed, unsafe, or unsanitary, is detrimental to health, morals, safety, public welfare, and the well-being of the community, endangers life or property, or is conducive to ill health, delinquency, and crime.

(2) The property is a fire hazard.

(3) The conditions present on the property and its surrounding grounds are not reasonably or adequately maintained, thereby causing deterioration and creating a blighting influence or condition on nearby properties and thereby depreciating the value, use, and enjoyment to such an extent that it is harmful to the public health, welfare, morals, safety, and the economic stability of the area, community, or neighborhood in which such public nuisance is located.

(b) A certification or declaration issued pursuant to this section shall identify the specific violations of this Code that justify the finding, as well as the provisions of this section pursuant to which the certification or declaration is being made.

(M.C.S., Ord. No. 30471, § 2, 9-25-25)

DIVISION 9. ABATEMENT

Sec. 26-238. Abatement.

An owner shall abate or cause a premise to be abated in accordance with the hearing officer's order. If the owner fails to abate within the time prescribed by the hearing officer, the code official may cause the premises to be abated without further notice or hearing(s), and the costs of abatement shall be charged against the premises

and shall be a lien upon such property. A certified copy of the statement of costs reflecting the amount of such charges shall be filed with the recorder of mortgages, which shall operate as a lien and privilege in favor of the city against the property.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-239. Abatement manner.

(a) A hearing officer shall order any and all necessary and lawful measures to correct or abate violation(s), including but not limited to: repairing the premises to comply with this code, securing the premises from entry by others, and demolition of any unsafe buildings or structures upon a premises. The correction, repair, or alteration of any violation(s) shall be completed within the stipulated period of time provided in the hearing officer's order.

(b) Any repairs, maintenance work, alterations or installations which are caused directly or indirectly by the enforcement of this code shall be executed and installed in a workmanlike manner and if applicable, installed in accordance with the manufacturer's instructions.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

Sec. 26-240. Abatement by demolition.

If otherwise permitted by law, and if, in the opinion of the hearing officer, the facts justify that a building or structure is unsafe, or by reason of its nature of condition endangers the public health, welfare or safety, it shall be ordered to be abated by demolition. Within 90 days of the demolition order's issuance, the owner of the property shall file the demolition order in the Land Records Division of the Clerk of Civil District Court. If the property owner to whom the demolition order is issued fails to comply with the 90-day deadline, then the department of code enforcement shall file the demolition order in the Land Records Division of the Clerk of Civil District Court and the fees and costs of the filing shall also be subject to the property lien. The order shall provide the specific violations of this code that justify abatement by demolition, and the following additional provisions shall apply:

(a) If the owner of the building or structure fails or refuses to abate each violation

specified in the demolition order within the abatement period included the order, and fails to appeal therefrom within the legal delays provided herein, the city may proceed with the demolition or removal of the building or structure, in which case neither the city, any employee of the city, nor any person acting on behalf of the city shall be liable for damages.

(b) Notwithstanding the foregoing, the city shall demolish or remove at the earliest opportunity, following notice to the owner as required herein, the buildings or structures which meet the following conditions:

(1) A demolition order has been in place for more than two years;

(2) The code violations identified in the demolition order have not been fully abated; and

(3) The building or structure is uninhabited.

(c) Prior to the demolition, the city shall serve notice upon the owner via certified or registered U.S. Mail informing the owner that their abatement period as provided in the order has expired, and their failure to comply with the administrative order is causing the city to take action at the owner's expense. Notice shall also be attached to a door or entrance of the building or structure 48 hours prior to a demolition authorized by this section. Any deficiency in the content of or in the manner of delivery of the notice required by this subsection shall not serve as grounds to appeal, overturn or delay an order of demolition. Further, neither requirement of the city in this subsection shall afford an owner of a property for which the appeal period for a demolition order has expired an additional right to appeal so as to stop or delay the ordered demolition.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 29758, § 1, 12-1-23; M.C.S., Ord. No. 29821, § 1, 3-7-24)

Sec. 26-241. Abatement by boarding.

If abatement is ordered by boarding a structure to secure the premises from entry by others, the following additional provisions shall apply.

(a) All windows and doors shall be boarded as provided herein to be water tight and prevent entry by unauthorized persons.

(b) Boarding shall be painted to correspond to the color of the existing structure unless otherwise approved by the code official.

(c) All waste, rubbish, and debris shall be removed from the interior of the structure prior to boarding.

(d) Wood boarding shall not remain for more than six months, unless approved by the code official, and the following factors shall be considered by the code official prior to granting approval:

(1) The age of the structure,

(2) The architectural significance of the structure,

(3) The historic significance of the structure, and

(4) The integrity of the boarding materials.

(e) Boarding materials shall be as follows:

(1) Boarding sheet material shall be a minimum of ½ thick wood structural panels complying with the Building Code of the City of New Orleans, as amended, and/or any other material(s) approved by the code official.

(2) Boarding framing material shall be minimum nominal 2-inch by 4-inch solid sawn lumber complying with the Building Code of the City of New Orleans, as amended, and/or any other material(s) approved by the code official.

(3) Boarding fasteners shall be minimum ⅜-inch diameter carriage bolts of such a length as required to penetrate the assembly and as required to adequately attach the

washers and nuts. Washer and nuts shall comply with the Building Code of the City of New Orleans, as amended, and/or any other material(s) approved by the code official.

(f) Boarding installation shall be in accordance with the following provisions, and/or by any other means approved by the code official.

(1) The boarding sheet material shall be cut to fit the door or window opening neatly or shall be cut to provide an equal overlap at the perimeter of the door or window.

(2) Windows shall be opened to allow the carriage bolt to pass through or the window sash shall be removed and stored. The 2-inch by 4-inch strong back framing material shall be cut a minimum two inches wider than the window opening and shall be placed on the inside of the window opening six inches minimum above the bottom and below the top of the window opening. The framing and boarding shall be pre-drilled. The assembly shall be aligned and the bolts, washers and nuts shall be installed and secured.

(3) The door opening shall be framed with a minimum 2-inch by 4-inch framing material secured at the entire perimeter and vertical members at a maximum of 24 inches on center. Blocking shall also be secured at a maximum of 48 inches on center vertically. Boarding sheet material shall be secured with screws and nails alternating every six inches on center.

(4) Doors shall be secured by the same method as for windows or door openings. One door to the structure shall be available for authorized entry and shall be secured and locked in an approved manner.

(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13)

DIVISION 10. EMERGENCY PROCEDURES

Sec. 26-242. Emergency procedures.

(a) In any emergency where life, health, property or public safety is in imminent danger, the code official may take any necessary action(s) to protect the endangered life, health, property or public safety without complying with the notice and hearing provisions of Chapter 6, Article II, of the Code of the City of New Orleans and of this Code.

(b) An imminent danger to life, health, property or public safety exists whenever there is a substantial likelihood that loss of life, health, property or public safety will occur prior to fully complying with the notice and hearing provisions provided in Chapter 6, Article II, of the Code of the City of New Orleans and of this Code.

An imminent danger to life, health, property or public safety exists whenever there is an extreme accumulation of household hazardous waste, including but not limited to paints, cleaners, oils, batteries, gasoline, and pesticides, or other leftover household products that can catch fire, react, or explode under certain circumstances, or that are corrosive or toxic.

(c) If a determination is made that an emergency exists, when practical, the code official shall immediately cause a notice of such determination to be posted conspicuously on the structure or at the entrance of the premises. The notice shall state the emergency that exists, that imminent action(s) may be taken to ameliorate the dangerous or unsafe condition(s) that created the emergency, and that these actions will be taken without further notice or a hearing. The notice shall include the name and contact information of the code official.

(d) In all emergencies the code official must cause the dangerous or unsafe condition(s) that created the emergency to be photographed before any work or operation is begun to eliminate the dangerous or unsafe condition.

(e) Any determination that an emergency demolition is necessary to protect endangered life, health, property or public safety, shall be made by the director of the department of safety and permits.

(f) Upon any determination that a health emergency exists that may cause the introduction, spread or transfer of any infectious or communicable disease, or that implicates any noxious element that is physically harmful to the health of individual(s), the director of the department of health shall be notified.

(g) When necessary for the public safety, the code official may temporarily close adjacent structures in conjunction with the director of public works, and close adjacent sidewalks, streets, and other public ways and prohibit them from being used.

(h) Any pool that fails to comply with the fencing or filtration requirements provided in sections 26-166 or 26-448, shall be deemed to be an emergency to the health, safety and welfare of the public, permitting immediate remediation of the pool to prevent injury. Any authorized city enforcement entity has the authority to cause improperly secured or stagnant pools to be immediately filled. The city, or persons acting under its authority shall, at any reasonable time after eight days have passed following the posting of notice in accordance with paragraph (c) above, enter upon the premises or lot to immediately fill-in any pool found to be in noncompliance with these requirements.

(i) Liability for expenses incurred in the course of performing emergency work and the procedure for collecting resultant debts and liens are as provided in Chapter 6, Article II, of the Code of the City of New Orleans.
(M.C.S., Ord. No. 25454, § 1, 8-22-13, eff. 9-1-13; M.C.S., Ord. No. 27901, § 1, 10-18-18; M.C.S., Ord. No. 28210, § 1, 10-3-19; M.C.S., Ord. No. 29189, § 2, 10-6-22)

DIVISION 11. FEES

Sec. 26-243. Administrative fees.

The department of code enforcement shall charge for any lien waiver application made pursuant to department of code enforcement policy, a nonrefundable processing fee of $250.00.
(M.C.S., Ord. No. 25774, § 1, 4-10-14; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Secs. 26-244—26-375. Reserved.

ARTICLE V. MINIMUM STANDARDS FOR CERTAIN OTHER OCCUPANCIES

DIVISION 1. GENERALLY

Secs. 26-376—26-400. Reserved.

DIVISION 2. ROOMINGHOUSES AND BOARDINGHOUSES*

Sec. 26-401. Establishment of standards.

(a) The standards enumerated in divisions 4 and 5 of article IV of this chapter are hereby declared to be the minimum standards for lodginghouses or roominghouses and for boardinghouses and the rooms and units therein used, or intended to be used, for human occupancy or habitation. Every such house, room and unit shall comply with the standards hereinafter prescribed and referred to. These standards shall constitute a basis for the enforcement of this article.

(b) Every roominghouse, boardinghouse, and lodginghouse and the units and rooms therein, shall comply with the minimum standards set forth and as adopted by reference in this division.
(Code 1956, §§ 30-44, 30-45)

Sec. 26-402. Sanitary facilities.

(a) In roominghouses and boardinghouses, one bathroom shall be provided for each three sleeping rooms.

(b) In dwellings which are composed of not more than two roominghouse or boardinghouse rooms and a dwelling unit, only one bathroom need be provided.

*__Cross references—__Hotels and motels, § 30-771 et seq.; roominghouses, boardinghouses and lodginghouses, § 30-1321 et seq.

(c) Each bathroom shall be provided with a flush-type water closet, a lavatory and a bathtub or shower in good working condition. Each bathroom shall be arranged so as to afford privacy to the users thereof.

(d) Access to bathrooms shall not be through habitable rooms. Bathrooms shall be located within the residence building served and shall be located not more than one story away from any of the persons using such rooms.
(Code 1956, § 30-46)

Sec. 26-403. Screen doors.

Each entrance door to a room or unit in a roominghouse or boardinghouse shall be equipped with a self-closing device or a screen door equipped with a self-closing device.
(Code 1956, § 30-47)

DIVISION 3. STANDARDS FOR BUILDING FACADES WITHIN THE DOWNTOWN DEVELOPMENT DISTRICT*

Sec. 26-404. Applicability.

The provisions of this division shall apply to all buildings and structures located within the downtown development district ("DDD"), as defined in section 146-193 of the Code of the City of New Orleans.
(Ord. No. 22,663, § 1, 7-7-07)

Sec. 26-405. Facade requirements.

(a) Installations of public telephone booths on building facades are prohibited.

(b) Facade improvements, including billboards, which cover over and/or hide the existing windows of a building are prohibited.

(c) Broken and/or cracked window panes must be replaced with window glass.

(d) Painted-over, taped and/or boarded-up windows are prohibited.

(e) Opaque roll-down doors and/or gates are prohibited.

(f) Signage on the facade is limited to the legal name of the business operating therein. The size of any sign is controlled by the provisions of the Comprehensive Zoning Ordinance and, where applicable, the regulations of the central business district historic district landmarks commission ("CBDHDLC").

(g) Changes to the facades of buildings located within a historic district require review and approval by the CBDHDLC.
(M.C.S., Ord. no. 22,663, § 1, 7-7-07)

Sec. 26-406. Enforcement.

The downtown development district and/or any interested party shall inform the department of code enforcement of violations for investigation and enforcement action for noncompliance with the provisions of section 26-405. The DDD and/or any interested party shall also inform the CBDHDLC of noncompliance within any historic district. Violations shall be brought by the department of code enforcement to the administrative adjudication hearing officer for hearing and decision in accordance with the provisions of Chapter 6 of the Code of the City of New Orleans.
(M.C.S., Ord. No. 22,663, § 1, 7-7-07; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Secs. 26-407—26-409. Reserved.

DIVISION 4. STANDARDS FOR MOBILE HEALTH CLINICS

Sec. 26-410. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Mobile health clinic: A wheeled vehicle outfitted as mobile. This unit will be stationary and only moved during emergency preparedness; i.e.,

*__Editor's note__—M.C.S., Ord. No. 22,663, § 1, adopted July 7, 2007, amended div. 3 in its entirety and enacted the provisions set out herein. The former div. 3, titled Property Standards for Buildings Facing Canal Street Between the Mississippi River and Claiborne Avenue derived from M.C.S., Ord. No. 19,006, § 1, adopted Dec. 1, 1998.

hurricanes, etc. Health care facility that is licensed by the State Department of Health and Hospitals and the Joint Commission, which provides primary care and preventive health care services on a temporary basis. Depending on the length of stay, the facility may be connected to city sewer, water and electricity.

Primary care services: Routine health care services on a comprehensive and continual basis as the first point of health care consultation. A patient will be referred to a specialist when the need exceeds the providers' scope of services.

Preventive health care services: Measures taken to promote health and prevent diseases including, but not limited to: screening, education, and immunizations and to reduce risk factors and health problems that contribute to early preventable deaths.
(M.C.S., Ord. No. 24554, § 1, 8-18-11)

Sec. 26-411. Mobile health clinics, when permitted.

Mobile health clinics may be temporarily located in residential zoning districts, in the following instances:

(1) In conjunction with a blood drive or a health fair, limited to a maximum of 14 days per year;

(2) As an accessory use to an existing religious institution or school use; and

(3) As a transitional use, where a permanent health care clinic is proposed and is currently under review by the city.

Sec. 26-412. Establishment of standards.

Mobile health clinics provided as accessory or transitional uses as listed above, shall comply with the following standards:

(1) Services shall be limited to licensed and accredited primary care and preventive health care programs that have an existing collaboration with a local hospital to meet the necessary health care referral needs of the community and patient population being served. Pain clinics are prohibited;

(2) Clinics located within the public right-of-way may not be parked on sidewalks and may not be parked in the street right-of-way for more than 24 hours, without the prior written approval of the department of public works;

(3) Clinic locations may not displace any existing required off-street parking and shall be subject to the setback regulations for nonresidential uses in the underlying zoning district;

(4) Hours of operation shall be limited to 7:00 a.m. to 8:00 p.m. daily or in the instance of accessory use, the hours of operation of the main use.

(5) Variances to these standards may only be granted by city council motion in conjunction with section 26-412.

(M.C.S., Ord. No. 24554, § 1, 8-18-11)

Sec. 26-413. Temporary approval.

Temporary clinics provided in conjunction with subsection 26-411(1) above shall not require city council approval.

Temporary clinics provided in conjunction with subsections 26-411(2) and (3) shall require approval by city council motion and shall be limited to a maximum of one year at a particular location. Extension of this time period for a maximum of one additional year shall require rereview and approval by city council motion.
(M.C.S., Ord. No. 24554, § 1, 8-18-11)

Sec. 26-414. Reserved.

DIVISION 5. STANDARDS FOR TIRE SALES, INSTALLATION, HAULING, AND DISPOSAL

Sec. 26-415. Definitions.

For the purposes of this division, the following terms shall have the following meanings:

Abandoned shall mean waste tires and/or waste tire material discarded without adhering to the proper disposal or processing standards required by these regulations.

City shall mean the City of New Orleans.

Destination shall mean a facility where waste tires and/or waste tire material is processed, recycled, collected, stored and/or disposed after transportation.

Disposal means the depositing, dumping, or placing of waste tires or waste tire material on or into any land or water so that such waste tires, waste tire material, or any constituent thereof, may have the potential for entering the environment, or being emitted into the air, or discharged into any waters of the State of Louisiana.

Manifest shall mean the mechanism provided by the Louisiana Department of Environmental Quality, used for identifying the quantity, type, origin, transportation, and destination of waste tires and/or waste tire material from the tire dealer to the authorized destination facility.

Motor vehicle shall mean an automobile, motorcycle, truck, trailer, semi-trailer, or any combination of truck, tractor, and semi-trailer, or any other vehicle designed and approved for use on the public streets of this city, used to transport persons or property and propelled by power other than muscular power.

Site shall mean the physical location, including land area and appurtenances, upon which tires, waste tires, and/or waste tire material is located. The site shall be inclusive of any abutting or adjoining right-of-way that is occupied by tires or waste tires regardless of the legal status of such occupancy.

Tire shall mean a continuous solid or pneumatic rubber covering encircling the wheel of a motor vehicle.

Tire dealer shall mean any person, business, or firm that engages in the sale of tires, including recapped or retreaded tires, for use on motor vehicles.

Transporter shall mean a person who transports waste tires.

Unauthorized waste tire pile shall mean an accumulation of more than 20 waste tires whose storage and/or disposal is not authorized by the Louisiana Department of Environmental Quality.

Waste tire shall mean any tire that is no longer suitable for its original purpose because of wear, damage, or defect and/or has been discarded by the consumer. This term shall also apply to any tire which has been previously installed on a motor vehicle that has been removed from that vehicle and is not actively being offered for sale by facility at which it is stored, regardless of the suitability of such tire for resale pursuant to Louisiana Department of Public Safety regulations.
(M.C.S., Ord. No. 27652, § 1, 1-11-18)

Sec. 26-416. General authority.

The departments of health, sanitation, safety and permits, code enforcement, and any other municipal department or agency that is responsible for the health and sanitary condition of the city may enforce the provisions of this division.
(M.C.S., Ord. No. 27652, § 1, 1-11-18; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Sec. 26-417. Enforcement.

(a) Failure of any person, business, or entity to comply with any of the provisions of this division shall be in violation of this Code.

(b) Violations of this division shall be subject administrative adjudication pursuant to Chapter 6 of this Code.
(M.C.S., Ord. No. 27652, § 1, 1-11-18)

Sec. 26-418. Operational standards.

(a) Tire dealers shall possess an occupational license issued pursuant to this Code by the department of finance, authorizing the conduct of business in the City of New Orleans.

(b) Tire dealers which store or may store more than 20 waste tires shall, within 30 days of commencement of business operations, notify the Louisiana Department of Environmental Quality of their existence and obtain a generator identification number. Storage of more than 20 waste tires, as provided in this division, without a generator identification number shall be a violation of this Code.

(c) Tire dealers shall prominently display to the public the notification provided by the Louisiana Department of Environmental Quality indicating that:

(1) "It is unlawful for any person to dispose, discard, burn, or otherwise release waste tires to the environment in a manner in contravention to the Louisiana Solid Waste Regulations. A fine of up to $32,500.00 per day per violation may be imposed on any company or individual who violates these rules and regulations."

(2) "All Louisiana tire dealers are required to collect a waste tire cleanup and recycling fee from the consumer at the time of the retail sale of $2.00 for each passenger/light truck tire, $5.00 for each medium truck tire, $10.00 for each off-road tire, and $1.25 for recapped or retreaded tires. These fees shall also be collected upon replacement of all recall and adjustment tires. Tire fee categories are defined in the Waste Tire Regulations. This fee must be collected whether or not the purchaser retains the waste tires. Tire dealers must accept from the purchaser, at the time of sale, one waste tire for every tire sold, unless the purchaser elects to retain the waste tire. The department does not require the collection of fees on the sale of tires weighing 500 pounds or more, solid tires, or tires which are de minimis in nature, including but not limited to lawn mower tires, bicycle tires, and golf cart tires."

(d) Generators of waste tires, required to register in accordance with LAC 33:VII.10519.A, shall comply with the manifest requirements of LAC 33:VII.10534.

(e) Waste tires may be stored for up to 120 days after receipt or generation; however, storage up to 365 days may be permitted, provided:

(1) The storage is solely for the purpose of accumulating such quantities as are necessary for cost effective transportation and processing; and,

(2) Documentation supporting the storage period and quantity generated is made available at the tire dealer's facility for audit and/or inspection.

(f) No more than 150 waste tires shall be stored at the generator's place of business at one time, unless stored indoors or in a transportable collection container.

(g) No tire dealer shall allow the removal of waste tires from his place of business by anyone other than a transporter that is properly authorized and licensed by the Louisiana Department of Environmental Quality, unless the tire dealer generates 50 or less waste tires per month from the sale of 50 tires.

(1) If 50 tires or less are generated per month, the tire dealer may transport up to 20 waste tires to a permitted processing facility. Documentation supporting the number of tires sold or generated, and documentation indicating delivery to or disposal through a state permitted processing facility shall be made available at the tire dealer's facility for audit and/or inspection

(h) Waste tires shall be segregated from any tires offered for sale or resale by the tire dealer.

(i) Tire dealers shall maintain completed manifests, from a transporter authorized by the State of Louisiana to perform such function, for a minimum of five years and shall make such manifests available for audit and/or inspection at the tire dealer's place of business during regular business hours.
(M.C.S., Ord. No. 27652, § 1, 1-11-18)

Sec. 26-419. Storage of new, used, and waste tires.

(a) Tire dealers shall not engage in outdoor storage of new, used, or waste tires except in compliance with the standards of the Comprehensive Zoning Ordinance.

(b) Storage of tires may not be located on a different parcel, lot, or site than the business site of the tire dealer.

(c) Storage may not be located on the public right-of-way; such storage violates section 146-494 of this Code and shall constitute a separate violation under this division.

(d) Storage areas of all new, used, or waste tires collected and/or stored by a tire dealer shall provide:

(1) A cover adequate to exclude water from the waste tires;

(2) Vector and vermin control;

(3) Means to prevent or control standing water in the tires and storage area.

(e) Tire dealers shall not be eligible for sidewalk use permits pursuant to Chapter 146 for the display or placement of tires.
(M.C.S., Ord. No. 27652, § 1, 1-11-18)

Secs. 26-420—26-430. Reserved.

ARTICLE VI. PROPERTY STANDARDS GENERALLY*

Sec. 26-431. Wells to be covered.

(a) Each person having a well upon his premises or upon lots owned or rented by him shall cover it with a good, substantial covering in such manner as to prevent any person or animal from falling into it.

(b) Any person, whether owner or tenant, violating the provisions of this section shall be fined, upon conviction, a sum not exceeding $25.00 and in default of payment thereof, imprisoned not exceeding 30 days or both at the discretion of the court.
(Code 1956, § 59-4)

*__Editor's note—__Provisions regulating the construction, repair, alteration and use of buildings are found in the New Orleans Building Code which is separately published and therefore not included herein but not repealed by the adoption of this Code. There are included herein, and in the articles in this chapter, only such provisions on this subject as were not included in the building code, but nevertheless appear not to have been repealed by its adoption or otherwise.

Sec. 26-432. Inspection of chimneys.

(a) The inspector may enter premises and may remove bricks from any part of the chimney for the purpose of ascertaining whether the lining has been placed in the proper manner. The bricks removed shall be replaced by the owner of the premises.

(b) The owner or builder shall furnish every facility to the inspector for the clear and unequivocal examination of any chimney.
(Code 1956, § 11-14)

Sec. 26-433. Maintenance of fire escapes.

The owner of any building upon which a fire escape is erected shall keep it in good repair and properly painted.
(Code 1956, § 11-15)

Sec. 26-434. Party walls.

One who first builds in a place in the city which is not surrounded by walls may rest one-half of his wall on the land of his neighbor; provided, that he builds with stone or bricks at least as high as the first story and not in frame or otherwise; provided further that the whole thickness of such wall does not exceed 18 inches, not including the plastering, which must not be more than three inches. But such person cannot compel his neighbor to contribute to the raising of such wall.
(Code 1956, § 11-16)

__Editor's note—__Provisions of the building code relating to party walls are also contained in the New Orleans Building Code, section 202, table 600.

Sec. 26-435. Railing required around hatchways, etc.

The occupant of any store, storehouse, manufactory or other building in which hatchways, hoistways or openings of any kind, except the usual stairways, are used throughout any floor thereof or, in case such building is unoccupied and not leased, the owner thereof shall cause such hatch, hoistway or other openings to remain closed or protected by a railing at least three feet high and to be opened only when needed for the passage of

merchandise and such occupant, owner or lessee shall cause such railing to be securely shut, closed and fastened at the close of each day.
(Code 1956, § 11-17)

Sec. 26-436. Stovepipes not to project into streets.

No stovepipe shall be allowed to project over any sidewalk or into any street.
(Code 1956, § 11-18)

Editor's note—Under the provisions of the building code nothing can be allowed to project over the street, but the effect of this is possibly limited to buildings erected after the enactment of that provision in the New Orleans Building Code, chapter 32.

Sec. 26-437. Certain shutters to have device for opening from outside.

The proprietor of every building in the city having iron shutters on its windows shall cause to be attached to at least one shutter on each window on each story thereof some device or apparatus as required by R.S. 40:1579 and they shall be so applied in order that such shutters can be opened from the outside in case of fire to secure immediate access to the building on fire.
(Code 1956, § 11-19)

Sec. 26-438. Balconies to have gutters and downspouts.

The owner of any building in the city having a balcony extending over any portion of the banquette shall provide such balcony with a metal gutter attached to the outer edge and leading into a metal downpipe leading across the banquette into the street gutter except that when such balcony is entirely covered by a roof, the gutter shall be attached to the roof in the manner above described. The owner shall also keep the gutters in such repair as to prevent leakage and drippings on the sidewalks.
(Code 1956, § 11-20)

Editor's note—Building code provisions as to gutters and downspouts are contained in the New Orleans Building Code, section 1508.

Sec. 26-439. Type of gutter required; awnings and balconies not to drain into street.

All gutters across the banquette shall be covered gutters approved by the Department of Safety and Permits, or of proper size drain pipe. No awning or balcony shall drain directly into the street.
(Code 1956, § 11-21)

Sec. 26-440. Awnings, gutters—Equipped with downspouts.

The owner of any building on either side of Canal Street, between Delta and Liberty Streets, having a gallery, awning or shed extending over any portion of the banquette shall provide such gallery, awning or shed with a metal gutter, to be attached to its outer edge and leading into a metal downpipe which shall be attached to the wall of the building, to conduct all drainage from the gallery, awning or shed into a covered gutter the banquette and into the drainpipe laid parallel with the curbing on both sides of the banquette in Canal Street.
(Code 1956, § 11-22)

Editor's note—Provisions relating to the future erection of awnings, etc., and requiring downspouts in connection with fixed awnings are contained in the New Orleans Building Code, chapter 32.

Sec. 26-441. Where similar conditions exist.

The provisions of section 26-440 shall apply to all streets where similar conditions may exist as existed on Canal Street on July 14, 1899.
(Code 1956, § 11-23)

Sec. 26-442. Awnings or sheds not to obstruct street lights.

The director of the department of streets shall notify all such persons as may have erected awnings or sheds covering the banquettes in the city which in any way mask any of the street lights or prevent such lights from giving a full light on the banquettes and streets to alter and change such awnings or sheds so as not to obstruct the light from such lights.
(Code 1956, § 11-24)

Sec. 26-443. Maximum weight load of floors.

It shall be unlawful for occupants of stores or warehouses to load the floors in excess of a dead load of 250 pounds per square foot.
(Code 1956, § 11-25)

Editor's note—Floor loads in new stores and warehouses are contained in the New Orleans Building Code, section 1604.

Sec. 26-444. Vacant structures and buildings to be kept secured to prevent ingress.

It shall be the responsibility of the owner and/or the agent of the owner of any vacant structure or building to maintain such vacant structure or building so secured and in such condition that ingress into the structure or building by unauthorized persons is prevented. The owner and/or agent for the owner of any vacant structure or building that is not secured to prevent ingress shall be notified in writing of this situation and be allowed at least ten days to secure the structure or building so that ingress by unauthorized persons is prevented.
(Code 1956, § 11-26)

Sec. 26-445. Fruit and other stands prohibited on certain sidewalks.

It shall be unlawful for any fruit stands, or other stands, where eatables or food of any kind or description is sold, shoe shine or bootblack stands, whether the same shall have existed prior to or at the time of the passage of the ordinance from which this section was derived, to occupy any part or portion of the sidewalk in the city in the territory bounded by Decatur Street, Magazine Street, North and South Liberty, Gravier and Bienville Streets.
(Code 1956, § 11-28)

Cross reference—Streets, sidewalks and other public places, ch. 146.

Sec. 26-446. Repairs of leaking verandas, etc., over sidewalks.

All leaking galleries, sheds, verandas or other overhead structures that extend over the sidewalk are hereby declared public nuisances and shall be repaired by the owner thereof immediately after having been notified to do so by the department of code enforcement and failure to abate such nuisance shall be an offense.
(Code 1956, § 11-31; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Sec. 26-447. Dumpsters to be properly screened from public view.

(a) Except as otherwise provided in this section, any dumpster with a gross volume of one cubic yard or more which is visible from the public right-of-way or parking area shall be properly screened from public view with a suitable and substantial opaque fence constructed of wood, metal, synthetic, plastic, vinyl or masonry material, in sound condition, substantially free from deterioration, not less than six feet high or otherwise provided by the City Code, building code or zoning ordinances with gates, and kept in a constant state of good repair with no sign or other advertising matter placed upon such fence. Dumpster fencing plans shall be submitted to the appropriate local historic commission for approval for any dumpster located in a historic district.

(b) The provisions of this section shall not apply to dumpsters on public property on a temporary basis which are lawfully permitted by the department of public works nor to dumpsters on private property on a temporary basis and used in connection with construction or demolition activities permitted by the department of safety and permits.

(c) The director of safety and permits may waive the requirement for screening of dumpsters to accommodate cases where the requirement would impose an unreasonable hardship or where approval of the enclosure has not been granted by a historic district commission with jurisdiction over the location. An appeal may be filed with the director on forms provided by the director. Safety and permits shall conduct a hearing on the appeal and issue a written order granting or denying the appeal.

(d) The access opening to the dumpster corral shall be, if possible, a minimum of 18 to 24 inches wider than the dumpster.
(M.C.S, Ord. No. 21859, § 1, 3-3-05)

Sec. 26-448. City authorization to remediate improperly secured pools or pools with stagnant water for threats to the public health, safety and welfare.

(1) For the purposes of this section, "pool(s)" means any pool, tank, depression or excavation, in or above ground, or other structure which shall cause retaining of water over a greater depth than 18 inches and/or having a plane surface of water greater than 150 square feet and which shall by designed or used for swimming, wading or immersion purposes by individuals.

(2) The purpose of this section is to prevent stagnant water and access to pools located in the city by persons, especially children, who may be injured or killed as a result of their inability to perceive the dangers existing in the use of pools, and to prevent the spread of mosquito borne illnesses.

(3) All pools as defined above, whether in-ground or above-board types, shall be maintained in a clean and sanitary condition and in good repair with a functioning filtration system. Private swimming pools, hot tubs and spas shall be completely surrounded by a fence or barrier at least six feet in height above the finished ground level, measured on the side of the fence or barrier which faces away from the pool. Access gates must be self-closing and self-latching.

(4) Any authorized law enforcement entity has the authority to enforce this section. The city, or persons acting under its authority shall, at any reasonable time after eight days have passed following the posting of notice in accordance with section 26-242(c), enter upon premises or lot to immediately fill-in pools that are not in noncompliance with this section pursuant to the emergency procedures outlined in section 26-242.

(5) It shall be unlawful for an owner of premises or lots in the city, or in their absence, their agents, to violate provisions of this section.
(M.C.S., Ord. No. 22565, § 1, 3-15-07; M.C.S., Ord. No. 27901, § 1, 10-18-18; M.C.S., Ord. No. 28210, § 2, 10-3-19; M.C.S., Ord. No. 29189, § 2, 10-6-22)

Secs. 26-449—26-480. Reserved.

ARTICLE VII. MINIMUM REQUIREMENTS FOR PARKING LOTS*

Sec. 26-481. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Central business district is defined as the areas generally known as the downtown development district dictated by the boundaries contained in R.S. 33:2740.3, which provides that the point of beginning shall be at the intersection of the east bank of the Mississippi River and the Mississippi River bridge approaches and Pontchartrain Expressway: thence continuing in a northwesterly direction along the upper line of the Pontchartrain Expressway right-of-way, less and except ramp areas, to the lakeside right-of-way line of South Claiborne Avenue; thence proceed northeasterly along the lake side of said right-of-way line of South Claiborne Avenue, continuing across Canal Street along North Claiborne Avenue to the northeast right-of-way line of Iberville Street; thence proceed southeasterly along the northeast right-of-way line of Iberville Street to the centerline of the Basin Street right-of-way, proceeding northeasterly to the centerline of the Conti Street right-of-way; thence proceed southeasterly to the centerline of the North Rampart Street right-of-way, proceeding to the northeast right-of-way line of Iberville Street; thence along the said northeast right-of-way line of Iberville Street to the east bank of the Mississippi River; thence continuing along the east bank of said river to the right-of-way line of the Mississippi River Bridge approaches and Pontchartrain Expressway, being the point of beginning.

Parking lot means all areas which are used for the parking [of] motorized vehicles, for which the owner, lessee, tenant or operator thereof receives

*__Cross reference—__Stopping, standing, parking, § 154-651 et seq.

consideration of any compensation and/or the use of such area for the purpose of parking motorized vehicles thereon.
(Code 1956, § 11-40; M.C.S., Ord. No. 23783, § 1, 11-5-09; M.C.S., Ord. No. 24428, § 1, 6-2-11)

Cross reference—Definitions generally, § 1-2.

Sec. 26-482. Reserved.

Editor's note—M.C.S., Ord. No. 28187, § 2, adopted Sept. 5, 2019, repealed § 26-482, which pertained to paving of surface of parking lots in central business district and derived from Code 1956, § 11-41; M.C.S., Ord. No. 24429, § 1, adopted June 9, 2011.

Sec. 26-483. Entrances, exits, interior drives, plantings, and curb cuts of parking lots.

For the health, safety and welfare of the community, each parking lot shall have at least one entrance and/or exit. Multiple lots of record that are contiguous to each other may share entrance(s) and/or exit(s) as approved by the department of public works. All entrances and/or exits must be approved by the department of public works (traffic engineering) for location, and the department of safety and permits for construction. All parking lots shall be separated from walkways, sidewalks, streets, or alleys by a wall, fence, excluding chain-link fencing, landscaping, curbing wheel stops or any combination thereof, approved by the department of public works, safety and permits, and the Central Business District Historic Landmarks Commission when applicable, so as to prevent all vehicles parked thereon from protruding over publicly owned areas. To mitigate against the negative impacts of surface parking lots, each parking lot that abuts two converging public rights-of-way, including, but not limited to, sidewalks, shall provide for a minimum of one drought-tolerant shade tree of no less than two inches caliper, subject to the approval of the department of parks and parkways. Curb cuts shall be limited to as few as possible, as determined by the department of public works. Rollover curbs shall not be permitted. Curb cuts may have a maximum width of 24 feet for two-way circulation, and 12 feet for one-way. All interior drives shall be of adequate width to serve a particular design arrangement of parking spaces, as approved by the department of public works.
(Code 1956, § 11-42; M.C.S., Ord. No. 24430, § 1, 6-2-11)

Sec. 26-484. Lighting and maintenance.

(a) For the health, safety and welfare of the community, [in] any parking lot located in the Central Business district operating on a daily basis after 7:00 p.m., adequate lighting shall be provided, subject to the approval of the department of safety and permits. The lighting shall be arranged to eliminate glare on residential property by location of light fixtures or use of fixtures designed to eliminate direct view of luminaries in fixtures from residential property.

(b) For the health, safety and welfare of the community, all parking lots shall be maintained in a clean and orderly condition at the expense of the owner, lessee, tenant or operator and not used for the sale, repair or dismantling of any vehicle. A minimum of one affixed litter receptacle shall be included; the placement and material thereof are subject to the approval of the department of safety and permits, but shall not be on the public right-of way. The parking lot operator shall be responsible for the regular emptying of such litter receptacle(s).
(Code 1956, § 11-43; M.C.S., Ord. No. 24431, § 1, 6-2-11)

Sec. 26-485. Additional requirements of zoning ordinance.

Any parking lot that is legally operating by virtue of a conditional use ordinance passed by the council, in addition to the minimum health and safety requirements contained herein, shall also comply with the requirements contained in such conditional use ordinance.
(Code 1956, § 11-43.1; M.C.S., Ord. No. 24432, § 1, 6-2-11)

Sec. 26-486. Temporary extensions for compliance.

Any parking lot(s) in existence on the effective date of the ordinance from which this section is derived may apply for a temporary extension to

comply with the provisions of this article. Such extension may be secured from the department of safety and permits and shall not exceed a period of 12 months. If a further extension is required, the city council may grant such an appeal by motion, upon written petition to the clerk of council, but in no case shall the further extension exceed 12 additional months. Violation by any person of any of the provisions of this article is hereby declared to be grounds for revocation of the occupational license for the business operated at that location. The director of the department of safety and permits is hereby authorized to seek any and all legal remedies including injunctive proceedings against the operation of public parking facilities at that location.
(Code 1956, § 11-44; M.C.S., Ord. No. 24433, § 1, 6-2-11)

Sec. 26-487. Parking lot attendants required; penalties and civil remedies.

(a) To ensure the safety and security of vehicles and vehicle owners, the following parking lots shall not be permitted to operate unless a parking lot attendant is physically present on site, or the operator shows proof of a contract with a security or enforcement agency that employs enhanced safety measures, such as uniforms, body cameras, and labeled vehicles that will patrol the lot, in accordance with the following:

(1) Any parking lot within a ten-block radius of the Superdome, during the period beginning one hour before the commencement of, and ending one hour after the conclusion of any of the following events occurring at the Superdome or in Champions Square:

(i) Any NFL game,

(ii) Any college football or basketball game,

(iii) Any Louisiana high school football championship game,

(iv) Any event associated with Essence Festival, or

(v) Any large concert or event at which attendance is reasonably expected to exceed 10,000 persons.

(2) Any parking lot within a ten-block radius of the Smoothie King Center, during the period beginning one hour before the commencement of, and ending one hour after the conclusion of, any of the following events occurring at the Smoothie King Center:

(i) Any NBA game,

(ii) Any college basketball game,

(iii) Any Louisiana high school basketball championship game, or

(iv) Any large concert or event at which attendance is reasonably expected to exceed 10,000 persons.

(3) Any parking lot within the Vieux Carré, or within a five-block radius of the Vieux Carré, during the period beginning at 10:00 a.m. and ending at 11:00 p.m. on each day of French Quarter Festival.

(4) Any parking lot within a five-block radius of the Saenger Theatre, during period beginning one hour before the commencement of, and ending one hour after the conclusion of, any concert or other event occurring at the Saenger Theatre.

(5) Any parking lot marketing itself to cruiseship passengers for long-term parking, beginning one hour before the cruise departure, and ending one hour after the conclusion of the voyage.

(6) Any parking lot within five blocks of an officially permitted Mardi Gras parade route, during the period beginning one hour before a parade, and ending one hour after the conclusion of a parade.

(7) Any parking lot within a five-block radius of the Ernest N. Morial Convention Center, during the period beginning one hour before any Mardi Gras ball, and ending one hour after the conclusion of the ball.

(b) A parking lot attendant employed pursuant to this section shall be stationed conspicuously and uniformed so as to deter criminal conduct and shall make regular patrols of the parking lot and vicinity.

(c) The requirements of this section shall not apply to parking lots that do not permit parking by the general public in connection with any of the foregoing special events.

(d) Each violation of the provisions of this section shall result in a fine of not more than $500.00. Following the third violation of this section, the city attorney shall seek an injunction or other remedy against the owner or operator of the parking lot to prevent violations of this article through civil proceedings.
(M.C.S., Ord. No. 29358, § 1, 3-9-23)

Editor's note—M.C.S., Ord. No. 29358, § 3 states: This ordinance shall be in force until December 21, 2023, and these requirements shall sunset at that time.

Secs. 26-488—26-510. Reserved.

ARTICLE VIII. STANDARDS FOR STOREFRONT AND SHOW WINDOWS*

Sec. 26-511. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

First or ground floor means the first floor or floor level of any building or structure above or on the same plane as the surface of the sidewalk. There shall be excluded from this definition basements or cellars the floors of which are below the plane of the surface of the sidewalk.
(Code 1956, § 11-6)

Cross reference—Definitions generally, § 1-2.

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***Editor's note—**The provisions of the New Orleans Building Code, chapter 32 prohibiting the erection of such show windows, etc., should be reviewed.

Cross references—Businesses, ch. 30; peddlers, solicitors and itinerant vendors, ch. 110; Vieux Carré case regulations, § 166-4.

Sec. 26-512. Abutting show windows to be moved off sidewalks; exceptions in Vieux Carré.

(a) All show windows or show cases in the city attached to or forming part of any building or structure and having their bases resting on the public sidewalks on the first or ground floor of any building or structure, which project beyond the property line onto the sidewalk forming part of the public street on which such building or structure shall be abutting, shall be removed and made to retire entirely within the limits of the property line of the property on which any building or structure shall be located and of which such show window or show case forms a part.

(b) The provisions of this section shall not apply to abutting show windows in the Vieux Carré of this city where the provisions of section 166-4 are complied with.
(Code 1956, § 11-7)

Sec. 26-513. When applicable show window, etc., not resting on ground; exceptions in Vieux Carré.

(a) The provisions of section 26-512 shall likewise apply to show cases and show windows which, although not resting their bases upon the public streets or sidewalks, shall project, for the height of any portion of the first or ground floor, beyond the property line of the property on which any building or structure shall be located of which such projecting show window or show case forms a part.

(b) The provisions of this section shall not apply to abutting show windows in the Vieux Carré of this city where the provisions of section 166-4 are complied with.
(Code 1956, § 11-8)

Sec. 26-514. Permits not to be issued for show cases, etc.; exceptions in Vieux Carré.

(a) No building permits shall be issued for the erection, construction, alteration or repair of any show case or show window which shall project

beyond the property line of the property in the manner described in sections 26-512 and 26-513.

(b) The provisions of this section shall not apply to abutting show windows in the Vieux Carré of this city where the provisions of section 166-4 are complied with.
(Code 1956, § 11-9)

Sec. 26-515. Offending window, etc., a nuisance; abatement.

If any person is the owner of any property abutting a public street which property shall have any show case or show window attached to any building or structure located thereon which shall encroach or project beyond the property line on the first or ground floor as described in this article shall fail, refuse or neglect to remove or retire such show case or show window within the limits of the property line of the property, then such show case or show window shall be declared a public nuisance and the mayor in the name of the city shall bring proper proceedings to have such nuisance abated.
(Code 1956, § 11-10)

Cross references—Businesses, ch. 30; nuisances, § 66-241; streets, sidewalks and other public places, ch. 146; Vieux Carré, ch. 166.

Sec. 26-516. Which officer deemed to represent an offending corporation.

For the purpose of enforcing this article, every corporation shall be deemed to be represented by its president, and, in the absence of the president, by the first vice-president, and, in the absence of such officers, by the secretary or any officer or director having the management and direction of the corporation.
(Code 1956, § 11-11)

Sec. 26-517. Restrictions on display of certain items in the central business district.

(a) For the purpose of this section, the following terms shall have the following meanings:

Central business district means the area bounded by the Mississippi River, the Pontchartrain Expressway, the middle of Claiborne Avenue, and the middle of Iberville Street.

Souvenirs shall mean items, exclusive of books, magazines or maps, which serve as tokens of remembrance of the city and which bear the name of the city or geographic areas or streets thereof or of events associated with the city including, but not limited to, events such as Mardi Gras or the Sugar Bowl.

T-shirt shall mean any garment or article of clothing, including, but not limited to, t-shirts, sweat shirts, tank tops, shirts or scrub shirts, which is designated or intended generally to be worn on or over the chest and containing any communicative verbiage, graphics, or images imprinted or to be imprinted on the garment or article of clothing, exclusive of a garment manufacturer's mark or logo, exclusive of decorative words and information woven or dyed in the fabric by the manufacturer of the fabric, exclusive of hand stitched, needlework or embroidery, exclusive of tie-dye garments, and exclusive of handpainted or air-brushed garments that contain no communicative verbiage, graphics or images.

Explicit sexual material means:

(1) Any picture, drawing, photograph, motion picture, article of clothing, or other pictorial representation of uncovered human genitals, of human sexual intercourse, sodomy, oral copulation, bestiality, masturbation or direct physical stimulation of clothed or unclothed genitals, of torture in the context of a sexual relationship, or any description of, advertisement of or offer to sell such pictorial material where such description or advertisement includes such materials;

(2) Any artificial human penis or vagina or device primarily designed physically to stimulate genitals, or any description, advertisement or offer to sell or distribute such an artificial organ or device where such description or advertisement presents either a pictorial representation or a detailed verbal description of such organ or device or its manner of use; or

(3) Any book, magazine, newspaper or other printed or written material, which is made up in whole or in dominant part of depictions or descriptions of human sexual

intercourse, oral copulation, bestiality, sodomy, masturbation or torture in the context of a sexual relationship.

Storefront means as follows:

(1) For a building, the ground floor of which is occupied entirely by one business entity, the term "storefront" means any facade or front of a building or any other face of a building either facing a public place or containing a ground floor window or a ground floor door visible from a public place.

(2) For a building, the ground floor of which is occupied by more than one business entity, the term "storefront" also means the front or any other face of the business entity's individual premises visible from outside the individual premises provided that if more than one business entity occupies the same individual premises, they shall be treated as a single business for the limited purpose of identifying the relevant storefront.

(3) For one business entity that occupies the ground floor of two or more contiguous buildings, the term "storefront" also means the front or any other face either facing a public place or containing a ground floor window or door visible from a public place of all the contiguous buildings occupied by the business entity.

(b) Except as provided in subsection (c) of this section, it shall be unlawful for any person to display or allow to be displayed any of the following items or representations thereof in the central business district on the exterior of or within five feet of the interior of any exterior window or door or within five feet of an open entrance to the establishment if the establishment does not have a door:

(1) T-shirts.

(2) Souvenirs.

(3) Alcoholic beverages.

(4) Tobacco products.

(5) Explicit sexual material, the display of which is prohibited and/or more restrictively regulated by sections 54-256 and 54-259.

(c) The prohibitions contained in this section shall not apply to t-shirts or souvenirs or representations thereof displayed at the rear of a display window with an opaque background or backing at least three feet from the inside of the exterior window or door provided that no more than five items are displayed per storefront. A business entity occupying a corner lot shall be deemed to have two storefronts. A business entity occupying two corner lots shall be deemed to have three storefronts. A business entity occupying an entire square shall be deemed to have four storefronts.

(d) If more restrictive provisions than contained in this section are contained in the comprehensive zoning ordinance or any other ordinance, then the more restrictive provisions shall apply.

(e) The provisions of this section shall apply to all businesses in existence at the time of the adoption of the ordinance from which this section was derived as well as to all businesses coming into existence after the adoption of such ordinance.
(Code 1956, § 11-11.1)

Secs. 26-518—26-550. Reserved.

ARTICLE IX. STANDARDS FOR HOTELS AND MOTELS*

DIVISION 1. GENERALLY

Sec. 26-551. Singular ownership of dwelling units required.

A hotel or motel occupational license shall only be issued when all dwelling units used for transient lodging are owned or leased by the same person, natural or juridical. Condominium associations shall not qualify for a hotel or motel occupational license.
(M.C.S., Ord. No. 29501, § 1, 7-13-23)

*__Cross reference—__Hotels and motels, § 30-771 et seq.

Secs. 26-552—26-575. Reserved.

DIVISION 2. DOWNTOWN DEVELOPMENT DISTRICT

Sec. 26-576. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Downtown development district means the area defined as downtown development district by R.S. 33:2740.3.

Hotel means as defined in M.C.S., Ordinance Number 4,264, as amended, the comprehensive zoning ordinance of the city.

Motel means a motel, motor court, tourist court or motor lodge as defined in M.C.S., Ordinance Number 4,264, as amended, the comprehensive zoning ordinance of the city.
(Code 1956, § 11-46(a))

Cross reference—Definitions generally, § 1-2.

Sec. 26-577. Permit issuance conditioned on number of rooms.

(a) Except as provided in this division, no permits shall be issued by the city for construction of hotels or motels in the downtown development district if the issuance of permits would result in the addition of new hotel or motel rooms within the downtown development district in excess of the number of rooms allowed in the table below:

Time Period	*New Hotel or Motel Rooms Allowed in Downtown Development District*
Oct. 31, 1987—May 31, 1988	750
June 1, 1988—May 31, 1989	750
June 1, 1989—May 31, 1990	800

(b) Should the number of permits issued for any time period specified above be less than the number allowed for that time period, the difference shall be carried over to the subsequent time period and that number added to the number of new hotel or motel rooms allowed for the subsequent time period.
(Code 1956, § 11-46(b))

Sec. 26-578. Exceptions.

The provisions of this division shall become null and void if the occupancy rate of hotel and motel rooms in the downtown development district equals or exceeds 67½ percent each month for four consecutive months, as determined by monthly occupancy rates issued by a nationally recognized consulting firm for the hotel and motel industry, upon certification of the 67½ percent or greater occupancy rate each month for four consecutive months to the department of safety and permits and the clerk of council by the executive director of the city planning commission.
(Code 1956, § 11-46(c))

Sec. 26-579. Appeal.

(a) Any party who is aggrieved by the provisions of this section may appeal to the city council at any regular meeting or special meeting of the council after 24 hours' written notice has been given to the council of the intention to appeal. The council shall request the advice of the city planning commission staff with respect to such an appeal and request that a report be submitted to the council within 60 days of the date that the appeal is first received. Upon receipt of the advice of the city planning commission staff or if a report is not submitted by the city planning commission staff within 60 days of the date of appeal to the council, the council may waive the provisions of this division with respect to the party making the appeal by enacting an ordinance following a public hearing.

(b) In determining whether additional permits beyond the thresholds established above shall be issued, the city council shall consider the recommendations of the city planning commission staff as well as consideration given but not limited to the following criteria:

(1) Economic hardship based on actual expenditures and secured financing relating specifically to hotel/motel room

development by the applicant incurred prior to the effective date of this division.

(2) The commitment to implement a public and/or public-private development project in which a hotel/motel is an integral part of the development.

(Code 1956, § 11-46(d))

Sec. 26-580. Procedure for application.

(a) The department of safety and permits shall not issue a permit to an applicant and shall refer an applicant to the city council to request an appeal to this division.

(b) The city planning commission staff shall obtain necessary information from the applicant to do an analysis based on the provisions of this division and collect the site plan review fee.

(c) The city planning commission staff shall recommend an action to the city council within 60 days from the date of the application in correct form.

(d) If the provisions of this division are waived, the applicant then applies to the department of safety and permits for a construction permit.

(Code 1956, § 11-46(e))

Secs. 26-581—26-610. Reserved.

ARTICLE X. MOVING AND NUMBERING OF BUILDINGS*

Sec. 26-611. Removal of buildings into residential districts.

In order to protect the residential character of properties in the zoning districts classified as single-family, two-family and multiple-family districts, no permit for the removal of a building into any of such districts shall be issued, regardless of the size of the building, until all of the following requirements have been complied with:

(1) Plans and specifications of the building, including any proposed changes to be made thereto or thereof, shall be furnished by a registered state architect or a registered state civil engineer, who shall certify that the plans are correct, and that the building is structurally sound.

(2) The plans and specifications of the building on such new location referred to in subsection (1) of this section, shall show the floor plan, the number and location of the dwelling units, foundations, front yard, side yard, and rear yard areas, off-street parking, sanitation, electrical wiring, and shall show compliance with all other requirements of the building code of this city, being M.C.S., Ordinance No. 11,625, and the comprehensive zoning law of the city, being M.C.S., Ordinance No. 4,264, as amended, and all other applicable provisions of this Code.

(3) Such building shall further meet all the requirements of all existing applicable laws and particularly those listed in subsection (2) of this section, and the engineer or architect must certify that the building is structurally sound after removal to the new site, before being occupied.

(4) The owner, architect, or civil engineer shall file a sketch or plan for completing the structure with the director of the department of safety and permits. The owner shall also sign an affidavit that the building or structure will be substantially complete in accordance with the sketch or plan within six months from date of moving and shall be fully complete one year from date of moving.

(5) The owner of the building or structure must furnish a surety bond to the city for the construction costs necessary to install the building or structure at its new location in accordance with the provision of the city's building code. The amount of the bond shall be fixed by the department of safety and permits in an amount equal to the sum of the relocation permit and repair permit valuations.

(6) The owner of such building or structure must furnish a certificate issued by a

*__Cross reference—__Streets, sidewalks and other public places, ch. 146.

qualified pest control firm certifying that the building or structure is free of termite infestation before relocation begins.

(Code 1956, § 11-29)

Sec. 26-612. Number for new premises; numbers not to be changed.

It shall be unlawful for any property owner or agent to renumber his premises when built. Any such person shall not number new premises without advising the department of safety and permits and obtaining and putting up the number selected and approved by the department.

(Code 1956, § 11-30)

ARTICLE XI. STANDARDS FOR SHORT-TERM RENTALS*

DIVISION 1. IN GENERAL

Sec. 26-613. Purpose.

(a) This article sets forth comprehensive standards governing the short-term rental of immovable property for lodging or sleeping purposes, and establishes requirements and enforcement mechanisms intended to encompass and regulate all persons engaged in the business of short-term rentals, including without limitation, property owners, operators, guests, and platforms that facilitate short-term rentals.

(b) This article is adopted pursuant to the city's police power to preserve the city's permanent housing stock, balance the economic opportunity created by short-term rentals with the need to maintain a supply of long-term rental housing stock available at a range of prices, reduce any indirect negative effects on the availability of affordable housing that results from the dedication of long-term housing stock to short-term rental use, create a level playing field for all parties engaged in the business of providing lodging, ensure the sufficient collection of tax revenue, mitigate the disruptive effects that unmonitored short-term rentals can have on neighborhoods, and protect the livability and quality of life of the city's residential neighborhoods.

(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

Sec. 26-614. Definitions.

Except as otherwise expressly provided in this article, the following terms and their variant forms shall mean the following:

Booking transaction means any contractual agreement between a guest and an owner relative to a short-term rental.

Department means the department of safety and permits, unless otherwise specified herein.

Dwelling unit means a room, or group of rooms, providing complete, independent living facilities, including permanent provisions for living, sleeping, eating, cooking and sanitation for one or more persons.

Exempt lodging business means a bed-and-breakfast, hotel, timeshare, or other transient lodging business permitted under the Comprehensive Zoning Ordinance and holding a valid occupational license which is not required by law to obtain a short-term rental permit.

Facilitate means to collect any fee or any other thing of value, directly or indirectly, for the conduction of booking transactions of short-term rentals or exempt lodging businesses.

Guest means any person who occupies a dwelling unit pursuant to a short-term rental.

Noise monitoring device means a device capable of all of the following (i) monitoring noise levels (ii) detecting exposure to noise levels that exceed an acceptable level for more than a continuous five-minute period (iii) sending real-time alerts to the subject short-term rental owner and operator, and (iv) being programmed to receive real-time alerts if noise levels continuously exceed an acceptable level for the five-minute period. The noise monitoring device must comply with all laws, rules and regulations regarding privacy.

*__Editor's note__—M.C.S., Ord. No. 28157, § 1, adopted August 8, 2019, effective Dec. 1, 2019, amended Art. XI in its entirety to read as herein set out. Former Art. XI, §§ 26-613—26-620, pertained to similar subject matter, and derived from M.C.S., Ord. No. 27204, § 1, adopted Dec. 1, 2016.

Cross reference—City of New Orleans' Interim Short Term Rental Fund, § 70-415.288 et seq.

Operator means a natural person possessing a short-term rental operator permit. An operator who meets the legal requirements may also possess a short-term rental owner permit.

Owner means a person with an ownership interest in a property used for short-term rentals. The term owner shall not include a person holding only a usufruct or leasehold interest in the property.

Platform means one or more portals, listing services, or websites under common ownership or control through which a person, other than an owner, collects or receives a fee or other thing of value, directly or indirectly, for facilitating or conducting booking transactions. A platform shall not include a service that merely posts advertisements for short-term rentals.

Short-term rental means the use and enjoyment of a dwelling unit, or any portion thereof, by guests for a period of less than 30 consecutive days, in exchange for money, commodities, fruits, services, or other performances. Hotels, motels, bed and breakfasts, and other land uses explicitly defined and regulated in the Comprehensive Zoning Ordinance separately from short-term rentals are not considered to be short-term rentals.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25)

Sec. 26-615. Short-term rental permits required.

(a) No dwelling unit in Orleans Parish may be used as a short-term rental unless:

(1) An owner of the dwelling unit possesses a valid and current short-term rental owner permit issued for the dwelling unit in accordance with Division 2 of this article, and all owners fully comply with all legal requirements and duties imposed herein; and

(2) An owner has designated an operator possessing a valid short-term rental operator permit, issued in accordance with Division 3 of this article, and such operator fully complies with all legal requirements and duties imposed herein.

(b) No platform may facilitate any booking transaction in Orleans Parish unless:

(1) The platform has a current and valid short-term rental platform permit issued in accordance with Division 4 of this article; and

(2) The property which is being booked is either a licensed short-term rental or exempt lodging business and the platform has verified that it is being rented in accordance with its license as further set forth in Division 4 of this article.

(c) The permits required by this article are regulated privileges, not rights, and can be revoked or suspended by the city in accordance with the provisions provided herein.

(d) Any permit issued pursuant to this article is strictly personal and may not be transferred or assigned.

(e) In the event the holder of a short-term rental owner's permit ceases to own the property or fails to renew the permit timely, the permit shall be immediately void, and short-term rental use shall be prohibited on the property. Except as provided in subsection (f), any subsequent application for a short-term rental owner's permit on the property shall be subject to the lottery/equitable distribution provisions set forth in section 26-617(g).

(f) Property that is identified as co-owned in the initial application for a short-term rental owner's permit shall not be subject to the lottery/equitable distribution provisions set forth in section 26-617(g) when the holder of a short-term rental owner's permit ceases to own the property, provided that one of the co-owner's identified on the initial application submits an application for a short-term rental owner permit within 60 days of termination of co-ownership.

(g) If any required contact information changes for any permit, the person possessing the permit shall immediately notify the department in writ-

ing, and the department shall issue a revised permit to reflect the updated contact information.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25)

Sec. 26-616. Short-term rental permit fees.

(a) There shall be the following short-term rental owner permit classifications, which shall correspond to the types of short-term rental uses set forth by the Comprehensive Zoning Ordinance:

(1) Short-term rental, non-commercial (Type N); and

(2) Short-term rental, commercial (Type C).

(b) A non-refundable application fee of $50.00 shall be due upon submission of any new or renewal short-term rental application.

(c) The following annual permit fees, which shall be refunded in the event an application is denied, shall be due upon submission of any new or renewal short-term rental application:

(1) Short-term rental owner permit:

(i) Type N — Non-commercial: $500.00.

(ii) Type C — Commercial: $1,000.00.

(iii) Operator card replacement fee: $25.00.

(2) Short-term rental operator permit:

(i) Type N — Non-commercial: $150.00.

(ii) Type C — Commercial: $1,000.00.

(3) Short-term rental platform permit: Fees are based on the number of verifications conducted through the city's electronic verification system per year, as follows:

(i) 1—1,000: $5,000.00 per year.

(ii) 1,001—5,000: $10,000 per year.

(iii) 5,001—10,000: $20,000 per year.

(iv) 10,001 or more: $30,000 per year.

(d) The owner shall remit to the city a $12.00 fee for each night of occupancy of a dwelling unit used as a short-term rental to offset the costs of enforcement and other costs borne by the city. Fees shall be due and remitted along with tax submissions.

(e) The property owner shall remit to the city a $500.00 application fee for consideration of any special exception request pursuant to Section 21.8.C.18.r of the Comprehensive Zoning Ordinance.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25)

DIVISION 2. SHORT-TERM RENTAL OWNER PERMIT

Sec. 26-617. Permit and application—Eligibility.

(a) No dwelling unit may be used as a short-term rental unit unless an owner possesses a short-term rental owner permit issued in accordance with this article. Issuance of a short-term rental owner permit shall be subject to the following rules and criteria:

(1) Only natural persons age 18 or over may own a property used as a non-commercial short-term rental. Ownership, in whole or in part, by a business entity, trust, or any other juridical person is prohibited.

(2) No person may possess more than one short-term rental owner permit or own, in whole or in part, more than one property used as a non-commercial short-term rental.

(3) A short-term rental owner permit shall be valid for one year from the date of issuance, and shall be reapplied for annually.

(4) A separate short-term rental owner permit shall be required for each dwelling unit used as a short-term rental.

(5) A short-term rental owner permit shall be consistent with the dwelling-unit-per-lot-of-record, guest bedroom, guest occupancy, and any other applicable density limitations set forth in the Comprehensive Zoning Ordinance.

(6) Any dwelling unit permitted for short-term rental use must meet all applicable building, zoning, and addressing regulations, as determined by the department.

(7) An owner of a property with outstanding taxes, fines, fees or penalties levied by the city, or that has been found to be liable of an unabated violation of the City Code by an administrative hearing officer or court shall not be eligible for a short-term rental owner permit with respect to said property.

(8) All juridical owners must be in good standing with the State of Louisiana to be eligible for a commercial short-term rental owner permit.

(9) An owner of a property with open permits for new construction, structural or non-structural renovation, or electrical or mechanical work, or open violation cases for electrical or mechanical code violations or work without permits, shall not be eligible for a short-term rental owner permit with respect to said property without the written approval of the Chief Building Official of the City of New Orleans or a designee.

(10) The owner or resident of a dwelling unit required to be affordable by the Mandatory Inclusionary Zoning, Voluntary Inclusionary Zoning, Affordable Housing planned Development, or Small Multifamily Affordable Housing provisions of the Comprehensive Zoning Ordinance shall not be eligible for a short-term rental permit for that dwelling unit.

(b) The application for a short-term rental owner permit shall be on forms created by the department, which shall, at a minimum, require the following information from applicants:

(1) The name, age, address, phone number, and email contact information of all owners;

(2) The municipal address of the dwelling unit associated with the short-term rental owner permit;

(3) The total number of dwelling units located on the lot-of-record containing the dwelling unit associated with the short-term rental owner permit application; and

(4) The name, address, phone number, email contact information, and permit number of the operator designated by the owner to satisfy the requirements of this article with respect to the dwelling unit associated with the short-term rental owner permit. If the designated operator has not yet received a permit number, the applicant shall provide evidence of a contemporaneous application for a short-term rental operator's permit by the designated operator.

(c) The following additional documentation shall be submitted to the department, along with the application, prior to processing:

(1) A list of platforms that will be used to solicit booking transactions for the dwelling unit associated with the short-term rental owner permit, and correlating printouts or Universal Resource Locator (URL) links soliciting the short-term rental, if any.

(2) A floor plan depicting all:

i. Entrance and exit doors;

ii. Windows;

iii. Bedrooms, including an indication of which are used for guests, and for non-commercial short-term rentals, the bedroom reserved exclusively for the use of the operator;

iv. Bathrooms;

v. Kitchens; and

vi. Interior doors.

(3) An evacuation plan indicating:

i. The fire exits and escape routes;

ii. The location of smoke detectors;

iii. The location of fire extinguishers; and

iv. The location of carbon monoxide detectors.

(4) A site plan indicating the location of any required parking.

(5) A noise abatement plan that provides, at a minimum, a noise monitoring device. Non-commercial short-term rental operators shall not be required to include a noise monitoring device as part of their noise abatement plans.

(6) A sanitation plan that provides, at a minimum, for daily visual inspections on the property, as well as regular litter and trash collection and procurement of an adequate number of trash bins to securely hold all trash generated by the property in a lidded container.

(7) If the application is for a Type C permit, a security and operation plan.

(8) An attestation signed by the owner providing that:

i. The dwelling unit has no outstanding property taxes or city liens associated with the lot-of-record, nor do any of its owners owe any other outstanding taxes to the city, including taxes and fees owed in connection with short-term rentals;

ii. The dwelling unit complies, and will comply during any short-term rental of the dwelling unit, with all standards contained in the city's Minimum Property Maintenance Code and all health safety requirements contained in the Building Code;

iii. The dwelling unit has working smoke detectors inside and outside every bedroom, carbon monoxide alarms outside every bedroom, and a properly maintained and charged fire extinguisher on all habitable floors;

iv. The dwelling unit is not subject to any contractual restrictions precluding the dwelling unit from being used for short-term rentals, including, but not limited to, homeowner association agreements, condominium bylaws, restrictive covenants, or building restrictions;

v. The owner read, understands, and agrees to comply with all legal duties imposed by this article and the Comprehensive Zoning Ordinance;

vi. The owner possesses insurance that meets the requirements of section 26-618(a)(1); and

vii. The owner will not discriminate in guest use or rental of a short-term rental, and will comply with all applicable anti-discrimination laws, including, but not limited to, Title VII of the Civil Rights Act of 1968, the Fair Housing Act (FHA), and the Americans with Disabilities Act (ADA).

(9) Proof of completion of a short-term rental course, to be provided by the department and made available virtually.

(d) The department shall deny any short-term rental application that does not contain all of the information listed in section 26-617(b) and (c).

(e) Every short-term rental owner permit issued by the department shall contain the following information:

(1) Short-term rental owner permit number;

(2) Municipal address of the dwelling unit associated with the permit;

(3) Owner's name and contact information;

(4) Operator's name and contact information;

(5) Permit type;

(6) The permit's effective and expiration dates;

(7) The guest bedroom and occupancy limit of the dwelling unit associated with the permit; and

(8) Contact information for the city's short term rental administration to facilitate reporting complaints.

(f) Renewals shall be obtained in the same or substantially similar form and manner as the initial permit, and shall also require:

(1) Completion and submission of a form created by the department of finance providing the associated short-term rental taxes and fees paid to the city for the previous permit year. The form, which shall be deemed confidential tax records for purposes of La. R.S. 47:1508, shall include at a minimum:

a. A statement indicating if the required taxes and fees were paid by the owner, a platform, or both, for the preceding tax year and in what total amounts;

b. The total number of nights the dwelling unit used as a short-term rental was rented in the previous calendar year;(deleted the word and)

c. The rates charged for each nightly rental; and

d. Any IRS Forms 1099 or other financial reports or documents provided to owners or operators by any platform related to rental activity on each platform used.

(2) Updated owner and operator contact information, if applicable;

(3) An attestation signed by the owner providing, in addition to the continued compliance with the items specified in subsection (c), above, that the short-term rental owner permit has not been revoked in the previous year;

(4) An updated list of platforms that are used to solicit books transactions for the dwelling unit associated with the short-term rental owner permit, and correlating print-outs of the Universal Resource Locator (URL) soliciting the short-term rental (for example: http://www.vrbo.com/XXXXX or https://www.airbnb.com/rooms/XXXXX); and

(5) If a Type C — Commercial short-term rental, proof of a favorable, annual city fire inspection.

(6) Proof of completion of a short-term rental course, to be provided by the department and made available virtually, within the previous permit year.

(g) The award of owner permits in zoning districts subject to blockface or per-square caps shall be made using a lottery or other mechanism intended to ensure the equitable distribution of short-term rental permits. The department shall promulgate rules and regulations to set forth the deadlines, application procedures, processes and policies governing this selection procedure and, in doing so, may adopt a weighted lottery using factors to be determined by the department. The duration of a permit may be reduced, and all corresponding fees prorated, to facilitate the implementation of the lottery/equitable distribution system.

(h) For co-owned property, only one owner's permit shall be required, provided that the applicant certifies to the department that all owners independently meet the requirements for an owner's permit and that the applicant has secured all necessary approvals from the other owners to obtain a short-term rental permit.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

Sec. 26-618. Legal duties of a short-term rental owner permit holders.

(a) *Legal duties.* An owner possessing a short-term rental owner permit shall comply at all times with the following requirements:

(1) Insurance. The owner shall maintain in full force and effect at all times, a minimum of $1,000,000.00 in "commercial general liability" insurance per occurrence, combined single limit, for bodily injury, personal injury, and property damage arising in any way from the

issuance of the permit or activities conducted pursuant to the permit, for each dwelling unit used as a short-term rental.

(2) Guest records. The owner shall maintain guest registration records, which shall contain the actual dates of occupancy, total number of guests per party per stay, and the rate(s) charged. Such records shall be maintained for three years and shall be provided to the city upon request, in accordance with applicable law. Personally identifiable guest information may be redacted.

(3) Short-term rental advertisements. The owner shall ensure that the following information be provided in connection with any short-term rental advertisement and shall ensure, in any event, that each short-term rental listing advertises only one dwelling unit permitted as a short-term rental:

a. The short-term rental owner permit number;

b. The short-term rental operator permit number of the designated operator;

c. Whether the dwelling unit is wheelchair accessible or otherwise compliant with the Americans with Disabilities Act;

d. The number of available guest bedrooms as indicated on the owner permit; and

e. The maximum available occupancy of the dwelling unit as indicated on the owner permit.

(4) Adherence to dwelling and occupancy limits. Short-term rentals shall be subject to, and may not exceed, the dwelling-unit-per-lot-of-record, guest bedroom, guest occupancy, and density limitations set forth in the Comprehensive Zoning Ordinance.

(5) Required postings at the short-term rental.

a. The owner shall ensure that a copy of the owner permit is displayed in a location clearly visible from the street and legible to both guests and neighbors.

b. The owner shall ensure that the following are displayed in a location clearly visible and legible to guests:

i. An evacuation diagram identifying fire escapes and all means of egress from the dwelling unit and the building in which the dwelling unit is located;

ii. Trash disposal and recycling collection days; and.

iii. Contact information for the city's short-term rental administration to facilitate reporting complaints.

(6) Health and safety. The owner shall ensure that each dwelling unit governed by this article complies with the following standards:

a. Walls, ceilings, floors, windows, fixtures and furnishings throughout the dwelling unit shall be maintained in a clean condition at all times and shall be in good repair.

b. All rooms shall be adequately lighted and properly ventilated by natural or artificial means or both, and shall be provided with adequate heating and air-conditioning facilities. All natural gas fired heaters shall be vented to the outside atmosphere.

c. Each guest shall be furnished with clean towels, washcloths, and bed linens. Sheets must be of sufficient width and length to completely cover the mattress and be turned under the mattress so as to properly secure the sheet. All towels, washcloths

and bed linens shall be kept in good repair and changed between rentals.

d. All dishes, utensils, pots, pans and other cooking utensils shall be provided to guests in a safe and sanitary condition. The permittee shall ensure that all perishables left by the guests are disposed of at the conclusion of a short-term rental.

e. Each dwelling unit shall have a working fire extinguisher, smoke alarms, and carbon monoxide detectors and shall comply with all applicable fire codes;

f. The dwelling unit shall have working locks, operable by guests, at all points of ingress and egress.

g. Every dwelling unit shall comply with applicable provisions of the Comprehensive Zoning Ordinance, the Minimum Property Maintenance Code as provided in Chapter 26, Article IV, and the New Orleans Building Code, as provided in section 26-14, et seq.

(7) Short-term rental guest use limitations. The owner shall ensure that no dwelling unit used as a short-term rental is used as a reception facility, or any other commercial use defined by the Comprehensive Zoning Ordinance, during guest use of the short-term rental.

(8) Criminal activity. The owner shall timely report any known or suspected criminal activity by a guest to the New Orleans Police Department.

(9) Reasonable inspections. The owner shall submit to inspections authorized by section 26-624(c).

(10) Owner/operator availability. The owner shall:

a. Ensure the permitted operator is available during all periods of guest occupancy, including nights and weekends, to facilitate compliance with this article. Availability requires, at a minimum, that the operator be:

i. Accessible by telephone.

ii. Able to resolve complaints within one hour of being contacted by neighbors regarding disruptive short-term rentals.

iii. Able to resolve complaints within one hour of being contacted by guests.

iv. Able to resolve complaints within one hour of being contacted by the City of New Orleans and any of its departments.

b. Serve as the point of contact for guests, in addition to the operator, and be able to resolve complaints within one hour of being contacted by guests.

c. Receive and resolve complaints from neighbors regarding disruptive short-term rentals within one hour.

d. Receive and resolve complaints from the City of New Orleans and any of its departments regarding disruptive short-term rentals within one hour.

(11) Taxes and fees. Except for those instances in which a platform bears the responsibility for collecting and remitting taxes and fees applicable to short-term rentals, as provided in section 26-622.1, the owner shall timely remit all applicable local, state, and federal taxes and city fees owed in connection with any short-term rental. The failure of a platform to collect and remit taxes and fees pursuant to section 26-622.1 shall not relieve an owner of the obligation to pay taxes and fees owed pursuant to this article.

(12) Compliance with other laws. The owner shall ensure that any short-term rental fully complies with this article, the Comprehensive Zoning Ordinance, and all other applicable laws.

(b) *Prohibited acts.* The following acts shall be prohibited and may be grounds for suspension or revocation of a short-term rental owner permit, or any other remedy authorized by the article. Each instance of a prohibited act may be cited separately in any enforcement action.

(1) Advertising an illegal short-term rental.

(2) Exceeding in any advertisement, the legally available dwelling-unit-per-lot-of-record limitation set forth in the Comprehensive Zoning Ordinance.

(3) Exceeding in any advertisement, the legally available guest bedroom limitation set forth in the Comprehensive Zoning Ordinance.

(4) Exceeding in any advertisement, the legally available guest occupancy limitations set forth in the Comprehensive Zoning Ordinance.

(5) Exceeding the dwelling-unit-per-lot-of-record limitation set forth in the Comprehensive Zoning Ordinance.

(6) Exceeding the guest bedroom limitation set forth in the Comprehensive Zoning Ordinance.

(7) Exceeding the guest occupancy limitations set forth in the Comprehensive Zoning Ordinance.

(8) Using a dwelling unit as a reception facility, or for any other commercial use defined by the Comprehensive Zoning Ordinance, during a short-term rental. No special event permit shall be obtained for an event occurring at a dwelling unit during any period of guest occupancy.

(9) Rental of the dwelling unit by the hour or for any period less than one night.

(10) Rental of a single dwelling unit to more than one party of guests at one time.

(11) Short-term rental use that generates (i) excessive loud sound, (ii) offensive odors, (iii) public drunkenness, (iv) unlawful loitering, (v) litter, (vi) lewd conduct by guests or (vii) any effect that otherwise unreasonably interferes with neighbors' quiet enjoyment of their properties. For purposes of this paragraph, excessive loud sound means any noise generated from within the dwelling unit or having a nexus to the dwelling unit that is louder than a conversational level, or any music that is plainly audible from the property line of the lot containing the dwelling unit, between the hours of 10:00 p.m. and 8:00 a.m. Each instance and type of unreasonable interference defined in this paragraph shall constitute a separate violation of this section and may be cited separately in any enforcement action.

(12) Short-term rental use that places loads on structural elements or components of buildings, including, but not limited to, porches, balconies, and roof decks, in excess of the minimum design loads required by the Building Code.

(13) Violations of the submitted noise abatement plan, security and operation plan, or sanitation plan.

(14) Discriminating against any guest, or potential guest, because of race, color, sex, gender identity, age, religion, disability, national origin, ancestry, sexual orientation, marital status, parental status, military discharge status or source of income.

(15) Failure to comply with any other legal duty imposed by this article or correlating provisions in the Comprehensive Zoning Ordinance, and all other applicable laws.

(16) Failure to ensure that the licensed operator is available as required by section 26-618(a)(10).

(17) For non-commercial short-term rentals, advertising or using the bedroom(s) reserved for the owner or licensed operator (if different from the owner) as a guest bedroom.

(18) Advertising more than one dwelling unit for short-term rental in a single advertisement or listing.

(c) *Ongoing duty.* An owner possessing a short-term rental owner permit may delegate the performance of any duties set forth in this section to the permitted short-term rental operator identified in the owner's application to the department. Notwithstanding that delegation, the owner remains principally responsible for the performance of all duties created hereunder, and may not assert the non-performance of a short-term rental operator as a defense to any action arising from a breach of the owner's duties under this article.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

DIVISION 3. SHORT-TERM RENTAL OPERATOR PERMIT

Sec. 26-619. Short-term rental operator permit and application—Eligibility.

(a) Every dwelling unit used as a short-term rental in Orleans Parish shall be operated by a natural person age 18 or over holding a short-term rental operator permit.

(1) A natural person who holds a short-term rental owner permit may act as the operator, but must separately apply for and obtain a short-term rental operator permit.

(2) The short-term rental operator permit is valid for one year from the date of issuance, and shall be reapplied for annually.

(3) A separate short-term rental operator permit shall be required for each dwelling unit used as a short-term rental.

(b) The application for a short-term rental operator permit shall be on forms created by the department, which shall require, at a minimum, the following information:

(1) The name, address, phone number and email contact information of the operator.

(2) For non-commercial short-term rentals, evidence of recorded ownership or a current residential lease, as well as at least two other forms of documentation with a matching address, including without limitation a utility bill, driver's license or state ID, or bank or credit card statement, establishing that the operator resides on the premises being operated as a short-term rental. For both non-commercial and commercial short-term rentals, evidence that the operator has the permission of the owner to operate the property as a short-term rental in accordance with the application submitted.

(3) An attestation that the operator has read, understands, and agrees to comply with all legal duties imposed by this article, and in the Comprehensive Zoning Ordinance.

(4) Proof that the operator is at least 18 years of age.

(5) A nuisance prevention and neighborhood complaint response plan for each dwelling unit used as a short-term rental.

(6) Proof of completion of a short-term rental course, to be provided by the department and made available virtually.

(c) The department shall deny any short-term rental operator application that does not contain all of the information listed in section 26-619(a) and (b).

(d) Renewals shall be obtained in the same or substantially similar form and manner as the initial permit, and shall require:

(1) An attestation signed by the operator providing that, in addition to the items specified in subsection (b), above, that a short-term rental operator permit has not been revoked in the previous year; and

(2) Updated contact information, if applicable.

(3) Proof of completion of a short-term rental course, to be provided by the department and made available virtually, within the previous permit year.

(e) The operator permit shall be issued in two forms:

(1) A PDF or other document that lists the operator's contact information, as well as any other information deemed pertinent by the department; and

(2) A card bearing the photograph of the licensed operator and listing the address of the property being used as a short-term rental, owner license number, and operator license number.

(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

Sec. 26-620. Legal duties of short-term rental operator permit holders.

(a) *Legal duties.* Any person possessing a short-term rental operator permit shall comply at all times with the following requirements:

(1) Operator availability. The operator shall:

a. Be available during all periods of guest occupancy, including nights and weekends, to facilitate compliance with this article. Availability requires, at a minimum, that the operator:

i. Be accessible by telephone;

ii. Serve as the point of contact for neighbors, including receiving and resolving complaints within one hour of being contacted by neighbors regarding disruptive short-term rentals.

iii. Be able to resolve complaints within one hour of being contacted by guests.

iv. Be able to resolve complaints within one hour of being contacted by the City of New Orleans and any of its departments.

b. Serve as the point of contact for guests, including receiving and resolving inquiries and complaints within one hour of being contacted.

c. Receive and resolve complaints from neighbors regarding disruptive short-term rentals within one hour.

d. Receive and resolve complaints within one hour of being contacted by the City of New Orleans and any of its departments.

e. Reside on the property being used for a non-commercial short-term rental.

(2) Guest records. The operator shall be solidarily responsible with the owner for ensuring full compliance with the guest record-keeping requirements set forth in section 26-618(a)(2).

(3) Short-term rental advertisements. The operator shall be solidarily responsible with the owner for ensuring full compliance with the advertising requirements set forth in section 26-618(a)(3).

(4) Adherence to dwelling and occupancy limits. The operator shall be solidarily responsible with the owner for ensuring full compliance with the dwelling-unit-per-lot-of-record, guest bedroom, guest occupancy, and density limitations set forth in section 26-618(a)(4).

(5) Required postings at the short-term rental. The operator shall be solidarily responsible with the owner for ensuring full compliance with the posting requirements set forth in section 26-618(a)(5).

(6) Health and safety. The operator shall be solidarily responsible with the owner for ensuring full compliance with each of the health and safety requirements set forth in section 26-618(a)(6)a. through g.

(7) Short-term rental guest use limitations. The operator shall be solidarily responsible with the owner for ensuring that no dwelling unit associated with a short-term rental owner permit be used as a reception facility, or any other commercial use as set forth in section 26-618(a)(7).

(8) Criminal activity. The operator shall be solidarily responsible with the owner for reporting any known or suspected criminal activity by a short-term rental guest to the New Orleans Police Department as set forth in section 26-618(a)(8).

(9) Reasonable inspections. The operator shall be solidarily responsible with the owner for facilitating inspections required by section 26-618(a)(9).

(10) Compliance with other laws. The operator shall ensure that any short-term rental fully complies with this article, the Comprehensive Zoning Ordinance, and all other applicable laws.

(b) *Prohibited acts.* The following acts shall be prohibited and may be grounds for suspension or revocation of a short-term rental operator permit, or any other remedy authorized by the article. Each instance of a prohibited act may be cited separately in any enforcement action.

(1) Advertising an illegal short-term rental.

(2) Exceeding in any advertisement, the legally available dwelling-unit-per-lot-of-record limitation set forth in the Comprehensive Zoning Ordinance.

(3) Exceeding in any advertisement, the legally available guest bedroom limitation set forth in the Comprehensive Zoning Ordinance.

(4) Exceeding in any advertisement, the legally available guest occupancy limitations set forth in the Comprehensive Zoning Ordinance.

(5) Exceeding the dwelling-unit-per-lot-of-record limitation set forth in the Comprehensive Zoning Ordinance.

(6) Exceeding the guest bedroom limitation set forth in the Comprehensive Zoning Ordinance.

(7) Exceeding the guest occupancy limitations set forth in the Comprehensive Zoning Ordinance.

(8) No dwelling unit associated with a short-term rental owner permit may be used as a reception facility, or any other commercial use defined by the Comprehensive Zoning Ordinance. No special event permit shall be obtained for an event occurring at a dwelling unit during any period of guest occupancy.

(9) Rental of the dwelling unit by the hour or for a period less than one night.

(10) Rental of a single dwelling unit to more than one party of guests at one time.

(11) Short-term rental use that generates (i) excessive loud noise, (ii) offensive odors, (iii) public drunkenness, (iv), unlawful loitering, (v) litter, (vi) lewd conduct by guests or (vii) any effect that otherwise unreasonably interferes with neighbors' quiet enjoyment of their properties. For purposes of this paragraph, excessive loud noise means any noise, generated from within the dwelling unit or having a nexus to the dwelling unit that is louder than a conversational level, or any music that is plainly audible from the property line of the lot containing the dwelling unit, between the hours of 10:00 p.m. and 8:00 a.m. Each instance and type of unreasonable interference shall constitute a separate violation of this section and may be cited separately in any enforcement action.

(12) Short-term rental use that places loads on structural elements or components of buildings, including, but not limited to, porches, balconies, and roof decks, in excess of the minimum design loads required by the Building Code.

(13) Violations of the submitted noise abatement plan, security and operation plan, or the sanitation plan.

(14) Discriminating against any guest, or potential guest, because of race, color, sex, gender identity, age, religion, disability, national origin, ancestry, sexual orientation, marital status, parental status, military discharge status or source of income.

(15) Failure to reside on the premises as required by law.

(16) Failure of the operator to be available as required by law.

(17) Failure to show the operator's license card on request.

(18) Advertising more than one dwelling unit for short-term rental in a single advertisement or listing.

(19) Failure to comply with any other legal duty imposed by this article, correlating provisions in the Comprehensive Zoning Ordinance, or any other applicable law.

(c) The licensed operator is personally responsible for fulfilling these duties and may not delegate them to any other person or entity.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

DIVISION 4. SHORT-TERM RENTAL PLATFORM PERMIT

Sec. 26-621. Annual short-term rental platform permit and application.

(a) Any platform that receives anything of value for directly or indirectly facilitating or conducting a booking transaction for short-term rentals in Orleans Parish shall possess a short-term rental platform permit.

(b) The short-term rental platform permit is valid for one year from the date of issuance, and shall be reapplied for and renewed annually.

(c) The short-term rental platform permit application shall require the following information, at a minimum:

(1) The applicant's name, trade name, address, and telephone number;

(2) Proof that the applicant is in good standing with the Louisiana Secretary of State and authorized to do business within the State of Louisiana;

(3) The name, address, phone number and e-mail address of the platform's local agent authorized for service of process; and

(4) The name, address, phone number and e-mail address of the platform's local agent authorized by the applicant to address and remedy any violation of this article.

(5) The names and web addresses of any portal, listing service, or website under the applicant's ownership or control that facilitates booking transactions in Orleans Parish.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19)

Sec. 26-622. Legal duties of short-term rental platform permit holders.

(a) Any person possessing a short-term rental platform permit shall comply at all times with the following requirements:

(1) No platform may collect a fee or anything of value in exchange for conducting, facilitating, or completing any booking transaction for a short-term rental of a dwelling unit in Orleans Parish that is not in compliance with this article. A short-term rental is not in compliance with this article if (i) the owner of the dwelling unit does not possess a valid short-term rental owner permit for that dwelling unit; (ii) the dwelling unit is not operated by an operator with a valid short-term rental operator permit, or (iii) use of the dwelling unit for short-term rentals would contravene the Code of the City of New Orleans, the Comprehensive Zoning Ordinance, or any other municipal, state, or federal law.

(2) Each platform shall have a duty to obtain commercial general liability insurance, with limits of not less than $1,000,000.00 per occurrence, for bodily injury, personal injury (if commercially available) and property damage arising in any way from the issuance of the short-term rental platform permit or activities conducted

pursuant to that permit. Each policy of insurance shall: (i) be issued by an insurer authorized to insure in the State of Louisiana; (ii) name the City of New Orleans as an additional insured on a primary, noncontributory basis for any liability arising directly or indirectly from the issuance of the permit (if commercially available); (iii) be maintained in full force and effect for the duration of the permit period; and (iv) include a provision requiring 30 calendar days' advance notice to the department prior to cancellation or lapse of the policy.

(3) A platform shall ensure that any portal, listing service, or website under its ownership or control that facilitates booking transactions in Orleans Parish complies with the terms and requirements of this article.

(4) A platform must verify the legal eligibility of each booking transaction they facilitate through the city's electronic verification system. Verifications shall be made as follows:

(i) Each listing must be verified before any booking transaction is facilitated.

(ii) Each listing must be reverified at least every 30 days of the prior verification in order to facilitate subsequent booking transactions.

(iii) Each listing must be reverified whenever a verifying entity knows or should know that any data it used to complete the most recent verification has changed, including but not limited to the host's name and the address of the listing.

(5) The short term rental owner or operator must report the address, operator name, owner name, and other details contained on a permit exactly as it appears on the permit to the platform for the listing to be verified through the city's electronic verification system. Deviations in spelling or other information may result in a failed verification and are solely the responsibility of the owner and operator.

(6) Platforms must submit a monthly report to the department, in a form approved by the department, that contains the following information about each of the booking transactions facilitated through the platform during the applicable reporting period:

(i) The Universal Resource Locator (URL) links of each short-term rental and exempt lodging business for which booking transactions were facilitated by the platform during the applicable reporting period; and

(ii) The confirmation code verifying eligibility for rental for each booking transaction facilitated by the platform during the applicable reporting period.

(7) Upon issuance of a subpoena from the city, provide the following information as specified in the subpoena:

(i) The total number of short-term rental properties for which booking transactions were facilitated by the platform during the applicable reporting period;

(ii) The total number of exempt lodging business properties for which booking transactions were facilitated by the platform during the applicable reporting period;

(iii) The address of any short-term rental or exempt lodging business listed on the platform for rental;

(iv) The number of booking transactions facilitated for each short-term rental during the applicable reporting period;

(v) Whether each booking transaction facilitated by the platform was for an entire unit or a partial unit;

(vi) A listing of dates during which the short-term rental was rented as part of a booking transaction facilitated by the platform during the applicable reporting period;

(vii) The amount of rent paid as part of each booking transaction facilitated by the platform for a short-term rental;

(viii) An accounting of taxes and fees collected and paid by the platform as part of each booking transaction facilitated by the platform;

(ix) The address of any short-term rental or exempt lodging business listed on the platform for rental;

(x) The name of the person or entity listing any short-term rental or exempt lodging business on the platform for rental;

(xi) The dates and durations of stays booked through the platform at any short-term rental or exempt lodging business;

(xii) The number of guests and bedrooms specified in the listing at the time of rental; and

(xiii) The number of guests included in the rental, as specified by the renter.

(b) The provisions of Division 4 shall be interpreted in accordance with other applicable state and federal law(s).
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30300, § 1, 4-10-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25; M.C.S., Ord. No. 30483, 10-9-25)

Sec. 26-622.1. Collection of payments of taxes/fees for booking transactions.

(a) With respect to any booking transaction facilitated by or through a platform, the platform shall be responsible for collecting and remitting all applicable sales and use taxes owed by the owner in accordance with the provisions of that chapter.

(b) With respect to any booking transaction facilitated by or through a platform, the platform shall collect from the owner and remit to the city the occupancy fee imposed by section 26-616(c) of this chapter. The foregoing shall be collected and remitted contemporaneously with, and in the manner prescribed for, applicable sales and use taxes.

(c) When collecting and remitting taxes and fees on behalf of an owner, each platform shall comply with all applicable federal, state and local laws and regulations regarding collection and payment of taxes.

(d) Every platform remitting taxes pursuant to this section shall maintain its records in such a manner and in such detail that will permit the director of finance or his duly authorized agents to readily verify the correctness of any tax or fee due pursuant to this article. In furtherance of this requirement and in accordance with applicable law, the director may perform an audit and examine the books, records, papers, vouchers, accounts and documents of a platform to ensure full compliance with this section.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19)

Sec. 26-623. Affirmative defenses available to platforms.

The inoperability of the city's electronic verification system shall be an affirmative defense to any enforcement action hereunder. A platform asserting this defense bears the burden of establishing that the verification system was inoperable at the time of the violation and that the platform made reasonable efforts to comply with the verification requirements.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25)

DIVISION 5. DEPARTMENT OF SAFETY AND PERMITS SHORT-TERM RENTAL RESPONSIBILITIES AND POWERS

Sec. 26-624. Departmental authority.

(a) *Receive short-term rental applications.* The department shall receive and process all short-term rental permit applications and determine applicant eligibility.

(b) *Issue eligible short-term rental permits.* The department shall issue permits only to eligible applicants, as determined by the department.

(c) *Inspections.*

(1) The director of the department or a duly authorized representative shall have the power to inspect any short-term rental to determine compliance with this article.

(2) Inspection may occur at any reasonable time, upon the production of proper identification by a representative of the department, whenever the director of the department has a reasonable belief that a dwelling unit or a short-term rental is in violation of any of the provisions of this article, the Comprehensive Zoning Ordinance, or the Building Code as provided in City Code section 26-14 et seq.

(3) Prior to any inspection of an occupied dwelling unit, the department shall present credentials to the owner, operator, or guest and request entry. If the short-term rental is unoccupied, the department shall attempt to locate the owner or operator and request entry. If the department does not obtain timely consent to enter a dwelling unit, it may attempt to secure entry as provided in subsection (4), below.

(4) Warrant for inspection. If the owner or operator of the short-term rental refuses within 72 hours of department's request, admittance to the director of the department or his/her duly authorized representative for the purpose of making an inspection or examination of the premises, the director or his representative may present an affidavit to any judge of the municipal court stating that he has cause to believe that an inspection of the designated premises will reveal designated violations of this article.

(i) The affidavit alleging probable cause shall identify the factual basis for the belief that the short-term rental is not in compliance with this article, or correlating provisions in the Comprehensive Zoning Ordinance.

(ii) Upon receiving the affidavit, the judge may issue a warrant authorizing the director or his representative to search the premises. The scope of the search authorized by the warrant shall be limited to a search for those designated, alleged violations.

(5) An owner may avoid an inspection authorized by this section by voluntarily forfeiting his or her short-term rental owner's permit, in which case the permit shall be deemed revoked. Nothing herein shall limit the authority of a law enforcement body to secure a search warrant in connection with criminal activity at a dwelling unit unrelated to compliance with this article or the authority of the department to conduct lawful inspections of a dwelling unit unrelated to compliance with this article.

(d) *Rescission of permits.* The department is authorized to cancel and rescind a permit issued under this article whenever a permit so issued is in error, was issued on the basis of inaccurate or misleading information, or contravenes this article or the Comprehensive Zoning Ordinance.

(e) *Suspension of permits where life safety issues are present.* The department may suspend a short-term rental owner permit issued under this article whenever the property it corresponds to is the subject of a violation of building code that may endanger the life or safety of persons on the property. This suspension shall end automatically when the director or their designee determines that the violation has been abated.

(f) *Identification of exempt lodging business rentals offered on platforms.* The department shall issue, at no charge to businesses, an identification number to any exempt lodging business that uses a platform to facilitate booking transactions. To obtain this identification number, the exempt lodging business must provide the department with the following information:

(1) The name of the business;

(2) The business address; and

(3) The business's occupational license.

(g) *Enforcement.*

(1) The department shall prioritize the enforcement and adjudication of violations of section 26-618(b)(1)—(7) and (17) and section 26-620(b)(1)—(7), (15) and (17) and take all available steps to adjudicate said violations immediately upon receiving evidence of the violation from a platform or otherwise.

(2) The department shall not be responsible for the enforcement of correlating taxation provisions dictated by Chapter 150 of the Code of the City of New Orleans.

(h) *Records.* The department shall maintain a registry of all permit types and correlating permit numbers issued to owners, operators, and platforms pursuant to this article.

(i) *Rules and regulations.* The department may issue rules and regulations related to the issuance of short-term rental licenses and enforcement of short-term rental laws.

(j) *Dashboard.* The department shall establish a public facing dashboard listing all short-term rental applications; owner and operator permits with photo ID cards; the addresses of properties the department has delisted from any platform, if available; and all addresses with open, pending, and adjudicated violations. The dashboard shall further indicate the number of adjudications per week and the dispensation of any adjudicated violation. In addition, the dashboard shall list all lots subject to the five-year permit revocation contained in section 26-628(f). The public facing dashboard shall be updated on weekly basis.

(k) *Electronic verification system.* The department shall establish an electronic verification system to be used by platforms to verify the legal eligibility of a property for rental before facilitating a booking transaction. The electronic verification system must be able to:

(1) Confirm that the provided address is licensed for short-term rentals or is an exempt lodging business;

(2) Confirm that the party seeking to rent the property through the platform is the licensed owner or operator of the short-term rental or exempt lodging business;

(3) Confirm that the license is current and will not expire before the rental being facilitated will occur;

(4) Provide a unique confirmation code that the verification has occurred; and

(5) Retain all information related to these verifications, including but not limited to the following:

(i) Platform's unique identifier for the property and/or URL of the listing;

(ii) Address of the property being rented;

(iii) Identity of the operator or owner offering the property for rental;

(iv) Confirmation code issued to the platform for the verification.

(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30074, § 1, 10-10-24, eff. 8-1-25; M.C.S., Ord. No. 30244, § 1, 3-13-25; M.C.S., Ord. No. 30319, § 1, 4-24-25; M.C.S., Ord. No. 30376, § 1, 6-26-25)

Sec. 26-625. Permit issuance and renewal—Departmental determination.

(a) The department shall issue a permit to any applicant who meets all of the requirements set forth in this article, as applicable; however, notwithstanding the foregoing, the department shall not issue or renew a permit for any applicant if any of the following conditions exist:

(1) There is a judgment from the city related to the subject property or against the applicant which has not been fully satisfied;

(2) There are unpaid taxes, fees, fines or penalties levied by the city against the property, property owner(s), or the applicant;

(3) The applicant is a juridical entity that is not in good standing with the State of Louisiana;

(4) There are open permits for new construction, structural or non-structural renovation, and/or electrical or mechanical work on the subject property; and/or

(5) There are open violations on the subject property related to any of the following:

a. Electrical or mechanical code violations;

b. Work without permits; or

c. The provisions of this article.

(6) The applicant had a short-term rental permit that was revoked or suspended for a term that has not yet expired.

(b) The issuance or renewal of a permit under this article shall not be deemed to warrant, on behalf of the city, that the owner, operator, or platform is in compliance with law or that a dwelling unit is fit for occupancy. This article shall not create any right of action against the city by a guest or any third-party.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

DIVISION 6. ENFORCEMENT

Sec. 26-626. Violations—Notice and hearing.

(a) Any violation of this article is prohibited, and shall subject the owner, operator, or platform to penalties as provided in section 26-629.

(b) Notice and hearing requirements for determining violation(s) shall be in accordance with the administrative procedures provided in Chapter 6, Article II of the Code of the City of New Orleans.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19)

Sec. 26-627. Immediate suspension procedures—Owner permit.

(a) If the department has good cause to believe that the use of a dwelling unit as a short-term rental presents an imminent threat to public health, safety, or welfare, the director of the department, by issuance of a written order stating the reasons for such belief, may immediately suspend the short-term rental owner permit with respect to the unit without a hearing. The department shall transmit notice of the director's written order within 24 hours of the determination, and shall send said order to the owner's contact information provided to the department in the owner permit application.

(b) No dwelling unit subject to an order of suspension may be used as a short-term rental.

(c) Within 14 days of the written order of suspension, a short-term rental owner may request a hearing in writing, directed to the director of the department. The hearing shall take place within seven business days of the written request for a hearing. If the owner fails to timely request a hearing, the short-term rental owner's permit shall be deemed revoked.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19)

Sec. 26-628. General suspension and revocation procedures.

(a) A permit issued pursuant to this article may be suspended for a term or revoked in its entirety for violations of this article or any other law incorporated herein.

(b) If a permit is revoked, the permittee may not reapply for a permit for a period of five years from the date of revocation.

(c) The decision to suspend or revoke a permit shall be at the discretion of the hearing officer based on the severity of the violation and any other mitigating or aggravating circumstances surrounding the violation.

(d) Without limiting the situations in which the hearing officer might deem revocation appropriate, revocation shall be mandatory in the following circumstances:

(1) A short-term rental owner permit shall be revoked if the hearing officer determines by a preponderance of the evidence that:

i. The owner violated section 26-618(a)(3).

ii. The owner violated section 26-618(a)(4).

iii. The owner violated section 26-618(a)(7).

iv. The owner violated section 26-618(a)(8).

v. The owner violated section 26-618(b)(1).

vi. The owner violated section 26-618(b)(2).

vii. The owner violated section 26-618(b)(3).

viii. The owner violated section 26-618(b)(4).

ix. The owner violated section 26-618(b)(5)

x. The owner violated section 26-618(b)(6)

xi. The owner violated section 26-618(b)(7)

xii. The owner violated section 26-618(b)(8)

xiii The owner violated section 26-618(b)(14)

xiv. The owner violated section 26-618(b)(17)

xv. The owner made false, misleading or fraudulent statement(s) in the permit application, subterfuge for the purpose of evading any requirement of this article.

xvi. Any three separate violations of any of the following sections have occurred during a 12-month period:

a. Section 26-618(a)(1)

b. Section 26-618(a)(2)

c. Section 26-618(a)(5)

d. Section 26-618(a)(6)

e. Section 26-618(a)(9)

f. Section 26-618(a)(10)

g. Section 26-618(a)(11)

h. Section 26-618(a)(12)

i. Section 26-618(b)(9)

j. Section 26-618(b)(10)

k. Section 26-618(b)(11)

l. Section 26-618(b)(12)

m. Section 26-618(b)(13)

n. Section 26-618(b)(15)

o. Section 26-618(b)(16)

(2) A short-term rental operator permit shall be revoked if the hearing officer determines by a preponderance of the evidence that:

i. The operator violated section 26-620(a)(3).

ii. The operator violated section 26-620(a)(4).

iii. The operator violated section 26-620(a)(7).

iv. The operator violated section 26-620(a)(8).

v. The operator violated section 26-618(b)(1).

vi. The operator violated section 26-618(b)(2).

vii. The operator violated section 26-618(b)(3).

viii. The operator violated section 26-618(b)(4).

ix. The operator violated section 26-618(b)(5).

x. The operator violated section 26-618(b)(6).

xi. The operator violated section 26-618(b)(7).

xii. The operator violated section 26-620(b)(8).

xiii. The operator violated section 26-620(b)(14).

xiv. The operator violated section 26-620(b)(15).

xv. The operator violated section 26-620(b)(18).

xvi. The operator made false, misleading or fraudulent statement(s) in the permit application, or misrepresented material facts in the permit application, or used any scheme or subterfuge for the purpose of evading any requirement of this article.

xvii. Any three separate violations of any of the following sections have occurred during a 12-month period:

a. Section 26-620(a)(1)
b. Section 26-620(a)(2)
c. Section 26-620(a)(5)
d. Section 26-620(a)(6)
e. Section 26-620(a)(9)
f. Section 26-620(a)(10)
g. Section 26-620(b)(9)
h. Section 26-620(b)(10)
i. Section 26-620(b)(11)
j. Section 26-620(b)(12)
k. Section 26-620(b)(13)
l. Section 26-620(b)(16)
m. Section 26-620(b)(17)
n. Section 26-620(b)(19)

(e) An appeal with respect to the revocation of any short-term rental permit must be executed within 30 days of the issuance of the order of revocation.

(f) When an owner or operator permit is revoked under section 26-628(d)(1) or section 26-628(d)(2), a hearing officer shall order that a property be prohibited from operating as a short-term rental for a period of five years. This order, once recorded, shall constitute a charge on the immovable property that shall be effective against third parties and shall prohibit all current and future owners from obtaining a short-term rental owner's permit on the property for the period of five years from the date of the order.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23)

Sec. 26-629. Penalties.

(a) Any person who violates this article or the Comprehensive Zoning Ordinance shall be subject to a fine of not less than $1,000.00 for each offense. Each day that such violation exists shall constitute a separate and distinct offense. Multiple violations may relate to the same guest stay, day, action, situation, or event, and may be noticed and heard in a single administrative hearing.

(b) In addition to any fine or penalty imposed by this article, the city may seek all available relief in a court of competent jurisdiction to enjoin any violation.

(c) The city may seek any remedy to compel compliance with the requirements of this article or any correlating provision in the Comprehensive Zoning Ordinance, including the discontinuance of electrical service and the filing of property liens.

(d) The city may revoke or suspend any and all permits required by this article, as provided herein. If a permit issued pursuant to this article is revoked, such revocation shall remain in effect for a period of five years from the date of revocation. The duration of suspensions shall be as dictated by the hearing officer's order.
(M.C.S., Ord. No. 28157, § 1, 8-8-19, eff. 12-1-19; M.C.S., Ord. No. 29381, § 1, 3-23-23, eff. 7-1-23; M.C.S., Ord. No. 30010, § 1, 8-8-24)

Sec. 26-630. Private right of action.

(a) Any owner or lawful occupant of property within 300 feet of the lot line of any property operating as a short-term rental in violation of this article, in addition to any person who otherwise satisfies the jurisprudential requirements for legal standing to assert a claim, shall have a private right of action against the owner or operator of the short-term rental to enjoin violations of this article.

(b) The requirements of this article constitute rules of public order, violations of which may be preliminarily enjoined without the demonstration of irreparable injury.

(c) Any person who successfully obtains injunctive relief by prosecuting a private action authorized by subsection (a) shall be entitled to reasonable attorney's fee incurred in prosecuting the action.

(d) The private right of action created by this section shall be in addition to, and not in lieu of, any other legal rights to seek damages or pursue injunctive or other relief against short-term rental owners and operators for nuisances or other violations of this article or other laws.
(M.C.S., Ord. No. 29381, § 2, 3-23-23, eff. 7-1-23)

Secs. 26-631—26-639. Reserved.

ARTICLE XII. INCLUSIONARY ZONING STANDARDS

Sec. 26-640. Purpose.

(a) This article sets forth comprehensive standards governing the city's inclusionary zoning program and compliance therewith.

(b) This article is adopted pursuant to the city's police power in order to create additional opportunities for affordable housing within the city, and to serve the health, safety and welfare of the citizens of New Orleans by enhancing the options for affordable housing within city limits. (M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-641. Definitions.

Except as otherwise expressly provided in this article, the following terms and their variant forms shall mean the following:

Affordable housing means housing as defined in the CZO.

Affordable housing development means any development which includes residential use that creates a specified percentage of affordable housing units whether on one lot or on adjoining lots in common ownership or common control and is located within a designated Mandatory Inclusionary Zoning Sub-District (MIZ) or an Affordable Housing Planned Development (AHPD), or is participating in Voluntary Inclusionary Zoning (VIZ).

Affordable housing income statement (AHIS) means a statement outlining the affordable housing to be provided by an affordable housing development, as more fully described in the Comprehensive Zoning Ordinance.

Affordable housing planned development means a planned development pursuant to Section 5 of the Comprehensive Zoning Ordinance that incorporates affordable housing units and constitutes an affordable housing development under the terms of this ordinance and under the Comprehensive Zoning Ordinance.

Affordable housing unit means any housing unit with affordable rent required as part of a residential development subject to the inclusionary zoning regulations outlined in this ordinance or within the Comprehensive Zoning Ordinance.

Affordable rent means the rent paid for a dwelling unit that is defined herein as affordable housing.

Area median income (AMI) means the housing area median income set forth in or calculated from regulations promulgated by the United States Department of Housing and Urban Development pursuant to Section 8 of the Housing Act of 1937, as amended by the Housing and Community Development Act of 1974, determined for the City of New Orleans and adjusted for family size.

Department means the department of safety and permits.

Dwelling unit means a room or group of rooms, in a permanent structure, that provides complete, independent living facilities, including permanent provisions for living, sleeping, eating, cooking and sanitation.

Inclusionary zoning means the requirements outlined herein and in the Comprehensive Zoning Ordinance which require that a certain percentage of dwelling units within a development be rented only to people whose income does not exceed the thresholds set by those laws.

Inclusionary zoning permit means a permit that affordable housing developments must hold, maintain, and renew annually with the department of safety and permits that verifies that the affordable housing development is in compliance with all inclusionary zoning requirements set forth herein, in the Comprehensive Zoning Ordinance, or in any other relevant law or statute.

Mandatory inclusionary zoning means the subdistricts identified in the Comprehensive Zoning Ordinance requiring affordable housing developments to provide affordable housing units

in accordance with the law. Generally, such districts are signified with the addition of "-IZ" to the end of their zoning district abbreviation or name.

Phased development means an affordable housing development that will be constructed in distinct and separate phases.

Voluntary inclusionary zoning means properties not included in mandatory inclusionary zoning subdistricts whose owners or developers elect to avail themselves of the incentives set forth in the Comprehensive Zoning Ordinance in exchange for providing a specified amount of affordable housing units within their development.
(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-642. Inclusionary zoning permits required.

For any of the following developments, an inclusionary zoning permit is required to be maintained at all times:

(1) A multifamily or mixed use development with ten or more dwelling units located within a mandatory inclusionary zoning subdistrict;

(2) A multifamily or mixed use development that has opted to participate in voluntary inclusionary zoning;

(3) A development which is subject to an affordable housing planned development.

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-643. Required affordable units.

The formula determining the number of affordable units required for both mandatory and voluntary IZ is set forth in the Comprehensive Zoning Ordinance.
(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-644. Incentives for IZ projects.

(a) *Payments in lieu of taxes.*

(1) Both MIZ and VIZ projects shall be eligible to apply for a payment in lieu of taxes (PILOT) with the Finance Authority of New Orleans (FANO), provided that an effective cooperative endeavor agreement (CEA) between the city and FANO is in place at the time of application.

(2) The department may promulgate rules and regulations pertaining to PILOT applications for affordable housing developments.

(3) Applications for PILOTs for affordable housing developments may require application fees to be submitted to FANO. Such application fees will be set forth on the PILOT application.

(4) PILOTs granted to affordable housing developments pursuant to the CEA between the city and FANO shall have a ten-year PILOT period.

(5) PILOTs granted to affordable housing developments pursuant to the CEA between the city and FANO shall require applications on a form created by FANO and approved by the city, which shall include, at a minimum:

a. Lease terms for the PILOT development;

b. The duration of the PILOT; and

c. The annual service charge for the PILOT.

(b) *Restoration tax abatement.*

(1) Both MIZ and VIZ developments which are not new construction shall be eligible to apply for a restoration tax abatement (RTA) with the City of New Orleans as well as renewal of an RTA with the city council in accordance with Resolution R-20-10.

(2) Any affordable housing development seeking an RTA must meet all criteria set

forth herein, or in any other law, resolution, rule, or regulation of the City of New Orleans.

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-645. Application requirements and procedures.

(a) Any affordable housing development must apply for and maintain inclusionary zoning permits with the department.

(1) No certificate of occupancy shall be granted for an affordable housing development subject to an AHPD, MIZ, or VIZ without a valid inclusionary zoning permit.

(2) The department may promulgate rules and regulations related to applications for inclusionary zoning permits.

(3) The department shall create application forms to be used by applicants for permitting, which shall, at a minimum, require the following information:

a. The number of total dwelling units in the development;

b. The number of units added at the AMI levels at or below 80%, 50%, and 30%;

c. The number of units removed at the AMI levels at or below 80%, 50%, and 30%, if any;

d. The bedroom mix of all dwelling units in the development;

e. The bedroom mix of all affordable housing units in the development at each of the above-specified AMI levels;

f. The rents at which all affordable housing units will be offered;

g. Proof of income for all tenants leasing affordable housing units, and

h. The total number of dwelling units removed, if any.

(b) The annual permit fees, and renewals thereof, shall be due upon application filing and shall be as follows: Inclusionary zoning permit (per affordable housing unit in an AHPD, VIZ, or MIZ) shall be $500.00. Any AHPD, VIZ or MIZ development that is funded by a funding source which already monitors income certification including, but not limited to, HANO, LIHTC, HOME, CDBG or NHIF funds shall be exempt from the permitting fee. Proof of this financing must be submitted with the application or renewal in order to be exempt.

(c) Renewal of inclusionary zoning permits.

(1) Permittees must renew inclusionary zoning permits for each affordable housing development on an annual basis.

(2) The department may promulgate rules and regulations related to renewal applications for inclusionary zoning permits.

(3) The department shall create application forms to be used by applicants for renewal, which shall, at a minimum, require the following information:

a. The rents at which all affordable housing units will be offered;

b. Proof of income for all tenants leasing affordable housing units; and

c. Identification of any affordable housing units which have transitioned to market rate units, along with information identifying the substitute affordable housing unit.

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-646. Required standards for affordable housing developments.

(a) Affordable housing developments must at all times possess a valid inclusionary zoning permit, which must be reapplied for on an annual basis.

(b) Affordable housing developments must adhere to the use and design standards set forth in Chapter 28 of the Comprehensive Zoning Ordinance.

(c) Affordable housing units must maintain their inclusionary zoning permit and be offered at affordable rent for a term of no less than 99 years from the date the certificate of occupancy is issued to the development.

(d) Affordable housing developments must comply with all measures required by law to ensure compliance with these requirements and those set forth in the Comprehensive Zoning Ordinance.

(e) Affordable housing developments shall include the following terms in any lease of an affordable housing unit:

(1) *Income.* Tenant understands that this lease is being offered pursuant to an inclusionary zoning permit and that this dwelling unit is defined by City Code as an affordable housing unit. Affordable housing units must be offered at a rent no higher than the amount defined in Chapter 26 of the City Code as well as the Comprehensive Zoning Ordinance as an affordable rent and must be offered to tenants who meet certain maximum income thresholds. As such, tenant must allow owner to verify their income on at least an annual basis, and on other occasions as may be required by law.

(2) *Renewal of lease subject to income requirements.* Tenant understands that their eligibility to lease this dwelling unit is based on their income being below the thresholds set by law. As such, tenant further understands that if their income rises above the required maximum level set by Chapter 26 of the City Code as well as the Comprehensive Zoning Ordinance within the first nine months of any annual lease term, their lease may not be renewed. Tenant must provide notice to owner of their change in income within 30 days of the change becoming effective. If the tenant's income rises above 60 percent, owner may increase rent to lesser of 30 percent adjusted income or market rent. Owner may elect to transition the tenant's rent to market rate rent and renew the lease or may decline to renew the lease at the end of the lease. Owner must notify tenant of their election under this provision within 60 days of termination of the lease.

(f) Affordable housing developments shall record the following documents in the conveyance and mortgage records for Orleans Parish:

(1) A copy of their affordable housing income statement (AHIS);

(2) A copy of their inclusionary zoning permit; and

(3) A statement that the property has been granted a certificate of occupancy as an affordable housing development, and that they, as well as any assignees or transferees of the property, understand that maintenance of an inclusionary zoning permit and compliance with all requirements thereunder, shall be required for the entire 99-year term.

(g) Affordable housing units shall be offered on a floating basis. This means that when and if a designated affordable housing unit transitions to market rate rental, another dwelling unit within the building must be identified as an affordable housing unit and must meet all the standards set forth herein and in the Comprehensive Zoning Ordinance.

(h) Income requirements.

(1) Affordable housing developments must attest as part of their inclusionary zoning permit application that they have verified the incomes of any persons renting affordable housing units and that their incomes are no higher than the income requirements set out in this ordinance and in the Comprehensive Zoning Ordinance.

(2) Affordable housing developments must annually attest, as part of the renewal of their inclusionary zoning permit, that they have verified the incomes of any

persons renting affordable housing units and that their incomes are no higher than the income requirements set out in this ordinance and in the Comprehensive Zoning Ordinance.

(3) Such attestations will be made on forms created by the department. The department may promulgate rules and regulations pertaining to these attestations, including required evidence of income, protection of sensitive information, and any other aspect of the income requirements of this ordinance and of the Comprehensive Zoning Ordinance.

(4) Permittees must maintain income records for all affordable housing unit tenants at all times, and must permit city inspection of same upon request to verify compliance.

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-647. Compliance and enforcement requirements for affordable housing developments.

(a) Affordable housing developments must comply at all times with all of the requirements of this ordinance as well as the Comprehensive Zoning Ordinance.

(b) Affordable housing developments must at all times possess a valid inclusionary zoning permit.

(c) Violations.

(1) Any violation of this article is prohibited and shall subject the owner and/or developer and/or permittee to any legal remedies allowed under the law.

(2) Notice and hearing requirements for determining violation(s) shall be in accordance with the administrative procedures provided in Chapter 6, Article II of the Code of the City of New Orleans.

(d) Penalties.

(1) Any person who violates this article or the Comprehensive Zoning Ordinance shall be subject to a fine of not less than $500.00 for each offense. Each day that such violation exists shall constitute a separate and distinct offense. Multiple violations can be noticed and heard in a single administrative hearing.

(2) In addition to any fine or penalty imposed by this article, the city may seek all available relief in a court of competent jurisdiction to enjoin any violation.

(3) The city may seek any remedy to compel compliance with the requirements of this article or any correlating provision in the Comprehensive Zoning Ordinance, including the discontinuance of electrical service and the filing of property liens.

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-648. Fees in lieu of provision of required affordable housing units.

(a) Should an affordable housing development find it impossible or impractical to provide the affordable housing units as required herein and in the Comprehensive Zoning Ordinance, the permittee may instead pay a one-time fee-in-lieu at the rate of $304,810.00 per required affordable housing unit that has not been provided or that does not achieve full compliance with the requirements of the inclusionary zoning permit.

(b) Any fee-in-lieu payment made under this section shall be dedicated to the City of New Orleans Neighborhood Housing Improvement Fund ("NHIF").

(M.C.S., Ord. No. 28546, § 1, 11-19-20, eff. 7-1-21; M.C.S., Ord. No. 29381, § 4, 3-23-23, eff. 7-1-23)

Sec. 26-649. Reserved.

ARTICLE XIII. HEALTHY HOMES PROGRAM*

DIVISION 1. IN GENERAL

Sec. 26-650. Title.

This article shall be known as the healthy homes program.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-651. Purpose and scope.

The purpose of this article is to protect the health, safety and welfare of the public by ensuring persons who reside in Orleans Parish occupy safe and habitable dwellings. The purpose shall be accomplished by requiring registration of residential rental property, by imposing basic requirements for habitability, and by securing the rights of lessees to report violations without fear of retaliation. This article shall be construed liberally to secure this express intent.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-652. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Certificate of compliance* means a certificate or other instrument issued by the department to the owner or lessor of a residential housing unit evidencing registration of that unit in accordance with this article.

(b) *Department* means the department of safety and permits or its designee.

(c) *Director* means the director of the department or the director's designee.

(d) *Lessee* means a person occupying or in possession of a rental housing unit pursuant to a written or oral agreement.

(e) *Lessor* means the owner or owners of the rental housing unit.

(f) *Rental housing unit* means a room, or group of rooms, providing complete, independent living facilities, including permanent provisions for living, sleeping, eating, cooking, and sanitation for one or more persons that is or will be occupied by a lessee for residential purposes in exchange for any form of consideration. Rental housing unit shall include short-term rentals but shall not include the following:

(1) Dwelling units located in hotels, motels, bed and breakfasts, hostels, or RV parks;

(2) Dwelling units located in any state-licensed hospital, hospice, community-care facility, intermediate-care facility, or nursing home; or

(3) Dwelling units owned, managed, or operated by an educational or medical institution, or by a third party for any of the above institutions, when units are used for the sole use of employees, students, patients or others directly related to the academic or medical mission of the institution.

(M.C.S., Ord. No. 29239, § 1, 11-3-22; M.C.S., Ord. No. 29758, § 1, 12-1-23)

Sec. 26-653. Administration.

The department, or its designee, shall be responsible for the administration and enforcement of this article. The department shall promulgate regulations that set forth criteria for determining compliance with the requirements and minimum rental standards set forth herein.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

*__Editor's note—__M.C.S., Ord. No. 29239, § 2, states: That the provisions of this Ordinance shall become effective on July 1, 2023, except as otherwise provided in this section. Lessors shall have 45 days from the effective date to register Rental Housing Units and to secure a Certificate of Compliance in accordance with this Article XIII. No person shall be cited or otherwise found liable for a violation of Sec. 26-660 occurring on or before August 14, 2023.

Sec. 26-654. Fees.

(a) There shall be no fee imposed for the timely registration of a rental housing unit or any renewal thereof.

(b) A lessor who fails to timely apply for or renew a certificate of compliance shall be assessed a fee of $50.00 if the application is made during the first 60 days that the certificate of compliance is delinquent and, thereafter, a $200.00 reinstatement fee.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-655. Database.

The city shall ensure the following data is publicly available:

(a) The address of the registered rental housing unit;

(b) Information regarding past and pending inspections, including the result of any inspections;

(c) The date on which the certificate of compliance was received;

(d) Violations of section 26-656 that were cited at the property; and

(e) Revocations of certificates of compliance.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-656. Minimum rental standards.

A rental housing unit leased for occupancy in Orleans Parish shall comply with the following standards:

(a) Each rental housing unit shall have an operable fire and smoke detection system and alarm. A system with missing or expired batteries shall still be deemed operable if it functions properly when new batteries are inserted.

(b) When required by the Fire Code of the City of New Orleans or by La. R.S. 40:1581, each housing unit shall have an operable carbon monoxide detector with a long-life sealed battery.

(c) Each rental housing unit shall contain one or more bathtubs or showers, lavatories, flush-type water closets or toilets, and kitchen sinks. All such plumbing fixtures shall be maintained in a sanitary and good working condition and shall be properly connected to the public sewer system or to an approved private system if the public system is not available.

(d) All kitchen sinks, lavatories, bathtubs and showers shall be supplied with hot and cold running water and shall be otherwise operable.

(e) Water heating facilities shall be in good working condition, and capable of providing an adequate amount of water to be drawn at every required sink, lavatory, bathtub, and shower at a minimum temperature of 110 degrees Fahrenheit.

(f) Each rental housing unit shall have heating facilities in good working order that can safely maintain a minimum room temperature of 68 degrees Fahrenheit in all habitable rooms, bathrooms, and toilet rooms. Cooking appliances shall not be used to provide space heating to meet the requirements of this section.

(g) Each rental housing unit shall have a cooling system in good working order that can safely maintain a maximum temperature of 80 degrees Fahrenheit in all bedrooms, measured at a point three feet above the floor and two feet from exterior walls.

(h) Each rental housing unit shall have a properly maintained electrical system, which shall be in a safe working condition and capable of performing its intended function.

(i) If provided by the lessor, all mechanical appliances, operative fireplaces, solid-fuel-burning appliances and cooking appliances shall be properly installed and maintained in a safe working condition, and shall be capable of performing the intended function.

(j) Roofs, windows, and exterior doors must be adequate to prevent dampness or deterioration in the walls or interior

portions of the rental housing unit. No evidence of mold shall be present on the interior of the unit. The roof and flashing shall be sound, tight and free of defects that admit rain.

(k) All interior surfaces shall be maintained free of significant cracking, decaying or other defective surface conditions. Holes in interior walls and floors shall be sealed as necessary.

(l) Each rental housing unit and its exterior property shall be kept free from visible rodent harborage and infestation.

(M.C.S., Ord. No. 29239, § 1, 11-3-22; M.C.S., Ord. No. 30078, § 1, 10-10-24; M.C.S., Ord. No. 30564, § 1, 3-12-26)

Secs. 26-657—26-659. Reserved.

DIVISION 2. REGISTRATION REQUIRED

Sec. 26-660. Occupancy of rental housing units without certificate of compliance prohibited.

It shall be unlawful for any person who does not possess a valid certificate of compliance to permit occupancy of a rental housing unit in Orleans Parish.

(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-661. Registration and submittal requirements.

(a) A certificate of compliance shall be valid for a period of two years from the date of issuance, and must be reapplied for and renewed every two years.

(b) A separate certificate of compliance shall be required for each rental housing unit located on a single lot of record. The department shall, however, adopt streamlined procedures for consolidating submissions and for issuing certificates of compliance involving multi-unit lots.

(c) An application for a certificate of compliance shall be made on forms created by the department, which shall, at a minimum, require the following information to be submitted at the time of registration:

(1) The address of the rental housing unit.

(2) A listing of any other rental housing units on same lot of record.

(3) The name, address, telephone number, and e-mail address of the lessor. The address must be a physical address at which legal process and notices relative to the rental housing unit may be served. A post-office box or similar mailing address may not be accepted. In the case of a juridical lessor, the submission shall include the same of the registered agent or other duly authorized representative.

(4) The name, address, telephone number and email address of the property manager or other person the lessee should contact to request repairs or to raise issues regarding the condition of the rental housing unit, if different from the owner. A post-office box or similar mailing address may not be accepted.

(5) A statement made under penalty of perjury that the lessor or an agent for the lessor has conducted a reasonably recent inspection of the rental housing unit and found it to comply with the minimum rental standards set forth in section 26-656.

(d) An applicant will not be eligible for a certificate of compliance if any of the following conditions exist:

(1) There are delinquent property taxes on the subject property;

(2) There are outstanding fines on the subject property;

(3) There are open permits that would render the unit unfit for habitation; or

(4) There are open violations on the subject property related to electrical or mechanical code violations or to work without permits.

(e) If the department has reason to believe that anything in the application is inaccurate, that the rental housing unit is not compliant with the minimum rental standards set forth in section 26-656, or that any circumstance exists that would provide cause not to issue a certificate of compliance, the department may require additional documentation from the lessor and, if appropriate, require an inspection of the unit before issuing a certificate of compliance.

(f) Upon receipt of a complete application that meets all required criteria, the department shall promptly issue a certificate of compliance to the lessor in a format designated by the department. The certificate of compliance shall indicate that the lessor has certified that the rental housing unit complies with the minimum rental standards set forth in section 26-656 and provide the name, address, telephone number, and e-mail for the lessor and property manager, as well as the address at which lessee complaints may be made to the city.

(g) The department may rescind any certificate of compliance or renewal thereof issued in error; on the basis of incorrect, inaccurate or false statements; or in violation of any law.
(M.C.S., Ord. No. 29239, § 1, 11-3-22; M.C.S., Ord. No. 30104, § 1, 10-24-24)

Sec. 26-662. Certificate of compliance—notice to lessees.

(a) A lessor shall provide a copy of the certificate of compliance, and any renewal thereof, to the occupants of a rental housing unit by depositing same in the unit's mailbox or in such other manner as rental-related correspondence is customarily delivered to the lessee. A copy of the minimum rental standards set forth in section 26-656 shall also be provided.

(b) On a lot of record containing four or more rental housing units, the lessor shall post a copy of the minimum rental standards set forth in section 26-656 and the rights of lessee as provided for in section 26-680 in a location clearly visible and accessible to lessees and maintain said posting in a legible condition.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-663. Renewal.

Renewal applications must be submitted before the expiration of the then-current certificate of compliance on forms created by the department, and shall require the same or substantially similar information and certifications as those required by section 26-661(c).
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-664. Change of ownership or other information.

(a) A certificate of compliance is not transferrable. Any person who acquires ownership of a rental housing unit shall re-register the rental housing unit, as required by section 26-661, within 90 days of acquiring the unit.

(b) The lessor shall notify the department of any material changes in the information required by section 26-661(c) within 30 days of its occurrence and, if necessary, receive a corrected certificate of compliance reflecting accurate and current information.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-665. Multiple owners.

Only one certificate of compliance shall be required for co-owned property. All owners shall be listed on the application for the certificate of compliance, and shall be solidarily liable for violations of this article.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-666. Subleased and managed property.

Only one certificate of compliance shall be required for property that is subleased or subject to a property management agreement. All sublessors and property managers shall be listed on the application for the certificate of compliance in the same manner as property owners. All sublessors and property management companies shall be solidarily liable for violations of this article.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Secs. 26-667—26-669. Reserved.

DIVISION 3. ENFORCEMENT

Sec. 26-670. Violations—Notice and hearing.

(a) Any violation of this article is prohibited, and shall subject the lessor to penalties not to exceed the maximum monetary amount that may be imposed pursuant to state law.

(b) Each day that such violation exists shall constitute a separate and distinct offense. Multiple violations of this article can occur and may be noticed and heard in a single administrative hearing.

(c) Notice and hearing requirements for determining violations shall be in accordance with the administrative procedures provided in Chapter 6, Article II of the Code of the City of New Orleans.

(d) Failure to comply with any provision of this article shall be deemed a "housing violation" subject to enforcement, penalty, and tax liens, as provided for in the applicable provisions of state law.

(e) In addition to any fine or penalty imposed by this article, the city may seek all available relief in a court of competent jurisdiction to enjoin any violation and may pursue any remedy to compel compliance with the requirements of this article, including the discontinuance of electrical service upon revocation of the certificate of compliance.

(f) The department shall have the right to subpoena records from lessors and lessees to enforce the provisions of this article.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-671. Revocation of certificate of compliance.

(a) Without limiting the remedies available for non-compliance with this article, a hearing officer may order the revocation of a certificate of compliance for repeated or intentional violations of this article or in circumstances where occupancy of a rental housing unit would be deleterious to the health and safety of its residents.

(b) If the revocation of a certificate of compliance would result in the displacement of an existing lessee or occupant, the lessee of the unit shall be entitled to notice of the administrative hearing where revocation is decided and an opportunity to be heard, as well as 60-days to vacate the premises, unless exigent circumstances require a shorter period.

(c) A certificate of compliance that has been revoked for violation of this article shall not be reissued until all violations are cured and all outstanding fines, fees, and liens satisfied.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-672. Emergency procedures.

Nothing herein shall be construed to abrogate or limit the city's authority under section 26-242 to take action in emergency situations involving an imminent danger to life, health, property, or public safety.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Secs. 26-673—26-679. Reserved.

DIVISION 4. NON-RETALIATION AND LESSEE SUPPORT

Sec. 26-680. Rights of lessees; retaliation prohibited.

(a) Any lessee may report potential violations of this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code by contacting the department and requesting an inspection of a rental housing unit to ensure compliance with the standards contained in this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code.

(b) Lessees shall have the right to pursue protected activity pursuant to this section without fear of retaliation. For purposes of this section, "protected activity" includes:

(1) Notifying the lessor or the lessor's agent of any violation of any provision of this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code;

(2) Requesting corrective action reasonably calculated to redress any violation of this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code;

(3) Notifying regulatory authorities or members of the public of any violation of this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code; or

(4) Providing testimony in court or administrative proceedings relative to any violation of this article or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code.

(c) Prohibited acts of retaliation include, but are not limited to, unlawful termination of a lease, decreasing services, increasing the rent or fees, bringing or threatening to bring a lawsuit against a lessee for possession, or refusing to renew a lease, where such acts are motivated by the good-faith exercise of protected activity.

(d) There shall be a rebuttable presumption that the lessor has committed a prohibited act of retaliation if (i) a lessor engages in any prohibited acts of retaliation, as described in subsection (c) above, within six months of a lessee, or a lessee's representative, engaging in protected activity, and (ii) there exists probable cause to believe a violation of this section or sections 26-156 thru 26-230 of the Minimum Property Maintenance Code has been committed, as evidenced by a citation or notice of violation issued by the appropriate enforcement agency, photographs, or other evidence."
(M.C.S., Ord. No. 29239, § 1, 11-3-22; M.C.S., Ord. No. 29497, § 1, 6-22-23)

Sec. 26-681. Overcoming rebuttable presumption of retaliation.

(a) A lessor can overcome the rebuttable presumption of retaliation under this Code section for increasing rent or reducing services:

(1) Under an escalation clause in a written lease for utilities, taxes, or insurance;

(2) As part of a pattern of rent increases or for reducing services as part of a pattern of service reductions, for an entire residential building or complex if a lessor can show by a preponderance of evidence that the lessor had sufficient justification for engaging in the conduct that created the presumption and would have engaged in the conduct in the same manner and at the same time whether or not the lessee engaged in the protected conduct described in section 26-680(b);

(3) As part of a rent increase due to the terms of the lessee's or lessor's participation in a program regulated by this state or the federal government involving the receipt of federal funds, lessee assistance, or tax credits; or

(4) By showing that the lessee failed to make reasonable attempts to notify the lessor of the needed repair.

(b) A lessor can overcome the rebuttable presumption of retaliation under this Code section for a dispossessory action or lease or rental agreement termination in accordance with this article based upon one or more of the following circumstances:

(1) The lessee is delinquent in rent when the lessor gives notice to vacate or files a dispossessory action;

(2) The lessee, a member of the lessee's family, or a guest or invitee of the lessee intentionally damages property on the premises or by word or conduct threatens the personal safety of the lessor, the lessor's employees, or another lessee;

(3) The lessee has otherwise breached the lease agreement between the parties, other than by holding over following a notice of lease non-renewal for no cause; or

(4) By showing that the lessee failed to make reasonable attempts to notify the lessor of the needed repair.
(M.C.S., Ord. No. 29239, § 1, 11-3-22)

Sec. 26-682. Anti-displacement fund.

(a) Lessees displaced as a result of enforcement of this article shall be entitled to apply for grants to help subsidize alternate housing from the city's renter anti-displacement fund.

(b) Receipt of a grant from the anti-displacement fund shall be a privilege and not a right, and may be subject to fund availability and such eligibility criteria as the city may impose.

(c) The payment of grants from the anti-displacement fund to subsidize alternate housing for renters displaced as a result of a lessor's failure to comply with the minimal rental standards shall give rise to a legal obligation on the part of the lessor in favor of the city. The foregoing obligation must be satisfied, in full and with interest at the judicial rate, before a lessor may secure or renew a certificate of compliance. (M.C.S., Ord. No. 29239, § 1, 11-3-22)

ARTICLE XIV. BUILDING ENERGY BENCHMARKING AND DISCLOSURE*

Sec. 26-683. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administering agency means the agency or department designated by the Mayor to administer the benchmarking program consistent with the provisions of this article.

Benchmark means to input and submit the total energy consumption of a property for a calendar year, and other descriptive information for such property as required by the benchmarking tool. Total energy consumption does not include separately metered uses not integral to building operations, such as broadcast antennas and electric vehicle charging stations.

Benchmarking tool means the U.S. Environmental Protection Agency's ENERGY STAR Portfolio Manager, or any additional or alternative tool adopted by the administering agency used to track and assess the energy use of certain properties relative to similar properties.

Condominium means a property that combines separate ownership of individual units with common ownership of other elements such as common areas.

Covered property means one or more buildings on a tax parcel that measure 20,000 or more gross square feet in total combined floor area except for property owned by the state or federal government.

Energy means electricity, natural gas, steam, or other product sold by a utility to a customer of a property, or renewable on-site electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses captured by ENERGY STAR Portfolio Manager.

ENERGY STAR Portfolio Manager means the tool developed and maintained by the U.S. Environmental Protection Agency to track and assess the relative energy performance of buildings nationwide.

Owner means any of the following:

(a) An individual or entity possessing title to a covered property;

(b) The board of managers in the case of a condominium;

(c) The master association, in the case of a condominium where the powers of an owners' association are exercised by or delegated to a master association;

(d) The board of directors in the case of a cooperative apartment corporation; or

(e) An agent authorized to act on behalf of any of the above.

*__Editor's note__—M.C.S., Ord. No. 30396, § 2, adopted July 10, 2025, states: That the provisions of Section 1 of this ordinance applicable to the owner of a covered property shall be effective January 1, 2026 for covered properties measuring at least 50,000 gross square feet in total combined floor area and shall be effective January 1, 2027 for covered properties measuring at least 20,000 but not more than 49,999 gross square feet in total combined floor area.

Tenant means a person or entity occupying or holding possession of a building, part of a building or premises pursuant to a rental or lease agreement.

Utility means an entity that distributes and sells natural gas, electric, or thermal energy services for buildings.

Whole building utility data means aggregated, anonymized energy usage data for a multitenant building provided by a utility.
(M.C.S., Ord. No. 30396, § 1, 7-10-25)

Sec. 26-684. Benchmarking required.

(a) *Benchmarking required.* On or before May 31 each year, the owner of a covered property shall benchmark energy use for such property and submit to the administering agency, in electronic format through U.S. EPA ENERGY STAR Portfolio Manager, or as established by the administering agency, the total energy consumed by the covered property and any other descriptive information for the property as required by the administering agency, for the prior calendar year. The owner of the covered property shall ensure the accuracy of the data submitted in accordance with this section and shall amend any submission upon learning of the inaccuracy.

(b) *Multitenant property benchmarking.* If a covered property has more than one tenant, the owner shall comply with this section using whole building utility data. If whole building utility data is not available, the owner may enter data using another method that captures energy use for the covered property, including but not limited to, compiling data from individual tenants or from a master meter. The owner shall make all reasonable efforts to obtain and ensure submission of all information required to comply with this section. If the owner is unable to obtain data from all tenants, the owner shall still provide a benchmarking submission containing all available information. No provision of this article shall require any person to interfere with any tenant's quiet enjoyment of premises they have leased. No provision of this article amends, abrogates, or limits any right granted to tenants by any other article of this Code or by the laws of the State of Louisiana.

(c) *Vacating nonresidential tenant.* At the completion of a nonresidential tenant's occupancy of a covered property, the owner shall request the tenant's energy use for any period of occupancy relevant to the owner's obligation to benchmark, but only if whole building utility data is not available.

(d) *Transfer of ownership.* The owner of a covered property shall transfer to the new owner all benchmarking data not yet reported pursuant to this section upon transfer of ownership of the property.

(e) *Maintenance of benchmarking records*. The owner of a covered property shall maintain such records as established by the administering agency, which shall include, but need to be limited to, the energy bills and reports or forms received from tenants or utilities. Such records shall be preserved for a period of at least three years and, at the request of the administering agency, shall be made available for inspection and audit by the administering agency. Such records may be kept in electronic form.

(f) *Exemptions.* The administering agency may exempt the owner of a covered property from submission of the benchmarking data as required by this section, upon request of the owner, under the following circumstances:

(1) The covered property does not have a certificate of occupancy or temporary certificate of occupancy, and did not have either a certificate of occupancy or temporary certificate of occupancy at any point during the calendar year being benchmarked;

(2) The city issued a full demolition permit for the covered property during the previous calendar year, if demolition work has commenced, some energy-related systems have been compromised, and a certificate of occupancy will not be issued before May 31;

(3) The covered property does not receive utility services;

(4) The covered property qualifies as having a financial hardship, meaning that the property is (i) controlled by a court

appointed receiver; (ii) owned by a financial institution by borrower default; (iii) acquired by deed in lieu of foreclosure; or (iv) has a senior mortgage subject to a notice of default; or

(5) The covered property is used primarily for manufacturing or other industrial purposes such that the majority of energy used is process energy, generally defined as energy used in the actual manufacturing, production, or processing of a good, commodity, or other material and does not include energy used for heating, cooling, ventilation, domestic hot water, cooking, lighting, office equipment, data centers, or other plug loads.

The administering agency may only grant an exemption if the owner provides documentation reasonably necessary to substantiate the request or otherwise assist the administering agency in its review. Any exemption granted shall be limited to the benchmarking submission date for which the request was made and does not extend to past or future submittals.
(M.C.S., Ord. No. 30396, § 1, 7-10-25)

Sec. 26-685. Identification of covered properties, courtesy notice required.

(a) *List of covered properties.* The administering agency shall identify and compile a list of all covered properties required to comply with this chapter. The administering agency shall publish the list in a downloadable comma-separated values or similar spreadsheet format on the city's website, and shall ensure that the list is maintained and updated, at least annually.

(b) *Courtesy notice to owners.* Between January 1 and March 1 of each year, the administering agency shall provide the owner of a covered property a courtesy notice in writing of the requirements of this chapter. Failure of the administering agency to provide such courtesy notification shall not relieve the owner of any obligation required by this article.
(M.C.S., Ord. No. 30396, § 1, 7-10-25)

Sec. 26-686. Sharing and analysis of benchmarking information.

No later than December 1 of each year, the administering agency shall publish on the city's website a report for the prior calendar year on benchmarking of all covered properties, including an assessment of compliance rates, an assessment of accuracy and issues affecting accuracy, summary energy consumption statistics, and trends observed, and an assessment of changes across the portfolio over time. In conjunction with the report's publication, the administering agency shall publish on the city's website for each covered property, for the prior calendar year, the information generated by the benchmarking tool. The published data shall include, but need not be limited to the following: (i) address; (ii) primary use type; (iii) gross floor area; (iv) site energy use intensity; (v) total annual greenhouse gas emissions; and (vi) whether the owner complied with the requirements of this article.
(M.C.S., Ord. No. 30396, § 1, 7-10-25)

Sec. 26-687. Enforcement and penalties.

(a) Failure of an owner of a covered property to comply with any provision of this article shall be in violation and subject to penalties in accordance with chapter 6.

(b) The penalty for each violation of this article adjudicated in accordance with chapter 6 shall not exceed the monetary limit established by section 6-37.

(c) Each day that the owner of a covered property fails to comply with this article shall constitute a separate and distinct violation.

(d) Penalties shall be assessed according to the following schedule:

(1) The penalty for the first violation shall be no less than the maximum established by section 6-37.

(2) The penalty for subsequent violations after the first violation shall be $60.00 per violation.

(3) The combined penalty amount for all violations shall not exceed $3,000.00.

(e) Penalties shall be waived during the first year that a covered property is subject to the requirements of this article.

(f) The owner of a covered property found in violation of this article may appeal this determination pursuant to chapter 6.
(M.C.S., Ord. No. 30396, § 1, 7-10-25)

Chapter 27

BURGLARY AND ROBBERY ALARM SYSTEMS, FALSE ALARM REDUCTION*

Sec. 27-1. Purpose.
Sec. 27-2. Definitions.
Sec. 27-3. Alarm system monitoring company requirements.
Sec. 27-4. Alarm system operation and maintenance.
Sec. 27-5. Alarm business requirements.
Sec. 27-6. Penalty for false alarms.
Sec. 27-7. Appeals and reinstatement.
Sec. 27-8. No liability of city.
Sec. 27-9. Annual report.
Sec. 27-10. Reserved.

*__Cross references—__Administration, ch. 2; buildings, building regulations and housing standards, ch. 26; businesses, ch. 30; fire prevention and protection, ch. 74; fire alarms, § 74-46 et seq.; law enforcement, ch. 90.

Sec. 27-1. Purpose.

(a) The purpose of this chapter is to encourage alarm system users and alarm businesses to assume increased responsibility for maintaining the mechanical reliability and the proper use of alarm systems, to reduce unnecessary police emergency response to false alarms, and thereby to protect the emergency response capability of the city from misuse.

(b) This chapter governs burglary and/or robbery alarm systems, provides for fines for excessive false alarms, provides for discontinuation of police response to excessive false alarms, provides for punishment of violations and establishes a system of administration.
(M.C.S., Ord. No. 18,230, § 1, 5-15-97)

Sec. 27-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings respectively ascribed to them, unless the context clearly indicates a different meaning:

Activation means making the alarm system operational for purposes other than testing, which may result in a police department or other law enforcement agency response to that site.

Alarm administrator means a person or persons designated by the superintendent of the police department to administer, control and review alarm dispatch requests; and coordinate false alarm notification letters, enforcement, and fines, including any individual or organization contracted by the police department for these purposes.

Alarm business means the business by an individual, partnership, corporation, or other entity of selling, leasing, maintaining, servicing, repairing, altering, replacing, moving or installing any alarm system or causing to be sold, leased, maintained, serviced, repaired, altered, replaced, moved, or installed any alarm system in or on any building, structure or facility.

Alarm site means each location requiring an individual alarm system. An alarm site is determined by each separate and distinct municipal address.

Alarm system means any single device or assembly of equipment designed to signal the occurrence of an illegal or unauthorized entry or other illegal activity requiring immediate attention and to which law enforcement is requested to respond, but does not include motor vehicle or boat alarms, fire alarms, domestic violence alarms, or alarms designed to elicit a medical response.

Alarm system monitoring company means any individual, partnership, corporation, or other entity that engages in the business of monitoring property, burglary, robbery, or panic alarms, and of reporting any activation of such alarms to the police department.

Alarm system user or *user* means the person, firm, partnership, association, corporation, company or other entity which owns, leases, controls or occupies any building, structure or facility wherein an alarm system is maintained. For alarm systems in apartment complexes or multiuse commercial buildings, if an alarm system is installed or maintained by an individual tenant, then the tenant is responsible for false alarm dispatches emitted from the alarm system. However, if the alarm system is furnished by the owner or property manager as an amenity, then the owner or property manager of the building is responsible for false alarm dispatches emitted from alarm systems in all units collectively.

Days means business days.

False alarm means an alarm signal, eliciting a response by police when a situation requiring such response does not exist, including but not limited to, the activation or transmission of any alarm signal caused by human error, mechanical or electronic malfunction, negligence of the alarm system user or user's agent or employee, whether or not the exact cause of the alarm activation is determined, or any other activation or transmission of any alarm signal where no actual police emergency exists. Severe weather, power outages, transmission line malfunctions, acts of God, malicious acts of persons not under the control of the alarm system user, or any other cause clearly beyond the control of the alarm system user may be considered in determining if an alarm activation was false and whether any occurrence, fine,

warning, or other action will be taken against the alarm system user as provided for by this section.

Holdup or *panic alarm* means any system, device, or mechanism, activated by human action on or near the premises to alert others that a robbery or other crime is in progress, or that the user is in need of immediate assistance of aid in order to avoid injury or bodily harm.

Local alarm means an alarm system which when activated causes an audible or visual signaling device to be activated only on the premises upon which the system is installed and which is intended to be heard or seen by others outside of the protected premises.

No response means police officers will not be dispatched to investigate a report of an alarm signal.

(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 20317, § 1, 8-16-01; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Cross reference—Definitions and rules of construction, § 1-2.

Sec. 27-3. Alarm system monitoring company requirements.

(a) Alarm system monitoring companies operating in New Orleans shall obtain and maintain all required state and city licenses.

(b) Alarm system monitoring companies engaging in business activities in New Orleans shall annually register with the alarm administrator. No fee for this registration is required, and the alarm administrator shall provide this registration form by December 1st.

(c) When the alarm administrator reports a false alarm at an alarm system user's premises, the alarm system monitoring company shall work cooperatively with the alarm administrator to determine the cause thereof and to prevent reoccurrences. If there is reason to believe that an alarm system is not being used or maintained in a manner that ensures proper operation or such system is not suppressing false alarms, the alarm administrator may require one or more conferences with an alarm system user and/or alarm system monitoring company or designee to review the circumstances of each false alarm.

(d) The alarm system monitoring company shall maintain a verification process to prevent false alarms from resulting in unnecessary police dispatches. A verification process is an independent method of determining that a signal from an automatic alarm system reflects the real need for immediate police assistance or investigation. The means of verification for all alarms produced by an alarm system, excluding holdup or panic alarms, shall include one or more of the following:

(1) An attempt by the alarm system monitoring company, or its representative, to make audio contact with the alarm site and/or alarm user, by telephone or similar means, whether or not actual contact with a person is made, to determine whether an alarm signal is valid before requesting law enforcement dispatch, in an attempt to avoid unnecessary alarm dispatch requests. For the purpose of this ordinance, audio verification by telephone or similar means shall require, at a minimum, that a second call or other audio verification attempt be made to a different number if the first attempt fails to reach an alarm user who can properly identify themselves to determine whether an alarm signal is valid before requesting law enforcement dispatch;

(2) The installation of a video system that provides the alarm system monitoring company with the ability to ascertain that activity is occurring which warrants police assistance or investigations;

(3) An independent confirmation that a signal reflects a need for police assistance or investigation either by the alarm system user, a person at or near the premises, or an alternative response agency, made before dispatching police; or

(4) An alternative system that the superintendent of police certifies has met the verification intent of this section through alternative means.

(e) Alarm system monitoring companies must maintain, for a period of at least one year following request for police dispatch to an alarm site, records relating to such request. Records must

include the name, address and phone number of the alarm system user, the alarm system zone(s) or point(s) activated, the date and time of request for police dispatch, and evidence that an attempt to verify was made prior to request for police dispatch. The alarm administrator may request and is entitled to receive from the alarm system monitoring company or designee copies of such records for individual alarm systems users.

(f) Alarm system monitoring companies shall report alarm signals to the 9-1-1 operator through the call system designated by the alarm administrator. The alarm system monitoring company shall provide the state license code assigned to the alarm company by the state fire marshal's office.

(g) The police department will accept cancellations for dispatch at any time prior to the arrival of police at the alarm site. For false alarm enforcement purposes, any dispatch request canceled prior to the arrival of the police on a burglar alarm site will not be counted as a false alarm.

(h) The provisions of this section do not apply to persons engaged solely in the manufacture, installation, repair, or sale of alarm systems or their components who do not provide alarm monitoring services for any location.

The failure of an alarm system monitoring company to comply with any of the above requirements shall be a violation of this section. Each company that violates this section shall be liable for a fine of $250.00 for each violation. Furthermore, violation of this section may result in the suspension or revocation of any permit or license issued to the alarm system monitoring company responsible for violating the section.
(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-4. Alarm system operation and maintenance.

An alarm system user shall:

(1) Register annually with the alarm administrator. No fee for this registration is required, and the alarm administrator shall provide this registration form no later than 30 days prior to the end of the calendar year.

(2) Maintain the premises containing an alarm system in a manner that ensures proper operation of the alarm system.

(3) Make every reasonable effort to respond or cause a contact person(s) to respond to the alarm system's location within a reasonable period of time when notified by the alarm administrator or the police department to deactivate a malfunctioning alarm system, to provide access to the premises, or to provide security for the premises.

(4) Not manually activate an alarm for any reason other than the occurrence of an event for which the alarm system was intended to be activated.

(5) Instruct all personnel who are authorized to place the system or device into operation of the appropriate method of its operation.

(6) Ninety days after adoption of this ordinance, all new and upgraded alarms shall meet industry standards of technology.

(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 20317, § 1, 8-16-01; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-5. Alarm business requirements.

(a) *Licensing requirements.* All alarm businesses engaged in business in the city shall be required to possess a state license under the "Alarm Industry Licensing Act," R.S. 40:1662.1 through 40:1662.17.

(b) *License copy to be maintained by the police department.* All alarm businesses engaged in business in the city shall file a copy of such valid state certificate attached to the alarm company registration form with the alarm administrator.

(c) *Alarm business registration with the police department.* All alarm businesses engaged in business in the city shall annually register with the alarm administrator. No fee for this registration is required, and the alarm administrator shall

provide this registration form no later than 30 days prior to the end of the calendar year. This registration shall include information regarding the following:

(1) The proper business or trade name, address and telephone number of the alarm business.

(2) All other names, addresses and phone numbers under which the company or corporation conducts business.

(3) If an unincorporated association, the name of the owner and responsible associates.

(4) If a corporation, the names and positions of officers in the corporation.

(5) If a corporation, the name and address of the registered agent.

(6) A statement that the alarm business will maintain a 24-hour emergency service, seven days a week, including holidays.

(d) *Exemptions.* The provisions of this section do not apply to persons engaged solely in the manufacture or sale of alarm systems or their components from a fixed location who do not install, maintain, service, or plan an alarm system for any location. The provisions of this section further do not apply to persons engaged in the repair of alarm systems or their components from a fixed location, and who do not, either personally or through another, visit the structure in which or on which the alarm system is installed.

(e) *Penalties for no license.* No person or company shall engage in an alarm business in the city without holding a current and valid license issued by the state fire marshall as provided by state law. The individual limits of the class of the license as to the skill level and type of work that may be performed by the company, are applicable in the city. Prosecution for any violation of applicable state law shall be furthered by the police department.

(f) *Cooperation with police department.* When the alarm administrator reports a false alarm at an alarm system user's premises, the alarm business should work cooperatively with the alarm system user and the alarm administrator to determine the cause thereof and to prevent reoccurrences. If there is reason to believe that an alarm system is not being used or maintained in a manner that ensures proper operation or such system is not suppressing false alarms, the alarm administrator may require one or more conferences with an alarm system user, and/or the alarm business, and/or alarm system monitoring company responsible for the repair of the alarm system to review the circumstances of each false alarm.

(g) *Instructions and training to be provided.* Every alarm business leasing or furnishing to any alarm system user an alarm system which is installed on the premises on or after the effective date of this section shall furnish the alarm system user with written instructions to enable the user to properly operate the alarm system at any time.

(h) *Compliance with installation and equipment requirements.* Every alarm business leasing or installing an alarm system which is installed on the premises on or after the effective date of this section shall comply with the alarm system installation and equipment requirements as specified under section 27-5 of this chapter.

(i) *Alarm registration and user identification letter requirements.* The alarm business is responsible for the completion and submission of the registration of any new installation and/or conversion-takeover of any existing system. The alarm business shall forward to the police department a completed alarm user identification letter including certification of the date of installation, conversion, of takeover of the alarm system. This form shall be submitted within ten days of the install, conversion, or takeover of the alarm system.

(j) *Penalties for noncompliance.* The failure of an alarm business that engages in business activities in the city to comply with any of the above requirements shall be a violation of this section, subject to prosecution in municipal court and such alarm business shall be fined, upon conviction, not less than $100.00 nor more than $250.00 within any 30-day period for each violation.
(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., § 1, 8-16-01)

Sec. 27-6. Penalty for false alarms.

(a) No person shall activate any holdup or panic alarm for the purpose of summoning police except in the event of an unauthorized entry, robbery or other crime being committed or attempted on the premises or in the event the person needs immediate assistance in order to avoid injury or bodily harm. The unnecessary dispatching of police for holdup or panic alarms will be counted against the alarm site as a false alarm.

(b) The sending of a false alarm constitutes a violation of this section. Administrative warnings, fines, and/or suspension of a police response may be assessed/imposed upon an alarm system user by the alarm administrator for excessive false alarms during a calendar year as follows:

(1) For the first false alarm, no fine will be assessed.

(2) For the second false alarm, the alarm system user will be liable for a fine of $75.00.

(3) For the third false alarm, the alarm system user will be liable for a fine of $150.00.

(4) For the fourth false alarm, the alarm system user will be liable for a fine of $150.00 and a notice of suspension will be issued ("No response" by police).

It shall be the responsibility of the police department or the superintendent's designee to collect such fines.

(c) At the end of the calendar year, the false alarm count will revert to zero, provided all charges, fees, and fines have been paid.

(d) Upon receipt of the first false alarm report, the alarm administrator shall send a notification of false alarm and alarm user identification letter by regular mail to the owner or occupant of the alarm site as well as the alarm system monitoring company. The alarm system user shall be accountable for accurately completing the requested identification information and returning same to the alarm administrator. Failure to return the alarm user identification letter within 15 days after the false alarm report notification shall cause the alarm administrator to send a suspension notification letter by certified mail to the owner or occupant of the alarm site, notifying the recipient that the police will not respond to any future alarms at the alarm site.

(e) After the second false alarm, the alarm administrator shall send notification to the alarm system user by regular mail and a copy by regular mail to the alarm system monitoring company, which shall contain the following information:

(1) That the second false alarm has occurred and that if two more false alarms occur within the calendar year, police officers will not respond to any subsequent alarms without the approval of the superintendent through the alarm administrator.

(2) That the alarm system user has the right to contest the finding of a false alarm or apply for reinstatement, and that such appeal may only be filed by following the procedures outlined in section 27-7.

(3) The assessment of the $75.00 fine to the alarm system user.

(f) After the third false alarm within a calendar year, the alarm administrator shall send notification to the alarm system user by regular mail and a copy by regular mail to the alarm system monitoring company, which shall contain the following information:

(1) That the third false alarm has occurred and that if one more false alarm occurs within the calendar year, police officers will not respond to any subsequent alarms without the approval of the superintendent through the alarm administrator.

(2) That the alarm system user has the right to contest the finding of a false alarm or apply for reinstatement, and that such appeal may only be filed by following the procedures outlined in section 27-7.

(3) The assessment of the $150.00 fine to the alarm system user.

(g) After the fourth false alarm within a calendar year or if an alarm system user has failed to submit the alarm user identification letter within 15 days of receipt of the first false alarm report notification, there will be no police response to

subsequent alarms without the approval of the superintendent through the alarm administrator. The alarm administrator shall send a "notice of suspension of police response" to:

(1) The commander of the police department communications division so that the computer aided dispatch address file history can be recorded.

(2) The alarm system user by certified mail and for the fourth false alarm within the calendar year, a fine of $150.00 shall also be imposed on the alarm system user.

(3) The alarm system monitoring company by certified mail.

The suspension of police response to an alarm site shall begin 15 days after the date of receipt of the notice of suspension of police response to the alarm system user unless a written appeal of the suspension has been made to the superintendent through the alarm administrator.

(h) If an assessed fine has not been paid within 30 days of the day the notice of fine was mailed by the alarm administrator and there is no appeal pending on the finding of the false alarm, the alarm administrator shall send a second notice of false alarm and fine by certified mail along with a notice of late fee of $25.00. If payment is not received within ten days of the day such notice was received, the alarm system user shall be in violation of this section and liable for a fine of $100.00 and such delinquent payment may result in "no response" to the alarm system user's alarm. In the case of no response, a "notice of suspension of police response" shall be sent by the alarm administrator to the alarm system user and alarm system monitoring company by certified mail.

(i) The police department is authorized by this section to use discretion in deciding whether to direct police units to an alarm site where a suspension of police response has been implemented and there has been a report made that police assistance or investigation is needed. The police department is also authorized to use discretion in responding to alarm sites serviced by alarm monitoring companies that have a record of persistently violating the requirements of section 27-3, as evidenced by repeated violations of these requirements over a period of six months or more.

(j) It shall be a violation of this section for an alarm system user or alarm monitoring company to cause or allow notification to the police department from an alarm site which has a suspended police response status. Alarm systems under suspension must be prevented from causing notification to the police department by an alarm system monitoring company, unless the monitoring company is reporting a crime that has been verified as a result of a video feed or citizen report. For each false alarm reported while under suspension, the alarm system user is liable for a fine of $200.00 and the alarm monitoring company for a fine of $200.00.

(k) Fines assessed under this section shall not be applicable to alarm systems installed upon premises occupied by the United States Government, by the State of Louisiana, or by the City of New Orleans.

(l) The city may create and implement an alarm user awareness class and may request the area alarm companies to assist in developing and implementing the class. The alarm user awareness class, shall, at a minimum, inform alarm users of the problems created by false alarms and instruct alarm users on ways to help reduce false alarms. The alarm administrator may grant the option of attending a class in lieu of paying one assessed fine, not to exceed $75.00. The alarm administrator shall also have discretion to waive one $75.00 fine if the alarm user presents verification by the alarm monitoring company or designee of additional training and equipment check. A credit shall be granted for the alarm user awareness class or documented training and equipment check, but not both, in a calendar year.
(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-7. Appeals and reinstatement.

(a) An alarm system user who wants to appeal a false alarm determination by the alarm administrator, fines, suspension of police response, or an alarm system user's request for reinstatement, may file such appeal with the superintendent through the alarm administrator. Alarm users

shall appeal in writing with the form provided by the alarm administrator. Appeals can request either an in-person hearing or a mail hearing. Only in-person hearings will be granted for cases that involve the appeal of a suspension of police response. Appeals will be heard by the alarm administrator's designee. The alarm system user must submit a request for appeal hearing in writing within 15 days of the user having received the contested notification. Failure to appeal the determination in the required time period results in a conclusive presumption of the validity of the alarm administrator's determination. If an in-person hearing is requested, written notice of the time and place of the hearing shall be served on the alarm system user by the alarm administrator by regular mail, which date shall not be more than 20 days after the filing of the request for hearing. The alarm system user shall have the right to present to the alarm administrator written and oral evidence. The alarm administrator shall consider the evidence offered and issue written findings waiving, expunging or entering penalties provided by this chapter on an alarm system user's record as appropriate.

(b) To appeal a notice of no response, the alarm system user may request an appeal hearing as specified above. At this hearing, the alarm system user must present evidence to the alarm administrator that the alarm system user has taken corrective action, including but not limited to, repairing, modifying, or installing alarm equipment that will serve to prevent future false alarms at that site. Written documentation shall be required. Such correction may also include mandatory user false alarm reduction training through a recognized class. Upon receipt of this documentation and payment of the $100.00 fine, the alarm administrator shall reinstate the police response status and inform the alarm monitoring company of this action. The false alarm count will return to zero for that calendar year upon installation of a new alarm system or upon correction or modification of an existing alarm system.

(c) Reinstatement shall be denied unless the alarm administrator determines that the action taken will substantially reduce the likelihood of false alarms. The alarm administrator shall give notice by certified mail to the alarm system user and alarm monitoring company that police response will be suspended and notify the alarm system user as to what is necessary in order to have the response status reinstated.

(d) An alarm system monitoring company that receives a fine under sections 27-3, 27-4, or 27-5 may file an appeal of the fine with the superintendent through the alarm administrator. Appeals can request either an in-person hearing or a mail hearing. The appellant must submit a request for appeal in writing within 15 days of the company receiving a fine. Failure to appeal the determination in the required time period results in a conclusive presumption of the validity of the alarm administrator's determination. If an in-person hearing is requested, written notice of the time and place of the hearing shall be served on the company by the alarm administrator by regular mail, which date shall not be more than 20 days after the filing of the request for hearing. The company shall have the right to present to the alarm administrator written and/or oral evidence. The alarm administrator shall consider the evidence offered and issue written findings waiving, expunging or entering penalties provided by this chapter on the company's record as appropriate.

(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-8. No liability of city.

The city assumes no liability for any defects in the operation of any alarm system or transmission of signals, for any failure or neglect of any person associated with the installation, operation or maintenance of an alarm system, for any failure or neglect of any alarm system user, for the transmission or receipt of alarm signals or any failure or neglect to respond upon receipt of an alarm from any source. In the event that the city finds it necessary to suspend police response, the city shall have no liability for such action. The city shall not be liable to the alarm system monitoring company or the alarm system user for discretionary deployment of police resources. No special duty other than that owed to the general public shall be created by virtue of this section or as a result of the transmission to or receipt of alarm signals by the police department.

(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 20317, § 1, 8-16-01; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-9. Annual report.

The alarm administrator shall conduct an annual evaluation and analysis of the effectiveness of this chapter. An annual report shall be generated by March 1st of each year for the city council. This report shall identify system improvements as warranted. At a minimum, the report shall provide the number of calls for service for burglar alarms, identify compliance with this ordinance among both alarm system users and alarm system monitoring companies, and the number of incidents that were in fact a result of the commission of a crime (attempted or otherwise).
(M.C.S., Ord. No. 18,230, § 1, 5-15-97; M.C.S., Ord. No. 26459, § 1, 6-18-15)

Sec. 27-10. Reserved.

Editor's note—M.C.S., Ord. No. 26459, § 1, adopted June 18, 2015, repealed § 27-10, which pertained to no liability of city and derived from M.C.S., Ord. No. 18,230, § 1, adopted May 15, 1997. The user's attention is directed to § 27-8.

Chapter 28

RESERVED*

*__Editor's note—__M.C.S., Ord. No. 27260, § 1, adopted Jan. 12, 2017, repealed Ch. 28, §§ 28-1—28-64, which pertained to post disaster recovery and neighborhood stabilization and derived from M.C.S., Ord. No. 23046, § 5, adopted March 20, 2008; M.C.S., Ord. No. 23490, § 1, adopted April 2, 2009; M.C.S., Ord. No. 23679, § 1, adopted August 20, 2009; M.C.S., Ord. No. 24239, § 1, adopted Dec. 1, 2010; M.C.S., Ord. No. 24321, § 1, adopted March 3, 2011; M.C.S., Ord. No. 24560, § 1, adopted August 18, 2011; M.C.S., Ord. No. 25260, § 1, adopted March 21, 2013.

Chapter 29

RESERVED

Chapter 30

BUSINESSES*

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***Cross references—**New Orleans Film and Video Commission, § 2-236 et seq.; alcoholic beverages, ch. 10; amusements and entertainments, ch. 14; circuses, § 14-66 et seq.; riverboat gaming, § 14-276 et seq.; public outdoor musical entertainments, § 14-306 et seq.; roller coasters and similar rides, § 14-331 et seq.; shooting galleries, § 14-356; public transportation at the New Orleans International Airport, § 22-81 et seq.; standards for storefront and show windows, § 26-511 et seq.; show windows abutting over sidewalk or not in conformance with the regulations considered a nuisance to be evaded, § 26-515; sale of food or beverages in certain areas, § 54-492; price gouging during declaration of emergency prohibited, § 54-501; emergency medical services, § 62-36 et seq.; smoking in public places prohibited, § 66-71; discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.; secondhand goods, ch. 130; pawnbrokers, § 130-101 et seq.; junkyards, § 130-136 et seq.; signs, ch. 134; sidewalk cafes, § 146-531 et seq.; hotel occupancy privilege tax, § 150-1001 et seq.; sales and use tax, § 150-441 et seq.; occupational license tax, § 150-951; chain store tax, § 150-1056 et seq.; insurance tax, § 150-1101 et seq.; transient or foreign businesses, § 150-1141 et seq.; parking/berthing tax, § 150-1191 et seq.; newsboxes and newsstands, § 146-236 et seq.

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ARTICLE I. IN GENERAL

Sec. 30-1. Transfer of license during year for which issued.

The director of the department of finance may transfer city licenses for any year from the person to whom such license was originally issued to another person continuing the identical business for which such license was issued, in cases where a firm has been changed by the admission of a member or by the conversion of a firm to a corporation and also when an actual conventional sale in good faith is made of a business, including stock, fixtures and good will; provided that the person to whom such license is transferred is not at the time indebted to the city for a license, and provided, further, that in no case shall a license be transferred when the person to whom such license was originally issued is indebted to the city for personal taxes for the current year on the goods, wares, fixtures, merchandise or other similar articles contained in his place of business.
(Code 1956, § 2-51)

State law references—Termination or transfer of business, R.S. 47:308; failure to pay tax; rule to cease business, R.S. 47:314; failure to pay tax; judgment prohibiting further pursuit of business, R.S. 47:351.

Sec. 30-2. Transfer of location of license during license year.

The director of the department of finance may transfer from one location to another location a city license issued for any year if the same business is conducted thereunder in the new location and if the person applying for such transfer is the same person to whom the license was originally issued. The business' new operations shall satisfy all requirements of the comprehensive zoning ordinance, the building code, the mechanical code and the electrical code before the license can be transferred.
(Code 1956, § 2-52)

Sec. 30-3. Offtrack wagering facility license fee.

(a) There is hereby levied a license fee for the year 1988 and for each subsequent year upon each person operating an offtrack wagering facility within the city pursuant to R.S. 4:211 et seq. and pursuant to authorization by the state racing commission in the amount of two percent of the total amount wagered at each such offtrack wagering facility.

(b) The proceeds of the license fee imposed by this section shall be collected in accordance with law and shall be deposited in the general fund of the city.
(Code 1956, § 62-81)

Secs. 30-4—30-35. Reserved.

ARTICLE II. FRANCHISES*

DIVISION 1. GENERALLY

Sec. 30-36. List of officers and directors of corporations.

All corporations, limited or otherwise, making application for a franchise privilege of any kind whatever shall file with the clerk of the council a list of their officers and board of directors.
(Code 1956, § 2-57)

Sec. 30-37. Compliance prerequisite to consideration of application.

The city through its several committees shall not consider any petition to grant or ordinance granting any franchise privilege to any company or corporation until the provisions of section 30-36 have been complied with.
(Code 1956, § 2-58)

Sec. 30-38. Lists to be sworn.

The list required to be furnished in accordance with provisions of section 30-36 shall be thereof sworn to before a duly authorized and qualified notary public by officers of the corporation.
(Code 1956, § 2-59)

***Charter reference**—Granting of utility franchise, § 4-1601 et seq.

Cross references—Telecommunications services, § 150-1251 et seq.; utility rate or service adjustment, § 158-41 et seq.; regulatory proceedings, § 158-231 et seq.; utility regulation financing, § 158-581 et seq.; electricity, § 158-731 et seq.; poles and wires, § 158-891 et seq.; vehicles for hire, ch. 162; animal-drawn vehicles, § 162-496 et seq.; tour vehicles and buses, § 162-896 et seq.; taxicabs, § 162-601 et seq.; limousines, § 162-841 et seq.; tow service, § 162-996 et seq.

Sec. 30-39. Ordinances to call attention to provisions of article.

All ordinances directing the director of the department of finance to sell at public auction a franchise of any kind whatsoever shall contain a clause requiring that the provisions of this article be complied with by depositing the information above required with the director of the department of finance before any corporation shall be qualified to bid at such sale.
(Code 1956, § 2-60)

Sec. 30-40. Lease by telephone or telegraph company of right to use conduit in street.

Any telephone or telegraph company having a franchise from the city to use its streets and having laid in the city conduits in which are placed wires and cables may lease any part or portion of such conduits which belong to it, to any other telephone or telegraph company if the telephone or telegraph company leasing such conduit or part thereof has also a franchise from the city to use its streets and lay conduits therein. But such lease may be made only upon written permission from the director of the department of finance.
(Code 1956, § 52-45; M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 21480, § 1, 4-1-04)

Editor's note—M.C.S., Ord. No. 17,560, § 1, adopted June 6, 1996, renumbered former § 30-40 as 30-43 and renumbered former §§ 30-41—30-43 as 30-40—30-42.

Sec. 30-41. Certain free telephone service to city.

Any telephone company shall gratuitously furnish and maintain telephone apparatus and connection with such public offices, institutions or buildings as the council may direct, to a total number of not exceeding ten, any over that number, if ordered by the council, to be paid for at customary rates, and shall balance by appropriate credits all existing charges against the city government in any of its branches for use of any telephones now or hereafter operated.
(Code 1956, § 52-46; M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Note—See the editor's note following § 30-40.

Sec. 30-42. Prohibition of outdoor pay telephones.

(a) It shall be unlawful for any person, association, firm, partnership or corporation to install, or allow to be installed, an outdoor pay telephone on an alcoholic beverage outlet (ABO) in a residentially zoned area, on a vacant building, or on a vacant lot.

(b) For the purposes of this section, the following words and phrases shall be defined as follows:

Alcoholic beverage outlet (ABO) means any establishment possessing an alcoholic beverage outlet permit in which the sale of alcoholic beverages represents 50 percent or more of the total sales.

Franchise agreement means an agreement that permits the installation of outdoor pay telephones.

Outdoor pay telephone means a device installed outside of a building, which requires payment in order for telephone service to be provided. This shall include an outdoor pay telephone installed within a structure designed exclusively for the protection of the user.

Residentially zoned area means any area within 150 feet of a residentially zoned district as defined by the comprehensive zoning ordinance of the city. The 150 feet shall be measured from the property line of the parcel on which the alcoholic beverage outlet is located.

Vacant building means any building currently not having 25 percent or more of its leasable floor space occupied.

Vacant lot means any parcel of property on which there is no permanent or temporary building.

Violation means that each outdoor pay telephone which has been installed in violation of this section shall be considered a separate violation regardless of whether or not there are multiple outdoor pay telephones on the same parcel of property.

(c) Any person, association, firm, partnership or corporation cited for a violation of this section shall have 30 days to remove the outdoor pay

telephone cited as a violation. If the removal of the outdoor pay telephone in violation has not been completed within 30 days, the person, association, firm, partnership, or corporation shall be fined $300.00 per day, per violation, beginning with the 31st day of the violation. Beginning on the 41st day of the violation, the city shall proceed with the removal of the outdoor pay telephone which is in violation, billing the person, association, firm, partnership, or corporation which was cited for the violation for the costs associated with the removal. In addition, the person, association, firm, partnership, or corporation cited for a violation shall continue to be assessed $300.00, per day, per violation, until such time as the outdoor pay telephone has actually been removed.

(d) In the case of a person, association, firm, partnership, or corporation having a franchise agreement with the city, the franchise shall be subject to revocation if there have been at least three violations within a one-year period, for which the person, association, firm, partnership, or corporation which was cited for the violation did not complete removal of the outdoor pay telephone within the first 30 days after being cited for the violation. The one-year period shall begin on the date of the first violation cited.

(e) Any person, association, firm, partnership, or corporation having a franchise agreement with the city, 30 days prior to the date of renewal of the franchise agreement or on an annual basis, whichever is sooner, shall submit to the department of finance a listing of all outdoor pay telephones which have been installed at that time. This list shall include, but not be limited to, the municipal addresses at which the outdoor pay telephones have been installed or the closest proximate municipal address with the distance from the outdoor pay telephone; the number of outdoor pay telephones installed at each municipal address, whether or not the municipal address is a vacant lot or has a vacant building or alcoholic beverage outlet; the zoning classification within 150 feet of each alcoholic beverage outlet, having an outdoor pay telephone, as measured from the property line; and the date of expiration of the alcoholic beverage outlet permit issued by the city. Renewal of a franchise agreement shall not take place until a completed list has been submitted to the department of finance.

(M.C.S., Ord. No. 17,098, § 1, 7-6-95; M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 21480, § 1, 4-1-04)

Note—See the editor's note following § 30-41.

DIVISION 2. WIRELINE TELECOMMUNICATIONS FRANCHISE ACT

Sec. 30-43. Occupancy of rights-of-way by persons for the purpose of transmitting or communicating data, information, intelligence, signals, voice and/or video signals.

(a) No person shall lay, place, string or otherwise deploy coaxial, copper, fiber optic or other cable or wire, nor conduit for the purpose of containing same, on any Public Property, nor on any Rights-of-Way, for the purpose of transmitting or communicating data, information, intelligence, signals, voice and/or video signals, without first having obtained the necessary approval of the appropriate City departments and a Franchise in accordance with this Act. Upon the expiration or termination of such franchise, Grantee shall not perform any of the acts enumerated in this Section without first having obtained a franchise pursuant to this Act. Access to certain parcels of Public Property by a Grantee hereunder may be denied by the Grantor when, in the Grantor's sole determination, placement of Equipment and Plant on such Public Property will be detrimental to the public health, safety, and welfare to the end thereof.

(b) Nor shall any person make any cuts or excavations and/or constructions or erections of Equipment or Plant or works of any sort, or do any act, including the placement of Equipment or Plant, in anticipation or preparation of any of the foregoing acts, for the purpose of constructing or placing wireline telecommunications equipment or plant in, on, or under any of the places described in subsection (a) without first having obtained the approvals required by subsection (a) and a Franchise expressly authorizing such activity. Upon the expiration or termination of such franchise, Grantee shall not perform any of the

acts enumerated in this Section without first having obtained a franchise pursuant to this Act.

(c) Any Person contracting with any other Person or entity for the purpose of doing any of the acts described in subsections (a) and (b) above shall file with the City Attorney, Clerk of Council, the Council Regulatory Utilities Office and the Department of Finance on or before the third day following the execution of the contract and at least four days prior to doing any of the acts described in subsections (a) and (b) above, an informational filing including a copy of the contract, copies or verification of such approvals, and a copy of the Franchise expressly authorizing such activity. Upon the expiration or termination of such franchise, Grantee shall not perform any of the acts enumerated in this Section without first having obtained a franchise pursuant to this act.

(d) Without limiting the general application of the foregoing, the provisions of this Section 30-43 shall apply to all immovable property, including servitudes controlled, administered or managed by any public benefit corporation, unattached board or commission, or independent agency of the City, including but not limited to those listed in Article V of the Home Rule Charter of the City of New Orleans.

(e) Whoever does anything prohibited or fails to do anything required by this Section 30-43 shall be guilty of a misdemeanor. In the event of any such violation by any association, corporation, partnership or other entity, the executive officers thereof shall be liable to the punishment prescribed herein.
(Code 1956, § 52-44; M.C.S., Ord. No. 16,661, § 1, 10-6-94; M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 21480, § 1, 4-1-04)

Sec. 30-44. Intent.

(a) *Policy.* It is the intent of the Grantor, as hereinafter defined, to establish procedures, terms and conditions managing the occupation of Public Property and Rights-of-Way by providers of Wireline Telecommunications Systems, as such providers occupy, install, maintain and/or repair a Wireline Telecommunications System on, above, or beneath Public Property and the Rights-of-Way; to define the relationship between the Grantee(s) and the Grantor; and to provide for the administration and supervision by the Grantor of Franchises, throughout the term of the Franchise. The requirements of this Act represent the present intention of the Grantor. The Grantor reserves the right to amend or revise this Act in the future as deemed necessary by the Grantor.

(b) *Applicability.*

(1) *In general.* This Act shall be generally and immediately applicable to any Person occupying the public Rights-of-Way for the installation, maintenance, repair and/or operation of Wireline Telecommunications Systems, and for the purpose of determining compensation payable to the City under preexisting franchises, permits and privileges granted by the City, which acknowledge susceptibility to an Ordinance of General Application or Ordinance of General Applicability. Section 30-54 of this Act shall apply to any Person submitting an application to furnish Wireline Telecommunications Systems which occupy the Rights-of-Way or other Public Property. Persons operating pursuant to preexisting franchises shall remain subject to all existing provisions of such preexisting franchise, as well as being subject to the provisions of Sections 30-50(a), (c) and (d) of this Act; however, Persons with existing franchises or permits and privileges at the time of enactment of this Act shall come under all other provisions of this Act if and when such franchises or permits and privileges are renewed. Preexisting permits and privileges, if renewed, shall be renewed as Franchises under the provisions of this Act. This Act shall apply to electric, gas and other utilities including their subsidiaries, affiliates, assignees, lessees, or partners providing Wireline Telecommunications Systems and/or Services.

(2) *Cable Television Providers.* This Act shall not apply to cable television providers authorized by the Grantor pursuant to a cable television franchise, to furnish cable television services in the City with re-

spect to the provision of those cable television services. In the event cable television providers shall desire to provide Wireline Telecommunications Services, then this Act shall apply, and a Franchise must be obtained by such provider.

(3) *Programming Services.* Subject to the provisions of subsection (4) below, no Person granted a Franchise pursuant to this Act for the provision of Wireline Telecommunications Services shall use its Telecommunications System to provide video programming services or cable services or operate a cable system as defined in the Cable Communications Policy Act of 1984 (47 U.S.C.A. § 521 et seq., as amended) or as recognized by the FCC, without first obtaining a separate authorization from the Grantor, and no such Person shall allow the use of its Telecommunications System by a provider of programming services or a cable system to offer video programming unless such provider has been granted a Franchise by the Grantor.

(4) *Open Video Systems.*

a. Any person granted a Franchise pursuant to this Act for the provision of Wireline Telecommunications Services who becomes certified by the FCC to provide cable television services through an Open Video System must notify the Director of such certification, and must modify its Franchise to provide for: (i) the payment of fees in lieu of franchise fees for the occupation of Rights-of-Way or Public Property for the purpose of operating an Open Video System; (ii) the provision of public, educational, and governmental access on such Open Video System; and (iii) such other provisions as may be required by the FCC or the City;

b. Any Person intending to provide an Open Video System in the City that does not have a Franchise under the provisions of this Act or a cable television franchise, must notify the Director upon being certified by the FCC to provide such service, and must enter into an agreement with the City providing for: (i) the payment of fees in lieu of franchise fees for the occupation of Rights-of-Way or Public Property by the Open Video System; (ii) the provision of public, educational, and governmental access on such Open Video System; and (iii) such other provisions as may be required by the FCC or the City.

(5) *Wireless Communications Systems.* To the extent that any Wireless Communications System provider enters and/or occupies any Public Property or Rights-of-Way, then the Wireless Communications System provider shall be required to obtain a Franchise pursuant to the Wireless Communications Franchise Act at Section 30-58 et seq. of this Code.

(6) *Distributed Antenna System*. To the extent that any Public Property or Right-of-Way is occupied by a Distributed Antenna System, only the Grantee of the Distributed Antenna System shall be required to obtain a Franchise pursuant to this Act. The term Grantee as used herein shall mean the recipient of a Franchise to operate a Distributed Antenna System which allows one or more Wireless Service Providers to provide wireless telecommunications services by virtue of access to Grantee's Hub.

(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 22082, § 1, 11-17-05)

Sec. 30-45. Definitions.

For the purposes of this Act, the following words, terms, phrases, and their derivations shall have the meanings given herein. Capitalized terms used herein and not otherwise defined shall have the meanings ascribed thereto throughout this Code of the City of New Orleans. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number,

and words in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

Act means the Wireline Telecommunications Franchise Act, codified as Chapter 30, Article II, Division 2 of the Code of the City of New Orleans, and also means the Ordinance of General Application.

Application or *Franchise Application* means the documents submitted by a potential Grantee, in the form required by the Grantor, requesting permission to occupy the Rights-of-Way in the City for the purpose of providing a Wireline Telecommunications System.

Application Fee means the fee required of all potential Grantees under the provisions of Section 30-54 hereof.

Dark Fiber means unused fiber through which no light is transmitted or installed fiber optic cable not carrying a signal.

Day or *Days* means a calendar day or days.

Director means the Director of the Department of Finance of the City of New Orleans or a duly authorized representative.

Distributed Antenna System shall mean a system of individual Nodes, deployed throughout a target area and interconnected, via fiber, to a central location, or Hub, to provide wireless coverage to consumers. The Hub provides connectivity to the base station electronics for one or more Wireless Service Providers offering service through this system.

Emergency means a reasonably unforeseen occurrence with a potential to endanger personal safety or health, or cause substantial damage to property, that calls for immediate action.

Equipment and Plant means equipment, plant, fixtures, apparatus, facilities, appliances, and appurtenances common to and used now and in the future by Wireline Telecommunications Systems.

FCC means the Federal Communications Commission, its functional successor in the United States government or a designated representative.

Fair Market Value means, with regard to Wireline Telecommunications Services provided by Grantee, the price of such services as shown in Grantee's tariff, if any, on file with the LPSC. If the Wireline Telecommunications Services provided are not tariffed services, the Fair Market Value of those Wireline Telecommunications Services means the price that would be obtained therefor in an arms-length transaction. Fair Market Value is subject to verification by Grantor.

Franchise means the authority granted by ordinance to occupy the Rights-of-Way and Public Property in the City for the use, installation, maintenance and/or repair of Wireline Telecommunications Systems. Each Franchise shall consist of referenced specifications, Franchise Applications, and other related material.

Franchise Fee means the compensation payable by a Grantee to the Grantor as consideration for the Grantor's permission for the Grantee to occupy the limited Rights-of-Way of the City and as compensation for the deterioration in the overall condition of the Rights-of-Way, the diminution of the life expectancy and the degradation of the useful life of the Rights-of-Way, the cost of the administration of the Franchise and the premature expenditure of public funds for the repair and replacement of such Rights-of-Way.

Grantee means any Person to whom a Franchise is granted by the Grantor. This term shall not include affiliates, subsidiaries or entities otherwise related to Grantee.

Grantor means the City of New Orleans, as represented by the City Council acting within the scope of its jurisdiction.

Gross Receipts means all revenues collected by the Grantee for Wireline Telecommunications Services provided by the Grantee, its affiliates, successors, agents, subsidiaries, partners, or assigns to Customers located within the Orleans Parish, and including, but not limited to, charges for the provision of recurring and nonrecurring service, data and video service, telemessaging service, audio programming services, electronic publishing, language translation or data format conversion, caller identification services, alarm monitoring services, private line service, access charges,

public telephone revenue, directory assistance, directory advertising, revenues from the authorized Lease of Equipment and Plant, and revenues from the resale of Wireline Telecommunications Services. Gross Receipts is not intended to cover revenue from Long Distance Network Service or wireless communication services. To the extent that the Grantee does not segregate Long Distance Network Service revenues from other revenues, or other revenues are commingled with Long Distance Network Service revenues, all such commingled revenues shall be included in Gross Receipts. Gross Receipts shall not include any sales or excise taxes collected for direct pass through to local, state, or federal governments. If Grantee participates in the provision of its Wireline Telecommunications System and/or associated assets with another Person whereby Grantee does not receive reasonable monetary compensation, then the Fair Market Value of the services or assets provided by Grantee shall be imputed to Grantee's Gross Receipts for the purpose of calculating Franchise Fees due to the Grantor. Without limitation of the foregoing, the Fair Market Value of Grantee's transactions resulting in Gross Receipts is subject to verification by Grantor.

Hub shall mean a common connection point or place of convergence where data arrives from one or more of the Nodes, or remote units, in a Distributed Antenna System.

Lease means the right, however framed or structured, and the document or agreement evidencing such right, granted by Grantee to a third party to occupy any of Grantee's Equipment and Plant for the transaction of the third party's business. The term does not include the provision of Grantee's Wireline Telecommunications Services to a reseller (a nonfacilities based provider), nor does it include the sale by the Grantee to a third party of any of Grantee's tariffed Wireline Telecommunications Services.

Long Distance Network Service shall mean those Wireline Telecommunications Services provided by Grantee, whether message or flat rate and including public network switching as well as private, that (i) either originate or terminate Toll Calls within the City, or (ii) pass through the City without originating or terminating Toll Calls therein. Revenues derived from Long Distance Network Service shall include those revenue accounts specified in 47 CFR Part 32, as amended.

LPSC means the Louisiana Public Service Commission or its functional successor in the government of the State of Louisiana.

Minority means a person or persons who are members of a group defined herein as African-American not of Hispanic origin, American Indian or Alaskan Native, Asian or Pacific Islander, or Hispanic.

Minority-Owned Business Enterprise or MBE means a business entity which is at least 51 percent owned by one or more members of one or more Minority groups as defined herein, or, in the case of a publicly held corporation, at least 51 percent of the stock is owned by one or more members of one or more Minority groups, and the management and daily business operations of which are controlled by one or more such individuals.

Network means any part of a Wireline Telecommunications System which may be in operation at any given time.

Node shall consist of, but not be limited to, a remote unit consisting of a distributed, repeater, or microcell antenna system mounted on a common elevated structure, including, but not limited to, a utility pole, stop sign, other utility structure, or public building within the City's Rights-of-Way or other Public Property, each of which shall be designed to minimize their visibility on such utility pole, stop sign, other utility structure, or public building and shall be subject to approval by the Department of Public Works and the City Planning Commission. Approval shall additionally be required by the Vieux Carre Commission or the Historic District Landmark Commission where the Distributed Antenna System is to be located within the geographical area of the respective historic district.

Occupy, Install, Maintain, Repair and/or Operate and Upgrade or *Occupancy, Installation, Maintenance, Repair and/or Operation* means locate, relocate, erect, string, hang, pull, push, install, dismantle, construct, reconstruct, take down, take off, put, place, replace, move, remove,

dispose of, lay, take up, bury, dig up, retain, enlarge, extend, expand, operate, service, repair, install, maintain and/or upgrade.

Open Video System means a system through which a local exchange carrier (as defined in 47 U.S.C. § 153(44)) provides cable service to its cable subscribers in its telephone service area, that complies with 47 U.S.C. § 653 and regulations adopted thereunder by the FCC.

Ordinance of General Application to Wireline Telecommunications Companies and Services or *Ordinances of General Application* and *Act* shall have the same meaning herein.

Person means an individual, firm, partnership, association, corporation, company or organization of any kind or any lawful successor, transferee or assignee of such individual, firm, partnership, association, corporation, company or organization.

Private Communications System shall mean a Wireline Telecommunications System for Grantee's exclusive internal use. In the event a Private Communications System becomes available to third parties, it shall lose its character as a Private Communications System and shall be treated as a Wireline Telecommunications System.

Public Property means any immovable property owned or controlled by the City of New Orleans or any agency or subdivision thereof.

Right-of-Way or *Rights-of-Way* means the surface of, the space within, and the space above and below any public street, sidewalk, alley, or other public passage including poles, towers or other facilities located thereon of any type whatsoever now or hereafter existing as such within the City.

Section means any section, subsection, or provision of this Act.

Subscriber or *Customer* means any Person who or which elects to subscribe to or purchase, for any purpose, a service provided by the Grantee by means of, or in connection with, the Grantee's Wireline Telecommunications System.

Toll Call means a communication between two service points in different local exchanges transmitted by any physical units utilized in providing the communication excluding services furnished by a local exchange company out of the local exchange tariff.

Wireless Communications System means any system which uses a form of cellular telephony which allows customers to access and/or make telephone calls to each other through a system which transmits signals through the air or over the Public Switched Telephone Network (PSTN) using cordless telephone devices which communicate with limited range cells (transmitter/receiver sites) connected to a backhaul network.

Wireless Service Provider, also referred to herein as *Wireless Communication System Provider*, means a company that offers transmission services via a Wireless Communication System to users of wireless devices such as handheld computers, cellular telephones, and other wireless devises, through radio frequency signals rather than through end-to-end wire communication.

Wireline Telecommunications Service means services offered by means of a Telecommunications System.

Wireline Telecommunications System or *System* means the Equipment and Plant essential to the transmission, between or among points specified by the Subscriber, of information of the Subscriber's choosing (including the collection, storage, forwarding, switching, and delivery of such information), without change in the form or content of the information as sent and received, by means of an electromagnetic transmission, fiber optic media, wireless communications system, or any combination thereof. For the purpose of this Act, such terms shall include the provision of Long Distance Network Service, local exchange service, competitive local access services and video services. The specific type of Wireline Telecommunications Systems to be provided by a Grantee shall be as defined in the Franchise authorized pursuant to this Act.

Women-owned Business Enterprise or WBE means a business which is at least 51 percent owned by one or more women, or, in the case of a publicly held corporation, 51 percent of the stock

is owned by one or more women, and the management and daily business operations of which are controlled by one or more women.

Year means a full calendar year.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 22082, § 2, 11-17-05)

Sec. 30-46. Grant of franchise.

(a) *Grant.* Subject to Section 30-44(b) of this Act, after the enactment hereof, in the event that Grantor shall grant to the Grantee a Franchise to occupy the City's Rights-of-Way to install, maintain and/or repair a Wireline Telecommunications System within the City, the Franchise shall include those provisions of the Grantee's Franchise Application that are finally negotiated and accepted by the Grantor and Grantee and set forth in writing. The terms of any Franchise granted by Grantor shall be consistent with the provisions of this Act and shall not conflict with, eliminate, or materially alter any provision of this Act. In the event of a conflict between the terms of this Act and the Franchise, the terms of this Act shall control unless the Franchise specifically and expressly modifies the terms of this Act.

The Franchise shall be granted under the terms and conditions contained herein and as set forth in the City Charter, which terms and conditions are incorporated by reference as if fully set forth at length herein. In the event of conflict between the terms and conditions of any Franchise and the terms and conditions on which the City can grant a Franchise as set forth in the City Charter, the City Charter shall, without exception, control.

The Franchise shall be subject to the Charter and general ordinance provisions of the City. Nothing in the Franchise shall be deemed to waive the requirements of the various codes and ordinances of the Grantor regarding permits, fees to be paid, manner of construction, or the zoning and land use regulations.

(b) *Occupation of Rights-of-Way.* For the purpose of operating and maintaining a Wireline Telecommunications System in the City, a Grantee may occupy, install, maintain and/or repair such Equipment and Plant as is necessary and appurtenant to the operation of a Telecommunications System on public property and Rights-of-Way within the City. In installing, maintaining and/or repairing its Wireline Telecommunications System on public property and Rights-of-Way of the City, the Grantee shall comply with all applicable rules, regulations and laws, including but not limited to all zoning and land use regulations.

(c) *Duration.* The term of the Franchise and all rights, obligations and restrictions pertaining thereto shall be for a definite period of time, not to exceed 15 years from the effective date of the Franchise unless terminated sooner as hereinafter provided. The effective date of the Franchise shall be the date of acceptance of the Franchise by the Grantee after passage by the Council, in accordance with Section 30-55.

(d) *Franchise Nonexclusive.* The Franchise shall be nonexclusive. The Grantor specifically reserves the right to grant, at any time, such additional Franchises for Wireline Telecommunications Systems as it deems appropriate.

(e) *Nontransferable Requirements.*

(1) Grantees shall provide the Grantor with written notice of any transfer, sale, or assignment of any material interest in, or a change in control of, Grantee within ten days after the completion of such transfer, sale, or assignment. Grantee shall provide Grantor with copies of petitions, applications, communications, and reports submitted by the Grantee to the FCC, the Securities and Exchange Commission or any other Federal or State regulatory commission or agency having jurisdiction over any aspect of such transfer, sale or assignment.

(2) Except for sales, assignments, or transfers of Franchises by reason of transfers, sales, or assignments of material interests in or changes of control of Grantees, Franchises shall not be sublet or assigned, nor shall any of the rights therein granted or authorized be leased, assigned, sold or transferred, either in whole or in part, nor shall title thereto, either legal or equitable, or any right, interest or property therein, pass to or vest in any Person,

except the Grantee, without the prior consent of the Grantor expressed by ordinance. Such consent shall not be unreasonably withheld. The Grantor shall be deemed to have consented if the Grantor has not acted within 120 days after receipt of Grantee's request for approval unless Grantor and Grantee agree to an additional period of time for Grantor's review. The granting of such consent shall not render unnecessary any subsequent consent. For the purpose of determining whether it will consent to such change, transfer, or assignment of the Franchise, the Grantor may inquire into the qualifications of the prospective holder of the Franchise, including, but not limited to proof of such Person's compliance with the insurance and Security Fund requirements of this Act, and Grantee shall assist the Grantor in any such inquiry.

(3) Within 60 days after transfer, sale, or assignment of the Franchise, Grantee shall file with the Grantor a copy of the deed, agreement, mortgage, lease, or other written instrument evidencing such sale, transfer or assignment, certified and sworn to as correct by the Grantee.

(4) For purposes of this Act, a change in control of Grantee occurs:

a. When a 51 percent ownership interest in the Grantee is acquired;

b. When an ownership interest changes from 51 percent or more to 50 percent or less;

c. When substantially all of the assets of the Grantee are acquired by a third party; or

d. When control, as defined by the regulations of the Securities and Exchange Commission, is acquired.

(f) *Lease of Facilities.* The Grantee is not authorized to license or Lease to any Person the right to occupy or use the public Rights-of-Way or Grantee's facilities located on the Rights-of-Way for the conduct of any private business unless such Person has obtained a Franchise or other appropriate authorization from the City for such occupancy. Grantee shall immediately notify Grantor when Grantee Leases or allows any occupancy of its facilities by any Person. To the extent that any Right-of-Way or Public Property is occupied by a Distributed Antenna System, no Wireless Service Provider granted access to the Grantee's Hub shall be required to obtain a separate Franchise or other authorization from the City. Grantee shall advise Grantor in writing of the name, address and telephone number of each Wireless Service Provider granted access to Grantee's Hub within ten days of the grant of such access.

(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 22082, § 3, 11-17-05)

Sec. 30-47. Construction provisions.

(a) *Initial Geographical Coverage.* The Wireline Telecommunications System shall be installed initially in accordance with the general route maps included in the Franchise Application. Prior to construction in areas not specified in the Franchise Application, Grantee shall notify the Director of the planned construction and obtain necessary permits from the City. Upon receipt of all necessary permits, Grantee shall notify the Director that it has obtained all necessary permits, and shall request that the Director approve an amendment to the route maps included in the Franchise Application. The Director shall determine whether there is sufficient capacity in the Rights-of-Way to accommodate Grantee's proposed expansion. The Director shall have 30 days from the receipt of such request to approve or disapprove the proposed amendment to the route maps. Such approval or disapproval shall be determined in a reasonable manner.

(b) *System Construction Schedule.*

(1) *Initial Service and Expenditures.* The Grantee shall begin construction within six months after acceptance of its Franchise. The Grantee shall complete installation of the Wireline Telecommunications System in accordance with plans submitted by Grantee at the time of Application and approved by Grantor pursuant to Section 30-55(b).

(2) *Detailed Plans and Schedules.* Prior to construction, the Grantee shall provide a detailed construction plan including a progress schedule, area construction maps, test plan, and projected dates for offering service. In addition, the Grantee shall provide the Director with evidence whether schedules are being met and the reasons for any delay.

(3) *Failure to Begin or Complete Construction.* Grantee's failure to begin System construction within six months after its acceptance of the Franchise and/or Grantee's failure to complete construction as agreed will be grounds for termination of the Franchise, at the option of the Grantor.

(c) *Penalties for Delay in Construction.* The Grantor may, at its sole discretion, apply penalties in connection with delays in System construction and operation but not limited to:

(1) Reduction in the duration of the Franchise on a month-for-month basis for each month of delay exceeding three months beyond the schedules set forth herein;

(2) Termination of the Franchise for delays exceeding 18 months beyond the schedules set forth herein; and/or

(3) Other remedies or penalties provided by law.

(d) *Undergrounding of Cable.*

(1) Wireline Telecommunications Systems shall be installed underground at Grantee's cost where existing utilities are already underground. The utility owning the underground facilities shall make a reasonable determination as to whether space is available to accommodate the Wireline Telecommunications System cables or Equipment and Plant. A negative determination shall not relieve the Grantee of the responsibility to underground its Telecommunications System in underground utility areas. Previously installed aerial facilities shall be placed underground in concert, and on a cost-sharing basis, with other utilities when such other utilities may convert from aerial to underground construction.

(2) No Wireline Telecommunications System shall be installed aerially in the "underground area" as stated in Ordinance No. 13,838 C.S. and Ordinance 4001 M.C.S. (Section 146-359 of the City Code).

(3) Whenever technically feasible, underground conduits and ducts shall be installed in the street between the adjacent property line and the curb line.

(4) Whenever technically feasible conduits and ducts for Wireline Telecommunications Systems shall be installed parallel with the curb line and cross the Rights-of-Way perpendicular to the Rights-of-Way centerline.

(5) Whenever technically feasible, ducts and conduits shall be installed by trenchless excavation or directional boring for Rights-of-Way crossings to avoid motor vehicle or public transportation interruptions.

(e) *Construction.*

(1) *Industry Practices.* Wireline Telecommunications Systems constructed pursuant to Franchises granted hereunder shall be in accordance with generally accepted telecommunication industry practices and the Grantee's Franchise, and relevant LPSC regulations.

(2) *As Built Drawings.* Grantee shall furnish Grantor "as built" drawings not later than 120 days after construction has been completed. Drawings shall show ownership of conduits, ducts, poles and cables used for the Wireline Telecommunications System. Drawings shall be drawn to a scale of one inch equals 100 feet using the standard format adopted by the Finance Department. Grantee shall provide one set of such diskettes and one set of blue or black line "as built" drawings to the Director, and one set of drawings and diskettes to the Director of the Department of Public Works. State plane coordinates shall be shown for benchmarks, curb lines and structures. Drawings shall show horizontal dimensions from the curb line and elevations.

(f) *Construction Codes.* The Grantee shall strictly adhere to all building, safety and zoning codes currently or hereafter in force. The Grantee shall arrange its lines, cables, and other appurtenances so as to cause no unreasonable interference with the use of public property by any person. In the event of such interference, the Grantor may require the removal of the Grantee's lines, cables, and appurtenances from the property in question with costs borne by the Grantee.

(g) *Erection of Additional Poles.* Grantee is prohibited from erecting new poles unless Grantee procures approval for such erection from the appropriate City agency or department in accordance with all applicable rules, regulations and laws, including but not limited to all applicable zoning and land use regulations. If Grantee requires additional poles in an existing aerial utility route, Grantee shall negotiate with the utility company for the installation of the needed poles in accordance with existing statutes and regulations.

(h) *Restoration of Rights-of-Way.*

(1) Whenever the Grantee shall disturb the surface or ground of any Rights-of-Way for any purpose mentioned herein, it shall restore the same to the condition in which it existed prior to the disturbance, and when any opening is made by the Grantee in any hard surface pavement in any Rights-of-Way, the Grantee shall promptly refill the opening and restore the pavement. The Grantor may refill and/or repave, in case of neglect of the Grantee, upon failure of Grantee to refill or repave after 10 days notice. The reasonable cost thereof, including the cost in inspection and supervision, shall be paid by the Grantee. All excavations made by the Grantee in the Rights-of-Way shall be properly safeguarded for the prevention of accidents. The work hereby required shall be done in strict compliance with the rules, regulations and ordinances of the Grantor as now or hereafter provided.

(2) The surface, base, and landscape treatment of any Right-of-Way disturbed by the Grantee in the construction or maintenance of its Wireline Telecommunications System shall be restored in accordance with existing standards of the Grantor in effect at the time of the work. Should the Grantor determine, within two years from the date of such restoration, that such surface, base, or landscape treatment requires additional restoration work to meet existing standards of the Grantor, the Grantee shall perform such additional restoration work at its expense to the reasonable satisfaction of the Grantor.

(i) *Reservation of street rights and nonliability of grantor.* Nothing in the Franchise shall be construed to prevent the Grantor from constructing sewers and drains, grading, paving, repairing and/or altering any street, alley, public highway, or municipal structure, or laying down, repairing or removing water mains or constructing or establishing any other public work. All such work shall be done, insofar as practicable, in such a manner as not to obstruct, injure or prevent the free use and operations of Grantee's telecommunications system. If any such property of the Grantee shall interfere with the construction or repair of any street or public improvement, whether it be construction, repair or removal of a sewer or water main, the improvement of a right-of-way or any other public improvement, all the Grantee's telecommunications system shall be removed or

replaced in such a manner as shall be directed by the Grantor so that the same shall not interfere with such public work of the Grantor, and such removal or replacement shall be at the expense of the Grantee. Grantor shall not be liable to Grantee or third parties for any damage, breakage or repair, or any claims for loss of use, business interruption, claims by users, repair or replacement cost to any third party in connection with the removal of any of Grantee's telecommunication systems. In any event, the Grantor shall not be liable for any damage occurring to the Grantee's system caused by the Grantor, its officers, agents, employees, or independent contractors, in the performance of their duties in connection with public works, nor shall the Grantor be held liable for the interruption of service by actions of the Grantor, its officers, agents, employees, or independent contractors, in the performance of their duties in connection with public works. When reasonably possible, the Grantee shall be consulted prior to any public work affecting its telecommunications system, but the Grantor shall have no liability to the Grantee in the event it does not so consult the Grantee.

(j) *Trimming of Trees.* Tree cutting or trimming on public property shall be performed in accordance with Ordinance No. 365 M.C.S. (Chapter 106 of the City Code).

(k) *Street Vacation or Abandonment.* In the event any Rights-of-Way or portion thereof occupied by the Grantee shall be vacated by the Grantor, or the use thereof discontinued by the Grantee during the term of the Franchise, the Grantee shall remove its facilities therefrom unless specifically permitted to continue the same, and on the removal thereof shall restore, repair or reconstruct the street area where such removal has occurred, and place such street area in such condition as may be required by the Grantor. In the event of the failure, neglect or refusal of the Grantee, after 30 days notice by the Grantor to repair, improve or maintain such street portion, the Grantor may do such work or cause it to be done, and the reasonable cost thereof as determined by the Grantor shall be paid by the Grantee and collection may be made by court action or otherwise.

(l) *Movement of Facilities.* In the event it is necessary temporarily to move or remove any of the Grantee's wires, cables, poles or other facilities placed pursuant to the Franchise, in order lawfully to move a larger object, vehicle, building or other structure over the Rights-of-Way of the Grantor, Grantee upon reasonable notice shall move, at the expense of the person requesting the temporary removal, such of its facilities as may be required to facilitate such movements.

(m) *Safety.*

(1) *Standard of Care.* The Grantee shall, at all times, employ the standard of care attendant to the risks involved and shall install and maintain in use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damage, injury, or nuisance to the public or to employees of the Grantee.

(2) *National Electrical Safety Code.* The Grantee shall use, install, maintain, repair and/or operate its wires, cables, fixtures, and other Equipment and Plant in accordance with the requirements of the National Electrical Safety Code and the requirements of any utility providing pole or conduit space and in such manner that Grantee will not interfere with any installations of the Grantor or any public utility.

(3) *Maintenance.* All of Grantee's lines, equipment, and connections in, over, under, and upon the Rights-of-Way, wherever situated or located, shall at all times be kept and maintained in a safe and suitable condition, and in good order and repair.

(4) *Louisiana One Call.* No Franchise shall be granted hereunder for a Wireline Telecommunications System using underground Equipment and Plant within the Rights-of-Way unless and until the Grantee becomes a member of, participates in, and shares the cost of the Louisiana One Call System, as required in R.S. 40:1749.11 et seq. Written evidence of compliance with this section shall be provided to Grantor

before a Franchise is granted. Compliance with this section must be maintained throughout the term of the Franchise.

(5) *Participation in Geographic Information System.* No franchise shall be granted hereunder for a Telecommunication System unless Grantee participates in the City's Geographic Information System administered by the New Orleans City Planning Commission (the "Commission") in an electronic form acceptable to the Commission.

(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 19,150, § 1, 3-31-99; M.C.S., Ord. No. 21480, § 1, 4-1-04)

Sec. 30-48. Service provisions.

(a) *Services to be Provided.*

(1) Grantee shall not provide services regulated by the LPSC/FCC unless specifically authorized to provide such services.

(2) Grantee shall not use its Wireline Telecommunications System or occupy the City's Rights-of-Way to provide cable television

services or operate a cable television system as defined in the Cable Communications Policy Act of 1984 (47 U.S.C.A. § 521 et seq., as amended), or as recognized by the FCC without first obtaining a separate cable franchise from the Grantor, and Grantee shall not allow the use of its Telecommunications System by a cable system or operator that has not been granted a cable franchise by the Grantor.

(b) *Emergency Requirements.* In case of Emergency or disaster, Grantee shall, upon request of the Grantor, cooperate with Grantor to the greatest extent reasonably feasible to render such assistance as may be required, which may include but shall not be limited to the usage of Grantee's Equipment and Plant, in accordance with the provision of the Emergency Assistance and Disaster Act, R.S. 29:722 et seq.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-49. Operation and maintenance.

(a) *Audit of Books and Records.* Except Wireline Telecommunications Systems providers providing Long Distance Network Service, after reasonable notice, Grantor shall have the right to inspect at any time during normal business hours, all books, records, maps, plans, income tax returns, financial statements, and other like materials of the Grantee necessary to the conducting of an audit of the operation of the Grantee's Wireline Telecommunications System within the City in accordance with the provisions of this Act and the Franchise. Access to the aforementioned records shall not be denied by the Grantee on the basis that such records contain "proprietary" information. To the extent permitted by law, the Grantor shall preserve the confidentiality of information designated by Grantee as proprietary and the auditor conducting the audit on behalf of Grantor shall execute a proprietary agreement, subject to the approval of the Grantor and Grantee, for the protection of proprietary documents made available for review under this Section. In the event such an audit reveals that Grantee has underpaid its Franchise Fees, Grantee shall promptly reimburse the Grantor for such underpayment. In the event that the underpayment is in the amount of five percent or more, Grantee shall promptly reimburse the Grantor for such underpayment as well as Grantor's reasonable costs associated with the conduct of the audit.

(b) *Communications with Regulatory Agencies.* Grantor shall have the right to request and receive copies of all petitions, applications, communications, and reports submitted by the Grantee to the FCC, the Securities and Exchange Commission, or any other Federal or State regulatory commission or agency having jurisdiction in respect to any matters affecting telecommunications installations and operations authorized pursuant to the Franchise. Grantor likewise reserves the right to request and review copies of responses from the regulatory agencies to the Grantee.

(c) *Annual Report.* No later than Grantee shall notify the Department of the end of its fiscal year and within 90 days after the end of Grantee's fiscal year, the Grantee shall present a written report to the Grantor which shall include:

(1) A certified financial report for the previous calendar year, including gross revenues from all sources of operations in the City and recertifying self-insurance ability if applicable.

(2) A certified report specifying the location and extent of Grantee's System in the City.

(3) Projected construction plans for installation in the City.

(4) Report demonstrating the equal opportunity policy compliance per Section 30-56 hereof.

(5) To the extent that Grantee is subject to the self-insurance provisions of Section 30-50(f)(3) hereof, Grantee shall provide proof that Grantee's self-insurance program is sufficiently liquid to cover all losses in the amount shown in Section 30-50(f)(1) hereof.

(6) Grantee shall provide a report which identifies each provider which is using Grantee's System for the resale of services, and the extent of such services.

(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-50. General financial and insurance provisions.

(a) *Existing Franchises Subject to Ordinance of General Application.* For existing Franchises and

permits and privileges which are subject to an Ordinance of General Application, as compensation for the occupancy of Public Property and of the Rights-of-Way of the City for the construction, operation, maintenance, and/or the reconstruction of a Wireline Telecommunications System within the City, the value of such rights and privileges granted by the Franchise, the fact that the Rights-of-Way contain limited and finite capacity, the administration of this Act and the Franchise by the Grantor, the usage and interference with the public's use of Rights-of-Way, the reduction in the useful life of the Rights-of-Way and other costs and obligations undertaken by the Grantor herein, the Grantee shall be subject to all existing provisions of its Franchise, permits and privileges and the Grantee shall pay to the Grantor an annual compensation to be calculated as stated below:

(1) *Long distance and Private Communications Systems.* For Wireline Telecommunications Systems providing Long Distance Network Service or Private Communications Systems, the compensation payable to Grantor shall be based on a fee of $2.60 per year per linear foot of Right-of-Way or other Public Property occupied by Grantee's system, and every five years such compensation shall be increased by the average increase in the Consumer Price Index ("CPI") for the preceding five years. The increase initially shall become effective on the fifth anniversary of the date Grantee's Franchise was accepted pursuant to Section 30-55 of this Act and every five years thereafter;

(2) *All others.* For all other Wireline Telecommunications Systems the compensation payable to the Grantor shall be as follows:

a. For the first year of Grantee's Franchise, Grantee shall pay $2.60 per linear foot for its approved System route;

b. For the second, third and fourth years of Grantee's Franchise, Grantee shall pay five percent of its Gross Receipts from the operation of the System within the City, plus $2.60 per linear foot for any additional approved System route in excess of its original approved System route; and

c. Thereafter, when five percent of Grantee's Gross Receipts from the operation of the System within the City exceeds the minimum fee calculated on a $2.60 per linear foot basis in any year, the compensation payable to Grantor for that year shall be five percent of Grantee's Gross Receipts from the operation of the System within the City. For any year in which five percent of Grantee's Gross Receipts exceeds the linear foot payment, Grantee shall be credited with the amount of the linear foot fee payment to Grantor, and Grantee shall pay to the Grantor the additional amount by which the Gross Receipts payment exceeds the linear foot payment;

(3) It is expressly understood that the compensation terms provided in this Section 30-50(a) shall be applicable to persons with existing franchises, permits and privileges which are subject to an Ordinance of General Application, and shall replace any similarly characterized compensation terms (percentage of gross revenues or per linear foot fees) provided in such existing franchise, permit or privilege. Notwithstanding the foregoing, nothing contained in this Section 30-50(a) shall be deemed to relieve any Person having such existing franchise, permit or privilege of its obligation to pay any and all other forms of compensation contained in its franchise, permit or privilege.

(b) *Future Franchises.*

(1) *Compensation.* All Franchises granted or authorized after the date of this Act shall provide compensation for the occupancy of Rights-of-Way in the following categories:

a. For Private Communications Systems, the compensation payable to Grantor shall be based on a per linear foot of Right-of-Way occupied by Grantee's System.

b. For Wireline Telecommunications Systems providing Long Distance Network Service to a Service Address within

the city, the compensation payable to the grantor shall be an amount per minute for toll calls charged to a service address within the corporate limits of the city or other rate set by the grantor.

c. For all other wireline telecommunications systems (excluding wireline communications systems), the compensation payable to the grantor shall be based on a linear foot measurement or percentage of grantee's gross receipts from the operation of the system within the city.

d. For wireless communications systems, the compensation payable to the grantor shall be a fixed amount per month per cell site located on rights-of-way, plus an amount per year per linear foot of right-of-way occupied by grantee's backhaul network.

e. Where a franchise has been granted to a primary grantee by grantor for the operation of a telecommunications system, and the compensation to be paid for said telecommunications system has been based on a linear-foot measurement, the compensation to grantor for any additional franchise granted with the permission of the primary grantee to a secondary grantee, and involving the use by secondary grantee of all or a portion of the telecommunications system operated by the primary grantee, shall be the lesser of a) $25,000.00 or b) the sum which results from multiplying the total linear footage to be used by secondary grantee times the charge per linear foot paid by the primary grantee. Where the franchise to be granted to secondary grantee involves the use of all or a portion of the telecommunications system of more than one primary grantee, the total compensation to be paid to grantor by secondary grantee shall be the lesser of a) $25,000.00 or b) the sum which results from multiplying the charge per linear foot paid by the respective primary grantees times the combined linear footage from all telecommunications systems to be used by secondary grantee. The term primary grantee, as used herein, shall mean a grantee of a franchise to operate a specific telecommunications system who allows a secondary grantee to acquire or use not more than percent of the total strands of fiber contained in the cable(s) which run along said primary grantee's telecommunications system, or portion thereof. The term secondary grantee, as used herein, shall mean a subsequent grantee who acquires from the primary grantee the right to use not more than ten percent of the total strands of fiber contained within cable(s) running along the primary grantee's telecommunications system, or portion thereof. The provisions of this subsection shall not apply to Wireless Service Providers granted access to the Grantee's Distributed Antenna System for the purpose of providing wireless telecommunications service pursuant to Section 30-46(f) of this Code.

f. Where a Franchise has been granted to a Grantee for the operation of a Distributed Antenna System, the annual compensation payable to Grantor by Grantee for the use and occupancy of Grantor's Right-of-Way or other Public Property shall be $2.60 per linear foot of fiber optic cable in the City's Right-of-Way and/or other Public Property occupied by Grantee's approved Distributed Antenna System route used to connect Grantee's Hub to the Node nearest to Grantee's Hub. Nothing contained in this subsection shall be deemed to relieve the Grantee from per Node rental

payment required by subsection g., the security fund required by subsection (b).

If technologically possible, all accessory equipment used in connection with a Grantee's Distributed Antenna System shall be housed outside of the public right-of-way.

g. Where a Franchise has been granted to a Grantee for the operation of a Distributed Antenna System, Grantee shall pay Grantor as rent for the placement of a remote unit consisting of a distributed, repeater, or microcell antenna system on Grantor's Public Property, including, but not limited to, utility poles, stop signs, other utility structures, and/or public buildings, a rental payment of $70.00 per month for each Node located within the Franchise area granted for the operation of Grantee's Distributed Antenna System. Grantee shall immediately notify the Department of Finance when Grantee adds an additional Node or Nodes and the rent due to Grantor shall be increased retroactively to the date such Node or Nodes were installed. The monthly rental payment required by this Section 30-50(b)(1)(g) shall be in addition to the annual compensation due Grantor for the use and occupancy of Grantor's Right-of-Way or other Public Property pursuant to subsection f.

(2) *Criteria.* In negotiating the specific compensation levels for the categories set forth in this subsection, the parties shall consider the following criteria:

a. The burden(s) created by grantee's occupancy of the rights-of-way;

b. The inconvenience to citizens created by grantee's construction and use of the rights-of-way;

c. The damage caused to the rights-of-way by grantee's construction;

d. The diminution of the useful life of rights-of-way caused by construction on such rights-of-way;

e. Hazard to public safety occasioned by grantee's occupancy of rights-of-way;

f. Costs of monitoring and administering the franchise;

g. The value of the rights-of-way affected by grantee's occupancy;

h. Location of rights-of-way sought to be occupied by grantee in their limited and finite capacity;

i. Rates paid by grantees under existing franchises; and

j. Any and all such other criteria as the grantor deems appropriate.

(c) *Miscellaneous general financial and insurance provisions.*

(1) *Payments.* All payments calculated by the linear foot are due and payable one year in advance and shall be paid annually by January 1 of each year. Payments calculated on all other bases are payable quarterly, within 30 days after the end of the preceding calendar quarter. Payments shall be by check made payable to the city and delivered to the department of finance. If any payment is not received by the due date, grantee shall add to its payment a late penalty in the amount of ten percent of the amount due. Additionally, interest in the amount of ten percent per annum shall accrue on all payments and penalties until paid in full.

(2) *Acceptance of payments.* No acceptance of any payment shall be construed as an accord that the amount paid is in fact the correct amount, nor shall such acceptance of payment be construed as a release of any claim the grantor may have for further or additional sums payable under the provisions of this Act. All amounts paid shall be subject to audit and recomputation by the grantor.

(3) *Further consideration.* As further consideration for the privilege of occupying the rights-of-way, every grantee may be required to provide to grantor the following:

a. Upon request and without charge, reasonable access to and utilization of any conduit and/or duct space in grantee's telecommunication system, for noncommercial purposes. Such requirement shall be determined at the time that grantee's franchise application is considered, and shall depend upon the location of grantee's proposed wireline telecommunications system and grantor's reasonable needs in such location.

b. Dark fibers in every portion of the fiber backbone cable of the wireline telecommunications system installed during the term of the franchise for the grantor's use. Grantee shall also provide feeder cables to such public buildings as are adjacent to grantee's wireline telecommunications system, provided that the grantor constructs, or otherwise provides, an entry link to those buildings for such feeder cable. The number and location of dark fiber to be provided hereunder shall be determined at the time that grantee's franchise application is considered, and shall depend upon the location of grantee's proposed wireline telecommunications system and grantor's reasonable needs in such location.

(i) For purposes of this subsection, "adjacent" shall mean adjoining or abutting a portion of the right-of-way containing grantee's wireline telecommunications system, and "public buildings" shall mean buildings where agencies which perform public functions are located.

(ii) If the initial dark fibers are not functional due to any cause, the grantee shall provide fully operational dark fibers at no cost to the grantor.

(iii) The city may interconnect such dark fibers to any other wireline telecommunications system.

(iv) In lieu of providing all or a portion of the dark fibers, the city may accept other services, facilities, funds, or other financial arrangements similar in value to the provision of dark fibers.

(4) *Nature of franchise fee.* The compensation and other payments to be made pursuant to the franchise are in addition to any and all taxes and fees or charges which the grantee or any affiliated person shall be required to pay to the grantor or to any other governmental authority. Neither the grantee nor any affiliated person shall have or make any claim for any deduction or other credit of all or any part of the amount of compensation or other payments made pursuant to the franchise against any other fees or charges, including ad valorem taxes and/or any taxes which the grantee or any affiliated person is required to pay to the grantor.

(d) *Security fund.*

(1) *Fund deposit.* Within 30 days after the effective date of the franchise, the grantee shall deposit into a bank account, established by the city and maintained on deposit through the term of the franchise, the sum of up to $100,000.00, or, at grantee's option, grantee shall post a performance bond in accordance with the applicable city procedures, in an amount of up to $100,000.00, however, where a Franchise has been granted to a Grantee for the operation of a Distributed Antenna System, the Grantee shall deposit into a bank account, established by the City and maintained on deposit through the term of the Franchise, the sum of $25,000.00, or at Grantee's option, Grantee shall post a performance bond in accordance with

the applicable City procedures, in the amount of $25,000.00, in either case, unless a different amount is specified in the franchise, as security for:

a. The faithful performance by it of all of the provisions of the franchise; and

b. Compliance by grantee with all orders, permits and directions of any agency of the grantor having jurisdiction over grantee's acts or defaults pursuant to this Act; and

c. The payment by the grantee of any claims, liens, fees and/or taxes due the grantor which arise by reason of the construction, operation or maintenance of the system.

The maintenance of such bank account shall be a continuing obligation of grantee until the grantee has satisfied all of its obligations with the grantor that may have arisen from the acceptance of the franchise by the grantee or from its

exercise of any privilege or right granted thereby. Alternatively, the Grantee may provide such other instrument, security, or guaranty which is acceptable to the Grantor. It is the intent of Grantor that the Security Fund be established in an amount or have a value sufficient to effectuate the purposes set forth in subsections a., b., and c. above.

(2) *Failure to Pay.* If the Grantee:

a. Fails to pay to the Grantor any fees due and unpaid; or

b. Fails, after ten days notice, to repay to the Grantor any damages, costs, or expenses which the Grantor shall be compelled to pay by reason of any act or default of the Grantee in connection with the Franchise;

c. Fails to pay the Grantor any fees due as a result of any transactions which have the effect of circumventing payment of such required fees and/or the evasion of any such payment by noncollection or nonreporting of Gross Revenues, bartering, or any other means which evades the actual collection of revenues for business pursued by the Grantee; or

d. Fails, after 30 days notice of such failure, to comply with any provision of the Franchise which the Grantor reasonably determines can be remedied by an expenditure of the Security Fund;

Then the Grantee shall have committed a material violation of the Franchise and in that event the Grantor may immediately withdraw the amount thereof, from the Security Fund. Upon such withdrawal, the Grantor shall notify the Grantee of the amount and date thereof.

(3) *Restoration of Fund.* Within 30 days after notice to Grantee that any amount has been withdrawn by the Grantor from the Security Fund pursuant to this Section, the Grantee shall deposit a sum of money sufficient to restore such Security Fund to the original amount.

(4) *Return upon expiration.* In the event that the Franchise is terminated by reason of default by Grantee, to the extent that such default is for nonpayment of any amount due and payable pursuant to the Franchise, an amount of the Security fund equal to the amount of the nonpayment shall become the property of the Grantor. The Grantee, however, shall be entitled to the return of such Security Fund, or portion thereof, as remains on deposit at the expiration of the term of the Franchise, or upon termination of the Franchise at an earlier date, provided that there is then no outstanding default on the part of the Grantee.

(5) *Rights of Grantor.* The rights reserved to the Grantor with respect to the Security Fund are in addition to all other rights of the Grantor whether reserved by this Act or authorized by law, and no action, proceeding or exercise of a right with respect to such Security Fund shall affect any other right the Grantor may have.

(6) *Construction Bond.* Grantor may require a construction bond from Grantee.

(e) *Damages and Defense.*

(1) *Hold Harmless.* The grantee shall hold the Grantor harmless for all damages and penalties suffered as a result of, or arising out of, the Grantee's negligent use, installation, maintenance, repair and/or operation of the Wireline Telecommunications System authorized whether or not any act or omission complained of is authorized, allowed, or prohibited by the Franchise. This provision is not intended to create liability for the benefit of third parties but is solely for the benefit of the Grantor and the Grantee. In the event any claim is made against the City that falls under this indemnity and a court of competent jurisdiction should adjudge, by final decree, that the Grantor is liable therefor, the Grantee shall indemnify and hold the

Grantor harmless of and from any such judgment or liability, including any court costs, expenses, and attorney fees incurred by the Grantor in defense thereof. Upon commencement of any proceeding at law or in equity against the Grantor relating to or covering any matter covered by this indemnity, where the Grantee has agreed, by accepting the Franchise, to indemnify and hold the Grantor harmless, or to pay such final judgment and costs, as the case may be, the Grantor shall give the Grantee immediate notice of such suit or proceeding. The Grantee shall provide a defense to any such suit or suits, including any appellate proceedings brought in connection therewith, and pay as aforesaid, any final judgment or judgments that may be rendered against the Grantor by reason of such damage suit. Upon failure of the Grantee to comply with the "defense of suit" provisions of this Act, after reasonable notice to it by the Grantor, the Grantor shall have the right to defend the same and in addition to being reimbursed for any such judgment that may be rendered against the Grantor, together with all court costs incurred therein, the Grantee shall reimburse the Grantor for attorney's fees, including those employed by the Grantor in such case or cases, as well as all expenses incurred by the Grantor by reason of undertaking the defense of such suit or suits, whether such suit or suits are successfully defended, settled, compromised, or fully adjudicated against the Grantor.

(2) *Defense Expense.* The Grantee shall pay all expenses incurred by the Grantor in defending itself with regard to all damages and penalties mentioned in subsection (e) above and for all claims against Grantor arising out of the Franchise. These expenses shall include all out-of-pocket expenses, such as attorney fees, and shall also include the reasonable value of any services rendered by any employees of the Grantor. In the event the Grantor is compelled to undertake the defense of any such suit by reason of the Grantee's failure to perform as here and above provided, the Grantor shall have the full right and authority to make or enter into any settlement or compromise of such adjudication as the City Council shall deem in the best interest of the Grantor, this without the prior approval or consent of the Grantee with respect to the terms of such compromise or settlement.

(f) *Liability Insurance and Indemnification.*

(1) Except as provided in Section 30-50(f)(3) below, the Grantee shall maintain, throughout the term of the Franchise, liability insurance naming both the Grantee and the Grantor as insureds with regard to all damages mentioned in subsection (e) above, in the minimum amounts shown below:

a. Workmen's Compensation (if applicable): $100,000.00/$500,000.00/$100,000.00

b. Commercial General Liability: $2,000,000.00 each occurrence; $2,000,000.00 Aggregate

c. Motor Vehicle: $2,000,000.00 CSL (Combined Single Limit)

d. Builder's Risk "All Risk": 100 percent of Contract Amount

(2) Grantee shall, at its own expense, maintain in full force and effect throughout the duration of the Franchise, a liability insurance policy or policies underwritten by a carrier rated by Best's as either A or AA and licensed to do business in the State of Louisiana, and a copy of such policy or policies shall be submitted to Grantor. Such policy or policies shall name the City of New Orleans, including its boards and commissions and its officers, agents and employees, jointly and severally, as named insureds. Such policy or policies shall apply as primary insurance and shall stipulate that no other insurance in effect by the Grantor will be called on to contribute to a loss covered hereunder and shall provide for a waiver of subrogation in favor of the Sewerage & Water Board of New Orleans. Upon the effective date of

the franchise, the grantee shall furnish proof to the grantor that satisfactory insurance policies have been obtained. A copy of the certificate of insurance shall be on file with the department of finance and maintained current at all times. Such policy or policies shall provide 45 days' prior notice to the director if the policy or policies should be canceled or materially changed.

(3) In the event grantee is self-insured, then in lieu of the certificate of insurance required herein, grantee shall provide grantor upon the effective date of the franchise, proof that grantee's self-insurance program is sufficiently liquid to cover all losses in the amount shown in subsection (1) above. Grantee shall immediately notify grantor of any change in its self-insured status and of any change in the ability of grantee to cover the losses specified in subsection (1) above.

(g) *Costs of auditors and consultants.* As necessary aid in the analysis and/or audit of all matters relative to the franchise, the grantor shall be entitled to employ services of an auditor and/or consultant. Any and all costs incurred by the grantor in this regard shall be borne by the grantee if any violations of its franchise or this Act are identified in such audit, analysis or consult, as provided in sections 158-661 and 158-691 of the City Code.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 20808, § 1, 8-8-02; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 22082, §§ 4—7, 11-17-05)

Sec. 30-51. Rights reserved to grantor.

(a) *Right to purchase the system.* Upon termination by grantor of any franchise granted hereunder for cause, the grantor may elect to acquire ownership of the franchised wireline telecommunications system. In such event, the purchase price shall not include any sum for the value of the franchise, and the equipment and plant shall be valued according to the net book value of initial cost less depreciation and salvage. Additionally, grantor may, in any lawful manner and upon the payment of fair market value lawfully ascertained, purchase, condemn, acquire, take over and hold the equipment and plant of the grantee, in whole or in part, through the exercise of its powers of eminent domain. In such event, the actions of the grantor and the grantee shall be governed by state law.

(b) *Right to require removal of property.* At the expiration or termination of any franchise the grantor shall have the right to require the grantee to remove, at its own expense, all portions of the telecommunications system from all public property and rights-of-way within the city.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-52. Termination and renewal.

(a) *Termination.*

(1) In addition to any rights set out elsewhere in this Act, in particular subsections 30-46(f) and 30-52(g), the grantor reserves the right to seek termination of a franchise pursuant to subsection (a)(3) hereof, and all rights and privileges pertaining thereto, in the event that:

a. *Violation of provisions.* The grantee violates any material provision of the franchise; or

b. *Construction delays.* The grantee's construction schedule is delayed for over 18 months; or

c. *Insolvency.* The grantee becomes insolvent, or is adjudged a bankrupt; or

d. *Fraud.* The grantee is found by grantor to have practiced any fraud or deceit upon the grantor or subscribers.

(2) Upon failure of the grantee to comply with the material terms of the franchise, the grantor may by ordinance terminate the franchise in accordance with the procedures set forth in this section. Upon termination, all rights of the grantee shall immediately be divested without further act upon the part of the grantor. At grantor's option, grantor shall either purchase grantee's equipment and plant in accordance with subsection 30-51(a), or

grantor shall require grantee to remove its equipment and plant from the public property and rights-of-way. If grantor requires removal, the grantee shall forthwith remove its structures or property from the rights-of-way and restore it to such condition as the grantor may require. Upon failure to do so, the grantor may perform the work and collect the cost thereof from the grantee. The cost thereof shall be a lien upon all equipment and plant and property of the grantee. Such lien shall not attach to property of grantee located on poles of other utilities until removal of such property from the pole or poles.

(3) *Procedures for termination.*

a. Upon written recommendation by the director or upon its own motion, the city council shall give written notice to the grantee of the existence of a material violation or failure to comply with the franchise. Grantee shall have a period of 60 days after receipt of such notice from the grantor in which to cease such violation and comply with the terms and provisions hereof. In the event grantee fails to cease such violation or to otherwise comply with the terms hereof, then grantee's franchise is subject to termination under the following provisions. Provided, however, that, if the grantee commences work or other efforts to cure such violations within 30 days after receipt of written notice and shall thereafter prosecute such curative work with reasonable diligence until such curative work is completed, then such violations shall cease to exist, and the franchise will not be terminated. If the curative work is not completed within 90 days of commencement of such work, grantee and the department shall report to grantor with respect to the progress made on such curative work and the anticipated completion date.

b. Termination shall be declared only by a written decision of the city council after an appropriate public proceeding whereby the grantee is afforded the full opportunity to be heard and to respond to any such notice of violation or failure to comply. The grantee shall be provided at least ten days' prior written notice of any public hearing concerning the termination of the franchise and, in addition, ten days notice by publication shall be given of the date, time and place of any public hearing to interested members of the public, which notice shall be paid for by the grantee.

c. The city council, after full public hearing, and upon finding a material violation or failure to comply, may at its discretion terminate the franchise, or impose a lesser penalty than termination of the franchise, including but not limited to a penalty of up to $1,000.00 per day per violation, or excuse the violation or failure to comply upon a showing by the grantee of mitigating circumstances or upon a showing of good cause of such violation or failure to comply as may be determined by the city council.

(b) *Receivership.* The grantor shall have the right to terminate the franchise 120 days after the appointment of a receiver, or trustee, to take over and conduct the business of the grantee, whether in receivership, reorganization, bankruptcy, or other action or proceeding, unless such receivership or trusteeship shall have been vacated prior to the expiration of the 120 days or unless:

(1) *Trustee compliance.* Within 120 days after his/her election or appointment, such receiver or trustee shall have fully complied with all the provisions of the franchise and remedied all defaults thereunder; and

(2) *Agreement to be Bound.* Such receiver or trustee, within such 120 days, shall have executed an agreement, duly approved by the court having jurisdiction in the premises, whereby such receiver or trustee assumes and agrees to be bound by each and every provision of the Franchise.

(c) *Renewal or Extension.* Upon expiration of the initial term of the Franchise, the Grantor may, at its election renew or not renew the Franchise. A Franchise may be renewed by the Grantor, upon application by the Grantee, in accordance with the then existing rules, the New Orleans City Charter, and applicable law. Nothing in this provision shall be construed to require such renewal.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-53. Miscellaneous provisions.

(a) *Compliance with Laws.* The Grantee shall comply with all Federal and State of Louisiana laws, as well as all ordinances, resolutions, rules, and regulations of the Grantor heretofore or hereafter adopted or established during the entire term of the Franchise including but not limited to all zoning and subdivision regulations.

(b) *Severability.* If any provision of this Act is held to be invalid or preempted by Federal or State regulations or laws, such finding or preemption shall not affect the remaining provisions of the Act which can reasonably be given effect, except as provided in subsection (f) below.

(c) *Captions.* The captions to sections throughout this Act are intended solely to facilitate reading and reference to the sections and provisions of this Act. Such captions shall not affect the meaning or interpretation of this ordinance.

(d) *Public Purpose.* All of the provisions of this Act are hereby declared to be for a public purpose and the health, safety, and welfare of the general public, consistent with the maximum permissible exercise of the City's police powers under its Home Rule Charter. Any member of the governing body or city official or employee charged with the enforcement of this Act, acting for the Grantor in the discharge of his or her duties, shall not thereby render himself personally liable; and he or she is hereby relieved from all personal liability for any damage that might accrue to persons or property as a result of any act required or permitted in the discharge of his or her duties.

(e) *Nonenforcement by the Grantor.* The Grantee shall not be relieved of its obligation to comply with any of the provisions of the Franchise by reason of any failure of the Grantor to enforce prompt compliance.

(f) *Subsequent Action by State or Federal Agencies.* Should the State of Louisiana, the LPSC, the FCC, or any other agency of the Federal government subsequently require the Grantee to perform or cease to perform any act which is inconsistent with any provisions of the Franchise, the Grantee shall so notify the Grantor. Upon receipt of such notification, the Grantor, in consultation with the Grantee, shall determine if a material provision of the Franchise is affected. Upon such determination, the Grantor, in consultation with the Grantee, shall have the right to modify or amend any of the sections of the Franchise to such reasonable extent as may be necessary to carry out the full intent and purpose of the Franchise. The Grantor may terminate the Franchise in the event the Grantor determines that substantial and material compliance with the original proposed terms of the Franchise has been frustrated by such State or Federal requirement. In such an event, Grantee's rights are reserved to pursue whatever remedies it may have, and to comply with the duties and obligations which may be imposed upon it by such state or federal law.

(g) *Causes Beyond Reasonable Control.* In the event Grantee's performance of any of the terms, conditions, obligations, or requirements of the Franchise is prevented or impaired due to any cause beyond its reasonable control or not reasonably foreseeable, such inability to perform shall be deemed to be excused and no penalties or sanctions shall be imposed as a result thereof. Such causes beyond Grantee's reasonable control or not reasonably foreseeable shall include, but shall not be limited to, acts of God, civil emergen-

cies and labor unrest or strikes. Grantee shall notify the Director whenever performance is prevented or impaired.

(h) *Nonwaiver of Regulatory Authority.* Nothing in this Act shall be deemed to constitute a waiver or limitation of any powers or supervision, regulation and control of the City Council, as authorized in Section 3-130 of the Home Rule Charter.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-54. Franchise applications.

(a) *Applications.* Applicants for a Wireline Telecommunications Systems Franchise shall submit applications in accordance with the terms and conditions herein designated and as may be governed by the Home Rule Charter.

(b) *Content of Applications.* Applicants for a Wireline Telecommunications Systems Franchise shall submit to the Director written Applications including a map of the proposed installations, services to be provided, a construction schedule and an operations schedule and other requested information as may be required by the Director. Copies of all such documents shall also be filed with the City Council Utilities Regulatory Office.

(c) *Application Fee.* An applicant for a Wireline Telecommunications Systems Franchise shall pay an initial application fee of $500.00. The application fee shall be submitted at the time that all application documents are submitted for the Grantor's review.

(d) *Publication Costs.* The Grantee shall pay the costs of publication of the Telecommunication System Franchise, as such publication is required by law.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-55. Acceptance.

(a) *Filing.* Grantee shall, within 60 days after the approval of a telecommunication systems franchise by the city council, file with the clerk of council, with copies filed with the director, and city attorney, a written acceptance of the franchise. Such acceptance shall be signed and acknowledged by the president, vice president, or other authorized officer of the grantee and attested by its secretary. Such acceptance shall be substantially in the following form:

TO THE COUNCIL OF THE CITY OF NEW ORLEANS

The Grantee, _____ a _____ organized and existing under and by virtue of the laws of the State of _____, does hereby accept the Franchise approved by the City of New Orleans by Ordinance No. _____ M.C.S. enacted the _____ day of _____, _____, granting _____ the Franchise to erect, construct, maintain, and/or operate a Telecommunications System on Rights-of-Way of the City of New Orleans for the purpose of providing _____, subject to certain terms, conditions and limitations as set forth therein.

_____
NAME
BY: _____
ITS: _____

ATTEST:

_____
SECRETARY

Dated at _____, this the ____ day of _____, 19____.

(b) *Acceptance fee.* The Acceptance shall be accompanied by payment of an Acceptance Fee by Grantee to Grantor in the amount of $10,000.00. Failure to pay the Acceptance Fee shall render Grantee's acceptance of the Franchise void and of no effect. In the event of a renewal of an existing Telecommunications System Franchise or Telecommunications System Permit and Privilege, no Acceptance Fee shall be required.

(c) *Administrative Procedures.* The Acceptance shall be read into the minutes of the Council of the City of New Orleans.

(d) *Failure to File.* In event such Acceptance is not filed or if the Acceptance Fee is not paid within such time, the Wireline Telecommunications Systems Franchise and the rights and privileges granted therein shall be null and void.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96; M.C.S., Ord. No. 18,630, § 1, 2-19-98; M.C.S., Ord. No. 19,146, § 1, 3-31-99)

Sec. 30-56. Equal opportunity policy.

(a) *Equal Employment Opportunity and Affirmative Action Programs.* Grantee shall be an Equal Opportunity/Affirmative Action Employer adhering to all applicable Federal, State or municipal laws and regulations.

(b) *Minority-owned business and women-owned business enterprise participation policy.* The grantee shall make reasonable and good faith efforts to attain the following goals in its contracting policies with minority-owned business enterprises (MBEs) and women-owned business enterprises (WBEs):

	MBEs	*WBEs*
Construction	19.48%	16.43%
Professional Services	6.30%	12.25%
Commodity Purchasing	3.79%	10.33%

on an annual basis during the term of the franchise. That is, grantee shall endeavor to procure from qualified MBEs and WBEs the respective percentage of the total dollar amount of any and all contracted expenditures by the grantee. The MBE and WBE goals are not designed or intended to prevent or preclude MBE and WBE competitive participation in the remainder of grantee's contracts.

(c) *Local employment and procurement practices.* Whenever practicable all services, personnel, hardware and supplies for the construction, maintenance and operation of the wireline telecommunications system shall be procured from businesses located in the City of New Orleans when cost and prices are equal to or lower than sources outside the city.

(d) *Inspection of book and records.* If grantor has a rational basis for believing that a grantee has failed to comply with subsections (a), (b), and (c) of this section, then grantor shall, after reasonable notice, have the right to inspect at any time during normal business hours, all books, records, financial statements and other like materials of the grantee.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

Sec. 30-57. Administrative procedures.

The director shall formulate all applications and other documents required herein and shall implement appropriate procedures to receive and process franchise applications herein, as may be governed by the Home Rule Charter.
(M.C.S., Ord. No. 17,560, § 1, 6-6-96)

DIVISION 3. WIRELESS FRANCHISE ACT: FACILITIES IN THE PUBLIC RIGHT-OF-WAY*

Sec. 30-58. Purpose.

The purpose and intent of this Act is to provide a uniform and comprehensive set of regulations and standards for franchising, development, siting, installation, design, operation and maintenance of wireless facilities in the city's public right-of-way; to define the relationship between the grantee(s) and the grantor; to provide for the administration and supervision by the

*__Editor's note—__M.C.S., Ord. No. 27999, § 1, adopted March 14, 2019, amended Div. 3 in its entirety to read as herein set out. Former Div. 3, §§ 30-58—30-65, pertained to Wireless Communication Franchise Act, and derived from M.C.S., Ord. No. 22230, § 1, adopted May 25, 06; M.C.S., Ord. No. 27666, § 1, adopted Feb. 8, 2018.

grantor of franchises throughout the term of the franchise. This Act provides standards necessary (1) for the preservation of the public right-of-way in the city for maximum benefit and use of the public; (2) to promote and protect public health and safety, community welfare, visual resources, and the aesthetic quality of the city consistent with the goals, objectives, and policies of the master plan; and (3) to provide for the orderly, managed, and efficient development of wireless facilities in accordance with the state and federal laws, rules, and regulations. These regulations are intended to prescribe clear and reasonable criteria to assess and process applications in a consistent and expeditious manner, while reducing the impacts associated with wireless facilities.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-59. Applicability.

(1) *In general.* This Act shall be generally and immediately applicable to any person occupying the public rights-of-way or using public property for the installation, maintenance, repair and/or operation of wireless facilities; and to the siting, construction or modification of any and all wireless facilities proposed to be located in the public right-of-way.

(2) *[Description required.]* Any application for wireless facilities shall include a description of the areas in which the wireless facilities will be installed and other information reasonably required by the director in order to manage city property and rights-of-way, but in no event will the city have any approval rights related to the services, installation, or operations schedule except pursuant to any permitting or zoning requirements of general applicability, or as provided by this Act. This Act shall apply to electric, gas, and other utilities including their subsidiaries, affiliates, assignees, lessees, or partners providing wireless facilities and/or services.

(3) *Cable television providers.* This Act shall not apply to cable television providers authorized by the grantor pursuant to a cable television franchise, to furnish cable television services in the city with respect to the provision of those cable television services. In the event cable television providers shall desire to provide wireless services, then this Act shall apply, and a franchise must be obtained by such provider.

(4) *Wireless facilities.* To the extent that any public property or right-of-way is occupied by a wireless facility, only the grantee shall be required to obtain a franchise pursuant to this Act.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-60. Definitions.

For the purposes of this Act, the following words, terms, phrases, and their derivations shall have the meanings given herein. Capitalized terms used herein and not otherwise defined shall have the meanings ascribed thereto throughout this Code of the City of New Orleans. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is always mandatory and not merely directory.

Act means the Wireless Franchise Act, codified as chapter 30, article II, division 3 of the Code of the City of New Orleans, and also means the ordinance of general application.

Antenna means an apparatus designed for the purpose of emitting radiofrequency (RF) radiation, to be operated or operating from a fixed location pursuant to authorization from the Federal Communications Commission, for the provision of personal wireless service and any commingled information services. For purposes of this definition, the term antenna does not include an unintentional radiator, mobile station, or device authorized under part 15 of title 47 of the Code of Federal Regulation.

Antenna equipment means equipment, switches, wiring, cabling, power sources, shelters or cabinets associated with an antenna, located at the same fixed location as the antenna, and, when collocated on a structure, is mounted or installed at the same time as such antenna.

Antenna facility means an antenna and associated antenna equipment.

Application means the documents submitted by a potential grantee, in the form required by the grantor, requesting permission to use public property or occupy the rights-of-way of the city for the purpose of providing wireless services.

Collocation means

(1) Mounting or installing an antenna facility on a pre-existing structure, and/or

(2) Modifying a structure for the purpose of mounting or installing an antenna facility on that structure.

Day or *days* means a calendar day or days.

Director means the director of the department of safety and permits of the city or a duly authorized representative.

Disadvantaged business enterprise or *DBE* means an entity or individual certified as a socially and economically disadvantaged business through one or more certification program(s) designated by the city.

Emergency means a reasonably unforeseen occurrence with a potential to endanger personal safety or health, or cause substantial damage to property, that calls for immediate action.

Equipment and plant means equipment, plant, fixtures, apparatus, facilities, appliances, and appurtenances common to and used by wireless facilities.

FCC means the Federal Communications Commission, its functional successor in the United States government or a designated representative.

Franchise means the authority granted by ordinance to occupy the public rights-of-way and public property in the city for the use, installation, maintenance and/or repair of wireless facilities, pursuant to the Home Rule Charter.

Franchise fee means the compensation payable by a grantee to a grantor as consideration for the grantor's permission for the grantee to occupy the limited rights-of-way of the city and as compensation for the deterioration in the overall condition of the rights-of-way, the diminution of the life expectancy and the degradation of the useful life of the rights-of-way, the cost of the administration of the franchise and the premature expenditure of public funds for the repair and replacement of such rights-of-way.

Grantee means any person to whom a franchise is granted by the grantor. This term shall not include affiliates, subsidiaries, or entities otherwise related to grantee.

Grantor means the City of New Orleans, as represented by the city council acting within the scope of its authority to grant franchises pursuant to the Home Rule Charter of the City of New Orleans.

LPSC means the Louisiana Public Service Commission or its functional successor in the government of the State of Louisiana.

Occupy, install, maintain, repair and/or operate and upgrade or occupancy, installation, maintenance, repair and/or operation means locate, relocate, erect, string, hang, pull, push, install, dismantle, construct, reconstruct, take down, take off, put, lace, replace, move, remove, dispose of, lay, take up, bury, dig up, retain, enlarge, extend, expand, operate, service, repair, install, maintain, and/or upgrade.

Person means an individual, firm, partnership, association, corporation, company, or organization of any kind or any lawful successor, transferee or assignee of such individual, firm, partnership, association, corporation, company or organization.

Permit means the authority granted by the director to occupy the public rights-of-way and public property in the city for the use, installation, maintenance and/or repair of wireless facilities.

Permit fee means the compensation payable by a permittee to the city as consideration for the permission for the permittee to occupy the limited rights-of-way of the city and the cost of the administration of the permit and the premature expenditure of public funds for the repair and replacement of such rights-of-way.

Permittee means any person that has been granted a permit by the director and shall include a permit applicant and all successors in

interest to the permit. Permittee shall include the applicant and all successors in interest to this permit.

Personal wireless service means commercial mobile services, unlicensed wireless services, and common carrier wireless exchange access services.

Public property means any movable or immovable property owned or controlled by the city or any agency or subdivision thereof.

Public right-of-way or *right-of-way* means the surface of, the space within, and the space above and below any public street, sidewalk, alley, or other public passage including poles, towers, or other facilities located thereon of any type whatsoever now or hereafter existing as such within the city.

Section means any section, subsection, or provision of this Act.

Site means the location, area, identification, or boundary where a wireless facility is currently located or the location area, identification, or boundary of a proposed wireless facility.

Small wireless facility means a facility that meets each of the following conditions:

(1) The structure on which antenna facilities are mounted:

(i) Is 50 feet or less in height, or

(ii) Is no more than ten percent taller that other adjacent structures, or

(iii) Is not extended to a height of more than ten percent above its preexisting height as a result of the collocation of new antenna facilities; and

(2) Each antenna (excluding associated antenna equipment) is no more than three cubic feet in volume; and

(3) All antenna equipment associated with the facility (excluding antennas) are cumulatively no more than 28 cubic feet in volume; and

(4) The facility does not require antenna structure registration under part 17 of Title 47 of the Code of Federal Regulations; and

(5) The facility does not result in human exposure to radiofrequency radiation in excess of the applicable safety standards specified in Rule 1.1307(b) of the Code of Federal Regulations (47 CFR 1.1307).

Subscriber or *customer* means any person who or which elects to subscribe to or purchase a service provided by the grantee by means of, or in connection with, the grantee's wireless services.

Technically feasible means that by virtue of engineering or spectrum usage, the proposed placement for a wireless facility or its design or site location can be implemented without a reduction in the functionality of the wireless facility.

Utility pole means a pole or similar structure that is or may be used in whole or in part by or for wireline communications, electric distribution, lighting, traffic control, signage or similar function, or for the collocation of small wireless facilities; provided such term shall not include wireless support structures or electric transmission structures owned by investor-owned utilities.

Wireless facility means (1) equipment at a fixed location that enables wireless communications between user equipment and a communications network including (a) equipment associated with wireless communications and (b) radio transceivers, antennas, coaxial or fiber-optic cables, regular and backup power supplies and comparable equipment; (2) includes a small wireless facility; and (3) does not include: (a) the structure or improvements on, under or within which the equipment is collocated; (b) a wireline backhaul facility, coaxial cable or fiber-optic cable between wireless support structures or utility poles; or (c) coaxial or fiber-optic cable otherwise not immediately adjacent to, or directly associated with, an antenna. The term "wireless facility" does not apply to any wireless facility exempted from this Act by federal law or state law.

Wireless provider means a wireless infrastructure provider or wireless service provider.

Wireless services means the provision of services to the public using a wireless facility, and shall include, but not limited to, the following services: personal wireless services, cellular service, personal communication service, and/or data radio telecommunications.

Wireless infrastructure provider means a company that has been certified to provide telecommunications service in the state and who builds or installs wireless communication transmission equipment, wireless facilities, or wireless support structures but is not a wireless service provider. Wireless service provider, means a company that offers wireless services to the public.

Wireless support structure means a structure, such as a monopole; tower, guyed or self-supporting; billboard; building; or other existing or proposed structure designed to support or capable of supporting wireless facilities other than a structure designed solely for the collocation of small wireless facilities. Such term shall not include a utility pole.

Year means a full calendar year.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-61. Wireless facility franchise and permit requirements for use of city property for the purpose of transmitting or communicating data, information, intelligence, signals, voice, and/or video signals.

(a) No person shall mount, install, or otherwise attach a wireless radio, node or antenna or such other comparable equipment on any utility pole or other city property nor in or on any rights-of-way of the city, for the purpose of transmitting or communicating data, information, intelligence, signals, voice and/or video signals, without first having obtained the following necessary approvals:

(1) A city council approved franchise in accordance with the Home Rule Charter of the City of New Orleans; and

(2) Approval from all appropriate city departments via the department of safety and permits in accordance with section 30-65.3 of this Act.

(b) Upon the expiration or termination of such franchise, grantee shall not perform any of the acts enumerated in this section without first having obtained a new franchise pursuant to this Act. Access to certain parcels of public property by a grantee hereunder may be denied by the grantor when, in the grantor's sole determination, placement of equipment and plant on such public property will be detrimental to the public health, safety, and welfare to the end thereof.

(c) Nor shall any person make any constructions or erections of equipment or plant or works of any sort, or do any act, including the placement of equipment or plant, in anticipation or preparation of any of the foregoing acts, for the purpose of attaching or placing wireless facilities on, in, or under any of the places described in subsection (a) without first having obtained the approvals required by subsection (a) of this section. Upon the expiration or termination of such franchise, grantee shall not perform any of the acts enumerated in this section without first having obtained a franchise pursuant to this Act, provided grantee shall have six months after any termination or expiration of the franchise to remove any equipment from city property or city rights-of-way without obtaining an additional franchise.

(d) Any person contracting with any other person or entity for the purpose of doing any of the acts described in subsections (a) and (b) above shall, before any such acts are undertaken, file with the director, a letter from the wireless service provider authorizing the contracting party to do the acts described in subsections (a) and (b) above. The letter shall include the contracting party's complete contact information. Upon the expiration or termination of such franchise, neither grantee nor the contracting party shall perform any of the acts enumerated in this section without first having obtained a renewal franchise and applicable city permit pursuant to this Act.

(e) Without limiting the general application of the foregoing, the provisions of this section shall apply to all immovable property, including servitudes controlled, administered or managed by any public benefit corporation, unattached board or commission, or independent agency of the city, including but not limited to those listed in article V of the Home Rule Charter of the City of New Orleans.

(f) Whoever does anything prohibited or fails to do anything required by this section 30-61 shall be guilty of a misdemeanor. In the event of any such violation by any association, corporation, partnership or other entity, the executive officers thereof shall be liable to the punishment prescribed herein.

(g) Nothing contained in M.C.S., Ordinance No. 27999 shall restrict or prohibit grantee's use of contractors or otherwise require any grantee contractor to obtain a franchise. Nothing contained in M.C.S., Ordinance No. 27999 shall restrict or prohibit the sale of access or provision of wireless services to subscribers or wholesalers or otherwise require any subscriber or wholesaler to obtain a franchise or other approval from the city for such access or use.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-62. Grant of franchise.

(a) *Grant of franchise.* Subject to the provisions of this Act, after the enactment hereof, in the event that grantor shall grant to the grantee a franchise to occupy or attach to city property or the city's rights-of-way to install, maintain and/or repair wireless facilities within the city, the franchise shall include those provisions of the grantee's franchise agreement that are finally negotiated and accepted by the grantor and grantee and set forth in writing. The terms of any franchise granted by grantor shall be consistent with the provisions of this Act and shall not conflict with, eliminate, or materially alter any provision of this Act. In the event of a conflict between the terms of this Act and the franchise, the terms of this Act shall control.

The franchise shall be granted under the terms and conditions contained herein and as set forth in the Charter, which terms and conditions are incorporated by reference as if fully set forth at length herein. In the event of conflict between the terms and conditions of any franchise and the terms and conditions on which the city can grant a franchise as set forth in the Charter, the Charter shall, without exception, control.

The franchise shall be subject to the Charter and general ordinance provisions of the city. Nothing in the franchise shall be deemed to waive the requirements of the various codes and ordinances of the grantor regarding permits, fees to be paid, manner of construction, or the zoning and land use regulations.

(b) *Attachment to utility poles or other city property in the public right-of-way.* For the purpose of constructing, operating, and maintaining wireless facilities utilizing utility poles or other city property in the public right-of-way, a grantee may occupy, install, maintain and/or repair such equipment and plant as is necessary and appurtenant to the operation of wireless services within the city. In installing, maintaining, and/or repairing its wireless facilities utilizing utility poles or other city property, the grantee shall comply with all applicable rules, regulations and laws, including but not limited to zoning and land use regulations.

(c) *Duration.* The term of the franchise and all rights, obligations and restrictions pertaining thereto shall be for a definite period of time, not to exceed 15 years from the effective date of the franchise unless terminated sooner as hereinafter provided. The effective date of the franchise shall be the date of acceptance of the franchise by the grantee after passage by the council.

After ten years, the parties may opt to:

(1) Allow the agreement to continue under its terms and conditions with no changes for an additional five years which shall require no action by either party; or

(2) Re-negotiate the terms upon the mutual, written consent of both parties prior to continuing the agreement for an additional five years. If no mutual written modification is agreed upon by both parties, the franchise shall expire.

(d) *Franchise nonexclusive.* The franchise shall be nonexclusive. The grantor specifically reserves the right to grant, at any time, such additional franchises for wireless communications systems as it deems appropriate.

(e) *Nontransferable requirements.*

(1) Grantees shall provide the director with written notice of any transfer, sale, or assignment of any material interest in, or a change in control of, grantee within ten days after the effective closing date of such transfer, sale, or assignment. The foregoing and any other provision of this Act regarding a change in control shall not apply to the sale, issuance, or other transfer of stock less than a majority share of any publicly traded grantee.

(2) Except for sales, assignments, or transfers of franchises by reason of sales, assignments, or transfers of material interests in or changes of control of grantees, franchises shall not be sublet or assigned, nor shall any of the rights therein granted or authorized be leased, assigned, sold or transferred, either in whole or in part, nor shall title thereto, either legal or equitable, or any right, interest or property therein, pass to or vest in any person, except the grantee, without the prior consent of the grantor expressed by ordinance. Such consent shall not be unreasonably withheld. The grantor shall be deemed to have consented if the grantor has not acted within 120 days after receipt of grantee's request for approval unless grantor and grantee agree to an additional period of time for grantor's review. The granting of such consent shall not render unnecessary any subsequent consent. For the purpose of determining whether it will consent to such change, transfer, or assignment of the franchise, the grantor may inquire into the qualifications of the prospective holder of the franchise, including, but not limited to proof of such person's compliance with the insurance and security fund requirements of this Act, and grantee shall assist the grantor in any such inquiry.

(3) Within 60 days after transfer, sale, or assignment of the franchise, grantee shall file with the council utilities regulatory office and director a copy of the deed, agreement, mortgage, lease, or other written instrument evidencing such transfer, sale, or assignment, certified and sworn to as correct by the grantee.

(4) For purposes of this Act, a change in control of grantee occurs:

a. When a 51-percent ownership interest in the grantee is acquired;

b. When an ownership interest changes from 51 percent or more to 50 percent or less;

c. When substantially all of the assets of the grantee are acquired by a third party; or

d. When control, as defined by the regulations of the securities and exchange commission, is acquired.

(5) Notwithstanding any provision in this Act to the contrary, grantee shall have the right to assign its franchise, in whole or in part, to any parent, subsidiary, affiliate, or any person, firm, or corporation that shall control, be under the control of, or be under common control with grantee, or to any entity into which grantee may be merged or consolidated or which purchases all or substantially all of the assets of grantee that are subject to the franchise, provided in each case grantee provides grantor with written notice of such assignment as soon as reasonably possible but in no event more than 30 days after such assignment.

(f) *Rights reserved to grantor.*

(1) *Right to require removal of property.* At the expiration or termination of any franchise the grantor shall have the right to require the grantee to remove, at its own expense, all portions of the wireless

facilities from all utility poles and other property of the city within 180 days of termination.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-63. Franchise agreements.

(a) *Publication costs.* The grantee shall pay the costs of publication of the wireless franchise ordinance, as such publication is required by the Home Rule Charter.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-64. General financial provisions.

(a) *Compensation.* All franchises granted or authorized pursuant to this Act shall provide compensation to the grantor in an amount of $300.00 per wireless facility per year on a city-owned asset or co-located upon an asset owned by a public utility or communication provider operating pursuant to a franchise from the City of New Orleans. The annual franchise fee shall be payable in quarterly installments.

(b) *Nature of franchise fee.* The compensation and other payments to be made pursuant to the franchise are in addition to any and all taxes and fees or charges which the grantee or any affiliated person shall be required to pay to the grantor or to any other governmental authority. Neither the grantee nor any affiliated person shall have or make any claim for any deduction or other credit of all or any part of the amount of compensation or other payments made pursuant to the franchise against any other fees or charges, including ad valorem taxes and/or any taxes which the grantee or any affiliated person is required to pay to the grantor.

(c) *Failure to pay.* If the grantee:

(1) Fails to pay to the grantor any fees due and unpaid for 30 days after notice of nonpayment; or

(2) Fails, after 30 days' notice, to repay to the grantor any damages, costs, or expenses which the grantor shall be compelled to pay by reason of any act or default of the grantee in connection with the franchise;

(3) Fails, after 60 days' notice of such failure, to comply with any provision of the franchise which the grantor reasonably determines can be remedied by an expenditure of the security fund;

Then the grantee shall have committed a material violation of the franchise and in that event the grantor may immediately withdraw the amount thereof from the security fund. Upon such withdrawal, the grantor shall notify the grantee of the amount and date thereof.

(d) *Security fund.*

(1) *Fund deposit.* Within 30 days after the effective date of the franchise, the grantee shall either, at grantee's option, (i) deposit into a bank account, established by the city and maintained on deposit through the term of the franchise, the sum of up to $50,000.00, or, (ii) post a performance bond in accordance with the applicable city procedures or a letter of credit in an amount of up to $50,000.00, unless a different amount is specified in the franchise, (provided that grantor shall deliver notice of intent to draw on the security fund at least ten days prior to the actual date of the draw request) as security for:

a. The faithful performance by it of all of the provisions of the franchise; and

b. Compliance by grantee with all orders, permits and directions of any agency of the grantor having jurisdiction over grantee's acts or defaults pursuant to this Act; and

c. The payment by the grantee of any claims, liens, fees and/or taxes due the grantor which arise by reason of the construction, operation or maintenance of the wireless services; or

d. The failure of grantee to remove the equipment related to the wireless services after expiration or termination of the franchise.

The maintenance of such bank account, performance bond, letter of credit or such other instrument, security or guaranty acceptable to the grantor shall be a continuing obligation of grantee until the grantee has satisfied all of its obligations with the grantor that may have arisen from the acceptance of the franchise by the grantee or from its exercise of any privilege or right granted thereby. It is the intent of grantor that the security fund be established in an amount or have a value sufficient to effectuate the purposes set forth in subsections a., b., and c. above. Any and all interest on the security fund shall be payable to the grantee upon the withdrawal of the security fund at the expiration or termination of the franchise.

(e) *Metered rate.* Grantee shall obtain separate electric service or separately meter or sub-meter electric service for all proposed site locations requiring electric/energy consumption for all wireless facilities, including wireless radio, antenna, or other comparable equipment. All electric charges, fees, and bills for grantee's electric/energy consumption shall be billed directly to grantee and made payable to the electric utility company for Orleans Parish.

(f) *Damages and defense.*

(1) *Hold harmless.* The grantee shall hold the city harmless for all damages and penalties suffered as a result of, or arising out of, the grantee's negligent use, installation, maintenance, repair and/or operation of the wireless facilities authorized whether or not any act or omission complained of is authorized, allowed, or prohibited by the franchise. This provision is not intended to create liability for the benefit of third parties but is solely for the benefit of the city and the grantee.

a. *Grantee shall indemnify.* In the event any claim is made against the city that falls under this indemnity and a court of competent jurisdiction should adjudge, by final decree, that the city is liable therefor, the grantee shall indemnify and hold the city harmless of and from any such judgment or liability, including any court costs, expenses, and attorney fees incurred by the city in defense thereof, to the extent of grantee's indemnity obligation set forth in subsection (1) above.

b. *Notice of legal proceedings.* Upon commencement of any proceeding at law or in equity against the city relating to or covering any matter covered by this indemnity, where the grantee has agreed, by accepting the franchise, to indemnify and hold the city harmless, or to pay such final judgment and costs, as the case may be, the city shall give the grantee immediate notice of such suit or proceeding. The grantee shall provide a defense to any such suit or suits, including any appellate proceedings brought in connection therewith, and pay as aforesaid, any final judgment or judgments that may be rendered against the city by reason of such damage suit.

c. *Legal expenses.* Upon failure of the grantee to comply with the "defense of suit" provisions of this Act, after reasonable notice to it by the city, the city shall have the right to defend the same and in addition to being reimbursed for any such judgment that may be rendered against the grantor, together with all court costs incurred therein, the grantee shall reimburse the grantor for attorney's fees, including those employed by the grantor in such case or cases, as well as all expenses incurred by the grantor by reason of undertaking the defense of such suit or suits, whether such suit or suits are successfully defended, settled, compromised, or fully adjudicated against the city.

(2) *Defense expense.* The grantee shall pay all expenses incurred by the city in defending itself with regard to all damages and penalties mentioned in subsection (1) above and for all claims against city arising out of the franchise. These expenses shall include all out-of-pocket expenses, such as attorney fees, and shall also include the reasonable value of any services rendered by any employees of the city via the grantor. In the event the city is compelled to undertake the defense of any such suit by reason of the grantee's failure to perform as here and above provided, the city shall have the full right and authority to make or enter into any settlement or compromise of such adjudication as the city council shall deem in the best interest of the city, this without the prior approval or consent of the grantee with respect to the terms of such compromise or settlement.

(g) *Insurance.*

(1) Except as provided in subsection (3) below, the grantee shall maintain in full force and effect, at its own cost and expense, commercial general liability insurance (CGL) covering CGL on an "occurrence" basis, including products and completed operations, property damage, bodily injury and personal and advertising injury with limits of $1,000,000.00 per occurrence, and $2,000,000.00 in the aggregate.

In addition, the grantee shall obtain worker's compensation coverage for work done under the franchise and as required by the State of Louisiana, with statutory limits, and employer's liability insurance with a limit of $1,000,000.00 per accident for bodily injury or disease, policy limit.

(2) Grantee shall provide the director and the grantor's risk manager with a certificate of insurance including the grantor, the City of New Orleans, its departments, political subdivisions, officers, officials, employees, and volunteers as an additional insured as their interest may appear under this Act on each policy (except workers compensation and employer's liability) and extension or renewal thereof. Grantee shall maintain on file with the director and grantor's risk manager a current certificate of insurance certifying the coverage required. The certificate of insurance shall be subject to the approval as to form by the grantor's risk manager. Upon receipt of notice from its insurer(s), grantee shall provide at least 30 days' prior written notice to grantor of such cancellation of required coverage that is not replaced.

(3) In the event grantee is self-insured as to any required coverage, then in lieu of the certificate of insurance required herein, grantee shall provide grantor upon the effective date of the franchise, proof that grantee's self-insurance program is sufficiently liquid or that grantee or its parent company has sufficient net worth to cover all losses in the amount shown in subsection (1) above. Grantee shall immediately notify grantor of any change in its self-insured status as to any coverage required hereunder, and of any change in the ability of grantee to cover the losses specified in subsection (1) above.

(4) Grantee shall, at its own expense, maintain in full force and effect throughout the duration of the franchise, a liability insurance policy or policies underwritten by a carrier rated by A.M. Best's as A- or better and authorized to do business in the state, and upon prior notice and at reasonable times, a copy of such policy or policies shall be available for review by grantor at the offices of grantee. Such policy or policies, with the exception of workers compensation and employer's liability policy, shall name the city, including its boards and commissions and its officers, agents and employees, jointly and severally, as additional insureds as their interest may appear under this Act. Such policy or policies shall apply as primary insurance and shall stipulate that no other insur-

ance in effect by the city will be called on to contribute to a loss covered hereunder and shall provide for a waiver of subrogation. Upon the effective date of the franchise, the grantee shall furnish proof to the grantor that satisfactory insurance policies have been obtained. A copy of the certificate of insurance shall be on file with the department of safety and permits and maintained current at all times.

(h) *Costs of auditors and consultants.* As necessary to aid in the analysis and/or audit of all matters relative to the franchise, the grantor shall be entitled to employ services of an auditor and/or consultant. Any and all reasonable costs incurred by the grantor in this regard shall be borne by the grantee if any violations of its franchise or this Act are identified in such audit, analysis or consult, as provided in sections 30-65.2(h)(5), 30-65.4(f), and 30-65.13(d).
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65. Construction provisions.

(a) *Application to place communications equipment.* Whenever grantee desires to place communications equipment on any utility poles or other city property in the public right-of-way, grantee shall complete an application with the department of safety and permits for permission to attach to specific utility poles or other city property in the public right-of-way. This written request shall also include, but not be limited to, the location of specific utility poles or other city property in the public right-of-way, and the description of equipment to be attached. Upon receipt of request, grantor shall have right to approve locations, and afterwards, to inspect grantee installation of equipment onto city street light poles.

(b) *Coordination with third parties.* The director shall be responsible for identifying and notifying all third-party users of any city-owned utility poles or other city property in the public right-of-way of any proposed new contracts or modifications of existing contracts. Grantee shall coordinate directly with third-party users any work that may be required by the third-party users to accommodate grantee's proposed work. Any costs associated with such modification of third-party user's equipment are the responsibility of grantee.

(c) *Access.* For the term of the franchise, grantee is authorized to use any easements of grantor and public rights-of-way for access to utility poles or other city property in the public right-of-way to which communications equipment is attached pursuant to the franchise so long as such use is not in conflict with grantor's present and future use. The right to access the utility poles or other city property in the public right-of-way granted by the franchise is nonexclusive.

(d) *Installation of new utility poles.* If grantee needs overhead communications equipment in location(s) where the city does not have utility poles, grantee shall complete an application with the department of safety and permits under the franchise for permission to place communications equipment on the new utility poles. Grantor, at its sole discretion and at the expense of grantee, may install utility poles in such location or permit the grantee to install new utility poles, as appropriate. Unless deemed necessary by grantor, grantee will not be required to remove said poles upon expiration of the franchise agreement and they will become the property of the City of New Orleans.

(e) *Approval to place communications equipment.*

(1) After a completed application has been submitted by grantee and has been reviewed and approved by the director and approved by all necessary departments and commissions in areas subject to their jurisdiction, permission to place the communications equipment described in the application on the poles identified in the request shall be granted by the grantor in writing, as expeditiously as feasible, but within 30 days after the receipt of a completed request. The director shall notify an applicant within ten days of confirmed receipt of an initial application to install a small wireless facility as whether the application is

complete. For all other initial applications for wireless facilities, the director shall notify an applicant within 30 days of confirmed receipt as to whether the application is complete. If an application is incomplete, the director will notify the applicant within ten days of receipt of the supplemental submission needed to complete the application as to whether the application is complete.

(2) If, in the judgment of the city, the accommodation of any of grantee's communications equipment necessitates either the rearrangement of city equipment located on a utility pole or the replacement of a utility pole, the director will notify grantee of the necessary changes and the estimated cost of the work required. At director's option, grantor may require grantee to perform the requested work on behalf of the grantor to grantor's specifications. Any services that grantee agrees to provide grantor shall be memorialized in a separate agreement. Alternatively, grantor may perform the work at grantee's sole expense.

Grantee shall reimburse grantor for the total cost of the work including all direct employee wage and benefit costs, cost of materials, and cost of equipment used. Grantor will make reasonable efforts to notify grantee of any extraordinary cost before such costs are incurred. Prior to commencing any work, the director may require grantee to pay a deposit equal to the estimated total cost of the work. Grantor shall not be responsible to grantee for any loss sustained by grantee by reason of the failure of grantor or any third party to perform work contemplated by this section.

(3) After completion of any work required by the grantor to make the utility poles ready for placement of the communications equipment and after receiving written approval to proceed from the director, grantee shall have the right to install, maintain and use communications equipment described in its request, subject to any reasonable technical conditions in the grantor's written approval.

Grantee shall also complete such installation within such reasonable time limit as determined by the director, subject to weather delays, as may be specified in each application and written approval. If the installation is not substantially completed in the specified time limit, then, upon notice by director, the request and approval shall be considered withdrawn and a new request must be submitted for approval.

(4) Nothing in this agreement shall be construed to obligate grantor to grant grantee permission to use any part of the utility poles, provided that such use shall not be denied or delayed in a discriminatory manner.

(f) *Additional attachments.* Grantee shall not have the right to place, nor shall it place, any additional communications equipment in contact with any street light poles without first completing an application for and receiving written permission to do so from grantor as described above. Grantee may modify or rearrange existing attachments without being charged an additional attachment fee; for any new attachments the applicable fee shall be charged.

(g) *Installation and maintenance of attachments.* Grantee shall, at its own sole risk and expense, install and maintain communications equipment on utility poles in safe and good repair and in accordance with the requirements of the grantor and all municipal, state and federal laws, ordinances and regulations.

(h) *Identification of communications equipment.* Grantee shall identify the communications equipment newly installed or serviced at each contact point by means of a marking method mutually agreed upon by the parties. Such identification shall be visible. Grantee shall provide the grantor a 24-hour contact phone number to enable grantor to report any concerns regarding the communications equipment. In the event that grantor reports such concerns to grantee, grantee shall promptly respond to such

call(s) and perform the required repair or correct any adverse impact to grantor's operations caused by such communications equipment at no cost to grantor unless caused by grantor.

(i) *Reservation of rights.* Grantor reserves the right to operate and maintain utility poles to fulfill its service requirements to its residents. Grantor shall not be liable to grantee for any interruption to grantee's service or for any interference with the operation of grantee's equipment arising in any manner except for gross negligence or willful misconduct from the use of utility poles by grantor in accordance with this Act, provided that grantor shall give grantee 15 days (or such additional time as may be reasonably required) advance notice of any non-emergency work which affects grantee's communications equipment.

(j) *Grantorship or vested interest created.* No use of any utility poles under this Act shall create or vest in grantee any ownership interest, tenancy, estate or any other interest in the utility poles and grantee's rights therein shall be and remain a license. Each party shall pay the cost of the installation and maintenance of its own facilities. Nothing in this Act shall be construed to compel grantor to maintain any utility poles for a period longer than demanded by its own service requirements.

(k) *Damage to grantor property.* Grantee shall exercise special precautions to avoid causing damage to utility poles and/or any grantor property. Grantee shall assume responsibility for any loss from such damage caused by grantee. Grantee shall make a report within five days of knowing of the occurrence of any such damage to the director and shall, within 30 days following demand, either repair such damage or reimburse grantor for the total cost incurred in making repairs including all direct employee wage and benefit costs, cost of materials, and cost of equipment used.

(l) *Use of easements.* For the term of each agreement pursuant to this Act, grantee is authorized to use any easements and rights-of-way of grantor for access to utility poles to which communications equipment is attached pursuant to this Act so long as such use is not in conflict with grantor's present and future use, and grantor is able to authorize or suffer legitimately the same.

(m) *Replacement of utility poles.* In the event any utility poles occupied by grantee pursuant to this Act are to be replaced, repaired or altered, grantee shall, at its own sole risk and expense, upon notice from director, relocate or replace its communications equipment or transfer it to replacement utility poles or perform any other work in connection with said equipment that may be required by grantor. If grantee is required to remove any of its small wireless facilities from any utility pole then grantor will specify an alternative utility pole on which grantee will be entitled to relocate its small wireless facilities. To the extent technically feasible, the alternative site proposed will be located in substantially the same area and capable of providing the same level of service as determined by the grantee.

In cases of emergency, grantor may, at grantee's sole expense, relocate, replace or renew the communications equipment, or transfer it to replacement utility poles or perform any other work required to serve the needs of grantor. Grantor shall make commercially reasonable efforts to notify grantee of the relocation of its communications equipment in the event of an emergency, prior to the relocation of that equipment.

(n) *Removal or vacation.* Should grantee remove its communications equipment from any of the city's utility poles, grantee shall, within 30 days after such removal, give notice thereof to the director, specifying the poles vacated and the location thereof, as well as the date of removal. Removal of all communications equipment from any utility poles without its replacement or substitution by grantee within 30 days shall constitute a termination of grantee's right to use such utility poles without making new request therefor.

(o) *Utility pole removal notice.* If grantor desires at any time to remove any utility pole, grantor shall, except in cases of emergency, give grantee notice, in writing, to that effect at least 30 days prior to the date on which it intends to remove such utility pole. If grantee cannot accommodate

the removal of the communications equipment within the 30-day notice period then the parties will either (1) have the grantor remove and store grantee's equipment or (2) shall negotiate and mutually agree upon a longer timeframe for removal of the utility pole and grantee's equipment, on a case by case basis. The removal of the wireless facility shall be at the sole risk and expense of grantee.

If grantor is required by law or ordinance to remove any utility pole or utility poles or for any reason desires that any particular utility be removed without replacement, grantor shall so inform grantee in writing.

If grantor informs grantee of its desire to remove the utility pole, then grantee shall remove the communications equipment from the utility pole before grantor's intended removal date. The removal of the communications equipment shall be at the sole risk and expense of grantee. Grantor shall make a reasonable effort to provide any alternate utility pole or any other facility for the relocation of grantee's communications equipment.

In the event of an emergency, grantor may remove such utility pole and shall in such case immediately notify grantee of the action taken. Grantor shall make commercially reasonable efforts to notify grantee of the removal of its communications equipment, prior to the emergency removal of that equipment.

(p) *Permits required.*

(1) In addition to a franchise as required by this Act, no wireless franchise equipment may be installed, erected, or otherwise placed pursuant to such a franchise without first securing a permit for same from the director of the department of safety and permits. Fees for permitting shall be in accordance with the following schedule:

a. For installation of small wireless facilities on a city-owned asset or co-located upon an asset owned by a public utility or communication provider operating pursuant to a franchise from the City of New Orleans, the non-recurring permit fees required are as follows:

1. In the area bounded by the east bank of the Mississippi River, the rear property line of the properties on the upriver side of Iberville Street, the rear property line of the properties fronting on the Lake Pontchartrain side of North Rampart Street, and the rear property line of properties fronting on the downriver side of Esplanade Avenue: $250.00 per device, plus any additional fees that may be imposed by the terms of the wireless franchise agreement.

2. In all other areas: $100.00 per device, plus any additional fees that may be imposed by the terms of the wireless franchise agreement.

b. For installation of a pole or tower to be erected by the wireless franchisee for the purpose of supporting one or more small wireless facilities on such installation, the non-recurring permit fees required are as follows:

1. In the area bounded by the east bank of the Mississippi River, the rear property line of the properties on the upriver side of Iberville Street, the rear property line of the properties fronting on the Lake Pontchartrain side of North Rampart Street, and the rear property line of properties fronting on the downriver side of Esplanade Avenue: $2,500.00 per pole or tower, plus any additional fees that may be imposed by the terms of the wireless franchise.

2. In all other areas: $1,000.00 per pole or tower, plus any

additional fees that may be imposed by the terms of the wireless franchise.

(q) *Right to inspect.* Grantor shall have the right to inspect each new installation of communications equipment attached to utility poles and to make periodic inspections at the grantor's discretion as conditions may warrant. Such inspections shall not relieve grantee of any responsibility, obligation or liability assumed under this Act.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.1. Termination and renewal.

(a) *Termination.*

(1) In addition to any rights set out elsewhere in this Act, the grantor reserves the right to seek termination of a franchise pursuant to subsection (a)(3) hereof, and all rights and privileges pertaining thereto, in the event that:

a. *Violation of provisions.* The grantee violates any material provision of the franchise and does not begin curative work within ten days of receipt of written notice and does not work with reasonable diligence to complete such work; or

b. *Construction delays.* The grantee's construction schedule is delayed for over 18 months not for causes beyond reasonable control; or

c. *Insolvency.* The grantee becomes insolvent, or is adjudged a bankrupt; or

d. *Fraud.* The grantee is found by a court of competent jurisdiction to have practiced any fraud or deceit upon the grantor or subscribers.

(2) Upon failure of the grantee to comply with the material terms of the franchise, the grantor may by ordinance terminate the franchise in accordance with the procedures set forth in this section. Upon termination, all rights of the grantee shall immediately be divested without further act upon the part of the grantor. Grantor shall require grantee to remove its equipment and plant from the public property and rights-of-way. If grantor requires removal, the grantee shall forthwith remove its structures or property from the rights-of-way and return to its original condition. Upon failure to do so, the grantor may perform the work and collect the cost thereof from the grantee. The cost thereof shall be a lien upon all equipment and plant and property of the grantee. Such lien shall not attach to property of grantee located on poles of other utilities until removal of such property from the pole or poles.

(3) Procedures for termination.

a. Upon written recommendation by the director or upon its own motion (following expiration of any applicable notice and cure period set forth in subsection (1) above), the city council shall give written notice to the grantee of the existence of a material violation or failure to comply with the franchise. Grantee shall have a period of 30 days after receipt of such notice from the director in which to cease such violation and comply with the terms and provisions hereof. In the event grantee fails to cease such violation or to otherwise comply with the terms hereof, then grantee's franchise is subject to termination under the following provisions provided that, if the grantee commences work or other efforts to cure such violations within ten days after receipt of written notice and shall thereafter prosecute such curative work with reasonable diligence until such curative work is completed, then such violations shall cease to exist, and the franchise will not be terminated. If the curative work is not completed within 90 days of commencement of such work, grantee and the director shall report to

grantor with respect to the progress made on such curative work and the anticipated completion date.

b. Termination shall be declared only by a written decision of the city council after an appropriate public proceeding whereby the grantee is afforded the full opportunity to be heard and to respond to any such notice of violation or failure to comply. The grantee shall be provided advance written notice of date, time, and place of any public hearing concerning the termination of the franchise.

c. The city council, after full public hearing, and upon finding a material violation or failure to comply, may at its discretion terminate the franchise via ordinance, or impose a lesser penalty than termination of the franchise, including but not limited to a penalty of up to $500.00 per day per violation, or excuse the violation or failure to comply upon a showing by the grantee of mitigating circumstances or upon a showing of good cause of such violation or failure to comply as may be determined by the city council.

(b) *Receivership.* The grantor shall have the right to terminate the franchise 120 days after the appointment of a receiver, or trustee, to take over and conduct the business of the grantee, whether in receivership, reorganization, bankruptcy, or other action or proceeding, unless such receivership or trusteeship shall have been vacated prior to the expiration of the 120 days or unless:

(1) *Trustee compliance.* Within 120 days after his/her election or appointment, such receiver or trustee shall have fully complied with all the provisions of the franchise and remedied all defaults thereunder; and

(2) *Agreement to be bound.* Such receiver or trustee, within such 120 days, shall have executed an agreement, duly approved by the court having jurisdiction in the premises, whereby such receiver or trustee assumes and agrees to be bound by each and every provision of the franchise.

(3) *Renewal or extension.* Upon expiration of the initial term of the franchise, the grantor may, at its election renew or not renew the franchise. A franchise may be renewed by the grantor, upon application by the grantee, in accordance with the provisions of this Act, the New Orleans City Charter, and applicable law. Nothing in this provision shall be construed to require such renewal.

(4) Grantee shall have the right to terminate the wireless franchise on 180 days' prior written notice to the grantor. If grantee elects to terminate the franchise pursuant to this provision, grantee will be required to pay franchise fees until all facilities are removed from the public right-of-way.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.2. Miscellaneous provisions.

(a) *Compliance with laws.* The grantee and grantor shall comply with all federal and state laws, as well as all ordinances, resolutions, rules, and regulations of the city heretofore or hereafter adopted or established during the entire term of the franchise including but not limited to all zoning and subdivision regulations.

(b) *Captions.* The captions to sections throughout this Act are intended solely to facilitate reading and reference to the sections and provisions of this Act. Such captions shall not affect the meaning or interpretation of this Act.

(c) *Public purpose.* All of the provisions of this Act are hereby declared to be for a public purpose and the health, safety, and welfare of the general public, consistent with the maximum permissible exercise of the city's police powers under its Home Rule Charter. Any member of the governing body or city official or employee charged with the enforcement of this Act, acting for the city in the discharge of his or her duties, shall not thereby render himself personally liable; and he or she is hereby relieved from all personal

liability for any damage that might accrue to persons or property as a result of any act required or permitted in the discharge of his or her duties.

(d) *Nonenforcement by the city.* The grantee shall not be relieved of its obligation to comply with any of the provisions of the franchise by reason of any failure of the city to enforce prompt compliance.

(e) *Subsequent action by state or federal agencies.* Should the state, the LPSC, the FCC, or any other agency of the federal government subsequently require the grantee to perform or cease to perform any act which is inconsistent with any provisions of the franchise, the grantee shall so notify the grantor. Upon receipt of such notification, the grantor, in consultation with the grantee, shall determine if a material provision of the franchise is affected. Upon such determination, the parties, in consultation with each other, shall have the right to modify or amend any of the sections of the franchise to such reasonable extent as may be necessary to carry out the full intent and purpose of the franchise.

Should the state, the LPSC, the FCC, or any other agency of the federal government subsequently require the grantor to perform or cease to perform any act which is inconsistent with any provisions of the franchise, the grantor shall so notify the grantee. Upon receipt of such notification, the grantee, in consultation with the grantor, shall determine if a material provision of the franchise is affected. Upon such determination, the parties, in consultation with each other, shall have the right to modify or amend any of the sections of the franchise to such reasonable extent as may be necessary to carry out the full intent and purpose of the franchise.

The grantor may terminate the franchise in the event the grantor and grantee agree that substantial and material compliance with the original proposed terms of the franchise has been frustrated by such state or federal requirement. In such an event, grantee's rights are reserved to pursue whatever remedies it may have, and to comply with the duties and obligations which may be imposed upon it by such state or federal law.

(f) *Causes beyond reasonable control.* In the event grantee's performance of any of the terms, conditions, obligations, or requirements of the franchise is prevented or impaired due to any cause beyond its reasonable control or not reasonably foreseeable, such inability to perform shall be deemed to be excused and no penalties or sanctions shall be imposed as a result thereof. Such causes beyond grantee's reasonable control or not reasonably foreseeable shall include, but shall not be limited to, acts of God, civil emergencies and labor unrest or strikes. Grantee shall notify the director whenever performance is prevented or impaired.

(g) *Nonwaiver of regulatory authority.* Nothing in this Act shall be deemed to constitute a waiver or limitation of any powers or supervision, regulation and control of the city council, as authorized in section 3-130 of the Home Rule Charter.

(h) *Equal opportunity policy.*

(1) *Equal employment opportunity and affirmative action programs.* Grantee shall be an equal opportunity/affirmative action employer adhering to all applicable federal, state or municipal laws and regulations.

(2) *Disadvantaged business enterprise* or DBE participation policy. The grantee shall make reasonable and good faith efforts to attain an overall goal of 35 percent for the utilization of DBEs in its contracting policies for activities occurring within the city.

(3) *Local employment and procurement practices.* Whenever practicable, and to the extent allowed by law, grantee shall make reasonable efforts to obtain all services, personnel, hardware and supplies for the construction, maintenance, and operation of the wireless facilities from businesses located in the city when cost and prices are equal to or lower than sources outside the city.

(4) *Subcontractors.*

a. *City to be informed.* Grantee shall inform the director of all subcontrac-

tors selected by grantee to perform work pursuant to a franchise granted under this Act and any changes thereto. The term "subcontractor" shall not include any lower-tier subcontractors that grantee does not have direct contracts with. Knowledge of a subcontractor by grantor shall not limit or absolve grantee's duties, obligations or warranties under the franchise for any part of the system, and city shall have no liability for any action or inaction by any subcontractor that results in any damage or loss whatsoever to grantee.

b. *Subcontractor relationship.* Nothing contained herein or in any agreement between grantee and a subcontractor or vendor shall create (a) any contractual relationship between city and any subcontractor at any tier, or (b) any third-party beneficiary rights in any subcontractor at any tier. Grantee shall at all times be responsible for the work and conduct of its subcontractors at any tier while performing services pursuant to this Act and shall ensure that its subcontractors comply with all applicable terms and conditions of the franchise. Nothing herein shall negate any rights of grantor based upon a separate agreement with any subcontractors.

c. *Contract requirements.* In addition to the requirements stipulated in section 70-417, all agreements with subcontractors, including agreements between lower-tier subcontractors with grantee, shall include the following:

1. A provision acknowledging that all claims are between the contracting parties and waiving any claim against grantor arising from such contracts.
2. The provisions of subsections 30-64(g) and 30-65.2(i), such policies to name grantor as an additional insured and to conform with the insurance requirements of section 30-64 hereof. Insurance amounts for each subcontractor shall be determined by grantee in its reasonable discretion.
3. The listing of specific contractual provisions herein shall not relieve or limit grantee's obligation under this section above to ensure compliance with the franchise by subcontractors.

(5) *Inspection of book and records.* If grantor has a rational basis for believing that a grantee has failed to comply with subsections (1), (2), (3) and (4), then grantor shall, after reasonable notice, have the right to inspect at any time during normal business hours, all books, records, financial statements and other like materials of the grantee relevant to grantee's compliance with such subsections.

(i) *Limitation of liability.* Grantee's liability to the grantor for damages in connection with this Act shall not exceed the total amount of $1,000,000.00, provided the limitations of liability shall not apply to damages relating to or arising from loss of life, bodily injury, personal injury, damage to property, contamination or adverse effects on the environment or intellectual property infringement. Grantor's liability to the grantee for damages in connection with this Act shall not exceed the total amount of $1,000,000.00, provided the limitations of liability shall not apply to damages relating to or arising from loss of life, bodily injury, personal injury, damage to property, contamination or adverse effects on the environment or intellectual property infringement.

(j) *Intellectual property infringement indemnity.* Grantee will indemnify the grantor and their respective officers, employees, contractors, consultants, members and agents, but not any customers or third parties ("indemnitees"), from losses, costs and damages and defend any suit or proceeding brought against the indemnitees to

the extent that the suit or proceeding is based on a claim that the network operations constitute infringement of any United States patent, mask work, trade secret or copyright and grantee will pay, or grantee will cause the supplier of the infringing network operations to pay, all damages awarded by final judgment (from which no appeal may be taken) against the indemnities, but not any customers or third parties, holding that the network operations do so infringe, on condition that grantee:

(1) Is promptly informed and furnished a copy of each communication, notice or other action relating to the alleged infringement,

(2) Is given authority, information and assistance necessary to defend or settle the suit or proceeding in a manner as grantee may determine, and

(3) Is given sole control of the defense (including the right to select counsel and to require and allow the supplier of the infringing network operations to pay damages and defend as provided herein), and the sole right to compromise and settle the suit or proceeding; provided, however, that no such compromise or settlement shall impose any liability or burden on the grantor without their consent.

(4) If any of the network operations are held to infringe any valid United States patent, mask work, trade secret or copyright as set forth above, and an injunction from a court of competent jurisdiction permanently prohibits the use of the same in the network operations in the wireless services in the city, or if grantee believes infringement is likely, then grantee will

a. Procure the right to use the network operations in the wireless services free of any liability for infringement;

b. Replace or modify the network operations in the wireless services in the city with a non-infringing substitute otherwise complying substantially with the specifications for the wireless services in the city; or

c. Comply with the subsequent sentence. In the event that (i) a court of competent jurisdiction determines that the network operations infringe the above-defined rights of another party, (ii) all right of appeal or stay is exhausted as to such order, and (iii) grantee is unable to replace or modify such infringing network operations in the wireless services in the city or otherwise procure the right to continue using the network operations in the wireless services in the city, then grantee will be entitled to remove the infringing network operations from the wireless services in the city and obtain substitutes that will result in the wireless services in the city performing substantially as required in this Act.

d. In no event will grantee or its suppliers be liable for an infringement that:

i. though it occurs in grantee's wireless service area, did not result from the use of products or services provided by grantee or its affiliates or subcontractors; or

ii. would not have existed but for modification of, or additions to, the network operations by the city or its contractors or agents.

iii. Prior to a final determination that the infringement arose from clauses (i) or (ii) in the preceding sentence, grantee shall remain fully responsible, at its expense, for the defense and indemnification of any infringement claim in accordance with this section: provided, that if it is finally determined that the infringement arose from clauses (i) or

(ii) in the preceding sentences, then grantor will reimburse grantee for its reasonable expenses (including reasonable litigation costs and attorney's fees) incurred therein. The foregoing in this section contains the sole and exclusive liability for grantee's and its suppliers' indemnity against infringement in this section, whether direct or contributory, and is in lieu of all warranties, express, implied or statutory in regard thereto, including, without limitation, the warranty against infringement specified in the Uniform Commercial Code.

(k) *Confidentiality.* Grantor agrees to keep confidential any information provided by grantee to the extent allowed by the Louisiana Public Records Act and other applicable laws.

(l) *Acceptance.*

a. *Filing.* Grantee shall, within 60 days after the approval of a wireless franchise by the city council, file with the clerk of council, with copies filed electronically with the director, the Council Utilities Regulatory Office, and city attorney, a written acceptance of the franchise. Such acceptance shall be signed and acknowledged by an authorized officer of the grantee and attested by its secretary, if required under its corporate governing documents. Such acceptance shall be substantially in the following form:

TO THE COUNCIL OF THE CITY OF NEW ORLEANS

The Grantee, _____ a _____ organized and existing under and by virtue of the laws of the State of _____, does hereby accept the Franchise approved by the City of New Orleans by Ordinance No. ____ M.C.S. enacted the ____ day of _____, ____, granting _____ the Franchise to occupy or attach to City Property or the City's Rights-of-Way to install, maintain and/or repair a wireless communications facilities within the City of New Orleans for the purpose of providing wireless services, subject to certain terms, conditions and limitations as set forth therein. Any amendment or revision to the aforesaid Ordinances shall require a separate acceptance by Grantee.

NAME

BY: _____

ITS: _____

ATTEST:

_____
SECRETARY

Dated at _____, this the ____ day of _____, 20____.

b. *Administrative procedures.* The acceptance shall be read into the minutes of the Council of the City of New Orleans.

c. *Failure to file.* In event such acceptance is not filed within such time, the wireless franchise and the rights and privileges granted therein shall be null and void.

(m) *Administrative procedures.* The director shall formulate all applications and other documents required herein and shall implement appropriate procedures to receive and process siting applications herein, as may be governed by the Home Rule Charter.

(n) *Miscellaneous.* Except as expressly set forth in this Act, the Wireline Telecommunications Franchise Act, or its successor Code section, shall not apply to any franchise granted pursuant to this Act.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.3. Grant of city permit.

(a) *Permitting grant.* Unless otherwise provided for in this Act, all new wireless facilities, collocations, or modifications to existing wireless facili-

ties shall require a wireless facilities permit, which shall be approved by the director, provided the following criteria are met:

(1) The proposal is not located in any location described in section 30-65.12, location restrictions;

(2) The proposal would not significantly impair any view from any viewing area; and

(3) The proposal complies with all applicable provisions in this Act without need for an exception pursuant to section 30-65.13, exceptions. Any wireless facility, collocation, or modification that does not meet the above-described criteria will be subject to further scrutiny before approval by the director, as described in the following sections.

(b) *Deployment siting plan.* Applicants seeking approval for wireless facilities (including new facilities and collocations to existing facilities) may elect to submit a deployment siting plan subject to the director's approval. The proposed deployment siting plan is subject to review, modification and/or approval by all of the appropriate city departments and commissions via the department of safety and permits.

(c) *Other permits required.* In addition to any permit that may be required under this section, the applicant must obtain the city council's franchising approval, and must obtain all other required prior permits or other approvals from other city departments, state, or federal agencies. Any permit granted under this section is subject to the conditions and/or requirements of other required prior permits or other approvals from other city departments, state, or federal agencies.

(d) *Eligible applicants.* Only applicants who have been granted the right to enter the public right-of-way pursuant to the city council's City Charter franchising approval shall be eligible for a permit to install or modify a wireless facility in the public right-of-way.

(e) *Speculative equipment prohibited.* The city finds that the practice of "pre-approving" wireless equipment or other improvements that the applicant does not presently intend to install, but may wish to install at some point undetermined future times does not serve the public's best interest. The city shall not approve any equipment or other improvements in connection with a wireless facility permit when the applicant does not actually and presently intend to install such equipment or construct such improvements.

(f) *Non-applicability of Act.* In the event that the director determines that any application submitted for a wireless facilities permit does not meet the criteria of this Act, the director shall refer the application to the applicable city department for review and recommendation for approval, modification, or disapproval, or the applicant may modify its application to meet the criteria of this Act.

(g) *No permits required.* Notwithstanding anything in this Act to the contrary, the city shall not require an application pursuant to section 30-65.4 or permit pursuant to section 30-65(p) for the following: (1) routine maintenance; or (2) the replacement of small wireless facilities with small wireless facilities that are substantially similar, the same size, or smaller.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.4. Application requirements for city permit.

(a) *Application.* Applicants for permits to install wireless facilities shall submit to the director, with copy to the council utilities regulatory office, written or electronic applications including, an ordinance approved by the city council pursuant to section 3-128 of the Home Rule Charter granting the applicant a franchise with the city, a copy of applicants acceptance of the franchise ordinance as filed with the clerk of council, a description of the proposed installations, services to be provided, a construction schedule of its wireless service areas, GIS maps, and an operations schedule.

(b) *No fiber or cable installation.* No applicant seeking to install a wireless facility shall seek a permit to install fiber or coaxial cable between utility poles or wireless facilities pursuant to a franchise granted under the Wireline Telecom-

munications Act or its successor Code sections under this Act. Applicants shall separately request fiber installation or other cable installations when seeking to install a wireless facility or facilities in the public right-of-way pursuant to a franchise granted under the Wireline Telecommunications Act or its successor Code section; or, alternatively, the applicant may obtain such services from a third party providing such services so long as the third party has a franchise granted under the Wireline Telecommunications Act or its successor Code section or is otherwise authorized by law or agreement with the city.

(c) *Application contents.* The department of safety and permits shall develop a wireless facility application form and make it available to applicants. The wireless facility in the public right-of-way shall require the following information:

(1) The name, address, and telephone number of the applicant, the owner and operator of the proposed facility;

(2) If the applicant is an agent, the applicant shall provide a duly executed letter of authorization from the owner of the proposed facility. If the owner will not directly provide wireless services, the applicant shall provide a duly executed letter of authorization from the person(s) or entity(ies) that will provide those services;

(3) If the facility will be located on or in the property of someone other than the owner of the facility (such as a utility pole, utility cabinet, wireless support structure, vault, or cable conduit) that is not a city-owned asset and is not the property of the applicant, the applicant shall provide a duly executed written authorization from the property owner(s) authorizing the placement of the facility on or in the property owner's property;

(4) A written description of the proposed facility and its purpose;

(5) Detailed engineering plans of the proposed facility and related report prepared by a professional engineer documenting the following:

a. Height, diameter, and design of the facility, including technical engineering specifications, together with a statement that the proposed facility has been designed to be the least visible equipment that is technically feasible within the particular technology the carrier chooses to deploy. A layout plan, section, and elevation of the facility shall be included.

b. A photograph and model name and number of each piece of equipment included.

c. Power output and operating frequency for the proposed antenna.

d. Total anticipated capacity of the structure, indicating the number and types of antennas/nodes and power and frequency ranges, which can be accommodated.

e. Sufficient evidence of the structural integrity of the pole or other supporting structure.

(6) Site plan(s) to scale, specifying and depicting the exact proposed location of the pole, pole diameter, antennas, accessory equipment, landscaped areas, existing utilities, and showing compliance with section 30-65.5, requirements for facilities within the public right-of-way.

(7) Scaled elevation plans of proposed poles, antennas, accessory equipment, and related landscaping and screening.

(8) A statement that the facility will be constructed in accordance with all applicable federal and state regulatory requirements.

(9) If the applicant requests an exception to the requirements of this chapter (in accordance with section 30-65.13, excep-

tions), the applicant shall provide all information and studies necessary for the city to evaluate that request.

(10) Digital maps of the proposed siting/locations of all proposed facilities included in the permit application.

(11) Copies of any documents that the applicant is required to file pursuant to Federal Aviation Administration regulations for the facility.

(12) The city shall have the discretion to require a traffic control plan when the applicant seeks to use large equipment (e.g. crane) for installation of the proposed facility.

(13) A scaled conceptual landscape plan showing existing trees and vegetation and all proposed landscaping, concealment, screening and proposed irrigation with a discussion of how the chosen material at maturity will screen the site.

(d) *Application contents—Modification of existing facility.* The content of the application form for a modification to an existing facility shall be determined by the director, and shall include the requirements listed in section 30-65.4, Application requirements for city permit, unless prohibited by state or federal law.

(e) *Effect of state or federal law change.* In the event a subsequent state or federal law prohibits the collection of any information required by section 30-65.4, application requirements for city permit, the director is authorized to omit, modify or add to that request from the city's application form with the written approval of the city attorney.

(f) *Independent consultant.* The director is authorized to retain on behalf of the city an independent, qualified consultant to review any application for a permit for a wireless facility. The review is intended to be a review of technical aspects of the proposed wireless facility and shall address any or all of the following:

(1) Compliance with applicable radio frequency emission guidelines established by the FCC;

(2) Whether any requested exception is necessary to close a significant gap in coverage and is the least intrusive means of doing so;

(3) The accuracy and completeness of submissions;

(4) The validity of conclusions reached or claims made by applicant;

(5) The viability of alternative sites and alternative designs; and

(6) Any other specific technical issues identified by the consultant or designated by the city.

Before retaining any independent consultant to review any application, the city will timely provide its questions and/or concerns about the specific application to the applicant and the shot clock for review of the application will be tolled until the applicant provides the requested information to the city. If the applicant does not provide satisfactory responses to the city, the city will notify the applicant, in writing, of its decision to retain an independent consultant and will identify the selected independent consultant and the proposed scope of work in the notice. The cost of this review shall be paid by the applicant through a deposit pursuant to a fee schedule resolution adopted after notice and an opportunity for the applicant to provide comment on the reasonableness of the estimated cost. No permit shall be issued to any applicant which has not fully reimbursed the city for the consultant's reasonable and actual cost.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.5. Requirements for facilities within the public right-of-way.

(a) *Design and development standards.* All wireless facilities that are located within the public right-of-way shall be designed and maintained as to minimize adverse visual, noise, and other impacts on the surrounding community and shall be planned, designed, located, and erected in accordance with the following:

(1) *General guidelines.*

a. The applicant shall employ screening, undergrounding and camouflage

design techniques in the design and placement of wireless facilities in order to ensure that the facility blends in with the surrounding environment or otherwise is concealed in a technically feasible manner to prevent the facility from dominating the surrounding area and to minimize significant view impacts from surrounding properties.

b. Screening shall be designed to be architecturally compatible with surrounding structures using appropriate techniques to camouflage, disguise, and/or blend into the surrounding environment, and may include landscaping, color, and other techniques to minimize the facility's visual impact as well as be compatible with the architectural character of the surrounding buildings or structures in terms of applicable color, size, proportion, style, and quality to the extent technically feasible.

c. Facilities shall be located such that views from a residential structure are not significantly impaired. Facilities shall also be located in a manner that protects public views over city view corridors, as defined in the city's general plan, so that no significant view impairment results in accordance with this Code. This provision shall be applied consistent with local, state and federal law.

(2) *Traffic safety.* All facilities shall be designed and located in such a manner as to avoid adverse impacts on traffic safety.

(3) *Blending methods.* All facilities shall have colors and finishes that blend with the colors and finishes of the surrounding area and structures to the extent technically feasible.

(4) *Equipment.* The applicant shall use the least visible equipment possible. Antenna elements shall be flush mounted, to the extent technically feasible. All antenna mounts shall be designed so as not to preclude possible future collocation by the same or other operators or carriers to the extent technically feasible.

(5) *Poles.*

a. Facilities shall be located consistent with section 30-65.12, location restrictions, unless an exception pursuant to section 30-65.13, exceptions, is granted.

b. Only pole-mounted antennas shall be permitted in the right-of-way. All other telecommunications towers are prohibited.

c. Utility poles. The maximum height of any antenna shall not exceed four feet above the height of an existing utility pole, nor shall any portion of the antenna or equipment mounted on a pole be less than 24 feet above any drivable road surface.

d. Replacement poles. If an applicant proposes to replace a pole in order to accommodate a proposed facility, the pole shall be designed to resemble the appearance and dimensions of existing similar poles near the proposed location, including size, height, color, materials and style to the extent technically feasible. Such poles shall have collocation capabilities to the extent technically feasible.

e. New poles. If an applicant proposes to place a new pole in the right-of-way, the pole shall be designed to resemble the appearance and dimensions of existing similar poles near the proposed location including size, height, color, materials, and style to the extent technically feasible. Such new poles that are not replacement poles shall be located at least 90 feet from any existing pole to the extent feasible. Such new poles shall not adversely impact public view

corridors. Such new poles shall have collocation capabilities to the extent technically feasible.

f. For small wireless facilities, all wireless equipment associated with the facility, whether ground or pole-mounted, exclusive of antennas, shall not exceed 28 cubic feet in volume cumulatively.

g. All cables, including, but not limited to, electrical and utility cables, shall be run within the interior of any hollow pole and shall be camouflaged or hidden to the extent technically feasible. For all poles wherein interior installation is infeasible, conduit and cables attached to the exterior of poles shall be mounted flush thereto and painted or of a color that reasonably matches the pole.

(7) *Space.* Each facility shall be designed to occupy the least amount of space in the right-of-way that is technically feasible.

(8) *Wind loads.* Each facility shall be properly engineered to withstand wind loads as required by local, state, and federal law or any applicable duly adopted or incorporated code. An evaluation of wind load capacity shall include the impact of modification of an existing facility.

(9) *Obstructions.* Each component part of a facility shall be located so as not to cause any physical or visual obstruction to pedestrian or vehicular traffic, incommode the public's use of the right-of-way, or safety hazards to pedestrians and motorists.

(10) *Public facilities.* A facility shall not be located within any portion of the public right-of-way interfering with access to a fire hydrant, fire station, fire escape, water valve, underground vault, valve housing structure, or any other public health or safety facility.

(11) *Screening.* All ground-mounted facilities, pole-mounted equipment, or walls, fences, landscaping or other screening methods shall be installed at least 18 inches from the curb and gutter flow line.

(12) *Accessory equipment.* Not including the electric meter, all accessory equipment shall be pole-mounted or located underground, except as provided below:

a. When above-ground is the only feasible location for a particular type of accessory equipment and will be ground-mounted, such accessory equipment shall be enclosed within a structure, and shall not exceed a height of five feet and a total footprint of 15 square feet, and, where appropriate, equipment shall be fully screened and/or camouflaged, including the use of landscaping, architectural treatment, or acceptable alternate screening. Required electrical meter cabinets shall be screened and/or camouflaged.

b. In locations where homes are only along one side of a street, to the extent technically feasible ground-mounted facilities shall not be installed directly in front of a residence. Such ground-mounted facilities shall be installed along the side of the street with no homes unless an exception is granted. Unless said location is located within the coastal setback or the landslide moratorium area, then such locations shall be referred to the city's geotechnical staff for review and recommendations.

(13) *Landscaping.* Where appropriate, each facility shall be installed so as to maintain and enhance existing landscaping on the site, including trees, foliage and shrubs. Additional landscaping shall be planted, irrigated and maintained by applicant

where such landscaping is deemed necessary by the city to provide screening or to conceal the facility.

(14) *Signage.* No facility shall bear any signs or advertising devices other than certification, warning or other signage required by law or permitted by the city.

(15) *Lighting.*

a. Any required lighting shall be shielded to eliminate, to the maximum extent possible, impacts on the surrounding neighborhoods.

b. Unless otherwise required under FAA or FCC regulations, applicants may install only timed or motion-sensitive light controllers and lights, and must install such lights so as to avoid illumination impacts to adjacent properties to the maximum extent feasible. The city may, in its discretion, exempt an applicant from the foregoing requirement when the applicant demonstrates a substantial public safety need.

(16) *Noise.*

a. At no time shall equipment noise from any facility exceed an exterior noise level of 55 dBA three feet from the source of the noise if the facility is located in the public right-of-way adjacent to a business, commercial, manufacturing, utility or school zone; provided, however, that for any such facility located within 500 feet of any property zoned residential or improved with a residential use, such equipment noise shall not exceed 45 dBA three feet from the sources of the noise.

(17) *Security.* Each facility shall be designed to be resistant to, and minimize opportunities for, unauthorized access, climbing, vandalism, graffiti and other conditions that would result in hazardous situations, visual blight or attractive nuisances. The director may require the provision of warning signs, fencing, anti-climbing devices, or other techniques to prevent unauthorized access and vandalism when, because of their location and/or accessibility, a facility has the potential to become an attractive nuisance. Additionally, no lethal devices or elements shall be installed as a security device.

(18) *Modification.* Consistent with current state and federal laws and if permissible under the same, at the time of modification of a wireless facility, existing equipment shall, to the extent feasible, be replaced with the same equipment or equipment that reduces or does not add to visual, noise and other impacts.

(19) *[Expiration.]* The installation and construction approved by a wireless facility permit shall begin within one year after its approval or it will expire without further action by the city.

(b) *Conditions of approval.* In addition to compliance with the design and development standards outlined in this section, all facilities shall be subject to the following conditions of approval (approval may be by operation of law):

(1) The permittee shall submit an as built drawing within 90 days after installation of the facility. As-builts shall be in an electronic format acceptable to the city which can be linked to the city's GIS.

(2) The permittee shall submit and maintain current at all times basic contact and site information on a form to be supplied by the city. The permittee shall notify the city of any changes to the information submitted within 30 days of any change, including change of the name or legal status of the owner or operator. This information shall include, but is not limited to, the following:

a. Identity, including the name, address and 24-hour local or toll free contact phone number of the permittee, the owner, the operator, and the agent or person responsible for the maintenance of the facility.

b. The legal status of the owner of the wireless facility.

(3) The permittee shall notify the city in writing at least ten days prior to any transfer, sale, or assignment of the permit. The written notice required in this section must include: (1) the transferee's legal name; (2) the transferee's full contact information, including a primary contact person, mailing address, telephone number and email address; and (3) a statement signed by the transferee that the transferee shall accept all permit terms and conditions. The director may require the transferor and/or the transferee to submit any materials or documentation necessary to determine that the proposed transfer complies with the existing permit and all its conditions of approval, if any. Such materials or documentation may include, but shall not be limited to: federal, state and/or local approvals, licenses, certificates or franchise agreements; statements; photographs; site plans and/or as-built drawings. Noncompliance with the permit and all its conditions of approval, if any, or failure to submit the materials required by the director shall be a cause for the city to revoke the applicable permits.

(4) At all times, all required notices and/or signs shall be posted on the site as required by the Federal Communications Commission, any applicable municipal codal laws, and as approved by the city. The location and dimensions of a sign bearing the emergency contact name and telephone number shall be posted pursuant to the approved plans.

(5) Permittee shall pay for and provide a performance bond or other form of security as required in permittee's franchise agreement, which shall be in effect until the facilities are fully and completely removed and the site reasonably returned to its original condition, to cover permittee's obligations under these conditions of approval and this Code. The security instrument coverage shall include, but not be limited to, removal of the facility. Before issuance of any permit, permittee must submit said security instrument.

(6) A condition setting forth the permit expiration date in accordance with section 30-65.11, permit expiration, shall be included in the conditions of approval.

(7) The wireless facility shall be subject to such conditions, changes or limitations as are from time to time deemed necessary by the department of public works for the purpose of: (a) protecting the public health, safety, and welfare; (b) preventing interference with pedestrian and vehicular traffic; and/or (c) preventing damage to the public right-of-way or any adjacent property. The city may modify the permit to reflect such conditions, changes or limitations by following the same notice and public hearing procedures as are applicable to the underlying permit for similarly located facilities, except the permittee shall be given notice by personal service or by registered or certified mail at the last address provided to the city by the permittee.

(8) The permittee shall not transfer the permit to any person prior to the completion of the construction of the facility covered by the permit unless and until the transferee of the permit has submitted the security instrument required by section 30-65.5(b).

(9) The permittee shall not move, alter, temporarily relocate, change, or interfere with any existing structure, improvement or property without the prior consent of the owner of that structure, improvement or property. No structure, improvement or property owned by the city shall be moved to accommodate a wireless facility unless the department of public works determines that such movement will not adversely affect the city or any surrounding businesses or residents, and the permittee pays all costs and expenses related to the relocation of the city's

structure, improvement or property. Prior to commencement of any work pursuant to any permit issued for any facility within the public right-of-way, the permittee shall provide the director with documentation establishing that the permittee has the legal right to use or interfere with any other structure, improvement or property within the public right-of-way to be affected by applicant's facilities.

(10) The permittee shall assume full liability for damage or injury caused to any property or person by the permittee's facility.

(11) The permittee shall repair, at its sole cost and expense, any damage including, but not limited to subsidence, cracking, erosion, collapse, weakening, or loss of lateral support to city streets, sidewalks, walks, curbs, gutters, trees, parkways, street lights, traffic signals, improvements of any kind or nature, or utility lines and systems, underground utility line and systems, or sewer systems and sewer lines that result from any activities performed in connection with the installation and/or maintenance of permittee's wireless facility in the public right-of-way. The permittee shall restore such areas, structures and systems to the condition in which they existed prior to the installation or maintenance that necessitated the repairs. Such time period for correction shall be based on the facts and circumstances, danger to the community and severity of the disrepair. Should the permittee not make said correction within the time period allotted, the city shall cause such repair to be completed at permittee's sole cost and expense.

(12) No facility shall be permitted to be installed in the drip line of any tree in the right-of-way.

(13) Prior to the issuance of any encroachment permit, permittee may be required to enter into a right-of-way agreement with the city in accordance with the city's past practice.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.6. Findings.

No permit shall be granted for a wireless facility unless all of the following findings are made by the director:

(a) The applicant has provided sufficient evidence supporting the applicant's claim that it has the right to enter the public right-of-way pursuant to a franchise agreement with the city permitting the applicant to use the public right-of-way.

(b) The proposed facility has been designed and located in compliance with all applicable provisions of this chapter.

(c) If applicable, the applicant has demonstrated its inability to locate on existing infrastructure.

(d) All notices required for the proposed installation have been given.

(e) The applicant has demonstrated the proposed installation is designed such that the proposed installation represents the least intrusive means possible.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.7. Nonexclusive grant.

No permit or approval granted under this Act shall confer any exclusive right, privilege, or franchise to occupy or use the public right-of-way of the city for any purpose whatsoever. Further, no approval shall be construed as any warranty of title.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.8. Emergency deployment.

A cells on wheels ("COW") shall be permitted for the duration of an emergency declared by the city or at the discretion of the director.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.9. Operation and maintenance standards.

All wireless facilities must comply at all times with the following operation and maintenance standards:

(a) Unless otherwise provided herein, all necessary repairs and restoration shall be completed by the permittee, owner, operator or any designated maintenance agent within 30 days:

(1) After discovery of the need by the permittee, owner, operator or any designated maintenance agent; or

(2) After permittee, owner, operator or any designated maintenance agent receives notification from the city.

(b) All facilities shall be maintained in good condition, including ensuring the facilities are reasonably free of:

(1) General dirt and grease;

(2) Chipped, faded, peeling, and cracked paint;

(3) Rust and corrosion;

(4) Cracks, dents, and discoloration;

(5) Missing, discolored or damaged artificial foliage or other camouflage;

(6) Graffiti, bills, stickers, advertisements, litter and debris;

(7) Broken and misshapen structural parts; and

(8) Any material damage from any cause.

(c) All trees, foliage or other landscaping elements existing at the facility installation site at the time of installation or approved as part of the installation shall be maintained in good condition at all times, and the permittee, owner and operator of the facility shall be responsible for replacing any damaged, dead or decayed landscaping.

(d) The permittee shall replace its facilities, after obtaining all required permits, if maintenance or repair is not sufficient to return the facility to the condition it was in at the time of installation.

(e) Each facility shall be operated and maintained to comply with all conditions of approval. Each owner or operator of a facility shall routinely inspect each site to ensure compliance with the same and the standards set forth in this chapter.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.10. No dangerous condition or obstructions allowed.

No person shall install, use or maintain any facility which in whole or in part rests upon, in or over any public right-of-way, when such installation, use or maintenance endangers or is reasonably likely to endanger the safety of persons or property, or when such facility unreasonably interferes with or unreasonably impedes the flow of pedestrian or vehicular traffic including any legally parked or stopped vehicle, the ingress into or egress from any residence or place of business, the use of poles, posts, traffic signs or signals, hydrants, mailboxes, permitted sidewalk dining, permitted street furniture or other objects permitted at or near said location.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.11. Permit expiration.

A permit for any wireless facility shall be valid for as long as the term of the permittee's respective franchise agreement, unless pursuant to another provision of this Code it lapses sooner or is revoked. At the end of term of the franchise agreement, unless permittee receives a new franchise agreement or the term of the agreement is extended, such permit shall expire.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.12. Location restrictions.

Locations requiring an exception. Wireless facilities in public rights-of-way of local streets within residential zones are permitted only when an exception has been granted pursuant to section 30-65.13 below.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.13. Exceptions.

(a) The city recognizes that federal law prohibits a permit denial when it would materially inhibit the provision of wireless services and the applicant proposes the least intrusive means to provide such services. The city council finds that, due to wide variation among wireless facilities, technical service objectives and changed circumstances over time, a limited exemption for proposals in which strict compliance with this Act would materially inhibit wireless services serves the public interest. Therefore, in the event that any applicant asserts that strict compliance with any provision in this Act, as applied to a specific proposed personal wireless services facility, would materially inhibit the provision of wireless services, the director, subject to the approval of the department of public works, may grant a limited exemption from strict compliance subject to the provisions in this section.

(b) Required findings. The director shall not grant any exception unless the applicant demonstrates with clear and convincing evidence all the following:

(1) The proposed wireless facility qualifies as a "personal wireless services facility" as defined in United States Code, Title 47, section 332(7)(ii);

(2) The applicant has provided the city with a clearly defined technical service objective and a clearly defined potential site search area;

(3) The applicant has provided the city with the factual reasons why any alternative location(s) or design(s) that would strictly comply with this Act suggested by the city or otherwise identified in the administrative record are not technically feasible or potentially available; and

(4) The applicant has provided the city with a meaningful explanation of why the proposed location and design deviates is the least noncompliant location and design necessary to reasonably achieve the applicant's technical service objectives.

(c) Scope. The director shall limit its exemption to the extent to which the applicant demonstrates such exemption is necessary to achieve its technical service objectives. The director may adopt conditions of approval as necessary to promote the purposes in this Act and protect the public health, safety and welfare.

(d) Independent consultant. The city shall have the right to hire, at the applicant's expense (subject to the provisions of section 30-65.4(f)), an independent consultant to evaluate issues raised by the exception and to submit recommendations and evidence in response to the application.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.14. Effect on other ordinances.

Compliance with the provisions of this Act shall not relieve a person from complying with any other applicable provision of this Code. In the event of a conflict between any provision of this Act and other sections of this Code, this Act shall control.
(M.C.S., Ord. No. 27999, § 1, 3-14-19)

Sec. 30-65.15. Nonconforming wireless facilities in the right-of-way.

(a) Nonconforming wireless facilities are those facilities that do not conform to this Act.

(1) Nonconforming wireless facilities shall, within one year from the date such facility becomes nonconforming, be brought into conformity with all requirements of this Act.

(M.C.S., Ord. No. 27999, § 1, 3-14-19)

ARTICLE III. MAYORALTY PERMITS GENERALLY*

Sec. 30-66. Rules and regulations.

The director of the department of finance shall prescribe such other rules and regulations

*__Cross references—__Mayoralty permit required for readers, § 30-1283; mayoralty permit required for street entertainers, § 30-1452; mayoralty permits required for certain peddlers and itinerant vendors, § 110-46; mayoralty permits required for certain transient vendors, § 110-256 et seq.; alcoholic beverage special event permits, § 10-52.

as to the form of the application for permits and their issuance as may be required to carry out the full intent and purpose of this article.
(Code 1956, § 46-4)

Sec. 30-67. Penalties and interest.

All mayoralty permits must be obtained prior to the occasion for which it is issued. If the applicant fails to secure the permit prior to the occasion, the following penalties and interest shall apply:

(1) Mayoralty permits acquired on a regular yearly basis shall become delinquent February 1 of that year. If the regular yearly permit is not obtained by February 1 of that year, there shall be interest added to the fee at the rate of eight percent per annum from the due date until paid. In addition to the interest that may be added, a penalty shall be imposed at the rate of 20 percent of the fee if the failure to obtain such permit is for not more than 30 days and with an additional 20 percent for each additional 30 days or fraction thereof during which the failure continues, not to exceed 60 percent of the amount of the fee.

(2) Mayoralty permits acquired on other than a regular yearly basis shall become delinquent at the start of the occasion. If the permit has not been obtained prior to the occasion, there shall be interest added to the fee at the rate of eight percent per annum from due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 50 percent of the fee.

(3) The director of the department of finance may, at his discretion, for good cause, waive, in whole or in part, any of the penalties provided in this section.

(Code 1956, § 46-15)

Sec. 30-68. Permits nontransferable.

Permits issued under the authority of this article III shall be nontransferable either as to individuals, location or item as defined in sections 34-318 through 34-220.
(Code 1956, § 46-3)

Sec. 30-69. Mayoralty permits required for various callings or occasions.

Permits shall not be required for the sale by an individual of tickets at or below face value to athletic contests or other amusement events, provided that tickets are not sold or offered for sale within 750 feet of the grounds of the Superdome when the event related to the ticket is being conducted or within six hours of the scheduled commencement of such event.

Except for such sale by an individual of tickets at or below face value to athletic contests or other amusement events, within said 750-foot buffer zone, every person who shall desire to use the public streets, sidewalks or other public or private places of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the river on the east, Claiborne Avenue on the west, Esplanade Avenue on the north, and Howard Avenue on the south, except as provided in this article.

Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the city confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal liens.
(Code 1956, § 46-1; M.C.S., Ord. No. 17,921, § 1, 12-19-96; M.C.S., Ord. No. 21426, § 1, 2-20-04; M.C.S., Ord. No. 30681, § 3, 6-24-26)

Cross references—Mayoralty permit required for street entertainers, § 30-1452 et seq.; mayoralty permit required for certain Mardi Gras activities, § 34-216 et seq.; mayoralty permits and certain restrictions on certain sales in the central business district, § 34-218; mayoralty permits required for peddlers and itinerant vendors selling artifacts, § 110-76 et seq.; mayoralty permits required for artists, § 110-121 et seq.; mayoralty permits required for flower vendors and peddlers, § 110-151 et seq.; mayoralty permits required for

food vendors, § 110-186 et seq.; mayoralty permits required for certain soliciting, § 110-221 et seq.; mayoralty permits required for transient vendors, § 110-256 et seq.; Vieux Carré, ch. 166.

Sec. 30-70. Fee schedule.

Permits required by this article shall be paid for by the applicant at the time of issuance according to the following schedule. These fees shall be nonrefundable and shall not be waived. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District.

(1) To sell novelties on the city streets other than during the Mardi Gras season, per sales outlet, for one year . . . $50.00

(2) To sell candles on foot or from push carts or other vehicles on city streets or public places other than during the Mardi Gras season, per sales outlet, per year 50.00

(3) To sell home-manufactured or home-grown products on foot, per year 50.00

(4) To sell razor blades, toilet articles, pencils, shoe laces, etc., on city streets or public places, per year 30.00

(5) Demonstrations of food products or devices in public places or markets, etc., per engagement 50.00

(6) To distribute samples, advertising brochures and pamphlets, or commercial literature of any type whatsoever, canvass or solicit on city streets or house to house for commercial purposes.

a. For crew manager, per year 50.00

b. For each crew member, per year 30.00

(7) To take and sell photographs on the city streets or other public places where the parties photographed willingly pose for the picture and the picture is developed on the spot where taken and there delivered to the parties photographed, per year 50.00

(8) To take and sell photographs on city streets or in any other public places in any other manner than that described in subsection (7), per year 500.00

(9) To conduct a sale of goods, wares or merchandise in issuance, bankruptcy, mortgage, insolvent assignees, receivers, trustees removal or closing out sale or sale of goods, wares and merchandise damaged by fire or otherwise in accordance with R.S. 51:31 to 51:41, per sale. 50.00

(10) To give a rummage sale, per event 30.00

(11) To give a boutique sale, per event 10.00

(12) Weighing devices, etc., on sidewalks or in public places.

a. Per nickel machine, per year 50.00

b. Per penny machine, per year 30.00

(13) Exhibitions, expositions, etc., educational or otherwise, when admission is charged or offerings solicited or accepted, per month.

a. For events that are sponsored by nonprofit organizations 125.00

b. For all other events . . . 250.00

(14) For a circus, a carnival or any other activity wherein mechanical devices for amusement other than coin-operated are used on a temporary basis, per year in addition to license 200.00

(15) To operate games of sport or skill when admission is charged or a fee collected in any manner, including putt-putt games, shooting galleries, archery, etc., per year . . 200.00

(16) To conduct sport events when admission is charged or a fee collected in any manner and when an annual license is not paid to the city:

a. Admission not more than $0.75 per event . . 30.00

b. Admission more than $0.75 per event 50.00

(17) For amateur and professional prizefights or boxing and wrestling contests:

a. Admission not more than $0.75 per event . . 30.00

b. Admission more than $0.75 per event 50.00

(18) For entertainment (other than fairs given by a church for the benefit of the church or by a school for the benefit of the school) dance reviews, plays, festivals, bazaars, etc., with or without music, when admission is charged or when no admission is charged, but subscription fees or contributions are collected.

a. Admission not more than $0.75 or by invitation, per event 30.00

b. Admission more than $0.75 per event 50.00

(19) For carnival balls 50.00

(20) For dancing when admission is charged:

a. Admission not more than $0.75 per event . . 30.00

b. Admission not more than $1.99 per event . . 50.00

c. Admission $2.00 or more per event 100.00

(21) For a private dance in a public hall, per event 30.00

(22) To stage, present or conduct a parade, motorcade, procession, march, or any other planned movement of persons, vehicles, or animals on the streets of the city (except road races, Mardi Gras or carnival parades and funeral processions).

a. For events which are sponsored by nonprofit organizations 100.00

b. For all other events . . . 200.00

(23) For the purpose of operating a retail business establishment exhibiting and selling to the public:

Books, magazines, periodicals and other publications or paraphernalia which feature nudity, simulate natural or unnatural sex acts or otherwise appeal to sexually prurient interest and which establishment caters

exclusively to adults	2,500.00
(24) To operate a bed and breakfast-family home, i.e., where one or two rooms are available for rental, per year	200.00
(25) To operate a bed and breakfast-guest house, i.e., where three to five rooms are available for rental, per year	600.00

(Code 1956, § 46-1(2), (3), (9), (14), (16), (17), (19)—(34A), (37); M.C.S., Ord. No. 16,952, § 1, 3-16-95; Ord. No. 19,936, § I, 12-1-00; M.C.S., Ord. No. 27266, § 1, 1-26-17; M.C.S., Ord. No. 29188, § 1, 10-6-22; M.C.S., Ord. No. 29257, § 3, 11-17-22)

Cross references—Peddlers and solicitors, ch. 110; peddlers and itinerant vendors, § 110-46 et seq.; peddlers of food, § 110-186 et seq.; solicitors, § 110-221 et seq.; transient vendors, § 110-256 et seq.

Sec. 30-71. Fees to go to general fund.

The collector of revenue shall transmit, day by day, as collected by him, to the bureau of the treasury all moneys and fees received for the issuance of the permits required by this chapter. The bureau of the treasury upon the receipt of such moneys and fees shall immediately deposit them in the general fund.
(Code 1956, § 46-5)

Sec. 30-72. Additional charges for police pension fund.

In addition to the charges shown in the fee schedule for each permit, each applicant shall be required to pay the sum of $0.25 for the account of the police pension fund, which additional sum shall be transmitted by the collector of revenue, day by day, as collected by him, to the chief of bureau of the treasury. At the end of each month the chief of the bureau of the treasury shall remit all such sums so collected for account of the police pension fund to the board of trustees, police pension fund.
(Code 1956, § 46-2)

Sec. 30-73. Obscenity laws to be provided to certain applicants.

The department of finance shall provide a copy of R.S. 14:91.11 relative to sale, exhibition or distribution of material harmful to minors and R.S. 14:106 relative to obscenity, to each applicant for a permit under this chapter to conduct live entertainment and to the owner of the premises upon which the live entertainment is proposed to be conducted.
(Code 1956, § 46-2.1)

Sec. 30-74. Permits valid in the central business district.

Permits designated by section 30-70(5), (10) through (12), (14), (17) through (27), are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south. Permits designated by other subsections of section 30-70 shall not be valid in that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south; provided, however, that vendors who have continuously operated the same business within that area under the authorization of this chapter for eight or more years prior to January 1, 1972 may obtain the same number of permits to operate such businesses within that area as the vendor possessed as of January 1, 1972.
(Code 1956, § 46-1.1)

Sec. 30-75. Permits not valid in certain areas during Annual Louisiana Jazz and Heritage Festival Season.

(a) Permits designated by subsections 30-70(1) through (4) and (7) are not valid within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) during the Annual New Orleans Jazz and Heritage Festival Season.

(b) The "annual New Orleans Jazz and Heritage Festival season" is defined as that period occurring annually commencing at 7:00 a.m. on the first day of live music performances at the New Orleans Jazz and Heritage Festival

conducted annually at the Fair Grounds Racetrack by the New Orleans Jazz and Heritage Foundation, Inc., and continuing through and until midnight on the concluding day of live music performances at such location during such festival.

(c) Any established and properly licensed retailer located within the area designated by subsection (a) shall be permitted to display and sell their own merchandise on the exterior portion of their leased or owned premises during the dates of the annual New Orleans Jazz and Heritage Festival season.
(Code 1956, § 46-1.1.1; M.C.S., Ord. No. 24403, § 1, 4-28-11)

Sec. 30-76. Peddling novelties, souvenirs and foods; prohibited near schools.

It shall be unlawful to sell novelties, souvenirs, candies, nuts, confections, ice cream, ice cream bars, hot tamales, sandwiches, soft drinks, cakes, pies, fruits, and vegetables, or any other food stuff on the city streets within two blocks of any elementary or secondary school when such school is in session.
(Code 1956, § 46-14; M.C.S., Ord. No. 23799, § 1, 11-19-09)

Sec. 30-77. Offense for misuse of permits.

(a) No person, individual, or corporation shall copy, reproduce, or counterfeit, or cause to be copied, reproduced or counterfeited, any permit issued pursuant to section 30-69 by any form or process, or to otherwise represent something to be a valid permit when it is not.

(b) Whosoever violates the prohibition of this section shall be punished in accordance with the penalty provided for in sections 1-13 and 30-78.
(Code 1956, § 46-1.2)

Sec. 30-78. Penalty.

Persons who fail to obtain a permit or to comply with any of the other regulations contained in this chapter, shall be guilty of a misdemeanor and upon conviction thereof shall be subject to the punishment prescribed in section 1-13. A permittee so convicted shall forfeit such permit and not be entitled to a refund of the fees paid therefor.
(Code 1956, § 46-16)

Secs. 30-79—30-100. Reserved.

ARTICLE IV. AUCTIONS

DIVISION 1. GENERALLY

Sec. 30-101. Not applicable to certain types of auction.

This article shall not apply to judicial sales or sales by executors or administrators nor to sales by or on behalf of licensed pawnbrokers of unredeemed pledges in the manner provided by law. This article shall not apply to sales at public auction of those articles mentioned in section 30-102 if they have been used or constitute part of household goods or personal property immediately prior to being offered for auction and have not become the stock of any merchant, wholesaler or retailer, just prior to their being offered for sale and are being sold for the account of their private owner.
(Code 1956, § 8-3)

State law reference—Exclusions, R.S. 37:3104.

Sec. 30-102. Sales of jewelry and leather goods—Prohibited generally.

(a) It shall be unlawful for any person to sell, dispose of or offer for sale in the city at public auction or to cause or permit to be sold, disposed of or offered for sale in the city at any public auction any gold, silver, plated ware, precious or semiprecious stones, watches, clocks or goods, wares or merchandise of any kind or nature whatsoever, commonly classified as jewelry and leather goods, whether such goods shall be the property of such person or whether such person sells such goods as agent or employee of another.

(b) Without limiting the generality of the term "sale by public auction," such sale shall include a sale in which, instead of the bidders making increasingly higher bids for an article or articles of merchandise, the seller or auctioneer

announces a price at which he will sell one or more articles of merchandise and then, if no sale occurs, increasingly adds additional articles of merchandise to those originally offered with or without varying the previously announced price until a buyer is finally induced to buy the accumulated articles at the price fixed.

(c) It shall be unlawful to use the words "auction sale," or "action sale" or "auction" or "action" or any other word, or words, similar to the word "auction" in advertising, announcing or conducting any sale of gold, silver, plated ware, precious or semiprecious stones, watches, clocks or goods, wares or merchandise of any kind or nature whatsoever, commonly classified as jewelry and leather goods, other than a bona fide auction sale held or conducted pursuant to the provisions of this article.
(Code 1956, § 8-1)

State law reference—Similar provisions, R.S. 37:3101 et seq.

Sec. 30-103. Same—Permitted if licensed.

Auctions of the type mentioned in section 30-102 shall be permitted if they are duly licensed by the city and after the licensee has complied, and continues throughout the period of his license, to comply with the provisions, rules and regulations set out in this article.
(Code 1956, § 8-2)

Sec. 30-104. No sales to be held in December.

No sale by auction of the items mentioned in section 30-102 shall be licensed for or held during the month of December.
(Code 1956, § 8-9)

Secs. 30-105—30-130. Reserved.

DIVISION 2. LICENSE

Sec. 30-131. Application.

All applications to conduct a sale at auction hereunder shall be addressed to the director of the department of finance. Such application shall set forth:

(1) The full name, residence address and business address of the applicant.

(2) The character of business the applicant has been engaged in for two years prior to the application.

(3) Whether the proposed auction is to be held at the applicant's regularly established place of business and where his business has been operated for at least one year prior to the filing of such application.

(4) The name, address and occupational history of each person who will participate in the sale.

(5) A statement as to whether any additions to the stock or merchandise to be sold at the auction have been made within a period of 90 days prior to the filing of the application.

(6) A statement to the effect that from the time of filing the application until after the end of the sale the applicant will not make any addition or permit any additions to be made to the stock as set out in the inventory attached to the application.

(7) A statement to the effect that the applicant will not permit merchandise other than that described in the inventory to be stored, placed at or permitted to be in or on or to be sold or offered for sale at the premises where the auction is to be held, whether such merchandise be his own or that of another person.

(8) A statement as to whether or not the applicant has conducted or caused to be held any sale by auction within a period of five years prior to the filing of the application and, if so, a brief description of the character of such other auction and of the place where it was held.

(9) A statement as to whether the applicant has owned or conducted, within a two-year period prior to the filing of the application, either singly or in combination with others or as a principal shareholder, any store or other place of business other than the one mentioned

as his regular place of business in the application and, if so, the character of business operated.

(10) The purpose for holding the proposed auction.

(11) A statement that he and all others participating in or conducting the sale will truly and correctly represent at all times to the public attending the auction the actual facts in respect to the quality and manufacture of the items offered for sale and that he will not place fictitious price tags on such items.

(12) A statement as to whether the applicant or any other person he proposes to use as auctioneer or other employee at the proposed auction has been convicted of any violation of this article since October 15, 1955.

(Code 1956, § 8-4)

State law reference—Application for license, R.S. 37:3113 et seq.

Sec. 30-132. Application under oath.

All of the statements submitted with the application for a license to conduct an auction sale shall be under oath and shall be sworn to before an officer duly authorized by law to administer oaths.
(Code 1956, § 8-5)

State law reference—Application for license, R.S. 37:3113(C).

Sec. 30-133. Inventory attached to application.

The applicant for a license to conduct an auction sale shall attach to his application, in quadruplicate, a true and correct inventory, item by item and article by article, listing each item proposed to be offered for sale at the sale by auction, with a statement that each item to be sold at such sale shall be tagged with a number corresponding to the number on the inventory. The description of each item on the inventory shall include the type of article, brand name, name of manufacturer, quality, kind or grade. The inventory shall be sworn to as being true and correct before an officer duly authorized to administer oaths.
(Code 1956, § 8-6)

State law reference—Application for license, R.S. 37:3113 et seq.

Sec. 30-134. Time lapse before issuance.

In no event shall any license be issued under the provisions of this article prior to 15 days, exclusive of Saturdays and Sundays, after the filing of the application.
(Code 1956, § 8-7)

State law reference—Issue of license, R.S. 37:3114(D).

Sec. 30-135. Issue of license; fee.

When the applicant has complied with all the requirements of this article, and upon payment of a fee in the sum of $25.00 to the city for the expense incident to the processing of the application and issuance of the license, the director of the department of finance shall grant to the applicant a license to conduct an auction for the sale of gold, silver, plated ware, precious or semiprecious stones, watches, clocks and all goods, wares and merchandise of every kind and nature whatsoever commonly classified as jewelry and leather goods in the manner provided for and in accordance with all the rules, regulations and requirements set out and provided for by this article.
(Code 1956, § 8-8)

Sec. 30-136. Revocation.

If any statement contained in the inventory required in this division is not true and correct or if any licensee shall violate any of the provisions of this article his license shall be revoked by the director of the department of finance upon the receipt of proof of such violation considered legally sufficient by the department of law of the city and such revocation shall be in addition to any other penalties provided by law.
(Code 1956, § 8-22)

Sec. 30-137. Violation of agent deemed violation by principal.

Any person who obtains a license for an auction shall be responsible for all acts of any agent of his during such auction and for the entire period governed by the license to conduct such an auction. If any such agent shall violate any of the provisions of this article, it shall be as if the person who had obtained the license had himself violated such provision and his license shall be revoked by the director of the department of finance upon receipt of proof of such violation considered legally sufficient by the department of law of the city.
(Code 1956, § 8-21)

Sec. 30-138. Violator not to be licensed as auctioneer for ten years.

A person who has been convicted of a violation of this article shall not be granted a license to act as an auctioneer under this article for a period of ten years after such conviction.
(Code 1956, § 8-23)

Secs. 30-139—30-160. Reserved.

DIVISION 3. REGULATIONS

Sec. 30-161. Days of sale, limitation.

Any auction provided for in this article shall be licensed only to be held on successive days, Sundays and legal holidays excepted, and shall not continue for more than 30 such successive days within the period of one year.
(Code 1956, § 8-10)

Sec. 30-162. Frequency.

No license for any sale by auction under this article shall be granted to any person until a period of one year from the termination of a previous auction sale shall have elapsed, if such person has been licensed to hold the type of auction provided for in this article.
(Code 1956, § 8-11)

Sec. 30-163. Location of sale—Restricted.

No one shall be licensed for an auction sale who has not, for the period of one year next preceding the sale, been continuously in business in the parish as a retail or wholesale merchant of the items to be auctioned and any sale by auction may only be held at the licensee's existing regularly established place of business and at the place where his regular business has been operated continuously for a period of at least one year prior to the date such auction is to commence. Any such auction shall be conducted only in the name of such business and no other.
(Code 1956, § 8-12)

Sec. 30-164. Same—Proof of compliance.

The applicant for a license to conduct an auction sale must prove to the city that he is in compliance with section 30-163, by submitting with his application for a license a certified copy, for the period of one year prior to the date his auction is to commence, of the following: his social security tax returns as well as city and state sales tax returns, United States excise tax returns or receipts, city and state personal property tax receipts and city occupational licenses and must make a proper showing that all of such taxes and licenses are currently paid through and including the latest payment period.
(Code 1956, § 8-13)

Sec. 30-165. Truthfulness of representations.

At all sales by auction under this article, the licensee shall, at all times, truly and correctly represent to the public attending the auction the actual facts in respect to the quality and manufacture of the items being offered for auction. It shall be unlawful for any licensee to place what is popularly known in the trade as fictitious price tags on items sold at any such auction.
(Code 1956, § 8-14)

Sec. 30-166. Articles falsely described not to be sold by auctioneer.

No auctioneer shall sell or offer for sale at any sale by auction any article which has been falsely described or concerning which any untruthful statement has been made as to character, quality, kind, description or cost.
(Code 1956, § 8-15)

Sec. 30-167. Only goods on inventory filed with application to be sold.

During any sale by auction, no addition whatever shall be made to the stock of merchandise which is to be auctioned and which is set forth in the inventory mentioned in section 30-169 and nothing shall be offered for sale or sold at any such sale by auction in addition to the stock of merchandise described in such inventory and which has been added to the applicant's stock within a period of 90 days prior to the date the applicant files his application for a license. It shall be unlawful to permit any goods other than those which are described in such inventory to be stored, placed at or permitted to be on or to be sold or

offered for sale in any manner at the premises at which the auction is to be held, whether they be owned by the licensee or by any other person.
(Code 1956, § 8-16)

Sec. 30-168. Inventory number to be announced.

At any auction to be conducted pursuant to this article, the auctioneer shall, prior to offering the goods for sale, announce in a loud, clear voice, the identifying inventory number of each article and shall again, immediately after it is sold, announce its identifying number and state the amount for which the item was sold.
(Code 1956, § 8-17)

Sec. 30-169. Copy of inventory available for inspection.

The copy of the inventory on which the auction's sale prices are noted shall be immediately available at all times during the period that the auction is authorized for inspection by the agents of the city for the purpose of accounting for the sales tax and for the purpose of seeing that this article is being complied with.
(Code 1956, § 8-18)

Sec. 30-170. Capping, etc., prohibited.

No person shall:

(1) Act at any auction sale provided for herein as a bidder or what is commonly known as a "capper," "booster" or "shill";

(2) Place or offer to place any false bid; or

(3) Offer to buy or pretend to buy any article sold or offered for sale by auction.

(Code 1956, § 8-19)

Sec. 30-171. Sale price noted on copy of inventory.

Sufficient space shall be left on the right-hand side of the margin of the inventory required in this article in which to write the price at which the article is sold at auction. One copy of the inventory shall be appropriately identified by the licensing authority and returned to the applicant, if the application is granted. The person conducting the auction or his agent shall use the copy of the inventory returned with the license to indicate immediately after each article is sold, the price at which the article was sold.
(Code 1956, § 8-20)

Secs. 30-172—30-200. Reserved.

DIVISION 4. SALES OF JEWELRY AND OTHER MERCHANDISE BY PUBLIC OUTCRY

Subdivision I. Generally

Sec. 30-201. Prohibited generally; exception.

It shall be unlawful for any person to sell, offer for sale, expose for sale or solicit offers to purchase any jewelry, watches, clocks, binoculars, optical instruments, cameras, luggage, leather goods, plastic goods, imitation leather goods, cigarette cases, compacts, mechanical pens and pencils, precious stones, semiprecious stones, gold, silver, platinum or plated ware, by public outcry addressed collectively to a group of three or more persons assembled for the purpose of conducting sales of any of the aforesaid articles in any store or premises in the city without first obtaining a license from the director of the department of finance. It shall be unlawful to merchandise any of such articles by means of public outcry on any of the streets or sidewalks of the city and the director of the department of finance shall not issue a license for such purpose.
(Code 1956, § 8-24)

Sec. 30-202. Sales permitted if licensed and licensee complies with provisions of article.

Sales by public outcry of the type mentioned in section 30-201 shall be permitted if they are duly licensed by the city as set out in this article and after the licensee has complied, and continues throughout the period of his license, to comply with the provisions, rules and regulations set out in this article.
(Code 1956, § 8-25)

Sec. 30-203. Penalties for violations.

Every person who engages in merchandising by public outcry any of the items of merchandise mentioned in section 30-201 in violation of any of the provisions of this division shall be deemed guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not more than $100.00 or by imprisonment for not more than 90 days, or both such fine and imprisonment; or if by a corporation, it shall be punished by a fine of $100.00 for each such violation.
(Code 1956, § 8-46)

Secs. 30-204—30-225. Reserved.

Subdivision II. License

Sec. 30-226. Application—Information to be shown; statements to accompany.

All applications to conduct a sale by public outcry hereunder shall be addressed to the director of the department of finance. Such application shall set forth:

(1) The full name, residence address and business address of the applicant.

(2) The character of business the applicant has been engaged in for two years prior to the application.

(3) Whether the proposed sale by public outcry is to be held at the applicant's regularly established place of business and where his business has been operated for at least one year prior to the filing of such application.

(4) The name, address and occupational history of each person who will participate in the sale.

(5) A statement as to whether any additions to the stock or merchandise to be sold by public outcry have been made within a period of 90 days prior to the filing of the application.

(6) A statement to the effect that from the time of filing the application until after the end of the sale, the applicant will not make any addition or permit any additions to be made to the stock as set out in the inventory attached to the application.

(7) A statement to the effect that the applicant will not permit merchandise other than that described in the inventory to be stored, placed at or permitted to be in or on or to be sold or offered for sale at the premises where the sale by public outcry is to be held, whether such merchandise be his own or that of another person.

(8) A statement as to whether or not the applicant has conducted or caused to be held any sale by auction or sale by public outcry within a period of five years prior to the filing of the application and, if so, a brief description of the character of such other auction or sale by public outcry and of the place where such sale was held.

(9) A statement as to whether the applicant has owned or conducted, within a two-year period prior to the filing of the application, either singly or in combination with others or as a principal shareholder, any store or other place of business other than the one mentioned as his regular place of business in the application and, if so, the character of business operated.

(10) The purpose for holding the sale by public outcry.

(11) A statement that he and all others participating in or conducting the sale will truly and correctly represent at all times to the public attending the sale by public outcry the actual facts in respect to the quality and manufacture of the items offered for sale and that he will not place fictitious price tags on such items.

(12) A statement as to whether the applicant or any other person he proposes to use to conduct the proposed sale by public outcry has been convicted of any violation of this article since October 15, 1955.

(Code 1956, § 8-26)

Sec. 30-227. Same—Statements under oath.

All of the statements submitted with the application for a license to conduct a sale by public

outcry shall be under oath and shall be sworn to before an officer duly authorized by law to administer oaths.
(Code 1956, § 8-27)

Sec. 30-228. Same—Inventory attached.

The applicant for a license to conduct a sale by public outcry shall attach to his application, in quadruplicate, a true and correct inventory, item by item and article by article, listing each item proposed to be offered for sale at the sale by public outcry, with a statement that each item to be sold at such sale shall be tagged with a number corresponding to the number on the inventory. The description of each item on the inventory shall include the type of article, brand name, name of manufacturer, quality, kind or grade. The inventory shall be sworn to as being true and correct before an officer duly authorized to administer oaths.
(Code 1956, § 8-28)

Sec. 30-229. Time lapse before issuance.

In no event shall any license be issued under the provisions of this division prior to 15 days, exclusive of Saturdays and Sundays, after the filing of the application.
(Code 1956, § 8-29)

Sec. 30-230. Issuance, fee.

When the applicant has complied with all the requirements of this division and upon payment of a fee in the sum of $25.00 to the city for the expense incident to the processing of the application and issuance of the license, the director of the department of finance shall grant to the applicant a license to conduct a sale by public outcry for the sale of gold, silver, plated ware, precious or semiprecious stones, watches, clocks and all goods, wares and merchandise of every kind and nature whatsoever commonly classified as jewelry and leather goods in the manner provided for and in accordance with all rules, regulations and requirements set out and provided for by this division.
(Code 1956, § 8-30)

Sec. 30-231. Revocation.

If any statement contained in the inventory required in this article is not true and correct or if any licensee shall violate any of the provisions of sections 30-229, 30-263, 30-265—30-267 his license shall be revoked by the director of the department of finance upon the receipt of proof of such violation considered legally sufficient by the department of law of the city and such revocation shall be in addition to any other penalties provided by law.
(Code 1956, § 8-44)

Sec. 30-232. Violations of agent deemed violations by principal.

Any person who obtains a license for a sale by public outcry shall be responsible for all acts of any agent of his during such sale by public outcry and for the entire period governed by the license to conduct such sale by public outcry, and if any such agent shall violate any of the provisions of this division, it shall be as if the person who had obtained the license had himself violated such provision and his license shall be revoked by the director of the department of finance upon receipt of proof of such violation considered legally sufficient by the department of law.
(Code 1956, § 8-43)

Sec. 30-233. Violator not to be licensed to hold sale by public outcry for ten years.

A person who has been convicted of a violation of this division shall not be granted a license to conduct a sale by public outcry under this division for a period of ten years after such conviction.
(Code 1956, § 8-45)

Secs. 30-234—30-255. Reserved.

Subdivision III. Regulations

Sec. 30-256. No sales to be held in December.

No sale by public outcry of the items mentioned in section 30-201 shall be licensed for or held during the month of December.
(Code 1956, § 8-31)

Sec. 30-257. Days of sale, limitation.

Any sale by public outcry provided for by this division shall be licensed only to be held on successive days, Sundays and legal holidays excepted, and shall not continue for more than 30 such successive days within the period of one year.
(Code 1956, § 8-32)

Sec. 30-258. Frequency.

No license for any sale by public outcry, as provided for in this division, shall be granted to any person until a period of one year from the termination of an auction sale or sale by public outcry shall have elapsed, if such person has been licensed to hold the type of auction or sale by public outcry provided for in this article.
(Code 1956, § 8-33)

Sec. 30-259. Location of sale—Restricted.

No one shall be licensed for a sale by public outcry who has not, for a period of one year next preceding the sale, been continuously in business in the parish as a retail or wholesale merchant of the items to be sold and any sale by public outcry may only be held at the licensee's existing regularly established place of business and at the place where his regular business has been operated continuously for a period of at least one year prior to the date such sale by public outcry is to commence. Any such sale by public outcry shall be conducted only in the name of such business and no other.
(Code 1956, § 8-34)

Sec. 30-260. Same—Proof of compliance.

The applicant for a license to conduct a sale by public outcry must prove to the city that he is in compliance with section 30-259 by submitting with his application for a license a certified copy, for the period of one year prior to the date his sale by public outcry is to commence, of the following: his social security tax returns, as well as city and state sales tax returns, United States excise tax returns or receipts, city and state personal property tax receipts and city occupational licenses and must make a proper showing that all of such taxes and licenses are currently paid through and including the latest payment period.
(Code 1956, § 8-35)

Sec. 30-261. Truthfulness of representations.

At all sales by public outcry under this division the licensee shall, at all times, truly and correctly represent to the public attending the sale by public outcry the actual facts in respect to the quality and manufacture of the items being offered for sale by public outcry. It shall be unlawful for any licensee to place what is popularly known in the trade as "fictitious price tags" on items sold at any such sale by public outcry.
(Code 1956, § 8-36)

Sec. 30-262. Articles falsely described not to be sold.

No person conducting a sale by public outcry shall sell or offer for sale at any such sale by public outcry any article which has been falsely described or concerning which any untruthful statement has been made as to character, quality, kind, description or cost.
(Code 1956, § 8-37)

Sec. 30-263. Only goods on inventory filed with application to be sold.

During any sale by public outcry, no addition whatever shall be made to the stock of merchandise which is to be sold and which is set forth in the inventory mentioned in section 30-228 and nothing shall be offered for sale or sold at any such sale by public outcry in addition to the stock of merchandise described in such inventory and which has been added to the applicant's stock within a period of 90 days prior to the date the applicant files his application for a license. It shall be unlawful to permit any goods other than those which are described in such inventory to be stored, placed at or permitted to be on or to be sold or offered for sale in any manner at the premises at which the sale by public outcry is to be held, whether they be owned by the licensee or by any other person.
(Code 1956, § 8-38)

Sec. 30-264. Inventory number to be announced.

At any sale by public outcry to be conducted pursuant to this division, the person conducting such sale by public outcry shall, prior to offering the goods for sale, announce in a loud, clear voice, the identifying inventory number of each article and shall again, immediately after it is sold, announce its identifying number, and state the amount for which the item was sold.
(Code 1956, § 8-39)

Sec. 30-265. Copy of inventory available for inspection.

The copy of the inventory on which the sale prices are noted shall be immediately available at all times during the period that the sale by public outcry is authorized for inspection by the agents of the city for the purpose of accounting for the sales tax and for the purpose of seeing that this article is being complied with.
(Code 1956, § 8-40)

Sec. 30-266. Capping, etc., prohibited.

No person shall:

(1) Act at any sale by public outcry provided for in this article as a purchaser or what is commonly known as a "capper," "booster," or "shill";

(2) Place or offer to place any false offer; or

(3) Offer to buy or pretend to buy any article sold or offered for sale by public outcry.

(Code 1956, § 8-41)

Sec. 30-267. Sale price noted on copy of inventory.

Sufficient space shall be left on the right-hand side of the margin of the inventory required in this division in which to write the price at which the article is sold. One copy of the inventory shall be appropriately identified by the licensing authority and returned to the applicant, if the application is granted. The person conducting the sale by public outcry or his agent shall use the copy of the inventory returned with the license to indicate immediately after each article is sold, the price at which the article was sold.
(Code 1956, § 8-42)

Secs. 30-268—30-290. Reserved.

ARTICLE V. BAKERIES*

DIVISION 1. GENERALLY

Sec. 30-291. Inspections; order to comply.

The director of the department of health and the inspectors and employees of the department of health may at all times enter, inspect and make such record of the condition of any bakery as they may deem necessary and if such inspection shall disclose a lack of conformity with this article, the department of health shall require such changes, alterations and renovations as it may deem necessary to ensure compliance with this article within a reasonable time.
(Code 1956, § 9-16)

Sec. 30-292. Physical condition of bakery; facilities.

Every place used as a bakery shall be kept in a thoroughly clean and sanitary condition as to its floors, sidewalls, ceilings, woodwork, fixtures, furniture, tools, machinery and utensils. All rooms used for that purpose shall be provided with adequate ventilation by means of windows, air shafts or air ducts and other mechanical apparatus, if required, so as to ensure a free circulation of fresh air at all times. All openings on the side of the bakery nearest to or facing any stable shall be kept screened at all times with fixed or self-closing wire screens having not less than 14 meshes to the inch. The sidewalls and ceilings shall be well plastered or sheathed with metal or wood sheathing or tiled. All plastered or brick walls and plastered ceilings shall be kept well lime washed or calcimined or shall be coated with oil

*Cross references—Food service establishments, § 30-651 et seq.; markets, § 30-881 et seq.; sale of food or beverages in certain areas, § 54-492; food regulations, § 82-36 et seq.; peddlers, solicitors and itinerant vendors of food, § 110-186 et seq.

State law reference—Sunday closing of bakeries, authorized, R.S. 33:4783.

paint and all interior woodwork in every such room shall be well oiled or painted with oil paint and washed clean. Every bakery shall be provided with adequate plumbing and drainage facilities, including suitable wash sinks and water closets. No water closet shall be entered from or shall be in direct communication with a bakery.
(Code 1956, § 9-8)

Sec. 30-293. Minimum height of rooms; adequate light and ventilation.

No bakery shall be established in any room in which the clear height between the finished floor and the finished ceiling is less than eight feet and six inches or in any location which is not in such communication with the outer air as to allow adequate lighting and ventilation.
(Code 1956, § 9-9)

Sec. 30-294. Responsibility of partners, etc.

When an association of individuals is charged with a violation of any provision of this article, each individual of such association of individuals or, if a foreign association of individuals, the local agent or person locally in charge thereof shall be deemed to represent such association of individuals for the purpose of enforcing this article, and shall be held responsible and punishable for each violation thereof. When a firm is charged with such violation each member thereof and, if a foreign firm, the local agent or person locally in charge of the firm shall be deemed to represent such firm for the purpose of enforcing this article, and shall be held responsible and punishable for each violation thereof. When a corporation shall be charged with such violation the president or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation, or, if a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 9-22)

Secs. 30-295—30-320. Reserved.

DIVISION 2. PERMIT*

Sec. 30-321. Requirement.

No person shall establish, maintain or operate any bakery without having first obtained a permit to do so, from the department of health. No permit shall be required for the purpose of conducting a private bakery in the kitchen of a dwelling where the baking is done in an ordinary kitchen range or stove for the use of the inmates of such dwelling.
(Code 1956, § 9-1)

Sec. 30-322. Forms; rules and regulations.

The department of health shall prepare such form of permit and application for a permit and rules and regulations for the enforcement of this article as it may deem necessary.
(Code 1956, § 9-2)

Sec. 30-323. Application.

Any person desiring to establish, maintain or operate a bakery, subject to the provisions of this article, shall make application for such permit, in writing, at the office of the department of health on a blank furnished by such office. Such application shall set forth the name and residence of the applicant if an individual and the names and residences of all of members if any firm or the president, vice-president and secretary if a corporation, together with the location of the place for which such permit is desired. Such application shall also state the maximum number of persons to be employed in such bakery, the number of rooms or apartments therein and any other facts concerning the proposed bakery which the department of health may require to have stated in such application.
(Code 1956, § 9-3)

Sec. 30-324. Investigation and issuance.

Within a reasonable time after the receipt of an application to establish, maintain or operate a bakery the department of health shall make or cause to be made an inspection of the place described in such application for the purpose of ascertaining whether the location of such proposed

*State law reference—Permitting, R.S. 40:612 et seq.

bakery, the construction, ventilation and lighting thereof, the amount of space therein and the sanitary arrangements are sufficient and that the public health and the health of the persons to be employed in such proposed bakery will not be endangered. If the department of health shall be satisfied of the reliability of the applicant and that the proposed bakery will be kept and maintained in accordance with the provisions of this article, then the department may issue or cause to be issued to the applicant a permit authorizing the applicant to keep, conduct or maintain a bakery at the place described in the application for and during the period of the permit. No permit shall be issued unless the application for such permit shall be approved by the department of health.
(Code 1956, § 9-4)

Sec. 30-325. Duration, no fee.

Every person establishing, maintaining or operating any bakery shall annually make application for a permit for each bakery so maintained or operated. Permits shall be issued for one year. A permit may be issued for an unexpired part of a municipal year upon compliance with all requirements hereinafter mentioned. No charge shall be made for such permit.
(Code 1956, § 9-5)

Sec. 30-326. Display.

Every permit granted under the provisions of this article shall be posted in a conspicuous place in the bakery for which the permit is issued.
(Code 1956, § 9-6)

Sec. 30-327. Revocation.

If at any time after the granting of a permit as required by this article the department of health shall decide that the public health or the health of the persons employed in any bakery is endangered by the maintenance of such bakery, the department shall revoke the permit thereof.
(Code 1956, § 9-7)

Secs. 30-328—30-350. Reserved.

DIVISION 3. BREAD

Sec. 30-351. Cleanliness; conduct of employees; communicable diseases.

(a) Bakers and all persons working in any bakery shall maintain strict cleanliness in their hands and persons while engaged in any process of manufacturing, handling or selling bakery products.

(b) Cuspidors of impervious material and kept in clean condition shall be provided and maintained by the person in charge of every bakery. No person shall spit on the floor or sidewalls of the bakery or of any place where the food products of such bakery are stored. The smoking, chewing or snuffing of tobacco is forbidden in a bakery. Plain notices shall be posted in every such place forbidding all persons from using tobacco or spitting on the floor.

(c) No person affected with any communicable disease of any of the reportable diseases provided for in section 82-81 et seq. and resolutions of the department of health shall work in a bakery and no owner or person in charge of a bakery shall require, permit or suffer any such person to be employed therein.
(Code 1956, § 9-11)

Sec. 30-352. Storage of flour or meal.

No person shall store flour or meal for the use of any bakery or for the manufacture of food products except in dry and well ventilated rooms. Every bakery and room used for the storage of material and food products shall be so arranged that the shelves, cupboards, trays, troughs, bins, cases and all other appliances for handling, and storing flour or meal may be easily removed and perfectly cleansed and no such materials or products shall be stored in rooms having floors below the street level at a distance less than one foot above the floor of the room.
(Code 1956, § 9-12)

Sec. 30-353. Unwholesome substances not to be mixed in bread.

No baker or other person carrying on the business of a baker or engaged in making and baking

bread shall mix or use, or permit to be mixed or used, in the manufacture of bread any alum, vitriol or other unwholesome deleterious substance.
(Code 1956, § 9-17)

Sec. 30-354. Wrapping; loaves may be delivered in bags.

All bakers and other manufacturers of bread shall wrap all bread baked by them and intended for sale in paraffin, greaseproof, glassine, southern kraft or sulphite paper, each loaf or combination loaf to be wrapped separately in paraffin, greaseproof, glassine, southern kraft or sulphite paper and in such a manner as to protect the bread from flies and dust. Each loaf shall be so wrapped in paraffin, greaseproof, glassine, southern kraft or sulphite paper within three hours after it shall have been taken from the oven in which it is baked. French loaves of bread may be delivered to restaurants only in paper bags containing not less than 50 loaves each if such paper bags are made of the paper provided for in this section and such paper is of not less than 60 pound basis and if such bags shall be so sealed before leaving the bakery as to render the contents inaccessible to dust or flies and shall be kept so sealed until delivered to the restaurants.
(Code 1956, § 9-18)

Sec. 30-355. Characteristics of paper used.

(a) Any sulphite paper used as provided in this article shall be of not less than 75 percent sulphite and shall be heavily machine glazed on one side.

(b) Any southern kraft paper used as provided in this section shall be not less than 100 percent sulphite.

(c) No paper of a basis less than 20 pounds shall be used for bread wrapping purposes.
(Code 1956, § 9-19)

Sec. 30-356. Determination of weight basis of paper.

The weight basis of 20 and 60 pounds provided for paper shall be determined by the weight of a ream of 480 sheets of such paper, each sheet to measure 24 inches by 36 inches.
(Code 1956, § 9-20)

Sec. 30-357. Inspection of bread.

The officers, inspectors, agents and employees of the department of health shall enter any place or premises where such bread is made, stored, kept, sold or exposed for sale and inspect the bread and bread receptacles on any wagon or premises where such bread is made, stored, kept, sold or exposed for sale and inspect the bread and bread receptacles on any wagon or other vehicle delivering them, or any other place where bread usually is or may be kept and wherever it may be found.
(Code 1956, § 9-21)

Sec. 30-358. Sanitary maintenance.

All bakeries shall be kept in a clean condition and free from rats, mice, roaches and vermin and from matter of an infectious or contagious nature and any bakery which shall not be so kept, is hereby declared to be a public nuisance and the department of health shall cause it to be abated.
(Code 1956, § 9-10)

Sec. 30-359. Stables not to be under same roof as bakery, etc.

No bakery shall be permitted to operate in which stables for housing horses or mules shall be maintained under the same roof. Stables for housing horses on the premises of a bakery must have an opening from them at least ten feet from the door of the bakery. No person operating or working in a bakery shall use for lavatory purposes or to feed or water animals any of the buckets, pails, tubs, troughs or other receptacles used in the bakery for baking purposes. But it shall be mandatory on the owner of each bakery to maintain a lavatory for use of employees of such bakery.
(Code 1956, § 9-13)

Sec. 30-360. Sleeping in bakery not permitted.

No person shall sleep in a bakery, and sleeping places of the persons employed in a bakery shall be separate from the rooms where flour or meal or

food products are handled or stored. If the sleeping places are on the same floor as the bakery the department of health shall require them to be maintained in a thoroughly sanitary condition.
(Code 1956, § 9-14)

Sec. 30-361. No domestic animals permitted in bakery.

No domestic animals, except cats, shall be permitted in a bakery or place where flour or meal is stored in connection with a bakery and suitable provision shall be made to prevent nuisance from the presence of cats.
(Code 1956, § 9-15)

Secs. 30-362—30-400. Reserved.

ARTICLE VI. ENDLESS CHAINS*

Sec. 30-401. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Endless chain means and includes any plan or scheme wherein any person sells, transfers, assigns or issues to any person any right, property, ticket, coupon, certificate, contract or other token and wherein:

(1) The purchaser, transferee or assignee thereof or the person to whom such token is issued undertakes or is permitted to undertake for himself or as the agent, representative or attorney of such person to sell, transfer, assign or issue to another any right, property, ticket, coupon, certificate, contract or other token which may under certain conditions entitle the purchaser or recipient thereof to any right, property, ticket, coupon, certificate, contract or other token; and,

(2) The purchaser, transferee or assignee thereof from the original purchaser, assignee or transferee, or from a subsequent purchaser, assignee or transferee, is also given as a consideration for their entry into or participation in such plan or scheme and their purchase or receipt of such right, property, ticket, coupon, certificate, contract or other token the right, privilege or obligation of making further sales, assignments or transfers of any right, property, ticket, coupon, certificate, contract or other token.

(Code 1956, § 22-1)

Cross reference—Definitions generally, § 1-2.
State law reference—Definitions, R.S. 51:361.

Sec. 30-402. Permit required.

It shall be unlawful for any person to operate, conduct or carry on, to cause to be operated, conducted or carried on or to assist or participate in the operation, conducting or carrying on in the city of any system of merchandising by means of an endless chain or to solicit or canvass in connection therewith unless such person shall have in his possession at all times while engaged therein a valid, unsuspended and unrevoked permit so to do from the council.
(Code 1956, § 22-2)

State law reference—Similar provisions, R.S. 51:362.

Sec. 30-403. Application for operation permit.

Before any permit provided for in section 30-402 may be issued, such person shall file with the council a statement in writing, duly verified or sworn to by such person, setting forth the name and address of such person, or the names and addresses of all of the members of such firm or of all of the officers of such corporation, if such person be a firm or corporation, together with a statement of the financial condition of such person, setting forth his assets and liabilities, and also a full and complete statement of the plan of operation of such endless chain and with such statement a copy of each written, typewritten, printed or other matter proposed by the applicant for such permit to be used in connection with such endless chain.
(Code 1956, § 22-3)

State law reference—Similar provisions, R.S. 51:363.

Sec. 30-404. Agent's permit.

It shall be unlawful for any person to sell or offer for sale or to solicit or canvass in connection

*State law reference—Endless chains, R.S. 51:361 et seq.

with any endless chain, either for himself or as agent, representative or attorney of any other person operating, conducting or carrying on any endless chain without having applied to and obtained from the council a permit in writing to do so and without having furnished to the council an application in writing, duly verified or sworn to, stating such person's name and address and such further information as the council may require.
(Code 1956, § 22-4)

State law reference—Agent's permit, R.S. 51:364 et seq.

Sec. 30-405. Investigation; refusal.

No permit shall be issued under this article until the council shall have investigated fully the plan of operation of any such endless chain, the financial condition and the reputation of the operators thereof, the reputation for integrity of each applicant for a permit to sell, solicit or canvass in connection therewith and such other matters as may be deemed advisable. If, in the opinion of the council the plan or scheme is unstable and not based upon sound business principles and assets or if, in the opinion of the council such plan or scheme is calculated to or may mislead the public, the council shall refuse to issue such permit.
(Code 1956, § 22-5)

State law reference—Similar provisions, R.S. 51:366.

Sec. 30-406. Approval of written matter used in plan.

It shall be unlawful for any person to use in any manner in connection with any endless chain any written, typewritten, printed or other matter, a copy of which has not been submitted to and approved by the council.
(Code 1956, § 22-6)

State law reference—Similar provisions, R.S. 51:367.

Sec. 30-407. Revocation or suspension of permit.

The council shall suspend or revoke any permit granted under the provisions of this article upon its own motion or upon complaint being made to the council that any endless chain is not being fairly or honestly conducted or that methods are being used in connection therewith which are dishonest or unfair or which are calculated to or may mislead the public.
(Code 1956, § 22-7)

State law reference—Similar provisions, R.S. 51:368.

Sec. 30-408. Hearing prior to revocation of permit.

No permit required by this article shall be revoked without a hearing thereon by the council after at least five days' notice in writing served either personally upon the holder of such permit, by posting it in his place of business or by sending it by registered mail, postage paid, to the last-known address of the holder of such permit. Such notice shall specify the charges against such holder and the grounds for revocation of such permit pending before the council. At the hearing of such charges before the council, the holder of such permit may be present and be heard in person and by counsel.
(Code 1956, § 22-8)

Secs. 30-409—30-440. Reserved.

ARTICLE VII. ESCORT SERVICES

DIVISION 1. GENERALLY

Sec. 30-441. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Customer means any person 17 years or older who receives any of the services listed in the definition of an escort service under such circumstances that he will pay money or give any consideration therefor.

Escort includes any person who, for a fee, commission, hire, reward or profit, accompanies other persons to or about social affairs, entertainments or places of amusement or consorts with others about any place of public resort or within any private quarters.

Escort service includes any person who, for a fee, commission, hire, reward or profit, furnishes or offers to furnish names of persons or who in-

troduces, furnishes or arranges for persons who may accompany other persons to or about social affairs, entertainment or places of amusement or whose primary purpose is to consort with others about any place of public resort or within any private quarters.

Escort service establishment means the location where the business telephones of the escort service are actually answered.

Telephone operator includes any person who, for a fee, commission, hire, reward or profit, engages in the answering of the business telephone of an escort service.
(Code 1956, § 22A-1)

Cross reference—Definitions generally, § 1-2.

Sec. 30-442. Advertising.

No person shall distribute, publish or otherwise communicate in the parish any advertisement or notice of availability of an escort service required to be licensed under this article unless the said service does, in fact, possess a valid license.
(Code 1956, § 22A-11)

Sec. 30-443. Penalty.

Violation by any person of any of the provisions of this article is hereby declared to be a misdemeanor.
(Code 1956, § 22A-8)

Secs. 30-444—30-470. Reserved.

DIVISION 2. LICENSES AND PERMITS

Subdivision I. General Provisions

Sec. 30-471. Expiration.

All licenses or permits issued pursuant to the provisions of this article shall expire on December 31 of each calendar year. All practicing escort service owners, telephone operators and escorts on the effective date of the ordinance from which this article was derived shall immediately be subject to all of the provisions of this article except sections 30-501 through 30-505, and 30-531 through 30-560, all of which need not be complied with before November 1, 1988.
(Code 1956, § 22A-10)

Secs. 30-472—30-500. Reserved.

Subdivision II. Escort Services License

Sec. 30-501. Required.

No person shall carry on the business of operating an escort service at any place within the city, nor shall any escort service located outside the city send escorts on appointments at any place within the city unless he has a valid license issued pursuant to the provisions of this article for each and every such business establishment premises.
(Code 1956, § 22A-3)

Sec. 30-502. Application, contents.

(a) Any person desiring an escort service license shall file a written application with the director of the department of finance on a form to be provided by the director of the department of finance.

(b) If the applicant is a corporation, the name of the corporation shall be set forth exactly as set forth in its articles of incorporation, together with names and addresses of each of its officers, directors and each stockholder of the corporation; and the application shall be verified by an officer of the corporation. If the applicant is a partnership, the application shall set forth the name and residence address of each of the partners, including limited partners; and the application shall be verified by each partner. If one or more of the partners is a corporation, the provisions of this section pertaining to a corporate applicant shall apply. If the applicant is neither a corporation nor a partnership, the application shall set forth the full name and address of the applicant and be verified by the applicant.

(c) The applicant for an escort service license shall set forth the proposed place of business and the facilities therefor, together with a detailed description of the nature and scope of the proposed business operation. In addition to the foregoing, the following information shall be furnished concerning the applicant if an individual; concerning each individual stockholder of the corporation, each officer and director if the applicant is a cor-

poration; and concerning the partners, including limited partners, if the applicant is a partnership;

(1) The previous addresses, if any, for a period of three years immediately prior to the date of application and the dates of such residence.

(2) The date of birth.

(3) Three passport-size photographs, one inch by one inch, taken within six months of the date of application.

(4) A complete set of fingerprints.

(5) The business, occupation or employment history for three years immediately preceding the date of application, including but not limited to, whether such person previously operating under a permit or license in another jurisdiction in this or another state had such license suspended or revoked.

(6) All criminal arrests and convictions, including ordinance violations exclusive of traffic and parking violations, with a brief statement of the nature of the arrests and convictions and the jurisdiction in which the arrests and convictions occurred.

(7) A physical description to include height, weight, sex, color of eyes, color of hair, birthmarks and scars.

(Code 1956, § 22A-3(1)(b))

Sec. 30-503. Application fee.

Any person desiring to obtain a license to operate an escort service shall make application to the director of the department of finance. A fee of $500.00 made payable to the city shall accompany the submission of the application to defray the costs of administration and investigation before and after issuance of the license. If the applicant is not granted a license under the provisions of this article, $250.00 of the application fee shall be returned to the applicant.

(Code 1956, § 22A-3(1)(a))

Sec. 30-504. Investigation.

Application for a license or permit under this article shall be referred to the superintendent of police, within 72 hours of the application being filed, who shall cause an investigation to be made and shall report the findings to the director of the department of finance within 30 days of the application being filed. Applicants shall cooperate with any investigation conducted pursuant to the provisions of this article and shall permit access to the proposed place of business and facilities therefor in conjunction with any such investigation.

(Code 1956, § 22A-3(2))

Sec. 30-505. Grant.

Within 60 days of the receipt of an application, the director of the department of finance shall either grant or deny an escort service license. The department of police shall be notified within 48 hours of the denial or acceptance of the application by the department of finance. The director of the department of finance shall grant an escort service license only if he finds that:

(1) The required fee has been paid.

(2) The application conforms in all respect to the provisions of this article.

(3) The applicant has not knowingly made a material misstatement in the application for a license.

(4) The applicant has fully cooperated in the investigation of his application.

(5) The escort service as proposed by the applicant would comply with all applicable laws, including, but not limited to the city's building, zoning and health regulations.

(6) The applicant, if an individual, or any of the officers or directors, if the applicant is a corporation, or any of the partners, including limited partners, if the applicant is a partnership, has not been convicted of or has currently pending against that person any violation of any law of any jurisdiction which would be a felony under the laws of the state or any violation of any law of any jurisdiction pertaining or relating to the unlawful practice of massage, prostitution, pandering, pimping, lewd conduct, sexual

misconduct, inciting prostitution or promoting prostitution within five years of the date of the application.

(7) The applicant has not had an escort service license, an escort permit or a telephone operator permit or other similar license or permit denied or revoked for cause by this city or any other jurisdiction located in or out of this state within the two years prior to the date of application.

(8) The applicant, if an individual, or all of the officers and directors, if the applicant is a corporation, or all of the partners, including limited partners, if the applicant is a partnership, are at least 17 years of age.

(9) The applicant, if a corporation, is licensed to do business and in good standing in the state.

(10) The escort service proposed by the applicant would comply with the requirements of this article.

(Code 1956, § 22A-3(3))

Sec. 30-506. Sale or transfer.

Upon the sale or transfer of any interest in an escort service, the license therefor shall be null and void. Any person desiring to continue to operate such escort service following sale or transfer shall make application therefor pursuant to sections 30-501 through 30-505.
(Code 1956, § 22A-9)

Secs. 30-507—30-530. Reserved.

Subdivision III. Escort Permit

Sec. 30-531. Required.

No person shall act as an escort without a valid permit issued pursuant to the provisions of this article.
(Code 1956, § 22A-4)

Sec. 30-532. Application.

Any person desiring an escort permit shall file a written application with the director of the department of finance on a form to be provided by the director of the department of finance. The application shall be verified by the applicant. Any applicant for an escort permit shall furnish all the information required by section 30-502. In addition, the applicant shall furnish the following:

(1) Certificate from a medical doctor licensed to practice in the state, stating that the applicant has been examined and found to be free of any contagious or communicable diseases.

(2) The name of escort service, if any, with which the applicant expects to be employed.

(Code 1956, § 22A-4(1)(b))

Sec. 30-533. Application fee.

Any person desiring to obtain a permit to act as an escort shall make application to the director of the department of finance for an escort permit. A fee of $250.00 made payable to the city shall accompany the submission of an application to defray the costs of investigation and administration before and after the issuance of a permit.
(Code 1956, § 22A-4(1)(a))

Sec. 30-534. Investigation.

Application for permits under this subdivision shall be referred to the superintendent of police who shall cause an investigation to be made of the applicant and report the findings to the director of the department of finance within 30 days of the application being filed.
(Code 1956, § 22A-4(2))

Sec. 30-535. Grant.

Within 60 days of receipt of the application, the director of the department of finance shall grant or deny an escort permit. An escort permit can be granted only if he finds that:

(1) The required fee has been paid.

(2) The application conforms in all respects to the provisions of this article.

(3) The applicant has not knowingly made a material misstatement in the application for a permit.

(4) The applicant has fully cooperated in the investigation of his application.

(5) The applicant, if an individual, or any of the officers or directors, if the applicant is a corporation, or any of the partners, including limited partners, if the applicant is a partnership, has not been convicted of or has currently pending against that person any violation of any law of any jurisdiction which would be a felony under the laws of the state, or any violation of any law of any jurisdiction pertaining or relating to the unlawful practice of massage, prostitution, pandering, pimping, lewd conduct, sexual misconduct, inciting prostitution or promoting prostitution within five years of the date of the application.

(6) The applicant has furnished an acceptable medical certificate in compliance with the rules and regulations of the city department of health.

(7) The applicant has not previously had an escort permit, telephone operator permit, escort service license or other similar permit or license denied or revoked for cause by this city or by any other jurisdiction in this or any other state within two years of the date of application.

(8) The applicant is at least 17 years of age.
(Code 1956, § 22A-4(3))

Secs. 30-536—30-555. Reserved.

Subdivision IV. Telephone Operator Permit

Sec. 30-556. Required.

No person shall answer the business telephone of an escort service without a valid permit issued pursuant to the provisions of this article.
(Code 1956, § 22A-5)

Sec. 30-557. Application.

Any person desiring a telephone operator permit shall file a written application with the director of the department of finance. The application shall be verified by the applicant. Any applicant for a telephone operator permit shall furnish all the information required by section 30-502. In addition, the applicant shall furnish the name of the escort service, if any, at which the applicant expects to be employed.
(Code 1956, § 22A-5(1)(b))

Sec. 30-558. Application fee.

Any person desiring to obtain a permit to act as a telephone operator for an escort service shall make application to the director of the department of finance for a telephone operator permit. A fee of $250.00 made payable to the director of the department of finance shall accompany the submission of the application to defray the costs of investigation and administration before and after the issuance of a permit.
(Code 1956, § 22A-5(1)(a))

Sec. 30-559. Investigation.

Applications for permits under this subdivision shall be referred to the superintendent of police who shall cause an investigation to be made of the applicant and report the findings to the director of the department of finance within 30 days of the application being filed.
(Code 1956, § 22A-5(2))

Sec. 30-560. Grant.

Within 60 days of receipt of the application, the director of the department of finance shall grant or deny it. The director shall grant a telephone operator permit only if he finds that:

(1) The required fee has been paid.

(2) The applicant has not knowingly made a material misstatement in the application for a permit.

(3) The applicant has fully cooperated in the investigation of his application.

(4) The applicant has not been convicted of or has currently pending against that person any violation of the law of any state of the United States which would be a felony under the law of the state or any violation of any law of any jurisdiction for the unlawful practice of massage, prostitution, pandering, pimping, promoting prostitution,

inciting prostitution, lewd conduct or sexual misconduct within five years of the application.

(5) The applicant has not previously had a telephone operator permit, escort permit or escort service license denied or revoked for cause by this city or by any other jurisdiction in this or any other state within two years of the date of application.

(6) The applicant is at least 17 years of age.
(Code 1956, § 22A-5(3))

Secs. 30-561—30-585. Reserved.

DIVISION 3. LICENSE OR PERMIT REVOCATION

Sec. 30-586. Authorized, procedure.

No license or permit may be revoked until after due notice and hearing before the director of the department of finance or his duly authorized representative to determine if grounds for revocation exist. Notice of such hearing shall be in writing and served at least ten days prior to the date of hearing by registered mail or personal service or, in the case of the escort establishment, by posting on the interior of the escort establishment. The notice shall state the grounds of the complaint against the permittee or licensee and shall designate the time and place where the hearing will be held. The licensee or permittee shall have the right to appear at such hearing and to produce evidence. After holding the hearing, the director of the department of finance shall suspend or permanently revoke the license or permit if it has been charged and proved that the licensee or permittee has been guilty of violating one or more of the grounds for revocation specified in section 30-587 or that the circumstances exist that would warrant the denial of issuance of such license or permit in the first place.
(Code 1956, § 22A-6)

Sec. 30-587. Grounds.

The following acts or omissions are declared to be in violation of this article and, when committed by an escort service, escort or telephone operator employed by the escort service, constitute grounds for suspension or revocation of a license or permit issued under this subdivision to the escort service which employs the violator or to the violator:

(1) The committing or solicitation to commit any lewd acts, sexual misconduct, sexual perversion or unlawful homosexual acts engaged in by escorts, including but not limited to the following: Exposing, touching, caressing or fondling of genitals, anus, vulva, pubic hair or nipples of female breasts; masturbation; oral copulation, cunnilingus or fellatio; sodomy; bestiality; sadomasochistic abuse; flagellation or torture in the context of sexual relationship; any unnatural carnal copulation by a human being with another of the same or opposite sex.

(2) Prostitution, pandering or solicitation to perform a natural or unnatural sex act by escorts.

(3) Making false statements in writing on the application for a license issued under this article.

(4) Allowing persons below the age of 17 years to be on the premises of an escort service establishment or to be employed by an escort service.

(5) Any act of disturbance of the peace at the escort service premises or at the location of any escort appointment. For purposes of this section, disturbing the peace is defined as the performance of any of the following acts:

a. To communicate to another person a threat, either verbally, in writing or through any other form of communication, to kill or murder him or to do him great bodily harm or threatening to kill, murder or do great bodily harm to members of his family or to any other person to whom the threat is communicated.

b. To address any words to any person who is lawfully in a public place where such words, which, by their very utterance, inflict injury and have a direct tendency to cause acts of violence by the

person to whom individually the remark is addressed.

c. To address language to any person that makes reference to the person addressed as having sexual intercourse with himself or with another where such language inflicts injury, insults or causes acts of violence by the person to whom the language is addressed or is intended to inflict injury, insult or cause acts of violence.

(6) Violation of any of the provisions of this article.

(7) The presence of a person at the escort service establishment premises who engages in escort appointments and does not have a valid escort permit.

(8) The presence of a person on the escort service premises who answers the business telephone of the escort service and does not have a valid telephone operator permit.

(9) The negotiation of any escort service appointment by a telephone operator with a customer that alludes to, suggests or in any way discusses services described in subsection (1) or (2) of this section.

(10) The sending of an escort who does not possess a valid permit on an escort appointment.

(11) Failure to obtain a valid occupational license.

(Code 1956, § 22A-7)

Secs. 30-588—30-610. Reserved.

DIVISION 4. OPERATING REQUIREMENTS

Sec. 30-611. Maintenance of license on premises.

Escort services shall maintain their licenses at the location at which their business telephones are answered.
(Code 1956, § 22A-2(1))

Sec. 30-612. Possession of permits.

Escorts and telephone operators shall maintain their permits on their person at all times while employed.
(Code 1956, § 22A-2(2))

Sec. 30-613. Records.

Escort services shall keep a written record of the date and hour of each escort appointment, the name and address of the customer and the location of the escort appointment. Such record shall be open to inspection by officials charged with the enforcement of this article, including representatives of the departments of finance and police.
(Code 1956, § 22A-2(3))

Sec. 30-614. Prohibited acts.

Escorts shall not engage in any acts of sexual intercourse for compensation, nor shall escorts engage in any activities which would be in violation of any laws of the city or state.
(Code 1956, § 22A-2(4))

Sec. 30-615. Right of entry on premises.

The police department shall have the right of entry on the premises of any escort service located within the parish during the hours such establishment is operating. The escort service establishment premises shall be construed to be the location at which the business telephones of such service are being answered.
(Code 1956, § 22A-2(5))

Sec. 30-616. Work performed on premises.

(a) The owner or telephone operator shall be at the premises of the escort service establishment at all times during working hours.

(b) The business telephone of the escort service shall only be answered at the location listed on the escort service license.
(Code 1956, § 22A-2(6), (7))

Sec. 30-617. Minimum age of employees.

The owner shall not employ any escort or telephone operator who is under the age of 17 years.
(Code 1956, § 22A-2(8))

Sec. 30-618. List of employees.

The owner shall maintain at all times at the escort service establishment premises a list of all employees, including current home addresses and telephone numbers.
(Code 1956, § 22A-2(9))

Secs. 30-619—30-650. Reserved.

ARTICLE VIII. FOOD SERVICE ESTABLISHMENTS*

DIVISION 1. GENERALLY

Sec. 30-651. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adulterated means the condition of a food if it:

(1) Bears or contains any poisonous or deleterious substance in a quantity which may render it injurious to health;

(2) Bears or contains any added poisonous or deleterious substance for which no safe tolerance has been established by regulation, or in excess of such tolerance if one has been established;

(3) Consists in whole or in part any filthy, putrid, or decomposed substance, or if it is otherwise unfit for human consumption;

(4) Has been processed, prepared, packed, or held under unsanitary conditions, whereby it may have become contaminated with filth, or whereby it may have been rendered injurious to health;

(5) Is in whole or in part the product of a diseased animal, or an animal which has died otherwise than by slaughter; or

(6) The container is composed in whole or in part of any poisonous or deleterious substance which may render the contents injurious to health.

Approved means acceptable to the health authority based on his determination as to conformance with appropriate standards and good public health practice.

Closed means fitted together snugly leaving no openings large enough to permit the entrance of insects and/or rodents.

Corrosion resistant material means a material which maintains its original surface characteristics under prolonged influence of the food, cleaning compounds and sanitizing solutions which may contact it.

Easily cleanable means readily accessible and of such material and finish, and so fabricated that residue may be completely removed by normal cleaning methods.

Employee means any person working in a food service establishment who transports food or food containers, who engages in food preparation or service, or who comes in contact with any food utensils or equipment.

Equipment means all stoves, ranges, hoods, meat blocks, tables, counters, refrigerators, sinks, dishwashing machines, steamtables, and similar items, other than utensils, used in the operation of a food service establishment.

Food means any raw, cooked, or processed edible substance, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption.

Food contact surfaces means those surfaces of equipment and utensils with which food normally comes in contact, and those surfaces with which food may come in contact and drain back onto surfaces normally in contact with food.

Food service establishment means any fixed or mobile restaurant; coffee shop; cafeteria; short order cafe; luncheonette; grill; tearoom; sandwich

*__Cross references__—Bakeries, § 30-291 et seq.; sale of food or beverages in certain areas, § 54-492; health and sanitation regulations regarding food, § 82-36 et seq.; discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.; sidewalk cafes, § 146-531 et seq.

shop; soda fountain; tavern; bar; cocktail lounge; night club; roadside stand; industrial feeding establishment; private, public, or nonprofit organization or institution routinely serving food; catering kitchen; commissary or similar place in which food or drink is prepared for sale or for service on the premises or elsewhere; any other eating or drinking establishment or operation where food is served or provided to the public with or without charge; and any other establishment as permitted to sell prepared food for public consumption under the Comprehensive Zoning Ordinance of the City of New Orleans.

Health authority means the director of health or his designated representative.

Kitchenware means all multiuse utensils other than tableware used in the storage, preparation, conveying, or serving of food.

Misbranded means the presence of any written, printed, or graphic matter; upon or accompanying food or containers of food, which is false or misleading, or which violates any applicable state or local labeling requirements.

Perishable food means any food of such type or in such condition as may spoil.

Potentially hazardous food means any perishable food which consists in whole or in part of milk, milk products, eggs, meat, poultry, fish, shellfish, or other ingredients capable of supporting rapid and progressive growth of infectious or toxigenic microorganisms.

Safe temperatures, as applied to potentially hazardous food, means temperatures of 45 degrees Fahrenheit or below and 145 degrees Fahrenheit or above.

Sanitize means effective bactericidal treatment of clean surfaces of equipment and utensils by a process which has been approved by the health authority as being effective in destroying microorganisms, including pathogens.

Sealed means free of cracks or other openings which permit the entry or passage of moisture.

Single service articles means cups, containers, lids, or closures; plates, knives, forks, spoons, stirrers, paddles; straws, place mats, napkins, doilies, wrapping material; and all similar articles which are constructed wholly or in part from paper, paperboard, molded pulp, foil, wood, plastic, synthetic, or other readily destructible materials, and which are intended by the manufacturers and generally recognized by the public as for one usage only, then to be discarded.

Tableware means all multiuse eating and drinking utensils, including flatware (knives, forks, and spoons).

Temporary food service establishment means any food service establishment which operates at a fixed location or is mobile for a temporary period of time, not to exceed two weeks, in connection with a fair, carnival, circus, public exhibition, or similar transitory gathering.

Utensil means any tableware and kitchenware used in storage, preparation, conveying, or serving of food.

Wholesome means in sound condition, clean, free from adulteration, and otherwise suitable for use as human food.

(Code 1956, § 26-41.1; M.C.S., Ord. No. 29188, § 1, 10-6-22)

Cross reference—Definitions generally, § 1-2.

Sec. 30-652. Enforcement.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it and to that end its officers, members, agents, employees, inspectors and appointees shall have the right to enter any place, car, conveyance or other vehicle in the city for the purpose of inspection for violations thereof.

(Code 1956, § 26-2)

Sec. 30-653. Interpretation.

Should further interpretation of this article be required, the department of health shall make the subject interpretation.

(Code 1956, § 26-41.8(7))

Sec. 30-654. Establishments outside jurisdiction of city.

Food from food service establishments outside the jurisdiction of the department of health may be sold within the city if such food service

establishments conform to the provisions of this article or to substantially equivalent provisions. To determine the extent of compliance with such provisions, the health authority may accept reports from responsible authorities in other parishes or jurisdictions where such food service establishments are located.
(Code 1956, § 26-41.8(4))

Sec. 30-655. Advisory committee.

(a) A food and/or beverage advisory committee shall be formed within six months from the date of the adoption of the ordinance from which this article was derived. This committee shall function as a liaison between the department of health, the food service industry, and consumers. This committee shall annually evaluate the food and drug program and submit an annual report along with any necessary recommendations to the office of the mayor. The composition of this advisory committee shall consist of representatives from each of the following organizational groups:

(1) Louisiana Restaurant Association.

(2) New Orleans Retail Grocers Association.

(3) Greater New Orleans Hotel-Motel Association.

(4) Louisiana Retail Beverage Association.

(5) One member from an active consumer advocate group.

(6) Two members at large.

(b) Appointments to the advisory committee shall be made by the mayor from a minimum of two nominees for each position. Nominations for the trade association positions shall be made by the local trade association. Nominees for the consumer advocate and for at large positions shall be by open nominations submitted in writing to the office of the mayor at least five calendar days prior to the announcement by the mayor. The department of health shall provide a representative to serve as secretary to the advisory committee and such secretary shall report to the advisory committee on activities of the food and drug programs.

(c) Appointments to the food and/or beverage advisory committee shall be for a period of one year. When a committee member resigns, a new committee member shall be appointed within 30 days.
(Code 1956, § 26-41.8(9))

Sec. 30-656. Temporary food service establishments.

A temporary food service establishment shall comply with all provisions of this article which are applicable to its operation; provided, that the health authority may augment such requirements when needed to assure the service of safe food, may prohibit the sale of certain potentially hazardous food and may modify specific requirements for physical facilities when in his opinion no imminent health hazard will result.
(Code 1956, § 26-41.7)

Sec. 30-657. Plan review of future construction.

When a food service establishment is constructed or extensively remodeled, or when an existing structure is converted for use as a food service establishment, properly prepared plans and specifications for such construction, remodeling, or alteration, showing layout, arrangement, and construction materials of work areas, and the location, size, and type of fixed equipment and facilities, shall be submitted to the health authority for approval before such work is begun.
(Code 1956, § 26-41.8(5))

Sec. 30-658. Price lists required.

Every keeper or owner of a restaurant, eating house or other place where wines and dishes of food are sold shall provide his customers in such restaurant or eating house with a plainly written or printed list of the wines and dishes of food he has for sale and the price he charges for each bottle of wine and dish of food.
(Code 1956, § 26-37)

Sec. 30-659. Charging more than list price prohibited.

It shall not be lawful for any keeper, owner or employee of any restaurant or eating house to

charge more than the rates stated in the price list for the wines and dishes of food furnished or sold.
(Code 1956, § 26-38)

Sec. 30-660. Posting copies of law; penalty.

All keepers or owners of restaurants and eating houses to whom sections 30-658 and 30-659 may extend shall have a copy of sections 30-658 and 30-659 conspicuously posted in their restaurants or eating houses.
(Code 1956, § 26-39)

Sec. 30-661. Failure to pay for food or drink obtained.

Any person who shall go into any drugstore, hotel, inn, boardinghouse, restaurant, barroom, saloon, cabaret, night club, fountain or other public eating or drinking house and obtain food, beverages, alcoholic or nonalcoholic, and fail or refuse to pay for such food or beverages, except when credit is given by express agreement, at the prices regularly charged by such public eating or drinking house or place shall be guilty of an offense.
(Code 1956, § 26-36)

State law reference—Fraudulent acts, R.S. 21:21, 21:22.

Sec. 30-662. Responsibility of members, officers, etc.

When an association of individuals is charged with the violation of any provision of this article, each individual of such association or, if a foreign association, the local agent or person locally in charge thereof shall be deemed to represent such association of individuals for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof. When a firm is charged with such violation each member thereof and, if a foreign firm, the local agent or person locally in charge of such firm shall be deemed to represent such firm for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof. When a corporation shall be charged with such violation, the president or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation or, if a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 26-3)

Sec. 30-663. Penalties.

Any person who shall violate any of the provisions of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be punished by a fine of not less than $50.00 nor more than $100.00. In addition thereto, such persons may be enjoined from continuing such violations. Each day upon which such a violation occurs shall constitute a separate violation.
(Code 1956, § 26-41.8(8))

Secs. 30-664—30-690. Reserved.

DIVISION 2. PERMIT

Sec. 30-691. Required; display; temporary establishments.

(a) It shall be unlawful for any person to operate a food service establishment within the city who does not possess a valid permit issued to him by the department of health. Only a person who complies with the requirements of this article shall be entitled to receive and retain such a permit.

(b) Permits shall be posted conspicuously in every food service establishment.

(c) Except as otherwise provided in this code, permits for temporary food service establishments shall be issued for a period of time not to exceed 14 days.
(Code 1956, § 26-41.8(1); M.C.S., Ord. No. 29188, § 1, 10-6-22)

Sec. 30-692. Application.

(a) Any person desiring to operate a food service establishment shall make written application for a permit on forms provided by the department of health. Such application shall include:

(1) The applicant's full name and post office address and whether such applicant is

an individual, firm, or corporation; and, if a partnership, the names of the partners, together with their addresses shall be included;

(2) The locations and type of the proposed food service establishment; and

(3) The signature of the applicant or applicants.

(b) If the application is for a temporary food service establishment, it shall also include the inclusive dates of such an application.
(Code 1956, § 26-41.8(1)(a))

Sec. 30-693. Inspections.

The department of health shall issue the applicant for a permit under this division a copy of the relevant regulations and make an inspection of the proposed food service establishment to determine compliance with the provisions of this article within seven days, except that proposed itinerant operations shall be inspected within two working days.
(Code 1956, § 26-41.8(1)(a))

Sec. 30-694. Issuance.

When inspection reveals that the applicable requirements of this article have been met, a permit required by this division shall be issued to the applicant by the department of health after payment of any established permit fees. If the initial permit is purchased at a time other than the regular licensing period the cost of the permit shall be prorated except that itinerant food operations shall pay the stated permit fee regardless of the date of licensing. When it is necessary to prorate a permit fee, any part of a month shall be considered a whole month to facilitate calculating the permit fee.
(Code 1956, § 26-41.8(1)(a))

Sec. 30-695. Renewals.

Once a permit has been issued under this division, subsequent permits will be issued automatically upon paying of the permit fee; however, such food service establishments are subject to regulatory inspections and such permit is subject to suspension or revocation for cause.
(Code 1956, § 26-41.8(1)(a))

Sec. 30-696. Suspension.

(a) Permits issued under this division may be suspended temporarily by the department of health for failure of the holder to comply with the requirements of this article.

(b) Whenever a permit holder or operator has failed to comply with any notice issued under the provisions of this division, the permit holder or operator shall be notified in writing that the permit is, upon service of the notice, immediately suspended and that an opportunity for a hearing will be provided if a written request for a hearing is filed with the department of health by the permit holder.

(c) Notwithstanding the other provisions of this article, whenever the department of health finds unsanitary or other conditions in the operation of a food service establishment which, in its judgment, constitute a substantial hazard to the public health, it may without warning, notice or hearing, issue a written notice to the permit holder or operator citing such condition, specifying the corrective action to be taken, and specifying the time period within which such action shall be taken; and, if deemed necessary, such order shall state that the permit is immediately suspended, and all food service operations are to be immediately discontinued. Any person to whom such an order is issued shall comply immediately therewith, but upon written petition to the department of health, shall be afforded a hearing as soon as possible.
(Code 1956, § 26-41.8(1)(b))

Sec. 30-697. Reinstatement of suspended permits.

Any person whose permit has been suspended under this division may, at any time, make application for a reinspection for the purpose of reinstatement of the permit. Within seven days following receipt of a written request, including a statement signed by the applicant that in his opinion the conditions causing suspension of the permit have been corrected, the department of health shall make a reinspection. If the applicant is complying with the requirements of this article, the permit shall be reinstated.
(Code 1956, § 26-41.8(1)(c))

Sec. 30-698. Revocation.

For serious or repeated violations of any of the requirements of this article, or for interference with the department of health in the performance of its duties, the permit may be permanently re-

voked after an opportunity for a hearing has been provided by the department of health. Prior to such action, the department shall notify the permit holder in writing, stating the reasons for which the permit is subject to revocation and advising that the permit shall be permanently revoked at the end of five days following service of such notice, unless a request for a hearing is filed with the department of health, by the permit holder, within such five-day period. A permit may be suspended for cause pending its revocation or a hearing relative thereto.
(Code 1956, § 26-41.8(1)(d))

Sec. 30-699. Hearings.

The hearings provided for in this division shall be conducted by the department of health at a time and place designated by it. Based upon the record of such hearing, the department of health shall make a finding and shall sustain, modify, or rescind any official notice or order considered in the hearing. A written report of the hearing decision shall be furnished to the permit holder by the department of health.
(Code 1956, § 26-41.8(1)(e))

Sec. 30-700. Misuse of permits.

(a) No person, individual, or corporation shall copy, reproduce, or counterfeit, or cause to be copied, reproduced or counterfeited, any permit issued pursuant to this division by any form or process, or to otherwise represent something to be a valid permit when it is not.

(b) Whosoever violates the prohibition of this section shall be punished in accordance with the penalty provided for in section 1-13.
(Code 1956, § 26-42)

Secs. 30-701—30-725. Reserved.

DIVISION 3. SANITATION*

Sec. 30-726. Inspection of food service establishments.

At least twice yearly, the department of health shall inspect each food service establishment located in the parish and shall make as many additional inspections and reinspections as are necessary for the enforcement of this article.
(Code 1956, § 26-41.8(2))

Sec. 30-727. Access to establishments.

The department of health, after proper identification, shall be permitted to enter, at any reasonable time, any food service establishment within the parish for the purpose of making inspections to determine compliance with this article. Department personnel shall be permitted to examine the records of the establishment to obtain pertinent information pertaining to food and supplies purchased, received, or used, and persons employed.
(Code 1956, § 26-41.8(2)(a))

Sec. 30-728. Inspection records.

Whenever the department of health makes an inspection of a food service establishment, the inspector shall record his findings on an inspection report form provided for this purpose, and shall furnish the original of such inspection report form to the permit holder or operator.
(Code 1956, § 26-41.8(2)(b))

Sec. 30-729. Issuance of notices.

Whenever the department of health makes an inspection of a food service establishment and discovers that any of the requirements of sections 30-656, 30-732, 30-733, 30-735, 30-737, 30-738, 30-656 have been violated, the director of the department of health shall notify the permit holder or operator of such violations by means of an in-

*Cross reference—Health regulations regarding food, § 82-36 et seq.

spection report form or other written notice. In such notification, the director shall:

(1) Set forth the specific violations found.

(2) Establish a specific and reasonable period of time for the correction of the violations found. In the case of temporary food service establishments, violations must be corrected within a specified period of time not to exceed 24 hours. Failure to comply with such notice shall result in immediate suspension of the permit by the director of the department of health.

(3) Failure to comply with any notice issued in accordance with the provisions of this article may result in immediate suspension of the permit.

(4) An opportunity for appeal from any notice or inspection findings will be provided if a written request for a hearing is filed with the department of health within the period of time established in the notice for correction.

(Code 1956, § 26-41.8(2)(c))

Sec. 30-730. Service of notices.

(a) Notices provided for under this division shall be deemed to have been properly served when the original of the inspection report form or other notice has been delivered personally to the permit holder or person in charge, or such notice has been sent by registered or certified mail, return receipt requested, to the last known address of the permit holder. A copy of such notice shall be filed with the records of the department of health.

(b) The police department shall be notified of and shall enforce revocations and suspensions.

(Code 1956, § 26-41.8(2)(d))

Sec. 30-731. Examination and condemnation of food.

Food may be examined or sampled by the department of health without charge as often as may be necessary to determine freedom from adulteration or misbranding. The department may, upon written notice to the owner or person in charge, place a hold order on any food which it determines or has probable cause to believe to be unwholesome or otherwise adulterated, or misbranded. Under a hold order, food shall be permitted to be suitably stored. It shall be unlawful for any person to remove or alter a hold order, notice or tag placed on food by the department of health, and neither such food nor the containers thereof shall be relabeled, repacked, reprocessed, altered, disposed of, or destroyed without permission of the department. On the basis of his examination the director of the department of health may vacate the hold order, or may by written order direct the owner or person in charge of the food which was placed under the hold order to denature or destroy such food or to bring it into compliance with the provisions of this article.

(Code 1956, § 26-41.8(3))

Sec. 30-732. Food.

(a) *Food supplies.* All food in food service establishments shall be from sources approved or considered satisfactory by the department of health, and shall be clean, wholesome, free from spoilage, free from adulteration and misbranding, and safe for human consumption. No hermetically sealed, nonacid and low acid food which has been processed in a place other than a commercial food processing establishment shall be used.

(b) *Food protection.* All food while being stored, prepared, displayed, served, or sold at food service establishments, or during transportation between such establishments, shall be protected from contamination. All perishable food shall be stored at such temperatures as will protect against spoilage. All potentially hazardous food shall be maintained at safe temperatures (45 degrees Fahrenheit or below, or 145 degrees Fahrenheit or above), except during necessary periods of preparation and service. Raw fruits and vegetables shall be washed before use. Poultry stuffing, stuffed meats and poultry, and pork and pork products shall be thoroughly cooked before being served. Portions of food once served to the customer shall not be served again.

(c) *Poisonous, toxic materials.* Only such poisonous and toxic materials as are required to maintain sanitary conditions and for sanitization purposes may be used or stored in food service

establishments. Poisonous and toxic materials shall be identified, and shall be used only in such manner and under such conditions as will not contaminate food or constitute a hazard to employees or customers.
(Code 1956, § 26-41.2)

Sec. 30-733. Personnel.

(a) *Health and disease control.* Notice shall be sent to the duly authorized representative of the director of the department of health immediately by the manager of the public eating and/or drinking place or by the employee concerned, if he or any employee contracts any infectious, contagious or communicable disease, or has a fever, a skin eruption, a cough lasting more than three weeks, or any other suspicious symptoms of a communicable disease. It shall be the duty of any employee to notify the manager immediately when and if said conditions occur, and if neither the manager nor the employee concerned notifies the duly authorized representative of the director of the department of health immediately when any of such conditions occur, they shall be held jointly and severally to have violated this regulation.

(b) *Cleanliness.* All employees shall wear clean outer garments, maintain a high degree of personal cleanliness, and conform to hygienic practices while on duty. They shall wash their hands thoroughly in an approved hand washing facility before starting work, and as often as may be necessary to remove soil and contamination. No employee shall resume work after visiting the toilet room without first washing his hands. Employees shall wear hair restraints approved by the health authority.
(Code 1956, § 26-41.3)

Sec. 30-734. Procedure when infection is suspected.

When the health authority has reasonable cause to suspect possibility of disease transmission from any food service establishment employee, the department of health shall secure a morbidity history of the suspected employee, or make such other investigation as may be indicated, and take appropriate action. The department of health may require any or all of the following measures:

(1) The immediate exclusion of the employee from all food service establishments;

(2) The immediate closure of the food service establishment concerned until, in the opinion of the department of health, no further danger of disease outbreak exists;

(3) Restriction of the employee's services to some area of the establishment where there would be no danger of transmitting disease; and

(4) Adequate medical and laboratory examinations of the employee, of other employees, and of his and their body discharges.
(Code 1956, § 26-41.8(6))

Sec. 30-735. Food equipment and utensils.

(a) *Sanitary design, construction and installation of equipment and utensils.* All equipment and utensils shall be so designed and of such material and workmanship as to be smooth, easily cleanable and durable, and shall be in good repair; and the food contact surfaces of such equipment and utensils shall, in addition, be easily accessible for cleaning, nontoxic, corrosion resistant and relatively nonabsorbent. When approved by the department of health, exceptions may be made to the above materials requirements. Single service articles shall be made from nontoxic materials.

(b) *Cleanliness of equipment and utensils.* All eating and drinking utensils shall be thoroughly cleaned and sanitized after each usage. Sanitization shall be by a method approved by the department of health.

(1) All kitchenware and food contact surfaces of equipment, exclusive of cooking surfaces of equipment, used in the preparation or serving of food or drink, and all food storage utensils, shall be thoroughly cleaned after each use. Cooking surfaces of equipment shall be cleaned at least once a day. All utensils and food contact surfaces of equipment used in the preparation, service, display, or storage of potentially hazardous food shall be thoroughly cleaned and sani-

tized prior to such use. Nonfood contact surfaces of equipment shall be cleaned at such intervals as to keep them in a clean and sanitary condition.

(2) After cleaning and until use, all food contact surfaces of equipment and utensils shall be so stored and handled as to be protected from contamination.

(3) All single-service articles shall be stored, handled, and dispensed in a sanitary manner, and shall be used only once.

(Code 1956, § 26-41.4)

Sec. 30-736. Inspections, order to discontinue use of utensils and materials.

The department of health is hereby authorized to inspect, through its proper officers, all public places, licensed under state laws or city ordinances, in which foods or liquids are prepared or sold for human consumption, and to inspect and examine the utensils and apparatus used therein, and in case that any practices are ascertained, or utensils or materials are used therein deleterious to human health, to order the discontinuance thereof.

(Code 1956, § 26-40)

Sec. 30-737. Sanitary facilities and controls.

(a) *Water supply.* The water supply shall be adequate, of a safe, sanitary quality and from an approved source. Hot and cold running water under pressure shall be provided in all areas where food is prepared, or equipment, utensils, or containers are washed. Ice used for any purpose shall be made from water which comes from an approved source, and shall be used only if it has been manufactured, stored, transported, and handled in an approved sanitary manner.

(b) *Sewage disposal.* All sewage shall be disposed of in a public sewerage system or, in the absence thereof, in a manner approved by the department of health.

(c) *Plumbing.* Plumbing shall be so sized, installed, and maintained as to carry adequate quantities of water to required locations throughout the establishment; as to prevent contamination of the water supply; as to properly convey sewage and liquid wastes from the establishment to the sewerage or sewerage disposal system; and so that it does not constitute a source of contamination of food, equipment, or utensils, or create an unsanitary condition or nuisance.

(d) *Toilet facilities.* Each food service establishment shall be provided with conveniently located toilet facilities for its employees. These facilities shall consist of a minimum of one commode and one lavatory, properly plumbed, for each 15 employees on the premises at one time. Those establishments employing in excess of 15 persons including both males and females shall provide separate facilities. Toilet fixtures shall be of sanitary design and readily cleanable. Toilet facilities, including rooms and fixtures, shall be kept in a clean condition and in good repair. The doors of all toilet rooms shall be self-closing. Toilet tissue shall be provided. Easily cleanable receptacles shall be provided for waste materials, and such receptacles in toilet rooms for women shall be covered. Where the use of nonwater-carried sewage disposal facilities have been approved by the health authority, such facilities shall be separate from the establishment. When toilet facilities are provided for patrons, such facilities shall meet the requirements of this subsection. Toilet rooms shall be ventilated by positive means to the outside air.

(e) *Hand washing facilities.* Each food service establishment shall be provided with adequate, conveniently located hand washing facilities for its employees, including a lavatory or lavatories equipped with hot and cold running water, a mixing faucet, hand cleansing soap or detergent, and approved sanitary towels or other approved hand drying devices in food preparation areas. Such facilities shall be kept clean and in good repair.

(f) *Garbage and rubbish disposal.* All garbage and rubbish containing food wastes shall, prior to disposal, be kept in leakproof, nonabsorbent containers which shall be kept covered with tightfitting lids when filled or stored, or not in continuous use; provided, that such containers need not be covered in a special insect and rodent proofed room or enclosure, or in a food waste refrigerator. All other rubbish shall be stored in containers, rooms or areas in an approved manner. The rooms,

enclosures, areas and containers used shall be adequate for the storage of all food waste and rubbish accumulating on the premises. Adequate cleaning facilities shall be provided, and each container, room or area shall be thoroughly cleaned after the emptying or removal of garbage and rubbish. Food waste grinders, if used, shall be installed in compliance with state and local standards and shall be of suitable construction. All garbage and rubbish shall be disposed of with sufficient frequency and in such a manner as to prevent a nuisance.

(g) *Insect and rodent control.* Effective measures shall be taken to protect against the entrance into the establishment and the breeding or presence on the premises of insects and rodents. All openings into the outer air shall be effectively screened, unless other accepted effective means of fly control are provided. Doors and screen doors shall be self-closing and open outward.
(Code 1956, § 26-41.5)

Sec. 30-738. Other facilities and operations.

(a) *Floors, walls, and ceilings.* The floor surfaces in kitchens, in all other rooms and areas in which food is stored or prepared and in which utensils are washed, and in walk-in refrigerators, dressing or locker rooms and toilet rooms, shall be of nonabsorbent materials, and so constructed as to be easily cleanable; provided, that the floors of nonrefrigerated, dry food storage areas need not be nonabsorbent. All floors shall be kept clean and in good repair. Floor drains shall be provided in all rooms where floors are subjected to flooding type cleaning or where normal operations release or discharge water or other liquid waste on the floor. All exterior areas where food is served shall be kept clean and properly drained, and surfaces in such areas shall be finished so as to facilitate maintenance and minimize dust.

(1) The walls and ceilings of all rooms shall be kept clean and in good repair.

(2) All walls of rooms or areas in which food is prepared, or utensils or hands are washed, shall be easily cleanable.

(b) *Lighting.* All areas in which food is prepared or stored or utensils are washed, hand washing areas, dressing or locker rooms, toilet rooms, and garbage and rubbish storage areas shall be well lighted. During all cleanup activities, adequate light shall be provided in the area being cleaned, and upon or around equipment being cleaned.

(c) *Ventilation.* All rooms in which food is prepared or served or utensils are washed, dressing or locker rooms, toilet rooms, and garbage and rubbish storage areas shall be well ventilated. Ventilation hoods and devices shall be designed to prevent grease or condensate from dripping into food or onto food preparation surfaces. Filters, where used, shall be readily removable for cleaning or replacement. Ventilation systems shall comply with applicable state and local fire prevention requirements and shall, when vented to the outside air, discharge in such a manner as not to create a nuisance.

(d) *Dressing rooms and lockers.* Adequate facilities shall be provided for the orderly storage of employees' clothing and personal belongings. Where employees routinely change clothes within the establishment, one or more dressing rooms or designated areas shall be provided for this purpose. Such designated areas shall be located outside of the food preparation, storage, and serving areas, and the utensil washing and storage areas; provided, that, when approved by the health authority, such an area may be located in a storage room where only completely packaged food is stored. Designated areas shall be equipped with adequate lockers, and lockers or other suitable facilities shall be provided in dressing rooms. Dressing rooms and lockers shall be kept clean.

(e) *Housekeeping.* All parts of the establishment and its premises shall be kept neat, clean, and free of litter and rubbish. Cleaning operations shall be conducted in such a manner as to minimize contamination of food and food contact surfaces. None of the operations connected with a food service establishment shall be conducted in any room used as living or sleeping quarters nor shall there be a direct opening between such areas. Soiled linens, coats, and aprons shall be kept in suitable containers until removed for laundering. No live birds or animals shall be allowed in any enclosed area used for the conduct of food service establishment operations; provided, that guide

dogs accompanying blind persons may be permitted in dining areas.
(Code 1956, § 26-41.6)

Secs. 30-739—30-770. Reserved.

ARTICLE IX. HOTELS AND MOTELS*

DIVISION 1. GENERALLY

Sec. 30-771. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hotel or *motel* means an establishment providing a private room for sleeping accommodations for a fee with private bathroom facilities and customary lodging services, as defined in the Comprehensive Zoning Ordinance. Motor courts, tourist courts, motor lodges, and time-share units shall all be considered *hotels* or *motels*, as defined herein, if a charge or maintenance fee is assessed for the use of a room or suite. However, this definition shall not include rooming houses, if the minimum length of stay in the rooming house is 30 days or more, and shall not include transient lodging services licensed as short-term rentals.

Operator of a hotel or motel means the person in whose name the occupational license for the hotel or motel is issued.

Services offered by a hotel or motel means all items necessary for the use of a hotel or motel room required to be purchased in order to use or rent a room. Services shall not include food and beverages or other things sold at the hotel or motel unless the purchase of the food, beverages or other items is a prerequisite to the use of the hotel or motel room.
(Code 1956, § 29B-2; M.C.S., Ord. No. 30247, § 1, 3-13-25)

Cross reference—Definitions generally, § 1-2.

Sec. 30-772. Purpose.

It is hereby found and determined that the tourist and convention industry is a major component of the city's economy and that the hotel and motel industry is an essential component of our tourist and convention industry. It is essential that tourists and persons attending conventions in the city be treated fairly by the management of our hotels and motels and that tourists and organizations holding conventions should have full and complete knowledge of charges which may be assessed for renting hotel or motel rooms and for other services provided by such establishments. Additionally, tourists and organizations holding conventions should be made aware of differences in rates for hotel or motel rooms charged as a result of seasonal or other conditions. The hotel and motel industry must be regulated in order to prevent the appearance of so-called price gouging which may create an ill will on the part of tourists and organizations holding conventions in the city thereby adversely affecting the tourist and convention industry which is so vital to the local economy.
(Code 1956, § 29B-1)

Sec. 30-773. Enforcement; schedule.

(a) For the year 1990, rate schedules required by this article for hotels and motels shall be posted in all hotels and motels and shall be furnished to the director of the department of finance no later than May 31, 1990. The director of the department of finance is authorized to establish appropriate rules and regulations necessary for the enforcement of this article.

(b) The provisions of this article shall be enforced by the issuance of a summons rather than by arrest.
(Code 1956, § 29B-8)

*__Cross references—__Minimum standards for occupancy of roominghouses and boardinghouses, § 26-401 et seq.; minimum standards for hotels and motels, § 26-551 et seq.; discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.; hotel occupancy privilege tax, § 150-1001 et seq.

State law reference—Hotels and lodginghouses, generally, R.S. 21:1 et seq.

Sec. 30-774. Civil remedies.

In addition to other penalties which may be imposed for a violation of this article, the city attorney is authorized and empowered to seek an injunction or other remedy to prevent violations of this article through civil proceedings.
(Code 1956, § 29B-7)

Sec. 30-775. Penalties.

Any person convicted of a violation of this article shall be punished by a fine and/or imprisonment not exceeding the maximum penalties set forth in La. R.S. 33:1375. Each day a violation exists shall constitute a separate violation.
(Code 1956, § 29B-6; M.C.S., Ord. No. 20216, § 1, 7-5-01; M.C.S., Ord. No. 30247, § 2, 3-13-25)

Secs. 30-776—30-800. Reserved.

DIVISION 2. REGULATIONS*

Sec. 30-801. Schedule of rates and charges.

(a) Except for the year 1990 which is covered by section 30-773, the operator of each hotel or motel in the city shall adopt and promulgate no later than December 31 of each year for the year following a schedule of charges for the rental or use of hotel or motel rooms, including services, on forms provided by the department of finance and shall deliver to the director of the department of finance of the city within ten working days thereafter five copies of such schedule. Additionally, the operator of each hotel or motel in the city shall furnish the director of finance with binding rates and length-of-stay requirements at least six months prior to any Superbowl football game. The department of finance shall provide each hotel or motel holding a city occupational license with forms and instructions in connection with the requirements of this section. The rate schedules required by this section may be changed or amended by a hotel or motel at any time; but at any time a change is made in the schedule or a new schedule is adopted or promulgated, the hotel or motel shall deliver five copies of such change or new schedule to the director of the department of finance. The director of the department of finance shall maintain these rate schedules as public record. The director of the department of finance shall investigate complaints concerning rates or charges at hotels or motels in violation of this article and shall refer appropriate cases to the city attorney for legal action.

(b) The use or rental of a hotel or motel room located in a residential or neighborhood business district on less than a daily or overnight basis is prohibited. No rate less than a daily or an overnight rate shall be advertised, displayed, quoted or charged for any hotel or motel room in a residential or neighborhood business district.
(Code 1956, § 29B-3; M.C.S., Ord. NO. 20216, § 1, 7-5-01)

Sec. 30-802. Rate and charge schedules to be posted.

A copy of the schedule of rates and charges required in section 30-801 shall be available at the registration desk. A summary of the rate schedule shall be prominently posted in each room to be occupied by a hotel or motel guest in each hotel or motel in the city. The rate schedule summary so posted shall indicate the maximum and minimum amounts charged for the hotel or motel room and for special events, including Superbowl football games, the NCAA Final Four Basketball Tournament, Mardi Gras and the New Orleans Jazz and Heritage Festival. It shall be unlawful for the operator of any hotel or motel in the city to fail to post the rate schedule summary required by this section.
(Code 1956, § 29B-4)

Sec. 30-803. Charges in excess of rate schedules unlawful.

It shall be unlawful for any person to charge an amount for a room in a hotel or motel or for any services provided by a hotel or motel in excess of the amount listed in the schedule for

*__State law reference—__Fraudulent acts, R.S. 21:21 et seq.

that particular hotel or motel as provided for in section 30-801 or in excess of the rate schedule summary required in section 30-802.
(Code 1956, § 29B-5)

Sec. 30-804. Dedicated on-site staff.

Each hotel and motel operating in the city shall have at all times at least one on-site, on-duty staff member physically present and capable of immediately assisting guests, overseeing operations of the facility, addressing safety and security matters, and responding to emergencies.
(M.C.S., Ord. No. 30247, § 3, 3-13-25)

Secs. 30-805—30-835. Reserved.

ARTICLE X. LAUNDRIES*

Sec. 30-836. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings as-

*__State law reference—__Unclaimed property, disposition, R.S. 9:4687 et seq.

cribed to them in this section, except where the context clearly indicates a different meaning:

Laundry, or clothes cleaning establishment does not apply to any place where laundrying, washing or clothes cleaning is done for not more than three families or three persons not constituting one family.
(Code 1956, § 33-1)

Cross reference—Definitions generally, § 1-2.

Sec. 30-837. Certificate required before doing business.

It shall be unlawful for any person to maintain, conduct or operate any laundry or clothes cleaning establishment within the city without first having obtained a certificate, signed by the proper officer of the department of health, that:

(1) The premises so to be used are sufficiently drained;

(2) The lot is filled to proper grade; and

(3) All proper sanitary arrangements required by the department of health for carrying on such business without injury to the sanitary condition of the neighborhood and all the provisions, regulations and orders of the department pertaining thereto have been complied with.

(Code 1956, § 33-2)

Sec. 30-838. Construction, drainage of floor.

It shall be unlawful for any person conducting, maintaining or operating a laundry or clothes cleaning establishment within the city to wash or permit to be washed any clothing or article of cloth in any room the floor of which is not constructed of cement and drained into the public sewer.
(Code 1956, § 33-3)

Sec. 30-839. Sleeping quarters or other businesses restricted.

It shall be unlawful for any person to establish, maintain, operate or carry on any laundry or clothes cleaning establishment within the city in any building, or portion thereof, or in any annex or outhouse thereof, on the floor which may be used or occupied, directly or indirectly, as living quarters or sleeping apartments; nor shall any floor designated and used for a laundry or clothes cleaning establishment be used or employed for any other purpose or business whatsoever than for the business of a laundry or clothes cleaning establishment.
(Code 1956, § 33-4)

Sec. 30-840. Separate drying rooms.

It shall be unlawful for any person within the city, except when clothes are dried by the forced circulation of heated air or by circulation of the clothes mechanically through air artificially heated, to dry any article of clothing washed in a laundry in any room other than the one used exclusively for drying purposes. Such room must be entirely shut off from any other room, except that it may be connected with another room by means of a door opening thereto, in which event such door shall always be closed when not being used by a person entering or leaving such drying room, each such door to be equipped with a self-closing device. This room must be ventilated by means of at least two windows, opening to the outer air, which shall be on different sides.
(Code 1956, § 33-5)

Sec. 30-841. Cesspools prohibited.

It shall be unlawful for any person to permit the existence of an open privy vault or cesspool on premises upon which a laundry or clothes cleaning establishment is operated.
(Code 1956, § 33-6)

Sec. 30-842. Water restricted.

It shall be unlawful for any person operating a laundry or clothes cleaning establishment within the city to use any other water in such laundry or clothes cleaning establishment than filtered river water, rain water, distilled water or water from an artesian well. No dug well shall be allowed on the premises of any public laundry.
(Code 1956, § 33-7)

Sec. 30-843. Persons with infectious diseases.

It shall be unlawful for any person afflicted with any contagious or infectious disease or skin disease to be employed or work in or about the premises of a laundry or clothes cleaning establish-

ment or in the handling or delivery of any clothing therein washed, laundered or cleaned.
(Code 1956, § 33-8)

Sec. 30-844. Infected clothing.

It shall not be lawful for any laundry or clothes cleaning establishment, or the proprietor thereof, knowingly to receive or wash, launder or clean the clothes from any infected premises, watercraft, railway coach or car or from any person afflicted with any contagious or infectious disease unless such clothes have been first disinfected by the department of health.
(Code 1956, § 33-9)

Sec. 30-845. Monthly inspection.

The department of health shall make, or cause to be made monthly a thorough and complete inspection of all laundries and clothes cleaning establishments within the city to ascertain if the provisions of this article are complied with and to determine if the manner of conducting such establishments is such as not to be or become dangerous or prejudicial to life or health in the city.
(Code 1956, § 33-10)

Sec. 30-846. Inspection fee.

The department of health shall collect from the owner or manager of each laundry and clothes cleaning establishment the sum of $1.00 for each monthly inspection which shall not go into or become part of the general funds of the city, but shall be used solely to defray the cost of inspection.
(Code 1956, § 33-11)

Sec. 30-847. Inspection cards.

Monthly inspection cards shall be provided by the department of health, to be filled out and executed by the inspector when the inspection has been satisfactory. A monthly inspection card shall be prominently displayed in each laundry or clothes cleaning establishment.
(Code 1956, § 33-12)

Sec. 30-848. Obstruction of department.

It shall be unlawful for any person in any way connected with any laundry or clothes cleaning establishment in any manner to obstruct, hinder or interfere with any officer of the department of health in the full discharge of his duties under this article or to refuse or withhold any information he may desire to obtain relative to the sanitary management and arrangements.
(Code 1956, § 33-13)

Secs. 30-849—30-880. Reserved.

ARTICLE XI. MARKETS*

Sec. 30-881. Building permits and certificates of occupancy.

The division of regulatory inspections shall not issue any permit for the erection, alteration or construction of any market or any occupancy permit for any private market that has not been approved by the department of health.
(Code 1956, § 35-1)

Sec. 30-882. Rules for issuance of permits for construction, etc., of private markets.

The division of regulatory inspections shall be governed by the provisions of sections 30-883 through 30-892 in issuing permits for the construction, remodeling, repairing or rearranging of a market.
(Code 1956, § 35-2)

Sec. 30-883. Plans to accompany application.

Each application for a permit required by this article shall be accompanied by a comprehensive set of plans in triplicate showing the proposed com-

*Editor's note—Building permits are required in the New Orleans Building Code, which is separately published and therefore not included in this Code. Certificates of occupancy are required in the comprehensive zoning Ordinance, M.C.S., Ord. No. 4,264, as amended, separately published and therefore not included in this Code.

Cross references—Bakeries, § 30-291 et seq.; food regulations, § 82-36 et seq.; French market, § 146-646 et seq.

State law reference—Power of municipalities to regulate and establish markets, R.S. 40:1241, 40:1242.

pliance with all conditions of the department of health, and sewerage and water board and of this article, and if the cost of the construction work to be done under the plans exceeds $5,000.00 the plans must be signed by an architect or engineer registered in the state.
(Code 1956, § 35-3)

Sec. 30-884. Floor and drains.

The whole floor of the room in which the market is situated shall be properly ratproofed and shall be paved with concrete, stone or tile pavement, with ice drains and a cleanout or drain connected to the city's subsewer main if artificial ice refrigeration is used. If mechanical refrigeration is used such ice drain and cleanout to sewer will not be required.
(Code 1956, § 35-4)

Sec. 30-885. Ceilings and walls; wainscot.

The entire inside surfaces of ceilings and walls down to the wainscot shall be finished with smooth gypsum plaster, wallboard or mill-dressed, clear-face tongue and grooved wood ceiling boards. There shall be a wainscot built to grounds around all inside walls, five feet high from the floor up, in three-coat work plaster, the last coat to be in hard, smooth putty or some cement finish, or the wainscot may be of glazed tile, salt-glazed brick or wall tile.
(Code 1956, § 35-5)

Sec. 30-886. Paint.

The interior woodwork and plaster wainscot shall receive three coats of inside oil paint; the plaster wainscot shall receive an additional coat of high gloss enamel paint.
(Code 1956, § 35-6)

Sec. 30-887. Light and ventilation; screens.

Ample light and ventilation shall be provided and all openings shall be properly screened with a standard mesh screen wire.
(Code 1956, § 35-7)

Sec. 30-888. Doors.

All entrances to private markets shall be equipped with glass or wire screen doors which shall be provided with self-closing springs of sufficient strength to ensure the doors being tightly closed at all times when not in use.
(Code 1956, § 35-8)

Sec. 30-889. Ceiling fan.

There shall be an adequate approved ceiling fan installed at each door affording entrance to the market.
(Code 1956, § 35-9)

Sec. 30-890. Artificial illumination.

Adequate artificial illumination shall be provided for all parts of the market.
(Code 1956, § 35-10)

Sec. 30-891. Water, sinks, toilet facilities.

There shall be provided a wash sink or sinks and an ample supply of both hot and cold water. There shall also be provided ample toilet facilities in accordance with the rules of the department of health and the sewerage and water board of the city.
(Code 1956, § 35-11)

Sec. 30-892. Refrigeration.

All compartments, boxes or space intended for the storage or display of foods shall be properly and adequately refrigerated with ice or by mechanical means with drains to the main drain.
(Code 1956, § 35-12)

Sec. 30-893. Requirements when less than whole room used for market.

A private market may occupy the whole or any part of a building but, when a market occupies only a part of a room, the whole room shall conform entirely to the provisions of this article, irrespective of what use is made of the other portions of the room. This requirement shall not apply to existing markets or alterations for which a building permit was acquired prior to May 28, 1932.
(Code 1956, § 35-13)

Sec. 30-894. Sales of certain articles except in approved markets prohibited.

No person shall display or sell at retail or offer to sell at retail any fresh meat, frozen meat, fresh fish, fresh shrimp, dressed fowl, except dressed fowl in sealed containers, live crabs or fresh game at any place in the city other than in an approved public or private market in accordance with the provisions of this article.
(Code 1956, § 35-14)

Secs. 30-895—30-930. Reserved.

ARTICLE XII. MASSAGE THERAPISTS AND MASSAGE ESTABLISHMENTS*

DIVISION 1. GENERALLY

Sec. 30-931. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Massage shall mean any process or procedure upon the external parts of the body of a patron consisting of rubbing, stroking, pressing, kneading, or tapping by any means.

Massage establishment means any establishment or business wherein massage is practiced as a major use occupying more than 25 percent of the floor areas of the subject establishment or business, including establishments commonly known as massage studios or massage parlors.

Massage therapist means any person who gives or administers a massage.

Patron means any person 18 years or older who receives a massage under such circumstances that it is reasonably expected that he will pay money or give any consideration therefor.
(Code 1956, § 35A-1-4)

Cross reference—Definitions generally, § 1-2.
State law reference—Definitions, R.S. 37:3552.

*__Cross reference__—Performing massage on person of the opposite sex prohibited, § 54-485.

Sec. 30-932. Purpose.

It is hereby found and determined that the practice of massage therapy is a professional skill which offers significant therapeutic benefits to many persons. It is further found and determined that the practice of massage therapy by unqualified persons may pose a danger to the public health, safety and welfare. It is the purpose of this article, in the absence of uniform state regulation of massage therapy, to ensure that persons performing massage therapy in the city have a proper knowledge of the practice of the profession and that the public is protected from unqualified practitioners.
(Code 1956, § 35A-1-1)

Sec. 30-933. Rules and regulations.

The director of the department of health shall, with the consent of the mayor, submit to the council for its approval such reasonable regulations necessary to the performance of the functions assigned by this article in accordance with section 4-107 of the home rule charter. Any such regulation may be rescinded or amended either by the same process as when originally submitted or by the council at any time. All regulations shall be subordinate to the ordinance of the council.
(Code 1956, § 35A-1-3)

Sec. 30-934. Exemptions.

This article shall not apply to the following:

(1) Hospitals, nursing homes, sanitariums or other healthcare facilities licensed under the state; and physicians, surgeons, chiropractors, osteopaths or physical therapists licensed or registered to practice their respective professions under the laws of the state or nurses registered under the laws of the state acting under their direction and control.

(2) Barbershops and beauty parlors, barbers and beauticians licensed under the laws of the state provided that such massage as is practiced is limited to the head, neck and scalp.

(3) Accredited high schools and colleges and coaches and trainers therein while acting within the scope of their employment.

(4) Trainers of any amateur, semiprofessional or professional athlete or athletic team.

(5) Clubs organized for pleasure, recreation and other nonprofitable purposes, who shall furnish proof of tax-exempt status under the provisions of 26 USC 501(c)(3) and (7) to the director of the department of health.

(Code 1956, § 35A-1-14)

State law reference—Exceptions, R.S. 37:3553.

Sec. 30-935. Expiration of licenses and permits.

All licenses or permits issued pursuant to the provisions of this article shall expire one calendar year from the date of issuance unless previously revoked. All practicing massage therapists or operators of massage establishments on the effective date of the ordinance from which this article was derived shall immediately be subject to all of the provisions of this article.

(Code 1956, § 35A-1-13)

State law reference—License or registration renewal, R.S. 37:3561.

Sec. 30-936. Penalty.

Violation by any person of any of the provisions of this article is hereby declared to be a misdemeanor.

(Code 1956, § 35A-1-11)

State law reference—Penalties, R.S. 37:3565.

Secs. 30-937—30-955. Reserved.

DIVISION 2. MASSAGE ESTABLISHMENT*

Sec. 30-956. License required.

No person shall carry on the business of operating a massage establishment at any place within the city unless he has a valid license issued pursuant to the provisions of this division for each and every place of business.

(Code 1956, § 35A-1-7)

*State law references—Registration of massage establishments, R.S. 37:3558 et seq.; effect on local regulations, R.S. 37:3567.

Sec. 30-957. Application.

(a) Any person desiring a massage establishment license shall file a written application with the director of the department of health on a form to be provided by the director. If the applicant is a corporation, the name of the corporation shall be set forth exactly as set forth in its articles of incorporation, together with the names and addresses of each of its officers, directors and each stockholder of the corporation; and the application shall be verified by an officer of the corporation. If the applicant is a partnership, the application shall set forth the name and residence address of each of the partners, including limited partners; and the application shall be verified by each partner. If one or more of the partners is a corporation, the provisions of this section pertaining to a corporate applicant shall apply to the corporate partner. If the applicant is neither a corporation nor a partnership, the application shall set forth the full name and address of the applicant and be verified by the applicant.

(b) The application for a massage establishment license shall set forth the proposed place of business and the facilities therefor, together with a detailed description of the nature and scope of the proposed business operation. In addition to the foregoing, the following information shall be furnished concerning the applicant if an individual; and officer and director if the applicant is a corporation; and concerning the partners, including limited partners, if the applicant is a partnership:

(1) The previous addresses, if any, for a period of three years, immediately prior to the date of application and the dates of such residence.

(2) The date of birth.

(3) Four passport-size photographs, one inch by one inch, taken within 60 days of the date of application.

(4) The business, occupation or employment history for three years immediately preceding the date of application, including but not limited to whether such person previ-

ously operating under a permit or license in another city in this or another state had such license suspended or revoked.

(5) All convictions, including ordinance violations, exclusive of traffic violations, with a brief statement of the nature of the convictions and the jurisdiction in which the convictions occurred.

(6) A physical description, including height, weight, sex, color of eyes, color of hair, birthmarks and scars.

(7) Proof of property damage and bodily injury liability insurance coverage in an amount of not less than $1,000,000.00.

(8) Proof that the applicant holds a valid occupational license.

(9) A complete set of fingerprints taken by the department of health.

(Code 1956, § 35A-1-7(1)(b))

Sec. 30-958. Application fee.

Any person desiring to obtain a license to operate a massage establishment shall make application to the director of the department of health. A fee of $100.50 made payable to the city shall accompany the submission of the application to defray the cost of administration and investigation. If the applicant is not granted a license under the provisions of this chapter, $50.00 of the application fee shall be returned to the applicant.

(Code 1956, § 35A-1-7(1)(a))

Sec. 30-959. Investigation.

Applications for licenses under this division shall be referred to the superintendent of police and the director of the department of safety and permits within 48 hours of the application being filed, who shall cause an investigation to be made and report their findings to the director of the department of health. Applicants shall cooperate with any investigation conducted pursuant to the provisions of this article and shall permit access to the proposed place of business and facilities therefor in conjunction with any such investigation.

(Code 1956, § 35A-1-7(2))

Sec. 30-960. Issuance.

Within 60 days of the receipt of an application, the director of the department of health shall either grant or deny a massage license. The departments of police, safety and permits, and state sanitarian services shall be notified within 48 hours of the denial or acceptance of the application by the department of health. The director of the department of health shall grant a massage license only if he finds that:

(1) The required fee has been paid.

(2) The application conforms in all respects to the provisions of this article.

(3) The applicant has not knowingly made a material misstatement in the application for a license.

(4) The applicant has fully cooperated in the investigation of his application.

(5) The massage establishment as proposed by the applicant would comply with all applicable laws, including but not limited to the city's building, zoning and health regulations.

(6) The applicant if an individual, or any of the stockholders of the corporation, any officers or directors if the applicant is a corporation, or any of the partners, including limited partners, if the applicant is a partnership, have not been convicted of a felony or pleaded guilty to or have currently pending against that person or forfeited bail or been convicted of violation of any law of any jurisdiction for prostitution, pandering, pimping, lewd conduct or sexual misconduct within five years of the application.

(7) The applicant has not had a massage establishment license or a massage therapist permit or other similar license or permit denied or revoked for cause by this city or any other city located in or out of this state within the two years prior to the date of the application.

(8) The applicant if an individual, or any of the officers and directors if the applicant is a

corporation, or any of the partners, including limited partners, if the applicant is a partnership, is at least 18 years of age.

(9) The applicant, if a corporation, is licensed to do business in good standing in the state.

(10) The massage establishment as proposed by the applicant would comply with the requirements of this article.

(Code 1956, § 35A-1-7(3))

Sec. 30-961. Sale or transfer.

Upon the sale or transfer of any interest in a massage establishment, the license therefor shall be null and void. Any person desiring to continue to operate such massage establishment following sale or transfer shall make application therefor pursuant to this division.

(Code 1956, § 35A-1-12)

Secs. 30-962—30-980. Reserved.

DIVISION 3. MASSAGE THERAPIST PERMIT

Sec. 30-981. Qualifications.

Any person is qualified for licensure as a massage therapist under this division who:

(1) Is at least 18 years of age and has received a high school diploma or graduate equivalency diploma;

(2) Has submitted a sworn affidavit completed before a notary and two witnesses indicating that the applicant for a massage therapist license has completed a resident course of study of not less than 200 hours given in not less than three calendar months at a school or schools which have for their purpose the teaching of the theory, method and profession of massage therapy. Additionally, the applicant shall provide the name and address of the school or schools and such other information relating to the school or schools as may be required by the director of the department of health; and

(3) Has received a passing grade on an examination administered by the department of health.

(Code 1956, § 35A-1-8(a))

State law references—Licensure; qualifications, R.S. 37:3556.

Sec. 30-982. Application, examination.

Every person desiring to be examined for licensure as a massage therapist shall apply to the department of health in writing upon forms prepared and furnished by the department. Applicants may take an examination administered by the department only upon meeting the requirements of the section as determined by the department of health.

(Code 1956, § 35A-1-8(b))

State law reference—Examination of applicants, R.S. 37:3557.

Sec. 30-983. Contents of application.

Any person desiring a massage therapist permit shall file a written application with the department of health. The application shall be verified by the applicant. Any applicant for a massage therapist permit shall furnish all the information required by section 30-957. In addition, the applicant shall furnish the following:

(1) Certificate from a medical doctor, licensed to practice in the state, stating that the applicant has, within 30 days immediately preceding the date of application, been examined and found to be free of any contagious or communicable diseases.

(2) A diploma or certificate of graduation from a school of massage.

(3) The massage establishment, if any, at which the applicant expects to be employed.

(Code 1956, § 35A-1-8(d)(2))

State law reference—Applications, R.S. 37:3559.

Sec. 30-984. Application fee.

Any person desiring to obtain a permit to act as a massage therapist shall make application to the director of the department of health for a massage therapist permit. A fee of $50.00 made payable to the city shall accompany the submission of an ap-

plication to defray the cost of investigation and administration.
(Code 1956, § 35A-1-8(d)(1))
State law reference—Applications, R.S. 37:3559.

Sec. 30-985. Investigation.

Applications for permits under this division shall be referred to the superintendent of police who shall cause an investigation to be made of the applicant and report his findings to the director of the department of health.
(Code 1956, § 35A-1-8(e))

Sec. 30-986. Granting of permit.

Within 60 days of receipt of the application, the director of the department of health shall grant a massage therapist permit only if he finds that:

(1) The applicant has passed the examination as required in section 30-982.

(2) The required fee has been paid.

(3) The application conforms in all respects to the provisions of this article.

(4) The applicant has not knowingly made a material misstatement in the application for a permit.

(5) The applicant has fully cooperated in the investigation of his application.

(6) The applicant has not been convicted of a felony or pleaded guilty to or has currently pending against that person or forfeited bail or been convicted of violation of any law of any jurisdiction for prostitution, pandering, pimping, lewd conduct or sexual misconduct within five years of the application.

(7) The applicant has furnished an acceptable medical certificate in compliance with the rules and regulations of the department of health.

(8) The applicant has furnished to the director of the department of health an acceptable diploma or certificate of graduation from a school of massage therapy.

(9) The applicant has not previously had a massage therapist permit or other similar permit or license denied or revoked for cause by this city or by any other state within two years of the date of the application.

(10) The applicant is at least 18 years of age.
(Code 1956, § 35A-1-8(e), (f))
State law reference—Issuance of licenses, R.S. 37:3559.

Secs. 30-987—30-1010. Reserved.

DIVISION 4. LICENSE OR PERMIT SUSPENSION OR REVOCATION*

Sec. 30-1011. Grounds for suspension and revocation.

The following acts or omissions are declared to be in violation of this article and constitute grounds for suspension or revocation of a license or permit issued under this article. Prohibited acts include:

(1) Any lewd acts, sexual misconduct, sexual perversion or homosexual acts within such establishment. The following acts are in violation: Exposing, touching, caressing or fondling of genitals, anus, vulva, pubic hair or nipples of the female breast; masturbation; oral copulation, cunnilingus or fellatio; sexual intercourse, vaginal or anal; urination or defecation except in provided facilities; sodomy; bestiality; sadomasochistic abuse, flagellation or torture in the context of sexual relationship; any unnatural carnal copulation by a human being with another of the same or opposite sex.

(2) Prostitution, pandering or solicitation to perform a natural or unnatural sex act within such establishment.

(3) Making false statements in writing on the application for license issued under this article.

(4) The drinking or consuming of intoxicants or use of illegal drugs at such establishment.

*State law reference—Suspension or revocation of license, R.S. 37:3563.

(5) Allowing persons below the age of 18 years to be on the premises of a massage establishment unless the person is accompanied by his parent or legal guardian.

(6) Any act of disturbance of the peace at such establishment, defined as the performance of any of the following acts:

a. To communicate to another person a threat, either verbally, in writing or through any other form of communication, to kill or murder him or to do him great bodily harm or threatening to kill, murder or do great bodily harm to members of his family or to any other person when that person is in the immediate company of the person to whom the threat is communicated.

b. To address any words to any person who is lawfully in a public place where such words, which by their very utterance, inflict injury or have a direct tendency to cause acts of violence by the person to whom, individually, the remark is addressed.

c. To address language to any person that makes reference to the person addressed as having sexual intercourse with himself or with another where such language inflicts injury, insults or causes acts of violence by the person to whom the language is addressed or is intended to inflict injury, insult or cause acts of violence.

(7) Violation of any of the provisions of this article.

(8) The presence of a person on the massage establishment premises who administers massages and does not have a valid massage therapist permit.

(9) The practice of colon irrigation on the premises by any person who is not a medical doctor licensed to practice in the state.

(Code 1956, § 35A-1-10)

State law reference—Causes for suspension or revocation, R.S. 37:3563.

Sec. 30-1012. Notice of hearing.

(a) No license or permit issued under this article may be suspended or revoked until after due notice and hearing before the director of the department of health or his duly authorized representative to determine if grounds for such revocation exist. Notice of such hearing shall be in writing and served at least ten days prior to the date of hearing by registered mail or personal service or, in the case of a massage establishment, by posting on the interior of the massage establishment.

(b) The notice shall state the ground of the complaint against the permittee or licensee and shall designate the time and place where the hearing will be held. The licensee or permittee shall have the right to appear at such hearing and to produce evidence.

(Code 1956, § 35A-1-9)

Sec. 30-1013. Discretionary action by director.

If, after holding the hearing, the director of the department of health shall determine that the massage establishment was being operated as charged in the complaint or that the massage therapist has violated the provisions of this article, then the director shall either:

(1) Suspend the license or permit for a period not to exceed 90 days if it is charged and proved that the licensee or permittee has been guilty of violating sections 30-1011(4), 30-1011(6), or 30-1011(7); or

(2) Permanently revoke the license or permit if it is charged and proved that the licensee or permittee has been guilty of violating sections 30-1011(1), 30-1011(2), 30-1011(3), 30-1011(5), or 30-1011(8) or for any grounds that would warrant the denial of issuance of such license or permit in the first place.

(Code 1956, § 35A-1-9)

Secs. 30-1014—30-1035. Reserved.

DIVISION 5. OPERATING REQUIREMENTS*

Sec. 30-1036. Compliance, public notice.

Every massage establishment and every massage therapist shall comply with the following op-

*State law reference—Rules and regulations, R.S. 37:3555, 37:3567.

erating requirements as set out in this division. These requirements shall be prominently and publicly displayed in a conspicuous place upon every premises licensed under the provisions of this article.
(Code 1956, § 35A-1-6)

Sec. 30-1037. Hours of operation.

Massage establishments shall commence operations no earlier than 6:00 a.m., and the hours of operation shall extend no later than 10:00 p.m. Massage therapists shall not practice or administer massage at a massage establishment at any time outside of the hours of operation.
(Code 1956, § 35A-1-6(1))

Sec. 30-1038. Display of license, permit.

Massage establishments and massage therapists therein shall prominently and publicly display on the premises their licenses and permits during all hours of operation.
(Code 1956, § 35A-1-6(2))

Sec. 30-1039. Business records.

Massage establishments shall keep a record of the date and hour of each massage, the name and address of the patron receiving the massage and the name of the therapist practicing or administering the massage. Such record shall be maintained for a period of five working days and shall be open to inspection by officials charged with the enforcement of this article. Information furnished or secured as a result of such inspection by authorized officials shall be confidential.
(Code 1956, § 35A-1-6(3))

Sec. 30-1040. Linen supplies.

Massage establishments shall at all times be equipped with an adequate supply of clean, sanitary towels, covering and linens. Clean towels, coverings and linens shall be stored in cabinets. Towels and linens shall not be used on more than one patron unless they have first been laundered and disinfected. Disposable coverings and towels shall not be used on more than one patron. Soiled linens and paper towels shall be deposited in approved receptacles.
(Code 1956, § 35A-1-6(4))

Sec. 30-1041. Sanitary maintenance of equipment, supplies.

Instruments utilized in performing massage shall not be used on more than one patron unless they have first been disinfected, using disinfecting agents or sterilizing equipment approved by the director of the department of health. Massage table pads and reusable table coverings shall be disinfected between each massage with approved chemicals. Chemicals used during massage shall be stored separately in containers clearly labeled as to contents. All chemical containers shall be stored in cabinets reserved solely for such purpose.
(Code 1956, § 35A-1-6(5))

Sec. 30-1042. Attire of patrons, therapists.

Massages shall not be given unless patrons are wearing clothing fully covering their genitals and female patrons are, in addition, wearing clothing fully covering their breasts. Where such clothing is furnished patrons by the massage establishment, it shall not be used by more than one patron unless it has first been laundered and disinfected. Massage therapists shall be fully clothed from the knee to the neck in clean, opaque, light-colored clothing.
(Code 1956, § 35A-1-6(6))

Sec. 30-1043. Health of patrons.

Massages shall not be given to patrons who have open sores or other visual signs of contagion or communicable disease.
(Code 1956, § 35A-1-6(7))

Sec. 30-1044. Right of entry, inspections.

For purposes of ascertaining violations of this article and conducting routine inspections, police officers, health inspectors, fire inspectors and building inspectors of the city shall have the right of entry onto the premises of any massage establishment during the hours such establishment is open for business. If health officers observe that any massage therapist has open sores or, otherwise, have reasonable grounds to believe that any massage therapist is infected with a contagious or communicable disease, they shall have the right to suspend such massage therapist from practicing or administering massage until such time

as he furnishes a doctor's certificate showing him to be free of any contagious or communicable disease.
(Code 1956, § 35A-1-6(8))

Sec. 30-1045. Attendance by licensee.

The owner or licensee or his duly authorized manager shall be on duty at all times during working hours in the massage establishment.
(Code 1956, § 35A-1-6(9))

Sec. 30-1046. Proof of issuance of license, permit.

Proof of issuance of the license required by this article for the establishment and for each massage therapist employed by the establishment shall be available for inspection on the premises of the establishment.
(Code 1956, § 35A-1-6(10))

Sec. 30-1047. Massage establishment facilities.

Every massage establishment shall maintain facilities meeting the following requirements:

(1) Every massage establishment shall be equipped with security deposit facilities capable of being locked by the patron. Sufficient safety deposit facilities shall be furnished so that each patron will have a separate compartment available for storage of clothing and valuables. Disposable containers shall be provided for storage of articles of clothing. Such containers are to be used only by one patron and then discarded.

(2) Each massage establishment shall have a minimum of one water closet and one handwashing facility for every 15 employees and patrons. Such handwashing facility shall be located in the same room as the water closet or immediately adjacent thereto and shall have hot and cold water supplied through a mixer faucet and be equipped with soap and towels. Bar soap is not allowed, and the use of reusable towels by more than one person is prohibited.

(3) If male and female patrons are to be served simultaneously, such massage rooms, dressing facilities, toilet facilities, steam rooms and sauna rooms as are provided shall be separate for male and female patrons; and such separate facility or room shall be clearly marked as such.

(4) Rooms in which massage is to be practiced or administered shall have at least 50 square feet of clear floor area and shall maintain lighting provided by an incandescent bulb of not less than 100 watts or a fluorescent bulb of not less than 25 watts. Lighting in colors other than white shall be prohibited. Such room shall be equipped with cabinets having doors for the storage of clean linen and chemicals. Such cabinet doors are to remain closed at all times except for removal and placement of items. Soiled linen shall be stored in approved receptacles. Each massage room is to contain two solid waste containers constructed of metal or heavy plastic, that are in good condition and provided with tightfitting covers. Each container is to be lined with a plastic liner to prevent soiling. One container is to be used to store soiled linen and towels that are reusable. The other container is for the storage of used single use items that are to be discarded. Such rooms shall contain a door incapable of being locked from the exterior or interior. Such door shall contain a transparent windowpane no less than 12 inches wide and 12 inches long such that an unobstructed view of the room is provided from a hallway or other common access area which is immediately adjacent to the room.

(5) No stuffed or upholstered furniture or beds and mattresses shall be permitted in rooms in which massage is to be practiced or administered. Such room shall be equipped with massage tables having a hard surface impervious to liquids with a width of no more than three feet and a length of no more than

eight feet. The surface of such tables shall be positioned at least two feet from the surface of the floor so as to allow for free access to the floor beneath. Such tables may be equipped with either nondisposable pads or coverings or disposable coverings not more than 2½ inches thick. Nondisposable pads or coverings shall be removable, impervious and cleanable and maintained in a clean condition and good repair.

(6) Each massage establishment shall maintain handwashing facilities inside the establishment and within 20 feet of the massage table as measured along passageways. Such handwashing facilities shall have hot and cold running water provided through a mixer faucet and soap and towels available. Bar soap is not allowed, and the use of reusable towels by more than one person is prohibited.

(7) All walls, floors and ceilings shall be maintained in a clean condition and good repair.

(Code 1956, § 35A-1-5)

Secs. 30-1048—30-1080. Reserved.

ARTICLE XIII. NURSING HOMES*

Sec. 30-1081. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Annual operating license shall mean the license required by the City of New Orleans to authorize the operation of a nursing home within the corporate boundaries of the City of New Orleans.

Critical facility system(s) shall mean medical life support systems, any heating, ventilation, and/or air-conditioning equipment in patient rooms or care areas, elevator service, illumination of means of egress, alarms and alerting systems, communications systems, sufficient lighting to provide illumination to exit ways from dining and recreation areas, and task illumination in the generator set location.

Nursing home shall mean a private home, institution, building, residence or other place, serving two or more persons who are not related by blood or marriage to the operator, whether operated for profit or not, and including those places operated by a political subdivision of the State of Louisiana, which undertakes, through its ownership or management, to provide maintenance, personal care, or nursing for persons who, by reason of illness or physical infirmity or age, are unable to properly care for themselves. The term does not include the following:

(1) A home, institution, or other place operated by the federal government or agency thereof, or by the State of Louisiana.

(2) A hospital, sanitarium or other institution whose principal activity or business is the care and treatment of persons suffering from tuberculosis or from mental diseases.

(3) A hospital, sanitarium or other medical institution whose principal activity or business is the diagnosis, care and treatment of human illness through the maintenance and operation of organized facilities therefor.

(4) Any municipal, parish or private child welfare agency, maternity hospital or lying-in home required by law to be licensed by some other department or agency.

(5) Any sanitarium or institution conducted by and for Christian Scientists who rely on the practice of Christian Science for treatment and healing.

(6) Any nonprofit congregate housing program which promotes independent living by providing assistance with daily living activities such as cooking, eating, dressing, getting out of bed, and the like to

*__Editor's note—__**Editor's note—**M.C.S., Ord. No. 28150, § 1, adopted July 25, 2019, amended Art. XIII in its entirety to read as herein set out. Former Art. XIII, §§ 30-1081—30-1089, pertained to similar subject matter, and derived from Code 1956, §§ 41-1—41-9.

State law references—Rules and regulations; nursing homes, R.S. 40:2009.1 et seq.

persons living in a shared group environment who do not require the medical supervision and nursing assistance provided by nursing homes. No congregate housing program, except those licensed or operated by the State of Louisiana, shall: (1) use the term "nursing home" or any other term implying that it is a licensed health care facility; or (2) administer medications or otherwise provide any other nursing or medical service.

(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1082. Nursing home license required.

(a) It shall be unlawful to engage in the operation of a nursing home in the City of New Orleans without having first obtained from the director of safety and permits an annual operating license authorizing such activity.

(1) The director is authorized to promulgate such rules as may be required to carry out the purpose and intent of this article.

(b) Licenses shall be issued on an annual basis, and shall expire on May 31. Renewal shall be completed prior to June1.

(c) Annual operating licenses are non-transferrable and may not be assigned or granted to any other person or business which may occupy the premises to which a license has been previously approved.

(d) An annual operating license is a privilege, not a right, and may be revoked, suspended, or not renewed based on non-compliance with the requirements of the comprehensive zoning ordinance or the requirements of this article.

(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1083. Application for license.

(a) Any person desiring to operate a nursing home shall file an application for license with the department of safety and permits.

(b) The application shall be in a form prescribed by the department and, together with such other information as the department shall require, shall provide:

(1) The name and address of the applicant.

a. If the applicant is a partnership, association, or corporation, the application shall state the names and addresses of all the partners or officers, as the case may be.

(2) The name of the person managing the daily operations of such facility.

(3) The location of the nursing home.

(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1084. Issuance of annual operating license.

When satisfied that the applicant for a nursing home annual operating license has met all requirements of this article, the comprehensive zoning ordinance, and any regulations regarding preparing for and operating during an emergency which may be established, the director of the department of safety and permits shall approve and issue the license.

(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1085. Inspections.

The director of the department of safety and permits may inspect any nursing home that is required to have a license under this article. The director of the department of safety and permits, or his duly authorized representatives, shall have free and full access to the grounds, premises, and building used as a nursing home to ensure compliance with the standards of this article, the Code, and the Comprehensive Zoning Ordinance of the City of New Orleans, and any regulations which may be established. All persons connected with any such facility as officers or employees charged with the management thereof shall cooperate with any inspection or investigation of the director in the administration of this article.

(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1086. Fees.

(a) Fees shall be assessed in accordance with the following fee schedule:

(1) Annual operating license application fee: $250.00.

(2) Delinquency fee for failure to renew by June 1: $50.00/month.

(b) All fees collected under this article shall be deposited into the general fund of the city.
(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1087. Minimum standards for nursing homes.

(a) All nursing homes shall comply with the standards of the Louisiana Administrative Code applicable to their specific occupancy classification or grouping in addition to the provisions of this article. Failure to maintain compliance with the Louisiana Administrative Code shall be considered a violation of this article.

(b) All nursing homes shall:

(1) Comply with the Fire Code of New Orleans as determined by the New Orleans Fire Department and confirmed by annual facility inspections.

(2) Provide sufficient generator capacity and fuel reserve to ensure that nursing homes sustain critical facility systems for not less than 96 hours in the event of the loss of electrical power. Generator capacity shall be adequate to maintain an ambient indoor air temperature of 81 degrees Fahrenheit or less in the warmest weather and 71 in the coldest weather in all patient areas for the duration of the 96-hour backup period.

(3) Demonstrate compliance with the requirements of this article prior to issuance of the annual operating license, including a quarterly testing report verifying functional condition and capacity of the required generator(s).
(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1088. Facilities required to coordinate with the city for emergency planning.

(a) All nursing homes operating in the city shall provide to the mayor's office of homeland security and emergency preparedness an emergency operations and evacuation plan, to be updated on an annual basis.

(1) The mayor's office of homeland security and emergency preparedness is authorized to promulgate regulations for content of the emergency operations and evacuation plan to adequately meet the needs of the population to be served by the facility.

(b) An annual operating license shall not be issued by the director of the department of safety and permits unless an acceptable emergency operations and evacuation plan has been filed with the mayor's office of homeland security and emergency preparedness.

(c) All nursing homes operating in the city shall provide situational updates every 24 hours to the mayor's office of homeland security and emergency preparedness during all declared emergencies or disasters.

(1) All nursing homes operating in the city shall provide immediate notification by email or phone to the mayor's office of homeland security and emergency preparedness, or authorized representative, if the facility evacuates, temporarily relocates, or temporarily ceases operation.

(2) If a nursing home requires the city's assistance to evacuate or shelter patients, the city may bill the nursing home for all incurred costs and administrative fees.
(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1089. Compliance with state regulations required.

This article shall be construed to supplement, not to supersede or replace, the laws of the State of Louisiana.
(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Sec. 30-1090. Enforcement.

Failure of any person, business, or entity to comply with any of the provisions of this article shall be in violation of this Code and may result in suspension or revocation of license.
(M.C.S., Ord. No. 28150, § 1, 7-25-19)

Secs. 30-1091—30-1120. Reserved.

ARTICLE XIV. PRIVATE DETECTIVES AND PRIVATE DETECTIVE AGENCIES*

DIVISION 1. GENERALLY

Sec. 30-1121. Scope of article.

This article shall apply to all persons conducting the businesses referred to in this article, whether or not such businesses shall have been conducted previous to the passage of this article; provided, that all permits issued pursuant to and in compliance with the requirements of Ordinance No. 5713 New Council Series shall remain in full force and effect, unless two years have elapsed since the date bond was furnished and permit was issued in accordance with the requirements thereof. At the end of the expiration of the term of two years after the date of such certificate, a new application and bond shall be filed as required by this article. This article shall not be construed to affect in any way any person conducting any bureau or agency for the purpose of furnishing financial ratings of persons; nor shall it be construed to affect in any way attorneys and counsellors at law in the regular practice of their professions.
(Code 1956, § 49-29; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Sec. 30-1122. Unlawful to act as armed guard.

It shall be unlawful for any person to act as an armed guard unless he is a peace officer.
(Code 1956, § 42-62)

Secs. 30-1123—30-1145. Reserved.

*__State law references__—License tax, R.S. 47:354; private contract security companies, R.S. 37:3271 et seq.

DIVISION 2. PERMIT

Sec. 30-1146. Required.

No person shall engage in the business of private detective, for hire or reward, or conduct a detective agency for hire or reward, or advertise as a private detective agency, or shall engage in the business, for hire or reward, of furnishing or supplying of information as to the personal character of any person or as to the character or kind of business and occupation of any person, or own or conduct a bureau or agency for such purposes, without first having obtained a permit to do so from the department of police.
(Code 1956, § 49-24; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Sec. 30-1147. Application.

Any person intending to conduct any business under this division shall present a written application to the department of police on forms provided by the department of finance.
(Code 1956, § 49-25; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Sec. 30-1148. Contents of application.

The application for a permit under this division shall be duly signed and verified by the applicant and approved by not less than five reputable citizens of the city, which approvals shall be signed by such citizens and acknowledged by them before an officer authorized to take acknowledgements. Such application shall also state the age, residence, present and previous occupations of such applicant and in case of a corporation, the names of its officers and stockholders, the number and street where such business is located, and such other facts as will tend to show the good character, competency and integrity of such applicant.
(Code 1956, § 49-26)

Sec. 30-1149. Issuance.

The department of police, when satisfied from an examination of the applicant referred to in this division and such further inquiry and investigation as he shall deem proper, of the good character, competency and integrity of such

applicant, shall issue to the applicant a permit to conduct the businesses referred to in this article.
(Code 1956, § 49-27; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Sec. 30-1150. Bond.

No permit shall be issued under this division until the applicant has executed, delivered and filed in the department of police a bond, with one or more good and solvent sureties in the sum of $10,000.00, conditioned for the faithful and honest conduct of such business by the applicant, which bond as to its form, manner of execution and sufficiency of security, shall be approved by the department of police. Such bond shall be taken in the name of the city, and any person injured by the willful, malicious or wrongful act of the principal may bring an action on such bond in his own name to recover damages suffered by such willful, malicious or wrongful act. The foregoing shall likewise apply equally where the permit holder is a firm or corporation.
(Code 1956, § 49-27; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Sec. 30-1151. Duration and revocation; renewal.

Any permit granted under the provisions of this division shall run for a term of five years and shall be revocable at all times by the department of police for cause shown. At the expiration of the term of five years, a new application and bond shall be filed as required by this division.
(Code 1956, § 49-28; M.C.S., Ord. No. 21621, § 1, 8-5-04)

Secs. 30-1152—30-1175. Reserved.

ARTICLE XV. PRIVATE IDENTIFICATION BUREAUS*

DIVISION 1. GENERALLY

Secs. 30-1176—30-1200. Reserved.

*__State law reference—__License tax, R.S. 47:354.

DIVISION 2. PERMIT

Sec. 30-1201. Required.

No person shall engage in the business of supplying identification cards to individuals purporting to indicate an individual's name, age or residence without first having obtained a permit to do so from the superintendent of the police department.
(Code 1956, § 49-30)

Sec. 30-1202. Application.

Any person intending to conduct any business referred to in this division shall present a written application to the superintendent of police on forms provided by the department of finance.
(Code 1956, § 49-31)

Sec. 30-1203. Issuance, fee.

The superintendent of police shall, when satisfied from an examination of the applicant referred to in this division and such further inquiry and investigation as he shall deem proper, of the good character, competency and integrity of such applicant, approve such application which shall be returned to the department of finance for issuance of the permit to conduct the business referred to in this article upon payment of a permit fee of $25.00.
(Code 1956, § 49-32)

Sec. 30-1204. Identification cards.

Persons permitted to issue identification cards under this division shall obtain a certificated copy of the individual's birth certificate or valid state drivers' license to establish the correct name, age and residence of the individual seeking an identification card on forms provided by the issuer of the identification. A copy of this information and photograph shall be maintained by the issuer of such identification card and be available for inspection and collection by the police department. These files shall be kept for a period of five years from date of issuance.
(Code 1956, § 49-33)

Secs. 30-1205—30-1250. Reserved.

ARTICLE XVI. PUBLIC SWIMMING PLACES AND BATHHOUSES*

Sec. 30-1251. Permit required.

No public bathing beach or public swimming place where suits are rented and provided to customers shall be operated without a permit having been obtained from the city council.
(Code 1956, § 63-30)

Sec. 30-1252. Plans for separate facilities for each sex prerequisite to appointment of inspectors.

The superintendent of police shall appoint inspectors under this article only when plans of the bathhouses or dressing rooms in connection therewith shall have first been furnished to the council showing the separate facilities for each sex.
(Code 1956, § 63-32)

Sec. 30-1253. Inspectors.

Whenever the council issues a permit for the operation of any public bathing beach, public bathhouse or the like, the superintendent of police shall appoint one inspector of each sex and they shall be assigned for duty at such bathing beach or public bathhouse for a period not to exceed ten hours.
(Code 1956, § 63-31)

Sec. 30-1254. Duties of inspectors.

The inspectors appointed under this article shall see that all rules and regulations of the department of health are carried out, as well as all health ordinances of the city.
(Code 1956, § 63-33)

Sec. 30-1255. Bond of applicant.

At the time of granting the permit required by this article the applicant shall furnish a bond to the city for the payment of the salaries of the inspectors appointed by the superintendent of police.
(Code 1956, § 63-34)

*__State law references__—Exercise of police power over municipally owned places of amusement, authorized, R.S. 33:4558; sanitary code, swimming pools, R.S. 40:4(11).

Secs. 30-1256—30-1280. Reserved.

ARTICLE XVII. RESIDENTIAL FACILITIES FOR SENIORS OR PERSONS WITH DISABILITIES†

Sec. 30-1281. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Annual operating license shall mean the license required by the City of New Orleans to authorize the operation of a residential facility for seniors or persons with disabilities within the corporate boundaries of the City of New Orleans.

Residential facility for seniors or persons with disabilities ("residential facility") shall mean any housing facility that is not licensed by the State of Louisiana and has six or more units of rental housing specifically designated for persons aged 55 years or older, persons with disabilities, and/or persons receiving permanent supportive housing services, including but not limited to those housing facilities that receive funding or financing support from the U.S. Department of Housing and Urban Development (HUD). Residential facilities may also include homes for the aged and residential care facilities, as defined by the City of New Orleans Comprehensive Zoning Ordinance.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1282. License required for residential facilities for seniors or persons with disabilities.

(a) It shall be unlawful to engage in the operation of a residential facility for seniors or persons with disabilities in the City of New

†__Editor's note__—Prior to reenactment by M.C.S., Ord. No. 28801, Ord. No. 21,094, § 1, adopted May 1, 2003, repealed former Art. III, §§ 30-1281—30-1320, which pertained to readers, and derived from §§ 46-1, 46-1(39), 46-1.2, 46-2, 46-2.1, 46-3, 46-4, 46-5, 46-15, 46-16, 46-18(a), and 46-18(b)(1)—(3), (5)—(8) of the 1956 Code.

Orleans without having first obtained from the director of the department of safety and permits an annual operating license authorizing such activity. The director is authorized to promulgate such rules as may be required to carry out the purpose and intent of this article.

(b) Licenses shall be issued on an annual basis and shall expire on May 31. Renewal shall be completed prior to June 1.

(c) Annual operating licenses are non-transferrable and may not be assigned or granted to any other person or business which may occupy the premises to which a license has been previously approved.

(d) An annual operating license is a privilege, not a right, and may be revoked, suspended, or not renewed based on non-compliance with the requirements of the Comprehensive Zoning Ordinance or the requirements of this article.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1283. Application for license.

(a) Any person desiring to operate a residential facility for seniors or persons with disabilities shall file an annual application for license with the department of safety and permits.

(b) The application shall be in a form prescribed by the department of safety and permits, and, together with such other information as the department shall require, must provide:

(1) The name and address of the applicant. If the applicant is a partnership, association, or corporation, the application shall state the names and addresses of all the partners or officers, as the case may be.

(2) The name and mobile phone number of the person managing the daily operations of such facility, to be known as the point of contact.

(3) The location of the residential facility.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1284. Issuance of annual operating license.

When satisfied that the applicant for a residential facility for seniors or persons with disabilities annual operating license has met all applicable requirements of this article, the Comprehensive Zoning Ordinance, and any regulations which may be established, the director of the department of safety and permits shall approve and issue the license. Such facilities shall be required to demonstrate continued compliance with the requirements of this article prior to the reissuance or renewal of an annual operating license.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1285. Inspections.

The director of the department of safety and permits may inspect any residential facility for seniors or persons with disabilities required to have a license under this article. The director, or his duly authorized representatives, shall have free and full access to the grounds, premises, and building(s) used as a residential facility to ensure compliance with the standards of this article, the Code, and the Comprehensive Zoning Ordinance of the City of New Orleans, and any regulations which may be established. All persons connected with any such facility as officers or employees charged with the management thereof shall cooperate with any inspection or investigation of the Director in the administration of this article.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1286. Fees.

(a) Fees shall be assessed in accordance with the following fee schedule:

(1) Annual operating license application fee: $250.00.

(2) Delinquency fee for failure to renew by June 1: $500.00 per month.

(b) All fees collected under this article shall be deposited into the general fund of the city.
(M.C.S., Ord. No. 28801, § 1, 10-21-21; M.C.S., Ord. No. 29908, § 1, 5-2-24)

Sec. 30-1287. Minimum standards for residential facilities for seniors and persons with disabilities.

(a) All residential facilities for seniors or persons with disabilities shall comply with the Life Safety Code as determined by the New Orleans Fire Department and confirmed by annual facility inspections.

(b) All residential facilities must maintain with the department of safety and permits the current point of contact for the facility and the point of contact's mobile phone number.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1288. Facilities required to coordinate with the city for emergency planning.

(a) All residential facilities for seniors or persons with disabilities operating in the City of New Orleans shall provide to the department of safety and permits an emergency operations and evacuation plan, to be updated on an annual basis.

(1) The Mayor's Office of Homeland Security and Emergency Preparedness and the New Orleans Health Department are authorized to establish additional standards for content of the emergency operations and evacuation plan to adequately meet the needs of the population to be served by the facility.

(2) The emergency operations and evacuation plan shall be posted in a conspicuous place at the residential facility. In addition, a copy of the plan shall be provided to each resident of the facility.

(b) An annual operating license shall not be issued by the director of the department of safety and permits unless an acceptable emergency operations and evacuation plan has been filed with the department of safety and permits and approved by the Mayor's Office of Homeland Security and Emergency Preparedness and the New Orleans Health Department.

(c) All residential facilities in the city shall provide situational updates, at least every 24 hours to the Mayor's Office of Homeland Security and Emergency Preparedness, or their designee, during all declared emergencies and disasters, unless directed by the Mayor's Office of Homeland Security and Emergency Preparedness or the New Orleans Health Department to report situational updates on a different cadence. During a declared emergency or disaster, all residential facilities must also comply with the following:

(1) The point of contact must be on site at the residential facility and available to the city at all times, until deemed no longer necessary by the Mayor's Office of Homeland Security and Emergency Preparedness or the New Orleans Health Department, or until the facility evacuates or temporarily relocates. The point of contact may designate an authorized representative for a 24-hour period by providing such person's name and mobile phone number on the preceding situational update.

(2) The current point of contact and mobile phone number must be posted on site at the residential facility in a location visible to the public.

(3) All residential facilities in the city shall provide immediate notification by email or phone to the Mayor's Office of Homeland Security and Emergency Preparedness or the New Orleans Health Department, if the facility evacuates, temporarily relocates, or temporarily ceases operation.

(4) If a residential facility requires the city's assistance to evacuate or shelter residents or patients, the city may bill the residential facility for all incurred costs and administrative fees.

(M.C.S., Ord. No. 28801, § 1, 10-21-21; M.C.S., Ord. No. 29908, § 1, 5-2-24)

Sec. 30-1289. Compliance with state regulations required.

This article shall be construed to supplement, not to supersede or replace, the laws of the State of Louisiana.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1290. Compliance with federal regulations required.

If a residential facility for seniors or persons with disabilities is a U.S. Department of Housing and Urban Development ("HUD") multifamily property, it must provide annually to the department of safety and permits proof of compliance with the owner/agent responsibilities listed in the HUD Multifamily Emergency/Disaster Guidance put forth in chapter 38 of the HUD Multifamily Asset Guidebook.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1291. Enforcement.

Failure of any person, business, or entity to comply with any of the provisions of this article shall be in violation of the Code and may result in suspension or revocation of license and/or fines by way of adjudication in accordance with chapter 6 of City Code.
(M.C.S., Ord. No. 28801, § 1, 10-21-21)

Sec. 30-1292. Penalties.

(a) Except as otherwise provided in this section, the penalty for each violation of this article adjudicated in accordance with chapter 6 of the Code shall not exceed the monetary limit established by section 6-37.

(b) The penalty for a violation involving the failure to provide timely situational updates during a declared emergency shall be assessed at $100.00. Each untimely situational update during an emergency shall constitute a separate violation.
(M.C.S., Ord. No. 29908, § 1, 5-2-24)

Secs. 30-1293—30-1320. Reserved.

ARTICLE XVIII. ROOMINGHOUSES, BOARDINGHOUSES AND LODGINGHOUSES*

DIVISION 1. GENERALLY

Sec. 30-1321. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Roominghouse, boardinghouse or lodginghouse means a building other than an apartment hotel, hotel, small and large group homes, residential care center, dormitory, motel or motor lodge, or tourist home, containing sleeping rooms where lodging or lodging and meals are provided for five or more unrelated persons but containing less than 15 sleeping rooms. The sleeping rooms generally do not have private bathrooms or kitchen attached thereto. In a residential zoning district, the min-

*__Cross references—__Minimum standards for occupancy of roominghouses and boardinghouses, § 26-401 et seq.; discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.; hotel occupancy privilege tax, § 150-1001 et seq.

__State law references—__Sanitary Code, R.S. 40:4(5); Board and Home Care Licensing Law, R.S. 40:2151 et seq.; exemptions from sales tax, R.S. 47:305(D)(2).

imum length of stay in a roominghouse, boardinghouse or lodginghouse shall be 30 days.
(Code 1956, § 29-155)

Cross reference–Definitions generally, § 1-2.

Sec. 30-1322. Inspections.

(a) *Power to inspect.* The director of the department of health or his duly authorized representative is hereby empowered, in the administration and enforcement of this article, to make inspections of the premises of any roominghouse, boardinghouse or lodginghouse for the purpose of determining whether or not it is in compliance with this article, at any time and upon showing proper identification as a representative of the department in the following instances:

(1) Whenever a complaint is filed which gives the director of the department of health the reasonable belief that there is probable cause to believe that the premises is in violation of any of the provisions of this article.

(2) Whenever an agent or employee of the city submits a written report to the director which gives facts that there is probable cause to believe that any portion of the premises are in violation of any of the provisions of this article.

(3) Whenever the administrator believes with cause, that such inspection is necessary or desirable, or is in accordance with a legislative or administrative plan.

(b) *Cause.* Cause shall be deemed to exist if either reasonable legislative or administrative standards for conducting routine or area inspections are satisfied with respect to the particular place, structure, premises or operation; or there is reason to believe that a condition of nonconformity exists with respect to the particular place, structure, premises or operation.

(c) *Warrant for inspection.* If the owner of the premises refuses admittance thereto to the director of the department of health or his duly authorized representative for the purpose of making an inspection or examination of the premises the director or his representative may present an affidavit to any judge of the municipal court stating that he has cause to believe that an inspection of the designated premises will reveal designated violations of this article, or that the proposed search is pursuant to a reasonable legislative or administrative plan. If the proposed search is based on an affidavit alleging probable cause to believe that an inspection of the designated premises will reveal designated violations of this article, the affidavit shall identify the factual basis for any opinions the affiant may hold, or any conclusions the affiant may reach. If the proposed search is to be based on an affidavit alleging that it is pursuant to reasonable legislative or administrative plan, the affidavit shall briefly describe that plan, and describe the characteristics of the premises to be searched which bring it within the scope of that plan. Upon receiving this affidavit the judge may issue a warrant authorizing the director or his representative to search the premises. If the proposed search is based on an affidavit alleging probable cause to believe that an inspection of the designated premises will reveal designated violations of this article, the scope of the search authorized by the warrant shall be limited to a search for those designated violations. If the proposed search is based on an affidavit alleging that it is pursuant to a reasonable legislative or administrative plan, the scope of the search may encompass the entire premises, but if the plan may be complied with by a more limited search, the warrant shall limit the search so that its scope will not extend beyond what is necessary to ensure compliance with the plan.
(Code 1956, § 29-163)

Sec. 30-1323. Conflict.

Whenever the regulations in this article contain an actual, implied or apparent conflict with any other ordinance or code, the more restrictive regulation shall apply unless specified otherwise.
(Code 1956, § 29-166)

Sec. 30-1324. Penalty.

Violation by any owner, permittee, designated agent or operator of any of the provisions of this article is hereby declared a misdemeanor, and such person shall upon the first and subsequent convictions be fined not more than $300.00 or sentenced to not more than 90 days in jail or both.

Each and every day that such violation continues shall constitute a separate violation. The correction of a violation shall not restrain imposition of these penalties.
(Code 1956, § 29-167)

Secs. 30-1325—30-1350. Reserved.

DIVISION 2. PERMIT

Sec. 30-1351. Required.

It shall be unlawful for any person to establish, maintain or operate a roominghouse, boardinghouse or lodginghouse without first having obtained a permit from the department of health. Permits issued under the authority of this division shall be nontransferable to any other person or location. Every roominghouse, boardinghouse or lodginghouse permit shall expire at the end of one year following its date of issuance, unless sooner suspended or revoked.
(Code 1956, § 29-156)

Sec. 30-1352. Application.

Any person desiring to establish, maintain or operate a roominghouse, boardinghouse or lodginghouse shall make application for a permit to the department of health on application forms furnished by the department. Such application shall set forth the name and residence of the applicant if an individual, and the names and residences of all members if a firm or partnership, or the president, vice-president and secretary if a company or corporation, and indicate the location of the place for which such permit is desired. Any person having a mailing address located outside of the parish shall have a designated representative or agent having a business or residence address upon whom legal documents may be served located within the parish. Such application shall also state the number of sleeping rooms, the maximum number of occupants and any other facts concerning the proposed use which the department of health may deem necessary.
(Code 1956, § 29-158)

Sec. 30-1353. Investigation by department of health.

The department of health shall make or cause to be made an inspection of the place described in the application for the purpose of determining whether all the requirements set forth herein and all other applicable rules and regulations of the department have been complied with.
(Code 1956, § 29-160)

Sec. 30-1354. Investigation by department of safety and permits and department of fire.

(a) The department of health shall forward to the department of safety and permits a written interoffice memorandum indicating the address of the business location of each applicant. The department of safety and permits, after making proper investigations, shall either approve or disapprove in writing to the department of health stating whether or not the proposed business location complies with the building code, mechanical code, electrical code or the comprehensive zoning ordinance of the city. The written approval of the department of safety and permits shall be obtained prior to the issuance of a permit.

(b) If the property resides within the boundary of the Vieux Carre, the department of health shall send a copy of the interoffice memorandum to the director of the Vieux Carre Commission. The Vieux Carre Commission shall certify in writing to the department of health, that the property is in compliance with chapter 114 of this Code.

(c) The department of health shall also forward to the department of fire a written interoffice memorandum indicating the address of the business location of each applicant. The department of fire, after making proper investigations, shall either approve or disapprove in writing to the department of health stating whether or not the proposed business location complies with the fire prevention code of the city. The written approval of the department of fire shall be obtained prior to the issuance of a permit.
(Code 1956, § 29-161)

Sec. 30-1355. Permits to be displayed.

Any permits issued under the provisions of this division shall be at all times publicly displayed on

the premises in such a manner that would afford protection against soiling so as to be easily seen by the public.
(Code 1956, § 29-157)

Sec. 30-1356. Fee.

A fee of $200.00 shall accompany the application and if a permit is not granted, $100.00 shall be returned to the applicant.
(Code 1956, § 29-159)

Sec. 30-1357. Revocation or suspension.

Failure to comply with any of the provisions of this division shall be deemed grounds for suspension or revocation of a permit, however, no permit may be suspended or revoked until after the owner, permittee, designated agent or operator is notified and afforded a hearing before the director of the department of health. The permittee, designated agent or operator may be represented by an attorney for the purpose of this hearing.
(Code 1956, § 29-165)

Secs. 30-1358—30-1375. Reserved.

DIVISION 3. REGULATIONS

Sec. 30-1376. Minimum size of room, occupancy.

Each sleeping room shall contain a minimum of 120 square feet and be limited to two occupants unless the sleeping room contains 70 square feet of floor area per occupant or bed. In no instance shall there be more than six occupants or beds per sleeping room.
(Code 1956, § 29-162(1))

Sec. 30-1377. Sanitary facilities.

(a) Sanitary facilities shall be provided on the basis of one per ten occupants or beds. Such sanitary facilities shall include a lavatory, bathtub or shower and a toilet all properly connected in accordance with the standards of the sewerage and water board and in working order. Sanitary facilities shall be located in rooms provided especially for that purpose. Sanitary facility rooms shall not be less than seven feet in any dimension; shall have a solid self-closing door and positive ventilation; and be supplied at all times with toilet tissue, single hand use towels and soap contained in a dispenser. Sanitary facility rooms shall contain a minimum of 50 square feet per sanitary facility combination. Additional space shall be provided on the basis of 16 square feet for a toilet, 12 square feet for a lavatory and 22 square feet for a bathtub or shower.

(b) Sanitary facilities shall be located on the same floor or not more than one story away from any of the occupants it is intended to serve. In no case shall it be necessary for an occupant of one bedroom to pass through another bedroom to reach any sanitary facilities, nor to pass through a room containing such sanitary facilities to reach a sleeping room.
(Code 1956, § 29-162(2), (3))

Sec. 30-1378. Storage for occupants.

Closet or locker accommodations shall be provided for each occupant for storage of personal effects. Each closet or locker shall be capable of being locked and shall measure at least 12 inches wide, 18 inches deep and 60 inches in height.
(Code 1956, § 29-162(4))

Sec. 30-1379. Bed facilities.

(a) Each sleeping room shall contain separate bed facilities for each unrelated occupant. A bed facility shall consist of at least a standard single-size bed frame, spring and mattress. Mattresses placed on the floor are prohibited.

(b) Beds shall be spaced at least three feet apart.
(Code 1956, § 29-162(5), (6))

Sec. 30-1380. Common area.

An area for the common use and enjoyment of all occupants, such as a television room, recreation room or dining hall shall be provided. Such common area shall have a minimum floor area of 120 square feet or five square feet per occupant, whichever is greater; but such common area need not exceed 300 square feet.
(Code 1956, § 29-162(7))

Sec. 30-1381. Doors, windows, etc.

(a) Walls, ceilings, floors, windows, fixtures and furnishings throughout the establishment shall be maintained in a clean condition at all times and shall be in good repair.

(b) All outside openings shall be screened with 18 mesh wire.
(Code 1956, § 29-162(8), (9))

Sec. 30-1382. Lighting, ventilation.

All rooms shall be adequately lighted and properly ventilated by natural or artificial means or both, and shall be provided with adequate heating facilities capable of maintaining 68 degrees Fahrenheit for the comfort of the occupants. All natural gas fired heaters shall be vented to the outside atmosphere.
(Code 1956, § 29-162(10))

Sec. 30-1383. Food handling.

All food handling, storage and preparation must be in accordance with the health, sanitation and permit code of the city and the state sanitary code. The use of common kitchens by occupants is prohibited.
(Code 1956, § 29-162(11))

Sec. 30-1384. Linen.

Each occupant shall be furnished with clean towels, washcloths and bed linen that is changed at least weekly, before the letting of any bed to an occupant and more frequently if necessary. Sheets must be of sufficient width and length to completely cover the mattress and be turned under the mattress so as to properly secure the sheet. The use of common towels and soap is prohibited.
(Code 1956, § 29-162(12))

Sec. 30-1385. Garbage, solid wastes.

Garbage shall be deposited and/or stored in conveniently located watertight containers provided with tightly fitted covers. A minimum of two containers shall be provided on each floor and each shall have a plastic inner liner that will reduce soiling of the container. The inner liner and contents shall be removed as often as necessary to prevent the creation of nuisances.
(Code 1956, § 29-162(13))

Sec. 30-1386. Register of occupants.

All roominghouses, boardinghouses and lodginghouses shall maintain a register of occupants which includes the occupant's name, signature, room assignment in the facility and arrival and departure date. The register shall be retained for three years following the departure of a tenant.
(Code 1956, § 29-162(14))

Sec. 30-1387. Other provisions.

Every roominghouse, boardinghouse and lodginghouse shall also comply with the minimum standards set forth in sections 26-282 through 26-285, 26-287 through 26-291, 26-293, 26-294, and 26-297 through 26-303.
(Code 1956, § 29-162(15))

Cross reference—Minimum housing standards, § 26-281 et seq.

Secs. 30-1388—30-1410. Reserved.

ARTICLE XIX. SLAUGHTERHOUSES*

Sec. 30-1411. Daily cleaning.

The floors and walls or other partitions of the slaughtering pens of any abattoir or slaughterhouse shall be flushed, washed and thoroughly cleansed each day, except that in special cases, when in the opinion of the meat inspector the circumstances or necessities warrant it, such officer may grant special permits to dispense with the observance of the provisions of this section. But in no case shall the premises remain uncleaned for a longer period than 24 hours.
(Code 1956, § 26-13)

Sec. 30-1412. Inspection before slaughtering.

No person shall slaughter for human food and offer for sale in this city, until previously inspected, any cattle, hogs or sheep.
(Code 1956, § 26-14)

*State law reference—Meat and Poultry Inspection Law, R.S. 3:4201 et seq.

Sec. 30-1413. Completion of daily operations.

All slaughtering and dressing of animals shall be completed and all offal, refuse, horns, and similar material shall be removed daily not later than 5:30 p.m.; and the tubs, buckets or other receptacles in which they are deposited shall be cleansed and disinfected from time to time as the meat inspector may direct.
(Code 1956, § 26-15)

Sec. 30-1414. Evidence of inspection.

All meats brought into the parish requiring inspection must bear evidence of having undergone previous inspection, i.e., must bear the stamp or certificate of some specially accredited state, municipal or United States official, attesting the fact that the animal has passed both an ante and post-mortem inspection.
(Code 1956, § 26-21)

Sec. 30-1415. Disposition of rejected animals.

All animals condemned and rejected by the meat inspector will remain the property of the butcher, but must be delivered by him immediately upon the order of the inspector for the owner's account to some responsible rendering establishment situated within a reasonable distance from such abattoir or slaughterhouse.
(Code 1956, § 26-22)

Sec. 30-1416. Disposition of condemned meat, etc.

When meats or other products of the abattoir are condemned in a refrigerator or cooler, slaughterhouse, public or private markets or wherever exposed for sale, they shall be removed immediately on the order of the meat inspector and shall at his discretion, by him, be saturated with such chemical agent as will prevent such condemned meat being sold for food.
(Code 1956, § 26-23)

Secs. 30-1417—30-1450. Reserved.

ARTICLE XX. STREET ENTERTAINER*

Sec. 30-1451. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Street entertainer means any natural person who:

(1) Alone or in a group, for the purpose of self-expression or entertainment, performs in public;

(2) Who performs without any set fee, required donation or suggested minimum or maximum donation;

(3) Whose performance does not require interaction between the entertainer and any other person; and

(4) Whose performance does not consist of the rendering of a service or the sale or exchange of tangible personal property to any particular individual, audience member or customer, in exchange for any of the aforementioned payments.

Street entertainer includes but is not limited to brass bands, guitarists, pianists, other musicians, tap dancers, jugglers, mimes, puppeteers, unicyclist, clowns, breakdancers, and comedians.

Street entertainment means any of the following activities performed on the streets or sidewalks of this city for commercial purposes or where donations from the public are solicited or encouraged:

(1) Musical performances;

(2) Dances;

(3) Mime;

(4) Juggling;

(5) Sword swallowing;

***Cross references**—Mayoralty permits required for various callings or occupations or occasions, § 30-69; proof of eligibility for reader permit shall include possession of street entertainment permits, § 30-1286; Jackson Square, § 106-261 et seq.; Vieux Carre, ch. 166.

State law reference—Regulation of street entertainers and imposition of privilege tax by city, authorized, R.S. 4:7.

(6) Magic shows.
(Code 1956, §§ 42-109.1(a), 46-17)

Cross reference—Definitions generally, § 1-2.

Sec. 30-1452. Mayoralty permits required for various callings or occasions; schedule of fees.

Every person who shall desires to use the public streets, sidewalks, or other public places or private places of business establishments for the conduct of any of the businesses or callings set forth in this article shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the river on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 30-1463.
(Code 1956, § 46-1; M.C.S., Ord. No. 21426, § 1, 2-20-04)

Cross reference—Mayoralty permits generally, § 30-66 et seq.

Sec. 30-1453. License required.

Any person wishing to engage in business as a street entertainer shall first obtain a license under this chapter.
(Code 1956, § 46-1)

Sec. 30-1454. Exemptions.

The fee prescribed in this article shall not pertain to persons 17 years of age and under or persons 65 years of age and over.
(Code 1956, § 46-1(42))

Sec. 30-1455. Fee.

The fee for a license under this article shall be $15.00 per year.
(Code 1956, § 46-1(18))

Sec. 30-1456. Use of Bourbon Street restricted.

It shall be unlawful for any person to perform any street entertainment on the street or sidewalk of Bourbon Street from the uptown side of Canal Street to the downtown side of St. Ann Street between the hours of 8:00 p.m. and 6:00 a.m.
(Code 1956, § 42-109.1(b))

Sec. 30-1457. Offense for misuse of permits.

(a) No person, individual, or corporation shall copy, reproduce, or counterfeit, or cause to be copied, reproduced or counterfeited, any permit issued pursuant to section 30-1452 by any form or process, or to otherwise represent something to be a valid permit when it is not.

(b) Whosoever violates the prohibition of this section shall be punished in accordance with the penalty provided for in section 1-13.
(Code 1956, § 46-1.2)

Sec. 30-1458. Fees to go to general fund.

The collector of revenue shall transmit, day by day, as collected by him, to the bureau of the treasury all moneys and fees received for the issuance of the permits required by this chapter. The bureau of the treasury upon the receipt of such moneys and fees shall immediately deposit them in the general fund.
(Code 1956, § 46-5)

Sec. 30-1459. Additional charges for police pension fund.

In addition to the charges shown in the fee schedule for each permit, each applicant shall be required to pay the sum of $0.25 for the account of the police pension fund, which additional sum shall be transmitted by the collector of revenue, day by day, as collected by him, to the chief of bureau of the treasury. At the end of each month the chief of bureau of the treasury shall remit all such sums so collected for account of the police pension fund to the board of trustees, police pension fund.
(Code 1956, § 46-2)

Sec. 30-1460. Obscenity laws to be provided to certain applicants.

The department of finance shall provide a copy of R.S. 14:91.11 relative to sale, exhibition or distribution of material harmful to minors and R.S. 14:106 relative to obscenity to each applicant for a permit under this chapter to conduct live entertainment and to the owner of the premises upon which the live entertainment is proposed to be conducted.
(Code 1956, § 46-2.1)

Sec. 30-1461. Mayoralty permits penalties and interest.

All mayoralty permits must be obtained prior to the occasion for which it is issued. Should applicant fail to secure the permit prior to the occasion, the following penalties and interest shall apply:

(1) Mayoralty permits acquired on a regular yearly basis shall become delinquent February 1 of that year. If the regular yearly permit is not obtained by February 1 of that year, there shall be interest added to the fee at the rate of eight percent per annum from the due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 20 percent of the fee if the failure to obtain said permit is for not more than 30 days and with an additional 20 percent for each additional 30 days or fraction thereof during which the failure continues, not to exceed 60 percent of the amount of the fee.

(2) Mayoralty permits acquired on other than a regular yearly basis shall become delinquent at the start of the occasion. If the permit has not been obtained prior to the occasion, there shall be interest added to the fee at the rate of eight percent per annum from due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 50 percent of the fee.

(3) The director of the department of finance may, at his discretion, for good cause, waive, in whole or in part, any of the penalties provided in this section.

(Code 1956, § 46-15)

Sec. 30-1462. Permits nontransferable.

Permits issued under the authority of this chapter shall be nontransferable and nontransferable either as to individuals, location or item.
(Code 1956, § 46-3)

Sec. 30-1463. Permits valid in the central business district.

The permits shall not be valid in that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south; provided, however, that vendors who have continuously operated the same business within that area under the authorization of this chapter for eight or more years prior to January 1, 1972 may obtain the same number of permits to operate such businesses within that area as the vendor possessed as of January 1, 1972.
(Code 1956, § 46-1.1)

Sec. 30-1464. Penalty.

Persons who fail to obtain a permit or to comply with any of the other regulations contained in this chapter, shall be guilty of a misdemeanor and upon conviction thereof shall be subject to the punishment prescribed in section 1-13. A permittee so convicted shall forfeit such permit and not be entitled to a refund of the fees paid therefor.
(Code 1956, § 46-16)

Secs. 30-1465—30-1485. Reserved.

ARTICLE XXI. TOUR GUIDES AND TOUR PLANNERS*

DIVISION 1. GENERALLY

Sec. 30-1486. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Tour guide means any person duly licensed by the department of public works to conduct one or more persons to any of the city's points of interest and/or historic buildings, parks or sites, for the purpose of explaining, describing or generally relating the facts of importance thereto.

Tour planner means any party selling, scheduling, arranging, or organizing tours to be conducted on the streets, sidewalks, banquettes, or other public ways of the City of New Orleans which does not hold a valid certificate of public necessity and convenience for such activity pursuant to chapter 162 of this Code. An individual tour guide, properly licensed pursuant to this article, engaged in the marketing, selling, arranging, or organizing tours to be personally conducted by that individual tour guide shall not be considered a "tour planner."
(Code 1956, §§ 12-17, 12-18; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 27526, § 1, 9-14-17; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Cross reference—Definitions generally, § 1-2.

Sec. 30-1487. Ethics and conduct.

The department of public works shall promulgate a set of updated rules and regulations establishing a standard of conduct and ethics to be required of all licensed tour guides within 120 days of the date of the adoption of Ord. No. 28624 M.C.S. Until such time as such rules and regulations are promulgated, the standard of conduct and ethics required of all licensed tour guides shall be the set of rules and regulations entitled "Administrative Rule 16-01", adopted by the department of safety and permits (effective September 26, 2016).
(Code 1956, § 12-242; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1488. Distribution of rules and regulations.

The department of public works shall furnish all tour guides with written rules and regulations of conduct and ethics. Every tour company is responsible for distribution of a copy of the rules and regulations to each tour guide. The tour company and individual tour guide may both be cited for violations of the established rules and regulations.
(Code 1956, § 12-241; M.C.S., Ord. No. 21187, § 1, 7-17-03; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1489. Walking tour guide rules and regulations.

(1) Tour guides shall not be allowed to use voice amplifiers on walking tours.

(2) During a tour narration, tour groups shall maintain a distance of 50 feet from another tour group.

(3) Tour groups shall be limited to 28 patrons per tour.

(4) No solicitation by tour guides or tour companies is permitted on the streets in the city.

(5) All tour groups shall be disbanded by 10:00 p.m. nightly. Garden District tours shall be concluded by 6:00 p.m. nightly.
(M.C.S., Ord. No. 21187, § 2, 7-17-03)

Sec. 30-1490. Identification.

Tour guides shall display their city tour guide license at all times. In addition, tour guides must display identification of the name of the company by which they are employed.
(M.C.S., Ord. No. 21187, § 2, 7-17-03)

*__Cross reference—__Courtesy transportation in tour industry, § 162-961 et seq.

Sec. 30-1491. General or attempted noncompliance; penal provisions.

The noncompliance with any mandatory or prohibitory provision of this article shall constitute an offense and a violation of the article. Any person charged with a violation of this article and found guilty of an offense thereof shall be subject to punishment by a fine and/or imprisonment at the discretion of the judge of municipal court not to exceed the maximum penalty provisions as defined in section 54-25. Any person convicted of an attempt to violate the provisions of this article shall be sentenced to not more than one-half the maximum fine and/or imprisonment as defined in section 54-25.
(M.C.S., Ord. No. 28886, § 1, 12-16-21)

Sec. 30-1492. Enforcement.

In accordance with section 4-502(2) of the charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the ground transportation bureau for the purposes of enforcing the provisions of this article. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.
(M.C.S., Ord. No. 28886, § 1, 12-16-21)

Secs. 30-1493—30-1510. Reserved.

DIVISION 2. TOUR PLANNER; LICENSE

Sec. 30-1511. Required, scope.

Pursuant to the requirements below, tour planners are required to obtain a tour planner license from the department of public works, which shall expire on September 30 of each year and must be renewed in the month following expiration subject to the same standards as initial issuance.

(1) *Category 1:* All parties, except CPNC holders, contracting to provide transportation services within the parish in for-hire vehicles through CPNC companies must be licensed by the department of public works as tour planners. A tour planner license does not give the licensee any right to sell sightseeing tours on a per-capita basis unless the permit holder has been granted by written contract the exclusive right to sell per capita tours to a particular convention or conference group, in which case the license holder is authorized to sell sightseeing tours on a per capita basis only to members of that group to whom the party is granted this exclusive right by contract.

(2) *Category 2:* Any person or entity marketing, selling, scheduling, arranging, or organizing tours to be conducted on the public right of way, regardless of whether such tours are conducted by employees, independent contractors, or any other person representing said person or entity, must be licensed by the department of public works as tour planners. Such person or entity is responsible for maintaining compliance with all regulations of this article. Issuance of a tour planner permit does not convey any legal authorization to obstruct pedestrian or vehicular traffic on the streets, sidewalks, banquettes, or other publicly owned right-of-way. Tour planners holding a license under this category are considered a "tour company" for the purposes of this article.

(Code 1956, § 12-234; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 27526, § 2, 9-14-17; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1512. Requirements.

All applicants for tour planner licenses must comply with the following requirements:

(1) The applicant shall maintain a business office within Orleans Parish;

(2) Comprehensive liability insurance must be obtained and maintained in the amount of $300,000.00; and

(3) A fidelity bond in the amount of $10,000.00 shall be secured by the applicant.

(Code 1956, § 12-235; M.C.S., Ord. No. 27526, § 2, 9-14-17)

Sec. 30-1513. Fees.

The fees charged by the department of public works for a tour planner license shall be as follows:

(1) *Category 1 Tour Planner Licenses:*

a. Initial license issuance and annual renewal: $500.00.

(2) *Category 2 Tour Planner Licenses (Tour Company):*

a. Initial license issuance and annual renewal: $1,000.00.

(Code 1956, § 12-236; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 27526, § 2, 9-14-17; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1514. Limitations on solicitation.

Tour companies required to hold licenses from the department of public works pursuant to section 30-1511(2) of this article shall not conduct, condone, encourage, permit, authorize, or allow advertising of tour services in any manner inconsistent with the City Code, including but not limited to the provisions of sections 110-222, 134-121, 146-4, and/or 146-494.

(M.C.S., Ord. No. 27526, § 2, 9-14-17; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1515. Standards for operation on the public right-of-way.

Tour companies required to hold licenses from the department of public works pursuant to section 30-1511(2) of this article, are required to

monitor and maintain compliance with all provisions of this article during tours conducted under its license, including:

(1) Distribution of rules and regulations, pursuant to section 30-1488 of this article.

(2) Monitoring of tour guides associated with each tour company for compliance with the regulations set forth in section 30-1489 of this article.

(3) Identification standards set forth in section 30-1490 of this article.

(4) In addition to identification of the tour guide, as proscribed in section 30-1490 and in subpart (3), above, tour companies are required to provide all tour participants with an identifiable indicator of the company from whom they have secured tour services. This identification may be in the form of a sticker, decal, wristband, or other device, subject to the review and approval of the director of the department of public works.

(5) In addition to the standards explicitly provided in this article, tour companies are required to make all reasonable effort to ensure customers, patrons, employees, independent contractors, and any other individual conducting business with the company do not damage public or private property while conducting or patronizing tours. This standard shall include placement of group identification stickers or decals on any public or private property encountered during or subsequent to a tour.

(6) Failure to maintain compliance with the standards of this section is subject to issuance of an administrative citation by the department of public works, levying of fines by administrative hearing, or the suspension or revocation of the tour planner license, pursuant to division 4 of this article.

(M.C.S., Ord. No. 27526, § 2, 9-14-17; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1516. Exceptions for public benefit.

Tours sold by certified, licensed non-profit organizations for the benefit of a public institution where tours are conducted by volunteers without compensation or remuneration are exempt from the licensing requirements of section 30-1511 through 30-1513 of this article.
(M.C.S., Ord. No. 27526, § 2, 9-14-17)

Secs. 30-1517—30-1550. Reserved.

DIVISION 3. TOUR GUIDE LICENSE*

Sec. 30-1551. Required.

No person shall conduct tours for hire in the parish who does not possess a tour guide license issued by the department of public works.
(M.C.S., Ord. No. 24435, § 1, 6-2-11; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1552. Exception.

Persons conducting tours on animal-drawn vehicles at the time of the passing of the ordinance from which this article was derived shall be exempted from the requirement of a tour guide license.
(M.C.S., Ord. No. 24435, § 1, 6-2-11)

Sec. 30-1553. Requirements.

To be certified as a tour guide by the department of public works, an applicant shall comply with the following requirements:

(1) The applicant must receive a passing score on a written examination administered by the department of public works or their approved testing agency. The written examination shall be designed to test the applicant's knowledge of the historical, cultural, and sociological developments and points of interest of the city.

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*__Editor's note—__M.C.S., Ord. No. 24435, § 1, adopted June 2, 2011, amended div. 3 in its entirety and enacted similar provisions as set out herein. The former div. 3 derived from Code 1956, §§ 12-237—12-240, 12-243; and M.C.S., Ord. No. 21480, § 1, adopted April 1, 2004.

(2) No person who has been convicted of a felony within five years preceding the date of application shall be permitted to receive a tour guide license.

(3) A verbal examination and an interview by applicants may be required at the discretion of the department of public works.

(M.C.S., Ord. No. 24435, § 1, 6-2-11; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1554. Renewal.

All tour guide licenses must be renewed every two years.
(M.C.S., Ord. No. 24435, § 1, 6-2-11)

Sec. 30-1555. Reserved.

Editor's note—M.C.S., Ord. No. 28624, § 1, adopted March 11, 2021, repealed § 30-1555, which pertained to revalidation and derived from M.C.S., Ord. No. 24435, § 1, adopted June 2, 2011.

Sec. 30-1556. Identification.

All applicants certified by the department of public works as tour guides shall be issued a certificate and an identification badge by the department. The identity badge must be worn at all times when conducting tours.
(M.C.S., Ord. No. 24435, § 1, 6-2-11; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1557. Fees.

The tour guide license fees charged by the department of public works shall be as follows::

(1) Initial license . . . . . $ 50.00

(2) Renewal 20.00

(M.C.S., Ord. No. 24435, § 1, 6-2-11; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Secs. 30-1558—30-1580. Reserved.

DIVISION 4. SUSPENSION OR REVOCATION OF LICENSE

Sec. 30-1581. Grounds.

Tour guide licenses may be either suspended or revoked by the director of the department of public works for the following causes:

(1) Violations of rules and regulations of conduct and ethics established pursuant to section 30-1487;

(2) Nonpayment of fees; or

(3) Issuance of a permit on the basis of false and/or incomplete information furnished by the applicant.

(Code 1956, § 12-244; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1582. Notice and hearing.

The director of the department of public works or a duly designated agent may suspend a tour planner or tour guide license only after notice in writing mailed by certified letter to the licensee's last recorded address not less than ten days prior to the date of the hearing notifying the party involved that a hearing will be conducted; the convocation of such hearing; and written reasons for the suspension by the director of the department of public works.
(Code 1956, § 12-247; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1583. Appeal to committee.

Persons who have had their license issued under this division suspended have the right, within ten days of such decision, to make a written request for another hearing for reconsideration before a committee to be selected by the director of the department of public works. Such hearing for reconsideration must be convened within two weeks after receipt of written request.
(Code 1956, § 12-248; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1584. Notice and hearing before revocation.

The director of the department of public works or his duly designated agent may revoke a tour planner or tour guide license only after notice in writing mailed by certified letter to the licensee's last recorded address not less than ten days prior to the date of the hearing, notifying said party that a hearing will be conducted; the convocation of said hearing in accordance with the procedural guidelines established in La. R.S. 49:951 et seq.; the presentation of the charges; and the opportunity given to the person involved to present a defense.
(Code 1956, § 12-245; M.C.S., Ord. No. 21480, § 1, 4-1-04; M.C.S., Ord. No. 28624, § 1, 3-11-21)

Sec. 30-1585. Appeal to council.

Persons who have been denied a tour planner or tour guide license, or who have had their licenses revoked, may appeal to the council within ten days after such denial or revocation.
(Code 1956, § 12-246)

Secs. 30-1586—30-1610. Reserved.

ARTICLE XXII. TRASH HAULERS*

DIVISION 1. GENERALLY

Sec. 30-1611. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Industrial oil means any compressor, turbine, bearing, hydraulic, metal-working or refrigeration oil.

Lubricants means industrial and lubrication oils collectively.

Lubricating oil means any oil intended for use in an internal combustion engine, crankcase, transmission, gearbox, or differential of an automobile, bus, truck, vessel, airplane, heavy equipment or machinery powered by an internal combustion engine.

Recovered materials means those nonhazardous materials which have known recycling potential, can be feasibly recycled, and have been directed or removed from the solid waste stream for sale, use, or reuse, by separation, collection, or processing.

Recyclable materials means those nonhazardous materials which are capable of being recycled and which would otherwise be processed or disposed of as nonhazardous solid waste.

Recycled means any process by which nonhazardous solid waste or materials which would otherwise become solid waste, are collected, separated, or processed and recused or returned to use in the form of raw materials or products.

Septic waste means any effluent or putrefied and decomposed waste matter removed from a septic tank.

Solid waste means any garbage, refuse, sludge, and other discarded material, including those in a solid, liquid or semisolid state resulting from residential, community, or commercial activities. As used in this article, the term "solid waste" shall not include mining, agricultural, special and industrial wastes, or hazardous and infectious wastes. It also does not mean or include solid or dissolved material in domestic sewage or solid or dissolved materials in irrigation return flows or industrial discharges which are point sources subject to permits under R.S. 30:2074, or source, special nuclear or by-product material as defined by the Atomic Energy Act of 1954 (42 U.S.C. 2011 et seq.), as amended, or hazardous waste subject to permits under R.S. 30:2074. It also does not mean to include or mean recovered materials or uncontaminated scrap metal materials which are purchased for resale to be recycled or reused and are not destined for disposal.

Used oil means spent lubricating oils or industrial oils and any nonfuel oil that has been refined from crude oil, and as a result of use, storage, or handling, been contaminated with

*__Cross reference__—Solid waste, ch. 138.
__State law reference__—New Orleans regional recycling and resource recovery authority, R.S. 33:8052 et seq.

physical or chemical impurities and has become unsuitable for its original intended purpose due to the presence of impurities or loss of original properties, but which may be suitable for further use and is economically recyclable. This definition does not include oil filters, oil rags, other nonrecyclable material, hazardous wastes or material used as a downhold additive or fluid in the production of oil and gas.

Vehicle means an automobile, motorcycle, truck, trailer, semitrailer, or any truck, tractor and semitrailer combination, or any other vehicle operated on the roads of this parish except bicycles and mopeds, used to transport persons or property and propelled by power other than muscular power.

Waste tire means a previously used or spent continuous or pneumatic rubber covering designed to encircle the wheel of a vehicle.

White goods means inoperative and discarded refrigerators, ranges, water heaters, freezers, and other similar domestic and commercial large appliances.
(Code 1956, § 29-201)

Cross reference—Definitions generally, § 1-2.

Sec. 30-1612. Statement of purpose.

It is important to the health and sanitary condition of the city and its inhabitants that the transportation of solid waste and/or nonhazardous substances be permitted and regulated pursuant to chapter 12, section 4-1202, of the city charter.
(Code 1956, § 29-200)

Sec. 30-1613. Enforcement.

(a) Failure of any person to comply with any of the provisions of this article, or of the terms and conditions of any permit granted, constitutes a violation.

(b) When the department of health determines that a violation of this article, or the terms and conditions of any permit issued under this article, has occurred, it shall initiate suspension or revocation proceedings.

(c) The department of health may also impose fines and/or hearing costs in addition to the suspension and revocation procedures established in this article.

(d) The following are grounds for the suspension or revocation of the permits and/or the fining of the permittee:

(1) Illegal disposal of any of the substances delineated in section 30-1636 will automatically result in revocation of a permit.

(2) Lack of a covering for noncontainerized or open-bodied vehicles as required by section 30-1676.

(3) Failure to maintain a leak-resistant body for enclosed or containerized vehicles as required by section 30-1676.

(4) Failure to have a required manifest.

(5) Transporting any of the substances delineated in section 30-1636 in violation of state law or this article.

(6) Unsanitary conditions of vehicles.
(Code 1956, § 29-210)

Secs. 30-1614—30-1635. Reserved.

DIVISION 2. PERMIT

Sec. 30-1636. Required.

Persons or businesses that transport industrial oil, lubricating oil, lubricants, recovered materials, recyclable materials, septic waste, solid waste, waste tires, used oil and/or white goods shall secure a permit and decal for each transporting vehicle subject to the requirements contained in this article.
(Code 1956, § 29-202)

Sec. 30-1637. Prohibited operation.

It shall be illegal for any person to contract for or contract with or engage in the transportation of solid waste or any other substances coming under this article who is not a legally permitted transporter under this division.
(Code 1956, § 29-204(E))

Sec. 30-1638. Types of permits.

There shall be two types of permits issued:

(1) *Temporary permits.* Permits issued by the department of health to applicants and which allow transportation of solid waste or any other substances delineated in section 30-1636 only for a limited period while a standard permit application is being processed.

(2) *Standard permits.* Permits issued by the department of health to applicants that have successfully completed the standard permit application and inspection process and which grant permission for the transportation of solid waste or any other substances delineated in section 30-1636.

(Code 1956, § 29-203)

Sec. 30-1639. Application process.

(a) Each applicant requesting a permit pursuant to this division shall complete a standard application form prepared by the department of health including, but not limited to, the following information:

(1) The name of the person who is applying for the permit; and if a corporation, the names of all officers of the corporation; and if a partnership, the names of all partners;

(2) The legal and business address and telephone number of the applicant and contact person associated with the applicant;

(3) The location of the business;

(4) A description of each vehicle which will be used by such applicant for the transportation of solid waste and/or any other substance delineated in section 30-1636, including the make, model, year, license number, and name of registered owner if different from that of the applicant;

(5) Such other information deemed necessary by the department of health to fulfill its processing, inspection and enforcement obligations under this article.

(b) The applicant must certify that all information provided in the application is true and correct.

(Code 1956, § 29-206(A), (B))

Sec. 30-1640. Fees.

Each applicant for a permit under this division shall submit a nonrefundable application fee in the amount specified, according to the categories listed below. The appropriate fee must accompany the permit application.

(1) Transporter of recyclable materials, recovered materials, waste tires, white goods:

a. With capacity of three-quarter-ton capacity or less, $50.00 per vehicle;

b. Over three-quarter-ton capacity, $75.00 per vehicle.

(2) Transporter of septic waste, solid waste, used oil, industrial oil, lubricating oil, lubricants, $100.00 per vehicle, regardless of capacity.

(Code 1956, § 29-207)

Sec. 30-1641. Insurance.

Before a decal will be issued or reissued under this division, the applicant must submit to the department of health proof of current general liability insurance coverage as required by state law for each vehicle that will be used for the transportation regulated in this article.

(Code 1956, § 29-206(C))

Sec. 30-1642. Brake tag.

Each vehicle used under this article must have a current brake tag and current license plate before a decal will be issued by the department of health.

(Code 1956, § 29-206(D))

Sec. 30-1643. Equipment.

Vehicles will be inspected prior to issuance of any permit or decal and prior to reissuance of any permit or decal annually to ensure that any solid waste and/or other substances delineated in section 30-1636 are contained and/or that a

covering is provided with each vehicle to prevent leakage, spillage or seepage of such substances. Vehicles shall be maintained in a cleaned condition.
(Code 1956, § 29-206(E))

Sec. 30-1644. Denial, appeal.

Any applicant who has been denied a permit under this division shall be notified in writing of such denial and the reasons therefor. Within ten days of the mailing of the notice of denial, such denied applicant may appeal the denial by submitting a written request for appeal to the director of the department of health or his designated representative. Within 30 days of the receipt of the request for appeal, a hearing on such appeal shall be held. The written decision of the director of the department of health, or his designated representative, is final unless appealed to the civil district court for the parish within 30 days of the director's or his designated representatives written decision.
(Code 1956, § 29-206(F))

Sec. 30-1645. Suspension or revocation.

(a) The department of health may review a permit at any time. If the department determines that the permittee has violated any provisions of this article it may initiate proceedings to fine the permittee and/or to suspend or revoke the permits issued under this division. Such hearings shall be held in accordance with chapter 6.

(b) The decision of the administrative hearing officer shall be final unless appealed to the civil district court for the parish, pursuant to section 6-40 and within 30 days of the hearing officer's order.
(Code 1956, § 29-205)

Sec. 30-1646. Duration.

A temporary permit shall be valid for 90 days. A standard permit shall be valid for one year from the date of issuance unless revoked. Applications for renewals shall be submitted at least 30 days prior to the date of expiration or upon request by the department of health.
(Code 1956, § 29-204(A))

Sec. 30-1647. Transfer.

Permits issued pursuant to this division are assigned only to the permittee and cannot be transferred, sublet, leased, or assigned to another person, without prior written approval of the department of health.
(Code 1956, § 29-204(B))

Sec. 30-1648. Decals.

Decals shall be issued for each vehicle represented by the permittee to be used for the transportation of solid waste and any other substances delineated in section 30-1636.
(Code 1956, § 29-204(C))

Sec. 30-1649. Changes.

It shall be the duty of each permittee to notify in writing the department of health of any changes in the information contained in the application for the permit issued under this division, or any information which may be relevant to the conduct of business under such permit.
(Code 1956, § 29-204(D))

Secs. 30-1650—30-1675. Reserved.

DIVISION 3. OPERATING REQUIREMENTS

Sec. 30-1676. Vehicle requirements.

(a) The type and size of vehicles operated under this article shall comply with the regulations and licensing of the department of transportation and development and with other applicable local ordinances governing weight and size for the streets that must be traveled.

(b) The bodies of vehicles used to transport septic waste, solid waste, recovered materials, recyclable materials, waste tires and white goods shall be covered at all times, except during loading and unloading, in a manner that prevents rain from reaching waste, inhibits access by rodents and insects, prevents waste from spilling, leaking, falling or blowing from the vehicle, minimizes escape of odors and does not create a nuisance.

(c) The bodies of containerized vehicles used for the transportation of industrial oil, lubricating oil, and used oil shall be leak-resistant and covered so as to prevent leakage, spillage or emissions.

(d) The bodies of all vehicles used to transport solid waste that produces leachate shall be equipped with a collection and containment system to ensure that leachate from the waste is not discharged in violation of state regulations.

(e) The interior and exterior of the body of all vehicles regulated in this section shall be maintained in a sanitary condition.
(Code 1956, § 29-209)

Sec. 30-1677. Manifests.

Transporters of waste tires must provide manifests that comply with state law, including but not limited to section 10519 of the Louisiana Administrative Code, Title 33, Part VII and R.S. 30:2411—30:2422.
(Code 1956, § 29-208(A))

Sec. 30-1678. Approved disposition of waste tires.

Transporters of waste tires shall deliver waste tires in this state only to a permitted collection or processing facility as required by state law, including but not limited to R.S. 30:2418.
(Code 1956, § 29-208(B))

Sec. 30-1679. Waste tire transporter vehicle standards.

The type and size of vehicles used in the transportation of waste tires shall comply with the regulations and licensing of the state department of transportation and development and with applicable local ordinances governing weight and size for the streets that must be traveled.
(Code 1956, § 29-208(C))

Sec. 30-1680. Inspections.

All vehicles regulated under this division are subject to inspection by the department of health.
(Code 1956, § 29-208(D))

Secs. 30-1681—30-1700. Reserved.

ARTICLE XXIII. FILM PRODUCTION

DIVISION 1. GENERALLY

Sec. 30-1701. Purpose.

This article sets forth comprehensive standards governing filming in the City of New Orleans, as further defined herein. The purpose of this article is to balance the facilitation of the work of the film and entertainment industry in the city and the economic development opportunities it provides against the needs of the city to provide adequate city services and access to city properties, as well as the health, safety, and welfare of the city's residents and the public at-large.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1702. Definitions.

Except as otherwise expressly provided in this article, the following terms and their variant forms shall mean the following:

Applicant means the individual applying for a permit who must be legally authorized to bind the producer.

Film location means a specific place where filming will occur.

Film location permit means a permit issued by the film office that authorizes filming and specified associated activities at a specified film location.

Film office means the division of the Mayor's Office of Cultural Economy, or its successor, or the city office otherwise in charge of reviewing and issuing permits and regulating filming in the City of New Orleans.

Film permit means the master permit issued by the film office that authorizes a production or individuals to film in the city pursuant to a film location permit or a small film project permit.

Film project means an overall endeavor that involves filming at a variety of locations within the City of New Orleans.

Filming means creating motion picture images, including the on-site or on-location pre- and post-production activities associated therewith.

Filming does not include activities performed as part of documenting current affairs or producing news broadcasts.

Filming permits means film permits, film location permits, and small film project permits.

Neighborhood filming notification means the notice proposed by the applicant and approved by the film office which meets the requirements of this article.

Producer means an individual, organization, corporation or other entity that is ultimately responsible for the filming that is the subject of the application and the permit.

Production preparation means on-site or on-location pre-production activities.

Small film project permit means a permit issued by the film office to authorize filming under certain specified conditions.

Vieux Carré is the area bounded by Iberville Street, North Rampart Street, Esplanade Avenue, and the Mississippi River.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1703. Authority of the film office.

(a) The film office is authorized to approve the following activities for filming purposes in accordance with this article, notwithstanding any requirements contained elsewhere in this Code, and after consultation with and approval by the department of public works:

(1) The use of parking lanes;

(2) The closure of a city street or other public right-of-way;

(3) Intermittent traffic control; and

(4) Simulated gunfire or explosions.

(b) The film office is authorized to permit signage regarding temporary parking or right-of-way restrictions in accordance with this article, notwithstanding any requirements contained elsewhere in this Code or in the comprehensive zoning ordinance.

(c) All filming permits required under the provisions of this article are issued at the discretion of the film office. When determining whether to issue filming permits the film office shall prioritize the health, welfare and safety of the public but shall not consider the content of the film project. The film office may require changes to a film locations, or approve or deny alternate arrangements for parking, parking lane clearance, sidewalk or street closures, intermittent traffic control, or condor or equipment placement in order to preserve the quality of life, health, safety, or welfare of the affected community and the public at-large.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1704. Film permit required.

(a) A film permit is the master permit that defines the film project plan and instructs what additional permits or permissions are required in accordance with this Code. A film permit is required to obtain any film location permit, or other permit or permission required by this article.

(b) No film project shall conduct filming or otherwise engage in film production preparation or similar business on public property without a film permit.

(c) A film permit is a regulated privilege, not a right, and can be revoked or suspended by the city in accordance with law.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1705. Film location permits required; other location requirements.

(a) A film location permit is required for any filming that involves:

(1) Reserving parking on the public right-of-way;

(2) Controlling the public right-of-way;

(3) Filming in public parks or greenspaces;

(4) Filming on any other city property; or

(5) Simulating gunfire or explosions.

(b) A film location permit shall not be issued unless a film permit for the film project has been issued.

(c) A separate film location permit is required for each film location. Whether a film location is a separate film location for purposes of this section shall be determined by the film office, in accordance with its rules and regulations.

(d) A concession agreement or other legal permission may be required for the use of certain city property, as established by the film office in its rules and regulations in consultation with the department of property management.

(e) Parking meter rentals or parking space reservations as specified herein may be required in addition to a film location permit.

(f) A film location permit is a regulated privilege, not a right, and can be revoked or suspended by the city in accordance with law.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1706. Small film project permit.

(a) A small film project permit is required for a film project that does not obstruct the public right-of-way.

(b) A small film project permit is a regulated privilege, not a right, and can be revoked or suspended by the city in accordance with law.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1707. Application fees and permit fees.

(a) Permit application fees and permit fees required by this article shall be paid by the applicant at the time of filing of the application, and at the time of issuance of the permit, respectively, in accordance with the following schedule:

	Application Fee	*Permit Fee*
Film Permit	$25.00	$500.00
Film Location Permit	$25.00	$25.00
Small Film Project Permit	No Fee	No Fee

(b) The applicant shall obtain all other permits and approvals as may be required by this Code or applicable law. Notwithstanding the foregoing or any other provisions of this Code to the contrary, the following fees shall apply to film projects only, and no other fees shall apply beyond those specified in this section:

(1) *Meter rental application fee:* $40.00 per application. An application may include multiple days and meters.

(2) *Meter rental fees:*

a. Parking meters located in the area bounded by Calliope Street, Claiborne Avenue, Esplanade Avenue and the Mississippi River: $20.00 per meter per day, regardless of the number of parking spaces covered by the meter.

b. Parking meters located elsewhere in the city: $17.00 per meter per day, regardless of the number of spaces covered by the meter.

(3) *Meter removal application fee:* $40.00 per application. An application may include multiple days and meters.

(4) *Meter removal fee:* $305.00 per meter, regardless of the number of spaces covered by the meter.

(5) *Meter bagging application fee:* $25.00 per application. An application may include multiple days and meters.

(6) *Meter bagging fee:* $45.00 per meter, regardless of the number of parking spaces covered by the meter.

(7) *Parking permits:*

a. Blocks located in the area bounded by Calliope Street, Claiborne Avenue, Esplanade Avenue and the Mississippi River:

i. Period up to seven calendar days, inclusive: $175.00 per block.

ii. Period up to 30 calendar days, inclusive: $675.00 per block.

b. Blocks located elsewhere in the city:

i. Period up to seven calendar days, inclusive: $150.00 per block.

ii. Period up to 30 calendar days, inclusive: $350.00 per block.

c. Parking permits for a duration longer than 30 days shall require a separate application.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

DIVISION 2. FILMING PERMITS

Sec. 30-1708. Film permit application requirements.

(a) The film permit application shall be on forms created by the film office, and shall, at a minimum, require the following information:

(1) Name, address, phone number, and email address of each of the applicant and producer.

(2) Name of studio or production company and local production office address.

(3) Title of film project and type of production.

(4) Production preparation and filming start and end dates, and wrap date.

(5) A signed attestation that each of the applicant and the producer has read, understands, and agrees to comply with the provisions of this article, including section 30-1719, and all applicable laws.

(6) A signed attestation that the producer agrees to defend, indemnify, and hold harmless the city from all actions, claims, costs, damages, and expense to which the city may be subject by reason of any injury or alleged injury to any persons and property resulting or alleged to result from any activity, condition, or event arising out of the filming.

(b) At the time of the application for, and prior to issuance of any film permit pursuant to this article, the applicant shall provide a certificate of insurance certifying commercial general liability insurance coverage. At the time of the application for, and throughout the period of validity of the film permit, the insurance coverage must be in full force and effect. Such insurance coverage shall provide liability coverage of not less than $1,000,000 per occurrence. The certificate of insurance must name the City of New Orleans as an additional insured and specifically list "the City of New Orleans and all of its agents and departments" as the certificate holder; and must show the city's address as 1300 Perdido St., New Orleans, LA 70112. The producer shall notify the film office in writing at least 30 days before coverage is substantially changed, cancelled, or not renewed.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

[Sec. 30-1709. Reserved.]

Sec. 30-1710. Film location permit application requirements.

(a) The film location permit application shall be on forms created by the film office, and shall, at a minimum, require the following information from applicants:

(1) Number of the film permit issued per section 30-1704 for the film project that is associated with the film location permit application.

(2) Name, address, phone number, and email address of the applicant.

(3) Location that is the subject of the application, including cross streets and municipal addresses, as applicable.

(4) Start and end dates and total number of days required at this location.

(5) Whether the applicant requests the reservation of parking spaces, street or sidewalk closures, intermittent traffic control, or use of simulated gunfire or explosives, including cross streets and municipal addresses, and description of traffic control needs, as applicable.

(b) At the time of the application for, and prior to the issuance of any film location permit, the applicant shall provide the following documentation to the film office:

(1) A schematic depicting the requested parking, cleared parking lanes, sidewalk

closures, street closures, intermittent traffic control, and placement of any condors or other equipment.

(2) A copy of the proposed neighborhood notification required pursuant to section 30-1712.

(3) Any location specific checklist as required by the film office in accordance with its rules and regulations, including but not limited to, the Jackson Square Filming Checklist, if applicable.

(4) Noise variance waiver, per section 30-1715, if applicable.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1711. Film location permit application deadlines.

The film office shall deny the issuance of a film location permit if the application, complete with all required information and documentation, is not submitted in accordance with the following deadlines:

Permit Effective Period	*Permit Application Deadline*
Five or fewer days	No later than four business days before the date of the first day of the permit effective period.
Six or more days	No later than six business days before the date of the first day of the permit effective period.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

DIVISION 3. ADDITIONAL FILMING REQUIREMENTS AND RESTRICTIONS

Sec. 30-1712. Neighborhood filming notification required.

(a) Prior to obtaining a film location permit, the applicant shall distribute a neighborhood filming notification approved in advance by the film office. Failure to distribute this notification in accordance with this section may result in revocation or suspension of the film location permit or the film permit, and other enforcement action permissible by law.

(b) The neighborhood filming notification must include the name, email address, and telephone number of the location manager(s), or similar personnel, and contact information for the film office.

(c) The producer shall ensure the neighborhood filming notification is provided to each business and residence immediately adjacent to the permitted location (e.g., the reserved parking or the closed street), and within one additional block in each direction of the permitted location at least 72 hours in advance of any production preparation at the location.

(d) The neighborhood filming notification shall be hand delivered, or secured to a door, mailbox, fence, or front porch; it shall not be placed in mailboxes.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1713. No parking signage required.

The producer shall ensure official City of New Orleans "No Parking" signs are posted in the parking area subject to the film location permit at least 48 hours in advance of any production preparation at the location, and include the following:

(1) A statement that "Parking is restricted by Sec. 154-979 of the Code of the City of New Orleans;"

(2) The dates and times of the restricted parking per the film location permit.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1714. Signage removal.

The producer shall ensure all signage required by this article or otherwise used in filming is removed upon the earlier of the completion of filming activities at the location or expiration of the film location permit. Any signage remaining within ten days of the expiration of the film location permit shall be deemed in violation of section 134-121 of this Code and subject to any applicable penalties.

(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1715. Simulated gunfire and explosions.

(a) Simulated gunfire or explosions related to filming may not take place except in accordance with an issued film location permit.

(b) Approval for simulated gunfire or explosions is granted at the discretion of the film office in accordance with its rules and regulations, and with approval of the fire department.

(c) The film office shall permit only one-quarter rounds of simulated gunfire.

(d) If the use of simulated gunfire or explosions will occur after 10:00 p.m. or before 7:00 a.m., the applicant shall obtain a noise variance waiver from the health department, in accordance with section 66-177 of this Code, prior to the issuance of a film location permit.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1716. Condors, scissor lifts, and other large equipment use.

(a) Condors, lifts, or other large equipment may not be used in the public right-of-way except in accordance with an issued film location permit.

(b) Condors, lifts, or other large equipment used in the public right-of-way may not exceed 14 feet in width, including supporting extensions, and 80 feet in height.

(c) Use in the public right-of-way of condors, lifts, or other large equipment which exceed the foregoing dimensions may be as permitted at the discretion of the film office, provided, however that closure of the street including related fees, shall be required as part of such film location permit.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1717. Parking restrictions and requirements.

(a) The producer shall ensure parking associated with the film project is permitted pursuant to one or more film location permits and adheres to the following provisions:

(1) Personal vehicles of crew members or production personnel, etc. are parked a minimum of three blocks from the area permitted by a film location permit, or in a lot secured for the purpose of parking these vehicles.

(2) Adjacent businesses are notified of the film project's use of loading, passenger, or taxicab zones.

(b) The film office may require, in accordance with its rules and regulations, the film location permit include one block of parking adjacent to the permitted parking area for resident vehicles. The producer shall ensure that signage reading "No Crew Parking / Resident Parking Only" is posted in these areas.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1718. Vieux Carré filming restrictions and requirements.

(a) Vehicles and trucks larger than 36 feet in length are strictly prohibited in the Vieux Carré, except that the film office may allow larger vehicles on Esplanade Avenue, North Rampart Street, or Decatur Street provided the use is included in a film location permit.

(b) Mardi Gras or carnival floats are prohibited in the Vieux Carré, except that the film office may allow floats to be staged for filming on Esplanade Avenue, North Rampart Street, or Decatur Street included in the film location permit, provided that such floats have all inspections and fire safety certificates required under chapter 34 of this Code.

(c) The film office may issue a film location permit for a maximum of two blocks in the Vieux Carré for parking equipment or vehicles less than 36 feet in length, and two blocks of clearance for filming. If additional parking is required for a catering truck, or similar vehicle, only one additional half of a block may be permitted at the discretion of the film office.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1719. Acknowledgement in film credits.

Permitted film projects must include an acknowledgement of the cooperation and support

of the City of New Orleans and the film office, including the official logos for both the city and the film office, in the final credits of the film.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1720. Regulations.

Pursuant to section 2-1000 of this Code, the film office shall promulgate rules and regulations in accordance with the provisions contained in this article and such other rules and regulations as may be necessary for the purpose of implementing the provisions contained herein.
(M.C.S., Ord. No. 29899, § 1, 5-2-24, eff. 6-1-24)

Sec. 30-1721. City participation in programs featuring first responders.

(a) The city shall not enter into any agreement authorizing or related to the filming or production of a motion picture, documentary, television program, reality show, or other media production that features first responders engaged in the course and scope of their official duties. For the purposes of this section, first responder means any full or part-time city employee whose duties include responding rapidly to an emergency and includes the following: peace officers, fire protection personnel, emergency medical services personnel, or an emergency response operator or services dispatcher who provides communication support services for an agency by responding to requests for assistance in emergencies. No first responder may be compelled to participate in a film or production subject to the prohibition in this section.

(b) Nothing herein shall be deemed to prohibit or restrict journalistic coverage of emergency situations or other constitutionally protected expressive activities occurring in public areas.
(M.C.S., Ord. No. 30508, § 1, 11-6-25, eff. 1-1-26)

Secs. 30-1722—1730. Reserved.

Chapters 31—33

RESERVED

Chapter 34

CARNIVAL, MARDI GRAS*

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***Editor's note—**M.C.S., Ord. No. 19,314, § 1, adopted July 15, 1999, amended ch. 34 in its entirety and enacted similar provisions as herein set out. The former ch. 34 derived from §§ 12A-1—12A-8, 12A-10—12A-13, 12A-16, 12A-17, 12A-20, 12A-21, 12A-25—12A-33, 12A-36, 12A-37, 38-286.72, 38-286.73, 46-1—46-5, 46-14—46-16 of the 1956 Code as amended by M.C.S., Ord. No. 16,461, § 1, adopted Apr. 21, 1994; M.C.S., Ord. No. 17,041, § 1, adopted May 18, 1995; M.C.S., Ord. No. 17,146, §§ 1, 2, adopted Aug. 8, 1995; M.C.S., Ord. No. 17,416, § 1, adopted Feb. 1, 1996; M.C.S., Ord. No. 17,475, §§ 1, 2, adopted Apr. 3, 1996; M.C.S., Ord. No. 17,521, §§ 1, 2, adopted May 2, 1996; M.C.S., Ord. No. 17,755, § 1, adopted Sept. 19, 1996; M.C.S., Ord. No. 18,026, § 1, and M.C.S., Ord. No. 18,027, § 1, adopted Jan. 23, 1997; M.C.S., Ord. No. 18,277, § 1, adopted June 19, 1997; M.C.S., Ord. No. 18,432, § 1, adopted Sept. 18, 1997; M.C.S., Ord. No. 18,725, § 1, adopted June 4, 1998; M.C.S., Ord. No. 18,775, § 1, adopted July 1, 1998; M.C.S., Ord. No. 18,939, § 1, adopted Oct. 15, 1998; M.C.S., Ord. No. 19,241, § 1, and M.C.S., Ord. No. 19,255, § 1, adopted June 3, 1999; M.C.S., Ord. No. 19,309, § 1, adopted July 1, 1999.

Cross references—Mardi Gras as a legal holiday, § 2-4; amusements and entertainments, ch. 14; dances and balls, § 14-121 et seq.; permission and license tax required for giving a ball in the city, § 14-125; discrimination in public accommodations and club membership, § 86-81 et seq.; blue ribbon committee on carnival, Mardi Gras, § 86-86; peddlers, solicitors and itinerant vendor regulations, ch. 110; streets, sidewalks and other public places, ch. 146; sales and use tax, § 150-441 et seq.; alcoholic beverage special event permits, § 10-52.

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ARTICLE I. IN GENERAL

Sec. 34-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Carnival organization means a nonprofit corporation organized under the laws of the state for the sole purpose of creating, staging and presenting carnival parades, truck parades or marching club parades.

Carnival parade means a parade staged during the carnival parade season conducted by a nonprofit carnival organization consisting of floats, minifloats, and marching organizations.

Carnival parade season means that period beginning with the second Friday before Mardi Gras Day and continuing through Mardi Gras Day, both inclusive.

Elements in a parade shall mean any marching band, military band, dance club, walking club, riding club, or dance troupe in a carnival float parade larger than a group of 15 participants, not including chaperones, helpers, support vehicles, and public safety vehicles.

Fire watch means privately paid uniformed New Orleans Fire Department personnel subject to the fire official's orders at all times when so employed. The term "fire watch personnel" shall be synonymous with "fire watch", "standby personnel", "standby firefighter" or similar term.

Flambeaux means supplemental parade lighting consisting of burners mounted to a pole with an open flame which burns Class II combustible liquid fuel or propane or butane liquid compressed gas.

Flambeaux contractor means an individual or business entity that owns flambeaux and is retained by carnival organizations to provide the actual flambeaux, the stick men, flambeaux carriers, fuel and control over all flambeaux operations.

Flambeaux safety guidelines means section 34-24(9).

Float means vehicles with platforms used to carry maskers. Floats shall be not less than 23 feet long, nor less than nine feet wide, and not more than 17 feet ten inches high, exclusive of animation which shall not exceed 17 feet ten inches in its lowest position and 20 feet in its highest position, measured from the street level.

Marching band means a group of musicians that marches together while playing instruments and is officially sanctioned by a middle, junior, or high school, a college or university, or a youth-focused non-profit organization that is composed of no fewer than 30 participants. A *marching band* also means an officially sanctioned military marching band regardless of the number of participants.

Marching club parade means a parade staged during carnival parade season conducted by a nonprofit carnival organization which consists entirely of marching participants and specifically does not contain floats or minifloats.

Minifloat means a vehicle less than 23 feet long which may or may not have a platform used to carry maskers.

Night parade means any parade beginning at 5:15 p.m. or later.

Parade property truck means a truck provided by the float builder containing tools and other equipment needed for float maintenance.

Pendency of a parade means the immediate four hours before a parade leaves its starting point.

Pull unit means a single tractor or mule pulling a float or tandem float during a carnival parade.

Stick man means an individual hired by the flambeaux contractor to supervise no more than 15 flambeaux carriers.

Pre-parade party means an activity consisting of music employing sound amplification equipment performed by a disc jockey or live performer(s), conducted by a carnival organization, which begins and ends prior to the arrival of the first vehicle of a carnival parade within 120 yards of the activity.

Tandem float means two or more floats, not more than 215 feet in length, attached to one another and pulled by a single tractor or other vehicle.

Truck parade means a parade which consists entirely of self-propelled decorated trucks.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25813, § 1, 4-14-14; M.C.S., Ord. No. 25988, § 1, 8-14-14; M.C.S., Ord. No. 28304, § 1, 1-30-20; M.C.S., Ord. No. 30002, § 1, 7-25-24)

Cross reference—Definitions generally, § 1-2.

State law reference—Carnival organization, defined, R.S. 33:4861.4(C)(1).

Sec. 34-1.1. Task force established.

(a) A task force shall be established to advise the [city] council regarding issues concerning the preservation of the Second-Line, Mardi Gras Indians, Social Aid and Pleasure Clubs and spontaneous funeral procession cultural traditions as follows:

(b) The Second-Line and Mardi Gras Indian Cultural Preservation Task Force is charged with making recommendations to the council by vote. The Second-Line and Mardi Gras Indian Cultural Preservation Task Force, designed to protect and preserve the cultural institutions of Second-Lining, Mardi Gras Indians, Social Aid and Pleasure Clubs and spontaneous funeral processions in New Orleans, shall be comprised of 11 members chosen by the criminal justice committee of city council and shall include representation from appropriate neighborhood organizations and city departments. A copy of the minutes of all meetings shall be sent to the Council of the City of New Orleans. The Second-Line and Mardi Gras Indian Cultural Preservation Task Force shall have no legislative powers of its own but shall be an advisory body to the Council of the City of New Orleans concerning the matters with which it is charged, and the Council of The City of New Orleans will receive and consider the committee's recommendations regarding the protection and preservation of the cultural institutions of Second-Lining, Mardi Gras Indians, Social Aid and Pleasure Clubs and spontaneous funeral processions.

(c) Pursuant to section 4-104 of the Home Rule Charter of the City of New Orleans, the mayor's Mardi Gras advisory council shall be comprised of a representative of each carnival organization which paraded in the previous year. It shall make recommendations to the Mayor of the City of New Orleans regarding issues concerning the preservation and safety of carnival parades as follows:

(1) Recommendations shall be approved by vote of the majority.

(2) If an applicant for a carnival parade permit did not paraded in the previous carnival parade season, the advisory council shall make a recommendation to the mayor regarding whether or not the permit should be granted. Before submitting the application, an applicant for the permit shall make a presentation to the advisory council, except that no presentation shall be required if the applicant's carnival parade in the previous carnival season was canceled due to force majeure or an event that the applicant could not evade through the exercise of due care, including inclement weather or strike.

(d) The mayor's Mardi Gras advisory council shall formally transmit its recommendation regarding which carnival organizations should parade to the clerk of council by June 15th of the calendar year immediately preceding the year in which the carnival parade is to be presented.

(1) The mayor's Mardi Gras advisory council shall ensure its recommendation complies with the limitations of section 34-2(4) of this Code.

(e) The aforementioned task force and advisory council established under this section are subject to the open meeting laws and public records laws as stated in R.S. 42:1 et seq. and R.S. 44:1 et seq.
(M.C.S., Ord. No. 22941, §§ 1—3, 12-20-07; M.C.S., Ord. No. 25813, § 2, 4-14-14; M.C.S., Ord. No. 29633, § 1, 9-7-23)

ARTICLE II. PARADE PERMITS*

Sec. 34-2. Permit requirements.

Any carnival organization desiring to stage, present or conduct a parade shall first apply for a permit and a written route clearance from the department of police and apply for and obtain a mayoralty permit through the department of finance. The department of police and the department of finance must approve or deny an application within 60 days of submission. Parade permits issued under this article shall:

(1) Be issued only to nonprofit organizations;

(2) Be issued by the department of finance no later than January 15 of each year or 15 days before the start of the parade season, whichever is earlier;

(3) Be for a single date and specified time; and

(4) Not exceed a maximum of 34 permits for any single carnival parade season.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 19,664, § 1, 5-4-00; Ord. No. 19,902, § 1, 11-2-00; M.C.S., Ord. No. 25813, § 3, 4-14-14; M.C.S., Ord. No. 25988, § 2, 8-14-14; M.C.S., Ord. No. 28304, § 1, 1-30-20; M.C.S., Ord. No. 29637, § 1, 9-7-23)

Sec. 34-3. Application requirements.

Before any parade permit is issued under this chapter, each carnival organization shall submit the following documents to the designated offices prior to 5:00 p.m. of each date specified:

Before any parade permit is issued under this chapter, each carnival organization shall submit the following documents to the designated offices prior to 5:00 p.m. of each date specified:

(a) On or before August 15, a parade permit application must be submitted to the department of finance, with copies to the department of police. The application must:

1. Designate whether the carnival organization will conduct a pre-parade party and the location of any proposed pre-parade party.
2. Designate the disbanding area of the carnival parade.
3. Designate the official reviewing stands and one other stop along the parade route to make a ceremonial toast, including the exact location of the stop and a list of no more than three floats, identified by float number and float name which will participate in the stop. Additional stops may be authorized only upon a showing of good cause.
4. Include the name, address and phone number of one current officer of the carnival organization who will be the main point of contact between the city and that carnival organization.
5. Include a copy of the articles of incorporation of the carnival organization, filed with the Louisiana Secretary of State, if the carnival organization was not issued a parade permit in the previous carnival season. A copy of any amendment to the articles of incorporation must be included if the applicant has not included a copy in a prior application for a carnival parade permit.
6. Include an affidavit of an authorized agent of the carnival organization, attesting that the organization has no written or unwritten provision in its charter, bylaws, rules, regulations or policies which call for the refusal, withholding or denying of membership, or any of the services, accommodations, advantages, facilities or privilege offered by the respondent to members or others, because of race, color, creed, religion,

*__Cross references—__Carnival, Mardi Gras mayoralty permits, § 34-34 et seq.; parades, § 154-1651 et seq.

national origin, sexual orientation or ancestry, or which unreasonably calls for such discrimination on the basis of age, sex, physical condition or disability, and that the applicant and its members will, except as otherwise authorized by chapter 86, section 86-39 of the Code of the City of New Orleans, treat all proposals for membership in a nondiscriminatory manner in accordance with the procedures contained in the carnival organization's bylaws and regulations. The filing of such an affidavit shall be a prerequisite to the granting of the permit.

7. Provide the names and contact information for the members of the carnival organization responsible for organizing or otherwise coordinating the marching bands participating in its parade.

(b) On or before January 15, the carnival organization shall submit to the department of finance, with copies to the department of police, a nonrefundable permit fee according to the number of pull units used in the parade as follows:

14 to 27 pull units: $750.00;

28 to 36 pull units: $1,000.00;

37 to 45 pull units: $1,500.00.

(c) On or before January 15, the carnival organization shall submit to the department of the police the following:

1. A certification from the builder or builders of the structural elements of the floats that each float is structurally sound and meets the physical and safety requirements of this chapter. The certification shall also state the maximum weight and rider capacity of the float.

2. Evidence that the builder and the carnival organization each have a currently effective commercial general liability insurance policy for the date of the parade and the date of the prepared party, if applicable, with minimum insurance coverage as follows:

Commercial General Liability Policy	*Carnival Organization*	*Float Owner/Builder*
Each occurrence	$500,000.00	$500,000.00
Aggregate	$1,000,000.00	$1,000,000.00
Passenger hazard endorsement	Endorsement	
Riders named as additional insured	Endorsement	
Hired autos and nonowned autos	$1,000,000.00	
Personal and advertising limit		$500,000.00
Products complete operational aggregate		$1,000,000.00
Fire damage limit		$300,000.00

(d) On or before January 15 of every year, the carnival organization shall submit to both the department of finance and the department of police (i) a signed affidavit attesting that all obligations of the carnival organization required by this code are satisfied; and (ii) a parade lineup form, supplied by the department of police, completed to designate the position of each float, minifloat, vehicle, marching band, element, and all other components of the parade. This completed form shall be also submitted to the city council president with copies of all contracts between the carnival organization and the marching bands indicated in its completed parade lineup form.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 21798, § 1, 12-1-04; M.C.S., Ord. No. 25851, § 1, 5-8-14; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 30002, § 1, 7-25-24; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-4. Schedule of parade dates.

(a) The following parade permits may be issued under this chapter by the department of finance:

Date of Parade	*Carnival Organization*
First Friday of Carnival Parade Season	OSHUN CLEOPATRA
First Saturday of Carnival Parade Season	LEGION OF MARS PONTCHARTRAIN CHOCTAW FRERET SPARTA PYGMALION
First Sunday of Carnival Parade Season	FEMME FATALE CARROLLTON KING ARTHUR
First Monday of Carnival Parade Season	NONE
First Tuesday of Carnival Parade Season	NONE
Wednesday preceding Mardi Gras Day	DRUIDS ALLA
First Thursday preceding Mardi Gras Day	BABYLON CHAOS MUSES
Friday preceding Mardi Gras Day	HERMES D'ETAT MORPHEUS
Saturday preceding Mardi Gras Day	N.O.M.T.O.C. IRIS TUCKS ENDYMION
Sunday preceding Mardi Gras Day	OKEANOS MID-CITY THOTH BACCHUS
Monday preceding Mardi Gras Day	PROTEUS ORPHEUS
Mardi Gras Day	ZULU REX ELKS CRESCENT CITY

(b) No carnival parades may be staged other than during the carnival parade season. This provision shall not be applicable to marching club parades, or to groups who do not have trucks and/or floats as a part of the parades, except that they shall be required to obtain the necessary permits to parade during Mardi Gras.

In the event any marching club is determined by the police department to be delaying or impeding the progress of any Mardi Gras Day parade, the police department may require the immediate removal of such marching club from the parade route.

(c) No other parade permits shall be issued for carnival parades or truck parades from the second Friday before Mardi Gras through Mardi Gras Day inclusive.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 19,358, § 1, 9-2-99; Ord. No. 19,426, § 1, 11-4-99; Ord. No. 19,625, § 1, 4-19-00; Ord. No. 19,664, § 2, 5-4-00; Ord. No. 19,705, § 1, 6-1-00; Ord. No. 19,902, § 2, 11-2-00; Ord. No. 20,450, § 1, 11-15-01; M.C.S., Ord. No. 20834, § 1, 8-8-02; M.C.S., Ord. No. 22144, § 1, 2-16-06; M.C.S., Ord. No. 22516, § 1, 2-1-07; M.C.S., Ord. No. 23368, § 1, 1-8-09; M.C.S., Ord. No. 23846, § 1, 1-7-10; M.C.S., Ord. No. 24341, § 1, 3-3-11; M.C.S., Ord. No. 24663, § 1, 11-3-11; M.C.S., Ord. No. 25014, § 1, 9-6-12; M.C.S., Ord. No. 25651, § 1, 1-9-14; M.C.S., Ord. No. 26094, § 1, 10-16-14; M.C.S., Ord. No. 26733, § 1, 12-1-15; M.C.S., Ord. No. 27270, § 1, 1-26-17; M.C.S., Ord. No. 27644, § 1, 1-11-18; M.C.S., Ord. No. 27970, § 1, 1-10-19; M.C.S., Ord. No. 28296, § 1, 1-16-20; M.C.S., Ord. No. 29313, § 1, 1-19-23; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 29938, § 1, 5-16-24; M.C.S., Ord. No. 30003, § 1, 7-25-24)

Sec. 34-5. Rescheduling of rained-out parades.

If a carnival parade is canceled because of inclement weather, it may be rescheduled at the discretion of the mayor.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 19,426, § 1, 11-4-99; Ord. No. 19,625, § 1, 4-19-00; Ord. No. 19,664, § 3, 5-4-00; Ord. No. 20,123, § 1, 5-3-01; Ord. No. 20,450, § 1, 11-15-01; M.C.S., Ord. No. 25813, § 4, 4-14-14)

Sec. 34-6. Parade position, route, date and time.

(a) Unless and except as otherwise provided in a motion adopted pursuant to paragraph (d) of this section, parade permits issued under this chapter shall be for the same position, route, date and time as the parade permit issued to the carnival organization in the previous year. Parade permits issued to a carnival organization which paraded in the previous year on a rescheduled date under section 34-23 shall be for the original position, route, date and time.

(b) Truck parades shall only be conducted on Mardi Gras Day.

(c) A carnival organization may request a change in a parade route or time by applying for and obtaining an authorization from the superintendent of police, who shall have sole and final discretion whether to approve the parade route and time; provided, however, that any request for a change in a parade route or time shall be submitted prior to December 15 of the calendar year immediately preceding the year in which the carnival parade is to be presented.

(d) Parade position, route, date, and start time shall be determined by city council motion.

(e) If a conflict exists as to parade position, route, date or time, the city council shall resolve the conflict by motion and may consider the rule of parade seniority, together with other pertinent factors, to determine which organization shall have the right to the contested position, route, date or time. Parade seniority is determined by the number of consecutive years that a carnival organization has paraded. If two or more parade organizations have paraded for the same number of years, seniority shall be determined by the city council. A carnival organization shall, for the purposes of determining seniority, be deemed to have paraded if the parade is cancelled for reasons beyond the control of the permit holder, such as weather, fire or national emergency.

(f) No more than three permits for a night parade shall be issued for the same date, except when a parade is rescheduled per section 34-5 or paragraph (g) of this section.

(g) The superintendent of police is authorized to adjust a carnival organization's parade position, date, route, and start time as necessary to respond to issues of public safety or other emergent circumstances.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 19,524, § 1, 1-6-00; M.C.S., Ord. No. 23367, § 2, 1-8-09; M.C.S., Ord. No. 25813, § 5, 4-14-14; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 30501, § 1, 10-23-25)

ARTICLE III. GENERAL REGULATIONS FOR PARADES*

Sec. 34-7. Commercial nature prohibited.

(a) No parade shall be of a commercial nature or convey or contain a commercial message, corporate or commercial sign, logo or symbol, or commercial signs, identifications or decorations except as expressly provided for herein.

(b) No advertising of any kind shall be displayed or used in any parade.

(c) Notwithstanding any other provisions of this chapter, only the following vehicles may contain commercial signs or messages, only as expressly provided by this section:

(1) Property trucks, truck tractors and float tractors may identify the designer and/or builder of the floats in a parade;

(2) Convertible automobiles used to carry designated krewe officials, grand marshal, guest celebrities, maids, dukes or lieutenants may identify such persons as well as both the manufacturer of the vehicles and the donor furnishing the vehicles, provided the donor is a private individual or an entity whose principal business is the manufacture or retail sale of automobiles;

(3) News media vehicles which are actively transmitting parade progress reports to the general public during the pendency of a parade may identify their radio or television affiliation;

(4) Horse or mule drawn vehicles which have paraded in carnival parades prior to 1984 may identify only the owner or operator of such vehicles; for such vehicles, the provisions of paragraphs (a) and (b) of this section shall otherwise apply.

(d) No participants in any parade shall display in any manner in such parade any endorsement of candidates for elective public office, nor any endorsement of any issues to be voted on in an election. However, nothing contained in this

*__State law reference—__Associations and societies, limitations of liability, R.S. 9:2796.

provision shall be construed to prohibit the humorous caricature of current social events and issues.

(e) No organization or person staging a parade shall prior thereto advertise in a public manner for members for such parade and anyone doing so may have the permit for such parade revoked by action of the city council in accordance with this chapter. The use of the United States mails is specifically exempted from this provision.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-8. Parade routes generally.

(a) *Length.* The maximum length of any carnival parade route shall not exceed seven miles, exclusive of formation and disbanding areas.

(b) *Special conditions.* The following special conditions shall apply:

(1) No parade route shall cross the Industrial Canal.

(2) No parade route shall include any of the streets bounded by Canal Street, Esplanade Avenue, Rampart Street and the Mississippi River, except that parade routes may include Canal Street and Rampart Street.

(c) *Excessive stoppage prohibited.* Carnival organizations shall be limited to no more than three stops along the designated parade route for a ceremonial toast, including but not limited to stops for ceremonial toasts with public officials or other dignitaries. The three floats conducting the ceremonial toast and the location of the toast must be provided to the department of police pursuant to section 34-3.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25813, § 6, 4-14-14; M.C.S., Ord. No. 29637, § 1, 9-7-23)

Sec. 34-9. Failure to start on time.

The failure of any float provider and/or parading organization to commence the float or truck parade within 30 minutes of the scheduled starting time shall subject the float or truck parade to cancellation and/or subject the float provider and/or parading organization to a $300.00 fine per violation.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-10. Delays due to breakdowns.

When delays due to a mechanical breakdown or other unforeseen event occur within a Mardi Gras parade, the following procedure shall be followed by the department of police:

(1) An estimate of the repair time shall be obtained from the property/equipment truck personnel by the department of police lead unit commander;

(2) If the estimate of repair time is greater than 20 minutes, subject to the approval of department of police, the parade shall be re-routed around the delay by the department of police lead unit commander to continue on its route;

(3) If the breakdown is of such a nature that it is repaired or otherwise corrected prior to the last units of the parade passing the delay location, the repaired or corrected unit shall be allowed to continue in the parade at a new location within the parade as approved by the department of police; and

(4) If the breakdown is not repaired or corrected prior to the last units of the parade passing the delay location, the unit shall not be allowed to continue in the parade and shall be escorted by a unit assigned by the department of police lead unit commander to the parade disband area using the shortest cleared route.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-11. Drivers.

All drivers of self-propelled floats and drivers of tractors or other prime movers shall possess a current valid class "D" chauffeur's license issued by the state department of public safety. It shall be unlawful for any person to drive a self-propelled float or minifloat or drive a tractor or

other prime mover pulling any float or minifloat without a current valid class "D" chauffeur's license.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-12. Pre-parade parties.

Any parading carnival organization may request permission to conduct a pre-parade party provided that such request is made in the initial application to the department of police. Proof of insurance shall include the pre-parade party. Security shall be provided at the carnival organization's cost as determined to be necessary by the New Orleans Police Department. Portolets shall be provided and removed within 24 hours of the party.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-13. Disbanding of night parades.

Night carnival parades may not be disbanded in the area bounded by Iberville Street, North Claiborne Avenue, Esplanade Avenue and the Lake Pontchartrain side of North Rampart Street unless the organization sponsoring the parade is having a ball at the Morris FX Jeff Auditorium on the same date of the parade. Basin Street between Canal Street and St. Louis Street shall be exempt from the provisions of this section.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-14. Float parades.

All float parades conducted during carnival parade season shall be subject to the following additional requirements:

(1) Each parade shall consist of no less than 14 and no more than 45 pull units. Each pull unit shall bear a unique, sequential arabic number corresponding to the order in which the pull unit appears on the parade route, beginning with the number "1".

(2) A tandem float shall be considered a single float for the purposes of this section.

(3) The number of automobiles or minifloats or any combination thereof shall not exceed 14 or a number equal to 75 percent of the number of floats in a parade, whichever is the greater. Occupancy per automobile shall be limited to the driver, three maskers, and one escort riding therein.

(4) The number of marching bands participating in a parade is based on the total number of pull units in the parade, as follows:

14 to 27 pull units	A minimum of seven marching bands
28 to 36 pull units	A minimum of ten marching bands
37 to 45 pull units	A minimum of 14 marching bands

Parades which are rescheduled because of inclement weather shall not be required to comply with the minimum number of marching bands.

Any element that contains at least one person under the age of 18 shall provide a minimum of one adult chaperone per every 15 participants, regardless of age. Such adult chaperones shall also be required to have affixed to their clothes, within clear, unobstructed and plain view, while the parade is in progress, placards, badges, or similar identification associating them with the band or parade that individual is chaperoning.

(5) Only members of the military band and their supervisors may participate in military bands marching or riding in carnival parades. All persons participating in military bands shall be in uniform.

(6) Each Mardi Gras float that uses 120-volt fixed electrical wiring must register annually with the electrical division of the department of safety and permits and have an official annual electrical inspection sticker. Any float that does not have electrical wiring is exempt from the requirements of this paragraph.

(7) The annual fee for an inspection sticker is $10.00 per float. For purposes of this section only, tandem floats are considered one float.

(8) The annual registration fee is $40.00 per carnival organization.

(9) Inspection stickers will be issued after a licensed electrician has completed an official inspection form which states that the relevant floats have been examined by the electrician who certifies that the electrical systems conform to the requirements of this section.

(10) The inspection sticker must be installed on the tongue of the float and must be visible for inspection.

(11) The fire department will inspect each float for the presence of the electrical inspection sticker during the formation area inspection immediately prior to the start of the parade. Any float that does not have a valid sticker will be withdrawn from the parade.

(12) Every float and minifloat must conform to the following electrical requirements:

(a) All wiring must be over-current protected with circuit breakers meeting the minimum requirements of NFPA 70, Article 240: National Electrical Code. Example: 15-amp circuit breakers for 14-gauge wiring or 20-amp circuit breakers for 12-gauge wiring.

(b) The electrical distribution panel must be located in an accessible location.

(c) All electrical connections must utilize wire nuts or insulated butt splices.

(d) All electrical connections must be housed within covered junction boxes, except for butt splices.

(e) All staples used to secure wiring must have nonmetallic insulation.

(f) All electrical work must be inspected by and signed off by an Orleans Parish class A licensed electrician.

(g) A manual shutoff device for the generator must be within ten feet of the tractor driver or conspicuously marked for easy identification.

(h) All pin socket light fixtures must be installed using the correct polarity.

(i) Any float which uses electrical energy for anything other than lighting, i.e. disc jockey, musical equipment, animation etc., shall provide a minimum of one 20-amp circuit which may be placed anywhere on the float. Each circuit may have no more than two weatherproof duplex receptacles or one weatherproof quad receptacle. Extension cords shall not be used. The float shall also have a current inspection sticker for this year's parade on the tongue of the float.

(13) Each float shall be pulled by either a tractor or traditional equine team.

(14) Each parade shall consist of no more than 12 elements before the first float and no more than one element between each float.

(15) No carnival parade may have more than three elements that are primarily composed of motor vehicles including, for example, dune buggies, go-karts, minicars, Jeep-type vehicles, or motorcycles. Operators of the motorized vehicles that are part of a parade element primarily composed of such vehicles shall ride two abreast for the duration of the carnival parade.

(16) Any support vehicles for a parade element shall immediately follow or precede its element. The police department may remove a support vehicle from the parade for continued violation of this paragraph following an initial warning.

(17) Marching bands shall not impede the progress of a parade and may not stop a moving parade to perform. The police department may remove from a parade any marching band that continues to violate this provision following two or more warnings.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 20,142, § 1, 5-3-01; M.C.S., Ord. No. 21578, 6-3-04; M.C.S., Ord. No. 25813, § 7, 4-14-14;

M.C.S., Ord. No. 25988, § 3, 8-14-14; M.C.S., Ord. No. 28304, § 1, 1-30-20; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-15. Truck parades.

All truck parades shall be subject to the following additional requirements:

(1) No truck shall be more than 13 feet, six inches high, from ground at highest spot, nor wider than ten feet. No truck shall be longer than 70 feet.

(2) No truck shall be more than 13 feet, six inches high, from ground at highest spot, nor wider than ten feet. Each truck shall be equipped with such safety equipment as required by state law.

(3) They shall follow a route to be prescribed by the superintendent of police, which shall include a requirement that they proceed as directed by him and disband in the area or vicinity designated.

(4) The interval between each truck shall be not less than 30 feet. No unauthorized vehicle shall be allowed to parade between the trucks.

(5) The maximum number of trucks which may participate in the parade sponsored by the Elks Krewe of Orleanians shall be not more than 120 trucks. The maximum number of trucks which may participate in the parade sponsored by the Truck Parade of Crescent City shall not be more than 60 trucks.

(6) Effective January 1, 2016, no generators will be allowed on truck floats. All electrical needs will be supplied by the use of extension cords connected to the power inverter in the cab pulling the truck float. Every truck float that uses extension cords to provide electrical service must meet the requirements of Chapter 6, sections 605.5, 605.6 and 605.9 of the International Fire Code.

(7) Every truck float that uses permanent branch circuit wiring for 120-volt or 240-volt electrical source must comply with section 34-14 of this chapter.

(8) All truck floats shall have sides or skirts built down on 12 inches from the street. Truck floats shall have attached fringe to block any view under the truck float.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 21578, § 1, 6-3-04; M.C.S., Ord. No. 25813, § 8, 4-14-14; M.C.S., Ord. No. 25988, § 4, 8-14-14)

Sec. 34-15.1. Mandatory video documentation of parades.

The city shall document the entirety of each permitted carnival parade by video and be responsible for custody of the recording. A copy of the recording shall be provided to the mayor's Mardi Gras advisory council upon its request.
(M.C.S., Ord. No. 25813, § 9, 4-14-14)

Sec. 34-16. Age of parade participants.

(a) The minimum age of persons participating in any carnival parade made up of floats and/or vehicles, whether as riders of floats or members of bands or marching units, or otherwise, shall be 12 years. This restriction shall not apply to pages, attendants, grand marshals, or special guest celebrities riding floats or vehicles therein or to persons participating in truck parades.

(b) Persons employed as operators of animation on floats shall be at least 15 years of age and shall have the necessary work permits required by law.

(c) Persons employed or engaged to carry a liquid fuel flambeaux or compressed gas flambeaux shall be at least 18 years of age. Government approved identification will be required.

(d) The minimum age of persons participating in truck parades shall be three years.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25988, § 5, 8-14-14)

Sec. 34-17. Riders.

(a) No float rider may possess glass bottles or glass objects, with the exception of necklaces incorporating glass beads, while participating in a carnival parade. The police department may remove from the float any rider who violates the provisions of this section.

(b) No person shall ride on the exterior of an automobile during a parade, except that one person may ride on the back of a convertible automobile.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25661, § 1, 1-23-14; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-18. Smoking prohibited.

It shall be unlawful for any person to smoke while participating in a carnival parade or truck parade. A "no smoking" sign shall be securely attached and plainly visible to all occupants of a float, minifloat or tandem float. For the purposes of this section, smoking includes the use of cigarettes, cigars, pipes, electronic cigarettes, vapes, hookah, electronic smoking devices as defined in section 66-36, or any other lighted device. The police department may remove from the parade any person who violates the provisions of this section.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Cross reference—Fire prevention and protection, ch. 74.

Sec. 34-19. Obstructing parades.

(a) No person in control or charge of any motorized vehicle, including, but not limited to, automobiles, golf carts, and all-terrain vehicles, may park, loiter, or stop on any street, roadway, or boulevard, including intersections, neutral grounds, and public rights of way, as follows:

(1) Within the designated parade formation area beginning four hours before the designated parade start time until two hours after the last float leaves the formation area;

(2) Along the designated parade route beginning two hours before until two hours after the start time for the carnival parade; and

(3) On any designated parade route for Mardi Gras Day between the hours of 7:00 a.m. and 10:00 p.m.

(b) The police department may tow any vehicle in violation of this section. The provisions of this section do not apply to public safety vehicles, authorized parade vehicles, buses used for transportation of any parade element, any horse ridden by a law enforcement agency or that is part of the parade pursuant to the parade permit.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-20. Obstructing sanitation.

After the passage of parades of carnival societies of the city during the Mardi Gras season, it shall be unlawful for any person in charge of a vehicle, horse, or vending contrivance to personally park, stop or loiter in such a manner as to obstruct the passage of movement of sanitation vehicles or street sweepers of the city on the line of route from curb to curb.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-21. Animals prohibited.

Horses not participating in a carnival parade and all reptiles are prohibited within 200 yards of a carnival parade route during a carnival parade or the pendency of a parade. This section shall not apply to any animal used by a law enforcement agency.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 30002, § 1, 7-25-24)

Sec. 34-21.1. Reserved.

Editor's note—M.C.S., Ord. No. 30405, § 1, adopted July 24, 2025, repealed § 34-21.1, which pertained to horses participating in a carnival parade and derived from M.C.S., Ord. No. 30002, § 2, adopted July 25, 2024.

Sec. 34-22. Southern Decadence Festival; Bourbon Street; use of amplification equipment.

(a) Beginning on the Wednesday of or prior to the Southern Decadence Festival, until Monday, the last day of the Southern Decadence Festival,

on Bourbon Street, between Iberville Street and Esplanade Avenue, it shall be unlawful to operate or allow the operation, for personal use, of any personal sound-amplification equipment, megaphones, bullhorns or any device or apparatus for the reproduction or amplification of the human voice or other sounds (hereinafter collectively referred to as "sound-amplification equipment"), in the public right-of-way, including streets or sidewalks, producing sounds registering more than 85 db(A).

(b) The limitations on the operation of sound amplification equipment in subsection (a) of this section shall not apply to the operation of horns, sirens, or other emergency warning devices actually being used in emergency circumstance.
(M.C.S., Ord. No. 21676, § 1, 9-9-04; M.C.S., Ord. No. 23668, § 1, 8-6-09)

Editor's note—Ordinance No. 21676, § 1, adopted Sept. 9, 2004, added § 34-4 to the Code. Inasmuch as said section already existed and to maintain the organization integrity of the Code, said section has been redesignated as § 34-22 at the discretion of the editor.

Sec. 34-22.1. Vieux Carré; use of amplification equipment.

(a) In the area bounded by Esplanade Avenue, Decatur Street, Iberville Street, and North Rampart Street it shall be unlawful to operate or allow the operation, for personal use, of any sound-amplification equipment in the public right-of-way, including streets or sidewalks, producing sounds registering more than 85 db(A) at a distance of 30 feet from the source of the sound measured in accordance with section 66-201 of the City Code.

(b) The limitations on the operation of sound-amplification equipment in subsection (a) shall not apply to the operation of horns, sirens, or other emergency warning devices actually being used in emergency circumstances.

(c) Reserved.

(d) In the area bounded by Esplanade Avenue, Decatur Street, Iberville Street, and North Rampart Street, it shall be unlawful to operate or allow the operation, for personal use, of any sound amplification equipment in the public right-of-way, including streets or sidewalks: so as to produce sounds registering more than 95 db(A) at a distance of 30 feet from the source of the sound measured in accordance with section 66-201 of the City Code.

(e) The limitations on the operation of sound amplification equipment in subsection (d) of this section shall not apply to the operation of horns, sirens, or other emergency warning devices actually being used in emergency circumstances.
(M.C.S., Ord. No. 21676, § 2, 9-9-04; M.C.S., Ord. No. 21763, § 1, 11-4-04; M.C.S., Ord. No. 22983, § 1, 1-24-08; M.C.S., Ord. No. 23668, § 1, 8-6-09)

Editor's note—Ordinance No. 21676, § 2, adopted Sept. 9, 2004, added § 34-5 to the Code. Inasmuch as said section already existed and to maintain the organizational integrity of the Code, said section has been redesignated as § 34-22.1 at the discretion of the editor.

ARTICLE IV. FLOATS

Sec. 34-23. Physical requirements.

(a) Any float which is greater than 130 feet in length, including pull unit and generator, shall obtain prior, written approval by the New Orleans Police Department, Department of Public Works, and Safety and Permits to ensure maneuverability on the parade route, except floats that paraded in the prior carnival parade season without causing delays shall not be subject to this inspection.

(b) All floats and minifloats shall be in theme, color, design and overall composition in accord with the traditional manner in which Mardi Gras or carnival floats have been in the past.

(c) Should a casualty or accident destroy or damage a nonstructural, decorative portion of any float or floats within such period of time before a parade such that repair or replacement by the exercise of due diligence is not feasible or practical, the float or floats, if no unsafe or unsightly condition exists, may be used in the parade for which it is scheduled.

(d) No minifloat shall carry more than nine maskers.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25813, § 19, 4-14-14)

Sec. 34-24. Safety precautions.

In all parades there shall be:

(1) *Fire extinguishers.* Each float, each section of a tandem float, and each deck of a multideck float shall have at least one dry chemical powder extinguisher with a minimum of a 4A-40BC rating or at least two dry chemical powder extinguishers with a minimum of a 2A-10BC rating. Fire extinguishers shall be securely mounted and readily accessible. Fire extinguishers may be mounted on either the tractor or the float; however, they must be situated so that the distance between the fire extinguisher and the tractor driver and all riders is no greater than 50 feet from a 4A-40BC extinguisher, or 30 feet from a 2A-10BC extinguisher.

(2) *Exits.* Each float, or section of a tandem float, shall have two methods of safely entering or exiting each level of each float. The two methods may include ladders, rope ladders, built in stairs or any combination thereof. For double-decker (two-level floats), each float shall have two methods of safely entering or exiting each level of each float. The two methods may include ladders, rope ladders, built in stairs or any combination thereof. Minifloats which have main platforms three feet or less above the ground shall be exempt from this requirement.

(3) *Safety chains.* There shall be a sufficient number of safety chains of adequate tensile strength on all tractor hitches which shall be firmly attached to the float.

(4) *Safety positioning devices.*

a. All float riders and truck parade riders shall be equipped with a safety positioning device which consists of the following components:

i. Nylon safety belt or harness with a minimum width of one and three-quarter's inches seatbelt grade flat webbing material.

ii. Nylon tether rope with a minimum diameter of one-quarter-inch and of enough length to restrict a rider's fall over the side of a float to no more than two feet.

iii. Anchor point eye bolts, steel welded O rings, steel safety hook with Grommets, or any other similar devices shall be metal with a corrosion-resistant finish.

iv. Minimum diameter of anchor point eye bolts will be three-eighths of an inch and will be threaded to use nuts and washers.

v. Minimum diameter of steel welded O rings will be 6 mm and two inches round.

vi. Minimum diameter of the steel safety hook with grommets will be 10 mm or three-eighths inches.

vii. The anchor point eye bolt shall be securely fastened to the body or framework of the float.

b. Any safety positioning device utilized by riders must be submitted to the NOFD for approval a minimum of 30 days prior to the date of the parade. In addition to any other penalties specified in this chapter, violations of this section shall subject the offending float rider to removal from the float.

c. Riders must keep both feet on the float and avoid standing on bags, throws, or other objects not permanently attached to the float.

(5) *Animated float.* Operators of animation shall be provided solid platforms, not below rider level, upon which to operate, together with a means of exhausting the air therefrom and such other safety requirements as may be necessary.

(6) *Self-propelled floats.* Self-propelled floats shall comply with state brake test provisions for an equivalent class and weight of motor vehicles and shall each have affixed thereto a current motor vehicle inspection certificate issued by the state. Self-propelled floats shall contain double the amount of fire extinguishers as provided for in subsection (1) of this section. Additionally, self-propelled floats shall comply with such safety standards and criteria established for that class of floats that may be developed and promulgated by the city. Each self-propelled float shall also have the means of being towed in case of breakdown. Each such self-propelled float shall be designed to allow the driver thereof peripheral vision of at least 180 degrees.

(7) *Tandem floats.* The ends and corners of each unit of a tandem float immediately adjacent to the connecting hitch shall be completely enclosed. The skin, barrier, or other enclosure shall completely enclose the area immediately adjacent to the connecting hitch from the bottom of the float up to the handrail height for riders occupying the lower level of the float.

(8) *Generators.* All electrical generators utilized to provide power for floats shall be mounted on the tractor. Generators utilized to provide power for truck floats may be mounted on the truck float provided that there is adequate ventilation and sufficient separation of the generator from the riders. Effective January 1, 2016, generators shall not be allowed to provide electrical power to truck floats. Truck floats shall use power inverters provided by the cab pulling the truck float. There shall be no refilling generators for floats or truck floats once the parade has started.

(9) *Flambeaux.* All flambeaux are subject to the following requirements:

a. *Equipment.* Parade lighting may be provided or supplemented with flambeaux carried along the route. The carrying of highway flares, railway fuses, night marine distress signal flares, or similar lighting devices in a parade is prohibited.

b. *Fuels.* Flambeaux fuel may be either a Class II combustible liquid or a compressible gas such as propane or butane. Class I flammable liquids having a flashpoint below 100°F, such as gasoline or alcohol based fuels, shall be prohibited

c. *Flambeaux which use liquid fuel.* Flambeaux of the traditional old-line "vapor burner" type, utilizing liquid fuel shall be permitted with the following stipulations:

i. All liquid fueled flambeaux shall be fueled by Class II combustible liquids having a flash point at or above 100 degrees Fahrenheit, such as kerosene (fuel oil) or mineral spirits.

ii. Class I flammable liquids having a flash point below 100 degrees Fahrenheit, such as gasoline or alcohol based fuels, shall be prohibited.

iii. Each liquid-fuel flambeaux shall be comprised of a single non-pressurized fuel can which is vented at the top and has a maximum capacity of approximately two gallons, no more than four burners and a carrying stick.

iv. A reflector of sheet metal or other suitable material may be attached near the burners.

v. Each burner shall be a vapor burner suitable for use in open air.

vi. Each burner shall be connected to an appropriate wick tube. The wick tube shall be a pipe made of iron, steel, stain-

less steel, copper, or other suitable flame-resistant heat-conducting material.

vii. The wick tube(s) shall be connected to the fuel can with black iron pipe or galvanized iron pipe or other suitable piping and appropriate elbow and tee fittings.

viii. The fuel can, shall be mounted on a vertical length of pipe of sufficient height so that gravity will cause adequate fuel pressure to be supplied to the wick tubes. Such vertical length of pipe shall incorporate a hand-operated fuel shutoff valve which can be opened and closed with a wrench or an attached handle. Any flambeaux constructed or fabricated at any time after December 1, 2013, shall use a fuel shutoff valve that can be operated using only the hand and would not require a wrench or tool to turn the valve. In operation, the burner/wick-tube system shall cause a Class II combustible liquid fuel to generate fuel vapor which is then mixed with ambient air for ignition.

d. *Flambeaux which use compressible gas fuel.* Flambeaux utilizing compressed propane gas, butane, or the like fuel shall be permitted with the following stipulations:

i. A backpack support for the user, operator or carrier shall be provided to hold the gas containment tank and first regulator stage components.

ii. A torch frame carrying a single or multiple numbers of burners is connected to the tank by means of a quick disconnect hose.

iii. The torch frame is designed such that an internal passageway is formed by the hollow, closed ended, tubular members that make up the torch frame.

iv. A hand manipulated, quick release kill switch is in place which must be held down by the operator to allow the gas to continuously flow to the burners during use. (welding, taping, rigging, or other means to circumvent the kill switch is prohibited)

v. The burner chambers are formed by concentric cylindrical members.

e. *Flambeaux fueling operations.*

i. Flambeaux fueling may only take place prior to or at the formation area. No refueling will be allowed along the parade route.

ii. At the parade disbanding location, all flambeaux shall be extinguished under the supervision of the flambeaux contractor.

f. *Placement of flambeaux.* No flambeaux shall be within 15 feet of the front, back, and/or sides of a float, parade element or parade participant not involved in the carrying or supervision of flambeaux. Flambeaux shall not be placed or flanked along the sides of a float or parade element, except for king's, queen's, duke's, or maid's floats with a maximum of five riders aboard such float, having no throws aboard the float, which are preceded by crowd chaperones on each side of the float who will carry rope to create a barrier between the flambeaux and the parade spectators, and keep the flambeaux at least three feet from the side of such

floats and the flambeaux are facing forward and with the reflector to the rear, and which have a fire watch in close proximity for immediate response .

g. *Group supervision.*

i. Each flambeaux group shall be composed of one stick man for every 15 flambeaux carriers.

ii. Stick man duties include ensuring that the flambeaux safety guidelines are being adhered to.

h. *Safety briefing.* A safety briefing shall be conducted prior to each parade by the NOFD Flambeaux Detail Officer with mandatory participation from the krewe's parade marshall or his/her designee, the flambeaux contractor and all stick men. All flambeaux safety guidelines established in this chapter will be reviewed at such safety briefing.

i. *Flambeaux carrier behavior.*

i. Flambeaux carriers shall carry flambeaux in manner that prevents flambeaux from coming in contact with floats or parade elements, parade participants not involved in the carrying or supervision of flambeaux, parade spectators, trees/vegetation, and any public utility elements.

ii. All flambeaux carriers shall carry their flambeaux in a safe manner, utilizing a pole belt or harness, back support, or similar device to distribute the weight of the flambeaux to provide a stable means of carrying the flambeaux for the duration of the parade route. Spinning, dipping of the flambeaux or any other activity which may cause the fuel to spill is prohibited.

iii. Flambeaux carriers shall not exit the designated parade route with active (lit) flambeaux unless so directed by NOPD, NOFD, or parade official.

j. *Enforcement.* Any flambeaux carrier who fails to comply with the requirements set forth in the flambeaux safety guidelines, and/or any other applicable law shall be removed from the parade. The resulting unmanned flambeaux shall be extinguished by the flambeaux contractor and placed in the parade property truck for the rest of the parade.

(10) *Safety seats.*

a. All truck parade riders, age three to five years old, shall be placed in safety seats according to the following specifications:

i. Seats shall be made of wood. The height of the safety seat shall be adjusted for each child so that the top of the side railing of the truck is no lower than the child's underarms.

ii. The safety seat shall include safety belts that attach across the waist and through the legs of the child placed in the seat.

iii. The safety seat shall be bolted into the floor of the truck.

iv. Three to five year olds shall be seated and strapped in safety seats whenever the truck is in motion.

b. Any safety seat utilized by riders must be submitted to NOFD for approval a minimum of 30 days prior to the date of the parade.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 19,908, § 1, 11-16-00; M.C.S., Ord. No. 25988, § 6, 8-14-14; M.C.S., Ord. No. 28789, § 1, 9-23-21; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-25. Inspections generally.

Timing, issues and city agency responsibilities. Representatives of the fire and/or police department shall inspect each parade for which a permit has been issued to see that the provisions of this chapter have been complied with. The inspection shall take place immediately prior to the beginning of the parade of the particular organization being inspected and shall be recorded on a float inspection report. If any violation of the provisions of this chapter are found during these inspections, the particular float, minifloat, piece of equipment or other apparatus shall be immediately removed from the parade. Additionally, if at any time during the parade the fire department or police department determines that the physical or safety requirements of this chapter are not being complied with, the particular float, minifloat, piece of equipment or other apparatus may be immediately removed from the parade.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-26. Consultation with department of safety and permits.

If, at any time during the inspection or thereafter, a question arises as to whether a particular float, minifloat, piece of equipment or other apparatus is structurally sound, the police and/or fire department may consult the department of safety and permits or its designated agent. If the department of safety and permits or its designated agent determines that a particular float, minifloat, piece of equipment or other apparatus is not structurally sound, the particular float, minifloat, piece of equipment or other apparatus may be immediately removed from the parade by the police department.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

ARTICLE V. THROWS AND THROWING

Sec. 34-27. Throwers restricted.

(a) Riders or maskers are prohibited from tossing throws or favors to the rear and/or front of their floats or trucks and in the parade formation and disbanding areas.

(b) No parade participant other than the members or float riders in the parade of the carnival organization and its special guest celebrities shall toss or hand out throws during the parade without first obtaining written permission and approval of throws from the organization.

(c) No member in a marching unit nor persons riding a news media vehicle shall toss, hand out, or otherwise distribute doubloons, trinkets, or other throws. In addition to any other penalties specified in this chapter, violation of this subsection shall subject the band or news media vehicle to immediate removal from the parade.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-28. Prohibited throws.

(a) No carnival parade may include nor shall any carnival parade participant, while participating in a parade on the parade route, in a parade staging area or in a parade disbanding area, possess or have in the participant's custody or control any of the following:

(1) Any life-threatening objects or safety-threatening objects, including, but not limited to "bomb bags";

(2) Any noxious substance or any liquid intended to be poured, tossed, handed out or otherwise distributed;

(3) Any throw containing sharp points, including but not limited to plastic spears or plastic, paper or silk flowers with wire stems, except as otherwise provided in this section;

(4) Any insects, marine life, rodents, fowl or other animals, dead or alive;

(5) Any "silly string" or other such item which, when used, emits a string-like or streamer-like substance that is shot or expelled from a pressurized container;

(6) Confetti or confetti cannons, whether mechanical or handheld; or(7) Glass, except as otherwise provided in this section.

(b) Except as provided in this subsection, no carnival parade participant may throw toilet paper, bathroom tissue, paper streamers or any other similar paper product customarily shipped and stored in a rolled condition and capable of being unrolled to a length of more than 36 inches. A member of the Krewe of Tucks may, during the Tucks parade, dispense the krewe's traditional toilet paper throw, provided that the paper is fully biodegradable, marine grade, and made of most readily degradable form of paper commercially available. Paper cannons or any other mechanical device intended to launch or disburse paper products are strictly prohibited.

(c) No carnival parade participant shall knowingly throw any doubloon, trinket or other throw which would be redeemable for or entitle the bearer to a prize or a discount on the price of any food, beverage, merchandise, service or admission to any event or which displays, conveys or communicates any commercial, political or religious message.

(d) No carnival parade participant, while participating in a parade on the parade route, shall hand out, throw, toss, or in any way discard boxes, corrugated boxes, paper steamers or other paper products exceeding 36 inches in length regardless of whether the paper biodegrades when wet, or empty single-use plastic bags. Any package containing bulk throws, including but not limited to doubloons, beads, cups, trinkets, or toys shall be handed to parade attendees and shall not be thrown or tossed. Bulk throws shall be removed from any plastic packaging before being thrown or tossed.

(e) No carnival parade participant, while participating in a parade on the parade route, in a parade staging area, or in a parade disbanding area, shall hand out, throw, or distribute in any way, any condom or prophylactic or any sexually-oriented device. Sexually-oriented device shall include but not be limited to any paraphernalia that is designed in whole or part for specified sexual activities as defined in the comprehensive zoning ordinance.

(f) No member of a carnival organization, rider on a float in its parade, or participant in any element of its parade may throw, toss, hand out, or otherwise distribute or knowingly possess any throw that was not approved by the carnival organization in advance of the parade.

(1) A carnival organization shall not approve any throw that exceeds three and one-half pounds in total weight.

(2) Approved beads must be either plain and unadorned or display the carnival organization's logo, name, or other identifying feature specific to the organization.

(3) Notwithstanding any other provisions of this chapter, a carnival organization may approve the throwing of the following items that contain the manufacture's logo or trademark: candy, snacks, food and small personal items. Small personal items include soap and similar bath products, toothbrushes, candles, glitter, plant seeds, drink mixes and other similar items. Small personal items cannot be larger than 12 inches or exceed eight ounces in weight.

(g) Notwithstanding any other provisions of this section, a carnival organization may approve, and a rider may throw, glass bead necklaces that do not exceed 220 grams in weight.

(h) Notwithstanding any other provisions of this section, a carnival organization may approve the individual distribution of silk flowers by any participant of a parade element that traditionally hands-out individual silk flowers to parade spectators. No carnival participant riding on a float or in a vehicle may throw silk flowers.

(i) A participant in a carnival parade may not throw or otherwise distribute alcoholic beverages, including, but not limited to beer, wine, malt liquor, mixed alcoholic drinks and Jello shots, to any parade spectator.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; Ord. No. 19,676, § 1, 5-18-00; M.C.S., Ord. No. 28304, § 1, 1-30-20; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 29792, § 1, 1-18-24; M.C.S., Ord. No. 30002, § 1, 7-25-24; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-29. Throwbacks.

It shall be unlawful for a person to throw any object at a float or at any participant in a carnival parade. Any person who violates this provision shall be fined $250.00 per violation.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25661, § 2, 1-23-14)

ARTICLE VI. STANDS AND STRUCTURES

Sec. 34-30. Stands and structures location.

(a) *Outside of central business district.* No stands or structures will be erected or maintained during the carnival parade season by any individual, firm or corporation on the streets, sidewalks or neutral grounds of the city except such stands or structures as are specifically requested for use by carnival organizations that stage carnival parades and the various news media organizations. Such stands and structures may be erected only with the permission of the director of safety and permits and must be located on the carnival organization's parade route. No more than one reviewing stand per carnival organization shall be permitted, and all reviewing stands requested by news media organizations must be approved by the office of communications. The leasing of streets, sidewalks or neutral grounds or any agreement or arrangement that is intended to permit the erection of stands or structures on the streets, sidewalks or neutral grounds of the city during the carnival parade season, except those erected by a parading carnival organization as specified above, shall be prohibited.

(b) *Within central business district.* The above prohibition does not apply to stands and structures erected adjacent to buildings which abut the sidewalk in the central business district area bounded by Howard and South Claiborne Avenues, Canal Street, and Convention Center Boulevard. The director of the department of safety and permits and the director of the department of public works may issue written permission and approve carnival parade stands and structures within the central business district not adjacent to buildings which abut the sidewalk, subject to these stands and structures meeting the criteria established by the city.

(c) *Pre-parade parties.* Any parading carnival organization may request permission to construct a stand or platform for purposes of sponsoring a pre-parade party, provided that the intention to conduct such a party was stated in their initial parade permit application to the department of police. No stand shall be constructed less than five feet from the curb of the neutral ground after securing a noise permit from the director of health, approval from the director of parkways and parks, and approval from the director of safety and permits and the department of fire.

(d) *Outside of central business district.* The department of property management may erect up to 12 parade stands or platforms outside of the central business district as the availability of materials permit. Fees for the erection of parade stands or platforms shall be in accordance with a fee schedule established by ordinance of the city council unless waived by ordinance of the city council.

(e) *Obstructions.* Except for stands or structures erected by the department of property management, no stands or structure shall obstruct the usage or access to a fire hydrant.

(f) *Department of public works approval.* The approval of the department of public works shall be obtained before any attachment, connection, or temporary removal of any part of a city-owned street lighting standard or fixture is made.

(g) Except for the department of property management, every person or entity that erects a stand, structure, or platform shall apply for a permit from the director of safety and permits no later than 15 days before the first parade on that route. Each stand, structure, or platform erected on the public right-of-way by persons or entities other than the department of property management, shall provide for passage on the sidewalk and shall be approved by the department of public work as to size and location prior to erection.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 19,397, § 1, 10-7-99; Ord. No. 19,515, § 1, 1-6-00; M.C.S., Ord. No. 20404, § 1, 10-4-01; M.C.S., Ord. No. 28304, § 1, 1-30-20)

Sec. 34-31. News media coverage.

Notwithstanding any provisions of this chapter to the contrary, coverage of any activities of the parade and most particularly of those activities in front of the reviewing stands by television or other news media shall not unreasonably block the view of the crowds or prevent them from seeing such activities.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-32. Fencing of public property prohibited.

It shall be unlawful for any individual, organization, or legal entity to fence, rope off, or stake out any area of public property along a parade route, including the neutral ground, except when necessary to protect plants, shrubbery, trees, and other landscaping materials with the approval of the department of parks and parkways. Each private property owner shall apply in writing for approval from the department of parks and parkways at least 30 days prior to the beginning of the Carnival parade season, and shall submit a detailed drawing of the planned protective enclosure device. Any approval issued by the department of parks and parkways shall be issued at least ten days prior to the beginning of the Carnival parade season. Any changes to the proposed protective enclosure device mandated by the department of parks and parkways shall be complied with.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 28304, § 1, 1-30-20)

Sec. 34-33. Ladders, tents, grills, personal items, and portable toilets.

(a) *Prohibited items.* Upholstered furniture, including, for example, chaise lounges, and sofas or couches; scaffolding; platforms; open flames; and gas generators shall not be placed in any public space including, but not limited to, public rights-of-way, neutral grounds, sidewalks, and intersections during the carnival season.

(b) *Ladders and chairs.* All ladders used by parade spectators shall be structurally sound and the top cap of the ladder shall not exceed six feet in height. Ladders, chairs, canopies, grills, and other personal effects shall be placed at least six feet back from the street curb. Additionally, the practice of fastening two or more ladders together shall be prohibited. Ladders must be free-standing and not connected, permanently or temporarily, to any other ladder or object, provided that a small seat box capable of accommodating small children may be affixed to the top of any ladder.

(c) *Enclosures prohibited.* Any item used to enclose a public area, including, but not limited to, tents, canopies, shelters, screens, awnings, ropes, spray paint, or any other type of barricade, is prohibited. The use of any object that obstructs foot traffic or line of sight is prohibited.

(d) *Removal of items.* All ladders, chairs, ice chests, and other personal items placed on the public right-of-way, including the neutral ground, four hours or more prior to the start of a parade, may be removed and discarded. Items left unattended on the public right-of-way upon the conclusion of the final parade for that day may be removed and discarded. Items prohibited by this section are subject to removal from the parade route at any time during the carnival season.

(e) *Portable toilets.* Except for the city, no person shall place a portable toilet during the carnival season on any public right-of-way, neutral ground, sidewalk, or intersection within a three-block radius of a parade route, unless authorized by the department of safety and permits. A fine of $1,000.00 for the first day and $2,000.00 each day thereafter shall be assessed against the individual, organization, or legal entity responsible for the placement of any portable toilet in violation of this section. A fine of $1,000.00 for the first day and $2,000.00 each day thereafter shall be assessed against the owner of any portable toilet found to be in violation of this section.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25661, § 3, 1-23-14; M.C.S., Ord. No. 28304, § 1, 1-30-20; M.C.S., Ord. No. 30002, § 1, 7-25-24; M.C.S., Ord. No. 30714, § 1, 7-23-26)

ARTICLE VII. MAYORALTY PERMITS*

Sec. 34-34. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Carnival parade season means that period beginning with the second Friday before Mardi Gras and continuing through Mardi Gras Day, both inclusive.

Mardi Gras season means those days and nights commencing 11 days before Mardi Gras and continuing until 12:00 midnight on Mardi Gras Day.

Parade route means that area extending one city block in either direction of the streets used by the various parades while the parade is in progress.

Parade time means that time commencing two hours before the starting time of a parade and ending two hours after the passing of a parade, but no vendor shall sell or display his wares within the central business district which is defined as the area bounded by the river, Esplanade Avenue, Claiborne Avenue and Howard Avenue, prior to 6:00 p.m. on weekdays, except Mardi Gras Day. On weekends and on Mardi Gras Day when there is more than one parade on any calendar day the vendor must move two hours after the end of the last parade for that calendar day.

Vehicle means a conveyance which is licensed by the motor vehicle division of the state department of safety.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 28304, § 1, 1-30-20)

Cross reference—Definitions generally, § 1-2.

Sec. 34-35. Mayoralty permits required for various callings or occasions.

Every person who shall desire to use the public streets, sidewalks, or other public places or private places of business establishments for the conduct of any of the businesses or callings set forth in this article shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the river on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 34-45.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 21426, § 1, 2-20-04)

Sec. 34-36. Fees.

(a) The following fees shall be charged each permittee under this article to sell the following items on city streets along the designated "parade route" during Mardi Gras Season for a fixed location:

(1)	Sandwiches, cooked foods and drinks (nonalcoholic beverages)	$500.00
(2)	Candy, nuts and confections	500.00
(3)	Novelties	500.00

(b) The following fees shall be charged each permittee under this article to sell the following items on city streets along the designated "parade route" during Mardi Gras Season for moving locations:

(1)	Sandwiches, cooked foods and drinks (nonalcoholic beverages)	$100.00
(2)	Candy, nuts and confections	100.00
(3)	Novelties	100.00

(c) The following fees shall be charged each permittee under this article to sell any items, with the exclusion of alcoholic beverages, on a city street at a fixed location for one day during the Mardi Gras Season:

(1)	Occupational license	$150.00

*__Cross references—__Mayoralty permits required for various callings or occupations or occasions, § 30-69; parade permits § 34-2 et seq.; Jackson Square, § 106-261 et seq.; Vieux Carré, ch. 166.

(2) Mayoralty..... 50.25

(3) Identification..... 5.00

(4) Sales tax deposit 50.00

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 23390, § 1, 2-5-09)

Cross reference—Mayoralty permits required for various callings or occupations or occasions, § 30-69.

Sec. 34-37. Vendors in a fixed location; permit requirements and regulations.

(a) There shall be a $1,000.00 deposit on each permit to guarantee payment of sales tax at the end of the Mardi Gras season. This deposit will be forfeited 30 days after Mardi Gras if the taxpayer has not filed his sales tax return. This provision shall not restrict the authority of the director of finance to assess and collect sales tax and use tax in accordance with section 150-441 et seq.

(b) A specific location can be assigned but not guaranteed by the city.

(c) Vendors at fixed locations on public streets may set up their vehicles during "parade time" only.

(d) When the use of fixed location would interfere with a parade along a particular route or interfere with public safety, the city shall have the option to deny the use of such location for such period of time as may be necessary.

(e) Vendors selling from fixed locations shall comply with all provisions of chapter 154 relative to traffic regulations, especially, but not exclusively with regard to distances from fire hydrants and intersections.

(f) The trailer, van and any appendant thereto from which a vendor sells shall not exceed 30 feet in length, inclusive of any auxiliary or ancillary equipment, or nine feet in width. Vendors must sell and display from a "vehicle"; no stands, card tables or the like shall be allowed on public streets, sidewalks, alleys, parks, squares, neutral grounds or rights-of-way for the sale or display of goods.

(g) All vendors selling from fixed locations shall have the mayoralty permit as provided for in section 34-35 publicly displayed at his place of business and failure to do so shall constitute a violation of this article.

(h) No Mardi Gras mayoralty permit shall be issued for vendors from fixed locations on public streets, sidewalks, alleys, parks or squares in the Vieux Carré as defined in chapter 166.

(i) All applicants for Mardi Gras mayoralty permits to sell food and/or drinks on public or private property must show proof of compliance with all regulations and requirements of the state department of health and the department of fire, fire prevention bureau, before a permit can be issued by the department of finance.

(j) Vendors selling from fixed locations shall provide containers sufficient for the storage, in a sanitary manner, of all trash, garbage, or any other refuse generated by their business activities at each authorized location during "parade time" as defined in section 34-34 of this Code. The contained refuse shall be deposited upon the curb nearest each vendor's authorized fixed location upon the departure of said vendor.

(k) Vendors selling from fixed locations shall not conduct sales from the side of his location that faces the street or on the immediate street side of his location.

(l) Every fixed location vendor utilizing a flammable gas cooking apparatus must have a permit from the fire department.

(m) Vendors in a fixed location shall be prohibited from selling silly string. For the purposes of this section, "silly string", regardless of its brand name, shall be defined as an item purchased from a vendor during Mardi Gras season and when used, emits a string-like or streamer-like substance that is shot or expelled from a pressurized container.

(n) Vendors in a fixed location shall be prohibited from selling stink bombs. For the purposes of this section, a "stink bomb", regardless of its actual brand name, shall be defined as

a device purchased from a vendor during Mardi Gras season for the purpose of emitting an odorous substance when used.

Vendors in a fixed location shall be prohibited from selling snap pops. For the purposes of this section, a "snap pop," regardless of its actual brand name, shall be defined as a device purchased from a vendor during Mardi Gras season which contains high explosives.

(o) Any person or entity possessing an alcoholic beverage permit who permits or allows the sale or consumption of alcoholic beverages on the parking or driveway area of a fixed location, pursuant to section 10-404 of this Code, shall pay the following additional fees:

(1) Mayoralty permit..... 500.00

(2) License fee..... 150.00

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 19,397, § 2, 10-7-99; Ord. No. 20,038, § 1, 2-1-01; M.C.S., Ord. No. 23390, § 1, 2-5-09; M.C.S., Ord. No. 25661, § 4, 1-23-14)

Sec. 34-38. Vendors not in a fixed location; permit requirements and regulations.

(a) There shall be a $200.00 deposit on each permit to guarantee payment of sales tax at the end of the Mardi Gras season. This deposit will be forfeited 30 days after Mardi Gras, if the taxpayer has not filed the sales tax return. This provision shall not restrict the authority of the director of finance to assess and collect sales and use tax in accordance with section 150-441 et seq.

(b) All moving vendors must keep moving except when making a sale. No stands, card tables or the like, except hand-carried displays, shall be allowed on public streets, sidewalks, alleys, parks, squares, neutral grounds or rights-of-way for the sale or display of goods.

(c) For each permit issued, one Mardi Gras mayoralty badge with a corresponding number shall be purchased by the permittee from the department of finance, which badge must be publicly displayed on their person at all times and failure to do so shall constitute a violation of this chapter.

(d) Mardi Gras mayoralty permits for moving locations shall be invalid in the 100 block of Bourbon Street, Chartres Street and the 100 block of Royal Street and in the Vieux Carré as defined in chapter 166.

(e) Mardi Gras mayoralty permits for moving locations shall only be valid during "parade time" along designated "parade routes."

(f) All moving vendors shall be prohibited from selling silly string. For the purposes of this section, "silly string," regardless of its brand name, shall be defined as an item purchased from a moving vendor during Mardi Gras season and when used emits a string-like or streamer-like substance that is shot or expelled from a pressurized container.

(g) All moving vendors shall be prohibited from selling stink bombs. For the purposes of this section, a "stink bomb," regardless of its actual brand name, shall be defined as a device purchased from a moving vendor during Mardi Gras season for the purpose of emitting an odorous substance when used.

(h) All moving vendors shall be prohibited from selling snap pops. For the purposes of this section, a "snap pop," regardless of its actual brand name, shall be defined as a device purchased from a vendor during Mardi Gras season which contains high explosives.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25661, § 5, 1-23-14)

Sec. 34-39. Mayoralty permits, penalties and interest.

All mayoralty permits must be obtained prior to the occasion for which it is issued. Should applicant fail to secure the permit prior to the occasion, the following penalties and interest shall apply:

(1) Mayoralty permits acquired on a regular yearly basis shall become delinquent February 1 of that year. If the regular yearly permit is not obtained by February 1 of that year, there shall be interest added to the fee at the rate of eight percent per annum from the due date until paid. In addition to the interest

that may be so added, a penalty shall be imposed at the rate of 20 percent of the fee if the failure to obtain such permit is for not more than 30 days and with an additional 20 percent for each additional 30 days or fraction thereof during which the failure continues, not to exceed 60 percent of the amount of the fee.

(2) Mayoralty permits acquired on other than a regular yearly basis shall become delinquent at the start of the occasion. If the permit has not been obtained prior to the occasion, there shall be interest added to the fee at the rate of eight percent per annum from due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 50 percent of the fee.

(3) The director of the department of finance may, at his discretion, for good cause, waive, in whole or in part, any of the penalties provided in this section.

(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-40. Rules and regulations.

The director of finance shall prescribe such other rules and regulations as to the form of the application for permits and their issuance as may be required to carry out the full intent and purpose of this article.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-41. Fees to go to general fund.

The collector of revenue shall transmit, day by day, as collected by him, to the bureau of the treasury all moneys and fees received for the issuance of the permits required by this chapter. The bureau of the treasury upon the receipt of such moneys and fees shall immediately deposit them in the general fund.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-42. Additional charges for police pension fund.

In addition to the charges shown in the fee schedule for each permit, each applicant shall be required to pay the sum of $0.25 for the account of the police pension fund, which additional sum shall be transmitted by the collector of revenue, day by day, as collected by him, to the chief of bureau of the treasury. At the end of each month the chief of the bureau of the treasury shall remit all such sums so collected for account of the police pension fund to the board of trustees, police pension fund.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-43. Obscenity laws to be provided to certain applicants.

The department of finance shall provide a copy of R.S. 14:91.11 relative to sale, exhibition or distribution of material harmful to minors and R.S. 14:106 relative to obscenity to each applicant for a permit under this chapter to conduct live entertainment and to the owner of the premises upon which the live entertainment is proposed to be conducted.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-44. Permits nontransferable.

Permits issued under the authority of this chapter shall be nontransferable and nontransferable either as to individuals, location or item as specified in sections 34-36 through 34-38.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-45. Permits valid in the central business district.

Permits designated in sections 34-37 and 34-38 are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-46. Peddling novelties, souvenirs and foods; prohibited near schools.

It shall be unlawful to sell novelties, souvenirs, candies, nuts, confections, ice cream, ice cream bars, hot tamales, hot dogs, sandwiches, soft drinks, cakes, pies, fruits and vegetables on the city streets within two blocks of any elementary or secondary school when such school is in session.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Sec. 34-47. Offense for misuse of permits.

(a) No person, individual, or corporation shall copy, reproduce, or counterfeit, or cause to be copied, reproduced or counterfeited, any permit issued pursuant to this article by any form or process, or to otherwise represent something to be a valid permit when it is not.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

ARTICLE VIII. ENFORCEMENT AND PENALTIES

Sec. 34-48. Enforcement.

(a) The department of police, the fire department, and department of safety and permits shall issue citations for the violation of any of the provisions of this chapter.

(b) The department of police, the fire department, and the department of safety and permits may remove any person, element, float, or vehicle of any sort from a carnival parade if the person, element, float or vehicle is in violation of any provision of this chapter.

(c) The department of police, the fire department, the department of safety and permits, and the department of sanitation may remove any items, ladders, chairs, enclosures, or portable toilets prohibited pursuant to or placed in violation of the provisions of section 34-33.

(d) Any person responsible for the violation of any provision of section 34-33 may be charged with a criminal offense under chapter 54.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-49. Penalties.

(a) Failure of any carnival organization to comply with any provisions of this chapter may subject the carnival organization to revocation of its parade permit, and/or may be punishable up to the maximum limit provided by law.

(b) If any carnival organization, its member, or any individual riding on its float, willfully violates or permits a violation of any of the provisions of this chapter, the carnival organization may be subject to a $1,000.00 fine for the first violation and $2,000.00 for each subsequent violation thereof and to other sanctions which may be imposed by the city council, including revocation of the carnival organization's permit for the following and subsequent years.

(c) If any individual willfully violates a provision of this chapter, the individual shall be punished by a fine of $1,000.00 fine for the first violation and $2,000.00 for each subsequent violation thereof and may also be subject to imprisonment as allowable by law, or as otherwise provided in this chapter.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99; M.C.S., Ord. No. 25813, § 11, 4-14-14; M.C.S., Ord. No. 29637, § 1, 9-7-23; M.C.S., Ord. No. 30714, § 1, 7-23-26)

Sec. 34-50. Reserved.

Editor's note—M.C.S., Ord. No. 29637, § 1, adopted Sept. 7, 2023, repealed § 34-50, which pertained to permit revocation and derived from M.C.S., Ord. No. 19,314, § 1, adopted July 15, 1999.

Sec. 34-51. Mayoralty permit violations.

Persons who fail to obtain a permit or fail to comply with any of the other regulations contained in this chapter relative to mayoralty permits shall be punished by such fine and/or by such imprisonment as are allowable by law. A permittee so convicted shall forfeit such permit and not be entitled to a refund of the fees paid therefor.
(M.C.S., Ord. No. 19,314, § 1, 7-15-99)

Chapters 35—37

RESERVED

Chapter 38

CEMETERIES*

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Sec. 38-3. No person to be buried except in public cemetery.
Sec. 38-4. State laws—Compliance.
Sec. 38-5. Same—Exceptions.
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*__Cross reference—__Desecration of graves, § 54-377.

__State law reference—__Publicly owned cemeteries, R.S. 8:101 et seq.

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ARTICLE I. IN GENERAL

Sec. 38-1. Permission required for establishment.

There shall not be established within the city any cemetery or depository of the dead without the approval of a conditional use by the city council in accordance with the comprehensive zoning ordinance having first been obtained.
(Code 1956, § 13-1)

Sec. 38-2. Regulations for use of cemeteries not owned by city.

The various churches and associations owning cemeteries may use them under such regulations made by them from time to time as may not conflict with city ordinances and state laws.
(Code 1956, § 13-2)

Sec. 38-3. No person to be buried except in public cemetery.

It shall be unlawful for any person to bury any human body within the limits of the city anywhere outside of a duly authorized public, private, religious or fraternal cemetery.
(Code 1956, § 13-3)

Sec. 38-4. State laws—Compliance.

The keepers of the several cemeteries in the city shall, before receiving for interment within their respective cemeteries any body of any deceased person, see that the requirements imposed by the existing laws of the state have been complied with.
(Code 1956, § 13-4)

Sec. 38-5. Same—Exceptions.

From the effect of section 38-4 is excepted the body of any person who shall have died in the charity or marine hospital or in the army or navy or who shall be ordered to be interred upon the production of the certificate of the coroner.
(Code 1956, § 13-5)

Sec. 38-6. Same—Record of exceptions to be kept.

The registrar of vital statistics of the parish shall procure monthly a list of such persons as shall have died in the charity and marine hospitals and also of such as shall have been interred upon the production of the certificate of the coroner and record it in the books of his office.
(Code 1956, § 13-6)

Sec. 38-7. Same—Endorsement of local registrar as to compliance with state law.

Every burial certificate shall bear the endorsement of the registrar of vital statistics of the parish that such requirements of existing state laws have been fully complied with.
(Code 1956, § 13-7)

State law reference—Death certificate, R.S. 40:34(B)(2) et seq.

Sec. 38-8. Same—Physicians to advise people of necessity for compliance with state law.

The physicians of the city shall inform all persons applying for burial certificates that they will not be received by the keepers of the several cemeteries of the city unless they shall have been endorsed by the registrar of vital statistics of the parish in accordance with section 38-7.
(Code 1956, § 13-8)

Sec. 38-9. No more burials in certain cemetery.

No person shall be buried in the ground of the cemetery or the square comprised within Washington, Sixth, Prytania and Coliseum Streets, of the Fourth District and in the future no interments shall be made therein except by persons owning lots, vaults or tombs and except further that the St. Joseph Asylum, of the Fourth District, may use square nos. 311 and 312 for burial purposes.
(Code 1956, § 13-9)

Sec. 38-10. Graves not to be opened without permission.

No tomb, grave or vault containing any dead body shall be opened without permission in

writing from the owner, assignee or holder of the servitude of right of use of the tomb, grave or vault.
(Code 1956, § 13-11)

State law reference—Permit for removal, burial or other disposition of body, R.S. 40:52.

Sec. 38-11. Punishment for damaging graves, etc.

Any person who shall wantonly damage or destroy the enclosures of any grave, tomb, or monument or damage a tomb or fence in any cemetery shall be liable to punishment in accordance with state law or with section 54-377 of the City Code.
(Code 1956, § 13-12; M.C.S., Ord. No. 18,751, § 2, 6-4-98)

State law reference—Desecration of graves, R.S. 14:101.

Sec. 38-12. Disturbing cemeteries.

Any person who shall enter a cemetery and break the trees or shrubbery therein or deface the tombs or commit any other depredation, use any profane or improper language while on the premises, or sell or offer for sale any refreshment or fruit of any kind within such cemetery shall be liable to a fine in accordance with state law or to penalties as contained in section 54-377 of the City Code.
(Code 1956, § 13-13; M.C.S., Ord. No. 18,751, § 3, 6-4-98)

State law reference—Criminal mischief, R.S. 14:59.

Sec. 38-13. Unlawful to play music in commercial establishments near cemeteries.

It shall be unlawful for any person to play or permit the playing of any radio, phonograph or other sound-producing instrument in any commercial establishment located within 1,000 feet of the outer boundary line of any cemetery or burial ground between the hours of 9:00 a.m. and 6:00 p.m.
(Code 1956, § 13-14)

Sec. 38-14. Printed copy of article to be posted in cemeteries.

A printed copy of this article shall be placed for reference in a conspicuous position at each entrance of all cemeteries within the incorporated limits of the city, at the expense of the sexton of each cemetery.
(Code 1956, § 13-16)

Secs. 38-15—38-50. Reserved.

ARTICLE II. CITY-OWNED CEMETERIES*

DIVISION 1. IN GENERAL

Sec. 38-51. Maintained by the department of property management.

The cemeteries owned by the city shall be operated, managed, and maintained by the division of city cemeteries within the department of property management.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-52. Deposit of funds.

All fees, charges, and revenues received by the city for the use of any city-owned cemetery or for cemetery services rendered or related goods sold or provided by the division of cemeteries or the department of property management shall be deposited into a newly created cemetery repair and maintenance fund, created pursuant to Ordinance No. 28519 M.C.S. and codified at section 70-415.298 et seq. of the Code of the City of New Orleans.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-53. Superintendent of city cemeteries; duties.

The city cemeteries shall be under the control of a superintendent of city cemeteries who shall exercise immediate supervision of necessary

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***Editor's note—**M.C.S., Ord. No. 28518, § 1, adopted Oct. 15, 2020, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 38-51—3861, 38-86—38-92, 38-121—38-129, pertained to similar subject matter, and derived from Code 1956, §§ 13-10, 13-15, 13-17—13-41.

Cross reference—Streets, sidewalks and other public places, ch. 146.

State law reference—Publicly owned cemeteries, R.S. 8:101 et seq.

personnel, activities, operations, and hours of city cemeteries, and shall be in the classified service of the city.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-54. Regulations; suspension.

The superintendent of city cemeteries may make and enforce such other regulations governing the operation of the city cemeteries which are not inconsistent with this article or state law.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-55. Record of burials.

The superintendent of cemeteries shall keep a permanent record of each interment in the city cemeteries under his supervision, which record shall include a copy of the certificate of death of the individual interred and the plot number, square, and location of the place of interment. Such records shall be maintained in perpetuity in the superintendent of cemeteries office.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-56. Personnel to perform cemetery work.

No person other than cemetery personnel under the supervision of the superintendent of cemeteries shall inter, disinter, or reinter any human remains within the confines of any city cemeteries, provided that the superintendent of city cemeteries may permit the performance of such work by noncity parties, so long as said work is performed to the standards set by the superintendent.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-57. Depth and spacing of graves.

Any cemetery sexton or other person digging graves for underground interments shall dig sufficiently deep to allow for at least two feet of soil to cover the entire area of the casket, unless the said interment is in a burial vault, coping or lawn crypt. Spacing shall be adjacent, but not overlapping, the grave shafts on either side.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-58. Plot, space, or structure to be kept orderly.

All persons having an interest in plots, spaces, or structures within city cemeteries shall keep the same in good repair and free from vegetative overgrowth at all times.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-59. Maintenance of cemetery tombs and/or spaces more than 50 years old; sale of repaired abandoned cemetery spaces.

(a) The cemeteries division may renovate and repair but not demolish, at its own cost and/or in conjunction with any private, state, or federal grant or fund, titled cemetery spaces within any city cemetery that are more than 50 years old and which have deteriorated, when the record owner or his spouse or heirs, assigns, or successors have neglected to do such repair or renovation within one year after written notice mailed by registered or certified mail to the last known address of the last record owner on the records of the city, the posting of notice on each of such cemetery spaces and /or tombs, and advertising in the official journal of the parish or municipality notifying the owner thereof that such renovation and/or repair will be made, unless the owner thereof objects by written notice to the office of the cemetery authority before the end of the one year period. Upon failing to receive any objections, after due notice has been given, the city may proceed with the repairs or renovations with impunity.

(b) The cemetery superintendent shall require the payment by the record owner, heirs, or assigns of all documented repair and/or renovation costs before any such renovated or repaired interment space and/or tomb may thereafter be used.

(c) The repaired space and/or tomb shall revert to the ownership of the city if the cemetery superintendent has been unable to locate, after diligent efforts, any of the owners or their successors, assigns, or heirs for a period of three years following the repair or renovation, and the city shall take possession of such interment

spaces and/or tombs and sell and convey same subject to rules and regulations as set forth in La. R.S. 8:308(A).

(d) If the city takes ownership of such space and/or tomb and the cemetery space and it is resold by the city, the existing remains shall remain as a servitude burdening the new ownership of the vault.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-60. Cemeteries; maintenance of vaults and wall vaults more than 50 years old; reclamation by authority.

(a) The cemeteries division may renovate, repair, and/or maintain vaults, at its own cost and/or in conjunction with any private, state, or federal grant or fund, vaults and/or wall vaults that are more than 50 years old located in city cemeteries, which have deteriorated or are in a ruinous state under the following conditions:

(1) In the event that the cemetery superintendent has no evidence of ownership or interments in the vault and/or wall vault in question, it may immediately make the repairs, renovations, and maintenance and after same have been completed, publish as part of a general notice in the official journal of the parish or municipality a notice notifying all persons that if no one comes forward to the office of the cemetery superintendent with written evidence of ownership of the vault and/or wall vault in question within 60 days of the date of publication then the cemetery authority shall have the right to reclaim the ownership of the vault and/or wall vault in question and resell same.

(2) In the event that there is evidence of an interment or interments in the vault and/or wall vault in question, and the cemetery superintendent has no evidence of ownership, the remains may be immediately removed and temporarily reinterred at another location, and the city shall then have the power to immediately make the renovations, repairs, and maintenance necessary, and the same notice procedure set forth in paragraph (1) shall be followed, except that all persons shall have six months to come forward to the office of the cemetery superintendent and present written evidence of ownership in the vault and/or wall vault in question, and in the event that anyone fails to do so within the time prescribed, then the vault and/or wall vault may be reclaimed by the city and resold. If the vault is resold by the city, the existing remains shall remain as a servitude burdening the new ownership of the vault.

(3) In the event that records of the cemetery superintendent indicate that there is a record owner of the vault and/or wall vault in question, the remains, if any, may be immediately removed and temporarily reinterred at another location, and the cemetery superintendent shall have the right and power to immediately make the necessary renovations, repairs, and maintenance; then the cemetery authority shall attempt to contact the owner by registered or certified mail at his last known address, and also publish as part of a general notice in the official journal of the parish or municipality in question a notice stating that in the event the owner or his heirs, assigns, or successors fail to come forward to the office of the cemetery superintendent within six months of the date of the notice and submit written proof of ownership, then the vault and/or wall vault in question may be reclaimed and resold by the city. If the vault is resold by the city, the existing remains shall remain as a servitude burdening the new ownership of the vault.

(4) In addition to the notifications called for in paragraphs (1), (2), and (3) hereinabove, the cemetery superintendent shall also post a common or general sign or notice in a conspicuous place in the cemetery informing the public of the above so that

claimants may come forward in the manner prescribed herein to assert their rights.

(5) Under no circumstances shall the city be prevented from doing repairs, renovations, and maintenance to vaults and/or wall vaults if same are necessary for the preservation of the section of vaults and/or wall vaults in question and/or the beautification of the cemetery. If it becomes necessary to remove remains therefrom, the cemetery authority shall have this right and power as set forth above, but the remains must be kept separate and returned to their original location after work is complete

(6) After the renovations, repairs, and maintenance have been completed and the prescribed time period has lapsed, and the city has reclaimed the ownership of the vault and/or wall vault in question, then all of the remains removed in accordance with the provisions of this Paragraph, shall be reinterred, and the cemetery superintendent shall retain records, tablets, stones, and other information regarding which vaults and/or wall vaults the remains were removed from and the interments therein, and the names of the deceased persons in question, if they are available.

(7) Under no circumstances shall any of the above be construed in such a fashion as to prevent the city from immediately making repairs, renovations, and/or maintenance of wall vaults in the event that same are deemed necessary for the protection of the health, safety, and welfare of the general public.

(8) If a person comes forward to the cemetery superintendent within the time periods prescribed in paragraphs (1) through (3) hereof with satisfactory written evidence of ownership or title to the vault and/or wall vault in question, the cemetery superintendent may require that they pay their pro rata share, to be reasonably determined by the cemetery superintendent, of all actual costs and expenses of repairs, renovations, and maintenance before the said vault and/or wall vault may thereafter be used by them and their title thereto confirmed. If there is some other impediment or objection to reuse of the vault and/or wall vault in question, they must still pay their pro rata share of all costs as set forth hereinabove to confirm their title to same, otherwise ownership or title may be reclaimed by the city and the space resold. Under no circumstances shall the owner of the vault and/or wall vault in question be able to object to the repairs, renovations, and maintenance done or to be done if it is necessary for the preservation of the section of vaults, and/or wall vaults in question, or the protection of the health, safety, and welfare of the general public.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-61. Fees.

Fees for cemetery services and use shall be set annually by the superintendent of cemeteries. The fees shall be re-evaluated annually and based on the fair market value of the service or use. Said fees shall annually be posted in a public location.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-62. Interment days and hours of operation.

The director of the department of property management shall establish the hours of operation for city cemeteries provided however, that all cemeteries shall be open for visitation for an eight-hour period on All Saint's Day, Father's Day and Mother's Day of each year.

The superintendent of cemeteries may determine specific days for interments in each of the city cemeteries.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Secs. 38-63—38-85. Reserved.

DIVISION 2. SERVITUDES FOR PLOTS IN CITY CEMETERIES

Sec. 38-86. Servitudes: Right of use of city cemetery space.

On/in specified areas of city cemeteries, there shall be granted by the city only the servitude of the right of use of space, and no one shall be granted, nor shall the city alienate for the purpose of the interment of human remains, the full ownership of any space or plot.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-87. Application for right of use of space.

(a) Any person desiring to purchase a servitude of the right of use of a space or plot within a city cemetery shall make application for same to the superintendent of cemeteries. The application shall be nontransferable and shall be accompanied by a nonrefundable application fee as provided for in this chapter. No person shall have more than one application pending for a space or plot within a city cemetery at any time.

(b) Applicants shall be granted a right of use for a space or plot within a city cemetery on a first-come, first-served basis. The superintendent of the division of city cemeteries may establish, for each city cemetery, a waiting list, or lists, of applicants for the use of spaces or plots within that cemetery based upon the size or type of space or plot desired or such other criteria as may be deemed desirable.

(c) Upon approval of the application or a grant of servitude of right of use and acceptance by the applicant of the space or plot available, the superintendent of city cemeteries shall cause the right of use of space within a city cemetery to be granted by the execution by the applicant of a written act of grant of servitude of the right of use in a form approved by the city attorney and the director of the department of property management.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-88. Restrictions upon right of use.

Every servitude of right of use granted by the city shall contain the following restrictions:

(1) *Transferability.* The servitude of right of use granted pursuant to this division shall not be transferable except upon the written approval of the director of the department of property management in a form approved by the city attorney. No person granted a servitude of right of use pursuant to this article shall demand or receive from the transferee of such servitude any remuneration whatsoever, provided, however, that the transferor of such servitude may demand, as a condition of the transfer, that the transferee pay a pro-rata amount of the fee for the right of use charged by the city. Nothing in this section shall be construed to deny to co-owners in indivision a right to seek partition by licitation of their jointly held right of use.

(2) *Extent of right of use.* The servitude of right of use granted by this article may be exercised by, and at the exclusive discretion of, the person in whose name the servitude of right of use is granted, his heirs, assigns, or successors in interest, solely for the interment of human remains and subject to the restrictions provided by this chapter, applicable law and the regulations of the department of property management. In no event shall the person in whose name the servitude of right of use is granted, his heirs, assigns, or successors in interest, impose any fee or charge for the interment of human remains in such city cemetery space or plot.

(3) *Term.* All servitudes of right of use granted pursuant to this article shall terminate on the tenth anniversary of the date of grant thereof.

(4) *Renewal of servitude.*

a. Every person granted a servitude of right of use pursuant to this article, or granted a renewal of such

servitude, his heirs, assigns, or successors in interest, shall have the right to renew, for a succeeding ten-year period, the servitude of the right of use granted to him. The right of renewal granted by this subsection shall be exercised by:

1. Written notice of the intention to renew the servitude filed with the superintendent of the division of city cemeteries not sooner than one year, nor later than 30 days, prior to the expiration of the then-current term of such servitude, and accompanied by;
2. The applicable renewal fee; and
3. In the case of renewal by an heir, assign, or successor in interest, a judgment of possession of a court of competent jurisdiction, an act translative of title or an affidavit which meets the requirements of section 38-92(a)(1)

b. The renewal of any servitude of right of use shall be conditioned upon the payment by the renewing grantee of the then-current fee for the grant of the servitude of right of use.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-89. Extinguishment of servitude of right of use.

Absent renewal of the servitude as set out in section 38-88 above, the servitude for a right of use shall extinguish at the end of ten years without any required notice or action by the city or the superintendent of cemeteries.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-90. Construction pursuant to servitude of right of use.

Markers, copings, boxes, railings, and other enclosures:

(1) must not exceed 3.5' × 8' in dimension on the outside of the form and

(2) must not interfere with the long-term use of the grave shaft or site.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

DIVISION 3. TITLE TO PLOTS IN CITY CEMETERIES

Sec. 38-91. Title transfers; judgment of possession, act translative of title.

(a) Any person claiming to be the successor in interest of any person in whose name title to a space or plot within a city cemetery is held, and who desires that the title to such space or plot be transferred to claimant's name shall make written application, in a form approved by the department of property management, to the superintendent of city cemeteries for a transfer of title, and shall present to the director together with such application either:

(1) A judgment of a court of competent jurisdiction recognizing the person requesting such transfer as the rightful heir or legatee of the title holder of record and placing them in possession of the space or plot in question, or,

(2) An act translative of title and in authentic form, showing the person requesting such transfer to be the successor in interest of the title holder of record to the space or plot in question.

(b) The superintendent of the division of city cemeteries shall present the application and the documents required under this division to the city attorney for approval as to form and legality, and, if so approved by the city attorney, shall issue a new title in the name or names of the persons requesting the transfer.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-92. Title transfer requests without judgment of possession, act translative of title.

(a) Any person claiming to be the successor in interest of any person in whose name title to a space or plot within a city cemetery is held, and who desires that the title to such space or plot be

transferred to the claimant's name, and who does not or cannot comply with the provisions of section 38-91(a), shall include with the application for transfer:

(1) A notarized affidavit of death and heirship showing the relationship of the person requesting such transfer to the title holder of record of the space or plot for which the title transfer is requested and outlining the requesting party's line of descent from the title holder of record, stating the names of all of the descendants and all of the collateral relations, and their descendants, of the title holder of record and whether such persons are dead or alive, and further stating that the person requesting the transfer of title shall hold the city harmless from and indemnify the city for all claims, suits, demands or judgments arising out of or in connection with the use, by the party requesting the transfer of title, of the space or plot within the city cemetery; and

(2) An affidavit of a disinterested, but informed, person, setting forth the facts of the death of the title holder of record and identifying the spouse and descendants and heirs of the title holder of record. The affidavits shall be approved as to form and legality by the city attorney.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Secs. 38-93—38-120. Reserved.

DIVISION 4. STRUCTURES WITHIN CITY CEMETERIES

Sec. 38-121. Characteristics of tombs; repairs, etc.

All tombs must be built of high-quality components approved by the superintendent of cemeteries. All the tombs must be kept in good order by the owners.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-122. Construction and alteration permit required.

(a) No contractor, builder, monument dealer, gardener or other person shall place or construct any tomb, coping, vault of any description, headstone, marker, tablet, statue, trees or shrubbery, make any repairs, redesign or alter, or demolish in whole or part, any existing structure within a city cemetery without first obtaining the approval of the superintendent of city cemeteries, who, upon approving such work to be in accordance with the provisions of this article, will issue a construction and alteration permit.

(b) The provisions of this article shall not be deemed to apply to routine maintenance or the routine trimming of grass, trees or shrubbery, the inscribing of names upon tablets or headstones already in place or other work incidental, as a matter of course, to interment, disinterment or reinterment.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-123. Permit application; fees; criteria.

The superintendent of city cemeteries shall prescribe the procedure and forms for making application for a construction and alteration permit and fees for such permit shall be charged in accordance with fair market value as determined annually. The superintendent of city cemeteries shall issue such permit provided that the quality and grade of materials used in the construction or alteration and the general design and general arrangement meet criteria which the superintendent deems appropriate.

(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-124. Historic cemeteries—Designation; certificate required.

(a) Any city cemetery designated a National Historic Site or Landmark, entered upon the National Register of Historic Places, accorded historic site status by the state department of culture, recreation and tourism or which is bounded by or falls within any historic district shall be considered a historic cemetery. No contractor, builder, monument dealer, gardener or other person shall place or construct any tomb, coping, vault of any description, headstone, marker, tablet, statue, tree or shrubbery, make any repairs, redesign or alter or demolish in whole or part, any existing structure within a city cemetery, without first obtaining the approval of the

superintendent of city cemeteries, who upon approving the design and plan to be in accordance with the provisions of this division, will issue a certificate of appropriateness.

(b) Such certificate shall be in lieu of a construction and alteration permit provided, however, that the fees established by section 38-61 shall be applicable to the application and receipt of the certificate.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-125. Same—Criteria.

(a) The superintendent of cemeteries, in passing upon an application for a certificate of appropriateness for construction, alteration or demolition in any city cemetery which is bounded by or falls within any historic district shall consider the following criteria in addition to the criteria set forth in section 38-127:

(1) *New construction.*

a. All new construction shall be visually compatible with the cemetery structures and environment with which it is related;

b. The general design, scale, gross volume, arrangement of the site plan, texture, material and exterior architectural features shall be in harmony with its surroundings and shall not impair the "tout ensemble" of the cemetery;

c. No one architectural style shall be imposed;

d. Quality and excellence in design should be major considerations.

(2) *Alterations.* Exterior alterations shall not affect the architectural quality or historic character of the structure.

(3) *Demolition.*

a. The historic or architectural significance of the structure and its importance to the "tout ensemble" of the cemetery;

b. The special character and aesthetic interest that the structure adds to the cemetery;

c. The cost of renovation and repair of the structure;

d. The danger posted to life or property from collapse of the structure.

(b) These criteria shall also be accorded consideration in any review of an application for a certificate of appropriateness by the superintendent of city cemeteries.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-126. Certificate of appropriateness—Posting; expiration.

(a) The certificate of appropriateness shall be posted where plainly visible on or near the exterior of the structure to be constructed, altered or demolished during the period of such construction, alteration or demolition.

(b) All certificates of appropriateness shall expire 90 days after the date of issuance if the work approved has not commenced.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-127. Same—Denial; appeal.

(a) The superintendent of city cemeteries shall notify by certified mail every applicant who is denied a certificate of appropriateness.

(b) Any applicant denied a certificate of appropriateness may appeal the finding of the superintendent of city cemeteries by filing a written request for review of the superintendent's determination with the director of the department of property management within 15 days of the applicant's receipt of the notice of denial.

(c) The director of the department of property management shall afford the applicant reasonable opportunity to present testimony or documentary evidence regarding the construction, alteration or demolition proposed by the applicant and may solicit expert testimony regarding the architectural or historic importance or significance of the structure in question. In reviewing the denial of an application for a certificate of appropriateness, the director of the department of property management shall consider the quality and grade of materials to be used in the construction or alteration, the general design and general arrangement, the architectural

style, the scale, the historic or architectural significance of the structure in question and such other criteria as the director may deem appropriate.

(d) The director of the department of property management shall either affirm or overrule the denial of the superintendent of city cemeteries and shall notify the applicant of his decision by certified mail.

(e) Any applicant denied a certificate of appropriateness by decision of the director of property management may appeal the finding of the director of property management by filing a written request for review of the director's determination with the clerk of council within 15 days of the applicant's receipt of the property management director's notice of denial.

(f) The council shall consider the applicant's request for review at its next regular meeting, or at any regular meeting within 60 days of the applicant's filing of appeal with the clerk of council, and the council may affirm or overrule the denial of a certificate of appropriateness by an affirmative vote of a majority of all of its members, failing which the decision of the director of the department of property management shall stand as final.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-128. Sanctions.

Whoever shall place or construct any tomb, coping, vault of any description, headstone, marker, tablet, statue, trees or shrubbery or make any repairs, redesign, alter or demolish any existing structure within a city cemetery without first securing a certificate of appropriateness in accordance with the provisions of this article shall be guilty of a misdemeanor, which shall be punishable by a fine not to exceed $300.00 and/or 90 days in jail. Each day upon which a violation of this section shall occur shall be deemed a separate offense.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

Sec. 38-129. Temporary or emergency constructions.

Nothing contained in this division shall prevent the making of a temporary construction, alteration or demolition of any structure within a city cemetery when such construction, alteration or demolition is undertaken under or by the order of any court or governmental agency for the purpose of remedying emergency conditions determined to be dangerous to life, health or property.
(M.C.S., Ord. No. 28518, § 1, 10-15-20)

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Chapter 42

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ARTICLE I. IN GENERAL

Secs. 42-1—42-35. Reserved.

ARTICLE II. RAFFLES, BINGO AND KENO*

DIVISION 1. GENERALLY

Sec. 42-36. Rules and regulations.

The director of finance may, with the consent of the mayor, submit to the council for its approval such reasonable rules and regulations necessary to the enforcement of this article. No such rule or regulations shall become effective until approved by resolution of the council.
(Code 1956, § 14-59)

State law reference—Charitable Raffles, Bingo and Keno Licensing Law, R.S. 33:4861.1 et seq.

Sec. 42-37. Raffles, bingo, video bingo, keno, and pull tabs prohibited.

It shall be unlawful for any person to hold, conduct, or operate the game or games of chance commonly known as raffles, bingo, electronic video bingo, keno, or pull tabs unless licensed to do so under the provisions of this article.
(Code 1956, § 14-41)

Sec. 42-38. Charitable raffles, bingo and keno authorized.

It shall be lawful for any bona fide nonprofit veteran's, charitable, educational, religious or fraternal organizations, or civic and service clubs licensed under this article, to hold and operate the specific kind of game of chance commonly known as a raffle played by drawing for prizes or the allotment of prizes by chance by the selling of shares or tickets or rights to participate in such game and by conducting the game accordingly; and the game of chance commonly known as bingo or keno played for prizes with cards bearing numbers or other designations, five or more in one line, the holder covering numbers, as objects, similarly numbered, are drawn from a receptacle, and the game being won by the person who first covers a previously designated arrangement of numbers on such a card, by selling shares or tickets or rights to participate in such games and by conducting the games accordingly when the entire net proceeds of such games of chance are to be devoted to educational, charitable, patriotic, religious or public spirited uses and the department of finance may issue a license to any such organization or club above specified in accordance with the provisions of this article.
(Code 1956, § 14-42)

State law references—Definition, R.S. 33:4861.2(1); requirement for state license, R.S. 33:4861.4.

Sec. 42-39. Pull tabs authorized.

It shall be lawful for any bona fide nonprofit veterans, charitable, educational, religious or fraternal organizations, or civic and service clubs licensed under this article to hold the specific game known as pull tabs. The term "pull tabs" shall mean single or banded tickets or cards each with its face covered to conceal one or more numbers or symbols, where one or more card or ticket in each set has been designated in advance as a "winner." Funds from all pull tab sales, after deduction of necessary expenses, shall be dedicated for use by bona fide nonprofit veterans, charitable, educational, religious or fraternal organizations, or civic and service clubs in accordance with R.S. 33:4861.1 et seq.
(Code 1956, § 14-42.1)

State law reference—Definition, R.S. 33:4861.2.

Sec. 42-40. Gambling; immunity.

No person shall be liable to prosecution or conviction for violation of section 54-276 for any of the following:

(1) Possessing, selling or in any manner disposing of, in the city, any shares, tickets or rights to participate in any game of chance conducted or to be conducted under any license lawfully issued pursuant to this article;

(2) Lawfully conducting or participating in the conduct of any such game of chance; or

(3) Permitting the conduct of any such game of chance upon premises owned by him or it of

*Cross reference—Amusements and entertainments, ch. 14.

State law reference—Charitable raffles, bingo and keno, generally, R.S. 33:4861.1 et seq., 40:1485.1 et seq.

any game of chance conducted or to be conducted under any license lawfully issued pursuant to this article.

This immunity shall not extend to any person or corporation knowingly conducting or participating in the conduct of any game of chance under any license obtained by any false pretense or statement in any application for such license or otherwise, or possessing, selling or disposing of shares, tickets, or rights to participate in, or permitting the conduct upon any premises owned by him or it of any game of chance conducted under any license known to him or it to have been ordained by any such false or fraudulent pretense or statement.
(Code 1956, § 14-56)

Secs. 42-41—42-65. Reserved.

DIVISION 2. LICENSES

Sec. 42-66. Required, application procedures.

(a) Each applicant for a license to conduct charitable raffles, bingo, keno or pull tabs under this article shall annually, but not less than 30 days prior to the proposed commencement of activities licensed under this article, file with the department of finance a written application on forms provided by the department; the application shall be duly executed and verified, in which shall be stated the name and address of the applicant together with sufficient facts relating to its incorporation and organization to enable the department to determine whether or not it is a bona fide nonprofit veteran's, charitable, educational, religious or fraternal organization or civic and service club; the names, addresses, and social security numbers of its officers; the specific kind of game or games of chance intended to be held, operated and conducted by the applicant, and the place or places where, the date or dates and the time or times when such game or games of chance are intended to be conducted by the applicant under the license applied for; the items of expense intended to be incurred or paid in connection with the holding, operating and conducting of such game or games of chance and the names and addresses of the persons to whom, and the purposes for which, they are to be paid; the specific purposes to which the entire net proceeds of such game or games of chance are to be devoted and in what manner; that no commission, salary, compensation, reward or recompense will be paid to any person for holding, operating or conducting or assisting in the holding, operation or conduct of such games of chance; and, a description of all prizes to be offered and given in all such games of chance to be held, operated and conducted under such license.

(b) In each application there shall be designated an active member or members of the applicant under whose supervision the game of chance described in the application are to be held, operated and conducted; and, to the application shall be appended a statement executed by the applicant and by the member or members so designated that he or they will be responsible for the holding, operation and conduct of such game or games of chance in accordance with the terms of such license. The applicant shall be a domiciliary of and resident of the parish. The applicant shall additionally furnish proof of tax exempt status under the provisions of 26 U.S.C. 501C.(3), (4), (8) or (19) and a copy of the most current federal income tax return of the organization.

(c) The applicant shall additionally submit a sworn affidavit that the applicant does not conduct a bingo, keno, raffle or pull tabs game in another parish. No applicant which operates a bingo, keno, raffle or pull tabs game in another parish shall be granted a license under this division. The operation or conduct of bingo, keno, raffles or pull tabs game by a licensee under this division in another parish shall be cause for suspension or revocation of the license granted pursuant to this division. This subsection shall not apply to applicants who only participate, operate or conduct a bingo, keno, or raffle in conjunction with a cable television bingo transmission as authorized in article III of this chapter.

(d) The applicant shall additionally submit a financial statement showing the organization has sufficient capital available to finance its own games, such financial statement to be certified as accurate by the president and chief financial officer of the organization.

(e) The applicant for a license under this division shall be subject to the provisions of the Public Records Act.

(f) The applicant shall supply all of the information required in the initial application, including but not limited to the domicile of the nonprofit organization; the names, addresses and social security numbers of its officers and active operators of the games; the items of expense intended to be incurred or paid in connection with the holding, operating and conduct of such game; and the specific purposes to which the entire net proceeds of such games are to be devoted to. In evaluating an application for the renewal of a charitable raffle, bingo, keno or other charitable game of chance permit, the department of finance shall use the same investigative procedures and criteria as is required for an initial application.
(Code 1956, § 14-43)

State law references—Definition, R.S. 33:4861.2(1); application for license, R.S. 33:4861.5; application requirements, R.S. 33:4861.5.

Sec. 42-67. Application requirements for certain organizations.

Notwithstanding the provisions of subsections (b) and (c) of section 42-66 with regard to the requirement that applicants for a license to conduct charitable raffles, bingo, or keno be domiciliaries and residents of the parish, and that applicants do not conduct charitable games of chance in other parishes, an organization which operates within the parish as a unit of an organization domiciled elsewhere in the state may be issued a license under this division under the following conditions:

(1) The applicant shall submit applicable articles of incorporation and by-laws describing the status of the organization to the department of finance.

(2) The director of the department of finance or his designated representative shall review the material submitted and make a recommendation as to whether or not the organization operates independently as a unit of an organization domiciled elsewhere in the state and devotes the proceeds of its activities to educational, charitable, patriotic, religious, or public spirited uses within the parish.

(3) An initial application for a license pursuant to this section shall not be issued unless the director of the department of finance or his designated representative has reviewed the application and made a recommendation concerning issuance of the license to the council and the council has approved the issuance of the license by resolution. The council may act contrary to the recommendation of the director of the department of finance or his designated representative. Renewals of licenses previously approved by council resolution shall not require subsequent council approval.

(4) Failure of an organization holding a license under this section to devote proceeds from the conduct of charitable games of chance to activities in the parish shall be cause for suspension or revocation of the license.

(5) All other provisions of this division shall be applicable to an organization granted a license pursuant to this section.

(Code 1956, § 14-43.01)

State law references—Definition, R.S. 33:4861.2(1); application for license, R.S. 33:4861.5.

Sec. 42-68. Games conducted in other parishes.

Notwithstanding the provisions of subsection (c) of section 42-66, a license to conduct charitable games of chance under this division may be issued to a nonprofit, nonstock corporation that provides professional education, public education, community and patient services, and research to improve the care and treatment of those afflicted with diseases of the kidney provided that the applicant is a domiciliary of the parish and meets all other requirements of this division even if the organization conducts charitable games of chance in another parish. An organization granted a license pursuant to this section may conduct charitable games of chance in another parish. All other

requirements of this division shall apply to an organization granted a license pursuant to this section.
(Code 1956, § 14-43.02)

Sec. 42-69. Senior citizens clubs.

(a) Notwithstanding any provision of this division to the contrary, the department of finance may issue a license for the conduct of raffles, bingo or keno to nonprofit civic clubs for senior citizens, which clubs are hereby found to constitute a class which tends to promote the general welfare by affording recreational opportunities and companionship for older citizens. For the purposes of this section, a club is a club for senior citizens if at least 75 percent of its members are 55 years of age or older.

(b) A license issued pursuant to this section shall be subject to the following restrictions:

(1) Games of chance shall not be conducted more often than twice each month.

(2) The total value of prizes awarded for bingo and keno shall not exceed $300.00 per occasion on which the games of chance are conducted.

(3) The games of chance conducted shall be held only as an activity on a program including the serving of meals.

(c) A club applying for a license to conduct games of chance pursuant to this section shall not be required to furnish proof of tax exempt status under title 26 of the United States Code.

(d) All other provisions and requirements of this division shall apply to civic clubs for senior citizens licensed pursuant to this section.
(Code 1956, § 14-43.1)

State law reference—Authorization to license certain organizations, R.S. 33:4861.4(D).

Sec. 42-70. Special licenses.

(a) It is hereby lawful for any charitable organization licensed by the state and city for the conduct of charitable bingo to apply for a special license for the conduct of no more than two bingo sessions annually at which the total amount of prizes which may be awarded on any one calendar day under such a license shall not exceed $25,000.00 in cash or other thing or things of value in accordance with applicable state law. Except as otherwise provided by this article and applicable state law, all other provisions of this article shall apply to the issuance of such special licenses.

(b) The council may by motion authorize the waiver of limits on expenditures for janitorial service, security service and space rental imposed by section 42-126 for charitable bingos conducted in accordance with subsection (a) of this section. The motion authorizing the waiver shall specify a maximum amount which may be expended for janitorial and security service and space rental, and such a motion shall be required for each separate occasion. Each such motion shall be forwarded by the clerk of council to the department of finance.
(Code 1956, § 14-52.2)

Sec. 42-71. Investigation of applicants.

The department of finance shall make or cause to be made an investigation of the qualifications of each applicant and the merits of the application, with due expedition after the filing of the application, and it shall determine whether the applicant is duly qualified to hold, operate and conduct games of chance under the provisions of this division; that the member or members of the applicant designated in the application to hold, operate or conduct or assist in holding, operating or conducting the game or games of chance are bona fide active members of the applicant and persons of good moral character and have never been convicted of a felony or a misdemeanor involving gambling or related offenses or a misdemeanor involving moral turpitude.
(Code 1956, § 14-44)

Sec. 42-72. Issuance, fee.

If satisfied from its investigation that the applicant for a license under this division is qualified to conduct charitable games of chance, the department of finance shall issue a license for the conduct of bingo, keno, and raffles upon payment

of an annual fee in accordance with the following schedule:

License	*Annual Fee*
(1) Bingo, keno and raffles.....	$100.00
(2) Pull tabs:	
a. At leased bingo hall facilities.....	250.00
b. Other locations	50.00
c. One occasion	15.00
(3) Electronic video bingo.....	100.00
(4) One annual raffle.....	10.00

(Code 1956, § 14-45)

Sec. 42-73. Term.

Licenses under this division shall be valid beginning on April 1, 1978. All licenses under this division shall be valid from time of issuance until March 31 next following, unless sooner suspended or revoked in accordance with this division.
(Code 1956, § 14-46)

Sec. 42-74. Form.

Each license issued under this division shall contain a statement or description of:

(1) The kinds of games of chance authorized to be held, operated and conducted thereunder;

(2) The name and address of the licensee;

(3) The names and addresses of the member or members of the applicant under whom such games of chance will be held, operated and conducted;

(4) The number of times, or the hours during which, such games of chance are authorized to be conducted;

(5) The places where and the dates and times when such games of chance are to be conducted; and

(6) The specific purposes to which the entire net proceeds of such games of chance are to be devoted.

(Code 1956, § 14-48)

Sec. 42-75. Display.

All licenses issued under the provisions of this division shall be publicly displayed by the licensee at the place where any game is conducted thereunder at all times during the conduct thereof, so as to be easily seen by the public and the department of finance or its authorized agents.
(Code 1956, § 14-49)

Secs. 42-76—42-100. Reserved.

DIVISION 3. DENIAL, SUSPENSION OR REVOCATION

Sec. 42-101. Refusal to issue license; appeal.

(a) If the department of finance finds that the applicant for the license is not in compliance with the provisions of this article, it shall deny the application for the license or renewal thereof. This denial shall be communicated to the applicant by registered or certified mail, giving specific reasons for such denial.

(b) In order to afford every person a full opportunity to be heard, it is hereby provided that when an application for a license or renewal thereof is denied, the applicant, within ten days from the date of notification of such denial, may petition in writing the department of finance for a hearing. Such hearing shall be held by the chief administrative officer or his designated representative, the city attorney or his designated representative, and the director of the department of finance or his designated representative after due notice of the hearing to the applicant.

(c) If, following such hearing, the parties representing the city find that the application for the license is not in compliance with this division, or that the applicant does not meet the qualifications required by this division, then the department of finance shall be instructed to confirm the denial of the application for a license. This denial shall be communicated to the applicant by registered or certified mail, giving the specific reason for such denial and shall constitute the final action of the city in connection with such application.
(Code 1956, § 14-47)

Sec. 42-102. Grounds for revocation.

(a) Any person who shall make any false statement in any application for a license under this article, or shall fail to keep such books and records and shall fully and truly record all transactions connected with the holding, operating or conducting of games of chance under any such license, or shall falsify or make any false entry in any books or records so far as they relate to any transaction connected with the holding, operating and conducting of any game of chance under any such license, or shall fail to submit in a timely manner any reports required under the provisions of this article, or conduct any game of chance not authorized by this article, or shall violate any of the provisions of this article, or of any term of such license, shall, in addition to suffering any other penalties which may be imposed by law, forfeit his current license upon a determination to revoke the same, and shall be ineligible to apply for a license under this article for one year after the date of such revocation.

(b) No license shall be issued to any applicant for the use of the same physical location or premises whereon the license of the previous licensee has been revoked for six months after the date of such revocation.

(c) Notwithstanding any provision of this section to the contrary, a violation of this article committed during the term of a previous license shall also constitute cause or grounds for revocation of a current license held under this article.

(Code 1956, § 14-57)

State law reference—Charitable Raffles, Bingo and Keno Licensing Law, R.S. 33:4861.1 et seq.

Sec. 42-103. Suspension pending hearing.

(a) Whenever any person licensed under this article is found to be in violation of any provision of this article by the department of finance through its officers, employees, or authorized agents or the department of police, then such licensee shall be issued a written citation which shall set forth the facts and circumstances of the violation and command such licensee to appear before the director of the department of finance at a date, time and place therein specified to show cause why his license should not be suspended pending the filing of a petition for revocation and a hearing thereon.

(b) Upon receipt of evidence satisfactory to the director of the department of finance at such hearing that any person licensed under this article has violated the provisions of this article, the director of the department of finance shall forthwith suspend the license of such licensee pending the filing of a petition to revoke the license. This suspension shall remain in effect for a period of 30 days unless extended by the chief administrative officer because of a delay in the revocation hearing date initiated by the licensee or his representative or the director of the department of finance. This suspension may be withdrawn at any time by the director of the department of finance upon his determination not to file a petition for revocation or for other good cause. Any licensee who has his license suspended under this section may appeal to the chief administrative officer for a review of the decision by the director of the department of finance.

(Code 1956, § 14-57.1)

State law reference—Charitable Raffles, Bingo and Keno Licensing Law, R.S. 33:4861.1 et seq.

Sec. 42-104. Procedure.

(a) Upon petition filed by either the superintendent of police, the director of the department of finance, or the city attorney, setting forth causes for suspension or revocation of a license issued under the provisions of this article, a hearing shall be held by the chief administrative officer or his designated representative, the city attorney or his designated representative and the director of the department of finance or his designated representative, to determine whether the license of the person charged shall be suspended or revoked. A notice shall be served upon the holder of the license stating the time and place of such hearing, which shall be not less than ten calendar days from the date such notice is given. The notice shall be sent by the director of the department of finance and shall enumerate the cause or causes for suspension or revocation of the license. The notice may be mailed by certified mail to the holder of the license at the address given in the application for the license, or may be served on him in person

by a police officer or employee of the department of finance.

(b) After hearing all evidence and after due consideration, the parties representing the city may suspend or revoke the license issued under the provisions of this article.

(c) If proper notice has been served upon the defendant, the hearing required under this section may proceed without his presence if he fails to appear.

(d) Certified copies of convictions involving violations of this article in the municipal court shall constitute prima facie proof of the violation by the holder of the license.
(Code 1956, § 14-58)

State law reference—Charitable Raffles, Bingo and Keno Licensing Law, R.S. 33:4861.1 et seq.

Secs. 42-105—42-120. Reserved.

DIVISION 4. GENERAL REGULATIONS

Sec. 42-121. Regulation and inspections.

The department of finance through its officers, employees, or authorized agents and the department of police shall have and exercise control and supervision over all games of chance held, operated and conducted under such license to the end that the same are fairly held, operated and conducted in accordance with the provisions of such license and this article. The department of finance through its officers and agents, and the department of police, shall have the right of entry at all times onto any premises where any such games of chance are being held, operated and conducted or where it is intended that any such game of chance shall be held, operated and conducted, or where any equipment being used or intended to be used in the conduct thereof is found, for the purpose of inspecting the same.
(Code 1956, § 14-50)

Sec. 42-122. Frequency of games.

(a) Except as provided in article IV of this chapter, no session of a charitable game of chance shall be held, operated or conducted under any license issued under this article more than 15 days in any one calendar month, or shall any session of a charitable game of chance be held in any one building more than twice in any one week from Sunday to Saturday. A licensed, leased bingo facility permitted under article IV of this chapter shall not be subject to the restriction limiting the conduct of charitable games of chance to two sessions per week.

(b) For the purposes of this section, a session of a charitable game of chance is a four-hour period of time during which one or more permitted games of chance are played.

(c) No charitable games of chance shall be conducted at leased bingo hall facilities licensed in accordance with article IV of this chapter on Sundays from 12:01 a.m. until 1:00 p.m. nor shall such charitable games of chance be conducted at any location at times which are prohibited by the comprehensive zoning ordinance.
(Code 1956, § 14-51)

Sec. 42-123. Operation and conduct of games.

No person shall hold, operate or conduct, or assist in holding, operating or conducting, any game or games of chance under any license issued under this article except an active member of the organization or association to which the license is issued. No such game of chance shall be conducted with any equipment, except such as shall be owned absolutely or used without payment of any compensation therefor by licensee. No item of expense shall be incurred or paid in connection with the holding, operating or conducting of any game of chance held, operated or conducted pursuant to any license issued under this article, except such as are bona fide items of expense for goods, wares and merchandise furnished which are reasonably necessary to be purchased or furnished for the holding, operating or conducting of such game. No commission, salary, compensation, reward or recompense whatever shall be paid or given, directly or indirectly, to any person holding, operating or conducting, or assisting in the holding, operation or conduct of any game of chance so held, operated or conducted provided that any association or corporation licensed to hold, operate, or

conduct any games of chance under any license issued pursuant to this article may compensate for services rendered, any 15 employees who assist in the holding, operating, or conducting of such games. The rate of compensation shall be no more than $15.00 per hour and in any event shall not exceed $90.00 per session for any employee. Each employee or volunteer worker may also be provided meals and beverages to be eaten on the premises not to exceed a total value of $15.00 per person. Compensation provided for in this section shall not constitute a violation of the prohibition against the payment or giving of any person holding, operating, or conducting any such game.
(Code 1956, § 14-52; M.C.S., Ord. No. 28762, § 1, 8-5-21)

State law reference—Commissions or salaries, R.S. 33:4861.12.

Sec. 42-124. Prize limits.

On any one day on which bingo or keno games are staged by a licensee, the total amount of prizes or possible prizes available to patrons of the bingo or keno games shall not exceed the amount of $3,500.00. All prizes, cash or otherwise, shall be provided by the individual licensee.
(Code 1956, § 14-52.1)

State law reference—Similar provisions, R.S. 33:4861.11(B).

Sec. 42-125. Reports by licensee.

Not later than 20 days after January 1, April 1, July 1 and October 1 of each year, each licensee under this article shall furnish to the department of finance a duly verified statement showing the amount of the gross receipts derived from activities licensed under this article for the quarter preceding the reporting dates established hereinabove, which shall include receipts from the sale of shares, tickets or rights in any manner connected with participation in such activities or the right to participate therein, each item of expense incurred, or paid, and each item of expenditure made or to be made, name and address of each person to whom each such item has been, or is to be paid, with a detailed description of the merchandise purchased or the services rendered therefor, the net profit derived from each game of chance, and the uses to which such net profit has been or is to be applied and a list of prizes offered or given, with the respective values thereof. It shall be the duty of each licensee to maintain and keep such books and records as may be necessary to substantiate the particulars of each such report. Reports furnished under this section shall be subject to the provisions of the Public Records Act.
(Code 1956, § 14-53)

Sec. 42-126. Payment of expenses; bookkeeping.

(a) Payment of expenses by a licensee under this article shall be made only by checks signed by a duly authorized person and made payable to a specific person, and at no time shall a check be made payable to cash. Permitted expenses shall only be for one or more of the following purposes:

(1) Payment of necessary expenses incurred in connection with the conduct of charitable games of chance. For the purposes of this section, promotion or advertising shall not be considered a necessary expense.

(2) Raffles, bingo, and keno supplies, equipment.

(3) Bookkeeping or accounting.

(4) Janitorial service and security service, not to exceed a total of $170.00 per occasion.

(5) License fees.

(6) Disbursement of net proceeds derived from the charitable raffles, bingo, and keno for educational, charitable, patriotic, religious or public spirited uses.

(7) The transfer of net proceeds derived from the conduct of charitable raffles, bingo, or keno into one or more interest bearing accounts.

(8) Space rental not to exceed $400.00 per occasion.

(9) Payment of employees in accordance with section 42-123.

(b) Each licensee shall maintain a bookkeeping system for the purpose of recording all receipts and expenditures in connection with the conduct of charitable games of chance and the disbursement of net proceeds derived therefrom. The books of account shall be kept up to date. Bookkeeping records, deposit books, savings account passbooks, cancelled checks, checkbooks, deposit slips, bank statements and copies of statements required

under this article and all other books of account shall be available for examination by the department of finance or their representatives at all reasonable times, and shall be maintained by the licensee for three years following the expiration of each year's license.

(c) The provisions of subsections (4) and (8) of subsection (a) of this section shall not apply to any charitable bingo game or other charitable game of chance which is conducted by an organization which has been duly licensed as of January 1, 1981, and is held in a facility that is owned by the Louisiana Stadium and Exhibition District and which is held at a maximum frequency of two events per calendar year.
(Code 1956, § 14-54)

State law reference—Expenses, R.S. 33:4861.12(A)(5).

Sec. 42-127. Examination of books and records.

The department of finance or its authorized agents shall have power to examine or to cause to be examined the books and records of any organization or association to which such license is issued so far as they may relate to any transactions connected with the holding and conducting of any game of chance thereunder, and to examine any manager, officer, director, agent, member or employee thereof under oath in relation to the conduct of any such game of chance under any such license, but any information so received shall not be disclosed except so far as may be necessary for the purpose of carrying out the provisions of this article.
(Code 1956, § 14-55)

Sec. 42-128. Electronic video bingo.

(a) Any organization licensed to conduct bingo games under this article may apply to conduct electronic video bingo at its bingo games provided that all requirements of this article not in conflict with the provisions of this section are met.

(b) Any electronic bingo machine used in the conduct of electronic video bingo shall be subject to the following requirements and restrictions concerning its operation and use:

(1) The cost of each game play shall be not less than $0.25 nor more than $1.00.

(2) Payout shall be not less than 80 percent and not more than 90 percent of the total amount wagered.

(3) The maximum prize awarded shall be not more than $1,000.00.

(4) The machine shall dispense only tickets verified as valid, indicating the prize amount. No machine shall dispense cash.

(5) The machine shall allow only a linear based payout in which the amount of the payout follows a straight line progression in direct proportion to the amount wagered.

(6) The machine shall allow the player a choice of cards on which to play and must show a "BINGO" at the end of play.

(7) The machine shall provide for an electronic readout giving, at a minimum, a summary of total wagers, total plays, total payout, and the current prize allotment since the last date of summary or the last date of reset of the machine.

(c) Only cash prizes may be awarded to winners of games on electronic video machines.

(d) Bingo licensees may lease electronic video bingo machines provided that no lease agreement shall authorize the lessor to receive a percentage of the receipts from the machine.

(e) At least 45 percent of the net win from the machine must be paid to the licensee leasing the machine. The term "net win" means the total gross receipts of the machine reduced only by the actual prizes paid.

(f) In addition to the requirements of this section, all bingo licensees using electronic video bingo machines and all manufacturers, distributors, suppliers or lessors of electronic video bingo machines are subject to the rules, regulations, and licensing requirements of the state.

(g) Lessors licensed by the state to lease electronic video bingo machines shall submit to the department of finance duplicate copies of all documents and reports submitted to the state regarding machines leased for play in the city.

(h) Lessors licensed by the state to lease electronic video bingo machines shall submit a sworn affidavit to the department of finance stating they are familiar with and shall comply with the provisions of this article.

(i) Organizations licensed to conduct games of chance in the city which purchase electronic video bingo machines shall comply with all provisions of this section.

(j) Compensation to a licensed bingo lessor for allowing video bingo machines to be used on its premises may be paid only by the actual owner of the machines. Any such compensation paid by a licensed charitable organization which owns machines may not exceed a reasonable amount established by rules of the department of finance which have been approved by resolution of the council.

(Code 1956, § 14-59.1)

State law reference—Use of electronic or video bingo games, R.S. 33:4861.17.

Secs. 42-129—42-160. Reserved.

ARTICLE III. CABLE TELEVISION BINGO*

DIVISION 1. GENERALLY

Sec. 42-161. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cable television bingo means a charitable game of chance played for prizes with cards bearing numbers of designations, five or more in one line, the holder covering numbers as eight objects or more, similar numbered, are displayed, and the game being won by any player who covers a previously designated arrangement of numbers on such a card with any four or five numbers and a free spot.

Cable television bingo operator means any nonprofit partnership, corporation or unincorporated association that leases time on a cable television channel and transmits charitable games of chance operated and conducted by nonprofit organizations holding valid licenses for such charitable games of chance.

Charitable sales outlet means any tax-exempt charitable organization with Internal Revenue Code, 26 U.S.C. 501(c)3, 4, 8, or 19 status and a valid city license for the conduct of bingo, keno or other charitable games of chance that sells shares, tickets or rights to participate in charitable games of chance being transmitted by a cable television bingo operator. Such charitable sales outlet's city license for bingo, keno or other charitable games of chance must be valid and in accordance with the provisions of article II of this chapter.

Gross revenues means anything of value received by the cable television bingo operator or a charitable sales outlet, the receipt of which arises out of, is connected to, or in any way relates to the sale of shares, tickets or rights to participate in cable television bingo that is cablecast over a cable television channel by the cable television bingo operator.

Leased access channel means any channel available for lease and programming by persons or entities other than the cable television franchise holder on a nondiscriminatory basis.

(Code 1956, § 14-60)

Cross reference—Definitions generally, § 1-2.

Sec. 42-162. Regulation and inspections.

The department of finance and the department of police through their officers, employees or authorized agents shall have authority to investigate and supervise the operation of cable television bingo operators to the end that the same are fairly operated and conducted in accordance with the provisions of the license and of this article. The department of finance and the department of police, through their officers, employees and authorized agents, shall have the right of entry upon the premises of any cable television bingo operations at any time during which games of chance are being conducted.

(Code 1956, § 14-77)

*Cross reference—Amusements and entertainments, ch. 14.

State law reference—Cable television bingo, R.S. 33:4861.21.

Sec. 42-163. Waiver of pot limits and maximum expenses.

Notwithstanding the provisions of article II of this chapter, pot limits, expense ceilings and other necessary expense restrictions are hereby waived for cable television bingo operators.
(Code 1956, § 14-65)

Sec. 42-164. Gambling; immunity.

No person shall be liable to prosecution or conviction for violation of section 54-276 for the following:

(1) Possessing, selling or in any manner disposing of in the city any shares, tickets or rights to participate in any game or games of chance conducted or to be conducted under any license lawfully issued pursuant to this article;

(2) Lawfully conducting or participating in the conduct of any such game of chance; or

(3) Permitting the conduct of any such game of chance upon premises owned by him or it of any game of chance conducted or to be conducted under any license lawfully issued pursuant to this article.

This immunity shall not extend to any person or corporation knowingly conducting or participating in the conduct of any game of chance under any license obtained by any false pretense or statement in any application for such license or otherwise, or possessing, selling or disposing of shares, tickets or rights to participate in, or permitting the conduct upon any premises owned by him or it, of any game of chance conducted under any license known to him or it to have been ordained by any such false or fraudulent pretense or statement.
(Code 1956, § 14-81)

Sec. 42-165. Violations.

(a) Any person who shall make any false statement in an application for a license under this article, or shall fail to keep such books and records that shall fully and truly record all transactions connected with the holding, operating or conducting of cable television games of chance under any such license, or shall falsify or make any false entry in any books or records so far as they relate to any transaction connected with the holding, operating and conducting of any cable television game of chance under any such license, or shall violate any provision of this article of any term of such license, shall be a disorderly person and if convicted as such shall, in addition to suffering any other penalties which may be imposed, forfeit any license issued to it under this article and shall be ineligible to apply for a license under this article for one year thereafter.

(b) Whoever commits a violation of the provisions of this article shall be fined in an amount not more than $300.00 or imprisoned for a term of not more than 150 days in jail, or both.
(Code 1956, § 14-83)

Sec. 42-166. Criminal penalties.

It shall be unlawful and a misdemeanor for any person to do any act prohibited by or to fail to do any act required by this article.
(Code 1956, § 14-80)

Secs. 42-167—42-190. Reserved.

DIVISION 2. LICENSE

Sec. 42-191. Required.

No person shall use a cable television channel for the transmission of cable television games unless a cable television bingo operator's license has been obtained from the department of finance.
(Code 1956, § 14-61)

Sec. 42-192. Operations and procedures manual—Required.

The department of finance shall not issue a license to any cable television bingo operator pursuant to this division unless such cable television bingo operator has obtained approval from the city council for a comprehensive operations and procedures manual. Such manual must outline in exact detail all relevant information concerning the funding, administration, production, packaging, organization and other operational procedures of the proposed cable television bingo game. The city council shall approve this operations and procedures manual, as well as any changes

thereto, by resolution in accordance with the procedures established by this division.
(Code 1956, § 14-64(a))

Sec. 42-193. Same—Criteria for approval.

In evaluating whether or not an operations and procedures manual proposed by a cable television bingo operator should be approved, the council shall consider all relevant information including but not limited to the following to ensure that cable television bingo operations are conducted honestly and in a manner which will promote the interests of charitable organizations in the city:

(1) Provisions for monthly operating and financial reviews of the licensee's operations during the first six months of operation and quarterly thereafter and provisions for an annual audit of the licensee's operations. Such reviews and audits shall be at the expense of the licensee and performed by a qualified certified public accountant (C.P.A.) chosen by the city council. Such certified public accountant shall use generally accepted industry rates and standards for the auditing of nonprofit charitable games of chance if such standards exist.

(2) Provisions for the maintenance of detailed monthly accounts showing each day's activities regarding pot prizes, weekly activities regarding revenues from the sales of bingo cards, monthly activities regarding production facility expenditures, payrolls, office expenses, studio rentals, retention and carry over of all unclaimed or unwon prizes and other necessary expenses, all in accordance with the provisions of applicable state law.

(3) Provisions that sales of cards to charitable sales outlets shall be made in accordance with applicable state regulations.

(4) Provisions for the resolution of any disagreements between the licensee and charitable sales outlets.

(5) Provisions for the maintenance and storage of old program video and audio tape dating back two years and means for the general public and regulatory authorities to replay such tapes.

(6) Provision of detailed statements showing that sufficient funds are available to cover all start up costs, pot prizes, city fee, production expenses, office expenses and other overhead items for at least two months.

(7) Provisions that all telecasts by the licensee shall be live or shall contain a live segment broadcasting the selection of the bingo numbers called.

(8) Location of offices within the city in a location with reasonable access to ample parking and public transit lines.

(9) Provisions for the maintenance of all monetary accounts in financial institutions headquartered in the city.

(10) Provisions for detailed description of the broadcast format including, but not limited to, production personnel and other similar production needs. If any production entity is retained, a listing of the firm, its directors and officers shall also be provided. If such details are not available at the time of application, the cable television bingo operator applicant shall submit them to the city council at the earliest possible date.

(11) Provisions for a sworn statement that the entire proceeds will be devoted to educational, charitable, patriotic, religious or public spirited uses in the parish except for contractor expenses, production expenses, applicable city fees, payments of prizes, and other expenses permitted by law or ordinance.

(12) Provisions to ensure that the cable television bingo operator shall provide copies of its contract with the city cable franchisee for the cablecast of cable television bingo.

(13) Provisions to ensure that the cable television bingo operator shall provide separate interest-bearing bank accounts established for the receipt of monies from the sale of bingo cards and that all such receipts and

accrued interest will be credited to the proper accounts as provided in section 42-194.

(14) Provisions to ensure that the cable television bingo operator shall post a bond to ensure payment of all amounts due the city, charitable organizations, and prize winners.

(15) Provisions to ensure that no charitable sales outlet shall be excluded from contracting with the cable television bingo operator under the same terms as other charitable sales outlets except for exclusion based on reasonable and objective criteria approved by resolution of the council.

(16) If the cable television bingo operator is not a nonprofit organization, provisions for affirmative action by the operator for minorities, women, small businesses, and residents of the parish in employment, subcontracting, and ownership of the partnership or corporation.

(17) Provisions for council approval for all contracts or subcontracts for computer hardware, software, or data processing services prior to execution by the cable television bingo operator or a contractor of the cable television bingo operator.

(18) Provisions providing for articles of incorporation or partnership and any amendments thereto to be provided to the director of the department of finance and the city council.

(19) Provisions to ensure that the director of the department of finance and the city council receive copies of all contracts or subcontracts with the cable TV bingo operator in connection with cable television bingo.

(20) Provisions to ensure that the director of the department of finance and the city council are provided with the names and addresses of all persons with an economic interest in the operation of the cable television bingo operator including but not limited to persons receiving franchise fees, royalties, commissions, or anything of economic value from the cable television bingo operator in connection with cable television bingo.

(21) Provisions to ensure that revenues generated by the cable television bingo operator from the sale of advertising is used for enhancement of prizes awarded to the extent that revenues from the sale of advertising exceed the cable television bingo operator's expenses for advertising, promoting, and marketing cable television bingo games and printing of cable television bingo cards.

(22) Provisions for approval of the council for any changes to the operations and procedures manual.

(Code 1956, § 14-64(b))

Sec. 42-194. Bank accounts, distribution of receipts, interest.

Cable television bingo operators shall provide separate interest-bearing accounts for the receipt of monies from the sale of bingo cards. All such receipts and accrued interest will be credited to the proper accounts as follows:

(1) If the cable television bingo operator is a nonprofit entity, the following schedule shall be applicable:

a. City regulatory expenses as imposed by sections 42-202 and 42-236.
b. State regulatory expenses as imposed by state law.
c. Prize money, contributions to charitable and nonprofit organizations and public spirited uses, and contract fees in such percentages as detailed in the operations and procedures manual.

(2) If the cable television bingo operator is not a nonprofit entity, the following schedule shall be applicable:

a. City regulatory expenses as imposed by sections 42-202 and 42-236.
b. State regulatory expenses as imposed by state law.
c. New Orleans Public Benefit Fund, 20 percent of revenues from the sale of shares, tickets, or rights to participate in cable television bingo games after deductions for regulatory costs imposed by the city and the state.

d. Prize money, 50 percent of revenues from the sale of shares, tickets, or rights, to participate in cable television bingo games after deductions for regulatory costs imposed by the city and the state.
e. Contract fees, not more than ten percent of revenues from the sale of shares, rights to participate in cable television bingo games after deductions for regulatory costs imposed by the city and the state.
f. Charitable organizations, 20 percent of revenues from the sale of shares, tickets, or rights to participate in cable television bingo games after deductions for regulatory costs imposed by the city and the state.

(Code 1956, § 14-64(b)(13))

Sec. 42-195. Bond required.

The cable television bingo operator shall post a bond to ensure the payment of all amounts due to the city, charitable organizations, and prize winners. The initial amount of the bond shall be $50,000.00 and shall be in a form approved by the city attorney for a term approved by the director of the department of finance. The director may, with the approval of the council by resolution, require a bond in a greater amount than $50,000.00 if necessary in the judgement of the director to protect the interests of the city, charitable organizations, and prize winners.

(Code 1956, § 14-64(b)(14))

Sec. 42-196. Affirmative action.

(a) If the cable television bingo operator is not a nonprofit organization licensed under this division, it shall establish and follow provisions for affirmative action by the cable television bingo operator for minorities, women, small businesses, and residents of the parish in employment, subcontracting, and ownership of the partnership or corporation. Such affirmative action plans shall establish goals and describe in detail the methods by which the goals are to be achieved. As a minimum, the following goals should be established:

(1) Ownership, 25 percent minorities, five percent women.

(2) Employment, 50 percent parish residents, 50 percent minorities, 50 percent women.

(3) The operator shall submit full information demonstrating the manner in which the services or purchases of minority business enterprises will be obtained to accomplish a minimum procurement level of at least 25 percent of the value of equipment, supplies, materials, and services purchased by the cable bingo operator and minimum of five percent of the value of equipment, supplies, materials, and services purchased by the cable bingo operator from businesses owned by women.

(b) For the purposes of this section, a minority person is any individual who is a citizen or lawful permanent resident of the United States and a member of one of the following groups:

(1) Black (a person having origin in any of the black racial groups of Africa);

(2) Hispanic (person of Spanish or Portuguese culture with origins in Mexico, South or Central America, or the Caribbean Islands, regardless of race);

(3) Asian American (a person having origins in any of the original peoples of the Far East, Southeast Asia, the Indian subcontinent or the Pacific Islands);

(4) American Indian and Alaska Native (a person having origins in any of the original people of North America).

(c) For the purposes of this section, a minority business enterprise is a person or business, whether it is company or a corporation, at least 51 percent of which is owned and controlled by one or more minority persons.

(d) For the purposes of this section, a business owned by women means a business that is at least 51 percent owned by a woman or women, which woman or women also control and operate such business. The term "control" in this context means being actively involved in the day-to-day management. In determining whether a business is 51 percent owned by a woman or women, the percentage of ownership of the woman or women shall not be diminished because any such woman de-

rives her ownership interest through the community property regime, provided that any such woman is the sole manager of the community enterprise or business.
(Code 1956, § 14-64(b)(16))

Sec. 42-197. Grounds for revocation.

The failure to comply with any provision of an operations and procedures manual approved in accordance with this division shall be grounds for the suspension or revocation of the cable television bingo operator's license.
(Code 1956, § 14-64(c))

Sec. 42-198. Investigation of applicants.

The department of finance shall make or cause to be made an investigation of the qualifications of each applicant for a license under this division and the merits of the application, with due expedition after the filing of the application; and it shall determine whether or not the applicant is qualified to obtain a cable television bingo operator's license. The applicant and all persons listed on the application must be of good moral character and have never been convicted of any felony or of a misdemeanor involving gambling or related offenses. Lack of good moral character or conviction of any felony or of a misdemeanor involving gambling or related offenses shall be cause for denial, suspension or revocation of a cable TV bingo operator's license.
(Code 1956, § 14-76)

Sec. 42-199. Display.

All licenses under the provisions of this division shall be publicly displayed by the licensee at the place where any game of chance is conducted at all times during the conduct thereof, and shall be so placed as to be easily seen by the public and the authorized agents of the department of finance. Additionally, any charitable sales outlet or legally authorized representatives thereof shall publicly display a license, permit, or other official identification issued by the department of finance at any place where shares, tickets, or rights to participate in a charitable game of chance transmitted by a cable television operator are sold or distributed.
(Code 1956, § 14-75)

Sec. 42-200. Issuance, fee; renewal.

Licenses, permits, or other official identification shall be issued under this division upon submission of an application in a form prescribed by the department, approval of the department of finance, and payment of a fee of $10.00 per license, permit, or other identification. Such licenses shall be renewable on March 31 of each year in accordance with renewal procedures prescribed by the department of finance.
(Code 1956, § 14-75)

Sec. 42-201. Duration.

A license issued pursuant to this division shall be valid for five years from the date of issuance.
(Code 1956, § 14-70)

Sec. 42-202. Bingo fees.

In addition to fee imposed by section 42-72 relative to the payment for a license to conduct bingo, keno, or other charitable games of chance, any cable television bingo operator shall pay an annual fee in the amount of $5,000.00 to the city.
(Code 1956, § 14-71(a))

Sec. 42-203. Denial, suspension or revocation of license.

The rules specified in article II of this chapter relative to the denial, suspension or revocation of charitable games of chance licenses shall govern the denial, suspension or revocation of cable television bingo operations licenses applied for or issued under this division, except as otherwise provided in this article.
(Code 1956, § 14-74)

Secs. 42-204—42-225. Reserved.

DIVISION 3. REGULATIONS

Sec. 42-226. Private contractors.

Notwithstanding any provision of this article to the contrary, a cable television bingo operator li-

censed to conduct cable television bingo may enter into a contract with a private contractor possessing demonstrated skills in the conduct and administration of charitable games of chance to provide for the operation and management of its games. Any such contract shall stipulate that payment to the contractor for professional services shall be in accordance with an estimated fee schedule based upon the number of cards sold and shall require the use of volunteer members of charitable organizations in the actual conduct of and assisting in the conduct of such games.
(Code 1956, § 14-67)

Sec. 42-227. Necessary transmission equipment and services ownership exemption.

The provisions of section 42-123, relative to the requirement for the ownership of equipment for the conduct of charitable games of chance, shall not be applicable to bona fide items and reasonable amounts of goods, wares and merchandise furnished or services rendered which are reasonably necessary to be purchased or furnished for the cable television transmission of charitable games of chance permitted by this article.
(Code 1956, § 14-82)

Sec. 42-228. Charitable sales outlet purchases.

No nonprofit charitable organization shall sell shares, tickets or right to participate in a charitable game of chance transmitted by a cable television bingo operator unless such shares, tickets or rights to participate in a charitable game of chance are sold by an authorized charitable sales outlet or a legally authorized representative thereto. Such charitable sales outlet shall possess, at the time of sale, a valid city license for the conduct of bingo, keno or other charitable game of chance as provided for in article II of this chapter.
(Code 1956, § 14-66)

Sec. 42-229. Parading carnival krewes; charitable sales outlet licenses.

(a) Notwithstanding any provision of this article to the contrary, a parading carnival krewe may obtain a valid city license for the conduct of bingo for the purposes specified in this section possessing an appropriate nonprofit designation issued by the Federal Internal Revenue Service. A license issued to a parading carnival krewe pursuant to this section shall allow the organization to sell shares, tickets, or rights to participate in a charitable game of chance transmitted by a cable television bingo operator but shall not permit the organization to conduct any other games of bingo, keno, or raffles.

(b) Proceeds derived by a parading carnival krewe from the sale of shares, tickets, or rights to participate in cable television bingo may be used for carnival parade staging costs but may not be used for costs associated with the staging of balls or the purchase of carnival throws or any other personal expense of the individual members of the parading carnival organization. All other provisions of this article applicable to city licenses for the conduct of bingo, keno, or other charitable games of chance or cable television bingo shall be applicable to an organization receiving a license pursuant to this section.

(c) For the purposes of this section, parading carnival krewes means those chartered bona fide, nonprofit organizations existing under the laws of the state that are domiciled in the parish and conducting lawfully permitted Mardi Gras parades pursuant to chapter 34 during the official Mardi Gras season.
(Code 1956, § 14-66.1)

State law references—Definition, R.S. 33:4861.2(1); application for license, R.S. 33:4861.5.

Sec. 42-230. Channel use.

All cablecasts of charitable games of chance by a cable television bingo operator pursuant to this article shall only be on a leased access channel and shall not be part of the organization broadcasting programs of the cable television franchise holder whose system is being used for broadcast of such charitable games of chance.
(Code 1956, § 14-69)

Sec. 42-231. Frequency limits and game times.

(a) No cable television bingo operator shall transmit charitable games of chance by means of a cable television channel on more than two days per week.

(b) No cable television bingo operator shall transmit by means of cable television channel more than 20 charitable games of chance per night.

(c) No cable television bingo operator shall transmit any charitable games of chance by means of a cable television channel prior to 10:30 p.m.
(Code 1956, § 14-63)

Sec. 42-232. Operator restricted.

All bingo, keno or other charitable games of chance transmitted by a licensed cable television bingo operator must be conducted and operated by a nonprofit partnership, corporation or other legal entity possessing a valid license for the conduct of such games as required by applicable state law.
(Code 1956, § 14-63.1)

State law reference—Restrictions, R.S. 33:4861.21.

Sec. 42-233. Pot prize payments.

Pot prizes payable under this article shall be distributed to eligible winners on a weekly basis.
(Code 1956, § 14-72)

Sec. 42-234. Reports by licensee; payment of fees.

(a) Not later than 20 days after January 1, April 1, July 1 and October 1 of each year, each licensee under this article shall furnish to the department of finance a duly verified statement showing the amount of the gross receipts derived from activities licensed under this article for the quarter preceding the reporting dates established hereinabove. The reports shall specify the amounts charged for the use of television channels, or for any other purpose, the gross receipts of each and every game of chance, costs, utility charges, concession revenues and any other information deemed necessary by the department of finance. In addition, any fees payable shall be remitted to the department of finance with this report.

(b) Each licensee shall maintain and keep such books and records as may be necessary to substantiate the particulars of each such report. Reports furnished under this section shall be subject to the provisions of the Public Records Act.

(c) Each licensee shall maintain a bookkeeping system for the purpose of recording all receipts and expenditures in connection with the conduct of charitable games of chance and the disbursement of gross revenues derived therefrom. The books of account shall be kept up to date. Bookkeeping records, deposit books, savings account, passbooks, canceled checks, checkbooks, deposit slips and bank statements and all other records and books of account shall be available for examination by the department of finance or its representative at all reasonable times, and shall be maintained by the licensee from three years following the expiration of each year's license.
(Code 1956, § 14-78)

Sec. 42-235. Examination of books and records.

(a) The department of finance or its authorized agents shall have power to examine or to cause to be examined the books and records of any person to whom a cable television bingo operator of charitable games of chance license is issued so far as such books or records may relate to any transaction connected with the holding and conducting of any game of chance under any such license, but any information received shall not be disclosed except as otherwise provided by this article or except so far as may be necessary for the purpose of administration, implementation and enforcement of the provisions of this article.

(b) Any person who shall make any false statement in any application for a license under this article, or shall fail to keep such books and records as shall fully and truly record all transactions connected with the operation of cable television bingo operations or the holding, operating or conducting of games of chance under any such license, or shall falsify or make any false entry in any books or records so far as they relate to any transaction connection with the ownership or operation of a cable television bingo operation or the holding, operating and conducting of any game of chance under any such license, or shall violate any of the provisions of this article or of any term of such license shall, in addition to suffering any other penalties which may be imposed, forfeit any license issued to it under this article and shall be

ineligible to apply for a license under this article for five years thereafter.
(Code 1956, §§ 14-79, 14-80)

Sec. 42-236. Percentage of gross receipts.

(a) Any cable television bingo operator and any charitable sales outlet shall remit the amount of 2½ percent of all quarterly gross revenues from the sale only of shares, tickets, or rights to participate in cable television bingo games received by the cable television bingo operator and/or charitable sales outlets to the city for regulatory expenses and, if the operator is not a nonprofit entity, to the New Orleans Public Benefit Fund, 20 percent of all quarterly gross revenues from the sale only of shares, tickets, or rights to participate in cable television bingo games received by the cable television bingo operator and/or charitable sales outlets less and except the amount paid to the city for regulatory expenses and the amount paid or to be paid to other regulatory agencies *including but not limited to the state police* charitable gaming division for the quarter for regulation of cable television operations. The gross revenues of a combination of charitable sales outlets associated with any cable television bingo operator shall be combined for the purposes of determining gross revenues. Each charitable sales outlet shall remit an amount proportionate to the gross revenues derived by the individual charitable sales outlet as that amount relates to the total gross revenue of all charitable sales outlets associated with a cable television bingo operator.

(b) The 2½ percent regulatory costs imposed by subsection (a) of this section shall not exceed $125,000.00 annually. The percentage imposed by subsection (a) of this section for the New Orleans Public Benefit Fund shall be deposited in a special fund which, pursuant to the provisions of section 6-215 of the charter, is hereby created and shall be known as "The New Orleans Public Benefit Fund" and such fund is established for the purpose of lessening the burdens of government on the city in planning, renovating, constructing, leasing, subleasing, managing and promoting such properties as may be owned, leased, subleased or controlled by the city for the benefit of the general public.

(c) The fund mentioned in this section is authorized to receive donations from private individuals, corporations and other institutions and entities in the private sector as well as grants from the state or from the federal government or any branch thereof. Upon the availability of grants designed for the purposes expressed herein, the city is authorized to make application for same and to take such other actions as may be necessary and appropriate to obtain such grant.

(1) The fund hereby created shall be administered by the director of the department of finance and shall be kept in an interest bearing account to the benefit of and to become a part of the fund.

(2) The fund shall be utilized to finance the operations and activities of a public benefit corporation created and chartered by the mayor pursuant to R.S. 41:1212(G) and (H), R.S. 41:1215(B) and R.S. 12:201—12:269, particularly R.S. 12:202.1(D) thereof, and *which shall be known as New Orleans* Public Benefit Corporation (NOPBC).

(3) The NOPBC shall annually submit a budget to the director of the department of finance setting forth its needs for the ensuing year at the same time as the various departments of the city. The initial budget, subject to the approval of the chief administrative officer, shall be exempted from the foregoing requirement.

(4) *After the approval of the NOPBC budget* by the chief administrative officer, the director of the department of finance shall be authorized to remit funds to NOPBC in accordance with the approved budget upon the warrant of the treasurer of NOPBC. Upon a need to amend the approved budget, such amendment shall be subject to the approval of the chief administrative officer.

(5) Such fund shall be subject to an annual audit by an independent certified accountant.
(Code 1956, § 14-71(b), (c))

Secs. 42-237—42-265. Reserved.

ARTICLE IV. LEASED BINGO HALLS

DIVISION 1. GENERALLY

Sec. 42-266. Rules and regulations.

The director of the department of finance may, with the consent of the mayor, submit to the council for its approval such reasonable rules and regulations necessary to the enforcement of this article. No such rule or regulations shall become effective until approved by resolution of the council.
(Code 1956, § 14-96)

Secs. 42-267—42-290. Reserved.

DIVISION 2. LICENSE

Sec. 42-291. Bingo lessor's license; application procedures, requirements.

An applicant granted a license pursuant to this section may allow the conduct of charitable raffles, bingo, keno, and pull tabs in a building as often as seven days per week notwithstanding the provisions of section 42-122. A bingo lessor's license shall be subject to the following application procedures and the requirements contained in this article:

(1) An applicant applying for a bingo lessor's license shall file with the department of finance a written application in the form provided by the department, duly executed and verified, which must include:

a. Proof of the applicant's tax exempt status under section 501 C.(3), (4), (8), or (19) of the United States Internal Revenue Code.
b. The address of the premises to be offered for lease.
c. A copy of the applicant's title to or lease for the property. If this applicant is leasing the premises from another person, the applicant's lease must give the applicant complete control of the entire area where charitable games of chance are to be conducted, any area where any coin operated amusement or gambling devices are located, and any concession areas where food, drinks, or other refreshments are to be sold within the building or on the premises. The holder of a bingo lessor's license must operate all charitable gaming areas and all concessions or coin-operated amusement or gambling devices on the premises and shall not lease, sublease, or assign the right to operate charitable gaming areas, coin-operated devices or concessions on the premises to any other person or entity; provided that the council, by motion, may approve the assignment of such rights to an entity related to the holder of the bingo lessor's license. In addition to a copy of the applicant's title to or lease for the property, the applicant shall provide copies of any and all other legal documents in connection with the sale or lease of the property including but not limited to, any counter letters, contracts or agreements with the owner, lessor, third party, real estate agents or brokers. If the property is leased by the applicant, no license pursuant to this article shall be issued to the applicant until the lease has been approved by resolution of the city council as to the amount paid to the lessor as compensation for the lease of the property. The director of the department of finance shall provide a report to the council concerning the terms and conditions of the applicant's lease and may contract with a professional property appraiser, real estate consultant, or other appropriate parties to obtain recommendations as to whether or not the compensation paid for the lease of the property and the terms and conditions of the lease are fair and equitable in terms of the local real estate market. Prior to consideration of a lease agreement under this subsection, the council may provide for a hearing on the matter by a hearing examiner, a council committee, or a panel which may be composed of representatives of the council staff, administrative office, department

of property management, or other departments and agencies of the city as deemed appropriate by the council.

d. A duly executed affidavit by the applicant or its authorized representative, attesting to the fact that the applicant is familiar with and shall comply with all ordinances of the city pertaining to charitable games of chance as authorized by this chapter, additionally, the applicant shall provide any other documents in connection with the transaction requested by the director of the department of finance and, that neither the applicant nor any agent, employee or member of the applicant organization has given or received or will give or receive any compensation, commission, payment or any other thing of value in connection with the granting of a license hereunder; the purchase or lease of a leased bingo hall facility or the subleasing of its leased bingo hall facility to any person licensed by the city to conduct charitable games of chance.

e. A complete list of all equipment, including make and model number, to be made available for use by leasing organizations.

f. Proof of approved zoning for the use of the building as a leased bingo hall facility; provided that the director of the department of finance may consider an application for a bingo lessor's license concurrently with consideration of the zoning status by the city planning commission, the council, or the department of safety and permits.

g. The applicant shall provide a copy of its most recent federal income tax return.

(2) Bingo lessors shall provide a sufficient number of flashboards and monitors to ensure that all players may observe monitors and flashboards from available seating.

(3) There shall be available at least one camera from which players may observe bingo balls removed from the blower and one camera from which at least one winning card shall be displayed for each bingo game of the session.

(4) Bingo lessors who obtain a license must lease the authorized premises to a licensed organization for the conduct of games of chance within 90 days of the issuance of the lessor's license. Failure to comply shall be grounds for the suspension or revocation of the bingo lessor's license.

(5) Bingo lessor licenses shall remain at all times the property of the city. Licenses shall not be transferable and shall have no other value other than for their intended use.

(6) A bingo lessor's license which has already been issued may be renewed for a subsequent year by the timely submission within 15 days after the end of the current permit year of the required renewal fee and a renewal application in a form prescribed by the department of finance.

(Code 1956, § 14-90)

Sec. 42-292. License and administrative fees.

(a) A license and administrative fee shall accompany each license application under this division according to the following schedule:

(1) Bingo lessor's license.....	$1,000.00
(2) Renewal fee	1,000.00

The bingo lessor's license fee shall be reduced by the amount paid by the applicant for city planning commission processing fees.

(b) Applications for new licenses shall be subject to the following pro rata license and administrative fees:

(1) Applications received between July 1 and December 31, full annual fee.

(2) Applications received between January 1 and June 30, one-half the annual fee.

(c) A bingo lessor's license is valid from July 1 to June 30 of each year and payment is due by July 1 for the current year.

(Code 1956, § 14-91)

Sec. 42-293. License to be displayed.

Any license issued to a bingo lessor shall be conspicuously displayed at the location where licensed games of chance are held.
(Code 1956, § 14-92(b))

Sec. 42-294. Schedule to be displayed.

A schedule containing the name of each organization licensed under this division, its license number, and the day of the week and the beginning and ending hours of the organization's games shall be maintained and displayed at every leased bingo facility.
(Code 1956, § 14-92(c))

Sec. 42-295. Revocation of license—Grounds, authorized.

(a) Any person who shall make any false statement in any application for a license under this division, or shall fail to keep such books and records and shall fully and truly record all transactions connected with the holding, operating or conducting of games of chance under any such license, or shall falsify or make any false entry in any books or records so far as they relate to any transaction connected with the holding, operating and conducting of any game of chance under any such license, or shall fail to submit in a timely manner any reports required under the provisions of this article, or conduct any game of chance not authorized by this article, or shall violate any of the provisions of this article, or any term of such license, shall in addition to suffering any other penalties which may be imposed by law, forfeit his current license upon a determination to revoke the same, and shall be ineligible to apply for a license under this division for one year after the date of such revocation.

(b) No license shall be issued to any applicant for the use of the same physical location or premises whereon the license of the previous licensee has been revoked for six months after the date of such revocation.

(c) Notwithstanding any provision of this section to the contrary, a violation of this article committed during the term of a previous license shall also constitute cause or grounds for revocation of a current license held under this division.
(Code 1956, § 14-94)

Sec. 42-296. Same—Procedures.

(a) Upon petition filed by either the superintendent of police, the director of the department of finance, or the city attorney, setting forth cases for suspension or revocation of a license issued under the provisions of this division, a hearing shall be held by the chief administrative officer or his designated representative, to determine whether the license of the person charged shall be suspended or revoked. A notice shall be served upon the holder of the license stating the time and place of such hearing, which shall be not less than ten calendar days from the date such notice is given. The notice shall be sent by the chief administrative officer and shall enumerate the cause or causes for suspension or revocation of the license. The notice may be mailed by certified mail to the holder of the license at the address given in the application for the license, or may be served on him in person by a police officer or employee of the chief administrative officer.

(b) After hearing all evidence and after due consideration, the chief administrative officer or his designated representative may suspend or revoke the license issued under the provisions of this division.

(c) If proper notice has been served upon the defendant, the hearing required under this section may proceed without his presence if he fails to appear.

(d) Certified copies of convictions involving violations of this article in the municipal court shall constitute prima facie proof of the violation by the holder of the license.
(Code 1956, § 14-95)

Secs. 42-297—42-325. Reserved.

DIVISION 3. REGULATIONS

Sec. 42-326. Prohibited acts and grounds for denial, suspension or revocation of bingo lessor's license.

(a) No bingo lessor, member, employee, proprietor or agent of any such lessor or the spouse of any of the above, shall accept any form of com-

pensation, either directly or indirectly, derived from the operation of games of chance on the leased premises, except for those items of expense pertaining to rent and cleanup as authorized by this article and those funds derived from the sale of concessions by the lessor.

(b) Bingo lessors and members of bingo lessors, their spouses or immediate families, employees or agents, shall not act as chairpersons or operators; prepare or file any game reports or quarterly reports; or assist in the counting or reconciliation of moneys obtained from the operation of any games of chance for any organization which leases premises for the conduct of games of chance from the bingo lessor. This section does not preclude any member of a bingo lessor from performing any of these functions in connection with that bingo lessor's own games; nor does it preclude any bona fide active member of any organization from assisting in the conduct of that organization's games of chance in any manner not specifically prohibited by this article.

(c) Bingo lessors shall not offer their premises for lease or rental for any time period less than four hours for the conduct of games of chance, nor shall they permit the conduct of any games of chance on their premises prior to or after the times stated on the license of any organization leasing the premises.

(d) Bingo lessors, their agents or any of their members, shall not sell any material, equipment or supplies for the operation of any licensed game of chance, nor shall they allow the sale or storage for sale of such material on the premises leased for the conduct of games of chance. Lessors may allow the storage on their premises of gaming supplies owned by the lessor or by the organizations conducting games of chance therein.

(e) No video poker machines shall be permitted on the premises.

(f) No bingo lessor shall allow the holding, operating, or conducting of any game of chance by any organization which does not hold a valid license for the conduct of charitable games of chance issued by the city and the state.

(g) Violations of any of the regulations in this section and sections 42-293, 42-294, 42-327 and 42-328 by a bingo lessor shall be grounds for the denial, suspension or revocation of the bingo lessor's license. Violations of any of the regulations in this section and sections 42-293, 42-294, 42-327 and 42-328 by a bingo lessor shall be grounds for the denial, suspension or revocation of the bingo lessor's license to conduct games of chance.
(Code 1956, § 14-92(a), (d)—(i))

Sec. 42-327. Improper compensation.

It shall be unlawful for the applicant or any member or employee of the applicant to receive any compensation, commission, payment, or any other thing of value in connection with the purchase or lease of a leased bingo hall facility licensed in accordance with this article. It shall be unlawful for any person to pay any fee, commission, compensation, or to give anything of value to a bingo lessor or to any agent, member or employee of a bingo lessor in connection with the sale or lease of property to a bingo lessor. In addition to any criminal penalties which may be imposed for a violation of this section, a violation of this section shall constitute grounds for suspension or revocation of a bingo lessor's license.
(Code 1956, § 14-92(k))

Sec. 42-328. Right of entry.

Each bingo lessor shall allow the department of finance, or its designated agents, to have access to any premises where a game of chance is being conducted and to any book record, or document relating to such conduct.
(Code 1956, § 14-92(j))

Sec. 42-329. Examination and supervision fees.

(a) Each organization licensed to conduct games of chance which conducts games at a leased bingo hall facility shall submit a quarterly report of all expenditures and receipts from the proceeds of the games of chance along with a percentage of its gross profit to be paid to the city general fund for the funding of the department of finance which supervises and examines the operations of all entities licensed under this article, as well as for the appropriation of funds for nonprofit purposes or to nonprofit organizations. For the purposes of this section, the term "gross profit" shall mean total

receipts from charitable games of chance less prizes awarded. This report and fee will be due on the 20th of the month following each quarter as follows:

January–March	1st quarter
April–June	2nd quarter
July–September	3rd quarter
October–December	4th quarter

(b) The fee which shall be submitted with each quarterly report shall be computed as follows:

If the gross profit is:

As much as	*But less than*	*Percentage due shall be*
$ 0.00	$10,000.00	1
10,000.00	15,000.00	2
15,000.00	20,000.00	3
20,000.00	25,000.00	4
25,000.00 and over		5

In addition to any other civil or criminal penalties, organizations shall be assessed a late penalty of $100.00 for each game report, quarterly report, or quarterly fee not submitted timely.
(Code 1956, § 14-93)

Chapters 43—45

RESERVED

Chapter 46

COMMUNITY DEVELOPMENT*

Article I. In General

Secs. 46-1—46-35. Reserved.

Article II. Reserved

Secs. 46-36—46-85. Reserved.

Article III. Enterprise Zone Participation and Compliance Procedures

Sec. 46-86. Endorsement of application.
Sec. 46-87. Approval of endorsement resolution.
Sec. 46-88. Certification procedures.
Sec. 46-89. Rebate procedure.
Sec. 46-90. Failure to comply.

Article IV. Municipal Identification Card Program

Sec. 46-91. Issuance of municipal identification cards.
Sec. 46-92. Confidentiality of municipal identification card application information.

*__Cross reference—__Discrimination in public accommodations, employment and real estate and housing, § 86-131 et seq.

ARTICLE I. IN GENERAL

Secs. 46-1—46-35. Reserved.

ARTICLE II. RESERVED*

Secs. 46-36—46-85. Reserved.

ARTICLE III. ENTERPRISE ZONE PARTICIPATION AND COMPLIANCE PROCEDURES†

Sec. 46-86. Endorsement of application.

An applicant seeking endorsement from the city council for enterprise zone program participation under the state enterprise zone program (R.S. 51:1781—51:1790) shall submit to the clerk of the city council and the mayor's office of development or its successor prior to introduction of an endorsement resolution the following information:

(1) An estimate of proposed expenditures to be eligible under the enterprise zone program;

(2) Documentation of the business address;

(3) The names, social security numbers, addresses and dates of hire for current employees working at that address;

(4) A list of employee positions to be created as a result of the expenditure of funds under the enterprise zone program and the designation of those positions to be filled in compliance with the hiring requirements of the program;

(5) A timetable for construction and hiring for such new positions.

(Code 1956, § 2-810)

Sec. 46-87. Approval of endorsement resolution.

Any endorsement resolution introduced before the city council shall include the terms and conditions of the enterprise zone program as established under state law with respect to the hiring of qualified employees and shall establish compliance with and verification of those terms and conditions by the mayor's office of economic development or its successor as a requirement for the city sales tax exemption effected through the issuance of sales tax rebates under the program.

(Code 1956, § 2-811)

Sec. 46-88. Certification procedures.

The mayor's office of economic development shall certify for enterprise zone program participation each business which has been approved by endorsement resolution of the city council and has received approval from the state board of commerce and industry. Application for certification shall be made on forms provided by the mayor's office of economic development and such certification shall be effected under contract with the city providing for the rebate of city sales taxes paid to the vendor. Such contract shall include the terms and conditions relative to hiring and eligible purchases under the enterprise zone program as established by law and by regulation of the office of economic development and shall establish the right of the city to require termination of the contract for material noncompliance and further to recover any sales tax rebates issued prior to termination of the contract for material noncompliance.

(Code 1956, § 2-812)

Sec. 46-89. Rebate procedure.

The mayor's office of economic development shall provide sales tax rebate application forms which may be submitted to it on a quarterly basis. The application form shall provide for the listing by item, costs and vendor of all purchases for which a sales tax rebate is requested. The application form shall additionally provide for a current listing by name, social security number, address, and date of hire of all new employees

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*__Editor's note—__M.C.S., Ord. No. 25376, § 1, adopted June 20, 2013, effective June 30, 2013, repealed §§ 46-36—46-56, which pertained to interim disadvantaged small business development and derived from Code 1956, §§ 2-600, 2-602—2-606; M.C.S., Ord. No. 24628, § 3, adopted Oct. 20, 2011. The user's attention is directed to Ch. 70, Art. IV, Div. 2 for similar provisions.

†__Cross reference—__Sales tax, § 150-441 et seq.

working at the applicant's business location and employee status with respect to the enterprise zone program hiring requirements and the criteria upon which the status is based for those employees cited in fulfillment of the hiring requirements. Additionally, copies of all compliance documents submitted to the state board of commerce and industry shall accompany the application. Upon submission, the mayor's office of economic development shall review the application and perform such other verifications, as necessary, for compliance with the terms of the contract executed under section 46-88. All approved applications shall be forwarded to the department of finance for payment of the sales tax rebate.
(Code 1956, § 2-813)

Sec. 46-90. Failure to comply.

The sales tax rebate application shall be rejected if the applicant fails to comply with established procedures for the filing of the sales tax rebate application or is determined by the mayor's office of business and development and the department of law to be materially out of compliance with the terms and conditions of the contract executed under section 46-88. The department of finance shall not issue a sales tax rebate until all of the business documents are in compliance with such terms and conditions. A rejected application shall be returned to the applicant with a statement of the reasons for its rejection. The application may be resubmitted at any time subject to remediation of the stated deficiencies. The mayor's office of economic development is further empowered to terminate the contract upon noncompliance and the department of finance under authority granted in article III of chapter 150 shall seek recovery of any and all sales tax previously rebated under the contract in that event. A reduction in actual or proposed workforce due to economic conditions may be considered as a mitigating circumstance in any contract compliance review.
(Code 1956, § 2-814)

ARTICLE IV. MUNICIPAL IDENTIFICATION CARD PROGRAM

Sec. 46-91. Issuance of municipal identification cards.

(1) The administering agency shall be the agency designated by the mayor to administer the Municipal Identification Card Program consistent with the provisions of this chapter.

(2) All city departments shall accept a municipal identification card as valid identification and as valid proof of residency in the city, unless the department or entity has reasonable grounds for determining that the card is counterfeit or altered, or that the individual presenting the card is not the individual to whom it was issued.

(3) The Municipal Identification Card Program shall provide for a system whereby a municipal identification card shall be issued to any resident who meets the application requirements set forth in this chapter and in accordance with rules promulgated by the administering agency pursuant to section 2-1000, consistent with the following:

(a) The card, shall display, at minimum, the cardholder's photograph, legal name, date of birth, date issued, expiration date, identification card number, and the seal of the city.

At the cardholder's discretion, the card may display the cardholder's address, self-designated gender or name, or disability.

(b) The card shall be designed and produced in such a manner as to deter fraud.

(c) The card shall be valid for a maximum of six years from the date of issuance for adults aged 18 and over and a maximum of three years for minors aged 10—17, or when the cardholder is no longer a resident of the city.

(4) A municipal identification card shall be available to any applicant regardless of race, color, sex, gender identity, age, religion, disability, national origin, ancestry, sexual orienta-

tion, marital status, partnership status, parental status, military status, source of income, credit history, criminal record or criminal history, housing status, or status as a victim or survivor of domestic violence, sexual assault, or human trafficking provided that the applicant completes an application and fulfills the requirements for proving identity and residency in the city as set forth in this chapter.

(5) The implementation of the provisions herein shall be done in accordance with rules promulgated by the administering agency pursuant to section 2-1000.
(M.C.S., Ord. No. 30127, § 1, 11-7-24, eff. 12-31-24)

Sec. 46-92. Confidentiality of municipal identification card application information.

(1) The city shall not retain originals or copies of records and any documents provided by an applicant to prove identity or residency for a municipal identification card.

(2) The city shall not disclose information collected about applicants, and shall treat that information as confidential, to the maximum extent permitted by applicable laws.

(3) The city is prohibited from soliciting, collecting, maintaining, disseminating, or requiring that an applicant produce any information or documentation other than that required to establish that applicant's identity or residency pursuant to this chapter.

(4) The city shall provide applicants with the option to opt in for the city to retain demographic information or record of the applicant's municipal identification card for the purpose of reproducing a replacement card.

(5) The city shall provide an option for victims or survivors of domestic violence, sexual assault, or human trafficking, or individuals who are currently unhoused to designate an alternative address, and alternative methods by which individuals can establish residency notwithstanding the lack of fixed address.
(M.C.S., Ord. No. 30127, § 1, 11-7-24, eff. 12-31-24)

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Chapter 50

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ARTICLE I. IN GENERAL

Sec. 50-1. Four sections of court; designations.

There shall be four sections of the municipal court of the city, which shall be known, respectively, as municipal court division A, municipal court division B, municipal court division C and municipal court division D.
(Code 1956, § 40-1)

Sec. 50-2. All sections housed in municipal and traffic court building.

All four sections of the municipal court shall be housed in the municipal and traffic court building.
(Code 1956, § 40-3)

Sec. 50-3. Jurisdiction of sections.

The municipal court division A, the municipal court division B, the municipal court division C and the municipal court division D shall have jurisdiction of the trials of all alleged violations of ordinances of the city, except traffic code violations.
(Code 1956, § 40-9)

State law reference—Similar provisions, R.S. 13:2493, 13:2493(A).

Sec. 50-4. Housing and environmental court division.

(a) In accordance with R.S. 13:2493.1, effective January 1, 1984, there is hereby created a housing and environmental court division of the municipal court, hereinafter referred to as the "housing court division." The housing court division shall be assigned, and its jurisdiction shall be limited to all violations of the provisions of the following:

(1) The building code of the city, M.C.S., Ordinance No. 11,625, as amended.

(2) The comprehensive zoning ordinance of the city, M.C.S., Ordinance No. 4264, as amended.

(3) Chapters 26 and 138 and section 82-351 et seq. and section 82-386 et seq. of this Code.

(4) The fire code of the city, M.C.S., Ordinance No. 4912.

(b) All cases involving violations of the provisions of the building code, the comprehensive zoning ordinance, or chapters 26 and 138 and section 82-351 et seq. and section 82-386 et seq. of this Code, or the fire code presently pending before the municipal court, be and they are hereby transferred to the housing court division for further proceedings in accordance with law as of January 1, 1984, and thereafter.

(c) One of the judges of the municipal court now provided for by R.S. 13:2492 shall be assigned to serve as the judge of the housing court division of the municipal court which housing court division shall be division "A" of the municipal court.

(d) The divisions of the municipal court shall be designated alphabetically as division "A," division "B," division "C" and division "D." The judge senior in point of continuous service shall preside over division "A," and the other judges of the court shall occupy the other designated divisions according to their respective periods of continuous service.
(Code 1956, § 40-1.1)

Sec. 50-5. Health violations branch; payment of fines by first offenders of certain designated offenses.

(a) The department of health shall establish and maintain a health violations branch, which shall be established for the convenient payment of fines relating to violations of the following designated sections of this Code:

(1) Sections 26-114 through 26-118;

(2) Sections 66-202 through 66-204, 66-206, 66-207, 66-249, 66-282, 66-285, 66-312 and 66-351;

(3) Sections 82-317, 82-357, 82-358, and 82-403 through 82-406;

(4) Sections 138-38, 138-39, 138-41, 138-43 and 138-44.

(b) Any person charged with a first offense of any of the sections of this Code designated in subsection (a) of this section may appear at the

health violations branch at any time prior to date of trial specified on the complaint of summons and may enter a waiver of trial, sign a written plea of guilty to the offense charged and may pay the fine. An employee of the department of health deputized by the clerk of municipal court shall have the authority to accept the written plea of guilty to the offense charged and issue receipts for the fine paid by the offender. For purposes of this section, an appearance by a first offender of the sections of this Code designated in subsection (a) of this section may be by mail.

(c) Notwithstanding any other provision of this Code, the fine for the first violation of the sections of this Code designated in subsection (a) of this section shall be $50.00. Simultaneous violations of one or more of the sections of this Code designated in subsection (a) of this section shall be considered as a single offense for the purpose of assessing fines pursuant to this section.

(d) The director of the department of health is hereby authorized to promulgate rules and regulations to implement the provisions of this section, which shall have the effect of law.
(Code 1956, § 40-48)

Cross reference—Administrative adjudication of health, housing and environmental provisions, § 6-31 et seq.

State law reference—Administrative adjudication of public health, housing, fire code, environmental and historic district violations, R.S. 13:2575.

Sec. 50-6. Municipal court judicial fund.

The municipal court judicial fund is hereby established and shall be administered by the municipal court judges of the city. The fund shall receive payment from bond forfeitures in connection with the administration of the municipal court or in other manners provided by law. Any surplus remaining in this judicial expense fund as of December 31, 1975, and every year thereafter, shall be distributed as follows: One-half shall be retained in the judicial expense fund and the remaining one-half shall be remitted to the city general fund. Such funds shall be annually audited by the director of the department of finance.
(Code 1956, § 40-47)

Secs. 50-7—50-35. Reserved.

ARTICLE II. ADMINISTRATION*

Sec. 50-36. Rules, regulations; assignment of judges.

The judges of the municipal court at an en banc session may adopt, amend or repeal the rules adopted by them for the operation of the court, as may be necessary for their proper function, and they shall adopt rules of procedure for the adoption, amendment or repeal of the rules already adopted. No judge once designated to a certain section shall be transferrable or removable from that section without his written consent. If a vacancy exists in any section, either by the expiration of the elected term of the judge serving therein or otherwise, the successor to such judge shall accept the designation to the particular section over which he is to preside made for him by the other judges.
(Code 1956, § 40-2)

State law reference—Similar provisions, R.S. 13:2494.

Sec. 50-37. Salaries of municipal court judges.

The city shall pay a salary in the amount of $53,500.00 per annum to each municipal court judge except the administrative judge; provided, however, that the salary specified herein shall be payable only to elected judges and not to ad hoc judges. Such salary shall be in addition to any compensation paid by the state under applicable state law.
(Code 1956, § 40-2.1; Ord. No. 20,372, § 2, 9-20-01)

Sec. 50-38. Special assistant city attorney to handle matters in municipal court.

The city attorney shall employ the services of assistant city attorneys to handle matters in the municipal court.
(Code 1956, § 40-4)

Sec. 50-39. Appointment and bond of clerk.

The clerk of the municipal court shall be appointed by the judges and shall serve at their

*__Cross reference—__Administration, ch. 2.

pleasure. He shall be amenable to their orders and instructions at all times. The clerk shall furnish a surety bond in the sum of $10,000.00, payable to the treasurer of the city. The premiums for such bond shall be paid by the city.
(Code 1956, § 40-5)

State law reference—Similar provisions, R.S. 13:2495.

Sec. 50-40. Duties of clerk.

The clerk of municipal court shall have general supervision of the deputy clerks and records of the several courts. He shall also receive and keep all papers, exhibits and affidavits, number them according to the date of their filing and enter them in a docket containing an index in the manner set forth in this section. He shall make a filing entry into the police department computer records showing the current and final disposition of all municipal court cases.
(Code 1956, § 40-6)

State law reference—Similar provisions, R.S. 13:2495(B).

Sec. 50-41. Designation of acting clerk.

When the clerk of the municipal court is absent or unable to perform his duties for any valid reason or on vacation, his chief deputy shall act in his stead. If both the clerk and his chief deputy are absent, the judges sitting en banc shall designate one of the deputies to act in their stead.
(Code 1956, § 40-7)

State law reference—Appointment of deputies, R.S. 13:2497.

Sec. 50-42. Assignment of police officers; additional process servers.

The superintendent of police shall detail police officers in each section of the municipal court to keep order and execute the orders and decrees of the judges and to make service of process and the judges of the municipal court sitting en banc may appoint additional persons to serve process of court; provided, that such process servers shall be duly sworn and a record of their appointment shall be entered upon the minutes of the court or be otherwise placed of record therein.
(Code 1956, § 40-8)

State law reference—Police detail, R.S. 13:2499.

Sec. 50-43. Daily allotment of cases.

All cases in the municipal court, except those which have been especially allotted by the judge as set forth in this chapter, shall be daily allotted as provided by the rules of the municipal court.
(Code 1956, § 40-11)

Sec. 50-44. Rules to fix hours of sitting.

The hours during which the four sections of the municipal court shall sit are as fixed by the rules of the municipal court.
(Code 1956, § 40-12)

State law reference—Authorizing the adoption of rules and regulations, R.S. 13:2494.

Sec. 50-45. One judge may sit for or assist another.

The judge of one section of the court may sit for the judge of another section in his place and stead or to assist as judge of another section by agreement of both judges, as provided by the rules of the municipal court.
(Code 1956, § 40-13)

State law reference—Similar provisions, R.S. 13:2492(E).

Sec. 50-46. Only lawyers to appear as counsel.

Only attorneys-at-law shall appear as counsel for any accused person.
(Code 1956, § 40-29)

State law references—Right to counsel, C.Cr.P. art. 511 et seq.; contract for fee, R.S. 37:218.

Sec. 50-47. No solicitation for lawyers.

No person shall solicit, with or without consideration, the employment of any lawyer to represent an accused in any of the municipal courts.
(Code 1956, § 40-30)

State law references—Right to counsel, C.Cr.P. art. 511 et seq.; contract for fee, R.S. 37:218.

Sec. 50-48. Only lawyers to receive remuneration for service rendered accused.

No person except an attorney-at-law shall receive any remuneration for any service rendered any accused in any municipal court in connection

with the obtainment of the parole of the accused, the furnishing of bond or any other service rendered in connection with the case. But this shall not apply to any surety company duly licensed to do a bail bond business in this state. (Code 1956, § 40-31)

State law references—Right to counsel, C.Cr.P. art. 511 et seq.; contract for fee, R.S. 37:218.

Secs. 50-49—50-85. Reserved.

ARTICLE III. COURT PROCEDURE

Sec. 50-86. All prosecutions to be by affidavit.

(a) All prosecutions in the municipal court and all prosecutions in the traffic court of the city shall be by affidavit or by bill of information.

(b) The superintendent of police, the deputy superintendent of police, police supervisors, assistant supervisors of police, police captains, police lieutenants, police sergeants, police desk sergeants, the city attorney, deputy city attorneys and assistant city attorneys shall have the power to take oaths and verify affidavits filed by other members of the police department. The chief of security, captains, lieutenants, sergeants, airport safety supervisors, and airport safety officer II's of the Orleans Levee Board shall have the power to take oaths and verify affidavits filed by patrol officers or safety officers of the security department of airport safety section of the Orleans Levee Board. The director, the deputy director, bureau chiefs and environmental specialists II, III and IV of the department of health shall have the power to take oaths and verify affidavits filed by the other members of the department of health. The director, the deputy director, the secretary of the department, the chief building inspector and the zoning administrator of the department of safety and permits shall have the power to take oaths and verify affidavits filed by other members of the department of safety and permits. Housing authority project managers and housing authority administrative assistants shall have the power to take oaths and verify affidavits filed by other members of the housing authority of the city. The director, the deputy director and the chief building inspector of the Vieux Carré Commission shall have the power to take oaths and verify affidavits filed by other members of the Vieux Carré Commission. The director and the deputy director of the historic districts and landmarks commission shall have the power to take oaths and verify affidavits filed by other members of the historic districts and landmarks commission. The director, the deputy director, and the secretary of the department of utilities shall have the power to take oaths and verify affidavits filed by other members of the department of utilities.

(c) The criminal sheriff, his chiefs, captains, lieutenants and sergeants shall have the power to take oaths and verify affidavits made by the appointed deputies of the criminal sheriff for offenses committed in their presence.

(d) The director, chief of staff, division heads, the public parking administrator, administrative analyst assistants I, II, and III, administrative service supervisors, and parking control supervisor I and II of the department of public works shall have the power to take oaths and verify affidavits made by parking control officers of the department of public works. The director, chief of staff, division heads, stormwater manager, environmental affairs administrator, inspectors, engineering intern I, engineering intern II, engineer, senior engineer, principal engineer of the department of public works shall have the power to take oaths and verify affidavits made by certified green infrastructure professional employees of the department of public works. The director, chief of staff, and division heads of the department of public works and the ground transportation bureau supervisor shall have the power to take oaths and verify affidavits made by employees of the ground transportation bureau.

(e) The superintendent of fire, assistant superintendent of fire, the secretary of fire, the city fire marshal, assistant fire marshal and senior fire prevention inspectors of the fire department shall have the power to take oaths and verify affidavits filed by other members of the fire prevention division of the fire department.

(f) The parish school board truancy center leader for each truancy center shall have the power to take oaths and verify affidavits made by truancy center social workers in connection with violations of sections relative to truancy.

(g) The state department of wildlife and fisheries, the department's officers, including the secretary, deputy secretary, undersecretary and assistant secretaries shall have the power to take oaths and verify affidavits made by state wildlife and fisheries enforcement officers in connection with section 54-336 relative to the discharge of weapons.

(h) The civil sheriff, his chiefs, majors, captains, lieutenants, and sergeants shall have the power to take oaths and verify affidavits filed or made by other employees and deputies of the civil sheriff.

(i) The director of sanitation, and the director's deputy directors, shall have the power to take oaths and verify affidavits made by employees of the department of sanitation.

(j) The superintendent of any college or university campus police department, deputy superintendent, police supervisor, assistant supervisor, captain, lieutenant, sergeant, and desk sergeant on the campus of a state supported or a private college or university who has peace officer standards and training (P.O.S.T.) certification and is on duty performing the police functions assigned by the college or university, shall have the power to take oaths and verify affidavits made by other members of such college or university campus police department.

(k) The director and operations chief of public safety support services, security managers, and grounds patrol supervisors of the New Orleans Office of Public Safety and Homeland Security, shall have the power to take oaths and verify affidavits made by employees of the grounds patrol division of the New Orleans Office of Public Safety and Homeland Security.

(l) The director and deputy director of the New Orleans Mosquito, Termite, and Rodent Control Board shall have the power to take oaths and verify affidavits made by employees of the New Orleans Mosquito, Termite, and Rodent Control Board.

(Code 1956, § 40-14; M.C.S., Ord. No. 17,156, § 1, 8-17-95; M.C.S., Ord. No. 17,396, § 1, 2-1-96; Ord. No. 18,991, § 1, 11-19-98; M.C.S., Ord. No. 28881, § 1, 12-16-21)

State law reference—Similar provisions, R.S. 13:2512.

Sec. 50-87. Fixing dates of arraignment and trial.

In all cases originating in the clerk's office, the clerk of the municipal court or his chief deputy shall allot and fix the date of arraignment in the order of their filing and at the earliest possible date. Thereafter such cases shall be fixed for trial as provided by the rules of the municipal court.

(Code 1956, § 40-15)

Sec. 50-88. What docket to show; papers to be kept two years.

The docket shall show the disposition made of each case, and no papers, exhibits and affidavits shall be destroyed, mutilated or otherwise disposed of until two years after the final disposition of the case by the municipal court or by the appellate court, if there has been an appeal.

(Code 1956, § 40-16)

State law reference—Similar provisions, R.S. 44:9, 44:36.

Sec. 50-89. Powers of judges.

(a) The judges of the municipal court and their clerks and court reporters may administer oaths, and the judges may compel witnesses to appear and testify.

(b) The court shall possess inherently all powers necessary for exercise of its jurisdiction and the enforcement of its lawful orders including the authority to issue such writs and orders as may become necessary and the court has the power to punish for contempt, as provided in the Criminal Code of Procedure, Articles 20 through 25 as the same may from time to time be amended, which articles define contempt and prescribe the penalties therefor.

(Code 1956, § 40-17)

State law reference—Similar provisions, R.S. 13:2500.

Sec. 50-90. Peace bonds—Authority to issue.

Each of the judges may require bonds to keep the peace in matters to which their jurisdiction extends, as provided by law.

(Code 1956, § 40-18)

State law reference—Peace bonds, C.Cr.P. arts. 26—33.

Sec. 50-91. Same—Procedure generally.

Any judge, in all cases in which it shall appear to him, by oath that:

(1) A breach of the peace has been committed;

(2) There is a just cause to apprehend that a breach of the peace is intended; or

(3) There is just cause to violate a law or city ordinance;

may cause the party charged with such breach of the peace or intent to breach the peace or violate some law or city ordinance to be brought before him and direct such party to give such security as the judge may deem reasonable to keep the peace of the city, and to answer to the offense, if any has been committed. In case of refusal to give such security to keep the peace the judge may inflict a fine of not less than $10.00 nor more than $300.00 or imprisonment for not exceeding 30 days, or both, at the discretion of the judge.
(Code 1956, § 40-19)

State law reference—Peace bonds, C.Cr.P. arts. 26—33.

Sec. 50-92. Same—Maximum amount in case of threat of bodily harm.

The judge may place all persons who threaten to do bodily harm to another under peace bonds, in an amount within the discretion of the judge, but in no case in excess of $2,500.00.
(Code 1956, § 40-20)

State law reference—Peace bonds, C.Cr.P. arts. 26—33.

Sec. 50-93. Cash bond in lieu of other type specified.

In any case in which the type of bond has been designated by the judge to be a personal surety bond, a bond of a personal surety owning real estate or a surety company bond, the accused shall have the right in lieu of furnishing any of such bonds to deposit with the clerk of court the amount of such bond in cash or to give a certified check drawn on a bank in the city for the amount of such bond, payable to the clerk of the municipal court.
(Code 1956, § 40-21)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-94. Disposition of cash bond and cash deposited therewith.

When a cash bond is made with the clerk of a section of the municipal court, the bond itself and the cash received shall be turned over by such clerk to the clerk of the municipal court or a deputy duly authorized by him to handle cash bonds. The clerk of the municipal court, or the deputy authorized by him to handle such bonds shall, no later than the next business day following the date on which such cash is received by him, deposit it in a checking account carried with a bank in the city, denominated "Bank Account, Municipal Court of New Orleans." Checks for withdrawals shall be signed by the clerk of the municipal court and countersigned by the judge of the section having jurisdiction of the case.
(Code 1956, § 40-22)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-95. Refund of cash bond.

Cash bond shall only be refunded to the remitter of the cash bond, or to a person who produces the original receipt. The refund check must be made payable to the remitter of the cash bond.
(Code 1956, § 40-23; M.C.S., Ord. No. 27888, § 1, 10-4-18)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-96. Record of cash bonds; appropriations.

(a) The clerk of the municipal court shall keep a complete record of all cash bonds, which shall consist primarily of a daily cash book, showing all receipts and disbursements, with a special card or ledger sheet for each cash bond and a control account, which will show from day to day the total amount of cash on deposit in the checking account, check book, stubs, bank statement and cancelled checks.

(b) The city shall appropriate sufficient moneys to cover all expenses for the operation of such system, including bank charges.
(Code 1956, § 40-24)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-97. Receipt for cash bond.

A receipt shall be given every accused for every cash or certified check bond furnished which shall show the date and number of the affidavit, the amount and nature of such bond and the date on which it was received.
(Code 1956, § 40-25)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-98. Forfeiture of bond; domicile deemed at last address.

The domicile of the accused for all intents and purposes shall be the last address furnished by him. Should the accused fail to appear for trial after having been notified at that address, according to law, any cash bail bond or certified check given as a bond, as set forth in this article may be decreed forfeited by the judge having jurisdiction, without further notice, and the notice of such forfeiture shall be given the treasurer of the city. Decrees of forfeiture shall be entered on the record and spread on the minutes of the court.
(Code 1956, § 40-26)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-99. Remittance of forfeited cash bond to municipal court judicial fund.

After the expiration of two days after the entrance of a decree of forfeiture of a cash bond, the clerk of the municipal court shall remit the amount of the forfeited bond to the municipal court judicial fund and this remittance must be made not later than the fourth business day after the judgment of forfeiture has been entered.
(Code 1956, § 40-27)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-100. Disposition when accused fails to collect cash bond.

If an accused has failed to collect a cash bond made by him for a period of one year following the date of the final disposition of his case, the amount of such bond shall be remitted to the municipal court judicial fund.
(Code 1956, § 40-28)

State law reference—Cash deposits, C.Cr.P. art. 324.

Sec. 50-101. Procedure for obtaining refund.

No remittitur, refund or return shall be made or approved by the city or the department of finance thereof, of any money paid to the city arising from a bail bond forfeiture in the criminal district court for the parish, or in the municipal court of the city, unless the following procedure has been complied with:

(1) That proper proof has been submitted to the department of finance, on a form furnished by the department of finance, that the defendant who was the subject of the bail bond forfeiture has been returned to the custody of the criminal sheriff of the parish prison, or to the police department of the city, whichever is applicable; and in addition;

(2) That the governor of the state or his properly designated representative has issued a lawful pardon to the claimant and surety involved remitting the forfeiture of the bail bond theretofore forfeited;

(3) That the claimant has filed his application for remittitur within a year of the judgment of forfeiture;

(4) That applicant's claim for bail bond remittitur is accompanied by a fee of $5.00, to be made payable to the city to cover administrative costs of processing the claim;

(5) That the surety involved has not collected all or any part of the forfeiture involved from any third party under any contract of indemnification between such surety and such third party. Applicant shall further state whether any fee has been charged in connection with the furnishing of the bond and the amount thereof;

(6) Upon the proper completion of the above requirements under oath, the applicant shall be entitled to the remittitur and refund request; provided, that where the applicant has had all or part of the bail bond forfeited repaid to him by a third

party indemnitor or surety, such claim shall not be allowed; and further provided, that where the applicant has secured a surety and third party indemnity contract from any third person, but has been paid nothing thereunder, the applicant shall include with his application proof of a full and complete release of any liability by such third party under such contract; and further provided, that where the fee charged for such bail bond by such applicant exceeds the sum of 25 percent of the principal amount of the bond, such application shall not be allowed nor any remittitur paid.

(Code 1956, § 2-61)

State law reference—Bail, R.S. 15:81 et seq.

Sec. 50-102. Transcript of evidence.

In all appealable cases testimony shall be taken down verbatim, but the stenographer's notes need not be written out unless an appeal is taken, in which case the testimony, when written out and signed by the judge, shall be forwarded by him with the record to the appellate court.

(Code 1956, § 40-32)

State law reference—Similar provisions, R.S. 13:2498(B).

Sec. 50-103. Designation of clerk to handle fines, bond.

The judge of each division of the municipal court shall designate one clerk to handle all money received from the collection of fines or in other similar ways, and such clerk in each section shall also be under bond in the amount of $5,000.00, the premium to be paid by the city.

(Code 1956, § 40-33)

State law reference—Fines imposed remitted to city treasurer, R.S. 13:2501.

Sec. 50-104. Imposition, collection, and disposition of fines.

(a) The power to impose a fine or penalty upon conviction in municipal court belongs exclusively to the municipal court judges.

(b) No fine shall be imposed by a municipal court judge without first conducting an assessment of the defendant's ability to pay. Any fines imposed, unless otherwise required by law, shall be commensurate with the findings of such assessment.

(c) Where a defendant is found to be indigent, non-financial alternative sanctions shall be considered. If the court determines a fine or restitution to be the appropriate and adequate penalty for a crime, it may not thereafter imprison a person solely because he or she lacks the resources to pay it.

(d) All fines, penalties, or forfeitures imposed by the judges of the municipal court shall be collected by them or their clerk and by them paid daily to the city treasurer. No person, except the judge or his clerk, shall be allowed to receive any payment of a fine or penalty or give a receipt therefor.

(Code 1956, § 40-34; M.C.S., Ord. No. 28217, § 1, 10-17-19)

State law reference—Fines imposed remitted to city treasurer, R.S. 13:2501.

Sec. 50-105. Receipt for fines; quarterly audit.

The city treasurer shall furnish to each judge of the municipal court a printed receipt book with marginal stubs and the judges or their clerks shall give a receipt from such book to each person paying a fine for every fine or penalty collected, stating therein the amount of the fine or penalty, the date, the name of the person fined and for what offense, and shall make corresponding entries on the stub thereof. Such receipt books and stubs shall always be open for public inspection. There shall be an audit made at least quarterly by the director of the department of finance, or his authorized deputy, of all fine collections and the cash bond records.

(Code 1956, § 40-35)

State law reference—Fines imposed remitted to city treasurer, R.S. 13:2501.

Sec. 50-106. Remission of fines.

No fine shall be remitted or released except in open court. An entry of such remission or release

of fine shall be made on the minutes of the court and due record shall be made thereof by the judge in his return to the city treasurer.
(Code 1956, § 40-36)

State law reference—Fines imposed remitted to city treasurer, R.S. 13:2501.

Sec. 50-107. Suspension of sentence; effect of subsequent conviction.

Upon trial and conviction before the municipal court, the judge in his discretion may after the imposition of a sentence suspend all or any part of such sentence and the judge may, even after the sentence has begun to run, change, modify or cancel the unserved time or remit the fine, or part thereof, if he believes the defendant is entitled to such change, modification or cancellation. If during the period for which a sentence has been suspended, the defendant is found guilty of another offense in the same or another section of the municipal court, the judge who has tried him on the second offense may reinstate the sentence which was suspended in the first instance in addition to the imposing of the sentence for the second offense.
(Code 1956, § 40-37)

State law reference—Similar provisions, C.Cr.P. art. 894, R.S. 13:2519.

Sec. 50-108. Reserved.

Editor's note—M.C.S., Ord. No. 28217, § 2, adopted Oct. 17, 2019, repealed § 50-108, which pertained to release from imprisonment upon payment of a determinable sum and derived from Code 1956, § 40-45.

Secs. 50-109—50-140. Reserved.

ARTICLE IV. APPEALS

Sec. 50-141. To criminal district court.

All appeals from the municipal court involving municipal ordinances shall be to the criminal district court for the parish, on the law and the facts, and shall be tried upon the records made and the evidence offered in the municipal court by the judge to whom the appeal shall be allotted, as provided by law. Such appeals shall be returnable to the criminal district court within not less than 15 days and no more than 30 days unless an extension be granted by the criminal district court. If state law is at issue, an application to the 4th Circuit Court of Appeal is the proper remedy.
(Code 1956, § 40-38)

State law reference—Similar provisions, R.S. 13:2498.

Sec. 50-142. Extension of time to complete record.

The appellant shall obtain any and all extensions of time from the criminal district court when for any reason the record is not completed within the appeal period. The failure of the appellant to obtain such an extension shall operate as a dismissal of the appeal.
(Code 1956, § 40-39)

State law reference—Extension of time for appeal, R.S. 13:2498(C).

Sec. 50-143. Payment of cost of record prerequisite to appeal.

Any person against whom judgment has been rendered in any proceeding in the municipal court and who desires to appeal therefrom to the criminal court for the parish or to the supreme court of this state shall pay to the clerk of the municipal court contemporaneously with the filing of the motion of appeal the sum of $100.00, in cash, to defray the cost of preparing the record and transcribing the evidence. The motion of appeal shall not be signed by the judge until due proof shall have been furnished him of the payment of these costs. In addition to the $100.00 deposit required in this section the appellant shall pay to the clerk of the municipal court $2.00 per page for each page in the record and transcript.
(Code 1956, § 40-40)

Sec. 50-144. Bill for costs and effect of failure to pay within five days.

The appellant or his attorney shall be sent a notice through the United States mail by the clerk of the municipal court to the effect that the record has been completed and enclosing a bill for the amount of cost due. The failure of the defendant to pay these costs within five judicial days from the mailing of such notice and bill

shall operate as a dismissal of the appeal. Should this five-day period extend beyond the return date of the appeal, the return date shall be automatically extended to the end of this five-day period. The clerk of the municipal court shall not, under any circumstances, except upon the order of the proper appellate tribunal, release the record until all these costs have been paid in full.
(Code 1956, § 40-41)

Sec. 50-145. Appeal in forma pauperis.

Any appellant who pleads that because of his poverty he is unable to pay the costs set forth in sections 50-143 and 50-144 may take a pauper's oath in open court and if the judge, after querying the appellant, is satisfied that such is the case he shall sign the order of appeal, stating thereon that the court being satisfied that the appellant is unable to pay such costs, the appeal may be taken in forma pauperis.
(Code 1956, § 40-42)

State law reference—Appeals, cost bond for transcripts, R.S. 13:2514.

Sec. 50-146. Ultimate disposition of paid costs.

The clerk of court shall deposit all costs under this article in a checking account in one of the banks of the city. Upon final determination of the cause on appeal, any judge sitting in the section of the court before which the cause was tried shall order the clerk of court:

(1) If the judgment and sentence be reversed, to return to the appellant the amount theretofore paid by the appellant by check made payable to the order of the appellant upon surrender of a receipt properly endorsed by appellant; or

(2) If the judgment and sentence be affirmed, any such judge shall order the clerk of court to issue a check for such sum payable to the department of finance, bureau of treasury, of the city, which amount so paid to the city shall be included on the daily financial report of the court.

(Code 1956, § 40-43)

Sec. 50-147. Bond on appeal.

When a defendant has been tried and sentenced and has taken an appeal, in accordance with law, he shall be released on his bond, but the trial judge shall increase the bond to an amount not less than the fine imposed. Every bond, pending the determination of a case on appeal, shall be that of a surety company properly authorized to do business in this state or, in lieu of a surety company bond, the accused may deposit with the clerk of court cash in the amount of the bond fixed by the judge or a properly certified check of a bank in this city in that amount, payable to the clerk of the municipal court.
(Code 1956, § 40-44)

State law reference—Similar provisions, C.Cr.P. art. 332, R.S. 13:2514.

Sec. 50-148. Traffic court appellate procedures.

(a) With the exception of traffic violations enforced by the city's automated traffic enforcement system(s), all procedures set forth in this article relative to appeals taken from municipal court to the criminal district court shall be applicable also to such appeals taken by defendants in matters tried before the traffic court. Thus, sections 50-141 through 50-147 shall apply with equal force and legal effect to any such appeals taken from convictions in the traffic court. Whenever in such sections there is a reference to municipal court, it shall also be deemed to include the traffic court, and whenever in such sections there is a reference to the clerk of the municipal court, it shall be deemed that the section refers also to the clerk of the traffic court.

(b) The First City Court for the City of New Orleans or the Second City Court for the City of New Orleans shall have jurisdiction over appeals by any person aggrieved by a decision of the traffic court concerning traffic violations enforced by the city's automated traffic enforcement system. Such appeals from the traffic court shall extend to the law and shall be tried upon the records made and the evidence offered in court by the

judge to whom such appeal shall be allotted. Any aggrieved person shall file such appeal within 30 days of such decision.
(Code 1956, § 40-46; M.C.S., Ord. No. 25019, § 1, 9-20-12)

Cross reference—Traffic court of New Orleans, § 154-101 et seq.

State law reference—Similar provisions, R.S. 13:2501.1 et seq.

Sec. 50-149. Municipal and traffic court maintenance fund; charge.

A fee is hereby levied on each conviction on a charge in municipal court. This fee shall be in addition to all fines and other applicable charges, and shall be deposited in a separate fund established for the maintenance and upkeep, and security of municipal court facilities.

The amount of the fee shall be as follows:

Per conviction $5.00

(Ord. No. 19,942, § 1, 12-1-00)

Editor's note—Ord. No. 19,942, § 1, adopted December 1, 2000, enacted provisions intended for use as § 50-150. At the editor's discretion, to preserve the style of the Code, these provisions have been codified herein as § 50-149.

ARTICLE V. TENANT EVICTION ASSISTANCE PROGRAM AND RIGHT TO COUNSEL

Sec. 50-150. Program and purpose.

There is hereby created a tenant eviction assistance program to provide legal counsel as a matter of right to residential tenants facing eviction proceedings within the City of New Orleans and to provide housing-related advocacy for tenants in New Orleans.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-151. Administration.

The tenant eviction assistance program will be administered through the office of community development, which shall develop regulations implementing the provisions of this article, including participation rules.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-152. Eligible proceedings.

Eviction proceedings eligible for legal assistance pursuant to the program shall include:

(1) Any legal or administrative proceeding to evict or otherwise terminate the tenancy or housing subsidy of a residential tenant living in New Orleans;

(2) Any legal or administrative proceedings seeking injunctive relief related to illegal eviction; and

(3) An appeal of any proceeding described in this section where there exists good grounds for an appeal based on criteria established by the program.

For purposes of program eligibility, an eviction proceeding shall be deemed to commence when a tenant receives notice of eviction, termination of tenancy, or lease non-renewal.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-153. Program providers.

(a) Based on the council's express finding that the benefits arising from publicly funded eviction assistance constitutes a legitimate and valuable public purpose, the City of New Orleans may enter into one or more cooperative endeavor agreements with a person, law firm, nonprofit organization or other entity that has completed adequate training and experience requirements as determined by the City of New Orleans to implement and coordinate the program, to support tenant advocacy, to provide community outreach, and to provide qualified tenants with legal representation in eviction proceedings. The award of cooperative endeavor agreements pursuant to this section shall be based upon a competitive selection process and shall comply in all respects with chapter 70 of the Code.

(b) The office of community development shall create and maintain a publicly available list of individuals and organizations providing city-funded eviction assistance pursuant to the program.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-154. Required disclosures.

The office of community development, or any entity it enters into a CEA with to implement the program, shall develop a brochure for distribution by landlords, housing subsidy providers, constables, and the court detailing a tenant's rights and obligations when facing eviction, including their right to counsel, as well as all available resources, including the tenant eviction assistance program. A copy of the foregoing shall be provided by the landlord when an eviction proceeding is commenced, or by the housing subsidy provider when a notice of subsidy termination is issued, and by the court when a rule for possession is served.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-155. Participation subject to funding.

Participation may be subject to the availability of funding.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Sec. 50-156. Performance review and reporting.

The office of community development shall conduct an annual performance review of the program. This review, which shall be presented to the council no later than September 1 of each year and made publicly available in a prominent location on the city's website, shall include at a minimum:

(1) Number of covered individuals served by the program;

(2) Household makeup of program participant, including age, race, gender, self-reported disability status, primary language spoken, number of household members, income, type of lease, and receipt of housing subsidy assistance at the time of service;

(3) Nature of, and reason for, the legal proceeding;

(4) Extent of legal representation provided; and

(5) Case dispositions.

As part of its annual performance review, the office of community development shall also conduct a performance review of each organization and law firm providing assistance pursuant to the program, which shall include the amount of funding received and the nature and volume of work performed. The council shall hold a public hearing on the program and the annual performance review not later than October 1 of each year.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

Editor's note—M.C.S., Ord. No. 29019, § 3, states: That the reporting and annual performance review required by Section 50-156 shall commence in calendar year 2023.

Sec. 50-157. Non-compliance.

The failure of the court or the petitioner to comply with the requirements established herein may give rise to dilatory exception of prematurity and/or an affirmative defense to eviction.
(M.C.S., Ord. No. 29019, § 1, 5-5-22)

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ARTICLE I. IN GENERAL

Sec. 54-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Another refers to any person or legal entity, including the state or any subdivision thereof.

Antique firearm means any firearm (including any firearm with a matchlock, flintlock percussion caps, or similar type of ignition system) manufactured in or before 1898, and any replica of any firearm if such firearm or replica thereof:

(1) Is not designed or redesigned for using rimfire or conventional centerfire fixed ammunition; or

(2) Uses rimfire or conventional ammunition which is no longer manufactured in the United States and which is not readily available in the ordinary channels of commercial trades.

Crime of violence means murder, manslaughter, rape, armed robbery, forcible rape, aggravated battery, kidnapping, burglary, robbery and assault with a dangerous weapon.

Dealer means any person, or manufacturer, duly licensed by appropriate authority engaged in the business of selling any firearm, new or used, in the parish including, but not limited to, wholesalers and pawnbrokers and other persons dealing in used firearms.

Dealer's license means an occupational license to buy, sell or repair firearms, or destructive devices, as provided by the Code.

Destructive device:

(1) The term "destructive device" shall include:

a. An explosive, incendiary, or poison gas, bomb, grenade, rocket, missile, mine or similar device;

b. Any device by whatever name known which will, or is designed or redesigned, or may be readily converted or restored to expel a projectile through a smooth bore barrel, except a shotgun;

c. Any device designed or redesigned, made or remade, or readily converted or restored, and intended to stun or disable a person by means of electric shock;

d. Any combination of parts designed or intended for use in converting any device into any destructive device; or from which a destructive device may be readily assembled;

e. Silencers and mufflers.

(2) The term "destructive device" shall not include:

a. Any pneumatic, spring, or BB device which expels a single projectile not exceeding .18 inch in diameter;

b. Any device which is neither designed or redesigned for use as a weapon;

c. Any device originally a weapon which has been redesigned for use as a signaling, line throwing or safety device;

d. Any device which the chief of police or judge of the court or other governmental body finds is not likely to be used as a weapon.

Felony shall mean a crime as such is defined by state and federal laws.

Failure to appear is the intentional failure to comply with a previously issued summons, citation, or court order directing a person to appear in the municipal court in accordance with the provisions of section 54-28 of this Code.

Firearm means any weapon which will, or is designed or redesigned, made or remade, readily converted or restored and intended to expel a projectile or projectiles by the action of an explosive and/or propellant, the frame or receiver of any such device. The term "firearm" shall not include:

(1) Any device used exclusively for line throwing, range shooting, or safety, and required or recommended by the Coast Guard or Interstate Commerce Commission;

(2) Any device used exclusively for firing explosive rivets, stud cartridges, or similar industrial ammunition and not designed for use as a weapon;

(3) Any device which is neither designed nor redesigned to be used as a weapon;

(4) Any device originally designed as a weapon which has been redesigned for use as a signaling, line throwing or safety device;

(5) Any device which the chief of police or judge of the court or other appropriate governmental body finds is not likely to be used as a weapon;

(6) Replicas of firearms or deactivated firearms not readily put in good working order; or

(7) Antique firearms.

Foreseeable refers to that which ordinarily would be anticipated by a human being of average reasonable intelligence and perception.

Handgun means a firearm that is designed, redesigned, made or remade to expel a projectile through a barrel by using the energy generated by an explosive or propellant substance and that is designed, made or adapted to be fired with one hand.

Length of barrel means that portion of a firearm, rifle, shotgun or machine gun through which a shot or bullet is driven, guided or stabilized, and shall include the chamber.

Manufacturer means any person who is engaged in the parish, in the manufacturing, assembling, repairing, or altering of a firearm or a destructive device.

Paraphernalia is defined as provided in section 102-111 of the Code of the City of New Orleans.

Pistol means a handgun.

Property refers to both public and private property, moveable and immoveable, corporeal and incorporeal.

Public place means an area generally visible to public view and includes streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, automobiles (whether moving or not), and buildings open to the general public including those which serve food or drink or provide entertainment, and the doorways and entrances to buildings or dwellings open to the public as well as the grounds enclosing them.

Purchase means to acquire ownership or title in exchange for financial consideration.

Rifle means a grooved bore firearm using a fixed metallic cartridge with a single projectile and designed or redesigned, made or remade, and intended to be fired from the shoulder.

Sale means exchange for financial consideration.

Sawed-off shotgun means a shotgun having a barrel length of less than 18 inches; or a firearm made from a shotgun if such firearm as modified has an overall length of less than 26 inches or any barrel of less than 18 inches.

Sell, the verb used in different form and tenses, means the sale by dealer to purchaser.

Short barreled rifle means a rifle having any barrel less than 16 inches in length, or a firearm made from a rifle if such firearm as modified has an overall length of less than 26 inches or any barrel of less than 16 inches.

Shotgun means a smooth bore firearm using a fixed shotgun shell with either a number of ball shots or a single projectile, and designed or redesigned, made or remade, and intended to be fired from the shoulder.

Summons means a written notification for a person to appear, in lieu of arrest, in the indicated court at the specified date and time to answer to the charges. A summons is issued by an officer for municipal misdemeanor offenses rather than a custodial arrest and booking.

Transfer means a gift or loan without financial or other consideration from one individual or dealer to another with intent for receiver to take possession whether temporary or permanent.

Weapons is a descriptive term and includes firearms, destructive devices and any other

instrumentality customarily used or intended for probable use as a dangerous weapon to inflict great bodily harm or death.

Weapons offense means a violation of the law which involves the sale, purchase, transfer in any manner, receipt, acquisition, possession, having under control, use, repair, manufacture, carrying or transportation of any weapon.
(Code 1956, § 42-6; M.C.S., Ord. No. 23128, § 1, 6-19-08; M.C.S., Ord. No. 28745, § 1, 8-5-21, eff. 9-15-21)

Cross reference—Definitions generally, § 1-2.

Sec. 54-2. Method of citation.

This chapter shall be known as the Municipal Criminal Code of the City of New Orleans, Louisiana, 1976. The general titles hereunder may be referred to or cited as articles of the criminal code of New Orleans, Louisiana 1976. The specific ordinances in this chapter may be referred to or

cited as sections of the Municipal Criminal Code of New Orleans, Louisiana, 1976.
(Code 1956, § 42-1)

Sec. 54-3. Authority to create and define crimes.

(a) The city shall have the right and power to create and define crimes pursuant to the authority granted to it by virtue of the constitution and laws of the state.

(b) This power to create and define crimes shall be exercised in accord with the grant of authority contained in the home rule charter of the city.
(Code 1956, § 42-9)

Sec. 54-4. Civil remedies not affected.

Nothing in this chapter shall affect any civil remedy provided by the law pertaining to civil matters, or any legal power to inflict penalties for contempt.
(Code 1956, § 42-8)

Sec. 54-5. Interpretation.

The sections of this chapter cannot be extended by analogy so as to create crimes not provided for herein; however, in order to promote justice and to effect the objects of the law, all of its provisions shall be given a genuine construction, according to the fair import of their words, taken in their usual sense, in connection with the context, and with the reference to the purposes of the provision.
(Code 1956, § 42-7)
State law reference—Interpretation, R.S. 14:3.

Sec. 54-6. Procedure.

The provisions of the Code of Criminal Procedure of Louisiana shall govern and regulate the procedure in criminal prosecutions and proceedings in the municipal court of the city, except that all proceedings shall be initiated by affidavit or summons only, as provided by R.S. 13:2512.
(Code 1956, § 42-2)

Sec. 54-7. Evidence.

The trials of all cases in the municipal court, and the rules of evidence applicable thereto, shall be the same as those governing the trials of misdemeanors under the Code of Criminal Procedure and Title 15 of the Louisiana Revised Statutes of 1950 as they presently exist, or as they may be hereafter amended.
(Code 1956, § 42-3)

Sec. 54-8. Crime defined.

A crime is that conduct which is prohibited or is made or declared to be unlawful or criminal in this chapter or which may be punishable by fine and/or imprisonment by ordinances of the city.
(Code 1956, § 42-10)
State law reference—Similar provisions, R.S. 14:7.

Sec. 54-9. Criminal conduct.

Criminal conduct consists of:

(1) An act or a failure to act that produces criminal consequences, and which is combined with criminal intent;

(2) A mere act or failure to act that produces criminal consequences, where there is no requirement of criminal intent; or

(3) Criminal negligence that produces criminal consequences.

(Code 1956, § 42-11)
State law reference—Similar provisions, R.S. 14:8.

Sec. 54-10. Criminal consequences.

Criminal consequences are any results defined or prohibited in the various sections of this chapter as necessary to constitute any of the various crimes herein.
(Code 1956, § 42-12)
State law reference—Similar provisions, R.S. 14:9.

Sec. 54-11. Criminal intent.

Criminal intent may be specific or general:

(1) Specific criminal intent is that state of mind which exists when the circumstances indicate that the offender actively desired the prescribed criminal consequences to follow his act or failure to act;

(2) General criminal intent is present whenever there is specific intent, and also when the circumstances indicate that the of-

fender, in the ordinary course of human experience, must have averted to the prescribed criminal consequences as reasonably certain to result from his act or failure to act.

(Code 1956, § 42-13)

State law reference—Similar provisions, R.S. 14:10.

Sec. 54-12. Criminal intent; how expressed.

The definitions of some crimes require a specific criminal intent, while in others no intent is required. Some crimes consist merely of criminal negligence that produces criminal consequences. However, in the absence of qualifying provisions, the terms "intent" and "intentional" have reference to general criminal intent.

(Code 1956, § 42-14)

State law reference—Similar provisions, R.S. 14:11.

Sec. 54-13. Criminal negligence.

Criminal negligence exists when, although neither specific nor general criminal intent is present, there is such disregard of the interest of others that the offender's conduct amounts to a gross deviation below the standard of care expected to be maintained by a reasonably careful man under like circumstances.

(Code 1956, § 42-15)

State law reference—Similar provisions, R.S. 14:12.

Sec. 54-14. Insanity.

If the circumstances indicate that, because of a mental disease or mental defect, the offender was incapable of distinguishing between right and wrong with reference to the conduct in question, the offender shall be exempt from criminal responsibility.

(Code 1956, § 42-16)

State law reference—Similar provisions, R.S. 14:14.

Sec. 54-15. Intoxication.

The fact of an intoxicated or drugged condition of the offender at the time of the commission of the crime is immaterial, except as follows:

(1) Where the production or drugged condition has been involuntary, and the circumstances indicate this condition is the direct cause of the commission of the crime, the offender is exempt from criminal responsibility.

(2) Where the circumstances indicate that an intoxicated or drugged condition has precluded the presence of a specific criminal intent or of special knowledge required in a particular crime, this fact constitutes a defense to a prosecution for that crime.

(Code 1956, § 42-17)

State law reference—Similar provisions, R.S. 14:15.

Sec. 54-16. Mistake of fact.

Unless there is a provision to the contrary in the definition of a crime, reasonable ignorance of fact or mistake of fact, which precludes the presence of a specific criminal intent or of special knowledge required in that crime, is a defense to any prosecution for that crime.

(Code 1956, § 42-18)

State law reference—Similar provisions, R.S. 14:16.

Sec. 54-17. Mistake of law.

Ignorance of the sections of this chapter or any ordinance of the city, punishable by fine and/or imprisonment, is not a defense to any criminal prosecution. However, mistake of law which results in the lack of an intention that consequences which are criminal shall follow, is a defense to a criminal prosecution under the following circumstances:

(1) Where the offender reasonably relied on an act of this city in repealing an existing criminal provision, or in otherwise purporting to make the offender's conduct lawful; or

(2) Where the offender reasonably relied on a final judgment of a competent court of last resort declaring as unconstitutional a provision of this chapter making the conduct which forms the basis of the prosecution criminal.

(Code 1956, § 42-19)

State law reference—Similar provisions, R.S. 14:17.

Sec. 54-18. Justification, general provisions.

The fact that an offender's conduct is justifiable, although otherwise criminal, shall consti-

tute a defense to a prosecution for any crime based on that conduct. This defense of justification can be claimed under the following circumstances:

(1) When the offender's conduct is an authorized and reasonable fulfillment of any duties of public office;

(2) When the offender's conduct is a reasonable accomplishment of an arrest which is lawful under the laws of the state or of ordinances of the city;

(3) When for any reason the offender's conduct is authorized by law;

(4) When the offender's conduct is a reasonable discipline of minors by their parents, tutors or teachers;

(5) When the crime consists of a failure to perform an affirmative duty and the failure to perform is caused by physical impossibility;

(6) When any crime is committed through the compulsion of threats by another of death or great bodily harm, and the offender reasonably believes the person making the threats is present and would immediately carry out the threats if the crime were not committed; or

(7) When the offender's conduct is in defense of persons or of property under any of the circumstances authorized in this chapter.

(Code 1956, § 42-20)

State law reference—Similar provisions, R.S. 14:18.

Sec. 54-19. Use of force or violence in defense.

The use of force or violence upon the person of another is justifiable, when committed for the purpose of preventing a forcible offense against the person, provided that the force or violence used must be reasonable and apparently necessary to prevent such offense.

(Code 1956, § 42-21)

State law reference—Similar provisions, R.S. 14:19.

Sec. 54-20. Aggressor cannot claim self-defense.

A person who is the aggressor cannot claim the right of self-defense unless he withdraws from the conflict in good faith and in such a manner that his adversary knows or should know that he desires to withdraw and discontinue the conflict.

(Code 1956, § 42-22)

State law reference—Similar provisions, R.S. 14:21.

Sec. 54-21. Defense of others.

It is justifiable to use force or violence in the defense of another person when it is reasonably apparent that the person attacked could have justifiably used such means himself, and when it is reasonably believed that such intervention is necessary to protect the other person.

(Code 1956, § 42-23)

State law reference—Similar provisions, R.S. 14:22.

Sec. 54-22. Principals.

All persons concerned in the commission of a crime, whether present or absent, and whether they directly commit the act constituting the offense, aid and abet in its commission, or directly or indirectly counsel or procure another to commit the crime, are principals.

(Code 1956, § 42-24)

State law reference—Similar provisions, R.S. 14:24.

Sec. 54-23. Bail.

(a) Any person detained or imprisoned for the commission of a crime as defined in this chapter shall be entitled to bail at the earliest practical time after such detention or imprisonment.

(b) The judges of the municipal and traffic court shall cause to be published a bail schedule as specified in this subsection and subsections (c) and (d), below. The schedule shall be equally available to booking officers, defendants, and their attorneys and prosecutors. The schedule shall be consistent and in accordance with existing state law.

(c) For all municipal offenses not specified in section (d), the bail schedule shall direct that the defendant shall be released on his or her own

recognizance, without the requirement of posting any financial obligation. Such defendants are to be released from custody immediately after booking. They are to be directed to appear in the municipal and traffic court for their initial appearance hearing on the next business day.

(d) For the municipal offenses specified in this section, the bail schedule shall direct that the defendant is to be detained until the initial appearance hearing, which is to be held no later than 24 hours after the time of booking. The specified offenses are: Sec. 54-96—Battery; Sec. 54-97—Assault; Sec. 54-341—Illegal carrying of weapons; Sec. 54-444—Impersonating a Peace Officer; and Sec. 54-526—Domestic Violence.

(e) At the initial appearance hearing of all defendants, whether appearance is a result of subsection (c) or (d), the court must determine whether there is a substantial risk that the defendant may flee or poses an imminent danger to any other person or the community.

(1) Absent such a finding, the court shall release the defendant on his or her own recognizance.

(2) If there is such a finding:

i. The court shall impose the least restrictive non-financial release conditions, tailored specifically to address the risk of flight or danger to the community, including peace bonds, stay away orders and protective orders. For any person who qualifies for indigent defense, or does not have the present ability to pay, the court may not set a non-financial release condition that requires fees or costs to be paid by the defendant.

ii. Should the court impose a secured financial condition, the court must make an inquiry into the defendant's ability to pay and a finding that the person has the present ability to pay the amount set. If the court does impose a secured financial condition, in no event shall the bond exceed $2,500.00.

(3) The court shall state on the record the basis for any and all bail or release obligations imposed by the court.

(f) No defendant awaiting trial, after the initial appearance hearing, shall be detained only because they do not have enough money to post bond. No defendant may be detained because of failure to abide by a non-financial release condition due to inability to pay. Neither the court nor any agent thereof may impose a financial condition that results in the pretrial detention of any person after the initial appearance hearing, except as provided in section (g) below.

(g) (1) If a person who has been released on recognizance under this ordinance is later arrested and detained for another violation of the New Orleans Municipal Code or on a warrant for failure to appear during the pendency of the earlier charge, the sheriff shall bring that person to the initial appearance hearing to be held on later than 24 hours after arrest.

(2) If the court determines after a hearing that a defendant has willfully failed to appear for a court date in the present proceeding and that all previous attempts at imposing non-financial conditions have failed to ensure the defendant's presence in court, the court may set a financial bail.

(Code 1956, § 42-4; M.C.S., Ord. No. 27232, § 1, 1-12-17; M.C.S., Ord. No. 27565, § 1, 10-26-17)

State law reference—Bail, R.S. 15:81 et seq.

Sec. 54-24. Telephone alarm system; prohibition; penalty.

(a) It shall be unlawful for any person to use, or cause to be used, install, operate, adjust, program or otherwise maintain a telephonic alarm system which automatically or mechanically transmits a signal, message or warning to any city department of fire or department of police telephone lines.

(b) For the purposes of this section, the term "telephonic alarm system" shall mean any mechanism, equipment or device which is designed to operate automatically through the use of public telephone facilities to transmit a signal, message or warning to another location.

(c) Whoever violates the provisions of this section shall, upon conviction thereof, be punished by a fine of not less than $20.00 nor more than $100.00 or by imprisonment of not less than three days, nor more than 90 days and/or both. This section shall not apply to any public utility furnishing facilities, lines or equipment under tariffs on file with regulatory agencies.
(Code 1956, § 42-95)

Sec. 54-25. Penalty provisions.

Whenever in this chapter any act is prohibited or declared to be unlawful, or an offense or a crime, when no specific penalty is provided therefor, the violation of any such provision of this chapter shall be punished by a fine not exceeding $500.00, or by imprisonment for not more than five months or both such fine and penalty with the exception that in the event of convictions for violations of section 54-339, sale, purchase, possession or use of specified instrumentalities prohibited, and/or section 54-341, illegal carrying of weapons, and/or section 54-342.5, illegal possession or ownership of firearms or other dangerous instruments by certain persons, a fine of not less than $100.00 nor more than $500.00 and imprisonment of not less than 30 days nor more than five months shall be imposed and shall be consistent with section 54-344.
(Code 1956, § 42-5; M.C.S., Ord. No. 17,006, § 1, 5-4-95)

Sec. 54-26. Minimum penalties imposed.

Any other provisions of this chapter notwithstanding, a minimum fine of $100.00 shall be imposed for the municipal violations described in the following sections of the Code:

Section number	*Title*
54-24	Telephone alarm system; prohibition; penalty.
54-96	Battery.
54-97	Assault.
54-151	Criminal damage to property.
54-153	Criminal trespass.
54-154	Obstruction of drainage canals.
54-155	Discharging oil into gutters or drains.
54-186	Theft.
54-187	Unauthorized use of movables.
54-188	Illegal possession of stolen things.
54-189	Issuing worthless checks.
54-190	Driving on restricted access roads, levees, battures, park areas, playgrounds, embankments of canal, servitudes and public rights-of-way.
54-191	Unauthorized parking of motor vehicles on private property.
54-251	Prostitution.
54-252	Soliciting for prostitution.
54-253	Prostitution loitering.
54-255	Sale and distribution of obscene material.
54-256	Public displays of explicit sexual material.
54-257	Proximity of adult bookstores to churches, schools, etc.
54-258	Promotion of obscene devices.
54-259	Sale, exhibition, or distribution of material harmful to minors.
54-260	Obscene live conduct.
54-278	Telephone communications; improper language.
54-279	Peeping Tom.
54-311	Criminal impersonation.
54-312	Fortunetelling.
54-339	Sale, purchase, possession, use of specified instrumentalities prohibited.

Section number	*Title*
54-341	Illegal carrying of weapons.
54-342	Illegal possession of weapons at demonstrations.
54-345	Unlawful sale, transfer to minors.
54-354	Penalties.
54-376	Cruelty to animals.
54-377	Desecration of graves.
54-401	Obstructing public passages.
54-402	Trash fires.
54-403	Disturbing the peace.
54-406	Opened containers to remain in establishments.
54-408	Disturbing the peace in the city council chamber.
54-411	Begging prohibited.
54-413	Throwing prohibited.
54-414	Curfew for persons under 17 years of age; school attendance—Established.
54-441	Resisting an officer.
54-442	Crossing or traversing a police cordon.
54-443	Tampering with evidence.
54-444	False personation of peace officers.
54-483(b)	Penalty for violation of section 54-483(a); eviction without due process.
54-484	Scalping tickets.
54-485	Unlawful for person of opposite sex to perform massage.
54-486	Unlawful to allow employee to perform massage on person of opposite sex.
54-489	Merchandising of certain items—Vieux Carré.
54-492	Sale of food, beverages in certain areas.

(Code 1956, § 42-5.1; M.C.S., Ord. No. 16,865, § 1, 1-5-95)

Sec. 54-27. Release conditioned on participation in drug testing program.

(a) Every person arrested for a municipal or state offense shall be required to submit to a drug test for the presence of designated substances as part of the booking process in accordance with the provisions of this section. A person arrested for a municipal or state offense who tests positive for the presence of one or more of the designated substances set forth in subsection (b)(1) of this section shall have said results forwarded to the municipal or criminal court judge responsible for setting the arrestee's bail. A copy of the drug test results for each person arrested for a state offense shall be forwarded to the district attorney of Orleans Parish, for determining admission into the district attorney's diversion program. Test results shall only be used for the benefit of the courts to determine appropriate conditions of release, for determining admission into the district attorney's diversion program or for purposes of a drug treatment program and may not be used as evidence or as a basis for additional charges.

(b) The Orleans Parish criminal sheriff may implement a drug testing program which shall provide for the following:

(1) Drug testing shall include but is not limited to determining the presence of phencyclidine (PCP), opiates (heroin), or cocaine. Marijuana testing is not mandated pursuant to this subpart.

(2) Restriction on the use of any and all individual test results to ensure that they are used only for the benefit of the courts to determine appropriate conditions of release, for purposes of a drug treatment program or for determining admission into the district attorney's diversion program.

(3) Reasonable testing procedures to ensure the fair administration of the test.

(c) No person shall be eligible for release from custody unless he or she has agreed to submit to a drug test.

(d) The mayor's office of criminal justice coordination shall monitor and be provided with quarterly statistics on the drug testing.

(M.C.S., Ord. No. 18,063, § 1, 2-6-97; M.C.S., Ord. No. 28745, § 1, 8-5-21, eff. 9-15-21)

Sec. 54-28. Summons by officer instead of arrest and booking.

(1) An officer shall issue a written summons and may not make a custodial arrest when citing a person solely for a state or municipal misdemeanor violation, except when one of the following circumstances exists:

(a) The officer is unable to determine the identity of the person; or

(b) The person makes a statement that indicates an intent to disregard the summons or refuses to sign the summons; or

(c) The person acts in a violent or destructive manner or makes a statement indicating that he or she intends to imminently inflict injury to self or another or damage to property; or

(d) The person is a habitual offender, defined as any individual with a criminal history of two or more felony convictions, or five or more convictions for any offense; or

(e) The officer determines that exigent circumstances absolutely necessitate a custodial arrest to protect public safety, and the officer's supervisor is consulted and approves the arrest.

(2) When an officer determines that one of the exceptions enumerated in subsection (1) applies, the officer may use his or her discretion to issue a summons instead of making a custodial arrest for a violation.

(3) Subsection (1) does not apply when an officer cites a person for a domestic violence violation, illegal carrying of a weapon, or careless storage of a firearm that results in the minor either causing, or attempting to cause, the injury or death of themselves or any other person or causes the firearm to fire.

(4) When an officer effectuates a custodial arrest for a state or municipal misdemeanor violation, the officer shall appropriately fill out all information on the reverse side of the affidavit at the time of arrest in a form to be promulgated by the New Orleans Police Department that describes with specificity the circumstances falling within subsection (1).

(5) The New Orleans Police Department shall continue to prepare quarterly reports stating the number of custodial arrests made solely for state or municipal misdemeanor violations, the reasons for those arrests, and the number of summonses issued for such violations.

(6) A defendant has seven days from the time of the issuance of a summons under this section to appear in court to show cause for the failure to appear as defined in section 54-1 of this Code. Failure to appear within seven days will create the rebuttable presumption that the defendant is guilty of this article. Whoever commits the crime of failure to appear shall be fined not more than $500.00, or imprisoned for not more than six months, or both.
(M.C.S., Ord. No. 23052, § 1, 4-3-08; M.C.S., Ord. No. 23128, § 2, 6-19-08; M.C.S., Ord. No. 28558, § 1, 12-17-20; M.C.S., Ord. No. 29363, § 1, 3-9-23)

Sec. 54-29. Citation for municipal ordinance instead of state law violation.

(1) Any member of the New Orleans Police Department citing a person solely for a misdemeanor offense(s) punishable under both the City Code and Titles 14 or 40 of Louisiana Revised Statutes shall arrest or issue a summons for the equivalent municipal offense rather than the equivalent state offense as further provided in subsection (2). The decision of whether to issue a summons or arrest shall be made in accordance with the provisions of section 54-28.

(2) The equivalent municipal offenses shall be used instead of the state offenses as follows:

(a) Section 54-151 "Criminal damage to property" instead of La. R.S. 14:56 "Simple criminal damage to property."

(b) Section 54-153 "Criminal trespass" instead of La. R.S. 14:63 "Criminal trespass."

(c) Section 54-186 "Theft" instead of La. R.S. 14:67 "Theft."

(d) Section 54-187 "Unauthorized use of moveables" instead of La. R.S. 14:68 "Unauthorized use of a moveable."

(e) Section 54-188 "Illegal possession of stolen things" instead of La. R.S. 14:69 "Illegal possession of stolen things."

(f) Section 54-251 "Prostitution" instead of La. R.S. 14:82 "Prostitution."

(g) Section 54-252 "Soliciting for prostitution" instead of La. R.S. 14:83 "Soliciting for prostitutes."

(h) Section 54-278 "Telephone communications; improper language" instead of La. R.S. 14:285 "Unlawful communications; telephones and telecommunications devices; improper language; harassment."

(i) Section 54-377 "Desecration of graves" instead of La. R.S. 14:101 "Desecration of graves."

(j) Section 54-401 "Obstructing public passages" instead of La. R.S. 14:100.1 "Obstructing public passages."

(k) Section 54-403 "Disturbing the peace" instead of La. R.S. 14:103 "Disturbing the peace."

(l) Section 54-505 "Simple possession of marijuana" instead of La. R.S. 40:966(C)(2) "Possession of marijuana."

(m) Section 102-113 "Prohibited acts" instead of La. R.S. 40:1023 "Prohibited acts."

(3) Nothing herein shall mandate that conduct constituting a felony be designated as a municipal or misdemeanor violation.
(M.C.S., Ord. No. 28558, § 2, 12-17-20)

Sec. 54-30. Enforcement of sections 54-154, 54-155, and 54-157.

In accordance with section 4-502(2) of the Charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the department of sanitation, employees of the department of public works, and employees of the New Orleans Office of Public Safety and Homeland Security for the purpose of enforcing the provisions of Sections 54-154, 54-155, and 54-157 of the Code of the City of New Orleans. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.
(M.C.S., Ord. No. 28884, § 1, 12-16-21)

Editor's note—M.C.S., Ord. No. 28884, § 1, adopted Dec. 16, 2021, set out provisions intended for use as § 54-29. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 54-30.

Secs. 54-31—54-60. Reserved.

ARTICLE II. INCHOATE OFFENSES

Sec. 54-61. Attempt.

(a) It shall be unlawful for any person to attempt to commit a crime as defined in this chapter. A person is guilty of an attempt to commit a crime, if, with an intent to commit a crime, he does or commits any act for the purpose of and tending directly toward the accomplishing of his object; and it shall be immaterial whether, under the circumstances, he would have actually accomplished his purpose.

(b) Mere preparation to commit a crime shall not be sufficient to constitute an attempt; but lying in wait with a weapon with the intent to commit a crime or searching for the intended victim with a weapon with the intent to commit a crime, shall be sufficient to constitute an attempt to commit the crime intended.

(c) Any person may be convicted of an attempt to commit a crime, although it appears on the trial that the intended or attempted crime was actually perpetrated by such person in pursuance of such attempt.

(d) The penalty for the conviction of attempt of any crime shall be the same as for the crime attempted.
(Code 1956, § 42-25)

State law reference—Similar provisions, R.S. 14:27.

Secs. 54-62—54-95. Reserved.

ARTICLE III. OFFENSES AGAINST THE PERSON

Sec. 54-96. Battery.

(a) It shall be unlawful for any person to commit the crime of battery.

(b) Battery is the intentional use of force or violence upon the person of another; or the intentional administration of a poison or other noxious liquid or substance to another.
(Code 1956, § 42-26)

State law reference—Similar provisions, R.S. 14:33, 14:35.

Sec. 54-97. Assault.

(a) It shall be unlawful for any person to commit the crime of assault.

(b) Assault is an attempt to commit a battery, or the intentional placing of another in reasonable apprehension of receiving a battery.

(c) Whoever commits the offense of assault shall be fined not more than $200.00 or confined for not more than 90 days, or both.
(Code 1956, § 42-27)

State law reference—Similar provisions, R.S. 14:36, 14:38.

Sec. 54-98. Negligent injuring.

(a) It shall be unlawful for any person to commit the crime of negligent injuring.

(b) Negligent injuring is the inflicting of any injury upon the person of another by criminal negligence.

(c) The violation of any law of the state or any ordinance of the city, punishable by fine and/or imprisonment, shall be considered only as presumptive evidence of such negligence.
(Code 1956, § 42-28)

State law reference—Similar provisions, R.S. 14:39.

Sec. 54-99. False imprisonment.

(a) It shall be unlawful for any person to commit the crime of false imprisonment.

(b) False imprisonment is the intentional confinement or detention of another, without his consent and without proper legal authority.

(c) Whoever commits the crime of false imprisonment shall be fined not more than $200.00, or imprisoned for not more than six months, or both.
(Code 1956, § 42-29)

Secs. 54-100—54-130. Reserved.

ARTICLE IV. OFFENSES AGAINST PROPERTY

DIVISION 1. GENERALLY

Secs. 54-131—54-150. Reserved.

DIVISION 2. VIOLENCE TO BUILDINGS AND OTHER PROPERTY

Sec. 54-151. Criminal damage to property.

(a) *Definitions.* In this section:

(1) *Graffiti* means any sign, inscription, design, drawing, diagram, etching, sketch, symbol, lettering, name or marking which is scratched, painted or sprayed on any surface, regardless of the material of that structural component, in such a location and in such a manner so as to deface the property.

(2) *Graffiti or paint stick* means a device containing a solid form of paint, chalk, wax, epoxy or other similar substance capable of being applied to a surface by pressure.

(3) *Gum label* means any sheet of paper, fabric, plastic or other substance with an adhesive backing which is not easily removable when placed on a surface.

(4) *Graffiti instrument* means any spray paint containers, paint, graffiti or paint stick, ink, marking pens which contain a non-water soluble fluid, brushes, applicators, gum labels, etching tool or other materials which may be used for placing graffiti.

(5) *Minor* means any person 17 years of age or younger who has not been emancipated under state law.

(6) *Custodian* means a parent as defined in Louisiana Children's Code, article 116, or a person with legal custody as defined in Louisiana Children's Code, article 116,

to whom the care or supervision of the child has been temporarily and lawfully delegated or assigned.

(7) *Operator* means any individual, firm, association, partnership or corporation owning, operating, managing or conducting any establishment which offers for sale any graffiti instrument.

(b) *Offenses.* The following are violations:

(1) No person shall:

a. Place graffiti or gum labels upon real or personal property, whether publicly or privately owned, without the consent of the owner.

b. Possess, with the intent to use in violation of this section, any graffiti instrument.

(2) No minor shall possess, without the knowledge and permission of the minor's custodian, any of the following graffiti instruments:

a. Spray paint container.

b. Graffiti or paint stick.

c. Etching tool.

(3) No custodian shall:

a. Permit or by insufficient control allow a minor under the custodian's care or custody to violate this section.

b. Fail to accompany a minor in the custodian's care or custody to any court appearance as a result of this section.

(4) No operator shall:

a. Sell, exchange, give, loan or otherwise furnish any of the following graffiti instruments to a minor without the prior written consent of the minor's custodian:

1. Spray paint container.

2. Graffiti or paint stick.

3. Gum label.

4. Etching tool.

b. Offer for sale, trade or exchange any graffiti instrument listed in subsection (4)a. above without prominently displaying notice that those instruments will not be provided to minors absent prior custodial written consent.

(c) *Removal.* Graffiti must be removed by the owner of the property where the graffiti is located within 30 days of receiving notice to do so from the city.

(1) The notice shall consist of the name of the property owner, the address or location of the property and a description of the graffiti to be removed.

(2) Notice shall be sent to the record owner of such property via registered or certified mail. If no owner can be located, notice may be posted on the property where the graffiti at issue is located by any authorized representative of the city, including but not limited to inspectors employed by the department of code enforcement, the department of health, the historic districts landmarks commission, the Vieux Carré Commission, the department of safety and permits, or the sanitation rangers of the department of sanitation. The date of posting shall be considered the day of receipt.

(3) If the graffiti described is not removed within 30 days of receiving notice, the city may issue a notice of administrative hearing, or a summons for the owner to appear in municipal court to either give good cause why graffiti was not removed and to ask for an extension of time to remove graffiti; if no good cause is given, a fine may be levied against the owner of the property for failure to timely remove the graffiti.

(d) *Penalties.* A violation of this section is a misdemeanor punishable by municipal court, as follows:

(1) Any person who violates subsection (b)(1), (2) or (3) of this section shall be punished by each of the following:

a. A fine of not less than $500.00 or more than $1,000.00.

b. Community service for the cleansing and restoration of property defaced by graffiti in violation of this section, according to the following schedule:

1. For a first offense, not less than 21 hours or more than 35 hours.

2. For subsequent offenses, not less than 42 hours or more than 70 hours.

c. Complete financial restitution necessary to cover the costs of restoring any property defaced by the person's actions.

d. If a minor is personally unable to pay the fine or financial restitution required under this section, the custodian of the minor shall be liable only if the court finds that the custodian failed to exercise reasonable supervision. Any court of competent jurisdiction may waive such payment by the custodian upon a finding of good cause, including undue financial hardship.

(2) The court may, in its discretion, in addition to the above penalties, order imprisonment in jail for not more than six months for any offense of subsection (b)(1), (2) or (3) of this section.

(3) The custodian of a minor who is penalized under this section shall accompany the minor to at least one-half of community service ordered by the court.

(4) Every person who, having been convicted previously under subsection (b)(1), (2) or (3) of this section or any combination of these offenses, on two separate occasions, and having been incarcerated pursuant to a sentence, a conditional sentence or a grant of probation for at least one of the convictions, is subsequently convicted under this section shall be punished by imprisonment not to exceed five months.

(5) Any operator who violates subsection (b)(4) of this section shall be fined not less than $50.00 for a first offense and not less than $100.00 for subsequent offenses.

(6) Punishment for violation of subsection (c) may be adjudicated pursuant to the administrative hearing process of chapter 6 of the City Code and shall not exceed the penalties prescribed in subsections (1) or (2) of this subsection.

(e) *All districts in the city.* Criminal damage to property located in all districts in the city, including the removal of construction materials without consent of the property owner, is hereby prohibited.

(1) Whoever commits the crime of criminal damage to property located in all districts in the city, where the damage is less than $500.00, shall be fined not more than $100.00 or imprisoned for not more than six months or both.

(2) Whoever commits the crime of criminal damage to property located in all districts in the city, where the damage is more than $500.00 but less than $50,000.00, shall be fined not more than $250.00 or imprisoned six months or both.

(3) Whoever commits the crime of criminal damage to property located in all districts in the city, where the damage amounts to $50,000.00 or more, shall be fined not more than $500.00, or imprisoned for not more than six months, or both.

(Code 1956, § 42-30; M.C.S., Ord. No. 16,924, § 1, 3-2-95; M.C.S., Ord. No. 18,423, § 1, 9-18-97; M.C.S., Ord. No. 19,086, § 1, 2-4-99; M.C.S., Ord. No. 29758, § 2, 12-1-23; M.C.S., Ord. No. 30381, § 1, 6-26-25)

State law reference—Similar provisions, R.S. 14:56.

Sec. 54-152. Tampering.

(a) It shall be unlawful for any person to commit the crime of tampering.

(b) For purposes of this section, tampering is the interference with the property of another, without the consent of the owner, with the intent to deprive anyone entitled thereto of the full use or free enjoyment of the property.
(Code 1956, § 42-31)

State law reference—Similar provisions, R.S. 14:59(1).

Sec. 54-153. Criminal trespass.

(a) No person shall without authorization intentionally enter any structure, watercraft, or movable.

(b) No person shall intentionally enter immovable property owned by another:

(1) When he knows his entry is unauthorized, or

(2) Under circumstances where he reasonably should know his entry is unauthorized.

(c) It shall be an affirmative defense to a prosecution pursuant to subsection (b)(2) of this section:

(1) That the person was unarmed and entered immovable property for the sole purpose of retrieving a dog or livestock.

(2) To show that property was not adequately posted in accordance with subsections (d) or (e), and (f) of this section.

(d) In order for forest land to be adequately posted the owner, lessee, or person having the written permission of the owner or lessee shall post the property by any one of the following methods:

(1) Placing identifying paint marks on trees or posts around the area to be posted. Each paint mark shall be a vertical line of at least eight inches in length, and the bottom of the mark shall be no less than three feet nor more than five feet high. Such paint marks shall be placed no more than 100 feet apart and shall be readily visible to any person approaching the property.

(2) Placing signs around the area to be posted at no more than 100 feet apart and at normal points of ingress and egress. The signs shall bear the words "Posted," "No Trespassing," or "No" in letters at least 3½ inches high and shall be so placed as to be readily visible to any person approaching the property.

(3) Constructing a fence around the area to be posted of not less than three-strand wire, or its equivalent, and placing signs that bear the words "Posted," "No Trespassing," or "No" in letters at least 3½ inches high at normal points of ingress and egress.

(e) In order for any immovable property other than forest land to be adequately posted, including cultivated land, orchards, pasture lands, impoundments, or other immovable property, the owner, lessee, or person having the written permission of the owner or lessee shall post the property by any one of the following methods:

(1) Placing identifying paint marks or posts around the area to be posted. Each paint mark shall be a vertical line of at least eight inches in length, and the bottom of the mark shall be no less than three feet nor more than five feet high. Such paint marks shall be placed no more than 1,000 feet apart and at normal points of ingress and egress and shall be readily visible to any person approaching the property.

(2) Placing signs around the area to be posted at points no more than 1,000 feet apart and at each normal point of ingress and egress. The signs shall bear the words "Posted," "No Trespassing," or "No" in letters at least 3½ inches high and shall be so placed as to be readily visible to any person approaching the property.

(3) Constructing a fence around the area to be posted of not less than three-strand wire, or its equivalent, and placing signs that bear the words "Posted," "No Trespassing," or "No" in letters at least 3½ inches high at normal points of ingress and egress.

(f) The type of color of the paint to be used for posting shall be prescribed by regulation by the state forestry commission, which shall not select a color that is presently being used by the timber industry in this state to mark land lines or property lines. The color of paint prescribed shall not be used on trees or posts for any other purpose.

(g) Affirmative defenses to a prosecution pursuant to subsection (b) of this section shall be:

(1) That the entry was by a registered land surveyor, and his personnel, engaged in the practice of land surveying, as defined in R.S. 37:682, or a person employed by a public utility acting in the course and scope of his employment relating to the operation, repair, or maintenance of a public utility facility, or

(2) That the entry was by an employee or agent of the state department of agriculture and forestry and was for the purpose of locating and suppressing wildfire in accordance with the rules and regulations of the department.

(h) Whoever commits the crime of criminal trespass shall be fined not more than $500.00.

(i) Violations for convictions subsequent to a first conviction for the violation of this section shall be as follows:

(1) Upon a second conviction, regardless of whether the second offense occurred before or after the first conviction, the offender shall be imprisoned for not more than six months, or shall be fined not more than $500.00, or both.

(2) Upon a third or subsequent conviction, whether trespass has been committed in each previous offense upon land belonging to the same landowner or landowners, regardless of the time sequence of the occurrence of the offenses, the offender shall be imprisoned for not more than one year, or shall be fined not more than $1,000.00, or both.

(j) The owner or lessee shall be immune from liability as a result of trespassing by any person upon forest land, cultivated land, orchards, pasturelands, swamplands, marshlands, and impoundments.

(k) No person shall knowingly paint such color prescribed by the state forestry commission for posting immovable property on any tree or post for any purpose other than posting immovable property pursuant to subsection (d)(1) or (e)(1) of this section. Any person who violates the provisions of this subsection shall be fined not more than $500.00.

(Code 1956, § 42-32)

State law reference—Similar provisions, R.S. 14:63.

Sec. 54-154. General obstruction of catch basins with trash or refuse.

(a) It shall be unlawful for any person to obstruct the city's catch basins, drainage canals, or other elements of its public drainage system with trash or refuse.

(b) Obstruction of catch basins, drainage canals, or other elements of its public drainage system is the intentional dumping, depositing or throwing into any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage, any trash, garbage, refuse, debris or other object of solid waste, that obstructs or significantly interferes with the free flow of drainage through the city's drainage systems.

(c) Whoever violates this section shall be fined up to $5,000.00 for each violation. If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(Code 1956, § 42-34; M.C.S., Ord. No. 27872, § 1, 9-20-18)

Cross reference—Obstruction of draining systems with trash or refuse, § 66-281.

Sec. 54-154.1. Obstruction of catch basins or other elements of the drainage system at construction or demolition sites.

(a) It shall be unlawful for any person performing work at a construction or demolition site to obstruct, dump, deposit or throw any article, material, or hazardous liquid into the city's drainage system, including any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage.

(b) Whoever violates this section shall be fined $5,000.00 for each violation. If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(c) For purposes of this section, a construction or demolition site means a parcel of land whereby there is construction, destruction, substantial rehabilitation, alteration or repair, to any physical structure located thereon, including houses, commercial buildings, industrial facilities, including the adjacent rights-of-way.

(Ord. No. 21,323, § 1, 11-6-03; M.C.S., Ord. No. 27872, § 1, 9-20-18)

Cross reference—Obstruction of catch basins or other elements of the drainage system at construction or demolition sites, § 66-281.1.

Sec. 54-155. Specific discharging of hazardous liquids into catch basins.

(a) It shall be unlawful for any person to discharge into the city's catch basins, drainage canals, or other elements of its public drainage system any hazardous liquids.

(b) Discharging of hazardous liquids in the catch basins, drainage canals, or other elements of the public drainage system is the intentional depositing or pouring into any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage, any hazardous liquid including but not limited to: cooking oil and fats, motor oil, antifreeze, solvents, truck and automotive fluids, paint, paint thinners, and gasoline.

(c) Whoever violates this section shall be fined up to $5,000.00 for each violation. If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(Code 1956, § 42-35; M.C.S., Ord. No. 27872, § 1, 9-20-18)

Cross reference—Discharging in draining systems hazardous liquids, § 66-281.2.

Sec. 54-156. Simple arson.

(a) It shall be unlawful for any person to commit the crime of simple arson as hereinafter defined.

(b) "Simple arson" is the intentional setting fire to or burning or causing to be burned either:

(1) The property of another without the consent of the owner; or

(2) Any property, regardless of ownership or consent, where it is reasonably foreseeable that damage to the property of any other person could occur.

(M.C.S., Ord. No. 18,452, § 4, 10-1-97)

Sec. 54-157. Contaminating water supplies.

(a) It shall be unlawful for any person to commit the crime of contaminating water supplies as hereinafter defined.

(b) "Contaminating water supplies" is the intentional performance of any act to introduce a deleterious substance into any private or public water supply.

(M.C.S., Ord. No. 18,452, § 4, 10-1-97)

Secs. 54-158—54-185. Reserved.

DIVISION 3. MISAPPROPRIATION WITHOUT VIOLENCE

Sec. 54-186. Theft.

(a) It shall be unlawful for any person to commit the crime of theft.

(b) Theft is the misappropriation or taking of anything of value which belongs to another, either without the consent of the other to the misappropriation or taking, or by means of fraudulent conduct, practices or representations. An intent to deprive the other permanently of whatever may be the subject of the misappropriation or taking is essential.

(c) When the misappropriation or taking amounts to less than a value of $100.00, the offender shall be imprisoned for not more than six months, or may be fined not more than $500.00, or both.

(Code 1956, §§ 42-36, 42-37)

State law reference—Similar provisions, R.S. 14:67.

Sec. 54-187. Unauthorized use of movables.

(a) It shall be unlawful for any person to commit the crime of unauthorized use of movables.

(b) Unauthorized use of movables is the intentional taking or using of any movable which belongs to another, either without the other's consent, or by means of fraudulent conduct, practices or representations, but without any intention to deprive the other of the movable permanently. The fact that the movable so taken or used may be classified as an immovable, according to the law pertaining to civil matters, is immaterial.

(c) Whoever commits the crime of unauthorized use of a movable having a value of $1,000.00 or less shall be fined not more than $500.00, or imprisoned for not more than six months, or both.
(Code 1956, § 42-38)

State law reference—Similar provisions, R.S. 14:68.

Sec. 54-188. Illegal possession of stolen things.

(a) Illegal possession of stolen things is the intentional possessing, procuring, receiving, or concealing of anything of value which has been the subject of any robbery or theft, under circumstances which indicate that the offender knew or had good reason to believe that the thing was the subject of one of these offenses.

(b) When the value of the stolen things is less than $100.00, the offender shall be imprisoned for not more than six months, or may be fined not more than $500.00, or both.

(c) When the offender has committed the crime of illegal possession of stolen things by a number of distinct acts, the aggregate of the amount of the things so received shall determine the grade of the offense.

(d) It shall be an affirmative defense to a violation of this section committed by means of possessing, that the accused, within 72 hours of his acquiring knowledge or good reason to believe that a thing was the subject of robbery or theft, reports that fact or belief in writing to the district attorney in the parish of his domicile.
(Code 1956, § 42-39)

State law reference—Similar provisions, R.S. 14:69.

Sec. 54-189. Issuing worthless checks.

(a) It shall be unlawful for any person to commit the crime of issuing worthless checks.

(b) Issuing worthless checks is the issuing in exchange for anything of value, with intent to defraud, of any check, draft or order for the payment of money upon any bank or other depository, knowing at the time of the issuing that the offender has not sufficient credit with the bank or other depository for the payment of such check, draft or order in full upon its presentation.

(1) This section shall apply to a check, draft, or order tendered for satisfaction, in whole or in part, of payments due on installment contracts, open accounts, or any other obligation for which the creditor has authorized periodic payments or the extension of time in which to pay.

(2) This provision shall apply to a check, draft, or order for the payment of money given for a motor vehicle when such payment is conditioned upon delivery of documents necessary for transfer of a valid title to the purchaser.

(3) For purposes of this section, an open account shall include accounts where checks are tendered as payment.

   a. In advance of receipt, in whole or in part, for telecommunication facilities or services.
   b. For deposits, prepayments, or payments for the lease or rent of a rental motor vehicle, pursuant to a lease or rental agreement.

(c) The offender's failure to pay such check, draft or order within ten days after receipt by him of written notice of its nonpayment, upon presentation or upon return of written notice sent by United States mail, as certified mail, properly addressed to the offender, with sufficient postage affixed thereto, to the address furnished by the offender at the time of the issuing of such check, shall be presumptive evidence of his intent to defraud.

(d) Issuing worthless checks is also the issuing, in exchange for anything of value, whether the exchange is contemporaneous or not, with intent to defraud, of any check, draft, or order for the payment of money, when the offender knows at the time of the issuing that the account desig-

nated on the check, draft, or order has been closed, or is nonexistent or fictitious, or is one in which the offender has no interest or on which he has no authority to issue such check, draft, or order.

(e) When the amount of the check or checks is less than $100.00, the offender shall be imprisoned for not more than six months, or may be fined not more than $500.00, or both.

(f) When the offender has issued more than one worthless check within a 180-day period, the amount of several or all worthless checks issued during that 180-day period may be aggregated to determine the grade of the offense.

(g) In addition to any other fine or penalty imposed under this section, the court shall order as part of the sentence, restitution in the amount of the check or checks, plus a $15.00 per check service charge payable to the person or entity that initially honored the worthless check or checks or an authorized collection agency or justice of the peace.

(Code 1956, § 42-40)

State law reference—Similar provisions, R.S. 14:71.

Sec. 54-190. Driving on restricted access roads, levees, battures, park areas, playgrounds, embankments of canal, servitudes and public rights-of-way.

It shall be unlawful for any person to drive a vehicle onto or from any limited access roadway except at such entrances and exits as are established by public authority. It shall be unlawful for any person to operate any motor driven vehicle of any description upon the levees, battures, park areas, playgrounds, embankments of canals, public servitudes and rights-of-way within the city, except where a roadway for vehicular travel has been provided; further that the provisions hereof shall not apply to authorized employees of the New Orleans Levee Board, the police department, the fire department, the sewerage and water board, or any other public agency or private contractors engaged in legitimate business activities that require vehicles to use such levees, battures, park areas, playgrounds, embankments of canal, servitudes and public rights-of-way.

(Code 1956, § 42-42)

Sec. 54-191. Unauthorized parking of motor vehicles on private property.

(a) The unauthorized parking of motor vehicles on private property shall be a misdemeanor and the first violation thereof shall be subject to a fine of $35.00 and/or imprisonment for a term of ten days; the second violation thereof shall be subject to a fine of $50.00 and/or imprisonment for a term of 20 days; the third and every subsequent violation thereof shall be subject to a fine of $100.00 and/or imprisonment for a term of 30 days.

(b) Whenever any motor vehicle without a driver is reported in violation of subsection (a) of this section, the officer, upon finding such vehicle shall, at his discretion, either remove the vehicle from the private property to the department pound or take its state vehicle license number and any other information displayed on the vehicle which may identify its owner, and shall conspicuously affix to the vehicle, in writing, a summons on a form provided by the city and this summons shall inform the owner or his agent to appear at the municipal court on the date stated therein, or he may issue a summons and conspicuously affix it to such vehicle and also immobilize such vehicle by installing or attaching a device thereto and conspicuously affixing to such vehicle a notice, in writing, on a form to be prescribed by the superintendent of police, advising the owner or driver thereof that such vehicle has been immobilized for violation of subsection (a) and indicating the procedure to obtain the release of such immobilizer. Failure of the owner or his agent to appear in court on the date stated in the summons shall cause the court to issue an attachment for the arrest of the owner of the vehicle that was in violation of this section.

(c) In any prosecution charging a violation of subsection (a) of this section governing the unauthorized parking of motor vehicles on private property, proof that the particular vehicle described in the complaint was parked in violation of subsection (a) of this section, together with proof that the defendant named in the complaint was at the time of such parking the registered owner of such vehicle, shall create a prima facie presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the

point where and for the time during which it was parked without authorization on private property. (Code 1956, § 42-43)

Sec. 54-192. Removal of unauthorized motor vehicles on private property.

(a) *Definitions.* For purposes of this section, the following definitions shall be applicable:

Private property means any real property not owned by the federal government, state, city or other political subdivisions.

Unauthorized motor vehicle means any motor vehicle which is not in compliance with state or city laws and regulations, inclusive of, but not limited to, junked or abandoned vehicles.

(b) *Prohibited storage.*

(1) It shall be unlawful for any person owning or having custody of any unauthorized motor vehicle to store or permit any such vehicle to remain on any private property within the city for a period of more than 30 days after the receipt of a notice requiring such removal.

(2) It shall be further unlawful for any person owning any private property in the city to store or to permit to remain any such vehicle on his property for a period of more than 30 days after the receipt of a notice requiring such removal.

(3) It shall be unlawful for any person, after notification to remove any junked motor vehicle from any private property, to move the same to any other private property upon which such storage is not permitted, or onto any public highway or other public property for purposes of storage.

(4) Such storage is declared to be a public nuisance and may be removed and further penalties shall be imposed as provided in this chapter.

(c) *Permitted storage.* This section shall not apply to any motor vehicle stored within an enclosed building, or on the premises of a business enterprise operated in a lawful place and manner when necessary to the operation of such business enterprise, in a storage place or depository maintained in a lawful place and manner or seasonal use vehicles such as snowmobiles, motorcycles, motor scooters and nonmotorized campers. Such business enterprises shall include auto junk yards, auto repair and auto body shops.

(d) *Notice of removal.* The department of health and department of public works shall be the enforcing authorities of this section. Whenever the department of health or department of public works is notified, in writing, that any unauthorized motor vehicle has been stored or permitted to remain on any private property within the city, they shall conspicuously affix to the vehicle, in writing, a notice which shall inform the owner or agent that such vehicle is in violation of this section and further advising that they have 30 days in which to remove the unauthorized vehicle from the premises or same shall be removed to an authorized auto pound and the imposition of further penalties. Prior to removal of the vehicle, the enforcing authorities shall send by certified mail a notice to the owner of record of such motor vehicle, if such owner can be ascertained by the exercise of reasonable diligence, and also to the owner of the private property, as shown on the tax assessment records of the city on which the same is located, to remove the unauthorized motor vehicle within 30 days.

(e) *Penalties.* Failure to remove the unauthorized vehicle within 30 days of notice shall result in the vehicle being towed to an authorized auto pound. Further a summons shall be issued to the owner of the property, to appear at municipal court on the date stated therein, and if found guilty of violating the provisions of this section, the owner of the private property shall be guilty of a misdemeanor and upon conviction shall be subject to a fine or to imprisonment or both such fine and/or imprisonment as set by section 1-13 of this Code, or shall alternatively be subject to whatever civil liabilities, penalties or remedies the law may prescribe.
(M.C.S., Ord. No. 17,639, § 1, 7-3-96)

Sec. 54-193. Identification of compact disc required.

(a) For purposes of this section, the following terms shall have the following meanings:

(1) *Optical disc* shall mean a disc capable of being read by a laser or other light source on which data is stored in digital form. An optical disc shall include, but not be limited to, discs known as compact discs (CDs), recordable compact discs (CD-Rs and CD-RWs), and digital video discs (DVDs), or related mastering source materials heretofore or hereafter developed.

(2) *Manufacturer* shall mean a person who replicates the physical optical disc or produces the master used in any optical disc replication process. A manufacturer shall not include a person who manufactures optical discs for internal use, testing, or review, or a person who manufactures blank optical discs.

(3) *Commercial purposes* shall mean the production of at least ten of the same or different optical discs in a 180-day period, by storing information on the disc, and for the purpose of resale, whether by that person or by another.

(4) *Identification mark* shall mean the actual name of the manufacturer and the state in which the optical disc was manufactured, or alternatively a unique identifier that will allow law enforcement to determine the place at which an optical disc was manufactured.

(5) *Person* shall include an individual, partnership, limited liability company, corporation, association, or any officer, employee or agent thereof.

(b) Every person who manufactures an optical disc for commercial purposes shall permanently mark each manufactured optical disc with an identification mark. The identification mark shall be affixed by molding, die stamping, etching, or other permanent method in a manner which is clearly visible without the aid of magnification or special devices.

(c) No person shall knowingly remove, deface, cover, alter, or destroy the identification mark required by this section.

(d) (1) No person shall, for the purpose of sale or rental, buy, sell, receive, transfer, or possess an optical disc knowing the identification mark of the manufacturer has been removed, defaced, covered, altered or destroyed.

(2) No person shall, for the purpose of sale or rental, buy, sell, receive, transfer or possess an optical disc knowing it was manufactured in the parish without the identification mark required by this section, or knowing that it was manufactured in the parish with a false identification mark.

(e) Any violation of this section shall be punishable by a fine of not less than $500.00. Each incidence of the purchase, receipt, transfer or possession for the purpose of sale or rental, of each CD, as described in paragraph 4 [subsection (d)], shall constitute a separate violation.
(M.C.S., Ord. No. 21,322, § 1, 11-6-03)

Sec. 54-194. Trademark counterfeiting.

A person is guilty of trademark counterfeiting when, with the intent to deceive or defraud some other person or with the intent to evade a lawful restriction on the sale, resale, offering for sale, or distribution of goods, he or she manufactures, distributes, sells, or offers for sale goods which bear a counterfeit trademark, or possesses a trademark knowing it to be counterfeit for the purpose of affixing it to any goods.
(M.C.S., Ord. No. 21,322, § 2, 11-6-03)

Sec. 54-195. Articles containing unauthorized recordation of sounds of live performances; transportation; definitions; presumption of ownership; proper witnesses; violations; punishment.

(a) Any person who transports or causes to be transported for monetary or other consideration within the parish, any article containing sounds of a live performance with the knowledge that the sounds thereon have been recorded or mastered without the consent of the owner of the sounds of

the live performance is guilty of a public offense punishable as provided in paragraph (g) of this section.

(b) As used in this section:

(1) *Live performance* means the recitation, rendering, or playing of a series of musical, spoken, or other sounds in any audible sequence thereof.

(2) *Article* means the original disc, wire, tape, film, phonograph record, or other recording device used to record or master the sounds of the live performance and any copy or reproduction thereof which duplicates, in whole or in part, the original.

(3) *Person* means any individual, partnership, partnership member or employee, corporation, association, or corporation or association employee, officer, or director, limited liability company, or limited liability company manager or officer.

(c) In the absence of a written agreement or operation of law to the contrary, the performer or performers of the sounds of a live performance shall be presumed to own the right to record or master those sounds.

(d) For purposes of this section, a person who is authorized to maintain custody and control over business records reflecting the consent of the owner to the recordation or master recording of a live performance shall be a proper witness in any proceeding regarding the issue of consent.

Any witness called pursuant to this section shall be subject to all rules of evidence relating to the competency of a witness to testify and the relevance and admissibility of the testimony offered.

(e) This section shall neither enlarge nor diminish the rights and remedies of parties to a recording or master recording which they might otherwise possess by law.

(f) This section shall not apply to persons engaged in radio or television broadcasting or cablecasting who record or fix the sounds of a live performance for, or in connection with, broadcast or cable transmission and related uses in educational television or radio programs, for archival purposes, or for news programs or purposes if the recordation or master recording is not commercially distributed independent of the broadcast or cablecast by or through the broadcasting or cablecasting entity to subscribers or the general public.

(g) Any person who has been convicted of a violation of paragraph (a), shall be punished by imprisonment not to exceed six months, or by a fine not to exceed $500.00, or by both, if the offense involves the transportation or causing to be transported of not less than 1,000 articles described in subdivision (a).
(M.C.S., Ord. No. 21,322, § 3, 11-6-03)

Sec. 54-196. Violation of sections 193, 194, or 195; forfeiture and destruction of articles used in connection with violation.

Whenever any person is convicted of any violation of section 54-193, 54-194, or 54-195 the court, in its judgment of conviction, shall, in addition to the penalty therein prescribed, order the forfeiture and destruction or other disposition of all articles, including, but not limited to, phonograph records, discs, wires, tapes, films, or any other article upon which sounds or images can be recorded or stored, and any and all electronic, mechanical, or other devices for manufacturing, reproducing or assembling these articles, which were used in connection with, or which were part of, any violation of section 54-193, 54-194, or 54-195.
(M.C.S., Ord. No. 21,322, § 4, 11-6-03)

Sec. 54-197. Cheating and swindling.

(a) It shall be unlawful for any person who by any trick or sleight-of-hand performance, or by fraud or fraudulent scheme, cards, dice, or device, for himself or another, wins or attempts to win money or property or a combination thereof, or reduces a losing wager or attempts to reduce a losing wager, increases a winning wager or attempts to increase a winning wager in connection with gaming operations.

(b) Whoever violates the provisions of this section when the value of such money or property or combination thereof or reduced or increased

wager amounts to less than a value of $300.00, shall be imprisoned for not more than six months or may be fined not more than $500.00, or both.

(c) For purposes of this section, "gaming operations" means the conducting or assisting in the conducting of gaming activities or operations upon a riverboat, at the official gaming establishment, by operating an electronic video draw poker device, by a charitable gaming licensee, or at a pari-mutuel wagering facility or the operation of a state lottery which is licensed for operation and regulated under the provisions of Title 4, Chapter 4; Title 27, chapters 4, 5, 6, and 7; or Title 4, Chapter 11; or Title 47, Subtitle XI, Louisiana Revised Statutes of 1950, or any other gaming operation authorized by law.
(M.C.S., Ord. No. 21550, § 2, 5-20-04)

Secs. 54-198—54-230. Reserved.

ARTICLE V. OFFENSES AFFECTING MORALITY*

DIVISION 1. GENERALLY

Secs. 54-231—54-250. Reserved.

DIVISION 2. SEXUAL IMMORALITY

Sec. 54-251. Prostitution.

(a) It shall be unlawful for any person to commit the crime of prostitution.

(b) Prostitution is:

(1) The practice by a person of indiscriminate sexual intercourse with others, as defined by the Louisiana Revised Statutes, for compensation.

(2) The solicitation by one person of another with the intent to engage in indiscriminate sexual intercourse with the latter for compensation.

(c) Upon conviction for violation of subsection (a), the offender shall be fined not more than $500.00, imprisoned for not more than six months, or both.

(d) Any offense under this section committed more than five years prior to the commission of the offense with which the defendant is charged shall not be considered in the assessment of penalties under this section.

(e) All persons who are convicted of the offense of prostitution shall be referred to the parish health unit for counseling concerning acquired immune deficiency syndrome. The counseling shall be provided by existing staff of the parish health unit whose duties include such counseling.
(Code 1956, § 42-44; M.C.S., Ord. No. 24249, § 1, 12-16-10)

State law reference—Similar provisions, R.S. 14:82.

Sec. 54-251.1. Immunity from prosecution.

(a) No person who is a victim or a witness to a crime, or who becomes aware that another person is a victim of a crime, shall be arrested, charged, or prosecuted for an offense under section 54-251, 54-252, or 54-253 of this chapter or a for violation arising under chapter 30, article VII of this Code, as a result of that person, while acting in good faith and in reasonable proximity to the occurrence of the crime or under circumstances reasonably related to the crime, reporting the crime, seeking healthcare services as a result of the crime, or attempting to assist in the investigation or prosecution of the crime. For purposes of this section, the term "crime" is intended to be interpreted broadly and encompass any act that reasonably appears to be a crime, regardless of whether it results in a criminal charge, arrest, or conviction.

(b) No person granted immunity pursuant to subsection (a) shall be subject to forfeiture of property for any violation for which immunity is provided by this chapter, except for prima facie contraband.

(c) No person granted immunity pursuant to subsection (a) shall be subject to sanctions for a violation of a condition of pretrial release, condition of probation, or condition of parole as a

*__Cross reference—__Showing obscene pictures in places of amusement and entertainment prohibited, § 14-15.

result of the person's reporting of the crime, seeking healthcare services as a result of the crime, or attempting to assist in the investigation or prosecution of the crime.

(d) No person granted immunity pursuant to subsection (a) shall be arrested on an outstanding warrant for any of the offenses for which immunity is provided in this section if that person's immediate whereabouts were obtained as a result of the person reporting a crime, seeking healthcare services as a result of a crime, or attempting to assist in the investigation or prosecution of a crime.

(e) This subsection does not apply to outstanding federal warrants or outstanding warrants issued from other states, or for warrants unrelated to a crime for which immunity is provided in this section.

(f) Any immunity arising under this section shall not apply when the person claiming immunity is reasonably believed to have committed the crime of human trafficking or a crime involving the abuse or exploitation of children and the person's arrest arises from circumstances related to those crimes.
(M.C.S., Ord. No. 30348, § 1, 5-8-25)

Sec. 54-252. Soliciting for prostitution.

(a) It is unlawful for any person to commit the crime of soliciting for prostitution.

(b) Soliciting for prostitution is the soliciting, inducing, directing or transporting of a person to any place, with the intention of promoting prostitution.
(Code 1956, § 42-45)

State law reference—Similar provisions, R.S. 14:83.

Sec. 54-253. Prostitution loitering.

(a) It is unlawful for any person to commit the crime of prostitution loitering.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Known prostitute or panderer means a person, who within one year previous to the date of arrest for violation of this section, has within the present knowledge of the arresting officer been convicted of soliciting for prostitution, prostitution, or a crime against nature.

Present knowledge of the arresting officer means information known to the arresting officer at the time the arrest is made for violation of this section.

(c) A person is guilty of prostitution loitering by remaining in a public place, when he or she has been convicted within the previous one year within the present knowledge of the arresting officer of soliciting for prostitution, prostitution, or a crime against nature, and engages in any of the following conduct:

(1) Repeatedly beckons to, stops, or attempts to stop or engage passersby in conversation;

(2) Repeatedly stops or attempts to stop motor vehicle operators by hailing, waving arms or other body gestures; or

(3) Is overheard by arresting officers engaging in a conversation soliciting or procuring another to commit prostitution.

(d) This section shall not apply to persons having a bona fide reason for making such contacts, such as persons having a legitimate interest in commerce or a lawful purpose in communicating with others, including known prostitutes or panderers when engaged in behavior unrelated to prostitution, soliciting for prostitution or prostitution loitering.
(Code 1956, § 42-46)

Sec. 54-254. Lewd conduct.

(a) It shall be unlawful for any person to commit the crime of lewd conduct.

(1) A person is guilty of lewd conduct if he intentionally performs any lewd act in a public place when such act is likely to be observed by a person.

(2) As used in this section, a lewd act is:

a. An exposure of one's genitals; or

b. Sexual intercourse; or

c. Masturbation; or

d. Urination or defecation.

(b) Any person who is in violation of this section shall be punished by a fine of not less than $100.00 and no less than 30 hours of trash cleanup duties as a community service.
(Code 1956, § 42-47; M.C.S., Ord. No. 16,865, § 2, 1-5-95)

Sec. 54-255. Sale and distribution of obscene material.

(a) It shall be unlawful for any person to knowingly send or cause to be sent, bring or cause to be brought into the parish for sale or distribution, or in this parish prepare, publish, print, exhibit, distribute or offer to distribute, or have in his possession with intent to distribute or to exhibit or offer to distribute, any obscene material.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Distribute means to transfer possession of, whether with or without consideration.

Knowingly means having general knowledge of or reason to know or a belief or reasonable grounds for belief which warrants further inspection or inquiry or both of the character and content of any material described in this section which is reasonably susceptible of examination by the defendant.

Material means any book, magazine, newspaper, or other printed or written material, or any picture, drawing, photograph, motion picture or other pictorial representation.

Obscene means that:

(1) The average person, applying contemporary community standards, would find that the work, taken as a whole, appeals to the prurient interest;

(2) The work depicts or describes actual or simulated acts of human sexual intercourse, sodomy, bestiality, oral copulation, masturbation, excretory functions or lewd exhibition of the genitals; and

(3) The work, taken as a whole, lacks serious literary, artistic, political or scientific value.

(Code 1956, § 42-48)

Sec. 54-256. Public displays of explicit sexual material.

(a) It is the purpose of this section to prohibit the public display of explicit sexual material, in order to protect persons from involuntary exposure to such materials.

(b) A person is guilty of a misdemeanor if he knowingly fails to take prompt action to remove the public display of explicit sexual material from property in his possession.

(c) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Explicit sexual material means any picture, drawing, photograph, motion picture, or other pictorial representation, which depicts actual or simulated acts of human sexual intercourse, sodomy, bestiality, oral copulation, masturbation, excretory functions, torture in the context of a sexual relationship, or exhibition of the genitals.

Knowingly means having general knowledge of or having reason to know or a belief or reasonable grounds for belief which warrants further inspection or inquiry or both of the character and content of any material described in this section which is reasonably susceptible of examination by the defendant.

Public display is material that is visible on a billboard, viewing screen, theater marquee, newsstand, display rack, window, showcase, display case or other similar display area that is visible from a public street, sidewalk, park or other public place, or from the property of others.
(Code 1956, § 42-49)

Sec. 54-256.1. Prohibited public display of signs containing vulgar, explicit or offensive language.

Signs containing language with vulgar content, explicit sexual descriptions, offensive written

descriptions directed to a gender, class, racial or religious category or any combination of words including phonetic spellings or a foreign language equivalent which can be interpreted or defined as sexually suggestive, containing lewd connotations, or used to promote, solicit, depict, define, recruit, advertise or initiate immoral conduct, unlawful behavior or provide visual access to carnal language shall be prohibited by law including, but not limited to, electronic signs, permanent signs, temporary signs, fixed stationary or movable and transportable signs of any size. Penalties for violation of this section shall include a $1,000.00 fine for each first offense and a $5,000.00 fine for each additional violation.
(M.C.S., Ord. No. 22057, § 1, 10-12-05)

Sec. 54-257. Proximity of adult bookstores to churches, schools, etc.

(a) It shall be unlawful for any adult bookstore to operate within 2,000 feet of any church, school or playground.

(b) Adult bookstore means any premises from which minors are excluded and in which the retail sale of books, magazines, newspapers, movie films, devices, slides, or other photographic or written reproductions is conducted as a principal use of the premises; or as an adjunct to some other business activity, but which constitutes the primary, or is a major attraction to the premises.

(c) The 2,000-foot distance provided for in subsection (a) of this section shall be measured as a person walks, using the sidewalk, from the nearest point of the property line of the church, school, or playground, to the nearest point of the premises containing an adult bookstore.

(d) Those premises in operation prior to the effective date of the ordinance from which this section was derived which meet the definition of adult bookstores, and which fail to comply with the 2,000-foot distance requirement as stipulated in subsection (c) of this section are hereby in violation of this section and shall have a maximum of 30 days from the date the ordinance from which this section became effective to comply with the requirements of this section.
(Code 1956, § 42-49.1)

Sec. 54-258. Promotion of obscene devices.

(a) It shall be unlawful for any person to promote with the intent to promote or wholesale promote with the intent to wholesale promote any obscene device.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Obscene device means a device, including an artificial penis or artificial vagina, designed or marketed as useful primarily for the stimulation of human genital organs.

Promote means to manufacture, issue, sell, provide, lease, mail, deliver, transfer, transmit, distribute, circulate, disseminate, present, exhibit, or advertise, or to offer or agree to do the same.

Wholesale promote means to manufacture, issue, sell, provide, lease, mail, deliver, transfer, transmit, distribute, circulate, disseminate, present, exhibit, or advertise, or to offer or agree to do the same for the purpose of resale.

(c) This section does not apply to the possession or exhibition by a police officer, sheriff, deputy sheriff or other peace officer, or any person under their supervision or control, or any judge, jury or employee or agent of a court, or any attorney, or any member of a legislative body, municipal, state or federal, when such possession or exhibition thereof is connected with the prosecution or investigation of a violation or possible violation of this section or any other law.

(d) Any person convicted of a violation of this section shall be punished by a fine of not more than $300.00 or imprisonment for not more than five months or both such fine and imprisonment.
(Code 1956, § 42-49.2)

State law reference—Similar provisions, R.S. 14:106.1.

Sec. 54-259. Sale, exhibition, or distribution of material harmful to minors.

(a) The unlawful sale, exhibition, rental, leasing, or distribution of material harmful to minors is the intentional sale, allocation, distribution,

advertisement, dissemination, exhibition, or display of material harmful to minors, to any unmarried person under the age of 17 years, or the possession of material harmful to minors with the intent to sell, allocate, advertise, disseminate, exhibit, or display such material to any unmarried person under the age of 17 years, at a newsstand or any other commercial establishment which is open to persons under the age of 17 years.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Descriptions or depictions of illicit sex or sexual immorality includes the depiction, display, description, exhibition or representation of:

(1) Ultimate sexual acts, normal or perverted, actual, simulated, or animated, whether between human beings, animals, or an animal and a human being;

(2) Masturbation, excretory functions, or exhibition, actual, simulated, or animated, of the genitals, pubic hair, anus, vulva, or female breast nipples;

(3) Sadomasochistic abuse, meaning actual, simulated, or animated, flagellation or torture by or upon a person who is nude or clad in undergarments or in a costume which reveals the pubic hair, anus, vulva, genitals, or female breast nipples, or the condition of being fettered, bound, or otherwise physically restrained, on the part of one so clothed;

(4) Actual, simulated, or animated, touching, caressing, or fondling of, or other similar physical contact with, a pubic area, anus, female breast nipple, covered or exposed, whether alone or between humans, animals or a human and an animal, of the same or opposite sex, in an act of apparent sexual stimulation or gratification; or

(5) Actual, simulated, or animated, stimulation of the human genital organs by any device whether or not the device is designed, manufactured, and marketed for such purpose.

Material harmful to minors means any paper, magazine, book, newspaper, periodical, pamphlet, composition, publication, photograph, drawing, picture, poster, motion picture film, video tape, figure, phonograph record, album, cassette, compact disc, wire or tape recording, or other similar tangible work or thing which exploits, is devoted to or principally consists of, descriptions or depictions of illicit sex or sexual immorality for commercial gain, and when the trier of fact determines that the average person applying contemporary community standards would find that the work or thing is presented in a manner to provoke or arouse lust, passion, or perversion or exploits sex.

(c) It shall be unlawful to invite or permit any unmarried person under the age of 17 years of age to be in any commercial establishment that exhibits or displays any item, material, work or thing of any kind that is described in subsection (b) of this section.

(1) Lack of knowledge of age or marital status shall not constitute a defense, unless the defendant shows that he had reasonable cause to believe that the minor involved was either married or 17 years of age or more and that the minor exhibited to the defendant a draft card, driver's license, birth certificate or other official or apparently official document purporting to establish that such a minor was either married or 17 years of age or more.

(2) For the purpose of this section, exhibition or display means the exhibition or display of material harmful to minors as defined in subsection (b) of this section so that, as displayed, depictions and representations of illicit sex or sexual immorality are visible to minors, or that an unmarried person under the age of 17 years is permitted to see or examine the contents of the material harmful to minors.

(3) A commercial establishment shall not be in violation of this section if the commercial establishment provides for a separate area for the exhibition or display of material harmful to minors and designates the area "NOT FOR MINORS" or similar words and the commercial establishment prohibits unmarried minors under the age of 17 years from seeing or examining the contents of material harmful to minors.

(d) Whoever is found guilty of violating the provisions of this section shall be fined not less than $100.00 nor more than $1,000.00 or imprisoned for not more than one year, or both.
(Code 1956, § 42-50)

State law reference—Similar provisions, R.S. 14:91.11.

Sec. 54-260. Obscene live conduct.

(a) It shall be unlawful for any person to engage in, participate in, manage, produce, sponsor, present or exhibit obscene live conduct.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Hardcore sexual conduct is the public portrayal, for its own sake, and for ensuing commercial gain of:

(1) Ultimate sexual acts, normal or perverted, actual, simulated, and animated, whether between human beings, animals, or an animal and a human being;

(2) Masturbation, excretory functions or lewd exhibition, actual, simulated, or animated, of the genitals, pubic hair, anus, vulva, or female breast nipples;

(3) Sadomasochistic abuse, meaning actual, simulated or animated, flagellation, or torture by or upon a person who is nude or clad in undergarments or in a costume that reveals the pubic hair, anus, vulva, genitals, or female breast nipples, or in the condition of being fettered, bound, or otherwise physically restrained, on the part of one so clothed;

(4) Actual, simulated, or animated touching, caressing, or fondling of, or other similar physical contact with a pubic area, anus, female breast nipple, covered or exposed, whether alone or between humans, animals or a human and an animal, of the same or opposite sex, in an act of apparent sexual stimulation or gratification; or

(5) Actual, simulated, or animated stimulation of a human genital organ by any device whether or not the device is designed, manufactured, or marketed for such purpose.

Obscene live conduct means the intentional:

(1) Exposure of the genitals, pubic hair, anus, vulva, or female breast nipples in any public place or place open to the public view with the intent of arousing sexual desire or which appeal to prurient interest or is patently offensive; or

(2) Participation or engagement in, or management, operation, production, presentation, performance, promotion, exhibition, advertisement, sponsorship, or display of, hardcore sexual conduct when the trier of fact determines that the average person applying contemporary community standards would find that the conduct, taken as a whole, appeals to the prurient interest; and the hardcore sexual conduct is presented in a patently offensive way; and the conduct taken as a whole lacks serious literary, artistic, political, or scientific value.

(Code 1956, § 42-51)

State law reference—Hard core sexual conduct, defined, R.S. 14:106.

Sec. 54-261. Right to safe sex.

The possession of a condom or other prophylactic device intended primarily to prevent pregnancy or the sexual transmission of disease is not admissible as evidence in the prosecution of a violation of section 54-251, 54-252, and 54-253.
(M.C.S., Ord. No. 30348, § 1, 5-8-25)

Secs. 54-262—54-275. Reserved.

DIVISION 3. GENERAL MORALITY

Sec. 54-276. Gambling.

(a) It shall be unlawful for any person to intentionally conduct, directly assist in the conducting or participate in the profit of any game, contest, lottery or contrivance whereby a person risks the loss of anything of value in order to realize a profit.

(b) Any person who shall violate the provision of this section shall, upon conviction thereof for the first offense, be punished by a fine of not less than $100.00 or by imprisonment for not less than 30 days nor more than 90 days, or by both such fine and imprisonment; for the second conviction, the offender shall be fined not less than $200.00 and imprisoned for not less than 30 days; on a third or subsequent conviction, the offender shall be fined not less than $300.00 and imprisoned for not less than 60 days.
(Code 1956, § 42-52)

State law reference—Similar provisions, R.S. 14:90.

Sec. 54-277. Disposition of seized paraphernalia.

Upon the conviction of the person charged as provided in this section, all such property and paraphernalia as shall be the mere instrument of crime, shall upon the order of the judges of the municipal court, be destroyed when it is no longer needed as evidence and all property found in use for such unlawful purposes having a value for other and lawful purposes shall be sold under the orders of the court at public auction by a duly licensed auctioneer and the proceeds paid to the city treasurer. Seized monies shall be transferred to the city funds to be used by the city in whatever manner the city deems desirable.
(Code 1956, § 42-53)

State law reference—Similar provisions, R.S. 90:1.

Sec. 54-278. Telephone communications; improper language.

(a) It shall be unlawful for any person:

(1) To engage in or institute a telephone call, telephone conversation, or telephone conference with another person anonymously or otherwise, and therein use obscene, profane, vulgar, lewd, lascivious, or indecent language or make any suggestion or proposal of an obscene nature or threaten any illegal or immoral act, with the intent to coerce, intimidate or harass another person.

(2) Make repeated telephone communications anonymously or otherwise in a manner reasonably expected to annoy, abuse, torment, harass, embarrass, or offend another, whether or not conversation ensues.

(3) To make a telephone call and intentionally fail to hang up or disengage the connection.

(4) Engage in a telephone call, conference, or recorded communication by using obscene language, when by making a graphic description of a sexual act, and the offender knows or reasonably should know that such obscene or graphic language is directed to, or will be heard by, a minor. Lack of knowledge of age shall not constitute a defense.

(5) To knowingly permit any telephone under his control to be used for any purpose prohibited by this section.

(b) Any offense committed by the use of a telephone as set forth in this section shall be deemed to have been committed at either the place where the telephone call or calls originated, or at the place where the telephone call or calls were received.

(c) Whoever violates the provisions of this section shall be fined not more than $500.00, or imprisoned for not more than six months, or both.

(d) Upon second or subsequent offenses, the offender shall be fined not more than $5,000.00, or imprisoned with or without hard labor for not more than two years, or both.
(Code 1956, § 42-89)

State law reference—Similar provisions, R.S. 14:285.

Sec. 54-279. Peeping Tom.

(a) It shall be unlawful for any person to perform such acts as will make him a peeping Tom on or about the premises of another, or go upon the premises of another for the purpose of becoming a peeping Tom.

(b) For the purpose of this section, peeping Tom means one who peeps through windows or doors, or other like places, situated on or about the premises of another for the purpose of spying upon or invading the privacy of persons spied upon without the consent of the persons spied upon.

(Code 1956, § 42-90)

State law reference—Similar provisions, R.S. 14:284.

Secs. 54-280—54-310. Reserved.

ARTICLE VI. OFFENSES AFFECTING THE PUBLIC GENERALLY

DIVISION 1. GENERALLY

Sec. 54-311. Criminal impersonation.

A person is guilty of criminal impersonation if he:

(1) Assumes a false identity and does an act in his assumed character with the intent to defraud another; or

(2) Pretends to be a representative of some person or organization and does an act in his pretended capacity with the intent to defraud another.

(Code 1956, § 42-93)

Sec. 54-312. Fortunetelling.

It shall be unlawful for any person to advertise for or engage in, for a monied consideration, the business of (chronology, phrenology, astrology, palmistry), telling or pretending to tell fortunes, either with cards, hands, water, letters or other devices or methods, or to hold out inducements, either through the press or otherwise, or to set forth his power to settle lovers' quarrels, to bring together the separated, to locate buried or hidden treasures, jewels, wills, bonds or other valuables,

to remove evil influences, to give luck, to effect marriages, to heal sickness, to reveal secrets, to foretell the results of lawsuits, business transactions, investments of whatsoever nature, wills, deeds and/or mortgages, to locate lost or absent friends or relatives, to reveal, remove and avoid domestic troubles or to bring together the bitterest enemies converting them into staunchest friends. But nothing herein contained shall apply to any branch of medical science, or to any religious worship.
(Code 1956, § 42-91)

Sec. 54-313. Masks or disguises in public.

(a) It shall be unlawful for any person to use or wear in any public place, a hood or mask or anything of the nature of either or any facial disguise of any kind or description, calculated to conceal or hide the identity of the person or to prevent ready recognition of such person.

(b) This section shall not apply to the following:

(1) To persons participating in any public parade or exhibition of any educational, religious, or historical or amusement character given by any school, church, civic, fraternal or carnival organization or public governing authority or to persons in any private residence club or lodge room; or

(2) To persons participating in masquerade balls or entertainments, to persons participating in carnival parades or exhibitions during the periods of Mardi Gras or Spring Fiesta festivities, to persons participating in the parades or exhibitions of minstrel troupes, circuses or other dramatic or amusement shows, or to masking on Mardi Gras up to the hours of 6:00 p.m. It shall be unlawful for any masker to refuse to furnish his true name and street address and to temporarily remove his mask on Mardi Gras whenever requested by any police officer in uniform.

(3) To persons wearing masks or other facial coverings over the mouth and nose to prevent the transmission of disease.

(Code 1956, § 42-92; M.C.S., Ord. No. 28372, § 1, 6-4-20)

State law reference—Similar provisions, R.S. 14:313.

Sec. 54-314. Misrepresentation of age to gain entry to a licensed gaming facility prohibited; penalties.

(a) It is unlawful for any person under the age of 21 years to enter, attempt to enter, or be present in or about a licensed gaming facility in the city.

(b) It is unlawful for any person under the age of 21 years to present or offer to any gaming facility in the city, or to its agents or employees, any written, printed, or photostatic evidence of age and identity which is false, fraudulent or not actually his own for the purpose of entering a licensed gaming facility in the city.

(c) It shall be unlawful for any person under the age of 21 years to attempt to gain entry into a licensed gaming facility in the city by the use of a fake or fraudulent identification card or driver's license, or any fake or fraudulent written, printed, or photostatic evidence of age and identity, or by the use of an identification card or driver's license belonging to a person other than the person in possession of the identification card or driver's license.

(d) Whoever violates the provisions of this section shall be fined as follows:

(1) For the first violation, a fine of $500.00 and imprisonment for ten days.

(2) For the second and subsequent violations, fine of $500.00 and imprisonment for 30 days.

(M.C.S., Ord. No. 21550, § 1, 5-20-04)

Secs. 54-315—54-335. Reserved.

DIVISION 2. OFFENSES AGAINST PUBLIC SAFETY, WEAPONS

Sec. 54-336. Discharging certain weapons prohibited; exceptions.

(a) It shall be unlawful for any person to fire or discharge in the parish any of the following weapons:

(1) Any shotgun, rifle, firearm or hunter's bow and arrow;

(2) Any air rifle or air pistol or any weapon which can or is designed to or may readily be converted to expel a projectile by the action of any air pressure.

(b) The provisions of this section shall not apply to:

(1) Public shooting galleries lawfully established by section 14-356;

(2) Licensed private shooting galleries authorized by the city;

(3) Target practice ranges or shooting galleries required and maintained by the police department;

(4) Shooting galleries required and maintained on the premises of the National Aeronautics and Space Administration at Michoud;

(5) Skeet-shooting ranges which are associated with university courses; however, such skeet-shooting ranges must be conducted on flat terrain to permit a clear view of the range at all times; distances shall provide adequate protection to life and property; direction of range activity shall be such that noise emanating from such activity is minimized; the maximum range shall be between 480 to 500 feet at a 45-degree elevation; a range instructor shall be present at all times and shall supervise all range activities;

(6) Bow and arrow target practice sites and bow and arrow tournaments authorized by the city;

(7) Hunting that may occur in the area on the east bank of the city bounded by the center of the Chef Menteur Pass, the center of the Rigolets, the east shore of Lake Pontchartrain and the main shore of Lake Borgne, including all islands within one marine league distance of the latter;

(8) Hunting that may be carried on in the area on the east bank of the city bounded on the west by the east bank of the navigable stream known as the Michoud Cut, bounded on the north by the south bank of the Intracoastal Waterway, bounded on the east by the northwest portion of the shore of Lake Borgne lying between the western tip of Chef Menteur Pass and the mouth of the Bayou Bienvenue and bounded on the south by the north bank of Bayou Bienvenue; or

(9) The Bayou Sauvage Wildlife Area.

(10) Bow and arrow hunting that may be carried out in the area on the east bank of the city known as Oak Island, a certain portion of ground in the third municipal district located in section known as New Orleans East—generally bounded on the east by the west line of Collins pipeline servitude at the protection levee; on the south by the north lines of Lagoon Maxent and Bayou Maxent; on the west by the east line of Lake Michoud and Lake Marseille; and on the north by the southern line of S.&W.B. drainage canal and is more fully described as follows: Commencing at the intersection of the west line of the Collins pipeline servitude at the protection levee and the south property line of I-10 highway; thence measures in a southerly direction along the west line of the Collins pipeline servitude (at the protection levee) a distance of 2,322' ± to a point of beginning; thence continuing along said west line of the Collins pipeline servitude (at the protection levee) a distance of 10,122' ± to a point on the north line of a Lagoon Maxent; thence measures in a westerly direction along the west line of Lagoon

Maxent a distance of 6,158' ± to the junction of Bayou Maxent; thence continuing along the north line of Bayou Maxent and running in a westerly direction a distance of 3,927' ± to the east line of Lake Michoud; thence running in a northerly direction along said east line of Lake Michoud a distance of 5,523' ± to the south line of Lake Marseille; thence running in an easterly direction along the southerly line of said Lake Marseille a distance of 1,602' ± to a point and corner; thence running in a northerly direction along the east line of Lake Marseille a distance of 2,700' ± to a point on the 200' R/W line of the S.&W.B. drainage canal; thence running in an easterly direction along the southerly line of said S.&W.B. drainage canal a distance of 4,281' ± to a point on the west line of the Collins pipeline servitude (at the protection levee), said point being the point of beginning. All measurements are more or less and subject to survey.

Such hunting is permitted only when conducted by persons 16 years of age or older and such hunting is not permitted within 300 yards of the Bayou Sauvage Refuge, or within 300 yards of any public place, public road, highway, street, residence, home or structure which is capable of being inhabited or occupied.

(c) Such hunting shall be subject to the regulations of the state wildlife and fisheries commission and laws of the state and only allowed if shotgun scatter shots of diameter or size No. 2 through size No. 10 are discharged in the permitted area not closer than 300 yards of any public place, public road, highway, street, residence, home or structure which is capable of being inhabited or occupied.

(d) It shall be unlawful to discharge firearms or hunt in that portion of the parish east of the Jefferson-Orleans Parish line, northward to the southern shoreline of Lake Pontchartrain, northeast along the southern shoreline of Lake Pontchartrain to South Point, east-southeast along the southern shoreline of Lake Pontchartrain to Chef Pass, the southern shoreline of Chef Pass eastward to the western shoreline of the Intracoastal Waterway southward to the Industrial Canal, the Industrial Canal South to the Mississippi River and the Mississippi River to the Orleans-Jefferson Parish line.

(e) Whoever violates subsection (a)(1) of this section shall be subject to a mandatory sentence of six months imprisonment and a fine not to exceed $500.00. The clerk of the municipal court shall keep a separate log or registry of the disposition and explanations for disposition of all prosecutions for violations of this section and shall report thereon to the city council and the superintendent of police on a quarterly basis.
(Code 1956, § 42-54; M.C.S., Ord. No. 16,926, § 1, 3-2-95; M.C.S., Ord. No. 17,240, § 1, 10-19-95)

Sec. 54-337. Enforcement of section 54-336.

In connection with the provisions of section 54-336, the superintendent of police is hereby authorized to grant enforcement and citation powers in accordance with section 4-502(2) of the Charter to the enforcement officers of the state department of wildlife and fisheries for the purpose of obtaining compliance with the provisions of section 54-336. Such powers which may be granted by the superintendent of police shall be in addition to the normal enforcement and citation powers of the state department of wildlife and fisheries.
(Code 1956, § 42-54.1)

Sec. 54-338. Responsibilities of owners of firearms with respect to minors.

(a) It shall be unlawful for any person to store or keep any loaded firearm on any premises under his control if he knows or reasonably should know that a minor is likely to gain access to the firearm without the permission of the parent or guardian of the minor unless such person keeps the firearm in a securely locked box or other container or in a location which a reasonable person would believe to be secure, uses a trigger lock, gun lock or gun locking device on the firearm, or carries the firearm on

his person or within such close proximity thereto that he can readily retrieve and use it as if he carried it on his person.

(b) A person is guilty of violation of this section if, and only if, they violate the provisions of subsection (a) of this section and as a consequence of such violation a minor obtains the firearm and either causes or attempts to cause the injury or death of themselves or any other person or causes the firearm to fire. Any person who violates any provision of subsection (b) of this section shall be fined not less than $500.00 and jailed not less than six months for each violation.

(c) The provisions of this section shall not apply if the minor obtains the firearm as a result of an unlawful entry to any premises, including a motor vehicle, by any person.

(d) Each person who engages in the retail sale of any firearm shall provide to the purchaser, at the time of sale of any such firearm, a trigger lock, gun lock or gun locking device appropriate for such firearm; and a written warning which shall state in block letters not less than one inch in height: "UNLAWFUL STORAGE OF A LOADED FIREARM MAY RESULT IN IMPRISONMENT OR FINE."

(1) Each such person shall conspicuously post and at all times display at each service counter used for such retail sale (or if there are no service counters, at each exit) the warning specified in this section.

(2) Any person who violates any provision of subsection (d) this section shall be fined not less than $500.00 for each violation.

(e) For the purposes of this section the term "minor" shall mean any person under the age of 17 years.

(Code 1956, § 42-54.2; M.C.S., Ord. No. 29363, § 2, 3-9-23)

Sec. 54-339. Sale, purchase, possession, use of specified instrumentalities prohibited.

It shall be unlawful for anyone knowingly to:

(a) Sell, manufacture, purchase, possess or carry any blackjack, sandclub, metal knuckles, switchblade knife or spring knife, or iron buckle;

(b) Set a spring gun; or

(c) Use any device or attachment of any kind designed, used or intended for use in silencing the noise of any firearm, rifle or shotgun.

(Code 1956, § 42-55; M.C.S., Ord. No. 27348, § 1, 3-23-17)

State law reference—Weapons, R.S. 40:1751 et seq.

Sec. 54-340. Possession of firearms or ammunition by minors.

(a) Except as provided in this section, no person under the age of 18 years of age shall carry or have in his possession, any firearm as defined in section 54-1.

(b) Except as provided in this section, no person under the age of 18 years of age shall carry or have in his possession any ammunition as defined in this section.

(c) The provisions of this section shall not prohibit the possession of a firearm or ammunition by a member of the National Guard or United States Armed Forces in the course and scope of his duties in the National Guard or Armed Forces.

(d) The provisions of this section shall not prohibit the possession of a firearm or ammunition if the person is supervised by a person 18 or more years of age and the possession is in connection with the following:

(1) Activities at a licensed shooting gallery.

(2) Use at other locations or events if the use of the firearm is authorized in writing by the superintendent of police.

(3) Unloaded rifles or shotguns kept in trunk or secured in vehicles so the weapons cannot be available for immediate use.

(e) This section shall not apply to any person while within his domicile.

(f) For the purposes of this section, ammunition shall mean any bullet, shot, or other projectile with fuses, propelling charges, or primers manufactured or intended for firing from firearms. Ammunition shall not include BB's or pellets

manufactured or intended for firing from BB guns, pellet rifles, or other spring or pneumatic guns.
(Code 1956, § 42-55.1)

Sec. 54-341. Illegal carrying of weapons.

(a) It shall be unlawful for any person to commit the crime of illegal carrying of weapons. Illegal carrying of weapons is the intentional concealment or attempted intentional concealment on one's person of any firearm or other instrumentality customarily used or intended for probable use as a dangerous weapon.

(b) The provisions of this section shall not apply to duly appointed law enforcement officers or any other person duly authorized to carry concealed weapons.

(c) Whoever commits the crime of illegal carrying of a weapon shall be subject to a mandatory sentence of not less than three nor more than six months in jail and, at the discretion of the court, a fine of $500.00. The mandatory jail term shall not be suspended. The clerk of the municipal court shall keep a separate log or registry of the disposition and explanations for disposition of all prosecutions for violation of this section and shall report thereon to the city council and the superintendent of police on a quarterly basis.
(Code 1956, § 42-56)

State law reference—Similar provisions, R.S. 14:95(1).

Sec. 54-342. Illegal possession of weapons at demonstrations.

(a) It shall be unlawful for any person, other than a law enforcement officer, to have in his possession or to have in any vehicle any weapon while participating in or attending a demonstration being held at a public place.

(b) It shall be unlawful for any person, other than a law enforcement officer, to have in his possession or to have in any vehicle at a point within 1,000 feet of a demonstration at a public place any weapon after having first been advised by a law enforcement officer that a demonstration was taking place at a public place and after having been ordered by such officer to remove himself from the proscribed area until such time as he no longer is in possession of any weapon. This section shall not apply to any person in possession of any weapon in his private dwelling or place of business.

(c) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

(1) *Demonstration* shall mean two or more persons assembled together for the purpose of picketing, speechmaking, marching, holding vigils, or other such form of conduct, which has the effect, intent or propensity to draw a crowd or onlookers.

(2) *Law enforcement officer* shall mean any duly appointed and acting federal, state, or local peace officer and any military or militia personnel called out or directed by constituted authority to keep the law and order provided that the law enforcement officer is on duty and present to actively police and control the demonstration and who is assigned this duty by his department or agency.

(3) *Weapons* shall mean any pistol, rifle, shotgun or other firearms of any kind whether loaded or unloaded, air rifle, air pistol, knife, hatchet, ax, slingshot, blackjack, metal knuckles, mace, iron buckle, baseball bat, ax handle, chains, crowbar, hammer or other club or bludgeon or any other instrumentality, customarily used or intended for probable use as a dangerous weapon.
(Code 1956, § 42-56.1)

Sec. 54-342.5. Illegal possession or ownership of firearms or other dangerous instruments by certain persons.

It shall be unlawful for any of the following persons to own, have in his possession or in any ve-

hicle under his control, any firearm, or destructive device, or any other instrument customarily used or intended for use as a dangerous weapon:

(1) Any person convicted of a crime of violence in any court of the state or any other state, territory or in the District of Columbia, or in any district court of the United States.

(2) Any person under indictment for or charged by information with any crime or violence.

(3) Any person who is a fugitive from justice.

(4) Any person who is an unlawful user of or addicted to narcotics, or dangerous drugs.

(5) Any person who is in violation of section 54-336 of this Code, relative to discharging certain weapons.

(Code 1956, § 42-59; M.C.S., Ord. No. 17,042, § 1, 5-18-95)

Sec. 54-343. Exceptions from prosecution.

The prohibitions of section 54-339 against the sale, manufacture, purchase, possession or carrying of any blackjack, shall not apply to peace officers in the performance of their duty or to persons authorized to sell blackjacks to peace officers, so long as the person so authorized hereby sells to peace officers only.
(Code 1956, § 42-57)

Sec. 54-344. Provisions for running of sentences consecutively for multiple offenses.

Whenever any person shall be charged with multiple offenses under this Code one or more of which is a charge of violation of sections 54-339, and 54-341, such charges of violation of such sections shall be tried separately from any and all other charges, and any sentences imposed in the event of conviction shall run consecutively with any other sentences imposed as a result of conviction of any of the other charges. If a dealer has been convicted of violation of section 54-339, the dealer's occupational permit or license to sell firearms may be revoked.
(Code 1956, § 42-60)

Sec. 54-345. Unlawful sale, transfer to minors.

It is unlawful to sell or transfer any shotgun, rifle, air pistol, air rifle or firearm to persons under 18 years of age.
(Code 1956, § 42-61)

State law reference—Similar provisions, R.S. 14:91.

Sec. 54-346. Unlawful to sell or transfer firearms; exception.

It shall be unlawful for any person or dealer in the city to sell or transfer or for any person to acquire in any manner, any firearm except as authorized by this division.
(Code 1956, § 42-63)

Sec. 54-347. Requirement for firearms sale or transfer.

No dealer shall sell or transfer any firearm or destructive device unless the purchaser meets the following requirements:

(1) Has not been convicted of a felony offense;

(2) Is not a fugitive;

(3) Has not been convicted within five years prior to the date of application for the purchase or transfer of such firearm or destructive device in any jurisdiction of any law restricting the use, possession, or sale of any narcotic or dangerous drug.

(Code 1956, § 42-64)

Sec. 54-348. Procedure for sale of firearm or destructive devices.

(a) No dealer shall sell any firearm or destructive device until the federal firearms transaction record shall have been executed in duplicate by the prospective purchaser. For handgun or destructive device sales, upon execution in duplicate of the federal firearms transaction record by the prospective purchaser and presentation of valid photographic identification, the dealer shall contact by telephone the superintendent of police or his designated agent. The dealer shall supply the above authority with the necessary information for such authority to make a computer check, nationally, of such purchaser's criminal record or fugitive status, if

any. In the absence of information that such purchaser does not meet the requirements of section 54-347, the above authority will furnish the dealer with an authorization number, unique for each transfer or sale; the dealer shall note such authorization number in his records and on the federal firearms transfer record, and may, not less than seven days after contacting the superintendent of police or his designated agent as required herein, deliver such handgun or destructive device to the purchaser or transferee.

(b) For rifles or shotguns, the dealer may deliver such rifle or shotgun to the purchaser after completion of federal firearms transfer record in duplicate and presentation of valid photographic identification. Within 24 hours of the delivery of any firearm or destructive device by dealer to purchaser, the dealer shall forward to the superintendent of police or his agent one copy of the federal firearms transfer record, noted with authorization number for guns.

(c) The dealer shall keep a permanent daily record of all firearm transactions regulated by this division which records shall be subject to the inspection of the superintendent of police or his agent.

(d) Anyone who possesses a federal firearm permit to buy and/or sell firearms shall obtain a current occupational license from the bureau of revenue, department of finance. All monies derived from the sale of firearms shall be reported to the bureau of revenue.
(Code 1956, § 42-64.1)

Sec. 54-349. Sale or transfer of ammunition; execution of forms.

(a) It shall be unlawful for any person or dealer to sell, transfer, or deliver any ammunition to any person except in accordance with the provisions of this section. It shall be unlawful for any person or dealer to sell, transfer, or deliver any ammunition to any individual under 18 years of age and, if the ammunition is other than ammunition for a shotgun or rifle, to any individual under 21 years of age. Presentation of the documents enumerated in this section shall constitute proof of age. Prior to the sale, delivery, or transfer of ammunition to any person, the purchaser or other person seeking to acquire the ammunition shall complete a city ammunition transfer record and present valid photographic identification. The city ammunition transfer record shall be a form provided by the superintendent of police or his authorized agent. Within 24 hours of the sale, delivery, or transfer of any ammunition, the person or dealer making the sale, transfer, or delivery shall maintain each original ammunition transfer record and the superintendent of police or his designee may inspect such records upon demand.

(b) The city ammunition transfer record shall contain the following information:

(1) Applicant's name, address, occupation, place and date of birth, height, weight, race, any visible marks and the signature of the applicant;

(2) Acknowledgement by the applicant that he:

a. Has never been convicted of a crime of violence in the state, or any other state, territory, or the District of Columbia or in the United States;

b. Is not under indictment for or charged by information with any crime of violence;

c. Is not a fugitive from justice;

d. Is not an unlawful user of or addicted to narcotics, or dangerous drugs;

e. Is at least 18 years of age;

(3) The date the completed form was delivered to the prospective seller by the prospective purchaser;

(4) A description of the ammunition including the type of ammunition, manufacturer, and caliber or gauge.

(c) For the purposes of this section, ammunition shall mean any bullet, shot, or other projectile with fuses, propelling charges, or primers manufactured or intended for firing from firearms. Ammunition shall not include BB's or pellets manufactured or intended for firing from BB guns, pellet rifles, or other spring or pneumatic guns.

(d) For the purposes of this section, only the following documents shall constitute valid proof of a person's age:

(1) A valid, current, state driver's license which contains a photograph of the person presenting the driver's license.

(2) A valid, current driver's license of another state which contains a photograph of the person and the birthdate of the person submitting the driver's license; provided that, for any state that does not include a photograph on its driver's license, a driver's license of that state may be accepted as proof of age if a supplementary identification card containing a photograph of the holder, such as a student identification card, is also presented.

(3) A valid, current, special identification card issued by the state pursuant to R.S. 40:1321 containing a photograph of the person submitting the identification card.

(4) A valid, current passport or visa issued by the United States of America, or another country or nation, that contains a permanent attached photograph of the person and date of birth of the person submitting the passport or visa.

(5) A valid, current military or federal identification card issued by the United States of America containing a photograph of the person and date of birth of the person submitting the identification card.

(e) No driver's license or special identification card (I.D. card) as described in subsection (d) of this section shall be accepted as proof of age unless the I.D. card appears to be valid, authentic, and correct on its face and no I.D. card shall be accepted if the I.D. card is expired, defaced, mutilated, altered, or does not depict a photograph of the person who presents the I.D. card as proof of age; provided that, a drivers' license of another state which does not contain a photograph may be accepted as proof of age in accordance with subsection (d)(2) of this section.

(f) Except as otherwise provided in this section, no other document including but not limited to a birth certificate, student identification card, or selective service card shall be accepted as or constitute proof of age for the purposes of this section.
(Code 1956, § 42-64.2)

Sec. 54-350. Information required for sale of firearms or destructive devices.

(a) Within 24 hours of the sale of any firearm, the seller shall supply the superintendent of police with the following information:

(1) Applicant's name, address, occupation, place and date of birth, height, weight, race, any visible marks and the signature of the applicant;

(2) Acknowledgment by the applicant that he:

a. Has never been convicted of a crime of violence in the state, or any other state, territory, or the District of Columbia or in the United States;

b. Is not under indictment for or charged by information with any crime of violence;

c. Is not a fugitive from justice;

d. Is not an unlawful user of or addicted to narcotics, or dangerous drugs;

e. Is at least 18 years of age;

(3) The date the completed form was delivered to the prospective seller by the prospective purchaser;

(4) A description of the firearm including the type of firearm, make, model and serial numbers, and letters and caliber or gauge;

(5) If the dealer shall furnish the superintendent of police or his agent with a copy of the federal firearm transaction record within 24 hours this shall satisfy the preceding information requirements as listed in subsections (1) through (4) of this subsection;

(6) Anyone who possesses a federal firearm permit to buy and/or sell firearms shall

obtain a current occupational license from the bureau of revenue, department of finance.

(b) Every organization applying for a registration certificate or firearm permit shall also comply with the provisions of this section. Every organization shall provide such other information as the chief determines is necessary to carry out the provisions of this division.
(Code 1956, § 42-65)

Sec. 54-351. Unlawful to sell, transfer firearms or destructive devices to certain persons.

It shall be unlawful for any person or dealer to sell or transfer a firearm or destructive device to any person who he knows or has reasonable cause to believe:

(1) Has been convicted of a felony;

(2) Is a fugitive from justice;

(3) Is an unlawful user of or addicted to narcotics, or dangerous drugs;

(4) Is visibly under the influence of alcohol or drugs;

(5) Is under 18 years of age; except with the consent of parent or guardian.

(Code 1956, § 42-66)

Sec. 54-352. Unlawful to make false statements.

It is unlawful to knowingly give any false information or to make any material misstatement in a federal firearms transaction record.
(Code 1956, § 42-67)

Sec. 54-353. Appeals.

Any individual or organization which believes it has been wrongly or unfairly denied the right to purchase a firearm or destructive device, in furtherance of the enforcement of this chapter may appeal such denial directly to the superintendent of police. Should the superintendent uphold the denial, the individual or organization shall appeal such decision to the court of proper jurisdiction.
(Code 1956, § 42-67.1)

Sec. 54-354. Penalties.

Any person who knowingly gives any false information or makes any material misstatement in a federal firearms transaction record as required by this division, or any person or dealer who fails to forward such record to the superintendent of police within 24 hours, or who sells or transfers a firearm to a person other than the one by whom the record was completed, or who otherwise sells, transfers, purchases, receives or transfers a firearm in violation of this division, shall be subject to imprisonment of not more than 90 days, or a fine of not more than $100.00, or both.
(Code 1956, § 42-68)

Sec. 54-355. Sale, transfer of firearms; exemptions.

(a) The provisions of sections 54-346 through 54-354 shall not be construed to include any antique or unserviceable firearm sold or transferred and/or held as a curio or museum piece.

(b) For the purposes of sections 54-346 through 54-354, a dealer shall be exempt from application thereof, only when purchasing firearms for resale, and not as an isolated transaction.

(c) A purchase by a pawnbroker shall include an acquisition growing out of a pledge or pawn and shall not be exempt from the regulatory provisions of this division.
(Code 1956, § 42-69)

Sec. 54-356. Unclaimed weapon.

(a) *Definition.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Unclaimed weapons means any weapon that comes into the possession of the police department in the performance of official police duties or in possession of the municipal court in the performance of official court duties, and the title and ownership thereof is not claimed by any

person within six months after such weapon comes into the possession of the police department or municipal court.

(b) *Disposition generally.* All unclaimed weapons not needed as evidence, in possession of the police department or municipal court for the period of six months, shall be disposed of in the manner provided in this section.

(c) *Forfeiture to the city.* Any unclaimed firearm not needed as evidence in the possession of the police department central evidence and property divisions or municipal court for a period of six months shall be forfeited to the city and may be disposed of by the superintendent of police or the chief administrative judge of the municipal court as follows:

(1) No unclaimed firearm in possession of the police department or municipal court shall be sold at public or private sale or released from the custody of the police department or municipal court unless first destroyed.

(2) The superintendent of police shall order such unclaimed firearms in possession of the police department destroyed, or may retain such unclaimed firearms for the use and benefit of the police department in performance of its official duties.

(3) The chief administrative judge of the municipal court shall order such unclaimed firearms in possession of municipal court returned to the police department to be destroyed.

(4) The superintendent of police shall develop and promulgate rules and regulations for the destruction of unclaimed firearms and weapons by means of disassembling and crushing.

(Code 1956, §§ 42-70—42-72)

Sec. 54-357. Reporting lost and stolen firearms.

(a) The owner of a lost or stolen firearm shall report the loss or theft to the New Orleans Police Department within 48 hours after discovery of the loss or theft.

(b) It shall be the responsibility of the New Orleans Police Department to document the loss or theft, including, if known, the serial number of the lost or stolen firearm.

(c) Any person who violates subsection (a) of this section shall be subject to a fine of not less than $500.00 for a first offense and a fine of not less than $500.00 for each subsequent offense.

(M.C.S., Ord. No. 27049, § 1, 9-8-16; M.C.S., Ord. No. 29356, § 1, 2-16-23)

Sec. 54-358. Possession of a firearm or dangerous weapon in a firearm-free zone.

(a) Possession of a firearm, or dangerous weapon as defined in La. R.S. 14:2, at any time while in a firearm-free zone or otherwise engaging in conduct that would constitute a violation of La. R.S. 14:95.6 is unlawful.

(b) For purposes of this section, the following words have the following meanings:

i. *"Firearm-free zone"* is defined as any New Orleans Recreation Development Commission ("NORDC") campus.

ii. *"NORDC campus"* means all city-owned facilities and property at which NORDC-sponsored youth recreational programs are offered.

(c) The provisions of this section shall not apply to:

i. Possession of a firearm by a law enforcement officer.

ii. Possession of a firearm in accordance with a properly issued concealed handgun permit.

iii. Any other constitutionally protected activity which cannot be regulated by the city or state.

(d) Whoever violates the provisions of this section shall be fined not more than $500.00 or imprisoned for not more than six months, or both.

(e) The city shall clearly mark the existence of all firearm-free zones using signs or other appropriate indicators. It shall be a violation of

this section for any individual to cover, remove, deface, alter or destroy any sign or other indicator identifying a firearm-free zone.

(f) If a person under the age of 18 who is not legally emancipated violates sub-section (a) and the firearm in the minor's possession is registered to the minor's legal guardian, the minor's legal guardian shall be guilty of a violation of this section and subject to a mandatory sentence of not less than three nor more than six months in jail and, at the discretion of the court, a fine of $500.00. The mandatory jail term shall not be suspended.
(M.C.S., Ord. No. 27049, § 1, 9-8-16; M.C.S., Ord. No. 29322, § 1, 2-2-23)

Secs. 54-359, 54-360. Reserved.

Sec. 54-361. Negligent carrying of a concealed firearm.

(a) Negligent carrying of a concealed firearm is the intentional or criminally negligent carrying by any person, whether or not authorized or licensed to carry or possess a concealed firearm, under the following circumstances:

i. When it is foreseeable that the firearm may discharge, or when others are placed in reasonable apprehension that the firearm may discharge.

ii. When the firearm is being carried, brandished or displayed under circumstances that create a reasonable apprehension on the part of members of the public or a law enforcement officer that a crime is being committed or is about to be committed.

(b) Whoever violates the provisions of this section shall be fined no more than $500.00 or imprisoned for no more than six months, or both. The adjudicating judge may also order the forfeiture of the handgun and may suspend or revoke any permit or license authorizing the carrying of the handgun.

(c) This section may be enforced via the issuance of a summons in lieu of a physical arrest. The firearm and offender's license to carry such firearm shall be seized in the event of a physical arrest; the firearm and license may be seized when a summons is issued.
(M.C.S., Ord. No. 27049, § 1, 9-8-16)

Secs. 54-362—54-375. Reserved.

DIVISION 3. OFFENSES AFFECTING THE PUBLIC SENSIBILITIES

Sec. 54-376. Cruelty to animals.

(a) It is unlawful for any person to commit the crime of cruelty to animals.

(b) Cruelty to animals is the intentional or criminally negligent mistreatment of any animal by any act, or omission whereby unjustifiable physical pain, suffering or death is caused to or permitted upon such animal.
(Code 1956, § 42-73)

State law reference—Similar provisions, R.S. 3:2361 et seq., 14:102 et seq.

Sec. 54-377. Desecration of graves.

(a) It is unlawful for any person to commit the crime of desecration of graves.

(b) Desecration of graves is the:

(1) Unauthorized opening of any place of interment, or building wherein the dead body or remains of a human being is located, with the intent to remove or mutilate the body or any part thereof or any article interred or intended to be interred with such body; or

(2) Intentional or criminally negligent damaging in any manner of any grave, tomb or mausoleum erected for the dead; or

(3) The theft, misappropriation, taking, of any artifact or other object from any grave, tomb, mausoleum or other place of interment, either without the consent of the owner, or by means of fraudulent conduct, practices, or representations;

(4) Being in illegal possession of any artifact or other object from any grave, tomb, mausoleum or other place of interment. Illegal possession for the purposes of this section is the intentional possessing, procuring, receiving, or concealing of any artifact or other object from any grave, tomb, mausoleum or other place of interment, which has been the subject of any robbery, theft, misappropriation, or taking either without the consent of the owner or by means of fraudulent conduct, practices or representations, under circumstances which indicate that the offender knew or should have known that the thing was the subject of one of these offenses.

(5) Encouraging, urging, inciting, or persuading another to take or misappropriate any artifact or other object from any grave, tomb, mausoleum or other place of interment, either without the consent of the owner, or by means of fraudulent conduct, practices, or representations.

(c) Penalties. Whoever commits the crime of desecration of graves shall be fined not less than $300.00 nor more than $500.00, or imprisoned for not less than 30 days nor more than six months, or both; or alternatively, shall be sentenced to not less than 30 days nor more than 90 days of community service wherein the offender may be required to perform maintenance services in a cemetery located within city limits.
(Code 1956, § 42-74; M.C.S., Ord. No. 18,751, § 1, 6-4-98)

Cross reference—Cemeteries, ch. 38.

State law reference—Similar provisions, R.S. 14:101.

Sec. 54-378. Institutional vandalism.

(a) It is unlawful for any person to commit the crime of institutional vandalism.

(b) Institutional vandalism is the defacing, destruction or otherwise damaging of:

(1) Any church, synagogue or other building, structure or place used for religious worship or other religious purpose;

(2) Any cemetery, mortuary or other facility used for the purpose of burial or memorializing the deceased;

(3) Any school, educational facility or community center;

(4) The grounds adjacent to, and owned or leased by any institution, facility, building, structure or place described in this section; or

(5) Any property contained in any institution, facility, building, structure or place described in this section.

(c) Any person who is convicted of a violation of this section shall be fined a penalty of $500.00 and imprisoned for six months. If any portion of the sentence required or authorized by this section is suspended, then the offender shall be

required, as a condition of the suspension, to provide complete financial restitution for all resulting damages, and participate in an antibias educational program or other similar community service program.
(M.C.S., Ord. No. 18,137, § 1, 3-6-97)

Sec. 54-379. Intimidation.

(a) It is unlawful for any person to commit the crime of intimidation.

(b) Intimidation is the commission of any act or omission against any person or property otherwise defined as an offense by this Code, when a motive for said crime is the actual or perceived race, age, color, creed, religion, national origin, ancestry, disability, gender, gender identification, or sexual orientation of another person or persons.

(c) Any person who is convicted of a violation of this section shall be fined a penalty of $500.00 and imprisoned for six months. If any portion of the sentence required or authorized by this section is suspended, then the offender shall be required, as a condition of the suspension to provide complete financial restitution for all resulting damages, and participate in an anti-bias educational program or other similar community service program.

(d) As used in this section, "gender identification" and "sexual orientation" shall have the meanings defined in Chapter 86 of this Code.
(M.C.S., Ord. No. 18,138, § 1, 3-6-97; M.C.S., Ord. No. 18,794, § 1, 7-1-98)

Sec. 54-380. Hate crimes.

(a) *"Hate crime" defined.* For the statistical and reporting purposes of this section, a hate crime is an act or omission defined as an offense by city ordinance other than this section, or by state or federal law, a motive for the commission of which is the actual or perceived race, age, religion, color, creed, disability, gender, sexual orientation, national origin, or ancestry of that person or the owner or occupant of that property.

(b) *Duties of police department.*

(1) The police department shall maintain statistical information on hate crimes as defined in this section, including but not limited to specific information on violations of sections 54-378 and 54-379 of this chapter that constitute hate crimes as defined herein. Such statistical information shall be forwarded periodically, but at least quarterly, to the New Orleans Human Relations Commission, and to the commission of criminal justice, and the office of criminal justice coordination, and the city council.

(2) The police department shall include in its initial and ongoing training programs training with regard to cultural sensitivity and with regard to the recognition and proper classification of crimes that have been committed that are "hate crimes" as defined in this section.

(c) *Duties of human relations commission.*

(1) The human relations commission, in consultation with the commissioner of criminal justice from time to time but at least annually, shall analyze and render a report on data relating to the commission of hate crimes, the nature thereof and the motives for commission of such crimes. Reports shall be provided to the mayor, the commissioner of criminal justice, city council, the chief administrative officer, the city attorney, the district attorney for the Parish of Orleans, the United States attorney, and the judges of the municipal court, criminal district court, juvenile court, and United States District Court for the Eastern District of Louisiana.

(2) In each such report, the human relations commission shall identify government or community based educational programs that promote cultural harmony and tolerance and provide such information to prosecutors and judges of the courts listed in subparagraph (1) of this paragraph.

(d) *Prosecutions and sentencing.*

(1) The city attorney shall and other prosecutors should call to judicial notice, as may

be legally appropriate, the identification as a hate crime, as defined in this section, of any offense being prosecuted, or which has resulted in a conviction.

(2) When a person has been found guilty of violating section 54-378 or 54-379 of this chapter or any other offense committed in such a way as to make it a "hate crime" as defined herein, the judges of the municipal court shall consider imposition of the maximum penalties allowed by law. Offenders who have committed hate crimes should, in addition to any other penalties imposed by law, be required to attend appropriate educational courses promoting cultural harmony and tolerance that should include interaction with a panel that shares with the victim the same characteristics of race, age, religion, color, creed, disability, gender, sexual orientation, national origin or ancestry that was or were a motive of the offender.

(e) *Intent.* No person charged or accused of a hate crime, as defined in this section, shall be charged with a violation of this section. It is the intent of this section that any such defendant should be charged with a violation of another section of this Code or of another law applicable in Orleans Parish.
(M.C.S., Ord. No. 18,303, § 1, 6-19-97)

Secs. 54-381—54-400. Reserved.

DIVISION 4. OFFENSES AGAINST GENERAL PEACE AND ORDER

Sec. 54-401. Obstructing public passages.

(a) No person shall wilfully obstruct the free, convenient and normal use of any public sidewalk, street, highway, bridge, alley, road, or other passageway, or the entrance, corridor or passage of any public building, structure, watercraft or ferry, by impeding, hindering, stifling, retarding or restraining traffic or passage thereon or therein.

(b) Whoever violates the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall be fined not more than $500.00 or imprisoned for not more than six months, or both fined and imprisoned.

(c) This section shall not be applicable to the erection or construction of any barricades or other forms of obstructions as a safety measure in connection with construction, excavation, maintenance, repair, replacement or other work, in or adjacent to any public sidewalk, street, highway, bridge, alley, road, or other passageway, nor to the placing of barricades or other forms of obstruction by governmental authorities, or any officer or agent thereof, in the proper performance of duties.
(Code 1956, § 42-75)

State law reference—Similar provisions, R.S. 14:100.1.

Sec. 54-402. Trash fires.

It shall be unlawful for any person to start or set any trash fire or to burn paper, grass, trash or debris where such fire is not protected by a proper furnace or incinerator within the city limits.
(Code 1956, § 42-94)

Sec. 54-403. Disturbing the peace.

(a) Whoever commits the act of disturbing the peace shall be guilty of a misdemeanor, except as provided for in section 102-1 relative to juvenile warning citations.

(b) Disturbing the peace is the intentional performance of any of the following acts:

(1) To communicate to another person a threat, either verbally, in writing, or through any other form of communication; to kill or murder him or to do him great bodily harm, or threatening to kill, murder or do great bodily harm to members of his family, or to any other person when that person is in the immediate company of the person to whom the threat is communicated.

(2) To address any words to any person who is lawfully in a public place where such words, which by their very utterance,

inflict injury or have a direct tendency to cause acts of violence by the person to whom, individually, the remark is addressed.

(3) To interrupt any lawful assembly of people by the use of words where such words, by their very utterance, inflict injury or have a direct tendency to cause acts of violence.

(4) To address language to any person that makes reference to the person addressed as having sexual intercourse with himself or with another where such language inflicts injury, insults or causes acts of violence by the person to whom the language is addressed or is intended to inflict injury, insult or cause acts of violence.

(5) To engage in a fistic encounter.

(6) To act in a violent or tumultuous manner toward another whereby any person is placed in fear of safety of his life, limb or health.

(7) To act in a violent or tumultuous manner toward another whereby the property of any person is placed in danger of being destroyed or damaged.

(Code 1956, § 42-77)

State law reference—Similar provisions, R.S. 14:103.

Sec. 54-404. Carrying of opened glass containers prohibited in certain areas.

(a) It shall be unlawful for any person to carry or drink from any opened glass container in or on any public street, sidewalk, park or public right-of-way in the area bounded by the upriver side of Canal Street, the lakeside of Rampart Street, the downriver side of Esplanade Avenue and the Mississippi River.

(b) An opened glass container is:

(1) Any drinking vessel made of glass, excluding drinking glasses which are in their original package and contain no liquid; or

(2) Any container made of glass upon which the seal has been broken and which by virtue of its labeling or contents, would normally contain a consumable beverage.

(c) The owner of every establishment which sells beverages in glass containers in the designated area described in paragraph (a) shall post two copies of this section in their establishments. Failure to post such copies shall be unlawful. These copies may be obtained from the department of finance.

(d) The provisions of this section shall be enforced by the issuance of a summons or citation rather than by arrest. Failure of the person issued the summons or citation to appear in municipal court, shall cause to issue an attachment for the arrest of the person in violation of this section.

(e) It shall be unlawful for any person to carry or drink from any opened glass container in or on any public right-of-way, including any street, sidewalk, park or alley within one block of a Mardi Gras parade route, two hours before the published beginning time of the parade, during the parade, or within one block of the published disbanding area of the parade within two hours of the published or actual ending time of the parade, whichever occurs later. Enforcement of these provisions shall be pursuant to paragraph (d) of this section.

(Code 1956, §§ 42-96, 42-97; M.C.S., Ord. No. 17,388, § 1, 1-18-96; Ord. No. 20,037, § 1, 2-1-01; Ord. No. 20,439, § 1, 11-15-01; Ord. No. 20,440, § 1, 11-15-01)

Sec. 54-405. Public drunkenness, drug incapacitation.

(a) It is unlawful for any person to appear in a public place manifestly under the influence of alcohol, narcotics or other drugs, not therapeutically administered, to the degree that they may endanger themselves or other persons or property.

(b) In lieu of arrest for public drunkenness, the detaining officer may transport the offender to a facility maintained by or contracted through the City of New Orleans and designated by the

City of New Orleans to provide a safe, controlled environment for non-violent adults to stay until the effects of alcohol intoxication or inebriation have diminished to a safe level (the "sobering center"), but only in the following circumstances:

(1) Only adults may be diverted to the sobering center.

(2) Verbal consent shall be provided by the subject prior to diversion to the sobering center.

(3) Diversion shall not take place if the subject was physically combative with the officer at any time, from the initial stop to the turnover to the sobering center.

(4) If the subject has a medical condition at the time that requires immediate treatment, diversion shall not take place. Instead, the subject shall be brought to the appropriate facility for medical treatment, and the subsequent action by officers shall proceed as a non-diversion action.

(5) If the subject is demonstrably unable to understand the process of diversion, diversion shall not take place. Instead, the subject shall be brought to the appropriate facility for medical treatment, and the subsequent action by officers shall proceed as a non-diversion action.

(6) If the subject poses a threat to self or others due to mental health crisis, diversion shall not take place.

(7) If the subject's words and actions about diversion or the sobering center indicate it would be futile to attempt a diversion strategy, diversion shall not take place.

(Code 1956, § 42-76; M.C.S., Ord. No. 17,389, § 1, 1-18-96; M.C.S., Ord. No. 28235, § 1, 11-7-19)

Editor's note—M.C.S., Ord. No. 17,387, § 1, adopted Jan. 18, 1996, repealed § 54-405, which pertained to posting of notice relative to the provisions of § 54-404; such provisions derived from § 42-97 of the city's 1956 Code and were effectively moved to subsection (d) of § 54-404. M.C.S., Ord. No. 17,389, § 1, adopted Jan. 18, 1996, added new provisions as herein set out.

Sec. 54-406. Opened containers to remain in establishments.

It shall be unlawful for owners of establishments which sell beverages in glass or metal containers in the city to knowingly allow any person to leave the premises of such establishment carrying an opened glass or opened metal container.

(Code 1956, § 42-98)

Sec. 54-407. Alcoholic beverages in motor vehicles.

(a) No operator of, or passenger in or on a motor vehicle shall possess, when such vehicle is upon a street or highway, any alcoholic beverage in an open container.

(b) No operator of a motor vehicle, when such motor vehicle is upon a street or highway, shall allow to be transported, carried or possessed in the vehicle any alcoholic beverage in an open container.

(c) The term "open container" means and includes a bottle, can, cup or other receptacle which has been opened, or on which a seal or stamp has been broken, or from which the contents have been partially removed. In addition, the term also includes any cup or container without lids or seals, or with lids or seals but with straws protruding therefrom, or with only partial lids or seals.

(d) The provisions of this section, shall not apply to the following:

(1) Persons operating or occupying a motor vehicle who, as a condition of their employment and while acting in the course and scope of such employment, are required to carry open alcoholic beverage containers, provided that such operators or passengers do not consume such alcoholic beverages.

(2) Paid fare passengers on a common or contract carrier vehicle, as defined in R.S. 45:162.

(3) Paid fare passengers on a public carrier vehicle, as defined in R.S. 45:200.2.

(4) Passengers of a self-contained motor home which is in excess of 21 feet in length.

(5) Possession of an open container of alcoholic beverage in the trunk of a motor vehicle.

(6) If the motor vehicle is not equipped with a trunk, possession of an open container or alcoholic beverages:

a. In a locked glove or utility compartment; or

b. In an area of the vehicle not normally occupied by and not readily accessible to the driver or passengers.

(e) Whoever violates the provisions of this section shall be fined not more than $200.00.

(f) The observance of a glass, cup, or other container which, on its face, does not indicate that the container contains an alcoholic beverage, shall not, absent other circumstances, constitute probable cause for a law enforcement officer to stop and question a person.

(g) If a person under 18 years of age who is a child as defined in article 603 of the Louisiana Children's Code is charged with a violation of this section, the department of police shall file a report with the district attorney and shall request an investigation to determine whether the child is in need of care of the purposes of article 606 of the Louisiana Children's Code.
(Code 1956, § 42-98.1)

Cross references—Alcoholic beverages, ch. 10; traffic and vehicles, ch. 154.

Sec. 54-408. Disturbing the peace in the city council chamber.

(a) Disturbing the peace in the city council chamber is the doing of any of the following acts during any official meeting in such a manner as would forseeably disturb the orderly procedure of such council meeting:

(1) Interfering by any spectator with the right of any person to lawfully address the city council.

(2) Displaying of any signs or placards constructed or supported in whole or part of or by wood or metal or displaying of any signs or placards greater than 18 inches in width by a spectator seated in the council chamber or displaying of any signs or placards by a spectator seated in the chamber above the spectator's shoulders or taping, tacking, nailing, or stapling any signs to the walls of the chamber. The restrictions contained in this subsection shall not apply to signs or placards used as demonstrative evidence by a speaker while lawfully addressing the council nor shall the requirements that signs or placards not be displayed at a height above the spectator's shoulders apply to persons seated in the last row of the chamber or to persons standing with their back to the walls of the chamber. The restrictions of this subsection pertaining to the taping, tacking, nailing, or stapling of any signs to the walls of the chamber shall not apply to informational signs installed by the city government nor to demonstrative evidence or other material specifically authorized to be attached to the walls of the chamber by the council.

(3) Moving or walking around the council chamber for purposes of photographing, taking video or sonic recording of or broadcasting live the proceedings of the city council. The restrictions of this subsection shall not apply to persons seated in the last row of the chamber, to persons standing along the back wall of the chamber, or to those who are acting in compliance with the rules and regulations of the council.

(4) Engaging in audible commentary unless having been recognized to speak by the chair.

(5) Refusing to take a seat or to remain silent or to take a seat and remain silent when ordered to do so by any authorized official of the council.

(6) Commission of any other act in such manner as to unreasonably disturb the orderly procedure of the council.

(b) Whoever commits the act of disturbing the peace in the city council chamber shall be fined the sum of $50.00 or imprisoned for not more than 30 days.
(Code 1956, § 42-78; M.C.S., Ord. No. 24808, § 1, 3-15-12)

Sec. 54-409. Drinking during public meetings.

(a) It shall be unlawful for councilmembers, board or commission members, directors, and employees of the city, or any other person, to consume alcoholic beverages in the council chamber or any other public meeting room or facility owned, rented or leased by the city during any public meeting as defined in R.S. 42:4.2.

(b) Whoever violates the provisions of this section shall upon the first conviction thereof, be fined not less than $25.00 nor more than $50.00. Upon the second conviction of a violation of this section, the offender shall be fined not less than $100.00 nor more than $200.00. Upon the third and each subsequent conviction of a violation of this section, the offender shall be fined $300.00 and may additionally be punished by imprisonment for not more than ten days.
(Code 1956, § 42-78.1)

Sec. 54-410. Breach of public security.

(a) *Prohibited conduct.* In those publicly owned, operated, or leased buildings or places where the administrators thereof have enacted security regulations for the safety and protection of employees and citizens or have enacted regulations for the orderly conduct of business within or at the public location and have posted notices to that effect at all public entrances, it shall be unlawful to do any of the following acts in violation of such regulations:

(1) Fail, neglect, avoid, or refuse to submit to weapons screening procedures while passing through a weapons checkpoint or entering into an area secured by a weapons checkpoint where weapons checkpoints have been established;

(2) Fail or refuse to leave the building or area which is under public control after having been directed to do so by an authorized person; provided that nothing herein shall prevent a person from exercising constitutionally guaranteed rights of lawful assembly and free speech to the extent permitted by the constitution;

(3) Introduce any weapon, including but not limited to firearms, knives, chemical agents, and stun guns, into any area where their presence is prohibited as established by the posting of signs to that effect, regardless of whether the offender may otherwise be in lawful possession of such weapons;

(4) Enter a publicly owned, operated, or leased building, space, or area through any door, opening, or entrance way other than through one which has been designated for public use; or to disregard any sign which restricts the use of an entrance or door to certain persons by opening or passing through that door without authority or permission;

(5) Enter without authority or permission any restricted area of a publicly controlled building where the restriction is posted or the offender knew or should have known that his presence was prohibited, such as areas which have been partitioned by counters or gates, or where doors have been equipped with locks or access control devices;

(6) Introduce any contraband or prohibited item into the building, space, or area or use any such item in a prohibited manner provided that signs have been posted which reasonably place the offender on notice that the item or its specific use is prohibited;

(7) Ship, mail, or have delivered or cause to be introduced any prohibited items with the intent that they be delivered beyond a contraband checkpoint or to solicit the assistance of others for such purpose;

(8) Defeat or wilfully bypass any electronic, mechanical, or other device which has been installed to control ingress or egress;

(9) Disable, distort, or defeat any closed-circuit television or other electronic surveillance equipment which has been installed;

(10) Refuse to comply with the lawful and authorized instructions of designated security personnel, whether publicly employed or privately contracted, in the enforcement of regulations pertaining to conduct within the area under public control after having been informed of the regulation or prohibited conduct;

(11) Fail to comply with any lawful posted regulation which regulates conduct within the area under public control.

(b) *Forfeiture.* Only after hearing through an administrative procedure affording persons an opportunity to be heard and the presentation of a defense resulting in a finding against such person, any weapon or contraband which is confiscated for violation hereof shall be forfeited to the government agency which seized the weapon or contraband. Such weapon or contraband is to be disposed of in accordance with the instructions of the officials who are vested with the authority to enact such regulations at the public building or space.

(c) *Courts.* Nothing in this section limits the power of any court to punish for contempt or to promulgate rules or orders regulating, restricting, or prohibiting the possession of weapons within any building housing such court or any of its proceedings, or upon any grounds appurtenant to such building.

(d) *False information and threats.* It shall also be unlawful for any person to willfully or maliciously impart or convey false information, knowing the information to be false and under circumstances in which such information may reasonably be believed, concerning an attempt or alleged attempt being made or to be made, to do any act which is a violation of subsection (a) of this section.

(e) *Exemptions.* The provisions of this section shall be inapplicable to law enforcement, fire, and emergency medical personnel who are responding to an emergency call for service and who have been dispatched to the public building, area, or space or who do any of the acts prohibited in this section on orders of their lawful supervisor as a part of and in the course and scope of their public service or service in the employ of a security contractor employed by the agency or officer in charge of the public building, area, or space.

(f) *Penalties.* Whoever violates the provisions of this section shall be guilty of a misdemeanor and conviction shall result in a fine of not less than $100.00 and/or incarceration for not more than five months.

(Code 1956, § 42-78.2)

State law reference—Forfeitures, R.S. 15:41, 40:2601.

Sec. 54-411. Begging, solicitation of rides, business, employment, or charitable contributions prohibited.

(a) It shall be unlawful for any person to commit the crime of begging as set forth herein.

(b) Begging is the unauthorized solicitation for money or anything of value by any person.

(c) No person shall stand, sit, or remain next to or in a roadway or street, or upon the shoulder of any street or roadway, or upon a neutral ground of any street or roadway for the purpose of begging, soliciting or otherwise requesting a ride, soliciting employment, making known his/her availability for employment, soliciting business or charitable contributions, or selling items or services to or from the drivers or occupants of any vehicle.

(d) Individuals violating the provisions of this section may participate in a city-approved community service program in lieu of suffering the penalties imposed by this Code for violation of this section.

(Code 1956, § 42-79; M.C.S., Ord. No. 17,457, § 1, 3-7-96; M.C.S., Ord. No. 18,937, § 1, 10-15-98; M.C.S., Ord. No. 19,119, § 1, 2-18-99)

Sec. 54-412. Aggressive panhandling.

(a) This section shall apply to violations of those provisions of the Code of the City of New Orleans specified in subsections (b) through (h)

herein that occur within the Downtown Development District (DDD), as defined in section 146-193 of the Code of the City of New Orleans.

(b) As used in this section, panhandling is prohibited in the following locations within the DDD:

(1) A bus, streetcar, or train stop;

(2) In a public transportation vehicle or facility;

(3) In a sidewalk café or within 30 feet of the café;

(4) Twenty feet in any direction from an automatic teller machine (ATM) or bank; or

(5) Within eight feet of any occupied passenger vehicle on the street.

(6) In public park(s).

(c) Panhandling, as used in this section, means any solicitation made in person whereby a request is made for an immediate donation of money or other gratuity from another, and includes, but is not limited to, seeking donations by vocal appeal. However, panhandling shall not include the act of passively standing or sitting with a sign or other indication that a donation is being sought, without any vocal request other than in response to an inquiry by another person.

(d) It shall be unlawful to engage in an act of panhandling on any day after 7:00 p.m. or before 6:00 a.m.

(e) It shall be unlawful to engage in an act of panhandling in an aggressive manner, including any of the following actions:

(1) Touching the solicited person without the solicited person's consent;

(2) Panhandling a person while such person is standing in line and waiting to be admitted to a commercial establishment;

(3) Blocking the path of a person being solicited or the entrance to any building or vehicle;

(4) Following behind, ahead or alongside a person who walks away from the panhandler after being solicited;

(5) Approaching and coming within three feet of a person unless the person has agreed to make a donation;

(6) Using profane or abusive language, either during the solicitation or following a refusal to make a donation, or making any statement, gesture, or other communication which would cause a reasonable person to be fearful or feel compelled to make a donation.

(f) Penalties for violation and/or continued violation of this section are as set forth in section 1-21 of the Code of the City of New Orleans or community service of up to 25 hours per infraction.

(g) Enforcement of this section shall be as provided for in section 1-21 of the Code of the City of New Orleans or community service of up to 25 hours per infraction.

(h) Administrative adjudication of violations of this section shall be as provided for in section 1-21 of the Code of the City of New Orleans.
(M.C.S., Ord. No. 24350, § 1, 3-17-11)

Sec. 54-413. Throwing prohibited.

It shall be unlawful for any person to throw, cast, or propel any substance from any aperture, window, door, staircase, balcony, or roof that is eight or more feet above street level onto any public place, way, street, sidewalk, neutral ground or highway within the city.
(Code 1956, § 42-80.1)

Sec. 54-414. Curfew for persons under 18 years of age; school attendance—Established.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Custodian means a parent as defined in Louisiana Children's Code, Article 116 or a person with legal custody as defined in Louisiana Children's Code, article 116 to whom the care or supervision of the child has been temporarily and lawfully delegated or assigned.

Emergency means an unforeseen circumstance or the resulting state that demands for immediate action including, but not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

Establishment means any privately owned place where business is carried on for a profit or any place of amusement or entertainment to which the public is invited.

Minor means any person under 18 years of age who has not been emancipated under state law.

Operator means any individual, firm, association, partnership, or corporation owning, operating, managing or conducting any establishment.

Permit means to knowingly allow or knowingly fail to prevent; or to fail to prevent due to lack of reasonable efforts or concern or due to failure to supervise or control.

Public place means any public street, private street, sidewalk, corner, road, highway, avenue, alley, park, playground, wharf, dock, public building, and appurtenant open space vacant lot or other public place.

Remain means to tarry, stay, loiter, idle, wander, stroll, or play.

Reasonable errand means the activity of a minor pursuant to a custodian's direction in a public place or establishment in order to accomplish an emergency mission or a legitimate family function in a normal and customary fashion considering the time of day, or going to or returning home from such an activity without any detour or stop.

(b) *Offenses.* The following are violations of this section:

(1) A minor shall not remain in a public place or on the premises of an establishment from:

a. 6:00 a.m. until 3:15 p.m. on any day when the minor is required to be in school;

b. 9:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until 6:00 a.m. of the following day from June 1 through August 31;

c. 8:00 p.m. on any Sunday, Monday, Tuesday, Wednesday or Thursday until 6:00 a.m. of the following day from September 1 through May 31; and

d. 11:00 p.m. on any Friday or Saturday until 6:00 a.m. of the following day.

e. 8:00 p.m. Sunday, Monday, Tuesday, Wednesday, Thursday, Friday or Saturday until 6:00 a.m. of the following day in the area bounded by both sides of the following streets: Canal Street, North Rampart, Elysian Fields Avenue, and the Mississippi River.

(2) A custodian shall not:

a. Permit or by insufficient control allow a minor under the custodian's care or custody to violate this section;

b. Unreasonably permit a minor to remain in law enforcement custody more than six hours after being notified of the detention without causing communication with the detaining authority about the possibility of the minor's release;

c. Unreasonably permit a minor to remain in city custody for more than 24 hours after the minor has been detained.

(3) An operator or the operators, agents or employees shall not knowingly permit a minor to remain in violation of this section on the premises over which the operator has supervision, custody or control.

(c) *Defenses.* The following are defenses to violations charged under this section:

(1) This section shall not apply to any minor who is:

a. Accompanied by the minor's custodian;

b. On a reasonable errand;

c. In a motor vehicle involved in interstate travel;

d. Engaged in an employment activity pursuant to the minor's custodian's direction, or going to or returning home from such an employment activity without any detour or stop;

e. Involved in an emergency;

f. On the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor, with the next-door neighbor's consent;

g. Attending an official school, religious, or other recreational activity supervised by adults or sponsored by the city or another public body, a civic organization, or other similar entity that takes responsibility for the minor, or going to or returning home from such an activity, without any detour or stop; or exercising First Amendment rights protected by the United State Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly.

(2) This section does not apply to an operator or operator's agent or employee who promptly notifies a law enforcement agency that a minor is present in the establishment in violation of this section and refuses to leave.

(d) *Enforcement.*

(1) *Daytime violations.* On first and subsequent incidents if a police officer or other authorized peace officer or other authorized person reasonably believes that a minor is violating any provision of subsection (b)(1) of this section, the officer or other authorized person shall complete a juvenile warning citation and take such minor to the appropriate shelter care facility (truancy center) as designated by the parish school board.

(2) *Nighttime violations.* If a police officer or other authorized peace officer reasonably believes that a minor is violating any provisions of subsection (b)(1) of this section, the officer shall:

a. Advise the minor that the minor is in violation of this section and instruct the minor to proceed immediately to the minor's residence without any detour or stop; or

b. Take the minor into custody in accordance with the procedure established in Article 736 of the Louisiana Children's Code.

(e) *Penalties.*

(1) A violation of this section by a custodian, an operator or operator's agent or employee shall be a misdemeanor punishable by the municipal court.

(2) A custodian found in violation of this section shall be fined not more than $500.00. For appropriate cases, the city attorney may recommend that the court suspend the sentence on a first or second offense and, as a condition of such a suspension order or require the performance of up to 60 hours of community service. As part of or in lieu of any other penalty that may be imposed under this section, a custodian may be required by the court to obtain counseling or attend classes or programs to improve parenting and child-raising skills.

(3) If a custodian is convicted of a third offense, the record of the prosecution shall be transmitted by the city attorney to the district attorney, for review for possible action under the Louisiana Children's Code.

(4) An operator or an operator's agent or employee found in violation of this section shall be fined not more than $500.00 or imprisoned in the parish jail for not more than six months, or both, at the discretion of the court. Each day that a violation continues shall constitute a separate offense.

(Code 1956, § 42-80.2; M.C.S., Ord. No. 16,498, § 1, 5-23-94; M.C.S., Ord. No. 24721, § 1, 1-5-12; M.C.S., Ord. No. 28617, § 1, 3-11-21)

Sec. 54-415. Same—Enforcement.

In connection with the provisions of section 54-414, the superintendent of police is hereby authorized to grant enforcement and citation powers in accordance with section 4-502(2) of the Charter to the social workers of the parish school board or other employees designated by the superintendent of schools for the purpose of obtaining compliance with the provisions of section 54-414. Such powers which may be granted by the superintendent of police shall be in addition to the normal enforcement and citation powers of the police department.
(Code 1956, § 42-111.1)

Sec. 54-416. Mandatory school attendance for certain persons.

(a) For purposes of this section, an elective student shall mean a person who is older than the mandatory school attendance age prescribed by state law but who has elected to enroll in an elementary, middle, junior high, or high school located in the parish and whose enrollment has not been terminated or suspended by expulsion, suspension, graduation or formal withdrawal from such school.

(b) No elective student shall fail to comply with all laws, rules, and regulations regarding school attendance to the same extent as if he were a student obliged to attend school under the mandatory school attendance laws applicable to younger students.

(c) Any person convicted of a violation of this section shall be fined but shall not be sentenced to a term of imprisonment. In lieu of payment of any fine imposed under this section, the offender may be permitted to serve a specified number of hours or days in a court-approved program of supervised study and/or service to his school.
(Code 1956, § 42-80.3)

Sec. 54-417. Definitions.

For purposes of section 54-418, the following definitions shall apply:

Public possession means the possession of any alcoholic beverage for any reason, including consumption, on any street or highway or in any public place or any place open to the public, including a club which is de facto open to the public. "Public possession" does not include the following:

(1) The possession or consumption of any alcoholic beverage:

a. For an established religious purpose.

b. When a person under 21 years of age is accompanied by a parent, spouse, or legal guardian 21 years of age older.

c. For medical purposes when purchased as an over-the-counter medication, or when prescribed or administered by a licensed physician, pharmacist, dentist, nurse, hospital, or medical institution.

d. In private residences.

(2) The sale, handling, transport, or service in dispensing of any alcoholic beverage pursuant to lawful ownership of an establishment or to lawful employment of a person under 21 years of age by a duly licensed manufacturer, wholesaler, or retailer of beverage alcohol.

Purchase means acquisition by the payment of money or other consideration. Purchase does not include such acquisition for medical purposes either when purchased as over-the-counter medication or when prescribed or administered by a licensed physician, pharmacist, dentist, nurse, hospital, or medical institution.
(M.C.S., Ord. No. 18,491, § 1, 11-6-97)

Sec. 54-418. Purchase and public possession of alcoholic beverages; exceptions; penalties.

(a) It is unlawful for any person under 21 years of age to purchase or have public possession of any alcoholic beverage.

(b) (1) Whoever violates the provisions of this section shall be fined not more than $100.00 or imprisoned for not more than six months, or both.

(2) Any person apprehended while violating the provisions of this section shall be

issued a citation by the apprehending law enforcement officer, which shall be paid in the same manner as provided for the offenders of local traffic violations.

(M.C.S., Ord. No. 18,491, § 2, 11-6-97)

Sec. 54-419. Aggressive solicitation.

(a) *Policy.* As an aid in the interpretation and enforcement of this section the city council finds that:

(1) Aggressive solicitation is disturbing and disruptive to residents and businesses and contributes to the loss of access to and enjoyment of public places and to a sense of fear, intimidation and disorder.

(2) Aggressive solicitation may include approaching or following pedestrians, repetitive soliciting despite refusals, the use of abusive or profane language to cause fear and intimidation, unwanted physical contact, or the intentional blocking of pedestrian and vehicular traffic.

(3) The presence of individuals who solicit money from persons in places that are confined, difficult to avoid, or where a person might find it necessary to wait, is especially troublesome because of the enhanced fear of crime.

(4) This section is intended to protect citizens from the disruption, fear and intimidation accompanying certain kinds of solicitation, and not to limit constitutionally protected activity.

(b) *Definitions.*

(1) *Solicitation,* as used in this section, means any plea made in person where:

a. A person by vocal appeal requests an immediate donation of money or other item from another person; or

b. A person verbally offers or actively provides an item or service of little or no value to another in exchange for a donation, under circumstances where a reasonable person would understand that the transaction is in substance a donation. However, solicitation shall not include the act of passively standing, sitting, or engaging in a performance of art with a sign or other indication that a donation is being sought, without any vocal request other than in response to an inquiry by another person.

(2) *Convenience store,* as used in this section, means a retail establishment offering for sale prepackaged food products, household items, and other goods commonly associated with them, with a gross floor area of less than 7,500 square feet.

(3) *Obstruct pedestrian* or *vehicular traffic* means to walk, stand, sit, lie, or place an object in such a manner as to block passage by another person or a vehicle, or to require another person or a driver of a vehicle to take unreasonable evasive action to avoid physical contact.

(4) *Unreasonable evasive action* means causing a vehicle to depart from the lane of traffic in which it is traveling to change lanes, to straddle lanes, or to enter onto a neutral ground to obtain passage; it also means causing a pedestrian to leave the sidewalk on which he is traveling or to make contact with a wall or fence bordering the sidewalk, or, at such times as the New Orleans Police Department shall have erected barricades to prohibit vehicular traffic from Bourbon Street or Royal Street, to cause a pedestrian to take unreasonable evasive action in the street to avoid physical contact.

(5) *Public entertainment venue* means a place that is open to the public (whether or not upon payment of a fee for admission and whether or not the management reserves the right to exclude individual members of the public) for entertainment, but does not include a shop. The term also includes Bourbon Street and Royal Street between the hours of sunset and sunrise.

(6) *Shop* means premises used for the sale or displaying or offering for sale of goods or food to a member of the public, whether

on a wholesale or retail basis, and includes a warehouse (other than where the premises is temporarily used as a public entertainment venue).

(c) *Prohibitions.*

(1) It shall be unlawful in a public place to engage in an act of solicitation when the person being solicited is present at any of the following locations:

a. In a restroom.

b. At a bus stop or public transportation shelter.

c. At or within 20 feet in any direction from an intersection of two streets or a marked crosswalk.

d. In any public transportation vehicle or public transportation facility.

e. In a vehicle which is parked or stopped on a public street or alley.

f. In a sidewalk cafe.

g. In a line waiting to be admitted to a commercial or government establishment.

h. Within 20 feet in any direction from an automatic teller machine or entrance to a bank, other financial institution, or check-cashing business.

i. On any parkland, or in any park, playground, or public entertainment venue, including within 20 feet of entryways or exits thereto.

j. At or within ten feet in any direction of the property on which is located a gasoline filling station as defined in Section 150-963 of the Code of the City of New Orleans.

k. At or within ten feet in any direction of the property on which is located a liquor store, including any establishment with a class B permit (off-sale license) under Alcoholic Beverages, Chapter 10 of the Code of the City of New Orleans, and including any establishment with an on-sale license.

l. At or within ten feet in any direction of the property on which a convenience store is located.

(2) It shall be unlawful in a public place to engage in an act of solicitation in a manner that incorporates any of the following methods:

a. Intentionally touching or causing harmful or offensive physical contact with the solicited person without that person's consent.

b. Intentionally blocking the path of the solicited person, or the entrance to any building or vehicle.

c. Following behind, ahead or alongside a person who walks away from the solicitor after being solicited, with the intent to intimidate or continue solicitation.

d. Using obscene, profane, or abusive language or gestures toward the solicited person.

e. Approaching the solicited person in a manner that:

1. Is intended to or is likely to cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon property in the person's possession; or

2. Is intended to or is likely to intimidate a reasonable person into responding affirmatively to the solicitation.

f. Solicitation while under the influence of alcohol or drugs.

g. Soliciting in a group of two or more persons.

(3) It shall be unlawful in a public place to engage in an act of solicitation on any day after sunset or before sunrise.

(4) No person, in any public place, shall use obscene language, or grab, or follow

another for the sole purpose of harassment, or walk, stand, sit, lie, or place an object in such a manner as to block passage by another person or a vehicle, or to require another person or a driver of a vehicle to take evasive action to avoid physical contact. A person shall be guilty of obstructive interference if, in a public place, he intentionally obstructs pedestrian or vehicular traffic. Acts authorized by permit issued pursuant to the Parade Ordinances, Article XVI of Chapter 154 of the Code of the City of New Orleans shall not constitute interference with pedestrian or vehicular traffic.

(d) *Penalties.* Each act prohibited by this section shall constitute a separate violation of this section. Whoever violates the provisions of this section shall be guilty of a misdemeanor and upon conviction shall be fined not more than $500.00 and/or imprisonment for not more than six months. In the event that a person convicted of an offense under this section is employed by an organization responsible for the offender's actions constituting a violation of this ordinance then that organization shall be held similarly in violation of this section and similar penalties shall be levied upon the organization.

(e) *Applicability.* Section 54-419 shall only be applicable within the Vieux Carré as defined in Section 166-2 of the Code of the City of New Orleans.

(f) *Severance.* If any section, sentence, clause, or phrase of this law is held invalid or unconstitutional by a court of competent jurisdiction, it shall in no way affect the validity of any remaining portions of this law.
(M.C.S., Ord. No. 24636, § 1, 10-20-11; M.C.S., Ord. No. 25408, § 1, 7-25-13)

Sec. 54-420. Prohibited actions along a carnival parade route.

It shall be unlawful for any individual to have in their custody or control along a carnival parade route any items or conditions in violation of section 34-33.
(M.C.S., Ord. No. 30714, § 2, 7-23-26)

Secs. 54-421—54-440. Reserved.

DIVISION 5. OFFENSES AGAINST LAW ENFORCEMENT

Sec. 54-441. Resisting an officer.

(a) It shall be unlawful for any person to commit the crime of resisting an officer.

(b) Resisting an officer is the intentional opposition or resistance to, or obstruction of, an individual acting in his official capacity and authorized by law to make a lawful arrest or seizure of property, or to serve any lawful process or court order, when the offender knows or has reason to know that the person arresting, seizing property, or serving process is acting in his official capacity.

(c) The phrase "obstruction" of as used in this section shall, in addition to its common meaning, signification and connotation, include the following acts:

(1) Flight by one sought to be arrested before the arresting officer can restrain him and after notice is given that he is under arrest;

(2) Any violence toward or any resistance or opposition to the arresting officer after the arrested party is actually placed under arrest and before he is incarcerated in jail;

(3) Refusal by the arrested party to give his name and make his identity known to the arresting officer.

(Code 1956, § 42-81)

State law reference—Similar provisions, R.S. 14:108.

Sec. 54-442. Crossing or traversing a police cordon.

It shall be unlawful for any unauthorized person to intentionally cross or traverse a police cordon. For the purposes of this section, a police cordon means any impediment or structure erected or established by a police officer for crowd or traffic control to prevent and/or obstruct the passage of a person at the scene of a crime, an investigation, a demonstration or parade area,

including, but not limited to, wooden, rope, cable, wire or metal barricades, the posting of uniformed personnel, or other personnel otherwise identifiable as law enforcement officers.
(Code 1956, § 42-81.1)

Sec. 54-443. Tampering with evidence.

(a) It shall be unlawful for any person to commit the crime of tampering with evidence. For purposes of this section tampering with evidence is the alteration, movement, removal, or addition of any object or substance which the perpetrator knows or has good reason to believe is, was, or will be, related to or connected with any investigation of crime by state, local or federal law enforcement officers with the intent of distorting the results of such an investigation.

(b) Any person convicted of the crime of tampering with evidence shall be fined not more than $300.00 or imprisoned for not more than 150 days in jail or both.
(Code 1956, § 42-81.2)

Sec. 54-444. False personation of peace officers.

(a) It shall be unlawful for any person to perform any of the following acts, with the intent to injure or defraud, or to obtain or secure any special privilege or advantage:

(1) Impersonating any peace officer, or the wearing without authority, of any uniform or badge by which such officer or person is lawfully distinguished; or

(2) Performing any act purporting to be official in such assumed character.

(b) Whoever commits the crime of false personation shall be fined not more than $100.00, or imprisoned for not more than 90 days, or both.
(Code 1956, § 42-86)

State law reference—Similar provisions, R.S. 14:112.

Sec. 54-445. False alarms, false reports of fire, police, ambulance.

It shall be unlawful for any person to intentionally report a false alarm of fire, or need for police or ambulance assistance or to intentionally report to a peace officer any false, misleading or unfounded statement concerning commission of any crime.

Any person who violates this section shall be fined $500.00 and imprisoned for six months per offense.
(Code 1956, § 42-87; M.C.S., Ord. No. 16,948, § 1, 3-2-95)

Sec. 54-445.1. Filing or maintaining false public records.

(a) Filing false public records is the filing of depositing for record in any public office or with any public official, or the maintaining as required by law, regulation, or rule, with knowledge or its falsity, any of the following:

(1) Any forged document.

(2) Any wrongfully altered document.

(3) Any document containing a false statement or false representation of a material fact.

(b) The good faith inclusion of any item of cost on a medical assistance program cost report which is later determined by audit to be nonreimbursable under state and federal regulation shall be an affirmative defense to a violation of this section.

(c) Whoever commits the crime of filing false public records shall be imprisoned for not more than six months or shall be fined not more than $500.00, or both.
(M.C.S., Ord. No. 23214, § 1, 9-4-08)

Sec. 54-446. Commercial use of police communications.

(a) It shall be unlawful for any person who receives the radio communications transmitted by the police department radio station (bearing call letters KKC 626, WYK 466, WYK 467, WSL 709, KAD 0140, KYL 797, KV 6123, WZM 711, WZM 712, KRQ 21, KG 7934, KRQ 22, KRQ 23, KRQ 24, KRQ 25, KRQ 26, KRQ 27, KRQ 28, KRQ 29, KRQ 30, KRQ 31, KRQ 32, KRQ 33, KRQ 34 and KRQ 35, or any assigned frequencies) or the radio communications transmitted by any vehicle or other unit of the police depart-

ment (with assigned frequencies under KKC 626, WYK 466, WYK 467, WSL 709, KAD 0140, KYL 797, KV 6123, WZM 711, WZM 712, KRQ 21, KG 7934, KRQ 22, KRQ 23, KRQ 24, KRQ 25, KRQ 26, KRQ 27, KRQ 28, KRQ 29, KRQ 30, KRQ 31, KRQ 32, KRQ 33, KRQ 34 AND KRQ 35) to use the information contained in such radio communications in any manner whatsoever for the purpose of obtaining private gain, business advantage or financial profit of any nature or description.

(b) The prohibition against the use of such information obtained from city police department radio broadcasts for such purpose shall apply both to any person who receives such information directly by listening to such radio broadcasts on a radio receiving set, as well as to any person who obtains such information indirectly from a third person who heard or received such broadcasts on a radio receiving set when the person receiving such broadcasts has knowledge of the source of such information.
(Code 1956, § 42-88)

Sec. 54-447. Escape.

(a) It shall be unlawful for any person to commit the crime of escape as hereinafter defined.

(b) "Escape" is the intentional departure of a person from lawful custody of any police officer or from a place where that person is lawfully detained by any peace officer.
(M.C.S., Ord. No. 18,452, § 5, 10-1-97)

Sec. 54-448. Assisting escape.

(a) It shall be unlawful for any person to commit the crime of assisting escape as hereinafter defined.

(b) "Assisting escape" is the:

(1) Permitting by any peace officer of the escape of any prisoner in his custody by virtue of his active assistance or intentional failure to act; or

(2) Active assistance given by any person to one in legal custody with the intent to aid him in escaping therefrom.

(M.C.S., Ord. No. 18,452, § 5, 10-1-97)

Sec. 54-449. Flight from an officer.

(a) No driver of a motor vehicle or operator of a watercraft shall intentionally refuse to bring a vehicle or watercraft to a stop knowing that he has been given a visual and audible signal to stop by a police officer when the officer has reasonable grounds to believe that the driver has committed an offense. The signal shall be given by an emergency light and a siren on a vehicle marked as a police vehicle [or] marked [as a] police watercraft.

(b) Upon conviction for violation of subsection (a), the offender shall be fined not less than $150.00, nor more than $500.00, or imprisoned for not more than six months, or both.
(M.C.S., Ord. No. 24248, § 1, 12-16-10)

Sec. 54-450. Interfering with a law enforcement investigation.

(a) Interfering with a law enforcement investigation is the intentional interference or obstruction of a law enforcement officer conducting investigative work at the scene of a crime or the scene of an accident by refusing to move or leave the immediate scene of the crime or the accident when ordered to do so by the law enforcement officer when the offender has reasonable grounds to believe the officer is acting in the performance of his official duties.

(b) For the purposes of this section, "law enforcement officer" means any commissioned police officer, sheriff, deputy sheriff, marshal, deputy marshal, correctional officer, constable, wildlife enforcement agent, state park warden, livestock brand inspector, forestry officer, or probation and parole officer.

(c) Upon conviction for violation of subsection (a), the offender shall be fined not more than $500.00, imprisoned for not more than six months, or both.
(M.C.S., Ord. No. 24247, § 1, 12-16-10)

Secs. 54-451—54-480. Reserved.

ARTICLE VII. OFFENSES GENERALLY

Sec. 54-481. Unauthorized use of a charitable name.

(a) It shall be unlawful for any person to commit the crime of unauthorized use of a charitable name.

(b) Unauthorized use of a charitable name is the knowing use of any nonprofit, charitable organization's name for the solicitation of funds, materials and/or sales products without the express, written consent from the so named nonprofit charitable organization. This section shall not be applicable to a nonprofit, charitable organization's use of its own name.
(Code 1956, § 42-99)

State law reference—Similar provisions, R.S. 51:1905(B)(3).

Sec. 54-482. Sound trucks prohibited.

It shall be unlawful for any person within the city to operate any vehicle within the city limits when attached to such vehicle is any device, other than the horn specified in section 154-1300(6), which is being used to amplify sound. This prohibition shall not apply to law enforcement and other emergency vehicles.
(Code 1956, § 42-100)

Cross reference—Noise, § 66-136 et seq.

Sec. 54-483. Eviction without due process.

(a) It shall be unlawful for an owner of immovable property, his agent or authorized representative who has a legal right, to evict a lessee or occupant for nonpayment of rent or other cause, unless the owner, agent or authorized representative, shall first cause written notice to vacate the premises to be delivered to the lessee or occupant. Such notice shall allow the lessee or occupant not less than five days from the date of delivery to vacate the premises. If the whereabouts of the lessee or occupant are unknown, the notice shall be delivered or served by securely attaching same to the door of the premises of the place to be vacated.

(b) Any person who shall violate the provisions of this section shall upon conviction thereof be punished by a fine of not less than $50.00 nor more than $100.00 or by imprisonment of not less than 15 days, nor more than 90 days or both.
(Code 1956, §§ 42-103, 42-104)

Sec. 54-484. Scalping tickets.

It shall be unlawful for any person to sell any admission ticket to any athletic contest, dance, theater, circus or other amusement for a price in excess of the price printed on the face of the ticket.
(Code 1956, § 42-105)

Cross reference—Amusements and entertainments, ch. 14.

State law reference—Similar provisions, R.S. 4:1.

Sec. 54-485. Unlawful for person of opposite sex to perform massage.

It shall be unlawful for any person employed by a massage establishment, licensed under section 30-931 et seq., to perform a massage on a person of the opposite sex.
(Code 1956, § 42-106)

Cross reference—Massage therapists and massage establishments, § 30-931 et seq.

Sec. 54-486. Unlawful to allow employee to perform massage on person of opposite sex.

It shall be unlawful for any proprietor, agent or person lawfully in charge of a massage establishment, licensed under section 30-931 et seq., to knowingly allow any employee thereof to perform a massage on a person of the opposite sex.
(Code 1956, § 42-107)

Sec. 54-487. Misrepresentation of name, age or residence—Generally.

(a) *[False identification.]* No person shall misrepresent his or her name, age or residence by use of any identification card, birth certificate, or similar identification containing any false, erroneous or incorrect information or misrepresent his or her name, age or residence by use of the identification of another person. The use, presentation or possession of an identification card, birth certificate, or similar identification or the identification of another to misrepresent a

person's name, age or residence, shall constitute prima facie evidence of a violation of this section.

(b) *Penalties.* A violation of this section is a misdemeanor punishable by municipal court, as follows:

(1) For a first conviction, the person shall be punished by a fine of not less than $250.00 or more than $500.00. If a minor is personally unable to pay the fine required under this section, the custodian of the minor shall be liable for such payment. The judge may substitute community service hours at the rate of seven hours for each $50.00 (35 community service hours for the $250.00 minimum fine) imposed. The custodian of a minor who is penalized under this section shall accompany the minor to at least one-half of community service hours ordered by the court. The community service hours shall include cleaning and picking up litter in public parks, recreational facilities, cemeteries or public rights-of-way.

(2) For a second conviction, the person shall be punished by a fine of not less than $500.00 and imprisonment of up to five months. The judge may substitute 70 community service hours in lieu of the fine and additional community service hours at the rate of seven hours for each day of imprisonment substituted.

(3) For a third or more convictions, the person shall be punished by a fine of not less than $500.00 and imprisonment of not less than 30 days and up to five months for each conviction. The judge may substitute 70 community service hours in lieu of the fine and additional community service hours at the rate of seven hours for each day of imprisonment substituted.

(Code 1956, § 42-108; M.C.S., Ord. No. 19623, § 1, 4-19-00)

Sec. 54-488. Same—Enforcement.

The superintendent of police is hereby authorized to grant enforcement and citation powers in accordance with section 4-502(2) of the Charter to the social workers of the parish school board assigned to the various truancy centers in the city for the purpose of obtaining compliance with the compulsory school attendance provisions. Such powers which may be granted by the superintendent of police shall be in addition to the normal enforcement and citation powers of the police department.
(Code 1956, § 42-111.1)

Sec. 54-489. Merchandising of certain items—Vieux Carré.

(a) It shall be unlawful for any person to hang or otherwise attach any poster, printed material, work of art, T-shirt or parts of T-shirts or any other articles of clothing, or parts of articles or any facsimiles of T-shirts or articles of clothing or any representation or message which may be imprinted on an aforementioned article or facsimile of clothing or any other merchandise on the facade of any building in the Vieux Carré, which is that area of the city bounded by Esplanade Avenue, North Rampart Street, Canal Street and the Mississippi River. Facade shall include but not be limited to any door, window or shutter whether permanently attached to the building or not, even when such door, window, or shutter opens to the interior of the building.

(b) In no instance shall any person place any such articles or signs so that they lean against the facade of the building, or occupy the space defined by the outermost frame of any open door or window for a depth of 36 inches into the establishment.

(c) Pursuant to the enforcement of the restrictions herein listed, the police department is hereby authorized to grant enforcement and citation powers to the inspectors of the Vieux Carré Commission for the purposes of obtaining compliance with this section only. Such powers of the Vieux Carré Commission inspectors shall be in addition to the normal enforcement and citation powers of the police department.

(d) Upon discovery of any violation of this section, the proper enforcing officer shall immediately issue a citation to the operator of the building to which the offending poster, printed material, work of art, T-shirt or parts of T-shirt

or any other articles of clothing or parts of articles or any facsimiles of T-shirts or articles of clothing or any representation or message which may be imprinted on an aforementioned article or facsimile of clothing or any other merchandise is attached and/or is leaning against the facade of such building, or occupying the space defined by the outermost frame of any open door or window for a depth of 36 inches into the establishment. For the purpose of this section, the operator of the building shall be deemed to be any person on the premises who has the responsibility for conducting the business which pertains to the poster, printed material, work of art, T-shirt, article of clothing or part thereof, facsimile or representation or message, or any other merchandise.

(e) The penalty for each violation of this section shall be $100.00, 90 days in jail or both. Each poster, piece of printed material or other merchandise, work of art, T-shirt, article of clothing or part thereof, facsimile or representation or message shall constitute a separate violation.

(Code 1956, § 42-110)

Cross reference—Vieux Carré, ch. 166.

Sec. 54-490. Same—Central business district.

(a) It shall be unlawful for any person to hang or otherwise attach any T-shirt, or parts of T-shirts or any other articles of clothing, or parts of

articles or any facsimiles of T-shirts or articles of clothing or any representation or message which may be imprinted on an aforementioned article or facsimile, of clothing, on the facade of any building in the area known as the central business district which is bounded by Iberville Street, North Claiborne Avenue, the Pontchartrain Expressway and the Mississippi River. Facade shall include but not be limited to any door, window or shutter whether permanently attached to the building or not, even when such door, window or shutter opens to the interior of the building.

(b) Pursuant to the enforcement of the restrictions herein listed, the department of safety and permits is hereby granted enforcement and citation powers for the purpose of obtaining compliance with this section.

(c) Upon discovery of any violation of this section, the proper enforcing officer shall immediately issue a citation to the operator of the building to which the offending T-shirt or article of clothing is attached. For the purposes of this section, the operator of the building shall be deemed to be any person on the premises who has the responsibility for conducting the business which pertains to the T-shirt or article of clothing.

(d) The penalty for each violation of this section shall be $100.00, 90 days in jail or both. Each T-shirt, article of clothing or part thereof, facsimile, or representation or message shall constitute a separate violation.
(Code 1956, § 42-110.1)

Sec. 54-491. Misrepresentation of zoning status.

(a) It shall be unlawful for any person to commit the crime of misrepresentation of zoning status.

(b) Misrepresentation of zoning status is the intentional conveyance or impartation by the owner, agent, or assign of real property to a prospective purchaser of the property of any false statement or information, knowing the same to be false, relative to the zoning land use, or other status of real property to the effect that the property may lawfully be used for a purpose for which the property may not lawfully be used if the prospective purchaser subsequently purchases the property in reliance on the false statements or information conveyed.
(Code 1956, § 42-112)

Sec. 54-491.1. Prohibited offers to rent property.

(a) *Definitions.* For the purposes of this section, the following terms shall have the following meanings:

(1) *Approved list* means a current list, by address, of licensed or otherwise approved premises in the city that may lawfully be rented for a period of less than 30 days or, in the case of premises located in the Vieux Carre District, 60 days, maintained and updated regularly by the city, posted on the internet site of the city. The approved list shall be updated at least twice per year by the city.

(2) *Offer to rent* means to personally or through an agent, referral service, representative or other person, communicate or advertise, verbally, in writing, or through electronic means, the availability for rental of any premises or portion thereof for living accommodations, or to knowingly allow, commission, authorize, or permit such communication or advertisement.

(3) *Monetary compensation* means payment by cash, check, money order or credit card. Monetary compensation shall also include an offer to rent in connection with the purchase of a movable, including, but not limited to, things such as admission tickets to an event or a bag of carnival beads.

(4) *Living accommodations* means premises or portions thereof with a bed or beds and bathroom facilities for the use of the person or persons occupying the premises or portion thereof.

(5) *Person* means any individual, partnership, corporation, joint limited liability company, trust or other entity: stock association, and includes any trustee, receiver, assignee or personal representa-

tive thereof, including but not limited to any booking or reservation service, lawful lessees, and premises owners.

(6) *Lawful lessee* means a person with a lease for premises containing living accommodations that is in accordance with the zoning laws of the city.

(7) *Premises owner* means a person having lawful ownership title to the premises.

(8) *Premises* means the immovable property owned or leased by the premises owner or lawful lessee, as applicable, of which the living accommodations are a part.

(9) *Vieux Carre District* shall mean the area bounded by Esplanade Avenue, Iberville Street, the Mississippi River, and Rampart Street. Those premises which are located in the Vieux Carre District and which can be lawfully offered for rent for a period of less than 60 days shall appear on the approved list under the heading "Vieux Carre District".

(10) *Rent* means the renting of leasing of a thing as provided in article 2669 et. seq. of Louisiana Civil Code.

(b) It shall be unlawful for any person to knowingly offer to rent for monetary compensation for a period of less than 30 days or, in the case of premises located in the Vieux Carre District, 60 days, any living accommodations in the city if the premises offered for rent are not lawfully licensed or permitted for such use. It shall be the duty of any person offering to rent premises in the city for a period of less than 30 days or, in the case of premises located in the Vieux Carre District, 60 days, personally or through another person, to ascertain through the approved list or otherwise, whether or not the property offered for rental is lawfully licensed or permitted for such use.

(c) (1) An owner, publisher or employee of a newspaper, magazine, or periodical holding a periodicals permit issued by the United States Postal Service shall not be subject to prosecution under the provisions of this section for the publication of an advertisement containing an offer to rent prohibited by this section.

(2) A person who rents property from a premises owner or lawful lessee who is in violation or this section shall not be deemed to be a principal or accessory to the offense provided herein.

(d) In any prosecution pursuant to the provisions of this section, a copy of any offer to rent appearing in any periodical or electronic media shall create a rebuttable presumption that the person had knowledge of the offer to rent.

(e) It shall be the duty of the chief administrative officer to assign responsibility for the enforcement of this section to one or more departments or other agencies of city government.

(f) Any person who violates the provisions of this section shall receive a written warning regarding such violation. For a second offense, such person shall be fined not less than $500.00. On a third or subsequent conviction of a violation of this section, the offender shall be fined not less than $500.00 and sentenced to not less than 30 days in jail. Notwithstanding anything contained herein, any person offering to rent premises which appear on the approved list published at the time of such offer shall not be subject to prosecution hereunder.

(g) In addition to the criminal penalties contained herein, it shall be the duty of the city attorney to seek injunctive relief in the civil district court to prevent repeated violations of this section.

(h) Nothing contained in this section shall be construed to repeal, amend, or modify any zoning, licensing or other ordinance of the city.

(i) No later than August 1, 2004, the city shall publish the approved list. It shall also be the duty of the chief administrative officer of the city to order the preparation of a semiannual report to the city council stating:

(1) The names of any person or persons who have been found in violation of this section;

(2) The number of complaints made under this section;

(3) The administrative action taken by the city;

(4) The number of complaints referred to the city attorney's office for prosecution; and

(5) The outcome or disposition of said referrals. Said report shall be posted on the internet site of the city.

(M.C.S., Ord. No. 21606, § 1, 7-1-04)

Sec. 54-492. Sale of food, beverages in certain areas.

(a) In the area bounded by the downriver side of Canal Street, the lake side of North Rampart Street, the downriver side of Esplanade Avenue, and the Mississippi River, it shall be unlawful for any person to:

(1) Sell any food or beverage from any window, door or other aperture which opens onto a public street or other public way;

(2) Sell any food or beverage from a temporary or movable bar, counter or other structure located within six feet of a window, door or other aperture which opens onto a public street or other public way;

(3) Transfer possession of any food or beverage which is the subject of a sale when either the seller or purchaser is not located on the premises of an establishment licensed to sell the food or beverage; or

(4) Sell any food or beverage from a temporary or movable bar, counter or other structure located in an open space, alley or patio on the premises of an establishment licensed to sell the food or beverage.

(b) Each such sale or transfer shall be a violation of the provisions of this section and shall constitute a separate offense and, upon conviction thereof, shall be punishable by a fine of not more than $100.00 or by imprisonment for not more than ten days, or both, at the discretion of the court.

(Code 1956, § 42-109)

Cross references—Businesses, ch. 30; bakeries, § 30-291 et seq.; food service establishments, § 30-651 et seq.; food regulations, § 82-36 et seq.; peddlers and itinerant vendors of food, § 110-186 et seq.

Sec. 54-493. Sale of items of speculative value.

(a) It shall be unlawful for any person to commit the offense of sale of items of speculative value.

(b) Sale of items of speculative value is the sale or offering for sale of any item, box, bag, or object wherein it is represented that the item, box, bag or object may or may not contain some thing of value if the nature, description, or value of the thing concealed in the item, box, bag, or other subject is not disclosed prior to the sale or offering for sale.

(Code 1956, § 42-113)

Sec. 54-494. Automobile windshield-window washing prohibited on public streets.

(a) It shall be unlawful for any person to stand in a public street or roadway for the purpose of providing the service of automobile windshield or window washing or cleaning. It shall be unlawful for any person to use the public streets, sidewalks, roadways, or neutral grounds for the purpose of beckoning or attempting to stop drivers in traffic, by attracting notice and attention, for the express purpose of providing automobile windshield-window washing or cleaning services in the public streets or roadways.

(b) A police officer who finds any person under 18 years of age violating the provisions of this section shall order such person to cease and desist.

(c) Any person under 18 years of age who violates this section may be taken into custody and, subsequent to recording information necessary to carry out the purposes of this subsection, shall be promptly released to his parent or guardian. The released person, under 18 years of age, shall be referred to the juvenile court.

(d) No parent or guardian shall knowingly permit any minor under the age of 18 years to violate the provisions of this section. Any parent or guardian who shall violate this subsection after having received written notice of their child or ward having committed a violation of this section,

occurring within the preceding 12 months, may receive a written citation and is subject to a fine of $50.00 for each offense.

(e) A police officer who finds any person 18 years of age or older violating provisions of this section shall order the person to cease and desist. Persons failing to comply with this order may be issued a citation containing their signed promise to pay the fine provided or to appear in court for trial.

(f) The officer is not required to take the person into physical custody for the violation unless the person charged does not furnish satisfactory evidence of identity or the officer has reasonable grounds to believe the person charged will disregard a written promise to appear.

(g) A person receiving a citation under this section shall pay the fine provided for in the citation to the municipal court, or stand trial for the violation.

(h) Any person 18 years of age or older violating the provisions of this section after being ordered to cease and desist is guilty of a misdemeanor and, upon conviction, shall be fined $50.00.

(i) This section does not prohibit the solicitation by any person for lawful employment or business from occupant of any vehicle which is properly and lawfully parked or properly and lawfully standing out of the free flow of traffic.
(Code 1956, § 42-117)

Sec. 54-495. Unlawful disposal of medical waste; hypodermic needles.

It shall be unlawful for any person to place, deposit, dump, discard, throw or otherwise dispose of any medical waste or hypodermic needles or syringes into or upon any public waterway, lake, bayou or drainage canal or body of water in the city unless such disposal is authorized, at the particular disposal site and in the particular manner in which it is done, by the department of sanitation or by an agency of the state or federal government having the power to authorize such disposal. For the purposes of this section, medical waste or those wastes resulting from the operation of medical clinics, hospitals, abattoirs and other facilities producing waste may consist of but are not limited to human and animal parts, contaminated bandages, pathological specimens, hypodermic needles, contaminated clothing and surgical gloves.
(Code 1956, § 42-118)

Sec. 54-496. Chemical GBL prohibited for human consumption.

(a) It shall be unlawful for any person to knowingly or intentionally, sell, manufacture, distribute, dispense or possess gamma butyrolactone, commonly known as GBL and also known by the chemical names 2(3H)-furanone; dihydro; butyrolactone; gamma-butyrolactone; 4-butyrolactone; dihydro-2(3H)-furanone; 4-butanolide; 2(3H)-furanone, dihydro; tetrahydro-2-furanone; and butyrolactone gamma, for human consumption. The prohibition contained in this section is inclusive of any material compound, mixture or preparation which contains the aforementioned chemical and is possessed, presented, promoted, produced, manufactured, sold, distributed, or dispensed for human consumption.

(b) Any person who shall violate the provision of this section shall, upon conviction thereof for the first offense, be punished by a fine of not less than $500.00 and may be imprisoned for up to 150 days; for the second conviction, the offender shall be fined not less than $500.00 and imprisoned for not less than 30 days; on a third or subsequent conviction, the offender shall be fined not less than $500.00 and imprisoned for not less than 60 days. The judge may waive any imprisonment time for community service hours at the ratio of seven community service hours for one day of imprisonment. The community service may include counseling, cleaning and/or cutting the grass/weeds at city cemeteries, parks, playgrounds and/or streets rights-of-way.
(M.C.S., Ord. No. 19,402, § 1, 10-7-99)

Sec. 54-497. Sale or possession of nitrous oxide prohibited; exceptions.

(a) As used in this section, nitrous oxide or laughing gas shall mean the chemical compound bearing the symbol N_2O in cylinders or contain-

ers. Food products containing nitrous oxide as an aerosol shall not be considered nitrous oxide or laughing gas for the purposes of this section.

(b) Except as provided in subsection (c) of this section, it shall be unlawful for any person to have in his possession or to sell, offer for sale, or deliver or give nitrous oxide or laughing gas to any person within the city.

(c) The provisions of this section shall not make unlawful:

(1) The sale or delivery of nitrous oxide (laughing gas) to or by the following persons or their agents or employees, or

(2) The possession of nitrous oxide (laughing gas) by the following persons or their agents or employees:

a. Licensed pharmacists;

b. Licensed physicians or licensed dentists for medical or dental uses;

c. Hospitals for lawful administration by licensed physicians;

d. Accredited schools and colleges for use in chemistry courses or similar educational courses;

e. Individuals using nitrous oxide (laughing gas) as a propellant for restaurant, food service and houseware products, such as cream whippers;

f. Manufacturers, wholesalers, retail dealers, warehouse operators, or other persons in the business of distributing nitrous oxide (laughing gas) to or storing nitrous oxide (laughing gas) for the persons enumerated in this subsection.

(d) A violation of this section shall be punished by a fine of not less than $100.00. Additional penalties may be imposed in accordance with section 54-25.
(Code 1956, § 42-151)

Sec. 54-498. Nitrous oxide; amyl nitrite and butyl nitrite.

(a) It shall be unlawful for any person to inhale, ingest, use, possess or transfer any compound or mixture, liquid, or chemical which contains nitrous oxide, amyl nitrite, or butyl nitrite. These provisions do not apply to the possession and use of amyl nitrite or butyl nitrite prescribed by a licensed medical practitioner as a part of the care or treatment of a disease, condition, or injury or to the use as part of a manufacturing process or industrial operation nor to the use or possession of nitrous oxide by a person or for a purpose which is lawful under section 54-497.

(b) It shall be unlawful for any person to possess, buy, sell or otherwise transfer any substance specified in subsection (a) of this section for the purpose of inducing or aiding any other person to inhale or ingest such substances or otherwise violate the provisions of subsection (a) of this section.

(c) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Amyl nitrite includes isoamyl nitrite. Common names include, but are not limited to, ammies, poppers, sniffers, snappers, amps and nitrite amps.

Butyl nitrite includes N-butyl nitrite, nitrous acid, N-butyl ester, isobutyl nitrite, secondary butyl nitrites, tertiary butyl nitrite or any mixture containing the aforementioned chemicals. Common names include, but are not limited to, rush and locker room.

Nitrous oxide includes dinitrogen monoxide, hypponitrous acide anhydride or any mixture containing the aforementioned chemicals. Common names include, but are not limited to, laughing gas, and factitious air.
(Code 1956, § 42-152)

Cross reference—Model glue regulations, § 102-36 et seq.

State law reference—Similar provisions, R.S. 40:989.

Sec. 54-498.1. Compounds containing angel's trumpet.

(a) It shall be unlawful for any person to knowingly or intentionally combine, produce, manufacture, or distribute any compound containing the plant material known as angel's trumpet (also known as brugmansia arborea) for human consumption or with the intent to sell, distribute, or dispense same for human consumption.

(b) The provisions of this section shall not apply to a licensed pharmaceutical company, medical doctor, pharmacist, or other person licensed to manufacture or distribute drugs from manufacturing or distributing a drug approved for use or testing by the U.S. Food and Drug Administration.
(M.C.S., Ord. No. 21622, § 1, 8-5-04)

Sec. 54-499. Sale of tobacco products to minors.

If it shall be unlawful to sell, permit to be sold, give or deliver tobacco products to any person under the age of 18 years. For the purpose of this section, the submission of a valid driver's license which includes thereon a picture of the holder, a selective service card, or a special identification card issued by the state department of public safety, which license or identification, on its face, establishes the age of the person submitting the identification as 18 years or older, shall be required as proof of age.
(Code 1956, § 42-153)

Sec. 54-500. Cigarette vending machines.

(a) The owner of any vending machine dispensing tobacco products shall prominently display or affix a sticker or label on each such vending machine stating the following:

> The sale or distribution of tobacco products to persons under the age of eighteen (18) years is prohibited by ordinance.

(b) The sticker or label shall be of a size of not less than six inches by six inches. It shall be unlawful for an owner of a vending machine dispensing tobacco products to fail to affix the sticker or label required by this section.
(Code 1956, § 42-154)

Sec. 54-501. Declaration of emergency; violation of emergency orders; price gouging.

Whoever violates any provision of an emergency order issued by a competent official under authority of a declaration of emergency made pursuant to state law, or whoever during such a declared state of emergency sells anything at a price that violates R.S. 29:732, shall be guilty of a misdemeanor.
(Code 1956, § 42-500)

Cross reference—Businesses, ch. 30.

Sec. 54-502. Repairs or service of vehicles in certain parking lots prohibited.

(a) It shall be unlawful for any person in possession of a use and occupancy permit to allow an automobile/vehicular parts sale/non-service retail business or an agent or employee of such person to provide or allow vehicle repair or service in the parking or driveway area of the premises of the business. The word "service" as used herein shall include, but not be limited to, adding oil or other fluids to a vehicle.

(b) The provisions of this section shall neither apply to emergency repairs or service to enable a vehicle to be driven (i.e. changing a flat tire or jump starting a battery) nor to emergency repairs or service performed by a licensed towing service.
(Ord. No. 21,222, § 1, 8-7-03)

Sec. 54-503. Speed contests and vehicular stunt activities.

(a) No person shall engage in any motor vehicle speed contests on an alley, highway, roadway or street and no person shall aid or abet in any motor vehicle speed contest on any alley, highway, roadway or street.

(b) No person shall engage in any motor vehicle exhibition of speed on an alley, highway, roadway or street, and no person shall aid or abet in any motor vehicle exhibition of speed on any alley, highway, roadway or street.

(c) No person shall engage in any stunt activity while operating a motor vehicle on an alley, highway, roadway or street, nor aid or abet any

stunt activity on any alley, highway, roadway or street. For purposes of this section, "stunt activity" shall mean any of the following:

(1) Burning out the tires of a motor vehicle or engaging in any similar activity in which a vehicle is kept stationary and while its wheels spin, causing the tires to smoke.

(2) Performing "donuts" or any similar activity in which a vehicle is driven in tight circles while continuing to accelerate.

(3) Operating a motor vehicle in a reckless or careless manner, or violating any traffic regulation for purposes of attracting bystanders or onlookers, or for the entertainment or gratification of bystanders.

(d) No person shall, for the purpose of facilitating or aiding or as an incident to any stunt activity or any motor vehicle speed contest or exhibition upon an alley, highway, roadway or street, in any manner obstruct or place any barricade or obstruction, including motor vehicles blocking streets, roadways, or rights-of-way, or assist or participate in placing any barricade or obstruction upon any alley, highway, roadway or street.

(e) No person shall organize or help facilitate the gathering of individuals for the purpose of participation or spectatorship of a speed racing contest or vehicle stunt activity through social media or any other medium.

(f) Upon a first conviction, or plea of guilty or nolo contendere, the offender shall be fined not more than $500.00 and shall be [imprison]ed for 30 days; for the second or subsequent conviction, or plea of guilty or nolo contendere, the offender shall be fined not less than $500.00 and imprisoned for not less than 90 days.

(g) Any motor vehicle used in speed racing or vehicular stunt activity as defined in this section may be impounded by law enforcement to the extent authorized by applicable law. An impounded vehicle may be held in impound for not less than 15 days or until final adjudication of the case, with the costs of impound assessed against the violator.
(M.C.S., Ord. No. 22028, § 1, 8-4-05; M.C.S., Ord. No. 29062, § 1, 6-23-22)

Sec. 54-504. Spectators prohibited at illegal speed contests or exhibitions of speed.

(a) *Preamble.*

(1) The city council finds and declares that:

a. Pursuant to City Code section 54-503, motor vehicle speed contests and exhibitions of speed conducted on alleys, highways, roadways and streets are illegal. Motor vehicle speed contests and exhibitions of speed are more commonly known as street races or drag races and the incidence of such illegal races has been escalating over the past few years.

b. Street racing threatens the health and safety of the public, interferes with pedestrian and vehicular traffic, damages private property, creates a public nuisance and interferes with the right of private business owners to enjoy the use of their property within the city.

c. Illegal street races occur on a regular basis on various streets within the city. Large numbers of racers and spectators gather on these streets late at night and in the early morning hours, blocking the streets and sidewalks to traffic, forming a racetrack area, placing bets, and otherwise encouraging, aiding and abetting the racing process.

d. Illegal street races may attract large numbers of spectators. The mere presence of spectators at these events fuels the illegal street racing and creates an environment activities can flourish.

(2) This section is adopted to prohibit spectators at illegal street races with the aim of significantly curbing criminal activity. It targets a very clear, limited population and gives proper notice to citizens as to what activities are lawful and what activities are unlawful. In discouraging spectators, the act of organizing and participating in illegal street races will be discouraged.

(b) *Definitions.*

(1) *Illegal motor vehicle speed contest* or *illegal exhibition of speed* means any speed contest or exhibition of speed referred to in section 54-503 and shall include vehicular stunt shows.

For the purposes of this section, *motor vehicles* shall be defined pursuant to section 154-2 but shall also include all-terrain vehicles (ATVs), dirt bikes, and minibikes.

(2) *Preparations for an illegal motor vehicle speed contest or exhibition of speed* include, but are not limited to, situations in which:

a. A group of motor vehicles or individuals has arrived at a location for the purpose of participating in or being spectators at the event;

b. A group of individuals has lined one or both sides of a public street or highway for the purpose of participating in or being a spectator at the event;

c. A group of individuals has gathered on private property open to the general public without the consent of the owner, operator, or agent thereof for the purpose of participating in or being a spectator at the event;

d. One or more individuals has impeded the free public use of a public street or highway by actions, words, or physical barriers for the purpose of conducting the event;

e. Two or more vehicles have lined up with motors running for an illegal motor vehicle speed contest or exhibition of speed;

f. One or more drivers is revving his engine or spinning his tires in preparation for the event; or

g. An individual is stationed at or near one or more motor vehicles serving as a race starter.

(3) *Spectator* means any individual who is present at an illegal motor vehicle speed contest or exhibition of speed, or at a location where preparations are being made for such activities, for the purpose of viewing, observing, watching, or witnessing the event as it progresses. Spectator includes any individual at the location of the event without regard to whether the driving a vehicle, riding as a passenger in a vehicle, walking, or arriving by some other means.

(4) *Vehicular stunt shows* means any gathering of one or more vehicles performing any stunt activity referred to in City Code section 54-503.

(c) *[Spectator at events.]* Any individual who is knowingly present as a spectator, either on a public street or highway, or on private property open to the general public without the consent of the owner, operator, or agent thereof, at an illegal motor vehicle speed contest or exhibition of speed is guilty of a misdemeanor. Upon a first conviction, or plea of guilty or nolo contendere, the offender shall be fined not more than $500.00 and may be imprisoned for up to 150 days, at the discretion of the court; for the second or subsequent conviction, or plea of guilty or nolo contendere, the offender shall be fined not less than $500.00 and imprisoned for not less than 90 days.

(d) *[Spectator at preparations.]* Any individual who is knowingly present as a spectator, either on a public street or highway, or on private property open to the general public without the consent of the owner, operator, or agent thereof, where preparations are being made for an illegal

motor vehicle speed contest or exhibition of speed is guilty of a misdemeanor. Upon a first conviction, or plea of guilty or nolo contendere, the offender shall be fined not more than $500.00 and may be imprisoned for up to 150 days, at the discretion of the court; for the second or subsequent conviction, or plea of guilty or nolo contendere, the offender shall be fined not less than $500.00 and imprisoned for not less than 90 days.

(e) *[Distance limitations.]* An individual is present at the illegal motor vehicle speed contest or exhibition of speed if that individual is within 200 feet of the location of the event, or within 200 feet of the location where preparations are being made for the event.

(f) *Exemption.* Nothing in this section prohibits law enforcement officers or their agents from being spectators at illegal motor vehicle speed contests or exhibitions of speed in the course of their official duties.

(M.C.S., Ord. No. 22028, § 1, 8-4-05; M.C.S., Ord. No. 29062, § 1, 6-23-22)

Sec. 54-505. Simple possession of marijuana and/or synthetic cannabinoids.

(a) It shall be unlawful for any person knowingly or intentionally to possess, tetrahydrocannabinol or chemical derivatives thereof, or synthetic cannabinoids, as defined in La. R.S. 40:964, Schedule I, in an amount that would constitute a misdemeanor under state law, unless such substance was obtained directly or pursuant to a valid recommendation or order from a practitioner, or as provided in La. R.S. 40:1046.1, while acting in the course of his professional practice, or as otherwise authorized by law.

(b) Upon a first conviction of a violation of subsection (a) of this section with regard to marijuana, tetrahydrocannabinol, or chemical derivatives thereof, except as provided in La. R.S. 40:966(F), upon conviction the offender shall be fined not more than $40.00.

(1) A conviction for a violation of subsection (a) with regard to marijuana, tetrahydrocannabinol, or chemical derivatives thereof, except as provided in La. R.S. 40:966(F), which occurred more than two years prior to a violation of this section shall not be considered a predicate conviction for purposes of determining a "first" conviction under this section.

(c) Upon a second conviction of a violation of subsection (a) of this section with regard to marijuana, tetrahydrocannabinol, or chemical derivatives thereof, except as provided in La. R.S. 40:966(F), upon conviction the offender shall be fined not more than $60.00 for each violation.

(d) Upon a third conviction of a violation of subsection (a) of this section with regard to marijuana, tetrahydrocannabinol, or chemical derivatives thereof, except as provided in La. R.S. 40:966(F), upon conviction the offender shall be fined not more the $80.00.

(e) Upon a fourth of subsequent conviction of a violation of subsection (a) of this section with regard to marijuana, tetrahydrocannabinol, or chemical derivatives thereof, except as provided in La. R.S. 40:966(F), upon conviction the offender shall be fined not more than $100.00 for each violation.

(f) Upon conviction for a violation of subsection (a) with regard to synthetic cannabinoids, the offender shall be punished, except as provided for in La. R.S. 40:966(F), as follows:

(1) Upon a first conviction, the offender shall be fined not more than $500.00, confined in the parish jail for not more than six months, or both.

(2) Upon a second conviction the offender shall be fined not more than $750.00, confined in the parish jail for not more than six months, or both.

(3) Upon a third or subsequent conviction, the offender shall be fined not more than $1000.00, confined in the parish jail for not more than six months, or both.

(g) This section shall be enforced by use of summons in lieu of custodial arrest, in accordance with section 54-28. Without limiting the mandatory duty imposed by the preceding sentence, an officer shall have the discretion not to issue a

summons for violations of this section if he or she reasonably believes that the issuance thereof would not result in a conviction.

(h) If a defendant upon whom a fine has been imposed under this section alleges indigency, or otherwise fails to pay the imposed fine, the court must first determine whether the defendant has willfully refused to pay or make bona fide efforts to legally acquire resources to pay; if the defendant has not willfully refused to pay and has made bona fide efforts to attempt to pay the fine, the court shall use its discretion to fashion alternative penalties other than imprisonment, including installment payments or community service. Imprisonment, and/or any other alternative penalties that impose restrictive treatment on defendants greater than they otherwise would have received under this section if not for their inability to pay, are prohibited.

(i) In the event that any one or more provisions of this section shall, for any reason, be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality, or unenforceability shall not affect any other provision of this section. Rather, this section shall be construed and enforced as if such invalid, illegal or unenforceable provision had never been contained therein.
(M.C.S., Ord. No. 24246, § 1, 12-16-10; M.C.S., Ord. No. 26816, § 1, 3-17-16; M.C.S., Ord. No. 28745, § 1, 8-5-21, eff. 9-15-21)

Sec. 54-506. Prospective pardon for simple possession of marijuana.

(a) It is the policy of the Council of the City of New Orleans that the arrest, prosecution, and punishment of individuals solely charged with simple possession of marijuana presents greater harm to the health, safety, and welfare of the city than the act of possession itself.

(b) Any violation of section 54-505 occurring on or after September 1, 2021 shall be deemed pardoned immediately upon and by operation of law the issuance of a summons.

(c) Any summons issued solely for a crime pardoned under subsection (b) shall be deemed revoked and automatically void without need for any court appearance by the accused. Upon the issuance of a summons for a crime pardoned under subsection (b), no additional police action shall be required relative to the marijuana charge pardoned hereunder.

(d) A pardon under subsection (b) shall not preclude a police officer from taking all customary incidental investigatory actions that would otherwise be available to an officer with a reasonable suspicion or probable cause to believe that a crime of marijuana possession has occurred or from charging an individual with any other crime for which probable cause exists.
(M.C.S., Ord. No. 28743, § 1, 8-5-21, eff. 9-15-21)

Secs. 54-507—54-524. Reserved.

ARTICLE VIII. DOMESTIC VIOLENCE

Sec. 54-525. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Domestic violence means the occurrence of one or more of the following acts by a family or household member, but does not include acts of self-defense:

(1) Attempting to cause or causing physical harm to another family or household member;

(2) Placing another family or household member in fear of physical harm;

(3) Causing another family or household member to engage in involuntary sexual activity by force, threat of force, or duress; or,

(4) Committing one or more of the following crimes against another family or household member:

a. Arson, of any grade;

b. Assault and battery, of any grade;

c. Burglary, of any grade;

d. Criminal damage to property;

e. Homicide, of any grade;

f. Kidnapping, of any grade;

g. Sex offenses, of any grade;

h. Any offense involving stolen property;

i. Any weapon law violation;

j. Disorderly conduct;

k. Stalking; and

l. Criminal trespass of property.

Family or household members means as follows:

(1) Adults or minors who are current or former spouses;

(2) Adults or minors who live together or who have lived together;

(3) Adults or minors who are dating or who have dated;

(4) Adults or minors who are engaged in or who have engaged in any type of sex act;

(5) Adults or minors who are related by blood or adoption;

(6) Adults or minors who are related or formerly related by marriage; or

(7) Persons who have a child in common; and, minor children of a person with whom the offender has been or is in a relationship that is described in subsections (1) through (6) of this definition.

(M.C.S., Ord. No. 16,673, § 1(42-525(1)), 10-6-94)

Cross reference—Definitions generally, § 1-2.

Sec. 54-526. Acts of domestic violence prohibited.

No person shall commit an act of domestic violence as defined in section 54-525.

(M.C.S., Ord. No. 16,673, § 1(42-525(2)), 10-6-94)

Sec. 54-527. Penalties for acts of domestic violence.

Any person who violates this article shall be subject to the following penalties:

(1) Imprisonment in the parish jail for not more than five months, provided that for a first offense, some or all of the imprisonment may be suspended;

(2) A fine of not more than $500.00, for a first offense; or not less than $300.00 and not more than $500.00, for subsequent offenses;

(3) Community service;

(4) Participation in a court-approved domestic abuse counseling program; and/or

(5) If the court in its discretion deems it appropriate, it may offer to suspend a portion of the sentence imposed, on the condition that the offender makes complete financial restitution necessary to cover the costs of restoring any property damaged or any other expenses caused by the actions of the abusive party.

(M.C.S., Ord. No. 16,673, § 1(42-525(3)), 10-6-94)

Sec. 54-528. Duties of law enforcement officers.

(a) A law enforcement officer who responds to an allegation of domestic abuse and/or has probable cause to believe that a violation of this article has been committed or attempted, shall, in the officer's sound discretion, use all reasonable means to protect the victim and prevent further violence, including but not limited to:

(1) Arresting the offending party whether or not the offense occurred in the officer's presence;

(2) Taking the action necessary to provide for the reasonable safety of the victim and any other family or household member;

(3) Confiscating any weapon identified by the victim or a witness as being involved in the alleged domestic violence;

(4) With the victim's consent, transporting or obtaining transportation for the victim and any child in the victim's custody in obtaining medical treatment, including obtaining transportation to a medical facility in the city; and

(5) Giving the victim immediate and adequate written notice of the rights of victims and of the remedies and services available to victims of domestic violence.

(b) A law enforcement officer who has reason to believe that a violation of this article has occurred, shall make a written report of the alleged incident, including a statement from the complainant, the action taken by the officer and other relevant information on a standard form prescribed by the superintendent of police.

(c) Where the allegation of domestic abuse is known to involve a member of the police department or another commissioned peace officer, the investigation and report shall be made by a law enforcement officer, with a rank of lieutenant or higher. However, in all cases, the investigation and report shall be made by an officer with a rank higher than the alleged offender and a copy of the report shall be provided to the superintendent of police.

(d) The superintendent of police shall compile and maintain statistical information pertaining to incidences of domestic violence.
(M.C.S., Ord. No. 16,673, § 1(42-526), 10-6-94)

Sec. 54-529. Conditions of bail.

(a) Whenever an arrest is made for a violation of sections 54-525 through 54-527 the arresting officer shall, upon taking the arrested person to a facility for booking, notify the custodian of the facility that the person in custody has been arrested on a charge of domestic violence.

(b) The custodian of the facility shall notify the municipal court judge that the individual was arrested for an offense in violation of sections 54-525 through 54-527. He shall further advise the judge of any prior record of arrest and/or convictions of the arrestee.

(c) The municipal court judge shall set the bail and a condition of bail shall be that the arrestee be required to execute a peace bond.

(d) Upon release, the arrestee shall be notified of his arraignment date.

(e) During the duration of a peace bond and/or stay away order, either party may petition the municipal court for an ex parte order allowing that party to return to the residence to recover the party's personal clothing and/or necessities providing that the party is accompanied by a law enforcement officer to ensure the safety of all involved persons. The enforcement agency providing this protection shall require payment for the actual cost of services rendered under this section, and these costs may be assessed against the offending party as court cost, but the inability to pay shall not prohibit the law enforcement officer from providing the protection provided for in this article.

(f) The clerk of court and the city attorney shall notify the individual residing in the residence of the date and time the party and the law enforcement officer will arrive at the residence.
(M.C.S., Ord. No. 16,673, § 1(42-128), 10-6-94)

Sec. 54-530. Stay away orders and peace bonds.

(a) *Terms and conditions.* If a defendant is found guilty of an offense involving domestic violence as prohibited be section 54-526 of this Code, the municipal court may require that the defendant refrain from going to the residence or household of the victim, the victim's school, or the victim's place of employment, or otherwise intentionally contacting the victim in any manner whatsoever; and, that the defendant shall refrain from having any further contact with the victim. Such an order shall be known as a stay away order.

(b) *Violations.* It shall be unlawful to commit the crime of violation of a stay away order or peace bond. A violation of a stay away order or peace bond is the disobedience of the stay away order or peace bond issued by the municipal court of the city pursuant to section 54-529 or subsection (a) of this section.

(c) *Penalties.* Except as otherwise provided in this section, violation of this section is punishable in municipal court as follows:

(1) A fine of not more than $500.00, for a first offense;

(2) Not less than $300.00 and not more than $500.00, for each subsequent offense; or

(3) Imprisonment in the parish jail for not more than five months.

If, as part of any sentence imposed under this section, a fine is imposed, the court may direct that the fine be paid for the support of the spouse or children of the offender.

(d) *Enforcement.* Law enforcement officers shall use every reasonable means to enforce a stay away order or peace bond issued by the municipal court of the city, and shall arrest any person if the officer has reason to believe that the person is in violation of the terms of a stay away order or peace bond issued by the municipal court.

(e) *Bench warrant.* Upon evidence that a person is in violation of the terms of a stay away order or peace bond issued by the municipal court, the court may order the issuance of a bench warrant for a defendant's arrest, remand the defendant to custody or modify the terms of bail.
(M.C.S., Ord. No. 16,673, § 1(42-129, 42-130), 10-6-94)

Chapters 55–57

RESERVED

Chapter 58

ELECTIONS*

Article I. In General

Sec. 58-1. City portion of certain salaries.
Secs. 58-2–58-35. Reserved.

Article II. Election Precincts

Sec. 58-36. Establishment of precincts.
Sec. 58-37. Carrying of firearms in vicinity of polls prohibited.
Sec. 58-38. Fees for voter registration services.
Sec. 58-39. Selection of polling places.

*Cross reference—Mayor, § 2-31 et seq.

ARTICLE I. IN GENERAL

Sec. 58-1. City portion of certain salaries.

The portion of the annual salaries of the registrar of voters for the parish, the chief deputy registrar of voters for the parish, and the confidential assistant to the registrar of voters for the parish to be paid by the city is hereby fixed as follows for the aforementioned parochial positions in the parish in accordance with R.S. 18:55, R.S. 18:56, and R.S. 18:59:

(1)	Registrar of voters.....	$19,120.00
(2)	Chief deputy registrar of voters.....	11,550.00
(3)	Confidential assistant	8,100.00

(Code 1956, § 54A-1)

Secs. 58-2—58-35. Reserved.

ARTICLE II. ELECTION PRECINCTS*

Sec. 58-36. Establishment of precincts.

The election precincts of the city under R.S. 18:532, are as follows:

FIRST WARD

Ward 1/Precinct 1: Bounded by the centerline of Thalia Street, to the centerline of Constance Street, to the centerline of Felicity Street, to the centerline of Nuns Street, to the centerline of the Mississippi River, back to the centerline of Thalia Street.

Ward 1/Precinct 2: Bounded by the centerline of Felicity Street, to the centerline of Camp Street, to the centerline of Thalia Street, to the centerline of Constance Street, back to the centerline of Felicity Street.

Ward 1/Precinct 3: Reserved for future use.

Ward 1/Precinct 4: Reserved for future use.

Ward 1/Precinct 5: Bounded by the centerline of Felicity Street, to the centerline of Carondelet Street, to the centerline of Thalia Street, to the centerline of Camp Street, back to the centerline of Felicity Street.

Ward 1/Precinct 6: Bounded by the centerline of Felicity Street, to the centerline of South Liberty Street, to the centerline of Thalia Street, to the centerline of Carondelet Street, back to the centerline of Felicity Street.

SECOND WARD

Ward 2/Precinct 1: Bounded by the centerline of Thalia Street, to the centerline of Prytania Street, to the centerline of Camp Street, to the centerline of Julia Street, to the centerline of the Mississippi River, back to the centerline of Thalia Street.

Ward 2/Precinct 2: Bounded by the centerline of Thalia Street, to the centerline of Simon Bolivar Avenue, to the centerline of Interstate 10, to the centerline of Loyola Avenue, to the centerline of Julia Street, to the centerline of Camp Street, to the centerline of Prytania Street, back to the centerline of Thalia Street. (*Editorial note:* Formerly Ward 2, Precinct 2 and Ward 2, Precinct 3.)

Ward 2/Precinct 3: Reserved for future use.

Ward 2/Precinct 4: Bounded by the centerline of Felicity Street, to the centerline of South Claiborne Avenue, to the centerline of Earhart Boulevard, to the centerline of South Broad Street, to the centerline of Interstate 10, to the centerline of Simon Bolivar Avenue, to the centerline of Thalia Street, to the centerline of South Liberty Street, back to the centerline of Felicity Street. (*Editorial note:* Formerly Ward 1/Precinct 7 and Ward 2/Precinct 4.)

Ward 2/Precinct 5: Reserved for future use.

Ward 2/Precinct 6: Bounded by the centerline of Martin Luther King, Jr. Boulevard, to the centerline of South Galvez Street, to the centerline of Earhart Boulevard, to the centerline of South Claiborne Avenue, back to the centerline of Martin Luther King, Jr. Boulevard.

Ward 2/Precinct 6A: Reserved for future use.

*__Cross reference—__City council, § 2-56 et seq.

Ward 2/Precinct 7: Bounded by the centerline of Martin Luther King, Jr. Boulevard, to the centerline of Washington Avenue, to the centerline of South Carrollton Avenue, to the centerline of Interstate 10, to the centerline of South Broad Street, to the centerline of Earhart Boulevard, to the centerline of South Galvez Street, back to the centerline of Martin Luther King, Jr. Boulevard. (*Editorial note:* Formerly Ward 2, Precinct 6A and Ward 2, Precinct 7.)

THIRD WARD

Ward 3/Precinct 1: Bounded by the centerline of Julia Street, to the centerline of Loyola Avenue, to the centerline of Interstate 10, to the centerline of South Claiborne Avenue, to the centerline of Canal Street, to the centerline of the Public Belt Railroad tracks, back to the centerline of Julia Street.

Ward 3/Precinct 2: Reserved for future use.

Ward 3/Precinct 3: Reserved for future use.

Ward 3/Precinct 4: Reserved for future use.

Ward 3/Precinct 5: Reserved for future use.

Ward 3/Precinct 6: Reserved for future use.

Ward 3/Precinct 7: Reserved for future use.

Ward 3/Precinct 8: Bounded by the centerline of Interstate 10, to the centerline of South Norman C Francis Parkway, to the centerline of Tulane Avenue, to the centerline of South Broad Street, to the centerline of Canal Street, to the centerline of South Claiborne Avenue, back to the centerline of Interstate 10. (*Editorial note:* Formerly Ward 3, Precinct 3, Ward 3, Precinct 5, and Ward 3, Precinct 8.)

Ward 3/Precinct 9: Bounded by the centerline of South Salcedo Street, to the centerline of Canal Street, to the centerline of South Broad Street, to the centerline of Tulane Avenue, back to the centerline of South Salcedo Street.

Ward 3/Precinct 10: Reserved for future use.

Ward 3/Precinct 11: Reserved for future use.

Ward 3/Precinct 12: Bounded by the centerline of Tulane Avenue, to the centerline of South Norman C Francis Parkway, to the centerline of Interstate 10, to the centerline of South Telemachus Street, to the centerline of Canal Street, to the centerline of South Salcedo Street, back to the centerline of Tulane Avenue. (*Editorial note:* Formerly Ward 3/Precinct 10 and Ward 3/Precinct 12.)

Ward 3/Precinct 13: Reserved for future use.

Ward 3/Precinct 14: Bounded by the centerline of South Telemachus Street, to the centerline of Canal Street, to the centerline of South Pierce Street, to the centerline of Banks Street, back to the centerline of South Telemachus Street.

Ward 3/Precinct 15: Bounded by the centerline of South Telemachus Street, to the centerline of Banks Street, to the centerline of South Pierce Street, to the centerline of Interstate 10, back to the centerline of South Telemachus Street.

Ward 3/Precinct 16: Reserved for future use.

Ward 3/Precinct 17: Reserved for future use.

Ward 3/Precinct 18: Bounded by the centerline of South Pierce Street, to centerline of Canal Street, to the centerline of South Carrollton Avenue, to the centerline of Banks Street, to the centerline of South Alexander Street, to the centerline of the L, R & N Co. railroad tracks, to the centerline of South Murat Street, to the centerline of Interstate 10, back to the centerline of South Pierce Street. (*Editorial note:* Formerly Ward 3/Precinct 16 and Ward 3/Precinct 18.)

Ward 3/Precinct 19: Bounded by the centerline of South Alexander Street, to the centerline of Banks Street, to the centerline of South Carrollton Avenue, to the centerline of Canal Street, to the centerline of South Olympia Street, to the centerline of L, R, & N Co. railroad tracks, back to the centerline of South Alexander Street.

Ward 3/Precinct 20: Bounded by the centerline of South Olympia Street, to the centerline of Canal Street, to the centerline of City Park Avenue, to the centerline of Interstate 10, to the centerline of South Murat Street, to the centerline of the L, R & N Co. railroad tracks, back to the centerline of South Olympia Street.

FOURTH WARD

Ward 4/Precinct 1: Reserved for future use.

Ward 4/Precinct 2: Bounded by the centerline of the Mississippi River, to the centerline of Julia Street, to the centerline of the Public Belt railroad tracks, to the centerline of Canal Street, to the centerline of North Robertson Street, to the centerline of St. Louis Street, back to the centerline of the Mississippi River.

Ward 4/Precinct 3: Bounded by the centerline of North Robertson Street, to the centerline of Canal Street, to the centerline of North White Street, to the centerline of St. Louis Street, back to the centerline of North Robertson Street. (*Editorial note:* Formerly Ward 4, Precinct 3 and Ward 4, Precinct 4.)

Ward 4/Precinct 4: Reserved for future use.

Ward 4/Precinct 5: Bounded by the centerline of Canal Street, to the centerline of North Rendon Street, to the centerline of St. Louis Street, to the centerline of North White Street, back to the centerline of Canal Street.

Ward 4/Precinct 6: Bounded by the centerline of Canal Street, to the centerline of North Cortez Street, to the centerline of St. Louis Street, to the centerline of North Rendon Street, back to the centerline of Canal Street.

Ward 4/Precinct 7: Bounded by the centerline of Canal Street, to the centerline of North Alexander Street, to the centerline of St. Louis Street, to the centerline of North Cortez Street, back to the centerline of Canal Street.

Ward 4/Precinct 8: Bounded by the centerline of Canal Street, to the centerline of City Park Avenue, to the centerline of St. Louis Street, to the centerline of North Alexander Street, back to the centerline of Canal Street.

Ward 4/Precinct 9: Bounded by the centerline of Orleans Avenue, to the centerline of Interstate 610, to the centerline of Canal Boulevard, to the centerline of City Park Avenue, back to the centerline of Orleans Avenue. (*Editorial note:* Formerly Ward 4/Precinct 9, Ward 4/Precinct 10, and Ward 4/Precinct 10A.)

Ward 4/Precinct 10: Reserved for future use.

Ward 4/Precinct 11: Bounded by the centerline of Canal Boulevard, to the centerline of City Park Avenue, to the centerline of the Pontchartrain Expressway, to the centerline of Interstate 610, back to the centerline of Canal Boulevard.

Ward 4/Precinct12: Reserved for future use.

Ward 4/Precinct 13: Reserved for future use.

Ward 4/Precinct 14: Bounded by the centerline of Harrison Avenue, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Interstate 610, to the centerline of Canal Boulevard, back to the centerline of Harrison Avenue. (*Editorial note:* Formerly Ward 4/Precinct 14 and Ward 4/Precinct 14A.)

Ward 4/Precinct 15: Bounded by the centerline of Canal Boulevard, to the centerline of Interstate 610, to the centerline of Pontchartrain Boulevard, to the centerline of Harrison Avenue, back to the centerline of Canal Boulevard. (*Editorial note:* Formerly Ward 4/Precinct 15, Ward 4/Precint 16, and Ward 4/Precinct 16A.)

Ward 4/Precinct 16: Reserved for future use.

Ward 4/Precinct 17: Bounded by the centerline of Harrison Avenue, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Lane Street, to the centerline of Pontchartrain Boulevard, back to the centerline of Harrison Avenue. (*Editorial note:* Formerly Ward 4/Precinct 17 and Ward 4/Precinct 19.)

Ward 4/Precinct 17A: Bounded by the centerline of Lane Street, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Filmore Avenue, to the centerline of Canal Boulevard, back to the centerline of Lane Street.

Ward 4/Precinct 18: Bounded by the centerline of Filmore Avenue, to the centerline of Canal Boulevard, to the centerline of Allen Toussaint Boulevard, to the centerline of the Orleans Avenue Outfall Canal, back to the centerline of Filmore Avenue. (*Editorial note:* Formerly Ward 4/Precinct 18 and Ward 4/Precinct 18A.)

Ward 4/Precinct 19: Reserved for future use.

Ward 4/Precinct 20: Bounded by the centerline of Lane Street, to the centerline of Pontchartrain Boulevard, to the centerline of Chapelle

Street, to the centerline of Milne Boulevard, to the centerline Chapelle Street, to the centerline of Canal Boulevard, back to the centerline of Lane Street. (*Editorial note:* Formerly Ward 4/Precinct 20 and Ward 4/Precinct 20A.)

Ward 4/Precinct 21: Bounded by the centerline of Allen Toussaint Boulevard, to the centerline of Canal Boulevard, to the centerline of Chapelle Street, to the centerline of Milne Boulevard, to the centerline Chapelle Street, to the centerline of Pontchartrain Boulevard, back to the centerline of Allen Toussaint Boulevard. (*Editorial note:* Formerly Ward 4/Precinct 21 and Ward 4/Precinct 21A.)

Ward 4/Precinct 22: Bounded by the centerline of Allen Toussaint Boulevard, to the centerline of the New Basin Canal, to the centerline of Lake Pontchartrain, to the centerline of Canal Boulevard, back to the centerline of Allen Toussaint Boulevard.

Ward 4/Precinct 23: Bounded by the centerline of Allen Toussaint Boulevard, to the centerline of Canal Boulevard, to the centerline of Lake Pontchartrain, to the centerline of the Orleans Avenue Outfall Canal, back to the centerline of Allen Toussaint Boulevard.

FIFTH WARD

Ward 5/Precinct 1: Bounded by the centerline of the Mississippi River, to the centerline of St. Louis Street, to the centerline of Royal Street, to the centerline of St. Philip Street, back to the centerline of the Mississippi River.

Ward 5/Precinct 2: Bounded by the centerline of Royal Street, to the centerline of St. Louis Street, to the centerline of North Rampart Street, to the centerline of Orleans Street, back to the centerline of Royal Street.

Ward 5/Precinct 3: Bounded by the centerline of Royal Street, to the centerline of Orleans Avenue to the centerline of North Rampart Street, to the centerline of St. Louis Street, to the centerline of North Claiborne Avenue, to the centerline of St. Philip Street, back to the centerline of Royal Street. (*Editorial note:* Formerly Ward 5, Precinct 3 and Ward 5, Precinct 4.)

Ward 5/Precinct 4: Reserved for future use.

Ward 5/Precinct 5: Bounded by the centerline of North Claiborne Avenue, to the centerline of St. Philip Street, to the centerline of North Galvez Street, to the centerline of St. Louis Street, back to the centerline of North Claiborne Avenue. (*Editorial note:* Formerly Ward 5/Precinct 5 and Ward 5/Precinct 6.)

Ward 5/Precinct 6: Reserved for future use.

Ward 5/Precinct 7: Bounded by the centerline of North Galvez Street, to the centerline of St. Philip Street, to the centerline of North Dorgenois Street, to the centerline of St. Louis Street, back to the centerline of North Galvez Street.

Ward 5/Precinct 8: Bounded by the centerline of North Dorgenois Street, to the centerline of St. Philip Street, to the centerline of North Dupre Street, to the centerline of St. Louis Street, back to the centerline of North Dorgenois Street.

Ward 5/Precinct 9: Bounded by the centerline of North Dupre Street, to the centerline of St. Philip Street, to the centerline of North Salcedo Street, to the centerline of St. Louis Street, back to the centerline of North Dupre Street.

Ward 5/Precinct 10: Bounded by the centerline of St. Louis Street, to the centerline of North Rendon Street, to the centerline of St. Philip Street, to the centerline of North Salcedo Street, back to the centerline of St. Louis Street.

Ward 5/Precinct 11: Bounded by the centerline of North Rendon Street, to the centerline of St. Louis Street, to the centerline of Bayou St. John, to the centerline of St. Philip Street, back to the centerline of North Rendon Street.

Ward 5/Precinct 12: Bounded by the centerline of Bayou St. John, to the centerline of North Norman C Francis Parkway, to the centerline of St. Louis Street, to the centerline of North Carrollton Avenue, to the centerline of Dumaine Street, back to the centerline of Bayou St. John.

Ward 5/Precinct 13: Bounded by the centerline of Bayou St. John, to the centerline of Dumaine Street, to the centerline of North Carrollton Avenue, to the centerline of City Park Avenue, back to the centerline of Bayou St. John.

Ward 5/Precinct 14: Reserved for future use.

Ward 5/Precinct 15: Bounded by the centerline of North Carrollton Avenue, to the centerline of St. Louis Street, to the centerline of North Olympia Street, to the centerline of Orleans Avenue, to centerline of North Hennessey Street, to the centerline of City Park Avenue, back to the centerline of North Carrollton Avenue. (*Editorial note:* Formerly Ward 5/Precinct 14 and Ward 5/Precinct 15.)

Ward 5/Precinct 16: Bounded by the centerline of North Hennessey Street, to the centerline of Orleans Avenue, to the centerline of North Olympia Street, to the centerline of St. Louis Street, to the centerline of City Park Avenue, to the centerline of Orleans Avenue and on to the pumping station, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Allen Toussaint Boulevard, to the centerline of Bayou St. John, to the centerline of City Park Avenue, back to the centerline of North Hennessey Street (including Park Island Estates).

Ward 5/Precinct 17: Bounded by the centerline of Marconi Drive, to the centerline of the Breeze Park footpath, to the centerline of Spanish Fort Boulevard, to the centerline of the Floral Park footpath, to the centerline of Allen Toussaint Boulevard, to the centerline of Bayou St. John, to the centerline of Lake Pontchartrain, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Lakeshore Drive, back to the centerline of Marconi Drive.

Ward 5/Precinct 18: Bounded by the centerline of the Floral Park footpath, to the centerline of Spanish Fort Boulevard, to the centerline of the Breeze Park footpath, to the centerline of Marconi Drive, to the centerline of Lakeshore Drive, to the centerline of the Orleans Avenue Outfall Canal, to the centerline of Allen Toussaint Boulevard, back to the centerline of the Floral Park footpath.

SIXTH WARD

Ward 6/Precinct 1: Bounded by the centerline of the Mississippi River, to the centerline of St. Philip Street, to the centerline of Bourbon Street, to the centerline of Esplanade Avenue, back to the centerline of the Mississippi River.

Ward 6/Precinct 2: Bounded by the centerline of Bourbon Street, to the centerline of St. Philip Street, to the centerline of St. Claude Avenue, to the centerline of Esplanade Avenue, back to the centerline of Bourbon Street.

Ward 6/Precinct 3: Reserved for future use.

Ward 6/Precinct 4: Bounded by the centerline of St. Claude Avenue, to the centerline of Esplanade Avenue, to the centerline of North Robertson Street, to the centerline of St. Philip Street, back to the centerline of St. Claude Avenue.

Ward 6/Precinct 5: Reserved for future use.

Ward 6/Precinct 6: Bounded by the centerline of North Robertson Street, to the centerline of Esplanade Avenue, to the centerline of North Tonti Street, to the centerline of St. Philip Street, back to the centerline of North Robertson Street. (*Editorial note:* Formerly Ward 6/Precinct 5 and Ward 6/Precinct 6.)

Ward 6/Precinct 7: Bounded by the centerline of North Tonti Street, to the centerline of Esplanade Avenue, to the centerline of North Broad Street, to the centerline of St. Philip Street, back to the centerline of North Tonti Street.

Ward 6/Precinct 8: Bounded by the centerline of North Broad Street, to the centerline of Esplanade Avenue, to the centerline of North Gayoso Street, to the centerline of St. Philip Street, back to the centerline of North Broad Street.

Ward 6/Precinct 9: Bounded by the centerline of North Gayoso Street, to the centerline of Esplanade Avenue, to the centerline of Bayou St. John, to the centerline of St. Philip Street, back to the centerline of North Gayoso Street.

SEVENTH WARD

Ward 7/Precinct 1: Bounded by the centerline of Elysian Fields Avenue, to the centerline of St. Claude Avenue, to the centerline of Pauger Street,

to the centerline of Bourbon Street, to the centerline of Esplanade Avenue, to the centerline of North Peters Street, back to the centerline of Elysian Fields Avenue.

Ward 7/Precinct 2: Bounded by the centerline of Esplanade Avenue, to the centerline of Bourbon Street, to the centerline of Pauger Street, to the centerline of Marais Street, back to the centerline of Esplanade Avenue.

Ward 7/Precinct 3: Reserved for future use.

Ward 7/Precinct 4: Bounded by the centerline of St. Claude Avenue, to the centerline of Pauger Street, to the centerline of North Robertson Street, to the centerline of Elysian Fields Avenue, back to the centerline of St. Claude Avenue.

Ward 7/Precinct 5: Bounded by the centerline of Marais Street, to the centerline of St. Bernard Avenue, to the centerline of North Roman Street, to the centerline of Elysian Fields Avenue, to the centerline of North Robertson Street, to the centerline of Pauger Street, back to the centerline of Marais Street. (*Editorial note:* Formerly Ward 7/Precinct 4A and Ward 7/Precinct 5.)

Ward 7/Precinct 6: Bounded by the centerline of Marais Street, to the centerline of Esplanade Avenue, to the centerline of North Roman Street, to the centerline of St. Bernard Avenue, back to the centerline of Marais Street.

Ward 7/Precinct 7: Bounded by the centerline of North Roman Street, to the centerline of Allen Street, to the centerline of North Galvez Street, to the centerline of Elysian Fields Avenue, back to the centerline of North Roman Street.

Ward 7/Precinct 8: Bounded by the centerline of North Galvez Street, to the centerline of Allen Street, to the centerline of North Dorgenois Street, to the centerline of Pauger Street, to the centerline of Florida Avenue, to the centerline of Elysian Fields Avenue back to the centerline of North Galvez Street. (*Editorial note:* Formerly Ward 7/Precinct 8 and Ward 7/Precinct 9.)

Ward 7/Precinct 9: Reserved for future use.

Ward 7/Precinct 9A: Bounded by the centerline of North Dorgenois Street, to the centerline of Allen Street, to the centerline of Florida Avenue, to the centerline of Pauger Street, back to the centerline of North Dorgenois Street.

Ward 7/Precinct 10: Bounded by the centerline of North Roman Street, to the centerline of Allen Street, to the centerline of North Tonti Street, to the centerline of St. Bernard Avenue, back to the centerline of North Roman Street.

Ward 7/Precinct 11: Bounded by the centerline of North Roman Street, to the centerline of Esplanade Avenue, to the centerline of North Galvez Street, to the centerline of St. Bernard Avenue, back to the centerline of North Roman Street.

Ward 7/Precinct 12: Bounded by the centerline of North Galvez Street, to the centerline of Esplanade Avenue, to the centerline of Grand Route St. John, to the centerline of Gentilly Boulevard, to the centerline of North Broad Street, to the centerline of Columbus Street, back to the centerline of North Galvez Street.

Ward 7/Precinct 13: Bounded by the centerline of North Galvez Street, to the centerline of Columbus Street, to the centerline of North Dorgenois Street, to the centerline of Onzaga Street, back to the centerline of North Galvez Street.

Ward 7/Precinct 14: Bounded by the centerline of North Galvez Street, to the centerline of Onzaga Street, to the centerline of North Broad Street, to the centerline of St. Bernard Avenue, back to the centerline of North Galvez Street.

Ward 7/Precinct 15: Bounded by the centerline of North Dorgenois Street, to the centerline of Columbus Street, to the centerline of North Broad Street, to the centerline of Gentilly Boulevard, to the centerline of Aubry Street, to the centerline of North Broad Street, to the centerline of Onzaga Street, back to the centerline of North Dorgenois Street.

Ward 7/Precinct 16: Bounded by the centerline of North Broad Street, to the centerline of Aubry Street, to the centerline of Gentilly Boulevard, to the centerline of the intersection

at DeSaix Boulevard, to the centerline of St. Bernard Avenue, back to the centerline of North Broad Street.

Ward 7/Precinct 17: Bounded by the centerline of Grand Route St. John, to the centerline of Esplanade Avenue, to the centerline of Leda Street, to the centerline of Belfort Street, to the centerline of Gentilly Boulevard, back to the centerline of Grand Route St. John.

Ward 7/Precinct 18: Bounded by the centerline of Esplanade Avenue, to the centerline of Leda Street, to the centerline of Belfort Street, to the centerline of Gentilly Boulevard, to the centerline of DeSaix Boulevard, to the centerline of Bayou St. John, back to the centerline of Esplanade Avenue.

Ward 7/Precinct 19: Bounded by the centerline of DeSaix Boulevard, to the centerline of Bayou St. John, to the centerline of Milton Street, to the centerline of Davey Street, to the centerline of Senate Street, to the centerline of St. Bernard Avenue, back to the centerline of DeSaix Boulevard. (*Editorial note:* Formerly Ward 7/Precinct 19 and Ward 7/Precinct 27A.)

Ward 7/Precinct 20: Bounded by the centerline of North Tonti Street, to the centerline of Allen Street, to the centerline of Industry Street, to the centerline of St. Bernard Avenue, back to the centerline of North Tonti Street. (*Editorial note:* Formerly Ward 7/Precinct 20 and Ward 7/Precinct 20A.)

Ward 7/Precinct 21: Bounded by the centerline of Industry Street, to the centerline of St. Bernard Avenue, to the centerline of Florida Avenue, to the centerline of Allen Street, back to the centerline of Industry Street.

Ward 7/Precinct 22: Reserved for future use.

Ward 7/Precinct 23: Bounded by the centerline of Elysian Fields Avenue, to the centerline of Gentilly Boulevard, to the centerline of the London Avenue Outfall Canal, to the centerline of Interstate 610, to the centerline of Allen Street, to the centerline of Florida Avenue, back to the centerline of Elysian Fields Avenue. (*Editorial note:* Formerly Ward 7/Precinct 22 and Ward 7/Precinct 23.)

Ward 7/Precinct 24: Bounded by the centerline of the London Avenue Outfall Canal, to the centerline of Gentilly Boulevard, to the centerline of Elysian Fields Avenue, to the centerline of Mandolin Street, to the centerline of the St. Anthony Outfall Canal, back to the centerline of the London Avenue Outfall Canal.

Ward 7/Precinct 25: Bounded by the centerline of Mirabeau Avenue, to the centerline of St. Anthony Street, to the centerline of Mandolin Street, to the centerline of the St. Anthony Outfall Canal, to the centerline of the London Avenue Outfall Canal, back to the centerline of Mirabeau Avenue.

Ward 7/Precinct 25A: Bounded by the centerline of Elysian Fields Avenue, to the centerline of Mandolin Street, to the centerline of St. Anthony Street, to the centerline of Mirabeau Avenue, back to the centerline of Elysian Fields Avenue.

Ward 7/Precinct 26: Bounded by the centerline of Florida Avenue, to the centerline of Allen Street, to the centerline of Interstate 610, to the centerline of the London Avenue Outfall Canal, to the centerline of Virgil Boulevard, to the centerline of Paris Avenue, back to the centerline of Florida Avenue. (*Editorial note:* Formerly Ward 7/Precinct 26 and Ward 7/Precinct 26A.)

Ward 7/Precinct 27: Bounded by the centerline of Milton Street, to the centerline of Paris Avenue, to the centerline of Senate Street, to the centerline of St. Bernard Avenue, back to the centerline of Milton Street.

Ward 7/Precinct 27A: Reserved for future use.

Ward 7/Precinct 27B: Bounded by the centerline of Milton Street, to the centerline of St. Bernard Avenue, to the centerline of Florida Avenue, to the centerline of Paris Avenue, back to the centerline of Milton Street.

Ward 7/Precinct 28: Bounded by the centerline of Senate Street, to the centerline of Davey Street, to the centerline of Milton Street, to the centerline of Bayou St. John, to the centerline of Park Island Waterway, to the centerline of Park Island Drive, to the centerline of St. Bernard

Avenue, to the centerline of Mandolin Street, to the centerline of Paris Avenue, back to the centerline of Senate Street.

Ward 7/Precinct 28A: Bounded by the centerline of Paris Avenue, to the centerline of Mirabeau Avenue, to the centerline of Duplessis Street, to the centerline of Mandolin Street, to the centerline of Paris Avenue.

Ward 7/Precinct 29: Bounded by the centerline of Virgil Boulevard, to the centerline of the London Avenue Outfall Canal, to the centerline of Mirabeau Avenue, to the centerline of Paris Avenue, back to the centerline of Virgil Boulevard.

Ward 7/Precinct 30: Bounded by the centerline of Duplessis Street, to the centerline of Mirabeau Avenue, to the centerline of Perlita Street, to the centerline of Filmore Avenue, to the centerline of Bayou St. John, to the centerline of Park Island Waterway, to the centerline of Park Island Drive, to the centerline of St. Bernard Avenue, to the centerline of Mandolin Street, back to the centerline of Duplessis Street. (*Editorial note:* Formerly Ward 7/Precinct 30 and Ward 7/Precinct 31.)

Ward 7/Precinct 31: Reserved for future use.

Ward 7/Precinct 32: Bounded by the centerline of Filmore Avenue, to the centerline of Cartier Avenue, to the centerline of Allen Toussaint Boulevard, to the centerline of Bayou St. John, back to the centerline of Filmore Avenue.

Ward 7/Precinct 33: Bounded by the centerline of Mirabeau Avenue, to the centerline of Perlita Street, to the centerline of Filmore Avenue, to the centerline of St. Anthony Street, back to the centerline of Mirabeau Avenue. (*Editorial note:* Formerly Ward 7, Precinct 33 and Ward 7, Precinct 34.)

Ward 7/Precinct 34: Reserved for future use.

Ward 7/Precinct 35: Bounded by the centerline of Elysian Fields Avenue, to the centerline of Prentiss Avenue, to the centerline of the London Avenue Outfall Canal, to the centerline of Filmore Avenue, to the centerline of St. Anthony Street, to the centerline of Mirabeau Avenue, back to the centerline of Elysian Fields Avenue. (*Editorial note:* Formerly Ward 7/Precinct 35, Ward 7/Precinct 36, and Ward 7/Precinct 36A.)

Ward 7/Precinct 36: Reserved for future use.

Ward 7/Precinct 37: Bounded by the centerline of Allen Toussaint Boulevard, to the centerline of Elysian Fields Avenue, to the centerline of Prentiss Avenue, to the centerline of the London Avenue Outfall Canal, back to the centerline of Allen Toussaint Boulevard. (*Editorial note:* Formerly Ward 7/Precinct 37 and Ward 7/Precinct 38A.)

Ward 7/Precinct 37A: Bounded by the centerline of the London Avenue Outfall Canal, to the centerline of Lake Pontchartrain, to the centerline of Elysian Fields Avenue, to the centerline of Allen Toussaint Boulevard, back to the centerline of the London Avenue Outfall Canal.

Ward 7/Precinct 38: Reserved for future use.

Ward 7/Precinct 39: Reserved for future use.

Ward 7/Precinct 40: Bounded by the centerline of Filmore Avenue, to the centerline of the London Avenue Outfall Canal, to the centerline of Allen Toussaint Boulevard, to the centerline of Cartier Avenue, back to the centerline of Filmore Avenue. (*Editorial note:* Formerly Ward 7/Precinct 33A, Ward 7/Precinct 39, and Ward 7/Precinct 40.)

Ward 7/Precinct 41: Bounded by the centerline of Bayou St. John, to the centerline of Allen Toussaint Boulevard, to the centerline of Paris Avenue, to the centerline of Lakeshore Drive, to the centerline of the London Avenue Outfall Canal, to the centerline of Lake Pontchartrain, back to the centerline of Bayou St. John.

Ward 7/Precinct 42: Bounded by the centerline of Allen Toussaint Boulevard, to the centerline of the London Avenue Outfall Canal, to the centerline of Lakeshore Drive, to the centerline of Paris Avenue, back to the centerline of Allen Toussaint Boulevard.

EIGHTH WARD

Ward 8/Precinct 1: Bounded by the centerline of the Mississippi River, to the centerline of

Elysian Fields Avenue, to the centerline of Dauphine Street, to the centerline of Franklin Avenue, back to the centerline of the Mississippi River.

Ward 8/Precinct 2: Bounded by the centerline of Dauphine Street, to the centerline of Elysian Fields Avenue, to the centerline of St. Claude Avenue, to the centerline of Franklin Avenue, back to the centerline of Dauphine Street.

Ward 8/Precinct 3: Reserved for future use.

Ward 8/Precinct 4: Bounded by the centerline of St. Claude Avenue, to the centerline of Elysian Fields Avenue, to the centerline of Urquhart Street, to the centerline of Franklin Avenue, back to the centerline of St. Claude Avenue.

Ward 8/Precinct 5: Reserved for future use.

Ward 8/Precinct 6: Bounded by the centerline of North Claiborne Avenue, to the centerline of Franklin Avenue, to the centerline of Urquhart Street, to the centerline of Elysian Fields Avenue, back to the centerline of North Claiborne Avenue.

Ward 8/Precinct 7: Bounded by the centerline of North Claiborne Avenue, to the centerline of Elysian Fields Avenue, to the centerline of North Roman Street, to the centerline of Franklin Avenue, back to the centerline of North Claiborne Avenue.

Ward 8/Precinct 8: Bounded by the centerline of North Roman Street, to the centerline of Elysian Fields Avenue, to the centerline of North Johnson Street, to the centerline of Almonaster Avenue, back to the centerline of North Roman Street.

Ward 8/Precinct 9: Bounded by the centerline of North Johnson Street, to the centerline of Elysian Fields Avenue, to the centerline of Florida Avenue, to the centerline of Arts Street, to the centerline of North Tonti Street, to the centerline of Music Street, back to the centerline of North Johnson Street. (*Editorial note:* Formerly Ward 8/Precinct 9 and Ward 8/Precinct 11.)

Ward 8/Precinct 10: Reserved for future use.

Ward 8/Precinct 11: Reserved for future use.

Ward 8/Precinct 12: Bounded by the centerline of North Claiborne Avenue, to the centerline of Montegut Street, to the centerline of North Dorgenois Street, to the centerline of Almonaster Avenue, to the centerline of Florida Avenue, to the centerline of Arts Street, to the centerline of North Tonti Street, to the centerline of Music Street, to the centerline of North Johnson Street, to the centerline of Almonaster Avenue, to the centerline of Franklin Avenue, back to the centerline of North Claiborne Avenue. (*Editorial note:* Formerly Ward 8/Precinct 10, Ward 8/Precinct 12, and Ward 9/Precinct 24.)

Ward 8/Precinct 13: Bounded by the centerline of Florida Avenue, to the centerline of Elysian Fields Avenue, to the centerline of Interstate 610, to the centerline of Interstate 10, back to the centerline of Florida Avenue.

Ward 8/Precinct 14: Bounded by the centerline of Florida Avenue, to the centerline of Interstate 10, to the centerline of Interstate 610, to the centerline of Humanity Street, to the centerline of Clermont Drive, to the centerline of Elder Street, to the centerline of Franklin Avenue, to the centerline of Acacia Street, to the centerline of Peoples Avenue, back to the centerline of Florida Avenue. (*Editorial note:* Formerly Ward 8/Precinct 14 and Ward 8/Precinct 16.)

Ward 8/Precinct 15: Bounded by the centerline of Clermont Drive, to the centerline of Humanity Street, to the centerline of Interstate 610, to the centerline of Elysian Fields Avenue, to the centerline of Gentilly Boulevard, to the centerline of Clermont Drive, to the centerline of Montpelier Street, to the centerline of Lavender Street, to the centerline of Franklin Avenue, to the centerline of Elder Street, back to the centerline of Clermont Drive. (*Editorial note:* Formerly Ward 8/Precinct 15 and Ward 8/Precinct 17.)

Ward 8/Precinct 16: Reserved for future use.

Ward 8/Precinct 17: Reserved for future use.

Ward 8/Precinct 18: Reserved for future use.

Ward 8/Precinct 19: Bounded by the centerline of Jasmine Street, to the centerline of Franklin Avenue, to the centerline of Verbena Street, to the centerline of Clematis Street, to

the centerline of Gentilly Boulevard, to the centerline of Clermont Drive, to the center of Montpelier Street, to the centerline of Lavender Street, to the centerline of Franklin Avenue, to the centerline of Acacia Street, to the centerline of Peoples Avenue, back to the centerline of Jasmine Street. (*Editorial note:* Formerly Ward 8/Precinct 18 and Ward 8/Precinct 19.)

Ward 8/Precinct 20: Bounded by the centerline of Verbena Street, to the centerline of Clematis Street, to the centerline of Gentilly Boulevard, to the centerline of Peoples Avenue, to the centerline of Jasmine Street, to the centerline of Franklin Avenue, back to the centerline of Verbena Street.

Ward 8/Precinct 21: Bounded by the centerline of Gentilly Boulevard, to the centerline of Elysian Fields Avenue, to the centerline of Sumpter Street, to the centerline of Western Street, to the centerline of Lombard Street, to the centerline of Peoples Avenue, back to the centerline of Gentilly Boulevard.

Ward 8/Precinct 22: Bounded by the centerline of Lombard Street, to the centerline of Western Street, to the centerline of Sumpter Street, to the centerline of Elysian Fields Avenue, to the centerline of Selma Street, to the centerline of St. Roch Avenue, back to the centerline of Lombard Street.

Ward 8/Precinct 23: Bounded by the centerline of Lombard Street, to the centerline of St. Roch Avenue, to the centerline of Selma Street, to the centerline of Franklin Avenue, back to the centerline of Lombard Street.

Ward 8/Precinct 24: Bounded by the centerline of Lombard Street, to the centerline of Franklin Avenue, to the centerline of Selma Street, to the centerline of Peoples Avenue, back to the centerline of Lombard Street.

Ward 8/Precinct 25: Bounded by the centerline of Selma Street, to the centerline of Elysian Fields Avenue, to the centerline of Filmore Avenue, to the centerline of Peoples Avenue, back to the centerline of Selma Street. (*Editorial note:* Formerly Ward 8/Precinct 25 and Ward 8/Precinct 25A.)

Ward 8/Precinct 26: Bounded by the centerline of Filmore Avenue, to the centerline of Elysian Fields Avenue, to the centerline of Prentiss Avenue, to the centerline of Peoples Avenue, back to the centerline of Filmore Avenue. (*Editorial note:* Formerly Ward 8/Precinct 26 and Ward 8/Precinct 26A.)

Ward 8/Precinct 27: Bounded by the centerline of Prentiss Avenue, to the centerline of Elysian Fields Avenue, to the centerline of Vienna Street, to the centerline of Peoples Avenue, back to the centerline of Prentiss Avenue. (*Editorial note:* Formerly Ward 8/Precinct 27 and Ward 8/Precinct 27A.)

Ward 8/Precinct 28: Bounded by the centerline of Vienna Street, to the centerline of Elysian Fields Avenue, to the centerline of Lark Street, to the centerline of Marigny Street, to the centerline of Lake Oaks Parkway, to the centerline of Music Street, to the centerline of Leon C. Simon Drive, to the centerline of St. Roch Avenue, back to the centerline of Vienna Street.

Ward 8/Precinct 29: Reserved for future use.

Ward 8/Precinct 30: Bounded by the centerline of Vienna Street, to the centerline of Peoples Avenue, to the centerline of Leon C. Simon Drive, to the centerline of the Industrial Canal, to the centerline of Lake Pontchartrain, to the centerline of Elysian Fields Avenue, to the centerline of Lark Street, to the centerline of Marigny Street, to the centerline of Lake Oaks Parkway, to the centerline of Music Street, to the centerline of Leon C. Simon Drive, to the centerline of St. Roch Avenue, back to the centerline of Vienna Street. (*Editorial note:* Formerly Ward 8/Precinct 29 and Ward 8/Precinct 30.)

NINTH WARD

Ward 9/Precinct 1: Bounded by the centerline of Reynes Street, to the centerline of Royal Street, to the centerline of Gordon Street, to the centerline of St. Claude Avenue, to the centerline of the Orleans/St. Bernard Parish Line, to the centerline of the Mississippi River, back to the centerline of Reynes Street. (*Editorial note:* Formerly Ward 9/Precinct 1 and Ward 9/Precinct 2.)

Ward 9/Precinct 2: Reserved for future use.

Ward 9/Precinct 3: Bounded by the centerline of Tupelo Street, to the centerline of Florida Avenue to the centerline of the Orleans/St. Bernard Parish Line, to the centerline of St. Claude Avenue, back to the centerline of Tupelo Street. (*Editorial note:* Formerly Ward 9/Precinct 3, Ward 9, Precinct 3A and Ward 9/Precinct 3B.)

Ward 9/Precinct 3A: Reserved for future use.

Ward 9/Precinct 4: Bounded by the centerline of Royal Street, to the centerline of Andry Street, to the centerline of St. Claude Avenue, to the centerline of Gordon Street, back to the centerline of Royal Street.

Ward 9/Precinct 5: Bounded by the centerline of North Claiborne Avenue, to the centerline of Tupelo Street, to the centerline of St. Claude Avenue, to the centerline of Forstall Street, back to the centerline of North Claiborne Avenue. (*Editorial note:* Formerly Ward 9, Precinct 5 and Ward 9, Precinct 5A.)

Ward 9/Precinct 5A: Reserved for future use.

Ward 9/Precinct 6: Bounded by the centerline of Florida Avenue, to the centerline of Tupelo Street, to the centerline of North Claiborne Avenue, to the centerline of Forstall Street, back to the centerline of Florida Avenue. (*Editorial note:* Formerly Ward 9, Precincts 6B, 6C, 6D, 6E, and 6F.)

Ward 9/Precinct 6A: Reserved for future use.

Ward 9/Precinct 6B: Reserved for future use.

Ward 9/Precinct 6C: Reserved for future use.

Ward 9/Precinct 6D: Reserved for future use.

Ward 9/Precinct 6E: Reserved for future use.

Ward 9/Precinct 6F: Reserved for future use.

Ward 9/Precinct 7: Bounded by the centerline of the Mississippi River, to the centerline of Reynes Street, to the centerline of Royal Street, to the centerline of Andry Street, to the centerline of St. Claude Avenue, to the centerline of the Industrial Canal, to the centerline of the Mississippi River, back to the centerline of Reynes Street.

Ward 9/Precinct 8: Bounded by the centerline of Forstall Street, to the centerline of St. Claude Avenue, to the centerline of the Industrial Canal, to the centerline of Florida Avenue, back to the centerline of Forstall Street.

Ward 9/Precinct 8A: Reserved for future use.

Ward 9/Precinct 9: Bounded by the centerline of the Mississippi River, to the centerline of Mazant Street, to the centerline of Burgundy Street, to the centerline of Lesseps Street, to the centerline of St. Claude Avenue, to the centerline of the Industrial Canal, back to the centerline of the Mississippi River.

Ward 9/Precinct 10: Bounded by the centerline of St. Claude Avenue, to the centerline of Lesseps Street, to the centerline of North Derbigny Street, to the centerline of Congress Street, to the centerline of North Galvez Street, to the centerline of Mazant Street, to the centerline of Florida Avenue, to the centerline of the Industrial Canal, back to the centerline of St. Claude Avenue. (*Editorial note:* Formerly Ward 9/Precinct 10 and Ward 9/Precinct 22.)

Ward 9/Precinct 11: Bounded by the centerline of the Mississippi River, to the centerline of Congress Street, to the centerline of Burgundy Street, to the centerline of Mazant Street, back to the centerline of the Mississippi River.

Ward 9/Precinct 12: Bounded by the centerline of the Mississippi River, to the centerline of Congress Street, to the centerline of Burgundy Street, to the centerline of Clouet Street, back to the centerline of the Mississippi River.

Ward 9/Precinct 13: Bounded by the centerline of the Mississippi River, to the centerline of Franklin Avenue, to the centerline of Burgundy Street, to the centerline of Clouet Street, back to the centerline of the Mississippi River.

Ward 9/Precinct 14: Bounded by the centerline of Burgundy Street, to the centerline of Franklin Avenue, to the centerline of Marais Street, to the centerline of Clouet Street, back to the centerline of Burgundy Street.

Ward 9/Precinct 15: Bounded by the centerline of Burgundy Street, to the centerline of

Clouet Street, to the centerline of Marais Street, to the centerline of Congress Street, back to the centerline of Burgundy Street.

Ward 9/Precinct 16: Bounded by the centerline of Burgundy Street, to the centerline of Congress Street, to the centerline of Marais Street, to the centerline of Lesseps Street, back to the centerline of Burgundy Street.

Ward 9/Precinct 17: Bounded by the centerline of Marais Street, to the centerline of Alvar Street, to the centerline of North Derbigny Street, to the centerline of Lesseps Street, back to the centerline of Marais Street.

Ward 9/Precinct 18: Reserved for future use.

Ward 9/Precinct 19: Bounded by the centerline of Marais Street, to the centerline of Congress Street, to the centerline of North Robertson Street, to the centerline of Montegut Street, to the centerline North Claiborne Avenue, to the centerline of Franklin Avenue, back to the centerline of Marais Street.

Ward 9/Precinct 20: Reserved for future use.

Ward 9/Precinct 21: Bounded by the centerline of Marais Street, to the centerline of Congress Street, to the centerline of North Robertson Street, to the centerline of Montegut Street, to the centerline of North Roman Street, to the centerline of Congress Street, to the centerline of North Derbigny Street, to the centerline of Alvar Street, back to the centerline of Marais Street. (*Editorial note:* Formerly Ward 9/Precinct 18 and Ward 9/Precinct 21.)

Ward 9/Precinct 22: Reserved for future use.

Ward 9/Precinct 23: Bounded by the centerline of North Roman Street, to the centerline of Montegut Street, to the centerline of North Galvez Street, to the centerline of Congress Street, back to the centerline of North Roman Street.

Ward 9/Precinct 24: Reserved for future use.

Ward 9/Precinct 25: Bounded by the centerline of Almonaster Avenue, to the centerline of the Florida Avenue Canal, to the centerline of Desire Street, to the centerline of Florida Avenue, to the centerline of Gallier Street, to the centerline of Law Street, to the centerline of Congress Street, to the centerline of North Galvez Street, to the centerline of Montegut Street, to the centerline of North Dorgenois Street, back to the centerline of Almonaster Avenue. (*Editorial note:* Formerly Ward 9/Precinct 25, Ward 9/Precinct 25A and Ward 9/Precinct 27.)

Ward 9/Precinct 26: Bounded by the centerline of Mazant Street, to the centerline of North Galvez Street, to the centerline of Congress Street, to the centerline of Law Street, to the centerline of Gallier Street, to the centerline of Florida Avenue, to the centerline of Desire Street, to the centerline of the Florida Avenue Canal, back to the centerline of Mazant Street. (*Editorial note:* Formerly Ward 9/Precinct 26 and Ward 9/Precinct 26A.)

Ward 9/Precinct 27: Reserved for future use.

Ward 9/Precinct 28: Bounded the centerline of the Peoples Avenue Canal, to the centerline of the Florida Avenue Canal, to the centerline of Almonaster Avenue, to the centerline of Higgins Boulevard, to the centerline of Piety Street, to the centerline of Benefit Street, to the centerline of Alvar Street, to the centerline of the Florida Avenue Canal, to the centerline of the Industrial Canal, to the centerline of Interstate 10, back to the centerline of the Peoples Avenue Canal. (*Editorial note:* Formerly Ward 9/Precinct 28 and Ward 9/Precinct 28A.)

Ward 9/Precinct 28A: Reserved for future use.

Ward 9/Precinct 28B: Reserved for future use.

Ward 9/Precinct 28C: Bounded by the centerline of Higgins Boulevard, to the centerline of Piety Street, to the centerline of Benefit Street, to the centerline of Alvar Street, to the centerline of Florida Avenue, to the centerline of Almonaster Avenue, back to the centerline of Higgins Boulevard. (*Editorial note:* Formerly Ward 9/Precinct 28C, Ward 9/Precinct 28D, and Ward 9, Precinct 28E.)

Ward 9/Precinct 28D: Reserved for future use.

Ward 9/Precinct 28E: Reserved for future use.

Ward 9/Precinct 29: Bounded by the centerline of Interstate 10, to the centerline of Peoples

Avenue, to the centerline of Chef Menteur Highway, to the centerline of the Industrial Canal, back to the centerline of Interstate 10.

Ward 9/Precinct 30: Bounded by the centerline of Chef Menteur Highway, to the centerline of Peoples Avenue, to the centerline of Mirabeau Avenue, to the centerline of Louisa Drive, back to the centerline of Chef Menteur Highway. (*Editorial note:* Formerly Ward 9/Precinct 29A and Ward 9/Precinct 30.)

Ward 9/Precinct 30A: Bounded by the centerline of Mirabeau Avenue, to the centerline of the Peoples Avenue Canal, to the centerline of the Dwyer Canal, to the centerline of Louisa Street, back to the centerline of Mirabeau Avenue.

Ward 9/Precinct 31: Bounded by the centerline of Chef Menteur Highway, to the centerline of Louisa Drive, to the centerline of Mirabeau Avenue, to the centerline of France Road, to the centerline of the Dwyer Canal, to the centerline of the Industrial Canal, back to the centerline of Chef Menteur Highway.

Ward 9/Precinct 31A: Bounded by the centerline of Mirabeau Avenue, to the centerline of Louisa Drive, to the centerline of the public right-of-way walk, to the centerline of Mithra Street, to the centerline of Piety Drive, to the centerline of Prentiss Avenue, to the centerline of the public right-of-way walk, to the centerline of France Road, back to the centerline of Mirabeau Avenue. (*Editorial note:* Formerly Ward 9/Precinct 31A and Ward 4/Precinct 31C)

Ward 9/Precinct 31B: Bounded by the centerline of the Dwyer Canal, to the centerline of the public right-of-way walk, to the centerline of Mithra Street, to the centerline of Piety Drive, to the centerline of Prentiss Avenue, to the centerline of Press Drive, to the centerline of Prentiss Avenue, to the centerline of the Peoples Avenue Canal, back to the centerline of the Dwyer Canal.

Ward 9/Precinct 31C: Reserved for future use.

Ward 9/Precinct 31D: Bounded by the centerline of Peoples Avenue, to the centerline of Leon C. Simon Drive, to the centerline of the Seabrook Bridge, to the centerline of the Industrial Canal, to the centerline of the Dwyer Canal, to the centerline of France Road, to the centerline of Prentiss Avenue, to the centerline of Press Drive, to the centerline of Prentiss Avenue, back to the centerline of Peoples Avenue. (*Editorial note:* Formerly Ward 9/Precinct 31D and Ward 9/Precinct 31E.)

Ward 9/Precinct 32: Bounded the centerline of the Industrial Canal, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Paris Road, to the centerline of Bayou Bienvenue, to the centerline of the Fisherman Canal, to the centerline of Florida Avenue, back to the centerline of the Industrial Canal.

Ward 9/Precinct 33: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of the Industrial Canal, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Interstate 10, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 33, Ward 9/Precinct 33A and Ward 9/Precinct 34.)

Ward 9/Precinct 34: Reserved for future use.

Ward 9/Precinct 34A: Bounded by the centerline of America Street, to the centerline of Westlake Drive, to the centerline of Basinview Drive, to the centerline of the Interstate 10 service road, to the centerline of the St. Charles Road/Canal, to the centerline of Interstate 10, to the centerline of the Interstate 10 ramp, to the centerline of the Interstate 10 service road ramp, to the centerline of Interstate 10, to the centerline of U.S. Highway 90 (Chef Menteur Highway), back to the centerline of America Street.

Ward 9/Precinct 35: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of America Street, to the centerline of Westlake Drive, to the centerline of Basinview Drive, to the centerline of Interstate 10 service road, to the centerline of the St. Charles Road/Canal, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Lafon Drive, to the centerline Warfield Street, to the centerline of Chantilly Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway).

Ward 9/Precinct 35A: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway),

to the centerline of Lonely Oak Drive, to the centerline of Lombard Street, to the centerline of Lonely Oak Drive, to the centerline of Ransom Street, to the centerline of Tulip Street, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Lafon Drive, to the centerline of Warfield Street, to the centerline of Chantilly Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway).

Ward 9/Precinct 36: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Werner Drive, to the centerline of Tulsa Street, to the centerline of Bonita Drive, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Crowder Boulevard, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 36 and Ward 9/Precinct 36A.)

Ward 9/Precinct 36A: Reserved for future use.

Ward 9/Precinct 36B: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Lonely Oak Drive, to the centerline of Lombard Street, to the centerline of Lonely Oak Drive, to the centerline of Ransom Street, to the centerline of Tulip Street, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bonita Drive, to the centerline of Tulsa Street, to the centerline of Werner Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 36B and Ward 9/Precinct 36C.)

Ward 9/Precinct 37: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Crowder Boulevard, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Knight Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 37 and Ward 9/Precinct 37A.)

Ward 9/Precinct 38: Bounded by the centerline of Hickerson Drive, to the centerline of Springwood Drive, to the centerline of Marque Drive, to the centerline of Grant Street, to the centerline of Hickerson Drive, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Bundy Road, to the centerline of Dwyer Road/Dwyer Canal, back to the centerline of Hickerson Drive.

Ward 9/Precinct 38A: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Knight Drive, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bundy Road, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 38A and Ward 4/Precinct 38B.)

Ward 9/Precinct 39: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Hickerson Drive, to the centerline of Grant Drive, to the centerline of Marque Drive, to the centerline of Springwood Drive, to the centerline of Hickerson Drive, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Read Boulevard, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 39 and Ward 9/Precinct 39A.)

Ward 9/Precinct 39A: Reserved for future use.

Ward 9/Precinct 39B: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Read Boulevard, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Cardenas Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway).

Ward 9/Precinct 40: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Cardenas Drive, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Good Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway).

Ward 9/Precinct 40A: Bounded by the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Good Drive, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bullard Avenue, to the centerline of Pressburg Street, to the centerline of Nottingham Drive, back to the centerline of U.S. Highway 90 (Chef Menteur Highway). (*Editorial note:* Formerly Ward 9/Precinct 40A and Ward 9/Precinct 40B)

Ward 9/Precinct 40B: Reserved for future use.

Ward 9/Precinct 40C: Bounded by the centerline of Nottingham Drive, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Paris Road, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bullard Avenue, to the centerline of Pressburg Street, back to the centerline of Nottingham Drive.

Ward 9/Precinct 41: Bounded by the centerline of Paris Road, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Michoud Boulevard (to its end), then to the centerline of the Marseille Lagoon, to the centerline of the Maxent Canal, to the centerline of Interstate 10, back to the centerline of Paris Road.

Ward 9/Precinct 41A: Bounded by the centerline of Michoud Boulevard, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bayou Michoud, back to the centerline of Michoud Boulevard.

Ward 9/Precinct 41B: Bounded by the centerline of Michoud Boulevard (to its end), then to the centerline of the Marseille Lagoon, to the centerline of the Maxent Canal, to the centerline of the Maxent Lagoon, to the centerline of Alcee Fortier Boulevard, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bayou Michoud, back to the centerline of Michoud Boulevard.

Ward 9/Precinct 41C: Bounded by the centerline of Michoud Boulevard, to the centerline of the Maxent Lagoon, to the centerline of Bayou Michoud, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Alcee Fortier Boulevard, to the centerline of the Maxent Lagoon, to the centerline of the Maxent Canal, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Old Gentilly Road, back to the centerline of Michoud Boulevard.

Ward 9/Precinct 41D: Bounded by the centerline of the Maxent Lagoon, to the centerline of Michoud Boulevard, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Bayou Michoud, back to the centerline of the Maxent Lagoon.

Ward 9/Precinct 42: Bounded the centerline of Dwyer Road/Dwyer Canal, to the centerline of the Industrial Canal, to the centerline of Hayne Boulevard, to the centerline of West Laverne Street, to the centerline of Morrison Road, to the centerline of the Interstate 10 ramp, to the centerline of Interstate 10, back to the centerline of Dwyer Road/Dwyer Canal. (*Editorial note:* Formerly Ward 9/Precinct 42, Ward 9/Precinct 42A, and Ward 9/Precinct 42B)

Ward 9/Precinct 42A: Reserved for future use.

Ward 9/Precinct 42B: Reserved for future use.

Ward 9/Precinct 42C: Bounded by the centerline of Morrison Road/Morrison Canal, to the centerline of West Laverne Street, to the centerline of Hayne Boulevard, to the centerline of the Seabrook Bridge, to the centerline of Lake Pontchartrain, to the property line surrounding the New Orleans Lakefront Airport, to the Southern Pacific railroad tracks, to the centerline of Martin Drive, to the centerline of Hayne Boulevard, to the centerline of the Lamb Canal, back to the centerline of Morrison Road/Morrison Canal. (*Editorial note:* Formerly Ward 9/Precinct 42C and Ward 9/Precinct 42E)

Ward 9/Precinct 43: Reserved for future use.

Ward 9/Precinct 43A: Bounded by the centerline of Interstate 10, to the centerline of the Interstate 10 Ramp, to the centerline of the Lamb Canal, to the centerline of Hayne Boulevard, to the centerline of Martin Drive, to the centerline of Morrison Road, to the Southern Pacific railroad tracks, to the centerline of St. Charles Road/Canal, back to the centerline of Interstate 10. (*Editorial note:* Formerly Ward 9/Precinct 42D and Ward 9/Precinct 43A)

Ward 9/Precinct 43B: Bounded by the centerline of the Lawrence Canal, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of the St. Charles Road/Canal, to the centerline of Interstate 10, back to the centerline of the Lawrence Canal.

Ward 9/Precinct 43C: Bounded by the centerline of Dwyer Road/Dwyer Canal, to the centerline of the Lawrence Canal, to the centerline of Interstate 10, to the centerline of the St. Charles Road/Canal, to the centerline of Morrison Road, to the centerline of Crowder Boulevard, back to the centerline of Dwyer Road/Dwyer Canal. (*Editorial note:* Formerly Ward 9/Precinct 43C and Ward 9/Precinct 43D)

Ward 9/Precinct 43D: Reserved for future use.

Ward 9/Precinct 43E: Bounded by the centerline of Morrison Road, to the centerline of the Benson Canal, to the centerline of Interstate 10, to the centerline of Crowder Boulevard, back to the centerline of Morrison Road.

Ward 9/Precinct 43F: Bounded by the centerline of the St. Charles Road/Canal, to the centerline of Morrison Road, to the centerline of Mayo Boulevard, to the centerline of Lake Pontchartrain, back to the centerline of the St. Charles Road/Canal.

Ward 9/Precinct 43G: Bounded by the centerline of Morrison Road, to the centerline of Crowder Boulevard, to the centerline of Lake Pontchartrain, to the centerline of Edgelake Court, to the centerline of Wales Drive, to the centerline of Primrose Drive, back to the centerline of Morrison Road.

Ward 9/Precinct 43H: Bounded by the centerline of Crowder Boulevard, to the centerline of Interstate 10, to the centerline of the Citrus Canal, to the centerline of Lake Forest Boulevard, back to the centerline of Crowder Boulevard.

Ward 9/Precinct 43I: Bounded by the centerline of Mayo Road, to the centerline of Morrison Road, to the centerline of Primrose Drive, to the centerline of Wales Road, to the centerline of Edgelake Court, to the centerline of Lake Pontchartrain, back to the centerline of Mayo Road.

Ward 9/Precinct 43J: Bounded by the centerline of Morrison Road, to the centerline of Benson Road, to the centerline of Lake Pontchartrain, to the centerline of Crowder Boulevard, back to the centerline of Morrison Road.

Ward 9/Precinct 43K: Bounded by the centerline of Morrison Road, to the centerline of Bundy Road, to the centerline of Lake Pontchartrain, to the centerline of Benson Road, back to the centerline of Morrison Road.

Ward 9/Precinct 43L: Bounded by the centerline of Morrison Road, to the centerline of the Citrus Canal, to the centerline of Lake Pontchartrain, to the centerline of Bundy Road, back to the centerline of Morrison Road.

Ward 9/Precinct 43M: Bounded by the centerline of the Benson Canal, to the centerline of Morrison Road, to the centerline of the Citrus Canal, to the centerline of Interstate 10, back to the centerline of the Benson Canal.

Ward 9/Precinct 43N: Bounded by the centerline of Lake Forest Boulevard, to the centerline of the Citrus Canal, to the centerline of Dwyer Road/Dwyer Canal, to the centerline of Crowder Road, back to the centerline of Lake Forest Boulevard.

Ward 9/Precinct 44: Bounded by the centerline of Morrison Road, to the centerline of the Farrar Canal, to the centerline of Interstate 10, to the centerline of the Citrus Canal, back to the centerline of Morrison Road.

Ward 9/Precinct 44A: Bounded by the centerline of Morrison Road, to the centerline of Weaver Avenue, to the centerline of Carter Street, to centerline of Symmes Street, to the centerline of Hayne Boulevard, to the centerline of the Farrar

Canal, to the centerline of Lake Pontchartrain, to the centerline of the Citrus Canal, back to the centerline of Morrison Road.

Ward 9/Precinct 44B: Bounded by the centerline of Morrison Road, to the centerline of the Farrar Canal, to the centerline of Hayne Boulevard, to the centerline of Symmes Street, to the centerline of Carter Street, to the centerline of Weaver Avenue, back to the centerline of Morrison Road.

Ward 9/Precinct 44C: Reserved for future use.

Ward 9/Precinct 44D: Bounded by the centerline of Morrison Road, to the centerline of Bullard Avenue, to the centerline of Lake Pontchartrain, to the centerline of Mercier Street, back to the centerline of Morrison Road.

Ward 9/Precinct 44E: Bounded by the centerline of Bullard Avenue, to the centerline of Lake Pontchartrain, to the centerline of Gannon Road, to the centerline of the Morrison Canal, back to the centerline of Bullard Avenue.

Ward 9/Precinct 44F: Bounded by the centerline of Morrison Road, to the centerline of Vincent Road, to the centerline of Lake Pontchartrain, to the centerline of Gannon Road, back to the centerline of Morrison Road.

Ward 9/Precinct 44G: Bounded by the centerline of the Morrison Canal, to the centerline of Shorewood Drive, to the centerline of Curran Road, to the centerline of Buffalo Street, to the centerline of Lake Pontchartrain, to the centerline of Vincent Road, back to the centerline of the Morrison Canal.

Ward 9/Precinct 44H: Reserved for future use.

Ward 9/Precinct 44I: Bounded by the centerline of Lake Forest Boulevard, to the centerline of Bullard Avenue, to the centerline of the Dwyer Canal, to the centerline of the Farrar Canal, back to the centerline of Lake Forest Boulevard.

Ward 9/Precinct 44J: Bounded by the centerline of Morrison Road, to the centerline of Mercier Road, to the centerline of Lake Pontchartrain, to the centerline of the Farrar Canal, back to the centerline of Morrison Road.

Ward 9/Precinct 44K: Reserved for future use.

Ward 9/Precinct 44L: Bounded by the centerline of Morrison Road, to the centerline of the Berg Canal, to the centerline of Interstate 10, to the centerline of the Farrar Canal, back to the centerline of Morrison Road.

Ward 9/Precinct 44M: Bounded by the centerline of Interstate 10, to the centerline of Bullard Avenue, to the centerline of Lake Forest Boulevard, to the centerline of the Farrar Canal, to the centerline of Dwyer Road, to the centerline of the Citrus Canal, back to the centerline of Interstate 10.

Ward 9/Precinct 44N: Bounded by the centerline of Morrison Road, continuing along the centerline of the Morrison Canal, to the centerline of Paris Road, to the centerline of Interstate 10, to the centerline of the Gannon Canal, back to the centerline of Morrison Road.

Ward 9/Precinct 44O: Bounded by the centerline of the Morrison Canal, to the centerline of Paris Road, to the centerline of Lake Pontchartrain, to the centerline of Buffalo Street, to the centerline of Curran Road, to the centerline of Shorewood Drive, back to the centerline of the Morrison Canal.

Ward 9/Precinct 44P: Bounded by the centerline of the Morrison Canal, to the centerline of the Jahncke Canal/Road, to the centerline of Interstate 10, to the centerline of Paris Road, to the centerline of the Dwyer Canal, to the centerline of Bullard Avenue, to the centerline of Interstate 10, to the centerline of the Berg Canal, back to the centerline of the Morrison Canal.

Ward 9/Precinct 44Q: Bounded by the centerline of Morrison Road, to the centerline of the Gannon Canal, to the centerline of Interstate 10, to the centerline of the Jahncke Canal/Road, back to the centerline of Morrison Road.

Ward 9/Precinct 45: Bounded by the centerline of Paris Road, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of Michoud Boulevard, to the centerline of Old Gentilly Road, to the centerline of U.S. Highway 90 (Chef Menteur Highway), to the centerline of the Maxent Canal, to the centerline of Interstate 10, to the centerline of Paris Road, to the centerline of Lake Pontchartrain, to the centerline of Chef Menteur

Pass, to the Orleans/St. Bernard Parish Line, along the centerline of Lake Borgne, to the centerline of Bayou Bienvenue through the Mississippi River Gulf Outlet, and on to the centerline of Bayou Bienvenue, back to the centerline of Paris Road.

Ward 9/Precinct 45A: Bounded by the centerline of the Chef Menteur Pass, to the centerline of Lake Pontchartrain, to the centerline of the Orleans/St. Tammany Parish Line, to the centerline of the Rigolets waterway, to the centerline of Lake Borgne, back to the centerline of the Chef Menteur Pass.

TENTH WARD

Ward 10/Precinct 1: Reserved for future use.

Ward 10/Precinct 2: Reserved for future use.

Ward 10/Precinct 3: Bounded by the centerline of Josephine Street, to the centerline of Constance Street, to the centerline of St. Mary Street, to the centerline of Hastings Place, to the centerline of Felicity Street, to the centerline of Nuns Street, to the centerline of the Mississippi River, to the centerline of First Street, to the centerline of St. Thomas Street, back to the centerline of Josephine Street. (*Editorial note:* Formerly Ward 10/Precinct 3 and Ward 10/Precinct 5)

Ward 10/Precinct 4: Reserved for future use.

Ward 10/Precinct 5: Reserved for future use.

Ward 10/Precinct 6: Bounded by the centerline of First Street, to the centerline of Constance Street, to the centerline of Josephine Street, to the centerline of St. Thomas Street, back to the centerline of First Street.

Ward 10/Precinct 7: Bounded by the centerline of Constance Street, to the centerline of St. Mary Street, to the centerline of Hastings Place, to the centerline of Felicity Street, to the centerline of Coliseum Street, to the centerline of Josephine Street, back to the centerline of Constance Street.

Ward 10/Precinct 8: Bounded by the centerline of Constance Street, to the centerline of Josephine Street, to the centerline of Coliseum Street, to the centerline of First Street, back to the centerline of Constance Street.

Ward 10/Precinct 9: Bounded by the centerline of Coliseum Street, to the centerline of Felicity Street, to the centerline of St. Charles Avenue, to the centerline of First Street, back to the centerline of Coliseum Street.

Ward 10/Precinct 10: Reserved for future use.

Ward 10/Precinct 11: Bounded by the centerline of First Street, to the centerline of Danneel Street, to the centerline of Philip Street, to the centerline of Dryades Street, to the centerline of Felicity Street, to the centerline of St. Charles Avenue, back to the centerline of First Street.

Ward 10/Precinct 12: Bounded by the centerline of Danneel Street, to the centerline of Philip Street, to the centerline Dryades Street, to the centerline of Felicity Street, to the centerline of South Liberty Street, to the centerline of Philip Street, to the centerline of Nyanaza Place, to the centerline of First Street, back to the centerline of Danneel Street.

Ward 10/Precinct 13: Bounded by the centerline of South Liberty Street, to the centerline of Philip Street, to the centerline of Nyanaza Place, to the centerline of First Street, to the centerline of Magnolia Street, to the centerline of Philip Street, to the centerline of Clara Street, to the centerline of Felicity Street, back to the centerline of South Liberty Street.

Ward 10/Precinct 14: Bounded by the centerline of Clara Street, to the centerline of Philip Street, to the centerline of Magnolia Street, to the centerline of First Street, to the centerline of Clara Street, to the centerline of Washington Avenue, to the centerline of Willow Street, to the centerline of Toledano Street, to the centerline of South Derbigny Street, to the centerline of First Street, to the centerline of Martin Luther King, Jr. Boulevard, to the centerline of Felicity Street, back to the centerline of Clara Street. (*Editorial note:* Formerly Ward 10/Precinct 14 and Ward 11/Precinct 16)

ELEVENTH WARD

Ward 11/Precinct 1: Reserved for future use.

Ward 11/Precinct 2: Bounded by the centerline of the Mississippi River, to the centerline of First

Street, to the centerline of Annunciation Street, to the centerline of Sixth Street, to the centerline of St. Thomas Street, to the centerline of Toledano Street, back to the centerline of the Mississippi River.

Ward 11/Precinct 3: Bounded by the centerline of St. Thomas Street, to the centerline of Sixth Street, to the centerline of Annunciation Street, to the centerline of Toledano Street, back to the centerline of St. Thomas Street.

Ward 11/Precinct 4: Bounded by the centerline of Annunciation Street, to the centerline of First Street, to the centerline of Constance Street, to the centerline of Sixth Street, back to the centerline of Annunciation Street.

Ward 11/Precinct 5: Bounded by the centerline of Annunciation Street, to the centerline of Sixth Street, to the centerline of Chestnut Street, to the centerline of Toledano Street, to the centerline of Annunciation Street.

Ward 11/Precinct 6: Reserved for future use.

Ward 11/Precinct 7: Reserved for future use.

Ward 11/Precinct 8: Bounded by the centerline of Chestnut Street, to the centerline of Toledano Street, to the centerline of St. Charles Avenue, to the centerline of Sixth Street, back to the centerline of Chestnut Street.

Ward 11/Precinct 9: Bounded by the centerline of Constance Street, to the centerline of Sixth Street, to the centerline of St. Charles Avenue, to the centerline of First Street, back to the centerline of Constance Street.

Ward 11/Precinct 10: Bounded by the centerline of St. Charles Avenue, to the centerline of First Street, to the centerline of Baronne Street, to the centerline of Toledano Street, back to the centerline of St. Charles Avenue.

Ward 11/Precinct 11: Bounded by the centerline of Baronne Street, to the centerline of Toledano Street, to the centerline of Danneel Street, to the centerline of First Street, back to the centerline of Baronne Street.

Ward 11/Precinct 12: Bounded by the centerline of Danneel Street, to the centerline of Toledano Street, to the centerline of Loyola Avenue, to the centerline of First Street, back to the centerline of Danneel Street.

Ward 11/Precinct 13: Bounded by the centerline of Loyola Avenue, to the centerline of Toledano Street, to the centerline of LaSalle Street, to the centerline of First Street, back to the centerline of Loyola Avenue.

Ward 11/Precinct 14: Bounded by the centerline of Louisiana Avenue, to the centerline of Toledano Street, to the centerline of Willow Street, to the centerline of Washington Avenue, to the centerline of Clara Street, to the centerline of First Street, to the centerline of LaSalle Street, back to the centerline of Louisiana Avenue. (*Editorial note:* Formerly Ward 11/Precinct 14 and Ward 11/Precinct 15)

Ward 11/Precinct 15: Reserved for future use.

Ward 11/Precinct 16: Reserved for future use.

Ward 11/Precinct 17: Bounded by the centerline of South Derbigny Street, to the centerline of Toledano Street, and on to Washington Avenue, to the centerline of Martin Luther King, Jr. Boulevard, to the centerline of First Street, back to the centerline of South Derbigny Street. (*Editorial note:* Formerly Ward 11/Precinct 17, Ward 11/Precinct 18, and Ward 11/Precinct 19)

TWELFTH WARD

Ward 12/Precinct 1: Bounded by the centerline of Tchoupitoulas Street, to the centerline of Toledano Street, to the centerline of Magazine Street, to the centerline of Aline Street, back to the centerline of Tchoupitoulas Street.

Ward 12/Precinct 2: Bounded by the centerline of Tchoupitoulas Street, to the centerline of Aline Street, to the centerline of Magazine Street, to the centerline of Peniston Street, back to the centerline of Tchoupitoulas Street.

Ward 12/Precinct 3: Bounded by the centerline of Peniston Street, to the centerline of Magazine Street, to the centerline of Marengo Street, to the centerline of Tchoupitoulas Street, back to the centerline of Peniston Street.

Ward 12/Precinct 4: Bounded by the centerline of Magazine Street, to the centerline of Marengo Street, to the centerline of Tchoupitoulas Street, to the centerline of Toledano Street, to the centerline of the Mississippi River, to the centerline of Napoleon Avenue, back to the centerline of Magazine Street.

Ward 12/Precinct 5: Bounded by the centerline of Magazine Street, to the centerline of Toledano Street, to the centerline of Coliseum Street, to the centerline of General Taylor Street, back to the centerline of Magazine Street.

Ward 12/Precinct 6: Bounded by the centerline of Magazine Street, to the centerline of General Taylor Street, to the centerline of Coliseum Street, to the centerline of Napoleon Avenue, back to the centerline of Magazine Street.

Ward 12/Precinct 7: Bounded by the centerline of Coliseum Street, to the centerline of Toledano Street, to the centerline of Prytania Street, to the centerline of Napoleon Avenue, back to the centerline of Coliseum Street.

Ward 12/Precinct 8: Bounded by the centerline of Prytania Street, to the centerline of Toledano Street, to the centerline of St. Charles Avenue, to the centerline of Napoleon Avenue, back to the centerline of Prytania Street.

Ward 12/Precinct 9: Bounded by the centerline of St. Charles Avenue, to the centerline of General Taylor Street, to the centerline of Dryades Street, to the centerline of Toledano Street, back to the centerline of St. Charles Avenue.

Ward 12/Precinct 10: Bounded by the centerline of St. Charles Avenue, to the centerline of General Taylor Street, to the centerline of Dryades Street, to the centerline of Napoleon Avenue, back to the centerline of St. Charles Avenue.

Ward 12/Precinct 11: Bounded by the centerline of Dryades Street, to the centerline of Toledano Street, to the centerline of Saratoga Street, to the centerline of Napoleon Avenue, back to the centerline of Dryades Street.

Ward 12/Precinct 12: Bounded by the centerline of South Saratoga Street, to the centerline of Napoleon Avenue, to the centerline of South Liberty Street, to the centerline of Delachaise Street, back to the centerline of South Saratoga Street.

Ward 12/Precinct 13: Bounded by the centerline of General Taylor Street, to the centerline of Freret Street, to the centerline of Louisiana Avenue, to the centerline of LaSalle Street, to the centerline of Toledano Street, to the centerline of Saratoga Street, to the centerline of Delachaise Street, to the centerline of South Liberty Street, back to the centerline of General Taylor Street.

Ward 12/Precinct 14: Bounded by the centerline of South Liberty Street, to the centerline of Napoleon Avenue, to the centerline of Magnolia Street, to the centerline of Louisiana Avenue, to the centerline of Freret Street, to the centerline of General Taylor Street, back to the centerline of South Liberty Street.

Ward 12/Precinct 15: Reserved for future use.

Ward 12/Precinct 16: Bounded by the centerline of Toledano Street, to the centerline of South Claiborne Avenue, to the centerline of Napoleon Avenue, to the centerline of Magnolia Street, to the centerline of Louisiana Avenue, back to the centerline of Toledano Street.

Ward 12/Precinct 17: Bounded by the centerline of South Claiborne Avenue, to the centerline of Napoleon Avenue, to the centerline of South Broad Street, to the centerline of General Taylor Street, to the centerline of South Roman Street, to the centerline of Toledano Street, back to the centerline of South Claiborne Avenue. (*Editorial note:* Formerly Ward 12/Precinct 17 and Ward 12/Precinct 18)

Ward 12/Precinct 18: Reserved for future use.

Ward 12/Precinct 19: Bounded by the centerline of South Roman Street, to the centerline of General Taylor Street, to the centerline of South Broad Street, to the centerline of Toledano Street, back to the centerline of South Roman Street. (*Editorial note:* Formerly Ward 12/Precinct 19 and Ward 12/Precinct 20)

THIRTEENTH WARD

Ward 13/Precinct 1: Bounded by the centerline of Laurel Street, to the centerline of Napoleon

Avenue, to the centerline of the Mississippi River, to the centerline of Nashville Avenue, to the centerline of the Illinois Central railroad tracks, to the centerline of South Front Street, to the centerline of Upperline Street, back to the centerline of Laurel Street.

Ward 13/Precinct 2: Bounded by the centerline of South Front Street, to the centerline of Bellecastle Street, to the centerline of the Illinois Central railroad tracks, to the centerline of Jefferson Avenue, to the centerline of Laurel Street, to the centerline of Upperline Street, back to the centerline of South Front Street.

Ward 13/Precinct 3: Bounded by the centerline of Laurel Street, to the centerline of Napoleon Avenue, to the centerline of Magazine Street, to the centerline of Upperline Street, back to the centerline of Laurel Street.

Ward 13/Precinct 4: Bounded by the centerline of Laurel Street, to the centerline of Upperline Street, to the centerline of Coliseum Street, to the centerline of Bellecastle Street, back to the centerline of Laurel Street.

Ward 13/Precinct 5: Bounded by the centerline of Magazine Street, to the centerline of Napoleon Avenue, to the centerline of Coliseum Street, to the centerline of Upperline Street, back to the centerline of Magazine Street.

Ward 13/Precinct 6: Bounded by the centerline of Laurel Street, to the centerline of Bellecastle Street, to the centerline of Coliseum Street, to the centerline of Jefferson Avenue, back to the centerline of Laurel Street.

Ward 13/Precinct 7: Bounded by the centerline of Coliseum Street, to the centerline of Napoleon Avenue, to the centerline of St. Charles Avenue, to the centerline of Upperline Street, back to the centerline of Coliseum Street.

Ward 13/Precinct 8: Bounded by the centerline of Coliseum Street, to the centerline of Upperline Street, to the centerline of St. Charles Avenue, to the centerline of Jefferson Avenue, back to the centerline of Coliseum Street.

Ward 13/Precinct 9: Bounded by the centerline of St. Charles Avenue, to the centerline of Napoleon Avenue, to the centerline of Danneel Street, to the centerline of Upperline Street, back to the centerline of St. Charles Avenue.

Ward 13/Precinct 10: Bounded by the centerline of St. Charles Avenue, to the centerline of Upperline Street, to the centerline of Danneel Street, to the centerline of Jefferson Avenue, back to the centerline of St. Charles Avenue.

Ward 13/Precinct 11: Bounded by the centerline of Danneel Street, to the centerline of Napoleon Avenue, to the centerline of LaSalle Street, to the centerline of Upperline Street, back to the centerline of Danneel Street.

Ward 13/Precinct 12: Bounded by the centerline of Danneel Street, to the centerline of Upperline Street, to the centerline of LaSalle Street, to the centerline of Jefferson Avenue, back to the centerline of Danneel Street.

Ward 13/Precinct 13: Bounded by the centerline of LaSalle Street, to the centerline of Jefferson Avenue, to the centerline of South Robertson Street, to the centerline of Napoleon Avenue, back to the centerline of LaSalle Street.

Ward 13/Precinct 14: Bounded by the centerline of South Robertson Street, to the centerline of Jefferson Avenue, to the centerline of South Claiborne Avenue, to the centerline of Napoleon Avenue, back to the centerline of South Robertson Street. (*Editorial note:* Formerly Ward 13/Precinct 14 and Ward 13/Precinct 14A)

Ward 13/Precinct 15: Bounded by the centerline of Jefferson Avenue, to the centerline of South Claiborne Avenue, to the centerline of Napoleon Avenue, to the centerline of South Johnson Street, to the centerline of Upperline Street, to the centerline of South Johnson Street, to the centerline of Robert Street, to the centerline of South Johnson Street, back to the centerline of Jefferson Avenue.

Ward 13/Precinct 16: Bounded by the centerline of Fontainbleau Drive, to the centerline of South Gayoso Street, to the centerline of Cadiz Street, to the centerline of South Salcedo Street, to the centerline of Robert Street, to the centerline of South Tonti Street, to the centerline of Jefferson Avenue, to the centerline of South Johnson Street, to the centerline of Robert Street, to the centerline

of South Johnson Street, to the centerline of Upperline Street, to the centerline of South Johnson Street, to the centerline of Napoleon Avenue, back to the centerline of Fontainbleau Drive.

FOURTEENTH WARD

Ward 14/Precinct 1: Bounded by the centerline of Constance Street, to the centerline of Nashville Avenue, to the centerline of the Illinois Central railroad tracks, to the centerline of Jefferson Avenue, back to the centerline of Constance Street.

Ward 14/Precinct 2: Bounded by the centerline of the Mississippi River, to the centerline of Nashville Avenue, to the centerline of Constance Street, to the centerline of State Street, back to the centerline of the Mississippi River.

Ward 14/Precinct 3: Bounded by the centerline of the Mississippi River, to the centerline of State Street, to the centerline of Laurel Street, to the centerline of Henry Clay Avenue, to the centerline of Patton Street, to the centerline of Exposition Boulevard, back to the centerline of the Mississippi River.

Ward 14/Precinct 4: Bounded by the centerline of Laurel Street, to the centerline of Henry Clay Avenue, to the centerline of Patton Street, to the centerline of Exposition Boulevard, to the centerline of Magazine Street, to the centerline of State Street, back to the centerline of Laurel Street.

Ward 14/Precinct 5: Bounded by the centerline of Constance Street, to the centerline of State Street, to the centerline of Chestnut Street, to the centerline of Joseph Street, to the centerline of Camp Street, to the centerline of Jefferson Avenue, back to the centerline of Constance Street.

Ward 14/Precinct 6: Bounded by the centerline of State Street, to the centerline of Prytania Street, to the centerline of Joseph Street, to the centerline of Pitt Street, to the centerline of Jefferson Avenue, to the centerline of Camp Street, to the centerline of Joseph Street, to the centerline of Chestnut Street, back to the centerline of State Street.

Ward 14/Precinct 7: Bounded by the centerline of State Street, to the centerline of St. Charles Avenue, to the centerline of Jefferson Avenue, to the centerline of Pitt Street, to the centerline of Joseph Street, to the centerline of Prytania Street, back to the centerline of State Street.

Ward 14/Precinct 8: Bounded by the centerline of Magazine Street, to the centerline of Exposition Boulevard, to the centerline of Prytania Street, to the centerline of State Street, back to the centerline of Magazine Street.

Ward 14/Precinct 9: Bounded by the centerline of Prytania Street, to the centerline of Exposition Boulevard, to the centerline of St. Charles Avenue, to the centerline of State Street, back to the centerline of Prytania Street.

Ward 14/Precinct 10: Bounded by the centerline of the Mississippi River, to the centerline of Exposition Boulevard, to the centerline of St. Charles Avenue, to the centerline of Walnut Street, to the centerline of Pitt Street, to the centerline of Lowerline Street, back to the centerline of the Mississippi River.

Ward 14/Precinct 11: Bounded by the centerline of Pitt Street, to the centerline of Walnut Street, to the centerline of St. Charles Avenue, to the centerline of Lowerline Street, back to the centerline of Pitt Street.

Ward 14/Precinct 12: Bounded by the centerline of St. Charles Avenue, to the centerline of Broadway Street, to the centerline of Green Street, to the centerline of Lowerline Street, back to the centerline of St. Charles Avenue.

Ward 14/Precinct 13: Reserved for future use.

Ward 14/Precinct 13A: Bounded by the centerline of St. Charles Avenue, to the centerline of Broadway Street, to the centerline of Willow Street, to the centerline of Calhoun Street, back to the centerline of St. Charles Avenue.

Ward 14/Precinct 14: Bounded by the centerline of Calhoun Street, to the centerline of Freret Street, to the centerline of Nashville Avenue, to the centerline of St. Charles Avenue, back to the centerline of Calhoun Street.

Ward 14/Precinct 15: Bounded by the centerline of Nashville Avenue, to the centerline of Freret

Street, to the centerline of Jefferson Avenue, to the centerline of St. Charles Avenue, back to the centerline of Nashville Avenue.

Ward 14/Precinct 16: Bounded by the centerline of Calhoun Street, to the centerline of Willow Street, to the centerline of Jefferson Avenue, to the centerline of Freret Street, back to the centerline of Calhoun Street.

Ward 14/Precinct 17: Bounded by the centerline of Jefferson Avenue, to the centerline of Willow Street, to the centerline of Calhoun Street, to the centerline of South Claiborne Avenue, back to the centerline of Jefferson Avenue.

Ward 14/Precinct 18: Reserved for future use.

Ward 14/Precinct 18A: Bounded by the centerline of Calhoun Street, to the centerline of South Claiborne Avenue, to the centerline of Broadway Street, to the centerline of Willow Street, back to the centerline of Calhoun Street.

Ward 14/Precinct 19: Bounded by the centerline of Green Street, to the centerline of Broadway Street, to the centerline of Broad Place, to the centerline of Lowerline Street, back to the centerline of Green Street.

Ward 14/Precinct 20: Bounded by the centerline of South Claiborne Avenue, to the centerline of State Street and continuing along the centerline of State Street Drive, to the centerline of Fontainbleau Drive, to the centerline of South Gayoso Street, to the centerline of Cadiz Street, to the centerline of South Salcedo Street, to the centerline of Robert Street, to the centerline of South Tonti Street, to the centerline of Jefferson Avenue, back to the centerline of South Claiborne Avenue. (*Editorial note:* Formerly Ward 14/Precinct 20 and Ward 14/Precinct 22.)

Ward 14/Precinct 21: Bounded by the centerline of South Claiborne Avenue, to the centerline of State Street, to the centerline of Fontainbleau Drive, to the centerline of Broad Place, to the centerline of Broadway Street, back to the centerline of South Claiborne Avenue.

Ward 14/Precinct 22: Reserved for future use.

Ward 14/Precinct 23: Bounded by the centerline of South Broad Street, to the centerline of Fontainbleau Drive, to the centerline of South Lopez Street, to the centerline of Martin Luther King, Jr. Boulevard, to the centerline of Washington Avenue, back to the centerline of South Broad Street.

Ward 14/Precinct 24: Reserved for future use.

Ward 14/Precinct 24A: Bounded by the centerline of Fontainbleau Drive, to the centerline of State Street Drive, to the centerline of Walmsley Avenue, to the centerline of Panama Court, to the centerline of Pritchard Place, to the centerline of College Court, to the centerline of Earhart Boulevard, and on to the centerline of Martin Luther King, Jr. Boulevard, to the centerline of South Lopez Street, back to the centerline of Fontainbleau Drive.

Ward 14/Precinct 25: Bounded by the centerline of Fontainbleau Drive, to the centerline of Broad Place, to the centerline of Pine Street, to the centerline of Fig Street, to the centerline of Audubon Street, to the centerline of Pritchard Place, to the centerline of Panama Court, to the centerline of Walmsley Avenue, to the centerline of State Street Drive, back to the centerline of Fontainbleau Drive.

Ward 14/Precinct 26: Bounded by the centerline of Pine Street, to the centerline of Washington Avenue, to the centerline of Martin Luther King, Jr. Boulevard, and on to the centerline of Earhart Boulevard, to the centerline of College Court, to the centerline of Pritchard Place, to the centerline of Audubon Street, to the centerline of Fig Street, back to the centerline of Pine Street.

FIFTEENTH WARD

Ward 15/Precinct 1: Bounded by the centerline of Verret Street, to the centerline of Alix Street, to the centerline of the Mississippi River, back to the centerline of Verret Street.

Ward 15/Precinct 2: Bounded by the centerline of Opelousas Avenue, to the centerline of Brooklyn Avenue, to the centerline of Powder Street, to the centerline of Eliza Street, to the centerline of the Mississippi River, to the centerline of Alix Street, to the centerline of Pacific Avenue, to the centerline of Pelican Avenue, to the centerline of

Atlantic Avenue, to the centerline of the Mississippi River, to the centerline of Thayer Street, back to the centerline of Opelousas Avenue.

Ward 15/Precinct 3: Bounded by the centerline of Verret Street, to the centerline of Alix Street, to the centerline of Pacific Avenue, to the centerline of Pelican Avenue, to the centerline of Atlantic Avenue, to the centerline of the Mississippi River, back to the centerline of Verret Street.

Ward 15/Precinct 4: Reserved for future use.

Ward 15/Precinct 5: Bounded by the centerline of the Mississippi River, to the centerline of Eliza Street, to the centerline of Brooklyn Avenue, to the centerline of Opelousas Avenue, to the centerline of Nunez Street, to the centerline of Socrates Street, to the centerline of River Street, to the Orleans/Jefferson Parish Line, back to the centerline of the Mississippi River.

Ward 15/Precinct 6: Bounded by the centerline of Nunez Street, to the centerline of Opelousas Avenue, to the centerline of Thayer Street, to the centerline of Lamarque Street, to the centerline of Elmira Street, to the centerline of Socrates Street, back to the centerline of Nunez Street.

Ward 15/Precinct 7: Reserved for future use.

Ward 15/Precinct 8: Bounded by the centerline of Socrates Street, to the centerline of Elmira Street, to the centerline of Lamarque Street, to the centerline of Thayer Street, to the Orleans/Jefferson Parish Line, to the centerline of River Street, back to the centerline of Socrates Street.

Ward 15/Precinct 9: Bounded by the centerline of Thayer Street, to the centerline of Slidell Street, to the centerline of Behrman Avenue, to the centerline of Opelousas Avenue, to the centerline of Hendee Street, to the centerline of the Mississippi River, back to the centerline of Thayer Street.

Ward 15/Precinct 10: Bounded by the centerline of Behrman Avenue, to the centerline of Slidell Street, to the centerline of Thayer Street, to the centerline of Bringier Street, back to the centerline of Behrman Avenue.

Ward 15/Precinct 11: Bounded by the centerline of the Westbank Expressway, to the centerline of General DeGaulle Drive, to the centerline of Victory Park Drive, to the centerline of Bringier Street, and on to the Mississippi River Bridge Approach, to the centerline of Thayer Street, to the Orleans/Jefferson Parish Line, back to the centerline of the Westbank Expressway.

Ward 15/Precinct 12: Bounded by the centerline of Behrman Avenue, to the centerline of General Meyer Avenue, to the centerline of Shirley Drive, to the centerline of Socrates Street, back to the centerline of Behrman Avenue.

Ward 15/Precinct 12A: Bounded by the centerline of Victory Park Drive, to the centerline of Behrman Avenue, to the centerline of Socrates Street, to the centerline of Shirley Drive, to the centerline of General DeGaulle Drive, back to the centerline of Victory Park Drive.

Ward 15/Precinct 13: Bounded by the centerline of General Meyer Avenue, to the centerline of Horace Street, to the centerline of the Magellan Canal, to the centerline of Shirley Drive, back to the centerline of General Meyer Avenue.

Ward 15/Precinct 13A: Bounded by the Orleans/Jefferson Parish Line, to the centerline of the Westbank Expressway, to the intersection of the Mississippi River Bridge Approach, to the centerline of General DeGaulle Drive, to the centerline of Shirley Drive, to the centerline of the Magellan Canal, to the centerline of Pace Boulevard, to the centerline of Wall Boulevard, to the centerline of Pace Boulevard, to the centerline of Sandra Drive, to the centerline of General DeGaulle Drive, to the centerline of Seine Court, to the centerline of Nevada Street, back to the Orleans/Jefferson Parish Line.

Ward 15/Precinct 13B: Bounded by the centerline of the Magellan Canal, to the centerline of Horace Street/Cypress Acres Drive, to the centerline of General DeGaulle Drive, to the centerline of Sandra Drive, to the centerline of Pace Boulevard, to the centerline of Wall Boulevard, to the centerline of Pace Boulevard, back to the centerline of the Magellan Canal.

Ward 15/Precinct 14: Bounded by the centerline of General DeGaulle Drive, to the centerline of Holiday Drive, to the centerline of General Meyer Avenue, to the centerline of Wiltz Lane, to the

centerline of Wall Boulevard, to the centerline of Halsey Avenue, back to the centerline of General DeGaulle Drive.

Ward 15/Precinct 14A: Bounded by the centerline of General Meyer Avenue, to the centerline of Holiday Drive, to the centerline of Copernicus Street, to the centerline of Hyman Place, back to the centerline of General Meyer Avenue.

Ward 15/Precinct 14B: Bounded by the centerline of Fiesta Street, to the centerline of Kabel Drive, to the centerline of MacArthur Boulevard, to the centerline of Holiday Drive, back to the centerline of Fiesta Street.

Ward 15/Precinct 14C: Bounded by the centerline of Anson Street, to the centerline of River Oaks Drive, to the centerline of Berkley Drive, to the centerline of Lang Street, to the centerline of General DeGaulle Drive, to the centerline of Kabel Drive, back to the centerline of Anson Street.

Ward 15/Precinct 14D: Bounded by the centerline of MacArthur Boulevard, to the centerline of Kabel Drive, to the centerline of General DeGaulle Drive, to the centerline of Holiday Drive, back to the centerline of MacArthur Boulevard.

Ward 15/Precinct 14E: Bounded by the centerline of General Meyer Avenue, to the centerline of Horace Street/Cypress Acres Drive, to the centerline of General DeGaulle Drive, to the centerline of Halsey Street, to the centerline of Wall Boulevard, to the centerline of Wiltz Lane, back to the centerline of General Meyer Avenue.

Ward 15/Precinct 14F: Bounded by the centerline of Fiesta Street, to the centerline of Hyman Place, to the centerline of Copernicus Street, to the centerline of Holiday Drive, back to the centerline of Fiesta Street.

Ward 15/Precinct 14G: Bounded by the centerline of the Algiers Outfall Canal, to the Orleans/Jefferson Parish Line, to the centerline of Nevada Street, to the centerline of Seine Court, to the centerline of General DeGaulle Drive, back to the centerline of the Algiers Outfall Canal.

Ward 15/Precinct 15: Bounded by the centerline of Behrman Avenue, to the centerline of Opelousas Avenue, to the centerline of Hendee Street, to the centerline of the Mississippi River, to the centerline of Michael Street, to the centerline of General Meyer Avenue, back to the centerline of Behrman Avenue.

Ward 15/Precinct 15A: Bounded by the centerline of Michael Street, to the centerline of General Meyer Avenue, to the centerline of Nie Parkway, to the centerline of the Mississippi River, back to the centerline of Michael Street.

Ward 15/Precinct 15B: Bounded by the centerline of Nie Parkway, to the centerline of General Meyer Avenue, to the centerline of Woodland Place, to the centerline of the Mississippi River, back to the centerline of Nie Parkway.

Ward 15/Precinct 16: Bounded by the centerline of Woodland Drive, to the centerline of Berkley Drive, to the centerline of Sullen/Simpson Place, to the centerline of the Mississippi River, back to the centerline of Woodland Drive.

Ward 15/Precinct 17: Bounded by the centerline of General Meyer Avenue, to the centerline of Woodland Drive, to the centerline of MacArthur Boulevard, to the centerline of Eton Street, back to the centerline of General Meyer Avenue.

Ward 15/Precinct 17A: Bounded by the centerline of River Oaks Drive, to the centerline of Anson Street, to the centerline of Eton Street, to the centerline of MacArthur Boulevard, back to the centerline of River Oaks Drive.

Ward 15/Precinct 17B: Bounded by the centerline of General Meyer Avenue, to the centerline of Eton Street, to the centerline of Anson Street, to the centerline of Hyman Place, back to the centerline of General Meyer Avenue.

Ward 15/Precinct 18: Bounded by the centerline of MacArthur Boulevard, to the centerline of Eton Street, to the centerline of Berkley Drive, to the centerline of River Oaks Drive, back to the centerline of MacArthur Boulevard.

Ward 15/Precinct 18A: Bounded by the centerline of Berkley Drive, to the centerline of Eton Street, to the centerline of Lacour Monique

Street, to the centerline of Rue Denise Street, to the centerline of Carlisle Court, to the centerline of General DeGaulle Drive, to the centerline of Lang Street, back to the centerline of Berkley Drive.

Ward 15/Precinct 18B: Bounded by the centerline of Woodland Drive, to the centerline of Berkley Drive, to the centerline of Sullen/Simpson Place, to the centerline of General DeGaulle Drive, back to the centerline of Woodland Drive.

Ward 15/Precinct 18C: Bounded by the centerline of MacArthur Boulevard, to the centerline of Woodland Drive, to the centerline of General DeGaulle Drive, to the centerline of Carlisle Court, to the centerline of Rue Denise Street, to the centerline of Lacour Monique Street, to the centerline of Eton Street, back to the centerline of MacArthur Boulevard.

Ward 15/Precinct 18D: Bounded by the centerline of General Degaulle Drive, to the centerline of the Intracoastal Waterway (Lower Coast Algiers), to the Orleans/Plaquemines Parish Line, to the centerline of the Nolan Canal, to the centerline of Tullis Drive, back to the centerline of General DeGaulle Drive.

Ward 15/Precinct 18E: Bounded by the centerline of General DeGaulle Drive, to the centerline of the Nolan Canal, to the Orleans/Plaquemines Parish Line, to the Orleans/Jefferson Parish Line, to the centerline of the Algiers Outfall Canal, back to the centerline of General DeGaulle Drive.

Ward 15/Precinct 18F: Bounded by the centerline of General DeGaulle Drive, to the centerline of the Nolan Canal, to the centerline of Tullis Drive, back to the centerline of General DeGaulle Drive.

Ward 15/Precinct 19: Bounded by the centerline of Sullen/Simpson Place, to the centerline of Berkley Drive, to the centerline of Mansfield Avenue, to the centerline of General Meyer Avenue, to the centerline of Blair Street, to the centerline of the Mississippi River, back to the centerline of Sullen/Simpson Place.

Ward 15/Precinct 19A: Bounded by the centerline of the Intracoastal Waterway (Lower Coast Algiers), to the Orleans/Plaquemines Parish Line, to the centerline of the Mississippi River, back to the centerline of the Intracoastal Waterway (Lower Coast Algiers).

Ward 15/Precinct 19B: Bounded by the centerline of Berkley Drive, to the centerline of Bennett Street, to the centerline of the Mississippi River, to the centerline of Blair Street, to the centerline of General Meyer Avenue, to the centerline of Mansfield Avenue, back to the centerline of Berkley Drive.

Ward 15/Precinct 19C: Bounded by the centerline of Bennett Street, to the centerline of Berkley Drive, to the centerline of Sullen/Simpson Place, to the centerline of Woodland Highway, to the centerline of General DeGaulle Drive, to the centerline of the Intracoastal Waterway (Lower Coast Algiers), to the centerline of the Mississippi River, back to the centerline of Bennett Street.

SIXTEENTH WARD

Ward 16/Precinct 1: Bounded by the centerline of Lowerline Street, to the centerline of the Mississippi River, to the centerline of Cherokee Street, to the centerline of Pearl Street, back to the centerline of Lowerline Street.

Ward 16/Precinct 1A: Bounded by the centerline of Cherokee Street, to the centerline of Pearl Street, to the centerline of Short Street, to the centerline of Leak Avenue, to the centerline of South Carrollton Avenue, to the centerline of the Mississippi River, back to the centerline of Cherokee Street.

Ward 16/Precinct 2: Bounded by the centerline of Maple Street, to the centerline of Lowerline Street, to the centerline of Pearl Street, to the centerline of Short Street, to the centerline of Leake Avenue, to the centerline of South Carrollton Avenue, back to the centerline of Maple Street.

Ward 16/Precinct 3: Bounded by the centerline of Maple Street, to the centerline of Lower-

line Street, to the centerline of Zimple Street, to the centerline of South Carrollton Avenue, back to the centerline of Maple Street.

Ward 16/Precinct 4: Bounded by the centerline of Zimple Street, to the centerline of Lowerline Street, to the centerline of Willow Street, to the centerline of South Carrollton Avenue, back to the centerline of Zimple Street.

Ward 16/Precinct 5: Bounded by the centerline of Willow Street, to the centerline of Lowerline Street, to the centerline of Hickory Street, to the centerline of Adams Street, to the centerline of Green Street, to the centerline of South Carrollton Avenue, back to the centerline of Willow Street.

Ward 16/Precinct 6: Bounded by the centerline of Green Street, to the centerline of Adams Street, to the centerline of Hickory Street, to the centerline of Lowerline Street, to the centerline of Panola Street, to the centerline of South Carrollton Avenue, back to the centerline of Green Street.

Ward 16/Precinct 7: Bounded by the centerline of Panola Street, to the centerline of Lowerline Street, to the centerline of South Claiborne Avenue, to the centerline of South Carrollton Avenue, back to the centerline of Panola Street.

Ward 16/Precinct 8: Bounded by the centerline of South Claiborne Avenue, to the centerline of Lowerline Street, to the centerline of Broad Place, to the centerline of Pine Street, to the centerline of Walmsley Avenue, to the centerline of South Carrollton Avenue, back to the centerline of South Claiborne Avenue.

Ward 16/Precinct 9: Bounded by the centerline of Walmsley Avenue, to the centerline of Pine Street, to the centerline of Washington Avenue, to the centerline of South Carrollton Avenue, back to the centerline of Walmsley Avenue.

SEVENTEENTH WARD

Ward 17 /Precinct 1: Bounded by the centerline of the Mississippi River, to the centerline of South Carrollton Avenue, to the centerline of Zimple Street, to the centerline of Monticello Street, back to the centerline of the Mississippi River.

Ward 17/Precinct 2: Bounded by the centerline of Zimple Street, to the centerline of South Carrollton Avenue, to the centerline of Plum Street, to the centerline of Monticello Street, back to the centerline of Zimple Street.

Ward 17/Precinct 3: Bounded by the centerline of Plum Street, to the centerline of South Carrollton Avenue, to the centerline of Jeannette Street, to the centerline of Monticello Street, back to the centerline of Plum Street.

Ward 17/Precinct 4: Bounded by the centerline of Jeannette Street, to the centerline of South Carrollton Avenue, to the centerline of Green Street, to the centerline of Leonidas Street, back to the centerline of Jeanette Street.

Ward 17/Precinct 5: Bounded by the centerline of Green Street, to the centerline of South Carrollton Avenue, to the centerline of Spruce Street, to the centerline of Leonidas Street, back to the centerline of Green Street.

Ward 17/Precinct 6: Bounded by the centerline of Jeanette Street, to the centerline of Leonidas Street, to the centerline of Spruce Street onward to the corner of General Ogden Street and continuing westward along the sewerage and water board purification plant fence, to the centerline of Monticello Street, back to the centerline of Jeannette Street.

Ward 17/Precinct 7: Bounded by the centerline of Spruce Street, to the centerline of South Carrollton Avenue, to the centerline of South Claiborne Avenue, to the centerline of Monticello Avenue, to the Sewerage and Water Board Purification Plant fence, continuing along the fence, back to the centerline of Spruce Street.

Ward 17/Precinct 8: Bounded by the centerline of South Claiborne Avenue, to the centerline of South Carrollton Avenue, to the centerline of Belfast Street, to the centerline of Leonidas Street, back to the centerline of South Claiborne Avenue.

Ward 17/Precinct 9: Bounded by the centerline of South Claiborne Avenue, to the centerline

of Leonidas Street, to the centerline of Belfast Street, to the centerline of Monticello Street, back to the centerline of South Claiborne Avenue.

Ward 17/Precinct 10: Bounded by the centerline of Belfast Street, to the centerline of South Carrollton Avenue, to the centerline of Fig Street, to the centerline of Leonidas Street, back to the centerline of Belfast Street.

Ward 17/Precinct 11: Bounded by the centerline of Belfast Street, to the centerline of Leonidas Street, to the centerline of Fig Street, to the centerline of Monticello Street, back to the centerline of Belfast Street.

Ward 17/Precinct 12: Bounded by the centerline of Fig Street, to the centerline of South Carrollton Avenue, to the centerline of Palm Street, to the centerline of Leonidas Street, back to the centerline of Fig Street.

Ward 17/Precinct 13: Bounded by the centerline of Fig Street, to the centerline of Hollygrove Street, to the centerline of Edinburgh Street, to the centerline of Leonidas Street, back to the centerline of Fig Street.

Ward 17/Precinct 13A: Bounded by the centerline of Fig Street, to the centerline of Monticello Street, to the centerline of Airline Highway, to the centerline of Edinburgh Street, to the centerline of Hollygrove Street, back to the centerline of Fig Street.

Ward 17/Precinct 14: Bounded by the centerline of Airline Highway, to the centerline of Pontchartrain Boulevard, to the centerline of South Carrollton Avenue, to the centerline of Palm Street, to the centerline of Leonidas Street, to the centerline of Edinburgh Street, back to the centerline of Airline Highway.

Ward 17/Precinct 15: Bounded by the centerline of the Seventeenth Street Canal, to the centerline of Palmetto Street, to the centerline of Airline Highway, back to the centerline of the Seventeenth Street Canal.

Ward 17/Precinct 16: Bounded by the centerline of Last Street, to the centerline of Mistletoe Street, to the centerline of Heaton Street, to the centerline of Hamilton Street, to the centerline of Peach Street, to the centerline of Mistletoe Street, to the centerline of Dixon Street, to the centerline of Cherry Street, to the centerline of Palmetto Street, to the centerline of Airline Highway, to the centerline of Interstate 10, back to the centerline of Last Street.

Ward 17/Precinct 17: Bounded by the centerline of the Southern Pacific railroad tracks, to the centerline of Pontchartrain Boulevard, to the centerline of Last Street, to the centerline of Mistletoe Street, to the centerline of Heaton Street, to the centerline of Hamilton Street, to the centerline of Peach Street, to the centerline of Mistletoe Street, to the centerline of Dixon Street, to the centerline of Cherry Street, to the centerline of Palmetto Street, to the Orleans/Jefferson Parish Line, back to the centerline of the Southern Pacific railroad tracks.

Ward 17/Precinct 18: Bounded by the centerline of Interstate 610, to the centerline of Pontchartrain Boulevard, to the centerline of the Southern Pacific railroad tracks, to the Orleans/Jefferson Parish Line, back to the centerline of Interstate 610.

Ward 17/Precinct 18A: Bounded by the centerline of Interstate 610, to the Orleans/Jefferson Parish Line, to the centerline of West Harrison Avenue, to the centerline of Bellaire Drive, to the centerline of Twentieth Street, to the centerline of Pontchartrain Boulevard, back to the centerline of Interstate 610. (*Editorial note:* Formerly Ward 17/Precinct 18A and Ward 17/Precinct 18B.)

Ward 17/Precinct 19: Bounded by the centerline of Twentieth Street, to the centerline of Bellaire Drive, to the centerline of West Harrison Avenue, to the Orleans/Jefferson Parish Line, to the centerline of Seattle Street, to the centerline of Bellaire Drive, to the centerline of Thirty-Sixth Street, to the centerline of Fleur De Lis Drive, to the centerline of Thirty-Sixth Street, to the centerline of Pontchartrain Boulevard, back to the centerline of Twentieth Street. (*Editorial note:* Formerly Ward 17/Precinct 19 and Ward 17/Precinct 19A.)

Ward 17/Precinct 20: Bounded by the centerline of Thirty-Sixth Street, to the centerline of Fleur De Lis Drive, to the centerline of Thirty-

Sixth Street, to the centerline of Bellaire Drive, to the centerline of Seattle Street, to the Orleans/Jefferson Parish Line, to the centerline of Lake Pontchartrain, to the centerline of the New Basin Canal, to the centerline of Allen Toussaint Boulevard, to the centerline of Pontchartrain Boulevard, back to the centerline of Thirty-Sixth Street. (*Editorial note:* Formerly Ward 17/Precinct 20 and Ward 17/Precinct 21.)
(Code 1956, § 20-1; M.C.S., Ord. No. 17,824, § 1, 11-7-96; M.C.S., Ord. No. 17,911, § 1, 12-5-96; M.C.S., Ord. No. 18,476, § 1, 10-16-97; M.C.S., Ord. No. 18,854, § 1, 8-20-98; M.C.S., Ord. No. 19,035, § 2, 12-17-98; M.C.S., Ord. No. 20405, § 1, 10-4-01; Ord. No. 20,457, § 1, 1-15-01; M.C.S., Ord. No. 23376, § 1, 1-8-09; M.C.S., Ord. No. 25469, § 1, 9-12-13; M.C.S., Ord. No. 26435, § 1, 6-4-15; M.C.S., Ord. No. 27623, § 1, 12-14-17, eff. 12-1-17; M.C.S., Ord. No. 28571, § 1, 12-17-20, eff. 1-1-21; M.C.S., Ord. No. 29018, § 1, 5-5-22)

Sec. 58-37. Carrying of firearms in vicinity of polls prohibited.

It shall be unlawful for any person, whatever may be his calling or avocation, station or office, to carry any firearms on election day at or in the vicinity of any poll or polling place in the city, unless the person so carrying such firearm is a member of the police department of the city or a deputy sheriff of the parish.
(Code 1956, § 20-2)

Sec. 58-38. Fees for voter registration services.

The director of the department of finance shall charge at the time of issuance each person requesting voter registration information according to the following schedule plus a $10.00 set-up charge for each computer run:

(1)	Labels, per 1,000 names ...	$18.00
(2)	Cards (3" × 5"), per 1,000 names	$18.00
(3)	Paper (14¾" × 11", #15), per 1,000 names	$14.00
(4)	Listing, per 1,000 names...	$14.00
(5)	Street director, per 1,000 names	$13.00
(6)	Ward and precinct director, per 1,000 names.....	$13.00
(7)	Magnetic tape copy of entire file, per tape	$1,000.00

(Code 1956, § 20-3)

Sec. 58-39. Selection of polling places.

The clerk of council is authorized to contract with the clerk of criminal district court for finding and negotiating rental of space for polling places for all elections. Such contract shall be in accordance with section 6-307 of the home rule charter. The council shall approve all polling places by motion of the council.
(Code 1956, § 20-4)

Chapters 59–61

RESERVED

Chapter 62

EMERGENCY MEDICAL SERVICES*

Article I. Provision of Emergency Medical Services

Sec. 62-1. Department of emergency medical services (EMS).
Sec. 62-2. Private providers of emergent medical services.
Sec. 62-3. Non-emergency and other service by private providers.
Sec. 62-4. Secondary employment prohibited.
Secs. 62-5—62-35. Reserved.

Article II. Emergency Medical Services Regulations

Division 1. Generally

Sec. 62-36. Definitions.
Sec. 62-37. Exemptions.
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*__Editor's note—__M.C.S., Ord. No. 25023, § 1, adopted Sept. 20, 2012, amended Ch. 62 in its entirety to read as herein set out. Former Ch. 62, §§ 62-36, 62-37, 62-56—62-61, 62-91—62-95, pertained to emergency services, and derived from Code 1956, §§ 35A-1—35A-13. See the Code Comparative Table for complete derivation.

__Cross reference—__Businesses, ch. 30.

__State law references—__Regulation by local authorities of emergency medical services, R.S. 33:4791.1; emergency medical services, R.S. 40:1231 et seq.

ARTICLE I. PROVISION OF EMERGENCY MEDICAL SERVICES

Sec. 62-1. Department of emergency medical services (EMS).

(a) New Orleans EMS shall be the sole provider of prehospital emergency ambulance service within the parish where the request for service or assistance is made through the Emergency 911 system through the Orleans Parish Communications District or through public request for nonscheduled emergency transport.

(b) New Orleans EMS is responsible for overseeing and supervising the prehospital movement of emergency medical vehicles possessing a valid and current permit to operate in the City of New Orleans.

(c) New Orleans EMS is authorized to coordinate, in conjunction with Orleans Parish Communications District and local hospitals, all emergency medical radio communications frequencies, talk groups, and channels utilized within the parish.

(d) In the absence of a licensed physician and at the scene of a prehospital medical emergency occurring within the boundaries of the City of New Orleans, the New Orleans EMS EMT-Paramedic shall be recognized as the highest medical authority on the scene.

(e) New Orleans EMS, through the mayor and his or her designee, shall be authorized to issue all permits to operate ambulances within the parish.

(f) When New Orleans EMS provides standby service at any event, New Orleans EMS shall be the sole provider of emergency ambulance service needed as a result of illness or injury occurring at that event unless New Orleans EMS specifically authorizes another ambulance to provide such service.

(g) New Orleans EMS shall have the authority to promulgate rules and regulations pursuant to the provision of prehospital emergency medical care within the City of New Orleans.

(h) New Orleans EMS shall be authorized to report any violations of this chapter to the city attorney for judicial action by that department or as deemed appropriate.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-2. Private providers of emergent medical services.

(a) No private provider may transport any patient in need of emergency care when the request for service or assistance is made through the emergency 911 system unless specifically authorized by New Orleans EMS or as a rollover emergency transport or under professional medical contract or through request of a member of the public for a nonscheduled emergency without subsequent notification of New Orleans EMS, excluding standby detail services with advanced life support (ALS) care on scene. Notwithstanding anything herein to the contrary, private providers providing emergency transport must do so in accordance with Region One Protocol Effort (ROPE) protocols.

(b) No owner or operator of an ambulance may respond to any emergency in any ambulance not certified at the advanced life support level and capable of providing advanced life support care.

(c) By making application for a permit hereunder and by providing ambulance service in the City of New Orleans, each ambulance owner and operator agrees to provide, based on availability of resources and equipment not previously committed to emergency evacuation response and when safely equipped and able to do so, such ambulance services as may be requested by New Orleans EMS in the event of mass casualties or catastrophic event.

(d) No ambulance shall respond or provide transportation in emergency circumstances unless they meet the qualifications as set forth in this article.

(e) No ambulance service shall operate at the advanced life support level unless they meet the qualifications as set forth in this article, specifically having at a minimum an EMT-Paramedic in the ambulance.

(f) No private ambulance provider shall use any form of mass media to advertise any telephone number other than 911 for medical emergencies in the City of New Orleans. Any advertisements for non-emergency care must include notations that 911 is to be called for emergencies. Exceptions include telephone numbers for the ambulance provider on an ambulance or vehicle, and emergency numbers used in hospitals, universities, industrial centers or other facilities where an internal emergency number exists to access emergency services dispatchers or public safety officials.

(g) No private ambulance provider shall advertise or hold themselves out as a prehospital emergency medical services provider in the City of New Orleans, except as approved and permitted in this article.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-3. Non-emergency and other service by private providers.

(a) Permitted providers shall be the sole providers of all scheduled transports and non-emergency ambulance transportation originating in Orleans Parish, except as noted otherwise in this section and except when medically advisable to protect the patient's best interest, as determined by a physician.

(b) All private providers shall be required to provide New Orleans EMS a listing of all contracts for scheduled transports, professional medical services, and emergency services on or before the first date of the calendar year to determine compliance with this chapter. Such listing shall be done on the form provided by New Orleans EMS. Any changes to contracts should be relayed to New Orleans EMS within 30 days. All information will remain strictly confidential and utilized only for emergency purposes.

(c) Private providers shall be allowed to provide standby services at private community events. Standby services must be provided at the advanced life support level and shall ensure that any emergency requiring transportation to a hospital is by an advanced life support ambulance in the event of an emergency occurring on the site of the event. Private providers may do other standbys with coordination and notification of New Orleans EMS.

(d) New Orleans EMS shall be the sole provider of professional medical services and standby services for:

(1) All events taking place in Orleans Parish which are sponsored by or paid for by the City of New Orleans, its boards, agencies, and commissions.

(2) All events which take place on municipally owned or operated property unless a private provider has a valid professional medical services contract for the provision of services at the event or venue.

(3) All events which take place on public thoroughfares, streets, sidewalks, or rights-of-way, especially if such event causes closure of a street or requires supportive services from other city departments, agencies, boards or commissions, except in cases where New Orleans EMS is unable to provide for such services, as determined by the director of EMS or his or her designee or where the private provider has a valid professional medical services contract in effect with the venue or host.

(e) If a private provider has a contract to provide professional medical services or emergency medical services, then the private provider must ensure an advanced life support ambulance is on site, thus providing adequate coverage and response time, whenever the building, facility or space is occupied for use or an event is taking place such that it is not normal occupancy during standard use. Adequate coverage shall include:

(1) Call taking and dispatching of emergency medical resources.

(2) ALS response in a time commensurate with the 911 system.

(3) Appropriate additional response as should be necessary, including, but not limited to, other first responder or public safety agencies, such as the New Orleans Fire Department and New Orleans Police Department.

(f) Exceptions to part (e) of this section shall include:

(1) Dialysis centers.

(2) Medical office complexes.

(3) Doctor's offices.

(4) Nursing homes.

In the cases of exceptions, coverage shall be guided by the contract in place.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-4. Secondary employment prohibited.

The person employed as the director of emergency medical services shall have no other employment of any kind.
(M.C.S., Ord. No. 29656, § 1, 10-5-23)

Secs. 62-5—62-35. Reserved.

ARTICLE II. EMERGENCY MEDICAL SERVICES REGULATIONS

DIVISION 1. GENERALLY

Sec. 62-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agency means any department, division, board, council, committee, authority or agency of the state or city or any of its political subdivisions.

Advanced life support ambulance means any publicly or privately owned vehicle equipped or used for transporting the wounded, injured, sick or dead by stretcher, including emergency and non-emergency vehicles used for that purpose, but not including funeral coaches used exclusively as such. Said vehicle shall provide space for, two EMTs, with at least one being a certified emergency medical technician-paramedic and a minimum of two litter patients positioned that at least one patient can be given intensive life support during transit. The vehicle must be permanently equipped, as part of its regular equipment, with the minimum essential equipment in appropriate sizes for treating infants, children and adults to include, but not limited to, the equipment as specified by the Region One Protocol Effort for Orleans, Jefferson, Plaquemines, and St. Bernard Parishes, including, to wit:

(1) Portable, battery-operated monitor/biphasic defibrillator with 12 lead capability, recorder, monitor/cables, variable-size electrodes, and adult and pediatric paddles or pads.

(2) Micro drip and Macro drip intravenous administration sets.

(3) Intravenous catheters ranging from 14 to 24 gauge.

(4) Laryngoscope with appropriate size straight and curved blades.

(5) Endotracheal tubes sized 3.5, 4.0, 5.0, 6.0, 7.0, and 8.0.

(6) Stylettes for endotracheal tubes.

(7) Magill forceps.

(8) Portable oxygen.

(9) Portable suction.

(10) Resuscitation bag.

(11) Blood pressure cuffs.

(12) Associated oropharngeal airways, and nasopharyngeal airways.

(13) Long spine boards.

(14) All medications listed in the Region One Protocol Effort.

(15) Intraosseous vascular access, adult and pediatric.

(16) SpO2 monitoring.

(17) Trancutaneous pacing.

(18) Ability to provide induced hypothermia for cardiac arrests.

Basic life support ambulance or *BLS ambulance* is defined as an ambulance staffed with two EMT-basics which provides the basic level of care provided by emergency medical technicians. The basic level of care provided by emergency

medical technicians includes basic airway management, care of choking victims, oxygen administration, hemorrhage control, splinting fractures and immobilization of spinal injuries. Basic life support (BLS) generally does not include the use of drugs or invasive skills, but all care on a BLS ambulance must adhere to the guidelines of the Region One Protocol Effort.

Certified emergency medical technician-basic or *EMT-B, EMT-basic, EMT* refers to any person who has successfully completed a basic emergency medical technician training course approved by the Louisiana Department of Transportation and Development and the Louisiana Department of Health & Hospitals, and is currently certified by the State of Louisiana, the National Registry of Emergency Medical Technicians and holds a valid Orleans Parish Permit.

Certified emergency medical technician-intermediate or *EMT-I, EMT-intermediate, advanced EMT* refers to any person who has successfully completed an emergency medical technician intermediate course approved by the Louisiana Department of Transportation and Development and the Louisiana Department of Health & Hospitals, and is currently certified by the State of Louisiana, the National Registry of Emergency Medical Technicians and holds a valid Orleans Parish Permit.

Certified emergency medical technician-paramedic or *EMT-P, EMT-paramedic,* or *paramedic* refers to any person who has successfully completed an emergency medical technician paramedic course approved by the Louisiana Department of Transportation and Development and the Louisiana Department of Health & Hospitals, and is currently certified by the State of Louisiana, the National Registry of Emergency Medical Technicians and holds a valid Orleans Parish Permit. The emergency medical technician-paramedic shall render emergency medical care within the scope of practice specified in R.S. 40:1234 and governed by ROPE.

Specialty care transport shall mean an inter-facility transfer of a critically ill or injured patient that requires specialized treatment interventions, monitoring and/or staffing with specially trained personnel, including at a minimum an appropriately trained paramedic or higher practitioner.

New Orleans EMS or *NOEMS* shall mean New Orleans Emergency Medical Services, the department charged with providing prehospital emergency medical care and emergent ambulance transport for the City of New Orleans.

Emergency patient shall mean an individual who is ill, injured, or otherwise incapacitated and is at risk of needing time urgent treatment and or life sustaining treatment or care during transportation by stretcher to or from a health care facility.

Emergency medical technician or *EMT* shall mean any EMT-B, -I or -P.

Essential information shall include location of the patient, any requested directions to the location, callback number, and chief complaint or nature of problem or if the initial location information is obtained from a 911-data base, confirmation that the patient's location is the same as that of the caller or confirmation of the patient's actual location.

Event organizer means the individual or entity responsible for planning, financing or sponsoring any private community event or event on public property

Inspection means the annual review of the medical transportation service for the purpose of rendering licenses, permits, and/or certificates to operate such services within the city. This shall mean review of all requested records, physical review of all vehicles and equipment to ascertain their existence and functional use. Inspection will be performed within 60 days of application submittal. Nothing in this definition is meant to waive any legal privilege that a party may have or the production of any information not in compliance with federal or state privacy laws, rules or regulations.

Medical director is a physician licensed to practice medicine by the Louisiana State Board of Medical Examiners.

Non-emergency means all medical care and transportation which is not emergent in nature.

Orleans Parish Communications District or *OPCD* means the Communications District of Orleans Parish, created by and charged with the

duties set aside in R.S. 33:9101, to maintain and operate the emergency communications systems for public safety within the parish and thereby City of New Orleans.

Owner or *operator* means any person or entity which owns, controls, or operates an ambulance for purposes of providing both emergency and non-emergency medical care and transportation.

Patient means any individual who is sick, injured, wounded, or otherwise incapacitated or helpless, or a pregnant woman.

Permit means any authorization issued pursuant to this article for a vehicle operated as a medical transportation vehicle that meets standards approved by the director.

Person includes any person, firm, partnership, association, company or organization of any kind.

Private community event means any event on privately owned or leased property where an owner or operator is providing standby services

Private provider means any nongovernmental organization, corporation, entity or person which owns, controls, or operates an ambulance for purposes of providing both emergency and non-emergency medical care and transportation.

Professional medical contract is an agreement or contract for the recurring provision of professional medical care, treatment or transport of sick or injured persons from a facility or series of events. Professional medical contracts are not the same as standby services. The limitations on the provision of emergency services or 911 services are not applicable to professional medical contracts. Private providers who have entered into valid professional medical contracts may provide emergency transports in accordance with such contracts without prior authorization of New Orleans EMS. Professional medical contract does not create an exception to paragraph (a), section [62-99] "Review of rates and financial information" specific to Medicare rate compliance. Rates must be compliant with prevailing Medicare allowable rates in the year the contract was executed.

Public need and necessity shall mean that there exists a current and permanent need for additional ambulance service in the City of New Orleans and that the existing ambulance operators currently holding valid permits to operate within the city, after being notified by the City of New Orleans of a finding of such need, fails or refuses to provide the additional services determined necessary, within 60 days of such notification.

Region One Protocol Effort or *ROPE* shall refer to those medical protocols which have been developed and promulgated for use within Orleans and surrounding parishes. These protocols provide standard operating guidelines for pre-hospital treatment and care of patients. Any EMT certified to provide pre-hospital care must follow these protocols. The use of any other protocol for an EMS system, public or private, within the Parish of Orleans is strictly prohibited.

Reinspection means the revisit to a medical transportation service for the purpose of rendering licenses, permits or certificates to operate such services within the city. Reinspection will occur when the provider service has failed to meet all the expected criteria and/or provide the requested documentation for inspection. Reinspection will occur no later than 30 calendar days after initial inspection.

Rollover emergency shall refer to those overflow emergency calls received by private ambulance providers from the New Orleans EMS when it is determined that the New Orleans EMS does not have the resources available to handle the call in the manner necessitated by the emergent nature of the call.

Rollover emergency provider list shall be a list maintained by the New Orleans Health Department of those private ambulance providers permitted to operate in the City of New Orleans who make themselves available for rollover emergencies. This list shall include all licensed ambulance services in New Orleans and all agencies in Region One that are 911 providers as of August 1, 2012, who have continued to maintain and comply with the provisions of this chapter where applicable.

Rollover non-emergency means any call referred to a private provider by New Orleans EMS

upon a determination made at the scene by the New Orleans EMS that the call is of a non-emergent nature. Such calls may be handled by BLS equipped ambulances.

Special response unit shall mean any specialty emergency vehicle or specialty emergency response unit designed to be a mobile and mechanically or human powered transportation device, other than ambulances, full sized vehicles or helicopters and air planes, and shall include, medical carts, golf cart ambulances, alternative support apparatus (ASAP), bike teams, rescue boats, and any other units which are used to respond to medical emergencies. Such units shall have fully visual and audible warning signals when the primary purpose of which is to respond to the scene of a medical emergency to provide emergency medical stabilization, transport of patients, or support, command, control, and communications.

Sprint unit means any emergency vehicle with fully visual and audible warning signals operated by a certified ambulance service, the primary purpose of which is to respond to the scene of a medical emergency to provide emergency medical stabilization or support, or command, control, and communications, but which is not an ambulance designed or intended for the transport of a patient.

Scheduled transport shall mean a non-emergency transport of a patient to or from a facility arranged by the patient, the facility or a patient representative.

Standby services shall be those services that are offered on a non-recurring basis to governmental or private organizations, individuals, entities or corporations for medical coverage, patient transportation, or treatment of sick or injured persons.

Volunteer ambulance service means any ambulance service comprised entirely of unpaid, unremunerated emergency medical technicians, and which does not charge patients for treatment, transport or a service rendered, and which holds, or whose parent organization holds, current status as a tax-exempt organization and is registered as such with the Internal Revenue Service and the Louisiana Secretary of State.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-37. Exemptions.

(a) The following are exempted from the provisions of this section:

(1) The occasional use of a privately owned or publicly owned vehicle, aircraft or marine craft not ordinarily used in the business of transporting persons who are sick, injured, wounded, or otherwise incapacitated or helpless or operating under the provisions of the Good Samaritan Law in the performance of a life-saving act.

(2) All medical transportation vehicles wholly owned and operated by an agency of the United States Government for routine operations.

(3) Ambulances wholly owned, or leased, by industrial agency ambulance services and providing transportation to employees, students, faculty, or individuals who become sick or injured within the boundaries of their property or coverage area and request treatment and/or emergency transportation to the nearest appropriate medical facility on a regular and recurring basis. Exemptions do not include ambulances or ambulance services contracted to provide services to an industrial agency.

(4) Volunteer ambulance services are exempt from all provisions of this section in the event that they have an annual memorandum of understanding with the City of New Orleans for operation that shall include, at a minimum:

a. Conditions for operation to include yearly inspection, a defined response area, specific patient population served, and level of care provided.

b. Conditions for notification and activation of the 911 emergency response system through the Orleans Parish Communications District.

c. Review of operations and procedures by the Medical Director or Director of New Orleans EMS.

d. Fees for operations paid shall be no less than those set forth for private ambulance providers in the City of New Orleans, and shall include inspection of vehicles.

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Secs. 62-38—62-55. Reserved.

DIVISION 2. LICENSES

Sec. 62-56. Required license.

(a) No owner or operator of an ambulance shall respond to any request for ambulance

service originating within the City of New Orleans unless such provider is a holder of a permit to operate an ambulance service from New Orleans EMS.

(b) Unless an existing permit holder as of August 1, 2012, in order to obtain a permit to operate an Ambulance within the City of New Orleans, an owner or operator of an ambulance must obtain from the City of New Orleans a certificate of need and necessity which may be issued by New Orleans EMS only after a determination that public need and necessity exists as expressed by the proposed ambulance service.

(c) Exclusion. The provisions of this section shall not apply to volunteer ambulance services, as previously defined, or ambulances wholly owned, leased by industrial ambulance services and providing transportation to employees, students, faculty, or individuals who become sick or injured within the boundaries of their property or coverage area and request treatment and/or emergency transportation to the nearest appropriate medical facility.

(d) No license, permit or certificate issued hereunder shall be assignable or transferable by the person or entity to whom it is issued, unless otherwise stated. All licenses, permits or certificates are the property of the city.

(1) *Exceptions to transfer.* Private providers who wish to add owners or operators to their company board of directors, partnerships, other otherwise, may do so provided the original license holder(s) remain owners and stakeholders in the company. The addition of owners shall follow the process of license renewal as set forth in this article.

(2) *Provisions for purchase of a company.* Should a private provider's owners, board, directors or partners wish to sell their company, nothing in this chapter concerning certificates of need and necessity or other requirements shall prohibit them from doing so. If the prospective owners or operators can produce signed letters of intent with a majority of contract holders stating their intention to continue business with the new company, then the license shall be transferred following the process for license renewal, including vehicle inspection, as set forth in this article. Should the prospective owners fail to produce signed letters of intent with a majority of contract holders then the prospective owner or operator will be required to follow the application procedure to show need and necessity.

(e) Exception for existing permit holders. The public need and necessity certificate requirements of this chapter shall only be applicable to those ambulance services not currently operating within Orleans Parish who are seeking new permits on or after August 1, 2012. Existing permit holders shall be required to comply with the provisions of this chapter at the time of next vehicle inspection and renewal.

(f) There shall be no more than three and no fewer than two owner/operator permits issued to private providers within the City of New Orleans.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-57. Application procedure.

(a) Applications for new permits and/or referrals shall be made to New Orleans EMS in form and substance as prescribed by NOEMS and shall include:

(1) The name and business address of the operator and owner of the medical transportation vehicle service or proposed medical transportation service.

(2) The name under which the applicant will operate.

(3) A list of the names and addresses of all officers, directors, and shareholders if incorporated; or if the organization is an unincorporated association, a list of the names and addresses of all officers and directors.

(4) A description of each medical transportation vehicle to be used, including the make, model, year of the vehicle, mileage, motor and chassis numbers, passenger capacity, size and gross weight of each vehicle, and marine registration number where applicable, and the color scheme, insignia, name, monogram and other distinguishing characteristics to be used to designate the applicant's vehicles.

(5) The location and description of the place from which a medical transportation vehicle service will operate.

(6) A statement reasonably describing the geographic area and the population to be served by the applicant.

(7) Such other information as the department deems reasonable and necessary, including, but not limited to a notarized copy of the good conduct form to be provided by New Orleans EMS.

(b) The department shall issue a license for operation within 60 days of the filing of the application to any applicant complying with the following requirements:

(1) The applicant has paid the fees required by the established fee schedule.

(2) The medical transportation vehicle, emergency medical technician, medical transportation vehicle driver and services meet the requirements of this chapter.

(3) The applicant has furnished evidence of adequate insurance coverage for claims arising out of injury or death of persons and damage to the property of others resulting from any cause for which the owner of such business or service would be liable, as defined in this chapter.

(c) Medical transportation services with valid permits agree to function and adhere to the prehospital care standards and administrative policies as outlined in the Region One Protocol Effort.

(d) A maximum of two applications may be submitted per business per year.

(e) Medical transportation services with a valid permit agree to the creation and implementation of an emergency operations plan produced in conjunction with New Orleans EMS and the New Orleans Office of Homeland Security and Emergency Preparedness in order to ensure participation in any mass casualty event or natural disaster. This includes, but is not limited to, the number of EMS vehicles and personnel being allocated to the city during such events.

(f) For annual EMT permits, an applicant may indicate on his/her application that the permit will only be used for duties performed as an employee of the City of New Orleans. If a city employee makes such a declaration, and furnishes proof of city employment, no fee shall be charged to such applicant for the annual permit. Any city employee who accepts outside employment, full-time or part-time, as an EMT shall no longer be exempt and shall remit payment as required pursuant to this article.
(M.C.S., Ord. No. 25023, § 1, 9-20-12; M.C.S., Ord. No. 25522, § 1, 10-10-13, eff. 1-1-14)

Sec. 62-58. Design specifications.

A permit shall be issued for a medical transportation vehicle only if it complies with vehicle design specifications approved by the U.S. Department of Transportation, and by the Director of New Orleans EMS.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-59. Suspension or revocation; denial; late fees; procedures; appeal.

(a) Every owner, operator or EMT of any level licensed under this chapter shall comply with the provisions hereof and with all city, state and federal laws. Failure to do so shall result in penalties, suspension or revocation of the permit or license.

(b) New Orleans EMS shall have the discretion to penalize any owner or operator who violates a provision of this chapter. The penalty for a first violation shall be $500.00. A second violation within one year of the first violation shall result in a penalty of $500.00. A third violation within one year of the first violation may result in suspension or revocation of the permit as provided herein. Additional violations of any nature after which occurring within one year of reinstatement following a suspension will result in suspension for a period not to exceed two years.

(c) New Orleans EMS shall have the discretion to penalize any EMT who does not renew his/her annual EMT permit within 365 days from issuance of the previous permit. The penalty for a first violation shall be $100.00. The penalty for a second violation shall be $200.00. Subsequent violations may result in suspension of a permit for a period of six months.

(d) New Orleans EMS shall have the sole discretion to deny any application for permit or license if, following appropriate notice and hearing thereof, it is determined that the applicant does not possess the necessary qualifications for such a permit or license.

(e) New Orleans EMS may suspend any permit or license issued under this chapter for failure or refusal to comply with the provisions of the chapter, such suspension to last for a period of not more than 30 days. New Orleans EMS may also revoke any permit or license for failure to comply with the provisions of this chapter. However, the permit or license may not be revoked unless the holder has received notice of such decision and has been afforded an opportunity to appeal the decision of New Orleans EMS to the New Orleans City Council.

(f) Any party aggrieved by the granting, denial, revocation or suspension by New Orleans EMS of an applicant's permit may appeal such granting or denial to the New Orleans City Council Committee on Healthcare and Social Services by written notice given to the New Orleans EMS by certified mail, return receipt requested, within 30 days of the date of the action of which complaint is made. The New Orleans City Council shall afford the complaining party a hearing of its complaint before the New Orleans City Council Committee on Healthcare and Social Services. Notice of the hearing of the complaint must be given to all permitted providers of ambulance services, by personal delivery or by certified mail, return receipt requested, at least ten days prior to such hearing. Any appeal of the committee's decision shall be made to the full body of the New Orleans City Council within 30 days of receipt of the decision from the New Orleans City Council Committee on Healthcare and Social Services and shall be consistent with rules established by the city council for such appeals. The full New Orleans City Council shall have the power to overturn the decision of the committee by majority vote if it is determined that the decision was a clear abuse of discretion in light of the provisions of this chapter. Decisions of the New Orleans City Council and, if appeal is denied, its committee, are final.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-60. Fee schedule.

Upon satisfying all the requirements of this chapter, New Orleans EMS shall issue a license or permit for the operation of an ambulance service business in the City of New Orleans in accordance with the fee schedule established herein. All fees shall be deposited directly into the general fund.

Annual Business License (Initial & Renewal)	$500
Temporary 30-Day Business License	$500
Annual Vehicle Permit — Ambulance	$200 per unit
Annual Vehicle Permit — Quick Response Sprint Unit	$100 per unit

Annual Vehicle Permit — Special Response Unit	$50 per unit
Annual Vehicle Permit — Ambulance Bus *(Includes any vehicle designed and constructed to safely transport more patients than the standard ambulance configuration)*	$500 per unit

(M.C.S., Ord. No. 25023, § 1, 9-20-12; M.C.S., Ord. No. 30213, § 1, 1-9-25)

Sec. 62-61. Criteria for need and necessity.

(a) No favorable recommendations shall be made for a certificate of need and necessity and no certificate of need and necessity shall be issued unless the applicant proves in a public hearing, conducted by the director of EMS, that the issuance of a permit to provide ambulance service is necessary due to a specific deficiency or need in the services currently provided, and that the issuance of the permit will improve the quality of ambulance service to the public.

(b) In the event that an applicant prevails in proving such a need by a preponderance of the evidence at a public hearing, any existing ambulance service permit holders will be given notice of any application for a certificate of need and necessity and will have 30 working days from the date of notice to respond in writing with opposition to, objection to or request for modification of the application and to state whether the application, if granted, would negatively affect the ability of any existing ambulance service permit holder to continue providing services.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-62. Qualifications for new permit.

In determining whether a permit shall be issued, NOEMS shall give weight and due regard, among other things, to:

(1) The probable performance and quality of the service offered by the applicant measured by, among other things, proof of financial responsibility, the establishment and maintenance of a bona fide office in Orleans Parish from which the service is offered, and the ability of the applicant to provide simultaneous 24-hour emergency and non-emergency response.

(2) The experience that the applicant has had in the rendering of services in the City of New Orleans or elsewhere.

(3) The financial ability of the applicant to respond in damages to any lawsuit arising out of provision of services and the past experience in payment of judgments and satisfaction of claims, if any, arising out of the operation of such vehicles.

(4) Proof that insurance, as required by this chapter, has been secured.

(5) Proof that all requirements of this chapter and all other applicable state and local laws have been complied with.

(6) The ability of the service to provide care in compliance with ROPE standards, including mechanisms for continuous quality improvement and medical oversight by a medical director, New Orleans EMS, or the Orleans Parish Medical Society.

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Secs. 62-63—62-90. Reserved.

DIVISION 3. REGULATIONS

Sec. 62-91. Required equipment.

All medical transportation vehicles issued a permit or a temporary permit under this article shall be equipped with the following minimum essential life support items:

(1) All equipment required for permit for title XIX certification and state permit through the state agency governing EMS.

(2) A radio system for emergency medical communications between vehicles and hospitals. The radio system transmissions and medical control contact shall be recorded and such recorded transmissions will be held by the permitted business for a period of not less than three years.

(3) The minimum essential equipment as specified for an advanced life support ambulance. Any ambulance responding to rollover emergency calls must be equipped at the same level.

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-92. Certifications and standards for personnel.

(a) After August 1, 2012, every medical transportation vehicle not specifically excluded in the provisions of this article, when transporting a sick, injured, wounded, incapacitated or helpless person, shall be occupied by at least two persons, one of whom is either a licensed physician, registered nurse (RN), licensed practical nurse (LPN), or emergency medical technician, and the highest level of provider must be present in the patient compartment of the vehicle, and the other to be a certified medical transportation vehicle driver.

(b) Any person desiring certification as an emergency medical technician shall make application to the department on forms provided by the department. The department shall determine whether the applicant meets the prescribed qualifications as set forth in this section and, if so, issue a certificate.

(c) An applicant for an emergency medical technician's permit must:

(1) Have completed training which meets state standards, and possess a state EMT permit and a national registry of EMT certification.

(2) Be free from addiction to alcohol or any narcotic or drug.

(3) Be free from any physical or mental defect or disease which might impair the applicant's ability to attend a medical transportation vehicle.

(d) An applicant for a medical transportation vehicle driver's certificate must meet all standards required of an emergency medical technician, and in addition:

(1) Must have completed within the past one year, a defensive driving course approved by the department.

(2) Must hold a valid state driver's license of either Class D or E, as specified by the Louisiana Department of Public Safety, Office of Motor Vehicles.

(3) Must be at least 18 years of age.

(e) Emergency medical technician and medical transportation driver certificates are valid for a period of one year from the date of issuance, and may be renewed if the holder meets the prescribed standards at the time of renewal.

(f) The department is authorized to suspend or revoke a certificate at any time, if it determines, after notice and hearing in accordance with due process requirements, that the holder fails to meet the prescribed qualifications.

(g) No personnel shall have ever been convicted under the laws of this state or of any other state, or of the United States, of the offense of murder, aggravated battery, aggravated rape, simple rape, aggravated burglary, simple burglary, aggravated kidnapping, simple kidnapping, armed robbery, simple robbery, pandering, prostitution, soliciting for prostitutes, illegal possession or sale or use of narcotics, contributing to the delinquency of a juvenile or indecent behavior with a juvenile.

(h) No personnel shall have been convicted of any other felony or of any misdemeanor involving moral turpitude against the criminal laws of this state or of any other state, or of the United States within five years, nor shall such person have served any part of a sentence therefor within five years before the date of the filing of the application, nor shall such person be presently charged therewith, or with any of the felonies, offenses or misdemeanors set forth in paragraph (3) of this section or with violating any of the provisions of this chapter.

(i) All employees of provider who shall operate an ambulance in the City of New Orleans shall have been issued and be in possession of a valid driver's license for the operation of said vehicle. Additionally, provider shall, at all times, certify, under the penalty of permit revocation, that all drivers of its ambulances meet the following criteria:

(1) The driver is a person of at least 18 years of age; and

(2) The driver is a Louisiana certified emergency medical technician-basic, emergency medical technician-intermediate, or emergency medical technician-paramedic.

(3) No person shall impersonate, refer to himself, or otherwise hold himself out as a basic, intermediate or paramedic emergency medical technician without maintaining a current certification as such.

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-93. Insurance required.

Before any permit is issued hereunder, the applicant must file with the New Orleans Health Department, New Orleans EMS policies of general liability insurance, automobile liability insurance, workers compensation insurance and medical legal liability insurance issued by an insurance company qualified to do business in the State of Louisiana, which shall contain the following conditions and stipulations and shall be approved as to form by attorney(s) acting on behalf of the City of New Orleans.

(1) The term of such insurance policies shall be for a period of not less than one year.

(2) The general liability and automobile liability insurance policies shall provide not less than limits of liability for each accident causing bodily injury (including death at any time resulting therefrom), $1,000,000.00 for each person, $1,000,000.00 for each accident and $1,000,000.00 for property damage sustained in any accident.

(3) The medical malpractice insurance policy(ies)shall provide limits of liability for each accident causing bodily injury (including death at any time resulting therefrom) of $500,000.00 for each person and $500,000.00 for each accident.

(4) The workers' compensation insurance policy(ies)shall provide coverage for statutory benefits up to an aggregate amount for any one claim in the amount of $1,000,000.00.

(5) Such policy shall, by its terms, provide that it may not be cancelled except after 30 days written notice thereof to New Orleans EMS.

(6) The permit of any owner or operator who fails to secure another policy of insurance prior to cancellation of an existing policy shall automatically and without notice of hearing be suspended until such time as a valid insurance policy has been filed with New Orleans EMS.

(7) Participation in the Patient's Compensation Fund of the State of Louisiana as set forth in R.S. 40:1299.44 et seq., shall be deemed to meet the requirements with regards to medical legal liability insurance within the contemplation of this chapter.

(8) Any person who operates an ambulance without having such insurance in full force and effect at all times during such operation shall be penalized as set forth in this section.

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-94. Inspection of ambulances and maintenance of vehicles.

(a) Before any permit (original or renewal) shall be issued hereunder, the owner or operator of all ambulances listed in the application shall certify that each and every such ambulance has a proper motor vehicle inspection certificate issued by the Louisiana Department of Motor Vehicles and that each ambulance is equipped in compliance with the standards for ambulance equipment as set forth in this chapter and inspected and approved annually by the New Orleans EMS. The protocol for such inspections is as follows:

(1) Said inspections shall be conducted annually.

(2) After each inspection, certificates of inspection shall be issued for those vehicles that are mechanically fit and meet all standards for ambulance equipment as set out in this chapter.

(3) For each ambulance lacking the mechanical inspection certificate or ambulance equipment required, the owner of such ambulance shall be given a 30-day grace period within which to address any deficiencies and obtain a reinspection.

Failure to obtain a certificate within the grace period shall constitute a violation of this chapter.

(4) Each and every ambulance shall at all times be adequately maintained, serviced and mechanically sound. Provider shall maintain maintenance records that may be inspected by New Orleans EMS.

(5) The owner and/or operator of any ambulance whose ambulance lacks ambulance equipment as required by this chapter shall have seven days within which to correct such deficiencies. Failure to correct the deficiency with the seven-day period shall constitute a violation of this chapter.

Sec. 62-95. Fees for emergency and non-emergency medical services.

(1) For the period beginning January 1, 2025, fees for emergency and non-emergency medical service provided by New Orleans EMS, or provided by private providers as an emergency or non-emergency rollover, shall be charged as follows:

Per-mile charge for transportation to a facility within or outside the parish	$30.00 per mile
BLS-Basic Life Support Emergency Transport Base Rate	$1,380.00 per patient per trip
ALS-Advanced Life Support Emergency Transport Base Rate 1 (ALS-1)	$1,638.00 per patient per trip
ALS-Advanced Life Support Emergency Transport Base Rate 2 (ALS-2)	$2,371.00 per patient per trip
Sprint Unit Transport Base Rate *(May be used for ambulatory, stable patients not requiring an ambulance stretcher)*	$275.00 per patient per trip
Specialty Rescue or Service Fee *(May include specialty rescue, extrication or extraction services, or use of other special resources)*	$250.00 per patient
Treat in Place and Treat/No Transport Fee	$250.00 per patient

(2) Individual supplies or procedures shall be billed in addition to mileage, base rates, service fees, and other allowable charges or items per rules and regulations, either clearly itemized or as part of a package bill.

BLS Routine Disposables charge	$40.00 per patient
ALS Routine Disposables charge	$58.00 per patient
ALS Specialized Disposables charge	$93.00 per patient
Oxygen & Supply charge	$205.00 per patient

(3) Charge for copies of patient medical records, including paper reports and all other related media.

Standard Records Request Fee	$35.00 per copy
Archived Records Request Fee	$50.00 per copy

(4) All parish permitted ground ambulance providers that bill for services within the parish shall have a patient financial hardship program.

(5) For the period beginning January 1, 2025, fees for emergency medical standby services for special events occurring in Orleans Parish regardless of the permitted provider shall be in accordance with the following resource fee schedule:

Ambulance	$200.00 per hour with two technicians
Sprint Unit	$100.00 per hour with one technician
Ambulance Bus	$500.00 per hour with one driver and two technicians
Special Response Unit *(Ambulance Cart, Ground or Marine/Water Rescue Unit, or Medic Bike Team)*	$150.00 per hour with two technicians
EMS Physician	$200.00 per hour
EMS Command Staff	$100.00 per hour
EMS Supplemental Staff	$75.00 per hour

(6) Special requests for resources not included in this fee schedule shall be charged the same as the most appropriate resource as determined by the director of New Orleans EMS or designee.

(7) Patient treatment and transport fees shall be charged in addition to the resource's hourly standby rate and in accordance with this section.

(8) An additional service charge equal to one hour of the resource's hourly standby rate shall be charged to accommodate mobilization and demobilization travel time.

(9) An additional command staff member shall be required for three or more resources assigned to the same event.

(10) All permitted ambulance providers providing emergency medical standby services shall be required to register an operations plan with New Orleans EMS in the format prescribed by the director of EMS or designee no later than five business days prior to the event start date unless emergent or unforeseen circumstances exist.

(11) A fee of $35.00 shall be charged to the provider for the submission and review of all operations plans for emergency medical standby services within Orleans Parish. All fees collected shall be deposited directly into the general fund of the City of New Orleans to offset personnel expenses incurred in event review and planning. In the case of a series of events occurring at the same location or venue where the director of New Orleans EMS or their designee determines that there is no substantive change in coverage, a single plan review will suffice.

(12) Failure to submit an operations plan shall be considered a violation of this chapter and charged in accordance with section 1-13 of this Code.

(13) Fees for standby services may only be waived by the chief administrative officer or their designee. Copies of such waivers must be received by New Orleans EMS, regardless of the provider of services for the event, no later than ten days prior to the event. It shall be the responsibility of the sponsoring agency to obtain a fee waiver for the event and to provide it to the provider of emergency medical services for inclusion in the operations plan submitted to New Orleans EMS as outlined in this section.

(14) When fees for standby services are waived in accordance with the aforementioned provisions, no provider shall charge standby service rates but may charge individual patients for treatment and transport fees in accordance with this section.

(15) The chief administrative office, the director of New Orleans EMS, or their designee shall have the right to request from any permitted ambulance provider records and receipts related to standby services and fees for special events and for any other related emergency or non-emergency services to monitor compliance with the conditions of this section.

(16) Any person charged with any of the duties imposed by this article who fails to perform such duties shall be guilty of a violation of this article and penalized in accordance with section 1-13 of this Code. All fines collected for violations of this article shall be paid to the general fund. Notice from the city or New Orleans EMS shall be required to hold any person liable for penalties for violations of this section. In addition to the penalties imposed pursuant to section 1-13, the director of New Orleans EMS may revoke a permit or impose other sanctions.
(M.C.S., Ord. No. 25023, § 1, 9-20-12; M.C.S., Ord. No. 30213, § 2, 1-9-25)

Sec. 62-96. Unauthorized responses by ambulances.

(a) No ambulance shall respond to any emergency based only on information obtained from or intercepted by use of a radio communication scanner or similar device unless that ambulance has been specifically requested to respond to such emergency.

(b) If a private provider is flagged down or comes across the scene of a life threatening medical emergency, they are permitted to render appropriate care and stabilization of the sick and injured, but must contact New Orleans EMS to advise of the incident. The communications center will determine if the private provider will transport the patient or if care will be transferred to New Orleans EMS.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-97. Ambulance performance standards.

(a) All owners or operators shall ensure that their ambulance response time from receipt of call by dispatcher to rollover emergencies is within 11 minutes 59 seconds or less on a minimum of 70 percent of all such calls received within a monthly reporting period.

(b) No ambulance shall respond to a rollover emergency call originating from New Orleans EMS unless it is an advanced life support ambulance capable of providing advanced life support services and whose crew shall consist of at least one nationally registered paramedic and one nationally registered EMT-basic. The EMT-basic shall serve as driver. Nothing in this provision shall prevent an ambulance provider from utilizing basic life support ambulances on scheduled transports as defined in this chapter.

(c) No owner or operator shall unreasonably refuse to respond to a request for emergency service. An owner or operator shall be deemed in violation of this provision if he is unavailable or refuses to respond on no less than 50 percent of rollover emergencies within a monthly reporting period. Any owner or operator who determines that he cannot meet the standard due to an increase in call volume which renders the provider incapable of handling additional calls, can request to be temporarily removed from the rollover emergency provider list for a period not to exceed 12 hours by notifying NOEMS at the time of such request and at the termination of such need. Any provider who fails to return to the rollover list after the 12-hour period shall be deemed in violation of this chapter and shall be subject to penalty.

(d) NOEMS has the discretion of declaring certain calls non-emergent at the scene of the incident and of designating such calls as BLS level calls. Owners and operators who receive such calls from NOEMS shall have the option of using BLS equipped ambulances for such transports.

(e) On a monthly basis, all private providers shall make available to the Medical Director for New Orleans EMS records related to the rollover calls, with times, for continuing quality assurance purposes to ensure private providers are providing the same standard of care while acting as agents of New Orleans EMS.

(f) Following each rollover emergency, all ambulances shall report times and disposition of the call, including the receiving facility, to the originating agency. For New Orleans EMS, this will mean contacting the Orleans Parish Communications District.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-98. Response times.

(a) Response times on rollover emergencies will be calculated from the time of receipt by provider's dispatch center of "Essential Information" until the arrival at the scene of the incident by an ALS equipped unit or Sprint Unit.

(b) Response times will be calculated each calendar month by the provider. Provider will send NOEMS monthly reports of response times by area along with all back-up documentation including the itemized summary of each call that is included on the monthly report.

(c) The itemized summary of each call shall include all available information regarding the time, arrival times, and other pertinent information of each call.

(d) No emergency rollover calls should be excluded from the response time calculation. It shall be the provider's responsibility to ensure that all such calls will be included.

(e) All calls should note any occurrence of events below, considered mitigating factors for response time compliance:

(1) Faulty address—Match data from the 911 computers or incorrect or insufficient information from the caller.

(2) Responses which occur during periods of abnormally severe weather conditions that could reasonably be expected to substantially impair response time performance.

(3) Unusual road conditions and blocked railroad and bridge crossings which could reasonably be expected.

(4) Prank calls.

(5) Excess runs which occur during periods of unusual system overload. Unusual system overload is defined as a period of time during which more than three emergency calls are simultaneously in progress within geographical boundaries of the service area. Excess runs are those responses after the third emergency call during an unusual system overload.

(6) Delayed response due to potentially hazardous scenes or in which access is restricted by public safety personnel.

(7) Responses during a declared local disaster, or in a mutual aid jurisdiction that has requested assistance from the provider.

(8) Any response after the first response in cases of multiple-response incidents (i.e., where more than one ambulance is sent to the same incident).

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-99. Review of rates and financial information.

(a) Every permitted owner/operator performing services in the City of New Orleans shall submit a schedule of its rates for all services to New Orleans EMS for review at least once per year at such time and in such format as may be designated by New Orleans EMS. New Orleans EMS shall not fix, establish, or revise such rates, unless permitted by ordinance; however, any ambulance service establishing or contracting rates for emergency or non-emergency transportation shall follow the allowable Medicare reimbursement guidelines or rates for the geographical area in which services are to be provided.

(b) Every owner/operator shall permit New Orleans EMS or its auditors reasonable access to its financial records, books, documents, papers, files, or other records which are pertinent to determining compliance with this chapter, during normal business hours upon reasonable notice.
(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Sec. 62-100. Mass casualty or disaster exception.

(1) In the event of a mass casualty incident within Orleans Parish, the Director of New Orleans EMS or his or her designee shall coordinate any medical response deemed appropriate to minimize loss of life and human suffering. A mass casualty incident is an event with critical injuries or deaths exceeding the normal response capability of New Orleans EMS.

(2) In the event of any disaster declared by the mayor, or where additional resources are required, all resources provided in response to such a request will fall under the direction of the City of New Orleans Unified Command, the Deputy Mayor for Public Safety, the Director of New Orleans

EMS, the Incident Commander, or his or her designee. Decisions to suspend provisions of this chapter may only be made by the mayor pursuant to R.S. 29:727(F)(1).

(M.C.S., Ord. No. 25023, § 1, 9-20-12)

Chapters 63–65

RESERVED

Chapter 66

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ARTICLE II. SMOKE FREE AIR ACT*

DIVISION 1. GENERALLY

Sec. 66-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bar means an area the primary purpose of which is the selling and/or serving of alcoholic beverages for consumption by guests or patrons on the premises and in which the serving of food, if served at all, is only incidental to the consumption of such beverages. For purposes of this article, a bar located within a restaurant is considered a restaurant.

Business establishment means any sole proprietorship, partnership, limited partnership, association, joint venture, corporation, municipal corporation, non-profit, trust, franchise, enterprise, or other entity, including, but not limited to, professional corporations and other entities where legal, medical, dental, engineering, architectural, financial, counseling, and other professional or consumer services are provided.

Cigar bar means either

(1) A bar, as defined in this section, legally in operation, that generated ten (10) percent or more of its total annual gross income from the on-site sale of cigars and the rental of humidors, not including sales from vending machines, for the calendar year ending December 31, 2014, and every year thereafter; or

(2) An entity that has a pending application to operate a cigar bar as of March 6, 2015, and after approval of the application by the city council by ordinance, generates ten percent or more of its total annual gross income from the on-site sale of cigars and the rental of humidors, not including sales from vending machines for the first year of operation and every year thereafter.

A cigar bar does not permit the smoking of cigarettes or vaping and shall not knowingly sell to or permit entrance to any person less than 21 years of age.

Department of health means the Department of Health of the City of New Orleans or the director's designee.

Director means the Director of the Department of Health of the City of New Orleans.

Electronic smoking device means any electronic product, not prescribed by a doctor, that delivers nicotine or other substances to the person inhaling from the device, including, but not limited to an electronic cigarette, e-cigar, e-pipe, vape pen or e-hookah. Electronic smoking device includes any component, part, or accessory of such a product, whether or not sold separately.

Electronic smoking device business means a business establishment in which the primary activity is the sale, manufacture, or promotion of electronic smoking device products and accessories either at wholesale or retail, and in which the sale, manufacture or promotion of other products is merely incidental.

Employee means any person who is employed by any employer in return for the payment of direct or indirect monetary wages or profits, or any person who volunteers his services to such employer for nonmonetary compensation.

Employer means a person or business establishment that employs the services of one or more employees.

Enclosed area means all space between a floor and a ceiling that is bounded on at least two sides by walls, doorways, or windows, whether open or closed. A wall includes any retractable divider,

*__Editor's note—__M.C.S., Ord. No. 26201, § 1, adopted Jan. 22, 2015, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 66-36—66-44, 66-71—66-77, pertained to Clean Indoor Air Act, and derived from Code 1956, §§ 29-169—29-181; M.C.S., Ord. No. 23629, § 1, adopted July 23, 2009.

garage door, or other physical barrier, whether temporary or permanent and whether or not containing openings of any kind.

Gambling facility means any institution in which gaming operations are permitted to occur upon a riverboat, at the land-based casino, at a facility licensed for the operation of electronic video draw poker devices, at an eligible facility licensed for the operation of slot machines, by a licensed charitable organization, or at a pari-mutuel wagering facility or off-track wagering facility which is licensed for operation and regulated under the provisions of Chapters 4 and 11 of Title 4 and Chapters 4, 5, 6 and 7 of Title 27 of the Louisiana Revised Statutes of 1950, or any other gaming operations authorized by law.

Health care facility means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of surgeons, chiropractors, physical therapists, physicians, psychiatrists, dentists, and all specialists within these professions. Unless otherwise stated in this chapter, this definition shall include all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

Hookah means a water pipe and any associated products and devices which are used to produce fumes, smoke, and/or vapor from the burning of material including, but not limited to, tobacco, shisha, or other plant matter.

Hookah bar means a bar, as defined in this section, legally in operation that generated at least ten percent or more of its total annual gross income from on-site retail sales of shisha for consumption in hookahs on the premises by customers and the sale of accessories used for smoking shisha for the calendar year ending December 31, 2014 and every year thereafter. A hookah bar does not permit the smoking of cigarettes and shall not knowingly sell to or permit entrance to any person less than 21 years of age.

Park means any outdoor area accommodating or having facilities for rest or recreation (including passive activities) or playground designed at least in part to be used by children that has play or sports equipment installed or that has been designed or landscaped for play, sports, or leisure activities on grounds owned, occupied or operated by the city or an agency thereof, or any similar facility located on public school grounds.

Place of employment means any area under the control of an employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges and restrooms, conference rooms, meeting rooms, classrooms, employee cafeterias, temporary offices (such as trailers), hallways, and vehicles. A private residence is not a place of employment within the meaning of this subdivision unless a child care, adult day care, or health care facility is operated therein or unless it is a common area of a multi-unit dwelling.

Private club means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used exclusively for club purposes at all times, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for pecuniary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501.

Public event means an event which is open to and may be attended by the general public, including but not limited to, such events as concerts, fairs, farmers' markets, festivals, parades, performances, and other exhibitions, regardless of any fee or age requirement.

Public meeting means any meeting held in the city open to the public pursuant to R.S. 42:13.

Public place means any areas to which the public is customarily invited or permitted, or areas available to the general public in business and non-profit entities patronized by the public including, but not limited to: aquariums; adult day care facilities; banks; bars; bingo facilities; child care facilities; convention centers; educational facilities; elevators; galleries; gambling facilities; health care facilities; hotel and motel lobbies, common areas, and all rooms; laundromats; museums; parking structures; polling places; professional offices; public property; lobbies; hallways or common areas of apartment buildings, condominiums, trailer park facilities, nursing homes or multi-unit residential facilities; public restrooms; public transportation vehicles and facilities; reception areas; restaurants; retail food production and marketing establishments; retail service establishments; retail stores; service lines; shopping malls; sports arenas; libraries; theaters; concert halls; waiting areas; and rooms, chambers, and places of public meeting or public assembly, including school buildings under the control of an agency, board, commission, committee or council of the City of New Orleans or a political subdivision of the state, to the extent the place is subject to the jurisdiction of the City of New Orleans. A private residence is not a public place within the meaning of this subdivision unless a child care, adult day care, or health care facility is operated therein or unless it is a common area of a multi-unit dwelling.

Public property means any vehicle, building or other location or site within the City of New Orleans owned, leased, occupied, or operated by any of the following:

(a) The state, including the legislative, executive, and/or judicial branches of state government.

(b) The city or any instrumentality or agency thereof, or any other political subdivision of the state, special district, authority, commission, or agency.

(c) Any other separate corporate instrumentality or entity of state or local government.

Restaurant means any coffee shop, cafeteria, luncheonette, sandwich stand, soda fountain, kitchen, catering facility, or other eating establishment, or part of any organization, club boardinghouse, or guesthouse, which gives or offers for sale food to the public, guests, employees, or patrons, whether food is customarily served or consumed on or off the premises. The term "restaurant" shall include a bar located within a restaurant.

Retail store means any place which, in the regular course of business, sells goods directly to the public.

Secondhand smoke means smoke emitted from a lighted or heated cigar, cigarette, or pipe, or any other lighted or heated tobacco or plant product intended for inhalation, including hookahs and marijuana, whether natural or synthetic, in any manner or in any form, when the smoker is not inhaling, smoke emitted at the mouthpiece during puff drawing, and smoke exhaled by the smoker. Secondhand smoke also includes aerosol or vapor from the use of an electronic smoking device emitted, in any manner or in any form, when the smoker is not inhaling, at the mouthpiece during puff drawing, and when the smoker is exhaling.

Service line or *waiting area* means a queue, line or other formation of persons, whether seated or standing, in which one or more persons are waiting for, providing or receiving service of any kind, whether or not such service involves an exchange of consideration.

Smoking means inhaling, exhaling, burning, carrying, or possessing any lighted or heated cigar, cigarette, or pipe, or any other lighted or heated tobacco or plant product intended for inhalation, including hookahs and marijuana, in any manner or form. Smoking also includes the use of any oral smoking device for the purpose of circumventing the prohibition of smoking in this article.

Sports arena means any pavilion, stadium, amphitheater, gymnasium, health spa, arena, swimming pool, roller or ice skating rink, bowling alley or other similar place where members of the general public may assemble either to

engage in physical exercise, participate in athletic competition or witness sports when used for the purpose of engaging in physical exercise, participating in athletic competition, or witnessing sports events.

Theater means any auditorium or building used for or designed for the primary purpose of exhibiting movies, stage drama, musical recital, dance, lecture, or other similar performance.

Tobacco business means a business establishment in which the primary activity is the sale, manufacture, or promotion of tobacco or tobacco products and accessories either at wholesale or retail, and in which the sale, manufacture or promotion of other products is merely incidental.

Tobacco product means any product(s) that is used to consume tobacco or any product that contains any tobacco leaf, including, but not limited to, cigarettes, cigars, cigarillos, blunts, snuff, creamy snuff, dipping/chewing tobacco, flavored tobacco, tobacco water, tobacco paste, gutka, kretek, shisha, and roll-your-own cigarettes.

Tobacco retailer means any person, retail store, or other legal entity who knowingly sells, donates, distributes, or delivers to any person(s), whether or not any form of consideration is provided, tobacco products.

Vaping means the use of an electronic smoking device which creates an aerosol or vapor, in any manner or in any form.
(M.C.S., Ord. No. 26201, § 1, 1-22-15; M.C.S., Ord. No. 26338, § 1, 4-9-15, eff. 4-22-15; M.C.S., Ord. No. 26415, § 1, 5-14-15; M.C.S., Ord. No. 28744, § 1, 8-5-21, eff. 9-15-21)

Sec. 66-37. Regulations.

Pursuant to section 2-1000 of the City Code, the director of health may promulgate rules and regulations in accordance with the provisions contained in this article and such other rules and regulations as may be necessary for the purpose of implementing and carrying out the provisions of this article.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-38. Enforcement.

(a) The department of health shall have the power to enforce the provisions of this article. In addition, designated enforcement employees of the department of property management, the department of safety and permits, the department of parks and parkways, the New Orleans Recreation Development Commission, the fire department, and code enforcement shall have the power to enforce the provisions of this article.

(b) Notice of the provisions of this article shall be given to all business establishments applying for a certificate of occupancy from the New Orleans Department of Safety and Permits.

(c) Any person who desires to register a complaint under this article may do so by contacting the city's 311 Service Center.

(d) An owner, manager, operator, or employer of an area where smoking or vaping is prohibited under this article shall direct a person who is smoking or vaping in violation of this article to extinguish or turn off the product. If the person does not stop such use, the owner, manager, operator, or employer shall, if applicable, refuse service and shall immediately ask the person to leave the premises.

(e) Notwithstanding any other provision of this article, an employee or private citizen may bring legal action to enforce this article.

(f) In addition to the remedies provided by the provisions of this section, the department of health or any person aggrieved by the failure of the owner, operator, manager, or other person in control of a public place or a place of employment to comply with the provisions of this article may apply for injunctive relief to enforce those provisions in any court of competent jurisdiction.

(g) The department of health shall seek to obtain voluntary compliance with this article by means of publicity and education programs, and the issuance of warnings, where appropriate.

(h) The department of police shall enforce the provisions of this article only via municipal summons. Nothing herein shall require the police

officer issuing a municipal summons to seize or take possession of any product or object being smoked in violation of this article.
(M.C.S., Ord. No. 26201, § 1, 1-22-15; M.C.S., Ord. No. 28744, § 1, 8-5-21, eff. 9-15-21)

Sec. 66-39. Construction of article.

(a) Nothing in this article shall be construed to permit smoking or vaping where it is otherwise prohibited by law or regulation.

(b) Nothing in this article shall be construed to preclude owners, operators, managers, employers or other persons having control of any premises covered by this article from prohibiting smoking or vaping on such premises to a greater extent than is provided by this article, in accordance with applicable law.

(c) This article shall be liberally construed so as to further the general purposes stated in this article and the specific purposes of the particular provisions involved.

(d) If any provision, clause, sentence, or paragraph of this article or the application thereof to any person or circumstances shall be held invalid, that invalidity shall not affect the other provisions of this article which can be given effect without the invalid provision or application, and to this end the provisions of this article are declared to be severable.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-40. Violations and penalties.

(a) It shall be unlawful for any person who owns, manages, operates or otherwise controls the use of premises in which smoking or vaping is prohibited pursuant to sections 66-71 and 66-72, or the designated agent thereof, to fail to comply with the requirements of section 66-38(d) and section 66-74.

(b) It shall be unlawful for any person to smoke or vape in any area where smoking or vaping is prohibited.

(c) Every person who violates subsection (a) of this section shall, for a first violation thereof, be liable for a fine of not more than $100.00; for a second violation, both of which were committed within a period of 12 months, be liable for a fine of not more than $200.00; and for a third or subsequent violation, all of which were committed within a period of 12 months, be liable for a fine of not more than $500.00. Every person who violates subsection (b) of this section shall be liable for a fine of up to $50.00 for each violation.

(d) Proceedings for violations of this article shall be initiated by issuance of an affidavit or summons to appear in Municipal Court, as provided by R.S. 13:2512, or brought by the appropriate department or agency to administrative adjudication, as provided in Chapter 6 of the City Code. When applicable, the court or hearing officer shall order abatement of the conditions constituting the violation. If a person found guilty for violating this article can demonstrate the inability to pay the penalty imposed, that person shall be ordered in lieu of the fine, to perform community service.

(e) The penalties provided by this section shall be in addition to any other penalty imposed by any other provision of law or regulation thereunder.

(f) In addition to the fines established by this section, violation of this article by a person who owns, manages, operates, or otherwise controls a public place or place of employment may result in the suspension or revocation of any permit or license issued to the person for the premises on which the violation occurred.

(g) Violation of this article is hereby declared to be a public nuisance, which may be abated by the department of health by restraining order, preliminary and permanent injunction, or other means provided for by law, and the City of New Orleans may take action to recover the costs of the nuisance abatement.

(h) Each day on which a violation of this article occurs shall be considered a separate and distinct violation.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-41. Public education.

The department of health shall engage in a continuing program to explain and clarify the

provisions and purposes of this article and shall provide assistance to those persons who seek to comply and to those who want to stop smoking.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-42. Governmental agency cooperation.

The department of health shall seek to encourage state and federal governmental and educational agencies having facilities within the city, but not subject to the provisions of this article, to establish local operating procedures which substantially conform to the requirements of this article.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Secs. 66-43—66-70. Reserved.

DIVISION 2. REGULATIONS

Sec. 66-71. Prohibition of smoking and vaping in enclosed areas.

Except as permitted by section 66-73, smoking and vaping shall be prohibited in all enclosed areas in the following places:

(1) Public property.

(2) Public places.

(3) Private clubs.

(4) Places of employment.

(5) Correctional facilities.

(6) All pre-primary, primary, and secondary school buildings providing instruction for students at or below the 12th-grade level, the campuses of such schools, any buildings on the campuses of such schools, and all school buses.

(7) All schools other than those covered in subsection (6) of this section including, but not limited to, community colleges, technical training establishments, specialty schools, colleges and universities.

(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-72. Prohibition of smoking and vaping in unenclosed areas.

Except as permitted by section 66-73, smoking and vaping shall be prohibited in unenclosed areas in the following places:

(1) In and within five feet of Richard & Annette Bloch Cancer Survivors Plaza.

(2) In and within five feet of Lafayette Square.

(3) In all outdoor sports arenas, stadiums, recreational areas with playground equipment, and amphitheaters, except when being used for concerts, fairs, farmers' markets, festivals, and parades. Smoking and vaping shall also be prohibited in bleachers and grandstands for use by spectators at sporting events.

(4) Places of employment, including, but not limited to, work areas, construction sites, temporary offices such as trailers, restroom facilities, and vehicles.

(M.C.S., Ord. No. 26201, § 1, 1-22-15; M.C.S., Ord. No. 26333, § 1, 4-9-15, eff. 4-22-15)

Sec. 66-73. Areas where smoking and vaping are not prohibited.

The following areas shall not be subject to the smoking and vaping restrictions of this article:

(1) Private homes, private residences, and private vehicles; except that this subsection shall not apply if any such home, residence, or vehicle is being used for child care or day care or as a health care facility or if a private vehicle is being used for the public transportation of children or as part of health care or day care transportation in which case smoking and vaping are prohibited.

(2) Any tobacco business.

(3) Private and semiprivate rooms or apartments in assisted living residences that are occupied by one or more persons who have all requested in writing to be placed in a room where smoking or vaping is permitted; provided that smoke or vapor from such rooms or apartments does not

infiltrate into areas where smoking or vaping is prohibited under the provisions of this article.

(4) All places of employment of any manufacturer, importer, wholesaler or distributor of tobacco products, of any tobacco leaf dealer or processor, and all tobacco storage facilities.

(5) Cigar bars, limited only to the smoking of cigars.

(6) Hookah bars, limited only to the smoking of hookahs.

(7) Private and semi-private rooms in nursing homes and other long-term care facilities that are occupied by one or more persons who have all requested in writing to be placed in a room where smoking or vaping is permitted; provided that smoke or vapor from such rooms or apartments does not infiltrate into areas where smoking or vaping is prohibited under the provisions of this article.

(8) Designated smoking or vaping sections of outdoor seating, serving areas, balconies, and courtyards of bars, restaurants, casinos, and facilities licensed and regulated for the operation of slot machines, pari-mutuel wagering facilities, and off-track wagering facilities pursuant to the provisions of Chapter 4 and 11 of Title 4 and Chapters 4, 5, 6, and 7 of Title 27 of the Louisiana Revised Statutes of 1950.

(9) The sidewalks, streets, balconies, and public rights of way along Bourbon Street from Canal Street to Esplanade Avenue.

(10) Any electronic smoking device business as defined in section 66-36 including but not limited to retail, wholesale, and manufacturing facilities primarily engaged in sales of electronic smoking devices or their components.

(11) Convention facilities during the time such facilities are being used for professional meetings and trade shows which are not open to the public that are produced or organized by tobacco or electronic smoking device businesses or convenience store associations where tobacco products are displayed and limited to the location of such meetings or shows and during the time such facilities are used by a carnival organization, traditionally known as a krewe or a courir de Mardi Gras for the purpose of the conduct of a Mardi Gras ball and limited to the location of such ball.

(12) Enclosed, semi-enclosed and non-enclosed areas in hotels and motels and other such similar facilities during the time these areas are being used exclusively for private functions related to professional meetings and trade shows which are not open to the public that are produced or organized by tobacco or electronic smoking device businesses, such that the areas are under the control of the sponsor or organizer of the function and where the general public may not attend.

(M.C.S., Ord. No. 26201, § 1, 1-22-15; M.C.S., Ord. No. 26340, § 1, 4-9-15, eff. 4-22-15; M.C.S., Ord. No. 26366, § 1, 4-9-15, eff. 4-22-15)

Sec. 66-73.1. Marijuana smoking prohibited outside of private residences.

Notwithstanding any other provision of this Code to the contrary, smoking marijuana outside of a private home or residence shall be a violation of this article. Marijuana smoking shall not be permitted within a private home or residence that is being used for childcare or daycare or as a health care facility.

(M.C.S., Ord. No. 28744, § 1, 8-5-21, eff. 9-15-21)

Sec. 66-74 Notice of prohibition of smoking and vaping.

(a) "No smoking" signs or the international "No smoking" symbol, consisting of a pictorial representation of a burning cigarette enclosed in a red circle with a red bar across it, shall be clearly and conspicuously posted by the owner, operator, manager, employer, or other person in control in every location where smoking or vaping is prohibited by this article. Except as provided

hereinbelow, the size, style and location of such signs shall be determined in accordance with rules and regulations that may be promulgated by the director of the department of health, but in promulgating such rules and regulations, the director shall take into consideration the concerns of the various types of establishments regulated herein with respect to the style and design of such signs. In the event such rules and regulations have not been promulgated, the size, style and location of such signs shall be determined in accordance with best practices relative thereto.

(b) The owner, operator, manager, employer, or other person in control shall remove all ashtrays from any area where smoking is prohibited by this article.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-75. Restrictions as to property near schools, churches, etc.

It is hereby declared that the sense and policy of this section is that no tobacco retailer shall be permitted to sell, donate, distribute, or deliver to any person(s), whether or not any form of consideration is provided, tobacco products within 300 feet of any park, church, public library, school, or any childcare facility or similar entity providing structured, organized care for youth.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-76. How distance measured.

(a) The 300-foot distance provided for in section 66-75 shall be measured as a person walks, using the sidewalk, from the nearest point of the property line of the park, church, public library, school, or childcare facility or similar entity providing structured, organized care for youth, to the nearest point of the tobacco retailer.

(b) Any tobacco retailer lawfully operating such business prior to the adoption of section 66-75 and this section shall not be affected.

(c) If a tobacco retailer has an interruption of the continuity of business for a period in excess of six months, in order to reopen for business, the requirements set forth above must be complied with.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-77. Tobacco retailers prohibited in residential and park districts.

No tobacco retailer shall be permitted to establish or open in any residential district or park and recreation district of the city as defined in the comprehensive zoning ordinance of the city, as now or hereafter amended. The provisions of this section shall not be construed to apply to any premises which, at the time of the passage of this section, were lawfully operating as tobacco retailers.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Sec. 66-78. No discrimination or retaliation.

An individual, person, entity, or business establishment subject to the smoking or vaping prohibitions of this article shall not discriminate or retaliate in any manner against a person for making a complaint regarding a violation of this article or for furnishing information concerning a violation to an enforcement authority.
(M.C.S., Ord. No. 26201, § 1, 1-22-15)

Secs. 66-79—66-100. Reserved.

ARTICLE III. REMOVAL AND DISPOSITION OF ABANDONED AND NUISANCE MOTOR VEHICLES*

Sec. 66-101. Administration.

The police department shall be responsible for the administration and enforcement of this article, including the removal and disposition of vehicles determined to be "abandoned" or a "nuisance" on the public streets and highways or on private property within the city, and property owned by the city. The city may, on an annual basis,

*__Editor's note—__M.C.S., Ord. No. 21967, § 1, adopted June 2, 2005, amended art. III in its entirety and enacted new provisions as set out herein. The former art. III, titled Junked, Abandoned and Wrecked Vehicles, derived from Ord. No. 19,828, § 1, adopted Sept. 21, 2000; and Ord. No. 19,861, § 1, adopted Oct. 19, 2000.

__Cross references—__Junkyards, § 130-136 et seq.; traffic and vehicles, Ch. 154.

__State law references—__Abandoned motor vehicles, R.S. 32:471 et seq.; unidentifiable vehicles, seizure proceedings, R.S. 32:1553; disposition of abandoned vehicles, R.S. 33:4876.

contract with private tow truck operators or towing businesses to remove, store and dispose of abandoned vehicles and nuisance vehicles in compliance with this article and applicable state laws. Any fees collected in the administration or enforcement of this article shall be transmitted to the department of finance for deposit in the general fund.
(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 30653, § 1, 5-7-26, eff. 5-31-26)

Sec. 66-102. Definitions.

For purposes of this article, certain words and terms are defined as follows:

(a) *Abandoned vehicle.* An abandoned vehicle is a motor vehicle that is:

(1) Left upon a public street or highway in violation of a law or ordinance prohibiting parking; or

(2) Inoperable and is left unattended on public property for more than three days, or is inoperable and left unattended on the shoulder or right-of-way of an interstate or a four-lane highway for more than three days, or that has remained on private property without the consent of the owner or person in control of the property for more than 24 hours; or

(3) Left on property owned or operated by the city for a period of more than three days; or

(4) Left on private property without the consent of the owner, person in control of the property, occupant or lessee thereof for more than three days.

(b) *Policing authority* or *authority.* Policing authority means the police department, or other authorized agency.

(c) *Nuisance vehicle.* A motor vehicle on public or private property that is determined by the policing authority to be a health or safety hazard, a public nuisance, and unlawful, including a vehicle found to be:

(1) A breeding ground or harbor for mosquitoes or other insects or a breeding ground or harbor for rats or other pests; or

(2) A point of heavy growth of weeds or other noxious vegetation over eight inches in height; or

(3) A point of collection of pools or ponds of water; or

(4) A point of concentration of combustible items such as gasoline, oil, other flammable or explosive materials including, but not limited to, boxes, paper, old clothes, rags, refuse, or any other combustible materials or objects of a like nature; or

(5) One which has parts thereof which may fall and injure members of the public or one which has parts which may fall or be closed and become an area of confinement, such as a trunk lid or door, which may not be released for opening from the inside; or

(6) One which is so situated and located that there is a danger of the vehicle falling, rolling, turning over, or creating an unsafe movement such as unattended, blocked or jacked vehicles; or

(7) A point of collection of garbage, food waste, animal waste, or any other rotten or putrescent matter of any kind; or

(8) One which has parts thereof which are jagged or contain sharp edges of metal or glass; or (sic).

(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 30653, § 1, 5-7-26, eff. 5-31-26)

Sec. 66-103. Abandoned vehicle unlawful; removal authorized.

(a) It shall be unlawful for the registered owner or person entitled to possession of a vehicle to cause or allow such vehicle to be abandoned as the term is defined herein.

(b) Upon investigation, the policing authority may determine that a vehicle is an abandoned vehicle and order the vehicle removed.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-104. Nuisance vehicle unlawful; removal authorized.

(a) It shall be unlawful for the registered owner or person entitled to possession of a motor vehicle, or for the owner, lessee, or occupant of the real property on which the vehicle is located to leave or allow the vehicle to remain on the property after it has been declared a nuisance vehicle.

(b) Upon investigation, the policing authority may determine and declare that a vehicle is a health or safety hazard and a nuisance vehicle, as defined above, and order the vehicle removed.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-105. Removal of abandoned or nuisance vehicles; pre-towing notice requirements.

Except as otherwise provided in this article, prior to towing an abandoned or nuisance vehicle the policing authority shall give notice to the registered owner or person entitled to possession of the vehicle by affixing on the windshield or some other conspicuous place on the vehicle printed information indicating that the vehicle will be removed by the city on a specified date, that is at least 48 hours after the notice is affixed, unless the vehicle is moved by the owner or entitled possessor prior to that date.
(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 30653, § 1, 5-7-26, eff. 5-31-26)

Sec. 66-106. Exceptions to prior notice requirement; grounds.

The requirement that notice be affixed to an abandoned or nuisance vehicle at least 48 hours prior to removal may, as determined by the policing authority, be omitted in those circumstances where there is a special need for prompt action to eliminate traffic obstructions or to otherwise maintain and protect the public safety and welfare. Such findings shall, in all cases, be entered by the policing authority in the appropriate daily records. Circumstances justifying the removal of vehicles without prior notice include:

(a) *Vehicles abandoned on the streets.* For vehicles left on the public streets and highways, such circumstances include, and the city council hereby determines that immediate removal of such vehicles may be warranted when they are:

(1) Obstructing traffic (Code section 154-878),

(2) Parked at the designated places identified in Code section 154-777.

(b) *Other abandoned or nuisance vehicles.* With respect to abandoned or nuisance vehicles left on city-owned property other than the streets and highways, and on private property, such vehicles may be removed without giving prior notice only in those circumstances where the policing authority finds a special need for prompt action to protect and maintain the public health, safety and welfare. By way of illustration but not limitation, such circumstances include vehicles blocking or obstructing ingress or egress to businesses and residences, vehicles parked in such a location or manner as to pose a traffic hazard, and vehicles causing damage to public or private property.
(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 24308, § 1, 2-17-11)

Sec. 66-107. Removal of vehicles by the policing authority; post-towing notice requirements; exceptions to prior notice requirement; grounds.

The policing authority shall store and dispose of the vehicle pursuant to the Louisiana Towing and Storage Act (R.S. 32:1711 through 32:1735), and all notice and hearing procedures shall be conducted pursuant to the Louisiana Towing and Storage Act.
(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 24309, § 1, 2-17-11)

Sec. 66-108. Removal of vehicles by a tow truck operator acting on behalf of the policing authority; post-towing notice requirements.

Any vehicle which has been determined to be an abandoned or a nuisance vehicle may, when requested, be removed and disposed of by a tow truck operator acting on behalf of the policing authority. The tow truck operator shall store and dispose of the vehicle pursuant to the Louisiana Towing and Storage Act (R.S. 32:1711 through 32:17:35), and all notice and hearing procedures shall be conducted pursuant to the Louisiana Towing and Storage Act. The policing authority shall have no civil or criminal liability for the acts or omissions committed by the tow truck operator.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-109. Right to probable cause hearing before sale or final disposition of vehicle.

When an abandoned or nuisance vehicle has been removed by the policing authority, the owner or any other person entitled to possession is entitled to a hearing for the purpose of determining if probable cause existed for removing the vehicle. The procedure for the probable cause hearing shall be contained in the registered or certified letter issued pursuant to section 66-107 above. However, the hearing shall be conducted within 72 hours, exclusive of legal holidays, of receipt of a request for a probable cause hearing.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-110. Redemption of vehicle during proceedings.

At any stage in the proceedings, including before the probable cause hearing, the owner may obtain possession of the removed vehicle by paying the towing fee, including any storage charges, or by posting a bond for double the amount of such fees and charges to the policing authority.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-111. Abandoned or nuisance vehicles; sale by municipalities and parochial authorities; procedure.

The sale of abandoned or nuisance vehicles by municipalities and parochial authorities is governed by section 154-811 of the Code of the City of New Orleans.
(M.C.S., Ord. No. 21967, § 1, 6-2-05; M.C.S., Ord. No. 24310, § 1, 2-17-11)

Sec. 66-112. Conditions on removal of vehicle from private property.

As a general policy, the policing authority will not remove a vehicle from private property if the owner, occupant or lessee of such property could have the vehicle removed under applicable state law procedures. In no case will a vehicle be removed by the policing authority from private property without a written request of the owner, occupant or lessee, except in those cases where a vehicle is declared a nuisance vehicle. The policing authority may require any person requesting the removal of an abandoned or nuisance vehicle from private property to indemnify the policing authority against any loss, expense or liability incurred because of the removal, storage, or sale thereof. Any owner, occupant or lessee of a property requesting removal of an abandoned or nuisance vehicle from private property shall be required to pay a $100.00 administrative fee upon written request for removal of said vehicle.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-113. Protection against criminal or civil liability.

No person shall be held to answer in any civil or criminal action to any owner or other person legally entitled to the possession of an abandoned or nuisance vehicle for disposing of such vehicle as provided in this chapter.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-114. Exceptions.

Nothing in this chapter shall apply to any vehicle in an enclosed building or any vehicle on the premises of a business enterprise being operated in a lawful place and manner if the vehicle is necessary to the operation of the enterprise, to any vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city, or to any vehicle legally parked within 50 feet of either property line of the owner of property, person in control of the property, occupant or lessee thereof, unless said vehicle constitutes a nuisance vehicle.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-115. Unlawful removal of impounded vehicle.

It shall be unlawful for any person to remove or attempt to remove from any storage facility designated by the city any vehicle which has been impounded pursuant to the provisions of this Code, unless and until all towing and impoundment fees which are due, or bond in lieu of such fees, have been paid.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Sec. 66-116. Severability.

Should any paragraph, sentence, clause, phrase or word of this article be declared invalid or unconstitutional by a court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any of the remaining words, phrases, clauses, sentences or paragraphs of this article, as they would have been enacted by council without the incorporation in this article of any such invalid or unconstitutional word, phrase, clause, sentence or paragraph.
(M.C.S., Ord. No. 21967, § 1, 6-2-05)

Secs. 66-117—66-135. Reserved.

ARTICLE IV. NOISE*

DIVISION 1. GENERALLY

Sec. 66-136. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A-weighted sound pressure level means the sound pressure level as measured on an ANSI-SI.4-1971 Type 1 or Type 2 sound level meter using the A-weighted network. It is the approximate noise level as heard by the human ear, measured in decibels, and denoted as dBA.

Ambient noise level means the sound pressure level of the all encompassing noise associated with a given environment, being usually a composite of sounds from many sources and excluding the specific noise under investigation; also the A-weighted, sound pressure level exceeded 90 percent of the time (L_{90}).

Business and commercial district includes the following districts from the comprehensive zoning ordinance (Article 5, Sections 8 through 13 and Sections 22 and 27): RO, general office district; B1 and B2, neighborhood business district, SC, shopping center district, C1 and C2, general commercial district, and CBD1 through CBD8, central business district.

Commercial enterprise means any entrepreneurial operation in an enclosed building, at a premises in a fixed location, in which goods (including but not limited to food and/or beverages) and/or services are sold and/or provided.

Construction means any site preparation, assembly, erection, substantial repairs, alterations, or similar action, for or of public or private rights-of-way, structures, utilities, or similar property.

Daytime hours means 7:00 a.m. until 10:00 p.m. on weekdays, 8:00 a.m. until 10:00 p.m. weekends, unless otherwise stated in this article.

Decibel means logarithmic unit of measure used in describing the relative intensity of sound; denoted as dB.

Demolition means any dismantlings, intentional destruction or removal of structures, utilities, public or private rights-of-way surfaces, or similar property.

Domestic power tools means power tools used for the purpose of completing hobby projects, home improvements projects, and any other projects which are not used or sold for profit.

Emergency means any occurrence or set of circumstances involving actual or eminent physical trauma or property damage which demands immediate action.

Emergency vehicles means authorized publicly or privately owned ambulances, or motor vehicles belonging to a fire or police department, or to any federal, state, parish or municipal agency provided such vehicles are in use as emergency vehicles by one authorized to use such vehicles for that purpose.

Industrial area includes the following districts from the comprehensive zoning ordinance (Article 5, Sections 14 through 16): SI-special industrial district, LI-light industrial district, HI-heavy industrial district and BIP-business-industrial park district.

*__Cross references__—Sound trucks prohibited, § 54-482; playing of audio or video equipment on public transit vehicles prohibited, § 122-9.

l_{10} means the A-weighted sound pressure level which is exceeded ten percent of the time period during which the measurement is made.

l_{90} means the A-weighted sound pressure level which is exceeded 90 percent of the time period during which the measurement is made.

l_{max} means the maximum A-weighted sound level allowed.

Land use category means the classification of an area, usually by zoning districts, such as residential, industrial, commercial or public space, according to its use. Any area not otherwise classified shall be considered a commercial area. In case of multiple use, the more restrictive use category shall apply.

Motor vehicle means any vehicle or machine having two or more wheels, propelled or drawn by mechanical power and used on the public roads and highways in the transportation of passengers or property; or any combination thereof, which is required to be licensed but does not include vehicles, locomotives or cars operated exclusively on rail or rails.

Multiple-family dwelling means a building or other shelter that is used to house three or more families.

Nighttime hours means 10:00 p.m. until 7:00 a.m. weekdays, 10:00 p.m. until 8:00 a.m. weekends, unless otherwise stated in this article.

Noise means any sound which exceeds the maximum permissible sound levels by land use categories as given in section 66-202, Table 1.

Noise sensitive area means posted, designated quiet zones.

Power equipment means any machine, tool, or similar device driven or operated by a motor.

Powered model vehicle means any self-propelled airborne, waterborne, or landborne model plane, model vessel or model vehicle which is not designed to carry persons, including but not limited to, any model airplane, boat, car, or rocket.

Property boundary means an imaginary line at the ground surface and its vertical extension which separates the immovable property owned or inhabited by one person from that owned or inhabited by another person.

Public right-of-way means any street, avenue, boulevard, highway, sidewalk, alley or similar place normally accessible to the public which is owned or controlled by a governmental entity.

Residential area includes the following districts from the comprehensive zoning ordinance (Article 5, Sections 1 through 7 and Sections 22 and 23): RS1 and RS2, single family districts, RD1 and RD3, two-family districts, RM1 to RM4, multiple-family districts, MS, medical services districts, P, park and recreation district, and NU, nonurban district.

St. Louis Cathedral noise buffer zone shall be defined as an area around St. Louis Cathedral bounded by and including St. Peter Street from the Chartres Street Mall to Cabildo Alley, Cabildo Alley, Pere Antoine Alley, Pirates Alley, St. Ann Street from a line parallel to Cabildo Alley to the Chartres Street Mall and the Chartres Street Mall to a line parallel with the fence line in Jackson Square.

Sound amplifying equipment means any equipment, machine, or device used for the sound amplification of the human voice, music, or any other sound.

Sound level means in decibels, the A-weighted sound pressure level obtained by use of a sound level meter as specified in American National Standards Institute (SI.13-1971, R1976).

Sound level meter means an instrument for measuring sound, including a microphone, amplifier, output meter, and weighting network that is sensitive to pressure fluctuations.

Special historic districts are regulated by the following districts from the comprehensive zoning ordinance (Article 5, Sections 18 through 21): Special historic district/Vieux Carré residential (SHD/VCR), VCR1 and VCR2; special historic district/Vieux Carré entertainment (SHD/VCE), VCE; special historic district/Vieux Carré commercial (SHD/VCC), VCC1, VCC2, and VCS; special historic district/historic Marigny residential (SHD/

HMR), HMR1 to HMR3; special historic district/historic Marigny commercial (SHD/HMC), HMC and HMC2.
(Code 1956, § 42A-1; M.C.S., Ord. No. 18,399, § 1, 9-4-97; M.C.S., Ord. No. 18,625, § 1, 2-19-98; M.C.S., Ord. No. 18,857, § 1, 9-3-98; M.C.S., Ord. No. 24834, § 2, 4-5-12)

Cross reference—Definitions generally, § 1-2.

Sec. 66-137. Administration.

(a) The noise control program required by this article shall be administered by the director of the department of health and the superintendent of the department of police. In order to implement and enforce this article, and for the general purpose of noise abatement and control, the duly appointed and authorized representative of the department of health or the department of police shall have the power to:

(1) Perform noise monitoring on any public place or on receiving property.

(2) Make necessary inspections and tests.

(3) Execute other necessary action, including variance and permit review, and institute necessary proceedings to prosecute or enjoin violators of the noise control ordinance.

(b) All other city agencies and departments shall, to the fullest extent consistent with their authority, carry out their programs in such a manner as to further the policy of this article.
(Code 1956, § 42A-2)

Sec. 66-138. Exemptions from Table 1.

The following are exempt from the sound level limits of Table 1:

(1) Domestic power tools, lawn mowers and agricultural equipment, between the hours of 7:00 a.m. and 10:00 p.m. weekdays and 8:00 a.m. and 10:00 p.m. on weekends.

(2) Noises resulting from any authorized emergency vehicles when responding to an emergency.

(3) Safety signals and alarm devices, storm warning sirens or horns, and the authorized testing of such equipment.

(4) Noises made during a parade or concert sponsored by the city, or for which a permit has been granted by the city.

(5) Any noise resulting from activities of a temporary duration, for which a special permit has been granted by the city.

(6) Noises from nonamplified church bells and chimes.

(7) Noises from construction and demolition activities for which a building permit has been issued by the department of safety and permits are exempt from Table 1 between the hours of 7:00 a.m. and 11:00 p.m., except in those areas zoned as RS, RD, or RM residential districts. Construction and/or demolition activities shall not begin before 7:00 a.m. or continue after 6:00 p.m. in areas zoned as RS, RD, or RM residential districts, or within 300 feet of such residential districts. Mufflers on construction equipment shall be maintained.

(8) Notwithstanding the provisions of subsection (7) of this section or any other provision of this Code to the contrary, pile driving activities in the area bounded by Canal Street, North Gayoso Street, Bienville Avenue, and North White Street shall be and are permitted to be conducted only between the hours of 3:00 p.m. and 11:00 p.m., Monday through Friday, but shall be and are permitted to be conducted between the hours of 8:00 a.m. and 6:00 p.m. Saturdays and Sundays.

(9) Interstate railway locomotives and cars.

(10) Installation and maintenance of public and private utilities.

(11) Mosquito control ground-spraying operations.

(12) Street cars.

(13) Any outdoor evangelistic endeavor conducted by a bona fide, tax-exempt religious organization or by a duly authorized representative thereof.

(14) Jazz funerals.

(15) Golf course lawn and maintenance activities at legally permitted golf courses on Mondays through Saturdays, between the hours of 6:00 a.m. and 6:00 p.m.

(Code 1956, § 42A-6; M.C.S., Ord. No. 19,420, § 1, 10-21-99; M.C.S, Ord. No. 22723, § 1, 7-12-07)

Sec. 66-139. Miscellaneous exemptions.

The following are exempted from the provisions of section 66-203:

(1) Noises made during a parade or concert sponsored by the city, or for which a permit has been granted by the city.

(2) Any noise resulting from activities of a temporary duration, for which a special permit has been granted pursuant to this article, and which conforms to the limits and conditions stated thereon.

(3) Any outdoor evangelistic endeavor conducted by a bona fide, tax exempt religious organization or by a duly authorized representative thereof, between the hours of 7:00 a.m. and 10:00 p.m.

(4) Jazz funerals.

(Code 1956, § 42A-6)

Sec. 66-140. Penalties.

Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor and upon conviction thereof, shall be fined in an amount not to exceed that authorized by applicable state law, or be imprisoned for a period not exceeding 90 days, or by both such fine and imprisonment. Each day such violation is committed or permitted to continue shall constitute a separate offense and shall be punishable as such.

(Code 1956, § 42A-11)

Sec. 66-141. Violations; additional remedies; injunctions.

As an additional remedy, the operation or maintenance of any business, device, instrument, vehicle, or machinery in violation of any provision of this article, or which operation or maintenance exceeds the limitations of this article may be subject to abatement summarily by a restraining order or injunction issued by a court of competent jurisdiction.

(Code 1956, § 42A-12)

Secs. 66-142—66-175. Reserved.

DIVISION 2. ADMINISTRATION*

Sec. 66-176. Temporary permits.

(a) The director may grant a temporary permit which allows noncompliance with the limitations prescribed in this article for the purpose of sound activities of short duration.

(b) Permits shall be granted upon application, at a cost of $20.00, provided an investigation assures that the permit will not result in a condition injurious to health or safety.

(c) The following factors shall be considered, in the initial investigation, in order to determine whether granting the permit will result in a condition injurious to health or safety:

(1) Distance of proposed activities from a residential zone.

(2) Number of amplification devices, if any, to be used in the proposed activities.

(3) Sound level of amplification devices.

(4) Anticipated direction of amplification devices.

(5) Anticipated duration of proposed activities.

(6) Whether the activity will be held within or outside of a structure.

(7) Any other considerations deemed necessary by the director of the department of health.

(d) Upon a determination that the granting of a permit will not result in a condition injurious to health or safety, the permit shall be issued by noise control enforcement personnel specifying place, duration, and any restrictions appropriate to the proposed site of the activities.

*__Cross reference—__Administration, ch. 2.

(e) Permits must be displayed and available for review by police officers or department of health officials upon request.

(f) Issued permits will be surrendered to any city police officer or city health official upon request when the restrictions of the permit have been violated.

(g) Reapplication for a permit may be denied upon evidence of a complaint by a resident in the locality of the permitted activity or if an applicant has in the past been required to surrender a permit as described in subsection (f) of this section.

(h) This section shall not apply to any person who has been granted a variance as prescribed by section 66-177.

(i) A permit may be issued for more than one occasion of activity. However, the time of such activity must be indicated on the application and cannot be for more than four occasions, or in excess of a six-week span.

(j) Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the city confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal liens.
(Code 1956, § 42A-10; M.C.S., Ord. No. 30681, § 4, 6-24-26)

Sec. 66-177. Variances.

(a) The director may grant an individual variance from the limitations prescribed in this article whenever it is found, upon presentation of adequate proof, that compliance with any part of this article:

(1) Will result in an arbitrary and unreasonable taking of property; or

(2) Will not result in a condition injurious to health or safety.

(b) Any variance, or renewal thereof, shall be granted within the requirements of subsection (a) of this section and for time periods and under conditions consistent with the reasons therefore, and within the following limitations:

(1) If the variance is granted on the grounds that compliance with the particular requirement or requirements will necessitate the taking of measures which, because of their extent or cost, must be spread over a considerable period of time, it shall be for a period not to exceed such reasonable time as, in the view of the director, is requisite for the taking of the necessary measures. A variance granted on the grounds specified in this subsection shall contain a time-table for the taking of action in an expeditious manner and shall be conditioned on adherence to the time-table; or

(2) If the variance is granted on the grounds that it is justified to relieve or prevent hardship of a kind other than that provided for in subsection (a) of this section, it shall be for not more than one year.

(c) Any person seeking a variance shall do so by filing a petition for variance with the director, who shall investigate the petition and make a determination as to the disposition thereof within ten working days following receipt of the request by the director.
(Code 1956, § 42A-9)

Secs. 66-178—66-200. Reserved.

DIVISION 3. REGULATIONS

Sec. 66-201. Noise measurement.

Sound level measurements shall be made with a properly calibrated sound level meter Type 2 or better using the A-weighted network in accordance and conforming with the noise measurement standards, based on the reference sound pressure, promulgated by the American National Standards Institute and Testing Procedures

(ANSI). Instrument response shall be "fast" for motor vehicle measurements and "slow" for all other measurements.
(Code 1956, § 42A-3)

Sec. 66-202. Maximum permissible sound levels by receiving land use.

(a) No person shall operate or cause to be operated any source of sound in such a manner as to create a sound level which exceeds the limits set forth for the receiving land use category in table 1.

(b) L_{10} is the A-weighted sound pressure level which is exceeded ten percent of the time in any measurement period. The measurement period

shall not be less than ten minutes when measured at or beyond the property boundary of the receiving land use category (example L_{10} is the sound level that is exceeded a total of one minute in a ten-minute period). In the SHD/VCE, the measurement may be taken at a minimum distance of 7.5 meters (25 feet) from the source being measured within a minimum clearance of three feet from any reflecting surface.

(c) For any source of sound the maximum sound level (L_{max}) shall not be exceeded.

(d) In the case of two-family or multiple-family dwellings the sound level shall be measured within an adjacent intrabuilding dwelling.

(e) When a noise source can be identified and its noise measured in more than one land use category, the limits of the more restrictive use shall apply at the boundary and within the most restrictive land use category. This provision shall not apply to the SHD/VCE.

TABLE 1

SOUND LEVELS BY RECEIVING LAND USE

Receiving Land Use Category	*Time*	*Sound Level Limit* L_{10} *dBA*	*Sound Level Limit* L_{max} *dBA*
Resident, public space	7:00 a.m.—10:00 p.m.	60	70
	10:00 p.m.— 7:00 a.m.	55	60
Two-family or multiple-family dwelling (intra dwelling)	7:00 a.m.—10:00 p.m.	50	60
	10:00 p.m.— 7:00 a.m.	45	55
Business and commercial	7:00 a.m.—10:00 p.m.	65	75
	10:00 p.m.— 7:00 a.m.	60	65
Industrial	At all times	75	85
SHD/VCE districts	At all times	10 decibels above the ambient noise level; or 60 decibels, whichever is higher.	
SHD/VCR	7:00 a.m.—10:00 p.m.	*75	*80
	10:00 p.m.— 7:00 a.m.	*55	*60
SHD/VCC	7:00 a.m.—10:00 p.m.	*75	*80
	10:00 p.m.— 7:00 a.m.	*60	*65
SHD/HMR	7:00 a.m.—10:00 p.m.	60	70
	10:00 p.m.— 7:00 a.m.	55	60
SHD/HMC	7:00 a.m.—10:00 p.m.	65	75
	10:00 p.m.— 7:00 a.m.	60	65

*Adjusted for other, intrusive sounds.

(Code 1956, § 42A-4; M.C.S., Ord. No. 18,399, § 2, 9-4-97)

Sec. 66-203. Specific nuisance noises prohibited.

In addition to the general prohibitions set out in this article, the following specific acts are declared to be in violation of this article:

(1) *Animals.* It shall be unlawful for the owner or keeper of any animal or fowl to allow frequent or continuing noise which disturbs a reasonable person of normal sensitivity.

(2) *Horns, signaling devices.* It shall be unlawful to sound any horn or signaling device on any street or public place in the city for purposes other than motor vehicle, driver, and/or pedestrian safety.

(3) *Radios, televisions, musical instruments and similar devices.*

a. It shall be unlawful to operate or play in any public right-of-way, public park, playground or recreational area, any musical instruments, radio, television, phonograph, tapeplayer, cassette player, compact disc player, or any sound device, including but not limited to loudspeakers or other devices reproducing or amplifying sound in such a manner, or with such volume, as to exceed an average of 80 decibels measured at a distance of 50 feet from the sound source. The New Orleans police department or the department of health shall order any person or persons in violation of this section to immediately cease creating or causing the creation of noise. If said person or persons fail to obey this order, appropriate action shall be taken pursuant to section 66-137. The readings shall be in succession.

b. It shall be unlawful to operate or play any radio, television, phonograph, musical instrument, loudspeaker or similar device that is plainly audible to any person other than the operator between 8:00 p.m. and 10:00 a.m. in parks, playgrounds, or recreation areas unless a permit has been issued.

c. Reserved.

d. It shall be unlawful between the hours of 9:00 p.m. Sunday through Thursday and 10:00 a.m. on the subsequent morning or between the hours of 10:30 p.m. on a Friday or Saturday and 10:00 a.m. the subsequent morning to operate or play in a dwelling occupying a parcel or lot of land or to operate or play anywhere on a parcel or lot of land contiguous or adjacent to another parcel or lot of land occupied by a neighboring dwelling any radio, television, phonograph, loudspeaker, sound-amplification equipment or similar device which produces or reproduces sound in such a manner as to be plainly audible at a distance of one foot from any exterior wall of the neighboring dwelling or at a distance beyond the boundary between the parcels or lots, whichever is the lesser distance from the point where the sound is produced or reproduced.

e. It shall be unlawful between the hours of 9:00 p.m. Sunday through Thursday and 10:00 a.m. on the subsequent morning or between the hours of 10:30 p.m. on a Friday or Saturday and 10:00 a.m. the subsequent morning to operate or play in an apartment, condominium unit or other dwelling unit of a multiple-unit structure occupying a parcel or lot of land or in any common or exterior area of such land any radio, television, phonograph, loudspeaker, sound-amplification equipment or similar device which produces or reproduces sound in such a manner as to be plainly audible within any other apartment, condominium unit or other dwelling unit within the same dwelling structure.

(4) *Neighborhood businesses.* Businesses operating in B-1 or B-2 commercial areas and under nonconforming use zoning within or adjacent to residential areas shall comply with the provisions of section 66-202.

a. Upon initial determination of a violation a neighborhood business will be given six months to comply with the terms of the ordinance if insulation or other major structural modifications are necessary for compliance.

b. Nothing in this subsection shall relieve the business owner or manager from the responsibility of taking other reasonable actions directed at reducing noise levels upon determination of a noise violation.

(5) *Loudspeakers.* It shall be unlawful to use or operate any loudspeaker, loudspeaker system or similar device that is plainly audible upon any street, alley, sidewalk, park or public property for the purpose of commercial advertising, or attracting the attention of the public to any building, structure, or vehicle.

(6) *Power equipment.*

a. It shall be unlawful to operate or permit to be operated any power equipment in residential zones outdoors between the hours of 10:00 p.m. and 7:00 a.m. the following day, and on weekends between 10:00 p.m. and 8:00 a.m.

b. During daytime hours (7:00 a.m.—10:00 p.m. weekdays, 8:00 a.m.—10:00 p.m. on weekends) power equipment rated five horsepower or less shall not exceed a sound level of 75 dBA at a distance of 50 feet. Power equipment rated more than five horsepower shall not exceed a sound level of 82 dBA at a distance of 50 feet.

(7) *Machinery, fans, and air conditioners.* It shall be unlawful to operate or permit the operation of any stationary machinery, air-conditioners, air-handling equipment, fans, or similar devices in such a manner as to exceed Table 1 of the receiving land use categories when measured on receiving property.

a. Stationary machinery, equipment, fans, and air conditioners shall have the following replacement schedule:

1. Installed and operating sources, of age ten years or older, shall comply with the provisions of this subsection within a reasonable time period, upon determination of a condition of violation. This time period shall not exceed six months.

2. Installed and operating sources, of age five to ten years shall comply with the provisions of this subsection within a reasonable time period, upon determination of a condition of violation. This time period shall not exceed one year.

3. Installed and operating sources under five years of age, shall comply with the provisions of this subsection within a reasonable time period, upon determination of a condition of violation. This time period shall not exceed two years.

b. Nothing in subsection (7)a. of this section shall be interpreted in such a way as to relieve the person responsible for such stationary machinery, equipment, fans, air conditioning apparatus, or any similar permanently installed mechanical devices, from the responsibility of taking other reasonable actions, other than replacement, directed at reducing noise levels from these sources on receiving property.

(8) *Aircraft engines.*

a. It shall be unlawful for any person to operate, run, or test or cause to be

operated, run, or tested an aircraft engine which creates a noise level exceeding Table 1 of the receiving land use category measured at any place within an inhabited zone of the city.

b. The intent of this subsection is to regulate noise levels produced in the testing, maintenance, and repairs of aircraft engines and aircraft hours. Any aircraft operating during a landing, takeoff, or while moving upon ground surface of an airport shall be exempted from the provisions of this section.

(9) *Noise sensitive "quiet" zones.* It shall be unlawful to create or cause the creation of any noise, other than those noise exemptions stated in section 66-138, within 500 feet of any noise sensitive zone, so as to exceed the residential land use levels set forth in Table 1 when measured on the receiving property, provided that conspicuous signs are displayed indicating the presence of the "quiet" zone.

(Code 1956, § 42A-5; M.C.S., Ord. No. 18,399, § 3, 9-4-97; M.C.S., Ord. No. 18,625, §§ 2, 3, 2-19-98)

Cross reference—Animals, ch. 18.

Sec. 66-204. Additional remedies and penalties for animal or fowl noises.

Any person who violates section 66-203 shall be fined or imprisoned in accordance with the following:

(1) First offense, $50.00.

(2) Second offense, $150.00.

(3) Third offense or subsequent violations shall result in a fine of $300.00 or imprisonment of not more than 90 days or both.

(4) Notwithstanding any of the penalty provisions of this section, the owner or keeper of any animal or fowl found guilty of violating any provision of section 66-203 shall be required to enroll and attend animal or fowl obedience training classes sponsored by the Society for the Prevention of Cruelty to Animals or any other such competent authority.

(Code 1956, § 42A-14)

Sec. 66-205. Persons playing musical instruments on public rights-of-way.

It shall be unlawful for any person to play musical instruments on public rights-of-way between the hours of 8:00 p.m. and 9:00 a.m. Persons may obtain a temporary permit as provided by this article. The provisions of this section shall not apply to any person who has obtained a temporary permit as provided for by section 66-176 or are specifically exempted from the provisions of this article as provided by sections 66-138 and 66-139 or any noise resulting from activities of a temporary duration, for which a temporary permit has been granted by the city as provided for in section 66-176.

(Code 1956, § 42A-15)

Sec. 66-206. Motor vehicles.

(a) *Vehicles in motion.* No person shall operate a motor vehicle at any time or under any condition of grade, load, acceleration or deceleration in such a manner as to exceed the sound level limits for the category of motor vehicle shown in Table 2. The sound level shall be measured at a distance of at least 15 meters (50 feet) from the center of the vehicle path at a height of at least 1.23 meters (four feet) above the immediate surrounding surface. This section shall apply to the total noise from a motor vehicle or combination of vehicles and shall not be construed as limiting or precluding the enforcement of any other provisions of this article relating to motor vehicle mufflers for noise control.

TABLE 2

MAXIMUM PERMISSIBLE SOUND LEVELS FOR MOTOR VEHICLES

Type of Vehicle	*Sound Level Limit*	
	Speed limit 40 mph or less	*Speed limit over 40 mph*
Motor vehicle with a manufacturer's gross vehicle weight rating (GVWR) or gross combination weight rating (GCWR) of 10,000 pounds or more, or any combination of vehicles towed by such motor vehicle	86	90

Type of Vehicle	*Sound Level Limit*	
	Speed limit 40 mph or less	*Speed limit over 40 mph*
Any other motor vehicle or any combination of vehicles towed by any motor vehicles	76	82
Motorcycles	82	86

(b) *Static tests for motor vehicles.*

(1) No person shall operate a motor vehicle having a manufacturer's gross vehicle weight rating of at least 6,000 pounds which exceeds 93 dBA, measured 25 feet (7.6m) from the side of the vehicle. The sound level shall be observed during the full cycle of engine acceleration-deceleration, and the measured sound level reading shall be the highest value obtained during this cycle, excluding unrelated peaks due to extraneous ambient noise. When there is more than one outlet, the sound level for each side of the vehicle shall be measured, and the reported sound level shall be the average of the two highest readings within one decibel of each other on the loudest side.

(2) No person shall operate a motor vehicle having a manufacturer's gross vehicle rating of less than 6,000 pounds, except a motorcycle, which exceeds 95 dBA, measured 20 inches (508mm) from the exhaust outlet. The measured exhaust system sound level of a stationary vehicle shall be the highest reading obtained during the test, disregarding unrelated peaks due to extraneous ambient noise. When there is more than one exhaust outlet, the reported sound level shall be for the loudest outlet. When there is more than one exhaust outlet from a single muffler, separated by less than 12 inches (305mm), measurements shall be made on the outlet closest to the side of the vehicle.

(Code 1956, § 42A-7)

Cross reference—Traffic and vehicles, ch. 154.

Sec. 66-207. Specific motor vehicle noises prohibited.

(a) *Mufflers and sound dissipating devices.* No person shall operate, or cause to be operated any motor vehicle equipped with a muffler that exceeds allowable levels in section 66-206.

(1) Any modifications to the exhaust system which cause the vehicle to exceed maximum permissible levels is prohibited. Such modifications include: Removal or puncturing the muffler, baffles, header pipes, or any other component which conducts exhaust gases.

(2) No person shall remove or render inoperative or cause to be removed or rendered inoperative, any muffler or sound dissipating device on a motor vehicle other than for purposes of maintenance, repair, or replacement.

(b) *Refuse collection vehicles.* No person shall collect refuse with a refuse collection vehicle between the hours of 8:00 p.m. and 5:00 a.m. the following day in a residential area or noise sensitive zone. This provision shall not apply to collection areas requiring greater than normal twice-weekly refuse collection for sanitary/health reasons.

(c) *Off-road motorized vehicles.* No person shall operate or cause to be operated any off-road motorized vehicle off a public right-of-way in such a manner that the sound levels emitted therefrom violate the provisions of section 66-202. This section shall apply to all off-road motor vehicles, whether or not duly licensed and registered, including, but not limited to, commercial or noncommercial racing vehicles, motorcycles, go-carts, amphibious craft, campers and dune buggies, but not including motorboats.

(d) *Vehicle repair.* It shall be unlawful for any person within any zone of the city to repair, rebuild, or test any motor vehicle in such a manner that the noise produced exceeds the land use category in Table 1 when measured at the receiving property line.

(Code 1956, § 42A-8)

Sec. 66-208. St. Louis Cathedral noise buffer zone.

It shall be unlawful for any person or persons in the St. Louis Cathedral noise buffer zone to create or to cause the creation of any noise in excess of 78 decibels at a distance of 50 feet from the source during religious services in St. Louis Cathedral, provided that conspicuous signs are displayed outside of the cathedral during the conduct of such services. The New Orleans Department of Police or the Department of Health shall order any person or persons in violation of this section to immediately cease creating or causing the creation of noise. If such person or persons fail to obey this order, appropriate action shall be taken pursuant to section 66-137 (administration).
(M.C.S., Ord. No. 18,857, § 2, 9-3-98)

Sec. 66-209. Placement of loudspeaker(s).

(a) This section governs the placement of loudspeaker(s) by commercial enterprises operated within the Vieux Carré Historic Districts and the Central Business Districts, as defined in the Comprehensive Zoning Ordinance.

(b) Each of the following is a "responsible party" for assuring compliance on the premises of a commercial enterprise governed by this section:

(1) An owner of the premises;

(2) A manager of the premises;

(3) Any person controlling the volume of a sound amplification device on the premises, including but not limited to disc jockeys;

(4) Any person named in the occupational license for the premises; or

(5) The commercial enterprise.

(c) A responsible party for any commercial enterprise governed by this section must assure compliance with the following requirements regarding placement of loudspeaker(s) operated by the enterprise or any person described in section 66-209(b):

(1) In all commercial enterprises, no loudspeaker(s) shall be located beyond the interior walls of the building or be oriented in such a way that the face or front of the loudspeaker(s) points in the direction of any exterior door, window, or other opening to the exterior of the building. This provision shall not apply to permanently closed doors, windows, or emergency exits. No loudspeaker(s) shall have any openings on the back or side that project sound.

(2) For commercial enterprises that hold a Class A alcoholic beverage permit so that they are lawfully permitted, whether a permanent or temporary permit, to sell alcoholic beverages for consumption on the premises:

a. Loudspeaker(s) shall be located in the interior of the building and must be located at a distance greater or equal to ten feet from any exterior door, window, or other opening to the exterior; or

b. If loudspeaker(s) are located less than ten feet from any exterior door, window, or other opening to the exterior of the building, then such windows, doors, or openings to the exterior must remain closed during the hours of operation. In the event that a door subject to this section constitutes an emergency fire exit that is required to remain open during hours of operation then the fire marshal, pursuant to city and state law, may exempt such door from the requirements of this section. Written documentation issued by the office of state fire marshal of such authorized exemption must be located at the commercial enterprise and must be available upon request.

(3) For commercial enterprises that do not hold a Class A type alcoholic beverage permit so that they are not lawfully permitted to sell alcoholic beverages for consumption on the premises:

a. Loudspeaker(s) shall be located in the interior of the building at a dis-

tance greater or equal to 20 feet from any exterior door, windows, or other opening to the exterior of the building.

(d) Penalties. A commercial enterprise is subject to the following penalties upon a finding of a violation of this section:

(1) For a first violation, a fine of up to $500.00.

(2) For a second violation and any subsequent violation within 12 months of the initial violation, the fine shall be $500.00 for each violation.

(M.C.S., Ord. No. 24834, § 2, 4-5-12)

Secs. 66-210—66-240. Reserved.

ARTICLE V. NUISANCES*

DIVISION 1. GENERALLY

Sec. 66-241. Spitting on sidewalks, etc., prohibited.

It shall be unlawful for any person to spit on the banquettes and sidewalks, floors of public halls, theatres and other places of amusement.
(Code 1956, § 29-8)

Sec. 66-242. Use of garbage for fills, etc.

It shall be unlawful for any person to haul any garbage, refuse, swill or other similar material for the purpose of filling lots, to separate and transfer to other places or to burn such material in the city.
(Code 1956, § 28-3)

Sec. 66-243. Refuse dumps facing a roadway to be enclosed by fence and equipped with water line.

(a) No person shall dump, leave or deposit or permit such dumping, leaving or depositing on lands or premises owned or occupied by them of any of the trash, refuse, garbage or other materials described in section 66-282(a), where such land or premises is situated adjacent to any public road, street, avenue, highway or thoroughfare in an area where same is lawfully permitted that is not properly enclosed on boundary lines facing a roadway with a proper, suitable and substantial fence, constructed of wood, metal or masonry material, in sound condition, substantially free from deterioration, not less than seven feet nor more than ten feet high to prevent the ready entry of unauthorized persons on such premises or land and properly screening such enclosed area from public view; and provided, further, that such fence shall be kept in a constant state of good repair; and further, that no sign or other advertising matter shall be placed upon the fence.

(b) Land used for the dumping or depositing of trash, refuse, garbage or other materials described in section 66-282(a) shall be equipped with an adequate waterline, where water is available from city water mains.
(Code 1956, § 28-18.1)

Sec. 66-244. Burning of refuse on private dumps prohibited.

(a) The burning of trash, refuse, garbage or other materials as described in section 66-282(a) on a private dump in the city is hereby declared to be a nuisance per se.

(b) No person who maintains or who allows the maintenance of a private dump in the city for the depositing of such materials on land owned by them shall set fire to or allow the setting of fire to such materials on land owned by them and each such person shall take all necessary steps to prevent the setting of fire to such materials by other persons or by spontaneous combustion.
(Code 1956, § 28-18.2)

Cross references—Fire prevention and protection, ch. 74; solid waste, ch. 138.

Sec. 66-245. Assessment of costs of extinguishing fire.

Any person who maintains or who allows the maintenance of a private dump and who intention-

*__Cross references—__Places where animals are kept are to be kept clean, § 18-12; soiling of public and private property by animals, § 18-13; treatment and removal of manure, § 18-332; buildings, building regulations and housing standards, ch. 26.

ally sets fire to or allows the setting of fire to such materials by their failure to take all necessary steps to prevent the setting of fires to such materials by other persons or by spontaneous combustion to such an extent that it becomes necessary for the fire department to extinguish the fire shall be liable to the city for the cost of dispatching the personnel and equipment of the fire department to the dump to extinguish the fire.
(Code 1956, § 28-18.3)

Sec. 66-246. Owner to be billed for cost by city, plus interest and penalties.

Whenever the fire department has been dispatched to a private dump to extinguish a fire under this article, the actual cost thereof, plus accrued interest at the rate of six percent per annum from the date of the fire, shall be charged to the owner of the property on the next regular tax bill forwarded to such owner by the city, if not paid by such owner prior thereto, which charge shall be due and payable by such owner at the time of payment of such tax bill.
(Code 1956, § 28-18.4)

Sec. 66-247. Sworn statement of costs to be filed in mortgage office; effect thereof; penalties.

If the full amount due the city under this article is not paid by the owner within ten days after the extinguishing of the fire, as set forth in sections 66-245 and 66-246, the superintendent of fire of the fire department, or his duly authorized representative, shall cause to be recorded in the mortgage office of the parish a sworn statement showing the cost and expense incurred in extinguishing the fire, which cost shall include all costs for personnel, supplies, materials, use of equipment and other costs necessary for the extinguishment of such fire, and the date and property on which such fire was extinguished, as well as the name of the owner thereof, and the recordation of such sworn statement shall constitute a lien and privilege on the property and shall remain in full force and effect for the amount due in principal and interest, plus costs of court, if any, for collection, until final payment has been made. These costs shall be received and confirmed by the bureau of accounting, department of finance. Such costs and expenses shall be collected in the manner fixed by law for the collection of taxes; and further, shall be subject to a delinquent penalty of ten percent if they are not paid in full on or before the date the tax bill upon which the charge appears becomes delinquent. Sworn statements recorded in accordance with the provisions hereof shall be prima facie evidence that all legal formalities have been complied with and that the cost of extinguishing the fire has been properly computed and assessed, and shall be full notice to every person concerned that the amount of the statement, plus interest, constitutes a charge against the property designated or described in the statement, and that such charge is due and collectible as provided by law.
(Code 1956, § 28-18.5)

Sec. 66-248. Removal of debris from fire, etc.

Upon the destruction or demolition, in whole or in part, of any building or other work by fire or other cause, the owner of the building or other work shall, within six days after such event, remove or cause to be removed, all debris resulting therefrom lying in or upon the sidewalks, roadways or gutters of the streets.
(Code 1956, § 28-21)

Sec. 66-249. Excavations or ponds to be filled or fenced.

(a) Every owner, occupant or lessee of any lot located in a residential neighborhood which in the past has been or shall hereafter be used for a borrow pit for the excavation of soil or other materials thereby causing a pond or depression in which water accumulates and stands, shall cause the same to be filled with soil or other solid filling or waste material other than that described in section 66-285, or other offensive or deleterious matter, such filling to be brought to the level of the surrounding lots, or enclose such lot with a fence to be not less than six feet high, with at

least three strands of barbed wire thereon, to prevent the entry of unauthorized persons on such premises, or lot.

(b) Each day that such owner or occupant or lessee shall fail to comply with the requirements of this section shall constitute a separate offense and be punishable as provided by this Code.
(Code 1956, § 28-2.1)

Sec. 66-250. Sand or gravel storage areas; batch plants to be fenced.

Every owner, occupant or lessee of any lot or portion thereof, located within 500 feet of a residential zoning district, which is used commercially for the storage of or as a transfer site for sand or gravel or as a batch plant for the mixture of asphalt, cement or concrete shall enclose such lot with a fence to be not less than six feet high nor more than ten feet (subject to a waiver from the board of zoning adjustments), to prevent the entry of unauthorized persons on such premises or lot.
(Code 1956, § 28-2.3)

Sec. 66-251. Bringing hides, etc., into the city.

No person shall bring or cause to be brought into the city any hides, bones, peltry, rags or other articles whatsoever which may tend to produce infection or in any way to injure or endanger health.
(Code 1956, § 29-9)

Sec. 66-252. Substances deleterious to health not to be kept in city.

No distiller, brewer, keeper of any workshop, manufactory or laboratory, warehousekeeper or owner, soap-boiler, chandler or other person shall have, keep, use, produce or store, within the city, foul, fetid, putrid or offensive or injurious matters, substances, odors or vapors liable to injure health and on complaint of the department of health, unless the evil complained of be at once discontinued, the director of the department of health shall order such places to be forthwith closed and such business stopped, the continuance of which is liable to injure health.
(Code 1956, § 29-10)

Sec. 66-253. Lots not to be filled with deleterious matter.

It shall be unlawful to fill up, or partly fill up, any lot with manure or other offensive or deleterious matter.
(Code 1956, § 29-11)

Sec. 66-254. Throwing unhealthy matter into river.

No person shall deposit or throw any dead animal, carrion or other offensive or unhealthy matter into the river, except at the points and in the manner designated by law.
(Code 1956, § 29-12)

Cross reference—Health and sanitation, ch. 82.

Sec. 66-255. Removal of foul matter; closing unhealthy structure.

The superintendent of police shall, upon complaint of the department of health, remove or cause to be removed any foul or offensive matters whatsoever to such place or places as may be selected by the department, at the expense of the owner of such matter or the occupant or owner of the premises where it may be. The department of health may, in its discretion, for the protection of life and health, declare any structure or place unhealthy, and may order such structure or place forthwith to be vacated and closed; and the same shall not again be occupied until it shall appear to have been so cleansed or repaired as to be fit for human habitation, and permission shall have been granted accordingly by the department of health.
(Code 1956, § 29-13)

Sec. 66-256. Penalties; certain violations.

Violators of sections 66-249, 66-285, 66-287, 66-312, 66-313 and 66-351 shall, upon conviction or plea of guilty, be punished as follows: The first conviction of a violation shall be punishable by a fine of not less than $100.00 or more than $200.00; the second conviction of a violation shall be punishable by a fine of not less than $150.00; and each subsequent conviction of a violation shall be punishable by a fine of not less than $200.00 or imprisonment of no less than

five days nor more than 90 days or both. Owners, agents, and/or occupants of property may be charged with violations of this article.
(Code 1956, § 28-1.1)

State law reference—Administrative adjudication of public health, housing, fire code, environmental and historic district violations, R.S. 13:2575.

Sec. 66-257. Distribution of printed matter.

(a) The purpose of this section is to provide for the protection and promotion of the public health, safety, and welfare by regulating the distribution of unsolicited printed matter, that can negatively impact residents' quality of life, safety, and health of neighborhoods; disturb the peaceful possession of property; because such unsolicited materials facilitate the accumulation of filth, sewerage, garbage, refuse, and debris; and contribute to damaging private and public property, including but not limited to clogging catch basins, drainage canals, and other drainage lines.

(b) The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

(1) *Front door* means a door to any residential structure on residential property that faces a street or private street. If no such door faces a street or private street, then the front door is the door nearest to a street or private street;

(2) *Residential property* means any property used wholly or in part for residential purposes or for short-term rentals, whether inhabited or vacant;

(3) *Solicited printed matter* means any printed matter that is delivered to any residential property with the express invitation or express permission in writing or otherwise of an owner of the residential property or other authorized representative; and

(4) *Unsolicited printed matter* means any printed matter that is delivered to any residential property without the express invitation or express permission in writing or otherwise of an owner of the residential property or other authorized representative.

(c) Unsolicited printed matter:

(1) It shall be unlawful for any person to cause unsolicited printed matter to be deposited upon any residential property that is included on the city's "Do Not Toss" List, described in subsection (d), except through one of the following methods:

(i) Placing and securing it at the entryway nearest to the front door;

(ii) Attaching it securely to the front door;

(iii) Putting it through a mail slot on or near the front door;

(iv) Putting it in between the exterior front door and the interior front door; or

(v) Handing it personally to the owner of the residential property or other authorized representative.

(2) Notwithstanding the provisions of subsection (c)(1), it shall not be unlawful for a person to:

(i) Deposit unsolicited printed matter into a receptacle lawfully located affixed upon any street or public place, provided said person is authorized to deposit such unsolicited printed matter into said receptacle.

(ii) Distribute unsolicited printed matter by handing it to any person who accepts it.

(d) "Do Not Toss" List:

(1) The City of New Orleans shall maintain a "Do Not Toss" List of residential property addresses where the owner of the residential property or their representative has requested that the city prohibit

the depositing of any unsolicited printed matter, except through the methods provided in subsection (c)(1).

(i) When the department of code enforcement deems a property to be abandoned, vacant, or blighted, the city may include that address on the "Do Not Toss" List.

(2) The city will create and regularly update a website featuring the "Do Not Toss" List, so as to provide the public with ready access to the accurate and current list. Upon request, the city shall distribute a date-referenced copy of the "Do Not Toss" List to any publisher or distributor of printed matter.

(e) Enforcement:

(1) The City of New Orleans is authorized to adopt rules and regulations for the proper administration and enforcement of this section, especially with respect to continuous or systematic violations at a residential property or neighborhood.

(2) Each instance when unsolicited printed matter is unlawfully deposited on a residential property shall constitute a separate violation.

(f) This provisions of this section shall not apply to the following:

(1) The distribution of mail by the United States Postal Service or private courier service; or

(2) The distribution of solicited printed matter.

(M.C.S., Ord. No. 27946, § 1, 12-20-18)

Sec. 66-258. Enforcement of article.

(a) In accordance with section 4-502(2) of the Charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the department of sanitation, employees of the department of public works, employees of the department of code enforcement, and employees of the office of homeland security and emergency preparedness, for the purpose of enforcing the provisions of this article. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.

(b) In addition to the enforcement remedies outlined in this article, when a police officer or authorized employee has reasonable grounds to believe a nuisance violation has been committed, as provided in this article, he or she may issue a nuisance citation to the owner(s), or in case of a property whose primary purpose is commercial, the owner(s), agent(s), occupant(s), or lessee(s) who is present at the time of service.

(c) A nuisance citation shall be served personally upon the owner(s), or in case of a property whose primary purpose is commercial, the owner(s), agent(s), occupant(s), or lessee(s) who is present at the time of service. If the owner(s) or, in the case of a property whose purpose is primarily commercial, the owner(s), agent(s), occupant(s), or lessee(s) of the property is not present, proper service upon them shall be achieved by affixing the nuisance citation conspicuously on the property or at the entrance of the premises. The original nuisance citation shall be signed by the issuing officer or authorized employee who shall affirm the truth of the facts set forth therein.

(d) If the owner(s) or in case of a property whose primary purpose is commercial, the owner(s), agent(s), occupant(s), or lessee(s) leaves the site of the violation while the issuing officer or authorized employee is preparing the nuisance citation, or refuses service of the nuisance citation, this fact shall be duly noted on the original and all copies of the nuisance citation. This original and all copies of a nuisance citation shall constitute a business record of the city and shall constitute prima facie evidence that the nuisance citation was issued and that an attempt at service thereof was made in accordance with the provisions of this section.

(e) An owner(s) or in case of a property whose primary purpose is commercial, the owner(s), agent(s), occupant(s), or lessee(s) to whom a nuisance citation has been issued under this

article may answer to the same in the manner and within the delays indicated on the citation. An answer may take the form of:

(1) Admission of the violation with payment of the scheduled civil penalty;

(2) A written denial of liability and promise to appear at an adjudicatory hearing date; or

(3) A written admission of liability with explanation and promise to appear at an adjudicatory hearing.

(f) Payment of the civil penalty may be made by mailing the nuisance citation to the agent designated by the city and accompanied by a payment of the scheduled civil penalty provided therein. Payment may be made only by money order or check made payable to the city. Payment of the civil penalty established herein shall operate as a final disposition of the case.
(M.C.S., Ord. No. 28884, § 2, 12-16-21; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29758, § 3, 12-1-23)

Secs. 66-259—66-280. Reserved.

DIVISION 2. LITTER*

Sec. 66-281. Obstruction of draining systems with trash or refuse.

(a) No person shall intentionally dump, deposit or throw into any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage, any trash, garbage, refuse, debris or other object of solid waste, that obstructs or significantly interferes with the free flow of drainage through the city's drainage systems.

(b) Any person who violates subsection (a) shall pay up to a $5,000.00 fine for each violation.

(c) If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(d) The community service provided in subpart (c) shall be performed under the supervision and direction of the director of sanitation or as designated by the court.
(M.C.S., Ord. No. 27872, § 1, 9-20-18)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 27872, § 1, adopted Sept. 20, 2018, M.C.S., Ord. No. 17,201, § 2, adopted Sept. 21, 1995, repealed § 66-281, which prohibited litter and derived from § 28-56 of the 1956 Code.

Cross reference—General obstruction of catch basins with trash or refuse, § 54-154.

Sec. 66-281.1. Obstruction of catch basins or other elements of the drainage system at construction or demolition sites.

(a) It shall be unlawful for any person performing work at a construction or demolition site to obstruct, dump, deposit or throw any article, material, or hazardous liquid into the city's drainage system, including any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage.

(b) Any person who violates subsection (a) shall be fined $5,000.00 for each violation.

(c) If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(d) The community service provided in subpart (c) shall be performed under the supervision and direction of the department of sanitation or as designated by the court.

*__Cross references—__Parks and recreation areas, ch. 106; public transit vehicles, ch. 122; solid waste, ch. 138; streets, sidewalks and other public places, ch. 146; traffic and vehicles, ch. 154; waterways, ch. 170.

State law references—Littering prohibited; penalties, R.S. 25:1111; littering of highways and adjacent lands prohibited, R.S. 32:289.

(e) For purposes of this section, a construction or demolition site means a parcel of land whereby there is construction, destruction, substantial rehabilitation, alteration or repair, to any physical structure located thereon, including houses, commercial buildings, industrial facilities, and the surrounding rights-of-way.

(M.C.S., Ord. No. 27872, § 1, 9-20-18)

Cross reference—Obstruction of catch basins or other elements of the drainage system at construction or demolition sites, § 54-154.1.

Sec. 66-281.2. Discharging in draining systems hazardous liquids.

(a) No person shall intentionally discharge dump, deposit or empty into any drainage canal, catch basin, drainage canal right-of-way, or public property impressed with a servitude for drainage any hazardous liquid including but not limited to: cooking oil and fats, motor oil, antifreeze, solvents, truck and automotive fluids, paint thinners, and gasoline.

(b) Any person who violates subsection (a) shall pay up to a $5,000.00 fine for each violation.

(c) If a person found in violation of this section can demonstrate the inability to pay the penalty imposed, that person shall be ordered, in lieu of a monetary penalty, the performance of up to 100 hours of community service by picking up litter and trash on public roads, streets, catch basins and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(d) The community service provided in subpart (c) shall be performed under the supervision and direction of the director of sanitation or as designated by the court.

(M.C.S., Ord. No. 27872, § 1, 9-20-18)

Cross reference—Specific discharging of hazardous liquids into catch basins, § 54-155.

Sec. 66-282. Littering, dumping, and dumping of specific materials.

(a) *Littering.* No person shall dump, leave, throw, discard, eject, emit, or otherwise permit the intentional or accidental dumping, leaving, throwing, discarding, ejection, emission, or escape of any glass or metallic objects, trash, refuse, garbage, or other solid waste as defined by the rules and regulations of the state department of environmental quality or as defined in section 138-2, from the body of any person or pedestrian, or from any vehicle, upon any public place within the city limits, upon any private property within the city, upon property owned or controlled by the city, or in the waters within the city, whether from a vehicle or otherwise including, but not limited to, any public highway, public park, beach, campground, forest land, recreational area, trailer park, highway, road, street or alley.

(b) *Dumping.* No person shall dump, leave, throw, discard, eject, emit, or otherwise permit the intentional or accidental dumping leaving, throwing, discarding, ejection, emission, escape of any glass or metallic objects, trash, refuse, garbage, or other solid waste as defined by the rules and regulations of the state department of environmental quality or as defined in section 138-2, from a vehicle upon any public place within the city limits, upon any private property within the city, upon property owned or controlled by the city, or in the waters within the city, whether from a vehicle or otherwise including, but not limited to, any public highway, public park, beach, campground, forest land, recreational area, trailer park, highway, road, street, or alley.

(c) *Dumping or littering; specific materials.* No person shall dump, leave, throw, discard, eject, emit, or otherwise permit the intentional or accidental dumping, leaving, throwing, discarding, ejection, emission, escape of any vehicle parts, construction debris, furniture, used oil, or other hazardous wastes, as defined by the rules and regulations of the state department of environmental quality or as defined in section 138-2, upon any public place within the city limits, upon any private property within the city, upon property-owned or controlled by the city, or in the waters within the city, whether from a vehicle or otherwise including, but not limited to, any public highway, public park, beach, campground, forest land, recreational area, trailer park, highway, road, street, or alley.

(d) *Presumption of violation.*

(1) Whenever solid waste is thrown, deposited, dropped, or dumped from any

vehicle not carrying passengers for hire, the presumption shall be that the operator of the vehicle has violated this section, but that presumption may be rebutted.

(2) If established that dumped, left, or deposited solid waste was in the possession by a person immediately before the act of dumping, the presumption shall be that the possessor has violated this section, but that presumption may be rebutted.

(3) Proof of ownership of solid waste found upon public or private property shall create the presumption that the owner of the solid waste violated this section, but that presumption may be rebutted.

(4) The owner of solid waste being prosecuted for a violation of this section may allege as an affirmative defense that such person legally contracted with another person to deposit the solid waste at a place designated by the state or any of its agents, political subdivision, units of local government or school districts for the disposal of solid waste.

(5) The owner of solid waste being prosecuted for a violation of this section may allege as an affirmative defense that he contracted to have the solid waste taken to a recycling center, or approved composting operation.

(6) A person may be found in violation of this section, although the commission of the offense did not occur in the presence of a law enforcement officer, if the evidence presented indicates that the person has committed the offense.

(e) *Penalties—Littering.* Any person who violates subsection (a) shall be punished as follows:

(1) For a first offense, a fine of not less than $500.00 and community service of not less than six seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries and

(2) For a second offense, a fine of not less than $500.00, community service of not less than ten seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries.

(3) For a third conviction and each subsequent offense, a fine of not less than $500.00 and community service of not less than 20 seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 180 days.

(f) *Penalties—Dumping.* Any person who violates subsection (b) shall be punished as follows:

(1) For a first offense, a fine of not less than $1,500.00 and community service of not less than ten seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries;

(2) For a second offense, a fine of not less than $3,000.00 and community service of not less than 15 seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 180 days; and

(3) For a third and each subsequent offense, a fine of not less than $5,000.00 and community service of not less than 20 seven-hour days of collecting and picking up litter and trash on public roads, streets

and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 180 days.

(g) *Penalties—Dumping or littering; specific materials.* Any person who violates subsection (c) shall be punished as follows:

(1) For a first offense, a fine of not less than $500.00, community service of not less than ten seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 30 days;

(2) For a second offense, a fine of not less than $500.00, community service of not less than 15 seven-hour days of collecting and picking up fitter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 60 days;

(3) For a third offense, a fine of not less than $500.00, community service of not less than 20 seven-hour days of collecting and picking up litter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries, and imprisonment for not more than 180 days.

(h) *Inability to pay penalties.* If a person convicted of a violation under this section can demonstrate the inability to pay a penalty imposed by the court, that person shall be ordered, in lieu of the penalty, to perform community service of not less than one seven-hour day of collecting and picking up fitter and trash on public roads, streets and highways, and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries per $50.00 of the penalty imposed.

(i) *Community service.* The community service of collecting and picking up litter and trash on public roads, streets and highways and cleaning, cutting grass, removing weeds, litter and trash in public parks, playgrounds and cemeteries performed by such persons shall be performed under the supervision and direction of the director of sanitation or as designated by the court; the director may delegate such authority to the sanitation rangers or other appropriate personnel. The court may elect to substitute two seven-hour days of community service for each one day of imprisonment.

(j) *Exceptions.* No violation of this section has occurred if the dumping, leaving, throwing, discarding, ejection, emission, escape of any glass or metallic objects, trash, refuse, garbage, vehicle parts, construction debris, furniture, used oil, or other solid or hazardous waste is:

(1) Done on property designated by the state or any of its agencies, political subdivisions, units of local government or school districts for the disposal of litter and the litter is disposed of on that property in accordance with the applicable rules and regulations of the state department of environmental quality, does not violate any other statute or city ordinance, and does not create a public health or safety hazard, a public nuisance or a fire hazard;

(2) Done by a person who is the owner or tenant in lawful possession of the property or has first obtained the consent of the owner or tenant in lawful possession, or the act is done under the personal direction of the owner or tenant, and the material is disposed of on that property in accordance with the applicable rules and regulations of the state department of environmental quality, does not violate any other statute or city ordinance, and does not create a public health or safety hazard, a public nuisance, or a fire hazard; and

(3) Placed into a receptacle intended by the owner or tenant in lawful possession of that property for the deposit of the same, and the material is disposed of on that

property in accordance with the applicable rules and regulations of the state department of environmental quality, does not violate any other statute or city ordinance, and does not create a public health or safety hazard, a public nuisance, or a fire hazard.

(k) *Affidavits.* A violation of this section may be prosecuted based upon an affidavit completed on a form provided by the superintendent of police for such purpose, containing the sworn statement of any citizen of the age of majority, deposing that the citizen witnessed a violation of this section, and particularly describing the offender and any vehicle or watercraft involved. Such affidavits shall be preaddressed and returnable to the appropriate enforcement office.

(l) Prosecutions for violations of this section may, at the discretion of the city attorney:

(1) Be civil in nature and be conducted in an administrative hearing pursuant to chapter 6 of this Code; or

(2) Be criminal in nature and conducted in the municipal courts. If a prosecution is civil in nature as described in (1) above, the standard of proof for a finding of guilty shall be by a preponderance of the evidence; community service and incarceration shall not be imposed, and all appeals of a finding of guilty shall be to the civil district court for the Parish of Orleans pursuant to chapter 6 of this Code.

(Code 1956, § 28-18; M.C.S., Ord. No. 17,201, § 1, 9-21-95; Ord. No. 20,261, § 1, 8-2-01; Ord. No. 20,861, § 4, 9-19-02; M.C.S., Ord. No. 22204, § 1, 4-20-06; M.C.S., Ord. No. 22601, § 2, 4-19-07; M.C.S., Ord. No. 28884, § 2, 12-16-21; M.C.S., Ord. No. 29176, § 1, 10-6-22)

State law reference—Administrative adjudication of public health, housing, fire code, environmental and historic district violations, R.S. 13:2575.

Sec. 66-283. Rewards; illegal littering and dumping.

(a) The director of code enforcement shall establish and maintain a reward program to reward private citizens for information that results in citation of any person for illegal littering, as defined in section 66-282(a), illegal dumping, as defined in section 66-282(b) and illegal dumping or littering of specific materials, as defined in section 66-282(c). The amount of any reward shall be $350.00 for any recipient with respect to any one violation and shall be paid out of New Orleans Neighborhood Revitalization Fund as defined in section 70-415.265—70-415.267 of this Code.

(b) The reward shall be paid subject to the following:

(1) A private citizen that provides evidence of the illegal act in progress, accompanied with identifying information of the vehicle if the discard is therefrom, shall be eligible for the reward;

(2) The payment of rewards shall be made only when, and if, funds are available and are not needed for purposes deemed more important by the director;

(3) Any monies awarded pursuant to this section hereunder shall not be paid unless a citation is issued and 30 days have passed.

(Ord. No. 20,453, § 1, 11-15-01; M.C.S., Ord. No. 29176, § 2, 10-6-22)

Editor's note—M.C.S., Ord. No. 17,201, § 2, adopted Sept. 21, 1995, repealed § 66-283, which pertained to littering from motor vehicles and derived from § 28-54 of the 1956 Code.

Subsequently, Ord. No. 20,453, § 1, adopted Nov. 15, 2001, added a new § 66-283, as set forth herein.

Sec. 66-283.5. Illegal dumping; enforcement; penalty; fees.

(a) *Definitions.*

(1) *Dumping* or *illegal dumping* as used in this section shall mean "dumping" or "dumping or littering; specific materials", as defined in sections 66-282(b) and 66-282(c) of this chapter.

(2) *Standard of proof.* The standard of proof necessary to find a person guilty of violating this section shall mean a civil adjudication that a person has violated this section, by a preponderance of the evidence, in an administrative hearing pursuant to

chapter 6 of this Code. In this instance of such a finding of guilt, all appeals shall be to the civil district court for the Parish of Orleans pursuant to chapter 6 of this Code.

(b) All motor vehicles which are used, or intended to be used, to transport, or in any manner to facilitate a violation of 66-282(b) through (c) of this chapter, shall be impounded and subject to forfeiture, except that:

(1) No motor vehicle used by any person as a common carrier in the transaction of business as a common carrier is subject to forfeiture under this section unless it appears that the owner or other person in charge of the conveyance is a consenting party or privy to a violation of this chapter;

(2) No motor vehicle is subject to forfeiture under this section by reason of any act or omission that the owner establishes was committed or omitted by a third party without the owner's knowledge and consent; and

(3) A forfeiture of a motor vehicle encumbered by a bona fide security interest is subject to the interest of the secured party if the secured party neither had knowledge of, nor consented to, the act or omission.

(4) If a motor vehicle is used by a person found guilty of violating this section as a second or subsequent offense, the motor vehicle shall, upon a second finding of guilt, be subject to seizure and forfeiture, notwithstanding the fact that the motor vehicle used in the second offense is not the same motor vehicle used in a previous or first offense;

(5) If a person is found guilty of dumping as a first offense while using a motor vehicle which was used by a different person found guilty of illegal dumping in a previous dumping violation, the motor vehicle shall be subject to forfeiture;

(6) If a person is found guilty of violating this section as a first offense while using a motor vehicle owned, leased, borrowed or otherwise in the custody and control of a company or entity, and a different motor vehicle owned; leased borrowed or otherwise in the custody and control of the same company or entity was previously used in the commission of illegal dumping, the motor vehicle shall be subject to forfeiture.

(7) No motor vehicle is subject to forfeiture under this section if the illegal dumping is of waste weighing less than five pounds.

(c) (1) A motor vehicle impounded under this article is not subject to replevin, recognition of ownership for a thing wrongfully taken, and is deemed to be in the custody of the superintendent of police. When a motor vehicle is seized under this article, the department of police shall (i) place the motor vehicle under seal; (ii) remove the motor vehicle to a place designated by the superintendent; or (iii) remove the motor vehicle to an appropriate location for disposition in accordance with law.

(d) (1) For any motor vehicle impounded under this article, the police department shall issue the operator a notice of violation of the provisions of this article and, within three days of issuing the notice of violation, shall provide a copy of the notice to the towing or storage company and to the department of safety and permits. The notice of violation serves as notice of administrative hearings rights.

(2) Upon request, the operator of the vehicle or vehicle owner may, within three business days from the date that the notice of violation was issued, present to the director of the department of safety and permits, or his or her designee, proof that the vehicle is exempt from seizure and forfeiture because it is subject to one of the exceptions enumerated in paragraph (b) of this section, at an administrative hearing held for that purpose. The owner of the vehicle may request, and the director of the department of safety and permits, or his or her designee, may grant, an extension of time beyond the

three days within which a hearing must be held. Upon its own motion, where appropriate, the director of the department of safety and permits, or his or her designee, may extend the hearing date until after the disposition of any criminal violations for illegal dumping. If the owner fails to provide proof of the fact that the vehicle is not subject to seizure and forfeiture at the time the notice of violation was issued, the director of the department of safety and permits, or his or her designee, shall coordinate with the appropriate agency to institute forfeiture proceedings.

(3) The administrative hearing shall be limited to a review of the issue of whether the vehicle was engaged in illegal dumping, as defined in section 66-282(b) through (c), at the time of the alleged violation. The report and/or affidavit of the investigating law enforcement officer shall be prima facie proof of the violation, and the owner or operator shall have the burden of proving that the vehicle was not engaged in illegal dumping at the time of the violation. The owner or operator may present the testimony of any witnesses at the hearing, including the officer issuing the violation, to establish that the owner or operator was not in violation with the law at the time of the alleged violation.

Any action for judicial review of the decision from the administrative hearing shall be in the same manner and under the same conditions as provided in chapter 6, administrative procedures. No court shall issue an injunction, stay or other process preventing the enforcement of the sanctions required by this part pending the hearing provided for in this part, except as provided by R.S. 49:964.

(4) Notwithstanding any other provision of law to the contrary, a motor vehicle may not be released from impoundment until the superintendent of police, or their designee, receives written proof that all requirements of this section are met.

(5) If a passenger in the motor vehicle is under the age of 12, the driver of or a passenger in the motor vehicle is handicapped, or when considering the location and the time of day of the stop, the law enforcement officer believes a threat to the public safety or to the occupants in the motor vehicle is possible, the officer may transport the persons from the motor vehicle to an appropriate location or obtain commercial transportation to be paid for by the persons needing transportation.

(6) The towing of vehicles shall utilize the police department call allocation list established in chapter 162. All towing, storage and other such fees contained in this section shall be consistent with the current schedule of prescribed rates and requirements for non-consensual towing and recovery services issued by the Louisiana Public Service Commission.

(e) In the case, where the driver is a minor child, the owner of the vehicle shall be responsible under this section. If the owner of the vehicle is the minor child, the parents of the minor child shall be jointly subject to the provisions of this section along with the minor child, unless the minor has been adjudicated emancipated, or is in the sole custody of another or only one parent under the law. If the minor is in the sole custody of another or only one parent under the law, the person or parent in whose sole custody the child has been placed will be jointly responsible with the minor child under this section.

(f) Whenever any person who has an interest in a forfeited motor vehicle files with the director of the department of safety and permits, or his or her designee, either before or after the sale or disposition of the motor vehicle, a petition for remission or mitigation of the forfeiture, the director of the department of safety and permits, or his or her designee, shall remit or mitigate the forfeiture upon the terms and conditions as the director of the department of safety and permits,

or his or her designee deems reasonable if the director of the department of safety and permits, or his or her designee finds that:

(1) The forfeiture was incurred without willful negligence or without any intention on the part of the petitioner to violate the law; or

(2) Mitigating circumstances justify the remission or mitigation of the forfeiture.

(g) Any property contained in or dumped by the motor vehicle at the time of seizure may be held for evidentiary purposes until the forfeiture proceeding is concluded, or the law department determines that the property is no longer needed for evidentiary purposes. Any property that is not needed for evidentiary purposes may be returned to the person who has a right of claim to the property. The department of police may dispose of any solid waste contained in the motor vehicle at the time of seizure and collect up to three times the cost and expense incurred for the proper disposal.

(h) Any adult residing in this state who has pled guilty or has been found guilty of illegal dumping pursuant to sections 66-282(b) through (c) of this chapter shall, within 21 days of such plea or finding, cause to be published on two separate days within the 21-day period provided for herein, without cost to the city, in the official journal of the City of New Orleans and in the official journal of the parish in which the person resides, notice of his name, home address, company name, company logo or trademark, and company address. The notice provided to the official journal or other designated newspaper pursuant to this subparagraph shall also include a recent photograph of the offender, or a clear photocopy of a recent photograph of the offender.

(i) In addition to the penalties provided for in sections 66-282(f) and 66-282(g):

(1) Any person who is found guilty of violating this section as a first offense, shall be punished by having the motor vehicle used in the commission of the offense seized and/or forfeited. The motor vehicle may be released to the person upon the payment and satisfaction of any applicable fines and/or penalties pursuant to section 66-282 of this chapter, towing and storage fees, and hearing and/or proceeding cost.

(2) Any person who is found guilty of violating this section as a second or subsequent offense, shall, upon a finding of guilt be punished by having their vehicle seized and forfeited.

(3) Any person who is found guilty of violating this section as a second or subsequent offense, shall, upon a finding of guilt be punished by having their vehicle seized and forfeited. In addition, such person shall be responsible for the payment and satisfaction of any applicable fines and/or penalties pursuant to section 66-282 of this chapter, towing and storage fees, waste disposal and cleanup fees, and hearing and/or processing costs.

(j) The officers of the department of police or such officers as are assigned by the superintendent of police to do so shall enforce all ordinances of the city and all of the state litter and illegal dumping laws applicable to litter and illegal dumping in the city.

(Ord. No. 20,861, § 1, 9-19-02; M.C.S., Ord. No. 29315, § 1, 2-2-23; M.C.S., Ord. No. 30653, § 1, 5-7-26, eff. 5-31-26)

Editor's note—Ord. No. 20,861, § 1, adopted September 19, 2002, enacted provisions intended for use as § 66-283a. To preserve the style of the Code, these provisions were included herein as § 66-283.5, at the discretion of the editor.

Sec. 66-284. Reserved.

Editor's note—M.C.S., Ord. No. 24470, § 1, adopted June 16, 2011, repealed § 66-284, which pertained to littering, unlawful posting or placement of advertisements, posters, handbills, or signs on public property and derived from Code 1956, § 18-18.01.

Sec. 66-285. Dumping refuse, etc., in yards, etc.

No person shall keep, throw or deposit any offal, filth, foul or offensive matter, corrupt or putrid matter, shells, hay, straw, kitchen stuff, paper, cloth, vegetable matter or any substance whatsoever that may be offensive to smell or injurious to health, or liable to become so, in any

yard, lot, space, building, gutter, drain or canal or shall permit the same to be done or to remain. (Code 1956, § 28-2)

Sec. 66-286. Reserved.

Editor's note—Section 2, M.C.S., Ord. No. 17,201, adopted Sept. 21, 1995, repealed § 66-286, relative to illegal dumping, which derived from § 28-55 of the 1956 Code.

Sec. 66-287. Sweeping from premises and sidewalks to be taken up.

The owner, his agent or occupant, of all premises shall be responsible to take up or cause to be taken up all aggregate sweeping of garbage, trash, litter, grass cuttings, leaves and all other waste materials from the premises, sidewalks and abutting property including the space between the property line and the curbline in front, extending 1½ feet from the curbline into the street or roadway and in the rear and alongside thereof of such premises owned or occupied so that such sweepings shall not under any circumstances reach the drains, gutters, streets or roadways. The owner, his agent, or occupant shall be responsible to have all sweepings placed into containers sufficient to prevent such sweeping from being scattered by the wind and placed out on the days designated for collection.
(Code 1956, § 28-19)

Sec. 66-287.1. Use of leaf blowers to transfer or direct debris to public drains prohibited.

(1) *Definitions.*

Leaf blower. A mechanical, battery-operated or gasoline-powered device which projects pressurized air forward to cause movement of leaves, grass or other debris commonly associated with grass cutting, lawn care, gardening or yard maintenance activities.

Public drain. Includes catch basins or gutters located parallel to public rights-of-way, open segments of city subsurface drainage conduits, flood control and water path canals or drains located on public property and incorporated into the public infrastructure for wastewater management or scipening.

(2) *Use of leaf blower to impede or restrict drainage or water flow prohibited.* Use of leaf blower for private or commercial use in any manner which causes or results in the transfer, movement or directing of grass, leaves, yard debris, debris derived from yard maintenance, lawn care or any activities whereby debris is accumulated and projected to public drains or results in impeded water flow of public drains or restricts the public designated purpose of such drains is prohibited by law. Violators shall be subject to citation or administrative adjudication by duly authorized code enforcement officers or duly authorized law enforcement officers.
(M.C.S, Ord. No. 21912, § 1, 4-7-05)

Sec. 66-288. Scavenging.

(a) *Definitions.* In this section, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

Authorized recycling contractor shall mean a person, firm, corporation or other entity authorized under, and by virtue of, a contract with the city to collect recyclable waste within the city.

Designated recycling collection location shall mean the place designated in the contract between the city and an authorized recycling contractor at which the authorized recycling contractor has contracted to collect recyclable waste materials.

Organized scavenging shall mean scavenging as defined in this section with the assistance or use of a car, van, truck, bus or other such motorized vehicle.

Recyclable waste materials shall mean discarded materials such as, but not limited to, plastic, glass, metal, and paper, which are separated from other garbage or refuse for the purpose of recycling.

Scavenging shall mean the unauthorized removal or collection of any item placed for recyclable collection including, but not limited to, newspaper, aluminum, tin, glass, or plastic, placed in or adjacent to curbside recycling containers.

(b) *Ownership of recyclable waste materials.* Upon the placement of recyclable waste material in the recycling bin provided by the city at the designated recycling location, in accordance with the designated time schedule, any recyclable waste material shall become the property of the authorized recycling contractor.

(c) *Offense.*

(1) *Theft or unauthorized use of recycling bins.* The theft, as defined in section 54-186 of this Code, or unauthorized use of recycling bins is prohibited. Each such theft or unauthorized use shall constitute a separate and distinct offense. Any person, firm, or corporation violating any of the provisions of this section shall, upon conviction, be subject to a fine of not less than $50.00 nor more than $500.00 for each offense.

(2) *Scavenging.* It shall be unlawful for any person, firm, or corporation not authorized by the city and not under contract with the owner or occupant to remove or collect any item placed for recyclable collection including, but not limited to, newspaper, aluminum, tin, glass, or plastic placed in or adjacent to curbside recycling containers. Each such unauthorized collection shall constitute a separate and distinct offense. Any person, firm, or corporation violating any of the provisions of this section shall, upon conviction, be subject to a fine of not less than $10.00 nor more than $500.00 for each offense.

(3) *Organized scavenging.* It shall be unlawful for any person, firm, or corporation not authorized by the city and not under contract with the owner or occupant to remove or collect, with the assistance or use of a car, van, truck, bus, or other such motorized vehicle or watercraft, any item placed for recyclable collection including, but not limited to, newspaper, aluminum, tin, glass, or plastic placed in or adjacent to curbside recycling containers. Each such unauthorized collection shall constitute a separate and distinct offense. Any person, firm, or corporation violating any of the provisions of this section shall, upon conviction, be subject to a fine of not less than $250.00 nor more than $500.00 and community service of not less than one seven-hour day of performing solid waste remediation for each offense.

(d) *Inability to pay penalties.* If a person convicted of a violation under this section can demonstrate the inability to pay a penalty imposed by the court, the court shall have the discretion to order, in lieu of the penalty, the performance of community service of not less than one seven-hour day of solid waste remediation per $100.00 of the penalty imposed.

(e) *Community service.* The community service of solid waste remediation performed by such persons shall be performed under the supervision and direction of the director of sanitation; the director may delegate such authority to the sanitation rangers or other appropriate personnel.

(f) *Presumption of violation.* A person may be found in violation of this section, although the commission of the offense did not occur in the presence of a law enforcement officer, if the evidence presented indicates that the person has committed the offense.

(g) *Affidavits.* A violation of this section may be based upon an affidavit completed on a form provided by the superintendent of police for such purpose, containing the sworn statement of any citizen of the age of majority, deposing that the citizen witnessed a violation of this section, and particularly describing the offender and any vehicle or watercraft involved. Such affidavits shall be preaddressed and returnable to the appropriate enforcement office.

(h) *Sale or donation of recyclables.* Nothing herein shall be deemed to prohibit any person, firm, or corporation from selling or donating recyclable materials when such materials are not put out for collection by the authorized recycling contractor.

(i) *Enforcement authority.* When a peace officer or sanitation ranger has reasonable grounds to believe a person has committed an offense of littering or dumping, or otherwise violated a provision of this section, he shall issue a summons to the offender in accordance with law, commanding the offender to appear and answer the charge.
(M.C.S., Ord. No. 17,282, § 1, 11-16-95; M.C.S., Ord. No. 28884, § 2, 12-16-21)

Sec. 66-289. Receptacle(s) for smoking litter.

all commercial business owners or operators located within the downtown development district, as defined in section 146-193 whose property is 20 percent or more of the linear footage of the block on which the property is located, or who vend food, liquor, or cigarettes, shall provide a receptacle and/or receptacles to contain smoking litter at each public entrance of their commercial business establishment in an effort to encourage responsible disposal of smoking litter. The smoking litter receptacles shall be separate and distinct from those garbage containers described in sections 138-40 through 138-42. The smoking litter receptacles must be fire suppressing receptacles that are approved by the fire prevention division of the New Orleans Fire Department and serve to house smoking litter, including tobacco ashes, cigar and cigarette butts. Additionally, all commercial business owners and/or operators located within the downtown development district shall also be responsible for the cleaning and/or maintenance of said smoking litter receptacles.
(M.C.S., Ord. No. 22661, § 1, 6-7-07)

Sec. 66-290. Penalties.

(a) Whoever fails to adhere to the provisions of section 66-289 shall be fined not more than $500.00 per violation, from the time of notice, or imprisonment for not more than six months, or sentenced to both such fine and imprisonment.

(b) In addition to any other fines or penalties provided for herein, the director of the downtown development district is hereby authorized to seek any and all legal remedies against such owners who fail to comply with the provisions of section 66-289, including injunctive relief.
(M.C.S., Ord. No. 22661, § 1, 6-7-07)

Sec. 66-291. Administrative hearing.

Violations of this chapter occurring within the downtown development district may be adjudicated by the administrative adjudication bureau of public housing and environmental violations. Said hearing shall be conducted by a hearing officer of the administrative adjudication bureau of public housing and environmental violations and shall be subject to the provisions of chapter 6 of the Code of the City of New Orleans.
(M.C.S., Ord. No. 22661, § 1, 6-7-07)

Sec. 66-292. Release of electrically conductive balloons prohibited.

(a) It shall be unlawful for any person, while outdoors, to release a balloon made of, or coated in, foil, metal, or any other electrically conductive material and filled with helium or any gas lighter than air.

(b) Violations of this section shall be punishable in accordance with section 1-13.

(c) The city shall post signage at its recreation facilities, cemeteries and parks informing the public of the prohibitions and penalties herein.
(M.C.S., Ord. No. 30147, § 1, 11-21-24)

Secs. 66-293—66-311. Reserved.

DIVISION 3. WEEDS, GRAFFITI, AND HAZARDOUS ACCUMULATIONS*

Sec. 66-312. Duty to maintain plant growth, remove debris and graffiti.

(a) It shall be the duty of every owner(s) of real estate within the city, or in case of a property whose primary purpose is commercial,

*__Editor's note—__M.C.S., Ord. No. 25704, § 1, adopted Feb. 20, 2014, amended Div. 3 in its entirety to read as herein set out. Former Div. 3, §§ 66-312—66-322, pertained to similar subject matter, and derived from Code 1956, §§ 28-1, 28-30—28-37; M.C.S., Ord. No. 17,522, § 1, adopted May 2, 1996; M.C.S., Ord. No. 23046, § 3, adopted March 20, 2008.

the duty of the owner(s), occupant(s), or lessee(s) to at all times cut and mow the grass, weeds, or other deleterious or unhealthful growths on their respective property and in the space between the property line and the curbline in front, rear and alongside thereof, so that neither grass nor weeds shall rise above the height of ten inches, and shall cause the removal of any cuttings or mowings. For purposes of this chapter, the term "weeds" shall not include cultivated flowers, gardens, or cover crops.

(b) It shall be the duty of every owner of real estate within the city, or in case of a property whose primary purpose is commercial, the duty of the owner(s), occupant(s), or lessee(s) to at all times remove any trash, debris, refuse, or discarded matter from their respective property and in the space between the property line and the curbline in front, rear and alongside thereof, and in accordance with the applicable collection and disposal provisions of chapter 138 of this Code.

(c) It shall be the duty of every owner(s) of real estate within the city, or in case of a property whose primary purpose is commercial, the duty of the owner(s), occupant(s), or lessee(s) to at all times destroy and remove poison oak, poison ivy, poison sumac, or similar noxious plants or growths from their respective property. For purposes of the division, destroy shall mean the complete killing of the plants or growths above the surface of the ground by the use of chemicals, cutting, tillage or any combination of those methods that will effectively prevent the growth from maturing and spreading.

(d) It shall be the duty of every owner(s) of real estate within the city, or in case of a property whose primary purpose is commercial, the owner(s), occupant(s), or lessee(s) to at all times remove any graffiti from their respective property.

(e) It shall be the duty of every owner(s) of real estate within the city, or in case of a property whose primary purpose is commercial, the owner(s), occupant(s), or lessee(s) to at all times refrain from storing or otherwise accumulating in or on the property objects or substances of a nature or in a quantity reasonably likely to create a hazard to the safety or health to the owner, occupant or lessee of the same, contiguous, or neighboring property.

(f) Any person who violates subsections (a)—(e) shall pay up to a $1,000.00 fine for each violation.

(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 28555, § 1, 12-3-20; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29820, § 1, 3-7-24; M.C.S., Ord. No. 30481, § 2, 10-9-25)

Sec. 66-313. Enforcement authority and schedule of fines.

(a) The administrative office or its authorized designee, shall have the authority and ability to enforce the duties and provisions contained in section 66-312, in accordance with the procedures contained in this division.

(b) The following is the schedule of fines for each violation of section 66-312 which may be charged an alleged violator via a nuisance citation as provided in section 66-258, and paid to the city or such other agent as may be designated by the chief administrative officer:

Initial Fine	*After 30 Days*	*After 60 Days*
$75.00	$150.00	$200.00

(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29820, § 1, 3-7-24)

Sec. 66-314. Notice.

(a) Any owner(s) of real estate, or in case of a property whose primary purpose is commercial, the owner(s), occupant(s), or lessee(s) whose property is in violation of any provision of section 66-312 shall receive a correction notice from the administrative office or its authorized designee.

M.C.S., Ord. No. 29189, § 3, adopted Oct. 6, 2022, amended the title of Div. 3 to read as herein set out. The former Div. 3 was entitled "Weeds."

Cross reference—Administration of the regulations regarding parks and parkways, § 106-61 et seq.

State law reference—Authority to adopt nuisance abatement ordinance, R.S. 33:4752.

(b) The correction notice shall:

(1) Be in writing;

(2) Provide the date of issuance;

(3) Provide the contact information for the administrative office or its authorized designee;

(4) Articulate the violations of section 66-312;

(5) Provide that the owner(s), or in case of a property whose primary purpose is commercial, the owner(s), occupant(s), or lessee(s) is afforded five days, inclusive of weekends and holidays, from the date of mailing to perform or cause the performance of any and all corrective abatement action(s).

(6) Provide that if corrective abatement action(s) are not completed within five days, inclusive of weekends and holidays, the administrative office or its authorized designee will cause the corrective abatement action(s) at the owner(s), or in case of a property whose primary purpose is commercial, the owner's(s'), occupant's(s'), or lessee's(s') expense, and that continued corrective abatement action(s) may also be taken at their expense as provided in section 66-315;

(7) Provide the estimated minimum cost(s) of the corrective abatement action(s) and provide that these costs could increase;

(8) Provide the municipal address of the property in violation;

(9) Provide a photograph of the violation(s) of section 66-312;

(10) Provide that an administrative hearing pursuant to chapter 6, article II, may be requested to contest the violation(s) of section 66-312 or the cost(s) relative thereto, by contacting the administrative office or its authorized designee in writing prior to the expiration of the five days.

(c) Notice shall be given by advertisement in the official journal of the city for two consecutive days and mailed by certified or registered U.S. Mail to the owner(s) at the address listed in the assessor's office of the parish.

(d) The failure of any owner(s) of real estate to comply with the requirements of such notice within five days after mailing shall be deemed a violation of section 66-312 and subject to fines per section 66-312(f). Any such failure shall permit the city to perform any and all corrective abatement action(s) with all cost(s) thereto being borne by the owner(s) without requiring further notification.
(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 28555, § 1, 12-3-20; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29820, § 1, 3-7-24)

Sec. 66-315. Action after non-compliance with notice.

(a) After the expiration of the five days affording an owner(s) an opportunity to comply with the duties and requirements of section 66-312, the city or designee thereof may perform any and all corrective abatement action(s) without further notification.

(b) Any notice returned to the city by the postal service because of its inability to make delivery if it was properly addressed to the last-known address of such owner(s) as provided in the assessor's office of the parish may still abate.

(c) Pursuant to this division, the city or its designee thereof may undertake continued corrective abatement action(s) on a property on a monthly basis without re-noticing, if the property owner(s) has been notified pursuant to section 66-314 at any time during the immediately preceding 24 months, and the owner(s) failed to abate or cause corrective abatement action(s) as required in the initial notice. And after the city or its designee has undertaken such corrective abatement action under section 66-312(a) three times consecutively during such 12-month period, the owner(s) may be required to engage in and provide evidence of valid and current contract for lawn-care services for the property.

(d) Prior to undertaking continued corrective abatement action, the city or its designee must photograph the property to reasonably identify its unsafe or unsanitary condition and to justify the necessity for any and all corrective abatement action.

(e) The city or any designee thereof shall not be liable for trespass or any damages that may occur on or to a property while performing the required corrective abatement action(s).

(f) Any corrective abatement action(s) performed by the city or any designee thereof shall not legally bring a property into compliance with this division. The remedies established in this division are independent, nonexclusive and may be pursued in addition to any other available remedy as provided by law.
(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 28555, § 1, 12-3-20; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29820, § 1, 3-7-24)

Sec. 66-316. Owner to be billed for work done by city.

(1) After corrective abatement action(s) by the city or designee thereof, the city shall send an invoice for all fines and cost of the work to the owner(s). The owner(s) shall have one month from the date of mailing to pay all costs as provided therein. If the cost or expense thereof has not been paid within one month, the city shall furnish the owner(s), by registered or certified mail or by domiciliary or personal service, a written statement showing the outstanding cost or expense incurred for the work. If the said statement is not paid within one month thereafter, the amount thereof shall be included in and form part of the taxes due by the owner(s) of said property and when collected shall be credited to the general fund of the city.

(2) The tax collector shall maintain a record of such charges prior to the filing of the tax rolls, which record shall be open to inspection at all times and which shall constitute legal notice to the purchasers of the property, or parties lending money thereon, of the assessment.

(3) Any monies collected pursuant to this chapter shall first satisfy all outstanding municipal liens recorded against an immovable property and only when all outstanding municipal liens are satisfied in full shall monies be applied towards an immovable property's ad valorem taxes.
(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 28555, § 1, 12-3-20; M.C.S., Ord. No. 29189, § 3, 10-6-22; M.C.S., Ord. No. 29820, § 1, 3-7-24)

Sec. 66-317. Concurrent authority.

Nothing contained herein shall preclude the New Orleans Police Department from issuing a summons to an owner of real estate whose property is in violation of section 66-312. Municipal Court of New Orleans shall adjudge any summons issued for violations of section 66-312.
(M.C.S., Ord. No. 25704, § 1, 2-20-14; M.C.S., Ord. No. 28555, § 1, 12-3-20; M.C.S., Ord. No. 29820, § 1, 3-7-24)

Editor's note—M.C.S., Ord. No. 28555, § 1, adopted Dec. 3, 2020, repealed § 66-317, which pertained to sworn statement of costs to be filed in mortgage and conveyance office; effect thereof and derived from M.C.S., Ord. No. 25704, § 1, adopted Feb. 20, 2014. Additionally, said ordinance renumbered § 66-318 to read as § 66-317.

Secs. 66-318—66-350. Reserved.

DIVISION 4. ABANDONED PROPERTY GENERALLY*

Sec. 66-351. Refrigerators, iceboxes, etc.

(a) It shall be unlawful for any person to leave outside of any building or dwelling in a place accessible to children, any abandoned, unattended or discarded icebox, refrigerator, or any other container of any kind which has an airtight door or doors, or which may not be released for opening from the inside of such icebox, refrigerator or container.

*__Cross reference—__Abandoned vehicles on streets, § 66-104.

(b) It shall be unlawful for any person to leave outside of any building or dwelling in a place accessible to children any abandoned, unattended or discarded icebox, refrigerator, or any other container of any kind which is airtight and has a snap lock or other device thereon without first removing such snap lock or locks, or door or doors, from such icebox, refrigerators or containers.
(Code 1956, § 28-2.2)

State law references—Abandoned property, R.S. 33:4876; abandoning iceboxes; penalty, R.S. 14:324.

Secs. 66-352—66-400. Reserved.

ARTICLE VI. BOOTING OF MOTOR VEHICLES ON PRIVATE PROPERTY AND PRIVATE PARKING AREA*

Sec. 66-401. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Boot or booting shall mean the act of placing on a parked motor vehicle a mechanical device that is designed to be attached to the wheel or tire or other part of such vehicle so as to prohibit its usual manner of movement.

Booting service business means the business by an individual, partnership, corporation, association, firm or other business entity of providing booting service as part of its operations.

City shall mean the City of New Orleans.

Motor vehicle shall mean an automobile, motorcycle, truck, trailer, semitrailer, or any truck, tractor and semitrailer combination, or any other vehicle operated on the streets of this city, used to transport persons or property and propelled by power other than muscular power.

Private parking area shall mean real estate, including all improvements, not owned or controlled by the city, State of Louisiana or United States of America that charges a fee for parking a motor vehicle. Private parking area shall include real estate leased by a governmental agency to a non-governmental entity.

Private property shall mean real estate, including all improvements, not owned or controlled by the city, State of Louisiana or United States of America near or contiguous: (1) to premises having one or more stores or establishments which is used for the parking of motor vehicles of customers or patrons or anyone who frequents such stores and business establishments, or (2) premises having one or more multiple dwellings which is used for the parking of motor vehicles for the occupants and guests of resident. Private property shall include real estate leased by a governmental agency to a non-governmental entity.

Vehicle owner shall mean the actual owner of the vehicle booted or any driver of the vehicle who reasonably appears to have authority to operate the vehicle.
(Ord. No. 19,838, § 1, 10-5-00)

Sec. 66-402. Signage requirements.

(a) No motor vehicle shall be booted on private property or a private parking area unless a sufficient number of signs are conspicuously posted and maintained by the owner of the property in the form, manner and location prescribed by the department of safety and permits and this article. No charge for the release of a motor vehicle that has been booted in excess of that which is contained in the signs required by this article shall be imposed. Such signs shall contain such information as the director of safety and permits shall prescribe in such rule including, but not limited to, the word "WARNING" and the booting fee shall be in letters not less than three inches high in the color red, and the following:

*__Editor's note—__Ord. No. 19,838, § 1, adopted October 5, 2000, enacted provisions intended for use herein as Art. VI, §§ 66-400—66-406. To preserve the style of this Code and at the editor's discretion, these provisions were set out herein as §§ 66-401—66-407. Subsequently, Ord. No. 19,860, § 1, adopted October 19, 2000, added a provision intended for use as § 66-407; this provision was accordingly renumbered § 66-408.

"CUSTOMER PARKING ONLY, ALL OTHERS WILL BE BOOTED, BOOTING FEE $121.00"

or

"PARKING FOR RESIDENTS AND GUESTS ONLY, ALL OTHERS WILL BE BOOTED, BOOTING FEE $121.00"

and the name of the booting service business with its business telephone to call to have the boot removed shall be in letters not less than one and one-half inches high in the color black, except the fee amount. The signs shall be rectangular and have a yellow background color, and the sign and lettering shall be made of light reflective material to assist in reading during evening hours.

(b) No motor vehicle shall be booted unless a sufficient number of signs are conspicuously posted and maintained by the owner of the property as described in (a) above as follows:

(1) One sign shall be posted on private property at each entrance to the parking area at each level of a multi-level parking garage and by the entrance door to each store or establishment facing the parking area.

(2) Additional signs shall be posted in the parking area and at each level of a multi-level parking garage as follows:

1—20 parking spaces	2 signs
21—40 parking spaces	4 signs
41—60 parking spaces	6 signs
61—80 parking spaces	8 signs
81 or more parking spaces	One additional sign for each additional ten parking spaces.

(3) The director of the department of safety and permits may require additional signs to be located on the premises.

(4) The department of safety and permits shall approve the signs.

(5) No sign shall be further than 50 feet and plainly visible from any area of the parking area in which vehicles are subject to booting.

(c) The city may suspend or revoke any and all licenses or permits assigned to the business(es) served by the private property or the private parking area business that does not meet one or more of the requirements of this article. The director of the department of safety and permits or the director of the department that issues the permit or license is authorized to suspend the permit and license from one week to one year, or revoke the permit or license. An entity whose permit or license has been revoked shall not apply for a new permit or license for a period of one year.
(Ord. No. 19,838, § 1, 10-5-00; M.C.S., Ord. No. 30389, § 1, 7-10-25)

Sec. 66-403. Booting service business requirements.

(a) No motor vehicle shall be booted unless: (1) the booting service business has a written contract with the owner, lessee, managing agent or other person in control of the business that is served by the parking on which the motor vehicle is parked, and (2) the said owner, lessee, managing agent or other person in control of the business issues to patrons a time and date stamped receipt or hand-written acknowledgment for good or services provided by said business and has a sign in the establishment offering such a receipt or acknowledgment, or (3) said dwelling owner or manager provides authorized tenants or visitors parking passes or other proof indicating the authority to park. Such contract shall provide that such owner, lessee, managing agent or other person in control of the business or establishment that is served by the parking shall also be liable for any violation of the booting service business or any provisions of this article.

(b) The owner, lessee, managing agent or other person in control of the business under contract with the booting service business shall be the individual to determine that the motor vehicle is unauthorized to park and subject to be

booted. A representative of the business being served by the parking shall make the determination of the motor vehicle to be booted during the hours the store or establishment is open for operations, not the booting service business. The booting service business shall not boot any vehicle during nonbusiness hours of the store, business or establishment associated with the parking.

(c) Immediately after the motor vehicle is booted, the booting service business shall affix at the rear-most portion of the window adjacent to the driver's seat of such vehicle, a sticker measuring eight and one-half inches by 11 inches containing a warning that any attempt to move the vehicle may result in damage to the vehicle, that the booting service business may file suit against the motorist for any damage to the booting device, and stating the time and date the vehicle was booted, the name of the individual who installed the boot, the fee to remove the boot, the time frame by which the boot shall be released once a call is made and the consequences to the booting service business for not releasing the boot within the specified times, and the name, business address and the business telephone number which will facilitate the dispatch of personnel responsible for removing the boot, and the name of the business being served in which the violation took place, the name of the individual of the business or establishment who authorized the booting or the motor vehicle, and the name, phone number and time during which an appeal can be made to the city within ten calendar days of this action. The booting service business shall not remove the sticker, unless it is requested by the vehicle owner or operator.

(d) At all times, seven days a week, 24 hours a day, the booting service business shall release the booted motor vehicle within 30 minutes of receiving a request for such vehicle's release; provided, however, that payment of any charges for booting, and any parking charges, if applicable, is made at or prior to the time of such vehicle's release. The maximum charge for removing the boot is $121.00. No extra charge shall be made for any check or credit card payment. The fee to release the boot shall be reduced by 50 percent (a maximum fee of $60.50) should the booting service business not arrive within 30 minutes of receiving a request for such vehicle's release. There shall be no charge to release the boot should the booting service business not arrive within 60 minutes of receiving a request for such vehicle's release. The booting service business shall maintain a time-stamp method of recording all calls pertaining to release of vehicles. These records shall be maintained a minimum of 90 days, and a copy of any particular call or all calls within a designated period shall be made available within three business days at no cost to the city or its representative.

(e) The booting service shall provide an office to receive the payments to release the boots that is open seven days a week, 24 hours a day located in the city.

(f) The booting service business shall provide a receipt to the individual paying the booting charges at the time such charges are paid. Payment may be made at the location where the motor vehicle is booted. Such receipt shall state all charges, the time and date the boot was placed; who installed the boot; the time and date the boot was released or is scheduled to be released, if payment made at the office, the person releasing the boot; the specific possible reductions in the booting fee (50 percent or free) due to time limitations in removing the boot; the name of the individual who determined that the motor vehicle was not authorized to park and designated it for booting, the name of the business or establishment and its address; the identification number of the boot; the license plate number of the motor vehicle booted; the name, business address and telephone number of the booting service, the location where payment was made, the type of payment (cash, check or credit card) made, and the time payment was made; and the information regarding the right to appeal or complaints regarding this action which can be made to the city within ten calendar days, with the telephone number to appeal the action.

(g) No booting fee shall be charged to a vehicle owner or operator who can produce and has possession of a timed and dated receipt or handwritten acknowledgment to indicate that goods

or services were purchased at a store or establishment associated with the parking area with tow hours prior to the placement of the boot.

(h) The boot shall be the color yellow, and shall have the name and telephone number to have the boot removed painted in no less than one inch black letters of the service business on the boot. Each boot shall have its own specific identification number printed in such a fashion that can be seen when the boot is placed on the motor vehicle.

(i) The person placing or removing the boot must wear a company uniform and a picture identification badge displaying the name of the booting service business, the name of the person and the person's employee number. Both the uniform and badge must clearly indicate the company employing the person.

(j) All vehicles used to place or remove a boot shall permanently display on each front and insert door in no less than two inch lettering, the business name, address and telephone number. Magnetic signs are not permitted. The booting service business shall notify the director of the department of safety and permits by certified mail within three days of any change of address.

(k) The booting service business shall charge only one booting fee for any motor vehicle combination. The booting service business may charge one fee for a trailer separated from its means of transportation.

(l) The booting service business shall not boot any motor vehicle displaying a tax exempt license plate, any marked emergency motor vehicle or any motor vehicle with one or more occupants.

(m) In the event the booted motor vehicle is not claimed within 24 hours, the person who authorized the boot to be placed shall notify the department of police and the state police with the vehicle's description and location. If the vehicle has been reported stolen, the boot shall be removed at no cost. If the vehicle has not been reported stolen, the person who authorized the boot to be placed shall have the boot removed at no cost and have a towing company registered with the department of police remove the vehicle before the end of the 36-hour period the boot was first placed. The towing company shall follow all regulations established by the city and state regarding such a procedure. There shall be no charge for removal of the boot to the towing company or the motor vehicle owner or operator.

(n) There shall be no payment of any kind by the booting service business to anyone associated with the business, store or establishment being provided booting service. Any such payment shall continue a violation of this article, and all licenses and permits of both parties shall be revoked for a minimum of one year.
(Ord. No. 19,838, § 1, 10-5-00; M.C.S., Ord. No. 30389, § 1, 7-10-25; M.C.S., Ord. No. 30653, § 1, 5-7-26, eff. 5-31-26)

Sec. 66-404. Booting on private parking area.

(a) No motor vehicle shall be booted on private parking area unless the signage requirements contained in section 66-402 and in section 66-403 are followed by the private parking area owner.

(b) In addition to any parking fees owed, the operator of the parking area or the booting service business shall not charge more than the maximum fee contained in section 66-402.

(c) The private parking operator may use a booting service business that meets all applicable requirements contained in this article.
(Ord. No. 19,838, § 1, 10-5-00)

Sec. 66-405. Booting service business licensed to operate in the city.

(a) A booting service business licensed to operate in the city shall: No booting service business shall operate within the city, without first being licensed by the department of safety and permits, and any other applicable city departments.

(1) Use a unique name which shall be clearly distinguishable from any other booting service business.

(2) Maintain a business office in the city. Provide an office in the city open 24 hours a day, seven days a week to receive payment to remove a boot.

(3) Provide fingerprints of each owner, general partner, officer, principal director and stockholder owning ten percent or more of the business. Each person shall state if he has been charged or convicted of any crime or city code violation within the past ten years preceding the date of application, including the specific charge, the status, the date of conviction, place of conviction and sentence for such violation. Each applicant shall provide the fingerprints required by the department of police and pay all necessary fees. The department of police shall provide to the director of the department of safety and permits all available information regarding any charges or arrests it may possess regarding any applicant or employees of the booting service business. The director of the department of safety and permits shall have the right to reject the application based on any possible previous violations. The applicant may appeal the rejection to the city council within ten calendar days of such rejection. The director of the department of safety and permits shall immediately revoke the license for any false, incomplete or inaccurate information provided the city.

(4) Provide fingerprints of all employees placing or removing boots. Said employees shall be free from addiction to alcohol or any narcotic or drug, not have been convicted of any felony or driving while intoxicated, and be at least 18 years old.

(5) Follow all of the requirements contained in section 66-403.

(6) Possess a minimum $150,000.00 surety bond acceptable to the director of the department of safety and permits.

(7) Each applicant for a booting service business license under this article shall at all times keep in full force and effect a public liability insurance policy written by an insurance company authorized to do business in the State of Louisiana in the following amounts: $250,000.00 for injury or death to one person, $500,000.00 for each injury or death from each occurrence, and $100,000.00 for property damage. Proof of the required insurance must be submitted to the department of safety and permits.

(b) The superintendent of police may authorize paid details to only those booting service businesses having all of the necessary city licenses and permits, and meeting all of the requirements contained in this article.

(c) Records shall be kept a minimum of five years, and shall be made available to city inspectors upon request during normal working hours at the booting service business or at the offices of the city.

(d) Any booting service business that violates any provisions of this section as determined by the director of the department of safety and permits, unless otherwise stated, may have its license to operate immediately revoked or suspended for up to one year, and may not reapply for a new license for at lease one year from said revocation or suspension. No person listed in subsection (a)(3) above associated with one booting service company may apply with another booting service company for at least one year following the license revocation of the first company.

(e) Any booting service business that operates within the city without the necessary license(s) and permits shall be fined $500.00 for each day in violation or for each boot placed without the necessary license, whichever is greater.

(f) The annual license fee shall be $250.00 to be paid when application is filed. All licenses shall expire on September first of each year subject to renewal year to year thereafter.
(Ord. No. 19,838, § 1, 10-5-00; Ord. No. 19,860, § 1, 10-19-00)

Sec. 66-406. Damaging or removal of boot is prohibited.

It shall be unlawful and an offense punishable by a fine of up to $500.00 and imprisonment of up to six months for any unauthorized person to release, deface, injure, tamper with, break, destroy, remove, impair the usefulness of, or cause any

person to release, deface, injure, tamper with, break, destroy, remove, impair the usefulness of any boot which has been attached to a motor vehicle in accordance with the provisions of this article.
(Ord. No. 19,838, § 1, 10-5-00)

Sec. 66-407. Administrative hearing.

The owner or operator of any vehicle booted by a booting service business shall have the right to an administrative hearing held by the administrative adjudication bureau of public housing and environmental violations for a fee of $50.00 to determine if the booting of said vehicle was proper. The purpose of the hearing is to determine the validity of the boot and the charges imposed, and said hearing shall be conducted by a hearing officer of the administrative adjudication bureau of public housing and environmental violations. The owner or operator of said vehicle must make a written request for said hearing within ten calendar days of the date the motor vehicle. Should the hearing officer uphold the appeal of the person booted, the booting service business shall, within three business days, pay the person making the appeal the $50.00 appeal fee. The hearing officer shall require the booting service business within three business days to return all fees to the vehicle owner.
(Ord. No. 19,838, § 1, 10-5-00)

Sec. 66-408. Reserved.

Editor's note—M.C.S., Ord. No. 26429, § 1, adopted May 14, 2015, repealed § 66-408, which pertained to applicability and derived from Ord. No. 19,860, § 1, adopted Oct. 19, 2000.

ARTICLE VII. SHOPPING CARTS

Sec. 66-409. Definitions.

Unless the context requires otherwise, the words and terms defined in this article shall have the meaning ascribed to them in this section.

Identification sign means sign or sticker having minimum dimensions of two inches by six inches, that is permanently affixed to every shopping cart and that:

(a) Identifies the name, address and telephone number of the shopping cart owner;

(b) Notifies the public of the procedure, if any, the shopping cart owner has established through which persons can obtain written authorization to remove the shopping cart from the premises;

(c) Notifies the public that the removal of a shopping cart from the premises, or the use or possession thereof away from the premises, without written authorization from the shopping cart owner is a violation of law;

(d) Notifies the public that the retrieval of a shopping cart without written authorization from shopping cart owner is a violation of law; and

(e) Lists a functioning telephone number and an address that can be used to coordinate the return of a shopping cart to the shopping cart owner, or to notify the shopping cart owner of the location of such shopping cart.

Notice means written notice to a shopping cart owner or its representative delivered personally or sent via certified mail to any of the following addresses:

(a) The premises;

(b) The address indicated on the city business license application of the shopping cart owner;

(c) The address indicated on the identification sign; or

(d) The last known address of the shopping cart owner.

Premises means the interior of a business establishment, and all exterior landscaped areas, pedestrian areas on the property of the business establishment, and the designated parking lot area provided by a business establishment for its customers to park their automobiles or other means of transportation while they patronize the business establishment. The premises includes the entire parking area used by a multi-store complex or shopping center wherein such business establishment is located.

Shopping cart means a basket, or similar device, that is mounted on wheels and is gener-

ally used by customers and patrons in retail or wholesale business establishments for the purpose of transporting goods of any kind within the premises thereof. The term includes a shopping cart equipped with an electric motor and navigational controls any constituent part of a shopping cart, as well as a shopping cart that is dismantled or not in working order.

Shopping cart owner means, with respect to any shopping cart:

(a) The legal owner of such shopping cart;

(b) The owner or operator of a business establishment that is authorized by the legal owner of such shopping cart to provide such shopping cart for use by customers and patrons at the premises of the business establishment; and

(c) The authorized agents and employees of the persons listed in paragraphs (a) and (b).

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-410. Abandoned shopping carts obstructing public property and private property declared a nuisance.

A shopping cart abandoned, placed, located, left, situated, or found obstructing any public property or any private property (excluding the premises at which the shopping cart owner provides such shopping cart for use by customers) is a public nuisance, which the city or its authorized agents may abate in accordance with this article and applicable law.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-411. Unlawful shopping cart removal, use and possession.

It is unlawful for any person to remove a shopping cart from the premises of any business establishment unless the shopping cart owner has authorized such removal in writing. Any person engaged in the removal of a shopping cart from the premises of any business establishment must possess the written authorization for removal described herein.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-412. Shopping cart retrieval.

(a) A shopping cart owner is responsible at its expense for promptly removing and retrieving its shopping cart from any public property, and for promptly repairing in a good and workmanlike manner any damage to public property caused by or resulting from such shopping cart being situated on or removed from public property.

(b) It is unlawful for any person to retrieve a shopping cart from private property unless the owner of such private property and the shopping cart owner have both authorized such retrieval in writing. Any person engaged in the retrieval of a shopping cart from private property must possess the written authorizations for retrieval described herein.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-413. Signage requirements.

Each shopping cart owner shall:

(1) Prominently and conspicuously post a notice with minimum dimensions of eight inches by 11 inches at all entrances to the premises and at all entrances to the business establishment, in substantially the following form: "Removal of shopping carts from these premises is prohibited by law."

(2) Prominently and permanently affix to each shopping cart an identification sign.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-414. Mandatory implementation and ongoing use of measures to prevent removal of, or ensure prompt retrieval of shopping carts.

(a) Each shopping cart owner shall implement and enforce, at all times, measures to contain its shopping carts within the premises of its business establishment and to prevent any authorized person from removing one or more shopping carts from such premises. Permitted measures include any or all of the following:

(1) A wheel locking mechanism installed on all shopping carts and used in conjunction with an electronic barrier along the

perimeter of the premises, which is activated when a shopping cart crosses the electronic barrier;

(2) A physical barrier, such as bollards, restricting shopping carts to a specific area of the premises;

(3) Shopping carts equipped with a protruding arm or similar device prohibiting a cart from being removed from the interior of a business establishment; or

(4) Any other similar method that prevents the removal of shopping carts from the premises.

(b) Each shopping cart owner shall post a sign having minimum dimensions of 12 inches by 18 inches in a conspicuous location at each entrance to the premises notifying shopping cart users of the containment measures put into place pursuant to this section.

(c) Each shopping cart owner shall implement and utilize measures for retrieving shopping carts from public property daily and returning such shopping carts promptly to the shopping cart owner business location. Permitted measures include any or all of the following:

(1) Entering into a written contract with a cart retrieval service requiring the daily retrieval of shopping carts from public property, and the return of such shopping carts to the shopping cart owner;

(2) Daily retrieval by the shopping cart owner of its shopping carts from public property; or

(3) Any other similar method that results in the daily retrieval of shopping carts from public property.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-415. Penalty for failure to comply; abandoned carts.

If a shopping cart owner fails to implement retrieval measures as required by this article, or the shopping cart owner fails to enforce such measures on an ongoing basis, the city shall give notice of noncompliance to such shopping cart owner, which notice of noncompliance shall set forth the following:

(a) That the shopping cart owner is in violation of this article;

(b) That the city shall levy a penalty against the shopping cart owner in the amount of $250.00 for each shopping cart deemed abandoned.

(M.C.S., Ord. No. 29247, § 1, 11-3-22)

Sec. 66-416. Disposition of abandoned shopping carts by the city.

In the event a shopping cart is abandoned, placed, located, left, situated, or found obstructing public property or private property, such shopping cart will be deemed abandoned by the department of code enforcement, or other agency as may be designated by the chief administrative officer, which may take any or all of the following actions:

(a) Remove, or cause the removal of, the abandoned shopping cart and return it, or cause it to be returned to the location indicated on the identification sign or to the shopping cart owner. The shopping cart owner shall be responsible for payment of the city's fees and actual costs for retrieving and returning such shopping cart pursuant to this section.

(b) Give notice to the shopping cart owner of the location of such abandoned shopping cart. Such notice shall state that the shopping cart owner has three calendar days following the date of the notice to remove or cause the removal of such shopping cart from the property upon which it is abandoned, placed, located, left, situated, or found obstructing public property or private property, and that the city may dispose of the abandoned shopping cart pursuant to this section if the shopping cart owner fails to remove or cause the removal thereof within such three-day period. If removal of the abandoned shopping cart is not accomplished by or on behalf of the shopping cart owner within such three-day

period the office of code enforcement, or other agency as may be designated by the chief administrative officer, may remove, or cause the removal of the abandoned shopping cart, and may dispose of it in accordance with this section.

For purposes of this section, "shopping cart owner" includes the apparent owner of such shopping cart when the actual ownership is unknown.

(M.C.S., Ord. No. 29247, § 1, 11-3-22; M.C.S., Ord. No. 29758, § 3, 12-1-23)

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Chapter 70

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ARTICLE I. IN GENERAL

Sec. 70-1. Generally.

The elected, appointed or chief official (or, if there is no chief, the senior official in length of service) of any public office or public body receiving funding from the city shall submit at the time of submission of a budget request to the chief administrative office complete information and documentation in such a format and with as much detail as the chief administrative officer shall prescribe regarding all sources of revenue and all expenditures made by his office or body for the most recently completed past year, the current year and projections for the next year to both the administrative office and the council fiscal office. The information shall include but not be limited to the number of personnel by type of position and contracts valued at $10,000.00 or more. The chief administrative officer shall report to the council if any public office or public body fails to submit the information required in this section or if insufficient information has been submitted.
(Code 1956, § 2C-1)

Sec. 70-2. Expenditure of insurance proceeds from capital funds.

The director of the department of finance shall expend from capital funds, pending amendment of the capital budget, such amounts as may be necessary to restore immovable property damaged by fire or other casualties as covered by insurance when the proceeds of the insurance settlement covering such damage or loss has been deposited in such capital funds, as set forth in section 6-204 of the Charter.
(Code 1956, § 2-53)

Charter reference—Purchase of insurance, § 6-303.

Sec. 70-3. Limitations on expenditure.

The authorization granted in section 70-2 shall apply only to partial losses, shall be limited to the amount of $10,000.00 in any one instance, shall not exceed the amount of the insurance proceeds and shall further be limited to the restoration only of the immovable property on which the insurance proceeds were received.
(Code 1956, § 2-54)

Sec. 70-4. Certain officials authorized to endorse certain stock certificates.

(a) The following officials are hereby designated and authorized to sign and endorse certificates of stock of the various building and loan associations, domiciled and doing business in the city, for the purpose of withdrawing any city funds, or other funds in the custody of the city, which may be invested in the stock of such building and loan associations.

(b) There shall be two manual signatures which shall be those of:

(1) Director of the department of finance, or deputy director of the department of finance, or chief, bureau of the treasury, or chief clerk, bureau of the treasury; and

(2) Comptroller, or chief clerk, bureau of accounting.

(Code 1956, § 2-39.1)

Sec. 70-5. Per diem expenses for parish grand jury.

(a) Payments for per diem expenses of persons serving on the parish grand jury shall be limited to payments for food or beverages.

(b) Per diem expense for persons serving on the parish grand jury shall be limited to the actual amount expended not to exceed $25.00 per day on which the person serves as a juror. No per diem payment shall be made for any expense incurred by a person serving on the grand jury on a day on which the person did not serve on the grand jury in the conduct of official business of the grand jury.

(c) A person serving on the parish grand jury shall be personally responsible for any expenses incurred during services on the grand jury in excess of the maximum per diem provided in this section.

(d) The director of the department of finance shall from time to time provide a copy of this section to each person selected to serve on the parish grand jury.

(e) The chief administrative officer is authorized to request such information in connection with the preparation of the annual operating budget ordinance as is necessary to accomplish the purposes of this section.
(Code 1956, § 2-40.5)

Cross reference—Courts, ch. 50.

Sec. 70-6. Payments of settlements and judgments.

The director of finance shall approve payments or other financial transactions which are necessitated by findings of ineligible or disallowed costs by the federal or state governments only when such payments or other transactions have been specifically approved by legislation adopted by the city council.
(M.C.S., Ord. No. 18,095, § 1, 3-6-97)

Sec. 70-7. Certain officials authorized to draw upon all reserves and dedicated funds.

Until further action of this council, the chief administrative officer and the director of the department of finance are authorized to draw upon all reserves and dedicated funds of the city to meet the ongoing expenses of the city.
(M.C.S., Ord. No. 22055, § 1, 9-8-05)

Sec. 70-8. Same—Securing line of credit; entering into borrowing agreements.

Louisiana Statutes provide for borrowing by municipalities in order to meet public emergencies, and the council hereby declares that an emergency exists.

Until further action of this council, the chief administrative officer is authorized to secure a line of credit and enter into such borrowing agreements as may be necessary to ensure the financial viability of the city.

Application is hereby made to the state bond commission for approval of the incurrence of this line of credit.

The interest rate, principal amount, maturity dates, security for the line of credit (including FEMA reimbursement) and provider of the line of credit shall be determined by the chief administrative officer and the director of the department of finance.
(M.C.S., Ord. No. 22056, §§ 1—4, 9-8-05)

Sec. 70-9. Public defender funding parity.

No annual budget allocation from the City of New Orleans to the Orleans Public Defenders (OPD) shall be less than 85 percent of the annual budget allocation to the Orleans Parish District Attorney's Office. If the City of New Orleans provides office space or equipment to either of these offices, the provision of such shall be included in the allocation calculation.
(M.C.S., Ord. No. 28465, § 1, 8-20-20)

Sec. 70-10. Execution by council president.

(a) The following contracts must be signed by the president of the city council, in addition to the signatories required by section 6-308 of the Home Rule Charter:

(1) Any contract providing for the aggregate expenditure of more than $1,000,000.00 in city funds during the initial term and all allowable renewal terms or having an initial term of more than one year; and

(2) Any professional services agreement providing for legal representation on behalf of the city, including any city department, board, or officer, together with any amendment or extension thereof.

(b) The president of the city council shall not execute any agreement pursuant to this section unless authorized to do so by council motion.

(c) This section shall not apply (i) to contracts entered into by the New Orleans Aviation Board pursuant to section 22-43 of the Code of the City of New Orleans, (ii) to contracts for public works or for the purchase of any materials or supplies that have been procured pursuant to the Louisiana Public Bid Law, La. R.S. 38:2211, et seq.; (iii) to contracts providing for the expenditure of more than $1,000,000.00 in city funds that are executed within 60 days of a declared state of emergency and relate directly to the emergency, or (iv) to contracts required by the Home Rule Charter to

be approved by the council. The law department or agency head managing the emergency agreement governed by this subsection shall promptly notify the council in writing of any emergency contract executed without the signature of the council president pursuant to this section.
(M.C.S., Ord. No. 29258, § 1, 11-17-22; M.C.S., Ord. No. 29568, § 1, 7-27-23; M.C.S., Ord. No. 29676, § 1, 10-5-23)

Editor's note—M.C.S., Ord. No. 29258, § 2, states: The requirements of this ordinance shall apply to any contract entered into, renewed, or extended on or after January 1, 2023.

Sec. 70-11. Contracts to be made publicly available.

(a) Any contract to which the city is a party shall be routed for execution and kept available to the public online through the city's current enterprise resource planning system, BRASS, or a similar contracting and procurement database. Contracts shall be uploaded and made publicly available not less than 20 days after execution.

(b) For purposes of this section, the term "contract" shall be construed as broadly as possible and shall include professional services agreements, public works contracts, donations, leases, cooperative endeavor agreements, memoranda of understanding, and any agreement contemplating the provision of goods, property or services to the city, regardless of whether any compensation is paid.
(M.C.S., Ord. No. 29785, § 1, 1-18-24)

Sec. 70-12. Matching funds required for cooperative endeavor agreements.

(a) *Matching funds required.* Any cooperative endeavor agreement pursuant to which the city must allocate public funds for the construction, renovation, development or redevelopment of privately owned immovable property or publicly owned immovable property leased to a private developer shall contain a provision requiring any non-governmental parties to the agreement to contribute funding for the project in an amount equal to at least 30 percent of the maximum amount payable by the city under the terms of the agreement. The funding contributed by non-governmental parties shall not come from a public source, including federal, state, or municipal grants or other allocations from any governmental body.

(b) *Exception.* The council may waive the requirements of this section by ordinance, following receipt of a written request for waiver from the chief administrative officer. The written request must contain a detailed description of the project, the reasons for requesting the waiver, and an explanation as to why the waiver is in the best interests of the city.
(M.C.S., Ord. No. 30071, § 1, 9-19-24)

Sec. 70-13. Disclosure of parties performing work under contract.

Any contract or professional services agreement to which the city is a party shall include for each other party thereto, including each subcontractor or third-party vendor, (i) the party's name; (ii) the party's business address; (iii) the name and address of the party's registered agent; and (iv) a description of the work the party, if a subcontractor or third-party vendor, is responsible for completing pursuant to the contract. Any change to this information as included in the contract or agreement in accordance with this section, including the identity of a party or the description of work a party is to perform, must be submitted in writing within ten days of the change to the city department responsible for procuring or administering the contract. The procuring or administering department shall publish online the written notice, together with the original contract, in accordance with section 70-11.
(M.C.S., Ord. No. 30339, § 1, 4-24-25)

Secs. 70-14—70-35. Reserved.

ARTICLE II. DISBURSEMENTS*

Sec. 70-36. Effect of certificate as to name, position or signature.

The certificate of the clerk or assistant clerk of council of the city, certifying the names, official

***Charter reference—**Department of finance must prepare and issue all checks, § 4-1301.

positions or genuineness of signatures of the officials authorized to sign checks on behalf of the city, shall be conclusive evidence of the genuineness of such signatures and of the holding of such official positions by such persons.
(Code 1956, § 2-40)

Sec. 70-37. Cash received to be transmitted to department of finance.

All persons receiving cash in their departments shall transmit such cash with the proper records of their departments to the department of finance in the manner provided for by that department and shall furnish a statement showing the amount and the record of such transactions to the director of the department of finance.
(Code 1956, § 2-29)

Sec. 70-38. How checks signed—Generally.

Checks drawn against funds to the credit of the city deposited under fiscal agency banks for the city, under fiscal agency contracts or otherwise, or with other lawful depositories shall bear the signature of the officials described in sections 70-39 through 70-47.
(Code 1956, § 2-30)

Sec. 70-39. Same—Payroll checks.

All payroll checks shall bear but one manual or mechanical facsimile signature, which shall be that of:

(1) The director of the department of finance, or

(2) The chief, bureau of the treasury.

(Code 1956, § 2-31)

Sec. 70-40. Same—Judicial expense fund.

All checks drawn against the judicial expense fund shall bear but one manual or mechanical facsimile signature, which shall be that of:

(1) The director of the department of finance, or

(2) The chief, bureau of the treasury.

(Code 1956, § 2-32)

Cross reference—Courts, ch. 50.

Sec. 70-41. Same—Wisner Land Fund.

All checks drawn against the Wisner Land Fund shall bear but one manual signature which shall be that of the mayor.
(Code 1956, § 2-33)

Cross references—Mayor, § 2-31 et seq.; Edward Wisner donation advisory committee, § 2-156 et seq.

Sec. 70-42. Same—Aviation board account.

All checks drawn against the aviation board account shall bear three manual signatures, which shall be those of:

(1) The director of the department of finance or the chief, bureau of the treasury, and

(2) Any two members of the city aviation board.

(Code 1956, § 2-34)

Cross reference—Aviation board, § 22-36 et seq.

Sec. 70-43. Same—Employees' retirement system.

All checks drawn against the employees' retirement system of the city shall bear two manual or mechanical facsimile signatures, which shall be those of:

(1) The director of the department of finance or the chief, bureau of the treasury, and

(2) Any one of the persons who may be designated by resolution of the board of trustees of the retirement system of the city.

(Code 1956, § 2-35)

Sec. 70-44. Same—Bureau of the treasury special account.

All checks drawn against the bureau of the treasury special account shall bear two manual or mechanical facsimile signatures, which shall be those of:

(1) The chief, bureau of the treasury, or the chief clerk, bureau of the treasury; and

(2) The comptroller or the chief clerk, bureau of accounting.

(Code 1956, § 2-36)

Sec. 70-45. Same—Bureau of the treasury exchange account.

All checks drawn against the bureau of the treasury exchange account shall bear one manual signature, which shall be that of:

(1) The chief, bureau of the treasury;

(2) The chief clerk, bureau of the treasury; or

(3) The head cashier, bureau of the treasury.
(Code 1956, § 2-36.1)

Sec. 70-46. Same—Isaac Delgado Central Trades School Account.

(a) All checks drawn against the Isaac Delgado Central Trades School Account shall bear two manual or mechanical facsimile signatures, which shall be that of:

(1) The accountant; and

(2) Any one of the following:

a. The chairman of the board of managers.

b. The director of education of the school.

c. The secretary of the board of managers.

(b) The school is authorized to maintain its own bank account in conformity with requirements of the state division of administration.
(Code 1956, § 2-37)

Sec. 70-47. Same—All other checks, including those drawn against U.S. Treasury bills.

(a) All other checks shall bear but two manual signatures, which shall be those of:

(1) The director of the department of finance, or the deputy director of the department of finance, or the chief, bureau of the treasury or the chief clerk, bureau of the treasury; and

(2) The comptroller or the chief clerk or the assistant to the chief clerk, bureau of accounting.

(b) Checks under this section shall include any drawn from time to time for the investment of funds not immediately needed, on deposit with lawful depositories, in 90-day interest bearing United States Treasury bills; and such signatories may also sign all documents that may be necessary to obtain the payment of such bills on or before their maturities or for the withdrawal of them from the safekeeping of the depository thereof. But all proceeds of such securities payable at maturity thereof shall be payable by the federal reserve bank to the city and all proceeds of such securities paid before maturity thereof shall be paid through a depository of city funds that is a member of the federal reserve system.
(Code 1956, § 2-38)

Sec. 70-48. Banks authorized to cash checks signed as provided in this article.

Each of the fiscal agency banks of the city and each other lawful depository is authorized and requested to accept, honor, cash and pay, without limit as to amount and without further inquiry, until written notice of the revocation of the authority hereby granted is actually received by any such depository, all checks drawn on it against funds to the credit of the city under a fiscal agency contract or otherwise and signed as provided by sections 70-38 to 70-47 including checks payable to the personal order of the official signing on behalf of the city or otherwise, or deposited to the personal account of any such official or otherwise. The revocation herein referred to shall be by ordinance, resolution or motion adopted by the council, duly certified by the clerk or the assistant clerk of council.
(Code 1956, § 2-39)

Sec. 70-49. Prohibited use of public funds for certain alcohol purchases.

No public funds or city-issued credit card may be used to purchase, or to reimburse any person for the purchase of, alcoholic beverages during or in connection with any travel on behalf of the city.
(M.C.S., Ord. No. 30265, § 1, 3-27-25)

Secs. 70-50—70-80. Reserved.

ARTICLE III. FUNDS*

DIVISION 1. GENERALLY

Sec. 70-81. Annual reports regarding donation and trust funds.

On or before October 15, 2020, and September 1 of each subsequent year, the department of finance and the board of city trusts shall present to the budget, audit, and board of review committee, a report on any fund that includes, in whole or in part, donations to the city, including without limitation all expendable and nonexpendable trust funds currently maintained by the city or any board or commission thereof. This report shall contain:

(1) The name of each fund;

(2) The balance of each fund;

(3) An estimate of the revenue expected to be generated by each fund in the subsequent year;

(4) For funds in which donations and non-donation revenue sources are commingled, a statement detailing which portion of the fund balance is tied to donations;

(5) A copy of each trust, donation, or other instrument comprising each the fund, if available;

(6) A statement of the purposes for which each fund may be used;

(7) A recommendation regarding whether each fund should be abolished, exhausted, and/or rededicated to the general fund; and

(8) Any other information the board of city trusts or the department of finance deems germane for consideration by the council in evaluating the continued utility of donation-related funding sources.

(M.C.S., Ord. No. 28501, § 1, 9-17-20)

Sec. 70-82. Annual report regarding other funds.

Simultaneously with the report required by the preceding section, the department of finance shall present to the budget, audit, and board of review committee, a report on all other funds currently maintained by the city or any board or commission thereof. This report shall encompass (i) any fund created by chapter 70 of the Code of the City of New Orleans; (ii) any other fund created any other provision of this Code or the charter; and (iii) any other fund maintained by the department of finance:

(1) The name of each fund;

(2) The balance of each fund;

(3) An estimate of the revenue expected to be generated by each fund in the subsequent year;

(4) A statement of the purposes for which each fund may be used and the legal basis for the fund;

(5) A recommendation regarding whether each fund should be abolished, exhausted, modified or reduced;

(6) Any other information the department of finance deems germane for consideration by the council in evaluating the continued utility of dedicated funding sources and preventing the accrual of excessive fund balances.

(M.C.S., Ord. No. 28501, § 1, 9-17-20)

Sec. 70-83. Rededication of fund balances.

For any fund not established pursuant to federal or state law or otherwise established to satisfy multi-year indebtedness or the obligations imposed by a contract, donation, trust, or similar instrument, the department of finance shall be empowered, upon a motion of the council, to transfer monies from any fund to the general fund, notwithstanding the use restrictions imposed by this Code or the ordinance creating the fund. Nothing herein shall be deemed to authorize a

*__Charter reference—__Fund administration, §§ 6-201—6-217.

__Cross references—__Delgado Albania Plantation commission revolving fund, § 2-137; revolving fund of the New Orleans aviation board, § 22-47.

transfer in violation of federal or state law, the home rule charter, or the obligations imposed by contract or a donation.
(M.C.S., Ord. No. 28501, § 1, 9-17-20)

Sec. 70-84. Monthly reports regarding full-time equivalents for all funds.

On a monthly basis, the department of finance shall present to the budget, audit, and board of review committee, a summary report on full-time equivalents for all operating funds currently appropriated by the city. Information included in such monthly summary reports shall contain, at minimum, the following information for each city agency:

(1) Total budgeted full-time equivalents by agency

(2) Total filled full-time equivalents by agency

(3) Total full-time equivalents vacancy number by agency

(4) Total full-time equivalents vacancy rate by agency

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created by any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29010, § 1, 4-21-22; M.C.S., Ord. No. 30651, § 1, 5-7-26)

Sec. 70-85. Proposed budget reports regarding full-time equivalents for all funds.

On or before November 1, 2022, the department of finance shall present to the budget, audit, and board of review committee, a report on full-time equivalents for all operating funds included within the proposed operating budget. Information included in such reports shall contain, at minimum, the following information for each city agency:

(1) Fund

(2) Agency

(3) Classification code

(4) Classification name

(5) Number of filled full time equivalents

(6) Total personal services cost of filled full time equivalents

(7) Number of vacant full time equivalents

(8) Total personal services cost of vacant full time equivalents

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29010, § 1, 4-21-22)

Sec. 70-86. Adopted budget reports regarding full-time equivalents for all funds.

On or before December 1, 2022, the department of finance shall present to the budget, audit, and board of review committee, a report on full-time equivalents for all operating funds included within the adopted operating budget. Information included in such reports shall contain, at minimum, the following information for each city agency:

(1) Fund

(2) Agency

(3) Classification code

(4) Classification name

(5) Number of filled full time equivalents

(6) Total personal services cost of filled full time equivalents

(7) Number of vacant full time equivalents

(8) Total personal services cost of vacant full time equivalents

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29010, § 1, 4-21-22)

Sec. 70-87. Monthly fund balance reports.

On a monthly basis, the department of finance shall present to the budget, audit, and board of review committee, a report on the fund balances for all operating funds appropriated by the city, unless a fund was inactive during the preceding year, in which case the inactive fund may be excluded from the report. Information included in such monthly reports shall contain audited data; if audited data is unavailable, the report shall contain unaudited data. Information included in such reports shall contain, at minimum, the following information for each city fund:

(1) Fund

(2) Beginning fund balance

(3) Changes in fund balance

(4) Current ending fund balance

(5) A detailed statement on the changes to fund balance

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created by any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29009, § 1, 4-21-22; M.C.S., Ord. No. 30651, § 1, 5-7-26)

Sec. 70-88. Proposed budget reports regarding fund balances for all funds.

On or before November 1, 2022, and on an annual basis thereafter, the department of finance shall present to the budget, audit, and board of review committee, a report on the fund balances for all operating funds currently appropriated by the city. Information included in such monthly reports shall contain audited data, if audited data is unavailable, the report shall contain unaudited data. Information included in such reports shall contain, at minimum, the following information for each city fund:

(1) Fund

(2) A statement of the purposes for which each fund may be used and the legal basis for the fund

(3) Beginning fund balance

(4) Changes in fund balance

(5) Current ending fund balance

(6) A detailed statement on the changes to fund balance

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29009, § 1, 4-21-22)

Sec. 70-89. Adopted budget reports regarding fund balances for all funds.

On or before December 1, 2022, and on an annual basis thereafter, the department of finance shall present to the budget, audit, and board of review committee, a report on the fund balances for all operating funds currently appropriated by the city. Information included in such monthly reports shall contain audited data, if audited data is unavailable, the report shall contain

unaudited data. Information included in such reports shall contain at minimum the following information for each city fund:

(1) Fund

(2) A statement of the purposes for which each fund may be used and the legal basis for the fund

(3) Beginning fund balance

(4) Changes in fund balance

(5) Current ending fund balance

(6) A detailed statement on the changes to fund balance

This report shall encompass:

(i) Any fund created by chapter 70 of the Code of the City of New Orleans;

(ii) Any other fund created any other provision of this Code or the Charter; and

(iii) Any other fund maintained by the department of finance.

(M.C.S., Ord. No. 29009, § 1, 4-21-22)

Secs. 70-90—70-100. Reserved.

DIVISION 2. PETTY CASH FUNDS

Sec. 70-101. Petty cash accounts authorized.

In accordance with the provisions of section 6-201 of the Charter, the following petty cash accounts are hereby authorized:

Aviation board, Account No. 1	$ 1,000.00
Aviation board, Account No. 2	200.00
Chief administrative office	250.00
CAO, equipment maintenance division	10,000.00
City council	500.00
City council utilities	500.00
City planning commission	200.00
Civil service department	50.00
Finance department, director's office	500.00
Fire department, superintendent's office	100.00
Health department, administration	1,000.00
Historic district landmarks commission	100.00
Human services department, emergency assistance program	7,500.00
Human services department, youth study center	250.00
Law department	1,000.00
Law department, bond forfeitures	3,450.00
Mayor's office	250.00
Mayor's office, AIDS activity office	10,000.00
Mayor's office, film commission trust fund	500.00
Mayor's office, vigor	300.00
Mosquito control board	1,000.00
Municipal court, clerk's office—change fund	400.00
Municipal Yacht Harbor Corporation	500.00
Office of inspector general	1,000.00
Parks and parkway department—general office	600.00
Police department, detective bureau	3,000.00
Police department, intelligence division	3,000.00
Police department, intelligence revolving fund	6,000.00
Police department, narcotics division	2,000.00

Police department, narcotics flash fund	60,000.00
Police department, narcotics fund	60,000.00
Police department, public integrity division	3,000.00
Police department, records division	40.00
Police department, special squad (vice)	3,000.00
Police department, superintendent's office	500.00
Police department, technical services division	200.00
Police department, vice revolving fund	20,000.00
Property management department, director's office	200.00
Property management department, real estate and records	325.00
Property management department, Gallier Hall	50.00
Property management department, municipal auditorium	200.00
Property management, theater for the performing arts	200.00
Public library	1,330.00
Public works department, auto pound change fund	100.00
Public works department, director's office	150.00
Public works department, parking division	100.00
Recreation department	1,000.00
Safety and permits department, electrical inspection section	15.00
Safety and permits department, mechanical inspection section	50.00
Safety and permits department, motor vehicle inspection section change fund	300.00
Sanitation department, director's office	300.00
Traffic court	125.00
Traffic court, violation bureau change fund	800.00
Vieux Carré Commission	50.00

(Code 1956, § 2-28; M.C.S., Ord. No. 15,188, § 1, 5-7-92; M.C.S., Ord. No. 16,114, § 1, 10-7-93; M.C.S., Ord. No. 17,129, § 1, 8-8-95; M.C.S., Ord. No. 17,130, § 1, 8-8-95; M.C.S., Ord. No. 17,974, § 1, 1-9-97; M.C.S., Ord. No. 18,265, § 1, 6-5-97; Ord. No. 19,462, § 1, 11-18-99; Ord. No. 20,013, § 1, 1-18-01; Ord. No. 20,066, § 1, 3-15-01; M.C.S., Ord. No. 20646, § 1, 4-18-02; M.C.S., Ord. No. 24416, §§ 1, 2, 5-5-11; M.C.S., Ord. No. 29483, § 1, 6-8-23)

Secs. 70-102—70-130. Reserved.

DIVISION 3. NEW ORLEANS SPECIAL EVENTS FUND

Sec. 70-131. Established.

(a) In accordance with the provisions of section 6-215 of the Charter, the New Orleans special events fund is hereby established to receive donations from private individuals, corporations and other institutions and entities in the private sector to lessen the burdens of government on the city in attracting and hosting national conventions, special events and other activities which shall benefit the city.

(b) No donation will be accepted except on an unrestricted basis only in that a donation may not be designated for use in connection with any particular national convention, special event or other activity. It is intended that the city government's discretion will in no way be inhibited to apply this resource in the manner that in its judgment will bring the greatest overall return to the city and its community at large.

(c) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest-bearing account to the benefit of and to become a part of the fund.

(d) Except for expenditures which were obligated prior to September 30, 1988, no expenditure shall be made from said fund without obtaining the prior authorization from the council by means of a motion approving the expenditure of such fund.

(e) Such fund shall be subject to an annual audit by an independent certified public accountant.
(Code 1956, § 2-28.1)

Secs. 70-132—70-150. Reserved.

DIVISION 4. VIEUX CARRÉ RESIDENTIAL FUND*

Sec. 70-151. Established.

(a) There is hereby established, in conformity with section 6-201 of the Charter, a Vieux Carré Residential Fund, which shall receive payments from individuals or businesses who wish to encourage residential uses in the Vieux Carré and which shall be used only for public purposes which help to retain or increase residential uses within the boundaries of the Vieux Carré National Register Historic District.

(b) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) Conditional donations to the fund shall be reviewed by the board of city trusts as required by section 5-402 of the Charter.

(d) Expenditures from the fund shall be made only pursuant to an appropriation of the city council. Prior to consideration of an ordinance appropriating monies from this fund, the council shall request the comments of the Vieux Carré Commission and the board of city trusts upon the proposed expenditure. If such comments have been received within 30 days of the request therefor, the council may consider and act upon such proposed appropriation.
(Code 1956, § 2-28.2)

*__Cross reference—__Vieux Carré, ch. 166.

Secs. 70-152—70-170. Reserved.

DIVISION 5. NEW ORLEANS WAR ON DRUGS FUND†

Sec. 70-171. Established.

(a) In accordance with the provisions of section 6-215 of the Charter, the New Orleans War on Drugs Fund is hereby established to receive donations from private individuals, corporations and other institutions and entities in order to aid and assist the city in its efforts to eradicate illegal substance abuse in the city.

(b) The fund hereby established shall be administered by the director of the mayor's war on drugs office and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) Conditional donations to the fund shall be reviewed by the board of city trusts as required by section 5-402 of the Charter.

(d) The chief administrative office shall be responsible for setting up the necessary checks and balances in administering the funds.
(Code 1956, § 2-28.3)

Secs. 70-172—70-190. Reserved.

DIVISION 6. CULTURAL CENTER IMPROVEMENT AND MAINTENANCE FUND‡

Sec. 70-191. Established.

(a) In accordance with the provisions of section 6-215 of the Charter, the Cultural Center Improvement and Maintenance Fund is hereby established to receive revenues derived from the surcharge imposed on tickets sold to events at the municipal auditorium and the theatre of the performing arts and to receive donations from private individuals, corporations and other institu-

†__Cross references—__Drug related public nuisances, § 102-76 et seq.; drug paraphernalia, § 102-111 et seq.

‡__Cross reference—__Municipal auditorium and theatre of performing arts, § 146-751 et seq.

tions and entities in order to aid and assist the city in its efforts to improve and maintain the cultural center.

(b) The fund hereby established shall be administered by the director of the department of property management and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) Conditional donations to the fund shall be reviewed by the board of city trusts as required by section 5-402 of the Charter.

(d) The disposition of these funds shall be in conformity with section 146-758.
(Code 1956, § 2-28.4)

Secs. 70-192—70-210. Reserved.

DIVISION 7. POLICE ASSET SEIZURE FUND

Sec. 70-211. Established.

(a) There is hereby established, in conformity with section 6-201 of the City Charter, a police asset seizure fund, which shall receive funds forfeited from and by federal, state and/or city civil and/or criminal courts resulting from seizures of assets of narcotics violators, which shall be utilized only as a budget enhancement and not as a budget offset for public purposes and which shall further the needs and accomplishments of the police department.

(b) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) Conditional donations to the fund shall be reviewed by the board of city trusts as required by section 5-402 of the City Charter.

(d) Expenditures from the fund shall be made only pursuant to an appropriation by the city council.
(Code 1956, § 2-28.5)

Cross reference—Police, § 90-36 et seq.

Secs. 70-212—70-235. Reserved.

DIVISION 8. SANITATION SPECIAL FUNDS*

Sec. 70-236. Sanitation special fund established.

(a) There is hereby established, in conformity with section 6-201 et seq. of the City Charter, a sanitation special fund, which shall receive funds resulting from the sale of recyclable materials brought to and/or purchased by the City of New Orleans, Department of Sanitation Recycling Center, which funds shall be utilized only as a budget enhancement and not as a budget offset for public purposes and which shall further the needs and accomplishments of the New Orleans Department of Sanitation.

(b) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) Expenditures from the fund shall be made only pursuant to an appropriation by the city council.
(Code 1956, § 2-28.6; M.C.S., Ord. No. 14176, § 1, 11-8-90; M.C.S., Ord. No. 28459, § 1, 8-20-20)

Sec. 70-237. Sanitation special trust fund established.

(a) There is hereby established, in conformity with section 6-205 et seq. of the City Charter, a sanitation special trust fund, which shall receive funds donated to the department of sanitation for the purchase of public litter cans, public recycling cans, recycling carts and bins, which funds shall be utilized only as a budget enhancement and not as a budget offset for public purposes, and which shall further the needs and accomplishments of the New Orleans Department of Sanitation.

***Editor's note—**M.C.S., Ord. No. 28459, § 1, adopted August 20, 2020, amended the title of Div. 8 to read as herein set out. Formerly, said division was entitled "Sanitation Recycling Fund."

Cross reference—Solid waste, ch. 138.

(b) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund.

(c) The board of city trusts shall review conditional donations to the fund as required by section 5-402 of the City Charter, and shall supervise the administration of the fund by the director of finance as required by sections 6-205 and 6-206 of the City Charter.

(d) Disbursements from the fund shall be made only pursuant to authorization by the board of city trusts.
(M.C.S., Ord. No. 28460, § 1, 8-20-20)

Secs. 70-238—70-255. Reserved.

DIVISION 9. NEW ORLEANS FILM COMMISSION TRUST FUND*

Sec. 70-256. Established.

(a) In accordance with the provisions of section 6-215 of the Charter, the New Orleans Film Commission Trust Fund is hereby established to receive allocations for its operating budget from various funding sources, such as the New Orleans Tourism Marketing Corporation, as well as grant funds, donations and other monetary contributions from private individuals, corporations, and other institutions and entities in the private sector to support the programs and activities of the film commission.

(b) Funds will be accepted either on an unrestricted basis, or for the support of a specific program, project, activity, or other use designated by the donor and agreed to by the film commission.

(c) Funds to be received conditionally should be reviewed by the board of city trusts, as required by section 5-402 of the City Charter.

(d) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest bearing account to the benefit of and to become a part of the fund.

(e) All expenditures from such fund shall be made by either public voucher, requisition of formal check request, and shall require the manual signatures of the director of the department of finance and the director of the department of public information.

(f) Such fund shall be subject to an annual audit by an independent certified public accountant.

(g) No expenditure shall be made from said fund without obtaining the prior authorization from the council by means of a motion approving the expenditure of such funds.
(Code 1956, § 2-28.7)

Secs. 70-257—70-280. Reserved.

DIVISION 10. PLANT-A-TREE FUND†

Sec. 70-281. Established.

(a) In accordance with the provisions of sections 6-205 and 6-207 of the City Charter, the Plant-A-Tree Fund is hereby established to (1) receive donations from private individuals, corporations, and other institutions and entities in the private sector; and except as provided in section 70-415 of the City Code of New Orleans; (2) to receive revenues collected from the operation or rental of properties/facilities administered by the department of parks and parkways to support programs and activities of the department of parks and parkways.

(b) Donations will be accepted either on an unrestricted basis, or, conditionally, for the support of a specific program, project, activity, or other use as designated by the donor.

(c) Conditional donations to the fund shall be reviewed by the board of city trusts, as required by section 5-402 of the Charter.

*__Cross reference—__New Orleans film and video commission, § 2-236 et seq.

†__Cross reference—__Environment, ch. 66.

(d) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest bearing account to the benefit of and to become a part of the fund.
(Code 1956, § 2-28.8; M.C.S., Ord. No. 25432, § 1, 8-8-13)

Secs. 70-282—70-300. Reserved.

DIVISION 11. RIVERGATE SPECIAL FUND

Sec. 70-301. Established.

(a) In accordance with the provisions of section 6-215 of the Charter, the Rivergate Special Fund is hereby established to receive revenues generated by the Rivergate and Erato Street Wharf properties, and to make disbursements as required for the operation and maintenance of these properties and for payment of the city's obligation to the Audubon Park Commission under the Riverfront Economic Development Agreement, provided that such disbursements shall be made only pursuant to appropriations authorized by ordinance of the city council.

(b) The fund hereby established shall be administered by the director of the department of property management, and shall be kept in an interest bearing account, with interest accruing to the benefit of and to become a part of the fund.

(c) Disbursements from the fund shall require the manual signatures of the director of the department of finance and the director of the department of property management.

(d) The chief administrative office shall be responsible for establishing the necessary checks and balances in administering the funds.
(Code 1956, § 2-28.9)

Secs. 70-302—70-325. Reserved.

DIVISION 12. CRIMINAL EVIDENCE AND FORFEITURES FUND*

Sec. 70-326. Authorization.

(a) There is hereby authorized and created a special agency fund, to be known as the criminal evidence and forfeitures fund. The fund shall be administered by the superintendent of police or his designee within the department of police, who shall cause to be deposited into such fund money being held by the department of police because it is or may be subject to forfeiture by a suspect or defendant; monies held in the custody of the department as evidence in the prosecution of a crime or misdemeanor whenever the deposit thereof is expressly ordered by the court having jurisdiction over the matter, or whenever the appropriate prosecution certifies in writing that said money may be so deposited without prejudicing any of the interest or rights of the prosecution, the suspect or defendant, or any person having an interest in the matter or in the money; and funds found by or turned in to the department of police to be held until claimed by the rightful owner.

(b) There is hereby authorized and created a revolving fund, to be known as the police property and evidence revolving fund. The fund shall be administered by the superintendent of police or his designee within the department of police, who shall cause to be deposited into such fund any revenues derived by the department of police from its administration of the property and evidence custody facilities in connection with the investigation and prosecution of crimes and misdemeanors.
(Code 1956, § 2-701)

Sec. 70-327. Disbursements.

No disbursement of funds from the criminal evidence and forfeitures fund shall be made except as authorized by a special or general order of a court of competent jurisdiction or except as permitted by detailed written administrative procedures prepared by the superintendent of police and approved by the chief administrative officer, the director of the department of finance, and the city attorney. In the case of disbursements to a party other than the city, an administrative fee of ten percent of the amount disbursed shall be withheld by the city and deposited into the general fund of the city.
(Code 1956, § 2-702)

*__Cross reference—__Police, § 90-36 et seq.

Sec. 70-328. Appropriation of funds.

Any portion of money deposited in the criminal evidence and forfeitures fund or any portion of the interest thereon or earnings thereof which is determined to have become the property of the city shall be transferred from the fund, into the police property and evidence revolving fund, from which disbursements may be made only in accordance with appropriations of the city council and only for the purpose of defraying the costs of law enforcement activities, including but not limited to constructing, maintaining, repairing or improving the property and evidence custody facilities of the department of police.
(Code 1956, § 2-703)

Secs. 70-329—70-350. Reserved.

DIVISION 13. PAYROLL ACCOUNT REVOLVING FUND

Sec. 70-351. Established.

In accordance with the provisions of section 6-208 of the City Charter, there is hereby established a revolving fund for the department of finance, bureau of the treasury, in the amount of $5,000.00, to be known and designated as the "City of New Orleans, Treasury Payroll Account."
(Code 1956, § 2-40.1)

Sec. 70-352. Administration; disbursements; reimbursements.

The director of the department of finance, through the chief, bureau of treasury, shall make disbursements from such fund for the payment of withheld or accrued wage of any and all employees separated from the services of the city, within 24 hours from the date of separation, or in certain cases when an employee's regular payroll check is not issued through the normal process. The funds so disbursed shall be reimbursed by assignment to the city of the employee's biweekly or weekly check or checks in an amount equal to the amount of the treasury check issued under this division. Biweekly or weekly checks, when issued, shall be credited to the "City of New Orleans, Treasury Payroll Account."
(Code 1956, § 2-40.2)

Sec. 70-353. Facsimile signature.

Checks issued under this division by the "Bureau of the Treasury" against the "City of New Orleans, Treasury Payroll Account," shall bear but one manual or mechanical facsimile signature, as provided under section 70-39.
(Code 1956, § 2-40.3)

Sec. 70-354. Increase of fund in emergencies.

If a large number of city employees are laid off, discharged or resign at one time, and the amount remaining in the fund established by this division is insufficient to pay the claims of all employees within 24 hours, the council hereby authorizes that the revolving fund be increased in an amount sufficient to pay all claims. Upon reimbursement, the amount in excess of $5,000.00 is to be withdrawn and credited to the proper account.
(Code 1956, § 2-40.4)

Secs. 70-355—70-375. Reserved.

DIVISION 14. REVOLVING FUND OF THE UPPER PONTALBA BUILDING

Sec. 70-376. Established.

The revolving fund of the Upper Pontalba Building Commission previously established by the city and administered by the former Upper Pontalba Building Commission shall, during the term of any lease of the Upper Pontalba Building granted by the city to the Upper Pontalba Building Restoration Corporation (including any extensions thereof), be administered by such corporation subject to the provisions of section 6-208 of the Charter of the city and the provisions hereinafter set forth. The fund shall be known as the Revolving Fund of the Upper Pontalba Building; and the entity charged with the administration of the fund shall be known as the administrator. In the absence of any such lease, the fund shall

be administered by the department of property management or any other entity lawfully charged with the responsibility of managing the building.
(Code 1956, § 64-1)

Sec. 70-377. Collection of revenues.

The director of the department of finance is authorized to delegate the function of collecting all revenues derived from the operation of the Upper Pontalba Building to the administrator.
(Code 1956, § 64-2)

Sec. 70-378. All revenues to be placed in revolving fund.

All funds on hand on March 31, 1963, in the Upper Pontalba Building Commission Insurance Reserve Account, the Upper Pontalba Building Commission Old Coupon Reserve Account and the Upper Pontalba Building Commission Petty Cash Account and all revenues of the Upper Pontalba Building accruing on and after that date shall be placed in the revolving fund of the Upper Pontalba Building and deposited to the account of such fund in a bank which has been designated as a city depository in accordance with the procedure set forth in the City Charter.
(Code 1956, § 64-3)

Sec. 70-379. Annual operating budget.

The administrator shall submit annually to the chief administrative officer, on forms and in a manner prescribed by the chief administrative office, for inclusion in the city's recommended operating and capital budgets a proposed budget of revenues and expenditures covering the operation of the Upper Pontalba Building for the following calendar year, which shall be first approved by the council before any disbursements are made therefrom. This annual budget may, from time to time, be amended by the administrator; provided, however, that any amendment which increases the total amount of the budget must be presented for city council approval. Except as otherwise provided by the terms of the lease between the city and the Upper Pontalba Building Restoration Corporation, funds placed in the revolving fund of the Upper Pontalba Building shall be used exclusively for the payment of the expenses of administering, operating and maintaining the Upper Pontalba Building; and any funds, other than reasonable reserves as determined by the city, over and above that which is necessary to pay such expenses shall be transferred to the general fund of the city.
(Code 1956, § 64-4)

Sec. 70-380. Payments to be approved by director of finance.

Expenditures from the revolving fund of the Upper Pontalba Building shall be made by the director of the department of finance upon submission by properly designated officers of the administrator of evidence that the articles or services for which payment is requested have been procured, received or rendered in accordance with the law and that payment therefor is due and in accordance with the budget of revenues and expenditures provided for in section 70-379.
(Code 1956, § 64-5)

Sec. 70-381. Annual budget of capital improvements.

The administrator shall each year submit to the city planning commission on or before August 15th a list of all expenditures for permanent physical improvements it is making or proposes to make during the succeeding five years for inclusion in the capital budget; provided that nothing in this division shall be deemed to restrict the administrator's authority to make expenditures from its revolving fund for maintenance, renewal and replacement purposes on the properties under its administration in accordance with section 70-379 or to restrict the rights of the Upper Pontalba Building Restoration Corporation under a lawful lease.
(Code 1956, § 64-6)

Secs. 70-382—70-390. Reserved.

DIVISION 15. RESERVED*

Secs. 70-391—70-403. Reserved.

*__Editor's note—__M.C.S., Ord. No. 23046, § 5, adopted March 20, 2008, deleted div. 15, which pertained to environmental improvement revolving fund and derived from Code 1956, §§ 2B-100—2B-105.

DIVISION 16. ECONOMIC DEVELOPMENT FUND

Sec. 70-404. Created.

There is hereby created a special fund designated as the City of New Orleans Economic Development Fund, into which shall be deposited all proceeds of the special tax authorized by proposition E of R-91-100 and any other funds designated by lawful authority for deposit in the fund.
(M.C.S., Ord. No. 16,571, § 1(18B-1), 7-7-94)

Sec. 70-405. Purpose.

The intent and purpose of the economic development fund (EDF) is to provide for the economic development of the city through the financing of projects or activities, which shall be defined at those projects or activities, including but not limited to, projects or activities that expand and attract new business; retain and support growth in existing business; support workforce development and recruitment; diversify the economy; create new jobs and wealth; expand the local tax base; increase private sector capital and investment; and, generally improve the entrepreneurial climate of the city. Economic development projects or activities include, but are not limited to, physical infrastructures, including buildings that enhance private debt, venture, or seed capital. Such projects or activities may include but not limited to those projects that are within the normal purview of city government, including, but not limited to projects or activities that enhance trade, commerce, or the attraction of visitors to the city. Economic development projects or activities shall be defined not to include public education projects; housing projects that do not directly create new permanent jobs or directly enhance wealth; housing projects provided for in Ordinance Calendar No. 17,218; and physical infrastructure that does not directly create new permanent jobs or directly enhance wealth.
(M.C.S., Ord. No. 16,571, § 1(18B-2), 7-7-94; M.C.S., No. 22856, § 1, 10-18-07)

Sec. 70-405.1. Use of fund/eligibility.

Funds available through the EDF may be used to provide temporary or permanent financing in line with the purposes of section 70-405. The EDF advisory committee will have flexibility in the types of financing tools available to pursue general economic development goals, such as small grants and other financing vehicles appropriate for a governmental entity as may be necessary and appropriate with such security as is determined by the committee, recommended by the mayor, and approved by the city council. The EDF advisory committee shall seek to advance public/private sector partnerships so as to maximize opportunities for economic development and to leverage available funds. The mayor, in accordance with section 9-314 of the City Charter, may enter into cooperative endeavor agreements for the purposes of establishing public/private partnerships consistent with this section.
(M.C.S., Ord. No. 22856, § 1, 10-18-07; M.C.S., Ord. No. 23167, § 1, 7-10-08)

Sec. 70-406. Appropriations.

No money shall be appropriated from the economic development fund in any year unless and until the mayor shall have appointed an economic development advisory committee, for the purpose of advising the mayor and the city council concerning appropriations from the economic development fund.
(M.C.S., Ord. No. 16,571, § 1(18B-3), 7-7-94)

Sec. 70-407. Economic development advisory committee.

(a) *Composition.* The economic development advisory committee shall be composed of 11 members, each of whom shall be domiciled in and an elector of the city and shall have training and experience in at least one of the following fields: economic development, business administration, finance, banking, personnel training, or business management.

(b) *Appointment.* The economic development advisory committee shall be appointed as follows:

(1) The New Orleans Chamber of Commerce; the New Orleans Regional Black Chamber of Commerce; the Collaborative Community Initiative, INC.; the Hispanic

Chamber of Commerce of Louisiana; and the Asian Chamber of Commerce of Louisiana shall each submit to the mayor a list of three nominees.

(2) The mayor with the approval of the city council shall appoint 11 members to the advisory committee. Eight appointments shall be from the nominees submitted by the entities named in subpart 1, with at least one nominee of each entity being appointed. Two members shall be the exclusive appointees of the mayor, subject to city council approval. One member shall be the exclusive appointee of the city council.

(3) The terms of the committee shall commence January 1 of each year and end on December 31 of the same year. Each committee member may be reappointed. Any vacancy on the committee shall be filled in the manner of the initial term, and such appointments shall be for the remainder of the unexpired term.

(c) *Ethics.* The economic development advisory committee shall be governed by the provisions of the state code of ethics regarding membership on the committee by directors, officers, or employee groups or organizations who might wish to submit proposals for appropriations from the economic development fund.

(d) *Staffing.* The economic development advisory committee shall be staffed by the mayor's office, which may hire additional and necessary professional assistance to conduct a cost/benefit analysis and audit of each project and to facilitate the development of the advisory committee's recommendations.

(e) *Recommendations for appropriations.* The economic development advisory committee shall advise and assist the mayor by making recommendations for appropriations from the economic development fund. While preparing its recommendations, the economic development advisory committee shall take into consideration the goals and objectives of the economic development agency which represents the city. The committee shall propose specific projects to be undertaken and shall state the amounts of money to be used for each project.

(M.C.S., Ord. No. 16,571, § 1(18B-3—18B-5), 7-7-94; M.C.S., Ord. No. 22856, § 1, 10-18-07; M.C.S., Ord. No. 27922, 11-1-18, eff. 1-1-19)

Sec. 70-408. Proposals for economic development projects.

(a) The advisory committee shall receive and review proposals from organizations that are interested in initiating economic development projects. The advisory committee shall conduct at least one public meeting per year to inform the public about the economic development fund, the application process by which funding is requested, and the economic development priorities of the city.

(b) Prior to the submission of its recommendations to the mayor and clerk of council, but not later than July 1 of each year, the advisory committee shall conduct at least one public hearing, which shall be advertised in the official journal and noticed in accordance with law, to receive comments from the public and other interested parties regarding applications received by the advisory committee for the funding of projects from the economic development fund. No later than August 1 of each year, a copy of the minutes from the public hearing shall be submitted to the mayor and the clerk of council.

(c) The final proposed recommendations developed by the advisory committee shall be submitted to the mayor and the clerk of council on or before August 1 of each year. Each recommendation shall include a detailed, objective, independent, cost-benefit analysis of the project indicating the return on the investment for funds being allocated. The committee shall include with the submittal of its recommendations a copy of each proposal received.

(d) Upon receipt of the advisory committee's proposed recommendations, the mayor may modify, change, or amend the recommendations in whole or in part. However, the mayor shall submit the economic development fund recommendations to the city council on or before November 1 of each year.

(e) If the mayor fails or neglects to submit the economic development fund recommendations on or before November 1 of each year, the clerk of council shall submit the recommendations developed and submitted that year by the advisory committee.

(f) The city council shall adopt, amend, or reject the economic development fund recommendations on or before December 1 of each year, provided, however, that additional amendments may be adopted after that date, as provided in section 70-409.

(g) The mayor's office shall provide the following reports to the city council for each project approved pursuant to this section:

(1) A report on each grant certifying and detailing all expenditures of grant funds and describing how the grantee is or is not meeting its objectives. These reports shall be submitted semi-annually beginning six months after the award of the grant until the grant closing date.

(2) Within 90 days of the completion of the project, a report providing an audit of the project prepared by a certified public accountant and a final report and project summary.

(M.C.S., Ord. No. 16,571, § 1(18B-6), 7-7-94; M.C.S., Ord. No. 17,080, § 1, 6-15-95; M.C.S., Ord. No. 17,967, § 1, 1-9-97; M.C.S., Ord. No. 22856, § 1, 10-18-07; M.C.S., Ord. No. 27922, 11-1-18, eff. 1-1-19)

Sec. 70-409. City council action on recommendations.

Upon receipt of the economic development fund recommendations from the mayor or the clerk of council, the city council shall accept, approve, amend or reject the recommendations submitted. Any amendment to the recommendations received from the mayor or the clerk of council may be made by removing one or more recommended projects, and/or placing funds in reserves, and/or including one or more new projects previously reviewed by the advisory committee. During its consideration of the plan, the council may also submit to the advisory committee new or previously reviewed projects for its review or reconsideration and recommendation. After receiving the committee recommendation, or in the event the committee makes no recommendation on the new or previously reviewed projects and 60 days pass from the request for review, the council may amend the previously adopted plan to add one or more projects, provided that any project added has been submitted to the advisory committee and sufficient unallocated funds are available.
(M.C.S., Ord. No. 16,571, § 1(18B-7), 7-7-94)

Secs. 70-410—70-415. Reserved.

DIVISION 17. NEIGHBORHOOD HOUSING IMPROVEMENT FUND (NHIF)*

Sec. 70-415.1. Created.

There is hereby created a special fund designated as the City of New Orleans Neighborhood Housing Improvement Fund (hereinafter "NHIF"), into which shall be deposited all proceeds of the special tax authorized by Proposition D of R-91-100, and any other funds designated by lawful authority for deposit in the fund, including revenues collected relative to the nightly occupancy of short-term rentals, pursuant to section 26-616(c).
(M.C.S., Ord. No. 26644, § 1, 10-15-15; M.C.S., Ord. No. 27210, § 1, 12-1-16; M.C.S., Ord. No. 28795, § 1, 10-7-21)

Sec. 70-415.2. Appropriations.

Appropriations from the proceeds of NHIF shall be used to achieve improved housing conditions and neighborhood stability in the following manner:

(1) Provide financing and other assistance for home ownership opportunities for families and individuals in existing structures;

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*__Editor's note—__M.C.S., Ord. No. 26644, § 1, adopted Oct. 15, 2015, amended Art. III, Div. 17 in its entirety to read as herein set out. Former Div. 17, §§ 70-415.1—70-415.7, pertained to similar subject matter, and derived from M.C.S., Ord. No. 14,630, § 1, adopted June20, 1991; M.C.S., Ord. No. 21545, § 1, adopted May 20, 2004.

(2) Promote neighborhood stability by eliminating blight via remediation and rehabilitation;

(3) Provide financing and other assistance for safe, affordable rental housing, provided that rental properties assisted with the proceeds of this fund shall be rented to low- and moderate-income persons/families for a minimum of ten years after receipt of assistance from this fund, and that developments comply with the regulations of the Comprehensive Zoning Ordinance.

(M.C.S., Ord. No. 26644, § 1, 10-15-15)

Sec. 70-415.3. Neighborhood housing advisory committee.

(a) No money shall be appropriated from the NHIF in any year unless and until the mayor has appointed a neighborhood housing advisory committee (advisory committee). The neighborhood housing advisory committee shall be limited to advising the mayor and city council concerning appropriations from NHIF.

(b) Appointment. The neighborhood housing advisory committee shall be appointed as follows:

(1) The mayor, with the approval of the city council, shall appoint nine members to the advisory committee all of whom shall be electors of and domiciled in the city. The appointments shall be submitted for council approval no later than the date of the second council meeting in January. Seven appointees shall be selected from nominations from the city council. Each councilmember shall submit the names of three nominees for appointment to the mayor, who shall select an appointment from one of the three nominations from each councilmember. Two nominees shall be the exclusive appointees of the mayor.

(2) Each appointee shall possess expertise or experience in one of the following areas: fair housing, community development, architecture and preservation, sustainable development, regional and neighborhood level housing and neighborhood data, smart growth, populations with special needs, and community and housing development finance. The mayor shall ensure through his/her appointments, that all areas of issue expertise are represented on the advisory committee.

(3) The terms of the committee and members appointed thereto shall commence on January 1 of each year and end on December 31 of the same year, and each committee member may be reappointed to the committee in subsequent years. Any vacancy on the committee shall be filled in the manner of the initial appointment and shall be for the remainder of the unexpired term.

(c) Restrictions. No organization may apply for funds for the following year from the NHIF, if an officer, director, trustee, partner, employee or contractor of that organization is an appointee to the neighborhood housing advisory committee. Members of the advisory committee shall adhere to the requirements of the Code of Ethics of the City of New Orleans and the Code of Ethics of the State of Louisiana.

(M.C.S., Ord. No. 26644, § 1, 10-15-15; M.C.S., Ord. No. 27968, § 1, 12-20-18, eff. 1-1-19)

Sec. 70-415.4. Committee duties.

(a) The neighborhood housing advisory committee shall advise and assist the mayor by making recommendations to the chief administrative office (C.A.O.) based on the city's comprehensive housing plan and city's plan for the 21st Century (master plan) for appropriations from the NHIF.

(b) The advisory committee will prioritize funding amounts designed to address gaps in the city's housing needs for low and moderate income persons and families or those with special needs.

(c) The advisory committee shall receive and review applications for funds from organizations or individuals interested in initiating neighborhood housing projects.

(d) The neighborhood housing advisory committee shall review proposed projects to address such needs and shall state the amounts of money to be used for each project.

(e) The recommendations for prioritized funding amounts and specific projects shall be updated annually by the advisory committee and submitted to the mayor, the C.A.O., and the city council for their approval and implementation.
(M.C.S., Ord. No. 26644, § 1, 10-15-15)

Sec. 70-415.5. Submission of recommendations.

(a) Prior to submitting its recommendations to the mayor, the C.A.O., and the city council, but not later than May 1 of each year, the advisory committee shall conduct at least one public hearing, which shall be advertised in the official journal and noticed in accordance with law to receive input and comments from the general public and other interested parties. No later than June 1 of each year, a copy of the minutes from the public hearing shall be submitted to the mayor, the C.A.O., and the clerk of council.

(b) The recommendations for the following year developed by the advisory committee shall be submitted to the mayor, the C.A.O., and the clerk of council on or before July 1 of each year.

(c) Upon receipt of the advisory committee's recommendations, the mayor may modify, change or amend the recommendations in whole or in part. However, the mayor shall submit his/her final recommendations to the clerk of council no later than August 1 of each year, and the C.A.O. shall consider the recommendations in preparing the preliminary budget for the mayor's consideration in accordance with section 6-102 of the Home Rule Charter.

(d) If the mayor fails or neglects to submit final recommendations to the clerk of council on or before August 1 of each year, the council at its first regular meeting thereafter, shall, by motion, formally adopt as the final recommendations those submitted by the advisory committee under subpart (b) of this section, and the council may modify the recommendations as provided in section 70-415.6.
(M.C.S., Ord. No. 26644, § 1, 10-15-15; M.C.S., Ord. No. 27968, § 1, 12-20-18, eff. 1-1-19)

Sec. 70-415.6. City council action.

Upon receipt of recommendations from the mayor or from the advisory committee under the provisions of section 70-415.5(c) or (d), the city council shall accept, approve, amend or reject the recommendations submitted. The city council shall approve and adopt recommendations for the following year as submitted or as amended via motion in accordance with applicable law on or before the first regularly scheduled city council meeting in the month of October of each year.

The city council shall approve NHIF appropriations in accordance with the provisions in the Home Rule Charter.
(M.C.S., Ord. No. 26644, § 1, 10-15-15; M.C.S., Ord. No. 27968, § 1, 12-20-18, eff. 1-1-19)

Secs. 70-415.7—70-415.20. Reserved.

DIVISION 18. MUSIC AND ENTERTAINMENT COMMISSION OF NEW ORLEANS FUND*

Sec. 70-415.21. Established.

(a) In accordance with the provisions of section 6-207 of the Charter, the Music and Entertainment Commission of New Orleans Fund is hereby established to receive allocations for its operating budget from various funding sources, such as the New Orleans Tourism Marketing Corporation, as well as grant funds, donations and other monetary contributions from private individuals, corporations, and other institutions and entities in the private sector to support the programs and activities of the commission.

*__Editor's note—__M.C.S., Ord. No. 17,624, § 1, adopted June 20, 1996, amended this Code by adding provisions to be included as div. 17, § 70-410. Such provisions have been redesignated as div. 18, § 70-415.21, inasmuch as other provisions were previously codified as div. 17.

(b) Funds will be accepted either on an unrestricted basis, or for the support of a specific program, project, activity, or other use designated by the donor and agreed to by the city and the commission.

(c) Funds to be received conditionally should be reviewed by the board of city trusts, as required by section 4-1802 of the City Charter.

(d) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest bearing account to the benefit of and to become a part of the fund.

(e) All expenditures from such fund shall be made in accordance with the department of finance procedures and requirements.

(f) Such fund shall be subject to an annual audit by an independent certified public accountant.

(g) No expenditure shall be made from such fund without obtaining the prior authorization from the city council by means of a motion approving the expenditure of such funds.
(M.C.S., Ord. No. 17,624, § 1, 6-20-96)

Secs. 70-415.22—70-415.50. Reserved.

DIVISION 19. TERMITE CONTROL PROPRIETARY FUND*

Sec. 70-415.51. Fund created.

A proprietary fund is established in the mosquito and termite control board under the provision of section 6-207 of the City Charter, to be known as the "termite control proprietary fund II".
(M.C.S., Ord. No. 17,953, § 1, 12-19-96 ; Ord. No. 19,532, § 1, 2-3-00)

Sec. 70-415.52. Funding and purpose.

All revenues collected by the mosquito and termite control board as a result of consulting fees, reimbursements fees from conferences held for private companies and governmental agencies, and technical support supplied to companies testing their termite control products shall be placed in the fund. Expenditures from the fund shall be used to purchase materials necessary to supply technical or consulting advice to companies testing their products.
(M.C.S., Ord. No. 17,953, § 1, 12-19-96; Ord. No. 19,532, § 1, 2-3-00)

Sec. 70-415.53. Reports.

The director of the mosquito and termite control board shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as requested but not less than quarterly.
(M.C.S., Ord. No. 17,953, § 1, 12-19-96; Ord. No. 19,532, § 1, 2-3-00)

Sec. 70-415.54. Administrative transfer of funds.

At close of each year, the director of the mosquito and termite control board, with the approval of the chief administrative officer, and upon a determination that the balance in the fund is clearly in excess of the amount reasonably anticipated expenditure within the new fiscal year, shall pay the excess amount into the general fund of the city by appropriation of the council.
(M.C.S., Ord. No. 17,953, § 1, 12-19-96; Ord. No. 19,532, § 1, 2-3-00)

Secs. 70-415.55—70-415.80. Reserved.

*__Editor's note—__M.C.S., Ord. No. 17,953, § 1, adopted Dec. 19, 1996, amended this Code by adding provisions to be included as div. 18, §§ 70-421—70-424. Such provisions have been redesignated as div. 19, §§ 70-415.51—70-415.54, inasmuch as other provisions were previously codified as div. 18. Ord. No. 19,532, § 1, adopted February 3, 2000, amended this Code by adding provisions to be included as div. 22, §§ 70-416—70-419. As these provisions are amendatory of §§ 70-415.51—70-415.54, at the editor's discretion these provisions have replaced the former §§ 70-415.51—70-415.54, which pertained to similar subject matter and derived from aforementioned Ord. No. 17,953, § 1, adopted December 16, 1996.

DIVISION 20. FEDERAL POLICE OVERTIME AGENCY FUND*

Sec. 70-415.81. Fund created.

An agency fund is established in the police department under the provisions of section 6-208 of the City Charter, to be known as the "federal police overtime agency fund."
(M.C.S., Ord. No. 18,097, § 1, 3-6-97)

Sec. 70-415.82. Funding and purpose.

All revenues that are provided to the police department by the United States Justice Department and any subsequent interest shall be placed in the fund for citywide overtime use. Expenditures from the fund shall be used to incur overtime expenses on a citywide basis.
(M.C.S., Ord. No. 18,097, § 1, 3-6-97)

Sec. 70-415.83. Reports.

The director of finance shall keep detailed and accurate books on the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as requested, but at a minimum after the close of each calendar quarter in which there has been activity in the fund.
(M.C.S., Ord. No. 18,097, § 1, 3-6-97)

Sec. 70-415.84. Administration of funds.

At the close of each fiscal year, the fund and its proceeds shall be carried forward to the following fiscal year for citywide overtime use in accordance with the awarding of the grant and United States Justice Department regulations.
(M.C.S., Ord. No. 18,097, § 1, 3-6-97)

Secs. 70-415.85—70-415.100. Reserved.

*__Editor's note—__M.C.S., Ord. No. 18,097, § 1, adopted Mar. 6, 1997, amended this Code by adding provisions to be included as div. 19, §§ 70-431—70-434. Such provisions have been redesignated as div. 20, §§ 70-415.81—70-415.84, inasmuch as other provisions were previously codified as div. 19.

DIVISION 21. TEST DEVELOPMENT AND ADMINISTRATION PROPRIETARY FUND

Sec. 70-415.101. Fund created.

A propriety fund is established in the department of safety and permits under the provisions of section 6-208 of the City Charter, to be known as the "test development and administration proprietary fund."
(M.C.S., Ord. No. 18,576, § 1, 1-8-98)

Sec. 70-415.102. Funding and purpose.

All revenues that are collected by the department of safety and permits as application fees for electrical, gas, operating engineer, and air conditioning and the fund shall be used to pay for expenses incurred by the department of safety and permits for services related to the development and administration of various tests.
(M.C.S., Ord. No. 18,576, § 1, 1-8-98)

Sec. 70-415.103. Reports.

The director of the department of safety and permits shall keep detailed and accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as required but not less than quarterly.
(M.C.S., Ord. No. 18,576, § 1, 1-8-98)

Sec. 70-415.104. Administrative transfer of funds.

At the close of each fiscal year, the director of the department of safety and permits, with the approval of the chief administrative officer, and upon a determination that the balance in the fund is clearly in excess of the amount of reasonably anticipated expenditures within the new fiscal year, shall pay the excess amount into the general fund of the city by appropriation of the council.
(M.C.S., Ord. No. 18,576, § 1, 1-8-98)

Secs. 70-415.105—70-415.120. Reserved.

DIVISION 22. AMERICAN CAN PROJECT DEBT SERVICES FUND

Sec. 70-415.121. Established.

In accordance with section 6-203 of the Home Rule Charter, the American Can Project Debt Service Fund is hereby established for the purpose of repaying the Section 108 loan received from the U.S. Department of Housing and Urban Development (HUD) for the benefit of the American Can Project. Within ten business days of receipt by the city of the first payment of loan proceeds from HUD, the chief administrative officer shall prepare, for consideration by the council, ordinances to appropriate funds from the 1998 fund balance into this debt service fund, using money previously received by the city from the MacFrugals Settlement (the City of New Orleans and the Industrial Development Board of the City of New Orleans v. West Coast Liquidators, Inc., Trinet Essential Facilities XII, Inc., ABC Insurance Company and XYZ Insurance Company USDC No. 96-3512, Sect. C). The ordinances shall appropriate sufficient funds to pay the projected difference between the total required city debt service payments to HUD, including principal and interest, and the projected receipts by the city from the American Can Project during the years 1999 through 2018. The amount shall be determined based upon projections provided by the project developer at the time of loan closing and confirmed by the city. In addition to the initial appropriation, as it may be approved by the council, the director of finance shall deposit into this fund all payments received by the city from the American Can Project, except payments made for reimbursement of costs incurred by the city in administration of the loan to the developer, and shall use the funds solely for repayment of the city's debt to HUD. At such time as the funds deposited in this debt service fund are sufficient to pay all outstanding principal and interest due to HUD through the remaining term of the loan, the requirement that payments received from the American Can Project be placed in this fund shall cease to be effective, and such payments shall then be deposited in the general fund.
(M.C.S., Ord. No. 19,336, § 1, 8-5-99)

DIVISION 23. SEX OFFENDER PROPRIETARY FUND*

Sec. 70-415.122. Fund created.

As authorized by Act 83 of the First Extraordinary Session, 2002, a proprietary fund is established in the department of police under the provision of section 6-207 of the City Charter, to be known as the "sex offender proprietary fund".
(Ord. No. 21,077, § 1, 5-1-03)

Sec. 70-415.123. Funding and purpose.

All revenues collected by the department of police as a result of annual registration fees, annual update to the registration information, criminal penalties for failure to register, and related matters shall be deposited into the fund. Expenditures from the fund shall be used to purchase equipment and supplies necessary for the new operation and its continuation.
(Ord. No. 21,077, § 1, 5-1-03)

Sec. 70-415.124. Reports.

The superintendent of the department of police shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as requested but not less than quarterly.
(Ord. No. 21,077, § 1, 5-1-03)

Sec. 70-415.125. Administration transfer of funds.

At the close of each year, the superintendent of the department of police, with the approval of the chief administrative officer, and upon a determination that the balance in the fund is clearly in excess of the amount reasonably

*__Editor's note—__Ord. No. 21,077, § 1, adopted May 1, 2003, enacted provisions intended for use as a new Div. 23, §§ 70-420—70-423. As those sections are already in use, the new provisions have been included herein as Div. 23, §§ 70-415.122—70-415.125.

anticipated expenditure within the new fiscal year, shall pay the excess amount into the general fund of the city by appropriation of the council.
(Ord. No. 21,077, § 1, 5-1-03)

DIVISION 23.5. HOUSING AND ENVIRONMENTAL IMPROVEMENT REVOLVING FUND*

Sec. 70-415.126. Fund established.

A revolving fund is established in the department of code enforcement under the provisions of section 6-207 of the City Charter, to be known as the housing and environmental improvement revolving fund. The fund shall be administered by the director of the department of code enforcement and shall be kept by the department of finance in an interest-bearing account with interest accruing to the benefit of and to become a part of the fund. Expenditures from the fund shall be made in accordance with the department of finance procedures and requirements.
(M.C.S., Ord. No. 21344, § 1, 12-1-03; M.C.S., Ord. No. 29758, § 4, 12-1-23)

Sec. 70-415.127. Funding and purpose.

All fines, fees, costs and penalties that are collected by the city as a consequence of civil adjudication proceedings by the department of code enforcement shall be placed in the fund. Expenditures from the fund shall be used to improve public health, housing and environmental conditions in the city, through administration of the adjudication proceedings; the enforcement of public health, housing and environmental ordinances, and the correction of violations ordered by an administrative hearing officer. Expenditures may include, but are not limited to, the purchase of supplies and equipment, payments pursuant to contracts, such as demolition contracts and the payment of any other expenses.
(M.C.S., Ord. No. 21344, § 1, 12-1-03; M.C.S., Ord. No. 29758, § 4, 12-1-23)

*__Editor's note—__M.C.S., Ord. No. 21344, § 1, adopted Dec. 1, 2003, created a div. 24 consisting of §§ 70-415.126 through 70-415.129. Inasmuch as div. 24 already existed and to maintain the numerical continuity of the Code, said division has been redesignated as div. 23.5 at the discretion of the editor.

Sec. 70-415.128. Reports.

The director of the department of code enforcement must maintain records of this fund and shall report to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as requested but not less than quarterly.
(M.C.S., Ord. No. 21344, § 1, 12-1-03; M.C.S., Ord. No. 29758, § 4, 12-1-23)

Sec. 70-415.129. Administrative transfer of funds.

At the close of each fiscal year, upon determination that the balance in the fund is clearly in excess of the amount of the reasonably anticipated expenditures for the next fiscal year, upon the approval of the chief administrative officer, and upon appropriation by the city council, the director of the department of code enforcement shall pay the excess amount into the general fund of the city by appropriation of the council.
(M.C.S., Ord. No. 21344, § 1, 12-1-03; M.C.S., Ord. No. 29758, § 4, 12-1-23)

Secs. 70-415.130—70-415.144. Reserved.

DIVISION 24. MOU CRIME LAB PROPRIETY FUND

Sec. 70-415.145. Fund created.

As authorized by Act 942 of the 2003 Louisiana Regular Session, a proprietary fund is established in the department of police under the provision of section 6-207 of the City Charter, to be known as the "MOU Crime Lab Proprietary Fund".
(M.C.S., Ord. No. 21442, § 1, 3-4-04)

Sec. 70-415.146. Funding and purpose.

All revenues received by the department of police as a result of fees collected by the Orleans Parish Criminal Sheriff and related matters shall be deposited into the fund. Expenditures from the fund shall be used to purchase equipment and supplies necessary for the operation of the N.O.P.D. crime lab.
(M.C.S., Ord. No. 21442, § 1, 3-4-04)

Sec. 70-415.147. Reports.

The superintendent of the department of police shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as often as requested but not less than quarterly.
(M.C.S., Ord. No. 21442, § 1, 3-4-04)

Sec. 70-415.148. Administration transfer of funds.

At the close of each year, the superintendent of the department of police, with the approval of the chief administrative officer, and upon a determination that the balance in the fund is clearly in excess of the amount reasonably anticipated expenditure within the new fiscal year, shall pay the excess amount into the general fund of the city by appropriation of the council.
(M.C.S., Ord. No. 21442, § 1, 3-4-04)

Secs. 70-415.149—70-415.199 Reserved.

DIVISION 25. IMAGINE IT CLEAN FUND

Sec. 70-415.200. Fund established.

(a) In accordance with the provisions of section 6-207 of the Charter, the New Orleans "Imagine It Clean Trust Fund" is hereby established to receive allocations for its operating budget from various funding sources, including advertising revenue, donations, and other monetary contributions from private individuals, corporations, and other institutions and entities in the private sector, to support the programs and activities of the Imagine It Clean program.

(b) Funds will be accepted either on an unrestricted basis, or for the support of a specific program, project, activity, or other use designated by the donor and agreed to by the director of sanitation and the chief administrative officer.

(c) Funds to be received conditionally should be reviewed by the board of city trusts, as required by section 4-1802 of the City Charter.

(d) The fund hereby established shall be administered by the director of the department of finance and shall be kept in an interest bearing account to the benefit of and to become a part of the fund.

(e) All expenditures from such fund shall be made in accordance with the department of finance procedures and requirements.

(f) Such fund shall be subject to audit as part of the city's annual financial audit.
(M.C.S., Ord. No. 21445, § 1, 3-4-04)

Secs. 70-415.201—70-415.224. Reserved.

DIVISION 26. MISCELLANEOUS DONATIONS FUND

Sec. 70-415.225. Fund created.

A revolving fund is established in the department of finance under the provisions of section 6-207 of the City Charter, to be known as the "miscellaneous donations fund". The funds shall be subject to the provisions of article VI of the City Charter relating to budgeting, appropriation, and allotment only to the extent that the chief administrative officer shall provide.
(M.C.S., Ord. No. 22218, § 1, 5-3-06)

Sec. 70-415.226. Funding and purpose of the fund.

(a) All miscellaneous donations received by the city that are not subject to specific regulatory conditions shall be placed in the fund. Expenditures from the fund shall be made to fund the purposes for which the donations were made and through the department responsible for such undertaking, unless unrestricted donations to the general fund.

(b) Funds will be accepted either on an unrestricted basis, or for the support of a specific program, project, activity, or other use designated by the donor and agreed to by the director of the responsible department and the chief administrative officer.

(c) Conditional donations to the fund shall be reviewed by the board of the city trusts, as required by section 4-1806 of the Home Rule Charter.
(M.C.S., Ord. No. 22218, § 1, 5-3-06)

Sec. 70-415.227. Reports.

The director of finance shall keep detailed and accurate books in the administration of the fund shall make reports to the chief administrative officer and the council, giving a complete accounting of the revenues and expenditures of the fund as often as requested, but not less than quarterly.
(M.C.S., Ord. No. 22218, § 1, 5-3-06)

Secs. 70-415.228, 70-415.229. Reserved.

DIVISION 27. NEW ORLEANS MARDI GRAS SUPPORT SERVICES DONATIONS FUND

Sec. 70-415.230. Fund created.

A revolving fund is established in the department of finance under the provisions of section 6-207 of the City Charter, to be known as the "New Orleans Mardi Gras Support Services Donations Fund". The funds shall be subject to the provisions of article VI of the City Charter relating to budgeting, appropriation, and allotment only to the extent that the chief administrative officer shall provide.
(M.C.S., Ord. No. 22472, § 1, 12-1-06)

Sec. 70-415.231. Funding and purpose of the fund.

(a) All donations received by the city for the purposes of providing funds to assist with the support services required for the Mardi Gras celebration shall be placed in the fund. Expenditures from the fund shall be made to fund the purposes for which the donations were made and through the department responsible for such undertaking, unless unrestricted donations to the general fund.

(b) Funds will be accepted either on an unrestricted basis, or for the support of a specific program, project, activity, or other use designated by the donor and agreed to by the director of the responsible department and the chief administrative officer.

(c) Conditional donations to the fund shall be reviewed by the board of the city trusts, as required by section 4-1806 of the Home Rule Charter.
(M.C.S., Ord. No. 22472, § 1, 12-1-06)

Sec. 70-415.232. Reports.

The director of finance shall keep detailed and accurate books in the administration of the fund shall make reports to the chief administrative officer and the council, giving a complete accounting of the revenues and expenditures of the fund as often as requested, but not less than quarterly.
(M.C.S., Ord. No. 22472, § 1, 12-1-06)

Secs. 70-415.233, 70-415.234. Reserved.

DIVISION 28. ENVIRONMENTAL DISASTER MITIGATION REVOLVING FUND

Sec. 70-415.235. Fund created.

A revolving fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "environmental disaster mitigation revolving fund".
(M.C.S., Ord. No. 24016, § 1, 6-17-10)

Sec. 70-415.236. Funding and purpose.

All revenues collected by the department of finance from public or private entities as a result of damage to the environment shall be placed in the fund. Expenditures from the fund shall be used to purchase materials, compensate personnel, obtain services, or offset expenses that may have resulted from said damage.
(M.C.S., Ord. No. 24016, § 1, 6-17-10)

Sec. 70-415.237. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city

council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 24016, § 1, 6-17-10)

DIVISION 29. BARTHOLOMEW GOLF COURSE FUND

Sec. 70-415.238. Fund created.

A revolving fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "Bartholomew Golf Course Fund."
(M.C.S., Ord. No. 24894, § 1, 6-28-12)

Sec. 70-415.239. Funding and purpose.

All revenues collected by the department of finance from the operation of Joseph M. Bartholomew, Sr. Municipal Golf Course shall be deposited into the Bartholomew Golf Course Fund. Expenditures from the fund shall be used to partially fund day-to-day operations of the Joseph M. Bartholomew, Sr. Municipal Golf Course.
(M.C.S., Ord. No. 24894, § 1, 6-28-12)

Sec. 70-415.240. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 24894, § 1, 6-28-12)

DIVISION 30. NEW ORLEANS RECREATION DEVELOPMENT COMMISSION REVOLVING FUND

Sec. 70-415.241. Funds created.

A revolving fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "New Orleans Recreation Development Commission (NORDC) Revolving Fund." In addition, the New Orleans Recreation Development (NORD) Foundation Fund is established in the department of finance, under section 6-207 of the City Charter, to receive periodic philanthropic contributions from the NORD Foundation.
(M.C.S., Ord. No. 25196, § 1, 2-7-13)

Sec. 70-415.242. Funding and purpose.

All NORDC related revenues collected by the department of finance, including but not limited to revenues collected from facility rentals, swimming and summer camp fees, tennis fees, pool rentals, stadium/playground rentals, vending machine income, concession stand income, copy machine income and event gate commissions shall be deposited into the New Orleans Recreation Development Commission Revolving Fund. Expenditures from the fund shall be used to fund day-to-day operational expenses of the New Orleans Recreation Development Commission. All funds deposited into the New Orleans Recreation Development (NORD) Foundation Fund will be used in accordance with any conditions and restrictions accompanying the NORD Foundation's periodic philanthropic contributions to the fund and in accordance with the terms of a Cooperative Endeavor Agreement among the NORD Foundation, the NORD Commission, and the city.
(M.C.S., Ord. No. 25196, § 1, 2-7-13)

Sec. 70-415.243. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the funds and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the funds annually as part of the annual city audit. The director of the department of finance shall also make reports with a complete accounting of the revenues and expenditures of the NORD Foundation Fund to the NORD Foundation quarterly.
(M.C.S., Ord. No. 25196, § 1, 2-7-13)

DIVISION 31. POLICE SECONDARY EMPLOYMENT FUND

Sec. 70-415.244. Fund created.

A special fund is established in the department of finance, under the provisions of section 6-207 of the Home Rule Charter, to be known as the "Police Secondary Employment Fund".
(M.C.S., Ord. No. 25429, § 1, 8-8-13)

Sec. 70-415.245. Funding and purpose.

All revenues collected by the department of finance from the operation of the office of police secondary employment shall be deposited into the police secondary employment fund. Expenditures from the fund shall be used to fund operations of the office of police secondary employment.
(M.C.S., Ord. No. 25429, § 1, 8-8-13)

Sec. 70-415.246. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 25429, § 1, 8-8-13)

DIVISION 32. AD VALOREM PROPERTY TAX ENFORCEMENT FUND

Sec. 70-415.247. Fund created.

A special fund is established in the department of finance, under the provisions of section 6-207 of the Home Rule Charter, to be known as the "Ad Valorem Property Tax Enforcement Fund".
(M.C.S., Ord. No. 25834, § 1, 5-8-14)

Sec. 70-415.248. Funding and purpose.

All revenues collected by the department of finance from specific ad valorem property tax enforcement programs such as adjudicated sales and homestead exemption verification activities shall be deposited into the Ad Valorem Property Tax Enforcement Fund. Expenditures from the fund shall be used to fund additional costs related to the specific ad valorem property tax enforcement programs and other tax and fee enforcement programs and collections, and any other City Council approved purpose, to administer these programs, and to enhance technology used in ad valorem tax enforcement and enforcement of other tax and fee programs.
(M.C.S., Ord. No. 25834, § 1, 5-8-14; M.C.S., Ord. No. 29992, § 1, 7-25-24)

Sec. 70-415.249. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 25834, § 1, 5-8-14)

DIVISION 33. FRENCH QUARTER IMPROVEMENT FUND

Sec. 70-415.250. Fund created.

A fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "French Quarter Improvement Fund".
(M.C.S., Ord. No. 26074, § 1, 10-16-14)

Sec. 70-415.251. Funding and purpose.

All revenues collected by the department of finance from the New Orleans Convention and Visitors Bureau via cooperative endeavor agreement shall be used only for the repairs, improvements and services within the boundaries of the French Quarter Management District in any of the following categories: public safety and law enforcement; quality of life enforcement measures, code enforcement measures, and violation identification, ticketing and court measures relative to ordinance compliance; sanitation; infrastructure repair or improvements; and lighting.
(M.C.S., Ord. No. 26074, § 1, 10-16-14)

Sec. 70-415.252. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make

reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26074, § 1, 10-16-14)

DIVISION 34. ON BEHALF EXPENDITURE FUND

Sec. 70-415.253. Fund created.

A fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "On Behalf Expenditure Fund".
(M.C.S., Ord. No. 26118, § 1, 11-6-14)

Sec. 70-415.254. Funding and purpose.

All funds collected by the department of finance from a program or function by another agency on behalf of the city shall be placed in the fund. Expenditures from the fund shall be recorded properly for the purpose and use.
(M.C.S., Ord. No. 26118, § 1, 11-6-14)

Sec. 70-415.255. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26118, § 1, 11-6-14)

DIVISION 35. CORONER'S OPERATIONAL FUND

Sec. 70-415.256. Fund created.

A fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "Coroner's Operational Fund".
(M.C.S., Ord. No. 26158, § 1, 11-20-14)

Sec. 70-415.257. Funding and purpose.

All revenues collected by the department of finance from the fee collected by coroner's office shall be dedicated solely in defraying the operational expenses of the coroner's office. Expenditures from the fund shall be appropriated and recorded properly for the purpose and use.
(M.C.S., Ord. No. 26158, § 1, 11-20-14)

Sec. 70-415.258. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26158, § 1, 11-20-14)

DIVISION 36. ROAD PAVING AND RESTORATION FUND

Sec. 70-415.259. Fund created.

A fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "Road Paving and Restoration Fund".
(M.C.S., Ord. No. 26469, § 1, 7-9-15)

Sec. 70-415.260. Funding and purpose.

All revenues collected by the department of finance as reimbursement from sewerage and water board and other governmental agencies, shall be dedicated to the department of public works for worked performed on behalf of the aforementioned agencies to repair, restore, rehabilitate, construct, and/or reconstruct roadway pavement and other related public works infrastructure in the roadway and/or public right-of-way to include pavement damage caused by utility service cuts to ensure the work performed meets current department of public works standards and specifications and city requirements, is completed in a safe and timely manner to mitigate the impacts to residents, and preserve and protect roadway pavement and subsurface

utilities. Expenditures from the fund shall be appropriated and recorded properly for the stated purpose and use.
(M.C.S., Ord. No. 26469, § 1, 7-9-15)

Sec. 70-415.261. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26469, § 1, 7-9-15)

DIVISION 37. BRITISH PETROLEUM (BP) SETTLEMENT FUND

Sec. 70-415.262. Fund created.

A fund is established in the department of finance, under the provision of section 6-207 of the City Charter, to be known as the "British Petroleum (BP) Settlement Fund".
(M.C.S., Ord. No. 26604, § 1, 10-1-15)

Sec. 70-415.263. Funding and purpose.

All revenues collected by the Department of Finance from the British Petroleum (BP) Settlement shall be deposited into the British Petroleum (BP) Settlement Fund. Expenditures from this fund shall be appropriated and recorded properly for the stated purpose and use.
(M.C.S., Ord. No. 26604, § 1, 10-1-15)

Sec. 70-415.264. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26604, § 1, 10-1-15)

DIVISION 38. CODE ENFORCEMENT NEIGHBORHOOD REVITALIZATION FUND*

Sec. 70-415.265. Fund created.

A revolving fund is hereby established pursuant to the provisions of section 6-207 of the City Charter for the City of New Orleans to be known as the "New Orleans Neighborhood Revitalization Fund" ("the fund"). The fund shall be subject to the provisions of article VI of the Charter, relating to budgeting, appropriation and allotment and be distributed in accordance with procedures established by the director in order to serve the public health, safety, and welfare through the financing, reconstruction, or rehabilitation of deteriorated housing.
(M.C.S., Ord. No. 26724, § 1(70-415.262), 12-1-15; M.C.S., Ord. No. 29758, § 4, 12-1-23)

Sec. 70-415.266. Funding and purpose.

After January 1, 2024, no new fines, fees, or other costs that are collected by the city because of civil administrative inspection and enforcement proceedings initiated by the department of code enforcement or their designees shall be placed in the fund. As of January 1, 2024, any existing fines, fees, or other costs that have been collected by the city because of civil administrative inspection and enforcement proceedings initiated by the department of code enforcement or their designees and have been placed in the fund may be appropriated and shall recorded properly for the purpose and use identified in this division.
(M.C.S., Ord. No. 26724, § 1(70-415.263), 12-1-15; M.C.S., Ord. No. 29758, § 4, 12-1-23)

Sec. 70-415.267. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city

*__Editor's note—__M.C.S., Ord. No. 26724, § 1, adopted Dec. 1, 2015, set out provisions intended for use as Div. 37, §§ 70-415.262—70-415.264. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as Div. 38, §§ 70-415.265—70-415.267.

council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 26724, § 1(70-415.264), 12-1-15; M.C.S., Ord. No. 29758, § 4, 12-1-23)

DIVISION 39. GALLIER HALL MAINTENANCE FUND

Sec. 70-415.268. Fund created.

A revolving fund is hereby established pursuant to the provisions of section 6-207 of the Home Rule Charter for the City of New Orleans to be known as the "Gallier Hall Maintenance Fund".
(M.C.S., Ord. No. 27445, § 1, 6-15-17)

Sec. 70-415.269. Funding and purpose.

All revenues collected for the rental and use of Gallier Hall shall be dedicated solely to defraying any maintenance costs associated with the upkeep, care, or improvement of Gallier Hall. Expenditures from the fund shall be appropriated and recorded properly for this purpose and use.
(M.C.S., Ord. No. 27445, § 1, 6-15-17)

Sec. 70-415.270. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 27445, § 1, 6-15-17)

DIVISION 40. JUDGMENT FUND*

Sec. 70-415.271. Fund created.

A revolving fund is hereby established pursuant to the provisions of section 6-207 of the Home Rule Charter for the City of New Orleans to be known as the "Judgment Fund".
(M.C.S., Ord. No. 27543, § 1(70-415.268), 9-14-17, eff. 1-1-19)

Sec. 70-415.272. Funding and purpose.

(a) When used in this division, the term "judgment" means any settlement agreement, or any final judgment or order rendered against the city by a state court or by a federal court where the judgment or order is based exclusively under state law.

(b) The Judgment Fund shall be dedicated and used exclusively for the payment of judgments and, notwithstanding any law to the contrary, shall receive an annual appropriation of not less than $2,000,000. The Judgment Fund shall be funded by revenues received from state court judgments in favor of the city, excluding those relative to payment of taxes and fees, and the proceeds of insurance settlements, excluding replacement costs and reimbursements. The fund shall be supplemented by other available revenues, as needed, to satisfy the minimum funding threshold established herein.

(c) The Judgment Fund shall exist as a funding unit within the law department. Expenditures from the fund shall be made at the direction of the city attorney, who shall ensure and document that expenditures are made only for the purposes set forth herein and as required by law.
(M.C.S., Ord. No. 27543, § 1(70-415.269), 9-14-17, eff. 1-1-19; M.C.S., Ord. No. 30031, § 1, 8-22-24)

Sec. 70-415.273. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 27543, § 1(70-415.270), 9-14-17, eff. 1-1-19)

*__Editor's note—__M.C.S., Ord. No. 27543, § 1, adopted Sept. 14, 2017, effective Jan. 1, 2019, set out provisions intended for use as Div. 39, §§ 70-415.268—70-415.271. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as Div. 40, §§ 70-415.271—70-415.274.

Sec. 70-415.274. Suspension.

The provisions of this division may be suspended by ⅔ vote of the city council by motion.
(M.C.S., Ord. No. 27543, § 1(70-415.271), 9-14-17, eff. 1-1-19)

DIVISION 41. INTEGRATED GREEN INFRASTRUCTURE PROJECT FUND

Sec. 70-415.275. Fund created.

A revolving fund is hereby established pursuant to the provisions of section 6-207 of the Home Rule Charter for the City of New Orleans to be known as the "Integrated Green Infrastructure Project Fund."
(M.C.S., Ord. No. 27700, § 1, 3-8-18)

Sec. 70-415.276. Funding and purpose.

Fee-in-lieu payments are received in exchange for properties that do not physically comply with the city's stormwater management plan regulations. A formula has been codified in section 2-1105 of the Code of the City of New Orleans that provides for the fee-in-lieu rate. All monies received pursuant to section 2-1105 will be dedicated to this fund and expenditures from the fund shall be utilized by the department of public works. The department of public works shall utilize said funds to design, construct, and maintain public green stormwater infrastructure projects which result in a minimum per cubic foot storage equivalent to the revenue received from the payments of in-lieu compliance on an annualized basis. Expenditures from the fund shall be appropriated and recorded properly for this stated purpose and use.
(M.C.S., Ord. No. 27700, § 1, 3-8-18)

Sec. 70-415.277. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 27700, § 1, 3-8-18)

DIVISION 42. INFRASTRUCTURE MAINTENANCE FUND

Sec. 70-415.278. Fund created.

There is hereby created a special fund designated as the City of New Orleans Infrastructure Maintenance Fund (hereinafter "fund"), into which shall be deposited all funds from any special tax authorized and approved by the voters of New Orleans for infrastructure maintenance, and any other funds, including but not limited to a fee, designated by lawful authority for deposit in the fund.
(M.C.S., Ord. No. 27986, § 1, 1-24-19)

Sec. 70-415.279. Appropriations and purpose.

Expenditures from the fund shall be used by the City of New Orleans to build, maintain, clean, manage, beautify, improve, operate, repair, replace, implement and/or upkeep drainage and other infrastructure projects in the City of New Orleans, including but not limited to the following:

(1) Equipment and technology upgrades;

(2) Streets rated poor or worse by the Citywide Pavement Assessment;

(3) Broken or damaged catch basins and boxes;

(4) Lids or frames covering catch basins that are broken or missing;

(5) Enforce rules, regulations, and laws regarding putting refuse or debris in catch basins by individuals, companies, or nonprofits;

(6) Design, create and implement sustainable water management principles and best practices that deal with flooding caused by heavy rainfall, subsidence caused by the pumping of storm water and water assets;

(7) Bridges and overpasses, including lighting and debris removal;

(8) Drainage canals and adjacent areas;

(9) Transportation projects;

(10) Sewer and drainage lines, as needed;

(11) Professional development opportunities to train for employment or employ residents to perform the aforementioned work, as needed; and

(12) Pedestrian, bike and other safety improvements.

(M.C.S., Ord. No. 27986, § 1, 1-24-19)

Sec. 70-415.280. Restrictions on fund.

Funds deposited into the infrastructure maintenance fund shall remain in the fund until spent for the purposes specified in section 70-415.279. The funds may not be transferred into the general fund or any other funds.
(M.C.S., Ord. No. 27986, § 1, 1-24-19)

Sec. 70-415.281. Reports.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, giving a complete and detailed written accounting of revenues and expenditures made pursuant to section 70-415.279.
(M.C.S., Ord. No. 27986, § 1, 1-24-19)

Sec. 70-415.282. Administration of fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest bearing account with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 27986, § 1, 1-24-19)

Sec. 70-415.282.1. Fair share—Drainage infrastructure.

When submitting the annual operating budget pursuant to section 6-102 of the Home Rule Charter, the chief administrative office shall include a proposed line item allocating to the fund an amount sufficient to fulfill its obligation to fund drainage infrastructure, as specified by the terms of the 2019 "Fair Share Agreement." The threshold funding amount described in the preceding sentence shall include not less than the total of (a) 75 percent of the anticipated collections from the 6.75% tax on short-term rentals, which voters approved in November 2019; (b) the anticipated proceeds of the "lost penny" sales tax imposed on hotels pursuant to the Fair Share Agreement; and (c) an amount equal to the anticipated proceeds of hotel occupancy and privilege tax imposed pursuant to chapter 150, article VIII of the Code of the City of New Orleans, but collected from other revenue sources. Three quarters of the foregoing appropriation, if approved and allocated by the council, shall be placed in sub-account named "Sewerage and Water Board (IMF)" and may be used only to fund drainage projects involving the Sewerage and Water Board of New Orleans, in accordance with an approved cooperative endeavor agreement.
(M.C.S., Ord. No. 29875, § 1, 3-21-24)

DIVISION 43. ENTERGY PENALTY SETTLEMENT FUND

Sec. 70-415.283. Fund created.

Based on an independent investigation, it was determined that Entergy New Orleans utilized paid actors during public meetings relative to Docket No. UD-16-02; accordingly, Entergy was ordered by the New Orleans City Council to pay a $5,000,000.00 penalty to the City of New Orleans for this egregious conduct. Therefore, a special fund is hereby designated and created—titled "the City of New Orleans' Entergy Penalty Settlement Fund" (hereinafter "fund")—into which the $5,000,000.00 penalty paid by Entergy shall be deposited, the receipt and expenditure of

which shall be authorized by ordinance of the council as required by the City's Home Rule Charter (Charter).
(M.C.S., Ord. No. 28032, § 1, 3-14-19)

Sec. 70-415.284. Appropriations and purpose.

Expenditures from the fund shall be utilized only for the public benefit as determined by the council, as provided in this division.
(M.C.S., Ord. No. 28032, § 1, 3-14-19)

Sec. 70-415.285. Restrictions on fund and expenditures.

(a) The penalty settlement funds, once deposited, shall only be allocated or expended in strict compliance with subsequent council approval as provided herein.

(b) As provided in section 6-201(2)(c) of the Charter, this ordinance constitutes the establishment of an operating fund for the purpose of receiving Entergy's penalty settlement. The penalty settlement shall remain in the fund until released directly by the council, or until transferred through appropriation by council ordinance.

a. The council is authorized to detail the exact, specific and limited use of said funds, along with a spending plan delineating all acceptable and appropriate categories of expenditure.

b. If allocations are intended to be transferred into another department or agency of the City of New Orleans, such transfer shall occur by an expenditure ordinance, and may be accompanied by a cooperative endeavor agreement (CEA) with the administration to ensure the council spending priorities are ensured.

(c) If the council determines that the greatest public benefit is by undertaking improvements to infrastructure owned, operated, or administered by another political subdivision of the state, a cooperative endeavor agreement (CEA) shall additionally be required.

(d) Any CEA required pursuant to this section shall be published once in the official journal and submitted to the council for approval, but not modification, via ordinance, as provided in the Charter. The agreement shall detail a spending plan delineating all acceptable and appropriate categories of expenditure.
(M.C.S., Ord. No. 28032, § 1, 3-14-19)

Sec. 70-415.286. Administration of fund.

The council fiscal office shall monitor all payment requests to ensure compliance with council's approved uses of said funds and/or spending plan. Release of funds shall only occur when compliance is met as determined, in writing, by the council fiscal office, which may be further detailed in any subsequent CEA. The fund shall be administered by the director of the department of finance, as required by section 6-201 of the Charter, and shall be kept in an interest bearing account with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 28032, § 1, 3-14-19)

Sec. 70-415.287. Required reports and program implementation.

(a) The director of the department of finance shall keep detailed accurate records in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund quarterly to the council committees on budget and utilities, respectively, as well as annually as part of the annual city audit.

(b) Recipients of said funds shall also provide complete accounting of expenditures, as well as project implementation reports associated therewith, quarterly to the council committees on budget and utilities.
(M.C.S., Ord. No. 28032, § 1, 3-14-19)

DIVISION 44. SHORT TERM RENTAL FUND*

Sec. 70-415.288. Fund created.

There is hereby created a special fund designated as the short term rental enforcement fund (hereinafter "fund").
(M.C.S., Ord. No. 28794, § 1, 10-7-21)

Sec. 70-415.289. Funding and purpose.

Except for fees collected pursuant to section 26-616(c), all fees received pursuant to section 26-616 of the Code of the City of New Orleans and any fines received as a result of violations of chapter 26, article XI of the Code (standards for short-term rentals) shall be deposited in the Fund and shall be used to fund enforcement of the city's short-term rental laws pursuant to chapter 26, article XI, division 6 of the Code.
(M.C.S., Ord. No. 28794, § 1, 10-7-21)

Sec. 70-415.290. Restrictions on fund and expenditures.

Funds deposited shall remain in the fund until allocations are designated by council ordinance.
(M.C.S., Ord. No. 28794, § 1, 10-7-21)

Sec. 70-415.291. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made pursuant to council ordinance. This report shall be submitted annually, no later than October 1.
(M.C.S., Ord. No. 28794, § 1, 10-7-21)

*__Editor's note—__M.C.S., Ord. No. 28794, § 1, adopted Oct. 7, 2021, amended Div. 44 in its entirety to read as herein set out. Former Div. 44, §§ 70-415.288—70-415.282, pertained to City of New Orleans' Interim Short Term Rental Fund, and derived from M.C.S., Ord. No. 28132, § 1, adopted June 20, 2019.

__Cross reference—__Standards for short-term rentals, § 26-613 et seq.

Sec. 70-415.292. Administration of fund.

The fund shall be administered by the director of the department of finance as provided by council ordinance, and shall be kept in an interest-bearing account with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 28794, § 1, 10-7-21)

DIVISION 45. SIMON V. SICKLES LEGACY FUND

Sec. 70-415.293. Fund created.

There is hereby created a fund, established pursuant to the provisions of section 6-207 of the Home Rule Charter, designated as the Simon V. Sickles Legacy Fund (hereinafter "fund"), into which shall be deposited all remaining funds from the 1856 bequest of Simon V. Sickles.
(M.C.S., Ord. No. 28343, § 1, 5-7-20)

Sec. 70-415.294. Purposes of the fund.

Expenditures from the fund shall be used by the department of health to provide medical advice and purchase medications, medical therapies, vaccines, and medical supplies, including supplies necessary to administer said medications and vaccines, to address emergent health threats, emergencies, or disasters that affect low-income individuals in the City of New Orleans. The director of health shall be responsible for all expenditures from the fund and for ensuring that the expenditures are spent solely for the purposes established by this paragraph.
(M.C.S., Ord. No. 28343, § 1, 5-7-20)

Sec. 70-415.295. Restrictions on the fund.

Funds deposited into the Simon V. Sickles Legacy Fund shall remain in the fund until spent for the purposes specified in section 70-415.294. The funds dedicated to the Simon V. Sickles Legacy Fund may not be transferred into the general fund or any other funds. The director of health may spend from the fund, beginning on the effective date of the ordinance until the total funding has been exhausted.
(M.C.S., Ord. No. 28343, § 1, 5-7-20)

Sec. 70-415.296. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make annual reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund as part of the annual city audit.
(M.C.S., Ord. No. 28343, § 1, 5-7-20)

Sec. 70-415.297. Administration of the fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest bearing account with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 28343, § 1, 5-7-20)

DIVISION 46. CITY CEMETERY REPAIR AND MAINTENANCE FUND

Sec. 70-415.298. Fund created.

A revolving fund is hereby established pursuant to the provisions of section 6-207 of the Home Rule Charter for the City of New Orleans to be known as the "City Cemetery Repair and Maintenance Fund".
(M.C.S., Ord. No. 28519, § 1, 10-15-20)

Sec. 70-415.299. Funding and purpose.

(a) All fees, charges, and revenues received by the city for the use of any city-owned cemetery or for cemetery services rendered or related goods sold or provided by the division of cemeteries or the department of property management shall be dedicated solely to operating, maintaining, repairing and/or improving city-owned cemeteries. Expenditures from the fund shall be appropriated and recorded properly for this purpose and use.

(b) Nothing in this section, however, shall be deemed or construed to affect or limit the duties and responsibilities of the board of city trusts with respect to such monies or revenues as may be held by the city for the perpetual care of plots in city-owned cemeteries.
(M.C.S., Ord. No. 28519, § 1, 10-15-20)

Sec. 70-415.300. Reports.

The director of the department of finance shall keep detailed accurate books in the administration of the fund and shall make reports to the chief administrative officer and the city council, giving a complete accounting of the revenues and expenditures of the fund annually as part of the annual city audit.
(M.C.S., Ord. No. 28519, § 1, 10-15-20)

Sec. 70-415.301. Administration of the fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest bearing account with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 28519, § 1, 10-15-20)

DIVISION 47. CITY COUNCIL UTILITY SUPPORT FUND

Sec. 70-415.302. Fund created.

There is hereby created a special fund designated as the city council utility support fund (hereinafter "fund").
(M.C.S., Ord. No. 28844, § 1, 11-4-21)

Sec. 70-415.303. Funding and purpose.

(a) The fund shall be used exclusively to support electric and gas utility assistance programs and other initiatives aimed at reducing residential electric and gas utility costs for the people of New Orleans.

(b) The fund shall include:

(1) All funds received by the city as a result of the American Rescue Plan Act of 2021 (H.R. 1319) that have been specifically designated by ordinance for inclusion in the fund;

(2) Any other revenue specifically designated by ordinance for inclusion in the fund.

(M.C.S., Ord. No. 28844, § 1, 11-4-21; M.C.S., Ord. No. 29262, § 1, 11-17-22)

Sec. 70-415.304. Restrictions on fund and expenditures.

Monies within the fund shall be used strictly in accordance with the purpose set forth in section 70-415.303(a) and shall remain in the fund until allocations are designated by council ordinance or the expenditure is otherwise approved by the council pursuant to a cooperative endeavor agreement. Expenditures of monies received pursuant to section 70-415.303(b)(1) shall be subject to any use restrictions imposed by federal law.

(M.C.S., Ord. No. 28844, § 1, 11-4-21)

Sec. 70-415.305. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made therefrom.

(M.C.S., Ord. No. 28844, § 1, 11-4-21)

Sec. 70-415.306. Administration of fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the fund.

(M.C.S., Ord. No. 28844, § 1, 11-4-21)

DIVISION 48. GORDON PLAZA ENVIRONMENTAL EQUITY RELOCATION ASSISTANCE FUND*

Sec. 70-415.307. Fund created.

There is hereby created a special fund designated as the Gordon Plaza Environmental Equity Relocation Assistance Fund (hereinafter "fund").

(M.C.S., Ord. No. 29238, § 1(70-415.1), 11-3-22)

Sec. 70-415.308. Funding and purpose.

(a) The purpose of the fund is to ensure that Gordon Plaza residents do not incur out-of-pocket costs associated with the relocation of their homes.

(b) The fund shall be used exclusively to offset relocation costs that may be incurred by residents of Gordon Plaza, or to reimburse the city or third parties for relocation costs assumed on behalf of residents.

(M.C.S., Ord. No. 29238, § 1(70-415.2), 11-3-22)

Sec. 70-415.309. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made therefrom.

(M.C.S., Ord. No. 29238, § 1(70-415.3), 11-3-22)

Sec. 70-415.310. Administration of fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the fund.

(M.C.S., Ord. No. 29238, § 1(70-415.4), 11-3-22)

*__Editor's note—__M.C.S., Ord. No. 29238, § 1, adopted Nov. 3, 2022, set out provisions intended for use as Div. 48, §§ 70-415.1—70-415.4. To preserve the style of this Code, and at the editor's discretion, these provisions have been included as Div. 48, §§ 70-415.307—70-415.310.

Sec. 70-415.311. Reserved.

DIVISION 49. NEW ORLEANS RECREATION AND CULTURE FUND

Sec. 70-415.312. Fund created.

There is hereby created a special fund designated as the New Orleans Recreation and Culture Fund (hereinafter "fund").
(M.C.S., Ord. No. 29116, § 1, 7-21-22)

Sec. 70-415.313. Funding and purpose.

(a) The fund shall be used exclusively to establish a merit-based grant program to fund not-for-profit community organizations, youth recreation organizations, and select culture bearers that contribute substantially to the well-being, development, and growth of the New Orleans community.

(b) The fund shall include:

(1) Any revenue specifically designated by ordinance for inclusion in the fund.

(M.C.S., Ord. No. 29116, § 1, 7-21-22)

Sec. 70-415.314. Restrictions on fund and expenditures.

Monies within the fund shall be used strictly in accordance with the purpose set forth in section 70-415.313(a) and shall remain in the fund until allocations are designated by council ordinance, or the expenditure is otherwise approved by the council pursuant to a cooperative endeavor agreement. Expenditures of monies received pursuant to section 70-415.313(b)(1) shall be subject to any use restrictions imposed by state or federal law.
(M.C.S., Ord. No. 29116, § 1, 7-21-22)

Sec. 70-415.315. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made therefrom.
(M.C.S., Ord. No. 29116, § 1, 7-21-22)

Sec. 70-415.316. Administration of fund.

The fund shall be administered by the director of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the fund. The director of finance may choose to administer the fund solely or partially through an external entity, which entity shall be contractually required to keep accurate and detailed records of any use of the monies in the fund, shall keep funds in an interest-bearing account with interest accruing to the benefit of and to become part of the fund, provide and annual report to the director of finance, and be subject to audit by the city.
(M.C.S., Ord. No. 29116, § 1, 7-21-22; M.C.S., Ord. No. 29418, § 1, 4-20-23)

Sec. 70-415.317. Fund application eligibility.

Prior to approval of any grant request subject to the approval of the city council, the applicant for said grant shall submit a completed application on forms approved and provided by the council. At a minimum, the following information shall be required:

(1) The name, physical address, telephone number, taxpayer identification number, website address (if applicable) of the applicant;

(2) IRS exempt status (e.g., 501(c)(3), 509(a)), or Form 990 indicating tax-exempt status;

(3) Completed Form W-9 for the current year;

(4) Proof of valid occupational license;

(5) Articles of incorporation;

(6) Proof of good standing from the Louisiana Secretary of State;

(7) Annual report as filed with the Louisiana Secretary of State;

(8) List of the members of the applicant's board of directors and officers, including

position within the organization, as well as professional occupation and title, if applicable;

(9) Operating budget for the current fiscal year;

(10) Current program or project operating budget that is the subject of the application, showing how grant funding will be used;

(11) An attestation that the applicant will not use a grant award for the purpose of participating in a political campaign or making a political donation;

(12) Proof that the applicant has been in existence for at least three years prior to the date of the application;

(13) Proof that the applicant has a registered headquarters or permanent physical location in Orleans Parish;

(14) A statement as to whether, to the applicant's best knowledge and belief, any member of the New Orleans City Council may have reason for recusal from voting under the provisions of the Louisiana Code of Governmental Ethics; and

(15) Attestation that applicant does not discriminate based on race, color, national origin, sex, religion, gender identity, sexual orientation, age or disability.

Funding awards will be limited to the lower of not more than $100,000.00 or 50 percent of the total budget for an existing organization/project.
(M.C.S., Ord. No. 29190, § 1, 10-6-22)

DIVISION 50. RENTER ANTI-DISPLACEMENT FUND*

Sec. 70-415.318. Fund created.

There is hereby created a special fund designated as the Renter Anti-Displacement Fund (hereinafter "fund").

(M.C.S., Ord. No. 29242, § 1(70-415.308), 11-3-22)

Sec. 70-415.319. Funding and purpose.

(a) The fund shall be used exclusively to fund programs that provide relocation assistance and alternate housing for individuals displaced as a result of the enforcement of article XI of chapter 26 of the Code of the City of New Orleans and to offset the costs to the city incurred in connection therewith, including the administration of article XI.

(b) The fund shall be funded with fines received as a result of enforcement of chapter 26 of the Code of the City of New Orleans in an amount equal to 33 percent of the fees collected annually pursuant to section 26-654 of this Code and such other sources as may be provided for by ordinance.
(M.C.S., Ord. No. 29242, § 1(70-415.309), 11-3-22)

Sec. 70-415.320. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made therefrom.
(M.C.S., Ord. No. 29242, § 1(70-415.310), 11-3-22)

Sec. 70-415.321. Administration of fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 29242, § 1(70-415.311), 11-3-22)

*__Editor's note—__M.C.S., Ord. No. 29242, § 1, adopted Nov. 3, 2022, set out provisions intended for use as Div. 48, §§ 70-415.308—70-415.311. To prevent duplication of section numbers, and at the editor's discretion, these provisions have been included as Div. 50, §§ 70-415.318—70-415.321.

DIVISION 51. YOUTH FARE TRANSPORTATION FUND

Sec. 70-415.322. Fund created.

There is hereby created a special fund designated as the Youth Fare Transportation Fund (hereinafter "fund").
(M.C.S., Ord. No. 29476, § 1, 5-25-23)

Sec. 70-415.323. Funding and purpose.

The fund shall be used exclusively to fund programs executed by the New Orleans Regional Transit Authority that provide free public transit for our youth, furthering the public benefits of reducing reliance on personal vehicles, removing barriers to accessing school and employment opportunities, improving equity, and boosting ridership.
(M.C.S., Ord. No. 29476, § 1, 5-25-23)

Sec. 70-415.324. Restrictions on fund.

Funds deposited into the fund shall remain in the fund until spent for the purposes specified in section 70-415.323. The funds may not be transferred into the general fund or any other funds.
(M.C.S., Ord. No. 29476, § 1, 5-25-23)

Sec. 70-415.325. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the fund, and any expenditures made therefrom.
(M.C.S., Ord. No. 29476, § 1, 5-25-23)

Sec. 70-415.326. Administration of fund.

The fund shall be administered by the director of the department of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the fund.
(M.C.S., Ord. No. 29476, § 1, 5-25-23)

DIVISION 52. RESERVED*

Sec. 70-415.327—70-415.332. Reserved.

DIVISION 53. PUBLIC, EDUCATIONAL, AND GOVERNMENT ACCESS SUPPORT FUND

Sec. 70-415.333. Fund created.

There is hereby created a special fund designated as the Public, Educational, and Government ("PEG") Access Support Fund (hereinafter "PEG fund").
(M.C.S., Ord. No. 29590, § 1, 8-10-23)

Sec. 70-415.334. Funding and purpose.

(a) The PEG fund shall be used exclusively to support PEG Access Channels, including but not limited to any operating expenses, salaries, and capital costs.

(b) The PEG fund shall include:

(1) All PEG Grant funds received by Cox Communications Louisiana, L.L.C. pursuant to section 7 of Ordinance No. 24,698 M.C.S., as amended.

(2) Any other revenue specifically designated by ordinance for inclusion in the PEG fund.

(M.C.S., Ord. No. 29590, § 1, 8-10-23)

Sec. 70-415.335. Restrictions on fund and expenditures.

Moneys within the PEG fund shall be used strictly in accordance with the purpose set forth in section 70-415.334(a) and shall remain in the fund until allocation is designated by council ordinance or the expenditure is otherwise approved by the council. Expenditures of moneys received pursuant to section 70-415.334(b) shall be consistent with applicable law.
(M.C.S., Ord. No. 29590, § 1, 8-10-23)

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*__Editor's note—__M.C.S., Ord. No. 30192, § 1, adopted Dec. 19, 2024, effective Jan 1, 2025, repealed Div. 52, §§ 70-415.327—70-415.332, which pertained to affordable and workforce housing fund and derived from M.C.S., Ord. No. 29478, § 1, adopted May 25, 2023; M.C.S., Ord. No. 29878, § 1, adopted March 21, 2024. The user's attention is directed to Charter § 6-201(2)(d), the Housing Trust Fund.

Sec. 70-415.336. Required reports and program implementation.

The director of finance shall keep detailed and accurate records in the administration of the PEG fund and shall make annual reports to the chief administrative officer and city council, via the clerk of council, giving a complete and detailed written accounting of all revenues in the PEG fund, and any expenditures made therefrom.
(M.C.S., Ord. No. 29590, § 1, 8-10-23)

Sec. 70-415.337. Administration of fund.

The PEG fund shall be administered by the director of the department of finance and shall be kept in an interest-bearing account, with interest accruing to the benefit of and to become part of the PEG fund.
(M.C.S., Ord. No. 29590, § 1, 8-10-23)

DIVISION 54. NEW ORLEANS HOUSING TRUST FUND

Sec. 70-415.338. Created.

There is hereby created a special fund designated as the New Orleans Housing Trust Fund (hereinafter "fund").
(M.C.S., Ord. No. 29714, § 1, 11-2-23)

Sec. 70-415.339. Funding and purpose.

To ensure the availability of affordable housing for low- to moderate-income residents within the city, all funds maintained in the housing trust fund shall be used exclusively for the following purposes, hereinafter referred to as "exclusive fund purposes":

(a) Creating and preserving affordable homeownership opportunities, including but not limited to owner-occupied rehabilitation; development subsidies; homebuyer assistance; soft second assistance; foreclosure prevention; home weatherization, such as fortified roofing; and shared equity strategies.

(b) Expanding the supply of affordable rental housing units, including but not limited to affordable multifamily housing financing; strategic investment, acquisition, disposition, or lease of property; and technical support.

(c) Preserving affordable rental housing units to prevent the future displacement of residents, including but not limited to rental rehabilitation.

(M.C.S., Ord. No. 29714, § 1, 11-2-23; M.C.S., Ord. No. 30072, § 1, 9-19-24; M.C.S., Ord. No. 30596, § 1, 3-26-26)

Sec. 70-415.340. Restrictions on fund.

(a) Moneys deposited into the fund shall remain therein until spent for the exclusive fund purposes, except as provided in this section. The funds may not be transferred into the general fund or any other funds.

(b) Portions of the annual appropriation deposited into the fund may be reserved as follows:

(1) No more than five percent shall be reserved for "rainy day" funds, to be used exclusively in the event of a declared emergency.

(2) No more than ten percent may be reserved for personnel or professional services to support the administration of the fund.

(3) The percentage of the annual appropriation remaining after the foregoing reservations are made shall be reserved as "program funds", to be used for the exclusive fund purposes, with a minimum of 45 percent of the program funds reserved equally among the three exclusive fund purposes. The remaining 55 percent of the program funds shall be further allocated among the three exclusive fund purposes, as recommended by the advisory committee and approved by the council, pursuant to section 70-415.342.

(c) Except for expenses from reserves permitted under paragraph (b)(2) above, all funds must be used in accordance with the federal Fair Housing Act's obligation to affirmatively further fair housing, provided at 42 U.S.C. section 3601, et seq.

(d) All fund expenditures and allocations shall prioritize those projects that provide climate resilient elements, creative and leveraged funding opportunities, and depth and longevity of affordability terms.
(M.C.S., Ord. No. 29714, § 1, 11-2-23; M.C.S., Ord. No. 30072, § 1, 9-19-24; M.C.S., Ord. No. 30596, § 1, 3-26-26)

Sec. 70-415.341. Administration of fund.

The director of the department of finance shall administer and maintain the fund in an interest-bearing account, with any interest accruing to the benefit of and to become part of the fund. However, nothing herein shall preclude the city from entering into an agreement with another party or parties to administer some or all of the fund, in accordance with the provisions of this division, with any interest accruing to the benefit of and to become part of the fund. Such party, whether the director of the department of finance or one or more other parties, is hereinafter referred to as the "fund administrator".
(M.C.S., Ord. No. 29714, § 1, 11-2-23; M.C.S., Ord. No. 30072, § 1, 9-19-24; M.C.S., Ord. No. 30596, § 1, 3-26-26)

Sec. 70-415.342. Housing trust fund advisory committee.

(a) *Creation and purpose.* No money shall be appropriated from the housing trust fund in any year unless and until the city council appoints or reappoints a housing trust fund advisory committee. In accordance with sections 3-127 and 4-104 of the charter, the advisory committee is limited to counseling and advising the city council and the mayor concerning appropriations from the fund.

(b) *Composition.* The advisory committee shall have a total of seven members, all of whom shall be electors of and domiciled in the city and shall possess experience in one or more of the following areas: architecture and preservation, community development, community and housing development finance, economic development, fair housing, populations with special needs, smart growth, sustainable development, and local and regional housing and neighborhood data. The city council shall ensure that all areas of expertise and experience are represented in the membership of the advisory committee. The advisory committee shall consist of the following members:

(1) One appointee of the mayor;

(2) One appointee of the city council quality of life committee chair;

(3) One appointee of the city council community development committee chair;

(4) One appointee of the city council budget, audit, and board of review committee chair;

(5) One appointee of the city council president, with such appointee having lived experience being unhoused or living in a low-income or other affordable housing unit;

(6) One appointee of the Louisiana Fair Housing Action Center; and

(7) One appointee of Southeast Louisiana Legal Services.

(c) *Appointment terms*. Appointment nominations shall be submitted by the appointing body to the city council no later than the second council meeting December, for council approval at the first regular meeting in the following January, except for years when a mayor and council are inaugurated in January, in which case the council may consider appointments at the first regular meeting following the council's inauguration.

The terms of each member who has been appointed, and of the committee, shall commence on the date of council approval of each year and end on December 31 of the same year. Each advisory committee member may be reappointed. Any vacancy on the advisory committee shall be filled in the manner of the initial term, and such appointments shall be for the remainder of the unexpired term. Members of the advisory committee shall adhere to the requirements of the city code of ethics and the state code of governmental ethics.

(d) *Committee duties.*

(1) *Quarterly reporting.* The housing trust fund advisory committee shall submit a

quarterly report to the city council for its receipt at the first regular council meetings scheduled in April, July, and December. Such reports may be prepared by the advisory committee or the fund administrator(s) and reviewed by the advisory committee prior to submission to the city council. Each quarterly report must include, at a minimum, the following performance measures:

(i) the balance of the fund;

(ii) all revenues;

(iii) all expenditures, including program spending per exclusive fund purpose by dollar and by percentage;

(iv) the number of households assisted;

(v) the number of affordable rental units created;

(vi) the number of affordable rental units preserved;

(vii) the number of affordable homeownership units (e.g., houses or condominiums) created;

(viii) the number of affordable homeownership units preserved;

(ix) the development status for multifamily housing projects receiving financing assistance; and

(x) any other relevant performance data as specified in any applicable cooperative endeavor agreement, notice of funding availability, or otherwise, as requested by the council.

(2) *Annual reporting.* In coordination with the fund administrator, the advisory committee shall prepare and submit an annual report to the city council for its receipt at the last regular council meeting in September. The annual report must provide the following:

(i) a detailed accounting of all fund revenues and expenditures for the preceding year;

(ii) year-long data on the quarterly performance measures required pursuant to paragraph (d)(1) for the preceding year;

(iii) a recommended budget for the upcoming fiscal year, specifying the program funds to be allocated among the three exclusive fund purposes and in accordance with this section; and

(iv) an implementation plan for all recommended expenditures.

The recommended budget must include a minimum of 15 percent of the program funds assigned to each exclusive fund purpose, with the remaining 55 percent of the program funds allocated among one or more of the exclusive fund purposes, in accordance with residents' housing needs.

(e) *Fund budget and implementation plan.*

(1) Within 45 days of receipt, the city council shall approve the budget and implementation plan for incorporation in the city's operating budget ordinances.

(2) The council may either approve, by motion, the budget and implementation plan as initially recommended, or it may direct, by motion, the advisory committee to reconsider the initial recommendation with specified modifications.

(3) Within ten days of the council motion directing the advisory committee to reconsider the initial recommendation, the advisory committee shall submit to the council its recommended budget and implementation plan, as reconsidered and as modified.

(4) If the council fails to act on the budget and implementation plan on or before the second regular council meeting in November, whether it be as initially recommended or as reconsidered and modified, the budget and implementation plan as last submitted by the advisory committee shall be deemed adopted for incorporation into the city's operating

budget ordinances. Nothing herein shall prohibit the council from thereafter amending the operating budget ordinance.

(f) *Staffing*. The office of community development shall furnish such services as may be needed by the advisory committee.
(M.C.S., Ord. No. 29714, § 1, 11-2-23; M.C.S., Ord. No. 30072, § 1, 9-19-24; M.C.S., Ord. No. 30514, § 1, 11-6-25; M.C.S., Ord. No. 30596, § 1, 3-26-26)

Sec. 70-415.343. Required dashboard.

All information required in either a quarterly or annual report under section 70-415.342 shall be displayed on a public facing dashboard, established and maintained by the fund administrator and updated on a quarterly basis.
(M.C.S., Ord. No. 30072, § 1, 9-19-24)

DIVISION 55. THE CITY OF NEW ORLEANS EMPLOYEE EMERGENCY PAYROLL FUND

Sec. 70-415.344. Fund created.

There is hereby created a special fund designated as The City of New Orleans Employee Emergency Payroll Fund ("fund").
(M.C.S., Ord. No. 30522, § 1, 11-6-25)

Sec. 70-415.345. Purpose.

The fund shall be used exclusively to address the city's current budget exigencies by funding specific approved expenses strictly in accordance with the restrictions and requirements set forth in section 70-415.347.
(M.C.S., Ord. No. 30522, § 1, 11-6-25)

Sec. 70-415.346. Funding sources and uses.

The full amount of the sale of all revenue notes of the City of New Orleans, authorized by Resolution No. R-25-558 on October 23, 2025, shall be deposited into the fund, less any costs of issuance associated with notes paid or payable at the time of closing, within 24 hours of receipt. All deposits and withdrawals shall be made subject to the restrictions contained in section 70-415.347.
(M.C.S., Ord. No. 30522, § 1, 11-6-25)

Sec. 70-415.347. Restrictions on fund.

(a) Moneys deposited into the fund shall remain therein until transferred for the purposes specified in this division. No moneys deposited into the fund may be transferred into the general fund or into any other fund, except as expressly authorized in this division

(b) No expenditure from the fund may occur unless expressly authorized by one or more council resolutions, provided that the council may approve only the following categories of expenses to be paid from the fund:

(1) Active city employees' salaries and wages earned during the period for which approval is provided, together with any employee fringe benefits;

(2) City employees' overtime earnings, together with customary corresponding fringe benefits, earned during the period for which approval is provided, in an amount not to exceed the totals reflected in a council-approved approved overtime spending plan;

(3) Expenses directly related to and arising from an emergency declared by a vote of the council on or after date this section becomes law due to act of God, riot, war, or a grave emergency which threatens widespread loss of life or grievous injury to health or property;

(4) Transactional and borrowing costs related to the issuance of the revenue notes not paid or deducted before the deposit of monies into the fund.

(c) Before the adoption of a resolution authorizing the release of moneys from the fund for payroll obligations, the chief administrative officer, together with the director of the department of finance, shall submit a detailed budget and expenditure plan to the clerk of council covering the applicable payment period and detailing the proposed payments from the fund.

(d) No withdrawal, transfer, or disbursement from the fund shall occur without the prior written concurrence of the state legislative auditor confirming that the proposed expenditure is

consistent with this section, the City Charter, and the Louisiana Local Government Budget Act (La. R.S. 39:1301 et seq.). The chief administrative officer shall be responsible for obtaining such concurrence prior to any disbursement.

(e) The restrictions contained in this section shall remain in full force and effect until the indebtedness represented by the city's revenue notes is paid in full.
(M.C.S., Ord. No. 30522, § 1, 11-6-25)

Sec. 70-415.348. Reporting and participation requirements.

(a) The director of department of finance shall keep detailed and accurate records of all moneys within the fund and all expenditures therefrom and shall transmit on the second Monday of each month a written report to the chief administrative officer and the clerk of council. The monthly report shall provide a complete, detailed accounting of all moneys in the fund including all revenues and expenditures therefrom.

(b) The chief administrative officer shall provide the state legislative auditor with secure electronic view-only access to the city's management software sufficient to permit real-time review of payroll, overtime, and financial-management transactions, and any specific reports or records requested by the state legislative auditor including, but not limited to, income statements, balance sheets, trial balances, accounts payable aging report, and accounts receivable aging report within three business days of request, unless the state legislative auditor grants a longer period in writing. Failure to provide timely access or information shall constitute non-compliance and may result in suspension of withdrawals from the fund until compliance is restored.

(c) The chief administrative officer, together with the director of the department of finance, shall prepare and transmit the following reports to the state legislative auditor and the clerk of council:

(1) Monthly budget-to-actual expenditure reports (post-reconciliation) that include department-level detail and written explanations of any variances exceeding five percent;

(2) Weekly year-to-date payroll reports by pay period of all gross pay components, including, but not limited to, regular time, overtime, and supplemental pay for each city department;

(3) Weekly overtime reports that provide the total amount of overtime payments made year-to-date, by department and pay period, along with all related documentation, including, but not limited to, written supervisory approvals and detailed department justification for the approved overtime;

(4) Monthly 90-day overtime spending projections that detail all anticipated overtime spending for the next 90 days;

(5) Biweekly expenditure reduction reports that specifically list the city's expenditure reduction initiatives, the total cost savings anticipated for each initiative, the progress on each initiative in the prior two weeks and year-to-date, and the cost savings achieved on each initiative in the prior two weeks and year-to-date. In the event an initiative fails to meet its anticipated cost savings, the report shall include a written explanation of the likely cause of the failed outcomes and the additional adjustments planned to account for the unattained expenditure reductions;

(6) Monthly cash flow projections, including updated projections that reflect anticipated inflows, outflows, and projected ending balances for all city funds;

(7) Monthly reports of all city bank account balances after reconciliation.

(8) The reporting requirements of this section shall continue from the date this ordinance becomes effective until such time as the indebtedness represented by the revenue notes is paid in full.

(M.C.S., Ord. No. 30522, § 1, 11-6-25)

Sec. 70-415.349. Administration of fund.

The director of the department of finance shall administer the fund in accordance with this division. The fund shall be kept in an interest-bearing account and all interest accruing therein shall be to the benefit of and become part of the fund.
(M.C.S., Ord. No. 30522, § 1, 11-6-25)

DIVISION 56. CRESCENT CITY CONNECTION BRIDGE LIGHTING FUND

Sec. 70-415.350. Fund created.

There is hereby created a special fund designated as the Crescent City Connection Bridge Lighting Fund (hereinafter "fund").
(M.C.S., Ord. No. 30708, § 1, 7-23-26)

Sec. 70-415.351. Funding and purpose.

The fund shall be used exclusively for maintenance, operational, and programming costs associated with decorative lighting on the Crescent City Connection Bridge. All revenues collected from the operation of any bridge-lighting display program shall be deposited into the fund.
(M.C.S., Ord. No. 30708, § 1, 7-23-26)

Sec. 70-415.352. Restrictions on the fund.

Moneys deposited into the fund shall remain in the fund until spent for the purposes specified in this division. The funds may not be transferred into the general fund or any other funds.
(M.C.S., Ord. No. 30708, § 1, 7-23-26)

Sec. 70-415.353. Reports.

The director of the department of finance shall keep detailed and accurate records in the administration of the fund and shall make annual reports to the chief administrative officer and the city council, giving a complete and detailed written accounting of all revenues and expenditures of the fund.
(M.C.S., Ord. No. 30708, § 1, 7-23-26)

Sec. 70-415.354. Administration of the fund.

The fund shall be administered by the director of the department of finance in accordance with Home Rule Charter section 6-207 and shall be maintained in an interest-bearing account with interest accruing to the benefit of and to become part of the fund."
(M.C.S., Ord. No. 30708, § 1, 7-23-26)

ARTICLE IV. PURCHASES AND CONTRACTS*

DIVISION 1. GENERALLY

Sec. 70-416. Advertised specifications for certain work to call for payment of minimum wages.

The advertised specifications for every contract in excess of $25,000.00, to which the city is a party, for construction, alteration or repair, including painting and decorating, of public buildings or public works of the city, which requires or involves the employment of mechanics or laborers, shall contain a provision listing each job classification and stating specifically the minimum wages to be paid to the various classes of workmen, laborers and mechanics to be employed on the job, based on wages that will be determined by the Secretary of the United States Department of Labor, to be the prevailing wages for the corresponding classes of laborers and mechanics employed on projects in the city of a character similar to the contract work to be performed. Prevailing wages listed in the specifications must be obtained from the appropriate source within 30 days before the specifications are advertised or publicized, and the contract must be signed within 90 days thereafter.
(Code 1956, § 2-41)

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*__Charter references—__Purchases and contracts, requirements, §§ 4-401(5), 4-1301, 6-102(3), 6-301 et seq.; contracts, generally, § 6-308.

__State law references—__Purchases, R.S. 38:2181 et seq.; procurement code, R.S. 39:1551 et seq.

Sec. 70-417. Stipulation required in contracts.

Every contract based upon the specifications referred to in section 70-416 shall contain a stipulation that:

(1) The contractor and each of his subcontractors shall pay all mechanics and laborers employed directly upon the site of the work unconditionally and not less often than once a week, without subsequent deduction or rebate on any account except deductions required by law or authorized by the employee, wages at rates of pay not less than those stated in the advertised specifications, regardless of any contractual relationship which may be alleged to exist between the contractor and subcontractor or subcontractor and such laborers and mechanics.

(2) The scale of wages to be paid shall be posted by the contractor and each subcontractor in a prominent and easily accessible place at the site of the work.

(3) After notification of the award of a contract, the principal contractor shall submit to the director of the department of finance of the city a list of all subcontractors employing mechanics and laborers for the performance of work directly upon the site of the project.

(4) Each contractor shall submit to the director of the department of finance, simultaneously with each request for payment of contract funds pursuant to the terms of his contract with the city, or at least one time each week, whichever is the shorter period, but not later than seven work days following completion of the work week reported upon in a payroll, a certified copy of each weekly payroll, including the payroll of each subcontractor, on work covered by this section, containing the name, job classification, social security number, number of hours worked each day (regular and overtime), total hours worked each week (regular and overtime), rate of pay including overtime rate, fringe benefit payments, all payroll deductions other than those required by federal, state or local statutes, and the total amount earned during such period by each employee on such covered work.

(5) If the contractor or any of his subcontractors employing mechanics or laborers

directly upon the site of the work fails to pay the wages provided for in the specifications, the director of the department of finance may, after 30 days written notice to the prime contractor, cause to be withheld from the contractor so much of the accrued payments as may be considered necessary to pay laborers or mechanics employed by the contractor or any of his subcontractors on the work the difference between the rates of pay required by the contractor to be paid laborers or mechanics on the work, and the rates of pay received by such laborers and mechanics. In addition, the contractor or any of his subcontractors, whichever fails to make the required payments, shall be ineligible to bid on any city construction, alteration or repair work for a period of two years from the date the violation of the contract occurred, provided such failure to make the required payments is a willful and intentional violation of the contract requirements. If the contractor or any of his subcontractors employing mechanics or laborers directly upon the site of the work fails to submit the payrolls provided for in subsection (4) of this section, the director of the department of finance may, after 30 days written notice to the prime contractor, take such action as may be necessary to cause the suspension of any further payments until such payrolls are submitted.

(6) Neither a contractor nor subcontractor may assign or transfer its rights, duties, or obligations under an agreement without the prior written consent of the city, which consent must be approved by a resolution of the city council.

(7) A transfer requiring the prior written consent of the city, as described in the preceding subsection, shall occur upon a change in ownership of the contractor or subcontractor. A "change in ownership" shall occur on the date that any one person, or more than one person acting as a group, acquires, directly or indirectly, an aggregate ownership interest in the contractor or subcontractor that exceeds 50 percent of the fair market value of the contractor or subcontractor or 50 percent of the total voting power of the contractor or subcontractor. The foregoing shall not apply to the acquisition of additional ownership interests by a person whose ownership interest in the contractor or subcontractor exceeds 50 percent of the fair market value of the contractor or subcontractor or 50 percent of the total voting power of the contractor or subcontractor as of the effective date of the contract.

(Code 1956, § 2-42; M.C.S., Ord. No. 29236, § 1, 10-20-22)

Sec. 70-417.1. Stipulation to include as standard in language listed in contracts.

Every contract in excess of $15,000.00, to which the city is a party, shall contain as stipulation the requirements that the contractor shall provide:

(1) A sworn affidavit listing all persons, natural or artificial, with an ownership interest in the contractor. An "ownership interest" shall not be deemed to include ownership of stock in a publicly traded corporation or ownership of an interest in a mutual fund or trust that holds an interest in a publicly traded corporation.

(2) A sworn affidavit stating that no other person holds an ownership interest in the contractor via a counter letter.

(3) A list of all persons, natural or artificial, who are retained by the contractor at the time of the contract's execution and who are expected to perform work as subcontractors in connection with the contractor's work for the city.

(4) The contracts governed by this section shall contain a provision that in regard to any subcontractor proposed to be retained by the contractor to perform work on the contract with the city, the contractor must provide notice to the city within 30 days of retaining said

subcontractor. If the contractor fails to submit the affidavits and lists provided for in this section, the director of the department of finance may, after 30 days' written notice to the prime contractor, take such action as may be necessary to cause the suspension of any further payments until such affidavits and list are submitted.

(5) The city attorney shall enforce the requirements set forth in this section.

(M.C.S., Ord. No. 23986, § 1, 6-1-10)

Sec. 70-417.2. Stipulation to include as standard language listed in construction contracts of $50,000.00 or more.

Every construction contract of $50,000.00 or more, entered into by the city, shall contain as stipulation the requirements that the contractor and all subcontractors thereof shall:

(1) Comply with all federal, state and municipal laws governing all labor and employment associated with work performed in the conduct of the contract. Contractors shall include within the terms of its contracts with subcontractors that subcontractors are subject to the provisions of this section and shall be required to comply with all requirements set forth herein. Contractors shall be responsible for any of its subcontractors' violations of the provisions of this section.

(2) Contractors, and subcontractors thereof, governed by the provisions of this section shall notify the city attorney within 90 days of issuance of any determination by a federal or state agency, or of any judgment issued by a court of competent jurisdiction, finding that in the conduct of performing work contracted by the city, the contractor or any of its subcontractors violated labor or employment laws applicable to this section. Said notification shall include the specific charge(s) filed against the contractor or any of its subcontractors; the date(s) of occurrence of the allegation(s); the identity of each specific city contract under which said findings and/or judgments were issued; an official copy of the administrative finding or court judgment; and shall also include the contractor's or subcontractor's written plan detailing actions taken and/or planned to be taken to correct all sustained violations. The city attorney, upon receipt of such notification, shall provide a copy of said notice to the Chief Procurement Officer of the City of New Orleans.

(3) If after 90 days from the date of issuance of a finding of said violation(s) by a federal agency, state agency, or by a judgment by a court of competent jurisdiction, the contractor or its subcontractor fails to provide notification as required in this section; or fails to provide a plan to correct all said violations sustained by such findings or judgments, the city attorney, upon receipt of information that a violation of this section has occurred, shall issue written notice to the prime contractor and may take such action as may be necessary to enforce the provisions of this section, including the pursuit of any appropriate civil remedies available. Upon receipt of said written notice, the city attorney shall also provide a copy of such notice to the Chief Procurement Officer of the City of New Orleans. Enforcement shall be suspended pending the final outcome of any legal and/or administrative appeal process filed by the contractor or subcontractor provided, however, that contactors shall remain subject to all non-enforcement provisions of this section.

(4) The city attorney shall enforce the requirements set forth in this section.

(M.C.S., Ord. No. 24805, § 1, 3-15-12; M.C.S., Ord. No. 28842, § 1, 11-4-21)

Sec. 70-417.3. Post-award contract changes prohibited.

(a) It shall be unlawful for the city to enter into any publicly bid or competitively selected contract where there is a material change in the

terms of the contract between the date on which a winning vendor is selected and the execution of the contract.

(b) For purposes of this section, a "material change" occurs in the following circumstances:

(1) The contract reflects an expansion of or significant alteration in the scope of work as publicly advertised;

(2) The winning vendor increases the price in the submitted bid or proposal or significantly modifies the terms of the submitted bid or proposal; or

(3) In the case of a competitively selected professional services agreement, the winning vendor eliminates or substitutes any subcontractor or third-party vendor whose participation and services (i) are described in the submitted bid or proposal and (ii) materially contributed to the evaluation and selection of the winning vendor for the project. This shall not include circumstances where a subcontractor or third-party vendor described in the submitted bid or proposal cannot provide services through no fault of the winning vendor; but shall include circumstances where the replacement or substitution of the subcontractor or third-party vendor is a result of the failure to agree to economic terms that were, or could have been, agreed to at the time proposals were submitted.

(M.C.S., Ord. No. 30320, § 1, 4-24-25)

Sec. 70-418. Bidders must exhibit license certificate.

All contractors bidding for city work must show their license certificates to the director of the department of finance; otherwise their bids will not be considered.
(Code 1956, § 2-43)

Sec. 70-419. Fees for specifications.

The director of the department of finance shall charge in advance each person requesting bid specifications, prepared by the city, other than as detailed in section 146-71, a sum of $20.00 per set of specifications.
(Code 1956, § 2-43.1)

Sec. 70-420. Sale to city without purchase order forbidden.

No person shall sell and deliver to any official, deputy official, employee, agent or other person in the service of the city any materials, supplies or commodities of any nature without having first obtained through the bureau of purchasing a proper purchase order therefor, which has been duly signed by an officer or employee of the bureau having authority to order such purchase.
(Code 1956, § 2-44)

Sec. 70-421. Sales unauthorized and not to be paid.

Any materials, supplies or commodities of any nature which shall be delivered by any person to any official, deputy official, employee, agent or other person in the service of the city in violation of the provisions of section 70-420 shall constitute the subject of an unauthorized purchase and the city auditor shall not audit any such purchase and the city treasurer shall not draw a check of the city in payment therefor.
(Code 1956, § 2-45)

Sec. 70-422. Clerk to forward notary material for contracts, etc.

On the promulgation of any ordinance which may be adopted by the council, having for its object or purpose or in contemplation a written or notarial contract, agreement, bond, act, sale or purchase or any authentic act to which the city may be a party or in which it may have any interest, the clerk of the council shall forthwith forward to one of the official notaries of the city a duly certified copy of such ordinance, together with all essential papers or other matter relating to the subject matter of such ordinance as may have come into his custody or possession, taking the receipt of the city notary for all such papers or other matter so delivered.
(Code 1956, § 2-46)

Sec. 70-423. When two or more contracts embodied in one act.

When two or more contracts for the same character of work on similar specifications are let out on the same day at like figures and rates to one person, the city notary shall embody such contracts into one act.
(Code 1956, § 2-47)

Sec. 70-424. Copies of adjudicated contracts to be sent to director of finance.

Whenever a contract shall have been adjudicated in any department and approved by the council, the city notary before whom the contract was executed shall furnish a notarial copy of the contract to the director of the department of finance, numbered in regular series for each department. The director of the department of finance shall cause an abstract of such contract to be entered into a book to be called the contract book, which shall be properly indexed and classified for convenient reference.
(Code 1956, § 2-48)

Sec. 70-425. Report of nonfulfillment of contracts.

The director of the department of finance shall report to the council the nonfulfillment of all contracts in which the city may be interested.
(Code 1956, § 2-49)

Charter reference—Appointment of official notaries for city work, § 4-404.

Sec. 70-426. Signatures required on certain contracts.

Any contract for professional services pertaining to the exercise of the council's powers of supervision, regulation and control of public utilities or the review of assessments shall contain the signature of the president of the city council. A copy of any such contract shall be retained in the files of the clerk of council.
(Code 1956, § 2-49.1)

Sec. 70-427. Maintenance of storehouses, etc.

The director of the department of finance shall supervise all storerooms and warehouses established and placed under his control.
(Code 1956, § 2-50)

Sec. 70-428. Emergency purchases.

The council may suspend the requirements of law for the advertising and letting to the lowest responsible bidder for certain public work and purchases in emergencies in accordance with the provisions of this section. The following provisions shall apply to all departments, commissions, boards and agencies of the city, except as may be otherwise provided by applicable and preemptive law:

(1) Written documentation stipulating the nature of the emergency shall be submitted to the chief administrative officer, the city attorney, and the director of the department of finance by the head or executive officer of the department, board, commission, or agency affected.

(2) The chief administrative officer, the city attorney and the director of the department of finance shall give the council their recommendations regarding the emergency situation. The chief administrative officer or his designated representative shall provide the council with a written report regarding the emergency, the recommendation of the department of law, department of finance, and the chief administrative office, and all the information required by subsection (4) of this section. If the cost of the emergency exceeds $25,000.00, the chief administrative officer or his representative shall attempt to give immediate verbal notification to each member of the council.

(3) If the nature of the emergency requires immediate action prior to the next scheduled regular or special council meeting, the chief administrative officer shall be notified before other action is taken.

(4) A proposed motion declaring an emergency shall be submitted to the council at the next scheduled regular or special meeting following the emergency by the affected department or agency. The motion shall recite the exact nature of the emergency, list all contractors who have been contacted or will be contacted for an informal bid on the necessary work, specify the amounts of any bids offered by contractors who have been contacted, the source of funds, the estimated cost of the emergency and the estimated completion date of the work or delivery date of the movable to be purchased.

(5) After consideration of the evidence and recommendations submitted, the council may adopt the motion declaring an emergency and authorize the emergency purchase or public work.

(6) The director of the department of finance shall report any deviations from the procedure established by this section to the council. The official responsible for the deviation shall be required to appear before the council and provide an explanation of the deviation.

(Code 1956, § 2-50.1)

Sec. 70-429. Reports following emergency purchases.

(a) A department or agency head who has requested an emergency purchase or procurement of public work shall file a written report with the council within 21 days following the adoption of the motion authorizing the emergency purchase or work.

(b) The report shall indicate whether or not the movable purchased has been delivered or whether the work has been completed, the name and address of the vendor or contractors selected, the names of all vendors or contractors contacted, and the exact cost of the emergency or public work.

(Code 1956, § 2-50.2)

Sec. 70-430. Timely payment for contracted obligations.

Unless otherwise provided therein, the city shall pay all obligations due and payable under the terms of a contract within 30 days, including weekends and holidays, of receipt of the vendor's request for payment which is certified in accordance with the terms of the contract. The city shall not withhold payment, in whole or in part, arbitrarily or without reasonable cause.

(M.C.S., Ord. No. 29884, § 1, 4-4-24, eff. 4-30-24)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 29884, M.C.S., Ord. No. 17,424, § 1, adopted Feb. 15, 1996, repealed § 70-430, which pertained to purchases of less than $1,000.00 and derived from Code 1956, § 2-50.3.

Sec. 70-431. Timely payment of subcontractors and suppliers.

(a) *Definitions.* For purposes of this section the following definitions shall apply:

(1) "Supplier" means a person who has supplied labor or materials to a contractor in the execution of work provided for in a city contract.

(2) "Undisputed amount" means any amount owed by a contractor to a subcontractor or supplier for work performed or materials supplied and for which there is no good-faith defense to payment.

(b) *Prompt payment required.* Any person who contracts with the city or its agencies to provide goods and services and is paid with city funds shall pay all subcontractors or suppliers any undisputed amounts for which the contractor has been paid within 30 days of receiving a progress or final payment from the city encompassing the subcontracted work or supplies. The department administering the contract must respond to a subcontractor or supplier within two business days and notify them of the dispute resolution timeline and process as required under subsection (c).

(c) *Dispute resolution procedure.* Any person who contracts with the city or its agencies to provide goods and services and is paid with city funds shall be deemed to agree to and abide by the dispute resolution procedures set forth in this section to ensure the timely payment of subcontractors or suppliers.

(1) If a contractor intends to not pay a subcontractor or supplier in full within the required 30-day period for any reason,

the contractor shall promptly notify the subcontractor or supplier in writing and state the reason why payment is being withheld, and shall provide a copy of such notice of nonpayment to the department administering the contract.

(2) The subcontractor or supplier may notify in writing the department administering the contract, and the office or supplier diversity if the subcontractor or supplier is a certified disadvantaged business enterprise, if it does not receive payment timely or otherwise disputes the basis for nonpayment reflected in the contractor's notice of nonpayment. The subcontractor's or supplier's notice shall: (i) identify the contractor, the project related to the disputed amount, and the amount in dispute; (ii) provide detailed and itemized supporting documentation substantiating the subcontractor's or supplier's entitlement to payment; and (iii) an explanation for any dispute concerning payment by the contractor, if known.

(3) Within five business days of receipt of written notice from a subcontractor or supplier, the department administering the contract shall contact the contractor in writing to ascertain whether the amount withheld is an undisputed amount. If the contractor fails to respond within five business days, or if the department decides that a part or all of the amount withheld is an undisputed amount, the department shall notify the contractor and subcontractor supplier in writing of its determination of the undisputed amount, and shall instruct the contractor to pay the subcontractor or supplier the undisputed amount within five business days.

(4) If the contractor fails to pay the subcontractor within five business days of receipt of the department's notice of determination of the undisputed amount, the unpaid subcontractor or supplier may notify the department administering the contract in writing of the nonpayment. Within ten business days of receiving notice of nonpayment of the undisputed amount, the department shall conduct a meeting with the contractor and subcontractor or supplier to evaluate the reasons for nonpayment and determine if the contractor is delinquent in payment of an undisputed amount. At the discretion of the department, the meeting may be conducted in-person, telephonically, or virtually. In advance of this meeting, the department shall furnish copies of the bid documents submitted by the contractor and the signed contract to the subcontractor or supplier. The department may require the parties to provide any additional information that the department believes necessary to evaluate the dispute.

(5) At the conclusion of the meeting described in the preceding paragraph, the department administering the contract shall issue a final decision and shall notify the parties and, if the subcontractor or supplier is certified as a disadvantaged business enterprise, the office of supplier diversity, in writing of such decision.

(6) The contractor shall notify the department administering the contract upon payment of any undisputed amount. If the contractor fails to pay all undisputed amounts within ten business days of the department's final decision, the department shall cease payments to the contractor until payment of the undisputed amounts to the subcontractor or supplier is verified. In addition, the department may: (i) suspend work under the contract based on the failure of the contractor to meet its obligations under the contract; (ii) assess liquidated damages in an amount not exceeding $100 per day from the date on which the undisputed payment was initially due pursuant to subsection (b); and (iii) seek to enforce any available payment bond.

(d) *Appeals.* A contractor, a subcontractor, or a supplier may appeal the department's final decision issued pursuant to subsection (c). The process for appeals shall be established by the chief administrative officer.

(e) *Cause of action.* No act, failure to act, or decision by any representative of the city in carrying out the terms of this section shall give rise to a cause of action against the city by a contractor, subcontractor, or supplier.

(f) *City contracting.* Each city contract shall include a provision requiring prompt payment to subcontractors and suppliers in accordance with the terms and dispute resolution procedures of this section.

(g) *Waivers.* Requests to waive any of these provisions shall be approved by the chief administrative officer in writing.
(M.C.S., Ord. No. 30423, § 1, 8-21-25)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 30423, § 1, adopted August 21, 2025, M.C.S., Ord. No. 17,424, § 1, adopted Feb. 15, 1996, repealed § 70-431, which pertained purchases of $1,000.00 or more not regulated by state law and derived from Code 1956, § 2-50.4.

Sec. 70-432. Reserved.

Editor's note—M.C.S., Ord. No. 25371, § 1, adopted June 20, 2013, repealed § 70-432, which pertained to procurement from small businesses; set aside; preference to disadvantaged; preferences to women and derived from Code 1956, § 2-50.5.

Sec. 70-432.1. Reserved.

Editor's note—M.C.S., Ord. No. 25371, § 1, adopted June 20, 2013, repealed § 70-432.1, which pertained to local and disadvantaged business enterprise (DBE) goals for the City of New Orleans and derived from M.C.S., Ord. No. 23587, § 1, adopted June 18, 2009.

Sec. 70-433. Attestation required on certain contracts.

(a) An attestation from the director of the department of finance shall be required to be attached on any contract to which the city is a party involving professional or personal services for which payment is rendered by the city, leases for real property leased by the city, or financial obligations involving an expenditure in excess of $10,000.00. The signature of the director of the department of finance on such attestation shall constitute approval of the contract as to the availability of funds to fulfill the financial obligations contained in the contract and the director of the department of finance shall not sign any attestation if funds in the amounts and for the purposes set forth in the contract are not available.

(b) Professional services contracts for purposes of this section are those contracts that are executed per executive order pursuant to subsection 6-308(5)(b) of the Home Rule Charter. Professional services contracts are awarded after a selection committee reviews responses to a request for proposals and makes a recommendation to the mayor, rather than being awarded through the public bid process.

(c) The clerk of council shall maintain a copy of all council-let professional services contracts and any subsequent amendments for the duration of the contract as part of the official records of that office. It shall be the duty of each council department to provide such contracts or amendments to the clerk of council no later than 14 business days after final execution. All such contracts and amendments shall be made available, by the city council communications consultant, to the public and shall be placed on the city council website in a conspicuous manner for at least five years after the expiration of the contract for any contract signed after July 31, 2008.

(d) The city attorney shall maintain a copy of all professional services contracts and any subsequent amendments which the city is a party to as part of the official records of that office. It shall be the duty of each department within the control of the mayor of the city to provide such contracts and amendments to the city attorney no later than 14 business days after final execution. All such contracts and amendments shall be made available to the public. The chief administrative officer shall be responsible for ensuring that all contracts are placed on the city's website in a conspicuous manner for at least five years after the expiration of the contract for any contract signed after July 31, 2008. Contracts that qualify for exemption under R.S. 42:6.1(A)(3) shall be exempt from public posting.

(e) General application of this section shall be effective for any professional services contracts or amendments executed after July 31, 2008. This section shall be effective for any current

professional services contracts or amendments executed prior to July 31, 2008, which shall be posted no later than November 30, 2008.
(Code 1956, § 2-50.6; M.C.S., Ord. No. 23202, § 1, 8-29-08)

Sec. 70-434. Monitoring and evaluation.

(a) All offices, departments, boards, commissions, and agencies of the Executive Branch that administer contracts for construction or professional services shall file at least one evaluation report upon completion of the contract. All evaluation reports shall be developed by the chief administrative officer and maintained with the contract award and other compliance documents. This information shall be provided to selection committees in future related procurements.
(M.C.S., Ord. No. 26815, § 1, 3-17-16)

Secs. 70-435—70-455. Reserved.

DIVISION 2. EQUITABLE BUSINESS OPPORTUNITIES PROGRAM*

Sec. 70-456. Definitions.

The following definitions shall apply to this division:

Commercially useful function means a discrete task or group of tasks performed pursuant to a contract by a DBE using its own forces or by directly and actively supervising the execution of

*__Editor's note__—M.C.S., Ord. No. 28587, § 1, adopted January 28, 2021, amended Art. IV, Div. 2, in its entirety to read as herein set out. Former Div. 2, §§ 70-456—70-466, pertained to disadvantaged businesses, and derived from M.C.S., Ord. No. 25369, § 1, adopted June 20, 2013; M.C.S., Ord. No. 26367, § 1, adopted April 23, 2015; M.C.S., Ord. No. 27878, § 1, adopted Sept. 20, 2018.

the tasks by another entity for whose work the DBE is responsible. In determining whether a DBE is performing a commercially useful function, factors include, but are not limited to:

(1) Whether the DBE has the skill, licensure, and expertise to perform the work;

(2) Whether the DBE is in the business of performing, managing, or supervising the work; and

(3) Whether work constitutes a real and actual service that is a distinct, meaningful, and verifiable element of the work called for in a contract.

CAO means Chief Administrative Officer for the City of New Orleans.

Disadvantaged business enterprise or *DBE* means an entity or individual certified as a socially and economically disadvantaged business through the SLDBE or LAUCP-DBE program, or such other certification program as the city may designate.

Equity goal means the anticipated aggregate portion of work to be performed by DBEs in connection with a contract subject to this division.

Equitable business opportunities program or *EBO program* means the City of New Orleans' initiative to provide equal access for qualifying DBEs.

OSD means the Office of Supplier Diversity for the City of New Orleans.

Vendor means any individual or entity in a contract, or seeking to be in a contract, with the city involving public spending, public funding, and/or public incentives, including tax credits or waivers through which the city forgoes its normal taxes and fees, except as otherwise provided in this division.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-457. Policy.

The city shall provide opportunities to businesses owned and controlled by socially and economically disadvantaged persons to participate meaningfully in the contracting activities of the city that involve public spending or private projects that utilize public funding or incentives. The provisions of this division should be interpreted liberally to implement the foregoing policy to the maximum extent permissible by law.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-458. DBE or EBO program registry.

The city shall create and maintain a publicly-available registry of all businesses or individuals certified through the EBO program or otherwise certified as a DBE.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-459. Equity goal.

There is an overall equity goal of 35 percent for all public spending or private projects that utilize public funding or incentives, subject to any equity goal otherwise established pursuant to this division.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-460. Equity goal setting.

(a) Each city department, agency, board, and commission, and each corporation established by the city, shall independently attempt to ensure that its contracts, in the aggregate, attain the 35 percent equity goal established by section 70-459.

(b) The city shall implement a procedure for establishing equity goals for each contract subject to this division based on the availability of DBEs in the relevant market sector.

(c) Proposed contracts routed without a stated equity goal shall have a default goal of 35 percent.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-461. Contracting requirements for contracts executed by the City of New Orleans.

(a) The CAO shall develop standards and criteria for evaluating whether a vendor has made good-faith efforts to meet applicable equity goals, which may include:

(1) The extent to which the vendor has solicited potential DBEs through reasonable and available means;

(2) The extent to which the vendor has identified commercially useful functions to be performed by DBEs; and

(3) The extent to which the vendor has negotiated with DBEs in good-faith.

(b) A vendor may count toward its contract equity goal only those DBE subcontractors/suppliers performing a commercially useful function. This shall include the entirety of any and all charges imposed by the DBE in connection with its performance of the contract.

(c) Only DBEs certified as of the date that bids or proposals are opened may be considered for the purpose of determining whether a vendor is in compliance with this division. Should a DBE lose its certification before commencing its work under a contract, or otherwise become unable to perform, the prime vendor shall use best efforts to secure a replacement DBE vendor.

(d) Subcontracting by DBEs shall be subject to rules promulgated by the CAO in accordance with section 70-465. Subcontracting of work allocated to DBEs shall not be allowed if it will frustrate the purposes of this division or cause an unreasonable portion of the work allocated to DBEs to be performed by non-DBEs. DBE subcontractors must perform at least 51 percent of the sub-contracted work with their own forces.

(e) A DBE that is the prime vendor on a particular contract shall be deemed to have achieved 100 percent DBE utilization with respect to that contract, subject to a review of good faith efforts and equity goal achievement as determined by OSD.

(f) The CAO may waive the equity goal applicable to a particular city contract upon request. A request to waive the equity goal for a particular contract must be submitted to the CAO in writing and must set forth in reasonable detail the reasons for the request. No waiver shall be granted until the OSD reviews the request and provides the CAO a written recommendation.

(g) Except as otherwise provided in section 70-467 or by rule of the city council, the requirements of this section shall apply to city council professional services contracts procured in accordance with section 6-308(5)(c) of the Home Rule Charter.

Sec. 70-462. Reporting for contracts executed by the City of New Orleans.

(a) The CAO shall submit an EBO program report to the city council by October 1 of each year identifying the city's equity goals and attainment rates for the prior two years.

(b) The CAO, department of finance, office of supplier diversity, and the office of performance & accountability, shall prepare and submit an annual equitable business opportunities scorecard program report to the city council by October 1 of each year of all contracts executed by the city in the preceding year pursuant to section 6-308(1) of the Home Rule Charter, sorted by department, identifying equity goals, and attainment rates. The equitable business opportunities scorecard program report shall also include, but is not limited to, the following information:

(1) The total number and value of all contracts awarded during the reporting period;

(2) The total number and value of all contracts awarded to DBEs as prime contractors (expressed as a percentage and dollar value of (1));

(3) The total number and value of all contracts awarded by non-DBE prime contractors to DBEs as subcontractors (expressed as a percentage and dollar value of (1));

(4) The overall number and value of all contracts awarded to DBEs during the reporting period (the sum of (2) and (3));

(5) Whether the contract is a procurement, professional services, personal services, or construction contract;

(6) Documentation of waivers requested from the provisions of this section for any city contract, with the recommendations of OSD and CAO determination on the waiver request outcome;

(7) Actual city spending in the preceding calendar year broken down by all depart-

ments and agencies listed in section 70-466 of the City Code. Such reporting shall measure the actual spending of each department or agency in the preceding calendar year, not the registered value of contracts, which may not result in actual spending and can often span multiple years;

(8) Percent of city-awarded contracts and actual spending with minority- and women-owned business enterprises;

(9) Whether actual spending in a given department or agency represents adherence to DBE goals set forth in section 70-459, as well as adherence of a given department or agency to meet or surpass DBE goals over the most recent five years, if applicable;

(10) Number of certified minority- and women-owned business enterprises versus the same enterprises' share of annual city spending, if available;

(11) Applicable updates with respect to OSD's Mentor/Protégé program, by department or agency;

(12) Overall letter grade for the City of New Orleans and for each individual department and agency, and methodology for determining grades;

(13) If a given department or agency fails to meet DBE goals set forth in section 70-459, an enumerated list of strategies to bring the department or agency into compliance should be included;

(14) Total emergency procurement spending that otherwise falls under the EBO program;

(15) Key recommendations by department or agency to encourage or grow DBE-compliance; and

(16) Compliance with the procurement set-aside program found in section 70-468 broken down by city department or agency and contract type.

(c) The annual equitable business opportunities scorecard program report shall be made available on the City of New Orleans website.

(d) The chief administrative office, department of finance, office of supplier diversity, and the office of performance & accountability shall create an update public-facing dashboard with information required in section 70-462.
(M.C.S., Ord. No. 28587, § 1, 1-28-21; M.C.S., Ord. No. 29383, § 1, 3-23-23; M.C.S., Ord. No. 29654, § 1, 9-21-23)

Sec. 70-463. Reporting for contracts executed by city agencies, corporations, boards, and commissions.

(a) Each city agency, board, and commission, and each corporation established by the city, shall prepare and submit an annual report to the city council by October 1st of each year identifying their equity goals and attainment rates for the prior two years. The DBE report shall include the following information:

a. The total number and value of all contracts awarded during the reporting period;

b. The total number and value of all contracts awarded to DBEs as prime contractors (expressed as a percentage and dollar value of (a));

c. The total number and value of all contracts awarded by non-DBE prime contractors to DBEs as subcontractors (expressed as a percentage and dollar value of (a));

d. The overall number and value of all contracts awarded to DBEs during the reporting period (the sum of (b) and (c)); and

e. Whether the contract is a procurement, professional services, personal services, or construction contract.

(b) Any city agency, board, or commission, or corporation established by the city, that does not attain the overall equity goal of 35 percent shall submit with their annual EBO report to the city

council a detailed explanation as to why the overall goal was missed and outline a plan to meet applicable equity goals.

(c) The reporting requirement set forth in this section is the sole responsibility of each city agency, board, or commission, or corporation established by the city. OSD shall not be responsible for enforcing the reporting requirement in this section or monitoring the compliance of contracts that are not executed by the city pursuant to section 6-308(1) of the Home Rule Charter.
(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-464. Remedies for non-compliance for contracts executed by the City of New Orleans.

In addition to any other corrective action allowed by law, contract, or city policy, any vendor in contract with the city that fails to comply with the provisions of this division may be subject to corrective action, which may include but need not be limited to:

(1) Withholding of all or any portion of payments due to the vendor until the non-compliance is cured;

(2) Liquidated damages;

(3) Termination of any or all of the vendor's contracts with the city; and

(4) Suspension, debarment, or determination of non-responsibility.

(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-465. Authority.

The CAO shall have authority to implement this division and shall promulgate regulations pursuant to City Code section 2-1000 to implement the provisions of this division, including without limitation establishing procurement and contract requirements that shall address but need not be limited to:

(1) Designation of representative(s) to implement this division;

(2) Determination of equity goals;

(3) Vendor reporting of DBE utilization;

(4) Standards and criteria for the evaluation and documentation of vendors' good faith efforts;

(5) The prompt payment of DBEs in accordance with law;

(6) The modification of DBE utilization by vendors;

(7) Subcontracting by DBEs; and

(8) Monitoring vendor compliance with determined equity goals.

(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-466. Application.

(a) Except as otherwise provided and subject to all local, state, and federal laws affecting the city's procurement of goods and services or use of funds, this division shall apply to all contracts of the city, including all departments, agencies, corporations, boards, and commissions, that utilize any public spending, public funding, and/or public incentives, including tax credits, payment in lieu of taxes (PILOT) incentives or waivers through which the city forgoes its normal taxes and fees.

(b) The following city boards and commissions are subject to the provisions of this division, and shall submit their annual report regarding any of their contracts that are not executed by the city pursuant to section 6-308(1) of the Home Rule Charter to the city council by October 1st of each year:

(1) Board of Building Standards and Appeals

(2) Board of Zoning Adjustments

(3) Delgado Albania Plantation Commission

(4) Board of Trustees of the Municipal Employees' Retirement System

(5) Board of Trustees to the Police Pension Fund

(6) Board of Trustees of the Firemen's Pension and Relief Fund

(7) Board of Liquidation, City Debt

(8) Public Belt Railroad Commission

(9) Sewerage and Water Board

(10) Public Library Board

(11) New Orleans Aviation Board

(12) Vieux Carré Commission

(13) Audubon Park Commission

(14) New Orleans Alcoholic Beverage Control Board

(15) New Orleans Recreational Development Commission

(16) Human Rights Commission

(17) Civil Service Commission

(18) Board of City Trusts

(19) Central Business District Historic District Landmarks Commission

(20) New Orleans Historic District Landmarks Commission

(21) Mosquito Control Board

(22) Ethics Review Board

(23) Children Youth and Planning Board

(c) The following corporations are subject to the provisions of this division, and shall submit their annual report regarding any of their contracts that are not executed by the city pursuant to section 6-308(1) of the Home Rule Charter to the city council by October 1st of each year:

(1) French Market Corporation

(2) Industrial Development Board

(3) Municipal Yacht Harbor Management Corporation

(4) New Orleans Access Television Board

(5) New Orleans Building Corporation

(6) New Orleans Tourism and Cultural Fund

(7) Parking Facilities Corporation

(d) New Orleans Redevelopment Authority (NORA) will work to implement policies and procedures consistent with its enabling legislation and the objectives of this division as it relates to the utilization of DBEs when disposing of property in the aggregate of 25 or more residential properties in connection with a program funded by the city. These policies and procedures must be approved by the board of commissioners of NORA as deemed appropriate subject to Louisiana R.S. 33:4720.55 and prior to implementation.

(e) Exempt contracts. This division shall not apply to:

(1) The procurement of immovable property;

(2) The resolution of any legal claim;

(3) Cooperative endeavor agreements;

(4) Any procurement to satisfy declared emergency needs;

(5) Restoration tax abatement credits for owner-occupied residential properties not exceeding six residential units;

(6) Any procurement or contract, except those for public works, valued at less than the applicable formal competitive procurement threshold; and

(7) Any procurement or contract valued at $15,000.00 or less.

(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-467. City council contracts.

(a) Before the council votes to award a contract pursuant to this section, a selection review committee composed of the city council chief of staff and two other staff members designated by the chief of staff shall review all proposed vendors and evaluate whether the proposal complies with the equity goal and/or whether the respondent has made a good-faith effort to comply with the equity goal.

(b) In determining whether a vendor has made good-faith efforts, the selection committee shall consider the criteria set forth in section 70-461(a)(1)—(3) and such other factors as a the committee deems appropriate, including the availability of DBEs in the relevant market and the extent to which the contract is susceptible of performance by being subcontracted.

(c) The city council chief of staff, upon consultation with councilmembers, may waive the equity goal applicable to a particular contract. No waiver shall be granted until the OSD reviews the request and provides the council chief of staff a written recommendation.

(d) This division does not apply to the following city council contracts:

(1) Professional services contracts for an individual councilmember

(2) The city council's annual audit; and

(3) Emergency situations, as provided nu [by] council rule.

(e) Ongoing monitoring of the equity goals provided herein shall be performed by the OSD to ensure that all applicable council contracts after award continue to meet their goals or make good faith efforts relative thereto, throughout the duration of the contract. Any determinations of non-compliance shall be timely reported in writing to the city council.

(f) The city council research office or the council fiscal office shall compile an annual report to the city council and submit such report by March 31 of each year identifying the council's DBE participation goals and attainment rates for professional service contracts granted the prior year. The EBO program report shall include the following information:

a. The total number and value of all contracts awarded during the prior year;

b. The total number and value of all contracts awarded to DBEs as prime contractors (expressed as a percentage and dollar value of (a));

c. The total number and value of all contracts awarded by non-DBE prime contractors to DBEs as subcontractors (expressed as a percentage and dollar value of (a)); and

d. The overall number and value of all contracts awarded to DBEs during the reporting period (the sum of (b) and (c)).

(g) OSD shall monitor all contracts issued pursuant to this section to ensure ongoing and continued compliance with the goals provided herein throughout the entire contract term. OSD shall notify the council's chief of staff in writing within five business days of determining that a contract is not in compliance with the goals provided herein.

(M.C.S., Ord. No. 28587, § 1, 1-28-21)

Sec. 70-468. Procurement set-aside program.

The CAO shall implement a socially and economically disadvantaged procurement set-aside program, in accordance with La. Rev. Stat. 38:2233.5 and shall promulgate rules and regulations pursuant to City Code section 2-1000 to implement the provisions thereof. The rules and regulations promulgated in accordance with this section shall be governed by the following requirements.

(a) Each year, the CAO, in conjunction with the director of finance, shall designate and set aside an amount equal to at least ten percent but not more than 25 percent of anticipated local procurement of goods and services for contracting directly with DBE vendors.

(b) When making the annual designation of procurement set-asides, an attempt shall be made to vary included procurements to allow for a variety of goods and services.

(c) Goods and services shall include construction or any public works project, including alteration or repair.

(d) The failure to set aside particular procurements shall not be considered to prohibit or discourage socially and economically disadvantaged businesses from seeking the procurement award through the normal solicitation and bidding processes.

(e) The failure to set aside particularly procurements shall not be considered to prohibit or discourage socially and economically disadvantaged businesses from seeking the procurement award through the normal solicitation and bidding processes.

(f) No business may be awarded a contract pursuant to the provisions of this section unless it has met the certification requirements through the SLDBE or LAUCP-DBE program, or such other certification program as the city may designate. Rules and regulations shall include procedures regarding the certification requirements of certified DBEs.

(g) Rules and regulations adopted shall also provide for the establishment of a contract procedure for awarding contracts pursuant to this section.

(h) Rules and regulations shall require that schedules to publicize requests for proposals, requests for qualifications, and bid solicitations shall adhere to federal guidelines.

(i) If the city or any entity outlined in section 70-466 is unable to award all of its procurement set-asides to certified DBEs during a given year, then the balance of the procurement set-asides may be awarded to other businesses in accordance with existing solicitation, bid evaluations, and contract award provisions.

(j) All laws and rules pertaining to solicitations, bid evaluations, contract awards, and other procurement regulations shall apply to procurement set-asides for certified DBEs, including penalties for noncompliance.

(k) Nothing in the procurement set-aside program, or in the implementing of rules and regulations for said program, shall be deemed to eliminate or reduce the equity goal established by section 70-459 or otherwise modify the provisions of this division for contracts not subject to the procurement set-aside.

(M.C.S., Ord. No. 29654, § 1, 9-21-23)

Secs. 70-469—70-495. Reserved.

DIVISION 3. LOCAL WORKER PARTICIPATION*

Sec. 70-496. Program created.

A program is established in the office of workforce development, or its successor, for the advancement of local workers on city-funded projects, to be known as HireNOLA.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-497. Purpose.

The purpose of HireNOLA is to link quality employment opportunities created by city construction contracts and economic development projects with local workers.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-498. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Apprenticeship program means a union or merit-based program recognized by the state and federal government that is in good standing and not within a probationary period.

Covered project means (a) any contract to which the city is a party for construction, alteration, or demolition of public buildings or public works of the City of New Orleans in excess of $150,000.00 executed on or after this law becomes effective, (b) any cooperative endeavor agreement to which the city is a party and through which the city provides tax incentives for economic development projects construction, alteration or demolition in excess of $150,000.00 executed on or after this law becomes effective, or (c) any contract to which the city is a party funded by

*__Editor's note—__Prior to reenactment by M.C.S., Ord. No. 26607, M.C.S., Ord. No. 25372, § 1, adopted June 20, 2013, repealed §§ 70-496—70-512, which pertained to set-aside and participation program for women and minorities for professional services contracts and derived from Code 1956, § 2-500, 2-502, 2-504—2-510.

the infrastructure maintenance fund. For the purpose of this definition, the "city" shall include the City of New Orleans and any of its boards, commissions, or public benefit corporations.

Craft employee request form means the form used by prime contractors and their subcontractors to request dispatch or referral of craft workers who are local workers or disadvantaged local work from the city or apprenticeship program.

Disadvantaged local worker means a local worker, as defined below, who (i) at the time of commencing work on a covered project has a household income of equal to or less than 50 percent of Area Median Income (AMI), adjusted for household size, of the New Orleans-Metairie-Kenner Metropolitan Statistical Area or (ii) faces of at least one of the following barriers to employment: (1) is eligible to receive public assistance; (2) suffering from chronic unemployment; (3) being a custodial single parent; (4) having a prior arrest or conviction; (5) being homeless; (6) having been emancipated from the foster care system; or (8) being a veteran or the U.S. military.

Domicile means the place at which a person has been physically present and that the person regards as home; a person's true, fixed, principal, and permanent home, to which that person intends to return and remain even though currently residing elsewhere.

Local worker means any person domiciled in Orleans Parish.

Prime contractor means any person, firm, partnership, owner operator, limited liability company, corporation, joint venture, proprietorship, trust, association, or other entity selected to perform an applicable contract.

Project work means construction work performed in the construction of a covered project.

Subcontractor means any person, firm, partnership, owner operator, limited liability company, corporation, joint venture, proprietorship, trust, association, or other entity that subcontracts directly with a prime contractor or another contractor to fulfill an applicable contract.
(M.C.S., Ord. No. 26607, § 1, 10-1-15; M.C.S., Ord. No. 28213, § 1, 10-17-19)

Sec. 70-499. Local participation goals.

(a) Prime contractors and their subcontractors shall (a) demonstrate good faith efforts to cause at least 30 percent of all work hours performed by Louisiana workers on covered projects to be performed by local workers; (b) demonstrate good faith efforts to cause at least ten percent of all work hours performed by local workers on covered projects to be performed by disadvantaged local workers; (c) demonstrate good faith efforts in the utilization of apprenticeship programs to ensure that at least ten percent of all work hours performed by Louisiana apprentices are performed by disadvantaged local workers; and (d) use the City of New Orleans as its first source for recruitment, referral and placement of all new hires for employment opportunities created by an applicable contract.

(b) The initial participation goals are that 30 percent of all work hours performed by Louisiana workers in a covered project be performed by local workers, with no less than ten percent of all project hours performed by Louisiana workers on covered projects being performed by disadvantaged local workers; and that ten percent of all work hours performed by Louisiana apprentices are performed by disadvantaged local workers. Subject to a periodic review process, the participation goals shall increase by five percent annually over five years up to participation goals of 50 percent of all project hours being performed by local workers, with no less than 30 percent of all project hours being performed by disadvantaged local workers; and that no less than 30 percent of all work hours performed by Louisiana apprentices are performed by disadvantaged local workers.

Year Effective Date that Contract is Advertised for Bid	*Participation Goals (in %) Local Workers/Disadvantaged Local Workers*
Year 1—2016	30/10/10

Year Effective Date that Contract is Advertised for Bid	*Participation Goals (in %) Local Workers/Disadvantaged Local Workers*
Year 2—2017	35/15/15
Year 3—2018	40/20/20
Year 4—2019	45/25/25
Year 5—2020	50/30/30

(c) This policy applies to all city-funded projects within the parameters described in section 70-498. Otherwise, it will be enforced to the extent allowable by the law and/or regulations of the funding source.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-500. Compliance.

The city shall not enter into any applicable contract subject to this division that is not supported by documentation establishing that the prime contractor (1) has met the local hiring goal or commits to demonstrate good faith efforts to meet the local hiring goals; and (2) commits to implement the first source provisions, as set forth below.

First source. Prime contractors and their subcontractors shall utilize the City of New Orleans as its first source for recruitment, referral, and placement of all new hires for employment opportunities created by an applicable contract. Prime contractors and their subcontractors must notify the City of New Orleans of its specific need for new employees, through the use of the craft employee request form, at least five business days before advertising the employment opportunity to the general public.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-501. Waiver of goals.

The City of New Orleans shall have the discretion to provide a written waiver of specific local participation goals, either in the RFP/bid stage or after the actual award of the contract if the contractor can establish that despite its best efforts, as determined by the City of New Orleans, the contractor was unable to meet the local hiring participation goals established for such contract.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-502. Enforcement.

The office of workforce development, or its successor, shall have primary responsibility for general oversight, administration, compliance, monitoring and enforcement of this division. The office of workforce development, or its successor, shall provide employee recruitment, referral, and placement services to prime contractors and their subcontractors in fulfillment of an applicable contract.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

Sec. 70-503. Regulations.

Pursuant to section 2-1000 of the City Code, the office of workforce development, or its successor, shall promulgate rules and regulations in accordance with the provisions contained in this division and such other rules and regulations as may be necessary for the purpose of implementing and carrying out the provisions contained herein.
(M.C.S., Ord. No. 26607, § 1, 10-1-15)

DIVISION 4. EQUAL ACCESS TO EMPLOYMENT ACT*

Sec. 70-504. Purpose.

The purpose of Equal Access to Employment Act is to prohibit city contractors from using a current or prospective employee's consumer credit report, or causing a current or prospective employee's consumer credit report to be procured, for any decision regarding the hiring and compensation or the terms, conditions, or privileges of employment.
(M.C.S., Ord. No. 26962, § 1, 6-23-16)

Sec. 70-505. Definitions.

For the purposes of this division, the following definitions shall apply:

(1) *"Consumer credit history"* means an individual's credit worthiness, credit

*__Editor's note—__M.C.S., Ord. No. 26962, § 2, adopted June 23, 2016, states: The Council of the City of New Orleans hereby ordains, that the provisions of this ordinance shall become effective after six (6) months of the date of its adoption.

standing, credit capacity, or payment history, as indicated by: (a) a consumer credit background check; (b) credit score; or (c) information an employer obtains directly from the individual regarding (1) details about credit accounts, including the individual's number of credit accounts, late or missed payments, charged-off debts, items in collections, credit limits, prior credit report inquiries, creditworthiness, credit standing, credit capacity (2) bankruptcies, judgments or liens, or (3) savings or checking account balances.

(2) *"Consumer credit report"* means any written or other communication of any information by a bank or consumer reporting agency that bears on a consumer's credit history, creditworthiness, credit standing, credit capacity or credit history.

(3) *"City"* means the City of New Orleans and any of its department, agencies, offices, boards, commissions, or public benefit corporations.

(4) *"City contract"* means (a) any contract to which the city is a party for professional services, (b) any contract to which the city is a party for construction, alteration, or demolition of public property or public works of the City of New Orleans on or after this law becomes effective, or (c) any cooperative endeavor agreement to which the city is a party and through which the city provides tax incentives for economic development projects executed on or after this law becomes effective.

(5) *"City contractor"* means any contractor that has entered into a city contract.

(6) *"Contractor"* means any person, firm, partnership, owner operator, limited liability company, corporation, joint venture, proprietorship, trust, association, or other entity selected to perform an applicable contract.

(7) *"Employee"* means any person who performs at least 40 hours of work within a calendar year while physically present within the geographic boundaries of the City of New Orleans for an employer, pursuant to the fulfillment of an applicable city contract or city financial assistance agreement."

(8) *"Prospective employee"* means any person who has applied or has expressed interest in applying to perform work on a full-time, part-time, temporary, or seasonal basis, including employees, temporary workers, contracted workers, contingent workers, and persons who have applied or have expressed interest in applying through temporary services, staffing, or employment agencies or similar entities.

(9) *"Intelligence information"* means records and data compiled for the purpose of criminal investigation or counterterrorism, including records and data relating to the order or security of a correctional facility, reports of informants, investigators or other persons, or from any type of surveillance associated with an identifiable individual, or investigation or analysis of potential terrorist threats.

(10) *"National security information"* means any knowledge relating to the national defense or foreign relations of the United States, regardless of its physical form or characteristics, that is owned by, produced by or for, or is under the control of the United States Government and is defined as such by the United States Government and its agencies and departments.

(11) *"Trade secrets"* means information that: (a) derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by other persons who can obtain economic value from its disclosure or use; (b) is the subject of efforts that are reasonable under the circumstances to maintain its secrecy; and (c) can reasonably be said to be the end product of significant innovation. The term "trade secrets" does not include general proprietary company information such as handbooks and poli-

cies. The term "regular access to trade secrets" does not include access to or the use of client, customer or mailing lists.

(M.C.S., Ord. No. 26962, § 1, 6-23-16)

Sec. 70-506. Use of consumer credit history prohibited for employment purposes.

(a) Except as provided in this division, it shall be impermissible for a city contractor or agent, representative, or designee thereof to use a current or prospective employee's consumer credit report, or cause a current or prospective employee's consumer credit report to be procured for any decision regarding the hiring and compensation or the terms, conditions or privileges of employment.

(b) Notwithstanding the prohibitions set for in paragraph (a), an employer may request or use the consumer credit history of a current or prospective employee if credit history is established as a bona fide occupational qualification of a particular position or employment classification. Consumer credit history shall be considered a bona fide occupational qualification for any current or prospective employee being evaluated for:

(i) A position that is required by state or federal law or regulations or by a self-regulatory organization to use an individual's consumer credit history for employment purposes;

(ii) A position in which an employee is required to be bonded under city, state or federal law;

(iii) A position in which an employee is required to possess security clearance under city, state or federal law, or a position having regular access to trade secrets, intelligence information or national security information;

(iv) A position (i) having signatory authority over third party funds or assets valued at $10,000.00 or more; or (ii) that involves a fiduciary responsibility to the employer with the authority to enter financial agreements valued at $10,000.00 or more on behalf of the employer; or (iii) with access to customers', employees', or employers' personal or financial information other than information customarily provided in a retail transaction; and

(v) A position with regular duties that allow the employee to modify digital security systems established to prevent the unauthorized use of the employer's or client's networks or databases.

(c) Nothing in this division shall preclude an employer from requesting or receiving consumer credit history information pursuant to a lawful subpoena, court order or law enforcement investigation.

(d) A city contractor shall not require an individual to waive or limit any protection granted under this division as a condition of applying for or receiving an offer of employment.

(M.C.S., Ord. No. 26962, § 1, 6-23-16)

Sec. 70-507. Compliance and enforcement.

(a) The office of workforce development shall have the primary responsibility for general oversight, administration, compliance, monitoring, and enforcement of this division.

(b) City contractors shall: (a) post a notice in a prominent place regarding the applicability of this division in every workplace in which current or prospective employees are under the city contractor's custody and control.

(c) Any person who desires to register a complaint or report a violation this division may do so by contacting the office of workforce development. Upon receipt of such a complaint or report, the office of workforce development shall have 90 days to conduct and resolve an investigation.

(M.C.S., Ord. No. 26962, § 1, 6-23-16)

Secs. 70-508—70-510. Reserved.

DIVISION 5. SALARY HISTORY

Sec. 70-511. Definitions.

The following words, terms and phrases, when used in this section, shall have the meanings

ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *"Contract"* means:

a. Any contract to which the city is a party for professional services executed;

b. Any contract to which the city is a party for construction, alteration, or demolition of public property or public works of the City of New Orleans; or

c. Any cooperative endeavor agreement whereby the city provides tax incentives.

(2) *"Prohibited salary history practices"* means

a. Communicating any question or statement to an prospective employee, a prospective employee's current or prior employer, or a current or former employee or agent of the prospective employee's current or prior employer, in writing or otherwise, for the purpose of obtaining a prospective employee's salary history, or to conduct a search of publicly available records or reports for the purpose of obtaining a prospective employee's salary history, but does not include informing a prospective employee in writing or otherwise about the position's proposed or anticipated salary or salary range, or include salary history unilaterally and voluntarily provided by an applicant.

b. Screening prospective employees based on their current or prior wages, benefits, other compensation, or salary histories, including requiring that a prospective employee's prior wages, benefits, other compensation, or salary history satisfy minimum or maximum criteria; or

c. Relying on the salary history of a prospective employee in deciding whether to offer employment to a prospective employee, or in determining the salary, benefits, or other compensation for such prospective employee during the hiring process; or

d. Refusing to hire or otherwise disfavoring, injuring, or retaliating against a prospective employee for not disclosing his or her salary history to an employer.

(M.C.S., Ord. No. 28302, § 1, 1-30-20, eff. 4-1-20)

Sec. 70-512. Prohibited contracts.

Neither the city, nor any city department, agency, board, or commission of the city, shall enter into any contract unless the contracting party certifies that it does not engage in prohibited salary history practices and will not engage in prohibited salary history practices for the term of the contract. The prohibition against prohibited salary history practices shall extend to any subcontractors performing work pursuant to the contract on behalf of the contracting party.
(M.C.S., Ord. No. 28302, § 1, 1-30-20, eff. 4-1-20)

Sec. 70-513. Exceptions.

(a) The city shall have the discretion to provide a written waiver of section 70-512 with respect to a particular contract if it makes a good-faith determination that the contracted services are necessary to the proper functioning of the city and that no reasonable alternative exists.

(b) This division applies to all city-funded service contracts to the extent permitted by law. Otherwise, it will be enforced to the extent allowable by law and the requirements of the funding source.
(M.C.S., Ord. No. 28302, § 1, 1-30-20, eff. 4-1-20)

Secs. 70-514—70-520. Reserved.

DIVISION 6. RESPONSIBLE CONTRACTING*

Sec. 70-521. Policy.

The city shall enhance its ability to identify responsible contractors for public work projects, services, and city financial assistance by instituting more comprehensive submission requirements.
(M.C.S., Ord. No. 28841, § 1(70-551), 11-4-21)

Sec. 70-522. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City means the City of New Orleans, its departments, offices, boards, commissions, and other agencies of the Executive Branch.

City financial assistance means the assistance defined under City Code section 70-802(10) under the "Living Wage Ordinance."

Contract means any agreement for the performance of public works, or professional services, or services, or the grant of city financial assistance, which is let, awarded, or executed by or on behalf of the city.

Contractor means any person, firm, corporation, partnership, association, or any combination thereof, who executes a contract with the city.

Council means the Council of the City of New Orleans.

Non-professional services means services other than professional services.

Professional services means services defined by the applicable executive order.

Prospective contractor means a person, firm, corporation, partnership, association, or any combination thereof, who responds to a solicitation or other procurement or selection process.

Public work means a public work as defined under Louisiana Public Bid Law.

Purchasing means the bureau of purchasing.

Response means a bid, or a proposal, or an application, or any equivalent document, submitted by a prospective contractor to respond to a solicitation or other procurement or selection process.

Solicitation means the procurement method through which the city solicits responses including, but not limited to, invitations to bid, requests for proposals and requests for qualifications.

Subcontractor means any person, firm, corporation, partnership, association, or any combination thereof, not an employee, who performs or owes an obligation for or to the contractor or to a subcontractor for the performance of any of the work required by the contract between the city and the contractor.
(M.C.S., Ord. No. 28841, § 1(70-552), 11-4-21)

Sec. 70-523. Covered contracts.

The following contracts are subject to the provisions of this division, except as provided herein:

(a) A contract for services (professional and non-professional) that involves a value more than the applicable competitive selection threshold(s).

(b) A contract for public work that involves a value of $25,000.00 or more.

(c) A contract for city financial assistance that involves a value of $100,000.00 or more.

(M.C.S., Ord. No. 28841, § 1(70-553), 11-4-21)

Sec. 70-524. Determination of contractor responsibility.

(a) Prior to awarding or executing a contract, the city shall determine that the prospective contractor is one that has the necessary quality, fitness, and capacity to perform the work set forth in the contract.

*__Editor's note—__M.C.S., Ord. No. 28841, § 1, adopted Nov. 4, 2021, set out provisions intended for use as Div. 6, §§ 70-551—70-562. To prevent duplication of section numbers, and at the editor's discretion, these provisions have been included as Div. 6, §§ 70-521—70-532.

(b) Responsibility shall be determined from reliable information concerning a number of criteria, including, but not limited to, the following: business organization or structure, financial resources and responsibility, insurance, performance history, compliance with relevant laws and regulations, prior disputes, and business integrity.

(c) A prospective contractor for a contract shall complete and submit a questionnaire which shall provide the information required in order to decide if the prospective contractor meets the criteria set forth in paragraph (b) of this section. The questionnaire shall require the contractor to state whether it will perform the work itself or will subcontract the work required by the contract.

(d) The prospective contractor shall sign the questionnaire under penalty of perjury.

(e) If, after execution of a contract, the city learns that the contractor submitted false information on the questionnaire, the city may terminate the contract and pursue the remedies set forth in section 70-528 of this article.

(f) The contractor shall update its questionnaire during the term of the contract within 30 calendar days after any change to the questionnaire previously provided if such change would affect the contractor's fitness or ability to continue performing the contract.

(g) The city may consider a failure of the contractor to update the questionnaire with this information to be a material breach of the contract and may invoke the remedies set forth in section 70-528 of this article.

(h) Questionnaires shall be public records and information contained therein shall be available for public review, except to the extent that such information is exempt from disclosure pursuant to applicable law.

(i) The city shall maintain a list of prospective contractors and contractors who have been determined to be non-responsible by the city.

(j) Unless otherwise removed from the list by the city, names shall remain on the list for three years from the date of being declared non-responsible.

(k) Contractors shall ensure that subcontractors meet the criteria for responsibility as set forth in paragraph (b) of this section.
(M.C.S., Ord. No. 28841, § 1(70-554), 11-4-21)

Sec. 70-525. Compliance with all laws.

(a) Contractors shall comply with all applicable federal, state, and local laws in the performance of the contract, including, but not limited to, laws regarding health and safety, labor and employment, wages, and hours which affect employees. Contractors shall be responsible for the violations of this section by their subcontractors.

(b) Contractors shall notify the city within 30 calendar days after receiving notification that any government agency has initiated an investigation that may result in a finding that the contractor is not in compliance with paragraph (a) of this section. Initiation of an investigation is not, by itself, a basis for a determination of non-responsibility by the city.

(c) Contractors shall notify the city within 30 calendar days of all findings by a government agency or court of competent jurisdiction that the contractor has violated paragraph (a) of this section.

(d) Contractors shall ensure that their subcontractors comply with paragraphs (a), (b) and (c) of this section.
(M.C.S., Ord. No. 28841, § 1(70-555), 11-4-21)

Sec. 70-526. Exemptions.

(a) The following contracts are exempt from the application of this division:

(1) Contracts with a governmental entity such as the United States of America, the State of Louisiana, a parish, city, or public agency of such entities, or a public or quasi-public corporation located therein and declared by law to have such public status.

(2) Contracts procured to satisfy declared emergency needs.

a. Contracts where the goods or services are considered unique or non-

competitive, including, but not limited to, those that are proprietary, sole source, or only available from a single source.

(3) Legal claim resolution.

(4) Restoration tax abatement credits for owner-occupied residential properties not exceeding six residential units.

(5) Contracts valued at less than the applicable dollar thresholds.

(b) Waiver. The city shall have the discretion to provide a written waiver of this section with respect to a particular contract if the city makes a good-faith determination that the contracted services are necessary to the proper functioning of the city and that no reasonable alternative exists.
(M.C.S., Ord. No. 28841, § 1(70-556), 11-4-21)

Sec. 70-527. Administration.

(a) Purchasing shall promulgate rules and regulations for the implementation of this division.

(b) Purchasing shall develop a questionnaire to be used by the city for determining contractor responsibility within 90 days after the effective date of this division.
(M.C.S., Ord. No. 28841, § 1(70-557), 11-4-21)

Sec. 70-528. Enforcement.

(a) Contracts shall provide that a violation of this division shall constitute a material breach thereof and entitle the city to terminate the contract and otherwise pursue legal remedies that may be available.

(b) Violations of this division may be reported to the city, which shall investigate such complaint.

(c) Whether based upon such complaint or otherwise, if the city has determined that the contractor has violated any provision of this division, the city shall issue a written notice to the contractor that the violation is to be corrected within ten calendar days from receipt of notice.

(d) In the event the contractor has not corrected the violation, or taken reasonable steps to correct the violation within ten calendar days from receipt of notice, then the city shall:

(1) Declare a material breach of the contract and exercise the contractual remedies thereunder, which shall include, but not be limited to, termination of the contract.

(2) Declare the contractor to be non-responsible.
(M.C.S., Ord. No. 28841, § 1(70-558), 11-4-21)

Sec. 70-529. Effective date.

(a) This division shall be applicable to solicitations advertised after the regulations have been promulgated and have become effective pursuant to section 2-1000 of this Code.

(b) This division shall be applicable to contracts for city financial assistance negotiated and executed after the regulations have been promulgated and have become effective pursuant to section 2-1000 of this Code.
(M.C.S., Ord. No. 28841, § 1(70-559), 11-4-21)

Sec. 70-530. Consistency with federal or state law.

The provisions of this division shall not be applicable to those instances in which its application would be prohibited by federal or state law or where the application would violate or be inconsistent with the terms or condition of a grant or contract with an agency of the United States, the State of Louisiana, or the instruction of an authorized representative of any such agency with respect to any such grant or contract.
(M.C.S., Ord. No. 28841, § 1(70-560), 11-4-21)

Sec. 70-531. Severability.

If any provision of this division is declared legally invalid by any court of competent jurisdiction, the remaining provisions shall remain in full force and effect.
(M.C.S., Ord. No. 28841, § 1(70-561), 11-4-21)

Sec. 70-532. Council contracts.

This division shall apply to contracts for professional services administered by the council, pursu-

ant to its Charter functions, legislative authority and responsibilities, and regulatory authority and responsibilities.
(M.C.S., Ord. No. 28841, § 1(70-562), 11-4-21)

Secs. 70-533—70-550. Reserved.

ARTICLE V. FEES

Sec. 70-551. Checks returned unpaid by banks; penalty.

If a check used to make payment for an obligation to the city is returned unpaid for any reason by the bank on which it is drawn, such shall constitute a failure to pay the obligation and a specific penalty shall be imposed on the person in addition to and not in place of other penalties provided by law. This specific penalty shall be an obligation to be collected and accounted for in the same manner as if it were part of the original item, in payment of which the check was given and may be enforced in a separate action or in any instituted for the collection of such item. The specific penalty imposed under this section shall be an amount equal to the greater of one percent of the check or $15.00. This penalty may be waived if this is a first offense and the check is satisfied within five working days of its receipt. After receipt of three such checks which are returned unpaid during any two-year period, the director of the department of finance shall require payment of the original amount, interest or penalties due by the person to be paid by certified check, money order or cash.
(Code 1956, § 1-15)

Sec. 70-552. Distraint cost penalty.

Whenever the director of the department of finance or his authorized agent uses the distraint procedure to enforce the collection of any charge, there shall be imposed with respect to the charge for the collection of which the distraint procedure is used, a specific penalty of $10.00 to compensate for the costs of the distraint procedure. This specific penalty shall be in addition to any penalty assessed as provided by law and shall be an obligation to be collected, and accounted for in the same manner as if it were part of the original amount due, and may be enforced either in a separate action or in the same action for the collection of the original amount due.
(Code 1956, § 1-16)

State law reference—Sale of distrained property, R.S. 47:1574.

Sec. 70-553. Annual review of fees and charges.

(a) No later than October 31 of each calendar year, the director or chief executive officer of each charter department, board, agency, or commission of the city shall transmit to the council and to the chief administrative officer a proposed schedule for each permit, license, fee, or charge for services rendered under the jurisdiction of the entity.

(b) The schedule shall adjust fees and charges to account for inflation or other relevant factors and shall indicate the amount of revenue anticipated for each adjusted fee or charge.

(c) Additionally, the director shall indicate if any fees or charges are limited by state law or if, in his judgment any specific fees or charges should not be increased and, if so, the reasons.

(d) The chief administrative officer is authorized to establish procedures to implement the provisions of this section.
(Code 1956, § 1-17)

Sec. 70-554. Delinquency fees; interest on unpaid fees; changes.

(a) Whenever any section of this Code or any other ordinance of this city or any statute requires the payment to the city of any sum for the issuance of any license or permit or for the performance or doing of any service by or function of the city, and such payment is not paid in full on or before the date due under any applicable law, regulation, or custom, then the provisions of this section shall apply.

(b) In addition to the sum due and any civil or criminal penalties imposed by this section or any other applicable law, the debtor shall pay legal

interest on any delinquent balance, including delinquency fees, charges or penalties, during the period which said balance remains unpaid.

(c) Unless a greater penalty, charge or delinquency fee is assessed by any other section of this Code or any other applicable law, in which case such greater sum shall be paid, the debtor shall, in addition to the sum originally due, pay a delinquency fee of 33⅓ percent of the sum originally due, in addition to:

(1) An applicable interest of 15 percent per annum.

(2) Any other penalties which may be applicable.

(3) Any other charges which may be applicable.

(d) Every applicant for issuance or renewal of a permit or license issued by the city shall certify in writing under oath, on forms provided by the department of finance, that he is not indebted to the city for any sum due for the prior issuance of any license or permit or for the performance of any service by or function of the city. No permit or license shall issue nor any further service or function be performed in the absence of such certification.

(e) The department of finance shall provide and shall cause copies of this section or an abstract thereof to be posted in public view in all offices where payment is received for city fees or where application is made for performance of services or functions of the city.
(Code 1956, § 1-18; M.C.S., Ord. No. 17,018, § 1, 5-4-95)

Sec. 70-555. Payment of capital of ground rents.

Any person holding property within the city subject to ground rent payable to the city at the rate of six percent per annum upon the capital debt secured by such property, may release himself from such ground rent by full payment of it, and of the capital thereof, into the city treasury.
(Code 1956, § 2-55)

Sec. 70-556. Release of mortgage on property.

The director of finance may release any mortgage or lien held by the city upon any property described in section 70-555 upon showing that the payment required in such section has been made.
(Code 1956, § 2-56)

Sec. 70-557. City departments, agencies, boards and commissions—Fees for maps and documents.

All city departments, agencies, boards and commissions not otherwise authorized under other sections of this article shall charge for copies of records and maps in accordance with the following schedule:

(1)	Copies of documents (letter or legal size, per page)	$ 0.50
(2)	Copies of square plat	1.00
(3)	Duplicate copies of square plats, each	0.50
(4)	Copy of square plat (mailed)	1.00
(5)	Copies or prints of city maps (per square foot or portion thereof)	0.40
(6)	Copies of this Code	150.00
(7)	Supplements to Code	30.00
(8)	Copies of home rule charter	10.00
(9)	Copy of traffic code	9.15
(10)	Copy of minimum standards housing code	2.25
(11)	Department heads, with the approval of the chief administrative officer, may establish a fee for department or board procedure manuals or similar documents for a fixed price which shall not exceed but may be less than the maximum price per page established elsewhere in this section.	

The chief administrative officer shall review such fees annually.

(12) Copies of video tapes or audio tapes, per copy: $30.00.

(Code 1956, § 62-24.1)

Sec. 70-558. Same—Monthly report and remittance.

City departments, agencies, boards and commissions shall submit a monthly report to the director of the department of finance showing all fees collected pursuant to the provisions of section 70-557, and all monies shown as collected in such monthly report shall be remitted by the respective city departments, agencies, boards and commissions, to the director of the department of finance, to be credited to the general revenues of the city.

(Code 1956, § 62-24.2)

Sec. 70-559. Subdivision regulations.

The city planning commission shall charge $10.00 for each copy of subdivision regulations.

(Code 1956, § 62-24.3)

Sec. 70-560. Department of safety and permits—Fees for building, mechanical, and gas codes.

The department of safety and permits shall charge for copies of codes, according to the following schedule:

(a) New Orleans amendments to Standard Building Code: $20.00.

(b) Standard Mechanical Code: $20.00.

(c) Standard Gas Code: $20.00.

(d) Zoning ordinance text: $40.00.

(e) Zoning ordinance map set: $20.00.

(f) Mailing for any of the above, each: $3.00.

(Code 1956, § 62-24.4; Ord. No. 19,970, § I, 12-14-00)

Sec. 70-561. Same—Monthly report and remittance.

The city planning commission and department of safety and permits shall submit a monthly report to the director of the department of finance showing all fees collected pursuant to the provisions of sections 70-559 and 70-560, and all monies shown as collected in such monthly report shall be remitted by the respective commission and department, to the director of the department of finance, to be credited to the general revenues of the city.

(Code 1956, § 62-24.5)

Sec. 70-562. Same—Fees for appeals and variances to the board of zoning adjustments.

(a) The city planning commission shall collect upon application for appeals and variances to the board of zoning adjustments fees according to the following schedule:

(1) Residential, including additions:

a. Single- and two-family dwellings: $250.00.

b. Small multi-family/townhouse dwellings (3—6 units): $250.00.

c. Large multi-family/townhouse dwellings (7+ units): $750.00.

(2) Non-residential/mixed-use buildings and uses:

a. 0—4,999 square feet of gross floor area: $300.00.

b. 5,000—24,999 square feet of gross floor area: $750.00.

c. 25,000+ square feet of gross floor area: $1,000.00.

(3) Accessory, including structures, signs, and lot dimension variances: $250.00.

(4) Subdivision-related variances: Base fee + $25.00 for each proposed lot.

(5) Extension requests:

a. Administrative: $100.00.

b. Non-administrative: An amount equal to 50% of original fee.

(6) Decision of director of safety and permits appeals: $250.00.

(7) Rehearing: An amount equal to 50% of original fee.

(b) The city planning commission shall submit reports to the director of the department of finance showing all fees collected pursuant to this section and all monies shown as collected in such reports shall be remitted by the director of the city planning commission to the director of the department of finance to be credited to the general fund of the city.
(Code 1956, § 62-24.6; M.C.S., Ord. No. 23442, § 1, 4-2-09; M.C.S., Ord. No. 29940, § 1, 6-6-24)

Sec. 70-563. Same—Fees for certificates of use and occupancy and compliance.

The department of safety and permits shall collect upon application fees according to the following schedule. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District:

(a) Home occupation: $190.00.

(b) For single-family dwelling; condominium, timeshare building, transient vacation rentals, schools, universities, libraries; institutions of philanthropic nature; boathouses and docks; and any change in business, commercial, or industrial use without necessitating repairs; alterations or additions by owners or tenants of buildings, land, or portions thereof; and when otherwise not listed:

(1) For events which are sponsored by nonprofits: $95.00.

(2) All others: $190.00.

(c) For two-, three- and four-family dwellings: $100.00.

(d) For multiple-family dwellings, clinics, hospitals, apartment buildings, trailer courts, hotels, offices, stores, shops, storage and repair garages, trades or professions, all private or commercial uses and occupations not to exceed seven stores, and any change in business, commercial or industrial uses without necessitating repair, alterations or additions by owners or tenants of buildings, land or portions thereof, 1,000 square feet or more: $150.00.

(e) For all industrial uses and occupancies permitted in general commercial, central business, special light industrial districts and heavy industrial districts: $150.00.

(f) For construction trailers: $190.00.

(g) For mural permits: $50.00.
(Code 1956, § 62-24.7; Ord. No. 19,971, § I, 12-14-00; M.C.S., Ord. No. 23816, § 1, 12-1-09; M.C.S., Ord. No. 27266, § 1, 1-26-17; M.C.S., Ord. No. 28120, § 1, 6-6-19)

Sec. 70-564. Same—Fees for zoning administration applications.

The department of safety and permits shall collect upon application fees for zoning applications according to the following schedule. These fees shall apply per application, as determined by the department of safety and permits:

(a) Zoning verification: $100.00.

(b) Non-conforming use determination: $200.00.

(M.C.S., Ord. No. 29462, § 1, 5-11-23)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 29462, Ord. No. 19,972, § I, adopted December 14, 2000, repealed former § 70-564, which pertained to permit and license preparation fees, and derived from the Code of 1956, § 62-24.8.

Sec. 70-565. Fees for collection of taxes and charges on behalf of other agencies.

(a) Unless and except as authorized by a final, non-appealable order or judgment rendered by a court of competent jurisdiction, no fee or service charge may be imposed by the department of finance for the collection of any taxes, license and permit fees, or other similar moneys on behalf of the governmental organization expressly identified in subsection (b), unless and only during such times as, there is a multi-year cooperative endeavor agreement in effect between the city and the recipient body, approved by

ordinance in accordance with section 9-314 of the Charter, that provides for the collection and sets forth the amount of the fee or service charge.

(b) Notwithstanding the foregoing, in the event the Orleans Parish School Board elects not to collect for itself ad valorem and sales and use taxes, the department of finance shall collect ad valorem and sales and use taxes dedicated to the Orleans Parish School Board without fees or charge through tax year 2026. It is the policy of the city, and the express finding of the council, that the foregoing collection activities are not a gratuitous donation of services, but are instead supported by the valuable consideration and benefits associated with resolving costly ongoing litigation and preventing future litigation, as well as the direct and indirect fiscal and social benefits to the city that come from maximizing funds available to provide educational programming for city youth.

(M.C.S., Ord. No. 30291, § 1, 4-10-25; M.C.S., Ord. No. 30701, § 1, 7-9-26)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 30291, M.C.S., Ord. No. 23326, § 1, adopted Nov. 20, 2008, repealed § 70-565, which pertained to department of law; notarial fees and derived from M.C.S., Ord. No. 18,043, § 1, adopted Feb. 6, 1997; and M.C.S., Ord. No. 22307, § 1, adopted July 20, 2006.

Secs. 70-566—70-600. Reserved.

ARTICLE VI. INVESTMENT POLICY

Sec. 70-601. Policy.

It is the policy of the City of New Orleans to invest public funds in a manner which will provide the highest investment return with the maximum security while meeting the daily cash flow demands of the entity and conforming to all state and local statutes governing the investment of public funds.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-602. Scope.

This investment policy applies to all financial assets of the City of New Orleans. These funds are accounted for in the City of New Orleans' Comprehensive Annual Financial Report.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-603. Prudence.

Investments shall be made with judgment and care—under circumstances then prevailing—which persons of prudence, discretion and intelligence exercise in the management of their own affairs, not for speculation, but for investment, considering the probable safety of their capital as well as the probable income to be derived.

(1) The standard of prudence to be used by investment officials shall be the "prudent person" standard and shall be applied in the context of managing an overall portfolio. Investment officers acting in accordance with written procedures and the investment policy and exercising due diligence shall be relieved of personal responsibility for an individual security's credit risk or market price changes, provided deviations from expectations are reported in a timely fashion to the director of finance and appropriate action is taken to control and prevent further adverse developments.

(2) The assets of the City of New Orleans shall be held in the name of the City of New Orleans in trust by the fiduciary (fiduciaries) designated by the City of New Orleans.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-604. Objectives.

The primary objectives, in priority order, of the City of New Orleans' investment activities shall be:

(1) *Safety.* Safety of principal is the foremost objective of the investment program. Investments of the City of New Orleans shall be undertaken in a manner that seeks to ensure the preservation of capital in the overall portfolio. The objective will be to mitigate credit risk and interest rate risk.

(2) *Liquidity.* The City of New Orleans' investment portfolio will remain sufficiently liquid to enable the City of New Orleans to meet all operating requirements which might be reasonably anticipated. This is accomplished by structuring the portfolio so that securities mature concurrent with cash needs to meet anticipated demands (static liquidity). Furthermore, since all possible cash demands cannot be anticipated, the portfolio should consist largely of securities with active secondary or resale markets (dynamic liquidity).

(3) *Return on investments.* The City of New Orleans' investment portfolio shall be designed with the objective of attaining a rate of return throughout budgetary and economic cycles, commensurate with the City of New Orleans' investment risk constraints and the cash flow characteristics of the portfolio. Return on investment is of less importance compared to the safety and liquidity objectives described above. The core of investments are limited to relatively low risk securities in anticipation of earning a fair return relative to the risk being assumed. Securities shall not be sold prior to maturity with the following exceptions:

a. A declining credit security could be sold early to minimize loss of principal;

b. A security swap would improve the quality, yield, or target duration in the portfolio; or

c. Liquidity needs of the portfolio require that the security be sold.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-605. Delegation of authority.

Authority to manage the City of New Orleans investment program is derived from the Louisiana Revised Statutes, title 33, section 2955. Management responsibility for the investment program is hereby delegated to the director of finance, who shall carry out established written procedures and internal controls for the operation of the investment program consistent with this investment policy. Procedures should include reference to:

(1) Safekeeping;

(2) PSA repurchase agreements;

(3) Delivery versus payment;

(4) Investment accounting;

(5) Wire transfer agreements;

(6) Banking service contracts; and

(7) Collateral/depository agreements.

Such procedures shall include explicit delegation of authority to persons responsible for investment transactions. No person may engage in an investment transaction except as provided under the terms of this policy and the procedures established by the director of finance. The director of finance shall be responsible for all transactions undertaken and shall establish a system of controls to regulate the activities of subordinate officials.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-606. Investment committee.

The director of finance shall establish an investment committee consisting of the chief administrative officer or his designated representative, the director of finance, the city treasurer, and the assistant city treasurer. The committee shall meet periodically, but at least annually at the call of the director of finance to determine general investment strategies, monitor portfolio results, ensure the adequacy of maturity restrictions, and perform other duties as may be assigned by the director of finance. Further, the committee will adopt this investment policy and may establish its own rules of procedure to modify, enhance or otherwise change this policy as directed by circumstances then prevailing. The committee shall be responsible for oversight of the relationship between the city and its investment managers and reviewing the investment manager's performance on a regular basis. The director of finance will monitor the investment manager's compliance with city investment policies, communicate any changes in the city's investment policies to the investment managers, and report all transactions to the city's accounting bureau.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-607. Ethics and conflicts of interest.

The provisions of the code of ethics of the City of New Orleans, Ordinance 16,413, M.C.S. and the provisions of the Code of Governmental Ethics, chapter 15 of title 42 of the Louisiana Revised Statutes are to be followed by all parties operating under this policy.

Officers and employees involved in the investment process shall refrain from personal business activity that could conflict with the proper execution and management of the investment program, or that could impair their ability to make impartial decisions. Employees and officers shall refrain from undertaking personal investment transactions with the same individual with whom business is conducted on behalf of the city.

Brokers/dealers must indicate in each transaction confirmation whether they are acting as a principal (selling securities from their own portfolio) or as an agent (purchasing securities from another broker/dealer).

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-608. Authorized financial dealers and institutions.

The director of finance will maintain a list of financial institutions authorized to provide invest-

ment services. In addition, a list will also be maintained of approved security brokers/dealers selected by credit worthiness who are authorized to provide investment services in the State of Louisiana. These may include "primary" dealers or regional dealers that qualify under Securities and Exchange Commission rule 15C3-1 (uniform net capital rule). No public deposit shall be made except in a qualified public depository as established by state laws.

All financial institutions and brokers/dealers who desire to become qualified bidders for investment transactions must supply the director of finance with the following:

(1) Audited financial statements;

(2) Proof of National Association of Security Dealers certification;

(3) Trading resolution;

(4) Proof of state registration;

(5) Completed broker/dealer questionnaire; and

(6) Certification of having read City of New Orleans' investment policy and acknowledgement of its obligation as a fiduciary responsible for the investment of the city's assets.

An annual review of the financial condition and registrations of qualified bidders will be conducted by the director of finance in conjunction with outside auditors.

A current audited financial statement is required to be on file for each financial institution and broker/dealer in which the City of New Orleans invests.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-609. Authorized and suitable investments.

The assets of the City of New Orleans shall be invested, as provided in R.S. 33:2955, as amended, in the following:

(1) Direct United States Treasury obligations, the principal and interest of which are fully guaranteed by the government of the United States.

(2) Bonds, debentures, notes or other evidence of indebtedness issued or guaranteed by federal agencies and provided such obligations are backed by the full faith and credit of the United States of America, which obligations include but are not limited to:

a. U.S. Export-Import Bank;

b. Farmers Home Administration;

c. Federal Financing Bank;

d. Federal Housing Administration Debentures;

e. General Services Administration;

f. Government National Mortgage Association-guaranteed mortgage-backed bonds and guaranteed pass-through obligations;

g. U.S. Maritime Administration-guaranteed title XI financing; and

h. U.S. Department of Housing and Urban Development.

(3) Bonds, debentures, notes, or other evidence of indebtedness issued or guaranteed by U.S. government instrumentalities, which are federally sponsored, and such obligations include but are not limited to:

a. Federal Home Loan Bank System;

b. Federal Home Loan Mortgage Corporation;

c. Federal National Mortgage Association;

d. Student Loan Marketing Association; and

e. Resolution Funding Corporation.

Notwithstanding the foregoing list of investments, in no instance shall the city invest in obligations described in items (1), (2) and (3) of this section which are collateralized mortgage obligations that have been stripped into interest only or principal only obligations, inverse floaters, or structured notes. For the purposes of this item, "structured notes" shall mean securities of U.S. government agen-

cies, instrumentalities, or government sponsored enterprises which have been restructured, modified, and/or reissued by private entities.

(4) Direct security repurchase agreements of any federal book entry only securities enumerated in paragraphs (1), (2), and (3) above. "Direct security repurchase agreement" means an agreement under which the city buys, holds for a specified time, and then sells back those securities and obligations enumerated in paragraphs (1), (2), and (3).

(5) Time certificates of deposit of state banks organized under the laws of Louisiana, or national banks having their principal offices in the State of Louisiana, savings accounts or shares of savings and loan associations and savings banks, as defined by R.S. 6:703(15) and (16), or share accounts and share certificate accounts of federally or state chartered credit unions issuing time certificates of deposit.

(6) Mutual or trust fund institutions which are registered with the Securities and Exchange Commission under the Securities Act of 1933 and the Investment Act of 1940, and which have underlying investments consisting solely of and limited to securities enumerated in paragraphs (1), (2), and (3) of this section. Investment of funds in such mutual or trust fund institutions shall be limited to 25 percent of the monies considered available for investment as provided by R.S. 33:2955(A)(2). The attorney general has determined that only mutual funds created as a Massachusetts business trust are acceptable investments (Op. Atty. Gen. 88-546(A)).

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-610. Prohibited transactions.

The following transactions are expressly prohibited:

(1) Any transactions not authorized by this policy;

(2) The purchase of securities on margin;

(3) Direct purchases of single-family or commercial mortgages;

(4) Purchases of foreign bonds; or

(5) The short sale of securities;

(6) Effective August 15, 1995, as provided in R.S. 33:2955(A)(1)(iii) (enacted by Act No. 1126 of 1995), investment in obligations issued or guaranteed by federal agencies of U.S. government instrumentalities which are collateralized mortgage obligations that have been stripped into interest only or principal only obligations, inverse floaters, or structured notes. "Structured note" means securities of U.S. government agencies, instrumentalities, or government sponsored enterprises which have been restructured, modified, and/or reissued by private entities.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-611. Repurchase agreements.

If repurchase agreements are utilized, a master repurchase agreement must be signed with the bank or dealer. The underlying securities shall consist of U.S. government or government agency securities as enumerated in paragraphs (1), (2), and (3) of this section; provided, however, that:

(1) All repurchase transactions must be governed by written master repurchase agreements;

(2) Agreements will be entered into only with a recognized U.S. government broker/dealer or a bank which meets the requirements set out under section 70-608 of this policy;

(3) In the case of repurchase collateral held in book entry form in the Federal Reserve System, all deliveries of securities must be made, for the transfer thereof, through the Federal Reserve book entry system to the account designated by the investment manager for such purpose;

(4) Securities held in certificated form must be delivered to the custodian as directed by the director of finance;

(5) Any collateral employed under this paragraph shall be counted towards the applicable maximum limits set forth in this investment policy for such type of investment, and such collateral shall be valued at market at not less than 102 percent of the maturity value of the agreement and marked-to-the-market as requested by the manager; and

(6) Not more than 25 percent of the account, valued at market, may be invested under this paragraph (investments due to mature in one business day may be excluded from the computation of this percentage).

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-612. Competitive selection of investment instruments.

It is the city's policy to transact all securities purchases/sales only with approved financial institutions through a formal and competitive process requiring the solicitation and evaluation of at least three bids/offers from qualified financial institutions. At least one of the three required bids/offers must be from a bank which has its principal office located in Orleans Parish. The city will accept the offer which provides:

(1) The highest rate of return within the maturity required; and

(2) Will optimize the investment objectives of the overall portfolio. When selling a security, the city will select the bid which generates the highest sale price. It will be the responsibility of the personnel involved with each purchase/sale to produce and retain written records of each transaction including the name of the financial institution solicited, rate quoted, description of the security, investment selected, and any special considerations that had an impact on the decision.

If the lowest priced security (highest yield) was not selected for purchase, a written explanation describing the rationale will be included in this record.

In making investment decisions, all other things being equal and subject to compliance with any applicable Internal Revenue Code requirements for bond proceeds, investments in financial institutions doing business in the State of Louisiana will be given preference over other investment options.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-613. Collateralization.

Security will be required for all deposits. In order to anticipate market changes and provide a level of security for all funds, the collateralization level shall at all times be 102 percent of market value, excluding accrued interest, of principal and accrued interest on deposit. The City of New Orleans chooses to limit collateral to the following:

(1) Direct United States Treasury obligations, the principal and interest of which are fully guaranteed by the government of the United States.

(2) Bonds, debentures, notes or other evidence of indebtedness issued or guaranteed by federal agencies and provided such obligations are backed by the full faith and credit of the United States of America, which obligations include but are not limited to:

a. U.S. Export-Import Bank;

b. Farmers Home Administration;

c. Federal Financing Bank;

d. Federal Housing Administration Debentures;

e. General Services Administration;

f. Government National Mortgage Association-guaranteed mortgage-backed bonds and guaranteed pass-through obligations;

g. U.S. Maritime Administration-guaranteed title XI financing; and

h. U.S. Department of Housing and Urban Development.

(3) Bonds, debentures, notes, or other evidence of indebtedness issued or guaranteed by U.S. government instrumentalities, which are federally sponsored, and such obligations include but are not limited to:

a. Federal Home Loan Bank System;

b. Federal Home Loan Mortgage Corporation;

c. Federal National Mortgage Association;

d. Student Loan Marketing Association; and

e. Resolution Funding Corporation.

Notwithstanding the foregoing list of investments, in no instance shall the city accept as collateral obligations described in items (1), (2), and (3) of this section which are collateralized mortgage obligations that have been stripped into interest only or principal only obligations, inverse floaters, or structured notes. For the purposes of this item, "structured notes" shall mean securities of U.S. government agencies, instrumentalities, or government sponsored enterprises which have been restructured, modified, and/or reissued by private entities.

Collateral will always be held by an independent third party with whom the City of New Orleans has a current custodial agreement. A clearly marked evidence of ownership (safekeeping receipt) must be supplied to the City of New Orleans and retained.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-614. Safekeeping and custody.

All security transactions, including collateral for repurchase agreements, entered into by the City of New Orleans shall be conducted on a delivery-versus-payment basis. Securities will be held by a third party custodian designated by the director of finance and evidenced by safekeeping receipts.

The city has selected a custodian bank which is a member of the Federal Reserve System to hold its investments. Delivery of the applicable investment documents (e.g., contracts, securities, and safekeeping receipts) to the city's custodian is required for all investments. For secured transactions such as repurchase agreements, either the title to or a perfected security interest in the securities, along with any necessary transfer documents, must be transferred to the custodian. Such transactions will always use delivery-versus-payment procedures. Safekeeping procedures of the custodian shall be reviewed annually by independent auditors, and a copy of their report shall be supplied to the city for review.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-615. Diversification.

The City of New Orleans will diversify its investments by security type and institution. With the exception of U.S. Treasury securities, bank certificates of deposit (as limited by R.S. 39:1242D), and authorized pools, no more than 25 percent of the City of New Orleans' total investment portfolio will be invested in a single security type or with a single financial institution. Diversification as to a specific kind of security and specific issuers as a percent to total portfolio value shall be as follows:

Authorized Investment Instrument	*Percent of Portfolio Allowed*	*Percent of Portfolio per Issuer*	*Percent of Outstanding Securities per Issuer*
A. U.S. Government	100%	100%	100%
B. U.S. Agencies	100%	100%	100%
C. U.S. Instrumentalities	100%	25%	10%
D. Repurchase Agreements	25%	10%	10%

Authorized Investment Instrument	*Percent of Portfolio Allowed*	*Percent of Portfolio per Issuer*	*Percent of Outstanding Securities per Issuer*
E. Certificates of Deposit	100%	100% (R.S. 39:1242D)	100%
F. Money Market Mutual Funds	25%	10%	10%

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-616. Maximum maturities.

To the extent possible, the City of New Orleans will attempt to match its investments with anticipated cash flow requirements. Unless matched to a specific cash flow, the City of New Orleans will not directly invest in securities maturing more than three years from the date of purchase. However, the City of New Orleans may collateralize its repurchase agreements using longer-dated investments not to exceed ten years to maturity.

Reserve funds may be invested in securities exceeding three years if the maturity of such investments are made to coincide as nearly as practicable with the expected use of the funds.
(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-617. Internal control.

The director of finance is responsible for establishing and maintaining an internal control structure designed to ensure that the assets of the city are protected from loss, theft, or misuse. The internal control structure shall be designed to provide reasonable assurance that these objectives are met. The concept of reasonable assurance recognizes that (1) the cost of a control should not exceed the benefits likely to be derived; and (2) the valuation of costs and benefits requires estimates and judgments by management. Accordingly, the director of finance shall establish a process for annual independent review by an external auditor to assure compliance with policies and procedures. The internal controls shall address the following points:

(1) *Control of collusion.* Collusion is a situation where two or more employees are working in conjunction to defraud their employer.

(2) *Separation of transaction authority from accounting and recordkeeping.* By separating the person who authorizes or performs the transaction from the people who record or otherwise account for the transaction, a separation of duties is achieved.

(3) *Custodial safekeeping.* Securities purchased from any bank or dealer including appropriate collateral (as defined by state law) shall be placed with an independent third party for custodian safekeeping.

(4) *Avoidance of physical delivery securities.* Book entry securities are much easier to transfer and account for since actual delivery of a document never takes place. Delivered securities must be properly safeguarded against loss or destruction. The potential for fraud and loss increases with physically delivered securities.

(5) *Clear delegation of authority to subordinate staff members.* Subordinate staff members must have a clear understanding of their authority and responsibilities to avoid improper actions. Clear delegation of authority also preserves the internal control structure that is contingent on the various staff positions and their respective responsibilities.

(6) *Written confirmation or telephone transactions for investments and wire transfers.* Due to the potential for error and improprieties arising from telephone transactions, all telephone transactions should be supported by written communications and approved by the appropriate person. Written communica-

tions may be via fax if on letterhead and the safekeeping institution has a list of authorized signatures.

(7) *Development of a wire transfer agreement with the lead bank or third party custodian.* This agreement should outline the various controls, security provisions, and delineate responsibilities of each party making and receiving wire transfers.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-618. Performance standards.

The investment portfolio shall be designed with the objective of obtaining a rate of return throughout budgetary and economic cycles, commensurate with the investment risk constraints and the cash flow needs.

(1) Market yield (benchmarks). The City of New Orleans' investment strategy is active. Given this strategy, the basis used by the director of finance to determine whether market yields are being achieved shall be determined by the investment committee.

(2) The investment portfolio will be managed in accordance with the parameters specified within this policy. The portfolio should obtain a market average rate of return during a market/economic environment of stable interest rates. Portfolio performance should be compared to appropriate benchmarks on a regular basis.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-619. Reporting.

The investment project manager and the custodian shall provide to the city monthly, quarterly, and annual investment reports which provide a clear picture of the status of the current investment portfolio. The management report should include comments on the fixed income markets and economic conditions, discussions regarding restrictions on percentage of investment by categories, possible changes in the portfolio structure going forward and thoughts on investment strategies.

Schedules in the reports should include the following:

(1) A listing of individual securities held at the end of the reporting period by authorized investment category;

(2) Average life and final maturity of all investments listed;

(3) Coupon, discount or earnings rate;

(4) Par value, amortized book value and market value;

(5) Percentage of the portfolio represented by each investment category;

(6) Brokerage and third party commission;

(7) Unrealized gains or losses resulting from appreciation or depreciation by listing the cost and market value of securities over one-year duration that are not intended to be held until maturity;

(8) Average weighted yield to maturity of portfolio on entity investments as compared to applicable benchmarks;

(9) Listing of investment by maturity date and by fund; and

(10) The percentage of the total portfolio which each type of investment represents.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-620. Arbitrage.

The Internal Revenue Code of 1986, as amended, provides for arbitrage restrictions which the city's investments are subject to. The city will comply with all arbitrage regulations and will remit all excess arbitrage earnings, where appropriate, to the U.S. Treasury within the legal time limits.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Sec. 70-621. Investment policy adoption.

In accordance with R.S. 33:2955D, this investment policy shall be adopted by ordinance of the Council of the City of New Orleans. The policy shall be reviewed annually by the investment committee and any modifications made thereto must be approved by the city council.

(M.C.S., Ord. No. 18,621, §§ 1, 2, 2-5-98)

Secs. 70-622—70-700. Reserved.

ARTICLE VII. PRISONS, PAYMENT OF MEDICAL EXPENSES

Sec. 70-701. Rules to apply to all inmates in custody of criminal sheriff; exceptions.

These rules shall apply to all inmates in the custody of the Orleans Parish Criminal Sheriff except inmates sentenced to the Louisiana Department of Public Safety and Corrections who are in the custody of the criminal sheriff and except inmates and detainees held by the criminal sheriff for an agency of the federal government.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-702. Service fees.

Inmates will be charged a $3.00 fee for each self-initiated request for medical, dental, and mental health services. No fees will be charged for any referral or scheduled return visits resulting from the inmate's initial treatment until released from care by the designated health care authority or designee. After release from care for any injury or illness, subsequent unscheduled, self-initiated requests for treatment for that injury or illness shall be chargeable. No inmate will be charged for any care that is scheduled by the sheriff or his designated medical/mental health personnel. Inmates will not be charged for the following scheduled services:

(1) Lab work;

(2) X-rays;

(3) Immunizations, tuberculosis testing, hepatitis B vaccine, and other treatments instituted by the facility for public health reasons;

(4) EKGs, dressing charges and other treatments ordered by a qualified health care provider;

(5) Referral visits to outside agencies;

(6) Work related injuries or illnesses, (as determined by the sheriff or designee);

(7) When the fee is waived by the sheriff or designee;

(8) Social service programs provided by mental health staff, (e.g., substance abuse groups);

(9) Prenatal care; and

(10) Intake screenings, history and physical exams.

(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-703. Prescription fees.

Inmates will be charged a $2.00 fee for each new prescription written and dispensed with the exception of psychotropic medications and medications prescribed for public health reasons. There will be no charge for refills of prescriptions where the effects of the illness of injury are chronic or long-term.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-704. Notification of charges; inability to pay; service not to be refused.

Inmates shall be notified of the foregoing charges before treatment is rendered. In the event the inmate has insufficient funds to cover the foregoing charges, the treatment will still be administered creating a negative balance in the account, and withdrawals therefrom shall be prohibited until the charges are paid. No inmate will be refused medical, dental or mental health services or prescription drugs because of inability to pay.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-705. Dispute of charges.

In the event an inmate disputes any medical charge, the inmate may file a grievance with the criminal sheriff. If the criminal sheriff finds the inmate's account was wrongly debited, the account shall immediately be credited the amount it was wrongfully debited.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-706. Liability for charges.

An inmate's discharge or transfer to another facility shall never be delayed for failure to pay

the foregoing charges, but any inmate who is transferred to another facility or discharged shall remain liable for the foregoing charges. In the event an inmate with a negative balance in his or her account returns to the custody of the criminal sheriff, his or her account shall be frozen until the charges incurred during his or her previous detention, together with any new or additional charges, are paid in full.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-707. Inmate's funds to be applied to charges.

Any funds earned or received by an inmate (including work release wages) shall first be applied to pay the foregoing charges, subject to payment of priority charges authorized by La. R.S. 15:711(E). The criminal sheriff shall submit charges under this article actually collected from inmates (excluding payments for mental health services not funded by the city) to the city on a monthly basis.
(Ord. No. 20,460, § 1, 11-30-01)

Sec. 70-708. Inmate to file claim for reimbursement.

Any inmate receiving medical treatment must file a claim with the inmate's private medical or healthcare insurer or any public medical assistance program, under which the inmate is covered and from which the inmate may make a claim for payment or reimbursement of the cost of any such medical treatment, and the proceeds of all such claims shall be assigned by the inmate to the city.
(Ord. No. 20,460, § 1, 11-30-01)

Secs. 70-709—70-800. Reserved.

ARTICLE VIII. LIVING WAGE ORDINANCE

Sec. 70-801. Purpose.

The purpose of this article is to ensure that when taxpayer-funded benefits are extended by the city to private business, they are used in a way that benefits the city as a whole, by creating jobs that keep workers and their families out of poverty as one of the core purposes of the extension of the city funding, and that the city's minimum classified pay rate is not circumvented through privatization of functions that could be feasibly be performed by city employees.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-802. Definitions.

For purposes of this article, the following definitions shall apply:

(1) *"City"* means the City of New Orleans, its departments, offices, agencies, subdivisions, boards, commissions, enterprise funds, or officials thereof.

(2) *"City contract"* means any agreement between the city and any other person to provide services to the city or its residents. City contract includes any grant, including but not limited to Community Development Block Grant (CDBG) funds, awarded to a person in order for it to provide specific services to the city or its residents. City contract does not include (i) a contract between the city and another governmental entity or public utility, (ii) a contract subject to federal or state laws or regulations that would preclude the application of the living wage otherwise applicable pursuant to this article, or (iii) a contract principally involving the procurement of products, equipment, or goods.

(3) *"Contractor"* means any a person that has entered into a city contract.

(4) *"Subcontract"* means any contractual relationship under which a person undertakes to perform any portion of the services required by a city contract or city financial assistance agreement. "Subcontract" does not include (i) a contract of insurance required by a city contract, (ii) a guaranty required by a city contract, (iii) a contract subject to federal or state laws or regulations that would preclude the application of the living wage otherwise applicable pursuant to this article, or (iv) contracts principally involving the procurement of

products, equipment, or goods in connection with the used to perform the city contract.

(5) *"Subcontractor"* means any person that has entered into a subcontract.

(6) *"Covered employer"* means any entity fitting the definitions set forth in section 70-804.

(7) *"Employee"* means any person who performs at least 40 hours of work within a calendar year while physically present within the geographic boundaries of the City of New Orleans for an employer, pursuant to the fulfillment of an applicable city contract or city financial assistance agreement.

(8) *"Covered employee"* means any individual fitting the definitions set forth in section 70-805.

(9) *"Designated department"* means the chief administrative office, which is responsible for the overall implementation and enforcement of this article.

(10) *"City financial assistance"* means direct financial assistance provided by the city to any person for the purpose of promoting economic development, job retention, or job growth. Direct financial assistance includes, but is not limited to, grants (excluding those grants that qualify as city contracts), bond financing, debt forgiveness, waivers of city-imposed fees, abatements or refunds of any taxes due to the city, payment in lieu of taxes (PILOT, and tax-increment financing provided exclusively by the city. A loan shall be regarded as direct financial assistance to the extent of any differential between the amount of the loan and the present value of the payments thereunder, discounted over the life of the loan by the applicable federal rate as used in 26 U.S.C. § 1274(d), 7872(f). A lease, sale or other below-market transfer of city property shall be regarded as direct financial assistance to the extent of the differential between the value of the transaction and the fair market value. Direct financial assistance includes payment in lieu of taxes (PILOT) and other financial assistance provided by the city to any person through the Industrial Development Board of the City of New Orleans, Inc., or any similar entity created by a public body, for the purpose of promoting economic development, job retention, or job growth within the City of New Orleans. Broadly applicable tax reductions and other benefits shall not qualify as city financial assistance. City staff assistance shall not by itself be considered city financial assistance. The opportunity to enter into a contract with the city shall not by itself be considered city financial assistance.

(11) *"City financial assistance agreement"* means any contract or agreement to provide or extend city financial assistance, or otherwise involving the award of city financial assistance.

(12) *"Beneficiary"* means any person that is a recipient of city financial assistance, as defined above.

(13) *"Living wage"* means a wage equal to the levels established in section 70-806.

(14) *"Person"* means any individual, partnership, corporation, limited liability company, sole proprietorship, association, joint adventure, estate, trust, and any other entity, group or combination acting as a unit, and the individuals constituting such group or unit.

(15) *"Health benefits"* means an employer's monetary contribution toward the cost of health and medical care insurance for covered employees and their dependents. Health benefits may include the following types of insurance: medical health including mental health, dental, and vision care.

(M.C.S., Ord. No. 26521, § 1, 8-6-15; M.C.S., Ord. No. 26905, § 1, 5-5-16; M.C.S., Ord. No. 27881, § 1, 10-4-18)

Sec. 70-803. Applicability.

This article shall apply to any covered employer relative to any city contracts or city financial assistance agreements awarded, entered into, extended or renewed after the effective date of this article.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-804. Covered employer.

(1) A city contractor is a "covered employer" for any city contract where the value is or is projected to be $25,000.00 or more. A city contractor ceases to be a covered employer for a city contract upon termination of that contract.

(2) A beneficiary is a "covered employer" if it receives city financial assistance with a combined value that is (or is projected to be) valued at $100,000.00 or more for any 12-month period. A beneficiary is a covered employer for all existing city financial assistance agreements from the beginning of the term of the city financial assistance agreement that causes the cumulative value of all city financial assistance agreements received by the beneficiary to exceed $100,000.00. A beneficiary ceases to be a covered employer ten years after the later of the following dates: the date upon which its most recent applicable city financial assistance agreement was executed; or the date upon which it ceased to receive applicable city financial assistance.

(3) A subcontractor is a "covered employer" beginning on the later of the following dates: (a) the beginning of the term of the subcontract; or (b) the date on which the subcontractor's associated contractor or beneficiary becomes a covered employer. A subcontractor ceases to be a covered employer on the earlier of the following dates: (a) the termination of the subcontract; or (b) the date on which the subcontractor's associated contractor or beneficiary ceases to be a covered employer. A subcontractor is not a covered employer through a beneficiary of a city financial assistance agreement that does not cause the beneficiary to be a covered employer or where the beneficiary is not otherwise a covered employer at the execution of the subcontract.

(4) Prior to entering into a subcontract, a city contractor, beneficiary, or other covered employer shall notify subcontractors in writing of the requirements and applicability of this article.

(5) City contractors and beneficiaries shall be deemed responsible for violations of this article by their subcontractors.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-805. Covered employee.

(1) Employees of covered employers are covered employees for all hours they perform work: (a) pursuant to a city contract; or (b) directly related to, or arising from, the project or purpose for which city financial assistance was provided.

(2) Where a covered employer cannot determine which of its employees perform work relating to a city contract, all of its employees shall be covered employees.

(3) Student interns and unpaid volunteers are not covered employees.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-806. Living wage required.

(1) Every covered employer shall pay covered employees no less than the living wage for all hours worked as a covered employee. The living wage shall be as follows:

(a) The living wage payable pursuant to any city contract or city financial assistance agreement, or any extensions thereof, shall be $11.19 per hour for any work performed on or before December 31, 2021.

(b) The living wage payable pursuant to any city contract or city financial assistance agreement, or any extensions thereof, shall be $13.25 per hour for any work performed during calendar year 2022.

(c) The living wage payable pursuant to any city contracts or city financial assistance agreement, or any extensions thereof, shall be $15.00 per hour for any work performed during calendar year 2023.

(d) The living wage payable pursuant to any city contract or city financial assistance

agreement, or any extensions thereof, for work performed during calendar 2024 before August 1, 2024 shall be $15.00 per hour plus any adjustment provided in subsection (2).

(e) The living wage payable pursuant to any city contract or city financial assistance agreement, or any extensions thereof, for work performed on August 1, 2024 or thereafter shall be $15.56 per hour plus any adjustment provided in subsection (2).

(2) The living wage shall be annually adjusted for inflation, as defined by the Consumer Price Index calculated by the U.S. Bureau of Labor Statistics as applied to the South Region, except that in no instance shall the living wage be adjusted downward. The first adjustment shall become effective on January 1, 2024 using the Consumer Price Index figures provided for the preceding calendar year, and thereafter on an annual basis.

(3) The designated department shall make the current living wage rates publicly available, including on the city's website.

(4) The living wage applicable to any city contract or city financial assistance agreement with a term of longer than one year, inclusive of any renewal terms or extensions, shall be subject to section 70-813.
(M.C.S., Ord. No. 26521, § 1, 8-6-15; M.C.S., Ord. No. 28718, § 1, 7-1-21; M.C.S., Ord. No. 30012, § 1, 8-8-24)

Sec. 70-807. Compensated leave.

(1) Covered employers shall permit covered employees to take at least seven days per year of compensated leave.

(2) Such leave may be taken for medical or dental visits and may be taken without prior notice to the covered employer when an employee or a member of his or her immediate family is sick.

(3) When the need to take leave is foreseeable, covered employers may require reasonable advance notice of a covered employee's intent to use compensated leave.

(4) Such leave shall be accrued and used on a prorated hourly basis at a rate of not less than three minutes per hour worked up to seven days of accrued leave.

(5) Covered employers that pay their lowest paid covered employees at least 30 percent more in hourly wage rate than the applicable living wage shall be exempt from the compensated leave requirement.

(6) If supported by adequate documentation, the prorated hourly cost of health benefits provided by an employer to a covered employee shall be considered in determining whether an employer qualifies for the exemption provided in section 70-807(5). The prorated hourly cost of health benefits shall not be considered in determining whether an employer meets the living wage requirements set forth in [section] 70-806.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-808. Retaliation prohibited.

(1) No covered employer shall discharge or take other adverse action against any person in retaliation for asserting in good faith any claim or right under this article, for assisting any other person in doing so, or for informing any person about their rights.

(2) No covered employer shall reduce any wages or benefits due any employee, covered or not, to offset the costs associated with work covered by this article.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-809. Waiver and exceptions.

(1) Participants in the JOB1 Youth Works program, youth employed as part of any city-subsidized summer youth employment program, and individuals receiving job-skills preparation through a program subsidized or funded through city financial assistance shall not be considered covered employees.

(2) Student interns and unpaid volunteers are not covered employees.

(3) Workers covered by section 70-416 of this Code shall not be considered covered employees under this article.

(4) Parties subject to this article may by collective bargaining agreement provide that such agreement shall supersede the requirements of this article all or in part.

(5) By council motion, waivers and exceptions to this article may be made when reasonably appropriate, provided that the provisions of this article are met to the extent practicable.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-810. Monitoring.

(1) Every covered employer shall be deemed to have agreed to the payment of a living wage as a condition of entering into or renewing a city contract, or receiving city financial assistance, and shall: (a) post a notice in a prominent place regarding the applicability of this article in every workplace in which covered employees are working that is within employer's custody and control; and (b) provide payroll records or any other documentation deemed necessary to ensure compliance with this article within ten business days from the city's request.

(2) Prior to entering into a city contract or city financial assistance agreement, a covered employer shall submit all required documentation to the designated department indicating compliance with this article.

(3) The director of the designated department shall ensure that all city contracts and city financial assistance agreements comply with Civil Service Rule III Sec. 6.1-6.6 and shall provide such information to the civil service commission as is required for its review and approval.

(4) Any person may submit a complaint or report of a violation of this article to the designated department. Upon receipt of such a complaint or report, the designated department shall investigate to determine if there has been a violation. The investigation shall be resolved within 90 days.

(5) Failure to comply with the requirements of this article shall be deemed a material breach of the city contract or city financial assistance agreement.

(6) The designated department of the city shall monitor the compliance of each covered employer under rules and regulations developed by the designated department and approved by the mayor.

(7) As part of its annual budget presentation, the designated department shall present a written report to the council detailing its efforts to monitor compliance with this article. This report, which shall be presented in connection with the mayor's annual budget presentation, shall identify each city contract or city financial assistance agreement involving a covered employer and, for each, shall identify (a) the hourly wage earned by the lowest paid covered employee and (b) the number of days of compensated leave received by employees earning less than 130 percent of the then-prevailing living wage.
(M.C.S., Ord. No. 26521, § 1, 8-6-15; M.C.S., Ord. No. 28387, § 1, 7-2-20)

Editor's note—M.C.S., Ord. No. 28387, § 3, states: The reporting provisions of Section 70-810(7) shall not take effect until 2021.

Sec. 70-811. Penalties and enforcement.

(1) A violation of any provision of this article is a civil infraction punishable by a fine of not more than the maximum fine for the Municipal Court of the Parish of Orleans plus all costs of the action. Any court of competent jurisdiction may issue and enforce any judgment, writ, or order necessary to enforce this article, including back pay to affected employees and other relief deemed appropriate.

(2) Each day upon which a violation occurs shall constitute a separate violation.

(3) In addition to enforcement under subsections (1) and (2), the city shall have the right to modify, terminate, and/or seek specific performance of any city contract or city financial assistance agreement with a covered employer or to cancel, terminate or suspend the city contract in whole or in part and/or to refuse any further payments under the city contract or city

financial assistance. The city may also debar the covered employer from receipt of city contracts or city financial assistance for a period not to exceed two years.

(4) Nothing contained in this article shall be construed to limit in any way the remedies, legal or equitable, which are available to the city or any other person for the correction of violations of this article.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-812. Effective date.

This article shall take effect on January 1, 2016.
(M.C.S., Ord. No. 26521, § 1, 8-6-15)

Sec. 70-813. Multi-year agreements.

Any city contract or city financial assistance agreement with a term of longer than one year, inclusive of any renewal terms or extensions, shall provide for appropriate annual adjustments to ensure that the living wage payable during any given year of the agreement corresponds to the then-current living wage for that year, as set forth in section 70-806.
(M.C.S., Ord. No. 28387, § 2, 7-2-20; M.C.S., Ord. No. 28718, § 1, 7-1-21)

Secs. 70-814—70-821. Reserved.

Sec. 70-822. Guaranteed base wage for musicians.

(a) For purpose of this section, the following terms shall have the following meanings:

(1) *"Musician"* means any person engaged in the act of musical performance, whether individually or as part of an ensemble, and includes vocalists, DJs or deejays, conductors, and persons playing musical instruments. The term does not include non-musical accompaniment, such as back-up dancers, or individuals employed to produce a musical performance, such as sound technicians, managers, and other staff; and

(2) *"Musical act"* means one or more musicians engaged to provide a musical performance and includes bands, marching bands, orchestras, and any other type of musical ensemble or group.

(b) Except as otherwise provided herein, any musical act compensated with public funds for a musical performance shall be paid, excluding tips or other gratuities, at least $200.00 per musician, per hour of actual musical performance, with a minimum compensation of $200.00 per musician for a performance. A musical act with ten musicians or more shall be paid at least $2,000.00 per performance. Nothing herein shall prohibit the city or any public agency from paying in excess of the minimum wage or preclude the city from paying additional monies, at an agreed-upon rate, to compensate non-musician members of a musical act or for the time associated with non-performance elements of an engagement, such as loading, unloading and sound checks.

(c) The musician minimum wage set forth in the preceding subsection shall be required in circumstances where the city, a political subdivision established in the Home Rule Charter, or a city-owned corporation:

(1) Contracts directly with a musical act for a musical performance, or

(2) Contracts with a third party to stage an event featuring a musical performance, unless the contract contains a provision asserting that no public funds payable under the contract will be used to fund or subsidize the cost of the musical performance.

(d) The provisions of this section shall not apply to performances by groups whose members are uncompensated volunteers, such as school musical groups and musical groups affiliated with religious institutions.

(e) Nothing herein shall prohibit any musical act agreeing to provide services to the city without compensation, or at a reduced rate, provided that the city shall not unreasonably solicit uncompensated musical performances from musical acts or otherwise engage in practices

intended to circumvent the minimum wage set forth herein, such as engaging a musical act to work on a tips-only basis.

(f) The musician living wage thresholds established herein shall be annually adjusted for inflation, as defined by the Consumer Price Index calculated by the U.S. Bureau of Labor Statistics as applied to the South Region, except that in no instance shall the living wage be adjusted downward. The first adjustment shall become effective on January 1, 2026 using the Consumer Price Index figures provided for the preceding calendar year, and on January 31 each year thereafter.

(g) When the city, a political subdivision established in the Home Rule Charter, or a city-owned corporation expends public funds for a musical performance, each entity shall submit a quarterly report to the clerk of council listing the name of the musician or musical act, the duration of the musical performance, and the amount of compensation provided to the musician or musical act as well as any additional compensation provided for services including but not limited to loading, unloading, and soundcheck.
(M.C.S., Ord. No. 29990, § 1, 7-25-24)

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RESERVED

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Sec. 74-154. Amount of service charge.
Sec. 74-155. Service stations; flat fee.

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*__Editor's note—__The greater part of the regulations designed for fire prevention are found in the New Orleans Fire Prevention Code, M.C.S., Ord. No. 770, which is separately published and therefore not printed in this Code nor repealed hereby. The New Orleans Building Code, C.C.S., Ord. No. 17,525 is also separately published and therefore not included herein.

__Charter reference—__Fire department, §§ 4-401, 4-602.

__Cross references—__Buildings, building regulations and housing standards, ch. 26; International Fire Code—Adopted, § 26-21; International Fire Code—Amendments, § 26-22; smoking prohibited on a Mardi Gras parade truck or float, § 34-81; smoking in public places prohibited, § 66-71; burning of refuse prohibited, § 66-244; fire prevention and protection in mobile home parks, § 98-69.

__State law reference—__Fire prevention or protection, R.S. 40:1491 et seq.

Sec. 74-156. Method of payment; when due.
Sec. 74-157. Penalties and interest.
Sec. 74-158. Violations.
Sec. 74-159. Exemption.

ARTICLE I. IN GENERAL

Sec. 74-1. Obstruction of firefighters.

It shall be unlawful and shall be considered a breach of the peace for any person wilfully to obstruct, hinder or unlawfully interfere with any member of the city fire department while in the performance of his duty.
(Code 1956, § 24-21)

Sec. 74-2. Cursing, etc., firefighters prohibited.

It shall be unlawful and a breach of the peace for any person wantonly to curse or revile or to use obscene or opprobrious language toward or with reference to any member of the city fire department while in the actual performance of his duty.
(Code 1956, § 24-22)

Sec. 74-3. Impersonating firefighters, fire inspectors, etc.

It shall be unlawful for any person, not authorized by law to do so, to:

(1) Wear the uniform and insignia, or any portion thereof, of the city fire department;

(2) Undertake to act or to represent himself as a member of the city fire department; or

(3) Represent himself as a firefighter or fire inspector.

(Code 1956, § 24-23)

Sec. 74-4. Reserved.

Sec. 74-5. Spark arresters required on certain vessels and engines.

All harbor tugboats and other like craft, all vessels or steamships using donkey engines (when the smokestacks of the donkey engine do not enter the mainstacks of the vessel) plying within the city or lying at the wharves or levees, all hoisting engines or other engines using forced draft with low chimneys, whether on shore or afloat, and all donkey engines or other engines near or contiguous to wharves where there is cotton shall have spark arresters attached to their smokestacks in such manner as will arrest the emission of sparks.
(Code 1956, § 24-2)

Sec. 74-6. Railroad locomotive to have spark arresters.

It shall be unlawful for any railroad locomotive to run within the limits of the city without having spark arresters attached to the smokestacks thereof.
(Code 1956, § 24-3)

Sec. 74-7. Storing cotton near railroad tracks.

It shall be unlawful for any person to store cotton or other inflammable or combustible articles within 50 feet of the railroad tracks on the levee or open yards.
(Code 1956, § 24-4)

Sec. 74-8. Smoking on vehicles loaded with cotton.

No person shall smoke any pipe, cigar or cigarette or tobacco ignited in any way by fire upon any dray or vehicle of any kind used in conveying cotton, when so loaded with bales or crates of cotton, to and from press or railroad depot.
(Code 1956, § 24-5)

Sec. 74-9. Smoking in holds of vessels prohibited.

No person shall smoke, handle or use tobacco lighted by fire or light or set on fire matches in the hold of any steamship or steam or gasoline boat or sailing ship lying at any wharf, landing or shed under the jurisdiction of the board of commissioners of the Port of New Orleans, or moored thereto, or on any float, dray or vehicle of any description passing on or over or using any such wharf.
(Code 1956, § 24-6)

Sec. 74-10. Handling gasoline, etc., on wharves, etc.

Every person handling gasoline, benzine, naphtha, petrol, fuel alcohol, turpentine or any other flammable liquid which may ignite at a flash point of 90 degrees Fahrenheit and under, on, across or within 50 feet of the land side of any public or private wharf, dock or shed of the city, shall handle such liquid only in tightly secured and closed receptacles as listed by the Underwriters' Laboratories, Inc., which shall at all times remain closed and secured while on vessels lying at any wharf, dock or shed in the Port of New Orleans, except when it is being actually poured into the tank of any gasoline-propelled vessel or the tank of any stove in which gasoline may be used.
(Code 1956, § 24-7)

Secs. 74-11—74-45. Reserved.

ARTICLE II. ALARMS*

Sec. 74-46. Operating requirements for alarm or surveillance equipment licensees.

Each alarm and surveillance equipment supplier or installer licensed to do business in this city shall meet the following operating requirements:

(1) *Business office.* The licensee must have a business office and location and a listed business telephone answered 24 hours a day.

(2) *Twenty-four-hour service.* The licensee shall have available, on a 24-hour basis, personnel who can respond for emergency service purposes.

(3) *Three years' minimum experience.* The licensee must have an employee or agent with a minimum of three years' prior alarm experience involving the installation and service of security alarm systems.

(4) *Inventory.* The licensee must maintain an inventory to provide normal service within a 24-hour period of time.

(5) *Company identification.* Each alarm system must have, permanently displayed, a decal or sign giving the name of the company or individual who can be contacted for service and/or information concerning that system.

Sec. 74-47. Responsibility for false alarms.

Any person occupying any dwelling, store or other place of business or the owner of any unoccupied building in which automatic fire alarm wires are strung shall be responsible for any false alarm which may be sent from their respective places.
(Code 1956, § 24-14)

Secs. 74-48—74-85. Reserved.

ARTICLE III. OPERATIONS

Sec. 74-86. Police to keep open space in front of fires.

At all fires the police shall keep the space immediately in front of the fire free from intrusion by persons not rendering aid at the fire so that the firefighters may be enabled to better discharge their duty and, in case of danger, effect their escape.
(Code 1956, § 24-17)

Sec. 74-87. Cutting power off wires near fire.

The superintendent of the fire department or his representative may order shut off of any electric power on any wires in the vicinity of any fire.
(Code 1956, § 24-18)

Sec. 74-88. Owners of wires to maintain crew to cut wires, etc.

All persons having overhead wires in the city shall maintain a sufficient crew of men to answer all alarms of fire promptly; such crew to be equipped to cut wires and to perform any and all acts necessary in connection with such wiring to maintain safe conditions. Persons maintaining

*Cross reference—Fire alarm boxes required in certain areas of places of amusement and entertainment, § 14-43.

overhead wires in the city may by agreement satisfactory to the superintendent of the fire department, maintain a joint service to comply with this section.
(Code 1956, § 24-19)

Sec. 74-89. Demolition of house in path of fire.

When, in order to stay the progress of a fire, it shall be deemed proper to demolish one or more houses or buildings, the mayor or, in his absence, the superintendent or acting superintendent of the fire department shall take the advice of three proprietors of houses and, if he and they be unanimously of the opinion that the house should be demolished, the mayor or superintendent or acting superintendent may give orders for the destruction of such house or buildings and the opinion of such officers and advisers shall be reduced to writing and signed by them and shall be recorded in the mayor's office. In case the pulling down and demolition of any house or building by the direction of the mayor, or other officer aforesaid, shall be the means of stopping the fire or, if the fire shall stop before it comes to the house demolished, then the owner of such house or building shall be entitled to recover a reasonable compensation therefor from the city; but when the building so pulled down or demolished shall be that in which the fire originated, then the owner shall be entitled to no compensation therefor.
(Code 1956, § 24-20)

Secs. 74-90—74-120. Reserved.

ARTICLE IV. FEES

DIVISION 1. GENERALLY

Sec. 74-121. Charges for use of equipment and services.

The following charges will be made by the fire department for use of equipment and/or services not connected with fire suppression of the city:

Item	*Deposit*	*Charge*
Length of 2½" hose	$100.00 per length	$ 25.00 per day
Hydrant adapter	50.00	50.00 per day
Hydrant key	50.00	10.00 per day
1½" nozzle	200.00	25.00 per day
2½" nozzle	400.00	40.00 per day
Air mask	600.00	125.00 per day
Air cylinder	50.00 per cylinder	15.00 each
Salvage cover	100.00	50.00 per day

Item	*Charge*
Washing concrete from forms of roadways	$500.00 per hour
Pumping out elevator shafts, basements, etc.	375.00 per hour
Flag poles, replacing rope	250.00 each
Filling swimming pools Plus water cost	250.00 per hour
Replacement of light bulbs in auditoriums, outside, etc.	125.00 per bulb
Old 1½" hose less butts, minimum 10 feet	2.00 per foot
Old 2½" hose less butts, minimum 10 feet	3.00 per foot
Opening house to gain entrance	125.00 each
Apparatus to standby during film making, additionally, fees must be paid for the private detail of 4 fire personnel.	500.00 per day per apparatus

(Code 1956, § 24-24)

Sec. 74-122. Fire prevention division charges.

(a) For all certificates of compliance the following annual charges will be made by the fire prevention division of the fire department:

More Than (Sq. Ft.)	*Less Than (Sq. Ft.)*	*Inspection Fee*
—0—	10,000	$ 30.00
10,000	50,000	55.00
50,000	100,000	80.00
100,000	150,000	105.00
150,000	200,000	130.00
200,000	250,000	155.00
250,000	300,000	180.00
300,000	350,000	205.00
350,000	400,000	230.00
400,000	450,000	255.00
450,000	500,000	280.00

More Than (Sq. Ft.)	*Less Than (Sq. Ft.)*	*Inspection Fee*
500,000	550,000	305.00
550,000	600,000	330.00
600,000	650,000	355.00
650,000	700,000	380.00
700,000	750,000	405.00
750,000	800,000	430.00
800,000	850,000	455.00
850,000	900,000	480.00
900,000	950,000	505.00
950,000	1,000,000	530.00
1,000,000	1,050,000	555.00
1,050,000	1,100,000	580.00
1,100,000	1,150,000	605.00
1,150,000	1,200,000	630.00

For any area in excess of 1,200,000 feet, add $12.50 for each additional 50,000 square feet, or any part thereof, as per schedule.

(b) For the first two reinspections of premises necessary for the issuance of a certificate of compliance the following charges will be made by the fire prevention division of the fire department, only if outstanding violations have not been corrected:

More Than (Sq. Ft.)	*Less Than (Sq. Ft.)*	*Reinspection Fee*
—0—	50,000	$ 50.00
50,000	100,000	100.00
Over 100,000		200.00

(c) Charges in addition to inspection of premises are as follows:

Explosive shipments	$ 50.00 per shipment
Tents	64.00 per month or less per tent
Tank vehicles (flammable liquids)	70.00 per year
Blasting operations	50.00 per day
Bonfires	30.00 per day
Pain burning	30.00 per day
Pyrotechnic displays	70.00 per day
NOFD "No Smoking" signs	6.00 each
Copies or certified copies of fire suppression reports	14.00 each
Copies of fire prevention code	40.00 each
Underground tank inspection	70.00 each
Copies or certified copies of fire investigative reports	14.00 each
Copies or certified copies of arson investigative reports	25.00 per hour or 200.00, whichever is greater

(d) *Exceptions to fee charges.* No fees should be charged to the following:

(1) Premises owned and operated by city, state or federal government.

(2) All private residences consisting of two or less units.

(3) Premises owned and occupied solely by and full time by charitable and/or nonprofit organizations.

(Code 1956, § 24-25)

Secs. 74-123—74-150. Reserved.

DIVISION 2. HAZARDOUS MATERIALS

Sec. 74-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hazardous materials means any gaseous, liquid, or solid material listed and/or defined in article 2 of M.C.S., Ordinance No. 4,912, also known as the fire prevention code of the city.

(Code 1956, § 24-28)

Cross reference—Definitions generally, § 1-2.

Sec. 74-152. Imposition of service charge.

Because of the danger posed to human life and personal property by the handling of hazardous materials, there is hereby imposed an annual ser-

vice charge upon every person who uses, stores, transports, manufactures, generates, or disposes of or sells hazardous materials within the city.
(Code 1956, § 24-27)

Sec. 74-153. Establishment of service charge.

(a) Every person who owns, operates, or acts as an agent for an establishment where one or more hazardous materials are used, stored, transported, manufactured, generated, disposed of, or sold shall pay an annual service charge.

(b) Where more than one such establishment or facility is kept or conducted by the same person, a separate service charge shall be paid for each separate establishment.
(Code 1956, § 24-29)

Sec. 74-154. Amount of service charge.

The service charge shall be based upon the maximum quantity of a hazardous material used, stored, transported, manufactured, generated, or sold at any one time during the preceding year and as shown in the following table:

Fee	*Liquid Gallons*	*Pounds Solid*	*Cubic Feet Gas*
$ 25	under 25	under 50	under 50
50	25 to 55	50 to 100	50 to 100
200	55 to 500	100 to 1,000	100 to 1,000
500	500 to 3,000	1,000 to 10,000	1,000 to 10,000
1,000	3,000 to 30,000	10,000 to 50,000	10,000 to 50,000
2,000	over 30,000	over 50,000	over 50,000

(Code 1956, § 24-30; Ord. No. 19,943, § I, 12-1-00)

Sec. 74-155. Service stations; flat fee.

Service stations engaged in retail sales of gasoline shall pay a flat fee of $100.00 per location.
(Code 1956, § 24-31; Ord. No. 19,944, § I, 12-1-00)

Sec. 74-156. Method of payment; when due.

All annual service charges shall be due on January 1 and shall become delinquent on March 1 of each year and shall be paid by check or postal money order to the director of the department of finance, accompanied by such return or reporting forms as the director may require, who shall, upon receipt of all payments due, issue to each establishment a proper receipt evidencing that full payment has been made.
(Code 1956, § 24-32)

Sec. 74-157. Penalties and interest.

(a) If the service charge due by any person under this article is not paid on or before the date prescribed for its payment, there shall be collected, with such charges, interest at the rate of 12 percent per annum from the delinquent date until paid.

(b) There shall also be collected a penalty of five percent of the service charge for each month or fraction thereof if the fee is delinquent for more than 30 days, not to exceed 25 percent of the service charge on the aggregate and, in the event of suit attorneys' fees, at the rate of ten percent on the aggregate amount of service charge, interest and penalty.

(c) All penalties and interest imposed by this article shall be payable to and recoverable by the director of the department of finance in the same manner as if they were part of the service charge imposed.

(d) If the failure to pay any service charge when due is explained to the satisfaction of the director he may waive payment of the whole or any part of any such penalty and/or interest.

(e) If any person shall fail to make a true return or report, as required by this article, the director of the department of finance, within three years from December 31 of the year in which such return or report was required to be filed by this article, may calculate the amount of charges such person is liable to pay under the terms of this article, from any information he is able conveniently to obtain, and according to such calculation so made by him, assess the charges, fees, penalties and interest due the city from such person, give notice of such assessment to such person, and make demand upon him for payment.

(f) A separate receipt shall be issued for each location operated or maintained by any person subject to the provisions of this article. It shall be

the duty of that person to maintain the receipt on the premises in each place of business at all times.

(g) All persons subject to the provisions of this article shall make the premises available for inspection by the director of the department of finance, the superintendent of fire, or their deputies or assistants during normal business hours.
(Code 1956, § 24-33)

Sec. 74-158. Violations.

It shall be unlawful and a misdemeanor to do anything prohibited or to fail to do anything required by this article. Any person, member of any firm, officer, manager or agent of any corporation, violating any of the provisions of this article, shall be fined not more than $300.00 nor less than $50.00, or imprisoned for not more than five months nor less than 60 days, or both.
(Code 1956, § 24-34)

Sec. 74-159. Exemption.

Natural persons who use, store, transport, generate or dispose of hazardous materials in consumer quantities for private, personal, noncommercial purposes are specifically excluded from compliance with the provisions of this article.
(Code 1956, § 24-35)

Chapters 75—77

RESERVED

Chapter 78

FLOODS*

Article I. In General

Sec. 78-1. Drains, etc., not to be obstructed.
Secs. 78-2—78-50. Reserved.

Article II. Flood Damage Prevention

Division 1. Floodplain Regulation

Sec. 78-51. Statutory authorization.
Sec. 78-52. Finding of fact.
Sec. 78-53. Statement of purpose.
Sec. 78-54. Methods of reducing losses.
Sec. 78-55. Definitions.
Sec. 78-56. Application of article.
Sec. 78-57. Floodplain management programs in adjoining parishes.
Sec. 78-58. Basis for establishing special flood hazard areas.
Sec. 78-59. Establishment of building permit.
Sec. 78-60. Compliance.
Sec. 78-61. Abrogation, greater restrictions, and severability.
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Sec. 78-63. Warning and disclaimer of liability.
Sec. 78-64. Status of conflicting ordinances.
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Division 3. Waiver of Regulations

Sec. 78-101. Function of the board of building standards and appeals.
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***Editor's note—**M.C.S., Ord. No. 26906, § 1, adopted May 5, 2016, effective June 1, 2016, amended Ch. 78 in its entirety to read as herein set out, with the exception of §§ 78-140 and 78-141, which, at the direction of the city, shall remain unaffected. Former Ch. 78, §§ 78-1, 78-36—78-52, 78-76—78-82, 78-106, 78-107, 78-131—78-139, pertained to similar subject matter, and derived from Code 1956, §§ 32-1—32-20, 32-22—32-35, 32-37, 59-5; M.C.S., Ord. No. 22354, § 1, adopted August 25, 2006; M.C.S., Ord. No. 23242, § 1, adopted Sept. 18, 2008.

Cross reference—Buildings, building regulations and housing standards, ch. 26.

Division 4. Flood Hazard Reduction

Sec. 78-121. General standards.
Sec. 78-122. Specific standards.
Sec. 78-123. Manufactured homes—Compliance with regulations.
Sec. 78-124. Same—Standards for placement and elevation.
Sec. 78-125. Same—Restricted in coastal high-hazard areas.
Sec. 78-126. Same—Adherence to regulations in coastal high-hazard areas.
Sec. 78-127. Standards for subdivision proposals.
Sec. 78-128. Standards for placement of recreational vehicles in AE, V, and X zones.
Sec. 78-129. Coastal high-hazard areas.
Secs. 78-130—78-139. Reserved.
Sec. 78-140. Neighborhood rebuilding equity procedures.
Sec. 78-141. Equitable labor force participation and employment opportunities in disaster areas.

ARTICLE I. IN GENERAL

Sec. 78-1. Drains, etc., not to be obstructed.

No person shall impede or obstruct the flow of water in any gutter, canal, pipe or other conduit used for draining within the limits of the city.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Secs. 78-2—78-50. Reserved.

ARTICLE II. FLOOD DAMAGE PREVENTION*

DIVISION 1. FLOODPLAIN REGULATION

Sec. 78-51. Statutory authorization.

The provisions of this article are adopted pursuant to the authority granted through R.S. 38:84 which allows municipalities of the state to adopt such ordinances, rules, and regulations as are necessary to comply with the requirements of the National Flood Insurance Act of 1968, and the regulations adopted pursuant thereto by the Federal Emergency Management Agency (FEMA).
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-52. Finding of fact.

(a) The flood hazard areas of Orleans Parish are subject to periodic inundation which may result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, and extraordinary public expenditures for flood protection and relief, all of which adversely affect the public health, safety and general welfare.

(b) These flood losses are created by the cumulative effect of obstructions in floodplains which cause an increase in flood heights and velocities, and by the occupancy of flood hazard areas by uses vulnerable to floods and hazards to other lands because they are inadequately elevated, flood-proofed or otherwise protected from flood damage.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-53. Statement of purpose.

(a) The principal purpose of the regulations in this article is to prescribe minimum requirements for land use and control measures for flood prone areas in the city, as determined by FEMA. These regulations are based upon relevant technical storm data specific to Orleans Parish, as developed by the U.S. Army Corps of Engineers and the National Academy of Sciences. These measures must be applied uniformly throughout the community to all privately and publicly owned land within flood prone areas, based upon standards set forth in these regulations, as prescribed by FEMA.

(b) Official flood maps entitled Digital Flood Insurance Rate Maps (D-FIRM) for Orleans Parish, Louisiana (Community No. 225203, Panel Numbers 22071C0045F, 22071C0075F, 22071C0100F, 22071C0105F, 22071C0110F, 22071C0113F, 22071C0114F, 22071C0115F, 22071C0118F, 22071C0119F, 22071C0120F, 22071C0126F, 22071C0127F, 22071C0128F, 22071C0129F, 22071C0135F, 22071C0136F, 22071C0137F, 22071C0138F, 22071C0139F, 22071C0141F, 22071C0142F. 22071C0143F, 22071C0144F, 22071C0175F, 22071C0200F, 22071C0207F, 22071C0209F, 22071C0217F, 22071C0226F, 22071C0227F, 22071C0228F, 22071C0229F, 22071C0231F, 22071C0232F, 22071C0233F, 22071C0234F, 22071C0236F, 22071C0237F, 22071C0241F, 22071C0242F, 22071C0244F, 22071C0255F, 22071C0260F, 22071C0261F, 22071C0262F, 22071C0263F, 22071C0264F, 22071C0266F, 22071C0268F, 22071C0269F, 22071C0330F, 22071C0360F), dated September 30, 2016, and as may be amended by Letters of Map Amendment or Letters of Map Revision subsequently issued by FEMA, are hereby adopted by the City of New Orleans and are on file with the clerk of council and the department of safety and permits.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

*Cross references—Buildings, building regulations and housing standards, ch. 26; manufactured homes and parks, ch. 98; planning, ch. 118; streets, sidewalks and other public places, ch. 146; utilities, ch. 158; waterways, ch. 170.

State law reference—Parishes and municipalities authorized to comply with Federal Flood Insurance Act, R.S. 38:84.

Sec. 78-54. Methods of reducing losses.

(a) In order to accomplish its purposes, this article uses the following methods:

(1) Restricts or prohibits uses that are dangerous to health, safety or property in times of flood, or cause excessive increase in flood heights or velocities;

(2) Requires that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

(3) Controls the alteration of natural floodplains, stream channels, and natural protective barriers, which are involved in the accommodation of floodwaters;

(4) Controls filling, grading, dredging and other development which may increase flood damage; and

(5) Prevents or regulates the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.

(b) The city's participation in the FEMA sponsored Community Rating System (CRS) Program provides incentives for activities that reduce flood losses and support the sale of flood insurance. This program will result in flood premium reductions for city residents. The department of safety and permits is designated as the city's lead agency or CRS coordinator to the program. Part of the program's goal is to actively involve city departments and associated agencies in the development, advertising, and enforcement of any activity that would reduce property damage and residential liability in the event of flooding. Participation in the CRS Program includes annual review and revision of the floodplain management plan for the city, which may include a public hearing process, citywide mail-outs, and other forms of public advertisement. The plan will be made available to the public and interested parties through the city public library system, city planning commission, department of safety and permits, and the office of the clerk of council.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-55. Definitions.

(a) The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Appeal* means a request for a review of the director's interpretation of any provision of this article or a request for a variance.

(2) *Base flood* means the flood having a one percent chance of being equaled or exceeded in any given year.

(3) *Base flood elevation (BFE)* means the elevation of surface water resulting from a flood that has a one percent chance of equaling or exceeding that level in any given year. The BFE is shown on the Flood Insurance Rate Map (FIRM) for zones AE and VE.

(4) *Basement* means any area of the building having its floor subgrade (below ground level) on all sides.

(5) *Benchmark elevations* means the January 1986 adjustment of the 1985 Vertical Control Survey of Orleans Parish, Louisiana, published by National Geodetic Survey and/or any subsequent adjustments published by National Geodetic Survey and recognized by FEMA.

(6) *Breakaway wall* means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces, without causing damage to the elevated portion of the building or supporting foundation system.

(7) *Coastal high-hazard area* means an area of special flood hazard extending from offshore to the inland limit of a primary frontal dune along an open coast and any other area subject to high velocity wave action from storms or seismic sources.

(8) *Critical feature* means an integral and readily identifiable part of a flood protec-

tion system, without which the flood protection provided by the entire system would be compromised.

(9) *Development* means any man-made change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations or storage of equipment or materials.

(10) *Director* means the director of the department of safety and permits.

(11) *Elevated building* means a building that has no basement and that has its lowest elevated floor raised above ground level by foundation walls, shear walls, posts, piers, pilings, or columns. Solid perimeter foundation walls are not an acceptable means of elevating buildings in V and VE zones.

(12) *Existing construction* means, for the purposes of determining flood insurance rates, structures for which the start of construction commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. Existing construction may also be referred to as existing structures.

(13) *Existing manufactured home park or subdivision* means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

(14) *Expansion to an existing manufactured home park or subdivision* means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

(15) *Federal insurance administrator* means the individual to whom the director of FEMA has delegated the administration of the National Flood Insurance Program.

(16) *Flood* means a general and temporary condition of partial or complete inundation of two or more acres of normally dry land area or of two or more properties (at least one of which is the policyholder's property) from: 1) overflow of inland or tidal waters; 2) unusual and rapid accumulation of runoff of surface waters from any source; 3) mudflow; or 4) collapse or subsidence of land along the shore of a lake or similar body of water as a result of erosion or undermining caused by waves or currents of water exceeding anticipated cyclical levels that result in a flood, as here defined.

(17) *Flood insurance rate map (FIRM)* means an official map of a community on which FEMA has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

(18) *Flooding insurance study* is the official report provided by FEMA. The report contains flood profiles, water surface elevation of the base flood, and the flood boundary-floodway map.

(19) *Floodplain* or *floodprone area* means any land area susceptible to being inundated by water from any source (see definition of "flood").

(20) *Floodplain management program* means the operation of all overall programs of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works and land use and control measures.

(21) *Flood-proofing* means any combination of structural and nonstructural additions, changes, or adjustments to

structures which reduce or eliminate risk of flood damage to real estate or improved real property, water and sanitation facilities, or structures with their contents.

(22) *Flood protection system* means those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the areas within a community subject to a special flood hazard and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood-modifying works are those constructed in conformance with sound engineering standards.

(23) *Functionally dependent use* means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

(24) *Highest existing adjacent grade* means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

(25) *Historic building* means any building which is:

i. Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register; or,

ii. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary of the Interior to qualify as a registered historic district; or,

iii. Individually listed in a state inventory of historic places in states with preservation programs that have been approved by the Secretary of the Interior; or,

iv. Individually listed on a local inventory of historic places in communities with historic preservation programs that have been certified either:

1. By an approved state program as determined by the Secretary of the Interior; or,

2. Directly by the Secretary of the Interior in states without approved programs.

(26) *Land use and control measures* means zoning ordinances, subdivision regulations, building codes, health regulations, and other applications and extensions of the normal police power, to provide standards and effective enforcement provisions for prudent use and occupancy of flood prone and mudslide areas.

(27) *Levee* means a manmade structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding.

(28) *Levee system* means a flood protection system which consists of a levee, or levees, and associated structures such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

(29) *Lowest floor* means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor;

provided, that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirement of section 60.3 of the NFIP regulations.

(30) *Manufactured home* means a structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when attached to the required utilities. The term *manufactured home* does not include *recreational vehicles*.

(31) *Manufactured home park or subdivision* means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

(32) *Mean sea level* means the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's Flood Insurance Rate Map are referenced.

(33) *National Flood Insurance Program* means the program of flood insurance protection authorized pursuant to 42 U.S.C. 4001 through 4128.

(34) *New construction* means buildings for which the "start of construction" commenced on or after the effective date of an initial Flood Insurance Rate Map (FIRM) or after December 31, 1974, whichever is later, including any subsequent improvements.

(35) *New manufactured home park or subdivision* means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, as a minimum, the installation of utilities, construction of streets, and either final site grading or pouring of the concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

(36) *One hundred year (100-year) flood (storm).* See *"base flood"*.

(37) *One percent annual chance flood* means a flood of the magnitude that has a one percent chance of being equaled or exceeded in any given year. Often referred to as the "100-year" flood or base flood, the one percent annual chance flood is the standard most commonly used for floodplain management and regulatory purposes in the United States.

(38) *Program deficiency* means a defect in a community's floodplain management regulations or administrative procedures that impairs effective implementation of those floodplains management regulations or of the standards in section 60.3, 60.4, 60.5, or 60.6 of the NFIP regulations.

(39) *Recreational vehicle* means a vehicle which is:

i. Built on a single chassis;

ii. 400 square feet or less when measured at the largest horizontal projections;

iii. Designed to be self-propelled or permanently towable by a light duty truck; and

iv. Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

(40) *Remedy a violation* means to bring the structure or other development into compliance with state or local floodplain management regulations or, if this is not possible, to reduce the impacts of its noncompliance. Ways that impact may be reduced include protecting the structure or other affected developments from flood damages, implementing the enforcement provisions of the ordinance or otherwise deterring future similar violations, or reducing federal financial exposure with regard to the structure or other development.

(41) *Residential structure* means a building or portion thereof, designed or used exclusively for residential occupancy but not including trailers, hotels, motels or motor lodges.

(42) *Special flood hazard area (SFHA)* means an area having special flood, mudflow, or flood-related erosion hazards, and shown on a Flood Hazard Boundary Map (FHBM) or Flood Insurance Rate Map (FIRM) as zone A, AO, A1—A30, AE, A99, AH, AR, AR/A, AR/AE, AR/AH, AR/AO, AR/A1—A30, V1—V30, VE, or V. For the purpose of determining Community Rating System (CRS) premium discounts, all AR and A99 zones are treated as non-SFHAs.

(43) *Start of construction* for other than new construction or substantial improvements under the Coastal Barrier Resources Act (Pub. L. 97-348), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, placement or other improvement was within 180 days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.

(44) *Structure* means a walled and roofed building, including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home.

(45) *Substantial damage* means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

(46) *Substantial improvement* means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds 50 percent of the market value of the structure before start of construction of the improvement. This term includes structures which have incurred substantial damage, regardless of the actual repair work performed. The term does not, however, include either:

i. Any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or,

ii. Any alteration of a historic building provided that the alteration will not preclude the structure's continued designation as a historic structure.

(47) *V zone.* See *Coastal high-hazard area.*

(48) *Variance* is a grant of relief to a person from the requirements of this article when specific enforcement would result in unnecessary hardship. A variance, therefore, permits construction or development in a manner otherwise prohibited by this article. (For full requirements see section 60.6 of the NFIP Regulations.)

(49) *Violation* means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2),

(e)(4) or (e)(5) of the NFIP Regulations is presumed to be in violation until such time as that documentation is provided.

(50) *Water surface elevation* means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929, (or other datum, where specified) of floods of various magnitudes and frequencies in the flood plains of coastal or riverine areas.

(51) Any terms not defined herein shall be interpreted in accordance with 44 C.F.R. § 59.1.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-56. Application of article.

The provisions of this article shall apply to all properties within the boundaries of Orleans Parish.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-57. Floodplain management programs in adjoining parishes.

Individual floodplain management programs in Jefferson, St. Bernard, Plaquemines, and St. Tammany Parishes shall be given consideration in an approach to overall flood management in the metropolitan New Orleans area and the department of safety and permits will notify these parishes of any watercourse alterations or relocations.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-58. Basis for establishing special flood hazard areas.

The Special Flood Hazard Areas identified by FEMA in a scientific and engineering report entitled "The Flood Insurance Study for City of New Orleans and Orleans Parish, Louisiana" dated September 30, 2016, as amended by FEMA, with accompanying Flood Insurance Rate Maps (FIRMs) and Flood Boundary-Floodway Maps (FBFMs), and any revisions by FEMA thereto are adopted by reference and declared to be a part of this article.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-59. Establishment of building permit.

A building permit, issued in accordance with the standards of the Chapter 26 of this Code, shall be required to ensure conformance with the provisions of this article.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-60. Compliance.

No structure or land shall be located, altered, or have its use changed without full compliance with the terms of this article and other applicable regulations.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-61. Abrogation, greater restrictions, and severability.

This article is not intended to repeal, abrogate or impair any existing easements, covenants or deed restrictions. However, where this article and another article conflict or overlap, whichever article imposes the more stringent restrictions shall prevail. If any section, clause, sentence, or phrase of this article is held to be invalid or unconstitutional by any court of competent jurisdiction, then said holding shall in no way affect the validity of the remaining portions of this article.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-62. Interpretation.

(a) In the interpretation and application of this article, all provisions shall be:

(1) Considered as minimum requirements;

(2) Liberally construed in favor of the city council; and

(3) Deemed neither to limit nor repeal any other powers granted under state statutes.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-63. Warning and disclaimer of liability.

The degree of flood protection required by this article is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. On rare occasions greater

floods can and will occur and flood heights may be increased by manmade or natural causes. This article does not imply that land outside the areas of special flood hazards or uses permitted within such areas will be free from flooding or flood damages. This article shall not create liability on the part of the city or any official or employee thereof for any flood damages that result from reliance on this article or any administrative decision lawfully made hereunder.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-64. Status of conflicting ordinances.

In any circumstance where the standards of this article conflict with other ordinances of the City of New Orleans, the more restrictive of the two shall apply.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-65. Designation of administrator.

The director of the department of safety and permits is hereby designated to administer and implement the provisions of this article and other appropriate sections of Chapter 44 of the Code of Federal Regulations relative to the National Flood Insurance Program, which pertain to floodplain management.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-66. Duties and responsibilities of director.

(a) The duties and responsibilities of the director shall include, but not be limited to, the following:

(1) Maintain and have open for public inspection all records pertaining to the provisions of this article.

(2) Review permit applications to determine whether proposed building sites will be reasonably safe from flooding.

(3) Review and approve or deny all applications for development permits required by adoption of this article.

(4) Review permits for proposed development to ensure that all necessary permits have been obtained from those federal, state or local governmental agencies, agencies (including section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334) from which prior approval is required.

(5) Make the necessary interpretation where interpretation is needed as to the exact location of the boundaries of the areas of special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions).

(6) Ensure that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained.

(b) When base flood elevation data has not been provided in accordance with section 78-58, the director shall obtain, review, and reasonably utilize any base flood elevation data and floodway data available from a federal, state, or other source, in order to administer the provisions of this article.

(c) When a regulatory floodway has not been designated, the director must require that no new construction, substantial improvements, or other development (including fill) shall be permitted within zone AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the community.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-67. Penalties for violations.

The owner or general agent of a building or premises where a violation of any provision of this article has been committed or exists, or the general agent, architect, builder, contractor, or any other person who assists committing a violation of this article, shall be subject to the fines and penalties prescribed in Chapter 6 of this Code.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Secs. 78-68—78-75. Reserved.

DIVISION 2. PERMITS

Sec. 78-76. Building permit, required.

(a) It shall be unlawful to proceed with any new construction, substantial improvement, repair or renovation of a building within the city without having previously obtained a permit from the director of the department of safety and permits pursuant to the standards of this article and Chapter 26 of this Code.

(b) It shall be the duty of the department of police to see that such work requiring a permit is authorized and to report the absence of a permit to the director.

(c) All work must comply with the building code as provided in Chapter 26 of this Code, as well as this article, and shall be subject to inspection whether a permit is required or not, at the discretion of the director.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-77. Same—Application procedures.

(a) Application for a building permit shall be presented to the director in accordance with the standards set forth in Section 105.3 of the city's amendments to the International Building Code, as provided in section 26-14 of this Code. Additionally, the following is required:

(1) A certificate of elevation shall be prepared by a civil engineer or land surveyor licensed to practice in the state, which certifies that all requirements contained herein have been complied with, and holds the city harmless from any errors and omissions if such exist in the elevation certificate;

(2) Elevation (in relation to mean sea level) of the lowest floor (including basement) of all new and substantially improved structures;

(3) Elevation in relation to mean sea level to which any nonresidential structure shall be flood-proofed;

(4) A certificate from a registered professional engineer or architect that the nonresidential flood-proofed structure shall meet the flood-proofing criteria of section 78-122(2);

(5) Description of the extent to which any watercourse or natural drainage will be altered or relocated as a result of proposed development.

(b) The director shall maintain a record of the foregoing in accordance with this article.

(c) Approval or denial of a building permit by the director shall be based on all of the provisions of this article and the following relevant factors:

(1) The danger to life and property due to flooding or erosion damage;

(2) The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

(3) The danger that materials may be swept onto other lands to the injury of others;

(4) The compatibility of the proposed use with existing and anticipated development relative to potential impacts to the floodplain;

(5) The safety of access to the property in times of flood for ordinary and emergency vehicles;

(6) The costs of providing governmental services during and after flood conditions including maintenance and repair of streets and bridges, and public utilities and facilities such as sewer, gas, electrical and water systems;

(7) The expected heights, velocity, duration, rate of rise and sediment, transport of the floodwaters and the effects of wave action, if applicable, expected at the site;

(8) The necessity to the facility of a waterfront location, where applicable;

(9) The availability of alternative locations not subject to flooding or erosion damage, for the proposed use;

(10) The relationship of the proposed use to the comprehensive plan for that area.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-78. Development permit.

It shall be unlawful to proceed with any new development within the city without having previously obtained a permit from the director of safety and permits, properly issued in accordance with this Code.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-79. Other permits.

Prior to securing a local permit for development as defined in this article, it shall be the responsibility of the applicant to secure all necessary permits from those governmental agencies for which approval is required by federal or state law.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-80. First floor elevation required on permits.

All building permits issued for new construction or substantial improvement must have imprinted upon them the required mean sea level elevation of the lowest floor (including basement) based on the provisions of section 78-81 of this article.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-81. Minimum elevation required.

(a) The lowest floor elevation of new residential and non-residential construction and substantial improvements must, at a minimum, be elevated to one foot above the BFE as determined by the FIRM adopted by this article, or three feet above the highest adjacent curb (in the absence of curbing, three feet above the crown of the highest adjacent roadway), whichever is higher.

(b) In cases where flood-proofing is utilized for non-residential new construction or substantial improvements, proper certificates from a registered professional engineer or licensed architect shall be obtained and maintained by the director. Such structures utilizing flood-proofing measures must be flood-proofed to a minimum of one foot above the requirement established above.

(c) Historic structures within the jurisdiction of the Historic District Landmarks Commission, Central Business District Historic District Landmarks Commission, Vieux Carré Commission, or which are certified as contributing elements of a National Register district, or property that is included in the definition of "historic structure" under the NFIP, shall be permitted to build to either the base flood elevation as determined by the FIRM adopted by this article, or 18 inches above highest adjacent grade, whichever is higher.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-82. Review of permits for construction.

(a) It shall be the responsibility of the director of the department of safety and permits to ensure that:

(1) The lowest-floor elevation of new or substantially improved residential structures be placed at or above the required minimum elevation as established by this article.

(2) The lowest-floor elevation of new or substantially improved non-residential structures be placed either at or above the required minimum elevation as established by this article; or, if below the required minimum elevation, that together with its attendant utility and sanitary facilities, be flood-proofed in accordance with the minimum requirements provided by this article.

(3) New construction or substantial improvements within special flood hazard areas be protected against flood damage, be anchored in accordance with the building code of the City of New Orleans to prevent flotation, collapse, or lateral movement of the structure, utilize construction materials and utility equipment that is

resistant to flood damage, and utilize construction methods and practices to minimize flood damage.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Secs. 78-83—78-100. Reserved.

DIVISION 3. WAIVER OF REGULATIONS

Sec. 78-101. Function of the board of building standards and appeals.

The Board of Building Standards and Appeals of the City of New Orleans shall hear petitions for waivers of the regulations of this article or appeals of determinations of the director in the enforcement or administration of this article.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-102. Standards and procedures for waivers and appeals.

(a) Variances:

(1) Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the State Inventory of Historic Places, without regard to the procedures set forth in the remainder of this ordinance.

(2) Variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, provided the relevant factors in section 78-77 have met the technical justification required for issuing the variance increases.

(3) Upon consideration of the factors noted above and the intent of this article, the BBSA may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this article.

(4) Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

(5) Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

(6) Prerequisites for granting variances:

i. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

(7) Variances shall only be issued upon:

i. Showing a good and sufficient cause;

ii. A determination that failure to grant the variance would result in exceptional hardship to the applicant; and,

iii. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

(8) Any application to which a variance is granted shall be given written notice that the structure will be permitted to be built with the lowest floor elevation below the base flood elevation, and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

(9) Variances may be issued by the BBSA for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that:

i. The criteria outlined in this section are met; and,

ii. The structure or other development is protected by methods that

minimize flood damages during the base flood and create no additional threats to public safety.

(b) Appeals:

(1) The BBSA shall hear and render judgment on an appeal only when it is alleged there is an error in any requirement, decision, or determination made by the director in the enforcement or administration of this article.

(c) Any person or persons aggrieved by the decision of the BBSA may appeal such decision to a court of competent jurisdiction.

(d) The director shall maintain a record of all actions involving variances and appeals and shall report both to FEMA upon request.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Secs. 78-103—78-120. Reserved.

DIVISION 4. FLOOD HAZARD REDUCTION

Sec. 78-121. General standards.

(a) In all special flood hazard areas, the following provisions are required for all new construction and substantial improvements:

(1) All new construction or substantial improvements shall be designed or modified and adequately anchored to prevent the flotation, collapse, or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy.

(2) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage.

(3) All new construction or substantial improvements shall be constructed with materials resistant to flood damage.

(4) All new construction or substantial improvements shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

(5) New and replacement water supply systems shall be designed to minimize or eliminate the infiltration of floodwaters into the system.

(6) New and replacement sanitary sewerage systems shall be designed to minimize or eliminate the infiltration of floodwaters into the system or discharge from the system into floodwaters.

(7) On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-122. Specific standards.

(a) In all areas within Orleans Parish, the following provisions are required to ensure the required minimum elevation as established by this article are met:

(1) *Residential construction.* New construction and substantial improvement of any residential structure shall have the lowest floor (including basement) elevated to the required minimum elevation as established by this article. A registered professional engineer, architect, or land surveyor shall submit a certification to the director that the standard of this subsection is satisfied prior to issuance of a certificate of occupancy.

(2) *Nonresidential construction.* New construction and substantial improvements of any commercial, industrial or other nonresidential structure shall either have the lowest floor (including basement) elevated to or above the required minimum elevation or, together with attendant utility and sanitary facilities, be designed so that any area below the required minimum elevation of this article is flood-proofed, with walls substantially impermeable to the passage of water and

with structural components having the capability of resisting hydrostatic and hydrodynamic loads and the effect of buoyancy. A registered professional engineer or architect shall develop and/or review structural design, specifications and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection prior to issuance of a certificate of occupancy. A record of such certification which includes the specific elevation (in relation to mean sea level) to which such structures are flood-proofed shall be maintained by the director.

(3) *Enclosure.* New construction and substantial improvements with fully enclosed areas below the lowest floor that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

i. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided.

ii. The bottom of all openings shall be no higher than one foot above grade.

iii. Openings may be equipped with screens, louvers, valves or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-123. Manufactured homes—Compliance with regulations.

(a) The director shall require that the following provisions are complied with in the construction and operation of new manufactured home parks:

(1) Over-the-top ties shall be provided at or near each of the four corners of a manufactured home with two additional ties per side. Frame ties shall be provided at each corner of a manufactured home, with five additional ties per side at intermediate points; provided, however, that a manufactured home less than 50 feet in length shall require but four additional ties per side. All components of the anchoring system for a manufactured home shall be capable of carrying a force of 4,800 pounds. Any additions to a manufactured home shall be similarly anchored.

(2) Should pile foundations be utilized for trailers, the design shall be submitted over the signature of a state-registered civil engineer or a state-registered architect.

(3) These regulations shall apply in all zoning districts where manufactured homes are classified as permitted or conditional uses, or enjoy legal, non-conforming status under the provisions of the comprehensive zoning ordinance of the City of New Orleans.

(b) All manufactured homes to be placed within zone A shall be installed using methods and practices which minimize flood damage. For the purpose of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

(c) All manufactured homes shall be in compliance with section 78-122.

(d) All manufactured homes to be placed or substantially improved within zone AE on the community's FIRM shall be elevated on a permanent foundation such that the elevation of the structural "I" beam is at or above the required minimum elevation as established by this article; and shall be securely anchored to an adequately anchored foundation system in accordance with the provision of this section.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-124. Same—Standards for placement and elevation.

It shall be required in manufactured home parks that stands or lots be elevated on compacted fill or on pilings so that the elevation of the structural "I" beam is at or above the required minimum elevation as established by this article, adequate surface drainage and access for a hauler are provided and that in the instance of elevation on pilings, lots are large enough to permit steps. Piling foundations are to be placed in stable soil no more than ten feet apart, and reinforcement is to be provided for pilings more than six feet above the ground level.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-125. Same—Restricted in coastal high-hazard areas.

Manufactured homes are prohibited in coastal high-hazard areas unless they are currently in existing manufactured home parks.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-126. Same—Adherence to regulations in coastal high-hazard areas.

All manufactured home parks in coastal high-hazard areas must meet construction regulations as described in sections 78-122 through 78-125.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-127. Standards for subdivision proposals.

(a) All proposals for the development of subdivisions, including manufactured home parks, shall be consistent with the provisions of this article.

(b) All proposals for the development of subdivisions, including manufactured home parks, shall meet building permit requirements of division 3 of this article.

(c) Base elevation data shall be generated for subdivision proposals which are greater than 50 lots or five acres, and other proposed developments, including manufactured home parks, if not otherwise provided pursuant to this article.

(d) All proposals for the development of subdivisions, including manufactured home parks, shall have adequate drainage to reduce exposure to flood hazards.

(e) All proposals for the development of subdivisions, including manufactured home parks, shall have public utilities and facilities such as sewer, gas, electrical and water systems, located and constructed to minimize or eliminate flood damage.
(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-128. Standards for placement of recreational vehicles in AE, V, and X zones.

(a) All recreational vehicles placed on sites within AE, V or X zones, as determined by the FIRM adopted pursuant to this article, shall either:

(1) Be on the site for fewer than 180 consecutive days.

(2) Be licensed and registered and ready for highway use.

i. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached additions or appurtenances.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Sec. 78-129. Coastal high-hazard areas.

(a) Located within the special flood hazard areas, established in the FIRMs adopted pursuant to this article, are areas designated as coastal high-hazard areas. These areas have special flood hazards associated with high-

velocity waters from tidal surges and hurricane wave wash; therefore, in addition to meeting all provisions outlined in this article, the following provisions must also apply:

(1) The elevation, in relation to mean sea level, must be obtained measured to the bottom of the lowest horizontal structural member of the lowest floor (excluding pilings and columns) of all new and substantially improved structures, and whether or not such structures contain a basement. The director shall maintain a record of all such information.

(2) All new construction shall be located landward of the reach of mean high tide.

(3) All new construction and substantial improvements shall be elevated on pilings and columns so that:

i. The bottom of the lowest horizontal structural member of the lowest floor (excluding the pilings or columns) is elevated to or above the base flood level;

ii. The pile or column foundation and structure attached thereto is anchored to resist flotation, collapse and lateral movement due to the effects of wind and water loads acting simultaneously on all building components; wind and water loading values shall each have a one percent chance of being equaled or exceeded in any given year 100-year mean recurrence interval;

iii. A registered professional engineer shall develop or review the structural design, specifications and plans for the construction and shall certify that the design and methods of construction to be used are in accordance with accepted standards of practice for meeting the provisions of this paragraph (3).

(4) All new construction and substantial improvements shall have the space below the lowest floor either free of obstruction or constructed with non-supporting breakaway walls, open wood latticework, or insect screening intended to collapse under wind and water loads without causing collapse, displacement or other structural damage to the elevated portion of the building or supporting foundation system.

i. For the purpose of this section, a breakaway wall shall have a design safe loading resistance of not less than ten nor more than 20 pounds per square foot.

ii. Use of breakaway walls which exceed a design safe loading resistance of 20 pounds per square foot (either by design or when so required by local or state codes) may be permitted only if a registered professional engineer certifies that the designs proposed meet the following conditions:

1. Breakaway wall collapse shall result from a water load less than that which would occur during the base flood; and

2. The elevated portion of the building and supporting foundation system shall not be subject to collapse, displacement or other structural damage due to the effects of wind and water loads acting simultaneously on all building components (structural and nonstructural). Maximum wind and water loading values to be used in this determination shall each have not more than one percent chance of being equaled or exceeded in any given year (100-year means recurrence interval).

(5) If breakaway walls are utilized, such enclosed space shall be usable solely for the parking of vehicles, building access or storage. Such space shall not be used for human habitation.

(6) Use of fill for the structural support of buildings is prohibited.

(7) Man-made alteration(s) of sand dunes and mangrove stands, which would increase potential flood damage is prohibited.

(M.C.S., Ord. No. 26906, § 1, 5-5-16, eff. 6-1-16)

Secs. 78-130—78-139. Reserved.

Sec. 78-140. Neighborhood rebuilding equity procedures.

(1) *Equitable distribution of disaster-mitigation resources.* Following declaration of an emergency by city, state or federal governmental officials relative to the aftermath of storm damage or the resulting destruction caused by a natural disaster and all subsequent storm-related effects occurring within the boundaries of Orleans Parish or any affected geographic area contained therein, including any land mass designated as a disaster zone in part or in full, shall be determined eligible for fair and equitable participation and consecutive distribution of funds derived through federal, state or city resources including private external funding donated for city use and made available to the city for the purpose of disaster mitigation, neighborhood reclamation and infrastructure restoration.

The City of New Orleans, being a political subdivision of the State of Louisiana and governed by its Home Rule Charter, shall exercise its authority and fiduciary responsibilities to protect the public interest through furtherance of disaster mitigation, neighborhood reclamation and infrastructure restoration programs and services which affirm equal protection of the rights of all citizens and Orleans Parish residents through equal and unabridged access to disaster assistance.

(2) *Disaster area rebuilding not exclusive or restricted by geographic area or zone.* Equal access to disaster mitigation, neighborhood reclamation and infrastructure restoration programs and services, including rebuilding activities and projects initiated by property owners in disaster-affected areas or disaster zones, shall not be made exclusive or restricted to select, designated or specifically defined geographic areas with damage and shall include all areas within Orleans Parish where damage has been assessed and determined to be within a disaster affected district, zone or neighborhood area or any combination thereof without consideration or predication on post storm population displacement data or any resulting effects of forced or accelerated out-migration due to disaster conditions in scattered or concentrated geographic areas of the city.

Development and implementation of economic target areas to initiate disaster-assistance programs which by construction and effect result in specific exclusion of designated neighborhood populations by household income, median income classification, adjusted income classification or statistical profile ranking from general participation in city initiated disaster mitigation, neighborhood reclamation and infrastructure restoration services shall be prohibited.

(3) *Exclusionary zoning classification prohibited.* Changes in zoning classification or reclassification of disaster-affected residential neighborhood areas shall not exclude redevelopment of existing single-family, two-family and multiunit residential structures and their accessory structures determined to be in zoning compliance with city regulations prior to storm occurrence or constructed prior to any defined changes in land use designation relative to implementation and enforcement of a comprehensive land use master plan.

(a) New zoning designation or reclassifications shall not create or result in forced reductions or forced increases in the number of residential structures by legal restraint to lower- or higher-density configurations and not excluding necessary demolitions to remove disaster-related debris. Neighborhood residential areas and their prior legally authorized zoning status shall be maintained for the purpose of rebuilding and replacement of storm-damaged structures located in designated neighborhood areas or border areas in immediate geographic proximity to zoning designated neighborhood areas where concentrated density includes low-income populations or any affected

economic class considered indigent or where zoning classification if reduced or redefined results in numerical neighborhood housing losses including any zoning action which directly or indirectly causes forced out-migration by change of land use and prevents repopulation in disaster affected areas.

(b) Temporary demographic shift, accelerated natural attrition or any cyclical displacement shall not be considered sufficient cause for neighborhood arameter [parameter] reduction or redrafting of any residential zoning district designations which may result in fragmentation of concentrated local neighborhood areas.

(3) *Equal access to government disaster assistance resources.*

(a) Allocation of all available government resources, including direct services provided by the city singularly or in conjunction with other public or private entities, shall include equal access to government assistance in disaster affected areas based on defined needs and shall be utilized to the greatest extent feasible.

(b) Disaster-affected neighborhoods shall not be subject to designated time limits, phased development or planning contingency that restrict or limit redevelopment of residential neighborhood areas relative to level of damage or pace of rebuilding and recovery with exception to those rehabilitation and restoration projects directly financed by city government funds in lieu of expenses originated by property owners financing the rebuilding of residential structures without government assistance, including loans, grants or any combination thereof.

(M.C.S., Ord. No. 22194, § 1, 4-20-06)

Sec. 78-141. Equitable labor force participation and employment opportunities in disaster areas.

(a) Neighborhood residential rebuilding in disaster affected areas or areas declared city, state, or federal disaster zones shall include fair and equitable participation and general employment opportunities to the greatest extent feasible for locally based firms, disadvantaged business enterprises, minority business enterprises, women-owned business enterprises, nonprofit organizations, community-development organizations, small and emerging business enterprises and professional service entities whose expertise can expedite disaster recovery efforts.

(b) Consideration shall be given to required bonding thresholds for city contracts to allow increased participation of small and emerging business enterprises, minority business enterprises, women owned business enterprises, disadvantaged business enterprises, nonprofit community development organizations, and professional service entities.

(c) The city or its representative agencies, when constructing and initiating a request for proposals or request for qualifications, shall include provisions for consideration of hiring combined service entities working in temporary or permanent partnership to complete contract specifications and to further increase the economic impact of city funded initiatives on locally based business entities and organizations.

(M.C.S., Ord. No. 22195, § 1, 4-20-06)

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ARTICLE I. IN GENERAL

Sec. 82-1. Obstruction of officers.

No person shall wilfully obstruct, hinder or resist any officer or person, duly authorized by the department of health, in the execution or enforcement of any sanitary ordinance or order of the department, or in entering into or upon any premises for the purpose of examining such premises.
(Code 1956, § 29-2)

Sec. 82-2. Permission for establishment of hospital.

It shall be unlawful for any person to set up, establish or operate a hospital, sanitarium or any institution of a kindred character without first having obtained permission from the council.
(Code 1956, § 29-1)

State law reference—Hospital licensing law, R.S. 40:2100 et seq.

Sec. 82-3. Provision for cases cared for by city.

The mayor and the director of the department of health may make the necessary arrangements for the care and treatment of such cases as it is the duty of the city to provide for and until other provision can be regularly made for the maintenance of such cases.
(Code 1956, § 29-3)

Sec. 82-4. Poisons.

(a) No person shall sell or offer for sale any poisonous drug, medicine or chemical used for medical purposes, except on the prescription of a physician, nor unless the receptacle or package containing such poisonous drug, medicine or chemical be marked "Poison" in plain and conspicuous characters.

(b) Patent medicines, household remedies and similar products, compounds for the destruction of rats, insects or bugs of a poisonous nature and chemicals used in commerce and industry and presenting the same dangerous character may be sold without a physician's prescription to persons of full age and sound mind and personally known to the vendor. These articles shall always be labeled "Poison."

(c) All druggists, peddlers, hawkers and other persons dealing in or selling poisonous substances shall keep a special book, open at all times to the proper authorities, in which they shall register the name, age, residence and profession of the person to whom any poisonous substance is sold, the date of sale, the quantity sold, the use it is intended for and whether sold upon a personal acquaintance with the buyer or upon a physician's prescription. The latter shall always be carefully preserved.
(Code 1956, §§ 29-4—29-6)

State law reference—Labeling of drugs and prescriptions, R.S. 37:1195.

Secs. 82-5—82-35. Reserved.

ARTICLE II. FOOD*

Sec. 82-36. Information to be filed by all food establishments.

Every person who shall engage in the sale or storage of foodstuffs or any other thing susceptible of human consumption as food within the limits of the city shall file in the office of the department of health on a blank especially prepared for this purpose the following information:

(1) Name of the owner;

(2) Business and residence address of the owner;

(3) Character of business carried on and such other information as the department may deem necessary for the enforcement of proper sanitary regulations on the premises.

(Code 1956, § 29-55)

***Cross references**—Bakeries, § 30-291 et seq.; food service establishments, § 30-651 et seq.; sanitation requirements for food service establishments, § 30-726 et seq.; markets, § 30-881; sale of food or beverages in certain areas, § 54-493; consumption of food and beverages on public transit vehicles prohibited, § 122-10; sidewalk cafes, § 146-531 et seq.

State law reference—Food and drugs, R.S. 40:601 et seq.

Sec. 82-37. Permit required.

It shall be unlawful for any person to engage in the sale or storage of foodstuffs or other things susceptible of human consumption as food within the city without having previously obtained a permit to conduct such business from the department of health.
(Code 1956, § 29-56)

Sec. 82-38. Enforcement by department of health.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it and to that end its officers, members, agents, employees, inspectors and appointees may enter any place, car, conveyance or other vehicle in the city for the purpose of inspection for violations thereof.
(Code 1956, § 29-58)

Sec. 82-39. Responsibility of members, officers, etc.

When an association of individuals is charged with the violation of any provision of this article, each individual of such association or, if a foreign association, the local agent or person locally in charge thereof, shall be deemed to represent such association for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof. When a firm is charged with such violation each member thereof and, if a foreign firm, the local agent or person locally in charge of such firm shall be deemed to represent such firm for the purpose of enforcing this article, and shall be held responsible and punishable for each violation thereof. When a corporation shall be charged with such violation, the president or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation or, if a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 29-59)

Sec. 82-40. All food for sale to be wrapped or covered.

It shall be unlawful for any person to sell, offer for sale or have in his possession or under his control for sale any candy, cakes, confections, dried figs, dates or preserves, candied or crystallized fruits of any kind, bread, cakes, pies, and pastries of any kind, meat, fruits, vegetables or foodstuff of any kind unless such foodstuff be effectually wrapped, covered, or enclosed in a manner suitable to and approved by the department of health, so as to protect it from dust, flies, or other insects and from all other contaminating influences.
(Code 1956, § 26-1)

Sec. 82-41. Unwholesome, etc., foods—Possession prohibited.

No person shall hold or have in his possession, whether for storage, exchange, delivery or sale, any adulterated, decayed, decomposing, rotten, souring, or unwholesome foods or drinks.
(Code 1956, § 26-25)

Sec. 82-42. Same—Inspection.

The department of health, its officers, agents or employees may enter upon any premises or enclosures connected therewith or into any building where any article of food or drink is stored, deposited, sold, exchanged, delivered or offered or exposed for sale for the purpose of examining into the condition or wholesomeness of such articles of food or drink in execution of a warrant issued in accordance with the constitution and laws of the state.
(Code 1956, § 26-26)

Sec. 82-43. Samples to be furnished department.

On application of the department of health, through its officers, agents or employees, any person having in his possession articles of food or drink, whether for storage, exchange, delivery or sale, shall forthwith furnish samples thereof in sufficient quantity for purposes of examination without charge.
(Code 1956, § 26-27)

Sec. 82-44. Food, etc., found unwholesome to be destroyed.

All articles of food or drink found by the department of health, through its officers, agents or employees, to be unwholesome or unfit for human consumption, whether in public or private markets, groceries or fruit stands and generally wherever stored, deposited, sold, exchanged, delivered or offered or exposed for sale, shall forthwith be taken charge of by the department, through its officers, agents or employees, and promptly destroyed without compensation to the owner or possessor thereof. But the department of health shall, upon request of the owner or person from whom such property is taken, issue a certificate of condemnation, showing the condition of such food or drink, in order that the property rights of all parties may be protected.
(Code 1956, § 26-28)

Sec. 82-45. Adulteration of candies, etc.—Determination.

Any candy, dried figs, dates or other preserved, candied and crystallized fruits in which shall be found any terra alba, baryta, talc or any other mineral substance or poisonous color or flavor, or other ingredient deleterious or detrimental to health shall for the purpose of this section be deemed to be adulterated.
(Code 1956, § 26-29)

Sec. 82-46. Same—Sale, etc., prohibited.

It shall be unlawful for any person to manufacture for sale, sell or have in his possession or under his control for sale any adulterated candy, dried figs, dates or other preserved, candied or crystallized fruits.
(Code 1956, § 26-30)

Sec. 82-47. Illegal tampering with edibles—Prohibited.

No person shall, in any way, tamper with candy bars or other edibles by placing razor blades, needles, pins, drugs or chemicals or any foreign matter injurious to the health for the purpose of distributing or giving such articles to children or other persons.
(Code 1956, § 26-31)

Sec. 82-48. Same—Penalty.

Any person who violates section 82-47 shall, upon conviction thereof, be punished by imprisonment for not less than 90 days.
(Code 1956, § 26-32)

Sec. 82-49. Inspection of meat.

It shall not be lawful for any person to sell, offer for sale or deliver the meat of any animal, not considered game or fowl, intended for human food, within the city unless it has been first inspected and passed upon and approved by the officers appointed and empowered for such duty by the department of health.
(Code 1956, § 26-33)

Sec. 82-50. Salted, etc., meats not affected.

Section 82-49 shall not in any manner affect the sale of salt, smoked or canned meats at any time.
(Code 1956, § 26-34)

Sec. 82-51. Pickling, salting, etc., tainted meat prohibited.

(a) It shall be unlawful for any person to pickle, salt, smoke or put into cans any decomposed or tainted meats of any kind.

(b) Any person violating any of the provisions of this section shall be fined in a sum not to exceed $25.00 or imprisoned not exceeding 30 days and the decomposed or tainted meat shall be saturated with a chemical that will prevent such meat being sold for food.
(Code 1956, § 26-35)

Sec. 82-52. Inflating flesh for sale prohibited.

It shall be unlawful for any person to inflate or blow the carcass, or any part thereof, of any meat of any animal whose flesh may be offered to the public for human consumption.
(Code 1956, § 26-8)

Sec. 82-53. Unlawful to sell, etc., inflated meat.

It shall be unlawful for any person to sell, offer or expose for sale or have in his possession for sale any inflated or blown carcass, or part thereof, or

any such inflated or blown meat of any animal whose flesh may be offered to the public for human consumption.
(Code 1956, § 26-9)

Sec. 82-54. Sale of impure water or ice.

It shall be unlawful for any person in the city to sell or to possess for sale any impure or polluted water or to manufacture or sell ice formed of impure or polluted water.
(Code 1956, § 59-1)

Sec. 82-55. Covers required for cisterns.

All cisterns, the water of which is used for drinking or culinary purposes, shall be provided by the owners thereof with suitable covers.
(Code 1956, § 59-3)

Secs. 82-56—82-80. Reserved.

ARTICLE III. REGULATIONS RELATING TO INFECTIOUS DISEASES*

DIVISION 1. GENERALLY

Sec. 82-81. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Infectious, contagious, or pestilential disease includes all such sickness, affliction or disease, or phases thereof, of an infectious, contagious or pestilential nature (more especially referring to cholera, yellow fever, smallpox, diphtheria, ship or typhus, spotted, relapsing and scarlet fevers) and also any new disease of any infectious, contagious or pestilential nature and any other disease publicly declared by the department of health of the state dangerous to the public health and of a contagious, infectious or pestilential nature or character.
(Code 1956, § 29-14)

Cross reference—Definitions generally, § 1-2.

***State law reference**—Authority to regulate infectious diseases, R.S. 40:5 et seq.

Secs. 82-82—82-100. Reserved.

DIVISION 2. QUARANTINE REGULATIONS

Sec. 82-101. Sign, flag, other signal on premises.

The department of health shall cause to be placed upon all premises, hotels, residences, houses and inns wherein there exists any case of yellow *fever, diphtheria, smallpox, scarlet fever or any* other contagious or infectious disease which the department of health shall deem necessary to warn the public against and to confine to the premises where it is situated a flag or signal, attached to or placed upon such premises, of such color as in the opinion of the department of health shall be necessary, to denominate the nature of the disease, with the same printed thereon with large, legible letters, which flag shall be placed upon gates, posts, doors or in any conspicuous place upon any such building or house.
(Code 1956, § 29-33)

Sec. 82-102. Destroying, removing signs.

Any person tearing down, removing, mutilating, defacing or destroying any flag or other signal from any building or premises, placed thereon as provided in section 82-101, shall be guilty of a misdemeanor and, upon conviction, shall be subject to a fine of not more than $25.00 or 30 days' imprisonment, or both, at the discretion of the court.
(Code 1956, § 29-34)

Sec. 82-103. Entering, leaving premises where contagious or infectious disease exists—Prohibited.

No person, except practitioners of medicine or persons expressly authorized thereto by the director of the department of health of the city, shall enter or leave any premises infected by contagious or infectious disease, nor shall any person on any such premises permit any person to enter upon such premises unless duly authorized.
(Code 1956, § 29-35)

Sec. 82-104. Same—Exceptions.

(a) Notwithstanding the provisions of section 82-103:

(1) Nurses may enter any infected house to take care of the case;

(2) Ministers of the Gospel may visit the sick whenever it is imperative that they should do so, in which event they shall comply in going to and from the house with any and all sanitary regulations and restrictions which the department of health may impose or indicate;

(3) The head of the family or breadwinners shall have the privilege of going to and from their house when complying with the following conditions:

a. They shall not wear at their place of business the same clothing which they wear at their house, but shall change clothing on entering and leaving their home;
b. While in the house they shall not act as nurse to, come in contact with, or live in the same room as the sick person; and,
c. They shall not attend any public meeting or place where persons are congregated.

(b) This privilege shall not be granted to school teachers or to any person whose business brings him in close contact with children.
(Code 1956, § 29-36)

Sec. 82-105. Person recovering not to leave premises until director of health permits.

All physicians in attendance upon any person suffering from an infectious or contagious disease shall report the clinical recovery of such person to the department of health, whereupon, if the case be one of smallpox or scarlet fever, the director of the department of health shall examine into and ascertain the sanitary condition of such person and until such examination is made by the director and he shall determine that such person is sanitarily well, the premises shall be considered infected and such person shall not leave them or expose himself to the public or in any way endanger the public health.
(Code 1956, § 29-37)

Sec. 82-106. State rules as to contagious diseases to be obeyed.

Every householder occupying premises, or any portion thereof, either as owner or occupant, under lease or otherwise, shall obey and conform to all instructions and orders of the department of health of the state or city relative to the disposition of the clothing, linen, expectorations or defecations of persons confined on such premises with infectious or contagious diseases, as well as those relating to the treatment of the sick-room utensils and the sick room in which any such person may have been confined with a contagious or infectious disease. The attending physician in each case shall notify the householder or person having charge of such room of such rules and regulations.
(Code 1956, § 29-15)

Sec. 82-107. Report of existence of certain diseases.

All practitioners of medicine, masters of watercraft, hotel, boardinghouse or lodginghouse keepers, principals or masters of any public school, the chief officers or persons in charge of all public institutions of charity or of punishment and heads of families shall report, within 24 hours, to the office of the department of health all cases within their cognizance of Asiatic cholera, leprosy, yellow fever, typhus or ship fever, diphtheria, scarlatina or scarlet fever, smallpox, trichinosis or any other case that may at any time be specified by the department of health.
(Code 1956, § 29-16)

Sec. 82-108. Limiting access to or fumigating, etc., buildings.

The department of health, the director of the department of health, or any person in the employ of or acting with the authority of the department or director may enter, regulate or prevent access to or egress from or cause to be vacated, any building, watercraft, place or locality deemed by such authorities to be infected or cause to be

screened, fumigated or otherwise disinfected any infected building, outhouse or watercraft, whenever in their judgment such action shall be necessary to prevent the spread of any dangerous and infectious disease.
(Code 1956, § 29-17)

Sec. 82-109. Disinfecting clothing, etc.

Each person may disinfect or cause to be disinfected any clothing, bedding or other substances whenever in his judgment such action shall be necessary to prevent the spread of disease.
(Code 1956, § 29-18)

Sec. 82-110. Resisting enforcement.

It shall be unlawful for anyone to resist or interfere with the department of health, director of the department of health or anyone in their employ or acting under their authority in the enforcement of the power delegated to them in this division.
(Code 1956, § 29-19)

Sec. 82-111. Children not to be needlessly exposed to contagious diseases.

No parent, tutor or custodian of any child or minor (having power and authority to prevent) shall permit any such child or minor to be unnecessarily exposed or shall needlessly expose any such minor or child to the taking or to the infection of any contagious disease.
(Code 1956, § 29-20)

Sec. 82-112. Children from infected houses not to be allowed to go to school or public places.

Any parent, guardian, tutor or other person having charge or control of any child, who shall allow or permit any such child to go from any house or building infected with typhoid, scarlet or yellow fever, diphtheria, cholera, smallpox or other contagious or infectious disease to attend any public or private school or any place of amusement or to travel in any streetcar or public vehicle shall be punished by a fine of $5.00; and, in default of payment thereof, by five days' imprisonment.
(Code 1956, § 29-21)

Sec. 82-113. Parents to notify school principals of contagious diseases.

Parents shall inform principals of schools attended by their children of any contagious diseases occurring in their families.
(Code 1956, § 29-22)

Sec. 82-114. Children from homes where disease exists not to return to school until past danger.

No principal, teacher or assistant teacher shall permit or allow any pupil to attend school from any house in which any contagious, infectious or pestilential diseases may exist at the time or may have existed antecedent thereto until such time as all danger of infection shall have passed.
(Code 1956, § 29-23)

Sec. 82-115. Apparently sick pupil sent home; not to return without physician's certificate.

Any principal, teacher or assistant teacher of any private or public school on observing that any pupil of such school presents symptoms of any contagious, infectious or pestilential disease shall send such pupil to such pupil's residence, with instructions to the parent, tutor, guardian or other person in charge of such pupil to have him examined by the family physician. Such instructions shall be in writing and in no case shall such pupil so sent home be allowed to attend such school thereafter until there shall be produced and filed with such principal, teacher or assistant teacher a certificate from a licensed physician that such pupil is not suffering from any contagious, infectious or pestilential disease.
(Code 1956, § 29-24)

Sec. 82-116. Person suffering from smallpox—Removal.

The department of health may remove or cause to be removed to a hospital or other place of treatment any person suffering from smallpox whenever such removal shall, in the judgment of the department, be necessary for the proper treatment of such person for the prevention or spread of such disease.
(Code 1956, § 29-25)

Sec. 82-117. Same—Expense.

The expenses incurred in the necessary performance of any of the duties named in section 82-116 shall, after the approval by the department of health, be borne by the city. But no contract fixing the price for the future keeping, maintenance and attendance upon smallpox patients shall be valid without the previous approval of the superintendent of police and the mayor.
(Code 1956, § 29-26)

Sec. 82-118. Retention or exposure of dead body.

No person shall retain, expose or allow to be retained or exposed the dead body of any human being to the peril or prejudice of the life or health of any person.
(Code 1956, § 29-27)

Sec. 82-119. Period within which dead bodies must be interred.

All dead bodies shall be interred within 24 hours after death during the summer and 36 hours during the winter months, unless permission is obtained in special cases from the department of health to withhold them from burial for a longer period. In the case of death from a contagious or infectious disease, the department of health may require and enforce the earlier burial of the corpse.
(Code 1956, § 29-28)

Sec. 82-120. Corpse dead of contagious disease not to be placed in vehicle other than hearse.

No owner, driver, agent or other person having, owning or being in charge of any carriage, cab, hack, cart, wagon or other conveyance or vehicle shall permit or allow the placing therein or the carriage thereby of the corpse or dead body of any person who has died of a contagious, infectious or pestilential disease. This section shall not apply to hearses.
(Code 1956, § 29-29)

Sec. 82-121. Funerals of persons dying of contagious diseases to be private.

There shall not be a public or church funeral of any person who has died of any contagious or infectious disease, but the funeral of such person shall be private. It shall not be lawful to invite or permit at the funeral of any person who has died of any infectious, contagious or pestilential disease, or at any services connected therewith, any person whose presence is not absolutely and essentially necessary or to whom there is danger of contagion thereby.
(Code 1956, § 29-30)

Sec. 82-122. Transportation of diseased persons into city—Prohibited.

It shall be unlawful for any common carrier or person in charge or having control of any common carrier or any passenger, freight or other car connected therewith or with any other common carrier to transport or convey into the parish any person suffering from an infectious or contagious disease if by any means the nature of such disease could have been ascertained by the use of reasonable care and diligence by the person in charge of such common carrier.
(Code 1956, § 29-31)

Sec. 82-123. Same—Exception.

It shall be unlawful for any common carrier or person in charge or having control of any common carrier or any passenger, freight or other car connected therewith or with any other common carrier to transport or convey into the parish any person visibly ill or presenting symptoms of any irruptive disease or disease of an irruptive nature visible to the eye, unless the person so suffering has produced to the person in charge or control of such common carrier or cars connected therewith or with any other common carrier a certificate from a duly constituted health authority (provided that in case no such health authority exists, at any place where such certificate becomes necessary, the certificate of some reputable physician may be received) that the sickness from which such person is suffering is not of an infectious or contagious nature.
(Code 1956, § 29-32)

Secs. 82-124—82-155. Reserved.

ARTICLE IV. VENEREAL DISEASES*

DIVISION 1. GENERALLY

Sec. 82-156. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Venereal diseases includes syphilis, gonorrhea and chancroid, which are declared to be contagious, infectious, communicable and dangerous to the public health.
(Code 1956, § 29-38)

Cross reference—Definitions generally, § 1-2.

Sec. 82-157. Enforcement, inspections.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it, and to that end its officers, agents, employees, inspectors and appointees may enter any premises or place in the city for the purpose of inspection for violations thereof.
(Code 1956, § 29-45)

Sec. 82-158. Persons arrested for prostitution, etc., to be reported to department.

Whenever any person is arrested and charged with the violation of any ordinance relating to prostitution, lewdness, the keeping or setting up of a house of ill fame, brothel or bawdyhouse, street walking or soliciting for prostitution or for any immoral purpose, pandering or vagrancy, the person making such arrest shall immediately report in writing the name, address and charge made against such person arrested to the department of health.
(Code 1956, § 29-39)

Sec. 82-159. Examination of arrested persons.

The department of health shall subject any person arrested and charged pursuant to section 82-158 to an examination for the purpose of determining whether or not such person is infected with a venereal disease.
(Code 1956, § 29-40)

Sec. 82-160. Persons arrested required to submit to examination.

Every person arrested and charged under section 82-158 shall subject himself to the examination provided for in section 82-159.
(Code 1956, § 29-41)

Sec. 82-161. Persons proved diseased to submit to treatment.

Every person found under the provisions of this article to be infected with a venereal disease shall comply with all the provisions of this article relating to treatment, care and isolation of persons infected with venereal diseases.
(Code 1956, § 29-42)

Sec. 82-162. Confinement of diseased persons in isolation hospital.

Should the examination of any person under this article disclose the existence of a venereal disease, such person shall be isolated and confined in an isolation hospital to be provided therefor by the department of health, treated in such manner as may be required to cure such disease and held in confinement in such isolation hospital until the department of health shall deem it safe to the public for such person to be discharged from such isolation hospital.
(Code 1956, § 29-43)

State law reference—Similar provisions, R.S. 40:1064.

Sec. 82-163. Suspension of trial during confinement.

Immediately upon the isolation and confinement of any person under this article, a written notice thereof, signed by the director of the department of health, or by his duly authorized deputy, shall be given to the court before which such charge was made and thereupon the trial of such charge (if such trial be not already concluded) shall be suspended or deferred until such person shall have been discharged by the department of health from such isolation hospital. Upon such discharge of such person written notice thereof,

*State law reference—Venereal diseases, R.S. 40:1061 et seq.

signed by the director or deputy, shall be given to the court and the trial of such charge shall be had and proceeded with according to law.
(Code 1956, § 29-44)

Secs. 82-164–82-190. Reserved.

DIVISION 2. EXAMINATION AND TREATMENT OF PRISONERS

Sec. 82-191. Enforcement; right to enter prisons, etc.

The department of health shall enforce the provisions of this division and to that end such officers, agents, employees, inspectors and appointees as shall be designated by it for that purpose may enter all prisons or places of judicial confinement for the purpose of inspection for violations thereof and to make the examinations and to take the specimens provided for in section 82-193.
(Code 1956, § 29-53)

Sec. 82-192. Cooperation required of prison officials.

The city and parish officials and their authorized deputies in charge of the prisons or places of judicial confinement shall cooperate with the department of health, its officers, agents, employees, inspectors and appointees in the enforcement of the provisions of this division and shall deliver to the department of health, or to its representative, any such person as the department, through its authorized representative, shall find to be suffering from a venereal disease and take a receipt for such person from the representative of the department, who removes such person.
(Code 1956, § 29-54)

Sec. 82-193. All prisoners to be examined for venereal disease.

The department of health shall examine all persons who are confined in any prison or place of judicial confinement located within and under the authority of the city, to ascertain if such persons so confined are infected with a venereal disease and to that end the department may take from any such person such blood, mucus or other specimens for laboratory tests as may be necessary in the ascertainment of the existence of a venereal disease.
(Code 1956, § 29-46)

Sec. 82-194. Prisoners required to submit to examination.

Every person so confined or imprisoned under this division shall subject himself to such examination and submit to the taking of the specimens provided for in section 82-193.
(Code 1956, § 29-47)

Sec. 82-195. Persons infected required to take treatment.

Every person found under the provisions of this division to be infected with a venereal disease shall comply with and submit to the provisions of this division relating to the isolation treatment and care of persons infected with venereal disease.
(Code 1956, § 29-48)

Sec. 82-196. Person infected to be confined in isolation department.

Should the examination or laboratory tests provided for in this division disclose the existence of a venereal disease, the person so infected shall be removed to and shall be isolated and confined in an isolation department, which has been provided for that purpose, in the house of detention in the city and shall be treated in such manner as may be required to cure such disease. Such person shall be held in such isolation department until the department of health shall deem it safe to the public for such person to be discharged therefrom.
(Code 1956, § 29-49)

State law reference—Similar provisions, R.S. 40:1064.

Sec. 82-197. Return to prison when cured, if term not expired.

If at the date such person may be discharged from the isolation department, such person be under sentence not then expired, such person shall be returned to the prison or place of judicial confinement from which such person was taken to serve the remainder of such sentence.
(Code 1956, § 29-50)

Sec. 82-198. Receipt given when person is removed to isolation department or returned to prison.

Whenever any officer, agent, employee, inspector or appointee, authorized by section 82-38, shall remove a person suffering from a venereal disease from a prison or place of judicial confinement to the isolation department he shall give a receipt for such person to the city or parish official or deputy in charge of such prison or place of judicial confinement from which such person was removed. Should such person be returned to serve the remainder of his sentence, such representative of the city or parish shall give a receipt to the department of health for the return of such person.
(Code 1956, § 29-51)

Sec. 82-199. Detention in isolation department beyond term.

If any person under sentence is confined in the isolation department under treatment for a venereal disease and the term of such sentence shall have expired before such person shall be deemed to be safe to the public to discharge, such person shall be detained in the isolation department until the department of health shall deem it safe to the public for such person to be discharged therefrom.
(Code 1956, § 29-52)

Secs. 82-200—82-225. Reserved.

ARTICLE V. TUBERCULOSIS

Sec. 82-226. Examination; penalty for failure to take.

(a) Any person to be committed to the house of detention or the parish prison as a result of a sentence of the municipal courts shall be obliged, when so directed by the court, to submit to have a chest X-ray made by the department of health, at no expense to the prisoner sentenced, for the purpose of determining whether or not they have the communicable disease of tuberculosis.

(b) Refusal to so submit to such X-ray shall constitute an offense, and upon proof thereof, shall subject the offender to punishment by the payment of a fine of up to $100.00 or imprisoned not exceeding 90 days, or both, in the discretion of the court.
(Code 1956, § 29-83)

Sec. 82-227. Request for parole to tubercular hospital.

(a) A person infected with tuberculosis sentenced to the house of detention or the parish prison by a municipal judge for violation of a city ordinance may voluntarily request in writing that he be paroled for the purpose of being transferred to a recognized tubercular hospital for treatment therein and receive credit toward the serving of such sentence while in such tubercular institution.

(b) This request must be acted upon and approved by the sentencing judge, by an official of the tubercular hospital receiving the applicant, and official of the house of detention or the parish prison to which the applicant may have been committed.
(Code 1956, § 29-84)

Sec. 82-228. Credit towards sentence; revocation of parole; termination of treatment by hospital.

The applicant for transfer to a tubercular hospital shall be given one day credit toward the service of such sentence for each day spent in the tubercular hospital. The applicant must abide by the rules and regulations of such hospital. His parole to such hospital will be revoked upon his violation of any rule or regulation of such hospital or, if for any other reason the hospital no longer desires to treat the applicant, an official of such institution may surrender the applicant to the house of detention or parish prison, whichever has the commitment, in order that he may serve the balance of his sentence.
(Code 1956, § 29-85)

Sec. 82-229. Leaving tubercular hospital without authority.

Should the applicant for transfer to a tubercular hospital leave such tubercular institution without permission from proper authority before he has remained therein sufficiently long to earn full credit for time served on his sentence, appli-

cant shall be guilty of escape, and upon the sworn affidavit of a person with knowledge of these facts, the applicant will be charged with escape. A warrant for his arrest shall issue by a judge of the municipal courts, and upon his apprehension and arrest, he shall be tried in the manner and form prescribed by law, and if found guilty, sentenced in accordance with existing law.
(Code 1956, § 29-86)

Secs. 82-230—82-250. Reserved.

ARTICLE VI. HOME HEALTH SERVICE*

Sec. 82-251. Charge actual cost not to exceed regional Medicare standards.

The department of health is hereby authorized to charge a sum not to exceed the maximum amount allowed by Medicare in this region for each home health visit, provided, however, that persons unable to pay according to the criteria of the department of health, who are not covered by Medicare or private insurance, may receive home health services from the department of health without charge.
(Code 1956, § 29-87)

Sec. 82-252. Disposition of monies collected.

All monies collected for services under this article shall be payable to the department of health and deposited by it into the city agency fund, home health service grant program.
(Code 1956, § 29-88)

Secs. 82-253—82-275. Reserved.

ARTICLE VII. MISCELLANEOUS FEES

Sec. 82-276. Reserved.

Editor's note—Section 1, M.C.S., Ord. No. 17,317, adopted Dec. 7, 1995, repealed § 82-276, which pertained to schedule of fees for vital records and derived from § 29-89 of the 1956 Code.

*__State law reference—__Regulations pertaining to home health agencies, R.S. 40:2009.31 et seq.

Sec. 82-277. Immunization fees.

The department of health is hereby authorized to charge a sum for each specific immunization administered by the department to persons who are required to have such immunization for communicable disease and/or foreign travel. These immunization program charges shall not apply to persons deemed unable to pay by the health department nor shall they be applied to individuals immunized in the health department special program to protect the health of the community in response to an imminent epidemiological threat. All costs incurred for services shall be charged in accordance to a fee schedule provided by the director of health, and approved by the chief administrative officer.
(Code 1956, § 29-90; Ord. No. 19,680, § 1, 6-1-00)

Sec. 82-278. Medical records fees.

(a) The department of health is hereby authorized to charge a fee not to exceed $50.00, as determined by the director of the department of health or his duly authorized representative, for each unauthorized request for medical opinions and/or reports in narrative form on patients that have been treated by the department.

(b) All fees charged under this section shall be payable to the department of finance for deposit into the general fund of the city.

(c) The minimum charge for each authorized request for copies of medical records, opinions, and/or reports, that is applicable herein, shall be $35.00 for up to ten pages copied; thereafter, for each additional page copied a charge of $2.50 per page shall be levied.
(Code 1956, § 29-90.1; M.C.S., Ord. No. 22088, § 2, 12-1-05)

Sec. 82-279. Tuberculosis fees.

The department of health is hereby authorized to charge a sum not to exceed $15.00 for each specific test and X-ray administered by the department. These charges shall not apply to persons deemed unable to pay the department.
(Code 1956, § 29-90.2)

Sec. 82-280. Medical and dental fees.

The City of New Orleans, through the department of health, is hereby authorized to charge medical and dental fees for services and costs provided by clinics operated by the city in accordance with the following fee schedule:

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
	Periodic Oral Exam—Patient of Record	D0120	$28.92	$28.92	$10.00			$43.38
	Emergency or Referral Exam	D0130		$30.00				$45.00
	Limited Oral Evaluation—Problem Focused	D0140		$30.00				$45.00
	Oral Exam for Patient Under Three Years of Age and Counseling w/ Primary Caregiver	D0145	$39.97	$39.97				$59.96
	Comprehensive Oral Exam—New Patient—Not Seen by Billing Provider Within Eight Years	D0150	$49.19	$49.19				$73.79
	Detailed & Extensive Oral Evaluation—Problem Focused, by Report	D0160		$30.00				$45.00
	Comprehensive Periodontal Evaluation—New or Established Patient	D0180		$30.00			$49.19	$45.00
*	Radiographs—Complete Series Including Bitewings—Limit One Every Eight Years	D0210	$61.79	$61.79				$92.69
*	Intraoral Radiographs for Adult Dental Program—Complete Series (Two Occlusals or Occlusal & PAs)	D0210		$60.00	$20.00			$90.00
#	1st PA X-Ray—Tooth Number 1—32; Tooth Letter A—T	D0220	$15.04	$15.04	$3.00		$15.04	$22.56
#	Each Addition PA X-Ray-Tooth Number 1—32; Tooth Letter A—T	D0230	$12.73	$12.73	$3.00		$12.73	$19.10
*	Intraoral—Occlusal X-Ray—Oral Cavity Designator 01, 02	D0240	$20.77	$20.77	$3.00		$21.81	$31.16
	Bitewing X-Rays—Two Films	D0272	$21.81	$21.81	$6.00		$20.77	$32.72
*	Panoramic Film	D0330	$58.43	$58.43	$20.00		$58.43	$87.65
+	Oral/Facial Images—Reimbursable for Oral Cavity Designator 01, 02, 10, 20, 30, 40	D0350	$30.52	$30.52			N/A	$45.78
	Pult Vitality Test	D0460		$20.00				$30.00
*	Diagnostic Casts	D0470	$48.29	$48.29			N/A	$72.44

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
*	Accession of Tissue, Gross & Microscopic Examination, Preparation & Transmission of Written Report	D0473	$75.82	$75.82				$113.73
*	Accession of Tissue, Gross & Microscopic Examination, Including Assessment of Surgical Margins for Presence of Disease, Preparation, & Transmission of Written Report	D0474	$78.41	$78.41				
	Adult Prophy 12—20 Yrs. of Age	D1110	$49.17	$49.17	$40.00		$49.17	$73.76
	Child Prophy—Under 12 Yrs. of Age	D1120	$35.87	$35.87				$53.81
	Recall Prophy/Exam	01121	N/A	$40.00				$60.00
	Topical Fluoride—Prophy Not Included—Child Under 12 Yrs. of Age	D1203	$19.67	$19.67				$29.51
	Topical Fluoride—Prophy Not Included—Adult 12—15 Yrs. of Age	D1204	$20.25	$20.25				$30.38
	Topical Fluoride Varnish; Therapeutic Application for Moderate to High Risk Caries Patients (Under Six Years of Age)	D01206	$24.87	$24.87				$37.31
	Nutritional Counseling for Control of Dental Disease	D1310	N/A	N/C				N/C
	Tobacco Counseling for the Control & Prevention of Oral Disease	D1320	N/A	N/C				N/C
	Oral Hygiene Instructions	D1330	N/A	N/C				N/C
#	# Sealant, per Tooth (Six-Yr. Molar Sealant—Under Ten Yrs. of Age; 12-Yr. Molar Sealant—Ten—15 Yrs. of Age) Tooth Number 2, 3, 14, 15, 18, 19, 30, 31	D1351	$25.96	$25.96				$38.94
+*	Fixed Unilateral Space Maintainer—Oral Cavity Designator 10, 20, 30, 40	D1510	$154.22	$154.22				$231.33
+*	Fixed Bilateral Space Maintainer—Oral Cavity Designator 01, 02	D1515	$210.30	$210.30				$315.45
+	Recementation of Space Maintainer—Oral Cavity Designator 01, 02, 10, 20, 30, 40	D1550	$39.46	$39.46				$59.19

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
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	Removal of Fixed Space Maintainer (Oral Cavity Designator 01, 02, 10, 20, 30, 40)	D1555	$38.95	$38.95				$58.43
	Restorative Services							
#	Amalgam—One Surface							
#	Primary or Permanent Tooth—Tooth Number 1—32	D2140	$65.95	$65.95	$42.00		$65.95	$98.93
#	Deciduous Tooth—Tooth Letters A—T (However, this procedure is reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q only if recipient is under five yrs. of age)	D2140	$65.95	$65.95			$65.95	$98.93
#	Amalgam—Two Surface							$0.00
#	Permanent Tooth—Tooth Number 1—32	D2150	$83.60	$83.60	$52.00		$83.60	$125.40
#	Deciduous Tooth—Tooth Letters A—T (However, this procedure is reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q only if recipient is under five yrs. of age)	D2150	$83.60	$83.60			$83.60	$125.40
#	Amalgam—Three Surface							$0.00
#	Permanent Tooth—Tooth Number 1—32	D2160	$101.26	$101.26	$62.00		$101.26	$151.89
#	Deciduous Tooth—Tooth Letters A—T (However, this procedure is reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q only if recipient is under five yrs. of age);For EPSPW See Note at End of Page	D2160	$101.26	$101.26			$101.26	$151.89
#	Amalgam, Four or More Surfaces Permanent Tooth—Tooth Number 1—32	D2161	$119.43	$119.43			$119.43	$179.15
#	Resin-Based Composite, One Surface Anterior Tooth Number 6—11 and 22—27. Reimbursable for Tooth Letter C, H, M, R (Reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q for recipients under four yrs. of age)	D2330	$77.37	$77.37	$45.00		$77.37	$116.06

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
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#	Resin-Based Composite, Two Surfaces Anterior Tooth Number 6—11 and 22—27. Reimbursable for Tooth Letter C, H, M, R (Reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q for recipients under four yrs. of age)	D2331	$96.06	$96.06	$55.00		$96.07	$144.09
#	Resin-Based Composite, Three Surfaces Anterior Tooth Number 6—11 and 22—27. Reimbursable for Tooth Letter C, H, M, R for recipients under 21 yrs. of age; and Tooth Letters D, E, F, G, N, O, P, & Q for recipients under five yrs of age)	D2332	$116.84	$116.84	$65.00		$116.84	$175.26
# *	Resin-Based Composite, Four Surfaces Anterior Tooth Number 6—11 and 22—27 with Preauthorization; and Tooth Letter C, H, M, R under 21 Yrs of Age; and Tooth Letters D, E, F, G, N, O, P, & Q for Recipients under Five Yrs of age)	D2335	$146.43	$146.43			$146.43	$219.65
# *	Prior authorization for Tooth Letters C, H, M, R is required only for recipients nine years of age and older. Prior authorization is not required for Tooth Letters D, E, F, G, N, O, P and Q.	D2335	$146.43	$146.43			$146.43	$219.65
#	Resin Acid Etch 1/3 Tooth	02340		$67.50	$75.00			$101.25
#	Resin Up to Three Surfaces	02340		$67.50				$101.25
#	Resin Four or More Surfaces	02340		$67.50				$101.25
# *	Resin-Based Composite Crown, Anterior Tooth Number 6—11 and 22—27 with prior authorization; and Tooth Letters C, H, M, R for recipients under 21 year of age.	D2390	$214.46	$214.46	$50.00		$214.46	$321.69
# *	This procedure is also reimbursable for Tooth Letters D, E, F, G, N, O, P and Q only if the recipient is under five years of age.	D2390	$214.46	$214.46	$50.00		$214.46	$321.69
# *	Prior authorization for Tooth Letters C, H, M and R is required only for recipients nine years of age and older. Prior authorization is not required for Tooth Letters D, E, F, G, N ,O, P and Q.	D2390	$214.46	$214.46	$50.00		$214.46	$321.69

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
#	Resin-Based Composite, One Surface, Posterior (Tooth Number 1—5, 12—16, 17—21, and 28—32, and Tooth Letters A, B, I, J, K, L, S and T)	D2391	$65.95	$65.95	$45.00		$65.95	$98.93
#	Resin-Based Composite—Two Surfaces Posterior Teeth (Tooth Number 1—5, 12—16, 17—21, and 28—32, and Tooth Letters A, B, I, J, K, L, S and T)	D2392	$83.60	$83.60	$55.00		$83.60	$125.40
#	Resin-Based Composite—Three Surfaces Posterior Teeth (Tooth Number 1—5, 12—16, 17—21, and 28—32 and Tooth Letters A, B, I, J, K, L, S and T)	D2393	$101.26	$101.26	$65.00		$101.26	$151.89
#	Resin-Based Composite—Four or More Surfaces Posterior Teeth (Tooth Number 1—5, 12—16, 17—21, and 28—32 and Tooth Letters A, B, I, J, K, L, S and T)	D2394	$119.43	$119.43			$119.43	$179.15
#	Recement Crown—for Tooth Number 1—32 and Tooth Letter A—J	D2920	$50.89	$50.89				$76.34
# * -	Prefabricated Stainless Steel Crown, Primary Tooth Tooth Letters A—T; Reimbursable for Tooth Letters D, E, F, G, N, O, P, & Q only if recipient is under five yrs of age. Authorization required only for Tooth Letters B, I, L, S for recipients eight yrs of age and older; and for Tooth Letters A, C, H, J, K, M, R for persons 9 yrs of age and older ***	D2930	$129.82	$129.82			$129.82	$194.73
# *	Prefabricated Stainless Steel Crown, Permanent Tooth, Tooth Numbers 1—32	D2931	$154.74	$154.74			$154.74	$232.11
# *	Prefabricated Stainless Steel Crown, Reimbursable for Tooth Number 6—11 and 22—27 with prior authorization; and Tooth Letters C, H, M, and R for recipients under 21 years of age. Also reimbursable for Tooth Letters D, E, F, G, N, O, P and Q only if recipient is under 5 years of age. Prior authorization for Tooth Letters C, H, M, and R is required only for recipients 9 years of age and older. Prior authorization is not required for Tooth Letters D, E, F, G, N, O, P and Q.	D2932	$168.76	$168.76			$168.77	$253.14

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
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# * -	Prefabricated Stainless Steel Crown with Resin Window. Reimbursable for Tooth Letters C, H, M and R for recipients under 21 years of age and for Tooth Letters D, E, F, G, N, O, P and Q only if recipient is under 5 years of age. Prior authorization for Tooth Letters C, H, M, and R is required only for recipients 9 years of age and older. Prior authorization is not required for Tooth Letters D, E, F, G, N, O, P and Q	D2933	$171.88	$171.88				$257.82
# * -	Prefabricated Coated Stainless Steel Crown—Primary Tooth. Reimbursable for Tooth Letters C, H, M and R for recipients under 21 years of age and for Tooth Letters D, E, F, G, N, O, P and Q only if recipient is under 5 years of age. Prior authorization for Tooth Letters C, H, M, and R is required only for recipients 9 years of age and older. Prior authorization is not required for Tooth Letters D, E, F, G, N, O, P and Q.	D2934	$171.88	$171.88				$257.82
#	Sedative Filling	D2940	N/A	$10.00				$15.00
# *	Core Build-Up Including Any Pins Tooth Number 2—15 and 18—31	D2950	$130.86	$130.86				$196.29
#	Pin Retention, Per Tooth, In Addition to Restoration Tooth Number 2—5; 12—15; 18—31; and 28—31	D2951	$35.83	$35.83	$15.00			$53.75
# *	Prefabricated Post and Core in Addition to Crown Tooth Number 2—15; 18—31	D2954	$163.57	$163.57				$245.36
# *	Unspecified Restorative Procedure, By Report (Reimbursable for Tooth Number 1—32 and Tooth Letter A—T)	D2999	*****					
	Endodontic Services							$0.00
#	Pulp Cap—Direct (Excluding Final Restoration) Tooth Number 1—32	D3110	$38.95	$38.95				$58.43

New Orleans Health Department								
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# * -	Therapeutic Pulpotomy (Excluding Final Restoration) Tooth Number 1—32; Tooth Letter A—T. Reimbursable for Tooth Letters D, E, F, G, N, O, P & Q only if recipient is under 5 years of age. Prior authorization required for Tooth Number 1—32 only.	D3220	$96.06	$96.06				$144.09
#*	Partial Pulpotomy for Apexogensis—Reimbursable for Tooth Number 2—15 and 18—31.	D3222	$96.07	$96.07				$144.11
#*	Pulpal Therapy (Resorbable Filling), Posterior, Primary Tooth Tooth Letter A, J, K, & T	D3240	$154.74	$154.74				$232.11
# *	Root Canal Therapy, Anterior (Excluding Final Restoration) Tooth Number 6—11 & 22—27	D3310	$342.72	$342.72				$514.08
# *	Root Canal Therapy, Bicuspid (Excluding Final Restoration) Tooth Number 4, 5, 12, 13, 20, 21, 28, 29	D3320	$402.43	$402.43				$603.65
# *	Root Canal Therapy, Molar (Excluding Final Restoration) Tooth Number 2, 3, 14, 15, 18, 19, 30, 31	D3330	$482.92	$482.92				$724.38
# *	Retreatment of Previous Root Canal Therapy—Anterior; Reimbursable for Tooth Numbers 6—11 and 22-27	D3346	$398.28	$398.28				$597.42
# *	Apexification/Recalcification, Interim Medication Replacement; Tooth Number 2—15 and 18—31	D3352	$123.59	$123.59				$185.39
# *	Apioectomy/Periradicular Surgery Anterior; Tooth Number 6—11 & 22—27	D3410	$329.22	$329.22				$493.83
# *	Retrograde Filling, Per Root; Tooth Numbers 6—11 & 22—27	D3430	$130.86	$130.86				$196.29
* #	Unspecified Endodontic Procedure, By Report; Tooth Number 1—32 and [Tooth Letter] A—T)	D3999	*****					$0.00
	Periodontal Services							$0.00
* +	Gingivectomy or Gingivoplasty, Four or More Contiguous Teeth or Bounded Teeth Spaces Per Quadrant Oral Cavity Designator 10, 20, 30, 40	D4210	$300.66	$300.66				$450.99

New Orleans Health Department								
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* +	Periodontal Scaling and Root Planning, Four or More Contiguous Teeth or Bounded Teeth Spaces Per Quadrant Oral Cavity Designator 10, 20, 30, 40	D4341	$119.43	$119.43	$60.00		$119.43	$179.15
*	Full-Mouth Debridement To Enable Comprehensive Evaluation and Diagnosis	D4355	$88.28	$88.28			$88.28	$132.42
*	Perio Prophy	D4910	N/A	$120.00	$60.00			$180.00
	Desensitizing Medicament	D9910	N/A	$30.00				$45.00
	Placement of Perio Chip or Atridox	D4381	N/A	$40.00				$60.00
*	Unspecified Periodontal Procedure, By Report	D4999	*****					
	Prosthetic Services							
*	Comprehensive Oral Exam (Adult Oral Examination)	D0150	N/A			$41.45		
*	Intraoral Radiographs, Complete Series (For ADP Limit 1 every 8 Years)	D0210				$62.18		
*	Complete Denture, Maxillary (For ADP Only 1 in 8-Year Period)	D5110	$495.00	$495.00	$425.00	$495.00		$742.50
*	Complete Denture, Mandibular (For ADP Only 1 in 8-Year Period)	D5120	$495.00	$495.00	$425.00	$495.00		$742.50
*	Immediate Denture, Maxillary (For ADP Only 1 in 8-Year Period)	D5130	$495.00	$495.00		$495.00		$742.50
*	Immediate Denture, Mandibular (For ADP Only 1 in 8-Year Period)	D5140	$495.00	$495.00		$495.00		$742.50
	Using Ivolvlor Teeth on Denture/ Partial	05999	N/A	$160.00				$240.00
*	Maxillary Partial Denture, Resin Base (Including Clasps)	D5211	$470.00	$470.00	$325.00	$470.00		$705.00
*	Mandibular Partial Denture, Resin Base (Including Clasps)	D5212	$470.00	$470.00	$325.00	$470.00		$705.00
*	Maxillary Partial Denture, Cast Metal Base (Including Clasps)	D5213	$688.00	$688.00	$450.00	N/A		$1,032.00
*	Mandibular Partial Denture, Cast Metal Base (Including Clasps)	D5214	$688.00	$688.00	$450.00	N/A		$1,032.00

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	Adjustment Upper Denture	05410	N/A	N/C	N/C	N/C		N/C
	Adjustment Lower Denture	05411	N/A	N/C	N/C	N/C		N/C
	Adjustment Upper Partial	05421	N/A	N/C	N/C	N/C		N/C
	Adjustment Lower Partial	05422	N/A	N/C	N/C	N/C		N/C
+	Repair Broken Complete Denture Base Oral Cavity Designator 01 & 02	D5510	$125.00	$125.00		$125.00		$187.50
#	Replace Missing or Broken Tooth, Complete Denture, Per Tooth 1st Tooth = $65.00; Each Additional Tooth = $33.00 Tooth Number 2—15 & 18—31	D5520	$65.00	$65.00	$58.00	$65.00		$97.50
#	Replace Missing or Broken Tooth, Complete Denture, Per Tooth 1st Tooth = $65.00; Each Additional Tooth = $33.00 Tooth Number 2—15 & 18—31	D5520	$33.00	$33.00		$33.00		$49.50
+	Repair Resin Denture Base, Partial Denture—Reimbursable for Oral Cavity Designator 01 and 02	D5610	$125.00	$125.00		$125.00		$187.50
+	Repair or Replace Broken Clasp, Partial Denture—Reimbursable for Oral Cavity Designator 10, 20, 30, 40	D5630	$119.00	$119.00		$119.00		$178.50
#	Replace Broken Teeth, Partial Denture, Per Tooth 1st Tooth $65.00; Each Additional Tooth = $33.00 Tooth Numbers 2 - 15 and 18 - 31	D5640	$65.00	$65.00		$65.00		$97.50
#	Replace Broken Teeth, Partial Denture, Per Tooth 1st Tooth $52.00; Each Additional Tooth = $26.00 Tooth Number 2—15 and 18—31	D5640	$33.00	$33.00		$33.00		$49.50
#	Add Tooth to Existing Partial Denture 1st Tooth $65.00; Each Additional Tooth = $ 33.00 Tooth Number 2—15 and 18—31	D5650	$65.00	$65.00		$65.00		$97.50
#	Add Tooth to Existing Partial Denture 1st Tooth $65.00; Each Additional Tooth = $ 33.00 Tooth Number 2—15 and 18—31	D5650	$33.00	$33.00		$33.00		$49.50
+	Add Clasp to Existing Partial Denture Oral Cavity Designator 10, 20, 30, 40	D5660	$119.00	$119.00		$119.00		$178.50

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
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#	Replace 2 Teeth on Denture or Partial	05521	N/A	$100.00	$68.00			$150.00
# (01—Upper; 02—Lower)	Replace 3 Teeth on Denture or Partial	05522	N/A	$100.00	$78.00			$150.00
# (01—Upper; 02—Lower)	Replace 4 Teeth on Denture or Partial	05523	N/A	$100.00	$88.00			$150.00
# (01—Upper; 02—Lower)	Repair Partial Base	05610	N/A	$100.00	$80.00			$150.00
# (01—Upper; 02—Lower)	Repair/Add Clasp (Cast)—Reimbursable for Oral Cavity Designator 10, 20, 30, 40	05630	$119.00	$119.00	$80.00	$119.00		$178.50
# (01—Upper; 02—Lower)	Repair/Add Clasp (Wire)	05635	N/A	$100.00	$80.00	N/A		$150.00
*	Reline Complete Maxillary Denture (Laboratory) (For ADP Only 1 in 8-Year Period)	D5750	$238.00	$238.00	$130.00	$238.00		$357.00
*	Reline Complete Mandibular Denture (Laboratory) (For ADP Only 1 in 8-Year Period)	D5751	$238.00	$238.00	$130.00	$238.00		$357.00
*	Reline Maxillary Partial Denture (Laboratory) (For ADP Only 1 in 8-Year Period)	D5760	$208.00	$208.00	$120.00	$208.00		$312.00
*	Reline Mandibular Partial Denture (Laboratory)	D5761	$208.00	$208.00	$120.00	$208.00		$312.00
*	Interim Partial Denture (Maxillary), Includes Clasps	D5820	$375.00	$375.00				$562.50
*	Interim Partial Denture (Mandibular), Includes Clasps	D5821	$375.00	$375.00				$562.50
*	Upper Flipper	D5820	N/A	$250.00				$375.00
*	Lower Flipper	D5821	N/A	$250.00				$375.00
	Nesbit Partial	D5821	N/A	$300.00				$450.00
	Flexite Unilateral Partial	05282	N/A	$400.00				$600.00
	Chairside Reline	D5730	N/A	$120.00				$180.00
	Reline Denture w/Clear Palate	5731	N/A	$175.00				$262.50

New Orleans Health Department								
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	Reline & One Tooth Added	5732	N/A	$200.00				$300.00
	Reline/Any Additional Teeth	5733	N/A	$50.00				$75.00
	Fracture Repaired	5510		$75.00				$112.50
	Each Additional Fracture on Same Denture	5511	N/A	$40.00				$60.00
	Fracture on Clear Palate	5512	N/A	$75.00				$112.50
	Strengthening Bar in Added [Addition] to Denture		N/A	$75.00				$112.50
	Strengthening Bar in Addition to Repair		N/A	$50.00				$75.00
	Fracture & Add Strengthening Bar		N/A	$100.00				$150.00
	Each Additional Clasp	5631	N/A	$50.00				$75.00
	Facing Added to Denture		N/A	$80.00				$120.00
	Facing Only		N/A	$65.00				$97.50
	Solder Cast Partial		N/A	$60.00				$90.00
	Repair Cast Partial		N/A	$120.00				$180.00
	Closure of Freeway Space on Denture		N/A	$150.00				$225.00
	Clear Palate		N/A	$50.00				$75.00
	Unspecified Removable Prosthodontic Procedure, By Report	D5899	*****					
	Maxillofacial Prosthetic Procedures							
* +	Fluoride Gel Carrier Oral Cavity Designator 01 & 02	D5986	$100.74	$100.74				$151.11
	Fixed Prosthodontic Procedures							
	Crown and Bridge Procedures							
# *	Pontic—Porcelain Fused to Predominantly Base Metal Tooth Numbers 7, 8, 9, 10	D6241	$495.38	$495.38				$743.07
# *	Retainer—Cast Metal for Resin Bonded Fixed Prosthesis Tooth Number 6, 7, 8,9, 10,11	D6545	$401.39	$401.39				$602.09
*	Porcelain/Metal Pontic	06242	N/A	$400.00	$350.00			$600.00

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
* #	Porcelain/Metal Crown	06752	N/A	$400.00	$350.00			$600.00
* #	Cast Metal Crown	06792	N/A	$275.00				$412.50
*	Maryland Bridge	06330	N/A	$850.00				$1,275.00
	Fixed Bridge (Per Unit)		N/A	$400.00	$350.00			$600.00
	Recement Bridge	D2920	N/A	$50.00				$75.00
*	Unspecified Fixed Prosthodontic Procedure, By Report	D6999	*****					
	Oral Surgery Services							
#	Extraction, Coronal Remnants—Deciduous Tooth Includes Soft Tissue—Retained Coronal Remnants. Reimbursable for Tooth Letters A—T and AS—TS	D7111	$65.95	$65.95	$45.00		$65.95	$98.93
#	Extraction, Erupted Tooth or Exposed Root Tooth Number 1—32 and [Tooth Letter] A—T and for Supernumerary Teeth 51—82 and AS—TS	D7140	$80.49	$80.49	$45.00		$80.49	$120.74
# *	Surgical Removal of Erupted Tooth Tooth Number 1—32 and [Tooth Letter] A—T and for Supernumerary Teeth 51—82 & AS—TS	D7210	$132.41	$132.41			$132.42	$198.62
# *	Removal of Impacted Tooth—Soft Tissue Tooth Number 1—32, [Tooth Letter] A—T, and for Supernumerary Teeth 51—82 & AS—TS	D7220	$153.18	$153.18			$153.19	$229.77
# *	Removal of Impacted Tooth—Partial Bony Tooth Number 1—32, [Tooth Letter] A—T Supernumerary Teeth 51—82 & AS—TS	D7230	$192.13	$192.13			$192.13	$288.20
# *	Removal of Impacted Tooth—Completely Bony Tooth Number 1—32, [Tooth Letter] A—T and for Supernumerary Teeth 51—82 & AS—TS	D7240	$236.27	$236.27				$354.41
# *	Removal of Impacted Tooth—Completely Bony with Unusual Surgical Complications Tooth Number 1—32, [Tooth Letter] A—T and for Supernumerary Teeth 51—82 & AS—TS	D7241	$283.00	$283.00				$424.50

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
# *	Surgical Removal of Residual Tooth Roots (Cutting Procedure) Tooth Number 1—32 and [Tooth Letter] A—T and for Supernumerary Teeth 51—82 & AS—TS	D7250	$146.95	$146.95				$220.43
* +	Tooth Reimplantation and/or Stabilization of Accidentally Evulsed or Displaced Tooth Oral Cavity Designator 01, & 02	D7270	Maximum Fee $259.64	$259.64				$389.46
# *	Surgical Access of an Unerupted Tooth Tooth Number 2—13; 18—31	D7280	$233.67	$233.67				$350.51
# *	Surgical Exposure of Impacted or Unerupted Tooth to Aid Eruption Tooth Number 2—15 & 18—31	D7281	N/A	$150.00				$225.00
# *	Placement of Device to Facilitate Eruption of Impacted Tooth—Reimbursable for Tooth Number 2—15 and 18—31 for Medicaid-Approved Comprehensive Orthodontic Cases Only.	D7283	$250.29	$250.29				$375.44
* +	Biopsy of Oral Tissue—Hard (Bone, Tooth) Oral Cavity Designator 01, 02, 10, 20, 30, 40	D7285	Maximum Fee $198.36	$198.36				$297.54
* +	Biopsy of Oral Tissue, Soft (All Others) Oral Cavity Designator 01, 02, 10, 20, 30, 40	D7286	$155.26	$155.26				$232.89
* +	Transseptal Fiberotomy/Supra Crestal Fiberotomy, By Report Oral Cavity Designator 01, 02 for Medicaid-Approved Comprehensive Orthodontic Cases Only	D7291	$154.74	$154.74				$232.11
* +	Alveoplasty in Conjunction with Extractions—Per Quadrant Oral Cavity Designator 10, 20, 30, 40	D7310	$142.80	$142.80				$214.20
	Alveolectomy Per Quadrant	07311	N/A	$75.00				$112.50
#	Incision & Drainage of Abscess—Intraoral Soft Tissue Tooth Number 1—32	D7510	$111.64	$111.64				$167.46
* +	Occlusal Orthotic Device, By Report Oral Cavity Designator 01 & 02	D7880	$469.94	$469.94				$704.91
	Suture of Recent Small Wounds Up to 5 cm	D7910	$143.32	$143.32				$214.98

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
* +	Frenulectomy (Frenectomy or Frenotomy) Separate Procedure Oral Cavity Designator 01, 02, 10, 20, 30, 40	D7960	$214.98	$214.98				$322.47
* #	Pericoronal Excision	07971	N/A	$75.00				$112.50
	Tori Reduction Per Quadrant	07470	N/A	$100.00				$150.00
*	Appliance Removal (Not by Dentist Who Placed Appliance), Includes Removal of Archbar; Reimbursable for Oral Cavity Designator 01 and 02	D7997	Maximum Fee $240.00	$240.00				$360.00
*	Unspecified Oral Surgery Procedure, By Report	D7999	*****					
	Orthodontic Procedure							
* +	Interceptive Orthodontic Treatment of the Primary Dentition Oral Cavity Designator 01, 02, 10, 20, 30, 40	D8050	Maximum Fee $438.00	$438.00				
* +	Interceptive Orthodontic Treatment of the Transitional Dentition Oral Cavity Designator 01, 02, 10, 20, 30, 40	D8060	Maximum Fee $438.00	$438.00				
* +	Comprehensive Orthodontic Treatment, Transitional Dentition	D8070	Maximum Fee $4,182.00	$4,182.00				
* +	Comprehensive Orthodontic Treatment, Adolescent Dentition	D8080	Maximum Fee $4,281.00	$4,281.00				
* +	Comprehensive Orthodontic Treatment, Adult Dentition	D8090	Maximum Fee $4,515.00	$4,515.00				
*	Fixed Appliance Therapy	D8220	$534.71	$534.71				
*	Unspecified Orthodontic Procedure, By Report	D8999	*****					
	Adjunctive General Services							
	Palliative (Emergency) Treatment of Dental Pain	D9110	$59.72	$59.72				$89.58
	Analgesia, Anxiolysis, Inhalation of Nitrous Oxide	D9230	$37.39	$37.39				$56.09
*	Intravenous Conscious Sedation/ Analgesia—First 30 Minutes	D9241	$186.42	$186.42				$279.63

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
*	Intravenous Conscious Sedation/ Analgesia—Each Additional 15 Minutes	D9242	$75.30	$75.30				$112.95
*	Nonintravenous Conscious Sedation	D9248	$139.39	$139.39				$209.09
*	Hospital Call	D9420	$117.98	$117.98				$176.97
*	Office Visit—After Regularly Scheduled Hours	D9440	$81.01	$81.01				$121.52
*	Emergency Hospital/Home/After-Hours Office Visit	09410	N/A					
*	Hospitalization	09420	N/A					
*	Conscious Sedation	09630	N/A					
*	Behavior Management, By Report	D9920	$70.10	$70.10				$105.15
* +	Occlusal Guard, By Report—Oral Cavity Designator 01 and 02.	D9940	$285.08	$285.08				$427.62
*	Occlusal Adjustment—Limited	D9951	$87.24	$87.24				$130.86
	Evaluation Exam—Limited Exam	D0140	N/A	$30.00				$45.00
	Consultation	D9310	N/A	$30.00				$45.00
	Recementation	D2920	N/A	$30.00				$45.00
	Gold Crown Added to Denture	2812	N/A	$200.00				$300.00
	Gold Crown Removal	2980	N/A	$40.00				$60.00
	Bleaching Per Arch	D9972	N/A	$150.00				$225.00
	Bleaching Kit		N/A	$75.00	$75.00			
*	Unspecified Adjunctive Procedure, By Report	D9999	*****					

Oral Cavity Designator: 01—Maxillary Area, 02—Mandibular Area, 03—Upper Right Sextant, 04—Upper Anterior Sextant, 05—Upper Left Sextant, 06—Lower Left Sextant, 07—Lower Anterior Sextant, 08—Lower Right Sextant, 10—Upper Right Quadrant, 20—Upper Left Quadrant, 30—Lower Left Quadrant, 40—Lower Right Quadrant

All services marked with + require oral cavity designator

All services marked with * require preauthorization

All services marked with - require oral cavity designator

All services marked with # require a tooth number or letter, 1—32; A—T

New Orleans Health Department								
Dental Services *PROPOSED FEE REVISIONS FOR FEE FOR SERVICE AND NON-ORLEANS PARISH RESIDENTS*								
*Tooth Number Required—# Approval Required—**	*DESCRIPTION*	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*	*Council on Aging Program*	*Adult Dental Program*	*EDSPW (Pregnant) Program*	*NON-ORLEANS PARISH*
~~EPSPW (Pregnant Women) Program reimburses for Tooth Numbers 1—32 and Tooth Letters A—C, H—M, and R—T for Codes D2140, D2150, D2160 ~~EPSPW (Pregnant Women) Program reimburses for Tooth Numbers 6—11 and 22—27 and Tooth Letters C, H, M and R for Codes D2330, D2331, D2332, D 2335, D2390, D2391 ~~EPSPW (Pregnant Women) Program reimburses for Tooth Numbers 1—5, 12—16, 17—21, and 28—32 and Tooth Letters A, B, I, J, K, L, S and T for codes D2391, D2391, D2393, D2394 ~~EPSPW (Pregnant Women) Program reimburses for Tooth Letters A, B, C, H, I, J, K, L, M, R, S, and T for code D2930 Fees are charged to patients for lab services for HCHP. Fee schedule used for insurance billings & Medicaid billings, and self-pay patients								

New Orleans Health Department *FEE SCHEDULE FOR NEW ORLEANS PRIMARY CARE*			
DESCRIPTION	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*
New Patients			
New Patient, Straightforward (10 min.)	99201	$32.09	$25.00
New Patient, Expanded (20 min.)	99202	$55.01	$25.00
New Patient, Low Complex (30 min.)	99203	$80.15	$25.00
New Patient, Moderate Complex (45 min.)	99204	$120.25	$25.00
New Patient, High Complex	99205	$150.90	$25.00
Established Patients			
Established Patient, Minimal (5 min.)	99211	$18.17	$25.00
Established Patient, Straightforward (10 min.)	99212	$33.15	$25.00
Established Patient, Low Complex (15 min.)	99213	$54.11	$25.00
Established Patient, Moderate Complex (25 min.)	99214	$77.86	$25.00
Established Patient, High Complex (45 min.)	99215	$105.00	$25.00

New Orleans Health Department *FEE SCHEDULE FOR NEW ORLEANS PRIMARY CARE*			
DESCRIPTION	*CODE*	*EPSDT Medicaid*	*Fee for Service Program*
Physician Consultation			
Straightforward	99241	$43.03	$25.00
Expanded	99242	$79.18	$25.00
Low Complex	99243	$105.21	$25.00
Moderate Complex	99244	$155.25	$25.00

(Code 1956, § 29-90.3; Ord. No. 20,008, § I, 1-18-01; M.C.S., Ord. No. 024572, § 1, 9-1-11)

Sec. 82-281. Urgent care fees.

The City of New Orleans, through the department of health, is hereby authorized to charge fees for urgent care services and costs provided by the city in cooperation with the Parish Hospital Service District for the Parish of Orleans-A in accordance with the following fee schedule:

Procedure	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*
Office Visits			**X-Ray (cont)**			**Ortho Proc (cont)**			**Inject/Drug (cont)**		
New Level One	99201	$65.00	Orbit Min 4 Views	70200	$113.00	Metatar FX W/O Man	28470	$463.00	Bicillin CR 1.2 MU	J0540	$70.00
New Level Two	99202	$123.00	Pelvis AP Only	72170	$70.00	Nursemaids Elbow	24640	$217.00	Bicillin LA 1.2 MU	J0570	$65.00
New Level Three	99203	$187.00	Rib Unl. Min 3 Views	71101	$101.00	Rib FX CLSD TX	21800	$260.00	Bicillin LA 600,000U	J0560	$39.00
New Level Four	99204	$316.00	Sacrum/Coccyx	72200	$76.00	Shldr Disloc W/Man	23650	$664.00	Celestone 3 MG	J0702	$14.00
New Level Five	99205	$407.00	Skull < 4 Views	70250	$95.00	Toe Phal FXCL W/O Min	28510	$286.00	Demerol 50 MG	J2175	$5.00
Nurse Visit	99211	$50.00	Shoulder	73030	$79.00	Toe Disloc CLSD TX	28660	$215.00	Dexamethasone 1 mg/ml	J1100	$3.00
Est Level One	99212	$63.00	Sinuses Min. 3 Views	70220	$99.00	GRT toe FX TX W/Man	28495	$368.00	Epinephrine up to 1 ml	J0170	$39.00
Est Level Two	99213	$123.00	Tibula [Tibia]/Fibula	73590	$71.00	Other			Imitrex 6 mg	J3030	$194.00
Est Level Three	99214	$190.00	Toes (s)	73660	$75.00	**Splint**			Influenza Vaccine	90658	$20.00
Est Level Fourth	99215	$268.00	T-Spine	72074	$114.00	**Applications**			ADM Flu (Medicare only)	G0008	$10.00
Physicals			Water View	70210	$79.00	Splint Finger	Q4049	$67.00	Insulin 5 units	J1815	$10.00
Sports Phys 5—11 yrs	99393	$50.00	Wrist Min. 3 Views	73110	$93.00	Splint Long Arm	29105	$209.00	Phenergan 50 mg	J2550	$11.00
Sports Phys 12—17 yrs	99394	$50.00	X-Ray Soft Tissue	N/A		Splint Long Leg	29505	$118.00	Rocephin 250 mg	J0696	$20.00
Suture Removal		$30.00	**Laceration Repair**			Splint Short Arm	29125	$106.00	Solumedrol 125 mg	J2930	$10.00
Laboratory			Scalp/Trunk/Extr (Inc Hand & Foot)			Splint Short Leg	29515	$122.00	Tetanus Diptheria	90718	$71.00
Accu-Check	82948	$11.00	Lac SMP 2.5 CM or <	12001	$138.00	**Minor Surgery**			Toradol 15 mg	J1885	$13.00
CBC W/3 Part diff	85025	$27.00	Lac SMP 2.6—7.5 CM	12002	$177.00	Avulsion Nail Plate	11730	$131.00	Valium 5 mg	J3360	$10.00

Procedure	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*
EKG	93000	$50.00	Lac SMP 7.4—12.5 CM	12004	$215.00	Debrid Skin PTL Thick	11040	$100.00	Vistaril 25 mg	J3410	$10.00
H-Pylori	86677	$41.00	Scalp/Trunk/Extr (Ext Hand & Foot)			Drsng/Debr/Sml, Burn	16020	$142.00	Other		
Influenza	87804	$42.00	Lac SMP 2.5 CM or <	12031	$404.00	Evac Dubung Hemat	11740	$79.00	**Nebulizer Treatment**		
Monospot	86308	$18.00	Lac SMP 2.6—7.5 CM	12032	$489.00	Exc Ben Les .5 cm <	11400	$192.00	Nebulizer TX per hour	94640	$41.00
Rapid Strep Screen	87880	$42.00	Lac SMP 7.4—12.5 CM	12034	$509.00	FB RMV Subcut SMP	10120	$227.00	Mouthpiece/Tubing	A7003	$10.00
R.S.V.	87807	$42.00	Neck/Hand/Foot			I & D Fing ABS SMP (paron)	10060	$232.00	Atrovent Inhal Per/M	J7644	$10.00
Specimen Handling fee	99000	$12.00	Lac SMP 2.5 CM or <	12041	$429.00	I & D Hemat/ Seroma	10140	$291.00	Albuterol Inhal 1 mg	J7613	$10.00
Pulse-Ox	94760	$25.00	Lac SMP 2.6-7.5 CM	12042	$499.00	I & D Comp or Multi	10061	$399.00	Xopenex	17614	$10.00
Pregnancy Test	81025	$22.00	Lac SMP 7.4-12.5 CM	12044	$529.00	I & D Vulva/Perin ABS	56405	$273.00	Pulmicort	J7626	$13.00
Urinalysis	81003	$20.00	Face/Ear/Eyelid/Nose/Lip			I & D Pilonidal Cyst	10080	$246.00	Vaponefrin	J7699	$10.00
Urine Drug Screen	80100	$51.00	Lac SMP 2.5 CM or <	12011	$165.00	Punctr Asp of Hemat	10160	$236.00	**Other Supplies**		
Venipuncture	36415	$8.00	Lac SMP 2.5-5 CM	12013	$186.00	Rem Ingrown Nail	11750	$429.00	Ace Wrap	A6449	$9.00
X-Ray			Lac SMP 5.1-7.5 CM	12014	$231.00	Repair Nail Bed	11760	$327.00	Ankle Brace	L1906	$70.00
Abdomen Flat & Erect	74020	$102.00	Lac SMP 7.5-12.5 CM	12015	$283.00	Other			Cervical Collar	L0120	$90.00
Ankle Min 3 views	73610	$83.00	Lac INT 2.5 CM or <	12051	$456.00	**Special Procedures**			Crutches	E0114	$75.00
C-Spine AP & Lat	72040	$100.00	Lac INT 2.6-5 CM OCM	12052	$545.00	Foley Insertion	51701	$151.00	Finger Splint	L0889	$20.00
Chest Single View	71010	$60.00	Lac INT 5.1-7.5 CM	12053	$541.00	Peak Flow Meter	94200	$61.00	Ice Pack	E0230	$10.00
Chest 2 views	71020	$79.00	Lac INT 7.5-12.5 CM	12054	$568.00	**IV Administration**			Knee Cap Band	L1825	$83.00
Clavicle	73000	$73.00	**E-ENT Procedures**			Admin IV Med	90774	$59.00	Knee Immobilizer	L1830	$137.00

Procedure	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*	*Procedure*	*CPT*	*Fee*
Elbow Min 3 views	73080	$87.00	Removal Cerumen	69210	$82.00	IV Infusion 1st Hour	90765	$130.00	Post Op Cast Shoe	L3260	$70.00
Facial Min 3 Views	70150	$109.00	Epistaxis Control SMP	30901	$241.00	Ea Add Hour	90766	$61.00	Rib Belt	L0210	$67.00
Femur	73550	$73.00	FB Removal Ear	69200	$143.00	Normal Saline 1 LTR	J7030	$20.00	Shoulder Immobilizer	L3660	$80.00
Fingers	73140	$80.00	FB Removal Eye	65210	$131.00	Intra Catheter	A4212	$9.00	Sling	A4565	$18.00
Foot Min 3 Views	73630	$80.00	FB Removal Cornea	65220	$104.00	IV Tubing	A9901	$10.00	Steri Strips	A6265	$0.00
Forearm	73090	$71.00	FB Removal Nose	30300	$311.00	Hep Lock	36000	$64.00	Short Leg Walking Boot	L4386	$256.00
Hand Min 3 Views	73130	$82.00	New Slit lamp	92002	$117.00				Thumb Spica Splint	L3800	$100.00
Hip Unil Min 2 Views	73510	$99.00	Est-Slit Lamp	92012	$127.00				Xeroform 1x8 cp	A6222	$3.00
Humerus	73060	$75.00	**Ortho Procedures**			**Injections/Drugs**			Wrist Cock Up Splint	L3908	$90.00
Knee 3 Views	73562	$94.00	AP Sep CLS TX W/O Man	23540	$532.00	Admin Antib Inj	90772	$20.00			
Kub	74000	$64.00	ASP/Joint Inj Large	20610	$124.00	Admin Other Inj	90772	$20.00	**Strappings**		
L-Spine Ap & Lat	72100	$104.00	Clavicle Fx Clsd	23500	$524.00	Admin Vaccine	90471	$20.00			
Mandible Min 4 Views	70110	$101.00	CLSD TR Dis RDL Fract	25600	$635.00	Ancef 500 MG	J0690	$2.00			
Nasal Bone	70160	$84.00	Finger Disloc W/Man	26770	$597.00	Benadryl 50 mg	J1200	$2.00	**ICD-9**		
Neck Soft Tissue	70360	$71.00	Finger FX W/Out Man	26750	$430.00	Bentyl up to 20 mg	J0500	$53.00	DIAGNOSIS-1		
			Finger FX CLSD W/Man	26755	$657.00	Bicillin CR 600,000 U	J0530	$38.00	DIAGNOSIS-2		
			Metar FX CLSD W/O Man	26600	$645.00				DIAGNOSIS-3		

EAST AFTER HOURS URGENT CARE CENTER
SLIDING FEE SCALE: PERCENTAGE OF MAXIMUM CHARGE
BASED ON ANNUAL FAMILY INCOME 2011

PAYMENT LEVEL	*0*	*5%*	*10%*	*20%*	*30%*	*40%*	*50%*	*60%*	*70%*
FAMILY SIZE									
1	0—10,890	10,890—14,710	14,710—18,530	18,530—22,350	22,350—26,170	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450
2	10,890—14,710	14,710—18,530	18,530—22,350	22,350—26,170	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270
3	14,710—18,530	18,530—22,350	22,350—26,170	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090
4	18,530—22,350	22,350—26,170	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090	49,090—52,910
5	22,350—26,170	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090	49,090—52,910	52,910—56,730
6	26,170—29,990	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090	49,090—52,910	52,910—56,730	56,730—60,550
7	29,990—33,810	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090	49,090—52,910	52,910—56,730	56,730—60,550	60,550—64,370
8	33,810—37,630	37,630—41,450	41,450—45,270	45,270—49,090	49,090—52,910	52,910—56,730	56,730—60,550	60,550—64,370	64,370—68,190
Add 3,820 for each additional family member									

(M.C.S., Ord. No. 24573, § 1, 9-1-11)

Secs. 82-282—82-310. Reserved.

ARTICLE VIII. LEAD PAINT POISONING*

Sec. 82-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accredited laboratory means a laboratory which operates within the EPA National Lead Laboratory Accreditation Program.

Adjacent properties means properties that adjoin the regulated area of the property in question, including at the corners of lot lines.

Certified means that the Louisiana Department of Environmental Quality (LDEQ) has identified an individual as having completed training and other requirements to permit the safe execution of lead risk assessments and inspections, or lead hazard reduction and control work.

Chemical removal of paint shall mean the removal of paint by paint strippers containing a hazardous substance designated by the Consumer Product Safety Commission (CPSC), the Occupational Safety and Health Administration (OSHA), or the U.S. Environmental Protection Agency (EPA) in any way that is not in compliance with the most current CPSC, OSHA, or EPA guidelines, set forth in 16 C.F.R. § 1303.1, 29 C.F.R. § 1926.62, and 40 C.F.R. § 261.3, § 261.32, and 40 C.F.R. § 745.223, respectively.

Containment barriers means measures that prevent the migration of lead paint contaminants. Containment barriers shall be at least as effective at protecting human health and the environment as those contained in the most HUD Guidelines, as defined below.

Contractor means any person, whether or not in possession of a valid state contractor's license, who undertakes, or offers to undertake or purports to have the capacity to undertake to or submits a bid to take, or does by himself or herself or by or through others take, any action that may or will disturb or remove paint. For purpose of this article, "contractor" shall also include subcontractors.

Director means, for purposes of the regulation of the interior of buildings, the director of the department of health. For purposes of the regulation of the exterior of buildings and the regulation of metal structures, "director" means the director of the department of safety and permits.

Disturb or remove paint means any action that creates friction, pressure, heat or a chemical reaction upon any lead-based paint on an exterior surface so as to abrade, loosen, penetrate, cut through or eliminate paint from that surface. This term shall include all surface preparation activities that are performed upon a surface containing lead-based paint.

Excessive airborne lead concentrations shall be defined according to regulations promulgated by the United States Occupational Safety and Health Administration. "Excessive airborne lead concentrations," for the purposes of this article, shall be those defined by the Occupational Safety and Health Administration at 29 C.F.R. 1926.62 which are currently defined as lead concentrations exceeding the permissible exposure limit (PEL) of 50 mcg/m3 as a time-weighted average over eight hours. Airborne lead concentrations exceeding the action level of 30 mcg/m3 as a time-weighted average trigger additional personal protective equipment and practices.

Excessive lead-containing dust is lead in surface dust including but not limited to dust on interior window sills, window troughs, floors, and soil as defined according to regulations promulgated by the United States Environmental Protection Agency at 40 C.F.R. § 745.227. These standards are currently defined as 250 micro-

*__Editor's note—__Ord. No. 20,345, § 1, adopted September 6, 2001, amended and reordained art. VIII, lead paint poisoning, which formerly consisted of §§ 82-311—82-321, deriving from the Code of 1956, §§ 29-91—29-100. History notes have been retained where appropriate. New §§ 82-311—82-322 are set out herein; sections designated §§ 82-316a—82-316c in the ordinance have been redesignated §§ 82-316—82-318 at the discretion of the editor, to preserve numerical order.

State law reference—Lead Paint Poisoning Prevention and Control Act, R.S. 40:1299.26 et seq.

grams per square foot for interior window sills, 400 micrograms per square foot for interior window sills, 400 micrograms per square foot for window troughs, 40 micrograms per square foot for floors, 400 parts per million for bare soil in play areas, and 1200 parts per million for soil in non-play areas of a yard.

Exterior means the outside of a building or metal structure and the areas around it within the boundaries of the property, including the outside of any detached structures, including but not limited to, outside and common walls, stairways, fences, light wells, breeze ways, sheds and garages.

Heat removal of paint shall mean the removal of paint by open flame or by the use of a heat gun or other device generating temperatures equal to or more than 1100 degrees Fahrenheit (40 C.F.R. § 745.227).

HEPA vacuum means a high efficiency particulate air filter capable of filtering 99.7 percent of fine particles of dust of 0.3 microns or larger in size.

HUD guidelines means the most recent *Guidelines for the Evaluation and Control of Lead-Based Paint Hazards in Housing* promulgated by the United States Department of Housing and Urban Development (HUD), issued pursuant to 42 U.S.C. § 1017 (1994).

Interior means the inside of a building or a partially enclosed exterior surface such as porch or balcony areas that are readily accessible to children, ages six and under.

Lead-based paint testing means testing of surfaces to determine the presence of lead-based paint performed by an independent certified risk assessor/inspector, in accordance with the HUD Guidelines, LDEQ Regulations at L.A.C. 33:III.2801 *et seq.,* or EPA lead hazard regulations at 40 C.F.R. § 745.227. Where testing includes bulk paint samples, such samples are analyzed by an accredited laboratory.

Lead-based substances means any plaster, putty, paint, varnish, shellac or other coating on surfaces with lead in excess of 1.0 mg/cm^2 (milligrams per square centimeter) as measured by x-ray fluorescence (XRF) detector or laboratory analysis or in excess of 0.5 percent by weight, also expressed as 5,000 ppm (parts per million), 5,000 mcg/g (micrograms per gram), or 5,000 mg/kg (milligrams per kilogram) as measured by laboratory analysis or as currently defined by state or federal standards.

Manual scraping is the practice of removing paint via hand tools that predominantly creates paint chips as opposed to dust.

Metal structure means any structure that is not a building and which has exterior surfaces made of steel or other metal, such as bridges, billboards, walkways, water towers, steel tanks, and roadway or railway overpasses.

Occupant means any person, especially children, living, sleeping, cooking, eating in, or actually having possession of a building, except that a guest will not be considered an occupant.

Other methods of paint removal shall include, but not be restricted to, the removal of paint via confined power washing, sanding with a hepa-vacuum attachment and abrasive blasting.

Owner means any person or agent of the owner who alone, jointly, or severally with others, shall have:

(1) Legal title to any premises or building, with or without accompanying actual possession therefore; and/or

(2) Charge, care, or control of any premises or building as owner or agent of the owner, or an executor, administrator, trustee, or guardian of the estate of the owner.

Person means a natural person, his or her heirs, executors, administrators or assigns, and to the extent allowable by law, a firm, joint stock company, business concern, association, partnership or corporation, its or their successors or assigns, or the agent of any of the aforesaid, or other legal entity.

Power washing is the practice of cleaning painted surfaces or removing paint via a pressurized stream of water.

Prohibited practices means work practices prohibited under section 82-317.

Qualified laboratory means an academic research laboratory with a record of peer review publications on the topic of lead. A homeowner, contractor, or other individual may submit samples to a qualified laboratory to determine the presence of lead.

Readily accessible means when, in the judgment of the director of the department of health, or his designated representative, a lead-based substance is in a flaking, peeling or chipping condition on a surface from which it may be chewed or ingested by children who inhabit or frequent the premises.

Regulated area means an area in which work is being performed that disturbs or removes paint, and to which access is restricted in order to prevent migration of paint contaminants. "Regulated area" shall also include any area contaminated with lead paint contaminants as a result of a breach or lack of containment barriers or a violation of the containment requirement set forth in section 317(a).

Responsible party means either: (1) the owner of the property where the owner or the owner's employees or persons otherwise under the control of the owner are performing the activities regulated under this article; or (2) the owner and the contractor where the owner has entered into a contract with another to carry out the activities regulated under this article.

Surface means the outermost layer up to one-eighth inch of the superficial area of a building, including, but not limited to, the outermost layer of superficial areas of the walls, ceilings, floors, stairs, windows, window sills, window frames, window sashes, doors, door frames, baseboards, and woodwork of a building.

Unconfined power sanding or grinding shall mean the use of electric or hydraulic powered sanding or grinding tools for the removal of paint that do not have attachments that while sanding or grinding paint simultaneously vacuum dust and chips into a HEPA filtered vacuum device along with ground cover or otherwise contain and control chips and dust from being released into the environment.

(Code 1956, § 29-91; Ord. No. 20,345, § 1, 9-6-01)

Cross reference—Definitions generally, § 1-2.

Sec. 82-312. Labeling of lead-based substances.

(a) No person shall store, sell, or transfer for retail purposes a lead-based substance unless the container used in retail trade bears a warning statement that shall be an integral part of the label and shall be placed in a conspicuous contrast with other printing appearing on the container. The statement shall be in substantial conformance with state and federal laws and regulations and recommended standards of the Federal Hazardous Substances Labeling Act (15 U.S.C. § 1261 *et seq.* (1994)) and shall further conform in working and type style and size as follows or shall be an approved equivalent:

Type size and style

WARNING!	10 PT. CAPS
CONTAINS LEAD	10 PT. CAPS
HARMFUL IF EATEN	10 PT. CAPS

DO NOT APPLY ON TOYS, PLAY EQUIPMENT, FURNITURE, WINDOW SILLS OR OTHER INTERIOR OR EXTERIOR SURFACE OF ANY BUILDING OR METAL STRUCTURE. KEEP AWAY FROM HEAT AND OPEN FLAME. AVOID PROLONGED CONTACT WITH SKIN AND BREATHING OF VAPOR OR SPRAY MIST. CLOSE CONTAINER AFTER EACH USE. (10 PT. CAPS)

USE WITH ADEQUATE VENTILATION	(12 PT. CAPS)
KEEP OUT OF REACH OF CHILDREN	(10 PT. CAPS)

(b) This warning statement shall also be required on accompanying literature including directions for use. Where tinting or coloring added to substances at the point of sale produces a final product with more than one-half percent lead, the labeling requirements of this section shall apply.

(3) Labels on containers of lead-based substances manufactured prior to the effective date of the ordinance from which this article was derived shall be made to conform to the above labeling requirements by the application of a separate warning label, which shall be affixed directly upon the existing label. Provided, however, that after one year from the effective date of the ordinance from which this article was derived the warning shall be an integral part of the label on the container.
(Code 1956, § 29-92; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-313. Sample to be furnished to director.

Upon reasonable application of the director through its officers, agents or employees, any person having in his possession and/or building, articles, materials, or substances suspected of containing lead-based substances, whether for personal use, storage, exchange, delivery or sale, shall forthwith furnish samples thereof to the director in sufficient quantity for purposes of testing and examination for compliance herewith. When laboratory testing is used to analyze lead paint films, soils, or dust, the laboratory must be an environmental testing laboratory that is part of an accreditation program recognized by the United States Environmental Protection Agency.
(Code 1956, § 29-93; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-314. Prohibited use of lead-based substances.

No person shall use or apply lead-based substances:

(1) Upon the interior or exterior of a building;

(2) In or upon any fixtures or other objects used, installed, or located upon the interior or exterior of a building, or intended to be so used, installed, or located upon the interior or exterior of a building; or

(3) In or upon any toys, play equipment, or furniture.

(Code 1956, § 29-94; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-315. Prohibition upon manufacture and sale of articles with lead-based substances.

No person shall manufacture, knowingly sell, or hold for sale any of the following articles that have or contain lead-based substances:

(1) Any fixtures or other objects intended to be used, installed, or located upon the interior or exterior of a building;

(2) Any toys, play equipment or furniture; or

(3) Any food container or cooking, eating, and drinking utensils and tableware with extractable lead resulting in an excess of .226 parts per million of lead in a leachable solution for plates, saucers, and other flatware, and .100 parts per million of lead for cups, mugs, pitchers, and other hollowware.

(4) This provision shall not prohibit the resale of architectural millwork that contains a lead-based substance, however, that resellers of architectural millwork from a building constructed prior to 1978 are required to provide the EPA pamphlet entitled "Protect Your Family From Lead in Your Home" to all purchasers of such millwork at the time of purchase.

(Code 1956, § 29-95; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-316. Prohibition.

(a) *Generally.* No person shall disturb or remove lead paint, or in any other way generate excessive, lead containing dust or excessive airborne lead concentrations as defined in section 82-311 during work on the interior or exterior of any existing building or metal structure except in accordance with the requirements of this article.

(b) *Exemptions.* This article shall not apply to activities that disturb or remove paint where those activities are being performed on buildings on which construction was completed after 1978, or on new construction. For purposes of this article, all paint on the interior or exterior of any building on which the original construction was completed prior to December 31, 1978, shall be presumed to be a lead-based substance. For purposes of this article, all paint on the interior or

exterior of any metal structure shall be presumed to be a lead-based substance. Any person seeking to rebut this presumption shall establish through lead-based paint testing, or other means satisfactory to the director, that the paint on the building or metal structure in question is not lead-based paint.

(c) *Response to complaint.* Upon receiving a citizen complaint, the director shall: (1) review the complaint; (2) determine whether a valid notification form has been filed, if required, for the property in compliance with the requirements of section 82-316(c); and (3) where deemed necessary by the director, conduct an inspection at the job site to determine the validity of the complaint.

(d) *Evaluation of complaint.* When determining the validity of a complaint, if the director is not able to observe the actual performance of any work practices constituting violations of the performance standards of section 82-316b, the director shall investigate and consider the following:

(1) The containment measures and work tools being used by the responsible party;

(2) The color(s) of paint being disturbed or removed by the responsible party;

(3) The color(s), quantities, nature, and locations of alleged visible lead paint contaminants;

(4) The colors, locations, and conditions of paint on adjacent properties to determine if such paint could be a source of the alleged visible lead paint contaminants;

(5) Any work being performed on adjacent properties which could be a source of the alleged visible lead paint contaminants; and

(6) Any other relevant evidence that the director determines in the exercise of his or her discretion would help to determine whether a violation of this article has occurred.

(Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-317. Performance standards.

(a) *Containment barriers.* Any person performing work on the exterior of a building or on a metal structure subject to this article shall establish containment barriers at least as effective at protecting human health and the environment as those contained in the HUD guidelines or the Lead Paint Removal Guide published by the Steel Structure Painting Council, whichever is applicable.

(b) *Prohibited practices.* The method of removal shall be in accordance with all applicable laws, ordinances, regulations and safety standards and practices of the city, state and federal agencies including EPA and HUD guidelines and standards. No person performing work subject to this article shall use prohibited practices which include, but are not limited to:

(1) Acetylene or propane burning and torching;

(2) Power sanding or grinding without containment barriers as defined in section 316(b)(1) or a HEPA vacuum attachment or system;

(3) Scraping without containment measures such as a disposable ground cover to collect paint chips;

(4) Hydro-blasting or high-pressure wash without containment measures such as a porous ground cover to collect paint chips;

(5) Abrasive blasting or sandblasting without containment barriers as defined in section 316(b)(1) or a HEPA vacuum attachment or system;

(6) Heat removal as defined in section 82-311.

(7) Unconfined power sanding or grinding as defined in section 82-311.

(8) Chemical removal as defined in section 82-311.

(9) Other methods as defined in section 82-311 that create excessive, lead-containing dust or excessive airborne lead concentrations as defined in section 82-311.

(c) *Migration.* Any person performing work subject to this article shall make all reasonable efforts to prevent migration of lead paint contaminants beyond containment barriers during the course of the work.

(d) *Visible lead paint chips.* The responsible party performing work subject to this article shall make all reasonable efforts to remove all visible lead paint chips from all work areas of the property prior to completion of the work.
(Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-318. Notification requirements.

(a) *Notifying bidders.* In any instance where a property owner or contractor is requesting bids for work that is subject to this article, the property owner or contractor shall notify all bidders of any paint inspection reports verifying the presence of any lead-based paint in the regulated area of the proposed project.

(b) *Contents of notice.* Except as otherwise authorized by this article, prior to the commencement of work subject to this article, for power-sanding affecting lead paint on the exterior of a building or metal structure, the contractor, or in the absence of a contractor, the owner, shall provide written notice to the director of the department of safety and permits. Notice of the following shall be provided either in person, by certified mail or by fax:

(1) The location of the project;

(2) The scope of work;

(3) The methods and tools for paint disturbance and/or removal;

(4) The approximate age of the building;

(5) The anticipated job start and completion dates for work subject to this article;

(6) Whether the building is residential or nonresidential, and whether it is owner-occupied or rental property;

(7) The dates by which the responsible party has or will fulfill any tenant or adjacent property notification requirements as described in sections 82-318(d), (e) and (f) below; and

(8) The name, address, telephone number, and if available, pager number, of the party who will perform the specified work.

(c) *Form of notice.* The director shall make available to the public a form that complies with the requirements of section 82-318(b) and contains blank spaces for the required information.

(d) *Sign required when power sanding is used.* Not later than the commencement of power sanding subject to this article, the owner, or the contractor when the owner has entered into a contract with a contractor to perform work on the exterior of a building or on a metal structure, that is subject to this article, shall post signs in a location or locations clearly visible to the adjacent properties stating the following:

LEAD WORK IN PROGRESS

PUBLIC ACCESS TO WORK AREA PROHIBITED

POSTED IN ACCORDANCE WITH CHAPTER 82, ARTICLE VIII, OF THE MUNICIPAL CODE, ORDINANCE NO. _____ M.C.S.

(1) *Sign requirements for power sanding.* The sign required by this subsection shall be not less than 24 inches square, and shall be in large boldface capital letters no less than one-half inch in size. The director shall make available to the public a sample form that complies with these requirements and states the required information in English and Spanish. The sign required by this subsection shall remain in place until the time that the work subject to this subsection has been completed.

(2) Where it is not possible to post signs in a conspicuous location or locations clearly visible to the adjacent properties, the owner, or where the owner has entered into a contract with a contractor to perform work subject to this article, the contractor shall provide the notice in written form, such as a letter or memorandum, to the occupants of adjacent properties.

(e) *Notice to tenants.* Where work subject to the requirements of this article is to be performed on the interior or exterior of buildings occupied by one or more tenants, not less than three business days before work subject to this article is to commence, the owner shall provide the following information:

(1) *Contents of notice.* Except as may be otherwise inconsistent with state law, provide written notice to tenants of the building on which the work is being performed that lead-related work is being performed. This notice shall be in the compliance with the EPA pre-renovation notification rules set forth in 40 C.F.R. § 745, and shall include notice in form of a sign, letter, or memorandum; and shall prominently state the following:

"Work is scheduled to be performed beginning [date] on this property that may disturb or remove lead-based paint. The persons performing this work are required to follow federal, state, and local laws regulating work with lead-based paint. You may obtain information regarding these laws, or report any suspected violations of these laws, by calling the Department of Safety and Permits at 565-6111. The owner of this property is also required to provide tenants with a copy of the U.S. Environmental Protection Agency pamphlet entitled "Protect Your Family From Lead in Your Home."

The director shall make available to the public a form that states the required information in English and Spanish.

(2) *Availability of pamphlet.* The owner shall provide to all tenants in the building, the U.S. Environmental Protection Agency pamphlet entitled "Protect Your Family From Lead in Your Home."

(f) *Notice by contractor.* Where work subject to the requirements of this article is being performed by a contractor, the contractor shall at least three business days prior to the commencement of work on residential property subject to this article, notify the property owner of potential lead hazards during the project by delivering the U.S. Environmental Protection Agency pamphlet entitled "Protect Your Family From Lead in Your Home."

(g) *Early commencement of work by owner.* A property owner may commence, or may authorize a contractor to commence, work subject to this article less than three business days after providing notices required in subsections 82-318(e) and 82-318(f) above when the property owner determines that such work must be commenced immediately to correct an emergency condition when a delay would pose an immediate threat to the safety or well-being of the building's occupants or to correct life-safety hazards.

(h) *Early commencement of work requested by tenant.* Upon written request of a tenant, an owner may commence or authorize a contractor to commence, work subject to this article on that tenant's premises less than three business days after providing notices required in subsections 82-318(e) and (f) above.

(i) *Notice by paint retailer.* Sellers and retailers of paint shall be required to post a sign which informs the purchasers of paint as follows:

For buildings or steel structures constructed prior to 1978, Ordinance No._____, M.C.S. requires, that in the course of removing old paint, you use certain containment measures such as ground cover when scraping paint from surfaces and/or a HEPA vacuum attachment when power sanding lead paint from surfaces. You must also notify the City of New Orleans via a form provided by the Department of Safety and Permits (504) 565-6111.

Disposal of lead-containing materials, their ashes, and other refuse shall comply with the procedures established by the Louisiana Department of Environmental Quality.

(Code 1956, § 29-98; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-319. Maintenance of blood-lead register.

(a) All practicing physicians in the city shall be required by this article to submit within one week, reports of all cases of lead poisoning as defined by the Centers for Disease Control ("CDC") to the department of health.

(b) The department of health shall maintain a register of all persons whose blood contains or contained a blood lead level equal to or above 10 micrograms per deciliter of lead or the current standard given by the CDC. The name, date of birth, sex, address, mother's maiden name, case number, and blood-level of the person shall be registered and kept in the department files. If the person be a minor, the above information must be given by parents and placed in such files.
(Code 1956, § 29-99; Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-320. Enforcement.

(a) *Authority of director to sample.* Subject to section 82-320(e), the director may collect paint, dust, and soil samples from, or apply an X-ray fluorescent (XRF) analyzer to, the property where the work is being performed and from adjacent properties in order to determine the validity of a complaint.

(b) *Enforcement authority.* Upon making a determination that a violation of this article has occurred, the director shall issue a notice of violation to the owner and/or contractor. The director is authorized to make use of all enforcement authority authorized by law to enforce against any violation of this article. Where the owner and the contractor are both responsible parties, the director may proceed against either the owner or the contractor, or against both. The director is further authorized following issuance of a notice of violation, to require as a condition of resuming work, that the responsible party conduct a special inspection by a certified risk assessor in order to establish that the regulated area is in compliance with this article.

(c) *Stop work orders.* The director shall have the power to stop any work that is disturbing or removing lead paint or otherwise generating lead paint contaminants in violation of this article or the construction, alteration or repairs of any metal structure or building subject to the requirements of this article when, in the opinion of the director, such work is being done in violation of any of the provisions of this article and to order all work to be stopped by notice in writing served upon any persons engaged in the doing or causing such work to be done. The work shall be stopped immediately and shall not be resumed without authorization.

(d) *Remediation/specific performance.* The director shall have the authority to immediately issue an order:

(1) To the owner or occupants to eliminate the hazard within a reasonable and specified period of time, subject to the requirements of Louisiana Revised Statute 30:2351.23, after the issuance of such order when it is determined that, after an investigation, any location at which lead dust, lead chips or other lead-contaminated wastes are, or were handled, or otherwise came to be located, may create a danger to public health or the safety of any person or to the environment;

(2) Remove any workers, except those needed to abate the hazard, from the project work area until the condition is corrected in order to prevent further project activity;

(3) Evacuate appropriate portions of the site and vicinity until the condition is corrected.

(e) *Authority to enter upon property or into buildings.* The director or his designee is hereby authorized with the same authority given to the director of the department of code enforcement provided in Chapter 26 of this Code as may be accorded, to reasonably inspect buildings and metal structures and to collect samples therefrom.
(Code 1956, § 29-97; Ord. No. 20,345, § 1, 9-6-01; M.C.S., Ord. No. 29758, § 5, 12-1-23)

Sec. 82-321. Penalties and procedures for violations; appeal.

(a) The imposition of administrative penalties and fees and the appeal of such penalties and fees shall be in accordance with chapter 6, entitled administrative procedures, of this Code.

(b) *Length of penalties.* Each day that the owner, contractor or responsible person remains in violation shall constitute a separate violation.

(c) *Alternative penalty.* The civil adjudication bureau may suspend the penalty imposed upon the condition that the responsible party attend and complete a training course approved by the state department of health and/or the Louisiana Department of Environmental Quality in lead-related construction supervision and project monitoring. Any such course must be taken and completed within 30 days of the hearing held pursuant to chapter 6 of this Code as provided for in paragraph (a) of this section. The failure of the responsible party to submit proof of attendance and satisfactory completion of the course, including certification from the instructor or provider of the course, shall result in the penalty and any fees becoming immediately due and payable.

(d) The filing of false information with the director, by any owner, contractor, or other such person shall be punishable by a fine of not more than $500.00 or imprisonment of not more than 180 days, or both.

(e) *Applicability.* The election set forth in section 82-320(i) shall only be available to persons who have not previously completed such a training course, and who have not been previously found by the director to be in violation of this article.

(f) *No obligation by city.* In undertaking the enforcement of this article, the city is assuming an undertaking only to promote the general welfare. It is not assuming, nor is it imposing on its officers and employees, an obligation for breach of which it is liable in money damages to any person who claims that such breach proximately caused injury.

(g) *Discretionary duty.* Subject to the limitations of due process, notwithstanding any other provision of this code whenever the words "shall" or "must" are used in establishing a responsibility or duty of the city, its elected or appointed officers, employees, or agents, it is the legislative intent that such words establish a discretionary responsibility or duty requiring the exercise of judgment and discretion.

(h) *Severability.* If any section, paragraph, sentence, clause or phrase of this article is for any reason held to be unconstitutional, invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this article. The city council declares that it would have passed each section, paragraph, sentence, clause or phrase of this article irrespective of the fact that any portion of this article could be declared unconstitutional, invalid or ineffective.
(Ord. No. 20,345, § 1, 9-6-01)

Sec. 82-322. Retaliation prohibited.

(a) A landlord or its agent may not retaliate by increasing rent or obligations of the tenant or decreasing services, harassing, threatening to evict or evicting the tenant because:

(1) The tenant has complained in good faith to a governmental agency charged with a responsibility for enforcement of a violation of the provisions of this article applicable to the premises; or

(2) The tenant has complained in good faith to the landlord or his agent of a violation of a provision of this article.

Any landlord or his agent who acts in violation of this section shall be in violation of this article.
(Ord. No. 20,345, § 1, 9-6-01)

Secs. 82-323—82-350. Reserved.

ARTICLE IX. MOSQUITOES AND FLIES*

Sec. 82-351. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

Abate means to take corrective action(s) to control mosquito breeding.

Artificial containers means any manmade containers, including, but not limited to, tires,

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***Editor's note—**M.C.S., Ord. No. 26901, § 1, adopted April 21, 2016, amended Art. IX in its entirety to read as herein set out. Former Art. IX, §§ 82-351—82-359, pertained to similar subject matter, and derived from Code 1956, § 37-1—37-9.

State law reference—Sanitary code, protection against vectorborne diseases, R.S. 40:4(9) et seq.

cans, vases, buckets, rain barrels boats, bird baths, jars, canals, ditches or flower cutting containers.

Artificially induced mosquito breeding area is any site at which five or more immature mosquitoes are present in artificial containers, vegetative plants or wastewater facilities at any one time.

Enforcement officer means the city officer charged with the administration and enforcement of this article, or their designated representative.

Immature mosquito means eggs, mosquito larva or pupa.

Person means an individual, corporation, organization, partnership, municipality, or other legal entity.
(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-352. Prohibition against allowance, creation or maintenance of artificially induced mosquito breeding area.

(a) It shall be a violation of this article for any person to allow the existence of, create, keep or maintain an artificially induced mosquito breeding area.

(b) Conditions deemed to allow the existence of, create, keep or maintain an artificially induced mosquito breeding area shall include, but are not limited to:

i. Failure to thoroughly empty, dry or clean any artificial containers at least every five days, unless property screened in a manner to prevent the ingress and egress of mosquitos to and from the water contained therein.

ii. Failure to drain or fill any excavations, holes or depressions in which water may stand such that the standing water may in the judgment of the enforcement officer allow the existence of, create, keep or maintain an artificially induced mosquito breeding area.

iii. Failure to properly screen any cistern, tank, rain barrel or well in a manner to prevent the ingress and egress of mosquitos to and from the water contained therein.

iv. Failure to maintain all gutters, drains, or roofs such that they drain thoroughly after rains and do not permit standing water such that it is likely to allow, create, keep or maintain an artificially induced mosquito breeding area.

v. Failure to maintain all swimming pools, spas and hot tubs in a clean and sanitary condition and in good repair with a functioning filtration system.

vi. Failure to treat all new, used or waste tires being stored on a property in a manner such as not to allow the existence of, create, keep or maintain an artificially induced mosquito breeding area.

(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-353. Enforcement.

The city shall cause this article to be enforced and to that end, it or persons acting under its authority may enter upon any premises, lots, squares, parks or battures to investigate and abate conditions determined to be in violation of this article.
(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-354. Right of entry.

(a) In the performance of his or her duties, the enforcement officer may enter any land, structure, or premises in the city to enforce this article, at any reasonable time, as provided in this section.

(b) If the premises is occupied, prior to entering any land, structure, or premises to enforce this article, the enforcement officer must give notice of his or her intent to enter at least 24 hours in advance of proposed time of entry. Notice shall be in writing and provide the date and time at which the enforcement officer will be present to make the inspection, and inform the person notified that he or she may request to reschedule the inspection to another date and time by contacting the enforcement officer before the stated date. If the premises is vacant, but

secured from the general public, the notice shall be mailed or delivered to the last known address of the owner as provided in the assessor's records.

(c) After the notice has been given, if the person notified fails to arrange for, denies or unduly delays the entry, the enforcement officer may request that the law department file in a court of competent jurisdiction a petition for right of entry to authorize entry for the enforcement of this article. The court of competent jurisdiction shall grant the petition upon determining that:

i. The notice required by subparts (b) and (c) this section have been given; and

ii. The petition establishes probable cause that an inspection will reveal violation(s) of this Article.

(d) The petition for right of entry shall be verified by the enforcement officer and accompanied by a sworn and signed affidavit containing facts within the personal knowledge of the affiant that probable cause exists.

(e) Any entry conducted for enforcement purposes of this article pursuant to an order permitting right of entry shall be made within 15 calendar days of the date the order is issued, unless otherwise provided in the order. The order shall be void upon the expiration of the entry period.

(f) Neither an order nor prior notice is required in any of the following named circumstances:

i. Entry is by permission of an owner or occupant upon the enforcement officer presenting credentials and requesting entry, or at the request of an owner or occupant of the land, structure, or premises or by a person with apparent right of possession;

ii. If the land, structure, or premises is vacant, visibly open and obviously accessible to members of the general public and violations of this article are in plain view; or

iii. Following a declared public health emergency, whereby in the judgment of the city, immediate entry for purposes of enforcement of this article is necessary to combat the declared public health emergency. Such authority shall only last during the duration of the declared public health emergency.

(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-355. Penalties.

(a) The city shall prosecute violations of this article in accordance with the administrative adjudication procedures established in Chapter 6 of the Code of the City of New Orleans.

(b) A penalty may be imposed for each noticed violation existing on, in or upon a premises. The penalty for each noticed violation shall be not exceed the maximum provided in section 6-37 of the Code of the City of New Orleans. Each day that a violation continues after due notice has been served shall be deemed a separate offense.
(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-356. Abatement.

(a) *Abatement by owner.* Upon notification of violation, as provided in this article, the owner or occupant of the land, structure or premises, or person with apparent right of possession, or person acting on his or her behalf, shall abate the artificially induced mosquito breeding area and/or prohibited activity or condition by removing the offending matter or taking corrective action to abate said artificially induced mosquito breeding area and/or prohibitive activity or condition within five calendar days of the receipt of the notice.

(b) *Abatement by the city.* Notwithstanding whether any injunctive or other judicial relief is petitioned for in accordance with this article, if the violation exists and is not abated within five calendar days of receipt of notification, the city, or persons acting under its authority, are hereby authorized to take corrective action to abate the artificially induced mosquito breeding area, at the owner or occupant of the land, structure or premises, or person with apparent right of possession's expense without further notice. Corrective actions may include the application of

pesticides or use of biological control agents in accordance with label directions or conduct source reduction.

(c) Should the owner or occupant of the land, structure or premises, or person with apparent right of possession fail to abate or cause a premises to be abated within five calendar days of receipt of notification, he or she shall be responsible for all costs of performing such abatement, which includes all expenses, fines, penalties, interest and administrative costs. The costs shall be charged against the premises and shall be a lien upon such property. A certified copy of the statement of costs reflecting the amount of such charges shall be filed with the recorder of mortgages, which shall operate as a lien and privilege in favor of the city against the property.

(d) Neither the city, nor any employee of the city, or person acting on behalf of the city shall be liable for any damages resulting from any corrective actions taken to enforce this article.
(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Sec. 82-357. Emergencies.

Nothing in this article shall be construed as prohibiting the city's ability to take any emergency corrective actions that in the judgment of city are necessary to prevent an epidemic or abate an immediate threat or menace to public health or safety to the fullest extent permitted by law.
(M.C.S., Ord. No. 26901, § 1, 4-21-16)

Secs. 82-358—82-385. Reserved.

ARTICLE X. RODENT AND VERMIN CONTROL*

Sec. 82-386. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business building means any structure, whether public or private, vacant or occupied, regardless of the type of material used in its construction, located within the boundaries of the city, that is adapted to occupancy for the transaction of business, for the rendering of professional services, for the display, sale or storage of goods, wares or merchandise or for the performance of work or labor, including hotels, roominghouses, boardinghouses, apartment houses, beer houses, beer parlors, office buildings, public buildings, stores, markets, restaurants, grain elevators and abattoirs, warehouses, work shops and factories, junkyards, scrap iron businesses or places, lumberyards, coal yards, automobile tire yards, sheds or buildings used for the storage of tires and any or all similar places where rats may find harborage.

Opening means any opening in the foundation, side or walls of any business building, including roof, chimney, eaves, grills, windows, sidewalk grates and sidewalk elevators, through which a rat may pass.

Premises includes all business buildings, outhouses, sheds, barns, garages, docks, wharves, piers, grain elevators and abattoirs, whether public or private, poultry houses, chicken yards, alleys or other areas where poultry, turkeys, ducks, geese, guinea hens, pigeons or other fowl, horses, mules, cattle, goats, rabbits, calves, squirrels, dogs, cats, swine or other animals, are kept, housed or stabled and all other structures used in connection with the operation of any business building.

Rat harborage means any condition found to exist under which rats may find shelter or protection and shall include any defective construction which would permit the entrance of rats into any business building.

Rat stoppage means any inexpensive form of ratproofing designed to prevent the ingress of rats into business buildings and is essentially the closing or protecting of all openings in exterior walls and foundations or the grates in a sidewalk of business buildings with ratproof materials installed in such a manner as to prevent rats from gaining entrance.
(Code 1956, § 54-1)

Cross reference—Definitions generally, § 1-2.

*__State law reference—__Sanitary code, protection against vectorborne diseases, R.S. 40:4(9) et seq.

Sec. 82-387. New business buildings, etc., to be ratproof.

It shall be unlawful for any person to construct within the limits of the city any business building or curb or farmers' market unless such construction shall render the business ratproof in accordance with the regulations prescribed by this article.
(Code 1956, § 54-2)

Sec. 82-388. Inspection and order to ratproof existing buildings; failure so to do.

The director of the department of health, or his duly authorized representative, may make frequent and unannounced inspections of existing business buildings within the limits of the city for the purpose of determining any rat infestation and order by written notice either the owner, occupant, agent or any other person in custody of any rat infested business building to protect such business building by rat stoppage as provided in this article, regardless of the need for the remodeling of, or repairs to, such business building, and further order that such other rat-control methods be employed as may be deemed necessary by the director of the department of health, or his duly authorized representative, to maintain such business building free from rats. The written notice and order shall specify the time, in no event in less than 15 days, for completion of such work and improvements. Unless such work and improvements are completed in accordance with the written notice and order by either the owner, occupant, agent or other person in custody of the business building within the time so specified or within the time to which a written extension has been granted by the director of the department of health, or his duly authorized representative, then the owner, occupant, agent or other person in custody of the building shall be guilty of an offense under the provisions of this article.
(Code 1956, § 54-3)

Sec. 82-389. Inspection during and after ratproofing.

The director of the department of health, or his duly authorized representative, may make inspection during the course of, and upon completion of, any such construction, repairs, remodeling or installation of rat-control measures to business buildings to ensure compliance with the provisions of this article, and no person shall interfere with or refuse to permit such inspection.
(Code 1956, § 54-4)

Sec. 82-390. Minimum requirements for ratproofing.

For the purpose of obtaining maximum rat stoppage at a minimum cost to the owner or occupant of business buildings the regulations contained in the following sections are set forth as the minimum requirements for applying ratstoppage to business buildings.
(Code 1956, § 54-5)

Sec. 82-391. Approval of materials used for ratproofing.

The director of the department of health, or his duly authorized representative, shall approve all materials used for the purposes set forth in this article and the method of installation.
(Code 1956, § 54-6)

Sec. 82-392. Rust-resisting coating for metal, etc.

Solid sheet metal, expanded metal and wire cloth specified in this article shall have a rust-resisting protective coating, preferably galvanized.
(Code 1956, § 54-7)

Sec. 82-393. Foundation wall ventilator openings.

All foundation wall ventilator openings shall be covered for their entire height and width with:

(1) Perforated sheet metal plates of a thickness not less than 14 gauge;

(2) Cast iron grills or grates; or

(3) Any other material of sufficient strength and equal rat-resisting properties.

The openings therein shall be small enough to prevent ingress of rats and in no instance shall be larger than one-half inch.
(Code 1956, § 54-8)

Sec. 82-394. Closing of openings.

All foundations and exterior wall openings such as those openings around pipes, electric cables, conduits, or openings due to deteriorated wall, broken masonry or concrete, but excluding those used for the purpose of ventilation, light, doors and windows, shall be protected against the ingress of rats by closing such openings with cement mortar, concrete or masonry, close-fitting sheet metal or suitable size pipe flanges or other material with equal rat-resisting properties which shall be securely fastened in place.
(Code 1956, § 54-9)

Sec. 82-395. Doors.

(a) All exposed edges of the lower eight inches of wooden doors and door jambs, serving as front, rear or side entrances, into business buildings from the ground, basement or cellar floors, and other doors accessible to rats shall be protected against the gnawing of rats by covering such doors and jambs with solid sheet metal of not less than 24 gauge thickness. The same material shall be used on door sills or thresholds or such door sills or thresholds may be constructed of cement, stone, steel or cast iron.

(b) Doors, door jambs and sills of coal chutes and hatchways that are constructed of wood shall be covered with solid sheet metal of 24 gauge or heavier or they may be replaced with metal chutes of 24 gauge or heavier installed in such a manner as will prevent the ingress of rats.

(c) All doors on which metal flashing has been applied shall be properly hinged to provide for free swinging. When closed, doors shall fit snugly so that the maximum clearance between any doors, door jambs and sill shall not be greater than three-eighths of an inch.

(d) Door jambs and sills constructed of metal, concrete, masonry, stone or cement mortar or cast iron and steel, when fitting closely to exclude rats, are not required to comply with the provisions of this section.
(Code 1956, § 54-10)

Sec. 82-396. Windows.

(a) All windows and other openings for the purpose of light and ventilation located in the side or rear of exterior walls and within 30 inches above the existing ground level immediately below such openings shall be covered for their entire height and width, including frame, with wire cloth of 19 gauge or heavier, having a mesh of not larger than one-half inch.

(b) All windows and other openings for the purpose of light or ventilation in the exterior walls that may be accessible to rats by way of exposed pipes, wires, conduits or other appurtenances shall be covered with guards of wire cloth of 19 gauge or heavier, having a mesh of not larger than one-half inch or, in lieu of wire cloth covering, such pipes, wires, conduits and other appurtenances shall be blocked from rat usage by installing sheet metal guards of 24 gauge or heavier. Such guards when used on horizontal pipes, wires, conduits or other appurtenances shall be placed in a vertical position and shall be fitted snugly around the pipe, wire, conduit or other appurtenances. Any such guard shall measure not less than 12 inches beyond and on all sides of the pipe, wire, conduit or other appurtenance where the intervening space between the wall and the pipe permits and shall extend 30 inches in an upward direction and 12 inches in a downward direction and shall be securely fastened to the pipe, wire, conduit or other appurtenance and also to the adjacent wall wherever practicable so that the guard will remain in a vertical position at all times.

(c) Such guards when used on vertical pipes, wires, conduits or other appurtenances shall be fitted snugly around the pipe, wire, conduit or other appurtenance, shall be placed in a horizontal position (right angle to pipe, etc.) and shall extend horizontally from the pipe, wire, conduit or other appurtenance for a minimum distance of

12 inches beyond and on all sides of the pipe, wire, conduit or other appurtenance where the intervening space between pipe and wall permits and shall be securely fastened to the pipe, wire, conduit or other appurtenance and also to the adjacent wall wherever practicable in such a manner that the guard will remain in a horizontal position at all times.
(Code 1956, § 54-11)

Sec. 82-397. Light wells in sidewalks.

(a) Light wells with windows in exterior walls that are located below the outside ground level shall be protected from the ingress of rats by one of the following methods:

(1) Installing over light wells cast iron or steel grills or steel gratings or other material of equal strength and rat-resisting properties with openings in grills or gratings not to exceed one-half inch in the shortest dimension; or

(2) Installing securely to and completely covering existing metal grills that are broken or that have openings larger than one-half inch in shortest dimension or are otherwise defective, with expanded metal of 18 gauge or heavier, having openings not greater than one-half inch in shortest dimension or with 16 gauge or heavier wire cloth with one-half inch mesh.

(b) At the option of the owner the opening in the wall of the building below the grate may be closed entirely with brick or concrete or partially closed and the remaining open space covered with 19 gauge, or heavier, wire cloth with mesh not to exceed one-half inch.
(Code 1956, § 54-12)

Sec. 82-398. Wood frame exterior construction.

(a) Business buildings constructed on piers having wooden floor sills less than 12 inches above the surface of the ground shall have the intervening space between floor sill and ground protected against the ingress of rats by installing a solid masonry or concrete, not less than four inches thick or solid sheet metal curtain wall of 24 gauge, or heavier, around the entire perimeter of the business building and extending such curtain wall to a depth of not less than 36 inches below the surface of the ground level and fastening securely to the exterior wall of the business building in such manner as will prevent rats from entering the building.

(b) In lieu of the installation of curtain walls, all ground walls and all ground floors of wood construction may be replaced with concrete of not less than three inches in thickness with the exterior walls protected for a height of 24 inches above the concrete floor with masonry, concrete or solid sheet metal of 24 gauge or heavier. Exterior wall protection shall be securely tied into the concrete floor at all points.

(c) Business buildings constructed on piers having wooden floor sills greater than 12 inches above the ground level shall have the intervening spaces between floor sill and ground protected against the ingress of rats by installing curtain walls in accordance with subsection (c) of this section or by protecting such business buildings against the ingress of rats by installing solid sheet metal coverage 24 gauge or heavier snugly around each pipe, cable, wire, conduit or other utility service passing through any such wooden ground floor. Such metal coverage shall not be less than eight inches in diameter larger than the diameter of the pipe, cable, wire, conduit or other utility service and shall be securely fastened to the wooden floor. All other openings in a wooden ground floor through which rats may gain entrance into double walls or in the interior of business buildings, such as openings that may exist in floors and double walls above floor sills, shall be closed with 24 gauge or heavier solid sheet metal or 16 gauge or heavier cloth of one-half inch mesh or with concrete or masonry. Wood frame constructed business buildings having concrete or masonry foundation walls shall have ventilators in the foundation walls protected as herein provided in section 82-394. All miscellaneous wall openings, doors and windows shall be protected in accordance with the provisions of this article.
(Code 1956, § 54-13)

Sec. 82-399. Repairs to holes made in installations, etc.

When repairs or new installations are made by plumbers, cooling system operators, electricians,

telephone workers, gas line installers or anyone else where it is necessary to tear out, punch holes or in any other way cause openings to be made in walls or floors, whether interior or exterior, complete repairs must be immediately attended to on the completion of the work being done by any such persons.
(Code 1956, § 54-14)

Sec. 82-400. Markets, outdoor stands, etc.

Curb or farmers' markets, outdoor or sidewalk fruit or vegetable stands or shops, in which fruit or vegetables or any other food products are exposed, displayed or offered for sale on racks, stands, platforms or in vehicles outside of business buildings shall have floors paved with concrete or asphalt for the entire surface area of the market or shop. Display racks, stands or platforms on which fruit or vegetables or any other food products are displayed or offered for sale shall be of sufficient height that all such fruit, vegetables or other food products shall be kept at a distance of not less than 18 inches above the floor pavement and shall be so constructed that rats cannot harbor therein or thereunder.
(Code 1956, § 54-15)

Sec. 82-401. Rat traps or poisons.

(a) For the purpose of eliminating all rats that may remain in any business building after ratstoppage shall have been carried into effect, all storerooms, warehouses or other business buildings in the city shall be provided by the owner, occupant, agent or other person in custody of such business building with one or more traps, which shall be kept set and freshly baited at frequent intervals and maintained in good working condition and shall be inspected daily. Any rat caught therein shall be killed, removed daily and disposed of in a manner acceptable to the director of the department of health, or his duly authorized representative, and such traps reset and rebaited.

(b) Rats may also be destroyed by poisoning and fumigating in a manner approved by the director of the department of health, or his duly authorized representative, or by any other authorized agency of the United States Public Health Service or the state department of health and subject to applicable laws and ordinances relating to poisonous substances and fumigators.
(Code 1956, § 54-16)

Sec. 82-402. Protection against climbing rats.

(a) In order to protect business buildings from what is commonly called the climbing or roof rat it shall be unlawful to permit fishing poles, ladders or any other object that a rat could climb on in order to reach the roof of any business building to lean against the side or walls of such business buildings.

(b) The owner of business buildings shall also protect elevator shafts, fire escapes and guy wires in such manner that rats will not be able to gain ingress into any business building.
(Code 1956, § 54-17)

Sec. 82-403. Rat harborage prohibited.

It shall be unlawful for any person to use or maintain any business building, premises or grounds in such manner that a rat harborage is brought into existence or maintenance.
(Code 1956, § 54-18)

Sec. 82-404. Dumping, etc., of food, etc., prohibited.

It shall be unlawful for any person to dump or place on any land or any water or waterway within the city any dead animal, butchers' offal, seafood, waste vegetables, animal matter or food product whatsoever.
(Code 1956, § 54-19)

Sec. 82-405. Dumping of garbage, etc.; rat burrows, etc.

No garbage, rubbish, waste or manure shall be placed, left, dumped or permitted to accumulate or remain in any building or on any premises in the city so that it shall or may afford food or a harboring or breeding place for rats. Rat burrows and other exterior harborage shall be treated under methods directed by the director of the department of health, or his duly authorized representative.
(Code 1956, § 54-20)

Sec. 82-406. Accumulation of debris on open lots prohibited.

It shall be unlawful for any person to permit any premises, improved or unimproved, or any open lot, alley, sidewalk, street or other place in the city to accumulate lumber, boxes, barrels, bricks, stones, automobile tires, automobile parts, junk, scrap iron, trash, debris and other similar material that may be permitted to remain thereon and that may be used as a harborage by rats unless it shall be placed upon open racks and elevated not less than 18 inches above the ground with clear intervening space underneath to prevent the harborage of rats.
(Code 1956, § 54-21)

Sec. 82-407. Closing rat infested buildings.

Whenever the director of the department of health, or his duly authorized representative, shall find any building, structures or premises so heavily infested with rats as to result in a present menace to public health, he may close the same to any occupancy or use until the rats have been eradicated or while the rats are being eradicated.
(Code 1956, § 54-22)

Sec. 82-408. Health certificate required before demolition application issued.

(a) Whenever an owner applies for a permit to demolish a structure or is ordered by the city to demolish a structure, in accordance with provisions of the city building code, such owner shall obtain from the director of the department of health a certificate stating that such premises are free from rodents. The director or his representative, upon receiving notification of the proposed demolition, shall inspect such premises to determine whether rodent infestation exists. If there is no evidence of infestation, the director shall issue a certificate indicating that the premises are free of rodent infestation and transmit same to the department of safety and permits. If an inspection by the director of the department of health indicates the existence of rodent infestation then the owner shall have the structure and premises treated for rodent extermination by a licensed pest control operator. It shall be the obligation of the owner or his designated pest control operator to notify the director of the department of health or his designated representative of the time that extermination will be carried out. The director shall inspect such premises after treatment and transmit to the department of safety and permits a certificate of approval if the results of said extermination are satisfactory. The department of safety and permits may not issue an application for a permit for demolition until it receives from the director of the department of health such a certificate.

(b) Any person who shall fail, neglect or refuse to comply with the terms of this article, shall be deemed and held guilty of a violation of this Code and shall pay a penalty of $50.00 for each and every such violation.

(c) In those cases where actual demolition is begun prior to application for such demolition, the director of safety and permits may accept and approve such application provided that the owner or his agent pays all fees and penalties prescribed by law; and that the department of safety and permits promptly notifies the department of health of the premature demolition which is hereby construed as a violation of this section.
(Code 1956, § 54-23)

Sec. 82-409. City to order extermination, lien owner, etc.

Whenever it is necessary for the city to order a structure demolished and to undertake to contract for the demolition of such structure due to the failure of the owner to do so, the city shall contract with a licensed pest control operator to treat such structure and premises for rodent and vermin extermination or it may undertake such treatment by personnel of the department of health. The director of the department of finance may contract for this service individually for each structure to be demolished or he may let such a contract on an annual basis; however, such contract shall be signed only with a licensed pest control operator. The cost of extermination for a structure shall be included in the expenses incurred for demolition and charged to the owner or owners of such property in accordance with the provisions of the city building code.
(Code 1956, § 54-24)

Sec. 82-410. Penalties, certain violations.

Violators of sections 82-403, 82-404, 82-405, and 82-406 shall, upon conviction or plea of guilty, be punished as follows:

(1) The first conviction of a violation of sections 82-403, 82-404, 82-405, and 82-406 shall be punishable by a fine of not less than $50.00 or more than $100.00;

(2) The second conviction of a violation of sections 82-403 through 82-406 shall be punishable by a fine of $100.00; and

(3) Each subsequent conviction of a violation of sections 82-403 through 82-406 shall be punishable by a fine of $100.00 and imprisonment of no less than five days and no more than 90 days.

(Code 1956, § 54-1.1)

Sec. 82-411. Enforcement of article.

In accordance with section 4-502(2) of the charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the New Orleans Mosquito, Termite, and Rodent Control Board for the purposes of enforcing the provisions of this article. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.

(M.C.S., Ord. No. 28885, § 1, 12-16-21)

Secs. 82-412—82-450. Reserved.

ARTICLE XI. STANDARDS FOR THE OPERATION OF BLOOD BANKS AND PLASMAPHERESIS CENTERS*

DIVISION 1. GENERALLY

Sec. 82-451. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Biological product means any virus, therapeutic serum, toxin, antitoxin or analogous product applicable to the prevention, treatment or cure of diseases or injuries of man.

Department of health shall mean that department as set forth in the charter or the parish agency designated to operate on health matters within the parish under Act 1972, No. 253, incorporated as R.S. 46:1751 et seq.

Director means the director of biologic and standards as set forth in the Federal Food and Drug Administration Regulations with the exception of these instances where the director's activities relate to inspections and enforcement of provisions providing for or protecting the health of the donor as set forth in the charter of the city or the director of the department of health, as that officer is defined in the charter of the city or his successor, as may be established under state law.

Establishment includes all locations located in the city.

Label means any written, printed or graphic matter on the container or package or any such matter clearly visible through the immediate carton, receptacle or wrapper.

Location includes all buildings, appurtenances, equipment and animals used, and personnel engaged by a processor within a particular area designated by an address adequate for identification.

Package means the immediate carton, receptacle or wrapper, including all labeling matter therein and thereon, and the contents of the one or more enclosed containers. If no package is used, the container shall be deemed to be the package.

Processing means all steps in the propagation or processing and preparation of products and includes but is not limited to filling, testing, labeling, packaging and storage by the processor. "Processing" also means any legal person or entity engaged in the processing of any biological product extracted from the human body or injected

*__State law references__—Sanitary Code, R.S. 40:4; donation of blood, R.S. 40:1097; Acquired Immune Deficiency Syndrome, R.S. 40:1299.141 et seq.

into the human body. Processor of any biological product is prohibited unless the same is for the exclusive use in interstate commerce or if to be utilized in intrastate commerce, that the processor and the processing must first be approved by the director of the department of health.

Products includes biological products and trivalent organic arsenicals.

Purity means relative freedom from extraneous matter in the finished product, whether or not harmful to the recipient or deleterious to the product. "Purity" includes but is not limited to relative freedom from residual moisture or other volatile substances and pyrogenic substances.

Standards means specifications and procedures applicable to an establishment or to the processing or release of products which are prescribed in this article and which are designed to ensure the continued safety, purity and potency of such products.

Sterility means freedom from viable contaminating microorganisms, as determined by the tests prescribed in this chapter.
(Code 1956, § 29-101)

Cross reference—Definitions generally, § 1-2.

Sec. 82-452. Enforcement.

The department of health shall enforce the provisions of this article and prosecute all persons charged with violating it and to that end its officers, members, agents and employees, who are either registered sanitarians or licensed physicians, may enter any establishment located within the city for the purpose of inspecting such premises for compliance with this article.
(Code 1956, § 29-152)

Sec. 82-453. Scope, application of article.

The provisions of this article are not intended in any way to be construed to regulate the practice of medicine. The provisions of this article are merely to establish minimum standards for the operation of the facilities regulated by this article. Records kept on the premises for individual donors shall be subject to inspection by registered sanitarians who are officers of the department of health. Such inspection shall be conducted on the premises of the individual operator.
(Code 1956, § 29-153)

Sec. 82-454. Penalty.

In addition to the provisions of this article for an administrative hearing, any person who shall violate any of the provisions of this article, upon conviction in a court of competent jurisdiction, shall be fined a minimum fine of $100.00 for each offense and shall be denied the right to work, be employed, or the right to operate a blood bank or plasmapheresis center within the city for a period of one year.
(Code 1956, § 29-154)

Secs. 82-455—82-475. Reserved.

DIVISION 2. LICENSING

Sec. 82-476. Application.

Each establishment subject to the provisions of this article shall apply to the director for a license by letter. The applicant shall submit a full description of the operation, a list of all employees, except custodial and maintenance, and the qualifications thereof, the address or addresses to and including specifications which show compliance with the provisions of sections 82-511 through 82-523. An application for license shall not be considered as filed until all pertinent information and data shall have been received by the department of health, to and including the license fee in the amount of $100.00.
(Code 1956, § 29-111)

Sec. 82-477. Registration.

(a) All owners or operators of establishments that engage in the collection, preparation, propagation, compounding or processing of human blood or blood products are required to register with the department of health. Registration and listing of products shall be part of the application.

(b) Forms for registration of an establishment are obtainable on request from the department of health.

(c) The completed form should be mailed to the department of health at the City Hall, Civic Center, New Orleans, Louisiana, 70112.
(Code 1956, § 29-117)

Sec. 82-478. License forms.

(a) *Establishment license.* The establishment license shall be prepared by the director and shall include:

(1) The name and address of the processor;

(2) The name and address of the establishment;

(3) The names and addresses of all locations of the establishment;

(4) The license number; and

(5) The date of issuance.

(b) *Product license.* The product license form shall be prescribed by the director of the department of health and shall include:

(1) The name and address of the manufacturer;

(2) The name and address of the establishment;

(3) The name and address of each location at which the product is manufactured;

(4) The license number of the establishment; and

(5) The proper name of the product, with additional specifications, if any, which may be approved or required for additional labeling purposes.

(Code 1956, § 29-112)

Sec. 82-479. Issuance, revocation or suspension.

(a) A license shall be issued by the director upon the determination that the establishment or the product, as the case may be, meets the standards established by this article. Licenses shall be valid until suspended or revoked. An establishment or product license shall be revoked upon application of the operator giving notice of intention to discontinue the processing or collection of all products or of intention to discontinue the processing or collection of a particular product for which a license is held. The director shall hold a hearing to determine if a license should be suspended or revoked whenever he finds, after notice and opportunity for hearing, that:

(1) Department of health inspectors after reasonable efforts have been unable to gain access to an establishment or a location for the purpose of carrying out the inspection required under section 82-552, or that;

(2) Processing or collection of products or of a product has been discontinued to an extent that a meaningful inspection cannot be made; or

(3) The establishment or any location thereof, or the product for which the license has been issued, fails to conform to the standards in the regulations in this article, designed to ensure the continued safety, purity, and potency of the processed product.

(b) In case of suspension, unless assurances satisfactory to the director have been provided that access will be permitted, that processing or collection will be resumed; or if the faulty condition is not corrected within 30 days or within such other period as may be specified in the notice of suspension, whichever is applicable, he shall hold a *hearing to determine if the license should be revoked.*

(c) Prior to the institution of proceedings looking to the suspension or revocation of a license the licensee shall be advised in writing of the facts or conduct which may warrant such action and shall be accorded opportunity within a reasonable period prescribed by the director to demonstrate or achieve compliance with the regulations in this article.

(Code 1956, § 29-113)

Sec. 82-480. Changes to be reported.

(a) *General.* Important proposed changes in location, equipment, management and responsible personnel, or in processing methods and labeling, of any product for which a license is in effect or for which an application for license is pending, shall be reported to the director, by the processor or operator, and unless in case of an emergency, not less than 30 days in advance of the time such changes are intended to be made.

(b) *Processing methods and labeling.* Proposed changes in processing methods and labeling may not become effective until notification of acceptance is received from the director.

(c) *Failure to report.* Failure to report a change as required shall constitute a ground for summary suspension of a license.

(Code 1956, § 29-115)

Sec. 82-481. Establishment licenses; issuance and conditions.

(a) *Inspection; compliance with standards.* An establishment license shall be issued only after inspection of the establishment and upon a determination that the establishment complies with the applicable standards prescribed in the regulations in this article.

(b) *Availability of product; simultaneous request for and issuance of product license.* No establishment license shall be issued unless:

(1) A product intended for sale, barter or exchange or intended to be offered, sent, carried or brought for sale, barter or exchange is available for examination;

(2) Such product is available for inspection during all phases of processing or collection; and

(3) A product license is requested and issued simultaneously with the establishment license.

(c) *One establishment license to cover all locations.* One establishment license shall be issued to cover all locations meeting the establishment standards.
(Code 1956, § 29-116)

Sec. 82-482. Summary suspension.

Whenever the director has reasonable ground to believe that an establishment or product for which a license has been issued fails to conform to the standards prescribed in the regulations in this article, and that by reason of such failure and of failure of the processor to take prompt corrective measures on notice thereof, the distribution or sale of a licensed product would constitute a danger to health, or that the establishment and processing methods have been so changed as to require, in order to protect the public health, a new showing that the establishment or product meets the standards prescribed in the regulations in this article, he may summarily suspend the license for the establishment or the product, and require the operator to show cause within 15 days, or such other period as may be specified in the order, why the license should not be revoked.
(Code 1956, § 29-118)

Sec. 82-483. Hearing.

When deemed advisable by the director in matters involving the safety, purity and potency of a licensed product or products for which an application for license is pending, the reports of inspection and examination, together with any pertinent data the establishment may submit, shall be passed upon by a hearing to be held by an assistant chief administrative officer of the city, in accordance with the notice issued by the director of the department of health in accordance with the provisions of the statutes of the state contained in R.S. 49:951. The hearing to be conducted by the assistant chief administrative officer shall also conform to all other requirements of R.S. 49:951 et seq.
(Code 1956, § 29-119)

Sec. 82-484. Opportunity for hearing.

Any person subject to this article whose application for license has been denied, or whose establishment or product license has been summarily suspended, without prior opportunity for a hearing, may appeal from such denial or suspension and shall be entitled to a hearing thereon before an assistant chief administrative officer, as set forth under the provisions of section 82-483.
(Code 1956, § 29-120)

Sec. 82-485. Hearing appeals.

Any person or corporation whose license was suspended or revoked under the provisions of this article may appeal their decision to the council for their further determination. Such appeal shall be made in accordance with the ordinances of the city and the rules governing the city council.
(Code 1956, § 29-121)

Sec. 82-486. Licenses; reissuance.

(a) *Compliance with standards.* An establishment or product license, previously suspended or revoked, whether upon application, or for failure to comply with standards or changes in standards prescribed in the regulations in this article, may

be reissued or reinstated upon a showing of compliance with required standards and upon such inspection and examination as may be considered necessary by the director.

(b) *Exclusion of noncomplying location.* An establishment or product license, excluding a location or locations that fail to comply with prescribed standards, may be issued without further application and concurrently with the suspension or revocation of the license for noncompliance at the excluded location or locations.
(Code 1956, § 29-122)

Secs. 82-487—82-510. Reserved.

DIVISION 3. REGULATIONS

Sec. 82-511. Personnel.

(a) *Responsible head.* A person shall be designated as the responsible head who shall exercise control of the establishment in all matters relating to compliance with the provisions of this article, with authority to represent the processor in all pertinent matters with the department of health, and with authority to enforce or to direct the enforcement of discipline and the performance of assigned functions by employees engaged in the processing of products. The responsible head shall have an understanding of the scientific principles and the techniques involved in the processing of products. The responsible head shall have the responsibility for the training of employees in processing methods and for their being informed concerning the application of the pertinent provisions of this article to their respective functions.

(b) *Other personnel.* Personnel shall have capabilities commensurate with their assigned functions, a thorough understanding of the processing operations which they perform, the necessary training and experience relating to individual products, and adequate information concerning the application of the pertinent provisions of this article to their respective functions. Personnel shall include such professionally trained persons as are necessary to ensure the competent performance of all processing.

(c) *Restrictions on personnel.*

(1) *Specific duties.* Persons whose presence can affect adversely the safety and purity of a product shall be excluded from the room where the processing of a product is in progress.

(2) *Sterile operations.* Personnel performing sterile operations shall wear clean or sterilized protective clothing and devices to the extent necessary to protect the product from contamination.

(3) *Pathogenic viruses and spore-bearing organisms.* Persons working with viruses pathogenic for man or with spore-bearing microorganisms, and persons engaged in the care of animals or animal quarters, shall be excluded from areas where other products are processed, or such persons shall change outer clothing, including shoes, or wear protective covering prior to entering such areas.

(4) *Live vaccine work areas.* Persons may not enter a live vaccine processing area after having worked with other infectious agents in any other laboratory during the same working day. Only persons actually concerned with propagation of the culture, production of the vaccine and unit maintenance shall be allowed in live vaccine processing areas when active work is in progress. Casual visitors shall be excluded from such units at all times and all others having business in such areas shall be admitted only under supervision. Street clothing, including shoes, shall be replaced or covered by suitable laboratory clothing before entering a live vaccine processing unit. Persons caring for animals used in the processing of live vaccines shall be excluded from other animal quarters and from contact with other animals during the same working day.
(Code 1956, § 29-102)

Sec. 82-512. Work areas.

All rooms and work areas where products are collected or stored shall be kept orderly, clean and

free of dirt, dust, vermin and objects not required for processing. Precautions shall be taken to avoid clogging and backsiphonage of drainage systems. Precautions shall be taken to exclude extraneous infectious agents from processing areas. Work rooms shall be well lighted and ventilated. The ventilation system shall be arranged so as to prevent the dissemination of microorganisms from one processing area to another and to avoid other conditions unfavorable to the safety of the product. Filling rooms, and other rooms where open, sterile operations are conducted, shall be adequate to meet processing needs and such rooms shall be constructed and equipped to permit thorough cleaning and to keep airborne contaminants at a minimum. If such rooms are used for other purposes, they shall be cleaned and prepared prior to use for sterile operations. Refrigerators, incubators and warm rooms shall be maintained at temperatures within applicable ranges and shall be free of extraneous material which might affect the safety of the product.
(Code 1956, § 29-103(a))

Sec. 82-513. Equipment.

Apparatus for sterilizing equipment and the method of operation shall be such as to ensure the destruction of contaminating microorganisms. The effectiveness of the sterilization procedure shall be no less than that achieved by an attained temperature of 121.5 degrees Celsius maintained for 20 minutes by saturated steam or by an attained temperature of 170 degrees Celsius maintained for two hours with dry heat. Processing and storage containers, filters, filling apparatus and other pieces of apparatus and accessory equipment, including pipes and tubing, shall be designed and constructed to permit thorough cleaning and, where possible, inspection for cleanliness. All surfaces that come in contact with products shall be clean and free of extraneous material. For products for which sterility is a factor, equipment shall be sterile unless sterility of the product is assured by subsequent procedures.
(Code 1956, § 29-103(b))

Sec. 82-514. Laboratory and bleeding rooms.

Rooms used for the processing of products, including bleeding rooms, shall be effectively flyproofed and kept free of flies and vermin. Such rooms shall be so constructed as to ensure freedom from dust, smoke and other deleterious substances and to permit thorough cleaning and disinfection. Rooms for animal injection and bleeding, and rooms for smallpox vaccine animals, shall be disinfected and be provided with the necessary water, electrical and other services.
(Code 1956, § 29-103(c))

Sec. 82-515. Animal quarters and stables.

Animal quarters, stables and food storage areas shall be of appropriate construction, flyproofed, adequately lighted and ventilated, and maintained in a clean, vermin-free and sanitary condition. No manure or refuse shall be stored as to permit the breeding of flies on the premises, nor shall the establishment be located in close proximity to off-property manure or refuse storage capable of engendering fly breeding.
(Code 1956, § 29-103(d))

Sec. 82-516. Restrictions on building and equipment use.

(a) *Work of a diagnostic nature.* Laboratory procedures of a clinical diagnostic nature involving materials that may be contaminated shall not be performed in space used for the processing of products except that processing space which is used only occasionally may be used for diagnostic work provided spore-bearing pathogenic microorganisms are not involved and provided the space is thoroughly cleaned and disinfected before the processing of products is resumed.

(b) *Spore-bearing organisms for supplemental sterilization procedure control test.* Spore-bearing organisms used as an additional control in sterilization procedures may be introduced into areas used for the processing of products, only for the purposes of the test and only immediately before use for such purposes, provided that:

(1) The organism is not pathogenic for man or animals and does not produce pyrogens or toxins;

(2) The culture is demonstrated to be pure;

(3) Transfer of test cultures to culture media shall be limited to the sterility test area or areas designated for work with spore-bearing organisms;

(4) Each culture be labeled with the name of the microorganism and the statement "Caution: microbial spores. See directions for storage, use and disposition"; and

(5) The container of each culture is designed to withstand handling without breaking.

(c) *Work with spore-bearing organisms.* Except as provided in subsection (b) of this section, all work with spore-bearing microorganisms shall be done in an entirely separate building; provided, that such work may be done in a portion of a building used in the processing of products not containing spore-bearing microorganisms if such portion is completely walled off and is constructed so as to prevent contamination of other areas and if entrances to such portion are independent of the remainder of the building. All vessels, apparatus and equipment used for spore-bearing microorganisms shall be permanently identified and reserved exclusively for use with those organisms. Materials destined for further processing may be removed from such an area only under conditions which will prevent the introduction of spores into other processing areas.

(d) *Live vaccine processing.* Space used for processing a live vaccine shall not be used for any other purpose during the processing period for that vaccine and such space shall be decontaminated prior to initiation of the processing. Live vaccine processing areas shall be isolated from and independent of any space used for any other purpose by being either in a separate building, in a separate wing of a building, or in quarters at the blind end of a corridor and shall include adequate space and equipment for all processing steps up to filling into final containers. Test procedures which potentially involve the presence of microorganisms other than the vaccine strains, or the use of tissue culture cell lines other than primary cultures, shall not be conducted in space used for processing live vaccine.

(e) *Equipment and supplies; contamination.* Equipment and supplies used in work on or otherwise exposed to any pathogenic or potentially pathogenic agent shall be kept separated from equipment and supplies used in the processing of products to the extent necessary to prevent cross-contamination.
(Code 1956, § 29-103(e))

Sec. 82-517. Animals used in processing.

(a) *Care of animals used in processing.* Caretakers and attendants for animals used for the processing of products shall be sufficient in number and have adequate experience to ensure adequate care. Animal quarters and cages shall be kept in sanitary condition. Animals on production shall be inspected daily to observe response to production procedures. Animals that become ill for reasons not related to production shall be isolated from other animals and shall not be used for production until recovery is complete. Competent veterinary care shall be provided as needed.

(b) *Quarantine of animals generally.* No animal shall be used in processing unless kept under competent daily inspection and preliminary quarantine for a period of at least seven days before use, or as otherwise provided in this article. Only healthy animals free from detectable communicable diseases shall be used. Animals must remain in overt good health throughout the quarantine periods and particular care shall be taken during the quarantine periods to reject animals of the equine genus which may be infected with glanders and animals which may be infected with tuberculosis.

(c) *Quarantine of monkeys.* In addition to observing the pertinent general quarantine requirements, monkeys used as a source of tissue in the processing of vaccine shall be maintained in quarantine for at least six weeks prior to use; except when otherwise provided in this part. Only monkeys that have reacted negatively to tuberculin at the start of the quarantine period and again within two weeks prior to use shall be used in the processing of vaccine. Due precaution shall be taken to prevent cross-infection from any infected or potentially infected monkeys on the premises. Monkeys to be used in the processing of a live vaccine shall be maintained throughout the quarantine period in cages closed on all sides with solid materials except the front which shall be screened,

with no more than two monkeys housed in one cage. Cage mates shall not be interchanged.

(d) *Immunization against tetanus.* Horses and other animals susceptible to tetanus, that are used in the processing steps of the processing of biological products shall be treated adequately to maintain immunity to tetanus.

(e) *Immunization and bleeding of animals used as a source of products.* Toxins or other nonviable antigens administered in the immunization of animals used in the processing of products shall be sterile. Viable antigens, when so used, shall be free of contaminants, as determined by appropriate tests prior to use. Injections shall not be made into horses within six inches of bleeding site. Horses shall not be bled for processing purposes while showing persistent general reaction or local reaction near the site of bleeding. Blood shall not be used if it was drawn within five days of injecting the animals with viable microorganisms. Animals shall not be bled for processing purposes when they have an intercurrent disease. Blood intended for use as a source of biological product shall be collected in clean, sterile vessels. When the product is intended for use by injection, such vessels shall also be pyrogen-free.

(f) *Reporting of certain diseases.* In cases of actual or suspected infection with foot-and-mouth disease, glanders, tetanus, anthrax, gas gangrene, equine infectious anemia, equine encephalomyelitis or any of the pock diseases among animals intended for use or used in the processing of products, the processor shall immediately notify the director of the department of health.

(g) *Monkeys used previously for experimental or test purposes.* Monkeys that have been used previously for experimental or test purposes with live microbiological agents shall not be used as a source of kidney tissue for the processing of vaccine. Except as provided otherwise in this division, monkeys that have been used previously for other experimental or test purposes may be used as a source of kidney tissue upon their return to a normal condition, provided all quarantine requirements have been met.

(h) *Necropsy examination of monkeys.* Each monkey used in the manufacture of vaccine shall be examined at necropsy under the direction of a qualified pathologist, physician or veterinarian having experience with diseases of monkeys, for evidence of ill health, particularly for:

(1) Evidence of tuberculosis;

(2) Presence of herpes-like lesions, including eruptions or plaques on or around the lips, in the buccal cavity or on the gums; and

(3) Signs of conjunctivitis.

If there are any such signs or other significant gross pathological lesions, the tissue shall not be used in the processing of vaccine.
(Code 1956, § 29-103(f))

Sec. 82-518. Filling procedures.

Filling procedures shall be such as will not affect adversely the safety, purity or potency of the product.
(Code 1956, § 29-103(g))

Sec. 82-519. Containers and closures.

All final containers and closures shall be made of material that will not hasten the deterioration of the product or otherwise render it less suitable for the intended use. All final containers and closures shall be clean and free of surface solids, leachable contaminants and other materials that will hasten the deterioration of the product or otherwise render it less suitable for the intended use. After filling, sealing shall be performed in a manner that will maintain the integrity of the product during the dating period. In addition, final containers and closures for products intended for use by injection shall be sterile and free from pyrogens. Except as otherwise provided in the regulations of this article, final containers for products intended for use by injection shall be colorless and sufficiently transparent to permit visual examination of the contents under normal light. As soon as possible after filling, final containers shall be labeled as prescribed by federal law, except that final containers may be stored without such prescribed labeling provided they are stored in a sealed receptacle labeled both inside and outside with at least the name of the product, the lot number, and the filling identification.
(Code 1956, § 29-103(h))

Sec. 82-520. Records.

(a) *Maintenance.* Records shall be made, concurrently with the performance, of each step in the processing and distribution of products in such a manner that at any time successive steps in the processing and distribution of any lot may be traced by an inspector. Such records shall be legible and indelible, shall identify the person immediately responsible, shall include dates of the various steps, and be as detailed as necessary for clear understanding of each step by one experienced in the processing of products.

(b) *Retention generally.* Records shall be retained for such interval beyond the expiration date as is necessary for the individual product, to permit the return of any clinical report of unfavorable reactions. The retention period shall be no less than five years after the records of processing have been completed or six months after the latest expiration date for the individual product, whichever represents a later date.

(c) *Records of recall.* Complete records shall be maintained pertaining to the recall from distribution of any product upon notification by the director of the department of health, to recall for failure to conform with the standards prescribed in the regulations of this article, because of deterioration of the product or for any other factor by reason of which the distribution of the product would constitute a danger to health.

(d) *Suspension of requirement for retention.* The director of the department of health may authorize the suspension of the requirement to retain records of a specific processing step upon a showing that such records no longer have significance for the purposes for which they were made, provided, that a summary of such records shall be retained.

(e) *Sterilization of equipment and supplies.* Records relating to the mode of sterilization, date, duration, temperature and other conditions relating to each sterilization of equipment and supplies used in the processing of products shall be made by means of automatic recording devices or by means of a system of recording which gives equivalent assurance of the accuracy and reliability of the record. Such records shall be maintained in a manner that permits an identification of the product with the particular process to which the sterilization relates.

(f) *Animal necropsy records.* A necropsy record shall be kept on each animal from which a biological product has been obtained and which dies or is sacrificed while being so used.

(g) *Records in case of divided processing responsibility.* If two or more establishments participate in the processing of a product, the records of each such establishment must show plainly the degree of its responsibility. In addition, each participating processor shall furnish to the processor who prepares the product in final form for sale, barter or exchange, a copy of all records relating to the processing operations performed by such participating processor insofar as they concern the safety, purity and potency of the lots of the product involved, and the processor who prepares the product in final form shall retain a complete record of all the processing operations relating to the product. (Code 1956, § 29-104)

Sec. 82-521. Retention samples.

Processors shall retain for a period of at least six months after the expiration date, unless a different time period is specified in additional standards, a quantity of representative material of each lot of each product, sufficient for examination and testing for safety and potency, except whole blood (human), antihemophilic plasma (human), cryoprecipitated antihemophilic factor (human), red blood cells (human), single-donor plasma (human), source plasma (human), normal human plasma and allergenic products prepared to physician's prescription. Samples so retained shall be selected at random from either final container material or from bulk and final containers, provided they include at least one final container as a final package, or package-equivalent of such filling of each lot of the product as intended for distribution. Such sample material shall be stored at temperatures and under conditions which will maintain the identity and integrity of the product. Samples retained as required in this section shall be in addition to samples of specific products required to be submitted to the department of health. Exceptions may be authorized by the director when the lot yields relatively few final containers and

when such lots are prepared by the same method in large number and in close succession.
(Code 1956, § 29-105)

Sec. 82-522. Reporting of errors.

The director of the department of health shall be notified promptly of errors or accidents in the processing of products that may affect the safety, purity or potency of any product.
(Code 1956, § 29-106)

Sec. 82-523. Temperatures during shipment.

The following products shall be maintained during shipment at the specified temperatures:

Product	*Temperature*
Cryoprecipitated antihemophilic factor (human)	−18° or colder
Poliovirus vaccine, live, oral, type 1	A temperature which will maintain ice continuously in a solid state.
Poliovirus vaccine, live, oral, type 2	
Poliovirus vaccine, live, oral, type 3	
Poliovirus vaccine, live, oral, trivalent	
Red blood cells (human), frozen	−65° C. or colder.
Red blood cells (human), liquid	Between 1° and 10° C.
Single donor plasma (human), frozen	−18° C. or colder.
Smallpox vaccine, liquid	A temperature which will maintain ice continuously in a solid state.
Source plasma (human)	−5° C. or colder.
Whole blood (human)	Between 1° and 10° C.
Yellow fever vaccine	A temperature which will maintain ice continuously in a solid state.

(Code 1956, § 29-107)

Secs. 82-524—82-550. Reserved.

DIVISION 4. INSPECTIONS

Sec. 82-551. Inspectors.

Inspections shall be made by a registered sanitarian who is an officer of the department of health.
(Code 1956, § 29-108)

Sec. 82-552. Time of inspection.

(a) The inspection of an establishment for which a license is pending need not be made until the establishment is in operation. In case the license is denied following inspection for the original license, no reinspection need be made until assurance has been received that the faulty conditions which were the basis of the denial have been corrected. An inspection of each licensed establishment shall be made not less than annually. Inspections may be made with or without notice, and shall be made during regular business hours unless the establishment is notified to the contrary.

(b) Satisfactory inspection and certification by the American Association of Blood Banks or Federal Blood Bank Inspection teams may be accepted in lieu of the required annual inspection.
(Code 1956, § 29-109)

Sec. 82-553. Duties of inspector.

The inspector shall:

(1) Call upon the active head of the establishment, stating the object of his visit.

(2) Interrogate the proprietor or other personnel of the establishment as he may deem necessary.

(3) Examine the details of location, construction, equipment and maintenance, in-

cluding stables, barns, warehouses, processing laboratories, bleeding clinics maintained for the collection of human blood, shipping rooms, record rooms and any other structure or appliance used in the establishment.

(4) Investigate as fully as he deems necessary the methods of propagation, processing, testing, storing, dispensing, recording or other details of operation, including observation of these procedures in actual operation.

(5) Obtain and cause to be sent to the director any necessary samples for the examination of any product.

(6) Bring to the attention of the licensee any fault observed in the course of inspection in location, construction or administration of a licensed establishment which might lead to impairment of a product.

(7) Inspect by a registered sanitarian, as circumstances may require, any records, to include donor records, required to be kept pursuant to this article.

(8) Certify as to the condition of the establishment and of the processing methods followed and make recommendations as to action deemed appropriate with respect to any application for license or any license previously issued.

(Code 1956, § 29-110)

Secs. 82-554—82-575. Reserved.

DIVISION 5. WHOLE BLOOD (HUMAN)

Sec. 82-576. Proper name.

The proper name of the product shall be "whole blood (human)." Whole blood (human) is defined as blood collected from human donors for transfusion to human recipients.
(Code 1956, § 29-123)

Sec. 82-577. Processing responsibility.

All collection of whole blood (human), including donor examination, blood collection, laboratory tests, labeling, storage and issue, shall be done under the supervision and control of the same licensed establishment except that the director may approve specific joint processing operations at the request of two or more licensed establishments, which he finds are of such a nature as to assure compliance otherwise with the provisions of this article.
(Code 1956, § 29-124(a))

Sec. 82-578. Periodic check on sterile technique.

(a) Where blood is collected in an open system, that is, where the blood container is entered, at least one container of such blood that upon visual examination appears normal shall be tested each month between the 18th and 24th day after collection, as a continuing check on technique of blood collection as follows:

(1) The test shall be performed with a total sample of no less than ten milliliters of blood and a total volume of fluid thioglycollate or thioglycollate broth medium ten times the volume of the sample of blood.

(2) The test sample shall be inoculated into one or more test vessels in a ratio of blood to medium of one-to-ten for each vessel, mixed thoroughly, incubated for seven to nine days at a temperature of 30 degrees to 32 degrees Celsius, and examined for evidence of growth of microorganisms every workday throughout the test period.

(3) On the third, fourth or fifth day at least one milliliter of material from each test vessel shall be subcultured in additional test vessels containing the same culture medium and in such proportion as will permit significant visual inspection, mixed thoroughly, incubated for seven to nine days at a temperature of 30 degrees to 32 degrees Celsius and examined for evidence of growth of microorganisms every workday throughout the test period.

(4) If growth is observed in any test vessel, the test shall be repeated to rule out faulty test procedure, using another sample of blood from either:

a. The container from which the initial test sample was taken;

b. The residual cells or plasma from that blood; or
c. Two different containers of blood, each 18 to 24 days old and each tested separately.

(5) The formula for fluid thioglycollate medium shall be as prescribed in this chapter and the formula for thioglycollate broth medium shall be as prescribed in this chapter.

(6) Media and design of container shall meet the requirements prescribed in this chapter.

(7) In lieu of performing one test using an incubation temperature of 30 degrees to 32 degrees Celsius, two tests may be performed, each in all respects as prescribed in this subsection, one at an incubation temperature of 18 degrees to 22 degrees Celsius and one at an incubation temperature of 35 degrees to 37 degrees Celsius.

(8) A different test may be performed provided that prior to the performance of such test a processor submits data which the director finds adequate to establish that the different test is equal or superior to the test herein prescribed as a check on sterile technique and makes the finding a matter of official record.

(Code 1956, § 29-124(b))

Sec. 82-579. Final container.

The original blood container shall be the final container and shall not be entered prior to issue for any purpose except for blood collection. Such container shall be uncolored and transparent to permit visual inspection of the contents and any closure shall be such as will maintain an hermetic seal and prevent contamination of the contents. The container material shall not interact with the contents under the customary conditions of storage and use, in such a manner as to have an adverse effect upon the safety, purity or potency of the blood.

(Code 1956, § 29-124(c))

Sec. 82-580. Reissue of blood.

Blood that has been removed from storage controlled by a licensed establishment shall not be reissued by a licensed establishment unless the following conditions are observed:

(1) The container has a tamperproof seal when originally issued and this seal remains unbroken;

(2) An original pilot sample is properly attached and has not been removed, except that blood lacking a pilot sample may be reissued in an emergency provided it is accompanied by instructions for sampling and for use within six hours after entering the container for sampling;

(3) The blood has been maintained continuously at one degree to ten degrees Celsius;

(4) The blood is held for observation until a significant inspection consistent with the requirements of section 82-584(5) can be made.

(Code 1956, § 29-124(e))

Sec. 82-581. Issue prior to determination of test results.

Notwithstanding the provisions of section 82-476, blood may be issued by the licensee on the request of a physician, hospital or other medical facility, before results of all tests prescribed in section 82-584 and the test for hepatitis associated (Australia) antigen prescribed in this chapter have been determined where such issue is essential to allow time for transportation to assure arrival of the blood by the time when needed for transfusion of such blood provided:

(1) The blood is shipped directly to such physician or medical facility;

(2) The records of the licensee contain a full explanation of the need for such issue;

(3) The label on each container of such blood bears the information required by section 82-585(5);

(4) The label does not bear results of tests other than those made on pilot samples of the blood to be shipped, taken at the time of its collection; and

(5) The label does not bear the name or any other identification of the intended recipient.

(Code 1956, § 29-124(f))

Sec. 82-582. Suitability of donor.

(a) *Method of determining.* The suitability of a donor as a source of whole blood (human) shall be determined by a qualified physician or by persons under his supervision and trained in determining suitability. Such determination shall be made on the day of collection from the donor by means of medical history, a test for hemoglobin level, and such physical examination as appears necessary to a physician who shall be present on the premises when examinations are made, except that the suitability of donors may be determined when a physician is not present on the premises, provided the establishment maintains records indicating the name and qualifications of the person immediately in charge of the employees who determine the suitability of donors when a physician is not present on the premises.

(b) *Qualifications of donor.* Except as provided in subsection (f) of this section, a person may not serve as a source of whole blood (human) more than once in eight weeks. In addition, donors shall be in good health, as indicated in part by:

(1) Oral temperature not to exceed 99.6 degrees Fahrenheit;

(2) Demonstration that the systolic blood pressure is between 100 and 200 millimeters of mercury, and the diastolic is between 50 and 100 millimeters of mercury, unless the examining physician is satisfied that an individual with blood pressures outside these limits is a qualified donor under the provisions of this section;

(3) A blood hemoglobin level which shall be demonstrated to be no less than 12.5 grams of hemoglobin per 100 milliliters of blood;

(4) Freedom from acute respiratory diseases;

(5) Freedom from any infectious skin disease at the site of phlebotomy and from any such disease generalized to such an extent as to create a risk of contamination of the blood;

(6) Freedom from any disease transmissible by blood transfusion, insofar as can be determined by history and examinations indicated above; and

(7) Freedom of the arms and forearms from skin punctures or scars indicative of addiction to self-injected narcotics.

(c) *Prohibited donors.* No individual shall be used as a source of whole blood (human) if he has:

(1) A history of viral hepatitis;

(2) A history of close contact within six months of donation with an individual having viral hepatitis;

(3) A history of having received within six months human blood, or any derivative of human blood which the department of health has advised the licensed establishment is a possible source of viral hepatitis.

(d) *Therapeutic bleedings.* Blood withdrawn in order to promote the health of a donor otherwise qualified under the provisions of this section, shall not be used as a source of whole blood (human) unless the container label conspicuously indicates the donor's disease that necessitated withdrawal of blood.

(e) *Immunized donors.* Blood withdrawn from donors known to have been immunized to human blood cell antigens shall not be used for whole blood (human) unless the container label conspicuously indicates such information.

(f) *Qualifications; donations within less than eight weeks.* A person may serve as a source of whole blood (human) more than once in eight weeks only if at the time of donation the person is examined and certified by a physician to be medically acceptable for this donation.

(g) *Pregnancy.* No female may donate if she is pregnant with a child and her pregnancy is beyond or more advanced than 90 days.

(Code 1956, § 29-125)

Sec. 82-583. Collection of the blood.

(a) *Supervision.* Blood shall be drawn from the donor by a qualified physician or under his supervision by assistants trained in the procedure. A

physician shall be present on the premises when blood is being collected, except that blood may be collected when a physician is not present on the premises, provided the establishment:

(1) Maintains on the premises a manual of standard procedures and methods, specifically developed for that institution and approved yearly by the medical director of that institution, that shall be followed by employees who collect blood; and

(2) Maintains records indicating the name and qualifications of the person immediately in charge of the employees who collect blood when a physician is not present on the premises.

A copy of this manual must be provided to the director of health upon request.

(b) *The donor clinic.* The pertinent requirements of sections 82-511 through 82-519 shall apply at both the licensed establishment and at any other place where the bleeding is performed.

(c) *Blood containers.* Blood containers and donor sets shall be pyrogen-free, sterile and identified by lot number. The amount of anticoagulant required for the quantity of blood to be collected shall be in the blood container when it is sterilized. In addition, all container and donor set surfaces that come in contact with blood used in the processing of Heparinized whole blood (human) shall be water repellant.

(d) *The anticoagulant solution.* The anticoagulant solution shall be sterile and pyrogen-free. One of the following formulae shall be used in the indicated volumes:

(1) Anticoagulant acid citrate dextrose solution (ACD).

	Solution A	*Solution B*
Tri-sodium citrate ($Na_3C_6H_5O_72H_2O$)	22.0 gm.	13.2 gm.
Citric acid ($C_6H_8O_7H_2O$)	8.0 gm.	4.8 gm.
Dextrose ($C_6H_{12}O_5H_2O$)	24.5 gm.	14.7 gm.
Water for injection (U.S.P.) to make	1,000 ml.	1,000 ml.
Volume per 100 ml. blood	15 ml.	25 ml.

(2) Anticoagulant heparin solution.

Heparin sodium (U.S.P.)	75,000 units
Sodium chloride injection (U.S.P.) to make	1,000 ml.
Volume per 100 ml. blood	6 ml.

A buffer to maintain stability shall be added if necessary.

(3) Anticoagulant citrate phosphate dextrose solution (CPD).

Tri-sodium citrate ($Na_3C_6H_5O_72H_2O$)	26.3 gm.
Citric acid ($C_6H_8O_7H_2O$)	3.27 gm.
Dextrose ($C_6H_{12}O_6H_2O$)	25.5 gm.
Monobasic sodium phosphate ($NaH_2PO_4H_2O$)	2.22 gm.
Water for injection (U.S.P.) to make	1,000 ml.
Volume per 100 ml. blood	14 ml.

(e) *Donor identification.* Each unit of blood shall be so marked or identified by number or other symbol as to relate it to the individual donor whose identity shall be established to the extent necessary for compliance with section 82-582.

(f) *Prevention of contamination of the blood.* The skin of the donor at the site of phlebotomy shall be prepared thoroughly and carefully by a method that gives maximum assurance of a sterile container of blood. The blood shall be collected by aseptic methods in a sterile system which may be closed or may be vented if the vent protects the blood against contamination.

(g) *Pilot samples for laboratory tests.* Pilot samples for laboratory tests shall meet the following standards:

(1) One or more pilot samples shall be provided with each unit of blood when issued or reissued except as provided in section

82-580 and all pilot samples shall be from the donor who is the source of the unit of blood.

(2) All samples for laboratory tests performed by the processor and all pilot samples accompanying a unit of blood shall be collected at the time of filling the final container by the person who collects the unit of blood.

(3) All containers for all samples shall bear the donor's identification before collecting the samples.

(4) All containers for pilot samples accompanying a unit of blood shall be attached to the whole blood container before blood collection, in a tamperproof manner that will conspicuously indicate removal and reattachment.

(h) *Phlebotomy for Heparinized whole blood (human).* Heparinized whole blood (human) shall be collected with minimal damage to and minimal manipulation of the donor's tissue.

(i) *Storage.* Immediately after collection, the blood shall be placed in storage within a two degree range between one degree and six degrees Celsius, unless it must be transported from the donor clinic to the processing laboratory. In the latter case the blood shall be placed in temporary storage having sufficient refrigeration capacity to cool the blood continuously toward a two degree range between one degree and six degrees Celsius until it arrives at the processing laboratory where it shall be stored within a two degree range between one degree and six degrees Celsius.
(Code 1956, § 29-126)

Sec. 82-584. Testing the blood.

All laboratory tests shall be made on a pilot sample specimen of blood taken from the donor at the time of collecting the unit of blood, and these tests shall include the following:

(1) *Serological test for syphilis.* Whole blood (human) shall be negative to a serological test for syphilis. Positive diagnosis of disease must be reported to the director and in accordance with the state sanitary code.

(2) *Determination of blood group.* Each container of whole blood (human) shall be classified as to ABO blood group. At least two blood group tests shall be made and the unit shall not be issued until grouping tests by different methods or with different lots of antiserums are in agreement. Only those Anti-A and Anti-B Blood Grouping Serums licensed under, or that otherwise meet the requirements of the regulations of this article shall be used, and the technique used shall be that for which the serum is specifically designed to be effective.

(3) *Determination of the Rh factors.* Each container of whole blood (human) shall be classified as to Rh type on the basis of tests done on the pilot sample. The label shall indicate the extent of typing and the results of all tests performed. If the test, using Anti-Rh_0 (Anti-D) Typing Serum, is positive, the container may be labeled "Rh Positive". If this test is negative, the results shall be confirmed by further testing which may include tests for the Rh_0 variant (D^u) and for other Rh-Hr factors. Blood may be labeled "Rh Negative" if negative to tests for the Rh_0 (D) and Rh_0 variant (D^u) factors. If the test using Anti-Rh_0 (Anti-D) Typing Serum is negative, but not tested for the Rh_0 variant (D^u), the label must indicate that this test was not done. Only Anti-Rh Typing Serums licensed under, or that otherwise meet the requirements of, the regulations of this article shall be used, and the technique used shall be that for which the serum is specifically designed to be effective.

(4) *Sterility test.* Whole blood (human) intended for transfusion shall not be tested for sterility by a method that entails entering the final container before the blood is used for transfusion.

(5) *Inspection.* Whole blood (human) shall be inspected visually during storage and immediately prior to issue. If the color or physical appearance is abnormal or there is any indication or suspicion of microbial contamination the unit of whole blood (human) shall not be issued for transfusion.
(Code 1956, § 29-127)

Sec. 82-585. Labeling.

In addition to all other applicable labeling requirements, the following shall appear on the label of each container:

(1) *Anticoagulant.*

a. *Name.* The name of the anticoagulant immediately preceding and of no less prominence than the proper name, expressed as follows:

1. Either "ACD", or "acid citrate dextrose solution";
2. Either "Heparinized" or "heparin solution";
3. Either "CPD" or "citrate phosphate dextrose solution".

b. *Quantity.* The quantity and kind of anticoagulant used and the volume of blood corresponding with the formula prescribed under section 82-583(d).

(2) *Serological test and test for hepatitis associated (Australia) antigen.* Indication of the method used for serological test for syphilis and the test for hepatitis associated (Australia) antigen, and the results.

(3) *Blood group and type.* Designation of blood group and Rh factors:

a. The blood group and the Rh factors shall be designated conspicuously.
b. If a color scheme for differentiating the ABO blood groups is used, the color used to designate each blood group on the container shall be:

Blood Group A: Yellow.
Blood Group B: Pink.
Blood Group O: Blue.
Blood Group AB: White.

(4) *Additional information for labels of Group "O" bloods.* Each Group "O" blood shall be labeled with a statement indicating whether or not isoagglutinin titers or other tests to exclude so-called "dangerous" Group "O" bloods were performed, and indicating the classification based on such tests.

(5) *Issue prior to determination of test results.* The label on each container of blood that is issued pursuant to the provisions of section 82-581 shall bear the following information and instructions in lieu of the information specified in subsections (2), (3), and (4) of this section.

EMERGENCY SHIPMENT FOR USE ONLY BY
(Name of physician, hospital or other medical facility.)

CAUTION

BEFORE TRANSFUSION

(1) Do not use until test results received from (name of licensee).
(2) Perform crossmatch.

(Code 1956, § 29-128)

Secs. 82-586—82-605. Reserved.

DIVISION 6. RED BLOOD CELLS (HUMAN)

Sec. 82-606. Proper name.

The proper name of this product shall be red blood cells (human). The product is defined as red blood cells remaining after separating plasma from human blood.
(Code 1956, § 29-129)

Sec. 82-607. General requirements.

(a) *Check on sterile technique.* If red blood cells (human) are prepared in a vented or open system, a check on sterile technique shall be made each month by performing a test 20 to 28 hours after the preparation of at least one container of red blood cells (human), by the method prescribed in section 82-578.

(b) *Storage.* Immediately after processing, the red blood cells (human) shall be placed in storage and maintained within a two degree range between one degree and six degrees Celsius.

(c) *Inspection.* The product shall be inspected immediately after separation of the plasma, periodically during storage, and at the time of issue. The product shall not be issued if there is any abnormality in color or physical appearance or if

there is any indication of microbial contamination.
(Code 1956, § 29-130)

Sec. 82-608. Suitability of donors.

The source blood for red blood cells (human) shall be obtained from a donor who meets the criteria for donor suitability prescribed in section 82-582.
(Code 1956, § 29-131)

Sec. 82-609. Collection of the blood.

(a) The source blood shall be collected as prescribed in section 82-583, except that subsections (d)(2), (g) and (h) shall not apply.

(b) Source blood may also be derived from whole blood (human) processed in accordance with applicable provisions of this division.
(Code 1956, § 29-132)

Sec. 82-610. Laboratory tests.

A sample of source blood shall be taken from the donor at the time of collection and it shall be used for a serological test for syphilis, for tests to determine blood group and Rh factors, as prescribed in section 82-584(1), (2) and (3).
(Code 1956, § 29-133)

Sec. 82-611. Pilot samples.

Pilot samples collected in integral tubing or in separate pilot tubes shall meet the following standards:

(1) One or more pilot samples of either the original blood or of the red blood cells (human) being processed shall be provided with each unit of red blood cells (human) when issued or reissued.

(2) Before they are filled, all pilot sample tubes shall be marked or identified so as to relate them to the donor of that unit of red cells.

(3) Before the final container is filled or at the time the final product is prepared, the pilot sample tubes to accompany a unit of cells shall be attached securely to the final container in a tamper proof manner that will conspicuously indicate removal and reattachment.

(4) All pilot sample tubes accompanying a unit of red blood cells (human) shall be filled at the time the blood is collected or at the time the final product is prepared, in each instance by the person who performs the collection or preparation.
(Code 1956, § 29-134)

Sec. 82-612. Processing.

(a) *Separation.* Red blood cells (human) may be prepared either by centrifugation done in a manner that will not tend to increase the temperature of the blood, and no later than 18 days after the date of blood collection or by normal, undisturbed sedimentation no later than 21 days after the date of blood collection. A portion of the plasma sufficient to assure optimal cell preservation shall be left with the red cells except when a cryophylactic substance is added for prolonged storage.

(b) *Sterile system.* All surfaces that come in contact with the red cells shall be sterile and pyrogen-free. If an open system is used, that is, where the transfer container is not integrally attached to the blood container, and the blood container is entered after blood collection, the plasma shall be separated from the red blood cells with positive pressure maintained on the original container until completely sealed. If the method of separation involves a vented system, that is, when an airway must be inserted in the container for withdrawal of the plasma, the airway and vent shall be sterile and constructed so as to exclude microorganisms and maintain a sterile system.

(c) *Final containers.* Final containers used for red blood cells (human) shall be the original blood containers unless the method of processing requires a different container. The final container shall meet the requirements for blood containers prescribed in section 82-579(c). At the time of filling, if a different container is used, it shall be marked or identified by number or other symbol so as to relate it to the donor of that unit of red cells.
(Code 1956, § 29-135)

Sec. 82-613. Modification for specific products.

A cryophylactic substance may be added to the red blood cells (human) for extended processor's

storage at minus 65 degrees Celsius or colder, provided the processor submits data considered by the director as adequately demonstrating through in vivo cell survival and other appropriate tests that the addition of the substance, the materials used and the processing methods result in a final product that meets the required standards of safety, purity and potency for red blood cells (human), and that the frozen product will maintain those properties for the prescribed dating period. Section 82-607(b) and (c) do not apply while a cryophylactic substance is present.
(Code 1956, § 29-136)

Sec. 82-614. Labeling.

In addition to the items required by other applicable labeling provisions of this division, labels for red blood cells (human) shall bear the following:

(1) The information required by section 82-585(1)(b), (2) and (3) for whole blood (human), except the proper name.

(2) Immediately following or immediately below and in no less prominence than the proper name, appropriate words describing each approved variation applicable to the product in the final container; for example, red blood cells (human), frozen, and red blood cells (human), deglycerolized.

(3) Instructions to use a filter in the administration equipment.

(4) Where source blood has been derived from whole blood (human), such fact and the name, address and license number of the establishment.

(Code 1956, § 29-137)

Secs. 82-615—82-635. Reserved.

DIVISION 7. CRYOPRECIPITATED ANTIHEMOPHILIC FACTOR (HUMAN)

Sec. 82-636. Proper name.

The proper name of this product shall be cryoprecipitated antihemophilic factor (human) which shall consist of a preparation containing the antihemophilic factor obtained from a single unit of human blood.
(Code 1956, § 29-138(a))

Sec. 82-637. Source.

Cryoprecipitated antihemophilic factor (human) shall be prepared from human blood meeting the following criteria:

(1) *Suitability of the donor.* Blood for cryoprecipitated antihemophilic factor (human) shall be obtained only from a donor who meets the criteria for suitability prescribed in section 82-582.

(2) *Collection of the blood.* Blood for cryoprecipitated antihemophilic factor (human) shall be collected as prescribed in section 82-583 except that paragraphs (d)(2), (g) and (h) shall not apply.

(3) *Testing the blood.* Blood for cryoprecipitated antihemophilic factor (human) shall be tested as prescribed in section 82-584(1), (2) and (3).

(Code 1956, § 29-138(b))

Sec. 82-638. General requirements.

(a) *Diluent.* No diluent shall be added to the product by the processor.

(b) *Storage.* Immediately after processing, the product shall be placed in storage and maintained at minus 18 degrees Celsius or colder.

(c) *Labeling.* In addition to the items required by other provisions of this article, the package label shall bear the following:

(1) Designation of blood group and type of the source blood.

(2) A warning against using the product if there is evidence of thawing during storage.

(3) Instructions to thaw cryoprecipitated antihemophilic factor (human) in a water bath maintained at not warmer than 37 degrees Celsius.

(4) Instructions to store the product at room temperature after thawing, to use the product within six hours after thawing and within two hours of entering the container.

(5) Instructions to use a filter in the administration equipment.

(6) A statement indicating the volume of the source plasma and the type of anticoagulant solution present in the source plasma from which the product was prepared.

(7) Indication of the test method for hepatitis associated (Australia) antigen used and the result.

(Code 1956, § 29-139)

Sec. 82-639. Processing.

(a) *Separation of plasma.* The plasma shall be separated from the red blood cells in a closed sterile system within four hours after collection by centrifugation to obtain an essentially cell-free material.

(b) *Freezing the plasma.* The plasma shall be frozen within two hours after separation. A combination of dry ice and organic solvent may be used for freezing provided the procedure has been shown not to cause the solvent to penetrate the container or leach plasticizers from the container into the frozen plasma.

(c) *Separation of factor.* The cryoprecipitated antihemophilic factor (human) shall be separated from the plasma in a closed system by a procedure that precludes contamination and has been shown to produce a product which has demonstrated potency in patients having a factor VIII deficiency.

(d) *Final container.* Final containers used for cryoprecipitated antihemophilic factor (human) shall be uncolored and transparent to permit visual inspection of the contents and any closure shall be such as will maintain an hermetic seal and prevent contamination of the contents. The container material shall not interact with the contents under the customary conditions of storage and use in such a manner as to have an adverse effect upon the safety, purity and potency of the product. At the time of filling, the final container shall be marked or identified by number or other symbol so as to relate it to the donor.

(Code 1956, § 29-140)

Secs. 82-640—82-659. Reserved.

DIVISION 8. SOURCE PLASMA (HUMAN)

Sec. 82-660. Proper name.

The proper name of this product shall be "source plasma (human)." The product is defined as the fluid portion of human blood which has been stabilized against clotting, collected by plasmapheresis, and is intended as source material for further processing into blood derivatives (a portion of pooled plasma separable by chemical means) intended for injection.

(Code 1956, § 29-141)

Sec. 82-661. Informed consent.

The written consent of a prospective donor shall be obtained after a qualified licensed physician has explained the hazards of the procedure to the prospective donor. The explanation shall include the risks of a hemolytic transfusion reaction if he is given the cells of another donor, and the hazards involved if he is hyperimmunized. The explanation shall consist of such disclosure and be made in such a manner that intelligent and informed consent be given and that a clear opportunity to refuse is presented. The donor shall also be apprised of the criminal provisions of this article prohibiting any donor from donating more than set forth in section 82-687(4) and (5).

(Code 1956, § 29-142)

Sec. 82-662. Medical supervision.

A qualified licensed physician shall be located on the premises when donor suitability is being determined, immunizations are being made, whole blood is being collected and red blood cells are being returned to the donor.

(Code 1956, § 29-143)

Sec. 82-663. Suitability of donor.

(a) *Method of determining.* The suitability of a donor for source plasma (human) shall be determined by a qualified licensed physician or by per-

sons under his supervision and trained in determining donor suitability. Such determination shall be made on the day of collection from the donor by means of a medical history, tests and such physical examination as appears necessary to the qualified licensed physician.

(b) *Initial medical examination.* Each donor shall be examined by a qualified licensed physician on the day of the first donation, or no more than one week prior to the first donation, and shall be certified to be in good health by the examining physician. The certification of good health shall be on a form supplied by the licensed establishment that indicates the certification is with respect to the suitability of the individual to be a plasmapheresis donor.

(c) *Qualification of donor.* Donors shall be in good health on the day of donation, as indicated in part by:

(1) Oral temperature not to exceed 99.6 degrees Fahrenheit;

(2) Demonstration that the systolic blood pressure is between 100 and 200 millimeters of mercury, and the diastolic is between 50 and 100 millimeters of mercury, unless the examining physician is satisfied that an individual with blood pressures outside these limits is a qualified donor under the provisions of this section;

(3) A blood hemoglobin level of no less than 12.5 grams of hemoglobin per 100 milliliters of blood;

(4) A pulse rate between 50 and 110 beats per minute without evidence of pathological cardiac irregularity;

(5) A total serum protein of no less than six grams per 100 milliliters of serum;

(6) Weight, which shall be at least 110 pounds;

(7) Freedom from acute respiratory diseases;

(8) Freedom from any infectious skin disease at the site of phlebotomy and from any such disease generalized to such an extent as to create a risk of contamination of the plasma;

(9) Freedom from any disease, other than malaria, transmissible by blood transfusion, insofar as can be determined by history and examinations indicated in this section;

(10) Freedom of the arms and forearms from skin punctures or scars indicative of addiction to self-injected narcotics;

(11) Freedom from a history of viral hepatitis;

(12) Freedom from a history of close contact within six months of donation with an individual having viral hepatitis;

(13) Freedom from a history of having received, within six months, human blood or any derivative of human blood which the department of health has advised the licensed establishment is a possible source of viral hepatitis, except for specific immunization performed in accordance with section 82-688;

(14) No female who is pregnant with a child and her pregnancy is beyond or more advanced than 90 days may donate;

(15) Any donor who, in the opinion of the interviewer, appears to be under the influence of any drug or alcohol shall not donate;

(16) Any person who for any reason does not appear to be providing reliable answers to medical history questions shall not be considered a suitable donor.

(Code 1956, § 29-144)

Sec. 82-664. Collection of blood for source plasma (human).

(a) *Supervision.* All blood for the collection of source plasma (human) shall be drawn from the donor by a qualified licensed physician or by persons under his supervision trained in the procedure.

(b) *Blood containers.* Blood containers and donor sets shall be pyrogen-free, sterile and identified by lot number. The amount of anticoagulant required for the quantity of blood to be collected shall be in the blood container when it is sterilized.

(c) *The anticoagulant solution.* The anticoagulant solution shall be sterile and pyrogen-free. One of the following formulae shall be used in the indicated volumes:

(1) Anticoagulant acid citrate dextrose solution (ACD).

Tri-sodium citrate ($Na_3C_6H_5O_72H_2O$)	22.0 grams
Citric acid ($C_6H_8O_7H_2O$)	8.0 grams
Dextrose ($C_6H_{12}O_6H_2O$)	24.5 grams
Water for injection (U.S.P.) to make	1,000 milliliters
Volume per 100 milliliters blood	15 milliliters

(2) Anticoagulant acid citrate dextrose solutions (CPD).

Tri-sodium citrate ($Na_3C_6H_5O_72H_2O$)	26.3 grams
Citric acid ($C_6H_8O_7H_2O$)	3.27 grams
Dextrose ($C_6H_{12}O_6H_2O$)	25.5 grams
Monobasic sodium phosphate ($NaH_2PO_4H_2O$)	2.22 grams
Water for injection (U.S.P.) to make	1,000 milliliters
Volume per 100 milliliters blood	14 milliliters

(3) Anticoagulant sodium citrate solution.

Tri-sodium citrate ($Na_3C_6H_5O_72H_2O$)	40 grams
Water for injection (U.S.P.) to make	1,000 milliliters
Volume per 100 milliliters of blood	10 milliliters

(d) *Donor identification.* Each unit of blood and plasma shall be so marked or identified by number or other symbol so as to relate it directly to the donor.

(e) *Prevention of contamination of the blood and plasma.* The skin of the donor at the site of phlebotomy shall be prepared thoroughly and carefully by a method that gives maximum assurance of a sterile container of blood. The blood shall be collected, the plasma separated, and the cells returned to the donor by aseptic methods in a sterile system which may be closed, or may be vented if the vent protects the blood cells and plasma against contamination.
(Code 1956, § 29-145)

Secs. 82-665—82-685. Reserved.

DIVISION 9. PLASMAPHERESIS

Sec. 82-686. Procedure generally.

The plasmapheresis procedure, which is defined as that procedure in which blood is removed from a donor, the plasma separated from the formed elements and the formed elements returned to the donor, during a single visit to the establishment, shall be described in detail in the product license application.
(Code 1956, § 29-146(a))

Sec. 82-687. Specific requirements.

The plasmapheresis procedure shall meet the following requirements:

(1) A sample of blood shall be drawn from each donor by a qualified licensed physician or by persons under his supervision and trained in such procedure on the day of the first plasmapheresis and at least every four months thereafter on which a serologic test for syphilis and a serum protein electrophoresis or quantitative immunodiffusion test for immunoglobulins to determine the immunoglobulin composition of the serum shall be performed. The results of the tests shall be reviewed by a qualified licensed physician within ten days after the sample is drawn to determine whether or not the donor may continue on the program. If the plasma protein composition is not within normal limits established by the testing laboratory, the donor shall be removed from the program until these values return to normal. A donor with a reactive serologic test for syphilis shall not be plasmapheresed again until his serum tests nonreactive to a serologic test for syphilis.

(2) At least every four months the accumulated laboratory data and collection records of each donor shall be reviewed by a qualified licensed physician to determine continuing suitability of the donor. Only those donors found suitable upon such a review shall remain in the plasmapheresis program. Such a review shall be signed by the reviewing physician.

(3) A donor identification system shall be established that positively identifies each donor and relates such donor directly to his blood and its components as well as to his accumulated records and laboratory data. Such system shall include either a photograph of each donor which shall be used on each visit to confirm the donor's identity, or some other method that provides equal or greater assurance of positively identifying the donor.

(4) The amount of whole blood, not including anticoagulant, removed from a donor during a plasmapheresis procedure or in any 48-hour period shall not exceed 1,000 milliliters unless the donor's weight is 175 pounds or greater, in which case the amount of whole blood, not including anticoagulant, removed from the donor during a plasmapheresis procedure or in any 48-hour period shall not exceed 1,200 milliliters.

(5) The amount of whole blood, not including anticoagulant, removed from a donor within a seven-day period shall not exceed 2,000 milliliters unless the donor's weight is 175 pounds or greater, in which case the amount of whole blood, not including anticoagulant, removed from the donor during a seven-day period shall not exceed 2,400 milliliters.

(6) No more than 500 milliliters of whole blood shall be removed from a donor at one time, unless the donor's weight is 175 pounds or greater, in which case no more than 600 milliliters of whole blood shall be removed from the donor at one time.

(7) The plasma shall be separated from the red blood cells immediately after blood collection. The maximum feasible volume of red blood cells shall be returned to the donor before another unit is collected.

(Code 1956, § 29-146(b))

Sec. 82-688. Immunization of donors.

If specific immunization of a donor is to be performed, the selection and scheduling of the injection of the antigen, and the evaluation of each donor's clinical response, shall be by a qualified licensed physician or physicians. The administration of the antigen may be performed by a licensed physician or a trained person under his supervision. Any material used for immunization shall be either a product licensed under section 351 of the Public Health Service Act for such purpose or one specifically approved by the director. Immunization procedures shall be on file at each plasmapheresis center where immunizations are performed.

(Code 1956, § 29-147)

Sec. 82-689. Test for hepatitis B antigen.

Each unit of source plasma (human) shall be nonreactive to a test for the hepatitis B antigen by method approved by the director.

(Code 1956, § 29-148)

Sec. 82-690. Processing.

(a) *Sterile system.* All surfaces that come in contact with the plasma shall be both sterile and pyrogen-free. If the method of separation involves a vented system (i.e., where an airway must be inserted into a container for withdrawal of the plasma), the airway and vent shall be sterile and constructed so as to exclude microorganisms and maintain a sterile system.

(b) *Final containers.* Final containers used for source plasma (human), whether integrally attached or separated from the original blood container, shall not be entered prior to issuance for any purpose except for filling with the plasma. Such containers shall be uncolored and hermetically sealed, and shall permit clear visibility of the contents. Final containers and their components shall not interact with the plasma contents under conditions of storage and use so as to alter the safety, quality, purity or potency of the plasma

and shall provide adequate protection against external factors that may cause deterioration or contamination. Prior to filling, the final container shall be marked or identified by number or other symbol which will relate it directly to the donor.

(c) *Preservative.* Source plasma (human) shall not contain a preservative.
(Code 1956, § 29-149)

Sec. 82-691. General requirements.

(a) *Pooling.* Pooling of plasma by the collector or processor of source plasma (human) from two or more donors is not permitted. Two units of plasma from the same donor may be pooled if such units are collected during one plasmapheresis procedure, provided the pooling is done by a procedure that gives maximum assurance of a sterile container of plasma.

(b) *Storage.* Immediately after filling, the plasma shall be stored at not warmer than minus 20 degrees Celsius, except for plasma collected as provided for in section 82-692.

(c) *Inspection.* Source plasma (human) shall be inspected at the time of issuance. If there is any evidence of thawing, the unit shall not be issued.

(d) *Pilot samples.* If pilot samples are provided, they shall meet the following standards:

(1) Prior to filling, all pilot samples shall be marked or identified so as to relate them directly to the donor of that unit of plasma.

(2) All pilot samples shall be filled at the time the final product is prepared by the person who prepares the final product.

(3) All pilot samples shall be representative of the contents of the final product.

(4) All pilot samples shall be collected in a manner that does not contaminate the contents of the final container.

(e) *Labeling.* In addition to the labeling requirements of federal and state law, the following information shall appear on the label affixed to each container of source plasma (human):

(1) The proper name of the product.

(2) Name, address and license number of the processor.

(3) Donor number.

(4) Collection date of the plasma.

(5) The statement: "Caution: For Processing Use Only".

(6) The statement: "Store at -20° C. or colder".

(7) A statement as to whether the plasma was collected from normal donors or from immunized donors. In the case of immunized donors, the label shall state the immunizing antigen.

(8) The total volume of plasma and total quantity and type of anticoagulant used.

(9) The test for hepatitis B antigen used and the results.

(f) *Processing responsibility.* All steps in the processing of source plasma (human), including donor examination, blood collection, plasmapheresis, laboratory testing, labeling, storage and issuing shall be performed by the establishment licensed to process source plasma (human), except that the following tests may be performed by a clinical laboratory licensed by a state or federal agency, or by an establishment licensed for blood or blood derivatives under section 351 of the Public Health Service Act, provided such arrangements are approved by the director:

(1) The test for hepatitis B antigen pursuant to section 82-689.

(2) The serum protein electrophoresis or quantitative immunodiffusion test for immunoglobulin as required by section 82-687(1).

(3) Such testing pursuant to subsections (f)(1) and (2) of this section shall not be considered divided processing, requiring two product licenses for source plasma (human), provided that:

a. The results of such tests are maintained by the establishment licensed for source plasma (human) whereby such results may be reviewed by a licensed physician as

required in section 82-687(2), and/or by authorized department of health inspectors.

b. The source plasma (human) processor has obtained a written agreement that the testing laboratory will permit authorized department of health inspectors to inspect their testing procedures and facilities during any reasonable business hours.

c. The testing laboratory will participate in any proficiency testing programs undertaken by the department of health.

(g) *Records.* In addition to the general record-keeping requirements of section 82-521, every processor of source plasma (human) must keep for each donor a separate and complete record of all initial and periodic examinations, tests, laboratory data, interviews, etc., undertaken pursuant to sections 82-663 and 82-686 through 82-689. This record must also contain the original or a clear copy of the donor's written consent for participation in the plasmapheresis program as required by section 82-661 and the certification of good health as prescribed in section 82-663(b). Each donor record must be directly cross referenced to the unit of source plasma (human) associated with the donor.
(Code 1956, § 29-150)

Sec. 82-692. Modification of source plasma (human).

(a) Upon approval by the director of an amendment to the product license for source plasma (human), a processor may prepare source plasma (human) as a liquid product for a licensed blood derivative processor who has indicated a need for a liquid product.

(b) Liquid source plasma (human) shall meet all standards of the frozen source plasma (human) except:

(1) Liquid source plasma (human) shall be stored in nonleachable containers so that the containers and their components will not interact with the plasma contents under conditions of storage and use so as to alter the safety, quality, purity or potency of the plasma and shall provide adequate protection against external factors that may cause deterioration or contamination.

(2) Liquid source plasma (human) shall be shipped, stored and labeled for storage at a temperature of ten degrees Celsius or colder. An exception to the shipping or storage temperature shall be approved by the director based upon his receipt of substantial evidence to support another temperature. Such evidence may be submitted by either the product licensee of the liquid source plasma (human) or the processor of the final blood derivative product who has requested the liquid source plasma (human).

(3) The label for the liquid source plasma (human) shall be easily distinguished from that of the frozen product. Color coding shall not be used for this purpose.

(4) The label affixed to each container of liquid source plasma (human) shall contain, in addition to the information required by section 82-691(e) but excluding section 82-691(e)(6) the name of the processor of the final blood derivative product for whom it was prepared.

(5) Liquid source plasma (human) shall be inspected immediately prior to issuance. If the color or physical appearance is abnormal, or there is any indication or suspicion of microbial contamination, the unit of liquid source plasma (human) shall not be issued.

(Code 1956, § 29-151)

ARTICLE XII. REMOVAL OF UNAUTHORIZED ENCAMPMENTS

Sec. 82-693. Purpose.

The city finds that: (1) unauthorized entry is occurring upon public property that is closed to the public, or is open to the public only during certain operating hours or for certain limited

purposes; and (2) that the erection of unauthorized structures, tents, and other shelters in these locations can create obstructions or other immediate hazards, including unsanitary conditions that can cause disease outbreaks and other health hazards, which are a threat to the public safety and health; and (3) the erection of unauthorized structures, tents, and other shelters interferes with the public's ability to utilize public property, facilities, and rights-of-way for intended purposes. Accordingly, this article centrally locates and establishes uniform rules and procedures for the remediation of encampments located on public property.
(M.C.S., Ord. No. 28081, § 1, 5-9-19)

Sec. 82-694. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Encampment means property that, to a reasonable person, is being utilized for camping or housing purposes, as evidenced by one or more tents, structures, shelters or assembly of camping equipment. Encampments do not include areas that are no longer in active use for camping or housing purposes, but contain garbage, debris, or other waste.

Encampment area means the identifiable, public area where an encampment exists, but is not formally designated a *routine cleaning area* as defined in this article.

Immediate hazard means an encampment where a risk of serious injury or death exists to inhabitants—beyond an increased exposure to the elements—or presents a risk of serious injury or death to others. This includes but is not limited to: encampments located upon highway shoulders and on/off-ramps, and areas that can only be accessed by crossing driving lanes outside of legal crosswalks.

Obstruction means people, tents, personal property, garbage, debris, or other objects related to an encampment that are located on city property that genuinely interfere with the free and proper use, impede pedestrian and vehicular transportation, or unreasonably interferes with areas that are necessary for or essential to the intended use of public property.

Personal property means an item that (1) is reasonably recognizable as belonging to a person; (2) has apparent utility in its present condition and circumstances; and (3) is not hazardous or in a hazardous condition. Examples include, but are not limited to: tents, bicycles, personal papers, photographs, jewelry, eyeglasses, medications, crutches, and wheelchairs. Personal property does not include building materials, such as wood, bricks, metal pallets, and rigid plastic; junk or scrap metal, including as defined in section 130-39; combustible materials, such as gasoline, cardboard boxes, and newspapers; plug-in household appliances such as refrigerators, microwave or toaster ovens, and air-conditioning appliances; trash, refuse, or garbage, including dumped food product as defined in section 82-404; or abandoned property, which is that property found outside the area immediately surrounding an encampment, or, is property in which, given the totality of the circumstances, no person has exhibited a reasonable and actual possessory interest. If it cannot be reasonably determined if an item is personal property, the default shall be that the item be treated as personal property.

Remediation means maintenance and cleaning of the public rights-of-way and public property impacted by encampments, by performing efforts that include, but are not limited to: the removal of trash, waste and debris; the cleaning or pressure washing of streets and sidewalks; and the removal and storage of personal property.

Routine remediation area means an identifiable area where the city has previously remediated an encampment, and plans to undertake routine remediation efforts by installing permanent notice signage as provided in section 82-699.
(M.C.S., Ord. No. 28081, § 1, 5-9-19; M.C.S., Ord. No. 29584, § 1, 8-10-23)

Sec. 82-695. Encampment inspection—Initial steps.

(a) Upon the department of health (hereafter, department) being notified of an encampment on public property, the department shall inspect the location within two business days.

(b) Upon inspection and a determination by the department of the existence of an encampment, the location will be prioritized for remediation. The inspection of all reported encampments is not required before prioritizing remediation of a previously inspected encampment.

(c) Prioritization of encampment remediation by the department shall be based regulations which shall at a minimum consider the following:

a. Objective hazards such as moving vehicles;

b. Criminal activity beyond substance abuse;

c. Quantities of garbage, debris, or waste;

d. Active and/or immediate health hazards to occupants or the immediate vicinity;

e. Difficulty extending emergency services to the site;

f. Imminent work scheduled at the site for which the encampment will pose an obstruction;

g. Damage to the natural environment; and/or

h. The proximity of the encampment to uses that service vulnerable populations, such as schools and facilities for the elderly.

Prioritization may be revised at any time by the department as a result of new encampments being reported and identified, additional encampments being inspected, or new information about an encampment's condition becomes available.

(M.C.S., Ord. No. 28081, § 1, 5-9-19)

Sec. 82-696. Designation of an encampment area for remediation—Notice requirements for removal of personal property.

(a) No personal property shall be removed from an encampment prior to the city providing notice.

(b) Notices shall be posted in a manner and quantity reasonably sufficient to notify the owners of personal property within the encampment that personal property that remains during remediation efforts will be subject to removal, stating:

(1) The day the notice was posted;

(2) The date and time range the removal is scheduled;

(3) The location and operating hours where personal property can be retrieved;

(4) That personal property can be claimed without identification, unless controlled, prescription medication; and

(5) Contact information for an outreach provider that can provide shelter alternatives.

(c) If individuals are present at the encampment, oral notice shall also be given if reasonably possible.

(d) The notice shall be posted at least 24 hours before anticipated remediation efforts. If the city fails to commence remediation within the date and time frame provided in the notice, the city shall re-post notice 24 hours before the removal and storage of personal property may occur. The city may diligently pursue to completion remediation that properly commences during the removal date and time range, even if remediation efforts ultimately exceeds the anticipated range.

(e) The notice shall be printed in English, Spanish, and Vietnamese and any other language deemed necessary by the city.

(f) Nothing provided in this section shall prohibit the city from posting notice that the remediation of a large encampment will occur over a period of several days, provided that each day's operation begins during the period identified in the notice. Such notice shall be posted 24 hours in advance of the initial commencement of remediation.

(M.C.S., Ord. No. 28081, § 1, 5-9-19)

Sec. 82-697. Encampment area remediation—Removal of personal property.

(a) After proper notice, the city shall take reasonable steps to segregate personal property from material that is not personal property for storage purposes, providing the segregation does not pose a danger to the employee.

(b) If any unattended personal property must be removed in order to remediate the encampment, the city shall store such property.

(c) The city may immediately remove and dispose of items determined not to be personal property, including abandoned items, garbage, debris, waste, hazardous items, and other similar materials.

(d) Nothing herein shall prohibit the owner of personal property from removing said property from an encampment in advance of a remediation.
(M.C.S., Ord. No. 28081, § 1, 5-9-19; M.C.S., Ord. No. 29584, § 1, 8-10-23)

Sec. 82-698. Encampment area—Post-remediation notice.

(a) Immediately upon completion of an encampment remediation whereby personal property was removed and stored, notice shall be prominently posted and remain for at least three days thereafter.

(b) The notice shall state:

(1) The date the clean-up was performed;

(2) The location of all removed and stored personal property;

(3) That personal property can be claimed without identification, unless controlled, prescription medication; and

(4) Contact information for an outreach provider who can assist individuals with shelter alternatives and other services.

(c) The notice shall be printed in English, Spanish, and Vietnamese and any other language deemed necessary by the city.
(M.C.S., Ord. No. 28081, § 1, 5-9-19)

Sec. 82-699. Routine remediation areas.

(a) At any time after an initial inspection and properly noticed and completed remediation by the department of an encampment area, the city may designate the area a "routine remediation area."

(b) Routine remediation areas shall be affixed with permanent, conspicuous signage that notifies the public that the area is subject to weekly, routine, remediation without the individualized, 24-hour notice required by section 82-696.

(c) The permanent signage shall provide:

a. The date and time range when routine remediation is scheduled to occur;

b. That any personal property that remains in the noticed routine remediation area during remediation efforts may be removed and stored;

c. The location and operating hours where permanent property can be retrieved;

d. That personal property can be claimed without identification, unless controlled prescription medication; and

e. Contact information for an outreach provider who can assist individuals with shelter alternatives and other services.

(d) Any personal property that remains during the designated days and times may be removed and stored in accordance with section 82-701.

(e) The notice shall be printed in English, Spanish, and Vietnamese and any other language deemed necessary by the city.
(M.C.S., Ord. No. 28081, § 1, 5-9-19; M.C.S., Ord. No. 29584, § 1, 8-10-23)

Sec. 82-700. Emergency powers—Obstructions and immediate hazards.

(a) Encampments that are deemed obstructions, pursuant to sections 146-493, 146-494, and as otherwise defined, may be removed immediately pursuant to the city's emergency police powers. The 24-hour notice requirement in section 82-696 shall not apply to removing obstructions and immediate hazards.

(b) Prior to any removal, the department shall photograph and otherwise properly document encampments that are deemed to be obstructions or immediate hazards. Any personal property removed pursuant to this section shall be stored and may be recovered, as provided in sections 82-701 and 82-702, respectively.

(c) The department shall post notice of such removal near the encampment area. Such notice shall include the date of removal and the operating hours and location to claim any personal property removed.

(d) If the owner of any personal property constituting an obstruction is present, the department shall order such owner to immediately remove the obstruction, if removal is reasonably possible.
(M.C.S., Ord. No. 28081, § 1, 5-9-19; M.C.S., Ord. No. 29584, § 1, 8-10-23)

Sec. 82-701. Storage of personal property.

(a) When remediating an encampment, the department may store all personal property, except when the storage of said property is likely to create a material risk of harm that poses a health threat to the public or a city employee due to its condition. This includes, but is not limited to, items containing needles, excrement, rodents, or insects, and personal property that is reasonably expected to become hazardous during storage.

(b) Personal property shall be stored at a location commonly used by the city for storing property, which shall be reasonably accessible by public transportation and available for access before, during, and after regular business hours. The department shall maintain the personal property in storage for at least 30 days following the post-encampment remediation notice required in section 82-698.

(c) The department shall maintain a descriptive log of personal property removed from each encampment site and the property's ultimate disposition, i.e., if it was reclaimed, destroyed, or donated.
(M.C.S., Ord. No. 28081, § 1, 5-9-19; M.C.S., Ord. No. 29584, § 1, 8-10-23)

Sec. 82-702. Recovering stored personal property.

(a) Persons claiming personal property shall describe the personal property with particularity, but no identification is required for recovery unless it is controlled prescription medication.

(b) The log of personal property shall indicate the name of the individual who received the recovered property.
(M.C.S., Ord. No. 28081, § 1, 5-9-19)

Sec. 82-703. Reporting requirements.

Each inspection of an encampment, any subsequent remediation of encampment areas or routine cleaning areas, and the use of emergency powers, shall be documented on forms created by the department for such a purpose.

(a) For each inspection of an encampment, the department shall document compliance with the 24-hour notice requirements provided herein, and shall include at a minimum the following:
   a. The date and time period the department posted notice(s);
   b. The number of tents/structures that received notice;
   c. The number of individuals that received personal oral notice, if applicable; and
   d. The number of individuals present that received outreach, and the type of outreach received.

(b) Upon remediation of any encampment area or routine cleaning area, the department shall document its efforts as follows:
   a. The date and time of the remediation;

b. The city departments and other organizations and number of employees within those departments that were represented, including but not limited NOPD, DPW, health department, DDD, and sanitation;

c. The time spent remediating;

d. The general location and number of post-encampment remediation notices posted, or photographs thereof, if applicable;

e. The number of individuals present at each encampment site;

f. If any arrests occurred and the nature of each arrest;

g. If any domesticated animals were present and if so the outreach provided;

h. The number of pregnant women present;

i. The number of handicapped individuals and wheelchairs present;

j. If any children were present, and if so the outreach provided;

k. If any deceased individuals were present;

l. The results of any outreach including but not limited to: health screenings, medical attention, shelters, and sobering center visits; and

m. A personal property log as provided in section 82-701(c).

(c) Upon use of the emergency powers to immediately remove an obstruction or immediate hazard without prior notice, the department shall report as follows:

a. The date and time the obstruction(s) or immediate hazard(s) were removed; and

b. A photograph and brief description of the obstruction(s) or immediate hazard(s) prior to removal.

All documentation mandated herein shall be formally provided to the clerk of council on the first Friday of every month for the previous month for inclusion on the council's regular council meeting agenda.
(M.C.S., Ord. No. 28081, § 1, 5-9-19)

ARTICLE XIII. HEALTHY KID'S MENUS*

Sec. 82-704. Purpose.

The purpose of this article is to support children's health by establishing a default beverage listed for children's meals.
(M.C.S., Ord. No. 28913, § 1, 1-6-22)

Sec. 82-705. Definitions.

For the purposes of this article, the following terms shall have the following meanings:

(1) *Restaurant* shall include all restaurant types defined in Article 26 of the New Orleans Comprehensive Zoning Ordinance.

(2) *City* shall mean the City of New Orleans.

(3) *Children's meal* shall mean a combination of food items, or food item(s) and a beverage, sold together at a single price, primarily intended for consumption by children.

(4) *Default beverage* shall mean the beverage automatically included as part of a children's meal, absent a specific request by the purchaser of the children's meal for an alternative beverage.
(M.C.S., Ord. No. 28913, § 1, 1-6-22)

Sec. 82-706. Beverage standards for children's meals.

A restaurant that sells a children's meal shall make the default beverage with the children's

*__Editor's note—__M.C.S., Ord. No. 28913, § 2, adopted Jan. 6, 2022, states: That the provisions of this ordinance shall become effective on the later to occur of (a) January 1, 2023 or (b) the date on which the council approves the regulations mandated by section 82-707.

meal, and which shall be displayed on printed menus, digital menus, and menu boards, one or more of the following:

(1) Water (unflavored, unsweetened, uncarbonated);

(2) Milk (plain, pasteurized cow's milk with no added caloric sweeteners, low-calorie sweeteners, or flavorings), Nonfat or one percent milk, or non-dairy milk alternatives containing no more than 130 calories per container and/or serving; or

(3) One hundred percent juice or fruit juice combined with water or carbonated water with no added sweeteners, and no more than 6-6.75 ounces.

(M.C.S., Ord. No. 28913, § 1, 1-6-22)

Sec. 82-707. Regulations.

Pursuant to section 2-1000 of the City Code, the department of health may promulgate rules and regulations in accordance with the provisions contained in this article and such other rules and regulations as may be necessary for the purpose of implementing and carrying out the provisions of this article.
(M.C.S., Ord. No. 28913, § 1, 1-6-22)

Sec. 82-708. Enforcement.

(1) The department of health shall have the power to enforce the provisions of this article. In addition, designated enforcement employees of the department of safety and permits shall have the power to enforce the provisions of this article.

(2) All restaurants applying for a certificate of occupancy from the New Orleans Department of Safety and Permits that will sell a children's meal shall submit their children's meal menus for review by the New Orleans Health Department. A restaurant shall not be required to offer a children's meal. However, if a children's meal is offered a beverage shall not be required.

(3) Any person who desires to register a complaint regarding compliance with this article may do so by contacting the City's 311 Service Center. The New Orleans Health Department will perform a compliance check after receiving the complaint to determine if children's meal menus are in compliance with this article.
(M.C.S., Ord. No. 28913, § 1, 1-6-22)

Sec. 82-709. Violations and penalties.

(1) Nothing in this article prohibits any restaurant's ability to sell or substitute, or a customer's ability to purchase, an alternative beverage instead of the default beverage offered with a children's meal, if requested by the purchaser of the children's meal.

(2) It shall be unlawful for a person or entity to own, operate, or otherwise control a restaurant where children's meal menus fail to comply with the requirements of section 82-706.

(3) Every person or entity who violates subsection (2) of this section shall, for a first violation thereof, be provided additional education, and for a second violation, both of which were committed within a period of 12 months, be issued a warning of violation. For a third or subsequent violation, all of which were committed within a period of 12 months, the owner and/or operator shall be subject to fines or penalties up to $200.00. Notice and hearing requirements for determining violation(s), fines, and penalties shall be in accordance with the administrative procedures provided in Chapter 6, Article II of the Code of the City of New Orleans.
(M.C.S., Ord. No. 28913, § 1, 1-6-22)

ARTICLE XIV. COMPREHENSIVE REVIEW OF FATALITIES CAUSED BY DOMESTIC ABUSE

Sec. 82-710. Purpose.

The purpose of this article is to increase the city's capacity to comprehensively review and understand the causes of domestic abuse fatalities, in an effort to better protect public health and safety.
(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-711. Definitions

For the purposes of this article, the following terms shall have the following meanings:

Domestic abuse means physical or sexual abuse and any offense against the person, physical or

non-physical, as defined in the Louisiana Criminal Code, except negligent injury and defamation, committed by one family member, household member, or dating partner against another.

Domestic abuse fatality means any of the following:

(1) All homicides in which the victim was a current or former intimate partner of the perpetrator.

(2) Homicides in which the victim was a family member of the perpetrator, which occur in the context of family violence.

(3) Homicides in which the victim was someone other than the perpetrator's intimate partner, but which occur in the context of domestic abuse or in the context of a perpetrator attempting to kill an intimate partner (i.e., friend, family member, new intimate partner, law enforcement).

(4) Homicides occurring as an extension of or in response to ongoing intimate partner abuse (i.e., revenge killing of children).

(5) Suicides which may be a response to domestic abuse.

Review means an examination or re-examination of information regarding a deceased person from relevant agencies, professionals, healthcare providers, or other sources.
(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-712. New Orleans Domestic Abuse Fatality Review Team.

Under the direction of the department of health, the New Orleans Domestic Abuse Fatality Review Team is hereby established. The review team shall be composed of a representative from each the following entities:

(1) New Orleans Police Department,

(2) New Orleans Emergency Medical Services,

(3) Orleans Parish Communications District,

(4) Orleans Parish District Attorney's Office,

(5) Orleans Parish Criminal District Court,

(6) Orleans Parish Sheriff's Office,

(7) Orleans Parish Public Defender's Office, and

(8) New Orleans Family Justice Center.

On an as needed basis, the health department may also invite other community-based domestic abuse service organizations, state agencies, local universities or colleges, batterer intervention programs, local hospital and medical organizations, community-based civil legal service agencies, and experts with relevant knowledge regarding domestic abuse to participate in the review team.
(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-713. Meetings of the review team.

The department will convene the review team at least four times per year on a quarterly basis.
(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-714. Domestic abuse fatality review.

Under the supervision of the director of the department of health, department of health shall:

(1) Establish policies and procedures for identifying and examining domestic abuse fatalities; and

(2) Develop and maintain a de-identified parish-specific database of domestic abuse fatalities; and

(3) Review all domestic abuse fatalities that have occurred in New Orleans on an annual basis; and

(4) Characterize the scope and nature of domestic abuse fatalities in New Orleans; and

(5) Initiate strategies for intervention and prevention of domestic abuse based on the findings of domestic abuse fatality reviews; and

(6) Publish and disseminate findings and recommendations in an annual report.
(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-715. Access to information and requests for same.

In fulfilling the duties in the prior section, the Department of Health, notwithstanding any other provision of the law to the contrary, shall:

1. Be authorized to access available information, records, and documents pertaining to a domestic abuse fatality which would aid the review in fulfilling its duties, including but not limited to:

    a. Case facts including but not limited to: demographic information about the victim and perpetrator (gender, age, race, employment status, education, income level, parish of residence), location of the event, relationship of the parties involved in the fatal event, cause of death, lethality indicators, and community services requested, received, or refused by the victim and perpetrator;

    b. Case documents, including but not limited to: adoption records, animal control reports, autopsy/medical examiner reports, Batterer Intervention Program reports, child protection service records, child support records, court files (criminal, civil, family, juvenile), court advocate records, domestic violence shelter/service records, employment records, faith community interviews, family genograms, former intimate partner interviews, housing/landlord records (maintenance/neighbor complaints), insurance policies, juvenile records, law enforcement reports (all incident reports/911 tapes), marriage counseling records, medical/dental records, medical provider interviews, mental health records, military records, criminal history records, probation and parole records, newspaper articles/media accounts, pretrial service records, prosecution records, school records, security guard interviews, service records from other communities, social services records, suicide intervention reports, victim advocate records, weapons records, witness/neighbor/family interviews.

2. Make requests in writing for the information sought to any person, agency, or entity with information. The person, agency, or entity that has the information may rely on the reason for the request in determining whether information may be disclosed thereto. While the person, agency, or entity that has the information requested shall not be required to disclose information, the intent is to allow the voluntary disclosure of information by the person, agency, or entity that has the information.

(M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-716. Records to be kept confidential.

(a) Information, records, and documents obtained by the department as well as all activities, including any discussions or sharing of documents related to fatality reviews, shall be confidential and shall not be available for subpoena, nor shall information be disclosed, discoverable, or compelled to be produced in any civil, criminal, administrative, or other proceeding, nor shall such records be deemed admissible as evidence in any civil, criminal, administrative, or other tribunal court for any reason.

(b) Information and records presented to the department as part of these responsibilities, shall not be immune from subpoena, discovery, or prohibited from being introduced into evidence solely because they were presented to or reviewed by the department if the information and records have been obtained from other sources. The furnishing of confidential information, documents, and reports by any person, agency, or entity furnishing such information, documents, and reports shall not expose such person, agency, or entity to liability and shall not be considered a violation of any privileged or confidential relationship, provided the person, agency, or entity has acted in good faith in the reporting.

(c) The department shall not disclose the information identifying a victim of domestic abuse whose case is being reviewed, or that person's family members, or an alleged or suspected perpetrator of abuse upon the victim, or regarding the involvement of any agency with the victim or the victim's family members in any report that is available to the public, but nothing shall prohibit the department from publishing statistical compilations related to domestic abuse fatalities that do not identify individual cases or individual practitioners, agencies, or organizations.

(d) The department shall conclude all reviews of domestic abuse-related fatalities by returning all information and records concerning the victim and the victim's family members to the person, agency, or entity that provided the information. (M.C.S., Ord. No. 29059, § 1, 6-9-22)

Sec. 82-717. Regulations.

Pursuant to section 2-1000 of the City Code, the department of health may promulgate rules and regulations in accordance with this article as necessary for the purpose of implementing and carrying out the provisions of this article. (M.C.S., Ord. No. 29059, § 1, 6-9-22)

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Chapter 84

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ARTICLE I. IN GENERAL

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ARTICLE II. HISTORIC DISTRICT AND LANDMARKS

DIVISION 1. GENERALLY

Sec. 84-21. Purpose of article.

The purpose of this article is to promote historic districts and landmarks for the educational, cultural, economic, and general welfare of the public through the preservation, protection, and regulation of buildings, sites, monuments, structures, and areas of historic interest or importance within the city; to safeguard the heritage of the city by preserving and regulating historic landmarks and districts which reflect elements of its cultural, social, economic, political, and architectural history; to preserve and enhance the environmental quality of neighborhoods; to strengthen the city's economic base by the stimulation of the tourist industry; to establish and improve property values; to foster economic development; and to manage growth.

Sec. 84-22. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any change because of construction, repair, maintenance, or otherwise to any building located within an historic district or designated as a landmark.

Applicant means the record owner of the site and/or buildings located thereon, the lessee thereof, a person holding a bona fide contract to purchase the site and/or building, or a processor possessing the site and buildings located thereon, pursuant to R.S. 9:5633.

Building means any structure, place, or any other construction built for the shelter or enclosure of persons, animals, or chattels, or any part of such structure when subdivided by division walks or party walls extending to or above the roof and without openings in such separate walls. The term "building" shall be construed as if followed by the words "or any part thereof."

Certificate of appropriateness means a document evidencing approval of the commission for work proposed by an applicant.

Commission means the historic district/landmark commission.

Construction means the erection of any on-site improvements on any parcel of ground located within an historic district or on a landmark site, whether the site is presently improved, unimproved, or hereafter becomes unimproved by demolition; demolition by neglect, destruction of the improvements located thereon by fire, windstorm, or other casualty; or otherwise, hereafter such a parcel of ground shall be referred to as "site."

Demolition means any of the following actions occurring within a five-year period to a building in a historic district:

(1) The structural removal, obscuration, or increase in height of any exterior wall altering more than 50 percent of the total exterior structure, or the restructuring of more than 50 percent of the structure's exterior wall area;

(2) The removal, alteration, or obscuration of more than 50 percent of the existing roof structure measured in plan view;

(3) The removal, alteration, or obscuration of more than 25 percent of the historic materials, as determined by HDLC staff, on the primary façade; or

(4) The raising of an existing building to create habitable space that complies with the ceiling height requirements set forth in section 26-196.

Exterior means all outside surfaces of any building.

Exterior wall means the structural assembly of any wall dividing the exterior of a building from the interior, including structural members, windows, and doors but excluding weatherboards.

Historic district or *district* means an area designated by the city council as an historic district and declared to be subject to jurisdiction of the commission.

Landmark or *landmark site* means an unimproved parcel of ground (landmark site) or such parcel with improvements or such improvements without grounds (landmark), wheresoever located in the city, subject to the jurisdiction of the historic district landmarks commission, of particular historic, architectural, or cultural significance, which parcel plus its improvements, if any:

(1) Exemplify or reflect the broad cultural, political, economic, or social history of the nation, state, or community;

(2) Are identified with historic personages or with important events in national, state, or local history;

(3) Embody distinguishing characteristics of an architectural type or specimen, inherently valuable for a study of a period, style, method of construction, or of indigenous materials or craftsmanship; or

(4) Are representative of the notable work of a master builder, designer, or architect whose individual ability has been recognized.

Obscuration means concealing, hiding, encapsulating, or covering a building's exterior walls, existing roof structure, or historic materials on the primary façade in whole or in significant part with new or replacement elements.

Ordinary repairs and maintenance means work done on a building in order to correct any deterioration, decay of, or damage to a building or any part thereof in order to restore such building as nearly as practical to its condition prior to such deterioration, decay or damage.

Primary façade means the front or principal face of a building that can be distinguished from the other faces by its elaborate architectural details, including but not limited to, porches, columns, cladding, doors, windows, trim, cornices, soffits, fascia, railings, and shutters.

Restructuring means replacement of structural members with those of a different size or structural capacity.

Violator(s) means any person(s), firm(s), or corporation(s) owning property, including their lessee(s), tenant(s), agent(s), employee(s), or any person(s) acting or claiming to act on their behalf, and/or contractor(s) or any individual(s) retained by any person(s), firm(s), or corporation(s) owning property, including their lessee(s), tenant(s), agent(s), employee(s), or any person(s) acting or claiming to act on their behalf to construct, renovate or modify a structure or perform site improvements that is executed in a manner inconsistent with this chapter, and/or transferor(s) of property responsible for deviations of this chapter at the time of said transfer. (M.C.S., Ord. No. 20626, § 1, 4-4-02; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 27738, § 1, 4-19-18; M.C.S., Ord. No. 28631, § 1, 3-25-21)

Cross reference—Definitions generally, § 1-2.

Sec. 84-23. Enforcement of article (New Orleans Historic and Landmarks Commission).

(a) Upon request, the department of safety and permits may aid the commission in making all necessary inspections in connection with the enforcement of this article, and furnish the commission with copies of the reports of their inspections. Employees of the department of safety and permits shall have the same right to inspect premises in connection with the enforcement of this article as they now have in relation to zoning and other violations under the jurisdiction of such department.

(b) The commission, through its director or other appropriate officer, will send notices by certified mail to all violator(s) who may be in violation of the provisions of this article or the rules and procedures of the commission and inform them of such violations. If such a violation has been noted and the violator(s) informed of the violation, and the violation has not been corrected within 30 days from the mailing of the notice, the commission may, through its director, prosecute or cause to have prosecuted such violations of this article, in accordance with the

procedures for administrative adjudication established in chapter 6 of the Code of the City of New Orleans, or in the municipal court of the city, or in such other court of competent jurisdiction as may be proper, either civil or criminal. If a violator(s), in good faith, has begun the process of correcting noticed violations, but has not completed the correction(s) within said 30 day correction period, adjudication may be stayed pending completion. This determination is at the sole discretion of the Director of the New Orleans Historic District Landmarks Commission.

(c) The first violation of any such provision of this article shall be punishable by a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both. The second or any subsequent offense of any such provision of this article shall be punishable by a fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both. Each day that any violation of this article shall continue shall constitute a separate offense.

(d) The commission, through its director or other appropriate officer, shall have the right to enforce any violation of this article or the rules and procedures of this commission by proceeding in accordance with the procedures for administrative adjudication established in chapter 6 of the Code of the City of New Orleans, or by civil action for injunctive relief, or to implement any other appropriate remedy brought on in the name of the city, including the stoppage of any work attempted without or contrary to a certificate of appropriateness issued under division 3 of this article.
(Ord. No. 19,866, § 1, 10-19-00; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 29866, § 1, 3-21-24)

Sec. 84-24. Appeals.

(a) Any person aggrieved by any decision, act, or proceeding of the commission shall have a right to apply in writing to the city council for reversal or modification thereof. The president of the city council shall have the right to stay all further action until the city council may affirm a decision of the commission by majority vote of all its members. Any such appeal shall be taken within ten days from the date of the decision. The city council has the right to reverse, change, or modify any decision of the commission only by a majority vote of all its members.

(b) Any person aggrieved by any decision of the council affecting the district shall have the right to file a civil suit within 30 days from the date of decision in a court of competent jurisdiction under the usual rules of procedure governing same with the right to stay orders and injunctive relief, provided the situation warrants it.

Secs. 84-25—84-45. Reserved.

DIVISION 2. HISTORIC DISTRICT/LANDMARK COMMISSION

Sec. 84-46. Created.

M.C.S., Ordinance No. 5643 created a commission to be known as the New Orleans Historic District/Landmarks Commission, for the purpose of regulating historic district and historic landmarks designated within the city pursuant to the state Constitution of 1974 and Acts 273 of 1974 and 804 of 1975.

Sec. 84-47. Membership.

(a) *Qualifications.* Members of the commission shall be electors of and domiciled in the city.

(b) *Appointment.* For each historic district created by the city council, not less than one member shall be appointed, whether by appointment or reappointment, who shall be a resident or property owner within the historic district. The total membership of the commission shall not exceed 15.

(c) *Terms of office.* The commission shall consist of 15 members, appointed by the mayor subject to approval of a majority vote of the city council for four-year terms each except that effective June, 30 2018, the terms of members of the commission shall be staggered as follows: (1) Member representing Holy Cross, Faubourg Marigny, Bywater and Uptown Historic Districts shall expire June 30, 2018; (2) Members representing the Esplanade Ridge, Treme, Garden District

and St. Charles Avenue Historic Districts shall expire June 30, 2019; (3) Members representing the Carrollton, Parkview, and Lower Garden Historic Districts and the At Large member shall expire June 30, 2020; and (4) Members representing the Algiers Point, Irish Channel, and Mid City Historic Districts shall expire June 30, 2021. Successors shall serve four-year terms thereafter. A chairman and vice-chairman shall be elected annually from the members of the commission. Any member may be appointed to another term.

(d) *Vacancies.* Vacancies on the commission shall be filled for the remainder of the unexpired terms. Vacancies shall be filled by appointment in the same manner as the original appointments.

(e) *Compensation.* All members shall serve without compensation.
(M.C.S., Ord. No. 27923, § 1, 11-1-18)

Sec. 84-48. Powers and duties granted.

The commission shall exercise only those powers and duties granted by this division or those powers and duties which may be assigned to it at a later time by the city council.

Sec. 84-49. Applicability of powers.

The regulatory powers conferred upon the commission shall apply to all private property in the area controlled by the commission, including all buildings, structures, areas, sites, and their adjuncts and appurtenances, insofar as they constitute part of the entirety or toute ensemble of a district or landmark site, and public and private utility facilities of South Central Bell Telephone Company or any other utility providing telecommunications services and New Orleans Public Service Inc., or any other utility providing electric or gas service, located on public or private property, including, but not limited to electric substations and telephone exchanges. Any governmental agency, other than the city council, having a responsibility for any building, structure, area, site, public way and their adjuncts and appurtenances within a district or landmark site shall seek the advice of the commission prior to the initiation of any substantive change, modification, renovation, restoration, alteration, construction, or demolition.
(M.C.S., Ord. No. 17,518, § 1, 5-2-96)

Sec. 84-50. Landmark powers.

The commission shall exercise the following landmark powers:

(1) Name or designate a building together with its accessory buildings and its lot of record or any part thereof, or to name or designate vacant sites not in excess of five acres as historic and worthy of preservation as a landmark within the jurisdiction of the commission. Buildings and sites not encompassed by this subsection may be designated as a landmark by the commission, but such determination shall be ratified by a majority vote of the city council.

(2) Recommend appropriate legislation for the preservation of any building, structure, site, monument, area, or other landmark which it has so named or designated.

(3) Make application for public and private funds when appropriate and available.

(4) Review applications proposing the erection, alteration, restoration or moving of any building, structure, site, monument, area or other landmark which it has so named or designated, and to issue or deny certificates of appropriateness accordingly.

(5) Review all applications for demolition permits proposing demolition of all or part of any building, structure, monument or other landmark which it has so named and designated, and to issue certificates of appropriateness or to deny them for one year.

(6) Work with the owner of landmark property throughout the year following a refusal to issue a certificate of appropriateness pursuant to an application for a demolition permit, and to seek alternative economic uses for the landmark property.

(7) Renew its denial of a certificate of appropriateness for demolition of landmark property for additional one-year periods indefinitely thereafter, following a public hearing each time at which the owner of the affected property shall be afforded an opportunity to appear with counsel and to present testimony.

(8) Prohibit the issuance of demolition permits affecting any property under consideration for landmark designation, such prohibition to remain in effect for the length of time required by the commission for final action on the proposed landmark.

(9) Prohibit the issuance of building and exterior remodeling permits affecting any property under consideration for landmark designation unless the commissions' staff has determined that the application is for ordinary maintenance and the remodeling is determined to be more appropriate to the style and period of the building by means of documenting the original appearance of parallel structures or the commission has determined that the application conforms with the criteria set forth in division 3 of this article, such

prohibition to remain in effect for the length of time required by the commission for final action on the proposed designation. In all instances the commission shall regulate the exterior of a landmark.

Sec. 84-51. Additional powers.

The commission shall have the following additional powers:

(1) Make periodic reports to the city council;

(2) Provide information to property owners and others involving the preservation of the district;

(3) Suggest pertinent legislation;

(4) Recommend planning and zoning proposals;

(5) Cooperate with other regulatory agencies and civic organizations and groups interested in historic preservation;

(6) Review all applications for zoning variances, changes and conditional uses where they affect the district;

(7) Render advice with reference to sidewalk construction and repair, tree planting, street improvements, and also the renovation, restoration, or construction of public buildings;

(8) Furnish information and assistance in connection with public buildings and any capital improvements program involving the historic area;

(9) Consult with the National Trust for Historic Preservation and other expert groups;

(10) Administer such financial mechanisms as the city council may establish for the welfare of the city within a district and collect fees, subject to city council approval;

(11) Appoint advisory boards from time to time; and

(12) Promulgate operational rules and procedures which rules and procedures shall be submitted to the city council for ratification in order for the commission to implement the powers and authority granted to the commission by this article.

Sec. 84-52. Fees.

(a) *Required application:* Any person that causes the construction, alteration, or demolition of a structure within a historic district without a certificate of appropriateness or permit, performs any work in deviation of an approved certificate of appropriateness or permit that is not approvable at the staff level according to the HDLC guidelines, shall submit an application for retention to the historic district landmarks commission (HDLC) or the central business district historic district landmarks commission (CBDHDLC).

(b) *Schedule of permit fees:* The following fees shall be submitted along with an application for retention:

i. An application to retain the construction, alteration, or demolition of a structure within a historic district performed without a certificate of appropriateness: $500.00.

ii. An application to retain any work on a structure in deviation of plans approved in connection with a certificate of appropriateness that is not approvable at the staff level according to the HDLC guidelines: $250.00.

These fees shall be provided at the time of application submittal. Under no condition shall a fee or any part thereof be refunded after advertising commences, regardless of the final disposition of the proposed retention.

(c) *Fees not exclusive:* Fees established by this section shall not be deemed exclusive and be in addition to any other fee required by law.
(M.C.S., Ord. No. 27368, § 1, 4-20-17)

Secs. 84-53—84-75. Reserved.

DIVISION 3. CERTIFICATES OF APPROPRIATENESS

Sec. 84-76. Required; exception.

(a) No permit shall be issued by the department of safety and permits which affects a site or structure in any district or a landmark or landmark site without a certificate of appropriateness.

(b) Nothing contained in this division shall prevent the making of any temporary construction, reconstruction, demolition or other repairs on a landmark, landmark site, or building in a district pursuant to the order of any governmental agency or court for the purpose of remedying emergency conditions determined to be dangerous to life, health, or property.

Sec. 84-77. Criteria for issuance.

The commission shall adhere to and seek compatibility of structures in the district in terms of size, texture, scale, and site plan and in so doing, the following guidelines shall be considered by the commission in passing upon applications for certificates of appropriateness:

(1) *New construction.*

a. All new construction shall be visually compatible with the buildings and environment with which they are related.

b. The general design, scale, gross volume, arrangement of site plan, texture, material and exterior architectural features of new construction shall be in harmony with its surroundings and shall not impair the toute ensemble of the neighborhood.

c. No one architectural style shall be imposed.

d. Quality and excellence in design should be major determinants.

(2) *Exterior alterations.*

a. All exterior alterations to a building shall be compatible with the building itself and other buildings with which it is related, as provided in subsection (1)b of this section and in applying these standards, the original design of the buildings may be considered.

b. Exterior alterations shall not affect the architectural character or historical quality of the building.

(3) *Signs.*

a. The scale, and design of any sign should be compatible with the building and environment with which it is related.

b. The materials, style, and patterns used in any sign should be compatible with the building and environment with which it is related.

(4) *Demolition.* In considering an application for the demolition of a landmark or a building in an historic district, the following shall be considered:

a. The historic or architectural significance of the building.

b. The importance of the building to the toute ensemble of the district.

c. The special character and aesthetic interest that the building adds to the district.

d. The difficulty or impossibility of reproducing such a building because of its design, texture, material, or detail.

e. The future utilization of the site.

(5) *Destruction of nonconforming use.* The reconstruction of buildings legally nonconforming as to use and destroyed by fire, storms, or other acts of God shall be governed by the provisions of the zoning ordinance except that the commission shall regulate the exterior design of such buildings.

Sec. 84-78. Application.

(a) *Commission to prescribe application procedure.* The commission shall prescribe the procedure for making application for a certificate of appropriateness.

(b) *Preliminary conference.* The applicant shall have the right to a preliminary conference, upon applicant's request, with the commission staff and any member of the commission who chooses to attend after receiving a notice thereof, for the purpose of making any changes or adjustments to the application which might be more consistent with the commission's standards.

(c) *Public hearing; notice.*

(1) The commission shall hold a public hearing upon each application for a certificate of appropriateness affecting property under its control except in those instances where the commission has determined the application for a certificate of appropriateness does not involve a material change or that the commission has determined that the application complies with the standards adopted by the commission in which case the commission shall by appropriate means designate its approval.

(2) Notice of the time and place of the hearing shall be given by publication in the form of a legal advertisement appearing in the official journal of the city or in a newspaper having general circulation in the parish, at least seven days before such hearing, and by posting such notice on or near the main entrance of any hall or room where the commission usually meets. In addition, notices shall be mailed at least seven days prior to the date of such public hearing to the following:

a. All adjacent property owners and such other persons and/or organizations as the commission may from time to time determine by policy;

b. The applicant;

c. The director, city planning commission; and

d. The director, department of safety and permits.

(d) *Approval or denial; time limit; written notice.* Within not more than 45 days after the filing of an application, the commission shall act upon it, either approving, denying or deferring action, giving consideration to the factors set forth in this division. Evidence of approval of the application shall be by certificate of appropriateness issued by the commission; and whatever its final decision, notice in writing shall be given to the applicant, the city planning commission, and the department of safety and permits.

(e) *Records to be kept.* The commission shall keep a record of all applications for certificates of appropriateness and of all its actions under this article or its rules and procedures.

(f) *Changes and modifications.* The commission shall have the right to make such recommendations for changes and modifications as it may deem to be necessary in order to enable the applicant to meet its requirements.

Sec. 84-79. Variances.

Where, by reason of topographical conditions, irregularly shaped lots, or because of unusual circumstances applicable solely to the particular applicant, strict enforcement of the provisions of this article would result in serious undue hardship particularly affecting the applicant, then the commission, in passing upon the application shall have the power to vary or modify adherence to this article provided always that its requirements ensure harmony with the general purposes hereof, and will not adversely affect an historic preservation district as a whole or any designated landmark. Guidelines for the application of this subsection shall be developed by the commission as a part of its operational rules and procedures.

Sec. 84-80. Expiration.

All certificates of appropriateness expire not later than six months or such lesser period as designated by the staff of the commission after date of issuance if work as specified is not begun or after a period of six months or such designated lesser period of insubstantial activity. Substantial

work shall, to protect the continued validity of such certificate of appropriateness, proceed expeditiously to completion.

Sec. 84-81. Posting.

It shall be required that certificates of appropriateness be posted on buildings like building permits during the period of construction and the posting will be enforced.

Sec. 84-82. Division not to affect comprehensive zoning ordinance.

Nothing contained in this division shall be construed as amending or revoking the provisions of the comprehensive zoning ordinance of the city, M.C.S., Ordinance No. 4264, as amended.

Sec. 84-83. Commission enforcement powers.

Notwithstanding any other provision of law to the contrary, any owner, agent, lessee, or other person acting for or in conjunction with who demolishes a structure or edifice located in an HDLC district without having received an appropriate certificate of appropriateness may be fined a single fine of not more than the greater of $25,000.00 or 15 percent of the assessed value of the structure or edifice in accordance with the assessed value immediately preceding the demolition as provided for in the tax rolls of the city.
(M.C.S., Ord. No. 29089, § 1, 7-7-22)

Secs. 84-84—84-105. Reserved.

DIVISION 4. REGULATIONS

Sec. 84-106. Historic district.

(a) No private building, structure, or edifice, including fences, boundary walls, signs, steps or seven rises, and paving shall be erected, altered, restored, moved, or demolished within any district until after an application for a certificate of appropriateness as to exterior architectural features has been submitted to and approved by the commission. Similarly, if earthworks of historical or archaeological importance exist in a district, there shall be no excavating or moving of earth, rock, or subsoil without a certificate of appropriateness. For the purpose of this article exterior architectural features shall include but not be limited to the architectural style, general design and general arrangement of a structure, including the kind and texture of the building material and the type and style of all roofs, windows, doors, and signs. The style, scale, materials, and location of outdoor advertising signs and bill posters within a district shall also be under the control of the commission.

(b) The commission shall not consider interior arrangement or use, but shall consider the relationship of the exterior of the building concerned with all others in the district so as to avoid incongruity and promote harmony therewith. In all instances the commission shall regulate those outside surfaces of a building that can be viewed from a public right-of-way or street.

(c) Nothing in this section shall be construed to prevent ordinary maintenance or repairs which do not involve a change of design, material, or of the outward appearance of a building.

Sec. 84-107. Landmarks designation.

(a) *Procedure.* The following procedure shall be adhered to in designating any building, structure, site, monument, or other landmark that is worthy of preservation:

(1) The commission shall consider for landmark designation any property proposed by motion of any commission member and seconded by two additional commission members, or by the owner of the proposed property.

(2) Notice of a proposed designation shall be sent by registered mail to the owner of property proposed for landmark designation, describing the property proposed and announcing a public hearing by the commission to consider the designation.

(3) The commission shall also send notice of a proposed designation to all city agencies that have previously requested such

notification, in whose area the proposed landmark is located, if any exists, and to other parties customarily informed by the commission of such proceedings.

(4) The commission shall also cause notice of the proposed designation to be published at least once at least 30 days prior to the public hearing in the official journal of the parish and shall post notice of the hearing in the place where the commission meets, and in addition, such notice may be also published in a newspaper having general circulation in the parish.

(5) The commission may solicit expert testimony regarding the historic and architectural importance of the building, structure, site, monument, area, or other landmark under consideration for designation.

(6) The commission may present testimony or documentary evidence of its own to establish the importance of the proposed landmark property.

(7) The commission shall afford to the owner of the property reasonable opportunity to present testimony or documentary evidence regarding the historic and architectural importance of the proposed landmark property.

(8) The owner of property proposed for landmark designation shall be afforded the right of presentation by counsel and reasonable opportunity to cross-examine witnesses presented by the commission.

(9) Any interested party may present testimony or documentary evidence regarding the proposed landmark designation at the public hearing and may submit to the commission documentary evidence within three days after the hearing.

(10) Within not more than 45 days after a public hearing, the commission shall render a final decision regarding the proposed designation and shall give written notice of its decision to the owner of the property proposed for designation setting forth the reasons therefor.

(11) The commission shall maintain a record of all testimony and documentary evidence submitted to the commission for consideration of a proposed landmark designation.

(12) In accord with subsection(a)(2) of this section, the city council may ratify the determination of the commission prior to the classification of a property as a landmark at a regular or special meeting of the city council.

(13) Within 30 days of the date on which the commission designates or the city council ratifies, as the case may be, any building, structure, site or monument as a landmark worthy of preservation, the commission shall cause to be filed in the conveyance office of the parish a certificate of notification that such property is designated a landmark, and the certificate of notification shall be maintained on the public record until such time as the landmark designation may be withdrawn by the commission or the city council.

(b) *Plaque.* At such time as a landmark or landmark site has been finally established in accordance herewith, the commission may cause to be prepared and erected on the landmark or landmark site a suitable plaque declaring that such is a landmark or landmark site.

Sec. 84-108. Demolition by neglect (HDLC).

(a) Demolition by neglect is neglect in the maintenance of any building resulting in any one or more of the following:

(1) The deterioration of a building to the extent that it creates or permits a hazardous or unsafe condition as determined by the department of safety and permits.

(2) The deterioration of a building characterized by one or more of the following:

a. Those buildings which have parts thereof which are so attached that they may fall and injure members of the public or property.

b. Deteriorated or inadequate foundation.

c. Defective or deteriorated floor supports or floor supports insufficient to carry imposed loads with safety.

d. Members of walls, or other vertical supports that split, lean, list, or buckle due to defective material or deterioration.

e. Members of walls or other vertical supports that are insufficient to carry imposed loads with safety.

f. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members which sag, split, or buckle due to defective material or deterioration.

g. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are insufficient to carry imposed loads with safety.

h. Fireplaces or chimneys which list, bulge, or settle due to defective material or deterioration.

i. Any fault, defect, or condition in the building which renders the building structurally unsafe or not properly watertight.

(3) Action by the city, the state fire marshal, or the department of safety and permits relative to the safety or physical condition of any building.

(b) If the commission determines that a building or landmark is being demolished by neglect, pursuant to the standards of this section, the applicant shall be notified of this preliminary finding, stating the reasons therefor, and the applicant shall be given 30 days from the date of notice in which to commence work rectifying the specifics provided by the commission. Such notice shall be accomplished in the following manner:

(1) By certified mailing to the last known address of applicant; or

(2) Notice shall be attached to the building or landmark.

(c) Upon the applicant's failure to commence work, the commission shall notify the applicant in the manner provided above to appear at an administrative enforcement hearing, pursuant to the procedures set forth in chapters 6, 26, or 28 of the Code. In addition, the city may cause such property to be repaired at its expense at such time as funds are appropriated; in which event the city may file an affidavit executed by the director of the historic district landmarks commission to this effect in the office of the recorder of mortgages for the parish, which notice shall constitute a lien and privilege against the property.

(d) Failure to comply with the provisions of this article or the rules and procedures of the commission shall constitute a violation hereof and may be punishable by a fine not to exceed $1,000.00. The second or any subsequent offense of any such provision of this article shall be punishable by a fine not to exceed $2,000.00. Each day that any violation of this article shall continue shall constitute a separate offense.
(Ord. No. 19,866, § 1, 10-19-00; M.C.S., Ord. No. 23046, § 4, 3-20-08; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 30068, § 1, 9-19-24)

Secs. 84-109—84-130. Reserved.

ARTICLE III. CENTRAL BUSINESS DISTRICT HISTORIC DISTRICT AND LANDMARKS

DIVISION 1. GENERALLY

Sec. 84-131. Purpose of article.

The purpose of this article is to promote central business district historic districts and landmarks for the educational, cultural, economic, and general welfare of the public through the preservation, protection, and regulation of buildings, sites, monuments, structures, and areas of historic interest or importance within the central business district; to safeguard the heritage of the central business district and the city by preserving and regulating historic landmarks and districts which reflect elements of its cultural, social, economic, political, and architectural his-

tory; to preserve and enhance the environmental quality of the central business district; to strengthen the city's economic base by stimulat-

ing of the tourist industry; to establish and improve property values; to foster economic development; and to encourage growth.
(M.C.S., Ord. No. 27924, § 1, 11-1-18)

Sec. 84-132. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any change because of construction, repair, maintenance, or otherwise to a building located within an historic district or designated as a landmark.

Applicant means the record owner of the site and/or buildings located thereon, the lessee thereof, a person holding a bona fide contract to purchase the site and/or building, or a processor possessing the site and buildings located thereon, pursuant to R.S. 9:5633.

Building means any structure, place, or any other construction built for the shelter or enclosure of persons, animals, or chattels, or any part of such structure when subdivided by division, walls or party walls extending to or above the roof and without openings in such separate walls. The term "building" shall be construed as if followed by the words "or any part thereof."

Central business district means the area of the city which falls under the jurisdiction of the central business district historic district landmarks commission bounded by the Mississippi River, the downriver right-of-way of the Pontchartrain Expressway, the centerline of Claiborne Avenue and the centerline of Iberville Street.

Certificate of appropriateness means a document evidencing approval of the commission for work proposed by an applicant.

Commission means the central business district historic district landmarks commission.

Construction means the erection of any on-site improvement on any parcel of ground located within a historic district or on a landmark site, whether the site is presently improved, unimproved, or hereafter becomes unimproved by demolition, demolition by neglect, destruction of the improvement located thereon by fire, windstorm, or other casualty, or otherwise, hereinafter such a parcel of ground shall be referred to as "site."

Demolition means any of the following actions occurring within a five-year period to a building in a historic district:

(1) The structural removal, obscuration, or increase in height of any exterior wall altering more than 50 percent of the total exterior structure, or the restructuring of more than 50 percent of the structure's exterior wall area;

(2) The removal, alteration, or obscuration of more than 50 percent of the existing roof structure measured in plan view;

(3) The removal, alteration, or obscuration of more than 25 percent of the historic materials, as determined by HDLC staff, on the primary façade; or

(4) The raising of an existing building to create habitable space that complies with the ceiling height requirements set forth in section 26-196.

Earthworks means any subsurface remains of historical, archaeological, or architectural importance or any unusual ground formation of archaeological significance.

Exterior means all outside surfaces of any building.

Exterior wall means the structural assembly of any wall dividing the exterior of a building from the interior, including structural members, windows, and doors but excluding weatherboards.

Landmark or *landmark site* means a building (landmark) and/or its lot of record or any part thereof or vacant site (landmark site), wheresoever located in the central business district of the city subject to the jurisdiction of the central business district historic district landmarks commission,

of particular historic, architectural, or cultural significance, which landmark and/or landmark site meets at least one of the following criteria:

(1) Exemplifies or reflects the broad cultural, political, economic, or social history of the nation, state, or community;

(2) Is identified with historic personages or with important events in national, state, or local history;

(3) Embodies distinguishing characteristics of an architectural type specimen, inherently valuable for a study of a period, style, method of construction, or indigenous materials or craftsmanship;

(4) Is representative of the notable work of a master builder, designer, or architect whose individual ability has been recognized.

Obscuration means concealing, hiding, encapsulating, or covering a building's exterior walls, existing roof structure, or historic materials on the primary façade in whole or in significant part with new or replacement elements.

Ordinary repairs and maintenance means work done on a building in order to correct any deterioration, decay, or damage to a building or any part thereof in order to restore the building as nearly as practical to its condition prior to such deterioration, decay or damage.

Primary façade means the front or principal face of a building that can be distinguished from the other faces by its elaborate architectural details, including but not limited to, porches, columns, cladding, doors, windows, trim, cornices, soffits, fascia, railings, and shutters.

Ratings of significance means the value placed on a building as to its architectural or historical importance, falling into one of the following categories:

(1) *Category A, buildings of national importance.* These nationally important buildings include important works by architects having a national reputation, buildings or groups of buildings selected for inclusion in the National Park Service's Register of National Historic Landmarks, or unique examples illustrating American architectural development. In addition to the architectural significance of the buildings in this classification, they may be associated with historical events or persons that have national importance.

(2) *Category B, buildings of major architectural importance.* Buildings in this classification include outstanding examples of works by notable architects or builders; unique or exceptionally fine examples of a particular style or period when original details remain; buildings which make up an important, intact grouping or row, even when some of the buildings within the group have been defaced; and noteworthy examples of construction techniques when the original fabric of the building is basically intact.

(3) *Category C, buildings of architectural or historical importance.* This category includes buildings that are typical examples of architectural styles or types found in the city, when the building retains its original architectural details and makes a notable contribution to the overall character of a particular area of the central business district. In some cases, buildings of lesser architectural importance will be included in this category if they introduce an important keynote to an area or have specific historical significance related to either an historical event or person.

(4) *Category D, important buildings that have been altered.* This category generally includes important buildings dating from the 19th century that have had much of their exterior architectural details removed or covered. Due to their scale and basic construction, however, these buildings still make a notable contribution to the overall character of a particular area. If a building in this classification were to be properly restored or renovated, the rating would automatically be raised.

(5) *Category E, buildings that contribute to the scene.* These buildings generally date

from the late 19th century or early 20th century and are typical examples of an architectural period or style. Though these buildings are of lesser stylistic importance, and are frequently quite modest in appearance, they are important to the character of the area due to scale, materials, and/or age.

(6) *Category F, unrated buildings.* These are buildings which have not been given a specific architectural rating. These buildings are generally 20th century structures that have no real architectural value.

Violator(s) means any person(s), firm(s), or corporation(s) owning property, including their lessee(s), tenant(s), agent(s), employee(s), or any person(s) acting or claiming to act on their behalf, and/or contractor(s) or any individual(s) retained by any person(s), firm(s), or corporation(s) owning property, including their lessee(s), tenant(s), agent(s), employee(s), or any person(s) acting or claiming to act on their behalf to construct, renovate or modify a structure or perform site improvements that is executed in a manner inconsistent with this chapter, and/or transferor(s) of property responsible for deviations of this chapter at the time of said transfer. (M.C.S., Ord. No. 20626, § 1, 4-4-02; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 27924, § 1, 11-1-18; M.C.S., Ord. No. 28631, § 2, 3-25-21)

Cross reference—Definitions generally, § 1-2.

Sec. 84-133. Enforcement.

(a) Upon request, the department of safety and permits may aid the commission in making all necessary inspections in connection with the enforcement of this article, and furnish the commission with copies of the reports of their inspections. Employees of the department of safety and permits shall have the same right to inspect premises in connection with the enforcement of this article as they now have in relation to zoning and other violations under the jurisdiction of such department.

(b) The commission, through its director or other appropriate officer, shall send notices by certified mail to all violator(s) who may be in violation of the provisions of this article or the rules and procedures of the commission and inform them of such violations. If such a violation has been noted and the violator(s) informed of the violation, and the violation has not been corrected within 30 days from the mailing of the notice, then the commission, through its director, shall prosecute or cause to have prosecuted such violations of this article in accordance with the procedures for administrative adjudication established in chapter 6 of the Code of the City of New Orleans, or in the municipal court of the city, or in such other court of competent jurisdiction as may be proper, either civil or criminal. If a violator(s), in good faith, has begun the process of correcting noticed violations but has not completed the correction(s) within said 30-day correction period, adjudication may be stayed pending completion. This determination is at the sole discretion of the Director of the New Orleans Historic District Landmarks Commission.

(c) The first violation of any such provision of this article shall be punishable by a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both. The second or any subsequent offense of any such provision of this article shall be punishable by a fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both. Each day that any violation of this article shall continue shall constitute a separate offense.

(d) The commission, through its director or other appropriate officer, shall have the right to enforce any violations of this article or the rules and procedures of this commission by proceeding in accordance with the procedures for administrative adjudication established in chapter 6 of the Code of the City of New Orleans, or by civil action for injunctive relief, or by other appropriate remedy brought on in the name of the city, including the stoppage of any work attempted without or contrary to a certificate of appropriateness issued under this article.

(e) Notwithstanding any other provision of law to the contrary, any owner, agent, lessee, or other person acting for or in conjunction with who demolishes a structure or edifice located in an CBDHDLC district without having received

an appropriate certificate of appropriateness may be fined a single fine of not more than the greater of $25,000.00 or 15 percent of the assessed value of the structure or edifice in accordance with the assessed value immediately preceding the demolition as provided for in the tax rolls of the city.
(Ord. No. 19,866, § 2, 10-19-00; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 29090, § 1, 7-7-22; M.C.S., Ord. No. 29867, § 1, 3-21-24)

Sec. 84-134. Appeals.

(a) Any person aggrieved by any decision, act or proceeding of the commission shall have a right to apply in writing to the city council for reversal or modification thereof, and the president of the city council shall have the right to stay all further action until the city council may affirm a decision of the commission by majority vote of all its members. Any such appeal shall be taken within ten days from the date of decision; and the city council may consider the appeal at its next general or special meeting, but in any event not more than 45 days after. The city council has the right to reverse, change, or modify any decision of the commission only by a majority vote of all its members.

(b) Any person aggrieved by any decision of the city council affecting such district shall have the right to file a civil suit within 30 days from the date of decision in a court of competent jurisdiction under the usual rules of procedure governing same with the right to stay orders and injunctive relief provided the situation warrants it.

Secs. 84-135—84-155. Reserved.

DIVISION 2. CENTRAL BUSINESS DISTRICT HISTORIC DISTRICT LANDMARKS COMMISSION

Sec. 84-156. Created.

The city council hereby creates a commission to be known as the central business district historic district landmarks commission, to be commonly known as the CBD historic district landmark commission for the purpose of regulating historic districts and historic landmarks designated with the central business district of the city pursuant to state constitution of 1974 and acts 273 of 1974 and 804 of 1975 and the provisions of this article.

Sec. 84-157. Membership.

(a) *Qualifications.* Members of the commission shall be electors of and domiciled in the city.

(b) *Appointment.* Members of the commission shall be appointed by the mayor as follows:

(1) One from a list of two persons recommended by the Warehouse District Neighborhood Association, who shall be a resident, property owner or have their principal place of business in the Central Business District;

(2) One from a list of two persons recommended by the Downtown Development District;

(3) One from a list of two persons recommended by the New Orleans Chapter of the American Institute of Architects;

(4) One from a list of two persons recommended by the Preservation Resource Center;

(5) One from a list of two persons recommended by the Lafayette Square Association who shall be a resident, property owner or have their principal place of business in the Central Business District;

(6) One from a list of two persons recommended by Greater New Orleans, Inc.;

(7) One from a list of two persons recommended by the Chamber of Commerce;

(8) Two persons appointed at-large by the mayor who shall be residents, property owners or have their principal place of business in the Central Business District;

(9) One person from a list of two persons recommended by the District Councilmember representing the upriver side of Canal Street who shall serve at-large and who

shall be a resident, property owners or have their principal place of business in the Central Business District; and

(10) One person from a list of two persons recommended by the District Councilmember representing the downriver side of Canal Street who shall serve at-large and who shall be a resident, property owners or have their principal place of business in the Central Business District.

(c) *Terms of office.* The commission shall consist of 11 members appointed by the mayor as herein provided subject to approval of a majority vote of the city council for four-year terms each, except that effective June 30, 2025 the terms of members of the commission shall be staggered as follows:

(1) The Downtown Development District and the New Orleans Chapter of the American Institute of Architects memberships shall expire June 30, 2025;

(2) Greater New Orleans, Inc. and the Warehouse District Neighborhood Association memberships shall expire June 30, 2026;

(3) The Preservation Resource Center and the Lafayette Square Association memberships shall expire June 30, 2027;

(4) The Chamber of Commerce membership shall expire July 30, 2028; and

(5) The four at-large memberships shall expire June 30, 2029.

Successors shall serve four-year terms thereafter. A chairman and vice-chairman shall be elected annually from the members of the commission.

(d) *Vacancies.* Vacancies on the commission shall be filled for the remainder of the unexpired terms. Vacancies shall be filled by appointment in the same manner as original appointments.

(e) *Compensation.* All members shall serve without compensation.
(M.C.S., Ord. No. 25699, § 1, 2-20-14; M.C.S., Ord. No. 27924, § 1, 11-1-18; M.C.S., Ord. No. 30304, § 1, 4-10-25)

Sec. 84-158. Powers and duties granted.

The commission shall exercise only those powers and duties granted by this article or those powers and duties which may be assigned to it at a later time by the city council.

Sec. 84-159. Applicability of powers.

The regulatory powers conferred upon the commission shall apply to all private property in the area controlled by the commission, including all buildings, structures, areas, sites, and their adjuncts and appurtenances, insofar as they constitute part of the entirety or toute ensemble of a district or landmark site, and public and private utility facilities of South Central Bell Telephone Company or any other utility providing telecommunications services and New Orleans Public Service Inc., or any other utility providing electric or gas service, located on public or private property, including, but not limited to electric substations and telephone exchanges. Any governmental agency, other than the city council, having a responsibility for any building, structure, area, site, public way and their adjuncts and appurtenances within a district or landmark site shall seek the advice of the commission prior to the initiation of any substantive change, modification, renovation, restoration, alteration, construction, or demolition.
(M.C.S., Ord. No. 17,502, § 1, 4-18-96)

Sec. 84-160. Landmark powers.

The commission shall exercise the following landmark powers:

(a) Name or designate a building together with its accessory buildings and its lot of record or any part thereof, or name or designate vacant sites not in excess of five acres as historic and worthy of preservation as a landmark within the jurisdiction of the commission. Buildings and sites not encompassed by this subsection may be designated as a landmark by the commission, but such determination shall be ratified by a majority vote of the city council.

(b) Recommend appropriate legislation for the preservation of any building, structure, site, monument, area, or other landmark which it has so named or designated.

(c) Make application for public and private funds when appropriate and available.

(d) Review applications proposing the erection, alteration, restoration, or moving of any building, structure, site, monument, area, or other landmark which it has so named or designated, and issue or deny certificates of appropriateness accordingly.

(e) Review all applications for demolition permits proposing demolition of all or part of any building, structure, monument or other landmark which it has so named and designated, and to issue certificates of appropriateness or to deny them for one year.

(f) Work with the owner of landmark property throughout the year following a refusal to issue a certificate of appropriateness pursuant to an application for a demolition permit, and seek alternative economic uses for the landmark property.

(g) Renew its denial of a certificate of appropriateness for demolition of landmark property for additional one-year periods indefinitely thereafter, following a public hearing each time at which the owner of the affected property shall be afforded an opportunity to appear with counsel and present testimony.

(h) Prohibit the issuance of demolition permits affecting any property under consideration for landmark designation, such prohibition to remain in effect for the length of time required by the commission for final action on the proposed landmark.

(i) Prohibit the issuance of building and exterior remodeling permits affecting any property under consideration for landmark designation unless the commission's staff has determined that the application is for ordinary maintenance and the remodeling is determined to be more appropriate to the style and period of the building by means of documenting the original appearance of parallel structures or the commission has determined that the application conforms with the criteria set forth in division 3 of this article, such prohibition to remain in effect for the length of time required by the commission for final action on the proposed designation. In all instances the commission shall regulate the exterior of a landmark.

(M.C.S., Ord. No. 27924, § 1, 11-1-18)

Sec. 84-161. Additional powers.

The commission shall have the following additional powers:

(1) Make periodic reports to the city council;

(2) Provide information to property owners and others, involving the preservation of the district;

(3) Suggest pertinent legislation;

(4) Recommend planning and zoning proposals;

(5) Cooperate with other regulatory agencies and civic organizations and groups interested in historic preservation;

(6) Review all applications for zoning variances, changes and conditional uses where they affect the district;

(7) Render advice with reference to sidewalk construction and repair, tree planting, street improvements, and also the renovation, restoration, or construction of public buildings;

(8) Furnish information and assistance in connection with public buildings;

(9) Furnish information and assistance in connection with any capital improvement program involving the historic area;

(10) Consult with the National Trust for Historic Preservation and other expert groups;

(11) Administer such financial mechanisms as the city council may establish for the welfare of the city within a district and collect fees subject to city council approval; and

(12) Appoint advisory boards from time to time and promulgate operational rules and procedures, which rules and procedures shall be submitted to the city council for ratification in order for the commission to implement the powers and authority granted to the commission by this article.

Secs. 84-162—84-185. Reserved.

DIVISION 3. CERTIFICATES OF APPROPRIATENESS

Sec. 84-186. Required; exception.

(a) No permit shall be issued by the department of safety and permits which affects a site or structure in any district or a landmark or landmark site without a certificate of appropriateness.

(b) Nothing contained in this division shall prevent the making of any temporary construction, reconstruction, demolition or other repairs on a landmark, landmark site, or building in a district pursuant to the order of any governmental agency or court for the purpose of remedying emergency conditions determined to be dangerous to life, health or property provided that in cases of demolition, prior notice of such action shall be given to the commission.

Sec. 84-187. Criteria for issuance.

The commission shall adhere to and seek compatibility of structures in the district and in so doing, the following guidelines shall be considered by the commission in passing upon applications for certificates of appropriateness:

(1) *New construction.*

a. All new construction shall be visually compatible with the buildings and environment with which they are related.

b. The general design, scale, gross volume, arrangement of the site plan, texture, material and exterior architectural features of new construction shall be in harmony with its surroundings and shall not impair the toute ensemble of the neighborhood.

c. No one architectural style shall be imposed.

d. Quality and excellence in design should be major determinants.

(2) *Exterior alterations.*

a. All exterior alterations to a building itself and other buildings with which it is related, as provided in subsection (1)b of this section and in applying these standards, the original design of the buildings may be considered.

b. Exterior alterations shall not affect the architectural character or historical quality of the building.

(3) *Signs.*

a. The scale, and design of any sign should be compatible with the buildings and environment with which it is related.

b. The materials, style, and patterns used in any sign should be compatible with the buildings and environment with which it is related.

(4) *Demolition.* In considering an application for the demolition of a landmark or a building in an historic district, the following shall be considered:

a. The historic or architectural significance of the building.

b. The importance of the building to the toute ensemble of the district.

c. The special character and aesthetic interest that the building adds to the district.

d. The difficulty or impossibility of reproducing such a building because of its design, texture, material, or detail.

e. The future utilization of the site.

(5) *Nonconforming use.* The reconstruction of buildings legally nonconforming as to use and destroyed by fire, storms, or other acts of God shall be governed by the provisions of the zoning ordinance except that the commission shall regulate the exterior design of such buildings in accordance with the criteria set forth in this division.

Sec. 84-188. Application.

(a) *Commission to prescribe application procedure.* The commission shall prescribe the procedure for making application for a certificate of appropriateness.

(b) *Preliminary conference.* The applicant shall, upon request, have the right to a preliminary conference, with the commission staff and any member of the commission who chooses to attend after receiving a notice thereof, for the purpose of making any changes or adjustments to the application which might be more consistent with the commission's standards.

(c) *Public hearing; notice.*

(1) The commission shall hold a public hearing upon each application for a certificate of appropriateness affecting property under its control except in those instances where the commission has determined the application for a certificate of appropriateness does not involve a material change or the commission has determined that the application complies with the standards adopted by the commission, in which case the commission shall by appropriate means designate its approval.

(2) Notice of the time and place of the hearing shall be given by publication in the form of a legal advertisement appearing in the official journal of the city or in a newspaper having general circulation in the parish, at least seven days prior to the date of such hearing, and by posting such notice on or near the main entrance of any hall or room where the commission usually meets. In addition, notices shall be mailed at least seven days prior to the date of such public hearing to the following:

a. All persons owning property on both sides of the property subject to the application;

b. The applicant;

c. The director of the city planning commission; and

d. The director of the department of safety and permits.

(d) *Changes and modifications.* The commission shall have the right to make such recommendations for changes and modifications as it may deem to be necessary in order to enable the applicant to meet with its requirements.

(e) *Approval or denial; time limit; written notice.* Within not more than 45 days after the filing of an application, the commission shall act upon it, either approving, denying or deferring action, giving consideration to the factors set forth in this division. Evidence of approval of the application shall be by certificate of appropriateness issued by the commission and whatever its final decision notice in writing shall be given to the applicant, the city planning commission, and the department of safety and permits. The commission shall keep a record of all its actions under this article or its rules and procedures.

(f) *Changes and modifications.* The commission shall have the right to make such recommendations for changes and modifications as it may deem to be necessary in order to enable the applicant to meet its requirements.
(M.C.S., Ord. No. 27924, § 1, 11-1-18)

Sec. 84-189. Variances.

Where, by reason of topographic conditions, irregularly shaped lots, or because of unusual circumstances applicable solely to the particular applicant, strict enforcement of the provisions of this article would result in serious undue hardship particularly affecting the applicant, then the commission, in passing upon the application shall have the power to vary or modify adherence to this article; provided always that its requirements ensure harmony with the general purposes hereof and will not adversely affect an historic preservation district as a whole or any designated landmark. Guidelines for the application of this subsection shall be developed by the commission as part of its operational rules and procedures.

Sec. 84-190. Expiration.

All certificates of appropriateness shall expire not later than six months, or such lesser period as designated by the staff of the commission, after date of issuance if work as specified is not begun or after a period of six months or such designated lesser period of insubstantial activity. Substantial work shall, to protect the continued validity of such certificate of appropriateness, proceed expeditiously to completion.
(M.C.S., Ord. No. 27924, § 1, 11-1-18)

Sec. 84-191. Posting.

The applicant shall post the certificate of appropriateness on the exterior of the building where plainly visible for public inspection during the period of construction.

Sec. 84-192. Division not to effect comprehensive zoning ordinance.

Nothing contained in this section shall be construed as amending or revoking the provisions of the comprehensive zoning ordinance of the city, M.C.S., Ordinance No. 4,264, as amended.

Secs. 84-193—84-215. Reserved.

DIVISION 4. REGULATIONS

Sec. 84-216. Historic district.

(a) No private building, structure, or edifice, including fences, boundary walls, signs and paving shall be erected, altered, restored, moved, or demolished within any district until after an application for a certificate of appropriateness as to exterior architectural features has been submitted to and approved by the commission. Similarly, if earthworks of historical or archaeological importance exist in a district, there shall be no excavation or moving of earth, rock, or subsoil without a certificate of appropriateness. For the purpose of this article, exterior architectural features shall include but not be limited to the architectural style, scale, general design and general arrangement of the exterior of a structure, including the kind and texture of the building material, the type and style of all roofs, windows, doors, and signs. The style, scale, materials, and location of outdoor advertising signs and bill posters within a district shall also be under the control of the commission.

(b) The commission shall not consider interior arrangement or use, but shall consider the relationship of the exterior of the building concerned with all others in the district so as to avoid incongruity and promote harmony therewith. In all instances, the commission shall regulate those outside surfaces of a building that can be viewed from a public right-of-way or street.

(c) The commission shall review all buildings within the district and shall, after a public hearing, categorize all such buildings as to ratings of significance.

(d) Nothing in this article shall be construed to prevent ordinary maintenance or repairs which do not involve a change of design, material, or of the outward appearance of a building.

Sec. 84-217. Landmarks designation.

(a) *Procedure.* The following procedure shall be followed in designating a landmark any building, structure, site, or monument worthy of preservation:

(1) The commission shall nominate for landmark designation any property on

the motion of any commission member and seconded by two additional commission members. Such motion shall only be made after notification of the proposed nomination is made to the owner of record by certified mail at least 14 days prior to such nomination.

(2) Notice of a proposed designation shall be sent by registered mail to the owner of property nominated for landmark designation, describing the property proposed and announcing a public hearing by the commission to consider the designation. At least ten days prior to the public hearing, as described in subsection (a)(5) of this section, the commission shall provide to the owner of the property copies of any written reports and other documentary evidence which it intends to present at the public hearing regarding the historic and architectural importance of the property under consideration for landmark designation.

(3) The commission shall also send notice of the nomination to all city agencies having previously requested notification of such proceedings and to other parties customarily informed by the commission of such proceedings.

(4) The commission shall also cause notice of the nomination to be published at least 30 days prior to the public hearing in the official journal of the parish and shall post notice of the hearing in the place where the commission meets, and in addition, such notice may be also published in a newspaper having general circulation in the parish.

(5) At the public hearing:

a. The commission may solicit expert testimony regarding the historic and architectural importance of the building, structure, site, monument, area, or other landmark under consideration for landmark designation.

b. The commission may present testimony or documentary evidence of its own to establish a record regarding the historic and architectural importance of the property under consideration for landmark designation.

c. The commission shall afford to the owner of the property reasonable opportunity to present testimony or documentary evidence regarding the historic and architectural importance of the property under consideration for landmark designation.

d. The owner of the property under consideration for landmark designation shall have the right of representation by counsel and reasonable opportunity to cross-examine witnesses presented by the commission.

e. Any interested party may present testimony or documentary evidence regarding the property under consideration for landmark designation at the public hearing and may submit to the commission documentary evidence within three days after the hearing.

(6) Within 45 days after a public hearing, the commission shall render a final decision regarding the landmark designation and shall give written notice of its decision to the owner of the property setting forth the reasons therefor.

(7) The property shall remain under landmark nomination until the commission renders a final decision on the landmark designation.

(8) The commission shall maintain a record of all testimony and documentary evidence submitted to the commission for consideration during the landmark designation procedure.

(9) Within 30 days of the date on which the commission ratifies the designation of any building, structure, site or monument as a landmark worthy of preservation, the commission shall cause to be

filed in the conveyance office of the parish a certificate of notification that such property is designated a landmark, and such certificate of notification shall be maintained on the public record until such time as the landmark designation may be withdrawn by the commission or the city council.

(b) *Plaque.* At such time as a landmark or landmark site has been finally established in accordance with this section, the commission may cause to be prepared and erected on the landmark or landmark site a suitable plaque declaring that such is a landmark or landmark site.
(M.C.S., Ord. No. 27924, § 1, 11-1-18)

Sec. 84-218. Demolition by neglect (Central Business District Historic District Landmark Commission).

(a) Demolition by neglect is neglect in the maintenance of any building resulting in any one or more of the following:

(1) The deterioration of a building to the extent that it creates or permits a hazardous or unsafe condition as determined by the department of safety and permits.

(2) The deterioration of a building characterized by one or more of the following:

a. Those buildings which have parts thereof which are so attached that they may fall and injure members of the public or property.

b. Deteriorated or inadequate foundation.

c. Defective or deteriorated floor supports, or floor supports insufficient to carry imposed loads with safety.

d. Members of walls, or other vertical supports that split, lean, list, or buckle due to defective material or deterioration.

e. Members of walls or other vertical supports that are insufficient to carry imposed loads with safety.

f. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members which sag, split, or buckle due to defective material or deterioration.

g. Members of ceilings, roofs, ceiling and roof supports, or other horizontal members that are insufficient to carry imposed loads with safety.

h. Fireplaces or chimneys which list, bulge, or settle due to defective material or deterioration.

i. Any fault, defect, or condition in the building which renders the building structurally unsafe or not properly watertight.

(3) Action by the city, the state fire marshal, or the department of safety and permits relative to the safety or physical condition of any building.

(b) If the commission determines that a building or landmark is being demolished by neglect, pursuant to the standards of this section, the applicant shall be notified of this preliminary finding, stating the reasons therefor, and the applicant shall be given 30 days from the date of notice in which to commence work rectifying the specifics provided by the commission. Such notice shall be accomplished in the following manner:

(1) By certified mailing to the last known address of applicant; or

(2) Notice shall be attached to the building or landmark.

(c) Upon the applicant's failure to commence work, the commission shall notify the applicant in the manner provided above to appear at an administrative enforcement hearing, pursuant to the procedures set forth in chapters 6, 26, or 28 of the Code. In addition, the city may cause such property to be repaired at its expense at such time as funds are appropriated; in which event the city may file an affidavit executed by the director of the historic district landmarks commission to this effect in the office of the recorder of mortgages for the parish, which notice shall constitute a lien and privilege against the property. Failure to comply with the provi-

sions of this article or the rules and procedures of the commission shall constitute a violation hereof and may be punishable by a fine not to exceed $1,00000. The second or any subsequent offense of any such provision of this article shall be punishable by a fine not to exceed $2,000.00. Each day that any violation of this article shall continue shall constitute a separate offense.
(Ord. No. 19,866, § 2, 10-19-00; M.C.S., Ord. No. 23046, § 4, 3-20-08; M.C.S., Ord. No. 23553, § 1, 5-21-09; M.C.S., Ord. No. 30067, § 1, 9-19-24)

Chapter 85

RESERVED

Chapter 86

HUMAN RELATIONS*

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***Editor's note—**M.C.S., Ord. No. 19,278, § 1, adopted June 17, 1999, amended this chapter in its entirety, in effect repealing former substantive §§ 86-1, 86-36—86-53, 86-81—86-89, 86-131—86-134, and 86-161—86-168, relative to human relations, and enacting new provisions in lieu thereof as herein set out. Formerly, such provisions derived from §§ 17B-2—17B-7, 40C-1—40C-9, 40C-50—40C-57, 40C-101—40C-103, 40C-105—40C-107, 40C-109—40C-111, 40C-120—40C-123 of the 1956 Code as amended by M.C.S., Ord. No. 15,958, § 1, adopted June 17, 1993; and M.C.S., Ord. No. 18,794, § 2, adopted July 1, 1998.

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ARTICLE I. IN GENERAL

Sec. 86-1. Construction.

The provisions of this article shall be construed liberally for the accomplishment of the purposes thereof. Nothing contained in this article shall be deemed to repeal, supersede, or impair any of the provisions of any civil rights law or any other law of this city or state relating to discrimination because of race, creed, religion, color, national origin or ancestry, physical condition or disability; but as to acts declared unlawful by this chapter, the procedure provided in this chapter shall, while pending, be exclusive of all other civil procedures created by city law (but not exclusive of misdemeanor criminal law procedures or procedures under state or federal law); and the final determination therein shall exclude any other civil action, or remedy created by city, state or federal law, based on the same grievance of the person concerned. If such person institutes any such action or seeks any such remedy based on such grievance without first resorting to the procedure provided in this article, he may not subsequently resort to the procedure set forth in this article.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-1.5. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Advisory committee means the advisory committee on human relations established by section 86-34.

Aggrieved person includes any person who:

(1) Claims to have been injured by a discriminatory practice; or

(2) Believes that he will be injured by a discriminatory practice that is about to occur.

Benevolent or fraternal lodge means a society or voluntary association organized and carried on for the mutual aid and benefit of its members, not for profit, which ordinarily has a lodge system, a ritualistic form of work, and a representative government, and an emphasis on the common interests and bonds of friendship among its members. The term shall not include any entity or associated club organized or existing for the dominant purpose of participating in or observing the carnival season.

Commercial housing means housing accommodation held or offered for sale or rent by a real estate broker or agent, or by any person pursuant to authorization of the owner, by the owner or by a legal representative of the owner.

Commission means the New Orleans Human Relations Commission established by section 86-2 et seq.

Commissioner means a member of the commission.

Complainant means that person who files a complaint pursuant to R.S. 51:2611.

Conciliation means the attempted resolution of issues raised by a complaint, or by the investigation of such complaint, through informal negotiations involving the aggrieved person, the respondent, and the city attorney or his designee.

Conciliation agreement means a written agreement setting forth the resolution of the issues in conciliation.

Disability refers to the status or defining characteristic of a "disabled" or "handicapped" person; the terms "disabled person" or "handicapped person" mean a person who has a physical or mental impairment that substantially limits one or more of the major life activities of the individual, a record of such impairment, or a person who is perceived as having such an impairment. For purposes of all laws which incorporate by reference, apply to, rely for meaning upon the term disability as defined herein, the terms used in this definition have the following meanings:

(1) a. *Physical impairment* means any physiological disorder or condition, cosmetic disfigurement, or anatomical loss affecting one or more of the following body systems: neurological, musculoskeletal, special senses organs, respiratory, including speech

organs, cardiovascular, reproductive, digestive, genito-urinary, hemic and lymphatic, skin and endocrine.

b. *Mental impairment* means any mental or psychological disorder such as mental retardation, organic brain syndrome, emotional or mental illness, and specific learning disabilities.

c. *Major life activities* includes functions such as caring for oneself, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, and working.

d. *Has a record of such an impairment* means has a history of, or has been classified as having a mental or physical impairment that substantially limits one or more major life activities.

(2) a. The following shall not be considered a disability: homosexuality, bisexuality, transvestism, transsexualism, pedophilia, exhibitionism, voyeurism, gender identity disorders not resulting from physical impairments, or other sexual behavior disorders, compulsive gambling, kleptomania, pyromania, psychoactive substance use disorders resulting from current illegal use of drugs, or use of alcohol which adversely affects job performance or conduct.

b. Such term does not include current, illegal use of, or addiction to a controlled substance as defined in Section 102 of the Controlled Substances Act, 21 U.S.C. 802.

Discriminatory housing practice means an act that is unlawful pursuant to sections 86-26 through 86-30.

Discriminatory practice means any direct or indirect act or practice of exclusion, distinction, restriction, segregation, limitation, refusal, denial, difference in treatment in hiring, referring for hire in promoting, training, in membership in employee or labor organizations, selling, leasing, rental or financing of housing, or in rendering services, accommodations, advantages, facilities, or privileges offered by a public facility or place of public accommodation or any other act or practice of differentiation or preference in the treatment of a person or persons because of race, creed, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, disability, as defined in this section, or national origin. The prohibitions in this article against discrimination because of age in connection with employment and in connection with public accommodations shall be limited to individuals who are at least 40 years of age but less than 70 years of age.

Dwelling means any building, structure, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

Employer means the city or any of its political subdivisions, any person employing eight or more persons within the city, or any person acting as an agent of an employer, directly or indirectly.

Employment agency means any person or agency, public or private, regularly undertaking, with or without compensation, to procure employees for an employer or to procure for employees opportunities to work for an employer.

Executive director means the Executive Director of the City of New Orleans Human Relations Commission.

Familial status means one or more individuals, who have not attained the age of 18 years, being domiciled with:

(1) A parent or another person having legal custody of such individual or individuals; or

(2) The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

Family includes a single individual.

Gender identification is the actual or perceived condition, status or acts of:

(1) Identifying emotionally or psychologically with the sex other than one's biological or legal sex at birth, whether or not there has been a physical change of the organs of sex;

(2) Presenting and/or holding oneself out to the public as a member of the biological sex that was not one's biological or legal sex at birth;

(3) Lawfully displaying physical characteristics and/or behavioral characteristics and/or expressions which are widely perceived as being more appropriate to the biological or legal sex other than one's biological sex at birth, as when a male is perceived as feminine or a female is perceived as masculine; and/or

(4) Being physically and/or behaviorally androgynous.

Hearing examiner means one or more persons or commissioners designated to conduct a hearing.

Labor organization means any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms or conditions of employment, or for other mutual aid or protection in relation to employment or any agent acting for such an organization.

National origin means the national origin of an ancestor.

Owner includes curator, administrator, tutor, executor, lessee, sublessee, signee, manager, agent or any other person having the right of ownership or possession or the authority to sell, rent or lease any commercial housing, including the city.

Person means one or more individuals, governments, governmental agencies, public authorities, labor organizations, corporations, legal representatives, partnerships, associations, trustees, trustees in bankruptcy, receivers, mutual companies, joint stock companies, trusts unincorporated organizations, or other organized groups of persons, as well as natural person. As applied to partnerships or other associations, "person" includes their members and as applied to corporations, "person" includes their officers.

Place of public accommodation, resort, or amusement means any place, store, or other establishment or means of transportation, either licensed or unlicensed, which supplies goods or services to the general public or which solicits or accepts the patronage or trade of the general public, or which is supported directly or indirectly by government funds. However, a bona fide private club is not a place of public accommodations, resort, or amusement if its policies are determined solely by its members and its facilities or services are available only to its members and their bona fide guests.

(1) Place of public accommodation, resort, or amusement includes any institution, club, or place of accommodation which:

a. Has more than 75 members;

b. Either:

1. Regularly receives payment for dues, fees, use of space, facilities, services, meals or beverages, directly or indirectly, either from or on behalf of nonmembers or members for or in the direct or indirect furtherance of trade or business or from or on behalf of any persons who claim such payment as a business expense for tax purposes; or

2. Has, within the preceding calendar year, received a permit pursuant to sections 34-34 through 34-47 to parade during the defined carnival parade season, as set forth in section 34-1 while having within

Charter, bylaws, rules, regulations or written or unwritten policies any provision which calls for the refusal, withholding or denying of membership or of any of the services, accommodations, advantages, facilities or privileges offered by the institution, club, or place of accommodation to members or others because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability; and

c. Which either:

1. Provides regular meal service; or

2. Uses for its activities, on a recurring basis, the public streets, ways or places or publicly owned or operated facilities under authority of a permit, license, franchise or privilege granted by a public body, under circumstances such that, as a result of such activities in or on publicly owned or operated property, expenses are incurred by a public body which are wholly recovered in payments to the public body by the institution, club, or place of accommodation. The rental of the municipal auditorium by a nonprofit corporation, at the "full-price" rates as established by the chief administrative officer, is hereby declared to be a situation in which the expenses incurred by the city are wholly recovered by payment as to the city by the nonprofit corporation. It shall be the duty of the chief administrative officer to ensure that the payments for rental of the municipal auditorium by a nonprofit corporation for events which are not open to the public at large are sufficient to wholly recover all expenses incurred by the city.

(2) "Public accommodation," "resort," or "amusement" is expressly deemed not to include, provided the accommodation's facilities, services, advantages and privileges are restricted to members and their guests:

a. Any bona fide private club, which:

1. Does not have more than 75 members;

2. Which neither:

(a) Regularly receives payments for dues, fees, use of space, facilities, services, meals or beverages, directly or indirectly, either from or on behalf of nonmembers or members for or in the direct or indirect furtherance of trade or business or from any persons who claim such payment as a business expense for tax purposes; nor

(b) Has, within the preceding calendar year, received a permit pursuant to sections 34-34 through 34-47 to parade during the carnival parade season as set forth in section 34-1; or

3. Which neither:

(a) Provides regular meal service; nor

(b) Uses for its activities, on a recurring basis, the public streets, ways or places or publicly owned or operated facilities in

the manner and under the circumstances hereinabove described.

(3) Any bona fide benevolent or fraternal lodge or religious or political organization, or any organization formed for the predominant purpose of advocacy of a cause or viewpoint which by the nature of its purpose excludes from its membership those to whom the advocated cause or viewpoint is inimical.

Protected cultural hairstyle means any hairstyle or hair texture commonly associated with a particular race or national origin, including locs, cornrows, twists, braids, Bantu knots, Afros, and any hairstyle in which hair is tightly coiled or tightly curled. For purposes of any act of discrimination prohibited by this Chapter, discrimination based upon protected cultural hairstyle shall create a rebuttable presumption of discrimination based upon race or national origin.

Public facility means any facility owned, operated, or managed by any governmental entity.

Regular meal service means the availability of meals on a predictable basis as to time and place and on premises owned or controlled by a public accommodation, resort, or amusement, where such meals are prepared and/or served by employees of such public accommodation or its lessee, contractors, licensee or agent, for consumption on such premises by members and/or guests. "Regular meal service" shall not include meals provided as hospitality by a member in a private home or public restaurant, nor the sale of commercially packed snack items, nor infrequent meals such as banquets for ceremonial breakfasts held to celebrate special occasions.

Respondent means the person or other entity accused in a complaint of a discriminatory practice, or any other person or entity identified in the course of an investigation and notified that they are a respondent who shall be joined in the complaint.

Sexual orientation means heterosexuality, homosexuality or bisexuality.

To rent includes to lease, to sublease, to let, and otherwise to grant for a consideration the right to occupy premises owned by the occupant. (M.C.S., Ord. No. 19,278, § 1, 6-17-99; M.C.S., Ord. No. 28568, § 1, 12-17-20)

ARTICLE II. NEW ORLEANS HUMAN RELATIONS COMMISSION*

Sec. 86-2. Policy and procedures.

(a) In the city with its great cosmopolitan population consisting of large numbers of people of every race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, many of them with disabilities, there is no greater danger to the health, morals, safety and welfare of the city and its inhabitants than the existence of groups prejudiced against one another and antagonistic to each other because of differences of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability. The council hereby finds and declares that prejudice, intolerance, bigotry, and discrimination and disorder occasioned thereby threaten the rights and proper privileges of its inhabitants and menace the institutions and foundation of a free democratic state. The human relations commission as created by section 86-4 is designated as an instrument of the city's power to eliminate and prevent discrimination in employment, in places of public accommodation, resort or amusement, in housing accommodations and in commercial space because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability whenever such discrimination is prohibited by provisions of this chapter or other city law; and such commission is hereby designated as the local human rights commission for this city and is given such jurisdiction and power for such purposes as is conferred upon or authorized to a local human rights commis-

*__Cross reference—__Boards, committees and commissions, § 2-86 et seq.

sion under applicable state law. Except as otherwise provided in the city charter, this Code, or applicable federal or state law, the commission is hereby authorized to enforce and administer any and all city ordinances prohibiting discrimination in public accommodations or in other areas, including but not limited to, the provisions of this chapter.

(b) It is the purpose and intent of the city council by this enactment to provide for the execution within the city of the policies embodied in the Federal Civil Rights Act of 1964, 1968, and 1972 and the Age Discrimination in Employment Act of 1967, as amended; and to assure that the city has appropriate legislation prohibiting discrimination in employment and housing sufficient to justify the deferral of cases by the federal equal employment opportunity commission, the secretary of labor, the department of housing and urban development, and the department of justice under those statutes; to safeguard all individuals within the city from discrimination because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability in connection with employment, housing, public accommodations, financial practices, and credit transactions; to protect their interest in personal dignity and freedom from humiliation; to make available to the city their full productive capacities in employment; to secure the city against domestic strife and unrest which would menace its democratic institutions; to preserve the public safety, health, and general welfare; and to further the interest, rights, and privileges within the city.

(c) All city agencies and departments shall cooperate fully with the commission and advisory committee to the end that they may effectively carry out their functions and duties.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-3. Authorization.

(a) It is the intent of this article to authorize creation by the mayor of a new bureau, to be known as the human relations commission, which shall be authorized to exist and act for the city, as provided in this article, with the advice of an advisory committee on human relations constituted as provided herein. It is the intent of this article to exercise the city's rights under article VI, section 6 of the constitution; and the council declares that such bureau, acting with the advice of such committee, shall constitute the city's human rights commission under state law. The term "commission," as used in this article, refers to such bureau acting with the advice of such committee; and the term "committee" refers to such committee acting as the designated advisor to such bureau. The council finds that the use of a bureau within an existing administration unit, advised by a citizens' advisory committee, to serve as a city human rights commission will achieve the goals of independence of judgment and participation of citizens representing diverse interests and community groups while at the same time observing the home rule charter policy against the proliferation of administratively discrete agencies.

(b) Subject to the limitation set forth in subsection (c) of this section, the mayor is hereby authorized to create, within one of the offices, departments or boards created or recognized by the home rule charter, a bureau to be known as the New Orleans Human Relations Commission.

(c) The authorization granted in subsection (b) of this section shall be effective only during the period or periods of existence of an advisory committee on human relations appointed pursuant to section 86-4.

(d) The human relations commission shall be headed by a full-time executive director, and may employ additional staff in the manner provided by applicable law. Except as may otherwise be provided in applicable law, the executive director shall be appointed only after consultation with the advisory committee on human relations.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-4. Advisory committee on human relations; appointment; meetings; removal.

(a) Pursuant to the provisions of section 4-104 of the charter, the mayor, or with the consent of the mayor, the head of the department or board

to which the human relations commission shall have been assigned, shall appoint an advisory committee to be known as the advisory committee on human relations. The mayor, or with the consent of the mayor, the head of the department or board to which the human relations commission shall have been assigned, may designate one of its employees to serve as executive director of the human relations commission. In order for its existence to be sufficient to give effect to the authorization granted by section 86-37(a), the advisory committee on human relations must be organized in accordance with subsection (b) of this section.

(b) The advisory committee shall be composed of 17 members, to be appointed as follows: one member appointed as directed by each member of the city council, two members appointed at the sole discretion of the mayor, and eight members appointed by the mayor from a list of nominees submitted by the Presidents of Xavier University, Dillard University, Tulane University, Loyola University, Delgado Community College, and Our Lady of Holy Cross College, and the Chancellors of the University of New Orleans and Southern University in New Orleans. Each of the aforementioned universities must submit three nominees for the mayor's consideration. The mayor shall select one nominee from each university.

(c) Before making appointments, the appointing and nominating authority may solicit the recommendations of civic, professional, social, advocacy, trade, labor, civil rights, and other organizations, including but not necessarily limited to, the Chamber/New Orleans and the River Region, the Roman Catholic Archdiocese of New Orleans, the Black Economic Development Council, the local Anti-Defamation League of B'nai B'rith, the Interdenominational Ministerial Alliance, the local American Federation of Labor/Congress of Industrial Organizations, and the local Federation of Churches.

(d) The appointment of a member of the advisory committee shall not become effective until it has been confirmed by the city council. Members of the committee shall serve a term of one year and shall serve without compensation. It shall be permissible to reappoint a member for two consecutive one-year terms for a total of three terms without employing the nominating process described in paragraph (b) of this section.

(e) The committee shall meet, and shall designate one of its members as chairperson and one as vice-chairperson. The vice-chairperson shall act as chairperson in the absence or disability of the chairperson or upon a vacancy in that office. Any vacancy in the committee shall not affect its powers and shall be filled in the same manner and subject to the same limitations as to the particular appointing authority that governed the original appointment.

(f) Any member may be removed by the committee with the concurrence of the mayor and a majority of the city council for unexcused failure to attend meetings or neglect of duties or for any cause sufficient to warrant removal of a city board member.

(g) The advisory committee may, for the purpose of carrying out the provisions of this article, hold such hearings and act at such times and places as are deemed advisable. Subpoenas for the attendance and testimony of witnesses or the production of written or other matter may be issued in accordance with applicable state or city law. The holding of hearings by the advisory committee or the appointment of a subcommittee or a hearing examiner to hold hearings pursuant to this paragraph must be approved by a majority of the members present at a meeting at which a quorum is present. The commission shall have the sole power to determine qualifications of the examiner.

(h) The advisory committee shall have the power to create subcommittees; and the commission with the advice of the committee shall have the power to make such rules and regulations as are convenient or necessary to carry out the purposes of this article in the manner provided in the city charter.

(i) All meetings of the advisory committee and its subcommittees shall be subject to the open meetings law of the state. A simple majority of the members of the advisory committee

shall constitute a quorum for the purposes of doing business and of formal compliance with the open meetings law, unless otherwise provided by state law. A majority vote shall be required for advisory committee action. The executive director of the human relations commission shall have a voice, but not vote, in the meetings of the advisory committee.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99; M.C.S., Ord. No. 25700, § 1, 2-20-14)

Sec. 86-5. Duties of the commission.

The commission, with the advice of and in close cooperation with the advisory committee, shall:

(1) Study and (in such manner and subject to such screening procedures as may be provided in its rules) collect information concerning written complaints, signed by one or more complainants, that citizens of the city are being or have been deprived of rights guaranteed to them by the United States or state constitution or the laws of the state or the city, on account of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(2) Study and collect information concerning legal developments constituting discrimination or denial of equal protection of the laws under the United States or state constitution because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, or the inadequate or partial administration of justice.

(3) Appraise the laws and policies of the federal government, the state, and the city, with respect to discrimination or denials of equal protection of the laws under the United States or state constitution because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, or the inadequate or partial administration of justice.

(4) Collect and report information and establish forums and other means for dialogue concerning the social and economic progress and development of all citizens of the city.

(5) Foster mutual understanding and respect among all economic, social, religious, cultural and ethnic groups in the city.

(6) Assist in maintaining the integrity of the electoral process with respect to voting rights.

(7) Cooperate with federal, state, and city agencies in their efforts to curb discriminatory practices.

(8) Seek grants and donations on behalf of the city from foundations and others for the purpose of carrying out its functions, subject to the approval of the council and the mayor. The acceptance of such grants and donations by the city shall be subject to the provisions of section 9-314 of the city charter.

(9) Report to the city council and the mayor on an annual basis concerning each of its duties.

(10) Provide for execution within its jurisdiction of the policies embodied in this chapter, in Title VII of the Civil Rights Act, 42 U.S.C.A. 2000e et seq., and the Fair Housing Act, 42 U.S.C.A. 3601 et seq.

(11) Safeguard all individuals within its jurisdiction from discrimination because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-6. Action by commission.

(a) The human relations commission shall act by and through its executive director. In all matters, however, the executive director shall

act strictly in conformity with the recommendations of the advisory committee on human relations.

(b) The human relations commission may act contrary to the recommendations of the advisory commission on human relations only if:

(1) The city attorney has rendered a written opinion that strict conformity with such recommendations would be unlawful, and

the mayor has certified his acceptance of such opinion in a writing directed to the members of the council;

(2) The mayor has, in writing directed to the commission and distributed to the members of the council, suspended the obligation to act in such conformity until the adjournment of the next regular council meeting; or

(3) The council by two-thirds vote has expressly overruled such recommendations of the advisory committee.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-7. Assistance of mayor and executive branch.

The commission or committee may request and receive from the mayor the use of such employees of his office as may be necessary for the proper conduct of business. The department of law shall serve as legal adviser for the commission and advisory committee, and shall have a voice but no vote in all matters. The services of all other departments of the city may be available to the committee upon its request to the mayor for such services. Information in the possession of any department, board, or agency of the city shall be furnished to the commission or committee upon request, and to the extent permitted by law, subject to any limitations upon its ability and capacity to furnish the information. Upon the refusal by any director or head of any department, board, or agency of the city to furnish any information which has been requested, the matter shall be referred to the mayor, who shall determine promptly whether such information shall be furnished to the commission and committee; and the decision of the mayor shall be final. The department of property management is authorized to allocate adequate office space and to provide necessary facilities for the commission, and shall provide a suitable meeting place for the advisory committee.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-8. Meetings.

(a) The advisory committee shall meet for regular meetings at least once every two months at such time and place as shall be fixed by the committee. Special meetings may be called by the executive director, by the chairperson or, in his absence, by the vice-chairperson, and shall be called by the executive director on the written request of eight or more members of the committee. All such requests and all notices of meetings shall state the purpose or purposes for which such special meeting is to be called and shall be filed with the chairperson and served upon all members upon whom service can reasonably be made at least 24 hours before the time of the special meeting.

(b) Such a request and call for a special meeting shall be read at the meeting and entered in the minutes, and no business shall be transacted except that stated in the request for such special meeting.

(c) The executive director shall prepare the agenda and give all notices required for each meeting. The advisory committee shall keep minutes of meetings and shall establish its own rules of order or adopt Robert's Rules of Order for the conduct of meetings.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE III. ENFORCEMENT AND PROCEDURE

Sec. 86-9. Report on hearings.

The commission, after the completion of any hearing, shall make a report in writing to the mayor and city council setting forth the facts found and its recommendations or decision, as the case may be. At any hearing before the commission or committee a witness shall have the right to be advised by counsel present during such hearings. At any hearing before the commission or committee a witness shall have the right to be advised by counsel present during such hearings.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-10. Authority to receive complaints; investigations; administering oaths.

(a) The human relations commission shall receive, investigate and pass upon complaints and may initiate its own investigations of:

(1) Racial, religious and ethnic group tensions, prejudice, intolerance, bigotry and disorder occasioned thereby.

(2) Discrimination against any person practiced by a private person, and, after consultation with the mayor, by city officials or city agencies. Upon its own motion, the commission may make, sign and file complaints alleging violations of any provision of this chapter or any other law prohibiting discrimination.

(b) Without limiting the generality of the foregoing, the executive director or his deputies shall have the power and authority, unless otherwise provided in applicable law, to administer oaths or take statements of witnesses with regard to the aforementioned hearings.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-11. Subpoenas.

The executive director, on his own motion or on motion of the advisory committee, a duly-appointed hearing officer, or a party to a proceeding before the commission, shall have full authority, in addition to any authority granted by state law, to issue subpoenas to compel the appearance of persons, the giving of sworn testimony, and the production of documents. Whoever fails or refuses to comply with a subpoena issued by the executive director that has not been quashed or modified by a civil court of competent jurisdiction shall be guilty of a misdemeanor. Nothing in this section shall be construed to deny any person of a right secured by the constitution of the state or of the United States.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-12. Time for filing complaints.

Any complaint filed pursuant to this chapter must be so filed within one year after the alleged act of discrimination has occurred or terminated.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-13. *Form and substance of complaint.*

Any person claiming to be aggrieved by an unlawful discriminatory practice or other act prohibited by this chapter may, by himself or through an attorney-at-law, make, sign and file with the commission a verified complaint in writing which shall state the name and address of the person alleged to have committed the unlawful discriminatory practice or act complained of and which shall set forth the particulars thereof and contain such other information as may be required by the commission. The commission through its executive director may, in like manner, make, sign and file such a complaint.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-14. Post complaint procedure; employment; employment agencies; labor organization membership; *apprenticeship and training programs.*

(a) Upon the filing of a complaint, the commission shall:

(1) Serve notice upon the complainant that the complaint has been received;

(2) Advise the complainant of the time limits and choice of forums provided under the law; and

(3) Within ten days, by mail or in person, serve notice on the respondent or person charged with the commission of a discriminatory act advising of his or her procedural rights and obligations, together with a copy of the complaint.

(b) When a complaint is filed with the commission and the complainant requests that the complaint be presented to the Federal Equal Employment Opportunity Commission (EEOC), the complaint will be deemed to be filed with the EEOC upon the expiration of 60 days (120 days during the first year after the effective date of this section) after filing with the commission, or upon termination of commission proceedings, or upon the commission's waiver of its right to exclusively process the charge, whichever is earlier.

(c) If a complaint is filed with the commission and the complainant does not request that the complaint be presented to the Federal Equal Employment Opportunity Commission (EEOC), in order for the complaint to be filed with the EEOC, the complainant must do one of the following:

(1) If the commission has refused to accept the complaint, the complainant may file a

subsequent submission of the complaint directly with the EEOC pursuant to the time limits and requirements of Title VII of the Civil Rights Act, 42 U.S.C.A. 2000e et seq. and the Americans with Disabilities Act, 42 U.S.C.A. 12117;

(2) If the commission proceedings have terminated, the complaint may be timely filed with the EEOC within 30 days of receipt of notice that the commission proceedings have been terminated or within 300 days from the date of the alleged violation, whichever is earlier;

(3) If the commission proceedings have not been terminated, the complaint may be filed with the EEOC within 300 days from the date of the alleged violation. Once filed, the complaint will be deemed to be filed with the EEOC upon the expiration of 60 days (120 days during the first year after the effective date of this section) after filing with the commission, or upon termination of commission proceedings, or upon the commission's waiver of its right to exclusively process the charge, whichever is earlier. To be timely, however, such filing must be effected within 300 days from the date of the alleged violation.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-15. Post complaint procedure; fair housing.

(a) Upon the filing of a complaint, the commission shall:

(1) Serve notice upon the complainant that the complaint has been received;

(2) Advise the complainant of the time limits and choice of forums provided under the law; and

(3) Within ten days, serve notice on the respondent or person charged with the commission of a discriminatory act advising of his or her procedural rights and obligations, together with a copy of the complaint.

(b) The respondent shall be allowed to file an answer before the end of the 10th day after receipt of the complaint.

(c) After the filing of any complaint, the commission shall, before the end of the 30th day after receipt of the complaint, begin its investigation of the allegations of the complaint. The commission shall complete the investigation within 100 days of receipt of the complaint or notify the parties of its reasons for not completing its investigation within the time provided.

(d) A complaint shall be finally disposed of either through dismissal, execution of a conciliation agreement, or issuance of a charge, within one year after the date on which the complaint was filed unless it is impracticable to do so, in which case the executive director shall notify the parties, in writing, of the reasons for the delay.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-16. Hearing procedure; conciliation; orders.

(a) In connection with the filing of such a complaint, the commission is authorized to take proof, issue subpoenas pursuant to section 86-11, and administer oaths in the manner provided in all applicable administrative laws, regulations and rules. Any employer whose employees, or some of them, refuse or threaten to refuse to cooperate with the provisions of this article, may file with the commission a verified complaint asking for assistance by conciliation or other remedial action.

(b) If the commission shall determine after an investigation that the evidence does not support the allegations of the complaint that the person named in the complaint, hereinafter referred to as the respondent, has engaged or is engaging in a prohibited or unlawful discriminatory practice, the commission shall issue and cause to be served on the complainant an order dismissing such allegation of such complaint as to such respondent. The complainant may, within 30 days of such service, apply to the council for consideration of such action of the commission. Upon such application, the council may review such action and determine whether the evidence supports the allegations of the complaint and accordingly shall

enter an order affirming, reversing or modifying the determination of the commission or remanding the matter for further investigation and action, a copy of which order shall be served upon the complainant.

(c) If the commission, after investigation, shall determine that the evidence supports the allegations of the complaint, or if the council, after consideration, shall determine that the evidence supports the allegations, the commission shall immediately endeavor to eliminate such prohibited acts or unlawful discriminatory practice by proceeding in the following manner:

(1) If in the judgment of the commission circumstances so warrant, it may endeavor to eliminate such prohibited or unlawful discriminatory practice by conference, conciliation and persuasion, resulting in a conciliation agreement. The terms of such conciliation agreement shall include provisions requiring the respondent to refrain from the commission of unlawful discriminatory practices in the future and may contain such further provisions as may be agreed upon by the commission and respondent, including a provision for the entry in court of a consent decree embodying the terms of the conciliation agreement.

(2) Any conciliation agreement arising out of conciliation efforts by the commission shall be an agreement between the respondent, the complainant, and the commission and shall require the approval of the commission. Each conciliation agreement shall be made public unless the complainant and respondent otherwise agree and the commission determines that disclosure is not required to further the purposes of the law or ordinance.

(3) In case of failure to eliminate the unlawful discriminatory practice complained of, or in advance thereof as determined by the commission, it shall cause to be issued and served in the name of the commission a written notice, together with a copy of such complaint, as the same may have been amended, requiring the respondent or respondents to answer the charges of such complaint at a hearing before a hearing officer designated by the executive director, at a time and place to be fixed by the executive director, and specified in such notice. The place of any such hearing shall be the office of the commission or such other place as may be designated in the notice. The case in support of the complaint shall be presented before the commission by the executive director or another representative designated by the executive director. Endeavors at conciliation by the commission shall not be received in evidence. The respondent may file a written verified answer to the complaint and appear at such hearing in person or otherwise, with or without counsel, and submit testimony. The complainant shall have the power to make reasonable amendments of the complaint, and the respondent shall have like power to make reasonable amendments of his answer. The commission shall not be bound by the strict rules of evidence prevailing in courts of law or equity. The testimony taken at the hearing shall be under oath and shall be recorded in an electronically stored video and/or audio format and may be transcribed at the expense of any person who desires a transcript. Any party may cause the hearing to be recorded by a certified court reporter at his own expense.

(4) If, upon all the evidence at the hearing, the commission, or such hearing officer as may have been designated, shall find that a respondent has engaged in any unlawful discriminatory practice prohibited in this Code, the commission shall state its findings of fact and shall issue and cause to be served on such respondent an order requiring such respondent to cease and desist from such unlawful discriminatory practice and to take such affirmative action as described in section 86-17 of this chapter. If, upon all the evidence, the commission shall find that a respondent has not engaged in any such unlawful

discriminatory practice, the commission shall state its finding of fact and shall issue and cause to be served on the complainant an order dismissing the complaint as to such respondent. A copy of the order shall be delivered to the complainant, the respondent, the city attorney, and such other public officers and persons as the commission deems proper.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-17. Civil remedies.

Affirmative action ordered under this section may include but is not limited to:

(1) Hiring, reinstatement, or upgrading of employees with or without back pay. Interim earnings or amounts earnable with reasonable diligence by the person or persons discriminated against shall operate to reduce the back pay otherwise allowable.

(2) Admission or restoration of individuals to union membership, admission to or participation in a guidance program, apprenticeship training program, on-the-job training program, or other occupational training or retraining program, and the utilization of objective criteria in the admission of individuals to such programs.

(3) Admission of individuals to a place of public accommodation, resort, or amusement.

(4) The extension to all individuals of the full and equal enjoyment of the advantages, facilities, privileges, and services of the respondent.

(5) Reporting as to the manner of compliance.

(6) Posting notices in conspicuous places in the respondent's place of business in a form prescribed by the commission.

(7) Sale, exchange, lease, rental, assignment, or sublease of immovable property to an individual.

(8) Payment to the complainant of damages for injury caused by an unlawful practice, including compensation for humiliation and embarrassment, expenses incurred by the complainant in obtaining alternative housing accommodations, and other costs actually incurred by the complainant as a direct result of such unlawful practice.

(9) The commission may publish or cause to be published the names of persons who have been determined to have engaged in an unlawful practice.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-18. Judicial review and enforcement.

(a) At any time after the filing of a complaint alleging an unlawful discriminatory practice under this chapter, if the commission determines that the respondent is doing or procuring to be done any act tending to render ineffectual any order the commission has entered or may thereafter enter in such proceeding, the commission may authorize the department of law to file a complaint for enforcement of the commission's order. The proceeding for enforcement of a commission order shall be initiated by filing a complaint in the Civil District Court of the Parish of Orleans. Copies of the complaint shall be served upon all parties of record. Within 30 days after the filing of the complaint by the commission, or within such further time as the court may allow, the commission shall transmit to the court the original or a certified copy of the entire record upon which the order is based, including a transcript of testimony, which need not be printed. By stipulation of all parties to the proceeding, the record may be shortened.

(b) The findings of fact of the commission shall be conclusive unless manifestly erroneous in view of the probative and substantive evidence on the whole record. The court may grant such temporary relief or restraining order as it deems just and may enter an order enforcing, modifying, and enforcing as modified, or setting aside in whole or in part the order of the commission, or remanding the case to the commission for further proceedings.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-19. Exclusions.

Nothing in this article shall be construed to:

(1) Restrict an employer's right to require that an employee meet bona fide job-related qualifications of employment.

(2) Authorize or require employers to establish affirmative action quotas based on sexual orientation or gender identification.

(3) Apply to any business, trade or occupation employing fewer than eight employees, or to any unit in a residential structure containing not more than four units, if the owner maintains and occupies one of such units as his residence.

(4) Apply to any religious corporations, religious entity, religious association, or religious organization, or any religious nonprofit corporation, religious organization or religious group, including religious charitable organizations, with respect to the employment of individuals, or with respect to the employment policies, practices, and procedures established by any such religious corporation, religious entity, religious association, or religious society.

(5) Make lawful any act that violates the state criminal code.

(6) The provisions of this article shall not be read to limit or affect in any way rights and privileges existing under state or federal law, and the city explicitly disavows its rights to any period of exclusive jurisdiction over filed charges which may exist under state or federal law, including but not limited to U.S.C., Section 2000(e) et seq.

(7) Notwithstanding anything herein expressed to the contrary, nothing in this article shall be deemed or construed to authorize or encourage the promotion of any sexual orientation or gender identification in any public or private educational institution or school, or to require the teaching in any public or private educational institution of sexual orientation or gender identification. It is the intent of this chapter to assure the rights of the citizens of this city and all persons, particularly with respect to the securing of housing and employment; this article does not have for its purpose the establishment of any public policy regarding the acceptability or nonacceptability of any sexual practice.

(8) Nothing in this chapter shall prohibit an *employer from prohibiting cross-dressing* in the workplace or while an employee is acting in the course and scope of his or her employment. For purposes of this section, a person shall be deemed to be acting in the course and scope of his or her employment if he or she would be deemed to be in the scope and course of his employment for the purpose of determining eligibility for worker's compensation. For purposes of this section, "cross-dressing" shall mean the wearing of clothing, cosmetics, footwear *and/or other accouterments gener*ally deemed or perceived as inappropriate to the gender that was one's biological or legal gender at birth and/or generally deemed or perceived as more appropriate to the gender that was not one's biological or legal gender at birth. "Cross-dressing" shall be deemed not to include the regular wearing of clothing, cosmetics, footwear and/or other accouterments which is appropriate to the gender other than his or her biological or legal gender at birth with which an employee or applicant identifies if the employee or applicant provides the employer with the written statement of a licensed doctor or other health care professional certifying that the employee or applicant presents the characteristics of gender identification disorder or another similar status or condition and that the employee or applicant intends prospectively to attire and conduct himself or herself for the foreseeable future in the employee's employment and workplace or workplaces in the manner appropriate for persons of the gender with which he or she identifies.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-20. Interference, coercion, or intimidation.

(a) It shall be an unlawful practice for a person or for two or more persons to conspire:

(1) To coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this chapter.

(2) To publish, circulate, display, post or mail, either directly or indirectly, any written or printed, or electronic computer based communication, notice or advertisement which evidences an intent to violate directly or indirectly any of the provisions of this chapter.

(3) To aid, abet, incite, counsel or coerce the doing of any act therein declared to be unlawful or to prevent any person from complying with this section or any rule, regulation or order issued pursuant to this chapter.

(4) To retaliate or discriminate in any manner against a person because he has opposed a practice declared unlawful by this chapter, or because he has made a charge, filed a complaint, testified, assisted, or participated in any manner in any investigation, proceeding, or hearing under this chapter.

(5) To obstruct or prevent a person from complying with the provisions of this chapter or any order issued thereunder.

(b) Any person who shall willfully resist, prevent, impede or interfere with the commission or any of its agents or representatives in the performance of duty under this chapter, or shall willfully violate an order of the commission or any of its members or representatives in the performance of duty under this chapter, shall be guilty of a misdemeanor and shall be punished by imprisonment for not more than six months, or by a fine of not more than $500.00, or by both such imprisonment and such fine; provided that procedure for the review of the order shall not be deemed to be such willful conduct.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-21. Enforcement and penalties.

(a) Any violations of articles IV through VI shall, prior to the initiation of a prosecution in municipal court, be reported and processed in the manner specified within this chapter. If this chapter has no enforcement provisions, or they are ruled unconstitutional, then any violators of articles IV through VI shall be punishable in the same manner as specified in the municipal criminal code, and more particularly by sections 54-1 through 54-26 and 54-61, but in no event shall the minimum penalty for any violation of articles IV through VI be less than that specified in section 54-26 of the municipal criminal code.

(b) Unless it is expressly provided otherwise elsewhere in a particular section of this chapter, any person who does anything prohibited or fails to do anything required by this chapter shall be guilty of a misdemeanor and, upon conviction thereof, shall be sentenced to a term of imprisonment not to exceed six months, or to a fine not to exceed $500.00, or to both such imprisonment and such fine.

(c) Unless required to do so by applicable law or by the court, the city attorney shall not prosecute an offense under this section during the pendency under this chapter of civil proceedings concerning the same complainant and respondent and the same grievance before the human relations commission.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE IV. DISCRIMINATION IN EMPLOYMENT, EMPLOYMENT AGENCIES, LABOR ORGANIZATION MEMBERSHIP, AND APPRENTICESHIP AND TRAINING PROGRAMS

Sec. 86-22. Unlawful practices—Employment.

It is unlawful for any person to discriminate by failing or refusing to hire or by discharging an

individual, or otherwise to discriminate against any individual with respect to compensation, terms, conditions or privileges of employment, to limit, segregate, or classify employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise affect an individual's status as an employee on the basis of that individual's race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-23. Same—Labor organization membership.

It shall be a discriminatory practice for a labor organization:

(1) To exclude or expel from membership or otherwise to discriminate against a member or applicant for membership because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(2) To limit, segregate, or classify membership or application for membership or to classify or fail or refuse to refer for employment on the basis of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, in a manner which would deprive or tend to deprive any person of employment opportunities or which would limit employment opportunities, or otherwise to affect adversely the status of an employee or of an applicant for employment because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-24. Same—Employment agencies.

It shall be a discriminatory practice for an employment agency to classify or refer for employment, or to fail or refuse to refer for employment, or otherwise to discriminate against any person because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-25. Same—Apprenticeship and training programs.

It shall be a discriminatory practice for:

(1) An employer, labor organization, or joint labor-management committee controlling apprenticeship or on-the-job or other training or retraining programs to discriminate against an individual because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability in admission to or employment in a program established to provide apprenticeship or other training.

(2) An employer, labor organization, employment agency, or joint labor-management committee controlling apprenticeship or other training or retraining programs, including on-the-job training programs, to print, publish, transmit by electronic computer based means, or circulate or cause to be printed, published, transmitted by electronic computer based means, or circulate any statement, advertisement, or publication relating to employment by such an employer, or membership in such organization or any classification or referral for employment by such labor organization, or relating to any classification or referral for employment by such an employment agency or relating to admission to or employment in any program established to provide apprenticeship or other training by such a joint labor-management committee indicating any preference, limitation, specification, or discrimination based on race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification,

marital status, age, physical condition or disability; except that such advertisement or publication may indicate preference, limitation, or specification based on religion, sex, sexual orientation, gender identification, or age when religion, sex, sexual orientation, gender identification, or age is a bona fide occupational qualification for employment.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE V. DISCRIMINATION IN HOUSING, SALE OR RENTAL OF HOUSING, RESIDENTIAL REAL ESTATE RELATED TRANSACTIONS, AND BROKERAGE SERVICES*

Sec. 86-26. Unlawful practices; housing.

(a) Subject to the provisions of subsection (b) of this section and section 86-27, exceptions, within the City of New Orleans, the prohibitions set forth in section 86-28 shall apply to:

(1) Dwellings owned or operated by the federal government, this state, or by any political subdivision of this state.

(2) Dwellings financed in whole or in part with the aid of loans, advances, grants, or contributions made by:

a. This state or any political subdivision of this state.

b. The federal government under agreements entered into after November 20, 1962, unless payment due thereon has been made in full prior to April 11, 1968.

(3) Dwellings provided in whole or in part by loans insured, guaranteed, or otherwise secured by the credit of the federal government under agreements entered into after November 20, 1962, unless payment thereon has been made in full prior to April 11, 1968; provided that nothing contained in paragraphs (2) and (3) of this subsection shall be applicable to dwellings solely by virtue of the fact that they are subject to mortgages held by an institution insured by the Federal Deposit Insurance Corporation.

(4) Dwellings provided by the development or the redevelopment of real property purchased, rented, or otherwise obtained from a state or local public agency receiving federal financial assistance for slum clearance or urban renewal with respect to such real property under loan or grant contracts entered into after November 20, 1962.

(5) All other dwellings except as exempted by subsection (b) of this section.

(b) Nothing in section 86-28, discrimination in sale or rental of housing and other prohibited practices, except paragraph (a)(3) thereof, shall apply to any of the following dwellings:

(1) Any single-family house sold or rented by an owner, provided that such private individual owner does not own more than three such single-family houses at any one time; provided further, that in the case of the sale of any such single-family house by a private individual owner not residing in such house at the time of such sale or who was not the most recent resident of such house prior to such sale, the exemption granted by this paragraph shall apply only with respect to one such sale within any twenty-four-month period; provided further, that such bona fide private individual owner does not own any interest in, nor is there owned or reserved on his behalf, under any express or voluntary agreement, title to or any right to all or a portion of the proceeds from the sale or rental of more than three such single-family houses at any one time; provided further that the sale or rental of any such single-family house shall be excepted from the application of this provision only if such house is sold or rented without the use in any manner of the

*Cross references—Buildings, building regulations and housing standards, ch. 26; businesses, ch. 30; food service establishments, § 30-651 et seq.; hotels and motels, § 30-771 et seq.; roominghouses, boardinghouses and lodginghouses, § 30-1321 et seq.; community development, ch. 46.

sales or rental facilities or the sales or rental services of any real estate broker or salesperson, or of such facilities or services of any person in the business of selling or renting dwellings, or of any employee or agent of any such broker, salesperson, or person and without the publication, posting, or mailing of any advertisement or written notice in violation of section 86-28(a)(3), but nothing in this provision shall prohibit the use of attorneys, escrow agents, abstractors, title companies, and other such professional assistance as is necessary to perfect or transfer the title.

(2) Rooms or units in dwellings containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his residence.

(c) For the purposes of subsection (b) of this section, a person shall be deemed to be in the business of selling or renting dwellings if any of the following situations exist:

(1) He has, within the preceding 12 months, participated as principal in three or more transactions involving the sale or rental of any dwelling or any interest therein.

(2) He has, within the preceding 12 months, participated as agent, other than in the sale of his own personal residence, in providing sales or rental facilities or rental services in two or more transactions involving the sale or rental of any dwelling or any interest therein.

(3) He is the owner of any dwelling designed or intended for occupancy by, or occupied by, five or more families.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-27. Exceptions.

(a) Nothing in this chapter shall prohibit a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, from limiting the sale, rental, or occupancy of dwellings which it owns or operates for other than a commercial purpose to persons of the same religion, or from giving preference to such persons, unless membership in such religion is restricted on account of race, color, or national origin.

(b) Nothing in this chapter shall prohibit a private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodgings which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members.

(c) Nothing in this chapter limits the applicability of any reasonable local, state, or federal restrictions regarding the maximum number of *occupants permitted to occupy a dwelling, nor* does any provision in this chapter regarding familial status apply with respect to dwellings provided under any state or federal program specifically designed and operated to assist elderly persons, as defined in the state or federal program, or to housing for older persons. As used in this subsection, "housing for older persons" means housing communities consisting of dwellings either:

(1) a. Intended for, and at least 80 percent occupied by, at least one person who is 55 years of age or older per unit and providing significant facilities and services specifically designed to meet the physical or social needs of such persons; and

b. The publication of, and adherence to, policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years or older; or

(2) Intended for and occupied solely by persons 62 years of age or older.

(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-28. Discrimination in sale or rental of housing and other prohibited practices.

(a) As made applicable by section 86-29, unlawful practices-housing, and except as exempted by subsection (b) thereof and 86-27, exceptions, it is unlawful:

(1) To refuse to sell or rent after the making of a bona fide offer, or to refuse to negotiate for the sale or rental of, or otherwise make unavailable or deny, a dwelling to any person because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(2) To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection therewith, because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(3) To make, print, or publish, or cause to be made, printed, or published any notice, statement, or advertisement, with respect to the sale or rental of a dwelling that indicates any preference, limitation, or discrimination based on race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, or an intention to make any such preference, limitation, or discrimination.

(4) To represent to any person because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability that any dwelling is not available for inspection, sale, or rental when such dwelling is in fact so available.

(5) For profit, to induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person or persons of a particular race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(6) a. To discriminate in the sale or rental, or to otherwise make unavailable or deny, a dwelling to any buyer or renter because of a handicap of:

1. That buyer or renter;
2. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or
3. Any person associated with that buyer or renter.

b. To discriminate against any person in the terms, conditions, or privileges of sale or rental of a dwelling, or in the provision of services or facilities in connection with such dwelling, because of a handicap of:

1. That person;
2. A person residing in or intending to reside in that dwelling after it is so sold, rented, or made available; or
3. Any person associated with that person.

c. For purposes of this paragraph, discrimination includes:

1. A refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises except that, in the case of a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter agreeing to restore the interior of the prem-

ises to the condition that existed before the modification, reasonable wear and tear excepted;

2. A refusal to make reasonable accommodations in rules, policies, practices, or services, when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or
3. In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in such a manner that:
   (a) The public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;
   (b) All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and
   (c) All premises within such dwellings contain the following features of adaptive design:
      (1) An accessible route into and through the dwelling;
      (2) Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations;
      (3) Reinforcements in bathroom walls to allow later installation of grab bars; and
      (4) Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

d. Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically handicapped people (commonly cited as "ANSI A117.1") suffices to satisfy the requirements of R.S. 86:140(A)(6)(c)(iii)(cc).

e. For purposes of paragraph (6), the term "covered multifamily dwellings" means buildings consisting of four or more units if such buildings have one or more elevators, and ground floor units in other buildings consisting of four or more units.

(b) Nothing in this section shall be construed to invalidate or limit any law of this state or a political subdivision of this state that requires dwellings to be designed and constructed in a manner that affords handicapped persons greater access than is required by this section.

(c) Nothing in this section requires that a dwelling be made available to an individual whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-29. Discrimination in residential real estate related transactions.

(a) It is unlawful for any person or other entity whose business includes engaging in residential real estate related transactions to discriminate against any person in making available such a transaction, or in the terms or conditions of such a transaction, because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

(b) As used in this section, the term "residential real estate related transaction" means any of the following:

(1) The making or purchasing of loans or providing other financial assistance for purchasing, constructing, improving, repairing, or maintaining a dwelling secured by residential real estate.

(2) The selling, brokering, or appraising of residential real property.

(c) Nothing in this chapter prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-30. Discrimination in provision of brokerage services.

It is unlawful to deny any person access to or membership or participation in any multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation, on account of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-31. Civil remedies for injunction and damages.

Any person deeming himself injured by any alleged violation of the provisions of this article shall have a civil cause of action in district court to enjoin further violations and to recover the actual damages sustained by him, together with the costs of court and a reasonable fee for his attorney of record, all of which shall be in addition to any other remedies contained in this article.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-32. Enforcement by city attorney.

(a) If, after investigation of a complaint filed pursuant to section 86-26, unlawful practices-housing, the city attorney finds reasonable cause to believe that any person or group of persons is engaged in resistance to the full enjoyment of any of the rights granted pursuant to this article or that any person or group of persons has been denied any of the rights granted pursuant to this article, and the complainant, the respondent, and the city attorney have not entered into a conciliation agreement, she shall bring a civil action in any appropriate state district court requesting relief, including an application for a permanent or temporary injunction, restraining order, or other order against the person or persons responsible for the resistance or denial of rights.

(b) In any civil action pursuant to subsection (a) of this section, the court may grant as relief, as it deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order and may award actual damages and punitive damages to any person found to have been denied any of the rights granted pursuant to this article.

(c) If the city attorney concludes at any time following the filing of a complaint that a discriminatory housing practice has occurred or is about to occur, she shall promptly commence and maintain a civil action for appropriate temporary or preliminary relief pending final disposition of the complaint.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE VI. DISCRIMINATION IN PUBLIC ACCOMMODATIONS*

Sec. 86-33. Unlawful practices; public accommodations.

(a) It shall be an unlawful discriminatory practice and a misdemeanor for any public accommodation, resort, or amusement, or for any person

*Cross references—Hotels and motels, § 30-771 et seq.; roominghouses, boardinghouses and lodginghouses, § 30-1321 et seq.

who is the owner, lessee, proprietor, manager, superintendent, employee, officer or agent thereof:

(1) To discriminate against any person, either directly or indirectly, by refusing, withholding or denying to such person any of the goods, services, accommodations, advantages, facilities or privileges offered by the public accommodation, resort or amusement, by:

a. Placing or attempting to place any person *in a separate class of customers*, patrons, members, guests or users or in a separate section or area of the premises or facilities of the public accommodation, resort or amusement because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability.

b. Setting different rates, charges, *identification procedures or requirements* therefor, on the basis of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability; provided that nothing contained in this section shall prohibit the provision of separate bathroom, restroom, shower or similar facilities for males and females.

(2) *To publish, circulate, issue, display, post* or mail either directly or indirectly any written, oral, visual, or electronic computer based communication, notice or advertisement to the effect that any of the services, accommodations, advantages, facilities or privileges of any public accommodation, resort or amusement will be refused, withheld, or denied to any person on account of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, or that the patronage of any person of a particular race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, marital status, age, physical condition or disability, is unwelcome, objectionable or not acceptable, desired or solicited, or that any person is required or requested to use a separate section or area of the premises or facilities of the public accommodations, resort or amusement, because of race, creed, national origin or ancestry, color, religion, gender or sex, sexual orientation, gender identification, *marital status, age, physical condition* or disability.

(b) The provisions of this section shall not prohibit the placement of persons in a separate restroom, bath, locker, room, shower, physical or medical examination or treatment facility, dressing area, or dormitory or sleeping room used by more than one party of persons at a time, if such placement is reasonable and based on the person's sex or sexual orientation or gender identification. The provisions of this section shall not apply, with *respect to sex, sexual orientation, gender identification*, physical condition, or disability, to places of public accommodation, resort or amusement where the council or the commission grants an exemption based on bona fide considerations of public policy. Any place of accommodation which is required as a result of this section to construct or reconstruct a locker room, shower, or other facilities for the use of members of a particular sex or similar group or for the use of the mobility impaired shall be allowed until the first anniversary of the effective date of the ordinance from which this article was derived, to complete such work, and prior to such date shall not be found to be in violation of the provisions of this section which apply to such facilities with regard to discrimination on account of sex or a mobility-impairment disability. The director, for good cause shown, may grant an extension not to exceed an additional 90 days after the date allowed such place of accommodation to complete such work.

(c) Nothing contained in this section shall be construed to bar any religious or denominational institution or organization or any organization, operated for charitable or educational purposes, which is operated, supervised or controlled by or in connection with a religious organization, from

limiting employment or sales or rental of housing accommodations or admission to or giving preference to persons of the same religion or denomination or from making such selection as is calculated by such organization to promote the religious principles for which it is established or maintained.

(d) No act or practice shall be construed as an unlawful discriminatory practice under this article if that act or practice is expressly authorized by valid and preemptive state or federal law. Nothing in this article shall be construed as requiring or as authorizing a public accommodation to require a person with a particular physical condition or disability to accept any special facilities or treatment offered as a special accommodation for persons with such a condition or disability if such person declines to accept such special accommodation. It shall be an unlawful discriminatory practice for any person to refuse, withhold, or deny any service, accommodation, advantage, facility, or privilege offered or available to other customers, patrons, or users of a public accommodation because the person with the particular physical condition or disability had declined to accept such a special accommodation; provided, however, that a person with a mobility impairment that requires the use of a wheelchair or similar device may be required to accept a special accommodation if refusal to do so would necessarily result in a violation of fire code or similar public safety regulations.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-34. Club membership list.

The commission shall not require the production of names from a general membership list of any entity that is a place of public accommodation.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE VII. PRIVATE CLUBS

Sec. 86-35. Distinctly private entities.

(a) The director shall maintain a registry of institutions, clubs or places of accommodation certified by him to be distinctly private in character. The provisions of this section shall not apply to any institution, club or accommodation included in the registry for so long as it is so included. Any certification that a club or institution is distinctly private in character shall be valid for a period of three years from the date of the initial certification, but may be renewed upon application of the registrant for successive additional periods of three years.

(b) The director, upon application of any institution, club or accommodation, shall certify an applicant for inclusion in the registry if the applicant proves, by a preponderance of the evidence, that it is distinctly private in character. A club or institution is distinctly private in character if either:

(1) a. Its services, accommodations, advantages, facilities, or privileges are not offered or available to the public or to a wide sector of the public exclusive of a class or classes discrimination against whom is prohibited by this article;

b. It is not an agent or creature of the state or its agencies or subdivisions, and its activities do not constitute state action;

c. It does not advertise for or engage in general solicitation to attract potential customers, patrons, or members;

d. It does not fulfill a vital community role affected with public interest;

e. Its activities are not subsidized directly or indirectly by public funds, nor does it otherwise receive governmental support;

f. It does not exist or operate for commercial or business purposes;

g. It generally denies its services, accommodations, advantages, and privileges and participation in its activities, meetings, and social functions to all but members and their guests;

h. Its membership is of moderate size, and it is not connected with a larger institution, club or accommodation that is a public accommodation;

i. Its organizers had the intention of constituting a private institution, club, or accommodation;

j. Its organizational structure has not been altered since passage of the Civil Rights Act of 1964 in an attempt to avoid the applicability of that act, or since the effective date of the ordinance from which this article was derived, in an effort to avoid the applicability of this article;

k. Its members have a nexus of common interest;

l. Its membership policies include an element of exclusiveness based on one or more criteria other than membership in a class against whom discrimination is prohibited by this article; and

m. It does not offer or constitute facilities, sponsor activities, or create an environment where business deals are often made and personal contacts valuable for business purposes, employment, and professional advancement are formed; or

(2) Its character as an institution, club, or association is such that, under the constitutional doctrines of freedom of association (including expressive association) and privacy prevailing in the law at the time of the hearing, the constitution of this state or of the United States requires that this section not be applied against it.

(c) An application to be certified for inclusion in the registry shall be in writing on a form prepared by the director and shall include all information reasonably determined by the director to be necessary or useful to consideration of the application. Each application shall be signed by a duly authorized officer or agent of the applicant who shall attest by oath or affirmation to the truth of its contents.

(d) Upon receipt of an application, the director shall assign it a date and time for public hearings which shall be not sooner than four weeks and not later than six weeks from the date of receipt of the application. Notice of the application and the hearing, in a standard form which shall be prescribed by the director, shall be published in the official journal by the applicant and at its expense at least three times so that the first publication shall be not more than 28 and not less than 21 days and so that the last publication shall be not more than seven and not less than two days prior to the hearing. Any interested person may appear at the hearing to support or oppose the application, subject to such reasonable regulations and time limits as the director, or his designee as presiding officer, may prescribe. The hearing shall be conducted in accordance with the provisions of the Administrative Procedures Act with respect to the rules of evidence.

(e) Within seven days of the conclusion of the hearing, the director shall notify the applicant and any interested person who has requested such notice of his determination to grant or deny certification for inclusion in the registry. The decision of the director shall be in writing, shall state the reasons for his determination, and shall become effective as a certification seven days after it is assigned by the director.

(f) On his own motion, or upon the written complaint of any interested person, the director may initiate proceedings for the removal of any institution, club or accommodation from the registry. The motion or complaint by which removal proceedings are commenced shall be in a verified writing and shall set forth facts sufficient to show that the respondent institution, club or accommodation is not distinctly private in character. The motion or complaint shall be signed by the complainant or a duly authorized agent of the complainant who shall attest by oath or affirmation to the truth of its contents.

(g) Upon the receipt of filing in the office of the director of such a motion or complaint, the director shall assign it a date and time for public hearings which shall be not sooner than four weeks and not later than six weeks from the date of receipt of the complaint. Notice of the complaint and the hearing, in a standard form which shall be prescribed by the director, shall be published in the official journal by the complainant and at its expense at least three times so that the

first publication shall be not more than 28 and not less than 21 days and so that the last publication shall be not more than seven and not less than two days prior to the hearing. Any interested person may appear at the hearing to support or oppose the complaint, subject to such reasonable regulations and time limits as the director, or his designee as presiding officer, may prescribe. The hearing shall be conducted in accordance with the provisions of the Administrative Procedures Act with respect to the rules of evidence. Within seven days of the conclusion of the hearing, the director shall notify the complainant, and any interested person who has requested such notice, of his determination to grant or deny continued certification for inclusion in the registry. The decision of the director shall be in writing, shall state the reasons for his determination, and shall become effective seven days after it is signed by the director. If a decision to deny continued certification becomes effective, the respondent shall be removed from the registry immediately.

(h) An institution, club or accommodation may at any time apply or reapply to be certified for inclusion in the registry notwithstanding the fact that it may have been denied certification or been removed from the registry in the past. A motion or complaint seeking removal of a club or institution from the registry shall be denied without a hearing by the director if a motion or complaint initiated by the same person and setting forth the same or substantially similar facts has been denied within the past six months.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-36. Exclusion based on disability.

Nothing in this article shall be construed to prohibit a parading carnival krewe or other parading organization from excluding a person with a disability from riding on a float in a parade; provided, that an organization not exempt under the provisions of section 86-35(b) may exclude such a person only if the director certifies in writing, after consultation with the officers of the organization, with the excluded person, and with the director of health, that permitting the person with a disability so to ride would create a public safety or health hazard or would cause an unreasonable burden of expense to the parading krewe or other organization. Any legitimate increase in the cost of procuring insurance may be considered when determining the reasonableness of proposed discrimination. This section shall not authorize the exclusion of any person from the other benefits of membership or participation in such a krewe or organization not exempt under the provision of section 86-39(b), on the basis of disability.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-37. Operation of article with respect to other laws.

(a) The provisions of this article, for so long as the same remain in effect, shall supersede with respect to discrimination in "public accommodations," any and all conflicting or incompatible provisions or applications of provisions of articles IV through VI. No respondent or defendant shall be required to defend against or shall be held accountable or guilty of both a charge of discrimination in public accommodations under this article and a charge of discrimination in public accommodations under articles IV through VI if the charge arises out of the same alleged discriminatory practice or acts, it being the intent of this chapter that any discrimination in public accommodation which is unlawful under both this article and article IV shall be treated as a violation of this article until such time as a complaint has been filed pursuant to this article.

(b) The provisions of subsections (e), (f) and (g) of section 86-35 shall apply to this article.

(c) No complaint shall be filed in municipal court regarding discriminatory acts or practices which are prohibited by this article until such time as a complaint has been filed pursuant to the requirement of this article and a final disposition of the matter has been made by the commission.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-38. Specific enforcement provisions; carnival parade organizations.

(a) The violation of this article by carnival krewes, parading carnival organizations, other organizations organized or existing for the primary or dominant purpose of observing or participating in the carnival season and clubs or insti-

tutions which fall within the definition in section 86-1.5, and which would not otherwise than under the provisions thereof be considered as a "public accommodation" under this article shall not constitute a misdemeanor and shall not be subject to prosecution or punishment in the municipal court, unless the violation arises from the breach of a final, definitive and enforceable order of the commission or of an order embodying a conciliation agreement or unless the violation is the willful resistance, prevention, impedance, or interference with the commission or any of its agents or representatives in the performance of its duty under this article. Notwithstanding any other provisions of this article to the contrary, any violation of this article by carnival krewes, parading carnival organizations, other organizations organized or existing for the primary or dominant purpose of observing or participating in the carnival season and clubs or institutions which fall within the definition in section 86-1.5 and which would not otherwise than under the provisions thereof be considered as "public accommodation" under this article, or by the officers or agents of any body in their capacity as such, which does constitute a misdemeanor, shall be punishable only by a mandatory fine of not less than $100.00 and not more than $500.00 and shall not be punishable by imprisonment.

(b) Neither the city nor the commission shall be obligated to initiate or intervene in any proceedings in any court for the purpose of enforcing this article or a final order of the commission against any carnival krewes, parading carnival organizations, other organizations organized or existing for the primary or dominant purpose of observing or participating in the carnival season and clubs or institutions which fall within the definition of section 86-1.5 and which would not otherwise than under the provisions thereof be considered as a "public accommodation" under this article, unless the violation arises from the breach of an order embodying a conciliation agreement or unless the violation is the willful resistance, prevention, impedance or interference with the commission or any of its agents or representatives in the performance of its duty under this article. Nothing in this section shall preclude any nonmunicipal party in interest from initiating such proceedings.

(c) Whenever a court of competent jurisdiction issues an order of the court for the enforcement of this article or of an order of the commission directed to a carnival krewe, parading carnival organization, other organizations organized or existing for the primary or dominant purpose of observing or participating in the carnival season, or clubs or institutions which fall within that definition in section 86-1.5, then during any period when such order is effective, such organization shall not be granted a permit for a carnival parade during the carnival season, as required by section 34-2, unless a sworn affidavit is submitted with the permit application by the captain, president or officer of commensurate rank within the organization stating that the court order has been complied with and will continue to be complied with.

(d) Whenever a court of competent jurisdiction issues an order of court for the enforcement of this article or of an order of the commission directed to a carnival krewe, parading carnival organization, other organizations organized or existing for the primary or dominant purpose of observing or participating in the carnival season, or clubs or institutions which fall within that definition in section 86-1.5, such organization shall not be granted an alcoholic beverage permit unless a sworn affidavit is submitted with the permit application by the captain, president or officer of commensurate rank within the organization stating that the court order has been complied with and will continue to be complied with. Subsection (d) shall not apply to an alcoholic beverage permit for a business which either holds or is applying for an occupational license issued by the department of finance, nor to temporary alcoholic beverage permits.

(e) The submission of a sworn affidavit pursuant to subsections (c) or (d) of this section which contains false statements, in addition to being subject to any other penalty provisions for the making of false affidavits, shall be considered a misdemeanor punishable by a mandatory fine of not less than $100.00 and not more than $500.00. (M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 86-39. Preservation of traditional roles in carnival parading organization.

(a) The council finds that:

(1) Carnival organizations have traditionally engaged in parades, processions, tableaux, and other activities that have, in large part, a dramatic theatrical character, involving elaborate costumed role-playing by participants who frequently imitate or portray the behavior of ancient or medieval court life;

(2) Although such traditional carnival activities most often involve participation by both women and men, the participants traditionally engage in courtly roles defined and differentiated according to the sex of the participants, as was the case in ancient and medieval court life;

(3) The preservation of the traditional mimicry of court life is worthy of preservation as a significant aspect of the common cultural heritage of all the people of the city;

(4) Most women and men in the city who wish to find ways of participating in carnival organizations can do so, either as members or consorts of members in the traditional krewes that restrict membership to one or the other sex, or in one of the less traditional organizations which admit both sexes to membership; therefore, the council finds that the traditional organizations by restricting their membership to one sex do not significantly impair the ability of women or men to make business contacts, secure professional advancement, or otherwise participate in trade, commerce, the professions, or public life in general.

(b) Nothing in this article shall prohibit any carnival krewe, parading carnival organization, or other organization organized or existing for the primary or dominant purpose of observing or participating in the carnival season from restricting its membership or any class of membership to classes based on sex.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

ARTICLE VIII. SEXUAL HARASSMENT

Sec. 86-40. Prohibition of sexual harassment.

It is unlawful to harass a person because of that person's sex. Sexual harassment is a form of discrimination under Title VII of the U.S. Civil Rights Act of 1964, as amended and the Louisiana Employment Discrimination Law, LA Rev. Stat. § 23:332 et seq. All persons have a right to work in an environment free form sexual harassment. The City of New Orleans prohibits harassment of any person by any municipal officer, agent, elected official, employee, municipal agency or department on the basis of sex or gender. While in the course and scope of employment, all municipal officers, agents, employees, elected officials, municipal agencies and departments are prohibited from sexually harassing any person, regardless of any employment relationship.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-41. Definitions and examples.

(1) *"Sexual harassment"* is unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature when:

a. Submission to such conduct is made either explicitly or implicitly or as a condition of an individual's employment;

b. Submission to or rejection of such conduct by an individual is used as the basis for employment decisions affecting the individual; or

c. Such conduct has the purpose or effect of unreasonably interfering with an individual's work performance or creating an intimidating, hostile, or offensive work environment. For purposes of this section, an intimidating, hostile, or offensive work environment exists when sexual harassment is so pervasive or severe that it creates an intimidating, offensive workplace and alters the conditions of employment.

(2) Examples of conduct and descriptions of behavior that may constitute sexual harassment include, but are not limited to:

a. *Verbal:* Sexual innuendos, suggestive comments, insults, humor and jokes about sex, anatomy or gender specific traits, sexual propositions, threats, repeated requests for dates, statements about other employees that are of a sexual nature, or quid pro quo offers wherein an employee is in a management or supervisory role and states or implies that an employee must consent to unwelcome sexual advances in exchange for some economic benefits such as promotions, merits, job offers, or job retention. Quid pro quo sexual harassment also occurs when rejection of sexual advances would result in adverse decisions affecting an employee's job status (e.g., demotion, termination, denial of employment).

b. *Non-verbal:* Suggestive or insulting sounds ("catcalls" or "kissing" noises), leering, obscene gestures, and sexually suggestive body gestures.

c. *Visual:* Posters, signs, pin-ups or slogans of a sexual nature, viewing pornographic materials or websites.

d. *Physical:* Touching, unwelcome hugging or kissing, pinching, brushing the body, any coerced sexual act or actual assault;

e. *Text/electronic:* Electronically sending messages with sexual content, including pictures and video, the use of sexually explicit language, harassment, cyber stalking and threats via all forms of electronic communication (e-mail, text/picture/video messages, intranet/on-line postings, blogs, instant messages and social network websites).

(3) Although severe and overt forms of sexual harassment may be readily apparent, some sexual harassment is subtle and varies depending on interpretation and perception. Review of sexual harassment allegations are subject to the standard of what offends a "reasonable person."
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-42. Initiation procedures.

(1) Employees, whether classified or unclassified, may report to his/her respective department's human resources manager and/or appointing authority any allegations or complaints of sexual harassment. Reporting a harassment complaint or discussing a complaint with the human resources manager and/or appointing authority will result in an investigation. If the accused harasser is the human resources manager or the appointing authority for a given agency, the complaint shall be submitted to the asst. CAO of the personnel division. If the accused harasser is an elected official that is governed by this Code, the complaint shall be submitted to the New Orleans Inspector General.

(2) A sexual harassment complaint may be an oral complaint initially but must be followed by a sexual harassment or discrimination complaint form. The complaint should include the date(s) the incident(s) occurred, name(s) of the individual(s) involved, name(s) of witness(es), and a detailed description of the incident(s).

(3) When the employee completes the sexual harassment or discrimination complaint form, a human resources manager and/or appointing authority must sign the form. Only signatures from human resources manager and/or appointing authorities are to be entered on the sexual harassment or discrimination complaint form in the space designated for this purpose. In the event that the accused harasser is the human resources manager or the appointing authority for a given agency, the complaint should be signed by the asst. CAO of the personnel division.

(4) After an employee has signed the sexual harassment or discrimination complaint form, the original should be sent to the personnel division, chief administrative office. The sexual harassment or discrimination complaint form will become part of the complaining employee's personnel file located in that department and the civil service department employee record.

(5) Employees also have the right to file a complaint with the equal employment opportunity commission (EEOC), the human relations com-

mission or to pursue other legal action, in addition to their rights under this policy. The EEOC provides employees 300 days to file an official complaint.

(6) A supervisor, manager, or employee who ignores a request to cease harassing behavior or who engages in perpetuating sexual harassment in the agency, shall face disciplinary action.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-43. Investigation procedures.

(1) The human resources manager or appointing authority who is told or otherwise becomes aware of harassment that may be occurring is obligated to immediately report the allegation or complaint to the alleged harasser's appointing authority, or initiate an investigation if the alleged harasser works within the same department or agency as the complainant

a. The appointing authority shall, as soon as practically possible, notify the alleged harasser that he or she has been named in a harassment complaint and that an investigation is being conducted.

b. The appointing authority shall, as soon as practically possible, assess the need to relocate the complainant and/or the alleged harasser to another work unit. The complainant shall not be given work or placed at a work location that is, in any way less than the classification and pay grade of his or her current position.

(2) The appointing authority along with the human resources manager shall initiate an investigation of the complaint or allegation as promptly as possible while ensuring that the investigation is fair, complete and impartial. It shall be the city's objective to complete all investigations within 60 days unless compelling circumstances require additional time. An extension beyond 60 days will require a written request to the asst. CAO of the personnel division prior to the expiration of the investigation. The written statement of the complainant or witness constitutes the initiation of the 60-day investigation period.

a. The investigation shall include interviews with the complainant and the alleged harasser and any other person(s) who is believed to have information directly related to the complaint or the investigation.

b. To the extent permitted by law, the appointing authority shall assure compliance with any of the complainant's privacy rights, as well as the alleged harasser's rights.

c. The appointing authority shall maintain records of the investigation and provide said records to other investigatory bodies and law enforcement agencies upon request.

d. The appointing authority shall provide a written summary of the allegations and the findings of the investigation to the city attorney for review. Said findings shall also be subsequently provided to the complainant and the alleged harasser; if the investigation substantiates the complaint of harassment, the complaint and findings may be referred to the office of the district attorney.

(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-44. Resolution procedures.

(1) If the investigation substantiates the complaint of harassment, the appointing authority shall make a determination regarding the appropriate resolution, including disciplinary action. Before making the decision to impose disciplinary action, the appointing authority shall ensure that the harasser has been given the opportunity to review the results of the investigation, has received an explanation of the evidence obtained, and been given an opportunity to provide the appointing authority a response regarding the findings. The appointing authority shall take the alleged harasser's response into account before taking final action in determining if harassment occurred and in the resolution of the complaint.

(2) In addition to any disciplinary action taken, substantiated complaints shall be noted in the harasser's official personnel file. If the harasser

continues on as an employee, the disciplinary action shall be taken into consideration during the harasser's performance evaluation.

(3) If during the course of the investigation, the investigator determines that the allegation or complaint of sexual harassment was reported to either the human resources manager or appointing authority, and that individual failed to promptly report the allegation or complaint, then disciplinary action may be initiated against the human resources manager or appointing authority. A substantiated finding of failure to report an allegation or complaint of sexual harassment and resulting disciplinary action shall also be made a part of the human resources manager or appointing authority's official personnel file.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-45. Discipline.

In addition to any other discipline that may be applicable, including but not limited to the rules of the civil service commission, any person who violates sections 86-40, 86-43, or 86-46 as provided herein, may be subject to a fine of up to $500.00 per offense. Each violation may constitute a separate offense. Any discipline imposed by the city shall be separate and apart from any penalty imposed by any fines or penalties imposed by a court of law or a state or federal agency.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-46. Retaliation.

Retaliation against an employee who brings a complaint of harassment, reports an allegation of sexual harassment on behalf of another, or participates in an investigation of a harassment complaint is prohibited and may result in disciplinary action. Similarly, allegations or complaints of sexual harassment that have been determined to be fabricated, knowingly false, or otherwise baseless shall require the appointing authority to impose disciplinary action against the complainant found to have filed the improper complaint, as well as any other employees that participated in the false allegation or complaint.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-47. Sexual harassment training.

(1) Each public employee shall receive a minimum of one hour of education and training on preventing sexual harassment during each full calendar year of his/her public employment or term of office.

(2) Appointing authorities or their designees shall make use of standardized education and training materials developed by the department of state civil service; additional materials may be approved by the CAO. The education or training required may be received in person or via the Internet.

(3) Appointing authorities or their designees shall require supervisors to receive additional education and training.

(4) Each public servant shall be notified of the mandatory training requirement. Appointing authorities or their designees shall be responsible for maintaining records of the compliance of each public servant in the agency with the mandatory training requirement.
(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Sec. 86-48. Mandatory reports.

Each appointing authority shall compile an annual public record report by February 1 of each year that contains the below information for the prior calendar year and submit said report to the CAO and city council:

(1) Certification of compliance with the requirements herein including the number and percentage of public servants who have completed the training requirements;

(2) The number of sexual harassment complaints received;

(3) The number of complaints which resulted in a finding that sexual harassment occurred;

(4) The number of complaints that resulted in discipline or corrective action; and

(5) The amount of time it took to resolve each complaint.

(M.C.S., Ord. No. 27795, § 1, 6-7-18)

Chapter 87

DOMESTIC PARTNERSHIPS*

Sec. 87-1. Purpose.
Sec. 87-2. Definitions.
Sec. 87-3. Limitation of rights and duties.
Sec. 87-4. Informational materials.
Sec. 87-5. Domestic partnership; establishment.
Sec. 87-6. Qualifications.
Sec. 87-7. Filing; filing fees and recordkeeping.
Sec. 87-8. Ending domestic partnerships; notice of termination.
Sec. 87-9. City health care plan.

*__Editor's note—__The provisions set out herein formerly comprised ch. 86, art. V, §§ 86-161—86-168. Such provisions were essentially repealed by M.C.S., Ord. No. 19,278, § 1, adopted June 17, 1999, and enacted as a new ch. 87 by § 2 of such ordinance.

Sec. 87-1. Purpose.

(a) The city's interest in strengthening and supporting all caring, committed and responsible family forms has led to the definition and recognition of the domestic partnership as a relationship and family unit that is deserving of official recognition.

(b) This article establishes a mechanism for the public expression and documentation of the commitment reflected by the domestic partnership, whose members either cannot or choose not to marry.

(c) It is appropriate and fair that certain of the societal privileges and benefits now accorded to members of a marriage be extended to those who meet the qualifications of domestic partnership. The mechanism established by this article will facilitate the definition of those entitled to such privileges.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-2. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Basic living expenses means the cost of basic food and shelter. The individuals need not contribute equally or jointly to the cost of these expenses as long as they agree that they are both responsible for the cost.

Declaration of domestic partnership is a form provided by the clerk of council wherein two people agree to be jointly responsible for basic living expenses incurred during the domestic partnership, and recites that all the other requirements for domestic partnership are met.

Domestic partners are two people who have chosen to share one another's lives in an intimate and committed relationship of mutual caring, who live together and have signed a declaration of domestic partnership in which they have agreed to be jointly responsible for basic living expenses incurred during the domestic partnership, and have established their partnership under section 87-5(a).

Live together means that two people share the same living residence. It is not necessary that the right to possess the residence be in both names. Two people may live together even if one or both have an additional separate living residence. Domestic partners do not cease to live together if one leaves the shared living residence but intends to return.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Cross reference—Definitions generally, § 1-2.

Sec. 87-3. Limitation of rights and duties.

(a) Neither this article nor the filing of a statement of domestic partnership shall create any legal rights or duties from one of the parties to the other greater than the legal rights and duties specifically created by this article or other ordinances or resolutions of the city council which specifically refer to domestic partnership.

(b) Once a domestic partnership ends, the partners will incur no further obligations to each other under this article.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-4. Informational materials.

The clerk of council shall prepare informational materials which shall describe ways in which committed individuals may qualify pursuant to this article, and the benefits derived as a result of qualification. The informational material shall state that the city is not providing legal advice and assumes no responsibility for the accuracy of the information provided.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-5. Domestic partnership; establishment.

(a) Domestic partners may establish the existence of their domestic partnership by executing and filing an original declaration of domestic partnership with the clerk of council and paying the required registration fee. The city chief administrative officer will provide the partners with a certificate showing that the declaration was filed.

(b) The clerk of council shall only accept for filing declarations of domestic partnerships submitted by domestic partners who have a residence in the city, or where one of the partners works in the city.

(c) A partner may amend a declaration of domestic partnership filed with the clerk of council at any time to show a change in his primary residence address.

(d) No person who has created a domestic partnership may create another until six months after a statement of termination has been signed and executed and filed with the clerk of council.

(e) Anyone who requires a person to provide evidence of the existence of a domestic partnership must accept as complete proof a certified copy of a declaration of domestic partnership.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-6. Qualifications.

To become domestic partners, neither person may be married, the two may not be related in any way which would bar marriage in this state, and both must be 18 or older. Any different domestic partnership of which either was previously a member must have ended more than six months before the new declaration of domestic partnership was signed, but this requirement will not apply where the earlier domestic partnership ended because of the death of one of its members.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-7. Filing; filing fees and recordkeeping.

(a) The clerk of council shall keep a record of all declarations of domestic partnerships, amendments to declarations of domestic partnerships and all notices of termination received by the clerk of council. These records shall be maintained so that amendments and notices of termination are filed with the declaration of domestic partnership to which they pertain.

(b) The clerk of council shall charge a fee of $35.00 for filing of a declaration of domestic partnership and shall charge a fee of $7.00 for providing certified copies of declarations, amendments and notices of termination. There will be no charge for filing of amendments or notices of termination.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-8. Ending domestic partnerships; notice of termination.

(a) A domestic partnership ends when:

(1) The partners no longer meet one or more of the qualifications for domestic partnership;

(2) One partner sends the other a written notice that he or she has ended the partnership; or

(3) One of the partners dies.

(b) When a domestic partnership ends, the partners must execute a notice of termination naming the partners and stating that the partnership has ended (hereinafter notice of termination). The notice of termination must be dated and signed under penalty of perjury by at least one of the partners. The notice of termination must be notarized and filed with the clerk of council.

(c) A domestic partner who has given a copy of a declaration of domestic partnership to any third party in order to qualify for any benefit or right must, whenever the domestic partnership ends, give that third party a copy of the notice of termination. If that partner has died, the surviving partner must give the notice of termination to those third parties whom she or he knows were given a copy of the declaration by the deceased party in order to qualify for a benefit or right. The notice and a copy of the death certificate must be sent within 60 days of the termination of the domestic partnership.
(M.C.S., Ord. No. 19,278, § 1, 6-17-99)

Sec. 87-9. City health care plan.

Same-sex domestic partners of city employees who have entered into a domestic partnership pursuant to section 87-5 of the City Code, but who may not enter into a contract of marriage because of provisions of Louisiana Civil Code article 89, prohibiting marriage between persons of the same sex, are eligible as are their dependents, to re-

ceive benefits from the city's health care plan. This section does not overrule any necessary federal tax law provisions or requirements deemed appropriate by the chief administrative officer of the city.
(M.C.S., Ord. No. 20361, § 1, 9-20-01

Chapter 88

INTELLECTUAL PROPERTY

Article I. In General

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Sec. 88-2. Definitions.
Sec. 88-3. Applicability.
Sec. 88-4. Condition of employment.
Sec. 88-5. Existing intellectual property.
Sec. 88-6. Disclosure.
Sec. 88-7. Relationships between employees and the city regarding business transactions.

Article II. Ownership of Inventions and Copyrightable Works

Sec. 88-8. Inventions.
Sec. 88-9. City of New Orleans' rights to inventions.
Sec. 88-10. Transfer of city's rights to inventions.
Sec. 88-11. Assignment of city's patent rights.
Sec. 88-12. Copyrights.
Sec. 88-13. City's ownership rights in copyrightable works.
Sec. 88-14. Transfer of city's rights to copyrightable works.
Sec. 88-15. Trademarks.
Sec. 88-16. Inventions transferred by the city.
Sec. 88-17. Distribution of net income from inventions and copyrightable works.
Sec. 88-18. Timing of distributions.
Sec. 88-19. Method of payments.
Sec. 88-20. Independent efforts.
Sec. 88-21. Assignment/development.
Sec. 88-22. Royalty sharing.

ARTICLE I. IN GENERAL

Sec. 88-1. Introduction.

Technology can be defined as the application of science, especially to industrial or commercial objectives. Some resultant legal vehicles (intellectual properties) of the pursuit of these objectives are patents, copyrights and trademarks. The purpose of this policy is to create a means for the City of New Orleans, as well as employees of the city, to financially benefit from intellectual properties initiated by city employees and to define the means to distribute profits from these properties. (Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

City shall mean the City of New Orleans, a political subdivision of the State of Louisiana.

City of New Orleans Research and Technology Advisory Committee (NORTAC) means the committee which will make recommendations to NOBC for the administration of this policy. This committee is responsible for making recommendations to NOBC for matters relating to intellectual properties, including requirements for disclosures relating to intellectual property which must be made to the city. This committee will consist of the chief administrative officer of the City of New Orleans, the executive director of the New Orleans Building Corporation, the director of the City of New Orleans Mosquito and Termite Control Board, the city attorney, and one or more directors of intellectual properties from local universities appointed by the mayor.

City-supported invention shall mean an invention created in whole or in part with city funds, on city time, or with city materials.

Creator shall mean a city employee who creates a work or invention.

Development expenses shall mean all moneys paid for goods and services to protect, develop, and/or enhance the marketability or any other aspect of an invention, including, but not limited to, patent filing fees, costs incurred in securing or protecting patent rights, marketing expenses, patent maintenance fees, consulting fees, prosecution expenses, expenses incurred in dealing with equity interests, travel, attorneys' fees and research costs. Not included as developmental expenses are salaries and general operating expenses of city administrative personnel.

Employee means all full-time and part-time employees of the city, including all civil service and appointed employees.

Gross revenue shall mean:

(1) Proceeds from the exploitation or manufacture, sale, lease, transfer, or other conveyance of an invention by an owner thereof, and

(2) License fees, option fees, running royalties, and equity interests paid by a licensee for right to exploit an invention, except that equity interests, or any portion thereof, shall not be considered "gross revenue" unless and until the equity interests, or any portion thereof, are sold.

Intellectual property means any and all inventions, copyrightable works, and trademarks.

Invention means any discovery, invention, process, method, composition of matter, machine, article of manufacture, know-how, design, model, technological development, biological material, strain, variety, culture of any organism, or any improvement of these items.

Net income shall mean gross revenues less all development expenses for a work or invention and its improvements and/or production.

New Orleans Building Corporation (NOBC) means the public benefit corporation incorporated in the State of Louisiana to plan, develop, operate, manage and promote real and intellectual property owned by the city or NOBC. NOBC will be the managing agency to work with the creators of intellectual properties and the city to promote the development of intellectual properties by the employees and contractors of the city. Any or all rights to intellectual properties in which the city asserts its interest or acquires any interests to

manufacture, distribute, license, assign, or otherwise use or transfer the intellectual property can be assigned to NOBC. NOBC and its subsidiaries will adhere to this policy in the distribution of proceeds from intellectual property. NOBC is authorized to and shall be responsible for publishing any and all forms or other documents required by this policy.

Work means any work of authorship protectable under copyright law.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-3. Applicability.

(a) This policy applies to all employees. Employees receiving proceeds pursuant to this policy shall continue to do so after termination of employment. Upon the employee's death, proceeds will revert to the employee's heirs or legatees. If this substitution results in additional responsibility or expense to either the city or the employee's heirs or legatees, adjustments of financial distributions will be agreed upon by both parties by mutual consent.

(b) The city may require any persons or businesses doing business with the city to adhere to this policy.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-4. Condition of employment.

This policy, as amended from time to time, shall become a part of the conditions of employment of every employee, whether such employee was employed before or after its adoption.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-5. Existing intellectual property.

This policy shall be applied to intellectual property created prior to the date of its adoption and to intellectual property created after the date of adoption.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-6. Disclosure.

Every employee or person to whom this policy applies shall disclose to the city all city-supported inventions created by the employee or person.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-7. Relationships between employees and the city regarding business transactions.

Employees are required to receive written permission from the city or NOBC or its subsidiaries before soliciting or participating in any business relating to any intellectual property subject to this policy. Each employee's prospective interest or relationship to the business involved will be subject to review for compliance with the city code of ethics.
(Ord. No. 20,098, § 1, 4-5-01)

ARTICLE II. OWNERSHIP OF INVENTIONS AND COPYRIGHTABLE WORKS

Sec. 88-8. Inventions.

Because significant city resources could lead to inventions, the city has an important interest in coordinating the activities of employees in this area. In recognition of this interest, and of the interests of the employees, the city will administer its rights to inventions in the manner described below.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-9. City of New Orleans' rights to inventions.

An invention shall be assigned to city when it is a city-supported invention or when it is created by a person or business and the person or business agrees in writing to the application of this policy. In return, the creator shall share in the proceeds therefrom as described in section 88-17, subject to prior commitments to outside sponsoring agencies when applicable.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-10. Transfer of city's rights to inventions.

The city, after consultation with the creator, may in its discretion and upon such terms as it deems fit, cause any rights that the city may have in an invention to be transferred to the creator, in exchange for the city's income rights as set out in section 88-16 below. The city shall, in such case,

execute all documents necessary to enable the creator to undertake protective measures and to make arrangements for the development and commercial exploitation of the invention.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-11. Assignment of city's patent rights.

The city may choose to assign its patent rights to NOBC or its subsidiaries for development, commercialization or negotiation for sale of the patent. NOBC and its subsidiaries will adhere to this policy in the distribution of proceeds.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-12. Copyrights.

Works that are protectable by copyright belong, under copyright law, to an employer if they are created by an employee within the scope of his or her employment or are otherwise deemed works made for hire under copyright law. Some specific types of works that may be protectable by copyright are books, poems, plays, songs, catalogs, photographs, computer programs, advertisements, labels, movies, maps, drawing, sculptures, prints and art reproductions, game boards and rules, and recordings.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-13. City's ownership rights in copyrightable works.

Every work or part thereof that is created by an employee within the scope of his or her employment, or that is otherwise deemed a work made for hire under copyright law, or that is created by any person who agrees to the application of this policy is owned by the city.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-14. Transfer of city's rights to copyrightable works.

The city may, after consultation with the creator, entirely in its discretion and upon such terms as it deems fit, cause its rights with respect to any copyrightable work to be transferred or licensed to anyone as permitted by law.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-15. Trademarks.

Trademarks adopted and used by the city in connection with its activities, services and products shall be the exclusive property of the city.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-16. Inventions transferred by the city.

In every case in which the city transfers any right in an invention to the creator, the creator may secure whatever legal protection may be available. The city shall execute all documents necessary to enable the creator to proceed. Where the city transfers its rights in accordance with this policy, unless some other distribution is agreed to with the creator, the city shall be entitled to 15 percent of net income in excess of $10,000.00 derived from the exploitation of the transferred rights. The city's share of the net income shall be distributed as set forth in section 88-17.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-17. Distribution of net income from inventions and copyrightable works.

With regard to any invention or copyrightable work owned by the city, net income less any foreseeable development expenses the city deems necessary will be distributed as follows:

Fifty percent to the city, to be shared equally between the City of New Orleans General Fund and the NOBC or its subsidiaries (if applicable); and 50 percent to the individual creator(s).

(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-18. Timing of distributions.

Distributions of income will be made quarterly on or before May 1, July 1, October 1, and January 1 of each year, to allow the city to account for all applicable licensing and related expenses. In instances where funds are held because of foreseeable development expenses or where expenses exceed revenue, the creators will be sent an accounting indicating the amounts received for the current three-month period and

the amount of the anticipated expense or deficit. Once expenses are known with certainty, any excess withholding will be distributed. Income earned before the enactment of this policy will be paid on a quarterly basis at a rate of not less than 20 percent of the total amount due.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-19. Method of payments.

Payments of the amounts allocated to the creator(s) must be made to the creator(s) individually and cannot be assigned by the creator(s) to other parties or entities. The only exception will be that after the creator's death, upon appropriate notification by the personal representative of the creator's estate, and with court approval, if necessary, payment will be made to the creator's heirs or legatees. An IRS Form 1099 or other appropriate form will be issued to the creator(s) for their share of revenues. The city will not advise individuals on the tax consequences of these payments. In the event there are multiple creators for an invention or work, the creators' share will be divided equally among all creators. If the creators agree among themselves to a different division, the city or NOBC or its subsidiaries must be notified in writing at least one month prior to the date of the first income distribution as to the agreed-upon division of income.
(Ord. No. 20,098, § 1, 4-5-01)

Sec. 88-20. Independent efforts.

Any royalty(ies) accruing to the city, generated by any endeavor, including but not limited to those generated by manufacturers, distributors, or in-house sales, will be shared pursuant to a negotiated agreement approved either by the employee's appointing authority and the NOBC director or the chief administrative officer. Prior to soliciting business through outside royalty agreements, a city employee must obtain approval to do so from the chief administrative officer.
(M.C.S., Ord. No. 26738, § 1, 12-1-15)

Sec. 88-21. Assignment/development.

Inventions, copyrights, trademarks, and/or outside marketing opportunities may either be developed, manufactured, and distributed within the city or offered to and managed for development through outside corporate partners or other organizations or entities better suited for the manufacturing/distribution process. Decisions relative to outside assignment shall be made collaboratively by the employee's appointing authority and the NOBC director or the chief administrative officer, and the developer/distributor of the product or process.
(M.C.S., Ord. No. 26738, § 1, 12-1-15)

Sec. 88-22. Royalty sharing.

Royalties generated by any works, copyrights, trademarks, licensing, manufacturing, distribution, direct or indirect sales, and/or equity agreements between manufactures and the city will be shared between/among the parties involved. The NOBC director or the chief administrative officer, the appointing authority, city employee(s) involved, and any other involved parties will collaborate to confect an agreement detailing the sharing of royalties.
(M.C.S., Ord. No. 26738, § 1, 12-1-15)

Chapter 89

RESERVED

Chapter 90

LAW ENFORCEMENT*

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*__Cross references—__Alcoholic beverages, ch. 10; enforcement of the alcoholic beverage chapter, § 10-4; warning citations for juveniles, § 102-1.

Sec. 90-155. Crisis intervention.
Sec. 90-156. Sexual assault response.
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Sec. 90-164. Compliance reviews and audits.
Sec. 90-165. Training academy.

ARTICLE I. IN GENERAL

Sec. 90-1. Notice of escapees.

(a) The official charged with the custody of any criminal defendant, including juveniles, held as a result of any municipal, state or federal charge or conviction shall, upon learning of the escape from custody of such individual, immediately notify the chief of police, the district attorney, and the department of corrections, when appropriate.

(b) The notice shall be in writing and shall contain the following information: Name, race, sex, age, charge for which the individual was held in custody, the name and location of the institution from which the individual escaped and the date and time of the escape.

(c) Whoever violates this provision shall be subject to imprisonment of not more than 90 days, or a fine of not more than $100.00, or both.
(Code 1956, § 50-16)

Secs. 90-2—90-35. Reserved.

ARTICLE II. POLICE*

DIVISION 1. GENERALLY

Sec. 90-36. Worker's compensation.

(a) The terms and provisions of the Louisiana Employers' Liability Act, 23:1021 to 23:1351 shall apply to all members of the police force of the city who shall be killed or permanently disabled or die as a result of such injuries received while in line of duty.

(b) The payments to be made under this section to the members of the police force of the city, or the dependents thereof, shall be made in the same manner and form and under the same terms and conditions as are provided for in the Louisiana Employers' Liability Act and amendments thereof.

(c) Nothing in this section shall apply to anyone except a duly appointed and qualified member of the police force of the city, nor shall the provisions of this section apply except in cases where the death or permanent disability is a direct result of injuries or sickness received by such member of the police force whilst in line of duty.
(Code 1956, §§ 49-19—49-21)

Sec. 90-37. Disposition of unclaimed property.

(a) All property not needed in evidence, remaining unclaimed for the period of 90 days in the possession of the department of police, shall be disposed of by the bureau of purchasing either by the sale of such property and the net proceeds thereof turned over to the board of trustees of the police pension fund or by allocating such property to the various departments of the city to be used by such departments.

(b) No property shall be disposed of under this section until the department of police has advertised twice within 30 days in a newspaper published in the city that the department of police has within its possession the property to be disposed of. The advertisement shall describe the property and shall call upon the owner to present himself, prove ownership, and pay the accrued storage charges, as well as the cost of advertisement.
(Code 1956, § 49-10)

State law references—Contraband disposition, R.S. 14:402, 15:41, 40:1786, C.Cr.P. arts. 167 and 891; disposition of money used as evidence, R.S. 15:32; noncontraband stolen, seized or relinquished property, R.S. 33:2333(B)(2).

Sec. 90-38. Police news media pass; failure to return.

Any person to whom an official police news media pass has been issued by the department of police shall return such pass to the department of police within five days after the person's employment is terminated by the accredited news gath-

*Charter references—Police pension fund, § 4-305; department of police, §§ 4-501 to 4-503.

Cross references—Police asset seizure fund, § 70-211; criminal evidence and forfeiture fund, § 70-326 et seq.; warning citations for juveniles, § 102-1.

State law references—Police pension fund, R.S. §§ 33:2281—33:2304; police, R.S. §§ 33:1941—33:1945 and 33:2218.1 et seq.; peace officer standards and training, R.S. 40:2401 et seq.

ering agency named on the pass. Failure to return such pass within the five-day period shall constitute a violation of this section.
(Code 1956, § 49-10.1)

Sec. 90-39. Concealed handgun permit.

(a) The superintendent of police shall have the authority to grant to an individual a concealed handgun permit that shall be valid within the boundaries of the city and shall be subject to any restrictive stipulations in the permit. The issuance of a concealed handgun permit shall not be unreasonably withheld.

(b) The superintendent of police shall determine who is entitled to receive a concealed handgun permit and may promulgate and adopt, in addition to the requirements of this section, reasonable standards and regulations with respect to the issuance and use of such permits. Such standards and regulations shall not be in conflict with this section or with R.S. 40:1379, 40:1379.3 or other applicable state law.

(c) Prior to approval of the issuance of a concealed handgun permit, the superintendent of police shall conduct a criminal record check in accordance with the standards and regulations promulgated by the superintendent and which shall include fingerprinting of an applicant and processing of such fingerprints through the Federal Bureau of Investigation.

(d) The superintendent of police shall charge and collect a nonrefundable permit application fee of $50.00 from each person upon submission of an application for a concealed handgun permit.

(e) Upon approval of an individual's application and prior to the issuance of a concealed handgun permit, the applicant shall:

(1) Pay a permit issuance fee of $75.00;

(2) Deliver to the superintendent of police satisfactory proof of the issuance of a policy of comprehensive liability insurance providing coverage for the city and the police department with an aggregate limit of liability of not less than $500,000.00 per occurrence; which policy of insurance shall be maintained by the permittee in full force and effect during the validity of the concealed handgun permit or any renewal thereof; and

(3) Execute and deliver to the superintendent of police an agreement, in a form approved by the superintendent, to indemnify and hold harmless the city and the police department from any and all liability to any person, entity or property whatsoever resulting from the issuance of such permit or from any negligent or intentional act involving any handgun carried by the permittee.

(f) The superintendent of police shall not authorize issuance of a concealed handgun permit to any person who has been convicted of a felony under the laws of the United States, the State of Louisiana or any other state or country, regardless of the present status of such conviction nor to any person for any reason listed as automatic disqualifiers in the police department concealed handgun permit standards and regulations.

(g) Concealed handgun permits shall only be valid for a period of one year from the date of issuance.

(h) Concealed handgun permits may be renewed on a yearly basis upon approval by the superintendent of police in accordance with the requirements of this section. An additional fee of $75.00 shall be charged and collected upon approval and renewal of a concealed handgun permit. Any application submitted within 30 days of the expiration of the term of a concealed handgun permit shall be considered an application for renewal of such permit; however, such renewal shall be valid only from the date of its issuance for a period of one year thereafter; the permit shall expire on the applicant's date of birth.

(i) The superintendent of police shall, at his discretion, have the authority to revoke any concealed handgun permit. Cancellation of any liability policy issued pursuant to the requirements of this section shall automatically serve to revoke the concealed handgun permit of the individual required to maintain such policy in full force and effect.

(j) For the purposes of this section, "handgun" is defined as meaning any pistol or revolver originally designed to be fired by the use of a single hand and which is designed to fire or is capable of firing fixed carrying ammunition.

(k) No provision of this section or of any regulation of the superintendent of police shall be construed to require persons holding bona fide law enforcement officer commissions to possess a handgun permit.

(l) Any person in possession of a concealed handgun permit issued by the superintendent who uses a handgun in a manner not directly related to the stipulations set forth in the permit shall be fined not more than $500.00, or imprisoned for not more than six months, or both.

(m) All concealed handgun permits previously issued by the police department are rescinded upon the effective date of this section.
(M.C.S., Ord. No. 17,252, § 1, 11-2-95)

Sec. 90-40. Use of riot control agents.

(a) For purposes of this section, "riot control agent" means tear gas and other chemical compounds intended to disable individuals temporarily by causing irritation to the eyes, mouth, throat, lungs, or skin.

(b) It shall be unlawful for any employee of the New Orleans Police Department, or any other law enforcement officer operating within the City of New Orleans, to use or dispense a riot control agent against any person for any purpose, except in circumstances where its use is reasonably necessary to prevent threat of imminent loss of life or serious bodily injury, or to dislodge a barricaded violent criminal suspect.

(c) Any law enforcement agency dispensing a riot control agent in accordance with section 90-40(b) shall clearly and audibly announce the impending use of the riot control agent and provide adequate opportunity to retreat prior to deployment.
(M.C.S., Ord. No. 28499, § 1, 9-17-20)

Sec. 90-41. Minimum requirements of the crime laboratory and evidence division.

(a) The City of New Orleans shall maintain a fully operational crime laboratory within Orleans Parish, which includes, without limitation, the following units, each of which shall maintain appropriate industry accreditation and meet applicable Federal Bureau of Investigation Quality Assurance Standards:

a. Advanced crime scene investigation;

b. DNA testing and databasing and

c. Firearms and toolmarks.

(b) The department of police shall use best efforts to extract DNA from firearm casings wherever possible, including through swabbing and, if appropriate, soaking technology.

(c) The crime laboratory shall maintain separate credentials as a forensic science testing and calibration laboratory.
(M.C.S., Ord. No. 28953, § 1, 3-10-22)

Editor's note—M.C.S., Ord. No. 28953, § 2, states: The accreditation requirements imposed herein shall be satisfied no later than December 31, 2025.

Sec. 90-42. Sexual assault collection kit testing.

(a) The department of police and partner agencies shall track all sexual assault collection kits ("kits") received, including any backlog of kits never submitted for testing or analysis, and test all kits with probative value.

(b) On the first Friday of every third month (March, June, September, and December), the department of police shall submit to the clerk of council a report documenting the following, to appear on the council's next regular meeting agenda:

a. The number of kits processed, including testing and analysis, since the prior quarterly report;

b. The number of new kits received since the prior quarterly report;

c. The total number of backlogged kits in the police department's possession that have yet to be tested or analyzed;

d. The number reported under subsection 90-42(c) in the prior quarterly report; and

e. The percent increase or decrease in the backlog since the prior quarterly report.

(c) By March 1 annually, the superintendent of police shall certify in a communication to the clerk of council that the department of police has fulfilled all other reporting requirements, including La. R.S. 15:624, regarding sexual assault collection kits and related offenses. This certification shall include a copy of all such reports submitted during the preceding year.

(d) DNA profiles of sexual assault victims shall not be entered into criminal databases, including as defined in La. R.S. 15:603.
(M.C.S., Ord. No. 28953, § 1, 3-10-22)

Sec. 90-43. Staffing and operations of public integrity bureau and internal affairs.

(a) The New Orleans Police Department (NOPD) shall ensure that a sufficient number of well-trained staff and necessary resources are assigned and available to the public integrity bureau (PIB) to complete and review thorough and timely misconduct investigations of personnel, which shall occur in accordance with requirements of applicable law.

(1) To be considered timely, all administrative investigations conducted by PIB shall be completed within the time limitations mandated by state law, as provided in La. R.S. 40:2531.

(2) Where an allegation is sustained, NOPD shall have a reasonable time to determine and impose the appropriate discipline, except in documented extenuating circumstances.

(3) All administrative investigations — defined to include assignment, investigation, review, and final approval — shall be subject to appropriate interruption and tolling periods as necessary to conduct a concurrent criminal investigation as provided by law.

(b) NOPD shall designate an office outside of PIB and the PIB director, whom NOPD officers may file complaint allegations in reference to those officers staffing PIB.

(c) Officers newly promoted to the rank of sergeant and/or lieutenant shall, within a reasonable time frame, serve a rotation in PIB.

(d) NOPD shall provide opportunities for officers to rotate into PIB on a voluntary basis, as well as opportunities for those serving within PIB to rotate into other offices within NOPD.

(e) The NOPD shall promulgate rules and regulations implementing the requirements of this section, including, without limitation, policies providing a "reasonable time" for purposes of determining and imposing discipline, and policies providing for the rotation of supervisory officers within PIB.
(M.C.S., Ord. No. 29132, § 1, 8-4-22)

Editor's note—M.C.S., Ord. No. 29132, § 1, adopted August 4, 2022, set out provisions intended for use as § 90-42. To prevent duplication of section numbers, and at the editor's discretion, these provisions have been included as § 90-43.

Sec. 90-44. Prohibited disclosure of crime- and accident-scene images and video footage.

(a) No member of the police department nor any person acting on the city's behalf may share or disclose photographs or video footage depicting a crime or accident victim in cases involving death or serious bodily injury, unless the image or footage of the victim is obscured or redacted or the disclosure is expressly authorized by this section.

(b) The city may disclose unredacted images or footage of crime or accident victims:

(1) To other law-enforcement agencies;

(2) Under circumstances reasonably related to the investigation of the incident or the apprehension of the perpetrator;

(3) For internal law-enforcement training purposes;

(4) At the request of the victim or, if the victim is deceased, the victim's family;

(5) In connection with a court proceeding; or

(6) As required by the Public Records Law or other applicable law.

(M.C.S., Ord. No. 30476, § 1, 10-9-25)

Secs. 90-45—90-85. Reserved.

DIVISION 2. SPECIAL POLICE FORCE*

Sec. 90-86. Deputizing persons not members of police force.

(a) The superintendent of police of the city may deputize and issue warrant of deputization, without pay, to persons not members of the police force of the city, such as private security guards and governmental employees, to exercise limited police power in accordance with the standards and regulations as set forth by the superintendent of police.

(b) The superintendent of police, in reviewing the licensing requirements regarding private security guards, shall utilize all available crime information networks, including the Louisiana Automated Computerized Criminal Histories (LACCH) system, to check the background of each applicant.

(Code 1956, § 49-15; M.C.S., Ord. No. 18,700, § 1, 4-16-98; M.C.S., Ord. No. 28882, § 1, 12-16-21)

Sec. 90-87. Convicted felons not to be deputized.

The superintendent of police shall not appoint or deputize any person who has been convicted of a felony under the laws of the United States, the state or any other state or country.

(Code 1956, § 49-16)

Sec. 90-88. Deputized persons not entitled to public employee benefits.

Deputized persons who are not governmental employees shall not be entitled to public employee benefits for such services and shall not be paid from public funds when exercising such powers with respect to privately owned property or places. Governmental employees exercising such powers in the course and scope of their governmental employment shall be entitled only to the compensation and benefits of their governmental employment.

(Code 1956, § 49-17; M.C.S., Ord. No. 28882, § 1, 12-16-21)

Sec. 90-89. Rules to govern exercise of powers of deputized person.

The superintendent of police shall prescribe the rules and regulations governing the exercise of police powers by persons so deputized and may suspend or cancel their deputization at his discretion.

(Code 1956, § 49-18)

Sec. 90-90. Annual license fee for deputized persons.

The superintendent of police shall charge and collect a license fee of $50.00 from each person applying to be deputized in accordance with the provisions of section 90-86 upon receipt of the application and shall charge and collect beginning on or before February 11, 1980, and each succeeding year thereafter, an annual renewal license fee of $50.00 from each such deputized person. A deputized person who fails to pay his annual renewal license fee on or before February 11, 1980, and each succeeding year thereafter shall be charged a delinquent fee of $10.00 in addition to the annual license fee. A deputized person transferring his license from one company to another during a calendar year shall be charged a transfer license fee of $10.00. Exceptions for payment of these fees will be employees of federal, state and city government and retired police officers.

(Code 1956, § 49-19)

Sec. 90-91. Effective date.

The superintendent shall promulgate regulations for special police pursuant to section 2-1000 of the Code of the City of New Orleans and shall submit the proposed regulations to the Council

*__Charter reference—__Special police, § 4-502(2).

__Cross reference—__Officers and employees, § 2-326 et seq.

of the City of New Orleans. Until such regulations have become effective pursuant to section 2-1000, the superintendent of police shall not deputize any of the following persons who are not members of the police force of the city to exercise limited police power: employees of the department of public works, the department of sanitation, the New Orleans Office of Public Safety and Homeland Security, or the mosquito, termite, and rodent control board.
(M.C.S., Ord. No. 28882, § 1, 12-16-21)

Secs. 90-92—90-120. Reserved.

DIVISION 3. FEES

Sec. 90-121. Payment of police officers for secondary employment or private details.

(a) *Definitions.* The following terms, when used in this article, shall have the meanings assigned in this section unless the context clearly indicates otherwise.

(1) *Secondary employment* means security or police-related work performed for compensation by an NOPD officer or employee during his or her off-duty hours. Formerly known as "paid details," or simply "details."

(2) *Time-based jobs* means those secondary employment opportunities that require a person, place, or thing to be secured for a known or estimated duration or period of time. This includes but is not necessarily limited to facility or area security jobs, such as retail, neighborhood patrol, race route security, and special events.

(3) *Major special events* shall include any event held at the Ernest N. Morial Convention Center, Fair Grounds Race Course, Mahalia Jackson Theater, New Orleans Arena, Saenger Theater, Superdome, and UNO Lakefront Arena with an expected attendance of at least 2,000 persons. This shall not limit the authority of the city council or any other authorized entity to declare special events for the purpose of police secondary employment.

(4) A. *Holiday premium* means a flat rate paid in addition to an officer's hourly rate of pay for time-based secondary work and to be effective on specified holidays and days of officer high demand. Officers will earn the hourly holiday premium for all hours of every continuous shift that begins on a specified holiday, even if the shift carries over past midnight. Shifts that begin before midnight the day before a specified holiday and carry over past midnight into the holiday will not be eligible for the holiday premium. This premium applies to all officers regardless of rank, and does not incur any administrative fee for the customer.

B. *Specified holidays* are:

i. New Year's Day.
ii. Martin Luther King's Birthday.
iii. Mardi Gras.
iv. Good Friday.
v. Memorial Day.
vi. Juneteenth.
vii. Independence Day.
viii. Labor Day.
ix. Veterans Day.
x. Thanksgiving Day.
xi. Christmas Day.

C. *Days of officer high demand* are:

i. Lundi Gras.
ii. Friday after Thanksgiving.
iii. Christmas Eve.
iv. New Year's Eve.

(b) *Fee and officer pay schedule for time-based jobs.*

Rank	*Officer Paid per Hour*	*OPSE Admin Fee*	*Customer Pays per Hour*
Maj./Cmdr./Capt.	$47.00	$8.00	$55.00
Lieutenant	$43.00		$51.00
Sergeant (or full time Lt. working down in Sgt. role)	$41.00		$49.00
Patrol Officer	$37.00		$45.00
Full time employed Lt. or Sgt. working in a non-supervisory role	$37.00		$45.00
Reserve officer any rank, working in a non-supervisory role	$37.00		$45.00

(1) An additional amount of $17.00 per officer per hour, regardless of the rank of the officer, shall be added to the customer's hourly price and passed on fully to the officer working that shift on specified holidays as well as on days of officer high demand. The holiday premium will only be paid for shifts beginning on a specified holiday - not an alternate or observed holiday - or day of officer high demand.

(2) The office of police secondary employment may charge the customer an administrative fee of $8.00 per hour. No other fee may be charged to the officer for secondary employment.

(3) Any fees collected in excess of the amount actually required for operation of the office of police secondary employment shall be proportionally refunded to the officers annually. If a surplus is collected, the office of police secondary employment shall reduce the administrative fee to the percentage that would have provided sufficient funding, rounded up the nearest whole percentage.

(4) The administrative fee may be waived by ordinance of the city council.

(5) Exceptions to the pay schedule may be approved by ordinance of the city council.

(6) Secondary employment assignments that are required in order to comply with an order or requirement put in place by the City of New Orleans shall not be subject to the standard pay schedule.

(7) Assignments requiring specialized certificates beyond that required of all police officers shall not be subject to the pay schedule. Rates shall be determined based on the level of certification.

(8) For any pre-existing, single-officer details that are paid at a rate lower than the schedule rate, officers may elect to continue working the assignment at the lower rate.

(Code 1956, § 49-22; M.C.S., Ord. No. 25428, § 1, 8-8-13; M.C.S., Ord. No. 29246, § 1, 11-3-22)

Sec. 90-122. Use of funds collected.

All fees charged for services pursuant to section 90-121 hereinabove shall be payable to the City of New Orleans and shall be collected by the department of finance and deposited, pursuant to City Code Section 70-415.245, into the police secondary employment fund and used to fund operations of the office of police secondary employment.

(Code 1956, § 49-23; M.C.S., Ord. No. 25428, § 1, 8-8-13)

Sec. 90-123. Records and research reports—Fees.

(a) Subject to the restrictions contained in section 90-124, the department of police shall charge and collect fees for copies of reports and research of records in accordance with the following schedule:

(1) Criminal history record inquiry:

a. Search for record, none found $5.00

b. Record located, information provided. . $5.00

c. Search of records and issuance of letter of good conduct for visa and other purposes . . . $25.00

(2) Photostat of official police offense report:

a. One through ten pages in length $25.00

b. More than ten pages in length, each additional

page $1.00

(3) Photostat of official police accident report $5.00

(4) Official police investigation photographs, per print $10.00

(5) Fingerprint search or fingerprinting $25.00

(6) Computer printout request:

a. Minor adjustments to existing program (two man-hours or less required):

1. Small file (under 1,000,000 records) $150.00

2. Large file (over 1,000,000 records) $200.00

b. Major adjustments to existing program (more than two man-hours required):

1. Small file (under 1,000,000 records) $250.00

2. Large file (over 1,000,000 records) $300.00

c. New program:

1. Small file (under 1,000,000 records) $250.00

2. Large file (over 1,000,000 records) $300.00

d. Multiple programming for separate runs against different files will be the accumulation of the above schedule.

(7) Use of available records for informational research study $100.00

(8) Accident report processing fee. $15.00

(b) The fees established in this section shall be charged and collected in the amounts specified for each item in the schedule set forth hereinabove provided that if applicable and valid state law imposes a higher or lower maximum fee for any one of the items in the foregoing schedule, the fee charged and collected for that item shall be the higher or lower maximum fee.
(Code 1956, § 49-23.1)

Sec. 90-124. Same—Restrictions.

Research reports or copies of records may be withheld from the public when the original records are being held by the police department as evidence in the investigation or prosecution of a criminal charge until after such original records have been used in open court or the criminal charge or investigation has been finally disposed of. Further, research reports or copies of records may be withheld from the public to protect from disclosure information obtained from the Federal Bureau of Investigation and designated by such bureau as "confidential.
(Code 1956, § 49-23.2; M.C.S., Ord. No. 27465, § 1, 7-27-17)

Sec. 90-125. Same—Official agencies exempt from payment of fees; copies for victim's relative.

(a) Official agencies of the city, state and federal government shall be furnished such copies and research reports as they may request without payment of fees set forth in section 90-123; provided, however, that such agency is legally entitled thereto, and that making such information available to the particular agency does not violate good criminal investigation practice or procedure.

(b) In the case of a violent crime such as, but not limited to, purse snatching, burglary, armed robbery, rape or homicide, the victim, or in the case of homicide the victim's closest relative, may request one copy of the police report without payment of fees outlined in section 90-123. In no case shall this privilege be extended to furnishing to the victim more than one free copy of the police report, neither shall this privilege be extended to any representative of the victim, except as stated above in the case of homicide.
(Code 1956, § 49-23.3)

Sec. 90-126. Same—Monthly report and remittance.

The department of police shall submit a monthly report to the director of the department of finance, showing all fees collected pursuant to the provisions of section 90-123, and all monies shown as collected in such monthly report shall

be remitted by the department of police to the director of the department of finance, to be credited to the general revenues of the city.
(Code 1956, § 49-23.4)

Secs. 90-127—90-150. Reserved.

DIVISION 4. CONSENT DECREE REFORMS

Sec. 90-151. Purpose and scope.

(a) The purpose of this division is to codify and permanently implement the successful reforms instituted by the police department as part of the 2013 consent decree between the city, including the department of police ("department"), and the United States Department of Justice, resolving civil rights violations identified in *United States v. City of New Orleans*, Civil Action No. 12-1924, United States District Court for the Eastern District of Louisiana. This division shall apply to the city and to all employees of the department, including both police officers and civilian employees.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-152. Public integrity bureau.

(a) The department shall maintain a public integrity bureau that conducts criminal and administrative investigations of department employees. The bureau shall maintain a specialized unit to investigate uses of force in accordance with this division.

(b) The public integrity bureau shall track, in a readily accessible manner, all complaints against department employees initiated by the public and by department supervisory personnel. Complaint data tracked shall include all relevant dates including, but not limited to, the complaint receipt date; investigation commencement and completion dates; dates the complainant and officer were notified of the result of the investigation; hearing dates; and discipline dates.

(c) The public integrity bureau shall notify and consult with local, state, and federal law enforcement partners when an investigation indicates criminal conduct within Orleans Parish by a department employee or by a non-employee law enforcement officer.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-153. Use of force.

(a) The department shall maintain a force investigation team within the public integrity bureau that conducts investigations of certain uses of force by police officers as required by this division or the department's rules and regulations. The department shall provide in-service training when an employee is initially assigned to the force investigation team and thereafter provide annual in-service training to all force investigation team employees.

(b) "Use of force" is any physical effort to compel compliance by an unwilling subject above unresisted handcuffing including, but is not limited to, pointing a firearm at a person. A "serious use of force" includes the use of lethal force; a critical firearm discharge; use of force resulting in serious physical injury or hospitalization; neck holds; use of force that causes or results in a loss of consciousness; canine bites; an application or series of applications of a Taser longer than 15 seconds; and any strike, blow, kick, Taser application, or similar use of force against a handcuffed individual.

(c) The department shall establish and maintain policies governing the use of force by its officers and outlining responsibilities for conducting investigations of uses of force in accordance with this section.

(1) The policies shall, at a minimum, define the terms "use of force" and "serious use of force" consistent with this section; identify different levels of uses of force; require the police officer who uses force to notify the officer's supervisor of the use of force; and require the police officer who uses force to prepare and submit a written force statement describing the use of force.

(2) The force investigation team shall investigate serious uses of force; uses of force indicating apparent criminal conduct by a department police officer; uses of

force by a department police officer with a rank higher than sergeant; all incidents during which an individual has died while in, or as an apparent result of being in, the custody of department personnel; and uses of force as assigned by the superintendent, the superintendent's designee, or the public integrity bureau. The policies shall require that supervisors suspend a use of force investigation and notify the public integrity bureau upon the discovery of any evidence indicating apparent criminal conduct by a department employee.

(3) The force investigation team shall respond to the scene of a serious use of force incident, secure evidence, and conduct interviews, including interviews of department officers, victims, and witnesses. The team shall review the use of force reports and submit a criminal investigation report and administrative investigation report to a designated employee of the public integrity bureau.

(4) The department's homicide section shall not investigate any lethal use of force by a police officer.

(d) The department shall maintain a use of force review board composed of senior department personnel to review all serious uses of force and any investigation conducted by the force investigation team. The department shall maintain policies that define the procedures of the board. All reviews by the board shall conform to all applicable department rules and regulations.

(1) Members of the board shall include, but are not limited to, three members equivalent to the rank of deputy superintendent, one of which must be the deputy superintendent over the investigating bureau or his designee, and the commander of the academy or his designee. The superintendent may assign a proxy for board members equal to the rank of the member being replaced.

(2) The use of force review board shall:

(i) Review all serious use of force investigations to ensure the reports are complete and the report findings are supported by a preponderance of the evidence;

(ii) Order additional investigations as it deems necessary;

(iii) Determine whether a use of force violates department policy or implicates any issues with police training, equipment, or tactics

(iv) Document its findings in writing; and

(v) Refer all policy violations for disciplinary action and refer all other issues to the proper unit or division within the department for resolution.

(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-154. Serious discipline review board.

(a) The department shall maintain a serious discipline review board composed of senior department personnel and maintain policies that define the procedures of the board. The purpose of the board is to serve as a quality control mechanism for the department.

(b) The superintendent shall appoint the voting members of the board, which shall include, at a minimum, three officers of the department with ranks equivalent to the rank of deputy superintendent.

(c) All reviews by the board shall conform to all applicable department rules and regulations. The serious discipline review board shall:

(1) Review all serious discipline imposed by the department;

(2) Identify whether inadequate supervision or a failure in the chain-of-command occurred and caused or enabled the violation warranting serious discipline, and provide corrective actions for any systemic issue identified in its review;

(3) Review any non-serious disciplinary actions, as requested by the superintendent;

(4) Order any additional investigations as it deems necessary;

(5) Document its findings in writing; and

(6) Refer all policy violations for disciplinary action, including violations for insufficient supervision, and refer all other issues to the proper unit or division within the department for resolution.

(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-155. Crisis intervention.

(a) The department shall maintain a crisis intervention team of department employees who are specially trained to manage persons experiencing a mental health crisis. Certified team members may be incorporated into any unit in the department.

(b) The department shall provide in-service training when an employee is initially assigned to the crisis intervention team and thereafter provide annual in-service training to all crisis intervention team employees. Crisis intervention training shall include appropriate techniques for response to an incident in which a person is experiencing a mental health or behavioral crisis, including for example, intense feelings of personal distress, obvious changes in functioning, or catastrophic life events.

(c) The department shall ensure that crisis intervention training is available to all police officers.

(d) The department shall establish and maintain a crisis intervention policy that comports with best practices.

(e) The department shall collect data on crisis intervention team responses in accordance with its crisis intervention policy, and publicly report the collected data, aggregated as necessary to protect privacy.

(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-156. Sexual assault response.

(a) The department shall establish and maintain policies governing its response to incidents of sexual assault that reflect the provisions of this section, are victim-focused, require cooperation and relationship-building with victim advocates, and connect sexual assault victims with available services and resources.

(b) The department shall provide in service training when an employee is initially assigned to the sex crimes unit and thereafter provide annual in-service training to all sex crimes unit employees. The in-service training for the sex crimes unit shall include, but is not limited to, the following:

(1) Realistic dynamics of sexual assault, including issues related to response to trauma and delayed reporting;

(2) Overcoming the perception of false or unfounded allegations when investigating non-stranger sexual assault;

(3) Drug and alcohol-facilitated sexual assault;

(4) Skills-based training on interviewing incorporating role-playing or other problem-based learning techniques;

(5) Report writing;

(6) Discovery; and

(7) Collection, preservation, selection, and submission of evidence in sexual assault cases.

(c) The department shall ensure all police officers receive annual in-service training on responding to sexual assaults.

(d) The department shall ensure that employees do not categorize a sexual assault incident as miscellaneous or non-criminal when completing an incident report without the express written approval of the special victims division commander.

(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-157. Domestic violence response.

(a) The department shall maintain policies governing incidents of domestic violence that reflect the provisions of this section and prioritize victim safety and protection.

(b) The department shall track and publicly report the disposition of domestic violence investigations and outcomes of domestic violence cases when the data is made available by the relevant criminal justice agency.

(c) The department shall provide in-service training when an employee is initially assigned to the domestic violence unit and thereafter provide annual in-service training to all domestic violence unit employees. The in-service training for the domestic violence unit shall include, but is not limited to, the following:

(1) Advanced, skills-based instruction in evidence collection;

(2) Victim assistance; and

(3) Interview training incorporating role-playing or other problem-based learning techniques.

(d) The department shall provide all police officers not assigned to the domestic violence unit with annual in-service training on domestic violence response.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-158. Community- and problem-oriented policing.

(a) The department shall promulgate rules and regulations for the implementation of community- and problem-orientated policing strategies that reflect the provisions of this section.

(b) The department shall provide both initial and annual in-service training on community policing and problem-oriented policing to all police officers.

(c) The department shall meet regularly with the communities it serves and shall establish partnerships with community members to promote cooperation, mutual respect, and trust.

(d) The department shall assess the effectiveness of the partnerships and strategies required by this section on a regular basis and publicly report its findings.

(e) Every three years the department shall conduct or commission a comprehensive community survey regarding the community's experiences with and perceptions of the department. The department shall publish the findings of the survey.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-159. Officer assistance program.

(a) The department shall establish and maintain an officer assistance program to provide a centralized and comprehensive range of mental health services, which shall comport with best practices and current professional standards, including: readily accessible confidential counseling services with both direct and indirect referrals; critical incident debriefings and crisis counseling; peer counseling; and stress management training.

(b) The officer assistance program shall:

(1) Have mental health professionals on staff;

(2) Provide comprehensive mental health and support services to department employees and their families; and

(3) Offer services to assist employees and their families in managing stress associated with traumatic incidents.

(c) The department shall ensure that use of officer assistance program services is confidential and private to the maximum extent practicable.

(d) The department shall promote awareness and encourage employees to use officer assistance program services.

(e) The department shall maintain an electronic early intervention system, or an equivalent process to support officers with effective supervision and to help supervisors and managers identify employees in need of guidance, counseling, support, or intervention.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-160. Body worn cameras.

(a) The department shall establish and maintain policies regarding body worn cameras that comply with the provisions of this section.

(b) All department police officers assigned to district patrol functions shall use body worn cameras, or similar technology when responding to a call for service.

(c) The department shall ensure its police officers are sufficiently trained before issuing the officer a body worn camera. The department shall train and require its officers to activate the body worn camera when doing so will:

(1) Enhance safety and public trust;

(2) Document the relevant statements and events of an incident;

(3) Preserve evidence;

(4) Allow for self-critique and evaluation during officer training; or

(5) Promote constitutional policing.

(d) The body worn camera policy shall include provisions regarding supervisory review of, and retention of and access to body worn camera recordings.

(e) No department employee shall use a body worn camera in a manner that would infringe on a citizen's reasonable expectation of privacy, when avoidable.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-161. Secondary employment.

(a) There shall be an office of police secondary employment that is independent of the police department and has the sole authority to arrange and coordinate off-duty secondary law enforcement employment by department employees. The office shall maintain a fully auditable payment process and perform all administrative functions related to off-duty secondary law enforcement employment by department employees.

(b) The department shall notify employees of the proper process for working secondary law enforcement employment and any applicable rules regarding secondary employment including possible penalties for violation.

(c) Any department employee working secondary employment shall have the same responsibility to carry appropriate departmental equipment (e.g., police radios) and document activities in the same manner as if the employee were on regular duty, including completing incident, arrest, and use of force reports, and reporting allegations or observations of misconduct.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-162. Transparency.

(a) The department shall post all rules, regulations, and policies on its website; provided that if, in the superintendent's opinion, publication of a specific rule, regulation, or policy comprises a security risk, the department may withhold the rule, regulation, or policy from public review.

(b) The department shall collect and maintain all data and records necessary to facilitate and ensure transparency and public access to information related to departmental decision-making and activities, as permitted by law.

(c) The department shall publish open data sets on its website, including calls for service, body-worn camera metadata, investigatory stops, uses of force, and misconduct complaints.

(d) The department shall maintain a policy facilitating the prompt, proactive release of critical incident video recordings, as permitted by law.

(e) The department shall hold regular organizational meetings using data to track management topics including supervision, misconduct, uses of force, internal audits, and other facets of risk management. The department shall publicly post on its website the data used in these meetings.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-163. Data collection and auditing.

(a) The department shall maintain a professional standards and accountability bureau, or an equivalent unit within the department, that is led by a deputy superintendent or major and sufficiently staffed to carry out its duties.

(b) The professional standards and accountability bureau, or an equivalent unit within the department, shall:

(1) Work with the public to ensure continuing adherence to the principles of constitutional policing and procedural justice;

(2) Develop and conduct regular audits and reviews to assess the department's compliance with its policies and procedures and the requirements of this division;

(3) Develop and follow a schedule for audits and reviews in accordance with a written annual audit program;

(4) Promote constitutional policing, transparency, accountability, community policing, peer intervention, law enforcement, best practices, and organizational management throughout the department; and

(5) Conduct regular audits of the academy's compliance with departmental policy, the academy operations manual, and this division.

(c) The professional standards and accountability bureau, or an equivalent unit within the department, shall have unrestricted access to departmental information except in instances where such access would violate law, compromise an investigation, or endanger an individual's safety.

(d) The professional standards and accountability bureau, or an equivalent unit within the department, shall publicly report all audits, reviews. Twice a year, the bureau, or its equivalent unit within the department, shall provide on a publicly facing website a summary of all current audits, audit results, recommended corrective action, and action taken in response to a recommended corrective action.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-164. Compliance reviews and audits.

(a) Beginning in 2028 and every fourth year thereafter, the department shall engage a third-party audit of the department's compliance with this division, provided that the department has sufficient funding. The audit shall include detailed findings, provide corrective actions or enhancement recommendations, and make recommendations for modification of department policies, procedures, practices, and training. The audit shall be provided to the office of the mayor, and the clerk of council for receipt by the council.

(b) The department shall publicly post the audit report, with redactions only as necessary to protect individual privacy rights, within 60 days of receipt.

(c) The superintendent, along with the chief administrative officer and the director of finance, shall ensure funding for the third-party audit is appropriated to the department in accordance with charter section 6-102.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Sec. 90-165. Training academy.

(a) The department shall have a training academy that is led by a director or post-certified academy commander and which shall staff, at a minimum, an academic director with substantial experience supporting academic institutions or large-scale training programs; and a curriculum development specialist.

(b) Each academy instructor shall possess demonstrable experience and, where applicable, all necessary certifications in the subjects assigned to teach and training on lesson-plan development, methods of instruction, and adult learning theory and techniques in advance of being assigned to teach at the academy. Full-time and adjunct instructors shall attend at least 40 hours of professional development programs annually.

(c) The department shall prepare and publish a complete, written schedule of courses and accompanying calendar in advance of each new recruiting class that includes the start date of the recruit class and the dates and times of the courses. All changes to the schedule shall be

documented and approved in writing by the deputy superintendent or the major responsible for the academy.

(d) The academy shall prepare an annual master training plan that covers recruit and in-service training and provides the total number of academy instructional hours for recruits and the minimum number of hours for each course to be offered.

(e) All police officers shall receive annual in-service training.

(f) The department shall ensure that the academy's courses incorporate the following topics whenever appropriate: de-escalation of force, procedural justice, peer intervention, community policing, and constitutional policing.

(g) All department records regarding an employee's completion of academy courses, class attendance, grades, and internal department training shall be kept in a single, centralized database that is readily accessible for internal review and auditing.

(h) All lesson plans and course materials shall be stored in a secure electronic database that is readily accessible for internal review and auditing.

(i) The academy shall maintain a field training officer program to provide direct field experience to recruits.

(1) No more than one recruit shall be assigned to a field training officer except for limited periods of time when fewer field training officers are available due to a major public event, emergency, or other extenuating circumstances.

(2) The department shall ensure a recruit can provide confidential feedback on the recruit's field training officer and the field training program.

(j) The department shall ensure the academy has adequate training resources, including, but is not limited to, the following:

(1) Body worn cameras, or equivalent technology, for all recruits engaged in practical skills training;

(2) A computer terminal available for use by each recruit;

(3) Adequate physical space for all recruits without exceeding maximum occupancy rules; and

(4) Dedicated space for instructors to work, prepare lesson plans, and grade tests.

(k) The department shall ensure the academy maintains a written recruit manual that is reviewed annually and updated as needed. At a minimum, the recruit manual shall contain:

(1) The disciplinary process for both academic and conduct violations; and

(2) Professional standards for recruits, including, for example, no phone use in the classroom, appropriate attire, on-time arrival, attendance.

(l) The department shall ensure the academy maintains a written operations manual that is reviewed annually and updated as needed.

(m) The department shall ensure the academy maintains written policies for instructors that include timelines for developing, reviewing, and implementing lesson plans and specifies professional development requirements for instructors including classroom decorum. The department shall maintain and make available a current list of professional development opportunities.
(M.C.S., Ord. No. 30523, § 1, 11-13-25)

Chapters 91–93

RESERVED

Chapter 94

LIBRARIES*

Article I. In General

Sec. 94-1. Rules and regulations.
Sec. 94-2. Minor repairs and additions.
Sec. 94-3. Reference of claims to city attorney.
Sec. 94-4. Taking books without permission.
Sec. 94-5. Defacing books, etc.
Sec. 94-6. Monthly financial report.
Sec. 94-7. Annual reports.
Sec. 94-8. Filing reports.
Secs. 94-9—94-35. Reserved.

Article II. Archives Department

Sec. 94-36. Definitions.
Sec. 94-37. City records declared public property.
Sec. 94-38. Transfer of permanently valuable records.
Sec. 94-39. City archives to preserve permanent records.
Sec. 94-40. Two copies of printed material to be filed.
Sec. 94-41. Removal of materials from the city archives.

*Cross reference—Streets, sidewalks and other public places, ch. 146.

ARTICLE I. IN GENERAL

Sec. 94-1. Rules and regulations.

The public library board shall adopt such rules and bylaws, not inconsistent with this chapter, as it may deem advisable.
(Code 1956, § 34-1)

Cross reference—Boards, committees and commissions, § 2-86 et seq.

Sec. 94-2. Minor repairs and additions.

The department of property management shall provide the skilled labor necessary for minor repairs and additions to the library property and the director of that department, or an employee assigned by him shall decide whether the work requested is minor repairs or additions. The material shall be provided by the public library board.
(Code 1956, § 34-11)

Sec. 94-3. Reference of claims to city attorney.

Neither the public library board nor the librarian shall refer to the city attorney issues of lost or damaged books or any similar claim until all amicable means of adjusting such claims have been used without effect.
(Code 1956, § 34-13)

Sec. 94-4. Taking books without permission.

It shall be unlawful to take or carry away from any public library any book, pamphlet, paper or other property of the library without the permission of the librarian or one of his assistants.
(Code 1956, § 34-14)

Sec. 94-5. Defacing books, etc.

It shall be unlawful for any person maliciously or wilfully to cut, write upon, mutilate, deface, tear or destroy any book, periodical, map, newspaper, plate, engraving or any other property belonging to any public library in the city.
(Code 1956, § 34-15)

Sec. 94-6. Monthly financial report.

A copy of the monthly financial report of the treasurer of the public library board will be sent to the director of the department of finance, who will place it before the council.
(Code 1956, § 34-16)

Sec. 94-7. Annual reports.

The board shall transmit an annual report from the board to the city council with a letter containing any comment any member may choose to submit. This report, constituting the annual report of the board, shall be printed in such quantity as the board may consider adequate.
(Code 1956, § 34-17)

Sec. 94-8. Filing reports.

The clerk of the council shall file all reports regarding the public library in a special file.
(Code 1956, § 34-18)

Secs. 94-9—94-35. Reserved.

ARTICLE II. ARCHIVES DEPARTMENT*

Sec. 94-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City archives is hereby designated as the collection of city and territorial documents and public records relating to and having effect upon the public welfare, city government, or history of the city, that is now housed in the Louisiana Division of the New Orleans Public Library.

City records means all papers, correspondence, memoranda, accounts, reports, maps, plans, photographs, sound or video recordings, files, microform, machine readable data or other documents, regardless of physical form or characteristic, which have been or shall be created, received, filed, or recorded by any city office or department or its lawful successor, or officials thereof, in pursuance of law or ordinance or in the conduct, transaction, or performance of any business, duty, or function

*Cross reference—Departments, § 2-431 et seq.

State law references—Preservation of records, R.S. 44:36; records management programs, R.S. 44:410.

of public business, whether or not confidential or restricted in use. City records shall be maintained and disposed of in accordance with the provisions of this article or procedures authorized by it and in no other manner. Library and museum materials acquired solely for reference, exhibit, or display and stocks of publications shall not constitute records for the purposes of this article.
(Code 1956, § 34-19)

Cross reference—Definitions generally, § 1-2.

Sec. 94-37. City records declared public property.

All city records as defined in section 94-36 of this article are hereby declared to be property of the city. No city official or employee has, by virtue of his position, any personal or property right to such records even though he may have developed or compiled them. The unauthorized destruction, removal from files, or use of such records is prohibited.

Sec. 94-38. Transfer of permanently valuable records.

Active records shall be maintained by the issuing department, agency, board, or commission in storage space provided by the agency for the legally mandated period of three years. Records that are older than three years shall be disposed of according to retention schedules prepared and maintained by the city archives or as may be ordered by the state archivist. Disposition of records not included on the retention schedules shall be determined by the responsible agency head in consultation with the city archives staff. Those records deemed to be of permanent value shall be transferred to the city archives for archival retention and preservation. Records deemed not to be of permanent value are to be destroyed or otherwise disposed of within the limits outlined in section 94-37 of this article. Nothing in this section shall be interpreted as overriding the provisions of the Louisiana Public Records Law.
(Code 1956, § 34-21)

Sec. 94-39. City archives to preserve permanent records.

All materials referred to in section 94-37, along with any additional materials transferred permanently to the city archives by the provisions of sections 94-38, 94-40 and 94-41, shall be arranged, described, catalogued, and preserved by the city archives staff according to the standards of the archival profession. The city archives shall provide housing under archival conditions for records in its possession in such manner that those records, unless their use is restricted by law or regulation, are open to the public for research purposes. In no circumstances shall any city records be transferred to private individuals, to public or private collections, historical societies or museums, or to public or private colleges or universities.
(Code 1956, § 34-20)

Sec. 94-40. Two copies of printed material to be filed.

At least two copies of all printed publications issued by or prepared for any department shall be filed with the city archives at the time of publication or distribution.
(Code 1956, § 34-22)

Sec. 94-41. Removal of materials from the city archives.

Upon transfer of material to the city archives in accordance with adopted retention schedules or through other means, the custody of such materials shall thereupon vest in the city archives. No material once relinquished to the city archives may be removed from its jurisdiction except by special authority and consent of the city archives staff. When such removals are authorized, a reliable official must sign a receipt and assume the responsibility for the safe return of such borrowed material.
(Code 1956, § 34-24)

Chapters 95—97

RESERVED

Chapter 98

MANUFACTURED HOMES AND PARKS*

Article I. In General

Sec. 98-1. Definitions.
Sec. 98-2. Occupational license.
Sec. 98-3. Inspector's right of entry.
Sec. 98-4. Nonconforming trailer parks.
Sec. 98-5. Penalty.
Secs. 98-6–98-35. Reserved.

Article II. Use Permit

Sec. 98-36. Application.
Sec. 98-37. Park plan.
Sec. 98-38. Display.
Sec. 98-39. Revocation.
Secs. 98-40–98-60. Reserved.

Article III. Operating Requirements

Sec. 98-61. Location.
Sec. 98-62. Responsibility of owner/operator.
Sec. 98-63. Register of occupants.
Sec. 98-64. Water supply.
Sec. 98-65. Sewage disposal.
Sec. 98-66. Garbage and trash disposal.
Sec. 98-67. Electrical service.
Sec. 98-68. Mechanical service.
Sec. 98-69. Fire prevention and protection.
Sec. 98-70. Animals and pets.

*Cross references–Buildings, building regulations and housing standards, ch. 26; flood damage prevention, § 78-36 et seq.; flood hazard reduction standards for manufactured homes, § 78-133.

State law reference–Manufactured housing, R.S. 51:911.21.

ARTICLE I. IN GENERAL

Sec. 98-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dependent mobile home or trailer means a trailer which does not have a flush toilet and a bath or shower.

Individual trailer site means a plot of ground within a mobile home park designated and intended for the accommodation of one mobile home and designed to provide adequate sewer, water, and electrical connections.

Inspector means a duly authorized agent of the city (department of safety and permits, health, fire, police, sewerage and water board, sanitation, etc.)

Mobile home or *trailer* means any vehicles, covered or uncovered, used for living, sleeping, business or storage purposes, having no foundation other than wheels, blocks, skids, jacks, horses, or skirtings and which is, has been, or reasonably may be equipped with wheels or other devices for transporting the vehicle from place to place, whether by motive power or other means.

Mobile home park; trailer park or court means an area providing spaces where two or more occupied mobile homes can be or are intended to be parked, with flush toilet and bathing facilities provided on the site.

Park or *court* means mobile home park, trailer park or court.

Service building means a substantial permanent building within a mobile home park providing sanitary, laundry and accessory uses maintained for the exclusive usage by the occupants of the trailer park.
(Code 1956, § 36A-1)

Cross reference—Definitions generally, § 1-2.

Sec. 98-2. Occupational license.

Prior to the opening of a mobile home park, the owner or operator shall obtain an occupational license from the department of revenue, which license shall be posted at all times in a conspicuous place. This occupational license shall be renewed annually as required by city ordinances.
(Code 1956, § 36A-14)

Sec. 98-3. Inspector's right of entry.

Upon presentation of proper credentials the inspector may enter at reasonable times any building, structure or premises in the city to inspect the same for compliance with the requirements of this chapter and to perform any other duty imposed upon him thereby.
(Code 1956, § 36A-18)

Sec. 98-4. Nonconforming trailer parks.

Mobile home parks which existed lawfully at the time of adoption of the ordinance from which this chapter was derived (Code 1956, § 36A-17), although nonconforming per the Comprehensive Zoning Ordinance, may continue as a nonconforming use provided such park shall not be discontinued for a period of six months or more.
(Code 1956, § 36A-17; M.C.S., Ord. No. 28312, § 1, 2-6-20)

Sec. 98-5. Penalty.

Any person violating any of the provisions of this chapter shall be fined not less than $20.00 and not more than $100.00 or not more than 90 days' jail sentence, or both, for each and every day that such violation continues.
(Code 1956, § 36A-19)

Secs. 98-6—98-35. Reserved.

ARTICLE II. USE PERMIT

Sec. 98-36. Application.

(a) Applications for use permits for a mobile home park or court shall be filed with and such permits shall be issued by the department of safety and permits. Applications shall be in

writing, in quadruplicate, signed by the owner of the mobile home park or court and shall contain the following:

(1) The name and address of the owner and operator.

(2) The location and description of the mobile home park.

(3) One complete plan of the park drawn to scale, showing compliance with section 98-37.

(4) Plans and specifications, certified by a registered state architect or engineer, of all structures and other improvements constructed or to be constructed within the mobile home park, in accordance with requirements of the city.

(b) No use permit shall be issued for a mobile home park or court if the operator and/or owner of the facility shall have been convicted of a felony within ten years prior to filing an application.
(Code 1956, § 36A-2)

Sec. 98-37. Park plan.

The mobile home park shall conform to the following requirements:

(1) The park site must be properly graded in accordance with the building code to insure proper drainage and complete freedom from standing pools of water.

(2) Individual mobile home sites shall meet the requirements of the comprehensive zoning ordinance and shall be assigned a designated address.

(3) All mobile home sites shall abut upon a park roadway.

(4) All mobile home sites shall abut upon a park roadway. All entrance driveways at the property line of a mobile home park or court shall not exceed 25 feet in width. The paving shall be in accordance with the following specifications: Eight inches reinforced concrete with strength of 3,000 pounds, 28 days. All service alleys, roadways, and walkways within the park or court shall not be less than 25 feet in width to provide adequate circulation for vehicles, and shall be paved in accordance with the following specifications: Six inches compacted shell with one-and-one-half-inch bituminous base course and one-inch bituminous wearing surface; or six inches reinforced concrete with strength of 3,000 pounds, 28 days; and with proper expansion and contraction joints. They shall be well marked in the daytime and lighted at night (with 100-watt lamps at intervals of 100 feet located approximately ten feet from the ground).

(5) Each park serving dependent mobile homes or trailers shall provide service structures to house toilet, bathing, laundry and other sanitary facilities. Service buildings shall comply with the following minimum standards and provide the following minimum facilities:

a. Each service building shall be of permanent construction, in accordance with the applicable codes of the city. The interior surfaces shall be constructed of moisture resistant material which will permit frequent washings and cleaning and disinfecting, as necessary, without excessive deterioration.

b. Each service building as well as its approaches shall be brightly illuminated at all times.

c. All rooms within a service building shall be well ventilated and all openings shall be effectively screened.

d. Service buildings shall have adequate heating facilities to maintain a temperature of 70 degrees during cold weather.

e. A minimum of one toilet shall be provided for every ten females; one toilet and one urinal for every ten males; and two lavatories and two showers for each sex for every two-acre site.

f. Toilet facilities for men and women shall be located in separate buildings or if in the same building shall be separated by soundproof walls.

g. Laundry facilities shall be provided in a separate building and shall furnish a minimum of two laundry trays, with 1½-inch drain; one slop water

closet (service sink) 20 by 20 with a two-inch drain, in a separate compartment; one washing machine shall be provided with an additional machine for every ten mobile home sites; one 50-gallon hot water heater shall be provided with an additional 50-gallon heater for every ten mobile home sites to furnish hot water for laundry and sanitary facilities.

h. A minimum of 150 lineal feet of outside clothes line per ten mobile home sites shall be provided adjacent to the service building. One clothes dryer of 12-pound minimum capacity shall be provided with an additional dryer for every four washing machines. All dryers shall be located in the service building.

(6) Playground area must be provided. Each mobile home park shall provide for the common use of the occupants of mobile home sites therein one or more playground areas. No other use may be made of any area designated as a playground. Such playground shall be located so as to be protected from public streets. A minimum of 100 square feet per trailer site shall be provided for such playground area. Provided, however, that the playground area required herein shall be deemed satisfied if the mobile home park is located within 100 feet of a public playground facility or recreational area otherwise available to the public without the payment of any fee or other charge.

(7) Internal streets within the mobile home park as required by the zoning ordinance shall be paved in accordance with specifications set forth in subsection (4) of this section and shall be provided with adequate drainage so as to prevent standing pools of water. The streets shall be maintained by the owner and/or operator of the park.

(Code 1956, § 36A-4; M.C.S., Ord. No. 21730, § 1, 10-7-04)

Sec. 98-38. Display.

The use permit shall be conspicuously posted in the office of or on the premises of the mobile home park at all times.
(Code 1956, § 36A-16)

Sec. 98-39. Revocation.

A permit to maintain and operate a mobile home park or court shall be revoked when the owner, operator or person in charge has been found guilty by a court of competent jurisdiction of violating any provision of this chapter. After such conviction, the permit may be reissued if the circumstances leading to conviction have been remedied and the park is being maintained and operated in full compliance with the law.
(Code 1956, § 36A-15)

Secs. 98-40—98-60. Reserved.

ARTICLE III. OPERATING REQUIREMENTS

Sec. 98-61. Location.

Mobile home parks may be located only in accordance with the comprehensive zoning ordinance.
(Code 1956, § 36A-3)

Sec. 98-62. Responsibility of owner/operator.

The owner/operator shall be responsible for maintaining the mobile home park, in accordance with all applicable ordinances of the city, and may be held liable for any negligence of operation and maintenance of the park.
(Code 1956, § 36A-12)

Sec. 98-63. Register of occupants.

(a) It shall be the duty of the owner, operator, manager or person in charge of a mobile home park to keep a register containing a record of all mobile home owners and occupants located within the park. The register shall contain the following information:

(1) Name and address of each occupant.

(2) The make, model and year of all automobiles and mobile homes.

(3) License number and owner of each mobile home and motor vehicle by which it is towed.

(4) The state issuing such license.

(5) The dates of arrival and departure of each mobile home.

(b) The person in charge of the park shall keep the register available for inspection, at all times, by law enforcement officers, public health officials and other state or city officials whose duties may necessitate knowledge of the information contained in the register. The register records shall be retained by the park operator for a period of three years following the date of departure of any mobile home.
(Code 1956, § 36A-13)

Sec. 98-64. Water supply.

(a) There shall be provided in each mobile home park an accessible, adequate, safe and potable supply of water, capable of furnishing a minimum of 125 gallons of water per day per mobile home site. Where a public water supply of such quality is available that source shall be used exclusively. No independent water supplies shall be developed or used unless, upon petition by the applicant, the department of health shall, after investigation and hearing find and determine that the proposed source and the works for the production, transmission and distribution of such supply shall produce water meeting minimum standards, and shall grant special permission for the development and use of such independent water supply.

(b) Water service shall be provided for all individual mobile home sites and for all service buildings. The mobile home park shall provide running water service of a pressure of not less than 40 pounds per square inch at all outlets during peak hours (8:00 a.m.—9:00 p.m.) and 60 pounds per square inch thereafter. Facilities and fittings for water service for direct use by mobile homes shall be so located and constructed that they will not be damaged in the movement of the mobile homes and other vehicles having access to the mobile home park.

(c) It shall be unlawful for any person to make any connection between a water distribution system of a mobile home park and any nonpotable, questionable, or unapproved water supply.
(Code 1956, § 36A-5)

Cross reference—Utilities, ch. 158.

Sec. 98-65. Sewage disposal.

(a) Every mobile home park shall be provided with an adequate and suitable sewage collection system. Such sewage collection system shall meet the minimum standards provided for sewage collection systems as established by the sewerage and water board and the department of health, and the sanitary code of the state.

(b) The sewage collection system shall discharge into a public sewer where one is available.

(c) If no public sewer is available to which the mobile home park sewage collection system can be connected a sewage treatment plant or septic tank and drain field shall be provided. The design of such sewage treatment plant or other facility shall be based on the ultimate maximum capacity of the mobile home park. Sewage treatment plant effluents shall not be discharged into any drainage facility of the sewerage and water board. The sewage treatment plant or other sewage disposal facility shall be constructed in such a location and manner it will not create a nuisance or health hazard to the park or to the owners or occupants of any adjacent property. A permit to install a septic tank or other sewage disposal system shall be secured from the department of health.

(d) Each mobile home site shall be provided with a sewer connection of at least four-inch pipe. The connection shall have suitable fittings so that a watertight connection can be made between the mobile home drain and shall be trapped in such a manner as to maintain it in an odor-free and safe condition.
(Code 1956, § 36A-6)

Cross reference—Utilities, ch. 158.

Sec. 98-66. Garbage and trash disposal.

(a) Sufficient containers for the storage, in a sanitary manner, of one week's accumulation of garbage and trash shall be provided in each mobile home park.

(b) Three- or four-cubic yard containers, approved by the department of sanitation, shall be provided for the disposal of garbage and trash.

(c) The unit shall be located in an enclosed, fenced, area, paved with asphalt or concrete in accordance with specifications given in section 98-37(4), provided with coping and floor drain connected to the sanitary sewer. The area shall be maintained free of insects and rodents.

(d) The location of the pick-up area and the containers must be approved by the department of sanitation. No garbage or trash will be picked up at the individual mobile home sites.

(e) It shall be the obligation of the owner/operator of a mobile home park to require that all garbage and trash be disposed of in a sanitary manner and it shall be his responsibility to maintain the park free of litter and debris.
(Code 1956, § 36A-7)
Cross reference—*Solid waste, ch. 138.*

Sec. 98-67. Electrical service.

(a) Standard electrical service shall be provided for each mobile home space and the outlets for such service shall be weatherproofed.

(b) Electrical service shall be provided within the service buildings to accommodate the utilities therein and in accordance with M.C.S., Ordinance No. 11,625.
(Code 1956, § 36A-8)
Cross reference—Electricity utility, § 158-731.

Sec. 98-68. Mechanical service.

Whenever cooking or heating facilities are provided in the individual mobile home, they shall be installed in an approved manner and shall comply with applicable sections of M.C.S., Ordinance No. 11,625, city building code.
(Code 1956, § 36A-9)

Sec. 98-69. Fire prevention and protection.

(a) The mobile home park shall provide, in each service building, one unit of first aid fire extinguishing equipment and an additional unit for every 2,500 square feet in the structure.

(b) Standard fire hydrants and fire service lines shall be installed in such a manner that a fire hydrant shall be located within 300 feet of each mobile home site.

(c) A telephone shall be provided for the convenience of the occupants of the park for emergency calls. The telephone shall be located in a conspicuous, well-lighted area and shall be accessible at all times.

(d) No open fires shall be permitted which would endanger life or property. Portable barbecue pits are permitted on the individual mobile home site. However, such fires shall not be left unattended at any time.

(e) Regulations of the National Fire Protection Association shall prevail except when in conflict with more restrictive municipal ordinances.
(Code 1956, § 36A-10)
Cross reference—Fire prevention and protection, ch. 74.

Sec. 98-70. Animals and pets.

No owner or person in charge of any dog or cat shall permit it to run at large or commit any nuisance within the limits of any mobile home park. Pets other than dogs and cats must be caged or penned at all times. No fowl shall be permitted in a mobile home park.
(Code 1956, § 36A-11)
Cross reference—Animals, ch. 18.

Chapters 99—101

RESERVED

Chapter 102

OFFENSES AND MISCELLANEOUS PROVISIONS*

Article I. In General

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ARTICLE I. IN GENERAL

Sec. 102-1. Juvenile warning notice and juvenile summons.

(a) The purpose of this section is to provide officers of the New Orleans Police Department (NOPD) with guidelines and expectations regarding when and whether to take juveniles into custody, and when they shall issue a juvenile warning notice or juvenile summons only. When a law enforcement officer can lawfully take a juvenile into custody, based upon the officer's finding of probable cause or pursuant to an order of the court, the officer should, whenever possible, rely on the least restrictive and most reasonable alternative consistent with preserving public safety, order, and individual liberty. Nothing herein shall be construed to limit a police officer's ability to verbally warn a juvenile or otherwise address an offense without issuing a juvenile warning notice or juvenile summons, making a custodial arrest, detaining the juvenile, or undertaking any such formal intervention.

(b) The following words, terms, and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

(1) *Custodial arrest* means an arrest of a juvenile followed by transporting the person to juvenile booking.

(2) *Delinquent offense* means an offense committed by a juvenile, which would also be a violation of the law if committed by an adult.

(3) *Guardian* means a person currently designated by the court or by operation of law as being responsible for a child in the same manner as a parent.

(4) *Juvenile* means one of the following:

(i) Before July 1, 2018, *juvenile* means any person under the age of 21, including an emancipated minor, who is stopped on reasonable suspicion of committing a delinquent offense on or before June 30, 2018, where the person was under 17 years old at the time of the suspected offense.

(ii) After June 30, 2018, *juvenile* means any person under the age of 21, including an emancipated minor, who is stopped on reasonable suspicion of committing a delinquent offense on or after July 1, 2018, when the act is not a crime of violence as defined in La. R.S. 14:2 and occurs before the person attains 18 years of age.

(iii) After June 30, 2020, *juvenile* means any person under the age of 21, including an emancipated minor, who is stopped on reasonable suspicion of committing a delinquent offense on or after July 1, 2020, where the person was under 18 years old at the time of the suspected offense.

(5) *Juvenile summons* means to counsel and release a juvenile to the care of his parent or guardian upon their written promise to bring the juvenile to court at such time as may be fixed by the court, pursuant to La. Ch. Code article 814(B)(1).

(6) *Juvenile warning notice* means a verbal notice issued to a juvenile, following an officer's finding of probable cause, in lieu of taking the juvenile into custody and referring the juvenile for prosecution.

(7) *Status offense* means an offense committed by a juvenile, which would not be a violation of the law if committed by an adult. Status offenses are provided in La. Ch. Code article 730.

(8) *Taking into custody* means as provided in La. Ch. Code articles 812—815.

(c) Status offenses:

(1) Upon an officer's finding of probable cause, a juvenile shall not be taken into custody for a status offense, and instead shall be issued a juvenile warning notice and released as appropriate, including to his school, parent, guardian, or to the appropriate intervention center.

(d) Delinquent offenses:

(1) A juvenile who has not been arrested or received a juvenile warning notice for a delinquent offense in the prior 365 days shall be issued a juvenile warning notice when an officer finds probable cause for any of the following misdemeanor-grade delinquent offenses or attempts thereof, and shall be released as appropriate:

(i) Criminal mischief;

(ii) Criminal trespass;

(iii) Disturbing the peace;

(iv) Misdemeanor illegal possession of stolen things;

(v) Misdemeanor obstruction of justice;

(vi) Misdemeanor theft or theft of goods;

(vii) Obstructing public passages;

(viii) Simple assault;

(ix) Simple battery; or

(x) Simple possession of marijuana.

(2) Officer discretion: When an officer finds probable cause for any of the enumerated offenses in subsection (d)(1), and the juvenile has previously been arrested or already received a juvenile warning notice for any delinquent offense in the prior 365 days, the officer may exercise his discretion to issue a juvenile warning notice or juvenile summons in lieu of custodial arrest.

(i) In exercising the discretion afforded under this subsection, an officer shall not take into consideration the race, ethnicity, gender, gender identity, gender expression, sexual orientation, economic status, or national origin of the juvenile.

(ii) In exercising the discretion afforded under this subsection, an officer shall consider the best interest of the juvenile and the safety of the public.

(e) Juvenile summons:

(1) This subsection shall apply to the following violations:

(i) Juveniles engaged in misdemeanor-grade delinquent offenses not enumerated in subsection (d)(1), upon an officer's finding of probable cause;

(ii) Juveniles engaged in misdemeanor-grade delinquent offenses enumerated in subsection (d)(1), pursuant to subsection (d)(2); and

(iii) Juveniles with outstanding warrants for misdemeanor-grade delinquent offenses, including but not limited to those offenses listed in subsection (d)(1), or for failure to appear, unless a judge has ordered that the juvenile be detained.

(2) When citing a juvenile solely for one of the violations listed in subsection (e)(1), an officer shall issue a juvenile summons and may not make a custodial arrest, except when one of the following circumstances exists:

(i) The juvenile's parent or guardian cannot be located, after reasonable efforts have been made;

(ii) The juvenile's parent or guardian does not possess identification issued by any municipal, state, territorial, federal, or other governmental authority;

(iii) The juvenile's parent or guardian makes a statement that indicates an intent to disregard the juvenile summons, or his parent or guardian refuses to sign the juvenile summons;

(iv) The juvenile acts in a violent or destructive manner or makes a statement indicating that he intends to inflict injury to self or another or damage to property;

(v) The juvenile is a habitual offender, defined as an individual with a

criminal history of two or more felony convictions or five or more felony or misdemeanor arrests for any offense;

(vi) The offense for which the officer stopped the juvenile is one involving weapons;

(vii) The offense for which the officer stopped the juvenile is one involving domestic violence, pursuant to La. R.S. 14:35.3, and the officer deems that the child poses a threat to another household member or family member; or

(viii) Based on the circumstances, an officer determines that it is absolutely necessary to make a custodial arrest.

(3) When an officer determines that one of the factors enumerated in subsection (e)(2) applies, the officer may use his or her discretion to issue a juvenile summons instead of making a custodial arrest for a violation of subsection (e)(1).

(4) This subsection shall become effective upon signing.

(f) Record keeping:

(1) When a juvenile warning notice or juvenile summons is issued to a juvenile, the issuing officer and the police department shall cause a record of the issuance of the juvenile warning notice or juvenile summons, along with the offense for which it was issued, to be recorded and to be retained in such a fashion as to be accessible to officers in the future.

(i) When an officer issues a juvenile summons, the officer must document and report details of the incident in accordance with La. Ch. Code article 814(E) and (F). The officer must also secure a written promise from the child's parent or guardian to bring the child to court, pursuant to La. Ch. Code article 814(B)(1).

(2) When an officer effectuates a custodial arrest in accordance with subsection (d)(2), the officer must document and report details of the incident, describing with specificity the circumstances necessitating custodial arrest, as provided in La. Ch. Code article 814(D) and (E).

(3) When an officer effectuates a custodial arrest in accordance with subsection (e)(2), the officer shall appropriately document all information, including specifying the circumstances falling within subsection (e)(2), at the time of arrest in a form to be promulgated by the New Orleans Police Department.

(4) The New Orleans Police Department shall prepare and submit quarterly reports to the Criminal Justice Committee of the City Council of New Orleans. Such reports shall include the following data from the preceding quarter:

(i) The number of juvenile custodial arrests and reasons for those arrests;

(ii) The number of unique juveniles under custodial arrest;

(iii) The number of juvenile warning notices and reasons for those notices;

(iv) The number of unique juveniles issued a juvenile warning notice;

(v) The number of juvenile summonses and reasons for those juvenile summonses;

(vi) The number of unique juveniles issued a juvenile summons;

(vii) The number of juvenile custodial arrests made in instances where the juvenile was eligible to receive a juvenile warning notice, pursuant to subsection (d), and the reasons for those custodial arrests;

(viii) The number of juvenile summonses issued in instances where the juvenile was eligible to receive a juvenile warning notice, pursuant to subsection (d), and the reasons for those juvenile summonses;

(ix) The number of juvenile custodial arrests made in instances where the juvenile was eligible to receive a juvenile summons, pursuant to subsection (e), and the reasons for those custodial arrests; and

(x) The number of juveniles under custodial arrest who previously received a juvenile warning notice or juvenile summons;

(5) This subsection shall become effective upon signing.

(Code 1956, § 1-22; M.C.S., Ord. No. 27501, § 1, 8-24-17, eff. 1-1-18; M.C.S., Ord. No. 27643, § 1, 1-11-18; M.C.S., Ord. No. 27671, § 1, 2-8-18)

Cross references—General penalty for violation of this Code, § 1-13; courts, ch. 50; criminal code, ch. 54; law enforcement, ch. 90; police, § 90-36 et seq.; schools, ch. 126.

Sec. 102-2. Appropriate adult facility for youth charged as adults.

(a) Unit A and Unit C of the "East Pod" (also known as the "Pelicans" pod) of the Youth Study Center, located at 1100 Milton Street in New Orleans, shall be deemed by operation of law as the "appropriate adult facility" for the pre-trial detention of all youth who are charged as adults in local courts under Article 305(A) or 305(B) of the Louisiana Children's Code. This population of youth is known as the "adult waiver population".

(b) If at any time the Superintendent of the Youth Study Center fails to comply with the mandatory duty to make the units specified in subsection (a) available for the pre-trial detention of the adult waiver population, then the eight (8) bunk "pod" on the north side of "Building B" and the sole four bunk "pod" in "Building B" of the Youth Study Center shall be deemed by operation of law as the "appropriate adult facility" for the pre-trial detention of the adult waiver population.

(c) Subsections (a) and (b) hereinabove shall mean that the Orleans Justice Center, or any other detention facility operated by the Orleans Parish Sheriff, shall only be considered the "appropriate adult facility" under Article 305(A) and 305(B) of the Louisiana Children's Code if the "appropriate adult facility" identified in subsections (a) and (b) is already at capacity. If the "appropriate adult facility" identified in subsections (a) and (b) hereinabove is not at capacity, then the Orleans Justice Center, or any other detention facility operated by the Orleans Parish Sheriff, shall not be considered the "appropriate adult facility" under Article 305(A) or 305(B) of the Louisiana Children's Code.

(d) Any youth charged under 305(A) or 305(B) of the Louisiana Children's Code who is temporarily transferred to the Orleans Justice Center as a result of the "appropriate adult facility" identified in subsections (a) and (b) being at capacity must be transferred back to the "appropriate adult facility" identified in subsections (a) and (b) as soon as a bed becomes available therein.

(e) The term "appropriate adult facility" as used in this Section is the "appropriate adult facility" contemplated by Article 305(A) and 305(B) of the Louisiana Children's Code.

(f) The provisions of this section shall not be construed to revoke or infringe on the authority or discretion afforded to the Orleans Parish Criminal District Court, Orleans Parish Juvenile Court, and the Orleans Parish District Attorney under the Louisiana Children's Code.

(g) Nothing in this section shall be construed to preclude additional beds at the Youth Study Center from being considered the "appropriate adult facility" for the pre-trial detention of the adult waiver population.

(M.C.S., Ord. No. 27766, § 1, 5-3-18)

Secs. 102-3—102-35. Reserved.

ARTICLE II. MODEL GLUE*

Sec. 102-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Cross reference—__Inhaling nitrous oxide prohibited, § 54-498.

State law references—Uniform Controlled Dangerous Substances Law, R.S. 40:961 et seq.; model glue; use of; unlawful sales to minors, R.S. 14:93.1.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Model glue means any glue or cement of the type commonly used in the building of model airplanes, boats and automobiles, and which contains one or more of the following volatile solvents:

(1) Acetone
(2) Amylacetate
(3) Benzol or benzene
(4) Butyl acetate
(5) Butyl alcohol
(6) Carbon tetrachloride
(7) Chloroform
(8) Cyclohexanone
(9) Ethanol or ethyl alcohol
(10) Ethyl acetate
(11) Hexane
(12) Isopropanol or isopropyl alcohol
(13) Isopropyl acetate
(14) Methyl "cellosolve" acetate
(15) Methyl ethyl ketone
(16) Methyl isobutyl ketone
(17) Toluol or toluene
(18) Trichloroethylene
(19) Tricresyl phosphate
(20) Xylol or xylene

or any other solvent, material, substance, chemical, or combination thereof, having the property of releasing toxic vapors.
(Code 1956, § 18-15)

Cross reference—Definitions generally, § 1-2.

Sec. 102-37. Intentional inhalation, or inducing others, prohibited; exceptions.

It shall be unlawful for any person to intentionally smell or inhale the fumes of any type of model glue, or to induce any other person to do so, for the purpose of causing a condition of, or inducing symptoms of intoxication, elation, euphoria, dizziness, excitement, irrational behavior, exhilaration, paralysis, stupefaction or dulling of the senses or nervous system, or for the purpose of, in any manner, changing, distorting or disturbing the audio, visual or mental processes; provided, however, that this section shall not apply to the inhalation of any anesthesia for medical or dental purposes.
(Code 1956, § 18-16)

Sec. 102-38. Possession.

It shall be unlawful for any person to intentionally possess any type of model glue for the purpose of using the same in the manner prohibited by section 102-37.
(Code 1956, § 18-17)

Sec. 102-39. Intentional inducement or aid of others prohibited.

It shall be unlawful for any person to intentionally possess, buy, sell or otherwise transfer any type of model glue for the purpose of inducing or aiding any other person to violate the provisions of sections 102-37 and 102-38.
(Code 1956, § 18-18)

Sec. 102-40. Sale to minors prohibited.

It shall be unlawful for any person to sell any type of model glue to a minor for any reason whatsoever.
(Code 1956, § 18-19)

Sec. 102-41. Sales by wholesalers.

It shall be unlawful for any wholesaler of merchandise to sell or transfer any quantity of model glue to any person whatsoever, who is not, or does not represent, a recognized bona fide retail dealer in merchandise customarily handling such product in the ordinary course of his or its business at a fixed location. If any such prohibited sale is made by any wholesaler, it shall constitute prima facie evidence of an intent to violate the provisions of this article.
(Code 1956, § 18-20)

Sec. 102-42. Sale limited to bona fide retailers; limitation on quantity to be sold.

(a) It shall be unlawful for any person to engage in the retail sale of model glue unless such person is a recognized bona fide retail dealer (at a fixed location) in merchandise, customarily handling such product in the ordinary course of his business.

(b) It shall be unlawful for any bona fide recognized retail dealer, as defined in subsection (a) of this section, to sell more than one tube, or other minimum sized container, of model glue to any one customer within any 24-hour period; provided, that the provisions of this subsection do not apply to the sale of model glue together with a hobby or model kit.

(c) It shall be unlawful for any bona fide recognized retail dealer to keep, maintain or prominently display in his business establishment any stock or supply of model glue in such manner or place as to make the same accessible to customers, or other members of the public, without actually receiving the same directly from the retailer, or his bona fide authorized representative.
(Code 1956, § 18-21)

Sec. 102-43. Penalties.

(a) Any person found guilty of violating sections 102-39, 102-40, 102-41, or 102-42 shall be punished by a mandatory fine of $100.00 and by mandatory imprisonment for 90 days for each such offense.

(b) Any person found guilty of violating the provisions of any other section of this article shall be punished by a fine of not more than $100.00, or imprisonment for not more than 90 days, or by both such fine and imprisonment for each such offense.
(Code 1956, § 18-22)

Secs. 102-44—102-75. Reserved.

ARTICLE III. CONTROLLED SUBSTANCES*

DIVISION 1. GENERALLY

Sec. 102-76. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Drug-related public nuisance means any place or premises within the city which has been used, on more than two occasions, with the owner's consent or with his knowing failure to take reasonable preventive action within his power, as the site or location of unlawful acts of posses-

*__Cross reference—__*New Orleans war on drugs fund, § 70-171 et seq.

State law reference—Seizure and forfeiture act, R.S. 40:2601 et seq.

sion or distribution of controlled dangerous substances as defined in R.S. 40:961 and/or the site or location of prohibited acts relative to transactions in drug paraphernalia made unlawful by R.S. 40:1033.
(Code 1956, § 18-23)

Cross reference—Definitions generally, § 1-2.

Sec. 102-77. Duty of police.

The superintendent of police is authorized to compile and maintain statistics relating to the location within the city of drug-related public nuisances. The police department is authorized to forward the address and the other pertinent information relating to drug-related public nuisances to the directors of the departments of safety and permits (housing code enforcement), office of housing and urban affairs, the fire department and health and to the city attorney.
(Code 1956, § 18-24)

Sec. 102-78. Duty of city departments.

Upon receipt of information from the department of police indicating that a place or premises is a drug-related public nuisance, the director of the department of safety and permits (housing code enforcement), office of housing and urban affairs, the fire department and the director of the department of health are authorized to cause an investigation of the premises to be made relative to compliance with the building code and public health, housing and environmental laws. The departments may take any remedial action necessary, including demolition of the property, as warranted, pursuant to applicable law.
(Code 1956, § 18-25)

Sec. 102-79. Duty of city attorney.

Upon receipt of information from the police department regarding drug related public nuisances, the city attorney shall review the information presented and may immediately seek injunctive or other relief to eliminate the nuisance in the civil district court for the parish or in any other court of competent jurisdiction, if warranted, pursuant to applicable law.
(Code 1956, § 18-26)

Sec. 102-80. Reports to council.

The chief administrative officer shall issue a quarterly report to the city council listing any drug-related public nuisances identified by the police department, and any action taken with regard to such public nuisances by the departments of safety and permits (housing code enforcement), office of housing and urban affairs, the fire department and health and the city attorney.
(Code 1956, § 18-27)

Secs. 102-81—102-110. Reserved.

DIVISION 2. PARAPHERNALIA*

Sec. 102-111. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Drug paraphernalia means and includes, but is not limited to:

(1) All equipment, products, and materials of any kind which are used, intended for use or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling or otherwise introducing into the human body a controlled substance in violation of the Uniform Controlled Dangerous Substances Law, as scheduled in R.S. 40:964.

(2) Kits used, intended for use or designed for use in planting, propagating, cultivating, growing or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived.

*__Cross reference—__New Orleans war on drugs fund, § 70-171 et seq.

State law reference—Transactions in drug related objects prohibited, R.S. 40:1031 et seq.

(3) Kits used, intended for use or designed for use in manufacturing, compounding, converting, producing, processing or preparing controlled substances.

(4) Isomerization devices used, intended for use or designed for use in increasing the potency of any species of plant which is a controlled substance.

(5) Testing equipment used, intended for use or designed for use in identifying or in analyzing the strength, effectiveness or purity of a controlled substance.

(6) Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose and lactose, used, intended for use or designed for use in cutting controlled substances.

(7) Separation gins and sifters used, intended for use or designed for use in removing twigs and seeds from or otherwise in cleaning or refining marijuana.

(8) Blenders, bowls, containers, spoons and mixing devices used, intended for use or designed for use in compounding controlled substances.

(9) Capsules, balloons, envelopes and other containers used, intended for use or designed for use in packaging small quantities of controlled substances.

(10) Containers and other objects used, intended for use or designed for use in storing or concealing controlled substances.

(11) Hypodermic syringes, needles and other objects used, intended for use or designed for use in parenterally injecting controlled substances into the human body.

(12) Objects used, intended for use or designed for use in ingesting, inhaling or otherwise introducing marijuana, cocaine, hashish or hashish oil into the human body, such as:

a. Metal, wooden, acrylic, glass, stone, plastic or ceramic pipes with or without screens, permanent screens, hashish heads or punctured metal bowls.

b. Water pipes.

c. Carburetion tubes and devices.

d. Smoking and carburetion masks.

e. Roach clips, meaning objects used to hold burning material, such as a marijuana cigarette, that has become too small or too short to be held in the hand.

f. Miniature cocaine spoons and cocaine vials.

g. Chamber pipes.

h. Carburetor pipes.

i. Electric pipes.

j. Air-driven pipes.

k. Chillums.

l. Bongs.

m. Ice pipes or chillers.

For the purposes of this article and notwithstanding anything in La. R.S. 40:1021 to the contrary, drug paraphernalia shall not include any device or equipment used exclusively, intended for use exclusively, or designed exclusively for personal use of marijuana.

(Code 1956, § 18-28; M.C.S., Ord. No. 28745, § 1, 8-5-21, eff. 9-15-21)

Cross reference—Definitions generally, § 1-2.

State law reference—Prohibited act, R.S. 40:1033.

Sec. 102-112. Determination.

In determining whether an object is drug paraphernalia, a court or other authority shall consider, in addition to all other legally relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use.

(2) The proximity of the object in time and space to a direct violation of the Uniform Controlled Dangerous Substances Law.

(3) The proximity of the object to a controlled substance.

(4) The existence of any residue of controlled substances on the object.

(5) Direct or circumstantial evidence of the intent of an owner or of anyone in control of the object to deliver it to persons whom he knows or should reasonably know intend to use the object to facilitate a violation of the Uniform Controlled Dangerous Substances Law; the innocence of an owner or of anyone in control of the object as to a direct violation of the Uniform Controlled Dangerous Substances Law shall not prevent a finding that the object is intended for use or designed for use as drug paraphernalia.

(6) Instructions, oral or written, provided with the object concerning its use.

(7) Descriptive materials accompanying the object which explain or depict its use.

(8) National and local advertising concerning its use.

(9) The manner in which the object is displayed for sale.

(10) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise.

(11) Expert testimony concerning its use.

(Code 1956, § 18-29)

Sec. 102-113. Prohibited acts.

(a) It is unlawful for any person, knowing the drug-related nature of the object, to sell, lend, rent, lease, give, exchange or otherwise distribute to any person any drug paraphernalia.

(b) It is unlawful for any person, knowing the drug-related nature of the object, to display drug paraphernalia.

(c) It is unlawful for any person to use or to possess with intent to use any drug paraphernalia, to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled substance in violation of this article.

(d) The term *knowing* as used in this section means knowledge of the drug-related nature of the object.

(Code 1956, § 18-30)

Sec. 102-114. Contraband; condemnation proceedings.

(a) In addition to any other penalties imposed by this Code, all instruments, devices and objects which are seized after the effective date of the ordinance from which this section was derived, on condemnation as being distributed or possessed in violation of this article, may be destroyed by the authorities making the seizure, but only after compliance with the following procedure:

(1) Within 90 days after any such seizure is made, the city attorney shall institute condemnation proceedings by petition, a copy of which shall be served upon the owner of the seized items if known. If the owner is unknown, notice of the proceedings shall be published once a week for two weeks in the official journal.

(2) The petition shall allege that the seized items were distributed or possessed in violation of this article.

(b) Judgment by default shall be entered by the court 15 days of the filing of the petition, and the court shall order the seized items to be destroyed. Otherwise, the case shall proceed as other civil cases in such court. If the prosecution proves by a preponderance of the evidence that the seized items were distributed or possessed in violation of the law, the court shall order the seized items to be destroyed.

(Code 1956, § 18-31)

Sec. 102-115. Exceptions.

(a) Nothing contained in this article shall be construed to prohibit the sale of hypodermic syringes or needles by licensed pharmacists or drug prevention and/or AIDS education programs as approved by the department of health and/or the state department of health and hospitals.

(b) Notwithstanding any other provision of law, the provisions of this division shall not apply to the manufacture, sale, distribution, or

advertisement of any product or object designed and sold primarily for scientific research, industrial, veterinary, or agricultural purposes, or for bona fide medical or clinical use.

(c) It shall be an affirmative defense that the person to whom the drug related object or advertisement or notice was distributed had a prescription from a licensed medical practitioner or psychiatrist for marijuana or the controlled substance for which the object is primarily intended to be used. It is also an affirmative defense that the drug related object was designed or marketed as useful primarily for veterinary or agricultural purposes.

(d) Notwithstanding any other provision of law, the provisions of this division shall not apply to a needle exchange program that has been expressly approved by the council. The council may, by resolution, approve the operation of such programs.

(e) Nothing in this article shall be construed to prohibit the use, possession, or sale of drug testing strips or other testing equipment designed to identify or analyze the presence, effectiveness, or purity of controlled substances.
(Code 1956, § 18-32; M.C.S., Ord. No. 27630, § 1, 12-14-17; M.C.S., Ord. No. 28671, § 1, 5-6-21; M.C.S., Ord. No. 29475, § 1, 5-25-23)

Secs. 102-116—102-199. Reserved.

ARTICLE IV. CHRONIC NUISANCE PROPERTIES

Sec. 102-200. Purpose.

Chronic nuisance properties present grave health, safety and welfare concerns, owing to the failure of property owners or persons in charge of such properties to take corrective action to abate serious nuisance conditions and criminal conduct. Chronic nuisance properties have a profound negative impact upon the quality of life, safety, and health of the neighborhoods where they are located. This article is enacted to remedy nuisance activities that repeatedly occur or exist at chronic nuisance properties by providing a process for abatement; and this remedy is not an exclusive remedy available under any state or local laws and may be used in conjunction with such other laws.

Chronic nuisance properties are a financial burden to the city as a result of repeated calls for service to the properties because of the nuisance activities that repeatedly occur or exist on such property, and this article is a means to ameliorate those conditions and hold responsible the owners or persons in charge of such property.
(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-201. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *"Abate"* means to repair, replace, remove, destroy or otherwise remedy a condition which constitutes a violation of this article by such means and in such a manner and to such an extent as the applicable city department director or designee determines is necessary in the interest of the general health, safety and welfare of the community.

(b) *"Chronic nuisance property"* means any property or group of adjoining properties under common ownership that, on three or more separate occasions within a one-year period, were used:

(1) By persons who assemble for the specific purpose of illegally administering or ingesting of a controlled dangerous substance;

(2) For the illegal manufacture or distribution of a controlled dangerous substance or drug paraphernalia;

(3) For the illegal storage or concealment of a controlled dangerous substance or controlled paraphernalia in sufficient quantity to reasonably indicate under all the circumstances an intent to manufacture, distribute, or dispense a controlled dangerous substance or drug paraphernalia;

(4) For storage or possession of stolen property;

(5) For storage or possession of unregistered firearms;

(6) In furtherance of a crime of violence, as defined by La. R.S. 14:2; or

(7) For criminal gang offenses.

(c) *"Nuisance activity"* shall mean any of the activities or offenses set forth in section 102-201(b)(1)—(7).

(d) *"Person in charge"* of a property means any person in actual or constructive possession of a property including, but not limited to, an owner, occupant, agent or property manager of a property under his control.

(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-202. Chronic nuisances prohibited.

(a) It shall be unlawful for any person to permit property under his ownership, control, or management to operate a chronic nuisance property.

(b) Any person found to be in violation of subpart (a) of this section shall not be permitted to possess an occupational license to conduct any business on a property found to be a chronic nuisance property for a period of up to two years, depending on the severity of the violation.

(c) The provisions of this article and the prohibitions in this section shall not apply to residential properties, apartment complexes, or any other property used exclusively for residential purposes.

(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-203. Procedure.

(a) When the superintendent of police, or the superintendent's designee, receives documentation confirming the existence of a suspected chronic nuisance property, the superintendent, or the superintendent's designee shall review such reports to determine whether they describe nuisance activities and whether the property in question constitutes a chronic nuisance property.

(b) When the superintendent has reason to believe that a property constitutes a chronic nuisance property, the superintendent, or a designee, shall notify a property owner at the address shown in the assessor's records and shall notify the person in charge of the property in writing that the property is in danger of being declared a chronic nuisance property.

(c) The notice shall contain:

(1) The street address or a legal description sufficient for identification of the property;

(2) A concise description of the nuisance activities that exist, or that have occurred on the property;

(3) A demand that the owner or person in charge respond to the superintendent or the superintendent's designee within ten calendar days of service of the notice to discuss the nuisance activities and create a plan to abate the chronic nuisance;

(4) An opportunity to abate the nuisance activities giving rise to the violation, including but not limited to remediation strategies such as blight/litter abatement, security and operation plans including remedies such as exterior security cameras, and proposed exterior lighting; and

(5) A statement describing that if legal action is sought by the city, the property could be subject to closure, civil penalties, and costs assessed up to $500.00 per day after the notice of the chronic nuisance property is received.

(6) A point of contact and contact information at the New Orleans Police Department, responsible for overseeing chronic nuisance property cases.

(d) Such notice shall be either:

(1) Personally served; or

(2) Delivered by certified mail to the person in charge of the property with a copy mailed to the owner at the address indicated by the assessor, if different than the person in charge of the property.

(e) If the person in charge fails to respond to the issued notice, the matter shall be referred to the city attorney for further action. If the person in charge responds as required by the notice and agrees to abate the nuisance activity, the superintendent, or the superintendent's designee, and the person in charge or property owner may work out an agreed-upon course of action and timeline for abating the nuisance activity.

(f) If an agreed course of action does not result in the abatement of the nuisance activities or if no agreement concerning abatement is reached or if abatement is not executed within the prescribed timeline, the matter shall be forwarded to the office of the city attorney for enforcement action.

(g) It is a defense to an action for chronic nuisance property that the person in charge at all material times could not, in the exercise of reasonable care or diligence, determine that the property had become chronic nuisance property, or could not in spite of the exercise of reasonable care and diligence control the conduct leading to the determination that the property is chronic nuisance property.
(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-204. Enforcement.

(a) Once the matter is referred to the city attorney, the city attorney shall immediately review and make a determination to initiate legal action authorized under this section or as otherwise provided by law, or may seek alternative forms of abatement of the nuisance activity. The city attorney may initiate legal action on the chronic nuisance property and seek civil penalties and costs in civil district court for the abatement of the nuisance.

(b) In determining whether a property shall be deemed a chronic nuisance property and subject to the court's jurisdiction, the city shall have the initial burden of proof to show by a preponderance of the evidence that the property is a chronic nuisance property. The city may submit official police reports and other affidavits outlining the information that led to arrest(s) and other chronic nuisance activity occurring or existing at the property. The failure to prosecute an individual, or the fact no one has been convicted of a crime, is not a defense to a chronic nuisance action.

(c) In assessing the civil penalty, the court may consider the following factors, citing to those found applicable:

(1) The severity of the violations;

(2) The actions taken by the person in charge and/or owner to mitigate or correct the nuisance activity;

(3) The financial condition of the persons in charge;

(4) Any documented history of prior violations;

(5) The repeated or continuous nature of the nuisance activity;

(6) The statements of the neighbors or those affected by the nuisance activity; and

(7) Any other factor deemed relevant by the court.

(d) The court that determined the property to be a chronic nuisance property may also assess costs against the person in charge and/or owner in the amount it costs the city to abate, or attempt to abate, the nuisance activity.

(e) If a court determines the property to be a chronic nuisance property, the court may order the property closed and secured against all unauthorized access, use and occupancy for a period up to two years, and may impose a civil penalty and costs.

(f) Once a determination has been made by the court that the chronic nuisance property shall be subject to closure, the court may authorize the city to physically secure the premises and initiate such closure.

(g) The court shall retain jurisdiction during any period of closure or abatement of the property.
(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-205. Emergency closure.

Nothing in this chapter prohibits the city from taking any emergency action for the summary closure of such property when it is necessary to

avoid an immediate threat to public welfare and safety. The city may take summary action to close the property without complying with the notification provisions of section 102-203, but shall provide such notice as is reasonable under the circumstances and shall immediately take all appropriate steps to obtain judicial ratification of the closure.
(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-206. Chronic nuisance property judgments to run with the land.

(a) A judgment declaring the existence of a chronic nuisance property, if recorded, shall constitute a charge on the immovable property that shall be effective against third parties who acquire an interest in any immovable so encumbered, subjecting them to the prohibitions contained in section 102-202 so long as they remain in effect.

(b) The city attorney shall take all appropriate steps to ensure that a judgment declaring the existence of a chronic nuisance property is effective against third parties, including through the filing of a notice of lis pendens and by recordation of any judgment rendered in connection with this article.

(c) Nothing herein shall prohibit the city from releasing an immovable from an encumbrance created pursuant to this section when there is good cause to believe that the nuisance conditions giving rise to the underlying action are not reasonably likely to continue.
(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Sec. 102-207. Reporting.

(a) The city attorney shall transmit reports to the council for the first meetings in February and August of each year outlining properties referred by the superintendent to the city attorney that shall include:

(1) A narrative from the superintendent as to why each property constitutes a chronic nuisance property as defined in section 102-201;

(2) A copy of the original notice sent by the superintendent to the person in charge of a given property as required in section 102-203;

(3) The dates, times, and New Orleans Police Department item numbers for each qualifying nuisance activity for a given property;

(4) A copy of the agreed upon abatement plan between the person in charge of the property and the superintendent;

(5) A status update for each property including any abatement that has occurred at the site and the status of court proceedings; and

(6) Any penalties levied against a property by the city or civil district court, if applicable.

(7) Demographic information regarding the owners of the property and/or business.

(M.C.S., Ord. No. 29323, § 1, 2-2-23)

Chapters 103–105

RESERVED

Chapter 106

PARKS AND RECREATION*

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ARTICLE I. IN GENERAL

Sec. 106-1. Trespass in Woldenberg Riverfront Park.

(a) It shall be unlawful for any person to commit the crime of trespass in Woldenberg Riverfront Park.

(b) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning.

(1) Premises of Woldenberg Riverfront Park is defined as the area bounded by the Mississippi River, including structures, docks or wharves built over the river, the enclosed portion of the Aquarium of the Americas at Number 1 Canal Street on the downtown side of Canal Street, the Mississippi River side of the Public Belt railroad tracks running parallel to the Mississippi River and including the area known as the moonwalk to the southwest edge of the Governor Nicholls Street wharf from the Public Belt Railroad tracks to the Mississippi River.

(2) *Trespass in Woldenberg Riverfront Park* is the intentional, unauthorized entry upon the premises of Woldenberg Riverfront Park or remaining upon the premises of Woldenberg Riverfront Park by a person when he knows his entry or remaining upon the premises is unauthorized or under circumstances where he reasonably should know his entry or remaining upon the premises is unauthorized.

(c) The premises of Woldenberg Riverfront Park shall be posted in areas of ingress and egress with signs indicating at what hours of the day or night that entry to or remaining upon the premises is prohibited without authorization.
(Code 1956, § 43-11.1; M.C.S., Ord. No. 18,551, § 1, 12-4-97; Ord. No. 20,795, § 1, 7-11-02)

Sec. 106-2. Bicycle speed limit in Audubon Park; lights.

(a) It shall be unlawful for any person to operate a bicycle at a speed in excess of ten miles per hour in that portion of Audubon Park bounded by Magazine Street, Exposition Blvd., St. Charles Avenue and Walnut Street.

(b) All bicycles operating in the abovementioned area shall possess a working light when used in either pre-sunrise or post-sunset periods.
(Code 1956, § 42-116)

Sec. 106-3. Use of private watercraft prohibited in City Park.

It shall be unlawful for any person to use or operate a privately owned watercraft within the boundaries of City Park, without first having applied for and obtained a permit from the general manager of New Orleans City Park Improvement Association.
(Code 1956, § 42-115)

Cross reference—Boat and water safety, § 170-51 et seq.

Secs. 106-4—106-35. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Secs. 106-36—106-60. Reserved.

*__Cross reference—__Administration, ch. 2.

DIVISION 2. DEPARTMENT OF PARKS AND PARKWAYS*

Secs. 106-61—106-64. Reserved.

Editor's note—M.C.S., Ord. No. 17,444, § 1, adopted Mar. 7, 1996, repealed §§ 106-61—106-64, which pertained to appointment, terms of members, officers and superintendent of the parkway and park commission and derived from §§ 43-5—43-8 of the city's 1956 Code.

Sec. 106-65. Duties.

The department of parks and parkways shall:

(1) Administer, control and manage all parks, except those otherwise provided for by applicable state laws.

(2) Cultivate, place, maintain and remove trees, shrubs, flowers, grass and other plants on public grounds.

(3) Embellish parks, parkways, highways and other public grounds.

(4) Designate the portions of parks and other areas under its control for the activities under the direction of the department of recreation.

(5) Have custody, control, operation and administration of John P. Brechtel Memorial Park, including the authority to operate such concessions therein, by lease or otherwise, as the department may deem appropriate and desirable, as well as the authority to assess and collect reasonable fees for the privilege of fishing in the lagoon of such park.

(Code 1956, § 43-9)

Charter reference—Similar provisions, § 5-901.

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*__Editor's note—__Pursuant to a Home Rule Charter amendment whereby the parkway and park commission has become the department of parks and parkways, the title of this division has been changed accordingly, and references within this division to the parkway and park commission have been changed to department of parks and parkways.

Charter reference—Department of parks and parkways, § 4-1701.

Cross references—Boards, committees and commissions, § 2-86 et seq.; notice to owner of property by director of the department of parks and parkways to cut or remove weeds, trash, etc., § 66-312 et seq.

Sec. 106-66. Enforcement and citation powers.

In connection with the duties of the department of parks and parkways, the superintendent of police is hereby authorized to grant enforcement and citation powers, in accordance with section 4-502(2) of the charter, to those department of parks and parkways employees designated to him, in writing, by the director of the department of parks and parkways, for the purpose of obtaining compliance with all city ordinances as they relate to those golf courses maintained by the department of parks and parkway. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.

(Code 1956, § 43-9.1)

Sec. 106-67. Designation of types of plants, etc., for parks, etc.

The department of parks and parkways shall designate the type of tree, shrub or plant for all parkways, parks, highways, public squares or public places under its jurisdiction.

(Code 1956, § 43-10)

State law reference—Park Commission approval of the kind and character of trees to be planted in a street improvement project, R.S. 33:3494.

Sec. 106-68. Establishment of nursery.

The department of parks and parkways may establish and maintain a nursery for raising trees, shrubs and other plants to be used for embellishing the streets and public places and may procure and cultivate trees, shrubs and other plants for such purpose and employ the necessary gardeners and laborers.

(Code 1956, § 43-11)

Sec. 106-69. Fee waivers.

(a) Notwithstanding anything in the Code to the contrary, the director of the department of parks and parkways shall have the exclusive authority, at the request of an event sponsor, to waive any fee imposed by the department for the

use of any park or public space under its jurisdiction for special events lasting not more than one day sponsored by:

1. a non-profit organization in good standing with the Louisiana Secretary of State;
2. any organization exempt from taxation under Section 501 of the Internal Revenue Code; or
3. an educational institution.

(b) To qualify for a usage fee waiver, the event must, in the director's discretion, promote a valid educational, charitable, social, cultural benefit to the City of New Orleans, which must be evidenced by an attestation of a representative of the sponsoring organization on forms prepared by the director.

(c) No sponsoring organization may receive more than one fee waiver pursuant to this section per calendar year.

(d) For an event that satisfies the criteria set forth in this section and is open to the general public, the director may waive up to 100 percent of the usage fee in accordance with policies and procedures established by the department.

(e) For an event that satisfies the criteria set forth in this section and is not open to the general public, the director may waive up to 50 percent of the usage fee in accordance with policies and procedures established by the department.

(f) No entrance or admission fees may be charged in connection with any event granted a fee waiver under this section.

(g) Any fee waiver authorized by this section shall not include any direct costs to the city.

(h) Any fee waiver granted pursuant to this section shall not include any required security or damage deposits imposed. The sponsoring organization shall be responsible to the city for damage resulting from or occurring during the event.

(i) The department of parks and parkways shall compile and maintain as a public record a database of all fee waivers granted pursuant to this section. The database shall contain the sponsoring entity, a description of the event and its public purpose, the date of the event and the amount of the waiver.

(j) Denial of a fee waiver requested pursuant to this section shall not be appealable to the council.

(k) Events consisting primarily of film or television production shall not be eligible for a fee waiver under this section.
(M.C.S., Ord. No. 29825, § 2, 3-7-24)

Secs. 106-70—106-100. Reserved.

DIVISION 3. AUDUBON PARK COMMISSION*

Sec. 106-101. Appointment; terms; vacancies.

An Audubon Park Commission for the city is hereby created, to be composed of 24 electors, each domiciled in the city, appointed by the mayor, and approved by the council. Upon the first appointment, four of such commissioners shall be appointed for a term of one year, four for a term of two years, four for a term of three years, four for a term of four years, four for a term of five years and four for a term of six years. On the expiration of each commissioner's term, his or her successor shall be appointed for a term of six years. Any vacancy on the commission shall be filled in the same manner as the member originally appointed, provided that any appointment to fill a vacancy shall be only for the unexpired term.
(Code 1956, § 43-49; M.C.S., Ord. No. 27862, § 1, 9-6-18)

Sec. 106-102. Compensation, conflict of interest.

The commissioners of the Audubon Park Commission shall receive no compensation for their services. No commissioner or any officer or employee of the commission shall be interested, directly or indirectly, in any contract or in the losses or profits of any contract for labor, sup-

*__Cross reference—__Boards, committees and commissions, § 2-86 et seq.

plies, material or construction made by the commission, while members of the commission, nor for six months after the termination of their office or the completion of the work, under the penalty of dismissal and the absolute nullity of any such contract.
(Code 1956, § 43-50)

Sec. 106-103. Secretary and employees.

The Audubon Park Commission may select a secretary and fix his salary at a reasonable sum and likewise employ such other agents and employees as may be required for the discharge of its functions.
(Code 1956, § 43-52)

Sec. 106-104. Surveying work in park.

The director of the department of streets shall do, or have done, such surveying work upon Audubon Park and furnish levels, lines, grades and similar data, relative thereto as may be from time to time requested of him by the Audubon Park Commission.
(Code 1956, § 43-53)

Sec. 106-105. Control of Audubon Park.

The Audubon Park Commission is vested with the control and management of the park in the city known as the "Audubon Park."
(Code 1956, § 43-54)

Sec. 106-106. Duties.

The Audubon Park Commission shall take charge and supervision of the park and preserve and improve it for public recreation and use as a place of public resort and pleasure and the commission shall have full charge of the control and management, repair, maintenance, development and improvement of such park.
(Code 1956, § 43-55)

Sec. 106-106.1. Audubon commission; powers, duties and functions.

Pursuant to section 5-802 of the Home Rule Charter, the powers, duties, functions, administration, and operation of the Audubon Commission shall be to administer, operate, maintain and post the hours of operation of facilities administered by the commission, including Audubon Park, the Aquarium of the Americas, Woldenberg Riverfront Park, the Species Survival Center, the Louisiana Nature Center, the Moonwalk, and other educational, cultural and recreational facilities, and to perform such other duties as are provided by applicable law, subject to the provisions of the city's master plan, its land use regulations, and its permitting authority.

The commission shall not accept, assume, or exercise any power or function which relates to taxation or the police power or which imposes a financial obligation on the city derived from any state law unless approved by ordinance of the council.
(M.C.S., Ord. No. 18,752, § 1, 6-4-98)

Sec. 106-107. Rules.

The Audubon Park Commission shall make rules fixing its own meetings and procedure.
(Code 1956, § 43-56)

Secs. 106-108—106-130. Reserved.

DIVISION 4. DEPARTMENT OF RECREATION*

Sec. 106-131. Composition.

The department of recreation shall consist of a director, deputy director and departmental secretary appointed by the mayor, and a staff selected by the director from the civil service register.
(Code 1956, § 43-12; M.C.S., Ord. No. 18,452, § 2, 10-1-97)

Sec. 106-132. Duties of director.

The director of the department of recreation shall be the executive officer of the department of recreation and shall be responsible for all activities of the department including the management and operation of all recreational facilities

*__Charter reference—__Department of Recreation, § 4-1001.

__Cross reference—__Departments, § 2-431 et seq.

placed under his jurisdiction, including outdoor and indoor facilities. He shall be responsible for developing cooperative planning with all public and private agencies dealing with recreational functions which are not included under the jurisdiction of the department.
(Code 1956, § 43-13)

Sec. 106-133. Rules and regulations.

The department of recreation may establish such divisions or bureaus and make such rules and regulations as may be necessary for the effective and economical administration of the department. The director of the department of recreation shall draw up rules and regulations governing the use and enjoyment of the facilities under the jurisdiction of the department and provide penalties for their violation. These rules and regulations shall be promptly presented to the council for approval and, if adopted by the council, they shall have the force of law and shall be binding on all concerned.
(Code 1956, § 43-14)

Sec. 106-134. General duties.

The department of recreation shall be responsible for developing a well-rounded program of public recreation which will serve all people and which is to be available for people of all ages; it shall administer all funds appropriated or made available to it for recreational purposes in the city; and, it shall cooperate with federal, state and local public and private agencies having recreational functions, including schools and such parks as do not come under the jurisdiction of the parkway and park commission or some other department or commission.
(Code 1956, § 43-15)

Sec. 106-135. Certain future programs.

The department of recreation is the city department responsible for the administration and operation of all new developments in the recreational field that may hereafter be created and for the operation and organization of which city funds may be appropriated, including playgrounds, playfields, community centers, gymnasia, teenage and neighborhood centers, parks or other facilities and programs, and all such developments shall be cleared through this department and placed under its jurisdiction.
(Code 1956, § 43-16)

Sec. 106-136. Commission to carry on functions of certain former organizations.

The New Orleans Recreation Development Commission (formerly the New Orleans Recreation Department) shall operate the recreational programs formerly carried on by the Junior Sports Association Commission, the Supervisor of Lawrence Square, the Public Bath Commission, the Teen-Age Clubs, including the installation on South Norman C Francis Parkway near Perdido Street, and the former recreational activities of the former office of the commissioner of public property and shall exercise all powers, duties and responsibilities heretofore granted to such agencies. The New Orleans Recreation Development Commission shall likewise operate the playground recreational program formerly carried on by the playground and community service commission.
(Code 1956, § 43-17; M.C.S., Ord. No. 28571, § 2, 12-17-20, eff. 1-1-21)

Sec. 106-137. Certain playgrounds.

The department of recreation may govern, manage and direct the playgrounds on St. Roch Avenue, on Annunciation Square or Park, in Burke Square or Park, and in Soraparu Park, lay out and regulate them, install such apparatus as may be required for the pleasure and enjoyment of children, pass rules and regulations for the government of such playgrounds not inconsistent with law and city ordinances and generally to do all things in regard to such public playgrounds, the ornamentation and beautifying of them and the installation of the necessary appurtenances for the health, pleasure, instruction and enjoyment of children.
(Code 1956, § 43-18)

Sec. 106-138. Hours for use of playgrounds and public parks.

(a) Except for organized activities authorized or permitted by the department of recreation, it shall be unlawful for any person to loiter, idle,

wander, stroll or play in or upon the public playgrounds under the supervision of the department between the hours of 10:30 p.m. and 6:00 a.m.

(b) Upon the written request of the proper authorities of parochial and public schools of the parish and upon the written request of the officers of social and fraternal organizations of the parish, the director of the department of recreation may suspend the curfew previously described when said schools shall use the playgrounds for athletic activities for the benefit or entertainment of its students, or when such fraternal or social organizations of the parish shall use the playgrounds for athletic activities for the benefit or entertainment of the people of the parish.

(c) Except for organized activities authorized or permitted by the department of recreation or the parkway and park commission, it shall be unlawful for any person to be on, in or upon a public playground of the city or a public park of the city which is under the supervision of the parkway and park commission between the hours of 10:30 p.m. and 6:00 a.m.; provided further, however, that between sunset and sunrise, it shall be unlawful for any person to be on, in or upon a public park under the supervision of the parkway and park commission which has no lights or facilities.
(Code 1956, § 43-14.1)

Sec. 106-139. Cooperation with planning commission.

The department of recreation shall work in close cooperation with the city planning commission and shall clear all plans for the development of new areas and facilities through the planning commission for its approval.
(Code 1956, § 43-19)

Sec. 106-140. Cooperation with other departments.

The department of recreation shall cooperate with and make use of the services of such other city departments as may have services to render in connection with the department of recreation's program such as the departments of police, finance, health and sanitation, and others and shall depend upon them for appropriate services. But the department of recreation may expend funds appropriated to it for the purpose of employing operational personnel and such maintenance as may be necessary to supplement the services of the department of property management.
(Code 1956, § 43-20)

Sec. 106-141. Officials not to have interest in contracts.

The director, members of the advisory committee and employees of the department of recreation or any of them shall not directly or indirectly in any way have a beneficial interest in any contract or work of any kind whatsoever connected with the activities of the department. Any violation of this section shall be punished as is provided by law for public contract fraud. Additionally, any one convicted of this offense shall be dismissed from the department.
(Code 1956, § 43-21)

Secs. 106-142—106-165. Reserved.

ARTICLE III. PARKS AND PLAYGROUNDS

Sec. 106-166. Fishing in parks without permission or during closed season prohibited.

It shall be unlawful for any person to kill, take, snare, pursue, catch or have in possession any fish within the limits of the city parks without the authority of the board of commissioners of such parks or during the closed season, as fixed by such boards.
(Code 1956, § 43-41)

Sec. 106-167. Possession of seines, nets, etc., in parks.

It shall be unlawful for any person to have in his possession or to carry within the limits of the city parks without the authority of the boards of

commissioners of such parks, or during the closed season as fixed by such boards, any fish nets, cast nets, seines, fishing lines or poles.
(Code 1956, § 43-42)

Sec. 106-168. Baseball, football and racquettes—Prohibited in parks.

The playing of baseball, football and racquettes and the practicing of such games on the neutral grounds or parks of the city is hereby prohibited except as permitted by sections 106-169 and 106-170.
(Code 1956, § 43-43)

Sec. 106-169. Same—Exception for City and Audubon Parks.

The provisions of section 106-168 shall not apply to public playgrounds and parts of the City and Audubon Parks set aside for such purposes.
(Code 1956, § 43-44)

Sec. 106-170. Permit required for game or meeting in Lafayette Square.

It shall be unlawful to hold or conduct any baseball game, football game, game of skill or games of any kind or public meeting of any kind in Lafayette Square without first obtaining a written permit from the parkway and park commission.
(Code 1956, § 43-45)

Sec. 106-171. Rentals charged for use of centers, gymnasiums and pools.

The following schedule of rentals and charges to be paid for the use of centers, gymnasiums and pools is hereby established:

(1) Rental for basketball or volleyball:

a. College or University:

Practice (per hour): $25.00.

Game: $100.00.

b. All other:

Practice (per hour): $10.00.

Game: $30.00.

(2) Rentals for parties, balls, dances, etc.:

a. For the first four hours or portion thereof: $350.00.

b. For each additional hour or portion thereof: $100.00.

c. Cleanup deposit: $100.00.

(3) Pool rentals:

a. For the first four hours or portion thereof: $350.00.

b. For each additional hour or portion thereof: $100.00.

c. Cleanup deposit: $100.00.

d. Life guards, per hour: $8.00.

e. Police officers, per hour: $15.00.

The certified lifeguards shall be provided by the department of recreation; the lessee shall, in addition to the fees imposed elsewhere in this section, pay to the department of recreation the full hourly pay rate for each lifeguard provided by the department. At least four or more lifeguards must be present.

(4) In all cases, in addition to the charges herein provided, the director of the department of recreation may fix appropriate charges for the use of extra facilities or extra equipment, such as spotlights, floodlights, sound systems or similar equipment, and designate at the expense of the person renting the center the number of police and other personnel for the operations of such equipment and property security for the event.

(5) The director of the department of recreation is charged with the responsibility of ensuring that any private function for which a gymnasium, pool or center is rented does not unduly conflict with public recreation programs; and he may reject any and all applicants for events which may cause an unreasonable risk to life and property or the safety and usefulness of the facility to be rented.

(6) Lessees of the facility shall be responsible to the city for damage to any gymnasium,

pool or center resulting from or occurring during the lessee's use thereof and shall, in addition, deposit in cash, certified check or money order in the sum of $100.00, refundable, to cover any damage resulting to a gymnasium, pool or center during the lessee's use thereof.

(Code 1956, § 43-1)

Sec. 106-172. People and animals in the Coliseum Square Fountain, prohibited.

It shall be unlawful for any person or animal to use the Coliseum Square Fountain for purposes of bathing or otherwise submerging themselves therein.

(M.C.S., Ord. No. 22513, § 1, 2-2-07)

Sec. 106-173. Rentals charged for use of stadiums and playgrounds.

The schedule of rentals and charges to be paid to the department of recreation for the use of stadiums and playgrounds is hereby established as follows:

(1) *Football.*

a. *Behrman Stadium:*

Private organization:

Day: $175.00.

Night: $650.00.

b. *Barrow and Harrell Stadium:*

Private organization:

Day: $175.00.

Night: $175.00.

(2) *Baseball/softball.*

a. *Skelly Stadium:*

Private organization:

Day: $175.00.

Night: $225.00.

b. *All other stadiums:*

Private organization:

Day: $125.00.

Night: $175.00.

(3) *Track.*

a. *All stadiums:*

Private organization:

Day: $175.00.

Night: $175.00.

(4) *Playgrounds.* For all playgrounds, the rental charge shall be $20.00 for the first two-hour period or portion thereof and $10.00 per hour for each subsequent hour or portion thereof.

(5) *Refund policy.* In all cases, there shall be no refund of charges. If an event is cancelled as a result of unsatisfactory weather conditions, the department of recreation may, when feasible and appropriate, allow the lessee of the playground or stadium to use that facility on another date which shall be to the satisfaction of the department.

(6) *Damage deposit.* The lessee of the playground or stadium shall be responsible to the city for damage to any playground or facility resulting from or occurring during the lessee's use thereof. The director of the department of recreation may require the posting of an appropriate damage deposit by an organization to ensure compliance with this provision.

(7) *Security personnel.* Any organization reserving a stadium or playground operated by the department of recreation for any event shall be responsible for providing adequate security personnel to ensure the safety of any persons at the event. The number of security personnel shall be established by the director of the department of recreation for any event on facilities operated by the department.

(Code 1956, § 43-2)

Sec. 106-174. Registration fees for programs provided by the recreation department.

The recreation department is hereby authorized to charge registration fees for instruction in amounts not to exceed the following rates except

for those applicants who are at or below the income level of poverty as established by federal eligibility guidelines shall be exempted:

(1) *Swimming:*

a. Adult course, per four-week session: $25.00.

b. Children's courses, per four-week session: $15.00.

c. Nursery school course, per nursery: $150.00.

d. Single introductory lesson: $3.00.

(2) *Summer day camps:* $10.00 per child ages five to 12 years of age.

(Code 1956, § 43-2.1; M.C.S., Ord. No. 18,706, § 1, 5-7-98)

Sec. 106-175. Instructional fees for courses; for rental of costumes and admission to theatre.

The department of recreation is hereby authorized to charge the following fees and/or admission charges:

(1) For various instructional courses offered by the department, such as ceramics, yoga, painting, dance, piano, arts and crafts, etc., a sum not to exceed $50.00 per course.

(2) For rental of department of recreation costumes, a rental fee set by the director of the department, dependent upon the cost of construction of the costume.

(3) For admission to productions of the department of recreation theatre, an amount not to exceed $8.00 per ticket; except those individuals who are at or below the income level of poverty as established by federal eligibility guidelines shall be admitted free of charge upon presentation to and acceptance by the department of recreation staff of an application for free admission at various department sites, based upon available seating.

(Code 1956, § 43-3)

Sec. 106-176. Fees for use of swimming and tennis facilities.

(a) Fees for the use of swimming pools operated by the department of recreation shall be as follows:

(1) *Treme Pool:*

Adults: $1.00.

Children (15 or under): $0.50.

(2) *Gert Town Pool:*

Adults: $1.00.

Children (15 or under): $0.50.

(b) Fees for use of department of recreation Stern Tennis Center shall be as follows:

(1) Daytime court rental, per hour: $3.75.

(2) Evenings and weekend court rental, per hour: $4.75.

(Code 1956, § 43-3.1)

Sec. 106-177. Payment of deposits, rentals and fees; school board exempt.

(a) Payments of deposits, rentals and fees for services or the use of facilities and equipment shall be made in cash, certified check or money order.

(b) The parish school board shall be exempt from paying the fees set forth in sections 106-171, 106-173, 106-175 and 106-176.

(Code 1956, § 43-3.2)

Sec. 106-178. Playground surfacing.

(a) *Compliance standards.* The city must comply with the guidelines of the U.S. Consumer Product Safety Commission, the Americans with Disabilities Act, and the Louisiana Administrative Code for the Department of Health and Hospitals.

(b) *Playground surfacing.* The U.S. Consumer Product Safety Commission guidelines state that appropriate surfaces for public playgrounds are either loose-fill or unitary. [U.S. Consumer Product Safety Commission: Public Playground Safety Handbook (April 2008)]

(c) *[Appropriate surfacing defined.]* A national consensus of advocates and manufactures [manufacturers] defines appropriate surfacing as "any material tested to ASTM F1292 (including unitary surfaces and engineered wood fiber): [Playground Surfacing: U.S. Standards and Practice (January 2001)]

(d) *[ADA compliance.]* The Americans with Disabilities Act provides that ground surfaces along accessible routes, clear floor or ground spaces, and maneuvering spaces within play areas must comply with ADAAG 4.5.1 (Ground or Floor Surfaces-General) and the ASTM F 1951-99 Standard Specification for Determination of Accessibility of Surface Systems Under and Around Playground Equipment: [ADA, Section 15.6.7.]

(e) *[Playground equipment.]* State regulation requires that "all pieces of playground equipment with play surfaces 4 feet or higher from the ground shall have an appropriate energy absorptive surface such as wood chips at a depth of 8-10 inches or rubber mats manufactured for such use meeting ASTM Standard F-355, under the fall zone of the equipment." [Louisiana Administrative Code for the Department of Health and Hospitals, title 51: part XXI, chapter 5]

(f) [*Compliance required.]* Any organization committed to building playground surface materials and/or donating playground surface materials for use on property owned by the city shall comply with the guidelines of the U.S. Consumer Product Safety Commission, the Americans with Disabilities Act, the Louisiana Administrative Code for the Department of Health and Hospitals, and with the provisions of this section.
(M.C.S., Ord. No. 23263, § 1, 10-2-08)

Sec. 106-179. Facility fee waivers.

(a) Notwithstanding anything in the Code to the contrary, the chief executive officer of the New Orleans Recreation Development Commission shall have the exclusive authority, at the request of the event sponsor, to waive any facility usage fee, including those fees imposed pursuant to section 2-1102(A)(1), section 2-1102(A)(4), section 106-171, or section 106-173, for special events lasting not more than one day that are sponsored by:

1. a non-profit organization in good standing with the Louisiana Secretary of State;
2. any organization exempt from taxation under Section 501 of the Internal Revenue Code; or
3. an educational institution.

(b) To qualify for a facility usage fee waiver, the event must, in the chief executive officer's discretion, promote a valid educational, charitable, social, cultural benefit to the City of New Orleans, which must be evidenced by an attestation of a representative of the sponsoring organization on forms prepared by the chief executive officer.

(c) No sponsoring organization may receive more than one fee waiver pursuant to this section per calendar year.

(d) For an event that satisfies the criteria set forth in this section and is open to the general public, the chief executive officer may waive up to 100 percent of the facility usage fee in accordance with policies and procedures established by the department.

(e) For an event that satisfies the criteria set forth in this section and is not open to the general public, the chief executive officer may waive up to 50 percent of the facility usage fee in accordance with policies and procedures established by the department.

(f) No entrance or admission fees may be charged in connection with any event granted a fee waiver under this section.

(g) Any fee waiver authorized by this section shall not include any direct costs to the city.

(h) Any fee waiver granted pursuant to this section shall not include any required security or damage deposits imposed pursuant to section 106-171 or 106-173. The sponsoring organization shall be responsible to the city for damage to any gymnasium, pool, or center resulting from or occurring during the event. The New Orleans Recreation Development Commission shall compile and maintain as a public record a database

of all fee waivers granted pursuant to this section. The database shall contain the sponsoring entity, a description of the event and its public purpose, the date of the event and the amount of the waiver.

(i) Denial of a fee waiver requested pursuant to this section shall not be appealable to the council.

(j) Sporting events are not eligible for a fee waiver under this section.

(k) Events consisting primarily of film or television production shall not be eligible for a fee waiver under this section.
(M.C.S., Ord. No. 29825, § 3, 3-7-24)

Secs. 106-180—106-210. Reserved.

ARTICLE IV. PROTECTION OF VEGETATION*

Sec. 106-211. Definitions.

Except as otherwise expressly provided in this article, the following terms and their variant forms shall mean the following:

Air spading means the process of using compressed air to remove or loosen soil around a tree's roots or its base without causing damage.

Arborist means a specialist who is an expert in the care, pruning, trimming and removal of trees who is currently licensed by the State of Louisiana.

Caliper means a measurement of a nursery grown tree trunk taken six inches above the ground up to and including four-inch caliper size. If the caliper at six inches above the ground exceeds four inches, the caliper should be measured at 12 inches above the ground.

City tree means a tree located on any city property or right-of-way.

City vegetation means shrubs, plants, or groundcover on any city property or right-of-way.

Critical root zone or *CRZ* means a measurement established based on the trunk diameter at breast height. The CRZ is an equidistant circular area which has a radius calculated at one-foot to every one-inch DBH or is defined as the outer edge of the dripline, whichever distance is furthest.

Department means the department of parks and parkways.

Diameter at breast height or *DBH* means the method used to measure caliper by the timber industry, which is taken approximately four and one-half feet high on the trunk of a tree above the ground line.

Director means the director of the department of parks and parkways.

Drip line means the vertical line extending from the outermost portion of the tree canopy to the ground.

Sidewalk bridging means a method of installing a walkway over root systems without excavation.

Tree protection zone or *TPZ* means an area containing roots that are critical for a tree's health and survival.

Tree topping means the removal of a tree's top, large branches or trunk.

Trenching means the mechanical excavation of a narrow area of ground, commonly used in the repair or installation of utilities.

Tunnel and bore means the use of machinery to displace soil at a minimum depth of 30 inches beneath the surface within the CRZ.

Utility arborist means a specialist in the care of trees located along utility rights-of-way who is currently licensed by the State of Louisiana.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-212. Purpose and scope.

The purpose of this article is to protect and maintain the urban tree canopy while safeguarding the multiple environmental and social benefits it provides, including improving air quality, reduc-

*__Editor's note—__M.C.S., Ord. No. 30255, § 1, adopted March 27, 2025, amended Art. IV in its entirety to read as herein set out. Former Art. IV, §§ 106-211—106-229, pertained to similar subject matter, and derived from Code 1956, §§ 43-22—43-37, 43-39, 43-40; M.C.S., Ord. No. 18,382, § 1, 8-21-97; M.C.S., Ord. No. 18,689, §§ 1, 2, 4-16-98.

ing storm water runoff, lowering temperatures, and providing wildlife habitats. This article sets forth standards for the management and protection of city trees through provisions for removal, maintenance, and the planting of trees which supports the departments mission to manage, develop, beautify, preserve, and protect public green space.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-213. Protection of trees and vegetation on city property.

(a) Only arborists with prior written approval from the department may perform work on city trees.

(b) No person is permitted to remove, cut, disturb, or interfere in any way with any city tree without prior written approval from the department.

(c) Vehicles and heavy equipment are prohibited from working within the CRZ of a city tree or on city vegetation without prior written approval from the department.

(d) No equipment or vehicles may be cleaned, repaired, or stored on any city property within the CRZ of a city tree or on city vegetation.

(e) Excavation and fill greater than two inches in depth within the CRZ of a city tree is prohibited.

(f) Placement of decorations, string lights, wires, ropes, signs, posters, barricades, or other fixtures on city trees is prohibited unless prior written approval is received from the department.

(g) Placement of any sign, stationary or mobile, streamer, poster, bill, or other advertisement anywhere on city property, neutral ground, park, place, triangle, or sidewalk is prohibited unless prior written approval is received from the department.

(h) The attachment or installation of any electrical wire, cable, utilities, insulator, or any device to any city tree is prohibited.

(i) Injury to city trees, including the misuse or removal of any device placed to protect any tree, is prohibited.

(j) Placement of building materials, debris, or any other material within the CRZ of a city tree or on city vegetation is prohibited.

(k) Dumping of grass clippings, tree trimmings, rocks or refuse of any nature on city property is prohibited.

(l) Paving or placing of gravel or other such material under a city tree canopy or within four feet of the trunk, whichever is greater, is prohibited.

(m) Dumping, pouring, or spilling of oil, concrete mix, salt or salt water or other substances upon any city tree, or within its CRZ, is prohibited.

(n) Any person who injures, damages, or destroys any city tree or city vegetation shall promptly notify the department of such fact and that person shall, within such reasonable time as specified by the department, repair or replace such damaged city tree or city vegetation to the satisfaction of the department, in addition to any applicable penalties outlined herein.

(o) The use of any chemicals, insecticides, or oils, or the application of whitewash or paint to any city tree or city vegetation is prohibited.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-214. Tree protection near construction work.

(a) Any construction work that occurs within the CRZ of a city tree requires the presence of an arborist to ensure that correct arboreal practices are followed.

(b) Prior to the commencement of construction, and with the prior written approval of the department, an arborist must identify each city tree that will require trimming to clear for construction.

(c) Cutting, trimming, removing, spraying, treating, or planting any city tree or city vegetation without prior written approval by the department is prohibited.

(d) The contractor shall be responsible for damage to all city trees and city vegetation and shall be liable to the city, for either compensation or tree replacement, as determined by the department.

(e) When an approved construction plan specifies for the removal of city trees or city vegetation, the owner, contractor, or agency authorizing the work shall compensate the city prior to beginning construction.

(f) If it is found that city trees or vegetation must be removed to complete a project and the department agrees to the removal, the trees or vegetation shall be transplanted to adjacent city property if possible and shall meet all additional department planting specifications, including one year of watering. If it is not possible to transplant the plant materials the city shall be compensated for the city trees or city vegetation.

(1) Compensation may include replacement planting on the city portion of the construction site or on nearby city property. The minimum rate of replacement shall be one caliper inch of replacement tree for each inch of DBH as assigned by the project survey or department.

(2) If it is not possible to plant a replacement tree on the city property portion of the construction site or on nearby city property, the city may accept a monetary amount equal to the replacement cost of the tree based upon current market conditions and the DBH, condition, and height of the tree to be removed.

(g) Installation of tree protection fencing is required around all city trees prior to construction and shall stay in place for the duration of construction.

(1) Tree protection fencing shall include a wood or chain link barricade at least five feet high along the CRZ and shall avoid damaging trees and plant materials unless an alternative tree protection method is approved in writing from the department.

(2) The removal of tree protection fencing during construction is prohibited.

(3) The contractor or property owner shall contact the department for an inspection of the tree protection fencing prior to the commencement of any site work, including demolition or clearing.

(4) Tree protection fencing shall carry durable signs designating the area as "Tree protection zone. No entry unless authorized by the Department of Parks and Parkways". Such signs shall be spaced around the perimeter of all tree protection zones with a maximum spacing of 25 feet. Signs shall be a minimum eight inches by ten inches in size and shall be firmly affixed to the tree protection fence.

(h) Signs, barricades, equipment, or materials shall not be attached to city trees or plant materials. "Overhead Clearance" signs may be loosely attached using a rope or chain when approved by the department.

(i) If a route for machinery is required through a grove of city trees, the department may allow a temporary pathway through the grove. Such a pathway shall be as narrow as practical, temporarily covered with eight inches of wood chips and a layer of plywood and enclosed by protective fencing on both sides.

(j) When construction work is taking place within the CRZ of a city tree, including sidewalk, drainage work, utility work, or planting, all work shall be completed without the use of heavy equipment and must receive prior approval from the department.

(1) Use of an air spade, hand-digging, or similar technology may be required to reveal the roots for preventative pruning by an arborist under the supervision of department.

(2) Alternative means for utility installation, such as tunnelling and boring, may be required where deemed necessary by the department.

(3) Alternative paving methods such as sidewalk bridging, flexible paving, ADA compliant gravel, and other technologies may be required as deemed appropriate by the department.

(k) The department may order additional tree protection measures if site conditions warrant them.

(l) Each city tree shall be irrigated at least two times per week for the period of April through October over the duration of the project.

(m) Trenching within the CRZ of any city tree is prohibited. If work within the area within the CRZ cannot be avoided, the department may grant permission for the work and shall require the use of boring or air spade equipment to tunnel beneath the CRZ. The minimum depth for boring is 30 inches and tunneling shall be located as far from the trunk as possible.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-215. Bond of contractors.

Contractors and others doing work on a neutral ground, either for excavations or other projects shall, at the director's written request, give bond to the department to guarantee the payment of all costs for repairing any settlement or other damage or deterioration that shall take place in such neutral ground as a result of the project undertaken by them.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-216. Public utilities.

(a) Public utility companies shall submit, subject to approval by the department, an annual trim plan by January 31 of each year to the department.

(b) Utility contractors shall abide by the requirements set forth in the Louisiana Revised Statutes Chapter 24: Horticulture, and the Louisiana Administrative Code 7: XXIX.117 (H).

(c) Only utility arborists shall execute the removal of trees or portions of trees along utility rights-of-way.

(d) Except for trees being removed, utility arborists shall not use climbing irons except in locations where other practical means of tree trimming are not available or as provided by the Louisiana Administrative Code.

(e) Utility arborists shall carry insurance as provided by the Louisiana Administrative Code.

(f) Utility arborists shall prominently display their license during all work.

(g) Treatment recommendations and pruning practices shall meet the standards outlined in the latest edition of the International Society of Arboriculture *Certification Manual and Best Management Practices?Utility Pruning of Trees.*

(h) In an emergency, public utility companies may perform minimum pruning or digging measures without a permit only to a degree necessary to restore or to avoid the loss of service or to abate imminent endangerment to human life in accordance with the provisions herein. The department shall be notified of the emergency work in a timely manner.

(1) All pruning or digging within the root system of a tree or shrub shall be done in accordance with the rules of good arboricultural practice as set forth in the publication Tree Care Operations—Tree, Shrub and Other Woody Plant Maintenance—Standard Practices, latest edition document number A300, published by the American National Standards Institute.

(2) Any emergency work must be subsequently brought up to appropriate standards to the greatest extent possible, as determined by the department. Such remedial work shall commence as soon as possible.

(i) When the department undertakes the removal or trimming of trees for the benefit of a utility company, the department may charge the utility company at rates to be determined by the department.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-217. Written permission required.

(a) No tree, shrub or plant shall be planted on city property by any person without the prior written permission of the department.

(b) Any tree, shrub or plant planted in any city property may be removed by the department at the expense of the responsible party.

(c) Each tree, plant, shrub, or other vegetation planted on city property shall become the property of the city.

(d) No tree shall be removed from city property without the prior written permission of the department.

(e) No tree located on city property shall be cut, pruned, or treated without the prior written permission of the department.

(f) Written permission must be attained for the temporary use of city property under the jurisdiction of the department, including but not limited to neutral grounds, rights-of-way, and parks.

(g) The department shall keep a record of all permitted city tree maintenance, removals, and plantings. These records shall be made available to the public.

(h) All permitted pruning shall be done in accordance with the rules of good arboricultural practice as set forth in the publication Tree Care Operations—Tree, Shrub and Other Woody Plant Maintenance—Standard Practices, latest edition document number A300, published by the American National Standards Institute.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-218. Maintenance.

All permitted planting on city property must meet maintenance standards as set forth by the department.

(a) The permittee shall be responsible for the maintenance, repair, and replacement of all landscape materials that are installed as part of a permit. Maintenance includes, but is not limited to: mulching, weeding, irrigating, fertilizing, pruning, and replacement of dead or dying plants.

(b) All plant materials and planted areas must be tended to and maintained in a healthy growing condition and kept free of refuse and debris. Plant materials that exhibit evidence of pests, disease, or damage must be appropriately treated and dead plants must be replaced.

(c) Care shall be taken to protect all trees and landscape materials while performing routine maintenance operations such as grass cutting and trenching.

(d) Tree topping is prohibited.

(e) The department may require that the permittee allow the city to treat trees or shrubs suffering from transmittable diseases or infestation of pests. If the disease or pests warrant drastic action to curb the spread to healthy trees or shrubs, or if the tree represents a public hazard, on the advice of the department, the permittee may be required to allow the city, or its agent, to treat or remove the tree.

(f) Clear sight lines must be maintained at a minimum height of six feet for a minimum distance of 25 feet from all intersections.

(g) Watering shall be sufficient to maintain vigorous and healthy plant growth and shall occur a minimum of two times per week during the months of March through October and one time per week during the remainder of the year.
(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-219. Request for pruning.

Requests may be made to the department in writing for the cutting, pruning, or removal of a city tree adjoining, adjacent to, or abutting private property.

(a) If it is found that a city tree substantially causes loss, damage, or deprivation of the lawful use of such property, then the department may cut, prune, or remove such tree.

(b) Requests for the cutting, pruning, or removal of a city tree performed at the applicant's expense, rather than by the department, shall receive prior written permission.

(c) All such requests for cutting, pruning, or removal of city trees shall be completed by arborists, pursuant to the following provisions:

(1) Such requests shall provide the department at least ten working days advance notice of the date and time contemplated for such work.

(2) No cutting, pruning, or removal of a city tree shall be done without written permission from the department.

(3) In no instance shall a city tree be cut, pruned, or removed contrary to the expressed stipulations of the department, nor shall work commence prior to receiving written permission from the department.

(4) The department further reserves the right and authority to inspect the work in progress and to require such work comply with standards for arboricultural work as well as all applicable ordinances and policy decisions of the department.

(d) No party shall be permitted to personally cut, trim, or remove any city tree adjoining, adjacent to, or abutting their property without prior written permission from the department.

(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-220. Enforcement.

(a) Any person or entity who violates this article shall be subject to penalties in accordance with section 1-13 of this Code. Each day that such violation exists shall constitute a separate and distinct offense.

(b) The department shall issue a stop work order when work is being done in violation of this article, without approval, or if determined by the department to be hazardous.

(c) Willful destruction of city trees shall render the party responsible liable for the actual cost of repair or replacement. The responsible party shall bear the cost of repairing the damaged tree, to be determined by the department. The responsible party shall replace the damaged tree(s) with a specimen(s) of equal size and caliper, as approved by the department, including a one-year watering contract and a five-year warranty. If in kind replacement is not possible, the difference in cost shall be met through additional financial penalties that match the monetary value of the destroyed tree or with the planting of additional city trees.

(1) The cost of replacement method as established by the department and the current edition of the *Guide for Plant Appraisal*, published by the council of tree and landscape appraisers, shall form the basis of calculating monetary damages due for damage or destruction to the tree.

(d) If a person or entity who causes damage to a city tree or other plant on city property fails or refuses to repair or replace the damaged or destroyed trees or other vegetation within a reasonable time, the department shall perform the necessary repair or replacement and the cost of this work shall be recovered from the person or entity responsible for the damage or destruction.

(e) The department may require the person or entity responsible for damage to a city tree hire an arborist to perform remediation work including, but not limited to: root pruning, termite treatment, mulching, irrigation, vertical mulching, radial aeration, mycorrhizal fungal inoculate, or growth regulation.

(f) In addition to any fine or penalty imposed by this article, the city may seek all available relief in a court of competent jurisdiction to enjoin any violation.

(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Sec. 106-221. Department not to be interfered with.

No person shall prevent, delay, or interfere with the department in the planting, pruning, spraying, or removal of a city tree or city vegetation, or in the removal of stone, cement, or other substances about the trunk of a city tree.

(M.C.S., Ord. No. 30255, § 1, 3-27-25)

Secs. 106-222—106-260. Reserved.

ARTICLE V. JACKSON SQUARE*

Sec. 106-261. In custody of parkway and park commission.

The custody of that square of ground in the city known as Jackson Square is hereby placed in the parkway and park commission of the city, in accordance with the provisions of the charter, which grants to the parkway and park commission the administration and control of all parks within the city. The parkway and park commission shall have entire charge of such square in the same manner as was formerly vested in the board of curators of the Louisiana State Museum.
(Code 1956, § 43-57)

Sec. 106-262. French Quarter Festivals, Inc.'s, use of Jackson Square.

Jackson Square was once known as Public Square, with countless community celebrations held there. Even more credence was given to this location as a place of the public when in 1839 some 30-odd "stall-keepers-fruit merchants" were given permission to do business. The French Quarter Festival began in 1984 as a means of attracting locals back to the Vieux Carré after the extensive street and sidewalk repairs done in preparation for the World's Fair. This festival now attracts more than 760,000 people annually, and with the significant proof of the boost it has given to the economy by generating over $251,000,000.00 in economic impact, as well as being the stimulus for other events such as "Satchmo SummerFest" and "Christmas New Orleans Style," the French Quarter Festivals, Inc., shall be permitted to use Jackson Square for all of the activities planned for their annual festivals as provided herein.
(Code 1956, § 43-57.1; M.C.S., Ord. No. 26949, § 1, 6-9-16)

Sec. 106-263. Cabildo, transferred to curators of state museum.

The Cabildo fronting on Jackson Square in the city has been transferred to the board of curators of the state museum and dedicated in perpetuity for museum purposes; provided, however, that such dedication shall lapse if the curators shall fail to discharge the duties imposed on them by law.
(Code 1956, § 43-58)

Sec. 106-264. Assignment of supreme court room to historical society.

The supreme court room in the Cabildo, with the Chartres Street front, shall be assigned to the exclusive use of the Louisiana Historical Society so long as it performs the objects and purposes for which it was created by Act No. 6 of 1860, and Act No. 108, extra session of 1877. But should the Louisiana Historical Society cease to exist, the use of the supreme court room shall be determined by the board of curators of the state museum.
(Code 1956, § 43-59)

Secs. 106-265—106-295. Reserved.

ARTICLE VI. LOUISIANA NATURE AND SCIENCE CENTER†

Sec. 106-296. Prohibition of certain activities.

It shall be unlawful for any person to engage in any of the activities hereinbelow listed while

*__Cross references—__Restrictions regarding certain entertainment in the Vieux Carré and Jackson Square, § 30-1451 et seq.; certain restrictions for sales in the central business district and Jackson Square for mayoralty permits, § 34-216 et seq.; peddlers, solicitors and itinerant vendors, ch. 110; certain restrictions for sale of artifacts by mayoralty permit holders in certain areas, § 110-76 et seq.; certain restrictions on sales by artists holding mayoralty permits in Jackson Square and the central business districts, § 110-121 et seq.; restrictions on sales of flowers by mayoralty permit holders in Jackson Square and the central business district, § 110-151 et seq.; restrictions on sales of food by mayoralty permit holders in Jackson Square and the central business district, § 110-186 et seq.; certain restrictions regarding soliciting in the central business district and Vieux Carré, § 110-221 et seq.; restrictions on sales by transient vendors in Jackson Square and Vieux Carré, § 110-256 et seq.; streets, sidewalks and other public places, ch. 146.

†__Cross reference—__Streets, sidewalks and other public places, ch. 146.

within confines of that portion of Joe W. Brown Park leased to Louisiana Nature and Science Center, Incorporated so long as the Louisiana Nature and Science Center, Incorporated actively continues those purposes for which the property was leased. Those activities which shall be unlawful unless specifically approved by the director of the Louisiana Nature Center are:

(1) The possession, destruction, injury, defacement, removal or disturbance in any manner of any building, sign, fence, gate, equipment, monument, marker, or other structure, or of any animal or plant and direct or indirect products thereof, including but not limited to logs, stumps, flowers, branches, leaves, cones or other fruit, egg, nest or nesting site except as otherwise provided in this section.

(2) Possession of rifles, shotguns, pistols, bows and arrows, pellet guns, BB guns, slingshots, saws, knives, hatchets, and other such weapons which might be used to harm wildlife or plants.

(3) Littering.

(4) Smoking on grounds and along trails except as allowed in designated areas and in street.

(5) Swimming, bathing or boating in any water retaining areas on the Louisiana Nature and Science Center, Incorporated grounds.

(6) Picnicking, defined as the consumption of food or drink brought onto the grounds of the Louisiana Nature and Science Center unrelated to any function or activity sponsored by the Louisiana Nature and Science Center.

(7) Fishing, crawfishing, trapping, the removal of any type of plant or animal materials, living or dead.

(8) The bringing of dogs, horses, cats, and other animals onto Louisiana Nature and Science Center grounds even when under constraints of a leash, etc. They shall be allowed in constraint along Park Road and within ten feet of curb on either side while in passage from Joe Brown Park to Lake Forest Boulevard. Persons with constrained pets in passage between the park and Lake Forest must not loiter on Louisiana Nature and Science Center property. Seeing-eye dogs used to guide visually impaired persons and dogs specially trained to assist handicapped persons with other impairments to ambulation are excluded from this regulation.

(9) The use of bicycles, skateboards, tricycles, and any other such vehicles, as well as motorbikes, motorcycles, go-carts, and other motorized vehicles on Louisiana Nature and Science Center boardwalk, trails or ground other than roads. Wheelchairs and baby carriages are allowed on trails. Bikes, motorbikes and motorcycles are allowed to be locked up at the designated area of the boardwalk near the Exhibits Building, but must be walked to this area while on the boardwalk.

(10) Leaving trails, walkways, structures and other areas as marked and designated for use by the public by Louisiana Nature Center personnel. Leaving such areas may be permitted under the guidance of Louisiana Nature Center personnel. Leaving such designated areas without the above-mentioned guidance or permission is considered trespassing.

(11) Disturbing the peace, as defined in section 54-403, while on the Louisiana Nature Center ground.

(12) Any assemblies of people on the Louisiana Nature Center grounds for non-nature-study activities, including but not limited to private parties, speeches, or playing or making music.

(13) Soliciting visitors on the Louisiana Nature Center grounds.

(14) Presence of any individual on Louisiana Nature Center property from one-half hour after sunset until one-half hour before sunrise, except for Louisiana Nature Center staff members, persons

attending Louisiana Nature Center programs, persons assisting Louisiana Nature Center staff, and security persons.

(15) The use of sound-producing electronic or mechanical devices such as radios, tape players, or musical instruments on Louisiana Nature Center property in a way that might disturb wildlife or interfere with another person's enjoyment.

(16) Feeding of animals.

(17) Releasing any animal or placing plant materials on Louisiana Nature Center property.

(18) Picking of berries or other fruit or any edible or nonedible parts of plants.

(19) Climbing trees, pulling on branches, hanging from branches, and any other activities potentially harmful to trees, shrubs, or other plants, including building treehouses, forts, or placing steps upon tree limbs and trunks.

(20) Disturbance of wildlife feeding areas, nesting boxes or nesting animals. People wishing to set up photographic equipment to record nesting birds or other animals, or birds or other animals at feeding areas, shall obtain permission from the staff.

(21) Cars and other motor vehicles parked or operated in areas not designated for that purpose. Vehicles parked in nondesignated parking spaces are subject to towaway.

(22) The flying of kites and model aircraft over Louisiana Nature Center property.

(23) Camping and the setting of fires.

(24) Possession of tools and/or markers or other instruments which could be used in a manner destructive to Louisiana Nature Center property, equipment or facilities.

(Code 1956, § 43-63)

Sec. 106-297. Warning signs.

Signs shall be erected at each entrance to the grounds of the Louisiana Nature Center which shall cite the prohibitions enumerated in section 106-296. Such signs shall conform with all parks and parkway commission and the department of streets standards relative to placement, size, materials and erection as are considered applicable by those agencies.

(Code 1956, § 43-64)

Secs. 106-298, 106-299. Reserved.

ARTICLE VII. CITY PARK

Sec. 106-300. Hours of operation.

City Park shall be open to the public daily from one-half hour before official sunrise to one-half hour after official sunset, at which time all persons must vacate City Park premises. Harrison and Filmore will remain open through City Park. The areas to be vacated are bounded by Wisner, Marconi and up to, but not including, Harrison and City Park Avenues and public areas from Harrison to Robert E. Lee.

(a) Overnight parking, walking, sleeping, and camping by individuals or groups is prohibited within the confines of City Park except upon special written permission obtained from City Park management.

(b) Any person found one-half hour after official sunset in areas other than those outlined herein for occupancy one-half hour after official sunset or without special written permission shall be considered to be disturbing the peace by their presence in such areas and shall be presumed to be doing damage to the grass, foliage, and other property of City Park.

(c) Exceptions to (b) above include special events extending beyond hours such as football games in the stadium, the softball complex, or at New Orleans Museum of Art (NOMA), or activities being held at Christian Brothers School, or any other recognized City Park facility as specified by City Park management. Persons attending such events are required to vacate City Park premises within 30

minutes of the end of any such event. Employees and patrons of Morning Call Coffee Stand, open 24 hours per day, seven days per week and located in the Casino Building on Dreyfous Avenue, are also excepted from (b) above while travelling to or from the facility and while found within the facility.

(d) Golfers are permitted in the immediate vicinity of the Golf Club House if waiting for an early morning tee-off assignment.

(e) Boy and Girl Scouts of America may use Scout Island or other areas designated by City Park management provided they are under the direct supervision of adult Scout leaders and upon prior reservation.

(f) When Tad Gormley Stadium and the Marconi Meadow area are not scheduled for other events, groups with proper bedding facilities in portable trailers, campers or mobile dwellings may be permitted, upon proper application to City Park management, to occupy such enclosed areas overnight. Such groups must (1) comply with Group Rules relative to sanitation, (2) post liability insurance as outlined by the City Park Chief Executive Officer, and (3) provide sanitary, water, and electric facilities at the users' expense. Such groups are required to notify the City Park Superintendent of Police of the number of participants in their group and the date of their arrival and departure.

(M.C.S., Ord. No. 22166, § 1, 3-16-06; M.C.S., Ord. No. 25940, § 1, 7-10-14)

Sec. 106-301. Prohibition of certain activities.

It shall be unlawful for any person to engage in any of the activities herein below listed while within the confines of City Park. Those activities which shall be unlawful unless specifically approved by the director of the park are:

(a) No individuals or groups will be permitted to purchase or sell any food, drinks or novelties within the confines of the park, unless approved in writing by park management in accordance with its contractual arrangements with various concessionaires.

(b) There shall be no trapping, hunting, discharging of firearms, or other noisemaking devices whatsoever in the park.

(c) It is prohibited to injure, molest, or kill any bird or animal in the park.

(d) No dog or other animal will be allowed to roam at large in the park. Orleans Parish leash laws for dogs must be adhered to except in designated dog parks or "off-leash" areas. The area known as City Bark is such an "off-leash" area and is generally bounded by Zachary Taylor Drive, Diagonal Drive, and Magnolia Drive within the boundaries of City Park.

(e) It is unlawful to throw into the lake, lagoons, fountains and basins any rock, trash or any other object whatsoever.

(f) It is prohibited to play any game of chance, or to have possession of any game of chance, within the park.

(g) It is prohibited to climb or get upon any tree, statue, fountain, fence, gateway, or railing within the park, or to use any structure within the park for other than the purpose for which it is intended, and in accordance with the regulations applying thereto.

(h) It is prohibited to deface, injure, move or remove any sign, notice or label place by park management within the park, to write upon, deface, defile or otherwise injure any building, fence, fountain, seat, statue, gateway, wall, or other structure within the park.

(i) It is prohibited to lie down upon, or to sleep upon, or overturn or damage any seat, bench, bridge, railing, or floor within the park.

(j) No boisterous, indecent, or vulgar language will be tolerated, nor any public nuisance shall be permitted.

(k) Visitors are prohibited from cutting any flowers, destroying, removing or defacing any plants, grass, trees or shrubbery, or any other property in the park.

(l) It is prohibited to bathe or wade in or enter any lake, pool, lagoon, fountain or Bayou St. John.

(m) It is prohibited for any person to engage in formal organized games of golf, tennis, baseball, softball, football, soccer, or other events without having obtained the required ticket or park permits in advance.

(n) It is prohibited for any player to enter or to encroach upon golf links, tennis courts, softball, baseball, football, or soccer fields within the park during the progress of any game, unless he or she is a participant in or connected with such game or is a park employee or duty.

(o) It is prohibited to retrieve golf balls from the park, or to sell or offer to sell golf balls, tennis balls, or any other article of any description excepting by duly accredited representative of the park having the concession rights or a valid permit.

(p) No horses or any other animals may be ridden anywhere within the park, except in area where specific park permission has been obtained.

(q) Fishing within the park is permitted provided that fishers obtain the necessary park fishing permit.

(r) It is prohibited to drive or propel any motor vehicle at a greater speed than that posted in park areas, or to drive or propel any vehicle except in established driveways and in the direction indicated by signs, or to park any vehicle excepting areas provided and indicated.

(s) It is prohibited to drop, throw, scatter, or leave upon any part of the park any type of litter, except into receptacles provided for such purpose.

(t) It is prohibited to leave any abandoned vehicle within the confines of the park.

(u) No athletic games will be played when, in the discretion of the park CEO or his assistant, weather conditions have rendered the fields or tennis courts wet and muddy enough to result in damage to the playing area and/or the lighting facilities which illuminate said areas.

(v) It is prohibited to have an open fire in the park. Fires in barbecue pits or grill are allowed; however, caution should be taken in disposing of hot coals. It is prohibited to dump coals on any tree roots.

(M.C.S., Ord. No. 22166, § 1, 3-16-06; M.C.S., Ord. No. 22996, § 3, 2-15-08)

Sec. 106-302. Drug-free zone.

City Park shall be designated as a drug-free zone, with no controlled substances allowed within the park.

(M.C.S., Ord. No. 22166, § 1, 3-16-06)

Sec. 106-303. Sex offenders not permitted.

Registered sex offenders shall not be permitted within the park without prior registration with the park CEO.

(M.C.S., Ord. No. 22166, § 1, 3-16-06)

Chapters 107–109

RESERVED

Chapter 110

PEDDLERS, SOLICITORS AND ITINERANT VENDORS*

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*__Cross references__—Standards for storefront and display windows, § 26-511 et seq.; carnival, Mardi Gras, ch. 34; mayoralty permits for peddling novelties, candles, home manufactured or home grown products, toilet articles, etc., required, § 30-70; regulations regarding Jackson Square, § 106-261 et seq.; secondhand goods, ch. 130; signs, ch. 134; sales and use tax, § 150-441 et seq.; occupational license tax, § 150-951 et seq.

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ARTICLE I. IN GENERAL

Sec. 110-1. Rules and regulations.

The director of finance shall prescribe such other rules and regulations as to the form of the application for permits and their issuance as may be required to carry out the full intent and purpose of this chapter.
(Code 1956, § 46-4)

Sec. 110-2. Fees to go to general fund.

The collector of revenue shall transmit, day by day, as collected by him, to the bureau of the treasury all moneys and fees received for the issuance of the permits required by this chapter. The bureau of the treasury upon the receipt of such moneys and fees shall immediately deposit them in the general fund.
(Code 1956, § 46-5)

Sec. 110-3. Additional charges for police pension fund.

In addition to the charges shown in the fee schedule for each permit, each applicant shall be required to pay the sum of $0.25 for the account of the police pension fund, which additional sum shall be transmitted by the collector of revenue, day by day, as collected by him, to the chief of bureau of the treasury. At the end of each month the chief of bureau of the treasury shall remit all such sums so collected for account of the police pension fund to the board of trustees, police pension fund.
(Code 1956, § 46-2)

Sec. 110-4. Obscenity laws to be provided to certain applicants.

The department of finance shall provide a copy of R.S. 14:91.11 relative to sale, exhibition or distribution of material harmful to minors and R.S. 14:106 relative to obscenity to each applicant for a permit under this chapter to conduct live entertainment and to the owner of the premises upon which the live entertainment is proposed to be conducted.
(Code 1956, § 46-2.1)

Sec. 110-5. Mayoralty permits.

All mayoralty permits must be obtained prior to the occasion for which it is issued. Should applicant fail to secure the permit prior to the occasion, the following penalties and interest shall apply:

(1) Mayoralty permits acquired on a regular yearly basis shall become delinquent February 1 of that year. If the regular yearly permit is not obtained by February 1 of that year, there shall be interest added to the fee at the rate of eight percent per annum from the due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 20 percent of the fee if the failure to obtain said permit is for not more than 30 days and with an additional 20 percent for each additional 30 days or fraction thereof during which the failure continues, not to exceed 60 percent of the amount of the fee.

(2) Mayoralty permits acquired on other than a regular yearly basis shall become delinquent at the start of the occasion. If the permit has not been obtained prior to the occasion, there shall be interest added to the fee at the rate of eight percent per annum from due date until paid. In addition to the interest that may be so added, a penalty shall be imposed at the rate of 50 percent of the fee.

(3) The director of the department of finance may, at his discretion, for good cause, waive, in whole or in part, any of the penalties provided in this section.

(Code 1956, § 46-15)

Sec. 110-6. Permits nontransferable.

Permits issued under the authority of this chapter shall be nontransferable either as to individuals, location or item.
(Code 1956, § 46-3)

Sec. 110-7. Peddling novelties, souvenirs and foods; prohibited near schools.

It shall be unlawful to sell novelties, souvenirs, candies, nuts, confections, ice cream, ice cream

bars, hot tamales, sandwiches, soft drinks, cakes, pies, fruits, and vegetables, or any other food stuff on the city streets within two blocks of any elementary or secondary school when such school is in session.
(Code 1956, § 46-14; M.C.S., Ord. No. 23799, § 2, 11-19-09)

Sec. 110-8. Specialty urban marketplace vendor permit.

(a) The operator of a specialty urban marketplace (as defined in the comprehensive zoning ordinance of the city) located within the central business district area who shall desire to allow the sale of food, novelties, cut flowers, handicrafts and other items from fixed locations and/or from pushcarts at outdoor locations on property owned, leased or controlled by, or licensed to, the specialty urban marketplace shall first apply for and obtain from the department of finance a specialty urban marketplace vendor permit. Only persons authorized by the permittee shall sell any items from property owned, leased or controlled by, or licensed to, a specialty urban marketplace which has a permit issued under the terms of this section.

(b) The fee for a specialty urban marketplace vendor permit shall be $500.00 per year, to be paid by the permittee at the time of issuance and annually thereafter on the anniversary of its effective date. The permittee may allow persons authorized by the permittee to sell prepackaged food, novelties, cut flowers, handicrafts and other items from fixed locations and from pushcarts at outdoor locations on property owned, leased or controlled by, or licensed to, the permittee. The permittee shall maintain records of the sales activities of the persons authorized by the permittee to engage in such activity, and the permittee shall collect and remit to the department of finance the state and local sales taxes from all sales made pursuant to such permit. This provision shall not restrict the authority of the director of the department of finance to assess and collect sales and use taxes in accordance with section 150-441 et seq.
(Code 1956, § 46-40)

Sec. 110-9. Offense for misuse of permits.

(a) No person, individual, or corporation shall copy, reproduce, or counterfeit, or cause to be copied, reproduced or counterfeited, any permit issued pursuant to sections 30-69, 110-77, 110-122, 110-152, 110-186 or 110-259 by any form or process, or to otherwise represent something to be a valid permit when it is not.

(b) Whosoever violates the prohibition of this section shall be punished in accordance with the penalty provided for in sections 1-13 and 110-10.
(Code 1956, § 46-1.2)

Sec. 110-10. Penalty.

Persons who fail to obtain a permit or to comply with any of the other regulations contained in this chapter, shall be guilty of a misdemeanor and upon conviction thereof shall be subject to the punishment prescribed in section 1-13. A permittee so convicted shall forfeit such permit and not be entitled to a refund of the fees paid therefor.
(Code 1956, § 46-16)

Sec. 110-11. Prohibited street vendors.

(a) It shall be unlawful for any person to engage in any retail sales or permit any displays, signs, or advertisements for retail sales outside of any enclosed building within the city, unless expressly provided in another section of the Code of the City of New Orleans.

(b) Whoever violates the provisions of this section shall be punished by a fine not exceeding $500.00 or by imprisonment for not more than six months, or both such fine and imprisonment.
(M.C.S., Ord. No. 22147, § 1, 2-16-06)

Secs. 110-12—110-45. Reserved.

ARTICLE II. PEDDLERS AND ITINERANT VENDORS*

DIVISION 1. GENERALLY

Sec. 110-46. Permits required for various callings or occasions.

(a) Permits shall not be required for the sale by an individual of tickets at or below face value to athletic contests or other amusement events, provided that tickets are not sold or offered for sale within 750 feet of the grounds of the Superdome when the event related to the ticket is being conducted or within six hours of the scheduled commencement of such event, contest or other amusement events, within said 750-foot buffer zone, every person who shall desire to use the public streets, sidewalks or public places or private place of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the Mississippi River on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in this article.

(b) All high school games played in the Louisiana Superdome shall be excluded from the provisions of this section.

(c) Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the City confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal liens.
(Code 1956, § 46-1; M.C.S., Ord. No. 17,921, § 2, 12-19-96; M.C.S., Ord. No. 21426, § 1, 2-20-04; M.C.S., Ord. No. 30681, § 5, 6-24-26)

*__Cross references—__Mayoralty permit generally, § 30-66 et seq.; mayoralty permits for peddling novelties, candles, home manufactured or home grown products, toilet articles, etc., required, § 30-70; sales and use tax, § 150-441 et seq.

Sec. 110-47. Fees.

Permits shall be paid for by the applicant at the time of issuance.
(Code 1956, § 46-1)

Sec. 110-48. Reserved.

__Editor's note—__M.C.S., Ord. No. 25407, § 1, adopted July 25, 2013, repealed § 110-48, which pertained to parking, stopping vehicles restricted and derived from Code 1956, § 45-5; Ord. No. 23799, § 2, adopted Nov. 19, 2009. The user's attention is directed to § 110-186 et seq.

Secs. 110-49—110-75. Reserved.

DIVISION 2. ARTIFACTS†

Sec. 110-76. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Application for mayoralty permit means each individual outlet must have a separate application; permits will be good for only the location on that application.

Handmade artifact means merchandise which is entirely handmade by the labor of the permittee or workers of the permittee; it shall not include any finished products bought for resale, or perishable or edible merchandise.

Permittee means the person who obtains a mayoralty permit to sell handmade artifacts.

Vendor means a person employed by the permittee to display and sell the permittee's handmade

†__Cross references—__Mayoralty permits required for various callings or occupations or occasions, § 30-69; Jackson Square, § 106-261 et seq.; Vieux Carré, ch. 166.

artifacts; vendors will be restricted to sell only at the stand which bears the individual mayoralty permit number.
(Code 1956, § 46-4.3(A))

Cross reference—Definitions generally, § 1-2.

Sec. 110-77. Permits required.

Every person who shall desire to use the public streets, sidewalks or public places or private places of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which the permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the [Mississippi] River on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 110-80.
(Code 1956, § 46-1; M.C.S., Ord. No. 21426, § 1, 2-20-04)

Sec. 110-78. Fee.

Permits shall be paid for by the applicant at the time of issuance to sell handmade artifacts on the city sidewalks, per sales outlet, per year, in the amount of $125.00.
(Code 1956, § 46-1(38); M.C.S., Ord. No. 23818, § 12, 12-1-09)

Sec. 110-79. Location of sale restricted.

(a) Notwithstanding the provisions of sections 110-77 or 110-80 to the contrary, the sale of handmade artifacts shall be allowed only from the following locations: On Canal Street between Dauphine Street and Bourbon Street (downtown side); on Canal Street between North Rampart Street and Burgundy Street (downtown side); on Canal Street between Exchange Place and Chartres Street (downtown side); on Canal Street between Bourbon Street and Royal Street (downtown side); on Canal Street between Royal Street and Exchange Place (downtown side); on Canal Street between Burgundy Street and Dauphine Street (downtown side); on North Rampart Street between Dumaine Street and St. Philip Street (lake side); on Canal Street between Elks Place and South Rampart Street (uptown side); on Canal Street between Carondelet Street and St. Charles Avenue (uptown side); on Tulane Avenue between LaSalle Street and South Villere Street (uptown side); on Canal Street between Basin Street and North Rampart Street (downtown side). The number of permits issued shall be limited to one for each of the above locations. No more than two persons shall be allowed at each stand.

(b) The traffic engineering division of the department of streets shall, after application by a vendor to sell under the provisions of this section, review the application as to the location proposed by the applicant, and shall in accordance with the provisions hereinafter specified, designate the selling location by placing a numbered marker at that location. The number on the marker shall be the same as the serial number on the permit.

(c) The selling location designated by the traffic engineer shall be placed as near to the middle of the block as possible but in no event shall the location be designated directly in front of the entrance to a store. There shall be no more than one such location per block.

(d) If the above-mentioned authorized locations are unavailable for use due to sidewalk construction or renovations, the director of the department of streets and the director of the department of finance shall meet with the licensees for the purpose of temporarily reassigning locations. The directors shall submit a written report of the temporary assignments to the city council. If no agreement with the licensees can be arrived at, the city council shall then be able to reassign the temporary relocations.
(Code 1956, § 46-4.3(B))

Sec. 110-80. Permits valid in the central business district.

Permits are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south.
(Code 1956, § 46-1.1)

Sec. 110-81. Permits not valid in certain areas during Annual Louisiana Jazz and Heritage Festival Season.

(a) Permits are not valid within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) during the Annual New Orleans Jazz and Heritage Festival Season.

(b) The "Annual New Orleans Jazz and Heritage Festival Season" is defined as that period occurring annually commencing at 7:00 a.m. on the first day of live music performances at the New Orleans Jazz and Heritage Festival conducted annually at the fair grounds racetrack by the New Orleans Jazz and Heritage Foundation, Inc., and continuing through and until midnight on the concluding day of live music performances at such location during such festival.
(Code 1956, § 46-1.1.1)

Sec. 110-82. Application for permit.

The permittee who wishes to obtain a mayoralty permit for the sale of handmade artifacts on public streets, sidewalks or other public places must file an application with the department of finance. The application shall state the true, lawful and complete name and address of the permittee, the trade name, if applicable, the address or addresses of any locations used for the storage of carts, stands, equipment, supplies and/or inventory. The application shall also state the location at which the permittee desires to place his stand. Such application must be notarized. A separate application and permit shall be required for each outlet.
(Code 1956, § 46-4.3(C)(1))

Sec. 110-83. Duration, renewals.

Permits shall be issued under this division on a calendar year basis. Applications for these permits cannot be made prior to December 1 of the year preceding that for which the permit will be valid. Permits shall be renewed annually. At the time of the renewal of these permits, the applicant who holds a permit for his specific location shall be given preference over any applicant seeking to obtain a permit for the location.
(Code 1956, § 46-4.3(C)(1))

Sec. 110-84. Issuance.

Upon approval of the application for a permit under this division by the department of finance and payment of the permit fee, as provided in section 110-78, the applicant shall be issued a mayoralty permit in accordance with this division.
(Code 1956, § 46-4.3(C)(2))

Sec. 110-85. Boutiques.

For the purpose of this section and of section 30-70(12), a boutique is the sale of homemade, handmade artifacts to be sold in a private home or private facility not more than two weekends per year. Such merchandise shall not include any perishable or edible items nor merchandise bought for resale. Weekend shall mean any Friday and Saturday or Saturday and Sunday during a year.
(Code 1956, § 46-4.3.1)

Sec. 110-86. Notice of change of address.

Whenever the address of any permittee under this division, as submitted on the application is changed, the permittee shall notify the department of finance within ten days of such change.
(Code 1956, § 46-4.3(C)(2)(a))

Sec. 110-87. Designation of location.

The traffic engineering division of the department of streets shall, after application by the permittee to sell under the provisions of this division, review the application as to the location proposed by the applicant and shall in accordance

with the provision hereinafter specified, designate the selling location by placing a number marker at that location. The number on the marker shall be the same as the serial number on the permit. The selling location designated by the traffic engineer shall be placed as near to the middle of the block as possible but in no event shall the location be designated directly in front of the entrance to the store. There shall be no more than one such location per block.
(Code 1956, § 46-4.3(C)(2)(b))

Sec. 110-88. Placement of stand at location.

Handmade artifact vendors are prohibited from placing their stands or displays on the sidewalks in the city except those sidewalks where the paved portion of the sidewalk is 12 or more feet wide. On such paved sidewalks which are 12 or more feet wide, stands or displays must be located as close to the curbside as possible for the convenient operation of their businesses, but no closer than 18 inches from the curbside and at least 30 feet behind a bus stop sign and at least five feet from the approach side of a crosswalk to an intersection.

(1) Handmade artifact vendors are prohibited from conducting business on any neutral ground or median strip of a divided street.

(2) If at any time the outlet is deemed by the department of police to be interfering with either pedestrian or vehicular traffic or creating a disturbance, the outlet shall be removed immediately by such vendor upon request by the department of police.

(Code 1956, § 46-4.3(C)(2)(f))

Sec. 110-89. Maintenance of location.

Handmade artifact vendors shall keep the sidewalks, streets or other public places adjoining and adjacent to their locations of business clean and free from any refuse generated from the operation of their business.
(Code 1956, § 46-4.3(C)(2)(g))

Sec. 110-90. Identification badge.

Vendors under this division shall be issued a badge with their photograph, name and address, the permittee's name and address, the mayoralty permit number and the signature of the person issuing such badge. The badge shall be conspicuously displayed on the vendor whenever business is being transacted. The mayoralty permit shall be affixed to the stand or displayed at all times. No more than two vendors, both wearing individual badges, shall be allowed at each stand.
(Code 1956, § 46-4.3(C)(2)(c))

Sec. 110-91. Specifications for stand.

The stand or display shall be no larger than six feet by three feet and shall conform to the design provided by the downtown development district in every respect. All merchandise displayed will not be higher than one level at any point and none will be displayed beyond the confines of the table for any reason. A copy of these plans shall be kept on file in the office of the clerk of council. The cost of the stand or display as described herein shall be paid by the permittee.
(Code 1956, § 46-4.3(C)(2)(d))

Sec. 110-92. Attendance of stand; removal, fees.

No stand or display shall be left unattended for more than 15 minutes. If a stand is left unattended for more than 15 minutes, it will be subject to removal by the employees of the department of streets or the police department to a public pound or public warehouse. If the permittee wishes to claim such stand or display, the permittee shall pay a towing fee of $50.00 and, in addition, there shall be an additional fee of $3.00 for storage of such stand or display for each additional 24 hours from the time the stand or display was removed.
(Code 1956, § 46-4.3(C)(2)(e))

Sec. 110-93. Manner of solicitation.

At no time shall a handmade artifact vendor make an oral solicitation or harass the public to purchase his merchandise.
(Code 1956, § 46-4.3(C)(2)(h))

Sec. 110-94. Records of business.

Every handmade artifact vendor shall keep sufficient records of sales, records and receipts of purchases and expenses, and shall make such available for inspection to any officer of the department of finance. Every vendor shall make such sales tax returns and other reports as are required by the provisions of this Code.
(Code 1956, § 46-4.3(C)(2)(i))

Sec. 110-95. Penalties for violations.

Whoever violates the provisions of this division shall be fined as follows:

(1) For the first conviction of any subsection of this section, the vendor will be fined $100.00 and the permittee will be provided written notice of the vendor conviction by certified mail.

(2) For the second conviction of any subsection of this section the vendor will be fined $200.00 and the permittee's mayoralty permit will be suspended for a period of 90 days and the permittee will be provided written notice of the conviction by certified mail.

(3) For the third conviction of any subsection of this section, the vendor will be fined $300.00 and the loss of their vending permit for a period of 365 days from the date of conviction. Also, the permittee will have their mayoralty permit revoked and the loss of that location for future vending and will be provided written notice of the vendor conviction by certified mail.

(Code 1956, § 46-4.3(C)(2)(j))

Sec. 110-96. Appeals.

If the permittee wishes to file an appeal to the revocation process, the permittee must file a written request within five days with the department of finance from the date appearing on the notice of revocation. The hearing shall be held before the director of the department of finance and/or his designated representative.
(Code 1956, § 46-4.3(C)(2)(k))

Sec. 110-97. Regulation of vending stands within the downtown development district.

In addition to any city-wide regulations regarding the appearance, design, merchandise and location of vending stands, all vending stands located within the downtown development district, as defined in section 146-193, shall adhere to the following regulations.
(Ord. No. 20,766, § 1, 6-20-02)

Sec. 110-98. Use of downtown development district enforcement agents.

The superintendent of police may authorize and empower one or more employees of the downtown development district to enforce the provisions of sections 110-97 through 110-101, as well as other municipal laws within the downtown development district.
(Ord. No. 20,766, § 1, 6-20-02)

Sec. 110-99. Bond required.

Every owner, lessee or operator of any vending stand located within the downtown development district shall furnish a good and solvent surety bond, in solido, in favor of the downtown development district, satisfactory to the executive director of the downtown development district in the amount of $50.00 for each vending stand, to guarantee the faithful performance of all the obligations of the owner, lessee or operator, set forth in this part or promulgated by the downtown development district which bond shall be subject to forfeiture upon a finding of failure to adhere to the uniform standards promulgated by the downtown development district.
(Ord. No. 20,766, § 1, 6-20-02)

Sec. 110-100. Uniformity and maintenance of appearance.

The owners, lessees, and operators of all vending stands located within the downtown development district shall adhere to a uniformity of appearance, design and construction, as well as location requirements, as established in the administrative regulations promulgated by the downtown development district, which shall at a

minimum establish standards for uniformity of appearance, design and construction, and shall specify the location where such stands may be allowed.
(Ord. No. 20,766, § 1, 6-20-02)

Sec. 110-101. Administrative hearing.

Violations of this chapter which apply to the downtown development district may be adjudicated by the administrative adjudication bureau of the environmental health department. Said hearing shall be conducted by a hearing officer of the administrative adjudication bureau of the environmental health department, and shall be subject to the provisions of chapter 6 of this Code.
(Ord. No. 20,766, § 1, 6-20-02)

Editor's note—Ord. No. 20,766, § 1, adopted June 20, 2002, enacted provisions intended for use herein as §§ 110-98—110-102. To preserve the style of the Code, these provisions have been included herein as §§ 110-97—110-101, at the discretion of the editor.

Secs. 110-102—110-120. Reserved.

DIVISION 3. ARTISTS*

Sec. 110-121. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Commercial transaction* means the selling of any service or goods for any type of price, set fee, or required donation, or the display, wearing, posting or distribution of verbiage or signs that describe or refer to a price, set fee or required donation for any service or goods other than the selling of original paintings, sketches, and drawings.

(b) *Jackson Square artist setup area* means: a) the area extending 20 feet from the Jackson Square fence on St. Peter Street; b) the area extending 20 feet from the Jackson Square Fence on Chartres Street; c) the area extending 20 feet from the Jackson Square fence on St. Ann Street; and d) the area extending five feet from the Jackson Square fence on Decatur Street. The hours of operation of the Jackson Square setup area shall be from 5:00 a.m. to 8:00 p.m.

(c) *Original* means only those works produced and for sale by the artist which have been accomplished essentially by hand and precludes any mechanical or duplicative process in whole or part.

(d) *"A" permit* is defined as a permit granted to a person pursuant to this section and subsection 110-123(1) to allow the permittee to paint and sell original works of art in that area defined as "the Jackson Square setup area."

(e) *"B" Permit* is defined as a permit granted to a person pursuant to this section and subsection 110-123(2) to allow the permittee to paint and sell works of art in that area defined as the "vicinity of Jackson Square."

(f) *Vicinity of Jackson Square* means Pirates Alley and that area of Royal Street bounded by Pirates Alley and Pere Antoine Alley.

(M.C.S., Ord. No. 21787, § 1, 12-1-04; M.C.S., Ord. No. 26854, § 1, 4-7-16; M.C.S., Ord. No. 27554, § 1, 10-26-17, eff. 1-1-18)

Sec. 110-122. Permits required.

(a) Every person who shall desire to use the public streets, sidewalks or public places or private places of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit.

*__Editor's note—__**Editor's note—**M.C.S., Ord. No. 21787, § 1, adopted Dec. 1, 2004, amended div. 3 in its entirety and enacted similar provisions as set out herein. The former div. 3 derived from Code 1956, §§ 46-1, 46-1(10)—(10B), 46-1.1, 46-4.4(a)—(d), 46-4.5, 46-4.5(a), 46-4.6; Ord. No. 21,095, §§ 1—5, adopted May 1, 2003; and M.C.S., Ord. No 21341, § 1, adopted Nov. 20, 2003.

Cross references—Mayoralty permits required for various callings or occupations or occasions, § 30-69; Jackson Square, § 106-261; Vieux Carré, ch. 107.

Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however are not valid within the central business district area bounded by the river on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 110-131.

(b) Only persons holding "A" permits may place easels, tables, chairs or similar furniture within the Jackson Square artist setup area. Only persons holding "A" permits or "B" permits may place easels, tables, chairs or similar furniture in the vicinity of Jackson Square.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-123. Fees.

Permits issued under this division shall be paid for by the applicant at the time of issuance according to the following schedule, to manually paint, sketch or draw on plain surfaces only in:

(a) *The Jackson Square artist setup area.* Any permit issued under this subsection shall be designated on the face of the permit as an "A" permit.

Per year $20.00

(b) T*he vicinity of Jackson Square, defined as Pirates Alley, and that area of Royal Street bounded by Pirates Alley and Pere Antoine Alley.* Any permit issued under this subsection shall be designated on the face of the permit as a "B" permit.

Per year $20.00
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-124. Exhibition of work.

(a) While a permittee under this division is working, he or she may also exhibit and sell his or her own original paintings, sketches, and drawings on the permitted site.

(b) When a permittee under this division is exercising the privileges granted by the permit, he or she may not engage in any commercial transaction other than producing or selling his or her own original paintings, sketches, and drawings.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-125. Display of permit, prices.

Permits granted under this division, and the total price for completed paintings, sketches, or drawings, shall be displayed on the site on a removable temporary sign no larger than eight and one-half inches by 11 inches.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-126. Revocation.

Failure to comply with the provisions of this division shall be cause to have the permit revoked for one calendar year by the director of the department of finance.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-127. Maximum number of permits issued.

The maximum number of "A" permits which may be issued under this division shall be 200.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-128. Rules, regulations—"A," "B" permits.

(a) Any person who shall apply for an "A" or "B" permit under this division for the first time shall obtain an application from the department of finance and shall submit such application to the department of finance. The department of Finance shall issue no new "A" or "B" permits until 30 days have elapsed from the date that the application has been filed with the department. At the end of the 30-day period the department shall notify the applicant in writing, at the address on the application, that such applicant is allowed 15 days to secure the permit from the date of the letter of notification. Failure of the applicant to appear in person at the department of finance to secure the permit within the 15-day period shall invalidate the application, and the applicant shall be required to submit a new application pursuant to the above process.

(b) "A" or "B" permits issued pursuant to section 110-123 shall be renewable during January of the following calendar year in which it was issued. The renewal application shall not require the 30-day waiting period as outlined in subsection (a) of this section, and shall be obtained immediately upon the application being approved by the department of finance and the required permit fee being paid. The applicant shall appear in person to apply and receive the renewed permit, except in those cases of disabling illness accompanied by medical proof. The proof shall be submitted to the director of the department of finance in an appeal for waiver of the personal appearance. The director of the department of finance shall grant the permit at his discretion.

(c) Should any artist working under an "A" or "B" mayoralty permit fail to renew such permit within the month of January of the following calendar year in which it was issued, the renewal of such permit shall be obtained pursuant to the process for obtaining a new permit as outlined in subsection (a) of this section.

(d) If at any time after January 31, 1979, the number of valid "A" permits issued pursuant to section 110-127 does not exceed 200, then the total number of "A" permits issued shall never exceed 200.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-129. Reserved.

Sec. 110-130. Same—French Market promenades and parks.

Artists holding valid "A" or "B" permits issued under the provisions of this division may apply to the French Market Corporation for permission to manually paint, sketch or draw on plain surfaces only within the French Market promenades and parks. The director of the French Market Corporation shall designate those sites which are to be used by the artists. The director of the French Market shall also establish reasonable rules and regulations governing artists working within French Market promenades and parks and shall make them available to the public for inspection. Failure to comply with the rules and regulations of the French Market Corporation shall be sufficient cause for the director of the French Market Corporation to revoke his permission for artists to work in the French Market promenades and parks for one calendar year.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-131. Permits valid in the central business district.

Permits are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Sec. 110-132. Artist regulations.

(a) Spaces within the designated Jackson Square artist setup area will be available daily, only, on a "first come, first served" basis. A particular space shall not become the exclusive space of any permittee in contravention of this rule. Spaces may not be held overnight.

(b) No person may be allowed to place easels, tables, chairs or similar furniture in the location occupied by another artist or directly in front thereof. An artist who simultaneously displays his work in two noncontiguous locations shall immediately remove his work from one such location.

(c) An artist who is working a location shall not display his work or place his equipment or himself in such a way as to block the sidewalk or interfere with pedestrian traffic or the artist next to him. He shall keep his sidewalk clean. When a member of the public is in front of an artist's location, no other artist will solicit or in any way try to attract attention to himself, his own work, or his own location.
(M.C.S., Ord. No. 21787, § 1, 12-1-04)

Secs. 110-133—110-150. Reserved.

DIVISION 4. FLOWERS*

Sec. 110-151. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cut flowers includes garlands, chaplets, wreaths, circlets, or festoons of cut dried flowers or leaves worn as a crown, collar, or hung as an ornament.
(Code 1956, § 46-4.1(m))

Cross reference—Definitions generally, § 1-2.

Sec. 110-152. Permits required.

Every person who shall desire to use the public streets, sidewalks or public places or private places of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the [Mississippi] River on the east, Claiborne Avenue on the west, Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 110-165.
(Code 1956, § 46-1; M.C.S., Ord. No. 21426, § 1, 2-20-04)

Sec. 110-153. Fee.

The fee for a permit to sell cut flowers on the city sidewalks or streets, per sales outlet, per year, shall be $100.00.
(Code 1956, § 46-1(36))

*__Cross references—__Mayoralty permits required for various callings or occupations or occasions, § 30-69; Jackson Square, § 106-261 et seq.; transient vendors, § 110-256; Vieux Carré, ch. 166.

Sec. 110-154. Application for permit.

Any person who wishes to obtain a mayoralty permit for the sale of cut flowers on the public streets, sidewalks and other public places must file an application with the department of finance on a form provided by the department. The application shall state the true, lawful and complete name and address of the permittee, the trade name, if applicable, the address or addresses of any locations used for the storage of carts, equipment, supplies and/or inventory, and two city references. Such application must be signed by applicant before a notary public. A separate application and permit shall be required for each outlet.
(Code 1956, § 46-4.1(a))

Sec. 110-155. Issuance of permit, badge.

Upon approval of the application for a permit under this division by the department of finance and payment of the required permit fee, the applicant will be issued a mayoralty permit and a badge with the same number as the permit. Such badge will have the picture of the permittee; the owner of the business, his printed name and signature and the signature of the person issuing the permit and badge and shall be displayed conspicuously on the vendor whenever business is being transacted. The mayoralty permit should be affixed to the pushcart at all times.
(Code 1956, § 46-4.1(b))

Sec. 110-156. Notice of change of address.

Whenever the address of any permittee as submitted on the application is changed, the permittee shall notify the department of finance within ten days of such change.
(Code 1956, § 46-4.1(c))

Sec. 110-157. Design of pushcarts.

A cut flower dealer may sell only from an individual pushcart specifically and aesthetically designed for the sale of cut flowers. The director of the department of finance or his designated representative shall have the authority to determine if the aesthetic value of the pushcart is in conformity with this regulation.

The pushcart shall be easily maneuverable by one person and shall not exceed six feet in length, four feet in width or five feet in height. The bottom of the pushcart shall be at least one foot from the ground. There shall be an umbrella or canopy over the pushcart to protect the flowers. The pushcart must have sides to it at least one foot high. The containers must remain inside the pushcart at all times and under no circumstances are to be placed on city streets or sidewalks. The containers of the flowers must have adequate water so as to maintain the quality of the flowers. At no time shall cut flowers be sold from a stand, table or any other type vehicle than that described herein.
(Code 1956, § 46-4.1(d))

Sec. 110-158. Display of prices.

The permittee shall have posted on the pushcart, on both sides, the current prices charged for each type of flowers sold and no flower shall be sold for more than the posted price.
(Code 1956, § 46-4.1(e))

Sec. 110-159. Attendance of stand; removal, fees.

No pushcart shall be left unattended for more than 30 minutes. If a pushcart is left unattended for more than 30 minutes, it will be subject to removal by the employees of the department of streets or the police department to a public pound or public warehouse. If permittee wishes to claim his pushcart, he will pay a towing fee of $15.00 and, in addition, there shall be an additional fee of $3.00 for storage of the pushcart for each additional 24 hours or part thereof over and above 24 hours from the time the pushcart was removed.
(Code 1956, § 46-4.1(f))

Sec. 110-160. Location of carts.

(a) Cut flower vendors are prohibited from placing their pushcarts on the sidewalks in the city except those sidewalks where the paved part of the sidewalk is 12 or more feet wide. On such paved sidewalks which are 12 or more feet wide, pushcarts must be located as close to curbside as is possible for the convenient operation of their business but no closer than 18 inches from curbside and must be at least 30 feet behind a bus stop sign and at least five feet from the approach side of a crosswalk to an intersection. Cut flower dealers are prohibited from conducting business on any neutral ground or median strip of a divided street.

(b) If at any time the outlet is deemed by the department of police to be interfering with either pedestrian or vehicular traffic or creating a disturbance, the outlet shall be removed immediately upon request by the department of police.

(c) Cut flower vendors using the streets shall observe all traffic regulations for parking as contained in section 154-923 et seq. No cut flower vendor shall conduct his business within the same block as any licensed retail florist in the Vieux Carré nor within three blocks of any retail florist in the remainder of the city.

(d) No cut flower vendor shall remain in any one place within any residential block or stop directly in front of any building used exclusively for residential occupancy. For purposes of this section a residential block is defined as a block along which a majority of the buildings with main entrances on the block contain solely residential occupancies.

(e) No cut flower outlet shall be located or business transacted in Audubon Park or City Park.
(Code 1956, § 46-4.1(g), (h))

Sec. 110-161. Maintenance of location.

Cut flower vendors shall keep the sidewalks, streets or other public places adjoining and adjacent to their locations of business clean and free from any refuse generated from the operation of their business.
(Code 1956, § 46-4.1(i))

Sec. 110-162. Manner of solicitation.

At no time shall a cut flower vendor make a verbal solicitation or harass the public to purchase his flowers.
(Code 1956, § 46-4.1(j))

Sec. 110-163. Records.

Every cut flower vendor shall keep sufficient records of sales, records and receipts of purchases and expenses, and shall make such available for inspection to any officer of the department of finance.
(Code 1956, § 46-4.1(k))

Sec. 110-164. Revocation of permit.

The department of finance is authorized to revoke the permit of any cut flower vendor that has been shown to be a habitual or frequent violator of the rules and regulations set forth in this division, upon giving written notice to permittee at the address on the application for the permit and allowing the permittee to file a written request with the department of finance for a hearing to appeal the revocation, which shall be filed within five days from the date appearing on the notice of revocation. The hearing shall be held before the director of the department of finance and/or his designated representatives.
(Code 1956, § 46-4.1(l))

Sec. 110-165. Permits valid in the central business district.

Permits are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south.
(Code 1956, § 46-1.1)

Sec. 110-166. Permits not valid in certain areas during Annual Louisiana Jazz and Heritage Festival Season.

(a) Permits are not valid within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) during the Annual New Orleans Jazz and Heritage Festival Season.

(b) The "Annual New Orleans Jazz and Heritage Festival Season" is defined as that period occurring annually commencing at 7:00 a.m. on the first day of live music performances at the New Orleans Jazz and Heritage Festival conducted annually at the fair grounds racetrack by the New Orleans Jazz and Heritage Foundation, Inc., and continuing through and until midnight on the concluding day of live music performances at such location during such festival.
(Code 1956, § 46-1.1.1)

Sec. 110-167. Special area.

A special permit shall be issued to applicants who intend to vend in that area bounded by the Mississippi River, the downtown side of Esplanade Avenue, the river side of Rampart Street, and the Vieux Carré side of Canal Street, inclusive. Such permit shall be issued under the conditions and for such fee as required in this division. The special permit shall be valid for this area only, but nothing contained herein shall be construed to prohibit the permit holder from acquiring for a separate fee a permit to vend elsewhere as is permitted under this division. The maximum number of special permits which may be issued and valid at any one time shall be 18. All special permits shall be renewable for a period of 30 days after their expiration date provided all conditions are met.
(Code 1956, § 46-4.1(n))

Secs. 110-168—110-185. Reserved.

DIVISION 5. FOOD—MOBILE VENDING*

Sec. 110-186. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings

*__Editor's note—__M.C.S., Ord. No. 25407, § 2, adopted July 25, 2013, amended Art. II, Div. 5 in its entirety to read as herein set out. Former Div. 5, §§ 110-186—110-195, pertained to food, and derived from Code 1956, §§ 46-1, 46-1.1.1, 45-2, 45-6, 46-4.2. See the Code Comparative Table for complete derivation.

__Cross references—__Mayoralty permits required for various callings or occupations or occasions, § 30-69; bakeries, § 30-291 et seq.; mayoralty permits for peddling novelties, candles, home manufactured or home grown products, toilet articles, etc., required, § 30-70; sale of food or beverages in certain areas, § 54-493; Jackson Square, § 106-261 et seq.; Vieux Carré, ch. 166.

ascribed to them in this section, except where the context clearly indicates a different meaning:]

Central Business District, for the purpose of this division, means the area bounded by: the Mississippi River, the northbound side of North Rampart Street, Iberville Street and Howard Avenue and Andrew Higgins Drive.

Clean zone means an area established by an ordinance adopted by the Council of the City of New Orleans that suspends certain permits and prohibits the transaction of certain business and/or commercial activities on designated areas of public property and outside of enclosed buildings, within the City of New Orleans during specific dates and times.

Faubourg Marigny, for the purpose of this division, means the area bounded by: Esplanade Avenue, North Rampart, Elysian Fields Avenue and the Mississippi River.

Franchisee means the recipient of a mobile vending franchise under the terms and provisions of this division.

Mobile food truck means a double-axle vehicle that is completely mobile with no permanent fixed location, the vendor of which prepares all or most of its victuals on board the vehicle to serve or distribute to customers, in a form suitable for immediate ingestion or consumption. This definition excludes vendors selling only fresh, uncooked or unprepared produce or seafood, or farmers selling their own produce or value-added products (oils, jams, jellies, etc.) directly to customers from motor vehicles. Vendors selling only fresh, uncooked or unprepared produce or seafood, or farmers selling their own produce or value-added products (oils, jams, jellies, etc.) shall be regulated by Division 5.1 of Article II in Chapter 110 of the Code of the City of New Orleans.

Mobile vendor means a person, natural or juridical, that has obtained a valid permit and/or franchise to operate a mobile food truck to serve or distribute victuals on the public right-of-way.

Permitee means the recipient of a mobile vending permit under the terms and provisions of this division.

Public right-of-way means any city street, alley, road, sidewalk, neutral ground, or other passageway whereby pedestrians or vehicles traverse.

Serve or *distribute* means soliciting the sale of or offering for sale victuals. Corporate sampling is not permitted.

Victuals means food of any kind that is prepared, packaged or in a form that is suitable for immediate ingestion or consumption by human beings. This definition excludes the selling of fresh produce or raw or cooked seafood sold in bulk or by weight that has not been prepared, packaged or served with other prepared foods as part of a menu item. Sale of fresh, uncooked or unprepared produce or seafood, or farmers selling their own produce or value-added products (oils, jams, jellies, etc.) shall be regulated by Division 5.1 of Article II in Chapter 110 of the Code of the City of New Orleans.

Vieux Carré, for the purpose of this division, means the area bounded by: Iberville Street, northbound side of North Rampart Street, Esplanade Avenue and the Mississippi River.
(M.C.S., Ord. No. 25407, § 2, 7-25-13; M.C.S., Ord. No. 25722, § 1, 3-13-14)

Sec. 110-187. Permit or franchise required and authorized.

Every person, whether natural or juridical, who desires to use the public right-of-way or public places to conduct any of the businesses or callings hereinafter set forth, shall first apply for and be granted a mobile vending permit from the department of finance, and/or a mobile vending franchise ordinance from the city council as provided in this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-188. Permit requirements.

(a) A mobile vending permit shall be applied for with the department of finance and shall be on forms provided by the city and in the format and number of copies as required by the instruc-

tions. No permit shall be issued until all requisite approvals by the State Department of Health and Hospitals and the Fire Department are finalized and received by the department of finance. All permit holders shall comply with all applicable laws and regulations of the State of Louisiana and the Code of the City of New Orleans.

(b) Any permit that is issued shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other required tax or license. Permits shall be issued on an annual basis and shall expire on December 31. Renewal applications shall be made by January 31. Nothing contained herein precludes the prorating of permit fees.

(c) The number of permits issued under this division shall at no time exceed 100 for the entire city.

(d) Permits shall be conspicuously displayed and affixed to the front windshield, lower corner, passenger side and be clearly visible from outside the mobile food truck at all times during operation.

(e) Except as otherwise provided in this division, permits issued under this division are valid for use in business, commercial, industrial and mixed use zoning districts as defined in the New Orleans Comprehensive Zoning Ordinance, as amended, including the southbound side of North Rampart Street between Esplanade Avenue and Canal Street and the southbound side of Loyola Avenue and Elk Place between Cleveland Street and Howard Avenue. Nothing contained herein shall be construed to authorize the use of any permit:

(1) In the Central Business District;

(2) In the Vieux Carré; provided, however, that the use of mobile vending permits within the boundaries of the Goldring Woldenberg Riverfront Park may be authorized by the city in accordance with any lease governing this area;

(3) In the Faubourg Marigny, except on both sides of Elysian Fields Avenue;

(4) In any residential or park district as defined in the New Orleans Comprehensive Zoning Ordinance, as amended;

(5) On Maple Street between Audubon Place and Leake Avenue;

(6) On Oak Street between Broadway Street and Monticello Avenue;

(7) In the area bounded by: Louisville Street, Vicksburg Street, Robert E Lee Boulevard and Conrad Street;

(8) On St. Bernard Avenue between Interstate 610 and Lakeshore Drive;

(9) On Paris Avenue between Interstate 610 and Lakeshore Drive;

(10) On Elysian Fields between Interstate 610 and Lakeshore Drive; and

(11) On Franklin Avenue between Interstate 610 and Lakeshore Drive.

(f) Permits issued under this division are not valid:

(1) During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

(2) During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances;

(3) In a clean zone as authorized by an ordinance adopted by the council; and

(4) When the city requires the use of its public right-of-way to facilitate projects or events within the right-of-way.

(g) The director of the department of finance may prescribe such other policies and procedures as to the issuance of permits as may be required to carry out the full intent and purpose of this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13; M.C.S., Ord. No. 25722, § 1, 3-13-14; M.C.S., Ord. No. 30680, § 1, 6-24-26)

Sec. 110-189. Franchise requirements.

(a) A valid mobile vending franchise ordinance with the city shall be obtained in such a manner pursuant to this section for a mobile vendor to lawfully operate:

(1) In the Central Business District;

(2) In the Faubourg Marigny;

(3) In any residential or park district as defined in the New Orleans Comprehensive Zoning Ordinance, as amended;

(4) On Maple Street between Audubon Place and Leake Avenue;

(5) On Oak Street between Broadway Street and Monticello Avenue;

(6) In the area bounded by: Louisville Street, Vicksburg Street, Robert E Lee Boulevard and Conrad Street;

(7) On St. Bernard Avenue between Interstate 610 and Lakeshore Drive;

(8) On Paris Avenue between Interstate 610 and Lakeshore Drive;

(9) On Elysian Fields between Interstate 610 and Lakeshore Drive; and

(10) On Franklin Avenue between Interstate 610 and Lakeshore Drive.

(b) A mobile vending franchise shall be applied for with the department of public works and shall be on forms provided by the city and in the format and number of copies as required by the instructions. No franchise shall be issued until all requisite approvals by the State Department of Health and Hospitals and the Fire Department are finalized and received by the department of public works. All franchisees shall comply with all applicable laws and regulations of the State of Louisiana and the Code of the City of New Orleans.

(c) The director of the department of public works, or his/her authorized designee, shall evaluate the mobile vending franchise application and submit to the city council a report and recommendation for review and approval. The city council may issue a revocable mobile vending franchise ordinance for the use of certain city streets. Any such ordinance shall conform to the terms and conditions as provided in this division.

(d) Each application for a mobile vending franchise shall provide the desired fixed location on certain public streets in the City of New Orleans with specificity, and shall provide the desired days of the week and correlating hours the location is proposed to be occupied by the potential franchisee.

(e) Each application for a mobile vending franchise shall provide a photo and the dimensions of the mobile food truck to be used in the sale of items specified herein.

(f) The following standards and criteria shall be utilized by the department of public works in formulating its recommendation to the city council relative to the appropriateness of an applicant's desired location, day(s) and time(s):

(1) Creation of a pedestrian or vehicular safety hazard;

(2) Road, sidewalk and public right-of-way geometrics including, but not limited to: design, alignment, configuration, width, and vehicle site-line distance;

(3) Impediments to traffic flow;

(4) Traffic congestion, patterns circulation, movements and average daily trip volumes;

(5) Speed limits and traffic speeds;

(6) Traffic studies and accident rates;

(7) On-street parking requirements;

(8) The geographic make-up of the area;

(9) Impact on any nearby residential uses; and

(10) Any other factor deemed to be a potential safety hazard by the department of public works.

Upon evaluating an application for a mobile vending franchise, the department of public works shall recommend approval or denial in a written report to the city council. The department of public works shall recommend denial of a franchise request that has a significant adverse impact on vehicular or pedestrian flow, movement or safety.

(g) If approved by the council, a serial-numbered franchise permit shall be codified in the mobile vending franchise ordinance. Said serial number shall appear on signage placed by the city at the designated selling location and on the mobile vending franchise permit. The department of public works shall also mark the street with lines to indicate the approved mobile vending location. The mobile vending franchise permit shall be conspicuously displayed and affixed to the front windshield, lower corner, passenger side and be clearly visible from outside the mobile food truck at all times during operation. No franchisee shall remain or continue to occupy the designated location(s) beyond the approved days and times without amending the franchise ordinance.

(h) Franchises are not valid:

(1) In the Vieux Carré;

(2) During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

(3) During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances;

(4) In a clean zone as authorized by an ordinance adopted by the council; and

(5) When the city requires the use of its public right-of-way to facilitate projects or events within the right-of-way.

(i) The director of the department of public works may prescribe such other policies and procedures as to the processing of franchise applications as may be required to carry out the full intent and purpose of this division.

(j) All applicants for a mobile vending franchise must post an official notification sign informing the public of a pending franchise application. The official notification sign shall be in a format designated by the department of public works and shall be installed by the applicant ten days before the council meeting at which the application will appear on the agenda for consideration. The official notification sign shall be conspicuously displayed on the same block as the proposed fran-

chise in a location determined by the department of public works and shall be clearly visible. The sign shall include the following information:

(1) The name of the franchise applicant and franchise application number,

(2) The date, time, and location of the next council meeting at which the application will appear on the agenda for consideration, and

(3) The proposed franchise location and days and times of operation.

(k) All mobile vending franchise applicants shall be responsible for all costs associated with compliance with the notice requirements of this section.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-190. Permit and franchise fees.

(a) There shall be an initial permit application fee of $50.00, which shall be submitted to the department of finance along with the permit application to defray the cost of processing. Upon permit issuance, there shall be an additional $400.00 permit fee, which shall be renewed annually to reasonably compensate the city for the cost of the restricted use of the public right-of-way. Payment shall be by check or money order payable to the city.

(b) There shall be an initial franchise application fee of $175.00, which shall be submitted to the department of public works along with the franchise application to defray the cost of processing and evaluating the application. Upon franchise issuance, there shall be an additional franchise fee, which shall be renewed annually to reasonably compensate the city for the cost of the restricted use of the public right-of-way. The cost of the franchise fee shall be recommended by the department of public works and ordained by the council, based on the following criteria:

(1) The location of the franchise;

(2) The length, in feet, that the food truck will occupy on the street, including the space required for placement of a trash receptacle;

(3) The times, duration and days of operation;

(4) Parking availability and costs in the area;

(5) Cost of franchise signage and street marking; and

(6) Any other factor deemed to be a potential cost factor as determined by the department of public works or the Council of the City of New Orleans.

In no event shall the annual franchise fee exceed $28,200.00. Payment shall be by check or money order payable to the city. Annual franchise fees are due by January 31, to the department of public works.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-191. Rules and regulations for all mobile food vendors.

In addition to all other applicable laws pertaining to permits and franchises, all mobile vendors operating pursuant to this division shall also be subject to the following provisions:

a. All mobile food trucks shall be registered in the State of Louisiana. Any driver of a mobile food truck shall possess a valid Louisiana Driver's License.

b. All mobile vendors shall comply with all applicable parking, traffic and vehicle safety laws, regulations and restrictions, but in no event shall any mobile vendor remain in any one location for more than four hours, unless otherwise permitted by law.

c. No mobile vendor shall operate within 20 feet of any intersection.

d. No mobile vendor shall operate within 20 feet of any stop sign, flashing beacon, yield sign or other traffic control signal located on the side of a roadway.

e. No mobile vendor shall operate within three feet of any public or private driveway, wheelchair ramp or bicycle ramp.

f. No mobile food truck shall be more than 26 feet in length or eight feet in width.

g. No mobile vendor shall sell alcoholic beverages, controlled substances, or any other item the possession or use of which is deemed illegal under any federal, state or local law.

h. No mobile vendor shall sell goods, wares or other items of merchandise other than victuals.

i. No mobile vendor shall place any chairs, stools, tables or other fixtures, furniture or other obstructions on any portion of the public street, sidewalk or right-of-way, except as provided in subpart (j) of this section.

j. All mobile vendors shall provide a trash receptacle within three feet of the front or back of the mobile food truck on the public street, which shall be large enough to contain all refuse generated by operation. The location shall be kept clean and free of trash and debris. All mobile vendors shall be responsible for cleaning all debris and refuse generated by such operation within 50 foot radius of the mobile food truck upon ceasing operation. It shall be unlawful for any mobile vendor to leave any location without first picking up, removing and properly disposing of all trash or refuse remaining at a location. Any trash, garbage, refuse or other debris generated by the mobile vendor or relating to the operation of the mobile vendor shall be disposed of at approved locations. Nothing contained herein shall permit the placement of a trash receptacle on any sidewalk.

k. It shall be unlawful for any mobile vendor to operate a mobile food truck in any manner that impedes the flow of vehicular or pedestrian traffic on any public right-of-way.

l. No mobile food vendor shall operate a mobile food truck in any manner that impedes the ingress or egress of a building or structure during its operating hours.

m. It shall be unlawful for any mobile vendor to operate a mobile food truck that is in a defective, unsafe or unsanitary condition in violation of any applicable law or regulation.

n. No mobile vendor shall operate any horn, sound amplification system, or other sound-producing device or music system which can be heard outside the mobile food truck when such mobile food truck is moving, stopped, standing or parked, or is being operated as allowed under this division.

o. No advertising shall be permitted on any mobile food truck, except to post prices and to identify the name of the product or name of the lawful mobile food vendor.

p. All mobile vendors must comply with all other applicable conditions and requirements imposed upon mobile vendors under the law, and must comply with all applicable city and state health laws and regulations and shall make such sales tax returns and other reports as required by provisions of the Code of the City of New Orleans.

q. All mobile vendors shall immediately notify the department of finance if the State Department of Health and Hospitals revokes a vendor's ability to operate.

(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-192. Existing vendors.

Nothing contained herein shall invalidate a legally issued and valid permit relative to the vehicle of a vendor selling victuals that was legally operating on the date of adoption of this division.

(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-193. Insurance requirements.

(a) At the time of application for, and prior to the issuance of, any permit or franchise pursuant to this division, each and every applicant shall provide written proof of commercial general liability insurance coverage. At the time of application for, and throughout the period of validity of, any permit issued to the applicant, the policy or policies must be in full force and effect and must be underwritten by a carrier licensed to do busi-

ness in the state. Such insurance coverage shall provide liability coverage of not less than $500,000.00 for any and all claims against the applicant and/or the city arising out of or in any way connected to or associated with the vendor or any of its operations, including but not limited to bodily injuries, personal injuries, and injuries to property, and shall name the city as an additional insured.

(b) At the time of application for, and prior to the issuance of, any permit or franchise pursuant to this division, each and every applicant shall provide written proof of commercial vehicle insurance coverage in compliance with state law.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-194. Fines and forfeitures—Process and procedure.

(a) Any violation of any applicable provision of this chapter may be grounds for revocation of any permit or franchise issued under this division and shall be an infraction punishable by a fine not to exceed $500.00 per violation.

(b) Violations of the provisions of this division shall be brought by the appropriate department or agency to administrative adjudication as provided in Chapter 6 of the Code of the City of New Orleans, or to municipal court.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

DIVISION 5.1. FOOD—STATIONARY VENDING

Sec. 110-195. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Central Business District, for the purpose of this division, means the area bounded by: the Mississippi River, the northbound side of North Rampart Street, Iberville Street and Howard Avenue and Andrew Higgins Drive.

Clean zone means an area established by an ordinance adopted by the Council of the City of New Orleans that suspends certain permits and prohibits the transaction of certain business and/or commercial activities on designated areas of public property and outside of enclosed buildings, within the City of New Orleans during specific dates and times.

Franchisee means the recipient of a stationary vending franchise under the terms and provisions of this division.

Public right-of-way means any city street, alley, road, sidewalk, neutral ground, or other passageway whereby pedestrians or vehicles traverse.

Sell means the transferring of fresh, uncooked or unprepared produce, raw or cooked seafood sold in bulk or by weight that has not been prepared, packaged or served with other prepared food as part of a menu item, value-added products or flavored frozen water-based food products (snowballs) in exchange for money. Corporate sampling is not permitted.

Stationary vendor means any person, natural or juridical, that has obtained a valid franchise to sell fresh, uncooked or unprepared produce, raw or cooked seafood sold in bulk or by weight that has not been prepared, packaged or served with other prepared food as part of a menu item, farmers selling their own produce or value-added products (oils, jams, jellies, etc.), or flavored frozen water-based food products (snowballs), at a specific, pre-determined and fixed location on a public right-of-way, from any motor vehicle or trailer towed behind any motor vehicle.

Vieux Carré, for the purpose of this division, means the area bounded by: Iberville Street, northbound side of North Rampart Street, Esplanade Avenue and the Mississippi River.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-196. Franchise required and authorized.

Every person, whether natural or juridical, who desires to use the public right-of-way or public places to conduct any of the businesses or callings hereinafter set forth, shall first apply for

and be granted a stationary vending franchise ordinance from the city council as provided in this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-197. Franchise requirements.

(a) For a stationary vendor to lawfully operate in the City of New Orleans, a valid franchise agreement with the city shall be obtained in such a manner pursuant to this division.

(b) A stationary vending franchise shall be applied for with the department of public works and shall be on forms provided by the city and in the format and number of copies as required by the instructions. No franchise shall be issued until all applicable, requisite approvals by the State Department of Health and Hospitals and/or the Louisiana Department of Wildlife and Fisheries are finalized, and received by the department of public works. All franchisees shall comply with all applicable laws and regulations of the State of Louisiana and the Code of the City of New Orleans.

(c) The director of the department of public works, or his/her authorized designee, shall evaluate the stationary vending franchise application and submit to the city council a report and recommendation for review and approval. The city council may issue revocable franchises for the use of certain city streets on such terms and conditions as provided in this division.

(d) Each application for a stationary vending franchise shall provide the desired fixed location on a public street in the City of New Orleans with specificity, and shall provide the desired days of the week and correlating hours the location is proposed to be occupied by the potential franchisee.

(e) Each application for a stationary vending franchise shall provide a photo and the dimensions of the vehicle to be used in the sale of items specified herein. In no event shall any vehicle be more than 20 feet in length or eight feet in width.

(f) The following standards and criteria shall be utilized by the department of public works in formulating its recommendation to the city council relative to the appropriateness of an applicant's desired location, day(s) and time(s):

(1) Creation of a pedestrian or vehicular safety hazard;

(2) Road, sidewalk and public right-of-way geometrics including, but not limited to, design, alignment, configuration, width, and vehicle site-line distance;

(3) Impediments to traffic flow;

(4) Traffic congestion, patterns circulation, movements and average daily trip volumes;

(5) Speed limits and traffic speeds;

(6) Traffic studies and accident rates;

(7) On-street parking requirements;

(8) The geographic make-up of the area;

(9) Impact on any residential uses; and

(10) Any other factor deemed to be a potential safety hazard by the department of public works.

Upon evaluating an application for a stationary vending franchise, the department of public works shall recommend approval or denial in a written report to the city council. The department of public works shall recommend denial of a franchise request that has a significant adverse impact on vehicular or pedestrian flow, movement or safety.

(g) If approved by the council, a serial-numbered franchise permit shall be codified in the stationary vending franchise ordinance. Said serial number shall appear on signage placed by the city at the designated selling location and on the stationary vending franchise permit. The department of public works shall also mark the street with lines to indicate the approved stationary vending location. The stationary vending franchise permit shall be conspicuously displayed and affixed to the front windshield, lower corner, passenger side and be clearly visible from outside the motor vehicle at all times during operation. No franchisee shall remain or continue to occupy

their designated location beyond the approved days and times without amending their franchise ordinance.

(h) Franchises are not valid:

(1) In the Vieux Carré;

(2) During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

(3) During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances;

(4) In a clean zone as authorized by an ordinance adopted by the council; and

(5) When the city requires the use of its public right-of-way to facilitate projects or events within the right-of-way.

(i) The director of the department of public works may prescribe such other policies and procedures as to the processing of franchise applications as may be required to carry out the full intent and purpose of this division.

(j) All applicants for a stationary vending franchise must post an official notification sign informing the public of a pending franchise application. The official notification sign shall be in a format designated by the department of public works and shall be installed by the applicant ten days before the council meeting at which the application will appear on the agenda for consideration. The official notification sign shall be conspicuously displayed on the same block as the proposed franchise in a location determined by the department of public works and shall be clearly visible. The sign shall include the following information:

(1) The name of the franchise applicant and franchise application number,

(2) The date, time, and location of the next council meeting at which the application will appear on the agenda for consideration, and

(3) The proposed franchise location and days and times of operation.

(k) All stationary vending franchise applicants shall be responsible for all costs associated with compliance with the notice requirements of this section.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-198. Franchise fees.

There shall be an initial franchise application fee of $175.00, which shall be submitted to the department of public works along with the franchise application to defray the cost of processing and evaluating the application. Upon franchise issuance, there shall be an additional franchise fee, which shall be renewed annually, to reasonably compensate the city for the cost of the restricted use of the public right-of-way. The cost of the franchise fee shall be as recommended by the department of public works and as ordained by the council, based on the following criteria:

(1) The location of the franchise;

(2) The length, in feet, the stationary food vending vehicle will occupy on the street;

(3) The times, duration and days of operation;

(4) Parking availability and costs in the area;

(5) Cost of franchise signage and street marking; and

(6) Any other factor deemed to be a potential cost factor as determined by the department of public works or the Council of the City of New Orleans.

In no event shall the annual franchise fee exceed $9,950.00. Payment shall be by check or money order payable to the city. Annual franchise fees are due by January 31, to the department of public works.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-199. Rules and regulations for all stationary food vendors.

In addition to all other applicable laws pertaining to permits and licenses, all stationary food vendors operating pursuant to this section shall also be subject to the following provisions:

(a) All stationary food vendors' vehicles shall be registered in the State of Louisiana. Any driver of a stationary food vendor vehicle shall possess a valid Louisiana Driver's License.

(b) All stationary food vendors shall comply with all applicable traffic and vehicle safety laws, regulations and restrictions.

(c) A lawful stationary food vendor shall be permitted to remain on the public right-of-way for the approved days and times provided in their franchise ordinance.

(d) Sales of items specified in this division shall take place only between the hours of 6:00 a.m. and 7:00 p.m. Where other more restrictive or permissive time regulations exist, those regulations shall apply.

(e) No stationary food vendor shall operate within 20 feet of any intersection.

(f) No stationary food vendor shall operate within 20 feet of any stop sign, flashing beacon, yield sign or other traffic control signal located on the side of a roadway.

(g) No stationary food vendor shall operate within three feet of any public or private driveway, wheelchair ramp or bicycle ramp.

(h) No stationary food vendor shall sell alcoholic beverages, controlled substances, or any other item the possession or use of which is deemed illegal under any federal, state or local law.

(i) No stationary food vendor shall sell goods, wares or other items of merchandise other than as provided in this division. Stationary food vendors shall only exhibit and sell their goods from the approved vehicle. Nothing may be placed in the street or on the sidewalk. The vendor must have prices posted conspicuously on a sign no larger than six square feet. No other signs, except one identification sign no larger than one square foot, shall be allowed at the stationary food vendor's location.

(j) It shall be unlawful for any stationary food vendor to operate in any manner that impedes the flow of vehicular or pedestrian traffic on any public right-of-way.

(k) No stationary food vendor shall operate any horn, sound amplification system, or other sound-producing device or music system in such a manner as to create a noise disturbance.

(l) Stationary food vendors must comply with all other applicable conditions and requirements imposed upon stationary food vendors under the law, must comply with all applicable city and state health laws and regulations, and shall make such sales tax returns and other reports as required by provisions of the Code of the City of New Orleans.

(m) All stationary food vendors shall immediately notify the department of finance if the State Department of Health and Hospitals revokes a vendor's ability to operate.

(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-200. Existing vendors.

Nothing contained herein shall invalidate a legally issued and valid permit relative to a location of a stationary vendor that was legally operating on the date of adoption of this division. (M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-201. Insurance requirements.

(a) At the time of application for, and prior to the issuance of, any franchise pursuant to this division, each and every applicant shall provide written proof of commercial general liability insurance coverage. At the time of application for, and throughout the period of validity of, any permit issued to the applicant, the policy or policies must be in full force and effect and must be underwritten by a carrier licensed to do business in the state. Such insurance coverage shall provide liability coverage of not less than

$100,000.00 for any and all claims against the applicant and/or the city arising out of or in any way connected to or associated with the vendor or any of its operations, including but not limited to bodily injuries, personal injuries, and injuries to property, and shall name the city as an additional insured.

(b) At the time of application for, and prior to the issuance of, any permit or franchise pursuant to this division, each and every applicant shall provide written proof of commercial vehicle insurance coverage in compliance with state law.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-202. Fines and forfeitures—Process and procedure.

(a) Any violation of any applicable provision of this chapter may be grounds for revocation of any franchise issued under this division and shall be an infraction punishable by a fine not to exceed $500.00 per violation.

(b) Violations of the provisions of this division shall be brought by the appropriate department or agency to administrative adjudication as provided in Chapter 6 of the Code of the City of New Orleans, or to municipal court.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

DIVISION 5.2. FOOD—MOBILE ICE CREAM VENDING

Sec. 110-203. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Central Business District, for the purpose of this division, means the area bounded by: the Mississippi River, the northbound side of North Rampart Street, Iberville Street and Howard Avenue and Andrew Higgins Drive.

Clean zone means an area established by an ordinance adopted by the Council of the City of New Orleans that suspends certain permits and prohibits the transaction of certain business and/or commercial activities on designated areas of public property and outside of enclosed buildings, within the City of New Orleans during specific dates and times.

Mobile ice cream truck means a double-axle vehicle that is self-propelled and completely mobile with no permanent fixed location that sells pre-wrapped or prepackaged ice cream, frozen yogurt, frozen custard, frozen or soft-serve dairy products or similar frozen desert products.

Mobile ice cream vendor means a person, natural or juridical, that has obtained a valid permit to operate a mobile ice cream truck on the public right-of-way to sell goods as permitted herein to customers for immediate consumption.

Public right-of-way means any city street, alley, road, sidewalk, neutral ground, or other passageway whereby pedestrians or vehicles traverse.

Sell means the transferring of pre-wrapped or prepackaged ice cream, frozen yogurt, frozen custard, frozen or soft-serve dairy products, or similar frozen desert products in exchange for money. Non-frozen items such as pre-packaged soft drinks, candy, chewing gum and snack food may be sold from a mobile ice cream vendor provided that the principal product sold is ice cream and/or similar frozen dessert products. Corporate sampling is not permitted.

Vieux Carré, for the purpose of this division, means the area bounded by: Iberville Street, northbound side of North Rampart Street, Esplanade Avenue and the Mississippi River.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-204. Permit required and authorization.

Every person, whether natural or juridical, who desires to use the public right-of-way or public places to conduct any of the businesses or callings hereinafter set forth, shall first apply for and be granted a mobile ice cream vending permit from the department of finance as provided in this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-205. Permit requirements.

(a) A mobile ice cream vending permit shall be applied for with the department of finance and shall be on forms provided by the city and in the format and number of copies as required by the instructions. If applicable, no permit shall be issued until all requisite approvals by the State Department of Health and Hospitals are finalized and received by the department of finance. All permit holders shall comply with all applicable laws and regulations of the State of Louisiana and the Code of the City of New Orleans.

(b) Any permit that is issued shall in each instance state the occasion for which it is Issued and the date upon which it will expire and shall be in addition to any other required tax or license. Permits shall be issued on an annual basis and shall expire on December 31. Renewal applications shall be made by January 31. Nothing contained herein precludes the prorating of permit fees.

(c) The number of permits issued under this division shall at no time exceed 25 for the entire city.

(d) Permits shall be conspicuously displayed and affixed to the front windshield, lower corner, passenger side and be clearly visible from outside the mobile ice cream truck at all times during operation.

(e) Permits issued under this division are valid for use only in residential zoning districts as defined in the New Orleans Comprehensive Zoning Ordinance, as amended. Nothing contained herein shall be construed to permit the use of any permit in the Central Business District or the entirety of the Vieux Carré.

(f) Permits issued under this division are not valid:

a. During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

b. During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances;

c. In a clean zone as authorized by an ordinance adopted by the council; and

d. When the city requires the use of its public right-of-way to facilitate projects or events within the right-of-way.

(g) Mobile ice cream trucks permitted under this division and operating in compliance with this division shall not be considered a land use subject to regulation under the Comprehensive Zoning Ordinance.

(h) The director of the department of finance may prescribe such other policies and procedures as to the issuance of permits as may be required to carry out the full intent and purpose of this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-206. Permit fees.

There shall be an initial permit application fee of $50.00, which shall be submitted to the department of finance along with the permit application to defray the cost of processing. Upon permit issuance, there shall be an additional $200.00 permit fee, which shall be renewed annually, to reasonably compensate the city for the cost of the restricted use of the public right-of-way. Payment shall be by check or money order payable to the city.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-207. Rules and regulations for all mobile ice cream vendors.

In addition to all other applicable laws pertaining to permits and licenses, all mobile ice cream vendors operating pursuant to this section shall also be subject to the following provisions:

(a) Sales of items specified in this division shall take place only between the hours of 11:00 a.m. and 8:00 p.m.

(b) All mobile ice cream vendors must comply with all applicable city and state health laws and regulations and shall make such sales tax returns and other reports as required by provisions of the Code of the City of New Orleans.

(c) No mobile ice cream vendors shall vend within 40 feet of any intersection, stop sign, flashing beacon, yield sign or other traffic control signal located on the side of a roadway.

(d) No mobile ice cream truck shall be more than 20 feet in length or eight feet in width.

(e) No mobile ice cream vendors can vend on any street where the speed limit is greater than 25 miles per hour.

(f) No mobile ice cream vendor shall vend at a particular location more than once a day or longer than 30 continuous minutes without moving the truck to another location at least 1,000 feet away.

(g) Mobile ice cream vendors shall only vend on the passenger side of the ice cream truck.

(h) Mobile ice cream vendor shall pull as far as practicable to the side of the right-of-way when stopping for the purpose of making sales and shall operate emergency flashers when so stopped. In no event shall a mobile ice cream vendor stop for the purpose of making sales to prevent passage of other motor vehicles on the right-of-way or impede the flow of vehicular or pedestrian traffic.

(i) No signage or other obstructions shall block the windows.

(j) Advertising decals shall be limited to the name of the lawful mobile ice cream vendor, the types of wares permitted for purchase under this division and the price lists thereto. The types of wares and price lists shall only be displayed on the vending/passenger side of the ice cream truck.

(k) No mobile ice cream vendor shall sell alcoholic beverages, controlled substances, or any other item the possession or use of which is deemed illegal under any federal, state or local law.

(l) No mobile ice cream vendor shall sell goods, wares or other items of merchandise other than as provided in this division.

(m) No mobile ice cream vendor shall operate any horn, sound amplification system, or other sound-producing device or music system when the truck is stationary, in such a manner to create a noise disturbance, or at any time other than during authorized vending periods.

(n) Mobile ice cream vendors must meet all other applicable conditions or requirements imposed upon mobile vendors under the law.

(o) All mobile ice cream vendors shall immediately notify the department of finance if the State Department of Health and Hospitals revokes a vendor's ability to operate.

(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-208. Insurance requirements.

(a) At the time of application for, and prior to the issuance of, any permit pursuant to this division, each and every applicant shall provide written proof of commercial general liability insurance coverage. At the time of application for, and throughout the period of validity of, any permit issued to the applicant, the policy or policies must be in full force and effect and must be underwritten by a carrier licensed to do business in the state. Such insurance coverage shall provide liability coverage of not less than $500,000.00 for any and all claims against the applicant and/or the city arising out of or in any way connected to or associated with the vendor or any of its operations, including but not limited to bodily injuries, personal injuries, and injuries to property, and shall name the city as an additional insured.

(b) At the time of application for, and prior to the issuance of, any permit or franchise pursuant to this division, each and every applicant shall provide written proof of commercial vehicle insurance coverage in compliance with state law.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-209. Fines and forfeitures—Process and procedure.

(a) Any violation of any applicable provision of this chapter may be grounds for revocation of any permit issued under this division and shall be an infraction punishable by a fine not to exceed $500.00 per violation.

(b) Violations of the provisions of this division shall be brought by the appropriate department or agency to administrative adjudication as provided in Chapter 6 of the Code of the City of New Orleans, or to municipal court.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

DIVISION 5.3. FOOD—MOBILE FOOT, PUSHCART OR ANIMAL DRAWN FOOD VENDING PERMIT

Sec. 110-210. Definitions.

[The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Central Business District, for the purpose of this division, means the area bounded by: the Mississippi River, the northbound side of North Rampart Street, Iberville Street and Howard Avenue and Andrew Higgins Drive.

Clean zone means an area established by an ordinance adopted by the Council of the City of New Orleans that suspends certain permits and prohibits the transaction of certain business and/or commercial activities on designated areas of public property and outside of enclosed buildings, within the City of New Orleans during specific dates and times.

Mobile foot food vendor means a person, natural or juridical, that has obtained a valid permit to traverse on foot to serve or distribute victuals on the public right-of-way to customers for immediate consumption, who is completely mobile with no permanent fixed location.

Mobile pushcart food vendor means a person, natural or juridical, that has obtained a valid permit to serve or distribute victuals on the public right-of-way to customers for immediate consumption from a mobile cart pushed by hand or bicycle that is not motorized, which may be easily and readily moved by any person and is completely mobile with no permanent fixed location.

Mobile animal drawn food vendor means a person, natural or juridical, that has obtained a valid permit to serve or distribute victuals on the public right-of-way to customers for immediate consumption from a completely mobile vehicle exclusively powered by a horse, donkey or mule, with no permanent fixed location.

Public right-of-way means any city street, alley, road, sidewalk, neutral ground, or other passageway whereby pedestrians or vehicles traverse.

Serve or *distribute* means soliciting the sale of or offering for sale victuals. Corporate sampling is not permitted.

Victuals means food of any kind that is prepared, packaged or in a form that is suitable for immediate ingestion or consumption by human beings. This definition excludes the selling of fresh produce or raw or cooked seafood sold in bulk or by weight that has not been prepared, packaged or served with other prepared foods as part of a menu item. Sale of fresh, uncooked or unprepared produce or seafood, or farmers selling their own produce or value-added products (oils, jams, jellies, etc.) shall be regulated by Division 5.1 of Article II in Chapter 110 of the Code of the City of New Orleans.

Vieux Carré, for the purpose of this division, means the area bounded by: Iberville Street, northbound side of North Rampart Street, Esplanade Avenue and the Mississippi River.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-211. Permit required and authorized.

Every person, whether natural or juridical, who desires to use the public right-of-way or public places to conduct any of the businesses or callings hereinafter set forth, shall first apply for and be granted a permit from the department of finance as provided in this division.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-212. Permit requirements.

(a) A mobile foot, pushcart or animal drawn food vending permit shall be applied for with the department of finance and shall be on forms provided by the city and in the format and number of copies as required by the instructions. If applicable, no permit shall be issued until all requisite approvals by the State Department of Health and Hospitals are finalized and received by the department of finance. All permit holders shall comply with all applicable laws and regulations of the State of Louisiana and the Code of the City of New Orleans.

(b) Any permit that is issued shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other required tax or license. Permits shall be issued on an annual basis and shall expire on December 31. Renewal applications shall be made by January 31. Nothing contained herein precludes the prorating of permit fees.

(c) The number of permits issued under this division shall at no time exceed 46 for the entire city.

(d) Permits shall be conspicuously displayed on the person, pushcart or animal drawn vehicle at all times during operation:

a. On pushcarts or animal drawn vehicles, the numbering on the permit shall be in lettering no less than three inches in height.

b. On persons, the permit shall be prominently displayed, for example, on a lanyard, in a manner that ensures easy visibility and identification by the public.

(e) Permits issued under this division are valid for use only in business, commercial or mixed use zoning districts as defined in the New Orleans Comprehensive Zoning Ordinance, as amended. Nothing contained herein shall be construed to permit the issuance of any permit for use in the Central Business District, any residential zoning district as defined in the New Orleans Comprehensive Zoning Ordinance, as amended, and the entirety of the Vieux Carré, except as otherwise provided in section 110-215.

(f) Permits issued under this division are not valid:

a. During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

b. During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances;

c. In a clean zone as authorized by an ordinance adopted by the council; and

d. When the city requires the use of its public right-of-way to facilitate projects or events within the right-of-way.

(g) The director of the department of finance may promulgate such other policies and procedures as to the issuance of permits as may be required to carry out the full intent and purpose of this division in accordance with the Administrative Procedure Act.
(M.C.S., Ord. No. 25407, § 2, 7-25-13; M.C.S., Ord. No. 29726, § 1, 11-16-23; M.C.S., Ord. No. 29759, § 1, 12-1-23)

Sec. 110-213. Permit fees.

There shall be an initial permit application fee of $50.00, which shall be submitted to the

department of finance along with the permit application to defray the cost of processing. Upon permit issuance, there shall be an additional $200.00 permit fee, which shall be renewed annually, to reasonably compensate the city for the cost of the restricted use of the public right-of-way. Payment shall be by check or money order payable to the city.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-214. Rules and regulations for all mobile foot, pushcart or animal drawn food vendors.

In addition to all other applicable laws pertaining to permits and licenses, all mobile foot, pushcart or animal drawn vendors operating pursuant to this division shall also be subject to the following provisions:

(a) Sales of items specified in this division shall take place only between the hours of 10:00 a.m. and 11:00 p.m., and only between the hours of 10:00 a.m. and 2:00 a.m. in the VCE-1 and VCE Vieux Carré Entertainment Districts.

(b) All mobile foot, pushcart or animal drawn food vendors must comply with all applicable city and state health laws and regulations and shall make such sales tax returns and other reports as required by provisions of the Code of the City of New Orleans.

(c) No mobile foot, pushcart or animal drawn food vendor shall operate within 20 feet of any intersection.

(d) No mobile foot, pushcart or animal drawn food vendors shall stop for the purpose of making sales to prevent passage or impede the flow of vehicular or pedestrian traffic, including individuals using wheelchairs. Sales to customers within a vehicle are strictly prohibited.

(e) Advertising shall be limited to the name of the permitted vendor, the type of victuals and the cost.

(f) No mobile foot, pushcart or animal drawn food vendor shall sell alcoholic beverages, controlled substances, or any other item the possession or use of which is deemed illegal under any federal, state or local law.

(g) No mobile foot, pushcart or animal drawn food vendor shall sell goods, ware or other items of merchandise other than as provided in this division.

(h) No mobile foot, pushcart or animal drawn food vendor shall operate any horn, sound amplification system, or other sound-producing device or music system in such a manner to create a noise disturbance.

(i) Mobile foot, pushcart or animal drawn food vendor must meet all other applicable conditions or requirements as imposed by law.

(j) All mobile foot, pushcart or animal drawn food vendors shall immediately notify the department of finance if the State Department of Health and Hospitals revokes a vendor's ability to operate.

(k) No mobile foot, pushcart or animal drawn food vendor shall use open flames for any purpose.

(l) No more than two mobile foot, pushcart or animal drawn food vendors shall operate within 30 feet of another group of such vendors of equal or lesser size.

(M.C.S., Ord. No. 25407, § 2, 7-25-13; M.C.S., Ord. No. 29759, § 2, 12-1-23)

Sec. 110-215. Existing and additional vendors in the Vieux Carré.

(a) The operating location of mobile foot, pushcart or animal drawn food vendors that were operating and legally entitled to a permit as of January 1, 2023 shall be considered to include the non-residential zoning districts of the Vieux Carré; provided, however, that such operations and vendors comply with the laws and applicable rules and regulations governing permits and licenses, including all provisions of this division.

(b) Each vendor legally entitled to a permit on July 25, 2013, the date of adoption of Ord. No. 25,407 M.C.S., shall forfeit seven permits.

(c) Permits for mobile foot, pushcart or animal drawn food vendors not otherwise operating pursuant to paragraph (a), above, shall be limited to one per vendor, and shall be awarded by lottery. Such lottery will be conducted annually in accordance with rules established by the director of the department of finance, provided that:

a. The permit of a currently permitted vendor is not renewed within 30 days of expiration, or

b. The winner of a lottery fails to be issued a permit within 60 days of the lottery event, and

c. An award by lottery does not cause the number of permits issued to be more than the maximum allowed under this division.

(d) Entrants to the lottery must be natural persons; however, a lottery winner may register the permit in the name of a limited liability company, partnership, corporation, or other business entity during the permitting application process, provided the lottery winner is listed as an officer for that business entity.
(M.C.S., Ord. No. 25407, § 2, 7-25-13; M.C.S., Ord. No. 29726, § 2, 11-16-23; M.C.S., Ord. No. 29759, § 3, 12-1-23)

Sec. 110-216. Insurance requirements.

(a) At the time of application for, and prior to the issuance of, any permit pursuant to this division, each and every applicant shall provide written proof of commercial general liability insurance coverage. At the time of application for, and throughout the period of validity of, any permit issued to the applicant, the policy or policies must be in full force and effect and must be underwritten by a carrier licensed to do business in the state. Such insurance coverage shall provide liability coverage of not less than $50,000.00 for any and all claims against the applicant and/or the city arising out of or in any way connected to or associated with the vendor or any of its operations, including but not limited to bodily injuries, personal injuries, and injuries to property, and shall name the city as an additional insured.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

Sec. 110-217. Fines and forfeitures—Process and procedure.

(a) Any violation of any applicable provision of this chapter may be grounds for revocation of any permit issued under this division and shall be an infraction punishable by a fine not to exceed $500.00 per violation.

(b) Violations of the provisions of this division shall be brought by the appropriate department or agency to administrative adjudication as provided in Chapter 6 of the Code of the City of New Orleans, or to municipal court.
(M.C.S., Ord. No. 25407, § 2, 7-25-13)

DIVISION 5.4. FOOD—FOOD POP-UP HOST AND FOOD POP-UP VENDOR

Sec. 110-218. Definitions.

The following words, terms and phrases, when used in this division shall have the meanings ascribed to them in this section.

Food pop-up host or *host* means a restaurant, bar, brewery, micro-brewery, distillery, micro-distillery or winery with a kitchen as defined in the comprehensive zoning ordinance of the City of New Orleans that has been permitted and inspected by the department of safety and permits and licensed by the state department of health, and that holds a valid occupational license from the revenue bureau, which has entered into an agreement with a food pop-up vendor whereby the food pop-up vendor uses the host's kitchen and facilities to prepare and sell its menu, often on a recurring schedule.

Food pop-up vendor or vendor means a temporary food service establishment that holds a valid occupational license from the revenue bureau, which has entered into an agreement with a food pop-up host whereby the food pop-up

vendor uses the host's kitchen and facilities to prepare and sell its menu, often on a recurring schedule.
(M.C.S., Ord. No. 29188, § 2, 10-6-22)

Sec. 110-219. Permits and licenses required; shared kitchen agreement required; other requirements.

(a) Each of the operator of the food pop-up host and the food pop-up vendor shall apply for and obtain a permit from the department of safety and permits under the terms of this division and in compliance with the Comprehensive Zoning Ordinance of the City of New Orleans.

(b) Each of the food pop-up host and the food pop-up vendor must be current with all sales tax and occupational license requirements of this code to obtain permits authorized under this division. Failure to maintain continued compliance with sales tax and occupational license requirements may result in the revocation the permit.

(c) The host and vendor must sign a written agreement which contains provisions regarding the sharing of the host's kitchen facilities, and compliance with provisions of this Code. Should the host not have a kitchen facility permitted and licensed by the state department of health and/or parish sanitarian, the agreement shall so indicate, and the vendor must provide a signed attestation affirming that the vendor's food was prepared in a kitchen permitted and licensed by the state department of health and/or parish sanitarian. Prior to operating under the terms of this division, the vendor shall have obtained a permit required by this section and have filed such agreement or attestation with the department of safety and permits.

(d) No permit shall be issued to the food pop-up host under the terms of this division until all requisite approvals by the departments of fire, health, and safety and permits, and/or the Orleans Parish sanitarian are obtained.
(M.C.S., Ord. No. 29188, § 2, 10-6-22)

Sec. 110-220. Permit application, fees.

(a) There shall be an initial permit application fee of $50.00, which shall be submitted to the department of safety and permits along with the permit application, to defray the cost of processing.

(b) The permit application must be accompanied by a tax clearance certificate.

(c) Upon food pop-up host permit issuance, there shall be an additional $500.00 permit fee, which must be renewed annually.

(d) Upon food pop-up vendor permit issuance, there shall pay an additional $150.00 permit fee, which must be renewed annually.

(e) All permit fees collected under this division shall be transmitted to the collector of revenue in accordance with section 110-2.

(f) The food pop-up host and the food pop-up vendor shall each collect and remit to the department of finance and to the State Department of Revenue all respective taxes from all sales conducted under the terms of this division, as required by this code and Title 47 of the Louisiana Revised Statutes. This provision shall not restrict the authority of the director of the department of finance to assess and collect sales and use taxes in accordance with section 150-441 et seq. of this Code.

(g) Any misstatement or suppression of fact(s) in any application for a permit under this division shall be grounds for refusal of the permit or rescission thereof if already issued.
(M.C.S., Ord. No. 29188, § 2, 10-6-22)

Sec. 110-220.1. Restrictions.

Permits issued under this division are not valid:

(1) During the Mardi Gras Season in the locations governed by sections 34-34 et seq.;

(2) During the Annual New Orleans Jazz and Heritage Festival Season within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and

Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) commencing at 7:00 a.m. on the first day of live music performances and continuing through and until 11:59 p.m. on the concluding day of live music performances; and

(3) In a clean zone as authorized by an ordinance adopted by the council.

(M.C.S., Ord. No. 29188, § 2, 10-6-22)

Sec. 110-220.2. Enforcement.

(a) Any violation of this chapter, or applicable provisions of the comprehensive zoning ordinance, or any other applicable law is prohibited, and shall subject the permittee to penalties, which may include revocation or suspension of the permit, fines or fees, and any other remedy allowed by law.

(b) Notice and hearing requirements for determining violation(s) shall be in accordance with the administrative procedures provided in chapter 6, article II of this Code.

(M.C.S., Ord. No. 29188, § 2, 10-6-22)

ARTICLE III. SOLICITORS*

Sec. 110-221. Permit for soliciting advertising contracts for a publication.

(a) It shall be illegal for any person to solicit advertising contracts in any publication without permission of the director of the department of finance previously obtained, which permission shall only be granted when satisfactory evidence has been presented to him of the legitimate character of such publication and that the person thus soliciting is authorized to do so by the owner or duly accredited representative of such publication.

(b) Violations of this section shall be punishable by a fine not exceeding $25.00 or imprisonment not exceeding 30 days, or both, at the discretion of the court.

(Code 1956, § 3-1)

Sec. 110-222. Permits for distribution of advertising brochures, leaflets, etc.

(a) Any person desiring to use the city streets, sidewalks or public rights-of-way to:

(1) Distribute product samples, advertising brochures, leaflets, pamphlets, or commercial literature of any type whatsoever; and/or

(2) Canvass or solicit on city streets, sidewalks or house to house for commercial purposes,

shall first apply to and receive a permit from the department of finance. Each permit shall be $50.00 for each separate solicitor or canvasser. Permits shall be transferable among agents or employees of the corporations, partnership or individual who obtained the permit. However, each agent or employee using the permit shall obtain identification cards from the department of finance. Each identification card shall be $5.00 for each agent or employee.

(b) Permits required by subsection (a) shall not be valid within the following designated areas or locations:

(1) The area of the Vieux Carré, being that certain area bounded on the east by the Mississippi River, on the north by the uptown side of Esplanade Avenue projected to the Mississippi River, on the west by the riverside of Rampart Street, and on the south by the downtown side of Iberville Street projected to the Mississippi River;

(2) The area of the Convention center zone, being that certain area bounded on the east by the Mississippi River, on the north by the northern or the downtown

*Cross references—Mayoralty permits required for various callings or occupations or occasions, § 30-69; mayoralty permits for peddling novelties, candles, home manufactured or home grown products, toilet articles, etc., required, § 30-70; Jackson Square, § 106-261 et seq.; sales and use tax, § 150-441 et seq.; Vieux Carré, ch. 166.

side of Julia Street projected to the Mississippi River, on the west by the lakeside or westerly right-of-way of Convention Center Boulevard to Thalia Street and from Thalia Street by the westerly side of South Front Street to its intersection with Henderson Street, and on the south by the southerly side of Henderson Street projected to the Mississippi River;

(3) The area of the Riverfront Zone, being that certain area bounded on the east by the Mississippi River, on the north by the northerly or downtown side of Iberville Street projected to the Mississippi River, on the south by the northerly or downtown side of Julia Street projected to the Mississippi River, and on the west by the lakeside or westerly side of the right-of-way of Convention Center Boulevard to Poydras Street, and from Poydras Street to Canal by the Rivergate side of Delta Street, and from Canal to Iberville Street by the rivermost of westerly boundary of Canal Place Lots 3CP and 2CP; and

(4) The area of the Lower Riverfront Zone, being that certain area bounded on the east at Port Street by the dividing line between the Mandeville and Press Street Wharves, on the north by the riverside or southerly side of the curb of North Peters Street, and on the west by the projection of the westerly or uptown side of Barracks Street between North Peters Street and the Mississippi River.

Persons shall not distribute product samples, advertising brochures, leaflets, pamphlets, or commercial literature of any nature or kind whatsoever, and/or canvass or solicit in any manner on the public streets, sidewalks, and neutral grounds or medians within these areas.

(c) For purposes of this section "commercial" shall mean to propose a commercial transaction. Religious, political, charitable or other noncommercial groups soliciting or canvassing for purely voluntary donations shall be exempt from the provisions of this section. However, any person soliciting or canvassing for any religious, political, charitable or other noncommercial group who offers an item for sale and/or a fixed price shall be considered to be proposing a commercial transaction for the purposes of this section.

(d) Persons who have valid mayoralty permits issued under section 30-69 other than subsection 30-70(7) shall be exempt from the provisions of this section.

(e) Pursuant to the enforcement of the restrictions of this section, the police department is hereby authorized to grant enforcement and citation powers to the inspectors of the Vieux Carré Commission for the purposes of obtaining compliance with this section only. Such powers of the Vieux Carré Commission inspectors shall be in addition to the normal enforcement and citation powers of the police department. The Vieux Carré Commission shall coordinate the enforcement of the provisions of this section with the department of finance. Violations of such rules or regulations shall constitute a violation of this section and shall be punished as provided in section 1-13.
(Code 1956, § 46-6)

Secs. 110-223—110-255. Reserved.

ARTICLE IV. TRANSIENT VENDORS*

Sec. 110-256. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Transient vendors, canvassers, solicitors and merchants—Class A means all persons engaging in the sale at retail of goods, wares and merchandise within the corporate limits of the city and who for the primary purpose of carrying on such business hire, lease or occupy, either in

*__Cross references—__*Mayoralty permit generally, § 30-66 et seq.; mayoralty permits required for various callings or occupations or occasions, § 30-69; mayoralty permits for peddling novelties, candles, home manufactured or home grown products, toilet articles, etc., required, § 30-70; Jackson Square, § 106-261 et seq.; permit required for peddling of flowers in parks and recreation areas, § 110-151 et seq.; secondhand jewelry dealers, § 130-66 et seq.; sales and use tax, § 150-441 et seq.; Vieux Carré, ch. 166.

whole or in part, a room, a building or other structure for the exhibition and sale at retail of such goods, wares and merchandise, and with the intention to close out or discontinue such business within a period of one year from date of the commencement thereto.

Transient vendors, canvassers, solicitors and merchants—Class B means all persons engaging in the sale of goods, wares and merchandise in conjunction with an entertainment event, athletic or sporting event, where the sale of such merchandise is secondary or accessory to the primary purpose for the lease, use or occupation of a room, building or other structure.

Transient vendors, canvassers, solicitors and merchants—Class C means all persons engaging in the production or presentation of trade shows open to the general public, with or without admission charge, where retail sales are to be conducted. This permit will cover activities of their subcontractors' (lessees') retail activities.

Transient vendors, canvassers, solicitors and merchants—Class D means all persons engaged in business of buying precious metals or stones and who for the purpose of carrying on such business, hires, leases, or occupies, either in whole or in part, any open space, room or some other temporary quarter or structure for the purpose of buying such merchandise with the intent of closing out or discontinuing such business within a period of one year from the date of the commencement thereof.

Transient vendors, canvassers, solicitors and merchants—Class E means all Social Aid and Pleasure Club occasional vendors engaging in the sale of prepared or packaged food, hot or cooked food, food cooked to order, or non-food artifacts at a parade event where said vendor's Social Aid and Pleasure Club has a valid parade permit from the police department or a special event where said vendors' Social Aid and Pleasure Club has obtained a promoter license and mayoralty permit.
(Code 1956, § 46-7(a)—(d); M.C.S., Ord. No. 25032, § 1, 10-4-12)

Cross reference—Definitions generally, § 1-2.

Sec. 110-257. Exclusions.

(a) The provisions of this article shall not apply to persons engaging in the sale of goods, wares, merchandise and services in conjunction with a trade show, convention, professional or association meeting, etc., where admission to the event is not open to the general public but is restricted by membership or invitation to a limited class of persons and the sale of merchandise is secondary or accessory to the primary purpose for the trade show, convention, professional or association meeting, etc., and such persons shall not be deemed transient vendors for the purposes of section 110-259(a) and this article.

(b) The provisions of this article shall not apply to any person selling fruits, vegetables or farm products when raised by such vendor, or to any person who conducts a sale pursuant to statute or court order.
(Code 1956, § 46-7)

Sec. 110-258. Compliance required.

It shall be unlawful for any transient vendor, canvasser, solicitor or merchant to sell at retail or offer for sale at retail within the corporate limits of the city any goods, wares, or merchandise except in accordance with the provisions of this article.
(Code 1956, § 46-8)

Sec. 110-259. Permits required for various callings or occasions; fees.

(a) Every person who shall desire to use the public streets, sidewalks or public places or private places of business establishments for the conduct of any of the businesses or callings hereinafter set forth shall first apply to and obtain from the department of finance a permit. Such permit shall in each instance state the occasion for which it is issued and the date upon which it will expire and shall be in addition to any other tax or license to which permittee may be liable. Except as otherwise provided, annual permits expire on December 31. Such permits, however, are not valid within the central business district area bounded by the Mississippi River on the east, Claiborne Avenue on the west,

Esplanade Avenue on the north and Howard Avenue on the south, except as provided in section 110-271.

(b) Permits shall be paid for by the applicant at the time of issuance according to the following schedule:

(1) For any transient vendor, canvasser, solicitor and merchant engaged in the sale at retail of goods, wares and merchandise and who, for the purpose of carrying on such business, hires, leases or occupies, either in whole or in part, any open space, room or some other temporary quarter or structure for the exhibition and sale of such goods, wares and merchandise and with the intention to close out or discontinue such business within a period of one year from the date of the commencement thereof. For the purpose of this subsection, this classification shall be designated as class A as defined in section 110-256. Per location, per event: $500.00.

(2) For any transient vendor, canvasser, solicitor and merchant engaged in the sale of goods, wares and merchandise in conjunction with an entertainment event, athletic or sporting event, where the sale of such merchandise is secondary as accessory to the primary purpose for the lease, use or occupation of a room, building or other structure. For the purpose of this section, this classification shall be designated as class B as defined in section 110-256. Per location, per event: $500.00.

(3) For any transient vendor, canvasser, solicitor or merchant engaged in the production or presentation of trade shows open to the general public, with or without admission charge, where retail sales are to be conducted. This permit will cover activities of their subcontractors' (lessees') retail activities. For the purpose of this section, this classification shall be designated class C as defined in section 110-256. Per location, per event: $500.00.

(4) For any transient vendor, canvasser, solicitor or merchant engaged in the business of buying precious metals or stones and who, for the purpose of carrying on such business hires, leases, or occupies, either in whole or in part, any open space, room or some other temporary quarter or structure for the purpose of buying such merchandise with the intent of closing out or discontinuing such business within a period of one year from the date of the commencement thereof. For the purpose of this section, this classification shall be designated as class D as defined in section 110-256. Per location, per event: $500.00.

(5) For any Social Aid and Pleasure Club Occasional Vendor engaging in the sale of prepared or packaged food, hot or cooked food, food cooked to order, or non-food artifacts at a parade event where said vendor's Social Aid and Pleasure Club has a valid parade permit from the police department or a special event where said vendors' Social Aid and Pleasure Club has obtained a promoter license and mayoralty permit. For the purpose of this section, this classification shall be designated as class E as defined in section 110-256. The provisions of section 110-259(c)(3) relative to the amount of the permit fee notwithstanding shall be $25.00 per vendor; per year.

(c) (1) *Definition.* Transient book seller means all persons engaging in the sale at retail of books, in a temporary location, for a period not to exceed five days per sales event. For the purposes of this definition, books must constitute more than 75 percent of the retail value of the transient book seller's inventory of items for sale at a transient book sale.

(2) a. Notwithstanding any other provision of this section or the City Code, effective January 1, 2005, a transient book seller (hereinafter known as seller) must obtain a "transient merchant's license" in order to conduct temporary business in the state. The license or a copy thereof must be in the immediate posses-

sion of the seller or sales agent at all times during the transaction of transient business. Prior to the issuance of a license, the seller must provide a written list of the sales agents authorized to conduct business under the transient merchant's license. The license shall allow the license holder to conduct not more than 12 events per year.

b. Each agent will be issued a transient merchant's license card. The card and a copy of the license must be in the immediate possession of the agent during the transaction of transient business. The seller must obtain a new transient merchant license card for each new or replacement sales agent.

(3) The transient merchant's license is valid for one year from the date of issuance, provided that the permit shall expire on December 31 of the year the permit was obtained. When the permit is obtained prior to July 1 of any year, the permit fee shall be $500.00. When the permit is obtained on or after July 1 of any year, the permit fee shall be $250.00.

a. The applicant for the license must complete an application form and pay a $500.00 fee.

b. The application must include the name and address of a resident agent. The resident agent must be an individual resident or a corporation, partnership, or other business entity with its principle place of business in the state.

c. The application must be accompanied by a list of all employees/agents/representatives doing business in the state. The list must include the name, Social Security number, mailing address, and telephone number of each employee/agent/representative doing business under the transient merchant license.

(4) The transient merchant's license shall, in addition to any other permits, license or fees required by the city, including an occupational license.

(d) Notwithstanding anything to the contrary herein, no special event permit shall be issued for an event to occur on property which does not already have an occupational license until the city confirms that the property upon which the event will occur is free and clear of all outstanding property taxes, final administrative judgments and municipal lien.

(Code 1956, § 46-1(35); M.C.S., Ord. No. 21426, § 1, 2-20-04; M.C.S., Ord. No. 21858, § 1, 3-3-05; M.C.S., Ord. No. 25032, § 2, 10-4-12; M.C.S., Ord. No. 30681, § 5, 6-24-26)

Sec. 110-260. Permit, application.

Every transient vendor, canvasser, solicitor or merchant subject to the provisions of this section, before selling at retail, or offering for sale at retail, within the city any goods, wares or merchandise, either from stock or by sample, shall make application to the director of the department of finance for a permit no less than 30 days prior to the date that such sales are to begin to carry on such business in the city. Such application shall be in writing, duly sworn to by the applicant in person, or by the applicant's duly authorized representative, and shall contain the following information:

(1) The name of the person having the management or supervision of such business during the time it shall be carried on in the city;

(2) The address of such person while engaged in such business in the city;

(3) The capacity in which such person will act; that is, whether as proprietor or agent;

(4) The name of the person for whose account the business shall be carried on, and if a corporation, under the laws of what state the same is incorporated;

(5) Three business references;

(6) The place where the owner of such business conducts or maintains an established place of business;

(7) The place in the city where it is proposed to carry on such business, and the length of time during which it is expected or proposed that such business shall be conducted;

(8) The place, other than the permanent place of business of the owner, where such transient vendor, canvasser, solicitor or merchant within the six months next preceding the date of such application conducted or carried on a temporary or transitory business, stating the nature thereof and giving the post office and street addresses of any building or office in which such business was so conducted;

(9) A statement of the nature, character and quantity of the goods, wares or merchandise to be sold at retail or offered for sale at retail in the city and the invoice value of such goods;

(10) A statement as to whether the goods are to be sold at retail from stock in possession or by sample, and whether the same are to be sold at retail at auction or public outcry, or by personal solicitation, or otherwise. Bills or invoices of purchase of goods shall be attached to the application when demanded by the director of the department of finance in the exercise of his discretion;

(11) A brief statement of the nature and character of the advertising done or to be done in order to attract customers, and, if required by the director of the department of finance, copies of all advertising, whether by handbills, circulars, newspaper advertising or otherwise, shall be attached to the application as exhibits thereto;

(12) The number, either of arrests or convictions of misdemeanors or crimes, and the nature of the offenses for which arrested or convicted, if any;

(13) To the application must be appended a letter from the firm for which the applicant purports to do business, authorizing the applicant to act as its representative.

(Code 1956, § 46-9)

Sec. 110-261. Issuance of permit, expiration, display; separate events, places.

(a) It shall be unlawful for any transient vendor, solicitor, canvasser or merchant to engage in business until he shall have first applied to and obtained a permit to engage in business, in accordance with the provisions of this article and has paid all taxes and fees required by law for the transaction of such business in the city. It shall be the duty of the director of the department of finance to issue such permit in writing which shall state the date such permit is issued, the nature of the business authorized to be carried on and the expiration date of such permit, the place where such business may be carried on under such permit, and the name of the person authorized to carry on the same, which permit shall be signed by the director of the department of finance or his authorized representative.

(b) The permit shall expire at 12:00 midnight on the last day of the event at which the permittee conducts the business authorized by the permit.

(c) The permit so issued shall be posted conspicuously in the place of business named therein.

(d) If the person applying for such permit shall desire to do business in more than one event or place, separate permits shall be applied for and issued for each event or place of business, and shall be posted conspicuously in each event or place of business. The required fee shall be paid for each permit.

(Code 1956, § 46-10)

Sec. 110-262. Deposit, bond; use by creditors.

(a) Every applicant for a permit to engage in the business of a transient vendor, solicitor, canvasser, or merchant, except those transient

vendors who have contracted with a promoter or shopping center association as described in subsection (b) of this section, must deposit with the department of finance $10,000.00 or a performance bond in a like amount assuring payment of all required tax remittances. The department of finance may reduce the required bond amount under this subsection for promoters or shopping center associations that prohibit cash transactions and require transient vendors to process sales using electronic means. Any reductions shall be authorized and applied in a consistent manner and shall be made in accordance with rules and regulations promulgated by the department of finance and approved by the council pursuant to section 2-1000.

(b) When an individual promoter or shopping center merchant's association, acting as a promoter, executes contracts with three or more transient vendors, under which the contracting vendors will participate in a show having a central theme and being held in a shopping center during a defined time period, the promoter or association shall post a performance bond on behalf of participating vendors for the purposes described in subsection (c) of this section. The bond shall provide coverage in the amount of $500.00 per participating vendor, provided that no bond shall be for less than $10,000.00 nor more than $20,000.00. When applying for a permit, the promoter shall present to the department of finance copies of the contracts under which vendors to be covered by the bond are included in the show. The bond required herein shall satisfy the requirement of section 150-610.

(c) This deposit shall be subject to attachment, garnishment and execution on behalf of any claimant whose claim arises in connection with the business done by the applicant or permittee in the city or on behalf of the city for the payment of fees or taxes owed by the applicant or permittee. In the event a claim arises, The City of New Orleans shall have first priority for payment of any outstanding tax debt.

(d) This deposit shall be held by the director of the department of finance for 30 days after the expiration of the permit authorized under this article. The amount of the deposit which remains after the claims authorized under subsection (c) of this section have been satisfied shall be remitted to the permittee; but if, at such date, the director of the department of finance has received notice of any suit pending against the permittee which arises out of the business done by the permittee in the city, the deposit shall not be returned until 60 days after the termination of the suit.
(Code 1956, § 46-10.1; M.C.S., Ord. No. 30017, § 1, 8-8-24)

Sec. 110-263. Appointment of agent for service of process.

All transient vendors, canvassers, solicitors, and merchants shall, upon making application for a permit in this article, provide the director of the department of finance with proof that the applicant has appointed a resident of the parish as his irrevocable agent for service of process.
(Code 1956, § 46-10.2)

Sec. 110-264. Exemptions for artists, craftsmen, nonprofit organizations, and shopping center merchant's associations.

(a) Nonprofit organizations, artists and craftsmen who produce and sell their own works of art or crafts must obtain the permit required under section 110-259, but shall not have to pay the fee required therein and shall further be exempt from sections 110-262 and 110-263. For the purposes of this section, a nonprofit organization shall be one organized as a nonprofit corporation under the laws of the state or tax exempt under section 501(c) of the Internal Revenue Code.

(b) Shopping center merchant's associations or committees domiciled in the parish and organized to promote the business and use of a shopping center shall obtain the permit required under section 110-259 but shall not have to pay the fee required therein.

(c) Such associations or committees shall further be exempt from sections 110-262 and 110-263; provided, however, that when such association has contracted with three or more transient vendors to organize a show in their

shopping center, as described in section 110-262, the requirements of section 110-262 will prevail.

(d) A shopping center merchant's association or committee domiciled in the parish and organized to promote the business and use of a shopping center shall obtain the permit required under section 110-259 on behalf of each transient vendor, canvasser, solicitor, or merchant who is covered by the provisions of section 110-259 and who will be operating within the shopping center managed by the applicant association or committee, provided that neither the vendor nor the merchant's association shall have to pay the permit fee required by section 110-259.

(e) An organization applying for an exemption under this section shall provide the department of finance with sufficient proof to establish its status as a bona fide shopping center merchant's association.

(f) Events that are open to the public without any admission fee shall be exempt from the bonding requirement in section 110-262 when the event has less than 35 transient vendors, solicitors, canvassers, or merchants, and does not include more than two food or retail vendors or merchants who accept cash payments for goods or services.
(Code 1956, § 46-10.3; M.C.S., Ord. No. 30017, § 1, 8-8-24)

Sec. 110-265. Additional requirements for transient vendors under class "D."

(a) All transient vendors must obtain a permit 30 days prior to opening a business in the city. This permit is to expire within 60 days or cancelled if the buyer ceases operation for a period longer than 72 hours.

(b) Every applicant for a permit to engage in the business of buying precious metals or stones must deposit with the department of finance the sum of $10,000.00 or a performance bond in the like amount in accordance with section 110-262. This bond will expire within a 60-day period or cancelled if the buyer ceases operation for a period longer than 72 hours.

(c) All applications for permits under section 110-259 must be signed by three property taxpayers of the city stating that the applicant is of good moral character.

(d) All applicants must file, daily, on forms furnished by the superintendent of police, a complete description including number of all articles bought or taken, a description of the person selling the merchandise, and the name of all persons working on the premises.

(e) No applicant under this section shall sell or dispose of or change or destroy the identity of any goods, articles or things, purchased before an interval of 15 days from the date of purchase has elapsed, but shall place such merchandise in a safety deposit box in the city during this period and leave with the department of police a forwarding address, if leaving the city.

(f) All applicants shall only purchase merchandise from seller who is at least 18 years of age by proof of date of birth.
(Code 1956, § 46-10.4)

Sec. 110-265.1. Additional requirements for transient vendors under class "E."

(a) Vendors permitted under this division may sell from parked vehicles or pushcarts and on the sidewalks as long as pedestrian traffic may pass.

(b) Vendors permitted under this division are prohibited from parking a motor vehicle on the neutral ground.

(c) Vendors permitted under this division that are stationary may be present in any single location for one hour previous to the parade and one hour after the parade has passed the location.

(d) Vendors permitted under this division may also move with the parade if using pushcarts, walking, or other vehicle except for motor vehicles. All moving vendors must keep moving except when making a sale. No stands, card tables or the like, except hand-carried displays, shall be allowed on public streets, sidewalks, alleys, parks, squares, neutral grounds or rights-of-way for the sale or display of goods.

(e) Allowed food items: Vendors permitted under this division may sell prepared and packaged foods, cooked food, food cooked to order, food cooked on, in, or adjacent to the vendor vehicle or cart.

(f) Prohibited items:

(1) Vendors permitted under this division may not utilize propane grills.

(2) Vendors permitted under this division may not sell alcoholic beverages.

(g) Vendors permitted under this division must display a menu of food items with set prices that is attached to their vehicle, pushcart, or other conveyance for their wares.

(h) Vendors permitted under this division must conspicuously display their permit on their vehicle, pushcart, or other conveyance for their wares.

(i) Vendors permitted under this division must supply a trash receptacle while vending.

(j) Vendors permitted under this division must keep clean from litter a ten foot radius extending from their vehicle, pushcart, or other conveyance while vending.

(k) During the Mardi Gras season, it shall be unlawful for any vendor permitted under this division to cook, prepare, sell, or vend from a trailer, or other mobile temporary facility, or vehicle, or on foot, any food or merchandise on the sidewalk on the same side of the street, in the street, or on the neutral ground (median) in front of any lawfully operating restaurant, cafeteria, public or private school, or any concession operated by a booster club sanctioned by the department of recreation. The provisions contained in this section shall not apply to vendors who are issued permits under City Code section 34-35. Vendors issued permits under this article are prohibited in participating in vending during any Mardi Gras parade without the proper MG licenses and permits.
(M.C.S., Ord. No. 25032, § 3, 10-4-12)

Sec. 110-266. Hours shops to be closed.

The open space, room or other temporary quarter or structure mentioned in sections 110-256 and 110-259 shall be kept closed from the hours of 7:00 p.m. to 7:30 a.m., except on Saturdays and during the month of December, when the hour of closing may be extended to 10:00 p.m.
(Code 1956, § 46-10.5)

Sec. 110-267. Penalty for violation.

The violation of any of the provisions of any city, state, or federal law, or the doing of business otherwise than provided in the application and permit issued thereon, shall constitute a forfeiture of the permit, and the director of the department of finance shall suspend the operation of such permit not to exceed ten days, and upon the request of the holder of such permit, grant a hearing and rule upon such forfeiture. Should the director of the department of finance find that there has been a violation of the condition of the permit, such permit shall be immediately forfeited, surrendered, and cancelled. A forfeiture of the permit shall not entitle the transient vendor, canvasser, solicitor or merchant to any refund of taxes or fees paid.
(Code 1956, § 46-11)

Sec. 110-268. Inspections to ensure compliance.

Immediately upon issuing any permit provided for in this article, the director of the department of finance or any of his deputies shall at any time thereafter and at all reasonable hours make an inspection of the place of business as provided in such permit and shall determine whether or not such business is carried on or conducted by the person and in the manner provided in the permit, and the application upon which the permit was issued, and whether the permit is posted as provided by this article, and whether or not the other provisions of this article are being observed in the carrying on of such business.
(Code 1956, § 46-12)

Sec. 110-269. Permit fee.

In order to defray the cost and expense of the enforcement of this article, with the exception of class E transient vendors, every transient vendor, canvasser, solicitor or merchant subject to the provisions of this series of sections, shall, in

addition to all taxes, privileges and fees required by law to be paid for the transacting of such business in the city, pay a permit fee of $500.00, which shall be paid to the director of the department of finance, or to his/her designated deputy. All permit fees collected under this article shall be transmitted to the collector of revenue in accordance with section 110-2.
(Code 1956, § 46-13; M.C.S., Ord. No. 25032, § 4, 10-4-12)

Sec. 110-270. Permit nontransferable.

The permit issued under this article shall be nontransferable.
(Code 1956, § 46-13)

Sec. 110-271. Permits valid in the central business district.

Permits designated by section 110-259 are valid within that area of the city bounded by the Mississippi River on the east, Rampart Street on the west, Esplanade Avenue on the north and Canal Street on the south.
(Code 1956, § 46-1.1)

Sec. 110-272. Permits not valid in certain areas during Annual Louisiana Jazz and Heritage Festival Season.

(a) Permits designated by section 110-259 are not valid within the area bounded by Florida Avenue on the north, North Broad Avenue on the east, Esplanade Avenue on the south, and Bayou St. John on the west (excluding the portion of that area contained within the exterior boundaries of the New Orleans Fair Grounds Racetrack) during the Annual New Orleans Jazz and Heritage Festival Season.

(b) The "Annual New Orleans Jazz and Heritage Festival Season" is defined as that period occurring annually commencing at 7:00 a.m. on the first day of live music performances at the New Orleans Jazz and Heritage Festival conducted annually at the Fair Grounds racetrack by the New Orleans Jazz and Heritage Foundation, Inc., and continuing through and until midnight on the concluding day of live music performances at such location during such festival.
(Code 1956, § 46-1.1.1)

Chapters 111—113

RESERVED

Chapter 114

PERSONNEL*

Article I. In General

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ARTICLE I. IN GENERAL

Sec. 114-1. Assignment of wages prohibited.

The employees of the city are prohibited from selling or assigning their salaries or wages or from giving any power of attorney for the collection thereof. Any such transfer or assignment of salaries or wages due or to become due by the city to any of its employees, or of any part or share thereof, and all powers of attorney, orders or other authority for receiving payment of such salaries or wages shall be absolutely null and void.
(Code 1956, § 2-11)

State law reference—For state law regulating assignments to small loan companies, R.S. 6:586 et seq.

Sec. 114-2. Payroll withholdings; employment related expenses.

(a) Any city employee may authorize the city to withhold from his salary a specific amount for payment of his dues or other expenses to any organization to which he belongs or to which he incurs expense which are related to his employment with the city and which he designates therein. In such cases, the employee must voluntarily execute and furnish to the city a written and specific authorization for such deductions. The city shall make such deductions unless it is determined that the purposes and activities of the organization specified or expense incurred bear no substantial relationship to the employee's wages, hours, grievances, working conditions, duties, or rights as a city employee. Any amount withheld in accordance with the provisions of this section shall be remitted forthwith to the organization designated. The city is authorized to charge and deduct postage and such other reasonable expenses that may be incurred in connection with such collection and remittance from the amount remitted to the specified organization provided that such charges deducted shall not exceed $5.00 per month per 25 or fewer individual charges deducted for each specified organization.

(b) If the city finds that the purposes and activities of the organization specified by the employee or the expense incurred bear no substantial relationship to the employee's wages, hours, grievances, working conditions, duties or rights as a city employee, it may refuse to make the collection and remittance authorized in this section. This refusal shall be communicated to the employee by registered or certified mail, giving specific reasons for such refusal.

(c) Any employee aggrieved by a decision of the city to refuse to make the collection and remittance authorized herein may appeal such refusal in writing to the city council at any regular or special meeting of the council. Upon receipt of the appeal, the council shall set a hearing on the matter, which hearing shall be held not more than 21 days thereafter. After hearing such evidence as may be presented by the city, the aggrieved employee, or other interested parties, the council shall by motion uphold or reverse the decision of the city to refuse the payroll withholding authorized in this section. The action of the council shall constitute the final action of the city in connection with the request of the employees. During the pendency of any appeal under this section, the city shall continue to make the collections and remittance authorized in this section until a final determination is made by the city council, provided the appeal is filed within 30 days of receipt by the appellant of the city's decision to refuse to make the collection and remittance.

(d) For the purposes of this section, organizations related to an employee's employment with the city shall include, but not be limited to, organizations which promote professional or fraternal purposes of city employees in connection with their employment or insurance companies which provide insurance coverage for city employees which were afforded use of the payroll withholding system of the city prior to January 1, 1982.

(e) The provisions of this section shall not affect any contractual agreement regarding payroll withholdings entered into by the city.
(Code 1956, § 2-11.1)

Sec. 114-3. City compliance with Military Selective Service Act.

The chief administrative officer shall provide for appropriate procedures to encourage compli-

ance with the Military Selective Service Act and to provide information to persons seeking employment with the city, including the fact that failure to comply with the selective service law is a bar to employment with the federal government. The chief administrative officer is authorized to and shall coordinate such policies and procedures with the city civil service commission.
(Code 1956, § 1-20)

State law references—Unclassified positions; Selective Service System registration required, R.S. 42:33.

Sec. 114-4. Heat hazard protection.

A city employee's appointing authority shall ensure a rest break to protect the employee from the hazards of extreme heat, in accordance with the following standards:

(a) Every city employee shall receive one 10-minute rest break for every two hours spent working outdoors or in an un-airconditioned work location when the heat index measures 80 to 89 degrees Fahrenheit.

(b) Every city employee shall receive one 15-minute rest break for every two hours spent working outdoors or in an un-air-conditioned work location when the heat index measures 90 degrees Fahrenheit or more.

(c) The rest break required by this section shall be in an area protected from direct sunlight and shall be deemed to constitute part of the employee's paid duties.

(d) Deviations from this requirement may be allowed in circumstances involving an emergency or critical event where strict compliance with this requirement is not practicable or would compromise the city's ability to respond to the situation. In such circumstances, the appointing authority shall nevertheless take available steps to ensure that personnel are provided reasonable relief from extreme heat.

(M.C.S., Ord. No. 30448, § 2, 9-11-25)

Secs. 114-5—114-35. Reserved.

ARTICLE II. SELF-INSURANCE HEALTH CARE PROGRAMS*

Sec. 114-36. Nature of funds.

All monies appropriated by the city for payment of claims of self-insurance health care programs or employees contributions in connection therewith shall be maintained as reserve funds. The reserve funds shall not be used to defray expenditures for administration of self-insurance programs.
(Code 1956, § 2-70)

Sec. 114-37. Appropriations.

Prior to making any appropriation for self-insurance health care programs, the city shall cause an actuarial investigation to be made of the amount of city funds needed for each city self-insurance program for the fiscal year for which funds are to be appropriated, such investigation to estimate total claims for each self-insurance program; employee contributions, if applicable; net estimated city cost; and recommended reserves for unanticipated losses.
(Code 1956, § 2-71)

Sec. 114-38. Increase in benefits.

Contracts which increase or affect benefits or coverage of city employees under city self-insurance health care programs shall not be executed until all actuarial investigation of proposed changes is conducted and submitted to the council and an appropriation, if necessary to fund such additional obligations, made.
(Code 1956, § 2-72)

Sec. 114-39. Health care insurance for city employees.

The city shall in any self-insurance health care programs for city employees, provide for a conversion privilege for health care coverage without evidence of insurability following the termination or retirement from city employment of an employee covered under the city health

*__State law reference—__Local Governmental Subdivision Self Insurance Act of 1979, R.S. 33:1341 et seq.

care program, such conversion privilege to be an option of the former employee at the former employee's expense.
(Code 1956, § 2-73)

Secs. 114-40—114-55. Reserved.

ARTICLE III. RETIREMENT SYSTEM*

DIVISION 1. GENERAL

Sec. 114-56. System established.

The system was first established as of July 1, 1947, and was placed and remains under the management of the board of trustees for the purpose of providing retirement allowances and death and disability benefits for the benefit of eligible employees and their annuitants and beneficiaries.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

***Editor's note—**M.C.S., Ord. No. 26460, § 1, adopted June 18, 2015, repealed the former Art. III, §§ 114-56—114-58, 114-86—114-101, 114-131—114-137, 114-156—114-173, 114-201—114-231, 114-256—114-282. Section 2 of said ordinance enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Code 1956, §§ 55-1—55-85, 55-92, 55-93, as amended. See the Code Comparative Table for complete derivation.

State law references—Authority to establish a retirement system, R.S. 11:3841 et seq.; Firefighters' Pension and Relief Fund, R.S. 33:3361 et seq.; Police Pension Fund, R.S. 11:3631 et seq.; retirement and pension system for persons holding positions in the classified service, R.S. 33:2425.

Sec. 114-57. Definitions.

Capitalized words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning.

Accidental disability means that a member is disabled as the result of an accident occurring while providing services in the course of his employment with an employer and without his willful negligence.

Active member or *active membership* means a member who is making member contributions and for whom employer contributions are made; active membership and status as an active member shall cease upon the earlier of:

1. The member's death or disability;
2. The member's separation date; or
3. The member's retirement.

Active service means service while an active member.

Actuarial equivalent means a benefit of equivalent actuarial value, based upon (1) the 1971 Group Annuity Mortality Table (the male table being used for all members, and the female table for their beneficiaries, regardless of the actual sex of the member or beneficiary), and (2) a six percent interest rate.

Annuitant means the natural person designated by a member to receive the survivor's portion of such member's retirement allowance, if any. Once payment of an annuity has commenced hereunder, the designation of an annuitant shall be deemed irrevocable.

Armed forces means the United States Armed Forces, including service in the National Guard or Reserve Forces.

Base compensation means a member's uniform, regular rate of pay, determined without regard to overtime, bonus, per diem, payments in kind, premiums constituting imputed income, expenses, allowances, incentives or other awards. A member's base compensation shall be determined according to the member's applicable pay plan range and step in effect, from time to time, including special rates of pay, but excluding any state supplemental pay or millage distribution, except that for members who are fire and police personnel, state supplemental pay shall be included.

Beneficiary means the person or persons designated in writing by a member to whom a refund of his member account may be payable hereunder.

Board of trustees or *trustees* or *board* means the board of trustees of the system as constituted under section 114-68 hereof.

City means the City of New Orleans.

Contribution compensation means the compensation of each member with respect to which member and employer contributions are calculated. Such compensation shall be a member's base compensation, increased by any differential and supplemental pay.

Creditable service means service credited to or purchased by an active member as provided in division 4 hereof.

Disabled or *disability* means a physical or mental impairment which, in the opinion of a licensed physician selected by the trustees, may be expected to result in death or to be of a permanent and continuous duration, and which renders a member totally incapacitated for the further performance of the duties of his regular occupation, or class of similar occupations, provided that the impairment was not contracted or incurred as the direct or indirect result of:

1. Military service;
2. Engaging in a felonious criminal enterprise;
3. Habitual or chronic drunkenness or use of narcotics;
4. Intentional self-inflicted injury; or
5. Declared or undeclared war or enemy action.

The date of a member's disability shall be the earliest date as of which the trustees can determine that such condition has continuously existed.

DROP means the deferred retirement option plan described in division 6 hereof.

DROP account means a bookkeeping account established for a member who has made a DROP election.

DROP election means a member's election to participate in DROP, which shall be made in accordance with section 114-145 hereof.

DROP period means the period during which a member's DROP election remains in force and effect.

Eligible employee means an employee in full-time employment or eligible part-time employment, except:

1. An appointed officer or employee who is or may be included in or covered under any other system established by federal law;
2. An employee who is subject to ineligible part-time employment; or
3. A person, whether or not an employee, who holds a transient, temporary or emergency appointment.

In all cases of doubt, the trustees shall decide who is an eligible employee, and the decision of the trustees shall be final.

Eligible part-time employment means that an employee is regularly scheduled to work less than full-time employment, but (1) at least 20 hours each week, for a usual 40-hour work week, or (2) at least 17½ hours each week, for a usual 35-hour work week.

Employee means a common law employee of an employer.

Employer means the city, including any department, agency or board thereof, and any parochial or judicial office of the Parish of Orleans permitted to participate hereunder in accordance with R.S. 11:3841, which has applied to be an employer hereunder in accordance with section 114-94 and makes employer contributions as determined annually by the trustees, including, but not limited to, the French Market Corporation and the parish communication district.

Employer contribution means the amount determined annually by the trustees and paid to the trust by an employer hereunder.

Full-time employment means that an employee is regularly scheduled to work 35 hours each week or 40 hours each week, as the case may be.

Ineligible part-time employment means that an employee is regularly scheduled to work less than eligible part-time employment.

Member means an eligible employee who has or may accrue a benefit under the system.

Member account means the bookkeeping account for each member that is credited with his member contributions and accrued interest as provided in section 114-202 hereof.

Member annuity means a single life annuity providing substantially equal monthly payments during the life of a member, with no death benefit or member account refund made to any person, which shall be the normal form of benefit hereunder.

Member contribution means the amount determined under section 114-203 hereof, which shall be paid by each active member hereunder.

Ordinary disability means that a member is disabled before his separation date, other than on account of an accidental disability, within the meaning of section 114-172 hereof.

Pensionable compensation means a member's annualized base compensation earned during the consecutive 36-month period of active membership during which such base compensation is the greatest, as further provided in section 114-126 hereof.

1. Notwithstanding the foregoing, for the period beginning January 1, 2014, and ending December 31, 2014, pensionable compensation shall be determined with reference to the consecutive 48-month period of active membership during which base compensation is the greatest and thereafter with reference to the consecutive 60-month period during which such compensation is the greatest.

2. Notwithstanding the foregoing, the pensionable compensation of any member who satisfied the age and service requirements for normal retirement under section 114-125 hereof as December 31, 2011, shall be determined without regard to subsection 1 hereof.

Qualified military service means service in the armed forces that commences on or after December 12, 1994, and otherwise satisfies the requirements of Tax Code Section 414(u).

Retirement or *retire* or *retired* means that a member (1) has separated from service and that he has satisfied one of the conditions in section 114-125, or (2) has commenced his DROP period.

Retirement allowance means the amount payable to a member on account of his retirement, determined in accordance with the provisions of division 5 hereof.

Retirement date means the date designated by a member on which his retirement allowance is to commence, including payment to his DROP account, on or after his retirement.

Separation date means the date on which a member's separation from service occurs.

Separation from service or *separated from service* means that a member's employment with the employer has ceased for any reason.

System means this Employees' Retirement System of the City of New Orleans, as the same may be modified or amended from time to time, sometimes referred to as *"NOMERS"*.

Tax Code means the Internal Revenue Code of 1986, as the same may be amended, restated or replaced from time to time, including any rule, regulation or other guidance promulgated thereunder.

Trust means the aggregate of the contributions, assets, income and other profit or gain from which the benefits and refunds of the system are paid, the investment and administration of which shall be subject to the terms and conditions set forth in division 10 hereof.
(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17)

Secs. 114-58—114-66. Reserved.

DIVISION 2. ADMINISTRATION

Sec. 114-67. Authority of trustees.

A. The responsibility for the proper operation and general administration of the system and for making effective the provisions of this article and the provisions of R.S. 11:3841 shall be vested in the board of trustees. The trustees shall administer the system in accordance with the terms of this article and shall possess the discretionary power and authority necessary to carry out the provisions hereof. In addition to the power and authority set forth elsewhere in this article, such discretionary power and authority shall include, but not be limited to:

1. The power to interpret or resolve any conflict, ambiguity or omission contained in this article or in any form, procedure or other document ancillary to this article or the system.
2. The power to employ such personnel as may be necessary to properly administer the system.
3. The power to designate and employ one or more custodians, investment managers, advisors, actuaries or consultants as may be necessary to administer the system and invest the assets thereof.
4. Subject to the provisions of this article, the power to adopt rules, regulations, procedures and forms necessary for the administration of the system.
5. The power to adopt and maintain funding and investment policies.
6. The power to correct administrative error, including the underpayment or overpayment of benefits and allowances hereunder in such manner as they deem equitable and advisable.

B. The board of trustees shall take all necessary action to fully and effectively carry out the provisions of applicable law, including R.S. 11:3841, et seq. and R.S. 11:131 et seq. and the

provisions of R.S. 9:1721 et seq., generally applicable to trustees and not inconsistent with the provisions hereof.

C. Any discretionary act taken by the trustees hereunder shall be uniform in nature and applicable to all similarly situated members, annuitants and beneficiaries.

D. Any action by the trustees shall be conclusive and binding on all persons, except as may be expressly provided herein.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-68. Composition and terms.

A. The board of trustees shall consist of five members, as follows:

1. The director of the department of finance of the city, ex officio;
2. The director of personnel of the city, ex officio;
3. One person who is domiciled in and an elector of the city, to be elected by the employee members of the system, to serve a term of three years;
4. One person who is domiciled in and an elector of the city, to be elected by the retired members of the system, to serve a term of three years; and
5. One person who is domiciled in and an elector of the city appointed by the mayor, subject to confirmation by the council, to serve a term of three years.

B. The election of any member of the board shall be conducted by the director of personnel of the city. The election shall be held under such rules as shall be prescribed by the board, which shall provide for the use of mail-in ballots and for voting in such other manner as the trustees, from time to time, deem appropriate.

C. If a vacancy occurs in the office of an elected or appointed member of the board, such vacancy shall be filled for the unexpired term in the same manner as the office was previously filled.

D. The trustees shall serve without compensation, but they shall be reimbursed for all necessary expenses that they may incur on account of service as a member of the board.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-69. Proxy voting; secretary of board.

Each member of the board of trustees, including ex-officio members, shall be entitled to one vote. Three concurring votes shall be necessary for a decision by the trustees at any meeting thereof. The board of trustees shall appoint a secretary, who may, but need not be, a trustee. Proxy voting shall not be allowed.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-70. Legal advisor.

The city attorney shall be the legal advisor to the board of trustees; provided, however, the trustees shall have the right to appoint or retain special counsel, as well as any other legal personnel, that may be necessary or appropriate for the proper operation of the system with such approval as may be required under the Home Rule Charter of the city.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-71. Physician for medical examinations.

The board of trustees shall appoint one or more physicians and any other necessary medical personnel, who shall investigate all essential statements and certificates by or on behalf of members in connection with disability determinations hereunder. Any such physician shall report, in writing to the trustees, his conclusions and recommendations upon all matters referred to him and shall pass upon all medical examinations required under the provisions of this article.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-72. Bonding of trustees and employees.

The board and employees designated by the trustees shall be bonded in the amount or amounts determined by the trustees. The premium of any such bond shall be paid as an expense of the system.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-73. Use of agents, attorneys and experts; limitation of liability.

A. The trustees may execute any of the duties required of them by or through attorneys, agents, receivers or employees, and shall be entitled to

the advice of counsel and other experts concerning the execution of the duties imposed upon them hereunder.

B. The trustees shall be entitled to rely upon all tables, valuations, certificates, and reports furnished by an actuary, upon all certificates and reports made by any accountant, and upon all opinions and advice given by legal counsel.

C. The trustees shall not be answerable for the default or misconduct of any attorney, actuary, agent, or employee who is selected by the trustees with reasonable care or who is designated hereunder.

D. If a member of the board of trustees believes it to be reasonably necessary to consult with counsel concerning any of his duties hereunder, or if a trustee becomes involved in litigation on account of having received property subject to this article, then in either case, the trustee's reasonable costs, expenses and reasonable attorneys' fees shall be paid by the city.

E. The trustees may provide, as a system expense, adequate insurance protection for their acts carried out in good faith.

F. The board shall not further be answerable for the exercise of any discretion or power under this article or for anything whatsoever in connection with the duties created in this article, except only for gross negligence and/or bad faith.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-74. Actuarial data, valuation and investigation.

A. The board of trustees shall keep in convenient form such data as shall be necessary for actuarial valuation of various funds of the system and for checking the experience of the system.

B. From time to time, the board of trustees shall adopt for the system such mortality, service and other tables as shall be deemed necessary and certify the rates of contribution payable under the provisions of this article. On the basis of such tables, the actuary shall make annually an actuarial valuation of the assets and liabilities of the funds of the system.

C. At least once each five-year period, the board of trustees shall cause an actuarial investigation to be made into the mortality, service and compensation experience of the members, annuitants and beneficiaries of the system, and, on the basis of such investigation, shall recommend for adoption such tables and such rates as are required for the proper operation of the system.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-75. Applications and notices; claims procedure.

A. Any application for benefits, beneficiary designation or similar election or designation shall be made on forms acceptable to or prescribed by the board.

B. The board shall furnish written notice of the disposition of a claim within 60 days after it is acted upon at a regular meeting of the board of trustees. If a claim is denied, the reasons for such denial shall be set forth, in writing, including the provisions of this article upon which such denial is based. If appropriate, the trustees shall provide an explanation of how any disputed claim may be perfected.

C. An employee, member, or other person who has been denied a benefit shall be entitled, upon request to the trustees, to appeal the denial. Such appeal, together with a written statement of the claimant's position, shall be filed with the trustees no later than 90 days after receipt of the trustee's initial disposition of such claim. Unless impracticable or delayed at the request of the claimant, the claimant's hearing shall be at the next regular meeting of the board. Any decision following such hearing shall be made by the trustees within 60 days following such hearing and shall be communicated, in writing, to the claimant, unless a delay is reasonably required.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-76. Tax Code compliance.

The board shall possess the authority to promulgate rules and procedures and take such other actions as may be necessary to comply with the provisions of the Tax Code applicable to qual-

ified governmental retirement plans. The provisions of this system shall thereafter be deemed to include such rules and procedures.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-77. Annual report; plan year.

The board of trustees shall prepare and submit annually, on a calendar year basis, a report to the council showing the fiscal transactions of the system for the preceding year, the amounts of accumulated cash and securities in the various funds of the system and the last balance sheet showing the financial condition of the system.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-78. Exclusive benefit.

A. The trustees shall act solely and exclusively in the interests of members and their annuitants and beneficiaries; the assets comprising the trust, from time to time, shall be applied to payment of retirement allowances and other benefits hereunder and to discharge the reasonable and necessary expenses of the system.

B. Except as otherwise provided in this article, no trustee or employee of the board shall have any direct interest in the gains or profits of any investment made by the trust, nor shall any trustee, when acting as such, receive any pay or other compensation, direct or indirect, for his services. No trustee or employee of the board shall, directly or indirectly, for himself, or as an agent, in any manner use funds of the trust, except to make current and necessary payments authorized by the trustees.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-79. Amendment.

The city council shall possess the continuing power to amend this article, but no such amendment shall be adopted that reduces the then accrued benefit of any member, beneficiary or annuitant.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-80. Termination.

The city council shall possess the power to terminate the system, in whole or in part, or to permanently discontinue contributions hereto. In either event, the rights and benefits of affected members and their beneficiaries and annuitants accrued as of the date of such termination or discontinuance shall be nonforfeitable, the affected portion of the trust shall be allocated to fund such rights and benefits, and any excess remaining after such rights and benefits have been fully funded shall be returned to the applicable employer.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-81. Punishment for fraud, etc.

Whoever with the intent to deceive shall make any statement or report, give any notice required under this article that is untrue or falsify or permit to be falsified any record of the system in an attempt to defraud the system as a result of such act shall be guilty of a misdemeanor.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-82. No assignment; domestic relations orders.

A. The right of any person to an allowance or other benefit or accrual hereunder, including the return of member contributions, shall not be assigned or subject to execution, pledge, mortgage, garnishment or attachment; any attempt to assign, execute, pledge, mortgage, garnish or attach any such right, allowance, benefit accrual or return shall be void and of no effect.

B. If the interest of a member hereunder is community property subject to division in accordance with R.S. 9:2801B:

1. Any such division shall be evidenced by a court order reasonably acceptable to the trustees.

2. No benefit shall be payable pursuant to such order until the member's retirement date.

3. The trustees shall adopt procedures for the division and payment of benefits to the member's spouse pursuant to any such order.

4. The system and the trustees shall have no liability for any payment made prior to the receipt and acceptance of any such order.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-83. Manner of payment.

Any amount payable hereunder, whether on account of retirement, disability or otherwise, shall be paid by means of electronic funds transfer from the system to an account designated by a member, annuitant, beneficiary or other person for such purpose, unless such member, annuitant, beneficiary or person establishes to the satisfaction of the trustees that such method of payment would result in substantial hardship or unintended expense.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-84—114-92. Reserved.

DIVISION 3. MEMBERSHIP IN SYSTEM

Sec. 114-93. Members.

Membership of the system shall be determined as follows:

A. *Eligible employees.* Subject to the limitations set forth herein, any person who is or becomes an eligible employee shall be a member of the system as a condition of his employment.

B. *Appointed or elected officials.* Membership in the system shall be optional for officials who are appointed or elected for a fixed term. Such officials may become members with respect to such term by making written application for membership within 90 days after taking office. Any such election shall be effective with respect to a single term and shall be separately made (or a prior election affirmatively continued) with respect to each fixed term.

C. *Change in status.* If an active member ceases to be an eligible employee for any reason, he shall cease to be an active member hereunder; if he again becomes an eligible employee, his active membership shall then resume.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-94. Membership of parochial and judicial employees.

Employees and officials of a judicial or parochial office of the Parish of Orleans who are otherwise eligible within the meaning of section 114-57 may apply for membership in the system, provided:

A. The trustees have approved such judicial or parochial office as an employer hereunder, and such office has agreed to contribute its respective employer contributions.

B. No such official or employee is required to be covered by another pension or system established under the laws of this state.

C. As a condition of such application, each official or employee shall consent to the deduction of member contributions from his contribution compensation.

The trustees shall adopt such additional procedures for membership as they deem necessary or appropriate.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-95—114-103. Reserved.

DIVISION 4. CREDITABLE SERVICE

Sec. 114-104. Procedures for determination of service.

A. The trustees shall determine and verify a member's member contributions and creditable service by examination of his personnel and payroll records or by examination of records maintained by his employer. The trustees may require a member to provide proof of employment, service in the armed forces, base compensation and such other matters as the trustees deem relevant with respect to any credit to be made or purchased hereunder. The decision of the trustees as to such matters shall be final and binding.

B. The board of trustees may adopt rules and procedures for the crediting and purchase of service hereunder, not inconsistent with the provisions of this division.

C. The trustees shall adopt equivalences to be applied with respect to the purchase of service not inconsistent with the provisions of this division, but in no case shall more than one year of service be credited for all service rendered within a single calendar year; there shall be no duplication of creditable service for any period of service, including military service.

D. In no event shall the trustees allow the purchase of creditable service hereunder for any period of more than one year during which an employee is absent continuously without pay, except for leave to perform service in the armed forces.

E. If a member who has separated from service and received a refund of his member account is later reemployed, he shall be permitted to purchase creditable service for such prior period of employment, provided he is then an active member.

F. Periods of creditable service for eligible part-time employment shall be prorated.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-105. Determination of creditable service.

Creditable service shall equal the sum of:

A. Service while an active member during which member contributions have been made, but excluding any such service with respect to which a refund of such contributions has occurred.

B. An additional period, credited at the election of each active member, at the rate of one month for each 21 days of accumulated sick leave or annual leave.

C. Other service purchased or credited in accordance with the provisions of this division.

D. Service rendered prior to the establishment of the system, as verified by the trustees and purchased by or credited to a member.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-106. Service in the armed forces while an employee.

If an active member enters into service with the armed forces and returns to covered employment not later than six months after his discharge from service in the armed forces, or such service constitutes qualified military service, he shall receive membership service for such period, provided that he was honorably discharged and pays member contributions and interest due with respect to such period.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-107. Service in armed forces before employment.

A. An active member shall be entitled to purchase creditable service for active duty service in the armed forces before employment by his employer hereunder, excluding the National Guard or reserve service, provided that he was honorably discharged.

B. An active member shall be entitled to purchase additional creditable service for service in the National Guard or Reserve Forces of the United States before employment by his employer hereunder, provided that:

1. He was honorably discharged.

2. Creditable service for full-time active duty service is longer than five consecutive days and shall be based on one day of creditable service for one day of such service.

3. Creditable service for duty which is not full-time active duty shall be determined as one day of service for each drill point, provided that a member's military employer provides written certification of the number of drill points earned and the time during which such points were earned.

4. The term "active duty" shall mean full-time active military service under written military orders, which totals five or more consecutive days of service.

5. One year of creditable service shall be credited for each 252 drill points, which may be nonconsecutive.

C. A maximum of four years of creditable service shall be purchasable hereunder.

D. An active member shall be credited with at least five years of creditable service before any purchase hereunder.

E. A member who purchases creditable service hereunder shall not receive a benefit from any other retirement system of the State of Louisiana or its political subdivisions for such service.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-108. Credit for eligible part-time employment.

An active member who is credited with at least five years of creditable service shall be entitled to purchase not more than four years of creditable service for eligible part-time employment with respect to services he rendered before 1989, subject to the following:

A. Such employment shall be continuous and shall immediately precede or follow not less than one year of other creditable service.

B. Additional service shall not be purchased for any period of contemporaneous full-time and eligible or ineligible part-time employment.

C. The number of months of creditable service purchased hereunder shall be calculated as the product of (1) the quotient obtained by dividing the number of hours worked each month during the period of eligible or ineligible part-time employment by the number of hours worked each month during a period of corresponding full-time employment, multiplied by (2) the number of months of eligible or ineligible part-time employment subject to purchase hereunder.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-109. Credit for transient or emergency service.

An active member who is credited with not less than five years of creditable service may purchase a maximum of 90 days of creditable service for service rendered to the city in a transient or emergency appointment, provided that:

A. Such service shall otherwise constitute full-time employment.

B. Such service shall be consecutive with and immediately precede other creditable service hereunder.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-110. Credit for dual employment.

An active member who, under the provisions of R.S. 11:3843, now repealed, was previously denied membership in the system, may purchase creditable service for any period he would otherwise be an eligible employee hereunder. Such purchase shall be made in accordance with the terms and conditions prescribed by the trustees in accordance with section 114-113 hereof.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-111. Credit for elected officials.

An appointed or elected official with respect to a fixed term who first elects not to become an active member hereunder and thereafter, with respect to a subsequent fixed term, elects active membership hereunder, shall not be entitled to receive credit for service rendered before such election of active membership, unless:

A. He shall then have completed three years of active membership in the system; and

B. He shall have paid to the system the equivalent of his accumulated employee and employer contributions, with interest thereon.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-112. Administrative error.

A. If an eligible employee determines that he is not an active member, he shall immediately notify the personnel officer of his employer.

B. If an eligible employee is not an active member on account of administrative error by his employer:

1. He may purchase creditable service otherwise permitted hereunder, provided that the personnel officer of his employer shall certify to the trustees his dates of employment, his base and contribution compensation, whether such employment is full-time employment or eligible part-time employment, whether such employment is performed in a permanent, provisional, transient or emergency status, and the reason such employee was not timely enrolled in the system.

2. His employer shall pay to the system an amount equal to employer contributions due with respect to any period of creditable service purchased hereunder, including interest.

C. If an eligible employee believes that he is not enrolled in the system on account of his employer's bad faith, willful misconduct or gross negligence, such employee shall provide notice to the trustees, and he shall be entitled to purchase creditable service otherwise permitted hereunder. The trustees shall determine whether interest due with respect to such contributions shall be paid by the employee, the employer or a combination thereof, based upon the relative fault of the employer and employee. In making such determination, the trustees shall consider:

1. The education or sophistication of the employee;

2. The length of time during which the employee was not an active member;

3. Whether the employee knew, or should have known, that he was not an active member;

4. Whether the employee inquired as to why he was not an active member or making member contributions, including a request to join the system; and

5. Such other factors as the trustee may deem relevant.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-113. Procedures for purchase of creditable service.

A. Creditable service shall be purchased by payment of a single-sum, or over such longer period as the trustees deem appropriate, from time to time; provided that a member shall be permitted to purchase creditable service for any period of qualified military service periodically, over a period of not less than five years.

B. As a condition of the purchase of creditable service hereunder and except as provided in section 114-112 hereof, a member shall be required to pay to the system actuarial interest accrued on any member contributions required hereunder, at the rate determined by the trustees, except that interest with respect to the purchase of service in the armed forces shall not exceed four percent.

C. Contribution compensation for purposes of the purchase of creditable service hereunder shall be the rate of such compensation in effect at the time or immediately preceding the date or dates on which such service was rendered, or, with respect to military service before employment by an employer hereunder, the rate of such compensation in effect at the time such employment commenced.

D. The board may, but shall not be required, to accept a rollover from a member in consideration of the purchase of creditable service hereunder, provided that such rollover satisfies all of the following conditions:

1. The proceeds of such rollover shall be attributable to a period of participation in the system, another qualified governmental plan within the meaning of Tax Code Section 401(a), an eligible governmental plan within the meaning of Tax Code

Section 457(b) or a tax deferred annuity within the meaning of Tax Code Section 403(b).

2. The amount of any rollover shall not exceed the amount necessary to purchase creditable service hereunder.

3. No portion of the proceeds of the rollover shall consist of after-tax contributions.

4. Any rollover shall be made in the form of a direct transfer from a trustee or custodian of a plan, account or annuity to the system.

5. As a condition of a rollover hereunder, the board may request such documents as it deems necessary; the board may adopt such additional procedures or require such additional certifications as it deems necessary or appropriate.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-114. Transfers of credits and funds.

A. The transfer of credits and funds between the system and the retirement system maintained by the sewerage and water board shall be allowed in accordance with the following reciprocal agreement:

1. A member of either system, not yet retired, who is transferring from employment covered by one system to employment covered by the other system, may transfer his service credits and be given credit in the system to which he transfers for all his creditable service in the previous system, provided he meets the eligibility requirements specified in R.S. 33:4076.1 and R.S. 11:141—11:143, where the latter statute does not conflict with R.S. 11:3822, and provided all of the reserves necessary to fund his prior service and membership credit plus all allowable interest on these reserves are transferred from the sending system to the system to which he is being transferred.

2. The amount to be transferred hereunder shall be calculated as of the date of the transfer based upon the GASB No. 5 value of the member's accumulated benefits, using seven percent annual interest, a five percent annual salary scale, and the remaining actuarial assumptions in use by the sending system for purposes of determining GASB No. 5 liability at the time of transfer. Such amount shall not include a reserve for future cost-of-living benefits. The salary history and benefit structure of the member under the sending system shall be used in this calculation.

3. If a member withdrew his contributions from either system and wishes to receive credit for all past service in either system, he shall repay all contributions withdrawn, plus allowable interest thereon, to the system from which he transferred, after which such past service credits shall be transferred to his current system in accordance with the rules of the system from which he withdrew; thereafter, such service credit and funds shall be transferred in accordance with the provisions of subsections (1) and (2) of this section.

4. No membership service credits, that is service as an employee rendered after the date of the establishment of the system from which the employee is transferring, shall be allowed under this agreement for those periods where there are no employee contributions, unless the transferring employee pays for such uncontributed periods the amount that would have been contributed for such periods plus all allowable interest thereon, after which such service credit and funds can be transferred in accordance with the provisions of subsections (1) and (2) hereof.

5. This agreement shall be effective as of October 17, 1988. This agreement can be modified or amended only with consent of both pension boards together with ratification by the city council (for the city) and sewerage and water board (for the sewerage and water board). Any modification or amendment of this agreement shall not affect in any way the rights of any employee who has previously effected a trans-

fer under this agreement or who has initiated an application for transfer under the provisions of this agreement.

6. If the board or the pension committee of the retirement system of the sewerage and water board (hereinafter "pension committee") seeks to terminate this agreement, the party seeking termination shall follow the following provisions:

   i. If the board wishes to terminate, it shall:

      a. Provide the pension committee 30 days written notice before it meets to consider such action;

      b. After proper notice has been given, the trustees shall meet to discuss and vote on resolution to terminate;

      c. If such vote is affirmative, the trustees shall provide the pension committee written notice of not less than 30 days that it intends to seek approval from the city council to terminate the agreement; and

      d. If the city council grants the trustees the authority to terminate this agreement, such termination shall not become effective until after the trustees provide the pension committee with 90 days written notice of termination.

   ii. If the pension committee wishes to terminate, it shall:

      a. Provide the trustees 30 days written notice before it meets to consider such action;

      b. After proper notice has been given, the pension committee shall meet to discuss and vote on resolution to terminate;

      c. If such vote is affirmative, the pension committee shall provide the trustees a written notice of not less than 30 days, that it intends to seek approval from the sewerage and water board trustees to terminate the agreement; and

      d. If the sewerage and water board grants the pension committee the authority to terminate this agreement, such termination shall not become effective until after the pension committee provides the trustees with a 90-day written notice of termination.

   Termination shall not affect in any way the rights of any employee who has previously effected a transfer under this agreement or who has initiated an application for transfer under this agreement. Transfers of credits and funds to the system from the sewerage and water board retirement system shall not be permitted unless a reciprocity agreement is in effect.

B. Transfers of credits and funds between the system and state, municipal or parochial retirement systems in the state, other than the sewerage and water board retirement system, shall be permitted in accordance with applicable state law, including R.S. 11:141 et seq.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-115—114-123. Reserved.

DIVISION 5. RETIREMENT BENEFITS

Sec. 114-124. Application for retirement.

A. A member shall apply to the trustees for his retirement allowance. Such application shall be made not more than 90 and not less than 30 days before his retirement date and shall designate his retirement date, the form in which his retirement allowance shall be paid, his annuitant, if applicable, and such other elections and information as the trustees deem necessary or advisable. Except as may be provided herein, the terms of such application shall be irrevocable as of the date on which a member first receives a distribution of his retirement allowance hereunder.

B. The trustees shall process such application as soon as practicable following its receipt and acceptance. If the initial payment of a member's retirement allowance is made after his retirement date, such initial payment shall include any amount in arrears, without liability for interest thereon.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-125. Eligibility for normal retirement.

For members hired on or before January 1, 2018, a member shall be eligible for *"normal retirement"* if:

(1) He is credited with at least 30 years of creditable service;

(2) He has attained age 60 and is credited with not less than ten years of creditable service;

(3) He has attained age 65 and is credited with not less than five years of creditable service; or

(4) He is credited with not less than 80 points, determined as the sum of his attained age and years of creditable service as of his separation date; for this purpose, a member shall be required to apply all of his accumulated sick leave to the purchase of creditable service hereunder.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17; M.C.S., Ord. No. 28530, § 1, 10-15-20)

Sec. 114-126. Determination of pensionable compensation.

A member's pensionable compensation shall be determined in accordance with the following:

A. If a member separates from service and is later reemployed, his periods of service before and after reemployment may be aggregated for purposes of determining his pensionable compensation.

B. In no event shall a member's pensionable compensation for any calendar year exceed the limit then permitted under Tax Code Section 401(a)(17), as the same may be adjusted from time to time. Any change in such limit occurring during a calendar year shall be deemed effective as of the first day of such year. If pensionable compensation is determined with reference to a period of less than 12 months, the limit hereunder shall be prorated by multiplying the dollar limit then in effect by a fraction, the numerator of which is the number of months in such period and the denominator of which is 12.

C. In no event shall the annualized pensionable compensation of any member taken into account hereunder be less than such member's compensation permitted to be taken into account under this section, or its equivalent, as of July 1, 1993, provided he was a member of the system as of such date.

D. A member's consecutive months of pensionable compensation shall include the furlough period beginning August 1, 2010, and ending December 31, 2010, provided that member contributions and employer contributions are made with respect to such period. Base compensation attributable to such period shall be a member's regular rate of base compensation then in effect but determined without adjustment for such furlough.

E. For members who commenced employment after January 1, 2018, in no event shall a member's pensionable compensation for any calendar year exceed $100,000.00, adjusted for inflation as determined by the trustees from time to time.

F. For members who commenced employment after January 1, 2018 and are employed on and after January 1, 2021, notwithstanding any provision herein to the contrary, in no event shall such member's pensionable compensation for any calendar year exceed $150,000.00, as the trustees may adjust for inflation from time to time.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17; M.C.S., Ord. No. 28530, § 2, 10-15-20; M.C.S., Ord. No. 29248, § 1, 11-3-22)

Sec. 114-127. Amount of retirement allowance.

A. For each active member who commenced employment before January 1, 2018, the amount of such member's retirement allowance, expressed in the form of a member annuity, shall equal the sum of: (A) 2.5% of such member's pensionable compensation multiplied by such member's creditable service not in excess of 25 years, and (B) 4% of such member's pensionable compensation multiplied by such member's creditable service in excess of 25 years. For this purpose, creditable service with respect to which a member has received a refund shall be disregarded, unless such member has repaid an equivalent amount as determined by the trustees.

B. For each active member who commenced employment after January 1, 2018, the amount of such member's retirement allowance, expressed in the form of a member annuity, shall equal 1.9% of such member's pensionable compensation multiplied by such member's creditable service.

C. For members who commenced employment after January 1, 2018 and are employed on and after January 1, 2021, notwithstanding any provision herein to the contrary, the amount of such member's retirement allowance, expressed in the form of a member annuity, shall equal 2.5% of such member's pensionable compensation multiplied by such member's creditable service. For this purpose, creditable service for which a member has received a refund shall be disregarded, unless such member has repaid an equivalent amount as determined by the trustees.
(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17; M.C.S., Ord. No. 28530, § 3, 10-15-20)

Sec. 114-128. Reduction for early payment.

If a member's retirement allowance commences before he attains age 62, such allowance shall be reduced by three percent for each year by which his retirement date precedes his attainment of such age, provided that no reduction shall be required:

A. If the member has at least 30 years of creditable service as of his retirement date; or

B. If the member's age and creditable service total at least 80 points as of his separation date. This provision is not applicable for any member who commences employment after January 1, 2018.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17)

Sec. 114-129. Late retirement.

A member shall be entitled to designate a late retirement date, which may be later than the date or dates determined in accordance with section 114-125 hereof, but shall not be later than April 1st of the calendar year following the later of (A) the year in which the member attains age 70½, or (B) the member's separation date.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-130. Form of retirement allowance.

A. A member shall designate the form in which his retirement allowance shall be paid from among the following optional forms of payment, each of which shall be the actuarial equivalent of the other, as follows:

1. *"Option One,"* which shall be an annuity that provides equal monthly payments for the life of a member; provided that if the member shall die before the actuarial value of his member account has been paid, the remainder shall be paid to his beneficiary in the form of a single-sum.

2. *"Option Two,"* which shall be an annuity providing equal monthly payments for the life of the member and the same amount for the life of his annuitant; provided that (i) if the member's annuitant predeceases the member, an annuity determined in accordance with subsection 1 hereof shall thereafter be paid to such surviving member and, if the member dies before the actuarial value of his member account has been distributed, any remainder shall be distributed to the member's beneficiary, (ii) if the member predeceases his annuitant and the annuitant dies before the actuarial value of the member account has been

distributed, any remainder shall be distributed to the annuitant's beneficiary, and (iii) if the member's annuitant is not his surviving spouse, any survivor benefit payable hereunder shall not exceed the maximum percentage permitted under Tax Code Section 401(a)(9).

3. *"Option Three,"* which shall be an annuity providing equal monthly payments for the life of the member and one-half of such amount for the life of his annuitant; provided that (i) if the member's annuitant predeceases the member, an annuity determined in accordance with subsection 1 hereof shall thereafter be paid to such surviving member; and, if the member dies before the actuarial value of his member account has been distributed, any remainder shall be distributed to the member's beneficiary, (ii) if the member predeceases his annuitant and the annuitant dies before the actuarial value of the member account has been distributed, any remainder shall be distributed to the annuitant's beneficiary, and (iii) if the member's annuitant is not his surviving spouse, the survivor benefit payable hereunder shall not exceed the maximum percentage permitted under Tax Code Section 401(a)(9).

4. *"Option Four,"* which shall refer to such other form of payment as the trustees may, from time to time, designate, subject to such limitations, terms and conditions as the trustees deem necessary and appropriate.

B. If the trustees determine that monthly payment of an annuity is or becomes impracticable on account of its amount, the trustees may direct that such monthly payments be aggregated and paid on an annual, semi-annual or quarterly basis.

C. Any amount payable in the form of a single-sum to a beneficiary hereunder shall be paid not later than the last day of the calendar year that contains the fifth anniversary of the date of the member's death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-131. Minimum retirement allowance.

Notwithstanding any provision of this article to the contrary, in no case shall the value of the member annuity for a member who is credited with at least ten years of creditable service for full-time employment be less than $300.00 each month.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-132. Maximum retirement allowance.

In no case shall the amount of a member annuity hereunder, determined as of a member's retirement date, exceed his annualized pensionable compensation as of such date, except that the foregoing limitation shall not apply:

A. To any member whose accrued benefits hereunder were in excess of such amount as of May 7, 1978.

B. To any distribution made from a member's DROP account.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-133. Reemployment; suspension of retirement allowance.

If a member retires and receives a retirement allowance hereunder, the payment of such allowance shall be suspended if the member is reemployed by the employer. In such event, payment of his retirement allowance shall again commence after the member again separates from service; such member's periods of creditable service and pensionable compensation shall be recalculated taking into account service and compensation before and after his reemployment.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-134. Tax Code limitation.

The value of a member's annualized retirement allowance, when expressed in the form of an annual benefit as defined herein, shall not exceed the maximum permissible amount. If the value of a member's annual benefit would exceed such amount, the value of such benefit shall be reduced to the maximum permissible amount.

For this purpose, a member's *"maximum permissible amount"* shall be the dollar limit set forth in Tax Code Section 415(b)(1)(A), as the same may be indexed from time to time under Tax Code Section 415(d), and subject to adjustment as provided herein.

A. A member's *"annual benefit"* shall be the actuarial equivalent of a member's retirement allowance, determined as a single life annuity payable under a plan to which members do not contribute and to which rollover contributions are not made. Such equivalent shall be determined using (1) an interest rate equal to the greater of 5.5%, the rate otherwise specified herein or the rate that provides a benefit of not more than 105% of the benefit derived from the interest rate specified in Tax Code Section 417(e)(3), and (2) the mortality table specified in Tax Code Section 417(e). The value of such annual benefit shall further be determined as follows:

1. The value of such benefit shall not include any after-tax member contributions, which contributions, if any, shall be separately subject to the limitations imposed under Tax Code Section 415(c).

2. The value of such benefit shall include the value of any amount paid by a member to purchase creditable service hereunder, except that:

   i. Amounts paid for service with the armed forces as contemplated under Tax Code Section 414(n) shall not be included;

   ii. Any amount transferred from another qualified governmental plan or governmental Tax Code Section 457(b) plan shall not be included; and

   iii. Reserved.

3. The value of such benefit shall not include any amount attributable to the transfer of service credit hereunder.

B. If a member retires before he attains age 62, such member's maximum permissible amount shall be reduced to equal an annual benefit commencing as of such member's retirement date that is the actuarial equivalent of such amount payable at age 62, determined using (1) an interest rate equal to the greater of five percent or the rate otherwise specified herein, and (2) the mortality table determined in accordance with Tax Code Section 417(e). Notwithstanding the foregoing, such adjustment shall not apply to any benefit payable on account of the death or disability of a member.

C. If a member retires after he attains age 65, such member's maximum permissible Amount shall be actuarially adjusted to reflect such delayed retirement using (1) an interest rate equal to the lesser of five percent or the rate otherwise specified herein, and (2) the mortality table required under Tax Code Section 417(e).

D. If a member is credited with less than ten years of participation in the system, the Maximum Permissible Amount determined hereunder shall be reduced by 1/10 for each year of such participation less than ten.

E. Notwithstanding the foregoing, in no event shall the retirement allowance of a member be reduced as provided herein if he is a qualified member. For this purpose, a *"qualified member"* is a member who commenced participation hereunder prior to January 1, 1990.

F. The limitations set forth herein shall not apply to any member if (1) his or her retirement benefit hereunder, including any retirement benefit paid from any other tax-qualified retirement plan maintained by the city or another participating employer hereunder, does not exceed $10,000.00 each year, and (2) no such employer has at any time maintained a defined contribution plan in which such member participated.

G. If the maximum permissible amount increases after a member separates from service, the amount of any limitation imposed hereunder shall thereafter take into account such increase.

H. If a member retires before January 1, 2007, then notwithstanding any provision herein to the contrary:

1. The value of such member's annual benefit shall not include any amount attributable to the transfer of service or benefits hereunder.

2. Member contributions made in the form of after-tax contributions shall be subject to the limitations on contributions applicable to defined contribution plans imposed under Code Section 415.

3. If such member's retirement allowance includes a rollover hereto, the value of such rollover shall be included in the determination of such member's annual benefit by applying reasonable actuarial assumptions.

4. If such member retires after the attainment of age 65, the maximum permissible amount shall be determined without regard to subsection C hereof.

5. If such member retires before attainment of age 62, the adjustment set forth in subsection B hereof shall not apply.

6. If a member's retirement allowance is payable in a form other than a single life annuity, such allowance shall be expressed as the actuarial equivalent of a single life annuity.

I. The terms of this section are to be interpreted and construed in accordance with the provisions of Tax Code Section 415(b) and the regulations promulgated thereunder, the terms of which are incorporated herein by this reference.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17)

Sec. 114-135. Additional payments.

A. The board may be authorized to retain trust earnings or gains in excess of an average three and one-half percent, which amount may be applied to provide one or more cost-of-living increases or bonuses for members who have retired, in an annual amount not to exceed three percent of each such member's initial retirement allowance multiplied by each year of such member's retirement, provided that the system's actuarial funded ratio is at least 65 percent. Such benefit, if any, may be awarded and paid when funds are available from this source as provided herein, and in the manner and at the time or times determined in the discretion of the trustees.

B. Notwithstanding subsection A, the board may be authorized to provide a cost-of-living increase or bonus to help adjust for actual changes in members' cost of living if the city appropriates sufficient funds to fully prefund the increase or bonus described in this subsection in the year the benefit is provided.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17; M.C.S., Ord. No. 29248, § 1, 11-3-22)

Sec. 114-136. Direct rollovers.

A member, his spouse or, effective as of January 1, 2008, his annuitant or other beneficiary, may direct the trustees to roll over any eligible distribution hereunder, subject to the following:

A. Rollover shall be made to the plan, account or annuity designated by the member or other distributee. In the case of a member, such plan, account or annuity may be an individual retirement account described in Tax Code Section 408(a), an individual retirement annuity described in Tax Code Section 408(b), an annuity plan described in Tax Code Section 403(a), a qualified trust described in Tax Code Section 401(a), or an eligible governmental plan described in Tax Code Section 457(b). In the case of a rollover made for the benefit of a beneficiary or annuitant or a member's

spouse, an eligible retirement plan shall be an individual retirement account or individual retirement annuity.

B. No amount shall be eligible for rollover hereunder if it is one of a series of substantially equal periodic payments made not less frequently than annually for the life or life expectancy of the distributee or the joint lives or joint life expectancies of a member and his annuitant or beneficiary, or for a specified period of ten years or more or a required minimum distribution under Tax Code Section 401(a)(9).

C. A direct rollover hereunder shall not be required with respect to amounts of less than $200.00.

D. The trustees shall furnish to each member, annuitant or beneficiary eligible to direct a rollover hereunder a notice containing the information described in Tax Code Section 402(f), which notice shall be furnished within a reasonable time prior to a distribution eligible for rollover hereunder.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-137. Early or voluntary retirement.

A. A member shall be eligible for early or voluntary retirement as provided herein if all of the following conditions are satisfied:

1. Such member's retirement date is no earlier than October 19, 2020 and no later than December 31, 2020.

2. Such member separates from service no later than the designated retirement date and such member does not return to eligible full-time employment.

3. Such member irrevocably waives participation in DROP.

4. Such member purchases creditable service by the conversion of all accumulated sick leave.

5. Such member agrees to the waiver of certain claims in the form and at the time prescribed by the trustees.

B. A member who elects early retirement shall further satisfy the following:

1. Such member shall be credited with at least 15 years of creditable service as the member's designated retirement date, including creditable service purchased by the conversion of annual or sick leave; and

2. Such member shall have accumulated at least 70 points as of the designated retirement date, determined as the sum of the member's attained age and creditable service as of such date.

C. A member who elects voluntary retirement shall further be eligible for normal retirement (as defined in section 114-125) as of the member's designated retirement date.

D. The retirement allowance of a member who satisfies the conditions set forth herein and timely elects early retirement shall not be subject to reduction for early payment under section 114-128, regardless of the age of such member.

E. A member who satisfies the conditions set forth herein and timely elects voluntary retirement shall receive:

1. A 1% increase in the base amount of the annual retirement allowance payable as of such member's retirement date, to be prorated and paid monthly, such increase (a) to be made annually commencing as of January 1, 2022 and (b) to be made during the life of the member and any annuitant.

2. A payment in the amount of $50.00 for each full year of employment, but not less than $1,000.00, which amount shall be paid (a) annually during the ten-year period commencing as of January 1, 2022 and (b) to such member's beneficiary, beneficiaries or annuitant if such member dies prior to the payment of all such amounts.

F. A member who satisfies the conditions for voluntary retirement hereunder but has not yet attained age 62 may elect either early or voluntary retirement; there shall be no duplication of benefits hereunder.
(M.C.S., Ord. No. 28530, § 4, 10-15-20)

Secs. 114-138—114-144. Reserved.

DIVISION 6. DROP RETIREMENT

Sec. 114-145. DROP election.

A. Members who commenced employment after January 1, 2018 and members with less than ten years of active service as of January 1, 2018 may elect to participate in DROP in accordance with subsection B herein, but the DROP period for each such member shall not exceed three years measured from the date on which his DROP period commenced.

B. Subject to the limitation in subsection A herein, a member who is otherwise eligible for normal retirement in accordance with section 114-125 hereof may elect to participate in DROP. Any such election shall be made on forms prescribed by the trustees and shall be subject to the following terms and conditions:

1. Such member shall designate the date on which his DROP period will commence, which shall not be earlier than 30 days after the date on which his DROP election is received and accepted by the trustees.

2. Such member shall designate his DROP period, which shall not exceed five years, or three years for those employees in the groups designated in subsection A herein, measured from the date on which his DROP period commenced and which period shall terminate earlier in the event a member separates from service before the end of the designated period.

3. Such member shall designate the form in which his retirement allowance shall be paid in accordance with section 114-131 hereof.

4. Unless otherwise permitted by the trustees, any such member may elect to participate in DROP only once; a member may revoke his DROP election or reduce the duration of his DROP period at any time prior to the date on which he receives a distribution of all or a portion of the amount credited to his DROP account, at which time such member's election shall be deemed irrevocable.

(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 27607, § 1, 12-1-17)

Sec. 114-146. DROP retirement.

Upon the effective date of a member's DROP election:

A. He shall cease to be an active member of the system.

B. The amount of his retirement allowance shall be determined, based upon such member's pensionable compensation and creditable service as of his retirement date, but excluding any service reciprocally recognized under R.S. 11:142.

C. During such member's DROP period, his DROP account shall be credited with the amount of his monthly retirement allowance determined in accordance with subsection B hereof and interest at the rate determined in accordance with section 114-147 hereof.

D. At the end of such member's DROP period, the balance then credited to his DROP account shall be distributed in accordance with section 114-148 hereof.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-147. DROP interest.

A member's DROP account shall be credited with interest at the rate determined annually by the trustees. Such interest shall be credited annually as of the last day of each calendar year. Interest shall be credited hereunder for the period commencing as of the date on which a member's DROP account is established and ending

as of the earlier of (A) the end of such member's DROP period, or (B) such member's separation date.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-148. Distributions from DROP account.

A. When a member separates from service, whether during his DROP period, at the conclusion thereof or thereafter, the balance then credited to his DROP account shall be distributed to him in the form of a (1) single-sum payment, (2) substantially equal installment payments over a period designated by such member, not in excess of 119 monthly payments, or (3) in such other manner as then may be permitted by the trustees. His monthly retirement allowance shall thereafter be paid to him.

B. If a member becomes disabled during his DROP period and he separates from service on account of such disability, he shall receive the balance then credited to his DROP account in the form of a single-sum payment or in such other manner as then may be permitted by the trustees. His retirement allowance shall thereafter be paid to him.

C. If a member dies during his DROP period, his beneficiary shall receive the amount then credited to his DROP account in the form of a single-sum payment, and the member's annuitant, if any, shall receive any survivor benefit payable in accordance with the terms of the member's retirement allowance in effect during the DROP period.

D. If a member dies during an installment payment period, the remaining payments shall be made to his beneficiary, at the time or times such amounts would have been paid to the deceased member, and the member's annuitant, if any, shall receive any survivor benefit payable in accordance with the terms of the member's retirement allowance in effect during the DROP period.

E. Any single-sum payment hereunder shall be made as soon as practicable following a member's retirement or disability; in the event of a member's death, in no event shall such payment be made later than the last day of the calendar year that includes the fifth anniversary of the member's date of death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-149. Continuation of employment.

If a member continues his employment after the end of his DROP period, payment of his monthly retirement allowance shall be suspended and credits to his DROP account shall cease. He may again become an active member, provided he is then an eligible employee and his employer agrees to pay to the system the actuarial cost of such resumption of membership. Any amount accrued after the end of the member's DROP period shall be paid as a supplement to his original retirement allowance, which shall not be recomputed. Such member's retirement allowance shall again commence as of his separation date, without liability for any payments suspended hereunder.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-150. Fees and expenses.

A member's DROP account shall not be subject to any fees or charges.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-151—114-159. Reserved.

DIVISION 7. SEPARATION BENEFITS

Sec. 114-160. Separation from service before retirement; refunds.

A. A member who separates from service before January 1, 2002, and is then credited with not less than ten years of creditable service shall be entitled to (1) retain his member account in the system and receive a retirement allowance commencing not earlier than his age 60 determined in accordance with division 5 hereof, or (2) receive a single-sum distribution of his member account.

B. A member who separates from service on or after January 1, 2002, and is then credited with not less than five years of creditable service shall be entitled to (1) retain his member account in the system and receive a retirement allowance in accordance with division 5 hereof, or (2) receive a single-sum distribution of his member account. For this purpose, the interest of such member in his retirement allowance shall be deemed vested and non-forfeitable upon (1) an earlier date that may be determined hereunder, or (2) when he is credited with at least five years of creditable service and has attained age 65.

C. A member who separates from service and is not then credited with five years of creditable service shall receive a distribution of his member account in the form of a single-sum payment. If such member has not directed the distribution of his member account during the five-year period following his separation, the trustees shall distribute such amount in the form of a single-sum payment in lieu of any benefit or allowance otherwise payable hereunder. In such event, if the member fails to provide distribution instructions to the trustees and the balance of his member account is more than $1,000.00, the trustees shall rollover such balance to an individual retirement account designated and established by them for the benefit of such member.

D. A member who is inducted into the armed forces and thereafter provides extended military service may request a withdrawal of his member account, which shall be paid in the form of a single-sum distribution.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-161. Repayment permitted.

If a member separates from service, receives a distribution of his member account and again becomes an active member hereunder, he may repay the full amount of such distribution, together with interest thereon as determined by the trustees, and his prior creditable service shall be restored.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-162. Gross misconduct.

Notwithstanding any provision of the system to the contrary, if a member involuntarily separates

from service on account of his gross misconduct, as determined by the trustees, he shall receive a single-sum distribution of his member account, in lieu of any benefit or allowance payable hereunder. For this purpose, the term "*gross misconduct*" shall mean a member's dishonesty, wrongdoing, or a violation of law. For this purpose, no act shall be deemed gross misconduct hereunder unless the trustees shall determine it is an intentional act or it is an act of wanton disregard.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-163—114-171. Reserved.

DIVISION 8. DISABILITY BENEFITS

Sec. 114-172. Ordinary disability retirement.

A. A member may apply to the trustees for retirement on account of his ordinary disability, provided that:

1. He is credited with not less than ten years of creditable service at the time of his disability;
2. He has exhausted all remedies available under applicable law, including but not limited to the Americans With Disabilities Act; and
3. The trustees have determined that he is disabled.

The trustees shall process such application as soon as practicable following its receipt and acceptance, but not later than 90 days after receipt of all information necessary to process such application.

B. Upon a member's retirement on account of his ordinary disability, he shall receive, in lieu of any benefit or allowance otherwise payable hereunder:

1. A retirement allowance in accordance with division 5 hereof, if he is otherwise eligible; or
2. An "*ordinary disability retirement allowance*" equal to 75 percent of the amount determined (i) as if such member continued as an active member hereunder until he attained age 65, and (ii) using his pensionable compensation determined as of the date of his disability. Such amount shall be paid in equal monthly payments during the life of such member, with no death or survivor benefit payable to any person.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-173. Accidental disability retirement.

A. A member may apply to the trustees for retirement on account of his accidental disability, provided that:

1. He has exhausted all remedies available under applicable law, including but not limited to the Americans With Disabilities Act; and
2. The trustees shall have determined that he is disabled and that such disability is an accidental disability.

The trustees shall process such application as soon as practicable following its receipt and acceptance, but not later than 90 days after receipt of all information necessary to process such application.

B. Upon a member's retirement on account of accidental disability, he shall receive, in lieu of any benefit or allowance otherwise payable from the system:

1. A retirement allowance in accordance with division 5 hereof, if he is otherwise eligible; or
2. An annual allowance, an "*accidental disability retirement allowance,*" equal to 65 percent of his pensionable earnings determined as of the year preceding the year in which such disability occurs. Such allowance shall be paid in equal monthly payments during the life of such member, with no death or survivor benefit payable to any person.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-174. Member account refund.

If a member dies before he has received the balance of his member account, whether in the

form of an accidental disability retirement allowance or an ordinary disability retirement allowance, his beneficiary shall be paid the balance of such account in the form of a single-sum, which payment shall be made not later than the last day of the calendar year that includes the fifth anniversary of the member's date of death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-175. Reexamination; return to active membership.

A. Once each year during the first five years following the commencement of an ordinary or accidental disability retirement allowance hereunder, and once each three years thereafter until a disabled member attains age 60, he shall be required to establish that he remains disabled in accordance with the rules and procedures established by the trustees. If he shall refuse reexamination, his accidental or ordinary disability retirement allowance shall be suspended and, upon the expiration of six months, such allowance shall be revoked.

B. If, upon reexamination, a member is able to pursue gainful employment, his accidental or ordinary disability retirement allowance shall be discontinued upon his restoration to his former position or a substantially similar position with his employer.

C. If a member receiving an ordinary or accidental disability retirement allowance again resumes employment with his employer, his allowance shall cease and he shall again be an active member of the system. Periods of creditable service before and after such disability shall be aggregated for purposes of determining his retirement benefit, provided that the period of such accidental or ordinary disability retirement shall not be taken into account.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-176. Income certification.

A. A member receiving an accidental or ordinary disability retirement allowance shall furnish to the trustees not later than May 1st of each year a notarized statement that includes all earnings from employment during the preceding year. Failure to provide such statement may, in the discretion of the trustees, result in the suspension or discontinuance of an allowance hereunder.

B. If the trustees determine that a member receiving an accidental or ordinary disability retirement allowance is engaged in gainful employment, the earnings or compensation with respect to which are greater than the difference between his accidental or ordinary disability retirement allowance hereunder and his pensionable compensation, such allowance shall be reduced in the amount necessary to ensure that the sum of such allowance and his earnings do not exceed his pensionable compensation. Such determination shall be made and allowances shall be adjusted hereunder on an annual basis; provided, however, that any benefit payable from the system shall not be less than the actuarial equivalent of his member account, determined as of the date of his disability.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-177. Offset of accidental or ordinary disability retirement allowances.

If a member receives an accidental or ordinary disability allowance and also receives workers' compensation benefits, Social Security benefits or compensatory benefits under similar laws:

A. Any benefit or allowance payable hereunder on account of such disability shall be offset by the amount of workers' compensation or similar benefits representing income replacement, excluding any amount that is allocable to such member's medical expenses.

B. Notwithstanding any offset permitted hereunder, any benefit payable from the system shall not be less than the actuarial equivalent of his member account, determined as of the date of his disability.

C. As a condition of the receipt of benefits hereunder, each member shall certify to the trustees the existence and disposition of any Social Security or workers' compensation claim, at such time or times and in such manner as the trustees shall prescribe. A member's failure to provide such

information may result in the suspension of any accidental or ordinary disability allowance otherwise payable hereunder.

D. The trustees shall possess the authority to administer any offset or reduction described herein. The decision of the trustees as to the amount and time of any offset shall be final and binding.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-178. Maximum allowance.

In no case shall the amount of an accidental disability allowance or ordinary disability allowance hereunder, expressed in the form of a member annuity and determined as of the date of a member's disability, exceed his annualized pensionable compensation as of such date.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-179—114-186. Reserved.

DIVISION 9. DEATH BENEFITS

Sec. 114-187. Beneficiaries and annuitants.

A. Each member may designate a beneficiary and/or annuitant, or change a prior designation, provided that no designation or change shall be effective unless it is made in writing in a form acceptable to and filed with the trustees and includes the consent and wavier required under subsection B hereof.

B. When a member who is legally married first designates a primary beneficiary or an annuitant other than his spouse, his spouse shall consent to such designation and waive any right to a refund, survivor annuity or other death benefit hereunder. Such consent and waiver shall be made, in writing, in the form required by the trustees. Once made and accepted by the trustees, such consent and waiver shall be irrevocable. In the absence of such consent, such designation shall be deemed invalid.

C. Upon the death of a member who does not have a beneficiary, or whose designation has been determined to be invalid by the trustees, any death benefit shall be paid to his surviving heirs in the following order, to the exclusion of any heirs in later classes:

1. The spouse of the member, provided the spouse is not legally separated from the member at the time of the member's death;
2. The member's children, including legally adopted children;
3. The member's parents;
4. The member's brothers and/or sisters; or
5. The member's estate.

If there are two or more surviving heirs in any class, then each such heir shall equally share the benefit. If a minor child is determined to be a member's beneficiary, any benefit to which he is entitled shall be paid to his legally appointed guardian, and such payment shall discharge the system from any further obligation with respect thereto. If a member designates a primary beneficiary, other this his spouse, his spouse shall consent to the designation in the form prescribed by the trustees.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-188. Death while an active member.

A. If an active member dies before his retirement, his beneficiary shall be paid the balance of his member account in the form of a single-sum.

B. If an active member is credited with not less than three years of creditable service as of the date of his death, then in addition to any amount payable under subsection A hereof, his beneficiary shall receive a single-sum equal to the lesser of:

1. His base compensation, determined with respect to the calendar year preceding the year in which his date of death occurred; or
2. The sum of (a) 25 percent of his base compensation determined with respect to the calendar year preceding the year in which his date of death occurred, and (b) five percent of such base compensation for each year of creditable service in excess of one.

C. If an active member, as of the date of his death (1) has attained age 55 and is credited with not less than ten years of creditable service or is credited with not less than 20 years of creditable service without regard to his age, disregarding any purchase of military service except qualified military service, and (2) such deceased member's sole primary beneficiary is his surviving spouse, then such spouse may elect to receive a monthly annuity commencing as of the member's date of death and ending when such spouse attains the earliest age of eligibility for Social Security widow/widower benefits. The benefit provided hereunder shall be in lieu of any other benefit from the system.

D. If an active member is otherwise eligible for retirement as of the date of his death, and such deceased member is survived by his spouse, then in lieu of any benefit hereunder, such spouse shall receive the survivor's portion of the Option 2 annuity, determined as if the member had retired immediately before his date of death.

E. Any benefit payable hereunder shall be determined without regard to any military service purchased by the deceased member.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-189. Death after separation from service.

If a member dies after his separation from service and:

A. Such member is not then eligible to receive a retirement allowance, the balance of his member account, if any, shall be distributed to his beneficiary in the form of a single-sum payment.

B. Such member is then otherwise eligible for retirement and survived by a spouse, then in lieu of any benefit otherwise payable hereunder, his spouse shall receive the survivor's portion of the Option 2 annuity, determined as if such member had retired immediately before his death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-190. Death after retirement.

If a member dies after his retirement, his beneficiary or annuitant, as the case may be, shall receive the refund, payment, or survivor benefit, if any, determined in accordance with sections 114-131 or 114-148 hereof, based upon the form of payment in effect as of the date of the member's death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-191. Time of payment.

A. Any benefit or refund payable on account of a member's death in the form of a single-sum shall be paid as soon as practicable following the date of the member's death, but in no event later than five years following the last day of the calendar year in which such date of death occurs.

B. Any benefit payable on account of a member's death in the form of an annuity shall commence as soon as practicable after the date of the member's death, but in no event later than one year after such death.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-192. Qualified military service.

If a member dies while performing qualified military service and his date of death is on or after January 1, 2007, for purposes of any death or survivor benefit hereunder, other than benefit accruals with respect to the period of such service, such member shall be deemed to have resumed his employment with the employer and then died immediately thereafter.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-193. Offset for workers' compensation or social security.

If a member's spouse or other beneficiary receives a benefit under section 114-188 and also receives workers' compensation benefits, Social Security benefits or compensatory benefits under a similar laws:

A. Any such benefit or allowance payable on account of an accidental death shall be offset by the amount of workers' compensation or similar benefits representing

income replacement, excluding any amount that is allocable to such member's medical expenses.

B. Notwithstanding any offset permitted hereunder, any benefit payable from the system shall not be less than the actuarial equivalent of his member account, determined as of the date of his disability.

C. The trustees shall possess the authority to administer any offset or reduction described herein. The decision of the trustees as to the amount and time of any offset shall be final and binding.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Secs. 114-194—114-200. Reserved.

DIVISION 10. FUNDING; INVESTMENTS

Sec. 114-201. System to maintain three accounts.

The system shall, for the benefit of each member, maintain three individual accounts for bookkeeping purposes:

A. A member account to which (1) member contributions and interest thereon shall be allocated, including any amount paid by such member for the purchase of creditable service in accordance with division 4 hereof, (2) any withdrawals or refunds or distributions made on account of his separation from service or death shall be charged, and (3) any transfer from the pension accumulation account on account of a member's repayment of his member account balance shall be made.

B. A pension accumulation account to or from which (1) employer contributions attributable to such member, income and gain thereon shall be credited, (2) any gift or similar amount shall be credited, (3) any single-sum death benefit shall be charged, (4) an amount equal to interest accrued with respect to a member account and interest accrued on the mean amount of the reserves in the annuity reserve account shall be charged, and (5) a transfer to a member's member account shall be made on account of his repayment of his member account.

C. An annuity reserve account, which (1) shall be credited with the balance of the member's member account and pension accumulation account as of his retirement, and (2) shall be charged with such member's retirement allowance or other benefit payable hereunder.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-202. Member account interest.

Interest shall be credited to each member account as of each December 31st, at the rate determined by the trustees from time to time. Such crediting shall cease upon the earlier of (A) the date on which no amount is credited to such account, (B) a member's death or retirement date or other commencement of benefits hereunder, or (C) five years after his separation from service, if such member is credited with less than five years of creditable service as of his separation date.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-203. Member contributions.

A. Each active member shall contribute to the system member contributions in an amount equal four percent of his contribution compensation; beginning January 1, 2012, and ending December 31, 2012, such contributions shall equal five percent of contribution compensation; beginning January 1, 2013, and thereafter, such contributions shall equal six percent of contribution compensation.

B. Each active member's employer shall automatically deduct such contributions from his contribution compensation on a pay period basis, and each such member shall be deemed to have consented to such deduction, without the necessity of further action. Payment of any amount, allowance, withdrawal or other benefit hereunder shall be deemed to constitute a discharge and release of any claim or demand related to such deduction.

C. Each employer shall remit member contributions to the system at the time or times designated by the trustees, but no less frequently than monthly.

D. Member contributions hereunder are intended to be "pick-up contributions" and shall be made and administered in the manner prescribed under Tax Code Section 414(h)(2).

E. Member contributions hereunder shall be deemed part of a member's compensation for purposes of determining whether such compensation is less than the minimum amount required by law to be provided. Payment of a member's compensation due for any period, reduced as provided herein, shall be deemed to discharge and acquit the city and his employer with respect to services rendered by such member during such period, except as to any prospective claim for benefits or payments hereunder.

F. The trustees shall adopt such procedures as may be necessary for the collection and remission of member contributions hereunder.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-204. Employer contributions.

A. The city or other employer of each active member shall contribute to the system.

B. Each year, the system's actuarial report shall include the amount actuarially necessary, when aggregated with member contributions, to provide for the payment of benefits accrued hereunder. Such amount shall be determined in accordance with generally accepted actuarial principles, consistent with the actuarial standards of practice, as promulgated from time to time by the actuarial standards board, and the statements of the governmental accounting standards board as they relate to the disclosure, accounting, and funding of pension plans, as the same may be amended, superseded or replaced from time to time.

C. The trustees shall annually review the system's actuarial valuation and determine the amount of the annual contribution necessary and appropriate hereunder.

D. Contributions hereunder shall ordinarily be expressed as a uniform percentage of each active member's contribution compensation.

E. During the city's annual budgeting process, the board may be authorized to request an addition to the annual required contribution rate (ARC) to specifically fund cost-of-living increases or bonuses. The funding shall come in the form of an increase in the city or other employer contribution rate. The increase shall be no more than one-half of one percent of the system's actuarial valuation.
(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 29248, § 1, 11-3-22)

Sec. 114-205. Appropriations.

On or before September 1st each year, the trustees shall file with the city council a certification of the amount of the contribution determined in accordance with section 114-204 hereof applicable for the immediately succeeding year and the additional amount required in connection with the administration and operation of the system for such year. The amount so certified shall be included in the annual budget of the city, and the city council shall appropriate such amount as shall be necessary to cover the expenses and benefits payments, including cost-of-living increases or bonuses, of the system prior to the first regular budgetary receipts.
(M.C.S., Ord. No. 26460, § 2, 6-18-15; M.C.S., Ord. No. 29248, § 1, 11-3-22)

Sec. 114-206. Custodian.

The director of the department of finance shall be deemed the custodian of the funds comprising the system, from time to time. Unless the trustees have authorized electronic or other means of payment, all payments from such funds, other than benefits and payments shall be made only upon presentment of a regular voucher signed by two persons designated by the trustees. A duly attested copy of a resolution designating the persons authorized to sign such vouchers shall be filed with the director of the department of finance, from time to time, as authority for making payments hereunder. No voucher shall be drawn unless it shall have been previously authorized by the trustees.
(M.C.S., Ord. No. 26460, § 2, 6-18-15)

Sec. 114-207. Management of funds.

A. The trustees shall be and act as the trustees of the funds comprising the system, from time to time, including amounts credited to the accounts established hereunder. In such capacity, the trustees shall possess the discretionary authority to invest and reinvest such funds. When exercising such authority, the trustees shall (1) exercise judgment and care under the circumstances then prevailing, which a reasonable individual of ordinary prudence, discretion and intelligence would exercise in the management of like enterprises, and (2) act solely in the interests of members and their annuitants and beneficiaries for the purposes of providing benefits and paying administrative costs hereunder.

B. The trustees shall possess all powers ancillary to or necessary for such purpose, including without limitation:

1. The power to appoint one or more sub-custodians to hold all or a portion of the funds constituting the system, from time to time, including the apportionment of funds among such sub-custodians and the removal thereof;
2. The power to adopt and modify, from time to time, an investment policy or determine other investment goals and objectives;
3. The power to designate or remove investment managers and to monitor and evaluate the performance thereof;
4. The power to employ one or more experts or other persons to assist in the performance of their duties and obligations hereunder; and
5. The power to delegate to one or more officers or employees of the system the authority to authorize and direct routine disbursements and payments from the system, subject to such controls and limitations as the trustees deem necessary or advisable.

C. The trustees may enter into agreements with one or more investment managers, in their discretion. The trustees shall determine the portion of the funds then comprising the system allocable to any such manager and shall possess the authority to increase or decrease the amount of such funds, in their discretion. Any investment manager appointed hereunder shall be charged with the management of the funds so allocated in accordance with the investment policy adopted by the trustees. An investment manager appointed hereunder shall not have physical custody of the funds of the system, including those funds allocated to such manager for investment purposes hereunder and shall have no responsibility for the administration and operation of the system, the safekeeping of the funds comprising the system or the management and investment of the portion of the system not otherwise allocated to such manager hereunder.

D. Any financial consultant employed by the trustees hereunder may advise the trustees as to the selection and removal of investment managers, the terms and conditions of any investment policy adopted hereunder, and such other matters as the trustees deem necessary or appropriate.

E. For the purpose of satisfying the cash requirements of the system, including the payment of allowances, benefits and other amounts hereunder, not more than ten percent of the assets comprising the system may be held uninvested in cash or cash equivalents. For this purpose, any amount allocated to an investment manager that is held in cash or cash equivalents pending investment shall not be taken into account.

(M.C.S., Ord. No. 26460, § 2, 6-18-15)

ARTICLE IV. FEDERAL OLD AGE AND SURVIVOR'S BENEFITS*

Sec. 114-311. Extension of benefits; effective date.

(a) It is hereby declared to be the policy and purpose of the city to extend the provisions of R.S. 42:1001 providing social security to eligible officers and employees of the city and the parish.

*__Cross references—__Officers and employees, § 2-326 et seq.; departments, § 2-431 et seq.

__State law references—__Social security, R.S. 42:1001 et seq.; excluding from retirement system certain employees covered by federal system, R.S. 11:3844.

(b) In pursuance of such policy and for such purpose the officers and employees of the city and the parish shall take such action as may be required by applicable state or federal laws or regulations. The coverage of eligible officers and employees shall be effective January 1, 1955.
(Code 1956, § 55-86)

Sec. 114-312. Agreement authorized.

The mayor is hereby authorized and directed to execute an agreement with the state public employees' board to secure coverage of eligible officers and employees as provided in this division.
(Code 1956, § 55-87)

Sec. 114-313. Salary withholdings authorized.

(a) Withholdings from salaries or wages of officers and employees for the purposes provided in this article are hereby authorized to be made in the amounts and at such times as may be required by applicable state and federal laws and regulations and shall be paid over to the public employees' board, a state agency, in such amounts and at such times as are designated by state laws and regulations of such agency.

(b) Employer contributions and assessments for administrative expenses shall be paid from amounts appropriated for such purposes to the state agency in accordance with applicable state laws and regulations of such agency.

(c) The director of the department of finance shall maintain such records and submit such reports as may be required by applicable state and federal laws and regulations.
(Code 1956, § 55-88)

Sec. 114-314. Advances for 1955 for nonmembers of retirement system.

The director of the department of finance or other authorized fiscal officer of the city is hereby authorized to advance the necessary funds to cover the social security employee contribution for the year 1955 for those employees of the city who are not members of the city employees' retirement system.
(Code 1956, § 55-89)

Sec. 114-315. Refund of certain contributions.

The board of trustees of the employee's retirement system shall refund to each member the total amount of contributions paid by the member on the first $100.00 of monthly salary for each month that he has been a member of the system, less an amount sufficient to pay social security contributions of the member for the year ending December 31, 1955. The board of trustees shall also remit to the director of the department of finance for payment to the state public employees' board an amount sufficient to pay the social security contributions for all members for such time that they were employed by the city and were members of the retirement system, during the year ending December 31, 1955, this remittance to include both employer's and employee's social security contributions.
(Code 1956, § 55-90)

Sec. 114-316. Retention of certain eligibles.

Any member eligible for retirement before July 1, 1956, may be retained in city employment until such time as six quarters of social security coverage are earned. Upon termination prior to July 1, 1956, or before qualifying for social security benefits, whichever occurs first, the member shall receive benefits under the retirement ordinance in effect on November 8, 1955, upon payments of any refund received after January 1, 1956.
(Code 1956, § 55-91)

Secs. 114-317—114-399. Reserved.

ARTICLE V. COLLECTIVE BARGAINING

Sec. 114-400. Definitions.

As used in this article, the following terms shall have the meanings ascribed to them in this section:

Collective bargaining means bargaining for employee matters on behalf of employees.

Collective bargaining agreement means a written lawful contract between the city and an exclusive bargaining agent representing the employees in a bargaining unit authorized by this Article and resulting from collective bargaining.

Confidential employee means an employee who acts in a confidential capacity with respect to an individual who formulates or effectuates management policies in the field of labor-management relations.

Covered employee means any employee of the City of New Orleans in classified or unclassified service, as defined in the Charter, excluding confidential employees, management officials and supervisors as defined herein.

Employee labor organization means an organization in which employees participate, and that exists, in whole or in part, for the purpose of representing employees in collective bargaining concerning labor disputes, hours, and other terms and conditions of employment.

Grievance means a claim of breach, misinterpretation, or misapplication of any provision of a collective bargaining agreement between the city and an exclusive bargaining representative.

Management official means an individual whose duties and responsibilities require or authorize the individual to formulate or determine the policies of a city department.

Supervisor means any individual having independent authority in the interest of the city to hire, transfer, suspend, lay off, recall, promote, discharge, assign, reward, or discipline other employees. The term "supervisor' does not include either sworn police department employees below the rank of lieutenant or uniformed fire department employees at or below the rank of fire district chief.
(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-401. Employee rights.

(a) Subject to the terms of this article, employees shall have the right to:

(1) Organize, form, join, assist, participate in, and pay dues or contributions to a union;

(2) Bargain collectively through an exclusive bargaining representative of their own choosing and to receive fair representation from a union; and

(3) Engage in other concerted activities for the purpose of collective bargaining or other mutual aid and protection insofar as such activity is not inconsistent with this article.

(b) Employees shall also have the right to refrain from any or all such activities described above.

No city employee or any other person acting on behalf of the city, an exclusive bargaining agent, or a union or labor organization may interfere with the exercise of an employee's rights under this article or commit any form of retaliation arising from the exercise of any rights granted here under this article.
(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-402. Employee use of work time for employee labor organization matters.

(a) Employees shall have the right to hold informal conversations and interactions with one another to discuss workplace and employee labor organization issues while on duty, provided that such conversations or interactions do not interfere with the employee's job duties. Employee labor organizations shall not hold formal meetings that interfere with the work time of employees, except as provided for in this article or in a collective bargaining agreement.

(b) Employees are permitted to use city electronic communication systems, including but not limited to, email and text messaging on city devices and/or accounts, to discuss employee labor organization business or activities, or employee organizing activity.
(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-403. Bargaining units.

The city shall recognize the following bargaining units for the purposes of collective bargaining:

(a) *Police.* The police department employees' bargaining unit shall consist of all sworn

commissioned employees of the police department, except those excluded by definition in section 114-400.

(b) *Fire.* The fire fighters bargaining unit shall consist of fire fighters, fire apparatus operators, fire captains, fire prevention inspectors, and fire alarm dispatchers and any other uniformed fire employees below the rank of deputy chief.

(c) *General government*. All other covered city employees, except those excluded in section 114-400.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-404. Labor relations advisor.

(a) The council shall employ one or more labor relations advisors (LRA) to provide professional advice and assistance to the council regarding the implementation of this article and the development of labor policy; to assist the council in mediating impasses in the negotiation of collective bargaining agreements; to investigate and advise the council regarding possible violations of this article; and to serve as liaison among the council, the administration, exclusive bargaining agents, unions or labor organizations, and employees with respect to labor and collective bargaining concerns.

(b) The LRA shall operate under the rules and procedures detailed in a City Council Labor Relations Advisor Rules Manual (LRA Rules Manual).

(c) The council shall create the LRA Rules Manual by resolution and shall publish the same on the council website. The LRA Rules Manual may be amended by the same procedure.

(d) City departments shall cooperate with the labor relations advisor and shall provide all documents or assistance reasonably requested by the LRA in performance of the duties described herein or otherwise assigned by the council.

(e) The LRA shall oversee and report to the council in relation to the following:

(1) Oversight and ratification of elections, including card-check recognition, certification or decertification pursuant to the provisions of the LRA Rules Manual, and issue to the council a report on certification or decertification;

(2) Disputed issues of employee inclusion in or exclusion from the bargaining units permitted under this article; and

(3) The status and results of negotiations of any collective bargaining proposal as a subject of bargaining permitted under this article.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-405. Exclusive collective bargaining.

The city may engage in collective bargaining and enter into a collective bargaining agreement only with an employee labor organization selected as the exclusive bargaining representative of a particular employee bargaining unit.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-406. Recognition of exclusive bargaining agent.

(a) If an employee labor organization has been recognized as the exclusive bargaining agent of a bargaining unit of city employees, whether by a memorandum of understanding with the city in effect on January 1, 2024, a legislative act of the council regarding the general government bargaining unit passed on or before December 1, 2024, or by another process legally recognized with the city, then that bargaining agent shall have the rights and responsibilities vested by this article. All other provisions of this article shall henceforth apply to all recognized bargaining agents and the bargaining units they represent.

(b) If there is no recognized exclusive bargaining agent, a bargaining agent may become recognized as the exclusive bargaining agent of all employees in an appropriate bargaining unit described in section 114-403 if the LRA reports to the council the appropriate procedures to select a representative are followed and that representative is certified by the council as described in section 114-107.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24; M.C.S., Ord. No. 30114, § 1, 10-24-24)

Sec. 114-407. Certification of an exclusive representative.

(a) Elections of exclusive bargaining agents shall occur pursuant to rules promulgated in the LRA Rules Manual and overseen by the LRA.

(b) The LRA shall present a report to the council regarding the outcome of any election and compliance with the procedures within the LRA Rules Manual.

(c) The certification or decertification of a union or labor organization as an exclusive bargaining agent shall be made by council resolution.
(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-408. Access.

To facilitate the certification process and to ensure fair access among competing employee labor organizations, the city shall provide reasonable access to any employee labor organization seeking to become the exclusive bargaining representative of a particular bargaining unit that meets the qualifications set forth in a resolution adopted pursuant to section 114-407.
(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-409. Rights accompanying exclusive representation.

Any employee labor organization recognized as the exclusive bargaining agent for employees in an appropriate bargaining unit has the following rights:

(a) To speak on behalf of all members of the bargaining unit and be responsible for representing the interests of all members of the bargaining unit without discrimination and without regard to employee labor organization membership.

(b) To meet at reasonable times and places to engage in good faith collective bargaining on matters that, under this article, may be the subject of collective bargaining, in an effort to reach an agreement with the city.

(c) To meet with bargaining unit employees on city premises in non-secure areas during times when the employees are on break or in a non-duty status. Any other employee labor organization that has submitted a petition and established a valid question concerning representation of the bargaining unit is also permitted to meet with bargaining unit employees with the same limitations. An exclusive bargaining agent and the city is permitted to negotiate regarding greater access to employees by the exclusive bargaining agent as a provision of a collective bargaining agreement.

(d) To receive a quarterly list of all covered bargaining unit employees, to receive a monthly list of all new covered bargaining unit employees hired during the previous month, and to be permitted to schedule presentations as needed to the new covered bargaining unit employees hired during the previous month. The city shall invite each exclusive bargaining agent to any formal presentation to the new covered bargaining unit employees corresponding to each exclusive bargaining agent.

(e) To communicate with employees regarding collective bargaining, the administration of collective bargaining agreements, investigation of grievances, other workplace-related complaints and issues, and internal union matters involving the governance or business of the exclusive bargaining agent via city communications systems, including but not limited to, city-issued email addresses and/or phone numbers.

(f) To be represented at any formal discussion between one or more representatives of the city and one or more employees in the bargaining unit or their representatives concerning (1) any matter that is within the scope of collective bargaining as set forth in section 114-400; or (2) any examination of bargaining unit employees by a representative of the city in connection with an investigation if the employee reasonably believes that the examination involves matters covered by any

collective bargaining agreement then in effect, and the employee requests representation. The city shall inform the employee that the employee has a right to union representation prior to any such discussion or interview, and the employee shall have a right to request union representation before proceeding with the discussion or interview. An individual employee may present a personal complaint or question at any time to the city without the intervention of an employee labor organization, provided that any such organization that is recognized by the city as the exclusive bargaining agent for the bargaining unit in which the employee is a member is afforded an effective opportunity to be present and to offer its view at any meetings held to adjust the matter and that any adjustment made shall not be inconsistent with the terms of any applicable collective bargaining agreement. Employees who utilize this avenue of presenting personal complaints to the city shall not do so under the name, or by representation, of an employee labor organization.

(g) To be the only labor organization eligible to receive from the city amounts deducted from the pay of employees as authorized by written assignment of the employees, for the payment of regular and periodic dues to the exclusive bargaining agent. Any such authorization may be revoked in accordance with the terms of the authorization which shall provide a period of irrevocability of not more than one year. An authorization that satisfies the Uniform Electronic Transactions Act (La. Rev. Stat. § 9:2601), including, without limitation, electronic authorizations and voice authorizations, shall be valid for employees' authorizations for payroll deductions.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24; M.C.S., Ord. No. 29777, § 1, 1-4-24)

Sec. 114-410. Good faith bargaining process.

(a) The exclusive bargaining agent must submit a written request for bargaining to the city and negotiations must begin no later than May 1 and conclude by November 15 of any year where an agreement is sought to be effective at the beginning of the next fiscal year, in order to accommodate the city budget process.

(b) Good faith bargaining does not include submission of or a response to a proposal that:

(1) Violates the rights of employees as set forth in this article, or

(2) Is outside the scope of lawful collective bargaining.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-411. Inclusion of grievance procedures.

All collective bargaining agreements must include a negotiated grievance procedure which culminates in final and binding arbitration matters defined as a grievance in section 114-400. Where an alternate procedure to process a grievance is available, an employee's initial election of procedure made at the time of filing the grievance through the negotiated procedure or alternative procedure shall be irrevocable.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-412. Approval of agreement.

When an exclusive bargaining agent and the city reach an agreement, they shall reduce it to writing and execute it, signifying the approval of the bargaining agent and the mayor.

(a) Upon signature of the mayor, the agreement shall be communicated to the council for approval as provided for in section 114-413, and appropriation of funds necessary to implement the financial terms of the agreement and the exclusive representative's ratification process.

(b) Upon council approval of the agreement, if any provision of the agreement is inconsistent with the published rules of the civil service commission, or addresses

pay, classification, benefits or other matters relating to compensation that are within the authority of the civil service commission, the city shall request that the civil service commission amend its rules to resolve the inconsistency but the provision or provisions shall not go into effect unless and until the inconsistency is resolved.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-413. Council approval of collective bargaining agreements.

Any collective bargaining agreement must be signed by the council president and authorized by a motion of the council in the manner provided in City Code section 70-10.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-414. Non-interference and neutrality.

Neither the city nor any exclusive bargaining agent shall refuse to negotiate in good faith with respect to matters within the scope of collective bargaining defined in section 114-400.

(a) The city and its agents shall not:

(1) Interfere with, restrain, or coerce employees with regard to the exercise of rights granted by this article;

(2) Dominate or interfere in the administration of any employee labor organization;

(3) Deter or discourage employees or applicants for city positions from becoming or remaining members of an employee labor organization, or from authorizing dues deductions, or voting to authorize union representation, or exercising any of their rights under this article;

(4) Encourage or discourage membership in any employee labor organization, committee, or association including by discrimination in hiring, tenure, or other terms and conditions of employment, provided that use of city property and time for meetings and the city's communication system for employee labor organization business, as may be permitted by this article or a collective bargaining agreement, shall not be deemed encouragement prohibited by this section;

(5) Discharge, retaliate, or discriminate against any employee because the employee has filed an affidavit, petition, or complaint or given any information or testimony under this article or because the employee has formed, joined, or chosen to be represented by any exclusive bargaining agent;

(6) Deny the rights accompanying certification as the exclusive bargaining agent as conferred by this article;

(7) Refuse to bargain collectively with the exclusive bargaining agent as provided in this article;

(8) Refuse to participate in good faith in any agreed-upon impasse resolution procedures or those set forth in this article;

(9) Refuse to reduce a collective bargaining agreement to writing and sign such agreement provided all conditions for an enforceable agreement, as set forth in this article, have been met; or

(10) Enforce any rule or regulation which is plainly in direct conflict with any applicable collective bargaining agreement if the agreement was in effect before the date the rule or regulation was prescribed.

(b) No employee labor organization or its agents shall:

(1) Interfere with, restrain, or coerce any employee with respect to rights granted in this article or with respect to selecting an exclusive representative;

(2) Fail to represent an employee who is in a bargaining unit exclusively

represented by the employee labor organization fairly and without discrimination provided such failure is willful or deliberate;

(3) Refuse to bargain collectively with the city as provided in this article;

(4) Refuse to participate in good faith in or violate any mutually agreed-upon impasse resolution procedures; or

(5) Engage in conduct which is plainly in direct conflict with any applicable collective bargaining agreement.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-415. Time limits.

Any time limits in this article may be extended by written agreement of the city, the employee labor organization, and any other appropriate parties.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-416. Annual public hearing.

The council shall hold a public hearing annually to hear presentations from city employee unions or labor representatives about the needs of city employees. At said hearings, labor representatives or city employees may discuss recommendations for addressing workplace concerns, civil service requests, employee pay or leave change requests, recommendations for city facility upgrades, budgetary recommendations, or other labor or workplace issues that affect city employees.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Sec. 114-417. Authority of civil service commission.

Nothing in this article should be construed to impair or supersede the authority granted to the civil service commission or the city civil service department by the Louisiana Constitution or the Home Rule Charter. The chief administrative office shall take all available steps to secure necessary civil service commission approval of any matter governed by this article or by a collective bargaining agreement requiring commission approval.

(M.C.S., Ord. No. 29494, § 1, 6-22-23, eff. 1-1-24)

Chapters 115–117

RESERVED

Chapter 118

PLANNING*

Article I. In General

Secs. 118-1—118-35. Reserved.

Article II. Planning Commission

Sec. 118-36. Created.
Sec. 118-37. Composition.
Sec. 118-38. Terms of members.
Sec. 118-39. Meetings, rules and records.
Sec. 118-40. Employees, contracts, expenditures.
Sec. 118-41. Duties and powers generally.
Sec. 118-42. Act as zoning commission.
Sec. 118-43. Fees for applications.
Sec. 118-44. Annual report.

Article III. Regional Planning

Sec. 118-45. Regional planning area.
Sec. 118-46. Regional planning commission.
Sec. 118-46.1. Composition.
Sec. 118-47. Terms of office.
Sec. 118-48. Removal of commission members.
Sec. 118-49. Election of officers.
Sec. 118-50. Authority, powers and duties.

*__Cross references—__Flood damage prevention, § 78-36 et seq.; coastal zone management program, § 170-110 et seq.

ARTICLE I. IN GENERAL

Secs. 118-1—118-35. Reserved.

ARTICLE II. PLANNING COMMISSION*

Sec. 118-36. Created.

There is hereby created a planning commission in accordance with the provisions of R.S. 33:101—33:119 which commission shall have and exercise all powers and privileges conferred by such sections.
(Code 1956, § 47-1)

Sec. 118-37. Composition.

The planning commission shall consist of nine members, all to be appointed by the mayor, who may remove any member of the commission after public hearing for inefficiency, neglect of duty or malfeasance in office. No member of the commission shall hold any other public office.
(Code 1956, § 47-2)

Sec. 118-38. Terms of members.

Of the members of the planning commission first appointed, one was appointed for a term of one year, one for a term of two years, one for a term of three years, one for a term of four years, one for a term of five years, one for a term of six years, one for a term of seven years, one for a term of eight years and one for a term of nine years. Their successors have been and shall be appointed for a term of years equal to the total membership of the commission.
(Code 1956, § 47-3)

Sec. 118-39. Meetings, rules and records.

The planning commission, subject to quorum requirements, shall hold at least one regular meeting in each month, shall adopt rules for the transaction of business and shall keep a record of its resolutions, transactions, findings and determinations which shall be a public record.
(Code 1956, § 47-4)

Sec. 118-40. Employees, contracts, expenditures.

The planning commission may appoint such employees as it may deem necessary for its work, whose appointment, promotion, demotion and removal shall be subjected to the same provisions of law, including civil service regulations, as govern other corresponding civil employees of the city. The commission may also contract with city planners, engineers, architects and other consultants for such services as it may require. The expenditures of the commission, exclusive of those made from funds received by gifts, shall be within the amounts appropriated for the purpose by the council, which shall provide the funds, equipment and accommodations necessary for the commission's work.
(Code 1956, § 47-5)

Sec. 118-41. Duties and powers generally.

The planning commission shall have and exercise all powers and privileges and shall perform its duties, including the control and approval of subdivision plats, as provided for in R.S. 33:101—33:119 or as they may be from time to time amended and shall also have and exercise such other powers and duties as may from time to time be conferred by or imposed upon it by law, and especially including Act 498 of 1966, of the Louisiana Legislature.
(Code 1956, § 47-6)

Sec. 118-42. Act as zoning commission.

The planning commission shall also serve as the zoning commission as provided for by R.S. 33:106 and shall have all powers and privileges and shall perform the duties as provided for by R.S. 33:4721—33:4732 and by the zoning ordinance of the city as both may be from time to time amended. When acting as a zoning commis-

*__Charter reference—__City planning commission, §§ 5-501—5-508.

__Cross reference—__Boards, committees and commissions, § 2-86 et seq.

__State law reference—__Planning, R.S. 33:101 et seq.

sion the planning commission shall hold separate meetings and shall keep separate minutes and records.
(Code 1956, § 47-7)

Sec. 118-43. Fees for applications.

(a) The city planning commission or any other agency designated by the city council shall collect in advance application fees according to the following schedule:

(1) For all subdivisions, there shall be a base filing fee of $200.00 plus $25.00 per lot for each lot proposed.

a. Any subdivision proposing the dedication of a street or portion thereof shall pay a minimum filing fee of $500.00.

b. Applications submitting subdivisions under Policy E of subdivision regulations shall pay a minimum filing fee of $350.00.

c. The applicant shall bear the cost of advertising and the cost of certified mailing for a subdivision requiring a public hearing.

d. A $300.00 site plan review fee shall be required for any subdivision wherein site plans are required as part of the application procedure. This fee is in addition to any other applicable processing fees mentioned above.

e. Applicants requesting reapproval or recertification of proposals previously approved or certified by the city planning commission shall be required to pay an additional $100.00 fee.

f. Applicants requesting reconsideration of proposals previously acted upon by the planning commission are required to pay an additional $200.00 fee.

g. All applicants appealing the planning commission's action on any subdivision to the city council are required to pay a fee of $300.00 for processing the appeal.

(2) The party or parties proposing an amendment to the comprehensive zoning law of the city shall remit the applicable fee to the city planning commission before any action shall be taken on the request, in accordance with the comprehensive zoning law.

a. The party or parties proposing an amendment shall be required to pay all advertising costs incurred in the processing of their application in addition to the applicable fee, regardless of the final disposition of the proposed change. Under no condition shall a fee or any part thereof be refunded after advertising commences or, in the case of administrative amendments, after such requests have been properly filed.

b. The fee for a map change shall be as follows:

1. All properties between zero and 4,999 square feet shall be $1,000.00.

2. All properties between 5,000 and 24,999 square feet shall be $2,000.00.

3. All properties between 25,000 and 74,999 square feet shall be $3,000.00.

4. All properties over 75,000 square feet shall be $4,000.00.

c. Notwithstanding the provisions of subsection (2)b., the following fees shall be applicable for conditional use applications:

1. The following residential conditional uses' application fee shall be $500.00:

i. Dwelling, established two-family;

ii. Dwelling, established multi-family; and

iii. Dwelling, established townhouse.

2. For the residential conditional use listed in (2)c.1., if the applicant proposes to increase the floor area, as verified by the department of safety and permits, the fee shall be $700.00.

3. For any use with the gross square footage of the proposed structure being between zero and 4,999 square feet shall be $1,160.00.

4. For any use with the gross square footage of the proposed structure being between 5,000 and 24,999 square feet shall be $2,320.00.

5. For any use with the gross square footage of the proposed structure being between 25,000 and 74,999 square feet shall be $3,480.00.

6. For any use with the gross square footage of the proposed structure being over 75,000 square feet shall be $4,640.00.

d. Notwithstanding the provisions of subsection (2)b. and c., text amendments to the comprehensive zoning ordinance with regard to expanding or tailoring permitted or conditional uses under said Ordinance, a fee of $1,500.00 shall be imposed.

(3) For processing restoration tax abatement applications a fee of $750.00 shall be imposed by the city planning commission or any other agency designated by the city council.

(4) For reviewing appeals and/or plans involving designated zoning moratoriums or similar site plan reviews, a fee of $1,000.00 shall be imposed.

(5) For reviewing appeals and/or plans involving urban corridors as provided in the comprehensive zoning ordinance, a fee of $225.00 shall be imposed for all compliant applicants with regards to urban corridor regulations and $500.00 for all noncompliant applications.

(6) The party or parties proposing an amendment to Volume II, Chapter 14, the Land Use Plan of the Plan for the 21st Century (Master Plan), or to the Future Land Use Maps (FLUM) contained therein, shall remit an application fee to the city planning commission before any action shall be taken on the request.

a. The party or parties proposing an amendment shall be required to pay all advertising costs incurred in the processing of their application in addition to the applicable fee, regardless of the final disposition of the proposed change. Under no condition shall a fee or any part thereof be refunded after advertising commences.

b. The fee for Master Plan FLUM amendments shall be as follows:

1. All properties between zero and 4,999 square feet of lot area shall be $1,000.00.

2. All properties between 5,000 and 24,999 square feet of lot area shall be $2,000.00.

3. All properties between 25,000 and 74,999 square feet of lot area shall be $3,000.00.

4. All properties 75,000 square feet of lot area or higher shall be $4,000.00.

c. The fee for Master Plan text changes Volume II, Chapter 14, the Land Use Plan, shall be $1,500.00 per request, per topic. The executive director of the city planning commission shall determine the number of topics contained in a Land Use Plan text change application.

d. Amendments initiated by the city are exempt from fees, unless initi-

ated by council motion, whereby the council may require the payment of the fees provided herein.

(Code 1956, § 47-7.1; M.C.S., Ord. No. 23819, § 1, 12-1-09; M.C.S., Ord. No. 26879, § 1, 4-21-16; M.C.S., Ord. No. 28517, § 1, 10-15-20)

Sec. 118-44. Annual report.

In January of each year the planning commission shall make a report to the council, regarding its proceedings, activities and progress for the preceding calendar year.

(Code 1956, § 47-8)

ARTICLE III. REGIONAL PLANNING*

Sec. 118-45. Regional planning area.

The regional planning area is hereby established and shall be comprised of the total area contained within the boundaries of Jefferson Parish, the City of New Orleans, Plaquemines Parish, St. Bernard Parish, St. Charles Parish, St. John the Baptist Parish, St. Tammany Parish and Tangipahoa Parish.

(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Sec. 118-46. Regional planning commission.

To carry out the purposes contained in this Article, there is hereby established The Regional Planning Commission in accordance with the provisions of Act 239 of the Louisiana Legislature of 1956, as now amended by Acts No. 114 of the Louisiana Legislature of 1966, Nos. 267 § 1 and 288 § 2 of the Louisiana Legislature of 1968, No. 329 § 1 of the Louisiana Legislature of 1970, No. 607 § 1 of the Louisiana Legislature of 1972, No. 112 § 1 of the Louisiana Legislature of 1973, No. 249 § 1 of the Louisiana Legislature of 1974, No. 132 § 1 of the Louisiana Legislature of 1978, No. 569 § 1 of the Louisiana Legislature of 1979, No. 377 § 2 of the Louisiana Legislature of 1984 and No. 553 § 1 of the Louisiana Legislature of 1985, for the purposes set out in LRS 33 § 130, et seq. (M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

*__Editor's note—__Section 3 of M.C.S., Ord. No. 27292 states that "The Mayor of the City of New Orleans be and he is hereby empowered, authorized and directed to sign and execute all acts or documents necessary and proper in the premises to give full force and effect to this ordinance."

Sec. 118-46.1. Composition.

The regional planning commission shall consist of 41 members, five each being legal residents of Jefferson Parish, City of New Orleans, Plaquemines Parish, St. Bernard Parish, St. Charles Parish, St. John the Baptist Parish, St. Tammany Parish and Tangipahoa Parish and shall also include the director of the Louisiana Department of Transportation and Development. The membership of the Commission shall be composed of a simple majority of appointed or elected public officials holding office in the following municipalities and/or parishes, namely Jefferson Parish, Orleans Parish, Plaquemines Parish, St. Bernard Parish, St. Charles Parish, St. John the Baptist Parish, St. Tammany Parish, and Tangipahoa Parish.

(a) The five members from the City of New Orleans shall include the following:

1. The Mayor of the City of New Orleans;
2. The two councilmembers elected from the city at large; and
3. The remaining two members must not otherwise hold elective or appointive office, and shall be appointed by the mayor with approval by the city council.

(b) The five members from the Parish of Jefferson shall include the following:

1. The Parish President;
2. The council chairman;
3. A third member selected by the Parish Council and approved by the Parish President from among the mayors of the municipalities located within the Parish of Jefferson, which member shall represent the municipalities therein located; and
4. Two members who must not otherwise hold elected or appointed

office in Jefferson Parish, to be appointed by the council and approved by the Parish President.

(c) The five members from the Parish of Plaquemines shall include the following:

1. The Parish President of the Parish Government;
2. The Chairman of the Plaquemines Parish Council;
3. One member who otherwise holds elected or appointed office in the Parish of Plaquemines, provided same is not otherwise prohibited by law, to be appointed by the Parish Council; and
4. Two members who must not otherwise hold elected or appointed office in the Parish of Plaquemines, to be appointed by the Parish Council and approved by the Parish President.

(d) The five members from the Parish of St. Bernard shall include the following:

1. The Parish President;
2. Two council members in the Parish of St. Bernard, provided same is not otherwise prohibited by law, to be appointed by the Parish Council; and
3. Two members who must not otherwise hold elected or appointed office in the Parish of St. Bernard to be appointed by the Parish Council.

(e) The five members from the Parish of St. Charles shall include the following:

1. The Parish President;
2. The council chairman;
3. A third member selected by the Parish Council, and approved by the Parish President, from among the mayors of the municipalities located within the Parish, which members shall represent the municipalities therein located; and
4. Two members who must not otherwise hold elected or appointed office in the Parish of St. Charles to be appointed by the Parish Council and approved by the Parish President.

(f) The five members from the Parish of St. John the Baptist shall include the following:

1. The Parish President;
2. Two council members in the Parish of St. John the Baptist, provided same is not otherwise prohibited by law, to be appointed by the Parish Council; and
3. Two members who must not otherwise hold elected or appointed office in the Parish of St. John the Baptist to be appointed by the Parish Council and approved by the Parish President.

(g) The five members from the Parish of St. Tammany shall include the following:

1. The Parish President;
2. Two members who must otherwise hold elected or appointive office in the Parish of St. Tammany, provided same is not otherwise prohibited by law, to be appointed by the Parish Council; and
3. Two members who must not otherwise hold elected or appointed office in the Parish of St. Tammany, provided same is not otherwise prohibited by law, to be appointed by the Parish Council and approved by the Parish President.

(h) The five members from the Parish of Tangipahoa shall include the following:

1. The Parish President;
2. The Chairman of the Tangipahoa Parish Council;
3. The Mayors of the Cities of Hammond and Ponchatoula shall serve on an annual rotating basis; and

4. Two members who must not otherwise hold elected or appointed office in the Parish of Tangipahoa, provided same is not otherwise prohibited by law, to be appointed annually by the Parish President.

(i) The Secretary of Louisiana Department of Transportation and development shall serve as a member of the regional planning commission.

(j) Members shall serve without compensation. However, members, when duly authorized by the Commission, may attend planning conferences or meetings or planning institutes or hearings upon pending planning legislation, and the commission may, by resolution, pay the reasonable traveling expenses incident to such attendance. When so directed and authorized by the regional planning commission, members thereof who hold no elected or other appointed office may be paid a per diem of $50.00 each for attendance at regular or specially called meetings of the full commission or the executive committee thereof in no event to exceed two such meetings per month, i.e. in no event is payment of a total per diem per such member to exceed $100.00 per month, payable out of the funds of the regional planning commission.

(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Sec. 118-47. Terms of office.

(a) Of the members hereof first appointed, those not holding any other elected or appointed public offices shall hold office as follows: one shall hold office for one year, one for a term of two years, one for a term of three years, one for a term of four years, one for a term of five years and the sixth member shall hold office for a term of six years.

(b) Members of the regional planning commission who may hold other public offices, appointed or elected, including the Secretary of the Louisiana Department of Transportation and Development shall serve terms co-existent with their terms of their other public office.

(c) The successors of the regional planning commission members first appointed who do not hold any other appointed or elected public office shall be appointed for a term of five years from and after the expiration of the terms of their predecessors in office.

(d) If a vacancy occurs other than for expiration of term, the same shall be filled by appointment for the unexpired term. Such appointment shall be made by the original appointing authority.

(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Sec. 118-48. Removal of commission members.

The governing bodies of Jefferson Parish, Plaquemines Parish, St. Bernard Parish, St. Charles Parish, St. John the Baptist Parish, St. Tammany Parish or Tangipahoa Parish may remove their respectively appointed members of the commission, after public hearing, for inefficiency, neglect of duty or malfeasance in office. The Mayor of the City of New Orleans may remove any of the members of the commission appointed by him, after public hearing, for inefficiency, neglect of duty or malfeasance in office.

(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Sec. 118-49. Election of officers.

The regional planning commission so established shall elect a chairman from its membership and create and fill such other of its offices as it may determine, the term of chairman shall be one year, with eligibility for re-election. The commission shall hold at least one regular meeting in each month. It shall adopt rules for transaction of business and shall keep records of its resolutions, transactions, findings, and determinations, which records shall be public.

(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Sec. 118-50. Authority, powers and duties.

(a) In order to carry out its functions and responsibilities, the regional planning commission may appoint such employees as it may deem necessary for its work, whose appointment, promotion, demotion and removal shall be subject to the same general provisions as govern other corresponding civil employees of the parishes and municipality cooperating to engage in regional planning. The commission may also contract with planning experts, engineers, architects and other consultants for such services as it may require.

(b) The expenditures of a commission, exclusive of those made from funds received by gift, grants of federal, state and other such agencies, shall be within the amounts appropriated for the purpose by the cooperating local legislative bodies, which shall provide the funds, equipment, and accommodations necessary for the commission's work.

(c) Upon the preparation of the regional development plan, or of any phase or functional part thereof, or upon the preparation of an amendment or revision of the plan or any part thereof, or upon the preparation of any extension of or addition to the plan, the regional planning commission shall file such a plan, part of a plan, amendment, revision, extension or addition in the office of the state director of public works, and shall transmit copies of the same to the chief administrative officers, the legislative bodies and to the planning agencies of the parishes, municipalities or other local governments within its area, as well as to regional planning commissions established for adjoining areas. The regional planning commission shall make copies of the regional development plan or part of a plan available for general distribution or sale.

(d) The regional planning commission shall not be authorized to exercise the functions of any municipal planning commission or parish planning commission, where such are established within a regional planning area, except as hereinafter provided.

(e) In any municipality or parish located in the regional planning area as hereinabove defined, the legislative body of the municipality or parish may designate the regional planning commission as the municipal planning commission, or the parish planning commission, provided all requirements, if any, of the local home rule charters are met. Upon such designation the regional planning commission shall have all the powers and functions relating to making, adopting, amending, and adding to the master plan of the municipality or parish or part thereof, or relating to the planning of the municipality or parish as provided or granted by Louisiana Revised Statutes 33:101 through 33:119 inclusive or by other laws to the planning commission of the municipality or parish; and the master plan, its parts, amendments, and additions made and adopted by the designated commission for the municipality or parish shall have the same force and effect in the municipality or parish as though made and adopted by a municipal planning commission appointed by the municipality or a parish planning commission appointed by the parish.

1. In acting as the planning commission of the municipality or the parish, the designated regional planning commission shall follow the procedure specified by the provisions of Louisiana Revised Statutes 33:101 through 33:119 inclusive, and other laws relating to municipal or parish planning commissions. Any municipality or parish so designating a regional planning commission as its planning commission shall pay to the designated commission that portion of the expenses of the designated commission which is properly chargeable to the planning service rendered to the municipality or parish plan.

2. In cases where a municipality or a parish has a municipal or a parish planning commission functioning within a regional planning area, then the regional planning commission shall recommend measures for the coordination of all plans, and if appropriate, recommend plans for adoption by the said municipal or parish planning commission.

(f) To facilitate effective and harmonious planning of the region or metropolitan area, all parish and municipal legislative bodies, and all parish, municipal or other local planning agencies shall file with the regional planning commission, for its information, all parish or municipal plans, zoning ordinances, official maps, building codes, subdivision regulations, or amendments or revisions or any of them, as well as copies of their regular and special reports dealing in whole or in part with planning matters.

(g) Parish or municipal legislative bodies, or parish, municipal or other local planning agencies may also submit proposals for such plans, ordinances, maps, codes, regulations, amendments, or revisions, prior to their adoption, in order to afford an opportunity to the regional planning commission or its staff to study such proposals and to render advice thereon.

(h) The regional planning commission may request and accept grants of funds or services from the federal government or any of its agencies, from the state government or any of its agencies, or from parish, municipal or other local governments within their planning area, or from private sources. The parishes and municipalities are hereby authorized to appropriate funds for the purposes of the regional planning commission established for all or parts of their area. The books and accounts of the regional planning commission shall be public records open for public inspection, and shall show the amounts and sources of all receipts and the amounts of all disbursements.

(i) All public officials shall, upon request, furnish to the commission, within a reasonable time, such available information as it may require for its work. The commission, its members, officers, and employees, in the performance of their functions, may enter upon any land and make examinations and surveys and place and maintain necessary monuments and marks thereon. In general, the commission shall have such powers as may be necessary to enable it to fulfill its functions, promote planning, and in all respects carry out the purposes of this article.
(M.C.S., Ord. No. 25366, § 1, 6-20-13; M.C.S., Ord. No. 27292, § 1, 2-9-17)

Chapters 119–121

RESERVED

Chapter 122

PUBLIC TRANSIT VEHICLES*

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ARTICLE I. IN GENERAL

Sec. 122-1. Reserved.

Editor's note—M.C.S., Ord. No. 27764, § 1, adopted May 3, 2018, repealed § 122-1, which pertained to transit passenger waiting shelters and derived from Code 1956, § 60-2.1. The user's attention is directed to § 146-546 et seq.

Sec. 122-2. Railroad trains and streetcars prohibited from blocking the streets.

It shall be unlawful for the directing officer or the operator of a railroad train or streetcar to direct its operation or to operate it in such a manner as to prevent the use of any street for purposes of travel by vehicles or pedestrians as follows:

(1) For a period longer than five minutes by a stopped train or a switching operation.

(2) For a period longer than ten minutes by any movement other than in subsection (1) of this section.

(3) For a period longer than ten minutes cumulatively of any one hour period between the hours of 7:30 a.m. to 9:30 a.m. and 4:00 p.m. to 6:00 p.m. of any day except Saturdays, Sundays and legal holidays observed by either federal, state and city laws.

(Code 1956, § 38-134)

Sec. 122-3. Receiving, discharging passengers.

It shall be unlawful for any streetcar or bus to stop within an intersection or on a crosswalk for the purpose of receiving or discharging passengers.
(Code 1956, § 38-134)

Sec. 122-4. Display of signs.

There shall be posted in every streetcar and ferry boat cabin in the city a notice conspicuously placed and sufficiently large to be easily read by the passengers stating the acts which are prohibited and the officers of corporations or persons operating such streetcars or ferry boats shall post such notice and maintain it under the penalty herein provided.
(Code 1956, § 60-16)

Sec. 122-5. Spitting on streetcars or ferry boats prohibited.

It shall be unlawful for any person to spit on the floor or platform of streetcars in the city or the cabin of any ferry boat operating on the river.
(Code 1956, § 60-15)

Sec. 122-6. Repair of streets disturbed by railroad reconstruction.

The director of the department of streets shall require all street railroads immediately to place in good repair and condition all streets which have been disturbed by the railroads in their reconstruction work.
(Code 1956, § 60-1)

State law reference—Pavement and repair of streets, R.S. 45:323.

Sec. 122-7. Use of flat wheels on cars prohibited.

All streetcar lines or railroads are hereby prohibited from using flat wheels upon their cars.
(Code 1956, § 60-7)

Sec. 122-8. Smoking prohibited on public transit vehicles.

Smoking on any public transit vehicle is prohibited. Any driver of a public transit vehicle who permits such an offense shall be equally guilty of that offense under this section. Any violation of this section shall constitute a misdemeanor.
(Code 1956, §§ 60-17, 60-20)

Sec. 122-9. Playing of audio, video equipment on public transit vehicles prohibited.

Playing of radio receivers, or other audio or video equipment, except when used with an earphone attachment audible only to the person using the attachment, on any public transit vehicle is prohibited. Any driver of a public

transit vehicle who permits such an offense shall be equally guilty of that offense under this section. Any violation of this section shall constitute a misdemeanor.
(Code 1956, §§ 60-18, 60-21)

Cross references—Noise, § 66-136 et seq.; traffic and vehicles, ch. 154.

Sec. 122-10. Consumption of food and beverages on public transit vehicles prohibited.

Consumption of foodstuffs or beverages on any public transit vehicle, other than chartered transit service, is prohibited. It is unlawful for any driver of a public transit vehicle to permit such an offense. No metal or glass containers of any type, for the purpose of transporting, containing, or serving foodstuffs and/or beverages, shall be allowed on chartered transit vehicles. Nothing in this section shall be construed as to prevent a driver of any transit vehicle from consuming foodstuffs and/or beverages, while the transit vehicle is parked at the end of the transit line, and not in motion.
(Code 1956, § 60-22)

Cross reference—Food regulations, § 82-36 et seq.

Sec. 122-11. Concessions for handicapped passengers.

Passengers on any wheelchair lift-equipped public transit vehicle shall, when requested by the driver of that public transit vehicle, relinquish their seats above the vehicle's wheelchair lock mechanism to enable the driver to secure a handicapped passenger's wheelchair to the floor of the vehicle. Passenger aids on special elderly and handicapped transit service vehicles shall relinquish their seats to accommodate elderly or handicapped passengers, at the request of the driver of the transit vehicle. Any violation of this section shall constitute a misdemeanor.
(Code 1956, § 60-23)

Cross reference—Vehicles for hire, ch. 162.

Sec. 122-12. Impeding public transit operations prohibited.

It shall be unlawful for any person to impede public transit operations by creating a public nuisance; cause a distraction to the driver of any public transit vehicle, making it unsafe for the driver to operate the vehicle; damage transit property; or abuse the public transit vehicle driver or passengers. Any violation of this section shall constitute a misdemeanor.
(Code 1956, § 60-24)

Sec. 122-13. Legal fares and the payment thereof required.

It shall be unlawful for any passenger boarding any public transit vehicle to fail to pay or avoid the payment of the required fare or to use or offer for passage on any public transit vehicle any fraudulent transfer, ticket, pass, or payment token, or interfere with the collection of fares. Any driver of a public transit vehicle who permits such an offense shall be equally guilty of that offense under this section. Any violation of this section shall constitute a misdemeanor.
(Code 1956, § 60-25)

Sec. 122-14. Sale, barter, counterfeiting, or exchanging of transfer tickets prohibited.

(a) It shall be unlawful for any person to sell, barter, counterfeit, or exchange for any consider-

ation whatsoever, any transfer ticket, pass, payment token, or other instrument issued by any public transit agency, giving or purporting to give the holder of such transfer ticket or other instrument the right to ride or transfer, without payment of additional fare, from one transit vehicle to another transit vehicle.

(b) It shall be unlawful for any person to give away any transfer ticket, pass, or other such instrument to another person, for the purpose of enabling, or with the intent to enable the latter to use or offer for passage on any transit vehicle, or for any person not lawfully entitled thereto who shall receive any such transfer ticket, pass, or other instrument to use, attempt to use or offer it for passage on any public transit vehicle.

(c) The provisions of this section shall not relate to or in any way or manner affect the issuing and giving of transfer tickets, passes, or other such instruments by the duly authorized agents or employees of the agency operating public transit services to passengers lawfully entitled thereto.
(Code 1956, § 60-26)

Sec. 122-15. Enforcement of violations of sections 122-8 through 122-14 and 122-16.

The provisions of section 102-1, relative to the issuance of juvenile warning citations may be applicable for violations of sections 122-8 through 122-14 and section 122-16.
(Code 1956, § 60-26.1; M.C.S., Ord. No. 23665, § 1, 8-7-09)

Sec. 122-16. Ferry terminals—Prohibited activities.

It shall be unlawful for any person to engage in any of the activities herein below listed while within the confines of the ferry terminals located at Canal Street, Jackson Avenue, or in Algiers. Those activities which shall be unlawful, unless specifically approved by the executive director of the Crescent City Connection Division of the Louisiana Department of Transportation and Development are:

(a) *Offenses.*

(1) The destruction, injury, defacement, removal or disturbance in any manner of any building, sign, fence, gate, equipment, monument, marker, or other structure.

(2) Littering, as defined in section 138-2.

(3) Smoking, as defined in section 122-8, except as permitted in designated areas.

(4) The use of bicycles, skateboards, tricycles, and any other such vehicles, as well as motorbikes, go-carts, and other motorized vehicles in any of the ferry terminals or passenger walkways. Wheelchairs and baby carriages are permitted.

(5) Disturbing the peace, as defined in section 54-403, while on ferry terminal property.

(6) Solicitation, as defined in section 54-411.

(7) Possession of tools and/or markers or other instruments used in a manner causing destruction to property, equipment or facilities of the ferry terminals.

(b) *Penalties.* A violation of this section is punishable by municipal court, as follows:

(1) Any person who violates any subsections of (a) of this section shall be punished by a fine of not less than $50.00 or more than $500.00.

(2) Any person who violates subsections (a)(4) or (a)(7) shall surrender the item (vehicle, tool and/or marker) to the New Orleans Police Department or the Crescent City Connection Police Department to be used as evidence against the person found in possession of the item.

(3) In addition to the above penalties, the court may, in its discretion, order imprisonment for not more than three months for any offense of subsection (a)(1), (a)(4), (a)(5), or (a)(7) of this section.

(c) *Warning signs.* Signs shall be erected at each entrance to the ferry terminals lo-

cated at Canal Street, Jackson Avenue, and in Algiers citing the prohibitions enumerated in this section.

(M.C.S., Ord. No. 23665, § 1, 8-7-09)

Secs. 122-17—122-50. Reserved.

ARTICLE II. BUSES

Sec. 122-51. Certain buses prohibited in Vieux Carre.

(a) It shall be unlawful for any person to operate a bus having an overall length longer than 31 feet on any street in the Vieux Carre, except as provided for in the rules and regulations promulgated under section 162-942(d). Those buses with an overall length in excess of 20 feet and not greater than 31 feet shall use the streets of the Vieux Carre as provided for in section 162-942(d) of the City Code.

(b) For the purposes of this section, a bus shall be defined as any motor vehicle, excluding limousines, having an overall length in excess of 20 feet used for the purpose of transportation of passengers.

(c) For the purposes of this section, Vieux Carre shall mean the area within the lake side of Decatur Street, the downriver side of Esplanade Avenue, the river side of North Rampart Street and the downriver side of Canal Street. Therefore, all buses, regardless of the overall length, shall be permitted to use Decatur Street, North Rampart Street and Canal Street.

(Code 1956, § 38-142.1; M.C.S., Ord. No. 17,823, § 2, 10-17-96)

Cross reference—Specific street regulations, § 154-601 et seq.

Sec. 122-52. Operating at idle.

The operator of a bus shall not allow buses to operate at idle on the streets of the city for a period longer than 20 minutes, except for situations beyond the operator's control and as otherwise provided for in chapter 162 and section 162-942.

(Code 1956, § 38-143)

Sec. 122-53. Operating at idle in the Garden District.

The operator of a bus shall not allow buses to operate at idle on the streets of the Garden District, which is bounded by St. Charles Avenue, Jackson Avenue, Louisiana Avenue and Magazine Street, for a period longer than ten minutes, except for situations beyond the operator's control.

(Code 1956, § 38-143.1)

Sec. 122-54. Reserved.

Editor's note—M.C.S., Ord. No. 17,823, § 4, adopted Oct. 17, 1996, repealed § 122-54, which prohibited certain buses in Vieux Carre and derived from § 38-142 of the 1956 Code, as amended by M.C.S., Ord. No. 17,558, § 2, adopted June 6, 1996.

Secs. 122-55—122-85. Reserved.

ARTICLE III. RAILROADS*

DIVISION 1. GENERALLY

Sec. 122-86. Standing trains on streets, etc., prohibited.

The standing upon any public street or street crossing of any locomotive, engine, car or train of cars, within the city limits, or the obstructing of street crossings in any manner whatsoever by any of them, except so far as may be done while in motion, or the parking or assembling of cars, the making up of trains, the switching of cars, the cleaning of cars, the loading and unloading of cars, the watering of locomotives, the blowing out of locomotives and the doing of any and all kinds of yard work in any public street, public avenue or public alley (whether in the roadway, neutral ground or sidewalk thereof) or in any other public place in the city is hereby prohibited. The provisions of this section shall not be construed to apply to the necessary and proper handling of

*__State law reference—__Railroads, generally, R.S. 45:321 et seq.

cars on industrial switch tracks operated for service to particular industries under ordinances of the city.
(Code 1956, § 53-1)

State law reference—Railroads not to obstruct highways, R.S. 45:324.

Sec. 122-87. Provisions of drainage under tracks.

(a) The director of the department of public works shall compel all diesel and street railroad companies within the rate limits of the city to establish a system of drainage under their tracks so as to eliminate the stagnating of water caused by the construction of tracks having no underground outlet for water.

(b) Any diesel or street railroad company failing to comply and to carry out the provisions of this section after due notice from the director of the department of public works to the satisfaction of such officials shall be liable to a fine of not less than $10.00 nor more than $100.00 or to imprisonment for not less than ten days nor more than 90 days or both, in the discretion of the court having proper jurisdiction.
(Code 1956, § 53-3; M.C.S., Ord. No. 21480, § 2, 4-1-04)

State law references—Railroads not to impede drainage, R.S. 45:324; duty to relieve obstruction to natural drainage, R.S. 45:451 et seq.

Sec. 122-88. Removal of timbers, etc.

The different railroads throughout the city shall be required upon being notified by the director of the department of streets to cause to be removed, within 48 hours from the service of notice, all timbers or stringers of any description used in the construction of railroads and which may be declared by the director of the department of streets to be obstructions to a free and uninterrupted drainage. Such timbers or stringers shall in every case be replaced by iron bars or plates or by any material suitable for the purpose, under the direction of the director of the department of streets. Upon failure or neglect of any company to remove obstructions of the kind herein specified and within the time specified, the director of the department of streets shall have them removed as

soon as practicable thereafter at the risk and expense of the company.
(Code 1956, § 53-4)

State law references—Railroads not to impede drainage, R.S. 45:324; duty to relieve obstruction to natural drainage, R.S. 45:451 et seq.

Sec. 122-89. Construction and repair of streets, bridges or culverts.

(a) The construction or repair of all bridges or culverts over which railroad tracks are laid shall be performed and carried on to completion under the direction of the director of the department of streets and in accordance with specifications to be prepared or approved by the department of streets and kept on file in the office of the department.

(b) The director of the department of streets shall require that the construction and maintenance of city streets between or immediately adjacent to the rails of any railroad be in accordance with the provisions of R.S. 45:323. The director shall prepare typical plans and specifications of general applicability to the construction and maintenance of streets between railroad tracks and adjacent thereto in street areas set forth in R.S. 45:323 and he is authorized to modify such typical plans and specifications as may be necessary in unusual installations.

(c) Should the owner or operator of a railroad or street car or the grantee of a railroad switch track privilege fail to start repair of any roadway deficiency between or adjacent to his tracks in area specified herein as soon as practicable and not more than 30 days after notice thereof has been brought to his attention by the director of the department of streets or his agent, or fail to complete such correction in not more than 60 days after the notice, the director shall correct such deficiency or cause such to be corrected and the cost of such correction shall be borne by the owner of such tracks or by the grantee of the switch track franchise; provided, that the 30-day period and/or the 60-day period herein above specified may be extended by the director of the department of streets because of extenuating circumstances such as nonavailability of material, equipment or skilled manpower or other conditions beyond the reasonable control of the persons or legal entity required to repair the designated deficiency.
(Code 1956, § 53-5)

Sec. 122-90. New tracks or changes not to be laid without getting lines and levels from city.

It shall be unlawful for any railroad company running its tracks within the limits of the city to lay down new tracks or lower or raise the grade of any track without first procuring lines and levels from the director of the department of streets for the proper construction of such track. In case of any violations of the provisions of this section the director shall cause such track to be immediately conformed to the proper grade or level of the streets or levees upon which it is laid and in case the railroad company should refuse or neglect so to do when notified the director shall execute the provisions of this section and use such means as may be necessary for such purpose.
(Code 1956, § 53-6)

Sec. 122-91. Authority over grade separation overpasses and underpasses.

The director of the department of streets shall administer the maintenance and operation of grade separation overpasses and underpasses, except underpass drainage facilities, insofar as the interests of the city are concerned. The sewerage and water board shall administer the maintenance and operation of the drainage facilities of grade separation underpasses.
(Code 1956, § 53-28)

Sec. 122-92. When authority commences.

The authority of the director of the department of streets and of the sewerage and water board to administer the operation of grade separation overpasses and underpasses shall commence with the acceptance by the city of each grade separation project as it is completed.
(Code 1956, § 53-29)

Sec. 122-93. Placing torpedoes, etc., on track prohibited.

It shall be unlawful for any person to place on any railroad track of a passenger or freight railway

within the city any torpedo, cartridge or explosive material, with malicious intent to injure or frighten passengers or other citizens.
(Code 1956, § 53-7)

Sec. 122-94. Obstruction of tracks or other interference with railroad.

It shall not be lawful for any person to place any obstruction on the track of any railroad located or running in or through the city or unnecessarily to interfere with or obstruct the free passage of any car or to endanger the safety of any car or any person in any car running in or through the city.
(Code 1956, § 53-8)

Sec. 122-95. Exception for fire department.

The provisions of section 122-94 shall not in any way conflict with the privileges and right-of-way granted to fire engines, hook and ladder trucks, wagons carrying Babcock fire extinguishers and other vehicles belonging to the fire department.
(Code 1956, § 53-9)

Sec. 122-96. Children not to swing on outside of cars in motion.

It shall be unlawful for the parents or guardians of any minor child to allow such child to hang or swing on the outside of any car of any railroad within the limits of the city while it is in use or motion upon such road.
(Code 1956, § 53-10)

Sec. 122-97. Companies and their employees to enforce sections.

The companies owning the railroads and their employees shall enforce the provisions of sections 122-94 to 122-96.
(Code 1956, § 53-11)

Sec. 122-98. Stopping near tracks.

No person shall bring any automobile, auto truck, motorcycle or other motor-driven vehicle, animal-drawn vehicle, bicycle or any horse or other beast of burden to a stop at any place upon any track of any steam railroad in the city or within ten feet of the nearest rail of any railroad crossing in the city.
(Code 1956, § 53-36)

Sec. 122-99. Owners not to cause chauffeurs to violate law.

No owner of any automobile, auto truck, motorcycle or other motor-driven vehicle, animal-drawn vehicle, bicycle or any horse or other beast of burden shall knowingly cause or permit the chauffeur or driver thereof to violate any of the provisions of section 122-98.
(Code 1956, § 53-37)

Sec. 122-100. Applicability to police and fire departments and ambulances.

The provisions of sections 122-98 and 122-99 shall not apply to any member of the police or fire departments of the city when in the discharge of duty, nor to any owner or driver of any ambulance actually engaged in ambulance service.
(Code 1956, § 53-38)

Secs. 122-101—122-130. Reserved.

DIVISION 2. SWITCH TRACKS

Sec. 122-131. Nonliability of city.

The city shall not be liable or responsible for any damages resulting from any disturbance or obstacle in the use or location of switch tracks from any cause whatsoever. The city shall be indemnified by the grantee of any such switch track for any personal or property damage to itself or others, or to the public which may result from the negligent use, location or unsafe condition of such utilities or the operation thereof.
(Code 1956, § 53-25)

Sec. 122-132. Responsibility of officers, etc.

When a railroad or other corporation is found violating the provisions of this division, all of the officers or responsible managers or superintendents thereof shall be guilty of such violation.
(Code 1956, § 53-27)

Sec. 122-133. Exclusion.

The provisions of this division shall not apply to switch tracks connecting with the tracks of the Public Belt Railroad Commission of the city, when by the terms of the grant such switch tracks are to become the property of the city, and a part of the Public Belt Railroad Commission System.
(Code 1956, § 53-12)

Charter reference—Public Belt Railroad Commission, §§ 5-201 and 5-202.

Constitutional law reference—The Public Belt Railroad System, see La. Const., art. XIV, section 26.

Sec. 122-134. Special ordinance required.

It shall be unlawful for any railroad or other person to establish, construct, maintain or operate a switch track in any public place in the city without permission from the council, upon proper application by special ordinance, fixing the duration of the privilege granted, the consideration therefor and the terms of payment.
(Code 1956, § 53-13)

Sec. 122-135. Application for special ordinance.

Application for permission required by this division shall be made in writing to the council and shall be accompanied by blueprints, in quadruplicate, showing the proposed location of the track, section measurements, and other similar details and also all existing tracks, if any, and by whom claimed and to what railroad they are connected. Such measurements shall be made along the centerline between rails from the point of frog to the property line. One of the blueprints shall be kept by the director of the department of public works, one by the sewerage and water board, and one by the clerk of the council.
(Code 1956, § 53-14; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-136. Approval of plans.

Plans and specifications for the construction of new switch tracks or relaying of existing switch tracks in public places in the city shall be approved by the department of public works and the sewerage and water board.
(Code 1956, § 53-15; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-137. Bond required of grantee.

Every grantee of a switch track privilege shall furnish a good and solvent surety bond, in solido, in favor of the city satisfactory to the director of the department of public works in a sum equal to the aggregate of the annual payments during the term of the privilege, but in no event to be less than $500.00 or to exceed the sum of $3,000.00 and whenever the grantee shares the privilege with other parties a good solvent surety bond, in solido, must be furnished by the grantees including all the principals in the privilege granted and such bond shall guarantee the faithful performance of all the obligations of the grantees of such privilege set forth in the ordinance granting the privilege and especially those obligations defined by the provisions of this division.
(Code 1956, § 53-16; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-138. Restoration of sidewalks, etc., disturbed in construction.

All sidewalks, pavements and other public property torn up or disturbed in constructing, relaying or removing switch tracks shall be restored to their original good condition by the grantees of the switch track who shall likewise conform in all respects to the provisions of all other ordinances relative to the manner of making and restoring cuts in roadways and sidewalks pavements, especially the provisions of sections 146-436 through 146-459.
(Code 1956, § 53-17)

Sec. 122-139. Fee for privilege.

When the length of switch track is 300 feet or less in length the fee shall be $100.00 per annum per 100 feet or fraction thereof. When such switch track is more than 300 feet in length, the fee shall be at the rate of $50.00 per 100 feet or fraction thereof for all trackage in excess of 300 feet in length.
(Code 1956, § 53-18)

Sec. 122-140. Evidence of payment of fee.

The director of the department of public works shall file with the local freight agent of the railroad serving a switch track evidence that the

grantee of a switch track privilege has paid the annual fee required therefor. No railroad shall move railroad freight cars on any switch track located in public places without first having received a notice from the director that the annual fee as stipulated in section 122-139 has been paid by the grantee of the switch track privilege.
(Code 1956, § 53-19; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-141. Unlawful to switch car without evidence of payment of fee.

The moving of a railroad freight car or cars on a switch track by any railroad without first having obtained a certificate of evidence of payment of the switch track fee shall constitute a violation of this division, and each car so moved shall be considered a separate and distinct violation and punishable as such.
(Code 1956, § 53-20)

Sec. 122-142. Remedies in case of default of payment of fee.

If any payment of the switch track fee is not made at the date fixed by the ordinance granting the permission for a switch track, then all subsequent installments accruing under the terms thereof shall immediately, without demand or putting in default, become payable or, at the option of the director of the department of public works, such ordinance may be terminated and cancelled by a written notice to that effect addressed to the grantee. Such cancellation shall not release any indebtedness accruing prior to the date thereof or as long as the grantee remains and makes use of such utility under such ordinance or the bond given under this division.
(Code 1956, § 53-21; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-143. Maintenance required of grantee.

Every grantee of a switch track privilege shall, during the term of the privilege, maintain in good order and condition all portions of water, sewerage and drainage systems which lie beneath or in close proximity to the track maintained or operated by the grantee. The grantee shall likewise, during the term of the privilege, maintain in good order and condition all pavements between the rails of the switch track and for a distance of 18 inches on the outside of the rails.
(Code 1956, § 53-22)

Sec. 122-144. Relocation of tracks.

Permission to establish, construct, maintain or operate a switch track shall be granted under the express condition that such switch track, or any part thereof, shall be subject to prompt removal or relocation within 90 days at the pleasure of the city and at the expense of the grantee whenever the city or other governmental body therein shall find it necessary to request such removal or relocation for the purpose of the execution of public works or other franchises or permits of whatsoever nature or for any necessary public purpose on the site so occupied. The city shall not be liable for damages or reimbursements of any kind resulting from any such requested removal, adjustment or change or from any disturbance or obstacle of any nature, whether temporary or permanent, in the use or location of any such switch track or any part thereof from any cause whatsoever. The cost of all necessary changes of locations of such utilities, such as catchbasins, manholes, fire hydrants, water mains, sewer and drainage lines, gas mains, electric conduits, electric and telephone poles and similar installations or shifting thereof or relocation or removal of such utilities or any part thereof found to be necessary by the city shall be at the expense of the grantee. The grantee shall perform the entire work of relocation or removal of the switch track, or any part thereof, in connection therewith within a reasonable time not to exceed 90 days after notice thereof from the city or it shall be done at the grantee's expense. The determination of such necessity shall remain wholly discretionary with the council. Should a change of location or removal within a period of time shorter than 90 days be so deemed necessary by reason of public danger or peril then such switch track, or any part thereof, shall be removed or shifted at the grantee's expense in the earliest time possible or in default thereof the grantee shall suffer the removal or shifting at his expense or cost.
(Code 1956, § 53-23)

Sec. 122-145. Privilege nontransferable, etc.

The grantee of a switch track shall not exercise such privilege except in connection with his own business. He shall not lease such utilities or grant the right to use them to any other person and no charge shall be made to the city for using such utilities for public purposes. Switch track privileges shall be inalienable and not transferable. But a grantee may subrogate another to all rights and liabilities with respect to the privilege granted upon specific written notice to the director of the department of public works, giving the name and address of the person to whom the subrogation is made and securing the consent of the council.
(Code 1956, § 53-24; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Sec. 122-146. Removal of track on expiration of privilege.

The grantee shall notify the council, in writing, 60 days prior to the expiration of the term of any switch track privilege granted under the provisions of this division if the grantee desires to renew the privilege. If the application for renewal of the utility privilege is not received by the council by the time stated the director of the department of public works shall notify the grantee to remove the switch track from the public place and to restore the location to a condition satisfactory to the city within 30 days from such notice and if the grantee shall fail to do so the city engineer shall have such switch track removed from the public place and restore the location in question to a satisfactory condition. The cost of such removal and restoration shall be borne by the grantee.
(Code 1956, § 53-26; M.C.S., Ord. No. 21480, § 2, 4-1-04)

Secs. 122-147—122-175. Reserved.

ARTICLE IV. STREETCARS*

Sec. 122-176. Fenders, guards required.

Every person controlling, operating or owning any street railroad in the city shall equip and provide every car used on such street railroad with fenders of steel and of the basket kind or any other device that might prove superior, which shall be substantially attached to the front end thereof so as to guard passengers and pedestrians from being injured or thrown under the wheels in case of a collision or other accident. The style or kind of fender or guard shall be approved by the council.
(Code 1956, § 60-3)

State law reference—Fenders, requirement, R.S. 45:691.

Sec. 122-177. Operation without fenders.

No person operating and using any street railroad car in the city shall allow or in any way permit it to be used on any street railroad in the city without first equipping and providing it with fenders as prescribed in section 122-176.
(Code 1956, §§ 60-4, 60-5)

Sec. 122-178. Ventilation of cars.

It shall be unlawful for any street railroad company to run any car on the streets of the city unless it is provided with proper ventilators affording a ventilation of at least four square feet.
(Code 1956, § 60-8)

Sec. 122-179. Cars to be cleaned daily.

Any person operating street passenger railway cars within the limits of the city shall cause each car in use on such street railway to be thoroughly cleansed inside with disinfectants at least once a day.
(Code 1956, § 60-9)

Sec. 122-180. Department of health to enforce; inspections.

The department of health shall enforce the provisions of section 122-179 and prosecute all persons charged with violating them and to that end its officers, members, agents, employees, inspectors and appointees shall have the right to enter any premise or place or any car, conveyance or other vehicle in the city for the purpose of inspection for violation hereof.
(Code 1956, § 60-12)

*Cross reference—Streets, sidewalks and other public places, ch. 146.

Sec. 122-181. Responsibility for violations.

(a) When an association of individuals is charged with the violation of any of the provisions of section 122-179, each individual of such association of individuals or, if a foreign association of individuals, the local agent or person locally in charge thereof, shall be deemed to represent such association of individuals for the purpose of enforcing such sections and shall be held responsible and punishable for each violation thereof.

(b) When a firm is charged with such violation each member thereof and, if a foreign firm, the local agent or person locally in charge of such firm for the purpose of enforcing this article shall be held responsible and punishable for each violation thereof.

(c) When a corporation shall be charged with such violation, the president or, in his absence, the vice-president or, in the absence of both, the officer or individual in charge of such corporation or, if a foreign corporation, the local agent or person locally in charge thereof shall be deemed to represent such corporation for the purpose of enforcing this article and shall be held responsible and punishable for each violation thereof.
(Code 1956, § 60-13)

Chapters 123–125

RESERVED

Chapter 126

SCHOOLS*

Article I. In General

Secs. 126-1–126-30. Reserved.

Article II. Payments in Lieu of Taxes

Sec. 126-31. Payments to school board in lieu of taxes for housing authority.

*Cross references–Scholarships for Tulane, § 2-33; warning citations for juveniles, § 102-1.
State law reference–Schools generally, R.S. 17:1 et seq.

ARTICLE I. IN GENERAL

Secs. 126-1—126-30. Reserved.

ARTICLE II. PAYMENTS IN LIEU OF TAXES

Sec. 126-31. Payments to school board in lieu of taxes for housing authority.

There shall be paid annually from the general fund of the city to the parish school board such amount as would represent the proportionate share of the parish school board of payments in lieu of taxes made by the housing authority to the city. This payment to the parish school board shall be made annually by and not later than July 1 of every calendar year.
(Code 1956, § 57-1)

Chapters 127–129

RESERVED

Chapter 130

SECONDHAND GOODS*

Article I. In General

Sec. 130-1. Hours shops to be closed.
Sec. 130-2. Due date for reports following holidays.
Sec. 130-3. Police to furnish report blanks.
Sec. 130-4. Purchases not to be made from certain classes of persons.
Sec. 130-5. Duty to have arrest made when article tendered is believed stolen.
Sec. 130-6. Purchase of copper air conditioning parts.
Secs. 130-7—130-35. Reserved.

Article II. Secondhand Goods Dealers

Division 1. Generally

Sec. 130-36. Definitions.
Sec. 130-37. Records required.
Sec. 130-38. Pawnshops excepted.
Sec. 130-39. Regulation of secondhand goods transfer.
Sec. 130-40. Reports to council.
Secs. 130-41—130-50. Reserved.

Division 2. Secondhand Motor Vehicle Body Parts Dealers

Sec. 130-51. Definitions.
Sec. 130-52. Permit required.
Sec. 130-53. Denial, hearing.
Sec. 130-54. Regulations.
Sec. 130-55. Retention of purchases.
Sec. 130-56. Reports.
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Secs. 130-58—130-65. Reserved.

Division 3. Secondhand Jewelry Dealers

Sec. 130-66. Definitions.
Sec. 130-67. Permit required.
Sec. 130-68. Denial, hearing.
Sec. 130-69. Regulations.
Sec. 130-70. Retention of purchases.
Sec. 130-71. Reports.
Secs. 130-72—130-100. Reserved.

Article III. Pawnbrokers

Sec. 130-101. Definitions.
Sec. 130-102. Buy-sell agreements; pawn transactions in general.
Sec. 130-103. Regulations for secondhand jewelry dealers.
Sec. 130-104. Compliance with law.
Sec. 130-105. Records to be kept, entries required.
Sec. 130-106. Information furnished to police.

*__Cross references—__Pawnshops, Comprehensive Zoning Ordinance, art. 5, §§ 12.2(29), 13.2(28); businesses, ch. 30; peddlers, solicitors and itinerant vendors, ch. 110.

Secs. 130-107—130-135. Reserved.

Article IV. Junkyards

Sec. 130-136. Use of public places prohibited.
Sec. 130-137. Enclosure.
Sec. 130-138. Location restrictions.
Sec. 130-139. Requirements for disposing of motor vehicles with gasoline tanks.

ARTICLE I. IN GENERAL

Sec. 130-1. Hours shops to be closed.

The shops and places mentioned in this chapter shall be kept closed from the hours of 7:00 p.m. to 7:30 a.m., except on Saturdays and during the month of December, when the hour of closing may be extended to 10:00 p.m.
(Code 1956, § 44-8)

State law reference—Similar provisions, R.S. 37:1790, 37:1868.

Sec. 130-2. Due date for reports following holidays.

If any report required by this chapter would have to be filed on any legal holiday, such report shall be due on the next business day following such holiday between the hours mentioned in section 130-1.
(Code 1956, § 44-9)

Sec. 130-3. Police to furnish report blanks.

The proper blanks for the reports required by this chapter shall be furnished at the office of the superintendent of police, on application.
(Code 1956, § 44-10)

Sec. 130-4. Purchases not to be made from certain classes of persons.

It shall be unlawful for any owner, keeper, agent or person representing any such owner or proprietor of any secondhand store, pawnshop or loan office to buy, pawn, pledge or exchange any article from any minor under the age of 18 years, from a person appearing to be intoxicated, from a person known to be a notorious thief or from a person known to have been convicted of larceny or burglary.
(Code 1956, § 44-11)

State law reference—Similar provisions, R.S. 37:1802, 37:1804, 37:1864.2.

Sec. 130-5. Duty to have arrest made when article tendered is believed stolen.

If any person shall tender for sale, pawn or exchange any article to the owner, keeper, agent or person representing such owner, proprietor or keeper of any secondhand store, pawnshop or loan office and they have good reason to believe that such article was stolen, they shall have the person so tendering the article immediately notify the police department.
(Code 1956, § 44-12)

State law reference—Similar provisions, R.S. 37:1805.

Sec. 130-6. Purchase of copper air conditioning parts.

It shall be unlawful for any person, other than a person who purchases from a licensed wholesale or retail dealer, or who purchases as a consumer from a licensed air conditioning service business, to purchase copper air conditioning parts without recording a description of the part to be purchased as well as the name, sex, color, age, general description, place of residence, and proof that the person offering the part for sale has produced valid photographic identification issued by either the state, another state, or by the United States military which bears a likeness of the person offering the part for sale. Such proof shall consist of the identification card number and the name of the issuing entity. If the person, offering the part for sale cannot produce such photographic identification, the purchaser shall take a thumbprint of the person offering the part for sale. The original thumbprint shall be taken for the receipt of sale retained by the purchaser. The original thumbprint and the record of required information, relative to the person offering the part for sale, shall be made available to the superintendent of police upon demand.
(Code 1956, § 44-15)

Secs. 130-7—130-35. Reserved.

ARTICLE II. SECONDHAND GOODS DEALERS*

DIVISION 1. GENERALLY

Sec. 130-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cemetery artifact means any object produced or shaped by human workmanship or tools, including ornaments of archaeological, historical, cultural and/or sentimental significance or interest, which may be used to memorialize the dead and shall include but not be limited to all cemetery items, objects, properties, including but not limited to any type of religious or sentimental addition and/or adornment, inside or outside of a tomb, gravesite, plot, mausoleum, vault and/or interment location, whether placed privately or by assignment, regardless of monetary worth, age, size, shape or condition, including, but not limited to, statues, bricks, signage, plaques, tablets, urns, pots, planters, benches, chairs, crosses or other religious symbols, vases, gates, fences, or any portions thereof.

Secondhand dealer or *store* means every person or store in this city engaged in the business of buying, selling, trading in, or otherwise acquiring or disposing of used or secondhand property, including but not limited to jewelry, silverware, diamonds, precious metals, furniture, pictures, objects of art, cemetery artifacts, mechanic's tools, carpenter's tools, parts of motor vehicles, including, but not limited to: frames, engine blocks, transmission housings, doors, fenders, hoods, trunks, header panels, motor vehicle hubcaps, vehicular batteries, vehicular sound equipment, such as radios, CB radios, stereos, speakers, cassettes, compact disc players and similar vehicular audio supplies. The provisions of this part shall not apply to: (1) dealers in coin and currency, dealers in antiques, nor to gun and knife shows or other trade and hobby shows; (2) persons solely engaged in the business of buying, selling, trading in, or otherwise acquiring or disposing of motor vehicles as a complete unit, not in parts; (3) persons solely engaged in the business of buying or selling new motor vehicle body parts; (4) private residential sales commonly known as "garage sales" or "yard sales" as long as such sales take place at a residential address; or (5) any bona fide charity possessing a valid exemption under Section 501(c)(3) of the Internal Revenue Service Code.

(Code 1956, § 44-4; M.C.S., Ord. No. 19,114, § 1, 2-18-99; Ord. No. 20,096, § 1, 4-5-01)

Cross references—Definitions generally, § 1-2; antique dealers, § 30-1701 et seq.

State law reference—Definitions, R.S. 37:1861, 37:1861.1.

Sec. 130-37. Records required.

(a) Every secondhand dealer except those contained in division 2 of this article shall be required to maintain a book or ledger setting forth each purchase of secondhand or used merchandise when the value of any single piece of merchandise or article received shall be $25.00 or more, for each single transaction. The price at which a piece of merchandise is offered for sale by a secondhand dealer shall be considered prima facie evidence of the value of the piece of merchandise. Each ledger entry shall be entered at the time of each transaction and shall contain an accurate description in the English language of the merchandise or article received including serial numbers of such objects, if distinguishable, along with the amount paid therefor.

(b) The name, address, sex, race, height, weight, and driver's license number of the person selling or delivering such merchandise or articles to the dealer shall be obtained and included with each ledger entry. Records of each purchase shall be preserved for a period of at least three years.

(c) Every person, licensed under the provisions of this article, shall make out and deliver to the superintendent of police, every day before the hour of 12:00 noon, a legible and correct copy of the entries in the book during the previous day. The name given by the person making a sale shall be furnished the superintendent of police when they specially request it.

(Code 1956, § 44-6; Ord. No. 20,096, § 1, 4-5-01)

State law reference—Similar provisions, R.S. 37:1864, 37:1866.

*__Cross references—__Sales and use tax, § 150-441 et seq.; occupational license tax, § 150-951 et seq.

Sec. 130-38. Pawnshops excepted.

The provisions of this division shall not apply to pawnshops that are licensed under R.S. 37:1781 et seq.

(Code 1956, § 44-14)

State law reference—Similar provisions, R.S. 37:1800, 37:1867.

Sec. 130-39. Regulation of secondhand goods transfer.

(a) *Definitions.*

(1) As used in this section, "junk" means any and all secondhand property, all ferrous metals, all nonferrous metals and alloys, including aluminum, brass, bronze, copper, or zinc, in any form, including wire, cable, bars, ingots, rods, tubes, pipes, wire scraps, clamps, connectors, electrical components, irrigation components, air conditioning unit components, and ornamental nonferrous items, regardless of the condition or length of such metal and whether or not it is mixed or conjoined with any other substances, or parts or portions thereof.

(2) As used in this section, "scrap metals and alloys" includes, but is not limited to, materials and equipment commonly used in construction, agricultural operations and electrical power generator, railroad equipment, oil well rigs, nonferrous materials, stainless steel, and nickel which are offered for sale to any junk dealer, but does not include scrap iron, household generated waste, or aluminum beverage containers.

(3) As used in this section, "junk dealer" includes any person engaged in the business of buying, selling and dealing in junk, any person purchasing, gathering, collecting, soliciting or traveling about from place to place procuring junk, and any person operating, carrying on, conducting or maintaining a junk yard or place where junk is gathered together and stored or kept for shipment, sale or transfer. All "junk dealers" must possess a current Occupational License from the parish in which the person identifies as the domicile of his business.

(4) As used in this section, "junk yard" includes any yard, plot, space, enclosure, building or any other place where junk is collected, stored, gathered together and kept.

(5) As used in this section, "storm drainage materials" includes catch basin covers or any other components of the city's storm drainage system.

(6) As used in this section, "utility manhole covers and frames" includes manhole covers and frames labeled "electric," "communications," "water," or "sewer."

(b) *Exclusions.* This section shall not apply to any of the following:

(1) Secondhand furniture merchants.

(2) Pawnbrokers.

(3) Secondhand car dealers or merchants in connection with automobile and motor vehicle sales agencies but not carried on and conducted in conjunction with a junk yard.

(4) Persons engaged in the business of selling new automobile tires or batteries or other equipment taking in part payment used articles of the same kind and thereafter selling or disposing of the same.

(5) Secondhand oil well supply and equipment dealers not conducting or carrying on their business in connection with a junk yard.

(6) Secondhand clothing merchants.

(7) Any person who buys or sells junk acquired in the conduct of any business other than that of a junk dealer.

(8) Those transfers of junk by a junk dealer when the payment for the junk is by check issued to the company represented as being the owner of the junk.

(9) Junk purchased or received from another junk dealer who has recorded, reported, and held the material as required. The purchase or receipt shall also be exempt from further holding or reporting provided that the selling party gives the buyer written assurance of this fact. The seller shall be held responsible for any failure to report or hold.

(c) *Junk dealer records.*

(1) Every junk dealer is required to keep a written record of all purchases or acquisitions of junk, which shall contain all of the following:

(i) The name, address, and phone number of the seller;

(ii) The place and date of each purchase or acquisition;

(iii) A description of the item or items of junk purchased or acquired, including the item type and quantity or weight, and identification number, if visible;

(iv) A photocopy of the occupational license of the seller, a photocopy of the driver's license or state-issued identification card of the seller and the vehicle license plate number including the state of issue of any motor vehicle used in transporting the junk to the junk dealer's place of business; and

(v) If the person from whom the material is obtained does not possess a valid government-issued photo identification that matches the appearance of the person, the purchaser, collector or dealer shall take and maintain, in a manner that cross references to the written record, a photograph of the face of the person, along with a reasonably accurate record of the person's height and weight.

(vi) If the junk dealer is unable to obtain the information required by this subsection from the person from whom the material is to be obtained, the junk dealer shall not complete the transaction.

(2) Every junk dealer selling junk is required to keep a written record of all sales, which shall contain all of the following:

(i) The name, address, phone number parish of occupational license, and occupational license number of the purchaser;

(ii) The place and date of each sale; and

(iii) A description of the item or items of junk sold, including the item type and quantity or weight, and identification number, if visible.

(d) *Inspection of records.* The information contained in the written record shall be submitted by the purchaser, collector of, or dealer to the New Orleans Police Department, in a manner prescribed by the superintendent of police. Every junk dealer shall, during normal business hours, allow periodic inspection of any premises maintained and any junk thereon for the purpose of determining compliance with the recordkeeping requirements of this section, and shall during those hours produce its records of transfers and all property purchased incident to those transactions which is in the possession of the junk dealer for inspection by any of the following persons:

(1) Any officer holding a warrant authorizing him or her to search for personal property;

(2) Any person appointed by the sheriff of any parish or appointed by the head of the police department of any city;

(3) Any officer holding a court order directing him or her to examine the records or property;

(4) The director of the department of public works, or his designee; or.

(5) The director of the department of safety and permits, or his designee.

(e) *Records; preservation.* Every junk dealer shall preserve the written record required by this section for at least three years after making the final entry of any transfer of junk or scrap metals and alloys as defined in this section.

(f) *Violations; offenses; punishment.*

(1) Any junk dealer who fails in any respect to keep the written record required by this section, or to set out in that written record any matter required by this section to be set out therein, is guilty of a misdemeanor.

(2) Any junk dealer who makes, or causes to be made, any false or fictitious statement in any written report required by this section is guilty of a misdemeanor.

(3) Any junk dealer who transfers junk without an Occupational License shall be guilty of a misdemeanor.

(4) Any junk dealer who refuses, upon demand, to exhibit the written record required by this section, or who destroys that record within three years after making the final entry of any purchase or sale of junk therein, is guilty of a misdemeanor.

(5) Any knowing and willful violation of this section shall be punishable by a fine of five hundred dollars ($500), or by imprisonment for up to six (6) months, or by both fine and imprisonment.

For a second offense, in addition to any other sentence imposed pursuant to this paragraph, the court may order the defendant to stop engaging in business as a junk dealer for a period not to exceed 30 days.

(g) *Property suspected of being stolen; peace officer placement of hold on property; rights, duties and liabilities of junk dealer; costs.*

(1) The junk dealer shall not sell, transfer or otherwise dispose of any brass or copper for a minimum of seven days after the date on which it is obtained. In the event that the junk dealer is notified by an electric utility of the theft of copper or aluminum, then the material must be retained for an additional 30 days. The junk dealer shall not sell, transfer or otherwise dispose of any storm drainage materials or utility manhole covers and frames for a minimum of seven days after the date on which it is obtained. In the event that the junk dealer is notified by the sewerage and water board, the city, or any utility of the theft of storm drainage materials or utility manhole covers and frames, then the material must be retained for an additional 30 days. Whenever any peace officer has probable cause to believe that property in the possession of a junk dealer is stolen, in lieu of seizing the property, the peace officer, at his or her option, may place a hold on the property for a period not to exceed 90 days. When a peace officer places a hold on the property, the peace officer shall give the junk dealer a written notice at the time the hold is placed, describing the item or items to be held plus the case number. During that period the junk dealer shall not release or dispose of the property, except pursuant to a court order or upon receipt of a written authorization signed by any peace officer who is a member of the law enforcement agency of which the peace officer placing the hold on the property is a member. Except as specifically set forth in this section, a junk dealer shall not be subject to civil liability for compliance with this section.

(2) Whenever property that is in the possession of a junk dealer is subject to a hold and the property is required by a peace officer in a criminal investigation, the junk dealer, upon reasonable notice, shall produce the property at reasonable times and places or may deliver the property to any peace officer upon the request of any peace officer who is a member of the law enforcement agency of which the peace officer placing the hold on the property is a member.

(3) Whenever property that is in the possession of a junk dealer is subject to a hold and the property is no longer required for the purpose of criminal investigation, the law enforcement agency that placed the hold on the property shall undertake the following:

(i) With respect to the property being held, if the law enforcement agency has no knowledge of the property on hold being reported as stolen, the property shall be released upon written notice to the junk dealer. The notice shall be provided in a timely fashion.

(ii) If the law enforcement agency has knowledge that the property has been reported stolen, the law enforcement agency shall notify the person who reported the stolen property of the name and address of the junk dealer holding the property and authorize the release of the property to that person. The law enforcement agency that placed the property on hold shall release the hold after 60 days has elapsed following the delivery of the notice to the person who reported the property stolen.

(iii) If a victim seeks to recover property that is subject to a hold, the junk dealer shall advise the victim of the name and badge number of the peace officer who placed the hold on the property and the name of the law enforcement agency of which the officer is a member. If the property is not required to be held pursuant to a criminal prosecution the hold shall be released.

(iv) Upon conviction of any person for the theft of property placed on hold pursuant to this section, the court shall order the defendant to pay the junk dealer reasonable costs for storage of the property.

(h) *Refillable stainless steel or aluminum alloy beer kegs; indicia of ownership.*

(1) Except as provided in subsection (2), no junk dealer may purchase or receive refillable stainless steel or aluminum alloy beer kegs marked with an indicia of ownership from any person or entity other than the indicated owner. For purposes of this section, "indicia of ownership" means words, symbols, or registered trademarks printed, stamped, etched, attached, or otherwise displayed on the exterior surface of the beer keg that reasonably identifies the owner.

(2) If the seller is not the indicated owner, a junk dealer may purchase or receive refillable stainless steel or aluminum alloy beer kegs only if the seller or transferor provides a receipt from the indicated owner verifying the seller's current ownership or a document indicating that the seller or transferor is authorized by the indicated owner to sell or transfer the beer kegs. Copies of these documents shall be maintained by the junk dealer as part of the written record of the transaction.

(i) *Materials marked or engraved as owned by city government or other political subdivision.*

(1) A junk dealer shall not purchase any storm drain materials or utility manhole covers and frames that are marked with the name and/or initials of a political subdivision or otherwise identified as the property of a political subdivision. The junk dealer shall immediately notify NOPD of any such attempted sale.

(M.C.S., Ord. No. 22600, § 1, 4-19-07; M.C.S., Ord. No. 22824, § 1, 10-4-07; M.C.S., Ord. No. 23275, § 1, 11-6-08; M.C.S., Ord. No. 28053, § 1, 4-11-19)

Sec. 130-40. Reports to council.

(a) A preliminary report from the New Orleans Police Department shall be submitted to the city council no later than April 30, 2008, regarding the effect that M.C.S., Ordinance No. 22600 has had on reduction of incidence of scrap-metal thefts and on arrest and convictions of persons for theft of scrap metal. This report shall be included as a special order of business at the first regular council meeting of May 2008.

(b) It shall be the duty of the chief administrative officer (CAO), or a person designated by the CAO, to submit a written report to the city council regarding the effect that M.C.S, Ordinance No. 22600 has had on business and the scrap-metal industry in New Orleans.

(c) It shall be the duty of the superintendent of police, or a person designated by the superintendent, to submit a written report to the city council regarding the effect that M.C.S., Ordinance No. 22600 has had on reduction of incidence of scrap metal thefts and on arrests and convictions of persons for theft of scrap metal.

(d) The reports required in paragraphs (b) and (c) shall be submitted no later than September 26, 2008. The clerk of council shall schedule these reports as a special order of business at the first regular council meeting of October 2008.
(M.C.S., Ord. No. 22824, § 2, 10-4-07)

Secs. 130-41—130-50. Reserved.

DIVISION 2. SECONDHAND MOTOR VEHICLE BODY PARTS DEALERS*

Sec. 130-51. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Permittee means any person who has received a secondhand motor vehicle body parts permit from the city.

Secondhand motor vehicle body parts are used parts of motor vehicles and other reusable or resalable parts that by federal, state or city laws, rules or regulations possess or should possess an identifying number on the motor vehicle unit or part. These motor vehicle parts shall include frames, engine blocks, transmission housings, doors, fenders, hoods, trunks, header panels, motor vehicle hubcaps, vehicular batteries, vehicular sound equipment, such as radios, CB radios, stereos, speakers, cassettes, compact disc players and similar vehicular audio supplies.

Secondhand motor vehicle body parts dealer means any person who engages in the business of buying, selling, trading in or otherwise acquiring or disposing of secondhand motor vehicle body parts from a seller.

Seller means any person who offers for sale, trade, barter, remanufacture or exchange any used or secondhand motor vehicle body part to a secondhand motor vehicle body parts dealer.
(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-52. Permit required.

Any person engaging in business as a secondhand motor vehicle body parts dealer shall annually apply to the director of the department of finance for a permit on a form provided by the department. The application shall include the complete name and address of the place of business; the name, address, social security number and birth date of the owners, proprietors, partners or principal incorporators owning ten percent or more of the business, and a sworn statement with fingerprints as required by the department of police showing that the applicant or any of the parties listed on the application has not been convicted of either a felony under the laws of the United States or any state or of a local misdemeanor that is related to the applicant's business within the previous five years. The department of police shall provide to the director of the department of finance all available information regarding any charges or arrests it may possess regarding the applicant. The findings of any such charge, arrest or conviction, or the filing of false or incomplete information shall be sufficient cause for the denial of this permit. This permit shall be valid for one calendar year. Upon approval of the application by the department of finance and payment of the permit fee as provided by section 30-1281 et seq., a permit shall be issued to the applicant. The director of the department of finance shall immediately

*__Editor's note—__Ord. No. 20,096, § 1, adopted April 5, 2001, renumbered ch. 130, art. II, div. 2, pertaining to secondhand jewelry dealers, as ch. 130, art. II, div. 3, and added a new ch. 130, art. II, div. 2. These new provisions were intended for use as §§ 130-50—130-56, but to preserve the style of the Code, at the editor's discretion, these provisions were set out as §§ 130-51—130-57 herein.

revoke the permit for any false, incomplete or inaccurate information provided the city. The applicant may not apply or reapply for a permit for at least one year from said revocation.
(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-53. Denial, hearing.

If the department of finance denies the issuance of a secondhand motor vehicle body parts dealer permit it shall give written notice to the applicant at the business address listed on the application. The applicant may then file with the department of finance a written request for a hearing to appeal the denial. This request shall be filed by the applicant within five working days from the date that the applicant received the notice of denial. The hearing shall be held before the director of the department of finance or his designated representative.
(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-54. Regulations.

In addition to the provisions of this article, the following regulations shall apply to secondhand motor vehicle body parts dealers:

(1) It shall be unlawful for any owner, keeper, agent or person representing any such owner or proprietor of any secondhand motor vehicle body parts dealer or store to buy, pawn, pledge or exchange any article from any minor under the age of 18 years, from a person appearing to be intoxicated, from a person known to be a notorious thief or from a person known to have been convicted of larceny or burglary.

(2) It shall be unlawful for any secondhand motor vehicle body parts dealer to buy from a seller any motor vehicle body part between the hours of 7:00 p.m. and 7:00 a.m. daily.

(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-55. Retention of purchases.

It shall be unlawful for the permittee to sell, exchange, barter, remove from their place of business or permit to be redeemed, any motor vehicle body parts that have been brought, exchanged, pledged, or deposited by, to or with them from a seller for a period of 30 days from the date of purchase. This provision shall not apply regarding the purchase from a licensed motor vehicle body parts dealer or through a public auction of motor vehicles or parts.
(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-56. Reports.

(a) It shall be the duty of every licensed secondhand motor vehicle body parts dealer to make out a report which itemizes each item of motor vehicle body parts either bought, bartered, sold or otherwise acquired from a seller.

(b) Such reporting form shall be on carbonless duplicating paper with one original and two copies. The superintendent of police shall describe the manner and detail of such reports and make them available to each permittee. These reports shall include, but not be limited to, the following items of information:

(1) Consecutively numbered forms.

(2) Date of transaction.

(3) Time of transaction.

(4) Name of permittee's clerk or agent.

(5) Name of seller.

(6) Race, sex, height, weight, hair color and eye color of seller.

(7) Address and phone number of seller.

(8) Seller's birth date.

(9) Seller's Social Security number.

(10) Signature of seller.

(11) Dollar amount of transaction.

(12) A complete and accurate description of each item received by the permittee including:

a. The type of vehicle, model year, manufacturer,

b. Description of vehicle part, including color, identification number, and any other identifying features.

(13) A declaration signed by the permittee that the seller has produced valid photographic identification issued by

either the state, another state or by the United States military which bears a likeness of the seller.

(14) Seller's identification card number and issuing entity.

(15) A declaration of ownership stating that the seller is in rightful possession of the items being offered to the permittee.

(16) The permittee shall cause to be made a right thumbprint of the seller.

(17) The permittee shall cause to be made on each motor vehicle part included on the reporting form, a permanently affixed indelible number, which shall be the individual voucher number on the reporting form provided by the department of police. The permittee shall make available to the department of police or any authorized city employee any motor vehicle parts and forms requested during normal business hours for inspection to determine that the procedures are being met.

(c) The permittee shall then deliver the original copy of this report to the superintendent of police within 24 hours of the transaction. One copy shall be given to the seller and the remaining copy shall be retained by the licensee on the business premises for a period of at least three years and shall be made available to the superintendent of police who shall then cause them to be examined from time to time during normal business hours for the purpose of accounting for each report. This report shall be filled out in its entirety.
(Ord. No. 20,096, § 1, 4-5-01)

Sec. 130-57. Penalties.

The penalty for knowingly reporting false information on this report or incomplete information or the intentional failure to report transactions or not following the procedures or regulations as required by this division shall count as one offense for each instance or for each motor vehicle body part included, when more than one motor vehicle body part is transferred in the same transaction.

First offense—A minimum fine of $250.00 and a maximum fine of $500.00, and up to six months imprisonment, and the revocation of the permit to operate as a secondhand dealer for a one-year period.

Second offense—A minimum fine of $500.00 and up to six months imprisonment, and the revocation of the permit to operate as a secondhand dealer for a two-year period.

Third offense and any additional offenses—A minimum fine of $500.00 and a minimum of one month imprisonment with up to six months imprisonment and the revocation of the permit to operate as a secondhand dealer for a minimum three-year period.
(Ord. No. 20,096, § 1, 4-5-01)

Secs. 130-58—130-65. Reserved.

DIVISION 3. SECONDHAND JEWELRY DEALERS*

Sec. 130-66. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Permittee means any person who has received a secondhand jewelry permit from the city.

Precious or semiprecious metals or stones includes, but is not limited to, alexandrite, amethysts, coral, diamonds, emeralds, garnets, gold, ivory, jade, opals, pearls, platinum, rubies, sapphires, silver, topaz, turquoise and other such metals, minerals or stones that are customarily

*__Editor's note—__Ord. No. 20,096, § 1, adopted April 5, 2001, renumbered this division, formerly ch. 130, art. II, div. 2, as ch. 130, art. II, div. 3, and added a new ch. 130, art. II, div. 2, pertaining to secondhand motor vehicle body parts dealers. The new provisions are set out above.

Cross reference—Transient vendors, § 110-256 et seq.

regarded as such. Numismatic items or nationally recognized manufactured bars or bullion that are not mounted in a jewelry setting shall not be included in this definition.

Secondhand jewelry dealer means any person who engages in the business of buying, selling, trading in or otherwise acquiring or disposing of used or secondhand precious or semiprecious metals or stones from a seller.

Seller means any person who offers for sale, trade, barter, remanufacture or exchange any used or secondhand precious or semiprecious metal or stone to a secondhand jewelry dealer. This term shall not be construed to include those jewelry transactions that occur from licensed retail or wholesale sources as well as garage sales, consigned merchandise, estate sales or successions, auctions, trade-ins, remountings and similar trade sources that are documented by invoices, court records or manufacturer's shipping records.
(Code 1956, § 46-7.1)

Cross reference—Definitions generally, § 1-2.

Sec. 130-67. Permit required.

Any person engaging in business as a secondhand jewelry dealer shall annually apply to the director of the department of finance for a permit on a form provided by the department. The application shall include the complete name and address of the place of business; the name, address, social security number and birthdate of the owners, proprietors, partners or principal incorporators and a sworn statement showing that the applicant or any of the parties listed on the application has not been convicted of either a felony under the laws of the United States or the state or of a local misdemeanor that is related to the applicant's business within the previous five years. The director of the department of finance shall cause an examination of police records to be made in order to verify this sworn statement. The findings of any such conviction or the filing of false information shall be sufficient cause for the denial of this permit. This permit shall be valid for one calendar year. Upon approval of the application by the department of finance and payment of the permit fee as provided by section 30-1281 et seq. a permit shall be issued to the applicant.
(Code 1956, § 46-7.1)

Sec. 130-68. Denial, hearing.

If the department of finance denies the issuance of a secondhand jewelry dealer permit it shall give written notice to the applicant at the business address listed on the application. The applicant may then file with the department of finance a written request for a hearing to appeal the denial. This request shall be filed by the applicant within five working days from the date that the applicant received the notice of denial. The hearing shall be held before the director of the department of finance or his designated representative.
(Code 1956, § 46-7.1)

Sec. 130-69. Regulations.

In addition to the provisions of this article, the following regulations shall apply to secondhand jewelry dealers:

(1) The provisions of this section shall not apply to pawnshops licensed under R.S. 37:1781 et seq. and section 130-101 et seq. when loaning money in the normal course of business. However, a pawnshop shall comply with the provisions of this section when making transactions as a secondhand jewelry dealer.

(2) No secondhand jewelry dealer shall buy, sell, trade, acquire or dispose of any precious or semiprecious metal or stone from any minor under the age of 18 years.

(3) It shall be unlawful for any secondhand jewelry dealer to buy from a seller any precious or semiprecious metals or stones between the hours of 12:00 midnight and 6:00 a.m. daily.

(Code 1956, § 46-7.1)

Sec. 130-70. Retention of purchases.

It shall be unlawful for the permittee to sell, exchange, barter, remove from their place of business or permit to be redeemed any precious or semiprecious metals or stones that have been brought, exchanged, pledged, or deposited by, to or with them from a seller for a period of 30 days from the date of purchase.
(Code 1956, § 44-14)

Sec. 130-71. Reports.

(a) It shall be the duty of every licensed secondhand jewelry dealer to make out a report which itemizes each item of precious or semiprecious metal or stone either bought, bartered, sold or otherwise acquired from a seller.

(b) Such reporting form shall be on carbonless duplicating paper with one original and two copies. This report shall be in addition to the book for records of purchases and receipts required by R.S. 37:1864. The superintendent of police shall describe the manner and detail of such reports and make them available to each permittee. These reports shall include, but not be limited to, the following items of information:

(1) Consecutively numbered forms.

(2) Date of transaction.

(3) Time of transaction.

(4) Name of permittee's clerk or agent.

(5) Name of seller.

(6) Race, sex, height, weight, hair color and eye color of seller.

(7) Address and phone number of seller.

(8) Seller's birthdate.

(9) Seller's social security number, if available.

(10) Name, address and telephone number of seller's employer, if available.

(11) Signature of seller.

(12) Dollar amount of transaction.

(13) A complete and accurate description of each item received by the permittee including:

a. The type of article,
b. Description of stones, including their number, color, type, shape and approximate weights,
c. Description of metals, including the color, type and approximate weight,
d. Style of the item, including brand names and pattern, if available,
e. Whether or not customarily intended for masculine or feminine adornment, if applicable,
f. Description of engravings,
g. Serial numbers, if applicable,
h. Initials,
i. Any other prominent or descriptive marks, if any.

(14) A declaration signed by the permittee that the seller has produced valid photographic identification issued by either the state, another state or by the United States military which bears a likeness of the seller. If the seller cannot produce a valid photographic likeness then the permittee shall cause to be made a right thumbprint of the seller.

(15) Seller's identification card number and issuing entity.

(16) A declaration of ownership stating that the seller is in rightful possession of the items being offered to the permittee.

(c) The permittee shall then deliver the original copy of this report to the superintendent of police within 24 hours of the transaction. One copy shall be given to the seller and the remaining copy shall be retained by the licensee on the business premises for a period of at least three years and shall be made available to the superintendent of police who shall then cause them to be examined from time to time during normal business hours for the purpose of accounting for each report. This report shall be filled out in its entirety. The penalty for knowingly reporting false information on this report or the intentional failure to report transactions as required by this section shall be a fine of $300.00 and the revocation of this permit.
(Code 1956, § 46-7.1)

Secs. 130-72—130-100. Reserved.

ARTICLE III. PAWNBROKERS*

Sec. 130-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Pawn transaction means the pledging with a pawnbroker under this article of goods or tangible property as security for a loan of money.

Pawnbroker means a person who lends money on a deposit or pledge or who takes other things into possession as security for money advanced or who makes a public display at his place of business of the sign generally used by pawnbrokers to denote his business, namely, three gilt or yellow balls, or who publicly exhibits a sign that money is to be loaned on things on deposit.
(Code 1956, §§ 44-5, 44-5.1)

Cross reference—Definitions generally, § 1-2.
State law reference—Definition, R.S. 37:1782(8).

Sec. 130-102. Buy-sell agreements; pawn transactions in general.

Items that are usually sold as a set are considered a single item and must be included in the same pawn transaction, and a pledge item together with items that are accessories to the pledged item are considered a single item and must be included in the same transaction. A separate pawn transaction retains its separate character when it is renewed, unless the parties agree otherwise. The purchase of property for the purpose of selling it back at a stipulated price (sometimes called "buy-sell agreement") shall be deemed a pawn transaction for the purpose of this article.
(Code 1956, § 44-5.1)

Sec. 130-103. Regulations for secondhand jewelry dealers.

A pawnshop shall comply with the provisions of section 130-66 et seq. when making transactions as a secondhand jewelry dealer as defined in section 130-66.
(Code 1956, § 46-7.1)

*Cross references—Businesses, ch. 30; sales and use tax, § 150-441 et seq.; occupational license tax, § 150-951 et seq.

Sec. 130-104. Compliance with law.

Pawnbrokers shall comply with all requirements imposed by this Code, city ordinance and all requirements of applicable state law including but not limited to the provisions of Title 37 of the Louisiana Revised Statutes and particularly the provisions of R.S. 37:1791 relative to the maximum rate of interest for pawn transactions.
(Code 1956, § 44-5.2)

Sec. 130-105. Records to be kept, entries required.

(a) Every pawnbroker shall maintain a permanent record of all transactions of things pledged on the pawnshop premises. This record, which may be maintained electronically, shall be kept for a period of two years. Entries shall be made in the English language and all of the following shall be included:

(1) The pledgor's name and address.

(2) The pledgor's sex, race, and approximate height.

(3) The pledgor's date of birth.

(4) The distinctive number from the pledgor's state driver's license, driver's license from another state, international driver's license, passport, military identification, or identification issued by a government agency or the United States Postal Service.

(5) A clear and accurate description of the pledged things, including model and serial numbers if indicated on the things.

(6) The date of the original pawn transaction.

(7) The maturity date of the original pawn transaction.

(b) For complying with the provisions of this section the pawnbroker shall be entitled to the service charge set forth in R.S. 37:1799.

(c) Such book shall be available for inspection on demand of the superintendent of police or any office or person acting under his authority along with the articles of property therein mentioned.
(Code 1956, § 44-7)

State law reference—Similar provisions, R.S. 37:1796.

Sec. 130-106. Information furnished to police.

(a) Every pawnbroker shall provide to the superintendent of police on a daily basis, by the end of the next business day, or on such less frequent basis as required by the superintendent of police, by placing in the United States mail either in printed form or in such other form acceptable to the superintendent of police, that information obtained pursuant to R.S. 37:1796.

(b) For complying with the provisions of this section the pawnbroker shall be entitled to the service charge set forth in R.S. 37:1799.
(Code 1956, § 44-6)

State law reference—Similar provisions, R.S. 37:1796, 37:1798.

Secs. 130-107—130-135. Reserved.

ARTICLE IV. JUNKYARDS*

Sec. 130-136. Use of public places prohibited.

It shall be unlawful for any person to wreck, dismantle or store, for commercial purposes, any motor-driven vehicle, automobile, automobile truck, or iron or steel junk, on the public sidewalks, streets and other public places of the city.
(Code 1956, § 44-1)

Sec. 130-137. Enclosure.

No person shall store or offer for sale any iron and steel junk or wreckage of motor-driven vehicles, or automobiles or any automobile truck on any open lot or parcel of ground that is not properly enclosed on all boundary lines with a proper, suitable and substantial fence not less than seven feet nor more than ten feet high, and properly screening such enclosed area from public view; provided, that the fence is kept in a constant state of good repair and no sign or other advertising matter is placed upon such fence.
(Code 1956, § 44-2)

*Cross references—Businesses, ch. 30; junk and abandoned vehicles, § 66-101 et seq.; sales and use tax, § 150-441 et seq.; occupational license tax, § 150-951 et seq.

Sec. 130-138. Location restrictions.

No junkyard or any establishment for the storing, processing, purchase or sale of scrap iron, paper, rags, bottles or any other junk or salvage materials, shall be located or operated upon a plot of ground facing upon a U.S. Highway, or within 500 feet thereof, and within 100 yards of any school, either public or private, elementary or high, college, university, convent, seminary, playground, asylum or orphanage.
(Code 1956, § 44-3)

State law reference—Limitations of junkyards, R.S. 48:461.9.

Sec. 130-139. Requirements for disposing of motor vehicles with gasoline tanks.

(a) *Compliance required.* Persons, firms, and/or corporations operating a junkyard, and every customer, whether a person, firm or corporation, that sells or trades with a junkyard shall comply with this section for disposing of motor vehicles with gasoline tanks.

(b) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Junkyard means and includes scrap metal dealers, salvage companies, landfill operations, junkyard or junk car operators, or any other such entity that handles motor vehicles.

Motor vehicle means every device by which persons or things may be transported upon a public street, highway or bridge or off-road area, which device is self-propelled by any motor using any fuel or electricity.

(c) *Acceptance of motor vehicle with gasoline tank.* All motor vehicles shall be accepted by junkyards with a gasoline tank in its normal and usual configuration, allowing for changes due to ruin or damage. Customers with motor vehicles shall not be required to remove the gasoline tank from the *vehicle or modify the tank or open the tank in any* manner. No customer shall be required to remove a gasoline tank or its contents from a motor vehicle offered for scrap metal or salvage purposes

as a condition of acceptance by the junkyard, any act by a junkyard inconsistent with the provisions of this section is a violation of this Code.

(d) *Legal disposition of gasoline tank.* A junkyard shall not accept any motor vehicle for junk or salvage that does not have a gasoline tank with the vehicle unless the customer disposing of same provides written evidence that the gasoline tank was previously legally disposed of or sold. A copy of this written evidence shall be maintained under the name, address, and social security number of the customer for a period of not less than three years after the vehicle is acquired by the junkyard. A false claim that a motor vehicle's gasoline tank was legally disposed of is a violation of this section.

(e) *Records to be made available.* The records of evidence of legal disposition of gasoline tanks shall be made available to the department of sanitation, its agents or assigns, for inspection and copy upon request at no charge, the department of sanitation shall monitor compliance with this section.

(f) *Acceptance of motor vehicle gasoline tanks.* A junkyard that accepts detached motor vehicle gasoline tanks brought in for scrap metal or salvage purposes shall not require any modification of the gasoline tank as a condition of acceptance.

(g) *Environmental regulations.* A junkyard's disposal and handling of motor vehicle gasoline tanks shall be in accordance with all federal, state and local environmental regulations.

(h) *Penalties for violation.* The first violation of this section shall be a misdemeanor and shall be punishable by a fine of not less than $200.00 nor more than $500.00 or six months imprisonment. A second violation of this section within a six-month period shall be punishable by a fine of not less than $500.00 or not less than six months imprisonment or both.
(M.C.S., Ord. No. 16,868, 1-19-95)

Chapter 131

ANTIQUE DEALERS*

Article I. In General

Sec. 131-1. Those subject to chapter.
Sec. 131-2. Due date for reports following holidays.
Sec. 131-3. Police to furnish blank report forms.
Sec. 131-4. Prohibited acquisitions from certain classes of persons.
Sec. 131-5. Duty to notify police when article tendered is believed stolen.
Secs. 131-6—131-35. Reserved.

Article II. Antique Dealers

Division I. Objects Memorializing the Dead; Cemetery Artifacts

Sec. 131-36. Definitions.
Sec. 131-37. Retention of acquisitions.
Sec. 131-38. Records required.
Sec. 131-39. Reports required.
Sec. 131-40. Records and reports open to inspection.
Sec. 131-41. Prohibited practices.
Sec. 131-42. Penalties.
Secs. 131-43—131-50. Reserved.

*__Cross reference—__Secondhand dealers, ch. 130.

ARTICLE I. IN GENERAL

Sec. 131-1. Those subject to chapter.

Every antique dealer, as defined in this chapter, is subject to the provisions of this chapter.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Sec. 131-2. Due date for reports following holidays.

If any report required by this chapter would have to be filed on any legal holiday, such report shall be due on the next business day following such holiday between the hours of 9:00 a.m. to 5:00 p.m.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Sec. 131-3. Police to furnish blank report forms.

The proper blank forms for the reports required by this chapter shall be furnished at the office of the superintendent of police, on application.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Sec. 131-4. Prohibited acquisitions from certain classes of persons.

It shall be unlawful for any antique dealer, owner, keeper, or agent of any antique shop, to buy, exchange, or otherwise acquire any article covered by this part from any minor under the age of 18 years, from a person appearing to be intoxicated, from a person known to be a notorious thief, or from a person known to have been convicted of larceny or burglary.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99; Ord. No. 19,710, § 1, 6-15-00)

Sec. 131-5. Duty to notify police when article tendered is believed stolen.

If any article covered by this part is tendered for sale, exchange, or consignment to an antique dealer, owner, keeper, or agent of any antique shop, and such person has good reason to believe that such article was stolen, the antique dealer, owner, keeper, or agent of any antique shop shall immediately notify the police department.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99; Ord. No. 19,710, § 1, 6-15-00)

Secs. 131-6—131-35. Reserved.

ARTICLE II. ANTIQUE DEALERS

DIVISION 1. OBJECTS MEMORIALIZING THE DEAD; CEMETERY ARTIFACTS

Sec. 131-36. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Antique dealer means every owner of an antique shop, or agent of the antique shop and every person in the city engaged in the business of buying, selling, trading in or otherwise acquiring, disposing of or exhibiting antiques, including but not limited to antique property, such as antique jewelry and antique silverware, antique pictures and paintings, antique objects of art, cemetery artifacts, antique furniture, antique collectibles and other such antique property. For purposes of this chapter, the definition of antique dealer shall include but not be limited to auction houses, auction galleries, and/or auctioneers dealing in the sale or disposition of antiques.

Cemetery artifact means any object produced or shaped by human workmanship or tools, including ornaments of archaeological, historical, cultural and/or sentimental significance or interest, which may be used to memorialize the dead and shall include but not be limited to all cemetery items, objects, properties, including, but not limited to any type of religious or sentimental addition and/or adornment, inside or outside of a tomb, gravesite, plot, mausoleum, vault and/or interment location, whether placed privately or by assignment, regardless of monetary worth, age, size, shape or condition, including, but not limited to, statues, bricks, signage, plaques, tab-

lets, urns, pots, planters, benches, chairs, crosses or other religious symbols, vases, gates, fences, or any portions thereof.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99; M.C.S., Ord. No. 19,193, § 1, 4-8-99)

Cross reference—Definitions and rules of construction, § 1-2.

Sec. 131-37. Retention of acquisitions.

It shall be unlawful for an antique dealer to sell, exchange, barter, or remove from their place of business any cemetery artifact that has been bought, exchanged, deposited on a consignment basis, or otherwise deposited with them by any transferor for a period of 30 days from the date of the antique dealer's acquisition.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99; Ord. No. 19,710, § 1, 6-15-00)

Sec. 131-38. Records required.

Every antique dealer shall be required to maintain a record, setting forth each purchase or acquisition, whether on a consignment basis or otherwise, of any object which meets the definition of a cemetery artifact, when the value of any single piece of such merchandise or article received shall be $25.00 or more for each single transaction. The price at which a piece of such merchandise is offered for sale or at auction by an antique dealer shall be considered prima facie evidence of the value of the piece of such merchandise. Each cemetery artifact purchased, acquired on a consignment basis, or otherwise acquired shall be recorded at the time of each transaction and such record shall contain an accurate detailed description in the English language of the merchandise or article received as set forth in section 131-39 (b)(13) herein along with the amount paid therefor or, in the case of acquisition by consignment or otherwise, the value of the article, as estimated by the antique dealer. This record shall be kept for a minimum period of three years. Copies of the report set forth in section 131-39 hereinbelow will satisfy the records requirement.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99; Ord. No. 19,710, § 1, 6-15-00)

Sec. 131-39. Reports required.

(a) Every antique dealer shall be required to deliver an originally signed report to the superintendent of police, or his designee, on a form provided by the police department, within 24 hours of any transaction involving cemetery artifacts. This report shall be filled out in its entirety. One copy shall be given to the seller/transferor and another copy shall be retained by the antique dealer on the business premises for a period of at least three years and shall be made available to federal, state, and local law enforcement and regulatory agencies upon request.

(b) These reports shall include, but not be limited to, the following items of information:

(1) Consecutively numbered forms.

(2) Date of transaction.

(3) Time of transaction.

(4) Name of antique dealer's clerk or agent handling the transaction.

(5) Name of seller/transferor.

(6) Race, sex, height, weight, hair color and eye color of seller/transferor.

(7) Address and phone number of seller/transferor.

(8) Seller's/transferor's birth date.

(9) Seller's/transferor's social security number.

(10) Name, address and telephone number of seller's/transferor's employer, if available.

(11) Signature of seller/transferor.

(12) Dollar amount of transaction or, in the case of acquisition on a consignment basis, value of article as estimated by the antique dealer.

(13) A complete and accurate description of each item received by the antique dealer, including:

a. The type of article, e.g, statue, brick, signage, plaque, urn, pot, bench, chair, cross, vase, gate, fence, or any portion thereof;

b. Description of objects, including but not limited to approximate weights, approximate dimensions, and shape;

c. Description of materials out of which the object is constructed, e.g., marble, granite, cement, wrought iron, cast iron, bronze, copper, wire, etc;

d. Description of engravings, markings and other identifying characteristics;

e. Any other prominent descriptive and/or distinguishing marks, if any.

(14) A declaration signed by the antique dealer that the seller/transferor has produced valid photographic identification issued by either this state, another state, or by the United States military which bears a likeness of the seller/transferor. The report shall include the seller's/transferor's identification card number and issuing entity.

(15) A declaration of ownership by the seller/transferor stating that the seller/transferor is in lawful possession of the items being offered to the antique dealer.

(M.C.S., Ord. No. 19,114, § 2, 2-18-99; Ord. No. 19,710, § 1, 6-15-00)

Sec. 131-40. Records and reports open to inspection.

The records and reports maintained pursuant to this chapter shall at all times be open to inspection by state and local law enforcement agencies.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Sec. 131-41. Prohibited practices.

An antique dealer shall not:

(1) Accept cemetery artifacts from any natural person under the age of 18.

(2) Knowingly accept an object that they know or should have known has been stolen, and the original use of which was a cemetery artifact.

(3) Falsify, obliterate, remove from the records, or fail to include in the report required in this chapter any accounts relating to the antique dealer's transactions involving objects which the antique dealer knew or should have known were cemetery artifacts as defined in this chapter .

(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Sec. 131-42. Penalties.

The penalty for any violation of this chapter shall be a fine not to exceed $500.00 or not more than six months imprisonment or both.
(M.C.S., Ord. No. 19,114, § 2, 2-18-99)

Secs. 131-43—131-50. Reserved.

Chapters 132, 133

RESERVED

Chapter 134

SIGNS*

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*__Cross references—__Buildings, building regulations and housing standards, ch. 26; businesses, ch. 30; peddlers, solicitors and itinerant vendors, ch. 110; signs in the Vieux Carré, § 166-76 et seq.

__State law references—__Outdoor advertising, R.S. 48:461 et seq.; uniform regulations within district, R.S. 33:4722.

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ARTICLE I. IN GENERAL

Sec. 134-1. Scope.

The provisions of this chapter shall apply to all signs in accordance with the Comprehensive Zoning Ordinance within city limits.
(Code 1956, § 3A-1; M.C.S., Ord. No. 21916, § 1, 4-21-05; M.C.S., Ord. No. 28121, § 1, 6-6-19)

Sec. 134-2. Exemptions.

The provisions of this chapter regarding accessory signs shall not apply to any accessory sign which has an area less than 40 square feet; provided that the sign is not a detached sign the erection of which would require a building permit.
(Code 1956, § 3A-6(a))

Sec. 134-3. Chapter provisions complementary.

The requirements to do or not do anything imposed by this chapter shall be in addition to any other requirements imposed by this Code or any other applicable law, except that where any other law provides a more restrictive requirement on the same subject matter, the more restrictive requirement shall supersede the less restrictive requirement of this chapter.
(Code 1956, § 3A-8)

Secs. 134-4—134-35. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Sec. 134-36. Enforcement agency designated.

The director of the department of safety and permits or his departmental or agencies representative(s) is hereby designated as the primary enforcement agency to administer and enforce the terms and conditions of this chapter and all other provisions of laws relating to signs and shall, in such administration and enforcement, coordinate his efforts with the New Orleans Police Department or any duly authorized law enforcement officer or code enforcement officer(s) or all other persons having enforcement powers or responsibilities.
(Code 1956, § 3A-2(a); M.C.S., Ord. No. 21877, § 1, 3-17-05)

*__Cross reference—__Administration, ch. 2.

Sec. 134-37. Enforcement responsibility.

The duties of the department of safety and permits shall include not only the issuance of permits as required by this chapter, or by other applicable law. The department of safety and permits, New Orleans Police Department or other duly authorized law enforcement or code enforcement officer(s) have the responsibility of ensuring that all signs comply with this chapter [and] any other applicable law, and that all signs for which a permit is required do in fact have a permit. These departments and agencies shall make such inspections as may be necessary and initiate appropriate action to bring about compliance with this chapter and other applicable law if such inspection discloses any instance of noncompliance. These departments or agencies shall investigate thoroughly any complaints of alleged violations of municipal laws governing signs. The enforcement agency may locate the persons in violation by calling the number advertised as a method of investigation.
(Code 1956, § 3A-2(b); M.C.S., Ord. No. 21877, § 1, 3-17-05)

Sec. 134-38. Powers of enforcement.

The department of safety and permits and the New Orleans Police Department or any duly authorized law enforcement or code enforcement officers or other persons having enforcement powers or responsibilities shall have the power and authority to administer and enforce the conditions of this chapter and all other laws relating to signs. Included among such powers are the following specific powers:

(1) Every sign for which a permit is required may be subject to the inspection and approval of the department. When deemed advisable by the department, a sign may be inspected at the point of manufacture if such point is within or adjacent to the city limits.

(2) Upon presentation of proper identification to the owner, agent, or tenant in charge of such property, the departments, agencies or their representative(s) may enter, for the purposes of inspecting and investigating signs or sign structures, any building, structure, or other premises or property between the hours of 8:00 a.m. to 10:00 p.m., Sunday through Saturdays, and in the case of business, during the hours of operation of the business provided, however, that in cases of emergency where extreme hazards are known to exist to persons, loss of life, or severe property damage, and where the owner, agent or tenant in charge of the property is not available after the departmental or agencies representative(s) have made a good faith effort to locate same, the departmental or agencies representative(s) may enter the aforementioned structures and premises at any time upon presentation of proper identification to any other person on the premises. Whenever the departmental or agencies representative(s) shall enter upon private property, under any circumstances, for the purpose of inspecting and/or investigating signs or sign structures, which charge, shall be notified of his presence and shown his proper and official credentials. The departmental or agencies representative(s), when on private property, shall observe the establishment's rules and regulations concerning safety, internal security and fire protection. In a case where permission to enter is denied, entry shall be accomplished only pursuant to a warrant obtained as otherwise provided by law.

(3) Upon notice and issuance of a stop-work order from the director of the department of safety and permits, work on any sign that is being conducted in a manner contrary to the provisions of this chapter or other applicable law or is being conducted in a dangerous or unsafe manner shall be immediately stopped. Such notice and order shall be in writing and shall be given to the owner of the property, or to his agent, or to the person doing the work, and shall state the conditions under which work may be resumed. Where an emergency exists, written notice shall not be required to be given by the departmental or agencies representative(s).

(4) Following the issuance of a stop-work order, the department or agencies representative(s) shall initiate proceedings to revoke any permit issued for the work covered by such stop work order, unless the cause of the stop work order is resolved to the departmental or agencies representatives) satisfaction.

(5) The departmental or agencies representative(s) shall have, and is hereby granted, the power and authority to revoke any and all permits authorized by this chapter for violation of the terms and provisions of this chapter; and all other applicable provisions of law, provided that, the departmental or agencies representatives) shall conduct a hearing prior to the revocation of any permit authorized under this chapter to determine the facts incident to the pending revocation. The person whose permit is under consideration shall be given at least 15 calendar days' written notice of the hearing and shall be permitted to present relevant facts and legal arguments regarding the pending revocation. Following such, the department or agency representative shall consider the merits of the case and shall present a written opinion prior to any action. However, that if in the opinion of the department the health, safety, or welfare of the citizens of the city is endangered by any violation of this chapter, the department of safety and permits or agency representatives may immediately revoke any or all permits authorized by this chapter and shall conduct the necessary hearing as soon as possible thereafter, but in no case later than three business days after the effec-

tive date of the revocation unless the affected permittee shall request in writing a later date.

(6) The departmental or agencies representative(s) shall have the authority to adopt regulations required to implement the provisions of this chapter.

(Code 1956, § 3A-2(c); M.C.S., Ord. No. 21877, § 1, 3-17-05; M.C.S, Ord. No. 21916, § 2, 4-21-05; M.C.S., Ord. No. 28121, § 1, 6-6-19)

Sec. 134-39. Violations and penalties.

Any person who shall violate any provision of this chapter shall be guilty of a misdemeanor and shall, upon conviction thereof, be punished by a fine of not less than $500.00 for each violation. Each day in which any violation shall occur shall constitute a separate offense. In addition, the city attorney is hereby authorized to take all actions, both legal and equitable, necessary to assure compliance with this chapter.
(Code 1956, § 3A-2(d); M.C.S., Ord. No. 21877, § 1, 3-17-05)

Sec. 134-40. Appeals.

Any person wishing to appeal a decision of the department of safety and permits or agencies representative(s) on the grounds that the decision misconstrues or wrongly interprets this chapter or other applicable law may, within 30 days after the decision, appeal the same to the appropriate board, as hereinafter provided. Where the decision from which an appeal is taken is based upon the Comprehensive Zoning Ordinance or a similar land use law, appeal shall be the board of zoning adjustments; when the decision from which an appeal is taken is based upon laws or regulation, including this chapter, pertaining to the design, construction, alteration, demolition, or structural aspects of buildings and/or signs, appeal shall be to the board of building standards and appeals. An appeal timely taken to the improper board shall be transferred to the proper board; and in doubtful cases, or when neither board appears to be the proper board, the mayor, pursuant to section 4-105 of the Charter, shall assign the appeal for decision by whichever board appears more appropriate. Appeals from the decision of a board shall be as otherwise provided by law, and from the decision of the board of zoning adjustments, and/or board of building standards and appeals shall be, pursuant to its rules and regulation, to the civil district court; provided that the appealing party shall give notice of appeal in writing to the department of safety and permits or agencies, representative(s) no less than ten calendar days following the decision appealed from and provided further that the appealing party shall comply with the department of safety and permits' or agencies representative(s)' decision pending appeal unless the department or agency representative(s) shall direct otherwise or unless otherwise expressly provided by law.
(Code 1956, § 3A-2(e); M.C.S., Ord. No. 21877, § 1, 3-17-05)

Sec. 134-41. Sign companies.

(a) *Registration required.* Any person who engages as a business in the erection, placement, leasing or permitting of others to use signs shall first obtain a registration from the department of safety and permits to do so.

(b) *Registration fee.* Any person required to obtain a registration under the terms of this section shall pay an annual registration fee of $400.00.

(c) *Address and agent for service of process.* Any business which is required to obtain a registration under the terms of this section shall at all times maintain an office within the city, the current address of which shall be recorded with the department, or shall appoint and file a record with the department representative and agent within the city for service of process.
(Code 1956, § 3A-4)

Sec. 134-42. Sign maintenance and removal.

(a) *Maintenance.* All signs shall be kept in good repair, and unless of galvanized or noncorroding metal or treated with appropriate wood preservative, shall be thoroughly painted as often as is necessary consistent with good maintenance. All braces, bolts, clips, supporting frames and fastenings shall be free from deterioration, termite infestation, rot, or loosening. All signs shall be able to withstand safely at all

times the wind pressures specified in any applicable law. In case any sign is not so maintained, the department shall give written notice to the owner or lessee thereof to so maintain the sign, or to remove the sign.

(b) *Unsafe signs.* Should any sign, in the opinion of the department, become insecure or in danger of falling or otherwise unsafe, the departmental representative shall give written notice of the condition of the sign to the person owning, leasing, or responsible for the sign. Such person so notified shall correct the unsafe condition of the sign in a manner to be approved by the department in conformity with the provisions of this chapter or other applicable law.

(c) *Unlawful signs.* In case any sign shall be installed, erected, constructed or maintained in violation of any of the terms of this chapter or other applicable law, the department shall give written notice to the owner, lessee, or person responsible for such sign ordering such owner, lessee or person to alter the sign so as to comply with the law, or to remove the sign.

(d) *Removal of signs.* Any written notice to alter or to remove a sign shall be given by the department by certified mail or written notice served personally upon the owner, lessee, or person responsible for the sign, or the owner's agent. If such order is not complied with within 15 calendar days, the department shall initiate proceedings under this chapter to revoke the permit and remove the sign at the expense of the owner, lessee, or person responsible therefor.

(e) *Hazardous signs.* If the department determines that any sign is causing an extraordinary and immediate hazard to safety or if the owner or person having custody of a sign cannot be determined, or if the department after diligent effort has been unable to give the notice required by the other subsections herein, and if no other provision of law authorizes the city to cause the sign to be immediately removed, then the director shall cause a notice to be affixed to the sign in a prominent place, bearing the date of its posting, which notice shall instruct the person having custody or control of the sign to remove it immediately and shall identify the department as the city agency to be contacted. The notice shall set forth the text of this subsection in full. If the sign has not been removed by 7:30 a.m. of the third calendar day after the posting of the notice, the department shall cause it to be removed and thereafter disposed of in the manner provided by section 134-122(b).
(Code 1956, § 3A-5)

Secs. 134-43—134-75. Reserved.

DIVISION 2. PERMITS AND FEES

Sec. 134-76. Operating permit required.

No person shall erect, construct, reconstruct, create, alter, use, or lease a sign without first having secured a written operating permit from the department of safety and permits.
(Code 1956, § 3A-3(a))

Sec. 134-77. Application procedure.

(a) Every application for a permit under this division shall be executed and verified under oath by both the owner of the premises upon which the sign is to be or has been constructed, or the authorized lessee of such premises, and the sign company if the sign is an off-premises sign, that the sign is authorized to be erected or to be thereafter maintained on the premises, and shall contain the sworn affidavit of the owner or lessee and the sign company that the sign does not violate any applicable building restriction, servitude, or other similar restrictions on the premises.

(b) If the location, plans and specifications set forth in any application for a permit conform to all of the requirements of this chapter and other applicable provisions of this Code, of the building code, and of the Comprehensive Zoning Ordinance, the department shall issue the permit.
(Code 1956, § 3A-3(b))

Sec. 134-78. Operating permit effectiveness; renewal.

Each operating permit issued shall be effective for a period of one year. Not less than 30 days nor more than 60 days prior to the conclusion of each one-year period, applications may be

made for a one-year extension of the permit. Such application shall be submitted in such form as the department may prescribe, accompanied by payment of applicable fees, and shall be executed, verified, and contain the sworn affidavit described in section 134-77(a).

Each permit for a mural shall be effective for a period of one year and may be renewed from year to year, as long as the mural continues to comply with the regulations set forth in the Comprehensive Zoning Ordinance, and any applicable regulations promulgated by the department of safety and permits.
(Code 1956, § 3A-3(c); M.C.S., Ord. No. 21916, § 3, 4-21-05; M.C.S., Ord. No. 28121, § 1, 6-6-19)

Sec. 134-78A. Reserved.

Editor's note—M.C.S., Ord. No. 27783, § 1, adopted May 24, 2018, repealed § 134-78A, which pertained to murals application and derived from M.C.S., Ord. No. 21916, § 4, adopted April 21, 2005.

Sec. 134-78B. Reserved.

Editor's note—M.C.S., Ord. No. 27783, § 1, adopted May 24, 2018, repealed § 134-78B, which pertained to renewal of mural applications and derived from M.C.S., Ord. No. 21916, § 5, adopted April 21, 2005.

Sec. 134-79. Existing signs.

(a) After the date of passage of the ordinance from which this chapter was derived, all signs legally existing shall receive, upon application, operating permits according to a phased schedule to be determined by the department of safety and permits so as to require the permitting of the signs on or before certain dates in each of the municipal districts or in each of the wards of the city. The regulations governing the phase schedule shall be published upon issuance and again at least 15 calendar days prior to each deadline date established therein. The operating permit required by this paragraph shall not be required for any flat sign, as defined in Article 12, Section 12.1.8 of the Comprehensive Zoning Ordinance, which is permanently attached to a building owned or controlled by a private nonprofit organization or a local, state or federal government agency and which displays only the name and address and/or other identifying information relative to the building or the nonprofit or governmental agency occupying the building. For the purposes of this section, a private nonprofit organization is defined as an organization which possesses tax exempt status under section 501C of the Internal Revenue Code or is organized as a nonprofit corporation under the laws of any of the states of the United States of America.

(b) In order to receive operating permits, all signs existing on the date of passage of the ordinance from which this chapter was derived must conform to the requirements of sections 134-3 and 134-85 and all other applicable provisions of law when an operating permit is issued.
(Code 1956, § 3A-3(d))

Sec. 134-80. Subterfuge.

Any permit secured before or after the effective date of the ordinance from which this chapter was derived which in the opinion of the department of safety and permits has been secured through subterfuge and not in full compliance with the provisions of this chapter shall be revoked by the department provided that, such revocation shall conform with the provisions of this chapter regarding notice and hearing.
(Code 1956, § 3A-3(e))

Sec. 134-81. Construction permit effectiveness; renewal.

Any permit for construction of a sign shall become null and void unless construction of the sign is completed within 180 days, otherwise a new application must be made.
(Code 1956, § 3A-3(f))

Sec. 134-82. No refund of fees.

The applicant for a permit under this division or holder of a permit shall not be entitled to a refund of any fee paid in case the permit is revoked.
(Code 1956, § 3A-3(g))

Sec. 134-83. Reserved.

Editor's note—M.C.S., Ord. No. 28121, § 1, adopted June 6, 2019, repealed § 137-83, which pertained to deposit or bond and derived from Code 1956, § 3A-3(h); M.C.S., Ord. No. 21916, § 6, adopted April 21, 2005.

Sec. 134-84. Electrical signs.

Any electrical sign shall conform fully to the requirements of the building code, electrical and mechanical codes and shall receive a permit under the provisions thereof.
(Code 1956, § 3A-3(i))

Sec. 134-85. Fees.

Fees are hereby levied and imposed on advertising signage and all other signage constructed, erected, created, or leased in the city:

(1) Review of the plan of the location or construction of a sign, prior to any physical inspection, or as a part of the permit application review, or otherwise:..... $ 125.00

(2) Inspection in advance of any sign for conformity with city sign site or for conformity with city ordinances, regulations, building restrictions, servitudes, or other restrictions: 100.00

(3) Reinspection of a sign after a prior inspection of a sign has discovered a violation and the operator has been given notice of the same, to determine whether there has been a correction of the violation: 100.00

(4) Inspection at the place of manufacture or delivery [of] an electrical, gas, or vacuum tube sign to ensure conformity with applicable electrical codes and law: ... 100.00

(5) Inspection at site of use, erection, or placement of an electrical, gas, or vacuum tube sign after its installation, to ensure conformity with applicable electrical codes and laws:..... 100.00

(6) Review of an application for a one-year renewable operating permit, or renewal thereof:

a. Accessory signs..... 40.00

b. For general advertising billboard permits:

1. Junior billboard (up to 100 square feet), per sign face 60.00

2. All billboards over 100 square feet, per sign structure 125.00

(7) Special events—Temporary banners..... 50.00

(8) Applications to paint city owned utility boxes..... 50.00

(Code 1956, § 3A-7; Ord. No. 19,969, § I, 12-14-00; Ord. No. 20,383, § 1, 10-4-01; M.C.S., Ord. No. 21916, § 7, 4-21-05; M.C.S., Ord. No. 23816, § 2, 12-1-09; M.C.S., Ord. No. 28121, § 1, 6-6-19; M.C.S., Ord. No. 28436, § 1, 8-6-20)

Secs. 134-86—134-120. Reserved.

ARTICLE III. REGULATIONS*

Sec. 134-121. Signs on public rights-of-way.

(a) It shall be unlawful to place a sign, placard, poster, or other advertisement (hereafter referred to as "sign"), upon a public street, public sidewalk, neutral ground, public alley, public right-of-way, public curb or other public improvement in any public street or grounds, on any public bridge or part of same, or on any public building or structure of any kind belonging to the city, or in any public place or on any public improvement

*__Editor's note—__M.C.S., Ord. No. 24452, § 1, adopted June 2, 2011, amended art. III in its entirety and enacted similar provisions as set out herein. The former art. III derived from Code 1956, §§ 3A-5(b), 3A-6(c)(2), 3A-6(d)—3A-6(i), and 3-4—3-7.1.

(hereinafter, collectively "public right-of-way"), unless express written consent is granted by the city. This subsection does not apply to public property leased for private business purposes, to business locations issued a sidewalk use permit pursuant to this Code, or to coin-operated devices used to display newspapers, so long as they do not impede vehicular or pedestrian traffic or damage public property.

(b) Any unlawful sign found within a public right-of-way shall be immediately seized and removal thereof by anyone is hereby authorized. It shall be the responsibility of the department of sanitation or the department of parks and parkways to devise a system of removal for such signs.
(M.C.S., Ord. No. 24452, § 1, 6-2-11; M.C.S., Ord. No. 27625, § 1, 12-14-17; eff. 10-1-17)

Sec. 134-122. Placement of signs that are temporary in nature.

The following temporary signage, when not prohibited by any other provision of law, may be placed on the public right-of-way. The following exceptions are inclusive, no other temporary signage shall be permitted:

(1) Political signs may be placed on the public right-of-way 48 hours prior to an election. Such signs shall be removed 48 hours after the closing of the polls for an election.

(2) Real estate signage advertising an open house. Such signs are limited to 48 hours prior to the open house and shall be removed upon completion of the open house.

(3) The placement of signs for garage, moving, or rummage sales, provided that such signs are not displayed for more than a total of 48 hours.

(4) The placement of signs relative to movie filming locations provided that such signs are not displayed for more than a total of 48 hours.

(5) The placement of signs notifying the community of official neighborhood or community meetings, provided that such signs are not displayed for more than five days prior to said meeting, and are removed upon completion of said meeting.

(6) The placement of signs notifying the community of lost and/or found pets/animals, provided that such signs are not displayed for more than ten days.

(M.C.S., Ord. No. 24452, § 1, 6-2-11; M.C.S., Ord. No. 24644, § 1, 10-21-11)

Sec. 134-123. Signs resembling official signs.

No sign shall be constructed which resembles any official marker erected by the city, state or any governmental agency or which by reason of position, shape or color would conflict with the proper functioning of any traffic sign, signal, or switch, or which, by its shape or color would conflict with or be confused with emergency vehicle lights, especially blinking lights. Use of words such as "stop," "look," "danger," or any other word, phrase, symbol or character in such a manner as to interfere with, mislead, or confuse traffic is prohibited.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-124. Sign not to create easements.

No permit for a sign extending beyond private property onto a public street, public sidewalk, or

public alley shall constitute a permanent servitude or easement, and every such permit shall be revocable at any time by action of the city, and the city shall not be liable for any damages to the owner by reason of such revocation. Every permit shall so state expressly on its face; and the applicant for any permit shall so expressly agree in writing.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-125. Signs obscuring or interfering with view.

Signs may not be located or illuminated in such a manner as to obscure or otherwise interfere with the effectiveness of an official traffic sign, signal, or device, or so as to obstruct or interfere with the view of a driver of approaching, merging, or intersecting traffic, or so as to prevent any traveler on any street from obtaining a clear view of approaching vehicles for a distance of 250 feet along the street.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-126. Shielding of lighted signs, interference with drivers of motor vehicles.

Signs containing lights which are not effectively shielded as to prevent beams or rays of light from being directed at any portion of the traveled roadways from which the sign is primarily viewed and which are of such intensity or brilliance as to cause glare or to impair the vision of the driver of any motor vehicle, or which otherwise interfere with any driver's operation of a motion vehicle are prohibited.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-127. Removal of signs or awnings obstructing view.

The director of the department of public works shall, whenever any sign or awning in his/her opinion obstructs the view of any street, in any manner, shall give not more than five days' notice to its proprietor for removal, or for the reduction of the size of the sign or awning. If the proprietor fails to comply with the provisions of this section during said notice period, the owner shall be liable for a fine of not less than $10.00 per day for contravention of this section, recoverable for the use of the city.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-128. Advertisements on streets, telegraph poles, etc., prohibited.

(a) It shall be unlawful for any person or entity to post or paint advertisements of any kind on any street, sidewalk, public buildings, utility poles, light standards, street signs, parking meters, trees located in public right-of-way or traffic signal standards.

(b) Any unlawful posted or painted advertisement on any street, sidewalk, public buildings, utility poles, light standards, street signs, parking meters, trees located in public rights-of-way or traffic signal standard shall be seized and removed.

(c) It shall be the responsibility of the department of sanitation or the department of parks and parkways to devise a system of removal for such signs.

(d) It shall be unlawful to distribute or cause to be distributed any commercial product samples, commercial advertising brochures, leaflets pamphlets or commercial literature of any kind on the streets and sidewalks of the city, except as otherwise provided in this Code.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-129. Recycling of signage.

Any signage seized by the city under this chapter that may be recyclable, shall be provided to the city sanctioned recycling program. If the signage is unrecyclable, or deemed to be unrecyclable by the city sanctioned recycling program, conventional disposal is permitted.
(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Sec. 134-130. Penalties.

(a) The city attorney is authorized to seek an injunction to prevent additional violations of the provisions of this section.

(b) The existence of any illegal sign on the public right-of-way constitutes prima facie evidence that any individual or entity depicted or advertised on an illegal sign caused, authorized, allowed, or is allowing the placement or posting of the sign on public property and is in violation of this section.

(c) The director of the department of sanitation or the department of parks and parkways, or their designees, are authorized to invoice any individual or entity depicted or advertised on the illegal sign for the cost of removal of the sign. This cost may be established through in-house accounting or through applicable payments to third party vendors for removal. In addition to assessment for cost of removal, any individual or entity depicted or advertised on the illegal sign shall also be assessed a penalty of $10.00 per sign, per violation, recoverable for the use of the city.

(d) Any individual or entity depicted or advertised on an illegal sign that receives an invoice from the department of sanitation or the department of parks and parkways may provide written correspondence to the department from which an invoice was received within ten (10) days of receipt, and request an administrative appeal of said assessment. If guilt is determined at said appeal, the following additional administrative costs and penalties may apply:

(1) Except in the case of a violation involving the illegal posting of signs on trees, a person found guilty of a violation of this section shall be punished by a fine of not more than $25.00 per sign, per violation and/or community service of not less than five hours per sign, per violation.

(2) If the violation involves the illegal posting of signs on trees, a person found guilty of a violation of this section shall be punished by a fine of not more than $50.00 per sign, per violation and/or community service of not less than five hours,

(3) Per sign, per violation.

(4) The total monetary fines imposed per case shall not exceed $500.00.

(M.C.S., Ord. No. 24452, § 1, 6-2-11)

Secs. 134-131—134-165. Reserved.

ARTICLE IV. BILLBOARDS AND OTHER ADVERTISING STRUCTURES*

Sec. 134-166. Billboards on fences, houses or awning-posts prohibited.

Boards for advertising purposes shall not be permitted to stand against or be attached to fences or houses or be attached to awning-posts on the banquettes so as to obstruct or disfigure the sidewalks after the person in charge of any such board has been notified by the director of the department of streets or any police officer of the city to remove such obstruction within the period designated in such notification.
(Code 1956, § 3-2)

Sec. 134-167. Billboards—Prohibited near grade separations.

Except as permitted by this section and sections 134-168 through 134-171, no firm, person, corporation, association or individual may construct, cause to be constructed, use or maintain any billboard, signboard, or any other advertising structure, advertising display or advertising medium of any nature whatsoever, or any part thereof, within 200 feet from any portion of any grade separation, including the approaches thereto, constructed or to be constructed in conjunction with the grade separation plan of the Union Passenger Terminal Program of the city, it being understood that by approaches to grade separations is meant the entire area between the end of such grade separation structure and the place where the street approach rises from or descends from the normal street grade adjacent to the separation. It is the intent of this section that no sign, billboard, or display sign shall be constructed, maintained or used within 200 feet from any grade separation, including its approaches, unless otherwise specified in this chapter.
(Code 1956, § 3-8)

Sec. 134-168. Same—Along certain expressways.

No person may construct, use or maintain any billboard, signboard, or any other advertising

*__State law reference—__Outdoor advertising, R.S. 48:461, et seq.

structure, advertising display, or advertising medium of any nature whatsoever, or any part thereof, within 200 feet from any and all portions of the following avenues and expressways now in existence or under construction: Basin Street from the Municipal Auditorium to Iberville Street; Loyola Avenue from Tulane Avenue to Earhart Boulevard; Earhart Boulevard from the Union Passenger Terminal Station to Carrollton Avenue; Simon Bolivar Avenue from Earhart Boulevard to Louisiana Avenue; and Pontchartrain Expressway from the Union Passenger Terminal Station to the Airline Highway, unless otherwise specified in this chapter.
(Code 1956, § 3-9)

Sec. 134-169. Exceptions, ten year's exception for existing structures.

It shall be lawful for any person to construct, use or maintain any billboard, signboard, display sign or any other advertising display of any nature whatsoever within the areas described in sections 134-167 and 134-168 when such billboard, signboard, display sign or other advertising display falls within one of the following specified categories.

(1) One sign not exceeding 15 square feet in overall measurements shall be permitted on any lot offering such lot for lease or sale;

(2) Wherever any advertising structure had actually been constructed and was in existence prior to October 16, 1953, such billboards, signboards, display signs or any other advertising structure may be used and maintained only for a period of ten years from October 16, 1953 and at the expiration of this ten-year period all such billboards, signboards, display signs or any other advertising display must be completely removed from their locations; it being understood, however, that the owner or operator of any such billboards, signboards, display signs or any other advertising displays that were in existence prior to October 16, 1953, may continue to repair or remodel, illuminate, redesign and relocate such billboards, signboards, display signs or any other advertising displays provided that such changes shall not enlarge the overall square foot area of the advertising copy and shall in no wise be deemed to affect the ten-year amortization period set out herein.

(3) One or more signs may be constructed and maintained solely for the purpose of setting forth the name and/or ownership of the establishment and/or identifying the nature of the business or businesses actually conducted on such parcel of ground, and the products sold thereon provided that not more than 50 percent of each sign is used for the purposes of advertising the products sold and provided such sign or signs comply with the following requirements:

a. The total area of all signs, measured in square feet, shall not be greater than an area computed by multiplying four feet by the linear frontage of the lot along the street on which the sign or signs are to be erected.

b. The maximum height of any sign shall be as follows: In all cases involving proximity to grade separations, expressways, and the avenues as specified in sections 134-167 and 134-168, the height of any allowable sign shall not exceed eight feet above the height of the building proper, excluding water towers, stage towers, cooling towers, radio or television antennas, chimneys, smoke stacks, elevator bulkheads, and oil derricks; however, in no case shall this regulation be so interpreted as to reduce the maximum allowable height of a sign to less than 25 feet above the curb grade.

(4) Wherever advertising copy on billboards, signboards, display signs, or any other advertising structure does not substantially show to the overpasses, underpasses, avenues, and expressways above described.

(Code 1956, § 3-10)

Sec. 134-170. Appeals to board of standards and appeals.

Any person aggrieved by any decision of the director of the division of regulatory inspections in the enforcement of this article shall be entitled within 30 days from the date of such decision to appeal to the board of standards and appeals under the same procedure described for appeals in the city building code, Ordinance No. 11,625 M.C.S., and if aggrieved by the decision of the board of standards and appeals above provided shall be entitled within 30 days from the date of such decision of the board of standards and appeals to appeal to the council for a hearing on such decision to determine if such decision appealed from is justified in the exercise of reasonable and sound discretion.
(Code 1956, § 3-11)

Sec. 134-171. Permitted signs to comply with other applicable laws.

When this article conflicts with either the provisions of the city building code, Ordinance No. 11,625 M.C.S., as amended, or with the provision of the comprehensive zoning ordinance, Ordinance No. 4,264 M.C.S., as amended, the more restrictive provisions in any case shall control.
(Code 1956, § 3-12)

Sec. 134-172. Penalty.

Any person found guilty of violating the provisions of this article shall be fined in a sum not less than $50.00 or more than $100.00, or shall be imprisoned for a term not to exceed 90 days, or both, at the discretion of the court. Each day a violation continues shall be considered a separate violation.
(Code 1956, § 3-13)

Secs. 134-173—134-200. Reserved.

ARTICLE V. SIGNS ON FEDERAL HIGHWAYS*

Sec. 134-201. Limitations of outdoor advertising signs and devices.

(a) No outdoor advertising nor outdoor advertising signs or devices shall be erected, operated or maintained within 660 feet of the nearest edge of the right-of-way and visible from the main-traveled way of the interstate or primary highways of this state located in the city, except the following:

(1) Directional and other official signs and notices, as defined and regulated by R.S. 48:461 et seq.

(2) Signs, displays and devices advertising activities conducted on the property upon which they are located.

(3) Signs, displays and devices advertising the sale or lease of property upon which they are located.

(4) Signs, displays and devices located in areas which are zoned industrial or commercial under authority of law.

(b) For purposes of this section, the definition contained in R.S. 48:461 et seq., shall apply to the extent a definition herein is not more restrictive.

(c) No sign allowed by this section shall be located in the city in such a manner as to obscure or in any manner physically interfere with the effectiveness of an official traffic-control device, nor in such a manner as to interfere with a driver's view of approaching, merging or intersecting traffic.

(1) No two structures allowed under subsection (a)(4) of this section shall be spaced less than 500 feet apart, if within 660 feet of and visible from an interstate highway or freeway system;

(2) No two structures allowed under subsection (a)(4) of this section shall be spaced less than 100 feet apart, if within 660 feet of and visible from any federal aid primary highway;

(3) The spacing of signs required in subsections (c)(1) and (c)(2) of this section shall not apply to structures separated by buildings or other obstructions in such manner that only one sign is visible at any one time from the subject controlled highway.

(Code 1956, § 3-14)

*__State law references__—Outdoor advertising, R.S. 48:461, et seq.; uniform regulations within district, R.S. 33:4722.

Sec. 134-202. Explanatory notes and exemptions to section 134-201.

(a) Official signs and on-premises signs as defined in section 131(c) of title 23, United States Code, and structures that are not lawfully maintained shall not be counted nor shall measurements be made from them for purposes of determining compliance with spacing requirements.

(b) The minimum distance between structures shall be measured along the nearest edge of the pavement between points directly opposite the signs along each side of the highway and shall apply only to structures located on the same side of the highway.
(Code 1956, § 3-15)

Sec. 134-203. Lighting.

Signs which are not effectively shielded as to prevent beams or rays of light from being directed at any portion of the traveled ways of the interstate or federal-aid primary highways and which are of such intensity or brilliance as to cause glare or to impair the vision of the driver of any motor vehicle, or which otherwise interfere with any driver's operating of a motor vehicle are prohibited. No sign shall be so illuminated that it interferes with the effectiveness of, or obscures an official traffic sign, device or signal.
(Code 1956, § 3-16)

Sec. 134-204. Penalty.

Any person found guilty of violating the provisions of this article shall be fined a sum not less than $50.00 nor more than $100.00, or shall be imprisoned for a term not exceeding 90 days, or both, at the discretion of the court. Each day a violation continues shall be considered a separate violation.
(Code 1956, § 3-17)

Sec. 134-205. Exterior laser lights or sky tracker lights.

Exterior laser lights and/or sky tracker lights shall not be used without a permit issued by the department of safety and permits and with the approval of the district councilmember. This permit shall be issued in accordance with the policies and fee schedule established by the department of safety and permits. Such permits shall not be issued for a period to exceed four days nor more than five hours per day.
(M.C.S., Ord. No. 17,100, § 1, 7-6-95)

Chapters 135–137

RESERVED

Chapter 138

SOLID WASTE*

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Sec. 138-96. Supervision.
Sec. 138-97. Operation of landfills and dumps.

***Cross references—**Trash haulers permit and regulations, § 30-1611 et seq.; environment, ch. 66; burning of refuse prohibited, § 66-244; litter, § 66-281 et seq.; sanitation recycling fund, § 70-236 et seq.; solid waste disposal required in mobile home parks, § 98-66; garbage from vessels in port, § 170-596 et seq.

State law reference—Louisiana Solid Waste Management and Resource Recovery Law, R.S. 30:2151 et seq.

Sec. 138-98. Site requirements for sanitary landfills.
Sec. 138-99. Engineering plans for landfills.
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Sec. 138-103. Special waste handling.
Sec. 138-104. Milled solid waste.
Sec. 138-105. Spillage of dirt, garbage, or trash from transport or collection vehicle.

ARTICLE I. IN GENERAL

Sec. 138-1. Responsibility for solid waste disposal.

The city shall be responsible for providing adequate solid waste management and disposal facilities. This responsibility may be delegated to a private operator through an operating permit issued by the department of safety and permits. (Code 1956, § 28-38)

Sec. 138-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Ashes means solid residue resulting from the combustion of all the fuels used for heating, cooking, and the production of power in any public or private establishment, institution or residence.

Business, professional or service office units include those businesses which in their operations do not carry or are not required to carry an inventory in the usual course of their operations.

Cell means a compacted volume of solid waste in a landfill which is completely surrounded by a layer of earth or cover material at the end of each working day.

Commercial, industrial and manufacturing units shall include those businesses which in their operations do carry, or are required to carry an inventory in the usual course of their operations.

Commercial refuse consists of garbage and trash, produced in the operation of retail stores.

Composting means a controlled process of decomposing yard wastes such as grass clippings, leaves, and shrubbery trimmings into a substance to be used as a fertilizer or soil amendment.

Contractor's refuse consists of waste materials or debris, resulting from fires or construction, repairs, alterations or demolition of buildings or other structures.

Daily cover means a six-inch layer of compacted earth used to enclose a cell once each working day.

Department means the department of safety and permits.

Downtown Development District means the properties within the area bounded by the downtown side of the Pontchartrain Expressway, the riverside of North and South Claiborne Avenue, the uptown side of Iberville Street, and the Mississippi River.

Dump means a land disposal site at which solid waste is disposed of in a manner which does not protect the environment.

Final cover means a layer of compacted earth two feet, six inches in depth applied to a completed landfill, the top six inches of which is loosely compacted to promote plant growth.

French Quarter means the properties within the area bounded by the downtown side of Canal Street, the riverside of North Rampart Street, the uptown side of Esplanade Avenue, and the Mississippi River.

Garbage means all putrescible waste matter except sewage and recognizable industrial byproducts; putrescible vegetable matter, animal offal, and animal carcasses; and animal and vegetable matter, as waste from kitchens, restaurants and food stores, and all burnable rubbish such as paper, cardboard, rags, floor sweepings, excelsior, boxes or barrels of wood when broken up and similar small articles of burnable nature.

Groundwater means subsurface water in the zone of saturation of the earth's crust. The top of this zone of saturation is commonly defined as the water table.

Hazardous wastes means materials or combinations of materials which require special management techniques because of their acute and/or chronic effects on air and water quality; on fish, wildlife, or other biota; and on the health and welfare of the public. These materials include but are not limited to volatile, chemical, biological, explosive, flammable, radioactive and toxic materials.

Infectious wastes means those wastes resulting from the operation of medical clinics, hospitals, abattoirs, and other facilities producing waste which may consist of, but are not limited to, human and animal parts, or contaminated bandages, pathological specimens, hypodermic needles, contaminated clothing, and surgical gloves.

Institutions means churches, synagogues, temples or any eleemosynary organizations, schools, whether public, private or parochial, all hospitals, and all nursing homes.

Intermediate cover means a layer of compacted earth one foot in depth applied to a partially completed landfill where final cover is not to be applied within one year of cell completion.

Leachate means a liquid that has percolated through solid waste or has been generated within solid waste in a landfill and contains dissolved or suspended materials that may be contaminated.

Lift means a completed horizontal series of cells.

Litter means any uncontainerized manmade or manused waste which, if deposited within the city otherwise than in a litter receptacle, tends to create a danger to the public health, safety, and welfare or to impair the environment. Litter may include but is not limited to any garbage, trash, refuse, confetti, debris, grass clippings, or other lawn or garden waste, newspaper container or other construction material, motor vehicle part, furniture, oil, carcass of a dead animal, or nauseous or offensive matter of any kind, or any object likely to injure any person or create a traffic hazard.

Litter receptacle means any container which is designed to receive litter and to prevent the escape of litter deposited therein.

Littering means the act of discarding, dropping, or scattering litter or small quantities of waste matter carried on or about the body in a place other than a place or container for the proper disposal thereof and includes waste matter which escapes or is allowed to escape from a container, receptacle, or package.

Manufacturing or trade refuse consists of special or unusual waste resulting from manufacturing processes.

Milled refuse means a refuse that has been mechanically grounded, shredded or pulverized.

Monitoring wells means strategically located shallow and deep wells from which water samples are drawn for analysis of possible contaminants and from which direction of groundwater flow may be determined.

Premises means any real property, or improvements thereon, including that portion of any lot abutting a public street over which the city has an easement for right-of-way or utility service.

Private property means all property, including but not limited to vacant land or any lands, building or other structure designed or used for residential, commercial, business, industrial, institutional or religious purposes, together with any yard, grounds, walk, driveway, fence, porch steps, vestibule, mailbox or other structure appurtenant thereto.

Public property means any and all streets, sidewalks, boulevards, alleys or other public ways, lakes, rivers, watercourses or fountains and any and all public parks, squares, spaces, grounds, and buildings.

Putrescible wastes means materials capable of decomposition, causing environmental nuisance and/or obnoxious odors.

Recycling means the reuse of solid waste in manufacture, agriculture, power production, or other process.

Refuse means garbage, rubbish, ashes, animal and vegetable waste from animal quarters, and all other waste matter, except sewage, from any public or private establishment, institution, or residence.

Residential unit means a structure occupied by one individual or a family, related by blood or marriage. Double houses, apartments, etc., are considered multiple residential units and each unit a separate charge entity.

Resource recovery means the process by which materials, excluding those under control of the

Atomic Energy Commission, which still have useful physical or chemical properties after serving a specific purpose are reused or recycled for the same or other purposes, including use as an energy source.

Rubbish means all nonputrescible waste matter, except ashes from any public or private establishment, institution or residence.

Sanitary landfill means a disposal facility employing an engineered method of disposing of solid waste on land in a manner which minimizes environmental hazards by spreading the solid wastes in thin layers.

Solid waste means garbage, rubbish, refuse, or other discarded solid or semisolid materials resulting from domestic, commercial, industrial, agricultural activities and governmental operations, excluding solids or dissolved material in domestic sewage or other significant pollutants in water resources such as silt, dissolved or suspended solids in industrial wastewater effluents, dissolved materials in irrigation return flows, or other common water pollutants.

Solid waste management means any solid waste disposal area, volume reduction plant, or other facility, the purpose of which is resource recovery or the disposal, recycling, processing or storage of solid waste.

Trash consists of nonburnable rubbish such as ashes, bottles, tin cans, crockery, scrap metal as well as yard rubbish, cut grass, clippings of vines, shrubs and plants and tree branches when prepared as provided in sections 138-39 through 138-43.

Volume reduction plant includes, but is not limited to, incinerators, pulverizers, compactors, shredding and bailing plants, transfer stations, composting plants and other plants which accept and process solid waste for recycling or disposal.

Waste management means the process by which solid waste is collected, transported, stored, separated, processed, or disposed of in any other way according to an orderly, purposeful and planned program.

White goods means inoperative and discarded refrigerators, ranges, washers, water heaters and other similar domestic and commercial appliances or large and bulky items.

Working face means that portion of a sanitary landfill where waste is discharged, spread and compacted prior to placement of daily cover.
(Code 1956, §§ 28-4, 28-39; M.C.S., Ord. No. 28541, § 1, 11-5-20)

Cross reference—Definitions generally, § 1-2.

Sec. 138-3. Dump closing.

All persons operating land disposal sites which are dumps shall convert them to sanitary landfills no later than December 31, 1977, or close them. The sites shall be closed in accordance with the following criteria:

(1) Access to the site shall be restricted by a fence or other appropriate and effective means.

(2) Information signs shall be placed at the entrance to the site on roads leading to the site stating that it is closed, the penalty for dumping at the site, the location and hours of operation of the alternate approved site and the name of the operating agency.

(3) A responsible person shall be assigned to supervise the closing procedures on a full-time basis during the closing operations.

(4) Burning of solid waste shall be prohibited except upon the approval by the fire prevention division and state air control commission.

(5) The site shall be closed to incoming solid waste as soon as the alternate site is in operation.

(6) Steps shall be taken, where potential water pollution exists, to prevent its continuance by diverting surface waters around the site, removing wastes from the water table, or by other means approved by the department.

(7) Upon completion, the closed site shall be covered with two feet of earth compacted

in six-inch layers and seeded and planted with grass or suitable cover vegetation to minimize erosion.

(Code 1956, § 28-52)

Sec. 138-4. Permits required for solid waste management facilities or systems.

(a) After December 31, 1977, no solid waste management facility or system shall be operated, maintained, constructed, expanded or modified without an appropriate and currently valid operating permit issued by the department of safety and permits. Such permits shall be annually renewable.

(b) Temporary operating permits may be issued to existing solid waste management facilities or systems, upon submission of a compliance schedule to correct deficiencies. An operating permit shall be issued by the department of safety and permits when the facility meets all standards for operations. Failure to correct deficiencies within the compliance schedule shall result in revocation of the temporary operating permit and initiation of formal enforcement procedures.

(c) The department of safety and permits shall issue operating permits only in conformity with the provisions of this article, approval of appropriate state agencies, and upon payment of a permit fee of $500.00.

(Code 1956, § 28-43)

Sec. 138-5. Permits for vehicles transporting refuse.

(a) All vehicles engaged in transporting commercial, contractors' household garbage, garden trimmings, manufacturing or trade refuse, residential or business trash, or other debris or waste products shall be provided with permits from the director of the department of sanitation authorizing the use of such vehicles for such purpose. Owners and/or operators of vehicles engaged in transporting waste products shall pay a permit fee of $15.00 and provide certification that the disposal of such refuse shall be in a manner and at places approved by the director. Private passenger cars and station wagons are hereby exempt from the provisions of this section.

(b) Only vehicles registered in this parish, or engaged in transporting garbage, trimmings, trade refuse, trash and other debris or waste products emanating from the parish are eligible to apply for refuse hauling permits. Proof of service within the city shall be determined by the presentation to the department of sanitation by the permit seeking individual of existing contracts with city-based concerns, or the presentation to the department of sanitation of a notarized statement confirming operations within the city.

(Code 1956, § 28-14)

Sec. 138-6. Trespassing.

(a) Effective measures shall be taken to prevent trespassing or dumping at solid waste management facilities or systems by unauthorized persons and to prevent trespassing and dumping when unattended.

(b) All solid waste management facilities or systems shall be posted with signs forbidding entry upon the premises by unauthorized persons and, if applicable, enclosed as provided in section 66-243.

(c) No person shall without authority go into or upon or remain in or upon, or attempt to go into or upon, or remain in or upon any solid waste management facility or system.

(Code 1956, § 28-41)

Secs. 138-7—138-36. Reserved.

ARTICLE II. COLLECTION AND DISPOSAL

Sec. 138-37. Penalties; certain violations.

(a) Violators of sections 138-38, 138-39, 138-41, 138-42, 138-43, 138-44, 138-45, 138-46 and 138-47 shall, upon conviction or plea of guilty, be punished as follows:

(1) The first conviction of a violation shall be punishable by a fine of not less than $150.00;

(2) The second conviction of a violation shall be punishable by a fine of not less than $250.00;

(3) For a third conviction and each subsequent offense, a fine of not less than $500.00 or imprisonment of no less than five days nor more than 90 days or both.

Owners, agents, including commercial haulers, and/or occupants of property may be charged with violations of these sections.

(b) In accordance with section 4-502(2) of the charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the department of sanitation for the purpose of enforcing the provisions of sections 138-38, 138-39, 138-41, 138-42, 138-43, 138-44, 138-45, 138-46 and 138-47. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.
(Code 1956, § 28-1.1; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 28883, § 1, 12-16-21)

Sec. 138-38. Carts to be provided.

The city's service provider shall provide to each eligible and occupied service location a roll cart container for storage of garbage and trash in a sanitary manner. Roll cart containers shall remain the property of the city at all times and are not to be removed from the associated service location.

A roll cart is a plastic, wheeled refuse receptacle having a tight-fitting, attached lid, carrying identification of the city, with a designated serial number/barcode and whose design, construction and capacity shall be approved by the city. The city's designated service provider will supply each eligible and occupied service location with one roll cart. Locations in the French Quarter or the Downtown Development District will be issued 35-gallon carts. Locations outside the French Quarter or the Downtown Development District will receive 96-gallon carts.

Eligible residents and small business owners who live or operate within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, may request an exemption from the use of a roll cart. Exemptions will be granted to residents who are elderly, disabled, or handicapped, or if the infrastructure does not permit storage of the roll cart off the public right-of-way. Exemptions will be granted provided that a written request, including the resident's name, address, apartment number, telephone number, email address (optional), and the number of units in the building or small business, is submitted to the department of sanitation. Additionally, the request must include a copy of a current sewerage and water board bill for the unit, the name and address of the property owner, if different from the resident, and the reason for the request. Upon approval, the resident will be notified and the cart at the specified service location will be removed.

Residents and small businesses that receive an exemption from the use of a roll cart are required to place their solid waste in 0.8 mil or greater, black, garbage bags. White trash bags, grocery bags, paper bags, and cardboard boxes are not acceptable for collection of solid waste. Roll carts are mandatory for all residents who do not have an approved exemption request on file with the department of sanitation. Any resident or small business owner who is in violation of the provisions of this section may be cited and fined for littering.

Only the city's representative shall be authorized to remove any city-owned solid waste cart from its assigned service location. It shall be unlawful for any other person to willfully damage or destroy any garbage cart, or to remove any garbage cart from the address to which it is assigned. Each eligible service location is entitled to one replacement roll cart if the initial cart is stolen. Any further replacements must be purchased from the city's service provider.
(Code 1956, § 28-17; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18; M.C.S., Ord. No. 28541, § 1, 11-5-20)

State law reference—Office of solid and hazardous wastes, R.S. 36:238(D).

Sec. 138-39. Placement in carts.

It shall be unlawful to place out for collection garbage or trash that is not properly contained

within a city provided roll-off cart; to remove cart covers or otherwise vandalize carts; to overfill a cart such that the lid does not close to where it is in contact with the rim; or to disturb the contents of carts after they have been placed for collection.

All owners and occupants of any building, house, structure or grounds shall be responsible for the cleanliness of their premises and alleys immediately adjacent to their premises. All business owners and managers of stores, restaurants, markets or stands shall be responsible for keeping sidewalks adjacent to buildings occupied by the business in a clean condition. Anyone who sweeps paper, trash, litter, dirt, or other waste material into the streets or onto the sidewalks or other public ways adjacent to such stores, restaurants, markets or stands shall be responsible for proper cleanup and disposal of such litter.
(Code 1956, § 28-5; M.C.S., Ord. No. 22601, § 1, 4-19-07)

Sec. 138-40. Maintenance of garbage carts.

All roll cart containers issued by the city, for use in conjunction with an automated or semi-automated loading device, shall remain the city's property and shall only be used for storage of solid waste materials collected by the city. The collection contractor is responsible for repairs to the city-owned carts when damage is caused during normal usage. Carts shall be secured by the resident, between collection days, in such a manner that they are not readily susceptible to theft or vandalism. Anyone found to have intentionally or negligently damaged a city-owned cart shall be liable for the replacement or repair cost.
(Code 1956, § 28-6; M.C.S., Ord. No. 21496, § 1, 5-6-04; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18)

Sec. 138-41. Carts to be covered.

The roll cart container shall be stored with the attached lid closed at all times, except during the placement or removal of contents.
(Code 1956, § 28-7; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18)

Sec. 138-42. Days of collection; placement and removal of garbage carts.

(a) Except as otherwise designated by the director, the automated or semi-automated solid waste collection system shall be the method used for household and small business solid waste collection services provided by the city.

(1) The director of the department of sanitation shall designate when the collection of trash and garbage shall be made in various areas of the city.

(2) All locations outside the French Quarter, the Downtown Development District, and Frenchmen Street between Esplanade Avenue and Dauphine Street, that receive curbside collection of solid waste shall place their solid waste curbside for collection prior to 5:00 a.m. on the day designated for collection, but not prior to 4:00 p.m. of the day prior to the designated collection day for collection between the hours of 5:00 a.m. and 8:00 p.m. All carts shall be removed from the curb or service alley as promptly as possible, but no later than 8:00 p.m. on the day of collection.

   a. The director of the department of sanitation shall have the authority to approve early collections during the months of June through September when excessive heat is a risk to the health and safety of workers. Between the months of June and September, collections may occur between the hours of 4:00 a.m. and 8:00 p.m.

(3) All locations within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade and Dauphine Street, that receive curbside collection of solid waste shall place their solid waste curbside for collection prior to 4:00 a.m. for collection between the hours of 4:00 a.m. and 8:00 a.m. All carts shall be removed from the curb as promptly as possible, but no later than 9:00 a.m. after the morning collection. Properties within the

area bounded by the downtown side of Canal Street, the rear property line of the properties fronting on the lakeside of Dauphine Street, the rear property line of the properties fronting on the downtown side of Dumaine Street, and the Mississippi River, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, that receive twice-per-day collection, shall place their solid waste curbside for the second collection no earlier than 3:30 p.m. for collection between the hours of 4:00 p.m. and 6:00 p.m. All carts shall be removed from the curb as promptly as possible after collection. All carts shall be removed from the curb between the hours of 9:00 a.m. and 3:30 p.m.

(4) Solid waste from commercial businesses within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, shall be properly contained in garbage receptacles with tight-fitting lids or placed in fastened 3.0-mil or greater thick, black, plastic bags. White trash bags, grocery bags, paper bags, and cardboard boxes are not acceptable for collection of solid waste.

(5) All commercial businesses within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, shall make arrangements with their private collection contractors to increase the frequency of collections during special events if significant increases in their volumes of solid waste are anticipated.

(6) Any person 60 years of age or older shall be allowed to place carts with trash and garbage, bagged yard waste, or bundles of tree limbs at the curb adjacent to his or her residence outside of the items listed in section 138-42(a)(2) and 138-42(a)(3). Any person 60 years of age or older who receives written notification of a violation of this provision shall provide proof of residence and proof of age in order to be exempt from the penalties imposed by section 138-37.

(7) Service locations receiving curbside collection shall place roll carts at the curb in front of the service location on the designated collection days in such a manner that it allows for the safe and efficient operation of the collection vehicle and does not interfere with pedestrian or vehicular traffic. Roll carts shall be placed so that they open toward the street or alley. It shall be unlawful to permit carts to remain adjacent to the curb, except on regular collection days. Carts shall be stored, between collection days, on the service location's private property so as to not interfere with pedestrian or vehicular traffic along sidewalks, streets, and other rights-of-way.

(b) All contract haulers collecting or transporting refuse within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, shall complete all work between the hours of 4:00 a.m. and 8:00 a.m. Commercial haulers that provide twice per day collection within the boundaries of the French Quarter, the Downtown Development District, or Frenchmen Street between Esplanade Avenue and Dauphine Street, shall complete all night work between the hours of 4:00 p.m. and 6:00 p.m.

(c) It shall constitute presumptive evidence that the occupant and/or owner of the establishment whose address corresponds to the serial number or barcode on the roll cart in which such garbage is held, or on the garbage itself, specifically authorized and/or directed the placement of the garbage out at a time other than authorized above. This presumption shall be applicable when such garbage is found adjacent to, or in the vicinity of the building of the party or parties whose address corresponds with the roll cart in which such garbage is found, or on the contents found in the cart.

(Code 1956, § 28-8; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18; M.C.S., Ord. No. 28541, § 1, 11-5-20; M.C.S., Ord. No. 29972, § 1, 7-11-24)

Sec. 138-43. Residential bulky waste placement and collection.

(a) Outside of the French Quarter and the Downtown Development District, the city will collect normal bulky waste a maximum of once per week on the second regularly scheduled day for pick-up of solid waste or on an "on-call" basis for larger pick-ups.

(1) Outside of the French Quarter and the Downtown Development District (except for Frenchmen Street between Esplanade Avenue and Dauphine Street), bulky waste shall be placed out for collection no later than 5:00 a.m. on the scheduled second collection date and no earlier than 4:00 p.m. of the day prior to the scheduled collection.

(2) On Frenchmen Street between Esplanade Avenue and Dauphine Street, bulky waste shall be placed out for collection no later than 4:00 a.m. on the scheduled second collection date and no earlier than 4:00 p.m. of the day prior to the scheduled collection.

(b) In the French Quarter and Downtown Development District, bulky waste is collected only on Wednesdays for pick-up of solid waste or on an "on-call" basis for larger pick-ups. Bulky waste shall be placed out for collection no later than 4:00 a.m. on the scheduled collection date and no earlier than 3:30 p.m. of the day prior to the scheduled collection.

(c) The resident shall be responsible for calling or emailing the city's service provider or 311 to schedule an "on-call" appointment for bulky waste collection.

(d) Bulky waste shall only be collected from residential units. Small businesses that receive solid waste collection services from the city shall be responsible for proper collection and disposal of bulky waste.

(e) Large bulky household items such as refrigerators, stoves, furniture, etc. shall be placed at the curb or in the service alley at the times stated in this section. All compressors must be removed from appliances prior to being placed out for collection.

(f) Bulky waste placed in alleys shall be placed adjacent to the property line. Bulky waste placed out for curbside collection shall be placed in front of the resident's property, between the sidewalk and the street curb. The director of the department of sanitation may designate additional placement and collection points. Bulky waste shall not be placed on the sidewalk or in the street, within five feet of any fire hydrant, utility pole, mail box, or any other fixed object, on top of any water meter, behind a fence or any obstruction or barrier, or in any other manner that would interfere with or be hazardous to pedestrians, bicyclists, or motorists.

(g) Items eligible for bulky waste collection for residential service locations include:

(1) Tree limbs and branches less than four feet in length and 12 inches in diameter, neatly bundled, with each bundle weighing 50 pounds or less; maximum of six bundles per regular collection or 15 bundles per scheduled "on-call" collection;

(2) Metal materials weighing 25 pounds or less;

(3) Pipe less than one inch in diameter and less than four feet in length;

(4) Manufactured items, including, but not limited to, furniture and appliances;

(5) Bagged leaves, weeds, grass, small vegetation clippings, and hedge clippings, with each bag weighing 50 pounds or less; maximum of six bags per regular collection or 15 bags per scheduled "on-call" collection;

(6) White goods;

(7) Twenty-five pounds or less of construction and demolition solid waste generated by a resident and properly containerized and/or bundled;

(8) Cardboard boxes;

(9) Carpet less than four feet in length, rolled and tied; and

(10) Tires; maximum of four tires.

(h) Items not eligible for bulky waste collection from the city and that require resident to contract for private collection and disposal include:

(1) Tree limbs or branches more than four feet in length or 12 inches in diameter, not properly bundled, or bundles weighing more than 50 pounds, or in excess of 15 bundles;

(2) Metal material in excess of 25 pounds;

(3) Pipe more than one inch in diameter or more than four feet in length;

(4) Unbagged leaves, weeds, grass, small vegetation clippings and hedge clippings, or bags weighing more than 50 pounds, or in excess of 15 bags;

(5) More than 25 pounds and/or improperly containerized or bundled construction and demolition solid waste generated by a resident, or any amount of construction and demolition solid waste generated by a contractor working at a residential unit;

(6) Concrete, cement blocks, stones, bricks;

(7) Any materials containing asbestos;

(8) Lead acid batteries or any hazardous, infectious, or medical solid waste;

(9) Vehicle or equipment parts in excess of 25 pounds;

(i) It shall be a violation of this section to place unacceptable bulky waste items, bulky waste items exceeding ten cubic yards, or improperly placed bulky waste items out for collection. The responsible party shall remove and dispose of all bulky waste improperly placed, bulky waste exceeding ten cubic yards, improperly containerized or bundled, and any unacceptable items of bulky waste at their own expense.
(Code 1956, § 28-9; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 23008, § 1, 3-6-08; M.C.S., Ord. No. 27886, § 1, 10-4-18; M.C.S., Ord. No. 28541, § 1, 11-5-20)

Sec. 138-44. Disposal of yard waste, tree branches, shrubbery.

Yard waste, tree branches, and shrubbery shall not be placed in roll carts and shall be collected in accordance with section 138-43.
(Code 1956, § 28-10; M.C.S., Ord. No. 21657, § 1, 8-19-04; M.C.S., Ord. No. 21661, § 1, 9-9-04; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18)

Sec. 138-45. Waste collection: commercial facilities, private contractors or businesses and multi-unit residential structures.

(a) The following locations are not eligible for service from the city and are responsible for contracting for private collection and disposal of solid waste:

(1) Hotels.

(2) Bars.

(3) Restaurants.

(4) Any location containing five or more units.

(5) Any location within the French Quarter or Downtown Development District that generates more than 35 gallons of solid waste at each regular collection.

(6) Any location outside of the French Quarter and Downtown Development District that generates more than 96 gallons of solid waste at each regular collection.

(7) Unoccupied properties.

Locations not eligible for city service shall comply with the provisions of section 138-58.

(b) Any owner of a small business or residential property being repaired or constructed by private contractors shall be responsible for the removal and disposal of all bulky waste and construction and reconstruction debris generated from such work. No such waste or debris shall be placed curbside for collection by the city's service providers or placed on the neutral grounds.

(c) The city shall require any location not eligible for service pursuant to this section to provide evidence of a valid and current contract for the private collection and disposal of solid waste prior to the issuance of any occupational permit at that location, or any renewal thereof. A copy of the foregoing contract shall be kept on the premises at all times and made available to rangers from the department of sanitation upon request.
(Code 1956, § 28-10.1; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 27886, § 1, 10-4-18; M.C.S., Ord. No. 28452, § 1, 8-20-20)

Sec. 138-46. Maximum collections for one service location.

Outside the French Quarter and Downtown Development District, not more than 96 gallons of solid waste per service location shall be removed at each regular collection. Within the French Quarter and Downtown Development District, not more than 35 gallons of solid waste per service location shall be removed at each regular collection. Bulky waste shall be collected in accordance with section 138-43.
(Code 1956, § 28-11; M.C.S., Ord. No. 21497, § 1, 5-6-04; M.C.S., Ord. No. 22601, § 1, 4-19-07; M.C.S., Ord. No. 23008, § 1, 3-6-08; M.C.S., Ord. No. 27886, § 1, 10-4-18)

Sec. 138-47. Improperly prepared refuse not collected; improper carts taken as trash.

Only city-owned roll carts shall be used for the collection of household and small commercial business waste. Only garbage and trash placed in the roll cart will be collected. Garbage or trash deposited into unauthorized containers and cans, or bagged garbage (not yard waste) separate from the roll cart will not be collected, unless a properly authorized exemption has been granted. Only bags containing yard waste will be collected. The director of the department of sanitation may refuse to collect garbage or trash whenever such refuse is not contained in a city-owned roll cart or the residence or business has not been granted a properly authorized exemption. Any other trash or garbage cart shall be collected as trash after notice has been given to the occupant or agent that such cart is not authorized and is unfit for use.
(Code 1956, § 28-12; M.C.S., Ord. No. 22601, § 1, 4-19-07)

Sec. 138-48. Prohibited disposal methods.

(a) No solid waste shall be disposed of except by sanitary landfill, incineration, recycling process, or other method approved by the department of safety and permits.

(b) No solid waste shall be disposed of by being placed:

(1) In an area subject to frequent and periodic flooding unless drainage provisions approved by the department of safety and permits are installed.

(2) Within 500 feet of any habitation or place of business that is served by a public water supply or within 1,000 feet of any habitation or place of business that is served by an individual water supply well located on the premises. This prohibition is not intended to prohibit the servicing of a disposal facility with a public water supply.

(3) On any public highway, street, road, alley, or the right-of-way thereof.

(4) Within the boundaries of any airport property whether such airport be for public, private or limited use.

(5) Within two miles of the closest point of any runway at any airport licensed by the state or any airport operated by the federal government which is or may be used by turbo-jet aircraft; or within one mile of any aircraft runway used only by piston-engine-type aircraft, unless it has been determined by the Federal Aviation Administration that the proposed facility poses no safety hazard to aircraft in the vicinity.

(6) In any area other than the above defined areas that in the opinion of the department of safety and permits would result in damage to the environment.

(c) The prohibitions contained in subsections (a) and (b) of this section shall not be construed as applicable to solid waste placed for collection in accordance with this article.
(Code 1956, § 28-42(1)—(3))

Sec. 138-49. Burning prohibited.

No burning of solid waste shall be permitted at any landfill site.
(Code 1956, § 28-42(4))

Sec. 138-50. Hazardous wastes.

The disposal of toxic or hazardous waste which may create a condition harmful to the environment, shall, at the owner's expense, be rendered safe and sanitary prior to delivery to the waste disposal facility.
(Code 1956, § 28-42(5))

Sec. 138-51. Infectious wastes.

Infectious waste shall be properly incinerated or processed by an alternate method which has been approved by the department of safety and permits. No raw infectious waste shall be deposited in any sanitary landfill or dump or recycling facility.
(Code 1956, §§ 28-15, 28-42(6))

Sec. 138-52. Construction on filled sites.

The construction of buildings, sewage or gas or water supply mains, parking lots, or paved areas on or through completed portions of sites filled with solid waste is prohibited unless specifically approved by the department of safety and permits.
(Code 1956, §§ 28-15, 28-42(7))

State law references—Infectious waste disposal, R.S. 30:2180 et seq.; office of solid and hazardous wastes, R.S. 36:238(D).

Sec. 138-53. Certain refuse not acceptable for collection.

Contractors' refuse and manufacturing or trade refuse is not acceptable for municipal collection.
(Code 1956, § 28-13)

Sec. 138-54. Removal of flammable materials.

The producers of such waste materials as celluloid trimmings, motion picture films, rags or other materials soaked with gasoline, kerosene or other flammable materials shall place such materials in metal containers with tight covers and remove them for disposal as instructed by the director of the department of sanitation.
(Code 1956, § 28-16)

Sec. 138-55. Disposal of explosives.

It shall be unlawful to dispose of unexploded ammunition, gunpowder, fireworks and other forms of explosives by putting the same in garbage or trash containers placed out for collection.
(Code 1956, § 28-16.1)

Sec. 138-56. Disposal of unusable television picture tubes.

It shall be unlawful for any person to dispose of or to put out on a public street or walkway any television picture tube. Such tube shall be devacuumized by a licensed television technician who shall dispose of same at a city refuse disposal facility.
(Code 1956, § 28-16.2)

Sec. 138-57. Sanitation charges; collection.

(a) The fees for the collection and disposal of refuse, garbage, trash and other sanitation services shall be as follows for services rendered during the periods indicated below:

(1) Each residential unit, including each residential unit in multi-residential structures, per month: $24.00.

(2) Business, professional or service office and institution, per month, per unit: $24.00.

(3) Commercial, industrial and manufacturing establishment, per month, per unit: $48.00.

(b) The service fees imposed pursuant to section (a) above shall be mandatory, shall be due and owed by the sewerage and water board account holder, and shall be collected from the sewerage and water board account holder, provided:

(1) That funds of the sewerage and water board may not be used for any purpose except for the operation and maintenance of the sewerage, water and drainage systems.

(2) That no part of the cost of the procedure of including the sanitation service charge on the water and/or sewerage bills of the sewerage and water board shall be incurred by the sewerage and water board, and, accordingly, any fees owed to the sewerage and water board pursuant to a Cooperative Endeavor Agreement (hereinafter "CEA") between the City of New Orleans and the sewerage and water board shall be deducted from all sanitation collections received and collected by the sewerage and water board and that such deductions, which are subject to audit by the department of finance, shall be made monthly when the net proceeds are delivered to the city.

(3) That the sewerage and water board is relieved of any and all responsibility of the collection of the sanitation service charges if the sewerage and water board account holder fails to pay the service charges at the time the water and/or sewerage bills are paid and that all methods of enforcing such collection shall be the responsibility of the city. However, if there is a CEA between the city and the sewerage and water board pursuant to La. R.S. 33:4169.1, the sewerage and water board, at the direction of the city, shall terminate the supply of water to any premises or person delinquent in the payment of sanitation service charges in conformity with La. R.S. 33:4169.1 and the CEA. Prior to the suspension of water supply as the result of a delinquency in payment of sanitation services charges, notice of such suspension shall be mailed to the address of the premises where service will be suspended.

(4) That the collection of such sanitation service charges shall not impair or affect, in any manner or form, the authority of the sewerage and water board to collect its water bills, and its bills for sewerage service as set forth by the procedure adopted by the sewerage and water board.

(5) That the city may contract with a private attorney, law firm or collection agency for legal and other services related to the collection of the sanitation service charges and any penalties attendant thereto.

(6) That all complaints made to the sewerage and water board regarding the collection of sanitation service charges shall be referred to the proper representative of the city, unless otherwise provided by the Cooperative Endeavor Agreement.

(7) Where a charge has been made for sanitation service and no water and sewerage charges are billed by the sewerage and water board during the billing period, the person paying the sanitation service charge under this section may make a claim for refund by filing a sworn application for refund with the department of finance. Those units being serviced with water by the sewerage and water board and those receiving free water from the

sewerage and water board shall pay the same sanitation service charge as the other recipients.

(8) The sanitation service charge will become due on the due date of the water and/or sewerage bill. If not paid on or before due date, a 15 percent penalty will be added to the outstanding current balance of the sanitation service charge.

(Code 1956, § 28-17.2; Ord. No. 19,963, § 1, 12-12-00; M.C.S., Ord. No. 21360, § 1, 12-1-03; M.C.S., Ord. No. 24231, § 1, 12-1-10; M.C.S. Ord. No. 24259, § 1, 1-6-11; M.C.S., Ord. No. 25599, § 1, 11-21-13)

Sec. 138-58. Exemptions from sanitation charge; litter abatement charges.

(a) The department of finance may annually exempt property owners from the service charges imposed by section 138-57 upon:

(1) Submission of a sworn application for an exemption certifying that collection of refuse at the subject address is provided for on a regular basis by a private refuse collection agency and submission of such proof as necessary to verify refuse collection by a private contractor; and

(2) Payment of a litter abatement service charge in lieu of sanitation service charges in accordance with the following schedule:

a. Multiple residential property, $100.00 per year or $4.00 per unit per year, whichever is greater.

b. Nonresidential property, $100.00 per year or $4.00 per unit per year, whichever is greater.

(b) The litter abatement charges provided for by this section shall be due and payable upon application for an exemption from sanitation service charges, and thereafter prior to March 31 for the ensuing year.

(c) The department of finance shall submit the addresses of all property exempted from the sanitation service charge under this section to the department of sanitation and the sewerage and water board, and the department of sanitation shall not provide refuse collection service at those addresses nor shall the sewerage and water board bill those addresses for sanitation service charges.

(d) The director of finance shall provide a certificate of exemption from any increase in the sanitation service charge above the rates in effect December 1, 2000, for 12 months for any head of household who is 65 years of age or older and whose household income does not exceed the standard for low-income households which is established by the U.S. Department of Housing and Urban Development. The certificate shall be provided by the director upon receipt of satisfactory evidence of age and household income and may be renewed annually upon resubmission of evidence. The sewerage and water board shall not include the sanitation charge on the bill of any head of household for which a certificate of exemption has been granted during the effective period of the exemption. Proof of exemption may be certified as follows:

(1) *Proof of age.*

a. Louisiana state I.D.;

b. Louisiana driver's license;

c. Birth certificate; or

d. Other (U.S. passport, U.S. resident I.D., out-of-state driver's license).

Once a person proves that he or she is 65 years or older verification of age is done only once.

(2) *Proof of federal low income.*

a. Supplemental Security card (SSI);

b. Medicaid card;

c. Food stamps I.D. card (FSP2); or

d. Social Security Administration award letter.

(3) *[Poverty income guidelines.]* Poverty income guidelines according to federal register are as follows:

No. per Household (Family Size)	*Income*
1	$10,830.00
2	14,570.00

No. per Household (Family Size)	*Income*
3	18,310.00
4	22,050.00
5	25,790.00
6	29,530.00
7	33,270.00
8	37,010.00

Households larger than eight, add $3,740.00 for each additional number. These guidelines shall be reversed in accordance with federal guidelines.

(Code 1956, § 28-17.2.1; Ord. No. 19,935, § I, 12-1-00; Ord. No. 19,963, § 1, 12-12-00; M.C.S., Ord. No. 24231, § 1, 12-1-10; M.C.S., Ord. No. 24437, § 1, 6-2-11)

Sec. 138-58.1. Emergency waiver of sanitation charge fees.

The service charges imposed by section 138-58 shall be waived for the period between September 1, 2005, and the repeal of this section for all properties which are unoccupied because of damage caused by Hurricane Katrina.
(M.C.S., Ord. No. 22084, § 1, 11-17-05)

Sec. 138-59. Charges at transfer station.

(a) Charges for the disposal of refuse, garbage, and trash at a city transfer station shall be as follows:

(1) Residential and commercial users up to one-ton truck capacity, unmodified vehicles; with Orleans Parish vehicle inspection stickers (brake tags) or Orleans Parish driver's license:

(A) Pick-up truck (debris below roof level): $15.00 per load;

(B) Pick-up truck (debris above roof level): $25.00 per load;

(C) Enclosed truck: $40.00 per load.

(2) Residential and commercial users with trailer; where combined length of vehicle and trailer does not exceed 25 feet; with Orleans Parish vehicle inspection stickers (brake tags) or Orleans Parish driver's license:

(A) Open trailer: $25.00 per load;

(B) Enclosed trailer: $40.00 per load.

(3) City of New Orleans Departments, Boards, Commissions, no charge.

(b) The following vehicles shall not be permitted to dispose of refuse, garbage, trash, or any other materials at a city transfer station:

(1) Vehicles without Orleans Parish vehicle inspection stickers (brake tags) or Orleans Parish driver's license;

(2) Vehicles over one-ton capacity, regardless of weight.

(Code 1956, § 28-17.1(a)—(d); M.C.S., Ord. No. 211342, § 1, 12-1-03; M.C.S., Ord. No. 27896, § 1, 10-18-18)

Sec. 138-60. Reserved.

Editor's note—M.C.S., Ord. No. 21343, § 1, adopted Dec. 1, 2003, repealed § 138-60, which pertained to hours of acceptance and derived from Code 1956, § 28-17.1(e), (f).

Sec. 138-61. Waste not accepted at transfer station.

Oversized, bulky waste will not be accepted at the city's transfer stations.
(Code 1956, § 28-17.1(g))

Sec. 138-62. Special service; unscheduled services; parties responsible for payment.

(a) Upon written request and authorization, the department of sanitation may make such special unscheduled collection of refuse in excess of the maximums regulated by section 138-46. A charge shall be levied for such service at the rate of $12.00 per hour, plus a fixed rate of $8.00 for hauling to the disposal site.

(b) The abovementioned service charge shall be due and payable upon completion of the service and shall be paid by the recipient of the service and paid by the owner, agent or occupant of the property on the water and/or sewerage bills of the sewerage and water board.

(c) If the director of sanitation is in doubt as to what party (owner, agent or occupant) is responsible for paying this service charge, the

director of the department of sanitation may demand payment in advance of providing such special unscheduled refuse collection.
(Code 1956, § 28-17.3)

Sec. 138-63. Recycling service charge; exemption; collection.

(a) The fees for recycling shall be as follows for services rendered:

(1) Each residential unit, except residential units in multi-residential structures that show proof of exemption from payment of city service fees as provided in this section below, $1.00 per month.

(2) Business, professional, or service office or institution, except those that show proof of exemption from payment of city service fees as provided in this section below, $1.00 per month.

(3) Commercial, industrial and manufacturing establishments, except those that show proof of exemption from payment of city service fees as provided in this section below, $2.00 per month.

(b) The fees imposed in subsection (a) of this section shall be due and are owed by the recipient of the services and shall be collected by the property owner from the recipient of the service and paid by the owner of the property on the water and/or sewerage bills of the sewerage and water board.

(c) The director of finance shall provide a certificate of exemption from the recycling charge for 12 months for any head of household who is 65 years of age or older and whose household income does not exceed the standard for low income households which is established by the U.S. Department of Housing and Urban Development. The certificate shall be provided by the director upon receipt of satisfactory evidence of age and household income and may be renewed annually upon resubmission of evidence. The sewerage and water board shall not include the recycling charge on the bill of any head of household for which a certificate of exemption has been granted during the effective period of the exemption.

(d) Proof of exemption may be certified as follows:

(1) *Proof of age.*

a. Louisiana state I.D.

b. Louisiana driver's license.

c. Birth certificate.

d. Other (U.S. passport, U.S. resident I.D., out-of-state driver's license).

Once a person proves that he or she is 65 years or older, verification of age is done only once.

(2) *Proof of federal low income.*

a. Supplemental security card (SSI).

b. Medicaid card.

c. Food stamps I.D. card (FSP2).

d. Social security administration-award letter.

(3) *[Poverty income guidelines.]* Poverty income guidelines according to federal register are as follows:

No. of Household	*Income*
1	$ 7,470.00
2	10,030.00
3	12,590.00
4	15,150.00
5	17,710.00
6	20,070.00
7	22,830.00
8	25,390.00

Households larger than eight, add $2,560.00 for each additional number. These guidelines shall be reversed in accordance with federal guidelines.

(e) The department of finance may annually exempt property owners from the service charges imposed by subsection (a) of this section upon:

(1) Submission of a sworn application of an exemption certifying that collection of refuse at the subject address is provided for on a regular basis by a private refuse collection agency, and that collection of recyclables at the subject address is provided for on a regular basis by a private recycling agency, and submission of such proof as necessary to verify collection by a private contractor. All private

recycling programs must have a waste reductions goal of 25 percent, consistent with applicable state law, and must provide a sworn application to that effect.

(2) Payment of a litter abatement service charge in lieu of sanitation service charges according to the schedule provided in section 138-58 of this Code.

(f) The recycling charge will become due on the due date of the water and/or sewerage bill. If not paid on or before the due date, a ten percent penalty will be added to the recycling charge.

(g) Persons qualifying for exemption from the recycling service charge, as provided in this section, shall also be granted exemption from any increase in the sanitation service charge, as provided in section 137-57(a), above the rates in effect as of December 1, 2000.

(h) The department of finance shall temporarily exempt all persons from the recycling service charge imposed by subsection (a). This fee exemption shall apply retroactively from September 1, 2005, and shall remain effective until recycling collection services are resumed.
(M.C.S., Ord. No. 16,856, 1-5-95; M.C.S., Ord. No. 16,993, § 1, 4-20-95 ; Ord. No. 19,963, § 1, 12-12-00; M.C.S., Ord. No. 22117, § 1, 1-5-06)

Secs. 138-64—138-95. Reserved.

ARTICLE III. REGULATIONS*

Sec. 138-96. Supervision.

A responsible person shall be on duty at all solid waste management facilities or systems continuously during the hours of active operation.
(Code 1956, § 28-40)

*__State law references__—Prohibition of garbage dumps and burning dumps, R.S. 33:4168; prohibition of municipally owned, operated or contracted incinerators, R.S. 33:4168.1; municipal and parish authority over collection and disposal of garbage and trash, R.S. 33:4169.1.

Sec. 138-97. Operation of landfills and dumps.

(a) All dumps and landfills within the city shall be operated as sanitary landfills in accordance with the comprehensive zoning ordinance.

(b) All sanitary landfill operators shall post a performance bond in the amount of $5,000.00 or other approved security in an amount consistent with the scope of the operation with the department of safety and permits.

(c) All plans and applications for a permit to construct and operate a sanitary landfill shall be signed by a professional engineer registered in the state.

(d) The department of safety and permits, following a review of the facility plans, shall impose such revisions as necessary, including provisos, in connection with the issuance of a permit for construction and/or operation to ensure compliance with the provisions of this article.
(Code 1956, § 28-44)

Sec. 138-98. Site requirements for sanitary landfills.

The sanitary landfill site location shall:

(1) Be easily accessible by collection vehicles, automobiles, and, where applicable, transfer vehicles.

(2) Safeguard against water pollution originating from the disposal of solid waste.

(3) Have an adequate quantity of acceptable cover material available. The cover material shall not contain organic matter conducive to the harborage and/or breeding of vectors.

(4) Conform with the provisions of the comprehensive zoning ordinance.

(Code 1956, § 28-45)

Sec. 138-99. Engineering plans for landfills.

Engineering plans for landfill facilities shall include the following information:

(1) *Topographic maps.* The designs of the sanitary landfill shall include one or

more topographic maps at a scale of not over 200 feet to the inch with one-foot contour intervals. These maps shall indicate features such as: Fill area; any borrow area; access roads; grades for proper drainage of each lift required and a typical cross-section of a lift; special drainage devices if necessary; fencing; equipment shelter; existing and proposed utilities; employee facilities; and all other pertinent information to clearly indicate the orderly development, operations and completion of the sanitary landfill.

(2) *Hydrological survey.* A hydrological survey of the proposed site shall be provided if required by the department of safety and permits. Where feasible, the department may accept available information from government sources.

(3) *Other maps and photographs.* A map or aerial photograph of the area showing land use and zoning within one-quarter mile of the solid waste disposal site shall be provided. The photographs or maps shall be of sufficient scale to show all homes, industrial buildings, wells, watercourses, dry runs, roads, and other significant details.

(4) *Reports.* A report shall accompany the plans indicating but not limited to the following:

a. The area to be served by the proposed site.

b. Anticipated type, annual quantity and source of solid waste, expressed in tons.

c. Anticipated life of site.

d. Geological formations and groundwater elevations to a depth of at least ten feet below proposed excavations and lowest elevation of the site. Such data shall be obtained by soil borings or other appropriate means.

e. Soil maps, interpretive guide sheets, and a report supporting the suitability of the site for such an operation.

f. Source and characteristics of cover material.

g. Type and amount of equipment to be provided at the site for excavating, earth moving, spreading, compaction, and other needs.

h. The names and addresses of persons responsible for actual operation and maintenance of the site and intended operating procedures.

(Code 1956, § 28-46)

Sec. 138-100. Operational features for sanitary landfill sites; minimum standards.

The disposal site shall be provided with operation features and appurtenances necessary to maintain a clean and orderly operation. The following minimum features shall be required:

(1) Operational plans to direct and control the site shall be provided.

(2) An all-weather access road to the site shall be provided. A special area with a stabilized roadway shall be provided within the site for wet weather operations.

(3) The site shall be equipped with signs indicating the name of the operating authority, traffic flow, hours of operation, and charges for disposal.

(4) Records of the amount of solid waste received measured in cubic yards shall be maintained. Quantitative records shall be forwarded to the department of safety and permits upon request.

(5) Suitable dust control methods such as approved chemicals, oils, or water sprays shall be available on the site.

(6) Blowing paper and other light materials shall be controlled by providing a portable fence near completed cells.

(7) Fire protection and firefighting facilities adequate to ensure the safety of employees and provisions to deal with accidental burning of solid waste within the site shall be available on the site.

(8) Emergency first aid equipment to provide adequate treatment of accidents, especially those associated with hazardous wastes shall be provided.

(9) Telephone or radio communications shall be provided at the waste disposal site.

(10) A trained equipment operator shall be present during operating hours.

(Code 1956, § 28-47)

Sec. 138-101. Equipment requirements for sanitary landfills.

(a) Adequate numbers, types and sizes of equipment sufficient for spreading, covering and compacting operations shall be provided on the sanitary landfill site.

(b) Sufficient reserve equipment, or arrangements to provide alternate equipment within 24 hours following equipment breakdown, shall be provided by the operators of the sanitary landfill.

(c) Suitable shelter and sanitary facilities shall be provided for personnel. Provisions for permanent or temporary shelter of adequate size, safe drinking water, sanitary handwashing and toilet facilities, electricity, heating facilities, and proper screens, shall constitute compliance with this section.

(d) The working area of the site shall be equipped with a water line of no less than six inches diameter to provide an adequate supply of water under pressure to control fires. A stockpile of cover material shall be maintained on the site to control fires. Fire extinguishers in working order shall be kept on equipment and in all buildings.

(e) This section shall not be construed to repeal, restrict or limit any requirements of the city's building code or fire prevention code.

(Code 1956, § 28-48)

Sec. 138-102. Landfill operations.

(a) At the time of design approval or at any time groundwater contamination is suspected, the department of safety and permits shall have the option to require the installation of monitoring wells and may specify the number, location and depth of monitoring wells in addition to the frequency of samples to be taken, and the analyses to be run.

(b) Sanitary landfills shall provide for the management of surface runoff from the site to meet established water quality standards of the receiving waters.

(c) Any leachate emanating from a landfill shall be collected and treated if it is a potential source of water pollution.

(d) The grade of the completed refuse cells and lifts in addition to the final cover shall drain the surface runoff water to prevent uncontrolled ponding.

(e) All completed portions of sanitary landfills which have received final cover shall be planted with grass or acceptable cover vegetation to minimize infiltration, erosion and dust.

(f) All sanitary landfills where gas generated by decomposition of wastes cannot readily be dispersed into the atmosphere shall be provided with a gas control system.

(g) All solid waste, except materials such as abandoned vehicles, white goods and certain hazardous wastes, as specified by the department of safety and permits shall be compacted to form cells.

(h) Pesticides used to control rodents, flies and other insects shall be approved by the department of safety and permits.

(Code 1956, § 28-49)

Sec. 138-103. Special waste handling.

(a) Disposal of waste sludges and liquids shall be with special consideration of air and water pollution and health and safety of landfill employees. Appropriate provisions shall be made for handling these waste materials in a landfill, only where alternate disposal methods are not

available and when such disposal does not violate laws and regulations. The approval of the safety and permits department shall be required.

(b) If abandoned vehicles are brought to the site, they may be stored temporarily in a separate area, provided arrangements have been made for biweekly removal to an automobile shredding, or compacting plant. If such arrangement has not been made all abandoned automobiles, white goods and similar materials shall be compacted before being placed in the fill area to minimize voids.

(c) Upon the occurrence of natural disasters, in which large accumulations of debris are created, such as trees and buildings that have been destroyed, the debris may be transported to an area remote from habitation, and burned, in accordance with the regulations of the fire prevention division of the fire department and the state air control commission.
(Code 1956, § 28-50)

Sec. 138-104. Milled solid waste.

The department of safety and permits may waive daily soil cover requirements for sanitary landfill operations utilizing a milling facility. The department of safety and permits may grant operating permits for such facilities contingent upon the following conditions:

(1) Seventy percent of all milled refuse, dry weight, shall be capable of passing through a four-inch screen.

(2) Waste shall be spread to a smooth contour and compacted promptly after placement and left undisturbed to prevent odors. Wind blowing of milled refuse and paper shall be controlled.

(3) All solid waste storage areas in the milling facility shall be maintained and cleaned at the end of each day's operations, or during continuous operation, each 24 hours, to prevent fly, rodent or other vector problems. All milling equipment shall be maintained to control spillage and to achieve the required milled product quality.

(4) An operational plan shall include provision for removal and proper disposal of wastes within 24 hours should the mill facility break down or operational quality be diminished. The operational plan shall include provision for a stock pile of emergency soil cover material and a plan to convert the operation to a sanitary landfill.

(5) Upon completion of the site, it shall be closed, covered with a final 18-inch thick soil cover, and shall be seeded or planted with grass or suitable cover vegetation to minimize erosion.

(6) The department of safety and permits may require daily cover of milled solid waste if health and environmental considerations so warrant.
(Code 1956, § 28-51)

Sec. 138-105. Spillage of dirt, garbage, or trash from transport or collection vehicle.

(a) It shall be unlawful for any person to operate any vehicle or other mobile equipment being used for the hauling of earth, waste materials, garbage, trash, or other loose materials, in such manner as to cause or permit the spillages, dropping or casting of any portion thereof upon the streets, sidewalks, or public ways, or in any other manner which would create a nuisance.

(b) It shall be unlawful for any person to operate or cause to be operated any vehicle or other mobile equipment being used for the hauling of garbage, or trash, unless such garbage or trash is completely covered by a securely fastened tarpaulin, or other similar covering, and unless the tailgate of such vehicle is secured in such manner as to prevent spillage of any portion of the garbage or trash being transported upon the streets, sidewalks, or other public ways.

(c) Any person convicted of violating any of the provisions of this section shall be subject to a fine of $100.00 or in lieu thereof, shall be subject to community service work at the discretion of the courts.

(d) The provisions stated in section 50-5, to allow first offenders to pay fines at the health violations branch, department of health, shall not apply.
(Code 1956, § 28-53)

Chapters 139—141

RESERVED

Chapter 142

SPECIAL DISTRICTS

Article I. In General

Secs. 142-1—142-30. Reserved.

Article II. Almonaster Michoud Industrial District

Sec. 142-31. Adoption of annual plan.
Secs. 142-32—142-35. Reserved.

Article III. Community Cultural Districts

Sec. 142-36. General.
Sec. 142-37. Definitions.
Sec. 142-38. Cultural arts districts.
Sec. 142-39. Effective date.
Secs. 142-40—142-44. Reserved.

ARTICLE I. IN GENERAL

Secs. 142-1—142-30. Reserved.

ARTICLE II. ALMONASTER MICHOUD INDUSTRIAL DISTRICT*

Sec. 142-31. Adoption of annual plan.

(a) A plan for the expenditure of the Almonaster Michoud Industrial District (AMID) revenues for each upcoming fiscal year shall be adopted by the board of commissioners each year and shall be submitted to the chief administrative officer and to the city planning commission on or before October 1. The plan shall include:

(1) An estimate of the annual and aggregate cost of acquiring, constructing, or providing the public services, capital improvement projects, or facilities set forth therein;

(2) An estimate of the proportion of the tax to be levied on the taxable real property within the district which is to be set aside and dedicated to paying the cost of furnishing specified public services, and an estimate of the proportion of such tax to be set aside and dedicated to paying the cost of projects or capital improvements, or paying the cost of debt service on any bonds to be issued to pay the cost of projects or capital improvements, such proportions, in each case, to be expressed in numbers of mills;

(3) An estimate of the aggregate number of mills required to be levied in each year on the taxable real property within the district in order to provide the funds required for the implementation or effectuation of the plan for furnishing the public services specified and for projects, capital improvements or debt service, or any combination thereof; and

(4) A list of all contractors with whom the board has renewed or established or expects to renew or establish contracts valued at $25,000.00 or more, as well as a description of the responsibilities of such contractors.

The plan shall be prepared in ordinance form and shall be forwarded to the city council, together with recommendations of the chief administrative officer and the city planning commission, on or before November 15 of each year. The council shall approve or disapprove the plan by enacting into law or not enacting into law the ordinance in which it is embodied. If the plan is disapproved by the council, the council shall then refer the plan back to the board of commissioners. The board shall then submit an amended plan in ordinance form for council approval or disapproval.

(b) The city planning commission shall review and consider the plan, as provided hereinabove, in order to determine whether or not it is consistent with the comprehensive plan for the city, and shall within 30 days following receipt thereof submit to the city council its written opinion as to whether or not the plan or any portion or detail thereof is inconsistent with the comprehensive plan for the city, together with its written comments and recommendations with respect thereto. After receipt of the plan, together with the written comments and recommendations of the city planning commission, the council shall review and consider the plan, together with such written comments and recommendations. The council may by a majority vote of its members adopt or reject the plan as originally submitted by the board, or it may alter or modify the plan or any portion or detail thereof, but only by a majority vote of all its members. If the plan as originally submitted by the board is adopted by a majority vote of all members of the council, it shall become final and conclusive and may thereafter be implemented. If, however, the council alters or modifies the plan by a majority vote of its members, the plan so altered or modified shall be resubmitted to the board of the district for its concurrence or rejection. The board of the district may concur in such modified plan by a majority vote of all of its members. If the board so votes to concur in the plan as modified by the council, it shall notify the council in writing of its action. The board may in any given year, without council approval, make adjustments to the plan which shall not exceed for

*__State law reference—__Almonaster Michoud Industrial District, creation, powers, R.S. 33:4701 et seq.

any one year an aggregate value of 30 percent of any budget allocation. The board shall submit amendments to the city council when they desire to adjust an allocation in the annual plan by an aggregate value of 30 percent or more in any one year. The board shall not implement such amendment until it has been approved by the city council.
(Code 1956, § 5A-1)

State law reference—Plan required, R.S. 33:4702(E).

Secs. 142-32—142-35. Reserved.

ARTICLE III. COMMUNITY CULTURAL DISTRICTS

Sec. 142-36. General.

Located entirely within the city within the boundaries of a state-certified cultural district, several tax incentives may be available including:

(1) A sales tax exemption on the sale of certain original works of art;

(2) Individual income tax credits for eligible expenses incurred during the rehabilitation of certain owner-occupied residential or owner occupied mixed use structures; and

(3) Income and corporate franchise tax credits for eligible expenses incurred during the rehabilitation of certain historic structures.

(M.C.S., Ord. No. 23538, § 1, 5-7-09)

Sec. 142-37. Definitions.

The following words, terms and phrases, when used in this division [article], shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

For purposes of this article, *certain original works of art,* which are herein eligible for tax exemption as established by applicable state law.

For purposes of this article, *eligible expenses incurred during the rehabilitation of certain owner-occupied residential or owner occupied mixed use structures,* which are herein eligible for state historic tax credits shall be as established by applicable state law.
(M.C.S., Ord. No. 23538, § 1, 5-7-09)

Sec. 142-38. Cultural arts districts.

The following shall be the cultural districts of the city:

(1) The "Freret-Claiborne Cultural District" generally surrounded by the following boundaries:

The northern side of Claiborne Avenue, to include all properties between Claiborne Avenue, Derbigny Street, and South Prieur Street, between the western side of Octavia Street and the eastern side of General Pershing Street. The western side of Octavia Street, between the northern side of Claiborne Avenue and the southern side of South Saratoga Street. The southern side of South Saratoga, between the southern side of Octavia Street and the eastern side of General Pershing Street. The eastern side of General Pershing Street, between the southern side of South Saratoga Street and the northern side of Claiborne Avenue.

(2) The "Magazine Street Gallery Cultural District" generally surrounded by the following boundaries:

The northern side of Camp Street, between the western side of Lyons Street and the eastern side of Toledano Street. The western side of Lyons Street, between the southern side of Tchoupitoulas Street and the northern side of Camp Street. The southern side of Tchoupitoulas Street, between the western side of Lyons Street and the eastern side of Toledano Street. The eastern side of Toledano Street, between the southern side of Tchoupitoulas Street and the northern side of Camp Street.

(3) The "Downtown Development District Cultural District" generally surrounded by the following boundaries:

The eastern half of Canal Street, between the "lakeside" half of University Place

and the Mississippi. The "downtown" side of Calliope Street, between the "lakeside" half of O'Keefe Avenue and the Mississippi. The "lakeside" half of O'Keefe Avenue/ University Place, between the "downtown" side of Calliope Street and the eastern side of Canal Street. The Mississippi Riverfront, between the "downtown" side of Calliope Street and the eastern side of Canal Street.

(4) The "Lower Garden Cultural District" generally surrounded by the following boundaries:

The southern side of Calliope Street, between the northern side of Carondelet Street and the Mississippi River. The northern side of Carondelet Street, between the southern side of Jackson Avenue and the southern side of Calliope Street. The southern side of Jackson Avenue, between the northern side of Carondelet Street and the Mississippi River. The Mississippi Riverfront, between the southern side of Jackson Avenue and the southern side of Calliope Street.

(5) The "Museum-City Park Cultural District" generally surrounded by the following boundaries:

City Park Avenue, from Canal Street to Canal Boulevard; Canal Boulevard, from City Park Avenue to Navarre Avenue; Navarre Avenue, from Canal Boulevard to Orleans Avenue; Orleans Avenue, from Navarre Avenue to Zachary Taylor Drive/ I-610; Zachary Taylor Drive/I-610, from Orleans Avenue to Wisner Boulevard; Wisner Boulevard, from Zachary Taylor Drive/I-610 to North Carrollton Avenue; North Carrollton Avenue from Wisner Boulevard to Orleans Avenue; Orleans Avenue, from North Carrollton Avenue to South Broad Street; South Broad Street, from Orleans Avenue to Tulane Avenue; Tulane Avenue, from South Broad Street to I-10; I-10, from Tulane Avenue to City Park Avenue; and City Park Avenue, from I-10 to Canal Street. Unless otherwise stated, the Museum - City Park Cultural District boundaries listed above shall encompass both sides of the street.

Effective July 1, 2014.

(6) The "Lafitte Greenway 'New City' Cultural District" generally surrounded by the following boundaries:

The northern boundary: The southern side of North Broad Avenue, between the western side of Perdido Street and the western side of Orleans Avenue; The Western Boundary: The western side of Perdido Street, between the southern side of South Broad Street and the southern side of South Dorgenois Street; the southern side of South Dorgenois Street between the western side of Perdido Street and the western side of Iberville Street; the western side of Iberville Street from the southern side of South Dorgenois Street to the southern side of Crozat Street; The Southern Boundary: The southern side of Crozat Street, backline of properties abutting but not facing Basin Street, the eastern side of St. Louis Street to the southern side of Crozat Street, and along the southern side of Crozat Street to the western side of Orleans Avenue; The Eastern Boundary: The western side of Orleans Avenue, between the southern side of North Broad Street and the southern side of Crozat Street.

Effective July 15, 2010

(7) The "Bayou Road and African American Heritage Cultural District" generally surrounded by the following boundaries:

The eastern side of Orleans Avenue, between the north side of North Broad Street to Louis Armstrong Park and the northern side of Basin Street. The northern side of Rampart Street, along the length of Louis Armstrong Park to St. Phillip Street, the western side of St. Phillip Street to St. Claude Avenue, the south side of Treme Street to Esplanade Avenue, the eastern half of Esplanade Avenue to the north side of Rampart street, and the north side of Rampart Street, and the

north side of Rampart Street/St. Claude Avenue, between Esplanade Avenue and the western half of Elysian Fields. The western half of Elysian Fields to the northern side of North Claiborne Avenue, the northern side of North Claiborne Avenue to the eastern half of St. Bernard Avenue, the eastern half of St. Bernard Avenue to the northern side of Gentilly Boulevard. The north side of Gentilly Boulevard, between St. Bernard Avenue and the western side of Bayou Road, the western side of Bayou Road to the north side of North Broad Street, and the north side of North Broad Street to the eastern side of Orleans Avenue.

(8) The "Old Algiers Cultural District" generally surrounded by the following boundaries:

The northern boundary: the Mississippi Riverfront, between the western side of Bouny Street and the southern side of Pelican Street and the eastern side of Hendee Street.

The southern boundary: the southern side of Diana Street from the eastern side of Behrman Avenue to the eastern side of Nunez street. The eastern side of Nunez Street from the southern side of Diana Street to the southern side of Ptolemy Street. The southern side of Ptolemy Street between the eastern side of Nunez Avenue and the western side of Brooklyn Avenue.

The western boundary: the southern side of Pelican St., from the western side of Bouny Street to the western side of Verret Street. The western side of Verret Street between the southern side of Pelican Street and the northern side of Opelousas Avenue. The northern side of Opelousas Avenue between the Western side of Brooklyn Avenue and the Western Side of Verret Street. The western side of Brooklyn Avenue from the northern side of Opelousas Avenue to the southern side of Ptolemy Street.

The eastern boundary: the eastern side of Hendee Street between the Mississippi Riverfront and the southern side of Patterson Street. The southern side of Patterson Street from the eastern side of Hendee Street to the eastern side of Elmira Avenue. The eastern side of Elmira Avenue from the southern side of Patterson Street to the southern side of Pelican Street. The southern side of Pelican Street from the eastern side of Elmira Avenue to the eastern side of Vallette Street. The eastern side of Vallette Street from the southern side of Pelican Street to the southern side of Eliza Street. The southern side of Eliza Street from the eastern side of Vallette Street to the eastern side of Verret Street. The eastern side of Verret Street from the southern side of Eliza Street to the northern side of Homer Street. The northern side of Homer Street from the eastern side of Behrman Avenue to the eastern side of Verret Street. The eastern side of Behrman Avenue from the northern side of Homer Street to the southern side of Diana Street.

Effective April 1, 2010

(9) The "Gentilly/Pontchartrain Park Cultural District" generally surrounded by the following boundaries:

Lakeview Drive, along Lake Pontchartrain to the western side of Franklin Avenue. The eastern side of Pauline Drive and parallel to Chef Menteur Highway to the south and Lakeshore Drive and Lake Ponchartrain to the North. The southern side of Gentilly Boulevard, between the western side of Norman Mayer Boulevard to the intersection with Providence Place, then the southern side of Chef Menteur Highway to the levee before France Road. The western side of Franklin Avenue, from Lakeshore Drive along Lake Pontchartrain to the northern side of Prentiss Avenue, then along the northern side of Prentiss Avenue to the western side of St. Rock Avenue to the northern side of Gentilly Boulevard, then along the northern side of Gentilly Boulevard to the western side of Norman Mayer Boulevard at the intersection with Gentilly Boule-

vard. In addition to the current boundaries of the "Gentilly/Pontchartrain Park Cultural District" the following proposed/expanded boundary which are geographically contiguous and will include Dillard University shall be deemed to be part of the Gentilly/Pontchartrain Park Cultural District: Southern Boundary: extend from the northern side of Gentilly Boulevard/Norman Mayer Boulevard intersection to the eastern side of London Avenue Canal. Western Boundary: include eastern side of London Canal between northern side of Gentilly Boulevard and western side of Warrington Drive. Eastern Boundary: Include eastern side of Warrington Drive between northern side of Gentilly Boulevard and eastern side of London Canal.

(10) The "Lower Ninth Ward Cultural District" generally surrounded by the following boundaries:

The northern side of Florida Avenue between the Industrial Canal and the Orleans-St. Bernard Parish line. The Orleans-St. Bernard Parish line from the northern side of Florida Avenue and to the Mississippi River. The Mississippi River from the Industrial Canal to the Orleans-St. Bernard Parish line. The Industrial Canal from the northern side of Florida Avenue to the Mississippi River.

(11) The "Viet Village Cultural District" generally surrounded by the following boundaries:

The northernmost extent of the Village d L'Est neighborhood, from the western side of Paris Road, parallel to, then along the northern side of North Lemans Street to the western side of Michoud Boulevard then along the western side of Michoud Boulevard to the northern side of St. Helena Place then along the northern side of St. Helena place and continuing in a southeast plane until intersecting with the levee along the Maxent Canal at Chef Menteur Highway. The Maxent Canal at the southern side of Chef Menteur Highway. The southern side of Chef Menteur Highway, between the western side of Paris Road and Maxent Canal at the southern side of Chef Menteur Highway. The western side of Paris Road, between the southern side of Chef Menteur Highway and the northern side of N. Lemans Street.

(12) The "Lincoln Beach Cultural District" generally surrounded by the following boundaries:

Lake Pontchartrain from the western side of the eastern side of Downman Road to the eastern side of Paris Road. The eastern side of Paris Road from Lake Pontchartrain to the southern side of Wales Avenue. The southern side of Wales Avenue between the eastern side of Downman Road to the eastern side of Paris Road. The eastern side of Downman Road from Lake Pontchartrain to the southern side of Wales Avenue.

(13) The "French Quarter Cultural District" generally surrounded by the following boundaries:

The northern side of Burgundy Street, between the western side of Iberville Street and the western side of Esplanade Avenue. The Mississippi Riverfront, between the western side of Iberville Street and the western side of Esplanade Avenue. The western side of Iberville Street, between the northern side of Burgundy Street and the Mississippi Riverfront. The western side of Esplanade Avenue between the northern side of Burgundy Street and the Mississippi Riverfront.

(14) The "Oak Street Music and Art Corridor Cultural District" generally surrounded by the following boundaries:

The Orleans Parish-Jefferson Parish boundary, the Mississippi River and the northern side of Willow Street. The northern side of Willow Street, between the Orleans Parish-Jefferson Parish boundary and eastern side of Short Street. The eastern side of Short Street, between

the northern side of Willow Street and the Mississippi River. The Mississippi Riverfront, between the eastern side of Short Street and the Orleans Parish-Jefferson Parish boundary.

(15) The "Saint Claude Corridor Cultural District" generally surrounded by the following boundaries:

The northern boundary: The northern side of North Claiborne Avenue, between the western side of the Industrial Canal and the eastern side of Elysian Fields Ave; The Eastern Boundary: The western side of the Industrial Canal, between the northern side of North Claiborne Avenue and the Mississippi river front; The Southern Boundary: The Mississippi riverfront between the eastern half of Esplanade and the Industrial Canal.

The western boundary: The eastern side of Elysian Fields from the northern side of North Claiborne Avenue to the southern side of Saint Claude Avenue. The southern side of St. Claude Avenue between the eastern side of Elysian Fields and the eastern side of Esplanade Avenue. The eastern side of Esplanade Avenue from the southern side of St. Claude Avenue to the Mississippi river front.

Effective July 1, 2012

(16) The "Downtown Rampart-Basin Street Corridor Cultural District" generally surrounded by the following boundaries:

The northern half of Loyola Avenue/Elk Place/Basin Street/Saint Claude Avenue between the eastern half of Calliope Street and the western half of Esplanade Avenue. The western half of Esplanade Avenue from the northern side of Saint Claude Avenue to the northern side of Burgundy Street. The southern side of South Rampart Street from the western half of Esplanade Avenue to the Eastern half of Calliope Street. The eastern side of Calliope Street from the northern side of Loyola Avenue to the southern side of South Rampart Street.

(17) The "Oretha Castle Haley Boulevard Cultural District" generally surrounded by the following boundaries:

The northern side of Oretha Castle Haley Boulevard, to include all properties between Oretha Castle Haley Boulevard and Rampart/Danneel Streets, between the western side of Calliope Street and the western side of Phillip Street. The western side of Phillip Street at the intersection with Oretha Castle Haley Boulevard. The southern side of Oretha Castle Haley Boulevard, to include all properties between Oretha Castle Haley Boulevard and Baronne Street, between the western side of Calliope Street and the western side of Phillip Street. The western side of Calliope Street at the intersection with Oretha Castle Haley Boulevard.

(18) The "South Broad Street Cultural District" generally surrounded by the following boundaries:

The northern boundary: The southern side of Interstate 10 from South Carrollton to the eastern side of South Broad;

The southern boundary: The northern side of South Galvez from MLK to Delachaise then on South Miro between Delachaise and Napoleon Avenue;

The western boundary: The eastern side of Napoleon Avenue from North Miro Street to South Broad Street, then South Dupre Street from South Broad Street to Eden Street, to South Gayoso Street to Eve Street to South Rendon Street to Martin Luther King, Jr. Boulevard to South Norman C Francis Parkway to Erato Street to South Clark Street to Clio Street to South Genois Street to Palm Street to Broadway Street to Drexel Street to South Carrollton Avenue to Interstate 10;

The eastern boundary: The western side of South Broad from I-10 to Earhart Boulevard, then Earhart between South

Broad and South Dorgenois, then South Dorgenois to MLK then MLK to South Galvez.

Effective April 1, 2009

(19) The "Federal City Cultural District" generally surrounded by the following boundaries:

The northern boundary: The Mississippi Riverfront, between the western side of Hendee Street and the eastern side of Holiday Drive.

The southern boundary: The Magellan Canal from the western side of Shirley Drive to the eastern side of Holiday Drive.

The western boundary: The western side of Shirley Drive, between the northern side of the Magellan Canal and the southern side of General Meyer, then the southern side of General Meyer to the western side of Behrman Avenue; then the western side of Behrman Avenue to the southern side of Opelousas, then the southern side of Opelousas to the western side of Hendee Street; then the western side of Hendee Street to the Mississippi River.

The eastern boundary: The eastern side of Holiday Drive between the northern side of the Magellan Canal and the Mississippi Riverfront.

Effective April 1, 2010

(20) The "Irish Channel Cultural District" generally surrounded by the following boundaries:

The northern boundary: The northern side of Camp Street between the western side of Pleasant Street and the eastern side of Philip Street;

The western boundary: The western side of Pleasant Street between the northern side of Camp Street and the Mississippi River;

The southern boundary: The Mississippi Riverfront between the western side of Pleasant Street and the eastern side of Philip Street;

The eastern boundary: The eastern side of Philip Street between the northern side of Camp Street and the Mississippi River.

Effective October 1, 2009

(21) The "Uptown-University Cultural District" generally surrounded by the following boundaries:

The western boundary: The western side of Fern Street, from the Mississippi River to the southern side of Jeannette Street; the southern side of Jeannette Street, from the western side of Fern Street to the western side of Dublin Street; the western side of Dublin Street, from the southern side of Jeannette Street to the northern side of Stroelitz Street.

The northern boundary: The northern side of Stroelitz Street, from the western side of Dublin Street to the western side of Fern Street; the western side of Fern Street, from the northern side of Stroelitz Street to the northern side of Washington Avenue; the northern side of Washington Avenue, from the western side of Fern Street to the eastern side of Pine Street; the eastern side of Pine Street, from the northern side of Washington Avenue to the northern side of Edinburgh Street; the northern side of Edinburgh Street, from the eastern side of Pine Street to the eastern side of S. Telemachus Street; the eastern side of S. Telemachus Street, from the northern side of Edinburgh Street to the northern side of Erato Street; the northern side of Erato Street, from the eastern side of S. Telemachus Street to the eastern side of S. Genois Street; the eastern side of S. Genois Street, from the northern side of Erato Street to the northern side of Thalia Street; the northern side of Thalia Street, from the eastern side of S. Genois Street to the eastern side of S. Clark

Street; the eastern side of S. Clark Street, from the northern side of Thalia Street to the northern side of Dart Street; the northern side of Dart Street to the eastern side of South Norman C Francis Parkway; the eastern side of South Norman C Francis Parkway, from the northern side of Eve Street to the northern side of Eden Street; the northern side of Eden Street, from the eastern side of South Norman C Francis Parkway to the eastern side of S. Salcedo Street; the eastern side of S. Salcedo Street, from the northern side of Eden Street to the northern side of Elba Street; the northern side of Elba Street, from the eastern side of S. Salcedo Street to the eastern side of S. Gayoso Street; the eastern side of S. Gayoso Street, from the northern side of Elba Street to the western side of Napoleon Avenue.

The eastern boundary: The western side of Napoleon Avenue, from S. Broad Street to the northern side of S. Derbigny Street; the northern side of S. Derbigny Street, from the western side of Napoleon Avenue to the eastern side of Upperline Street; the eastern side of Upperline Street, from the northern side of S. Derbigny Street (east of Upperline) to the northern side of S. Derbigny Street (west of Upperline); the northern side of S. Derbigny Street, from the eastern side of Upperline Street to the eastern side of Robert Street; the eastern side of Robert Street, from the northern side of S. Derbigny Street to the northern side of S. Prieur Street; the northern side of S. Prieur Street, from the eastern side of Robert Street to the eastern side of Joseph Street; the eastern side of Joseph Street, from the northern side of S. Prieur Street to the northern side of Danneel Street; the northern side of Danneel Street, from the eastern side of Joseph Street to the eastern side of Napoleon Avenue; the eastern side of Napoleon Avenue, from the northern side of Danneel Street to the southern side of Chestnut Street; the southern side of Chestnut Street, from the eastern side of Napoleon Avenue to the eastern side of Upperline Street, the eastern side of Upperline Street, from the southern side of Chestnut Street to the Mississippi River, including all properties up to the western side of Lyons Street.

The southern boundary: The Mississippi River, between the eastern side of Upperline Street to the western side of Fern Street.

(M.C.S., Ord. No. 23538, § 1, 5-7-09; M.C.S., Ord. No. 23785, § 1, 11-5-09; M.C.S., Ord. No. 23,987, § 1, 6-1-10; M.C.S., Ord. No. 24083, § 1, 8-26-10; M.C.S., Ord. No. 24372, § 1, 4-7-11; M.C.S., Ord. No. 24975, § 1, 7-26-12; M.C.S., Ord. No. 25054, § 1, 10-18-12; M.C.S., Ord. No. 26000, § 1, 8-21-14; M.C.S., Ord. No. 28571, § 3, 12-17-20, eff. 1-1-21)

Sec. 142-39. Effective date.

This tax exemption shall coincide with the November 1, 2008 effective date of the state tax exemption. The effective dates of the revised "Museum-City Park Cultural District" shall be July 1, 2014.

(M.C.S., Ord. No. 23538, § 1, 5-7-09; M.C.S., Ord. No. 23785, § 1, 11-5-09; M.C.S., Ord. No. 23,987, § 1, 6-1-10; M.C.S., Ord. No. 24083, § 1, 8-26-10; M.C.S., Ord. No. 24975, § 1, 7-26-12; M.C.S., Ord. No. 26000, § 1, 8-21-14)

Secs. 142-40—142-44. Reserved.

Chapters 143–145

RESERVED

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Chapter 146

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ARTICLE I. IN GENERAL

Sec. 146-1. Official lines and levels required.

It shall be unlawful, under a penalty of $50.00 for each and every offense, for any person to lay any sidewalk, street, railroad or other improvement upon the streets, sidewalks, public ways or grounds of the city until the lines and levels thereof shall have been approved by the department of streets.
(Code 1956, § 61-5)

Sec. 146-2. Department to do asphalt work; contracts for curbs and gutter-bottoms.

The department of streets may provide the asphalt surfacing with its own forces and the curb and gutter-bottom installations shall be made by contractors through the regular process of purchasing by the bureau of purchasing, department of finance, in accordance with plans and specifications prepared by the department of streets.
(Code 1956, § 61-24)

Sec. 146-3. Permits required for road races.

(a) A road race shall be defined as a contest or event involving joggers, runners, walkers or other participants to determine the relative speed or comparative mileage of the contestants or participants.

(b) No road race shall occupy, march or proceed along any public street except in accordance with a permit received from the superintendent of police.

(c) The following regulations shall apply:

(1) The organization on whose behalf a road race is being conducted must receive a permit from the superintendent of police to use the streets of the city.

(2) Such permit shall be issued only after the superintendent of police has notified the traffic engineer, to verify that issuance of such permit will not unreasonably disrupt traffic or present a safety hazard, and has notified the director of the department of health (or his designee) to verify that emergency medical service coverage, as specified in this section, has been obtained. The superintendent of police shall also notify the clerk of council upon receipt of all requests for such permits.

(3) A completed permit application form for road races five kilometers or less in length shall be submitted no later than 45 days before the scheduled race date. For road races over five kilometers, a completed permit application form shall be submitted no later than 90 days before the scheduled race date, and any supplemental documentation required by the city shall be submitted no later than 30 days before the scheduled race date.

(4) Each application for such permit shall include:

a. The name, address, and telephone number of the organization on whose behalf the event is being conducted;

b. The name of the organization's contact person for information;

c. The name of the event;

d. The scheduled date;

e. The distance;

f. The number of projected participants;

g. The number of participants in each of the previous three years or, unless event is being conducted for the first time;

h. The starting time;

i. The estimated ending time;

j. The times of use of the public streets or other public property to be used as a staging or finishing area; and

k. A sketch of the exact route of the event.

Each request shall also include letters of approval and/or rental agreements, as may be required, for any public or private

property that will be used as a part of the road race route, as well as adequate proof of insurance and proof that emergency medical service coverage shall be provided.

(5) The emergency medical services provided shall be comparable to those provided by the city. Documentation shall be provided to the director of the department of health or his designee to verify coverage, qualifications and current status of services provided. On the day of the race, the coverage documented must be in place one hour prior to the event and continue for at least one hour after the race concludes. A minimum of one staffed ambulance vehicle for every two miles of designated race course will be required. Qualifications required shall meet the requirements of certification, licensure and permits as delineated in chapter 62, article II pertaining to emergency medical service providers and technicians.

(6) Police approval or denial shall be given at least 21 days prior to the scheduled date of the road race.

(7) An applicant shall provide reasonable notice of a road race no later than 14 days before any race. The form, manner, and timing of the required notice shall be at the discretion of the city, but must be reasonably gauged to advise residents in affected neighborhoods of race-related road closures.

(d) The superintendent of police is authorized to collect a road race permit fee from all persons having met the criteria and having received approval for such permit, as set forth in this section, according to the following schedule. These fees shall be nonrefundable and shall not be waived. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District.

(1) For road races that are sponsored by a nonprofit . . . $50.25

(2) For all other road races $100.25

All road race permit fees shall be transmitted to the chief of treasury of the department of finance. The chief of treasury shall remit $0.25 of all such sums collected for account of the police pension fund to the board of trustees, police pension fund of the city.

(e) No such permit shall be issued for any road race on a primary, special, or general election day. This section shall not apply to the time period allotted for early voting as designated by the Louisiana Secretary of State, effective April 1, 2019.
(Code 1956, § 38-124; M.C.S., Ord. No. 27266, § 1, 1-26-17; M.C.S., Ord. No. 27945, § 1, 12-20-18; M.C.S., Ord. No. 28127, § 1, 6-6-19)

Sec. 146-4. Permits required for distribution of advertising brochures, leaflets, etc.

Any person, corporation or partnership desiring to use the city streets, sidewalks or public rights-of-way to distribute product samples, advertising brochures, leaflets, pamphlets, or commercial literature of any type whatsoever shall first apply to and receive a permit from the department of finance pursuant to section 110-222.
(Code 1956, § 46-6(a))

Sec. 146-5. Enforcement of sections 146-314, 146-453, 146-584, 146-585.

(a) It shall be illegal for any person to violate any provisions of sections 146-314, 146-453, 146-584, or 146-585.

(b) In accordance with the provisions of this section, the department of public works and the department of safety and permits shall have the

authority to enforce the provisions of the sections referred to within this section in accordance with the following procedure:

(1) Notification shall be provided to the person found to be in violation of these sections in the form of a formal notice of violation posted on the object or structure which violates this Code.

(2) Such notice shall provide 24-hours to the responsible party to remove, correct, or mitigate the violation to the satisfaction of the department of public works and the department of safety and permits.

(3) If the violation is not removed, corrected, or mitigated within 24-hours, the city may remove or cause to be removed any materials, structures, objects, or other articles that it deems necessary to correct the violations as noticed.

i. The city may assess any reasonable costs associated with the removal of such materials, structures, objects, or other articles against the responsible party.

ii. Any materials, structures, objects, or other articles of value so removed shall be stored in a secure location by the city for a period of not less than 30-days, after which time the items shall become property of the City of New Orleans and shall be disposed of in accordance with city policy. Storage fees shall be assessed at a rate of $100.00 per day.

iii. Any materials, structures, objects, or other articles of no value, or debris which may be created by demolition or destruction of such items shall be disposed of as required by law.

(c) Any such materials, structures, objects, or other matter that has been removed in accordance with the provisions of this section may be immediately deposited into any public garbage, trash, or other disposal area. Following such action, the city may also impose a lien on the property holdings of the person having received notice of such violation, and who has failed to correct the violation named therein within the time specified therein, or may attach a fee to the property tax assessment due by such person. Any such lien or attachment shall be equal in value to the city's cost of enforcement in accordance with the provisions of this section.
(Code 1956, § 61-115; M.C.S., Ord. No. 26036, § 1, 9-4-14; M.C.S., Ord. No. 27426, § 1, 6-15-17)

Sec. 146-6. Enforcement of sections 146-491 through 146-575.

In accordance with the provisions of this section, the department of public works and the department of safety and permits shall have authority to prescribe penalties as provided herein for violations of these sections in accordance with the procedures outlined in chapter 6, article II of this Code.
(M.C.S., Ord. No. 27625, § 2, 12-14-17; eff. 10-1-17)

Sec. 146-7. Reserved.

Editor's note—M.C.S., Ord. No. 28796, § 1, adopted Oct. 7, 2021, repealed § 146-7, which pertained to encroachments on city property and derived from M.C.S., Ord. No. 27725, § 1, adopted April 5, 2018. The user's attention is directed to § 146-766 et seq.

Sec. 146-8. Enforcement of sections 146-314, 146-436, 146-444, 146-447, 146-453, 146-493, 146-494, 146-495, 146-496, 146-580, 146-581, 146-584, and 146-586.

In accordance with section 4-502(2) of the Charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the department of sanitation, employees of the department of public works, and employees of the New Orleans Office of Public Safety and Homeland Security for the purpose of enforcing the provisions of sections 146-314, 146-436, 146-444, 146-447, 146-453, 146-493, 146-494, 146-495, 146-496, 146-580, 146-581, 146-584, and 146-586 of the Code of the City of New Orleans. Such powers, which may be

granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police department.
(M.C.S., Ord. No. 28884, § 3, 12-16-21)

Secs. 146-9—146-35. Reserved.

ARTICLE II. STREETS GENERALLY

DIVISION 1. GENERALLY

Sec. 146-36. Complete Streets program.

(a) *Purpose.* The Council of the City of New Orleans shall establish and implement a Complete Streets program by requiring that all planning, designing, funding, operation and maintenance of the city's transportation system to accommodate and encourage travel for all users in a balanced, responsible and equitable manner consistent with, and supportive of, the surrounding community.

(b) *Definitions.*

(1) *Crash data*, as used in this section, means data, including, but not limited to, location, severity and demographics regarding crashes involving vehicles and/or pedestrians.

(2) *Major operational change,* as used in the section, means the removal of a travel lane or parking lane for another use for a distance of at least one block, or as determined by the city traffic engineer.

(3) *User mode share data*, as used in this section, means the number of users or percentage of users for particular modes of transportation, such as private motor vehicles, public transit, bicycling or walking.

(4) *Vehicle*, as used in this section, means every device by which persons or things may be transported upon a public street, highway, or bridge. A bicycle or a ridden animal shall be a vehicle, and a trailer or semitrailer shall be a separate vehicle.

(c) *Scope.* The Complete Streets program shall apply to all phases of design, development and implementation. It shall also apply to the entirety of transportation facilities' lifetimes, including planning, design, construction, funding, operation and maintenance.

(d) *Establishment of Complete Streets goals, metrics, policies, standards and guidelines.*

(1) The director of the department of public works (DPW) and director of the city planning commission (CPC) shall develop goals and metrics for the Complete Streets policy based on recognized best practices including, but not limited to, the National Complete Streets Coalition Complete Streets Policy Analysis 2010 and the American Planning Association Complete Streets: Best Policy and Implementation Practices.

(2) The director of DPW shall adapt, develop and adopt departmental policies, design criteria, standards, and guidelines based upon recognized best practices in street design, construction and operations including, but not limited to, the latest editions of American Association of State Highway Transportation Officials (AASHTO) A Policy on Geometric Design of Highways and Streets; AASHTO Guide for Planning, Designing, and Operating Pedestrian Facilities; AASHTO Guide for the Development of Bicycle Facilities; Institute of Transportation Engineers (ITE) Designing Walkable Urban Thoroughfares: A Context Sensitive Approach; National Association of City Transportation Officials (NACTO) Urban Bikeway Design Guide; U.S. Access Board: Public Right-of-Way Accessibility Guidelines; Highway Capacity Manual and Highway Safety Manual. In doing so, DPW shall consider methods of providing development flexibility within safe design parameters, such as context-sensitive design solutions. DPW shall also attempt to employ all solutions consistent with and sensitive to the context of the project.

(e) *Collaboration.* DPW shall work with all appropriate agencies as necessary to effectively develop, operate and maintain bicycle and pedestrian networks. Such agencies include, but are not limited to, LADOTD, the New Orleans Regional Planning Commission, City Planning Commission, and Regional Transit Authority.

(f) *Exemptions.* DPW and the city planning commission may exempt part of [or] all of a specific roadway segment from the requirements of this section by issuing, in writing, documentation. Such exemptions must be approved in writing by the directors of DPW and city planning commission. Exemptions may be granted:

(1) If the project involves a roadway on which nonmotorized use is prohibited by law. In this case, DPW and city planning commission shall make a demonstrable effort to accommodate pedestrians, bicyclists, and other nonmotorized users elsewhere;

(2) If DPW and the city planning commission document an absence of current and future need or use of the affected area by pedestrians, bicyclists, and other nonmotorized users, and that such an absence would likely continue despite compliance with this section;

(3) If DPW, in consultation with city planning commission, concludes that the cost of accommodation of all users is excessively disproportionate to the need or probable use of the affected area. Under this section, excessively disproportionate may be defined as 20 percent or more of the total project cost; or

(4) If DPW, in consultation with city planning commission, concludes that the project involves routine, minor maintenance activities designed to keep the city's transportation assets in serviceable condition, including, but not limited to, cleaning, pothole and catch basin repair, or temporary measures on detour or haul routes. Under this section, overlay projects shall not qualify as routine, minor maintenance activities.

(g) *Implementation.* In support of the Complete Streets program, DPW, in consultation with city planning commission, shall:

(1) Assign the design advisory committee oversight or create an entity tasked with oversight of the implementation and progress of the Complete Streets program;

(2) Develop, modify and update city plans, manuals, rules, regulations and programs in accordance with this section;

(3) Dedicate sufficient staff to implement Complete Streets guidelines and practices into city projects;

(4) Dedicate sufficient resources to train pertinent staff on the content, guiding principles and best practices to effectively implement the Complete Streets program; and

(5) Dedicate sufficient resources to the collection and analysis of data, such as crash data and mode share, necessary to guide and inform the decision-making process;

(6) Ensure the Complete Streets program for the city is fully implemented not later than December 1, 2012.

(7) When a project is anticipated to involve a major operational change to a roadway, the department of public works, during the pre-construction phase, shall conduct the following:

a. Hold no fewer than two community engagement meetings; and

b. Appear at no fewer than one hearing by the city council transportation and airport committee; city council public works, sanitation and environment committee; or other city council committee; and

c. Work with the neighborhood engagement office and other city engagement channels as necessary to ensure the advertising of community engagement meetings regarding proposed major operational changes at least two weeks in advance of the

community engagement meeting distributed via email, text message and physical paper.

(h) *Complete Streets program performance evaluation.* In support of the Complete Streets program, DPW and the city planning commission shall establish a reporting procedure that annually measures the success of the Complete Streets program.
(M.C.S., Ord. No. 24706, § 1, 12-15-11; M.C.S., Ord. No. 29241, § 1, 11-3-22)

Sec. 146-37. Neighborhood street closure notice required.

No person shall obstruct or cause to be obstructed any public right-of-way for any purpose whatsoever unless authorized pursuant to this code and permitted to do so by the department of public works, as prescribed in section 146-583. If such obstruction is the closure of a public right-of-way that prohibits the passage of vehicular traffic, the permit applicant shall provide notice to the neighborhood in accordance with this section.

(a) Once permitted, but prior to closing the public right-of-way, the applicant shall distribute a neighborhood street closure notice approved by the department. Failure to distribute this notice may result in suspension or revocation of the permit, fines or fees, and any other enforcement action permissible by law.

(b) The neighborhood street closure notice must include the applicant's contact information, including first and last name, email address and telephone number; the dates and times during which the public right-of-way will be closed; the municipal addresses on the right-of-way closed to vehicular traffic; and a brief description of the project or reason for closure.

(c) The applicant shall ensure that the neighborhood street closure notice is provided by hand delivery, or secured to a door, mailbox, fence, or front porch of each business, residence, or institution immediately adjacent to and within one additional block in each direction of the right-of-way to be closed, at least 72 hours in advance of the commencement of the closure. The notice shall not be placed in mailboxes.

(d) Nothing herein shall be construed to exempt municipal or other governmental or quasi-governmental agencies from the neighborhood street closure notice requirements herein, even if no city permit is required for the right-of-way closure. In the event of an emergency requiring the closure of a public right-of-way by a municipal or other governmental or quasi-governmental agency, for example, to repair a break in a water main or sinkhole, such agency shall provide the notice described herein as early as reasonably possible.

(M.C.S., Ord. No. 30159, § 1, 11-21-24)

Secs. 146-38—146-70. Reserved.

DIVISION 2. PAVING

Sec. 146-71. Paving specifications.

The Department of Public Works' General Specifications for Street Paving for the City of New Orleans shall be on file with said department and be made available upon request.
(Code 1956, § 61-1; M.C.S., Ord. No. 26696, § 1, 11-19-15)

Sec. 146-72. Permits to cover gutters.

For the purpose of facilitating commerce, the director of the department of streets may issue permits for the covering of gutters on such streets as may be sufficiently wide to warrant it, on plans and specifications approved by the director.
(Code 1956, § 61-75)

Sec. 146-73. Permeable paving.

The department of public works shall ensure that any public works project involving the permanent installation of paving on public property, including without limitation parking lanes, sidewalks, parking lots, and pedestrian

pathways, shall utilize porous or permeable paving materials, except on surfaces where, in the discretion of the director of public works, the installation of porous or permeable paving would contravene established safety and engineering best practices, or otherwise violate applicable law.
(M.C.S., Ord. No. 28353, § 1, 5-21-20, eff. 1-1-21)

Secs. 146-74—146-95. Reserved.

DIVISION 3. STREETS IN SUBDIVISIONS

Sec. 146-96. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Paving and *repaving* are as defined in sections 42 through 50, both inclusive, of Louisiana Act 159 of 1912, as amended by Louisiana Act 338 of 1936.
(Code 1956, § 61-7)

Cross reference—Definitions generally, § 1-2.

Sec. 146-97. City help.

On all approved subdivision developments where streets are to be offered for dedication and original paving is to be constructed the city shall assist financially in the manner set forth in this division.
(Code 1956, § 61-8)

Sec. 146-98. Major streets.

On all streets in a subdivision that are designated as major streets and are so designated on the adopted major street plan of the city, assistance in an amount not to exceed 50 percent of the total cost of subsurface drainage and paving exclusive of the costs of house drain connections, sidewalks and driveways, shall be provided.
(Code 1956, § 61-9)

Sec. 146-99. Streets requiring heavy duty paving.

On all streets in subdivisions that the director of the department of streets may designate as requiring heavy duty paving necessitated by its future use as a bus route or other purposes that require heavy duty paving, an amount not to exceed 20 percent of the total cost, exclusive of the costs of subsurface drainage, house drain connections, sidewalks and driveways, shall be provided.
(Code 1956, § 61-10)

Sec. 146-100. Other streets.

(a) On all other streets in a subdivision the city shall provide no financial assistance except as provided in subsection (b) of this section.

(b) When a narrow tract of land is subdivided and a street is provided adjoining an adjacent tract of land, not to be subdivided concurrently with the narrow tract, and the developers offer the entire right-of-way for a street, thereby creating a street with a single frontage, the city shall assist financially in the cost of the street improvements in an amount not to exceed 50 percent of the total cost, exclusive of house drain connections, sidewalks and driveways, and the restrictions set forth in sections 146-1, 146-187—146-189 and 146-96—146-103 will be provided.
(Code 1956, § 61-11)

Sec. 146-101. Title to one foot strip next to street.

The city will obtain title in fee simple to a strip of ground one foot wide separating the street to be dedicated from the adjoining tract of ground not to be subdivided concurrently with the subdivision.
(Code 1956, § 61-12)

Sec. 146-102. Reimbursement of city.

Final approval shall be denied any subdivision plan for the adjoining unsubdivided tract until such time as the developer of such tract reimburses the city for its 50 percent expenditure for street improvements previously installed on the contiguous street, less a depreciation factor of five percent of initial cost per year for each year that the street improvements have been installed. The time of the depreciation to the street improvements shall start on the date of their acceptance by the director of the department of streets and shall be computed on the basis of the lesser year.
(Code 1956, § 61-13)

Sec. 146-103. Dedication of one foot strip.

When the provisions of section 146-102 have been satisfactorily complied with the one foot strip referred to in section 146-101 shall be automatically dedicated for street purposes.
(Code 1956, § 61-14)

Sec. 146-104. Repaving dedicated streets in subdivisions.

On all streets in a subdivision that are dedicated and require repaving the city shall bear those costs that the prevailing policy requires it to pay on any street in the city that requires repaving.
(Code 1956, § 61-15)

Sec. 146-105. Nondedicated streets.

On any street in a subdivision that is not dedicated or is not to be offered for dedication the city shall provide no financial assistance.
(Code 1956, § 61-16)

Sec. 146-106. Source of funds.

The funds required to provide financial assistance shall be those funds provided in the city capital budget shown as "Subdivision Development Participation" and any other funds that may from time to time be appropriated in the capital budget for this purpose.
(Code 1956, § 61-17)

Sec. 146-107. Charter provisions remain in effect.

All other requirements of section 7-102(1) of the city charter shall remain in full force and effect.
(Code 1956, § 61-18)

Sec. 146-108. Nonrefundable permit application fees.

For all permits issued by the department of public works for Mardi Gras, dumpsters, vendor zones, street closures, driveway and/or curb cuts, oversize vehicles, construction zones and for all other permits as designated by the director of the department, a permit application fee of $40.00 will be charged, except as provided in section 146-583. Application fees shall be nonrefundable and shall not be waived.
(Ord. No. 20,002, § 1, 1-18-01; M.C.S., Ord. No. 23818, § 10, 12-1-09; M.C.S., Ord. No. 27266, § 1, 1-26-17)

Secs. 146-109—146-140. Reserved.

DIVISION 4. DRIVEWAYS AND SIDEWALKS*

Sec. 146-141. Driveways and sidewalks not to be installed without permit.

No person or public body shall remove a curb; install a driveway or sidewalk abutting his or its property in the city, without first having obtained a permit from the director of the department of public works. Application for such permit shall be in a form and manner designated by the director of public works, and shall include the name and address of the applicant and the dimensions and location of such driveway or sidewalk being altered or installed. Such form shall include the name and address of the person or public body desiring to install a driveway and/or sidewalk and the dimensions and location. For purposes of this division, a driveway is defined as every way or place, located within the street right-of-way, which provides a means of vehicular travel between the street roadway and property abutting such street. Sidewalk means the portion of the street between the curblines, or the lateral lines of the street and the adjacent property lines, intended for the use of pedestrians. In no event shall any drainage mechanism on the public right-of-way be paved. Failure to secure a permit as provided herein is deemed a nuisance, and violations shall be subject to the procedures for administrative adjudications provided in Chapter 6, Article II of the Code.
(M.C.S., Ord. No. 27415, § 1, 6-15-17; M.C.S., Ord. No. 27715, § 1, 4-5-18)

Sec. 146-142. Permit granted only to owner of property.

The permit required by section 146-141 shall be granted only to the owner of the real property in front of which the proposed driveway or sidewalk is to be constructed and maintained, upon the application of such owner or his authorized agent.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-143. Application fee.

The director of the department of public works shall exact from the applicant, prior to issuance of a permit for the installation of a driveway or sidewalk, an application fee of $100.00.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-144. Improper installation.

Any sidewalk or driveway installed in deviation of the approved permit shall be removed and restored to the approved specifications at the cost of the property owner. Any driveway installed without a permit shall be removed at the cost of the property owner unless retention is expressly authorized by the director of the department of public works. Sidewalks installed without a permit shall be removed at the cost of the property owner unless retention is expressly authorized by the director of the department of public works.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-145. Director to designate number, location and design.

The director shall designate the number, location, spacing, width, length, radius and other details of all driveways in accordance with the provisions hereinafter set forth and in compliance with the regulations provided in the Comprehensive Zoning Ordinance relative to driveways and site accessibility. He shall ensure reasonable access to the property to be served by the driveway and he shall likewise ensure safety and convenience of the public in its use of sidewalks and roadways. He shall not issue a permit for a driveway unless the off-street parking area to be served by the driveway is adequate to accommodate the parked vehicle or vehicles without encroachment of the parked vehicle upon the street area including the sidewalk thereof. When the short dimension of an individual off-street parking space abuts the driveway, no permit will be issued unless the depth of such

*__Editor's note—__M.C.S., Ord. No. 27415, § 1, adopted June 15, 2017, amended Div. 4 in its entirety to read as herein set out. Former Div. 4, §§ 146-141—146-153, pertained to driveways, and derived from Code 1956, §§ 61-29—61-41; M.C.S., Ord. No. 23818, § 11, adopted Dec. 1, 2009; M.C.S., Ord. No. 26642, § 1, adopted Oct. 15, 2015.

__Cross reference—__Sidewalks and curbs, § 146-186 et seq.

parking space extends at least 20 feet from the abutting property line or extends to the greater depth necessary to accommodate wholly the size of the largest vehicle to be parked therein. Such director may modify the provisions relating to number, location and design of driveways when the applicant presents proof of hardship in connection with said provisions. The director of the department of public works may refuse to issue a driveway permit in any case when, in the interest of public safety, the same ought not be granted.
(M.C.S., Ord. No. 27415, § 1, 6-15-17; M.C.S., Ord. No. 27715, § 2, 4-5-18)

Sec. 146-146. Number and location of driveways.

(a) Except as provided in this division or elsewhere in this section, each use parcel of property which abuts any public street or highway, where vehicular access is not otherwise denied, shall be entitled to one driveway provided a vehicle can be accommodated legally within such use parcel. Not more than two driveways shall be permitted for each use parcel which abuts on any street for a distance of 120 feet or less. Each driveway will provide access to not more than two off-street parking spaces which abut such driveway. Access to three or more off-street parking spaces per driveway will be by means of a lane, isle or interior roadway connecting to the driveway. Driveways abutting any use parcel shall be separated by a minimum distance of four feet between curb returns to provide necessary pedestrian refuge and driveway delineation. No driveway shall encroach upon the sidewalk areas formed by the corner radius and the extension of property lines at the corner of an intersecting street.

(b) Exemptions from the strict application of the provisions of this section and any provisions contained in the Comprehensive Zoning Ordinance may be granted by the director of the department of public works when it is determined that circumstances require wider curb cuts for turning efficiency and/or safety. In considering exemptions requested under this paragraph, the director shall consider the potential traffic safety and operational problems involved, alternatives to allowing curb cuts, and the hardship which may result to applicant if the curb cut is denied.
(M.C.S., Ord. No. 27415, § 1, 6-15-17; M.C.S., Ord. No. 27715, § 3, 4-5-18; M.C.S., Ord. No. 29087, § 1, 7-7-22)

Sec. 146-147. Design of driveways.

Driveways for one-lane operation shall not exceed 12 feet in width and driveways for two-lane operation shall not exceed 24 feet in width measured at the property line. Radius of driveway curbs shall be as prescribed by the director of the department of public works. Such radius shall not be greater than 12 feet nor less than four feet. Where rollover curbs are installed there shall be a minimum flare of three feet of widening between the curb and property line on each side of the driveway. Grades of driveway and sidewalk shall be mutually compatible to provide uninterrupted sidewalk grade for safe pedestrian movement.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-148. Sidewalk area where lip curbs exist; installation of full width sidewalk.

Where lip curbs exist in front of property that is used or may be used for commercial or industrial purposes, that part of the sidewalk area beyond the limits of a driveway, between the street edge of a paved sidewalk and the back of the lip curb, shall be clearly delineated by being free of concrete and other surfacing materials. When the owner of such commercial or industrial property wishes to install a full width sidewalk where lip curb exists, permission to do so must first be obtained from the director of the department of public works.

Sec. 146-149. Details of construction.

The details of driveway construction shall conform with the latest edition of the department of public works standard drawings and specifications. The director of the department of public works shall designate whether the proposed driveway is to be standard or heavy duty and also, when lip curbs exist, whether the proposed

driveway is to be residential or commercial. Where prevailing conditions warrant an exception to the standard drawings and specifications, the director of the department of public works may grant such an exception.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-150. Thickness and strength of cement.

All standard driveways shall be six inches, and all heavy duty driveways shall be eight inches in thickness. Driveways shall be formed of Portland cement concrete which shall have a compressive strength of 4,000 pounds per square inch in 28 days and contain a minimum of 5½ bags of cement to a cubic yard. Where a reinforced concrete roadway pavement is adjacent to the driveway the steel reinforcement may be omitted in the driveway.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-151. Reserved.

Sec. 146-152. Unused permit void.

A permit becomes invalid unless the work authorized by the permit is commenced within 180 days after its issuance, or if the work authorized on the permit is suspended or abandoned for a period of 180 days after the time the work is commenced. The director is authorized to grant, in writing, one or more extensions of time, for periods not more than 180 days each. The extension shall be requested in writing and justifiable cause demonstrated prior to the expiration of the permit.
(M.C.S., Ord. No. 27415, § 1, 6-15-17; M.C.S., Ord. No. 27715, § 4, 4-5-18)

Sec. 146-153. Restoration of sidewalk when use of driveway discontinued.

The owner of the property abutting any driveway whose use has been abandoned or discontinued shall be obligated to restore, in accordance with city specifications, the portion of the sidewalk and curb that was altered or changed in consequence of the construction of the driveway.
(M.C.S., Ord. No. 27415, § 1, 6-15-17)

Sec. 146-154. Enforcement of sections 146-141 through 146-153.

(a) The director of the department of public works and the director of the department of safety and permits shall have the authority to enforce permitting requirements and technical standards set forth in sections 146-141 through 146-153 and the standards of the latest edition of the department of public works standard drawings and specifications.

(b) The provisions of these sections are subject to administrative adjudication pursuant to Chapter 6 of this Code. Driveways and other improvements within the right-of-way regulated pursuant to sections 146-141 through 146-153 are considered extensions of the adjacent property served by such improvements.
(M.C.S., Ord. No. 27715, § 5, 4-5-18)

Secs. 146-155—146-185. Reserved.

ARTICLE III. SIDEWALKS AND CURBS*

Sec. 146-186. Permits for sidewalks and driveways for property fronting on Canal Street.

(a) No property owner shall install or modify a sidewalk or driveway for property fronting on Canal Street in the area bounded by Claiborne Avenue and City Park Avenue without first obtaining a permit from the director of the department of public works.

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*__Editor's note—__M.C.S., Ord. No. 27414, § 1, adopted June 15, 2017, amended Art. III in its entirety to read as herein set out. Former Art. III, §§ 146-186—146-194, pertained to similar subject matter, and derived from Code 1956, §§ 61-2—61-4, 61-25—61-27.3; M.C.S., Ord. No. 18,421, § 1, adopted August 12, 1997; M.C.S., Ord. No. 23818, §§ 7—9, adopted Dec. 1, 2009; M.C.S., Ord. No. 24855, § 1, adopted April 19, 2012.

__Cross reference—__Driveways and sidewalks, § 146-141 et seq.

(b) Any person desiring to obtain a permit to install or modify a sidewalk or driveway shall make application to the director of the department of public works in accordance with sections 146-141 thru 146-144.

(c) Prior to issuing a permit, the director of the department of public works shall review the application for such a permit to assure compliance with rules, regulations and policies governing construction of driveways.

(1) In order to avoid negative impact to adjacent trees and assure compliance with department of parks and parkways rules, regulations, and policies, the director of the department of parks and parkways shall also review the application and recommend approval or disapproval of the issuance of such permit.

(2) Approval of all applications shall include any stipulations the director of the department of public works or the director of the department of parks and parkways determine must be met, by the property owner, prior to or during the course of, installation or modification of a sidewalk or driveway.

(d) An application for such a permit shall include, but not be limited to, a plan diagram, including existing trees within 50 feet of the proposed work site, and construction details, including materials to be used.

(e) If a sidewalk or driveway is installed or modified for property fronting on Canal Street in the area bounded by Claiborne Avenue and City Park Avenue without the property owner first obtaining the required permit, or complying with the application as granted by the director of the department of public works the property owner shall be responsible for any corrective action determined to be necessary.

(1) The director of the department of public works shall notify the property owner in writing by certified mail of such noncompliance or failure to obtain a permit. Upon receiving such notification, the property owner will have 15 days from the date of receipt of notification to take corrective action as set forth by the director of the department of public works in the written notification.

(2) The property owner shall incur all expenses for such corrective action including, but not limited to, removal of such sidewalk or driveway.

(3) If the property owner does not comply with the written notification from the director of the department of public works for corrective action, such corrective action shall be taken by the department of public works or its agent with the property owner incurring the cost for such corrective action.

(f) Additionally, the property owner shall be responsible for any damage or destruction caused to any public trees in accordance with the department of parks and parkways rules and regulations. The property owner shall be notified by the director of the department of parks and parkways, in writing by certified mail, of any corrective action the property owner is required to take relative to damage or destruction to any public trees as a result of sidewalk or driveway modifications or installations. Upon receiving such notification, the property owner shall have 15 days from the date of receipt of notification to take corrective action, as set forth by the director of the department of parks and parkways in the written notification. The property owner shall incur all expenses for such corrective action. If the property owner does not comply with the written notification from the director of the department of parks and parkways for corrective action, the director of the department of parks and parkways shall notify the director of the department of public works requesting that such corrective action be taken by the department of public works or its agents. The property owner shall incur the cost for such corrective action.

(g) If the property owner does not successfully complete the corrective action as required by the director of the department of public works or the director of the department of parks and parkways, requiring the department of public works or its agent to complete such corrective action, the city attorney shall be authorized to

institute appropriate civil proceedings as may be deemed necessary for the assertion or protection of the rights and interests of the city relative to the provisions of this section. This shall be in addition to any other civil or criminal penalties which may apply.

(h) The provisions for application relative to installation and/or modification of sidewalks or driveways as set forth in this section shall supersede any other requirements relative to such work as may be set forth in this chapter.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-187. Material used in curbing, etc., to be that generally used in block.

When part of a block is without curbing, guttering or counter curbing or where they require removal in the judgment of the director of the department of public works, the required new curbing, guttering and counter curbing shall be constructed of such material as is generally used in such block.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-188. Material used when no curbing, etc., in block.

(a) When, in any block, there is no curbing, guttering or counter curbing, they shall be built of wood except that if the property holders owning a majority of the frontage on any block agree on the use of any other material for the curbing, guttering or counter curbing of such block, such material shall be used throughout the block for all parties joining in such agreement and for all new curbing, guttering and counter curbing to be built or old to be rebuilt. Such agreement must be made and communicated to the contractor or the director of the department of public works before the work commences on the block.

(b) Any property holder in any block may use, at his discretion and cost, curbing, guttering and counter curbing of better material or workman-

ship, in the judgment of the director of the department of public works, than is directed above.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-189. Materials used in wings in intersections.

Such parts of wings as are in front of properties shall be of such materials as the city, through the director of the department of public works, sees fit to use for the other parts of such wings in the intersections.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-190. Property owners responsible for certain sidewalk defects.

In the case of existing facilities, when the installation of a sidewalk/banquette is in the interest of public safety, or when a property owner creates or causes a defect in an existing sidewalk/banquette, the director of the department of public works may pave or repave such sidewalk/banquette. Upon the determination by a hearing officer, pursuant to Chapter 6, Article II of this Code, that a property owner created or caused a sidewalk defect adjacent to their property, the director of the department of public works shall issue a statement of costs against the property owner for the cost of such work as provided in section 6-38. Failure of the property owner to pay the costs shall result in a lien against the property as provided in section 6-39.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-191, 146-192. Reserved.

Sec. 146-193. Minimum sidewalk treatment within the downtown development district.

(a) All new sidewalks or banquettes or repaved sidewalks or banquettes immediately adjacent to property located within the downtown development district which is defined as that area bounded by the uptown side of Iberville Street, the river side of South Claiborne Avenue, the downtown side of the Pontchartrain Expressway and the river, shall be paved, repaved or constructed in accordance with all specifications including permitted materials, typical plans and section details, an official sidewalks designation map, and catalogue of streets as set forth herein. The department of public works and the clerk of council shall maintain as a public record, available for public inspection, a map and detailed plans, which delineate the type of treatment for each sidewalk, located within the downtown development district and Vieux Carré. Such details, plans, and map shall be referred to as "on file" for the purposes of this section and section 146-194.

(1) Category "A" streets shall be paved, repaved or constructed with Boral Red brick pavers and Boral Savannah Brown brick pavers as borders, or approved equivalent pattern and construction as per the latest edition of the department of public works standard drawings and specifications for construction in the downtown development district.

(2) Category "B" streets shall be paved, repaved or constructed in concrete, pattern and construction as per the latest edition of the department of public works standard drawings and specifications for construction in the downtown development district.

(3) Canal Street from the Mississippi River to Claiborne Avenue shall be designated as category "C" street. All sidewalks on Canal Street shall be constructed, maintained and restored in accordance with plans and specifications as outlined in the Canal St. Improvement Project (City Project # 01-DD-26840), dated November, 2004, or any subsequent plans and specifications. The department of public works and the clerk of council shall maintain as a public record, available for public inspection, detailed plans and specifications for the type of treatment for Canal Street sidewalks.

(4) Category "D" streets shall be considered specialty thoroughfares including Poydras St. from the River to S. Claiborne Ave, and Tulane Ave. from S. Rampart to S. Claiborne Ave. The category "D" streets

shall be paved, repaved, or constructed in brick, concrete, or other materials that are consistent with the overall site plan for the adjacent building so long as the sidewalk improvements are the same along the entire block face and adjacent building.

All streets identified as category A, B, C, D shall be clearly marked on a street map and accompanying catalog of streets herein referred to as the DDD Street Designation Map. Streets not identified as category A, B, C, or D are exempt from the provisions of this section. Details for the aforementioned sidewalk treatment are to be found in the latest edition of the department of public works standard drawings and specifications.

(b) Exceptions:

(1) A category "B" street may be permitted to use materials, plans, and specifications permitted under category "A" under the following conditions:

a. The project site is currently brick and replacement will be in kind.

b. The existing sidewalks are predominantly brick and the project site will increase the total area of brick sidewalk along an existing block face.

c. Sidewalks currently constructed using historic Pennsylvania bluestone may be repaired or replaced in kind so long as the entire block consists of similar materials.

(2) In cases where a single block face is treated with at least 50 percent of a particular material, the property owner or developer must match the most prevalent material on the block. The calculation will be the percentage of the project site to total block face as measured in linear feet.

(3) The prevailing determination of permitted materials shall be the effort to establish consistency and uniformity of a single block with regards to material, color, and pattern.

(4) Changes or modifications with regards to permitted materials, plans, and specifications may be authorized by the director of the department of public works after consultation with the president of the downtown development district and the district councilmember.

(c) All roadway curbs within the downtown development district will be either stone curbs or vertical concrete curbs as per details found in the latest edition of the department of public works standard drawings and specifications. In the warehouse district where granite and slate roadway curbs exist in sections of two linear feet or more, they shall be reset in place.

(d) No person shall remove an existing sidewalk or install a new sidewalk, or make any cut for any purpose whatsoever in any sidewalk pavement, in the downtown development district without first having obtained a permit from the department of public works. Application for such a permit shall be made on a printed form, which the director of the department of public works shall furnish for this purpose. Such form shall include the name, address, phone, and email address of the person desiring to install a sidewalk, the project location, the dimensions and site plans of such sidewalk. The application form, site plan, and sample of materials must be submitted to the downtown development district prior to a permit being issued. The permit required by this section shall be granted only to the owner of the real property adjacent to which the proposed sidewalk is to be constructed and maintained upon the application of such owner or his authorized agent. The property owner shall be held liable for construction work performed in the public right-of-way without the appropriate permit from the department of public works. The director of the department of public works is authorized to issue a "stop work" order for sidewalk construction being performed in violation of this section. All existing granite and slate curbs shall be retained by the city for reuse within historic districts.

(e) Any person desiring to obtain a permit to install or modify a sidewalk shall submit an application to the director of public works for approval in accordance with sections 146-141 thru 146-144.

(f) Any property owner in the downtown development district shall contact in writing the utility companies (Sewerage and Water Board, Entergy, AT&T, and Cox) prior to the demolition of old sidewalks or installation of new sidewalks and adjustment of any manholes, catch basins, metal frames and covers, etc. The purpose is to obtain any information regarding proposed new utilities or revisions to existing utilities. Such notification must be given by the property owner at least 90 days prior to the planned activities to permit coordination of work efforts.

(g) When a city agency, utility company or property owner has to make repairs within a sidewalk or banquette paved in any material other than concrete, then the replacement must be made in kind, that is, the replaced materials shall be the same color, size, pattern, and textures as the materials removed and must match the existing pattern.

(h) When a property owner, city agency or utility company has to make repairs under an existing concrete sidewalk or banquette and 35 percent or more of that concrete area measured by total area square feet within a property owner's portion of sidewalk or banquette has to be removed to perform the utility construction or repair, the property owner, city agency or utility company performing the work is responsible for replacing the entire sidewalk or banquette within the property owner's portion according to the minimum standards set forth in this section. When repairs to an existing concrete sidewalk are less than 35 percent of a property owner's portion of a sidewalk or banquette area, then the replacement shall be made in kind to match the existing pattern. When the agency, utility company, or property owner must make repairs to a concrete sidewalk then the replacement area must extend to the nearest expansion joint on all fours sides of the location of repair.

(i) Streets with sidewalks in excess of nine feet wide may be planted with street trees, pattern and construction as per the latest edition of the department of public works standard drawings and specifications for construction in the downtown development district. No person shall remove or plant sidewalk street trees within the boundaries of the downtown development district without first obtaining a permit from the department of parks and parkways. Such form shall include the name, address, phone, and email address of the person desiring to install trees, the project location, the site plan, and proposed trees species. The application form and site plan must be submitted to the downtown development district and the department of parks and parkways, prior to a permit being issued. The permit required by this section shall be granted only to the owner of the real property adjacent to which the proposed project location or to his authorized agent.

(1) All trees shall be a minimum of two to two and one-half inch caliper in size taken six inches from the top of the root ball with a minimum tree height of 12 feet.

(2) Street trees shall be planted in a manner suitable for pedestrian traffic including a minimum clear width of four feet of sidewalk. If the walking area is next to a wall, fence or other continuous vertical barrier, there should be five feet clear width, with six feet clear width preferred. The department of public works may direct the department of parks and parkways to require a clear width of six to eight feet or more if, in the determination of department of public works, the street has or is expected to have a high volume of pedestrian traffic.

(3) The minimum tree well size is four feet by four feet. Regardless of treatment, the tree well may not be included in the required clear width of sidewalk. Ground cover and/or stationary raised planters may be permitted on sidewalks within the downtown development district in lieu of tree grates upon written approval of the department of public works in

consultation with the downtown development district. Deviations relative to the size of the minimum tree well may be granted by the director of department of public works in consultation with the downtown development district.

(4) Street trees will be located and planted as per the latest edition of the department of public works standard drawings and specifications unless the proposed trees conflict with the existing utilities under the sidewalk or banquette where the trees are being proposed. Prior approval of all tree placements must be obtained from the department of parks and parkways, in consultation with the planning advisory committee. See details on street tree planting for location and spacing between trees in the latest edition of the department of public works standard drawings and specifications for construction in the downtown development district.

(j) The removal, relocation, destruction, or abuse in any manner of a street tree is prohibited on any parcel of land unless a variance, special exception, or approval has been obtained in writing from both the department of parks and parkways and the downtown development district. For any trees affected as a result of pending development, the permit holder must make all efforts to preserve protected trees or provide an appropriate mitigation or replacement plan in advance.

(k) Property owners, or any person, firm or corporation shall have responsibility for maintaining sidewalks in clean, good and safe condition and not causing any defects or hazards within their portion of sidewalk or banquette abutting said property.

(l) The sidewalk, all tree grates, manholes, detectable warnings, and all other appurtenances must comply with ADA, AASHTO and Federal Highway Administration requirements. Specifically, a minimum four foot clear pedestrian zone must be maintained. If the walking area is next to a wall, fence or other continuous vertical barrier, there should be five feet clear pedestrian zone, with a six foot clear pedestrian zone preferred. Between the face of the curb and any signpost, utility pole, fire hydrant or other vertical obstruction, there should be an 18 inch clear zone. All other grades, cross slopes, transitions, clearances should comply with the published standards. Save ADA, AASHTO, and Federal Highway Administration requirements, deviations relative to this section may be granted by the director of department of public works in consultation with the downtown development district.

(m) The director of department of public works is authorized at his discretion, to approve the installation of sidewalks constructed with other paving materials on a case-by-case basis, after consultation with the downtown development district, the city planning commission, and the district council member of the area.

(n) The director of department of public works is authorized, at his discretion, to waive the installation of sidewalks constructed with other paving materials on a case-by-case basis, after consultation with the downtown development district, the city planning commission, and the district council member for the area.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Sec. 146-194. Minimum sidewalk treatment within the Vieux Carré District.

(a) All new sidewalks or banquettes or repaved sidewalks or banquettes immediately adjacent to property located in the Vieux Carré which is defined as that area bounded by the downtown side of Iberville Street, the river side of North Rampart Street, the uptown side of Esplanade Avenue and the river, shall be paved, repaved or constructed either with brick in the tan-medium brown color range (pattern and construction as per detail series No. VC-A on file) or with flagstone in the blue-grey color range (pattern and construction as per detail series No. VC-B on file). The map on file delineates the type of treatment for each sidewalk located within the Vieux Carré.

(1) Category A streets shall be paved, repaved or constructed with brick in the tan-

medium brown color range, pattern and construction as per detail series No. VC-A on file.

(2) Category B streets shall be paved, repaved or constructed with flagstone in the blue-grey color range, pattern and construction as per detail series No. VC-B on file.

(b) Roadway curbs within the Vieux Carré will be vertical granite or slate curbs as per detail series on file, except that roadway curbs at street corners immediately adjacent to handicap access ramps may be constructed of concrete. Handicap access ramps will be constructed according to details on file on each corner whenever reconstruction occurs. The department of public works will store granite curbs removed from any area of the city for future use by the city and utility companies.

(c) No person shall remove a sidewalk or install a new sidewalk or make any cut for any purpose whatsoever in any sidewalk pavement in the Vieux Carré without first having obtained a permit from the director of the department of public works and the Vieux Carré Commission. Application for such a permit shall be made on a printed form which the director of public works and the Vieux Carré Commission shall furnish for this purpose. Such form shall include the name and address of the person desiring to install a sidewalk, and the dimensions and location of such sidewalk. All existing granite curbs, slate curbs, brick or flagstone sidewalks shall be retained and/or reused whenever possible. The permit required by this section shall be granted only to the owner of the real property adjacent to which the proposed sidewalk is to be constructed and maintained, upon the application of such owner or his authorized agent. The property owner is required to provide all sidewalk and curb materials. Both the director of the Vieux Carré Commission and the department of public works are authorized to issue a stop-work order for sidewalk construction being performed in violation of this section.

(d) The director of the department of public works shall exact from the applicant, before issuing a permit for the installation of a sidewalk, in accordance with section 146-141 thru 146-144.

(e) Any property owner in the Vieux Carré, prior to the demolition of old sidewalks, or installation of new sidewalks, or installation of new sidewalks, or adjustment of any manholes, catch basins, metal frames and covers, etc., shall contact in writing the utility companies (Sewerage and Water Board, Entergy, AT&T, and Cox). The purpose is to obtain any information regarding proposed new utilities or revisions to existing utilities. Such notification must be given by the property owner at least 90 days prior to the planned activities to permit coordination of work efforts.

(f) When a city agency, utility company or property owner has to make repairs under an existing sidewalk or banquette, and 35 percent or more of that sidewalk or banquette area within a property owner's portion of sidewalk or banquette has to be removed to perform the utility construction or repair, the city agency, utility company or property owner performing the work is responsible for obtaining materials and replacing the removed sidewalk or banquette according to the minimum standards set forth in this section. When repairs involved are less than 35 percent of a property owner's portion of sidewalk area, then the replacement shall be made in kind, that is, the replacement materials shall be the same as the materials removed and shall match the existing pattern. The provisions of this subsection pertaining to the Vieux Carré will be mandatory when a cost distribution program has been approved by the city council. The cost distribution program must be submitted by the director of the Vieux Carré Commission to the city council within 90 days of the adoption of this section. Any nonemergency utility work performed prior to approval of the cost distribution program will be done according to the minimum standards of this section.
(M.C.S., Ord. No. 27414, § 1, 6-15-17)

Secs. 146-195—146-235. Reserved.

ARTICLE IV. NEWSBOXES AND NEWSSTANDS*

Sec. 146-236. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings as-

*Cross reference—Businesses, ch. 30.

cribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned refers to a newsbox or newsstand that:

(1) Has not been used for the storage, distribution or circulation of printed matter for a period of three calendar months or longer;

(2) Is or was used for a periodical that has ceased publication and contains neither the last issue nor any issue published within the preceding three months;

(3) Is used for a periodical and does not contain the most recent issue of such periodical and contains no issue that antedates the most recent issue by less than eight chronologically consecutive issues;

(4) Is used for a periodical published at intervals of a calendar month or less and does not contain the most recent issue and contains no issue that antedates the most recent issue by less than six calendar weeks;

(5) Is used for a periodical that is issued at regular intervals greater than a calendar month and does not contain the most recent issue and contains no issue that antedates the most recent issue by a period less than 1½ such regular intervals;

(6) Has held or contained trash or refuse other than its intended printed matter or has been infested by rodents or other vermin for a period of a calendar week or longer;

(7) Contains printed matter which had become waterlogged but has not been removed for a period of a calendar month or longer; or

(8) Is operated by the insertion of coins, cash, cards or tokens and has remained inoperable for a period of two calendar weeks or longer.

Enforcement agency means the charter department, officer, commission or board of city government designated in writing by the mayor to act as the enforcement agency for this article in the geographical area of the city where a violation of this article occurs.

Illegally fixed refers to a newsbox or newsstand that has been bolted, chained, nailed, screwed, strapped or otherwise fixed in place by any means:

(1) To property belonging to the public or a governmental body other than the owner or operator of the newsbox or newsstand in such a fashion that the said property without the other's consent has been pierced, perforated, cut, abraded or otherwise materially altered or damaged in a manner that ordinarily requires the use of tools to repair the alteration or damage; or

(2) To private property without the owner's consent.

Litterprone refers to a newsbox or newsstand from which printed matter can be shown by the affidavit of a witness to have been blown or removed by wind or another cause other than direct human action at a time other than when a lid or similar containing device was temporarily open for the purpose of removing printed matter.

Newsbox or *newsstand* means any box, cage, wood, plastic or wire-frame device, structure, vending machine or other movable device used for the vending, distribution or circulation of printed matter and owned and/or operated by a person or persons other than the person or governmental body that owns the public or private immovable property on which the device is located.

Operator means a person who has the legal right to place or replace and/or to fill or stock and/or to collect revenues from the coinbox or similar money receptacle of a newsbox or newsstand.

Printed matter means any newspaper, magazine or other periodical publication, flyer, handbill, brochure, map, advertising sheets, book or booklet containing written, typed or printed words, symbols or graphic matter reproduced by any means for sale, distribution or circulation.

Survey zone means a geographical zone identified and defined by the enforcement agency as an appropriate zone for enforcement action under this article. No survey zone shall consist of less than the entirety of a:

(1) Public way between its intersections with two other public ways;

(2) City square or other area of contiguous land bounded by public ways or places on all sides and of the public ways or places around it;

(3) Public square, plaza, park or other public place; or

(4) Parcel of private property or public property held in a proprietary capacity.

(Code 1956, § 40B-1)

Cross reference—Definitions generally, § 1-2.

Sec. 146-237. Penalties.

Whoever does anything prohibited or fails to do any act required by this article, upon conviction in municipal court, shall be fined not more than $300.00 or imprisoned for not more than five months or sentenced to both such fine and imprisonment. It shall not be a defense to a prosecution under this section that the violation was cured after the affixment of a notice pursuant to sections 146-240 through 146-242, 146-245 and 146-246.

(Code 1956, § 40B-4)

Sec. 146-238. Identification required.

On or after January 1, 1991, no owner, lessee or operator of a newsbox or newsstand shall cause or permit his newsbox or newsstand to be placed or remain on public property for any period of time during which the newsbox or newsstand does not have permanently displayed on one of its visible surfaces the name and address of the owner, lessee or operator thereof.

(Code 1956, § 40B-2(a))

Sec. 146-239. Abandonment prohibited.

No owner, lessee or operator shall cause or permit his abandoned, litterprone or illegally fixed newsbox or newsstand to remain on any public or private property within the city. No owner, lessee or operator shall cause or permit his newsbox or newsstand to become abandoned, litterprone or illegally fixed. Nothing in this section, however, shall prohibit the storage of any newsbox or newsstand that is not being used for the vending, distribution or circulation of printed matter in a lawful place of storage on private property with the consent of the owner of such property.

(Code 1956, § 40B-2(b))

Sec. 146-240. Enforcement agency designated.

The mayor shall, in writing, designate one or more enforcement agencies to enforce the provisions of this article in one or more geographical areas of the city so defined that there shall be only one enforcement agency in each such area. With the approval of the enforcement agency, other city agencies may assist in the enforcement of the provisions of this article within the area.

(Code 1956, § 40B-3(a))

Sec. 146-241. Issuance of notice.

The enforcement agency, whenever it commences enforcement activity in a survey zone, shall make every reasonable effort to ensure that the notice authorized by this section is affixed to every abandoned, litterprone or illegally fixed newsbox and newsstand within the survey zone. If any newsbox or newsstand in a particular zone is impounded pursuant to this section, the enforcement agency shall make every reasonable effort within one month of the first such impoundment to impound all other newsboxes or newsstands in the same survey zone that can lawfully be impounded.

(Code 1956, § 40B-3(b))

Sec. 146-242. Contents, effect of notice.

Upon determining an appropriate survey zone, the enforcement agency shall affix to each abandoned, litterprone and/or illegally fixed newsbox or newsstand found therein a notice declaring that the newsbox or newsstand has been found to be in violation of this article and must be removed by the owner, lessee or operator within seven calendar days of the date the notice is affixed in default of which the newsbox or newsstand will be removed and impounded by the enforcement agency and disposed of in the manner provided for the disposition of signs in section 134-122(b). The notice shall state that the owner, lessee or operator may request a hearing on whether or not the newsbox or newsstand is in violation and should be removed and impounded by filing a written request in the principal office of the enforcement

agency not later than 4:00 p.m. on the fourth day following affixment of the notice.
(Code 1956, § 40B-3(c))

Sec. 146-243. Removal after notice.

No owner, lessee or operator of a newsbox or newsstand shall cause or permit his newsbox or newsstand to remain on any public or private property for any period longer than seven calendar days after the notice authorized by section 146-242 is first affixed to a visible surface of the newsbox or newsstand. However, if a written application for a hearing is properly filed pursuant to section 146-242, the running of the seven calendar days shall be interrupted and shall begin to run anew on the day the applicant for the hearing receives a copy of the written findings of the enforcement agency pursuant to section 146-246.
(Code 1956, § 40B-2(c))

Sec. 146-244. Removal, etc., of notice.

No person other than an officer or agent of the city shall remove or efface or obscure any notice affixed pursuant to section 146-241.
(Code 1956, § 40B-2(d))

Sec. 146-245. Impoundment authorized.

If the owner, lessee or operator fails to remove a newsbox or newsstand to which a notice has been affixed and has failed to file a written request for a hearing within the time stated in the notice, the enforcement agency may remove and impound the newsbox or newsstand and cause it thereafter to be disposed of in the manner providing for disposition of signs in section 134-122(b).
(Code 1956, § 40B-3(d))

Sec. 146-246. Hearing.

If an owner, lessee or operator requests a hearing, the enforcement agency shall set the time and date thereof and notify the applicant in writing of the hearing at least one calendar week in advance of the hearing. Whenever such a hearing is timely requested, no removal or impoundment shall be done until after the hearing is concluded. Upon conclusion of the hearing, if the applicant shows that the newsbox or newsstand was not in violation of this article or that the violation has been cured, the enforcement agency shall issue a written finding directing that the notice be removed from the newsbox or newsstand. If the applicant fails to make such a showing, the enforcement agency shall issue and serve its written finding of violation upon the applicant. If the violation is not cured within seven calendar days from the date the applicant receives a copy of the written findings, the employees or agents of the agency shall remove and impound the newsbox or newsstand.
(Code 1956, § 40B-3(e))

Secs. 146-247—146-274. Reserved.

ARTICLE V. CONSTRUCTION AND MAINTENANCE OF STRUCTURES OR SERVICES ON, ABOVE OR BENEATH STREETS

DIVISION 1. GENERALLY

Sec. 146-275. Street use privileges, permits and franchises.

Notwithstanding any other provision of this chapter, a special franchise ordinance of the council adopted under chapter 16 of the home rule charter, shall be required for any physical plant or installations in, over, or under the streets or other public places of the city which will be so extensive or will have so much capacity that they will be suitable for use for public utility and/or telecommunications public carrier purposes, whether by those directly serving consumers or those transmitting or relaying commodities, services, or telecommunications to or from consumers and/or third parties who serve consumers. This section shall not apply to any permittee granted a street use permit prior to the effective date of the ordinance from which this section was derived. An ordinance adopted under this section shall comply with all requirements of chapter 16 of the home rule charter and the federal and state constitutions.
(M.C.S., Ord. No. 16,707, 10-20-94)

Sec. 146-276. Permission of council required.

It shall be unlawful for any person to construct or maintain or operate any structure or service on, above or beneath the public streets and other public places within the city without permission of the council in accordance with the regulations provided in this article. Providers of wireline telecommunications services, as that term is defined in section 30-45 of this Code, shall be governed by sections 30-43 through 30-57 of this Code.
(Code 1956, § 61-50.1; M.C.S., Ord. No. 17,560, § 3, 6-6-96)

Sec. 146-277. Granting of permission; rates.

(a) The permission required by this article shall be granted only by ordinance and shall specify the purpose of the privilege, the streets and other public places affected, the duration of the privilege and the consideration therefor in accordance with the following schedule of rates:

(1) *Passageways, conveyors and similar structures above public streets and alleys.* For one-story passageways, conveyors and similar structures bridging an area above a public street or alley, the annual fee shall be equal to 24 percent of the average assessed value per square foot of the connected or adjoining land multiplied by the total number of square feet of horizontal public street or alley space covered by the outside dimensions of the superimposed structure. One-half of such fee shall be added for each additional floor. The minimum fee shall be $600.00 per annum for one-story structures and $300.00 per annum for each additional floor.

(2) *Loading platforms and occupation of public streets and alleys.* For loading platforms or occupation of public streets and alleys, the fee shall be equal to 48 percent of the average assessed value per square foot of the adjoining or connected land multiplied by the total number of square feet of public street or alley area occupied including ramps and steps. The minimum fee shall be $300.00 per annum.

(3) *Underground vaults, elevators and storage tanks.* For underground vaults, underground elevators and underground storage tanks, the annual fee shall be $200.00 for each structure. For storage tanks, the fee shall include accompanying service piping up to 100 feet in length. Piping in excess of 100 feet shall be charged for in accordance with the appropriate schedule below.

(4) *Underground pipes and conduits.* An annual charge of $50.00 for the first 100 feet or less in length and $30.00 for each additional 100 feet or fraction thereof for pipes and conduits up to six inches in diameter. For pipes and conduits over six inches in diameter, the fee shall be twice the above fee.

(5) *Overhead wires.* An annual charge of $50.00 for the first 100 feet or less in length and $30.00 for each additional 100 feet or fraction thereof.

(6) *Underground wells.* An annual charge of $600.00 for each well and accompanying service piping, up to 100 feet in length. Piping in excess of 100 feet in length shall be charged at the rate of $50.00 per 100 feet or fraction thereof.

(b) The assessed value used in this section shall mean the valuation for assessment purposes as listed in the assessment rolls in the several municipal districts in and for the parish for the current year in which the privilege is granted or renewed.

(c) No fee required by this section shall be required from any nonprofit educational or charitable institution for the privilege of constructing, maintaining or operating an overhead or underground structure across or beneath any public street or alley where such structure is used primarily for the safe passage of pedestrians in connection with the operation of such institutions. A surety bond shall be provided by such an institution to guarantee the removal of the structure upon expiration of the privilege.
(Code 1956, § 61-50.2)

Sec. 146-278. Payments for privilege; default.

All payments required by this article shall be made annually in advance. If any payment is not made on or before the dates fixed by the privilege ordinance, then all subsequent payments accruing under the terms thereof shall immediately, without demand or putting in default, become payable, or, such ordinance may be terminated or cancelled by the council, which cancellation shall not release any indebtedness accruing prior to the date thereof or as long as such grantee remains and makes use of such privilege.
(Code 1956, § 61-50.3)

Sec. 146-279. Application for privilege; approval.

Application for a privilege under this article shall be made in writing by the applicant to the director of the department of public works describing the structure or service to be erected, and the purpose for which the privilege is sought. Such application shall be accompanied by four copies of a sketch, drawn to scale, showing the location of the structure or service in relation to existing property lines, and other pertinent descriptive details. Approvals of all interested city agencies involved shall be secured by the director of the department of public works before the proposed privilege ordinance is introduced in the council.
(Code 1956, § 61-50.4; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-280. Rights of grantee.

The grantee of a privilege under this article shall not exercise such privilege except in connection with his own business nor shall he lease or grant the right to use the same to any person for rent or hire. Privileges shall be inalienable and not transferable; provided, that the grantee may subrogate to another all his rights and liabilities with respect to the privilege granted to him, upon specific written notice to the director of the department of public works, giving the name and address of the person to whom the subrogation is made and upon securing the consent of the council by ordinance.
(Code 1956, § 61-50.5; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-281. Construction of service, etc., liability for costs; manner of making and restoring cuts in sidewalks, etc.

The structure or service to be built under the privilege granted under this article shall be constructed in accordance with all applicable regulations and laws in effect. The cost of rearrangement of existing utilities or structures made necessary by the construction, operation or removal of the structure or service under the privilege granted shall be borne by the grantee. Likewise, any damages to existing utilities or structures occasioned by the construction, maintenance or operation of the structure or service under the privilege granted shall be borne by the grantee. All sidewalks, pavements and other properties torn up or disturbed in constructing, operating, maintaining or removing the structure or service under the privilege granted shall be restored to their original good condition, including removal of any markings, satisfactory to the director of the department of public works. The grantee shall likewise conform in all respects to the provisions of all ordinances and regulations relative to the manner of making and restoring cuts in sidewalks and roadway pavements, especially the provisions of sections 146-436 et seq.
(Code 1956, § 61-50.6; Ord. No. 21,148, § 2, 6-19-03)

Sec. 146-282. Removal or relocation of structure or service.

Permission shall be granted under this article under the express condition that such structure or service shall be subject to prompt removal or relocation within 60 days at the pleasure of the city after notice thereon from the city and at the expense of the grantee whenever the city shall request such removal or relocation for the purpose of the execution of public works or other franchises or permits of whatever nature, or for any public purpose on the site so occupied. Should a change of location or renewal within a period of time shorter than 60 days be so deemed necessary by reason of public danger or peril, then such structure or service or any part thereof shall be removed or shifted at the grantee's expense in the earliest time possible, or in default thereof such

grantee shall suffer the removal or shifting at his expense. Should the grantee abandon the structure or service under the privilege granted, or should the same be partially destroyed so as not to be of any further use, the grantee shall remove the structure or service from public property and restore any existing utilities or structures to their original good condition. Should the privilege ordinance be cancelled by reason of default of payments in accordance with section 146-277, the structure or service shall likewise be removed from public property, and any existing utilities or structures shall be restored to their original good condition by the grantee. Upon expiration of the duration of the privilege granted, the structure or service shall be removed from public property, and any existing utilities or structures shall be restored to their original good condition by the grantee, unless the council has granted an extension of the privilege by ordinance.
(Code 1956, § 61-50.7)

Sec. 146-283. Surety bond.

The grantee of any privilege shall furnish a good and solvent surety bond, in solido, in favor of the city, satisfactory to the director of the department of public works, in a sum equal to the aggregate of the annual payment during the term of the privilege but in no event to be less than $500.00 or more than $3,000.00 to guarantee the faithful performance of all the obligations of the grantee of such privilege set forth in the ordinance granting the privilege and this article. When the privilege is granted to more than one grantee, then all of the grantees shall join together in furnishing the surety bond, in solido, referred to above.
(Code 1956, § 61-50.8; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-284. Scope of division.

This article shall not be applicable to marquees and similar structures, except when the floor area of any such marquee or similar structure has the same general use or occupancy as the building to which it is attached, or to hoods, sunshades, vertical fins, ornaments, cornices, vents and exterior doors, all if not in violation of any law or ordinance; nor shall it be applicable to those utilities, public or private, which enjoy rights under existing franchises or legislation, especially the rights conferred upon the sewerage and water board by Legislative Act 6 of 1899, as amended; nor shall it be applicable to the granting of switch track privileges which are provided by section 122-131 et seq.; nor shall it be applicable to the granting of temporary revocable permits for the use of public streets, which permits are regulated under the provisions of sections 146-311—146-313 and 146-315—146-319.
(Code 1956, § 61-50.9)

Sec. 146-285. Penalty.

Any person violating any of the provisions of this article shall be subject to a fine of not more than $25.00 or imprisonment for not more than 30 days, or both, for each violation at the discretion of the court having jurisdiction. Each day's violation or failure to comply with the provisions of this article shall constitute a separate offense thereunder.
(Code 1956, § 61-50.10)

Secs. 146-286—146-310. Reserved.

DIVISION 2. TEMPORARY USE

Sec. 146-311. Scope of division.

The issuance of permits under this division shall not be applicable to those utilities, public or private, which enjoy rights under existing franchises or legislation, especially the rights conferred upon the sewerage and water board by Legislative Act 6 of 1899, as amended.
(Code 1956, § 61-50.18)

Sec. 146-312. Reserved.

Sec. 146-313. Permits for temporary bus service.

Permits for the operation of temporary bus service on certain streets where such service is not already provided and is not in conflict with existing permits or franchises shall be issued in accordance with the regulations of this division.
(Code 1956, § 61-50.17)

Sec. 146-314. Permit for occupation of public right-of-way where vehicular or pedestrian traffic may be affected due to construction, demolition, etc.

(a) Where the construction, repair or demolition of any complex, structure, building or stand (Mardi Gras/parade) is authorized by a valid permit from the department of safety and permits, and if the construction, repair or demolition may obstruct or otherwise alter the pattern or flow of vehicular or pedestrian traffic a special permit from the department of public works shall also be required. The contractor for such work shall be required to obtain a special permit to be issued by the director of the department of public works, who is authorized to impose conditions upon the issuance thereof.

(b) The applicant shall file a written application with the director of public works on a form provided by the department of public works. A nonrefundable $40.00 permit application fee will be assessed. In addition to the application fee, a $90.00 inspection fee shall accompany the submission of the application to defray the cost of inspecting the work as well as costs for processing, reviewing each application, plot plan, construction plan and traffic plan.

(c) The director of the department of public works shall cause such application to be reviewed by the city's traffic engineer, who shall recommend approval or denial of the application. Such conditions for approval may include, but not be limited to, the requirement of a maintenance and/or repair bond, in accordance with schedule A as set forth in this section. Such bond shall be provided by the applicant upon demand by the director of the department of public works, and prior to the issuance of a permit. Upon approval of such permit, and prior to the issuance of a permit, the applicant shall submit to the director of the department of public works the appropriate roadway fee as set forth in schedule B of this section. Such fees shall be made payable to the city.

SCHEDULE A—MAINTENANCE AND/OR REPAIR BOND

Sidewalk Bond	*Per Square Yard*
Brick or stone	$ 310.00
Concrete	125.00
Roadway Bond	310.00

SCHEDULE B—ROADWAY FEE

Completion Time (Days)	*8' × 22' to 8' × 100'*	*8' × 101' to 8' × 200'*	*8' × 201' and more*
1—7	$ 60.00	$ 125.00	$ 245.00
8—30	125.00	185.00	370.00
31—90	185.00	245.00	495.00
91—180	370.00	495.00	740.00
181—270	615.00	740.00	985.00
270 or more	740.00	985.00	1,235.00

(Code 1956, § 61-50.19; Ord. No. 20,003, § 1, 1-18-01; M.C.S., Ord. No. 23818, § 6, 12-1-09)

Sec. 146-315. Jurisdiction of issuance of permits.

The issuance of temporary revocable permits for the use of the public streets and other public places when the furnishing of a public service is temporarily required shall be under the jurisdiction of the director of the department of public works in accordance with the regulations described in this division.
(Code 1956, § 61-50.11; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-316. Application; approval and issuance of permit.

All applications for the installation of facilities for temporary services shall be submitted by letter to the director of the department of public works, describing the service and facilities to be installed and enclosing four copies of a sketch showing the location of the facilities with respect to property lines and street and sidewalk lines. Prior to the issuance of such temporary permits, the director of the department of public works

shall obtain the approval of interested city agencies. After such approval has been obtained, the director shall, at his discretion, issue a permit authorizing the use of the public streets and other public places for the installation of the necessary facilities.
(Code 1956, § 61-50.12; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-317. Construction of service, etc.; liability for costs; manner of making and restoring cuts in sidewalks, etc.

The structures to be built or the service to be furnished under the privilege granted under this division shall be constructed in accordance with all applicable laws and regulations. The cost of rearrangement of existing utilities or structures made necessary by the construction operation or removal of the structure or service under the privilege so granted shall be borne by the grantee. Any damages to existing utilities or structures occasioned by the construction, maintenance or operation of the structure or service under the privilege granted shall be born by the grantee. All sidewalks, pavements and other properties torn up or disturbed in constructing, operating, maintaining or removing the structure or service under the privilege granted shall be restored to their original good condition satisfactory to the director of the department of streets. The grantee shall likewise conform in all respects to all ordinances and regulations relative to the manner of making and restoring cuts in sidewalk and roadway pavements, especially the provisions of sections 146-436—146-443 and 146-445—146-455.
(Code 1956, § 61-50.13)

Sec. 146-318. Removal or relocation of structures, etc.

Permits required by this division shall be granted under the express condition that such structure or service shall be subject to prompt removal or relocation within 90 days at the pleasure of the city, after notice thereon from the city and at the expense of the grantee whenever the city shall request such removal or relocation for the purpose of the execution of public works or other franchises or permits of whatever nature, or for any public purpose on the site so occupied. Should a change of location or removal within a period of time shorter than 90 days be necessary by reason of public danger or peril, then such structure or service or any part thereof shall be removed or shifted by the grantee at his or its expense without delay, or in default thereof, the city may undertake such removal of shifting at the grantee's expense. Should the grantee abandon the structure or service under the privilege granted, or should the same be partially destroyed so as not to be of any further use, the grantee shall remove the structure or service from public property and restore any existing utilities or structures to their original good condition, or in default thereof, the city may undertake such removal at grantee's expense.
(Code 1956, § 61-50.14)

Sec. 146-319. Grantee to save city harmless.

The grantee of any temporary revocable permit under this division shall agree to save the city harmless from any damages to property or injuries to persons resulting from the installation, operation, maintenance, removal or shifting of the service or structure.
(Code 1956, § 61-50.15)

Secs. 146-320—146-350. Reserved.

DIVISION 3. POLES AND WIRES

Sec. 146-351. Constructing conduit, etc., without permit a misdemeanor.

Any person constructing any conduit, duct, manhole or other appurtenance or operating any electrical wire or other electrical conductor in any conduit, duct, manhole or other appurtenance without a permit from the council shall be guilty of a misdemeanor. Each conduit, duct, manhole or other appurtenance constructed on each street and each wire or other electrical conductor, used or operated in each conduit on each street shall constitute a separate offense. No punishment for one violation of this section shall bar or prevent prosecution for another violation.
(Code 1956, § 61-72)

Sec. 146-352. Application for permit for conduit.

The application for a permit required by section 146-363 shall be accompanied by full, general and detailed plans, showing the route, capacity and dimensions, alterations and changes of such conduits, ducts, manholes and other appurtenances, the size of the conduits proposed to be used and the depth of them as proposed to be

placed and shall also be accompanied by a map, profile and specification which shall accurately show the proposed location of the conduit with reference to the street and which shall, after being finally corrected and adopted, be filed and kept in the office of the director of the department of streets.
(Code 1956, § 61-56)

Sec. 146-353. Approval of council.

The council shall, after at least five days' notice to the applicant, consider all applications, statements, plans and details presented for the construction of underground conduits, ducts, manholes and other appurtenances for the use and operation of electrical wires and other electrical conductors and examine into the space available for such conduits, ducts, manholes and other appurtenances under or in the streets, alleys or other public places of the city and shall decide upon, amend and approve or prepare such plans, details and constructions, conduits, ducts, manholes, materials and conditions as in its opinion the public interest seems to demand. The city shall pass upon the application, statements, plans and details presented to it in accordance with this section within 30 days from the filing thereof with the clerk of the council.
(Code 1956, § 61-57)

Sec. 146-354. Joint construction; apportionment of cost.

When more than one application statement or plan is presented coincidentally to the council for conduits, ducts or manholes under or in any street, alley or public place, the council may compel such applicants to build and maintain joint conduits in which all the electrical wires or other electrical conductors of like tension owned or operated by such applicants shall be placed and, in case the construction thereof involves a joint outlay and there is a disagreement among the interested parties, the council shall apportion the expense of the construction and maintenance of such conduits, ducts, manholes and appurtenances as may be jointly constructed by two or more applicants. Any applicant who fails to accept such apportionment, in writing, within five days after the apportionment of cost shall be made by the council or by the arbitrators as hereinafter set forth, shall be excluded from all right or privilege to obtain under this article conduit, duct or manhole facilities in the streets, alleys or public places of the city and no conduit, duct or manhole permit shall be issued to applicants directed to use joint conduits, ducts and manholes until all applicants directed to use such joint conduits, ducts and manholes shall have filed with the clerk of the council a written acceptance of the apportionment of cost made by the council or by the arbitrators under this division. But if such applicant should be dissatisfied with the apportionment made by the council, the matter shall be submitted to arbitration, the applicant to appoint one arbitrator, the mayor another arbitrator and these two arbitrators to select a third.
(Code 1956, § 61-58)

Sec. 146-355. Bond required of applicants.

No permit for construction, use or operation of any conduits, ducts, manholes and other appurtenances for the use and operation of electrical wires and other electrical conductors shall be issued by the council except upon the party or parties applying for the same filing with the mayor a penal bond in the sum of $10,000.00, with two or more good and sufficient securities, or with one bond and trust company engaged in the business of furnishing bonds, approved by the mayor, conditioned that the conduits, ducts, manholes and other appurtenances shall be constructed in strict accordance with the plans approved by the council, that the city shall be held harmless from all suits for damages that may arise from the construction of such conduits, ducts, manholes and other appurtenances and that such person shall maintain such conduits, ducts, manholes and other appurtenances at all times in good order and condition, shall make all changes and alterations therein as the council may from time to time direct to the satisfaction of the director of the departments of public works and under the supervision of the director and shall comply with all ordinances and laws concerning conduits, ducts, manholes and other appurtenances or concerning the disturbance and repair of the streets, alleys and other public places of the city. Such bond shall be renewed

from time to time whenever the mayor shall so order as a condition of the continued use of the conduit privileges under this article and any refusal to renew a bond when so ordered shall forfeit all rights thereunder.
(Code 1956, § 61-59; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-356. Construction work to follow plans; required maintenance.

All conduits, ducts, manholes and other appurtenances for the use or operation of electrical wires and other electrical conductors shall be constructed and maintained in strict accordance with such plans and specifications as shall be approved by the council and all construction work shall be done under the supervision of the director of the department of public works and to the satisfaction of the director. Any failure on the part of any person using or operating any conduit, duct, manhole or other appurtenance within ten days from the date of the written notice from the director to do such work as deemed necessary for proper maintenance shall constitute a breach of the bond provided for under section 146-355 and shall operate a forfeiture of all rights and privileges under this section.
(Code 1956, § 61-60; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-357. Work subject to supervision.

The work of removal and replacement of the pavements in any street, avenue, highway or public place in and through which the wires of any company shall be laid shall be subject to the control and supervision of the director of the department of streets. Excavations in any and all of the unpaved streets, avenues, highways or public places shall also be subject to like control and supervision.
(Code 1956, § 61-61)

Sec. 146-358. Construction not to impede traffic materially.

The method employed in laying conductors shall be such that it will at no time be necessary to remove so much of the pavement or to make such excavations as to materially impede traffic or passage upon sidewalks or streets during the operation of laying or repairing such conductors, except when in crossing streets transversely, where it shall be permitted to remove the pavement in the nearest straight line from corner to corner.
(Code 1956, § 61-62)

Sec. 146-359. Where overhead wires prohibited.

No person owning or using electric wires, tubes, cables or other electrical conductors strung on poles or fixtures or attached to buildings or other structures in the city shall permit them to remain above the surface of any street, alley or public place of the city in the section of the city hereinafter described, with the exception of trolley wires used by street railway companies, wires or conductors placed inside of posts or brackets used in connecting lamps or signal boxes on streets with underground conductors and such poles as may be necessary to support trolley wires, such section of the city being defined as follows:

Beginning at the intersection of the northern property line of Howard Avenue and the western property line of South Front Street; thence in a westerly direction along the northern property line of Howard Avenue to the northern property line of Lee Circle; thence in a counterclockwise direction along the northern property line of Lee Circle to the northern property line of Howard Avenue; thence in a westerly direction along the northern property line of Howard Avenue to the western property line of Loyola Avenue; thence in a northerly direction along the western property line of Loyola Avenue to the southern property line of Poydras Street; thence continuing in a northerly direction along the same line across Loyola Avenue to the intersection of the eastern property line of Loyola Avenue and the northern property line of Perdido Street; thence in a northerly direction along the eastern property line of Loyola Avenue to the southern property line of Tulane Avenue; thence continuing in a northerly direction across Tulane Avenue to the intersection of the eastern property line of Elk Place and the northern property line of Tulane Avenue; thence in a northerly direction along the eastern property line of Elk Place to the

southern property line of Canal Street; thence continuing in a northerly direction across Canal Street to the intersection of the eastern property line of Basin Street and the northern property line of Canal Street; thence in a northerly direction along the eastern property line of Basin Street to the northern property line of Lafitte Avenue; thence in a westerly direction along the northern property line of Lafitte Avenue to the eastern property line of St. Claude Avenue; thence in a northerly direction along the eastern property line of St. Claude Avenue to the southern property line of Esplanade Avenue; thence in an easterly direction along the southern property line of Esplanade Avenue to the eastern property line of North Peters Street; thence in a southerly direction along the eastern property line of North Peters Street to its intersection with the eastern property line of Decatur Street; thence in a southerly direction along the eastern property line of Decatur Street to its intersection with the eastern property line of North Peters Street; thence in a southerly direction along the eastern property line of North Peters Street to the northern property line of Iberville Street; thence in an easterly direction along the northern property line of Iberville Street to the eastern property line of North Front Street; thence in a southerly direction along the eastern property line of North Front Street to the northern property line of Crossman Street; thence in an easterly direction along the northern property line of Crossman Street to the eastern property line of Wells Street; thence in a southerly direction along the eastern property line of Wells Street to the southern property line of Canal Street; thence in an easterly direction along the southern property line of Canal Street to the western property line of the roadway located between the Rivergate and the International Trade Mart; thence in a southerly direction along the western property line of said roadway to the northern property line of Poydras Street; thence in a westerly direction along the northern property line of Poydras Street to a point which would be intersected by an extension across Poydras Street of the eastern property line of Fulton Street; thence in a southerly direction along the said extension of the eastern property line of Fulton Street across Poydras Street to the southern property line of Poydras Street; thence in an easterly direction along the southern property line of Poydras Street to the western property line of South Front Street; thence in a southerly direction along the western property line of South Front Street to the northern property line of Notre Dame Street; thence in a westerly direction along the northern property line of Notre Dame Street to the eastern property line of South Peters Street; thence in a southerly direction along the eastern property line of South Peters Street to the southern property line of Julia Street; thence in an easterly direction along the southern property line of Julia Street to the western property line of South Front Street; thence in a southerly direction along the western property line of South Front Street to the northern property line of St. Joseph Street; thence in a westerly direction along the northern property line of St. Joseph Street to the eastern property line of Fulton Street; thence in a southerly direction along the eastern property line of Fulton Street across St. Joseph Street to the southern property line of St. Joseph Street; thence in an easterly direction along the southern property line of St. Joseph Street to the western property line of South Front Street; thence in a southerly direction along the western property line of South Front Street to the northern property line of Howard Avenue, the point of beginning.

(Code 1956, § 61-51)

Sec. 146-360. Wires excepted.

(a) All clock, burglar alarm, fire alarm and call box wires and telegraph wires, not exceeding two in number, used to connect any branch telegraph office with the main telegraph office, carrying current of low tension and not fastened or attached to poles or other fixtures placed or set in the streets, alleys or other public places of the city shall be permitted to remain overhead if:

(1) Such wires shall not be less than 35 feet above the surface of the street where they cross any open space of more than ten feet and are securely fastened;

(2) Each wire or cable shall be covered thoroughly with insulating material satisfactory to the director of the department of public works; and

(3) Each wire shall be tagged with lead tags in such manner that it will be impossible to remove the tag without destroying the wire or the fixture to which it is attached, plainly marked with the owner's name.

(b) Nothing in this section shall be construed as authorizing any wire of the description herein mentioned to cross any street in that part of the city known as the underground district, whereon any trolley wire shall be suspended.
(Code 1956, § 61-52; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-361. Wires to cross at corner.

Wires in the underground district that are permitted to remain overhead in accordance with section 146-360 shall not cross any street, alley or open place exceeding ten feet, except at a corner, and they shall cross the street in the nearest straight line from corner to corner. Where more than two wires belonging to one company cross at any corner, they shall be cabled.
(Code 1956, § 61-53)

Sec. 146-362. One post per square may be authorized.

The director of the department of public works may authorize the erection of no more than one post in any one square if they deem it necessary for local distribution for telephone and telegraph wires only.
(Code 1956, § 61-54; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-363. Placing of wires throughout city in underground conduits authorized.

Any person owning, using or operating electrical wires or other electrical conductors under proper authority along or across any street, alley or public place in the city strung on poles or attached to buildings or other structures in the city may construct, alter and repair underground conduits and place his electrical wires and other electrical conductors therein and may construct, alter and repair such ducts, manholes and other appurtenances as may be required for placing such electrical wires and other electrical conductors underground and to operate and use them. Such person must first obtain a permit therefor from the council.
(Code 1956, § 61-55)

Sec. 146-364. Ducts.

All conduits shall be provided with ducts 50 percent in excess of those required to carry the wires in use in the streets, alleys and public grounds at the time of the construction of such conduits.
(Code 1956, § 61-63)

Sec. 146-365. After construction streets to be restored.

Whenever any portion of any street, alley or public place shall be torn up or disturbed by the construction, alteration, repair or maintenance of any conduit, duct or manhole or other appurtenance, the person constructing, altering or repairing the same, upon completion of such work and whenever ordered to do so by the director of the department of streets shall immediately restore such street to its original condition without cost to the city. Any failure to comply with this section shall constitute a breach of the bond provided for in section 146-355 and shall operate a forfeiture of all rights and privileges under this division.
(Code 1956, § 61-64)

Sec. 146-366. City may inspect, order changes, etc.

The city, through the director of the department of public works, may at any time inspect, superintend and control the construction, use and operation of conduits, ducts and manholes for the use and operation of electrical wires and other electrical conductors and the city reserves the right from time to time to order any alterations or changes to be made in the construction, material or manner of maintaining the same or in the location in the streets and all such changes and alterations shall be made by the person owning the conduit without expense to the city. The

failure of any person owning any conduit, duct, manhole or other appurtenance to comply with any ordinance directing such changes or alterations within the time specified in the ordinance shall constitute a breach of the bond provided for in section 146-355 and shall operate a forfeiture of all rights and privileges under this division.
(Code 1956, § 61-65; M.C.S., Ord. No. 21480, § 3, 4-1-04)

Sec. 146-367. Rights in conduits not to be leased, etc.

No person building conduits under this division shall have the right without the consent of the council to lease or sublease space within such conduits or to use such conduits for purposes other than required by the individual needs of the person so building such conduits. Any violation of this section shall cause a forfeiture of all the rights and privileges granted under this division.
(Code 1956, § 61-66)

Sec. 146-368. Costs entailed by future construction of sewer system.

If the city or any company should construct a system of sewerage, it shall pay all the costs occasioned by the displacement or alteration of any portion of the conduits laid by any person to make room for any sewer pipe.
(Code 1956, § 61-67)

Sec. 146-369. Person disturbing conduit liable for costs.

If any person shall interfere with or disturb any of the existing conduits, such person shall pay all the costs or damage caused by such interference or disturbance.
(Code 1956, § 61-68)

Sec. 146-370. Placing overhead wires in underground sections a misdemeanor.

Any person placing wires, tubes, cables, poles or other apparatus for conducting or transmitting electricity above the surface along or across any street, alley or public place in the city in the sections described in section 146-359, except such poles as are especially excepted in such section, shall be guilty of a misdemeanor.
(Code 1956, § 61-69)

Sec. 146-371. Failure to remove overhead wires from underground sections a misdemeanor.

Any person owning or controlling poles or other fixtures for the purpose of supporting or carrying electrical wires or other electrical conductors above the surface of the street through the streets, alleys or public places of the city, except such poles or other fixtures especially excepted by section 146-359 and those outside of the sections therein described, who shall fail to remove the same shall be guilty of a misdemeanor. Each pole and other fixture on each street, alley or public place of the city for each day it is permitted to remain shall constitute a separate offense. No punishment for one violation of this section shall bar or prevent another prosecution.
(Code 1956, § 61-70)

Sec. 146-372. Permitting overhead wires to remain in underground sections a misdemeanor.

Any person owning or using electric wires, tubes, cables or other electrical conductors strung on poles or fixtures or attached to buildings or other structures in the city, with the exception of such electrical wires and other electrical conductors as are especially excepted by section 146-359 and those outside of the sections therein described, who shall permit the same to remain above the surface of any street, alley or public place of the city shall be deemed guilty of a misdemeanor. Each wire or other electrical conductor on each street, alley or public place shall constitute a separate offense for each day that such wires, tubes and cables are permitted to remain. No punishment for one violation of this section shall bar or prevent prosecution for another violation.
(Code 1956, § 61-71)

Secs. 146-373—146-410. Reserved.

ARTICLE VI. OBSTRUCTIONS, CUTTING INTO AND USE, OF STREETS

DIVISION 1. GENERALLY

Secs. 146-411—146-435. Reserved.

DIVISION 2. CUTTING AND DIGGING IN STREETS GENERALLY*

Sec. 146-436. Cuts in pavement not to be made without permit.

No person shall make any cut for any purpose whatsoever in any roadway pavement or sidewalk pavement in the city without first having obtained permission to do so from the director of the department of public works. Application for such permits shall be made on a printed form which the director shall furnish for that purpose. Such form shall provide for the name and business address of the person desiring to make the cut, the purpose for which the cut is to be made, the location by street and house number and the approximate dimensions of the cut as well as the character of the roadway or sidewalk pavement in which the cut is to be made.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-437. Limitations on permits.

(a) *Tunneling.* In no case shall tunneling of any character in excess of 12 feet be permitted except by special permission and authority of the director of the department of public works. Applicants for permits under this division shall state in their applications whether or not tunneling is contemplated in excess of 12 feet and if so to what extent.

(b) *Time limitations in business district.* In the case of permits for service cuts to be installed in the area bounded by Esplanade, Howard, Mississippi River, and Claiborne Avenue, the director of the department of public works may designate hours at which work will be performed.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-438. Deposit to guarantee compliance.

(a) The director of the department of public works shall exact from an applicant, before issuing a permit for the cutting of a roadway or sidewalk pavement, a deposit to guarantee compliance with the provisions of this article. The deposit shall be as follows:

(1)	For a cut in a pervious concrete, porous asphaltic concrete, or permeable interlocking concrete pavement, per square foot	$35.00
(2)	For a cut in a finished concrete or a granitoid pavement, in an asphalt pavement on a concrete base, and/or in a creosoted wood block pavement, small granite or vitrified brick pavement, per square foot	17.50
(3)	For a cut in all asphalt surfacing on shell or other flexible base, per square foot . . .	11.00
(4)	For a cut in all shell, gravel or other temporary surfacing or large granite block and cobblestone roadway pavements, per square foot	9.00
(5)	For a cut in artificial stone, brick and flagstone sidewalk pavement, per square foot . .	4.50
(6)	For a cut in all unpaved roadways or sidewalk areas, per square foot	2.50

(b) The director of the department of public works may, if necessary, exact a larger deposit than the above prescribed.

*__Editor's note—__M.C.S., Ord. No. 26646, § 1, adopted Nov. 5, 2015, amended Div. 2 in its entirety to read as herein set out. Former Div. 2, §§ 146-436—146-459, pertained to similar subject matter, and derived from Code 1956, §§ 61-79—61-87, 61-90—61-94, 61-99—61-102; Ord. No. 20,005, § 1, adopted Jan. 18, 2001; M.C.S., Ord. No. 23818, §§ 4, 5, adopted Dec. 1, 2009.

(c) Utilities with blanket permits are not required to pay the deposits required by this section.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-439. Blanket permit.

Where cuts are made by a public utility company operating under a franchise or indeterminate permit issued by the city or where the utility is operated by a governmental agency, the director of the department of public works may issue a blanket permit to any such utility. Such blanket permit shall be issued for a period of no more than one year and may be renewed on an annual basis. Such utility shall provide a one-time, nonrefundable blanket permit application fee of $10,000.00. Such utility shall also be required to provide an annual deposit of $50,000.00; but any remaining deposit balance shall offset the following year's required deposit. The recipient of a blanket permit shall be liable for the cost of any work required to restore the cut area to the same or better condition. Failure of the utility to pay the bill within 30 days of presentation or failure to otherwise conform to the requirements of this division shall constitute cause for forfeiture of their deposit or revocation of privileges extended under blanket permit. The grantee must notify the director of the department of public works as directed, as to the location and extent of each cut made under this blanket permit so that proper supervision can be exercised.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-440. Fee for cut where contractor's maintenance obligation has not expired.

In addition to the deposit required by section 146-438, the director of the department of public works shall exact from applicants the additional fee described below before granting permits for the cutting of roadway pavements on which the contractor's maintenance obligations have not expired. Such fee shall be retained by the city as compensation for acknowledged depreciation due to openings in newly paved streets. It shall be credited to the account of the maintenance division of the department of public works and shall not be refunded under any circumstances. Such fee shall be as follows:

(1) For a cut in street pavement having a concrete street pavement or a concrete foundation:

a.	During the first year of the maintenance period, per square foot	$5.00
b.	During the second year of the maintenance period, per square foot. . .	3.50
c.	During the third year of the maintenance period, per square foot. . .	3.00
d.	During the fourth year of the maintenance period, per square foot. . .	2.50
e.	During the fifth year of the maintenance period, per square foot	2.00

(2) For a cut in street pavement having pervious concrete, porous asphaltic concrete, or permeable interlocking concrete pavers:

a.	During the first year of the maintenance period, per square foot	$10.00
b.	During the second year of the maintenance period, per square foot. . .	7.00
c.	During the third year of the maintenance period, per square foot. . .	6.00
d.	During the fourth year of the maintenance period, per square foot. . .	5.00
e.	During the fifth year of the maintenance period, per square foot	4.00

(3) For a cut in any other pavement:

a.	During the first year of the maintenance period, per square foot	$3.00

b. During the second year of the maintenance period, per square foot... 1.75

c. During the third year of the maintenance period, per square foot... 1.30

(4) Utilities with blanket permits are not required to pay the fees required by this Section.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-441. Availability of materials.

The director of the department of public works may require an applicant for a permit to furnish him satisfactory evidence that all the materials which are to enter the structure for which the cut will be made are available prior to beginning work for the purpose of obviating delay in the installing of the structure and the prompt refilling of the trench or pit.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-442. Excavations to be made before street is paved.

The director of the department of public works shall notify all blanket permittees, as defined in section 146-439, at least six weeks in advance of the beginning of paving operations on any street or portion thereof. Such blanket permittees shall be and are hereby required to make any needed service cuts and to refill same, as required by provisions of this division, in advance of construction except that resurfacing of cut shall not be required and the administrative fee required for such cuts by section 146-439 shall be waived.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-443. Emergency cuts.

Nothing in this division shall be construed to prevent the making of such cuts as may be necessary for the preservation of life or property or for the location of emergency trouble in a conduit, cable, pipe or appurtenances for making emergency repairs, provided that the person making such cut or repair shall otherwise comply with the provisions of this division.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-444. Permit to be carried on job; if not, police to stop work.

Workmen engaged in making a cut in a street shall have in their possession the permit issued by the director of the department of public works and shall show said permit upon request by NOPD or DPW, or their authorized designee. Violators of this section shall immediately stop further work, safely secure the work site according to section 146-453 and be subject to a fine not to exceed $300.00 per day in accordance with section 1-13 until a permit is obtained. The foregoing shall not apply to blanket permittees, or contractors for blanket permittees engaged on an annual basis.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-445. Pavement cuts.

Existing pavement shall be cut and removed in a manner that does not damage the base of the roadway that is to remain in place, for a distance of at least 12 inches beyond the width of the trench on each side of the trench and at each end thereof, unless otherwise approved by the director of the department of public works or his designee.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-446. Limitation of damage.

The director of the department of public works may prohibit the use of heavy pavement breakers when their use endangers existing structures or other property. The permit holder accepts full responsibility for any such damage that may be caused by his operations. Tunneling will not be permitted except as stated in section 146-437(a), however, the director of the department of public works may require boring or other methods to prevent cutting of the pavement.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-447. Filling of cut on paved and asphalt surfaced streets.

As soon as practical following the installation of the subsurface structure or structures, all trenches and pits on all paved and asphalt surfaced streets shall be carefully refilled in accordance with the standards and specifications established by the director of the department of

public works. The backfill may be inspected by the director of the department of public works prior to repaving and, if the director determines that the refill is not satisfactory, he shall have the right to order the permittee to remove all of the filled material from the excavation and to have same refilled at the expense of the permittee. If such person fails to remove the unsatisfactory fill, the entire deposit shall be forfeited. Whenever caving occurs in the sidewall of any excavation, the pavement above such caving shall be removed and in no case shall any void or cavity be restored by side or lateral filling or tamping.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-448. Restoration of pavements.

(1) In the restoration of pavements, all work and materials used must meet the standards and specifications of the department of public works.

(2) Age of roadway shall be determined in accordance with official records of department of public works and the city.

(3) Pavement edges shall have vertical faces and be neatly aligned with the center and ends of the trench.

(4) Sections of sidewalks scored into stones shall be removed to the nearest score line or joint. Unscored sidewalks and driveways shall be repaved with straight edges parallel to the trench.

(5) Unstable pavement shall be removed over cave-ins, areas of contiguous subsidence, overbreaks and small floating sections and is to be treated in the same manner as the main trench.

(6) Cutouts outside of the trench lines must be normal or parallel to the trench line.

(7) Permit holder shall be required to repair existing pavement damage caused by the failing of his underground structure or structures.

(8) The director of the department of public works or his designee shall have the authority to consider debilitating conditions such as cracking, differential settlement, especially in the vicinity of trees not related to underground utilities and other conditions that might contribute to aging a street before a usual life has been achieved in determining the requirements and dimensions for restoration and may increase the size of the replacement section required in order to safely and adequately restore the roadway.

(9) If corner sidewalk cuts or restoration work extends into an area where curb ramps that are compliant with the requirements of the Americans with Disabilities Act (ADA) are required, then ADA-compliant curb ramps shall be installed on that corner, except as directed by the director of the department of public works or his designee.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-449. Restoration of temporary surfaced streets.

In the case of streets with gravel, shell or other temporary surfacing, all trenches shall be backfilled as required by section 146-447. Upon the subgrade shall be placed at least eight inches of compacted material of the same type as previously existed.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-450. Restoration of concrete streets.

In the case of concrete pavement roadway, the following shall be required when restoring all cuts regardless of size:

(1) The concrete on a finished concrete roadway or pavement foundation shall have a compressive strength of at least 4,500 pounds per square inch at 72 hours. Concrete sidewalks shall have a compressive strength of at least 3,000 pounds per square inch at 28 days.

(2) On streets with a concrete base or full-depth concrete paving, dowelling in the existing concrete pavement shall be employed.

(3) The pavement must be restored by replacement of the full concrete panel(s) in which the cut or part of the cut is made, unless otherwise directed or approved by the director of the department of public works or his designee. A panel is defined as a homogenous section bound by full original construction joints on each side.

(4) If the extent of the cut(s) and subsequent pavement restoration is 75 percent or more of the pavement surface area of the street block in which the cut was made, the entire street block from intersection to intersection shall be repaved, unless otherwise directed by the director of the department of public works. For purposes of this determination, the restoration of one or more separate cuts made within a 12-month period shall be considered as one combined restoration effort.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-451. Same materials required for pavement restoration.

All roadway construction shall be restored with the same materials unless approved by the director of department of public works.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-452. Identification tag required for restoration.

All permanent asphalt, concrete and brick street repairs shall be identified with a tag placed a minimum of one per 50 feet of trench resurfacing. In the case of small cuts, one tag in the center shall be required. The permit holder shall obtain said tag from the department of public works. The tag shall be color coded, in accordance with department of public works specifications and include year of the repair. Each tag shall be embedded at zero grade tolerance or slightly below in the new surface. Failure to permit holder to mark pavement cuts may result in forfeiture of guarantee compliance deposit, and the permit holder shall be subject to a fine not exceeding $300.00 per day in accordance with section 1-13. The director of the department of public works may direct that an alternative system be used in lieu of the identification tag for the tracking of restoration work.

(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-453. Provisions for public safety and traffic movement.

(a) *Safety provisions required.* It shall be the duty and responsibility of each person to whom a permit is issued pursuant to this division to provide all measures necessary to ensure safety of the public. Types and placement of barriers, warning signs, lights, etc., shall meet with the approval of the director of the department of public works. Warning lights shall be flares, electrical markers, or flashers used to indicate a hazard to traffic from sunset of each day to sunrise of the next day. Electrical markers or flashers shall emit light at sufficient intensity and frequency to be visible at a reasonable distance of safety. Reflectors or reflecting material may be used to supplement, but not replace light sources.

(b) *Traffic provisions required.* In the exercise of the privileges granted by such permit, the permit holders shall take appropriate measures to assure that traffic conditions as near normal as possible shall be maintained at all times so as to minimize inconvenience to the occupants of the adjoining property and to the general public. When traffic conditions permit, the director of the department of public works may permit the closing of streets and alleys to all traffic for a period of time prescribed by him, if in his opinion it is necessary. Warning signs shall be placed far enough in advance of the construction operations to alert traffic within a public street, and cones or other approved devices shall be placed to channel traffic in accordance with instructions of the director of the department of public works. Fire hydrants, fire stations, fire escapes, driveways and any other vital equipment as designated by the director shall not be blocked or interfered with in connection with the work required for the approved cut. The permit holder shall maintain safe crossings for vehicular traffic at all street intersections unless exception is made by the director of the department of public works and the permit holder shall maintain safe crossings for pedestrians at intervals of not more than 300 feet. Subject to the foregoing exception, the work shall be so arranged that at least one-half of the street shall be open for traffic at all times.

(c) *Notification required.* The approval of the director of the department of public works shall require that the holder give notification of work and street impairment to the police, fire and other city departments, as specified by the director, and to the general public if the director deems it necessary.

(d) *Violations.* Any person found violating the provisions of this section shall be subject to any and all of the provisions of section 146-5.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-454. Marking of utility pavement cuts.

(a) When cuts in the public rights-of-way are made by or for a public utility company operating under a franchise or a utility operated by government agency, such utility shall be required to tag all repairs in accordance with the standards and specifications established by the department of public works. All permanent asphalt, concrete and brick street repairs shall be identified with a tag placed a minimum of one per 50 feet of trench resurfacing. In the case of small cuts, one tag in the center of the repair shall be required. The tag shall be a one-piece constructed item and color coded in accordance with department of public works specifications. Each tag shall include the name, initial or logo of the utility that owns or operates the line, conduit or utility and the year of the repair. Each tag shall be imbedded at zero grade tolerance or slightly below in the new surface. The department of public works shall annually provide each utility with standards and specifications for the tags. These standards will include, but not be limited to, color codes, initial codes and tag design specifications.

(b) Failure of the utility to mark pavement cuts shall constitute cause for revocation of privileges extended under section 146-439, blanket permit. Such utility shall be subject to a fine not exceeding $300.00 per day in accordance with section 1-13.

(c) The director of the department of public works may direct that an alternative system be used in lieu of the identification tag for the marking of utility pavement cuts.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-455. Restoration of asphalt roadways.

In addition to the full-depth restoration of any cut, the street's wearing surface to a depth of at least 2½ inches shall be removed and replaced on the entire street block, as measured from beginning of intersection to the beginning of intersection, as part of the required pavement restoration, unless otherwise approved by director of the department of public works, if:

(a) The roadway is under five years old and the cut and subsequent pavement restoration runs for more than 100 linear feet along the length of the block or covers 25 percent or more of the total pavement surface area of the block; or

(b) The cut and subsequent pavement restoration runs for more than 150 linear feet along the length of the block or covers 50 percent or more of the total pavement surface area of the block, regardless of the age of the pavement.

For purposes of this determination, the restoration of one or more separate cuts made within a 12-month period shall be considered as one combined restoration effort.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-456. Notice to director when restoration completed.

Every person to whom a permit has been granted to make a cut in a pavement or earth roadway shall, upon completion of the backfilling and the planking or temporary restoration of the pavement or earth roadway as prescribed in this article, notify the director of the department of public works to that effect so that the work may be inspected to determine whether or not it has been satisfactorily executed.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-457. Failure to restore cut in pavements

All cuts in pavements as well as pavements to be relaid and earth roadways shall be permanently restored within the time fixed in the permit or the entire deposit shall be forfeited.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-458. Return of deposit.

The permittee shall be responsible for the maintenance of concrete or other hard surface

replaced if the cause of the defect is due to the work performed by the permittee or his representative; such responsibility shall extend for a period of five years on a concrete base street and for a period of one year on asphalt or other hard surfaced street without a concrete base. No deposit shall be refunded on any above designed street until the expiration of the prescribed maintenance period in each instance. Subject to the foregoing and when all cuts have been permanently restored to the satisfaction of the director of the department of public works, he shall return 90 percent of the deposit prescribed in section 146-438 and the remaining ten percent shall be retained by the city to defray the expense of necessary inspection. In the case of a blanket permit and subject to the foregoing and when all cuts have been permanently restored to the satisfaction of the director of the department of public works, he shall return the deposit prescribed in section 146-439.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

Sec. 146-459. Forfeiture of deposit.

In the case of failure to comply with any of the provisions of this division the entire deposit required by this division shall be forfeited to the city to be employed by the director of the department of public works in carrying out the intent and purpose of this division.
(M.C.S., Ord. No. 26646, § 1, 11-5-15)

DIVISION 2A. REMOVAL OF MARKINGS

Sec. 146-460. Applicability of this section.

This division shall apply to any public utility company under a franchise, a utility company operated by a government agency, or to any other entity, whether public or private, conducting work, such as excavation or demolition, that would require the marking of utility systems, on any roadway, pavement, sidewalk, banquette or any public right-of-way located within the city.
(Ord. No. 21,148, § 3, 6-19-03)

Sec. 146-461. Enforcement.

Any designated employee of the departments of health, police, public works and safety and permits shall enforce the provisions of this division.
(Ord. No. 21,148, § 3, 6-19-03)

Sec. 146-462. Bond required.

In addition to any other bonds or fees required in this chapter, any person conducting work, such as excavation or demolition, that would require the marking of utility systems on any roadway, pavement, sidewalk, banquette or any public right-of-way located within the city shall furnish a good and solvent surety bond, in solido, in favor of the department of public works, satisfactory to the director of the department of public works at $500.00 for each block face or each 300 feet, up to a maximum of $5,000.00 to guarantee the faithful performance of all obligations of that person, set forth in this division or promulgated by the department of public works. The bond requirements set forth herein shall not apply to any governmental agencies.
(Ord. No. 21,148, § 3, 6-19-03)

Sec. 146-463. Removal of markings.

Any person making any marking for any purpose whatsoever on any roadway, pavement, sidewalk, banquette or any public right-of-way located within the city shall make only such a mark using only temporary paints allowed by the department of public works. The removal of such markings shall be the responsibility of any entity, whether public or private, conducting work, such as excavation or demolition, that would require permission from the director of public works; and such entity shall be responsible for removal of any markings on any roadway, pavement, sidewalk, banquette or any public right-of-way within five working days of the completion of the project for which the marks were made. Upon the expiration of the five working days from the time of completion for which street markings were made, if the person who requested the markings to be made has not removed the same as required herein, the department of public works, and the downtown develop-

ment district within its geographical area, are hereby authorized to remove the markings without further notice.
(Ord. No. 21,148, § 3, 6-19-03)

Sec. 146-464. Penalties.

(a) Whoever fails to adhere to the standards promulgated by the department of public works regarding the painting of street markings, who does anything otherwise prohibited, or fails to do anything required by this chapter, shall be fined up to $500.00 per violation. The markings on each block face or each 300 feet shall be considered one violation.

(b) In addition to any other fines or penalties provided herein, and regardless of any hearing thereon, after notice to the person having made the marking and after removal of the marking by the department of public works or the downtown development district, the bond required in section 146-462 is to be forfeited.
(Ord. No. 21,148, § 3, 6-19-03)

Sec. 146-465. Administrative hearing.

Violations of this chapter may be adjudicated by the administrative adjudication bureau of public housing and environmental violations. Said hearing shall be conducted by a hearing officer of the administrative adjudication bureau of public housing and environmental violations, and shall be subject to the provisions of chapter 6 of this Code.
(Ord. No. 21,148, § 3, 6-19-03)

Secs. 146-466—146-490. Reserved.

DIVISION 3. POSTS, SHEDS AND OTHER OBSTRUCTIONS

Sec. 146-491. Reserved.

Editor's note—M.C.S., Ord. No. 26071, § 1, adopted Oct. 2, 2014, repealed § 146-491, which pertained to signs, sheds, etc.—Prohibited on portions of St. Charles, Louisiana and Napoleon Avenues and derived from Code 1956, § 61-111; M.C.S., Ord. No. 26038, § 1, adopted Sept. 18, 2014.

Sec. 146-492. Same—Exceptions.

The provisions of section 146-491 shall not apply to existing balconies of dwelling houses nor to marquees or awnings to protect show windows if no sign or advertisement appears thereon.
(Code 1956, § 61-112)

Sec. 146-493. Obstruction of public rights-of-way, public places prohibited.

(a) It is the intent of this section to maintain public streets, sidewalks, and other areas in the city in a clean, accessible and safe condition.

(b) It shall be unlawful for any person, natural or juridical, to deposit, encumber, obstruct, or cause to be obstructed any street, gutter, sidewalk, public space parallel to any sidewalk, entrance or window of any building, or any other public place or right-of-way (hereafter rights-of-way), by depositing, storing or placing any article whatsoever that prevents or impedes the free and proper use of the rights-of-way. This includes but is not limited to:

(1) The erection or placement of any tent, item of household furniture not intended for outdoor use, or other semi-permanent structure unless otherwise properly permitted. Removal of the aforementioned items shall be enforced by the director of the department of health or his/her designee and shall be subject to procedures specified in the New Orleans Health Department Regulations Governing Public Place/Right-of Way Obstructions, approved by the council on Thursday, June 17, 2015.

(2) Unsecured bicycles, electric-assisted bicycles, motorized bicycles, motor-driven cycles, mobility aids, electric scooters, and other similar devices whose placement prevents the free and proper use as stated herein, may be immediately removed from the rights-of-way and stored accordingly. This subsection shall be

enforced by the director of the department of public works or his/her authorized designee.

i. For the purposes of this section, the definitions of bicycles, electric-assisted bicycles, motorized bicycles, motor-driven cycles, mobility aids, and electric scooters shall be as provided in section 154-2 of this Code.

(3) Permanent obstructions of any nature unless lawfully authorized by the City of New Orleans shall be prohibited.

(c) This section shall not be construed to prohibit or prevent the use of small-scale, portable outdoor equipment at a permitted event.
(Code 1956, § 61-114; M.C.S., Ord. No. 26011, § 1, 9-4-14; M.C.S., Ord. No. 27849, § 1, 9-6-18; M.C.S., Ord. No. 29169, § 1, 10-6-22)

Cross reference—Parking of bicycles and similar devices, § 154-1421.

Sec. 146-494. Obstruction of sidewalks.

(a) It shall be unlawful for any person to obstruct or cause to be obstructed any public space parallel to any sidewalk including linear streets, public rights-of-way, public alleys or any entrance or window of any building so as to prevent the free and proper use thereof.

(b) If any person by performance of any outdoor act or activities causes a crowd to gather, and if the crowd makes passage by pedestrians inordinately difficult or conducts activities which impede access to the public rights-of-way the department of police shall have the authority to order such person(s) to cease performance of their act or activities. The person(s) to whom such an order is given must obey the order immediately or be subject to arrest for violation of this section and shall be prohibited from the following:

(1) Unauthorized installation or placement of sports athletic equipment or apparatus designed for temporary mobile or fixed stationary use including:

a. Basketball goal equipment;

b. Sports athletic training equipment.

(2) Unauthorized construction or assembly of sports special event or athletic event apparatus or other equipment which impedes or obstructs the public rights-of-way including amateur or homemade devices created for athletic purposes.

(c) The provisions of this section shall not apply to a person or persons engaged in watching a parade.

(d) The provisions of this section shall not apply to permitted, legal, sidewalk uses authorized pursuant to division 4 of this chapter.

(e) Jackson Square clear lanes.

(1) All artists, street entertainers, street vendors and other persons utilizing the Chartres Street, St. Ann Street and St. Peter Street malls surrounding Jackson Square under a permit from the city, hereinafter all referred to as "performers or vendors" shall endeavor to maintain "clear lanes" to facilitate pedestrian access to and around Jackson Square, as set forth below.

(2) No performer or vendor shall conduct his performing or vending activity in the clear lanes around Jackson Square.

(3) Performers and vendors shall encourage pedestrians who stop to view their performing and vending activities not to block the clear lanes established herein, and they shall cooperate with the effort of the department of police to maintain such clear lanes for pedestrian access in and around Jackson Square.

(4) The clear lanes areas shall be the following:

a. *Chartres Street Mall.* The clear lanes shall be from the facades of the Cabildo, St. Louis Cathedral and Presbytere to a line 20 feet out from those facades.

b. *St. Ann Street Mall.* The clear lanes shall be from the facades of the Pontalba building to a line 12 feet out from the downtown curb of the street.

c. *St. Peter Street Mall.* The clear lanes shall be from the facade of the Pontalba Building to a line 12 feet out from the uptown curb of the street.

(f) A commercial use with street frontage located within the Central Business District, as defined by the Comprehensive Zoning Ordinance, may display and/or place one detachable, freestanding, portable accessory sign, per business location, subject to compliance with division 4 of this article.

(Code 1956, § 61-114.1; M.C.S., Ord. No. 20850, § 1, 8-22-02; M.C.S., Ord. No. 21867, § 1, 3-3-05; M.C.S., Ord. No. 23508, § 1, 5-7-09; M.C.S., Ord. No. 27625, § 3, 12-14-17; eff. 10-1-17)

Sec. 146-495. Persons using sidewalks, etc., in business to display sign.

All persons doing business in the city on the public streets, sidewalks or other public property or on private property in the prosecution of work by which the public streets or sidewalks might be disturbed or a part of the street, sidewalks or public place encumbered with material shall exhibit a substantial sign painted black with their name and address in white letters not less than nine inches high and sufficiently wide to be conspicuous and discernible by the general public.

(Code 1956, § 61-117)

Sec. 146-496. Building materials—Removal by contractor, builder, owner required.

No contractor, builder or owner who may, in the raising or repairing of any building, deposit stone, brick, mortar, debris or similar material upon the street or sidewalk, shall fail to remove it after having been notified so to do by the director of the department of streets.
(Code 1956, § 61-118)

Sec. 146-497. Same—Removal and disposal of obstructions by city employees.

The obstructions referred to in section 146-496, when the owner is in default, and any such obstructions for which no owner or claimant can be found, shall be removed by employees of the department of streets to any street requiring repairs where such material can be used for filling purposes, otherwise the same shall be deposited in any public garbage, trash or other disposal area.
(Code 1956, § 61-119)

Sec. 146-498. Uncovered manholes to have iron railings around them.

All persons owning or operating manholes in the streets or public places of the city shall surround such manholes, whenever and for the length of time that they may be uncovered, with iron railings at least three feet high.
(Code 1956, § 61-120)

Sec. 146-499. Removal of debris from manholes.

Every person causing manholes to be cleaned shall be obligated to have carts at the manholes to receive at once all excavations taken from them and no refuse taken from them shall be allowed to remain upon the public streets. The surroundings of the openings of such manholes shall be thoroughly cleaned after they shall have been closed.
(Code 1956, § 61-121)

Sec. 146-500. Unloading goods on streets, etc.

It shall be unlawful for any person to encumber or obstruct any of the streets, gutters, public roads, public grounds, public squares, public places or promenades, banquettes or sidewalks of the city by depositing in or on them any box, bale, hogshead, barrel or other goods, wares or merchandise or article whatsoever, except for the necessary time of loading or unloading such articles. No merchandise shall be packed or unpacked on any sidewalk.
(Code 1956, § 61-122)

Sec. 146-501. Gutters not to be obstructed.

No person shall impede or obstruct the flow of water in any gutter, canal, pipe or other conduit used for draining within the limits of the city. Utility companies and private contractors or developers must remove in a timely manner any debris, concrete, roofing material, etc., related to any project they may be working on, from any storm drains and lateral lines throughout the city.

Anyone who violates this provision shall be subject to a $500.00 fine and/or up to six months in jail.
(Code 1956, § 61-123; Ord. No. 20,853, § 1, 8-22-02)

Sec. 146-502. Obstruction of street maintenance.

It shall be unlawful for any person to interfere with or obstruct the maintenance and repair of any portion of any street in the city. It shall likewise be unlawful for the owner or his agent to obstruct any street where notice of street work is posted within the block and also unlawful to refuse to move from the repair area any object of personal property, such as motor vehicle or other item, when requested to do so by employees of the department of streets for the purpose of facilitating repair or maintenance of any portion of the street. Any object and/or vehicle impeding street repair or maintenance may be moved from such areas by employees of the department of streets to nearby areas or as otherwise provided by law. When any vehicle bearing a current state

license plate is moved, it shall be relocated in a legal parking space and, if relocated in other than the same block, notice of such relocation shall be filed with the department of police and shall include the license number, make, color and body type of the vehicle, and the address from which the vehicle was relocated.
(Code 1956, § 61-123)

Secs. 146-503—146-530. Reserved.

DIVISION 4. SIDEWALK USE PERMITS*

[Subdivision I. Generally]

Sec. 146-531. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

A-frame sign means a temporary, non-illuminated, freestanding sign structure, not exceeding four feet in height providing advertisement for goods or services offered in the establishment so advertised. Such signs may not be utilized as general advertising, which shall be applied as defined in the comprehensive zoning ordinance, and shall be immediately adjacent to the business, on the public right-of-way.

Display means a temporary freestanding presentation of merchandise regularly offered for sale in the establishment licensed to operate on the immediate adjacent parcel. Such displays may not be affixed to the structure nor may such displays include alcohol or tobacco products.

Permit means the city-issued authorization to occupy a portion of the sidewalk or right-of-way immediately adjacent to a licensed, permissible commercial use, as determined by the Comprehensive Zoning Ordinance.

Permittee means the person or business entity issued a permit for the operation of a sidewalk café or placement of an A-frame sign or display under the terms and provisions of this division.

Sidewalk means that portion of the street between the curblines or the lateral lines of a roadway and the adjacent property lines intended for use by pedestrians.

Sidewalk café means a temporary, easily removable extension of an established food or beverage service establishment consisting of movable tables, chairs, and service equipment that are arranged directly upon the sidewalk paving as an adjunct of and directly adjacent to the existing permanent establishment, serving various refreshments such as beverages and food items on disposable or non-disposable service ware via traditional waiting staff or through take-out or self-service. Elements of "sidewalk cafés" shall not compromise the ADA compliance of any city sidewalk, cannot obstruct barrier-free access or passage along such sidewalk, nor any building ingress, egress, stairways, doorways, or other access-ways. No element of a sidewalk café may be utilized as general advertising signage, as defined in the Comprehensive Zoning Ordinance.

Sidewalk use means any use of the public right-of-way for a sidewalk café, A-frame sign, or display by an adjacent, licensed, commercial establishment, as authorized by this division and the Comprehensive Zoning Ordinance.

Temporary means that the entire arrangement on the sidewalk can be removed immediately as required by the city.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-532. Permit required.

Use of any sidewalk or other public space for the extension of a licensed business shall be unlawful without a sidewalk use permit issued pursuant to this division.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

*__Editor's note—__M.C.S., Ord. No. 27625, § 4, adopted Dec. 14, 2017, effective Oct. 1, 2017, amended Div. 4 in its entirety to read as herein set out. Former Div. 4, §§ 146-531—146-545, pertained to sidewalk cafes, and derived from Code 1956, §§ 61-114.2, 61-114.2a—61.114.2c, 61-114.2e—61-114.2n; M.C.S., Ord. No. 21480, § 3, adopted April 1, 2004.

Cross references—Businesses, ch. 30; food service establishments, § 30-651 et seq.; regulation of food, § 82-36 et seq.

Sec. 146-533. Permit requirements

(a) No person or business shall establish, operate, or continue to operate a sidewalk café on any public street or sidewalk unless such person or business obtains a valid sidewalk use permit pursuant to this division.

(b) No person or business shall place a display or A-frame sign on any public street or sidewalk unless such person or business obtains a valid sidewalk use permit pursuant to this division.

(c) Sidewalk use permits shall be issued only to validly licensed businesses that wish to provide sidewalk cafés on the sidewalk adjacent to their businesses for use by the general public, or that wish to place A-frame signage or limited displays of merchandise on the sidewalk in conjunction with the licensed business establishment.

(d) The eligibility for such permits shall be determined by the temporary use standards of the Comprehensive Zoning Ordinance and/or the applicable standards of the zoning district in which the subject property is situated.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-534. Authority to issue permit.

The director of the department of safety and permits shall authorize sidewalk use permits only for validly licensed businesses that fully comply with the requirements of this division and the Comprehensive Zoning Ordinance. Such permits shall be issued only after consultation with and the positive recommendation of the director of the department of public works. A sidewalk use permit is a privilege, not a right, and may be revoked, suspended, or not renewed based on non-compliance with the requirements of the Comprehensive Zoning Ordinance or the requirements of this division.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-535. Application, documents and requirements.

(a) Any person or business seeking a permit for operation of a sidewalk café, A-frame sign, or display of merchandise shall file a written application with the director of safety and permits on a form to be provided for that purpose.

(b) In addition to the application form, the following documents shall be submitted for review for an application to be considered complete:

(1) A plan shall be submitted on 8½" × 11" paper or in digital format. This plan does not need to be to scale, but shall show exact length and width dimensions of entire sidewalk abutting the subject property. This plan shall include an outline of the area to be occupied by the sidewalk café, A-frame sign, or display, as well as all existing encumbrances with measurements on the public way including, but not limited to, parking meters, fire hydrants, bike racks, light poles, and trees. A written narrative may accompany the plan.

(2) Photographs depicting the proposed site where the sidewalk use will be implemented and the relationship between the proposed sidewalk use and the surrounding public right-of-way.

(3) Images, renderings, or photographs of the furniture or fixtures to be utilized as part of the requested sidewalk use.

(4) Proof of commercial general liability insurance with limits of not less than $500,000.00 per occurrence/$1,000,000.00 aggregate combined single limit for bodily injury, personal injury, and property damage liability. The insurance shall name the City of New Orleans as an additional insured, and shall provide for 30-days prior written notice to the department of safety and permits if coverage is substantially changed, cancelled, or not renewed.

(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-536. Standards and criteria for application review.

(a) The following standards and criteria shall be used in reviewing the application and design drawings to determine if the proposed location is suitable and will not obstruct free and proper use of the public right-of-way.

(1) The sidewalk shall be of sufficient width to accommodate the proposed sidewalk use while maintaining a clear path of travel that is:

a. At least four feet in width on sidewalks of eight to ten feet in width.

b. At least six feet in width on sidewalks greater than ten feet in width.

c. In areas of congested pedestrian activity, the reviewing agencies are authorized to require a wider pedestrian path to ensure the free and proper use of the right-of-way by pedestrians.

(2) A clearance of ten feet shall be maintained between any element of a sidewalk use and a fire hydrant, or fire department sprinkler/standpipe connection.

(3) A clearance of ten feet shall be maintained between any element of a sidewalk use and a public transit pole or CPNC stand.

(4) Sidewalk uses are restricted to the area immediately adjacent to the business being served and may not project in front of neighboring businesses or vacant lots.

(5) Sidewalk uses shall not be located within the corner area of a public right-of-way, which is that area between the curb and the lines created by extending the property lines of the adjacent property being served and the curb.

(6) Tables, chairs, umbrellas and any other objects provided with the sidewalk café shall be of sufficient quality, design, materials, and workmanship to ensure the safety and convenience of users, and to enhance the visual and aesthetic quality of the urban environment.

a. Umbrellas, and other decorative elements shall be fire retardant, pressure-treated, or manufactured of fire resistant material and not interfere with the free and proper use of the sidewalk.

b. Within local control historic districts, the jurisdictional agency may provide standards or guidelines that shall be applied to determine the visual and aesthetic the suitability of proposed elements of the sidewalk café.

(7) Commercial uses seeking approval of an A-frame sign or display devices shall be limited as follows:

a. Commercial uses shall be permitted no more than one A-frame sign per street frontage occupied by the commercial use.

b. Commercial uses shall be permitted no more than two display devices per street frontage occupied by the commercial use.

c. A-frame signs and display devices shall be prohibited in the area bounded by the Mississippi River, the uptown side of Esplanade Avenue, the riverside of N. Rampart Street, and the downtown side of Iberville Street, except that these items may be authorized on N. Rampart Street subject to approval of the Vieux Carré Commission.

(8) The sidewalk use shall be permitted no closer than 18 inches from the edge of the roadway, unless otherwise approved by the director of the department of public works.

(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-537. Permit issuance.

(a) Upon satisfactory submission of the required documentation and completion of review by all necessary agencies, the director of the department of safety and permits may issue an annual sidewalk use permit. Said permit shall contain:

(1) The address of the adjacent property to which the sidewalk use is accessory;

(2) The permit holder's name or business name;

(3) The permit number and any additional usage limitations which may be imposed as a condition of approval;

(4) Capacity of the sidewalk café based on the approved furniture arrangement;

(5) Contact information for complaints by pedestrians or neighbors; the listed contact information shall be of an individual or entity able to respond on-premises to complaints. The telephone number of the business to which the sidewalk use is accessory shall be sufficient provided that the number is answered directly by an employee during the normal operation of the business;

(6) Dates the permit is valid.

(b) In addition to the permit placard, the director of safety and permits shall issue an approved site plan, which graphically describes the placement of approved sidewalk uses, and the location, extent, and boundaries of the approved sidewalk use.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-538. Permit renewal.

The sidewalk use permit shall be valid one year from the date of issuance. Renewal permits shall be issued in the same manner as initial permits, and requires:

(a) Providing the department an updated copy of any of the documents required by section 146-535;

(b) Providing a revised or updated site plan, if changes to an approved plan are requested; and

(c) Proof of payment of all applicable taxes and fees as required by law.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-539. Permit display required.

(a) The sidewalk use permit shall be conspicuously displayed on the exterior wall or window of the main entrance of the licensed establishment of which the approved use is accessory.

(b) The approved sidewalk use plan shall be posted in the same location and manner as a city issued occupational license and/or alcoholic beverage license.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-540. Operational limitations, generally.

(a) The arrangement and number of tables or other approved items authorized by the sidewalk use permit shall not be modified or altered without the approval of the director of the department of safety and permits.

(b) All furniture and fixtures shall reflect the approved site plan and may not be substantially changed, altered, added to or reduced without the approval of the director of the department of safety and permits.

(c) No portion or element of an approved site plan may be secured through bolting or otherwise fastening any table, chair, bench, fixture, or other device to a public sidewalk, post, sign, tree, or similar feature.

(d) The permittee shall keep the portion of the sidewalk not approved for commercial use pursuant to a sidewalk use permit free of obstruction(s) at all times.

(e) The sidewalk area adjacent to a commercial establishment that is issued a sidewalk use permit shall be maintained in a neat and orderly appearance at all times and the area

shall be cleared of debris or litter on a periodic basis during the day and again at the close of business each day.

(f) A-frame signs and displays are only permitted to occupy the right-of-way while the validly licensed business is open to the public. All components shall be removed from the right-of-way at the close of each business day.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-541. Operational limitations, sidewalk cafés specifically.

(a) The capacity of an approved sidewalk café shall not exceed the approved seating capacity indicated on the approved site plan and as stated on the permit placard.

(b) Tables and chairs associated with an approved sidewalk café shall be structurally sound and maintained in a manner ready for access and use by patrons.

(c) Sidewalk café permittees shall wash the sidewalk daily and at the close of business or, if open 24-hours, at the close of the sidewalk café element of the business.

(d) No live entertainment, speakers, or other sources of amplified sound shall be permissible on or adjacent to the approved sidewalk café.

(e) Carts, receptacles for waste or dirty dishes, and cooking appliances shall not be placed or stored on any portion of the sidewalk.

(f) Tables, chairs, and any other components of the approved sidewalk use shall be neatly stacked and organized at the end of each business day, at the hour indicated by this division, in a manner which will result in minimal intrusion into the public right-of-way.

(g) All property/building ingress and egress where a sidewalk café exists must remain unobstructed (including queuing lines) for clear, barrier-free pedestrian passage, consistent with the fire department regulations and ANSI standards for barrier-free access.

(h) Hours of operation:

(1) Seating within the sidewalk café shall not begin before 8:00 a.m.

(2) Unless otherwise provided in this section, seating within the sidewalk café shall end no later than 10:00 p.m.

(3) In the area bounded by the Mississippi River, the Pontchartrain Expressway, South Claiborne Avenue, and Canal Street (inclusive of uses which front on both sides of Canal Street), seating within the sidewalk café shall end no later than 12:00 a.m.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-542. Conditions and restrictions.

(a) Sidewalk use permits are subject to modification, suspension or revocation by the City of New Orleans at any time during the period of validity if the city requires the subject sidewalk area cleared for street, sidewalk, or utility repair or other public purposes.

(b) Sidewalk use permits are non-transferrable and may not be assigned or granted to any other person or business which may occupy the location to which a permit has been issued.

(c) The permittee accepts the prevailing site conditions with regard to ambiance, including, but not limited to, loading and passenger zones, loading zones, automobile traffic, exhaust fumes, noise, and pedestrian traffic.

(d) Sidewalk use permits shall be automatically suspended for periods 2-hours before, during, and 2-hours after a carnival parade for business locations on parade routes.

(e) The director of safety and permits may suspend sidewalk use permits without prior notice in the event of permitted special events where crowd control is likely to be necessary.

(f) The departments of police and fire and any other emergency response agency may require immediate removal or relocation of all or part of the sidewalk use in emergency situations.

(g) The City of New Orleans, its officers, agents, or any private utility company operating pursuant to a franchise granted by the city council, their officers, agents, or employees shall not be responsible for sidewalk use components relocated during emergencies.

(h) Issuance of a sidewalk use permit does not grant, convey, or infer any vested right to the use of the sidewalk area by the permittee nor does it constitute a deed, grant of easement, or servitude by the city. The city retains the right to revoke or deny the issuance or renewal of a sidewalk use permit for noncompliance with the provisions of this division, the City Code, or the comprehensive zoning ordinance.

(i) Sidewalks shall not be painted, modified, or altered in any way without prior written approval of the director of the department of public works.

(j) The city and/or its agents may schedule general cleaning and maintenance operations. If such work is scheduled, the city and/or it agents shall give notification of its scheduled cleaning times in advance of such operations to all sidewalk use permittees. Each permittee in the affected area shall remove all portions of the sidewalk café operations so that they do not inhibit the scheduled sidewalk cleaning, repair, and/or maintenance operations.

(k) Permittee is wholly responsible for the proper maintenance and use of any permitted sidewalk use, and shall defend, indemnify, and hold harmless the city from all actions, claims, costs, damages and expense to which the city may be subject by reason of any injury or alleged injury to any person or property resulting or alleged to result from such sidewalk use. The owner shall pay all sums so recovered against the city in any suit on account of such alleged injuries to which the city may be made a party, together with all such costs, damages and expenses as may be suffered by the city, all in a manner as to hold the city harmless from all such actions or claims.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-543. Fees.

(a) Upon initial submission of an application for a sidewalk use permit, a non-refundable application fee of $50.00 shall be remitted to the department of safety and permits.

(b) Fees for new issuance or renewal of sidewalk use permits shall be assessed in accordance with the following schedule, which shall be sufficient to administer and enforce the regulations of this program and to compensate the city for use of public property:

(1) A-frame sign: $200.00 per approved sign.

(2) Display devices: $200.00 per approved device.

(3) Any other approved sidewalk use: $200.00 per device.

(4) Sidewalk cafés:

a. In the area bounded by the Mississippi River, Poland Avenue, St. Claude Avenue, McShane Place, N. Rampart Street, Canal Street, S. Claiborne Avenue, Pontchartrain Expressway, St. Charles Avenue, Broadway Street, Maple Street, S. Carrollton Avenue, Oak Street, to the Mississippi River, inclusive of both sides of bounding streets: $350.00 per table (up to four seats), $100.00 per seat for tables seating more than four persons.

b. In all other areas: $200.00 per table (up to four seats), $75.00 per seat for tables seating more than four persons.

(c) Sidewalk use permit fees shall be payable at the time of permit issuance or renewal and are non-refundable in the event of suspension, revocation, or surrender of the sidewalk use permit during the term of validity.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-544. Penalties.

Any violation of this division and/or the correlating provisions in the comprehensive zoning ordinance may subject a violator to any remedy,

legal or equitable, available to the city. Remedies include, but are not limited to: revocation or suspension of the sidewalk use permit, daily fines, property liens, and/or referral to the alcoholic beverage control board for businesses holding valid alcoholic beverage licenses. Hearings for violations of this division or the comprehensive zoning ordinance shall be conducted in accordance with chapter 6, article II of this Code.
(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

Sec. 146-545. Denial, revocation, or suspension of permits.

(a) The director of the department of safety and permits may deny an application for a sidewalk use permit if, in the investigation of the application it is determined:

(1) That the proposed sidewalk use does not or cannot meet the standards of this division; or,

(2) That the proposed sidewalk use does not or cannot meet the standards of the comprehensive zoning ordinance; or,

(3) Upon recommendation of denial from the director of the department of public works that the location is unsuitable for commercial use on the public right-of-way due to pedestrian congestion, traffic, existing obstructions on the sidewalk, or any other reason that would result in an unsafe or substandard condition.

(b) The director of the department of safety and permits may administratively suspend a sidewalk use permit for a period not to exceed 30-days, for failure to abide by and maintain compliance with the standards of this division, the comprehensive zoning ordinance relative to operation of the licensed use, or revocation of any license or permit required by any other agency or entity for the legal operation of the licensed use.

(1) Operation of a sidewalk use during the period of such administrative suspension shall constitute a separate offence of this division and shall be grounds for revocation.

(c) Penalties for non-compliance with the provisions of this division may result in fines, suspension of the sidewalk use permit for a period not to exceed 180-days, or revocation of the sidewalk use permit.

(1) Hearings shall be conducted in accordance with the provisions of chapter 6, article II of this Code.

(2) In the case of revocation, a business entity shall be ineligible to receive another sidewalk use permit for a period of two years from the date of such revocation.

(M.C.S., Ord. No. 27625, § 4, 12-14-17; eff. 10-1-17)

*[Subdivision II. Public Transit Shelters]**

Sec. 146-546. Regulations applicable to public transit shelters.

Sidewalk use permit requirements and standards provided in sections 146-531 through 146-545 of this division shall apply to the installation and maintenance of public transit shelters placed on public rights of way for the general use and welfare of the public. Public transit shelters shall be temporary structures that are typically located at the curb adjacent to a street or in a median, designed with a shelter, which may be designed to include a sign and/or lighting, for the purpose of providing a covered waiting area for passengers boarding or alighting public transit vehicles.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-547. Insurance requirements for public transit shelters.

(a) Proof of commercial general liability insurance with limits of not less than $500,000.00 per occurrence/$1,000,000.00 aggregate combined

*__Editor's note—__M.C.S., Ord. No. 27764, § 2, adopted May 3, 2018, set out provisions intended for use as §§ 146-546—146-555. At direction of the city, in an email dated June 26, 2018, said provisions superseded the former Div. 4.1, §§ 146-546—146-560. The former Div. 4.1 pertained to sidewalk cafes, except Canal Street between North and South Claiborne Avenue and the river and derived from M.C.S., Ord. No. 19,029, § 1, adopted Dec. 17, 1998; M.C.S., Ord. No. 21480, § 3, adopted April 1, 2004; M.C.S., Ord. No. 25318, § 1, adopted May 16, 2013.

single limit for bodily injury, personal injury, and property damage liability. The insurance shall name the City of New Orleans as an additional insured, and shall provide for 30-days prior written notice to the department of safety and permits if coverage is substantially changed, cancelled, or not renewed.

(b) The permittee or transit agency served by the permitted public transit shelter shall maintain on file with the City of New Orleans Risk Manager a current certificate of insurance certifying the coverage required above for the life of the permit. The certificate of insurance shall be subject to the approval as to form by the City of New Orleans Risk Manager. Failure to maintain such certificate of insurance shall be cause for revocation of the permit.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-548. Supplemental design standards for public transit shelters.

(a) Public transit shelters shall only be installed at or within 20 feet of a designated transit stop.

(b) Public transit shelters shall be designed and installed in full compliance with the Americans with Disabilities Act and all applicable local, state, and/or federal design standard requirements.

(c) Commercial general advertising signage may be included as part of an approved public transit shelter when the proposed location is:

(1) Adjacent to any non-residentially zoned property as provided on the official zoning map of the city.

(2) Within the right-of-way of a primary arterial street, as classified by the Louisiana Department of Transportation and Development.

(3) Additional shelter locations where general commercial advertising signage is allowed may be permitted by motion of the council

(4) Commercial general advertising signage may not exceed 23 square feet in area; however, only one side of a double-faced sign shall be included in the computation of sign area.

(d) The design of public transit shelters is subject to the review and approval of the design advisory committee of the city planning commission.

(1) The design advisory committee is authorized to approve one or more standard designs of public transit shelter, allowing any sidewalk use permit application proposing such standard design to bypass design advisory committee review.

(2) Such approval shall be provided in writing and/or by issuance of stamped, approved plans.

(e) Within full control local historic districts, including the Vieux Carré, the staff of the jurisdictional historic commission shall review the design of public transit shelters to be located within such districts.

(1) The staff of the jurisdictional historic commission is authorized to approve one or more standard designs of public transit shelter, allowing any sidewalk use permit application proposing such standard design to bypass staff review.

(2) Such approval shall be provided in writing and/or by issuance of stamped, approved plans.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-549. Permit issuance and inspection.

(a) Upon satisfactory submission of the required documentation and completion of review by all necessary agencies, the director of the department of safety and permits may issue a sidewalk use permit for the installation of the proposed public transit shelter.

(b) Upon completion of installation, the applicant shall request a final inspection of the public transit shelter from the director of the department of safety and permits.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-550. Permit validity.

A sidewalk use permit for a public transit shelter is valid as long as all structural elements are maintained in a safe and structurally sound condition life of the structure; a new permit shall be required for permanent removal or replacement of structure. Removal and/or replacement of a damaged shelter structure is not required, except as otherwise provided by law.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-551. Permit number required.

Every sign or other advertising structure shall display the sidewalk use permit number and the voltage of any electrical apparatus used in connection with the public transit shelter, either painted on the structure or by application of a sticker, approved by the department of safety and permits, applied to the structure.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-552. Operational limitations, public transit shelters specifically.

(a) The installation authorized by the sidewalk use permit shall not be modified or altered without the approval of the director of the department of safety and permits.

(b) Installation of the public transit shelter shall reflect the approved site plan and may not be substantially changed, altered, enlarged or reduced without the approval of the director of the department of safety and permits.

(c) The public transit shelter may be secured to the public right-of-way through bolting or otherwise fastening the structure to the city sidewalk, subject to approval of the department of public works, as long as it remains temporary in nature. If a new foundation or sidewalk is required for installation, such work shall be included on the plans and shall be constructed in accordance with the standards of the department of public works.

(d) The permittee shall keep the portion of the sidewalk not approved for use pursuant to a sidewalk use permit free of obstruction(s) at all times.

(e) Permittee shall in consultation with the department of sanitation, shall submit to the department of safety and permits a trash and litter abatement plan for the timely collection of refuse in a manner that prevents overflow of refuse unto the ground.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-553. Fees, public transit shelters specifically.

(a) Upon initial submission of an application for a sidewalk use permit, a non-refundable application fee of $50.00 shall be remitted to the department of safety and permits.

(b) A permit fee of $250.00 shall be assessed for issuance of sidewalk use permits, which shall be sufficient to administer and enforce the regulations of this program and to compensate the city for use of public property.

(c) Sidewalk use permit fees shall be payable at the time of permit issuance and are non-refundable in the event of suspension, revocation, or surrender of the sidewalk use permit during the term of validity.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-554. Removal of public transit shelters.

(a) Permittees are solely responsible for removal of any public transit shelter installed within the right-of-way upon cessation of transit service to the location.

(b) Permittees are solely responsible for the removal of any public transit shelter in the event the permittee will no longer maintain or service the public transit shelter in accordance with the standards of this chapter.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Sec. 146-555. Faithful performance bond required.

(a) The permittee shall furnish to the City of New Orleans proof of the posting of a faithful performance bond in favor of the City of New Orleans, with good and sufficient surety approved by the City of New Orleans, in the penal sum of $250,000.00, conditioned that the permittee shall

well and truly observe, fulfill, and perform each requirement of this chapter relative to the installation, operation, and removal of the public transit shelter. The permittee shall pay all premiums charged for the bond, and shall keep the bond in full force and effect at all times throughout the term of permit validity, including, if necessary, the time required for removal of the public transit shelter(s). The bond shall contain a provision that is shall not be terminated or otherwise allowed to expire without 30 days prior written notice first being given to the department of safety and permits and approval of the director of the department of safety and permits. The bond shall be subject to approval as to form by the city attorney.

(b) During the term of permit validity, the permittee shall annually file documentation indicating that the bond remains in full force and effect along with written evidence of payment of the required premiums.

(c) In lieu of a faithful performance bond, the public transit agency served by the permitted public transit shelter may assume responsibility for full compliance with the provisions of this division, including removal of same in the event of abandonment of termination of transit service to the location served.
(M.C.S., Ord. No. 27764, § 1, 5-3-18)

Secs. 146-556—146-560. Reserved.

DIVISION 4A. ELECTRIC VEHICLE CHARGERS

Sec. 146-561. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dwelling means a structure, or portion of a structure, designed or used exclusively for permanent residential purposes, including single-family, two-family, townhouse, and multi-family dwellings, but not including trailers, hotels/motels, rooming houses, or automobile

Electric vehicle means any motor vehicle, licensed for operation on public streets in the State of Louisiana, which receives locomotive power from a battery or other storage device that receives and stores electricity from an external source such as a charger. This definition includes plug-in hybrid electric vehicles.

Electric vehicle charger means a device that permits the transfer of electric energy (by conductive or inductive means) to a battery or other storage device in an electric vehicle.

Operating permit means the city-issued authorization to install, operate, and maintain an approved electric vehicle charger occupying a portion of the right-of-way immediately adjacent to a dwelling.

Permittee means the person or business entity issued an operating permit for the installation, operation, and maintenance of an approved electric vehicle charger occupying a portion of the right-of-way immediately adjacent to a dwelling.

Right-of-way means that portion of the street between the curb lines or the lateral lines of a roadway and the adjacent property lines intended for use by pedestrians or as a landscaped buffer between pedestrian and vehicular traffic.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-562. Operating permit required.

Use of any right-of-way for installation, operation, or maintenance of an electric vehicle charger shall be unlawful without an operating permit issued pursuant to this division.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-563. Operating permit requirements.

(a) For purposes of enforcing this division, operating permits shall be considered an extension of a dwelling on publicly owned property and any violation of this division shall be attributable to the owner of such adjacent dwelling.

(b) Operating permits shall only be issued as accessory and subordinate uses to dwellings.

(c) Operating permit eligibility shall be limited to the owner or occupant of a dwelling that does not and cannot provide off-street parking on the lot on which the dwelling is situated, in a manner compliant with the Comprehensive Zoning Ordinance.

(d) Electric vehicle chargers shall be monitored and controlled by the permittee at all times and may only be utilized for private, non-commercial use. Fees, gratuities, or other remuneration may not be received by the permittee for use of the charger.

(e) All improvements associated with the installation, operation, and maintenance of electric vehicle chargers shall be compliant with the adopted construction codes of the City of New Orleans, and certified as compliant by the director of safety and permits.

(f) Cords shall be retractable or have a place to hang the connector and cord sufficiently above the pedestrian surface. Any cords connecting the charger to a vehicle shall be configured so that they do not cross a driveway, sidewalk, or passenger unloading area.

(g) Issuance of an operating permit for installation, operation, and maintenance of an electric vehicle charger on the right-of-way does not create a private or reserved parking space for the permittee on the right-of-way. A sign shall be affixed to the electric vehicle charger indicating that the presence of the charger does not constitute a private or reserved parking space, the dimensions and text of which shall be determined by the director of safety and permits.

(h) The electric vehicle charger shall be removed by and at the expense of the permittee or owner of the associated real property if the owner or permittee no longer owns or resides at the associated dwelling or upon non-renewal or cancellation of the operating permit. If a subsequent owner or renter of the property is desirous of taking possession of the electric vehicle charger for usage purposes, however, he/she must apply for a permit before expiration of the permit.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-564. Authority to issue permit.

The director of the department of safety and permits shall authorize operating permits only for residential uses that fully comply with the requirements of this division. Such permits shall be issued only after consultation with and the positive recommendation of the director of the department of public works. An operating permit is a privilege, not a right, and may be revoked, suspended, or not renewed based on non-compliance with the requirements of this division.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-565. Application, documents and requirements.

(a) Any natural person seeking an operation permit for the installation, operation, and/or maintenance of an electric vehicle charger in the right-of-way shall file a written application with the director of safety and permits on a form to be provided for that purpose.

(b) In addition to the application form, the following documents shall be submitted for review for an application to be considered complete:

1. A plan shall be submitted on 8½" × 11" paper or in digital format. This plan does not need to be to scale, but shall show exact length and width dimensions of entire right-of-way abutting the subject property. This plan shall include the location and size of the EV charger (including the stored cord), as well as all existing encumbrances on and underneath the public way including, but not limited to, driveways, parking meters, fire hydrants, bike racks, light poles, water, sewer, drain, and other utility lines, underground streetlight conduit and traffic signal conduit, and trees. A written narrative may accompany the plan.
2. Photographs depicting the proposed site where the electric vehicle charger will be installed and the relationship between the proposed electric vehicle charger and the surrounding public right-of-way.

3. If the applicant is not the owner of the adjacent real property or their designee, written authorization of the property owner shall be required as part of the application.

4. A permittee shall maintain an insurance policy that covers any risk for any injury or damage resulting from the installation, operation, and/or maintenance of the electric vehicle charger, and the property owner shall agree to indemnify and hold the city harmless from any claims arising from the installation, operation, and/or maintenance of the electric vehicle charger to the extent permitted by law.

(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-566. Standards and criteria for application review.

(a) The following standards and criteria shall be used in reviewing the application and design drawings to determine if the proposed location is suitable and will not obstruct free and proper use of the public right-of-way.

1. The right-of-way width shall be of sufficient width to accommodate the proposed electric vehicle charger while maintaining a clear path of travel that is:

   a. At least four feet in width on sidewalks of eight to ten feet in width.

   b. At least six feet in width on sidewalks greater than ten feet in width.

   c. In areas of congested pedestrian activity, the reviewing agencies are authorized to require a wider pedestrian path to ensure the free and proper use of the right-of-way by pedestrians.

2. A clearance of at least 15 feet shall be maintained between any electric vehicle charger and a fire hydrant, or fire department sprinkler/standpipe connection.

3. A clearance of at least 20 feet shall be maintained between any electric vehicle charger and an intersection or crosswalk.

4. A clearance of at least three feet shall be maintained between any electric vehicle charger and a driveway or other curb cut.

5. A clearance of at least ten feet shall be maintained between any electric vehicle charger and a public transit pole or CPNC stand.

6. Locations of electric vehicle chargers are restricted to the area immediately adjacent to the dwelling being served and may not project in front of neighboring properties or vacant lots.

7. The location shall avoid interference with vehicular sight lines at street corners or driveways and minimize the removal of vegetation.

8. The electric vehicle charger shall be installed no closer than 18" from the edge of the roadway, unless otherwise approved by the director of the department of public works.

9. Verification that the property has no outstanding taxes or property liens.

10. In local control historic districts, the historic district landmarks commission staff shall have approval jurisdiction over the design of electric vehicle chargers.

(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-567. Permit issuance.

(a) Upon satisfactory submission of the required documentation and completion of review by all necessary agencies, the director of the department of safety and permits may issue an annual operating permit. Said permit shall contain:

(1) The address of the adjacent property to which the electric vehicle charger is accessory;

(2) The name of the permittee;

(3) The permit number and any additional usage limitations which may be imposed as a condition of approval;

(4) Dates the permit is valid.

(b) In addition to the permit placard, the director of safety and permits shall issue an approved site plan, which graphically describes the placement of approved electric vehicle charger.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-568. Permit renewal.

The operating permit shall be valid one year from the date of issuance. Renewal permits shall be issued in the same manner as initial permits, and requires:

(a) Providing the department an updated copy of any of the documents required by section 146-565;

(b) Providing a revised or updated site plan, if changes to an approved plan are requested; and

(c) Proof of payment of all applicable taxes and fees as required by law.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-569. Approved equipment.

(a) Equipment shall be certified to current standards by a nationally recognized testing laboratory (such as UL or ETL) and listed and approved for electric vehicle use.

(b) Equipment shall comply with Society of Automotive Engineers (SAE) J1772-2009 standards, or a comparable standard as determined by the director of safety and permits, including safety features between the electric vehicle charger and the electric vehicle. These safety features include, but are not limited to:

(1) Ground fault circuit interrupter(s).

(2) Proximity detection and signaling.

(3) Power may only be supplied from the electric vehicle charger after the device has determined a proper and safe connection between the electric vehicle charger and the electric vehicle.

(c) Types of electric vehicle charger authorized:

(1) Level 1 Chargers with a power level of 110 to 120 VAC and up to 20 Amps.

(2) Level 2 Chargers with a power level of 208 to 240 VAC and up to 100 Amps.

(3) Level 3 Chargers and Fast DC Chargers with a capacity of up to 150kW.

(4) The director of the department of safety and permits may authorize an electric vehicle charger not described in paragraphs (1) through (3) above provided that the director creates a memo detailing why the approved electric vehicle charger substantively complies with the standards of this section and does not pose a danger to public health and safety.

(d) Power shall, under no circumstance, be provided to an electric vehicle parked on the right-of-way via extension cord that is run from a dwelling across a sidewalk and to the right-of-way. Such configuration constitutes a public nuisance and is in violation of the city's adopted construction codes.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17; M.C.S., Ord. No. 30377, § 1, 6-26-25)

Sec. 146-570. Authorized and prohibited locations.

(a) Electric vehicle chargers shall be permitted only in conjunction with a permitted residential use in a legally occupied dwelling.

(b) No property or parcel may have more than one electric vehicle charger installed in the right-of-way adjacent to such property or parcel.

(c) Installation, operation, and/or maintenance of electric vehicle chargers within the right-of-way shall be prohibited in the Vieux Carré, as defined in Chapter 166 of this Code.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-571. Conditions and restrictions.

(a) Operating permits are subject to modification, suspension or revocation by the City of New Orleans at any time during the period of validity if the city requires the subject right-of-way area cleared for street, sidewalk, or utility repair or other public purposes.

(b) Operating permits are non-transferrable and may not be assigned or granted to any other person or business which may occupy the dwelling to which a permit has been issued. A subsequent owner or renter of a property with an electric vehicle charger may submit a permit application before expiration of the permit. The requirement to remove the electric vehicle charger will be postponed while the new permit application is reviewed. Upon approval of such application, a transfer fee will be assessed in addition to any permit fees which may be due.

(c) The permittee accepts the prevailing site conditions including, but not limited to, loading and passenger zones, loading zones, obstructions within the right-of-way, active residential permit parking zone restrictions and permitting requirements, street cleaning parking restrictions, and automobile traffic.

(d) Operating permits shall be automatically suspended for periods two hours before and two hours after a carnival parade for locations on parade routes.

(e) The director of safety and permits may suspend operating permits without prior notice in the event of permitted special events where crowd control is likely to be necessary.

(f) The departments of police and fire and any other emergency response agency may require immediate removal, deactivation, or relocation of the electric vehicle charger in emergency situations.

(g) The City of New Orleans, its officers, agents, or any private utility company operating pursuant to a franchise granted by the city council, their officers, agents, or employees shall not be responsible for electric vehicle charger components relocated during emergencies.

(h) Issuance of an operating permit does not grant, convey, or infer any vested right to the use of the right-of-way by the permittee nor does it constitute a deed, grant of easement, or servitude by the city. The city retains the right to deny the issuance or renewal of an operating permit for noncompliance with the provisions of this division, the City Code, or the comprehensive zoning ordinance.

(i) No area of the right-of-way shall be painted, modified, or altered in any way without prior written approval of the director of the department of public works. No part of the right-of-way shall be obstructed, blocked, or otherwise reserved for a permittee's use of the approved electric vehicle charger. The public right-of-way shall remain available for parking of the general public at all times when the location is not legally occupied by the permittee's vehicle.

(j) The city and/or its agents may schedule general cleaning and maintenance operations. If such work is scheduled, the city and/or it agents shall give notification of its scheduled cleaning times in advance of such operations to permittees if the city expects such cleaning or maintenance will effect the permitted electric vehicle charger. Each permittee in the affected area shall remove, or cause to be removed, electric vehicle chargers so that they do not inhibit the scheduled cleaning, repair, and/or maintenance operations.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-572. Fees.

(a) Upon initial submission of an application for an operating permit, a non-refundable application fee of $100.00 shall be remitted to the department of safety and permits.

(b) Fees for initial issuance of an operating permit, a non-refundable permit fee of $300.00 shall be remitted to the department of safety and permits, which shall be sufficient to administer and enforce the regulations of this division and to compensate the city for use of public property:

(c) A non-refundable operating permit fee of $100.00 shall be remitted to the department of safety and permits for the annual renewal of an operating permit.

(d) Operating permit fees shall be payable at the time of permit issuance or renewal and are non-refundable in the event of suspension, revocation, or surrender of the sidewalk use permit during the term of validity.

(e) Upon approval of the transfer of an existing operational permit to a new property owner or rental tenant, a non-refundable transfer fee of $300.00 shall be remitted to the department of safety and permits, in addition to any other fees which may be due under the provisions of this division.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-573. Penalties.

Any violation of this division may subject a violator to any remedy, legal or equitable, available to the city. Remedies include, but are not limited to: revocation or suspension of the operating permit, daily fines, property liens, and/or discontinuance of electrical service. Hearings for violations of this division shall be conducted in accordance with Chapter 6, Article II of this Code.
(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-574. Denial, revocation, or suspension of permits.

(a) The director of the department of safety and permits may deny an application for a operational permit if, in the investigation of the application it is determined:

(1) That the proposed installation cannot meet the standards of this division; or,

(2) Upon recommendation of denial from the director of the department of public works that the location is unsuitable for installation, operation, and/or maintenance of an electric vehicle charger on the public right-of-way due to pedestrian congestion, traffic, existing obstructions on the sidewalk, or any other reason that would result in an unsafe or substandard condition.

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(b) Penalties for non-compliance with the provisions of this division may result in fines, suspension of the sidewalk use permit for a period not to exceed 180-days, or revocation of the sidewalk use permit.

(1) Hearings shall be conducted in accordance with the provisions of Chapter 6 of this Code.

(2) In the case of revocation, no operating permit may be issued at the same location for a period of two years from the date of such revocation.

(M.C.S., Ord. No. 27545, § 1, 9-28-17, eff. 10-1-17)

Sec. 146-575. Reserved.

DIVISION 5. PROTECTION OF STREETS

Sec. 146-576. Carrying away earth from streets, etc.

No person shall, without the consent of the director of the department of streets, carry away or cause to be carried away any earth from any street, square, public square, public walk or commons.
(Code 1956, § 61-124)

Sec. 146-577. Throwing glass, etc., on streets.

(a) It shall be unlawful for any person to drop, place, throw and suffer to remain or to be dropped, placed or thrown upon any highway, street, lane, square or other public place in the city any broken glass, crockery, scrap iron, nails, tacks, wire or such other substance as shall cause the streets and highways of the city to become dangerous to vehicles making use of them.

(b) Any person failing to comply with the provisions of this section shall be fined in a sum not exceeding $25.00 or imprisoned for 30 days.
(Code 1956, § 61-125)

Sec. 146-578. Street paving not to be damaged by heavy vehicles, etc.

It shall be unlawful for any person to drive, push or haul any vehicle, tractor, truck, road-grading machine, roller or other heavy object on any hard surface street paving in such a manner as to cut or cause indentations to appear in such hard surface street paving or otherwise to injure or damage such paving.
(Code 1956, § 61-126)

Sec. 146-579. Liability of officers of corporation.

When any agent, or employee of any corporation shall be responsible for the injury to any hard surface street paving in the manner set forth in section 146-578, the president, vice-president, secretary or other responsible managing officer of such corporation shall, likewise, be held liable for the violation of such section.
(Code 1956, § 61-127)

Sec. 146-580. Discharge of liquids, etc., into streets.

(a) It shall be unlawful to discharge any liquid or other material into or upon a street or open gutter in the city, other than the natural runoff of rain water or the discharge of clear water from drinking fountains or swimming pools, except under extenuating circumstances and in a manner approved by the director of the department of streets.

(b) Whenever it is brought to the attention of the director of the department of streets that an unlawful discharge of liquid is being made, he shall notify the owner and/or the occupant of the property from which the discharge of liquid flows that a violation of this section exists and the owner and/or occupant shall, within 30 days after the receipt of a notice from the director, correct the violation by an applicable measure indicated below:

(1) If wastewater is being discharged, a direct connection should be made to drainage canals, existing subsurface drainage, or subsurface drainage should be installed to tie into existing subsurface drainage.

(2) If discharge is not wastewater, a connection should be made to sanitary sewers in accordance with the requirements of the sewerage and water board.

(3) A method of disposal approved by the director of the department of streets and the sewerage and water board shall be used if disposal cannot be accomplished by the application of subsections (1) or (2) of this section.

(Code 1956, § 61-128)

Sec. 146-581. Mixing cement, etc., on asphalt streets prohibited.

It shall be unlawful for any person to use asphalt streets for the mixing of cement and other matter in the preparation of concrete or to use such pavements for slacking lime or mixing mortar. Persons who are compelled to prepare cement, slack lime or mix mortar on asphalt streets shall be equipped with proper boards and cement boxes to protect the asphalt pavements from any injury in the preparation of such concrete or other material.

(Code 1956, § 61-129)

Sec. 146-582. Placing of fill on a lot or site.

(a) It shall be unlawful to terrace, grade or place fill on any lot or site, or part thereof, in such a manner so as to adversely alter the present natural drainage pattern of the area. Requirements for lot or site grading and filling are on file in the office of the department of streets and are obtainable from the department. The department of streets shall approve the method used to terrace, grade or fill lots in order to assure that water will effectively drain from such lot or site and from the adjacent area. Whenever it is brought to the attention of the director of the department of streets that the provisions of this section are being violated, he shall notify the owner that the terracing, grading or filling being placed in place does not meet its requirements. The owner is to within 60 days after receipt of notice from the director of the department of streets grade or fill the lot or site in such a manner so as to be in compliance with the requirements of the department of streets. Should the owner of the property fail to comply with the notice sent concerning violation of this section, the director of the department of streets shall direct the maintenance division of the department of streets to properly grade and fill the lot or site in order to comply with the requirements of the department. The cost of all labor, equipment, and materials, including additional fill if needed shall be charged to the property owner.

(b) Upon completion of the work the director of the department of streets shall issue a bill against the property owner for the cost of such work which shall be due in cash within ten days after presentation of the bill.

(c) Whenever any property owner shall fail to pay the bill due by him within ten days after presentation thereof, the director of the department of streets, through the director of the department of finance, shall then record in the mortgage office within 60 days from the date of default on the part of the property owner, a copy of such bill in order that it may operate as a lien and privilege against the property affected thereby.

(d) Any retaining walls installed pursuant to the provisions of this section shall be constructed of concrete. Requests for approval of the use of material other than concrete shall be reviewed and approved or disapproved by the city council after consultation with appropriate city departments concerning the structural integrity of the alternate material.

(e) It shall be unlawful to terrace, grade or place fill on any lot or site, or part thereof, in such a manner so as to allow the runoff to drain on to adjacent property.

(Code 1956, § 61-130)

Sec. 146-583. Permit for private use of street.

The temporary closure of streets for noncommercial purposes by individuals or organizations shall be allowed only after obtaining written approval from the district councilmember and issuance of a special permit by the director of the department of public works, who is authorized to impose conditions upon the issuance thereof. These fees shall be nonrefundable and shall not

be waived. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District. Fees will be charged as follows:

Application fee:	
Nonprofits	$20.00
All others	$40.00
Street closure permit	$90.00
Street closure permit—CBD	$310.00
Street closure permit—French Quarter and Canal Street	$615.00

These permit fees for the CBD and the French Quarter and Canal Street shall not apply to Mardi Gras parades.

(Code 1956, § 61-131; Ord. No. 20,006, § 1, 1-18-01; M.C.S., Ord. No. 21123, § 1, 6-5-03; M.C.S., Ord. No. 23818, § 13, 12-1-09; M.C.S., Ord. No. 27266, § 1, 1-26-17)

Sec. 146-584. Permit required for placement of trash containers, dumpsters, etc., in the public right-of-way.

The placement of trash containers, receptacles, other similar containers, and dumpsters, hereafter referred to as dumpsters for purposes of this section, in the public right-of-way by contractors, builders, owners, or others requiring the temporary use of curb space to facilitate work conducted by them in the immediate vicinity shall be allowed only after the issuance of a permit by the department of public works. The city is authorized to impose conditions on the issuance of any permit issued pursuant to this section. If the curb space to be utilized, or any portion thereof, is regulated by parking meters, then the space designated for dumpster placement and fees relative thereto shall be as provided in section 154-1090, and fees for all other spaces shall be $10.00 per day. The city shall collect from the applicant for such permit an application fee in the amount of $40.00. The permit issued by the department of public works shall be valid for a period not to exceed 45 days, and may be renewed for additional 45-day periods provided that the contractor, builder, owner, or other applicant makes a request for renewal at least five working days prior to the expiration of the effective permit.

(Code 1956, § 61-131.1; Ord. No. 20,001, § 1, 1-18-01; M.C.S., Ord. No. 23818, § 14, 12-1-09; M.C.S., Ord. No. 26263, § 1, 2-26-15)

Sec. 146-585. Mandatory safety and identifying markings and permits to appear on all trash containers, dumpsters, etc., placed in the public right-of-way.

All trash containers, receptacles, other similar containers, or dumpsters, hereafter referred to as dumpsters for purposes of this section, that are placed in the public right-of-way shall bear the name, address, and phone number of the owner or party assuming liability for said dumpster and this identification shall be permanently affixed to each side of the dumpster, shall appear in legible characters that are of a color directly contrasting that of the dumpster, and be of a height not less than two inches. Any permit issued pursuant to section 146-584 shall also be clearly displayed. Dumpsters shall also bear no less than two "Type 2" safety markers, permanently affixed, upon each upper corner at each end. For purposes of this section, "Type 2" markers are those consisting of either three yellow reflectors, each with a minimum dimension of approximately three inches, that are arranged either vertically or horizontally, or an all-yellow reflective panel with dimensions no less than six inches by 12 inches.

(Code 1956, § 61-133; M.C.S., Ord. No. 26263, § 1, 2-26-15)

Sec. 146-586. Unpermitted dumpsters or storage containers shall be removed.

The director of the department of safety and permits or the director of the department of public works shall cause the removal of any unpermitted dumpster or storage container on

the public right-of-way, including by fining the owner or party responsible for placement of the dumpster or storage container in an amount up to but not exceeding $500.00 per citation. Such fine shall be appealable pursuant to the process set forth in Chapter 154 of this Code.
(M.C.S., Ord. No. 26263, § 2, 2-26-15; M.C.S., Ord. No. 26328, § 1, 3-26-15)

DIVISION 6. PARKLET PERMITS

Sec. 146-587. Definitions.

The following words, terms, and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Parking lane means that lane of a street immediately adjacent to the curb where parking is not prohibited.

Parklet means an ADA-compliant on-street build-out upon the parking lane from the curb that allows for additional customer space for an adjacent private business during certain hours, including seating, drainage, and other design elements.

Parklet permit means the city-issued authorization to occupy a portion of the parking lane immediately adjacent to a licensed, permissible commercial use, as determined by the Comprehensive Zoning Ordinance.

Permittee means the business entity or person issued a parklet permit under the terms and provisions of this division.

Public parking space means a section of the street allocated for public parking of personal vehicles within the parking lane.

Sidewalk means that portion of the right-of-way between the street curblines or the lateral lines of a roadway and the adjacent property lines, intended for use by pedestrians.

Temporary means that the entire arrangement on the street, a public right-of-way, can be removed immediately when required by the city.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-588. Permit required.

Use of any public parking spaces or the parking lane for the extension of a licensed business shall be unlawful without a parklet permit issued pursuant to this division.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-589. Permit requirements.

(a) No person or business shall establish, operate, or continue to operate a parklet on any parking lane or public parking space unless a valid parklet permit is obtained pursuant to this division.

(b) Parklet permits shall be issued only to validly licensed businesses that wish to provide additional customer space on the public parking space adjacent to their businesses for use by business patrons. Such additional customer space may include additional seating.

(c) The eligibility for such permits shall be determined by the standards in this division and the Comprehensive Zoning Ordinance, including its use standards and standards applicable to the zoning district in which the subject property is situated.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-590. Authority to issue permit.

The director of the department of safety and permits shall authorize parklet permits only for validly licensed businesses that fully comply with the requirements of this division and the Comprehensive Zoning Ordinance. Such permits shall be issued only after consultation with and the positive recommendation of the director of the department of public works, who shall consider whether a parklet would impose an unreasonable impact on pedestrian congestion, traffic congestion, nearby business activity, available on-street parking, and public safety. A parklet permit is a privilege, not a right, and may be revoked, suspended, or not renewed based on non-compliance with the requirements of the Comprehensive Zoning Ordinance and/or the requirements of this division.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-591. Application, documents, and requirements.

(a) Any business or person seeking a parklet permit shall file a written application with the department of safety and permits on a form to be provided for that purpose.

(b) In addition to the application form, the following documents shall be submitted for review in order for an application to be considered complete:

(1) A site plan on 8.5-inch by 11-inch paper or in digital format, which shows:

a. the exact location of the planned parklet, including the street address of the adjacent property, and dimensions from fixed reference points in the public right-of-way;

b. all design elements, including table spacing, any utilities in the area, and all relevant right-of-way dimensions;

c. any existing designated curb uses in the area, including whether the area is regulated by parking meters; and

d. the layout of any existing sidewalk café, including the permit number for such sidewalk café.

(2) Photographs depicting the proposed site where the parklet will be implemented and the relationship between the proposed parklet and the surrounding public right-of-way.

(3) Images, renderings, or photographs of the furniture and fixtures to be utilized as part of the requested parklet.

(4) Proof of commercial general liability insurance with limits of not less than $1,000,000.00 per occurrence/ $1,000,000.00 aggregate combined single limit for bodily injury, personal injury, and property damage liability. The operator of the parklet, which shall be the same as the operator of the adjacent business, shall obtain, maintain, and provide proof of general liability coverage, with the city listed as an additional named insured via endorsement (additional insured — designated person or organization), Form CG 20 26 04 13 or similar endorsement(s) providing equivalent coverage). The City of New Orleans must be shown by name in the schedule of the endorsement and included in the definition of "Who Is an Insured." The insurance policy must be reviewed by the city risk manager or law department for compliance with this section. The applicant shall provide for 30 days prior written notice to the department of safety and permits if coverage is substantially changed, cancelled, or not renewed.

(5) A hold-harmless and/or indemnity agreement from the operator to the city on a form to be prepared by the city.

(6) Engineering plan showing all details of structural and dimensional elements of the proposed parklet. These plans must be stamped by a Louisiana licensed professional engineer.

(7) A maintenance and operations plan for the parklet and adjacent area on a form developed by the department of public works.

(8) A hurricane preparedness plan outlining plans in the event of an approaching tropical storm threat consistent with the following:

a. For parklets without a roof structure:

1. A plan to remove the parklet from the right-of-way; or

2. A plan to secure the parklet in place, including engineering plans stamped by a Louisiana licensed professional engineer specifying the parklet structure will remain securely in place without bolting or otherwise fastening the parklet to the street, curb, or sidewalk.

b. For parklets with a roof structure:

1. A plan to remove the parklet from the right-of-way;

2. A plan to demount the roof structure of the parklet and secure the rest of the parklet structure in place, including engineering plans stamped by a Louisiana licensed professional engineer specifying the parklet structure will remain securely in place without bolting or otherwise fastening the parklet to the street, curb, or sidewalk; or

3. A plan to secure the parklet structure, including the roof structure, in place, including engineering plans stamped by a Louisiana licensed professional engineer specifying the parklet structure will remain securely in place without bolting or otherwise fastening the parklet to the street, curb, or sidewalk.

(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-592. Standards and criteria for application review.

(a) *Location criteria.*

(1) Parklets may only be placed in parking lanes. They shall not be placed in travel lanes.

(2) Parklets must be placed a minimum of 15 feet from water hydrants; 20 feet from stop signs, crosswalks, and corners; and three feet from driveways.

(3) Parklets shall not be placed in bus stop or bus zone areas.

(4) Parklets shall not be placed in cab stand or hack stand areas.

(5) Parklets shall not be placed in fire lanes.

(6) Parklets shall not be placed in handicapped parking zones.

(7) Parklets are only allowed on streets with a speed limit of 30 miles per hour or less.

(8) Parklet areas will be limited to the property frontage of the requesting business unless the adjacent property owner provides written consent of the parklet extending to their property frontage.

(9) Every location will be assessed for feasibility on a case-by-case basis. Road geometry, parking restrictions, and other necessary usages on the block or impacts from losing curb space shall be considered.

(10) Parklets are not permitted on streets within the City of New Orleans that are under the jurisdiction of another public entity or that are privately owned without written approval from that entity.

(11) Parklets are not permitted within one foot of any utility access point in the public right-of-way.

(12) The number of parklets permitted per block face shall be limited in accordance with the temporary use standards of the comprehensive zoning ordinance.

(13) Notwithstanding any other provisions herein, no parklet shall be permitted within the boundaries of the Vieux Carré, which for the purposes of this subsection shall be bounded by and include the downtown side of Canal Street, the river side of North Rampart Street, the uptown side of Esplanade Avenue, and the Mississippi River.

(14) Notwithstanding any other provisions herein, no parklet shall be permitted on Magazine Street from its intersection with Washington Avenue (uptown side) to its intersection with Louisiana Avenue (downtown side).

(15) A parklet and a sidewalk café may be permitted at the same location if not otherwise prohibited by law.

(b) *Safety and material criteria.*

(1) No portion or element of an approved site plan may be secured through bolting or otherwise fastening any table, chair,

bench, fixture, or other device to a public sidewalk, street, curb, post, sign, tree, or similar feature.

(2) Care must be taken to ensure adequate sight lines for vehicles on the street and near driveways, intersections, and crosswalks.

(3) Sidewalk access must be maintained at all times.

(4) No portion or element of an approved site plan shall obstruct drainage or prevent drainage from falling or flowing across sidewalks or roadways.

(5) The seating area and any transition from the sidewalk or curb shall be ADA compliant.

(6) Parklet decking shall be designed to support a minimum live load of 60 pounds per square foot after accounting for furniture weight.

(7) Parklets shall maintain a minimum 18 inch buffer between seating and the vehicular travel lane. The buffer shall be at least 32 inches in height, as measured from the road grade. Any portion of this buffer that exceeds 42 inches in height shall be visually transparent to maintain sight lines.

(8) Parklets shall include wheel stops offset two feet from either end of the parklet structure and offset one foot from the curb to maintain drainage. Wheel stops shall not be secured through bolting or otherwise damaging the roadway to secure.

(9) Parklets shall include a retroreflective element on the leading edge adjacent to approaching traffic.

(c) *Design specifications and review.*

(1) The design advisory committee will adopt a standard template for the visual and aesthetic aspects of proposed elements of the parklet.

(2) If a proposed parklet uses the standard template for the visual and aesthetic aspects of proposed elements, no further design review will be required.

(3) If a proposed parklet will not use the standard template for the visual and aesthetic aspects of proposed elements, the parklet design shall be reviewed by the design advisory committee, whose approval shall be required prior to permitting. All design advisory committee meetings are public meetings, and all agendas will be publicly noticed according to applicable law.

(d) *Other criteria.*

(1) Tables, chairs, umbrellas, and any other objects provided with the parklet shall be of sufficient quality, design, materials, and workmanship to ensure the safety and convenience of users, and to enhance the visual and aesthetic quality of the urban environment.

a. Umbrellas, and other decorative elements shall be fire retardant, pressure-treated, or manufactured of fire-resistant material and shall not interfere with the free and proper use of the sidewalk.

(2) No tents may be placed in a parklet.

(3) Glass construction elements or materials are prohibited.

(M.C.S., Ord. No. 29064, § 1, 6-23-22; M.C.S., Ord. No. 29862, § 1, 3-21-24)

Sec. 146-593. Permit issuance.

(a) Upon satisfactory submission of the required documentation and completion of review by all necessary agencies, the director of the department of safety and permits may issue an annual parklet permit. Said permit shall contain:

(1) The address of the adjacent property with which the parklet is associated;

(2) The parklet permittee's name and business name;

(3) The parklet permit number and any additional usage limitations which may be imposed as a condition of approval;

(4) Capacity of the parklet based on the approved furniture arrangement;

(5) Contact information, consisting of a name, telephone number, and email of an individual able to respond on premises to complaints. The contact person shall be available to respond to the city during normal business hours or within eight hours of a complaint;

(6) The telephone number and email address of the business with which the parklet use is associated; and

(7) Dates the permit is valid.

(b) In addition to the permit placard, the director of safety and permits shall issue an approved site plan that graphically describes the placement of an approved parklet and the location, extent, and boundaries of the approved parklet.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-594. Permit renewal.

The parklet permit shall be valid one year from the date of issuance. Renewal permits shall be issued in the same manner as initial permits, and shall require:

(a) Providing the department with an updated copy of any of the documents listed in section 146-591(b);

(b) Providing a revised or updated site plan if changes to an approved plan are requested; and

(c) Proof of payment of all applicable taxes and fees as required by law.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-595. Permit display required.

(a) The parklet permit shall be conspicuously displayed on the parklet structure and the exterior wall or window of the main entrance of the licensed establishment with which the parklet is associated.

(b) The approved parklet plan shall be posted in the same location and manner as a city issued occupational license and/or alcoholic beverage license.
(M.C.S., Ord. No. 29064, § 1, 6-23-22; M.C.S., Ord. No. 29862, § 1, 3-21-24)

Sec. 146-596. Operational limitations, generally.

(a) The arrangement and number of tables or other approved items authorized by the parklet permit shall not be modified or altered without the approval of the director of the department of safety and permits.

(b) All furniture and fixtures shall match the approved site plan and may not be substantially changed, altered, added to or reduced without the approval of the director of the department of safety and permits.

(c) No portion or element of an approved site plan may be secured through bolting or otherwise fastening any table, chair, bench, fixture, or other device to a public sidewalk, street, curb, post, sign, tree, or similar feature.

(d) The permittee shall keep any portion of the public right-of-way not approved for parklet use, pursuant to a parklet permit, free of obstruction(s) at all times.

(e) The parklet area shall be maintained with a neat and orderly appearance at all times and the area shall be cleared of debris or litter on a periodic basis during the day and again at the close of business each day.
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-597. Operational limitations.

(a) The capacity of an approved parklet shall not exceed the approved seating capacity indicated on the approved site plan and as stated on the permit placard.

(b) Tables and chairs associated with an approved parklet shall be structurally sound and maintained in a manner ready for access and use by patrons.

(c) The parklet permittee shall sweep and remove trash from the parklet area throughout the day and at the close of business of the parklet.

(d) No live entertainment, speakers, or other sources of amplified sound shall be permissible on or adjacent to the approved parklet.

(e) Carts, receptacles for waste or dirty dishes, and cooking appliances shall not be placed or stored on any portion of the public right-of-way or parklet.

(f) Tables, chairs, and any other components of the approved parklet shall be neatly stacked and organized at the end of each business day, no later than 10:30 p.m. pursuant to this section, in a manner which will result in minimal intrusion into the public right-of-way.

(g) All property ingress and egress where a parklet exists must remain unobstructed (including queuing lines) for clear, barrier-free pedestrian passage, consistent with the fire department regulations and ANSI standards for barrier-free access.

(h) Hours of operation:

(1) Seating within the parklet shall not begin before 8:00 a.m.

(2) Food or beverage service shall not provided within the parklet after 10:00 p.m.

(3) The parklet permittee shall not use the parklet for business purposes outside of these hours.

(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-598. Conditions and restrictions.

(a) Parklet permits are subject to modification, suspension, or revocation by the City of New Orleans at any time during the period of validity if the city requires the subject area cleared for street, sidewalk, utility repair, other public purposes, or in the case of an emergency.

(b) Parklet permits are non-transferrable and may not be assigned or granted to any other person or business that may occupy the location to which a parklet permit has been issued.

(c) The permittee accepts the prevailing site conditions, including, but not limited to, loading and passenger zones, bus stop or bus zones, cab stands or hack stands, fire lanes, handicapped parking zones, vehicle traffic, exhaust fumes, noise, and pedestrian traffic.

(d) Parades and street closures:

(1) Parklet permits shall be automatically suspended for a period of one week prior to the carnival parade season and remain suspended until after the final carnival parade of the carnival season for business locations on designated parade routes. If a permittee fails to remove the elements of the parklet one week prior to carnival parade season, the director of the department of public works and/or sanitation shall remove and dispose of the parklet elements.

(2) Parklet permits shall be automatically suspended for periods before, during, and after moving or stationary street closures unless the special event permit associated with the street closure includes the parklet. If a permittee fails to remove the elements of the parklet, prior to the moving or stationary street closure, the director of the department of public works and/or sanitation shall remove and dispose of the parklet elements.

(3) Parklet permits shall be automatically suspended in a Clean Zone as created by ordinance of the city council for a special event, unless the Clean Zone ordinance includes the parklet. If a permittee fails to remove the elements of the parklet, prior to the moving or stationary street closure, the director of the department of public works and/or sanitation shall remove and dispose of the parklet elements.

(e) The director of safety and permits may suspend parklet permits without prior notice in the event of permitted special events where crowd control is likely to be necessary.

(f) The departments of police and fire, or any other emergency response agency, may require immediate removal or relocation of all or part of the parklet in emergency situations.

(g) The City of New Orleans, its officers, agents, or any private utility company operating pursuant to a franchise granted by the city council and their officers, agents, or employees, shall not be responsible for parklet components relocated during emergencies.

(h) Issuance of a parklet permit does not grant, convey, or infer any vested right to the use of the public right-of-way area by the permittee nor does it constitute a deed, grant of easement, or servitude by the city. The city retains the right to revoke or deny the issuance or renewal of a parklet permit for noncompliance with the provisions of this division, the City Code, or the Comprehensive Zoning Ordinance.

(i) The public right-of-way shall not be painted, modified, or altered in any way without prior written approval of the director of the department of public works.

(j) The city and/or its agents may schedule general cleaning and maintenance operations. If such work is scheduled, the city and/or its agents shall give notification of its scheduled cleaning times in advance of such operations to all parklet permittees. Each permittee in the affected area shall remove all portions of the parklet so that they do not inhibit the scheduled cleaning, repair, and/or maintenance operations.

(k) Permittee is wholly responsible for the proper maintenance and use of any permitted parklet use, and shall defend, indemnify, and hold harmless the city from all actions, claims, costs, damages, and expense to which the city may be subject by reason of any injury or alleged injury to any person or property resulting or alleged to result from such parklet use. The owner shall pay all sums so recovered against the city in any suit on account of such alleged injuries to which the city may be made a party, together with all such costs, damages and expenses as may be suffered by the city, all in a manner as to hold the city harmless from all such actions or claims.

(l) The permittee is wholly responsible for repairs and alterations to parklets as needed. (M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-599. Fees.

(a) Upon initial submission of an application for a parklet permit, a non-refundable application fee of $250.00 shall be remitted to the department of safety and permits.

(b) Fees for new issuance or renewal of parklet permits shall be assessed in accordance with the following schedule, which shall be sufficient to administer and enforce the regulations of this program and to compensate the city for use of public property:

(1) *Initial issuance fee per below:*

a. Parklet issuance fee of $400.00.

b. Parklet right-of-way usage fee: Through December 31, 2024, the parklet right-of-way usage fee shall be waived for any establishment seeking its initial parklet permit. This waiver shall not apply to any establishment seeking a renewal of its parklet permit.

1. Metered locations in the area bounded by the Mississippi River, Calliope Street, Earhart Boulevard, S. Claiborne Avenue, Canal Street, N. Rampart Street, Joseph Guillaume Place, St. Claude Avenue, and Franklin Avenue, inclusive of both sides of bounding streets: $31.50 per square foot.

2. Unmetered locations in the area bounded by the Mississippi River, Calliope Street, Earhart Boulevard, S. Claiborne Avenue, Canal Street, N. Rampart Street, Joseph Guillaume Place, St. Claude Avenue, and Franklin Avenue, inclusive of both sides of bounding streets: $21.00 per square foot.

3. Metered locations in all other areas of the city: $21.00 per square foot.
4. Unmetered locations in all other areas of the city: $10.50 per square foot.

(2) *Annual renewal fees per below:*

a. Parklet renewal fee of $250.00.

b. Parklet right-of-way usage fee:

1. Metered locations in the area bounded by the Mississippi River, Calliope Street, Earhart Boulevard, S. Claiborne Avenue, Canal Street, N. Rampart Street, Joseph Guillaume Place, St. Claude Avenue, and Franklin Avenue, inclusive of both sides of bounding streets: $31.50 per square foot.
2. Unmetered locations in the area bounded by the Mississippi River, Calliope Street, Earhart Boulevard, S. Claiborne Avenue, Canal Street, N. Rampart Street, Joseph Guillaume Place, St. Claude Avenue, and Franklin Avenue, inclusive of both sides of bounding streets: $21.00 per square foot.
3. Metered locations in all other areas of the city: $21.00 per square foot.
4. Unmetered locations in all other areas of the city: $10.50 per square foot.

(c) For purposes of calculating the fees in subsection (b), the length of a parklet is measured as the space occupied by the parklet structure and does not include the two-foot offsets on either end of the parklet structure.

(d) Parklet permit fees shall be payable at the time of permit issuance or renewal and are non-refundable in the event of suspension, revocation, or surrender of the parklet permit during the term of validity.

(e) Any change to the design, such as any dimensional or material changes, of the parklet structure currently issued a parklet permit outside of a renewal period shall constitute a new parklet that requires a new parklet permit subject to all initial fees.

(M.C.S., Ord. No. 29064, § 1, 6-23-22; M.C.S., Ord. No. 29862, § 1, 3-21-24)

Sec. 146-600. Penalties.

Alleged violations of this section may be submitted to the department of safety and permits for review and investigation. Any violation of this division and/or the correlating provisions in the Comprehensive Zoning Ordinance may subject a violator to any remedy, legal or equitable, available to the city. Remedies include but are not limited to: revocation or suspension of the parklet permit, daily fines, property liens, and/or referral to the alcoholic beverage control board. Hearings for violations of this division or the Comprehensive Zoning Ordinance shall be conducted in accordance with Chapter 6, Article II of this Code.

(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Sec. 146-601. Denial, revocation, or suspension of permits.

(a) The director of the department of safety and permits may deny an application for a parklet permit if, in the investigation of the application, it is determined:

(1) That the proposed parklet does not or cannot meet the standards of this division;

(2) That the proposed parklet does not or cannot meet the standards of the Comprehensive Zoning Ordinance; or,

(3) Upon recommendation of denial from the director of the department of public works, that the location is unsuitable for commercial use on the public right-of-way due to pedestrian congestion, traffic, existing obstructions on the sidewalk and/or public right of way, or any other reason that would result in an unsafe or substandard condition.

(b) The director of the department of safety and permits may administratively suspend or revoke a parklet permit for failure to abide by and maintain compliance with any standard of this division or the Comprehensive Zoning Ordinance relative to operation of the parklet. Operation of a parklet during a period of administrative suspension shall constitute separate grounds for revocation.

(c) In the case of revocation, the person or business entity shall be ineligible to receive another parklet permit for a period of two years from the date of such revocation.

(d) Any aggrieved party may appeal a parklet permit denial, issuance, suspension, or revocation, or the failure to deny, issue, suspend, or revoke such permit, to the board of zoning adjustments, pursuant to Home Rule Charter section 5-408(2)(b).

(e) Nothing herein shall limit the ability of the alcoholic beverage control board to order the suspension or revocation of a parklet permit, or to limit the hours and uses provided in this division, as part of remedial sanctions limiting an alcoholic beverage outlet's use of the premises, pursuant to section 10-160(b).
(M.C.S., Ord. No. 29064, § 1, 6-23-22)

Secs. 146-602—146-610. Reserved.

ARTICLE VII. PUBLIC MONUMENTS

Sec. 146-611. Removal from public property.

(a) Monuments, statues, plaques, or other structures, erections, or works of art commemorating an event or individual shall be removed from outdoor display on public property when required by and in accordance with the provisions of this section.

(b) On its own motion or upon presentation of a request of an elector of the city, the council may conduct a hearing to determine whether or not any monument, statue, or similar thing honoring or commemorating any person or event that is located on property owned or controlled by the city should be removed from public outdoor display. The council may, by ordinance, cause the removal of the monument, statue, or other thing located outdoors on city property covered by the provisions of this section upon a finding that the thing constitutes a nuisance in that:

(1) The thing honors, praises, or fosters ideologies which are in conflict with the requirements of equal protection for citizens as provided by the constitution and laws of the United States, the state, or the laws of the city and gives honor or praise to those who participated in the killing of public employees of the city or the state or suggests the supremacy of one ethnic, religious, or racial group over any other, or gives honor or praise to any violent actions taken wrongfully against citizens of the city to promote ethnic, religious, or racial supremacy of any group over another;

(2) Has been or may become the site of violent demonstrations or other activities that may threaten life or property; and

(3) Constitutes an expense for maintenance or the provision of security on a recurring basis that is unjustified when weighed against the historical or architectural significance, if any, of the thing and/or the merits of or reasons for outdoor display of the thing.

(c) In any hearing conducted pursuant to this section, the council shall solicit the recommendations of the city planning commission when required by the City Charter and comments and recommendations of the historic district landmarks commission, the Vieux Carré Commission (if applicable), other government or private historical offices or societies, the chief administrative officer, the city attorney, the superintendent of police, and the director of the department of property management. In any such hearing, the council shall also provide for the submission of comments and testimony by the public. Prior to any such hearing, the council shall request that public hearings be conducted

by and recommendations obtained from the human relations commission or other appropriate agencies.

(d) Following a hearing, the council may by ordinance declare the monument, statue, or other thing covered by the provisions of this section a nuisance and may provide for the removal of the thing from outdoor public display. The thing removed may then be displayed indoors at an appropriate facility, such as a museum or stored, donated (if it has no monetary value) or otherwise disposed of in accordance with provisions of law.

(e) Whenever in the opinion of the city attorney removal of a thing is required by an ordinance of the council but such removal would apparently violate or conflict with the provisions of applicable federal or state law or a judgment or order entered by a federal or state court, the city attorney shall notify the city council and file an appropriate action or proceeding in an agency or court of competent jurisdiction seeking a decision, declaration or order compelling or permit-

ting such removal. The obligation of removal imposed by the ordinance shall be suspended until a favorable definitive judgment is obtained.

(f) Notwithstanding any provision of this section to the contrary, the city council may by motion compel the immediate removal or relocation of any monument, statue, plaque, or other structure, erection, or work of art honoring any event or individual from property owned or controlled by the city.
(Code 1956, § 61-140; M.C.S., Ord. No. 28453, § 1, 8-20-20)

Secs. 146-612—146-645. Reserved.

ARTICLE VIII. FRENCH MARKET*

Sec. 146-646. Franchise.

A franchise has been granted to the French Market Corporation to operate the French Market pursuant to the franchise and ordinance numbers M.C.S., Ord. No. 4,392, M.C.S., Ord. No. 4,745, M.C.S., Ord. No. 5,061, M.C.S., Ord. No. 5,175, M.C.S., Ord. No. 14,626, as amended.

Secs. 146-647—146-680. Reserved.

ARTICLE IX. HISTORICAL PHARMACY MUSEUM

Sec. 146-681. Purpose.

The land and building located at 514 Chartres Street in the second municipal district of the city was donated to the city by Robert S. Maestri by an authentic act of donation on December 31, 1937, and duly recorded in C.O.B. 497 Folio 175, in the records of the conveyance office for the parish. Subsequently, by Ordinance Number 15,883 Commission Council Series, the historical pharmaceutical museum commission was established for the purpose of conducting a public museum for the display of relics, documentation, materials and methods of pharmacy, both ancient and modern and the property at 514 Chartres Street has since housed the New Orleans Historical Pharmaceutical Museum. It is hereby found and determined that the historical pharmaceutical museum is a unique, important, and valuable asset to the Vieux Carré and the city as a whole and provides historical, scientific, and educational information to residents of the city and to visitors. It is the purpose of this article to provide a mechanism for the continuation and enhancement of the historical pharmacy museum.
(Code 1956, § 29A-1)

Sec. 146-682. Advisory committee.

In accordance with section 4-104 of the home rule charter of the city, the mayor should annually appoint, subject to the approval of the city council, an historical pharmacy museum advisory committee to be composed of the director of the department of property management or the director's authorized representative and 14 members selected in accordance with the following requirements:

(1) Five members from the Friends of Historical Pharmacy, Ltd.

(2) One member from the faculty of the Xavier School of Pharmacy.

(3) One member from the faculty of the University of Northeastern Louisiana School of Pharmacy.

(4) Seven registered pharmacists who are city residents who are appointed by each member of the city council provided that any person operating a pharmacy in the city lawfully appointed to the committee prior to April 7, 1988, may continue to serve on the committee and may be reappointed notwithstanding the residency requirement contained in this subsection.

(Code 1956, § 29A-2)

Sec. 146-683. Responsibilities of committee.

The historical pharmacy museum advisory committee shall monitor the preservation, collec-

*__Cross references—__Alcoholic beverage establishments near the French market, § 10-286 et seq.; markets, § 30-881 et seq.

__State law reference—__Power of municipalities to regulate and establish markets, R.S. 40:12.41.

tion, display, and maintenance of the New Orleans Pharmacy Museum, its relics, documents, materials, and methods of both ancient and modern pharmacy; shall receive reports on museum operations from the government department or contracted party responsible for its management; and shall make appropriate recommendations to the managing authority, the city council.
(Code 1956, § 29A-3)

Sec. 146-684. Management of museum.

The management of the New Orleans Pharmacy Museum by other than the city shall be by a cooperative endeavor agreement with the Friends of Historical Pharmacy, Ltd., or other nonprofit, tax-exempt entity and said contract shall be submitted to the city council for its approval after review by the department of property management prior to its execution by the mayor. The museum premises shall not be used for any commercial purposes, either directly or indirectly, or as a place of residence or lodging, except by a caretaker and shall not be used or occupied for any other purpose without the approval of the city council having acted only subsequent to receiving a report thereon from the historical pharmacy museum advisory committee.
(Code 1956, § 29A-4)

Sec. 146-685. Admission fees.

The director of the department of property management shall charge for admission to the Historical Pharmaceutical Museum a fee for each adult or child—$0.25.
(Code 1956, § 63-39)

Secs. 146-686—146-720. Reserved.

ARTICLE X. OUTDOOR HALL OF FAME

Sec. 146-721. Dedication of ground.

The neutral ground of Canal Boulevard, between the limits of City Park Avenue and Robert E. Lee Boulevard, is hereby dedicated as a memorial parkway to be known as an Outdoor Hall of Fame to perpetuate the memory of accomplishments of those of our citizens who have been outstanding in social, civic or economic welfare.
(Code 1956, § 43-60)

Sec. 146-722. Dedication subject to cancellation.

The dedication mentioned in section 146-721, or any part thereof, may at the discretion of the council be revised or canceled.
(Code 1956, § 43-61)

Sec. 146-723. Expense to be authorized by council.

No expense in connection with the dedication mentioned in this article shall be incurred in the name of the city without the authority of the council.
(Code 1956, § 43-62)

Secs. 146-724—146-750. Reserved.

ARTICLE XI. MUNICIPAL AUDITORIUM AND THEATRE FOR THE PERFORMING ARTS

Sec. 146-751. Purpose.

It is hereby found and determined that the municipal auditorium and the theatre for the performing arts, constituting a cultural center within the boundaries of Armstrong Park, are critical to the cultural and social activities in our community and that such facilities are essential to promoting economic development by attracting new businesses and stimulating tourism. Additional funding is needed to properly maintain the municipal auditorium and the theatre for the performing arts and to provide improvements and amenities to those buildings for the patrons of events at the cultural center. The purpose of this article is to provide a stable source of revenue for maintenance and improvement of the buildings through the imposition of a service

charge on tickets sold to events at the municipal auditorium and the theatre for the performing arts.
(Code 1956, § 63-42)

Cross reference—Cultural center improvement and maintenance fund established for the surcharge imposed on tickets sold to events at the municipal auditorium and the theatre of the performing arts, § 70-191 et seq.

Sec. 146-752. Surcharge on tickets—Imposed.

There is hereby imposed a surcharge in the amount of $1.00 per ticket on each ticket sold on or after January 1, 2004, to an event for which tickets are sold through Ticketmaster or comparable outlets held at the municipal auditorium or the theatre for the performing arts within the boundaries of Armstrong Park in the city. The director of the department of finance may promulgate rules for the collection of the surcharge. All revenues derived from collection of the surcharge imposed herein shall be accounted for separately.
(Code 1956, § 63-43; M.C.S., Ord. No. 21289, § 1, 10-16-03)

Sec. 146-753. Same—When due and payable.

The surcharge levied by this article shall be due and payable in advance at the time when the purchaser of tickets subject to the surcharge purchases the ticket or tickets. The person selling the tickets subject to the surcharge shall be charged with the duty to collect and remit the surcharge to the department of finance.
(Code 1956, § 63-44)

Sec. 146-754. Same—Collection by seller mandatory.

The surcharge authorized in this article shall not be assumed by the seller, and it shall be mandatory on the seller to collect such surcharge from the purchaser of the tickets subject to the surcharge for remittance to the department of finance of the city.
(Code 1956, § 63-45)

Sec. 146-755. Same—Collection of excess prohibited.

Whoever advertises or collects in the guise of a ticket surcharge a sum in excess of the surcharge actually due is guilty of a misdemeanor.
(Code 1956, § 63-46)

Sec. 146-756. Same—Reports and remittance required.

Every person subject to the terms of this article shall report to the department of finance of the city an accounting of the number of tickets sold to an event subject to the surcharge and remit the amount due the city by certified check, postal or express money order or cash. The report rendered to the department shall be on forms prescribed and furnished by the department and shall be signed by the person remitting the surcharge or his duly authorized representative. The report shall include a statement of the total number of tickets printed or manufactured, the number and value of tickets distributed gratuitously or for a reduced price and the number not distributed or used. Such signature shall constitute a warrant on the part of the person signing the report that he has read and examined it and that, to the best of his knowledge and belief, the statement and figures therein contained are true, correct and complete.
(Code 1956, § 63-47)

Sec. 146-757. Same—Inspections.

In order that the department of finance may have an additional means of checking and verifying the accuracy of such reports, all the records, books and other documents of those making such reports as required by section 146-756 shall be open for inspection by the department of finance at all reasonable hours for a period consisting of the calendar year in which the surcharge becomes due and of the three subsequent calendar years.
(Code 1956, § 63-48)

Sec. 146-758. Same—Disposition of revenues.

(a) The department of property management shall annually develop a plan for expenditure of the funds for the improvement and maintenance

of the cultural center, which plan shall be submitted to the chief administrative officer and to the city council as part of the mayor's annual operating budget submission. It is the intent of this article that funds derived from the surcharge shall constitute allocations for the municipal auditorium and theatre for the performing arts in addition to the amounts allocated in the 1989 operating budget.

(b) Any funds derived from this surcharge which remain uncommitted at the year's end shall be reappropriated in the following fiscal year for improvements and/or maintenance for the municipal auditorium and/or the theatre for the performing arts.
(Code 1956, § 63-50)

Sec. 146-759. Same—Penalties.

If any surcharge under this article is not collected and remitted as prescribed in this article, it shall become delinquent; and the surcharge debtor, in addition to being liable for the surcharge due plus interest, shall be subject to penalties of 20 percent on the amount of the surcharge and interest or $500.00, whichever is greater, and ten percent of the attorney's fees on the surcharge, interest and penalty in all cases wherein an attorney is required to assist in the collection. As a further penalty, any person signing and filing a report subsequently found to be grossly incorrect, false or fraudulent or violating any of the other provisions of this article shall, upon conviction, be guilty of a misdemeanor.
(Code 1956, § 63-49)

ARTICLE XII. STREET RENAMING AND HONORARY DEDICATIONS*

Sec. 146-760. Street renaming.

A request for a street renaming on the official map of the city must be instituted by city council motion and reviewed by the city planning commission pursuant to its rules, policies and procedures before being approved by ordinance.
(M.C.S., Ord. No. 29764, § 1, 12-14-23)

Sec. 146-761. Fragmentation prohibited.

No intermediate section of any street may be renamed in a manner than results in the fragmentation of a single street into two or more noncontiguous sections with the same name, unless the renamed section is physically separated or obstructed from other sections of the same street by structures, parks, canals, interstates, rivers, bayous, or other significant objects, or as a result of shifts in the city's street grid pattern that causes a portion of a street to be clearly disconnected from the remainder of the street.
(M.C.S., Ord. No. 29764, § 1, 12-14-23)

Sec. 146-762. Dedication of honorary intersections.

(a) The city council may, by motion, designate any intersection in the city to honor any natural person or non-profit organization or association that has made significant contributions to the historical or cultural landscape of the city. The naming of an intersection for a private company or political organization is prohibited.

(b) The designation of an honorary intersection shall be denoted by the installation of distinct signage at one or more prominent locations within or adjacent to the intersection in a manner that does not impair traffic or pedestrian safety or create confusion between the honorary dedication and the names of the intersecting streets.

(c) The city council may, by motion, revoke the dedication of an honorary intersection or direct the removal any related signage.

(d) The dedication of honorary intersections in the Vieux Carré is prohibited.

(e) No councilmember may serve as the lead sponsor of more than two honorary dedications pursuant to this section in a calendar year.
(M.C.S., Ord. No. 29764, § 1, 12-14-23; M.C.S., Ord. No. 30299, § 1, 4-10-25)

*__Editor's note—__M.C.S., Ord. No. 29764, § 1, adopted Dec. 14, 2023, amended Art. XII in its entirety to read as herein set out. Former Art. XII, §§ 146-759.5—146-765, pertained to street names, and derived from M.C.S., Ord. No. 27734, § 1, 4-19-18; M.C.S., Ord. No. 29283, § 1, 1-5-23.

Secs. 146-763—146-765. Reserved.

ARTICLE XIII. ENCROACHMENTS UPON CITY PROPERTY

Sec. 146-766. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Air rights means the exclusive right to the use of a defined portion of the air space above the earth's surface that is connected with part of a particular tract of land.

Class I—Minor encroachment means outward swinging doors, projecting signs—Other than A-frame signs and similar displays governed by section 146-531 et seq., and other similar structures that minimally intrude onto or over the city's property and are easily moved or repositioned.

Class II—Partially restrictive encroachment means awnings with open sides or other similar items which are removable in nature.

Class III—Restrictive encroachment means major structures tending to form architectural elements of an adjacent building, including balconies, galleries, porches, overhangs, foundations, steps, railings, and landings.

Class IV—Exclusive encroachment means fenced in or enclosed areas with no public access but that do not otherwise restrict access to the public sidewalk or street.

Class V—Permitted encroachment means raised sidewalks, handicap ramps, bicycle racks, bicycle stations, benches, planters, EV charging stations, and sidewalk cafés.

Class VI—Pedestrian walkway means all bridges, elevated walkways, and skyways built for pedestrians, and all other passageways for pedestrians on, above or beneath any street, alley or other public way in the city, provided, however, the provisions of this article shall not apply to sidewalks at ground level.

Class VII—Prohibited encroachment means a type of encroachment which will not be considered by application as provided in section 146-769 or which is deemed not to meet the application criteria as outlined in section 146-776.

Lease for purposes of this section means a contract establishing personal rights and obligations between the city and lessee and may constitute an incorporeal immovable if entered into in conjunction with the use and enjoyment of immovable property.

Servitude for the purposes of this section, means a predial servitude acquired by an adjacent property owner for the land occupied by an encroachment upon payment of compensation for the value of the servitude, or a limitation on the city's ownership of the public right-of-way ownership established for the benefit of a particular person or persons.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-767. Express authorization required.

The encroachment of any structure in, onto, upon, or over city property shall be unlawful without express written authorization by the city as provided herein. The granting of permission to construct, install, or place an encroachment on public property is a privilege, not a right, and requires the payment of fair market value for the use of the property.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-768. Application process.

All applications for encroachments defined herein shall be submitted to the department of safety and permits along with an application fee of:

(1) *Class I—Minor encroachment:* $75.00;

(2) *Class II—Partially restrictive encroachment:* $475.00;

(3) *Class III—Restrictive encroachment:* $475.00;

(4) *Class IV—Exclusive encroachment:* $1,400.00;

(5) *Class V—Permitted encroachment:* In accordance with the applicable fees according to the department of safety and permits building permit fee schedule or department of public works permit fee schedule, whichever is applicable;

(6) *Class VI—Pedestrian walkway:* $1,675.00.

The ultimate determination of appropriate application classification shall be by the director of the department of property management or his/her authorized designee.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-769. Prohibited applications for encroachments on city property.

The following encroachments are prohibited by the city and will not be considered by application:

(1) Any enclosed living or livable area (living space, display windows, bay windows);

(2) Stormwater management Best Management Practices, as defined in Section 121.4 of the Building Code;

(3) Private equipment (including, but not limited to, fuel tanks, dumpsters, HVAC equipment, outward swinging gates or fencing, and generators);

(4) Encroachments of any kind onto the city's dedicated parks; or

(5) All other encroachments that are deemed not to meet the application criteria as outlined in section 146-776.

(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-770. Class I—Minor encroachment.

(a) If an application is deemed by the department of property management to involve a minor encroachment, said application shall be forwarded to the department of public works, and CPC/HDLC/VCC if applicable, for review and approval.

(b) The review shall ensure that the encroachment does not, in any way, impede, interfere, or obstruct the use and enjoyment of city property or damage city property as provided in section 146-776.

(c) If the encroachment is in a historic district, additional evaluation criteria shall be as provided by applicable law.

(d) The encroachment must be able to be removed.

(e) If all reviewing departments approve the application request pursuant to the criteria provided in this article the applicant shall execute a city approved hold harmless agreement.

(f) Unless and until the hold harmless agreement is executed by the applicant, no permits will be issued for the municipal address(es) or lots associated with the encroachment.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-771. Lease requirement: Class II—Partially restrictive encroachment.

(a) If an application is deemed by the department of property management to involve a partially restrictive encroachment, said applica-

tion shall be reviewed by the encroachments working group as provided in section 146-780 at the next practical open meeting.

(b) The review shall ensure that the encroachment does not, in any way, impede, interfere, or obstruct the use and enjoyment of city property or damage city property as provided in section 146-776.

(c) If the encroachment is in a historic district, additional evaluation criteria shall be as provided by applicable law.

(d) The encroachment must be able to be removed.

(e) If all reviewing departments approve the application request pursuant to the criteria provided in this article, the partially restrictive encroachment may be authorized via lease of air rights agreement for fair market value.

(f) Prior to the drafting of the lease agreement, the applicant will be required to submit:

(1) Adequate proof of insurance in the form of an ACCORD form or equivalent sufficient document evidencing required additional insured endorsement in favor of the City of New Orleans;

(2) A tax clearance certificate;

(3) Proof of good standing with Louisiana Secretary of State;

(4) Authorization for the signatory acting on behalf of applicant if it is an entity;

(5) First annual payment; and

(6) A payment for recording of any required agreement.

(g) Unless and until the lease agreement is executed by the applicant in a format acceptable to the city, no permits will be issued for the municipal address(es) or lots associated with the encroachment.

(h) An authorizing ordinance is required by law. Unless and until the lease agreement is executed by the applicant, the division of real estate will not submit it to city council for an authorizing ordinance.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-772. Servitude requirement: Class III—Restrictive encroachment.

(a) If an application is deemed by the department of property management to involve a restrictive encroachment, said application shall be reviewed by the encroachments working group as provided in section 146-780 at the next practical open meeting.

(b) The review shall ensure that the encroachment does not, in any way, impede, interfere, or obstruct the use and enjoyment of city property or damage city property as provided in section 146-776.

(c) A field inspection and structural report regarding the condition of the encroachment, certified (stamped and signed) by a Louisiana licensed professional civil engineer shall be submitted to the city on an annual basis beginning on the first day of the year after the completion of the improvements. The report should be comprehensive and describe damages identified by inspections and repairs made to mitigate damages. The report shall have a clearly stated conclusion based on findings on whether the encroachment is safe to remain for the year in question or not. The encroachment should be able to be removed in accordance with the provisions of the servitude and/or lease agreement. If the encroachment is in a historic district, additional evaluation criteria shall be as provided by applicable law.

(d) The encroachment must be able to be removed.

(e) If all reviewing departments approve the application request pursuant to the criteria provided in this article, the partially restrictive encroachment may be authorized via servitude agreement for fair market value and the resulting annual payment shall be subject to upward adjustment of ten percent, from the previous year's sum, following the expiration of every fifth year throughout the useful life of the encroachment.

(f) Prior to the drafting of the servitude agreement, the applicant will be required to submit:

(1) Adequate proof of insurance in the form of an ACCORD form, or and equivalent

sufficient document, evidencing required additional insured endorsement in favor of the City of New Orleans;

(2) A tax clearance certificate;

(3) Proof of good standing with Louisiana Secretary of State;

(4) Authorization for the signatory acting on behalf of applicant if it is an entity;

(5) First annual payment; and

(6) A payment for recording of any required agreement.

(g) Unless and until the servitude agreement is executed by the applicant in a format acceptable to the city, no permits will be issued for the municipal address(es) or lots associated with the encroachment.

(h) An authorizing ordinance is required by law. Unless and until the servitude agreement is executed by the applicant, the division of real estate will not submit it to city council for an authorizing ordinance.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-773. Lease requirement: Class IV—Exclusive encroachment.

(a) If an application is deemed by the department of property management to involve an exclusive encroachment, said application shall be reviewed by the encroachments working group as provided in section 146-780 at the next practical open meeting.

(b) The review shall ensure that the encroachment does not, in any way, impede, interfere, or obstruct the use and enjoyment of city property or damage city property as provided in section 146-776.

(c) If the encroachment is in a historic district, additional evaluation criteria shall be as provided by applicable law.

(d) The encroachment should be able to be removed.

(e) If all reviewing departments approve the application request pursuant to the criteria provided in this article, the exclusive encroachment may be authorized via a lease agreement for fair market value and the resulting annual payment shall be subject to upward adjustment of ten percent, from the previous year's sum, following the expiration of every fifth year throughout the useful life of the encroachment.

(f) Prior to the drafting of the lease agreement, the applicant will be required to submit:

(1) Adequate proof of insurance in the form of an ACCORD form, or an equivalent sufficient document, evidencing required additional insured endorsement in favor of the City of New Orleans;

(2) A tax clearance certificate;

(3) Proof of good standing with Louisiana Secretary of State;

(4) Authorization for the signatory acting on behalf of applicant if it is an entity;

(5) First applicable payment.

(6) A payment for recording of any required agreement.

(g) Unless and until the lease agreement is executed by the applicant in a format acceptable to the city, no permits will be issued for the municipal address(es) or lots associated with the encroachment.

(h) An authorizing ordinance is required by law. Unless and until the lease agreement is executed by the applicant, the division of real estate will not submit it to city council for an authorizing ordinance.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-774. Permit requirement: Class V—Permitted encroachment.

If an application is deemed by the department of property management to involve a permitted encroachment, said application shall be reviewed by the department of public works and/or department of safety and permits. If all reviewing departments approve the application request pursuant to the criteria provided in this article, the permitted encroachment may be issued a permit for that specific encroachment only.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-775. Lease requirement: Class VI—Pedestrian walkway.

(a) If an application is deemed by the department of property management to involve a pedestrian walkway, said application shall be reviewed by the reviewed by the encroachments working group as provided in section 146-780 at the next practical open meeting.

(b) Any new applicant must be a hospital or educational institution.

(c) Any new applicant must provide:

(1) A demonstration of how at-grade crossing is not adequate through a traffic study completed by a licensed transportation engineer;

(2) Provide a plan for use (that will actually eliminate pedestrian at-grade crossing);

(3) Proof of financial/budgetary capacity to carry all required insurance on the proposed pedestrian walkway as determined by the city's risk manager for the walkway's useful life.

(4) A field inspection and structural report regarding the condition of the encroachment, certified (stamped and signed) by a Louisiana licensed professional civil engineer shall be submitted to the city on an annual basis beginning on the first day of the year after the completion of the improvements. The report should be comprehensive and describe damages identified by inspections and repairs made to mitigate damages. The report shall have a clearly stated conclusion based on findings on whether the encroachment is safe to remain for the year in question or not. The encroachment should be able to be removed in accordance with the provisions of the servitude and/or lease agreement.

(d) If all reviewing departments approve the application request pursuant to the criteria provided in this article, the exclusive encroachment may be authorized via a lease agreement for fair market value subject to upward adjustments based on a formula negotiated by the parties throughout the useful life of the encroachment.

(e) Prior to the issuance of the lease agreement, the applicant will be required to submit:

(1) Adequate proof of insurance in the form of an ACCORD form or an equivalent sufficient document, evidencing required additional insured endorsement in favor of the City of New Orleans;

(2) A tax clearance certificate;

(3) Proof of good standing with Louisiana Secretary of State;

(4) Authorization for the signatory acting on behalf of applicant if it is an entity;

(5) First applicable payment.

(6) A payment for recording of any document.

(f) Unless and until the lease agreement is executed by the applicant, no permits will be issued for the municipal address(es) or lots associated with the encroachment.

(g) An authorizing ordinance is required by law. Unless and until the lease agreement is executed by the applicant, the division of real estate will not submit it to city council for an authorizing ordinance.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-776. Criteria for issuance—All applications.

In reviewing encroachment applications, all reviewing departments shall evaluate the application pursuant to the following criteria. If any department determines the encroachment implicates one of the below factors, a denial by the department of property management shall be issued.

(1) The encroachment creates an unsafe condition or poses a danger to the public, including, but not limited to: impedes or restricts sight lines, impedes normal access, obstructs vision of traffic or pedestrians, or creates operational conflicts or creates hazards.

(2) The encroachment inappropriately diminishes the public's right of usage, including, but not limited to: impeding the public's passage and/or access along a travelled portion of a road, or interfering or obstructing normal pedestrian or bicycle use.

(3) The encroachment enlarges an existing non-conforming structure.

(4) The encroachment adversely affects municipal operations, work, plans, efforts or initiatives of the city to maintain municipally owned lands or undertake capital works projects.

(5) The encroachment interferes with any utility or other similar installation located on city owned lands including underground infrastructure.

(6) The encroachment creates a situation that is contrary to any municipal law, policy or resolution or any state or federal regulation or legislation.

(7) The encroachment is constructed in such a way that removing it would cause structural damage or fire safety to city property.

(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-777. Enforcement.

If an unpermitted encroachment is identified, the city may require the encroachment to be removed and the land returned to its original state to the satisfaction of the city. All costs related to the removal of the encroachment shall be at the encroaching party's expense. If the city requires the land for municipal purposes including, but not limited to, the construction of capital projects or installation of services, the encroaching party shall be notified of the construction timeline and the encroachment shall be removed either by encroaching party in a timely manner. The cost to remove an encroachment that has not been approved by the city may be enforced against the encroaching party via the adjudication process in chapter 6 of the City Code.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-778. Encroachments in historic districts—Additional review.

Existing historic encroachments within HDLC, CBDHDLC or VCC jurisdiction, or existing historic encroachments outside HDLC, CBDHDLC or VCC jurisdiction whose historic contribution is verified by HDLC, CBDHDLC or VCC, may remain without a permit, lease, or servitude agreement - as the case may be - or the fair market value payment required, provided that these historic encroachments contribute to New Orleans' distinct character and their preservation serves a public purpose. For purposes of this subpart, existing historic encroachments may include the reconstruction of historic encroachments that were previously removed upon verification by the HDLC, CBDHDLC, or VCC or by the executive director of the HDLC or VCC of its previous historic existence and contributing nature, provided that any subsequent architectural alterations to previously verified encroachments governed by this subpart shall be subject to prior approval by HDLC, CBDHDLC, VCC or by the executive director of the HDLC or VCC.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-779. Prescription inapplicable.

No property owner with an encroachment on, in, or over city property may claim by prescription title to city owned property. City owned property is a public thing dedicated to public use.
(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Sec. 146-780. Encroachments working group.

(a) *Purpose.* It is necessary that the mayor, city departments, and the city council are able to understand and assess the effects a proposed encroachment could have on (1) the primary use of public right-of-way to facilitate free movement of pedestrians and traffic; (2) the use of public right-of-way for drainage, sewer, water, electricity and other utilities; and (3) on other property owners, if any. For these reasons, an encroachments working group shall be formed to address proposed encroachments on the public right-of-way.

(b) *Formation.* The encroachments working group will be formed to meet and advise on such technical issues, thereby gaining the mutual benefit of a coordinated opinion, which would work in the best interest of the city and the general public as a whole. The purpose of the encroachments working group is to eliminate duplicated efforts, which occur when a proposed project is sent to various departments for comment on an individual basis, and to assist the public in determining the necessary department/agencies to meet with to resolve any technical problems that may need to be discussed/solved prior to consideration by the city council. Such problems may include any compromise of the public purpose of the right-of-way or unreasonable interference with another property owner's right of access.

(1) Membership:

a. *[Voting members.]* Voting members shall include the executive directors of the following departments/agencies or their designees:

1. Department of property management — Division of real estate and records
2. City planning commission
3. Department of public works
4. Sewerage and water board
5. Department of safety and permits
6. Sanitation department
7. Department of parks and parkways
8. New Orleans Recreation Department (if applicable)
9. New Orleans Fire Department
10. Historic district landmarks commission (if applicable)
11. Vieux Carré Commission (if applicable)
12. Entergy

b. *Non-voting members.* All other city departments/agencies and allied agencies (i.e. Levee Board, Port, DDD, etc.) are encouraged to attend encroachments working group meetings, especially when there are items which may directly impact their agencies. They will be welcome to voice their concerns and engage in discussion of the agenda items but will not be voting members.

(2) The encroachments working group shall meet to address issues of technical compliance with the rules, regulations, and laws governing the various city departments/agencies at stages early enough to make timely recommendations to the city council, or the agency/department with appropriate jurisdiction, where required.

a. *Meeting schedule:* The encroachments working group shall hold regular meetings enabling the review of all projects within its purview in a timely manner. The schedule will be set so as to avoid conflicts with the official meeting of each department involved, if possible.

b. *Conducting meetings:*

1. Parliamentary procedure will prevail as per Robert's Rules of Order.
2. Attendance will be recorded;
3. An agenda with maps, drawings, surveys, plans, pictures, etc., will be sent to all working group voting members in advance, briefly describing the proposed projects to be reviewed.
4. Minutes of the meeting will be recorded, and copies distributed to all committee members in a timely period;
5. All meetings of the encroachments working group shall be open to the public, with time allotted for public input and/or comment. Such comment may be limited in duration to no more than two minutes.

c. *Election of chair and vice chair:* Election of the encroachments working group chair and vice chair shall occur annually during the month of January at one of the two regularly scheduled meetings and shall require a majority vote of the voting members present at that meeting.

(M.C.S., Ord. No. 28796, § 1, 10-7-21)

Secs. 146-781—146-785. Reserved.

ARTICLE XIV. CRESCENT CITY CONNECTION BRIDGE LIGHTING

Sec. 146-786. Generally.

The city, through a department or operating unit designated by the chief administrative officer, may implement a program regulating displays of illumination on the Crescent City Connection Bridge and the purchase of lighting displays by third parties in accordance with this article.

(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-787. Application process and approval.

The city may authorize lighting displays on the Crescent City Connection at the request of a third party upon approval of the responsible department and upon payment of the program fee established pursuant to this article. The application and approval process, including any required forms, submittals, and submission deadlines, shall be established by the responsible department and published online. Approval shall not be denied, nor any approved display cancelled, based upon a disagreement with the viewpoint of the applicant.

(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-788. Program fee.

The schedule of fees for participation in the bridge lighting program shall be established by the responsible department and published online. The daily fee for bridge lighting displays shall be based on the complexity and cost of creating and implementing the lighting configuration and shall not be less than $1,000.00 per night. nor more than $15,000.00 per night. All fees collected pursuant to this article shall be deposited into the Crescent City Connection Bridge Lighting Fund established in chapter 70, division 56 of this code.

(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-789. Blackout days and use by the city.

(a) The responsible department shall establish a schedule of days on which bridge lighting displays are reserved for lighting displays requested by the city, including displays necessary to comply with existing contractual obligations or to commemorate holidays, matters of local significance, and special events.

(b) The city shall have an absolute right to cancel or reschedule any scheduled lighting program and may substitute a city-initiated lighting display in its place. City-initiated lighting displays shall be subject to the approval of the chief administrative officer. City-initiated displays shall be made at no cost to the city; however, the chief administrative officer, in his or her discretion, may require the transfer of budgeted funds from a requesting department to the Crescent City Connection Bridge Lighting Fund to offset any foregone revenue.

(c) The city shall not circumvent the prohibition against fee waivers by requesting lighting displays on behalf of third parties pursuant to this section, absent an overriding public, economic, or cultural benefit of general applicability.

(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-790. Prohibitions.

The department shall not authorize any custom lighting display that may distract vessel or vehicle bridge traffic.

(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-791. Cancellations and refunds.

(a) Applicants may request cancelation of a purchased lighting display up to 14 days before the first scheduled lighting display date and receive a 50 percent refund of the daily lighting

fee. Cancelations at the request of the applicant occurring less than 14 days before the display date shall not be refunded.

(b) In the event a cancelation or rescheduling at the order of the city, the applicant shall be notified in writing and shall be offered a full refund of program fees or the opportunity to reschedule the lighting display on a different day at no additional charge.
(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-792. Waivers.

The fees imposed pursuant to this article shall not be waived.
(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Sec. 146-793. State exemption.

To the extent required by contract, the State of Louisiana shall be exempt from the fees provided herein.
(M.C.S., Ord. No. 30708, § 2, 7-23-26)

Secs. 146-794—146-795. Reserved.

Chapter 147

SURVEILLANCE TECHNOLOGY AND DATA PROTECTION

Sec. 147-1. Definitions.
Sec. 147-2. Prohibited surveillance technology.
Sec. 147-3. Data sharing and protection.
Sec. 147-4. City contracting.
Sec. 147-5. Consequences of violation.
Sec. 147-6. Severability.
Sec. 147-7. Effective date.

Sec. 147-1. Definitions.

The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated decision systems (also known as "ADS") include any software, system, or process that aims to automate, aid, or replace human decision making. Automated decision systems can include both tools that analyze datasets to generate scores, predictions, classifications, or some recommended actions(s) that are used by agencies to make decisions that impact human welfare and the set of processes involved in implementing those tools.

Cellular communications interception technology, or *cell site simulator* (also known as "Stingrays" or "IMSI Catchers") means any device that intercepts mobile telephony calling information or content, including an international mobile subscriber identity catcher or other virtual base transceiver station that masquerades as a cellular station and logs mobile telephony calling information.

Characteristic tracking system means any software or system capable of tracking people and/or objects based on characteristics such as color, size, shape, age, weight, speed, path, clothing, accessories, vehicle make or model, or any other trait that can be used for tracking purposes, including BriefCam and similar software.

City entity or *city* means any department, agency, attached board or commission of the City of New Orleans.

City official shall mean any person or entity acting on behalf of the city, including any employee, officer, or authorized agent of the City of New Orleans.

Face surveillance or *facial recognition* means an automated or semi-automated process that assists in identifying an individual, capturing information about an individual based on the physical characteristics of an individual's face.

Face surveillance system means any computer software or application that performs face surveillance.

Predictive policing technology means the usage of predictive analytics software in law enforcement to predict information or trends about criminality, including but not limited to the perpetrator(s), victim(s), locations or frequency of future crime. It does not include, for example, software used to collect or display historic crime statistics for informational purposes.

Surveillance means the act of observing or analyzing the movements, behavior, or actions of identifiable individuals.

Surveillance technology means any electronic surveillance device, hardware, or software that is capable of collecting, capturing, recording, retaining, processing, intercepting, analyzing, monitoring, or sharing audio, visual, digital, location, thermal, biometric, behavioral, or similar information or communications specifically associated with, or capable of being associated with, any identifiable individual or group.

(1) "Surveillance technology" includes but is not limited to: cell site simulators; automatic license plate readers; gunshot detection and location hardware and services; biometric surveillance technology, including facial, voice, and gait-recognition software and databases; software designed to monitor social media services; software designed to forecast criminal activity or criminality; electronic toll readers; mobile DNA capture technology; video and audio monitoring or recording technology, such as surveillance cameras, wide-angle cameras, and wearable body cameras; x-ray vans; radio-frequency identification (RFID) scanners; passive scanners of radio networks; long-range Bluetooth and other wireless-scanning devices; surveillance-capable light bulbs or light fixtures; through-the-wall radar or similar imaging technology; tools used to gain unauthorized access to a computer or computer network; and software designed to integrate or analyze data from surveillance technology, including target tracking and predictive policing software.

(2) "Surveillance technology" does not include the following devices or hardware, unless they have been equipped with, or are modified to become or include, a surveillance technology as defined above: routine office hardware, such as televisions, computers, and printers, that is in widespread city use and will not be used for any surveillance-related functions; parking ticket devices (PTDs); manually-operated, non-wearable, handheld digital cameras, audio recorders, and video recorders that are not designed to be used surreptitiously and whose functionality is limited to manually capturing and manually downloading video and/or audio recordings; surveillance devices that cannot record or transmit audio or video or be remotely accessed, such as image stabilizing binoculars or night vision goggles; city databases not intended to store or compile surveillance data; and manually-operated technological devices used primarily for internal city communications and not designed to surreptitiously collect surveillance data, such as radios and email systems.

(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Sec. 147-2. Prohibited surveillance technology.

(a) No city official or city entity shall:

(1) Obtain, retain, possess, access, sell, or use any prohibited surveillance technology or information derived from a prohibited surveillance technology;

(2) Enter into an agreement with any third party for the purpose of obtaining, retaining, possessing accessing, selling, or using, on the public right-of-way or on the city's behalf, a prohibited surveillance technology; or

(3) Issue any permit or enter into any other agreement that authorizes any third party, on the public right-of-way or on the city's behalf, to obtain, retain, possess, access, sell, or use a prohibited surveillance technology or information derived from a prohibited surveillance technology.

(b) Except as otherwise provided in subsections (c), (d), (e), (f), (g) or (h), the following surveillance technologies are prohibited pursuant to subsection (a):

(1) Any face surveillance system;

(2) Cell-site simulator;

(3) Characteristic tracking system; or

(4) Predictive policing technology.

(c) Nothing in this section shall prohibit the New Orleans Police Department ("NOPD") from using evidence relating to the authorized investigation of a specific crime that may have been generated from a face surveillance or characteristic tracking system, so long as such evidence was not generated by, with the knowledge of, or at the request of the NPPD [NOPD].

(d) Nothing in this section shall prohibit NOPD from requesting the use of facial recognition technology in the investigation of the prior occurrence of the following significant crimes as defined in Louisiana Revised Statute [Title] 14, as of the date of the passage of this section.

(1) Solicitation for murder.

(2) First degree murder.

(3) Second degree murder.

(4) Manslaughter.

(5) Aggravated battery.

(6) Second degree battery.

(7) Aggravated assault.

(8) Aggravated or first degree rape.

(9) Forcible or second degree rape.

(10) Simple or third degree rape.

(11) Sexual battery.

(12) Second degree sexual battery.

(13) Aggravated kidnapping.

(14) Second degree kidnapping.

(15) Simple kidnapping.

(16) Aggravated or simple arson.

(17) Aggravated criminal damage to property.

(18) Aggravated or simple burglary.

(19) Armed robbery.

(20) First degree robbery.

(21) Simple robbery.

(22) False imprisonment; offender armed with dangerous weapon.

(23) Assault by drive-by shooting.

(24) Aggravated crime against nature.

(25) Carjacking.

(26) Terrorism.

(27) Aggravated second degree battery.

(28) Aggravated assault upon a peace officer.

(29) Aggravated assault with a firearm.

(30) Armed robbery; use of firearm; additional penalty.

(31) Second degree robbery.

(32) Disarming of a peace officer.

(33) Stalking.

(34) Second degree cruelty to juveniles.

(35) Aggravated flight from an officer.

(36) Battery of a police officer.

(37) Trafficking of children for sexual purposes.

(38) Human trafficking.

(39) Home invasion.

(40) Purse snatching.

(41) Domestic abuse aggravated assault.

(42) Vehicular homicide, when the operator's blood alcohol concentration exceeds 0.20 percent by weight based on grams of alcohol per 100 cubic centimeters of blood.

(43) Aggravated assault upon a dating partner.

(44) Domestic abuse battery punishable under R.S. 14:35.3(L), (M)(2), (N), (O), or (P).

(45) Battery of a dating partner punishable under R.S. 14:34.9(L), (M)(2), (N), (O), or (P).

(46) Violation of a protective order if the violation involves any crime enumerated above against the person for whose benefit the protective order is in effect.

(47) Any attempted crime of violence enumerated in subsection (d)(1)—(46) above.

Facial recognition shall not be used for the investigation of any crime not enumerated above. This prohibition includes, but is not limited to, the investigation of a violation or attempted violation of any law criminalizing (1) abortion or the provision thereof by a licensed physician, and (2) any consensual sexual act between persons of the age of majority, including without limitation any law purporting to criminalize sexual contact between same-sex partners.

(e) Any officer requesting the use of facial recognition technology shall ensure the request is approved in accordance with current NOPD policy. The council urges the Orleans Parish Criminal District Court to accept a role in receiving information from NOPD on a case by case basis on its use of facial recognition technology and to participate in a working group consisting of members from the following entities:

(1) New Orleans Police Department

(2) New Orleans City Council

The working group will determine the role the court may take or identify an alternative secondary database outside NOPD where information shall be filed.

Findings of the working group shall be submitted to the council on or before September 30, 2022.

(f) Evidence obtained from facial recognition alone shall not be sufficient to establish probable cause for the purpose of effectuating an arrest by the NOPD or another law enforcement agency. The source of the image and the underlying reasons for the requested use of facial recognition systems as an investigative lead shall be documented in a police report.

(g) Facial recognition technology shall not be used as a surveillance tool.

(h) Nothing in this section shall prohibit an NOPD officer from conducting a criminal investigation using cell-site simulator technology for the following purposes:

(1) To assist in locating a known suspect of a crime of violence, as defined in section (d) above, for which an arrest warrant has been issued and only when the use of such technology is obtained pursuant to a search warrant signed by a neutral and detached judge or magistrate commissioner; or

(2) To assist in locating a missing individual when there is a reasonable belief that the missing individual is in imminent danger of death or is in imminent danger of receiving serious bodily injury as defined in R.S. 14:2(C).

(i) The New Orleans Police Department, acting in conjunction with the Louisiana State Analytical and Fusion Exchange (LA-SAFE), shall submit a quarterly report regarding the use of surveillance technologies pursuant to this section to the Clerk of Council and to the Chair of the City Council's Criminal Justice Committee to coincide with other required updates from law enforcement bodies transmitted in advance of the quarterly convening of the Criminal Justice Committee per Ordinance Calendar Number 33,724-29063 M.C.S. The report shall be saved and submitted in a searchable PDF or spreadsheet format and shall include the following information:

(1) The total number of requests for the use of facial recognition technology.

(2) For each request:

a. The requesting officer's name and badge number;

b. The enumerated crime(s) justifying the request;

c. The age, gender and race of the suspect;

d. The accompanying NOPD/Orleans Parish Communication District (OPCD) item numbers,

e. Whether the use of facial recognition technology resulted in a match; and

f. Whether the use of facial recognition technology resulted in an arrest and/or charges.

(j) Notwithstanding section 147-7, the provisions of section 147-2(d) shall take effect on October 1, 2022.
(M.C.S., Ord. No. 28559, § 1, 12-17-20; M.C.S., Ord. No. 29117, § 1, 7-21-22; M.C.S., Ord. No. 29127, § 1, 8-4-22)

Sec. 147-3. Data sharing and protection.

(a) Status data collection ban: The city shall not inquire or collect data regarding any person's immigration status, including place of birth, except in the event of an active federal criminal investigation or when otherwise necessary to relay complaints on behalf of such person; determine eligibility for city employment; determine eligibility for a public benefit or program; or connect such person to supportive services.

(b) The city is responsible for protecting data it collects, and must maintain policies to protect such data from unauthorized access.

(c) Any department that uses, or authorizes a third-party to use, a surveillance technology must designate an employee ("data protection officer") responsible for maintaining its compliance with this chapter.

(d) The city shall maintain procedures for reviewing, sharing, assessing, and evaluating city automated decision systems, including technologies referred to as artificial intelligence, through the lens of equity, fairness, transparency, and accountability. Wherever decisions are made based on the identity of an individual, rather than based on patterns in the general population, such as air traffic control, individuals must have the option to opt out of automated decisions.

(e) The city shall collect only the minimum amount of personal information needed to fulfill a narrow well-defined purpose and in a manner consistent with the context in which it will be used.
(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Sec. 147-4. City contracting.

(a) The city shall not enter into any contract or other agreement that facilitates the receipt of privately generated and owned surveillance data from, or provision of city generated and owned surveillance data to, a non-governmental entity in exchange for any monetary donation, in-kind or any other form of consideration from any source, without first providing public notice and an opportunity for public comment.

(b) The city shall not enter or approve a contract or other agreement that facilitates the surveillance of attorney-client confidential or privileged conversations, despite any warning that such conversations will be monitored, absent a warrant signed by a judge.
(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Sec. 147-5. Consequences of violation.

(a) Violations of this chapter by a city employee shall result in consequences that may include retraining, suspension, or termination, subject to due process requirements.

(b) No information obtained in violation of this chapter shall be used in any adjudicative proceeding within the authority of the City of New Orleans.
(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Sec. 147-6. Severability.

The provisions of this chapter are severable. If any part or provision of this chapter, or the application of this chapter to any person or circumstance, is held invalid, the remainder of this chapter, including the application of such part or provisions to other persons or circumstances, shall not be affected by such holding and shall continue to have force and effect.
(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Sec. 147-7. Effective date.

This chapter shall take effect on January 1, 2021.
(M.C.S., Ord. No. 28559, § 1, 12-17-20)

Chapters 148, 149

RESERVED

Chapter 150

TAXATION*

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*__Cross references—__Alcoholic beverages, ch. 10; gallonage tax on alcoholic beverages, § 10-471 et seq.; finance, ch. 70.

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ARTICLE II. AD VALOREM TAXES

DIVISION 1. GENERALLY

Sec. 150-36. Assessment districts.

The following shall be the several assessment districts of the city:

(1) *First assessment district.* Bounded by the lower side of Felicity Street and the upper side of Thalia Street; in front by the Mississippi River and in the rear by the intersection of Felicity and Thalia Streets;

(2) *Second assessment district.* Bounded by the lower side of Thalia Street and the upper side of St. Joseph and Delord Streets; in front by the Mississippi River and in the rear by Carrollton Avenue;

(3) *Third assessment district.* Bounded by the lower side of St. Joseph and Delord Streets and the upper side of Poydras Street; in front by the Mississippi River and in the rear by the limits of the city;

(4) *Fourth assessment district.* Bounded by the lower side of Poydras Street and the upper side of Gravier Street; in front by the Mississippi River and the rear by the limits of the city;

(5) *Fifth assessment district.* Bounded by the lower side of Gravier Street and the upper side of Canal Street; in front by the Mississippi River and in the rear by the limits of the city;

(6) *Sixth assessment district.* Bounded above by Canal Street and the lower limits of the first district; below by St. Louis Street; in front by the river bank and in the rear by Lake Pontchartrain;

(7) *Seventh assessment district.* Bounded by St. Louis Street; below by St. Philip Street; in front by the river bank and in the rear by Lake Pontchartrain;

(8) *Eighth assessment district.* Bounded above by St. Philip Street; below by Esplanade Street and the limits of the second district; in front by the river bank and in the rear by Lake Pontchartrain;

(9) *Ninth assessment district.* Bounded above by Esplanade Street and the lower limits of the second district; below by Mandeville Street; in front by the river bank and in the rear by Lake Pontchartrain;

(10) *Tenth assessment district.* Bounded above by Mandeville Street; below by the lower limits of the city; in front by the river bank and in the rear by the rear limits of the city;

(11) *Eleventh assessment district.* Bounded above by Toledano Street; below by Felicity Street; in front by the river bank and in the rear by Chestnut Street;

(12) *Twelfth assessment district.* Bounded above by Toledano Street; below by Felicity Street; in front by Chestnut Street and in the rear by the rear limits of the city;

(13) *Thirteenth assessment district.* All that portion of the city situated on the right bank of the Mississippi River known as the fifth district;

(14) *Fourteenth assessment district.* Bounded above by Joseph Street; below by Toledano Street; in front by the river bank and in the rear by the intersection of Toledano and Joseph Streets;

(15) *Fifteenth assessment district.* Bounded above by the upper limits of the city; below by Joseph Street; in front by the river bank and in the rear by the rear line of the sixth district; and,

(16) *Sixteenth assessment district.* Bounded by Lowerline Street and Upperline Street; in front by the Mississippi River and in the rear by Lake Pontchartrain.

(Code 1956, § 62-1)

Sec. 150-37. Separate bills for real and personal property.

The director of the department of finance shall make separate tax bills for personal property and

real estate. Each tax bill shall include a list of tax recipient bodies and governmental functions for which taxes are collected, with the amount of money allocated to each from that specific tax bill.
(Code 1956, § 62-2; M.C.S., Ord. No. 20759, § 1, 6-20-02; Ord. No. 20,765, § 1, 6-20-02)

Sec. 150-38. Availability of tax status certificates.

Upon payment in advance of the fees established in section 150-40 or 150-41 the director of the department of finance may furnish to any person requesting it a certificate showing the status of all real estate taxes due the city upon any property described in the application of the person requesting it.
(Code 1956, § 62-16)

State law reference—Requiring such a certificate as a prerequisite to transfer of title, R.S. 9:2921 et seq., 47:2104.

Sec. 150-39. Only 30 years covered; current year's taxes.

The director of the department of finance in making up any research certificate shall make it out and report the condition of the tax rolls affecting the property described on the application of the party applying therefor for 30 years only prior to January 1 of each year in which any such tax research certificate is applied for. But if the data for the taxes of the current year are available they shall be noted on the certificate, otherwise they shall be marked "due."
(Code 1956, § 62-17)

Sec. 150-40. Fees for research certificates.

The director of the department of finance shall charge in advance each person applying for a real estate tax and levee board tax research the sum of $15.00. Both researches shall be certified on a single certificate. There shall be a separate assessment of real estate as described on the assessment rolls.
(Code 1956, § 62-19)

Sec. 150-41. Fees for group researches.

The director of the department of finance shall charge in advance each individual or legal entity requesting a research of the current and/or prior year tax status of ten or more parcels of property (owned by the individual or by clients of the legal entity) the sum of $1.00 per parcel of property. The group researches are distinguished from regular tax researches in that they are only for the current and/or prior year status, and the city does not assume responsibility for their accuracy.
(Code 1956, § 62-19.1)

Sec. 150-42. Assessment status certificates—Availability.

Upon payment of the fees in section 150-40 or 150-41 in advance the director of the department of finance of the city may furnish to any person demanding it, a certificate showing the status of all charges for paving or other local improvement assessments due the city by or against any property described in the application of the person demanding such research certificate.
(Code 1956, § 62-20)

Sec. 150-43. Same—Only 30 years covered; current and future assessments.

The director of the department of finance in making up any research certificate shall make out the same and report the condition of the charges for paving or other local improvement assessments affecting the property described on the application of the party applying therefor, for 30 years only prior to January 1 of the year in which such research certificate is applied for. But if the data showing the status of charges for paving or other local improvement assessments for the current or future years is available it shall be noted on the certificate, otherwise it shall be marked "due," unless it is ascertained by the director of the department of finance that the street in front of the property has not been paved or repaved for which paving certificates have been sold and are outstanding, which fact shall then be noted thereon.
(Code 1956, § 62-21)

Sec. 150-44. Fees for issuance of paving researches.

The director of the department of finance shall charge in advance each person applying for the issuance of a paving research certificate the sum

of $5.00 for each such research certificate applied for. There shall be a separate paving research for each separate assessment of real estate as described on the assessment rolls.
(Code 1956, § 62-23)

Sec. 150-45. Fees for special assessment group researches.

The director of the department of finance shall charge in advance each individual or legal entity requesting a research of the current and/or prior year status for paving or other special assessments of ten or more parcels of property (owned by the individual or by clients of the legal entity) the sum of $1.00 per parcel of property. The group researches are distinguished from regular tax researches in that they are only for the current and/or prior year status, and the city does not assume responsibility for their accuracy.
(Code 1956, § 62-23.1)

Sec. 150-46. Delinquent taxes—Taxing unit.

Taxing unit, for purposes of this section, shall mean the city and all jurisdictions for which the director of finance for the city collects ad valorem taxes.
(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-46.1. Taxing unit.

A taxing unit for purposes of this section shall mean the City of New Orleans and all jurisdictions for which the director of finance for the city collects ad valorem taxes.
(M.C.S., Ord. No. 18637, § 1, 3-5-98)

Sec. 150-46.2. Penalty and interest.

(a) A delinquent tax incurs a penalty of three percent of the amount of the tax on the day such tax becomes delinquent.

(b) A delinquent tax accrues interest at a rate of one percent for each month or portion of a month the tax remains unpaid in accordance to R.S. 47:2101.
(M.C.S., Ord. No. 18637, § 1, 3-5-98)

Sec. 150-46.3. Additional penalties for collection costs.

(a) The taxing unit may contract with a private attorney for legal and other services related to the collection of delinquent taxes;

(b) In addition to any other penalty prescribed by law, all delinquent taxes originally due January 1, 2002, and all delinquent taxes due prior to January 1, 2002, that remain delinquent on April 1 of the year in which they originally became delinquent, shall incur an additional penalty to defray costs of legal and other services related to the collection of delinquent taxes if the taxing unit has referred the collection of the delinquent taxes, penalty and interest to a private attorney or collection agent. The amount of the additional penalty shall be thirty percent of the amount of taxes, penalties and interest due;

(c) In addition to any other penalty prescribed by law, all taxes which become delinquent after January 1, 2003, shall incur a penalty of ten percent of the amount of the taxes, penalties and interest due if any portion of the tax remains delinquent on March 1 of the year in which they originally became delinquent and the taxing unit has entered into an agreement pursuant to this section;

(d) In addition to any other penalty prescribed by law, all taxes which become delinquent after January 1, 2003, and which remain delinquent May 1 of the year in which they originally become delinquent incur an additional penalty of 15 percent of the amount of the taxes, penalties and interest due if the taxing unit has entered into an agreement pursuant to this section;

(e) The fee for services performed pursuant to the contract authorized under this subsection for legal and other services related to the collection of delinquent taxes originally due January 1, 2003, and thereafter shall be 20 percent of the taxes, penalties and interest due. The fee for services performed pursuant to the contract authorized under this subsection shall not be due and owing unless the tax payer has failed to remit the taxes and penalties due and owing prior to May 1 of the year in which they originally became delinquent. The fee for services performed pursuant the con-

tract authorized under this subsection for legal and other services related to the collection of delinquent taxes originally due prior to January 1, 2003, shall be 30 percent of the tax, penalties and interest due; and

(e) Any penalty or portion thereof imposed pursuant to this section shall be retained and used by the city to defray the cost of legal and other services related to the collection of delinquent taxes by a private attorney and shall not be distributed among any other taxing authority.
(M.C.S., Ord. No. 18637, § 1, 3-5-98; M.C.S., Ord. No. 20957, § 1, 12-19-02)

Sec. 150-46.4. Suit to collect delinquent tax.

(a) At any time after its tax on property becomes delinquent, a taxing unit or its authorized agent may file suit to foreclose the lien securing payment of the tax. The suit must be in a court of competent jurisdiction for the parish in which the tax was or is imposed.

(b) A suit to collect a delinquent tax takes precedence over all other suits pending in courts.

(c) In a suit brought under subsection (a), a taxing unit or its authorized agent may foreclose any other lien on the property in favor of the taxing unit.
(M.C.S., Ord. No. 18637, § 1, 3-5-98)

Sec. 150-46.5. Recovery of costs and expenses.

(a) In addition to other costs authorized by law, a taxing unit or its authorized agent is entitled to recover from the subject property and, in the case of delinquent personal property taxes, against the tax debtor the following costs and expenses in its efforts to collect a delinquent tax:

(1) All usual court costs, including the cost of serving process;

(2) Costs of filing for record of notice of lis pendens against property;

(3) Expenses of tax sale;

(4) Reasonable expenses that are incurred by the taxing unit or its authorized agent in determining the name, identity, and location of necessary parties and in procuring necessary legal descriptions of the property on which a delinquent tax is due; and

(5) In cases where subsection 150-46.3(a) is not applicable, reasonable attorney's fees of 30 percent of the total amount of taxes, penalties, and interest due the unit.

(6) Reasonable curator fees and expenses.

(b) Each item specified by subsection (a) is a charge against the property and shall be collectible in the same manner as the taxes, interest, penalties and costs due by the tax debtor and is subject to collection by foreclosure in a suit or as otherwise provided by law and shall be collected out of the proceeds of the sale of the property.

(c) The director of finance or his/her authorized agent, with the approval of the mayor or the chief administrative officer, is authorized to employ private counsel to assist in the collection of any taxes, penalties, interest or costs and expenses, including attorney's fees, due or to represent him in any proceeding under this section.
(M.C.S., Ord. No. 18637, § 1, 3-5-98)

Sec. 150-46.6. Liability of taxing unit for costs.

(a) Except as provided by subsection (b), a taxing unit or its authorized agent is not liable in a suit to collect taxes for court costs, including any fees for service of process, arbitration, or mediation, and shall not be required to post security for the costs.

(b) A taxing unit or its authorized agent shall pay the cost of publishing citations, notices of sale, or other notices from the unit's general fund as soon as practicable after receipt of the publisher's claim for payment. The taxing unit is entitled to reimbursement from other taxing units that are parties to the suit for their proportionate share of the publication costs on satisfaction of any portion of the tax indebtedness before further distribution of the proceeds. A taxing unit may not pay a word or line rate for publication of citation or other required notice that exceeds the rate the newspaper publishing the notice charges private entities for similar classes of advertising.
(M.C.S., Ord. No. 18637, § 1, 3-5-98)

Sec. 150-46.7. Suits to recover collection penalties paid under protest.

(a) With respect to any penalty assessed under subsections 150-46.2 or 150-46.3 of this ordinance, the taxpayer may challenge such penalty by paying the penalty under protest no later than June 1 of the year in which the penalty was imposed with a letter delivered to the Director of finance at the time of payment (1) notifying the Director that the penalty is being paid under protest, (2) stating the grounds for the protest, and (3) thereafter filing suit to recover the penalty amount within 30 days of the date on which the penalty was paid.

(b) With respect to any penalty under subsections 150-46.2 or 150-46.3 assessed prior to the effective date of this amendment, and which penalty or penalties have not been paid as of the date of this amendment, the taxpayer may challenge such penalty by paying the penalty under protest no later than May 1, 2002, with a letter delivered to the director of finance at the time of payment:

(1) Notifying the director that the penalty is being paid under protest,

(2) Stating the grounds for the protest, and

(3) Thereafter filing suit to recover the penalty amount within 30 days of the date on which the penalty was paid.

(M.C.S., Ord. No. 20556, § 1, 2-21-02; M.C.S., Ord. No. 20957, § 2, 12-19-02)

Sec. 150-47. Same—Penalty and interest.

(a) Tax shall become delinquent 30 days after receipt of the tax bill. Delinquent tax incurs a delinquent penalty of ten percent per annum from the date of delinquency until paid.

(b) A delinquent tax accrues interest at a rate of one percent for each month or portion of a month the tax remains unpaid.

(c) All penalties and interest imposed by this article shall be payable to and recoverable by the taxing unit in the same manner as if they were part of the tax imposed.

(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-48. Authorization of outside collectors and counsel; collection fee.

(a) In order to facilitate the collection of taxes, penalties, interest and costs due under this article and pursuant to the self-governance authority of the Home Rule Charter of the City of New Orleans empowered by the 1974 Louisiana Constitution, article VI, section 4, the taxing unit may contract with a collection agency, law firm or private attorney for legal, collection, and other services related to the collection of the delinquent taxes.

(b) To defer the cost of collecting delinquent taxes, penalties, interest and costs, a collection fee of nine and one-half percent of the total amount of taxes, penalties, interest and costs shall be collected from the taxpayer, if the taxpayer has failed to remit the taxes, penalties, interest and costs within 90 days after the date the tax was due and the taxing unit has contracted with a collection agency, law firm, or private attorney for the collection of the taxes, penalties, interest and costs.

(c) All funds collected on behalf of the taxing unit for the collection fee shall be held by the taxing unit for the payment of the fees due under the contract for services rendered as authorized in subsection (a) and shall not be distributed among or disbursed to any Orleans Parish taxing authority.

(d) The penalty listed in section 150-47 shall also apply to motor-vehicle personal-property taxes, beginning the last day of the subsequent month of billing. The collection fee contained in this section shall apply to motor-vehicle personal-property taxes, beginning 90 days from the date of billing.

(e) Collection fees imposed by this article shall be payable to and recoverable by the taxing unit in the same manner as if the fees were incorporated in the imposed tax.

(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-49. Legal remedy—Suits to recover tax, penalty, interest, fees and costs paid under protest.

(a) (1) Any taxpayer protesting the payment of any tax, penalty, interest, fee or cost assessed under this article or the enforce-

ment of any provision of law in relation thereto, shall remit under protest to the taxing unit such tax, penalty, interest, fee or cost by paying the contested amount no later than 60 days after the date on which the tax, penalty, interest, fee or cost was imposed and at that time shall give written notice stating that the payment is being remitted "under protest", the grounds for the protest and that he/she intends to file suit for the recovery of such tax, penalty, interest, fee or cost within 30 days of the date on which the protest payment was made.

(2) Upon receipt of this notice, the amount remitted to the taxing unit shall be placed in an escrow account and held by the taxing unit for a period of 30 days. If suit is filed for recovery of the tax, penalty, interest, fee or cost within the 30-day period, the funds in the escrow account shall be held pending the outcome of the suit. If suit is not filed within the 30-day period, the funds held in escrow shall be released to the taxing unit.

(3) If the taxpayer follows the procedures set forth in subsection (a) and prevails in his/her suit, the taxing unit shall refund the amount held in the escrow account to the claimant.

(b) This section shall afford the sole legal remedy and right of action, in any court having jurisdiction over the parties and subject matter, for a full and complete adjudication of any and all questions arising as to the collection, enforcement and legality of any tax, penalty, interest, fee or cost assessed or arising under this article. In such action, service of process upon the director of finance shall be sufficient service, and he shall be the sole necessary and proper party defendant in any such suit.
(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-50. Same—Recovery of costs and expenses.

(a) In addition to other costs authorized by law, a taxing unit or its authorized agent is entitled to recover from the subject property and, in the case of delinquent personal property taxes, against the tax debtor, the following costs and expenses in its efforts to collect a delinquent tax:

(1) All usual court costs, including the cost of serving process;

(2) Costs of filing for record of notice of lis pendens against property;

(3) Expenses of tax sale;

(4) Reasonable expenses that are incurred by the taxing unit or its authorized agent in determining the name, identity, and location of necessary parties and in procuring necessary legal descriptions of the property on which a delinquent tax is due;

(5) In cases where section 150-48 is not applicable, reasonable attorney's fees of 30 percent of the total amount of taxes, penalties, and interest due the unit; and

(6) Reasonable curator fees and expenses.

(b) Each item specified by subsection (a) is a charge against the property and shall be collectible in the same manner as the taxes, interest, penalties and costs due by the tax debtor and is subject to collection by foreclosure in a suit or as otherwise provided by law and shall be collected out of the proceeds of the sale of the property.

(c) The director of finance or his/her authorized agent, with the approval of the mayor or the chief administrative officer, is authorized to employ private counsel to assist in the collection of any taxes, penalties, interest or costs and expenses, including attorney's fees, due or to represent him in any proceeding under this section.
(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-51. Same—Liability of taxing unit for costs.

(a) Except as provided by subsection (b), the taxing unit or its authorized agent is not liable in a suit to collect taxes for court costs, including any fees for service of process, arbitration, or mediation, and shall not be required to post security for the costs.

(b) Taxing unit or its authorized agent shall pay the cost of publishing citations, notices of sale, or other notices from the unit's general fund as soon as practicable after receipt of the publisher's claim for payment. The taxing unit is entitled to reimbursement from other taxing units that are parties to the suit for their proportionate share of the publication costs on satisfaction of any portion of the tax indebtedness before further distribution of the proceeds. A taxing unit may not pay a word or line rate for publication of citation or other required notice that exceeds the rate the newspaper publishing the notice charges private entities for similar classes of advertising.
(M.C.S., Ord. No. 18,637, § 1, 3-5-98; M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-52. Reimbursement of costs by governing bodies that receive ad valorem taxes.

(a) Each tax recipient governing body that receives a portion of ad valorem taxes shall reimburse the director of finance for the city the cost of collections for ad valorem taxes.

(b) The collection cost charged to each tax recipient governing body for the reimbursement of expenses associated with the collection of ad valorem taxes shall not exceed two percent.

(c) The collection cost charged will be deducted by the director of finance for the city from each tax recipient governing bodies' proportionate share of ad valorem taxes. The proceeds received from the collection charge shall be deposited into the general fund for the city.

(d) This section is meant to be in compliance with Act No. 254, Regular Session, 2005, enacting R.S. 47:1997.1.
(M.C.S., Ord. No. 22207, § 1, 5-3-06)

Sec. 150-53. Deferment of ad valorem taxes.

(a) Any delinquent ad valorem tax due under this article may be paid in installments, and interest at the rate fixed by law shall be collected on each installment separately at the time of the payment of such installment, and no further interest shall thereafter be collected on the amount of such installment payment, provided nothing contained in this section shall prevent the sale of the property for delinquent taxes, as provided by law. Where installments have been collected on any tax, the tax sale shall be for the amount of the unpaid balance of the tax.

(b) When an emergency has been declared to exist by resolution or ordinance the department of finance, shall be authorized and empowered to reduce the interest charge or penalties on ad valorem taxes due under this article; but in no event shall the rate of interest be reduced to less than six percent, and no reduction in penalties shall exceed 50 percent of the amount of the penalty.

(c) In case of overflow, general conflagration, general destruction of crops, or other public calamity, or whenever lands or other property, including buildings, structures, or personal property are damaged or destroyed during a disaster or emergency declared by the mayor, rendering impracticable the forcible collection of taxes therein, there shall be no collection of taxes on lands or other property, including buildings, structures, or personal property damaged or destroyed during the year of the events described in this section, or the subsequent year when the payment of such taxes is affected by the events described in this section, but the collection of taxes shall be postponed in accordance with the following procedure:

(1) The owner wishing to avail himself of the provisions of this section shall make a sworn statement in triplicate, no later than December 31 of the year in which the damage or destruction occurred, or 30 days after the tax bill has been mailed, whichever is later, that his property has been or is overflowed, or is or has been otherwise damaged or destroyed, giving the description of his property as assessed, and that by reason thereof, the forcible collection of the taxes of the year during which the injury occurred, or the preceding year, would be oppressive, and that he is unable to pay the same without a sacrifice of his property. Each copy of the statement shall be signed and sworn to

by the taxpayer claiming the benefit of this section; one copy of the statement shall be filed with the officer charged with the collection of the taxes, one filed in the office of the state auditor, and one shall be filed in the office of the recorder of mortgages of the parish in which the property is located. Thereupon, the owner shall be relieved from the payment of taxes for the year in which he claims a postponement. The filing shall operate as a first lien and privilege, and the statement shall be preserved in book form and duly indexed.

(2) A statement of the right of the owner to have his taxes postponed as provided for in paragraph (1) shall be included with the tax bill mailed to the taxpayer if such tax bill is mailed after the effective date of this section.

(3) The taxes thus postponed shall be divided into ten equal parts, and one part shall be assessed on the immovable property affected and described in the sworn statement for each year for ten subsequent years, or until the whole of the postponed tax is paid, provided, that when the tax debtor is assessed with movables only, the postponed taxes shall be assessed against the tax debtor in this manner.

(4) All of the postponed taxes may be paid at any time and the lien canceled. No installment of such tax, if paid at the postponed maturity, shall bear either costs or penalties when so collected, but shall bear interest at the rate of six percent per annum from the thirty-first day of December of the year in which they were originally due until paid.

(5) The tax collector shall make a separate statement and list of all persons claiming the benefits of this section, together with the respective amount of their taxes, and the property upon which the taxes are due, and shall deliver over one copy of the same to the assessors of the parish, who will assess in each subsequent year upon the respective immovable properties therein described a one-tenth part of the taxes referred to in the respective triplicate sworn statements and thus postponed until all of said taxes have been assessed, and the respective immovable properties shall be liable for the respective parts of the postponed taxes. In case the list shows that a tax debtor owns movables only, the postponed taxes shall be assessed against the debtor in this manner. The statement thus prepared by the tax collector shall be prepared in duplicate, sworn to, and one copy delivered to the state auditor.

(d) The deferred portion of the taxes herein provided for shall be annually levied and assessed and carried upon the assessment roll and collected in the manner and by the processes provided in the case of ordinary tax collections and separately accounted for by the tax collector.

(e) This section is meant to be in compliance with Act 28 of the First Extraordinary Session, 2005, was enacted on November 29, 2005, that amended RS 47:2106.
(M.C.S., Ord. No. 22209, § 1, 5-3-06)

Sec. 150-54. First responders tax exemption.

(a) In addition to the homestead exemption authorized pursuant to the provisions of Article VII, Section 20 of the constitution of the state, which applies to the first $7,500.00 of the assessed valuation of the property, there shall be an ad valorem tax exemption of $2,500.00 of the assessed valuation of property receiving the homestead exemption that is owned and occupied by a qualified first responder.

(b) For purposes of this section, "first responder" shall mean a volunteer firefighter who has completed within the tax year no fewer than 24 hours of firefighter continuing education and is an active member of the Louisiana State Fireman's Association or is on the departmental personnel roster of the Volunteer Firefighter Insurance Program of the office of state fire marshal. For purposes of this section, "first responder" shall also mean a full-time public employee whose duties include responding rapidly

to an emergency and who resides in the same parish in which their employer is located. The term includes the following:

(1) Peace officers, which means any sheriff, police officer, or other person deputized by proper authority to serve as a peace officer as defined in La. R.S. 40:2402.

(2) Fire protection personnel.

(3) An individual certified as an emergency medical services personnel.

(4) An emergency response operator or emergency services dispatcher who provides communication support services for an agency by responding to requests for assistance in emergencies.

(c) The tax assessor shall establish a procedure whereby a person may annually apply for the exemption which shall include the production of documents by the first responder. In the application for the exemption, the first responder shall produce documentation issued by his employer evidencing employment for the taxable period for which the exemption is being requested.
(M.C.S., Ord. No. 29891, § 1, 4-18-24)

Secs. 150-55—150-75. Reserved.

DIVISION 2. TAX SALES

Sec. 150-76. Sale of property adjudicated to city.

The director of the department of finance is authorized to sell abandoned immovable property including any improvements thereto which have been adjudicated to the city for unpaid ad valorem taxes to an individual for use as his primary residence under certain prescribed conditions; to provide for exceptions.

(1) The purchaser shall use such property as his domicile and shall personally reside for an uninterrupted period of at least one year provided that:

a. The uninterrupted period of residence required by this section shall commence within seven days of purchase unless the property at the time of purchase is uninhabitable, in which case the required year shall com-

mence within seven days of the first day the property is inspected and deemed habitable.

b. If the property is uninhabitable at the time of purchase, the purchaser shall cause it to be habitable and to be inspected no later than the 180 days after the date of purchase.

1. The property has been adjudicated to the city for unpaid ad valorem taxes.

2. The period fixed by law for redemption has expired.

3. The property has been advertised for sale and no bids were received.

(2) If the purchaser fails to live in the house for one year, the director of the department of finance or the previous owner may bring an action by summary procedure to void the sale.

a. If the moving party prevails, the judgement shall contain an order of eviction and the purchaser shall forfeit only that part of the purchase price which is the amount paid as taxes, penalties, and interest on the property.

b. When the moving party who is the previous owner prevails in such an action, he may recover the property by repayment to the purchaser of the purchase price to the extent that the sale price exceeded the taxes, penalties, and interest paid to the municipality or parish.

(Code 1956, § 62-6.1)

Sec. 150-77. Procedure for sale of adjudicated properties to individuals.

Any person desiring to purchase unredeemed abandoned property adjudicated to the city for unpaid ad valorem taxes following expiration of the redemptive period shall deposit with the department of finance an amount sufficient to cover expenses of the sale including advertising and other associated cost.

(1) The director of the department of finance, his equivalent, or a duly authorized agent of either shall determine the amount of money to be deposited. In consideration of the sale of adjudicated property, the director shall give preference (1) first, to persons who were domiciled in Orleans Parish prior to August 29, 2005, and whose domicile was subsequently declared uninhabitable by the city due to storm flooding, or other reasons, such as fire, resulting from Hurricane Katrina; (2) second, to nonprofit organizations whose acquisitions will include persons of low and moderate incomes and to persons who were domiciled in Orleans Parish prior to August 29, 2005, and whose domicile was subsequently declared uninhabitable by the city due to storm, flooding, or other reasons, such as fire, resulting as fire, resulting from Hurricane Katrina.

(2) The director of the department of finance is authorized to initiate financial-hardship agreements for the collection of unpaid taxes provided that such payments are limited to unredeemed, abandoned property adjudicated to the city and that:

a. The redemption period has expired.

b. The property value is less than $70,000.00.

c. The property is not predominantly commercial in character.

d. The property will be used by the purchaser as a domicile and does not exceed four units.

e. A reasonable period for repayment has been established by the director for the collection of unpaid taxes.

(Code 1956, § 62-6.2; M.C.S., Ord. No. 22076, § 1, 11-3-05)

Sec. 150-78. Procedure for sale of adjudicated properties to nonprofit organizations.

(a) *Authority; conditions for sale.* Upon adjudication of property to the city for nonpayment of taxes, the city may sell the property to a nonprofit

organization having a 501(c)(3) status by the Internal Revenue Code or to a first-time homebuyer, provided that the purchaser shall agree to renovate the property in accordance with this section.

(b) *Appraisal of property.* The city shall identify a qualified appraiser to assess the fair market value of the property.

(c) *Notice of appraised value and intent to sell; right to conduct another appraisal.*

(1) At least 30 days prior to the sale of the property, the city shall give notice of the appraised value and the intent to sell to the owner of record, to any person having a legally protected property interest in such property whose name and address can be reasonably ascertained, and to any person who has filed a request for notice in the mortgage records of the parish. Thereafter, any party receiving such notice has 15 days within which to conduct a second appraisal.

(2) If the value of the second appraisal is in conflict with the original appraisal, the city may conduct a third appraisal to resolve the issue of the fair market value of the property. The negotiated sale price shall not be less than the final appraised value of the property.

(3) The provisions of R.S. 33:2870 through 33:2876 shall apply to a sale of property pursuant to this section.

(d) *Eligible persons or organizations to purchase property; qualifications.*

(1) Property adjudicated to the city may be sold to a nonprofit organization if that organization:

a. Expresses homeownership as one of its purposes in its articles of incorporation;

b. Enjoys tax-exempt status under Section 501(c)(3) of the Internal Revenue Code;

c. Is registered as a nonprofit organization with DHND;

d. Provides the city with a financial statement of the previous year; and

e. Provides the city with a work plan for the property that has been deemed satisfactory by DHND, and which includes the following:

1. A specified purpose for the property purchased;

2. A rehabilitation schedule for completion of individual renovation projects on the property; however, an extension of such schedule may be granted pending proof of extenuating circumstances; and

3. A time plan for completion of the overall renovation of the property; however, such plan shall not exceed six months.

(2) Property adjudicated to the city may be sold to a first-time homebuyer if that homebuyer:

a. Agrees to renovate the property in compliance with the Minimum Housing Standards Code;

b. Agrees to participate in a recognized DHND first-time homebuyer program;

c. Provides the city with a work plan for the property that has been deemed satisfactory by DHND, and which includes the following:

1. A specified purpose for the property purchased;

2. A rehabilitation schedule for completion of individual renovation projects on the property; however, an extension of such schedule may be granted pending proof of extenuating circumstances; and

3. A time plan for completion of the overall renovation of the property; however, such plan shall not exceed six months;

d. Agrees to reside on the property, and shall establish proof of residence by submitting water bills, utility bills, telephone bills and other such documentation including:

1. Sleeping in the residence;
2. Storing clothing, toiletries, household appliances and similar personal property of daily utility in their residence;
3. Registered to vote; and
4. Directly receives and opens most mail addressed to him there.

(3) Upon failure by a nonprofit organization or a first-time homebuyer to comply with any of the conditions of paragraphs (1) and (2), respectively, of this section, the city shall initiate proceedings to void the sale in accordance with state law.

(M.C.S., Ord. No. 17,460, § 1, 3-21-96)

Secs. 150-79—150-89. Reserved.

DIVISION 3. REVOCATION OF TAX EXEMPTIONS

Sec. 150-90. Revocation of tax exemptions.

(a) The council may, by resolution following a public hearing, revoke the exemption from ad valorem taxation for any property owned by a nonprofit corporation or association if the council determines that the following criteria are met:

(1) The property is leased as housing;

(2) The property is in a state of disrepair;

(3) The property manifests conditions that endanger the health or safety of the public; and

(4) The owner of the property habitually neglects maintenance of the property, as evidenced by three or more sustained code enforcement violations issued for the property in the prior 12 months for matters that endanger the health or safety of residents of the property or of persons in the area surrounding the property.

(b) Matters deemed to endanger health or safety include, but are not limited to, structural instability due to deterioration; injurious or toxic ventilation; contaminated or inoperable water supply; holes, breaks, rotting materials, or mold in walls; roof defects that admit rain; unsecured overhang extensions in danger of collapse; a hazardous electrical system; improper connection of fuel-burning appliances or equipment; an inactive or inoperable fire detection system; an unsecured or contaminated swimming pool; or any combination of these.

(c) The clerk of council shall schedule a revocation hearing pursuant to this section for each property identified in the report submitted pursuant to section 2-671 by the director of code enforcement or as ordered by motion. Exception as otherwise provided herein, revocation hearings shall be treated as "land use items" under the Council's Rule and Regulations for scheduling purposes.

(d) The clerk of council shall send notice of a revocation hearing conducted pursuant to this section to the owner of the property at the address reflected in the records of the assessor.

(e) Revocation of a tax exemption shall remain effective until reinstated by the council pursuant to this division.

(M.C.S., Ord. No. 29755, § 1, 12-1-23)

Sec. 150-91. Reinstatement.

(a) The council may, following a public hearing, reinstate a tax exemption revoked pursuant to this division if it determines that the conditions enumerated in sections 150-90(a)(1)—(4) no longer exist, and any fines, liens, and taxes related to the property have been paid or otherwise satisfied.

(b) The owner of a property whose tax exemption has been revoked pursuant to this division may request reinstatement of the exemption by submitting an application to the department of

code enforcement on forms prepared by that department, together with any related documentation the department may reasonably require.

(c) Within 45 days of receiving a completed application for reinstatement of a tax exemption, the director of code enforcement shall verify whether the property is eligible for reinstatement and shall provide the council with the application materials and with a report and recommendation regarding reinstatement. These materials shall be formally received by the council through their inclusion upon, and by adoption of, the consent agenda at a regular meeting.

(d) Within 45 days of formal receipt of a reinstatement application and the director of code enforcement's report and recommendation, the council shall conduct a public hearing on the reinstatement application, at which it may reinstate the tax exemption by resolution. The council shall send notice of the tax exemption reinstatement hearing to the owner of the property at the address reflected in the reinstatement application.

(e) A taxpayer may not apply for reinstatement unless and until the revocation has become effective pursuant to section 150-92 and may not apply for reinstatement more than once per year.
(M.C.S., Ord. No. 29755, § 1, 12-1-23)

Sec. 150-92. Effective tax years of revocation and reinstatement.

Any revocation or reinstatement resolution adopted between January 1 and July 31 shall become effective in the first full taxing year following the calendar year in which the resolution is adopted. Any revocation or reinstatement resolution adopted between August 1 and December 31 shall become effective in the second full taxing year following the calendar year in which the resolution is adopted.
(M.C.S., Ord. No. 29755, § 1, 12-1-23)

Sec. 150-93. Remedies of taxpayer.

A taxpayer whose tax exemption is revoked or whose request for reinstatement is not granted may appeal to the Civil District Court for Orleans Parish and protest the application of the ad valorem tax in accordance with the provisions of section 150-49.
(M.C.S., Ord. No. 29755, § 1, 12-1-23)

Sec. 150-94. Notice to assessor.

The clerk of council shall promptly provide the Orleans Parish Assessor with certified copies of any resolution revoking or reinstating an exemption pursuant to this division.
(M.C.S., Ord. No. 29755, § 1, 12-1-23)

Secs. 150-95—150-110. Reserved.

ARTICLE III. ASSESSMENT AND COLLECTION PROCEDURES OF TAXES OTHER THAN AD VALOREM TAXES

DIVISION 1. GENERALLY

Sec. 150-111. Remedies for collection.

(a) The director of the department of finance may, within his discretion, proceed to enforce the collection of any taxes due, except real property taxes, by means of any of the following alternative remedies or procedures:

(1) Assessment and distraint, as provided under sections 150-112 through 150-120 and 150-186 through 150-190.

(2) Summary court proceeding, as provided under section 150-191.

(3) Ordinary suit under the provisions of the general laws regulating actions for the enforcement of obligations.

(b) The director of the department of finance may choose which of these procedures he will pursue in each case, and the counter remedies and delays to which the taxpayer will be entitled will be only those which are not inconsistent with proceeding initiated by the director; provided, that in every case the taxpayer shall be entitled to proceed under section 150-192, except after he has filed a petition pursuant to chapter 13, section 4-1303 of the Charter for a redetermination of the assessment and except when there is pending against him a suit involving the same

tax obligation; and provided further, that the fact that the director of the department of finance has initiated proceedings under the assessment and distraint procedure will not preclude him from thereafter proceeding by summary or ordinary court proceedings for the enforcement of the same tax obligation.
(Code 1956, § 62-25; M.C.S., Ord. No. 26807, § 1, 2-4-16)

Sec. 150-112. Determination and notice of tax due.

If a taxpayer fails to make and file any tax return or tax report as required by the provisions of this Code of the city or if the return or report made and filed does not correctly compute the liability of such taxpayer, the director of the department of finance shall cause an audit, investigation or examination to be made to determine the tax, penalty and interest due, or he shall determine the tax, penalty or interest due by estimate or otherwise. Having determined the amount of tax, penalty and interest due, the director shall send by mail a notice to the taxpayer at the address given in the last report filed by him pursuant to the provisions of the chapter governing the tax involved or, if no report has been filed, to any address that may be obtainable, setting out his determination and informing the person of his purpose to assess the amount so determined against him after 15 calendar days from the date of the notice.
(Code 1956, § 62-26)

Sec. 150-113. Participation in lien rebate program.

The director of the department of finance is authorized to participate in a lien rebate program with the community improvement agency on a per property basis for individual properties with unpaid city liens when an expropriation has been filed in court for disposition of blighted property provided that:

(1) The community improvement agency has filed an expropriation and deposited the amount of the property's appraised value into the registry of the court.

(2) The community improvement agency has submitted documented proof of the expropriation filing to the director of the department of finance which includes the amount of the appraised value deposited in the registry of the court.

(3) Following notification by the community improvement agency that an expropriation has been filed the director of the department of finance is authorized to participate in the expropriation process and may intervene in the expropriation to collect unpaid liens.

(4) When a favorable judgement is rendered ordering the expropriation and payment of liens to the city from monies deposited into the court registry in accordance with the property's appraised value, the director of the department of finance is authorized to return the uninhabitable lien portion received through the expropriation process to the purchaser for renovation assistance.

(5) The director of the department of finance may authorize the return of monies collected through a declaration of the city's lien interest as part of the expropriation process and may offer a lien rebate in part or in full to the purchaser as an incentive to encourage renovation when a city building permit has been obtained through the office of safety and permits and a renovation plan has been filed with the community improvement agency.

(Code 1956, § 62-26.1)

Sec. 150-114. Protest of determination of tax due.

The taxpayer, within 15 calendar days from the date of the notice provided in section 150-112, may protest thereto. This protest must be in writing and should fully disclose the reasons, together with facts and figures in substantiation thereof, for objecting to the director of the department of finance's determination. The director shall consider the protest and in his discretion may grant a hearing thereon before making a final determination of tax, penalty and interest due.
(Code 1956, § 62-27)

Sec. 150-115. Assessment of tax, interest and penalty.

At the expiration of 15 calendar days from the date of the director of the department of finance's notice provided in section 150-112 or at the expiration of such time as may be necessary for the director to consider any protest filed to such notice, the director shall proceed to assess the tax, penalty and interest that he has determined to be due. The assessment shall be evidenced by a writing in any form suitable to the director of the department of finance, which sets forth the name of the taxpayer, the amount determined to be due, the kind of tax and the taxable period for which it is due. This writing shall be retained as a part of the director's official records. The assessment may confirm or modify the director's originally proposed assessment.
(Code 1956, § 62-28)

Sec. 150-116. Notice of assessment; appeal.

(a) Having assessed the amount determined to be due, the director of the department of finance shall send, by registered mail, a notice to the taxpayer against whom the assessment lies at the address given in the last report filed by such taxpayer or, if no report has been filed, to any address that may be obtainable. This notice shall inform the taxpayer of the assessment made against him and notify him that he has 60 calendar days from the date of the notice within which either to pay the amount of the assessment or to appeal to the tax review committee for a redetermination of the assessment.

(b) If, at the expiration of the delay of 60 calendar days, the taxpayer has not filed an appeal with the tax review committee, the assessment shall be final and shall be collectible by distraint and sale as is hereinafter provided. If an appeal to the tax review committee for a redetermination of the assessment has been filed, the assessment shall not be collectible by distraint and sale until such time as the assessment has been redetermined or affirmed by the tax review committee or the court which last reviews the matter.
(Code 1956, § 62-29)

Sec. 150-117. Waiver of restrictions and delays.

The taxpayer shall at any time have the right, by a signed notice in writing filed with the director of the department of finance, to waive the restrictions and delays prescribed in sections 150-112 through 150-116, which must ordinarily be observed before an assessment may become final. When such a waiver is executed, the assessment is final when made and is immediately collectible by distraint and sale.
(Code 1956, § 62-30)

Sec. 150-118. Assessment, notice and hearing when collection in jeopardy.

(a) If the director of the department of finance finds that a taxpayer designs quickly to depart from the city or to remove therefrom any property subject to any tax or to any lien for a tax, to discontinue business or to do any other act tending to prejudice or render wholly or partly ineffectual any proceedings that might be instituted to collect such tax whereby it shall have become important that such proceedings be instituted without delay, he may immediately make a determination from any available information or by estimate or otherwise of the amount of tax, penalty and interest such taxpayer is liable to pay under this Code.

(b) Having made such determination, the director of the department of finance shall immediately assess such amount and, by a writing to be retained as part of his official records, indicate such assessment has been made and, without any notice, proceed to distrain, as is hereinafter provided, any property belonging to the taxpayer. This type of assessment may be made whenever a tax becomes due whether it is then payable or not.

(c) As soon as is feasible after such assessment, and not later than two calendar days thereafter, the director of the department of finance shall send by registered mail a notice to the taxpayer against whom the assessment lies at the address given in the last report filed by such taxpayer or, if no such report has been filed, to any address that may be obtainable. Such notice shall inform the taxpayer of the assessment, its basis and jeopardous nature, make demand for immediate payment thereof and give notice that any property distrained or to be distrained will be subject to sale as provided in this chapter to satisfy the assessment. The taxpayer against whom the assessment lies can stay distraint of his property or sale of his property already distrained, as the case may be, only by the immediate payment of the assessment or by posting with the director of the department of finance a surety bond for twice the amount of such assessment or of a lower amount acceptable to the director with such sureties as the director deems necessary. The taxpayer shall have 60 calendar days from the date of payment or the date of posting bond to appeal to the tax review committee for a redetermination of the assessment. During this period, the director of the department of finance shall hold any payment made in an escrow account. If the taxpayer does not appeal, the director shall immediately credit such payment to the tax collections or proceed to collect from sureties if any were given. Upon an appeal, such payment or demand for payment sureties given shall be held in abeyance pending the redetermination or affirmation of the assessment by the tax review committee or the court which last reviews the matter. Final payment or collection from sureties will be for the amount of the affirmed or redetermined assessment.
(Code 1956, § 62-31)

Sec. 150-119. Assessment and claims in bankruptcy, etc., proceedings.

Upon the adjudication of bankruptcy of any taxpayer in any bankruptcy proceeding or the appointment of a receiver for any taxpayer in a receivership proceeding before any court of this state or of the United States, the director of the department of finance may immediately make a determination from any available information or by estimate or otherwise of the amount of tax, penalty and interest the taxpayer is liable to pay and immediately assess such amount and by a writing to be retained as a part of his official records indicate that such assessment has been made. Such assessment may be made whenever a tax becomes due regardless of whether it is then payable or not. Claims for such assessments and additional interest and attorney's fees thereon shall be presented for adjudication in accordance with law to

the court before which the bankruptcy or receivership proceeding is pending despite the pendency of delays before assessment provided in sections 150-112 through 150-116 or the pendency of an appeal to the tax review committee or the courts for a redetermination. No petition for the redetermination of an assessment shall be filed with the tax review committee after an adjudication of bankruptcy or the appointment of a receiver unless the petition is accompanied by a certified copy of an order of the court before which the bankruptcy or receivership proceedings is pending authorizing the trustee or receiver to prosecute such appeal.
(Code 1956, § 62-32)

Sec. 150-120. Assessment of tax shown on return; notice upon improper, etc., payment; protest of assessment.

(a) Whenever a taxpayer files returns and computes the amount of any tax due, such tax together with any penalty and interest due or accruing thereon, whether computed or not, shall be considered assessed and shall be entered by the collector as an assessment in his official records without the necessity of observing the delays or giving the notice ordinarily required prior to assessment.

(b) If the taxpayer fails to accompany his return with a proper payment the director of the department of finance shall immediately send a notice by mail to such person, addressed to the address appearing on the return or to any available address if no address appears, informing him of the amount due or the balance of the amount due if a partial payment has been made and demanding payment of such amount within ten calendar days from the date of notice. If payment has not been received at the expiration of such time, the assessment shall be collectible by distraint and sale as is hereinafter provided.

(c) Nothing in this section shall be construed as denying the right of the taxpayer to pay the assessment under protest or to claim a refund of the assessment after payment, all in the manner as set out in this chapter.
(Code 1956, § 62-33)

Secs. 150-121—150-150. Reserved.

DIVISION 2. TAX REVIEW COMMITTEE*

Sec. 150-151. Created; composition; jurisdiction.

(a) In order to provide a body to review, hear and decide, at a minimum of expense to the taxpayer, questions arising from disputes or controversies between a taxpayer and the director of the department of finance of the city in regard to all taxes, other than ad valorem taxes, administered by the director, a tax review committee of three members is hereby created as an independent agency in the executive department of the city government. The composition of such committee shall be as follows:

(1) The city administrative officer or his designated representative;

(2) The director of the department of finance or his designated representative; and

(3) The city attorney or his designated representative.

(b) The jurisdiction of the tax review committee shall extend to all matters relating to appeals for the redetermination of assessments and relating to waiver of penalties.
(Code 1956, §§ 62-47, 62-48)

Sec. 150-152. Rules and regulations.

In all matters regarding conduct of its hearings, the committee may prescribe and promulgate rules and regulations, not inconsistent with the provisions of this chapter, which rules and regulations, when prepared, adopted and promulgated, shall be binding upon all parties litigant in any case over which the jurisdiction of this committee shall extend.
(Code 1956, § 62-49)

Secs. 150-153—150-185. Reserved.

*Cross reference—Boards, committees and commissions, § 2-86 et seq.

DIVISION 3. COLLECTION

Sec. 150-186. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Distraint and *distrain* mean the right to levy upon and seize and sell or the levying upon or seizing and selling of any property or rights to property of the taxpayer including goods, chattels, effects, stocks, securities, bank accounts, evidences of debt, wages, real estate and other forms of property by the director of the department of finance or his authorized assistants for the purpose of satisfying any assessment of tax, penalty or interest due. Property exempt from seizure by articles of the Louisiana Code of Civil Procedure is exempt from distraint and sale herein.
(Code 1956, § 62-35)

Cross reference—Definitions generally, § 1-2.

Sec. 150-187. Collection by distraint and sale—Authorized.

When any taxpayer fails to pay any tax, penalty and interest assessed, the director of the department of finance may proceed to enforce the collection thereof by distraint and sale.
(Code 1956, § 62-34)

Sec. 150-188. Same—Procedure.

Whenever the director of the department of finance or his authorized assistants shall distrain any property of a taxpayer, he shall cause to be made a list of the property or effects distrained, a copy of which, signed by the director or his authorized assistants, shall be sent by registered mail to the taxpayer at his last known residence or business address or served on the taxpayer in person. This list shall be accompanied with a note of the sum demanded and a notice of the time and place where the property will be sold. Thereafter, the director shall cause a notice to be published in the official journal of the city wherein the distraint is made, specifying the property distrained and the time and place of sale. The sale shall be held not less than 15 calendar days from the date of the notice mailed or served on the taxpayer or the date of publication in the official journal, whichever is later. The director may postpone such sale from time to time if he deems it advisable, but not for a time to exceed 30 calendar days in all. If the sale is continued to a new date it shall be readvertised.
(Code 1956, § 62-36)

Sec. 150-189. Same—Surrender of property subject to distraint.

Any person in possession of property or rights to property subject to distraint upon which a levy has been made, shall, upon demand by the director of the department of finance or his authorized assistants making such levy, surrender such property or rights to the director or his authorized assistants unless such property or right is, at the time of such demand, subject to an attachment or execution under any judicial process. Any person failing or refusing to surrender any such property or rights shall be liable to the city in a sum equal to the value of the property or rights not so surrendered, but not exceeding the amount of the taxes, penalties and interest and other costs and charges which are due.
(Code 1956, § 62-37)

Sec. 150-190. Same—Sale of distrained property.

(a) The director of the department of finance or his authorized assistants shall sell at public auction for cash to the highest bidder so much of the property distrained by him as may be sufficient to satisfy the tax, penalties, interest and costs due. He shall give to the purchaser a certificate of sale, which will be prima facie evidence of the right of the director to make the sale and conclusive evidence of the regularity of his proceedings in making the sale and which will transfer to the purchaser all right, title and interest of the taxpayer in and to the property sold.

(b) Out of the proceeds of the sale the director of the department of finance shall first pay all costs of the sale and then apply so much of the balance of the proceeds as may be necessary to pay the assessment. Any balance beyond this shall be paid to the taxpayer.
(Code 1956, § 62-38)

Sec. 150-191. Collection by summary court proceeding—Authorized.

In addition to any other procedure provided elsewhere in this Code and for the purpose of facilitating and expediting the determination and trial of all claims for taxes except ad valorem taxes, penalties, interest, attorney's fees or other costs and charges there is hereby provided a summary proceeding for the hearing and determination of all claims by or on behalf of the city or by or on behalf of the collector for taxes, excises and licenses and for the penalties, interest, attorney fees, costs or other charges due thereon, by preference in all courts, all as follows:

(1) All such proceedings, whether original or by intervention or third opposition or otherwise, brought by or in behalf of the city or by or on behalf of the director of the department of finance for the determination or collection of any tax, excise, license, penalty, attorney fees, costs or other charges claimed to be due, shall be summary and shall always be tried or heard by preference in all courts, original and appellate, whether in or out of term time, and either in open court or chambers, at such time as may be fixed by the court, which shall be not less than two nor more than ten days after notice to the defendant or opposing party.

(2) All defenses, whether by exception or to the merits, made or intended to be made to any such claim must be presented at one time and filed in the court of original jurisdiction prior to the time fixed for the hearing, and no court shall consider any defense unless so presented and filed. This provision shall be construed to deny to any court the right to extend the time for pleading defenses, and no continuance shall be granted by any court to any defendant except for legal grounds set forth in the Louisiana Code of Civil Procedure.

(3) All matters involving any such claim shall be decided within 48 hours after submission, whether in term time or in vacation, and whether in the court of first instance or in an appellate court, and all judgments sustaining any such claim shall be rendered and signed the same day and shall become final and executory on the fifth calendar day after rendition. No new trial, rehearing or devolutive appeal shall be allowed. Suspensive appeal may be granted but must be perfected within five calendar days from the rendition of the judgment by giving of bond, with good and solvent security, in a sum double that of the total amount of the judgment, including costs. Such appeals, whether to a court of appeals or to the supreme court, shall be made returnable in not more than 15 calendar days from the rendition of the judgment.

(4) Whenever the pleadings filed on behalf of the city or on behalf of the collector shall be accompanied by an affidavit of the director of the department of finance or of one of his assistants or representatives or of the counsel or attorney filing the same that the facts as alleged are true to the best of the affiant's knowledge or belief, all of the facts alleged in such pleadings shall be accepted as prima facie true and as constituting a prima facie case, and the burden of proof to establish anything contrary shall rest wholly on the defendant or opposing party.

(Code 1956, § 62-39)

Sec. 150-192. Same—Legal remedy for recovery of protested tax.

(a) A right of action is hereby created to afford a remedy at law for any person aggrieved by the prohibition of courts restraining the collection of tax, penalty, interests or other charges. The person resisting the payment of any amount found due by the director of the department of finance or of enforcement of any provisions of this chapter shall pay the amount found due to the director and, at that time, shall give the director notice of his intention to file suit for the recovery thereof. Upon receipt of this notice, the amount paid shall be segregated and held by the director or his duly authorized representatives for a period of 30 days. If suit is filed within the 30-day period for the recovery of such amount, the funds segregated shall be further held pending the outcome of the suit. If the person prevails, the director shall re-

fund the amount to the claimant with interest at the rate of two percent per annum covering the period from the date such funds were received by the director to the date of refund.

(b) This section shall afford a legal remedy and right of action in any city, state or federal court having jurisdiction of the parties and subject matter for a full and complete adjudication of any and all questions arising in the enforcement of this chapter as to the legality of any tax accrued or accruing or the method of enforcement thereof.

(c) This section shall be construed to provide a legal remedy in the city, state or federal courts, by action at law, in case such taxes are claimed to be an unlawful burden upon interstate commerce or the collection thereof in violation of any act of Congress, the United States Constitution or the constitution of the state or in any case where jurisdiction is vested in any of the courts of the United States.

(d) Upon request of a person and proper showing by such person that the principle of law involved in an additional assessment is already pending before the courts for judicial determination, such person, upon agreement to abide by the decision of the courts, may pay the additional assessment under protest but need not file an additional suit. In such cases the tax so paid under protest shall be segregated and held by the director of the department of finance until the question of law involved has been determined by the courts and shall then be disposed of as therein provided.
(Code 1956, § 62-41)

Sec. 150-193. Tax, interest, etc., to constitute a lien—Property affected; enforcement; recording notice; affect on third parties.

Except as is specifically provided in the laws regulating building and loan associations, any tax, penalty, interest or attorney's fee due under the provisions of this chapter shall operate as a lien, privilege and mortgage on all the property of the tax debtor, both movable and immovable, which such lien, privilege and mortgage shall be enforceable in any court of competent jurisdiction in an action at law or may be enforced as otherwise provided by this chapter. The director of the department of finance may cause notice of such lien, privilege and mortgage to be recorded at any time after the tax becomes due, whether assessed or not and regardless of whether or not then payable, in the mortgage records of any parish wherein the director has reason to believe the tax debtor owns property. The lien, privilege and mortgage created by this section shall affect third parties only from the date of recordation and shall take their respective ranks by virtue of recordation.
(Code 1956, § 62-42)

Sec. 150-194. Same—Conditions for cancellation of lien, etc.

(a) In any case where the tax, penalty or interest secured by a recorded lien, privilege and mortgage have been paid, the director of the department of finance or his authorized assistants or attorneys may authorize the cancellation thereof.

(b) In other cases, the director of the department of finance may authorize the cancellation or release of a lien, privilege or mortgage subject to the following terms and conditions:

(1) The director, upon application of a taxpayer, may authorize the cancellation of any lien, privilege or mortgage or other encumbrance recorded by virtue of this chapter provided the taxpayer furnishes a surety bond in favor of the director executed by a surety company duly qualified to do business in this state in an amount of not less than 1½ times the amount of the obligation due, including penalties, interest and other costs incurred.

(2) Subject to approval by the tax review committee, the director may authorize the release of any real property from the effect and operation of any lien, privilege, mortgage or other encumbrance recorded by virtue of this chapter, provided, that the director is satisfied that the remaining real property belonging to the tax debtor and upon which lien, privilege and mortgage bears is valued at not less than the amount of the remaining tax obligation, including all penalties, interest and other costs in-

curred, and the amount of all prior liens upon such property. In determining the value of the remaining property due consideration shall be given to prior ranking encumbrances, if any exist on such property.

(3) Subject to the approval of the tax review committee, the director may issue a certificate of release of any part of the property subject to any lien, privilege, mortgage or other encumbrance recorded by virtue of this chapter if there is paid over to the director in part satisfaction of liability an amount determined by the director which shall not be less than the value of the interest of the city in the part to be so released.

(Code 1956, § 62-43)

Sec. 150-195. Prescription of taxes, licenses, etc.—Against city generally.

There shall be no prescription running against any city tax, license, excise, interest, penalty or other charge levied under this chapter except that ordained in the constitution of the state.
(Code 1956, § 62-44)

Sec. 150-196. Same—Interruption or suspension.

(a) The prescription running against any city tax, license, excise, interest, penalty or other charge shall be interrupted by:

(1) The director of the department of finance's action in assessing any such amounts in the manner provided by law.

(2) The filing of a summary proceeding in court.

(3) The filing of any pleadings, either by the director or by a taxpayer, with the tax review committee or any state or federal court.

(4) The filing of a false or fraudulent return.

(b) The running of such prescription may also be suspended for a time not to exceed three years by means of a written agreement between the taxpayer and the director, made prior to the elapse of the prescriptive period set out in the constitution of the state.
(Code 1956, § 62-45)

Sec. 150-197. Prescription of assessments as judgments.

Any tax, penalty, interest or other charges duly assessed under this chapter, being the equivalent of a judgment, shall not be subject to the running of any prescription other than such prescription as would run against a judgment in favor of the city in accordance with the constitution and laws of this state, and the recordation of such assessment shall have the same effect as the recordation of a judgment.
(Code 1956, § 62-46)

Secs. 150-198—150-240. Reserved.

ARTICLE IV. AMUSEMENT TAX*

DIVISION 1. GENERALLY

Sec. 150-241. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Admission includes all amounts paid for admission, season tickets, refreshments, service and merchandise at any of the establishments set forth in section 150-276 or other similar place furnishing a public performance; provided, however, that payments for merchandise shall not be considered "admission" when a separate, bona fide admission has been paid to gain access to the facility or event. The term admission is further defined to include any basic membership fee, when that fee entitles the member to attend or participate in any event or facility which is otherwise taxable under section 150-276 and any

*__Cross reference—__Amusements and entertainments, ch. 14.

__State law reference—__Authority, R.S. 4:41 et seq.

charge or fee for the purpose of self-participation in any amusement activity as outlined in section 150-276.

Exhibition includes, but is not limited to, zoological, aquatic and botanical exhibitions.

Production includes, but is not limited to, in addition to those amusements specifically listed in section 150-276, any entertainment provided on the premises by a disc jockey or similar entertainer and any audiovisual production, wherever shown, which is obtained by payment of a rental fee, subscription or similar charge, including but not limited to cable or satellite TV subscriptions and rental of videotapes, video games and computer games. When a production provided by cable or satellite TV subscription is presented in a public place, the amusement tax shall be levied only on the cost of the subscription or rental fee of the cable or satellite TV production but shall not be assessed on the purchases made by consumers in the facility where the cable or satellite TV production is being shown.

Steamer includes boats or vessels whether or not self-propelled and regardless of power source.
(Code 1956, § 6-3; M.C.S., Ord. No. 16,484, 5-5-94; M.C.S., Ord. No. 18,692, § 1, 4-16-98)

Cross reference—Definitions generally, § 1-2.

State law reference—Admission defined, R.S. 4:44.

Sec. 150-242. Permits required.

Every person engaged in any of the businesses described in this article is required to obtain from the city through the department of finance a permit to conduct such business. This permit shall issue of right and without charge and shall be continuous and shall remain in force and effect unless and until surrendered or revoked and such permits shall be revoked only for failure to pay the tax within the time stipulated herein or after the holder has been convicted of violating any of the other provisions of this article, or has had judgment rendered against him in a civil action for violating any of the provisions of this article. Owners of places where dances or amusements are allowed to take place shall notify the department by letter 24 hours before such entertainment takes place. The failure of the owner who has leased or donated such place so to notify the department shall be considered a violation of this article, and such person shall be personally liable for the payment of the tax and penalties.
(Code 1956, § 6-6)

State law reference—Collection of tax, R.S. 4:42.

Sec. 150-243. Exemptions.

No tax shall be levied under this article with respect to any admissions:

(1) To any event held in the Louisiana Superdome or the New Orleans Arena;

(2) To any church fair, church card or lotto party, church lecture, church picnic, or any religious festival, all of the proceeds of which inure to the benefit of a religious institution;

(3) To any charitable benefit, the proceeds of which inure exclusively to the benefit of charitable institutions.

(4) Charged the students or members of the faculty of any school or university which charges an admission fee in connection with the activities of the school or university; nor shall any tax be levied in respect to free passes issued by such school or university.

(5) Of $0.10 or less charged children under the age of 12.

(6) To any establishment with live music having a capacity of 1,000 persons or less only while live music is being performed.

(Code 1956, § 6-4; M.C.S., Ord. No. 16,542, 7-7-94; M.C.S., Ord. No. 17,497, §§ 1, 2, 4-18-96; M.C.S., Ord. No. 18,692, § 2, 4-16-98; Ord. No. 20, 655, § 1, 5-2-02; Ord. No. 20,874, § 2, 10-10-02)

State law reference—Similar provisions, R.S. 4:43.

Secs. 150-244—150-275. Reserved.

DIVISION 2. IMPOSITION

Sec. 150-276. Tax imposed.

There is hereby levied a tax for the purpose of providing funds for public and quasipublic charitable institutions operated by the department of human services and, upon a surplus of such

funds, to human services programs as determined by the council as authorized by R.S. 4:41 through 4:45. The tax shall be two percent on the gross receipts representing admission charges to any

theatre, motion picture house, athletic contest, exhibition, pageant, productions, demonstration, flower show, concert, musicale, recital, circus, freak show, minstrel show, lecture, address, nightclub, cabaret, dance, dancehall; restaurant which provides either floor show, singing, dancing or dancing facilities to patrons; excursion and sightseeing steamer which receives and discharges passengers in the same parish or municipality; aviation pleasure ride that takes on and discharges passengers in the same parish or municipality; scenic railway, flying horse or merry-go-round, shooting gallery and any game of skill and chance as well as all mechanical devices operated for pleasure or skill where a fee is charged for admission or entrance or for the purpose of playing them or whether there is any charge whatever for them or in connection with them either directly or indirectly or where admission is had by a season ticket or membership.

(Code 1956, § 6-1; M.C.S., Ord. No. 18,692, § 3, 4-16-98)

State law reference—Similar definition of admission, R.S. 4:44.

Sec. 150-277. Taxes on mechanical machines and devices.

(a) Owners or operators of amusement parks situated either on public or private property, where there are located mechanical rides or devices; and owners or operators of pinball machines, mechanical music boxes, coin-operated games and any and all other games which are played for skill or amusement, may, in lieu of the payment of the prescribed amusement tax on the mechanical rides, devices, or pinball machines, mechanical music boxes, coin-operated games and any and all other games which are played for skill or amusement as stated in section 150-276, pay an operator's license fee as follows:

(1) Mechanical ride or rides or devices, fun houses, mirror mazes, and any other amusement rides, each, $500.00 per annum/or any portion thereof one-half for six months or less.

(2) Arcades containing coin-operated machines operated as a unit under one roof and operated only on a seasonal basis of six months or less, per arcade for each six months or less operation $250.00.

(3) Owners of any coin-operated amusement machine or machines and/or music machines, specifically, coin-operated phonograph, coin-operated bowling games, shuffle alleys, pinball games, mechanical baseball games, electronic ray guns, mechanical guns, digger-type machines, iron claws and all similar types of coin-operated amusement games or any combination thereof shall pay an annual fee as follows:

a.	1 through 5, games, machines or devices.....	$ 100.00
b.	6 through 50, games, machines or devices...	300.00
c.	51 through 100, games, machines or devices...	500.00
d.	101 or more games, machines or devices.....	1,000.00

(4) Owners or operators of all pin games, iron claws, diggers and any coin-operated amusement machines that require a federal tax and where a merchandise prize may be awarded for skillful playing, the tax on each machine, device or game shall be $50.00 per annum.

(5) Owners or operators of all flippers, pin games, amusement games, bowling games, shuffle alleys, coin-operated baseball games, electronic ray guns, coin-operated phonographs, coin-operated pool and billiard tables, coin-operated kiddie rides, and similar types of coin-operated amusement games, which do not require a federal tax, the tax on each machine, device or game shall be $10.00 per annum.

(b) Such fee to be paid in advance to bureau of revenue, department of finance.

(Code 1956, § 6-1.1)

State law reference—Similar provisions, R.S. 47:359(D).

Sec. 150-278. When persons admitted free or at reduced rates.

In the case of persons admitted free or at reduced rates to any place at a time when and

under circumstances which an admission charge is made to other persons, an equivalent tax shall be collected based on the price so charged to such other persons for the same and similar accommodations, to be paid by the person so admitted.
(Code 1956, § 6-2)

Sec. 150-279. Tax not to be assumed by seller.

The tax authorized in this article shall not be assumed by the person or entity providing the amusement, and it shall be mandatory on that person or entity to collect such tax from the purchaser for remittance to the department of finance.
(Code 1956, § 6-5)

State law reference—Similar provisions, R.S. 4:42.

Sec. 150-280. Printers of tickets to give notice to department.

When tickets or cards of admission are printed, manufactured or sold by any person, such person shall give prompt notice to the department of finance. Such notice shall state:

(1) The name and address of the person to whom the tickets are furnished; and

(2) The number of tickets furnished and shall be accompanied by proofs or sample copies of the tickets themselves.

If the tickets are serially numbered, the notice shall also contain a statement as to such serial numbers.
(Code 1956, § 6-9)

Secs. 150-281—150-310. Reserved.

DIVISION 3. COLLECTION

Sec. 150-311. Charge and tax to be posted and printed on tickets.

Whenever the tax authorized by this article is collected by any theatre or motion picture house or at any other place of amusement where the admission price is advertised, the amount of the admission charge, the amount of the tax and the total of both must be specifically set out on a placard or notice of admission charge and such placard or notice must be posted at each box office window. The price and the tax to be paid by the person paying for admission shall be conspicuously and indelibly printed, stamped or written on the face or back of that part of the ticket or card of admission which is to be taken up by the management of the theatre or other place of amusement.
(Code 1956, § 6-7)

Sec. 150-312. Violation a misdemeanor.

Whoever sells an admission ticket or card on which the name of the vendor and price is not printed, stamped or written thereon as required by section 150-311 or whoever advertises or collects in the guise of an amusement tax, a sum in excess of the amusement tax actually due is guilty of a misdemeanor.
(Code 1956, § 6-8)

Sec. 150-313. Daily, monthly or quarterly reports.

Every person subject to the terms of section 150-276 shall, at the end of each business day, report to the department of finance of the city a statement of the day's business together with a remittance of the tax due the city by certified check, post-office or express money order or cash, except that a person engaged in a permanently established business in the city, operated at least six days of each week, shall make reports of the previous month's business on or before the 20th day of the following month. However, whenever the taxes due hereunder from such person average less than $100.00 per month and the person's annual gross sales are less than $250,000.00, the taxes hereunder shall be due and payable quarterly by the person, and the return required from the person for the quarter shall be filed on or before the 20th day of the first month of the next succeeding quarter. Any person who is required to file tax returns on a quarterly basis, as provided above, may file his returns and pay the tax on a monthly basis after first having received written approval from the director to do so. Application to file monthly must be furnished to the director in writing and will set forth complete justification for the shorter reporting period. Such reports, whether filed monthly or quarterly, must be ac-

companied by a certified check, post-office or express money order or cash for the amount of tax due as indicated by the report. The daily, monthly or quarterly report rendered to the department shall be on forms prescribed and furnished by the department and shall be signed by the taxpayer or his duly authorized representative. Such signature shall constitute a warranty on the part of the person signing the report that he has read and examined it and that, to the best of his knowledge and belief, the statement and figures therein contained are true, correct and complete.
(Code 1956, § 6-10; M.C.S., Ord. No. 16,483, 5-5-94; M.C.S., Ord. No. 17,096, § 1, 6-15-95)

Sec. 150-314. Inspection of records.

In order that the department of finance may have additional means of checking and verifying the accuracy of such reports, all the records, books and other documents of those making such reports as required by section 150-313 shall be open for inspection by the department at all reasonable hours for a period of at least three years from the date the tax becomes due. Lessors or other persons from whom motion picture films are leased or obtained shall keep their records accessible to the department in the same manner as the lessees or those who obtain motion picture films.
(Code 1956, § 6-11)

Sec. 150-315. Use of proceeds of tax.

(a) All moneys derived from the amusement tax including interest accrued on the excess revenues over expenditures imposed by this article shall be used solely for public and quasi-public charitable institutions operated by the department of welfare, and upon a surplus of such funds, to human service programs, as determined by the council. The funds shall be deposited in the general fund and shall be expended in accordance with this article, as provided by R.S. 4:45.

(b) The city board of welfare shall make recommendations to the council as to the use of any surplus funds, including the type of human service programs which should receive such funds prior to determination by the council of the disposition of such funds.
(Code 1956, § 6-12)

Cross reference—Board of welfare, § 2-106 et seq.

Sec. 150-316. Authority vested in council as to enforcement.

To further enforce the collections of the taxes due under this article, independent and in addition to the enforcement of the criminal penalties herein provided for under section 150-317, the council is hereby vested with authority, on motion in a court of competent jurisdiction, to include in a rule against the dealers, to show cause in not less than two or more than ten days, exclusive of holidays, after service thereof, which may be tried out of term and in chambers, and shall always be tried by preference, why such dealers should not be enjoined and restrained from further pursuit of the business operated under this article; and in case such rule is made absolute, the order thereon rendered shall be considered a judgment in favor of the city, prohibiting, restraining and enjoining the dealer from further pursuit of the business until such time as he has paid the delinquent tax, penalties, attorney's fees and costs, and every violation of the injunction shall be considered as a contempt of court and punishable according to law.
(Code 1956, § 6-12.1)

Sec. 150-317. Penalties.

If any tax due under this article is not paid within the time prescribed herein it shall become delinquent and the tax debtor shall be subject to a penalty of 20 percent on the amount of the tax and ten percent attorney's fees on both tax and penalty in all cases wherein an attorney is called on to assist in the collection. As a further penalty, any person signing and filing a daily or monthly report subsequently found to be grossly incorrect, false or fraudulent or violating any of the other provisions of this article shall be guilty of a misdemeanor.
(Code 1956, § 6-13)

Secs. 150-318—150-365. Reserved.

ARTICLE V. DOCUMENTARY TRANSACTION TAX

DIVISION 1. GENERALLY

Sec. 150-366. Levy, when due, collection.

(a) A tax is hereby levied on the execution by the parties to any instrument, act, writing or document creating, transferring, alienating, leasing, or otherwise affecting any right in or to immovable property located in the parish.

(b) The tax shall not be due and collectible unless and until the instrument, act, writing, or document shall have been recorded in the public records of the recorder of conveyances and/or the recorder of mortgages. The tax shall be paid by the seller or transferor of immovable property or the use thereof in the case of an act of cash sale, donation or other transfer of immovable property which transfer contains no vendors lien or mortgage; by the mortgagor in a credit transaction affecting immovable property which transaction does not involve the transfer of title to immovable property; by the seller or transferor in a sale or resale through a savings and loan association or sale and concurrent mortgage; and by the person recording the instrument, act, writing or document in the case of a lease affecting immovable property; and shall be collected and remitted to the department of finance by each such person or his designee. Such seller, transferor, mortgagor or person recording a lease instrument, act, writing or document shall be designated the taxpayer.
(Code 1956, § 17A-1(1))

Sec. 150-367. Penalties for delinquency, filing false returns.

If any tax due under this article is not remitted within the time prescribed herein, it shall be delinquent; and the taxpayer, in addition to being liable for the tax due plus interest, shall be subject to a penalty of 20 percent of the amount of the tax plus interest at the rate of ten percent per annum, or $500.00, whichever is greater, and ten percent of the attorney's fee on the tax, interest, and penalty due in all cases wherein an attorney is required to assist in the collection; provided, however, that the penalties and interest imposed herein shall be waived if payment of the tax is received within 45 days of the date of the first notice of delinquency from the department of finance. As a further penalty, any taxpayer signing and filing a return subsequently found to be grossly incorrect, false or fraudulent or violating any of the other provisions of this article shall be guilty of a misdemeanor.
(Code 1956, § 17A-6; M.C.S., Ord. No. 17,064, § 1, 6-1-95)

Sec. 150-368. Limitations.

The levy, payment or failure to pay the tax required by this article shall not affect, nor be construed as impairing or affecting any rights or obligations created or governed by the civil laws of persons, property and obligations, and in no instance shall any immovable property involved in any transaction be construed to be subject to any lien or encumbrance by virtue of the failure to pay the tax, nor shall this article affect or alter or be construed by any person as affecting or altering the duties and powers of any constitutional parochial official.
(Code 1956, § 17A-2)

Sec. 150-369. Exemptions.

The following instruments, acts, writings or documents shall be exempt from the provisions of this article and the tax imposed thereby:

(1) Leases of an immovable property for single residential purposes;

(2) Acts of correction;

(3) Declarations of homestead;

(4) Declarations of paraphernality;

(5) Tax liens;

(6) Minor's mortgages;

(7) Materialmen's and laborers' liens;

(8) Transfer of cemetery plots;

(9) Sheriff's process verbal in foreclosures;

(10) Sheriff's deed in foreclosures;

(11) Dation en paiments;

(12) Judgments of possession or affidavits for small succession, in accordance with the provisions of article 3431 of the Louisiana Code of Civil Procedure;

(13) Money judgments;

(14) Notices of lis pendens;

(15) Assignments of mortgages notes;

(16) All sales and/or mortgages by nonprofit housing corporations domiciled in the city which are exempt from income tax pursuant to Internal Revenue Service rules, including the Finance Authority of New Orleans, provided that the purchaser or mortgagor is certified as being of low or moderate income and the mortgage note is payable to the nonprofit housing corporation;

(17) Cancellations of all inscriptions;

(18) Quitclaims;

(19) Exchange of property for public purposes to which the city is a party;

(20) Partition or settlement of community property between spouses or former spouses;

(21) All documents recorded in foreclosure proceedings;

(22) Tax sales and redemptions;

(23) Amendment to a mortgage wherein the interest rate and/or term of payment is readjusted;

(24) Assignment of a lease;

(25) Judgments nullifying sales of property;

(26) Judgments confirming tax titles;

(27) Transactions involving the parish school board;

(28) Acts of donation of vacant and abandoned immovable property to an organization which is exempt from income tax pursuant to Internal Revenue Service rules, or to a church which has been established in the community for a minimum period of five years, provided that the director of health has certified that the donation meets requirements established by the city;

(29) Acts of donation or sale of immovable residential property by an organization which is exempt from income tax pursuant to Internal Revenue Service rules or by a church to a person or family who will live in the property for a minimum period of five years, provided that the property being transferred was received by the organization under the terms of M.C.S., Ordinance Number 15,286 and that the director of health has certified that the requirements of that section have been satisfied;

(30) Sales or donations of residential properties which meet the following criteria:

a. The seller/donor has caused the property to be renovated in compliance with requirements of this Code; and

b. Prior to renovation by the seller/donor, the property had been designated by an agency of the city as vacant, abandoned, uninhabitable, or blighted;

(31) Acts of mortgage in favor of the state entered into for the purpose of posting a property bond, in connection with criminal proceedings, by persons over 65 years of age who fit within the federal definitions of low and/or moderate income;

(32) Transfer between spouses to declare formerly separate property as community property, pursuant to LSA-C.C. art. 2343.1, but does not exempt immovable property which is not the family home or primary residence of the spousal community.

(33) Disaster relief loans to small businesses from the United States Small Business Administration related to the flood which occurred on May 8, 1995.

(34) Disaster relief loans to small businesses from the United States Small Business Administration related to destruction caused by Hurricane Georges during the period September 25—29, 1998.

(35) Disaster relief loans for residences and small businesses from the United States Small Business Administration (SBA), the Louisiana Road Home Program and related bank loans, or other state or federal programs related to destruction caused by Hurricanes Katrina and Rita and subsequent flooding.

(Code 1956, § 17A-7; M.C.S., Ord. No. 16,714, 10-20-94; M.C.S., Ord. No. 16,792, 12-8-94; M.C.S., Ord. No. 17,360, § 1, 12-28-95; M.C.S., Ord. No. 19,386, § 1, 9-16-99; M.C.S., Ord. No. 21770, § 1, 11-18-04; M.C.S., Ord. No. 23060, § 1, 4-3-08; M.C.S., Ord. No. 23939, § 1, 4-8-10)

Sec. 150-370. Administration and enforcement.

(a) The department of finance shall from time to time inspect the registry of public records to ensure compliance with this article. The department of finance shall promulgate rules and regulations for the enforcement and administration of this article within 30 days from the effective date of the ordinance from which this article was derived and may require persons to appear and testify and to produce documents for its inspection under oath.

(b) The director of finance is hereby authorized to engage the services of another public official to effect the collection of the tax levied by this chapter in whole or in part, provided that the commission or other compensation to be paid to such other public official does not exceed three percent of the total collections effected by such other public official.

(Code 1956, § 17A-4; M.C.S., Ord. No. 18,736, § 1, 6-4-98; Ord. No. 20,724, § 1, 5-16-02; M.C.S., Ord. No. 22208, § 1, 5-3-06)

Secs. 150-371—150-390. Reserved.

DIVISION 2. IMPOSITION AND COLLECTION

Sec. 150-391. Taxable transactions.

Except as provided in section 150-392, the tax shall be due and collected upon each transaction involving the recordation of an instrument, act, writing or document covered by this article as follows:

(1) For all sales, mortgages, sales and resales through a financial institution or sales and mortgages deemed to be a single transaction pursuant to section 150-392 and involving only one "single family residence or residential double" the sum of $300.00, it being understood that the term single family residence includes a single unit in residential condominiums and single residential townhouses but does not include timeshare condominiums or townhouses; provided, however, that:

a. For refinancing of an existing mortgage involving only one "single-family" residence [or] residential double on which there is an existing second mortgage funded by the city using urban development action grant or HOME funding, the tax shall be $100.00; and

b. For mortgages involving only one "single family" residence or residential double in which the amount of the mortgage, exclusive of amounts borrowed and used for the purpose of payment of the documentary transaction tax, is $9,000.00 or less, the tax shall be as follows:

i.	For mortgages of less than $3,000.00	$50.00
ii.	For mortgages of $3,000.00 to $6,000.00	100.00
iii.	For mortgages of $6,001.00 to $9,000.00	150.00

c. If a sale or mortgage of a single family residence or residential double exceeds 25 pages, a notarized statement stating that the property is a single family residence or residential double shall be required.

(2) For all other transactions, the sum of $325.00 for each instrument, act, writing

or document up to a maximum of 25 pages, plus an additional tax of $100.00 for each additional page, provided that the total amount of tax for each instrument, act, writing or document shall not exceed the sum of $2,500.00.

(3) For the purposes of this section, a page shall consist of a single sheet of paper measuring no larger than eight and one-half inches by 14 inches printed or written on one side only. If such single sheet of paper is printed on both sides, such shall constitute two pages. If such sheet of paper is larger by more than two percent, the number of pages shall be doubled.

(4) For the further purposes of this section, certificates and researches issued by a state, parish, municipal or federal office and attached to a recorded instrument, act, writing or document shall not be included as a page for the purpose of determining the amount of the tax.

(5) The taxpayer may delegate the function of remitting and paying the tax to the notary public or the attorney handling the transaction; however, the taxpayer shall remain liable for the tax to the city through the department of finance as hereinafter set forth.

(6) Any group of instruments deemed to be a single transaction pursuant to section 150-392, other than as provided in subsection (1), shall be taxed as a single instrument, act, writing or document.

(7) If in a single transaction there is one party who is a seller or transferor and another party who is a borrower, the tax shall be prorated in accordance with subsection 150-392(d).

(8) For all sales of time-share condominium units, whether characterized as sales of an interest in fee simple or right-of-use, by the developer of the time-share condominium the sum of $30.00 for the sale or transfer of each one-fifty-second share of each time-share condominium unit, which sum shall be due upon the sale or transfer of each fractional share of each time-share condominium unit; provided, however, any group of instruments involving sales of time-share condominium units deemed to be a single transaction pursuant to section 150-392 shall be taxed as a single instrument, act, writing or document. For any subsequent sales or transfers of fractional time-shares or interval of a condominium unit by a seller other than the time-share developer, the sum of $300.00 for each such sale or transfer.

(Code 1956, § 17A-1(2); M.C.S., Ord. No. 17,062, § 1, 6-1-95; M.C.S., Ord. No. 18,736, §§ 2, 3, 6-4-98; Ord. No. 20,487, § 1, 12-20-01; Ord. No. 20,527, § 1, 2-7-02; M.C.S., Ord. No. 22208, § 2, 5-3-06)

Sec. 150-392. Determination of transactions subject to tax.

(a) For the purposes of this article, a collection or group of instruments, acts, writings, or document, affecting the same property, executed each by at least one of the parties executing the others, executed on the same day, shall be deemed to be a single transaction.

(b) For the further purposes of this article, a collection or group of instruments, acts, writings or documents affecting the same property, which property is purchased by a land developer or home builder for the specific purposes of a single-family residence for resale to a person for use as a personal residence and to be occupied by such purchaser or for specific purpose of a single-family residence to be occupied by such developer, all documents involved in the development of such property, including, without limitation, sale, credit sale, mortgage, collateral mortgage, construction contract, acceptance of completion or substantial completion and release or cancellation of mortgage, whether or not the documents are executed on the same date, shall be deemed a single transaction and only the sale or credit sale to the person who uses and occupies the single-family residence shall be subject to the tax imposed by this article; provided that all documents related to this initial development of

such property shall occur within a period of three years from the original acquisition of the property by the land developer or home builder to the acquisition and taking of possession and occupancy of the single-family residence by purchaser; and provided further that the property not be sold and then resold by the purchaser prior to the acquisition and taking possession and occupancy of the single-family residence.

(c) For the further purposes of this article, a collection or group of instruments, acts, writings or documents affecting the same residential property, including all documents involved in the interim and permanent financing for the property, shall be considered a single transaction provided that the tax has been paid upon the filing of the documents in connection with the interim financing.

(d) In the case of the execution of an instrument, act, writing, or document, evidencing or embodying a transaction under the terms of which more than one person is obligated to pay the tax provided for in this article, each and every one of such persons shall be obligated, jointly, severally and solidarily with the others, to pay the full tax due.

(e) The taxpayer shall remit the full tax due to the department of finance.
(Code 1956, § 17A-5)

Sec. 150-393. Remittance.

The taxpayer shall, immediately upon filing for record of the instrument, act, writing, or document, in either of the public records offices, remit and pay the tax directly or through the notary public or attorney handling the transaction to the director of the department of finance or to the custodian of notarial records in and for the parish.
(Code 1956, § 17A-3)

Secs. 150-394—150-440. Reserved.

ARTICLE VI. SALES AND USE TAX*

DIVISION 1. GENERALLY

Sec. 150-441. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agricultural commodity means horticultural, viticultural, poultry, farm and range products and livestock and livestock products.

Business includes any activity engaged in by any person or caused to be engaged in by him with the object of gain, benefit or advantage, either direct or indirect. The term "business" shall not be construed to include occasional and isolated sales by a person who does not hold himself out as engaged in business.

Cost price means the actual cost of the articles of tangible personal property without any deductions therefrom on account of the cost of materials used, labor or service cost, except those service costs for installing the articles of tangible personal property if such cost is separately billed to the customer at the time of installation, transportation charges, or any other expenses whatsoever, or the reasonable market value of the tangible personal property at the time it becomes susceptible to the use tax, whichever is less.

(1) In the case of tangible personal property which has acquired a state tax situs and is thereafter transported outside the state for repairs performed outside the state and is thereafter returned to the state, the cost price shall be deemed to be the actual cost of any parts and/or materials

*__Const. law reference—__Sales and use tax authority, La. Const., art. VI, § 29.

__Cross references—__Amusements and entertainments, ch. 14; businesses, ch. 30; carnival, Mardi Gras, ch. 34; enterprise zones, § 46-86 et seq.; peddlers, solicitors and itinerant vendors, ch. 110; peddlers and itinerant vendors, § 110-46 et seq.; solicitors, § 110-221 et seq.; transient vendors, § 110-256 et seq.; secondhand goods dealers, § 130-36 et seq.; pawnbrokers, § 130-101 et seq.; junkyards, § 130-136 et seq.

used in performing such repairs, if applicable labor charges are separately stated on the invoice. If the applicable labor charges are not separately stated on the invoice, it shall be presumed that the cost price is the total charge reflected on the invoice.

(2) Cost price does not include the supplying and installation of board roads to oil field operators if the installation charges are separately billed to the customer at the time of installation.

(3) In the case of interchangeable components located in the city, a taxpayer may elect to determine the cost price of such components as follows:

a. The taxpayer shall send to the secretary written notice of the calendar month selected by the taxpayer as the first month for the determination of cost price under this subsection (the "first month"). The taxpayer may select any month. The taxpayer shall send to the secretary notice of an election to designate a first month on the first day of the designated first month, or 90 days from July 1, 1990, whichever is later.

b. For the first month and each month thereafter, cost price shall be based and use tax shall be paid only on 1/60 of the aggregate cost price of the interchangeable components deployed and earning revenue within the city during the month, without regard to any credit or other consideration for state, political subdivision, or school board use tax previously paid on such interchangeable components.

c. Any election made under this subsection shall be irrevocable for a period of 60 consecutive months inclusive of the first month. If at any time after the 60-month period the taxpayer revokes its election, no credit or other consideration for use taxes paid pursuant thereto shall be applied to any use tax liability arising after such revocation.

d. For purposes of this subsection, "interchangeable component" means a component that is used or stored for use in measurement-while-drilling instruments or systems manufactured or assembled by the taxpayer, which measurement-while-drilling instruments or systems collectively generate 80 percent or more of their annual revenue from their use outside of the city.

1. "Measurement-while-drilling instruments or systems" means instruments or systems which measure information from a downhole location in a borehole, transmit the information to the surface during the process of drilling the borehole using a wireless technique, and receive and decode the information on the surface.

2. The method for determining cost price of interchangeable components provided for in this subsection shall apply to any use taxes imposed by the city.

(4) Cost price shall not include any amount designated as a cash discount or a rebate by a vendor or manufacturer of any new vehicle subject to the motor vehicle license tax. For purposes of this subsection the term "rebate" means any amount offered by the vendor or manufacturer as a deduction from the listed retail price of the vehicle.

Dealer includes every person who:

(1) Manufactures or produces tangible personal property for sale at retail, for use, or consumption, or distribution or for storage.

(2) Imports, or causes to be imported, tangible personal property from any state or other political subdivision of this state or any

foreign country for sale at retail, for use or consumption, or distribution or for storage to be used or consumed in the city.

(3) Sells at retail, or who offers for sale at retail or who has in his possession for sale at retail or for use, or consumption, or distribution or storage to be used or consumed in the city, tangible personal property as defined herein.

(4) Has sold at retail, or used, or consumed, or distributed or stored for use or consumption in the city tangible personal property and who cannot prove that the tax levied by this chapter has been paid on the sale at retail, the use, the consumption, the distribution or the storage of such tangible personal property.

(5) Leases or rents tangible personal property for a consideration, permitting the use or possession of such property without transferring title thereto.

(6) Is the lessee or rentee of tangible personal property and pays to the owner of such property a consideration for the use or possession of such property without acquiring title thereto.

(7) Sells or furnishes any of the services subject to tax under this article or who is engaged in the collecting the amount required to be paid by a transient guest as a condition of occupancy at a residential location as provided herein. For purposes of this article, dealer shall not include persons leasing apartments of single-family dwellings on a month-to-month basis.

(8) Purchases or receives any of the services subject to tax under this article.

(9) Engages in business in the city.

(10) Sells at retail any tangible personal property to a vending machine operator for resale through coin-operated vending machines.

(11) Makes deliveries of tangible personal property into the city in a vehicle owned or operated by such person.

(12) Engages in regular or systematic solicitation of a consumer market in this city by the distribution of catalogs, periodicals, advertising fliers, or other advertising, or by means of print, radio or television media, by mail, telegraphy, telephone, computer data base, cable, optic, microwave, or other communication system.

The term "dealer" shall not include lessors of railroad rolling stock used either for freight or passenger purposes. However, the term "dealer" shall include lessees, other than a railway company or railroad corporation, of such property and such lessees shall be responsible for the collection and payment of all sales and use taxes.

Diaper means any absorbent diaper or undergarment used for incontinence in adults and any absorbent diaper or undergarment designed to be worn by a child who cannot yet control bladder or bowel movements.

Director means the director of the department of finance of the city or his duly authorized assistants.

Distraint or *distrain* means the right to levy upon and seize and sell, or the levying upon or seizing and selling, any property or rights to property of the delinquent dealer by the officer charged with the collection of the tax for the purpose of satisfying any tax, interest or penalties due under the provisions of this article.

Drugs includes all pharmaceuticals and medical devices which are prescribed for use in the treatment of any medical disease.

Engaging in business in the city means and includes any of the following methods of transacting business: maintaining directly, indirectly, or through a subsidiary, an office, distribution house, sales house, warehouse, or other place of business or by having an agent, salesman, or solicitor operating within the city under the authority of the seller or its subsidiary irrespective of whether such place of business, agent, salesman, or solicitor is located in the city permanently or temporar-

ily or whether such seller or subsidiary is qualified to do business in the city, or any person who makes deliveries of tangible personal property into the city other than by a common or contract carrier.

State law reference—Similar provisions, R.S. 47:301(4)(h).

Feminine hygiene product means tampons, menstrual pads, sanitary napkins, panty liners, menstrual sponges, and menstrual cups, including disposable and washable versions of these items.

Gross sales means the sum total of all retail sales of tangible personal property without any deductions whatsoever of any kind or character, except as provided in this article.

Hotel means and includes any establishment or person engaged in the business of furnishing sleeping rooms, cottages, or cabins to transient guests, where such establishment consists of sleeping rooms, cottages, or cabins at any of the following: (1) a single business location; (2) a residential location, including but not limited to a house, apartment, condominium, camp, cabin, or other building structure used as a residence. For purposes of this article, hotel shall not mean or include any establishment or person leasing apartments or single-family dwellings on a month-to-month basis.

Lease or *rental* means the leasing or renting of tangible personal property and the possession or use thereof by the lessee or rentee, for a consideration, without transfer of the title of such property.

(1) For the purpose of the leasing or renting of automobiles, "lease" means the leasing of automobiles and the possession or use thereof by the lessee, for a consideration, without the transfer of the title of such property for a 180-day period or more. The term "rental" means the renting of automobiles and the possession or use thereof by the renter, for a consideration, without the transfer of the title of such property for a period less than 180 days.

(2) The term "lease or rental," however, shall not mean or include the lease or rental made for the purpose of release or rerental of casing tools and pipe, drill pipe, tubing, compressors, tanks, pumps, power units, other drilling or related equipment used in connection with the operating, drilling, completion, or reworking of oil, gas, sulphur, or other mineral wells.

(3) The term "lease or rental" shall not mean or include a lease or rental of property to be used in performance of a contract with the United States Department of the Navy for construction or overhaul of U.S. Naval vessels.

(4) The term "lease or rental" shall not mean the lease or rental of airplanes or airplane equipment by a commuter airline domiciled in the state.

Off-road vehicle is any vehicle manufactured for off road use which is issued a manufacturer's statement of origin that cannot be issued a registration certificate and license to operate on the public roads of this state because at the time of manufacture the vehicle does not meet the safety requirements prescribed by R.S. 32:1301 through R.S. 32:1310. This includes vehicles that are issued a title only by the vehicle registration bureau, department of public safety and corrections, such as all terrain vehicles and recreational and sport vehicles, but it does not include off-road vehicles used for farm purposes, farm equipment, or heavy construction equipment.

Person includes any individual, firm, copartnership, joint venture, association, corporation, estate, trust, business trust, receiver, syndicate, this state, any parish, city and parish, municipality, district or other political subdivision thereof or any board, agency, group or combination acting as a unit, and the plural as well as the singular number.

Purchaser means and includes any person who acquires or receives any tangible personal property or the privilege of using any tangible personal property or receives any services pursuant to a transaction subject to tax under this article.

Retail sale or a *sale at retail* means a sale to a consumer or to any other person for any purpose, other than for resale, in the form of tangible personal property, and shall mean and include all such transactions as the director of the department of finance, upon investigation, finds to be in lieu of sales; provided that sales for resale must be made in strict compliance with the rules and regulations. Any dealer making a sale for resale, which is not in strict compliance with the rules and regulations shall himself be liable for and pay the tax.

(1) Retail sale or sale at retail shall mean a sale to a consumer or to any other person for any purpose other than for resale in the form of tangible personal property, and shall mean and include all such transactions as the director of the department of finance, upon investigation, finds to be in lieu of sales; provided that sales for resale must be made in strict compliance with the rules and regulations. Any dealer making a sale for resale, which is not in strict compliance with the rules and regulations shall himself be liable for and pay the tax.

(2) Retail sale or sale at retail, for purposes of sales and use taxes imposed on transactions involving the sale for rental of automobiles which take place prior to January 1, 1991, and imposed on transactions involving the lease or rental of tangible personal property other than autos which take place prior to July 1, 1991, means a sale to a consumer or to any other person for any purpose other than for resale in the form of tangible personal property, and shall mean and include all such transactions as the director of the department of finance, upon investigation, finds to be in lieu of sales; provided that sales for resale must be made in strict compliance with the rules and regulations. Any dealer making a sale for resale, which is not in strict compliance with the rules and regulations, shall himself be liable for and pay the tax.

(3) The sale of tangible personal property to a dealer who purchases such property for resale through coin-operated vending machines shall be considered a sale at retail, subject to the tax levied by R.S. 47:302(A) and R.S. 47:321(A). The subsequent resale of the property by the dealer through coin-operated vending machines shall not be considered a sale at retail.

(4) The sale of a vehicle subject to the Vehicle Registration License Tax Law (R.S. 47:451 et seq.) shall be deemed to be a retail sale or a sale at retail:

a. In the city of the principal residence of the purchaser if the vehicle is purchased for private use, or

b. In the city of the principal location of the business if the vehicle is purchased for commercial use, unless the vehicle purchased for commercial use is assigned, garaged, and used outside of such city, in which case the sale shall be deemed a retail sale or a sale at retail in the city where the vehicle is assigned, garaged, and used.

(5) The term "sale at retail" shall include the sale of a pollution control device or system. In order to qualify, the pollution control device or system must demonstrate either: a net decrease in the volume or toxicity or potential hazards of pollution as a result of the installation of the device or system; or that installation is necessary to comply with federal or state environmental laws or regulations.

(6) The term "sale at retail" does not include the sale of:

a. Materials for further processing into articles of tangible personal property for sale at retail or sales of electricity for chlor-alkali manufacturing processes; or an isolated or occasional sale of tangible personal property by a person not engaged in such business.

b. Any human tissue transplants, which shall be defined to include all human organs, bone, skin, cornea, blood, or blood products transplanted from one individual into another recipient individual.

c. Raw agricultural commodities, including but not limited to feed, seed, and fertilizer, to be utilized in preparing, finishing, manufacturing, or producing crops or animals for market.

d. Corporeal movable property which is intended for future sale to the United States government or its agencies, when title to such property is transferred to the United States government or its agencies prior to the incorporation of that property into a final product.

e. Food items by youth serving organizations chartered by congress.

f. A new school bus or a used school bus which is less than five years old by an independent operator, when such bus is to be used exclusively in a public school system.

g. Tangible personal property to food banks, as defined in R.S. 9:2799.

h. Airplanes or airplane equipment or parts to a commuter airline domiciled in the state.

i. State manufactured or assembled passenger aircraft with a capacity in excess of 50 persons, if, after all transportation, including transportation by the purchaser, has been completed, the aircraft is ultimately received by the purchaser outside of the state.

j. Pelletized paper waste when purchased for use as combustible fuel by an electric utility or in an industrial manufacturing, processing, compounding, reuse, or production process, including the generation of electricity or process steam, at a fixed location in this city. However, such sale shall not be excluded unless the purchaser has signed a certificate stating that the fuel purchased is for the exclusive use designated herein. For purposes of this definition, pelletized paper waste means pellets produced from discarded waste paper that has been diverted or removed from solid waste which is not marketable for recycling and which is wetted, extruded, shredded, or formulated into compact pellets of various sizes for use as a supplemental fuel in a permitted boiler.

k. Equipment used in firefighting by bona fide volunteer fire departments.

l. Materials for further processing into articles of tangible personal property for sale at retail; or an isolated or occasional sale of tangible personal property (other than a vehicle to be used on the public streets or highways) by a person not engaged in such business.

Retailer means and includes every person engaged in the business of making sales at retail, or for distribution, or use or storage or consumption to be used or consumed in this city.

Sale means any transfer of title or possession, or both, exchange, barter, conditional or otherwise, in any manner or by any means whatsoever of tangible personal property for a consideration, and includes the fabrication of tangible personal property for consumers who furnish, either directly or indirectly, the materials used in fabrication work and the furnishing, preparing or serving, for a consideration, of any tangible personal property consumed on the premises of the person furnishing, preparing or serving such tangible personal property. A transaction whereby the possession of property is transferred but the seller retains title as security for the payment of the price shall be deemed a sale.

Sale of services means and includes the following:

(1) The furnishing of sleeping rooms, cottages or cabins by hotels.

(2) The sale of admissions to places of amusement, to athletic entertainment other than that of schools, colleges, and universities and recreational events and the furnishing for dues, fees or other consideration of the privilege of access to clubs or the privilege of having access to or the use of amusement, entertainment, athletic or recreational facilities.

a. Sale of services does not include membership fees or dues of nonprofit, civic organizations, including by way of illustration and not of limitation the Young Men's Christian Association, the Catholic Youth Organization, the Young Women's Christian Association, the Zulu Social Aid and Pleasure Club and the Jewish Community Center.

b. Places of amusement shall not include museums, which are hereby defined as public or private nonprofit institutions which are organized on a permanent basis for essentially educational or aesthetic purposes and which use professional staff to do all of the following:

1. Own or use tangible objects, whether animate or inanimate.
2. Care for those objects.
3. Exhibit them to the public on a regular basis.

c. Museums include, but are not limited to, the following institutions:

1. Museums relating to art, history, including historic buildings, natural history, science, and technology.
2. Aquariums and zoological parks.
3. Botanical gardens and arboretums.
4. Nature centers.
5. Planetariums.

(3) The furnishing of storage or parking privileges by auto hotels and parking lots.

(4) The furnishing of printing or overprinting, lithographic, multilith, blueprinting, photostating or other similar services of reproducing written or graphic matter.

(5) The furnishing of laundry, cleaning, pressing and dyeing services, including by way of extension and not of limitation, the cleaning and renovation of clothing, furs, furniture, carpets and rugs and the furnishing of storage space for clothing, furs and rugs.

(6) The furnishing of cold storage space and the furnishing of the service of preparing tangible personal property for cold storage when such service is incidental to the operation of storage facilities.

(7) The furnishing of repairs to tangible personal property, including by way of illustration and not of limitation, the repair and servicing of automobiles and other vehicles, electrical and mechanical appliances and equipment, watches, jewelry, refrigerators, radios, shoes and office appliances and equipment. Repairs as contemplated by this paragraph does not include restoration of paintings or other works of art performed by a professional art conservator. Charges for the furnishing of repairs to tangible personal property may be excluded from sale of services when the repaired property is delivered to the customer in another state either by common carrier or the repair dealer's own vehicle, however, as to aircraft, delivery may be by the best available means. Offshore areas shall not be considered another state for the purpose of this subsection.

(8) For the purposes of this definition, tangible personal property shall include machinery, appliances, and equipment which have been declared immovable by declaration

under the provisions of article 467 of the Louisiana Civil Code, and things which have been separated from land, buildings, or other constructions permanently attached to the ground or their component parts as defined in Article 466 of the Civil Code.

(9) The furnishing of telecommunication services for compensation.

a. Except as otherwise provided in this subsection, the term "telecommunication services" means:

1. Local telephone service, private communication service, toll telephone service, including such service provided by alternate operator service providers, and teletypewriter or computer exchange service.

2. Cellular mobile telephone or telecommunication service, specialized mobile radio or paging service, and any other form of mobile or portable one-way or two-way communication.

3. Charges for the connection of or change to any of the services described in subsections (9)a.1 and 2 of this definition.

b. The term "telecommunication services" shall not include:

1. Telecommunication services paid for by inserting coins in coin-operated telephones available to the public.

2. Any excise, franchise, or similar tax or like fee or assessment levied by the city upon the purchase, sale, use, or consumption of any telecommunication services, which tax, fee, or assessment is collected by the seller from the purchaser.

3. Any interstate telecommunication services, or any telecommunication services for which rates are approved by or subject to approval by the Federal Communications Commission, including interstate subscriber line charges.

4. The furnishing of any telecommunication services for resale, including charges for the use of intercompany facilities pursuant to shared network facility arrangements, access charges paid by intrastate or interstate interexchange telecommunications carriers and interconnection charges paid by providers of cellular, mobile, and paging telecommunication services, provided that any dealer making a sale of telecommunication services for resale shall obtain a certificate from the purchaser of such services certifying that such services are purchased for the purpose of resale, the form of the certification to be determined by rules and regulations to be promulgated by the director of the department of finance.

5. Services or transactions defined in this subsection among entities classified as members of an affiliated group as provided by federal law (26 U.S.C. § 1504), provided, however, that these provisions shall not apply to any services that would have been taxable under this article as it existed on October 1, 1990.

6. Information and data services, including storage of data or information for subsequent retrieval, the retrieval of data or information, or the processing, or reception and processing, of data or information intended to change its form or content.

c. For the purposes of this subsection, the following definitions shall apply:

1. The term "local telephone service" means the access to a local telephone system and the privilege of telephonic-quality communication with substantially all persons having telephone or radio telephone stations constituting a part of such local telephone system.

2. The term "teletypewriter or computer exchange service" means the access from a teletypewriter, telephone, computer, or other data station and the privilege of intercommunication by such station with substantially all persons having teletypewriter, telephone, computer, or other data stations constituting a part of the same teletypewriter or computer exchange system. The term "teletypewriter or computer exchange service" does not include the storage of data or information for subsequent retrieval, the retrieval of data or information, or the processing, or reception and processing, of data or information intended to change its form or content.

3. The term "toll telephone service" means a telephonic-quality communication for which there is a toll charge that varies in amount according to the distance and elapsed transmission time of each individual communication; or a service that entitles the subscriber or user, upon the payment of a periodic charge that is determined as a flat amount or upon the basis of total elapsed transmission time, or upon some combination thereof, to the privilege of an unlimited number of telephonic communications to or from all or a substantial portion of the persons having telephone or radio telephone stations in a specified area which is outside the local telephone system area in which the station provided with this service is located. The term "toll telephone service" includes intrastate wide-area telephone service charges.

4. The term "private communication service" means a communication service furnished to a regular subscriber or user that entitles the subscriber or user to exclusive or priority use of a communication channel or group of channels, or to the use of an intercommunication system for the subscriber's stations, regardless of whether such channel, groups of channels, or intercommunication system may be connected through switching with a service described in subsection (9)c.1, 2, or 3 of this definition; switching capacity, extension lines, and stations, or other associated services which are provided in connection with, and which are necessary or unique to the use of, channels or systems described in this clause; or the channel mileage which connects a telephone station located outside a local telephone system area with a central office in such local telephone system.

5. The term "alternate operator service provider" means any reseller of toll telephone service, as defined in subsection (9)c.3 of this definition, that provides

live or mechanical operator assistance to the end user of such toll telephone service.

(10) The term "sale of service" shall not include an action performed pursuant to a contract with the United States Department of the Navy for construction or overhaul of U.S. Naval vessels.

Sales price means the total amount for which tangible personal property is sold, less the market value of any article traded in, including any services, except services for financing, that are a part of the sale valued in money, whether paid in money or otherwise, and includes the cost of materials used, labor or service costs, except costs for financing which shall not exceed the legal interest rate and a service charge not to exceed six percent of the amount financed and losses, provided that cash discounts allowed and taken on sales shall not be included nor shall the sales price include the amount charged for labor or services rendered in installing, applying, remodeling or repairing property sold. The term "sales price" shall not include the following:

(1) Any amount designated as a cash discount or a rebate by the vendor or manufacturer of any new vehicle subject to the motor vehicle license tax. For purposes of this subsection rebate means any amount offered by a vendor or manufacturer as a deduction from the listed retail price of the vehicle.

(2) The first $50,000.00 of the sale price of new farm equipment used in poultry production.

Storage means and includes any keeping or retention in this city of tangible personal property for use or consumption in this city, provided that storage in the regular course of business of tangible personal property which is held for sale and delivery, use, or installation in an unknown location shall become taxable only when it has been determined that delivery, use, or installation will occur in the city.

Tangible personal property means and includes personal property which may be seen, weighed, measured, felt or touched, or is in any other manner perceptible to the senses. The term "tangible personal property" shall not include:

(1) Stocks, bonds, notes, or other obligations or securities.

(2) Gold, silver, or numismatic coins, or platinum, gold, or silver bullion having a total value of $1,000.00 or more.

(3) Proprietary geophysical survey information or geophysical data analysis furnished under a restricted use agreement even though transferred in the form of tangible personal property.

(4) Repair of a vehicle by a licensed motor vehicle dealer which is performed subsequent to the lapse of the applicable warranty on that vehicle and at no charge to the owner of the vehicle. For the purpose of assessing a sales and use tax on this transaction, no valuation shall be assigned to the services performed or the parts used in the repair.

Use means and includes:

(1) The exercise of any right or power over tangible personal property incident to the ownership thereof, except that it shall not include the sale at retail of that property in the regular course of business, or the donation to a school in the state which meets the definition provided in R.S. 17:236 or to a public or recognized independent institution of higher education in the state of property previously purchased for resale in the regular course of a business.

(2) The exercise of any right or power over tangible personal property incident to the ownership thereof, except that it shall not include the sale at retail of that property in the regular course of business or the donation to a school in the state which meets the definition provided in R.S. 17:236 or to a public or recognized independent institution of higher education in the state of property previously purchased for resale in the regular course of a business.

(3) For purposes of sales and use taxes imposed on the use for rental automobiles which take place prior to January 1, 1991, and imposed on the use for lease or rental of tangible personal property other than automobiles which take place prior to July 1, 1991, includes the purchase, the importation, the consumption, the distribution, or the storage of tangible personal property to be leased or rented in an arm's length transaction as tangible personal property.

(4) Notwithstanding any other law to the contrary, for purposes of the imposition of the sales and use tax, the use of a vehicle subject to the Vehicle Registration License Tax Law (R.S. 47:451 et seq.) shall be deemed to be a use:

a. In the city of the principal residence of the purchaser if the vehicle is purchased for private use, or

b. In the city of the principal location of the business if the vehicle is purchased for commercial use, unless the vehicle purchased for commercial use is assigned, garaged, and used outside of the city, in which case the use shall be deemed a use in the city where the vehicle is assigned, garaged, and used.

Use tax includes the use, consumption, distribution, and storage. No use tax shall be due to or collected by the city on tangible personal property used, consumed, distributed, or stored for use or consumption in the city if the sale of such property would have been exempted or excluded from sales tax at the time such property became subject to the taxing jurisdiction of the city.
(Code 1956, §§ 56-1—56-20.1; M.C.S., Ord. No. 18,656, § 1, 3-19-98; M.C.S., Ord. No. 26972, § 1, 7-14-16; M.C.S., Ord. No. 27211, § 1, 12-1-16; M.C.S., Ord. No. 28462, § 1, 8-20-20, eff. 10-1-20)

Cross reference—Definitions generally, § 1-2.
State law reference—Similar provisions, R.S. 47:301.

Sec. 150-442. Explanation of article in layman's terms.

(a) It is in the public interest that information be made available to persons responsible for remitting the sales and use taxes imposed by this article in a form which they readily understand.

(b) The department of finance shall annually issue pamphlets and an instruction book clearly explaining the sales and use taxes imposed by this article, the remittance and collection procedures followed by the bureau of revenue and the obligations and duties of dealers or persons doing business in the city. The pamphlet should include explanations of the following:

(1) Transactions subject to the tax.

(2) Exemptions to the tax.

(3) Collection of the tax by the dealers.

(4) Remittance of the tax to the city.

(5) Requirements for recordkeeping.

(6) Delinquent collection procedures, interest and penalty provisions and criminal penalties.

(7) Audit and appeal procedures.

(8) Sample forms and instructions.

(9) Other information which may be helpful or informative, including the name and telephone extensions of all bureau personnel responsible for direct assistance to the public.

(c) The city attorney shall review and approve the wording of the explanatory pamphlets and instruction book required by this section or any revision to the material before it is made available to the public. The provisions of this subsection shall not be construed to prevent the release of a draft of the pamphlet to any person pursuant to the Public Records Act.

(d) The pamphlets and instruction book required by this section shall be made available to interested persons within six months of the effective date of the ordinance from which this section was derived.
(Code 1956, § 56-20.2)

Secs. 150-443—150-475. Reserved.

DIVISION 2. ADMINISTRATION*

Sec. 150-476. Authority of director.

The director of the department of finance may carry into effect the provisions of this article and in pursuance thereof may make and enforce such rules as he may deem necessary, subject to the action of the council.
(Code 1956, § 56-103)

Sec. 150-477. Agreement with state collector of revenue.

The director of the department of finance of the city is hereby authorized to enter into an agreement with the collector of revenue of the state, as provided in Act 182 of the Regular Session of the 1962 Legislature, which shall provide for the collection by such collector of revenue, without cost to the city, of the city one percent tax applicable to the sale or use of all vehicles, new or used.
(Code 1956, § 56-103.1)

Sec. 150-478. Cost of enforcement.

The cost of preparing and distributing the report forms and paraphernalia for the collection of the tax and of the inspection and enforcement duties required in this article shall be borne by the revenue produced by this article.
(Code 1956, § 56-104)

State law reference—Similar provisions, R.S. 47:317.

Sec. 150-479. Rules and regulations; forms.

(a) The director may make and publish rules and regulations, not inconsistent with this article or the laws or the constitution of this state or of the United States, for the enforcement of the provisions of this chapter and the collection of the revenues and penalties imposed by this article.

(b) The director shall design, prepare, print and furnish to all dealers or make available to them, all necessary forms for filing returns and instructions to ensure a full collection from dealers and an accounting for the taxes due, but failure of any dealer to secure such forms shall not relieve such dealer from the payment of such taxes at the time and in the manner provided in this article.
(Code 1956, § 56-105)

Sec. 150-480. Regulations for collection of tax.

The director shall, by regulations, prescribe methods or schedules of the amounts to be collected from the purchasers in respect to any receipt upon which a tax is imposed by this article, so as to eliminate fractions of one cent and so that the aggregate collection of taxes by a vendor shall, as far as practicable, equal one percent of the total receipts from the sales and services of such vendor upon which a tax is imposed by this article. Such schedules may provide that no tax need be collected from the purchaser upon receipts below a stated sum, and may be amended from time to time so as to accomplish the purposes of this article; provided, that the actual amount of taxes collected each month by any dealer in accordance with any method or schedule prescribed by the director, as provided in this article, shall be reported and paid to the city, even though the same may exceed one percent of the gross sales of such dealer during such month.
(Code 1956, § 56-106)

Sec. 150-481. Examinations and investigations; penalty.

For the purpose of administering this article, the director, whenever he deems it expedient, may make or cause to be made by any employee of the department of finance an examination or investigation of the place of business, if any, the tangible personal property and the books, records, papers, vouchers, accounts and documents of any dealer. Every dealer and every director, officer, agent or employee of every dealer shall exhibit to the director or to any such employee of the department hereafter referred to as a "deputy,"

*__Cross reference—__Administration, ch. 2.

the tangible personal property and all of the books, records, papers, vouchers, accounts and documents of the dealer and to facilitate any such examination or investigation so far as it may be in his power so to do. A dealer's failure to produce such tangible personal property, books, records, papers, vouchers, accounts, and/or documents after a request by the director or a deputy shall result in a penalty of $100.00 per day each day such materials are not produced for the first 90 days; $200.00 per day between 91—180 days; and $500.00 per day for each day thereafter as determined by the director.
(Code 1956, § 56-107; M.C.S., Ord. No. 27050, § 1, 9-8-16)

Sec. 150-482. Dealer agent of city.

For the purpose of collecting and remitting to the city the tax imposed by this article, the dealer is hereby declared to be the agent of the city.
(Code 1956, § 56-108)

State law reference—Similar provisions, R.S. 47:306(A)(5).

Sec. 150-483. Liability for tax, etc., on transfer of business.

If any dealer liable for any tax, interest or penalty levied under this article shall sell out his business or stock of goods or shall quit the business, he shall make a final return and payment within 15 days after the date of selling or quitting business. His successors or assigns, if any, shall withhold sufficient of the purchase money to cover the amount of such tax, interest and penalty due and unpaid until such time as the former owner shall produce a receipt from the director showing that they have been paid or a certificate stating that no taxes, interest or penalties are due. If the purchaser of a business or stock of goods shall fail to withhold purchase money as above provided, he shall be personally liable for the payment of the taxes, interest and penalties accrued and unpaid on account of the operation of the business by any former owners or assigners.
(Code 1956, § 56-109)

State law reference—Similar provisions, R.S. 47:308.

Sec. 150-484. How notices given.

Any notice required to be given by the director pursuant to this article may be given by personal service on the dealer for whom it is intended or be mailed to the dealer for whom it is intended, addressed to such dealer at the address given in the last report filed by him pursuant to the provisions of this article or, if no report has been filed, then to such address as may be obtainable. The mailing of such notice shall be presumptive evidence of its receipt by the dealer to whom it is addressed.
(Code 1956, § 56-112)

Sec. 150-485. Taking oaths.

The director, or any deputy by him thereunto designated, shall receive the written oath of any person signing any application, deposition, statement or report required by the director in the administration of this article.
(Code 1956, § 56-113)

Sec. 150-486. Conduct hearings, administer oaths, etc.

The director or any deputy by him thereunto designated may conduct hearings and have administered and examined under oath any dealer and the directors, officers, agents and employees of any dealer and any other witnesses relative to the business of such dealer in respect to any matter incident to the administration of this article.
(Code 1956, § 56-114)

Sec. 150-487. Issue of subpoenas for witnesses, books, papers, etc.

The director or any deputy thereunto authorized by him may by subpoena compel the attendance of witnesses and the production of any books, records, papers, vouchers or accounts of any dealer or of any person whom the director has reason to believe has information pertinent to any matter under investigation by the director at any hearing held pursuant to the provisions of this article.
(Code 1956, § 56-115)

Sec. 150-488. Witness' fees.

The fees of witnesses required to attend any hearing shall be the same as those allowed to witnesses appearing in the district courts. Such fees shall be paid in the manner provided for the payment of other expenses incident to the administration of this article.
(Code 1956, § 56-116)

Sec. 150-489. Procedure when subpoena is not obeyed; penalty.

The failure or refusal of a person subpoenaed to attend any hearing under this article or failure or refusal to produce any books, records, papers, vouchers, accounts, or documents pertinent to the matter of inquiry shall result in a penalty of $100.00 per day for each day that the person fails or refuses to appear or for each day such records are not produced; $200.00 per day between 91—180 days; and $500.00 per day for each day thereafter as determined by the director. Additionally, the director or his deputy may apply to civil district court, and any judge thereof shall have the power, upon proof by affidavit of such refusal, to make an order returnable in not less than two nor more than ten days, directing such person to show cause why he should not obey the demand of such subpoena. Upon the return of such order, the court shall examine the person under oath and the person shall be given an opportunity to be heard and, if the court determines that he has refused, without legal excuse, to obey the command of such subpoena, the court may order such person to comply.
(Code 1956, § 56-117; M.C.S., Ord. No. 27050, § 2, 9-8-16)

Sec. 150-490. Other remedies not affected.

Nothing in this article shall be construed to deprive the dealer of any remedy in the review of any tax or in any proceeding to collect the tax given such dealer by any other law or to deprive the council or the director of any remedy for the enforcement of this article through any procedure or remedies expressly provided in this article imposing the tax herein levied or in any other law, nor shall this article be construed as repealing or altering any such laws.
(Code 1956, § 56-118)

Secs. 150-491—150-520. Reserved.

DIVISION 3. EXEMPTIONS

Sec. 150-521. Exempt transactions generally.

Except as may be otherwise specifically provided, the following transactions are exempt from the provisions of this article:

(1) The sale at retail, the use, the consumption, the distribution and the storage to be used or consumed in the city, of the following tangible personal property: gasoline, natural gas, steam, water when delivered to consumers through mains, pipes or conduits, electric power or energy and any materials or energy sources used to fuel the generation of electric power for resale or used by an industrial manufacturing plant for self-consumption or cogeneration, newspapers, fertilizers and containers used for farm products when sold directly to the farmer.

(2) All energy sources when used for boiler fuel except refinery gas. Refinery gas shall be subject to the tax imposed by this article, provided that its value shall be $0.52 per 1,000 cubic feet multiplied by a fraction the numerator of which shall be the posted price for a barrel of West Texas Intermediate Crude Oil on December 1 of the preceding calendar year, and the denominator of which shall be $29.00, and provided further that such values shall be the maximum placed upon refinery gas provided that passage of this measure shall not in any manner prejudice any claim by the city to sales and use tax assessments or refund claims on refinery gas, claimed by the city before passage of this measure.

(3) Notwithstanding the provisions of subsection (1) of this section, the exemptions provided herein shall not apply, as to the city's 2½ percent sales tax, to the sale of newspapers, unless those sales are fully exempt under state law from sales taxes levied by the state and no sales taxes are

being collected for and remitted to the state or to the Louisiana Recovery District; provided that, in the event that a final and definitive judgment of a court of competent jurisdiction holds that the city may not refuse to exempt items of tangible personal property from city sales taxes only, while still exempting such sales from other local sales taxes, then the exempting provided herein shall not apply as to the sale of newspapers, unless those sales are fully exempt under state law from sales taxes levied by the state and no sales taxes are being collected for and remitted to the state or to the Louisiana Recovery District.

(4) Notwithstanding the provisions of subsection (1) of this section, the exemption provided herein shall not apply, as to the city's 2½ percent sales tax, on the sale of water when delivered to consumers through mains, pipes or conduits, inclusive, unless those sales are fully exempt under state law from sales taxes levied by the state and no sales taxes are being collected for and remitted to the state or to the Louisiana Recovery District; provided that, if a final and definitive judgment of a court of competent jurisdiction holds that the city may not refuse to exempt items of tangible personal property from city sales taxes only, while still exempting such sales from other local sales taxes, then the exemption provided herein shall not apply as to the sale of water when delivered to consumers through mains, pipes or conduits, unless those sales are fully exempt under state law from sales taxes levied by the state and no sales taxes are being collected for and remitted to the state or to the Louisiana Recovery District.

(5) The gross proceeds derived from the sale in the city of livestock, poultry and other farm products direct from the farm if such sales are made directly by the producers. When sales of livestock, poultry and other farm products are made to consumers by any person other than the producer, they are not exempt.

a. The gross proceeds derived from the sale in this city of livestock at public sales sponsored by breeders' or registry associations or livestock auction markets are exempted from the tax levied by this article. When public sales of livestock are made to consumers by any person other than through a public sale sponsored by a breeders' or registry association or a livestock auction market, they are not exempted from the tax imposed by this article. This section shall be construed as exempting race horses entered in races and claimed at any racing meet held in the state, whether the horse claimed was owned by the original breeder or not.

b. Every agricultural commodity sold by any person, other than a producer, to any other person who purchases not for direct consumption but for the purpose of acquiring raw product for use or for sale in the process of preparing, finishing, or manufacturing such agricultural commodity for the ultimate retail consumer trade, shall be exempted from any and all provisions of this article, including payment of the tax applicable to the sale, storage, use, transfer, or any other utilization of or handling thereof, except when such agricultural commodity is actually sold as a marketable or finished product to the ultimate consumer, and in no case shall more than one tax be exacted. For the purposes of this section, agricultural commodity means horticultural, viticultural, poultry, farm and range products, and livestock and livestock products.

c. The purchase of feed and feed additives for the purpose of sustaining animals which are held primarily

for commercial, business, or agricultural use shall be exempted from the taxes levied by this article.

1. For purposes of this subsection:

Agricultural use means the maintaining of work animals and beasts of burden which are utilized in the activity of producing crops or animals for market, in the production of food for human consumption, in the production of animal hides or other animal products for market, or in the maintaining of breeding stock for the propagation of such agricultural use animals;

Commercial use means the purchasing, producing, or maintaining of animals, including breeding stock, for resale;

Business use means the keeping and maintaining of animals which are used in performing services in conjunction with a business enterprise, such as sentry dogs and rental horses;

2. This exemption shall not apply to the purchase of feed or feed additives for animals kept primarily for personal, sporting, or other purposes, including but not limited to purchases for pets of any kind or hunting dogs.

d. The tax imposed by this article shall not apply to the sale or use of materials, supplies, equipment, fuel, bait, and related items other than vessels used in the production or harvesting of crawfish. The person who purchases the exempt items shall claim the exemption by executing a certificate at the time of purchase. The state department of revenue and taxation shall provide the certificates to retail merchants. Any merchant who in good faith, and after examination of the applicability of the certificate to that purchase with due care, neglects or fails to collect the tax herein provided, due to the presentation by the purchaser of a tax exemption certificate issued by the state department of revenue and taxation, including those issued pursuant to R.S. 47:305.10, shall not be liable for the payment of the tax.

e. The tax imposed by this article shall not apply to the sale or use of materials, supplies, equipment, fuel, bait, and related items other than vessels used in the production or harvesting of catfish. The person who purchases the exempt items shall claim the exemption by executing a certificate at the time of purchase. The state department of revenue and taxation shall provide the certificates to retail merchants. Any merchant who in good faith, and after examination of the applicability of the certificate to that purchase with due care, neglects or fails to collect the tax herein provided, due to the presentation by the purchaser of a tax exemption certificate issued by the state department of revenue and taxation, shall not be liable for the payment of the tax.

(6) Materials and supplies purchased by the owners or operators of ships or vessels operating exclusively in foreign or interstate coastwise commerce, where such materials and supplies are loaded upon the ship or vessel for use or consumption in the maintenance and operation thereof; nor to repair services performed upon ships or vessels operating exclusively in foreign or interstate coastwise commerce; nor to the materials and supplies used in such repairs where such materials and supplies enter into and become a component part of such ships or vessels; nor to laundry services performed for the

owners or operators of such ships or vessels operating exclusively in foreign or interstate coastwise commerce, where the laundered articles are to be used in the course of the operation of such ships or vessels.

(7) Sales of materials, equipment and machinery which enter into and become component parts of ships, vessels, including commercial fishing vessels, or barges, drilling ships or drilling barges of 50 tons' load displacement and over, built in the city, nor to the gross proceeds from the sale of such ships, vessels or barges when sold by the builder thereof.

(8) Where a part of the purchase price is represented by an article traded in, the sales tax is payable on the total purchase price less the market value of the article traded in.

(9) Sale at retail of seeds for use in the planting of any kind of crops.

(10) Sales of casing, drill pipe and tubing sold in the city, for use offshore beyond the territorial limits of the state, for the production of oil, gas, sulphur and other minerals.

(11) The sales and use tax imposed in this section shall not apply to or be collected on any materials, supplies or products for use in connection with any phase of the construction of the Toledo Dam Project on the Sabine River.

(12) Sale of admission tickets by little theatre organizations.

(13) Sale of admission tickets by domestic nonprofit corporations or by any other domestic nonprofit organization known as a symphony organization or as a society or organization engaged in the presentation of musical performances; provided that this section shall not apply to performances given by out-of-state or nonresident symphony companies, nor shall this section apply to any performance intended to yield a profit to the promoters thereof.

(14) Sale at retail of pesticides used for agricultural purposes, including particularly but not by way of limitation, insecticides, herbicides and fungicides.

(15) The sales and use taxes imposed in this section shall not apply to the amount paid by the operator of a motion picture theatre to a distributing agency for use of films of photoplay.

(16) There shall be no sales tax due upon the sale at retail or use of tangible personal property including diesel fuel purchased within or imported into the city for first use exclusively beyond the territorial limits of the state. If tangible personal property purchased or imported tax free under the provisions of this section is later brought into the city for use herein, the property shall be subject to the city's use tax as of the time it is brought into the city for use herein, subject to the credit provided in this section.

a. If the first use of tangible personal property purchased in this city for use beyond the territorial limits of this city occurs in a city or parish of this state or in a city or county in a state other than Louisiana which imposes a sales or use tax, the exemption provided herein shall apply only if:

1. The purchaser is properly registered for sales and use tax purposes in a city or parish of this state or in a city or county in a state other than Louisiana, wherein such tangible property is used and regularly reports and pays sales and use tax in such other city or parish of this state or in a city or county in a state other than Louisiana; and

2. The city or parish of this state or in a city or county in a state other than Louisiana in which the first use occurs grants on a reciprocal basis a similar

exemption on purchases within that city or parish of this state or in a city or county in a state other than Louisiana for use in this city; and

3. The purchaser obtains a certificate authorizing him to make the nontaxable purchases authorized under this subsection; or

4. The property is subject to registration as a motor boat subject to registration by the state and such property is not registered for use in this state.

b. If the first use of tangible personal property purchased within or imported into the city occurs offshore beyond the territorial limits of the city, the exemption provided herein shall apply only if:

1. The purchaser or importer has determined the location of the first use of the tangible personal property at the time of its purchase and has notified the vendor of that location; or

2. The purchaser or importer has not determined the intended offshore location of first use at the time of purchase or importation, but has obtained an offshore registration number authorizing him to claim the exemption under the conditions provided in this subsection:

i. Such offshore registration number shall be issued only if the purchaser or importer has shown, to the satisfaction of the state, that records, reports, and business practices are sufficient to permit verification that tangible personal property purchased or imported tax free under this subsection is, in fact, being purchased or imported for use offshore beyond the territorial limits of any state. In cases of purchases of fungible goods, including vessel fuel and lubricants, the required records shall include purchase invoices, vessel logs, fuel usage records, fuel transfer records and other reports and records that will enable the director of the department of finance to determine the amount of fungible goods consumed within the city so as to be subject to the sales and use tax, and the amount of fungible goods delivered to or consumed at offshore locations beyond the territorial limits of the state, so as not to be subject to the sales and use tax. For the purpose of the subsection, the term "fungible goods" means goods of which any unit is unidentifiable and is, from its nature or by mercantile custom, treated as the equivalent of any other unit and shall include crude petroleum and its refined products.

ii. The offshore registration number issued by the state under this subsection may be revoked by the state at any time if the purchaser or importer fails to meet the conditions set herein, or if the state finds that the purchaser or importer is consistently using the

certificate to purchase or import tax-free tangible personal property for first use in state.

iii. If the offshore registration number is revoked, all tangible personal property purchased or imported tax-free under this subsection and in the possession of the purchaser or importer within this state shall be deemed taxable unless otherwise exempt under the provisions of subsection (16)b.1 of this section. If the provisions of subsection (16)b.1 of this section are not complied with, any subsequent purchase or import of tangible personal property will be taxable, whether for instate or offshore use, until the certificate and offshore number are reissued.

iv. Whenever there is a conflict between a purchaser or importer and the state as to whether an offshore registration number shall be issued, reissued, or revoked, it shall be the responsibility of the purchaser or importer to show that he meets the conditions and requirements set herein for having and retaining such certificate and offshore registration number.

3. Except for purchases or importation of tangible personal property in accordance with subsections (16)b.1 and 2 of this section, any purchase or importation of property is taxable at the time of purchase or import unless otherwise exempt.

c. If tangible personal property purchased or imported tax-free under the provisions of this section is subsequently used for any taxable purpose within the city, use tax shall be paid by the purchaser or importer as of the time of its use in the city. Storage of property purchased or imported tax-free under this section which is ultimately used in another state will be considered a subsequent use for a taxable purpose.

d. If tangible personal property purchased within or imported into the city tax-free under the provisions of this section is later returned to Louisiana for use for a taxable purpose, the property shall be subject to the city's use tax as of the time it is brought into the city, subject to the credit provided in R.S. 47:303(A).

e. Use for a taxable purpose shall not include, for purposes of this section, transportation beyond the territorial limits of the state; transportation back into the state; and repairing, modifying, further fabrication, and storing for first use offshore beyond the territorial limits of any state. Storage and withdrawal from storage for first use offshore beyond the territorial limits of any state is not a taxable use for purposes of this section. Charges for repairs in this city to tangible personal property for use in offshore areas are taxable.

f. If fungible goods are purchased or imported tax-free for use or consumption at locations both within the city and offshore beyond the territorial limits of any state, under the exemption certificate and offshore registration number provided for in this section, only that portion of the

fungible goods delivered to a location offshore beyond the territorial limits of any state and used or consumed at that location shall be exempt. For the purpose of this section, the term "fungible goods" means goods of which any unit is unidentifiable and is, from its nature or by mercantile custom, treated as the equivalent of any other unit and shall include crude petroleum and its refined products.

(17) The sales of tangible personal property, food, and beverages at, or admission charges for, outside gate admissions to, or parking fees associated with, events sponsored by domestic civic, educational, historical, charitable, fraternal or religious organizations which are nonprofit, when the entire proceeds of a sale, admission charges, or parking fee, except for the necessary expense connected therewith, are payable to or for the benefit of the non-profit sponsor and are used for domestic civic, educational, charitable, historical restoration, or religious purposes including the furtherance of the civic, educational, historical, charitable, fraternal, or religious purpose of the organization. The exemption provided herein shall not apply to any event intended to yield a profit to the promoter. The exemption provided herein shall apply only to the non-profit organization sponsoring the event.

a. This subsection shall not be construed to exempt any organization or activity from the payment of sales or use taxes otherwise required by law to be made on purchases made by these organizations.

b. This subsection shall not be construed to exempt regular commercial ventures of any type such as bookstores, restaurants, gift shops, commercial flea markets and similar activities that are sponsored by organizations qualifying hereunder which are in competition with retail merchants.

c. This sponsorship of any event by any organization applying for an exemption hereunder must be genuine. Sponsorship will not be genuine in any case in which exemption from taxation is a major consideration leading to such sponsorship. An exemption certificate must be obtained from the director of the department of finance, or his authorized representative, under such regulations as he shall prescribe, in order for nonprofit organizations to qualify for the exemption provided in this subsection.

d. If the director of the department of finance denies tax-exempt status under this subsection, the organization may appeal such ruling to the council, which may overrule the director and grant tax-exempt status if the council determines that the denial of tax-exempt status by the director was arbitrary, capricious, or unreasonable.

e. Provided however, that any organization which endorses any candidate for political office or otherwise is involved in political activities shall not be eligible for the exemption herein provided.

(18) The retail sale of diapers and feminine hygiene products for personal use. This exemption shall remain effective so long as authorized by La. R.S. 47:337.10.2 or by any other applicable provision of state law.

(Code 1956, §§ 56-24, 56-25; M.C.S., Ord. No. 21387, § 1, 1-8-04; M.C.S., Ord. No. 28462, § 2, 8-20-20, eff. 10-1-20; M.C.S., Ord. No. 30162, § 1, 12-5-24)

State law reference—Similar provisions, R.S. 47:305 et seq.

Sec. 150-522. Sale of agricultural commodity for processing exempt.

Each agricultural commodity sold by any person, other than a producer, to any other person, civil or natural, who purchases not for direct consumption but for the purpose of acquiring a raw product for use or for sale in the process of preparing, finishing or manufacturing such agricultural commodity for the ultimate retail consumer trade shall be exempted from all provisions of this article, including payment of the tax applicable to the sale, storage, use, transfer or other utilization of such product or the handling thereof, except when such agricultural commodity is actually sold as a marketable or finished product to the ultimate consumer, and in no case shall more than one tax be exacted.
(Code 1956, § 56-27)

Sec. 150-523. Liability on sales for resale not made in compliance with regulations.

(a) All sales shall be deemed to be retail sales unless the seller takes from the buyer a resale certificate signed by and bearing the name, address and registration number of the buyer, to the effect that the property was purchased for resale or to be used as an ingredient or a component part of a new article for sale at retail. Wholesalers may recognize the claim of a buyer that the articles are purchased for resale only when the buyer is properly registered under the provisions of this article.

(b) The seller shall be responsible for the collection of the tax on all sales made to persons who have not secured the proper registration certificate, except in cases of fertilizer and containers sold direct to farmers. Resale certificates claiming that goods are purchased for resale must state the registration number assigned to the buyer when such buyer is a retail merchant. In case the buyer is a wholesale merchant, the resale certificate shall state the wholesaler's occupational license number for the current year.

(c) Sales for resale must be made in strict compliance with the rules and regulations. Any dealer making a sale for resale, which is not in strict compliance with the rules and regulations, will himself be liable for and pay the tax.
(Code 1956, § 56-28)

Sec. 150-524. Sales of livestock, etc., not made by producers taxable.

When sales of livestock, poultry and other farm products are made to consumers by any person other than the producer, they are not exempted from the tax imposed by this article.
(Code 1956, § 56-29)

Sec. 150-525. Certain agricultural transactions exempt from use tax.

The use tax shall not apply to livestock and livestock products, to poultry and poultry products, to farm, range and agricultural products when produced by the farmer and used by him and members of his family.
(Code 1956, § 56-30)

Sec. 150-526. Credit for similar tax paid in another state or in another parish or municipality of this state.

The provisions of this article shall not apply in respect to the use, consumption, distribution or storage of tangible personal property upon which a like tax equal to or greater than the amount imposed by this chapter has been paid in a state other than this state or to any other parish or municipality of the state, the proof of the payment of such tax to be according to rules and regulations made by the director. If the amount of tax paid in a state other than this state or in any other parish or municipality of the state is in an amount less than the amount of tax imposed by this article, the dealer shall pay to the director an amount equivalent to the difference between the total tax as imposed by this article and the amount paid to such other taxing jurisdiction.
(Code 1956, § 56-31)

Sec. 150-527. Tax collected property of city.

Any tax collected by a dealer pursuant to the provisions of this article shall, as of the moment of the purchase or upon the sale of services as the case may be, become the property of the city.
(Code 1956, § 56-31.1)

Sec. 150-528. Tax exemption—Publicly owned facility.

The sale of admission tickets to events, activities or enterprises, wherever sold, provided that such events, activities or enterprises occur or are held or conducted on the premises of any publicly owned multiuse facility:

(1) Which is owned by and operated by or on behalf of the state or any of its agencies, boards, commissions or political subdivisions, including any agency, board or commission of any political subdivision, except the city;

(2) Which is commonly used for athletic events, entertainment events, conventions or similar uses; and

(3) Which has a capacity of at least 2,000 persons;

shall be exempt from sales and use taxes levied by the city only for such period as the state, the parish school board and the regional transit authority also exempt such facilities in the parish from all state and local sales and other similar taxes in accordance with R.S. 39:468 or any similar provision of law.
(Code 1956, § 62-71)

Sec. 150-529. Same—City-owned and operated facilities.

The sale of admission tickets to events, activities or enterprises, wherever sold, provided that such events, activities or enterprises occur or are held or conducted on the premises of any multiuse facility which is owned and operated by the city and is commonly used for athletic events, entertainment events, conventions or similar uses and which has a capacity of at least 2,000 persons, shall be exempt from sales and use taxes levied by the city.
(Code 1956, § 62-72)

Sec. 150-530. Exemption for Louisiana Superdome and New Orleans Arena.

The sale of admission tickets to events, activities, or enterprises, wherever sold, provided that such events, activities, or enterprises occur or are held or conducted on the premises of the Louisiana Superdome facility or the New Orleans Arena owned or operated by or for the state, parking on the premises of the facility in connection with any such events, activities, or enterprises, whether before, during and/or after such events, activities, or enterprises, and tours of the facility shall be exempt from all taxes levied by the city, including but not limited to the sale, use, amusement, or any other tax. However, this exemption shall not extend to any sale of goods or other tangible personal property at a trade show or other event at which the sale of such goods or property is the primary purpose of the show or event. For the purposes of this section, events, activities, or enterprises is defined to mean and shall mean any events, activities, or enterprises the admission to which, but for the exemption granted by this section, would be subject to the amusement tax.
(Code 1956, § 62-70; Ord. No. 20,874, § 1, 10-10-02)

Sec. 150-531. Tax-free shopping program.

(a) The council finds that this city with its many attractions has an extraordinary opportunity to generate additional economic activity in the form of international tourism. Foreign visitors to the United States represent a more lucrative market than domestic travelers because they use tourism services to a much greater degree than their domestic counterparts. Many foreign countries have a value-added, tax-refund system for purchases of tangible personal property by foreign visitors which has proved successful, when appropriately advertised, in increasing tourism in those countries. A similar sales tax refund program applicable to retail shopping by

international visitors can be an effective promotional tool to increase city's share of the United States' growing foreign tourism market. While such a program would have an initial opportunity cost to state and local governments equal to the amount of sales tax refunded, this loss can be offset by additional revenues generated from an increase in foreign tourists who will continue to pay tax on expenditures for hotels, restaurants, entertainment, rental cars, riverboat rides and other attractions.

(b) For the purposes of this section, the term "hotel" means and includes any establishment or person engaged in the business of furnishing sleeping rooms, cottages, or cabins to transient guests, where such establishment consist of sleeping rooms, cottages, or cabins at any of the following: (1) a single business location; (2) a residential location, including but not limited to a house, apartment, condominium, camp, cabin, or other building structure used as a residence.

(c) The director of the department of finance is hereby authorized to refund the sales tax levied and received by the city to the refund agency designated by the Louisiana Tax-Free Shopping Commission for refunds made to participants in the tax-free shopping program for the purchase of tangible personal property by international travelers in accordance with R.S. 51:1301 et seq.

(d) In any agreement executed by the city and the tax-free shopping commission, the city shall reserve the right to terminate the agreement at the end of any calendar month by sending a written notice to the commission by certified or registered mail at least 60 days prior to the date of termination.

(Code 1956, § 56-31.2; M.C.S., Ord. No. 26972, § 1, 7-14-16)

State law reference—Authority for exemption, R.S. 46:813.1.

Sec. 150-532. Louisiana Biomedical Research and Development Park—Purpose, intent.

The council finds that development of a biomedical research and development park, with quality facilities for delivery of health care services, ongoing medical research and development, manufacturing of goods useful to health care delivery and related research and development activities,

and related support services and concerns, will benefit the citizens of the city through improved health care and through improved economic conditions and creation of jobs. It is the intent of this section to provide for the reduction in taxes which would otherwise be payable by concerns which conduct such enterprises and activities in order to encourage their location in the park area and to provide them with greater resources which may be used for further development and economic activity which will further expand the capabilities of the concerns located in the park.
(Code 1956, § 56-31.3)

Sec. 150-533. Same—Boundaries of park area.

The Louisiana Biomedical Research and Development Park (the park area) shall be comprised of the territory bounded by Iberville Street, Perdido Street, South Galvez Street, Loyola Avenue, Elk Place and Basin Street, including properties on both sides of the boundary streets.
(Code 1956, § 56-31.4)

Sec. 150-534. Same—Resolution for participation.

In accordance with R.S. 46:813.1, the city council may, by resolution, provide for participation in the tax exemption program, provided for by R.S. 46:813.1, for medical concerns in the park area with the state board of commerce and industry (the board) and for renewals of exemptions from taxes approved by the board. Any such resolution shall be conditioned upon participation in the program by the parish school board, the regional transit authority, and the state.
(Code 1956, § 56-31.5)

Sec. 150-535. Same—Grant of exemption.

Upon adoption of a resolution of the council as provided in section 150-534, the director of the department of finance shall be authorized to exempt medical concerns as defined in R.S. 46:813.1 located in the park area which have entered into contracts for tax exemptions with the state board of commerce and industry pursuant to R.S. 46:813.1 from the following taxes:

(1) Sales and use taxes imposed by the city on machinery and equipment to be used by the medical concern, on materials and building supplies, whether purchased directly or through a contractor, to be used in the repair, reconstruction, modification, or construction of plant or facilities, and on materials and supplies necessary for or used in the manufacture or production of the product of the medical concern.

(2) Sales and use taxes imposed by the city on any other goods and services used or consumed by the medical concern.

(Code 1956, § 56-31.6)

Sec. 150-536. Same—Subject to statutes.

Any tax exemptions granted pursuant to this division shall be subject to all the provisions and requirements of R.S. 17:3389, R.S. 46:813A., R.S. 46:813.1, R.S. 46:814.
(Code 1956, § 56-31.7)

Sec. 150-537. Same—Renewal contract.

In accordance with R.S. 46:813.1C., after expiration of the initial contract period of five years any medical concern as defined therein shall thereafter obtain a renewal resolution from the council. The participant to qualify for the five-year renewal contract shall demonstrate that the tax incentive received by the medical concern produces sufficient benefits of jobs created to warrant the loss of tax revenue by the city and state.
(Code 1956, § 56-31.8)

Sec. 150-538. University Research and Technology Park—Purpose, intent.

The council finds that development of a research and technology park, with quality facilities, ongoing research, technology, and development, manufacturing of products related to technology and related support services and concerns, will benefit the citizens of the city through improved economic conditions and creation of

jobs. It is the intent of this section to provide for the reduction in taxes which would otherwise be payable by concerns which conduct such enterprises and activities in order to encourage their location in the park area and to provide them with greater resources which may be used for further development and economic activity which will further expand the capabilities of the concerns located in the park.
(Code 1956, § 56-31.9)

Sec. 150-539. Same—Boundaries of park area.

The University Research and Technology Park (the park area) shall be comprised of the territory comprised of the formerly Pontchartrain Beach site bounded by Lakeshore Drive, and Lake Pontchartrain.
(Code 1956, § 56-31.10)

Sec. 150-540. Same—Resolution for participation.

In accordance with R.S. 46:813.1, the city council may, by resolution, provide for participation in the tax exemption program, provided for by R.S. 46:813.1, for research, manufacturing, and technology concerns in the park area with the state board of commerce and industry (the board) and for renewals of exemptions from taxes approved by the board. Any such resolution shall be conditioned upon participation in the program by the parish school board, the regional transit authority, and the state.
(Code 1956, § 56-31.11)

Sec. 150-541. Same—Grant of exemption.

Upon adoption of a resolution of the council as provided in section 150-540, the director of the department of finance shall be authorized to exempt research, manufacturing, and technology concerns as defined in R.S. 46:813.1 located in the park area which have entered into contracts for tax exemptions with the state board of commerce and industry pursuant to R.S. 46:813.1 from the following taxes:

(1) Sales and use taxes imposed by the city on machinery and equipment to be used by the research, manufacturing, and technology concern, on materials and building supplies, whether purchased directly or through a contractor, to be used in the repair, reconstruction, modification, or construction of plant or facilities, and on materials and supplies necessary for or used in the manufacture or production of the product of the medical concern.

(2) Sales and use taxes imposed by the city on any other goods and services used or consumed by the research, manufacturing, and technology concern.

(Code 1956, § 56-31.12)

Sec. 150-542. Same—Subject to statutes.

Any tax exemptions granted pursuant to this division shall be subject to all the provisions and requirements of R.S. 17:3389, R.S. 46:813.1, R.S. 46:813A, R.S. 46:814.
(Code 1956, § 56-31.13)

Sec. 150-543. Same—Renewal contract.

In accordance with R.S. 46:813.1C, after expiration of the initial contract period of five years any research, manufacturing, and technology concern as defined therein shall thereafter obtain a renewal resolution from the council. The participant to qualify for the five-year renewal contract shall demonstrate that the tax incentive received by the research, manufacturing, and technology concern produces sufficient benefits of jobs created to warrant the loss of tax revenue by the city and state.
(Code 1956, § 56-31.14)

Sec. 150-544. Exclusion and exemption; nonprofit retirement centers.

The sales and use tax imposed by the City of New Orleans shall not apply to purchases of materials for the construction of and supplies for the operation of any not-for-profit retirement center owned or operated by any public trust authority or duly incorporated non-for-profit corporation. A retirement center for purposes of this section is defined as any multipurpose facility which houses as a permanent residence senior

citizens who are 62 years of age or older, which provides housing for the elderly, and which provides intermediate health care.
(M.C.S., Ord. No. 18,774, § 1, 7-1-98)

Secs. 150-545—150-575. Reserved.

DIVISION 4. IMPOSITION

Sec. 150-576. Imposition of tax.

(a) There is hereby levied, for general municipal purposes, a tax upon the sale at retail, the use, the consumption, the distribution and the storage for use or consumption in the city of each item or article of tangible personal property, upon the lease or rental of such property and upon the sale of services within the city, provided that this tax shall not be applicable to banquet gratuities, tips or gifts for distribution in total to restaurant service personnel which are included as a separate item on restaurant bills, the levy of such tax to be as follows:

(1) At the rate of 2½ percent of the sales price of tangible personal property when sold at retail in the city;

(2) At the rate of 2½ percent of the cost price of tangible personal property when it is not sold, but is used, consumed, distributed or stored for use or consumption in the city, except that there shall be no duplication of the tax;

(3) At the rate of 2½ percent of the amount paid or charged for the lease or rental of tangible personal property, when the lease or rental of such property is an established business or part of an established business or is incidental or germane to any such business;

(4) At the rate of 2½ percent of the lease or rental price paid by a lessee or rentee or contracted or agreed to be paid by a lessee or rentee to the owner of tangible personal property;

(5) At the rate of 2½ percent paid or charged upon the sale of services.

(b) The council hereby ordains that the occupancy of hotel rooms as defined in section 47(M) of article XIV of the Constitution of the state shall be exempted from the additional one-half of one percent sales and use tax levied by M.C.S., Ordinance No. 3,692 in accordance with section 1(f) of Act 159 of 1912 (as amended by Act 18 of the Extra Session of 1048).
(Code 1956, § 56-21)

State law reference—Similar provisions, R.S. 47:302.

Sec. 150-577. Tax in addition to others.

The tax levied by this article is in addition to all other taxes whether levied in the form of excise, license or privilege taxes levied by any other city ordinance.
(Code 1956, § 56-22)

State law reference—Similar provisions, R.S. 47:302(C).

Sec. 150-578. Use, etc., equivalent to sale.

(a) The tax imposed under R.S. 47:302 shall be collectible from all persons, as hereinafter defined, engaged as dealers, as hereinafter defined.

(b) On all tangible personal property imported, or caused to be imported, from other states or other political subdivisions of this state or a foreign country and used by dealer, the dealer, as thus defined, shall pay the tax imposed by this article on all articles of tangible personal property so imported and used, the same as if such article had been sold at retail for use or consumption in this city. For the purpose of this article, use, or consumption, or distribution or storage to be used or consumed in this city of tangible personal property shall each be equivalent to a sale at retail, and the tax shall thereupon immediately levy and be collected in the manner provided herein; provided, that there shall be no duplication of the tax in any event.

(c) A credit against the use tax imposed by this article shall be granted to taxpayers who have paid a similar tax upon the sale or use of the same tangible personal property in another state. The credit provided herein shall be granted only in the case where the state to which a similar tax has been paid grants a similar credit as provided herein, provided that members of the armed forces who are citizens of this state and whose orders or

enlistment contracts stipulate a period of active duty of two years or more and who purchase automobiles outside of this city while on such tour of active duty shall be granted such credit in connection with the purchase of such automobiles whether or not the state to which such tax thereon has been paid grants a similar credit as herein provided. The amount of the credit shall be calculated by multiplying the rate of the similar tax paid in the other state by the cost price which is subject to this city's use tax at the time of the importation of the tangible personal property. The proof of payment of a similar tax to another state shall be made according to rules and regulations promulgated by the director of the department of finance. In no event shall the credit be greater than the tax imposed by this city upon the particular tangible personal property which is the subject of this city's use tax.
(Code 1956, § 56-23)

State law reference—Similar provisions, R.S. 47:303(A).

Sec. 150-579. Intent of division.

(a) It is not the intention of this division to levy a tax upon articles of property imported into the city, or produced or manufactured in the city, for export; nor is it the intention of this division to levy a tax on bona fide interstate commerce; however, nothing herein shall prevent the collection of the taxes due on sales of tangible personal property into the city which are promoted through the use of catalogs and other means of sales promotion and for which federal legislation or federal jurisprudence enables the enforcement of this division upon the conduct of such business. It is, however, the intention of this division to levy a tax on the sale at retail, the use, the consumption, the distribution, and the storage to be used or consumed in the city, of tangible personal property after it has come to rest in the city and has become a part of the mass of property in the city. At such time as federal legislation or federal jurisprudence as to sales in interstate commerce promoted through the use of catalogs and other means of sales promotions enables the enforcement of this division against vendors that have no other nexus with this city, the following provisions shall apply to such sales on which sales and use tax would not otherwise be collected.

(b) The city is hereby authorized to levy or collect a sales tax on such interstate sales at a rate equal to the average sales tax rate used by local jurisdictions. The secretary of the state department of revenue and taxation shall calculate the rate by dividing local sales and use tax receipts collected on transactions not subject to the federal legislation for the most recent state fiscal year for which data is available by the total dollar volume of such transactions in the state subject to the state sales tax during the same time period. This rate will be rounded to the nearest one-quarter of one percent.

(c) Out-of-state retailers shall remit to the state all local sales taxes collected in accordance with the provisions of R.S. 47:306.

(d) The secretary shall distribute such local sales tax proceeds in accordance with each local jurisdiction's pro rata share of local sales and use tax receipts collected on all other transactions subject to local sales and use taxes, within 60 days following the due date for submission of the tax.

(e) If the rate provided for in subsection (b) of this section is invalidated, out-of-state retailers shall collect local sales taxes in accordance with the provisions of R.S. 47:306. The secretary shall distribute the local sales tax receipts to local governments in accordance with each jurisdiction's pro rata share of local sales and use taxes collected during the most recent fiscal year for which data is available, within 60 days of the due date for submission of the tax.
(Code 1956, § 56-24)

State law reference—Similar provisions, R.S. 47:305(E).

Sec. 150-580. Exclusions and exemptions.

(1) For purposes of this subsection:

Manufacturing machinery equipment means computers and software that are an integral part of the machinery and equipment used directly in the manufacturing process; machinery and equipment necessary to control pollution at a plant facility where pollution is produced by the manufacturing process; and machinery and equipment used to test or measure raw materials, the property undergoing

manufacturing or the finished product, when such test or measurement is a necessary part of the manufacturing process.

Manufacturer means any person whose principal activity is manufacturing and who is assigned by the Louisiana Department of Labor a North American Industrial Classification System code within the manufacturing sectors 31—33, or the agricultural, forestry, fishing and hunting sector 11, as they existed in 2002.

The term "manufacturing" shall not mean or include repackaging or redistributing; cooking or preparing food products by a retailer in the regular course of retail trade; storage of tangible personal property; deliver of tangible personal property to or from the plant; delivery of tangible personal property to or from storage within the plant; or actions such as sorting, packaging or shrink wrapping the final material for ease of transporting and shipping.

(2) The tax imposed by section 150-576 shall not apply to manufacturing machinery equipment purchased, leased or rented by manufacturers.

(a) Except as may be otherwise specifically provided, the following transactions are exempt from the provisions of this article:

1. A building and its structural components, unless the building or structural component is so closely related to the machinery and equipment that it houses or supports that the building or structural component can be expected to be replaced when the machinery and equipment are replaced;

2. Heating, ventilation and air-conditioning systems, unless their installation is necessary to meet the requirements of the manufacturing process, even though the system may provide incidental comfort to employees or serve, to and insubstantial degree, nonproduction activities;

3. Tangible personal property used to store raw materials or manufactured goods prior to the beginning of the manufacturing process or after the manufacturing process is complete.

4. The exclusion of manufacturing machinery equipment from the provisions of taxes imposed by chapter 150 shall go as follows:

Year 1	(July 1, 2005—December 31, 2005)	@	14.00%
Year 2	(January 1, 2006—December 31, 2006)	@	28.00%
Year 3	(January 1, 2007—December 31, 2007)	@	42.00%
Year 4	(January 1, 2008—December 31, 2008)	@	56.00%
Year 5	(January 1, 2009—December 31, 2009)	@	70.00%
Year 6	(January 1, 2010—December 31, 2010)	@	84.00%
Year 7	(January 1, 2011—December 31, 2011)	@	100.00%

The exclusion of manufacturing machinery equipment from the provisions of taxes imposed by Chapter 150 shall apply for all purchases made on or after July 1, 2005.

(M.C.S., 20969, § 1, 12-19-02; M.C.S., Ord. No. 21886, § 1, 4-7-05)

Editor's note—M.C.S., Ord. No. 21886, § 1, adopted April 7, 2005, created § 150-581 containing the provisions set out above. At the editor's discretion, said provisions have been redesignated as § 150-580 to maintain the numerical sequence of the Code.

Secs. 150-581—150-600. Reserved.

DIVISION 5. COLLECTION

Sec. 150-601. Tax collectible from all dealers.

The tax imposed by this division shall be payable upon the retail sales price, as of the moment of the sale, or upon the cost price, as of the moment of the purchase, or upon sales of service, as the case may be, and shall be collectible from all persons engaged as dealers in the sale at retail

or those engaged in the use, consumption, distribution and the storage of tangible personal property and/or the sales of services. At the moment of payment of the tax, any tax collected shall become the property of the city.

(1) The tax levied on any such vehicle, which is hereby defined to be any motor vehicle, automobile, motorcycle, truck, truck-tractor, trailer, semitrailer, motorbus, house trailer, or any other vehicle subject to the vehicle registration license tax, shall be paid to the director of the department of finance of the city, (or to the collector of revenue of the state if so delegated by contractural agreement as herein authorized), at the time of application for a certificate of title or vehicle registration license.

a. The tax levied by this article on the sale of any such vehicle shall be due at the time registration or any transfer of registration is required by the state Vehicle Registration License Tax Law.

b. The tax levied by this article on the use of any such vehicle in the city shall be due at the time the first registration in this state is required by the state Vehicle Registration License Tax Law.

(2) Every vendor of such a vehicle shall furnish to the purchaser at the time of sale a sworn statement showing the serial number, motor number, type, year, and model of the vehicle sold, the total sales price, any allowance for, and a description of any vehicle taken in trade, and the total cash difference paid or to be paid by the purchaser between the vehicles purchased and traded-in, and the sales or use tax to be paid, along with such other information as may be required by regulation subsequently promulgated.

All labor, parts, accessories, and other equipment which are attached to the vehicle at the time of sale and which are included in the sale price are to be considered a part of the vehicle.

(3) It is not the intention of this subsection to grant an exemption to any sales, use, item or transaction which has heretofore been taxable as provided in this article, and this subsection is not to be construed as so doing. It is the intention of this subsection to transfer the responsibility for the collection of the sales and use tax on vehicles only from the vendor to the director of the city, (or to the collector of revenue of the state, if so designated by agreement, as herein authorized) and to provide a method of collection of the tax directly from the vendor or user by the director or collector.

(Code 1956, § 56-32)

State law reference—Similar provisions, R.S. 47:303.

Sec. 150-602. Dealer to collect tax from purchaser.

The tax levied by this article shall be collected by the dealer from the purchaser or consumer, except as provided herein for the collection of the tax on vehicles, and the dealer is hereby required to indicate the amount of tax due on the invoice, sales slip, sales ticket or cash register receipt, so that the tax thus indicated will apply to the total amount of sales as is indicated by the invoice, sales slip, sales ticket or cash register receipt. The dealer shall collect such tax separately from the price paid by the purchaser and remit same to the director not later than the 20th day of the month following month of sale.

(Code 1956, § 56-33)

State law reference—Similar provisions, R.S. 47:304.

Sec. 150-603. Dealers outside city to collect on sales for use in city.

Every dealer located outside the city making sales of tangible personal property for distribution, storage, use or other consumption in the city shall, at the time of making any such sale, collect the tax imposed by this article from the purchaser.

(Code 1956, § 56-34)

State law reference—Similar provisions, R.S. 47:304(B).

Sec. 150-604. Dealer to add tax to price.

(a) A dealer shall add the amount of the tax imposed under this article, in conformity with the rules and regulations issued by the director, to the sale price or charge; and, when added, such tax shall constitute a part of such price or charge and shall be a debt from the purchaser or consumer to the dealer until paid and shall be recoverable at law in the same manner as other debts.

(b) If the records of the dealer do not reflect an addition of the amount of the tax imposed under this article to the sale price or charge, the dealer's records shall constitute presumptive evidence that the dealer has included the tax to the sale price or charge actually paid by the purchaser or consumer. The presumption stated herein shall only apply to the dealer and shall not apply to the purchaser or consumer.

(Code 1956, § 56-35)

State law reference—Similar provisions, R.S. 47:304(C).

Sec. 150-605. Dealers not to advertise absorption of tax.

A person engaged in any business taxable under this article shall not advertise or hold out to the public in any manner, directly or indirectly, that he will absorb all or any part of the tax or that he will relieve the purchaser from the payment of all

or any part of the tax. A person who violates this provision with respect to advertising shall be guilty of a misdemeanor and, upon conviction, shall be punished by a fine of not more than $100.00 or imprisonment for not exceeding 90 days, or both, in the discretion of the court.
(Code 1956, § 56-36)

State law reference—Similar provisions, R.S. 47:304(F).

Sec. 150-606. Legal rights of dealer against purchaser; director to be joined in actions.

The dealer shall have the same right in respect to collecting the tax from the purchaser or in respect to nonpayment of the tax by the purchaser as if the tax were a part of the purchase price of the property or charges for services and payable at the time of the sale. The director shall be joined as a party in any action or proceeding brought by the dealer to collect the tax.
(Code 1956, § 56-37)

Sec. 150-607. Excess tax collected to be paid to director.

When the tax due and collectible for any period is in excess of two percent, the total due or collected must be paid over to the director less the commission to be allowed the dealer as set forth in this division.
(Code 1956, § 56-38)

State law reference—Similar provisions, R.S. 47:304(D).

Sec. 150-608. Registration of dealers and other persons subject to tax.

(a) In order to aid in the administration and enforcement of the provisions of this article and to collect all of the taxes imposed by this article, every dealer purchasing or importing tangible personal property for resale and every person or dealer using imported goods subject to the use tax imposed by this division shall apply to the director and obtain a certification of registration in a form prescribed by the director. In the case of dealers contemplating business or opening new offices, outlets or places of business, such application for such certificate shall be filed not less than 30 days prior to such commencement of business or opening.

(b) If the dealer is a corporation, the board of directors of the corporation shall designate by resolution an officer or director or a combination of officers and/or directors having direct control or supervision of the collection of sales or use taxes and the responsibility of filing returns and remitting sales or use taxes. Such resolution in proper form and bearing all corporate seals shall be filed with the director at the time the corporation applies for a certificate of registration. The director is authorized, as an alternative means of enforcing collection of sales or use taxes imposed by this article, to hold any officer or director or combination thereof designated in the corporate resolution, or in fact having direct control or supervision of collection of such taxes or the responsibility of filing returns and remitting such taxes, who fails to remit or account for such taxes collected, personally liable for the total amount of such taxes collected and not accounted for or not remitted together with any interest, penalties and fees accruing thereon. Collection of the total amount of taxes, interest, penalties and fees due may be made from any one or any combination of such officers or directors who willfully fail to remit or account for such taxes collected by use of any remedy available for the collection of taxes provided by law or ordinance.

(c) If the dealer is a natural person, the person applying for the certificate of registration shall be a person with a substantial ownership interest in the business who shall affirm and disclose this interest by an affidavit filed contemporaneously with the application for a certificate of registration as described above. The director is authorized, as an alternative means of enforcing collection of sales or use taxes imposed by this article, to hold any substantial owner of a business personally liable for the total amount of any taxes collected pursuant to the provisions of this article and not accounted for or not remitted together with any interest, penalties and fees accruing thereon. Collection of the total amount due may be made from a substantial owner of the business who willfully fails to remit or account for taxes imposed pursuant to this article by use of any remedy available for the collection of taxes provided by law or ordinance.
(Code 1956, § 56-39)

Sec. 150-609. Certificate of authority to collect tax—Required.

The director shall within five days after registration issue without charge to each dealer who purchases or imports for resale a certificate of authority empowering the dealer to collect the tax from the purchaser and duplicates thereof for each additional place of business of such dealer. Each certificate or duplicate shall state the place of business to which it is applicable. Such certificate of authority shall be prominently displayed in the places of business of the dealer.
(Code 1956, § 56-40)

Sec. 150-610. Same—When dealer has no regular place of business.

A dealer who has no regular place of doing business shall, before receiving the certificate referred to in the preceding section, deposit with the director a sum equivalent to three months' estimated taxes, to be assessed by the director, or $50.00, whichever is greater. The director may accept a bond or other security satisfactory to him in lieu of cash for the payment of any taxes, fees, interest and penalties imposed by this article. Such deposit will be returnable at the termination of the business upon proof of payment of all taxes, less interest and penalties, if any is due. When issued, the dealer shall attach such certificate to his cart, stand, truck or other merchandising device. The deposit will be forfeited 60 days after issuance of the certificate if the taxpayer has not filed and paid the sales tax due. This provision shall not restrict the authority of the director to assess and collect sales and use taxes in accordance with this article.
(Code 1956, § 56-41)

Sec. 150-611. Certificates nontransferable.

The certificates referred to in this division shall be nonassignable and nontransferable and shall be surrendered immediately to the director upon the dealer ceasing to do business at the place therein named.
(Code 1956, § 56-42)

Sec. 150-612. Dealer's commissions on collections.

For the purpose of compensating the dealer in accounting for and remitting the tax levied by this chapter each dealer shall be allowed one percent of the amount of tax due and accounted for and remitted to the director in the form of a deduction in submitting his report and paying the amount due by him if the amount due was not delinquent at the time of payment.
(Code 1956, § 56-43)

State law reference—Similar provisions, R.S. 47:306.

Sec. 150-613. Dealer who fails to collect liable for tax.

Any dealer who shall neglect, fail or refuse to collect the tax provided for in this article upon any retail sale made by him, or his agent or employee, which is subject to the tax imposed by this article shall be liable for and pay the tax himself.
(Code 1956, § 56-44)

State law reference—Similar provisions, R.S. 47:304(E).

Sec. 150-614. Failure of dealer to collect a tax a misdemeanor.

Any dealer who shall fail, neglect or refuse to collect the tax as provided in this article, either by himself or through his agents or employees shall, in addition to the penalty of being liable for and paying the tax himself, be guilty of a misdemeanor and upon conviction shall be punished by a fine of not more than $100.00 or imprisonment of not more than 90 days or both in the discretion of the court.
(Code 1956, § 56-45)

State law reference—Similar provisions, R.S. 47:304(E).

Sec. 150-615. When due.

The taxes levied under this article shall be due and payable monthly on the 20th day of the month.
(Code 1956, § 56-46)

State law reference—Similar provisions, R.S. 47:306.

Sec. 150-616. Returns and payment of tax.

For the purpose of ascertaining the amount of tax payable under this article, all dealers, on or before the 20th day of each month, shall transmit to the director, upon forms prescribed and furnished by him, returns showing the gross sales or purchases, as the case may be, arising from all sales or purchases taxable under this article during the preceding calendar month. Such returns shall show such further information as the direc-

tor may require to enable him to compute correctly and collect the tax herein levied. Each return shall be signed by the dealer filing it and his signature thereon shall constitute a warranty on the part of the dealer that he has read and examined the return and that, to the best of his knowledge and belief, it is true, correct and complete. Every dealer, at the time of making the return required hereunder, shall compute and remit to the director the required tax due for the preceding calendar month and failure so to do shall cause such tax to become delinquent. However, whenever the taxes due hereunder from a dealer average less than $100.00 per month and the dealer's annual gross sales are less than $250,000.00, the taxes hereunder shall be due and payable quarterly by the dealer, and the return required from the dealer for the quarter shall be filed on or before the 20th day of the first month of the next succeeding quarter. Any dealer who is required to file tax returns on a quarterly basis, as provided above, may file his returns and pay the tax on a monthly basis after first having received written approval from the director to do so. Application to file monthly must be furnished to the director in writing and will set forth complete justification for the shorter reporting period. Should any return be prepared by a person other than the dealer filing the same, such person shall also affix his signature thereto and warrant the correctness thereof.

(Code 1956, § 56-47; M.C.S., Ord. No. 17,095, § 1, 6-15-95)

State law reference—Similar provisions, R.S. 47:306.

Sec. 150-617. Collection by wholesalers.

(a) Notwithstanding the provisions of section 150-616 or any other provision of this article, every manufacturer, wholesaler, jobber or supplier domiciled in the parish who sells to anyone domiciled in the parish for sale at retail any article of tangible personal property the sale at retail of which is taxable under this article, shall collect as advance sales tax, 2½ percent of the sales price of such article at the time of sale.

(b) The amount paid by dealers to manufacturers, wholesalers, jobbers or suppliers shall be advance payment of the city sales tax which the dealer is required to collect upon the sale at retail, and the advance payment is required only as a means of facilitating collection of the sales tax.

(c) Manufacturers, wholesalers, jobbers and suppliers who collect advance sales tax from their purchasers pursuant to the preceding provisions shall remit the tax to the director in the manner provided for dealers and in accordance with the rules and regulations prescribed by the director.

(d) In making their returns to the director, dealers who have paid advance sales tax shall deduct from the total tax collected by them upon the retail sale of the commodity the amount of tax paid by them to the manufacturers, wholesalers, jobbers and suppliers during the period reported provided tax paid invoices evidencing the payment are retained by the dealer claiming the refund or credit. If the advance sales tax paid by the dealer during any reporting period amounts to more than the tax collected by him for the period reported, the excess so paid shall be allowed as a refund or credit against the tax collected by the dealer during the succeeding period or periods.

(e) Manufacturers, wholesalers, jobbers and suppliers collecting advance sales tax as hereinabove provided shall be allowed a one percent deduction from the amount so collected and remitted to the director as compensation for such collection. The one percent compensation shall not be allowed if the report and payment of the manufacturer, wholesaler, jobber or supplier is not timely filed.

(Code 1956, § 56-47.1)

State law reference—Similar provisions, R.S. 47:306(B).

Sec. 150-618. Form of remittance.

All taxes, interest and penalties imposed under this article shall be paid to the city in the form of remittance required by the director.

(Code 1956, § 56-48)

Sec. 150-619. Extension of time for filing return.

The director, for good cause, may extend for not to exceed 30 days the time for making any returns required under the provisions of this article.

(Code 1956, § 56-49)

State law reference—Similar provisions, R.S. 47:306.

Sec. 150-620. Lease or rental of tangible personal property.

The gross receipts or gross proceeds derived from the lease or rental, within this city, of all kinds and types of tangible personal property, are subject to the tax levied under this article. The tax shall be computed on the gross receipts or gross proceeds without any deduction whatsoever for expenses incident to the conduct of business.
(Code 1956, § 56-50)

State law reference—Similar provisions, R.S. 47:306(A)(2).

Sec. 150-621. Return by purchaser if dealer fails to collect tax; penalty.

(a) When a purchaser fails to pay and a dealer fails to collect a tax upon a sale, as imposed by this article, then, in addition to all other rights, obligations and remedies provided, such tax shall be payable by the purchaser directly to the director and the purchaser shall file a return thereof with the director and pay the tax imposed thereon to the director within 15 days after such sale is made or rendered.

(b) Any person who, as a purchaser, is obligated to report and pay the tax imposed upon any purchase made by him under the provisions of this section and who fails, neglects and refuses to file a return thereof with the director and pay the tax imposed thereon within the time stated after such sale is made, shall be guilty of a misdemeanor, and, upon conviction, shall be punished by a fine of not more than $100.00 or imprisonment for not more than 90 days or both such fine and imprisonment, in the discretion of the court.

(c) If any taxpayer fails to make any return required by this article or makes an incorrect return, and the circumstances indicate wilful negligence or intentional disregard of rules and regulations but no intent to defraud, there shall be imposed, in addition to any other penalties provided, a specific penalty of five percent of the tax or deficiency found to be due or $10.00, whichever is the greater. This specific penalty shall be an obligation to be collected and accounted for in the same manner as if it were a part of the tax due, and can be enforced either in a separate action or in the same action for the collection of the tax.
(Code 1956, § 56-51)

Sec. 150-622. False or fraudulent return; punishment.

Any dealer or other person on behalf of such dealer signing and filing a return subsequently found to be grossly incorrect, false or fraudulent shall be guilty of a misdemeanor and, upon conviction thereof, shall be subject to a fine of not more than $100.00 or imprisonment for not more than 90 days or both, in the discretion of the court.
(Code 1956, § 56-52)

Sec. 150-623. Statements to be made by gasoline dealers—Retail dealers.

By or before January 20 in each year, every retail gasoline dealer who operates a gasoline station in the city shall file with the director a statement of the total number of gallons of gasoline and motor fuel sold by him during the preceding calendar year.
(Code 1956, § 56-52.1)

Sec. 150-624. Same—Dealers selling gasoline for resale.

Dealers who sell gasoline and motor fuel solely for resale shall not be subject to the provisions of section 150-623, but every dealer (wholesale, bulk stations, and other dealers who sell direct to consumers) who sells gasoline and motor fuel for consumption within the city shall likewise file a statement of the total number of gallons of gasoline and motor fuel sold for consumption within the city during the preceding calendar year, as provided in section 150-623.
(Code 1956, § 56-52.2)

Sec. 150-625. Same—Making under oath; forms; verification.

Statements required by sections 150-623 and 150-624 shall be made under oath on forms

prepared and distributed by the director, and shall be subject to verification by him or any of his authorized representatives.
(Code 1956, § 56-52.3)

Sec. 150-626. Same—Statutorily required statements.

The statements prescribed by sections 150-623 through 150-625 shall be filed in addition to the statements required by R.S. 47:722 and R.S. 47:727; provided, however, that should any dealer subject to the provisions file with the director the statements required by R.S. 47:722 and R.S. 47:727 by or before January 20 in each year, then such dealer shall not be required to file the statements prescribed by sections 150-623 through 150-625.
(Code 1956, § 56-52.4)

Sec. 150-627. Records of purchases by dealers, etc.; inspection thereof; penalty.

Every dealer required to make a report and pay any tax under this article shall keep and preserve suitable records of the sales or purchases taxable under this article and such other books of account as may be necessary to determine the amount of tax due under this article and such other information as may be required by the director. Such records shall include but not be limited to individual receipts or copies thereof which must be presented to the customer upon each sale or a cash register tape totaled daily with the corresponding date marked thereon excepting vendors of food or drink not operating at a fixed location or any sales in conjunction with a permitted charitable event. Every dealer shall keep and preserve, for a period of three years, all invoices and other records of goods, wares and merchandise or other subjects of taxation under this article. All books, invoices and other records shall be open to examination, at all reasonable hours, by the director or any of his duly authorized agents. Failure of dealers to keep suitable records of sales or purchases for the three years as required herein, shall result in a penalty of $100.00 for each day the dealer is deficient of the mandated time required.
(Code 1956, § 56-53; M.C.S., Ord. No. 27051, § 1, 9-8-16)

State law reference—Similar provisions, R.S. 47:309.

Sec. 150-628. Minimum standards of use tax audits.

The director shall prepare a written manual setting forth requirements and standards for use tax audits. The department of finance shall provide that not less than 30 percent of all audits be use tax audits.
(Code 1956, § 56-20.4)

Sec. 150-629. Use tax returns sent to certain persons doing business in the city.

(a) The director shall compile a list of all persons doing business in the city. The listing shall be compiled from all available sources including telephone directories, city directories, and the corporations registry in the office of the secretary of state or similar lists or directories. Use tax returns shall be sent to all persons on the list annually. The use tax returns shall include pertinent information regarding liability for payment of the use tax which shall disclose penalty provisions for failure to return the use tax returns by the due date.

(b) The use tax return required by this section need not be sent to persons doing business in the city who currently receive sales and use tax return forms from the city.
(Code 1956, § 56-20.5)

Sec. 150-630. Maintenance of records by dealers; cost of audit thereof.

Every dealer is hereby required to maintain his records in such manner and in such detail as will permit the director or his duly authorized agents to readily verify the correctness of any tax as may be due and assessable under this article. The dealer's records shall be maintained in such manner as to readily reflect gross sales, and other records as will segregate and make readily available for audit all details for any

deduction taken from gross sales, and the total of such items shall be reflected on the monthly tax returns filed as required under this article. Upon the failure of any dealer to comply with the provisions of this section, and because of such failure upon the part of such dealer, it becomes necessary for the director or his duly authorized agents to establish, by detailed audit, the correctness of such gross sales and deductions claimed, then, in that event, the cost of such audit shall be borne by and assessable against such dealer.
(Code 1956, § 56-53.1)

Sec. 150-631. Other records to be kept by dealers.

(a) Each dealer shall secure, maintain and keep, for a period of three years, a complete record of sales of services and tangible personal property received, used, sold at retail, distributed or stored, leased or rented, within the city by such dealer, together with invoices, bills of lading and other pertinent records and papers as may be required by the director for the reasonable administration of this article, and all such records shall be open for inspection to the director at all reasonable hours. Any dealer subject to the provisions of this article who shall violate this provision shall be guilty of a misdemeanor and upon conviction shall be punished as provided in section 150-727.

(b) It is hereby declared to be the intention of this article to impose a tax on the gross proceeds of all leases and rentals of tangible personal property in this city, where the lease or rental is part of a regularly established business or the same is incidental or germane thereto.

(c) For the purpose of compensating the dealer in accounting for and remitting the tax levied by this article, each dealer shall be allowed one percent of the amount of the tax due and accounted for and remitted to the director in the form of a deduction in submitting his report and paying the amount due by him; provided, the amount due was not delinquent at the time of payment.
(Code 1956, § 56-54)

Sec. 150-632. Records to be kept by wholesalers; inspection thereof; penalty.

In order to aid in the administration and enforcement of the provisions of this article and to collect all of the tax imposed by this article, all wholesale dealers and jobbers in the city shall keep a record of all sales of tangible personal property made in the city, whether such sales be for cash or on terms of credit. The record required to be kept by all wholesale dealers and jobbers shall contain and include the name and address of the purchaser, the date of the purchase, the articles purchased and the price at which the article is sold to the purchaser. These records shall be kept for a period of three years and shall be open to the inspection of the director or his duly authorized assistants at all reasonable hours. The failure of any wholesale dealer or jobber in the city to keep such records or the failure of any wholesale dealer or jobber in the city to permit an inspection of such records by the director shall be a misdemeanor and, upon conviction thereof, such wholesale dealer or jobber shall be subject to a fine of not more than $100.00 or imprisonment for not more than 90 days, or both.
(Code 1956, § 56-55)

Sec. 150-633. Wholesale dealers and jobbers to secure and keep on file exemption certificates.

All wholesale dealers and jobbers in the city are hereby required to secure from each purchaser a properly executed certificate of exemption on a form designated and approved by the director, which certificate of exemption shall be kept on file by the wholesaler or jobber for a period of not less than three years, and shall be subject to inspection by the director or any of his duly authorized agents.
(Code 1956, § 56-55.1)

Sec. 150-634. Inspection of transportation company records—Authority of director.

For the purpose of enforcing the collection of the tax levied by this article, the director may examine, at all reasonable hours, the books, records and other documents of all transportation companies, agencies or firms, operating in the city, whether such companies, agencies or firms conduct their business by truck, rail, water, airplane or otherwise, in order to determine what dealers, as provided in this article, are importing or otherwise shipping articles of tangible personal property which are liable for such tax.
(Code 1956, § 56-56)

State law reference—Similar provisions, R.S. 47:311.

Sec. 150-635. Same—Rule in case of refusal to permit inspection.

If any transportation company, agency or firm shall refuse to permit an examination of its books, records or other documents by the director, the director may proceed by rule, in term time or in chambers, in any court of competent jurisdiction and require such transportation company, agency or firm to show cause why the director should not be permitted to examine its books, records or other documents and in case such rule is made absolute, it shall be considered a judgment of the court and every violation of such judgment shall be considered as a contempt thereof and punished according to law.
(Code 1956, § 56-57)

State law reference—Similar provisions, R.S. 47:311.

Sec. 150-636. Records of director; authenticated copies thereof.

The director shall keep a record of all of his official acts and shall preserve copies of all rules, decisions and orders made by him or by any deputy

of his department in charge of the collection of the tax imposed by this article. Copies of such rules, decisions or orders and of any paper filed in any office maintained by him in the administration of this article may be authenticated under his official signature and when so authenticated shall be evidence in all courts of the state of the same weight and force as the original thereof. For authenticating any such copy, he shall be paid a fee of $1.00.
(Code 1956, § 56-58)

Sec. 150-637. Records confidential.

The records and files of the director respecting the administration of this article shall be considered confidential and privileged and neither the director nor any employee engaged in the administration thereof or charged with the custody of any such records or files shall divulge or disclose any information obtained from such records or files or from any examination or inspection of the premises or property of any dealer. Neither the director nor any employee engaged in such administration or charged with the custody of any such records or files shall be required to produce any of them for the inspection of any person or for use in any action or proceeding except:

(1) In an action or proceeding under the provisions of this article; and

(2) When the records or files or the facts shown thereby are directly involved in such action or proceeding.

(Code 1956, § 56-59)

Sec. 150-638. Qualification of confidentiality rule.

Nothing contained in this article shall be construed to prevent:

(1) The delivery to a dealer or his duly authorized representative of a copy of any return, report or other paper filed by him pursuant to the provisions of this article;

(2) The publication of statistics so classified as to prevent the identification of any return or report and the items thereof;

(3) The inspection by the attorney general or other legal representative of the state or of the city attorney of the returns, reports or files relating to the claim of any dealer who shall have brought an action to review or set aside any tax imposed under this article or against whom an action or proceeding has been instituted in accordance with the provisions hereof;

(4) The examination of the records and files by the director or by his duly authorized agents; or

(5) The furnishing, in the discretion of the director of any information disclosed by the records or files to any official person or body of any other state or of the United States who shall be concerned with the administration of any similar tax by that state or the United States.

(Code 1956, § 56-60)

Sec. 150-639. Preservation of records.

All returns or reports filed with the director pursuant to the provisions of this article shall be preserved for two years and thereafter may be destroyed by order of the director.
(Code 1956, § 56-61)

Secs. 150-640—150-675. Reserved.

DIVISION 6. PROVISIONS AFFECTING IMPORTED GOODS

Subdivision I. Generally

Sec. 150-676. Permit to import goods by others than common carriers.

In order to prevent the illegal importation into the city of tangible personal property which is subject to tax and to strengthen and make more effective the manner and method of enforcing payment of the tax imposed by this article, the director may put into operation a system of permits whereby any person may import tangible personal property by truck, automobile or other means of transportation other than a common carrier, without having such truck, automobile or other means of transportation seized and sub-

jected to legal proceedings for its forfeiture. Such system of permits shall require the person or dealer who desires to import tangible personal property into the city which is subject to the tax imposed by this article, to apply to the director or his assistant for a permit stating the kind of vehicle to be used, the name of the driver, the license number of the vehicle, the kind or character of tangible personal property to be imported, the date, the name and address of the consignee and such other information as the director may deem proper or necessary to prevent the illegal importation of tangible personal property into the city. Such permits shall be free of cost to the applicant and may be obtained at the office of the director.
(Code 1956, § 56-62)

State law reference—Similar provisions, R.S. 47:313.

Sec. 150-677. Importation without a permit illegal.

The importation into the city of tangible personal property which is subject to tax by truck, automobile or other means of transportation other than a common carrier without having first obtained a permit as described in section 150-676, if the tax imposed by this article on such tangible personal property has not been paid, shall be construed as an attempt to evade payment of such tax and is hereby prohibited and any truck, automobile or means of transportation other than a common carrier and such taxable property may be seized by the director in order to secure it as evidence in a trial and it shall be subject to forfeiture and sale in the manner provided for in this article.
(Code 1956, § 56-63)

State law reference—Similar provisions, R.S. 47:311(B).

Sec. 150-678. Attachment of property if tax not paid.

The failure of any dealer who imports tangible personal property into the city for use, consumption, distribution or storage to be used or consumed in the city or who imports for lease or rental any tangible personal property subject to the provisions of this article, to pay any tax, interest, penalties or costs under this article shall ipso facto make such tax, interest, penalties and costs delinquent and shall be construed as an attempt to avoid the payment of the same, which shall be sufficient grounds for the attachment of such tangible personal property, wherever the same may be located or found, whether such delinquent dealer be a resident or nonresident of the city and whether such tangible personal property is in the possession of such delinquent dealer or in the possession of other persons; provided, that it is the intention of this article to prevent the disposition of such tangible personal property in order to ensure payment of the tax imposed by this article together with interest, penalties and costs, and authority to attach is hereby specifically granted to the director.
(Code 1956, § 56-64)

State law reference—Similar provisions, R.S. 47:312.

Secs. 150-679—150-700. Reserved.

Subdivision II. Remedies for Collection

Sec. 150-701. Presumption of taxability.

For the purpose of the enforcement of this article, and the collection of the tax levied hereunder, it is presumed that all tangible personal property, subject to the provisions of this article, imported into the city or held in the city by any dealer is to be sold at retail, used or consumed or stored for use or consumption in the city or leased or rented within the city and is subject to the tax herein levied. Such presumption shall be prima facie only and subject to proof furnished to the director.
(Code 1956, § 56-65)

Sec. 150-702. Interest, penalty and attorneys' fees on delinquent payments.

When any taxpayer fails to pay a tax or any portion thereof on or before the date prescribed for its payment, interest at the rate of 1¼ percent per month shall be added to the amount of tax due from the due date until paid. In addition to the interest that may be so due, there shall also be collected a penalty of five percent of the tax if the failure is for not more than 30 days with an additional five percent for each additional 30 days

or fraction thereof during which the failure continued. If a suit is filed to collect the tax due, there shall also be collected attorneys' fees at the rate of ten percent on the aggregate amount of tax, interest and penalty.
(Code 1956, § 56-66)

Sec. 150-703. Penalties and interest collectible like tax.

All penalties and interest imposed by this article shall be payable to and recoverable by the director in the same manner as if they were part of the tax imposed.
(Code 1956, § 56-67)

Sec. 150-704. Remission of penalties and/or interest.

If the failure to pay any tax when due is explained to the satisfaction of the director, he may remit or waive payment of the whole or any part of any such penalty and/or interest.
(Code 1956, § 56-68)

Sec. 150-705. Assessment based on director's estimate.

If any person shall fail to make a return or report, as required by this article, the director, within three years from December 31 of the year in which such return or report was required to be filed under this article, may make an estimate of the amount of taxes such person is liable to pay under the terms of this article, from any information he is able conveniently to obtain, and, according to such estimate so made by him, assess the taxes, fees, penalties and interest due this city from such person, give notice of such assessment to such person and make demand upon him for payment.
(Code 1956, § 56-69)

State law reference—Similar provisions, R.S. 47:307.

Sec. 150-706. Director to estimate tax when return not filed, etc.

If any dealer fails to make a report and pay the tax required by this article, or in case the dealer makes a grossly incorrect report or a report that is false or fraudulent, it shall be the duty of the director to make an estimate for the taxable period of the retail sales or sales of services of such dealer or of the gross proceeds from rentals or leases of tangible personal property by the dealer, and an estimate of the cost price of all articles of tangible personal property imported by the dealer for use or consumption or distribution or storage to be used or consumed in this city and assess and collect the tax and interest, plus penalty, if such have accrued, on the basis of such assessment, which shall be considered prima facie correct, and the burden to show the contrary shall rest upon the dealer.
(Code 1956, § 56-70)

State law reference—Similar provisions, R.S. 47:307(A).

Sec. 150-707. Cost of examination added to tax.

If the estimate and assessment made by the director requires an examination of books, records or documents, or an audit thereof, the director shall add to the assessment of the cost an hourly basis of such examination. The cost to the taxpayer shall be assessed on an hourly basis, plus reasonable expenses, not to exceed 30 percent of the amount of the additional taxes determined to be due as the result of the audit, together with any penalties accruing thereon. Such penalties when collected shall be placed in the city's general fund account in the same manner as are the taxes collected under this article.
(Code 1956, § 56-71; M.C.S., Ord. No. 19,067, § 1, 1-7-99)

State law reference—Similar provisions, R.S. 47:307(D).

Sec. 150-708. Summoning delinquent dealer for examination—Authority of director.

If any dealer subject to make and file a return required by any provision of this article fails to render such return within the time required or renders a return which is false or fraudulent in that it contains statements which differ from the true gross sales, purchases, leases or rentals or other transactions taxable under this article or otherwise fails to comply with the provisions of this article, for the taxable period for which such return is made, the director shall give such dealer 15 days' notice, in writing, requiring such dealer to appear before him or his assistant with such

books, records and papers as he may require, relating to the business of such dealer, for such taxable period, and the director may require such dealer or the agents or employees of such dealer to give testimony or to answer interrogatories, under oath administered by the director or his assistants, respecting the sale at retail, the use, consumption, distribution or storage for use or con-

sumption in this city or lease or rental of tangible personal property or other transactions subject to tax or the failure to make report thereof as provided in this article.
(Code 1956, § 56-72)

Sec. 150-709. Same—Court order.

If any dealer fails to make a return or refuses to permit an examination of his books, records or papers or to appear and answer questions within the scope of an investigation relating to the sale, use, consumption, distribution, storage, lease or rental of tangible personal property or sale of services, the director may apply to any court of competent jurisdiction for an order requiring such dealer to make such return or requiring the dealer, his agents or employees, to appear and answer any such questions or permit such examination and the court, or any judge thereof, shall thereupon issue an order, upon such reasonable notice as shall be prescribed therein, to be served upon such dealer or the agents or employees of such dealer, directing him or them so to appear and testify and to produce such books, records and papers as may be required.
(Code 1956, § 56-73)

Sec. 150-710. Same—Contempt.

Any person, including any member of any firm, copartnership, joint adventure, association or corporation or any agent or employee thereof, failing to comply with the order referred to in section 150-709 shall be guilty of contempt and shall be punished as provided by law in cases of contempt.
(Code 1956, § 56-74)

Sec. 150-711. Assessment of additional tax after investigation.

After a return or report is filed under the provisions of this article the director shall make such further examination, audit or investigation as he may deem necessary and if therefrom he shall determine that there is a deficiency with respect to the payment of any tax due under this article, he shall assess the additional amount of tax and any penalties and interest, or either of them, due the city from such person, give notice of such assessment to such person and make demand upon him for payment.
(Code 1956, § 56-75)

Sec. 150-712. Ascertaining and fixing tax when dealer has no record, etc.

(a) If a dealer has imported tangible personal property and fails to produce an invoice showing the cost price of the articles which are subject to tax or the invoice does not reflect the true or actual cost price, the director shall ascertain, in any manner feasible, the true cost price and assess and collect the tax with interest, plus penalties, if such have accrued, on the true cost price as assessed by him. The assessment so made shall be considered prima facie correct and the burden shall be on the dealer to show the contrary.

(b) In the case of the lease or rental of tangible personal property, if the consideration given or reported by the dealer does not, in the judgment of the director, represent the true or actual consideration, then the director may fix the consideration and collect the tax thereon in the same manner as above provided, with interest plus penalties, if such have accrued.
(Code 1956, § 56-76)

Sec. 150-713. Jeopardy assessment.

If the director finds that any person liable to the payment of any tax under this article designs quickly to depart from the city or to remove therefrom his property, subject to any lien under the provisions of this article, to discontinue business or to do any other act tending to prejudice or render wholly or partly ineffectual any proceedings that might be instituted to collect such tax whereby it shall have become important that such proceedings be instituted without delay, the director may make an arbitrary assessment as herein provided, whether or not any return or report is then due by law, and may proceed under such arbitrary assessment to collect the tax or demand security for it and thereafter shall cause notice of such findings to be given to such person, together with a demand for an immediate return or report and immediate payment of such tax.
(Code 1956, § 56-77)

Sec. 150-714. When bond may be required.

The director may require a bond or other security satisfactory to him for the payment of any taxes, fees, interest and penalties, or any one of them, imposed pursuant to this article, when he shall find that the collection thereof may be prejudiced without such security.
(Code 1956, § 56-78)

Sec. 150-715. When assessments of delinquent taxes payable.

All taxes, penalties and interest assessed pursuant to the provisions of sections 150-711 through 150-713 shall be paid within 15 days after notice and demand shall have been mailed to the dealer liable therefor by the director.
(Code 1956, § 56-79)

Sec. 150-716. Penalty for late payment.

If taxes, penalties and interest so assessed shall not be paid within 15 days there shall be added to the amount assessed, in addition to interest and any other penalties provided by this article, a sum equivalent to five percent of the tax.
(Code 1956, § 56-80)

Sec. 150-717. Tax a personal debt; lien thereof.

The liability of any person arising from any tax, interest and penalty, or any of them, imposed by this article, from the time they are due, shall be a personal debt of such person to the city, recoverable in any court of competent jurisdiction in an action at law by the director in the name of the city. Such debt, whether sued upon or not, shall be a lien on all the property of such delinquent person, except as against an innocent purchaser for value without notice in the actual course of business, and shall have preference in any distribution of the assets of such person, whether in bankruptcy, insolvency or otherwise. The proceeds of any judgment or order obtained hereunder shall be paid to the director.
(Code 1956, § 56-81)

Sec. 150-718. Garnishee proceedings to collect tax.

If any dealer is delinquent in the payment of the tax provided for in this article, the director may give notice of the amount of such delinquency by registered or certified mail to all persons having in their possession or under their control any credits or other personal property belonging to such dealer or owing any debts to such dealer at the time of receipt by them of such notice, and, thereafter, any person so notified shall neither transfer nor make any other disposition of such credits, other personal property or debts until the director shall have consented to a transfer or disposition or until 30 days shall have elapsed after the receipt of such notice. All persons so notified must, within five days after receipt of such notice, advise the director of all such credits, other personal property or debts in their possession, under their control or owing by them, as the case may be.
(Code 1956, § 56-82)

Sec. 150-719. Collection by distraint and sale.

If any dealer against whom taxes have been assessed under the provisions of this article shall refuse or neglect to pay such taxes within the time prescribed in this article, the director or his duly authorized representative, who is charged with the collection of such taxes may collect such taxes together with such interest and other additional amounts as are added by law by distraint and sale of any property or rights to property belonging to the delinquent dealer.
(Code 1956, § 56-83)

Sec. 150-720. Rule to show cause for failure to pay tax; effect thereof.

Failure to pay any tax due, as provided in this article, shall ipso facto, without demand or putting in default, cause such tax, interest, penalties and costs to become immediately delinquent, and the director is hereby vested with authority, on motion in a court of competent jurisdiction, to take a rule on such dealer, to show cause in not less than two or more than ten days, exclusive of holidays, after the service thereof, which may be tried out of term and in chambers, and shall always be

tried by preference, why the dealer should not be ordered to cease from further pursuit of business as a dealer. In case such rule is made absolute, the order thereon rendered shall be considered a judgment in favor of the city, prohibiting such dealer from the further pursuit of such business until such time as he has paid the delinquent tax, interest, penalties and costs. Every violation of the injunction shall be considered as a contempt of court and punished according to law. For the purpose of the enforcement of this article, and the collection of the tax levied hereunder, it is presumed that all tangible personal property, subject to the provisions of this article, imported into this city or held in this city by any dealer is to be sold at retail, used, consumed or stored for use or consumption or leased or rented within this city and is subject to the tax herein levied; provided, that such presumption shall be prima facie only, and subject to proof furnished to the director.
(Code 1956, § 56-84)

Sec. 150-721. Entry of judgment ex parte.

As an additional or alternative remedy, the director may issue a certificate to the clerk of any court of competent jurisdiction that any dealer is indebted under this article in such an amount as is named in such certificate and thereupon the clerk to whom such certificate is issued shall immediately enter upon his record of docketed judgments the name of such dealer and of the city, the amount of the debt so certified, a short name for the tax imposed by this article and the date of making such entries. The making of the entries shall have the same force and effect as the entry of a docketed judgment in the offices of such clerk and the director shall have all of the remedies and may take all of the proceedings for the collection thereof which may be had or taken upon the recovery of a judgment in an action at law upon a contract, but without prejudice to the right of appeal by such delinquent dealer.
(Code 1956, § 56-85)

Sec. 150-722. Corporations not to be dissolved, etc., until taxes paid.

No corporation organized under any law of the state shall hereafter be dissolved or effect a merger, reorganization or consolidation under any law of the state by the action of the stockholders or by the decree of any court until all taxes, fees, penalties and interest imposed on the corporation in accordance with the provisions of this article shall have been paid in full. No foreign corporation which has obtained authority from this state to transact business in this state may surrender such authority and withdraw from this state until all taxes, fees, penalties, interest and other charges imposed upon such corporation in accordance with the provisions of this article shall have been fully paid. The president, executive officers, managers and directors of any corporation which shall violate the provisions of this section shall upon conviction thereof be subject to a fine of not more than $100.00 or imprisonment for not more than 90 days or both such fine and imprisonment in the discretion of the court; and such fine and imprisonment shall not prevent other action against the corporation as otherwise provided in this division for the recovery of the tax, interest and penalties that may be due.
(Code 1956, § 56-86)

Sec. 150-723. Release of lien of judgment.

The director, upon the application of any dealer and upon the payment of a fee of $1.50, may release any property from the lien of any certificate, judgment or levy procured by him; provided that payment is made to the director of such sum as he shall deem adequate consideration for such release or a deposit shall have been made with the director of such security as he shall deem adequate to secure the payment of any debt evidenced by any such certificate, judgment or levy, the lien of which is sought to be released. Such release shall be given by the director and may be recorded in any office in which conveyances of real estate may be recorded.
(Code 1956, § 56-87)

Sec. 150-724. Punishment for false or fraudulent return.

Any dealer required to make, render, sign or verify any return who makes a false or fraudulent return with intent to evade a tax levied by this article shall be guilty of a misdemeanor.
(Code 1956, § 56-88)

Sec. 150-725. Failure to file return, etc., a misdemeanor; penalty.

Any dealer subject to the provisions of this article failing or refusing to furnish any return herein required to be made, or failing or refusing to furnish a supplemental return or other data required by the director or who shall violate any other provisions of this article, punishment for which is not otherwise herein provided, shall be guilty of a misdemeanor.
(Code 1956, § 56-89)

Sec. 150-726. Failure to remit tax a misdemeanor.

(a) It shall be unlawful for any person to commit the crime of failure to remit sales or use tax as hereinafter defined. Failure to remit sales or use tax is the intentional failure on the part of any person to file any sales tax returns or any use tax returns when due, or to fail to remit to the city sales or use taxes collected from purchasers or consumers or otherwise due the city when due under the provisions of this article.

(b) For the purposes of this section, the word person means any individual, partnership, corporation, joint stock association and includes any trustee, receiver, assignee or personal representative thereof and any officer or director having direct control or supervision of the collection or remittance of sales or use taxes or charged with the responsibility of filing returns for and remitting sales or use taxes to the city.

(c) Any person who violates the provisions of this section shall, upon conviction thereof or plea of guilty, be punished by a fine of not more than $300.00 or by imprisonment of not more than five months or both.
(Code 1956, § 56-89.1)

Sec. 150-727. Penalty for violations.

Any person who shall violate any other provisions of this article, punishment for which is not otherwise herein provided, shall be guilty of a misdemeanor and upon conviction thereof shall be fined in a sum of not more than $100.00 or imprisoned for a period of not more than 90 days or by both in the discretion of the court.
(Code 1956, § 56-90)

Sec. 150-728. City attorney and council to be notified of violations.

(a) Each month the director shall forward a list of all persons failing or refusing to furnish any return, supplemental return or other data required by the director pursuant to this article or violating any other provision of this article to the city attorney and the city council.

(b) The city attorney shall take appropriate legal action to enforce the provisions of this article, including, in the case of businesses holding alcoholic beverage permits which have failed to pay any taxes due to the city in connection with the licensed premises, petitioning the alcoholic beverage control board for revocation or suspension of city retail alcoholic beverage permits.

(c) In addition to any other legal action available to the city, the city attorney shall seek the revocation or suspension of any other licenses or permits held by any person failing to remit sales taxes to the city with respect to the business owing the tax.
(Code 1956, § 56-90.1)

Secs. 150-729—150-750. Reserved.

Subdivision III. Remedies of Taxpayer

Sec. 150-751. Payment under protest.

Upon request of a dealer and upon proper showing by such dealer that the principle of law involved in an additional assessment is already pending before the courts for judicial determination, such dealer, upon agreeing to abide by the decision of the courts, may pay the additional assessment under protest but need not file an additional suit. In such cases, the tax so paid under protest shall be segregated and held by the director until the question of law involved has been determined by the courts and shall then be disposed of as then provided.
(Code 1956, § 56-91)

Sec. 150-752. Effect of return of goods sold.

If purchases are returned to the dealer by the purchaser or consumer after the tax imposed by this article has been collected or charged to the account of the consumer or user, the dealer shall be entitled to reimbursement of the amount of the tax so collected or charged by him, in the manner prescribed by the director; and in case the tax has not been remitted by the dealer to the director, the dealer may deduct it in submitting his return. Upon receipt of a sworn statement of the dealer, subject to verification by the director or his duly authorized agents, as to the gross amount of such refunds during the period covered by such sworn statement, the director shall issue to the dealer an official credit memorandum equal to the net amount remitted by the dealer for such tax so collected. Such memorandum shall be accepted by the director at full face value from the dealer to whom it is issued in the remittance for subsequent taxes accrued under the provisions of this article.
(Code 1956, § 56-92)

State law reference–Similar provisions, R.S. 47:315.

Sec. 150-753. Claim for refund for returns.

If any dealer shall have given to the director notice within the time provided in section 150-752, such dealer thereafter, at any time within two years after the payment of any original or additional tax assessed against him, may file with the director a claim under oath for refund, in such form as the director may prescribe, stating the grounds thereof. But no claim for refund shall be required or permitted to be filed with respect to a tax paid after protest has been filed with the director as provided in section 150-751 or after proceedings on appeal have been commenced as provided in this article until such protest or appeal has been finally determined.
(Code 1956, § 56-93)

Sec. 150-754. Action on claim for refund.

If, upon examination of a claim for refund, it shall be determined by the director that there has been an overpayment of tax, the amount of such overpayment shall be credited against any liability of any dealer under this article and if there is no such liability such dealer shall be entitled to a refund of the tax so overpaid. If the director shall reject the claim for refund in whole or in part he shall make an order accordingly and serve notice upon such dealer.
(Code 1956, § 56-94)

State law reference–Similar provisions, R.S. 47:315.

Sec. 150-755. Refund without claim when right is apparent.

When no question of fact or law is involved and it appears from the records of the director that any moneys have been erroneously or illegally collected from any dealer or have been paid by any dealer under a mistake of fact or law, the director may, at any time within two years of payment, upon making a record in writing of his reasons therefor, certify that any dealer is entitled to such refund, and thereupon shall authorize the payment from any appropriation available for such purpose; provided, that the director shall first apply the amount of any such refunds toward the payment of any other taxes or licenses as may be then due by such dealer to the city.
(Code 1956, § 56-95)

Sec. 150-756. Right of action for refund.

A right of action is hereby created to afford a remedy at law for any dealer aggrieved by the provisions of this article. In case of any such dealer resisting the payment of any amount found due or the enforcement of any provision of such laws in relation thereto, such dealer shall pay the amount found due by the director and shall give the director notice, at the time, of his intention to file suit for the recovery of such amount. Upon receipt of such notice, the amount so paid shall be segregated and held by the director for a period of 30 days; and if suit be filed within such time for recovery of such amount, such funds so segregated shall be further held, pending the outcome of such suit. If the dealer prevails, the director shall refund the amount to the claimant, with interest at the rate of two percent per annum covering the period from the date such funds were received by the director to the date of refund.
(Code 1956, § 56-96)

Sec. 150-757. Complete legal remedy afforded.

Section 150-756 shall afford a legal remedy and right of action in any state or federal court having

jurisdiction of the parties and subject matter for a full and complete adjudication of any and all questions arising in the enforcement of this article, as to the legality of any tax accrued or accruing or the method of enforcement thereof. In such actions, service of process shall be upon the mayor, the acting mayor or the city attorney, as provided in the Charter.
(Code 1956, § 56-97)

Sec. 150-758. Constitutional questions included.

Section 150-756 shall be construed to provide a legal remedy in the state or federal courts, by action at law, in case such taxes are claimed to be an unlawful burden upon interstate commerce or the collection thereof to be in violation of any Act of Congress or the United States Constitution or the constitution of the state or in any case which jurisdiction is vested in any of the courts of the United States.
(Code 1956, § 56-98)

Sec. 150-759. Protest against director's ruling; effect thereof and hearing thereon.

If any dealer shall disagree with any finding or assessment of the director, he may, within 30 days of the receipt of notice of the assessment or finding, file a protest in writing, signed by him or his duly authorized agent, which shall be under oath and shall set forth the reasons therefor, and he may request a hearing. Thereafter, the director shall grant a hearing to such dealer, if a hearing has been requested, and may make an order confirming, modifying or vacating any such finding or assessment. The filing of any such protest shall not abate any penalty for nonpayment, nor shall it stay the right of the director to collect the tax in any manner herein provided, unless the dealer shall furnish security of a kind and in an amount satisfactory to the director.
(Code 1956, § 56-99)

Sec. 150-760. Appeal to council and then to court.

Any dealer who shall be aggrieved:

(1) By any decision, order, finding or assessment of the director made pursuant to the provisions of this article;

(2) By his refusal or failure to act; or,

(3) By any certification of debt to the clerk of a court;

may appeal therefrom to the council by filing with the director a petition of appeal addressed to the council in the manner and form and within the time and subject to such terms and conditions as the director shall prescribe by rule approved by the council. No such appeal shall stay the collection of any tax or the enforcement thereof by entry as a judgment, unless by order of the council and then only after security approved by the director shall have been furnished to him. The judgment or order of the council respecting any matter arising under the provisions of this article may be reviewed by any court of competent jurisdiction in the manner provided for by law.
(Code 1956, § 56-100)

Sec. 150-761. Refund after successful appeal.

If, by a decision or order of the council or of any court of competent jurisdiction, the dealer shall have been adjudged to be entitled to a refund, payment thereof shall be authorized by the director from any appropriation available for refund upon presentation to him of a certified copy of such decision or order.
(Code 1956, § 56-101)

Sec. 150-762. Return of moneys held as security.

When, to secure compliance with any of the provisions of this article, any moneys shall have been deposited with the director by the dealer and shall have been paid over to the director and he shall be satisfied that such dealer has fully complied with all such provisions, the director shall so certify and shall thereupon issue his warrant for the repayment to such dealer of such moneys or such part thereof as the director shall certify has not been applied by him to the satisfaction of any indebtedness arising under this article.
(Code 1956, § 56-102)

Secs. 150-763—150-790. Reserved.

DIVISION 7. RULES AND REGULATIONS

Subdivision I. Generally

Sec. 150-791. Bracket schedule.

(a) The tax imposed by this article shall be calculated according to the following table:

Purchase Price	*Amount of Tax*
$0.01 to $0.07	No tax
0.08 to 0.21	$0.01
0.22 to 0.35	0.02
0.36 to 0.49	0.03
0.50 to 0.64	0.04
0.65 to 0.78	0.05
0.79 to 0.92	0.06
0.93 to 1.07	0.07

On each additional $1.00 of purchase price add $0.07 tax.

(b) Of the total amounts collected under the above integrated method and bracket of prices by dealers or those otherwise responsible for the collection of the tax in the city, four-sevenths thereof shall be remitted by such dealers or collectors to the city. The four-sevenths so required to be transmitted represents the 2½ percent tax due the city and the 1½ percent tax due the parish school board under the above integrated method and bracket of prices, and is in conformity with the provisions of this article and the resolutions adopted by the parish school board. The remaining three-sevenths of the amount of taxes collected represents the amount of taxes due the state, which has imposed a three percent sales tax.

(c) The integrated method and bracket of prices hereby provided is to apply only to sales, use, consumption, storage, rentals of tangible personal property, sale of certain services and other such transactions that are taxed by both the city and the state.

(d) Where only four percent of the city sales tax is applicable the tax shall be calculated according to the following table:

Purchase Price	*Amount of Tax*
$0.01 to $0.12	No tax
0.13 to 0.37	$0.01
0.38 to 0.62	0.02
0.63 to 0.87	0.03
0.88 to 1.12	0.04

On each additional $1.00 of purchase price add $0.04 tax.
(Code 1956, § 56-119)

Sec. 150-792. Bracket schedule for June 1, 1982 through May 31, 1985.

(a) Section 150-791 notwithstanding, from June 1, 1982, through May 31, 1985, the tax imposed by this article shall be calculated according to the following table:

Purchase Price	*Amount of Tax*
$0.00 to $0.06	No tax
0.07 to 0.18	$0.01
0.19 to 0.31	0.02
0.32 to 0.43	0.03
0.44 to 0.56	0.04
0.57 to 0.68	0.05
0.69 to 0.81	0.06
0.82 to 0.93	0.07
0.94 to 1.06	0.08

On each additional $1.00 of purchase price add $0.08 tax.

(b) Of the total amounts collected under the above integrated method and bracket of prices by dealers or those otherwise responsible for the collection of the tax in the city, five-eighths thereof shall be remitted by such dealers or collectors to the city. The five-eighths so required to be transmitted represents the 3½ percent tax due the city and the 1½ percent tax due the parish school board under the above integrated method and bracket of prices, and is in conformity with the provisions of this article and the resolutions adopted by the parish school board. The remaining three-eighths of the amount of taxes collected represents the amount of taxes due the state, which has imposed a three percent sales tax. The integrated method and bracket of prices hereby provided is to apply only to sales, use, consumption, storage, rentals of tangible personal property, sale of certain ser-

vices and other such transactions that are taxed by the city, school board and the state.

(c) Where only the 4½ percent city and parish school board sales taxes are applicable, the tax shall be calculated according to the following table:

Purchase Price	*Amount of Tax*
$0.01 to $0.11	No tax
0.12 to 0.33	$0.01
0.34 to 0.55	0.02
0.56 to 0.77	0.03
0.78 to 0.99	0.04
1.00 to 1.22	0.05
1.23 to 1.44	0.06
1.45 to 1.66	0.07
1.67 to 1.88	0.08
1.89 to 2.11	0.09

On each additional $2.00 of purchase price add $0.09 tax.

(d) Where only the five percent city and parish school board sales taxes are applicable the tax shall be calculated according to the following table:

Purchase Price	*Amount of Tax*
$0.01 to $0.10	No tax
0.11 to 0.29	$0.01
0.30 to 0.49	0.02
0.50 to 0.69	0.03
0.70 to 0.89	0.04
0.90 to 1.10	0.05

On each additional $1.00 of purchase price add $0.05 tax.
(Code 1956, § 56-119.1)

Sec. 150-793. Deliveries outside of parish not taxable.

The tax imposed by this article is to be charged to purchasers by dealers upon the sales price as per the above schedule when the sale is consummated by delivery to the purchaser within the parish. On purchases which are to be delivered to a bona fide destination outside the parish the city tax does not apply.
(Code 1956, § 56-120)

Sec. 150-794. Export sales not taxable.

(a) The power to regulate commerce with foreign nations is vested in the Congress of the United States. Foreign commerce relates to commerce between the United States and foreign nations. The city is without power to tax the sale of tangible personal property for shipment to a foreign country.

(b) Illustration. The Oasis Refining Company, located in the city, is engaged in manufacturing gasoline from crude oil. The Oasis Refining Company received an order for 50,000 gallons of gasoline from the Liverpool Export Company, located at Liverpool, England. The gasoline is to be delivered at Liverpool, England, within a stipulated time at a given price. This is a transaction in foreign commerce and is not subject to the city sales tax.
(Code 1956, § 56-121)

Sec. 150-795. Nonresident purchases.

If a nonresident of the city purchases articles of tangible personal property from a dealer in the city and the sale is completed in the city the sale is not one of interstate commerce and is subject to the tax levied by this article. It is immaterial that the property purchased will be later transported outside the city or state.
(Code 1956, § 56-122)

Sec. 150-796. Interstate and foreign commerce sales tax.

(a) The power to regulate interstate and foreign commerce is vested in the Congress of the United States. The states and municipalities are prohibited from imposing any direct burden on such commerce through the exercise of their taxing power or otherwise. It is impossible to give an all-inclusive definition of the term interstate commerce or foreign commerce. The discussion which follows, while referring only to interstate commerce, applies in most cases with equal force to "foreign commerce."

(b) Interstate commerce cannot exist unless there is a movement of a subject of commerce from a point within the territorial jurisdiction of one

state across the boundary line to a point within the territorial jurisdiction of another state.

(c) In determining what constitutes interstate commerce, the following questions are pertinent:

(1) Does the transaction involve actual and physical movement of the property sold across the state line?

(2) If so, is such movement an essential part of the sale, as distinguished from being merely incidental thereto?

(3) If so, is the vendor obligated by the express or unavoidably implied terms of the sale or contract to sell to make a physical delivery of the property which forms the subject matter of the transaction across a state boundary line to the purchaser?

(d) If the answer to all three of these questions is yes, then the transaction is not subject to the application of the tax for the reason that it is in interstate commerce. If the answer to any one or more of the questions is no the sale is not in interstate commerce and the tax applies.
(Code 1956, § 56-123)

Sec. 150-797. Interstate and foreign commerce use tax.

When a sale is made in interstate commerce, meeting the tests set forth in section 150-796, if the property which is the subject of the sale is imported into this state for use or consumption, it is subject to the use tax. If the out-of-state vendor is not engaged in business in this city within the meaning of this article he is not required to collect the use tax from his customers in the city and in such cases the customers in the city (importers of tangible personal property) must report and pay the use tax directly to the director. If the vendor is engaged in business in the city he is required to qualify as a dealer under this article and must collect the use tax from his customers and remit the tax to the director. This article provides that engaging in business in the city shall mean and include any of the following methods of transacting business: Maintaining directly, indirectly or through a subsidiary, an office, distribution house, sales house, warehouse or other place of business or by having an agent, salesman or solicitor operating within the city under the authority of the seller or its subsidiary, irrespective of whether such place of business, agent, salesman or solicitor is located in the city permanently or temporarily or whether such seller or subsidiary is qualified to do business in the city.
(Code 1956, § 56-124)

Sec. 150-798. Imports from foreign countries.

(a) A tax upon an article imported from a foreign country may not be levied so long as the article remains in the hands of the importer and in the original package in which it was imported, nor may a tax be levied upon the sale by the importer of the goods in the original unbroken package.

(b) If the original package is broken and a sale is made by the importer the tax applies. If the importer sells the original package to a jobber or dealer and the jobber or dealer thereafter makes a sale of the entire quantity purchased by him such sale is taxable, even though it be in the original package. The sale by the jobber or dealer in the original package is made after the merchandise is no longer in the hands of the importer.
(Code 1956, § 56-125)

Sec. 150-799. Tax applicable to supplies, etc., sold to the city or its departments.

(a) When construction materials, supplies, equipment or other items of tangible personal property are sold and billed by the sellers to the city or any of its departments or agencies, as well as all contractors for use in carrying out such projects, and such materials, supplies and equipment are paid for by such bodies or contractors, such purchases are within this chapter and the tax must be collected by the seller.

(b) It is immaterial that part or all of the funds by which payments are made may have been advanced, granted or loaned by the federal government to the city or its subdivisions for financing public works.
(Code 1956, § 56-126)

Sec. 150-800. Sales to United States and its agencies.

When tangible personal property or a charge for services is billed and sold directly to, and is paid for by, the government of the United States, or any of its departments and/or agencies, the city is without power to impose the tax on such transaction. The determining factor in all cases is whether or not a sale is made and billed directly to the federal government or any of its departments and/or agencies, and is paid for directly by the federal government.
(Code 1956, § 56-127)

Sec. 150-801. Exemption of the city and its agencies.

The city and its agencies shall be exempt from the payment of the sales and use tax imposed by this article.
(Code 1956, § 56-128)

Sec. 150-802. Application of use tax.

(a) This article imposes a tax on the use, consumption, distribution and storage for use or consumption in the city of tangible personal property purchased in such manner that the sales tax does not apply thereto.

(b) The use tax applies to the use of property purchased in interstate commerce or in another state or another parish of the state for the purpose of use in the city after interstate or intrastate commerce has ended. For purposes of taxation, interstate or intrastate commerce ends when purchased property reaches the consignee and comes to rest within the city. The tax does not attach until the property has come to rest in the city.

(c) Generally it may be said that the use tax applies to the use of property in the city the sale of which would be subject to tax had there been a purchase within the city. The use tax does not apply upon the use of any property which has been subjected to a sales tax in a state other than this state at a rate equal to or greater than the rate of tax imposed by this article, nor does the use tax apply upon the use of any property which is exempt from the tax imposed upon the sale at retail by this article. The two taxes, sales and use, stand as complements to each other and taken together provide a uniform tax upon either the sale at retail or use of all tangible personal property irrespective of where it may have been purchased.

(d) The use tax is based on the cost price of the tangible personal property. The cost price means the actual cost of the property including transportation costs incurred in transporting the property to the place where it is to be used. No deduction is allowed for materials used, labor, service, cost, transportation charges or any other expenses whatsoever.
(Code 1956, § 56-129)

Sec. 150-803. Engaging in business in the city.

A dealer subject to registration and monthly remittances of taxes collected is any person conducting a business in the city in any of the following methods of transacting business: Maintaining directly, indirectly or through a subsidiary, an office, distribution house, sales house or other place of business or having an agent, salesman or solicitor operating within the city under the authority of the seller or its subsidiary, irrespective of whether such place of business, agent, salesman or solicitor is located in the city permanently or temporarily or whether such seller or subsidiary is qualified to do business in the city.
(Code 1956, § 56-130)

Sec. 150-804. Certificate of registration.

(a) *Required.* Every person who is responsible for collecting and accounting for the tax or who shall engage in any business for which tax is imposed under this article shall apply for and obtain a certificate of registration from the director. This requirement does not apply to persons whose entire gross proceeds of sales are expressly exempt under this article.

(b) *Display of certificate.* The dealer shall cause the certificate of registration to be posted in a conspicuous place in the place of business for which it is issued.

(c) *Change of ownership.* A certificate of registration is personal and nontransferable. The old certificate must be cancelled and a new one se-

cured when there is a change of ownership of a business. No change of ownership occurs upon the transfer of assets to an assignee for the benefit of creditors or upon the appointment of a receiver or trustee in bankruptcy.

(d) *Change in location.* Whenever the place of business for which a certificate of registration has been issued is changed, the taxpayer shall return the existing certificate to the director for cancellation. A new certificate will be issued for the new place of business.

(e) *Replacement.* If any original certificate of registration is destroyed or defaced as a result of accident or of natural wear and tear a duplicate certificate will be issued to the dealer upon request.
(Code 1956, § 56-131)

Sec. 150-805. Resale certificates.

(a) The director will consider all sales to be retail sales unless the seller takes from the buyer a resale certificate, signed by and bearing the name, address and registration number of the buyer, to the effect that the property was purchased for resale or to be used as an ingredient or a component part of a new article for sale at retail. Wholesalers may recognize the claim of a buyer that the articles are purchased for resale only when the buyer is properly registered under the provisions of this article, where the buyer is located in the city or under the provisions of the state sales tax law, where the buyer is located elsewhere within the state.

(b) The seller shall be responsible for the collection of the tax on all sales made to persons who have not secured the proper registration certificate, except in cases of fertilizer and containers sold directly to farmers. Resale certificates claiming that goods are purchased for resale must state the registration number assigned to the buyer when such buyer is a retail merchant. In case the buyer is a wholesale merchant the resale certificate shall state the wholesaler's occupational license number for the current year.

(c) Because a person is registered under the law does not mean that all of his purchases will be made for the purpose of resale. As an example: A person engaged in selling automobile tires and accessories would not be permitted to buy a diamond ring for resale. The burden of proving that a sale is in fact for resale shall be upon the person who makes the sale. Claims of purchasers must appear reasonable, consideration being given to the nature of their business.

(d) Dealers shall keep all resale certificates given to them by customers for examination by the director. Any dealer who fails to secure a properly executed and signed certificate will be held liable for and pay the tax himself. Resale certificates may be obtained from the bureau of revenue, department of finance.
(Code 1956, § 56-132)

Sec. 150-806. Sales price.

The sales price is the total amount for which tangible personal property is sold, including any services, except services for financing which shall not exceed the legal interest rate and a service charge not to exceed six percent of the amount financed, that are a part of the sale, valued in money, whether paid in money or otherwise, and includes the cost of materials used, labor or service costs, except costs for financing and losses. But cash discounts allowed and taken on sales shall not be included nor shall the sales price include the amount charged for labor or services rendered in installing, applying, remodeling or repairing property sold.
(Code 1956, § 56-133)

Sec. 150-807. Cash discounts.

(a) The selling price of an article of tangible personal property does not include the amount of bona fide cash discounts actually taken by the buyer and the amount of such discounts may be deducted from taxable sales if such discount has been previously included in taxable sales.

(b) Illustration. "A" sells a radio to "C" for $100.00, subject to a discount of two percent, ten days. "A" credits his taxable sales with $100.00. On the ninth day "C" sends "A" his check for $98.00, plus tax. In computing tax collected and due "A" may deduct from taxable sales the $2.00 discount taken.
(Code 1956, § 56-134)

Sec. 150-808. Transportation charges.

(a) Whether or not freight, delivery or transportation charges may be deducted by the seller from the selling price of tangible personal property sold for use or consumption, in computing his liability for sales tax under this article, does not depend upon the separate billing thereof, but depends upon whether or not the services rendered by the railway company or other transporting agency are rendered to such seller or to the purchaser.

(b) If the seller contracts to deliver tangible personal property to some designated place or is obligated under the contract to pay transportation charges to some designated place, the transportation services are rendered to the seller and the selling price of the tangible personal property so transported must include the amount of the transportation charges. In this event such charges are not deductible by the seller in computing his tax liability under this article. On the other hand if the seller contracts to sell tangible personal property f.o.b. origin, the title to the property passing at such point to the buyer and the buyer paying the transportation charges, then the transportation services are rendered to the buyer and are not a part of the selling price of the vendor. Therefore, such transportation charges should not be included by the vendor in computing his tax liability under this article. These principles will apply irrespective of whether such charges are separately billed by the seller from the tangible personal property sold.

(c) For example, where an automobile dealer sells an automobile from his stock and title thereto passes to the purchaser for use or consumption at the place of business of such dealer, the dealer is not permitted to deduct freight charges incurred in bringing the automobile from the factory to his place of business notwithstanding that the automobile may be sold and billed to the consumer on a basis of factory list price plus freight and other charges. Likewise, a person engaged in the business of selling lumber for use or consumption may not, in computing his tax, deduct from the selling price of the lumber freight or delivery charges accruing on account of the transportation of the lumber from the forest to his yard or warehouse or from his yard or warehouse to the consumer, if under the contract of sale he is obligated to deliver the lumber to the residence or place of business of the consumer. This is true notwithstanding that such items may be separately set up in his billings to the consumer.

(d) In all cases the determining factor is the place where title to tangible personal property passes to the user or consumer and any freight, delivery or other transportation charges incurred and paid by the seller for the purpose of transporting such property to such place are a part of the selling price of such property.

(e) When property is sold on terms whereunder the seller agrees to deliver such property to a certain place, but the purchaser pays the freight in the first instance and deducts it from the seller's invoice price of the goods in making remittance to the seller for the goods, the transportation charges are deemed to be a part of the selling price of the tangible personal property and the seller will be liable for tax with respect to the amount thereof.

(f) This section applies only to the sales tax and not to the use tax.
(Code 1956, § 56-135)

Sec. 150-809. Carrying, finance and service charges.

Finance charges, carrying charges, service charges or interest from credit extended on sales of tangible personal property under installment sale contracts or other installment contracts providing for deferred payments of the purchase price are not considered a part of the selling price of such property, if the service for financing does not exceed the legal interest rate and the service charge does not exceed six percent of the amount financed.
(Code 1956, § 56-136)

Sec. 150-810. Federal excise taxes.

(a) Most federal excise taxes are levied on the producer or manufacturer and are not required by law to be passed on to the consumer.

(b) However, under the new Federal Retailers' Excise Tax Act, excise tax is levied on the sale of fur coats and fur-trimmed coats, cosmetics and

jewelry, sold at retail, to be collected by the retailer from the user or consumer and remitted by the retailer to the federal government.

(c) The city sales tax on sales of fur coats and fur-trimmed coats, cosmetics, leather goods and jewelry should be computed on the selling price of the above items excluding the federal retailers' excise tax if the federal tax is billed to the consumer separately from the selling price of the above items.

(d) Federal excise taxes may not be deducted from the selling price of any other items of tangible personal property in computing the sales tax except as provided in this article, even though the tax is invoiced separately to the user or consumer.
(Code 1956, § 56-137)

Sec. 150-811. Installation charges on material affixed to real property.

Retailers of tangible personal property which is to be permanently affixed to real property and thereby becomes part of realty who, in connection with their sales, contract for the installation of the articles so sold are vendors of the articles and material in the same manner as in the case of articles sold without installation. Vendors so selling and installing must make a segregation of that portion of the charge which is for tangible personal property sold and that portion of the charge which is for installation. Failure to so segregate the charges will subject the entire amount to the tax.
(Code 1956, § 56-138)

Sec. 150-812. Containers.

(a) Items actually accompanying the product sold to the final buyer or ultimate consumer without which the delivery for the products is impracticable on account of the character of the contents and for which there is no separate charge are not subject to tax. These items include such things as cans in which canned goods, paints and other commodities are contained; medicine bottles; boxes in which jewelry, candy, suits, dresses and hats are delivered to a consumer; wrapping paper; paper bags; ice cream cartons and ice cream cones; twine; milk bottle caps; paper discs; and similar articles; also labels or name plates affixed to products manufactured and printed matter containing only directions for use when it is impracticable to affix such printed matter to the article sold.

(b) When container materials such as crating, packing cases, excelsior, bale bindings and the like are used in connection with the preparation for sale of other tangible personal property sold for resale and when these materials do not pass to the ultimate consumer together with the tangible personal property originally contained therein, the sale of such materials to a person using them for crating, packing or wrapping is deemed to be a sale at retail and the purchaser thereof is required to pay the tax upon the amount of receipts therefrom to his vendor.

(c) Whenever tangible personal property is sold in barrels, bottles, boxes, bags, kegs, drums, cartons, sacks, cans or other containers the title to which is retained by the seller of the tangible personal property contained therein and which are to be returned to the seller and are intended by the seller to provide merely a means of containing such tangible personal property while in process of being delivered or conveyed to the purchaser for use or consumption, then a person so using such containers in the conduct of his business is a purchaser for use or consumption and the sale to him is a sale at retail and he is required to pay the tax upon the amount of receipts therefrom to his vendor.

(d) Paper napkins, drinking straws, paper cups, paper, wood or plastic spoons and forks, when sold to restaurants, soda fountains and drive-ins which are registered with the department of finance for sales tax purposes and where these articles are served in connection with the sale of food and drink, are considered to be sales for resale and therefore exempt from tax.

(e) Sales of boxes, wrapping paper, twine, tape and similar articles to persons engaged in rendering services who use such material in connection with the services rendered and who are required to collect the tax upon the receipts from such services, are sales for resale. To illustrate: Sales of wrapping paper and twine to a dry cleaner or laundry should be made under a resale certif-

icate since such packaging material passes to the consumer along with the taxable service.
(Code 1956, § 56-139)

Sec. 150-813. Labels, tags and name plates.

(a) Sales of labels, tags or name plates to a manufacturer who affixes them to products manufactured by him constitute sales for resale, if such labels, tags or name plates become affixed to or are an integral and necessary part of the product sold. Such is the case when labels are required by law in the sale of certain drugs and chemicals or when metal name plates of manufacturers are permanently attached to each unit of product sold, which is the case with automobiles, stoves and the like.

(b) But when labels and tags do not become an integral and usually inseparable part of the product sold, the manufacturer or other person affixing them is deemed to be the purchaser for use or consumption thereof. Coming within the latter category are such articles as price and shipping tags.
(Code 1956, § 56-140)

Sec. 150-814. Premiums and other gifts.

Gross proceeds from the sale of goods to be given away as premiums or otherwise are taxable. The tax shall be paid to the dealer by the purchaser of such goods.
(Code 1956, § 56-141)

Sec. 150-815. Adjustments, replacements and exchanges.

When any taxable articles are returned to the vendor for adjustment, replacement or exchange under a guarantee as to its quality of service and a new article is given pursuant to guarantee, free or at a reduced price, the tax shall be computed on the actual amount, if any, to be paid to the vendor on the new article.
(Code 1956, § 56-142)

Sec. 150-816. Returned merchandise.

(a) If articles of tangible personal property are voluntarily returned to the seller by the consumer or user, before such articles have been used but after the tax imposed by this article has been collected or charged to the account of the purchaser and paid to the director, the seller may deduct the sales price of such article from the gross proceeds shown on his report for the current month.

(b) The records of the taxpayer must clearly reflect and support his claim for all such deductions for merchandise returned for credit or refund and must especially show that the article returned has not been used and is in condition to be resold at the price originally charged.

(c) Articles of tangible personal property that are used for a while and then repossessed by the seller cannot be classified as returned goods subject to deduction from the gross proceeds or gross receipts.
(Code 1956, § 56-143)

Sec. 150-817. Repossessions.

Dealers who repossess articles of tangible personal property shall not deduct from their gross proceeds of sales the unpaid amounts on repossessed merchandise nor any other deduction with respect to such repossessions. When the repossessed article is later sold, such sale is subject to the sales tax.
(Code 1956, § 56-144)

Sec. 150-818. Trade-ins.

When an article which had been traded-in and allowed as a reduction in the sale price of a prior sale, is sold, the traded-in article is subject to the city sales tax at the time of such sale.
(Code 1956, § 56-145)

Sec. 150-819. Credit and installment sales.

(a) Persons making credit sales or installment sales must report the total selling price of any such sales and pay the sales tax thereon in the monthly tax period in which the contract of sales are entered into.

(b) The foregoing is true irrespective of the fact that such sellers arrange to receive payment of the tax on installments or that a contract may be discounted, pledged with or sold to a finance company.

(c) No deductions for credit losses in case of repossession are allowed under this article.
(Code 1956, § 56-146)

Sec. 150-820. Lay-away and will-call sales.

A sale whose delivery is conditional on payment of the amount due is not completed until the amount due is received by the seller and, therefore, not taxable until the sale is completed.
(Code 1956, § 56-147)

Sec. 150-821. Full amount of tax collected to be reported.

Every dealer is required to make returns to the director of the full amount of the tax collected from his purchasers regardless of the percentage relationship of such amount to his total receipts.
(Code 1956, § 56-148)

Sec. 150-822. Auctioneers, agents, factors, etc.

Every factor, auctioneer or agent acting for either a known or an unknown or undisclosed principal, entrusted with any bill of lading, customhouse permit or warehouseman's receipt for delivery of tangible personal property or entrusted with possession of any such personal property for the purpose of sale, shall be deemed the owner thereof for the purpose of sale and, upon the sale at retail of such property, such factor, auctioneer or agent shall be required to collect the sales tax thereon and remit it to the city. The same rule applies to lienholders, such as storage men, pawnbrokers and artisans.
(Code 1956, § 56-149)

Sec. 150-823. Sales by trustees, receivers, executors and administrators.

(a) Where trustees, receivers, executors and administrators, by virtue of their appointment continue to operate, manage or control a business engaged in selling tangible personal property at retail or selling services, they must pay the tax as to their gross receipts from sales and are deemed to be persons engaged in the business of selling tangible personal property or services.

(b) Where trustees, receivers, executors and administrators are complying with an order of court to liquidate the bankrupt's business, it is immaterial if the trustee, receiver, executor or administrator has previously operated the business as a going concern, or if he made a number of retail sales in liquidation; his liquidation sales are exempt from city sales taxes.

(c) Trustees, receivers, executors and administrators operating a business in conformity with subsection (a) of this section must register the business with the department of finance for sales tax purposes and must show on registration application the name of the trustee, receiver, executor or administrator operating the business pursuant to appointment by the court.
(Code 1956, § 56-150)

Sec. 150-824. Sales to employees.

When an employer sells tangible personal property to employees for use or consumption, receipts from such sales must be included in his gross taxable sales and the tax on each such sale should be collected from the employee. It is immaterial that such employer makes sales at retail only to his employees and not to the general public.
(Code 1956, § 56-151)

Sec. 150-825. Isolated or occasional sales.

(a) The tax levied under this article applies to isolated or occasional sales of vehicles, but does not apply to isolated or occasional sales by persons who are not engaged in the business of selling other articles of tangible personal property. However, this exception does not apply to sales made by those persons who hold themselves out as engaged in a retail business, notwithstanding the fact that the sales may be few and infrequent.

(b) For example, the tax is levied when a person sells his own automobile or other vehicle. The tax is not levied when a merchant sells his store fixtures or when a farmer sells his farm machinery or other farm equipment, such persons are not engaged in the business of selling such tangible personal property at retail; they are making isolated or occasional sales with respect to such property.

(c) Manufacturers, processors, wholesalers or jobbers engaged in distributing tangible personal property who sell primarily other than at retail are not deemed to be making isolated or occasional sales when they sell such tangible personal property to purchasers for use or consumption, notwithstanding that sales at retail may comprise a small fraction of their total business.
(Code 1956, § 56-152)

Sec. 150-826. Lease or rental of tangible personal property.

(a) The gross receipts or gross proceeds derived from the lease or rental of all kinds and types of tangible personal property are subject to the tax levied under this article, except that property leased or rented for use outside the city by a lessee or rentee for industrial or commercial purposes for the conduct of his business. The tax shall be computed on the gross receipts or gross proceeds without any deduction whatsoever for expenses incident to the conduct of business.

(b) For example, the gross receipts or gross proceeds derived from the lease or rental of accounting machines, office equipment, automobiles, tires, accessories, oil field machinery and equipment of all kinds, as well as all other articles of tangible personal property, are within the provisions of this article.

(c) The term of the contract under which such tangible personal property is leased or rented shall be the basis for computing the tax. The tax is to be computed on a billing basis, either on the lump sum at the time of execution or on a monthly or periodical basis as provided in the contract.

(d) If the owner of the property, for example, is one who is engaged in leasing boats, maintains continuous supervision of the boat and furnishes an operator and crew, together with the gasoline or other fuel that may be used, the owner in this case is rendering a service of a type which is not subject to tax. On the other hand, if the owner does not furnish the crew or operator, but merely rents the bare boat for a stated consideration and the lessee operates it himself, the sales tax would apply as the lessee has the possession or use of the boat. The same principles apply in the case of automobiles, trucks, cranes and other equipment.

(e) Tangible personal property purchased to be used by the purchaser as stock to be rented and not sold is subject to the sales tax and the vendor is required to collect and remit the tax on all such sales. If the tangible personal property is purchased out of the city, the purchaser is required to remit a use tax.

(f) If a lessor has an office or place of business or agents or representatives in the city, he must collect and remit the tax on all articles leased by him, as provided in this article; otherwise the lessee is obligated to pay the lease or rental tax directly to the director.
(Code 1956, § 56-153)

Sec. 150-827. Sublease of tangible personal property.

Dealers engaged in the business of renting or leasing tangible personal property to another dealer who is renting such property for rerental or subleasing, the tax imposed by this article is incurred by the renter or lessor and a second liability for lease or rental tax is incurred by the subrenter or sublessor.
(Code 1956, § 56-153.1)

Sec. 150-828. Tangible personal property made to order.

When persons, such as dry goods merchants or tailors, contract to fabricate articles of tangible personal property such as portieres, curtains, tents, awnings, clothing, auto tops and the like from materials in stock, which have been selected by customers, the total proceeds from the sale of such articles must be included in the gross receipts and the sales tax computed thereon. Such retailers may not deduct labor or service charges of fabrication or production, notwithstanding that such charges may be separately billed to customers apart from charges for materials.
(Code 1956, § 56-154)

Sec. 150-829. Equipment and supplies for a business.

(a) Sales of machinery, tools, belts and other equipment to a manufacturer, producer or contractor; or furniture, fixtures, supplies, stationery, equipment, appliances, instruments and

tools to stores, shops, business establishments, offices and professional activities are taxable. Such sales are to final buyers and ultimate consumers and are not sales for resale. To illustrate:

(1) Sales to a millwright of shafting, pulleys, belts, saws, lathes, chisels, tools and similar articles are taxable. These articles are not purchased for resale and the seller is subject to tax on his receipts.

(2) Sales of concrete mixers, trucks, steam shovels and other machinery, equipment and tools to a contractor are sales at retail. The contractor consumes these articles in his business and is the final buyer. Therefore the sale is taxable.

(b) This section applies to all manner of office machinery, fixtures, equipment and supplies, including furniture, cash registers, typewriters, stationery, pencils, pens, ink, account books, calculating machines, dictaphones and other similar articles.
(*Code 1956, § 56-155*)

Sec. 150-830. Property purchased for rental purposes.

(a) Persons purchasing equipment for rental purposes should pay sales or use tax on the purchase price of such equipment regardless of the fact that under some types of rental agreements the federal government or any other lessee may later acquire ownership of the equipment. The lessor of the equipment is considered to be the user or consumer and should pay the sales or use tax on the purchase price of the equipment at the time of purchase.

(b) A vendor registered with the city or one not registered and located outside the city, who is engaged in selling or renting or both selling and renting similar equipment is liable for either sales tax or use tax based on the cost price of such equipment when rented or leased for use in the city. If the contract of rental contains an option for subsequent purchase and is accepted by the customer, the gross receipts on which sales tax would be computed is the combination of the rental fees received by the retailer plus the balance due on the original selling price.

(c) When equipment has been rented or leased and sales or use tax has been accounted for, the sales tax will also apply on the total selling price when subsequently sold providing the sale has no connection with an earlier rental agreement.
(Code 1956, § 56-156)

Sec. 150-831. Sales to manufacturers and producers.

The gross receipts or gross proceeds derived from sales of raw materials to manufacturers and producers to be used in fabricating or producing finished articles of tangible personal property for resale, which become a recognizable, integral part of such finished articles, are not subject to the tax imposed under this article. The proceeds derived from subsequent sales of such finished articles of tangible personal property to consumers or users, are subject to the tax. (See section 150-857 as to contractor manufacturers.)
(Code 1956, § 56-157)

Sec. 150-832. Leased departments.

When a store has leased certain of its departments to other persons for the selling of tangible personal property to consumers, each such leased department shall make separate monthly returns if the lessee keeps his own books and makes his own collections on account of sales at retail. If the store leasing such departments keeps the books for the leased departments and makes collections on account of their sales, the store shall, as agent for the lessee, include in its city returns the taxes due by the leased department. But the lessee shall not be relieved of the liability under this article in case the store fails to make the proper returns or fails to pay taxes due.
(Code 1956, § 56-158)

Sec. 150-833. Wholesale sales.

(a) The factor which determines whether a sale is a wholesale sale or not is the purpose for which the sale is made. The price of the article or the quantity sold are not factors which determine a sale to be a wholesale sale.

(b) The following wholesale sales are not subject to the tax:

(1) Sales of tangible personal property by wholesalers to retailers, jobbers, dealers or other wholesalers for resale; and

(2) Sales of tangible personal property or products to a manufacturer or compounder which enter into and become parts of tangible personal property for resale, because they are sales for further processing and therefore not taxable.

(Code 1956, § 56-159)

Secs. 150-834—150-850. Reserved.

Subdivision II. Rules Affecting Particular Businesses

Sec. 150-851. Amusement, etc., places.

The sale of admissions to places of amusement and to athletic, entertainment or recreational events and the furnishing, for dues, fees or other consideration, of the privilege of access to clubs or the privilege of having access to or the use of amusement, entertainment, athletic or recreational facilities, constitute sales of services. Therefore, the sales tax is due on all such admission charges, dues, fees or other consideration.
(Code 1956, § 56-160)

Sec. 150-852. Art objects are subject to tax.

Sales of objects of art are sales of tangible personal property and purchasers thereof are obliged to pay the tax levied by this article.
(Code 1956, § 56-161)

Sec. 150-853. Automobile dealer's demonstrator.

New automobiles withdrawn from stock by factory authorized new automobile dealers, with the approval of the director, (or, by the collector of revenue of the state, as the case may be) and titled in the dealer's name for use as demonstrators, are exempt from the city one percent sales and/or use tax; provided however, when such vehicle is sold, the city sales tax shall be collected.
(Code 1956, § 56-163)

Sec. 150-854. Automobile refinishers and painters.

Automobile refinishers, automobile painters and automobile repair shops are engaged in the furnishing of repairs to tangible personal property. The entire amount charged for such services, including any charge for materials and parts used, is subject to the tax. Materials and parts purchased by the operators of such businesses which will become a part of the automobiles refinished or painted should be purchased under resale certificates.
(Code 1956, § 56-164)

Sec. 150-855. Barbers and beauty shop operators.

Barber and beauty shop operators render personal services which are not taxable. They are consumers of the various items which are used or consumed in the rendition of their services. As such consumers they shall pay the tax on all sales of merchandise to them for use in connection with their business.
(Code 1956, § 56-165)

Sec. 150-856. Building materials, sales to owners.

Sales of materials and supplies to owners of real property to be used by them in erecting, altering, improving or repairing buildings or other improvements are sales to final buyers and are not sales for resale and are, therefore, taxable. In such cases, the purchaser of such materials pays the tax to the vendor who in turn remits the tax as provided in this article.
(Code 1956, § 56-166)

Sec. 150-857. Contractor-dealers.

(a) Contractors and subcontractors engaged in the business of erecting, building or otherwise improving, altering or repairing real property for others may also be engaged in the retail business of selling materials and supplies to other contractors, consumers or users. If, at the time of purchase, the contractor is unable to segregate that portion of the materials and supplies he will sell at retail from that portion which he will use or consume in the fulfillment of his contracts, he

should give a resale certificate to the seller of the materials and supplies. The contractor or subcontractor purchasing on a resale certificate must include in his gross sales, upon which the tax is to be computed, all proceeds from retail sales. In addition, he shall report and pay the tax on all materials he uses in the performance of his contracts, based on the cost price of such materials and supplies.

(b) When the contract with the customer is expressed in terms of a sale of certain materials at a stipulated price, plus a charge for installation, the contract shall be considered a retail sale subject to the sales tax to the extent of the stipulated price of the materials.

(c) When the contract is expressed in terms of a sale of certain materials, coupled with an obligation to install them, for a lump sum charge, the entire charge shall be considered the selling price and shall be subject to the sales tax. (See section 150-811.)

(d) Those contractors whose operations are covered by this section must register as retail dealers and they will be required to furnish their registration number in signing a resale certificate. (Code 1956, § 56-167)

Sec. 150-858. Contractor-manufacturers.

(a) Contractors and subcontractors who manufacture and install a manufactured product under contracts pertaining to the erection, improvement, alteration or repair of real or personal property of others are dealers in the manufactured products so installed and shall collect from their customers the sales tax due with respect to the sales of tangible personal property under such contracts. In instances where the contract or the invoice shows the cost of installation separate from the price of the manufactured product sold, the tax applies only on the selling price of the manufactured product, except when the installation charge would also be taxable as a charge for repairs to tangible personal property. However, when no segregation has been made of installation labor from the price of the manufactured product sold the tax applies on the entire amount of the contract price.

(b) *The provisions of section 150-857 pertaining* to contractor-dealers, in so far as appropriate, apply also to the contractor-manufacturers. (Code 1956, § 56-168)

Sec. 150-859. Contractors—Definitions.

The following words, terms and phrases, when used in sections 150-860 through 150-865, shall have the meanings ascribed to them in this section, except where the context clearly indicates a *different meaning:*

Construction contract means a contract under the terms of which a party agrees to furnish the necessary building or structural equipment and materials and install or erect them on the project site in connection with the construction, alteration or repair of a building or other structure or improvement on land, but does not include the furnishing and installation of machinery and equipment used within the structure for manufacturing or processing operations or other purposes which is not directly intended as an addition to, or essential to, the building structure.

Construction subcontractor means a person who contracts to furnish the necessary materials and labor for the completion of a portion of the general construction contract for erection or installation on the job site. The construction subcontractor ordinarily contracts with the general contractor to perform a certain part of the work which the general contractor has undertaken under the general construction contract, but sublets.

General construction contractor means a person who contracts to furnish the necessary materials and labor for the performance of a construction contract and generally is one who contracts to build the entire project or a major portion thereof. The person with whom the general construction contractor contracts is ordinarily the owner of the land and structure thereon.

Materials supplier means a person who sells tangible property in the form of building or structural material to a construction contractor, when such person makes no erection or installation of the material at the job site, and is not to be

regarded as a subcontractor. Such a person is a material supplier or a retailer selling tangible personal property.
(Code 1956, §§ 56-169—56-172)

Sec. 150-860. Same—Lump sum and cost plus.

(a) Sales of materials and supplies to owners of real property to be used by them in erecting, altering, improving or repairing buildings or other improvements are sales to final buyers and are not sales for resale and are therefore taxable. In such cases the purchaser of such materials pays the tax to the vendor who, in turn, remits the tax as provided in this article.

(b) Contractors engaged in constructing or improving real property, whether on a lump sum or a cost-plus basis, are deemed to be purchasers and consumers of the materials used by them. Vendors of such materials are required to collect the sales tax thereon and to remit it to the bureau of revenue.
(Code 1956, § 56-173)

Sec. 150-861. Same—Outside purchases by.

A contractor or subcontractor who purchases tangible personal property outside the city and brings it into the city for his use in the performance of contracts must file a use tax report and pay the use tax on or before the 20th day of the month following the calendar month in which such tangible personal property was purchased.
(Code 1956, § 56-174)

Sec. 150-862. Same—Projects financed, in whole or part, by the federal government.

(a) When materials, supplies, equipment or other items of tangible personal property are sold and invoiced by the seller to a contractor on a cost-plus, cost-plus-fixed-fee or lump-sum contract with the federal government, wherein the contractor will be reimbursed by the federal government the cost of the materials, supplies, equipment or other items of tangible personal property, such sales are taxable to the contractor and the seller is required to collect and remit taxes due.

(b) It is immaterial that part or all the funds by which payment is made by the contractor may have been advanced, granted or loaned to the contractor for financing by the federal government.
(Code 1956, § 56-175)

Sec. 150-863. Same—Procedure and liability of general construction contractor and construction subcontractor.

(a) Within 30 days of the execution of a construction contract, a general construction contractor shall submit to the bureau of revenue a list of all construction subcontractors directly engaged by the general construction contractor for such particular construction contract. The list shall include the construction subcontractor's city sales and use tax registration number (if any), together with the construction subcontractor's physical address and telephone number. Should a construction subcontractor be engaged by the general construction contractor with respect to such construction contract subsequent to the submission of such list to the bureau of revenue, such general construction contractor shall, within 30 days from the execution of the contract engaging such construction subcontractor, submit the above information regarding the additional construction subcontractor to the bureau of revenue.

(b) After review of the list(s) referred to in section 150-863(a), if the bureau of revenue determines that a construction subcontractor is not registered with the bureau of revenue, or has failed to timely file one or more city sales and use tax returns, the general construction contractor shall, upon written notification and request by the bureau of revenue via certified mail, withhold an amount not to exceed five percent of the construction subcontractor's materials portion of the construction contract. Such written notification and request by the bureau of revenue shall identify the construction subcontractor and the amount requested to be withheld. The bureau of revenue shall also notify the construction subcontractor via certified mail that the construction subcontractor has 90 days from the receipt of such notification to obtain a written release from the bureau of revenue and to present such release to

the general construction contractor, which shall authorize the general construction contractor to release the withheld funds. If the construction subcontractor fails to obtain the release within the 90-day period, the general construction contractor shall, upon request by the bureau of revenue, remit the amounts withheld from such construction subcontractor to the bureau of revenue. Upon proof by the construction subcontractor that the bureau of revenue erroneously instructed the general construction contractor to withhold and remit said amounts, within 30 days after such proof has been made, the bureau of revenue shall cause a refund to be made, as provided by law, to such construction subcontractor for any amounts which were erroneously withheld and remitted to the bureau of revenue pursuant to this section 150-863(b).

(c) Within 30 days after receipt of the required lists from the general construction contractor, the bureau shall issue to the general construction contractor appropriate documentation evidencing that the general construction contractor has complied with all requirements of section 150-863 with respect to each such construction contract. Subject to section 150-863(d), such documentation shall release the general construction contractor from liability for any sales or use tax incurred by the construction subcontractors in connection with the construction contract to which such documentation relates.

(d) If the general construction contractor has omitted one or more construction subcontractors from the list(s) submitted to the bureau of revenue, or the general construction contractor has failed to withhold any amounts due a construction subcontractor after receipt of notification and request by the bureau of revenue as provided in section 150-863(b), then the bureau of revenue may proceed directly against the general construction contractor for any unpaid city sales or use taxes incurred in connection with the construction contract by that omitted construction subcontractor, or by that construction subcontractor to whom payments were made by the general construction contractor after receipt of notification and request by the bureau of revenue.

Any general construction contractor who fails to substantially comply with the provisions of section 150-863 of the Code of the City of New Orleans shall be liable for all sales and use taxes of its subconstruction contractors to the extent of the noncompliance.
(Code 1956, § 56-176; M.C.S., Ord. No. 17,965, § 1, 1-9-97)

Sec. 150-864. Same—Release subject to audit.

A release to a general construction contractor does not operate as a final release of the subcontractor or material supplier as all tax accounts are released subject to an audit at a future date.
(Code 1956, § 56-177)

Sec. 150-865. Same—Money due a subcontractor or supplier is a right to property.

Money due a subcontractor or material supplier in a construction contract is a right to personal property on which a lien attaches for any sales or use tax owing to the city.
(Code 1956, § 56-178)

Sec. 150-866. Cold storage.

(a) Charges for the service of furnishing cold storage space and for the service of preparing tangible personal property for cold storage, when such

service is incidental to the operation of cold storage facilities, are subject to the sales tax. The tax does not apply when the relationship between the cold storage operator and the other party is that of bailment, so that no particular space or quantum of space is placed at the disposal of the other party.

(b) Cold storage space includes any enclosed space in which the temperature is regulated or controlled through the use of machinery or chemicals capable of reducing the temperature of such space below that of the outside atmosphere.
(Code 1956, § 56-179)

Sec. 150-867. Dental laboratories.

Dental laboratories are retail dealers and sales of tangible personal property made by them to consumers are taxable. The laboratories shall collect the sales tax on their sales and remit it to the bureau of revenue and in the same manner as other dealers.
(Code 1956, § 56-180)

Sec. 150-868. Dentists.

A dentist is a consumer of the tangible personal property which he uses in the practice of his profession. Although he renders a service, receipts from the sale of tangible personal property to the dentist must be reported by the seller. This is true of all kinds of tangible personal property which the dentist purchases for professional purposes. It includes his dental chairs, motors, instruments, X-ray machines, drilling machines, office furniture and equipment as well as platinum, gold and silver, cement and other materials used in making fillings, inlays, bridgework and false teeth. It also includes fabricated articles used by the dentist, when manufactured for him by a dental laboratory. If a dental laboratory manufactures articles of tangible personal property for a dentist, the total receipts from the manufacture thereof are taxable without any deduction therefrom on account of the material used, labor or other cost. All articles of tangible personal property that a dental supply house sells to a dentist are taxable. If a dentist manufactures his own plates, false teeth, inlays or similar articles he is a consumer of the materials used in such manufacture. He does not sell them to his patients. Therefore, the sale of the materials to the dentist is a taxable sale.
(Code 1956, § 56-181)

Sec. 150-869. Farm equipment, tools, supplies, etc.

(a) All farm equipment, machinery, farm tools or any other article of tangible personal property purchased for use or consumption on a farm in the parish are subject to the tax imposed by this article, except fertilizer and containers sold directly to the farmer.

(b) The word "fertilizer" is defined to be what is commonly known by the trade as commercial fertilizer and means a substance which increases the plant food content and as a result becomes a part of the products grown. The word does not include vetches, peas or clover, commonly known as cover crops or other substances used as soil correctives or restoratives, sulphur, land plaster, gypsum, horticultural peat moss, insecticides, fungicides, germicides or other substances which do not become an ingredient or component part of the products grown.
(Code 1956, § 56-182)

Sec. 150-870. Finance companies.

(a) Finance companies are engaged primarily in the business of financing or acquiring the promissory notes given by purchasers of automobiles, furniture, refrigerators or other items of tangible personal property. For the repayment of such notes they sometimes take as security chattel mortgages upon such tangible personal property. When the purchaser of an automobile or other tangible personal property fails to meet his obligation, the finance company repossesses the property and sells it to satisfy the obligation evidenced by the notes.

(b) When finance companies hold and acquire title to such tangible personal property and engage in the business of selling to users and consumers such property, the sales thereof are within the provisions of the sales tax and the tax must be reported thereon.
(Code 1956, § 56-183)

Sec. 150-871. Florists.

(a) Florists are engaged in the business of selling tangible personal property at retail and are liable for payment of the sales tax measured by receipts from sales of flowers, wreaths, bouquets, potted plants and other such items of tangible personal property.

(b) When florists conduct transactions through a florists' telegraphic delivery association the following rules shall apply in the computation of tax liability:

(1) On all orders taken by a city florist and telegraphed to a second florist in the state for delivery in the state, the sending florist will be held liable for the tax;

(2) When a city florist receives an order pursuant to which he gives telegraphic instructions to a second florist located outside the state for delivery of flowers to a point outside of the state, the tax will likewise be owing with respect to the total receipts of the sending florist from the customer who places the order; and,

(3) When a city florist receives telegraphic instructions from other florists located either within or outside of the state for the delivery of flowers, the receiving florist will not be held liable for tax with respect to any receipts which he may realize from the transaction.

(c) When a nursery man or florist sells shrubbery, young trees or similar items and as part of the transaction transplants them to the land of the purchaser for a lump sum or a flat rate, the vendor so selling and installing must make a segregation of that portion of the charge which is for tangible personal property sold and that portion of the charge which is for installation. Failure to segregate the charge will subject the entire amount of the transaction to the tax.
(Code 1956, § 56-184)

Sec. 150-872. Fuel sold to consumers or users.

Sales of coal, coke, fuel oil and other combustibles, whether sold in carload lots or other quantities, to persons who use or consume such substances in producing other tangible personal property or in the rendering of service constitute sales at retail within the meaning of the sales tax. Such coal, coke, fuel oil or other combustibles do not physically enter into or become a constituent, component or integral part of any tangible personal property for resale with respect to such transactions and hence are sold for use or consumption. The sellers therefore must collect and report the tax on such sales.
(Code 1956, § 56-185)

Sec. 150-873. Hospitals and sanitariums.

Hospitals and sanitariums are primarily engaged in the business of selling services and for the purpose of the sales tax they are declared to be consumers or users of all tangible personal property purchased for use or consumption in connection with the operation of the institution and the sellers of tangible personal property to such institutions must collect from them the tax levied by this article. If a hospital or sanitarium operates any divisions that sell tangible personal property in competition with other businesses, such as a prescription department, cafeteria, coffee shop, cold drink stand, medicines and other supplies of any nature which are classified as tangible personal property, then the hospital or sanitarium becomes liable for the tax upon the gross receipts or gross proceeds derived from such sales and must file regular monthly sales tax returns.
(Code 1956, § 56-186)

Sec. 150-874. Hotels.

(a) The service of furnishing rooms by hotels is subject to tax.

(b) For the purposes of this section, the term "hotel" means and includes any establishment or person engaged in the business of furnishing sleeping rooms, cottages, or cabins to transient guests, where such establishment consist of sleeping rooms, cottages, or cabins at any of the following: (1) a single business location; (2) a residential location, including but not limited to a house, apartment, condominium, camp, cabin, or other building structure used as a residence.

(c) The question of whether the guests of a particular establishment are transient guests must be determined on the basis of the facts in each case. A guest who pays for a room by the month and who resides in the establishment for a long period of time would not ordinarily be classified as a transient guest. On the other hand, one who pays for a room by the day or by the week would ordinarily fall within the classification of a transient guest.

(d) When an establishment consists of two distinct types of accommodations: sleeping rooms; and apartments with facilities for cooking and eating; the apartments are not included in determining the liability for tax. For example, if there are eight sleeping rooms furnished to transient guests, six sleeping rooms to permanent guests and ten apartments to permanent guests, the sleeping rooms constitute a hotel since more than half of the rooms are furnished to transient guests. The apartments are completely disregarded for the purpose of classifying the remaining rooms and are not subject to the tax.
(Code 1956, § 56-187; M.C.S., Ord. No. 26972, § 1, 7-14-16)

Sec. 150-875. Ice.

Sales of ice by manufacturers and wholesalers to retail dealers who are actually engaged in the retail business of selling ice to users or consumers and have an established place of business are sales for resale and, therefore, such dealers may purchase ice on a resale certificate. This does not include truckers, haulers and docks, who are considered consumers. All other sales of ice are considered to be sales to consumers or users and are, therefore, subject to the tax. Ice which is used in the manufacture of commodities, such as ice cream and similar articles, and ice used in drinks or for cooling is considered to be consumed thereby, and such sales are taxable.
(Code 1956, § 56-188)

Sec. 150-876. Laundry and dry-cleaning services.

Laundry and dry-cleaning establishments, so-called self-service laundries, wash-o-mats, launderettes and other similar establishments, and so-called linen supply companies, uniform and towel supply companies, linen service companies and similar establishments render services and the gross proceeds derived from such services are subject to the sales tax. Such establishments are consumers of all materials and supplies used in rendering this service and as such, pay the tax to the seller on such materials and supplies purchased by them. However, sales to such establishments of materials such as wrapping paper, twine and hangers which will be delivered to their customers along with the articles laundered, cleaned or pressed and sales of garments, covers, wipers, towels, and linens to such establishments for furnishing to their customers under their service contracts whereby all laundering of such articles is to be done by the establishments furnishing such linens shall also be considered sales for resale and as such may be effected under an exemption certificate.
(Code 1956, § 56-189)

Sec. 150-877. Laundries, etc., and certain repairs.

Charges for the following services are taxed:

(1) The furnishing of laundry, cleaning, pressing and dyeing services, including by way of extension and not of limitation, the cleaning and renovation of clothing, furs, furniture, carpets and rugs.

(2) The furnishing of repairs to tangible personal property, including by way of illustration and not by limitation, the repair and servicing of automobiles and other vehicles, electrical and mechanical appliances and equipment, watches, jewelry, refrigerators, radios, shoes and office appliances and equipment.

(Code 1956, § 56-190)

Sec. 150-878. Machinists, foundrymen and pattern makers.

(a) Machinists, foundrymen and pattern makers who are engaged in fabricating and selling dies, castings, patterns, tools, lathes, drill and punch presses, machinery or other such tangible personal property to manufacturers or

other persons who purchase such articles for use or consumption are engaged in the business of selling tangible personal property at retail within the meaning of the sales tax and are liable with respect to their gross proceeds from such sales.

(b) Machinists and foundrymen may not deduct from the selling price of any tangible personal property any charges for labor or service of fabrication or other costs of production in computing their tax under this article.

(c) When machinists or foundrymen fabricate and sell structural steel, castings or other such products to construction contractors not registered as dealers, such sales are not for the purpose of resale by the purchasers and the vendors are liable for tax with respect to the proceeds therefrom.

(d) Machinists and foundrymen who repair tangible personal property of others are liable for the tax on the full amount of charges for such repair services.
(Code 1956, § 56-191)

Sec. 150-879. Meals furnished.

(a) Sales of meals by hotels, restaurants, drugstores, clubs, inns, logging companies, contractors, transportation companies and others are sales at retail and the consumers thereof are subject to the tax imposed by this article. This is true whether individual meals are sold, whether a flat charge is made or whether meals are furnished as a part of the compensation for services rendered.

(b) When employers, as, for instance, restaurant or boat owners, furnish meals to employees as a part of the compensation for services of such employees but make no specific charge therefor, the tax shall be collected upon the fair selling price of such meals. Sales of food to such employers are sales for resale, and are not subject to the sales tax.

(c) Boardinghouses will be considered the consumers of food articles and will pay the tax on purchases thereof.

(d) Meals ordered from and served by railroads, pullman, steamship, airplane or other transportation companies, diners, while within the city are subject to the sales tax.
(Code 1956, § 56-192)

Sec. 150-880. Meals sold by schools, etc.

(a) Public school boards, high school boards, churches, religious organizations, colleges, universities or private schools operating lunch rooms, cafeterias or dining rooms for the exclusive purpose of providing their respective students only with meals are deemed not to be engaged in the business of selling tangible personal property at retail and will not be held liable for payment of the sales tax with respect to such receipts. Persons selling food products to such institutions, with the exception of state operated schools and schools operated under religious supervision (see sections 150-800 and 150-801), for use by the latter in providing meals are deemed to be making sales at retail and must pay the tax with respect to their receipts therefrom.

(b) When any cafeteria, lunch or dining room is available for use by the public, the school, college, church, university or religious organizations operating it becomes engaged in the business of selling tangible personal property at retail and is liable for the tax.
(Code 1956, § 56-193)

Sec. 150-881. Memorial stone and monument vendors.

Memorial stones are tangible personal property and when sold to users or consumers the sale thereof is within this article. Where the seller of a memorial stone agrees to install such stone or monument upon a foundation, a segregation must be made of materials used and labor costs. The seller may deduct such labor costs or services when computing his tax charge. Failure to make a segregation will subject the entire amount to the tax.
(Code 1956, § 56-194)

Sec. 150-882. Motion pictures, film and equipment rentals, etc.

Persons engaged as distributors or agents for leasing, renting or selling motion picture films and equipment are liable for the tax levied by this article based on the gross proceeds derived from the leasing, renting or selling of such films and equipment. Such distributors shall collect and

remit the tax in accordance with the provisions of this article.
(Code 1956, § 56-195)

Sec. 150-883. Oculists, opticians and optometrists.

(a) The oculist is the eye physician. His professional services are ordinarily confined to examination and treatment of the eye and charges for such services are not taxable.

(b) The optician does not examine eyes but merely fills prescriptions supplied by the oculist or optometrist. Sales by the optician to persons who are to use the eyeglasses and to optometrists who furnish them to their patients are taxable.

(c) Optometrists render professional services, including the examination of eyes to determine whether glasses are necessary. If the optometrist furnishes glasses to his patients and makes a separate charge therefor the tax thereon must be collected from the patient. However, if the optometrist charges an over-all fee which includes optometric service, no tax is due on such fee. In such case the optometrist is the user or consumer of all eyeglasses and other materials employed in rendering the optometric service or furnished to the patient in connection therewith and he must pay the sales tax thereon to his vendors. Optometrists who sell sunglasses, telescopes and similar articles must collect the tax thereon.

(d) Some optometrists also maintain their own optical laboratories in which they prepare and assemble the glasses furnished to their patients. In such cases the optometrist is the user of the completed glasses and must pay tax on the cost price of the completed glasses, which may be determined either by valuing the completed glasses on the basis of the regular price costs of a recognized optical laboratory or by computing the cost of all eyeglasses prepared and assembled by him during each calendar month, including the cost of materials, labor and other expenses. Such optometrists must register with the bureau of revenue and will be authorized to purchase their materials under an exemption certificate.
(Code 1956, § 56-196)

Sec. 150-884. Oxygen, acetylene, hydrogen and liquefied gas (butane).

(a) Sales of oxygen, acetylene, hydrogen and liquefied gas (butane) to manufacturers, processors, refiners, repairmen, contract welders, dentists or junk dealers or for use as fuel and illumination are sales to consumers or users and are subject to the tax imposed by this article.

(b) The only instance when oxygen, acetylene, hydrogen and liquefied gas (butane) is not taxable is when sold to retailers for resale in its original state.
(Code 1956, § 56-197)

Sec. 150-885. Parking lots, etc.

Charges for storage or parking privileges by auto hotels and parking lots, including the storage and parking of trailers are subject to the sales tax. Persons who regularly furnish space for the parking or storage of automobiles, trucks, trailers or other vehicles are deemed to be operators of parking lots. Trailer parks are deemed to be parking lots within the meaning of the sales tax when the vehicles parked in such lots are not permanently affixed to foundations other than their own wheels.
(Code 1956, § 56-198)

Sec. 150-886. Peddlers of coal, ice, ice cream, etc.

Truckers, haulers and peddlers who transport or deliver coal, ice, ice cream, hot tamales, pop corn and other similar products are considered the consumers thereof. The wholesalers, manufacturers and dealers will be held liable for the tax on all sales to such truckers, haulers and peddlers and must collect and remit the tax on the sales thereof.
(Code 1956, § 56-199)

Sec. 150-887. Pharmacists and druggists.

Pharmacists and registered prescription druggists selling drugs and medicines on prescriptions for use or consumption or selling such items in addition to other items of tangible personal property are engaged in the business of selling tangible personal property at retail and are within

the provisions of the sales tax. The total gross receipts from the sale of drugs and medicines prepared and sold on prescriptions are within the sales tax. Labor or service costs of compounding drugs or medicines may not be deducted from selling prices or gross receipts in computing the tax due under the sales tax.
(Code 1956, § 56-200)

Sec. 150-888. Photographs, photostats, blueprints, etc.

(a) Photofinishing involves two operations: The developing of negatives; and, the printing of finished pictures. If but one charge is made for both operations, the entire charge is taxable. If, however, a charge is made for the developing of the negatives and a separate charge is made for the printed pictures, the tax will apply only to the charge for the printed pictures.

(b) The tinting or coloring of photographs delivered to a photo finisher by a customer constitutes a service and the charges thereon are not taxable. Sales of materials to photographers or photo finishers to be used by them in performing such service and in the developing of negatives are taxable.

(c) Sales of photostatic copies by a photostat producer or of blueprints by a blueprint manufacturer to purchasers for use constitute sales at retail and are subject to the sales tax. Likewise sales of frames, Kodak films, portraits and other articles by photographers to purchasers for use are taxable.

(d) Sales to photographers of materials which become an ingredient or component part of the finished picture, such as mounts, frames and sensitized papers, are not taxable as these materials are purchased for resale. Sales of materials such as chemicals, plates, proof paper, trays, etc., which are used in the manufacture or fabrication of pictures and do not become an ingredient or component part thereof, are taxable.
(Code 1956, § 56-201)

Sec. 150-889. Physicians and surgeons.

(a) Physicians and surgeons are the consumers of the various items of tangible personal property which they use in the rendition of their professional services and as such they shall pay the tax to the vendors who sell them their supplies and equipment.

(b) The sales tax does not apply to the fee for professional services rendered by physicians and surgeons. If physicians and surgeons, apart from their professional services, are engaged in selling to the public such articles as proprietary medicines, medical supplies, mouth washes, dentifrice and the like they are vendors and must collect and report the tax on such sales.
(Code 1956, § 56-202)

Sec. 150-890. Printing industry.

(a) Sales by printers of advertising circulars, books, briefs, envelopes, folders, posters, racing forms, shopping guides, tickets and other printed matter to persons who do not resell such articles in the regular course of business, but who either consume them, lease them or distribute them free of charge, are subject to the sales tax. A printer may not deduct from the selling price of such tangible personal property the cost of labor, author's alterations or other service charges in performing the printing, even though such charge is stated or shown on any evidence of sale separately from the charge for stock. The cost of labor is considered a part of the cost of the articles sold in a completed state.

(1) When stamped envelopes or government postals are purchased and printed for customers or when stamps are provided the amount of the postage may be deducted from the total charge to the customer in determining the selling price.

(2) Sales of printed matter to advertising agencies who purchase for their own use or for the use of their clients, and not for resale in the regular course of business, are deemed to be sales for consumption and subject to the sales tax.

(3) Sales of tickets to theatre owners, amusement operators, transportation companies and others are sales for consumption and subject to the sales tax. Such tickets are not resold by the theatre owners or amusement proprietors as tangible personal prop-

erty, but are used merely as a receipt to the patrons for payment and as evidence of the right to admission or transportation. Sales of school annuals and similar publications by printers to school districts, private schools or student organizations therein are subject to the sales tax.

(4) Sales by printers of books, envelopes, folders, posters, racing forms, stationery tickets and other printed matter to dealers for resale in the regular course of business are wholesale sales and are not subject to the sales tax.

(b) The furnishing of printing or overprinting, lithographic, multilith, blueprinting, photostating or other similar services of reproducing written or graphic matter with materials owned by others is a sale of services and charges therefore are subject to the sales tax.

(c) The rebinding of old books for others is a repair service and is subject to the sales tax.

(d) Sales to printers of equipment, supplies and materials which do not become a component part or ingredient of the finished printed matter sold are subject to the sales tax. This includes, among others, sales of stationery, engraving, furniture, lubricants, machinery, type, lead, slugs and mats.

(e) When the plate is one which can be used for a particular customer only, it becomes the customer's property. He acquires it by purchase from the printer. He does not purchase it from the manufacturer of the plate either directly or through the printer as an agent. Therefore plates of this nature are purchased by the printer for resale to his customer. Being a purchase for resale, no tax is due.

(1) When the printing job is finished, the plate is either delivered to the customer with the printing or is retained by the printer for the customer's convenience. Therefore, the printer should include in his bill to his customer the price of the plate and collect the sales tax on the total price of both the printing and the plate.

(2) When the plates used are not peculiar to one particular customer but may be used by the printer in serving other customers as well, the printer, as in the first instance, buys the plates from the manufacturer but for his own use. He does not resell these plates to any particular customer. Consequently, the printer should pay the use tax on his purchase price.

(3) In other instances business establishments buy plates from nonresident manufacturers and have their work done by nonresident printers. In these instances the plates are purchased by the business establishment for its own use and the use tax should be paid by it on the purchase price of the plates.

(f) Sales to printers of paper stock and ink which become a part of the printed matter sold are sales for resale and are not subject to the sales tax.
(Code 1956, § 56-203)

Sec. 150-891. Printing, photostating and other similar services.

Certain phases of the printing industry are covered in section 150-890 which pertains to transactions in that industry involving sales of tangible personal property. In some instances printing or overprinting, lithographic, multilith, blueprinting, photostating or other similar services of reproducing written or graphic matter are rendered in transactions which do not involve sales of tangible personal property. In such instances the services rendered are taxable inasmuch as they fall within the definition of sales of service as set forth in this article.
(Code 1956, § 56-204)

Sec. 150-892. Publishers of newspapers, magazines and other periodicals.

(a) Sale of newspapers are taxable only under the provisions of section 150-521(3). Magazines, periodicals, and all publications other than newspapers are subject to the sales tax when sold to consumers.

(b) Sales of paper and ink used in manufacturing newspapers, magazines and periodicals are sales for further processing and are not subject to sales tax.
(Code 1956, § 56-205)

Sec. 150-893. Jewelry repair shops.

(a) Jewelry repair shops primarily render services repairing tangible personal property such as watches, clocks and jewelry and therefore are required to collect the sales tax from the customers paying for such services. Sales by supply houses to jewelry repair shops of articles of machinery and equipment and of such supplies as are used incidentally in the rendering of such services but without becoming part of the articles repaired are taxable retail sales upon which the sales tax must be collected. But all sales of materials and supplies such as springs, crystals, jewel staffs, gold, silver and similar articles, which become part of the article repaired are sales for resale and may be effected under a resale exemption certificate.

(b) Sales by jewelry repair shops of watches, watch chains and straps, clocks, pens, rings and other jewelry are taxable retail sales. Sales of such articles by supply houses to jewelry repair shops are sales for resale and are not taxable under the sales tax.
(Code 1956, § 56-206)

Sec. 150-894. Shoe repairing.

Receipts of shoe repairmen from the services of shoe repairing, shining, or rebuilding are subject to the sales tax. Sales to shoe repairmen of materials such as sole leather, rubber heels, thread and nails, which become a part of the articles repaired, are sales for resale.
(Code 1956, § 56-207)

Sec. 150-895. Tire and tube repairing.

Persons engaged in repairing and vulcanizing tires and tubes and retreading tires render services constituting repairs to tangible personal property. The gross proceeds derived from such services are subject to the sales tax. All materials and supplies purchased by them for use in performing such repairs which become a part of the article repaired are purchased by the repairmen for resale and may be purchased under a resale certificate.
(Code 1956, § 56-208)

Sec. 150-896. Repairs to tangible personal property.

(a) Charges for repairs to tangible personal property, such as automobiles, clothing, watches, jewelry, shoes, tires, motors, household appliances, industrial machinery and similar articles are taxable as sales of services. Materials and parts purchased by repairmen for use in repairing tangible personal property for others are bought for resale and may be purchased under a resale certificate when such materials and parts will become a part of the articles to be repaired. Supplies which are consumed in the process of performing repair services without becoming a part of the articles repaired are consumed by the repairmen and they should pay the tax thereon to the vendors from whom such supplies are purchased.

(b) The classification of property repaired is to be determined at the time of repair. Thus an article which was tangible personal property at the time of its sale (and therefore subject to tax on the sale) may later become immovable property, as defined in the Revised Civil Code. For example, pipe and plumbing fixtures which are permanently attached to a building by its owner becomes immovable and repairs thereto would not be subject to tax.
(Code 1956, § 56-209)

Sec. 150-897. School books and supplies.

(a) Persons engaging in the business of selling school books to users or consumers are liable for the sales tax as to their proceeds from such sales.

(b) When publishers or proprietors of book stores sell books to school boards other than state operated or boards under religious supervision (see sections 150-800 and 150-801), for rental or for free distribution to students or for library purposes, such sales are made at retail and are subject to the sales tax.

(c) When publishers or proprietors of book stores sell books to school boards or teachers strictly for the purpose of filling orders previously taken for the same from students and such school boards or school teachers do not maintain any stock of books or engage in the business of selling books, such school boards or teachers are deemed to act as

agents of students for the purpose of purchasing such books and publishers or proprietors of book stores selling them make sales at retail and incur a liability for tax.

(d) Publishers or proprietors of book stores selling books to school boards, teachers or other persons operating book stores and maintaining stocks of books for the purpose of resale to school students make sales for the purpose of resale and are not liable for tax with respect to proceeds therefrom. Liability for the tax in such cases rests upon the purchasing school boards, teachers or other persons operating such book stores and engaging in the business of making final sales at retail. In all cases the burden of proof shall be upon the vending publishers or operators of book stores to show that any particular sale was made for the purpose of resale within the meaning of this rule.

(e) The statements made therein apply with equal force to sales of writing paper, drawing materials, ink, laboratory and other school supplies.
(Code 1956, § 56-210)

Sec. 150-898. Seeds.

Sales of seeds to a person who plants them in the soil for the purpose of growing agricultural products are sales to a purchaser for use or consumption and not sales for the purpose of resale. Seeds are deemed to be used or consumed in the process of producing other products and sellers thereof for such purpose become liable for the sales tax.
(Code 1956, § 56-211)

Sec. 150-899. Ship chandler's supplies.

Any dealer who sells materials and supplies to be used or consumed in coastwise or foreign commerce or materials to be used in the repair of vessels engaged in coastwise and foreign maritime commerce shall secure from the purchaser a certificate furnished by the bureau of revenue, department of finance, signed by the purchaser, stating that such materials and supplies are to be used in such maritime commerce. Any registered contractor-dealer who purchases materials and claims exemption from payment of the tax as provided in this article will likewise sign a certificate to the dealer from whom the materials are purchased. Any dealer who fails to secure a signed certificate will be held liable for and pay the tax himself.
(Code 1956, § 56-212)

Sec. 150-900. Sign manufacturers and painters.

(a) Persons engaged in the business of painting signs on buildings or other real or personal property belonging to others are rendering services of a kind not subject to the tax and their gross proceeds from such services are not within the sales tax. Sales of paint, brushes and other tangible personal property to such sign painters are sales to purchasers for use or consumption and the seller thereof must pay a tax measured by his gross proceeds.

(b) When a sign painter fabricates and paints a sign from his own materials and sells it to a customer as a finished article for use or consumption he must pay the tax imposed with respect to his gross proceeds from such sale. He may not deduct from the selling price the labor or service charge for painting.

(c) Persons engaged in the business of selling to users or consumers electric neon or other illuminated signs, whether manufactured by themselves or not, are selling tangible personal property at retail and become liable for the tax. If at the time of such sales they contract to furnish periodical maintenance or repair service for a flat charge including the purchase price of the sign, the total gross proceeds from the sale are within the sales tax. Similarly, if the charges for maintenance or repair services rendered subsequent to the sale of signs are billed separately to customers, such charges are taxed as sales of services. If the maintenance contract includes nontaxable services, such as insurance and inspection, the portion of the maintenance charge representing the cost of inspecting and insurance may be excluded from the tax; provided, that such charges are segregated in the contract.
(Code 1956, § 56-213)

Sec. 150-901. Stocks, bonds or other securities.

The term tangible personal property does not include stocks, bonds, notes or other obligations

or securities. It therefore follows that the sale of stocks, bonds, notes or other obligations or securities is not subject to the tax levied by this article.
(Code 1956, § 56-214)

Sec. 150-902. Storage of clothing, furs and rugs.

Charges for the storage of clothing, furs and rugs are subject to the sales tax. This class of service is separate and distinct from the service of furnishing cold storage space.
(Code 1956, § 56-215)

Sec. 150-903. Taxicabs and other similar conveyances.

(a) The tax levied by this article does not include receipts received from transportation fares by such means of conveyance as automobiles, trucks and other motor vehicles.

(b) The tax does apply, however, to the rental of such conveyances as automobiles, trucks and other motor vehicles when the price paid is in the form of a rental and not a fare.
(Code 1956, § 56-216)

Sec. 150-904. Undertakers and funeral directors.

(a) When funeral directors and undertakers charge lump sums to customers covering the entire cost of the funeral, without dividing the charge for tangible personal property and the charge for services in rendering a bill to the customer, for the purpose of reporting the sale of funeral supplies and merchandise, such funeral directors shall report the full amount of the funeral bill, less any cash advanced for purposes such as the purchase of a cemetery lot or grave, opening and closing a grave, other cemetery expenses, remuneration of a minister, choir, use of a church, press notices or other cash advanced.

(b) Sales taxes shall be reported and paid at the rate of 2½ percent on 50 percent of the total funeral bill, less cash advanced. All other plans or methods of reporting sales taxes by funeral directors for the sale of funeral supplies and merchandise are hereby declared null and void.

(c) A funeral director is considered to be the user or consumer of such articles as embalming fluid, cosmetics, chemicals, furniture or equipment, funeral home furnishings, advertising, calendars, booklets, motor vehicles and accessories, embalming equipment and instruments, grave equipment, stretchers, baskets and other items which the funeral director uses or consumes in the operation of his business and the title and possession to which are not passed on to his customers. With respect to these items the funeral director shall pay the sales tax to his vendors on all purchases within the state and to the bureau of revenue if the vendors are not registered when purchases are made out of the city.
(Code 1956, § 56-217)

Sec. 150-905. Warehousemen.

(a) Warehousemen are customarily engaged in the business of moving, storing, packing and shipping tangible personal property belonging to other persons. These activities constitute services of a type which are not ordinarily taxable under this article. Crating, boxing, packaging and packing materials used by such warehousemen in the performance of these services are deemed to be purchased by them for use or consumption and the seller of such materials to a warehouseman is making a sale for use or consumption within the meaning of the sales tax.

(b) Warehousemen are subject to the tax with respect to sales of secondhand furniture or other tangible personal property to which they have acquired title, when they hold themselves out to the public as being engaged in the business of selling such property, but sales at auction made by the warehousemen in order to satisfy the warehousemen's lien for claim on account of moving, storing or other service charge will be deemed occasional sales and not subject to tax.

(c) As to the furnishing of cold storage service, see section 150-866; and as to the storage of clothing, furs and rugs, see section 150-902.
(Code 1956, § 56-218)

Sec. 150-906. Sales and rental tax on board roads.

Lessors must pay sales tax to their vendors on materials used in the construction of board roads

as well as collect and remit the rental tax due from their lessees for the rental charge on such board roads.
(Code 1956, § 56-219)

Sec. 150-907. Coating and/or wrapping of tubular goods.

Persons engaged in the business of wrapping and/or coating of tangible personal property in the city are contractors performing a service, the type which is exempt from taxation under this article.
(Code 1956, § 56-220)

Sec. 150-908. National American Red Cross exempt from sales and use tax.

The National American Red Cross is a federal instrumentality and exempt from city taxes.
(Code 1956, § 56-222)

Secs. 150-909—150-950. Reserved.

ARTICLE VII. OCCUPATIONAL LICENSE TAX*

Sec. 150-951. General definitions.

For the purposes of this article, unless the context clearly otherwise requires or unless otherwise defined in specific portions of the article, the following words shall have the respective meanings ascribed to each in this section.

Business includes any business, trade, profession, occupation, vocation, or calling.

Regulation 150-951(1) Business.

"Business" as defined in this section means any activity reasonably expected to result in gain, benefit or advantages, either directly or indirectly; the fact that operations resulted in a loss or did not provide the expected benefits or advantages would not eliminate an activity from the definition of "business". This definition is intended so that some degree of continuity, regularity or permanency be involved so that the doing of any single act pertaining or related to a particular business would not be considered engaging or carrying on that business; a series of such acts would be so considered.

Continuous employment, occupation, or profession engaged in for livelihood which occupies the majority of time and attention, or activity in which time and capital are invested on future outcome are included in the meaning of business, just as barter or exchange of things, rights, or services for value are defined as business. It is not necessary for any activity to constitute the sole occupation to remain within the intended definition.

The term "business" does not include isolated and occasional sales by persons who do not hold themselves out as engaged in business. This exclusion clearly applies to sales made by the owners of property acquired for use or consumption, and who are not engaged in selling similar property on a repeated or continuing basis.

Whether an activity constitutes "business" demands an analysis of the continuing nature of the activity, and may change with respect to any particular person. As an example, trustees or receivers conducting a continuing retail merchandising activity, even though solely by court order, would be considered to be in the merchandising business, while the sale conducted by the same trustees or receivers in order to liquidate the business pursuant to a later court order would not be considered to be in business. Further, the occasional sale of used equipment made by a person engaged in the equipment rental business would not to constitute the business of selling equipment, but if the same lessor of equipment frequently, routinely or continuously offered used equipment for sale, then he would be engaged in that business.

Collector, for the purpose of this article, is the director of finance, collector of revenue, treasurer, or other appointees of the director.

Contractor is synonymous with the term "builder" and means a person, firm, partnership, corpo-

*__Const. law reference—__*Local government subdivisions, occupational license tax, La. Const. art. 6, § 28.

Cross references—Definitions generally, § 1-2; businesses, ch. 30; peddlers, solicitors and itinerant vendors, ch. 110; secondhand goods dealers, § 130-36 et seq.; pawnbrokers, § 130-101 et seq.; junkyards, § 130-136 et seq.

State law reference—Similar provisions, R.S. 47:342.

ration, association, or other organization, or a combination of them, which undertakes to or offers to undertake to, or purports to have the capacity to undertake to, or submits a bid to, or does himself or by or through others, construct, alter, repair, add to, subtract from, improve, move, wreck, or demolish any building, highway, road, railroad, excavation, or other structure, project, development or improvement, or to do any part thereof, including the erection of scaffolding or other structure or works in connection therewith and includes subcontractors and specialty contractors. As such, the word, "contractor" shall include oil field service contractors, which shall consist of those contractors performing general oil well servicing, maintenance, and construction when conducted as a single company unit. "General oil well servicing" shall include welding, pipe coating, pipe inspection, wireline service, automation, work over, logging, analysis, seismograph, installing and servicing equipment, packing, platform work, perforating, and completion.

Regulation 150-951(3). Contractor.

The term "contractor" shall include, but [is] not limited to, plumbers, electricians, carpenters, roofers, installers (air conditioners, heating units, carpeting, floors, tile, siding, machinery, equipment, gutters, alarm systems, etc.) painters, bricklayers, masons, welders, and well drillers.

Contractor's gross receipts, for the purposes of computing the license fee provided for in section 150-965 of this article, are determined the same for all contractors, whether or not they have a lump sum contract or a cost plus contract. The gross receipts for a lump sum contract are based on the actual amount of the contract, whereas, the gross receipts for a cost plus contract are based on the actual cost of the contract to the owner including the amount added thereto as a fee.

Regulation 150-951(4). Contractor's gross receipts.

Gross receipts for all contractors, whether lump sum or cost plus, are to include those receipts received for performing contracted services. This means that under a lump sum contract, the amount of the contract is used to compute the license tax under section 150-965 subject to the provisions provided for contractors under section 150-972(a) of this chapter. In the case of a cost plus contract, gross receipts include the cost of the contract plus the fees associated with that contract or contracts. Those fees can be based on a percentage or on a flat fee. Nevertheless, all revenue received as a result of the contract are included in the computation of the license tax.

Fixed location, for the purpose of this article, means any permanent structure which is used to provide goods or services to consumers.

Gross commissions for travel agencies is defined as fees earned on the sales of tickets and provision of other services and shall not include actual ticket prices. For carrying on each business of travel agency, the license tax shall be based on gross commissions.

Gross income for real estate brokers is defined as those fees from any source deposited into the real estate broker's agency's general fund account less escrow deposits, and less fees paid to cooperating real estate brokers. For carrying on each business of real estate broker, the license tax shall be based on gross income. Notwithstanding any provisions herein to the contrary, the maximum amount paid by a real estate broker shall be $2,200.00.

Peddler, for the purpose of this article, means any person who for himself or any other person, goes from house to house, or place to place, or store to store, exposing and selling the merchandise which he carries with him and delivering the same at the time of, or immediately after, the sale or without returning to the base of business operation between the taking of the order and the delivery of the goods; however, any person who uses the same vehicle or a combination of one or more vehicles for the purpose of taking orders and delivering merchandise, regardless of the fact that the vehicle returns to the base of operations between the taking of the order and the delivery of the merchandise, shall be deemed a peddler, unless such person can show that the merchandise delivered is accompanied by an invoice or delivery ticket prepared at the base of operations and which conforms to the original order and that

the person delivering the merchandise has permitted no deviation from the original order by allowing the purchaser to reject, cancel, increase, or decrease the quantity at the time of delivery or to offset against such quantity any merchandise delivered at a prior time which is being returned. This extension of the meaning of the term "peddler" shall not be interpreted so as to prevent rejection or cancellation of bona fide orders or the return of inferior merchandise, but shall be construed so as to prevent persons peddling merchandise from escaping their tax liability by subterfuge through means of so-called "standing order" or blanket advance orders, increase and decrease in quantities at the time of delivery, arbitrary rejections and cancellations, and offset of merchandise returned by reason of nonsale rather than obligation of warranty, all of which are hereby declared to be mere devices to prevent normal methods of operations so as to disguise the business of a peddler as an ordinary wholesale business. "Peddler" shall include, but is not limited to, hawkers, itinerant vendors, and any retail dealers not having a fixed place of business.

Regulation 150-951(8). Peddler.

The definition of "peddler" includes but is not limited to the following vendors:

(1) Roadside vendors;

(2) Temporary stands;

(3) Sales made from motor vehicles;

(4) Farmers vending from locations removed from their farms.

Person includes an individual, firm, corporation, partnership, limited liability company, association, or other legal entity.

Regulation 150-951(9). Person.

As used in this article, the word "person" includes both natural persons or artificial persons, including corporations, partnerships, limited liability companies, estates, trusts, business trusts, syndicates, cities and parishes, municipalities, the state of Louisiana, any district or political subdivision, department or division thereof, any board, agency, or other instrumentality thereof, acting unilaterally or as a group or combination, as well as receivers, referees in bankruptcy, agricultural associations, labor unions, firms, co-partnerships, joint ventures, associations, singularly or in the plural, who have the legal right or duty whether explicit, implied or assumed, to perform any of the transactions described in this article.

Retail dealer to institutional consumers, for the purpose of this article, includes all businesses selling, at retail from a fixed place of business, merchandise to dairymen, cattlemen, or farmers, to federal, state, parish, or municipal governments or institutions, to educational or charitable institutions, to hospitals, manufacturers, public utility companies, processors, refiners, fabricators, contractors, severers of natural resources, carriers of freight or passengers, pipe lines, hotels, and restaurants provided that such sales constitute the major portion of the business.

Separate location, as used in section 150-955 of this article, exists unless a similar or associated type of business is operated as a unit under a single roof or on the same contiguous tract of land.

Regulation 150-951(11). Separate location.

The phrase "separate location" is defined to clarify license requirements as cited in section 150-955 (separate licenses required for each location, based on primary class of business). The definition covers situations in which a business owner conducts more than one business under one roof or on the same parcel of land. The owner needs only one license as long as the businesses are similar or of an associated nature. The key phrases in the definition are "similar or associated type of business" and "operated as a unit". Similar types of businesses would be retail and retail, service and service, wholesale and wholesale, whereas associated type of businesses would be retail and wholesale, retail and repair, retail and rental, etc. It should be noted that these operations must be operated as one unit.

The definition is not intended to cover mall or shopping center situations which are operated under one roof or on the same parcel of land.

In determining whether a business is operated as a unit, the following criteria should be met:

(1) Same ownership;

(2) A common set of books and records are to be maintained;

(3) The businesses must be held out to the general public as one unit (common trade name, common customer contact point, etc.);

(4) An interdependency exists.

Wholesale dealer, for the purpose of this article, except as specifically provided in this article, means any person who sells to other dealers who in turn resell.

(Code 1956, § 70-1; Ord. No. 19,937, § I, 12-1-00)

Sec. 150-952. Payment of tax.

(a) Except as otherwise expressly provided, there is hereby levied an occupational license tax for the year 1989 and for each subsequent year upon each person pursuing and conducting any business, trade, calling, profession or vocation within the city, which tax shall be due and payable to the tax collector as follows:

(1) In the case of any business which is subject to license under this article, commencing on or after January 1, 1989, the license tax shall be due and payable on such date of commencement.

(2) In the case of a business commenced prior to the effective date of the ordinance from which this article was derived, the license tax shall be due and payable on January 1, 1989.

(b) (1) Annually thereafter, all license taxes levied under this article shall be due and payable on January first of each calendar year for which the license is due, except that for a new business commencing after January first of any calendar year, the first license shall be due and payable on the date the business is commenced.

(2) All licenses unpaid after the last day of February of the calendar year for which they are due or, in the case of a new business, unpaid on the date such business is commenced shall be deemed delinquent and subject to the payment of delinquent interest and penalty. Delinquent interest and penalty shall be computed from March first of the calendar year for which they are due.

(c) For ongoing businesses which cease operation between January first and the last day of February of the current license year, the license for the year shall be based on their gross receipts for the prior year, divided by 365 and multiplied by the number of days in which they were in operation.

Regulation 150-952. Payment of tax.

Any person doing business within the city shall pay an initial occupational license tax on or before the day business begins.

Annually, thereafter, the license tax is due and payable on January 1 of each calendar year. The tax becomes delinquent on March 1, and subject to interest and penalties. Delinquent interest and penalties shall be computed from March 1 of the year due until paid.

In cases which involve initial [payment], it should be noted that the relief provided for under this section is only applicable during the periods of January first through the last day of February. The provisions of this section shall not apply to flat fee or per unit licenses. The rationale behind this is that these licenses are not based on gross sales or receipts and therefore, are not subject to proration.

(Code 1956, § 70-2; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:343.

Sec. 150-953. New business; license due upon commencement.

(a) No person shall commence any business within the city without first paying a tentative license tax and after obtaining the approval of the department of safety and permits. Within 40 days after commencing the business, each person shall compute in the manner provided by section 150-957 the balance of the license tax, if any, owed for the year in which the business is started and pay such tax balance. When the

business is begun prior to July first of any year, the tentative tax shall be the minimum annual rate for the particular class of business in cases in which the tax is based on gross receipts, sales, fees, premiums or commissions, or the full annual rate in cases in which the tax is based on a specific amount per unit. When the business is begun on or after July first of any year, the tentative tax shall be one-half of the minimum annual rate or the specific amount per unit, as the case may be.

(b) Notwithstanding any other provision of law to the contrary, the Collector shall issue a temporary occupational license if the department of safety and permits issues a temporary alcohol permit in accordance with section 10-107 of this Code. The temporary occupational license period shall expire at the same time as the temporary alcohol permit. The provisions of this subsection (b) shall cease to be effective on July 1, 2027.

(Code 1956, § 70-3; Ord. No. 19,937, § I, 12-1-00; M.C.S., Ord. No. 30253, § 1, 3-27-25)

State law reference—Similar provisions, R.S. 47:344.

Sec. 150-954. Change of ownership or lessee.

(a) The license is issued in the name of the person making application and paying the initial fee and is not transferable or assignable. If at any time during the license year a change of ownership takes place, the license period is from January first, to the date of sale or change of lessee. A "change of ownership" occurs when a business is sold or leased, and does not include changes in partnership or corporation shares.

(b) The new owner or lessee shall obtain another business license, as the license issued to the former owner or lessee is not transferable or assignable. The license period for the new owner or lessee covers the date of transfer of ownership or lease to December thirty-first of the license year. The collector shall be notified within ten days when a change is effected.

(Code 1956, § 70-4; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:345.

Sec. 150-955. Separate license required for each location, based on primary class of business.

Except as otherwise provided in this article, only one license shall be required for each place of business, and the license shall be based upon the classification of business which constitutes the major portion of the taxable annual gross sales and receipts. However, any person operating coin vending or weighing machines shall obtain only one license, regardless of the locations of the machines. However, a separate license shall be required for hotels, motels, rooming houses, and boarding houses. Such license shall be in addition to the license required if other classes of business are operated in conjunction with the hotel, motel, rooming house, or boarding house. Notwithstanding the foregoing, a food pop-up vendor need only obtain one license regardless of the number of different hosts' locations from which the vendor operates in accordance with provisions of section 110-218 et seq.

Regulation 150-955. Separate license required for each location, based on primary class of business.

For purposes of this section, the phrase "each place" (of business) shall have the same meaning and guidelines set forth under section 150-951(11) for "separate location". A separate location or place of business exists unless all of the following conditions are met:

(1) There exists a similar or associated type of business,

(2) Operated, as related to the initial concern, as a unit, and

(3) Located under a single roof or on the same contiguous tract of land.

In addition to these guidelines, it should be noted that common ownership must exist, as this is the basis of the imposition of the tax. The license tax is imposed upon the "person" as defined under section 150-951(9), and the provisions for separate location are intended only to determine the number of licenses required to be obtained by each "person" commencing business.

This section also provides for operators of coin operated vending machines or weighing machines to obtain only one license regardless of the location of said machines. This does not cover amusement devices which are subject to license taxes set forth in section 150-969(d) of this article.

A separate license, however, will be required for hotels, motels, rooming houses, and boarding houses who operate other classes of businesses in addition to providing sleeping rooms to their guests. Clearly, by illustration, this suggests that these specified establishments who operate restaurant(s), lounge(s), etc. would be required to obtain a separate license for these classes of business. Be mindful, however, that in a situation where such an establishment would conduct a restaurant and lounge in conjunction with their hotel, motel, rooming house or boarding house operation, that one license would cover both the restaurant and the lounge activity since both are similarly classified for occupational license purposes. They would not be required to have separate licenses for the restaurant and for the lounge unless ownership were different or they were not operated under a single roof or on the same parcel of property.

(Code 1956, § 70-5; Ord. No. 19,937, § I, 12-1-00; M.C.S., Ord. No. 29188, § 3, 10-6-22)

State law reference—Similar provisions, R.S. 47:346.

Sec. 150-956. Class of business.

In order to calculate the license fee for a business location at which business activities are carried on that fall under more than one tax basis schedule, gross receipts, fees, or commissions for each group of activities falling under each schedule must be compared. The rate for the schedule which constitutes the major portion of the gross receipts, fees, or commissions will be used. However, the total gross receipts, fees, or commissions for all business activities carried on at the business location, minus any applicable deductions, are applied to the schedule to compute the fee.

Regulation 150-956. Class of business.

By way of illustration but not limitation, a dealer with annual retail sales of $100,000.00 and annual wholesale sales of $50,000.00 would purchase one license based on gross receipts of $150,000.00 under the retail table.

(Code 1956, § 70-6; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:347.

Sec. 150-957. Period used where gross receipts are the measure of the license.

(a) The basis for determining the amount of the annual licenses provided by this article, where the license is measured by gross receipts shall be as follows:

(1) If the business has been conducted previously by the same party, the annual gross receipts, gross fees, or gross commissions earned, whether received or accrued, during the preceding calendar year for which the license is issued shall be the basis for determining the amount of the annual license.

(2) If the business is begun during the calendar year for which the license is issued, the license for the year of commencement shall be based on the gross receipts, gross sales, gross premiums, gross fees, or gross commissions earned, regardless of whether received or accrued, during the first 30 days of business, multiplied by the number of months, or major fraction thereof remaining in the calendar year; however, any business which opens after June thirtieth of the year in question whose estimated gross receipts for the remainder of the year are less than one-half of the maximum gross revenue allowed in the minimum rate under the classification of the particular business, shall pay for the remainder of the year at one-half the minimum rate.

(3) If the business is begun less than 30 days before the end of the calendar year for which the license is to be issued, the tax shall be based on the gross receipts, gross sales, gross premiums, gross fees,

or gross commissions earned, regardless of whether received or accrued, during the calendar year; however, one-half of the annual rate shall apply to such businesses whose gross receipts for the period operated during the calendar year is less than one-half of the maximum gross

revenue allowed in the minimum rate under the classification of the particular business.

(4) The license tax of the business for the calendar year following that of commencement shall be based on the gross receipts, gross sales, gross premiums, gross fees, or gross commissions earned, regardless of whether received or accrued, during the previous year, divided by the number of days in operation during the year of commencement, and multiplied by 365.

(b) The date of beginning business for the purposes of this article shall depend upon the type of business involved, and shall be governed by regulations promulgated by the director of the department of finance according to law.

Regulation 150-957(b). Period used where gross receipts are the measure of the license.

The term "date of beginning business," for the purpose of calculating the license tax, shall be defined as follows:

(1) Tentative date of beginning business.

The taxpayer shall furnish to the collector the date on which the business is anticipated to begin and shall pay the tentative tax; if no date is given, the date of application shall be used.

(2) Actual date of beginning business.

The date that the business is considered to have actually begun shall be contingent upon one of the following conditions:

a. The date on which sales and/or services facilities are fully operational and available to the customer, or

b. The date on which loans are made, if in the business of lending or dealing in notes, or

c. The date on which commissions or fees are earned, if in the business as a broker or commission agent, or

d. The date on which contracts were entered into, if in business as a contractor.

(Code 1956, § 70-7; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:348.

Sec. 150-958. Taxpayers required to keep records; confidentiality.

(a) In general, each person shall keep a reasonable record of his gross receipts, gross fees or commissions, or loans made. This record shall be kept separately for each place of business, and shall be subject to examination and inspection by the collector or his duly authorized assistants.

(b) (1) Except as otherwise provided by law, the records and files of the collector or the records and files maintained pursuant to a tax ordinance, excluding ad valorem property taxes and ad valorem property tax assessment rolls, are confidential and privileged, and no person shall divulge or disclose any information obtained from such records and files except in the administration and enforcement of the tax laws of this state or of the city.

(2) No person shall divulge or disclose any information obtained from any examination or inspection of the premises or property of any person in connection with the administration and enforcement of the tax laws of this state or the city except to the taxing jurisdiction of his employment or, in the case of an already existing independent contractor arrangement, to the city.

(3) Neither the collector nor any employee engaged in the administration or charged with the custody of any such records or files shall be required to produce any of them for inspection or use in any action or proceeding, except in an action or

proceeding in the administration or enforcement of the tax laws of this state or of the city.

(4) Any officer, employee, or agent or any former officer, employee, or agent of the city who unlawfully discloses any information obtained from a return of a taxpayer or records and files of the collector, contrary to the provisions of this section, shall be guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than $10,000.00 or be imprisoned for not more than two years, or both.

(5) Nothing contained in this section shall be construed to prevent such persons from disclosing a return of a taxpayer or the records of the secretary as authorized by law in any judicial proceeding in which the state or the city thereof is a party.

(Code 1956, § 70-8; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:349.

Sec. 150-959. Application for licenses.

(a) Every person subject to a license tax levied by this article shall apply to the collector for a license before the same becomes delinquent, as provided in this article. The application shall state all facts necessary to determine the amount of taxes due under this article.

(b) If the collector is not satisfied with the facts set forth in the application or for any reason desires to audit the books and records of the taxpayer, the collector or any of his authorized assistants may audit and inspect all records of the taxpayer that would have any bearing upon the amount of taxes due under this article.

(c) If an individual is an applicant for a license required by this article, the applications must be signed by him; if a partnership or an association of persons, by a member of the firm; and if a corporation, by the proper officer thereof.

(d) Any intentional false statement as to any material facts in the application for a license under this article shall constitute a misdemeanor, and any person convicted thereof shall be fined not more than $200.00, or imprisoned for not more than six months, or both.

(Code 1956, § 70-9; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:349.1.

Sec. 150-960. Failure to pay tax; judgment prohibiting further pursuit of business.

Failure to pay the tax levied by this article shall ipso facto, without demand or putting in default, cause the tax, interest, penalties, and costs to become immediately delinquent, and the collector is hereby vested with authority, on motion in a court of competent jurisdiction, to take a rule on the delinquent taxpayer to show cause in not less than two or more than ten days, exclusive of holidays, why the delinquent taxpayer should not be ordered to pay the total amount due and owing under this article. This rule may be tried out of term and in chambers and shall always be tried by preference. If the rule is made absolute, the order therein rendered shall be considered a judgment in favor of the city.

(Code 1956, § 70-10; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:351.

Sec. 150-961. Collector authorized to make rules and regulations.

(a) The collector shall make and enforce all rules and regulations necessary for the proper, complete, and equitable collection of the tax levied by this article. He may adopt different rules and regulations and forms for different classes or kinds of businesses, uniform as to each class, if by so doing the collection of the full amount of taxes due under this article may be simplified and made more certain.

(b) The collector may make and publish reasonable rules and regulations, not inconsistent with law, for the enforcement of the provisions of this article and collection of the revenue hereunder.

(Code 1956, § 70-11; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:351.

Sec. 150-962. Records to be kept by collector.

The collector shall keep an accurate record showing the names of every person paying taxes under this article, together with the business pursued, the amount of the license, the date of the collection, and the payment thereof.
(Code 1956, § 70-12; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:353.

Sec. 150-963. Retail dealers in merchandise, services and rentals.

(a) For every fixed location retail dealer in merchandise, services, and rentals, including, but not limited to, all businesses enumerated in this section, the license shall be based on the total business activity and shall be based on Table 1 below:

Table 1

If the gross sales are:

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 50,000.00	$ 50.00
50,000.00	75,000.00	60.00
75,000.00	100,000.00	90.00
100,000.00	150,000.00	120.00
150,000.00	200,000.00	180.00
200,000.00	250,000.00	250.00
250,000.00	300,000.00	300.00
300,000.00	400,000.00	360.00
400,000.00	500,000.00	500.00
500,000.00	600,000.00	650.00
600,000.00	750,000.00	800.00
750,000.00	1,000,000.00	900.00
1,000,000.00	1,500,000.00	1,200.00
1,500,000.00	2,000,000.00	1,800.00
2,000,000.00	2,500,000.00	2,400.00
2,500,000.00	3,000,000.00	3,000.00
3,000,000.00	3,500,000.00	3,600.00
3,500,000.00	4,000,000.00	4,200.00
4,000,000.00	4,500,000.00	4,800.00
4,500,000.00	5,000,000.00	5,400.00
5,000,000.00	5,500,000.00	6,200.00
5,500,000.00		6,200.00

(b) This schedule includes, but is not limited to, the following businesses: Abstractors; advertising agencies; ambulance services; amusement parks; appraisers; barbershops; beauty salons; boats or barge carriers of freight or passengers; bonding companies, surety companies or bondsmen; business, professional or instructional schools; cable television businesses; carpet and rug cleaning businesses; cold storage plants or refrigerated lockers; collecting agencies; commercial reporting or rating agencies, credit bureaus; decorators; detective agencies; elevator repair, service and maintenance businesses; employment agencies; engravers; ferry boats; flea market participants; health or recreational clubs; hospitals; insurance adjusters; jewelers; businesses engaged in leasing, renting, or licensing the use of movable property; medical transportation services; miniature golf links; motor vehicle carriers of freight or passengers; motor vehicle rentals; motor vehicle repair and repainting shops; motor vehicle storage businesses; operators of coin vending and weighing machines; operation of office buildings; packing houses for meats and fish; parking lots; photographers; railroad carriers of freight or passengers; repair businesses; restaurants, coffee houses, or other eating establishments; retail dealers in boats; retail dealers in merchandise; retail dealers in motor vehicles; service businesses; sign painting; skating rinks; steam cleaning, steam dyeing, or steam pressing businesses; steam or electric laundering businesses; storage businesses; storage rooms or landings; taxicab service; theaters; tourist camps; towboat or tugboat businesses; trackless trolleys or buses; transportation businesses; travel agencies; trucking businesses; undertakers and funeral directors; warehouses; washaterias or laundromats; watchman agencies; wholesale and retail dealers in mobile homes sales, rentals, and mobile home repairs; and wreckers and tow truck services.

For every fixed location gasoline service station whose sales of gasoline and motor fuels

constitute at least 80 percent of total business activity, the license shall be based on the total business activity and shall be based on Table 1A below:

Table 1A

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 50,000.00	$ 50.00
50,000.00	75,000.00	60.00
75,000.00	100,000.00	90.00
100,000.00	150,000.00	120.00
150,000.00	200,000.00	180.00
200,000.00	500,000.00	250.00
500,000.00	1,000,000.00	400.00
1,000,000.00	2,000,000.00	600.00
2,000,000.00	3,000,000.00	1,100.00
3,000,000.00	4,000,000.00	2,100.00
4,000,000.00	5,000,000.00	5,100.00
5,000,000.00	6,000,000.00	6,100.00

Regulation 150-963(b).

(1) Boat dealers and repair shops.

It has been interpreted that the words "other motor-propelled equipment" and "other motor-propelled land vehicles" mean any other motor-vehicular related items or things not specifically mentioned and not that the specified items must be self-propelled or land vehicles per se. The legislature obviously knew that trailers and semi-trailers are not self-propelled and that aircraft are not land vehicles.

This situation is not analogous to automobile dealers as their license under section 150-963 also covers repairs to automobiles.

(2) Business schools, commercial colleges, beauty schools, and employment agencies.

All business schools, commercial colleges, beauty schools, barber schools, employment agencies and other educational institutions operated to yield a profit to owners or shareholders are subject to the occupational license tax. The tax is payable at the rates specified at section 150-963 from Table 1.

(3) Operation of office building.

An occupational license tax is owed where the whole or a substantial portion of a building is leased to third parties as offices and where the proprietor of the building renders such service or performs such acts that would indicate that he was in the office building business, such as furnishing janitor service, or utilities or employing a manager of the building. Both of the above conditions must be present. If the second is not present then the owner of the building can only be said to be renting his own property and not to be engaged in the office building business. The facts in each case must determine the tax liability.

(4) Gasoline service station.

For every fixed location gasoline service station whose sales of gasoline and motor fuels constitute at least 80 percent of total business activity, the license shall be based on the total business activity and shall be based on Table 1A.

(c) For every dealer in merchandise, service, and rentals not otherwise provided for by this article or by special laws, whether conducted as a principal, agent, or commission, or otherwise, the license tax shall be based on the amount of gross sales and receipts, at the rate set in Table 1 above. After a business has operated for at least one full calendar year, if the annual gross sales and receipts for the previous year are less than $2,500.00, no license tax shall be due under this section for the current year.

(d) (1) For every pawnbroker, or person keeping a loan office and engaged in lending money on articles pawned or pledged, and for each and every money broker, money lender, or person lending money on, or purchasing time, wages, or salaries of laborers, clerks, or other wage earners or other persons, whether the same be earned or unearned, and whether the business is conducted in an office or

otherwise, the license tax shall be based on the amount of gross sales and receipts from any retail sales plus the amount of loans made by the business. However, the minimum license tax paid by pawnbrokers licensed under the provisions of this subsection shall be $300.00.

a. No license shall be granted to any pawnbroker whose designated place of business is situated within 300 feet or less of any official gaming establishment or designated docking facility of a riverboat licensed to conduct gaming activities or gaming operations pursuant to Chapter 9 or 10 of Title 4 of the Louisiana Revised Statutes of 1950. As to official gaming establishments, this distance shall be measured as a person walks using the sidewalk from the nearest point of the property line of the official gaming establishment to the nearest point of the designated place of business. As to docking facilities, this distance shall be measured in a straight line from the nearest point of the docking facility to the nearest point of the designated place of business.

b. The subsequent construction, erection, development, or movement of an official gaming establishment or designated docking facility which causes a licensee's occupied designated place of business to be located within the prohibited distance shall not be cause for the revocation, withholding, denial, or nonrenewal of a license.

(2) The "amount of loans made," for the purposes of this subsection, shall mean the total of all amounts of funds or goods advanced to borrowers and the amounts paid for notes or other similar evidences of indebtedness purchased or otherwise acquired from others.

(3) In the case of a new business, the basis for the first year's license shall be provided for in section 150-953 and 150-957 of this article, except that the "amount of the loans made" shall be substituted for "gross revenue".

(4) Notwithstanding the provisions of subsection (b), the maximum license tax paid by dealers in mobile home sales, rentals, or mobile home repairs licensed under the provisions of this section shall be $800.00.

(Code 1956, § 70-13; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:354, 47:355.

Sec. 150-964. Fees for Vieux Carré.

Upon application to the bureau of revenue for an occupational license for a new use or for a use that constitutes a change of ownership only (excluding yearly renewals of existing licenses) in the Vieux Carré section of the city, the Vieux Carré Commission will charge a $25.00 nonrefundable processing fee on each such application received by the bureau of revenue and reviewed by the commission. Upon issuance of a valid occupational license by the bureau of revenue, an additional $50.00 will be charged by the Vieux Carré Commission. All such fees will be collected by the bureau of revenue. In accordance with sections 166-1 and 166-2, the Vieux Carré section of the city is hereby defined to comprise all that area within the city limits within the following boundaries: The river, uptown side of Esplanade Avenue, the riverside of Rampart Street and the lower side of Iberville Street.

(Code 1956, § 70-13.1; Ord. No. 19,937, § I, 12-1-00)

Sec. 150-965. Wholesale dealers in merchandise, service and rentals; retail dealers to institutional consumers; shipbuilders; and contractors.

(a) For every fixed location wholesale dealer in merchandise, service and rentals, retail dealers to institutional consumers, shipbuilders, and contractors, including, but not limited to, all businesses enumerated in this section, the license

shall be based on the total business activity and the amount of said license shall be as shown in Table 2 below:

Table 2

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 100,000.00	$ 50.00
100,000.00	150,000.00	75.00
150,000.00	250,000.00	100.00
250,000.00	500,000.00	150.00
500,000.00	600,000.00	200.00
600,000.00	800,000.00	250.00
800,000.00	1,000,000.00	300.00
1,000,000.00	1,500,000.00	400.00
1,500,000.00	2,000,000.00	500.00
2,000,000.00	2,500,000.00	700.00
2,500,000.00	3,000,000.00	900.00
3,000,000.00	4,000,000.00	1,000.00
4,000,000.00	5,000,000.00	1,250.00
5,000,000.00	5,500,000.00	1,800.00
5,500,000.00	6,000,000.00	2,400.00
6,000,000.00	6,500,000.00	3,000.00
6,500,000.00	7,000,000.00	3,600.00
7,000,000.00	7,500,000.00	4,200.00
7,500,000.00	8,000,000.00	4,800.00
8,000,000.00	9,000,000.00	5,200.00
9,000,000.00	10,000,000.00	5,600.00
10,000,000.00	11,000,000.00	6,000.00
11,000,000.00	12,000,000.00	6,400.00
12,000,000.00	13,000,000.00	6,800.00
13,000,000.00	14,000,000.00	7,200.00
14,000,000.00	———————	7,500.00

(b) (1) This schedule includes, but is not limited to, the following businesses: Wholesale dealers in merchandise, service, and/or rentals; retail or wholesale dealers in building materials; retail dealers to farmers or institutions; shipbuilders; contractors, both lump sum and cost plus; and businesses engaged in renting, leasing, or licensing of immovable property.

(2) The maximum license tax paid by a retail dealer of building materials shall not exceed $6,200.00. After a business has operated for at least one full calendar year, if the annual gross sales and receipts for the previous year are less than $2,500.00, no license tax shall be due under this section for the current year.

(Code 1956, § 70-14; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:355.

Sec. 150-966. Business of lending or of dealing of notes secured by chattel mortgages or other liens.

(a) For every person, firm, corporation, or association of persons engaged in the business of purchasing, selling, trading in, or lending on unsecured notes or on notes secured by chattel mortgages, or other statutory liens, being commonly known as finance or securities companies, a license based on the amount of loans made by the business shall be required. The license shall be based on the amount of loans made by the business and the amount of said license shall be as shown in Table 3 below:

Table 3

If the amount of loans made are:

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 250,000.00	$ 50.00
250,000.00	500,000.00	100.00
500,000.00	750,000.00	150.00
750,000.00	1,000,000.00	200.00
1,000,000.00	1,250,000.00	250.00
1,250,000.00	1,500,000.00	300.00
1,500,000.00	1,750,000.00	350.00
1,750,000.00	2,000,000.00	400.00
2,000,000.00	2,250,000.00	450.00
2,250,000.00	2,500,000.00	500.00
2,500,000.00	3,000,000.00	550.00
3,000,000.00	3,500,000.00	600.00
3,500,000.00	4,000,000.00	650.00
4,000,000.00	4,500,000.00	700.00
4,500,000.00	5,000,000.00	750.00
5,000,000.00	5,500,000.00	800.00
5,500,000.00	6,000,000.00	850.00
6,000,000.00	6,500,000.00	900.00
6,500,000.00	7,000,000.00	950.00
7,000,000.00	7,500,000.00	1,000.00
7,500,000.00	8,000,000.00	1,050.00

As Much As	*But Less Than*	*The Annual License Shall Be*
8,000,000.00	8,500,000.00	1,100.00
8,500,000.00	9,000,000.00	1,150.00
9,000,000.00	9,500,000.00	1,200.00
9,500,000.00	10,000,000.00	1,250.00
10,000,000.00	11,000,000.00	1,350.00
11,000,000.00	12,000,000.00	1,450.00
12,000,000.00	13,000,000.00	1,550.00
13,000,000.00	14,000,000.00	1,650.00
14,000,000.00	15,000,000.00	1,750.00
15,000,000.00	16,000,000.00	1,850.00
16,000,000.00	17,000,000.00	1,950.00
17,000,000.00	18,000,000.00	2,050.00
18,000,000.00	19,000,000.00	2,150.00
19,000,000.00	20,000,000.00	2,250.00
20,000,000.00	25,000,000.00	2,500.00
25,000,000.00	30,000,000.00	3,000.00
30,000,000.00	35,000,000.00	3,500.00
35,000,000.00		3,700.00

(b) The "amount of loans made", for the purpose of this section, shall mean the total of all amounts of funds or goods advanced to borrowers and the amounts paid for notes or other similar evidences of indebtedness purchased or otherwise acquired from others.

(c) In the case of a new business, the basis for the first year's license shall be provided for in section 150-953 and section 150-957 of this article, except that the "amount of the loans made" shall be substituted for "gross revenue".

(Code 1956, § 70-15; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:356.

Sec. 150-967. Brokerage and commission agents.

(a) For every factorage, commission, or brokerage business; dealers in stocks or bonds as principal; stocks, bonds, or cotton factors, commission or brokerage businesses, whether or not the principal or party solicited is within or without the state, including but not limited to all businesses enumerated in this section, the license shall be based on gross annual commissions and brokerages earned on sales and purchases. The amount of the license shall be as shown in Table 4 below and shall be subject to applicable deductions.

Table 4

If the gross annual commission and brokerage are:

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 15,000.00	$ 50.00
15,000.00	20,000.00	70.00
20,000.00	25,000.00	90.00
25,000.00	30,000.00	112.00
30,000.00	40,000.00	137.00
40,000.00	50,000.00	180.00
50,000.00	65,000.00	225.00
65,000.00	80,000.00	300.00
80,000.00	100,000.00	360.00
100,000.00	125,000.00	450.00
125,000.00	150,000.00	600.00
150,000.00	175,000.00	675.00
175,000.00	200,000.00	750.00
200,000.00	250,000.00	900.00
250,000.00	300,000.00	1,050.00
300,000.00	350,000.00	1,200.00
350,000.00	400,000.00	1,400.00
400,000.00	450,000.00	1,600.00
450,000.00	500,000.00	1,800.00
500,000.00	550,000.00	2,000.00
550,000.00	600,000.00	2,200.00
600,000.00	650,000.00	2,400.00
650,000.00	700,000.00	2,600.00
700,000.00	750,000.00	2,800.00
750,000.00	800,000.00	3,000.00
800,000.00	850,000.00	3,200.00
850,000.00	900,000.00	3,400.00
900,000.00	950,000.00	3,600.00
950,000.00	————	3,700.00

(b) This schedule includes, but is not limited to: Brokerages in money, produce, or sugar; cotton compress businesses; cotton factor and commission businesses; cotton future brokerages; cotton pickeries; distillers of alcohol; grain and product commission houses; businesses engaged in leasing, renting, or licensing the use of immovable property; livestock auctions; manufacturer's agents; operators of office buildings; owners or lessees of toll bridges or ferries;

real estate brokers; slaughter houses; steamboat or steamship agencies; stock or bonds brokerages; sugar factories.

Regulation 150-967(b). Manufacturer's agents and real estate brokers' basis of tax.

(1) Manufacturer's agents' basis of tax.

The liability of manufacturer's agents for occupational license taxes under section 150-967 is based on gross commission earned for services performed by the broker or agent in New Orleans regardless of whether the principal or party solicited is within or outside the city.

The shipment or filling of the orders is not a factor. Also, a license is required for the privilege of operating each business, and the number of manufacturers represented by the agent is not a factor.

Accordingly, section 150-967 requires a manufacturer's agent to include all commissions earned for services performed by the agent in Louisiana regardless of circumstances surrounding the shipment or filling of the orders, and the representing of one manufacturer by the agent is sufficient to require a license.

Manufacturer's agents are engaged in the business of accepting and placing orders for equipment or merchandise to be shipped and invoiced by the manufacturer.

Manufacturer's agents do not take title to the equipment and/or merchandise ordered.

Manufacturer's agents who either take title to or independently invoice for the equipment or merchandise shall be considered retail or wholesale dealers. (See also section 150-951)

(2) Real estate brokers' basis of tax.

Real estate brokers may not deduct commissions paid to persons in their employ or operating as a broker from the same real estate office. (See also section 150-951)

(c) For carrying on each business of dealing in or buying and selling stocks or bonds, as principal, the license shall be based on gross annual profits; however, where no gross annual profit is realized, the minimum tax under the above schedule shall be paid.

(Code 1956, § 70-16; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:357.

Sec. 150-968. Public utilities.

(a) For carrying on each business of gas light, heat, or power; electric light, heat, or power; waterworks; and for each telephone, telegraph, or express business, the license shall be based on gross annual revenue from all business activities as shown in Table 5 below:

Table 5

If the gross annual receipts are:

As Much As	*But Less Than*	*The Annual License Shall Be*
$ 0.00	$ 20,000.00	$ 50.00
20,000.00	25,000.00	60.00
25,000.00	37,500.00	75.00
37,500.00	50,000.00	115.00
50,000.00	75,000.00	150.00
75,000.00	100,000.00	200.00
100,000.00	150,000.00	300.00
150,000.00	200,000.00	450.00
200,000.00	250,000.00	650.00
250,000.00	500,000.00	750.00
500,000.00	750,000.00	1,500.00
750,000.00	1,000,000.00	2,250.00
1,000,000.00	1,250,000.00	3,000.00
1,250,000.00	1,500,000.00	3,750.00
1,500,000.00	1,750,000.00	4,500.00
1,750,000.00	2,000,000.00	5,250.00
2,000,000.00	2,250,000.00	6,000.00
2,250,000.00	2,500,000.00	6,900.00
2,500,000.00		7,500.00

(b) A person engaged in the business of selling electricity in more than one municipality, locality, or community shall be deemed to be carrying on but one business, and to have only one place of business, which place of business shall be the place where the general office of such person is located.

(c) A person engaged in the business of providing local exchange telephone service in more than one municipality or parish shall be deemed to have but one place of business or business location in each such municipality or parish and a license tax imposed by any municipality or parish on such person shall be based on gross annual revenue derived by such person from the territorial jurisdiction of the taxing municipality or parish only.
(Code 1956, § 70-17; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:358.

Sec. 150-969. Businesses where licenses are based on flat fees.

The following types of business shall obtain an annual license based on the flat fee designated hereafter. For purposes of this section, the minimum tax noted in section 150-953 for most of new businesses for the first year of commencement or fractional part thereof does not apply.

(a) *Private banking or investment banking business.*

(1) For each business of carrying on a private banking house, business or agency, investment banking house, business or agency, a license based on a flat fee of $500.00 shall be required.

(2) The term "investment banking" means a business that is carried on through the purchase or underwriting of security issues and their subsequent sale to investors.

Regulation 150-969(a). Private banking or investment banking business.

A private banker is defined as one who carries on the business of banking without being incorporated. One carries on the business of banking by receiving money on deposit with or without interest, by buying and selling bills of exchange, promissory notes, gold or silver coin, bullion, uncurrent money, bond or stock or other securities, and by loaning money without being incorporated.

(b) *Vendors at trade shows.* For each person engaging in the display of goods, wares, or merchandise in association with a trade show, a license fee of $50.00 shall be required. The provisions of this subsection shall not apply to persons engaging in the sale of goods, wares, merchandise and services in conjunction with an association meeting where admission to the event is not open to the general public but is restricted by membership or invitation to a limited class of persons, or the sale of merchandise is secondary or accessory to the primary purpose for the trade show, convention or a professional or association meeting; and such persons shall not be deemed transient vendors for the purpose of this subsection.

(c) *Peddlers and itinerant vendors.*

(1) All peddlers, hawkers, and itinerant vendors selling merchandise on the streets of this city during the Mardi Gras season, which is defined as those days and nights commencing 11 days before Mardi Gras and continuing until 12:00 midnight on Mardi Gras Day, shall obtain a license based on a fee of $150.00. All other peddlers, hawkers, itinerant vendors and every person who displays samples, models, goods, wares or merchandise on a temporary basis in any hotel, motel, store, storehouse, house, vehicle, or any other place for the purpose of securing orders for the retail sales of such goods, wares or the like kind or quality, either for immediate or future delivery, shall obtain a license based on a fee of $150.00; provided, further, that persons aged 65 or over who manually paint, sketch or draw on plain surfaces only in the vicinity of Jackson Square or in or on the perimeter of Edison Park and persons aged 65 or over who sell handmade artifacts on the public sidewalks shall be exempt from the tax levied by this part.

(2) This section does not apply to the following classes: Those persons making house-to-house or personal calls displaying samples and taking orders for shipment directly from the manufacturer; those persons making a business call or visit

upon the verbal or written invitation of the inhabitant of the premises; those persons, or their representatives, engaged in the business of selling at wholesale, from a fixed place of business in this state, to licensed retail dealers; and vendors, or their agents or vendors, or their agents or representatives, in the sale or delivery of petroleum products when drawn, conveyed, and distributed from a stock maintained at a warehouse, distributing station, or established place of business.

(3) Parochial and municipal officers shall require all peddlers to exhibit their occupational license. The license shall indicate thereon the motor vehicle license number. They shall seize the merchandise and any vehicle or other conveyance used by the peddler to peddle the same, if the peddler fails or refuses to exhibit his license. All property seized shall be turned over to a court of competent jurisdiction, to be sold according to law, to satisfy the license due and enforce the privilege therefor. The rights of the holder of a chattel mortgage note or any vehicle seized shall not be affected or prejudiced as a result of the seizure.

(4) Whoever shall sell goods, wares, and merchandise as a peddler without first obtaining the license herein required shall be guilty of a misdemeanor and upon conviction shall be fined not less than $300.00 or shall be imprisoned not more than 60 days, or both.

(5) All food pop-up vendors operating pursuant to division 5.4 of chapter 110 of this Code shall obtain a license based on a fee of $50.00.

Regulation 150-969(c). Peddlers and itinerant vendors.

(1) Business where licenses are based on flat fees.

(2) This section does not apply to those persons who make house to house or personal calls displaying samples and taking orders for shipments of goods directly from the manufacturer. It includes, but is not limited to those persons taking orders for cosmetics, food and food supplements and home decorating articles. In order for this section not to apply, the sales person must not have a fixed location within the taxing jurisdiction from which the orders are filled and must not provide immediate delivery of goods. The shipment of goods from the manufacturer must take place after the order is written, but may be shipped to either the sales person or the customer.

(d) *Mechanical or electronic amusement machines or devices*

(1) Every person engaged in the business of operating any coin-operated mechanical or electronic device shall pay a license fee of $15.00 for each such device; provided, however, that operators of coin-operated mechanical or electronic devices commonly known as flippers or video games or video draw poker devices shall pay a license fee of $50.00 for each such device.

Any machine or other device, on which taxes are imposed by this subsection (d), which shall be found in possession or custody or within the control of any person for the purpose of being operated or permitted to be operated without having a certificate of tax payment, or stamp or similar evidence of tax payment, issued by the collector, affixed or attached thereto, or prominently posted in the place in which the machine or device is located and near to such machine or device, may be sealed and immobilized by the collector or his agent in order to secure the same for a trial. The machine or device thus sealed or immobilized may not be removed from the premises except by order or judgment of a court of competent jurisdiction.

(2) The provisions of this subsection shall not apply in cases where the person

engaged in the business of operating such mechanical devices are operating same under a written contract with and are solely sponsored by a nonprofit corporation for the purpose of conducting a fair, festival, or trade show which has as one of its objectives the promotion of agricultural and agri-industrial products. For the purposes of this subsection, the term "nonprofit corporation" shall be construed to mean only a nonprofit corporation which:

a. Was organized under the provisions of Chapter 2 of Title 12 of the Louisiana Revised Statutes of 1950 prior to January 1, 1969; and,

b. Holds membership in good standing in an association organized for the purpose of promoting fairs, festivals, and trade shows in the state.

(3) For the purpose of this subsection, a "coin-operated mechanical amusement device" is any machine or device operated by depositing a coin, token, slug, or similar object for the placing of the device in readiness of play. This definition includes, but is not limited to the following devices: Video draw poker devices, video games, merry-go-rounds, mechanical hobby horses, juke boxes, pool tables, domino tables, bowling alleys, blood pressure monitors, and pulse rate monitors.

(4) All such mechanical amusement devices subject to tax under this subsection and which do not return to the operator or player thereof anything but free additional games or plays or, through the exercise of the skill of the operator or player, a merchandise prize, shall not be deemed to be classed as gambling devices, and neither this section nor any other section shall be construed to prohibit same. Payment of the tax imposed by this subsection shall not be held to legalize the operation of any machine or device defined herein which is prohibited by law. This subsection shall not be held to repeal any provisions of any ordinance prohibiting the operation, possession, or use of any such machine or device.

(e) *Evidence of payment.* The payment of the taxes levied by this section shall be evidenced by a certificate of tax payment, or a stamp, or similar evidence of tax payment, which shall be issued by the collector. The tax payment shall be on such form as prescribed by the collector and shall include the name, address, and telephone number of the owner of such machine or other device. The certificate of payment shall be securely affixed or attached to each machine or other device with respect to which a tax has been paid, or if such certificate cannot be affixed, shall be prominently posted in the place in which the machine or device is located and near to such machine or device. If a machine or device is replaced by another, such other machine or device shall not be considered an additional device service. Certificates of tax payment or stamps are not transferable from one taxing jurisdiction to another.

(f) *Forfeitures.*

(1) Any machine or other device, on which taxes are imposed by subsection (d), which shall be found in possession or custody or within the control of any person for the purpose of being operated or permitted to be operated without having a certificate of tax payment, or a stamp or similar evidence of tax payment, issued by the collector, affixed or attached thereto, or prominently posted in the place in which the machine or device is located and near to such machine or device, may be seized by the collector of revenue, or his agent, in order to secure the same for trial, and the same shall be forfeited to the collector. The collector or his agent making the seizure shall appraise the value of the machine or other device according to his best judgment and shall deliver to the person, association of persons, firm or corporation if any, found in possession of the machine or other device, a receipt showing the fact of seizure stating from whom seized, the place of seizure, and description of the machine or the device,

and appraised value and a duplicate of said receipt shall be filed in the office of the collector and shall be open to public inspection.

(2) a. The proceeding to enforce such forfeiture shall be by rule and be in the nature of a proceeding in a court of competent jurisdiction where such seizure is made. The proceeding shall be filed by the collector, or his assistant or attorney on behalf of the municipality or parish, and the same shall be summary, and it may be tried out of term time and in chambers, and shall always be tried by preference. Whenever the petition for rule shall be sworn to by the collector of revenue, or his assistant or his attorney, that the facts contained in said petition are true, and accompanied with a duplicate copy of notice of the seizure, the same shall constitute a prima facie case, but may be rebutted by the defendant.

b. The proceeding shall be directed against the person operating or permitting the operation of the article seized, demanding the forfeiture and sale of said property, as a penalty for the violation of this section. Service of said proceeding shall be made upon the persons operating or permitting the operation of the articles seized, demanding the forfeiture and sale of said property, as a penalty for the violation of this section. Service of said proceeding shall be made upon the person operating or permitting the operation of the seized articles if he is a resident of this state, or his residence is known to the plaintiff in rule. In all cases where it is made to appear by affidavit that the residence of the person operating or permitting the operation of the seized articles is out of the state or is unknown to the collector or his assistants or his attorney, an attorney-at-law shall be appointed by the courts, which has jurisdiction of the proceedings, to represent the said person operating and permitting the operations, against whom the said rule shall be tried contradictorily within ten days from the date of the filing of same. The said affidavit may be made by the collector, or one of his assistants, or by the attorney representing the collector, if it be not convenient to obtain the affidavit of the collector. The attorney so appointed to represent the person operating or permitting the operation of the seized articles may waive service and citation of the petition or rule, but he shall not waive time nor any legal defense.

c. Upon the trial of said proceedings if it is established by satisfactory proof that with respect to the articles under seizure that this section has been violated in any respect, then the court shall render judgment accordingly, maintaining the seizure, declaring the forfeiture of said seized property other than cash after ten days notice of advertisement at least twice in the official parish where the seizure is made of the machine or other device, in the parish of Orleans by the civil sheriff at public auctions; it being the intent and purpose of this proceeding to afford the person operating or permitting the operation of said seized article a fair opportunity of hearing in a court of competent jurisdiction. It is further the intent and purpose of this proceeding that the forfeiture and sale of said seized property shall be and operate as a penalty for the violation of this section as aforesaid, and payment of the tax due on said seized articles at the moment of seizure or thereafter shall not operate to prevent, abate, or

discontinue, or defeat the said forfeiture and sale of said property. The court may fix the fee of the attorney appointed by the court to represent the owner of the seized articles at a nominal sum to be taxed as costs and to be paid out of the proceeds of the sale of said property.

(3) In cases where, in the opinion of the trial judge, the value of the seized machine or other device is so small as not to justify the expense of advertising and selling at public auction the seized commodities as hereinabove provided, the court may in any such case, in rendering judgment maintaining the seizure and declaring the forfeiture of the seized property, direct that the seized property be sold by the collector at private sale, without advertisement, but shall direct that the seized property be not thus sold for a price less than a minimum figure to be fixed by the court in its judgment.

(4) Forfeiture of the machine or the other device and its contents to the collector, as herein provided, shall not prevent any action by the collector to recover from the persons liable any taxes incurred.

(g) *Professional sports.*

(1) For each person owning or operating a business known as "professional sports" in which individual participants are paid for their services as members of a team, a license based on a flat fee of $1,000.00 shall be required. By way of extension and not of limitation, the business of "professional sports" shall include football, basketball, and baseball games.

(2) For each person sponsoring or promoting professional wrestling and boxing contests or competitions in which individual competitors receive a percentage of gross receipts, a license based on a flat fee of $100.00 shall be required. Sporting events that are provided for by special laws are exempt under this section.

(h) *Circuses, concerts, carnivals, and special events.* For each person operating a circus, carnival, or other traveling show, and for each person or organization sponsoring a concert or other special event, including but not limited to gun shows, arts and crafts fairs, and antique shows, a license based on a flat fee of $250.00, or $125.00 if the sponsoring person or organization is a nonprofit, shall be required. This license shall be issued by the city and shall be good for a period of ten days. These fees shall be nonrefundable and shall not be waived. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District.

(i) *Hotels, motels, rooming houses, boarding houses, and nursing homes.* Any person operating a hotel, motel, rooming house, boarding house, or nursing home shall pay an annual license tax of $2.00 for each sleeping room contained in it; provided that any person operating a nursing home shall pay, in lieu of the additional license tax required of hotels in section 150-955, a license tax in accordance with the provisions of section 150-963 based on one-third of the total gross receipts of the nursing home. For the purposes of this section, "hotel" means and includes any establishment or person engaged in the business of furnishing sleeping rooms, cottages, or cabins to transient guests, where such establishment consist of sleeping rooms, cottages, or cabins at any of the following: (1) a single business location; (2) a residential location, including but not limited to a house, apartment, condominium, camp, cabin, or other building structure used as a residence. This shall not include accommodations provided on an occasional basis but not more than three times in a calendar year by a person participating in a fund-raising program conducted by a nonprofit organization provided that payment for the accommodation shall be made to the sponsoring nonprofit organization and that payment to the individual providing the accommodation, if any, shall be

limited to reimbursement for direct expenses. For the purposes of this section, a nonprofit organization shall be one organized as a nonprofit corporation under the laws of the state or tax exempt under Section 501C of the Internal Revenue Code.

(j) *All other businesses.* For all businesses not otherwise covered by or specifically exempted under this article, including, but not limited, to printers, lithographers, attorneys-at-law, accountants, oculists, physicians, osteopaths, dentists, chiropodists, bacteriologists, veterinarians, chemists, architects, and civil, mechanical, chemical, or electrical engineers engaged in the practice of their profession as an individual, or as a firm, partnership, or corporation, the license shall be 0.10 percent of the annual gross receipts for professional fees for services rendered by the taxpayer, with a minimum tax of $50.00 and a maximum tax of $2,000.00. The tax levied herein shall be levied only on the business and not separately on any individual who is employed by or is a member of the taxpayer which conducts its business as a firm, partnership, or corporation.

(Code 1956, § 70-18; Ord. No. 19,937, § I, 12-1-00; M.C.S., Ord. No. 26972, § 1, 7-14-16; M.C.S., Ord. No. 27266, § 1, 1-26-17; M.C.S., Ord. No. 29188, § 3, 10-6-22)

State law reference—Similar provisions, R.S. 47:359.

Sec. 150-970. Exemptions.

(a) *Blind persons and their widows or orphans.* License taxes levied by this article shall not apply to blind persons, who are exempted from license taxes by R.S. 46:371 through 46:373. The exemption provided by this subpart shall apply only where the business is conducted by any blind person exclusively for his own support or the support of his family.

(b) *Artists and craftsmen.* Any occupational license tax imposed on retail dealers not having a fixed place of business shall not apply to state artists and craftsmen who display their own original art and handicraft for sale at functions sponsored by nonprofit organizations.

(c) *Nonprofit organizations.*

(1) The occupational license tax required by this article shall not apply to those qualified nonprofit organizations which are exempt from the collection of sales and use taxes under the provisions of R.S. 47:305.14 or from the payment of federal income taxes under the applicable provisions of the Internal Revenue Code.

(2) This subsection shall not be construed to exempt museums, menageries, circuses, or other traveling shows from the license required by section 150-969(h).

Regulation 150-970(c)(1). Nonprofit organizations.

Any organization which has been organized for bona fide nonprofit purposes (including political subdivisions of the State of Louisiana) shall be deemed to be exempt from the occupational license tax imposed by chapter 150, article VII of the Code of the City of New Orleans. Any corporation organized pursuant to the provisions of the Louisiana Nonprofit Corporation Law, Louisiana R.S. 12:201, et seq., shall be presumed to be exempt from such tax.

(d) *Wholesale dealers in certain alcoholic beverages.* There shall be no license tax imposed, assessed, or collected under the provisions of this article on any person engaged in the business of selling at wholesale, malt, vinous, spirituous, alcoholic, or intoxicating liquor containing more than six percentum of alcohol by volume, and beer, porter, ale, fruit juices, and wine containing more than one-half percentum of alcohol by volume.

(e) *Other exempted businesses.* Banks, homestead and building and loan associations, editors, over-the-air broadcasters, as defined by Federal Communications Commission, publishers, clerks, laborers, ministers of religion, school teachers, graduated trained nurses, those engaged in agricultural or horticultural pursuits, those operating saw-mills, and corporations organized and operated for the purpose of lending money to farmers for production purposes, the stock of

which is owned by farmer members and employees of such corporations, shall be exempted from any provisions of this article.

(f) *Manufacturers.* Manufacturers shall be exempted from any provisions of this article; however, manufacturers who sell their manufactured articles at retail shall be subject to the payment of a license tax on such retail sales as fixed by this article.

(g) *Disabled persons.* There shall be no license tax imposed, assessed, or collected under the provisions of this article on any person who is disabled to the extent that he is home-bound, confined to a bed or wheelchair, requires the aid and attendance of another person, and is unable to enter the normal work force.

(Code 1956, § 70-19; Ord. No. 19,937, § I, 12-1-00; M.C.S., Ord. No. 27266, § 1, 1-26-17)

State law reference—Similar provisions, R.S. 47:360.

Sec. 150-971. Deductions.

(a) *Petroleum taxes.* In calculating the gross sales at retail gasoline filling and service stations or at bulk or distributing plants engaged in the storage and sale of petroleum products, the taxpayer shall exclude therefrom the part of the purchase price paid by him for gasoline and motor fuels or lubrication oils as shall equal the manufacturer's or dealer's license, privilege, or excise tax levied by federal or state statutes on the manufacturing, handling, storing, selling, or consuming of gasoline, motor fuels, or lubricating oils.

(b) *Undertaking and funeral directing.* The term "gross annual receipts", as used in this article, shall cover all of the receipts of the person carrying on the business of undertaking and funeral directing, except that deduction shall be allowed for collections made by one undertaker and funeral director, for the account of another undertaker and funeral director, as shown by the books of both parties at interest.

(c) *Stocks and bonds; interstate sales.* In determining the amount of gross annual commissions and brokerage to be subject to the tax, each commission business operating on exchanges located outside the state shall deduct therefrom 40 percent in the case of purchases and sale of stocks and bonds consummated on exchanges located outside the state and 55 percent of purchases and sales of commodities consummated on exchanges located outside the state.

(d) *Retail or wholesale sales of motor vehicles and boats.* In determining the amount of gross sales and receipts to be subject to the tax for retail or wholesale dealers in motor vehicles, automobiles, motor trucks, motor buses, motorcycles, motor bicycles, motor scooters, motor tractors, motor-propelled road machinery farm implements, and equipment designed for use with tractors and other motor-propelled equipment, trailers, semitrailers, aircraft, or other motor-propelled land vehicles, and pleasure or commercial boats, the license shall be computed on the total gross sales from all sales, including, but not limited to, sales of parts and accessories, receipts from repair shops, and sales and rental of motor vehicles; however, the gross sales and receipts of the above listed dealers shall not exceed $700,000.00.

(e) *Architects.* In calculating the "annual gross receipts for professional fees for services rendered" in the practice of architecture, the taxpayer shall exclude and deduct therefrom all fees owed and/or paid by the taxpayer to any independent consultant or subconsultant, hired by the taxpayer to perform part of work undertaken by the architect provided, however, that such consultant or subconsultant has paid an occupational license tax levied by an ordinance authorized by R.S. 47:341 et seq. Such independent consultants shall include, but not be limited to, other architects, professional engineers, interior designers or decorators, lighting, optical or acoustical experts, independent estimators, building specialty consultants, landscape architects, and surveyors.

(f) *Engineers.* In calculating the "annual gross receipts for professional fees for services rendered" in the practice of engineering, the taxpayer shall exclude and deduct therefrom all fees owed and/or paid by the taxpayer to any independent consultant or subconsultant, hired by the taxpayer to perform part of work undertaken by the engineer provided, however, that such consultant

or subconsultant has paid an occupational license tax levied by an ordinance authorized by R.S. 47:341 et seq.
(Code 1956, § 70-20; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:361.

Sec. 150-972. Special provisions.

(a) The maximum license tax paid by licensed contractors shall not exceed $750.00 and shall be in compliance with R.S. 47:362.

(b) The tax shall be computed on the basis of the schedule contained in this article according to the physical location of each place of business without regard to the location where the actual sale takes place or where a product or service is delivered or performed.

(c) For lessors with a place of business in this state, the tax shall be computed on the basis of the schedule contained in this article according to the physical location of such business without regard to the location where the leased property is situated within this state.

(d) A person engaged in the business of operating a railroad for the transportation of freight or passengers shall be deemed to be carrying on but one business, and to have only one place of business which shall be the place where the general office within the state as designated by such person is located.

(e) Nothing in this article is intended to levy a tax on those receipts subject to the tax under the provisions of R.S. 22:1076, which shall be provided for in article X of this chapter.

(f) Under the provisions of this article, no occupational license tax totaling more than $50.00 levied against a small business will increase more than 25 percent in the first year over the occupational license tax it paid under the schedules or classifications used in 1985. Small business shall be defined as any person who employs 15 full-time persons or less per business establishment and which has $2,000,000.00 or less in gross annual sales or receipts. Any person not paying an occupational license tax in 1985 shall pay according to the appropriate schedule or classification in this article.
(Code 1956, § 70-21; Ord. No. 19,937, § I, 12-1-00)

State law reference—Similar provisions, R.S. 47:362.

Sec. 150-973. Revocation.

Any license granted or issued by the city shall be subject to revocation after due notice to the holder of such license and hearing thereon, upon proof of failure of continued compliance with the comprehensive zoning ordinance, the minimum property maintenance code, the building code, the mechanical code, and the electrical code, as the case may be.
(M.C.S., Ord. No. 29189, § 4, 10-6-22)

Secs. 150-974—150-1000. Reserved.

ARTICLE VIII. HOTEL OCCUPANCY PRIVILEGE TAX*

Sec. 150-1001. Reserved.

Editor's note—M.C.S., Ord. No. 23817, § 1, adopted Dec. 1, 2009, repealed § 150-1001, which pertained to definitions and derived from Code 1956, § 63B-2.

Sec. 150-1002. Tax levied.

There is hereby levied a tax upon persons for the privilege of occupying hotel rooms within the parish which shall be known as the hotel occupancy privilege tax. The tax shall only be due by the person or persons who pay for the room and shall be levied on the basis of hotel guest room capacity, in accordance with the following schedule and in accordance with the following rates:

Hotel Guest Room Capacity	*Amount of Tax Per 24-Hour Period*
300 or more	$1.00
1 to 299	0.50

*__Cross references—__Businesses, ch. 30; hotels and motels, § 30-771 et seq.; roominghouses, boardinghouses and lodginghouses, § 30-1321 et seq.

(Code 1956, § 63B-1; M.C.S., Ord. No. 25126, § 1, 12-20-12; M.C.S., Ord. No. 26972, § 1, 7-14-16)

Sec. 150-1003. Effective date; repeal under certain circumstances.

(a) This article shall become effective on November 1, 1990.

(b) The imposition and collection of the hotel occupancy privilege tax shall be repealed and discontinued upon the occurrence of any of the following events:

(1) The dissolution or liquidation of the New Orleans Tourism and Cultural Fund as a duly authorized nonprofit corporation; or

(2) The specific decertification of the New Orleans Tourism and Cultural Fund as a nonprofit economic development corporation by the city council.

(c) If the hotel occupancy privilege tax is repealed as provided in subsection (b) of this section, the tax imposed by this article shall not be levied or due the remainder of the year in which it is repealed or for any subsequent year.
(Code 1956, § 63B-12; M.C.S., Ord. No. 28340, § 1, 5-7-20)

Sec. 150-1004. Tourist and convention promotion fund.

(a) In accordance with the provisions of section 6-215 of the Charter, the mayor is authorized to create the New Orleans Tourist and Convention Promotion and Support Fund (the fund) into which fund the revenues from the base funding and the net proceeds of the special hotel occupancy privilege tax imposed pursuant to M.C.S. Ordinance Number 14,138 shall be placed.

(b) The base funding and the net revenues from the special hotel occupancy privilege tax shall be placed in this fund. Net revenues to be paid into the fund as provided herein shall be all gross revenues received by the city from the hotel occupancy privilege tax less costs actually incurred by the city relative to the imposition and collection of the tax or for management or financial audits or reviews related to the tax or the fund or expenditures from the fund or the New Orleans Tourism and Cultural Fund.

(c) The fund hereby established shall be kept in an interest-bearing account with interest earnings thereon to become a part of the fund and shall be administered by the director of the department of finance pursuant to a tourism and cultural economy program approved by the city as provided in section 150-1005.

(d) Revenues placed into the fund may only be used to pay the New Orleans Tourism and Cultural Fund for services provided under a cooperative endeavor agreement or other duly authorized contract with the city, which contract shall incorporate the provisions of the most recent tourism and cultural economy program which has become final and conclusive according to the process established by section 150-1005 and the provisions of the economic development plan of the New Orleans Tourism and Cultural Fund, as required by La. R.S. 33:9020 et seq.

(e) This fund shall be included in the annual audit by the city's independent certified public accountants, and an examination of the accounts and operations of the New Orleans Tourism and Cultural Fund shall be included in the city's annual audit.
(Code 1956, § 63B-3; M.C.S., Ord. No. 28340, § 1, 5-7-20)

Sec. 150-1005. Tourism and cultural economy program.

(a) The New Orleans Tourism and Cultural Fund approved for formation, incorporation and operations as a nonprofit economic development corporation by Ordinance Number 14,118 M.C.S., as amended by Ordinance Number ____ M.C.S., shall annually submit to the mayor and to the city council, in conjunction with the city's operating budget, a detailed tourism and cultural economy program (hereinafter the program) which shall be in addition to and distinct from the submission of a plan as required by La. R.S. 33:9020 et seq. Each annual program shall be consistent with, and in furtherance of, the economic development plan approved by the city council in accordance with the Cooperative Economic Development Law. The program shall set forth the proposed allocations and uses of the fund for the upcoming fiscal year and shall

include information relative to anticipated tax revenues, funds from all other sources, investments, reserves, and any fund balance from prior years. The program shall specify the proposed activities and expenditure allocations of the corporation, as well as information regarding the prior year's expenditures and progress toward the prior year's proposed activities. The city council shall receive, review and consider the program together with such written comments and recommendations as the mayor may provide. Submission of the program and consideration of the program shall be in accordance with the schedule established for submission and consideration of the city's annual budget.

(b) The city council may by a majority vote of its members adopt or reject an ordinance setting forth the recommended program as originally submitted by the corporation, or it may alter or modify the program or any portion or detail thereof but only by a majority vote of all of its members. If the program as originally submitted by the corporation is adopted by the majority vote of the city council, it shall become final and conclusive and may thereafter be implemented. If, however, the city council alters or modifies the program by a majority vote of its members, the program as so altered or modified shall be resubmitted to the corporation for its concurrence or rejection. The corporation may concur in such modified program by a majority vote of all of its board members. If the corporation so votes to concur in the program as modified by the city council, the program shall become final and conclusive and may thereafter be implemented. If, however, the corporation does not concur in the program as modified by the city council, it shall notify the city council in writing of its actions. The corporation may then submit one or more alternate programs to the council which must be submitted serially for its adoption, modification or rejection in the same manner as provided above until such time as a program is adopted by the council and has become final and conclusive. The director of the department of finance shall not approve any expenditure from the New Orleans Tourist and Convention Promotion and Support Fund until a tourism and cultural economy program has become final and conclusive in the manner set forth hereinabove. Following the implementation of the program, the corporation may, if it deems necessary, propose an amendment to the program to the city council but only if the decision to propose such amendment is adopted by a vote of not less than two-thirds of the board members of the corporation, and no such amendment shall become effective until adopted by the council.
(Code 1956, § 63B-4; M.C.S., Ord. No. 28340, § 1, 5-7-20)

Sec. 150-1006. When due and payable.

The tax levied by this article shall be due and payable at the time when the guest pays for the occupancy of the hotel room. The hotel operator is hereby charged with the duty and obligation to collect and remit the tax to the department of finance.
(Code 1956, § 63B-5)

Sec. 150-1007. Collection by hotel operator.

The tax authorized in this article shall not be assumed by the hotel operator, and it shall be mandatory on the hotel operator to collect such tax from the guest for remittance to the department of finance of the city.
(Code 1956, § 63B-6)

Sec. 150-1008. Collection of excess tax prohibited.

Whoever advertises or collects in the guise of a hotel occupancy privilege tax a sum in excess of the tax actually due is guilty of a misdemeanor.
(Code 1956, § 63B-7)

Sec. 150-1009. Report and remittance.

Every hotel operator subject to the terms of this article shall make reports of the previous month's business on or before the 20th day of the following month. However, whenever the taxes due hereunder from a hotel operator average less than $100.00 per month and the hotel operator's annual gross sales are less than $250,000.00, the taxes hereunder shall be due and payable quarterly by the hotel operator, and the return required from the hotel operator for the quarter

shall be filed on or before the 20th day of the first month of the next succeeding quarter. Any hotel operator who is required to file tax returns on a quarterly basis, as provided above, may file his returns and pay the tax on a monthly basis after first having received written approval from the director to do so. Application to file monthly must be furnished to the director in writing and will set forth complete justification for the shorter reporting period. Such reports, whether filed monthly or quarterly, must be accompanied by a certified check, post-office or express money order or cash for the amount of tax due as indicated by the report. The daily, monthly or quarterly report rendered to the department of finance shall be on forms prescribed by the department and shall be signed by the person or hotel operator remitting the tax or his duly authorized representative. Such signature shall constitute a warranty on the part of the hotel operator and the person signing the report that he has read and examined it and that, to the best of his knowledge and belief, the statement and figures therein contained are true, correct and complete.
(Code 1956, § 63B-8; M.C.S., Ord. No. 17,094, § 1, 6-15-95)

Sec. 150-1010. Inspections.

In order that the department of finance may have additional means of checking and verifying the accuracy of such reports, all the records, books and other documents of hotel operators and those making such reports as required by the preceding section shall be open for inspection by the department of finance agent at all reasonable hours for a period of four years commencing with the calendar year in which the tax becomes due and continuing for a period of the three subsequent consecutive calendar years thereafter.
(Code 1956, § 63B-9)

Sec. 150-1011. Penalties—Civil.

To further enforce the collection of the taxes due under this article independent of and in addition to the enforcement of the criminal penalties herein provided for under this section, the department of finance and/or the department of law are hereby vested with authority, on motion in court of competent jurisdiction, to invoke and include in a rule or summary proceeding against a hotel operator and/or the person responsible for the remittance of the tax requiring them to show cause in not less than two nor more than ten days after service thereof, exclusive of holidays, which matter may be tried out of term and in chambers, and shall always be tried by preference, when such hotel operator should not be enjoined and restrained from further pursuit of the business; and in case such rule is made absolute, the order thereon rendered shall be considered a judgment in favor of the city prohibiting, restraining and enjoining such hotel operator from further pursuit of the business until such time as he has paid the delinquent tax, penalties, interest, attorney's fees and costs due; and every violation of the injunction shall be considered as a contempt of court and punishable as such according to law.
(Code 1956, § 63B-10)

Sec. 150-1012. Same—Criminal.

If any tax due under this article is not collected and remitted within the time prescribed herein, it shall become delinquent, and the hotel operator, in addition to being liable for the tax due plus interest, shall be subject to a penalty of:

(1) Twenty percent of the amount of the tax and interest when the hotel guest room capacity is nine or less, or

(2) Twenty percent on the amount of the tax and interest or $500.00, whichever is greater, when the hotel guest room capacity is ten or more.

Further, the hotel operator shall be liable for ten percent of the attorney's fees on the tax, interest, and penalty in all cases wherein an attorney is required to assist in the collection. Any person signing and filing a daily or monthly report subsequently found to be grossly incorrect, false, fraudulent, or in violation of any of the other provisions of this article, shall be, upon conviction, guilty of a misdemeanor.
(Code 1956, § 63B-11; M.C.S., Ord. No. 25126, § 2, 12-20-12)

Secs. 150-1013—150-1055. Reserved.

ARTICLE IX. CHAIN STORE TAX*

Sec. 150-1056. Imposition of tax.

Because of the advantages accruing from the operation of multiple stores wherever situated and of the basic difference inherent in such character of operations, there is hereby levied an annual license tax for the year 1976 and for each subsequent year upon each person engaged in the business of operating, or maintaining as part of a group or chain, any store or stores in this city where goods, wares, merchandise or commodities of every description whatsoever are sold or offered for sale at retail under the same general management, supervision, ownership and/or control, commonly known as branch or chain stores. The license tax herein prescribed shall be in addition to ad valorem taxes and any other licenses and/or taxes prescribed or authorized under the laws of the city.
(Code 1956, § 69-1)

Sec. 150-1057. Basis and rates of tax.

The license tax for the business described in this article, levied upon the stores operated in the city, shall be based on the number of stores or mercantile establishments included under the same general management, supervision, ownership or control, whether operated in the city or not; and whether within the state or not; and shall be fixed and graded as follows:

(1) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of not more than ten stores, the annual license shall be $10.00 for each store operated in this city.

(2) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than ten stores, but not more than 35 stores, the annual license shall be $15.00 for each such store operated in this city.

(3) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 35 stores but not more than 50 stores, the annual license shall be $20.00 for each such store operated in this city.

(4) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 50 stores but not more than 75 stores, the annual license shall be $25.00 for each such store operated in this city.

(5) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 75 stores but not more than 100 stores, the annual license shall be $30.00 for each such store operated in this city.

(6) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 100 stores but not more than 125 stores, the annual license shall be $50.00 for each such store operated in this city.

(7) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 125 stores but not more than 150 stores, the annual license shall be $100.00 for each such store operated in this city.

(8) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 150 stores but not more than 175 stores, the annual license shall be $150.00 for each such store operated in this city.

(9) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 175 stores but not more than 200 stores, the annual license shall be $200.00 for each such store operated in this city.

(10) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 200 stores, but not more than 225 stores, the annual license shall be $250.00 for each such store operated in this city.

*Cross reference—Businesses, ch. 30.

State law reference—Authority of municipalities to collect chain store tax, R.S. 47:10.

(11) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 225 stores but not more than 250 stores, the annual license shall be $300.00 for each such store operated in this city.

(12) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 250 stores but not more than 275 stores, the annual license shall be $350.00 for each such store operated in this city.

(13) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 275 stores but not more than 300 stores, the annual license shall be $400.00 for each such store operated in this city.

(14) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 300 stores but not more than 400 stores, the annual license shall be $450.00 for each such store operated in this city.

(15) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 400 stores but not more than 500 stores, the annual license shall be $500.00 for each such store operated in this city.

(16) Upon stores or mercantile establishments operated in this city and belonging to a chain or group having a total of more than 500 stores, the annual license shall be $550.00 for each such store operated in this city.

(Code 1956, § 69-2)

Sec. 150-1058. Newly opened stores.

The tax bases and rates set forth in section 150-1057 shall apply with respect to stores in existence on January 1 of each year. The tax rate applicable to stores opened in the city after January 1 of any year shall be based on a determination made as though the newly opened store or stores had existed on the preceding January 1. If a store is opened in the city after June 30 of any year, the rate applicable to such store for the first year shall be one-half of the rate determined as hereinabove provided.

(Code 1956, § 69-3)

Sec. 150-1059. Reports.

Every person engaged in the business under this article and doing business in this city shall, on or before February 1 of each year, render to the collector a report signed and sworn to by the person in interest, or his duly authorized agent or officer, containing a true and complete statement showing the number of stores or mercantile establishments operated or maintained in this city on the preceding January 1, the name, location and street address of each such store or mercantile establishment, and containing such other information as the collector may require. When additional stores are opened during the year, the operator shall file a supplemental report disclosing the aforementioned information with respect to each such newly opened store, within 30 days after the date of opening.

(Code 1956, § 69-4)

Sec. 150-1060. Payment of tax; issuance of license; penalties and interest.

(a) The license taxes under this article with respect to stores in existence on January 1 of each year shall be payable to the collector of revenue before February 1 of each year and shall accompany the report described in section 150-1059, and with respect to newly opened stores shall be paid within 30 days after the respective stores are opened.

(b) If the amount of tax due by any person under this article is not paid on or before the date prescribed for its payment, there shall be collected, with such tax, interest at the rate of 12 percent per annum from the due date until paid.

(c) If the term for which interest is to be charged exceeds four years, the rate of interest for the period beyond four years shall be reduced to six percent per annum, and in addition to the interest that may be so due, there shall also be collected a penalty of five percent of the tax if the failure is for not more than 30 days, with an additional five percent for each additional 30 days or fraction thereof during which the failure continues not to

exceed 25 percent of the tax on the aggregate and, upon suit attorneys' fees, at the rate of ten percent on the aggregate amount of tax, interest and penalty.

(d) All penalties and interest imposed by this article shall be payable to and recoverable by the director in the same manner as if they were part of the tax imposed.

(e) If the failure to pay any tax when due is explained to the satisfaction of the director, he may remit or waive payment of the whole or any part of any such penalty and/or interest.

(f) If any person shall fail to make return or report, as required by this article, the director, within three years from December 31 of the year in which such return or report was required to be filed under this article may make an estimate of the amount of taxes such person is liable to pay under the terms of this article, from any information he is able conveniently to obtain, and, according to such estimate so made by him, assess the taxes, fees, penalties and interest due this city from such person, give notice of such assessment to such person, and make demand upon him for payment.

(g) A separate license shall be issued for each store operated or maintained by the licensee, and it shall be the duty of the licensee to post the license in a conspicuous place in each store.
(Code 1956, § 69-5)

Sec. 150-1061. Violations.

Any person violating any of the provisions of this article, shall be fined not more than $100.00 nor less than $50.00, or imprisoned for not more than 90 days nor less than 60 days, or both.
(Code 1956, § 69-6)

Secs. 150-1062—150-1100. Reserved.

ARTICLE X. INSURANCE TAX*

Sec. 150-1101. Annual levy.

There is hereby levied an annual license tax for the calendar year 1957 and for each and every calendar year thereafter on each company, society, association, corporation, firm or individual engaged in the business of issuing life, accident or health insurance policies or other forms of contracts or obligations covering such risks, or issuing endowment or annuity policies, or contract obligations in consideration of the payment of a premium or other consideration for the issuance of such policies, contracts or obligations, whether such insurance company, society, association, corporation, firm or individual is domiciled in this state or city or operating through an agent or other representative or otherwise; such annual license tax is based on the gross amount of annual premium on all such risks located in this city as herein fixed and graded as follows:

(1) On any company, society, association, corporation, firm or individual engaged in the business of issuing life, accident or health insurance policies or other forms of contracts or obligations covering such risks, or issuing endowment or annuity policies or contracts, or other similar form of contract obligations in consideration of the payment of a premium or other consideration for the issuance of such policies, contracts, or obligations, whether such insurance company, society, association, corporation, firm or individual be domiciled in this state or city or operating through an agent or other representative, or otherwise, not more than $10.00 on gross annual premiums up to $2,000.00 and the additional license thereafter shall not be more than $70.00 on each $10,000.00 or fraction thereof of gross annual premiums in excess of $2,000.00. Provided that the maximum license on such business payable to the city by any one company, society, association, corporation, firm or individual, shall not exceed $21,000.00.

(2) On any company, society, association, corporation, firm or individual engaged in the business of issuing policies, contracts, or other forms of obligation covering the risks of fire, or marine, or river insurance, or surety, or fidelity, or indemnity, of guaranty, or workmen's compensation or employers' liability or property damage, or

*__Cross reference—__Businesses, ch. 30.
__State law reference—__Authority to levy, R.S. 22:1076.

livestock, or tornado, or automobile, or automatic sprinkler, or burglary or insurance business of any kind whatsoever in this state, whether such insurance company, society, association, corporation, firm or individual, is domiciled in this state or operating through agents or other representatives or otherwise, not more than the following:

a. *First class.* On premiums of less than $2,000.00 the license fee shall be based on two percent of gross receipts, provided that no license shall be issued for less than $5.00, nor shall exceed $40.00.

b. *Second class.* On premiums in excess of $2,000.00 and not exceeding $4,000.00, the license fee shall be $60.00.

c. *Third class.* On premiums in excess of $4,000.00 and not exceeding $6,000.00, the license fee shall be $80.00.

The license fee shall be $70.00 additional for each $10,000.00 or fraction thereof of gross annual premiums in excess of $6,000.00.

(Code 1956, § 70-22)

State law reference—Imposition of tax, R.S. 22:1061.

Sec. 150-1102. Maximum tax.

The maximum license tax on such businesses, payable to the city by any company, society, association, corporation, firm or individual shall not exceed $9,000.00. Provided that plateglass and steam boiler inspection companies, societies, associations, corporations, firms or individuals, shall pay only one-third of the rates provided in this section; provided, further, that the amount of license fee payable to the city as fixed in subsections 150-1101(1) and (2), shall be one-third of the amount so fixed if the payer shall file a sworn statement with the annual report required by this article, showing that at least one-sixth of the total admitted assets of the payer is invested and maintained either in bonds of this state, or in bonds of municipal, school, road or levee district, or other political subdivisions of this state, or in mortgages on property located in this state, or in policy loans, or other loans to residents of this state, or to corporations organized under the laws of this state, and domiciled in this state, or in stock of homesteads, building or loan association organized and operating under the laws of this state, to the extent such stock is guaranteed or insured by the Federal Deposit Insurance Corporation or other federal or state agency.

(Code 1956, § 70-22)

Sec. 150-1103. Basis for tax.

(a) The annual premiums above referred to shall be the gross amount of premiums on risks located in the city for the preceding year without any deductions for dividends paid or otherwise credited to policy holders.

(b) If the company, society, association, corporation, firm or individual is new, then the premiums for the first two months shall be the basis of the license tax, and six times that amount shall be estimated as the gross amount of premiums of such business; provided that any company, society, association, corporation, firm or individual commencing business after July 1, shall pay one-half of the license taxes graded as above, but the license shall never be less than the minimum above provided.

(Code 1956, § 70-22)

Sec. 150-1104. Annual report.

Each company, society, association, corporation, firm, partnership, or individual coming under this article, shall, before the first day of June of each year, render to the director of the department of finance a report signed by its president and its secretary, or if an alien insurer, by its United States resident manager, or other officer in charge of its affairs in the United States, which shall certify to the amount of gross annual premiums on risks located within this city for the preceding year. No credit shall be taken for reinsurance. The blanks for making such report shall be furnished by the director of the department of finance.

(Code 1956, § 70-22; Ord. No. 19,938, § I, 12-1-00)

State law reference—Similar provisions, R.S. 22:1070.

Sec. 150-1105. Payment of tax.

The full amount of license taxes levied under this article shall be paid to the director of the department of finance of the city before the first day of June of each year, and the director of the department of finance shall issue to the company, society, association, corporation, firm, partnership, or individual making the payment a license certificate on a printed or lithographed form, showing the amount of such payment and the license class under which such license is paid, which certificates shall be kept on display at the principal office or place of business in the city of such company, society, association, corporation, firm, partnership, or individual making such payment.
(Code 1956, § 70-22; Ord. No. 19,939, § I, 12-1-00)

Sec. 150-1106. Delinquency.

(a) In case of any failure to make a report or to make payment of the license tax in full as required by this article, before June first of any year in which the report or license tax is due, a penalty of five percent per month shall be added to the amount of tax due and payable to the director of the department of finance along with the tax due. The director of finance may waive the payment of the penalty if he finds that failure to pay was due to some unforeseen or unavoidable reason, other than mere neglect.

(1) The amount of any monetary penalty assessment pursuant to this section shall not be greater than 25 percent of the total amount of the tax due.

(2) When a payment is more than six months delinquent, the director of the department of finance may revoke the authority of the delinquent taxpayer and all of the taxpayer's agents to do business in this city.

(Code 1956, § 70-22; Ord. No. 19,940, § I, 12-1-00)

Sec. 150-1107. Investigation and enforcement by the director of the department of finance.

The director of the department of finance shall have authority to review and examine any sworn statements or accounts that may be rendered or furnished in pursuance of the provisions of this article; and the director of the department of finance shall have authority to demand and examine the books, statements, or accounts of any insurer from whom a license tax may be due and to take such proceedings before any court of competent jurisdiction by rule or otherwise, against any insurer from whom a license tax may be due as may be necessary to enforce a full and fair compliance with the provisions of this article.
(Ord. No. 19,941, § I, 12-1-00)

Secs. 150-1108—150-1140. Reserved.

ARTICLE XI. TRANSIENT OR FOREIGN BUSINESSES*

Sec. 150-1141. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Foreign or transient business means any person or entity transacting or engaging in any business or profession who does not have a place of business within a state local governmental subdivision which imposes an occupational license tax, but who, if such person or entity had a place of business in the parish, would be required to obtain a license and pay an occupational license tax under any other provision of this article.
(Code 1956, § 70-30(b))

Cross reference—Definitions generally, § 1-2.

Sec. 150-1142. License required, fee.

No transient or foreign business shall transact or engage in any business or profession in the parish unless and until the foreign business shall have obtained a special annual operating license, in lieu of an occupational license, from the department of finance. The fee paid for such a special annual operating license shall be in the same amount as the person or entity would pay if the same were required to obtain an occupational license, provided that only receipts attributable to

*__Cross reference—__Businesses, ch. 30.

State law reference—Authority of municipalities to regulate, R.S. 37:1908.

or derived from the parish shall enter into the calculation of any tax due. The provisions of this article are expressly declared to be severable from the remainder of the provisions of this chapter, provided that, to the extent permitted by applicable law, the other provisions of this chapter shall apply to this article as if the license and tax required and imposed by this article were an occupational license and an occupational license tax.
(Code 1956, § 70-30(a))

Secs. 150-1143—150-1190. Reserved.

ARTICLE XII. PARKING/BERTHING TAX*

Sec. 150-1191. Levy of tax.

A tax is hereby levied on the acquisition of the right or privilege of using immovable property for the purpose of parking or storage or berthing motor vehicles and watercraft. The tax shall be three percent of the value of the right to use the immovable property for each particular purpose, time, duration, and place, which value shall be determined by the price actually paid by the user or on his behalf, if such a price is paid, or as provided in section 150-1193, if not paid or to be paid. The tax imposed by this chapter, however, shall never be less than $0.01 for each occasion or period of use of a right to park, store, or berth. The tax imposed by this chapter shall not apply to parking, storing, or berthing of vehicles or watercraft engaged, at the time the tax would otherwise apply, in interstate or maritime commerce; nor shall the tax apply to parking, storing, or berthing of agricultural vehicles or the parking or storing or berthing of one or two vehicles or one or two watercraft as a right incident to the rental or use of the permanent dwelling of the person acquiring the right to park, store or berth. The tax levied by this chapter shall apply even when the right to such use acquired is contingent or subject to availability or is shared by two or more persons.
(Code 1956, § 56A-1)

*__Cross reference—__Businesses, ch. 30.

Sec. 150-1192. Payment of tax.

The parking tax levied by this article shall not be assumed by the owner or manager of the immovable property to be used for parking, storing, or berthing but shall be paid by the person who acquires, for a price, the right to park, store or berth vehicles or watercraft. The owner or manager of the immovable property shall collect the tax from the payer of the price and shall remit the same to the department of finance.
(Code 1956, § 56A-2)

Sec. 150-1193. Gratuitous parking.

(a) In the case of persons permitted to park or store motor vehicles or to berth watercraft free of charge, in any place at a time when and under circumstances in which a charge is made to other persons an equivalent tax shall be due, payable and collected based upon the lowest price due, payable and charged to such other persons for the same or similar parking, storing, or berthing, to be paid by the person charged with the duty to collect and remit the tax levied and imposed under this article. The person shall keep accurate books and records of all gratuitous parking, storage, or berthing and shall collect and remit the tax due as is the case when full payment is made. Each failure to collect the tax due on each and every separate transaction under this section shall be a separate offense and a misdemeanor. The provisions of this section shall apply only to cases where no sum of money has been paid by the person acquiring the right to park, store or berth, or by some other person on his behalf, but where economic benefit directly or indirectly inures to the benefit of the owner or operator of the immovable property for the privilege of parking or berthing and shall not apply to reduced rate parking, early-bird parking, or validated parking.

(b) For the purposes of this section, reduced-rate parking shall refer to a right to park, store, or berth acquired for a price less than the highest price charged to any other person for the same or similar parking, storage, or berthing in the same place, at the same time, and under substantially the same place and circumstances; early bird parking shall refer to a right to park, store, or berth where the price is discounted because the

person acquiring the right is required to commence parking, storing, or berthing before a certain time and continue parking, storing, or berthing without interruption until after another certain time; and validated parking shall mean a right to park, store, or berth paid for by a merchant or other person other than the person parking, storing, or berthing.
(Code 1956, § 56A-3)

Sec. 150-1194. Exemptions.

No tax shall be levied under this article with respect to any parking, storage and berthing at or on the premises of or at:

(1) Any church, provided that all the proceeds of any parking, storage or berthing transaction inure to the benefit of a religious institution.

(2) At any charitable benefit, provided that all the proceeds of the parking, storage or berthing transaction inure exclusively to the benefit of a charitable institution.

(3) A school or university with respect exclusively to parking, storage or berthing by the students, members of the faculty, or others directly affiliated with the activities of such school or university which charges a parking, storage, or berthing fee in connection with the activities of such school or university; nor shall any tax to be levied with respect to a school or university which acquires a right to park, store, or berth for a period of at least one month, vehicles or watercraft owned or operated by the school or university, its students, members of its faculty or others directly affiliated with the activities of such school or university, at or on the premises of immovable property not otherwise exempt by this article, and such school or university shall supply the owner or manager of the immovable property, at the time of each payment, with a copy forwarded to the department of finance, a certificate approved by the department indicating that the school is specifically exempt from the tax imposed and levied by this chapter; such certificate should be attached to the owner or manager's daily or monthly report to the department as required under the provisions of this article. It being the express intent of this provision to exclude schools and universities, their students, members of their faculties, or others directly affiliated with the activities of such school or university from the tax imposed and levied by this article.

(4) Any symphony, concert, opera, theatrical production or any other cultural event produced or staged by a nonprofit organization which has qualified for a tax exemption under section 501(c)(3) of Title 26 of the United States Code; provided that this exemption shall apply only to charges or payments, the proceeds of which inure solely to the benefit of such nonprofit organization.

(5) The taxpayer's place of employment, when gratuitous parking during working hours is provided to employees.

(6) At any public park-and-ride facility operated by a governmental agency or by a transit franchisee of the city, as a convenience to users of or as an adjunct to a mass transit system.

(7) Notwithstanding the above, if any part of the proceeds derived from any of the transactions exempt by the provisions of this section inure to the benefit of any promoter, producer, or any other individual connected with the event other than the public, religious, charitable, educational, or cultural organization itself, the exemptions granted by this section shall not apply to such part of such proceeds to which the promoter, producer or individual may be entitled or shall receive, but rather such exemptions shall apply, in all cases, solely to proceeds received directly by the public, religious, charitable, educational or cultural nonprofit organization.

(8) Any parking lot or other location open without charge to the public or to all of the patrons, customers, or invitees of the owner or operator.

(Code 1956, § 56A-4)

Sec. 150-1195. Campgrounds or travel parks.

For the purposes of this article, parking, storage or berthing motor vehicles and watercraft shall not include motor vehicles that are parked, stored or berthed at a campground or travel park which is a facility used primarily to provide overnight camping accommodations with ancillary facilities, such as showers, barbecue grills, water and/or electricity; provided that such ancillary services are actually used by the person then in control of the motor vehicle.

(Code 1956, § 56A-4.1)

Sec. 150-1196. Collection mandatory.

The tax imposed and levied by this article shall not be assumed by the payee of the price or the owner or operator of the immovable property and it shall be mandatory on the payee or the owner or operator of the immovable property, in a case where no price is paid to collect such tax from the

payer or the user, in the case where no price is paid for remittance to the department of finance.
(Code 1956, § 56A-5)

Sec. 150-1197. Permit required.

Every person engaged in any of the businesses described in this article is required to obtain from the city through the department of finance a permit to conduct such business. This permit shall issue of right and without charge and shall be continuous and shall remain in force and effect unless and until surrendered or revoked and such permits shall be revoked only for failure to collect and remit the tax within the time stipulated herein or after the holder has been convicted of violating any of the other provisions of this article, or has had judgment rendered against him in a civil action for violating any of the provisions of this article.
(Code 1956, § 56A-6)

Sec. 150-1198. Violations declared misdemeanor.

Any person who collects anything of value or advertises in the guise of a parking tax a sum in excess of the parking tax due shall, upon conviction, be guilty of a misdemeanor.
(Code 1956, § 56A-7)

Sec. 150-1199. When due; reports and remittances.

(a) The taxpayer shall pay the tax not later than the last hour or day of any period of parking, storing, or berthing for which a tax is due, to the person as the owner or operator of the immovable property charged with the duty to collect the tax under this article, who shall be deemed the dealer and who shall, subject to his fiduciary duty to the city, segregate the tax funds and shall, at the end of each business day, report to the department of finance an account of the day's business together with a remittance of the tax due the city, except that the person engaged in a permanently established business in the city operated at least five days of each week shall as the dealer make reports of the previous month's business on or before the 20th day of the following month, such reports to be accompanied by the remittance for the amount of tax due as indicated by the report. The daily or monthly report rendered to the department of finance shall be on forms prescribed and furnished by the department of finance and shall be signed by the dealer remitting the tax or his duly authorized representative. Such signature shall constitute a warranty on the part of the dealer signing the report that he has read and examined it and that, to the best of his knowledge and belief, the statement and figures therein contained are true, correct and complete.

(b) The provisions of subsection (a) of this section notwithstanding, the department of finance may require that the reports and remittances required by this section be made at the same time and in conjunction with the reporting and remittance of any sales and use taxes due to the city.
(Code 1956, § 56A-8)

Sec. 150-1200. Inspection of records.

In order that the department of finance may have additional means of checking and verifying the accuracy of such reports, all the records, books and other documents of dealers making such reports as required by section 150-1199 shall be open for inspection by the department of finance at all reasonable hours for a period consisting of the calendar year in which the tax becomes due and of the three subsequent calendar years.
(Code 1956, § 56A-9)

Sec. 150-1201. Enforcement authority.

To further enforce the collections of the taxes due under this article, independent of and in addition to the enforcement of any criminal penalties provided by law, the department of finance and/or the department of law are hereby vested with authority, on motion in a court of competent jurisdiction, to include in a rule against a dealer, to show cause is not less than two nor more than ten days, exclusive of holidays, after service thereof, which rule may be tried out of term and in chambers, and shall always be tried by preference why such dealer should not be enjoined and restrained from further pursuit of the business engaged in offering a right to use immovable property for the purpose of parking, storing or berthing of motor vehicles or watercraft; and in case such

rule is made absolute, the order therein rendered shall be considered a judgment in favor of the city, prohibiting, restraining and enjoining such dealer from further pursuit of the subject business until such time as the dealer has paid the delinquent tax, penalties, interest, attorney's fees and costs due, and every violation of the injunction shall be considered as a contempt of court and punishable as such according to law. For the purpose of this section the term "dealer" is defined to mean any person engaged, as a business, in offering to anyone the right to use immovable property for the purpose of parking, storing, or berthing motor vehicles or watercraft and subject to the duty to collect the tax imposed by this article on behalf of the city.
(Code 1956, § 56A-10)

Sec. 150-1202. Delinquent or fraudulent taxes; penalties; waiver.

(a) If any tax under this article is not collected and remitted within the time prescribed herein it shall become delinquent and the delinquent dealer in addition to being liable for the tax due plus interest, shall be subject to a penalty of 20 percent on the amount of the tax and interest, and penalty in all cases wherein an attorney is required to assist in the collection. As a further penalty, any dealer filing a daily or monthly report subsequently found to be grossly incorrect, false or fraudulent shall be guilty of a misdemeanor.

(b) The director of the department of finance, with the approval of the city attorney and that of the mayor or chief administrative officer upon written application of any person, after notice to the tax debtor and an opportunity for the same to be heard, may waiver all or a portion of any interest and penalty due, upon finding that such a waiver will, in the long-term, enhance the anticipatable revenues to the city or that such a waiver will avoid unfairness or undue hardship to the applicant.
(Code 1956, § 56A-11)

Secs. 150-1203—150-1250. Reserved.

ARTICLE XIII. TELECOMMUNICATIONS SERVICES*

Sec. 150-1251. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Gross receipts means the total amount of billings for telecommunications services rendered of whatever nature and all receipts from a business beginning or ending within the city.

Telecommunications services means:

(1) Local telephone service, private communication service, toll telephone service, including such service provided by alternate operator service providers, and teletypewriter or computer exchange service.

(2) Cellular mobile telephone or telecommunications services, specialized mobile radio or paging service and any other form of mobile or portable one-way or two-way communication.

(3) Charges for the connection of or change to any of the services described in subsections (1) or (2) of this definition.

Telecommunications services does not mean:

(1) Any excise, franchise or similar tax or like fee or assessment levied by the United States, by the state or by any political subdivision as defined in article VI, section 44(2), of the state constitution upon the purchase, sale, use or consumption of any telecommunications services, which tax fee or assessment is collected by the seller from the purchaser.

(2) Any interstate telecommunications services or any telecommunications services for which rates are approved by or subject to approval by the Federal Communications Commission, including interstate subscriber charges.

*Cross references—Franchises, § 30-36 et seq.; utilities, ch. 158.

(3) The furnishing of any telecommunications services for resale, including charges from the use of intercompany facilities pursuant to shared network facility arrangement, access charges paid by intrastate or interstate interexchange telecommunications carriers and interconnection charges paid by providers of cellular, mobile and paging telecommunications services provided that any dealer making a sale of telecommunications services for resale shall obtain a certificate from the purchaser of such services certifying that such services are purchased for the purpose of resale, the form of the certification to be determined by the director of the department of finance.

(4) Services or transactions defined as telecommunications services among entities classified as members of an affiliated group as provided by federal law in 26 U.S.C. § 1504.

(5) Information and data services, including storage of data or information for subsequent retrieval, the retrieval of data or information or the processing or reception and processing of data or information intended to change its form or content.

(6) Cable television.

Telecommunications services provider means any person who furnishes telecommunications services for compensation.
(Code 1956, § 52-200)

Cross reference—Definitions generally, § 1-2.

Sec. 150-1252. Reserved.

Editor's note—M.C.S., Ord. No. 18,721, § 1, adopted May 21, 1998, repealed § 150-1252, which pertained to gross receipts tax and derived from § 52-201 of the 1956 Code.

Sec. 150-1253. Municipal subscriber charge.

Beginning with the billing periods of January 1, 1991, there is hereby levied on all telephone subscribers for the rental of telephones, cellular mobile telephones, teletypewriter local service, local private line services, local telephone service and cellular mobile telephone or telecommunications service, all such services being located within the city, a municipal charge of one percent paid by subscribers for such services.
(Code 1956, § 52-202)

Sec. 150-1254. Impact on other taxes.

(a) The amount of the tax on gross revenues provided for in section 150-1252 and the amount of municipal subscriber charge provided for in section 150-1253 shall be in addition to and shall in no way count as a credit against any fees or charges owed by telecommunications services providers for the privilege of constructing, maintaining and operating communications systems in, upon, along, across, above, over, under or in any manner connected with the streets, public ways or public places within the corporate limits of the city as now or in the future may exist.

(b) Notwithstanding the above, any amounts paid pursuant to M.C.S., Ordinance Number 1,972 after January 1, 1991, shall be considered a credit against any amounts due under this article.
(Code 1956, § 52-203)

Sec. 150-1255. Collection of tax and charge.

(a) Beginning with the quarter ending March 31, 1991, for the purpose of ascertaining the amount of tax payable, all persons subject to the tax on gross receipts derived from the furnishing of telecommunications services for compensation provided for in section 150-1252 shall transmit not later than 30 days after the end of each quarter to the director of the department of finance, upon forms prescribed, prepared and furnished by him, returns showing the gross sales, gross proceeds from lease or rental and gross proceeds derived from sales of services arising from all taxable transactions during the proceeding quarter. These returns shall show any further information the director may require to enable him to correctly compute and collect the tax desired. Every telecommunications provider at the time of making the return herein required shall compute and remit to the director of the department of finance the required tax due for the proceeding quarter,

and failure to remit such tax shall cause such tax to become delinquent.

(b) The amount of the municipal charge provided for in section 150-1253 shall be added to and constitute a part of the bill sent to each such subscriber by the telecommunications services provider who shall collect such charge as agent for the city and remit the amount of such municipal charge to the director of the department of finance in quarterly installments not later than 30 days after the end of each quarter beginning with the quarter ending March 31, 1991.
(Code 1956, § 52-204)

Sec. 150-1256. Annual report.

Any person who shall provide telecommunications services for compensation within the city shall file with the director of the department of utilities an annual report which shall be certified by an independent certified public accountant. Such report shall at least show the amount of gross revenue collected or received or in any manner derived by such person and the source thereof during the tax year. Such annual report shall be filed with the director not later than 60 days after the end of the tax year.
(Code 1956, § 52-205)

Sec. 150-1257. Audit; examination of records.

(a) For the purpose of administering the provisions of this article, the director of the department of finance may annually cause to be made by any of his authorized assistants an examination of the books, records, papers, vouchers, accounts and documents of any person subject to the provisions of this article. Every telecommunications provider shall exhibit to the director or his authorized assistant all of the books, records, papers, vouchers, accounts and documents of the taxpayer to facilitate any such examination. The costs of any such examination shall be shared by the city and the taxpayer equally. A copy of any examination of the books, records, papers, vouchers, accounts and documents of taxpayers subject to this article shall be furnished to the director of the department of utilities of the city.

(b) As soon as practicable after each return is filed under the provision of sections 150-1252 and 150-1255, the director of the department of finance shall cause it to be examined to determine its correctness.
(Code 1956, § 52-206)

Sec. 150-1258. Disposition of revenue.

The director of the department of finance shall deposit all proceeds of the municipal charge and tax on gross receipts in the general fund of the city, and the same shall be used for general municipal purposes.
(Code 1956, § 52-207)

Sec. 150-1259. Penalties.

Any person liable for the taxes and charges provided for in this article who shall fail or refuse to pay the same shall be guilty of a misdemeanor and upon conviction thereof shall be punished by a fine of not more than $300.00 or imprisonment for not more than 90 days or both.
(Code 1956, § 52-208)

Sec. 150-1260. Revival of M.C.S., Ordinance Number 1,972.

Section 2 of M.C.S., Ordinance Number 14,211 is hereby repealed, and M.C.S., Ordinance Number 1,972 is hereby revived.
(M.C.S., Ord. No. 14,884, § 1, 11-26-91)

ARTICLE XIV. SHORT TERM RENTALS OCCUPANCY TAX

Sec. 150-1261. Tax levied.

There is hereby levied a tax upon the paid occupancy of short term rentals located within the City of New Orleans. The occupancy tax is levied at the rate of six and three-quarters percent of the rent or fee charged for such occupancy. The occupancy tax shall be in addition to all other taxes levied upon the occupancy of short term rentals in the city.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1262. Definitions.

Except as otherwise expressly provided in this article, the following terms and their variant forms shall mean the following:

Booking transaction means any contractual agreement relative to occupancy of a short term rental unit.

Guest means any person who occupies a dwelling unit pursuant to a short term rental.

Operator means a natural person who is required to possess a short term rental operator's permit pursuant to Article XI of Chapter 26 of the City Code.

Owner means a person who owns at least a 50 percent interest in a dwelling unit used for short term rentals and who is required to possess a short term rental owner permit pursuant to Article XI of Chapter 26 of the City Code.

Person means and shall have the same definition as that contained in R.S. 47:301(8).

Platform means one or more portals, listing services, or websites under common ownership or control through which a person, other than an owner of the short term rental unit, collects or receives a fee, directly or indirectly, for facilitating booking transactions. A platform shall not include a service that merely posts advertisements for short term rentals.

Short term rental means the use and enjoyment of a dwelling unit, or any portion thereof, as defined in section 26-614, by a guest or guests for a period of less than 30 consecutive days, in exchange for money, commodities, fruits, services, or other performances. Hotels, motels, bed and breakfasts, and other land uses explicitly defined and regulated separately from short term rentals are not considered to be short term rentals.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1263. When due and payable.

(a) Every guest or person who occupies a short term rental unit shall be responsible for the payment of the occupancy tax levied herein, which shall be due and payable at the time of payment in connection with a booking transaction, regardless if collected directly by the owner or on behalf of an owner by a platform.

(b) Except as provided in section 150-1264, an owner shall collect and shall timely remit to the department of finance all applicable local taxes and city fees owed in connection with any booking transaction, including without limitation the tax imposed by this article.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1264. Collection by a platform.

If payment in connection with a booking transaction is facilitated by or through a platform, the platform shall collect and timely remit to the department of finance all applicable local taxes and city fees owed in connection with the booking transaction, including without limitation the tax imposed by this article. The failure of a platform to properly collect and remit taxes as required by this section shall not relieve an owner of the obligation to pay taxes and fees owed in connection with the booking transaction, including without limitation the tax imposed by this article.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1265. Collection of excess tax prohibited.

Whoever advertises or collects a short term rental occupancy tax in excess of the tax actually due shall be guilty of a misdemeanor.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1266. Distribution of tax proceeds.

Except for a reasonable collection fee, if any, the proceeds of the tax shall be distributed as follows:

(a) Seventy-five percent of the proceeds shall be dedicated to the infrastructure maintenance fund, created pursuant to Ordinance No. 27,986 M.C.S. and codified at section 70-415.278, et seq. of the Code of the City of New Orleans.

(b) Twenty-five percent of the proceeds shall be allocated to New Orleans & Company

pursuant to a multi-year cooperative endeavor agreement approved by the city council and used to promote tourism in the city.

(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1267. Report and remittance.

(a) On or before the 20th day of each month, each platform responsible for remitting the short term rental occupancy tax imposed by this article shall remit all taxes and fees collected in connection with a short term rental unit during the previous month to the department of finance.

(b) On or before the 20th day of each month, each owner responsible for remitting the short term rental occupancy tax imposed by this article shall remit all taxes and fees collected in connection with a short term rental unit during the previous month to the department of finance.

(c) Such remittance shall be accompanied by a report on forms prepared by the department of finance that reasonably details the basis for calculating and collecting the remittance and reasonably enables the department to determine which portions of the remittance consist of the tax imposed by this article, short term rental fees, or other sales and uses taxes. Such reports must be accompanied by a certified check, post office or express money order, electronic payment, or cash for the amount of the tax due as indicated in the report.

(d) The tax report required by this section shall be signed by the person responsible for the remittance of the tax or a duly authorized representative. Such signature shall constitute a warranty that the report has been read, examined, and to the best of the person signing's knowledge and belief, the statement and figures therein contained are true, correct and complete.

(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1268. Inspections.

In order that the department of finance may have additional means of checking and verifying the accuracy of such reports, all the records, books, and other documents utilized to make such reports as required by the preceding section, shall be open for inspection by the department of finance at all reasonable hours for a period of four years commencing with the calendar year in which the tax becomes due and continuing for a period of the three subsequent consecutive calendar years thereafter. Submitted reports and correlating records shall be and shall remain confidential as required by state law.

(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1269. Penalties—Civil.

To further enforce the collection of the taxes due under this article independent of and in addition to the enforcement of the criminal penalties herein provided for under this section, the department of finance and/or the department of law are hereby vested with authority, on motion in court of competent jurisdiction, to invoke and include in a rule or summary proceeding against any person responsible for the remittance of the tax, including a platform, requiring them to show cause in not less than two or more than ten days after service thereof, exclusive of holidays, which matter may be tried out of term and in chambers, and shall always be tried by preference, why such person should not be enjoined and restrained from further pursuit of the business; and in case such rule is made absolute, the order thereon rendered shall be considered a judgment in favor of the city prohibiting, restraining, and enjoining from further pursuit of the business until such time as the delinquent tax, penalties, interest, attorney's fees, and costs due have been paid pursuant to section 150-702; and every violation of the injunction shall be considered as a contempt of court and punishable as such according to law.

(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

Sec. 150-1270. Penalties—Criminal.

(a) When any taxpayer fails to pay a tax or any portion thereof on or before the date prescribed for its payment, interest at the rate of 1¼ percent per month shall be added to the amount of tax due from the due date until paid. In addition to the interest that may be so due, there shall also be collected a penalty of five percent of the tax if the failure is for not more than 30 days

with an additional five percent for each additional 30 days or fraction thereof during which the failure continued.

(b) Any person responsible for the remittance of the tax shall be liable for attorney's fees in the amount of ten percent of the tax, interest, and penalty in all cases wherein an attorney is required to assist in the collection.

(c) Any person signing and filing a daily or monthly report subsequently found to be grossly incorrect, false, fraudulent, or in violation of any of the other provisions of this article, shall be, upon conviction, guilty of a misdemeanor.
(M.C.S., Ord. No. 28422, § 1, 8-6-20, eff. 9-1-20)

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Chapter 154

TRAFFIC AND VEHICLES*

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ARTICLE I. IN GENERAL

Sec. 154-1. Short title.

This chapter may be known and cited as "The Traffic Ordinance."
(Code 1956, § 38-1)

Sec. 154-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned vehicle on the highway means a vehicle that is determined, by the enforcing department, to be unused or unoccupied at the time of discovery and also to be causing a threat or hazard to public health and safety.

Abandoned vehicle on the street means a vehicle which for a period of at least five days following the date when the notice as set forth in this chapter has been affixed thereto, is or has been unused or unoccupied as such, or situated at the same location.

Alley, common, means property the use of which is common, but restricted to those owners of the lots abutting thereon who originally received the servitude in their title of use for such alley for the benefit of their lots.

Alley, public, means common property, to the use of which all the inhabitants of a city and even strangers are entitled in common, such as streets, public ways, quays and alleys.

Authorized emergency vehicle means vehicles of the fire department, police vehicles and such ambulances and emergency vehicles of municipal departments or public service corporations, as are designated or authorized by the superintendent of police.

Automated traffic enforcement system shall mean a system that:

(1) Consists of a digital still camera system and digital full motion video camera system installed to work in conjunction with an electronically operated traffic control signal, and

(2) Is capable of producing at least two recorded scene images and one image that depict the license plate attached to the rear of a motor vehicle that is not operated in compliance with the instructions of the traffic control signal or, in the case of a vehicle that violates the legal speed limit, is capable of producing at least one recorded scene image and one image that depicts the license plate attached to the rear of a motor vehicle.

Automated traffic enforcement system location ;means an intersection or segment of roadway towards which an automated traffic enforcement system is directed and in operation.

Axle means a common axis of rotation of one or more wheels, whether power-driven or freely rotating, and whether in one or more segments, and regardless of the number of wheels carried thereon.

Bicycle means every device upon which any person may ride, propelled exclusively by human power, having two tandem wheels, either of which is 16 inches or more in diameter, or three wheels, any of which is 20 inches or more in diameter.

Bicycle facility means any physical facility provided for the exclusive or semi-exclusive use of bicycles. This includes but is not limited to unmarked shared roadways, marked shared roadways, bicycle lanes, shared use trails, and end of trip facilities.

Bicycle lane means the part of the roadway adjacent to the travel lane, designated by official signs or markings for the preferential or exclusive use by bicycles and electric mobility aid users.

Bicycle parking means any facility for the storage of bicycles to protect against theft and damage.

Bicycle path or *trail* means a public way separated by open space, grade, or other physical barrier from motor traffic, either within the highway right-of-way or within an independent right-of-way, that is designated for use by persons riding bicycles.

Boulevard means a street with a neutral ground or median and a roadway on each side thereof.

Bus means every motor-propelled vehicle designed for carrying more than ten persons, other than a taxicab constructed and designed for transporting persons for commercial purposes.

Business district means the territory contiguous to and including a roadway, when within any 600 feet along such roadway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks, office buildings, railroad stations and public buildings which occupy at least 300 feet of frontage on one side or 300 feet collectively on both sides of the roadway.

Central business district means all streets and portions of streets within the area described as follows: All that area bounded by the river on the west, Claiborne Avenue on the east, Esplanade Avenue on the north and Howard Avenue on the south.

Chauffeur means every person who is employed by another for the principal purpose of driving a motor vehicle, and every person who drives a school bus transporting schoolchildren or any other motor vehicle when in use for the transportation of persons or property or property for compensation.

Combination of vehicles means every group of two vehicles howsoever joined together which are drawn or propelled by a single motor vehicle.

Commercial vehicle means every vehicle designed, maintained or used primarily for the transportation of property and used in commercial activity.

Controlled-access highway means every highway, street or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street or roadway.

Crosswalk means:

(1) That part of a roadway at an intersection included within the connections of the lateral lines of the sidewalks, shoulders, or a combination thereof on opposite sides of the highway measured from the curbs or, in absence of curbs, from the edges of the traversable roadway or if there is neither a sidewalk nor shoulder, a crosswalk is the portion of the roadway at an intersection that would be included within the prolongation of the lateral lines of the sidewalk, shoulder, or both on the opposite side of the street if there were a sidewalk or shoulder; or

(2) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Department means the department of public works, its successor, or an authorized representative as determined by the director of the department. As used in article XVII, department means the department of police.

Director means the director of the department of public works.

Divided highway means any highway divided into roadways by a median, physical barrier, or clearly indicated dividing section so constructed as to impede vehicular traffic.

Driver means every person who drives or is in actual physical control of a vehicle.

Electric scooter means any motorized propulsion device, with or without a seat, that weighs less than 100 pounds; that has handlebars; that is designed for outdoor use; and that operates at a maximum speed of 20 miles per hour on a paved level surface when powered solely by an electric motor. An electric scooter shall not be considered a motor-driven cycle, a motor vehicle, or a vehicle.

Electric-assisted bicycle shall mean every device upon which any person may ride, having two tandem wheels, either of which is 16 inches or more in diameter, or three wheels, any of which is 20 inches or more in diameter, equipped with

fully operable pedals and an electric motor of less than 750 watts that meets the requirements of one of the following classes:

(1) *"Class 1 electric-assisted bicycle"* shall mean an electric-assisted bicycle equipped with a motor that provides assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle reaches the speed of 20 miles per hour.

(2) *"Class 3 electric-assisted bicycle"* shall mean an electric-assisted bicycle equipped with a motor that provides assistance only when the rider is pedaling, and that ceases to provide assistance when the bicycle reaches the speed of 28 miles per hour.

Emergency ambulance means a vehicle designed with the equipment necessary to care for patients requiring nonambulatory transport. These vehicles must have public or commercial license plates, as well as the name and/or emblem of the department or company providing services.

Emergency ambulance parking zone means a space adjacent to a curb for the exclusive use of nonambulatory transport vehicle when treating or admitting patients to the hospital.

Enforcing department means the department of police, or any other duly authorized persons.

Equipment vehicle means a vehicle containing equipment which cannot be transported, but must be used to complete repair work. The vehicle must have a commercial or truck license plate and permanent markings on both sides of the vehicle bearing the name of the business in addition to a work slip, showing the name and address of the business, displayed in the windshield.

Explosives means any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities or packing that an ignition by fire, by friction, by concussion, by percussion or by detonation of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or of destroying life or limb.

Failure to appear is the intentional failure to comply with a previously issued a summons, citation, or court order directing a person to appear in the traffic court. A defendant has seven days from the issuance of a summons under this section to appear in court to show cause for the failure to appear.

Farm tractor means every motor vehicle designed and used primarily as a farm implement, for drawing plows, mowing machines, and other implements of husbandry.

Flammable liquid means any liquid which has a flashpoint of 70 degrees Fahrenheit or less, as determined by a Tagliabue or equivalent closed cup test device.

Freight-carrying vehicle means every motor vehicle designed for and used primarily as a carrier of freight, transported for commercial purposes, which vehicle is licensed for 6,000 pounds or more. This shall not include pickup or panel trucks unless they are so heavily loaded with such freight as to exceed 6,000 pounds gross weight, and shall never include any passenger-carrying vehicles.

Freight curb loading zone means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight or passengers.

Freight-handling and service truck zone means a space adjacent to a curb to be used by loading vehicles to facilitate the loading and unloading of merchandise and/or to be used for service and equipment vehicles to facilitate repair and service work.

Freight only or freight zone means a space adjacent to a curb to be used by loading vehicles to facilitate the loading and unloading of merchandise.

High-pressure pneumatic tire means a pneumatic tire designed for use and used when inflated with air to 120 pounds per square inch pressure or more.

Highway means the entire width between the boundary lines of every way or place of whatever nature publicly maintained and open to the use of the public for the purpose of vehicular travel, including bridges, causeways, tunnels and ferries; synonymous with the word "street". The term "highway" shall also mean any portion of the state or federal highway system that lies within the boundaries of the parish.

House trailer means:

(1) A trailer or semitrailer which is designed, constructed and equipped as a dwelling place, living abode or sleeping place, whether permanently or temporarily, and is equipped for use as a conveyance on highways; or

(2) A trailer or semitrailer whose chassis and exterior shell is designed and constructed for use as a house trailer, as defined in subsection (1) of this definition, but which is used instead permanently or temporarily for the advertising, sales, display or promotion of merchandise or services, or for any other commercial purpose except the transportation of property for hire or the transportation of property for distribution by a private carrier.

Intersection means:

(1) The area embraced within the prolongation or connection of the lateral curblines, or if none, then the lateral boundary lines of the roadways of two highways which join one another at, or approximately at, right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

(2) Where a highway includes two highways joining at any other angle may come in conflict.

(3) Where a highway includes two highways 30 feet or more apart, then every crossing of each highway of such divided highway by an intersecting highway shall be regarded as a separate intersection. If such intersecting highway also includes two highways 30 feet or more apart, then every crossing of two highways of such highways shall be regarded as a separate intersection.

(4) The junction of an alley or driveway with a street or highway shall not constitute an intersection unless the roadway or highway at said junction is controlled by a traffic control device.

(5) (a) Where a highway includes a stop line, yield line, or crosswalk that has not been designated on the roadway within the median between the separate intersections, the two intersections and the roadway median between them shall be considered as one intersection.

(b) Where a highway with a stop line, yield line, or crosswalk is designated on the roadway on the intersection approach, the area within the crosswalk or beyond the designated stop line or yield line shall be part of the intersection.

(c) Where a crosswalk is designated on a roadway on the departure from the intersection, the intersection shall include the area extending to the far side of such crosswalk.

Junked vehicle means a motor vehicle that has been so damaged, deteriorated, stripped, or dismantled as to be a total loss.

Laned roadway or highway means a roadway or highway which is divided into two or more clearly marked lanes for vehicular traffic.

Legal speed limit shall mean the established regulatory speed limit on the subject roadway section as prescribed in sections 154-531 through 154-543, and 154-546 of the Code of the City of New Orleans.

Light trailer means every vehicle of the trailer or semitrailer type having a loaded gross weight of not more than 500 pounds.

Loading vehicle means a vehicle whose primary purpose is the transport of merchandise. The vehicle must have a commercial or truck license

plate and permanent (nonmagnetic) markings on both sides of the vehicle bearing the name of the business.

Loading zone means a space adjacent to a curb to be used by loading vehicles to facilitate the loading and unloading of merchandise.

Low-pressure pneumatic tire means a pneumatic tire designed for use and used when inflated with air to less than 120 pounds per square inch pressure.

Mardi Gras traffic plan means the restriction of vehicular traffic in the Vieux Carré during the Mardi Gras season, as set forth by the superintendent of police.

Metal tire means every tire, the surface of which is in contact with the highway, which is wholly or partly of metal or other hard, nonresilient material.

Metered space means any parking space the use or occupancy of which is regulated by either a multispace pay station or a single/double space parking meter.

Mobility aid means a device used by individuals to ambulate independently and that is human or electric powered and used in- or outdoors.

Motor vehicle means every vehicle which is self-propelled, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails, but excluding a motorized bicycle. "Motor vehicle" shall also include a "low-speed vehicle" which is a four-wheeled, electric-powered vehicle with a maximum speed of not less than 20 miles per hour but not more than 25 miles per hour and is equipped with the minimum motor vehicle equipment appropriate for vehicle safety as required in 49 C.F.R. 571.500.

Motorcycle means every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor and excluding a motorized bicycle.

Motor-driven cycle means every motorcycle, including every motor scooter, with a motor of not to exceed five horsepower.

Motorized bicycle means a pedal bicycle which may be propelled by human power or helper motor, or by both, with a motor rated no more than one and one-half brake horsepower, a cylinder capacity not exceeding 50 cubic centimeters, an automatic transmission, and which produces a maximum design speed of no more than 25 miles per hour on a flat surface.

Multiple-lane highway means any highway with two or more clearly marked lanes for traffic in each direction.

Multispace pay station means a device or devices installed by the city or its representative designed to regulate one or more legal parking spaces, on one side of the street for a specific city block, by having the user of the space deposit a specified payment for the use of the space for a specific amount of time.

Negligence, criminal, exists when, although neither specific nor general criminal intent is present, there is such disregard of the interests of others that the offender's conduct amounts to a gross deviation below the standard of care expected to be maintained by a reasonably careful manner under like circumstances.

Neutral ground or *median* means, on a street having two or more roadways, that portion of the street between any two roadways, including those streets where the roadways are separated by a canal or drainage ditch.

No parking zone means a space adjacent to a curb when parking is prohibited. Stopping, including the receiving or discharging of passengers, is permitted.

Official time standard, whenever certain hours are named, means standard time or daylight saving time as may be in current use in this city.

Operator means every person other than a chauffeur who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed or pushed.

Owner means a person who holds the legal title to a vehicle, or in the event a vehicle is the subject of an agreement for the conditional sale, lease, or transfer or possession thereof which the

right of purchase upon the performance of the conditions stated in the agreement, with the right of immediate possession in the vendee, lessee, possessor, or if such similar transaction is had by means of mortgage and the mortgagor or a vehicle is entitled to possession, then the conditional vendee, lessee, possessor or mortgagor shall be deemed the owner for the purpose of this chapter.

Park or *parking* means the standing of a vehicle, whether occupied or not, other than temporarily, for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

Parking lane means that lane of traffic immediately adjacent to the curb where parking is not prohibited.

Passenger zone means a place adjacent to a curb reserved for the exclusive use of vehicle during the loading or unloading of passengers.

Pedestrian means any person afoot or utilizing a mobility aid.

Personal delivery device means a powered device that travels at the speed of 20 miles per hour or less; is less than 500 pounds, excluding cargo; is manufactured for transporting cargo and goods in a pedestrian area or supplementary areas; and is equipped with automated driving technology, including software and hardware, that enables the operation of the device with the remote support and supervision of a human being.

Pneumatic tire means every tire in which compressed air is designed to support the load.

Principal means all persons concerned in the commission of a violation of a city ordinance of the city, whether present or absent and whether they directly commit the act constituting the offense, aid and abet in its commission, or directly or indirectly counsel or procure another to commit a crime are principals and may be held responsible for the violation of any police ordinance of the city and penalized as provided by such ordinance.

Private road or driveway means every way or place in private ownership used for vehicular travel by the owner and those having express or implied permission from the owner, but not by others.

Public holiday includes the following: New Year's Day, Martin Luther King Jr.'s Day, Mardi Gras Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, and Christmas Day.

Public self-service bicycle rental service means a system managed by the city, and operated by others under a contract with the city, which provides the public with opportunities to rent bicycles from a network of stations at locations on public property including areas of the right-of-way, or private property.

Public self-service bicycle rental station means a facility constructed as a part of a public self-service bicycle rental service where bicycles are made available for rental without employees or attendants being required to take payments from customers, rent bicycles to customers or receive bicycles from customers when the bicycles are returned from rental, which station may include a kiosk and storage.

Railroad means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad sign or signal means any sign, signal or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

Railroad train means a steam engine, electric or other motor-propelled vehicle with or without cars coupled thereto, operated upon rails, except streetcars.

Recorded image means an image recorded by an automated traffic enforcement system that depicts the rear of a motor vehicle and is automatically recorded on a photographic or digital image. The recorded image must be clear so that there is no dispute to the accuracy of the reflected image necessary to identify the violating vehicle.

Regulated parking space means any parking space the use or occupancy of which is regulated

by a multispace pay station, a single/double space parking meter, by signage or by any other means allowed by law or custom.

Residence district means the territory contiguous to a highway, not comprising a business district, when the frontage in such a highway for a distance of 300 feet or more is mainly occupied by dwellings and/or by dwellings and buildings in use for business.

Right-of-way means the right of one vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed and proximity as to give rise to danger of collision unless one grants precedence to the other.

Road tractor means every motor vehicle designed, constructed or used either by itself or for drawing other vehicles used in the construction and maintenance of roads, highways or streets, and not so constructed as to carry any load thereon either independently or as a part of the weight of a vehicle or load so drawn.

Roadway means that portion of a highway improved, designed, or ordinarily used for vehicular traffic, exclusive of the berm or shoulder. A divided highway has two or more roadways.

Rotary traffic island means any circular area of ground, surrounded by a highway or roadway which is designed to prevent the crossing of traffic on four or more otherwise intersecting highways, in order to require all traffic approaching it to proceed from some distance around a portion of the island before entering one of the intersecting highways and to prevent left-hand turns onto such otherwise intersecting highways.

Safety zones means the area of space officially set apart within a highway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

School bus means every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school, or privately owned and operated for compensation for the transportation of children to and from school.

Semitrailer means every single vehicle without motive power designed for carrying property and passengers and so designed in conjunction and used with a motor vehicle that some part of its own weight and that of its own load rests or is carried by another vehicle, and having one carrying axle.

Service vehicle means a vehicle carrying the tools and equipment necessary to successfully complete repair and service work. The vehicle must have a commercial or truck license plate and permanent nonmagnetic markings on both sides of the vehicle bearing the name of the business in addition to a work slip, showing the name and address of the business, displayed in the windshield.

Service zones means a space adjacent to a curb to be used for service and equipment vehicles to facilitate repair and service work.

Shared use trail means a public way separated by open space, grade, or other physical barrier from motor traffic, either within the highway right-of-way or within an independent right-of-way, that is designated for use by pedestrians, mobility aid users, and persons riding bicycles.

Shoulder means the portion of the highway contiguous with the roadway for accommodation of stopped vehicles, for emergency use, pedestrian use, mobility aid use, bicycle use, and for lateral support of base and surface.

Sidewalk means that portion of a highway between the curblines, or the lateral lines of a highway and the adjacent property lines, intended for the use of pedestrians.

Single/double space parking meter means a device or devices installed by the city or its representative designed to regulate one or two designated legal parking spaces by having the user of the designated space deposit a specified payment for use of the space for a specified amount of time.

Stand or *standing* means the halting of a vehicle, whether occupied or not, other than temporarily for the purpose of and while actually engaged in receiving or discharging passengers.

State-maintained highway means any highway in this state which is contained in the state highway system as maintained by the department of highways.

Stop, when required, means the complete cessation from movement.

Stopping means, when prohibited, any halting, even momentarily, of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Storage lane means that portion of the roadway constructed to allow vehicles to turn from their direction of travel.

Street means the entire width between the boundary lines of every way or place of whatever nature publicly maintained and open to the use of the public for the purpose of vehicular travel, including bridges, causeways, tunnels, and ferries; synonymous with the word "highway."

Streetcar means a car other than railroad train for transporting persons or property and operated upon rails.

Tandem axle means any two consecutive axles whose centers are more than 40 inches but not more than 96 inches apart, and are individually attached to and/or articulated from a common attachment to the vehicle, including a connecting mechanism designed to equalize the load between axles.

Tandem truck means every motor-propelled single vehicle designed for the conveyance of property or things for hauling purposes and having one front or steering axle and two rear or load-carrying axles, even though one of the load-carrying axles is not permanently affixed to the frame of the vehicle, and may be removed.

Through street means every highway or portion thereof on which vehicular traffic is given preferential right-of-way, and at the entrances to which vehicular traffic from intersecting highways or streets is required by law to yield right-of-way to vehicles on such through highways or streets in obedience to either a stop sign or a yield sign when such signs are erected, as provided in this chapter.

Total loss means the cost to repair a damaged, deteriorated, or dismantled motor vehicle exceeds the book value for such vehicle as determined by a recognized national appraisal service.

Trackless trolley coach means every motor vehicle which is propelled by electric power obtained from overhead trolley wires but not operated upon rails.

Traffic means pedestrians, ridden or herded animals, vehicles, streetcars and other conveyances either singly or together while using any street for purposes of travel.

Traffic accident report means the report filled out on a form furnished by the city, by either the police department or the persons involved as required by law, or each traffic accident which may occur in the city.

Traffic bureau is the traffic bureau of the department of police of the city or, if a traffic bureau is not established, then such term whenever used in this chapter shall be deemed to refer to the department of police of the city.

Traffic control devices means all signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction for the purpose of regulating, warning or guiding traffic.

Traffic control signal shall mean an electronically operated traffic signal by which traffic is alternately directed to stop and permitted to proceed by the use of red, amber and green lights, arrows or their equivalents.

Trailer means every single vehicle without motive power designed for carrying property or passengers wholly on its own structure, drawn by a motor vehicle, and having two or more load-carrying axles.

Tridum axle means any three consecutive axles whose centers are more than 40 inches but

not more than 96 inches apart, and are individually attached to and/or articulated from a common attachment to the vehicle, including a connecting mechanism designed to equalize the load between axles.

Truck means every motor-propelled single vehicle for the conveyance of property or things for hauling purposes and having one front steering axle and one rear or load-carrying axle.

Truck tractor means every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

Valet parking is defined as a service provided by a business in which an individual is assigned to park vehicles for customers in an off-street parking area.

Vehicle means every device by which persons or things may be transported upon a public street, highway or bridge, excepting devices moved by human power or used exclusively upon stationary rails of tracks. A bicycle or a ridden animal shall be a vehicle, and a trailer or semitrailer shall be a separate vehicle.

Vehicle owner means the actual owner of the vehicle as shown on the motor vehicle registration records maintained by the Louisiana Department of Public Safety, Office of Motor Vehicles, or the analogous department or agency of another state or country.

Width means the total outside transverse dimension of a vehicle, including any load-holding devices thereon, but excluding approved safety devices and tire bulge due to load.

Wrecked by accident means a vehicle reported in an accident that has not been removed within 24 hours from time of accident.

(Code 1956, § 38-17; M.C.S., Ord. No. 19,335, § 1, 9-2-99; M.C.S., Ord. No. 19,356, § 1, 9-2-99; M.C.S., Ord. No. 22035, § 2, 8-4-05; M.C.S., Ord. No. 22526, § 1, 2-15-07; M.C.S., Ord. No. 22978, § 1, 1-24-08; M.C.S., Ord. No. 2129, § 1, 6-19-08; M.C.S., Ord. No. 024193, § 1, 11-4-10; M.C.S., Ord. No. 27365, § 1, 4-20-17; M.C.S., Ord. No. 27596, § 1, 11-16-17; M.C.S., Ord. No. 28180, § 1, 9-5-19; M.C.S., Ord. No. 29169, § 2, 10-6-22; M.C.S., Ord. No. 29245, § 1, 11-3-22, eff. 5-1-23; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Cross reference—Definitions generally, § 1-2.

State law reference—Definitions, R.S. 32:1.

Sec. 154-3. Use of coasters, roller skates and similar devices restricted.

No person upon roller skates or riding in or by means of any coaster, toy vehicle or similar device or hand-propelled vehicle shall go upon any roadway except while crossing a street on a crosswalk and when so crossing such person shall be granted all the rights and shall be subject to all of the duties applicable to pedestrians.

(Code 1956, § 38-127)

Sec. 154-4. Clinging to moving vehicles.

No person riding upon any bicycle, coaster, sled, roller skates or vehicle shall attach it or himself to any streetcar or moving vehicle upon any roadway.

(Code 1956, § 38-128)

Sec. 154-5. Persons boarding or alighting from streetcars, buses, vehicles.

No person shall board or alight from any streetcar or bus or vehicle while such streetcar, bus, or vehicle is in motion.

(Code 1956, § 38-135)

Sec. 154-6. Passengers riding on prohibited portions of vehicles.

No person shall ride on any streetcar or vehicle upon any portion thereof not designed or intended for the use of passengers. This provision shall not apply to employees engaged in the necessary discharge of a duty or to persons riding within truck bodies in space intended for merchandise.

(Code 1956, § 38-136)

State law reference—Riding on prohibited portions of vehicles, R.S. 32:284.

Sec. 154-7. Persons propelling pushcarts, riding animals or operating streetcars to obey traffic regulations.

Every person propelling any pushcart or riding any animal upon a roadway and every person driving any animal-drawn vehicle, and the operator of every streetcar, shall be subject to the provisions of this chapter applicable to the driver of any vehicle except those, which by their very nature, can have no application.
(Code 1956, § 38-20)

State law reference—Persons riding animals or driving animal-drawn vehicles, R.S. 32:22.

Sec. 154-8. Horses and cattle; riding or driving on neutral grounds or squares prohibited.

It shall be unlawful for any person to ride on horseback, to drive any horse or to turn out any cattle, or in any manner to exercise them in the center or neutral ground of any street or any public square.
(Code 1956, § 38-115)

Sec. 154-9. Fraudulent marking of vehicles.

It shall be unlawful for any person to use the words "Consular Corps" or "Diplomatic Service" on any automobile or other vehicles operating on the streets of this city unless such automobiles or other vehicles are owned by the consulates of various nations or are the personal property of consuls or vice-consuls duly accredited as such to the United States of America by their countries and having exequaturs from their governments to the United States government.
(Code 1956, § 38-139)

Sec. 154-10. Public employees to obey the traffic regulations.

The provisions of this chapter shall apply to the driver of any vehicle owned or used in the services of the United States government, the state, parish or city. It shall be unlawful for such driver to violate any of the provisions of this article except as otherwise permitted in this chapter or by state statute.
(Code 1956, § 38-19)

Sec. 154-11. Exemptions to authorized emergency vehicles.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call, or when in pursuit of an actual or suspected violator of the law, or when responding to, but not upon returning from, a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

(b) The driver of an authorized emergency vehicle may:

(1) Park or stand irrespective of the provisions of this chapter;

(2) Proceed past a red or stop signal or stop sign, but only after slowing down or stopping as may be necessary for safe operation;

(3) Exceed the stated speed limit so long as he does not endanger life or property;

(4) Disregard regulations governing the direction of movement or turning in specified directions.

(c) The exceptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of audible or visual signals sufficient to warn motorists of their approach, except that a police vehicle need not be equipped with or display a red light visible from the front of the vehicle.

(d) The foregoing provision shall not relieve the driver of an authorized vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provision protect the driver from the consequences of his reckless disregard for the safety of others.
(Code 1956, § 38-21)

State law references—Emergency vehicles; exceptions, R.S. 32:24.

Sec. 154-12. Motor vehicle transaction fee.

(a) A motor vehicle transaction fee not to exceed $4.00 is levied upon each service or transaction carried out by the office of motor vehicles provided that this fee is effective when the lease between the City of New Orleans and the landlord of the facility housing the motor vehicles commissioner has been signed and is due and payable at the time the service or transaction is carried out and is to be collected by the office of motor vehicles on behalf of the City of New Orleans pursuant to an agreement executed by and between the motor vehicle commissioner and the mayor.

(b) The mayor is hereby authorized to sign an agreement with the motor vehicle commissioner to provide for the collection of the motor vehicle transaction fee by the office of motor vehicles.
(M.C.S., Ord. No. 16,447, 4-21-94; M.C.S., Ord. No. 18,234, § 1, 5-15-97; M.C.S., Ord. No. 24813, § 1, 4-5-12; M.C.S., Ord. No. 25305, § 1, 5-2-13)

Sec. 154-13. Personal delivery devices prohibited.

In the interest of public safety and in accordance with La. R.S. 32:210.6, personal delivery devices are hereby prohibited on the public right-of-way throughout the city. Any device that is improperly operating on the right-of-way is deemed an encumbrance or obstruction pursuant to section 146-493, and subject to immediate removal by the department of police. The city shall hold unclaimed, unidentified, or abandoned personal delivery devices for a period of up to 45 days. Thereafter, the city may assess storage fees at a rate of up to $100.00 per day or dispose of such personal delivery devices as permitted by law.
(M.C.S., Ord. No. 29245, § 1, 11-3-22, eff. 5-1-23; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-14. Exception.

(a) Nothing in this chapter shall prohibit public or private universities or colleges from operating personal delivery devices within the contiguous boundaries of their respective campuses.

(b) When public rights-of-way are within otherwise contiguous boundaries of a university or college campus and the university or college wishes to operate personal delivery devices along or across these rights-of-way, the university or college shall enter into a cooperative endeavor agreement with the City of New Orleans defining the campus boundaries, operations and responsibilities of the university or college.

(c) Any personal delivery devices operating on university or college campuses shall operate pursuant to La. R.S. 32:210 et seq.

(d) Each university or college shall be solely responsible for the use and storage of personal delivery devices.
(M.C.S., Ord. No. 29245, § 1, 11-3-22, eff. 5-1-23)

Secs. 154-15—154-50. Reserved.

ARTICLE II. ADMINISTRATION*

Sec. 154-51. Traffic bureau—Establishment, duties.

(a) There is hereby established in the department of police of the city, a traffic bureau to be under the control of an officer of the police.

(b) The traffic bureau, with such aid as may be rendered by other members of the department of police, are responsible for:

(1) Enforcing the street traffic regulations of the city and all of the state vehicle laws applicable to street traffic in the city;

(2) Investigating traffic accidents;

(3) Co-operating with the city traffic engineer and other officers of the city in the administration of the traffic laws and in developing ways and means to improve traffic conditions; and

(4) Carrying out those duties specially imposed upon the bureau by this chapter.
(Code 1956, § 38-10; M.C.S., Ord. No. 27816, § 1, 7-26-18)

*__Cross reference—__Administration, ch. 2.

Sec. 154-52. Same—Investigate accidents and conduct accident studies, analyses and evaluations.

(a) The traffic bureau, assisted by other police officers of the department of police, shall investigate traffic accidents and arrest and assist in the prosecution of those persons charged with violations of law causing or contributing to such accidents.

(b) There shall be established in the traffic bureau's alcoholic and accident research unit a statistical office which should be directed by an evaluation specialist with at least a master's degree in urban studies or a related field or equivalent qualifications as determined by the civil service commission, whose primary duties will be to:

(1) Conduct accident studies, analyses and evaluations with the assistance of the traffic engineer and other traffic related agencies, and determine remedial measures.

(2) Coordinate and exchange traffic statistics and related information with other public and private agencies.

(3) Seek funding for traffic related activities and coordinate these activities with other agencies.

(Code 1956, § 38-11)

Sec. 154-53. Same—Annual traffic safety record.

The traffic bureau shall annually prepare a traffic report which shall be filed with the mayor. Such report shall contain information on traffic matters in the city as follows:

(1) The number of traffic accidents, the number of persons killed, the number of persons injured and other pertinent traffic accident data;

(2) The number of traffic accidents investigated and other pertinent traffic accident data on the safety activities of the police; and

(3) The plans and recommendations of the bureau for future traffic safety activities.

(Code 1956, § 38-14)

Sec. 154-54. Records of traffic violations and traffic accident reports.

(a) The department of police and/or the traffic court shall keep a record of all violations of traffic ordinances of the city or state vehicle laws of which any person has been charged together with a record of the final disposition of all such alleged offenses. Such records shall be so maintained as to show all types of violations and the total of each. The records shall accumulate during at least a five-year period and from that time on the records shall be maintained complete for at least the most recent five-year period.

(b) All forms for records of violations and notices of violations shall be serially numbered. For each month and year a written record shall be kept available to the public showing the disposal of such forms.

(c) All such records and reports shall be public records.

(d) The department of police shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by location. Such reports shall be available for the use and information of the city traffic engineer. The department of police shall receive and properly file all accident reports made to it under the state law or under any law of the city, and all such accident reports shall be for the use of the department of police, the city traffic engineer, and traffic court prosecutors.

(Code 1956, § 38-12)

Sec. 154-55. Drivers' files to be maintained.

(a) The department of police and/or the traffic court shall maintain a suitable record of all traffic accidents, arrests, convictions and affidavits which shall be filed alphabetically under the name of the driver concerned.

(b) Such records shall accumulate during at least a five-year period and from that time on such records shall be maintained complete for at least the most recent five-year period.
(Code 1956, § 38-13)

Sec. 154-56. Division of city traffic engineering and duties thereof.

(a) There is hereby created and established within the department of public works, under the supervision and direction of the director thereof, a division to be known and designated as the division of traffic engineering. The city traffic engineer shall be head of this division and shall be appointed by the director of the department of public works in accordance with civil service law. He shall be a graduate engineer and duly registered under the state.

(b) The city traffic engineer shall exercise such powers and duties as are provided in this chapter or in state laws. In particular, the city traffic engineer shall:

(1) Determine the installation and proper timing and maintenance of traffic control devices;

(2) Conduct engineering analyses of traffic accidents and devise remedial measures;

(3) Conduct engineering investigations of traffic conditions;

(4) Determine the locations of loading zones, metered spaces and designate all other on-street parking spaces;

(5) Cooperate with other city officials in ways and means to improve traffic and parking conditions; and

(6) Carry out additional powers and duties imposed upon him by laws of the city.

(Code 1956, § 38-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-57. Emergency and experimental regulations.

(a) The city traffic engineer may make regulations necessary to make effective the provisions of this article and make temporary or experimental regulations to cover emergencies or special conditions. He may further test traffic control devices under actual conditions of traffic.

(b) The superintendent of police may make regulations necessary to make effective the provisions of the traffic laws of the city and make and enforce temporary or experimental regulations to cover emergencies or special conditions.

(c) No emergency experimental regulations shall remain in effect for more than 190 days.

(d) The superintendent of police shall have the authority to suspend any traffic regulations for a period not to exceed 24 hours. Official notice of any such suspension shall be given through the police communications system. Such notification shall specify the geographic areas affected and exact regulations suspended, and shall further specify the emergency regulations (if any) which will replace such suspended regulations.
(Code 1956, § 38-16)

Sec. 154-58. Power, authority of police and fire department officials.

(a) The officers of the department of police or such officers as are assigned by the superintendent of police to do so shall enforce all street ordinances of the city and all of the state vehicle and traffic laws applicable to street traffic in the city. Officers of the department or such officers as are assigned may direct all traffic by voice, hand or signal in conformance with traffic laws and in the event of a fire or other emergency or to expedite traffic or safeguard pedestrians, such officers may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

(b) Officers of the fire department, when entering or leaving a fire station, or when at a scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.

(c) It is a violation of this chapter for any person to do any act forbidden or to fail to perform any act required herein.

(d) No person shall willfully fail or refuse to comply with any lawful order or direction of a police officer or fire department official.
(Code 1956, § 38-18)

State law reference—Authority of other law enforcement officers, R.S. 32:5.

Secs. 154-59—154-100. Reserved.

ARTICLE III. TRAFFIC COURT OF NEW ORLEANS*

DIVISION 1. GENERALLY

Sec. 154-101. Creation.

The traffic court will consist of four judges appointed, selected, and qualified under article VII, section 94 of the Louisiana Constitution, the enabling ordinances enacted by the city council, and the duly elected successors of such judges, and such other judges who may be created and authorized under the state constitution.
(Code 1956, § 38-2)

State law reference—Election of judges, R.S. 13:2501.1.

Sec. 154-102. Jurisdiction; rules.

(a) The jurisdiction of the traffic court shall extend to the trial of offenses against the ordinances of the city regulating traffic upon the public streets of the city and such other jurisdiction as may be hereafter conferred upon it by the state constitution.

(b) The court shall further have the power to adopt such rules and regulations governing the operation thereof as may be necessary for the proper functioning of the court.
(Code 1956, § 38-3)

State law reference—Jurisdiction, R.S. 13:2501.1(F).

Sec. 154-103. Salaries of traffic court judges.

The city shall pay a salary in the amount of $53,500.00 per annum to each traffic court judge except the administrative judge; provided, however, that the salary specified herein shall be payable only to elected judges and not to ad hoc judges. Such salary shall be in addition to any compensation paid by the state under applicable state law.
(Code 1956, § 38-2.1; Ord. No. 20,372, § 1, 9-20-01)

State law reference—Salaries of judges, R.S. 13:2501.1(E).

Sec. 154-104. Clerk.

There shall be one clerk of the traffic court who shall be appointed by the judges thereof, and shall be subject to removal by the concurrence of the judges of the same court at will. The salary of the clerk shall be the same as that provided for the clerk of the municipal court, and he shall adopt such rules and regulations governing the functions, duties, operations and procedures of the clerk's office as may be necessary.
(Code 1956, § 38-4)

State law reference—Clerk of traffic court, R.S. 13:2501.1(H).

Sec. 154-105. Minute clerk and stenographer.

Each of the judges of the traffic court shall have the right to appoint his own minute clerk and stenographer, and the clerk of the traffic court shall appoint such deputies, assistants and employees as the legislature may provide, in accordance with the classified civil service regulations for the city.
(Code 1956, § 38-5)

State law references—Personnel appointed by judges, R.S. 13:2501.1(I); personnel appointed by clerk of the traffic court, R.S. 13:2505.

Sec. 154-106. Traffic prosecutor.

There shall be one assistant city attorney assigned to each section of the traffic court presently operating to prosecute traffic cases. Upon creation of any new traffic judgeships, the city attorney shall assign an additional assistant to prosecute in such additional court. Such assistant shall have the authority under existing

*__Cross references—__Courts, ch. 50; procedures on appeal applicable to the traffic court of New Orleans, § 50-148.

State law reference—Traffic Court of New Orleans, R.S. 13:2501.1 et seq.

statutes to file affidavits charging traffic offenders on information and belief, and may also enter nolle prosequies of traffic offenders.
(Code 1956, § 38-6)

State law reference—Initiation of proceedings, R.S. 13:2512.

Secs. 154-107—154-135. Reserved.

DIVISION 2. PROCEDURE

Sec. 154-136. Citation for certain traffic violations; arrest for certain traffic violations, possession of license; notification to vehicle owner; and surrender of license.

(a) In the enforcement of street traffic regulations, as permitted by law, an arrest is not required for street traffic violations if the person lawfully possesses a driver's license issued to him by either:

(1) The department of public safety and corrections; or

(2) The appropriate agency of another state if such person resides in this state and either is:

a. On active duty with the armed forces of the United States;

b. A dependent of any person described in subsection (a) above; or

c. Enrolled in a state college or university;

In these instances, a citation (summons and release) is the appropriate mechanism if the operator signs the citation as a guarantee that he/she will appear in court in lieu of physical arrest. This subsection does not apply when the officer has probable cause to believe that the operator has committed an offense as defined in title 14 of the Louisiana Revised Statutes of 1950, including but not limited to: driving while intoxicated, reckless operation of a vehicle, and hit and run driving. In these instances, the operator shall be arrested as required by law.

(b) A licensee shall have his license in his immediate possession at all times when driving a motor vehicle and shall display it upon demand of any officer or agent of the department or any police officer of the city.

(c) When a person is arrested for a violation of R.S. 14:98, [DWI] the arresting officer shall determine whether the person is the owner of the vehicle used. If the person is not the owner, the arresting officer, his agency of employment, or the department of public safety and corrections shall take all reasonable measures to identify and locate the registered owner and notify him of the arrest. Such notification may be oral or written. A record shall be kept of whether or not such notification was given.

(d) When a fine is levied against a person convicted of any offense as described in subsection (a) of this section, and the defendant is granted an extension of time to pay the fine, the judge of the court having jurisdiction may order the driver's license to be surrendered to the official of the court collecting fines for a period of time not to exceed 180 days. If, after expiration of 180 days, the defendant has not paid the fine, the official of the court designated to collect fines shall forward the license to the department of public safety and corrections. Upon receipt of a surrendered driver's license, the court official responsible for collection of such fines shall issue a temporary permit for a period not to exceed 180 days or for a period of time set forth by the judge having jurisdiction. The department shall not return, reissue, or renew a driver's license in its possession pursuant to this section until payment of the fine and any additional administrative cost, fee, or penalty required by the judge having the jurisdiction and any other cost, fee, or penalty required by the department.
(Code 1956, § 38-23; M.C.S., Ord. No. 27816, § 1, 7-26-18)

State law reference—Procedure upon arrest, R.S. 32:411.

Sec. 154-137. Drivers licensed by certain other states.

(a) A driver licensed by a state of the United States cited for violation of any law, ordinance, rule or regulation relating to the operation or actual physical control of a motor vehicle shall be

permitted to remain at liberty and proceed about his business without being required to furnish bond if:

(1) He furnishes the officer or court issuing the citation with a written promise to comply and his driver's license, for which he shall receive a receipt and which license shall be returned to him upon compliance.

(2) The charge or charges are not based on alleged acts or omissions constituting one or more of the following:

a. Homicide resulting from the operation of a motor vehicle.

b. Driving a motor vehicle while under the influence of intoxicating liquor, narcotic drug or under the influence of any other drug to a degree which renders the driver incapable of safely driving a motor vehicle.

c. A felony in the commission of which a motor vehicle is used.

d. Failure to stop or render aid in the event of a motor vehicle accident resulting in the death or personal injury of another or damage to property.

e. Driving a motor vehicle without a license or while the license is under suspension or revocation.

(3) Pursuant to law, the driver is not taken forthwith before an appropriate court, and the charge or charges or violation adjudicated without adjournment or continuance.

(b) The violating driver shall have the option of remaining in custody pending her or his furnishing bail as fixed by the judges of the traffic court, or depositing her or his operator's license with the officer under the conditions contained in paragraph (a) of this section and signing a citation, summons, or other written notice agreeing to appear within five days after the violation, in which case the driver shall be permitted to remain at liberty and proceed about her or his business.

(c) Notwithstanding any provision to the contrary, however, the driver may demand an immediate hearing or a hearing within 24 hours, at a convenient hour, before a judge of the traffic court. If the driver opts to surrender her or his operator's license, the officer shall deliver to her or him a receipt or duplicated copy of the citation, summons or other written notice, which shall become a permit to continue driving on the streets of the city. The officer shall deposit the citation with the clerk of the traffic court.

(d) Upon the failure of a driver from a state covered by the provisions of this section to fulfill a promise to comply, the traffic court shall issue or obtain a warrant for arrest of the driver and shall inform the licensing authority in the state where the driver is licensed that the warrant is outstanding and that the driver's license is in the possession of the traffic court. The communication of the court to the licensing authority shall be in writing and shall be accompanied by a certified copy of the citation and promise to comply.

(e) This section does not apply when the office charging the driver has probable cause to believe that the person charged has committed an offense as defined in title 14 of the Louisiana Revised Statutes of 1950. The arresting officer shall take these persons forthwith before the nearest or most accessible magistrate having jurisdiction.
(Code 1956, § 38-24; M.C.S., Ord. No. 17,128, § 1, 7-20-95)

Sec. 154-138. Procedure in traffic court.

The trials and all procedure in all cases within the jurisdiction of the traffic court shall be the same as now in effect governing the municipal court, except as further amended by the provisions of this division which shall apply to both municipal and traffic courts.
(Code 1956, § 38-30)

State law reference—Conduct of trials, R.S. 13:2513.

Sec. 154-139. Responsive verdicts.

An offender who commits an offense which includes all elements of other lesser offenses may be prosecuted for and convicted of either the greater offense or one of the lesser and included

offenses. In such case where the offender is prosecuted for the greater offense, he may be convicted of any one of the lesser and included offenses.
(Code 1956, § 38-31)

State law reference—Conduct of trials, R.S. 13:2513.

Sec. 154-140. Parties defendant.

All persons concerned in the commission of a violation of a city ordinance, whether present or absent, and whether they directly commit the act constituting the offense, aid and abet in its commission, or directly or indirectly counsel or procure another to commit a crime are principals and may be held responsible for the violation of any police ordinance of this city and penalized as provided by such ordinance.
(Code 1956, § 38-32)

State law reference—Conduct of trials, R.S. 13:2513.

Sec. 154-141. Attempts and penalties therefor.

(a) Any person who, having a specific intent to commit a crime, does or omits an act for the purpose of, and aiming directly toward the accomplishment of his objective, is guilty of an attempt to commit the offense intended; and it shall be immaterial whether, under the circumstances, he would have actually accomplished his purpose.

(b) An attempt is a separate but lesser grade of the intended crime; and any person may be convicted of an attempt to commit a crime although it appears on the trial that the crime intended or attempted was actually perpetrated by such person in pursuance of such attempt.

(c) Whoever attempts to violate a police ordinance of the city shall, upon conviction, be fined or imprisoned, or both, in the same manner as for the offense committed; but such fine or imprisonment shall not exceed one-half of the largest fine or one-half of the longest term of imprisonment prescribed for the offense so intended.
(Code 1956, § 38-33)

State law reference—Conduct of trials, R.S. 13:2513.

Sec. 154-142. Initiation of proceedings by affidavits in municipal and traffic courts.

All proceedings in the municipal and traffic courts shall be initiated by affidavit, which shall consist of the sworn statement of the complainant, police officer, or employee of the department of police authorized to issue parking violations notices, filed with the court on a form provided by the respective court. The city attorney's office may also initiate prosecutions by affidavit on information and belief in the municipal and traffic courts.
(Code 1956, § 38-34; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

State law reference—Initiation of proceedings, R.S. 13:2512.

Sec. 154-143. Conduct of trials; rules of evidence; prescription.

The trial of all cases in the municipal and traffic courts, and the rules of evidence applicable thereto, shall be the same as govern the trials of misdemeanors under title 15 of the Louisiana Revised Statutes of 1950, and under the Louisiana Code of Criminal Procedure, as they presently exist or as they may be hereinafter amended. No person shall be prosecuted, tried, or punished for an offense committed in violation of the traffic ordinance unless the prosecution is instituted within two years after the offense has been committed. This prescriptive period shall include all offenses chargeable under the traffic ordinance, including parking offenses.
(Code 1956, § 38-35)

State law references—Similar provisions, R.S. 13:2513; limitation of prosecution of noncapital offenses, C.Cr.P. art. 572.

Sec. 154-144. Procedure on appeal.

There shall be a right of appeal in all cases from the traffic court to the criminal district court for the parish. All procedures now provided for in this Code relative to appeals taken from the municipal court to the criminal district court for the parish shall be applicable to appeals taken by defendants in matters tried before the traffic court. Sections 50-141 through 50-147 shall apply with equal force and legal effect to all

appeals taken from convictions in the traffic court. Whenever there is a mention in such sections on appeal of the clerk of municipal court, it shall be deemed that the section refers also to the clerk of the traffic court, provided further, that the return date on appeals shall be as now provided by law, and such return date may be extended by the judges of the municipal or traffic courts.
(Code 1956, § 38-36)

Sec. 154-145. Direct and constructive contempt of court; penalty.

(a) The traffic court shall have the power and authority to punish for direct and constructive contempt of court in the same manner and for the same reasons as is now provided in chapter 3 of title 15 of the Code of Criminal Procedure of Louisiana, excepting that the penalties for such contempt shall not exceed the constitutional limitations imposed by article VII, section 94 of the Louisiana Constitution.

(b) It shall further be a violation of this chapter for any person to fail to answer to a charge against him for a violation of the traffic laws at the time and at the place designated in the traffic citation which was issued to him at the time of the alleged violation regardless of the ultimate disposition of the charge for which he was originally cited.
(Code 1956, § 38-37)

Sec. 154-146. Issuance of summons for outstanding traffic attachment.

When a law enforcement officer stops a person for a traffic offense and determines that the person has an outstanding traffic attachment issued by Traffic Court for the City of New Orleans, the officer shall issue a summons requiring the person to appear in the Traffic Court of New Orleans within seven days. The provisions of this section shall not apply to traffic attachments issued for violation of section 154-381 of this.
(M.C.S., Ord. No. 23129, § 2, 6-19-08)

Sec. 154-147. Failure to appear.

Failure to appear within seven days creates the rebuttable presumption that the defendant is guilty of this article (sic) and will result in the issuance of a subsequent traffic attachment that will result in arrest if a law enforcement officer stops the person for a subsequent traffic offense. Whoever commits the crime of failure to appear shall be fined not more than $500.00, or imprisoned for not more than six months, or both.
(M.C.S., Ord. No. 23129, § 2, 6-19-08)

Secs. 154-148—154-175. Reserved.

DIVISION 3. TRAFFIC COURT VIOLATIONS BUREAU

Sec. 154-176. Maintenance of bureau in traffic court.

The traffic court shall maintain a department known as the traffic court violations bureau, which shall be established for the easy payments of fines and convenience of the public. As far as is practicable, the traffic court violations bureau shall maintain office hours for the conduct of its business between 9:00 a.m. and 6:00 p.m. on all working days when the court is operating.
(Code 1956, § 38-26)

Sec. 154-177. Schedule of fines and payments.

(a) Any person charged with a traffic violation or traffic offense may appear at the traffic court violations bureau at any time prior to date of trial specified on the complaint or summons and may enter a waiver of trial, sign a written plea of guilty to the offense charged and may pay the fine. The clerk of the violations bureau of the traffic court shall have authority to accept the written plea of guilty to the offense charged, and issue receipts for the fine paid by the offender.

(b) The following is a minimum schedule of fines which may be paid in the violations bureau for a first offense, provided that the offense does not require a mandatory court appearance as set out in section 154-178 or in the schedule of fines;

and that violations occurring simultaneously shall be considered as a single offense for the purpose of assessing fines.

SCHEDULE OF FINES

Category	*Description*	*1st Offense*
(1)	*Equipment Violations*	
	Improper equipment	$50.00
	Illegal use of spotlights, backup lights	50.00
	Improper use of horns, improper sirens, lights, or other warning devices	50.00
	Malfunctioning exhaust	50.00
	Oversize truck and/or trailer	100.00
	Overweight truck and/or trailer	100.00
	Overloaded vehicle	100.00
	Trailer and towed vehicles	100.00
	Unsafe or improper brakes	50.00
	Required equipment for operator and passenger on a motorcycle or motor-driven cycle	50.00
	Required equipment for motorcycle and motor-driven cycle	50.00
	Muffler and exhaust system requirements for motorcycles and motor-driven cycles	50.00
	Required use of child restraint system	50.00
(2)	*Speeding Violations*	
	Emergency vehicle exceeding 10 mph over limit	100.00
	Speeding in a playground zone	120.00
	1—9 mph over limit	50.00
	10—14 mph over limit	150.00
	15—20 mph over limit	175.00
	All over 20 mph over limit	Court
	Impeding traffic by slow speed	50.00
(3)	*Licensing and Identification Violations*	
	No name and/or address on commercial vehicle, or displaying unauthorized markings	50.00
	Improper use of words "Consular Corps" etc., on vehicles	50.00
	No operator's or chauffeur's license, or no license in possession, or unlawful use of a license	Court
	Failing to change address or sign license	50.00
	No current license plate	50.00
	Possession of vehicle with defaced number	Court
	Failing to attach license plate to vehicle or having license plate mutilated, damaged, obstructed, or illegible	50.00
	Transfer and assignment of vehicles and registration thereof and unlawful use of registration	120.00
	Funeral procession not identified	50.00
	Brake tag inspection of parish vehicles required	100.00
	Fraudulent or unlawful use of brake tag or fake brake tag	Court
	Out of parish brake tag required	100.00
(4)	*Miscellaneous Violations*	
	Obstructing carnival parade and sanitation vehicle	100.00
	All pedestrian violations	25.00
	All violations with bicycles	50.00
	Railroad trains blocking streets	500.00
	Streetcars blocking streets	50.00
	Trucks in restricted areas	175.00
	Parading without permit	Court
	Skating in streets	50.00
	Clinging to moving vehicle	50.00
	Unsafe opening of vehicle doors	120.00
	Obstructing driver's view and overloading back	50.00
	Following emergency vehicle	100.00
	Crossing fire hose	100.00
	Failing to report an accident	Court
	Interfering with official traffic-control devices	Court
	Hit-and-run driving	Court
	Spillage of dirt, garbage, trash, etc.	Court
	Operation of bus in Vieux Carré	Court
	Restriction on stopping by buses	150.00

Category	*Description*	*1st Offense*
	Operation of bus at idle longer than 20 minutes	50.00
	Operation of bus at idle longer than ten minutes	30.00
	Operation of motor vehicle on flooded streets	Court
	Unsummoned tow truck response	Court
	Operation of motor vehicle on flooded streets	Court, fine of not less than $200.00
(5)	*Moving Violations*	
	Driving over curb or neutral ground	50.00
	Failure to observe an officer's signal	120.00
	Crossing or turning on a red light	120.00
	Disregarding or disobeying movement indication arrows	50.00
	Failing to obey blinking red or yellow signals	50.00
	Vehicle violating pedestrian right-of-way	50.00
	Improper lane usage	50.00
	Turning from wrong lane	120.00
	Improper movement or failure to give signal or improper signal	120.00
	Disregarding a traffic sign and any other sections where signs are placed restricting driver action	50.00
	Disregarding turning markers	50.00
	Failure to observe a no-turn signal	50.00
	Making improper turn at auxiliary crossing	50.00
	Unsafe turning movement	50.00
	Improper turn where storage lane provided	50.00
	Driving against traffic	120.00
	Failure to observe "Stop" sign	120.00
	Failure to yield right-of-way	120.00
	Disregarding signal of approaching railroad train	50.00
	Driving through safety zones or on sidewalks	120.00
	Passing streetcar on right	50.00
	Obstructing movement of streetcar	50.00
	Drivers in a procession failing to keep right	50.00
	Driving through a funeral or other procession	50.00
	Improper starting or backing	120.00
	Riding or allowing to ride in unsafe position	120.00
	Following too closely	120.00
	Failing to yield to emergency vehicle	100.00
	Reckless driving in any manner	Court
	Careless driving	150.00
	Passing stopped school bus	150.00
	Driving while intoxicated	Court
	Trucks failing to keep right	120.00
	Drivers to use vigilance	100.00
	Over parking in residential permit area	50.00

(c) The foregoing penalty fees shall be applied to the first offense of which a person has been convicted or to which the person has, in effect, pleaded guilty by payment of a fine at the violations bureau within a period of one year. The second or any others after the second such violation within that period must be heard in court and may not be disposed of at the violations bureau. The fine for a second or more violations shall be greater than for a first offense. Any violation not listed in the above schedule must be paid in court and the penalty shall not be in excess of $500.00 and five months; where there is a conflict between any fine set out in the body of this chapter and that provided in this fine schedule, the fine or requirement for mandatory court appearances in the fine schedule, shall prevail.

(Code 1956, § 38-27; M.C.S., Ord. No. 18,185, § 1, 4-3-97; M.C.S., Ord. No. 18,724, § 1, 6-4-98; Ord. No. 19,264, § 1, 4-19-00; Ord. No. 20,261, § 2, 8-2-01; M.C.S., Ord. No. 20,904, § 2, 10-17-02; M.C.S, Ord. No. 24629, § 1, 10-20-11)

Sec. 154-178. Mandatory court appearances and fines.

(a) Persons charged with the following offenses must appear in court and cannot pay their fines in the traffic court violations bureau:

(1) All persons involved in serious traffic accidents must appear in court, if in connection with that accident or growing

out of it he is charged with a moving violation. As herein used, the term "serious traffic accident" is understood to mean all traffic accidents in which any one or more persons receives a fatal, severe or noticeable injury. (Police Injury Codes 1, 2, and 3.)

(2) Whenever a person is charged with exceeding the speed limit by more than 20 miles per hour.

(3) When charged with having no license in possession or chauffeur's or driver's license.

(4) When charged with improper chauffeur's or driver's license, improper use of or driving on a suspended driver's or chauffeur's license.

(5) When charged with fraudulent use of a license plate, or fraudulent registrations.

(6) When charged with parading without a permit.

(7) When charged with failing to report an accident.

(8) When charged with interfering with official traffic control devices.

(9) When charged with hit and run driving.

(10) When charged with reckless driving in any manner.

(11) When charged with driving while intoxicated.

(12) When defendant is charged with a moving violation and the records of the court reveal that he has been three times convicted previously of a moving violation, within the previous 13-month period, or when otherwise required by the provisions of the fine schedule.

(13) When charged with fraudulent or unsafe use of a safety inspection certificate (brake tag), or use or possession of a fake brake tag.

(14) When a defendant has failed to appear as provided in section 154-145(b).

(15) When charged with failure to operate or equip vehicle so as to prevent the spillage of dirt, garbage, trash, etc., as required by section 154-402.

(16) Reserved. [see § 154-403, editor's note.]

(17) When charged with unsummoned tow truck response in violation of section 162-1585.

(18) When charged with unlawful operation of a motor vehicle on flooded streets in violation of section 154-404. Upon conviction of or a plea of guilty or nolo contendere to a violation of section 154-404, the court shall impose a fine of not less than $200.00 nor more than $500.00 for a first violation.

(b) Whenever appearance in court is mandatory under this article or where the person elects to appear in court to contest the case, the court may impose any sentence within its jurisdiction not to exceed $500.00, five months, or both in its discretion. Provided however, that where any defendant enters a plea of guilty in open court upon a charge that could have been paid in the violations bureau, the same fine must be imposed as he could have paid previously without a trail in the violations bureau.

(c) Notwithstanding anything contained herein to the contrary, upon conviction for the following offenses the court shall impose a fine in accordance with the schedule of fines in section 154-177. Nothing contained in this subsection shall be construed as to require a mandatory court appearance except as provided for elsewhere in the chapter.

(1) Illegal parking upon a neutral ground (154-1031).

(2) Unsummoned tow truck response (162-1585).

(d) When a defendant is charged with a violation of the prohibition of certain buses in the Vieux Carré as provided in section 122-54, a violation of Vieux Carré bus limitations as provided in section 162-942, or a violation on the restriction on stopping by buses as provided in section 154-983, the court shall impose a fine of

not less than $200.00 nor more than $500.00 for a first violation; a second violation shall result in a fine of not less than $400.00 nor more than $500.00 and imprisonment for not more than three months; a third violation shall result in a fine of not less than $500.00 and imprisonment of not less than 30 days, the court may substitute 30 days or more of public service in the Vieux Carré and adjacent areas instead of imprisonment; and four or more violations shall result in a fine of not less than $500.00 and imprisonment for not less than 60 days for each violation, the court may substitute 60 days or more of public service in the Vieux Carré and adjacent areas instead of imprisonment for each violation. The court shall submit information on any offenses to the department of utilities within 30 days.

(e) When a defendant is charged with using or possessing a fake, false or fraudulent safety inspection certificate as provided in section 154-1298, the court shall impose a fine of not less than $300.00 nor more than $500.00 and up to three months imprisonment for a first violation; a second violation shall result in a fine of not less than $400.00 nor more than $500.00 and up to four months imprisonment; a third or more violations shall result in a fine of not less than $500.00 and imprisonment of not less than 30 days nor more than five months for each violation. The court may substitute community service hours at a rate of seven hours for each $50.00 imposed and seven hours for each day of imprisonment. The community service hours shall include cleaning and picking up litter in public parks, recreational facilities, cemeteries or public rights-of-way.

(Code 1956, § 38-28; M.C.S., Ord. No. 18,185, § 2, 4-3-97; Ord. No. 19,264, § 1, 4-19-00; Ord. No. 20,261, § 2, 8-2-01; M.C.S., Ord. No. 20,904, § 3, 10-17-02)

Sec. 154-179. Cost of preparing conviction notice.

There shall be an additional charge of $0.50 added to the total of each fine excepting parking imposed by the traffic court for the purpose of defraying the cost of preparation of conviction notices to the state in accordance with state law. No specific order shall be necessary for the collection of these costs, and the same shall be collected by the appropriate clerk-cashier of the traffic court on each ticket paid in the court or in the violations bureau of the court.

(Code 1956, § 38-29)

Secs. 154-180—154-230. Reserved.

ARTICLE IV. TRAFFIC CONTROL DEVICES

Sec. 154-231. Authority to install.

The city traffic engineer shall place and maintain traffic control signs, signals and devices when and as required under the traffic laws of the city to make effective the provisions of such laws, and may place and maintain such additional traffic control devices as he may deem necessary to regulate traffic under the traffic laws of the city or under state law, or to guide or warn traffic.

(Code 1956, § 38-38)

State law references—Powers of local authorities, R.S. 32:41; uniform highway marking system, R.S. 32:235.

Sec. 154-232. Engineer to designate crosswalks, establish safety zones, school zones, and mark traffic lanes.

The city traffic engineer may:

(1) Designate and maintain, by appropriate traffic control devices, crosswalks at intersections where, in their engineering judgment, there is a particular danger to pedestrians crossing the roadway and at such other places engineering studies and engineering judgement deems.

(2) Establish and maintain, by appropriate traffic control devices, safety zones of such kind and character and at such places engineering studies or engineering judgement deems necessary for the protection of pedestrians.

(3) Mark lanes for traffic on street pavements at such places engineering studies or engineering judgement deems necessary.

(4) Designate and maintain, by appropriate traffic control devices, mid-block marked crosswalks and other pedestrian treatments engineering studies or engineering judgement deems necessary.

(5) Designate and maintain, by appropriate traffic control devices, as school zones those streets or portions thereof adjacent to any public or private school, where children of any grades between and inclusive of kindergarten and twelfth attend on a regular basis. The city traffic engineer may designate and maintain, by appropriate traffic control devices, as school crossings those intersections which, although not directly adjacent to such a school, are used regularly by such children as pedestrians on their way to and from school. Additionally, the city traffic engineer may designate and maintain, by appropriate traffic control devices, such other portions of streets or intersections as school zones or school crossings where engineering studies or engineering judgment deems necessary.

(Code 1956, § 38-45; M.C.S., Ord. No. 29440, § 1, 5-11-23)

Sec. 154-233. Placement, maintenance of devices; specifications.

The city shall place and maintain such traffic control devices upon highways under its jurisdiction as deemed necessary to indicate and to carry out the provisions of this chapter, and traffic ordinances adopted pursuant to the authority granted by R.S. 32:41 and R.S. 32:42. All such traffic control devices erected shall conform to the state department of transportation and development's manual or specifications.

(Code 1956, § 38-39)

State law reference—Uniform highway marking system, R.S. 32:235.

Sec. 154-234. Obedience to devices.

The driver of any vehicle and the operator of any streetcar shall obey the instructions of any official traffic control device applicable thereto placed in accordance with the traffic laws of the city, unless otherwise directed by a police officer, subject to the exceptions granted to the driver of an authorized emergency vehicle in this chapter. This shall include special parking regulation signs.

(Code 1956, § 38-40)

State law reference—Obedience to traffic-control devices, R.S. 32:231(A).

Sec. 154-235. Obedience to signs not properly placed not required.

No provision of this article for which signs are required shall be enforced against an alleged violator if, at the time and place of the alleged violation, an official sign was not in proper position and where it can be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.

(Code 1956, § 38-41)

State law reference—Obedience to signs not properly placed not required, R.S. 32:231(B).

Sec. 154-236. Meaning of signals.

(a) Whenever traffic is controlled by traffic control signals exhibiting different colored lights or colored lighted arrows successively one at a time or in combination, the following colors only shall be used except for special pedestrian signals carrying a word legend, and such terms and light shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) *Green indication.*

a. Vehicular traffic facing such signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left shall stop and yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

b. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only

to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall stop and yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

c. Unless otherwise directed by a pedestrian control signal as provided in section 154-238, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

(2) *Steady yellow indication.*

a. When shown following the green signal, vehicular traffic facing such signal is thereby warned that the red signal will be exhibited immediately thereafter and such vehicular traffic shall not enter the intersection when the red signal is exhibited.

b. Unless otherwise directed by a pedestrian control signal as provided in section. 154-238 a pedestrian facing a steady yellow signal is thereby advised that there is insufficient time to cross the roadway before a red signal is exhibited and no pedestrian shall then start to cross the roadway.

(3) *Steady red indication.*

a. Vehicular traffic facing such signal alone shall stop at a clearly marked stop line, or if none, then before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection and shall remain standing until an indication to proceed is shown except as provided in subsection c. of this subsection.

b. Vehicular traffic facing a steady red arrow signal shall not enter the intersection to make the movement indicated by the arrow and, unless entering the intersection to make a movement permitted by another signal, shall stop at a clearly marked stop line, or if none, then before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection, and shall remain standing until an indication permitting the movement indicated by such red arrow is shown except as provided in subsection c. of this subsection.

c. Except when a sign prohibits a turn, vehicular traffic facing any steady red signal may cautiously enter the intersection to turn right, or to turn left from a one-way street into a one-way street, or to U-turn at a signalized U-turn after stopping as required by subsections a. or b. of this subsection. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

d. Unless otherwise directed by a pedestrian control signal as provided in section 154-238, a pedestrian facing a steady circular red or red arrow signal shall not enter the roadway.

(4) *Flashing yellow indication.*

a. Vehicular traffic facing such signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow. Such vehicular traffic shall stop and yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

(b) If an official traffic control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be

applicable except as to those provisions which by their nature have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of such sign or marking, the stop shall be made at the signal.
(Code 1956, § 38-42; M.C.S., Ord. No. 27364, § 1, 4-20-17)

State law reference—Traffic-control signals, R.S. 32:232.

Sec. 154-237. Obedience by streetcars.

The operator of any streetcar shall obey the signals as provided in section 154-236 as applicable to vehicles unless special streetcar signal indications are provided.
(Code 1956, § 38-42)

Sec. 154-238. Pedestrian control signals.

Whenever special pedestrian control signals exhibiting the words "Walk," or "Don't Walk" or other approved symbol are in place such signals shall indicate as follows:

(1) *Flashing or steady "Walk" or approved "Walking Person" symbol.* Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) *Flashing or steady "Don't Walk" or approved "Upraised Hand" symbol.* No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed the crossing on the "Walk" signal shall proceed to the nearest sidewalk, neutral ground or safety zone while the "Don't Walk" or approved "Upraised Hand" signal is showing.

(Code 1956, § 38-43; M.C.S., Ord. No. 27364, § 1, 4-20-17)

State law reference—Pedestrian-control signals, R.S. 32:233.

Sec. 154-239. Flashing signals.

(a) Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (Stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked or, if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow or amber (Caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(b) This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossing shall be governed by the rules set forth in R.S. 32:171 through 32:174.
(Code 1956, § 38-44)

State law reference—Flashing signals, R.S. 32:234.

Sec. 154-240. Driving on roadway laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules, in addition to all others consistent herewith, shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) The city may erect signs directing slow moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction, and drivers of vehicles shall obey the directions of such signs.

(Code 1956, § 38-46)

Sec. 154-241. Driving on divided highways.

(a) Whenever any highway has been divided into two roadways by a median, physical barrier, or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right hand roadway and

no vehicle shall be driven over, across or within the median, barrier or section, except through an improved opening or at a cross over or intersection established under authority of this chapter.

(b) No vehicle shall cross the painted centerline of any multiple lane highway, except for the purpose of making a turn.
(Code 1956, § 38-46)

State law references—Driving on roadway laned for traffic, R.S. 32:79; driving on divided highways, R.S. 32:82.

Sec. 154-242. Display of unauthorized signs, signals, or markings.

(a) No person shall place, maintain or display upon or in view of any highway any unauthorized sign, marking or device which:

(1) Purports to be or is an imitation of or resembles an official traffic control device or railroad sign or signal;

(2) Attempts to direct or restrict the movement or parking of vehicles;

(3) Hides from view or interferes with the effectiveness of any traffic control device or railroad sign or signal; or

(4) Creates a sight obstruction or in any other manner interferes with the safe movement of traffic.

(5) Is mobile in nature and contains lights, advertising, or other images directed at any portion of the traveled roadways and which cause glare or impair the vision of the driver of any motor vehicle or any pedestrian, or which otherwise interfere with any driver's operation of a motor vehicle are prohibited.

(b) No person shall place or maintain, nor shall any public authority permit upon any highway any sign or signal bearing thereon any commercial advertising, with the exception of:

(1) Any and all advertising signs located on any transit waiting station approved by the council;

(2) Name and logo of owner and any sponsors of a public self-service bicycle rental service on its public self-service bicycle rental stations.

(c) This section shall not prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

(d) Every prohibited sign, signal or marking is hereby declared to be a public nuisance and the superintendent of police may remove it or cause it to be removed without notice.
(Code 1956, § 38-47; M.C.S., Ord. No. 27596, § 2, 11-16-17; M.C.S., Ord. No. 27748, § 1, 5-3-18)

State law reference—Prohibited signs, R.S. 32:236.

Sec. 154-243. Interference with devices or railroad signs or signals.

No person shall, without lawful authority, attempt to or in fact alter, deface, injure, knock down, or remove any official traffic control device or any railroad sign or signal or any inscription, shield or insignia thereon or any part thereof.
(Code 1956, § 38-48)

State law reference—Prohibition against tampering with barricades, signs and signals, R.S. 32:237.

Sec. 154-244. Directional signs.

(a) *Definition.* In this section, "directional signs" are those signs that direct, point, guide or show persons to a particular area or destination within the city.

(b) *Prohibition.* Directional signs are prohibited except as specifically provided by this section.

(c) *Signs allowed.* Directional signs may be erected on streets located on the city's major street plan only after the location and design of such signs are reviewed and approved by the executive director of the city planning commission in consultation with the director of the department of streets. The department of streets shall coordinate the installation of all such signs.

(d) *Design of signs.* The size, shape and format of directional signs shall be uniform so as to differentiate such signs from regulatory traffic control signs, signals and devices.

(e) *Content of signs.* Directional signs:

(1) Shall uniformly contain the city logo or seal, except as provided in paragraphs (f) and (g) of this section;

(2) May indicate a particular geographic section of the city (including, but not limited to, "French Quarter" or "Vieux Carré," "Central Business District," "Riverfront," "Warehouse District," "Uptown" and "Lakefront");

(3) May indicate a general type of attraction or destination (including, but not limited to, "Aquarium," "Casino," "Convention Center," "City Park," "Riverboats," "Superdome" or "Zoo");

(4) May indicate the location of parking facilities;

(5) May contain directional arrows and distances; and

(6) Shall not contain the name or logo of an individual private business or entity except as provided in paragraphs (f) and (g) of this section.

(f) *Port signs.* Directional signs to port facilities may be utilized for the purpose of directing traffic:

(1) To use the city's official truck route; and

(2) To the public cruise terminal.

The content of these signs shall contain only the name of the wharf or port area being served and "Port of New Orleans."

(g) *Other signs.* The department of streets may erect directional signs indicating the location of medical, fire, police and other emergency service facilities, colleges and universities, public parks, and judicial and governmental buildings.

(h) The department of streets shall remove any directional sign that does not conform to this section.
(M.C.S., Ord. No. 17,216, § 1, 9-21-95)

Secs. 154-245—154-300. Reserved.

ARTICLE V. OPERATION OF VEHICLES

DIVISION 1. GENERALLY

Sec. 154-301. Driver's license.

(a) Every person, other than a chauffeur and those persons specifically exempted under the provisions of this Code, shall secure and maintain from the driver's license bureau of the state a current, valid motor vehicle driver's license before operating a motor vehicle upon the public streets of the city.

(b) Every person who is employed by another for the principal purpose of driving a motor vehicle, and every person who drives any motor vehicle that has a registration of over 3,500 pounds, or drives a motor vehicle for the transportation of persons or property for hire, shall secure and maintain from the driver's license bureau of the state a current, valid driver's license before operating any such motor vehicle on any public street in the city.
(Code 1956, § 38-145)

State law references—Driver must be licensed, R.S. 32:52; all drivers must secure license, R.S. 32:402.

Sec. 154-302. Change of address of licensee.

Whenever any person after applying for or receiving a driver's license shall move permanently from the address or place of residence named in the application he shall, within ten days thereafter, have his address changed in accordance with the provisions of the state driver's license bureau.
(Code 1956, § 38-146)

State law reference—Licensee must give notice of change of address, R.S. 32:406.

Sec. 154-303. License in immediate possession of driver.

The licensee shall have his driver's license in his immediate possession at all times when operating a motor vehicle, and shall display it upon demand of any police officer of the city, or any police officer of the state, or any agent of the department of public safety of the state; except that where the licensee has previously deposited his license with an arresting officer or the traffic court, as provided in section 154-136, and has received a temporary operator's license, as provided in subsection (b) of such section, the licensee shall display the temporary operator's license upon demand of such police officer, or any agent of the department of public safety of the

state, the same to serve as a substitute for the license until the date and time shown on the traffic ticket and affidavit.
(Code 1956, § 38-147)

State law reference—Licensee to have license or receipt in immediate possession, R.S. 32:411(D).

Sec. 154-304. Unlawful use of license.

It is prohibited for any person to:

(1) Display or cause or permit to be displayed or have in his possession any cancelled, revoked, suspended, fictitious, defaced, mutilated or fraudulently altered driver's license or temporary driver's license;

(2) Lend his driver's license, or temporary driver's license to any other person or knowingly permit the use thereof by another;

(3) Display or represent as one's own any driver's license, or temporary driver's license, not issued to him;

(4) Permit any unlawful use of a driver's license, or temporary driver's license issued to him;

(5) Operate a motor vehicle on any public street of the city when his driver's license, or temporary driver's license, has been cancelled, suspended or revoked;

(6) Operate a motor vehicle with a restricted license when not abiding by such restrictions; or

(7) Operate a motor vehicle when his driver's license, or temporary driver's license, has expired.

(Code 1956, § 38-148)

State law reference—Unlawful use of license, R.S. 32:414.1.

Sec. 154-305. Signature of licensee.

Every person licensed shall maintain a facsimile of his usual signature in the space provided for that purpose on the driver's license.
(Code 1956, § 38-149)

State law reference—Signature of licensee, R.S. 32:410(A).

Sec. 154-306. Exemptions from driver's license requirements.

The following persons shall be exempt from state driver's license requirements:

(1) Any employee of the United States government while operating a motor vehicle owned or leased by the United States government and being operated on official business when such person has in his immediate possession a valid license issued to him by the United States government.

(2) Any person on active duty with the armed forces of the United States and any dependent of such person, provided any such person has a valid and current driver's license from a foreign state.

(3) A nonresident who has in his immediate possession a valid license issued to him in his home state or country, for a period not to exceed 90 days.

(4) A nonresident whose home state or country does not require a driver's license, for a period not to exceed 90 days.

(5) A nonresident who is in possession of a valid driver's license from the state of his residence who is not required to obtain a state driver's license by virtue of a reciprocal agreement between his state and this state sanctioned by law.

(Code 1956, § 38-150)

State law reference—Exemptions from driver's license requirements, R.S. 32:420.

Sec. 154-307. License plates.

(a) Every person who is a resident of the state and owns a motor vehicle of any description must first obtain an appropriate, current, valid license plate from the state before driving his motor vehicle upon any public streets of the city, except that a 20-day temporary registration marker may be used for new cars when lawfully issued by a dealer.

(b) No vehicle shall be driven on the streets of this city with any vehicle license plate which is mutilated, defaced, damaged, or obscured in such a manner as to make the letters and numerals thereon illegible.

(c) A license plate shall be placed and positioned to be clearly visible and securely fastened. At night, the plate must be so illuminated as to be visible from a distance of 50 feet.

(d) It shall further be a violation of this section for any person to operate upon the streets of the city a motor vehicle not bearing a current license plate from this state or from the state where the owner resides, if he is a nonresident.

(e) Owners of self-propelled motor cranes and similar equipment used exclusively for heavy construction by the building and utility industries in off-road construction are exempt from the foregoing provisions of this section.

(f) Owners of vehicles who are on active duty with the armed forces of the United States and any owner of a vehicle who is a dependent of such a person are exempt from the foregoing provisions of this section provided the vehicle has a valid license plate and valid registration documents from a foreign state. This shall not exempt any such person from complying with the applicable laws requiring a valid brake and safety inspection sticker.
(Code 1956, § 38-151)

State law references—License plates, R.S. 47:505; display of plate, R.S. 47:507.

Sec. 154-308. Registration required.

Every owner of a motor vehicle who is a resident of the state and whose vehicle is subject to registration under state law shall make application to the state motor vehicle registration division for a registration certificate.
(Code 1956, § 38-152)

State law references—Owner to secure registration, R.S. 47:501; register of applicants to be kept by secretary, R.S. 47:504.

Sec. 154-309. Registration certificate to be carried and exhibited on demand.

Every registration certificate shall at all times be carried in the vehicle to which it refers or shall be carried by the person driving or in control of such vehicle who shall display same upon demand of any police officer of the city or any police officer of the state.
(Code 1956, § 38-153)

State law reference—Registration certificates, R.S. 47:506.

Sec. 154-310. Transfer of registration by owner.

Whenever the owner of a registered vehicle transfers or assigns his title or interest thereto, the registration plate issued for such vehicle shall remain attached thereto.
(Code 1956, § 38-154)

State law reference—Transfer of registration certificates, R.S. 47:509.

Sec. 154-311. Assignment and transfer of vehicles; prohibitions.

(a) Any person purchasing a motor vehicle from another in the city shall promptly apply for transfer of registration.

(b) Whoever shall, except as otherwise provided for by state law, purport to sell or transfer a vehicle without delivery to the purchaser or transferee thereof a certificate of title thereto duly endorsed and assigned to such purchaser as provided for by state law; or being the owner thereof shall operate on any public road, highway or bridge of this city a vehicle for which a certificate of title is required by the provisions of state law without such certificate having been applied for in accordance with the provisions of state law, or upon which the certificate of title has been cancelled; or any person other than the owner thereof who shall operate on any public road, highway or bridge in this state a vehicle for which a certificate of title is required by the provisions of state law without such certificate having been applied for in accordance with the provisions of state law, or upon which the certificate of title has been cancelled; or any person other than the owner thereof, who shall operate on any public road, or highway or bridge in this state a vehicle for which the certificate of title is required by the provisions of state law, knowing or having reason to believe that the

owner has failed to obtain a certificate of title therefor, or that same has been canceled, shall be guilty of a violation of this section.
(Code 1956, § 38-155)

State law reference—Transfer of registration certificates, R.S. 47:509.

Sec. 154-312. Unlawful use of registration certificate or license plate.

(a) No person shall sell or lend a registration certificate or license plate to any other person for use on a vehicle other than that for which it was issued.

(b) No person shall attach a license plate to any other vehicle other than that for which it was issued.

(c) No person shall display or represent as his own registration certificate or license plate not issued or lawfully transferred to him, or drive a vehicle to which same is attached.

(d) No person shall permit the unlawful use of a registration certificate or license plate.
(Code 1956, § 38-156)

State law reference—Violations of registration provisions, R.S. 47:536.

Sec. 154-313. Possession of vehicles with defaced numbers.

No person shall have in his possession any motor vehicle, motorcycle, or bicycle from which the manufacturer's serial number or any other manufacturer's trade or distinguishing number or identification mark has been removed, defaced, covered or destroyed, for the purpose of concealing or destroying the identification of such motor vehicle, motorcycle, or bicycle.
(Code 1956, § 38-157)

State law references—Concealing or misrepresenting identity of motor vehicle or engine, R.S. 32:725; destruction or alteration of distinguishing number or mark, R.S. 32:726.

Sec. 154-314. Driving through certain areas prohibited.

(1) No vehicle shall at any time be driven through or within a safety zone, or within any sidewalk area, except at a permanent or temporary driveway. The operation of motorcycles is hereby prohibited within the Vieux Carré (as defined in the state Constitution) between the hours of 12:00 midnight to 6:00 a.m. Enforcement vehicles of any city, state or federal agency are hereby exempted from the prohibitions of this section while engaged in the official business of their respective agency. Bona fide residents of the Vieux Carré or bona fide employers or employees employed within the Vieux Carré shall be allowed the right of ingress and egress to their place of residence or their place of employment during the prohibited times as stated herein.

(2) All motorcycles shall be equipped with an exhaust muffler bearing the federally required Environmental Protection Agency (EPA) label and/or certificate applicable to the model's year as set out in 40 Code of Federal Regulations (CFR) § 205.169.
(Code 1956, § 38-114; M.C.S., Ord. No. 24588, § 1, 9-1-11)

Sec. 154-315. Loading of vehicles.

(a) No vehicle shall be driven or moved on any highway of this state or streets of the city unless such vehicle is so constructed or loaded as to prevent any of its load from dropping, shifting, leaking or otherwise escaping therefrom, except that sand may be dropped for the purpose of securing traction, or water substance on the highway to clean or maintain such highway.

(b) No person shall operate on any highway of this city any vehicle with any load unless such load and any covering thereon is securely fastened so as to prevent such covering or load from becoming loose, detached or in any manner a hazard to other users of the highway.
(Code 1956, § 38-170)

Secs. 154-316—154-370. Reserved.

DIVISION 2. RULES OF THE ROAD

Sec. 154-371. Driving on right side of roadway; exceptions.

(a) Upon all roadways of sufficient width, a vehicle shall be driven upon the right half of the roadway, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movements;

(2) When the right half of a roadway is closed to vehicular traffic while under construction or repair;

(3) Upon a roadway designated and sign-posted for one-way traffic, or upon a divided roadway.

(b) Upon all multiple lane highways or roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the circumstances then existing shall be driven in the right-hand lane then available for traffic, except when preparing for a left turn at an intersection or into a private road or driveway, or passing or overtaking a vehicle proceeding in the same direction, if passing on the left side of it.

(Code 1956, § 38-83)

State law references—Driving on right side of road; exceptions, R.S. 32:71.

Sec. 154-372. Passing vehicles proceeding in opposite directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction each driver shall give to the other at least one-half of the main travelled portion of the roadway as nearly as possible.

(Code 1956, § 38-84)

State law reference—Passing vehicles proceeding in opposite direction, R.S. 32:72.

Sec. 154-373. Passing a vehicle on the left.

The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions, and special rules hereinafter stated:

(1) Except when overtaking and passing on the right is permitted, the driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance, and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(2) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

(Code 1956, § 38-85)

State law reference—Passing a vehicle on the left, R.S. 32:73.

Sec. 154-374. When passing on the right is permitted.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(1) When the vehicle overtaken is making or about to make a left turn;

(2) Upon a one-way street, or upon a highway on which traffic is restricted to one direction of movement, where the highway is free from obstructions and of sufficient width for two or more lines of moving vehicles;

(3) Upon multiple-lane highways and divided highways.

(b) The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main travelled portion of the highway.

(c) This section does not prohibit the use of a bicycle in a bicycle lane or on a shoulder.

(Code 1956, § 38-86; M.C.S., Ord. No. 27365, § 2, 4-20-17)

State law reference—When passing on the right is permitted, R.S. 32:74.

Sec. 154-375. Limitations on overtaking on the left on a two-way roadway.

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side of roadway is clearly visible and free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without

interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to the right-hand side of the roadway before coming within 100 feet of any vehicle approaching from the opposite direction.
(Code 1956, § 38-87)

State law reference—Limitations on passing on the left, R.S. 32:76.

Sec. 154-376. Further limitations on passing on the left.

(a) No vehicle shall at any time be driven to the left side of the highway under the following conditions:

(1) When approaching the crest of a grade or upon a curve in the highway, where the driver's view is obstructed within such distance as to create a hazard if another vehicle might approach from the opposite direction.

(2) When approaching within 50 feet of or traversing any intersection or railroad grade crossing.

(3) When the view is obstructed upon approaching within 100 feet of any bridge, viaduct, or tunnel.

(4) When traffic ahead is stopped, whether or not the reason is apparent, unless directed to do so by a police officer.

(b) The foregoing limitations shall not apply upon a one-way roadway or a multiple-lane highway.
(Code 1956, § 38-88)

State law reference—Limitations on passing on the left, R.S. 32:76.

Sec. 154-377. No-passing zones.

(a) The city traffic engineer is hereby authorized to determine those portions of any highway where overtaking and passing or driving to the left of the roadway would be especially hazardous, and may, when appropriate signs or markings on the roadway indicate the beginning and end of such zones, and when such signs or markings are in place and clearly visible to an ordinarily observant person every driver of a vehicle shall obey the directions thereof.

(b) Where signs or markings are in place to define a no-passing zone as set forth in subsection (a) of this section no driver shall at any time drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designated to mark such no-passing zones throughout its length.
(Code 1956, § 38-89)

State law reference—No passing zones, R.S. 32:77.

Sec. 154-378. Driving on roadways laned for traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules, in addition to all others consistent herewith, shall apply:

(1) A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety.

(2) Official signs may be erected directing slow-moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction, regardless of the center of the roadway, and drivers of vehicles shall obey the directions on every such sign.

(3) Lane usage for trucks on U.S. Highway 90 Business. It shall be unlawful for the driver of any multi-axle vehicle or a vehicle of a gross weight per load carrying axle in pounds in excess of 3,500 pounds, except passenger buses and school buses, to drive in the left-hand lane on that section of U.S. Highway 90 Business (Greater New Orleans Mississippi River Bridge) between Camp Street and the West Bank Toll Plaza.

(4) Lane usage for trucks on Louisiana Avenue. It shall be unlawful for the driver of any multi-axle vehicle or a vehicle of a gross weight per load carrying axle in pounds in excess of 3,500

pounds, including passenger buses and school buses, to drive in the left-hand lane on that section of Louisiana Avenue between the Mississippi River and South Claiborne Avenue except when such vehicles are executing a left-hand turn.

(Code 1956, § 38-90)

State law reference—Driving on roadway laned for traffic, R.S. 32:79.

Sec. 154-379. Driving in parking lane not permitted.

Where parking is permitted in a lane of traffic immediately adjacent to the curb, no vehicle shall travel in such lane of traffic except for the purpose of stopping or parking, or for the purpose of making a turn, and when making a turn, only within 50 feet from the intersection where the turn is to be made.

(Code 1956, § 38-91)

Sec. 154-380. Driving on divided streets.

(a) Whenever any highway has been divided into two roadways by a median, physical barrier, or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway and no vehicle shall be driven over, across or within the median, barrier or section, except through an improved opening or at a cross-over or intersection established under authority of this chapter.

(b) No vehicle shall cross the painted centerline of any multiple-lane highway or street except for the purpose of making a turn.

(Code 1956, § 38-92)

State law reference—Driving on roadway laned for traffic, R.S. 32:79.

Sec. 154-381. Operating a vehicle while intoxicated.

(a) The crime of operating a vehicle while intoxicated is the operation of any motor vehicle, aircraft, watercraft, vessel, or other means of motorized conveyance when:

(1) The operator is under the influence of alcoholic beverages; or

(2) The operator's blood alcohol concentration is 0.08 percent or more by weight based on grams of alcohol per 100 cubic centimeters of blood; or

(3) The operator is under the influence of any controlled dangerous substance listed in Schedule I, II, III, IV, or V as set forth in La. R.S. 40:964; or

(4) The operator is under the influence of a combination of alcohol and one or more drugs, which are not controlled dangerous substances and which are legally obtainable with or without a prescription, and the label on the container of the prescription drug or the manufacturer's package of the drug contains a warning against combining the medication with alcohol; or

(5) The operator is under the influence of one or more drugs which are not controlled dangerous substances and which are legally obtainable with or without a prescription, and the influence is caused by the operator knowingly consuming quantities of the drug or drugs which substantially exceed the dosage prescribed by the physician or the dosage recommended by the manufacturer of the drug.

(b) On a first conviction, notwithstanding any other provision of law to the contrary, the offender shall be fined not less than $300.00 nor more than $1,000.00, and shall be imprisoned for not less than ten days nor more than six months. Imposition or execution of the sentence shall not be suspended unless:

(1) The offender is placed on probation with a minimum condition that he serve 48 hours in jail, participate in a court-approved substance abuse program, and participate in a court-approved driver improvement program; or

(2) The offender is placed on probation with a minimum condition that he perform four eight-hour days of court-approved community service activities, at least one-half of which shall consist of participation in a litter abatement or collection

program; participate in a court-approved substance abuse program; and participate in a court-approved driver improvement program. An offender who participates in a litter abatement or collection program pursuant to this subparagraph shall have no cause of action for damages against the entity conducting the program or supervising his participation therein, including a municipality, parish, sheriff, or other entity, nor against any official, employee, or agent of such entity, for any injury or loss as a direct result of lack of supervision or act or omission of the supervisor, unless the injury or loss was caused by the intentional or grossly negligent act or omission of the entity or its official, employee, or agent.

The court may order that the offender not operate a motor vehicle during the period of probation, or such longer time as permitted by state law, or such shorter time as set by the court, unless any vehicle, while being operated by the offender, is equipped with a functioning ignition interlock device in compliance with the requirements of R.S. 14:98.5(C) and R.S. 32:378.2.

(c) If the offender had a blood alcohol concentration of 0.15 percent or more by weight based on grams of alcohol per 100 cubic centimeters of blood, at least 48 hours of the sentence imposed pursuant to paragraph (b) of this section shall be served without the benefit of parole, probation, or suspension of sentence. Imposition or execution of the remainder of the sentence shall not be suspended unless the offender complies with paragraph (b)(1) or (b)(2) of this section.

(d) On a second conviction, notwithstanding any other provision of law to the contrary, regardless of whether the second conviction occurred before or after the first conviction, the offender shall be fined not less than $750.00 nor more than $1,000.00, and imprisoned for not less than 30 days nor more than six months. At least 48 hours of the sentence imposed shall be served without the benefit of parole, probation, or suspension of sentence.

Nothing herein shall prohibit a court from sentencing a defendant to home incarceration, if otherwise allowed under the provisions of Article 894.2 of the Code of Criminal Procedure. Imposition or execution of the remainder of the sentence shall not be suspended unless:

(1) The offender is placed on probation with a minimum condition that he serve 15 days in jail, participate in a court-approved substance abuse program, and participate in a court-approved driver improvement program; or

(2) The offender is placed on probation with a minimum condition that he performs 30 eight-hour days of court-approved community service activities, at least one-half of which shall consist of participation in a litter abatement or collection program; participate in a court-approved substance abuse program; and participate in a court-approved driver improvement program. An offender who participates in a litter abatement or collection program pursuant to this subparagraph shall have no cause of action for damages against the entity conducting the program or supervising his participation therein, including a municipality, parish, sheriff, or other entity, nor against any official, employee, or agent of such entity, for any injury or loss as a direct result of lack of supervision or act or omission of the supervisor, unless the injury or loss was caused by the intentional or grossly negligent act or omission of the entity or its official, employee, or agent.

The court shall order that the offender not operate a motor vehicle during the period of probation, or such longer time as permitted by state law, or such shorter time as set by the court, unless any vehicle, while being operated by the offender, is equipped with a functioning ignition interlock device in compliance with the requirements of R.S. 14:98.5(C) and R.S. 32:378.2.

(e) If the offender had a blood alcohol concentration of 0.15 percent or more by weight based on grams of alcohol per 100 cubic centimeters of blood, at least 96 hours of the sentence imposed pursuant to paragraph (d) of this section shall be served without the benefit of

parole, probation, or suspension of sentence. Imposition or execution of the remainder of the sentence shall not be suspended unless the offender complies with paragraph (d)(1) or (d)(2) of this section.

(f) Any offense under this section committed more than ten years prior to the commission of the crime for which the defendant is being tried shall not be considered in the assessment of penalties hereunder.

(g) Court-approved substance abuse programs provided for herein shall include a screening procedure to determine the portions of the program which may be applicable and appropriate for individual offenders.

(h) This subsection shall be cited as the "Child Endangerment Law." When, in addition to the elements of the crime as set forth in subsection (a) of this section, a minor child 12 years of age or younger was a passenger in the motor vehicle, aircraft, watercraft, vessel, or other means of motorized conveyance at the time of the commission of the offense, the execution of the appropriate minimum mandatory sentences provided herein shall not be suspended.

(i) For the purposes of determining whether a defendant has a prior conviction for violation of this section, the following shall constitute a prior conviction and determination of such shall be made by the court as a matter of law: a conviction under La. R.S. 14:98, vehicular homicide, vehicular negligent injuring, or a conviction under the laws of any state or an ordinance of any municipality, town, or similar political subdivision of another state, which prohibits the operation of any motor vehicle, aircraft, watercraft, vessel, or other means of motorized conveyance while intoxicated, while impaired, or while under the influence of alcohol, drugs, or any controlled dangerous substance.

(Code 1956, § 38-110; M.C.S., Ord. No. 27404, § 1, 5-4-17)

State law references—Operating a vehicle while intoxicated, R.S. 14:98; operating a vehicle under the influence of alcoholic beverages, R.S. 32:661.

Sec. 154-382. Reckless operation of a vehicle.

(a) Reckless operation of a vehicle is the operation of any motor vehicle, aircraft, watercraft, or other means of conveyance in a criminally negligent or reckless manner.

(b) Whoever commits the offense of reckless operation of a vehicle shall be fined not less than $50.00 or imprisoned for not less than ten days or both.

(Code 1956, § 38-111)

State law reference—Reckless operation of a vehicle, R.S. 14:99.

Sec. 154-383. Careless operation of a vehicle.

Any person who operates any vehicle upon a highway or operates a streetcar upon a highway or neutral ground carelessly, and in disregard to the rights and safety of themselves or others, shall be guilty of careless driving.

(Code 1956, § 38-111.1)

State law reference—Careless operation of a vehicle, R.S. 32:58.

Sec. 154-384. Hit and run driving.

(a) Hit and run driving is the intentional failure of the operator of a vehicle involved in or causing any accident to stop such vehicle at the scene of the accident to give his identity and to render reasonable aid.

(b) To give his identity, for the purpose of this section, shall mean that the operator of any vehicle involved in any accident shall provide his name, address, and the license number of his vehicle to witnesses present at the accident or shall report the accident to the police immediately.

(c) Whoever is convicted of hit and run driving shall be fined not less than $50.00 nor more than $300.00 or imprisoned for not less than ten days, or both.

(Code 1956, § 38-112)

State law reference—Hit and run driving, R.S. 14:100.

Sec. 154-385. Reporting accidents.

(a) Any person who, as a principal as defined in this chapter, is involved in a traffic accident occurring on a street of the city, must report such accident to the police department immediately, by the quickest means of communication; provided, however, the accident need not be reported to the police department, where:

(1) There is no injury or death;

(2) Total property damage appears not to exceed $500.00;

(3) Where all vehicles are capable of being driven away from the scene of the accident; and

(4) Where all principals agree not to call the police department.

(b) This section shall not waive the provisions of section 154-384.
(Code 1956, § 38-113; M.C.S., Ord. No. 19,275, § 1, 6-17-99)

State law reference—Accident reports, R.S. 32:398.

Sec. 154-386. Mandatory movement of vehicles.

(a) In all accidents, regardless of the amount of damage sustained by either vehicle, where:

(1) Traffic flow is being impeded by the accident vehicles remaining in position;

(2) Either or all vehicles are capable of being moved under its own power;

(3) There is no death or serious injury;

the principals involved whose vehicles are capable of being moved are required to move same to the nearest available parking, emergency or no-traffic lane, provided, said move can be made in safety and without the aggravation of any injuries.

(b) By this section the principals are directed to remove their vehicles off any bridge, expressway or interstate highway where there is no available parking, emergency or no-traffic lane, or off the exit or entrance ramps of any bridge, expressway or interstate highway to the nearest available parking emergency or no-traffic lane. Any violation of the provisions of this section shall constitute obstruction of traffic.

(c) In every event, the principals must remain on the scene until the provisions of sections 154-384 and 154-385 have been complied with.
(Code 1956, § 38-113.1)

Sec. 154-387. Driving on curbs or on neutral grounds prohibited.

Whoever shall drive a vehicle of any description over curbs or upon or over a neutral ground shall be guilty of a misdemeanor.
(Code 1956, § 38-116)

Sec. 154-388. Off road operation.

(a) No person shall operate any motor vehicle within 5,000 feet of a residential zoning district and off of a public right-of-way.

(b) Nothing in this section shall be deemed or construed to prohibit the operation of a motor vehicle off of a public right-of-way as required for ingress to or egress from a public right-of-way or in conjunction with the parking, storing or servicing of such motor vehicle, in a manner not otherwise prohibited by law.
(Code 1956, § 38-117)

Sec. 154-389. Driving on streetcar tracks.

(a) The driver of any vehicle proceeding upon any streetcar tracks in front of a streetcar upon such a street shall remove such vehicle from the tracks as soon as practical after a signal from the operator of such streetcar.

(b) When a streetcar has lawfully entered and is crossing an intersection, no driver of a vehicle shall drive upon or across the car tracks within the intersection in front of such streetcar.

(c) The driver of a vehicle upon overtaking and passing a streetcar shall not turn in front of such streetcar so as to interfere with or impede its movement.
(Code 1956, § 38-118)

Sec. 154-390. Following authorized emergency vehicle.

The driver of any vehicle, other than one on official business, shall not follow any authorized emergency vehicle responding to an emergency closer than 500 feet. In the event the authorized emergency vehicle is a piece of firefighting

apparatus, no vehicle shall park or be driven into the block wherein the fire apparatus has stopped in answer to a fire alarm.
(Code 1956, § 38-119)

Sec. 154-391. Crossing fire hose prohibited.

No streetcar or vehicle shall be driven over any unprotected hose of the fire department when laid down on any street, private driveway or streetcar track to be used at any fire or alarm of fire without the consent of the fire department official in command.
(Code 1956, § 38-120)

Sec. 154-392. Drivers in a procession.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practical and shall follow the vehicle ahead as closely as is practical and safe, and shall obey all traffic laws.
(Code 1956, § 38-121)

Sec. 154-393. Funeral procession to be identified.

A funeral procession composed of a procession of vehicles shall be identified by the display of an approved pennant by the funeral director in charge on the lead vehicle, and the display of lighted headlights by all vehicles comprising the funeral procession. The pennant device shall be approved by the superintendent of police.
(Code 1956, § 38-122)

Sec. 154-394. Driving through funeral or other procession.

No driver of a vehicle or motorman of a streetcar shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this chapter. This provision shall not apply at intersections where traffic is controlled by traffic control devices, signs or police officers.
(Code 1956, § 38-123)

State law reference—Following vehicles, R.S. 32:81.

Sec. 154-395. Restricted access.

No person shall drive a vehicle onto or from any limited-access roadway except at such entrances and exits as are established by public authority.
(Code 1956, § 38-125)

Sec. 154-396. Objects projecting from rear; red flag or light.

(a) Any vehicle carrying a pole or other object or material which projects more than four feet from the rear end of such vehicle shall, during the period from sunset to sunrise, display a red light at or near the end of the pole or other object or material so projecting. During the period from sunrise to sunset such vehicle shall display a red flag, the dimensions of which shall not be less than 12 inches square, at or near the end of such pole or other object or material so projecting.

(b) When one vehicle is towing another, the drawbar or other connection shall be of sufficient strength to pull all weight towed thereby, and such drawbar or other connection shall not exceed 15 feet from one vehicle to the other, except the connection between any two vehicles transporting poles, pipe, machinery or other objects of a structural nature which cannot readily be dismembered.

(c) No vehicle shall push another vehicle at a speed in excess of 15 miles per hour.
(Code 1956, § 38-129)

State law reference—Projecting loads on vehicles, R.S. 32:380.

Sec. 154-397. Opening and closing vehicle doors.

(a) No person shall open any door of a motor vehicle located on a highway without first taking due precaution to ensure that his act shall not interfere with the movement of traffic or endanger any other person or vehicle.

(b) No person shall leave any door of a motor vehicle located on a highway open on the side adjacent to moving traffic for a period of time longer than necessary to load or unload passengers.

(c) No person shall load or unload merchandise or freight from that side of a motor vehicle available to moving traffic in such a manner as to impede the right-of-way of any vehicle travelling in such adjacent moving traffic lane.
(Code 1956, § 38-130; M.C.S., Ord. No. 27365, § 3, 4-20-17)

State law reference—Opening and closing vehicle doors, R.S. 32:283.

Sec. 154-398. Unattended or disabled motor vehicle.

(a) No person driving or in charge of any motor vehicle shall permit it to stand unattended without complying with the following requirements:

(1) Stopping the motor, locking the ignition, and removing the key.

(2) Setting the brake.

(3) Turning the front wheels to the curb or side of the highway when standing on any grade, hill or slope. Failure to comply with any of the above requirements in subsections (1), (2), or (3) of this section when necessary shall constitute a violation of this section.

(b) If a vehicle is disabled, the person in charge of such vehicle shall not leave it for any length of time longer than necessary to procure aid and repair and shall warn other traffic of the traffic impediment.
(Code 1956, § 38-131)

State law references—Stopping, standing or parking outside business or residence districts, R.S. 32:141(B); unattended motor vehicles, R.S. 32:145.

Sec. 154-399. Obstruction to driver's view or driving mechanism.

(a) No person shall drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons exceeding three, as to obstruct the view of the driver to the front, sides or rear of the vehicle or as to interfere with the driver's control of the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such a position as to interfere with the view of the driver to the front, side or rear of the vehicle or to interfere with his control over the driving mechanism of the vehicle.

(c) No person shall drive any vehicle with any nontransparent material upon the windshield, side wings, side or rear windows, other than a certificate or other paper required to be so displayed by law, or permitted by regulation of the state department of highways.
(Code 1956, § 38-132)

State law reference—Obstruction to driver's view or driving mechanism, R.S. 32:282.

Sec. 154-400. Drivers to use reasonable vigilance.

The operator of any vehicle in this city shall maintain a reasonable vigilance at all times while driving, sufficient to avoid collision with another vehicle, pedestrian, or other private or public property.
(Code 1956, § 38-137)

State law reference—Careless operation of a vehicle, R.S. 32:58.

Sec. 154-401. Following too closely.

The driver of a motor vehicle shall not follow another vehicle too closely than is reasonable and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.
(Code 1956, § 38-138)

State law reference—Following vehicles, R.S. 32:81.

Sec. 154-402. Spillage of dirt, garbage, trash, etc.

(a) It shall be unlawful for any person to operate or cause to be operated any vehicle or other mobile equipment being used for the hauling of earth, waste materials, garbage, trash, or other loose materials, in such manner as to cause or permit the spillage, dropping or casting of any portion thereof upon the streets, sidewalks, or public ways, or in any other manner which would create a nuisance.

(b) It shall be unlawful for any person to operate or cause to be operated any vehicle or other mobile equipment being used for the hauling of garbage, or trash, unless such garbage or trash is completely covered by a securely fastened tarpaulin, or other similar covering, and unless the tailgate of such vehicle is secured in such manner as to prevent spillage of any portion of the garbage or trash being transported upon the streets, sidewalks, or other public ways.
(Code 1956, § 38-140)

State law references—Loads on vehicles; care required thereto, R.S. 32:383.

Sec. 154-403. Reserved.

Editor's note—§ 154-403 was deleted pursuant to § 2 of Ord. No. 20,261, adopted August 2, 2001, which deleted certain provisions relating to littering of public streets and public property. § 1 of this ordinance amended § 66-282, which pertains to littering, dumping, and dumping of specific materials. Formerly, § 154-403 pertained to the prohibition of littering from motor vehicles, and derived from the 1956 Code, § 38-141.

Sec. 154-404. Operation on flooded or closed streets.

(a) It shall be unlawful for any person to operate any motor vehicle or boat on the streets, roads, highways or bridges which are flooded or inundated within this city either (i) in excess of a speed of five miles per hour or (ii) in such a manner as to cause water, waves or wakes to damage property alongside of or adjacent to such streets, roads, highways or bridges at any speed.

(b) No person shall in any way tamper with, move, damage or destroy any barricades, signs or signals placed upon any streets, roads, highways or bridges within the city by any department of the city government or any other governmental agency in connection with any such street, road, highway or bridge being flooded or inundated, nor shall any person disobey the instructions, signals, warnings or markings of any warning sign, signal, city employee, or barricade so placed on any such street, road, highway or bridge which is flooded or inundated, unless at the time having been expressly so directed by a police officer of the state or city.

(c) It shall be unlawful for any person to operate any motor vehicle on the streets, roadways, highways, or bridges within the city when signage, signals, warnings, or markings are in place that indicate or designate that such street, roadway, highway, or bridge is closed. Such signage, signals, warnings, or markings are intended to notify and warn such operators of an impaired or flooded street, roadway, highway, or bridge, and that passage thereon is prohibited.

(d) Any person may file an affidavit with the Traffic Court of New Orleans complaining of a violation of this section in accordance with City Code section 154-142 and R.S. 13:2512.
(Code 1956, § 38-144; M.C.S., Ord. No. 20,904, § 1, 10-17-02; M.C.S., Ord. No. 28186, § 1, 9-5-19)

Sec. 154-405. Motor vehicles operating in bicycle lanes.

(a) No person shall operate a motor vehicle in a bicycle lane except as follows:

(1) To prepare for a turn within a distance of 200 feet from the intersection.

(2) To enter or leave the roadway onto an alley, private road, or driveway.

(3) To enter or leave a parking space when parking is permitted adjacent to the bicycle lane.

(b) Any person operating a motor vehicle upon a bicycle lane in accordance with subsection (a) of this section shall yield the right-of-way to all bicycles and electric mobility aids within the bicycle lane.

(c) This section shall not prohibit the use of a motorized bicycle in a bicycle lane when the operator travels at no speed greater than what is reasonable or prudent, has due regard for visibility, traffic conditions, and the condition of the roadway surface of the bicycle lane and in a manner which does not endanger the safety of bicyclists.

(d) In case of an emergency, the driver of a motor vehicle may lawfully operate the vehicle in a bicycle lane in accordance with the normal standards of prudent conduct to protect the

driver and others from harm. When the emergency ends, the motor vehicle shall not be operated in the bicycle lane.

(e) Any person found in violation of this section shall be fined not less than $300.00, nor more than $500.00.
(M.C.S., Ord. No. 27363, § 1, 4-20-17; M.C.S., Ord. No. 28047, § 1, 3-28-19)

Sec. 154-406. Limitations on passing bicycles.

The operator of a motor vehicle, when overtaking and passing a bicycle proceeding in the same direction on the roadway, shall exercise due care while the motor vehicle is passing the bicycle and shall leave a safe distance between the motor vehicle and the bicycle of not less than three feet and shall maintain such clearance until safely past the overtaken bicycle. An operator of a motor vehicle may pass a bicycle traveling in the same direction in a no-passing zone only when it is safe to do so.
(M.C.S., Ord. No. 27363, § 1, 4-20-17)

Sec. 154-407. Harassment of bicyclists prohibited.

It shall be unlawful to harass, taunt, or maliciously throw objects at or in the direction of any person riding a bicycle.
(M.C.S., Ord. No. 27363, § 1, 4-20-17)

Secs. 154-408—154-435. Reserved.

DIVISION 3. TURNING AND STOPPING RULES

Sec. 154-436. Required position and method of turning at intersections.

The driver of a vehicle intending to turn at any intersection shall proceed as follows:

(1) *Right turns.* Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or the edge of the roadway.

(2) *Left turns on two-way roadways.* At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline thereof and by passing to the right of such centerline where it enters the intersection and after entering the intersection, the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered. Whenever practicable, the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

(3) *Left turns on other than two-way roadways.* At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection the left turn shall be made so as to leave the intersection in the safest lane lawfully available to traffic moving in such direction upon the roadway being entered.

For the purpose of this section, each roadway of a boulevard shall be considered as an independent one-way street.
(Code 1956, § 38-75)

State law reference—Required position and method of turning at intersections, R.S. 32:101.

Sec. 154-437. Position, signal for change of direction, starting and stopping.

(a) No person shall turn a vehicle at an intersection, unless the vehicle is in proper position upon the roadway as required in section 154-436 or turn a vehicle to enter a private roadway or road or to otherwise turn a vehicle from a direct course or move right or left upon a roadway unless and until such movement can be made with reasonable safety, or without interfering with the right-of-way of the vehicles traveling lawfully in their proper lanes on the same street, or on intersecting streets.

(b) A signal of intention to turn right or left from the roadway shall be given continuously during not less than the last 100 feet travelled by the vehicle before turning.

(c) No person shall stop or suddenly decrease the speed of a vehicle without first giving the signal provided by law to the driver of any vehicle immediately to the rear when there is an opportunity to give such signal.
(Code 1956, § 38-76)

State law reference—Turning movements and required signals, R.S. 32:104.

Sec. 154-438. Improper starting or backing.

(a) No person shall start a vehicle which is stopped, standing or parked unless and until such movement can be made with reasonable safety, or without interfering with the right-of-way of other vehicles travelling lawfully in adjacent or intersecting lanes of traffic.

(b) The driver of a vehicle shall not back it unless such movement can be made with reasonable safety or without interfering with the right-of-way of other vehicles travelling lawfully on the same street or intersecting streets, nor for a distance of over 60 feet, nor at a speed in excess of ten miles per hour.
(Code 1956, § 38-77)

State law references—Moving parked vehicles, R.S. 32:103; limitations on backing, R.S. 32:281.

Sec. 154-439. Signals by hand or arm or signal device.

Any stop or turn signal when required in this division shall be given either by means of the hand and arm or by a signal lamp or mechanical device of the type as approved by the director of the state department of highways, but when a vehicle is so constructed or loaded that a hand and arm signal would not be visible both to the front and rear of such vehicle then such signal must be given by a lamp or signal device.
(Code 1956, § 38-78)

State law reference—Signals by hand or arm or signal device, R.S. 32:105.

Sec. 154-440. Method of giving hand and arm signals.

(a) All signals required to be given by hand and arm shall be given from the left side of the vehicle in the following manner, and such signals shall indicate as follows:

(1) *Left turn.* Hand and arm extended horizontally, with the hand open and the back of the hand to the rear.

(2) *Right turn.* Hand and arm extended upward at an angle of 95 degrees from shoulder or elbow, with the hand open and the back of the hand to the rear. A bicyclist may also extend the right hand and arm horizontally with the hand open and back of the hand to the rear.

(3) *Stop, decrease speed or start.* Hand and arm extended downward at an angle of 45 degrees from shoulder or elbow, with the hand open and the back of hand to the rear.

(4) *Pulling from curb or side of highway.* The same as for left turn.

(b) A bicyclist is not required to continuously give the signals required by subsection (a) of this section if the hand or arm is needed to control the bicycle.
(Code 1956, § 38-79; M.C.S., Ord. No. 27365, § 4, 4-20-17)

State law reference—Methods of giving hand and arm signals, R.S. 32:106.

Sec. 154-441. Authority to place and obedience to turning markers.

The city traffic engineer is hereby authorized to place markers, buttons or signs within or adjacent to intersections indicating the course to be travelled by vehicles turning at intersections and such course to be travelled as so indicated may conform to or be other than as prescribed by ordinance. When authorized markers, buttons or other indications are placed within an intersection indicating the course to be travelled by vehicles executing such turns, no driver of a vehicle shall disobey such indications.
(Code 1956, § 38-80)

Sec. 154-442. Authority to place restricted turn signs, obedience.

(a) The city traffic engineer may determine those locations at which drivers of vehicles shall not make a right, left or "U" turn and shall place proper signs at such locations. The making of turns may be prohibited between certain hours of any day and permitted at other hours, in which event, such hours shall be plainly indicated on the signs or they may be removed when such turns are permitted.

(b) Whenever authorized signs are erected indicating that no right, left or "U" turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.
(Code 1956, § 38-81)

Sec. 154-443. Limitations on turning around; use of storage lanes while turning.

(a) The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any through street or upon any street in a business district other than a boulevard and shall not, upon any other street, so turn a vehicle unless such movement can be made in safety and without interfering with the right-of-way of approaching traffic either in opposing lanes or intersecting lanes of traffic.

(b) No vehicle shall be turned so as to proceed in the opposite direction upon any curve or upon the approach to or near the crest of a grade where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 300 feet.

(c) At those intersections having storage lanes for turning movements, it shall be unlawful for the driver of any vehicle to turn any place other than through such storage lanes.
(Code 1956, § 38-82)

State law reference—Turning on curve or crest of grade prohibited, R.S. 32:102.

Secs. 154-444—154-480. Reserved.

DIVISION 4. RIGHT-OF-WAY RULES

Sec. 154-481. Vehicle obedience to yield signs.

The driver or operator of a vehicle approaching a yield sign shall slow down to a speed reasonable for the existing conditions, or shall stop if necessary before entering the crosswalk on the near side of the intersection, or if there is no crosswalk, at a clearly marked stop line, but if none, then at a point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway. Having stopped or slowed in this manner, the driver shall yield the right-of-way to any pedestrian legally crossing the roadway on which he is driving, and to any vehicle in the intersection or approaching on another highway so closely as to constitute an immediate hazard.
(Code 1956, § 38-98)

State law reference—Stop signs and yield signs, R.S. 32:123.

Sec. 154-482. Vehicles entitled to right-of-way on certain intersecting streets.

(a) Upon entering or crossing a boulevard from any street on which no traffic control sign or signal is erected, the driver of a vehicle or operator of a streetcar shall proceed cautiously, yielding to vehicles which are within the intersection or approaching so closely as to constitute an immediate hazard.

(b) The driver of a vehicle approaching an intersection shall yield the right-of-way to a vehicle which has entered the intersection from a different highway.

(c) When two vehicles enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(d) The right-of-way rules declared in subsections (b) and (c) of this section are modified at through streets and otherwise as stated in this chapter.
(Code 1956, § 38-99)

State law reference—Vehicles approaching or entering intersection, R.S. 32:121.

Sec. 154-483. Vehicle emerging from an alley or private driveway to yield right-of-way.

The driver of a vehicle emerging from any alley, driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or the sidewalk area extending across any alleyway, yielding the right-of-way to any pedestrian, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.
(Code 1956, § 38-100)

State law reference—Similar provisions, R.S. 32:124.

Sec. 154-484. Stop when traffic obstructed.

No driver of a vehicle or operator of a streetcar shall enter an intersection or a crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(Code 1956, § 38-101)

State law reference—Stopping, standing or parking prohibited in specified areas, R.S. 32:143(3).

Sec. 154-485. Overtaking and passing school bus.

(a) The driver of a vehicle, upon meeting or overtaking from either direction, any school bus which has stopped on the roadway for the purpose of receiving or discharging any school children shall stop the vehicle before reaching such school bus, when there is in operation on such school bus a visual signal denoting same, and such driver shall not proceed until such school bus resumes motion or is signalled by the school bus driver to proceed, or the visual signals are no longer actuated.

(b) The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

(c) It shall be a violation of this section for any school bus driver to stop such bus for the purpose of receiving or discharging passengers without first actuating a visual signal denoting same.
(Code 1956, § 38-102)

State law reference—Similar provisions, R.S. 32:80.

Sec. 154-486. Obedience to signal indicating approach of railroad train.

(a) Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop not less than 15 feet from the nearest rail of such railroad and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

(1) A clearly visible electrical or mechanical signal device gives warning of the immediate approach of a railroad train;

(2) A crossing gate is lowered or a human flagman gives or continues to give a signal of the approach or passage of a railroad train;

(3) A railroad train approaching within approximately 1,500 feet of the highway crossing emits a signal audible from such distance and such railroad train by reason of its speed or nearness to such crossing is an immediate hazard; or

(4) An approaching railroad train is plainly visible and is in hazardous proximity of such crossing.

(b) No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad grade crossing while such gate or barrier is closed or is being opened or closed.
(Code 1956, § 38-103)

State law reference—Similar provisions, R.S. 32:171.

Sec. 154-487. Operation of vehicles and streetcars on approach of authorized emergency vehicle.

(a) Upon the immediate approach of an authorized emergency vehicle giving audible or visible signals, or in the case of a police vehicle, with an audible signal only:

(1) The driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer; and

(2) The operator of every streetcar shall immediately stop such streetcar clear of any intersection and keep it in such a position until the authorized emergency vehicle has passed except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for safety of all persons using the highway.
(Code 1956, § 38-22)

State law reference—Similar provisions, R.S. 32:125.

Secs. 154-488—154-530. Reserved.

ARTICLE VI. SPEED REGULATIONS

Sec. 154-531. General limit.

It shall be unlawful for the driver of any vehicle to exceed a speed limit of 25 miles per hour upon the streets of the city, except as provided in this article on through streets or upon boulevards or upon those streets or parts designated in section 154-533.
(Code 1956, § 38-73(a))

Sec. 154-532. Thirty, 35 mph speed zones.

It shall be unlawful for the driver of any vehicle to exceed a speed limit of 30 miles per hour upon any through street designated in schedule II, section 154-1193, or for the driver of any vehicle to exceed a speed limit of 35 miles per hour upon any boulevard of the city except upon the streets or parts of streets designated in section 154-533.
(Code 1956, § 38-73(b))

Sec. 154-533. When not operative.

The speed limits set out in sections 154-531 and 154-532 shall not be operative where otherwise posted by the traffic engineering division of the city and set out in schedule III, section 154-1194. Such speed limits shall also not be operative on all urban extensions and state maintained highways within the city, where they shall be the same as the speeds posted and designated by the state department of highways.
(Code 1956, § 38-73(c))

Sec. 154-534. School zones.

(a) Within the limits of all school zones where authorized signs designating them as school zones are posted at the entrance and exit of the school zone, and within 100 feet upon every designated approach to and within those intersections designated as "School Crossings" and where authorized signs designating such "School Crossings" are posted, it shall be unlawful for the driver of any vehicle to exceed a speed limit of 20 miles per hour one hour before and one hour after the beginning of a school day and one hour before and one hour after the end of a school day.

(b) When and where so designated by a traffic engineer, motorists shall be given proper warning by flashing beacons or other appropriate systems that the speed limit described in subsection (a) is being enforced.

(c) A traffic engineer shall ensure operability of all authorized flashing beacons erected as described in subsection (b), including that such beacons flash during the hours required by this section. If such flashing beacons are inoperable, or do not flash as intended, violations of this section shall not be enforced.

(d) This regulation shall only apply on school days during the specified time periods when children are in school.
(Code 1956, § 38-73(d); M.C.S., Ord. No. 24948, § 1, 7-12-12; M.C.S., Ord. No. 29369, § 1, 3-9-23; M.C.S., Ord. No. 30250, § 1, 3-13-25)

Sec. 154-535. Playground zones.

The city traffic engineer shall erect caution signs in the vicinity of all playgrounds; he shall also mark whatever crosswalks in playground zones that he may deem necessary. Notwithstanding any other speed regulations of this article, no person shall drive a vehicle, while in a playground zone, at a speed greater than is reasonable and prudent under the conditions and having regard to the actual and potential hazards then existing. In every event, speed shall be so controlled as may be necessary to avoid colliding with any person, vehicle or other conveyance upon or entering a roadway.
(Code 1956, § 38-73(e))

Sec. 154-536. Alleys.

It shall be unlawful for the driver of any vehicle to exceed the speed of ten miles per hour in all public alleys.
(Code 1956, § 38-73(g))

Sec. 154-537. Parks.

It shall be unlawful for the driver of any vehicle to exceed the speed of 20 miles per hour on any roadway within the boundaries of any park in the city unless otherwise posted.
(Code 1956, § 38-73(i))

Sec. 154-538. Lake Forest Boulevard.

It shall be unlawful for the drivers of any vehicle to exceed a speed limit of 20 miles per hour upon Lake Forest Boulevard from Read Boulevard to Deer Park.
(Code 1956, § 38-73(l))

Sec. 154-539. Minimum speed regulations—Generally.

No person shall drive a motor vehicle at such a speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law. Where feasible and necessary the city traffic engineer may determine minimum speed limits applicable to certain streets, or portions of streets and such limits shall be binding on all drivers on such streets when signs are posted specifying such minimum speed limits.
(Code 1956, § 38-73(f))

Sec. 154-540. Same—U.S. Highway 90 Business, hours.

(a) It shall be unlawful for the driver of any vehicle to drive slower than 25 miles per hour on that section of U.S. Highway 90 Business (Greater New Orleans Mississippi River Bridge) between Camp Street and the West Bank Toll Plaza.

(b) This minimum speed limit shall apply only between the hours of 6:30 a.m. and 8:30 a.m. for east-bound traffic and only between the hours of 4:30 p.m. and 6:30 p.m. for west-bound traffic, excluding Saturdays and Sundays and those holidays which are specified elsewhere in this Code.
(Code 1956, § 38-73(j))

Sec. 154-541. Trucks, tractors or trailers—Generally.

It shall be unlawful for the driver of any truck, tractor or trailer, whose combined weight of body and load exceeds five tons, to exceed a speed limit of 15 miles per hour upon any undivided street or upon any divided street which has only one moving lane of traffic on each side of the median, provided that said 15 mile per hour speed limit shall not apply to any truck route designation in section 154-1561, nor shall it apply to any street over which regularly scheduled transit passenger service is provided, nor to any street on which prima facie speed limits exist in accordance with section 154-1194, schedule III, nor to any state and federal highway, nor to the driver of any vehicle on an emergency call involving public safety and welfare.
(Code 1956, § 38-73(h))

Sec. 154-542. Same—Lake Forest Boulevard.

It shall be unlawful for the drivers of any bus, truck, tractor or trailer, whose combined weight of body and load exceeds five tons, to exceed a speed limit of 20 miles per hour upon Lake Forest Boulevard, from Read Boulevard to Bullard Avenue.
(Code 1956, § 38-73(k))

Sec. 154-543. Same—Berkley Drive.

It shall be unlawful for the drivers of any bus, truck, tractor or trailer to exceed 20 miles per hour on that section of Berkley Drive between Kabel Drive and Simpson Place.
(Code 1956, § 38-73(m))

Sec. 154-544. Prohibiting the use of radar detection units on certain city streets.

(a) It shall be unlawful for any person to operate any device or mechanism to detect the emission of radio microwaves which are employed by police to measure the speed of motor vehicles for law enforcement purposes upon Louisiana Avenue between Tchoupitoulas Street and South Claiborne Avenue.

(b) It is unlawful to use such device or mechanism commonly known as "fuzz busters" upon any such motor vehicle on Louisiana Avenue between Tchoupitoulas Street and South Claiborne Avenue.

(c) The provisions of this section shall not apply to any receiver of radio waves utilized for lawful purposes to receive any signal from a frequency lawfully licensed by any state or federal agency.
(Code 1956, § 38-73.1)

State law references—Power of local municipal authorities, R.S. 32:41; powers of local parish authorities, R.S. 32:42.

Sec. 154-545. Regulation of speed by traffic signals.

The city traffic engineer may regulate the timing of traffic signals on any street so as to permit the movement of traffic in an orderly and safe manner at speeds slightly at variance from the speeds otherwise applicable on the streets or intersections and may erect appropriate signs giving notice thereof.
(Code 1956, § 38-74)

Sec. 154-546. Maximum speed regulation; Warbler Street.

It shall be unlawful for the driver of any vehicle to exceed a speed limit of 20 miles per hour upon Warbler Street.
(M.C.S., Ord. No. 19,149, § 1, 3-31-99)

Sec. 154-547. Neighborhood slow zones.

(a) The city traffic engineer may establish neighborhood slow zones in which it shall be unlawful for the driver of any vehicle to exceed the speed limits posted by the traffic engineering division of the city and set out in schedule XII, section 154-1203.

(b) The traffic engineering division of the city shall erect signage at all entry points to a neighborhood slow zone with the zone's posted speed limit.
(M.C.S., Ord. No. 28495, § 1, 9-17-20)

Secs. 154-548—154-600. Reserved.

ARTICLE VII. SPECIFIC STREET REGULATIONS*

Sec. 154-601. Authority to designate one-way streets and alleys.

(a) Whenever any law of the city designates any one-way street or alley, the city traffic engineer shall place and maintain signs giving notice thereof, and no such regulations shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movements shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.

*__Cross reference—__Restrictions on stopping by buses, § 122-51.

(b) The city traffic engineer is hereby authorized to, on the basis of engineering studies, and after notifying the superintendent of police, designate any street or portion thereof upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day, and shall place and maintain appropriate markings, signs, barriers or other devices as is necessary to give notice thereof. The city traffic engineer, after notifying the superintendent of police, may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway. It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section.
(Code 1956, § 38-93)

State law reference—One-way roadways, R.S. 32:78.

Sec. 154-602. Effect of designation of one-way streets on movement of vehicles.

Upon those streets and parts of streets and in those alleys described in schedule I, section 154-1191, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic movement are erected and maintained at every intersection where movement in the opposite direction is prohibited.
(Code 1956, § 38-94)

State law reference—One-way roadways, R.S. 32:78.

Sec. 154-603. Through streets designated.

Those streets and parts of streets described in schedule II, section 154-1193, and made a part hereof, are hereby declared to be through streets for the purpose of this section.
(Code 1956, § 38-95)

Sec. 154-604. Erection of traffic control devices.

(a) Whenever any law of the city designates and describes a through street, the city traffic engineer shall place and maintain a traffic signal, stop sign or yield sign on each and every street intersecting such through street or intersecting that portion thereof described and designated as such by any law of the city.

(b) The city traffic engineer may determine and designate intersections where particular hazards exist upon other than through streets and determine whether vehicles shall stop or yield at one or more entrances to any such intersection and shall erect the appropriate traffic control device at every such place.

(c) Every sign erected pursuant to this section relating to required stopping of vehicular traffic shall bear the word "Stop" in letters not less than six inches in height, and such signs shall at nighttime be rendered luminous by:

(1) Steady or flashing internal illumination;

(2) Fixed floodlight projected on the face of the sign; or

(3) Efficient reflecting elements on the face of the sign.

(d) Every stop sign shall be located as near as practicable to the nearest line of the crosswalk on the near side of the intersection or, if none, at the nearest line of the roadway.
(Code 1956, § 38-96)

State law references—Stop signs and yield signs, R.S. 32:123; uniform highway marking system, R.S. 32:235; designating through highways, R.S. 32:265.

Sec. 154-605. Access to Canal Boulevard.

Whenever the Orleans Levee Board Police finds it necessary to close the entrance to Lakeshore Drive at Canal Boulevard due to traffic congestion, the levee board police is hereby authorized to limit access to Canal Boulevard between Robert E. Lee Boulevard and Lakeshore Drive to local residents and to New Orleans Public Service buses by either placing a barricade which leaves one lane open for local traffic or by stationing an officer at this intersection to control said traffic.
(Code 1956, § 38-96.1)

Sec. 154-606. Vehicles and streetcars to stop at stop signs.

When stop signs are erected at or near the entrance of any intersection, every driver of a

vehicle and every operator of a streetcar shall stop such vehicle or streetcar before entering the crosswalk on the near side at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver or operator has a view of approaching traffic on the intersecting roadway before entering the intersection. After having stopped, the driver or operator shall yield the right-of-way to all vehicles which have entered the intersection from another highway, or which are approaching so closely on such highway as to constitute an immediate hazard.
(Code 1956, § 38-97)

State law reference—Similar provisions, R.S. 32:123.

Sec. 154-607. Operation of miniature vehicles in Vieux Carré prohibited.

(a) It shall be unlawful to rent or lease to operate in the Vieux Carré of the city any vehicle which is considered to be a "minivehicle" under the provisions of this section.

(b) A minivehicle for the purpose of this section is defined as follows:

(1) Any three-or four-wheeled vehicle which is or may be powered by gasoline, diesel or electric motor which has been constructed on a scale smaller than the size of the vehicle as originally manufactured and of which it is a miniature reproduction capable of transporting passengers;

(2) Any vehicles, having three or more wheels, bearing a seat, saddle or bench which is propelled or may be propelled by any variety of electromechanical or internal combustion powered means, excluding public utility vehicles and three- or more wheeled vehicles operated by ice cream vendors.

(c) For the purpose of this section, the Vieux Carré is that area bounded by Iberville Street, North Rampart Street, Esplanade Avenue and the Mississippi River.

(d) Whoever violates this section shall be guilty of a misdemeanor and shall be fined no more than $100.00, or imprisoned for not more than 30 days.
(Code 1956, § 38-114.1; M.C.S., Ord. No. 24115, § 1, 9-2-10)

Sec. 154-608. Vieux Carré malls.

The portions of Royal and Bourbon Streets listed in this section shall be closed to vehicular traffic in accordance with the following provisions:

(1) *Royal Street Mall.* Royal Street shall be closed to vehicular traffic from the northern curb of Bienville Street to the southern curb of Orleans Street between the hours of 11:00 a.m. and 4:00 p.m. weekdays and 11:00 a.m. and 7:00 p.m. on Saturdays and Sundays.

(2) *Bourbon Street Mall.*

a. Bourbon Street, from the northern curb of Iberville Street to the southern curb of St. Ann Street, shall be closed to all vehicular traffic except delivery, freight, and service vehicles, as defined in this chapter, and taxicabs, as provided for in subsection c., during the hours commencing at 8:00 p.m. and continuing until 11:00 a.m. of each day, with the exception of New Year's Day, Mardi Gras, and all other occasions declared by resolution of the city council. At those times, all vehicular traffic shall be prohibited at all hours of each day or as otherwise provided by resolution of the city council.

b. During the hours commencing at 6:00 a.m. and continuing until 4:00 p.m. of each day, delivery, freight, and service vehicles, as defined in this chapter, shall be permitted to exclusively park within the areas designated by appropriate signage erected and/or installed by the department of streets, consisting of the riverside curbs of the Bourbon

Street Mall, as defined hereinabove. During these hours, all other vehicles shall be prohibited from parking or stopping in the Bourbon Street Mall.

c. Taxicabs that are either picking up or dropping off passengers in the 300 block of Bourbon Street will be permitted to enter the Bourbon Street Mall from 6:00 a.m. to 4:00 p.m.

(Code 1956, § 38-144.1; M.C.S., Ord. No. 17,161, § 1, 8-17-95)

Secs. 154-609—154-650. Reserved.

ARTICLE VIII. STOPPING, STANDING, PARKING*

DIVISION 1. GENERALLY

Sec. 154-651. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Delivery vehicle means a vehicle having a commercial license plate, truck license plate, or a taxicab with a for-hire taxi license plate and either permanent or magnetic markings on both sides of the vehicle bearing the name of the business.

Equipment vehicle means a vehicle having a commercial or truck license plate with either permanent or magnetic markings on both sides of the vehicle bearing the name of the business and which contains equipment which cannot be transported, but must be used to complete repair work. A work slip showing the name and address of the business being serviced must be displayed in the windshield.

Park or *parking* means the halting of an occupied or unoccupied vehicle, other than temporarily, for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

Self-releasing boot means a device used immobilize a motor vehicle that attaches to its tire or wheel and has a unique locking mechanism that can only be opened with an authorized combination code.

Service vehicle means a vehicle having a commercial or truck license plate with either permanent or magnetic markings on both sides of the vehicle bearing the name of the business and which carries the tools and equipment necessary to complete the repair or service. A work slip showing the name and address of the business being serviced must be displayed in the windshield.

Stop or *stopping* means the halting, where prohibited, even momentarily, of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control sign or signal.

Violator means an owner and/or operator of a vehicle which has been parked in violation of the prohibitions contained in this article.

(Code 1956, § 38-286.1; M.C.S., Ord. No. 18,381, § 1, 8-12-97; M.C.S., Ord. No. 18,395, § 1, 8-21-97; M.C.S., Ord. No. 18,420, § 1, 9-4-97; M.C.S., Ord. No. 23144, § 1, 7-10-08; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Cross reference—Definitions generally, § 1-2.

Secs. 154-652—154-680. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Sec. 154-681. Division of parking—Created.

There is hereby created and established within the department of police, under the supervision and direction of the superintendent of police, a division to be known and designated as the "division of parking" headed by the public park-

*__Cross references—__Administration, ch. 2; minimum requirements for parking lots, § 26-481 et seq.; parking for jurors, § 154-877.1.

ing administrator who shall be appointed by the superintendent of police, in accordance with civil service law.
(Code 1956, § 38-15.1; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-682. Same—Powers, duties.

The public parking administrator shall exercise such powers and duties as are provided in this chapter or in state laws. In particular, the public parking administrator shall:

(1) Enforce regulations involving parking as described in this chapter;

(2) Cooperate with other city officials, private citizens and commercial agencies in ways to improve parking conditions;

(3) Carry out additional powers and duties imposed by the laws of the city.

(Code 1956, § 38-15.1; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-683. Parking violations.

The public parking administrator shall establish and maintain the parking violations branch for the processing of parking tickets and for the convenient payment of fines, penalties and cash bonds relating to parking violations.
(Code 1956, § 38-26)

Sec. 154-684. Parking adjudication bureau—Creation.

There is hereby created and established within the chief administrative office of the city, under the supervision of the chief administrative officer, a parking adjudication bureau which shall have jurisdiction of violations of any civil regulations of parking which is provided for in this article. Pursuant to section 4-302(5) of the home rule charter of the city, the chief administrative office may prescribe that the parking adjudication bureau be administered by another department of the city. The chief administrative officer, with the approval of the council, shall contract for the services of a chief hearing examiner and other such hearing examiners who shall preside at hearings for the adjudication of parking violations in this article. The chief administrative officer shall give consideration to persons with Spanish surnames, females, blacks and other minorities in the appointment of the chief hearing examiner and other hearing examiners required by the provisions of this chapter. Each hearing examiner shall be a resident of the parish and shall have been admitted to the practice of law in this state for a period of at least four years immediately preceding his selection. A hearing examiner may be selected from a list of qualified candidates who have satisfied the standards to be established by a duly constituted committee of parish attorneys. Such hearing examiners shall not be considered to be employees of the city.
(Code 1956, § 38-286.2; M.C.S., Ord. No. 16,687, 10-6-94)

Sec. 154-685. Same—Functions, powers and duties.

The parking adjudication bureau, organized, supervised, and headed by a chief hearing examiner, shall have the following functions, powers and duties:

(1) To accept admissions to, and to hear and determine contests of parking violations under this article;

(2) To issue subpoenas to compel the attendance of a person to give testimony at hearings and to compel the production of relevant books, papers and other things;

(3) To adjudicate all parking violations for which a parking citation has been issued under this article;

(4) To compile and maintain complete and accurate records relating to all citations, violations and/or dispositions of parking violations and citations and upon request to prepare complete and accurate transcripts of all hearings conducted by the bureau and to furnish such transcripts to the violator at such violator's expense;

(5) To answer within a reasonable period of time all relevant and reasonable inquiries made by a person charged with a parking violation or his attorney concerning the notice of violation served on that person.

The bureau must also furnish at the scheduled administrative hearing, to the person charged on his request, a copy of the original notice of violation including all information contained thereon. This shall be the bureau's only obligation under this subsection to provide a copy of the original notice of violation to the person charged. Failure by the bureau to comply with the provisions of this subsection or any part of the provisions of this subsection, within 45 days of such inquiry, forwarded to the bureau by certified or registered mail, return receipt requested, will result, upon the request of the person charged, in an automatic dismissal of all charges relating to and only to that notice of violation to which the inquiry was made.

(Code 1956, § 38-286.3)

Sec. 154-686. Civil nature of parking and stopping violations.

The civil regulation of parking and stopping (hereinafter sometimes referred to as "parking") shall be governed by this article. Any parking violation prohibited in this article shall be a civil violation only and no criminal penalty will be imposed for its commission. For purposes of this article, a parking violation is the violation of any provision of this article providing for or regulating the parking or stopping of a vehicle. Nothing contained in this article shall be construed to repeal, restrict or amend any other section of this chapter which other section shall continue to remain and remain in full force and effect as if this article had not been adopted.

(Code 1956, § 38-286)

Sec. 154-687. Parking citation forms.

(a) The parking citation shall be the notice of violation for purposes of this article.

(b) The parking citation shall contain information concerning the nature, date, time, location of the alleged violation, the state vehicle license plate number, and make of car. In those cases where a license plate is not visible and/or legible, either the vehicle identification number or the brake inspection tag number shall be in lieu of the state vehicle plate number. In the case of livery vehicles the certificates of public necessity and convenience number (CPNC) shall be in lieu of the state vehicle license plate number. In the case of overparking in a space regulated by a multispace pay station or single/double space parking meter, the parking citation shall contain the number of the meter at which the vehicle is overparked. The parking citation shall also contain information advising the person charged of the manner and time in which he may contest the violation charged in the notice. The parking citation shall also provide that a failure to timely answer or appear before a hearing examiner shall be considered a prima facie admission of the violation set forth in the parking citation, in which event the hearing examiner may assess the appropriate fine or fines and all penalties incidental thereto.

(Code 1956, § 38-286.4; M.C.S., Ord. No. 22035, § 2, 8-4-05)

Sec. 154-688. Service of parking citations.

(a) A parking citation shall be served personally upon the operator of a vehicle who is present at the time of service. If the operator is not so served, or is not present, the parking citation shall be served upon the registered owner of the vehicle by affixing the parking citation to the vehicle in a conspicuous place thereon. The original parking citation shall be signed by the issuing officer who shall affirm the truth of the facts set forth therein. An operator of a vehicle who is not the owner thereof, but who uses or operates the vehicle with permission of the owner, express or implied, shall be considered the agent of the owner to receive a parking citation required to be served upon the operator or registered owner of a vehicle in accordance with the provisions of this section.

(b) If the registered owner or operator of a vehicle drives the vehicle away from or in any manner leaves the site of the violation while the issuing officer is preparing the parking citation, or refuses service of the parking citation and drives away from or in any manner leaves the site of the violation, this fact shall be duly noted on the original and all copies of the parking

citation. This original and all copies of a parking citation shall constitute a business record of the city and shall constitute prima facie evidence that the parking citation was issued and that an attempt at service thereof was made in accordance with the provisions of this section.
(Code 1956, § 38-286.5)

Sec. 154-689. Disposition of parking citations.

(a) The original parking citation shall be signed by the issuing officer, and shall be processed in accordance with this article and such other procedures as may be established and promulgated by the chief administrative officer.

(b) A parking citation may be dismissed by a hearing examiner prior to an adjudication hearing only upon his written statement for good cause shown, which statement shall be made a part of the disposition record thereof.

(c) Any person who has received a civil parking citation issued under the authority of this article and a parking ticket charging a criminal violation arising out of the same set of facts as the civil parking citation, may either:

(1) Present the civil parking citation and the parking ticket charging a criminal violation to the city attorney or an assistant city attorney designated by him, who shall enter a nolle prosequi of the parking ticket charging a criminal violation; or

(2) Present the civil parking citation and the parking ticket charging a criminal violation to the parking adjudication bureau which shall dismiss the civil parking citation.

(d) Any person who has received a parking citation charging a criminal violation prior to May 19, 1986, may present such citation to the parking adjudication bureau and elect to contest such citation under the procedures set forth herein for the contesting of civil parking citations.

(e) The public parking administrator shall be an ex-officio deputy clerk of the traffic court but only for the limited purpose of accepting custody of parking citations and civil parking citations filed under the authority of this chapter. Notwithstanding anything continued herein or in this chapter to the contrary, the public parking administrator shall not be an employee of the clerk of the traffic court entitled to any benefits of an employee in the classified or unclassified system of the city except as public parking administrator of the parking adjudication bureau.
(Code 1956, § 38-286.6)

Sec. 154-690. Citation as legal demand and prima facie evidence.

The original parking citation or any true copy thereof shall constitute an ordinary business record of the city and prima facie evidence of the facts contained therein.
(Code 1956, § 38-286.7)

Sec. 154-691. Responsibility of owner and operator.

(a) Except as provided in subsection (b) of this section, the owner and the operator, when not the same, shall be solidarily liable to the city for parking violations, unless the owner can prove that the vehicle was operated without his consent, express or implied. An owner who pays any parking fine, costs, or administrative fees pursuant to this article shall have the right to recover the same from the operator.

(b) An owner of a vehicle who is engaged in the business of renting or leasing vehicles under written rental or leasing agreements ("lessor") shall not be liable for parking fines and penalties imposed by a local authority on the lessor of such rented or leased vehicles, if within 30 days after receiving written notice of the parking violation, the lessor provides, in affidavit form, the true name, address and driver's license number and state of issuance of the person in possession of the vehicle ("lessee") at the time of the issuance of the citation, or provides a true copy of the lease or rental agreement.

(c) A lessor who fails to comply with the foregoing provisions shall be treated as any other owner and shall be solidarily liable with the operator.

(d) If any owner of a motor vehicle receives a notice of violation for a period during which the illegally parked vehicle was reported to any police department as having been stolen, it shall be a valid defense to any charge of a parking violation that the motor vehicle has been reported to the police as stolen prior to the time the violation occurred and had not been recovered by such time.
(Code 1956, § 38-286.8)

Sec. 154-692. Answering parking citation.

(a) A person to whom a parking citation has been issued under this article may answer to the same in the manner and within the delays indicated on the citation. An answer may take the form of:

(1) Admission of the violation with payment of the scheduled civil penalty;

(2) A written denial of liability and promise to appear at an adjudicatory hearing date; or

(3) A written admission of liability with explanation and promise to appear at an adjudicatory hearing.

(b) Payment of the civil penalty may be made by mailing to the agent designated by the city the parking citation accompanied by a payment of the fine provided therein. Such payment may be made only by money order or check made out to the city. Payment of the civil penalty established herein shall operate as a final disposition of the case.
(Code 1956, § 38-286.9)

Sec. 154-693. Failure to answer parking citation, additional delinquent penalties.

If the owner, his agent or the operator fails to appear on or prior to the administrative hearing date, there shall be assessed additional delinquent penalties, as listed in section 154-699.
(Code 1956, § 38-286.10)

Sec. 154-694. Notice of hearing.

The parking citation shall provide information as to the time and place of a hearing. Whenever a person charged with a parking violation denies liability with explanation, the parking administration bureau shall advise such person, personally or by U.S. mail postage prepaid, of the date of which he must appear to answer the charge at a hearing. The form and content of such hearing shall be prescribed by the chief administrative officer, and shall contain a warning to advise the person that failure to appear on the date designated, or on any subsequent date, to which the hearing is adjourned, shall be deemed an admission of liability.
(Code 1956, § 38-286.11)

Sec. 154-695. Adjudication by mail.

(a) In cases where a person charged with a parking violation shows good cause for not attending a hearing, either personally or through a representative, the hearing officer may permit the matter to be adjudicated by mail which adjudication shall be made within 60 days of the date of the citation. Letters, memoranda, affidavits, photographs or other documentary materials shall be admissible as evidence for the purposes of adjudications by mail. The hearing officer may exclude from consideration any material which is not relevant to the adjudication of the alleged violation. Failure of the person charged to proceed with an adjudication by mail after requesting and receiving permission to adjudicate by mail shall constitute an admission by the person charged of liability of the parking violation and shall subject the person who requested the adjudication by mail to the appropriate fines and costs assessed by the parking adjudication bureau.

(b) If a hearing examiner determines that an adjudication cannot proceed by mail, the parking adjudication bureau shall advise the person charged by first class mail that he must appear to answer the charge at a hearing.
(Code 1956, § 38-286.12)

Sec. 154-696. Hearings for disposition of parking citations.

(a) Every hearing for the adjudication of a charge of parking violation under the authority of this article shall be held before a hearing examiner.

(b) The conduct of hearings of parking violations charged under this article shall be governed by the provisions of the Administrative Procedures Act, R.S. 49:951 et seq.

(c) The city shall have the burden of proving the violation by a preponderance of evidence; however, proof that a particular vehicle described in the parking citation was in violation of any law or ordinance, together with proof that the person was, at the time of the violation the registered owner of such vehicle as shown in the latest records of the motor vehicle department of safety and corrections (which may be in the form of a computer printout and shall constitute an ordinary business record of the city), shall constitute a prima facie presumption that the registered owner of such vehicle or his authorized agent was the person who parked or placed such vehicle at the point where, and for the time during which, the violation occurred.

(d) The officer or other duly authorized person who issued the parking citation shall not be required to appear at the hearing unless the person charged with a violation herein has denied that the offense occurred by his commission and the hearing officer determines that the officer's or duly authorized person's presence is required. The hearing officer may grant one postponement if the officer or duly authorized person is not available at the time of the hearing.

(e) At the conclusion of the contradictory hearing the hearing examiner shall immediately render a decision, either finding a person cited liable and assessing the fine and/or penalty or declaring the violation unproven and/or invalid pursuant to R.S. 49:958.
(Code 1956, § 38-286.13)

Sec. 154-697. Failure to appear at hearing, consequences.

Failure to appear at a hearing other than the original hearing when required to appear shall constitute an admission of liability of the parking violation and shall subject the person charged with the violation herein to the appropriate fines and costs assessed by the parking adjudication bureau acting through a hearing examiner.
(Code 1956, § 38-286.14)

Sec. 154-698. Acceptance of pleas, fines.

In cases of parking violations, an agent designated by the city shall have the authority to accept the written plea of guilty to the offense charged, and issue receipts for the fine paid by the offender.
(Code 1956, § 38-27)

Sec. 154-699. Schedule of fines.

The following is the schedule of fines which may be paid to the parking adjudication bureau or such other agent as may be designated by the chief administrative officer:

Violation	*Initial Fine*	*After 30 Days*	*After 60 Days*
(1) Sections 154-861, 154-863, 154-864, 154-865, 154-866, 154 868, 154-869, 154 870, 154-872, 154-873, 154-875, 154-879, 154-881, 154-926, 154-975, 154-979, 154-980, 154-981, 154-1037, 154-1038, 154-1039, 154-1040, 154-1041, 154-1042, 154 1043, 154 1086, 154-1094, 154-1095	30.00	60.00	90.00
(2) Sections 154-871, 154-876, 154-878, 154-880, 154-923 (all except subpart 17), 154-973, 154-976, 154-977, 154-978	40.00	80.00	160.00

Violation	*Initial Fine*	*After 30 Days*	*After 60 Days*
(3) Sections 34-19, 34-20, 154-974, 154-877.1, 154-982, 154-983, 154-1031, 154-1036, 154-1137	75.00	150.00	200.00
(4) Sections 154-1032 and 154-1035	200.00	250.00	300.00
(5) Section 154-874, 154-925	500.00	500.00	500.00
(6) Section 154-923(17)—Parking in a bicycle lane	$300.00	$500.00	$500.00

(Code 1956, §§ 38-27, 38-286.15; M.C.S., Ord. No. 17,433, § 2, 3-7-96; M.C.S., Ord. No. 19,371, § 1, 9-16-99; Ord. No. 22,956, § 1, 3-2-00; M.C.S., Ord. No. 21357, § 1, 12-1-03; M.C.S., Ord. No. 21822, § 2, 1-20-05; M.C.S., Ord. No. 21876, § 2, 3-17-05; M.C.S., Ord. No. 21914, § 1, 4-7-05; M.C.S., Ord. No. 23424, § 1, 3-19-09; M.C.S., Ord. No. 264767, § 1, 7-9-15; M.C.S., Ord. No. 26785, § 1, 2-4-16; M.C.S., Ord. No. 28047, § 1, 3-28-19)

Sec. 154-700. Rehearing.

(a) There shall be a review board within the parking adjudication bureau which shall consist of three hearing examiners, but in no event shall the hearing examiner whose decision is being reviewed be included in the panel determining such rehearing.

(b) A request for rehearing following an original responsible disposition rendered by any hearing examiner shall be received within 30 days of such a disposition. After making such a request for a rehearing, and prior to the scheduling of the rehearing, the person shall be obligated to post a cash bond in the amount of the fines and/or fees for which the hearing examiner rendered a responsible disposition. If the original responsible disposition is reversed by the review board such bond shall be returned to the depositor.

(c) A request for a rehearing shall not be accepted until such a cash bond has been deposited with the city. Any bond posted shall equal the amount due on the date the bond is received.

(d) The review board shall have the power to review the fact and the law and shall have the power to affirm or reverse any original responsible deposition for error of fact or law.
(Code 1956, § 38-286.16)

Sec. 154-701. Judicial review.

The decision of the review board shall be the final decision by the city. Any person aggrieved by any decision may file a petition for judicial review in the civil district court of the parish, within 30 days after the date of entry of the decision, pursuant to the provisions of R.S. 49:964.
(Code 1956, § 38-286.17)

Sec. 154-702. Method of notice.

Any notice permitted or required to be given under this article shall be considered given when mailed by United States mail, postage prepaid, to the operator, if known, or to the registered owner at the address appearing on the registry of the office of motor vehicles of the department of safety and corrections, or to a lessee at the address provided by the lessor, or in the case of an out of state owner or operator, to such address as may be shown at the appropriate registration office.
(Code 1956, § 38-286.18)

Sec. 154-703. Disposition of monetary penalties.

The monies collected pursuant to this article shall be forwarded to the director of the department of finance who shall deposit the same to the credit of the general fund of the city.
(Code 1956, §§ 38-27(3), 38-286.19)

Sec. 154-704. Towing fees.

In cases of parking violations whereby the vehicle has been towed to the auto pound, theperson designated for the collection of fines shall also be responsible for the collection of towing fees, and shall collect such towing fees at the same time as collecting the fines for parking violations.
(Code 1956, § 38-27(2))

Sec. 154-705. Fines and fees imposed on vehicles involved in certain criminal offenses.

All fines and fees assessed pursuant to this division shall be waived in circumstances where the violation occurs as a result of any of the following crimes delineated in the Louisiana Criminal Code, as amended: R.S. 14:64 (armed robbery); R.S. 14:64.1 (first-degree robbery); R.S. 14:64.2 (carjacking); R.S. 14:64.4 (second-degree robbery); R.S. 14:67 (theft); R.S. 14:67.26 (theft of a motor vehicle); R.S. 14:68 (unauthorized use of a movable); or R.S. 14:69(B) (illegal possession of stolen things); and the Code of the City of New Orleans: section 54-186 (theft); section 54-187 (unauthorized use of movables); or section 54-188 (illegal possession of stolen things). A person seeking a waiver under this subsection shall present evidence that the alleged crime was timely reported to the New Orleans Police Department or other appropriate law enforcement agency. The perpetrator or alleged perpetrator of a crime delineated in this section shall not be entitled to any abatement of fines or fees.
(M.C.S., Ord. No. 28948, § 1, 2-17-22)

Secs. 154-706—154-775. Reserved.

DIVISION 3. SEIZURE OR IMMOBILIZATION OF CERTAIN VEHICLES*

Sec. 154-776. Impounding of unsafe vehicle.

When a vehicle is found to be in unsafe operating condition, the department of police shall impound such vehicle. The operating condition of such vehicle shall be determined by a brake inspector of the department of police. The vehicle will only be released on authority of a recognized mechanic that such vehicle will be placed in safe operating condition before being returned to the owner. Storage fees on such impounded unsafe vehicle will commence 72 hours after the vehicle has been impounded, such storage fees to be the same as for any other impounded vehicle. There will be no towing fee charge for such impounding.
(Code 1956, § 38-273)

Sec. 154-777. Unoccupied vehicle in violation of law.

(a) Any unoccupied vehicle found on a street or highway against which there is a recorded and unpaid delinquent parking citation issued under the authority of this article shall be immediately immobilized or towed and impounded, or both, by any police officer or other person duly authorized.

(b) Such vehicle shall be surrendered or released only to the duly registered owner of such vehicle or his agent thereof upon:

(1) Such person depositing a cash bond in the amount of the fines and penalties for any unpaid parking citations (including the citation, if any, for which the vehicle was towed) recorded against such vehicle plus any towing, immobilization or storage fees; or

(2) Such person (but only if he is the same person charged with the parking citation) signing and executing a form prepared by the department of law for

*__State law references—__Impounding of vehicles authorized, R.S. 32:392; seizure of parked vehicles, R.S. 32:471 et seq.

the purpose of waiving his right to a hearing, admitting liability for the parking offense charged, agreeing to and paying the parking fines, towing fee and storage fees or immobilization fee incurred for the period of impoundment or immobilization. The person duly authorized to collect parking fines, towing, immobilization, and storage fees is hereby authorized to accept such waivers of hearing and pleas of guilty to the offenses charged for entering of same in the proper court of competent jurisdiction, and such person shall be authorized to collect all such fines and fees and issue receipts therefore to the person making payment of same.

(c) If the person whose vehicle has been immobilized or impounded deposits a bond as provided in subsection (b)(1), such person shall be issued a notice to appear for hearing in accordance with the provisions of this article in the same manner and under the same procedures employed for any violation. Any person whose vehicle has been impounded or immobilized under the provisions of this section and desires an expedited hearing shall be afforded such a hearing within three business days of his written request therefore.

(d) [Forfeiture of bond.] If a person whose vehicle has been immobilized or impounded deposits a bond as provided in subsection (b)(1), such a bond will be subject to forfeiture if he fails to pay the fines and/or penalties assessed by the parking adjudication bureau within six months after such assessment. If such fee is deposited in the form of a bond and the responsible person is found not liable for all parking citations for which the vehicle was immobilized or impounded, such bond will be returned to the depositor or his agent.

(e) [Violations.] The purpose of this section is to provide for immobilization, impoundment by immobilization, and removal and/or impoundment of unoccupied vehicles when in violation of the following sections of chapter 34 and this chapter: section 34-19; section 34-20; section 154-861; section 154-864; section 154-866; section 154-868; section 154-869; section 154-870; section 154-874; section 154-875; section 154-876; section 154-877.1; section 154-878; section 154-923; section 154-925; section 154-973; section 154-975; section 154-976; section 154-977; section 154-978; section 154-979; section 154-1031; section 154-1032; section 154-1035; section 154-1036; and section 154-1043.

(f) Towing, storage, and immobilization rates. The department shall collect fees for towing and storage, including, but not limited to, administrative fees and gate fees, at the rates established annually by the Louisiana Public Service Commission and published in its Schedule of Prescribed Rates and Requirements for Non-Consensual Towing and Recovery Services. The department shall collect an immobilization fee of 75% of the minimum non-consensual towing rate for the applicable vehicle weight rating as published in the Schedule named in this section, rounded up to the nearest dollar.

(g) If any vehicle, other than truck tractors, semitrailers, boats, buses, school buses, freight-carrying vehicles, trailers, tow trucks or dump trucks, dual-axle or tandem-axle is impounded, such vehicle shall be assessed a towing fee in accordance with this section and, after the first 24 hours, a storage fee shall be incurred in accordance with this section, together with such fine as may be imposed in accordance with the law.

(h) If a truck tractor, semitrailer, boat, bus, school bus, freight-carrying vehicle, trailer, tow truck or dump truck, dual-axle or tandem-axle is impounded, such vehicle shall be assessed a towing fee in accordance with this section and, after the first 24 hours, a storage fee shall be incurred in accordance with this section, together with such fine as may be imposed in accordance with law.

(i) The purpose of this section is to provide for the impoundment through immobilization of unoccupied oversized vehicles when in violation of the following sections of [chapter 34 and] this chapter: Section 34-19; section 34-20; section 154-861; section 154-866; section 154-868; section 154-869; section 154-870; section 154-874; section 154-875; section 154-877.1; section 154-

923; section 154-925; section 154-973; section 154-975; section 154-976; section 154-977; section 154-978; section 154-979; section 154-1031; section 154-1035; and section 154-1043.

(j) If any vehicle, other than truck tractors, semitrailers, boats over 18 feet, buses, school buses, freight-carrying vehicles, trailers, tow trucks or dump trucks, is impounded through immobilization, such vehicle shall be assessed a towing fee in accordance with this section and, after the first 24 hours, a storage fee shall be incurred in accordance with this section, together with such fine as may be imposed in accordance with law. If a truck tractor, semitrailer, boat, bus, school bus, freight-carrying vehicle, trailer, tow truck or dump truck is impounded through immobilization as provided for in subsection (i), such vehicle shall be assessed a towing fee in accordance with this section and, after the first 24 hours, a storage fee shall be incurred in accordance with this section, together with such fine as may be imposed in accordance with law. (Code 1956, § 38-286.70; Ord. No. 19,584, § 1, 3-2-00; M.C.S., Ord. No. 21354, § 1, 12-1-03; Ord. No. 21355, § 1, 12-1-03; M.C.S., Ord. No. 21876, § 3, 3-17-05; M.C.S., Ord. No. 23469, § 1, 4-2-09; M.C.S., Ord. No. 23906, § 1, 3-11-10; M.C.S., Ord. No. 24328, § 1, 3-3-11; M.C.S., Ord. No. 30544, § 1, 12-18-25; M.C.S., Ord. No. 30676, § 1, 6-24-26)

Sec. 154-778. Immobilization for unpaid parking fines and penalties; impoundment; procedure for release; hearing.

(a) The parking division or other duly authorized agency may immobilize, tow, or impound any vehicle with three or more adjudicated parking citations if any assessed fees, fines, or penalties related to the adjudicated parking citations remain unpaid.

(b) The parking division, or other duly authorized agency shall release a vehicle immobilized or impounded pursuant to this section only to the vehicle's registered owner or his authorized agent if all outstanding fines and penalties assessed by the parking adjudication bureau and recorded against the vehicle and any towing, immobilization or storage fees are paid in full or covered by a cash or surety bond.

(c) For a vehicle immobilized by means of a self-releasing boot, the parking division shall provide the authorized combination code to remove the boot only to the vehicle's owner or his authorized agent if all unpaid parking fines and penalties and the boot fee are paid in full. The parking division shall assist upon the request of the vehicle owner or his authorized agent with removal of the self-releasing boot.

If the self-releasing boot is not returned to the parking division within one business day following removal, the parking division shall assess the vehicle owner a fine of $25.00 per day up to a maximum fine of $500.00.

(d) If the person whose vehicle has been immobilized or impounded deposits a bond as provided in subsection (b)(2), such person shall be issued a notice to appear for a hearing. The scope of the hearing provided under this section shall be limited to the determination as to whether the vehicle immobilized or booted belongs to the owner or the owner's agent and the owner or the owner's agent (i) failed to appear at a hearing when required to do so, or (ii) having admitted liability for a parking offense, failed to pay the fines and penalties assessed by the parking adjudication bureau, or (iii) having been found liable for the parking offense, failed to pay the fines and penalties assessed by the parking adjudication bureau. The parking division shall provide an expedited hearing within three business days of written request therefor from the owner, or his authorized agent, of the impounded or immobilized vehicle.

(e) If a vehicle is immobilized for unpaid parking fines and penalties as provided in subsection (a), an immobilization fee as set forth in section 154-777 shall be assessed. If such fee is deposited in the form of a cash bond and the responsible person is found not liable for all parking fines and penalties for which the vehicle was immobilized, such bond will be returned to the depositor or the depositor's agent.

(f) If the vehicle impounded has not been reclaimed within 24 hours of the time of impoundment, the department of police shall notify the vehicle's last owner of record (as determined by the license tag or VIN thereof) of the place of impoundment of the vehicle.

(g) If a person whose vehicle has been impounded or immobilized deposits a bond as provided in subsection (b)(2), such a bond will be subject to forfeiture if such person fails to pay fines and/or penalties assessed by the parking adjudication bureau within six months after assessment.

(Code 1956, § 38-286.71; M.C.S., Ord. No. 21356, § I, 12-1-03; M.C.S., Ord. No. 21358, § 1, 12-1-03; M.C.S., Ord. No. 23144, § 1, 7-10-08; M.C.S., Ord. No. 24044, § 1, 7-15-10; M.C.S., Ord. No. 27740, § 1, 4-19-18; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-779. Damaging or removal of immobilization devices prohibited.

It shall be unlawful and an offense for any person to release, deface, injure, tamper with, break, destroy, remove or impair the usefulness of or cause any person to release, deface, injure, tamper with, break, destroy, remove or impair the usefulness of any immobilization device which has been attached to a vehicle in accordance with the provisions of this chapter, with the exception of the authorized removal of a "self releasing boot" as provided in section 154-778.
(Code 1956, § 38-276; M.C.S., Ord. No. 23144, § 1, 7-10-08)

Sec. 154-780. Removal of immobilized vehicles prohibited.

It shall be unlawful and an offense for any person to move or cause any person to move any vehicle, wherever immobilized, which has an immobilization device attached to it in accordance with the provisions of this chapter, with the exception of the authorized removal of a "self releasing boot" as provided in section 154-778.
(Code 1956, § 38-276.1; M.C.S., Ord. No. 23144, § 1, 7-10-08)

Sec. 154-781. Fines and fees imposed on vehicles involved in certain criminal offenses.

All fines and fees assessed pursuant to this division, or otherwise imposed pursuant to section 162-1016 of this Code, shall be waived in circumstances where the immobilization, towing, or impoundment of a vehicle occurs as a result of any of the following crimes delineated in the Louisiana Criminal Code, as amended: R.S. 14:64 (armed robbery); R.S. 14:64.1 (first-degree robbery); R.S. 14:64.2 (carjacking); R.S. 14:64.4 (second-degree robbery); R.S. 14:67 (theft); R.S. 14:67.26 (theft of a motor vehicle); R.S. 14:68 (unauthorized use of a movable); or R.S. 14:69(B) (illegal possession of stolen things); and the Code of the City of New Orleans: section 54-186 (theft); section 54-187 (unauthorized use of movables); or section 54-188 (illegal possession of stolen things). A person seeking a waiver under this Section shall present evidence that the alleged crime was timely reported to the New Orleans Police Department or other appropriate law enforcement agency. The perpetrator or alleged perpetrator of a crime delineated in this section shall not be entitled to any abatement of fines or fees.
(M.C.S., Ord. No. 28948, § 2, 2-17-22)

Secs. 154-782—154-810. Reserved.

DIVISION 4. DISPOSITION OF UNCLAIMED VEHICLES

Sec. 154-811. Abandoned vehicles—Sale or use.

(a) Any motor vehicle seized or otherwise held by the police department pursuant to this chapter for a period of three months or more without being claimed is deemed abandoned to the city.

(b) Upon the approval of the chief administrative officer and the superintendent of police, any department may use an abandoned vehicle held by the police department for at least six months. The department head shall make a written request to the chief administrative officer and the superintendent of police, identifying the vehicle by VIN, make, and model, and its intended use.

(c) The department of police shall comply with the provision of La. R.S. 32:476, the Louisiana Towing and Storage Act, and the Louisiana Department of Public Safety, Office of Motor Vehicles policies regarding abandoned vehicles for sale or use by municipalities and parochial authorities.
(Code 1956, § 38-300; M.C.S., Ord. No. 21353, § 1, 12-1-03; M.C.S., Ord. No. 23427, § 1, 3-19-09; M.C.S., Ord. No. 24311, § 1, 2-17-11; M.C.S., Ord. No. 24311, § 1, 2-17-11; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-812. Storage fee after sale.

(a) Within six days after the consummation of the sale of unclaimed vehicles, the purchasers shall remove such vehicles from city property, or shall be subject to storage fees as set forth in section 154-777.

(b) For the purpose of this section, the six-day period shall commence at 8:00 a.m. on the day after the consummation of the sale, and the storage fee shall commence at 4:00 p.m. on the sixth calendar day thereafter provided the sixth day does not fall on a Sunday or a holiday, in which case the storage fee shall not commence until the next legal day following.

(c) For the purpose of this section, the storage fee shall be imposed for any fraction of a day in excess of six days.
(M.C.S., Ord. No. 23427, § 1, 3-19-09; M.C.S., Ord. No. 24312, § 1, 2-17-11; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-813. Liability for storage fees.

The purchaser of any unclaimed vehicle shall not be liable for any storage fees accumulated prior to the date of purchase of the vehicle.
(Code 1956, § 38-301; M.C.S., Ord. No. 24313, § 1, 2-17-11)

Sec. 154-814. Sale to city employee prohibited.

Employees of the city and relatives of any employee of the city shall not purchase either directly or through interposed parties, any vehicle sold in accordance with the provision of this division.
(Code 1956, § 38-301.1; M.C.S., Ord. No. 24314, § 1, 2-17-11)

Sec. 154-815. Record of charges and sales.

The department of police shall keep a complete record of all monies collected by it for storage and towing charges with details as to the date, the amount, and the name of the person making such payment, and shall also keep a true and correct record of all unclaimed or unidentified vehicles sold at public auction by virtue of this division. Such record shall be, at all times, open to public inspection.
(Code 1956, § 38-302; M.C.S., Ord. No. 23427, § 1, 3-19-09; M.C.S., Ord. No. 24315, § 1, 2-17-11; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-816. Penalty for false or fraudulent bidding.

Any person, directly or through a third person, found guilty of furnishing false information or submitting one or more bids on vehicles sold at public auction by the city who does not have the funds to purchase such vehicle or made such bid for the purpose of delaying or disrupting such sales, shall be guilty of a misdemeanor and sentenced to serve no more than 90 days in jail, or fined $100.00, or both; provided further that each separate bid found to be false or fraudulent shall constitute a separate offense.
(Code 1956, § 38-303; M.C.S., Ord. No. 24316, § 1, 2-17-11)

Sec. 154-817. Sale to city employees prohibited.

Employees of the city and relatives of any employee of the city shall not purchase either directly or through interposed parties, any vehicle sold in accordance with the provisions of this division.
(Code 1956, § 38-304)

Editor's note—M.C.S., Ord. No. 24317, § 1, adopted Feb. 17, 2011, repealed §§ 154-818 and 154-819, which pertained to record of charges and sales and penalty for false or fraudulent bidding and derived from Code 1956, §§ 38-305 and 38-306, respectively.

Secs. 154-818—154-860. Reserved.

DIVISION 5. PARKING GENERALLY

Sec. 154-861. Normal parking on roadway.

(a) No person shall stand or park a vehicle on a roadway, other than parallel with the edge of the roadway, headed in the direction of lawful traffic movement and with the right hand wheels of the vehicle within 18 inches of the curb or edge of the roadway, except as otherwise provided in this article.

(b) Notwithstanding subsection (a), a person may stand or park a vehicle on a roadway parallel with the edge of the roadway headed in the opposite direction of lawful traffic movement and with the left hand wheels of the vehicle within 18 inches of the curb or edge of the

roadway solely when a section of the roadway is officially closed to traffic such that there is only one ingress and egress to the roadway where the vehicle is stood or parked. This subsection shall apply only to the section of the roadway between the point that it is officially closed to traffic and the point of the next traversable intersection. A roadway shall be deemed officially closed to traffic only if the closure is one properly permitted by the city. This subsection shall not apply to any roadways that have been permanently designated as one-way.

(c) The city council may, after special engineering study, affirmation and recommendation by the city traffic engineer, designate locations where angular parking will be allowed. Such locations will be so signed, and no other type of parking will be permitted. The following locations are designated by the city council for angular parking:

Street	*Block No.*	*No. of Spaces*
Atlanta	5300	14
Cambronne	1100	6
Cromwell Place	6300	5
Euterpe	1600	5
Forshey	8200—8400	45
Hastings Place	1800	3
Henry Clay	200	106
Leontine	1600	15
Lyons	500	13
N. Peters Street	5400	20
Perdido	1300 block	
S. Salcedo	500	15
St. Aloysius Dr.	2200	45
Valmont	800	4

(Code 1956, §§ 38-220, 38-286.20; M.C.S., Ord. No. 16,643, 9-23-94; M.C.S., Ord. No. 17,742, § 1, 9-5-96; M.C.S., Ord. No. 18,385, § 1, 8-21-97; M.C.S., Ord. No. 18,392, § 1, 8-21-97; M.C.S., Ord. No. 18,688, § 1, 4-2-98; M.C.S., Ord. No. 18,830, § 1, 8-20-98; M.C.S., Ord. No. 19,032, § 1, 12-17-98; M.C.S., Ord. No. 19,228, § 1, 5-6-99; M.C.S., Ord. No. 19,286, § 1, 6-17-99; M.C.S., Ord. No. 23422, § 1, 3-19-09; M.C.S., Ord. No. 25747, § 1, 3-27-14; M.C.S., Ord. No. 26587, § 1, 9-17-15)

State law reference—Additional parking regulations, R.S. 32:144.

Sec. 154-862. Parking signs required.

Whenever by this article or any other ordinance of the city any parking time limit is imposed on designated streets, or parking is prohibited on designated streets the city traffic engineer shall erect appropriate signs giving notice thereof and no such regulations shall be effective unless such signs are erected and in place at the time of any alleged offense.
(Code 1956, § 38-238)

Sec. 154-863. Lights on parked vehicles.

(a) Whenever a vehicle is lawfully parked upon a street or highway during the hours between a half hour after sunset and a half hour before sunrise and if there is sufficient light to reveal any person or object within a distance of 1,000 feet upon such street or highway, no lights need be displayed upon such parked vehicle.

(b) Whenever a vehicle is parked or stopped upon a roadway or shoulder adjacent thereto, whether attended or unattended, during the hours between a half hour after sunset and a half hour before sunrise and there is not sufficient light to reveal any person or object within a distance of 1,000 feet upon such highway, such vehicle so parked or stopped shall be equipped with one or more lamps meeting the following requirements:

(1) At least one lamp shall display a white or amber light visible from a distance of 1,000 feet to the front of the vehicle;

(2) The same lamp or at least one other lamp shall display a red light visible from a distance of 1,000 feet to the rear of the vehicle; and

(3) The location of such lamp or lamps shall always be such that at least one lamp or combination of lamps meeting the requirements of this section is installed as near as practicable to the side of the vehicle which is closest to passing traffic.

The foregoing provisions shall not apply to motorcycles or motor-driven cycles.

(c) Any lighted headlamps upon a parked vehicle shall be depressed or dimmed.

(d) When the parking lamps are activated, the tail lamps, license plate lamps, and side marker lamps shall also be activated.
(Code 1956, § 38-221)

State law reference—Lamps on parked vehicles, R.S. 32:314.

Sec. 154-864. Parking prohibited on narrow streets.

The city traffic engineer may erect signs indicating no parking upon any street when the width of the roadway does not exceed 20 feet or upon one side of a street as indicated by such signs when the width of the roadway does not exceed 30 feet, and when such signs are erected, no person shall park a vehicle upon any street in violation of any such sign.
(Code 1956, § 38-243)

Sec. 154-865. Parking time limited on certain street.

When signs are erected in each block giving notice thereof, no person shall park a vehicle for longer than the time specified on the signs. Parking shall only be regulated on those days specified on the signs, except public holidays. No person shall park a vehicle of more than 28 feet in length during the times and days on that portion of any block where such signs are erected.
(Code 1956, § 38-286.75)

Sec. 154-866. Parking of motor vehicles without license plates.

(a) No person shall park or stop a motor vehicle upon any public street or place within the parish without such vehicle displaying a valid and current motor vehicle license plate.

(b) No motor vehicle shall be parked upon any public street or place within the parish with any license plate that is mutilated, defaced, damaged, or obscured in such a manner as to make the letters and numerals thereon illegible.

(c) A license plate shall be placed and positioned so as to be clearly visible and securely fastened.
(Code 1956, § 38-286.74)

Sec. 154-867. Short-term parking during early voting period.

(a) For purpose of this section, the following terms shall have the following meanings:

(1) *"Short-term parking"* means one hour or less.

(2) *"Early voting period"* means the period beginning 14 days before any election and ending seven days before any election and includes any other day on which early voting is permitted.

(b) Short-term parking shall be permitted during early voting periods, without charge, on Lasalle Street from Poydras Street to Gravier Street and Perdido Street from Lasalle Street to Loyola Street to facilitate early voting at the polling place within City Hall. The department of public works shall erect and maintain the appropriate corresponding signage notating free parking is for early voters only during early voting periods in the areas where free short-term parking is permitted by this section.
(M.C.S., Ord. No. 30004, § 1, 7-25-24)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 30004, Ord. No. 19,612, § 1, adopted April 6, 2000, repealed § 154-867, which pertained to parking or stopping in passenger curb loading zones, and derived from the Code of 1956, § 38-286.21; M.C.S., Ord. No. 19,357, § 1, adopted Sept. 2, 1999.

Sec. 154-868. Parking in a loading zone, freight only, or freight zone.

(a) No person shall stop or park a vehicle for any purpose or period of time, other than for the expeditious loading and unloading of merchandise, or necessary equipment, in any place signed as a loading, freight only, or freight zone (hereafter, loading zone). No vehicle shall remain in a loading zone when not actively loading or unloading unless the vehicle meets the definition of a delivery vehicle; and any vehicle that utilizes a loading zone shall do so for the primary purpose of transporting and delivering merchandise or necessary equipment.

(b) If a vehicle meets the definition of a delivery vehicle, it will be allowed to remain in the loading zone for 45 minutes. Taxicabs, when actually engaged in the transportation of

merchandise, not passengers, will be allowed 25 minutes for the completion of the loading or unloading. This allotted time shall be used to complete the delivery of merchandise.

(c) Loading zones may be used for the expeditious receiving or discharging of passengers when such stopping does not interfere with a vehicle waiting to enter, entering or using such zones for the loading or unloading of merchandise. Freight handling and service truck zones shall be used as loading zones, freight only, or freight zones when loading or unloading merchandise or as a service zone when performing repair of service work.

(d) If a non-delivery vehicle is being utilized to deliver musical equipment in connection with a musical performance, the vehicle can utilize a loading zone with prior city authorization.

(1) City authorization shall be in the form of a "musician loading/unloading parking permit", and the permit shall be issued to a location only if the business is permitted by the CZO to have live music on-site. Permits will be issued at the request of the business to the department of safety and permits.

a. The "musician loading/unloading parking permit" shall provide the business' name and address, the location of the loading zone that is authorized for use, and permit number.

b. The permit shall be displayed on the windshield of the vehicle utilizing the loading zone during the loading and unloading of musical equipment.

c. The vehicle can utilize the loading zone for up to one hour before and after the scheduled musical performance, but in no event shall any such vehicle remain in a loading zone for more than 15 minutes.

(2) Each approved business location shall be issued two "musician loading/unloading parking permits". "Musician loading/unloading parking permits" are non-transferable and shall become void if the business location ceases musical performances.

(Code 1956, § 38-286.22; M.C.S., Ord. No. 28091, § 1, 5-23-19)

Sec. 154-869. Parking in a passenger zone.

No person shall park a vehicle in a passenger zone for any purpose or period of time other than for the expeditious receiving or discharging of passengers in any place marked as a passenger zone at any time, and then only for a period not to exceed ten minutes.

(Code 1956, § 38-286.24; M.C.S., Ord. No. 17,722, § 1, 8-15-96; Ord. No. 19,582, § 1, 3-2-00)

Sec. 154-870. Parking in a service zone.

(a) No person shall stop or park a vehicle for any purpose or period of time, other than for the expeditious completion of repair or service work in any place signed as a service zone. No vehicle shall use a service zone unless it meets the definition of a service or equipment vehicle.

(b) If a vehicle meets the definition of a service vehicle, it will be allowed to remain in a service zone for a maximum of one hour.

(c) If a vehicle meets the definition of an equipment vehicle, it will be allowed to remain in the service zone until the repair work is completed.

(d) At the discretion of the parking administrator, service zones may be in effect on a limited basis as indicated by signs.

(e) A service zone may be used for the expeditious receiving or discharging of passengers when such stopping does not interfere with a vehicle waiting to enter, entering or using such zone for the performance of repair or service work.

(Code 1956, § 38-286.23)

Sec. 154-871. Designation of emergency ambulance parking zones.

(a) The parking division may, upon request, install signs for emergency ambulance parking zones at hospitals. These zones shall be occupied by emergency treatment vehicles. The vehicles

shall be designed with the equipment necessary to care for patients requiring nonambulatory transport. These vehicles shall have either public or commercial license plates, as well as the name and/or emblem of the department or company providing such service.

(b) Vehicles designed for nonambulatory transport will be allowed to remain in such zone for the period of time necessary to attend to the details of the patient's treatment and/or admission to the hospital.
(Code 1956, § 38-286.25)

Sec. 154-872. Parking of buses, livery vehicles and taxicabs.

(a) The driver of a sightseeing bus, livery vehicle or taxicab shall not park upon any street during the hours of 8:00 a.m. to 6:00 p.m. in the central business district at any place other than a bus stand, a livery stand or a taxicab stand, respectively, except that these provisions shall not prevent the driver of any such vehicle from temporarily parking in accordance with other parking regulations at any place for the purpose of and while actually engaged in loading or unloading passengers. It shall be unlawful for the driver of any taxicab to park in any designated taxicab stand for a period of more than one hour. It shall be unlawful for the operator of any bus to park in any designated bus stand for a period of more than one-half hour.

(b) It shall be lawful for the driver of any taxicab to park in any metered space upon any street during the hours of 8:00 a.m. to 6:00 p.m. in the central business district and Vieux Carré, defined for the purposes of this section as the area from the Mississippi River to Claiborne Avenue and from Howard Avenue to Esplanade Avenue. Upon entering such parking space, the driver shall immediately make a payment for the use of the space by depositing the specified amount of legal tender of the United States or by using a credit card, debit card, smart card or token; as acceptable to the particular regulating device, in the multispace pay station or single/double space parking meter used to regulate the space being used, and such parking space may then be used by such taxicab for the period of time during which it is not occupied by the driver or any passenger, during the parking limit provided, for the part of the street in which the parking space is located. No taxicab shall park within 60 feet of any hotel taxi stand or zone when the legal parking spaces are metered spaces. A copy of this section be (sic) given to all old and new drivers by each company.
(Code 1956, § 38-286.26; M.C.S., Ord. No. 22035, § 2, 8-4-05)

Sec. 154-873. Restricted use of veterinary parking zones.

No person shall stop or park a vehicle in a veterinary parking zone for any purpose or period of time, other than the time required for the emergency treatment of any animal within the veterinary hospital or clinic. Such allowed parking time shall not exceed 30 minutes.
(Code 1956, § 38-286.27)

Sec. 154-874. Restricted areas of parking spaces for registered individuals with disabilities.

(a) No person may stop or park a vehicle in an appropriately signed parking space for persons with disabilities except those vehicles bearing (i) a handicapped license plate, a disabled veteran license plate, handicapped parking card issued by the state, or parking card bearing the international symbol of accessibility prominently displayed on the dashboard of the driver's side of the vehicle issued pursuant to La. R.S. 47:463.4 or 467.463.4.1, or; (ii) a vehicle registered in another state and bearing that state's official designation for the handicapped, or; (iii) removable windshield placards, temporary removable windshield placards and special license plates which have been issued by issuing authorities of other countries, for the purpose of identifying vehicles permitted to utilize parking spaces reserved for persons with disabilities for any person with disabilities who is temporarily in this state and who is not required to obtain Louisiana license plates. This will include appropriately signed parking spaces on any street, publicly owned and operated parking facilities, public facilities or public facilities for accommodation, and privately owned parking facilities subject

to the provisions of the Americans with Disabilities Act. For the purpose of this section, a "public facility" and "public facility for accommodation" include parking spaces belonging to privately owned parking areas covered by the Americans with Disabilities Act.

(b) Any person who uses any appropriately signed parking spaces for persons with disabilities shall be in violation of this section if the vehicle was not used for the transportation of the person for whom the license plate or parking card specified in paragraph (a) of this section was issued.

(c) When a motor vehicle bearing plates or displaying a hang tag issued to a mobility-impaired person or person with disabilities is being operated for the transport of the mobility-impaired person or person with disabilities, the motor vehicle may be parked for up to a maximum of three hours without payment, regardless of meter fares otherwise applicable to the parking space. This provision shall apply except where ordinances or police regulations prohibit parking on a highway for the purpose of creating a fire lane or where the ordinances or police regulations provide for the accommodation of heavy traffic during morning, afternoon, or evening hours or where the motor vehicle is parked in such a manner as to clearly be a traffic hazard.

(d) This section may be enforced by any person, duly authorized by the superintendent of police.

(e) Any person who violates the provisions of this section shall be fined $500.00. In addition to such fine, the offender shall be required to pay all court costs plus all towing fees and storage costs, if any.
(Code 1956, § 38-286.28; M.C.S., Ord. No. 18,534, § 1, 11-25-97; M.C.S., Ord. No. 21876, § 1, 3-17-05; M.C.S., Ord. No. 26070, § 1, 10-2-14; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-875. Restricted use of a bus stop, livery and taxicab stands.

No person shall stop or park a vehicle other than a bus in a bus stop, other than a livery vehicle in a livery stand or other than a taxi in a taxicab stand, when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and when actually engaged in loading or unloading passengers, when such stopping does not interfere with any bus, livery vehicle, or taxicab waiting to enter or about to enter such zone. All such vehicles when parking or stopping shall be parallel and adjacent to the curb.
(Code 1956, § 38-286.29)

Sec. 154-876. Vehicles parked in enforcement zones.

(a) Any person stopping or parking a vehicle or other conveyance in a designated vehicle parking area without the vehicle properly identified as being allowed in this zone shall be subject to a fine, as set forth in section 154-699.

(b) Unoccupied vehicles of whatever kind or description may be immediately removed or impounded by any police officer or other person duly authorized when found stopped or parked in a designated enforcement vehicle parking area without the vehicle properly identified.
(Code 1956, § 38-286.32; M.C.S., Ord. No. 21352, § 1, 12-1-03; M.C.S., Ord. No. 23423, § 1, 3-19-09)

Sec. 154-877. Parking reserved for governmental agencies.

Parking areas for enforcement vehicles for the federal, state, and city governments shall be designated by the public parking administrator at his discretion, with the approval of the council. The following locations are designated as official parking areas for enforcement vehicles of the federal, state, parish, and city governments:

Street	*Block No.*	*Agency*	*No. of Spaces*
Basin St.	400	N.O.P.D.	4
Basin St.	500	N.O.P.D.	8
S. Broad St.	200	Criminal sheriff	3
Camp St.	500	U.S. Marshal's Office	8
Canal St.	400	U.S. Customs & Border Protection	4

Street	*Block No.*	*Agency*	*No. of Spaces*
Carondelet St.	500	Office of Inspector General	2
Church St.	700	Dept. of Treasury, IRS	3
Constance St.	600	U.S. Probation	4
Conti St.	500	N.O.P.D.	14
Conti St.	600	N.O.P.D.	5
Conti St.	300	National Park Service	4
Decatur St.	400	National Park Service	2
Decatur St.	400	U.S. Attorney	3
S. Dupre St.	700	Criminal sheriff	15
Girod St.	1200	U.S. Dept. of Justice	2
Gravier St.	2700	N.O.P.D.	40
Gravier St.	2800	Criminal sheriff	11
Iberville St.	400	Federal Maritime Commission	1
S. Lopez St.	700	Criminal sheriff	12
Loyola Ave.	400	Civil sheriff	3
Loyola Court		N.O.P.D.	4
S. Maestri Place	600	Dept. of Treasury - IRS	3
S. Maestri Place	600	U.S. District Court (Pretrial services)	4
S. Maestri Place	600	U.S. Probation Officers	2
S. Maestri Place	600	Department of Labor	5
Magazine St.	500	U.S. Marshal's Office	6
Magazine St.	4300	N.O.P.D.	4
Morgan St.	200	N.O.P.D.	12
Morgan St.	200	Second city court	4
Perdido St.	1000	N.O.P.D.	4
Perdido St.	1100	N.O.P.D.	3
Poydras St.	500	U.S. Marshall's Office	9
N. Rampart St.	500	N.O.P.D.	10
S. Rendon St.	700	Criminal sheriff	7
St. Louis St.	600	La. Supreme Court	4
St. Louis St.	1100	N.O.P.D.	5
S. Saratoga St.	200	T.U.P.D.	2
S. White St.	700	Criminal sheriff	7
Tulane Ave.	1200	T.U.P.D.	4
Tulane Ave.	2600	Criminal sheriff	4

(Code 1956, § 38-21; M.C.S., Ord. No. 18,527, § 1, 11-25-97; M.C.S., Ord. No. 21857, § 1, 2-17-05; M.C.S., Ord. No. 22618, § 1, 5-3-07; M.C.S., Ord. No. 25965, § 1, 8-14-14; M.C.S., Ord. No. 29186, § 1, 10-6-22)

Sec. 154-877.1. Parking for jurors on duty for the criminal district court for the parish.

(a) Vehicles parked by persons serving on jury duty for the criminal district court for the parish, and which have an official juror parking permit conspicuously attached thereto, will be allowed to stop and remain in the zones hereinbelow listed. Vehicles parked by persons other than those serving on jury duty will be allowed to stop and remain in such zones only after 10:00 a.m. and only before 6:00 a.m.

Street	*Block*	*Agency*	*No. of Spaces*
Juror parking lot	S. Broad & Gravier	Jury-Clerk Criminal Court	78
District Attorney parking lot	Gravier & S. White	Jury-Clerk Criminal Court	45

(b) Any person stopping or parking a vehicle or other conveyance without an official juror parking permit within a juror designated zone shall be subject to a fine as set forth in section 154-699.

(c) Unoccupied vehicles of whatever kind or description may be immediately removed or impounded by any police officer or other person duly authorized when found stopped or parked without an official juror parking permit within a juror designated zone.

(d) These permits for jurors shall be issued by the judges only to jurors who are on duty in the respective section, and shall bear an expiration date coincident with the juror's term of service.
(Code 1956, §§ 38-21.1, 38-286.31, 38-286.65(e); M.C.S., Ord. No. 23423, § 1, 3-19-09)

Cross reference—Stopping, standing and parking regulations, § 154-651 et seq.

Sec. 154-878. Parking not to obstruct traffic.

No person shall stop or park any vehicle upon a street in such manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic.
(Code 1956, § 38-286.54)

Sec. 154-879. Parking for certain purposes prohibited.

No person shall park a vehicle upon any roadway for the principal purpose of:

(1) Displaying such vehicle for sale;

(2) Washing, greasing or repairing such vehicle commercially;

(3) For any commercial advertising purposes; or

(4) Making major repairs to vehicle.
(Code 1956, § 38-286.55)

Sec. 154-880. Parking prohibited within five feet of railroad spur or service track.

No person shall park any vehicle upon any street within five feet of the nearest rail of any railroad spur or service track. The city council may by resolution, after special engineering study, and affirmation and recommendation by the city traffic engineer, designate locations where parking within five feet of the nearest rail of any railroad spur or service track will be restricted only from 6:00 p.m. to 6:00 a.m. Such locations will be signed and parking will be permitted at other hours.
(Code 1956, § 38-286.53)

Sec. 154-881. Parking for more than 24 hours prohibited.

No person shall park a vehicle on any street for a period of time longer than 24 hours consecutively.
(Code 1956, § 38-286.56)

Sec. 154-882. Median/angular parking.

(a) The neutral ground area of LaSalle from First Street to Third Street shall be converted into median/angular parking. Furthermore, the developer of this parking area shall have the option to convert Simon Bolivar from Felicity Street to Jackson Avenue to median/angular parking. Such parking shall be designed to pose no hazard. Construction of this parking area shall be according to the specifications of the streets department and subject to inspection and approval by the same.

(b) All costs incurred as it relates to the parking area will be the responsibility of Greater St. Stephen Full Gospel Baptist Church. Greater St. Stephen Full Gospel Baptist Church shall adhere to the permit and all procedures required by all entities of the city.

(c) The parking area shall be open and accessible to the entire community and shall not be considered a private facility.

(d) Greater St. Stephen Full Gospel Baptist Church shall work with the parkway and parks commission and the city planning commission to ensure that the proper landscaping is done. Greater St. Stephen Full Gospel Baptist Church shall not proceed without the approval of the parkway and parks commission and the city planning commission.

(e) The neutral ground area of Martin Luther King, Jr. Boulevard between South Norman C Francis Parkway and South Rendon Street shall be converted into median/angular parking. Construction specifications of this parking area shall be according to the approval of the department of public works. The city planning commission staff and the parks and parkways department shall approve the landscaping of this area. The

parking area shall be signed for use by the employees and the general public using the services of Total Community Action, Inc.
(M.C.S., Ord. No. 16,457, 4-21-94; M.C.S., Ord. No. 20332, § 1, 8-16-01; M.C.S., Ord. No. 28571, § 4, 12-17-20, eff. 1-1-21)

Secs. 154-883—154-920. Reserved.

DIVISION 6. STOPPING FOR LOADING OR UNLOADING

Sec. 154-921. Designation of loading zones, freight only, freight zones, passenger zones, freight handling and service truck zones, and service zones.

(a) The city traffic engineer shall determine the location of loading zones, freight only, freight zones, passenger zones, freight handling and service truck zones, and service zones and shall designate, modify and sign, indicating them as such for the use of all appropriate vehicles as specified in this chapter.

(b) The zones authorized in subsection (a) of this section shall be established when it is deemed necessary to facilitate an overall parking program, to promote safety, or to improve the flow of traffic at a particular location. These zones shall be enforced according to the signage installed at the location, and the policies and regulations set forth by the parking division of the police department, in accordance with this Code.

(c) At the discretion of the city traffic engineer, loading zones, freight only, and freight zones may be in effect on a limited basis as indicated by signage.
(Code 1956, §§ 38-222, 38-226; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-922. Designation of public carrier stands.

The director of the department of streets with concurrence of the director of utilities shall establish bus stops, livery stands, taxicab stands and stands for other passenger common carrier vehicles and horse-drawn vehicles on such public streets in such places and in such number as he shall determine to be of the greatest benefit and convenience to the public, and every such bus stop, taxicab stand or other stand shall be designated by appropriate signs. If such directors cannot agree as to the establishment of such stops and stands, either of them may submit such recommendations for the consideration and action of the city council.
(Code 1956, § 38-227)

Sec. 154-923. Places where stopping or parking is prohibited; no signs required.

(a) No person shall stop or park a vehicle or other conveyance, except when necessary to avoid conflict with other traffic or in compliance with the law or directions of a police officer or traffic-control device, at any of the following places:

(1) On a sidewalk, except as otherwise permitted in this article;

(2) In front of or within three feet of the curb return in a public or private driveway, wheelchair ramp or bicycle ramp unless authorized to do so by the owner or lessee of the property to which the driveway, wheelchair ramp or bicycle ramp leads. Upon registry of a complaint with the parking division of the streets department by the owner or lessee of the property to which the driveway, wheelchair ramp or bicycle ramp leads, any authorization deemed to have been given shall be deemed revoked and upon election of the qualified complainant, parking tickets shall be issued or vehicles towed by the parking division of the streets department or the police department for violating this subsection;

(3) Within an intersection;

(4) Within 15 feet of a fire hydrant;

(5) On a crosswalk;

(6) Within 20 feet of a crosswalk or an intersection, or between a crosswalk or an intersection and a marked stop line or

yield line; the 20-feet measurement from an intersection is to be measured from the point closest to the intersection at which a 90-degree angle can be drawn. For purposes of this section, the term "stop line" shall mean a solid white pavement marking line extending across the approach lanes to indicate the point at which a stop is intended or required to be made, and the term "yield line" shall mean a row of solid white isosceles triangles pointing towards approaching vehicles extending across approach lanes to indicate the point at which the yield is intended or required to be made;

(7) Within 20 feet upon the approach to any flashing beacon, stop sign, yield sign, or traffic control signal located at the side of a roadway;

(8) Within 50 feet of the nearest rail of a railroad crossing;

(9) Within 20 feet of the driveway entrance to any fire station;

(10) Alongside or opposite any street excavation when stopping, standing or parking would obstruct traffic;

(11) On the roadway side of any vehicle stopped or parked at the edge or curb of a street or any on-street bicycle parking area;

(12) Upon a bridge or other elevated structure upon a highway;

(13) Within a highway tunnel or underpass;

(14) Alongside a neutral ground curb. The provisions of this subsection shall not apply to the north curb face of the center of Dublin Street between Hampson and Maple Streets in the seventh municipal district of the city, including the east and west curb face of the center of Terpsichore Street between Prytania and Coliseum Streets in the First Municipal District. However, these provisions shall only apply to the east and west curbs of Eton Street between MacArthur Boulevard and Berkley Drive in the Fifth Municipal District on Mondays through Fridays during the hours of 7:00 a.m. through 5:00 p.m.;

(15) Any place where parking will obscure or obstruct visibility of any traffic control device;

(16) Upon the travelled portion of any roadway except to yield to other traffic, or as directed by a signal or sign, or as directed by a police officer;

(17) Within a bicycle lane; or

(18) Upon a shared-use trail or upon or within 20 feet of a shared-use trail crossing of a roadway.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is prohibited.

(Code 1956, §§ 38-239(14), 38-286.47; M.C.S., Ord. No. 17,392, § 1, 2-1-96; M.C.S., Ord. No. 18,492, § 1, 11-6-97; M.C.S., Ord. No. 27367, § 1, 4-20-17)

Sec. 154-924. Exceptions to section 154-923.

(a) The provisions of section 154-923 shall not apply:

(1) To parking on the sidewalk in the 500 block of Soraparu Street on sidewalks installed by the Turnbull Cone Baking Company of Louisiana by delivery vehicles engaged in loading or unloading in connection with the operations of the Turnbull Cone Baking Company.

(2) In the 200 block of Royal Street, the 200 block of Chartres Street or the 1000 block of Toulouse Street by delivery vehicles engaged in loading or unloading merchandise on sidewalk areas specially constructed to accommodate parking by trucks.

(b) Such sidewalk areas shall be designated by the director of streets and the department of streets shall cause informational signs to be posted on any area so designated.

(Code 1956, §§ 38-286.47.1, 38-286.50)

Sec. 154-925. Parking of truck tractors, semitrailers, boats, buses, school buses, freight-carrying vehicles, tow trucks or dump trucks in certain areas prohibited.

(a) The council finds and determines that the parking of large or oversize vehicles on and immediately adjacent to the public streets, sidewalks, or public rights of way , or on private property in certain instances, constitutes a potential threat to the public health, safety, and welfare. Such parking may contribute to traffic accidents on the public streets or private property, impede the movement of emergency vehicles, serve to facilitate potential terrorist acts, and degrade the quality of life in certain neighborhoods.

(b) It shall be unlawful to park or store any truck recreational vehicle/camper, storage container, utility trailer, tractor, semitrailer, boat, bus, school bus, freight-carrying vehicle, trailer, tow truck, dump truck, or similar vehicle in the following areas, unless actively engaged in loading or unloading:

(1) In any RD, RM or RS residential district or any B-1, B-1A or B-2 neighborhood business district as defined by the comprehensive zoning ordinance of the city.

(2) In the Vieux Carré, as defined as the upriver side of Iberville Street, the lake side of North Rampart Street, the downriver side of Esplanade Avenue and the Mississippi River.

(3) On St. Charles Avenue from the downriver side of Interstate 10 to the Mississippi River.

(c) It shall be unlawful to leave any of the vehicles listed in subsection (b) of this section upon immediately adjacent to any street, sidewalk, or public right of way unattended for longer than two hours, regardless of the parking regulations or district as defined by the comprehensive zoning ordinance. For the purposes of this section unattended shall mean not occupied by an individual properly licensed to and otherwise capable of operating the vehicle.

(d) (1) Except as otherwise provided by this paragraph, it shall be unlawful to leave any of the vehicles listed in subsection (b) of this section unattended for longer than two hours upon restricted parking areas available to the general public for business on private property, regardless of the parking regulations or district as defined by the comprehensive zoning ordinance.

(2) The city traffic engineer or owner or lessee of the property may erect signs restricting stopping, standing, or parking of vehicles upon specific areas of private property to two hours at the expense of and upon the of the owner or operator or the public area. Such signs placed on the property or public areas shall be approved by or meet requirements issued by the city traffic engineer of public works.

(3) The provisions of this paragraph shall not apply to parking, storage, or service areas of businesses or facilities permitted by the zoning ordinance that are provided for the use of the vehicles listed in subsection (b) of this section. Such facilities may include, but are not limited to, permitted truck stops, truck wash facilities, RTA storage facilities, vehicle repair facilities, or similar uses.

(e) It shall be unlawful for any commercial bus to stop, stand, or park, even momentarily, on St. Charles Avenue between Jackson Avenue and Louisiana Avenue except when necessary to avoid conflict with other traffic, in compliance with a law enforcement officer's direction, or in compliance with a law enforcement officer's direction, or in compliance with a traffic control sign or device. This restriction will not apply to areas specifically signed as bus loading and bus zone. It shall be a violation of this section for any commercial bus to stop in a bus loading area when not actively engaged in passenger loading

and unloading. Passenger loading and unloading shall not exceed the time indicated on the signs.

(f) Enforcement.

(1) Law enforcement or parking control officer or other duly authorized person shall be authorized to issue a citation or take whatever law enforcement action is deemed necessary or both. Furthermore, when an individual found to be in violation of these provisions refuses a request by a duly authorized person to move the vehicle found in violation, the officer shall be authorized to have such vehicle towed or booted.

(2) The citation shall contain information concerning the nature, date, time, and location of the alleged violation, the state vehicle license plate number, and the make of vehicle. In those cases where a license plate is not visible or legible, the vehicle identification number shall be used in lieu of the state vehicle plate number. The citation shall also contain information advising the person charged of the manner and the time in which he may contest the violation charged in the citation. The citation shall also provide that a failure to timely answer or appear before a court of competent jurisdiction shall be considered a prima facie admission of the violation set forth in the citation, in which the court may assess the appropriate fine or fines and all penalties incidental thereto.

(3) The citation issued pursuant to the provisions of this section shall be personally served upon the operator of the vehicle by affixing the parking citation to the vehicle in a conspicuous place thereon. The original parking citation shall bear the name or initials and identification number of the issuing officer who shall affirm the truth of the facts set forth therein. An operator of a vehicle who is not the owner, but who uses or operates the vehicle with permission of the owner, expressed or implied, shall be considered the agent of the owner to receive the citation required to be served upon the operator or registered owner of a vehicle in accordance with the provisions of this subsection. When a citation is issued for an alleged violation of this section, there shall be a rebuttable presumption that a person in whose name the vehicle is registered was the operator of the vehicle when the alleged violation was committed.

(4) In the event that the registered owner or operator of a vehicle drives the vehicle away from or in any manner leaves the site of the violation while the issuing officer is preparing the citation, or refuses service of the parking citation and drives away from or in any manner leaves the site of the violation, this fact shall be duly noted on the original and all copies of the parking citation. This original and all copies of a parking citation shall constitute a business record of the law enforcement agency issuing the citation and shall constitute prima facie evidence that the citation was issued and that an attempt at service was made in accordance with the provisions of this section.

(5) Any vehicle listed in subsection (b) of this section against which there are three or more recorded and unpaid parking citations issued under the authority of this article shall be immediately immobilized or towed and impounded, or both, by any police officer or other person duly authorized in accordance with section 154-777 of this chapter.

(Code 1956, § 38-286.57; M.C.S., Ord. No. 21822, § 1, 1-20-05; M.C.S., Ord. No. 21953, § 1, 5-5-05)

Sec. 154.925.1. Storage and transportation of hazardous materials.

(a) *[Purpose.]* The purpose of this section is to prohibit and/or restrict the transportation by roadway, storage, and use of certain hazardous materials as defined by the United States Department of Transportation within the city limits of New Orleans.

(b) *Definitions—Generally.* The following definitions have been abstracted in order to aid and clarify wording used throughout this section:

Alley. A narrow street; especially a thoroughfare through the middle of a block giving access to the rear of lots or buildings.

Assembly. A building used, in whole or in part, for the gathering together of persons for such purposes as deliberation, worship, entertainment, amusement, or awaiting transportation.

Avenue. The principal walk or driveway to a house situated off a main road. A broad passageway bordered by trees. An often-broad street or road.

Institution. A building in which persons are harbored to receive medical, charitable, or other care or treatment, or in which persons are held or detained by reasons of public or civic duty, or for correctional purposes.

Parking lot. An area used for the parking of motor vehicles (public or parking area).

Pressure vessel. When used in connection with liquefied petroleum gases shall mean any tank or vessel in which liquefied petroleum gases are stored or transported or in which liquefied petroleum gases are placed for utilization through a liquefied petroleum gas system.

Residential. A detached part of whole of a building occupied exclusively as a family dwelling place and the usual accessory occupancies.

Street. A thoroughfare, especially in a city, town, or village that is wider than an alley or lane and that usually includes sidewalks. The part of a street reserved for vehicles. A thoroughfare with abutting property.

Tanker, containerized vehicle and *container.* Any vehicle other than railroad tank cars and boats, with cargo tank mounted thereon or built as an integral part thereof, used for the transportation of hazardous material/flammable liquids. Tank vehicles include self-propelled vehicles, full trailers and semitrailers without motor power and with wheels carrying either part or all of the load.

(c) *Classes of hazardous material.* The following definitions have been abstracted from the Code of Federal Regulations, Title 49—Transportation, and shall apply to the eight classes of hazardous material as defined by the United States Department of Transportation mentioned herewith:

Class I.

Class A explosive. Detonating or otherwise of maximum hazard. The nine of (sic) class A explosives are defined in section 173.53.

Class B explosive. In general, functions by rapid combustion rather than detonation and includes some explosive devices such as special fireworks, flash powders, etc. Flammable hazard. (Section 173.88)

Class C explosive. Certain types of manufactured articles containing class A or class B explosives, or both, as components but in restricted quantities, and certain types of fireworks. Minimum hazard. (Section 173.100)

Blasting agent. A material designed for blasting which has been tested in accordance with section 173.114a(b) and found to be so insensitive that there is very little probability of accidental initiation to explosion or of transition from deflagration to detonation. (Section 173.144a(a))

Class II.

Flammable gas. Any compressed gas meeting the requirements for lower flammability limit, flammability limit range, flame projection, or flame propagation criterial gas specified in section 173.300(b).

Nonflammable gas. Any compressed gas other than a flammable compressed gas.

Poison A—Extremely dangerous poisons. Poisonous gases or liquids of such nature that a very small amount of the gas, or vapor of the liquid, mixed with air, is dangerous to life. (Section 173.326)

Class III.

Combustible liquid. Any liquid having a flash point above 100 degrees Fahrenheit and below 200 degrees Fahrenheit as determined by tests listed in section 173.115(d). Exceptions are found in section 173.115(b).

Flammable liquid. Any liquid having a flash point below 100 degrees Fahrenheit as determined by tests listed in section 173.115(d). For exceptions see section 173.115(a).

Class IV.

Flammable solid. Any solid material, other than an explosive, which is liable to cause fires through friction, retained heat from manufacturing or processing, or which can be ignited readily and when ignited burns so vigorously and persistently as to create a serious transportation hazard. (Section 173.150)

Class V.

Organic peroxide. An organic compound containing the bivalent-0-0 structure and which may be considered a derivative of hydrogen peroxide where one or more of the hydrogen atoms have been replaced by organic radicals must be classed as an organic peroxide unless—(See Section 173.151(a) for details).

Oxidizer. A substance such as chlorate, permanganate, inorganic peroxide, or a nitrate, that yields oxygen readily to stimulate the combustion of organic matter. (See Section 173.151)

Class VI.

Poison A—Extremely dangerous poisons. Poisonous gases or liquids of such nature that a very small amount of the gas, or vapor of the liquid, mixed with air, is dangerous to life. (Section 173.326)

Poison B—Less dangerous poisons. Substances, liquids, solids (including pastes and semisolids), other than class A or irritating materials, which are known to be so toxic to man as to afford a hazard to health during transportation; or which, in the absence of adequate data on human toxicity, are presumed to be toxic to man. (Section 173.343)

Irritating material. A liquid or solid substance, which upon contact with fire or when exposed to air gives off dangerous or intensely irritating fumes, but not including any poisonous material, Class A.

Class VII.

Radioactive material. Any material, or combination of materials, that spontaneously emits ionizing radiation, and having a specific activity greater than 0.002 microcuries per gram. (Section 173.389) Note: See Section 173.389(a) through (1) for details.

Class VIII.

Corrosive material. Any liquid or solid that causes visible destruction of human skin tissue or a liquid that has a severe corrosion rate on steel. (See Section 173.240(a) and (b) for details).

(d) *Regulations governing transportation, storage and use of hazardous material.* It shall be unlawful for any tank motor vehicle or containerized motor carrier to park in any residential zoning district. It shall be unlawful for any tank motor vehicle or containerized motor carrier to be left unattended on any street, highway, from necessary absence from a vehicle or the vehicle is in connection with delivery of materials, except during the actual discharge of any liquid, bulk, gas, or those eight hazardous materials as defined by the United States Department of Transportation. A representative or responsible person shall be present with the vehicle. This provision shall not prevent stops for meals during the day or night, provided that streets or parking area is well lighted at the point of parking.

(1) No tank motor vehicle, containerized motor carrier or pressure vessel containing any of the eight classes of hazardous material as defined by the United States

Department of Transportation shall be parked out of doors at any point longer than one hour.

(2) No tank motor vehicle, containerized motor carrier or pressure vessel containing any of the eight classes of hazardous material as defined by the United States Department of Transportation shall at any time be parked within 100 feet of any building used for assembly, institutional, or residential occupancy.

(3) No tank motor vehicle, containerized motor carrier or pressure vessel containing any of the eight classes of hazardous material as defined by the United States Department of Transportation shall be parked or garaged in any area not specifically zoned and approved by the New Orleans City Council, Department of Public Works, Fire Department, Police Department, and hazardous material personnel.

(4) All roadway vehicles shall use only established and designated authorized routes within the city limits. No carrier shall enter or drive in a residential zoning district except on an established and designated authorized route.

(5) Parking lots as defined by this section shall mean parking areas.

(6) Carriers shall adequately maintain vehicles to provide maximum safety and efficiency level for travel.

(7) Carriers shall provide notice to the fire department and police department whenever a hazardous material is released into the atmosphere, when there is an accident of any kind, or a potential problem which may bring about problems throughout the area.

(8) Carriers shall provide prior and advance notice to the fire department and police department whenever explosives are transported or stored throughout the city.

(9) Carriers will reduce speed in areas of hazardous roadway or congested areas when carrying any of the eight classes of hazardous material as defined by the United States Department of Transportation within the corporate limits of the city and 2,000 feet beyond in either direction.

(10) Carriers containing any of the eight classes of hazardous material as defined by the United States Department of Transportation shall be properly marked when traveling through, stored in, or involved within the city limits.

(11) The cost [of] cleanup, restoration, and any other cost incurred by the government relative to any of the eight classes of hazardous material as defined by the United States Department of Transportation within the city limits, and which are brought about by accidents or any other malfunction of the carrier vessel, shall be borne by the applicable carrier.

(12) The responsible company which owns or operates any vehicle or container which must be repaired, towed, altered, removed or stored in order to correct a situation which is deemed unsafe or is in violation of this section by the police department, fire department, or the public works department, shall be required to reimburse the city for the cost of said action.

(13) All violators of this section shall be required to appear in person at traffic court, and shall not be permitted to pay any fines or other penalty before any court appearances are made.

(e) *Enforcement; penalties.* The enforcement of this section shall be the responsibility of the department of public works, the fire department, or the police department. The penalty for violation of this section shall carry with it a minimum of 30 days' confinement and/or a minimum of $500.00 per day and/or incident.
(M.C.S., Ord. No. 22104, § 1, 12-15-05)

Sec. 154-926. Parking or stopping prohibited at all times; license plate and brake tag requirements.

(a) No person shall stop or park a motor vehicle on any street, sidewalk or neutral ground unless the motor vehicle is visibly equipped with a current, valid license plate or temporary registration from the state or a foreign state.

(b) No person shall stop or park a motor vehicle on any street, sidewalk, neutral ground, or any other public place if the motor vehicle is equipped with a license plate which is mutilated, defaced, damaged, or obscured in such a manner that the letters, numerals, and expiration dates are not legible.

(c) If a motor vehicle bears a license plate from the state, no person shall stop or park the motor vehicle on any street, sidewalk or neutral ground, unless the vehicle displays a current safety inspection certificate (brake tag) issued by a municipality or parish of the state or by the state or its agents. The lack of a safety inspection certificate (brake tag) on a motor vehicle equipped with a current, valid, temporary registration from the state shall not constitute a violation of this section.

(d) Self-propelled motor cranes, bulldozers, tractors, and similar equipment used for construction are exempt from the provisions of this section.

(e) Any ticket, summons, citation, or affidavit issued pursuant to this section shall be dismissed by the parking adjudication bureau if the owner of the vehicle submits to the parking adjudication bureau a valid motor vehicle registration for the vehicle to which the ticket, summons, citation, or affidavit was issued indicating that there existed a valid license plate or temporary registration as of the date of issuance of the ticket, summons, citation or affidavit, that the license plate or temporary registration was reported stolen and a police item number obtained, and that application for a new temporary registration or license plate has been submitted to the appropriate licensing authority, and if applicable, a valid receipt for a safety inspection sticker indicating that the vehicle possessed a current inspection sticker on the date of the issuance of the ticket, summons, citation, or affidavit.

(f) Any ticket, summons, citation, or affidavit issued pursuant to this section shall be dismissed by the parking adjudication bureau if the owner of the vehicle submits to the parking adjudication bureau adequate proof indicating that the vehicle to which the ticket, summons, citation or affidavit was issued was parked on the street within the boundaries of the property line (extended to the street) of the residence of the owner of the vehicle and on the same side of the street as the residence of the owner of the vehicle.

(g) For the purposes of this section, a vehicle is "equipped with" or "displays" a license plate, temporary registration, or safety inspection certificate (brake tag) only if the license plate, temporary registration, or safety inspection certificate is readily visible to a person standing outside the vehicle and only if the placement of the license plate, temporary registration, or inspection certificate complies with all applicable requirements of law.

(h) Nothing contained in this section shall be construed to authorize or permit parking or stopping on any street, sidewalk, neutral ground, or other public place if such parking or stopping is otherwise prohibited by law or ordinance.

(i) No person shall be fined or punished for a first offense violation of this section and no person shall be fined or punished for a second or subsequent violation of this section unless a period of at least 30 days shall have passed between receipt of the citation for a first offense and receipt of a citation for a second or subsequent violation of this section.
(M.C.S., Ord. No. 17,433, § 1, 3-7-96)

Secs. 154-927—154-970. Reserved.

DIVISION 7. PARKING PROHIBITED OR RESTRICTED

Sec. 154-971. Time of application of division.

The provisions of this division prohibiting the parking of a vehicle shall apply at all times or at

those times herein specified or as indicated on official signs except when it is necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic control device.
(Code 1956, § 38-286.33)

Sec. 154-972. Regulations not exclusive.

The provisions of this division imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping or parking of vehicles in specified places or at specified times.
(Code 1956, § 38-286.34)

Sec. 154-973. Parking prohibited at all times on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon any of the streets where such signs are posted.
(Code 1956, § 38-286.35; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-974. Parking prohibited in priority dumping prevention areas.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon the street listed below, which street is hereby declared to be a priority dumping prevention zone:

(1) Almonaster Avenue Extension, from Jourdan Road to Old Gentilly Highway.

(Code 1956, § 38-286.36)

Sec. 154-975. Parking prohibited during certain hours on certain streets.

When signs are erected in each block giving notice that parking is prohibited during certain hours or certain streets, no person shall stop, or park a vehicle during the certain hours on any of the streets where such signs are posted.
(Code 1956, § 38-286.37; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-976. Stopping or parking prohibited during certain hours on certain streets.

When signs are erected in each block giving notice thereof, no person shall park a vehicle between the hours specified on the signs, upon any of the streets where such signs are posted.
(Code 1956, § 38-286.38; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-977. Stopping or parking prohibited at all times on certain streets.

When signs are erected in each block giving notice thereof, no person shall stop or park a vehicle between the times specified upon any of the streets where such signs are posted.
(Code 1956, § 38-286.39; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-978. Stopping or parking prohibited during certain hours on certain days on certain streets.

When signs are erected in each block giving notice thereof, no person shall stop or park a vehicle during certain hours on certain days upon any of the streets where which such signs are posted.
(Code 1956, § 38-286.40; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-979. Stopping or parking prohibited on certain dates during certain hours.

When signs are erected in each block giving notice that stopping or parking is prohibited on certain dates, during certain hours, no person shall stop or park a vehicle on the streets of the city during the certain hours, on the certain dates set forth on the sign.
(Code 1956, § 38-286.41)

Sec. 154-980. Parking time limited on certain streets.

When signs are erected on each block giving notice thereof, no person shall park a vehicle for

longer than the time specified, at any time between the hours specified, upon any of the streets where such signs are posted. The conditions expressed herein are to become effective 45 days after the ordinance from which this section is derived is signed in to law.
(Code 1956, § 38-286.42; M.C.S., Ord. No. 19,357, § 1, 9-2-99)

Sec. 154-981. Stopping or parking prohibited in Audubon Park, City Park and in Brechtel Memorial Park.

No person shall stop or park a vehicle within the boundaries of Audubon Park or in Brechtel Memorial Park where signs are erected giving notice thereof, or between the hours of 11:00 p.m. and 6:00 a.m. nor shall any person stop or park a vehicle within the boundaries of City Park between the hours of 11:00 p.m. and 5:00 a.m., provided that this prohibition shall not apply to the west bank of Bayou St. John; provided that this provision shall not apply to authorized employees of the Audubon Park Commission, the city park improvement association or the parkway and park commission while acting in connection with the performance of their official duties, nor shall this apply to vehicles of the police or fire departments when on official duty. The parking restriction applicable between the hours of 11:00 p.m. and 6:00 a.m. or of 11:00 p.m. and 5:00 a.m., shall not apply during the hours when athletic events or other functions are being conducted as authorized by the Audubon Park Commission, the city park improvement association or the parkway and park commission.
(Code 1956, § 38-286.43)

Sec. 154-982. Stopping or parking prohibited on the west bank of Bayou St. John between 8:00 p.m. and 6:00 a.m.

No person shall stop or park a vehicle on the west bank of Bayou St. John between the Bayou and Wisner Boulevard from Filmore Avenue to Robert E. Lee Boulevard where signs are erected giving notice thereof between the hours of 8:00 p.m. and 6:00 a.m.
(Code 1956, § 38-286.44)

Sec. 154-983. Restriction on stopping by buses.

(a) No bus shall be allowed to stop in one place for a period in excess of 15 minutes within the Vieux Carré. Stopping in excess of 15 minutes shall be allowed on the Vieux Carré side of Canal Street only as permitted within the zones signed and established by the department of public works and the department of utilities. No bus shall be allowed to stop at any time for the purpose of loading or discharging passengers on Decatur Street, from Canal Street to Esplanade Avenue, or on North Peters Street, from Canal Street to Elysian Fields Avenue, except as provided by zones signed and established by the department of public works and the department of utilities.

(b) For the purposes of this section, a bus shall be defined as any motor vehicle, excluding limousines, having an overall length in excess of 20 feet used for the purpose of transportation of passengers.

(c) For the purposes of this section, Vieux Carré shall mean the area within the lake side of Decatur Street, the downriver side of Esplanade Avenue, the river side of North Rampart Street and the downriver side of Canal Street.
(Code 1956, § 38-286.45; M.C.S., Ord. No. 17,558, § 3, 6-6-96; M.C.S., Ord. No. 17,823, § 3, 10-17-96)

Sec. 154-984. Stopping or parking prohibited on Napoleon Avenue and St. Charles Avenue at certain times.

(a) No person shall stop or park a vehicle on either side of Napoleon Avenue between Tchoupitoulas Street and Claiborne Avenue between two hours before and two hours after any Mardi Gras Parade whose route includes that portion of Napoleon Avenue.

(b) No person shall stop or park a vehicle on either side of St. Charles Avenue between Napoleon Avenue and Canal Street between two hours before and two hours after any Mardi Gras Parade whose route includes that portion of St. Charles Avenue.
(M.C.S., Ord. No. 25659, § 1, 1-23-14)

Sec. 154-985. Parking of certain vehicles near parades prohibited.

No person shall park a box truck, cargo van, truck with a port-a-let, camper, recreational vehicle, or trailer within two blocks of a parade route between four hours before and four hours after a parade.
(M.C.S., Ord. No. 28303, § 1, 1-30-20)

Secs. 154-986—154-1030. Reserved.

DIVISION 8. STOPPING OR PARKING PROHIBITED IN CERTAIN PLACES

Sec. 154-1031. Illegal parking upon neutral ground, public playground, pedestrian mall or Lafitte Greenway.

(a) No person shall stop or park a vehicle or other conveyance, except when necessary to avoid conflict with other traffic or in compliance with the law or directions of a police officer or traffic control device, at any of the following places:

(1) Upon a neutral ground other than those designated and operated as parking facilities.

(2) Upon any area of city-owned property formally dedicated, recognized and maintained as a playground by the city recreation department, not specifically designated for parking and interfering with the designed purpose of the playground.

(3) Upon any area of city-owned property formally dedicated or recognized and maintained as a pedestrian mall, not specifically designated for parking and interfering with the designed purpose of the pedestrian mall.

(b) No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is prohibited.

(c) No person shall park or leave standing any vehicle or other conveyance, whether attended or unattended, upon the Lafitte Greenway, the 2.6-mile trail and green corridor spanning from the intersection of North Alexander and St. Louis Streets to Basin Street and Lafitte Avenue.
(Code 1956, §§ 38-239.1, 38-286.48; M.C.S., Ord. No. 27429, § 1, 6-15-17)

Sec. 154-1032. Parking prohibited on sidewalks in Vieux Carré area.

(a) No person shall stop or park a vehicle or other conveyance, except when necessary to avoid conflict with other traffic or in compliance with the law or directions of a police officer or traffic control device, on a sidewalk in that portion of the Vieux Carré bounded by the Mississippi River, the downriver side of Canal Street, the lake side of Bourbon Street, and the downriver side of St. Ann Street, or at any location within the 300 block of Exchange Place, except as otherwise permitted in this article.

(b) Stopping, standing or parking within the 300 block of Exchange Place shall be permitted only for delivery vehicles for a short-term period not greater than 30 minutes and only while such vehicles are being used for the loading or unloading of merchandise. A violation of the prohibition against stopping, standing or parking within the 300 block of Exchange Place for other vehicles shall carry the same penalty as that for other violations of this section.
(Code 1956, §§ 38-239.3, 38-286.49; M.C.S., Ord. No. 23426, § 1, 3-19-09)

Sec. 154-1033. Exception to section 154-1032.

Notwithstanding any other ordinance to the contrary, the provisions of section 154-1032 shall not apply in the 200 block of Royal Street, the 200 block of Chartres Street or the 1000 block of Toulouse Street by delivery vehicles engaged in loading or unloading merchandise on sidewalk areas specially constructed to accommodate parking by trucks. Such sidewalk areas shall be designated by the director of streets and the department of streets shall cause informational signs to be posted on any area so designated.
(Code 1956, § 38-286.50)

Sec. 154-1034. Facilities required for loading, freight zones.

Loading zones, freight only, and freight zones utilizing the sidewalk will be limited to those locations where an existing loading dock of a building abuts the sidewalk and where the proper approaches across such sidewalks exist.
(Code 1956, § 38-226)

Sec. 154-1035. Parking prohibited on certain sidewalks in the central business district.

No person shall stop, stand or park a vehicle or other conveyance, except when necessary to avoid conflict with other traffic or in compliance with the law or directions of a police officer or traffic control device, on a sidewalk in that portion of the central business district bounded by the Mississippi River, the downriver side of Canal Street, the lake side of South Claiborne Avenue and the upriver side of Howard Avenue. The provisions of this section shall not apply to parking, stopping, or standing on sidewalks in those areas within these boundaries which are signed as "Loading Zones—Sidewalk Only."
(Code 1956, §§ 38-239.4, 38-286.51; M.C.S., Ord. No. 23426, § 1, 3-19-09)

Sec. 154-1036. Parking in violation of Mardi Gras traffic plan is prohibited.

(a) No person shall stop or park a vehicle or other conveyance upon any street in the area of the Vieux Carré determined by the superintendent of police to be restricted as part of the Mardi Gras traffic plan between 6:00 p.m. on the Friday prior to Mardi Gras Day and 6:00 a.m. on the Wednesday after Mardi Gras Day. This violation shall be enforced only after the following conditions are met by the superintendent of police: Barricades shall be erected at intersections entering the restricted area; due notice shall be published in the city's official journal; any flyers outlining the Mardi Gras traffic plan, its boundaries, and restrictions shall be distributed to the public.

(b) Any person stopping or parking a vehicle or other conveyance on-street in violation of the Mardi Gras traffic plan shall be subject to a fine, as set forth in section 154-699.

(c) Unoccupied vehicles of whatever kind or description may be immediately removed or impounded by any police officer or other person duly authorized when found stopped or parked in violation of the Mardi Gras traffic plan, as set forth in section 154-777.
(Code 1956, §§ 38-239.5, 38-286.52; M.C.S., Ord. No. 23426, § 1, 3-19-09)

Sec. 154-1037. Parking of vehicles equipped with living accommodations prohibited during certain hours.

(a) No person may park a vehicle which is equipped with living accommodations with an overall length in excess of 22 feet on any street between the hours of 7:00 p.m. and 7:00 a.m. Any citations issued under this section and resulting administrative proceedings shall be dismissed upon receipt of written notification from the vehicle's owner or lessee and verification by the parking division of the department of police that the vehicle was legally registered or leased to an individual who resides on the same block on which the vehicle was parked when the citation was issued for apparent violation of this section.

(b) For the purpose of this section, a vehicle with living accommodations is defined as any motor vehicle that contains any one or more of the following things that are capable of being used for their originally intended purpose:

(1) Sinks.

(2) Wash facilities.

(3) Lavatories.

(4) Mattresses.

(5) Stoves.

(6) Tables.

(7) Refrigerators.

(Code 1956, § 38-286.58; M.C.S., Ord. No. 18,191, § 1, 4-3-97; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1038. Parking on one-way streets.

The city traffic engineer may erect signs upon the left-hand side of any one-way street to prohibit the parking of vehicles, and when such signs are in place, no person shall park a vehicle upon such left-hand side in violation of any such sign.
(Code 1956, § 38-286.59)

Sec. 154-1039. Parking on one-way roadways.

If a highway includes two or more physically separate roadways and traffic is restricted to one direction upon any such roadway, no person shall park a vehicle upon the left-hand side of any such one-way roadway unless signs are erected to permit such parking. The city traffic engineer may determine when parking may be permitted upon the left-hand side of any such one-way roadway and erect signs giving notice thereof.
(Code 1956, § 38-286.60)

Sec. 154-1040. No stopping or parking near hazardous or congested places.

The city traffic engineer may determine and designate, by proper signs, places not exceeding 150 feet in length in which the stopping or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic, and when such signs are erected no person shall stop or park a vehicle in any such designated place.
(Code 1956, § 38-286.61; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1041. Parking next to schools.

The city traffic engineer may erect signs indicating no parking upon that side of any street adjacent to any school property when parking would, in his opinion, interfere with traffic or create a hazardous situation, and when such signs are erected no persons shall park a vehicle in any such designated place.
(Code 1956, § 38-286.62; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1042. Parking next to construction.

(a) The city traffic engineer shall have the authority to erect signs restricting parking on either side of any street adjacent to any construction site, when parking would, in his opinion, interfere with traffic or create a hazardous situation, and when appropriate signs are erected, no person shall park a vehicle in any such designated place.

(b) The city traffic engineer shall have the authority to install those parking restrictions he deems necessary until such construction is complete.
(Code 1956, § 38-286.63)

Sec. 154-1043. Unauthorized parking prohibited on municipal property.

When signs are erected giving notice thereof, no person shall park a vehicle at any time upon any property owned or leased by the city, its boards, commissions or any political subdivision thereof unless that person is authorized by the department of property management to park a vehicle on that particular property. This section shall not apply to any streets, sidewalks, public playgrounds, pedestrian malls or neutral grounds the regulation and protection of which are covered by other sections of this chapter.
(Code 1956, § 38-286.64)

Secs. 154-1044—154-1080. Reserved.

DIVISION 9. PARKING METERS*

Sec. 154-1081. Operation of division.

This division shall be operative as displayed on the multispace pay station receipt, single/

*__Editor's note—__M.C.S., Ord. No. 23215, § 1, adopted Sept. 11, 2008, amended div. 9 in its entirety and enacted similar provisions as set out herein. The former div. 9 derived from Code 1956, §§ 38-249, 38-250, 38-252, 38-253, 38-255, 38-256, 38-259, 38-261, 38-286, 38-286.65(a), (f)—(i), 38-286.66—38-286.68; Ord. No. 18,694, § 1, adopted April 16, 1998; Ord. No. 20,007, § 1, adopted Jan. 18, 2001; Ord. No. 20279, § 1, adopted Aug. 2, 2001; Ord. No. 20,633, § 1, adopted April 18, 2002; Ord. No. 20634, § 1, adopted April 18, 2002; Ord. No. 20635, § 1, adopted April 18, 2002; Ord. No. 20636, § 1, adopted April 18, 2002; and M.C.S., Ord. No. 22035, § 2, adopted Aug. 4, 2005;

double space parking meter, or via online payment systems (the "OPS"), which includes, but is not limited to, transactions conducted by phone, mobile phone, SMS text message, web browser or other electronic means, except as otherwise set forth in this chapter.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1082. Enforcement.

The regulations pertaining to multispace pay stations, single/double space parking meters and OPS, as set forth by this article, shall be enforced by the division of parking within the department of police, and such other officers as are authorized by the superintendent of police.
(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1083. Designation of metered spaces.

(a) On public streets zoned for residential use under the comprehensive zoning ordinance of the city, the council shall approve the designation of any parking space as a metered space after a public hearing to be held 15 days after posting placards in the area being proposed for such designation, notifying the residents in the area of the proposal and of the public meeting thereon. The method or means of regulating any space so designated shall be at the discretion of the director of the department of public works.

(b) On public streets zoned for commercial use under the comprehensive zoning ordinance of the city, the director of the department of public works shall cause to be installed, operated and maintained, metered spaces at such locations as designated by the director of the department of public works, without prior approval of the city council.

(c) Any regulated parking space designated as a metered space under [subsection] (a) or (b) above, prior to January 1, 2005, shall continue and remain a metered space unless such designation is specifically altered by the council or the director of the department of public works in accordance with [subsection] (a) or (b) above.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1084. Installation of single/double parking meters, multispace pay stations, or OPS.

Single/double-space parking meters shall be placed upon the curb, sidewalk or neutral ground alongside of or next to individual parking places to be determined and designated by the director of the department of public works. Each single/double parking meter shall so set as to show or display a signal that the metered space alongside of it is or is not in use.

Multispace pay stations shall be installed upon the curb or adjacent sidewalk in city blocks where metered spaces are to be regulated, in such specific locations as determined and designated by the director of the department of public works.

OPS shall have installations that vary with service type. For pay-by-phone parking, signage shall be installed at two locations within each half block, in a manner and of sufficient size such that the pay-by-phone access phone number, SMS short code and/or payment URL and unique location number are visible and readable by drivers from any vantage point within the half block. Additionally, where multispace or single/double-space parking meters are present, decals denoting the pay-by-phone phone number, SMS short code and/or payment URL and unique location number shall be installed on both street and sidewalk facing sides.
(M.C.S., Ord. No; 23215, § 1, 9-11-08)

Sec. 154-1085. Single/double-space parking meter, multispace pay station or OPS operation.

(a) Each single/double-space parking meter or multispace pay station shall be so set as to display a signal to indicate the parking time allowed upon the payment for use of the space by depositing the specified amount of legal tender of the United States or by using a credit card, debit card, smart card or token; as acceptable to the particular regulating device, in such single/double-space parking meter or multispace pay station, as the case may be, for the part of the street upon which the single/double-space parking meter or multispace pay station is placed.

(b) Each single/double-space parking meter or multispace pay station shall be so arranged that upon the expiration of such parking limit, it will indicate at what time the lawful parking period expires.

(c) The OPS shall indicate to the customer by voice, text message, email, web or other online means the parking time allowed for the selected location upon payment for use of the space. Payment for OPS transactions shall be made by credit card, debit card, prepaid account or other electronic payment mechanism.

(d) The OPS shall provide data for enforcement in real time, via wired or wireless networks, such that parking operations staff may identify separately those locations that are currently paid by OPS means and those that are not.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1086. When use required; prohibited.

(a) On those sections of city streets where parking is regulated at metered spaces, parking is permitted on the days and between the hours of operation posted for the intervals of time as indicated by the single/double space parking meters, multispace pay stations, on-line parking services (OPS), or on signs installed by the authority of the director of the department of public works in conjunction with such single/double space parking meters, multispace pay stations, or OPS meter spaces.

(b) It shall be unlawful for a vehicle to be parked in a metered space on the days and between the hours of operation indicated in paragraph (a) above, when the specified payment has not been made for use of the metered space and the single/double space parking meter, multispace pay station or OPS indicates that such payment has not been made, or when signage indicates that such space is not a legal parking space at that time. It shall be lawful to park in such legal parking spaces on public holidays, as defined in section 154-2, without payment of the specified amount, regardless of the presence of single/double space parking meters, multispace pay stations or OPS which might at other times regulate such space.

(c) It shall be unlawful for a vehicle to be parked at any time in a metered space when a locked bag or hood has been placed upon such single/double space parking meter.
(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 23428, § 1, 3-19-09)

Sec. 154-1087. Meter rates.

(a) The rate for metered parking on public streets shall be $2.00 per hour, except as otherwise provided in this section. The parking administrator may charge an additional fee up to $0.50 per metered parking transaction for payments made through the online payment system per section 154-1081. The minimum time increment charged in a single metered parking transaction shall be six minutes. The maximum time increment that may be purchased in a single meter transaction shall be four hours. A vehicle may remain parked in one location for successive four-hour periods, not to exceed 24 hours, provided that required payments are maintained continuously during periods of meter operation.

(b) The rate for metered parking within the area bounded by and including the following street blocks shall be $3.00 per hour:

0 block through 1800 block of Calliope Street

1900 block through 2900 block of Earhart Boulevard

100 block through 1000 block of South Claiborne Avenue

100 block of North Claiborne Avenue

1200 block through 1600 block of Iberville Street

200 block through 500 block of Basin Street

1100 block through 1300 block of Saint Peter Street

700 block through 1400 block of North Rampart Street

1700 block through 1800 block of Joseph Guillaume Place

1900 block through 2100 block of Saint Claude Avenue

400 block through 1000 block of Elysian Fields Avenue

2100 block of North Peters Street

900 block through 1300 block of North Peters Street

500 block through 900 block of Decatur Street

400 block of North Peters Street

100 block of Conti Street

300 block of North Front Street

200 block of Bienville Street

200 block of North Peters Street

0 block through 200 block of Iberville Street

100 block through 200 block of Badine Street East

100 block of Convention Center Boulevard

0 block through 100 block of Poydras Street

500 block through 1200 block of Convention Center Boulevard

(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 23428, § 1, 3-19-09; M.C.S., Ord. No. 30545, § 1, 12-18-25)

Sec. 154-1088. Use of substitute payment prohibited.

It shall be unlawful and an offense to deposit or cause to be deposited in any single/double-space parking meter or multispace pay station or OPS anything other than legal tender of the United States, a valid credit card, a valid debit card, a valid smart card, or token as is indicated as acceptable on the particular regulating device.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1089. Damaging single/double-space parking meters, multispace pay stations or ops signage prohibited.

It shall be unlawful and an offense for any reason to deface, injure, tamper with, open or willingly break, destroy or impair the usefulness of any single/double-space parking meters or multispace pay station or any signage or decals related to OPS services.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1090. Fixed fees and rental rates for use of curb space controlled by single/double space parking meters and multispace pay stations.

A charge of $30.00, or $15.00 for an event sponsored by a nonprofit, per diem in addition to a fixed fee of $45.00 shall be charged against all contractors, builders, and others requiring the temporary use of curb space controlled by single/double-space parking meter and/or multispace pay station or OPS services in order to facilitate work conducted by them in the immediate vicinity of the single/double space parking meters, multispace pay stations or OPS, except in the downtown area from the Pontchartrain Expressway to S. Claiborne Avenue to N. Claiborne Avenue to Elysian Fields to the River, including both sides of all streets listed, where the charge shall be $70.00, or $35.00 for an event sponsored by a nonprofit, per diem, in addition to the $45.00 fixed fee. Temporary use is defined as the time period posted on the single/double-space parking meter, multispace pay stations, or OPS. Temporary use of curb space controlled by single/double space parking meters or multispace pay stations or OPS shall not permit a user to disregard other regulations posted in the area. For purposes of this section, the term "nonprofit" shall mean an organization that is exempt from federal income tax under Section 501(c) of the Internal Revenue Code, is a Louisiana nonprofit corporation in good standing with an Employer Identification Number issued by the Internal Revenue Service, or is a school operated by the Orleans Parish School Board or Recovery School District. These fees shall be nonrefundable and shall not be waived.

Upon receipt of an application and payment for such rentals the department of public works, or its representative, will appropriately display notice of such rental. In the case of a space(s) regulated by a multispace pay station, single/double space parking meters or OPS, the department of public works, or its representative, will appropriately display a notice of such rental on the physical barriers used to indicate the space(s) being rented. If the department of public works determines that the single/double space parking

meter(s) or the multispace pay station(s), or installed OPS signs will hamper the work to be performed by the user or the possibility of damage to the single/double space parking meter, multispace pay station or OPS signs exists, then the department of public works, or its representative will remove the applicable single/double space parking meter(s), multispace pay station(s) and OPS signage and install "no parking" signs to indicate the space(s) have been rented. For this service a fee of $305.00 will be imposed, in addition to the per diem rates.

Acceptance of an application for the use of curb space occupied by single/double-space parking meters, multispace pay stations or OPS signage shall be limited to a maximum of 90 days. If this period is not sufficient, the user must request renewal of the application at least five working days before the expiration date of the original application. If an extension is requested within less than five working days of the expiration of the original application, a new application must be initiated, and payment of the fixed fees of $45.00 and $305.00 will be required.
(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 23428, § 1, 3-19-09; M.C.S., Ord. No. 23818, § 1, 12-1-09; M.C.S., Ord. No. 26786, § 1, 2-4-16; M.C.S., Ord. No. 27266, § 1, 1-26-17)

Sec. 154-1091. Duty to make payment prerequisite to use of space.

When any vehicle is parked in any legal parking space which is a metered space, the owner, operator, manager or driver of such vehicle shall, upon entering such parking space, immediately make the specified payment in the single/double-space parking meter or multispace pay station, or by use of an OPS, as is applicable, by using either legal tender of the United States or by using a credit card, debit card, smart card or token, prepaid account or other electronic means as is acceptable to the particular device being used to regulate such parking space. Upon making such payment, the metered space regulated by the device to which payment was made may be used by such vehicle during the parking limit provided, for the part of the street in which the parking space is located.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1092. Use by city field representatives.

(a) Any field representative of a department of city government when engaged in official business who displays a valid field representative parking permit on the inside of the vehicle on the right side of the rear windshield (rear windshield of the passenger side), or whose vehicle license plate is registered as a valid field representative in the OPS, while parking in any metered zone described below, shall not be required to deposit a coin or be charged via OPS for the use of the parking space for that period of time when actually on official duty; provided, however, that no such vehicle shall be parked in the same space for more than four consecutive hours. Any metered parking space within the city with the exception of the off-street metered parking spots located adjacent to city hall on LaSalle Street and on Poydras Street shall be available for a maximum of four consecutive hours for approved use by properly authorized employees who are field representatives of a department of city government.

(b) Employees described in subsection (a) may obtain a serially numbered parking permit decal from the superintendent of police or have the vehicle registered as a valid field representative vehicle in the OPS.

(c) These permits may be issued by the superintendent of police only to appropriate employees described in subsection (a) and shall bear an expiration date of December 31 of each calendar year. These permits may be renewed by the superintendent on January 1 of each year and shall be valid for 12 consecutive months.
(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1093. Use by mobility-impaired/disabilities.

When a motor vehicle bearing a plate or displaying a hang tag or a special parking card

issued to a mobility-impaired person or person with disabilities in conformance with state regulations is being operated for the transport of the mobility-impaired person or person with disabilities, the motor vehicle may be parked for a period of up to a maximum of three hours without payment, regardless of meter fares otherwise applicable to the parking space. This provision shall apply except as restricted or prohibited by ordinance, or where parking is prohibited by ordinance or police on a roadway for the purpose of creating a fire lane or for the accommodation of heavy traffic during morning, afternoon, or evening hours or where the motor vehicle is parked in such a manner as to clearly be a traffic hazard.

The city shall recognize hang tags, special parking cards, or other removable windshield placards and special license plates which have been issued by authorities of other states and countries for the purpose of identifying vehicles transporting a mobility-impaired person or person with disabilities. Additionally, special registration of the vehicle license shall be recognized in the OPS.
(M.C.S., Ord. No. 23215, § 1, 9-11-08; M.C.S., Ord. No. 26070, § 2, 10-2-14)

Sec. 154-1094. Direction of parking.

Any vehicle parked in any parking space regulated by a single/double-space parking meter shall be parked with the bumper of such vehicle alongside of or next to the single/double-space parking meter alongside of or adjacent to the parking space in parallel parking spaces, and with the center and front of the vehicle directed at the single/double space parking meter in diagonal parking spaces.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1095. Marking of spaces to be observed.

The director of the department of public works may cause to be placed lines or marks on the curb or on the street to designate the physical limits of a metered space. Each vehicle parked in any metered space so demarcated shall park within the lines or markings so established. No person shall park any vehicle across any such line or mark or park a vehicle in such a way that it shall not be within the area so designated by such lines or markings, except in the event a vehicle may be longer than the space allotted, and in such case, the driver of any vehicle occupying more than one space or any part of an additional space shall make a payment for each metered space, or any portion of a metered space, being occupied, and such driver shall be deemed to be in violation of any one of the single/double space parking meters whose space is occupied shows a violation.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1096. Use of proceeds.

The payment made by depositing the specified amount of legal tender of the United States or by using an OPS, a credit card, debit card, smart card or token as is acceptable to the particular regulating device as provided in this division are hereby levied as policy regulations and inspection fees to cover the cost of inspection and regulation involved in inspection, installation, operation, control and use of the parking spaces and single/double space parking meters, multispace pay stations and OPS described herein, and involved in checking and regulating the parking of vehicles in the parking spaces regulated by such single/double space parking meters or multispace pay stations.
(M.C.S., Ord. No. 23215, § 1, 9-11-08)

Sec. 154-1097. Use by vehicles bearing a musician loading/unloading parking permit.

Within one hour of a scheduled musical performance, a motor vehicle bearing a musician loading/unloading parking permit, issued and displayed in accordance with section 154-868(d), may park for up to 15 minutes without charge in a metered parking space for the purpose of loading or unloading musical equipment. This section does not authorize any person to park in a metered space to the extent parking has been restricted by law or by order of the city.
(M.C.S., Ord. No. 28101, § 1, 5-23-19)

Secs. 154-1098—154-1135. Reserved.

DIVISION 10. RESIDENTIAL PERMIT PARKING PROGRAM

Sec. 154-1136. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Motor vehicle means an auto, truck, motorcycle or other motor-driven form of transportation with a gross weight of less than 6,000 pounds.

Primarily residential means 50 percent of the ground level space is residential property.

Resident means an individual(s) domiciled and living in a residential property. For purposes of this definition domiciled means (1) a fixed residence in a residential permit parking zone, (2) which is the resident's primary and habitual residence (whereby the resident lives the majority of the year) and (3) the resident has the intention to remain there permanently or indefinitely.

Resident motor vehicle means a registered motor vehicle owned or leased by a resident of the residential permit parking area and registered at his or her address within the residential parking permit area.

Residential area means the contiguous or nearly contiguous area containing public streets and highways or parts thereof, the zoning of which is residential as provided in the Comprehensive Zoning Ordinance.

Residential permit parking zone means a residential area designated as herein provided where resident motor vehicles displaying a valid permit as described herein shall be exempt from parking time restrictions established pursuant to this division.

Residential property means a building or portion thereof, designed or used exclusively for residential occupancy, but not including trailers, hotels, motels, motor lodges, dormitories, boarding and lodging homes, or time share buildings.

Residential property owner means the individual(s) that have at least a 51 percent ownership interest in a residential property as reflected on the property tax records for real property address. The residential property owner may or may not be a resident.

Special area means a primarily residential contiguous or nearly contiguous area containing public streets and highways or parts thereof that necessitates specific parking regulations to accommodate the residents therein.

Special permit parking zone means a special area ordained by the city council upon the recommendation of the director of the department of public works or their designee that provides specific permit requirements and applicable permit fees that supersede these specific requirements as provided herein.

(Code 1956, § 38-313; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Cross reference—Definitions generally, § 1-2.

Sec. 154-1137. Penalties for violation.

(a) Any person parking a motor vehicle not displaying a valid permit in a residential permit parking zone for a period exceeding the time limitation established shall be subjected to a fine, as set forth in section 154-699.

(b) The parking administrator may temporarily suspend enforcement of the regulations and/or limitations of a residential permit parking zone at the direction of the superintendent of police when needed to safeguard the public or for good cause shown.

(Code 1956, § 38-286.30; M.C.S., Ord. No. 23425, § 1, 3-19-09; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1138. Permit parking zones authorized.

The parking administrator is hereby authorized to restrict by order, subject to approval by the council, parking on public streets in a residential or special area, designated by the council as provided

herein, to vehicles bearing a valid parking permit issued pursuant to this division. This authority shall be in addition to, and may be exercised in conjunction with, any other authority the parking administrator may have to regulate the times and conditions of parking. The following permit parking zones are designated:

Zone - Color	*Boundaries*	*Hours of Enforcement*	*Other Special Conditions*
1 - Yellow	Coliseum Square: St. Charles to River, Jackson to Mississippi River Bridge approach	7:00 a.m. to 7:00 p.m. Monday through Friday	None
2 - Purple	French Quarter: N. Rampart to River, Esplanade to Iberville	7:00 a.m. to 7:00 p.m. Monday through Sunday	
3 - Blue	Audubon Blvd from Willow to S. Claiborne, Broadway to State, Willow to S. Claiborne	8:00 a.m. to 2:00 p.m. Monday through Friday	Effective August through May
4 - Red	Upper Audubon: Broadway to Walnut, St. Charles to Leake	6:00 a.m. to 7:00 p.m. Monday through Friday	
5 - Orange	Louisiana to Jackson, St. Charles to Magazine	7:00 a.m. to 7:00 p.m. Monday through Friday	
6 - Pink	Newcomb Blvd/Maple Area: St Charles Ave to Willow, Uptown property lines of Tulane University to Carrollton	6:00 a.m. to 7:00 p.m. Monday through Saturday	
7 - Sunflower	State, Palmer, Calhoun between St. Charles and Willow	7:00 a.m. to 9:00 p.m. Monday through Friday	Effective August through May
8 - Silver	Not Used		
9 - Gold	Touro Bouligny: Louisiana to Napoleon, St Charles to Magazine	7:00 a.m. to 7:00 p.m. Monday through Friday	
10 - Green	Audubon Zoning: Exposition to Nashville, Arabella between St. Charles to Prytania	7:00 a.m. to 7:00 p.m. Monday through Friday	Effective August through May
11 - Raspberry	Marigny: 1400, 1700-2000 blocks of Burgundy, 1400, 1800-2000 blocks of Dauphine, 600, 900 & 1000 blocks of Kerlerec, 1000 block of St. Anthony, 1800 & 1900 N. Rampart (riverside), 1400 Bourbon, 1400 Pauger, 1400, 2000, & 2100 Chartres, 1900 & 2000 Royal	7:00 a.m. to 7:00 p.m. Monday through Sunday	
12 - White	Faubourg St. John: Ursuline, DeSaix, Broad, N. Carrollton, Wisner	11:00 a.m. to 8:00 p.m. Monday through Sunday	
13 - Light Green	Elmwood: DeGaulle to Donner, Anson to Florence	7:00 a.m. to 6:00 p.m. Saturday & Sunday only	
14 - Dark Blue	Riverbend area: 8100 Zimple, 8100 & 8200 Freret, 8100 & 8200 Burthe, 8100 & 8200 Maple, 800, 900, & 1000 S. Carrollton, 600, 800, 900, 1000 Dublin, 800 & 900 Dante	6:00 a.m. to 7:00 p.m. Monday through Saturday	
15 - Brown	Upper St. Charles: Carrollton (downtown), Leake (River & Lake), St. Charles (River) up to but not including Cherokee	7:00 a.m. to 7:00 p.m. Monday through Friday	
16 - Peach	2700 & 2800 Joseph (odd side), 5400 & 5500 Story, 5500 Cucullu, 2900 Octavia (even side)	8:00 a.m. to 4:00 p.m. Monday through Friday	August 15th through May 31st
17 - Tan	600 City Park (even side), 700 City Park (in the block between St Peter and Orleans - even only), 600 N Bernadotte (even side), 4700 Toulouse (odd side), 4700 St Peter, 4600 & 4700 Orleans (even side)	8:00 a.m. to 10:00 p.m. Monday through Friday	

(Code 1956, § 38-312.1; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 27256, § 1, 1-12-17)

Sec. 154-1139. Eligibility requirements.

(a) A residential area is eligible for residential permit parking if, based on objective criteria established by the city traffic engineer, parking therein is impacted by commuter vehicles.

(b) In determining the appropriate designation of an area identified as eligible for residential permit parking or special permit parking zone, the city traffic engineer shall take into consideration the following factors:

(1) The extent of the desire and need of the residents for appropriate designations and their willingness to bear the administrative costs in connection therewith.

(2) Proximity of the neighborhood to major parking attractors, including employment centers, retail stores, restaurants, universities, hospitals, and tourist attractions.

(3) Proximity of the neighborhood to transit service.

(4) Scarcity of convenient off-street parking for residents.

(5) The extent to which motor vehicles registered to persons residing in the residential area cannot be accommodated by the number of available off-street parking spaces.

(6) Substantial use of neighborhood curb space by commuters and other nonresidents for parking. Substantial use is defined as 25 percent or more of nonresident vehicles in the area under consideration during peak parking space usage times.

(7) Traffic, noise and safety problems caused by vehicles cruising for parking.

(Code 1956, § 38-314; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1140. Designation procedures.

(a) In order to determine whether a particular area should be designated as a residential permit parking zone or special permit parking zone, the city traffic engineer or his designee shall conduct, upon his own initiative or upon request of the city council, a public forum prior to the designation or removal of the designation of a parking permit zone, or prior to the withdrawal of such designation once it is established. Such forum shall be held only after due notice has been published in the city's official journal. The notice shall clearly state the purpose of the forum, the boundaries of the permit parking zone under consideration, the reasons why such area is being proposed for designation, and, if applicable, the proposed parking fee that would be charged. During such forum any interested person shall be entitled to appear and be heard.

(b) Within 15 days following the close of the public forum, the city traffic engineer shall recommend by report to the city council whether to designate the area under consideration as a residential permit parking zone or special permit parking zone, specifying the times or limitations recommended and proposed fees, or whether to remove the designation in the case of an established residential permit parking zone or special permit parking zone. Within 30 days following the receipt of the report, the council shall approve or disapprove the recommendation of the city traffic engineer, except special permit parking zones may be modified as deemed necessary by the council, as provided herein.

(Code 1956, § 38-315; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1141. Implementation; application for permit.

(a) Once a residential permit parking zone or special permit parking zone is approved by the city council, implementation on a particular street shall be contingent on the following criteria:

(1) The street is primarily residential.

(2) A majority of the households signed a petition seeking residential or special parking status for their block.

(3) At least 75 percent of the legal on-street parking spaces must be occupied during

the period proposed for parking restrictions, as determined by the city traffic engineer.

(b) The city traffic engineer or his designee shall install parking signs indicating times, locations and conditions under which parking is by permit only on the streets designated as the residential permit parking zone or special parking zone.

(c) The application fee pursuant to section 146-108 shall apply for both residential permit parking zone applications and special permit parking zone applications.

(d) For residential permit parking zones, a permit for parking shall be issued only to residents within a designated residential permit parking zone upon application and payment of the applicable fee. A person is eligible to apply for a residential parking permit if they are a resident within a designated residential permit parking area and do not have adequate off-street parking available at their property, as determined by the parking administrator. Eligibility for a residential parking permit is ultimately at the discretion of the parking administrator. No more than one permit shall be issued to each vehicle for which application is made.

(e) For residential permit parking zones, each application for a permit or renewal of a permit shall contain information sufficient to identify the applicant, provide proof of residency, identify the location of the resident's real property address or residence within the residential parking permit area, and identify the license number and provide proof of current registration of the resident motor vehicle for which the permit would be issued. The owner or operator of any motor vehicle applying for a residential parking permit shall have a valid state motor vehicle license except when the car is titled in a company's name and assigned to the resident for personal use. A letter from the company (on company stationery) must be presented identifying the resident, residential permit parking address, make and model and license plate number of the car along with the motor vehicle registration.

(f) For residential permit parking zones, a resident shall provide proof of residency in the residential permit parking zone on a block designated for implementation at the time application is made. Adequate proof of residency may include: the resident's tax bill providing a "homestead exemption" for the municipal address of the eligible property or an executed, current lease or other agreement for the municipal address of the eligible property.

(g) For residential permit parking zones, the application for a permit shall contain the name of the owner or operator of the motor vehicle; residential address, the make, model, registration and plate numbers of the motor vehicle; and the applicant's driver's license number. The motor vehicle registration and the driver's license of the applicant must be presented at the time of making such application in order to verify the contents thereof. The owner or operator of any motor vehicle applying for a residential parking permit shall have a valid state motor vehicle license.

(h) For special permit parking zones, the applicable permits, application and evaluation criteria, and permit fee shall be dictated by council ordinance, as provided herein.
(Code 1956, § 38-316; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1142. Permit fee.

(a) The parking administrator is authorized to establish by order an annual residential permit parking fee for each residential parking zone to cover the administrative costs of permits issued pursuant to this section. The annual fee for each such permit shall be $30.00, unless otherwise provided herein. Upon presentation of adequate proof, persons 65 years of age or older who otherwise qualify for the permit shall pay a permit fee of not more than $20.00.

(b) The annual fee special parking zone shall be as fixed by the council, but in no event shall the fee be less than $30.00, except persons 65

years of age or older who otherwise qualify for the permit, said fee shall be no less than $20.00.
(Code 1956, § 38-321; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1143. Use of permit.

(a) Use notwithstanding any provisions of this chapter to the contrary, the holder of a residential or special parking permit shall be permitted to stand or park a motor vehicle for which a permit has been issued in the residential or special permit parking zone designated on the permit without being subject to the limitations imposed on vehicles lacking the permit, provided however that parking is permitted. While a vehicle for which a residential or special parking decal has been issued is so parked, such permit decal shall be displayed so as to be clearly visible through the windshield of the vehicle.

(b) A residential or special parking permit shall not authorize the holder thereof to stand or park a motor vehicle in such places or during such times as the stopping, standing, or parking of motor vehicles is prohibited or set aside for specified types of vehicles, and shall not exempt the holder from the observance of any traffic regulation other than the parking limit.

(c) A residential or special parking permit shall not guarantee or reserve to the holder thereof an on-street parking space within the designated permit parking area.
(Code 1956, § 38-317; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1144. Exemption.

Service vehicles parked in residential or special parking zones while making service calls to residential dwellings within the zone shall be exempt from holding a residential parking zone permit and exempt from the posted time limits. Such service vehicles shall display in the windshield on the passenger side of the vehicle a work slip showing the name and address of the residence being serviced.
(Code 1956, § 38-318; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1145. Eligibility of temporary residents.

(a) *Temporary residents.* Temporary residents of a residential or special permit parking zone whose motor vehicles are registered in another state may apply for a temporary visitor's permit valid for the duration of the 30-day reciprocity period allowed under state law. Applicants must present a valid driver's license and motor vehicle registration from their home state, as well as a rental or lease agreement, utility bill receipt, or some other adequate proof of residence in the designated residential permit parking zone. The fee for issuance of such permit shall be $15.00 and may be, within 30 days, applied towards a resident sticker valid for the balance of a twelve-month period from the date of issuance when the registration of the vehicle is matched to the local address in the residential or special parking zone.

(b) *Student residents.* Students of local universities who temporarily reside, semester-by-semester, on a block designated as part a residential or special permit parking zone shall be allowed to apply for a semester-long residential parking permit for each semester attended. Such permit shall be issued only after such individual presents a valid student identification card, current vehicle registration, license plate number and operator's license as well as a rental agreement or utility bill showing the applicant as a bona fide resident of the address in question for the semester. The permit fee for shall be $20.00 per semester for each permit issued. No more than one permit per vehicle shall be issued. Students are not eligible to receive a visitor permit.
(Code 1956, § 38-319; Ord. No. 20,004, § 1, 1-18-01; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1146. Visitor and non-resident permits.

(a) *Annual residential parking visitor permit.*

(1) In a residential permit parking zone where parking spaces for visitors are not set aside on-street, the holder of a permanent valid residential parking permit or a resident without a vehicle

who would otherwise qualify for a residential parking permit, may apply for one annual residential parking visitor's permit.

(2) The annual residential parking visitor permit shall identify the resident's permanent permit number, as applicable, and zone, and shall be signed by the permit-holder host attesting that the temporary pass shall be used by a bona fide visitor.

(3) The fee for issuance of such permit shall be in accordance with section 154-1142.

(4) Such permit shall not be duplicated, but may be transferrable to different visitors at the discretion of the permit-holder host.

(b) *Daily visitor permit.*

(1) In parking zones where parking spaces for visitors are not set aside on-street, the holder of a valid annual residential parking permit or valid student permit or residential property owner subject to restrictions contained herein, may apply for a daily visitor's permit, which shall not be transferable.

(2) The daily visitor permit shall identify the permanent residential permit number, as applicable, and zone, and shall be signed by the permit-holder host or residential property owner attesting that the temporary permit shall be used by a bona fide visitor.

(3) Each daily visitor permit shall be $4.00 per pass. Upon presentation of adequate proof, persons 65 years of age or older who otherwise qualify for the permit shall pay a fee of $2.00 for each permit issued. An application fee shall not be charged for issuance of a daily visitor permit.

(4) No single residential parking permit or valid student permit holder shall be permitted to be issued or possess more than one daily visitor permit at any one time. A waiver of this limitation may be granted by the parking administrator subject to approval by the superintendent of police or their designee.

(c) *Residential property owner permit.*

(1) The parking administrator is authorized to issue an annual non-transferrable property owner permit to a residential property owner that is not a resident provided that they provide proof that they have at least a 51 percent ownership interest in a residential property as reflected on the property tax records for a real property address, current vehicle registration, license plate number and valid driver's license.

(2) The fee for issuance of such permit shall be in accordance with section 154-1142.

(3) No single real property address shall be permitted to be issued or possess more than one residential property owner permit. A waiver of this limitation may be granted by the parking administrator subject to approval by the superintendent of police or their designee.

(4) The holder of a residential property owner permit shall not be authorized to apply for a daily visitor permit.

(Code 1956, § 38-322; M.C.S., Ord. No. 23818, § 2, 12-1-09; M.C.S., Ord. No. 26477, § 1, 7-9-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1147. Misrepresentation by applicant; illegal use of transfer of permit.

(a) It shall constitute a violation of this division for any person to falsely represent himself as eligible for a residential or special parking permit or to furnish any false information in an application to the parking administrator in order to obtain a residential or special parking permit.

(b) No person other than the permittee named thereon shall use a residential or special parking permit or display it on a vehicle operated or parked, and any such use or display by a person other than the permittee shall constitute a viola-

tion of this section by the permittee and by the person who so used or displayed such parking permit.
(Code 1956, § 38-323; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1148. Penalties for misrepresentation, illegal use.

(a) The parking administrator is authorized to revoke the residential or special parking permit of any permittee found to be in violation of section 154-1147 and upon written notification thereof the permittee shall surrender such permit to the parking administrator.

(b) Any person who shall violate any provision of section 154-1147 shall, upon conviction, be subject to punishment by a fine of not more than $500.00.
(Code 1956, § 38-324; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Sec. 154-1149. Parking penalties.

Any person parking a motor vehicle not displaying a valid residential or special parking permit that has been issued in accordance with the provisions of this article, and who parks such vehicle in a residential or special permit parking zone where signs are erected giving notice thereof for more than a maximum of two hours cumulatively anywhere within the boundaries of the zone and at any time during the posted hours of operation of the zone, shall be subject to receipt of a notice of violation and imposition of monetary fine, in accordance with the provisions of this chapter. Any vehicle parked in a residential or special permit parking zone in violation of any provision of this chapter requiring immediate removal and impoundment, or which is found to be causing a severe hazard to traffic or public safety, shall be subject to such action without regard to display of valid residential or special parking zone permit.
(Code 1956, § 38-325; M.C.S., Ord. No. 26477, § 1, 7-9-15)

Secs. 154-1150—154-1190. Reserved.

ARTICLE IX. SCHEDULES OF DESIGNATED STREET REGULATIONS

Sec. 154-1191. Schedule I. One-way streets.

In accordance with section 154-602 and when properly signposted, traffic shall move only in the direction indicated upon the following streets:

Street	*From*	*To*	*Direction*
Abundance St.	N. Broad Ave.	St. Bernard Ave.	South (up)
Agriculture St.	St. Bernard Ave.	N. Broad Ave.	North (down)
N. Alexander St.	Canal St.	Bienville St.	North (down)
S. Alexander St.	Banks St.	Canal St.	North (down)
Aline St.	Prytania St.	St. Charles Ave.	West (lake)
Allen St.	Florida Ave.	Gentilly Rd.	West (lake)
Alvar St.	Chartes St.	St. Claude Ave.	West (lake)
Alvar St.	N. Claiborne Ave.	Florida Ave.	West (lake)
Amelia St.	Prytania St.	St. Charles Ave.	West (lake)
Amelia St.	St. Charles Ave.	LaSalle St.	West (lake)
Annette St.	N. Galvez St.	Florida Ave.	West (lake)
Annette St.	St. Bernard Ave.	N. Claiborne Ave.	West (lake)
Annunciation St.	Jackson Ave.	Louisiana Ave.	South (up)

Street	*From*	*To*	*Direction*
Antonine St.	St. Charles Ave.	Prytania St.	East (river)
Atlanta St.	Leontine St.	Jefferson St.	North (down)
Aubry St.	N. Broad St.	Gentilly Blvd.	West (lake)
Audubon St.	S. Claiborne Ave.	Plum St.	East (river)
Audubon St.	St. Charles Ave.	Leake Ave.	East (river)
Audubon St.	Zimple St.	Freret St.	East (river)
Badine Street East	Canal Street	Badine Street West	North (down)
Badine Street West	Iberville Street	Canal Street	South (up)
Banks St.	S. Prieur St.	Galvez St.	West (lake)
Baronne St.	Canal St.	Dufossat St.	South (up)
Barracks St.	N. Rampart St.	N. Peters St.	West (lake)
Bartholomew St.	N. Robertson St.	Chartres St.	East (river)
N. Basin St. (also known as N. Saratoga St.)	St. Louis St.	St. Peters St.	North (down)
Bayou Road	N. Galvez St.	N. Claiborne Ave.	East (river)
Bayou Road	N. Galvez St.	N. Tonti St.	West (lake)
Bell St.	North White St.	Moss St.	West (lake)
Bermuda St.	Eliza St.	Morgan St.	North
S. Bernadotte St.	Banks St.	Canal St.	North (down)
Bienville St.	N. Peters St.	Basin St.	West (lake)
Bordeaux St.	S. Saratoga St.	Prytania St.	East (river)
Bounty St.	Morgan St.	Evelina St.	South
Bourbon St.	Canal St.	Kerlerec St.	North (down)
Broadway St.	Dixon St.	Broad Pl.	East (river)
Bruxelles St.	St. Bernard Ave.	Gentilly Blvd.	West (lake)
Burdette St.	St. Charles Ave.	S. Claiborne Ave.	West (lake)
Burgundy St.	Canal St.	Esplanade Ave.	North (down)
Burgundy St.	Poland Ave.	Esplanade Ave.	South (up)
Cadiz St.	Freret St.	S. Liberty St.	East (river)
Cadiz St.	St. Charles Ave.	Laurel St.	East (river)
Calhoun St.	S. Claiborne Ave.	Tchoupitoulas St.	East (river)
Calliope St.	Annunciation St.	Camp St.	West (lake)
Calliope St.	St. Charles Ave.	Carondelet St.	West (lake)
Calliope St.	St. Charles Ave.	Prytania St.	East (river)
Camp St.	Felicity St.	Canal St.	North (down)
Carondelet St.	Robert St.	Canal St.	North (down)
Carroll St.	Poydras St.	Perdido St.	North (down)
Castiglione St.	Rendon St.	Gentilly Blvd.	East (river)
Chartres St.	Canal St.	St. Ferdinand St.	North (down)
Cherry St.	Airline Hwy.	Palmetto St.	West (lake)
Chestnut St.	Felicity St.	Jackson Ave.	South (up)
Chippewa St.	Josephine St.	Jackson Ave.	South (up)
Chippewa St.	Louisiana Ave.	Philip St.	North (down)
Chippewa St.	Philip St.	Jackson Ave.	North (down)
Chippewa St.	Race St.	St. James St.	South (up)
N. Claiborne Ave.	Poland Ave.	Elysian Fields Ave.	South (up)
Cleveland Ave.	Elks Pl.	S. Anthony St.	West (lake)

Street	*From*	*To*	*Direction*
Clinton St.	Bienville St.	Iberville St.	South (up)
Clio St.	Audubon Ct.	Norman C Francis Pkwy.	River
Clio St.	Freret St.	Camp St.	East (river)
Clouet St.	Chartres St.	N. Claiborne Ave.	West (lake)
Cohn St.	S. Carrollton Ave.	Broadway Ave.	South (river)
Coliseum St.	Delachaise St.	Louisiana Ave.	North (down)
Coliseum St.	Jackson Ave.	Felicity St.	North (down)
Coliseum St.	Clio St.	Thalia St.	South (up)
Columbus St.	N. Broad Ave.	N. Dorgenois St.	East (river)
Columbus St.	N. Broad Ave.	Bayou Rd.	West (lake)
Common St.	S. Front St.	S. Rampart St.	West (lake)
Constance St.	Jefferson Avenue	Joseph Street	South (up)
Constance St.	Arabella Street	Nashville Avenue	South (up)
Constance St.	St. Mary St.	Valmont St.	South (up)
Constance St.	Felicity St.	Julia St.	North (down)
Constance St.	Girod St.	Poydras St.	North (down)
Constantinople St.	St. Charles Ave.	Magazine St.	South (river)
Conti St.	N. Basin St.	N. Peters St.	East (river)
Cortez St.	Canal St.	Tulane Ave.	South (up)
Crete St.	Grand Rt. St. John	Fortin St.	North (down)
Croftway Court			Counter-clockwise
Cromwell Pl.	Calhoun St.	Palmer Ave.	North (down)
Crozat St.	Canal St.	Bienville St.	North (down)
D'Abadie St.	Gentilly Blvd.	N. Broad St.	East (river)
D'Abadie St.	N. Broad St.	St. Bernard Ave.	South (river)
Danneel St.	Philip St.	Jefferson Ave.	South (up)
Dauphine St.	Esplanade Ave.	Canal St.	South (up)
Dauphine St.	Esplanade Ave.	Poland Ave.	North (down)
David St.	Canal St.	Bienville Ave.	North (down)
Deborah Ave.	Florence Ave.	DeArmas St.	North (river)
Decatur St.	St. Ferdinand St.	Dumaine St.	South (up)
Decatur St.	Conti St.	Canal St.	South (up)
Delachaise St.	S. Broad St.	S. Claiborne Ave.	South (river)
Delachaise St.	St. Charles Ave.	Coliseum St.	East (river)
Delaronde St.	Bounty St.	Vallette St.	East
N. Derbigny St.	Elysian Fields Ave.	St. Roch Ave.	North (down)
N. Derbigny St.	St. Ann St.	Esplanade Ave.	East (down)
S. Derbigny St.	Gravier St.	Poydras St.	South (up)
S. Derbigny St.	Gravier St.	Canal St.	North (down)
Derby Pl.	Gentilly Blvd.	Rendon St.	West (lake)
Desoto St.	Crete St.	N. Broad St.	East (river)
Dixon St.	Mistletoe St.	Airline Hwy.	East (river)
Dixon St.	Pine St.	Broadway St.	East (river)
Dorsiere St.	Iberville St.	Canal St.	South (up)
Dryades St.	Jefferson Ave.	Philip St.	North (down)
Dryades St.	Howard Ave.	Common St.	North (down)

Street	*From*	*To*	*Direction*
Dryades-Rampart Connection	Julia St.	Howard Ave.	South (up)
Dufossat St.	Prytania St.	St. Charles Ave.	North (lake)
Dumaine St.	Decatur St.	Moss St.	West (lake)
N. Dupre St.	St. Bernard Ave.	Castiglione St.	South (uptown)
N. Dupre St.	St. Bernard Ave.	Gentilly Blvd.	South (up)
N. Dupre St.	Esplanade St.	Grand Rt. St. John	North (down)
N. Dupre St.	Ursulines St.	Esplanade St.	North (down)
S. Dupre St.	Eden St.	Fontainebleau Dr.	South (up)
S. Dupre St.	Canal St.	Perdido St.	South (up)
Eden St.	S. White St.	S. Dupre St.	West (lake)
Edinburgh St.	Carrollton Ave.	Audubon Ct.	River
Eighth St.	Magazine St.	St. Charles Ave.	West (lake)
Eighth St.	Tchoupitoulas St.	Magazine St.	West (lake)
Eleonore St.	St. Charles Ave.	Tchoupitoulas St.	East (river)
Erato St.	Norman C Francis Pkwy.	Audubon Ct.	Lake
Erato St.	St. Peter St.	S. Claiborne Ave.	West (lake)
Exchange Pl.	Canal St.	Iberville St.	North (down)
Euterpe St.	S. Rampart St.	Coliseum St.	East (river)
Fairmont Dr.	Gentilly Blvd.	Montpelier Ave.	East (river)
Felicity St.	Dryades St.	Carondelet St.	East (river)
Fern St.	S. Clairborne Ave.	Dominican St.	East (river)
Filmore St.	Franklin Ave.	Peoples Ave.	East (downtown)
First St.	Claiborne Ave.	Magazine St.	East (river)
First St.	Magazine St.	Tchoupitoulas St.	East (river)
Flood St.	Douglass St.	Flood St. Wharf	North (lake)
Flood St.	St. Claude St.	Douglass St.	South (river)
Florence Ave.	DeArmas St.	Deborah Ave.	South (woods)
Florence St.	Behrman Hwy.	General DeGaulle	North (river)
Forstall St.	Dauphine St.	St. Claude Ave.	West (lake)
Fortin St.	Mystery St.	Gentilly Blvd.	East (river)
Foucher St.	St. Charles Ave.	Coliseum St.	East (river)
Fourth St.	S. Broad Ave.	S. Dorgenois St.	East (river)
Fourth St.	Magazine St.	St. Charles Ave.	West (lake)
Fourth St.	Tchoupitoulas St.	Magazine St.	West (lake)
France St.	St. Claude Ave.	Chartres St.	East (river)
Frenchmen St.	Esplanade Ave.	N. Claiborne Ave.	West (lake)
Frenchmen St.	N. Claiborne Ave.	Florida Ave.	West (lake)
Freret St.	Broadway	S. Carrollton Ave.	South (up)
Freret St.	Gravier St.	Perdid St.	South (up)
Freret St.	Jackson Ave.	Louisiana Ave.	South (up)
Freret St.	Leonidas St.	S. Carrollton Ave.	North (down)
S. Front St.	Canal St.	Poydras St.	South (up)
Gaiennie St.	Camp St.	Annunciation St.	East (river)
N. Galvez St.	Orleans Ave.	Almonaster Ave.	North (down)
N. Gayoso St.	Gentilly Blvd.	St. Bernard St.	North (down)
S. Gayoso St.	Tulane Ave.	Canal St.	North (down)

Street	*From*	*To*	*Direction*
Gen. Pershing St.	S. Claiborne Ave.	St. Charles Ave.	East (river)
Gen. Taylor St.	S. Claiborne Ave.	S. Broad St.	North (lake)
Gen. Taylor St.	Tchoupitoulas St.	Freret St.	West (lake)
S. Genois St.	Banks St.	D'Hemecourt St.	South (up)
Girod St.	Loyola Ave.	Front St.	East (river)
Gov. Nicholls St.	Decatur St.	N. Claiborne Ave.	East (river)
Gravier St.	Loyola Ave.	S. Claiborne Ave.	West (lake)
Gravier St.	Loyola Ave.	Delta St.	East (river)
Gravier St.	S. Broad St.	S. White St.	West (lake)
Gravier St.	South Johnson	Galvez St.	
Hagan St.	Lafitte Ave.	Toulouse St.	North (down)
Hamilton St.	Dixon St.	Last St.	North (down)
Harmony St.	St. Charles Ave.	Tchoupitoulas St.	East (river)
Havana St.	Milton St.	Benefit St.	East (river)
N. Hennessey St.	Bienville St.	Canal St.	South (up)
S. Hennessey St.	Canal St.	Ulloa St.	South (up)
Hendee St.	Newton St.	Opelousas Ave.	North (down)
Hickory St.	S. Carrollton Ave.	Leonidas St.	South (up)
Hollygrove St.	Pontchartrain Blvd.	Dixon St.	South (up)
Hope St.	N. Broad St.	Elysian Fields Ave.	North (down)
Howard Ave.	Lee Circle	Tchoupitoulas St.	East (river)
Humanity St.	Gentilly Road	Havana St.	North (down)
Humanity St.	Gentilly Road	Republic St.	South (up)
Huntlee Dr.	Ken Ct.	MacArthur Blvd.	North
Iberville St.	N. Anthony St.	N. Claiborne Ave.	East (river)
Iberville St.	Basin St.	N. Peters St.	East (river)
Jasmine St.	Franklin Ave.	Peoples Ave.	North (down)
Jeanette St.	S. Carrollton Ave.	Broadway	North (down)
Jena St.	Tchoupitoulas St.	Freret St.	West (lake)
N. Johnson St.	Bienville Ave.	Canal St.	South (up)
N. Johnson St.	Esplanade Ave.	Orleans St.	South (up)
S. Johnson St.	Canal St.	Gravier St.	South (up)
S. Johnson St.	Jackson Ave.	Toledano St.	West (up)
Joliet St.	Willow St.	S. Claiborne Ave.	East (down)
Joseph St.	S. Claiborne Ave.	St. Charles Ave.	East (river)
Josephine St.	Annunciation St.	Brainard St.	West (lake)
Julia St.	Camp St.	Loyola Ave.	West (lake)
Kenilworth St.	Canal Blvd.	Vicksburg St.	North (down)
Kerlerec St.	N. Rampart St.	Dauphine St.	East (river)
Lafaye St.	Lombard St.	Gentilly Ave.	East (river)
Lafayette Mall	Fulton St.	Magazine St.	West (lake)
Lafayette St.	St. Charles St.	Loyola Ave.	West (lake)
Lafitte St.	N. Claiborne Ave.	Basin St.	East (river)
Lafreniere St.	Spain St.	St. Anthony St.	South (up)
Laharpe St.	N. Claiborne Ave.	Gentilly Blvd.	West (lake)
Lapreyrouse St.	Gentilly Blvd.	N. Claiborne Ave.	East (river)
LaSalle Pl.	Palmer Ave.	Calhoun St.	South (up)
LaSalle St.	Louisiana Ave.	Napoleon Ave.	South (up)

Street	*From*	*To*	*Direction*
LaSalle St.	Poydras St.	Gravier St.	North (down)
LaSalle St.	Tulane Ave.	Canal St.	North (down)
LaSalle St.	Tulane Ave.	Gravier St.	South (up)
Laurel St.	Henry Clay Ave.	Josephine St.	North (down)
Law St.	Elysian Fields Ave.	St. Bernard Ave.	South (up)
Leda St.	Private St.	Esplanade Ave.	South (up)
Leonidas St.	Palm St.	Palmetto St.	East (down)
Leontine St.	St. Charles	Atlanta	East (river)
LePage St.	Crete St.	Esplanade St.	West (lake)
Lesseps St.	N. Claiborne Ave.	N. Miro St.	West (lake)
Lesseps St.	Chartres St.	St. Claude Ave.	West (lake)
Lesseps St.	St. Claude Ave.	N. Claiborne Ave.	West (lake)
N. Liberty St.	Canal St.	Iberville St.	North (down)
N. Liberty St.	St. Peter St.	Esplanade Ave.	North (down)
S. Liberty St.	Gravier St.	Canal St.	North (down)
N. Lopez St.	Canal St.	Bienville St.	North (down)
S. Lopez St.	Tulane St.	Canal St.	North (down)
Lotus St.	Gentilly Blvd.	Jasmine St.	East (river)
Louisa St.	Florida Ave.	St. Claude Ave.	East (river)
Louisa St.	St. Claude Ave.	Chartres St.	West (lake)
Lowerline St.	S. Claiborne Ave.	Pitt St.	East (river)
Loyola Ave.	Louisiana Ave.	Foucher St.	South (up)
Maestri Place N.	Camp St.	St. Charles St.	West (lake)
Maestri Place S.	St. Charles St.	Camp St.	East (river)
Magazine St.	Canal St.	St. Andrew St.	South (up)
Mandeville St.	St. Claude Ave.	N. Claiborne Ave.	West (lake)
Mandeville St.	Chartres St.	St. Claude Ave.	West (lake)
Mandeville St.	N. Claiborne Ave.	N. Galvez St.	West (lake)
Marais St.	Iberville St.	Canal St.	South (up)
Marais St.	St. Bernard	Almonaster Ave.	North (down)
Marigny St.	N. Claiborne Ave.	St. Claude Ave.	East (river)
Marigny St.	St. Claude Ave.	Chartres St.	East (river)
Maurepas St.	Gentilly Blvd.	Esplanade Ave.	West (lake)
Mazant St.	Florida Ave.	N. Robertson St.	East (river)
Mazant St.	Chartres St.	St. Claude Ave.	West (lake)
Melpomene St.	Annunciation St.	Camp St.	West (lake)
Milan St.	Tchoupitoulas St.	St. Charles Ave.	West (lake)
Milne Rd.	Barracks St.	Esplanade Ave.	North (down)
N. Miro St.	Almonaster Ave.	Orleans Ave.	South (up)
S. Miro St.	Banks St.	Cleveland Ave.	North (downtown)
S. Miro St.	Banks St.	Tulane Ave.	South (uptown)
Mistletoe St.	Palm St.	Dixon St.	North (down)
Montegut St.	Chartres St.	St. Claude Ave.	West (lake)
Morgan St.	Patterson St.	Bouny St.	West
Moss St.	Toulouse St.	Lafitte St.	South (up)
S. Murat St.	Canal St.	Banks St.	South (up)
Music St.	St. Claude Ave.	Burgundy St.	East (river)
Natchez St.	Camp St.	Tchoupitoulas St.	East (river)

Street	*From*	*To*	*Direction*
Nelson St.	Leonidas St.	S. Carrollton Ave.	North (down)
New Orleans St.	Gentilly Rd.	Florida Ave.	East (river)
North St.	Camp St.	St. Charles St.	West (lake)
Oak St.	Broadway	S. Carrollton Ave.	South (up)
Octavia St.	St. Charles Ave.	S. Claiborne Ave.	West (lake)
Olive St.	Audubon Ct.	Carrollton Ave.	Lake
Olivier St.	Opelousa St.	Patterson St.	North
S. Olympia St.	Banks St.	Canal St.	North (down)
Onzaga St.	N. Broad St.	Gentilly Blvd.	West (lake)
Onzaga St.	N. Broad St.	St. Bernard Ave.	North (lake)
Orange St.	Camp St.	Felicity St.	West (lake)
Orange St.	Tchoupitoulas St.	Camp St.	West (lake)
O'Reilly St.	Gentilly Blvd.	N. Broad Ave.	East (river)
Oriole St.	St. Bernard Ave.	Lakeshore Dr.	North (down)
Orleans St.	Royal St.	N. Rampart St.	West (lake)
Palmer Ave.	St. Charles Ave.	S. Claiborne Ave.	West (lake)
Palmetto St.	Short St.	S. Carrollton Ave.	West (lake)
Palmyra St.	Cemeteries	S. Claiborne Ave.	East (river)
Panola St.	Leonidas St.	S. Carrollton Ave.	North (down)
Park Island Drive			Counter-clockwise
Patterson St.	Vallette St.	Morgan St.	North
Pauger St.	Bourbon St.	N. Claiborne Ave.	West (lake)
Paul Morphy St.	Bayou Rd.	St. Bernard St.	North (down)
Pauline St.	St. Claude Ave.	Chartres St.	East (river)
Peniston St.	LaSalle St.	St. Charles St.	East (river)
Peoples Ave.	Gentilly Blvd.	Florida Ave.	East (river)
Perdido St.	St. Charles St.	Loyola Ave.	West (lake)
Perdido St.	LaSalle St.	Loyola Ave.	East (river)
N. Peters St.	Dumaine St.	Barracks St.	North (down)
St. Peters St.	Thalia St.	Canal St.	North (down)
Philip St.	Brainard St.	St. Charles Ave.	East (river)
Philip St.	Claiborne Ave.	Simon Bolivar Blvd.	South (river)
Philip St.	Danneel St.	Simon Bolivar Ave.	West (lake)
Philip St.	Magazine St.	St. Charles Ave.	West (lake)
Philip St.	Rousseau St.	Magazine St.	West (lake)
Picayune St.	Natchez St.	Gravier St.	North (down)
N. Pierce St.	Orleans Ave.	Toulouse	West (uptown)
S. Pierce St.	Gravier St.	Ulloa St.	East (down)
S. Pierce St.	Canal St.	Ulloa St.	West (up)
Piety Dr.	Mirabeau Ave.	Pineda St.	East (river)
Piety Dr.	Chartres St.	St. Claude Ave.	West (lake)
Piety Dr.	N. Robertson St.	Florida St.	West (lake)
Pine St.	Broad Pl.	Dixon St.	West (lake)
Pine St.	Pitt St.	S. Claiborne Ave.	West (lake)
Pineda St.	Louisa Dr.	Piety Dr.	North (down)
Pitt St.	Nashville Ave.	Henry Clay Ave.	South (up)
Pleasant St.	Camp St.	Magazine St.	East (river)
Pleasant St.	Camp St.	St. Charles Ave.	West (lake)

Street	*From*	*To*	*Direction*
Pleasure St.	Gentilly Rd.	Havana St.	South (up)
Pleasant St.	Tchoupitoulas St.	Magazine St.	West (lake)
Pleasure St.	St. Anthony St.	St. Roch Ave.	North (down)
Plum St.	S. Carrollton Ave.	Broadway	North (down)
Poeyfarre St.	Tchoupitoulas St.	Camp St.	West (lake)
Polymnia St.	St. Charles Ave.	Dryades St.	West (lake)
Ponce de Leon St.	North Lopez Street	Esplanade Avenue	West (up)
Ponce de Leon St.	Vignard St.	Mystery St.	East (river)
Pontchartrain Blvd.	New Orleans Hammon Hwy.	Veterans Hwy.	East (river)
Port St.	Chartres St.	St. Claude Ave.	West (lake)
Port St.	St. Claude Ave.	Marais St.	West (lake)
Pratt Dr.	King Drive	Paris Ave.	South (uptown)
N. Prieur St.	Orleans Ave.	Esplanade Ave.	North (down)
N. Prieur St.	Canal St.	St. Louis St.	North (down)
S. Prieur St.	Gravier St.	Cleveland St.	North (down)
S. Prieur St.	Washington Ave.	Melpomene St.	North (down)
Private St.	Verna St.	Leda St.	West (lake)
N. Rampart St.	McShane Pl.	Poland Ave.	North (down)
S. Rampart St.	Howard Ave.	Julia St.	North (down)
S. Rampart St.	Common St.	Julia St.	South (up)
N. Rendon St.	Dumaine St.	Ursuline Ave.	North (down)
S. Rendon St.	Canal St.	Tulane Ave.	South (up)
Rex Place	First St.	Second St.	South (up)
Reynes St.	St. Claude Ave.	Chartres St.	East (river)
Richard St.	Chippewa St.	Tchoupitoulas St.	East (river)
Robert St.	S. Claiborne Ave.	St. Charles Ave.	East (river)
R.E. Lee Bridge Svc. Rdwy. on lakeside	Warrington Dr.	London Ave.	South (up)
N. Robertson St.	Elysian Fields Ave.	Esplanade Ave.	South (up)
N. Robertson St.	Elysian Fields Ave.	Poland Ave.	North (down)
S. Robertson St.	Canal St.	Tulane Ave.	South (up)
S. Robertson St.	Washington Ave.	St. Andrew St.	East (down)
N. Rocheblave St.	Ursuline Ave.	St. Bernard Ave.	East (down)
S. Rocheblave St.	Banks St.	Canal St.	North (downtown)
N. Roman St.	Esplanade Ave.	Orleans Ave.	West (up)
S. Roman St.	Delachaise St.	Napoleon Ave.	West (up)
S. Roman St.	Poydras St.	Gravier St.	North (downtown)
S. Roman St.	St. Bernard	Gentilly Blvd.	South (up)
S. Roman St.	Tulane Ave.	Canal St.	South (uptown)
Rosiere St.	St. Bernard St.	Gentilly Blvd.	South (up)
Rousseau St.	Washington Ave.	Jackson Ave.	North (down)
Royal St.	France St.	Canal St.	South (up)
St. Andrew St.	Carondelet St.	Laurel St.	North (down)
St. Andrew St.	Dryades St.	Simon Bolivar	West (lake)
St. Ann St.	N. Claiborne Ave.	N. Peters St.	East (river)
St. Ann St.	Moss St.	N. Broad St.	East (river)
St. Anthony St.	Florida Ave.	N. Galvez St.	East (river)

Street	*From*	*To*	*Direction*
St. Anthony St.	N. Claiborne Ave.	St. Claude Ave.	East (river)
St. Charles St.	Canal St.	Lee Circle	South (up)
St. Claude Ave.	Gov. Nicholls St.	St. Bernard Ave.	North (down)
St. Claude Ave. bridge, lake service road	Reynes St.	Tennessee St.	South (up)
St. Ferdinand St.	St. Claude Ave.	Chartres St.	East (river)
St. Joseph St.	Baronne St.	Carondelet St.	East (river)
St. Louis St.	Decatur St.	Basin St.	West (lake)
St. Mary St.	St. Charles Ave.	Carondelet St.	West (lake)
St. Mary St.	Magazine St.	St. Charles Ave.	West (lake)
S. St. Patrick St.	Canal St.	Banks St.	South (up)
St. Peter St.	N. Carrollton Ave.	City Park Ave.	North (lake)
St. Peter St.	N. Peters St.	N. Claiborne Ave.	West (lake)
St. Philip St.	Moss St.	N. Peters St.	East (river)
St. Roch Ave.	Chartres St.	St. Claude Ave.	West (lake)
St. Thomas St.	St. James St.	Race St.	North (down)
St. Thomas St.	Jackson Ave.	Josephine St.	North (down)
St. Thomas St.	Jackson Ave.	Washington Ave.	South (up)
S. Salcedo St.	Canal St.	Banks St.	South (up)
Saratoga St.	Canal St.	Poydras St.	South (up)
S. Saratoga St.	S. Claiborne Ave.	Philip St.	East (down)
Sauvage St.	Gr. Rt. St. John	Fortin St.	North (down)
Saux Lane	Lauradale Dr.	Magellan Canal	South (woods)
S. Scott St.	Ulloa St.	Canal St.	North (down)
Second St.	Magazine St.	S. Claiborne Ave.	West (lake)
Second St.	Rousseau St.	Magazine St.	West (lake)
Seguin St.	Opelousas St.	Morgan St.	North
Seratine St.	Gentilly Blvd.	St. Bernard St.	East (river)
Seventh St.	Magazine St.	Tchoupitoulas St.	East (river)
Seventh St.	St. Charles St.	Magazine St.	East (river)
Sixth St.	Magazine St.	St. Charles Ave.	West (lake)
Sixth St.	Tchoupitoulas St.	Magazine St.	West (lake)
N. Solomon St.	Canal St.	Bienville St.	South (up)
S. Solomon St.	Ulloa St.	Canal St.	North (down)
Soniat St.	St. Charles Ave.	S. Claiborne Ave.	West (lake)
Sophie Wright Pl.	St. Andrew St.	Felicity St.	North (down)
South St.	St. Charles Ave.	Camp St.	East (river)
Spain St.	St. Claude Ave.	Chartres St.	East (river)
Sycamore St.	S. Carrollton Ave.	Audubon St.	North (down)
Tchoupitoulas St.	Canal St.	St. Joseph St.	South (up)
Terpischore St.	Camp St.	Annunciation St.	East (river)
Terpischore St.	Prytania St.	S. Rampart St.	West (lake)
Thalia St.	S. Claiborne Ave.	S. Peters St.	East (river)
Thalia St.	S. Salcedo	S. Broad St.	East (river)
Third St.	S. Claiborne Ave.	Magazine St.	East (river)
Third St.	S. Broad Ave.	S. Dorgenois St.	East (river)
Third St.	Magazine St.	Tchoupitoulas St.	East (river)
Toledano St.	Magazine St.	Camp St.	West (lake)

Street	*From*	*To*	*Direction*
Toledano St.	Magazine St.	Tchoupitoulas St.	East (river)
Toledano St.	St. Charles Ave.	Camp St.	East (river)
N. Tonti St.	Bayou Road	Columbus St.	North (down)
N. Tonti St.	Bienville St.	Canal St.	South (up)
S. Tonti St.	Canal St.	Tulane Ave.	South (uptown)
Toulouse St.	Basin St.	Decatur St.	East (river)
Toulouse St.	City Park Ave.	N. Carrollton Ave.	South (river)
Touro St.	N. Claiborne Ave.	Royal St.	East (river)
Touro St.	N. Galvez St.	N. Claiborne Ave.	East (river)
Treasure St.	Gentilly Road	Paris Ave.	North (down)
Treme St.	Iberville St.	Canal St.	South (up)
Ulloa St.	S. Telemachus St.	S. Carrollton Ave.	West (lake)
Union St.	St. Charles Ave.	Dryades St.	West (lake)
University Pl.	Common St.	Canal St.	North (down)
Upperline St.	Pitt St.	S. Claiborne Ave.	West (lake)
Urania St.	Coliseum St.	Felicity St.	West (lake)
Urquhart St.	Elysian Fields Ave.	St. Bernard Ave.	South (up)
Ursulines Ave.	N. Peters St.	N. Claiborne Ave.	West (lake)
Ursulines St.	N. Peters St.	Decatur St.	East (river bound)
Vallette St.	Lamarque St.	Patterson St.	North (river)
Valmont St.	Clara St.	Freret St.	East (river)
Valmont St.	Danneel St.	Prytania St.	East (river)
Verna St.	Esplanade Ave.	Private St.	North (down)
Verret St.	Patterson St.	Lamarque St.	South (woods)
Vignaud St.	Grand Rt. St. John	Ponce de Leon St.	North (down)
Villere St.	St. Bernard Ave.	Elysian Fields Ave.	North (down)
S. Villere St.	Tulane Ave.	Canal St.	North (down)
Virginia St.	City Park Ave.	Conti St.	North (downtown)
Waldo St.	Leon C. Simon Dr.	Robert E. Lee Blvd.	East (river)
Walnut St.	Leake Ave.	St. Charles Ave.	West (lake)
Webster St.	St. Charles Ave.	Magazine St.	East (river)
West End Blvd.	Homedale St.	Conrad St.	West (lake)
N. White St.	Fortin St.	Esplanade St.	South (up)
S. White St.	Perdido St.	Canal St.	North (down)
S. White St.	Delachaise St.	Washington Ave.	North (down)
Willow St.	Broadway	S. Carrollton Ave.	South (up)
Wirth Place	Freret St.	Magnolia St.	West (lake)
Wisteria St.	Franklin Ave.	Peoples Ave.	South (up)
Zimple St.	Broadway	Audubon	North (down)
Zimple St.	S. Carrollton Ave.	Broadway	North (down)
Zimple St.	S. Carrollton Ave.	Leonidas	South (up)

(Code 1956, § 38-277; M.C.S., Ord. No. 16,474, 4-21-94; M.C.S., Ord. No. 17,794, § 1, 10-3-96; M.C.S., Ord. No. 19,027, § 6, 12-17-98; Ord. No. 19,506, § 1, 12-16-99; M.C.S., Ord. No. 21964, § 1, 5-19-05; M.C.S., Ord. No. 22051, § 1, 8-18-05; M.C.S., Ord. No. 22453, § 1, 12-4-06; M.C.S., Ord. No. 28571, § 5, 12-17-20, eff. 1-1-21)

Sec. 154-1192. Harmony Street; two-way direction.

Pursuant to the one-way street designations of Pleasant and Toledano Streets within the specified boundaries, Harmony Street between Magazine Street and Camp Street shall hereby be designated a two-way street.
(Code 1956, § 38-277.1)

Sec. 154-1193. Schedule II. Through streets.

In accordance with the provisions of sections 154-531 et seq. and 154-603 and when signs are erected giving notice thereof, drivers of vehicles shall stop at every intersection before entering any of the following streets or parts of streets:

Street	*From*	*To*
Allen St.	N. Broad Ave.	Gentilly Ave.
Beauregard Ave.	Robert E. Lee Blvd.	Lakeshore Dr.
Behrman Ave.	Opelousas St.	Anson St.
Benefit St.	Allen St.	Franklin Ave.
Caffin Ave.	Florida Ave.	St. Claude Ave.
Camp St.	Felicity St.	Howard Ave.
N. Claiborne Ave.	Elysian Fields Ave.	Poland Ave.
Dwyer Rd.	Downman Rd.	Wright Rd.
Felicity St.	Religious St.	Tchoupitoulas St.
Fillmore Ave.	Canal Blvd.	Marconi Dr.
Florida Ave.	N. Broad Ave.	Caffin Ave.
N. Galvez St.	Japonica St.	Orleans Ave.
Gentilly Road	Peoples Ave.	Viavant Station
Haynes Blvd.	Jourdan Rd.	Paris Rd.
Hendee St.	Opelousas St.	Patterson St.
Howard Ave.	S. Cortez St.	S. Broad Ave.
Jackson Ave.	S. Claiborne Ave.	St. Charles Ave.
Leake Ave.	Oak St.	St. Charles Ave.
Louisa Dr.	Dreaux Ave.	Chef Menteur Hwy.
Magazine St.	Calhoun St.	Howard Ave.
Marconi Dr.	Robert E. Lee Blvd.	Lakeshore Dr.
Mirabeau Ave.	Congress Dr.	Press Dr.
Mirabeau Dr.	Elysian Fields Ave.	Franklin Ave.
N. Miro St.	Almonaster Ave.	Orleans Ave.
Morgan St.	Lavergne St.	Seguin St.
Nashville Ave.	Tchoupitoulas St.	S. Claiborne Ave.
Navarre Ave.	Canal Blvd.	Marconi Dr.
New Orleans St.	Gentilly Blvd.	N. Broad St.
Newton St.	Behrman Ave.	Elmira St.
Norma Mayor Ave.	Gentilly Rd.	Pelopidas St.
Opelousas St.	Behrman Ave.	Hendee St.
Patterson St.	Hendee St.	Lavergne St.
Prytania St.	Calliope St.	Jefferson Ave.
Religious St.	Euterpe St.	Felicity St.
N. Robertson St.	Elysian Fields Ave.	Poland Ave.
St. Bernard Ave.	N. Claiborne Ave.	McShane Pl.

Street	*From*	*To*
St. Maurice Ave.	St. Claude Ave.	N. Galvez St.
Sophie Wright Pl.	St. Andrews St.	Felicity St.
Southline Dr.	Franklin Ave.	Lakeshore Dr.
State St.	Tchoupitoulas St.	S. Claiborne Ave.
Tchoupitoulas St.	Exposition Blvd.	Howard Ave.
Valence St.	Freret St.	St. Charles Ave.
West End Blvd.	Conrad St.	Robert E. Lee Blvd.
West End Blvd.	Homedale Ave.	Polk Ave.
Walmsley Ave.	S. Carrollton Ave.	Lowerline St.
Woodland Highway	General Meyer Ave.	City Limit

(Code 1956, § 38-278; Ord. No. 20,731, § 1, 5-16-02; Ord. No. 21,053, § 1, 4-16-03)

Sec. 154-1194. Schedule III. Prima facie speed limits.

In accordance with section 154-533 and when signs are erected giving notice thereof, the prima facie speed limit shall be as set forth in this schedule upon those streets or portions thereof:

Street	*Prima Facie Speed Limit Mph*	*From*	*To*
Airline Highway	40	Palm St.	12th St. Canal
Alix Street	15	Whitney Ave.	Powder St.
Almonaster Blvd.	45	Jourdan Rd.	Old Gentilly Rd.
Andrew Higgins	15	Camp	Magazine
Annunciation Street			
Automobiles	25	Crescent City Connection	Race Street
Trucks, buses	15	Crescent City Connection	Race Street
Argonne Boulevard	25	Robert E. Lee Boulevard	Kenilworth Street
Atlantic Ave. (Trucks and buses)	15	Opelousas St.	Patterson St.
Audubon Blvd.	25	Claiborne Ave.	Willow St.
Behrman Highway	35	Marr St.	Behrman Place
Behrman Highway (La. 428)	45	Behrman Place	Parish Line
Behrman Place (La. 428)	45	Gen. DeGaulle Ave.	Behrman Hwy.
Bellville Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Bounty Street (Trucks and buses)	15	Opelousas St.	Morgan St.
Calhoun Street	20	Perrier	Camp
Carlisle Court	25	Gen. DeGaulle Ave.	Rue Delphine
Chef Menteur Hwy. (U.S. Highway 90)	40	Downman Rd.	Viavant Station
Chef Menteur Hwy. (U.S. Highway 90)	60	Viavant Station	Rigolets Bridge
City Park Avenue			
Automobiles	35	Canal Blvd.	Carrollton Ave.

Street	*Mph*	*From*	*To*
Trucks, buses	25	Canal Blvd.	Carrollton Ave.
Connection between U.S. Interstate 10 and Greater New Orleans Bridge	45	S. Claiborne Ave.	Camp St.
Delaronde Street (Trucks and buses)	15	Vallette St.	Morgan St.
Eliza Street (Trucks and buses)	15	Whitney Ave.	Powder St.
Elmira Avenue (Trucks and buses)	15	Opelousas St.	Patterson St.
English Turn Parkway	40	LA 406	Stanton Road
Evelina Street (Trucks and buses)	15	Whitney Ave.	Opelousas Ave.
Fillmore Ave.	35	Marconi Dr.	Wisner Blvd.
Fontainebleau Drive	30	Carrollton Avenue	South Broad Street and Napoleon Avenue
Gen. DeGaulle Dr.	45	Holiday Dr.	Woodland Dr.
Gen. Meyer Ave.	35	Flanders St.	Richland Rd.
Gen. Meyer Ave.	40	Richland Rd.	Woodland Hwy.
Gen. Meyer Ave.	25	Merrill St.	Flanders St.
Gen. Meyer Ave.	35	Woodland Hwy.	Cut off Rd.
Gentilly Road	50	Viavant Station East	Chef Menteur Hwy.
Hammond Hwy.	35	Pontchartrain Blvd.	The Parish Line
Harrison Ave.	25	Canal Blvd.	Orleans Ave.
Haynes Blvd.	40	Downman Rd.	Vanderkloot St.
Haynes Blvd.	25	Vanderkloot St.	Weaver St.
Haynes Blvd.	40	Weaver St.	Paris Rd.
Holiday Drive			
Automobiles	35	Gen. DeGaulle Dr.	Gen. Meyer
Trucks, buses	25	Gen. DeGaulle Dr.	Gen. Meyer
Jackson Ave.			
Automobiles	35	Tchoupitoulas	St. Charles Ave.
Automobiles	30	St. Charles Ave.	S. Claiborne Ave.
Automobiles	25	Tchoupitoulas	S. Claiborne
Trucks, buses	20	Tchoupitoulas	S. Claiborne Ave.
Jefferson	25	Tchoupitoulas	Tonti
Lakeshore Dr.	35	Canal Blvd.	Industrial Canal
Lakeshore Dr.	25	Robert E. Lee Blvd.	Canal Blvd.
Lakeshore Dr.	35	West End Blvd.	Industrial Canal
LeBoeuf Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Leon C. Simon Dr.	40	Franklin Ave.	Lakeshore Dr.
Louisa St.	30	Higgins Blvd.	Florida Ave.
Louisiana Ave.			
Automobiles	35	Tchoupitoulas	South Claiborne
Trucks, buses	20	Tchoupitoulas	South Claiborne
Magazine St.	20	Calhoun St.	Walnut St.
Marconi Dr.	35	City Park	Robert E. Lee Blvd.
Mayo Road	25	I-10 Service Road	Morrison Road
McArthur Blvd.	25	General DeGaulle	Woodland Dr.
Michoud Blvd.	45	Chef Menteur Hwy.	Old Gentilly Rd.
Morgan Street (Trucks and buses)	15	Patterson St.	Powder St.
Nunez Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Olivier Street (Trucks and buses)	15	Opelousas St.	Patterson St.

Street	*Mph*	*From*	*To*
Pacific Avenue (Trucks and buses)	15	Opelousas St.	Patterson St.
Paris Road	50	Haynes Blvd.	Chef Menteur Hwy.
Pelican Avenue (Trucks and buses)	15	Whitney Ave.	Powder St.
Pontchartrain Blvd.	35	Robert E. Lee Blvd.	Veterans Hwy.
Powder Street (Trucks and buses)	15	Opelousas St.	Morgan St.
Prytania Street	20	Louisiana Ave.	Antonine St.
U.S. Highway 11	50	Viavant Station	Maestri Bridge
U.S. Interstate 10			
Trucks	45	S. Carrollton Ave.	S. Claiborne Ave.
Automobiles	50	S. Carrollton Ave.	S. Claiborne Ave.
Sequin Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Shadowlawn Avenue	15	I-10 Service Road	E. Renaissance
Spanish Fort Blvd.	25	Robert. E. Lee Blvd.	St. Pius X School
Teche Street	15	Opelousas St.	Morgan St.
Thayer Avenue (Trucks and buses)	15	Opelousas St.	Patterson St.
Vallette Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Verrette Street (Trucks and buses)	15	Opelousas St.	Patterson St.
Versailles Boulevard	25	Claiborne Ave.	Fontainebleau Drive
Versailles Blvd.	25	S. Claiborne Ave.	Walmsley Ave.
West End Blvd.			
Automobiles	35	Veterans Hwy.	Robert E. Lee Blvd.
Trucks and buses	25	Veterans Hwy.	Robert E. Lee Blvd.
Whitney Avenue (Trucks and buses)	15	Opelousas St.	Patterson St.
Wisner Blvd.	40	Harrison Ave.	Robert E. Lee Blvd.
Woodland Dr.	45	Gen. Meyer Ave.	Gen. DeGaulle Ave.
Woodland Dr. (Trucks and buses)	25	Gen. DeGaulle Dr.	Tullis Dr.

(Code 1956, § 38-279; M.C.S., Ord. No. 16,596, § 1, 8-4-94; M.C.S., Ord. No. 16,890, 2-16-95; M.C.S., Ord. No. 17,391, § 1, 1-18-96; M.C.S., Ord. No. 17,860, § 1, 11-26-96; M.C.S., Ord. No. 18,733, § 1, 6-4-98; Ord. No. 19,463, § 1, 11-18-99; Ord. No. 19,919, § 1, 11-16-00; M.C.S., Ord. No. 20122, § 1, 4-19-01; M.C.S., Ord. No. 20350, § 1, 9-6-01; Ord. No. 20,731, § 1, 5-16-02; Ord. No. 21,067, § 1, 4-16-03; M.C.S., Ord. No. 21370, § 1, 12-1-03; M.C.S., Ord. No. 21371, § 1, 12-1-03; M.C.S., Ord. No. 21962, § 1, 5-19-05; M.C.S., Ord. No. 25295, § 1, 4-18-13; M.C.S., Ord. No. 27269, § 1, 1-26-17; M.C.S., Ord. No. 29687, § 1, 10-19-23)

Sec. 154-1195. Schedule IV. Parking prohibited at all times on certain streets.

(a) When signs are erected giving notice thereof, no person shall at any time park a vehicle upon any of the following described streets or parts of streets:

Street	*From*	*To*	*Side*
Abundance St.	Franklin Ave.	Eads St.	Both sides
N. Alexander St.	Iberville St.	Bienville St.	West (lake)
Almonaster Ave.	Louisa St.	France Rd.	West (lake)
Amelia St.	St. Charles	Prytania	South (right-uptown)
Annunciation St.	Felicity St.	Josephine St.	Both sides
Atlanta St.	Leontine St.	Jefferson Ave.	West (lake)
Atlanta St.	Valmont St.	Dufossat St.	West (lake)

Street	*From*	*To*	*Side*
Audubon St.	Freret St.	St. Charles Ave.	North (downtown)
Audubon St.	Zimple St.	Freret St.	South (uptown)
Aviators St.	St. Bernard Ave.	Cartier St.	East (river)
Barracks St.	N. Rampart St.	St. Claude Ave.	South (left-up)
Barracks	N. Peters St.	Decatur St.	North (right-downtown)
Basin St.	Canal St.	Iberville St.	West (lakeside)
Basin St. (N. Saratoga)	St. Louis St.	St. Peter St.	West (lake)
Belfort St.	Leda St.	Romulus St.	East (river)
Bienville St.	Basin St.	Crozat St.	North (right-downtown)
Bienville St.	N. Rampart St.	Basin St.	Both sides
Bienville St.	Royal St.	Dauphine St.	North (right-down)
Bourbon St.	Canal St.	St. Ann St.	East (right-river)
Bradish Alley	S. Rocheblave St.	S. Tonti St.	North (downtown)
S. Broad St. (service rdwy.)	Erato St.	Calliope St.	Both sides
Calhoun St.	LaSalle St.	Cromwell Pl.	South (uptown)
Calhoun St.	Perrier St.	Camp St.	North (down)
Calliope St.	St. Charles Ave.	Carondelet St.	North (down)
Canal Blvd.	Florida Ave.	Kenilworth St.	North (down)
Canal St.	N. Rampart St.	Treme St.	North (downtown)
Canal St.	S. Saratoga	S. Rampart St.	South (uptown)
Canal St.	N. White St.	N. Dupre St.	North (down)
Capdeville St.	Magazine St.	Camp St.	North (down)
Carnot St.	DeMontluzin St.	Lafaye St.	East (river)
Carroll St.	Poydras St.	Perdido St.	Both sides
Castiglione St.	Gentilly Blvd.	N. Salcedo St.	North (downtown)
Castiglione St.	N. Salcedo St.	N. Lopez St.	South (uptown)
Celeste St.	Tchoupitoulas St.	S. Peter St.	(uptown side)
Chartres St.	Canal St.	St. Louis St.	West (left-lake)
Chartres St.	Louisa St.	Clouet St.	West (lake)
Chartres St.	St. Ferdinand St.	Press St.	West (lake)
Chartres St.	St. Ann St.	Dumaine St.	East (river)
Chartres St.	St. Louis St.	Toulouse St.	East (right-river)
Chase St.	Loyola Ave.	Loyola Ct.	Both sides
Cleveland St.	S. Prieur St.	S. Roman St.	North (down)
Clio St.	S. Liberty St.	Simon Bolivar	South (up)
Clio St.	Magnolia St.	Freret St.	North (downtown)
Clio St.	St. Charles Ave.	Prytania St.	Up (south)
College St.	Pritchard Pl.	Melpomene St.	North (downtown)
Commerce St.	Notre Dame St.	Lafayette St.	Both sides
Commerce St.	Poydras St.	Lafayette St.	East (river)

Street	*From*	*To*	*Side*
Constance St.	Girod St.	Poydras St.	East (right-river)
Constance St.	Henry Clay Ave.	Nashville Ave.	South (uptown)
Constance St.	Howard Ave.	St. Joseph St.	West (left-lake)
Conti St.	Basin St.	N. Rampart St.	Both sides
Conti St.	Dauphine St.	Bourbon St.	South (right-up)
Conti St.	Royal St.	Decatur St.	North (left-down)
Cromwell Pl.	Calhoun St.	a point 90 feet from Loyola Univ.	West (lake)
Cypress St.	S. Claiborne Ave.	a point 200 ft. river side of Magnolia St.	South (uptown)
Dauphine St.	Bienville St.	Canal St.	West (right-lake)
Delachaise St.	St. Charles Ave.	Coliseum St.	West (lake)
Delery St.	St. Claude Ave.	Douglas St.	North (downtown)
N. Derbigny St.	Elysian Fields Ave.	Marigny St.	East (river)
Dixon St.	Carrollton Ave.	Dublin St.	Both sides
Dixon St.	S. Genois St.	S. Clark St.	North (downtown)
Dixon St.	S. Norman C Francis Pkwy.	S. Clark St.	North (downtown)
Dixon St.	Pine St.	Broadway St.	South (uptown)
Dominican St.	Broadway	Audubon St.	East (river)
Dominican St.	Pine St.	Lowerline St.	East (river)
Dorsiere St.	Canal St.	Iberville St.	West (lake)
Dryades St.	Calliope St.	Clio St.	West (lake)
Dufossat St.	St. Charles Ave.	Atlanta St.	North (downtown)
Dumaine St.	N. Rampart St.	St. Claude Ave.	South (left-uptown)
S. Dupre St.	Eden St.	Washington Ave.	West (lake)
Earhart Blvd.	LaSalle St.	Simon Bolivar Ave.	South (uptown)
Eastern St.	Gentilly Blvd.	Lombard St.	South (uptown)
Eden St.	S. White St.	S. Dupre St.	West (lake)
Euphrosine St.	S. Broad St. Svs Rdwy.	S. White St.	North (down)
Euphrosine St.	S. Lopez St.	S. Norman C Francis Pkwy.	North (downtown)
Exchange Pl.	Iberville St.	Bienville St.	Both sides
Felicity St.	Market St.	St. Charles Ave.	North (downtown)
Felicity St.	Market St.	Tchoupitoulas St.	North (downtown)
Florida Ave.	Alvar St.	Elysian Fields Ave.	North

Street	*From*	*To*	*Side*
Forstall St.	St. Claude Ave.	N. Rampart St.	South (uptown)
Foy St.	Elysian Fields Ave.	Frenchmen St.	(lakeside)
Frenchmen St.	Caton St.	Senate St.	Both sides
Frenchmen St.	Gentilly Blvd.	St. Denis St.	South (uptown)
Freret St.	Broadway	Audubon St.	Both sides
Freret St.	Broadway	Lowerline St.	East (river)
Freret St.	Louisiana Ave.	Delachaise St.	West (lake)
Gaiennie St.	Tchoupitoulas St.	S. Peters St.	South (uptown)
Garfield St.	Arabella St.	Nashville Ave.	West (lake)
N. Gayoso St.	St. Louis St.	Conti St.	East (river)
Gen. DeGaulle Dr.	Whitney Ave.	Jeff. Parish Line	North
N. Genois St.	Conti St.	Bienville St.	East (river)
S. Genois St.	Dixon St.	Howard Ave.	East (river)
Girod St.	Loyola Ave.	S. Peters St.	North (left-downtown)
Haik Dr.	Mirabeau Ave.	Timoleon St.	North (downtown)
Harney St.	Milne St.	Colbert St.	East (river)
Hiawatha St.	School Board Property	Louisa St.	East (river)
Howard Ave.	Lee Circle	Tchoupitoulas St.	North (left-downtown)
Hurst St.	Pine St.	Broadway St.	West (lake)
Iberville St.	Basin St.	S. Claiborne Ave.	North (left-downtown)
Iberville St.	Basin St.	N. Rampart St.	Both sides
Iberville St.	Crozat St.	Basin St.	South (right-uptown)
Iberville St.	Dauphine St.	Royal St.	South (right-up)
Iberville St.	Decatur St.	N. Peters St.	North (left-down)
Iberville St.	N. Robertson St.	N. Villere St.	South (uptown)
Iberville St.	N. Derbigny St.	N. Roman St.	North (downtown)
Jena St.	Magnolia St.	S. Robertson St.	North (downtown)
Julia St.	LaSalle St.	Magnolia St.	South (uptown)
Lafayette St.	Baronne St.	St. Charles Ave.	South (left-uptown)
Lafayette St.	O'Keefe Ave.	Baronne St.	North (right-downtown)
Lafayette St.	Rampart St.	O'Keefe Ave.	South (left-uptown)
Lafayette Mall	Fulton St.	Magazine St.	Both sides
Lakeshore Dr.	Franklin Ave.	Leon C. Simon Dr.	North (lakeside)

(b) Service vehicles shall be permitted to make deliveries during the hours of 8:00 a.m. and 6:00 p.m. Parking for service vehicles will be restricted to the areas signed.

Street	*From*	*To*	*Side*
Lafayette St.	Water St.	Delta St.	Both sides
Lafitte St.	N. Broad Ave.	N. Prieur St.	South (uptown)
LaSalle St.	Euphrosine St.	First St.	East (river)
LaSalle St.	Palmer Ave.	Calhoun St.	West (lake)
LaSalle St.	Tulane Ave.	Gravier St.	Both sides
Leake Ave.	Oak St.	St. Charles Ave.	Both sides
Leonidas St.	Apple St.	Spruce St.	South (uptown)
Lesseps St.	St. Claude Ave.	Marais St.	South (uptown)
S. Liberty St.	Poydras St.	Tulane Ave.	West (left-lake)
N. Lopez St.	Bienville St.	St. Louis St.	East (river)
Lowerline St.	St. Charles Ave.	Benjamin St.	North (downtown)
Loyola Ave.	Palmer Ave.	Loyola Univ.	West (lake)
Loyola Ave.	Sixth St.	Seventh St.	West (lake)
Loyola Ct.	Perdido St.	Poydras St.	Both sides
Madrid St.	St. Bernard Ave.	Cartier Ave.	West (lake)
Magazine St.	Arabella St.	Webster St.	West (lake)
Magazine St.	Eleonore St.	Joseph St.	East (river)
Magazine St.	Exposition Blvd.	Moquer Ave.	Both sides
Magazine St.	Poeyfarre	Calliope St.	Left (river)
Manasses Alley	Tulane Ave.	Banks St.	Both sides
Marais St.	Iberville St.	Canal St.	West (right-lake)
Marquette Pl.	Calhoun St.	Loyola Univ.	East (river)
Marquette Pl.	Palmer Ave.	Calhoun St.	West (lake)
S. Miro St.	Cleveland Ave.	Canal St.	East (river)
Natchez St.	Camp St.	Tchoupitoulas St.	North (left-downtown)
Oak Pl.	N. Tonti St.	N. Rocheblave St.	North (down)
Orleans Ave.	Royal St.	Bourbon St.	North (right-down)
Orleans Ave.	Treme St.	Marais St.	South (up)
Palm St.	Airline Hwy.	Monticello St.	South (uptown)
Palm St.	S. Carrollton Ave.	Airline Hwy.	Both sides
Palm Ter.	St. Charles St.	Carondelet St.	North (downtown)
Palmetto St.	Short St.	Pine St.	East (river)
Palmetto St.	S. Norman C Francis Pkwy.	S. Genois St.	North (downtown)
Patterson Ave.	Holiday Pl.	River Oaks Dr.	East (woods)
Patterson St.	Lavergne St.	Bermuda St.	North (downtown)
Patton St.	Henry Clay Ave.	Arabella St.	West (lake)
Pelopidas St.	Elysian Fields	Marigny St.	West (lake)
Penn St.	Poydras St.	Perdido St.	West (lake)
Peoples Ave.	Florida Ave.	Abundance St.	North (downtown)

Street	*From*	*To*	*Side*
Perdido St.	Loyola Ave.	O'Keefe St.	South (uptown)
N. Peters St.	St. Phillip St.	Barracks St.	West (lake)
N. Peters St.	St. Phillip St.	Esplanade Ave.	East (river)
Piety St.	N. Galvez St.	N. Miro St.	North (down)
Pine St.	Howard Ave.	Palmetto St.	West (lake)
Pitt St.	Amelia	Peniston St.	West (right-lake)
Poydras St.	S. Front St.	Water St.	South (uptown)
Providence Pl.	Dement St.	Gentilly Blvd.	North (downtown)
Prytania St.	Foucher St.	Aline St.	Both sides
N. Rampart St.	Conti St.	St. Louis St.	East (river)
N. Rampart St.	Iberville St.	Canal St.	West (lake)
Reynes St.	N. Rampart St.	Douglass St.	South (up)
N. Robertson St.	Canal St.	Iberville St.	East (river)
N. Roman St.	Painters St.	Franklin Ave.	South
Royal St.	Bienville St.	Iberville St.	East (left-river)
Royal St.	Bienville St.	Canal St.	West (right-lake)
St. Ann St.	Treme St.	N. Rampart St.	South (right-uptown)
St. Ann St.	Treme St.	St. Claude Ave.	North (left-downtown)
St. Claude Ave.	Esplanade Ave.	Kerlerec St.	East (river)
St. Joseph St.	Carondelet St.	Baronne St.	North (downtown)
St. Louis St.	Chartres St.	Royal St.	Both sides
St. Louis St.	Royal St.	Bourbon St.	North (right-down)
St. Peter St.	Basin St.	St. Claude Ave.	South (left-uptown)
St. Peter St.	Chartres St.	Royal St.	North (right-down)
St. Peter St.	St. Claude Ave.	Treme St.	Both sides
St. Philip St.	St. Claude Ave.	N. Rampart St.	North (left-down)
Seventh St.	Loyola Ave.	S. Saratoga St.	North (downtown)
Simon Bolivar Ave.	Clio St.	Thalia St.	West (lake)
Southlawn Blvd.	Gen. Meyer Ave.	Lawrence St.	East side
Tchoupitoulas St.	Jackson Ave.	Philip St.	West (lake)
Tchoupitoulas St.	Thalia St.	Erato St.	East (river)
Tchoupitoulas St.	Valence St.	Napoleon Ave.	East (river)
Thalia St.	S. Broad St.	S. White St.	West (lake)
Thalia St.	S. Peters St.	Water St.	South (uptown)
Thalia St.	Water St.	Front St.	North (down)
Toulouse St.	Basin St.	N. Rampart St.	North (left-down)
Toulouse St.	N. Genois St.	N. Scott St.	North (downtown)
Treme St.	Conti St.	St. Louis St.	West (lake)
Treme St.	Iberville St.	Canal St.	East (left-river)
Tulane Ave.	S. Genois St.	S. Telemachus St.	North (downtown)
Tulane Ave.	Loyola Ave.	S. Rampart St.	South (uptown)
Touro St.	Senate St.	Pelopidas St.	South (uptown)
Ulloa St.	S. Pierce St.	S. Scott St.	East (downtown)
Union St.	S. Rampart St.	O'Keefe St.	Both sides
Ursuline St.	N. Rampart St.	St. Claude Ave.	North (right-downtown)
Ursuline St.	N. Rampart St.	St. Claude St.	South (up)

Street	*From*	*To*	*Side*
Verna St.	Marie St.	Private St.	East (river)
Victory Dr.	Wagner St.	Whitney Ave.	Both sides
N. Villere St.	Canal St.	Iberville St.	West (lake)
N. Villere St.	Orleans St.	St. Ann St.	West (lake)
S. Villere St.	Cleveland Ave.	Canal St.	West (left-lake)
Water St.	Canal St.	Poydras St.	East (river)
Water St.	Lafayette St.	Poydras St.	Both sides
Walmsley Ave.	Lowerline St.	Pine St.	East (river)
Washington Ave.	Willow St.	S. Claiborne Ave.	North (downtown)
Washington Ave.	S. Derbigny St.	S. Claiborne Ave.	South (uptown)
S. White St.	Euphrosine St.	Howard Ave.	East (river)
S. White St.	Perdido St.	Gravier St.	East (river)
Whitney Ave.	Bringier St.	Gen. DeGaulle Dr.	West
Whitney Ave.	Gen. DeGaulle Dr.	Shephard St.	East
Willow St.	Audubon St.	Broadway	West (lake)
Willow St.	State St.	Nashville Ave.	West (lake)
Zimple St.	Audubon St.	Newcomb College	East (river)

(Code 1956, §§ 38-233, 38-280; M.C.S., Ord. No. 19,228, § 2, 5-6-99; M.C.S., Ord. No. 28571, § 6, 12-17-20, eff. 1-1-21)

Sec. 154-1196. Schedule V. Parking prohibited during certain hours on certain streets.

In accordance with section 154-975, and when signs are erected giving notice thereof, no person shall stop, stand, or park a vehicle during the hours and days specified upon any of the streets below, as follows:

(1) Parking prohibited from 8:00 a.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Baronne St.	Common St.	St. Joseph St.	River
N. Bernadotte	Toulouse St.	N. Peters St.	Lake
Bienville St.	Burgundy St.	N. Rampart St.	Downtown
Bienville St.	Canal St.	St. Louis	River
Calliope St.	Annunciation St.	Constance St.	Uptown
Camp St.	Gen. Pershing	Napoleon Ave.	Lake
Camp St.	Gravier St.	Natchez St.	Lake
Camp St.	Poydras St.	Calliope St.	Lake
Canal St.	S. Claiborne Ave.	S. Liberty St.	Both sides
Carondelet St.	Gravier St.	Perdido St.	River
Carondelet St.	Gravier St.	Union St.	Lake
Carondelet St.	Poydras St.	Howard Ave.	Lake
Chartres St.	Iberville St.	St. Louis St.	River
Church St.	Julia St.	Girod St.	Both sides

Street	*From*	*To*	*Side*
Cleveland Ave.	Elks Pl.	S. Liberty St.	Uptown
Cleveland Ave.	LaSalle St.	S. Claiborne Ave.	Uptown
Cleveland Ave.	S. Liberty St.	S. Saratoga St.	Downtown
Common St.	S. Peters St.	Tchoupitoulas St.	Downtown
Conti St.	N. Broad Ave.	N. White St.	Downtown
N. Cortez St.	Bienville St.	Conti St.	Both sides
S. Cortez St.	Tulane Ave.	Gravier St.	Lake
Dauphine St.	Conti St.	Canal St.	Lake
Delachaise St.	St. Charles Ave.	Carondelet St.	Uptown
Dixon St.	Pine St.	Broadway	Downtown
N. Dorgenois St.	St. Bernard Ave.	Republic St.	River
Dyrades-Rampart Connection	Julia St.	Howard Ave.	River
Elks Pl.	Tulane Ave.	Canal St.	River
Gravier St.	S. Cortez St.	S. Scott St.	Downtown
Gravier St.	Loyola Ave.	S. Saratoga St.	Both sides
Iberville St.	Royal St.	Decatur St.	Uptown
Iberville St.	N. Villere St.	Treme St.	Uptown
Iberville St.	N. Rampart St.	Dauphine St.	Uptown
Joseph St.	Freret St.	S. Liberty St.	Both sides
Lafayette St.	S. Front St.	Fulton St.	Downtown
Lafayette St.	S. Peters St.	Magazine St.	Downtown
LaSalle St.	Cleveland Ave.	Tulane Ave.	Lake
LaSalle St.	Louisiana Ave.	Marengo St.	Lake
S. Liberty St.	Poydras St.	Girod St.	Both sides
S. Liberty St.	Tulane Ave.	Canal St.	Lake
Loyola Ave.	Gravier St.	Tulane Ave.	River
Magazine St.	Poydras St.	Julia St.	River
Maple St.	Audubon St.	Broadway St.	Lake
Mystery St.	Fortin St.	Esplanade Ave.	Both sides
Notre Dame St.	Tchoupitoulas St.	Magazine St.	Downtown
O'Keefe Ave.	Common St.	Gravier St.	River
O'Keefe Ave.	Howard Ave.	Common St.	Lake
Perdido St.	S. Broad Ave.	S. Dorgenois St.	Uptown
Perdido St.	Carondelet St.	O'Keefe Ave.	Uptown
S. Peters St.	Canal St.	St. Joseph St.	River
S. Peters St.	Gravier St.	St. Joseph St.	Lake
Picayune St.	Natchez St.	Gravier St.	River
Poydras St.	Camp St.	S. Front St.	Uptown
Poydras St.	St. Peter St.	Tchoupitoulas St.	Downtown
Poydras St.	S. Dorgenois St.	S. Broad Ave.	Uptown
N. Rampart St.	Bienville St.	Iberville St.	Lake
N. Rampart St.	Canal St.	Bienville St.	River
S. Rampart St.	Common St.	Julia St.	River
S. Rendon St.	Washington Ave.	Melpomene St.	Downtown
S. Robertson St.	Nashville Ave.	State St.	River
Royal St.	Canal St.	Iberville St.	River
St. Charles Ave.	Common St.	Gravier St.	River

Street	*From*	*To*	*Side*
St. Charles Ave.	Poydras St.	North St.	River
St. Charles Ave.	South St.	Lee Circle	River
St. Charles Ave.	St. Joseph St.	Lee Circle	Both sides
St. Joseph St.	Constance St.	Tchoupitoulas St.	Both sides
St. Philip St.	Bourbon St.	Royal St.	Uptown
St. Thomas St.	Erato St.	Thalia St.	Lake
S. Saratoga St.	Canal St.	Cleveland Ave.	River
Tchoupitoulas St.	Poydras St.	St. Joseph St.	River
Tchoupitoulas St.	Poydras St.	Julia St.	Lake
Tchoupitoulas St.	Gravier St.	Natchez St.	Both sides
Thalia St.	St. Thomas St.	Tchoupitoulas St.	Uptown
Tulane Ave.	S. Rampart St.	Elks Pl.	Downtown
Union St.	St. Charles St.	Dryades St.	Downtown
S. Villere St.	Tulane Ave.	Cleveland Ave.	River
Willow St.	Poydras St.	Lafayette St.	Lake

(2) Parking prohibited from 4:00 p.m. to 6:00 p.m.:

None

(3) Parking prohibited from 8:00 p.m. to 6:00 a.m.:

Street	*From*	*To*	*Side*
Cherry St.	Airline Hwy.	Palm St.	Both sides
Edinburgh St.	Airline Hwy.	Live Oak St.	North (down)
Live Oak St.	Airline Hwy.	Edinburgh St.	Both sides
Livingston St.	Airline Hwy.	Edinburgh St.	Both sides
Palm St.	Airline Hwy.	Live Oak St.	Both sides

(4) Parking prohibited from 9:00 to 3:00 p.m.:

Street	*From*	*To*	*Side*
Canal St.	Decatur St.	N. Rampart St.	North (downtown)
Decatur St.	Esplanade Ave.	Canal St.	West (lake)

(5) Parking prohibited from 12:01 a.m. to 6:00 a.m. on Mondays, Wednesdays, and Fridays:

Street	*From*	*To*	*Side*
Baronne	Common	Howard	Both sides
Camp	Howard	Canal	Both sides
Capdeville	Magazine	Camp	Both sides
Carondelet	Howard	Common	Both sides
Carroll	Poydras	Perdido	Both sides
Commerce	Girod	Lafayette	Both sides
Common	S. Peters	S. Rampart	Both sides
Constance	Girod	Poydras	Both sides
Conv. Ctr. Blvd.	Poydras	Calliope	Both sides
Girod	S. Claiborne	Conv. Ctr. Blvd.	
Gravier	Loyola	S. Peters	Both sides
Lafayette	S. Peters	Magazine	Both sides

Street	*From*	*To*	*Side*
Lafayette	St. Charles	S. Rampart	Both sides
S. Maestri	Camp	St. Charles	Both sides
N. Maestri	Camp	St. Charles	Both sides
Magazine	Canal	Howard	Both sides
Natchez	Camp	Tchoupitoulas	Both sides
O'Keefe	Howard	Common	Both sides
Penn	Poydras	Perdido	Both sides
Perdido	Carondelet	Loyola	Both sides
S. Peters	Poydras	Girod	Both sides
S. Rampart	Common	Howard	Both sides
St. Charles	Common	Lee Circle	Both sides
Tchoupitoulas	Poydras	Canal	Both sides
Union	St. Charles	Rampart	Both sides

(6) Parking prohibited from 12:01 a.m. to 6:00 p.m. on Tuesdays and Thursdays:

Street	*From*	*To*	*Side*
Church	Girod	Julia	Both sides
Clara	Poydras	Perdido	Both sides
Cleveland	S. Claiborne	Elks Place	Both sides
Commerce	Julia	LaSalle	Both sides
Constance	Howard	Julia	Both sides
N. Diamond	Conv. Ctr. Blvd.	Tchoupitoulas	North (down)
S. Diamond	Tchoupitoulas	Conv. Ctr. Blvd.	South (up)
Freret	Poydras	Gravier	Both sides
Fulton	Diamond	Girod	Both sides
Gravier	Loyola	S. Claiborne	Both sides
Howard	St. Charles	Conv. Ctr. Blvd.	Both sides
Julia	Conv. Ctr. Blvd.	Loyola	Both sides
LaSalle	Poydras	Gravier	Both sides
S. Liberty	Gravier	Canal	Both sides
Marais	Canal	Tulane	Both sides
Notre Dame	Conv. Ctr. Blvd.	Magazine	Both sides
Perdido	Loyola	S. Claiborne	Both sides
S. Peters	Girod	Diamond	Both sides
S. Robertson	Poydras	Perdido	Both sides
S. Robertson	Tulane	Canal	Both sides
St. Joseph	Baronne	Conv. Ctr. Blvd.	Both sides
S. Saratoga	Canal	Tulane	Both sides
Tchoupitoulas	Howard	Girod	Both sides
Triangle	Conv. Ctr. Blvd.	S. Peters	Both sides
S. Villere	Canal	Tulane	Both sides

(7) Parking prohibited from 12:01 a.m. to 6:00 a.m. on Sundays through Saturdays:

Street	*From*	*To*	*Side*
Baronne	Canal	Common	Both sides
Canal	S. Claiborne	Miss. River	Both sides

Street	*From*	*To*	*Side*
Carondelet	Canal	Common	Both sides
Conv. Ctr. Blvd.	Canal	Poydras	Both sides
Elks Pl.	Canal	Tulane	Both sides
S. Peters	Canal	Poydras	Both sides
Poydras	S. Claiborne	Conv. Ctr. Blvd.	Both sides
S. Rampart	Canal	Tulane	Both sides
St. Charles	Canal	Common	Both sides
University Pl.	Canal	Common	Both sides

(8) Parking prohibited 12:01 a.m. to 6:00 a.m. Thursdays:

Street	*From*	*To*	*Side*
St. Charles	Lee Circle	Jackson	Both sides

(9) Parking prohibited from 12:01 a.m. until 6:00 a.m. Wednesdays:

Street	*From*	*To*	*Side*
S. Claiborne	Canal	Poydras	Both sides

(Code 1956, § 38-281)

Sec. 154-1197. Schedule VI. Stopping, standing or parking prohibited during certain hours on certain streets.

When signs are erected giving notice thereof, no person shall stop, stand or park a vehicle between the hours specified herein of any day except Saturdays, Sundays and the public holidays within the district or upon any of the streets or parts of streets as follows:

(1) No stopping, standing or parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Street	*From*	*To*	*Side*
Camp St.	Calliope St.	Howard Ave.	West (left-lake)
Canal St.	N. Peters St.	N. Front St.	North (downtown)
Chartres St.	Canal St.	Conti St.	West (left-lake)
Chartres St.	Canal St.	Iberville St.	East (right-river)
Dauphine St.	St. Louis St.	Iberville St.	East (left-river)
Dryades St.	Common St.	Howard Ave.	West (left-lake)
Dryades St./Rampart St. Connection	Julia St.	Howard Ave.	East (left-river)
Gravier St.	Magazine St.	S. Peters St.	South (right-up)
Howard Ave.	Lee Circle	Camp St.	Both sides
Julia St.	O'Keefe Ave.	Loyola Ave.	North (right-down)
Julia St.	O'Keefe Ave.	S. Rampart St.	South (left-uptown)
Perdido St.	O'Keefe Ave.	Loyola Ave.	North (right-down)
Polk St.	Canal Blvd.	Louis XIV	Both sides
University Pl.	Common St.	Canal St.	West (left-lake)

(2) No stopping, standing or parking 4:00 p.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Canal St.	S. Peters St.	S. Rampart St.	South (uptown)

Street	*From*	*To*	*Side*
Canal St.	N. Anthony St.	City Park Ave.	North (downtown)
Dauphine St.	Frenchmen St.	Elysian Fields Ave.	East (left-river)
Poydras St.	S. Rampart St.	Loyola Ave.	North (downtown)

(3) No parking 8:00 a.m. to 7:00 p.m.:

Street	*From*	*To*	*Side*
Royal St.	St. Ann St.	Bienville St.	West (right-lake)
St. Peter St.	Royal St.	Bourbon St.	North (right-down)

(4) No stopping, standing or parking 7:00 a.m. to 9:00 a.m. and 3:00 p.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Canal St.	Decatur St.	N. Rampart St.	North (downtown)

(5) No stopping, standing or parking 3:00 p.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
N. Rampart St.	Canal St.	Esplanade Ave.	East (river)

(6) No stopping, standing or parking 7:00 a.m. to 9:00 a.m.:

Street	*From*	*To*	*Side*
Decatur St.	Esplanade Ave.	Canal St.	West (lake)
LaSalle St.	Cleveland Ave.	Tulane Ave.	West (lake)
Rampart St.	Esplanade Ave.	Canal St.	West (lake)

(7) No stopping, standing or parking 7:00 a.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Decatur St.	St. Phillip St.	St. Louis St.	East (river)
N. Peters St.	Crossman St.	St. Louis St.	East (river)

(Code 1956, §§ 38-235, 38-282; M.C.S., Ord. No. 16,888, 2-2-95; M.C.S., Ord. No. 18,393, § 1, 8-21-97; M.C.S., Ord. No. 19,137, § 1, 3-4-99; M.C.S., Ord. No. 19,421, § 1, 10-21-99)

Sec. 154-1198. Schedule VII. Parking time limited on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle for longer than the time specified herein between the hours specified herein of any day except Saturdays, Sundays and the public holidays within the district or upon any of the streets or parts of streets as follows:

(1) One hour parking, 8:00 a.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Bayou Rd.	N. Dorgenois St.	N. Broad Ave.	Both sides
S. Broad Ave.	Washington Ave.	Eve St.	West (lake)
Canal St.	Clairborne Ave.	Galvez St.	Both sides
Dauphine St.	St. Louis St.	Conti St.	West (lake)
Newton St.	Whitney Ave.	Behrman Ave.	Both sides
Prytania St.	Robert St.	Bordeaux St.	Both sides

Street	*From*	*To*	*Side*
N. Rampart St.	Bienville St.	Conti St.	West (lake)

(2) One hour parking, 8:00 a.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Tulane Ave.	Loyola Ave.	Claiborne Ave.	North (downtown)

(3) Two hour parking, 8:00 a.m. to 6:00 p.m.:

Street	*From*	*To*	*Side*
Bienville St.	Basin St.	Crozat St.	South (uptown)
S. Broad St.	Thalia St.	Erato St.	East (river)
Bourbon St.	St. Ann St.	Esplanade Ave.	East (right-river)
Burgundy St.	Toulouse St.	St. Ann St.	East (right-river)
Calhoun St.	Freret St.	St. Charles Ave.	North (downtown)
Calhoun St.	Cromwell Pl.	St. Charles Ave.	South (uptown)
Chartres St.	Wilkinson St.	St. Ann St.	East (right-river)
Cromwell Pl.	Calhoun St.	Loyola Univer.	East (river)
Dauphine St.	St. Ann St.	Orleans	West (right-lake)
Dauphine St.	St. Peter St.	Toulouse St.	West (right-lake)
DeSoto St.	N. Broad Ave.	Bayou Rd.	North (downtown)
DeSoto St.	N. Dorgenois St.	N. Broad Ave.	Both sides
Earhart Blvd.	S. Carrollton Ave.	Short St.	South (uptown)
Freret St.	Jena St.	Upperline St.	Both sides
Girod St.	Magazine St.	Tchoupitoulas St.	South (right-uptown)
Iberville St.	S. Claiborne Ave.	S. Robertson St.	South (uptown)
Julia St.	Magazine St.	Loyola Ave.	Both sides
LaSalle Pl.	Palmer Ave.	Dead end downtown	Lakeside
S. Liberty St.	Poydras Ave.	Tulane Ave.	East (right-river)
Loyola Ave.	Tulane Ave.	Poydras St.	West (right-lake)
Magazine St.	Cadiz St.	Marengo St.	Both sides
Magazine St.	Felicity St.	Jackson Ave.	Both sides
Newcomb Blvd.	St. Charles Ave.	Freret St.	Uptown
Orleans Ave.	Bourbon St.	N. Rampart St.	North (right-down)
Palmer Ave.	St. Charles Ave.	Freret St.	Both sides
Prytania St.	Gen. Taylor St.	Constantinople St.	Both sides
Sophie Wright Pl.	St. Mary St.	St. Andrew St.	Both sides
St. Ann St.	N. Rampart St.	Bourbon St.	South (right-up)
St. Ann St.	Royal St.	Chartres St.	South (right-up)
St. Claude Ave.	St. Maurice Ave.	Tricou St.	West (lake)
St. Peter St.	Bourbon St.	N. Rampart St.	North (right-down)

(Code 1956, §§ 38-236, 38-283)

Sec. 154-1199. Schedule VIII. Stopping, standing or parking prohibited at all times on certain streets.

When signs are erected giving notice thereof, no person shall at any time stop, stand or park a vehicle upon any of the following streets:

Street	*From*	*To*	*Side*
Almonaster Ave.	Jordan Rd.	Old Gentilly Rd.	Both sides
Barracks St.	Decatur St.	N. Rampart St.	South (uptown)
Bienville St.	Dauphine St.	Burgundy St.	North (down)
Bienville St.	N. Peters St.	N. Rampart St.	South (uptown)
Bourbon St.	Canal St.	Esplanade Ave.	West (lake)
Burgundy St.	Canal St.	Esplanade Ave.	West (lake)
Canal St.	Water St.	N. Front St.	North (down)
Chartres St.	Canal St.	Iberville St.	East (river)
Chartres St.	St. Ann St.	Esplanade Ave.	West (lake)
Chartres St.	St. Louis St.	St. Peter St.	West (lake)
Clinton St.	Bienville St.	Iberville St.	West (lake)
Common St.	O'Keefe St.	S. Rampart St.	South (uptown)
Common St.	S. Peters St.	Baronne St.	South (uptown)
Conti St.	N. Rampart St.	Royal St.	North (down)
Dauphine St.	Esplanade Ave.	Canal St.	East (river)
Decatur St.	Esplanade Ave.	St. Philip St.	East (river)
Decatur St.	St. Louis St.	Canal St.	East (left-river)
Decatur St.	St. Louis St.	Canal St.	East (river)
Dorsiere St.	Iberville St.	Canal St.	East (river)
Dumaine St.	Decatur St.	N. Rampart St.	South (up)
Exchange Pl.	Canal St.	Iberville St.	West (lake)
Gov. Nicholls St.	N. Rampart St.	Decatur St.	North (down)
Gravier St.	Loyola Ave.	S. Peters St.	North (down)
Iberville St.	Decatur St.	N. Peters St.	South (uptown)
Iberville St.	N. Rampart St.	Decatur St.	North (down)
Madison St.	Chartres St.	Decatur St.	South (uptown)
Orleans St.	Royal St.	N. Rampart St.	South (uptown)
Perdido St.	Carondelet St.	St. Charles Ave.	South (uptown)
N. Peters St.	Canal St.	Crossman St.	East (river)
Picayune St.	Natchez St.	Gravier St.	West (lake)
Prytania St.	Leake Ave.	Lowerline St.	East (river)
S. Prieur St.	Canal St.	Cleveland St.	West (lake)
S. Robertson St.	Cleveland St.	Canal St.	East (river)
S. Roman St.	Gravier St.	Tulane Ave.	West (lakeside)
Royal St.	Esplanade Ave.	Bienville St.	East (river)
Royal St.	Iberville St.	Canal St.	East (river)
St. Ann St.	N. Rampart St.	Chartres St.	North (down)
St. Charles Ave.	Howard Ave.	Calliope St.	Lakeside
St. Louis St.	Decatur St.	Chartres St.	South (uptown)
St. Louis St.	Royal St.	N. Rampart St.	South (uptown)
St. Peter St.	Chartres St.	N. Rampart St.	South (uptown)
St. Philip St.	N. Rampart St.	Decatur St.	North (down)
Toulouse St.	Basin St.	N. Rampart St.	Both sides
Toulouse St.	N. Rampart St.	Decatur St.	North (down)
Townsend Pl.	Morrison Rd.	Haynes Blvd.	Both sides
Union St.	St. Charles Ave.	O'Keefe St.	South (uptown)
Ursuline Ave.	N. Peters St.	N. Rampart St.	South (uptown)
N. Villere St.	Canal St.	Iberville St.	West (lake)

Street	*From*	*To*	*Side*
Water St.	Canal St.	Poydras St.	West (lake)
Wilkinson St.	Chartres St.	Decatur St.	North (downtown)

(Code 1956, §§ 38-235.1, 38-284)

Sec. 154-1200. Schedule IX. Stopping, standing or parking prohibited during certain hours on certain days on certain streets.

In accordance with section 154-1202, and when signs are erected giving notice thereof, no person shall stop, stand or park a vehicle during the hours and days specified upon any of the streets below as follows:

(1) No stopping, standing or parking 8:00 a.m. to noon, Tuesdays:

Street	*From*	*To*	*Side*
Barracks	Decatur	N. Rampart	North (down)
Bienville	N. Peters	N. Rampart	North (down)
Conti	N. Rampart	Decatur	South (up)
Dumaine	Decatur	N. Rampart	North (down)
Esplanade	N. Rampart	N. Peters	Both sides
Gov. Nichols	N. Rampart	Decatur	South (up)
Iberville	N. Rampart	Bourbon	South (up)
Iberville	Bourbon	Royal	North (down)
Iberville	Royal	N. Peters	South (up)
Madison	Chartres	Decatur	North (down)
Orleans	Royal	N. Rampart	North (down)
St. Ann	N. Rampart	Chartres	South (up)
St. Louis	Decatur	Chartres	North (down)
St. Louis	Chartres	Royal	South (up)
St. Louis	Royal	N. Rampart	North (down)
St. Peter	Chartres	N. Rampart	North (down)
St. Philip	N. Rampart	Decatur	South (up)
Toulouse	N. Rampart	Decatur	South (up)
Ursulines	Decatur	N. Rampart	South (up)
Wilkinson	Chartres	Decatur	South (up)

(2) No stopping, standing or parking 8:00 a.m. to noon, Thursday:

Street	*From*	*To*	*Side*
Bourbon	St. Ann	Esplanade	East (river)
Burgundy	Canal	Esplanade	East (river)
Chartres	Canal	Iberville	West (lake)
Chartres	Iberville	St. Peter	East (river)
Chartres	St. Ann	Esplanade	East (river)
Clinton	Iberville	Bienville	West (lake)
Dauphine	Esplanade	Canal	West (lake)
N. Rampart	Iberville	Esplanade	Both sides
Royal	Esplanade	St. Ann	West (lake)

(3) No stopping, standing or parking 7:00 a.m. to 9:00 a.m. on Monday, Wednesday, and Friday mornings:

Street	*From*	*To*	*Side*
Decatur	Esplanade	Madison	West (lake)
Decatur	Wilkinson	Canal	West (lake)
Decatur	St. Ann	St. Philip	East (river)
N. Peters	St. Philip	Esplanade	East (river)

(4) No stopping, standing or parking 10:00 a.m. to 4:00 p.m., Monday through Saturday:

Street	*From*	*To*	*Side*
Wilkinson	Chartres	Decatur	South (up)

(5) No stopping, standing, or parking from 7:00 a.m. to 9:00 a.m. on Mondays, Wednesdays, and Fridays:

Street	*From*	*To*	*Side*
N. Peters	St. Philip	Esplanade	West (lake)

(6) No stopping, standing, or parking 12:01 a.m. to 2:00 a.m., Mondays through Fridays:

Street	*From*	*To*	*Side*
French Mkt. Pl.	Barracks	Ursulines	Both sides

(7) No stopping, standing, or parking 12:01 a.m. until 6:00 a.m., Sundays through Saturdays:

Street	*From*	*To*	*Side*
Basin	Iberville	Canal	Both sides
Dorsiere	Iberville	Canal	West (lake)
Exchange Pl.	Iberville	Canal	Both sides
N. Rampart	Iberville	Canal	Both sides
Royal	Iberville	Canal	West (lake)
Royal	Bienville	Iberville	East (river)
Royal	St. Ann	Bienville	West (lake)

(Code 1956, § 38-285)

Sec. 154-1201. Schedule X. Parking prohibited during certain hours on certain streets.

In accordance with section 54-1202, and when signs are erected giving notice thereof, no person shall park a vehicle during the hours and days specified upon any of the streets below, as follows:

(1) Parking prohibited from 12:01 a.m. to 6:00 a.m., Sundays through Saturdays:

Street	*From*	*To*	*Side*
Poydras	S. Claiborne	Bertrand	Both sides
Canal	S. Claiborne	S. Derbigny	Both sides

(2) Parking prohibited from 12:01 a.m. to 6:00 a.m., Wednesdays:

Street	*From*	*To*	*Side*
N. Claiborne	Canal	Elysian Fields	Both sides

(3) Parking prohibited from 12:01 a.m. to 6:00 a.m., Mondays:

Street	*From*	*To*	*Side*
S. Claiborne	M.L. King Blvd.	Napoleon	Both sides

(4) Parking prohibited from 12:01 a.m. to 6:00 a.m., Tuesdays and Thursdays:

Street	*From*	*To*	*Side*
Crozat	Canal	Iberville	East (river)
Grazier	S. Claiborne	S. Derbigny	Both sides
Iberville	N. Claiborne	Basin	South (up)
Marais	Canal	Iberville	Both sides
Perdido	S. Claiborne	S. Derbigny	Both sides
N. Robertson	Canal	Iberville	South (up)
Treme	Canal	Iberville	Both sides
N. Villere	Canal	Iberville	Both sides

(Code 1956, § 38-285.1)

Sec. 154-1202. Schedule XI. Parking prohibited during certain hours on certain streets.

When signs are erected giving notice thereof, no person shall park a vehicle during the hours and days specified upon any of the streets below, as follows:

(1) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Monday of each calendar month:

Street	*From*	*To*	*Side*
St. Claude Ave.	Esplanade Ave.	Parish Line	Both sides
N. Claiborne Ave.	Elysian Fields	Parish Line	Both sides

(2) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Tuesday of each calendar month:

Street	*From*	*To*	*Side*
Elysian Fields	N. Peters	Lakeshore Dr.	Both sides

(3) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Wednesday of each calendar month:

Street	*From*	*To*	*Side*
Franklin Ave.	St. Claude	Lakeshore	Both sides

(4) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Thursday of each calendar month:

Street	*From*	*To*	*Side*
Mirabeau Dr.	Franklin Ave.	Wisner Blvd.	Both sides
Franklin Ave.	St. Charles Ave.	Lakeshore Dr.	Both sides

(5) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Friday of each calendar month:

Street	*From*	*To*	*Side*
Press Dr.	Chef Menteur	Leon C. Simon	Both sides
Louisa Dr.	Chef Menteur	Higgins Blvd.	Both sides
Downman Rd.	I-10	Morrison Rd.	Both sides

(6) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the first Saturday of each calendar month:

Street	*From*	*To*	*Side*
Chef Menteur	Downman Rd.	Chantilly Dr.	Both sides
Crowder Rd.	Morrison Rd.	Lake Forest	Both sides
Read Rd.	Morrison Rd.	Lake Forest	Both sides
Bullard Rd.	Morrison Rd.	Lake Forest	Both sides
Paris Rd.	Morrison Rd.	Levee	Both sides

(7) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Monday of each calendar month:

Street	*From*	*To*	*Side*
Canal Blvd.	City Park Ave.	Lakeshore Dr.	Both sides
City Park Ave.	Jeff. Par. Line	Carrollton Ave.	Both sides
St. Bernard Ave.	N. Rampart	Lakeshore Dr.	Both sides

(8) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Tuesday of each calendar month:

Street	*From*	*To*	*Side*
Robert E. Lee Blvd.	Parish Line	Franklin Ave.	Both sides

(9) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Wednesday of each calendar month:

Street	*From*	*To*	*Side*
West End Blvd.	Robert E. Lee	Kenilworth	Both sides
Harrison	Bellaire Dr.	Marconi Dr.	Both sides

(10) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Thursday of each calendar month:

Street	*From*	*To*	*Side*
St. Bernard Ave.	N. Rampart	Lakeshore Dr.	Both sides

(11) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Friday of each calendar month:

Street	*From*	*To*	*Side*
Gen. DeGaulle Dr.	Woodland Dr.	Parish Line	Both sides
MacArthur Dr.	Gen. DeGaulle	Woodland Dr.	Both sides

(12) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the second Saturday of each calendar month:

Street	*From*	*To*	*Side*
Holiday Dr.	Gen. Meyer Ave.	Parish Line	Both sides
Gen. Meyer	Holiday Dr.	Behrman Ave.	Both sides
Opelousas Ave.	Whitney Ave.	Brooklyn	Both sides

(13) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the third Monday of each calendar month:

Street	*From*	*To*	*Side*
Esplanade Ave.	City Park Ave.	N. Peters	Both sides
Orleans Ave.	City Park Ave.	N. Claiborne	Both sides

(14) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the third Tuesday of each calendar month:

Street	*From*	*To*	*Side*
Norman C Francis Pkwy.	Lafitte	Walmsley	Both sides
Moss St.	Orleans	Lafitte	Both sides

(15) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the third Wednesday of each calendar month:

Street	*From*	*To*	*Side*
Tulane Ave.	Palmetto	Derbigny	Both sides
Earhart Blvd.	Parish Line	Simon Bolivar	Both sides

(16) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the third Thursday of each calendar month:

Street	*From*	*To*	*Side*
Dryades	Howard Ave.	Philip St.	Both sides
Broad St.	Fountainbleau	Benefit St.	Both sides

(17) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the third Friday of each calendar month:

Street	*From*	*To*	*Side*
Toledano	La. Ave. Pkwy.	Broad St.	Both sides

(18) Parking prohibited from 8:00 a.m. to 4:00 p.m. on the third Friday of each calendar month:

Street	*From*	*To*	*Side*
M.L. King Blvd.	Broad St.	Coliseum	Both sides
Louisiana Ave.	S. Claiborne	Tchoupitoulas	Both sides
La. Ave. Parkway	Fountainbleau	S. Claiborne	Both sides
Napoleon	Fountainbleau	Tchoupitoulas	Both sides

(19) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the fourth Monday of each calendar month:

Street	*From*	*To*	*Side*
Washington Ave.	Carrollton	Tchoupitoulas	Both sides
Jefferson Ave.	Tonti	Tchoupitoulas	Both sides
Galvez	Orleans	Poydras	Both sides

(20) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the fourth Tuesday of each calendar month:

Street	*From*	*To*	*Side*
Broadway	Fountainbleau	Leake Ave.	Both sides
Freret	Broadway	Jackson Ave.	Both sides

(21) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the fourth Wednesday of each calendar month:

Street	*From*	*To*	*Side*
Carrollton Ave.	St. Charles	LeLong	Both sides

(22) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the fourth Thursday of each calendar month:

Street	*From*	*To*	*Side*
St. Charles	Carrollton	Lee Circle	Both sides

(23) Parking prohibited from 12:01 a.m. to 8:00 a.m. on the fourth Friday of each calendar month:

Street	*From*	*To*	*Side*
Claiborne Ave.	Jeff. Par. Line	Napoleon	Both sides
Magazine	Leake Ave.	Howard Ave.	Both sides

(Code 1956, § 38-285.2; M.C.S., Ord. No. 28571, § 7, 12-17-20, eff. 1-1-21)

Sec. 154-1203. Schedule XII. Neighborhood slow zones.

In accordance with section 154-547 and when signs are erected giving notice thereof, neighborhood slow zones shall be as set forth in this schedule upon those streets or portions thereof:

Neighborhood Slow Zone	*Boundaries*	*Speed Limit*
French Quarter	Streets bounded by, but not including, Canal Street, North Rampart Street, Esplanade Avenue, and the Mississippi River	15 mph

(M.C.S., Ord. No. 28495, § 1, 9-17-20)

Secs. 154-1204—154-1250. Reserved.

ARTICLE X. EQUIPMENT

Sec. 154-1251. General requirements.

(a) Every vehicle operated in this parish shall comply with all equipment requirements of state law and involving vehicles traveling on state highways, and particularly requirements of Title 32, known as the Louisiana Highway Regulatory Act, relative to driver responsibility for maintaining on the vehicle adequate headlights, backup lights, stop lights, braking equipment, taillamps, reflectors, electric turn signals, horns, windshield wipers, mirrors, safety glass, tires, fuel tank caps, fenders, mud guards, and all other equipment required by state law at the time and in the manner provided for by such statutes, in addition to requirements now imposed by this chapter.

(b) All trucks, tractors, or trailers used to haul oversized vehicles and overlength loads between dusk and dawn are to be equipped with portable lights and barricades. These lights are to be red or amber in color and are to be placed on the truck, tractor, or trailer, or on the overlength load, in a position which will enable it to be seen from any direction. They should also be equipped with portable barricades containing fixtures for the attachment of portable lights. These lights or barricades are to be used in case of a breakdown or in time of trouble.

(c) Every school bus operated in the parish shall be equipped with an exterior convex mirror at least 7½ inches in diameter mounted on either the left or right front fender in such a manner that the seated driver may observe, through its use, areas to the immediate front and side of the bus when direct observation is not possible.

(d) Should there be any conflict between the requirements of state law and the equipment standards set forth in this chapter, state law will govern.

(Code 1956, § 38-166)

State law reference—Equipment of vehicles, R.S. 32:301 et seq.

Sec. 154-1252. Trailers and towed vehicles.

(a) When one vehicle is towed by another, the drawbar or other connection shall be of sufficient strength to pull all weight towed thereby, and such drawbar or such connection shall not exceed 15 feet from one vehicle to the other except the connection between any two vehicles transporting poles, pipes, machinery, or other objects of structure or nature which cannot be readily dismembered.

(b) When one vehicle is towed by another and the connection between them consists of a chain, rope or cable, there shall be displayed upon such connection a red flag or cloth not less than 12 inches square; from sunset to sunrise, this signal shall be a red light, plainly visible under ordinary atmospheric conditions for a distance of at least 500 feet.
(Code 1956, § 38-171)

Sec. 154-1253. Unauthorized vehicle equipment prohibited.

(a) No person shall operate any vehicle in the parish which shall display, have attached to it, or use any equipment prohibited by state law and particularly the Louisiana Highway Regulatory Act.

(b) It shall be a violation for any vehicle, except authorized emergency vehicles, to display a blinking red light, visible from the front of the vehicle, while such vehicle is in operation.

(c) It shall be a violation for any vehicle, except authorized vehicles of the New Orleans Police Department and Department of Public Works vehicles operating under the direction of the New Orleans Police Department to display a blinking blue light, visible from the front of the vehicle, while such vehicle is in operation.
(Code 1956, § 38-167; M.C.S., Ord. No. 27621, § 1, 12-14-17)

Sec. 154-1254. Headlight requirements.

Every vehicle upon a street or highway within this city at any time between sunset and sunrise and at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the highway are not clearly discernible at a distance of 500 feet ahead shall display lighted lamps and illuminating devices as required by state law and this chapter for the different classes of vehicles regulated by state law, subject to exception with respect to parked vehicles.
(Code 1956, § 38-165)

State law reference—Similar provisions, R.S. 32:301.

Sec. 154-1255. Child passenger restraint system.

(a) Any driver who transports a child or children under the age of five years in a motor vehicle which is equipped with safety belts at the time of manufacture or assembly or is currently equipped with safety belts shall have the child properly secured in accordance with the manufacturer's instructions in a child passenger restraint system which meets the applicable federal motor vehicles safety standards in effect on the effective date of the ordinance from which this section was derived, except as provided in subsections (c), (d) and (e) of this section.

(b) The terms "motor vehicles" as used in this section shall not mean the following: bicycles; farm tractor; motorcycle or motor-driven cycle; truck of manufacturer's rating carrying capacity of over 2,000 pounds; ambulance or other emergency vehicle; school bus as defined in R.S. 32:1(62)(a) and (b); church bus, private bus or recreational vehicle which has a passenger capacity of over ten persons; or commercial truck, van or taxi.

(c) If such child is three to five years of age, securing the child in a lap belt or safety belt in a rear seat shall be sufficient to meet the requirements of this section. If there are no rear seats, a child passenger restraint system shall be used.

(d) Where the number of children under the age of five in the motor vehicle exceeds the number of child passenger restraint systems and seat belts available in the motor vehicle, the unrestrained children shall be seated in a rear seat.

(e) The provisions of this section shall not apply when one of the following conditions exists:

(1) The motor vehicle is being used as an ambulance or other emergency vehicle.

(2) An emergency exists which threatens the life of any person operating a motor vehicle to whom this section otherwise would apply or the life of any child who otherwise would be required to be restrained under this section.

(3) Any child who would otherwise be required to be restrained under this section who is physically unable because of medical reasons to use a child passenger safety system or safety belt.

(f) In no event shall failure to wear a child passenger safety seat system be considered as comparative negligence, nor shall such failure be admissible as evidence in the trail of any civil action with regard to negligence, nor shall such failure be considered a moving violation.

(g) Any operator of a motor vehicle stopped for a violation of this section and against whom enforcement action has been taken shall not be guilty of a subsequent violation of this section until 24 hours have elapsed from the date and time of the violation as indicated on the traffic ticket.
(Code 1956, § 38-162.3)

State law reference—Similar provisions, R.S. 32:295.

Sec. 154-1256. Penalties.

All vehicles registered in the parish shall be inspected at 12-month intervals, and any vehicle presented for inspection with an inspection certificate which had been issued in excess of three months previously shall be delinquent and subject to a delinquency fee according to the following schedule:

Months	*Fees*
From 1.1 to 3 months	$ 2.00
From 3.1 to 6 months	4.00
From 6.1 to 9 months	6.00
From 9.1 to 12 months	8.00
From 12 and over	10.00

(Code 1956, § 38-161.6)

Secs. 154-1257—154-1295. Reserved.

ARTICLE XI. INSPECTION OF VEHICLE*

DIVISION 1. GENERALLY

Secs. 154-1296—154-1300. Reserved.

DIVISION 2. MOTOR VEHICLE INSPECTION

Sec. 154-1301. Established.

(a) There is hereby established in the department of police a motor vehicle inspection bureau.

(b) The superintendent of police or a designated representative is authorized to make such administrative rules and regulations as may become necessary to carry out and make effective the provisions of this article.
(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1302. General authority.

(a) The department of police shall inspect or cause to be inspected all vehicles registered within the City of New Orleans to determine whether such vehicles are in safe operating condition and are equipped with functioning safety devices required by the laws of the city and state and are adequately covered by liability insurance as required by La. R.S. 32:861 et seq.

(b) The department of police shall maintain or authorize operation of one or more motor vehicle inspection stations within the City of New Orleans.

***Editor's note—**M.C.S., Ord. No. 26599, § 1, adopted Oct. 1, 2015, amended Art. XI in its entirety to read as herein set out. Former Art. XI, §§ 154-1296—154-1300, 154-1301—154-1352, pertained to similar subject matter, and derived from Code 1956, §§ 38-160, 38-161, 38-161.1—38-161.5, 38-163, 38-164; Ord. No. 19,264, § 1, adopted April 19, 2000; M.C.S., Ord. No. 23816, § 3, adopted Dec. 1, 2009.

State law reference—Motor vehicle inspection, R.S. 32:1301 et seq.

(c) Subject to the discretion of the superintendent, the department of police may authorize satellite inspection stations to perform motor vehicle inspections on its behalf.

(d) For purposes of this chapter, a "satellite inspection station" is defined as a facility authorized by the motor vehicle inspection bureau to conduct motor vehicle inspections on behalf of the department of police, subject to the inspection standards outlined in this chapter.

(e) For the purposes of this chapter, a "commercial vehicle" is defined as any self-propelled or towed vehicle used on public roads and highways in commerce to transport passengers or property when:

(1) The vehicle has a gross vehicle weight rating or gross combination weight of 10,001 pounds or more;

(2) The vehicle is designed to transport more than ten passengers, including the driver.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1303. Vehicle inspection required.

(a) No person shall operate a vehicle owned by a resident of this state upon the streets of the City of New Orleans unless it bears a current safety inspection certificate (brake tag) from the municipality where the vehicle is registered, or if such municipality does not require such safety inspection certificate, then from the state. All vehicles registered in the City of New Orleans shall be presented to the department of police or an authorized inspection station at least once every other year, except as may be otherwise provided in this section. Such an inspection shall be performed within 60 days after the month the vehicle was acquired or newly registered in the State of Louisiana after being transferred from another state.

(b) Vehicles with a gross vehicle weight rating of 10,000 pounds or less are eligible for a two-year inspection certificate only if the vehicle age is ten years or less. For purposes of this article, the term "vehicle age" shall be determined based on the vehicle's model year, and a "year" shall be measured through the last day of that respective calendar year (for example, a vehicle with a model year of 2000 shall have a vehicle age of one year as of January 1, 2001).

(c) Vehicles with a gross vehicle weight rating of 10,001 pounds or greater shall be presented to the department of police or an authorized inspection station on an annual basis and shall not be entitled to a two-year inspection certificate.

(d) The annual inspection period shall begin on January 1 of each year; the reinspection month shall be determined by the month and year indicated on each particular vehicle's previous inspection certificate.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1304. Vehicles exempt from inspection.

The following categories of vehicles are exempt from inspection under this chapter:

(a) Farm tractors, self-propelled farm equipment, rubber-tired farm wagons and carts, drawn rubber-tired farm equipment, and implements of animal husbandry which are designed primarily for field use and which are operated or moved only incidentally on the streets or highways of the city or state, and which are used for farm purposes only.

(b) Motor vehicles which are 25 years old or older and which are used primarily for exhibition in shows, parades, tours, and other special uses and not for general transportation and which are registered and licensed as antique as provided in R.S. 32:707(L) of the Louisiana Revised Statutes.

(c) Single-axle two-wheel trailers, tandem trailers, and all boat trailers unless these trailers are used in commerce and are subject to Code of Federal Regulations (49 CFR 396.17).

(d) Commercial vehicles with an apportioned plate provided that the vehicle has complied with the requirements of Code of Federal Regulations (49 CFR 396.17).

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18)

Sec. 154-1305. Motor vehicle inspection standards.

(a) The superintendent of police is authorized to promulgate administrative rules and regulations for the inspection of motor vehicles to further the purpose and intent of this article. Rules and regulations so promulgated shall supersede and take precedence over standards of the Louisiana Department of Public Safety and Corrections.

(b) In the absence of administrative rules and regulations established by the superintendent of police, motor vehicle inspections within the City of New Orleans will be conducted in compliance with the standards promulgated by the Secretary of the Louisiana Department of Public Safety and Corrections, unless such standards conflict with the provisions of this article, in which case this article shall govern.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1306. Issuance of certificate.

(a) Upon determining that a vehicle is equipped with functioning safety devices, as required by the laws of the city and state, and is adequately covered by liability insurance as required by state law, and upon collection of fees for such inspection as set forth in section 154-1307 of this chapter, the department of police shall attach or cause to be attached an inspection certificate to the lower left side of the windshield of such vehicle. Inspection certificates shall expire on the last day of the month indicated on the face of the certificate.

(b) Vehicles which fail to pass inspection shall be issued a card showing the mechanical faults or indicating that proof of liability insurance as required by law has not been provided. A period of not more than 30 days shall be allowed in which to make necessary repairs or to provide proof of liability insurance as required by law, and such rejection card shall be a substitute for the inspection certificate during such period. Vehicles that pose a specific road safety hazard are restricted to driving no more than 20 miles within a 30-day period in order to make necessary repairs.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1307. Fees.

(a) Inspection stickers:

(1) The fees to be paid by the owner or operator of a vehicle for an annual inspection certificate under this chapter shall be as follows:

i. Commercial vehicles shall pay a fee of $60.00.

ii. All other vehicles shall pay a fee of $25.00.

(2) The department of police shall collect from the operator of permitted satellite inspection stations the following amount per annual inspection certificate issued:

i. All inspection certificates for commercial vehicles, as defined in this chapter: $20.00.

ii. Inspection certificates for all other vehicles: $12.50.

(b) Late fees shall be assessed at a rate of $2.00 per month beginning on the first day of the calendar month following expiration, or 60 days after the month the vehicle is acquired or newly registered in the state of Louisiana after being transferred from another state. Late fees shall not exceed the price of an annual inspection certificate.

(c) All fees for inspection certificates and late fees shall be collected by an approved inspector and remitted to the department to be deposited into the general fund of the city. Payment for late fees shall be submitted no more than 15 days after being collected.

(d) For inspection certificates providing two years of validity as set forth in this chapter; the fee for such certificates shall be equivalent to the fee required for two annual inspections.

(e) Fees for satellite inspection stations:

(1) Permitted satellite inspection stations shall remit an annual fee of $25.00 to the department of police plus an annual fee of $5.00 for each inspector named on the permit application.

(2) If additional inspectors are added subsequent to the new or renewal application, the satellite inspection station shall remit the $5.00 fee when that inspector is submitted to the department of police for approval.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 29874, § 1, 3-21-24; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1308. Motor vehicle inspection stations, generally.

(a) Motor vehicle inspection stations shall conduct vehicle inspections throughout the calendar year.

(b) Inspection stations shall display signage as proscribed by the superintendent providing information including, but not limited to, hours of motor vehicle inspections, types of vehicle inspections performed, and standards for inspections.

(c) Restrooms must be available within the facility for use of customers.

(d) All motor vehicle inspections must be conducted on the premises of the approved inspection station and must be conducted on a hard surface (concrete or asphalt). Notwithstanding any law, rule or administrative policy to the contrary, inspection stations are not required to reserve a service bay or stall for the exclusive purpose of conducting motor vehicle inspections.

(e) For inspecting vehicles with a gross weight rating below 10,001 pounds, inspection stations must have available space to conduct a 20 mile per hour road test approved by the department of police. Alternatively, a properly installed and calibrated brake testing machine may be utilized in lieu of the road test. For inspecting commercial vehicles, as defined in this chapter, stations shall meet all standards outlined in Title 55 of the Louisiana Administrative Code.

(f) Inspection stations are required to maintain telephone service to the place of business and ensure that the telephone number is published in the local telephone directory and is made available on the internet.

(g) The following equipment shall be present at all inspection stations at all times during inspection hours:

(1) Windshield scraper (for removal of expired certificates).

(2) Standard single hole punch.

(3) Tire depth gauge.

(4) Measuring tape at least six feet in length.

(5) Flashlight.

(6) Tint meter (two-piece type).

(7) Adjustable mirror.

(8) Numerical stamps, numbered 1 through 12, and an "X" stamp, 1" size, and a black indelible ink stamp pad.

(9) The motor vehicle inspection bureau may require additional or alternate equipment for the proper operation of a satellite inspection station in the interest of ensuring public safety. Any additional or alternate equipment requirements will be provided to inspection stations in writing after which the station will have 30 days to obtain such equipment.

(h) The following equipment shall be present at all satellite inspection stations performing inspections on vehicles with a gross vehicle weight rating in excess of 10,001 pounds:

(1) Mechanic's creeper.

(2) Soapstone marker.

(3) Floor jack or lift or two jack stands, required only for stations which will perform inspections on school buses.

(4) Two wheel chocks

(5) Brake chamber tool

(6) A current Federal Motor Carrier Safety regulation handbook (updated within one calendar year) as prescribed by the U.S. Department of Transportation, Federal Motor Carrier Safety Administration Regulations, 49 CFR Parts 40, 303, 325, 350-399.

(i) Inspection stations shall give priority to customers seeking motor vehicle inspections.

(j) Inspection stations may inspect vehicles for good condition and proper adjustment during rain if the conditions are safe and the vehicle can be accurately inspected.

(k) Inspection stations shall offer certificates of inspection which are valid for both one year and two year periods. The owner of the vehicle shall have the option of purchasing a one year or a two year certificate, if such vehicle is eligible for a two-year certificate under this chapter.

(l) Inspection stations shall maintain an inventory of certificates of inspection adequate to satisfy the needs of the public, subject to the determination and standards of the department of police.

(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1309. Satellite inspection stations, specifically.

(a) For the purpose of making inspections and issuing official inspection certificates, as provided within this article, the superintendent of police may issue permits for and furnish instructions to satellite inspection stations for the inspection of vehicles as required by this chapter.

(b) Application for a satellite inspection station permit shall be made upon an official form provided by the superintendent for that purpose, and may be granted when the superintendent is satisfied that the station is properly equipped, has adequately trained personnel to perform such inspections, and that inspections will be conducted in accordance with the laws of the city and state.

(c) The superintendent shall supervise and cause inspections to be made of such satellite inspection stations and shall suspend and/or revoke and require surrender of any permit issued to a station which is not properly equipped or where inspections are not properly conducted.

(d) The superintendent shall suspend and/or revoke and require surrender of any permit issued to a station when such station issues an inspection certificate in violation of this article, the Code of the City of New Orleans, or state law.

(e) Satellite inspection stations permits shall not be assigned, transferred, or used at any location other than therein designated and every permit shall be posted in a conspicuous place at the location designated.

(f) Satellite inspection station operators are responsible for the safekeeping of motor vehicle inspection certificates purchased for use by that station from the department of police. If inspection certificates are lost, stolen, destroyed, or otherwise rendered unusable, no refund of fees or replacement certificates shall be issued by the superintendent.

(g) Qualification for satellite inspection stations:

(1) Any business seeking approval as a satellite inspection station must guarantee inspections will be conducted in accordance with this article for a minimum of 40 hours per week.

i. Subject to the determination of the superintendent of police, approval of a satellite inspection station may be conditioned upon a guarantee of operation on specific days or during specific times to ensure adequate service to the public.

(2) Satellite inspection stations shall only be approved at locations operating under the use classification of "gas station,"

"motor vehicle service and repair, major", "motor vehicle service and repair," or "car wash" with permanent structures and sewerage and water board approved drainage in compliance with the standards of the Comprehensive Zoning Ordinance.

(3) Businesses applying for approval as a satellite inspection station must have been in operation for a minimum of 90 days at the time of application, as evidenced by the business's occupational license issued by the department of finance.

(4) Satellite inspection stations are required to submit and maintain a surety bond for the amount of $5,000.00 to provide for any damages which may occur to private vehicles during inspection due to negligence on the part of the satellite inspection station or its employees.

(5) Satellite inspection stations shall have a minimum of two approved motor vehicle inspectors on staff and registered with the department of police, with at least one approved motor vehicle inspector on duty during all inspection hours to perform motor vehicle inspections.

(6) Permitted satellite inspection stations shall inspect and issue inspection certificates to the owner or operator of private motor vehicles in accordance with the fees outlined in section 154-1307(a)(1) of this chapter.

(h) Satellite stations are required to record each inspection performed, along with all inspection certificate serial numbers and late fees collected, in the format required and frequency specified by the department of police.
(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1310. Approved motor vehicle inspectors.

(a) All personnel employed by the satellite inspection station for the purpose of conducting motor vehicle inspections shall be approved and licensed by the department of police.

(b) No person shall be approved as a motor vehicle inspector that has not completed motor vehicle inspection training approved by the Louisiana Department of Public Safety. Evidence of completion shall be submitted to the department of police. Any inspector that has been unlicensed for a year or more must be retrained before inspecting any vehicle.

(c) Persons performing inspections on commercial vehicles, as defined in this chapter, shall be a current ASE (Automotive Service Excellence) Certified Diesel Mechanic or have an equivalent accreditation. Proof shall be provided to the department each time an inspector's application is submitted for review.
(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1311. Fleet inspection stations.

(a) Any person, corporation, partnership, or other business entity owning or holding leases for more than ten motor vehicles registered in New Orleans and operating at least one vehicle repair and maintenance shop, may, upon request, have one or more of their vehicle repair and maintenance shops designated as fleet inspection stations for the purpose of inspecting and certifying those motor vehicles which are owned or leased by him.

(b) Such fleet inspection stations are required to maintain compliance with all applicable provisions of sections 154-1308, 154-1309, and 154-1310.

(c) Permitted fleet inspection stations shall remit an annual fee of $25.00 to the department of police plus an annual fee of $5.00 for each inspector named on the permit application.

(1) If additional inspectors are added subsequent to the new or renewal application, the fleet inspection station shall remit the $5.00 fee when that inspector is submitted to the department of police for approval.

(d) The department of police shall collect from the operator of permitted fleet inspection stations the full amount of inspection certificates as provided in section 154-1307(a)(1).
(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1312. Misrepresentation and false certificates.

(a) No person shall, in any manner, represent any place or business as a satellite or fleet inspection station unless such station is operating pursuant to a valid permit issued by the department of police.

(b) No person other than an approved motor vehicle inspector shall issue an inspection certificate on behalf of the department of police or a permitted satellite or fleet inspection station.

(c) No person shall use, possess, display or cause to be displayed upon any vehicle any inspection certificate knowing same to be fictitious, fraudulent, issued to a vehicle other than the one to which it was recorded, or issued without a complete inspection having been made.
(M.C.S., Ord. No. 26599, § 1, 10-1-15; M.C.S., Ord. No. 27962, § 1, 12-20-18; M.C.S., Ord. No. 28640, § 1, 3-25-21; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Secs. 154-1313—154-1400. Reserved.

ARTICLE XII. BICYCLES

Sec. 154-1401. Purpose and effect of regulations.

The purpose of this article is to facilitate the recovery of lost and stolen bicycles through a system of identification numbers and also to govern the rental and use of bicycles.
(Code 1956, § 38-190; M.C.S., Ord. No. 27900, § 1, 10-18-18; M.C.S., Ord. No. 29169, § 2, 10-6-22)

Sec. 154-1402. Responsibility of parent or guardian.

No parent of a child or tutor or curator of a minor or incompetent person shall authorize or knowingly permit any such child, minor or incompetent person to violate any of the provisions of this article.
(Code 1956, § 38-191)

Sec. 154-1403. Registration permitted.

Any person who resides in the City of New Orleans and who owns a bicycle and rides it upon a public right-of-way may register the bicycle with the department of safety and permits to receive a specific identification number for each bicycle he or she owns. The director of the department of safety and permits and his or her designee (hereafter department) is authorized to promulgate rules and regulations as may be required to carry out the purpose of this article.
(Code 1956, § 38-192; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1404. Registration application and fee.

(a) Applications to register bicycles shall be made upon a form provided by the department. There shall be a $5.00 application fee for each registered bicycle.

(b) It shall be a violation of this article for any person to register a bicycle when they know or have reasonable grounds to believe that they are not the owner or authorized by the owner to possess and register the bicycle.
(Code 1956, § 38-193; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1405. Issuance of registration; record.

(a) Upon the department's receipt of a proper application and fee, the department shall register the bicycle, assign it a registration number, and issue to the applicant a bicycle certificate sticker, as provided in section 154-1406.

(b) The department shall keep a record of each issued registration number, the date issued, the name and address of the person to whom a

bicycle certificate sticker was issued, the manufacturer's identification number that is printed on the frame of the bicycle, if applicable, and all fees collected relative thereto.

(c) Upon the department's receipt of a written request, it shall be the duty of the department to provide the superintendent of police and/or the superintendent of fire with a copy of the record of each registration.
(Code 1956, § 38-194; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1406. Attachment of registration certificate.

The department upon registering a bicycle shall issue to the applicant a bicycle certificate sticker bearing a unique city registration number, specifically assigned to the bicycle. The department shall instruct the applicant to firmly attach the bicycle certificate sticker on the frame of the bicycle in such a position that it is plainly visible. It shall be a violation of this article for any person to remove a bicycle certificate sticker from a bicycle without express permission of the owner.
(Code 1956, § 38-195; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1407. Inspection of bicycles.

The department shall receive from each applicant a written and signed certification that their bicycle is in a safe, sound condition as required by law, prior to any issuance of a bicycle certificate sticker. Nothing contained herein shall preclude the department from requesting to inspect the condition of a bicycle prior to issuance if deemed necessary by the department. The department may authorize satellite inspection stations to perform bicycle inspection and issue bicycle certificate stickers on behalf of the department, subject to the rules outlined in this chapter.
(Code 1956, § 38-196; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1408. Transfer of ownership.

Upon the sale or other transfer of a bicycle, the new owner may obtain a new registration as provided herein, or may continue to use the existing registration number, but should update contact information with the department.
(Code 1956, § 38-197; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1409. Rental of bicycles.

Any person, natural or juridical, that offers for rent bicycles shall not rent or offer for rent any bicycle unless each bicycle is registered with the department and has received a correlating bicycle certificate sticker, which shall be prominently attached to each individual bicycle.
(Code 1956, § 38-198; M.C.S., Ord. No. 27900, § 1, 10-18-18; M.C.S., Ord. No. 29169, § 2, 10-6-22)

Sec. 154-1410. Reserved.

Editor's note—M.C.S., Ord. No. 27900, § 1, adopted Oct. 18, 2018, repealed § 154-1410, which pertained to reports of bicycle dealers, and requiring of bills of sale and derived from Code 1956, § 38-199.

Sec. 154-1411. Traffic laws applicable to persons riding bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic laws of the city applicable to the driver of a vehicle, except as otherwise provided in this article and except as to those provisions of law which by their nature, can have no application.
(Code 1956, § 38-200)

State law reference—Similar provisions, R.S. 32:194.

Sec. 154-1412. Obedience to traffic control devices.

Any person operating a bicycle shall obey the instructions of official traffic control signals, signs, and other traffic control devices applicable to vehicles, unless otherwise directed by a police officer. Whenever authorized signs are erected indicating that no right, left, or "U" turn is permitted, no person operating a bicycle shall disobey the direction of any such signs, except

when such person dismounts from the bicycle to make any such turn, such person shall then obey the regulations applicable to pedestrians.
(Code 1956, § 38-201)

Sec. 154-1413. Failure to stop in event of accident.

Any person who, while riding or propelling a bicycle or other vehicle or instrument of that general character, shall run against, upon or over any person upon the public highways or the property of any person in his personal possession or use in such a manner as might do an injury or cause damage to such person or property and shall not stop at once to ascertain the extent of such injury and to render such assistance as may be needed or shall refuse to give his name and residence when asked for by the person so injured or by any other person in his behalf shall be guilty of an offense.
(Code 1956, § 38-202)

Sec. 154-1414. One-handed steering.

Every rider of a bicycle, tricycle or other vehicle propelled by hand or foot must keep at least one hand on the handlebars of his machine when riding it.
(Code 1956, § 38-203)

State law reference—Similar provisions, R.S. 32:195.

Sec. 154-1415. Riding on roadways and bicycle paths.

(a) Every person operating a bicycle upon a roadway shall ride as near to the right side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction, except under any of the following circumstances:

(1) When overtaking and passing another bicycle or vehicle proceeding in the same direction.

(2) When preparing for a left turn at an intersection or into a private road or driveway.

(3) When reasonably necessary to avoid fixed or moving objects, vehicles, bicycles, pedestrians, animals, surface hazards, or substandard width lane or any other conditions that make it unsafe to continue along the right-hand curb or edge of the roadway. For the purposes of this paragraph, a "substandard width lane" is a lane that is too narrow for a bicycle and a vehicle to travel safely side by side within the lane.

(4) When approaching a place where a right turn is authorized.

(b) Persons riding bicycles upon a roadway shall not ride more than two abreast except on paths or parts of roadways set aside for the exclusive use of bicycles.

(c) Persons riding bicycles shall be allowed to operate on the shoulder of a roadway.

(d) Any person operating a bicycle upon a roadway or a highway, where there are two or more marked traffic lanes and traffic travels in only one direction, may ride as near the left-hand curb or shoulder of that roadway as practicable when preparing for a left turn.
(Code 1956, § 38-204; M.C.S., Ord. No. 27365, § 5, 4-20-17)

State law reference—Similar provisions, R.S. 32:197.

Sec. 154-1416. Riding on sidewalks.

No person 15 or more years of age shall ride a bicycle upon any sidewalk in the city nor will bicycles be allowed on sidewalks in the business district.
(Code 1956, § 38-205)

Sec. 154-1417. Speeding.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.
(Code 1956, § 38-206)

Sec. 154-1418. Right-of-way at alley or driveway.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk extending across any alleyway, stop and yield the right-of-way to all pedestrians approaching upon such sidewalk

area and upon entering the roadway shall yield the right-of-way to all vehicles approaching on such roadway.
(Code 1956, § 38-207; M.C.S., Ord. No. 27365, § 6, 4-20-17)

Sec. 154-1419. Manner of riding.

A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.
(Code 1956, § 38-208)

State law reference—Similar provisions, R.S. 32:195.

Sec. 154-1420. Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the rider from keeping at least one hand upon the handlebars or which interferes with the stability of the bicycle or the rider's vision.
(Code 1956, § 38-209)

State law reference—Similar provisions, R.S. 32:195.

Sec. 154-1421. Parking of bicycles.

No person shall deposit, place, or store a bicycle or similar device upon the right-of-way other than at or on a proper bike rack or other designated storage area. Any bicycle or similar device that is improperly deposited, placed, or stored on the right-of-way shall be deemed an encumbrance or obstruction, pursuant to section 146-493, and subject to immediate removal.
(Code 1956, § 38-210; M.C.S., Ord. No. 27849, § 1, 9-6-18; M.C.S., Ord. No. 29169, § 2, 10-6-22)

Cross reference—Obstruction of public rights-of-way, public places prohibited, § 146-493.

Sec. 154-1422. Necessary bicycle equipment.

(a) Every bicycle when in use between sunrise and sunset or when persons and vehicles on the street are not clearly discernable at a distance of 500 feet ahead shall be equipped with the following:

(1) A lamp mounted on the front that shall emit a white light visible from a distance of at least 500 feet to the front. A generator-powered lamp that emits light only when the bicycle is moving may be used to meet this requirement.

(2) A lamp mounted on the rear that shall emit either a flashing or steady red light visible from a distance of 500 feet to the rear.

(3) A red reflector mounted on the rear and a reflector on each side facing outward at a right angle to the bicycle frame that shall be visible from all distances from 100 feet to 600 feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle.

(b) A bicycle or its operator may be equipped with lights or reflectors in addition to those required by subsection (a) of this section, except that red lamps and red reflectors shall not be used on the front of the bicycle and white lamps and white reflectors shall not be used on the rear of the bicycle.

(c) A lamp or lamps worn by the operator of a bicycle shall comply with the requirements of subsection (a) of this section, if the lamp or lamps can be seen at the distances specified.

(d) No person shall operate a bicycle unless it is equipped with a bell or other device capable of giving a signal audible for a distance of at least 100 feet, except that a bicycle shall not be equipped with nor shall any person use upon a bicycle any siren or whistle.

(e) Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.
(Code 1956, § 38-211; M.C.S., Ord. No. 27365, § 7, 4-20-17)

State law reference—Similar provisions, R.S. 32:329.

Sec. 154-1423. Disposition of unclaimed bicycles.

All unclaimed, unidentified, or abandoned bicycles in the possession or custody of the department shall be held for a period of not less than 45 days. Storage fees may be assessed at a rate of up to $100.00 per day. Thereafter, such bicycles may be sold at a fair price or may be

donated to a nonprofit organization or agency serving the children of the parish, as permitted by law.
(Code 1956, § 38-212; M.C.S., Ord. No. 27900, § 1, 10-18-18; M.C.S., Ord. No. 29169, § 2, 10-6-22)

Sec. 154-1424. Penalties.

Penalties for violations of this article shall be as provided in section 1-13 of the City Code.
(Code 1956, § 38-213; M.C.S., Ord. No. 27900, § 1, 10-18-18)

Sec. 154-1425. Rights and duties of electric-assisted bicycles.

Except as otherwise provided in this Article, an electric-assisted bicycle or an operator of an electric-assisted bicycle shall be afforded all the rights and privileges, and be subject to all of the duties, of a bicycle or the operator of a bicycle. An electric-assisted bicycle is a vehicle to the same extent as a bicycle.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1426. Insurance, licensing, and registration.

An electric-assisted bicycle or a person operating an electric-assisted bicycle is not subject to the provisions of this Code relating to financial responsibility, driver's licenses, registration, certificates of title, off-highway vehicles and license plates. An electric-assisted bicycle is not a motor vehicle.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1427. Reserved.

Sec. 154-1428. Tampering restriction.

A person shall not tamper with or modify an electric-assisted bicycle so as to change the classification of an electric-assisted bicycle, unless they appropriately replace the manufacturer's label indicating the classification.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1429. CPSC compliance.

An electric-assisted bicycle shall comply with the equipment and manufacturing requirements for bicycles adopted by the United States Consumer Product Safety Commission (16 C.F.R. part 1512).
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1430. Motor disengagement.

An electric-assisted bicycle shall operate in a manner so that the electric motor is disengaged or ceases to function when the rider stops pedaling or when the brakes are applied.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1431. Trail use by class 1 electric-assisted bicycles.

A class 1 electric-assisted bicycle may be ridden on a bicycle or shared use trail where bicycles are permitted.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1432. Trail use by class 3 electric-assisted bicycles.

A class 3 electric-assisted bicycle shall not be ridden on a bicycle or shared use trail.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1433. Age restriction.

No person under the age of 16 may operate a class 3 electric-assisted bicycle. A person under the age of 16 may ride as a passenger on a class 3 electric-assisted bicycle that is designed to accommodate passengers.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1434. Helmet requirement.

All operators and passengers of class 3 electric-assisted bicycles shall wear a properly fitted and fastened bicycle helmet that meets the standards provided by either the United States Consumer Product Safety Commission or the American Society for Testing and Materials, or standards subsequently established by those entities.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Sec. 154-1435. Speedometer requirement.

All class 3 electric-assisted bicycles must be equipped with a speedometer that displays the speed the bicycle is traveling in miles per hour.
(M.C.S., Ord. No. 28180, § 2, 9-5-19)

Secs. 154-1436—154-1470. Reserved.

ARTICLE XIII. MOTORCYCLES*

Sec. 154-1471. Riding generally.

(a) No driver of a two- or three-wheel motorcycle or motor-driven cycle shall carry any other person on, upon or within such vehicle on any street or highway in the city, except as hereinafter provided. If any two- or three-wheeled motor vehicle is equipped with:

(1) A dual seat designed for two persons or a separate seat for a passenger and double foot rests; or

(2) A side car attachment providing a separate seat space within such sidecar attachment for each person riding therein so that such person shall be seated entirely within the body of such sidecar, then it shall be permissible for an operator who has attained the age or ages required by state law to carry a passenger.

(b) A demonstration ride by a licensed dealer or his employee is excepted from the provisions hereof.
(Code 1956, § 38-126)

Sec. 154-1472. Responsibility of operator.

The operator of any motorcycle or motor-driven cycle shall be responsible for all violations incurred by his passengers.
(Code 1956, § 38-162.1)

Sec. 154-1473. Required equipment.

(a) *Rear view mirrors.* All vehicles covered under this section shall be equipped with at least one mirror mounted on the vehicle in such a position so as to enable the operator to clearly view the roadway for a distance of 200 feet to the rear of his vehicle.

(b) *Speedometer.* All motorcycles and motor-driven cycles covered under this section shall be equipped with a properly operating speedometer.

(c) *Headgear.* No person shall operate or ride upon any motorcycle or any motor-driven cycle unless such person is equipped with and wearing on the head a safety helmet of the type and design manufactured for use by the operators of such vehicles, which shall be properly secured with a chin strap while the vehicle is in motion. All safety helmets shall consist of lining, padding and chin strap.

(d) *Handlebars.* Handlebars on motorcycles and motor-driven cycles shall not exceed 12 inches in height, measured from the upper front fork plate, and under no conditions shall the highest point exceed 15 inches above the horizontal plane at the seat of such vehicle.

(e) *Brakes.* All motorcycles and motor-driven cycles shall be equipped with brakes adequate to control the movement of same to stop and hold such vehicle, including two separate means of applying the brakes, one means shall be effective to apply the brakes to the front wheel and one means shall be effective to apply the brakes to the rear wheels.
(Code 1956, § 38-162)

State law reference—Required equipment, R.S. 32:190 et seq.

Sec. 154-1474. Muffler and exhaust system requirements.

(a) Every motorcycle and motor-driven cycle shall at all times be equipped with a muffler in good working order and in constant operation.

(b) No person shall use a muffler cutout, bypass or similar device upon a motorcycle or motor-driven cycle on a street of the city.

(c) No person shall modify the exhaust system of a motorcycle or motor-driven cycle in a manner which will amplify or increase the noise emitted

*__State law reference—__Operation of motorcycles, R.S. 32:190 et seq.

by the muffler originally installed on the vehicle, and the original muffler shall comply with all of the requirements of this section.
(Code 1956, § 38-162.2)

State law reference—Muffler and exhaust system requirements, R.S. 32:352.

Secs. 154-1475—154-1520. Reserved.

ARTICLE XIV. TRUCK AND OVERSIZED VEHICLES

DIVISION 1. GENERALLY

Sec. 154-1521. Identification.

(a) All trucks, except those licensed for 3,500 pounds or less and not used for commercial purposes, operating on the streets of the city, shall bear the name and address of the owner and the length of the vehicle, which shall be painted or printed on removable decals on the outside of both truck doors.

(b) Trademarks or insignia painted or printed on removable decals attached on the outside of the doors of the vehicle which identify the firm, company, or agency, as owner shall be acceptable. The length of the vehicle may be printed on a separate decal and attached to the vehicle so it is visible from the outside of the vehicle.
(Code 1956, § 38-173; M.C.S., Ord. No. 26376, § 1, 4-23-15)

State law reference—Similar provisions, R.S. 45:167.

Sec. 154-1522. Dimensions.

Except by permit as provided in section 154-1524, no truck, tractor, or trailer shall be operated on the streets of the city if the following are exceeded:

(1) *Width; projecting loads on vehicles.*

a. The width of any vehicle shall not exceed eight feet, except that the width of a bus or school bus shall not exceed eight feet, six inches.

b. The load on any vehicle shall not project more than six inches beyond the width of its body.

(2) *Height.* The height of any vehicle shall not exceed 13 feet, six inches.

(3) *Length.*

a. The length of a single vehicle, truck, or truck-tractor shall not exceed 35 feet.

b. The length of a single two-axle or three-axle bus shall not exceed 40 feet.

c. The length of any combination of vehicles shall not exceed 65 feet.

d. No combination of vehicles shall consist of more than two vehicles, except that combinations of truck-tractor and two trailers, truck-tractor and two semitrailers, or truck tractor, semitrailer, and trailer are permitted.

e. No vehicle, truck, truck-tractor, or trailor with an overall or combined length in excess of 36 feet shall be allowed in the Vieux Carré except as provided in section 154-1524. As used in this section, Vieux Carré is defined as the area included within the downriver curb of Esplanade Avenue, the riverside curb of North Peters Street, the riverside curb of Decatur Street, between St. Louis Street and Dumaine Street, the downriver curb of Canal Street and the riverside curb of North Rampart Street.

(i) When traveling or parking on streets in the Vieux Carré, no motor truck, tractor, or trailer shall drive or park on the sidewalk or curb.

(Code 1956, § 38-168; M.C.S., Ord. No. 26376, § 1, 4-23-15)

Sec. 154-1523. Weight limits.

(a) Subject to the limits in section 154-1522 and except by permit as provided in section 154-1524, no truck, tractor or trailer shall be operated on this streets of the city if the following are exceeded:

(1) The total gross weight of any vehicle or combination of vehicles shall not exceed

88,000 pounds; and no vehicle or combination of vehicles shall exceed its license gross weight.

(2) No tire mounted on any axle attached to any vehicle or combination of vehicles shall impose a greater weight on the surface of a highway than 650 pounds per inch width of tire.

(3) The total gross weight of any single axle attached to any vehicle and equipped with low pressure pneumatic tires shall not exceed 20,000 pounds.

(4) The total gross weight of any tandem axle or tandem steering axle attached to any vehicle and equipped with low pressure pneumatic tires shall not exceed 34,000 pounds.

(5) The total gross weight of any tridum axle attached to any vehicle and equipped with low pressure pneumatic tires shall not exceed 42,000 pounds.

(6) The total gross weight of any single axle or any single steering axle attached to any vehicle and equipped with high pressure pneumatic, solid rubber or cushion tires shall not exceed 18,000 pounds.

(7) The total gross weight of any tandem axle or any tandem steering axle attached to any vehicle and equipped with high pressure pneumatic, solid rubber or cushion tires shall not exceed 32,000 pounds.

(8) The total gross weight of any trailer shall not exceed 40,000 pounds, regardless of the number or type of axles under it.

(9) No vehicle with more than two axles shall be permitted on any of the streets within the city other than those listed as truck routes, except that travel to or from points of origin or destination shall be permissible via the shortest practicable route between such point of origin or destination, and the nearest street listed as a truck route.

(b) When traveling on such designated streets, every motor truck, tractor, or trailer shall be driven as near to the right-hand curb of the roadway as is practicable under existing conditions.

(Code 1956, § 38-169; M.C.S., Ord. No. 26379, § 1, 4-23-15)

Sec. 154-1524. Permits for excess weight, width, height, and length; reporting requirements.

(a) Whenever it shall be necessary to transport a single article which cannot be divided and which exceeds the total weight, width, height, or length allowable by this article, it may be done only after the issuance of a special permit by the director of the department of public works. When application for a permit is made, the director is authorized to impose conditions upon the issuance of such permits and to make requirements upon their use, such as the date, time of day, routes, and speed limit, the furnishing of a bond with good and solvent surety to protect the city from all liability and damage resulting from the use of such permits, and accompaniment of the shipment by proper escort, police or otherwise, all at the expense of the user, and such other conditions or requirements as the director of the department of public works deems necessary and proper. In addition, the director of the department of public works, prior to the issuance of a permit, shall collect from the applicant $125.00 for an annual permit or $10.00 for a single-trip permit. In considering whether to issue a permit in the Vieux Carré, the director of public works shall consider the physical impact upon the historic streets and sidewalks of the Vieux Carré.

(b) The department of public works shall report on all permits issued pursuant to these provisions to indicate applicants' compliance with the applicable provisions of this Code and all conditions imposed by the permits. The department shall annually provide a copy of this report to the clerk of council for formal receipt by the city council, no later than April 1 for the previous calendar year.

(Code 1956, § 38-169.1; M.C.S., Ord. No. 23818, § 1, 12-1-09; M.C.S., Ord. No. 26376, § 1, 4-23-15; M.C.S., Ord. No. 28500, § 1, 9-17-20)

Sec. 154-1525. Certain equipment required.

No motor truck, tractor or trailer shall be operated on any street unless equipped with tires of rubber or of some material of equal resiliency and of the widths required to conform with the load carried. In no case shall a solid rubber tire be used in which the rubber portion is less than one inch in thickness. No motor truck or tractor shall be operated on any street unless equipped with a speedometer of standard make and in good working order; or in lieu thereof, a governor properly sealed and so adjusted as to limit the speed to the maximum rate allowed for motor trucks or tractors in accordance with the provisions of this article. All trucks, tractors or trailers used to haul oversized vehicles and overlength loads between dusk and dawn are to be equipped with portable lights and barricades. These lights are to be red or amber in color and are to be placed on the truck, tractor or trailer, or on the overlength load, in a position which will enable it to be seen from any direction. They should also be equipped with portable barricades containing fixtures for the attachment of portable lights. These lights and barricades are to be used in case of a breakdown or in time of trouble.
(Code 1956, § 38-169.2)

Secs. 154-1526—154-1560. Reserved.

DIVISION 2. ROUTES

Sec. 154-1561. Designation.

(a) No motor truck, tractor or trailer whose combined weight of body and load exceeds five tons shall be permitted on any of the streets or portions of streets within the city other than those listed herein, except that travel to or from points of destination or origin not located on one of the streets or portions of streets designated herein shall be permissible via the shortest practicable route between such point of origin or destination and the nearest street or portion of street designated herein, subject to the restrictions in section 154-1522.

Airline Highway, between the Jefferson Parish Line and S. Carrollton Avenue.

Allen Street (US 90), between Florida Avenue and Gentilly Boulevard.

Almonaster Avenue, between N. Roman Street and Old Gentilly Road.

Alvar Street, between Florida Avenue and France Street.

Andrew Higgins Boulevard, between S. Peters Street and St. Charles Avenue.

Atlantic Avenue, between Newton Street and Patterson Street.

Basin Street, between Canal Street and N. Claiborne Avenue.

Bayou Road, between N. Broad Street and Gentilly Boulevard.

Behrman Avenue, between Mardi Gras Boulevard and Opelousas Avenue.

Behrman Highway (LA 428), between the Jefferson Parish Line and Behrman Place.

Behrman Place (LA 428), between Behrman Highway and General DeGaulle Drive.

Bienville Avenue, between N. Claiborne Avenue and City Park Avenue.

Bouny Street, between Morgan Street and Opelousas Avenue.

Caffin Avenue, between N. Claiborne Avenue and Florida Avenue.

Caffin Avenue, between Chartres Street and St. Claude Avenue.

Calliope Street, between S. Peters Street and Simon Bolivar Avenue.

Camp Street, between Felicity Street and Poydras Street.

Canal Boulevard, between City Park Avenue and Robert E. Lee Boulevard.

Chartres Street, between Esplanade Avenue and Elysian Fields Avenue.

Chartres Street, between St. Ferdinand Street and Poland Avenue.

Chef Menteur Highway (US 90), between Gentilly Boulevard and the St. Tammany Parish Line.

City Park Avenue, between Pontchartrain Boulevard and Orleans Avenue.

Common Street, between S. Rampart Street and Loyola Avenue.

Crowder Boulevard, between Dwyer Road and Hayne Boulevard.

Dave Dixon Drive, between LaSalle Street and W. Stadium Drive.

Dixon Street, between Mistletoe Street and Airline Highway.

Downman Road, between I-10 and Lakeshore Drive.

Earhart Boulevard, between Monroe Street and Simon Bolivar Avenue.

Earhart Expressway (LA 3139), between the Jefferson Parish Line and Monroe Street.

Elks Place, between Tulane Avenue and Canal Street.

Elysian Fields Avenue, between N. Peters Street and Leon C. Simon Drive.

Felicity Street, between S. Peters Street and Magazine Street.

Florida Avenue, between Elysian Fields Avenue and Caffin Avenue.

France Road, between Florida Avenue and Chef Menteur Highway.

France Street, between Poland Avenue and Alvar Street.

Franklin Avenue, between St. Claude Avenue and Leon C. Simon Drive.

General DeGaulle Drive, between the Jefferson Parish Line and Woodland Drive.

General Meyer Avenue, between Behrman Avenue and Lancaster Street.

Gentilly Boulevard, between Bayou Road and Chef Menteur Highway.

Girod Street, between S. Rampart Street and LaSalle Street.

Hayne Boulevard (LA 47), between Downman Road and Paris Road.

Hendee Street, between Opelousas Avenue and Patterson Drive.

Holiday Drive, between General DeGaulle Drive and General Meyer Avenue.

Howard Avenue, between St. Charles Avenue and S. Rampart Street.

Interstate 10, between the Jefferson Parish Line and the St. Tammany Parish Line.

Interstate 510, between LA 47 (Almonaster Avenue) and I-10.

Interstate 610, between I-10 (West End Boulevard) and I-10 (Franklin Avenue).

Julia Street, between Tchoupitoulas Street and Loyola Avenue.

L.B. Landry Avenue, between General DeGaulle Drive and Newton Street.

Lakeshore Drive (LA 1264), between Leon C. Simon Drive and Downman Road.

Lamarque Street (LA 428), between Nunez Street and Verret Street.

Leake Avenue, between Oak Street and Broadway Street.

Leon C. Simon Drive, between Franklin Avenue and Lakeshore Drive.

Louisa Street, between Almonaster Avenue and Chef Menteur Highway.

Louisiana Highway 406, between the Plaquemines Parish Line and Stanton Road.

Loyola Avenue, between Simon Bolivar Avenue and Tulane Avenue.

Magazine Street, between Poydras Street and Calliope Street.

Martin Luther King Jr. Boulevard, between St. Charles Avenue and S. Claiborne Avenue.

McShane Place, between N. Rampart Street and St. Claude Avenue.

Metairie Road, between the Jefferson Parish Line and Pontchartrain Boulevard.

Mistletoe Street, between Palmetto Street and Dixon Street.

Morgan Street, between Patterson Street and Bouny Street.

Morrison Road (LA 1253), between Downman Road and I-10.

New Orleans Street (US 90), between Gentilly Boulevard and Florida Avenue.

Newton Street, between Teche Street and Behrman Avenue.

N. Broad Street, between Canal Street and Florida Avenue.

N. Carrollton Avenue, between Canal Street and Orleans Avenue.

N. Claiborne Avenue, between Canal Street and the St. Bernard Parish Line.

N. Galvez Street, between Elysian Fields Avenue and Poland Avenue.

N. Jefferson Davis Parkway, between Canal Street and Bienville Street.

N. Miro Street, between Almonaster Avenue and Elysian Fields Avenue.

N. Norman C Francis Parkway, between Canal Street and Bienville Street.

N. Rampart Street, between Canal Street and McShane Place.

N. Robertson Street (LA 39), between Elysian Fields Avenue and Poland Avenue.

Nunez Street (LA 428), between the Jefferson Parish Line and Lamarque Street.

Oak Street, between the Jefferson Parish Line and Leake Avenue.

Old Gentilly Road, between Chef Menteur Highway (Providence Place) and France Road.

Old Gentilly Road, between Jourdan Road and Chef Menteur Highway.

Opelousas Avenue, between Atlantic Avenue and Behrman Avenue.

Orleans Avenue, between N. Claiborne Avenue and City Park Avenue.

Palmetto Street, between S. Carrollton Avenue and Mistletoe Street.

Paris Road (LA 47), between the St. Bernard Parish Line and I-510 (Almonaster Avenue).

Paris Road (LA 47), between N. I-10 Service Road and Hayne Boulevard.

Patterson Street, between Morgan Street and Hendee Street.

Poland Avenue, between Chartres Street and France Street.

Pontchartrain Boulevard, between Veterans Boulevard and New Orleans-Hammond Highway.

Pontchartrain Expressway (US 90B), between I-10 and the Jefferson Parish Line.

Poydras Street, between Port of New Orleans Place and S. Broad Street.

Prytania Street, between Jackson Avenue and Calliope Street.

Race Street, between Tchoupitoulas Street and Camp Street.

Read Road, between Almonaster Avenue and Chef Menteur Highway.

Religious Street, between Euterpe Street and Felicity Street.

Robert E. Lee Boulevard, between Pontchartrain Boulevard and Wisner Boulevard.

St. Bernard Avenue, between N. Rampart Street and I-610.

St. Claude Avenue, between McShane Place and the St. Bernard Parish Line.

St. Joseph Street, between Howard Avenue and Tchoupitoulas Street.

St. Louis Street, between N. Rampart Street and N. Broad Street.

Sophie Wright Place, between St. Andrew Street and Felicity Street.

S. Broad Street, between Washington Avenue and Canal Street.

S. Carrollton Avenue, between St. Charles Avenue and Canal Street.

S. Claiborne Avenue, between the Jefferson Parish Line and Canal Street.

S. Jefferson Davis Parkway, between Earhart Boulevard and Canal Street.

S. Norman C Francis Parkway, between Earhart Boulevard and Canal Street.

S. Peters Street, between Orange Street and Celeste Street.

S. Peters Street, between Calliope Street and Poydras Street.

Tchoupitoulas Street, between Henry Clay Avenue and Poydras Street.

Teche Street, between the Jefferson Parish Line and Opelousas Avenue.

Thayer Street, between Newton Street and Patterson Street.

Toledano Street, between Louisiana Avenue and S. Dorgenois Street.

Toulouse Street, between N. Rampart Street and Basin Street.

Tulane Avenue, between Loyola Avenue and S. Carrollton Avenue.

Vallette Street, between Lamarque Street and Newton Street.

Verret Street, between Newton Street and Lamarque Street.

Veterans Boulevard (LA 3019), between the Jefferson Parish Line and West End Boulevard.

Washington Avenue, between S. Dorgenois Street and S. Broad Street.

West End Boulevard, between Polk Avenue and Robert E. Lee Blvd.

Whitney Avenue, between Newton Street and Patterson Street.

Woodland Drive (LA 407), between General DeGaulle Drive and General Meyer Avenue.

Woodland Highway (LA 407), between Woodland Drive and Louisiana Highway 406.

(b) The following streets are deleted from the list of designated truck routes:

Caffin Avenue, between North Claiborne Avenue and St. Claude Avenue.

Crowder Boulevard, between Chef Menteur Highway and Dwyer Road.

Magazine Street, between Canal Street and Poydras Street.

North Peters Street, between Elysian Fields Avenue and St. Ferdinand Street.

South Peters Street, between Canal Street and Poydras Street.

St. Ferdinand Street, between North Peters Street and Chartres Street.

St. Louis Street, between North Peters Street and North Rampart Street.

Tchoupitoulas Street, between Canal Street and Poydras Street.

Toulouse Street, between North Peters Street and North Rampart Street.

Washington Avenue, between St. Thomas Street and South Dorgenois Street.

(Code 1956, § 38-172; M.C.S., Ord. No. 17,005, § 1, 5-4-95; M.C.S., Ord. No. 17,673, § 1, 7-18-96; M.C.S., Ord. No. 17,759, § 1, 9-19-96; M.C.S., Ord. No. 18,753, §§ 1, 2, 6-4-98; Ord. No. 21,120, § 1, 6-5-03; M.C.S., Ord. No. 21675, § 1, 9-9-04; M.C.S., Ord. No. 26376, § 1, 4-23-15; M.C.S., Ord. No. 28500, § 1, 9-17-20; M.C.S., Ord. No. 28571, § 8, 12-17-20, eff. 1-1-21; M.C.S., Ord. No. 28777, § 1, 8-19-21)

DIVISION 3. [ENFORCEMENT AND PENALTIES]

Sec. 154-1562. Enforcement.

(1) The traffic bureau of the police department in accordance with section 154-58 of the Code of the City of New Orleans, NOLA Patrol, and the fire department shall have the power to enforce the provisions of this article.

(2) Notice of the provisions of this article shall be given to the owner or operator of vehicles covered by this article at the time of the yearly inspection pursuant to Chapter 154 Article XI.

(3) Any person who desires to register a complaint under this article may do so by contacting the City's 311 Service Center.

(4) The French Quarter Management District may seek to obtain voluntary compliance with this article by means of publicity and education programs where appropriate.

(5) The department of public works shall develop and install signs at entry points to the Vieux Carré that indicate the limitations on the operation of trucks within the Vieux Carré and the penalty for failure to comply with the limitations.
(M.C.S., Ord. No. 26376, § 2, 4-23-15)

Sec. 154-1563. Violations and penalties.

(1) Proceedings for violations of this article shall be initiated by affidavit and will be heard in traffic court, pursuant to Chapter 154 Article III of the Code of the City of New Orleans.

(2) The penalty for a violation of this section shall be $500.00 for the first offense and $1,000.00 for the second or subsequent offense.

(3) The penalties provided by this section shall be in addition to any other penalty imposed by any other provision of law or regulation thereunder.

(4) In addition to the fines established by this section, violation of this article by a person who owns, manages, operates, or otherwise controls a vehicle covered by this article may result in the suspension or revocation of any permit or license issued to the person by the department of police for the vehicle in violation.

(5) Lack of a sign or signage shall not be a defense for a citation or other penalty issued for a violation of any section of this article.
(M.C.S., Ord. No. 26376, § 2, 4-23-15; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Secs. 154-1564—154-1600. Reserved.

ARTICLE XV. PEDESTRIANS*

Sec. 154-1601. Subject to traffic control.

Pedestrians shall be subject to traffic control signals as declared in sections 154-236 and 154-238, but at all other places pedestrians shall be granted those rights and be subject to the restrictions stated in this article.
(Code 1956, § 38-175)

Sec. 154-1602. Right-of-way in crosswalk.

(a) When traffic control signals are not in place or not in operation, the driver of a vehicle shall stop and yield the right-of-way to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the roadway upon which the vehicle is traveling or the roadway onto which the vehicle is turning.

(b) No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

(c) Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.
(Code 1956, § 38-176; M.C.S., Ord. No. 27366, § 1, 4-20-17)

Sec. 154-1603. Use right half of crosswalk.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.
(Code 1956, § 38-177)

Sec. 154-1604. Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite curb except in a crosswalk.
(Code 1956, § 38-178)

Sec. 154-1605. When to yield the right-of-way.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or

*__State law reference—__Pedestrians subject to traffic regulations, R.S. 32:211 et seq.

overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

(b) The foregoing rules in this section have no application under the conditions stated in section 154-1606, when pedestrians are prohibited from crossing at certain designated places.
(Code 1956, § 38-179)

Sec. 154-1606. Prohibited crossing.

Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place other than a crosswalk. No pedestrian shall cross a roadway other than in a crosswalk in any business district.
(Code 1956, § 38-180)

Sec. 154-1607. Walking along roadways.

(a) Where a sidewalk is provided, it shall be unlawful for any pedestrian to walk along and upon an adjacent roadway.

(b) Where a sidewalk is not provided, any pedestrian walking along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder, facing traffic which may approach from the opposite direction.
(Code 1956, § 38-181)

Sec. 154-1608. Drivers to exercise due care.

Notwithstanding the foregoing provisions of this article, every driver of a vehicle shall exercise reasonable caution to avoid colliding with any pedestrian on any roadway, and shall give warning by sounding his horn when necessary, besides taking proper precautions by slowing his vehicle when observing any child or any confused or incapacitated person upon the roadway on which he is traveling.
(Code 1956, § 38-183)

Secs. 154-1609—154-1650. Reserved.

ARTICLE XVI. PARADES*

Sec. 154-1651. Permit required.

Any person desiring to stage, present or conduct a parade, motorcade, procession, march or any other planned movement of persons, vehicles or animals on the streets of the city, except road races as set forth in section 146-3, shall first secure from the department of finance a permit to engage in such activity.
(Code 1956, § 38-124.1(a))

Sec. 154-1652. Penalty for violations.

Any person who shall stage, present or conduct or attempt to stage, present, conduct or participate in a parade on the city streets without first having obtained a permit therefor (except Mardi Gras or Carnival parades or road races) or who shall otherwise violate any of the provisions of this article shall be guilty of a misdemeanor and, upon conviction thereof, shall be fined not more than $100.00 or imprisoned for not more than 90 days, or both, at the discretion of the court.
(Code 1956, § 38-124.1(b))

Sec. 154-1653. Exceptions.

(a) The provisions of this article shall not be applicable to funeral processions or to parades by forces of the United States Armed Services, the military forces of this state or forces of the departments of police and fire of the city.

(b) No part of this article shall be construed to interfere with lawful picketing.
(Code 1956, § 38-124.1)

Sec. 154-1654. Application for permit.

(a) Any person desiring to conduct or manage a parade shall, no later than 15 days before the date on which it is proposed to conduct such a parade, file with the superintendent of police a verified application for a written route clearance on a form furnished by the superintendent of police setting forth the following information:

(1) The name of the person or organization wishing to conduct such parade;

*__Cross references—__Circuses, § 14-66 et seq.; parade permits for Mardi Gras, § 34-36 et seq.

(2) If the parade is proposed to be conducted for, on behalf of or by an organization, the name, address and telephone number of the headquarters of the organization and the authorized and responsible head of such organization;

(3) The name, address and telephone number of the person who will be the parade chairman and will be responsible for its conduct;

(4) The name, address and telephone number of the person or organization to whom the permit is desired to be issued;

(5) The date when such parade is to be conducted;

(6) The route to be traveled, the starting point and the termination point;

(7) The approximate number of persons who and animals and vehicles which will constitute such parades; the type of animals and a description of the vehicles;

(8) The hour when such parade will start and terminate;

(9) The total number of hours between the starting time and termination time, not to exceed four hours; an exception may be allowed for an organization holding a convention of 10,000 participants or more in the city on the proposed permit date;

(10) Whether such parade will occupy all or only one-half of the width of the streets proposed to be traversed;

(11) A description of assembly and disassembly areas and streets to be used by such parades;

(12) The time at which units of the parade will begin to assemble at any such assembly area; total time of assembly not to exceed one hour;

(13) The interval of space to be maintained between units of such parade, not to exceed 30 feet.

(b) If such parade is designed to be held by and on behalf of or for any organization other than the applicant, the applicant for such permit shall file with the superintendent of police a communication in writing from such organization, authorizing the applicant to apply for such permit on its behalf.
(Code 1956, § 38-124.1(a)(2))

Sec. 154-1655. Route clearance.

Any applicant for a permit under this article except applicants for Mardi Gras or Carnival parade permits or road race permits, must present to the department of finance, at the time of filing of the application, written route clearance from the superintendent of police.
(Code 1956, § 38-124.1(a)(1))

Sec. 154-1656. Consideration of application.

After the application for a written route clearance has been filed, the superintendent of police shall consider the application and such other information as he may otherwise obtain and shall assign the number of police officers as he determines necessary to accompany the parade from the time of assembly of the parade until such time that the parade shall terminate.
(Code 1956, § 38-124.1(a)(3))

Sec. 154-1657. Waiver of time limitations.

The time limitations prescribed for the filing of an application for a written route clearance and/or a parade permit may be waived by the superintendent of police and the department of finance in those instances where the applicant can show that, because of unusual circumstances, it was impossible to have made such application within such time limitations; and upon such showing the superintendent of police shall issue a written route clearance, and the department of finance may issue a parade permit to such applicant.
(Code 1956, § 38-124.1(a)(11))

Sec. 154-1658. Compensation of police.

(a) The police officers shall be compensated at the city's overtime rate, provided that no more than ten police officers be compensated with funds provided by the person or organization who is named as applicant on the application.

Notwithstanding the provisions of this section, no funds for compensation of police officers shall be required from an organization which will be holding a convention of 10,000 participants or more in the city on the proposed permit date.

(b) When the superintendent of police determines that the parade organizers shall provide the compensation for the assigned police officers, the organizers shall be notified of the amount to be paid. The amount shall be paid to the department of finance at the time that parade organizers obtain the permit. No permit shall be issued until such amount has been paid.
(Code 1956, § 38-124.1(a)(3), (4))

Sec. 154-1659. Standards for issuance.

The superintendent of police shall issue a written route clearance for a parade if, from a consideration of the application or such other information as the superintendent of police may otherwise obtain, or both, the superintendent of police finds that:

(1) The conduct of such parade will not substantially interrupt the safe and orderly movement of other traffic contiguous to its route;

(2) The conduct of such parade will not require the diversion of so great a number of police officers to properly police the line of movement and the areas contiguous thereto as to prevent normal police protection to the rest of the city;

(3) The concentration of persons, animals and vehicles at the assembly areas of the parade will not unduly interfere with proper fire and police protection of or ambulance service to areas contiguous to such assembly areas;

(4) The conduct of such parade will not interfere with the movement of firefighting equipment en route to a fire;

(5) The conduct of such parade is not reasonably likely to cause injury to persons or property;

(6) Such parade will move from its point of termination in four hours or less; the superintendent of police may establish a specific time limitation in excess of four hours for an organization holding a convention of 10,000 or more participants in the city on the proposed permit date;

(7) The conduct of such parade will not obstruct any construction or maintenance work scheduled to take place upon the public streets;

(8) The applicant meets with all the requirements of this section.

(Code 1956, § 38-124.1(a)(5))

Sec. 154-1660. Alternative date, time, route.

If the conduct of the parade on the proposed date, time and route is found by the superintendent of police to conflict with any of the requirements of this section, he may suggest an alternate date, time and route. If the applicant desires to accept such alternate date, time and route, he may, within five days but no less than seven days prior to the parade, file a notice of acceptance with the superintendent of police; and the superintendent of police shall proceed to issue the written route clearance.
(Code 1956, § 38-124.1(a)(6))

Sec. 154-1661. Action upon application.

The superintendent of police shall, after the filing of such application for a written route clearance, act thereon. If the superintendent of police finds that such written route clearance should be issued, he shall proceed to issue the same; and upon presentation of the written route clearance from the superintendent of police, the department of finance shall issue a permit for a parade.
(Code 1956, § 38-124.1(a)(7))

Sec. 154-1662. Contents of permit.

Parade permits issued under this article shall prescribe:

(1) Starting time;

(2) Termination time;

(3) Minimum speed;

(4) Maximum speed;

(5) Maximum interval of space to be maintained between the units of such parade;

(6) What portion of the streets to be traversed may be occupied by such parade; and

(7) The actual distance of such parade route in miles or fractions thereof.

(Code 1956, § 38-124.1)

Sec. 154-1663. Denial of permit.

If the superintendent of police finds that such written route clearance should not be issued, he shall mail notice of his action denying the written route clearance to the applicant, stating in general terms the reasons for the denial thereof.
(Code 1956, § 38-124.1(a)(9))

Sec. 154-1664. Notice to city departments.

Upon approval of a written route clearance, the superintendent of police shall be responsible for notifying the superintendent of fire and the directors of the departments of streets, utilities, health and any other departments of the city as the superintendent of police deems should be notified of the proposed parade as well as all public utilities to be affected by the proposed parade.
(Code 1956, § 38-124.1(a)(10))

Sec. 154-1665. Authority of police to conduct tests.

(a) The driver of any vehicle participating in a parade shall be subject to random sobriety and drug testing by the police department.

(b) The police department shall have the authority to conduct random sobriety and drug tests of the driver of any vehicle participating in a parade. If any driver fails to pass a sobriety and/or drug test, such driver shall be prohibited from driving any vehicle in the parade.
(M.C.S., Ord. No. 17,390, § 1, 1-18-96)

Secs. 154-1666—154-1700. Reserved.

ARTICLE XVII. AUTOMATED TRAFFIC ENFORCEMENT SYSTEM

Sec. 154-1701. Enforcement procedure.

The New Orleans Police Department is responsible for the enforcement and administration of sections 154-1701 through 154-1704. The city and the department may enforce and administer sections 154-1701 through 154-1704, or any parts thereof, directly and/or through one or more contractors selected in accordance with applicable law, with the exception made for subsection 154-1703(c) regarding the penalty for a school bus stop sign violation. Subsection 154-1703(c) will be administered by the New Orleans Police Department in conjunction and with the explicit consent, oversight, and discretion of the Recovery School District (RSD) and/or Orleans Parish School Board (OPSB) and/or Louisiana Board of Elementary and Secondary Education authorized charter operators. RSD and/or OPSB and/or Louisiana Board of Elementary and Secondary Education authorized charter operators will retain the right to use school buses under their control to administer subsection 154-1703(c) through cooperative endeavor agreement with the city.

Upon the receipt of photographic evidence by the New Orleans Police Department and/or its designee that a vehicle has violated applicable traffic ordinances, the department shall forward all necessary information to the parking adjudication bureau of the city for civil administrative and collection actions. The department and/or its designee is responsible for the administration of notification and collection of the fines paid by the vehicle owner.

Notwithstanding the foregoing, neither the city nor any person or entity acting on its behalf shall use an automated traffic enforcement device to enforce speed regulations in a school zone pursuant to this article unless there exists in effect a cooperative endeavor agreement between the city and the governing authority of any school located within the school zone, pursuant to which the city has agreed to share with the school not less than 40 percent of the revenue generated from the device, less a proportionate

allocation of costs associated with the enforcement and administration of the automated traffic enforcement system and related services.

In order to impose a civil penalty under this section, the city shall mail a notice of the violation to the owner of the motor vehicle no later than the 30th day after the date the violation is alleged to have occurred or identification of the registered owner, whichever is later, but in no event more than 60 days after the date the violation is alleged to have occurred.

(1) *Notice of violation.* A notice of violation issued under this article shall contain at least the following:

a. A description of the violation;

b. The date, time, and location of the violation;

c. The name and address of the registered owner of the vehicle that was involved in the violation;

d. The license plate number displayed on the license plate attached to the vehicle involved in the violation;

e. A copy of recorded images of the vehicle involved in the violation;

f. The amount of the civil penalty to be imposed for the violation;

g. The date by which the civil penalty must be paid or the date by which a challenge to the violation must be submitted;

h. A statement that the recorded image is evidence for use in a proceeding for the imposition of a civil penalty;

i. Information that informs the person or entity named in the notice of violation:

1. Of the right to contest the imposition of a civil penalty in an administrative hearing;

2. Of the manner and time in which to challenge the imposition of the civil penalty; and

3. That failure to timely pay the civil penalty or to challenge liability is an admission of liability and failure to appear on or before the scheduled hearing date is an admission of liability and a waiver of the right to appeal.

A notice of violation under this article is presumed to have been received on the fifth business day after the date the notice of violation is mailed. Nonetheless, a second courtesy notice will be issued to vehicle owners who fail to respond to the first notice of violation.

This section does not infringe upon the police powers of the state in accordance with article VI, section 9(B) of the Louisiana Constitution.

(2) *Responsibility of vehicle owner and operator.*

a. Except as provided in subsection b. of this section, the owner and operator, when not the same, shall be solidarily liable to the city for violations of sections 154-1701 through 154-1704, unless the owner can prove that the vehicle was operated without his consent, express or implied. An owner who pays any fine, costs, or administrative fees pursuant to this article shall have the right to recover the same from the operator.

b. An owner of a vehicle who is engaged in the business of renting or leasing vehicles under written rental or leasing agreements ("lessor") shall not be liable for fines and penalties imposed by a local authority of the lessor of such rented or leased vehicles, if within 30 days after receiving written notice of the violation, the lessor provides, in affidavit form, the true name, address and driver's license number and state of issuance of the person in possession of the vehicle ("lessee") at the time of the issuance of the citation, or provides a true copy of the lease or rental agreement.

c. A lessor who fails to comply with the foregoing provisions shall be treated as any other owner and shall be solidarily liable with the operator.

d. If any owner of a motor vehicle receives a notice of violation for a period during which the vehicle was reported to any police department as having been stolen prior to the time the violation occurred and had not been recovered by such time said owner shall not be liable.

(M.C.S., Ord. No. 22526, § 1, 2-15-07; M.C.S., Ord. No. 22978, § 2, 1-24-08; M.C.S., Ord. No. 23910, § 1, 3-11-10; M.C.S., Ord. No. 024193, § 2, 11-4-10; M.C.S., Ord. No. 26658, § 1, 11-5-15; M.C.S., Ord. No. 30206, § 1, 1-9-25)

Sec. 154-1702. Administrative adjudication procedure; appeals; fees.

(a) A person who receives a notice of violation may contest the imposition of the civil penalty by appearing before the administrative adjudication bureau on or before the scheduled hearing date.

(b) Administrative adjudications of violations of this section shall be conducted by the parking adjudication bureau established by sections 154-681 through 154-685. In conducting administrative adjudication hearings of violations of this section, the parking adjudication bureau shall have the powers and duties conferred by section 154-685.

(c) Failure to pay a civil penalty or to challenge liability in a timely manner is a waiver of the right to appeal under subsection 154-1702(h).

(d) The civil penalty shall not be assessed if, after a hearing, the hearing officer enters a finding of no liability.

(e) In an administrative adjudication hearing, the issues must be proved at the hearing by a preponderance of the evidence. The reliability of the automated traffic enforcement system used to produce the recorded image of the violation may be attested to in an administrative adjudication hearing by affidavit of a sworn law enforcement officer or the department of police. An affidavit of a sworn law enforcement officer or from the department of police that alleges a violation based on an inspection of the pertinent recorded image is admissible in a proceeding under this article and is evidence of the facts contained in the affidavit.

(f) A vehicle owner may prove by a preponderance of the evidence at the hearing that any of the following circumstances apply and thereby qualifies as an affirmative defense to the imposition of civil liability.

(1) The operator of the motor vehicle was acting in compliance with the lawful order or direction of a law enforcement or public safety officer;

(2) The operator of the motor vehicle violated the instructions of the speed limit sign in an effort to move out of the way of an immediately approaching authorized emergency vehicle;

(3) The motor vehicle was being operated as an authorized emergency vehicle under La. R.S. 32:24, and the operator was acting in compliance with La. R.S. 32:24;

(4) The motor vehicle was being operated by a person other than the owner of the vehicle without the consent of the owner, express or implied.

(5) The license plate depicted in the recorded image of the violation was a stolen plate and being displayed on a motor vehicle other than the motor vehicle for which the plate had been issued, if at the time of the violation the motor vehicle displayed a stolen plate, which must include proof acceptable to the hearing officer to prove that the theft of the vehicle or license plate had been timely reported to the appropriate law enforcement agency.

(6) The person who received the notice of violation was not the owner of the motor vehicle at the time of the violation; or

(g) Notwithstanding anything in this article to the contrary, a person who fails to pay the amount of a civil penalty or to challenge liability in a timely manner is entitled to a new administrative adjudication hearing date on the violation if:

(1) The person files an affidavit with the hearing officer stating the date on which the person actually received the notice of violation mailed to the person with an explanation and necessary documentation that the failure to receive actual notice before the initial hearing date was beyond the vehicle owner's control; and

(2) The person files a request for an administrative hearing within 30 days from the date of receipt of the notice of violation, as stated in the affidavit.

(h) (1) The decision of the hearing officer shall be the final decision on behalf of the city. A person or persons aggrieved by such a decision may appeal such a decision to the traffic court, which shall have exclusive appellate jurisdiction of all such appeals. Any such appeal shall be filed within 30 days after the date of such decision. The traffic court shall have de novo review over such appeals.

(2) The traffic court may require a reasonable fee not to exceed $50.00, from any person or persons lodging any such appeal with the traffic court to defray the cost of record preparation, transcription of evidence, and other related costs of the appeal. No such appeal shall be processed until due proof has been furnished indicating that the appeal fee has been paid.

(3) Any appellant who pleads that because of appellant's poverty appellant is unable to pay the fee authorized in section 154-1702(h)(2) may take a pauper's oath in open court and if the judge, after querying the appellant, is satisfied that such is the case, the appellant shall allow the appeal to be taken in forma pauperis.

(4) The clerk of court shall deposit any fee(s) collected under this article in the traffic court judicial expense fund.

(i) In cases where a person charged with a violation shows good cause for not attending a hearing, either personally or through a representative, the hearing officer may permit the matter to be adjudicated by mail which adjudication shall be made within 60 days of the date of the citation. Letters, memoranda, affidavits, photographs or other documentary materials shall be admissible as evidence for the purposes of adjudications by mail. The hearing officer may exclude from consideration any material which is not relevant to the adjudication of the alleged violation. Failure of the person charged to proceed with an adjudication by mail after requesting and receiving permission to adjudicate by mail shall constitute an admission by the person charged of liability of the violation and shall subject the person who requested the adjudication by mail to the appropriate fines and costs assessed by the adjudication bureau.

(j) If a hearing examiner determines that an adjudication cannot proceed by mail, the adjudication bureau shall advise the person charged by first class mail that such person must appear to answer the charge at a hearing.
(M.C.S., Ord. No. 22526, § 1, 2-15-07; M.C.S., Ord. No. 22978, § 3, 1-24-08; M.C.S., Ord. No. 25017, § 1, 9-20-12; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1703. Imposition of civil penalty for violations.

Except as provided in section 154-1702, the owner of the vehicle is liable for a civil penalty, plus cost of enforcement, plus any applicable late payment penalties.

(a) The civil penalty for traffic control signal violations shall be $105.00.

(b) The civil penalty for legal speed limit violations shall be as shown in the following table, when the vehicle owner is found to be liable for a vehicle being operated at a speed in miles per hour (mph) greater than the legal speed limit at an automated traffic enforcement system location.

Speed Over Authorized Speed Limit	*Civil Penalty*
1 through 9 mph	$ 45.00
10 through 14 mph	80.00
15 through 20 mph	130.00
Greater than 20 mph	205.00

(c) The civil penalty for school bus stop sign violations shall be $300.00. Violation of this article means the driver of a vehicle upon a highway meeting or overtaking from any direction any school bus that has stopped for the purpose of receiving or discharging any passengers shall stop the vehicle not less than 30 feet from the school bus before reaching such school bus when there are in operation on said school bus visual signals as required by law, and said driver shall not proceed until such school bus resumes motion or the visual signals are no longer activated. The penalty referenced herein will be forwarded to the school district (Recovery School District and/or Orleans Parish School Board), based on the terms of cooperative endeavor agreement with the city.

(d) Enforcement costs shall include, but are not limited to, the administrative hearing costs, payment processing and collection costs, violation review processing costs, and other administrative costs; but shall not exceed $80.00 per violation. Five dollars of the penalty amount for each violation listed above shall be paid to the indigent defender fund maintained by the Orleans Public Defenders Office.

(e) An owner who fails to timely pay a civil penalty or timely challenge liability shall be subject to an additional late payment penalty of $75.00 in addition to the original violation penalty.
(M.C.S., Ord. No. 22526, § 1, 2-15-07; M.C.S., Ord. No. 22978, § 4, 1-24-08; M.C.S., Ord. No. 23402, § 1, 3-3-09; M.C.S., Ord. No. 23910, § 1, 3-11-10)

Sec. 154-1704. Effect of liability; exclusion of civil remedy.

(a) The imposition of a civil penalty under this article shall not be considered a criminal conviction.

(b) A civil penalty may not be imposed under this article upon the owner of a motor vehicle, if the operator of the vehicle was arrested or was issued a speeding citation and notice to appear by a law or public safety officer as a violation of La. R.S. 32:232, even if such violation was captured by the automated traffic enforcement system. The imposition of a civil penalty under this article is an alternative method of detecting and deterring red-light violations and speeding.

(c) An owner who fails to pay the civil penalty or to timely challenge liability for the penalty is considered to admit liability for the full amount of the civil penalty stated in the notice of violation mailed to the vehicle owner, and the matter will be transmitted to the parking adjudication bureau of the city. The city attorney is authorized to file suit to enforce collection of unpaid fines and/or related fees and penalties imposed under section 154-1703 to secure such payments.

(d) If the owner fails to timely respond to the second notice, the department of police is authorized to enforce the payment of this civil penalty and related fees by use of the following methods: immobilization of vehicles (booting), towing and impounding, reporting the debt to collection agencies/credit reporting agencies, and/or initiating actions through the court.
(M.C.S., Ord. No. 22526, § 1, 2-15-07; M.C.S., Ord. No. 22978, § 5, 1-14-08; M.C.S., Ord. No. 30653, § 2, 5-7-26, eff. 5-31-26)

Sec. 154-1705. Revenue accounting; reporting.

The chief administrative office shall provide quarterly reports showing the revenue generated by each automated traffic enforcement system device in the city and the costs associated with the enforcement and administration of the automated traffic enforcement system and related services, per month during the reporting period. Reports shall be provided in comma-separated values or similar spreadsheet format to the city council and to any entity entitled to share in revenue generated by the automated traffic enforcement system program.
(M.C.S., Ord. No. 30206, § 2, 1-9-25)

Secs. 154-1706—154-1750. Reserved.

ARTICLE XVIII. ELECTRIC SCOOTERS

Sec. 154-1751. Rental of electric scooters.

(a) No person shall rent, offer for rent, or otherwise facilitate the rental of electric scooters, including through an electric scooter sharing application, for use on public property or within public streets or the public right-of-way, except as provided in subsection (b).

(b) The preceding subsection shall not prohibit the rental of an electric scooter from a scooter rental facility that:

i. Registered and annually renews their occupational license with the department of finance-bureau of revenue.

ii. Maintains a physical office location from which the electric scooter is retrieved at the commencement of any rental and to which the electric scooter is returned to the same physical location at the conclusion of any rental.

iii. Stores the electric scooters inside the physical office location at all times the electric scooters are not rented.

(M.C.S., Ord. No. 29169, § 3, 10-6-22)

Sec. 154-1752. Parking of electric scooters.

No person shall deposit, place, or store any electric scooter or other similar device upon the right-of-way other than at or on a proper bike rack or other designated storage area. Any such device that is improperly deposited, placed, or stored on the right-of-way shall be deemed an encumbrance or obstruction, pursuant to section 146-493, and subject to immediate removal.
(M.C.S., Ord. No. 29169, § 3, 10-6-22)

Sec. 154-1753. Disposition of unclaimed electric scooters.

All unclaimed, unidentified, or abandoned electric scooters and similar devices in the possession or custody of the department shall be held for a period of not less than 45 days. Storage fees may be assessed at a rate of up to $250.00 per scooter for an initial violation and $500.00 for each subsequent violation. Thereafter, such electric scooters and similar devices may be sold at a fair price or may be donated to a nonprofit organization or agency serving the children of the parish, as permitted by law.
(M.C.S., Ord. No. 29169, § 3, 10-6-22)

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RESERVED

Chapter 158

UTILITIES*

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Article III. Rules of Practice and Procedure for Regulatory Proceedings

Sec. 158-19. Purpose.

***Editor's note—**M.C.S., Ord. No. 30645, § 1, adopted April 23, 2026, amended Ch. 158 in its entirety to read as herein set out. Former Ch. 158, §§ 158-1—158-4, 158-41—158-52, 158-91—158-94, 158-131—158-139, 158-181—158-183, 158-231—158-241, 158-286—158-288, 158-321—158-326, 158-361, 158-362, 158-391—158-394, 158-431—158-436, 158-476—158-485, 158-511, 158-512, 158-546, 158-581—158-585, 158-621—158-629, 158-661, 158-691, 158-731, 158-732, 158-766—158-794, 158-831—158-849, 158-891—158-893, 158-931—158-948, 158-981—158-992, 158-1031—158-1059, pertained to similar subject matter, and derived from Code 1956, §§ 21-1—21-43, 52-1—52-10, 52-10A—52-10G, 52-11, 52-12, 52-12A—52-12C, 52-13, 52-14, 52-47—52-49, 52-60—52-75, 52-100—52-117, 52-120—52-145, 52-300—52-302, 52-350—52-358, 59-5.1—59-23; M.C.S., Ord. No. 2,881, § 4, adopted June 18, 1964; M.C.S., Ord. No. 16,672, adopted Oct. 6, 1994; M.C.S., Ord. No. 17,560, § 4, adopted June 6, 1996; M.C.S., Ord. No. 18,452, § 3, adopted Oct. 1, 1997; M.C.S., Ord. No. 20,259, § 1, adopted July 19, 2001; M.C.S., Ord. No. 20,273, § 1, adopted August 2, 2001; M.C.S., Ord. No. 21480, § 4, adopted April 1, 2004; M.C.S., Ord. No. 21536, § 1, adopted May 6, 2004; M.C.S., Ord. No. 22814, § 1, adopted Sept. 20, 2007; M.C.S., Ord. No. 22930, §§ 1, 2, adopted Dec. 6, 2007.

Cross references—Buildings, building regulations and housing standards, ch. 26; sanitary sewer regulations and plumbing requirements, § 26-111 et seq.; flood damage prevention, § 78-36 et seq.; water supply required in mobile home parks, § 98-64; sewage disposal required for mobile home parks, § 98-65; telecommunications services, § 150-1251 et seq.

State law reference—Regulation of local public utilities, R.S. 33:4491 et seq.

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ARTICLE I. IN GENERAL

DIVISION 1. GENERALLY

Sec. 158-1. Purpose.

The purpose of this chapter is to establish an efficient and uniform system by which the New Orleans city council ("council") may institute, oversee, and/or participate in any proceeding affecting the council's supervision, regulation, and control over utilities or that affect the interests of ratepayers in the City of New Orleans. For the purpose of this chapter, the term "utilities" refers to electric and natural gas service providers.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-2. Amendments to this chapter.

Any amendments to this chapter may be conducted pursuant to section 3-114 of the Home Rule Charter.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-3. Utility regulatory manual.

The council shall adopt by resolution the Utility Regulatory Manual ("URM") in connection with this chapter. The purpose of the URM is to provide a single common reference document to provide detailed rules, procedures, descriptions, and specifications for filing requirements and procedures related to this chapter. A copy of the URM shall be made available on the council's website. The URM may be amended by resolution of the council.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-4. Utility designated representative.

Each utility regulated by the council shall designate and maintain the designation of a natural person responsible for the performance of acts required under this chapter including notice of service in other forums. The utility shall file notice of the original designation and of any changes to the designation with the clerk of council with copy to the Council Utilities Regulatory Office ("CURO") within two business days of the designation. Such designation shall be signed by both the designee and a registered officer of the utility.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-5. Successor entities.

Should an entity cease to exist, responsibilities under this article shall be assumed by the entity's successor or functional successor under applicable law and/or practice.

Sec. 158-6. Computing time.

Unless otherwise stated in this chapter, the URM, or ordered by the council, the Louisiana Code of Civil Procedure shall determine the amount of time allowed or prescribed.

(a) In computing time allowed or prescribed, the period of time shall begin the day after a filing is received by the service list or the day after an instrument is adopted by the council.

(b) A holiday is any day on which city hall is closed to the public. In computing time, holidays and weekends are to be included in the computation of time, except when:

(1) It is expressly excluded,

(2) It would otherwise be the last day of the period, or

(3) The period is less than seven days.

In the event time allowed or prescribed falls on a weekend or holiday, the deadline for action shall move the next day on which City Hall is open to the public.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

ARTICLE II. CUSTOMER PROTECTIONS

DIVISION 1. IN GENERAL

Sec. 158-7. Purpose.

The purpose of this article is to establish a customer bill of rights which includes a process

for addressing certain customer complaints filed against utilities providing utility services in the city.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-8. Bill of rights.

Among the rights that are more fully set forth in the council-approved customer service regulations governing the provision of utility services in New Orleans, customers shall have the following rights:

(a) The right to safe and reliable service in accordance with industry standards.

(b) For residential customers, the right to choose to pay a deposit, obtain a satisfactory credit score in lieu of a deposit, or otherwise demonstrate the ability to pay on a nondiscriminatory basis. For commercial and industrial customers, the right to choose to pay a deposit or to obtain an irrevocable bank letter of credit or surety bond from a bank or surety company acceptable to the utility.

(c) The right to earn interest on any deposit at a rate ordered from time to time by the council.

(d) For residential customers, the right to have any deposit returned after 24 months if the customer has paid their bills on time for the preceding 12 months or, at any time, if customer discontinues receiving service from the utility and does not have an outstanding balance with the utility.

(e) Upon discontinuing utility service, the right to have their deposit returned less any outstanding balance.

(f) The right to have a deposit requirement waived if an existing customer with no outstanding balance transfers service to a new location within the city.

(g) The right to have customer information, including payment history and consumption patterns, kept confidential, unless the customer provides written consent or voluntarily discloses the information to the public.

(h) The right to receive written notice from the utility at least five business days prior to the disconnection of service due to nonpayment. During the five-day period, the customer may either make payment or request alternate payment arrangements to avoid disconnection.

(i) The right not to have service disconnected for non-payment when:

(1) the low temperature for the day is forecast to remain below 40 degrees Fahrenheit or the following night is forecast to be 32 degrees F or lower; or

(2) the high temperature for a day is forecast to reach 100 degrees F or higher; or

(3) the National Weather Service issues an "Excessive Heat Warning" (or such other term that reflects a heat index of 105 degrees F or higher) that includes Orleans Parish. (For any day during which an excessive heat warning is issued, the utility is prohibited from reinstating normal disconnect policies for the remainder of the day); or

(4) a storm or weather event affecting any portion of the city for which: the president of the United States issues an emergency or major disaster declaration, declares the city as a Federal Disaster Area, or makes a similar declaration affecting the city; or the mayor of New Orleans or governor of Louisiana declares a state of emergency for all or part of the city, issues a disaster or emergency declaration, declares a state of emergency, or makes a similar declaration for Orleans Parish. In the event a state of emergency is declared, the utility shall not resume service disconnects for nonpayment until the day after an emergency declaration expires.

(j) The right to have a special medical designation which prohibits service from being disconnected for nonpayment for 30 days if customer is on life support or has another life-sustaining medical treatment system that requires electricity or natural gas. The customer has the right and obligation to provide each affected utility with written medical certification from a licensed physician as to the customer's condition to receive this special designation.

(k) The right not to have service disconnected on a weekend, holiday, day before a holiday, or Friday after 1:00 p.m.

(l) The right to have same-day service for reconnection for electric customers with smart meters provided payment is received by the utility or one of its authorized pay centers before 7:00 p.m. on the day of the requested reconnection. For electric customers with legacy meters and gas customers that require an on-site restoration of utility service by a technician, reconnection shall be established within 48 hours of payment being received by the utility unless the utility establishes just cause why additional time is necessary to restore services.

(m) The right to have a meter that is regularly maintained and accurate. The maintenance and accuracy of a meter is the responsibility of the utility.

(n) The right to have the utility test the customer's meter as provided for in the customer service regulations.

(o) The right to be charged only for actual usage of electricity and natural gas and in accordance with rate schedules approved by the council based on an accurate metering process consistent with prudent utility practices as defined in the customer service regulations.

(p) The right to have complaints regarding meter accuracy resolved prior to disconnection. In the time between raising the complaint and its resolution, the customer shall pay the amount calculated by the utility using the criteria set forth in this paragraph. The amount charged to a customer shall be based on the customer's usage for the corresponding monthly or seasonal periods during the prior year, or, in the event such usage data is not available, the average usage for the customer class for the corresponding monthly or seasonal periods while the complaint is pending under Division II, unless the customer and the utility mutually agree to an alternative payment arrangement.

(q) The right not to have late fees charged on the portion of a bill that is the subject of a complaint as provided for in the customer service regulations.

(r) The right to participate in the customer complaint and dispute resolution process set forth in this chapter.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 2. CUSTOMER COMPLAINTS

Sec. 158-9. Purpose.

The purpose of this division is to set forth a procedure to address certain customer complaints regarding utility service. The process described herein is intended to be easy, inexpensive, and result in an independent, neutral assessment of whether there has been a violation of the customer bill of rights or service regulations by the utility. (M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-10. Applicability.

The customer complaint resolution process established in this division is applicable to complaints between a customer and a utility where the subject of the complaint is under the jurisdiction of the council. The subject of complaints reviewed under this article include, but are not limited to the following:

(a) violation of the council-approved customer service regulations,

(b) violation of the customer bill of rights enumerated in section 158-8,

(c) inaccurately reading a customer's meter, the failure of a meter to correctly record consumption within the range of accuracy established in the customer service regulations due to mechanical damage or defect, failure to manually read customer's meter after receiving communication of that damage or defect, and failure to properly record a meter reading,

(d) misapplication of credit scoring procedures and information,

(e) failure to keep scheduled appointments with the customer or their representative, and

(f) unauthorized release of confidential customer information, payment history, or consumption patterns.

Certain issues are more appropriately resolved in other forums, either by the council itself, judicially, or in another proceeding designed specifically for their resolution.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-11. Complaint process.

(a) *Summary of customer complaint resolution process.* The customer complaint and dispute resolution process begins with the filing of an initial complaint with the utility. The utility shall review the complaint in a manner consistent with the procedures set forth in the utility's service regulations. If a customer is dissatisfied with the disposition of the complaint, the customer may request an appeal with CURO. CURO shall review appeal applications for eligibility and dismiss those that are ineligible. Unresolved property loss claims resulting from a loss of service or defect in service shall be regulated by council-approved customer service regulations of the respective utility, subject to the jurisdiction of the courts, and thus ineligible for the Council's administrative appeal process.

(b) *Utility complaint reporting.* To ensure claims are being resolved efficiently and fairly, the utility providing service shall submit a quarterly Claim Resolution Report to the council within 30 days of the end of each quarter. This report shall include an anonymous list of customer complaints/claims, a brief description of said complaint/claim, the utility's response to the claim, and the time to resolve each complaint from initiation.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-12. Appeals filed with the council utilities regulatory office.

(a) *Right to appeal.* A customer may appeal a proposed complaint resolution made pursuant to the customer service regulations if the customer believes the proposed disposition is unsatisfactory and the matter is eligible for appeal under this section. A customer may appeal the outcome of an initial complaint by submitting an appeal request form electronically or in writing within ten business days of the date the customer receives a notice of disposition. The form for filing an appeal shall be made available online via the council's website, at the council utilities regulatory office, and each of the utility's customer care centers.

(b) *Appeal form.* The appeal request form shall include:

(1) a written acknowledgement by the customer authorizing the utility to release any confidential customer information relevant to the complaint to CURO and the appeal officer;

(2) a clear statement of the dispute and, if known, identification of the customer service regulation(s) the customer alleges the utility has violated;

(3) a simple statement of the relief sought; and

(4) any other appropriate supplemental information the customer believes is relevant to the complaint.

(c) *Determination of eligibility.* CURO has five business days to review the appeal request for eligibility and to assign an appeal officer to oversee the appeal.

(d) *Notice of appeal.* Within five business days of determining an appeal is eligible for review pursuant to this article, CURO shall advise the affected utility that an eligible appeal has been submitted and provide a copy to the utility's designee(s).

(e) *Utility answer.* Within five business days of receiving the notice of appeal, the utility shall respond to CURO with any reports produced by the utility in connection with any investigation of the complaint, a copy of the complaint disposition, its position with respect to the allegations contained in the complaint, and any grounds that exist which constitute the grounds for the immediate dismissal of the appeal.

(f) *Appeal officer.*

(1) Appeals shall be heard by an appeal officer who may be an employee of CURO or a designee of the council. The appeal officer shall review the appeal request and related materials and arrange for a hearing, if necessary. The appeal officer shall make a finding as to whether the utility has violated the customer service regulations, including any of the customer's enumerated rights and, if necessary, recommend an appropriate remedy.

(2) The appeal officer shall have the authority to resolve appeals through settlement on terms that are mutually agreeable to all parties. Such settlements are encouraged and can occur at any time.

(3) The appeal officer shall also have the authority to dismiss summarily, and without hearing, appeal requests that are deemed frivolous or that are otherwise ineligible for hearing as set forth in section 158-16. Where eligibility for hearing is raised by the utility as an issue, the determination of whether an appeal request is eligible for hearing shall be made by the appeal officer and a decision on the eligibility for hearing shall be made and issued within five business days of CURO issuing a notice of appeal.

(4) Where appropriate, the appeal officer may request technical assistance from the council's utility advisors.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-13. Timing and notice of appeal hearing.

Unless otherwise ordered by the appeal officer, hearings shall be held within 30 business days of CURO receiving the appeal. The appeal officer shall notify the customer and the utility of the date of the hearing. The notice shall state the potential consequences of any failure to appear for the hearing. Notice shall be given via the customer's preferred method of communication as provided on the complaint form, at least five business days prior to the hearing date, unless the parties agree to a shorter period. The hearing shall be held between 9:00 a.m. to 5:00 p.m. on a business day at a location in the city or virtually, if both the customer and utility consent.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-14. Failure to attend hearing.

If the customer does not attend a hearing, the appeal officer may dismiss the complaint. If the utility fails to attend the hearing, the appeal officer may find in favor of the customer.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-15. Appeal hearing procedure.

Customers may represent themselves or be represented by counsel or any other person of their choosing. A customer and the utility shall have the right to present evidence, call witnesses, question any witness, and present written materials and a summary of their positions. The appeal officer shall have the right to question any witness. The appeal officer shall have the discretion to limit any line of questioning to the relevant issues in dispute and to set an amount of time for the utility and the customer to summarize their positions. The formal rules of evidence shall not apply; however, the appeal officer may exclude irrelevant or unduly repetitious evidence.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-16. Restriction on appeal.

Grounds upon which CURO will dismiss an appeal include, but are not limited to:

(a) The customer did not initiate a complaint that follows the procedures required for initial complaints as provided for in section 158-12.

(b) The customer is disputing:

(1) the terms or denial of a deferred payment agreement voluntarily offered to the customer by the utility;

(2) the customer's financial ability to pay for utility services provided by the respective utility;

(3) a council-approved rate schedule, fuel adjustment clause, or purchased gas adjustment clause;

(4) an unlawful use of service, damage to utility equipment, unauthorized sale of utility service, or related violation of law;

(5) the right of the utility to collect for undercharged costs or charges assessed for unlawful use of service, or for damage to utility equipment;

(6) customer consumption and

A. as part of the initial complaint process, the customer's meter has been tested and has been determined to be accurate, or

B. the customer has refused a meter test on the basis that they, in accordance with the service regulations, may be required to bear the cost of such test if the meter is found to be accurate;

(7) the denial or termination of utility service at issue based on a danger to public health or safety;

(8) a matter subject to a court's decision;

(9) a claim for property damage made against the utility; or

(10) the application or amount of a security deposit, provided that the security deposit amount is in accordance with the customer service regulations.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-17. Results of an appeal.

(a) Within 15 business days after the hearing or review period concludes, the appeal officer shall issue written findings which set forth whether the utility has violated the customer service regulations or the customer's enumerated rights, the basis for that conclusion, a remedy, or the terms of any settlement reached between the customer and the utility while the appeal was under review.

(b) If a settlement is agreed to by the utility and customer, the appeal officer shall indicate that the dispute was resolved without hearing and that the customer's right to a hearing and the appeal officer's finding was waived.

(c) In appeals involving a billing dispute in which the appeal officer determines that all or part of the amount in dispute is owed by the customer, the appeal officer may, for good cause stated in the finding, propose that the amount found outstanding be paid in installments, which installments over a period not to exceed 12 months.

(d) In appeals involving a billing dispute in which the appeal officer determines that all or part of the amount in dispute is owed by the utility, the appeal officer may, for good cause stated in the finding, propose a credit be applied to the customer's next bill. If the credit amount exceeds the next monthly bill amount, the remainder of the credit shall be applied for the subsequent month(s) until the credit is exhausted.

(e) Copies of the appeal officer's decision and the executed settlement agreement shall be sent to the customer, the utility, and CURO.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-18. Effect of appeal officer's decision.

Following the issuance of the appeal officer's decision, the utility and customer may exercise any other rights or remedies they may have under the law.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

ARTICLE III. RULES OF PRACTICE AND PROCEDURE FOR REGULATORY PROCEEDINGS

Sec. 158-19. Purpose.

The purpose of this article is to establish a system of practices and procedures to govern utility dockets and other proceedings before the council related to the regulation of utilities beyond the complaints covered by section 158-10. These rules govern the general practice and procedure for the institution, conduct, and determination of regulatory proceedings before the council. It is intended that such practices and procedures shall be construed liberally to permit the council to perform a thorough analysis of all filings and shall be construed to promote the maximum public disclosure of all information relevant to any proceeding governed by this article. Information is subject to a valid protective order governing the disclosure of highly sensitive protected materials ("HSPM") approved by the council.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 1. GENERAL RULES

Sec. 158-20. Administrative hearing officer.

(a) The council may appoint an administrative hearing officer to conduct all or any portion of a regulatory proceeding. The administrative hearing officer shall have full authority to make all rulings on jurisdiction or the admissibility of evidence, subject to the right of all parties to include in the record any objection to such ruling and subject to review by the council.

(b) If the administrative hearing officer becomes disabled, withdraws, is removed from employment, or from the regulatory proceeding at any time before the conclusion of the discharge of his duties, the council may appoint another administrative hearing officer who may perform any function remaining to be performed without the necessity of repeating any proceedings previously conducted in the case. If the entire council is acting as examiner, then the presence of a quorum shall be sufficient to continue hearings into purely factual matters.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-21. Conduct and decorum.

Every party, witness, attorney or other representative, and member of the public shall participate in all proceedings with proper dignity, courtesy and respect for the council, the clerk, and all other parties present. Disorderly conduct will not be tolerated. Attorneys and other representatives of parties shall observe and practice the standards of ethical behavior prescribed for attorneys by the Louisiana State Bar Association, the Louisiana Supreme Court, and the Louisiana Code of Civil Procedure. Violation of this rule may subject any party, witness, attorney, or other representative to just, reasonable, and lawful disciplinary action as the council may lawfully prescribe including, but not limited to, exclusion from any proceeding.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-22. Penalties for false or misleading representations.

It shall be unlawful for any person to make, or cause to be made, any false or misleading representations of fact, whether intentionally or through negligence, in any filing in a regulatory proceeding under this article or in any proceeding before the council. Demonstrated violation of this section may result in a monetary penalty being assessed by the council against the offending party or parties.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-23. Ex-parte communications prohibited.

While a matter is the subject of a utility docket under this article, ex-parte written com-

munications between the council and parties to the utility docket regarding any aspect of the subject utility docket are strictly prohibited. An ex-parte written communication is any substantive information provided in writing to a councilmember or staff member serving in an individual councilmember's office, transmitted outside of an electronic communication to the docket's service list, and includes information pertaining to a utility docket on which the council has not issued a final order if the information is not contained in or derived from information that is part of the evidentiary record of the docket. Any such written ex-parte communication shall promptly be submitted either electronically to the appropriate service list, during an appropriate public meeting or technical conference to maintain transparency and fairness in the regulatory process. Written ex-parte communications by a party may result in penalties as determined by the council or the administrative hearing officer including disqualification of the communication and changes to the procedural schedule to allow parties to provide comment on the prohibited communication.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-24. General communications.

Any comments, letters, or filings that are not part of a utility docket shall be treated as general communications, unless otherwise ordered by the council or the administrative hearing officer.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 2. UTILITY DOCKETS

Sec. 158-25. Establishing a utility docket.

A utility docket may be established by the council via a resolution in response to a request from a utility, a third-party, a governmental department, agency, or office ("applicant"), or as an independent action taken by the council. Whenever a utility docket is instituted, the initiating resolution shall assign a number to the utility docket, which shall consist of the letters "UD" followed by the last two numerals of the year in which the proceeding is instituted, followed by a hyphen and the number indicating the place the particular matter holds in the sequence of utility dockets instituted in that particular year, e.g., UD-25-01. Further, the initiating resolution shall assign an administrative hearing officer and establish a procedural schedule with deadlines by which participants must act.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-26. Show cause orders and contempt in regulatory proceedings.

(a) The council, either on its own motion or upon receipt of sufficient written complaints, may, in its sound discretion, at any time after legal notice to all interested parties, cite any person or entity operating under its jurisdiction to appear before it in a public hearing and require the person or entity to show cause why its franchise or operating authority should not be revoked, suspended or amended, or why some other action available to the council should not be taken, for failure to comply with any applicable statute, order or the rules, rates, regulations or general order of the council.

(b) All hearings of such proceedings shall be conducted in accordance with the provisions of this article; provided that in any proceeding wherein the public interest may be seriously and adversely affected, or service to the public discontinued, the council may issue on its own motion a restraining order for purpose of protecting the public interest until the matter may be orderly heard and a decision rendered thereon.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-27. Filings.

(a) All applications, petitions, complaints, motions, protests, replies, answers, notices, and other pleadings (referred to herein collectively as "filings") relating to any proceeding pending before the council under this article, shall be transmitted electronically to the clerk of council with a cover letter as provided for by council rules with a copy to the service list. All such filings shall be deemed filed only when submit-

ted with a cover letter to the clerk and service list for the relevant utility docket in accordance with council rules.

(b) In the event a filing relates to an undocketed matter, the party should submit the filing electronically to the clerk as provided in council rules with a copy to CURO.

(c) Filings related to undocketed regulatory matters shall be received by the council as a general communication.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-28. Archives.

The clerk shall keep electronic copies of documents filed in proceedings governed under this article filed and organized according to the docket number, if applicable, and in accordance with Title 44 of Louisiana Revised Statutes or its successor statute governing public records.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-29. Parties and service list.

A service list, including all participants in a utility docket, shall be maintained by CURO. When making a filing the submitting party shall provide an electronic copy to each member of the most current service list. A party requesting a change to the service list must submit the request in writing to CURO.

(a) Classification of participants.

(1) Participants in a regulatory proceeding are subject to classification or reclassification as a party or a stakeholder by CURO, regardless of errors in a party's self-designation in their filing.

(2) Parties. A party to a utility docket is a participant with a justiciable or administratively cognizable interest in the matter at issue in the docket. Parties may request to participate in a utility docket by submitting a motion to intervene which includes the party's interest in the docket's subject matter and otherwise meets the requirements set forth in this section. The following entities are parties to every utility docket unless otherwise ordered by the council:

i. the utility,

ii. the city attorney,

iii. the applicant,

iv. a designee of the mayor, whose name and contact information shall be submitted electronically to CURO.

All parties are subject to discovery and any testimony or evidence submitted by the party or their representative is subject to cross examination.

(3) The council, as regulator, may designate legal or technical advisor(s), or otherwise necessary agents, to participate in utility dockets and to represent the council's interest as the utility regulatory body.

(4) Stakeholders. A stakeholder to utility docket, other than a party, is a person or entity desiring to receive information filed in the docket but does not wish to be treated as a party or does not have a justiciable or administratively cognizable interest in the matter at issue in the utility docket. As such, a stakeholder may not submit evidence or testimony nor are they subject to discovery requests. Further, a stakeholder may not view highly sensitive protected materials. A stakeholder may request to be included on the service list for a utility docket by submitting a motion to intervene which denotes that the entity wishes to participate as a stakeholder and otherwise meets the requirements set forth in this section.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-30. Appearances personally or by representative.

Any party may appear on their own or through a representative. The party's intervention shall

identify the designated representative and a statement signed by the representative and the represented person or a registered agent of the represented organization.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-31. Form and content of filings.

(a) *Classification of filings.* Filings submitted to the council under this article shall be subject to appropriate re-classification, including as applications, protests, petitions, complaints, answers, prehearing orders, replies, or motions, and redesignation to the appropriate docket(s) as deemed necessary by CURO.

(b) *Format.* All filings in any proceeding shall, unless the council otherwise orders or permits, be double spaced, typed, and submitted electronically. Except as otherwise ordered or permitted by the council, all filings shall be formatted so as not to exceed a width of 8½ inches and a length of 14 inches and shall have inside margins not less than one inch wide. Whenever practical, all documentary exhibits shall conform to such requirements of size and margin. All filings shall contain the address and telephone number of the party submitting the document. If a party is represented by an attorney or other representative, the filing shall also include the name, business address and telephone number of such attorney or other representative. Attorneys shall also attach their state bar association number. A private or United States Post Office Box or drawer shall not constitute a sufficient address for the purposes of this section.

(c) *Subject matter.* The subject matter of all filings in any proceeding shall be limited to the scope of that proceeding. Any filing may be amended at any time upon motion, provided that the amendment does not broaden the scope of the subject filing.

(d) *Content.* All filings shall contain:

(1) a cover letter to the clerk as provided in the council rules,

(2) the docket number, if applicable,

(3) the name(s) of the filing party,

(4) a concise description of the ultimate facts relied upon by the filing party,

(5) a concise description of the type of relief, action or order desired by the filing party, and

(6) a copy of the most recent service list and a certificate of service on each party on the list.

(e) *Incorporation by reference of council records.* Any filing may adopt and incorporate any part of any document or entry in the official files and council records by clear and specific reference to the document to be incorporated. The incorporated document must be readily available for review. This provision shall not relieve any party of the necessity of alleging and providing in detail such facts as the council may deem necessary for the proper determination of a regulatory matter.

(f) *Examination of filings for compliance.* Upon submitting a filing to the clerk of council, as provided in section 158-27, CURO shall examine the filing and determine if it complies with this article. If the filing does not comply with this article, CURO may return it to the party, with the reason(s) the filing was rejected. The party shall thereafter have the right to submit a corrected filing, provided that the time required to correct the filing does not result in the corrected filing being submitted after the deadline. If the time required to correct a filing would result in its submission after the deadline, the administrative hearing officer may determine that such delay is necessary to prevent injustice or to protect the public interest and welfare. Failure of CURO to return a filing shall not constitute a waiver by the council or any other party to object at a later time to the sufficiency of the filing.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-32. Procedural schedule filing deadlines.

(a) Any filings related to an ongoing utility docket submitted after a procedural schedule deadline may be accepted or rejected subject to the discretion of the administrative hearing officer.

Any filing rejected by the hearing officer shall be treated as general communication and not included as part of the record.

(b) Unless otherwise provided, the time for submitting a filing, may be extended by order of the administrative hearing officer upon written motion duly filed with the clerk of council prior to the expiration of the applicable period of time for the filing, showing that there is good cause for such extension of time and that the need therefore is not caused by the inexcusable neglect, indifference, or lack of diligence of the party making such motion. A copy of any such motion shall be transmitted contemporaneously to all other parties of record to the proceeding and any additional recipients of service specifically designated by law.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 3. ADMINISTRATIVE PROCEEDINGS

Sec. 158-33. Discovery.

(a) Unless otherwise directed by the council or agreed to by the parties to the relevant proceeding, responses to data requests, interrogatories, requests for production of documents, or any other discovery requests ("discovery") shall be made on a rolling basis and shall be due in hand within 10 business days of receipt of a discovery request. Discovery requests shall be deemed received when transmitted by the requestor during hours of operation of the clerk.

(b) Any party of record shall avail himself of any discovery method authorized by the Louisiana Code of Civil Procedure.

(c) All objections to discovery requests shall be made in writing prior to the date on which a response is due. The hearing officer shall dismiss any objection made on or after the date on which a response is due unless sustaining the objection is necessary to prevent injustice or to protect the public interest and welfare.

(d) The council may publish general instructions for the production of responses to discovery requests in the URM.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-34. Evidence.

(a) *Admissibility.* Any evidence which would be admissible under the general statutes of the state, or under the rules of evidence governing proceedings in matters not involving a trial by jury in the courts of the state, shall be admissible. Other evidence may be admitted by the council or the hearing officer if it is at all probative and relevant provided that the substantive rights of all parties are protected. The rules of evidence shall be applied liberally in any proceeding to the end that all probative and competent relevant evidence shall be conveniently, inexpensively, and speedily heard while preserving the substantive rights of the parties to the proceeding.

(b) *Testimony.* In all proceedings, testimony of a witness upon direct examination shall be prepared under oath and include a sworn attestation; identify the witness, including their name, business or personal address, place of employment and position held, reason for appearing, educational background, professional background and qualifications of the witness; and the purpose of the testimony and a summary of the conclusions in the testimony. When the testimony exceeds five pages in length, it should be submitted in question-and-answer form. When testimony is five pages or less, it may be presented in narrative form, using clear headers, which identify sections by subject matter. Testifying witnesses shall be subject to cross-examination and the testimony may be subject to a motion to strike in whole or in part for ruling by the hearing officer.

(c) *Exhibits.*

(1) *Form.* Exhibits in documentary form shall be submitted electronically and attached to a brief statement of what the exhibit purports to show. Exhibits shall be limited to factual material relevant to the issue involved in a particular proceeding.

(2) *Service.* All exhibits shall be provided to the service list electronically as described in section 158-29.

(3) *Excluded exhibits.* If an exhibit has been submitted, objected to and excluded, the hearing officer shall determine whether

the party offering the exhibit will withdraw the offer, and if so, permit the return of the exhibit to the party. If the excluded exhibit is not withdrawn, it shall be given an exhibit number for identification and shall be included in the record as a proffer, together with the ruling of the hearing officer for the purpose of preserving the objection.

(4) *After hearing.* Unless specifically directed by the council, no exhibit will be permitted to be filed in any proceeding after the conclusion of the hearing.

(d) *Briefs.* Briefs shall be filed only when requested or permitted by the council or by the hearing officer in a proceeding. They shall conform, as nearly as possible, to the rules herein provided for form. The points involved shall be concisely stated, the evidence in support of each point shall be briefly summarized, and the argument and authorities shall be organized and directed to each point in a concise and logical manner. To the greatest extent possible, the general format and content of each brief shall be arranged and shall include such elements as are required by the Rules of the Louisiana Supreme Court.

(e) *Offer of proof.* If evidence is excluded by the administrative hearing officer, the party offering such evidence may be permitted to make an offer of proof by dictating or submitting in writing the substance of the proposed evidence prior to the conclusion of the hearing. Such offer of proof shall be sufficient to preserve the point for review by the council or on appeal. The hearing officer may ask such questions of the party offering the evidence as is necessary to determine that the evidence is as represented in the offer of proof. An alleged error in sustaining an objection to questions asked on cross-examination may be preserved without making an offer of proof.

(f) *Oral argument.* Any party may request oral argument at any time prior to the certification of the administrative record, but oral argument shall be allowed only in the sound discretion of the administrative hearing officer or upon the agreement of the parties. A request for oral argument shall be submitted to the service list as described in section 158-26.

(g) *Orders.* All rulings and/or orders made by the administrative hearing officer shall be made in writing and dated and signed by the hearing officer. All such rulings and orders shall be distributed to the service list and made a part of the administrative record.

(h) *Reconsideration.* In the event a hearing officer makes a ruling on the admissibility of evidence or any other procedural matter, any aggrieved party or the council on its own motion, may request reconsideration within ten days after the electronic mailing of the order on the admissibility of evidence or other procedural matter. Any opposition to the request for reconsideration shall be filed within ten days after the filing of the request. The council will evaluate the request for reconsideration, any timely filed opposition, the evidence, and the hearing officer's reasons for the ruling. Upon conclusion of the council's reconsideration the council may modify, reverse, reverse in part, affirm, or affirm in part, the hearing officer's ruling subject to any objections stated for the record.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-35. Confidential materials.

The council may adopt and from time-to-time modify protective orders relative to information that is deemed confidential and/or HSPM. The HSPM designation shall be the only confidential designation utilized in any proceeding unless the party requesting multiple designations can show good cause to either the council or the administrative hearing officer.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-36. Technical conference.

In the discretion of the council or the administrative hearing officer, the procedural schedule for a utility docket may include or be amended to include one or more technical conferences. A technical conference is a meeting of the parties to clarify and address the issues included within the scope of the docket. The agenda for a

technical conference, including the order of presentations and the time allocated to each matter, shall be determined by CURO. The agenda shall be circulated to the service list no less than 48 hours prior to the technical conference. Materials presented and statements made during a technical conference are illustrative and shall not be included as part of either the evidentiary or administrative records of a docket unless expressly ordered by the council or the hearing officer.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-37. Depositions.

The taking of depositions is allowed in any proceeding subject to any objections, which would be considered by the hearing officer or the council. Depositions shall be governed by the Louisiana Code of Civil Procedure.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-38. Hearings.

Hearings as part of a utility docket or regulatory proceeding governed by this chapter are encouraged to occur as an exchange of documents ("paper hearing") rather than in-person. However, if a party objects to a paper hearing and an agreement cannot otherwise be reached, an in-person hearing shall be conducted.

(a) *Prehearing conference.* In any regulatory proceeding, the council or the administrative hearing officer may direct parties to meet prior to a scheduled hearing for the purpose of formulating issues and considering:

(1) how to simplify issues,

(2) the possibility of making any admissions or stipulations regarding matters of public record to avoid the unnecessary introduction of proof,

(3) hearing procedures,

(4) limiting the number of witnesses,

(5) time limits for presentations, and

(6) other matters to simplify the proceedings.

The decisions made by the parties during a prehearing conference shall be reduced to writings and circulated to all parties. Once all parties agree the document reflects the agreement of the parties, the agreement should be presented to the hearing officer.

(b) *Place and nature of hearings.*

(1) *Open to the public.* In the event the council or the hearing officer determine that an in-person hearing is necessary as part of a utility docket or regulatory proceeding governed by this chapter, the hearing shall be open to the public. The hearing shall be held in the council chamber unless the council permits the hearing to be held in another location. If the hearing is not held in the council chamber, the space designated should be accessible to the public.

A. *Closed to public only for cause.* Hearings shall be closed to the public when HSPM materials are being discussed. Hearings may be closed to the public upon motion of a party where the hearing officer determines good cause has been shown to close the proceeding. Such closure of the shall be limited to the minimum period determined necessary by the hearing officer to serve the purpose for which the closure was granted.

(2) *Recorded.* Whenever possible, hearings shall be broadcast on television and made available to stream live online. In the event a hearing cannot be broadcast live or live streamed, CURO shall make every effort to record the hearing and make it available for rebroadcast and streaming within 72 hours of the hearing.

(3) *Notice.* Hearings shall be noticed as a public meeting as described in state law governing open meetings.

(4) *Reporters and transcripts.* In-person hearings shall be transcribed by a court reporter. The parties shall coordinate and arrange for a court reporter to be present at the hearing. If after reasonably diligent efforts to secure a court reporter for the hearing a court reported cannot be procured, a transcribing entity will be permitted to create a transcript from a recording of the proceeding.

(c) *Order of procedure.* At the start of a hearing the hearing officer shall direct all parties to enter their appearances on the record. The council or hearing officer shall determine at what stage intervenors shall be permitted to offer evidence.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-39. Evidentiary and administrative records.

At the conclusion of every procedural schedule for a utility docket the hearing officer shall certify an evidentiary record and an administrative record of the proceeding. The evidentiary record shall consist of all filings accepted, including but not limited to, all testimony and evidence provided, and shall serve as the basis upon which the council issues any order in the docket proceedings. The administrative record shall consist of all other filings accepted by the hearing officer that do not form a part of the evidence presented. Public comments provided during a meeting of the council shall not be included as part of either the evidentiary or administrative records unless expressly stated in the procedural schedule.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-40. Form and content of orders.

(a) All orders of the council shall be in writing and adopted by the affirmative vote of the council.

(b) After an order has been passed, certified copies shall be distributed to the service list as soon as possible.

(c) The dispositions may be incorporated either in the body of the order or by reference to the official record.

(d) All orders shall go into effect upon adoption by the council unless otherwise stated.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-41. Agreements to be in writing.

No stipulation or agreement between the parties regarding any matter involved in any proceeding before the council under this article shall be enforced unless it shall have been reduced to writing and signed by the parties or the representatives authorized hereunder to appear for them and approved by the council.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-42. Notice of service of filings in other forums.

Whenever a public utility regulated by the council files, or participates in the preparation of a document or report, or causes a document, report, or application to be filed with a state public service or public utility commission, the Federal Energy Regulatory Commission ("FERC"), the Securities and Exchange Commission of the United States ("SEC"), the Nuclear Regulatory Commission of the United States ("NRC") or any other body, which regulates in whole or part the utility or utility-related activities and operations of utilities, or which regulates in whole or part companies which own or operate such utilities, the owner or operator or such public utility shall, within one day of filing such document, report, or application, electronically submit a copy of such filing and written notice to the clerk with a copy to CURO and the council's utility advisors.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 4. APPLICATIONS FOR A CHANGE OF RATES, TARIFFS, OR SERVICES

Subdivision I. In General

Sec. 158-43. Purpose.

Rate cases are proceedings used to address the costs of operating and maintaining a utility system, the allocation of those costs among customer classes, and the recovery of the allocated costs through changes in tariffs and/or rates.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-44. Applicability.

The standard filing requirements shall apply to all utilities under the supervision, regulation and control of the council and to all applications made by them.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-45. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Affiliate(s) means any entity that directly or indirectly through one or more intermediaries, controls, is controlled by, or is under common control with a utility. As used herein, "control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a company, whether such power is exercised through one or more intermediary companies, or alone, or in conjunction with, or pursuant to an agreement, and whether such power is established through a majority or minority ownership or voting of securities, common directors, officers or stockholders, voting trusts, holding trusts, associated companies, contracts or any other direct or indirect means.

Control means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a company, whether such power is exercised through one or more intermediary companies, or alone, or in conjunction with, or pursuant to an agreement, and whether such power is established through a majority or minority ownership or voting of securities, common directors, officers or stockholders, voting trusts, holding trusts, associated companies, contracts or any other direct or indirect means. Control shall be presumed to exist if any person, directly or indirectly, owns, controls, holds with the power to vote, or holds proxies representing five percent or more of the aggregate number of the issued and outstanding voting securities of any domestic public utility.

Cost allocation manual means the manual that sets out a utility's costs allocation policies and related procedures and provides an accurate account of the methods used to allocate the utility's investments and expenses, and non-retail sales revenues that flow between the utility and its affiliate(s).

Cost of service means the total cost of providing service to jurisdictional customers, defined by customer class, as determined by a cost-of-service study which allocates the utility's total costs, representing the utility's revenue requirement, to customer classes.

Effective date means the date on which a rate application filed pursuant to this article is proposed to become effective as an approved rate schedule.

Formula rate plan means a procedure by which rate schedules for a utility may be periodically adjusted based on an established evaluation of the utility's current revenue requirement relative to current revenues.

Gross revenue conversion factor means the factor which, when multiplied times a dollar of operating income, yields the amount of revenue needed to produce that dollar of income after allowing for state and federal income tax and revenue tax.

Period I means the most recent 12 consecutive months, or the most recent calendar year, for which actual data is available, the last day of which is no more than nine months prior to the date of the filing of the application.

Period II means the 12 consecutive months immediately following the end of Period I.

Pro-forma adjustments means adjustments made to identify and illustrate the impact of known and measurable changes made to Period I and Period II based upon actual data during the year.

Projections means estimated results of operations based only upon known facts or reasonable assumptions that can be quantified concerning future events.

Rate schedule means a schedule of rates and conditions for a specific classification or for other specific service.

Rate case means a proceeding related to a change in electric and gas rates, new services, and new rate schedules applicable to electric and gas service.

Tax expansion factor means the value that when multiplied by a specified value for operating income, yields the tax expense correlated to the revenue needed to produce that dollar of operating income.

Test period means a twelve-month period consisting of Period I or Period II used to demonstrate the need for additional revenue and to evaluate the effects of the proposed change in rates.

Uniform system of accounts means the uniform system of accounts as promulgated by the FERC as of the date the filing is served.

Working capital means an allowance for cash, materials and supplies, fuel stock, and prepayments.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-46. Filing of application to change rates or services.

(a) The filing requirements established in this division shall govern applications to change rates or services ("applications").

(b) A utility may request to change rates or service by submitting its application electronically to the clerk of council with copy to CURO and in accordance with filing requirements under this article. The application shall include a summary of the utility's requested change to rates or services, including potential bill impacts for typical usage customers in each rate class.

(c) All statements, schedules, spreadsheets, and working papers included in the filing and used in support of the application(s), or contained in discovery responses, shall be provided in an operable electronic format, i.e. models and spreadsheets are to be provided with formulae intact and source data included. To the extent electronic data is provided in PDF format, the PDF shall not contain any security settings that limit the usability or the extraction of data.

(d) Electronic data shall include any work sheets that will either include formulae intact or at a minimum a note as to how a number was calculated. The related and relevant data must be provided in a format usable by the council.

(e) All information required by these standard filing requirements, or any other applicable law, ordinance, or order and/or rule of the council shall be included in and/or attached to the application at the time it is filed and served. The fact that any information or data is required by this article shall not be construed as a statement of or evidence of regulatory policy or as an endorsement of any concept, principle, methodology, or allowance, hitherto, presently, or in the future employed or proposed to be employed in this or any other jurisdiction in the calculation of rate base, rate of return, revenue requirements, rate design, or any other aspect of regulation of rates and services.

(f) An application for a waiver under section 158-52 shall be included with any application for a change in rates.

(g) Acceptance of applications.

(1) *Deficient applications.* Where deficiencies are noted by the council, its designees, or CURO, the filing shall be deemed as accepted on the dates that such deficiencies are cured and approved by the council or when the council has granted a waiver to the standard filing requirements. When filing deficiencies have been noted by the council, its designees, or CURO, and the

utility has corrected the deficiencies, the council, its designees, or CURO shall notify the utility at the earliest practicable date that the filing has been accepted.

(2) *Accepted applications.* Where no deficiency is noted by the council, its advisors, or CURO, within 14 days of the date the filing is served, the filing shall automatically be deemed as accepted beginning on the 15th day following such date.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-47. Council review of applications.

Upon acceptance, the council shall have 12 months in which to review the filing and to render a determination as to the proper rates to be charged by the utility. If the council has not made this determination by 12 months plus one day after the date of acceptance, the rates as submitted by the utility in the accepted filing shall become effective subject to refund. During the period when the rates are collected subject to refund, the utility shall keep an accurate account of all amounts received under the change in rates, including:

(a) the monthly billing determinants of gas, heat, electricity, and power sold and delivered to each purchaser; and

(b) the amount of revenue collected from each customer class that is in excess of, or less than the amount that would have been collected using the rates in effect immediately prior.

If after the utility has implemented rate relief, the council determines that the utility is entitled to a different amount of relief, the utility shall compute the amount of revenue to be refunded or collected and shall present to the council within 60 days of such council determination a plan to make the customers and the utility whole. The council shall then authorize refunds or surcharges or both so that the level of revenue collected equals that determined by the council to be appropriate. Interest on the revenue to be refunded or collected shall be charged at an average prime rate for each calendar quarter. The applicable average prime rate for each calendar quarter shall be the arithmetic mean, to the nearest 0.01 percent, of the prime rate values published in the Federal Reserve Bulletin, or in the Federal Reserve's Selected Interest Rates (Statistical Release G. 13), for the fourth, third, and second months preceding the first month of the calendar quarter. Interest shall be compounded quarterly. The costs of effecting the refunds shall not be deducted from the amounts refunded.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Subdivision II. Technical Procedure and Requirements

Sec. 158-48. Filing standards.

All applications filed pursuant to this article shall provide the information necessary to permit a thorough analysis of the utility's application. If the utility believes that additional information is necessary to support its application or is proposing a position that requires a departure from the basic exhibits, the utility shall provide supplemental information as considered necessary. Each utility shall provide the required information on appropriate schedules and provide an index and references to these schedules. Any additional exhibits submitted by the utility shall be clearly identified and filed according to the appropriate section as established herein.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-49. Supplemental information.

In addition to the information required by the filing requirements described in Subdivision I, the council has the authority to require supplemental information necessary to fulfill and/or satisfy the purposes of this article. If any supplemental information requests are considered necessary, the utility shall respond to such requests within 30 days after receiving such a written request, or within such additional period as the council, for good cause shown, may allow. Unless otherwise ordered by the council, the filing of supplemental information shall comply with the requirements of section 158-48.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-50. Work papers.

A utility shall submit all work papers related to data which support the test period. The utility shall provide a full explanation of the bases for all adjustments. Upon request by the council's utility advisors or CURO, the utility shall provide a full explanation for any estimates and, if such adjustments or estimates are based on a regularly prepared corporate budget, shall include relevant excerpts from such budget. Where applicable, work papers and documents containing additional explanatory material shall be cut or folded to letter size, shall be assigned page numbers, and shall be marked, organized and indexed according to subject matter, the cost-of-service statements to which they apply, and the witness sponsoring the statement. Said work papers shall be submitted in an electronic format in accordance with the requirements of section 158-48.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-51. Uniform system of accounts.

Where applicable, exhibits, schedules and work papers shall be prepared in accordance with the uniform system of accounts as prescribed by the federal regulatory agency responsible for that type of utility. In the case of electric and gas utilities, the uniform system of accounts used shall be that prescribed by the FERC, or its functional successor in the United States Government, except as otherwise specifically permitted or requested by the council, the council's utility advisors, or CURO.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-52. Waiver of requirements.

(a) If any information required by the filing requirements cannot be provided or is not applicable to a particular utility, such utility shall submit electronically to the clerk of council, with a copy to CURO, a written application for a waiver of the requirement(s) with which it cannot comply or which is not applicable, at the time of filing the application. The waiver shall include specific reasons for the inapplicability of such information, or the inability of the utility to provide this information and shall be filed in accordance with the requirements of section 158-48.

(b) The council may approve or deny the request for waiver by resolution. If the council denies the request, the utility shall file the information, which is the subject of the denied waiver request, to the clerk with a copy to CURO within 15 days unless the council designates a longer time.

(c) If the utility fails to cure the deficiency, which was the subject of a denied waiver application in the period allowed, the application shall be deemed rejected.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-53. Suspension of filing requirements.

In its sound discretion, the council may suspend the operation of any provisions of this article or modify them instanter to the extent authorized by law, or after such proceedings and upon such conditions as it finds to be just and practicable, provided that any such suspension and modification shall be consistent with provisions of the home rule charter of the city.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-54. Public notice.

(a) When a utility files an application, the clerk of council shall publish the summary provided with the application in the official journal. The utility shall pay the cost of publication.

(b) The utility shall make the application available on the utility's website.

(c) The provisions of this section are mandatory. Nonetheless, compliance with the provisions of this section by a utility shall not be deemed a procedural prerequisite to the consideration or final disposition of any application filed under this article. No deficiency in the language of any cover sheet, advertisement or summary required by this section shall create a right in favor of any person to delay the progress of any proceeding initiated by an application filed under this article, nor shall any such

deficiency create a basis for the invalidation or setting aside of any order issued by the council to dispose of the proceeding.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-55. Technical filing requirements.

Each application for a change in rates or service under this division shall satisfy the requirements enumerated in this section. Specifications for these requirements can be found in the URM available on the council's website.

(a) General utility data:
  (1) Charter or other business organization document.
  (2) Most recent balance sheet.
  (3) Utility property.
  (4) Retained earnings analysis.
  (5) Construction program statement.

(b) Revenue related data.

(c) Rate-base related data.

(d) Income statement data.

(e) Data related to the cost of capital.

(f) Financial statements and statistical data.

(g) Data related to cost of service.

(h) Allocation of affiliate costs.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Subdivision III. Formula Rate Plans

Sec. 158-56. Purpose.

The formula rate plan ("FRP") is an intermediary mechanism by which the utility can implement rate adjustments more frequently under council review based on a predetermined formula during the period between utility rate change application filings.
(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-57. Formula rate plans.

As part of a general rate case, the council may approve a request from a utility to implement a FRP in connection with setting new rates for the requesting utility. Subject to the council's approval, a procedure to conduct the FRP shall be included in the utility's electric or gas formula rate plan rider schedule as applicable.

(a) *Procedural schedule.* The procedural schedule governing proceedings related to formula rate plans, including deadlines for filing the evaluation report and proposed rate adjustments and for the review period, shall be determined as part of the rate case and included in the utility's electric or gas formula rate plan rider schedule approved by the council.

(b) *Procedural schedule amendment.* When applicable and for good cause shown and as required by the circumstances of the proceedings, the council or an administrative hearing officer may change or amend the dates established in the schedule set.

(c) *Deficiencies in applications.* In the event of one or more disputes regarding deficiencies in an evaluation report, the dispute may be referred to a hearing officer for an administrative hearing and a subsequent decision by the council.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 5. GENERATION RESOURCE PROGRAMS

Sec. 158-58. Integrated resource plan.

The integrated resource plan ("IRP") is a triennial process that assesses the energy resources available to meet the electric service needs of the City of New Orleans and ensures that changes in customer demands and environmental conditions are addressed effectively and presented in a final IRP report filed by the utility. The goal of the IRP is to identify the optimal set of resources to meet the current and future electric service needs of the city, at the lowest total cost to customers and utility, in a manner consistent with the public interest and

the council's energy policy goals. The expected combination of costs, reliability, risks, and uncertainty are all considered in this process.

(a) *Procedural overview.* The minimum procedural schedule requirements for an IRP shall be as follows:

(1) Initiating resolution. The council adopts an initiating resolution outlining the IRP process, intervenor and public participation, policy objectives, procedural schedule, and any other matters deemed necessary by the council. The IRP process shall include an opportunity for intervenors to participate in the concurrent development of inputs and assumptions for the major components of the IRP in collaboration with the utility within the confines of the IRP timeline and procedural schedule.

(2) Public meetings. CURO shall schedule at least three public engagement meetings. The meetings will be advertised at least 30 days prior to the public technical conferences. A description of the meetings to be scheduled are as follows:

A. *Public meeting 1:* An initial meeting that describes the IRP process including the purpose of the IRP and procedural timelines.

B. *Public meeting 2:* The utility presents its IRP as filed.

C. *Public meeting 3:* Dedicated to public comment on the utility's IRP report.

(3) Technical meetings. CURO shall schedule at least four technical meetings in which parties will be able to discuss the major IRP components, including present inputs and assumptions, provide comments, and attempt to reach consensus.

(4) Additional information related to this division is contained in the IRP rules section of the URM.

(b) *Policy objectives for IRP consideration.* In addition to the analysis components described above, the IRP incorporates policy objectives as determined by the council including, but not limited to:

(1) The renewable and clean portfolio standard ("RCPS") program. To pursue reductions to carbon emissions, improve the health and quality of life of the citizens of New Orleans, and to reduce the city's impact on climate change, compliance with the council's RCPS should be incorporated into the planning strategy reflecting known utility regulatory policy goals of the council.

(2) Energy Smart Program kW and kWh reduction goals. Upon the conclusion of the utility's IRP report filing, the utility should include, for evaluation by CURO, council advisors, and intervenors, Energy Smart Program goals of increasing the projected annual kWh savings at a rate equal to a percentage of kWh sales and reducing the utility system peak load.

(3) Transmission and distribution planning. Transmission and distribution planning should be more fully integrated into the IRP process to ensure that transmission and distribution solutions are considered as alternatives to supply-side and demand-side resources are evaluated, and that any reliability concerns and customer-owned distributed energy resources are addressed.

(4) Optimization software. To ensure that demand-side resources are compared equally with supply-side resources in all IRPs, all supply-side and demand-side resource alternatives should be made avail-

able to the utility's select optimization engine concurrently such that the optimization software can choose an optimal combination of resources.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-59. Authority to construct or implement resource options.

Any utility proposing to either construct or acquire an interest in a generation or transmission facility or implement a full-scale demand-side program, the rate base value of which exceeds two percent of the rate making value of the utility's property, or enter into a long-term firm power purchase contract, the present value of the fixed cost of which exceeds two percent of the rate making value of the utility's property, shall file an application and receive council approval for authority prior to taking such action.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-60. Renewable and clean portfolio standard.

The goal of the renewable and clean portfolio standard ("RCPS") as established by the council requires the electric utility to reach "net-zero" emissions in its generation facilities in 2040 and to eliminate the use of all carbon-emitting generation resources by 2050. In addition, RCPS seeks to ensure that the city has a safe and reliable power supply at a reasonable cost while retaining as much flexibility as possible to employ a wide range of currently known and yet to be developed zero carbon-emissions energy technologies.

(a) *Periodic review.* The council's RCPS rules and procedures are set forth more fully in the URM and are formulated to ensure that the RCPS continues to meet the council's review process in the RCPS rules at least every five years. Such review shall consider a wide array of relevant factors, including, but not limited to:

(1) Progress made toward ultimate and interim goals.

(2) Developments in climate science.

(3) Impacts on customers.

(4) Technological developments, market developments, and progress on actual emissions reductions of the utility's portfolio.

At the conclusion of each such review, the council will decide whether the RCPS remains appropriate for the city or whether it requires modification. Any modification may be made by resolution by the council revising, changing, or updating the RCPS rules to implement the findings and conclusions of the council's periodic review.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-61. Community solar program.

(a) *Overview.* The council's community solar program ("CSP") provides the method by which subscribing customers may utilize large-scale solar facilities to offset their energy usage. The rules governing CSP are detailed in the URM.

(b) *Policy objectives and enforcement.* The CSP is intended to provide access to the benefits of solar generating facilities to customers, especially those who otherwise would not be able to utilize these facilities.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

DIVISION 6. MERGERS, SALES, AND ACQUISITIONS

Sec. 158-62. In general.

In addition to the rules of practice and procedure for regulatory proceedings set forth in this article, the procedures set out in this division shall apply to proceedings initiated in connection with mergers, sales, and acquisitions of utilities regulated by the council.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-63. Procedural overview.

Each merger, sale, and acquisition shall commence with an initiating resolution establishing the procedural schedule, policy objectives, and any other matters deemed necessary by the council.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Sec. 158-64. Minimum filing requirements.

In determining whether a merger, sale, or acquisition is in the best interest of the ratepayers, the council will review the following and decide based on a set of enumerated factors. As such, in addition to the requirements set forth above in Article II, a utility requesting approval of a merger, sale, or acquisition, shall address each of the elements listed below in its request:

(a) whether the transfer is in the public interest;

(b) whether the purchaser is ready, willing, and able to continue providing safe, reliable, and adequate service to the utility's ratepayers;

(c) whether the transfer will maintain or improve the financial condition of the resulting utility;

(d) whether the proposed transfer will maintain or improve the quality of service to utility ratepayers;

(e) whether the transfer will provide net benefits to ratepayers in both the short and long term as well as provide a ratemaking method that will ensure — to the fullest extent possible —that the ratepayers will receive the forecasted short and long term benefit;

(f) whether the transfer will adversely affect competition;

(g) whether the transfer will maintain or improve the management of the resulting utility doing business in the city;

(h) whether the transfer will be fair and reasonable to the affected utility employees;

(i) whether the transfer would be fair and reasonable to the majority of all affected utility shareholders;

(j) whether the transfer will be beneficial on an overall basis to city and local economies and to the communities in the area served by the utility;

(k) whether the transfer will preserve the jurisdiction of the council and the ability of the council to effectively regulate and audit the utility's operations in the city;

(l) whether conditions are necessary to prevent adverse consequences which may result from the transfer;

(m) the history of compliance or noncompliance that the proposed acquiring entity or principals or affiliates have had with regulatory authorities in this city or other jurisdictions;

(n) whether the acquiring entity, persons, or corporations have the financial ability to operate the utility system and maintain or upgrade the quality of the physical system;

(o) whether any repairs and/or improvements are required and the ability of the acquiring entity to make those repairs and/or improvements;

(p) the ability of the acquiring entity to obtain all necessary health, safety and other permits;

(q) the manner of financing the transfer and any impact that may have on encumbering the assets of the entity and the potential impact on rates; and

(r) whether there are any conditions which should be attached to the proposed acquisition.

(M.C.S., Ord. No. 30645, § 1, 4-23-26)

Chapter 159

SEWERAGE AND WATER BOARD OF NEW ORLEANS*

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***Editor's note—**M.C.S., Ord. No. 30724, § 1, adopted August 6, 2026, amended Ch. 159 in its entirety to read as herein set out. Former Ch. 159, §§ 159-1—159-6, pertained to similar subject matter, and derived from M.C.S., Ord. No. 30050, § 1, adopted Sept. 5, 2024.

ARTICLE I. IN GENERAL

Sec. 159-1. Purpose.

The purpose and intent of this chapter is to provide a uniform and comprehensive set of regulations and standards for the Sewerage and Water Board of New Orleans.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-2. Definitions.

The following words, terms, phrases, and their derivations shall have the meanings given herein. Capitalized terms used herein and not otherwise defined shall have the meanings ascribed thereto throughout this Code of the City of New Orleans. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The word "shall" is always mandatory and not merely directory. The word "including" is not exclusive and shall be construed as "including but not limited to".

Actual bill means a SWBNO bill on which the billed amount is the result of a physical reading of the customer's meter for the billing cycle.

Bill in dispute or *disputed bill* means a SWBNO bill in which the Customer has contested the amount due to SWBNO and as further defined in section 159-12.

Billing cycle means an interval of not less than 25 days nor more than 35 days between successive billing dates.

Collections or *collection agency* means an entity secured to recover unpaid amounts related to a customer's account.

Commercial customer means any customer that is not a residential customer.

Customer means a person or entity with a SWBNO account.

Extreme weather conditions means a period during which the following conditions exist: (1) the temperature for the day is forecast to remain at or below 40 degrees Fahrenheit or the nighttime temperature is forecast to be 32 degrees Fahrenheit or lower, (2) the high temperature for the day is forecast to be 100 degrees Fahrenheit or higher, or (3) the National Weather Service issues an excessive heat warning or heat advisory for Orleans Parish for a day or portion of a day.

Fixed rate means a monthly bill amount calculated as the customer's average, undisputed monthly actual bill amount for the previous calendar year.

Residential customer means a metered customer who uses their premise as a home or dwelling and has less than three living units supplied water.

Service disconnect means deliberately suspending water or sewer services to a customer. This does not include interruptions in service caused by necessary repairs or maintenance.

Sewerage and Water Board of New Orleans or *SWBNO* means the organization established by City Charter section 5-301 and La. Rev. Stat. § 33:4071 responsible for the public water, sewer, and drainage systems of the City of New Orleans.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-3. Board of directors.

(a) *Role and responsibilities.* Subject to the rules and regulations established by the city council, the board of directors are responsible for reviewing actions and utility operations of SWBNO; administering procurement and approving agreements between SWBNO and other entities, except those subject to approval by the city council; selection or removal of the executive director and general superintendent subject to approval by the city council; and other actions necessary for the functionality of the organization. Nothing in this section delegates powers held by the city council or authorizes the board of directors to enact bylaws or to act in any manner inconsistent with the city council's authority as described in this chapter and in statute.

(b) *Composition.* The board of directors for SWBNO shall be composed as set forth in Home Rule Charter section 5-301, subject to confirmation by the council. Any ex officio member of the board may designate a representative to attend

and participate in any meeting of the board or its committees. A designee shall have all rights and powers granted to the ex officio member, including the right to vote and to be counted for purposes of a quorum.

(c) *Officers.* The board shall elect by a majority vote a president and president pro tempore from its non-ex-officio members.

(d) *Term.* The term for the directors shall be four years. A director appointed to fill a vacancy on the board shall serve for the remainder of the unexpired term. The term limit for a director shall be two full consecutive terms. However, a director appointed to fill a vacancy shall be permitted to serve the remainder of the initial term and two full consecutive terms.

(e) *Removal.* Members appointed to the board of directors shall serve at the pleasure of the mayor and may be removed by the mayor via written letter sent to the member with copy to the council, SWBNO executive director, and the board of directors.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-4. Meetings of the board of directors.

The board of directors shall meet not less than quarterly at a location within the city, accessible to the public. All board meetings and meetings of its committees shall be conducted in accordance with Open Meetings Law and broadcast live via the internet with recordings made available on the SWBNO website.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-5. Regulation by the city council.

In accordance with its authority to regulate and oversee SWBNO and its board of directors, including the power to mandate council approval of certain SWBNO matters, the city council shall approve the following in lieu of the board:

(a) Billing policies and procedures;

(b) Rates, fees, and charges imposed by SWBNO;

(c) Debt issuance, borrowing, and financial obligations;

(d) Finance, operations, and governance policies, including review and approval of operating budgets, capital budgets, and the capital improvement plan;

(e) Professional service agreements for consulting services including those related to government relations, legal services, and lobbying; and

(f) Confirmation of the executive director and general superintendent, including any employment agreement between SWBNO and its executive director or general superintendent and any amendment or extension thereof.

The council may direct representatives of SWBNO or the board of directors to appear at any meeting of the council or council committee. If a council approval requirement imposed herein could impair an existing obligation of the board or conflict with applicable state law in a particular case or instance, the council may, by motion, waive the provisions of this section as necessary to avoid the impairment or conflict.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-6. Permitting.

SWBNO is required to receive the proper permits and pay the associated fees prior to commencing work in the public right-of-way. Pursuant to section 146-439, the director of the department of public works may issue SWBNO a blanket permit.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-7. Reporting.

Pursuant to Revised Statutes Sections 33:4091, 33:4159.2, and the council's regulatory authority and oversight responsibilities, SWBNO is directed to include the following information in its quarterly operations reports:

(a) Status of drainage pump stations and drainage system capacity;

(b) Status of water and sewer system operations;

(c) Status of power and related facilities and a description of unplanned electric service disruptions during the reporting period;

(d) Progress on major infrastructure repairs and high-priority capital improvement projects outlined in the annual capital budget;

(e) Description of the cause, conditions, and corrective actions in response to a triggering event detailed in section 159-8 or other system failures since the previous report;

(f) Upcoming infrastructure milestones or major maintenance activities;

(g) A procurement forecast identifying all capital projects anticipated for advertisement during the subsequent six months, including the anticipated advertisement date, procurement method, engineer's estimate or anticipated contract value, funding source, current design completion status, permitting status, and any anticipated procurement, regulatory, or funding risks that may materially impact the advertisement or award schedule;

(h) Updates regarding compliance with the federal consent decree governing sewer and drainage system improvements;

(i) Reports of sewer discharges, sanitary sewer overflows, or other environmental incidents as well as findings from investigations related to sewer discharges or environmental incidents and the corrective actions being taken;

(j) Reports submitted to the Louisiana Department of Health, Louisiana Department of Environmental Quality, the Environmental Protection Agency, and any other agency similarly tasked with ensuring the safety of drinking water and water quality in Orleans Parish; and

(k) Industry standards for best practices regarding safe levels for contaminants in canals, the corresponding levels for canals in the city, and the schedule of water testing for canals;

(l) Operational barriers, infrastructure challenges, funding constraints, or regulatory issues impacting system performance or project timelines; and

(1) Infrastructure challenges shall include, but not be limited to, project delays resulting in an anticipated or actual schedule impact of 30 days or more, major utility conflicts, contractor performance issues, material budget overruns or funding shortfalls affecting project delivery, significant change orders or claims, critical equipment or material procurement delays, and other conditions that materially affect the timely completion, cost, or performance of capital projects or utility infrastructure.

(m) Actions or coordination needed from the city council, administration, or partner agencies to help resolve those challenges.

The city council may direct SWBNO to provide any information described in the section at a greater frequency and may require any additional information necessary to fulfill its regulatory responsibilities.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-8. Emergency notifications.

In the event of a condition that creates a risk to public health and safety, SWBNO is required to notify all impacted customers, councilmembers, the mayor, designated council and administration staff, and local news media. Such conditions include but are not limited to:

(a) Unplanned disruption of water service impacting an estimated 50 or more customers, any daycare, school, healthcare facility, apartment complex, or assisted living facility;

(b) Water main break resulting in a drop in water pressure resulting in a boil water advisory;

(c) Major drainage pump failure during a rain event that results in diminished capacity to provide drainage services;

(d) Electric service disruption or failure to any SWBNO facility, including pumping station or substation, that results in a diminished ability to provide water, drainage, or sewer services;

(e) Any issue with a component of water treatment facilities that could impact SWBNO's ability to provide potable water; or

(f) Catastrophic failure, defined as an impact to SWBNO equipment or assets that result in diminished level of service to more than 10,000 customers or an emergency declaration by the SWBNO executive director or general superintendent.

In accordance with protocols established by the office of coordination and emergency management (NOCEM), SWBNO shall notify the NOCEM duty officer as soon as practicable that an event described in this section has occurred.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-9. Emergency preparedness plan.

No later than May 1 of each year, SWBNO shall submit its emergency preparedness plan to the director of the NOCEM, the director of the department of public works, and the city council. The plan shall include a designated point of contact for the administration and the city council, a list of personnel designated as essential and required to report to work during a declared emergency, a detailed communication plan detailing notification strategies to comply with section 159-8, a report detailing the training, reporting locations for personnel, and protocols for inspecting equipment. SWBNO shall make any modifications deemed necessary by the directors or the council.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

ARTICLE II. CUSTOMER PROTECTIONS AND BILLING

DIVISION 1. CUSTOMER PROTECTIONS

Sec. 159-10. Customer protections.

Customers shall have the following rights related to the provision of sewer and water utility services. Prohibitions to disconnect service do not extend to suspension of service that is necessary to perform a critical repair.

(a) The right to safe and reliable water service.

(b) The right to opt-in to paying a fixed monthly rate for water services, which shall be determined by calculating the average monthly cost of the customer's service based on his recent water readings.

(c) The right to dispute any amount SWBNO asserts is owed, including the right to an investigation, arbitration and appeal, as described in this chapter.

(d) The right to not have late fees charged on the disputed amount during the bill dispute process described in this chapter.

(e) The right to receive written notice from SWBNO at least ten days, exclusive of weekends and holidays, prior to the disconnection of service due to nonpayment. During the ten-day period, the Customer may either make payment or request a deferred payment arrangement.

(f) The right to not have service disconnected during extreme weather conditions. If the National Weather Service issues an excessive heat warning or heat advisory, SWBNO is prohibited from disconnecting service for the entire day, even if the excessive heat warning or heat advisory is lifted during the day.

(g) The right not to have service disconnected on a weekend, federal, state, or local holiday, day before a federal, state, or local holiday, or Friday after 1:00 p.m.

(h) The right to have same-day service to restore service if the customer pays, or causes to be paid, the outstanding balance or an alternative amount agreed to by the customer and SWBNO before 4:00 p.m.

(i) The right to have a meter that is regularly maintained and accurate by SWBNO.

(j) The right to receive notice from SWBNO when there is a scheduled repair that may disrupt service to customers. SWBNO shall notify customers no later than five days, exclusive of weekends and holidays, prior to the scheduled repair.

(k) The right to have any outstanding balance due discharged upon the death of the account holder.

(l) The right not to have interest, fees, or penalties assessed on an amount in dispute while a customer has a bill in dispute.

(m) The right not to have their account referred to collections while the customer has a bill in dispute.

(n) The right not to have service disconnected while the customer has a bill in dispute.

(M.C.S., Ord. No. 30724, § 1, 8-6-26)

DIVISION 2. BILLING

Sec. 159-11. Billing procedures.

(a) *Meter readings:*

(1) SWBNO shall conduct meter readings monthly as necessary to bill customers in accordance with the prescribed billing cycles.

(2) When SWBNO conducts a meter reading, the meter reader shall take a picture of the meter at the time of the reading. Such picture shall include the date and time stamp of the reading as well as clear images of the numbers indicating water usage and the meter number. SWBNO shall include a copy of the picture with the customer's bill.

(b) *Monthly billing:*

(1) SWBNO shall bill customers in accordance with monthly billing cycles. Should SWBNO fail to send a customer a monthly bill, after three consecutive billing cycles, SWBNO forfeits its right to collect payment for the unbilled amount.

(2) In the event a customer receives a billed amount 20 percent higher than the customer's last actual bill, SWBNO shall allow the customer to enter into a deferred payment arrangement for the difference in billed amounts through which SWBNO will collect the balance due over a period not to exceed 24 billing cycles.

(c) *Fixed rate billing:*

(1) On all bills for residential customers, SWBNO shall include the method by which the residential customer may elect to receive fixed rate bills, including via email, phone call, in person at a SWBNO customer service center, or postal service.

(2) At any time, a residential customer may opt-in to fixed rate billing by utilizing any of the methods provided by SWBNO. If a customer opts-in to fixed rate billing, SWBNO shall take all necessary steps to ensure that the customer's bills reflect the fixed rate no later than the second billing cycle after the customer submits their request.

(d) *Estimated billing.* SWBNO is prohibited from sending estimated bills.

(e) *Third-party manager.* The council has the right to select a third party to oversee, supplement, manage, or otherwise participate in the billing procedures described herein. The third party shall be selected in accordance with all applicable procurement policies and laws.

(M.C.S., Ord. No. 30724, § 1, 8-6-26)

DIVISION 3. CUSTOMER COMPLAINTS

Sec. 159-12. Bill dispute process.

(a) The city council shall designate a person or firm to respond to customer complaints regarding monthly bills (referred to herein as "firm"). The firm shall operate under the supervision of the council utilities regulatory office.

(b) A customer who disagrees with the billed amount due may dispute a bill according to the following process:

(1) *Contact the firm.* The customer shall have 30 days from receipt of a monthly bill to contact the firm to dispute a bill. The firm shall either have access to emails, phone calls, or post received by SWBNO or shall establish an email address, phone number, or mailing address to receive customer complaints. The contact information shall be published on the SWBNO webpage and on customer bills.

(2) *Complaint review.* After receiving the customer's complaint, the firm shall review the customer's disputed bill and any relevant information, including but not limited to billing history, past meter readings, maintenance records, etc.

A. SWBNO shall take all steps necessary to ensure that the firm has access to all systems necessary to review the relevant information.

B. The firm shall take all necessary steps to protect a customer's personal information.

C. The firm shall provide a list of all customers who have a complaint under review to SWBNO with copy to the council utilities regulatory office on a weekly basis. All listed customers shall be deemed to have a bill in dispute.

(3) *Bill adjustments.* The firm shall have the authority to make any necessary adjustments to a customer's billed amount. The firm shall submit its decision regarding any adjustments to SWBNO and the customer within two weeks of a customer submitting their complaint. If the firm requires additional time to make a decision regarding a customer's complaint, they shall inform the customer and SWBNO in writing.

A. In the event the firm finds that an error in the billed amount is the result of a malfunctioning water meter, the firm shall offer the customer the opportunity to opt-in to fixed rate billing until the meter can be replaced.

B. The firm shall submit a monthly report to the council summarizing the number of complaints reviewed and the total amount of adjustments ordered.

(4) *Arbitration.* In the event the customer elects to dispute the firm's decision, they may submit a request for arbitration within 14 days, exclusive of weekends and holidays, of receipt of the firm's decision.

(c) Bill in dispute. After contacting the firm to dispute a bill, a customer is deemed to have a bill in dispute until either:

(1) 14 days, exclusive of weekends and holidays, have lapsed since the customer received the firm's decision; or

(2) 14 days, exclusive of weekends and holidays, have lapsed since the customer and SWBNO received the arbiter's decision.

(d) Payment during dispute process. During the bill dispute process, SWBNO shall bill the customer as follows:

(1) Prior to the firm's decision regarding an adjustment, the customer's monthly bill shall be the fixed bill rate.

(2) After the firm renders a decision, but prior to a decision for the arbiter, SWBNO shall bill the customer in accordance with the adjustment ordered by the firm.

(3) Upon receipt of the arbiter's decision, SWBNO shall make the ordered adjustments within two billing cycles.

(e) While a customer has a bill in dispute, SWBNO shall not assess interest, fees, or penalties on the amount in dispute, submit a customer's account to a collection agency, or execute a service disconnect.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-13. Arbitration.

(a) *Arbitration team.* The legislative auditor and the New Orleans inspector general shall, acting together, appoint the two arbiters for each councilmanic district, subject to confirmation by the council. The arbiters shall be divided into two teams: the residential arbitration team and the commercial arbitration team.

(1) One arbiter from each district shall be appointed to serve on the residential arbitration team. The other arbiter from the district shall be appointed to serve on the commercial arbitration team.

(b) *Arbitration hearings.* Each arbitration team shall hold at least two regularly scheduled appointment days per month in each councilmanic district at a public facility, with an option for parties to participate virtually. At least one member of the team shall meet with each customer and a representative from SWBNO to evaluate any evidence related to the disputed bill(s).

(c) *Arbitration decision.* Based on a review of the materials and arguments presented, and in consultation with other members of the arbitration team as needed, the arbiter shall determine whether the bill amount ordered by the firm is appropriate. The arbitration team shall communicate all decisions to SWBNO and the customer no later than the last day of the month after the arbitration is held.

(d) *Standard of review.* Arbiters shall review evidence utilizing a clearly erroneous standard of review, meaning the arbiters shall only vacate the firm's decision if, based on a review of the record and evidence available, a mistake has been made.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

ARTICLE III. BUDGET AND CAPITAL IMPROVEMENT PLAN

DIVISION 1. BUDGET

Sec. 159-14. Operating and capital budgets.

Annually and in accordance with the council's rules and directives, SWBNO shall submit and present to the city council its proposed operating budget. The capital and operating budgets shall be prepared in consultation with the city's chief administrative office. The operating budget shall include any related SWBNO revenues and expenditures. Additionally, the operating budget shall include details related to satisfying financial obligations to the city, including expenses related to utility regulation as described in section 3-130 of the Home Rule Charter. The capital budget shall be prepared and reflect the annual expenditures of projects, programs, and improvements as detailed in the capital improvement plan.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-15. Budget format.

SWBNO shall submit its budget template and presentation in accordance with the council's rules and procedures.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-16. Budget approval process.

SWBNO shall submit its budgets to the council in the appropriate format no later than October 1 of each year. SWBNO shall submit its budgets and presentation as directed by the council. The council shall act to approve or amend the operating and capital budgets for SWBNO no later than December 1. The approved budgets shall be sufficient to ensure SWBNO's ability to provide safe and reliable water, sewer, and drainage services.
(M.C.S., Ord. No. 30724, § 1, 8-6-26)

DIVISION 2. CAPITAL IMPROVEMENT PLAN

Sec. 159-17. Capital improvement plan.

SWBNO shall develop a capital improvement plan annually. The capital improvement plan shall include projects and programs designed to protect, enhance, and repair the water, sewer and drainage infrastructure systems. Beginning in 2027, the capital improvement plan shall include a five-year plan of projects and programs. SWBNO shall develop the capital improvement plan in consultation with the department of

public works and any other office or department designated by the mayor so that proposed capital investments are planned and prioritized in a manner consistent with the city's adopted Climate Action Plan, resilience strategies, sustainability objectives, and other related initiatives. The capital improvement plan shall include but not be limited to the following:

(a) Current projects. A list of projects in process of construction or acquisition, their present status, the amounts spent or estimated to be spent each year over the planned five years, a schedule including the work required to complete the project, the funding source(s) for each project, the amount and funding source(s) required to complete each project, method of financing, estimated operations and maintenance costs, any budgetary shortfall, and a justification of the project, including social, geographic, economic, engineering, and public welfare reasons;

(b) Planned projects. A list of proposed projects including a schedule, funding source(s), method of financing, the estimated budget to be spent each year over the planned five years, the estimated operation and maintenance costs, the proposed dates of initiation and completion of the project, and a justification of the project, including social, geographic, economic, engineering, and public welfare reasons; and

(c) Actions required or included in the scope of a project which requires coordination with or completion by an outside entity, including any state or city department, office, or agency.

(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-18. Public engagement.

For the five-year capital plan, SWBNO shall conduct not less than five public meetings, one per councilmanic district, to solicit feedback on priorities and to educate the public on proposed projects and priorities. SWBNO shall coordinate with the district councilmember to schedule each public meeting and notify the designated representatives of the administration the date, times, and locations of each public meeting. SWBNO shall submit to the council a summary of the feedback received no more than 48 hours after each public meeting.

(M.C.S., Ord. No. 30724, § 1, 8-6-26)

Sec. 159-19. Approval.

SWBNO shall submit its capital improvement plan to the council as directed. The city council shall approve or amend the plan submitted via motion. Prior to acting, the council shall conduct at least one public meeting before the council or a council committee to consider the proposed plan and receive public comment.

(M.C.S., Ord. No. 30724, § 1, 8-6-26)

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VEHICLES FOR HIRE*

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***Cross references—**Public transportation at the New Orleans International Airport, § 22-81 et seq.; franchises, § 30-36 et seq.; passengers to relinquish seats to accommodate wheel chairs for disabled persons when requested by the driver, § 122-11; traffic and vehicles, ch. 154.

Sec. 162-98. Provisions for hearing and appeal of denial or revocation of driver's permit.
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ARTICLE I. IN GENERAL

Sec. 162-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessible taxicab (AT) means any vehicle that accommodates a passenger using a wheelchair or other personal mobility device who needs a ramp or lift to enter or exit the vehicle. Such vehicle must comply with the provisions in 49 CFR Part 38.1—38.39. Such vehicle shall be of a single distinctive color as set forth by the ground transportation bureau and operate at rates-per-mile or on a waiting-time basis, or both. ATs are identified as a minivan or similar vehicle specially adapted with rear or side access ramps for wheelchair users, which is also equipped with a taximeter, and which prioritizes requests for service from people with disabilities and/or wheelchair users for purposes of transportation over and along the public streets, not over a defined route but, as to the route and destination, in accordance with and under the direction of the passenger or person hiring such vehicle.

Airport contract limousine means any vehicle operated exclusively by a ground transportation company under the terms of a written contract with the city, through the city aviation board, for the purpose of providing transportation to and from the New Orleans International Airport (Moisant Airport).

Airport delivery limousine service means any limousine except an airport contract limousine.

Alternative fuel vehicle means any vehicle as so defined by the Environmental Protection Agency (EPA) and includes vehicles powered by natural gas, electricity, hydrogen, bio-diesel, or propane.

Certificate of public necessity and convenience, also known as a *CPNC,* is issued by the director of the department of public works permitting an individual or company to engage in a particular type of for hire vehicular transportation.

Charter vehicle means any for-hire vehicle for which the passengers have control over the routes taken and/or the destination visited.

Commuter shuttle vehicle means any vehicle operated by or on behalf of individuals or a commercial entity in such a manner so that a passenger of such vehicle is or is not charged a fee for provision of transportation, or is allowed to pay for a portion of the fuel and other operating expenses for such a trip.

Courtesy transportation or *courtesy vehicles in the tour industry* means any motor vehicle designed or used for the transportation of passengers in the tour industry where no direct fee is charged to the passengers.

Courtesy vehicle means any vehicle operated by or on behalf of a commercial entity in such a manner that a passenger of such a vehicle is not charged a fee for the provision of transportation.

Disabled friendly taxi or *DFT* means any motor vehicle built on a truck type frame or body and which is equipped with an automatic lift for entry/exit and multiple tie-downs for a secure ride. These vehicles shall be used for the transportation of physically challenged persons using mobile devices and persons accompanying such physically handicapped persons over a route or to a destination that is controlled by the passenger.

Driver includes every person in actual operation of a vehicle licensed for operation as a for-hire vehicle under this chapter, whether as owner or agent, bailiff, lessee, servant or employee of the owner.

Driver's permit is the license granted by the department of public works authorizing an individual to drive a vehicle that bears a valid certificate of public necessity and convenience number.

For-hire vehicle means any vehicle designed or used for the transportation of passengers for hire, the charges for the use of which are determined by agreement, by the length of time the vehicle is engaged, or by distance traveled, or a permissible combination thereof as provided herein.

For-hire vehicle inspection station means the location of the required examination of the vehicles to be operated as for-hire vehicles to determine that such vehicles are safe and in satisfactory condition.

Local general manager is the highest-ranking local officer of a hotel or overnight lodging entity located in the city and is the person responsible for its day-to-day operations.

Narcotic drugs means coca leaves, opium, cannabis, marijuana, isonipecaine and every synthetic substance known to have narcotic action and including all drugs controlled under R.S. 40:961 et seq., the Uniform Controlled Dangerous Substances Law, being further defined as follows:

(1) *Barbiturate* or *barbiturates* includes all hypnotic or somnifacient drugs, whether or not derivatives of barbituric acid.

(2) *Barbituric acid derivative* means each of the salts and derivatives of barbituric acid, also known as malonyl urea, and derivatives, compounds, mixtures or preparations thereof.

(3) *Cannabis* includes all parts of the plant Cannabis Sativa L., whether growing or not; the seeds thereof; the resin extracted from any part of such plant; and every compound, manufacture, salt, derivative, mixture or preparation of such plant, its seeds or resin; but shall not include the mature stalks of such plant, fiber produced from such stalks, oil or cake made from the seeds of such plant, or any other compound, manufacture, derivative, mixture, or preparation of such mature stalks (except the resin extracted therefrom), fiber, oil or cake or the sterilized seed of such plant which is capable of germination.

(4) *Central nervous system stimulant* means amphetamine and desocyephedrine, and any derivative, compound, mixture or preparation thereof.

(5) *Coca leaves* includes cocaines and any compound, manufacture, salt, derivative, mixture, or preparation of coca leaves, except derivatives of coca leaves which do not contain cocaine, ecgonine, or substances from which cocaine or ecgonine may be synthesized or made.

(6) *Isonipecaine* means the substance identified chemically as 1-methyo-4-phenylpiperidene-4-carboxylic acid ethyl ester, or any sale thereof by whatever trade name identified.

(7) *Marijuana* includes the plant known as marijuana, or any of its derivatives, either dried, or in any cigarettes, tobacco, other smoking or chewing or snuffing article, or in any other form whatsoever, which either in whole or in part contains, either in the dried form or otherwise any quantity of the Mexican plant known as marijuana.

(8) *Opium* includes morphine, codeine, and heroin, and any compound, manufacture, salt, derivative, mixture, or preparation of opium, but does not include apomorphine or any of its salts.

(9) *Synthetic substance known to have narcotic action* includes, but is not limited to, such substances as dilaudid, methodon and similar substances.

(10) *Use,* in relation to the drugs described herein, applies to any person who uses one or more of the narcotic drugs or barbituric acid derivatives or central nervous system stimulants to any extent with or without medical need, authority or prescription.

Owner means any person who is the actual legally registered owner of the vehicles defined and described in this chapter.

Per capita fixed-route continuous-loop sightseeing tour vehicle is a tour vehicle within a fleet of no less than six vehicles that seat no less than 30 passengers on a vehicle. Such vehicles operate on a fixed route with a continuous loop allowing multiple stops and points of boarding and exiting with passengers able to utilize any vehicle operating on the loop. During hours of operation, at least three buses shall be operating on the fixed route.

Person means any individual, corporation, partnership, company or association owning, driving, controlling or operating any for-hire vehicle as defined in this article and regulated by this chapter.

Road bus means any motor vehicle with a seating capacity in excess of 16 passengers, used for the purpose of transporting one or more persons for hire over a route or to a destination that is controlled by the passenger.

School bus means any motor vehicle with a seating capacity in excess of ten passengers built and primarily used for the purpose of transporting preprimary, primary, or secondary students to or from school or related events.

Street means any public street, avenue, road, boulevard, alley, lane, highway, sidewalk, public park, airport, railroad station or depot, steamship landing, ferry landing, viaduct or other public place under control of the city and established by it for the use of vehicles and not otherwise controlled by law or ordinance. It shall also mean all vehicular roads, driveways, or areas outside of and adjacent to or in all railroad stations, steamship, steamboat or ferry landings and bus stations owned by the city, which are used regularly or may be so used by for-hire vehicles to pick up and discharge passengers which places shall hereafter be and remain open to and used by all such duly licensed vehicles, without charge and without discrimination as to the ownership of such vehicles or the licensed operators thereof, and subject to the other provisions of this chapter.

Taxicab or *taxi* means any motor vehicle duly licensed to be operated as such by the department of public works which is used for the transportation of passengers or packages for hire over a route or to a destination that is controlled by the passenger.

Taxicab stand is construed to mean a place where taxicabs are permitted to park as well as to pick up and to discharge passengers.

Taxicab zone means a place designated by the city where taxicabs shall be permitted to pick up and discharge passengers, but not to park.

Taximeter means a mechanical or electronic instrument or device by which the charge for hire is mechanically or electronically calculated either for waiting time, for the distance traveled, or for both, and upon which such charge shall be indicated by means of figures. The taximeter must not be adjusted or programmed in any way to record any charge other than that established by ordinance. The taximeter shall be adjusted or programmed only by meter repair personnel authorized by the department of public works.

Tour bus or *sightseeing bus* means any motor vehicle with a seating capacity of 16 or more passengers used for the purpose of transporting six or more persons on a sightseeing trip to any of the city's points of interest and/or historic buildings, parks or sites.

Tour vehicle means any for hire motor vehicle and/or taxicab used for the purpose of transporting one or more persons on a sightseeing trip to any of the city's points of interest and/or historic buildings, parks, or sites, and for which the route is controlled by the operator. A tour vehicle may be a bus, van, limousine or taxi.

Van means any for hire motor vehicle built on a truck type frame or body with a seating capacity of at least seven but no more than 15 passengers.

The term "tour bus," "tour vehicle," "taxicab," "taxi," "for hire," or "livery car" shall not include any vehicle which is used primarily in the rendition of regular local transit service over a definite and fixed route in accordance with a prescribed schedule operated solely by a governmental agency, local education agency private college or university, or political subdivision of the City of New Orleans or the State of Louisiana.

(Code 1956, §§ 12-1—12-20; M.C.S., Ord. No. 16,479, § 1(12-6.1), 4-21-94; M.C.S., Ord. No. 16,880, § 1(12-2-1), 2-2-95; M.C.S., Ord. No. 17,164, § 1, 9-7-95; M.C.S., Ord. No. 19,260, § 1, 6-3-99; Ord. No. 19,609, § 1, 4-6-00; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24665, § 1, 11-3-11; M.C.S., Ord. No. 24673, § 1, 11-17-11; M.C.S., Ord. No. 24876, § 1, 6-7-12; M.C.S.,

Ord. No. 26003, § 1, 9-4-14; M.C.S., Ord. 27992, §§ 1, 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 30194, § 1, 12-19-24)

Cross reference—Definitions generally, § 1-2.

Sec. 162-2. Applicability.

The provisions of this chapter apply to all for-hire vehicles when such vehicle provides transportation services and/or transportation network company services operated within the jurisdiction of the city, including but not limited to when such vehicles pick up passengers within the geographical limits of the city, or when such provides transportation services and/or transportation network company services between this city and any airport owned and operated by the city although located in a parish other than Orleans Parish.

(Ord. No. 19,594, § 1, 3-16-00; M.C.S., Ord. No. 26339, § 1, 4-9-15)

Sec. 162-3. Reserved.

Editor's note—Section 1, M.C.S., Ord. No. 16,895, adopted Feb. 16, 1995, repealed § 162-3, which pertained to exemptions from provisions of this chapter for interstate carriers and derived from § 12-23 of the 1956 Code.

Sec. 162-4. Corporate officers subject to penal provisions.

Whenever a corporation, partnership or association shall violate any of the penal provisions of this chapter, such violation shall also be deemed to be that of the individual officers, directors, partners or agents of such corporation who had personally authorized, ordered or perpetrated such violation. Any such officer, director, partner or agent shall be punished in the same manner and to the same extent as herein provided for an individual.

(Code 1956, § 12-59)

Sec. 162-5. General or attempted noncompliance; penal provisions.

The noncompliance with any mandatory or prohibitory provision of this chapter shall constitute an offense and a violation of the chapter. Any person charged with a violation of this chapter and found guilty of an offense thereof shall be subject to punishment by a fine and/or imprisonment at the discretion of the judge of municipal court not to exceed the maximum penalty provisions as defined in section 54-25. Any person convicted of an attempt to violate the provisions of this chapter shall be sentenced to not more than one-half the maximum fine and/or imprisonment as defined in section 54-25.

(Code 1956, § 12-60)

Sec. 162-6. Enforcement.

In accordance with section 4-502(2) of the charter, the superintendent of police is hereby authorized to grant enforcement and citation powers to employees of the ground transportation bureau for the purposes of enforcing the provisions of this chapter. Such powers, which may be granted by the superintendent of police, shall be in addition to the normal enforcement and citation powers of the police.

(M.C.S., Ord. No. 28886, § 2, 12-16-21)

Secs. 162-7—162-45. Reserved.

ARTICLE II. ADMINISTRATION*

DIVISION 1. GENERALLY

Sec. 162-46. Administration, enforcement generally.

The department of public works shall be responsible for the administration and enforcement of the provisions of this chapter. The director of the department of public works shall make such administrative regulations as may be necessary to implement or administer the provisions of this chapter.

(Code 1956, §§ 12-22, 12-31; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-47. Bureau created.

There is hereby created a ground transportation bureau, which shall consist of a supervisor appointed by the director of the department of

*__Cross reference—__Administration, ch. 2.

public works and such other employees as may be necessary to carry out the functions and duties of the bureau.
(Code 1956, § 12-32; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 1, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-48. Duties and responsibilities.

(a) It shall be the duty of the department of public works, to see that all applications to own or operate taxicabs or other for hire CPNC licensed vehicles or transportation network company vehicles conform to all requirements established by this article and other articles of this chapter where applicable; and to certify that such requirements have been met; to execute all policies established; and carry out duties as may be assigned from time to time by the director of the department of public works.

(b) It shall be the primary responsibility of the department of public works to enforce all of the provisions of this chapter relative to taxicabs,

other for-hire vehicles, and transportation network companies by instituting appropriate administrative actions and/or filing proper charges against the offender.
(Code 1956, § 12-33; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26339, § 1, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-49. Department to maintain records of CPNCs and TNCs.

(a) A record of the issuance of certificates of public necessity and convenience and driver's permits is to be maintained by the department of public works to be available to the public at all times. The record shall include the names and addresses of the certificate holders or permittees and the number of the certificates or permits. A description of the vehicles, the motor numbers thereof, the trade name of the vehicle (except for horse-drawn vehicles) and a complete list of the certificates or permits issued shall be available to the director of the department of public works by the supervisor of the ground transportation bureau at all times.

(b) A record of the issuance of transportation network company permits is to be maintained by the department of public works to be available to the public at all times. The record shall include the names and addresses of the permittees and the number of transportation network company vehicles associated with each permit. A description of the vehicles, the trade name of the transportation network company and a complete list of the permits issued shall be available to the director of the department of public works by the supervisor of the ground transportation bureau at all times.
(Code 1956, § 12-34; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26339, § 1, 4-9-15; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-50. Police, municipal courts to assist.

All officers and members of the department of police and the municipal and criminal court personnel shall assist the ground transportation bureau or enforcement agents in the necessary performance of their duty when so requested. The superintendent of police shall furnish the taxicab and for hire bureau with a monthly report of all arrests of persons engaged in the taxicab or transportation for hire business. The clerk of the municipal court shall promptly report daily in writing all convictions for violations in such court.
(Code 1956, § 12-35; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-51. Owners/driver to report change of employment of driver.

All owners/drivers of taxicabs or other for-hire vehicles shall notify the ground transportation bureau in writing of the names, addresses and driver's permit numbers of all persons permitted by them by agreement of any nature to drive any such vehicle within five working days after each such occurrence, and they shall also furnish such information in writing to the ground transportation bureau relative to the termination of every driver's employment or agreement within five working days after the termination of such employment or agreement. The date of termination of the driver shall be provided by such notice.
(Code 1956, § 12-48; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-52. Designation of routes.

The director of the department of public works may designate routes over which CPNC vehicles may operate and may prohibit the operation of certain classes of vehicles in specified areas and at specified times upon the approval of the city council.
(Code 1956, § 12-76; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-53. Unlawful use of vehicles for hire by businesses and their employees.

(a) It shall be unlawful for any agent or employee of any entity required to have an occupation tax license pursuant to section 150-951, et seq., to direct patrons to any unlicensed and/or un-permitted vehicle for hire, or for any

entity required to have an occupation tax license pursuant to section 150-951, et seq., to knowingly permit or allow any of its agents or employees to direct patrons to any unlicensed and/or un-permitted vehicle for hire.

(b) In addition, it shall be unlawful for any agent or employee of any entity required to have an occupation tax license pursuant to section 150-951, et seq., to allow a vehicle, which is not pre-arranged, to stage. For purposes of this section, stage shall mean to stop, park, or otherwise place a vehicle for hire, other than a taxicab, in the loading or curbside area of any business required to have an occupation tax license pursuant to section 150-951, et seq., when the vehicle is not engaged in a pre-arranged round trip or one-way fare. Prearrangement, as required by this subsection, shall be via a communicated contract prior to pick-up, evidenced by a properly completed trip sheet. The trip sheet shall include, but not be limited to, the guest's name, number of passengers to be picked up, time of pick up, final destination, hotel room number, if applicable, and a valid contact phone number. Vehicle for hire operators shall make said trip sheets available for verification by employees of the pickup location, as well as all law enforcement agencies. In addition, said trip sheets shall be completed prior to arrival at the pickup location.

(c) It shall be unlawful for any agent or employee of any entity required to have an occupational tax license pursuant to [section] 150-951, et seq., to request, demand, or accept any gratuity from a for hire operator in order to procure a fare, whether pre-arranged or not.

(d) It shall be unlawful for any taxicab or for hire operator to offer a gratuity, tip, or any other compensation, in order to procure a fare, whether pre-arranged or not.
(M.C.S., Ord. No. 24840, § 1, 4-19-12)

Secs. 162-54, 162-55. Reserved.

Sec. 162-56. Not provide the bureau with any material false or misleading information.

In order to obtain or maintain a driver permit, company permit, or CPNC, the applicant, driver, company, or CPNC holder shall not provide the bureau with any material false or misleading information. A violation of this article shall constitute cause for denial of the application or suspension or revocation of the driver permit, company permit, or CPNC. False or misleading information is considered "material" if the driver's permit or CPNC may have been denied had an accurate response been given.
(M.C.S., Ord. No. 24841, § 1, 4-19-12)

Sec. 162-57. Evidence of attempt to bribe.

(a) In order to obtain or maintain a driver permit, company permit, or CPNC, the applicant, driver, company, or CPNC holder (or someone acting on his/her behalf) must not offer or give any gift or gratuity to any employee, representative, public servant, or member of the bureau.

(b) An applicant must immediately report to the director of the department of public works if any employee, representative, public servant, or member of the bureau makes a request or demand for any gift of gratuity.

(c) Denial of an application/revocation of a permit or CPNC. The director may deny or revoke a driver permit, company permit, or CPNC for the reasons specified in this section. If the director identifies that the applicant meets the criteria in this section, the director will deny or revoke the driver's permit, company permit, and/or CPNC and no application fees will be refunded.

(d) Any person violating this section will be banned from reapplying for a CPNC or driver's permit for a period of ten years.
(M.C.S., Ord. No. 24842, § 1, 4-19-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-58. Prohibited vehicles.

(a) Any vehicle which has ever been issued the title class of either "salvage", "rebuilt", "junk", "total loss", "reconditioned" or any equivalent classification in any jurisdiction is not eligible for operation as a for-hire vehicle and shall not be issued a CPNC.

(b) It is the affirmative duty of the CPNC holder to ascertain that the for-hire vehicle is in compliance with this section. Any vehicle placed in operation by a CPNC holder as a for-hire vehicle in violation of this subsection is unsafe, and subject to immediate CPNC suspension and/or revocation.

(c) The director may require CPNC holders to submit a car history report at the CPNC holder's expense.
(M.C.S., Ord. No. 24854, § 1, 4-19-12; M.C.S., Ord. No. 27151, § 1, 11-3-16; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-59. Driver's permits and CPNCs are privileges.

Driver's permits and CPNCs are privileges and not rights. The director of public works or his designee has full discretion in determining whether a driver's permit or CPNC shall be issued.
(M.C.S., Ord. No. 24843, § 1, 4-19-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-60—162-80. Reserved.

DIVISION 2. DRIVER'S PERMIT

Sec. 162-81. Required.

It shall be unlawful for any person to drive any vehicle regulated by this chapter without possessing a current driver's permit or a duplicate thereof should the same be lost or destroyed.

(a) CPNC holders are authorized to designate an employee or employees to operate a vehicle regulated by this chapter for the sole purpose of delivering such vehicle to the bureau's inspection station for the semi-annual mechanical inspections required pursuant to sections 162-377 and 162-379 of this Code.

(b) CPNC holders are required to notify the Bureau of the name(s) of such designee(s) and their position within the entity holding CPNCs. The bureau shall maintain a listing of those individuals authorized to deliver vehicles to the inspection station and the CPNC holder with which they are affiliated.

(Code 1956, § 12-105; M.C.S., Ord. No. 26289, § 1, 3-12-15)

Sec. 162-82. Application.

An applicant for a driver's permit shall submit an application to the ground transportation bureau. The applicant must comply with all of the requirements set forth for drivers as provided in this chapter.
(Code 1956, § 12-106; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-83. Photographs and fingerprints.

Each applicant for a driver's permit shall submit photographs according to the requirements for identification established by the ground transportation bureau and shall submit to being fingerprinted.
(Code 1956, § 12-108; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-84. Reserved.

Editor's note—M.C.S., Ord. No. 27303, § 1, adopted Feb. 23, 2017, repealed § 162-84, which pertained to for-hire vehicle driver application and derived from Code 1956, § 12-107; M.C.S., Ord. No. 21480, § 5, adopted April 1, 2004.

Sec. 162-85. Chauffeur's license; letters of employment agreement.

The application for a permit to operate a for-hire vehicle solely as a driver shall, in addition to the requirements set out in this article, be accompanied by a valid chauffeur's license and a letter in duplicate from the employer CPNC owner or lessor for whom the applicant expects to work immediately upon the issuance of such permit. This provision shall not apply to operators of animal-drawn vehicles.
(Code 1956, § 12-109)

Sec. 162-86. Reserved.

Editor's note—M.C.S., Ord. No. 27303, § 1, adopted Feb. 23, 2017, repealed § 162-86, which pertained to training for new applicants and derived from Code 1956, § 12-107.1(b); M.C.S., Ord. No. 21480, § 5, adopted April 1, 2004.

Sec. 162-87. Issuance of permit.

Whenever an applicant for a permit to operate a for-hire vehicle as a driver has met all of the requirements provided under this article and the supervisor of the ground transportation bureau has so reported to the director of the department of public works, if the director finds the report to be correct, a driver's permit shall be issued of a size, color and form to be determined by the director.
(Code 1956, § 12-110; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-88. Term.

A driver's permit shall be valid for a period of two years.
(Code 1956, § 12-111)

Sec. 162-89. Possession of valid permit.

The driver's permit shall be carried by the driver at all times when the driver is operating the vehicle. For the purpose of this article, every permit which is under suspension or which has been revoked as provided in this chapter shall be considered invalid unless and until the same is reinstated.
(Code 1956, § 12-114)

Sec. 162-90. Photo identification.

Every driver shall wear a photo identification designed according to specifications of the director of the department of public works. Such identification shall be worn on the chest of the driver during all hours of duty and in such a position that it is plainly visible at all times.
(Code 1956, § 12-117; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-91. Driver's record.

The ground transportation bureau shall compile and maintain a complete and up-to-date record of the drivers and discontinuance of all such drivers, showing pertinent data required in this chapter according to the discretion of the director of the department of public works.
(Code 1956, § 12-116; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-92. Notification of change of address.

It shall be the responsibility of each driver to notify the ground transportation bureau and trade name holder of each change of address within 14 days after such change is made and to have such change indicated on the driver's permit.
(Code 1956, § 12-115; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-93. Renewal.

Every driver's permit in good standing shall be renewable on or three months before its expiration date upon application and payment of the fee as required in section 162-195 to the ground transportation bureau. The renewal of the driver's permit within ten business days following the date of expiration of the permit shall be considered timely renewal of the permit.
(Code 1956, § 12-112; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-94. Reserved.

Editor's note—M.C.S., Ord. No. 27303, § 1, adopted Feb. 23, 2017, repealed § 162-94, which pertained to training course for renewals and derived from Code 1956, § 12-107.1(e).

Sec. 162-95. Reserved.

Editor's note—M.C.S., Ord. No. 27303, § 1, adopted Feb. 23, 2017, repealed § 162-95, which pertained to continuing education and derived from Code 1956, § 12-107.1(c); M.C.S., Ord. No. 21480, § 5, adopted April 1, 2004.

Sec. 162-96. Reserved.

Editor's note—M.C.S., Ord. No. 27303, § 1, adopted Feb. 23, 2017, repealed § 162-96, which pertained to approval of institutions and training courses and derived from Code 1956, § 12-107.1(d); M.C.S., Ord. No. 21480, § 5, adopted April 1, 2004; M.C.S., Ord. No. 26332, § 1, adopted April 9, 2015.

Sec. 162-97. Expired driver's permit.

(a) Failure to make timely application for renewal of the driver's permit shall result in a delinquent fee of $40.00.

(b) Permit holders who have allowed their permits to expire for a period of three months shall be considered to be a new applicant for a permit and shall be considered to be a new applicant for a permit and shall conform to all requirements pertaining to such applicant in obtaining such permit.
(Code 1956, § 12-113; M.C.S., Ord. No. 24875, § 1, 6-7-12; M.C.S., Ord. No. 24961, § 1, 7-26-12; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-98. Provisions for hearing and appeal of denial or revocation of driver's permit.

(a) The director of the department of public works or a duly designated agent may deny or revoke the issuance of a driver's permit and/or a CPNC whenever, in the exercise of reasonable and sound discretion and after giving notice and affording the applicant or holding [holder] a hearing thereon, the director shall determine that the applicant or holder is in violation of this chapter. The director shall conduct a hearing in accordance with the provisions of R.S. 49:951 et seq.

(b) If the hearing results in the denial or revocation of a driver's permit, then the party involved may thereafter appeal to the Civil District Court for the Parish of Orleans within 30 working days of the decision.
(Code 1956, § 12-56; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24724, § 1, 1-5-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

State law reference—Administrative Procedure Act, R.S. 49:951 et seq.

Sec. 162-99. Vehicle certificate suspended or revoked.

(a) It shall be unlawful for any person to operate any vehicle regulated by this chapter on the streets and public places of the city when the driver's permit or CPNC has been revoked or cancelled or during any period of suspension thereof as provided under this chapter.

(b) No owner or operator of any for-hire vehicle whose CPNC or driver's permit has been revoked under the provisions of the laws of this city and state and who shall be domiciled in or operating such vehicle by virtue of a license or permit issued in some other parish of the state shall be allowed to transport passengers for hire on the streets of the city. Any such operation or attempted operation shall constitute a violation of this chapter.
(Code 1956, § 12-118)

Secs. 162-100—162-150. Reserved.

ARTICLE III. CERTIFICATE OF PUBLIC NECESSITY AND CONVENIENCE*

DIVISION 1. GENERALLY

Sec. 162-151. Required.

No person shall own and operate or permit any other person to operate an animal-drawn vehicle, a for-hire vehicle, tour bus or tour vehicle, airport, limousine, taxicab, courtesy vehicles, commuter shuttle vehicles, or any other for hire passenger vehicles offered for hire and engaged in the business of transporting passengers for hire on the streets of the city not operated on fixed rails, upon specified routes or between fixed terminals without having first applied for and received an appropriate certificate of public necessity and convenience in the manner provided in this article.
(Code 1956, §§ 12-41, 12-69; M.C.S., Ord. No. 17,164, § 1, 9-7-95; Ord. No. 19,609, § 1, 4-6-00)

Sec. 162-152. Ownership of vehicles.

(a) The certificate of public necessity and convenience shall:

(1) be in the name of the registered owner of the vehicle, or

*__Cross references—__For-hire vehicles, § 162-376 et seq.; animal drawn vehicles, § 162-496 et seq.; taxicabs, § 162-601 et seq.; limousines, § 162-841 et seq.; tour vehicles and buses, § 162-896 et seq.; towing, recovery and storage regulations, § 162-996 et seq.

(2) be affiliated with a specific vehicle owned or leased by a driver issued a valid driver's permit. The holder of the CPNC shall furnish to the department sufficient proof that the registered owner of the vehicle as evidenced by a written lease agreement, has leased the vehicle to a driver operating pursuant to their CPNC.

(b) Relative to limousines, the lessee of two or more limousines, as evidenced by written and recorded leasing agreements, the term of which shall not be less than 24 months, may apply for and be issued a certificate of public necessity and convenience, subject to all regulations and provisions, and in the same manner set forth in this chapter for the issuance of a certificate of public necessity and convenience.
(Code 1956, § 12-69; M.C.S., Ord. No. 27133, § 1, 10-20-16)

Sec. 162-153. Display of certificate.

It shall be unlawful for any person to transport or offer to transport passengers for hire in any vehicle regulated by this article which does not have affixed to the windshield thereof a valid certificate of public necessity and convenience issued by the director of the department of public works unless the for-hire vehicle is used exclusively to transport passengers for weddings and funerals.
(Code 1956, § 12-69; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-154. Penalties for violation.

The penalty for a first offense under this article shall be a fine of not less than $300.00 and may include a term of imprisonment for not more than five months. A term of imprisonment of up to 30 days may be imposed for nonpayment of the fine. For second and subsequent offenses the penalty shall be a fine of not less than $300.00 and a term of imprisonment for not less than ten days nor more than five months. An additional term of imprisonment of not more than 30 days may be imposed for nonpayment of the fine.
(Code 1956, § 12-69)

Sec. 162-155. Extended renewal period and fee.

The renewal period for a CPNC that expired between December 31, 2019 and April 1, 2023, is extended until December 31, 2023, provided that the renewal complies with the applicable provisions or this chapter. The fee for a renewal pursuant to this section is $250.00 for reinstatement of the CPNC, plus $150.00 for each delinquent renewal year. This shall be a one-time reinstatement. Additionally, any CPNC revoked for nonrenewal between April 1, 2020 and May 1, 2023 may reissued under this section.
(M.C.S., Ord. No. 23492, § 1, 4-23-09; M.C.S., Ord. No. 29567, § 1, 7-27-23, eff. 7-1-23)

Secs. 162-156—162-180. Reserved.

DIVISION 2. APPLICATION

Sec. 162-181. Generally.

Each person who shall make application to the director of the department of public works for a CPNC, shall meet the requirements as established by law, and shall certify that all of the requirements have been properly satisfied. No license shall be granted if the applicant fails to meet the requirements of this chapter or if the applicant provides the department of public works with false, misleading or incomplete information. Licenses issued on the basis of false, misleading or incomplete information furnished by the applicant may be revoked by the director of the department of public works.
(Code 1956, § 12-42; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-182. Age and literacy.

Applicants for CPNCs or driver's permits must be 18 years of age and must be able to read, write and fluently speak English. In the case of a partnership or a corporation, such provisions shall be satisfied by the qualification of a principal partner or duly registered officer respectively.
(Code 1956, § 12-43; M.C.S., Ord. No. 24596, § 1, 9-22-11)

Sec. 162-183. Citizenship and residency.

(a) *Citizenship.* An applicant for any CPNC license must be a citizen or permanent resident of the United States. Proof of citizenship or permanent residency shall be submitted by the applicant at the time application is made.

(b) *Residency.* An applicant for a CPNC must currently reside in this parish and/or in the contiguous parishes of Jefferson, St. Bernard, St. Tammany, Plaquemines, or in the noncontiguous parishes of St. Charles, St. John the Baptist, or St. James. Should the applicant reside in one of the listed contiguous or noncontiguous parishes, a duly designated agent for service of process must be provided to the supervisor of the ground transportation bureau.

(c) *Organizations.* If the applicant is a corporation or partnership, the above requirements for a CPNC shall be satisfied by the qualification of all duly registered officers of the corporation or principal partners of the partnership. If the organization or partnership is an out-of-state business entity, the above requirements for a CPNC may be satisfied by the qualification of a designated local general manager of the organization.
(Code 1956, § 12-44; M.C.S., Ord. No. 22860, § 1, 10-18-07; M.C.S., Ord. No. 23506, § 1, 4-23-09; M.C.S., Ord. No. 24673, § 2, 11-17-11; M.C.S., Ord. No. 26332, § 2, 4-9-15; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-184. Investigation.

(a) The supervisor of the ground transportation bureau shall investigate all applicants for certificates of public necessity and convenience (CPNC) and the merits of each application. A written report of the findings and recommendations from the investigation shall be submitted to the director of the department of public works. Not less than twice annually, at a time to be designated by the supervisor, such director or a duly designated agent subject to the director's final authority shall determine whether or not any CPNC will be granted or denied, provided such director shall not deny any application without a hearing being held thereon in accordance with R.S. 49:951 et seq., unless the granting of a CPNC would cause the number of taxicabs to exceed the limit specified in section 162-186. Existing CPNC holders and other interested parties may appear as intervenors in such hearings.

(b) In the event that applications exceed the number of CPNCs necessary to satisfy public necessity, the director of the department of public works may utilize a lottery to determine the issuance of CPNCs to qualified and eligible applicants.
(Code 1956, § 12-45; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26257, § 1, 2-26-15; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-185. Factors for consideration.

In determining whether a CPNC should be issued, the director of the department of public works shall consider the following:

(1) Whether the requirements of the certificate of public necessity and convenience can be met and complied with only by the issuance of additional certificates of public necessity and convenience;

(2) The resulting effect of an issuance upon the business of existing certificate holders and upon the existing agencies of mass transportation;

(3) The effect upon traffic congestion and the safety of the public using the streets;

(4) The effect upon working conditions, wages or other compensation paid to drivers of taxicabs or other motor vehicles being operated under existing CPNC's;

(5) In the case of a new CPNC company, the applicant must establish the fact that the service to be provided is not and/or cannot be adequately provided by existing CPNC companies; or

(6) Any other facts which the director may deem relevant.

(Code 1956, § 12-45(a); M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-186. Taxicabs.

(a) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) expires on December 31 of each year and must be renewed within the month following expiration (January)

for a fee of $150.00. A CPNC renewal that is submitted in the month of February is subject to a delinquency penalty of $75.00 in addition to the renewal fee of $150.00. A CPNC renewal that is submitted in the month of March is subject to a delinquency penalty of $75.00 in addition to the renewal fee and the February delinquency penalty. A CPNC shall not be renewed after March 31; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before April 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of April. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(b) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience (CPNC) that is not renewed by March 31 is suspended. A CPNC shall be revoked if a renewal is not submitted in January, February, or March or within the extended time period granted by the director or the designee.

(c) *Extension for acquiring a vehicle and fee.* Compliance with the requirement that a certificate of public necessity and convenience (CPNC) holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of three years. There is no fee for the first extension. Additional extensions are subject to a fee of $50.00 per month. If a vehicle is not placed in service within the extended time period granted by the director or the designee, the CPNC shall be revoked.

(Code 1956, § 12-45(b); M.C.S., Ord. No. 18,475, § 1, 10-16-97; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 23493, § 1, 4-23-09; M.C.S., Ord. No. 27963, § 1, 12-20-18; M.C.S., Ord. No. 28241, § 1, 11-21-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-187. Animal-drawn vehicles.

The director of the department of public works is hereby authorized to issue no more than a total of 30 certificates of public necessity and convenience for animal-drawn vehicles. The fees charged by the department of public works for certificates of public necessity and convenience for animal-drawn vehicles are as follows:

(1) *Initial license* $250.00

(2) *Annual renewal* 300.00

(3) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) for animal drawn vehicles expires on March 31 of each year and must be renewed within the month following expiration (April) for a fee of $300.00. A CPNC renewal that is submitted in the month of May is subject to a delinquency penalty of $150.00 in addition to the renewal fee of $300.00. A CPNC renewal that is submitted in the month of June is subject to a delinquency penalty of $150.00 in addition to the renewal fee and the May delinquency penalty. A CPNC shall not be renewed after June 30; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before July 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of July. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(4) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience (CPNC) that is not renewed by June 30 is suspended. A CPNC shall be revoked if a renewal is not submitted in April, May, or June, or within the extended time period granted by the director or the designee.

(5) *Extension for acquiring a vehicle and fee.* Compliance with the requirement that a certificate of public necessity and

convenience (CPNC) holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of one year. There is no fee for the first extension. Additional extensions are subject to a fee of $50.00 per month. If a vehicle is not placed into service within the extended time period granted by the director or the designee, the CPNC shall be revoked.

(Code 1956, § 12-45(c); M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24962, § 1, 7-26-12; M.C.S., Ord. No. 26306, § 1, 3-26-15; M.C.S., Ord. No. 27638, § 1, 1-11-18; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-187.5. Courtesy vehicles.

(a) The director of public works is hereby authorized, subject to the conditions of this section, to issue not more than 75 courtesy vehicle certificates of public necessity and convenience. Such courtesy vehicle certificates of public necessity and convenience shall not be issued for passenger buses as defined in subsection (i) below, except as provided therein. A vehicle or operator using a courtesy vehicle certificate of public necessity and convenience shall not in any manner provide transportation for hire. All courtesy vehicle CPNC's shall be nontransferable. Any courtesy vehicle CPNC which is refused renewal and/or revoked shall be returned to the director of public works.

(b) (1) Any entity providing overnight lodging may provide courtesy vehicles for the benefit of its patrons and employees only upon application for and receipt of a courtesy vehicle CPNC, according to the schedule set forth below, provided:

a. Courtesy vehicle passengers are patrons of the CPNC holder's business, as operating under the current occupational license as disclosed in the courtesy vehicle CPNC application;

b. The point of origin of any trip by a courtesy vehicle is located within Orleans Parish, except that the point of origin of any trip by a luxury sedan courtesy vehicle is located in Orleans Parish or at the New Orleans International Airport;

c. The courtesy vehicle driver is an employee of the entity offering the service and is properly licensed by the director of public works; and

d. Entity providing the courtesy vehicle service does not receive remuneration from any entity or source for the provisions of such service.

(2) Any licensed gaming entity, as defined herein, shall not own or operate any CPNC or be granted any courtesy vehicle certificates of public necessity. For purposes of this section, "licensed gaming entity" is defined as an entity licensed to conduct gaming operations pursuant to R.S. 27:1, et seq., or chapter 10 of title 4 of the Louisiana Revised Statutes of 1950, as amended. Notwithstanding the foregoing or any other law to the contrary, the casino operator of the "official gaming establishment", as defined in R.S. 205(26) and further described in R.S. 27:241, may obtain courtesy vehicle certificates of public necessity for the operation of a total of two courtesy limousines and one courtesy bus in the aggregate.

(3) Any commercial entity not included in subsections (1) and (2) above may apply to the director of the department of public works for a waiver from the provisions of this section. The director of the department of public works shall provide the applicant with a decision, within five calendar days, as to whether or not the waiver from the provision of this section should be granted in the best interest of providing safe and reliable public transportation in the city. The director of

the department of public works shall provide a written report to the city council every seven calendar days, relative to the disposition of all requests for such a waiver. The city council shall approve, modify or deny, within 30 calendar days, the director of public works' decision on each waiver.

(c) All courtesy vehicles operating under a courtesy vehicle CPNC issued pursuant to this section shall bear an external sign which clearly and conspicuously provides the name, address and telephone number of the entity providing the courtesy vehicle service.

(d) The driver of each courtesy vehicle operating under a courtesy vehicle CPNC issued pursuant to this section shall keep a trip report, showing on the upper part the CPNC and vehicle registrations certificate number, driver's permit number, name of driver, time on duty, time off duty and the date. Such trip report shall be filled out for each engagement including the time and point of destination. All entries shall be made legibly, and the trip report shall be signed by the driver, who shall preserve them for a period of not less than 90 days.

(e) All courtesy vehicle CPNCs shall be issued in accordance with the following schedule:

Entity	*Maximum Certificates*
Hotel, motel, bed and breakfast, time-share solicitation and any other entity providing overnight lodging for the public having a capacity of 400 rooms or less	One
Hotel, motel, bed and breakfast, time-share solicitation and any other entity providing overnight lodging for the public having a capacity greater than 400 rooms	Two

(f) Each applicant for a courtesy vehicle CPNC must provide to the director of the department of public works proof of ownership of the vehicle to be operated as a courtesy vehicle.

(g) Each applicant for a courtesy vehicle CPNC must provide to the director of the department of public works a copy of the most current occupational license held by the applicant.

(h) The fees charged by the department of public works for courtesy vehicle CPNC's are as follows:

(1) *Initial license* $300.00

(2) *Annual renewal* 300.00

(3) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) for courtesy vehicles expires on March 31 of each year and must be renewed within the month following expiration (April) for a fee of $300.00. A CPNC renewal that is submitted in the month of May is subject to a delinquency penalty of $150.00 in addition to the renewal fee of $300.00. A CPNC renewal that is submitted in the month of June is subject to a delinquency penalty of $150.00 in addition to the renewal fee and the May delinquency penalty. A CPNC shall not be renewed after June 30; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before July 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of July. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(4) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience (CPNC) that is not renewed by June 30 is suspended. A CPNC shall be revoked if a renewal is not submitted in April, May, or June, or within the extended time period granted by the director or the designee.

(5) *Extension for acquiring a vehicle and fee.* Compliance with the requirement that a certificate of public necessity and convenience (CPNC) holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a

maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of one year. There is no fee for the first extension. Additional extensions are subject to a fee of $50.00 per month. If a vehicle is not placed into service within the extended time period granted by the director or the designee, the CPNC shall be revoked.

(i) Any passenger bus, as defined herein, being operated as a courtesy vehicle for a continuous period of six months immediately prior to the effective date of this section by the Hyatt Regency or The Radisson (formerly the Clarion) Hotels shall not be subject to the limitations contained in the provisions of subsections (a) and (e), provided that the respective entity applies for a courtesy vehicle CPNC for such vehicle under this exception within 15 days of the effective date of this section. The courtesy vehicle CPNC holder shall be bound by all other provisions of this chapter. For purposes of this section, a passenger bus is defined as any vehicle with a capacity of not less than 12 passengers and not more than 52 passengers. The passenger buses provided for in this section may only transport passengers from one point of origin to two points of destination, provided that one of the three points is the CPNC holder's place of business listed under the current occupation license provided to the director of public works in its courtesy vehicle CPNC application and each of the designated points of destination have been filed with the director of the department of public works.

(j) Any vehicle, other than a passenger bus as defined in subsection (i) being operated as a courtesy vehicle by the hotel/motel industry for a continuous period of six months immediately prior to the effective date of this section shall not be subject to the limitations of subsection (e), provided that the owner apply for a courtesy vehicle CPNC for such vehicle(s) under this exception within 15 days of the effective date of this section. If any entity receiving courtesy vehicles CPNC's pursuant to this section exceeds the maximum number allowed by subsection (e), such entity shall not be eligible for additional courtesy vehicle CPNC. The CPNC issued pursuant to this part shall be included in the limitation contained in subsection (a) and shall be subject to all other provisions of this chapter.

(k) The director of the department of public works may submit a review and further recommendations to the ground transportation committee after 90 days from the effective date of this section.

(M.C.S., Ord. No. 17,164, § 1, 9-7-95; Ord. No. 20,515, § 5, 1-17-02; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26306, § 1, 3-26-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-188. Bus and limousine.

A CPNC shall be issued for buses or limousines only after a written application is filed with the department of public works, a public hearing is convened, due notice is given to the applicant as well as to all competing companies stating that they might appear as intervenors, and a finding is reached by the director of the department of public works that public convenience and necessity require the issuance of a certificate to the applicant. This section shall not apply to an applicant for a CPNC for a school bus.

(Code 1956, § 12-72; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 1, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-189. Limousines.

(a) All applicants for certificates of public necessity and convenience for limousines shall serve and maintain a fidelity bond in the amount of $10,000.00, and evidence of such bond shall be provided upon application or renewal of such certificate.

(b) Stretch limousines are luxurious for-hire vehicles that meet the manufacturer's specifications for luxury limousines designed with a capacity for six to nine passengers or less, including the driver, whereby all passengers are seated behind the driver, and no door exists at the rear of the vehicle that is designed to allow passenger entry or exit. Luxurious is considered a high-end, quality, spacious vehicle, as determined by the director. Generally, limousines may include luxury sedans, luxury Sports Utility Vehicles

(SUV), luxury Sprinter Passenger Vans and luxury mini-buses, but in no event shall a luxury sedan, luxury SUV, luxury Sprinter Passenger Van or luxury mini-bus be considered a stretch limousine for purposes of initial CPNC issuance and maintenance thereof.

(1) Luxury sedans shall mean any of the four-door-sedan-type automobiles with a seating capacity of not more than six, including the driver (e.g., - Lincoln Town Car). The model year of such luxury sedan limousine shall be no more than two years older than the calendar year of the initial application.

(2) Luxury sport utility vehicles shall mean any of the four-door-SUV-type automobiles, with a seating capacity of not more than eight, including the driver (e.g., - Cadillac Escalade and Lincoln Navigator). The model year of such luxury SUV limousine shall be no more than two years older than the calendar year of the initial application.

(3) Luxury sprinter vans shall have a seating capacity of not more than 12, including the driver (e.g., Mercedes-Benz Sprinter Van).

(4) Luxury mini-bus shall have a seating capacity of greater than 16, including the driver.

(c) The director of the department of public works shall have the administrative authority to approve the type of limousine, and the colors shall be restricted to white, black, gray or dark blue.

(d) (1) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) for limousines, sightseeing, airport shuttle, general charter, or special charter vehicles expires on June 30 of each year and must be renewed within the month following expiration (July) for a fee of $150.00. A CPNC renewal that is submitted in the month of August is subject to a delinquency penalty of $150.00 in addition to the renewal fee of $150.00. A CPNC renewal that is submitted in the month of September is subject to a delinquency penalty of $150.00 in addition to the renewal fee and the August delinquency penalty. A CPNC shall not be renewed after August 31; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before October 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of October. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(2) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience (CPNC) that is not renewed by September 30 is suspended. A CPNC shall be revoked if a renewal is not submitted in July, August, or September, or within the extended time period granted by the director or the designee.

(3) *Extension for acquiring a vehicle and fee.* Compliance with the requirement that a certificate of public necessity and convenience (CPNC) holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of one year. There is no fee for the first extension. Additional extensions are subject to a fee of $50.00 per month. If a vehicle is not placed into service within the

extended time period granted by the director or the designee, the CPNC shall be revoked.

(Code 1956, § 12-45(d); M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 23076, § 1, 4-17-08; M.C.S., Ord. No. 24963, § 1, 7-26-12; M.C.S., Ord. No. 26003, § 1, 9-4-14; M.C.S. Ord. No. 26168, § 1, 12-4-14; M.C.S., Ord. No. 26306, § 1, 3-26-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-190. Types for buses and limousines.

A certificate of public necessity and convenience will be issued for buses, limousines or other for-hire vehicles, except taxicabs, school buses, vehicles not operated on fixed rails, vehicles upon specified routes or between fixed terminals, vehicles under one or more of the following categories:

(1) *Group tours and special sightseeing.* Includes general charter, group tours and special services of various types specifically identified by the terms of the CPNC (i.e., transportation for the handicapped, foreign language tours, etc.).

(2) *Per capita sightseeing.* Includes all services defined under subsection (1) of this section, but in addition permits sightseeing tours to be sold on an individual or per capita basis.

(3) *Limousine service.* Includes all vehicles defined pursuant to section 162-189 that are operating for prearranged hire pursuant to a limousine CPNC. Prearranged shall be arrangement directly with the livery service or through a third party (e.g., internet-based software application, guest service desk, or concierge desk), prior to pick-up, and evidenced by a properly completed trip sheet as provided in section 162-53. This provision shall not apply to wedding and funeral services. Limousine drivers shall be prohibited from picking up any passenger who attempts to hail a limousine from the public right-of-way. A violation of this provision shall subject the limousine driver to a fine of $500.00, and a driver's permit shall be subject to suspension or revocation for three or more offenses.

(4) *Airport contract limousines.* Permits service from the airport to points within the city. The number of airport CPNC's to be issued will be determined jointly by the department of public works and the aviation board considering the number of vehicles required to provide the base level of service specified in the ground transportation contract with the aviation board. Airport CPNC's will be valid for the life of the ground transportation contract and will revert to the city upon termination of that contract.

(5) *Airport delivery limousine service.* Includes limousines, except airport contract limousines which may transport passengers to but not from the New Orleans International Airport.

(6) *Special charter.* Public service commission and Interstate Commerce Commission certified bus companies are eligible for a special charter CPNC. Holders of a special charter CPNC may lease buses to tour planners and holders of per capita sightseeing CPNC's. ICC and PSC companies licensed under this section must be in full compliance with all relevant rules, regulations and requirements contained herein.

(7) *Per capita continuous loop, fixed-route sightseeing.* Includes all services defined under subsections (1) and (2) of this section, but in addition permits sightseeing tours to operate on a fixed-route with a continuous loop allowing multiple stops and points of boarding and exiting.

(Code 1956, § 12-70; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26003, § 1, 9-4-14; M.C.S., Ord. No. 27735, § 1, 4-19-18; M.C.S., Ord. 27992, § 1, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 30194, § 1, 12-19-24)

Sec. 162-191. Existing CPNC may apply for other type of license.

All existing tour bus CPNC holders (not currently conducting per capita sightseeing tours)

and van CPNC holders shall be eligible for per capita sightseeing tours (upon successful application with the department of public works); a licensed tour guide must be on board to conduct tours. Conducting transportation services (exclusive of tour) are strictly prohibited. And the penalty for violating any of the provisions of this section shall be a suspension of the per capita CPNC for a duration of 90 days for the first offense, and revocation of the CPNC for the second offense.
(Code 1956, § 12-74; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 30194, § 1, 12-19-24)

Sec. 162-192. Existing CPNC holders.

All existing holders of CPNC's at the time of the enactment of the ordinance from which this chapter was derived will be issued new CPNC's in accordance with the type of business they were presently conducting.
(Code 1956, § 12-73)

Sec. 162-193. Applications by business entities.

If the applicant is a corporation, association or partnership, all of the partners or the principal officers of the organization and the person actually exercising the executive direction of the organization shall be required to submit applications individually. All of the provisions applicable to individuals shall apply to and be required of such principal partners or officers, and the failure of any of them to meet such requirements shall be grounds to deny the application of such corporation, association or partnership. When the applicant for a CPNC is an out-of-state corporation, association, or partnership, a designated local general manager responsible for the day-to-day operations of the organization shall be required to submit an application personally. Failure of the designated local general manager to meet such requirements shall be grounds to deny the application of such out-of-state corporation, association, or partnership.
(Code 1956, § 12-46; M.C.S., Ord. No. 24673, § 3, 11-17-11; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-194. Report of change of officers.

All changes of officers who have submitted applications for a taxicab or for-hire vehicle certificate shall be reported to the ground transportation bureau within ten working days of such change, and such new officers, partners or other executive managing personnel shall individually file applications within that time. The failure to certify within such time or to possess the qualifications required of individuals under this article shall be cause for the suspension of all permits held by such corporation, association or partnership.
(Code 1956, § 12-47; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-195. Fees.

The department of public works shall charge the following fees for taxicab and for-hire vehicle CPNC and driver's permits. The fees shall be assessed in addition to any other fees charged in any other provision of this chapter.

(1)	All inspection, re-inspection, and change of equipment fees for CPNC vehicles are		$50.00
(2)	Special charter fees.		
	a.	Daily	10.00
	b.	Weekly	50.00
(3)	Temporary special event and special need CPNCs, daily		20.00
(4)	Driver's permit fees.		
	a.	Initial permit	40.00
	b.	Renewal permit	40.00
	c.	Change of company affiliation/duplicate permit	20.00

(Code 1956, § 12-98; M.C.S., Ord. No. 24844, § 1, 4-19-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-196. Per capita continuous loop sightseeing CPNC.

A minimum of six buses, each capable of holding no less than 30 passengers, are required

for the issuance of a continuous loop sightseeing CPNC with no less than three busses operating on the loop at all times.

(M.C.S., Ord. No. 27735, § 1, 4-19-18)

Editor's note—Prior to reenactment by M.C.S., Ord. No. 27735, § 1, adopted April 19, 2018, M.C.S., Ord. No. 24960, adopted July 26, 2012, repealed § 162-196, which pertained to fee exemptions and derived from Code 1956, § 12-99; M.C.S., Ord. No. 21480, § 5, adopted April 1, 2004.

Sec. 162-197. Temporary certificates for special events.

The director of the department of public works is hereby authorized to issue temporary CPNC's for special events and special needs declared by the city council or for special needs declared by the mayor or the mayor's authorized designee subject to the following restrictions:

(1) The temporary CPNC will be valid beginning at 12:00 noon on the day prior to the declared special event or special need and will end at 12:00 noon the day following the special event or special need.

(2) Certificates shall only be issued for vehicles that are properly licensed, registered, insured, in compliance with all applicable inspections standards, and any other standards that the bureau may require.

(3) Operators of such licensed vehicles shall themselves be properly licensed to drive such vehicles.

(4) All fees and charges for temporary certificates issued under this section shall be as outlined in section 162-195.

(Code 1956, § 12-71; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24845, § 1, 4-19-12; M.C.S., Ord. No. 26288, § 1, 3-12-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-198. Emergency zone certificate.

The director of the department of public works is hereby authorized and requested to issue emergency zone certificates of public necessity and convenience (CPNC) for the operation of taxicabs upon designated zone routes.

(1) Emergency zone routes are as follows: Broad Street, Broadway Street, Canal Street, Carrollton Avenue, Chef Menteur Highway, Desire Street, Downman Road, Elysian Fields Avenue, Esplanade Avenue, Franklin Avenue, Freret Street, Galvez Street, Gentilly Boulevard, Haynes Boulevard, Jackson Avenue, Louisa Street, Louisiana Avenue, Magazine Street, Melpomene Street, Morrison Road, Napoleon Avenue, Nashville Avenue, North Claiborne Avenue, Orleans Avenue, Palmetto Street, Rampart Street, Read Boulevard, Robert E. Lee Boulevard, St. Bernard Street, St. Charles Street, St. Charles Avenue, St. Claude Street, St. Claude Avenue, South Claiborne Avenue, State Street, Tchoupitoulas Street, Tulane Avenue, and Washington Avenue, and on such other public streets as shall be designated in writing by the director of the department of public works.

(2) Permits shall be issued only to valid CPNC holders.

(3) Permits shall be issued free of charge.

(4) The fare along each emergency zone shall be $0.50 per person to any intersecting emergency zone.

(5) All applicable provisions of this chapter shall be complied with prior to the issuance of the emergency zone certificate and after the recall of the certificate.

(Code 1956, § 12-90.2; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-199. Business office; agent for service.

All CPNC holders, except special charter CPNC holders, must maintain a business office with a telephone number in the parish. All holders shall notify the department of public works of the name and address of its representative to receive service of process. If the holder is a corporation, the corporation shall inform the

department of public works of its registered agent for service of process in conformity with the provisions in La. C.C.P. Article 1261.
(Code 1956, § 12-77; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-200. Accessible taxicab (AT).

(1) The director of public works is hereby authorized to issue nontransferable certificates of public necessity and convenience for accessible taxis (AT). The AT Certificates of Public Necessity and Convenience (CPNC) shall not be transferred, leased, sold, or donated. In the event of a sale of a company possessing an AT CPNC, the purchaser must apply for the applicable permits as set forth in this article.

(2) All accessible taxicabs must comply with guidelines set forth in the ADA (Americans with Disabilities Act).

(3) Any vehicle which has been modified or custom-built must be fully compliant with all relevant FMVSS (Federal Motor Vehicle Safety Standards) requirements. The manufacturer or modifier will provide, upon request, certified engineering test reports to show compliance with FMVSS.

(4) The City of New Orleans may revoke an AT CPNC for cause. Cause for revocation of an AT CPNC includes, but is not limited to, citizen complaints, a substandard level of service, or unauthorized or excessive billing. Also, an AT CPNC may be revoked should the vehicle for which the AT CPNC was issued cease operation as an ADA compliant accessible taxicab. Furthermore, AT drivers shall grant priority to requests for service from people with disabilities, and wheelchair or mobility scooter users. Each AT driver shall maintain verifiable trip sheets documenting the response to each request for AT transportation and shall maintain said trip sheets in accordance with section 162-609(b).

(5) All AT CPNCs shall have an operating two-way radio. All AT CPNC vehicles shall be painted a distinct color as set forth by the ground transportation bureau and have ground transportation bureau approved labels on its exterior identifying the vehicle as wheelchair accessible. The model year of vehicles for which a new AT CPNC will be issued must be of the same year as the AT CPNC. No vehicle for which an AT CPNC has been issued may be operated when the model year of said vehicle is greater than eight model years old. An additional three model years may be granted for alternative fuel vehicles.

(6) All AT CPNC companies shall have 24 hour central dispatch. Such companies shall provide service to customers at any location in the City of New Orleans within 30 minutes from the customer's call for service.

(7) The fees charged by the department of public works for certificates of public necessity and convenience for AT CPNCs are as follows:

(a) *Initial license:* $100.00.

(b) *Annual renewal:* $100.00.

(c) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) for accessible taxicabs expires on December 31 of each year and must be renewed within the month following expiration (January) for a fee of $100.00. A CPNC renewal that is submitted in the month of February is subject to a delinquency penalty of $50.00 in addition to the renewal fee of $100.00. A CPNC renewal that is submitted in the month of March is subject to a delinquency penalty of $50.00 in addition to the renewal fee and the February delinquency penalty. A CPNC shall not be renewed after March 31; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before April 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of April. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(d) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience

(CPNC) that is not renewed by March 31 is suspended. A CPNC shall be revoked if a renewal is not submitted in January, February, or March, or within the extended time period granted by the director or the designee.

(e) *Extension for acquiring a vehicle and fee.* Compliance with the requirement that a certificate of public necessity and convenience (CPNC) holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of three years. There is no fee for the first extension. Additional extensions are subject to a fee of $25.00 per month. If a vehicle is not placed into service within the extended time period granted by the director or the designee, the CPNC shall be revoked.

(M.C.S., Ord. No. 16,880, § 1(12-45f), 2-2-95; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24665, § 2, 11-3-11; M.C.S., Ord. No. 24876, § 2, 6-7-12; M.C.S., Ord. No. 26306, § 1, 3-26-15; M.C.S., Ord. No. 26591, § 1, 9-17-15; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-201. AT CPNC holder and driver requirements.

(a) AT CPNC holders and vehicle operators shall provide service to passengers with disabilities or in wheelchairs before any other passengers and shall not accept any other fare while in route to a service call by a customer who is a person with disabilities or in a wheelchair.

(b) AT CPNC holders and vehicle operators must successfully complete a department of public works approved training program for the needs of passengers in wheelchairs and other persons with disabilities. Such training shall include, but not be limited to, loading and tie-down procedures and door-to-door service. AT vehicle operators shall also be certified in First Aid and CPR.

(c) Eligibility for AT CPNC Holders.

(1) Each application shall be investigated by the bureau to determine the applicant's eligibility pursuant to the factors listed herein. In determining whether the permit should be granted the department may consider such facts as it deems pertinent, but shall at least consider the following factors:

i. The applicant's compliance with all applicable statutes, ordinances, and regulations. If, during the five years prior to application, an applicant has violated any statute, ordinance or regulation which would be a basis for revocation of the AT CPNC or driver's permit, the department may, in its discretion, refuse to issue the permit.

ii. The record of the applicant regarding any other permits issued for the commercial operation of a motor vehicle for the transport of passengers in the city or elsewhere.

(2) The AT CPNC holder shall require any vehicle operator of such AT CPNC vehicle to satisfactorily complete training for operation of an accessible taxi in compliance with department requirements.

(3) No individual or entity may have any financial or beneficial interest in more than ten AT CPNCs.

(d) Minimum qualifications for AT CPNC operators.

(1) All applicants for an AT CPNC operator's permit must have satisfactorily completed training for operation of an accessible taxi in compliance with department requirements.

(2) All applicants for AT CPNC operator's permits must meet or exceed both the moving accident and driver violation conviction standards described below.

i. Applicants shall not have more than two moving traffic accidents, in

which the applicant was at fault, within the five years preceding the date of his application for an AT CPNC operator's permit. Applicants shall not have more than one vehicle moving traffic accident within two years preceding the date of the application for an AT CPNC operator's permit. However, any moving traffic accidents within the five years immediately preceding the date of application that result in a serious injury or fatality shall disqualify an individual applicant.

ii. Applicants shall not have more than two moving traffic violation convictions within five years preceding the date of his application for an AT CPNC operator's permit. Applicants shall not have more than one moving traffic violation conviction within two years preceding the date of the application for an AT CPNC operator's permit.

(3) All applicants for an AT CPNC operator's permit must meet or exceed both the following "notice of violation" and "passenger complaint" standards.

i. Applicants shall not have more than two sustained violations of the municipal code relative to operation of a taxicab or for-hire vehicle within the five years preceding the date of the application for an AT CPNC operator's permit. Applicants shall not have more than one violation of the municipal code relative to operation of a taxicab or for-hire vehicle within the two years preceding the date of the application for an AT CPNC operator's permit. A notice of violation that is appealed at a taxicab hearing and withdrawn will not be counted.

ii. Applicants shall not have more than two passenger complaints within the five years preceding the date of the application for an AT CPNC operator's permit. Applicants shall not have more than one passenger complaint within the two years preceding the date of the application for an AT CPNC operator's permit. Passenger complaints will be counted if they are determined to be credible after investigation by department.

(e) Narcotics tests and mandatory revocation for use of narcotics. Each applicant for an AT CPNC and/or AT CPNC operator's permit shall be drug tested in the manner set forth in section 162-247 of this chapter.
(M.C.S., Ord. No. 24859, § 1, 4-19-12; M.C.S., Ord. No. 26392, § 1, 5-7-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-202. AT vehicle requirements.

(a) The vehicle model of an AT CPNC shall be approved after a review by the Mayor's Advisory Council for Citizens with Disabilities.

(b) Any vehicle which has been modified or custom-built must be fully compliant with all applicable FMVSS requirements. The manufacturer or modifier shall provide, upon request, certified engineering test reports to demonstrate compliance with FMVSS.

(c) All AT vehicles shall be equipped with credit/debit card acceptance machines. Further, such credit/debit card acceptance machines are subject to the following regulations.

(1) The passenger shall have the ability to swipe his/her own credit or debit card.

(2) A Payment Card Industry Data Security Standard (PCI DSS) compliant Passenger Information Monitor (PIM) must be installed in all accessible taxicabs, and shall be integrated directly to the taximeter by means of a hard wire connection.

a. The PIM must communicate wirelessly to obtain approvals for credit and debit card transactions. The system shall provide communication back to the taxicab within ten seconds.

(3) All PIMS must be bolted to the head rest or in an area approved by the bureau in the passenger compartment.

(4) The system must provide a printed receipt for every credit or debit card transaction. Hand written receipts not allowed.

(5) Taximeters shall dispense a receipt with following information:

a. CPNC number;

b. Driver ID;

c. Trip ID;

d. Distance of trip;

e. Date of trip;

f. Time of trip;

g. Fare charges;

h. Extra charges;

i. Total charges;

j. Taxicab Company Name and Phone Number; and

k. The words "Ground Transportation Bureau. For compliments or concerns, please call 504-658-7176."

(6) The bureau shall prescribe the requirements for the use of an electronic version of a daily trip sheet and be granted unlimited access to all electronic information contained therein.

(7) A GPS receiver is required for the credit card system.

(8) Drivers must be able to sign into the taxicab meter using either a unique identifying number or biometrics.

(d) All AT vehicles shall be equipped with a security camera system.

(1) Any security system installed in an AT vehicle must meet or exceed the technical specifications set forth below.

a. Be 100 percent solid state design;

b. Be tamperproof and not operate with an "on/off" switch;

c. Have system protections to ensure against voltage irregularities and power failures;

d. Use non-volatile flash memory and record images using a first-in, first-out methodology, with an overwrite-protected memory for emergency events that cannot be overwritten;

e. Be impact and shock resistant;

f. Clearly record images in all lighting conditions, including bright sunshine, shade, darkness, total darkness, and when strong backlighting is present;

g. Mark each image with the date, time, and vehicle number, and serial number of the camera;

h. Be stored as or convertible to standard digital image formats;

i. Must have a field of vision to capture all of the occupants of the vehicle;

j. Be installed so that it will not interfere with the driver's field of vision or impede the use of any of the vehicle's mirrors;

k. Must have all lead-free components.

l. Must have 1 GB memory;

m. Must record images at a resolution of at least 640 × 368 pixels;

n. Must have image recording triggers:

i. Still image recording must by triggered by any vehicle door opening. Upon the trigger, still images must be recorded a rate of one image every five seconds for 60 seconds, followed by one image every 15 seconds.

ii. Video images must be recorded on a looping basis, and image storage must by triggered by any vehicle door opening. Upon the trigger, video images must be recorded for 60 seconds prior to the door opening and 60 seconds after the door is closed;

iii. In an emergency-trigger event, system must be able to store 2.5 minutes worth of images prior to the trigger and 2.5 minutes after the trigger in an overwrite-protected format. Still image cameras must be equipped with an emergency trigger that will record images at the rate of one image per second for 60 seconds.

(2) Signage. All vehicles equipped with a security camera system must have a decal on the passenger and driver side rear windows stating, "This vehicle is equipped with a security camera."

(3) Use of digital still or video images. Access to any recorded image of persons in a taxicab is prohibited except by the taxicabs and for-hire vehicles bureau or the New Orleans Police Department. Violation of access to images shall result in revocation of AT CPNC.

(4) Inspections. Camera systems must have the capability for inspection of the equipment that will indicate the system is functioning properly. The serial number of the camera must be readily accessible. The bureau may also inspect the viewing facilities of the owner or licensed manager and may ask for verification of viewing logs and/or all other documentation and equipment.

(5) Driver behavior modification features. For the purposes of driver education and modification of driver behavior, security camera systems shall be equipped with driver behavior modification features which collect and store data created by vehicle movement triggers such as sharp turns, sharp stops, or quick accelerations.

a. A CPNC holders or company owners may view images from outward facing cameras only.

b. Cameras recording for driver modification purposes should be positioned such that the perspective is outward and over the vehicle's hood.

c. All images must be logged electronically and the electronic log provided on a quarterly basis to the bureau.

d. The bureau may view any reports and images associated with driver behavior upon request.

(6) Procedures for security camera systems approval. Only camera systems meeting the minimum requirements and approved by the bureau may be installed.

a. Applicants must submit a request in writing and provide written technical specification of the system; and

b. Provide a demonstration of the system and all of its features to the bureau. After reviewing the technical specifications and viewing the demonstration, the bureau will respond directly to the vendor in writing within 30 days of the demonstration stating if the system meets the minimum qualifications set forth for security cameras and has been approved for use in the City of New Orleans.

(7) The equipment required by this rule shall be maintained in good working order at all times. If an AT CPNC holder changes the security camera equipment, he or she must notify the bureau within 24 hours and the vehicle will be re-inspected to ensure compliance with this section.

(8) Every AT CPNC holder shall file, on a form designated by the bureau, a detailed description of the safety features to be installed in each AT vehicle. This form shall be submitted at the time of licensing, renewal of licensing, and whenever there is a change of the safety features to be used in the cab

(9) If bureau personnel or a New Orleans Police Department official requests access

to any record produced by the digital security camera systems to assist in the investigation of any complaint or crime, the taxicab company must provide access to the record within 24 hours. Records may only be accessed by bureau personnel or a New Orleans Police Department official, and only when a bureau complaint number or police complaint number has been generated.

(10) It shall be unlawful for any AT CPNC holder, taxicab company, or driver to allow any person to intentionally access any records produced by the security camera systems. Violation of this section shall be grounds for revocation of driver's permit and AT CPNC.

(11) It shall be unlawful for any AT vehicle driver to cover, tamper with, damage, disturb, remove or disable a digital security camera system in a taxicab. Violation of this section shall be grounds for revocation of driver's permit and AT CPNC.

(12) All AT vehicles shall be equipped with silent alarm feature to notify dispatch of danger.

(e) Insurance. The holder of an AT CPNC shall maintain liability insurance in accordance with section 162-287.

(f) Radio. Any AT vehicle must be equipped with a mobile radio or computerized communication system. Such systems must be in contact with a central dispatching facility at all times.

(g) Trips sheets.

(1) At the beginning of each period of duty the driver shall record on the driver's trip sheet:

a. The driver's name and the number of the taxicab;

b. The time at which the driver began the period of duty by means of a time clock provided by the certificate holder;

c. The meter readings for total miles, paid miles, trips, units, extra passengers and extra charges; and

d. The odometer reading of the taxicab.

(2) During each period of duty the driver shall record on the driver's trip sheet:

a. The time, place of origin and destination of each trip; and

b. The number of passengers and amount of fare for each trip.

(3) At the end of each period of duty the driver shall record on the driver's trip sheet:

a. The time at which the driver ended the period of duty.

b. The meter readings for total miles, paid miles, trips, units and extra passengers; and

c. The odometer reading of the taxicab. A certificate holder shall furnish a trip sheet form for each taxicab operated by a driver during the driver's period of duty.

(4) AT CPNC holder shall retain all trip sheets of all drivers in a safe place for a period of three years immediately succeeding December 31st of the year to which they respectively pertain and shall make such manifests available for inspection by the Bureau upon reasonable demand.

(5) Falsifying trip sheets shall be grounds for revocation of an AT driver's permit and an AT CPNC.

(h) Information to be displayed on AT vehicles. All AT vehicles shall have affixed to the following:

(1) AT CPNC number, affixed by means of permanent, nonmagnetic decals to the front left hood, the rear right trunk lid and each front fender, at least five inches in height, news gothic bold in style, with a width of at least three-eighths of an inch in a color that is most prominent against the background color. Name of

the AT CPNC holder in the correct area on each front fender at least two inches in height, in a bureau approved font with a width of at least three-eighths of an inch in a color that is most prominent against the background color.

(2) Name of company, painted or permanently affixed by decal, according to specifications provided by the director, to the right and left front doors.

(3) Schedule of rates, painted or permanently affixed by decal to the left and right rear doors.

(4) Schedule of rates; identifying information. Each taxicab shall have a schedule of passenger rights, [section] 162-455, affixed to the rear of both front seats a device, approved by the bureau, which shall hold a color photocopy of the driver's permit and the passenger's rights information.

(5) Logo and identification scheme. Each company shall submit to the bureau a company logo and identification scheme which shall not be the same or similar to any other and which within ten days shall be approved or rejected. Upon approval, the company logo and identification scheme shall be affixed to each AT vehicle. The logo and identification scheme shall be affixed to the left and right front doors and any other part of the vehicle, if applicable, and shall not be less than 12 inches in height, but not greater than 24 inches in height.

(6) Top lights.

a. Except for vehicles that have received an exterior advertising permit for a roof-top advertising display device, all AT vehicles shall be equipped with a top light permanently affixed to the exterior roof of the taxicab. The top light shall consist of three sections. The central section shall be inscripted in plain block numbers indicating the CPNC number of the accessible taxicab to which the top light is affixed. The left and right sections shall be identical to each other and shall display the words "off duty".

b. The top light, when lit, must be visible at 300 feet in normal sunlight.

c. The top light shall be installed and maintained in such manner that the top light will automatically be lit when the taximeter is not activated and the top light will automatically be unlit when the taximeter is activated. Each taxicab must be equipped with a driver-operable switch that will enable the driver to manually turn on and off the top light to display "off duty".

d. Prohibited items. No bumper stickers, or stickers other than those identifying markings approved by the bureau, shall be placed on the body of an AT vehicle. No advertising shall be allowed on the body of any AT vehicles.

(7) All AT vehicles will have an accessibility symbol affixed to them as prescribed by the bureau.

(i) Corrections and related matters:

Information to be Displayed	*Time Given for Corrections*
Company sign not properly affixed	Three days, or next inspection date
CPNC not placed correctly	Three days, or next inspection date
Trade name not placed correctly	
Faded/discolored vehicle markings	
Phone number or rate signs not properly located	Three days, or next inspection date
Taximeter	Meter passes at 40 seconds
Meter is fast	Do not operate
Meter is slow	Do not operate
Mechanism that must be operable	Three days or next inspection
Interior light or electrical problem	Three days or next inspection
(1) Headlights (one beam)	Three days or next inspection
(2) Taillights (one side)	Three days or next inspection
(3) Signal lights (one) tag light	Three days or next inspection

Information to be Displayed	*Time Given for Corrections*
(4) Both signals not operable	Do not operate
(5) Brake lights	Do not operate
(6) Door opener (handles)	Do not operate
Climate control	Do not operate
(1) Air conditioner (summer time) does not cool	Do not operate
(2) Heater will not warm up (winter time)	Do not operate
Loud muffler	Three days or next inspection
Trunk lock	Three days or next inspection
Tires:	
(1) Balding tires	Three days or next inspection
(2) Balding with thread showing	Do not operate
Windshield cracks:	
Cracks 12 inches or more	15 days to replace
Unattractive, or safety hazard	Do not operate
Overall paint job	15 days
Headliner	15 days
Spare tire:	
(1) No spare tire in trunk	Do not operate
(2) Bald and improper thread	Do not operate
(3) Spare tire not inflated	Have driver inflate right away
Interior light or electrical problem:	
Non-functional mobile radio or computerized communication system	Do not operate
Malfunctioning driver safety equipment	Do not operate
Non-operational or non-compliant credit and debit card processing equipment or receipt printing device	Do not operate

(j) Each holder will sign an affidavit that they agree to operate said AT CPNC 40 hours per week, 47 weeks per year. Additionally, AT CPNC holders will operate eight vehicles at the following times: 6:00 a.m.—2:00 p.m.; 2:00 p.m.—10:00 p.m.; 10:00 p.m.—6:00 a.m. AT CPNC holders may operate additional hours over the specific hours assigned to each AT CPNC.
(M.C.S., Ord. No. 24846, § 1, 4-19-12; M.C.S., Ord. No. 25746, § 1, 3-27-14; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Sec. 162-203. Procedure for issuing AT CPNCs.

The ground transportation bureau will issue AT CPNCs in accordance with the standards for issuance of new CPNCs provided in this division. (M.C.S., Ord. No. 24860, § 1, 4-19-12; M.C.S., Ord. No. 26392, § 2, 5-7-15; M.C.S., Ord. 27992, § 3, 2-7-19)

Secs. 162-204—162-240. Reserved.

DIVISION 3. DENIAL, REVOCATION OR SUSPENSION

Sec. 162-241. Permanent disqualification for certain offenses.

(a) Applicants for a driver's permit, or a renewal thereof shall never have been convicted of, or plead guilty to, anywhere under the laws of this state or any other state or of the United States any aggravated offense defined in R.S. 15:541 or murder.

(b) If an applicant for a new or renewal of a driver's permit has been arrested or charged with any offense enumerated in this section, consideration of the application shall be suspended until a conviction or dismissal is rendered. If after being charged, there is a judicial determination of no probable cause for the arrest, the suspension shall immediately cease. Upon conviction of an enumerated offense, the driver's permit shall be revoked.

(c) An arrest for any of the offenses listed in paragraph (a) above shall be grounds for an immediate interim suspension of an existing driver's permit. If after being charged, there is a judicial determination of no probable cause for the arrest, the suspension shall immediately cease. Upon conviction of an enumerated offense, the driver's permit shall be revoked.

(d) Any holder of a driver's permit or applicant for a new or renewed driver's permit or must notify the bureau in writing of any arrest, charge, or conviction of a crime within 15 days of receiving any such arrest, charge, or conviction. If the applicant or permit holder is incarcerated during this period, they shall notify the bureau

immediately upon release. Subsequently, they shall deliver to the bureau a certified copy of any order, judgment, or certificate of disposition issued by the clerk of the court within 15 days of disposition or sentencing.
(Code 1956, § 12-49; M.C.S., Ord. No. 25357, § 1, 6-20-13, eff. 6-30-13; M.C.S., Ord. No. 26596, § 1, 10-1-15; M.C.S., Ord. No. 27757, § 1, 5-3-18)

Sec. 162-242. Prescription for certain offenses.

(a) Applicants for a driver's permit or renewal thereof shall not have been convicted of, or plead guilty to, any felony other than those listed in section 162-241, within five years of the date of filing an application.

(b) Applicants for a driver's permit or renewal thereof shall not have been convicted of, or plead guilty to, any offense or equivalent offense of pandering, prostitution, soliciting for prostitution, or distribution of a controlled dangerous substance, as set forth in R.S. 40:961, et seq., within three years of the date of filing an application.

(c) Applicants for a driver's permit or renewal thereof shall not have been convicted of, or plead guilty to, the offense or equivalent offense of illegal possession or use of a controlled dangerous substance, as set forth in R.S. 40:961, et seq., within one year of the date of filing an application..

(d) Applicants for a driver's permit or renewal thereof shall not have been convicted of, or plead guilty to, any offense under the laws of this state or any other state or of the United States for the offense or equivalent offense of operating a vehicle while intoxicated within five years of the date of filing the application, or have more than three moving violations within a single calendar year.

(e) An applicant for a driver's permit shall not have been convicted of two or more felony offenses, in the last ten years, which stem from separate incidents.

(f) If an applicant for a new driver's permit has been arrested or charged with any offense enumerated in this section, consideration of the application shall be suspended until a conviction or dismissal is rendered. If after being charged, there is a judicial determination of no probable cause for the arrest, the suspension shall immediately cease. Upon conviction, the driver's permit shall be revoked.

(g) An arrest for any of the offenses listed in sections (a), (b), or (d) of this section shall be grounds for an immediate interim suspension or non-renewal of an existing driver's permit. If after being charged, there is a judicial determination of no probable cause for the arrest, the suspension shall immediately cease.

(1) Upon conviction for any of the offenses listed in this section the driver's permit shall be revoked.

(h) Any holder of a driver's permit or applicant for a new or renewed driver's permits must notify the bureau in writing of any arrest, charge, or conviction for any of the offenses listed in sections (a), (b), or (d) of this section within 15 days of receiving any such arrest, charge or conviction. If the applicant or permit holder is incarcerated during this period, they shall notify the bureau immediately upon release. Subsequently, they shall deliver to the bureau a certified copy of any order, judgment, or certificate of disposition issued by the clerk of the court within 15 days of disposition or sentencing.

(i) Any holder of a driver's permit or applicant for a new or renewed driver's permit or who was convicted of or plead guilty to any of the offenses listed herein whose record has been officially expunged for said offense(s) is eligible for a drivers permit.
(Code 1956, § 12-50; M.C.S., Ord. No. 24747, § 1, 2-16-12; M.C.S., Ord. No. 25356, § 1, 6-20-13, eff. 6-30-13; M.C.S., Ord. No. 26596, § 1, 10-1-15; M.C.S., Ord. No. 27757, § 1, 5-3-18)

Sec. 162-243. Specific causes for suspension or revocation.

(a) The director of the department of public works or a duly designated agent is hereby given authority to suspend for a period not exceeding 90 days or revoke, pursuant to the applicable

procedure, any driver's permit or CPNC for due cause whenever such party has to his discredit one of the following:

(1) Conviction in any court for violating any of the disqualifying provisions of this article;

(2) Finding by the director of the department of public works, after administrative hearings as set out hereinafter, that the holder of the permit or CPNC has failed to comply with the provisions of this chapter;

(3) A combination of convictions in any court and/or suspensions totaling five within one year;

(4) Operation of a vehicle regulated by the provisions of this article when the operator's permit is under suspension;

(5) Investigation by the supervisor of the ground transportation bureau revealing that the permit holder falsified or concealed information which would have disqualified such applicant as a recipient of a permit under this chapter.

(b) A driver's permit shall also be suspended or revoked for due cause whenever the party has to his discredit one of the following:

(1) Conviction in any court for drunken driving; or

(2) Five or more moving violation convictions of the traffic division of this Code or three or more convictions of moving violations within a period of 12 months.

(Code 1956, § 12-52; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-244. Exception provided for honorable discharge from military.

Where an applicant for a driver's permit or CPNC has been honorably discharged from the armed forces of the United States with a minimum of not less than one year's service, the disqualifications set forth in section 162-242 shall not apply to the period prior to such service, but offenses or convictions occurring subsequent to such discharge shall be applicable.

(Code 1956, § 12-51)

Sec. 162-245. Law enforcement to check applicant's record.

(a) The name, photograph, and fingerprints of all applicants for driver permits shall be submitted to a law enforcement agency, as authorized by the department of public works, for investigation, and a copy of the report shall be attached to the application and kept on file by the ground transportation bureau.

(b) Law enforcement agency/department investigating all applicants for driver's permits shall utilize all reasonably available federal, state and local crime enforcement networks.

(Code 1956, § 12-55; M.C.S., Ord. No. 18,700, § 2, 4-16-98; M.C.S., Ord. No. 24847, § 1, 4-19-12; M.C.S., Ord. No. 26596, § 1, 10-1-15; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-246. No addiction to intoxicating drugs.

The applicant for a driver's permit shall not be addicted to the use of intoxicating liquors and shall not use any controlled dangerous substance as set forth in R.S. 40:961, et seq., or any combination thereof, except under the supervision of a licensed physician for medical purposes and in the manner as set forth in section 162-247(e) of this article.

(Code 1956, § 12-53; M.C.S., Ord. No. 26595, § 1, 10-1-15)

Sec. 162-247. Drug tests and mandatory revocation for positive results.

(a) All applicants for a new or renewed driver's permit shall be required to take a drug test, at his or her expense, at a drug testing facility approved by the department of public works.

(b) The director of the department of public works may periodically require the holder of any driver's permit issued under this article to take

additional random drug tests to determine if such holder or driver uses any controlled dangerous substance as set forth in R.S. 40:961, et seq.

(c) Upon being involved in an accident in a vehicle for hire, the operator of the vehicle for hire at the time of the accident must submit to drug testing within 48-hours of the accident.

(d) Should any drug test prove positive for a controlled dangerous substance as set forth in R.S. 40:961, et seq., or any combination thereof, the driver's permit shall be summarily suspended pending a full revocation hearing. Proof of a positive test at such hearing shall result in a mandatory denial of an application for or renewal of a driver's permit or revocation of an existing driver's permit, unless he is able to assert an affirmative defense under section 162-247(e) below.

(e) If a person testing positive has a valid and legal prescription for the medication for which he tested positive, such person may have an affirmative defense to revocation under the following limited circumstances. The prescription must be issued by a licensed physician, in compliance with the laws of the State of Louisiana. Further, the prescription must be accompanied by a written certification from the physician that he prescribed the medication, that the physician is familiar with the person's medical history (including drug and alcohol use and other medications), that the person has not been diagnosed with any substance abuse issue, and that the prescribed drug will not adversely affect that applicant's ability to operate a motor vehicle safely. Such affirmative defense is not applicable to any person who was issued a prescription under R.S. 40:1046.

(f) If a person testing positive has a valid and legal prescription for the medication for which he tested positive, such person may have an affirmative defense to revocation under the following limited circumstances. The prescription must be issued by a licensed physician, in compliance with the laws of the State of Louisiana. Further, the prescription must be accompanied by a written certification from the physician that he prescribed the medication, that the physician is familiar with the person's medical history (including drug and alcohol use and other medications), that the person has not been diagnosed with any substance abuse issue, and that the prescribed drug will not adversely affect that applicant's ability to operate a motor vehicle safely.

(Code 1956, § 12-54; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24861, § 1, 4-19-12; M.C.S., Ord. No. 25328, § 1, 6-6-13; M.C.S., Ord. No. 26432, § 1, 6-4-15; M.C.S., Ord. No. 26595, § 1, 10-1-15; M.C.S., Ord. No. 28241, § 1, 11-21-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

State law reference—Drug testing, R.S. 49:1001 et seq.

Sec. 162-248. Provisions for hearing and appeal of denial or revocation of driver's permit or CPNC.

(a) The director of the department of public works or a duly designated agent may deny or revoke the issuance of a CPNC whenever, in the exercise of reasonable and sound discretion and after giving notice and affording the applicant or holder a hearing thereon, the director shall determine that the applicant or holder is in violation of this chapter. The director shall conduct a hearing in accordance with the provisions of R.S. 49:951 et seq.

(b) If the hearing results in the denial or revocation of a CPNC, then the party involved may thereafter appeal to the Civil District Court for the Parish of Orleans within 30 working days of the decision.

(Code 1956, § 12-56; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24724, § 2, 1-5-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

State law reference—Administrative Procedure Act, R.S. 49:951 et seq.

Sec. 162-249. Suspension hearing.

(a) The director of the department of public works or a duly designated agent shall have the authority to suspend for not more than 90 days the CPNC or driver's permit of a holder in violation of any section of this chapter, provided that the party shall be first afforded notice of a hearing at which the holder will be permitted to present a defense, the convocation of such a hearing at the ground transportation bureau , and the written reasons for the suspension by

the supervisor of the ground transportation bureau of the department of public works in the event of a decision of suspension.

(b) If the hearing results in the suspension of a CPNC or driver's permit, the party involved may appeal to the civil district court.
(Code 1956, § 12-57; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-250. One-year prohibition against application after revocation.

No person whose CPNC or permit has been revoked, pursuant to the procedure required by this article, shall be permitted to file an application for a new permit or CPNC under this chapter within a period of 12 months after such revocation. If after such period application is made, the applicant shall have met all the requirements and qualifications provided in this chapter for original applicants. The director of the department of public works has the discretion to issue a probationary license or permit at an established fee for a period of 12 months. Such probationary license or permit shall be revocable by the director of the department of public works in the exercise of sound discretion, for any violation of the law.
(Code 1956, § 12-58; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-251—162-280. Reserved.

DIVISION 4. INSURANCE

Sec. 162-281. Liability for certificate holders.

Persons to whom CPNC's have been issued in accordance with the provisions of this article shall be liable and answerable in damages for all injuries or damages whatsoever caused directly or indirectly by the use or operation of the CPNC holder's for-hire vehicles, whether at the time of the injury or damages such for hire passenger vehicles were being used or operated by the owner, agent, servant or employee or other persons not agents, servants or employees of the holder, unless proof is shown that the vehicle was stolen.
(Code 1956, § 12-61)

Sec. 162-282. Liability coverage required.

No for-hire vehicle subject to the provisions of this chapter shall be permitted to operate on the streets of the city by any owner and/or operator until such party shall have first provided personal injury and property damage liability coverage for each such vehicle in the manner and in the amount specified hereinafter in this article. The ground transportation bureau shall maintain a continuous check of the liability coverage of each taxicab and for-hire vehicle specified in this chapter and shall not permit any such vehicle to operate without the required coverage.
(Code 1956, § 12-62; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-283. Coverage by insurance policy.

No insurance policy submitted to the ground transportation bureau to provide coverage provided by this division shall be accepted unless the same shall be written by a public insurance company authorized to do business in the state, shall be issued to such person, shall be in the amounts specified in and shall conform to all the requirements of this division, and shall not stipulate that any person who may sustain damage to their person or property resulting from such negligent operation of such vehicles, shall have their right of action on such policy as fully and to the same extent as if such policy were made and executed directly in favor of the claimant for such damages, and shall contain a clause providing ten days' notice by certified mail of expiration or cancellation to be given to the ground transportation bureau as well as to the policyholder, provided that no policy will be accepted for a shorter period than six months nor shall any policy be accepted that has an expiration date in advance of the expiration date of the CPNC applicable to the vehicle for which coverage is being provided. Such insurance written under this section may be in either an admitted company or a surplus line company certified to do business in the state, provided

that if same be written in a surplus line company, such company shall have a minimum rating with A.M. Best Company of A, Class V.
(Code 1956, § 12-63; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-284. Effectiveness of certificate.

The certificate for any and all for-hire vehicles of an owner thereof shall be effective and operation shall be permitted thereunder only so long as the insurance requirements as to such vehicle shall remain in force as therein provided.
(Code 1956, § 12-64)

Sec. 162-285. Enforcement.

The provisions of this division may be enforced by appropriate civil remedy in any court of competent jurisdiction by governmental authority or by any person having an interest affected, directly or indirectly, by any violation thereof.
(Code 1956, § 12-65)

Sec. 162-286. Revocation of vehicle license for failure to provide liability coverage.

Unless the certificate of public necessity and convenience holder furnishes the ground transportation bureau with satisfactory evidence of required legal liability coverage prior to the expiration of the first seven days of the ten-days' notice specified in this chapter, or upon the third notice of cancellation within a 12-month period, the certificate of public necessity and convenience shall be subject to revocation after a hearing held by the director of the department of public works as set forth in section 162-248.
(Code 1956, § 12-66; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-287. Coverage amounts.

Each for-hire vehicle subject to the provisions of this chapter shall be represented by a policy of liability insurance issued by an insurance company licensed to do business in the State of Louisiana. At a minimum, and in accordance with state and/or federal requirements, the policy must provide the following coverage:

(a) *Taxicabs and accessible taxicabs:* $25,000.00 to satisfy all claims for damages by reason of bodily injury to, or death of, any one person resulting from any one accident; $50,000.00 to satisfy all claims for damages by reason of body injury to, or death of, two or more persons resulting from any one accident; and $25,000.00 to satisfy all claims for damage to property resulting from any one accident, by reason of the ownership, operation, maintenance or use of such vehicle upon any street.

(b) *Non-taxicabs licensed to carry under 9 passengers:* $250,000.00 to satisfy all claims for damages by reason of bodily injury to, or death of, any one person resulting from any one accident; $500,000.00 to satisfy all claims for damages by reason of body injury to, or death of, two or more persons resulting from any one accident; and $10,000.00 to satisfy all claims for damage to property resulting from any one accident, by reason of the ownership, operation, maintenance or use of such vehicle upon any street.

(c) *Non-emergency medical transport (NEMT):* At a minimum, automobile liability insurance in the amount of $25,000.00 per person, $50,000.00 per accident, and $25,000.00 property damage is required. The liability policy shall cover any and all autos; hired autos; and non-owned autos; *or* scheduled autos; hired autos; and non-owned autos. In addition, general commercial liability insurance in the amount of $100,000.00 on the business entity is required.

(d) *Non-taxicabs licensed to carry 9 to 15 passengers:* $1,000,000.00 combined single limit for any combination of bodily injury, death, and property damage liability claims resulting from any one accident, by reason of the ownership, operation, maintenance, or use of such vehicle upon any street.

(e) *Non-taxicabs licensed to carry over 15 passengers:* $1,000,000.00 combined single limit for any combination of bodily injury, death, and property damage liability claims resulting from any one accident, by reason of the ownership, operation, maintenance, or use of such vehicle upon any street.

(Code 1956, § 12-67; M.C.S., Ord. No. 16,880, § 2(a), 2-2-95; M.C.S., Ord. No. 28241, § 1, 11-21-19; M.C.S., Ord. No. 28421, § 1, 7-16-20; M.C.S., Ord. No. 28626, § 1, 3-11-21)

Sec. 162-288. Reserved.

Editor's note—M.C.S., Ord. No. 28241, § 1, adopted Nov. 21, 2019, repealed § 162-288, which pertained to coverage amounts—Generally—More than 12 passengers and derived from Code 1956, § 12-68. The user's attention is directed to § 162-287.

Secs. 162-289—162-320. Reserved.

DIVISION 5. TRANSFER OF FOR-HIRE VEHICLE

Sec. 162-321. Prerequisites generally.

Upon the sale or transfer of any taxicab or for-hire vehicle, except for accessible taxicabs which cannot be transferred under any circumstances, consideration may be received by the vendor or transferor or other person or paid thereto by the vendee or transferee for the transfer of the permit governing such vehicle. The CPNC may be transferred provided that the following requirements are met:

(1) A written statement is submitted to the ground transportation bureau including the following information:

a. The name and address of the transferor;

b. The CPNC number and the date the vendor or transferor received same;

c. A description of the vehicle transferred to include make, body type and year the new vehicle was placed on the market;

d. The price for which the permit and the vehicle were transferred.

(2) Payment of to the bureau of transfer fees and non-refundable processing fees as described in [section] 162-324.

(3) The transferee shall submit an application for a CPNC to the bureau and shall meet all requirements for same in this chapter.

(4) The ground transportation bureau shall be provided a certified copy of a binding agreement to transfer the CPNC which shall be due and eligible upon demand by either the transferor or the transferee, on the condition that the qualifications of the transferee as a permit holder are approved by the bureau.

(5) The vehicle of the transferee shall have been inspected for approval and approved for issuance of a for-hire vehicle inspection certificate, and otherwise comply with all of the requirements of this chapter.

(6) Before any transfer may become effective, the transferor and the transferee shall apply to the director who shall approve the transfer upon the determination that the transferee meets the qualifications of a CPNC holder under this chapter. In determining whether a proposed transferee is qualified to obtain a CPNC, the director shall apply the same standards and requirements as a new applicant. No CPNC may be transferred if suspension or revocation proceedings are pending with the bureau.

(Code 1956, § 12-78; M.C.S, Ord. No. 16,880, § 2(b), 2-2-95; M.C.S., Ord. No. 24848, § 1, 4-19-12; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-322. False statements.

Any false statement made pursuant to the requirements for transfer by either party for the purpose of obtaining a CPNC or transferring a CPNC shall constitute a violation of this article and shall constitute cause for rejection of the application for transfer and may constitute cause for suspension or revocation of the CPNC.

(Code 1956, § 12-79)

Sec. 162-323. Denial.

The director of the department of public works shall not approve the transfer or reissuance of the certificate of public necessity and convenience if the vehicle fails to meet the requirements for issuance of the for-hire vehicle inspection certificate by the for-hire vehicle inspection station. Such vehicle must have satisfactorily passed inspection by the station within 15 days of the date of application for transfer of the CPNC.
(Code 1956, § 12-80; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-324. Processing fee.

Upon application for transfer or reissuance of a certificate under this division, the applicant shall pay a fee of $350.00 for the transfer to cover the administrative cost of transferring such certificate.
(Code 1956, § 12-81; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Secs. 162-325—162-375. Reserved.

ARTICLE IV. FOR-HIRE VEHICLE INSPECTIONS*

Sec. 162-376. Required.

The director of the department of public works shall cause each vehicle for which a certificate of public necessity and convenience has been issued to be inspected as prescribed in this article, unless otherwise provided in this chapter. The director of the department of public works shall make available a list of the items which shall be inspected when a vehicle is subject to inspection. When the vehicle has met all of the requirements of this article and of the for-hire vehicle inspection station, and the required fees have been paid by the licensee, the director of the department of public works shall issue a for-hire vehicle inspection certificate of such size, color and form as may be determined by the aforesaid director and shall cause same to be affixed to the windshield of the vehicle. The for-hire vehicle inspection certificate shall be identified by number. If it becomes damaged or destroyed, a duplicate shall be issued by the director of the department of public works after application has been made.
(Code 1956, § 12-83; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-377. Schedule for inspections.

(a) Every taxicab, for-hire vehicle, or courtesy vehicle for which a CPNC has been issued pursuant to the provisions of this chapter shall be submitted to the for-hire vehicle inspection station by the CPNC holder, or their authorized designee, for mechanical inspection annually.

(b) With respect to the annual inspection requirement of section (a), above, any vehicle operating as a taxicab in or after its ninth year, as provided by section 162-613, shall be subject to an annual inspection by a mechanic certified by the National Institute for Automotive Service Excellence (ASE) or by the State of Louisiana to certify that engine and transmission meet the state or ASE standards. The vehicle must pass inspection favorably each year and submit such proof to the city.
(Code 1956, § 12-85; M.C.S., Ord. No. 17,164, § 1, 9-7-95; M.C.S., Ord. No. 26289, § 2, 3-12-15; M.C.S., Ord. No. 27148, § 1, 11-3-16, eff. 1-1-17; M.C.S., Ord. No. 27180, § 1, 11-3-16; M.C.S., Ord. No. 27980, § 1, 1-10-19)

Sec. 162-378. Nonscheduled inspections.

All motor vehicles operated in accordance with the provisions of this chapter engaged in transporting passengers for hire shall at all times be subject to inspection and be maintained in a condition of mechanical fitness with respect to each element of safety as is required by the laws of this state and all regulations as may be enacted by the city council. The supervisor of the ground transportation bureau of the department of public works shall have the power and authority to require inspections from time to time, other than those herein prescribed, when same through reason and sound judgment are deemed necessary.
(Code 1956, § 12-86; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

*__Cross reference—__Certificates of public necessity and convenience, § 162-151 et seq.

Sec. 162-379. Special inspections.

(a) Every taxicab and for-hire vehicle shall be submitted by the CPNC holder, or their authorized designee, for mechanical inspection as follows:

(1) Upon initial issuance of the certificate of public necessity and convenience and before placing the vehicle in service;

(2) Whenever there is a transfer of the vehicle from one person to another;

(3) Whenever the vehicle has been involved in an accident requiring repairs; or

(4) Whenever there has been a change of taximeters in taxicabs or the installation of an advertising card holder in a licensed vehicle.

(b) The CPNC vehicle shall not be operated and the CPNC tag removed but not replaced when:

(1) The vehicle fails to meet the requirements of the inspection as provided in this chapter; or

(2) The vehicle has failed to pass an inspection by the for-hire vehicle inspection station to determine that the vehicle is safe and in satisfactory mechanical condition, including inside and outside appearance.

(Code 1956, § 12-87; M.C.S., Ord. No. 26289, § 3, 3-12-15)

Sec. 162-380. Criteria and regulation of inspection standards.

Notwithstanding any other provision of this chapter to the contrary, the director of the department of public works shall have the authority to inspect for hire vehicles, other than taxicabs, where they are customarily housed or at inspection locations deemed appropriate by the director.

(1) Investigators may issue a "do not operate" for vehicles with no air conditioner, no heater, no brake lights, broken door handles, balding tires, or for safety hazards.

(2) Each for hire vehicle shall be maintained in a clean condition. There shall be no tears or rust holes in the vehicle body and no loose pieces such as fenders, bumpers or trim hanging from the vehicle body. There shall be no unrepaired body damage or any body condition that would create a safety problem or interfere with the operation of the vehicle. There shall be no tears or rust holes. Failure to maintain a vehicle in such a condition may result in a "do not operate."

(3) Grills of all vehicles must be in place and complete. Paint must be well-blended with the natural configuration and color of the vehicle. Repairs should have a smooth surface. Engines must not give off excessive smoke/fumes or noise. Failure to maintain a vehicle in such a condition may result in a do not operate.

(4) The time frame that deficient vehicles may operate with minor deficiencies, such as no hubcaps and deficiencies with signage is set at three days or the next inspection date, whichever is sooner.

(5) The time frame that vehicles may operate when deficient for full paint job only is set at 15 calendar days.

(6) "Vehicles for hire" shall be inspected in accordance with the following criteria:

i. *For hire inspection criteria:*
   a. Proof of insurance;
   b. CPNC certificate;
   c. Vehicle registration;
   d. All motor vehicles must have a current and valid safety inspection sticker (brake tag); and

ii. *Taxicabs:*
   a. *Exterior check list:*
      1. Head lights;
      2. Taillights;
      3. Stop and turn light signals;
      4. License plate light;
      5. Windshield (no dangerous cracks);

6. Vent glass;
7. Windshield wipers;
8. All door glass as well as rear window glass;
9. Door risers (glass riser);
10. Fenders;
11. Doors and door locks;
12. Main body;
13. Trunk lid;
14. Splash shields;
15. Bumpers;
16. Hub caps;
17. Color scheme;
18. CPNC numbers;
19. Stripes and stripe colors;
20. Name of CPNC holder (owner) in correct area (front fender);
21. Exhaust system (muffler and tail pipes);
22. Wheel alignment, toe in and camber (front wheels not more than one-half inch of play (in and out movement));
23. Tires, free of visible fabric tears or bulges;
24. Parking brakes (must be capable of holding vehicle on an incline);
25. Interior of vehicle (upholstery, floor mats, head lining, door panels) must be clean. Rate stickers must be displayed (interior rear);
26. Trunk compartment (must be clean and neat, should contain only radio equipment, tools and spare tire, with sufficient space for luggage). Solid flooring; and
27. Check meters, Passenger Information Systems (PIMs), camera systems, silent alarm, Global Positioning Systems (GPS).

b. *Interior checklist:*
   1. Rear view mirror;
   2. Steering wheel (should not have more than four inches free play and free from rough movement); and
   3. Foot brakes (when applied should be effective (hold) with at least two inches pedal reserve and equalized).

c. *Information to be displayed.* All taxicabs shall the following affixed to the taxicab:
   1. CPNC number, affixed by means of permanent, nonmagnetic decals to the front left hood, the rear right trunk lid and each front fender, at least five inches in height, news gothic bold in style, with a width of at least three-eighths of an inch in a color that is most prominent against the background color. Name of the CPNC holder in the correct area on each front fender at least two inches in height, in a bureau-approved font with a width of at least three-eighths of an inch in a color that is most prominent against the background color.
   2. Name of company, painted or permanently affixed by decal, according to specifications provided by the director, to the right and left front doors. All telephone numbers shall include the area code.

3. Schedule of rates, painted or permanently affixed by decal to the left and right rear doors.
4. Schedule of rates; identifying information. Each taxicab shall have a schedule of passenger rights, 162-455, affixed to the rear of both front seats a device, approved by the bureau, which shall hold a color photocopy of the driver's permit and the passenger's rights information.
5. Logo and identification scheme. Each company shall submit to the bureau a company logo and identification scheme which shall not be the same or similar to any other and which within ten days shall be approved or rejected. Upon approval, the company logo and identification scheme shall be affixed to each taxicab. The logo and identification scheme shall be affixed to the left and right front doors and any other part of the vehicle, if applicable, and shall not be less than 12 inches in height, but not greater than 24 inches in height.
6. Top lights.
   (a) All taxicabs shall be equipped with a top light affixed to the exterior roof of the taxicab magnetically or with door bracket. The top light shall consist of three sections. The central section shall be inscribed in plain block numbers indicating the CPNC number of the accessible taxicab to which the top light is affixed. The left and right sections shall be identical to each other and shall display the words "off duty".
   (b) The top light, when lit, must be visible at 300 feet in normal sunlight.
   (c) The top light shall be installed and maintained in such manner that the top light will automatically be lit when the taximeter is not activated and the top light will automatically be unlit when the taximeter is activated. Each taxicab must be equipped with a driver-operable switch that will enable the driver to manually turn on and off the top light to display "off duty".
   (d) The ground transportation bureau shall adopt rules establishing criteria for approved top light designs within 30 days of the adoption of this ordinance.

iii. *Buses.* Buses must be equipped with the following:
   a. Two market lights, amber color, one on each side front. Same in rear mounted on upper side of vehicle;

b. Clearance lights, same as above, amber in front, red in rear on top of vehicle;

c. Fire extinguisher, air pressure recovery; and

d. Current LPSC certificate (inspection) LPSC numbers painted on vehicle.

iv. *Animal drawn vehicles:*

a. Must be in good physical condition;

b. Steps must be secure;

c. Check for cracks in body frame;

d. Fifth wheel, and all other wheels, for end play, good hubs and spokes; and

e. Check shaft and visible condition of all harnesses.

(7) This provisions of this section shall become effective of August 1, 2012.

(Code 1956, § 12-7; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 22085, § 1, 11-17-05; M.C.S., Ord. No. 24849, § 1, 4-19-12; M.C.S., Ord. No. 24994, § 1, 8-23-12; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 29981, § 1, 7-11-24)

Sec. 162-381. Renewal certificate required.

It shall be unlawful for any owner or driver, as defined herein, to operate any taxicab, for-hire vehicle, or courtesy vehicle for which a permit has been issued under this article without a valid for-hire vehicle renewal certificate pasted on the windshield, as provided herein.

(Code 1956, § 12-84; M.C.S., Ord. No. 17,164, § 1, 9-7-95)

Sec. 162-382. Suspension for failure to renew certificate.

Failure of a CPNC holder to submit a vehicle for inspection at the time required by the department of public works, pursuant to the provisions of this chapter, or whenever requested by the department of public works, and to have at all times the required for-hire vehicle renewal certificate affixed on the windshield thereof or a duplicate should same be destroyed shall, in addition to the penalties provided therefor, be subject to the suspension of a holder's CPNC in the discretion of the director of the department of public works or a duly designated agent of the director.

(Code 1956, § 12-91; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-383. Expiration and renewal of inspection certificate.

Each for-hire vehicle renewal certificate issued by the for-hire vehicle inspection station pursuant to the provisions of this article, unless sooner removed for cause, shall expire at the end of the month of the next scheduled inspection by the department of public works; shall be renewable on the first of such month; and shall show by numeral on the face thereof the subsequent month scheduled for its expiration and renewal.

(Code 1956, § 12-88; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-384. Expired inspection certificate.

Unless the for-hire vehicle renewal certificate is renewed prior to ineligibility, each such certificate shall become invalid for operation on the applicable expiration date as set forth in a schedule determined by the director of the department of public works.

(Code 1956, § 12-89; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-385. Renewal of certificate.

Each renewal certificate in good standing shall be renewable by the director of the department of public works semiannually provided that:

(1) The vehicle has been inspected by the for-hire vehicle inspection station and has been issued a for-hire vehicle renewal certificate by the department of public works.

(2) The holder meets the requirements set forth in this chapter and by the director of the department of public works.

(Code 1956, § 12-92; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-386. Delinquency penalty.

There shall be a penalty of $2.00 per day of delinquency whenever a vehicle is not submitted to the department of public works during the months listed in the schedule contained in this chapter. There shall be a charge of $5.00 for each duplicate vehicle inspection certificate issued for each substituted vehicle.
(Code 1956, § 12-90; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-387. Removal of renewal certificate.

Upon completion of the vehicular inspection, the department of public works shall, if necessary, replace any for-hire vehicle renewal certificate previously issued for such vehicle with the proper for-hire vehicle renewal certificate, which shall be affixed to the windshield of the vehicle. If any vehicle is found defective at any time, the current for-hire vehicle renewal certificate shall be removed and a new for-hire vehicle renewal certificate shall not be issued until all defects found to exist have been corrected.
(Code 1956, § 12-94; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-388. Liability coverage requirement.

If the liability coverage of any vehicle does not meet the requirements of this chapter at the time of its inspection and/or at any other time, the current for-hire vehicle renewal certificate shall be removed, and a new for-hire vehicle renewal certificate shall not be issued until such liability coverage shall properly meet the requirements of this article.
(Code 1956, § 12-95)

Sec. 162-389. Correction slips for temporary use.

If a vehicle for hire fails to pass the requirements of the Bureau's inspection, a correction slip shall be issued to the driver listing the items that need correction and showing the status of the inspection. The vehicle shall not be operated as a vehicle for hire until it successfully passes inspection. The director of public works may allow the temporary use of a vehicle which substantially complies with the inspection requirements for a period of time as set forth in the chart below. However, in no instance may the temporary use of a vehicle pending full compliance exceed 15 days.

Information to be Displayed	*Time Given for Corrections*
Company sign not properly affixed	Three days, or next inspection date
CPNC not placed correctly	Three days, or next inspection date
Trade name not placed correctly	
Faded/discolored vehicle markings	
Phone number or rate signs not properly located	Three days, or next inspection date
Taximeter	Meter passes at 40 seconds
Meter is fast	Do not operate
Meter is slow	Do not operate
Mechanism that must be operable	Three days or next inspection
Interior light or electrical problem	Three days or next inspection
(1) Headlights (one beam)	Three days or next inspection
(2) Taillights (one side)	Three days or next inspection
(3) Signal lights (one) tag light	Three days or next inspection
(4) Both signals not operable	Do not operate
(5) Brake lights	Do not operate
(6) Door opener (handles)	Do not operate
Climate control	Do not operate
(1) Air conditioner (summer time) does not cool	Do not operate
(2) Heater will not warm up (winter time)	Do not operate
Loud muffler	Three days or next inspection
Trunk lock	Three days or next inspection
Tires:	
(1) Balding tires	Three days or next inspection
(2) Balding with thread showing	Do not operate
Windshield cracks:	
Cracks 12 inches or more	15 days to replace
Unattractive, or safety hazard	Do not operate
Overall paint job	15 days
Headliner	15 days
Spare tire:	

Information to be Displayed	*Time Given for Corrections*
(1) No spare tire in trunk	Do not operate
(2) Bald and improper thread	Do not operate
(3) Spare tire not inflated	Have driver inflate right away
Interior light or electrical problem:	
Non-functional mobile radio or computerized communication system	Do not operate
Malfunctioning driver safety equipment	Do not operate
Non-operational or non-compliant credit and debit card processing equipment or receipt printing device	Do not operate

(Code 1956, § 12-96; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24850, § 1, 4-19-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-390—162-440. Reserved.

ARTICLE V. DRIVER REGULATIONS

Sec. 162-441. Rules and regulations generally.

The department of public works shall provide each driver with a valid driver's permit and a copy of the general rules and regulations set forth in this chapter and established by the director of the department of public works applicable to drivers as licensed under this chapter.
(Code 1956, § 12-130; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-442. Operation of unsafe vehicle prohibited.

It shall be a violation of this article for any owner or any driver to transport or offer to transport for pay any passenger or to drive any vehicle for which a permit has been issued under this article while such vehicle is unsafe and in an unsuitable condition for such use, whether or not such vehicle bears a current for-hire vehicle renewal certificate.
(Code 1956, § 12-93)

Sec. 162-443. Safe and legal operation of vehicle.

Every for hire passenger motor vehicle shall be operated in accordance with the laws of the state and the laws of this city and with due regard for the safety, comfort and convenience of passengers and for the safe and careful transportation of property and for the safety of the general public.
(Code 1956, § 12-119)

Sec. 162-444. Speed of vehicle.

No for hire passenger motor vehicle shall be operated at a rate of speed greater than that established by state laws or by this Code; nor, in any event, without proper regard for the traffic surface and width of the highway and the hazards at intersections and any other conditions then existing; nor in such manner or condition as to endanger or to be likely to endanger the safety of passengers, pedestrians, vehicles or the persons and property of others.
(Code 1956, § 12-120)

Sec. 162-445. Operation of vehicle while under influence of liquor or drugs prohibited.

It shall be unlawful for any person to drive or operate any vehicle regulated by this chapter with or without passengers while under the influence of intoxicating liquor or narcotic drugs or any barbituric acid derivative or any central nervous system stimulant, or to sell, use or to possess any such narcotic drugs or any barbituric acid derivative or central nervous system stimulant except while under treatment of a licensed physician with the medication in a prescription bottle.
(Code 1956, § 12-121)

Sec. 162-446. Driver's good conduct.

No person to whom a driver's permit has been issued under the provisions of this article shall interfere with, impede, obstruct the legal operation of or intentionally damage any vehicle or its equipment authorized to operate under the provisions of this chapter; nor shall any person threaten, abuse, insult, provoke, interfere with,

impede or obstruct any passenger, prospective passenger or any other person in connection with operations under this chapter.
(Code 1956, § 12-122)

Sec. 162-447. Driver not to smoke.

No driver of a for hire passenger vehicle shall smoke a cigarette, cigar or pipe, nor shall the driver possess a lighted cigarette, cigar or pipe, while the vehicle is occupied by a passenger.
(Code 1956, § 12-126)

Sec. 162-448. Driver's personal appearance.

Every driver while operating a for-hire vehicle shall be neat and clean in appearance at all times.
(Code 1956, § 12-129)

Sec. 162-449. Taxicab driver's dress code.

(a) In addition to the requirements provided in this chapter, every owner, and/or operator of any for-hire vehicle who possesses a CPNC and/or a valid chauffeur's license shall wear the following apparel and maintain the following grooming standards while transporting passengers for hire:

(1) Male taxi drivers shall wear long pants, shirts with collars and sleeves, and shoes. Shoes shall be clean, closed-in and worn with socks. Hair, beards and/or moustaches shall be neat, trimmed and present a groomed appearance. Chauffeur's style caps may be worn.

(2) Female taxi drivers shall wear long pants or skirts, shirts with collars and sleeves, and shoes. Shoes shall be clean, closed-in and worn with socks or stockings. Hair shall be neat, trimmed, and present a groomed appearance. Chauffeur's style caps may be worn.

(3) Taxicab and carriage drivers may wear knee-length walking style shorts with a short sleeve or a polo shirt, white socks and a leather top shoe with a rubber sole with the approval of the line or company, during seasonal periods designated by the director of the department of public works. Low cut, sleeveless shirts and tank tops shall not be worn. Cut-off jeans shall not be used. Sheer, transparent or fish net materials shall not be used for any apparel.

(b) No owner and/or operator of any for-hire vehicle who possesses a CPNC and/or valid chauffeur's license shall, while transporting passengers for hire, wear sleeveless shirts, tennis shoes, sandals, slippers, jumpsuits or coveralls/overalls.

(c) Failure to comply with the provisions of this section shall subject the owner and/or operator of the vehicle for hire to the penalties provided for in this chapter.
(Code 1956, § 12-132; M.C.S., Ord. No. 18,747, § 1, 6-4-98; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-450. Solicitation for prostitution, violation of law.

(a) No driver of any for-hire vehicle licensed to operate on the streets of the city pursuant to this article shall solicit any person, either in or out of the vehicle, to transport such person to any place in the city or elsewhere in the state for the purpose of participation in prostitution, sexual lewdness or obscenity, or for the purpose of participation in the violation of any law of the state.

(b) It shall be unlawful for any driver of any vehicle licensed to operate under this chapter to permit any person to occupy or use such vehicle for the purpose of prostitution or pandering, or the violation of any other law of this state or ordinance of this city. It shall be unlawful for any driver, as mentioned in this section, to allow or permit the use of the vehicle for any of the purposes prohibited in this entire section where the driver has knowledge or reasonable cause to believe that the vehicle is to be used, or is being used for such unlawful purpose.
(Code 1956, § 12-123)

Sec. 162-451. Public utilities solicitation.

No person operating a motor vehicle described in this chapter, nor their agents, servants or

employees, shall solicit the patronage of any person at the terminus of any public utility engaged in the transportation of passengers under a franchise or an indeterminate permit issued by the city; nor shall they solicit the patronage of any person at intermediate points along any established route of such public utility, which persons are not at such terminus or along such routes for the purpose of using the services of such public utility. This provision shall not prohibit or interfere with the response to any call for a public vehicle made by telephone or by signal from a pedestrian without such solicitations; provided, however, that this section shall not apply to solicitations at railroad or bus stations, depots, ferry landings or steamship landings.
(Code 1956, § 12-124)

Sec. 162-452. Diversion of passenger from designated destination.

It shall be unlawful for the operator of any for-hire vehicle governed by this article to divert or attempt to divert a passenger in any such vehicle from a legitimate destination designated by such passenger. It shall likewise be unlawful for any and all parties concerned to enter into an agreement between such operator and the owner, agent or employee of a commercial enterprise whereby any such passenger would be diverted or attempted to be diverted from the destination of the passenger to another destination of to offer, ask, give or receive any remuneration for such diversion or attempted diversion of a passenger or passengers.
(Code 1956, § 12-125)

Sec. 162-453. Lost articles in taxicabs.

(a) Taxicab drivers are required to notify the ground transportation bureau when lost items are recovered. Such notice shall be provided by the driver within one working day of the discovery of the article and should contain the following information:

(1) Description of the article; and

(2) Location where the article was found.

(b) All such recovered articles must be deposited with the ground transportation bureau within two working days of their discovery. The driver shall receive a receipt for each article deposited with the ground transportation bureau and may claim such article six months after deposit by surrendering the receipt to the bureau. If the article has been recovered by the owner, the bureau shall provide the driver with the name and the address of such owner.
(Code 1956, § 12-127; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-454. Vehicle to be kept clean.

Every driver of a for hire passenger vehicle shall keep the interior of such vehicle clean and in a sanitary condition at all times. The exterior of each vehicle shall at all times be kept in a presentable condition.
(Code 1956, § 12-128)

Sec. 162-455. Passengers' rights notice.

(a) Every driver of a taxicab for hire passenger vehicle shall display on the back of the front seat of each for-hire vehicle operated by such driver in such a position as to be clearly visible to passengers the following notice:

As a passenger in a City of New Orleans For-Hire Vehicle, you should note the CPNC (Certificate of Public Necessity and Convenience) Number of this For-Hire Vehicle and Be Aware that you are entitled to the following:

(1) A clean vehicle in good condition (interior, exterior and trunk compartments);

(2) A safe, well-maintained taxi with operating heat and air conditioning turned on/off at your request;

(3) A clean and noise-free environment;

(4) Working seat belts for all passengers;

(5) Be accompanied by a service animal;

(6) A driver who speaks and understands English and is knowledgeable of the metropolitan area;

(7) A driver who maintains a neat and well groomed appearance and operates in a professional and courteous manner;

(8) A safe driver who obeys all traffic laws;

(9) A driver who limits the use of mobile phones devices (hand held or hands free) while driving and complies with R.S. 32:300.5, which prohibits text messaging while operating a motor vehicle;

(10) Be transported to destination by means of the most direct efficient route or direct the driver to the destination by providing the route;

(11) Pay for the transportation based exclusively on an operating taximeter or special events rates established in chapter 162, section [article] VII, division 4 of the Code of Ordinances for the City of New Orleans;

(12) Upon request, receive a completed receipt, which includes the cab number, company name, driver's name, pickup location, destination and fare;

(13) An explanation of any fare charged;

(14) Decline to tip for poor service and choose to tip for good service.

(15) Any compliment or concerns should be referred to the ground transportation bureau at: 504-658-7176.

(b) The department of public works shall provide each driver with a copy of such notice of passenger rights. The CPNC number shall be listed on the passengers' rights sign with the taxicab company name and taxicab company phone number. There shall also be a slot available where the driver shall place a color copy of his permit in the rear of the front seat.
(Code 1956, § 12-131; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24563, § 1, 9-1-11; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-456—162-495. Reserved.

ARTICLE VI. ANIMAL-DRAWN VEHICLES*

DIVISION 1. GENERALLY

Sec. 162-496. Powers of SPCA.

(a) Agents nominated by the Louisiana Society for Prevention of Cruelty to Animals shall be appointed and commissioned by the mayor to serve as special police officers, and shall have the usual power of policemen and peace officers in supervising animal-drawn CPNC vehicles.

(b) Whenever any vehicle for which a CPNC is required under this article is animal-drawn, the fitness of the animal for the work and its humane treatment shall be under the supervision of the agents nominated by the Louisiana Society for Prevention of Cruelty to Animals and appointed and commissioned by the mayor as special police officers, with the powers to determine:

(1) Physical fitness of the animal and limitations on work and conditions of work;

(2) Condition and fitness of harness;

(3) Care and treatment of such animals.

(c) The special officers shall direct the inspection of such animals at least once every three months.
(Code 1956, § 12-206)

Sec. 162-497. Violation of standards.

(a) Upon discovery of a violation of this article, the special officer may issue an order to the person or persons responsible for the violation requiring the immediate removal of the subject animal from service.

(b) No animal which has been removed from service for violation of this section shall be returned to service until the animal has been inspected by an SPCA veterinarian and approved for return.
(Code 1956, § 12-207)

*__Cross references—__Franchises, § 30-36 et seq.; certificates of public necessity and convenience, § 162-151 et seq.

Sec. 162-498. Refusal to comply.

Any person who refuses to comply with the order of the SPCA or who complies with such order and returns the subject animal to service before being inspected and approved by the SPCA shall be guilty of the offense of refusing to obey an order of the SPCA.
(Code 1956, § 12-208)

Sec. 162-499. Penalty.

The fine for all offenses under this article shall be $100.00 or 90 days in jail, or both. Upon commission of such offense, the special officer shall issue a summons to the offender.
(Code 1956, § 12-209)

Sec. 162-500. Summons.

A summons may be served on the offender by the person issuing the summons or by anyone authorized by the law to do so. The summons need not be served at the time of the offense. The summons shall recite the offense charged and the fine specified above. The summons shall also apprise the offender that he has ten days from the date of the issuance of the summons to pay the fine to the office of the SPCA.
(Code 1956, § 12-210)

Sec. 162-501. Trial date.

The summons shall further contain a trial date and recite that, if after the expiration of ten days the fine has not been paid, a copy of the summons will be forwarded to the clerk of the municipal court and a hearing will be held on the trial date.
(Code 1956, § 12-211)

Sec. 162-502. Powers of arrest.

The special officers shall have the power to arrest and charge the driver, as well as the owner, with any violation of this article.
(Code 1956, § 12-212)

Secs. 162-503—162-540. Reserved.

DIVISION 2. OPERATING REQUIREMENTS

Sec. 162-541. Identifying number and current veterinary health certificate.

(a) Each animal must have a tattooed identifying number on the inside of its lip or ear, or on the left rump.

(b) A current veterinary health certificate for each animal showing the tattoo number shall be furnished to the Louisiana SPCA office when such animal is placed in service, and no more than 12 months thereafter. The certificate will show that a veterinarian licensed in the state has given the animal a coggins test with negative results as required by state law and declares this animal to be fit for carriage service.
(Code 1956, § 12-213)

Sec. 162-542. Health of the animal.

No animal shall be permitted to pull any carriage unless the animal is in good health and meets at least the following requirements:

(1) All animals purchased subsequent to the effective date of the ordinance from which this section was derived shall be mules and must weigh at least 1,000 pounds.

(2) The animal has no open sores or wounds, is not lame nor has any other ailment. Any animal found to have an ailment shall not be used without the approval of a veterinarian.

(3) The hoofs of the animal must be properly shod and trimmed.

(4) The animal must be groomed daily and not have fungus, dandruff or a poor or dirty coat.

(5) The animal must have adequate flesh and muscle tones.

(Code 1956, § 12-214)

Sec. 162-543. Animal working conditions.

(a) No animal shall be worked under any of the following conditions, and any owner that allows such conditions to exist will be found in violation of this article:

(1) The carriage the animal is pulling is holding more than nine people, including the driver.

(2) The animal works more than seven hours in any 24-hour period with 15-minute rest periods between each trip.

(3) The animal pulling a carriage is moved at a speed faster than a slow trot.

(4) The animal is worked with equipment causing an impairment of vision other than normal blinders.

(5) The animal is subject to any condition or treatment which will impair the good health and physical condition of the animal.

(6) Between the dates of June 1 and August 31, only mules may be used in the daytime before 5:00 p.m., and total hours worked shall not exceed six hours in a 24-hour period with 30-minute rest periods between each trip.

(b) Should the director of the department of public works determine that special circumstances exist which would jeopardize the safety of the animal, such as bad weather or other environmental problems, he may order the temporary suspension of the operation of all animal-drawn vehicles until such time as the special circumstances abate.
(Code 1956, § 12-215; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-544. Harness.

(a) No animal will be worked with a harness or bit that is not approved by the Louisiana SPCA.

(b) The harness must be oiled and cleaned so as to be soft at all times.

(c) The harness will be properly fitted and maintained and kept free of makeshift like wire, sisal rope, and rusty chain.
(Code 1956, § 12-216)

Sec. 162-545. Carriages.

Carriages must be properly lubricated, and wheels must spin freely.
(Code 1956, § 12-217)

Sec. 162-546. Whip.

No driver may whip an animal with more than a light touch by a light whip approved by the Louisiana SPCA.
(Code 1956, § 12-218)

Sec. 162-547. Water.

Adequate water will be provided in the working area and stables at all times.
(Code 1956, § 12-219)

Sec. 162-548. Stalls and stables.

(a) Ventilation will be provided for stalls with animals in hot weather.

(b) Ceilings in stalls and stables must be at least nine feet high from bedding and flooring. Future construction will provide for ceilings at least ten feet high from bedding flooring.

(c) Bedding in stalls and stables must be at least six inches deep and dry enough so as not to show wetness under the pressure of the animal's hoofs.

(d) Foot hazards and sharp surfaces will not be permitted in any area or building where they may come in contact with the animals.

(e) Roofs must be kept free of leaks where animals are kept.

(f) Each animal must have a stall large enough for the animal to turn around.

(g) Food must be kept free of contamination.

(h) Animal areas must be treated to destroy and repel insects.
(Code 1956, § 12-220)

Sec. 162-549. Drivers to maintain stands in sanitary condition; diapering of animals required.

(a) Driver of CPNC-licensed horse-drawn vehicles operated under this article shall maintain stands in a sanitary condition at all times. Any failure on part of such driver to conform to the

requirements of this section shall be unlawful and shall subject such drivers to the penalties provided by this article.

(b) It shall be unlawful for any person, firm, corporation or other entity to utilize any animal for the purpose of pulling any CPNC-licensed vehicle on city streets unless such animal is equipped with diapering apparatus that prevents the droppings of such animal from being deposited or otherwise left on city streets. It shall be the responsibility of the driver of a CPNC-licensed animal-drawn vehicle to see that the diapering apparatus is maintained in working order. The penalty for violation of this section committed within one year as follows:

First offense: $50.00

Second offense: $100.00

Third offense: $200.00 and a temporary suspension of the driver's permit for a minimum of five days. On a subsequent violation within one year from the date of the first offense the fine is $200.00 and the suspension of the driver's permit may be a maximum of 30 days.

Each company operating vehicles [is] responsible for immediate removal of the droppings.
(Code 1956, § 12-221; M.C.S., Ord. No. 20970, § 1, 1-9-03)

Sec. 162-550. Identification.

Each company operating carriages must identify each carriage with the name of the company prominently displayed on each side or the rear of each vehicle.
(Code 1956, § 12-222)

Sec. 162-551. Company telephone numbers.

Each company will have its listed telephone number printed on the vehicle to assign responsibility for complaints.
(Code 1956, § 12-223)

Sec. 162-552. In-lieu provision.

In lieu of utilizing an animal drawn carriage, a holder of an animal drawn carriage CPNC may provide the same service without the use of an animal and instead use an electronic or e-carriage that adheres to all the following standards:

(1) The department of public works must certify that the vehicle is an electric carriage; and

(2) The vehicle must be powered by electricity or battery and not utilize a combustion engine and may not be gasoline powered; and

(3) The vehicle must not be able to seat over 16 passengers in addition to a driver; and

(4) The vehicle shall be no longer than 20 feet; and

(5) The vehicle must not be able to exceed a speed of 25 miles per hour; and

(6) To be certified as an electric carriage, the vehicle's design must be inspired by a vintage horse-drawn carriage.

(M.C.S., Ord. No. 30322, § 1, 4-24-25)

Secs. 162-553—162-600. Reserved.

ARTICLE VII. TAXICABS*

DIVISION 1. GENERALLY

Sec. 162-601. Special regulations.

In addition to the other applicable provisions of this chapter, all taxicab CPNC holders and taxicab drivers shall comply with the applicable provisions of this article.
(Code 1956, § 12-142)

*__Cross references—__Public transportation at the New Orleans International Airport, § 22-81 et seq.; taxicab airport use permit required for all taxicabs operated at the airport, § 22-85; franchises, § 30-36 et seq.; certificates of public necessity and convenience, § 162-151 et seq.

Sec. 162-602. Renewal certificate required.

(a) No taxicab shall be operated on the streets of the city unless the owner of such vehicle has first applied for and received a CPNC qualifying a taxicab in the manner provided in this chapter; however, any person holding a CPNC issued by the city to transport passengers may transport passengers on an organized sightseeing tour into and within the city from any point beyond the boundaries of any parish contiguous to the city when such vehicle is accompanied by and under the direction of a guide holding a valid tour guide license.

(b) It shall be unlawful for any person to transport or offer to transport passengers for hire in any taxicab which does not have affixed to the windshield thereof a valid for-hire vehicle renewal certificate issued at the for-hire vehicle inspection station under the auspices of the director of the department of public works.
(Code 1956, § 12-143; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-603. Interparish operation of taxicabs.

Taxicabs of the type subject to regulation under this chapter in the parish authorized to operate in any other parish or in any political subdivision thereof may transport passengers from such parish or subdivision thereof to a

destination within or beyond the parish. No owner or operator of such taxicab for-hire vehicle, not licensed with a certificate of public necessity and convenience, shall accept a fare or transport a passenger for hire commencing within the parish.
(Code 1956, § 12-144)

Sec. 162-604. Reserved.

Editor's note—M.C.S., Ord. No. 28241, § 1, adopted Nov. 21, 2019, repealed § 162-604, which pertained to taxicab liability coverage and derived from Code 1956, § 12-145. The user's attention is directed to § 162-287.

Sec. 162-605. Maintenance and appearance of vehicle.

Each driver of a taxicab shall be fully responsible for the exterior and interior physical appearance of the taxicab. Each driver shall be required to maintain the taxicab and his or her person in a neat and clean condition at all times. Interiors of all cabs must be kept free of all debris. Dashboards must be maintained free and clear of all paraphernalia and other items not necessary for the operation of such taxicab. Each taxicab must be air conditioned and operating in a first-class condition. A sign stating that no smoking, drinking or eating are permitted in the taxicab shall be installed in the passenger portion of the vehicle. The minimum penalty for one violation of this section within a one-year period shall be $50.00. The penalty for two violations within one year of the first violation shall be a minimum $75.00 fine plus a minimum ten-day suspension from operating any for-hire vehicle. The penalty for three or more violations within a one-year period of the first violation shall be a minimum $100.00 fine plus a minimum 90-day suspension from operating any for-hire vehicle.
(M.C.S., Ord. No. 20638, § 1, 4-18-02)

Sec. 162-606. Vehicle requirements.

(a) No application for a permit to own and/or operate a taxicab under this chapter shall be approved unless the vehicle is a mini-van (having gross vehicle weight rating of 5,500 pounds or less, has a wheel base of not less than a minimum of 112 inches, or a maximum of not more than 120 inches, has a running board affixed to the passenger side of the vehicle for access and discharge of passengers, and does not seat more than six passengers including the driver), a sports utility vehicle (SUV), or a four-door sedan. Each of the foregoing vehicles must meet the following minimum specifications:

(1) *Head room:* Front 33 inches, rear 32 inches.

(2) *Leg room:* Front 40 inches, rear 35 inches.

(3) *Shoulder room:* Front 55 inches (taxis with bucket front seats, 15 inches per seat), rear 49 inches.

(4) *Hip room:* Front 51 inches (taxis with bucket front seats, 20 inches per seat), rear 51 inches.

(5) *Entrance height:* Front 30 inches, rear 29 inches.

(6) *Tire size:* 13 inches.

(7) *Wheel base:* 103 inches (four-door sedans only).

(8) *Air conditioning:* Standard system which meets manufacturer's specifications for the specific type of vehicle.

(b) Official interior dimensions from the manufacturer must be submitted by applicant to the ground transportation bureau upon request at the time of application.

(c) No wheelchair accessible vehicle shall be approved for use as a taxicab under this chapter unless that vehicle and all necessary retrofitting have been approved by the mayor's advisory council for citizens with disabilities.
(Code 1956, § 12-147; M.C.S., Ord. No. 16,480, 4-21-94; M.C.S., Ord. No. 22861, § 1, 10-18-07; M.C.S., Ord. No. 26589, § 1, 9-17-15; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-607. Additional requirements.

After the application for a permit to obtain a CPNC for a taxicab has been approved and before the vehicle shall be eligible for operation as a for-hire vehicle, the party shall, in addition

to other requirements of the director of the department of public works, perform the following:

(1) Supply in writing the following information relative to each vehicle to be covered by such permit:

a. The model and make of such vehicle, motor number and seating capacity;

b. Type, make and number of taximeter meeting the requirements of this chapter;

c. A certificate that the applicant is the actual sole and registered owner of the vehicle or vehicles to be used, including certificate of title number.

(2) Pay the fee as required by this chapter;

(3) Submit the vehicle for inspection to obtain a vehicle inspection certificate which shall be affixed to vehicle after same has been certified as being free from mechanical defects.

(Code 1956, § 12-148; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-608. Taxicab driver photo identification.

All drivers are required to wear a photo identification containing the driver's name and the affiliated company, of a design specified by the director of the department of public works. This identification should be worn during all duty hours and should be worn so as to be plainly visible at all times.

(Code 1956, § 12-149; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-609. Trip sheets and records.

(a) Every business entity or individual operating a for hire company shall keep daily records including dispatch records, complaints, all accepted telephone calls, daily vehicle sign out logs, vehicle collision reports, service response time reports, reports of crime against for hire drivers, lost property reports, CPNC numbers, and drivers of each vehicle for which a CPNC has been issued. Such records shall be preserved for a period of two years and be available for examination by the director of public works.

(b) Trip sheets reflecting all trips provided by a driver of a taxicab shall be maintained by the vehicle operator. These trip sheets may be maintained in digital or paper format, and shall contain the following information for each trip or shift as applicable:

(1) Driver's name;

(2) Driver's identification number;

(3) CPNC number of vehicle being operated;

(4) Start and end time of each trip;

(5) Pick-up and drop-off location of each trip;

(6) Total length of trip in time and distance;

(7) Number of passengers and total fare of each trip;

(8) Method of payment and total amount paid for each trip.

(c) Trip sheets shall reflect all fares regardless of payment method.

(d) Falsifying trip sheets shall be grounds for revocation of an AT driver's permit and an AT CPNC.

(Code 1956, § 12-150; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24851, § 1, 4-19-12; M.C.S., Ord. No. 27149, § 1, 11-3-16; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-610. Passenger as controller of cab.

It shall be unlawful for a taxicab driver to cause a passenger to wait without the passenger's consent or to pick up additional passengers en route without the passenger's consent; except, that ride sharing is permitted in the following cases:

(1) Trips to and from New Orleans International Airport;

(2) Trips between central business district hotels and the Rivergate and the Superdome;

(3) Other major events at the Fairgrounds, etc., declared as special events by the director of the department of public works.

(Code 1956, § 12-151; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-611. Number of passengers per vehicle.

It shall be unlawful to load more passengers in a taxicab beyond the vehicle's capacity as set forth by the vehicle's manufacturer. Seat belts must be available for each passenger. No taxicab shall be loaded with passengers in such a manner as to obstruct the view of the driver or otherwise interfere with the safe operation of the vehicle.

(Code 1956, § 12-152; M.C.S., Ord. No. 24852, § 1, 4-19-12)

Sec. 162-612. Refusal to carry passengers.

No operator of any taxicab shall refuse to take any passenger to a destination within ten miles outside of the city limits or to a municipal airport operated by the city; provided, however, that the driver shall be required to take only the class of passengers the taxicab is registered to accommodate.

(Code 1956, § 12-153)

Sec. 162-613. Maximum age of taxicabs.

A vehicle for which a CPNC is obtained may be operated as a taxicab until the vehicle is fifteen years old. For purposes of this section, the vehicle's age shall be determined based on the vehicle's model year, such that a vehicle with a model year of 2000 shall have a vehicle age of one year as of January 1, 2001.

(M.C.S., Ord. No. 24862, § 1, 4-19-12; M.C.S., Ord. No. 26557, § 1, 8-6-15; M.C.S., Ord. No. 27180, § 2, 11-3-16; M.C.S., Ord. No. 27963, § 1, 12-20-18; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Secs. 162-614—162-650. Reserved.

DIVISION 2. TAXICAB ZONES AND STANDS

Sec. 162-651. Taxicab and for-hire vehicle stands.

(a) The director of the department of public works is hereby authorized, as a police measure, to designate the location of taxicab and other for-hire vehicle stands on the streets and other public places in the city. Such stands shall be marked by appropriate signs and shall be reserved exclusively for the parking of taxicabs or other for-hire vehicles as specified by such signs, while waiting to pick up passengers for hire.

(b) Additionally, the director of the department of public works is hereby authorized to designate the location of temporary taxicab and for-hire vehicle stands on the streets and other public places in the city for use of taxicabs and for-hire vehicles in support of large special events or other temporary activities.

i. The director of public works is authorized to assess the impact of a proposed special event or temporary activity to determine if a temporary taxicab or for-hire vehicle stand is required in support of convenience to the general public.

ii. Subject to the discretion of the director of public works or upon request of a special event or temporary activity organizer, a special event taxicab/for-hire vehicle stand permit may be issued in conjunction with other required special event permits. This permit will designate the location of the temporary stand and authorizes the assignment of public works investigator(s) to regulate the flow of for-hire vehicle traffic at that location.

iii. Subject to the discretion of the director or upon request by a special event or temporary activity organizer, additional time or personnel may be provided by the department of public works to monitor and regulate the flow of for-hire vehicle traffic a permitted special event taxicab/for-hire vehicle stand.

iv. Fees for special event taxicab/for-hire vehicle stand permits and staffing are established as follows:

a. The fee for the special event taxicab/for-hire vehicle stand permit shall be $150.00.

b. The fee for additional time (beyond the first three hours) and additional personnel shall be $30.00 per hour.

c. The director of public works is to collect all required fees at the time of permitting and shall give receipts for same. All fees collected under this section shall be deposited to the bureau of the treasury, to the account of the general fund.

(Code 1956, § 12-154; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26305, § 1, 3-26-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-652. Priority of service at taxicab stands.

Taxicabs located in any officially designated stand shall be loaded in their order of occupancy of the stand, i.e., first-in, first-out, and only the taxicab first out may move into a passenger zone ahead of such stand for the purpose of loading; provided, however, that each prospective taxicab passenger shall have the right, unless otherwise prohibited, to approach, engage and occupy any taxicab at its location within such stand, and it shall be unlawful for the operator of any taxicab or any other person to interfere, prevent or impede the movement of a loaded taxicab from such stand. It shall likewise be unlawful for the operator of any cruising or other taxicab to usurp the priority of any stand, or to enter, stop or stand any taxicab in a passenger zone ahead of such stand, except for the purpose of and while actually engaged in the discharge of passengers. It shall also be unlawful for the operator of any taxicab who has unloaded passengers at such loading zone to accept any passenger at that time unless such taxicab is first out, in accordance with the priority established above.

(Code 1956, § 12-155)

Sec. 162-653. Driver restrictions in stands.

The driver of any taxicab or other for-hire vehicle parked in any stand designated for use of this type of vehicle shall remain within the limits of the stand, which shall be interpreted to be the parking strip and adjacent sidewalk between the signs designating the stands; provided that from 6:00 p.m. to 6:00 a.m. the driver of any taxicab or other for-hire vehicle parked in any stand in the restricted area, as specified in the following section, shall remain within the immediate vicinity of or in the front seat of his vehicle at all times except when it is necessary to assist passengers to board or alight from his cab.

(Code 1956, § 12-156)

Sec. 162-654. Restricted area defined.

It shall be unlawful for the driver of a taxicab to park at any time upon any portion other than metered zones of any street except in properly designated taxicab stands, beginning at the intersection of Canal Street and the Mississippi River; thence on Canal Street to North Rampart Street; thence on North Rampart Street to Toulouse Street; and thence on Toulouse Street and the projection thereof to its intersection with the Mississippi River.

(Code 1956, § 12-157)

Sec. 162-655. Parking in vicinity of residence.

Subject to the provisions of laws and regulations applicable to the parking, stopping or standing of private vehicles, no owner or driver of a taxicab shall be prohibited by the provisions of this section from parking his taxicab within the immediate vicinity of his residence of record as long as he continues to reside thereat; provided, that such vehicle is not then being used or offered for use as a taxicab; and provided further, that no taxicab shall be parked at any place or time when such parking of taxicabs is prohibited by any applicable law or regulation other than the provisions of this section.

(Code 1956, § 12-158)

Sec. 162-656. Nonparish licensed operators.

No owner or operator of any vehicle authorized to operate in any parish other than the parish or in any political subdivision thereof shall stop or park anywhere on the city's streets where such stopping or parking is prohibited to any taxicab or other for-hire vehicle operating under a permit from the city, or stop or park anywhere in the city with intent to violate this Code. No such owner or operator of any such vehicle shall operate such vehicle in any manner contrary to the provisions of any law of this state or this

Code. No such owner or operator of any such vehicle at any time shall utilize taxicab stands established for the use of taxicabs authorized and licensed to operate in the parish.
(Code 1956, § 12-159)

Sec. 162-657. Taximeter required; location.

(a) Unless otherwise specifically provided herein, no owner or operator of any taxicab shall operate such vehicle unless it is equipped with a taximeter which shall automatically compute and register the amount of the fare on a basis of the miles traveled or the time elapsed (the fare reflecting the elapsed time if it occurs first or the mileage if it is traveled before the applicable time has elapsed). Each taximeter must show the amount of the fare on its face and shall be located in the cab in such position that the fare may be continuously seen both day and night by each and every passenger seated in the rear compartment of the vehicle. Each taximeter shall be placed in the taxicab in such a position that the flag will be visible from the street when in the for hire position. It shall be unlawful to transport passengers in a pay status in such vehicle unless such meter is in operation.

(b) Taximeters shall be either hardwired or connected via an encrypted and secured wireless connection to a passenger information monitor and dispense a receipt with the following information:

i. CPNC number;

ii. Driver ID;

iii. Trip ID;

iv. Distance of trip;

v. Date of trip;

vi. Time of trip;

vii. Fare charges;

viii. Extra charges;

ix. Total charges;

x. Taxicab company name and phone number; and

xi. The words "Ground Transportation Bureau. For compliments or concerns, please call 504-658-7176."

(c) This provisions of this section shall become effective on August 1, 2012.
(Code 1956, § 12-160; M.C.S., Ord. No. 16,880, § 2(c), 2-2-95; M.C.S., Ord. No. 24863, § 1, 4-19-12; M.C.S., Ord. No. 25818, § 1, 4-24-14; M.C.S., Ord. No. 27963, § 1, 12-20-18; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-658. Unlawful to alter taximeter.

It shall be unlawful for any person to tamper with or alter in any manner the taximeter of such vehicle except as by the department of public works.
(Code 1956, § 12-161; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-659. Credit/debit card acceptance machines; alternative systems.

(a) All taxicabs shall be equipped with a bureau-approved and fully functioning credit/debit card acceptance machine. Further, such credit/debit card acceptance machines are subject to the following regulations.

(1) The passenger shall have the ability to swipe his own credit or debit card.

(2) A payment card industry data security standard (PCI DSS) compliant passenger information monitor (PIM) must be installed in all taxicabs, and shall be integrated directly to the taximeter by means of a hard wire connection.

i. The PIM must communicate wirelessly to obtain approvals for credit and debit card transactions. The system shall provide communication back to the taxicab within ten seconds.

ii. All PIMS must be bolted to the head rest or in an area approved by the bureau in the passenger compartment.

iii. The system must provide a printed or digital receipt for every credit or debit card transaction. Handwritten receipts are not allowed.

(3) A GPS receiver is required for the credit/debit card system.

(4) Drivers must be able to sign into the PIM using either a unique identifying number or biometrics.

(5) No surcharge may be imposed for the use of a credit/debit card so that the total charge exceeds the legal rate of fare.

(6) No minimum charge may be imposed for the use of a credit/debit card.

(7) No service may be refused to any person desiring to use a credit/debit card.

(8) The bureau shall have unlimited online access to all information collected by the PIM.

(b) Any licensed CPNC holder may also petition the bureau for approval of any alternative credit/debit card acceptance systems. The ground transportation bureau shall adopt rules establishing evaluation criteria for approval or denial; and procedures relative thereto.

(c) If the bureau denies approval of the proposed alternative system, it shall prepare a report within 30 days of the date of the petition that states the reasons for said denial. This report shall be mailed to the petitioner.

(d) Any licensed CPNC holder whose petition is denied shall have a right to apply in writing to the city council for reversal or modification thereof. Any such appeal shall be taken within 15 days from the date the decision is mailed. The appeal shall be docketed at the next regular meeting after receipt of communication. The city council has the right to reverse, change, or modify any decision of the bureau only by a majority vote of all its members.
(M.C.S., Ord. No. 24864, § 1, 4-19-12; M.C.S., Ord. No. 26027, § 1, 9-4-14; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 29981, § 2, 7-11-24)

Sec. 162-660. Security systems.

(a) All taxicabs shall be equipped with a security camera system.

(1) Any security camera system installed in a taxicab must meet or exceed the technical specifications set forth below:

a. Be 100 percent solid state design;

b. Be tamperproof and not operate with an "on/off" switch;

c. Have system protections to ensure against voltage irregularities and power failures;

d. Use non-volatile flash memory and record images using a first-in, first-out methodology;

e. Be impact and shock resistant;

f. Clearly record images in all lighting conditions, including bright sunshine, shade, darkness, total darkness, and when strong backlighting is present;

g. Mark each image with the date, time, and vehicle number, and serial number of the camera;

h. Be stored as or convertible to standard digital image formats;

i. Must have a field of vision to capture all of the occupants of the vehicle;

j. Be installed so that it will not interfere with the driver's field of vision or impede the use of any of the vehicle's mirrors;

k. Must have all lead-free components;

l. Must have 1 GB memory;

m. Must record images at a resolution of at least 640 × 368 pixels;

n. Must have image recording triggers;

i. Still image recording must by triggered by any vehicle door opening. Upon the trigger, still images must be recorded at a rate of one image every five

seconds for 60 seconds, followed by one image every 15 seconds.

ii. Video images must be recorded on a looping basis, and image storage must by triggered by any vehicle door opening. Upon the trigger, video images must be recorded for 60 seconds prior to the door opening and 60 seconds after the door is closed;

iii. In an emergency-trigger event, system must be able to store 2.5 minutes worth of images prior to the trigger and 2.5 minutes after the trigger in an overwrite-protected format. Still image cameras must be equipped with an emergency trigger that will record images at the rate of one image per second for 60 seconds.

(2) Signage. All vehicles equipped with a security camera system must have a decal on the passenger and driver side rear windows stating, "This vehicle is equipped with a security camera."

(3) Use of digital still or video images. Access to any recorded image of persons in a taxicab is prohibited except by the ground transportation bureau or the New Orleans Police Department. Violation of access to images shall result in revocation of a CPNC and/or driver's permit.

(4) Inspections. Camera systems must have the capability for inspection of the equipment that will indicate the system is functioning properly. The serial number of the camera must be readily accessible. The bureau may also inspect the viewing facilities of the owner or licensed manager and may ask for verification of viewing logs and/or all other documentation and equipment.

(5) Driver behavior modification features. For the purposes of driver education and modification of driver behavior, security camera systems shall be equipped with driver behavior modification features which collect and store data created by vehicle movement triggers such as sharp turns, sharp stops, or quick accelerations.

a. A CPNC holder or company owners may view images from outward facing cameras only.

b. Cameras recording for driver modification purposes should be positioned such that the perspective is outward and over the vehicle's hood.

c. All images must be logged electronically and the electronic log provided on a quarterly basis to the bureau.

d. The bureau may view any reports and images associated with driver behavior upon request.

(6) Procedures for security camera systems approval. Only camera systems meeting the minimum requirements and approved by the bureau may be installed.

a. Applicants must submit a request for approval in writing and provide written technical specifications of the system; and

b. Provide a demonstration of the system and all of its features to the bureau. After reviewing the technical specifications and viewing the demonstration, the bureau will respond directly to the vendor in writing within 30 days of the demonstration stating if the system meets the minimum qualifications set forth for security cameras and has been approved for use in the City of New Orleans.

(7) The equipment required by this rule shall be maintained in good working order at all times. If a CPNC holder changes the security camera equipment, he or she must notify the bureau within 24 hours and the vehicle will be re-inspected to ensure compliance with this section.

(8) Every CPNC holder shall file on a form designated by the bureau, a detailed description of the safety features to be installed in each taxicab. This form shall be submitted at the time of licensing, renewal of licensing, and whenever there is a change of the safety features to be used in the cab.

(9) If bureau personnel or a New Orleans Police Department official requests access to any record produced by the digital security camera systems to assist in the investigation of any complaint or crime, the taxicab company must provide access to the record within 24 hours. Records may only be accessed by bureau personnel or a New Orleans Police Department official, and only when a bureau complaint number or police complaint number has been generated.

(10) It shall be unlawful for any CPNC holder, taxicab company, or driver to allow any person to intentionally access any records produced by the security camera systems. Violation of this section shall be grounds for revocation of driver's permit and/or CPNC.

(11) It shall be unlawful for any taxicab driver to cover, tamper with, damage, disturb, remove, or disable a digital security camera system in a taxicab or to tamper with, remove, or erase data stored on the camera system. Violation of this section shall be grounds for immediate suspension of the CPNC license and may result in permanent revocation of driver's permit and/or CPNC.

(b) All taxicabs shall be equipped with silent alarm feature to notify dispatch of danger.
(M.C.S., Ord. No. 24865, § 1, 4-19-12, eff. 8-1-12; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 30241, § 1, 3-13-25; M.C.S., Ord. No. 30356, § 1, 6-12-25)

Sec. 162-661. Global positioning systems (GPS).

All taxicabs shall be equipped with a bureau-approved global positioning system (GPS) to provide efficient navigation to passenger destinations. If GPS is utilized through an approved cell phone application, the phone must be mounted for driver viewing and available for the driver's use throughout the duration of each trip.
(M.C.S., Ord. No. 24866, § 1, 4-19-12; M.C.S., Ord. No. 28241, § 1, 11-21-19)

Secs. 162-662—162-690. Reserved.

DIVISION 3. TRADE NAMES AND NEW LINES

Sec. 162-691. Trade name to be registered.

The trade name applicable to each vehicle operated under the provisions of this article shall be registered with and approved by the ground transportation bureau. Such registration shall set forth the full name and address of the lawful owner or owners of such trade name and shall specify the color scheme of vehicles to be operated under such trade name. The owner or owners of such trade name shall furnish to the ground transportation bureau a to-scale model of the vehicle, which shall be painted in conformity with the trade name applicable and lettered as required by this chapter. Each change in color scheme or of lettering of such vehicle shall likewise be registered and a modified scale model of the vehicle shall be furnished. No new trade name or color schemes which are identical or deceptively similar to any trade name or color scheme already registered with the ground transportation bureau shall be approved by the ground transportation bureau.
(Code 1956, § 12-162; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-692. Number of taxicabs required to form new line.

(a) Any individual or group of individuals holding 25 or more CPNCs may form a new taxicab line. Such taxicab line is required to maintain an office and

(b) telephone service and must meet all the requirements of a corporation or partnership applying for a CPNC.

(c) Any taxicab line must maintain a minimum of 25 vehicles in its fleet.
(Code 1956, § 12-163; M.C.S., Ord. No. 24853, § 1, 4-19-12)

Sec. 162-693. Identification of vehicles.

(a) A taxicab operated under the provisions of this article shall conform in all respects to the color scheme as set forth for the registered trade name under which it is to be operated. In addition, the vehicle's registered certificate number assigned by the ground transportation bureau shall be permanently painted on the vehicle as prescribed by the ground transportation bureau. The owner of such taxicab or for-hire vehicle must present to the ground transportation bureau written approval by the owner of the trade name and color scheme.

(b) The full name of the owner of each for hire carrier vehicle operated as a taxicab and the number of the vehicle's certificate shall be painted conspicuously on the front fender of each side closest to the front door of the vehicle in letters and figures at least two inches high. The for-hire vehicle renewal certificate number shall appear inside the taxicab in the lower right-hand side of the windshield above the for-hire vehicle renewal certificate, conspicuously visible to the riding public.
(Code 1956, § 12-164; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-694. Current record; complaints; notices.

All taxicab line operators shall:

(1) Maintain a current record of taxicab CPNC numbers and each driver per vehicle that is on the line;

(2) Refer any and all complaints by passengers of taxicabs to the ground transportation bureau; and

(3) Distribute any and all notices issued by the director of the department of public works to each and all drivers of the line. Such distribution shall be in written form within five days of receipt of such notice by the line owner.

(Code 1956, § 12-165; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-695. Violation; penalty.

A violation by a taxicab line of any regulations set forth in this article shall result in a fine to the violator of not more than $100.00 per violation, to be determined by the director of the department of public works pursuant to a hearing in accordance with R.S. 49:951 et seq.
(Code 1956, § 12-166; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-696—162-740. Reserved.

DIVISION 4. FARES

Sec. 162-741. Legal fares and payment thereof required.

(a) It shall be unlawful for any person to ask, demand or collect any rates of fare other than as specified herein for use of any for hire passenger vehicle including vehicles for hire for the physically challenged, or "Disabled Friendly Taxi" (DFT), regulated by this chapter.

(b) It shall be unlawful for any passenger of any such vehicle to refuse to pay the operator thereof the legal rate charged pursuant to the provisions of this article.

(c) The department of public works shall review all ground transportation fares each consecutive odd year, and shall submit a report in a national peer city comparative analysis format to the mayor and the city council.
(Code 1956, § 12-176; M.C.S., Ord. No. 16,996, § 1, 4-20-95; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-742. Maximum rate per trip.

No driver of any taxicab or for-hire vehicle shall charge any passenger more than the amount allowed such driver for the trip under this chapter.
(Code 1956, § 12-177)

Sec. 162-743. Taxicab information and rates to be posted.

(a) Each taxicab or disabled friendly taxi (DFT) shall have a plaque displaying the following information:

(1) Name of driver and CPNC number;

(2) Information on rates as approved by the director of the department of public works;

(3) Information for filing complaints, including the address and phone number for the ground transportation bureau.

(b) Specifications on the design of the plaque and its mounting will be determined by the director of the department of public works.

(Code 1956, § 12-178; M.C.S., Ord. No. 16,880, § 2(d), 2-2-95; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-744. For-hire vehicle pricing information.

Each applicant for a certificate of public necessity and convenience, except applicants for CPNC services having the rates of fare established in this chapter, shall provide information to the department of public works on rates to be charged and pricing policies including minimum duration during special events. The information provided must be updated at such times as rates and/or pricing policies are changed by CPNC holders.

(Code 1956, § 12-181; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-745. Meter fare for taxicabs and DFTs.

The taxicab or DFT meter fare shall be $3.50, which shall entitle the passenger to be transported the first one-eighth mile, and the total meter fare shall include an additional $0.30 for each additional one-eighth mile, or incompleted fraction thereof that the passenger is transported; provided that whatever [whenever] the speed of the taxicab or DFT is less than the rate of one-eighth mile per 40 seconds, an additional $0.30 shall accrue for each 40 second interval therein. There shall be an additional charge of $1.00 per passenger after one passenger on all regular taxi or DFT trips.

(a) An additional gasoline surcharge of $1.00 per each completed trip shall be authorized until December 31, 2027.

(b) All taxicabs and DFTs are required to post in plain sight in the interior of the vehicle notice to passengers of a $1.00 gasoline surcharge for each completed trip subject to design specifications approved by the director of the department of public works pursuant to section 162-743.

(Code 1956, § 12-182; M.C.S., Ord. No. 16,880, § 2(e), 2-2-95; M.C.S., Ord. No. 16,996, § 1, 4-20-95; Ord. No. 19,598, § 1, 4-6-00; M.C.S., Ord. No. 20638, § 1, 4-18-02; M.C.S., Ord. No. 21810, § 1, 12-16-04; M.C.S., Ord. No. 21928, § 1, 5-5-05; M.C.S., Ord. 22150, § 1, 3-2-06; M.C.S., Ord. No. 22567, § 1, 4-5-07; M.C.S., Ord. No. 23148, § 1, 7-10-08; M.C.S., Ord. No. 23233, § 1, 9-18-08; M.C.S., Ord. No. 23507, § 1, 4-23-09; M.C.S., Ord. No. 23579, § 1, 6-18-09; M.C.S., Ord. No. 23639, § 1, 7-23-09; M.C.S., Ord. No. 26505, § 1, 7-9-15, eff. 9-1-15; M.C.S., Ord. No. 26584, § 1, 9-17-15, eff. 9-1-15; M.C.S., Ord. No. 29154, § 1, 9-1-22; M.C.S., Ord. No. 30698, § 1, 7-9-26)

Sec. 162-746. Taxicab hourly rate.

Whenever a taxicab or DFT is chartered by the hour, such arrangements shall be made between the driver and the passengers at the start of such chartered trip. The rate charged shall be $35.00 per hour with a two-hour minimum.

(Code 1956, § 12-183; M.C.S., Ord. No. 16,880, § 2(f), 2-2-95; M.C.S., Ord. No. 16,996, § 1, 4-20-95; Ord. No. 19,598, § 1, 4-6-00; M.C.S., Ord. No. 23580, § 1, 6-18-09; M.C.S., Ord. No. 26505, § 1, 7-9-15, eff. 9-1-15)

Sec. 162-747. Rates for special events.

(a) For transporting passengers to or from any place or point within the city to or from Fogelman Arena of Tulane University, Superdome, Nat Keifer UNO Lakefront Arena, Southern University of New Orleans Gymnasium, Xavier

Field House, Saenger Theatre, City Park Stadium, Pan American Stadium, or the fair grounds to attend regularly scheduled sporting events and/or concerts, taxicabs may charge the special event fare, which shall consist of $7.00 per person or the metered fare, whichever is greater. The meter shall be in operation to determine the greater fare. The boundaries of the Superdome as used hereinabove are an area bounded from Loyola Avenue to Claiborne Avenue and Poydras Street to Girod Street; provided that the special event rate shall not be applicable to passengers arriving at or departing from the main entrance of the Hyatt Regency Hotel located within the boundaries specified herein unless the passengers' point of origin or destination is a site otherwise covered by the provisions of this section.

(b) The special event fare, when authorized, may be charged for trips to and from the special event site, beginning two hours before and until two hours after the special event.

(c) Except as specified above for taxicabs, it shall be unlawful for any person to charge or collect the special event fare, or to charge or collect any other fare or remuneration on a per person basis for transportation of passengers in vehicles subject to the provisions of this chapter. However, any holder of a valid CPNC issued pursuant to the provisions of this chapter shall be permitted to hire or rent the taxicab, bus or other certificated for-hire vehicle under his control on a charter basis for a specific sum for the use of such vehicle as a complete unit.

(d) For unusual, other than regularly scheduled sporting events and/or concerts, the director of the department of public works can permit the charging of the special event fare.

(e) (1) Increase rates for airport shuttle bus special event fare from $13.00 per passenger to $15.00 per passenger per completed trip as authorized for a period not to exceed one year subject to review and further consideration by the city council and the New Orleans Aviation Board.

(Code 1956, § 12-184; M.C.S., Ord. No. 16,996, § 1, 4-20-95; M.C.S., Ord. No. 17,071, § 1, 6-1-95; M.C.S., Ord. No. 20638, § 1, 4-18-02; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 22151, § 1, 3-2-06; M.C.S., Ord. No. 22568, § 1, 4-5-07; M.C.S., Ord. No. 23079, § 1, 5-1-08; M.C.S., Ord. No. 23581, § 1, 6-18-09; M.C.S., Ord. No. 24574, § 1, 9-1-11; M.C.S., Ord. No. 26505, § 1, 7-9-15, eff. 9-1-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-748. Bridges and ferriage charges.

All ferriage and bridge tolls shall be in addition to regular meter or flat rate charges. Such tolls shall be computed on a round-trip basis.
(Code 1956, § 12-185)

Sec. 162-749. Rate to Kenner and Westbank.

The rate to or from Kenner to the parish shall be the same as the rates to and from the New Orleans International Airport as set out in section 162-753. The rate to and from the Westbank shall be metered fare plus $1.00.
(Code 1956, § 12-186)

Sec. 162-750. Fare receipt to be furnished on request.

Upon request, the driver of any taxicab shall furnish the passenger with a receipt showing the date, origin and destination of a trip, the amount of fare, the CPNC number of the vehicle and the driver's name.
(Code 1956, § 12-187)

Sec. 162-751. Charge for articles.

There shall be no additional charge for seeing-eye dogs or normal luggage such as suitcases, overnight bags, garment bags and attaché cases. A charge for the handling of other articles shall be agreed upon between the parties prior to the commencement of the trip. If the particular charges are not discussed prior to the trip, there shall be no additional charge to the passenger.
(Code 1956, § 12-188)

Sec. 162-752. Personalized service.

Whenever a driver of a taxicab or vehicle for hire, including those for the physically challenged, is called upon to render a time-consuming personalized service beyond the normal transportation of passengers, the minimum fare shall be $5.00 or the meter fare, whichever is greater. Unless an agreement to this charge has been reached between the parties prior to the trip, there shall be no additional charge to the passenger.
(Code 1956, § 12-189; M.C.S., Ord. No. 16,996, § 1, 4-20-95)

Sec. 162-753. Taxicab rates for airports.

(a) Except as provided hereinafter, taxicab fare to or from the Louis Armstrong New Orleans International Airport (Moisant Field) to or from the same destination in New Orleans shall be $36.00 for one to two passengers; and for three or more passengers to or from the same destination, the taxicab fare shall be $15.00 per passenger. Meter rate shall be charged after an initial stop in cases of additional stops from the airport, and vice versa to the airport. To or from any location east of Elysian Fields boundary line the fare shall be the metered fare from such boundary to the destination or point of origin plus the fare stated above. The fare to or from the Louis Armstrong New Orleans International Airport to or from any Westbank location shall be $36.00 plus the meter rate to or from the toll plaza.

(b) The taxicab fare to or from the New Orleans Lakefront Airport to any location in an area bounded by Galvez Street, Esplanade Avenue, the Mississippi River and Jackson Avenue for one to two passengers shall be $25.00 total fare; for more than two passengers the fare shall be $10.00 per passenger.

(c) The taxicab fare to or from Alvin Calendar Field shall be the New Orleans International Airport rate to or from the toll plaza plus the Westbank meter fare, or the meter fare for the entire trip, whichever is greater. Airport tolls and other applicable charges as specified in this chapter shall be in addition to the fares specified in this section.

(d) An additional gasoline surcharge of $1.00 per completed trip shall be authorized until December 31, 2022.

(e) All taxicabs and DFTs are required to post in plain sight in the interior of the vehicle notice to passengers of a $1.00 gasoline surcharge for each completed trip subject to design specifications approved by the director of the department of public works pursuant to 162-74.
(Code 1956, § 12-190; Ord. No. 19,598, § 1, 4-6-00; M.C.S., Ord. No. 20638, § 1, 4-18-02; M.C.S., Ord. No. 23582, § 1, 6-18-09; M.C.S., Ord. No. 23640, § 1, 7-23-09; M.C.S., Ord. No. 26505, § 1, 7-9-15, eff. 9-1-15; M.C.S., Ord. No. 29275, § 1, 12-1-22)

Sec. 162-754. Additional passengers.

(a) When all passengers are members of the same group or party and originate from the same point and go to the same destination, or when the original passenger directs the driver to pick up or discharge others in the same group or party, all passengers shall be transported for the recorded meter fare, plus applicable bridge and ferriage charges, except as provided otherwise in this article.

(b) When one or more additional groups consisting of one or more passengers share the same taxicab, the fare charged shall be metered fare. The chauffeur shall rewind the meter upon the discharging of each group. Additional passengers may be picked up at the beginning of any trip or in route only if such pick up is agreeable to the initial passenger or group employing the taxicab.
(Code 1956, § 12-191)

Sec. 162-755. Special trips.

(a) The taxicab fare to or from the Nat Keifer UNO Lakefront Arena to any location in an area bounded by Galvez Street, Esplanade Avenue, the Mississippi River and Jackson Avenue shall be $9.00 per person or the meter fare, whichever is greater.

(b) The taxicab fare from any grocery store, with one or more grocery bags, including all passengers shall be $6.00 or the meter fare, whichever is greater.

(c) The taxicab fare to and from the Union Passenger Terminal (U.P.T.), including all passengers and luggage shall be $12.00 or the meter fare, whichever is greater.

(d) The taxicab fare for the transfer of luggage between hotels or motels, including all passengers, shall be $12.00 or the meter fare, whichever is greater.

(e) The taxicab fare to and from cruise ships, including all luggage, shall be $14.00 for one person or $8.00 per person or the meter fare, whichever is greater.
(M.C.S., Ord. No. 20638, § 1, 4-18-02; M.C.S., Ord. No. 26505, § 1, 7-9-15, eff. 9-1-15)

Secs. 162-756—162-790. Reserved.

DIVISION 5. ADVERTISING

Sec. 162-791. Generally.

No sign, device or poster, whether permanent or temporary, whether for advertising or other purposes, shall be placed or carried on or inside any vehicle regulated by this article without the approval of the director of the department of public works. However, prior approval is not required for a person licensed under this chapter to affix one sticker of not more than two inches by three inches in size to the right front windvent window of his certified vehicle, indicating that such owner is a member of a recognized transportation organization or association composed of persons licensed under this article.
(Code 1956, § 12-192; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28241, § 1, 11-21-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-792. Director to authorize advertising.

(a) The director of the department of public works is hereby authorized to permit the installation of advertising cards in the passenger compartment or the top or roof area of taxicabs, on the exterior or interior of general charter vehicles, and on the exterior of sightseeing vehicles, animal drawn vehicles, and pedicabs. The director shall permit such advertisement only where the conditions set forth in this article are met. Advertising wraps are expressly prohibited on for-hire motor vehicles.

(b) With respect to the general prohibition of advertising wraps provided in subsection (a), the director is authorized to permit temporary advertising wraps or signage as may be appropriate for vehicles contracted for service to the organizer of a special event as declared by the city council, mayor, or the mayor's designee in accordance with section 162-197 of this chapter. Such temporary advertising shall be permissible only for the duration of the declared special event. Fees for such temporary advertisements shall be $25.00 per vehicle.

(c) The director of the department of public works is authorized to permit the installation of advertisement decals which promote third-party dispatch or hailing services for taxicabs, provided that such advertisements do not obstruct the CPNC numbers, CPNC holder name, or other livery as may be approved for the operation of a taxicab line. No fee shall be assessed for advertising of such third-party services on the body of the taxicab vehicle.
(Code 1956, § 12-193; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24867, § 1, 4-19-12; M.C.S., Ord. No. 26583, § 1, 9-17-15; M.C.S., Ord. No. 27150, § 1, 11-3-16; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 29981, § 3, 7-11-24)

Sec. 162-793. Misleading advertising prohibited.

Advertising of such a nature as to either make false or unsubstantiated claims or to create a misleading impression shall be unlawful.
(Code 1956, § 12-194)

Sec. 162-794. Indecent advertising prohibited.

It shall be unlawful for any advertisement to carry pictures or designs of an indecent, lewd, immoral, salacious or lascivious nature, or to be

worded in such a sense as to be suggestive in an immoral manner. No advertisement that would adversely affect the morals of youth and small children or in any way be contrary to the interests and welfare of the public shall be permitted at any time.
(Code 1956, § 12-195)

Sec. 162-795. Advertisement holder required.

All advertisements shall be enclosed only in a shatter-proof, splinter-proof card holder covered by a shatter-proof, fire resistant transparent material which shall be constructed in such a manner as to provide no safety hazard to either driver or passenger, the measurements, design and location to be determined by the director of the department of public works.
(Code 1956, § 12-196; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-796. Holder not to interfere with passengers.

No advertising sign, poster or advertising card holder, official notice, identification card or sticker required by any other provisions of this article, although otherwise complying with the provisions of this article, shall be placed in such a position within the vehicle as to interfere with the full use of the vehicle by passengers or with any equipment of such vehicle.
(Code 1956, § 12-197)

Sec. 162-797. Maintenance of advertising material.

Advertising, when placed in or on a vehicle, shall be maintained in a clean, neat and uniform manner. Soiled, torn or otherwise defaced advertisements shall be removed immediately from the advertising card holder.
(Code 1956, § 12-198)

Sec. 162-798. Inspection of advertising posters.

Each licensed vehicle owner who has installed an approved advertising card holder in or on the vehicle pursuant to the provisions contained herein shall submit such vehicle for inspection prior to placing such vehicle in operation. Vehicles shall be subject to inspection at all times, and such vehicles that fail to pass such inspection shall be subject to such penalties as are provided by this chapter.
(Code 1956, § 12-199)

Sec. 162-799. Advertising holder inspection fee.

There shall be an annual fee of $25.00 for advertising devices, payable in semiannual installments of $12.50 at the time of inspection. This fee shall be collected by the for-hire vehicle inspection station and shall be deposited with the department of finance. This fee shall not be charged for an animal-drawn vehicle advertisement.
(Code 1956, § 12-200)

Sec. 162-800. Penalties for violation of advertising privileges.

Failure to comply in any manner with the provisions of this division by any advertising firm, agent, owner or operator of any vehicle governed by this article, or any other person, shall subject the offender to such fines and penalties as are provided by this chapter as well as to the temporary or permanent removal of all advertising material from the vehicle of such owner or operator. The privilege to advertise in the vehicles covered by this division may be suspended or revoked by the director of the department of public works following due notice and a hearing in accordance with R.S. 49:951 et seq. at the ground transportation bureau.
(Code 1956, § 12-201; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. 27992, § 3, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-801—162-840. Reserved.

ARTICLE VIII. LIMOUSINES*

Sec. 162-841. Limousine rates.

(a) Rates for limousines may be calculated on the basis of time and distance, on an hourly basis, or for service to or from the airport to points within the city.

*__Cross reference—__Certificates of public necessity and convenience, § 162-151 et seq.

(b) For-hire limousine service to or from the New Orleans International Airport shall charge no less than $75.00 per trip for a luxury sedan or $90.00 for a luxury SUV and all other limousines defined by section 162-189. A for-hire limousine service to the New Orleans Lakefront Airport shall charge no less than $75.00 per trip for a luxury sedan or $90.00 for a luxury SUV and all other limousines defined by section 162-189. Nothing contained herein shall impair the obligation of any contract between the city and any airport lessee, or any per trip fee from the airport that may be assessed by the New Orleans Aviation Board.

(c) Fares to other locations can be determined on a flat fee, time usage, distance, or mileage basis. In no event shall the total charge be less than $15.00 for luxury sedans, $25.00 for luxury SUV's, and $45.00 for all other limousines defined by section 162-189 of the Municipal Code.

(1) Prior to booking a limousine, the fare calculation method, the applicable rates being charged, and the estimated fare shall be available to the customer.

(2) In addition, if reserving via internet-based software application (app), the driver's photo, ground transportation bureau driver's permit ID #, and limousine CPNC number shall be available to the customer prior to booking. Any limousine CPNC holder providing drivers to customers via an app shall verify that drivers maintain a valid driver's permit from the city's ground transportation bureau. Limousine companies shall provide a digital, searchable, database of its registered drivers to the ground transportation bureau upon request, and once per year, at a date determined and provided by the ground transportation bureau. A limousine company shall remove any individual from its list of registered drivers within 48 hours of receiving notice from the ground transportation bureau that a driver does not have a valid driver's permit.

(3) Within 24 hours of completing a trip, the customer shall receive a receipt that lists the:

a. Limousine CPNC number;

b. Driver ID;

c. Trip ID;

d. Distance of trip, including the point of origin and ultimate destination;

e. Date of trip;

f. Time of trip;

g. Fare charges;

h. Extra charges;

i. Total charges;

j. Limousine company name and phone number;

k. Words "Ground Transportation Bureau. For compliments or concerns, please call 504-658-7176."; and

l. The third party provider's name and phone number that arranged the trip, if applicable. All receipts shall be provided to the ground transportation bureau upon request, and once per year, at a date determined and provided by the ground transportation bureau.

(Code 1956, § 12-202; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 26003, § 1, 9-4-14; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-842. Airport shuttles.

The fares between hotels in the city and Louis Armstrong International Airport, or vice-versa, shall be a maximum of $30.00 for one-way trips and $56.00 for roundtrips, including federal tax and airport tolls; provided however, that no provision of this article shall impair the obligation of any contract between the city and any airport lessee, which contract reserves to such lessees.

(Code 1956, § 12-179; M.C.S., Ord. No,. 21127, § 1, 6-5-03; M.C.S., Ord. No. 23708, § 1, 9-17-09; M.C.S., Ord. No. 26608, § 1, 10-1-15; M.C.S., Ord. No. 29281, § 1, 12-15-22)

Secs. 162-843—162-895. Reserved.

ARTICLE IX. TOUR VEHICLES AND BUSES*

DIVISION 1. GENERALLY

Sec. 162-896. Display of rates.

Per capita tour vehicles must post the rates for each tour offered to the public or provide to the prospective passenger in advance of such tour an information sheet or folder outlining the points of interest to be visited and the cost of such tour.
(Code 1956, § 12-180)
Cross reference—Vieux Carré, ch. 166.

Sec. 162-897. Administrative regulations.

The director of the department of public works shall make such administrative regulations which may be necessary to implement the provisions of this article.
(Code 1956, § 12-251; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-898. Tour bus service.

All buses operating as tour buses within the city must have a driver or a tour guide who has been issued a tour guide license by the city. All tour buses shall be operated in accordance with all provisions applicable to tour buses in this chapter.
(Code 1956, § 12-75)

Sec. 162-899. Identification of buses.

The for-hire vehicle number of each for-hire vehicle bus shall be painted on each side of such vehicle in letters and figures at least two inches high. The CPNC number shall also appear in the lower inside right-hand side of the windshield conspicuously visible to the riding public in numerals at least two inches high, the color of the background to coincide with the numerals on the outside of the bus.
(Code 1956, § 12-97)

Sec. 162-900. Relinquishment of certain seats on wheelchair lift-equipped buses; exemption.

(a) Passengers on any wheelchair lift-equipped bus under the provisions of this article shall, when requested by the operator of that bus, relinquish their seats above the bus's wheelchair lock mechanism to enable the operator to secure a handicapped passenger's wheelchair to the bus floor. Failure to relinquish a seat under these circumstances shall constitute a misdemeanor.

(b) The provisions of this section shall not apply to buses operating under a franchise from the Louisiana Public Service Commission or to chartered buses.
(Code 1956, § 12-82)

Secs. 162-901—162-940. Reserved.

DIVISION 2. REGULATIONS

Sec. 162-941. Garden District tour bus route limitations.

(a) *Authorized zones.* Except as otherwise provided by this section, no buses with a seating capacity of more than 20 passengers shall be permitted to travel on any street within the area known as the Garden District, which is bounded by St. Charles Avenue, Jackson Avenue, Louisiana Avenue and Magazine Street. Tour buses may be stopped for the purpose of receiving and discharging passengers for the Garden District at authorized zones that are marked and bear signs indicating that tour buses may stop for the purpose of receiving and discharging passengers. Tour buses may be parked while pedestrian Garden District Tours are in progress at authorized zones within nonresidential areas. The authorized zones shall be designated by the director of the department of public works.

*__Cross references—__Public transportation at the New Orleans International Airport, § 22-81 et seq.; franchises, § 30-36 et seq.; certificates of public necessity and convenience, § 162-151 et seq.

(b) *Exceptions.*

(1) The bus route limitation of this section shall not be applicable to school buses transporting students in the Garden District.

(2) The director of the department of public works may authorize up to 22 buses per month having a seating capacity of more than 20 passengers to travel on Prytania Street and Washington Avenue within the Garden District for the sole purpose of receiving and discharging passengers from commercial establishments if customers were transported to the establishments by bus on a regular basis on or before July 1, 1979. A permit shall be issued by the director of the department of public works to each bus authorized to travel on Prytania Street and Washington Avenue under the provisions of this subsection. The permit shall be displayed in a conspicuous place on the bus so as to be visible to police or other law enforcement officers in accordance with regulations established by the director of the department of public works. Buses permitted under this subsection shall park only in authorized zones marked and bearing signs permitting such parking, such zones to be designated by the director of the department of public works and the director of the department of public works.

(c) *Penalty.* In addition to any other penalty that may be imposed in accordance with the laws of this city and state, the director of the department of public works may suspend a permit issued pursuant to this section for any violation of this section for not less than one nor more than five days. The director may revoke a permit issued to this section for repeated violations of this section.

(d) *Parking.* Except as otherwise provided by this section, it shall be unlawful to park any bus with a seating capacity of more than 20 passengers in the Garden District.

(e) *Operation at idle.* It shall be unlawful for the operator of a bus to allow the bus to operate at idle for a period longer than ten minutes in the Garden District, except for situations beyond the operator's control.

(f) *Violations.* It shall be unlawful for the operator of any bus to violate the provisions of this section. Any person cited for violation of this section shall be subject to arrest or to the issuance of a summons or citation.
(Code 1956, § 12-249; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-942. Vieux Carré bus limitations.

(a) It shall be unlawful for any bus having an overall length longer than 31 feet to use any street within the Vieux Carré, except as provided for in the rules and regulations promulgated under subsection (d) of this section.

(b) Those buses with an overall length in excess of 20 feet and not greater than 31 feet may use the streets of the Vieux Carré as provided for in this section. For the purposes of this section a bus shall be defined as any road bus, tour bus or tour vehicle, excluding limousines and taxicabs.

(c) For the purposes of this section, Vieux Carré shall mean the area within the lake side of North Peters Street, the center line of Decatur Street between Conti Street and St. Philip Street, the downriver side of Esplanade Avenue, the river side of North Rampart Street and the downriver side of Canal Street. Therefore, all buses, regardless of the overall length, shall be permitted to use North Rampart Street, Canal Street, North Peters Street, and the river side of Decatur Street between Conti Street and St. Philip Street.

(d) A properly licensed CPNC bus having an overall length in excess of 20 feet and not greater than 31 feet shall be permitted to use routes in the Vieux Carré as recommended by the director of the department of public works and approved by the city council. The director of public works shall, within 135 days of the adoption of this ordinance (Ordinance Number 17,558 M.C.S., as amended by Ordinance Number 17,727 M.C.S.), promulgate such rules and regulations, in compliance with section 2-1000 of the City Code, as enacted by Ordinance Number 17,611 M.C.S., necessary to enforce the provisions of this section. Such rules and regulations shall become effective, in accordance with section 4-107(3)(d) of the Home Rule Charter, only after approval by the city council, after review and recommendation by the council's ground transportation committee or its successor. No bus operator while loading or unloading passengers shall be permitted to idle the bus engine longer than ten minutes. Further, no bus shall be allowed to stop in one place for a period in excess of 15 minutes.

(e) A violation by a CPNC holder or its driver of any of the regulations set forth in this section shall result in a fine and/or suspension or revocation of the CPNC according to the following:

(1) First violation in any 12-month period shall result in a fine of not less than $200.00 nor more than $500.00, to be determined by a duly authorized hearing examiner following a hearing on the matter.

(2) Second violation in any 12-month period shall result in a fine of $500.00 and/or suspension of the CPNC for a minimum period of one month and a maximum period of six months, to be determined by a duly authorized hearing examiner following a hearing on the matter.

(3) Third violation in any 12-month period shall result in a fine of $500.00 and suspension of the CPNC for a minimum period of three months and a maximum

period of 12 months, to be determined by a duly authorized hearing examiner following a hearing on the matter.

(4) Fourth violation in any 12-month period shall result in the revocation of the CPNC. If another violation takes place during the revocation period, an additional period of 12 months shall be added to the revocation period for each violation. Prior to such revocation, the CPNC holder shall be entitled to a hearing on the matter before a duly authorized hearing examiner.

(f) A violation by a bus driver or company who is not a CPNC holder of any of the regulations set forth in this section shall result in a fine and/or imprisonment and additional actions by the city according to the following:

(1) First violation shall result in a fine of not less than $200.00 and the department of public works' nonapproval of any CPNC application made by the offending driver or the offending company for a three-month period from the date of the violation.

(2) Second violation shall result in a fine of not less than $400.00 and imprisonment for not more than three months and the department of public works' nonapproval of any CPNC application made by the offending driver or the offending company for a six-month period from the date of the violation.

(3) Third violation shall result in a fine of not less than $500.00 and imprisonment for not less than 30 days. Thirty days or more of public service in the Vieux Carré and adjacent areas may be substituted for the days of imprisonment. Further, the department of public works shall not consider any CPNC application or issue any CPNC to the offending driver or the offending company for a period of nine months from the date of the violation.

(4) Four or more violations shall result in a fine of not less than $500.00 and imprisonment for not less than 60 days for each violation. Sixty days or more of public service in the Vieux Carré and adjacent areas may be substituted for the days of imprisonment. Further, the department of public works shall not consider any CPNC application or issue any CPNC to the offending company for a period of 12 months from the date of the violation. Further, if more than four violations take place, an additional 12-month nonapproval period shall be added for each violation to the original period during which time no CPNC application shall be considered or issued.

(g) The director of the department of public works shall make such administrative regulations which may be necessary to implement the provisions of this section; such regulations shall become effective upon approval of the city council after review and recommendation by the council's ground transportation committee or its successor.

(Code 1956, § 12-250; M.C.S., Ord. No. 17,558, § 1, 6-6-96; M.C.S., Ord. No. 17,727, § 1, 8-15-96; M.C.S., Ord. No. 17,789, § 1, 10-3-96; M.C.S., Ord. No. 17,823, § 1, 10-17-96; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 25795, § 1, 4-24-14; M.C.S., Ord. No. 28624, § 2, 3-11-21)

State law reference—Authority to regulate, R.S. 45:180(F).

Sec. 162-943. Eastern New Orleans tour bus route limitations.

Authorized zones. Except as otherwise provided by this section, no tours for compensation may be conducted in the area east of the Industrial Canal. Tours for compensation may not be conducted in that area.

(M.C.S., Ord. No. 22118, § 1, 1-5-06)

Sec. 162-944. Definitions.

Noisemakers shall mean any device, not required for the legal operation of the vehicle, either sold or distributed free of charge which produces sounds similar to bells, horn, whistles, claps, or sounds imitative of animals.

(M.C.S., Ord. No. 25794, § 1, 4-24-14)

Sec. 162-945. Amphibious vehicle limitations.

Any tour bus or sightseeing bus capable of amphibious transportation shall be precluded from operating within the geographical boundaries of New Orleans City Council District "A" and New Orleans City Council District "C."
(M.C.S., Ord. No. 25794, § 1, 4-24-14)

Sec. 162-946. Prohibition on noisemakers and amplified sound in the operation of any tour or sightseeing vehicle including vehicles capable of amphibious transportation.

The operators and employees of any tour bus or sightseeing bus including vehicles capable of amphibious transportation shall not use noisemakers, permit the use of noisemakers, or distribute noisemakers to passengers. Amplified sound, other than sounds produced for the legal operation of the vehicle, shall not be plainly audible from the public-right-of-way or private property while operating any tour bus or sightseeing bus including vehicles capable of amphibious transportation in the City of New Orleans in order to minimize the intrusion of amplified sound.
(M.C.S., Ord. No. 25794, § 1, 4-24-14)

Sec. 162-947. Regulation of per capita continuous loop, fixed-route sightseeing tour vehicles.

(a) Per capita continuous loop, fixed-route sightseeing tour vehicle stops located on city-owned streets or other city-owned property require approval by the director of public works.

(b) Signage located on city-owned streets or other city-owned property identifying the location of per capita continuous loop, fixed-route sightseeing tour vehicle stops is required, the design and placement of which requires approval by the director of public works.

(c) Stops on city-owned streets shall be for active passenger loading and unloading only and not used for staging.

(d) Per capita continuous loop sightseeing stops on city-owned streets that are co-located with regional transit authority stops are permitted, subject to the approval of the director of public works.

(e) The executive director of the regional transit authority shall be notified of the locations of the continuous loop, fixed-route sightseeing tour vehicle stops.

(f) The regional transit authority shall be notified by the department of public works of any application for a vehicle stop at the same location where an regional transit authority has a stop.

(g) The director of the department of public works is hereby authorized, as a police measure, to designate the location of continuous loop sightseeing stops on the streets and other public places in the city. Such stands shall be marked by appropriate signs and shall be reserved exclusively for the parking of taxicabs or other for-hire vehicles as specified by such signs, while waiting to pick up passengers for hire.
(M.C.S., Ord. No. 27735, § 1, 4-19-18; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 30194, § 1, 12-19-24)

Editor's note—M.C.S., Ord. No. 27735, § 1, adopted April 19, 2018, set out provisions intended for use as § 162-944. At the editor's discretion, to prevent duplication of section numbers, these provisions have been included as § 162-947.

Secs. 162-948—162-960. Reserved.

ARTICLE X. COURTESY TRANSPORTATION IN TOUR INDUSTRY*

Sec. 162-961. Courtesy transportation declaration to be posted.

All courtesy transportation or courtesy vehicles in the tour industry shall post interior signage

*__Editor's note—__The provisions of this article shall remain in effect for one year, at which time the director of the department of utilities shall appear before the ground transportation committee of the city council to submit a report including recommendation on the findings of the department relative to the registration of courtesy transportation or courtesy vehicles in the tour industry.

Cross reference—Tour guides and tour planners, § 30-1486 et seq.

approved by the director of the department of public works, declaring the transportation provided is free of charge, or complimentary.
(M.C.S., Ord. No. 16,479, § 1(12-176.1), 4-21-94; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-962. Registration and requirements.

(a) All courtesy transportation or courtesy vehicles in the tour industry shall be required to file a notarized declaration form annually with the ground transportation bureau of the department of public works specifying the following:

(1) Number of courtesy vehicles including the model of each vehicle.

(2) Vehicle identification number.

(3) License plate number of each courtesy vehicle.

(4) Proof of insurance of coverage.

(b) With the exception of limousines or luxury sedans, all courtesy transportation or courtesy vehicles in the tour industry shall have exterior signage (visible from a distance of 50 feet indicating the name of the owner of the vehicle (hotel, restaurant, etc.,) and that the courtesy vehicle is free of charge, courtesy, or complimentary. Failure to comply with the registration and requirements for courtesy transportation or courtesy vehicles in the tour industry shall subject the owner of the transportation or vehicles to a minimum fine of $25.00 for the first offense and $50.00 for subsequent offenses. If these fines are not paid within 30 days, the department of public works shall not issue a motor vehicle inspection tag to the vehicle in default.
(M.C.S. Ord. No. 16,479, § 1(12-176.2), 4-21-94; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-963—162-995. Reserved.

ARTICLE XI. TOWING, RECOVERY AND STORAGE REGULATIONS*

DIVISION 1. GENERALLY

Sec. 162-996. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accident shall mean a situation where one or more motor vehicles have collided with any motor vehicle or object.

City shall mean the City of New Orleans.

Compulsory liability insurance/security impoundment shall mean the towing and storage of a vehicle in violation of state law requiring proof of insurance coverage to be maintained in a vehicle operated within the state.

Consent tow shall mean the towing of a motor vehicle upon the consent of the vehicle owner.

Heavy-duty tow/vehicle means any vehicle which because of its size, weight or other design characteristics, or due its position off road or submerged in water, would require its transport by towing by a heavy-duty tow truck as defined in sections 162-1020 through 162-1021.

Motor vehicle means every vehicle which is self-propelled, and every vehicle which is propelled by electric power obtained from overhead trolley wires, but not operated upon rails, but excluding a motorized bicycle. Motor vehicle shall also include a "low-speed vehicle" which is a four-wheeled, electric-powered vehicle with a maximum speed of not less than 20 miles per hour but not more than 25 miles per hour and is equipped

*__Editor's note__—M.C.S., Ord. No. 28755, § 1, adopted August 5, 2021, amended Art. XI in its entirety to read as herein set out. Former Art. XI, §§ 162-996—162-1017, pertained to similar subject matter, and derived from M.C.S., Ord. No. 19,148, § 1, adopted March 31, 1999.

Cross references—Franchises, § 30-36 et seq.; certificates of public necessity and convenience, § 162-151 et seq.

State law reference—Towing services, R.S. 45:180.1 et seq.

with the minimum motor vehicle equipment appropriate for vehicle safety as required in 49 C.F.R. 571.500.

Nonconsensual tow shall mean the towing of a motor vehicle where the vehicle owner has not called a towing service for assistance or is unable or unwilling to do so.

NOPD shall mean the New Orleans Police Department.

NOPD towing allocation list shall mean the list of towing companies authorized to provide tow truck response and storage as maintained by the NOPD towing and recovery section.

Police authorized tow shall mean the nonconsensual towing of a motor vehicle upon authorization of a city police officer from a police scene at which the vehicle owner is not present, is incapable of making or declines to make arrangements for the removal of the vehicle or is in violation of state compulsory liability insurance/security law.

Police scene or *scene* shall mean a place at which an accident has taken place that is subject to police field investigation, a place at which the city has recovered a stolen vehicle, a place at which a vehicle has been abandoned in a roadway, a place where custodial arrest by police has taken place, or any place at which a vehicle is subject to removal or impoundment pursuant to law by a police officer.

Storage lot shall mean an automobile storage facility situated within the city.

Recovered stolen vehicle shall mean any vehicle which has been previously reported stolen, recovered by a police officer, and no longer has any evidentiary value.

Tow means pull, winch, carry, or otherwise move a vehicle or equipment other than by its own power with the use of a tow truck.

Tow truck means any motor vehicle equipped with a boom or booms, winches, slings, tilt beds, and/or similar equipment designed for the towing and/or recovery of vehicles and other objects which cannot operate under their own power or for some reason must be transported by means of towing.

Towing allocation approval means a letter issued by the NOPD which authorizes a towing company to perform towing and provide for storage of vehicles established by this article.

Towing allocation decal means a sticker issued by the NOPD for each tow truck to be used in the performance of towing allocation list responsibilities which certifies that such truck has been inspected and meets all vehicle, boom and winch, and accessory specifications and requirements as are mandated by law.

Towing service business/towing company means the business by an individual, partnership, corporation, or other entity of providing tow service which may include transportation and storage of a vehicle to a storage lot.

Vehicle owner shall mean the actual owner of the vehicle towed or transported or any driver of the vehicle who reasonably appears to have authority to operate the vehicle.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-997. Operational requirements.

Every towing service business operating within the City of New Orleans shall comply with the following operational requirements: Each tow truck and towing service business shall possess all necessary federal, state, and city certificates, licenses and permits to operate as designated.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 2. TOWING ALLOCATION LIST/QUALIFICATION CRITERIA AND TOWING REQUIREMENTS

Sec. 162-998. Administration, enforcement.

It shall be the duty of the NOPD, under the direction of the superintendent of police (superintendent), to implement, administer, and enforce the provisions of this article. The duties shall include, but not be limited to the following: the proper advertisement requesting applications for the towing allocation list; the evaluation of applications for the towing allocation list and determination of towing companies which qualify; the issuance of towing allocation decals;

the request for dispatch of tow trucks to the scene of a wrecked or a disabled vehicle; to ensure that towing companies within the approved list perform in accordance with the requirements of their agreement and city ordinance.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-999. NOPD towing allocation list.

The NOPD is authorized to prescribe and promulgate rules, regulations and minimum requirements for towing service businesses to be included on a towing allocation list to provide emergency tow truck response and storage for nonconsensual tows in order to increase public safety and in conformance with R.S. 32:1711 through R.S. 32:1731. Any such rules, regulations, and requirements not already contained in this article shall be subject to the procedure for the promulgation of regulations established in section 2-1000. The towing allocation list shall include only towing businesses located within the city and ownership or contractual access to business and storage lot facilities within the city. Such authorization shall remain current for one calendar year unless terminated by an action of the NOPD. Qualification for the towing allocation system list shall be on an annual basis only.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 3. APPLICATION AND FEES

Sec. 162-1000. Application.

Each applicant for the towing allocation list shall submit an application with the NOPD, shall meet the requirements established herein, and shall certify the same in writing. No participation shall be granted if the applicant fails to meet the requirements of this article or if the applicant provides the NOPD with false, misleading, or incomplete information. Towing allocation decals issued based on false, misleading, or incomplete information furnished by the applicant shall be revoked by the superintendent, or their designee, and towing allocation privileges shall be permanently revoked for any company found providing false, misleading, or incomplete information on their application. Applicants shall agree to release vehicles immediately upon retrieval by the owner and bill the City of New Orleans directly for fees associated with towing, recovery, and/or storage of vehicles that have been previously reported as stolen, provided that the City of New Orleans is not billed for more than 90 days of storage fees, except in instances of extenuating circumstances when agreed upon by the chief administrative officer. Under no circumstances shall an applicant require vehicle owners to provide a copy of a police report as a condition of releasing their vehicle.
(M.C.S., Ord. No. 28755, § 1, 8-5-21; M.C.S., Ord. No. 29085, § 1, 7-7-22)

Sec. 162-1001. Owners and operators

(a) No officer, owner, partner, person, employee, or other individual with a financial interest in the licensed towing company making an application for the towing allocation list, shall have ever been convicted of a violation of any of the provisions of R.S. 32:521 pertaining to stored motor vehicles or R.S. 32:701 et seq., the Louisiana Certificate of Title Law, R.S. 14:67.26 pertaining to auto theft, R.S. 14:68.4 pertaining to unauthorized use of a motor vehicle, or R.S. 14:69 pertaining to possession of stolen property concerning anything vehicle related.

(b) Additionally, any company, which has an officer, principle or employee who has been convicted of a felony within the last ten years, or is under indictment at the time of application, shall not be considered for participation on the towing allocation list.

i. The superintendent may establish such rules and regulations as are necessary to enforce the provisions of this section including criminal history investigations of company personnel for the last ten years.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1002. Insurance.

Certificates of insurance issued by an insurer licensed to do business in the State of Louisiana and attesting to carriage with coverage in the

amounts hereinbelow listed shall be submitted with the application. Required coverage includes:

(1) Liability coverage in an amount of not less than $300,000.00 personal injury coverage for one person, $500,000.00 personal injury coverage for one accident or incident, or a combined single limits coverage in a single policy of $300,000.00 and $50,000.00 property damage coverage.

(2) Garage keeper's legal liability insurance, insuring the perils of fire and collision in an amount of $50,000.00 and showing the types, amounts and classes of operation covered.

(3) On-hook coverage in an amount of not less than $25,000.00.

(4) An umbrella policy with coverage in an amount not less than $1,000,000.00 extending to coverages required herein. All certificates shall contain the initial and the expiration dates of carriage and coverage and the following statement:

"The insurance covered by this certificate shall not be canceled or materially altered except after ten days' prior written notice of such cancellation or alteration has been given to the NOPD and acknowledged in writing."

If the liability coverage of any vehicle does not meet the requirements of this article, the towing allocation decal shall be removed.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1003. Application fee.

The NOPD shall charge a $20.00 processing fee for each application for the towing allocation list. This fee shall cover the inspection of the applicant's storage facility and tow truck. Additionally, there shall be a $10.00 surcharge for each towing truck inspected which shall be utilized in performance of towing allocation list duties. Such fees are due when the application is presented to the NOPD and are non-refundable regardless of the applicant's eligibility, approval/disapproval, or removal from the towing allocation list.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 4. TOW TRUCK INSPECTION

Sec. 162-1004. Required.

The superintendent, or their designee, shall inspect each tow truck which shall be used in the performance of towing allocation list responsibilities for conformance with the tow truck requirements established in this article. The superintendent, or their designee, shall make available all inspection requirements in advanced of an inspection.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1005. Re-inspections; suspension, revocation of license.

Any towing company whose tow truck fails to meet the requirements of inspection outlined in city or state law shall have ten days to bring such vehicle into compliance with the requirements. Failure to bring the vehicle into compliance within ten calendar days of the date of the inspection failure shall result in a temporary suspension of the towing allocation privileges and removal of the towing allocation decal until compliance is reached.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1006. Annual re-inspections.

Every tow truck used in the performance of towing allocation list responsibilities shall be submitted for, and pass inspection not less than once every 12 months following initial date of certification on a schedule to be determined and published by the superintendent, or their designee.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1007. Spot inspections.

All tow trucks operated in the performance of towing allocation responsibilities shall be subject to inspection at any time while certified under this article and shall be maintained in a state of mechanical fitness as required by city and state law. The superintendent, or their designee, shall have the authority to require periodic inspections, other than those regularly scheduled under section 162-1288, when such inspections through reason and sound judgment are deemed necessary.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1008. Special inspections.

In addition to the annual inspections required, every tow truck shall be inspected by NOPD:

(a) Prior to issuance of the towing allocation decal;

(b) Whenever there is a transfer of the vehicle from one licensed towing company to another; or

(c) Whenever the vehicle has been involved in a crash requiring repairs.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 5. TOWING ALLOCATION DECAL

Sec. 162-1009. Inspection decal.

(a) When the towing vehicle has met all of the requirements established in this article and paid the required fees, the superintendent, or their designee, shall issue a towing allocation decal of such size, color and form as the superintendent, or their designee may determine, and shall cause the same to be affixed to the windshield of the vehicle. The towing allocation decal shall be identified by number. If it becomes damaged or destroyed, a duplicate shall be issued by the superintendent, or their designee, after application has been made, at the same cost as the original decal.

(b) The operation of a tow truck by a towing allocation list operator which has not received a towing allocation decal shall result in their revocation from the towing allocation list.

(c) No towing allocation decal shall be issued until proof of liability coverage that meets the requirements of this article is confirmed by the city.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1010. Expiration and renewal of certificate.

(a) Each tow truck certificate issued by the superintendent, or their designee, pursuant to the provisions of this article, unless removed for cause, shall expire at the end of each calendar year; shall be renewable on the first of the following calendar year; and shall show, by numeral on the face thereof, the year of its expiration.

(b) Unless the towing allocation decal/certificate is renewed prior to its expiration, each such decal/certificate shall expire on the applicable expiration date as set forth in a schedule determined and posted by the superintendent, or their designee.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1011. Removal of towing allocation privileges.

Upon completion of the towing vehicle inspection, the NOPD shall, if necessary, remove from the approved list any towing allocation company operating a tow truck found defective or is not able to pass inspection at any time. The current decal shall be removed from the vehicle by the NOPD and a new towing allocation decal shall not be issued until all defects have been corrected and the towing vehicle passes inspection. Additionally, any towing company, towing vehicle or driver that violates this article or the rules set forth by the superintendent, or their designee, shall have their towing allocation privileges revoked until the case is adjudicated in court.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1012. Towing allocation list qualification criteria.

Each applicant shall maintain their towing and recovery business "storage facility" in Orleans Parish. The applicant must maintain all records pertaining to calls made under the towing allocation list at the storage facility, titled for this towing, recovery, and storage business and staffed Monday through Friday 8:00 a.m. to 5:00 p.m., excluding legal holidays. The towing service must make these records available for inspection by the NOPD. A representative of the towing and recovery business shall be on call for emergencies, and an owner of a towed vehicle shall not be charged a storage fee for the days that the owner could not retrieve his or her vehicle as a result of an action or omission from which the tow business would benefit. Each applicant shall maintain all insurance coverage required by Louisiana law, including worker's compensation insurance and sufficient liability insurance to indemnify the City of New Orleans against any losses. A certificate of insurance shall be required as proof of insurance at the submission of an application or renewal. There shall be an annual fee of $20.00 paid to the City of New Orleans for the NOPD to inspect and verify that a towing business and single tow truck meet the criteria as herein established for the towing allocation list at a particular location in the city. There shall be an annual fee of $10.00 paid to the City of New

Orleans by the tow truck owner for the NOPD to inspect and verify that each additional tow truck meets the criteria as herein established for the towing allocation list.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1013. Equipment requirements/ personnel standards.

Tow trucks and operators shall meet all City of New Orleans equipment requirements and personnel standards as follows:

(1) Each towing business shall use a unique name as designated on the state towing license, which shall be clearly distinguishable from the trade name of any other licensee.

(2) No tow truck owner shall operate or permit anyone to operate a tow truck until the following requirements are fulfilled:

a. Tow truck operators shall have valid licenses as required by state and municipal law.

b. Every operator shall be competent by reason of experience or training to safely operate the type of tow truck or tow trucks authorized by the state towing license.

c. Every operator shall possess the knowledge and ability to rig, move, pick up, and transport vehicles without causing or increasing existing damage insofar as possible.

d. Every operator shall be free from impairment of alcoholic beverages, narcotics, or dangerous drugs when operating a towing service or tow truck.

e. No tow truck company or individual shall operate a tow truck without having in his possession proof of current insurance in accordance with state law.

(3) Every owner and operator shall be familiar with the laws, rules, and regulations pertaining to tow trucks.

(4) Drivers are to wear clothing sufficient to identify the towing company and driver.

(5) Any person operating a tow truck will have the necessary experience and qualifications to operate a tow truck in the manner required by this article.

(6) All tow truck drivers will develop, for each vehicle towed or serviced, an itemized statement, bill, or invoice of the towing and storage charges incurred.

(7) Drivers must be 18 years of age or older. Only those duly licensed to drive in the State of Louisiana shall be permitted to drive and operate a tow truck. The class of operator's license must be compatible to the equipment operated.

(8) Tow trucks shall comply with all applicable lighting and equipment requirements in accordance with state law.

(9) All tow trucks, except slide back recovery vehicles while they are transporting a vehicle on their beds, shall be equipped with at least one amber rotating or flashing beacon visible for 360 degrees at a distance of 1,000 feet under normal atmospheric conditions at night. While at the scene of an accident, recovered stolen vehicle, or disabled vehicle, or when actually towing a vehicle, a tow truck operator shall illuminate or cause to be illuminated the amber rotating or flashing beacon.

(10) All tow trucks shall be equipped with the following required equipment:

a. *Oil-absorbent material:* All tow trucks shall have at least the following: Sand, clean dirt, or a commercial oil and grease absorbent in an amount of at least 1,155 cubic inches or the equivalent of a five-gallon can of material which is carried in a weatherproof container.

b. *Electric lantern or flashlight:* All tow trucks shall have at all times, in good working condition, a battery

powered electric lantern, or two-cell flashlight in lieu of an electric lantern.

c. *Fire extinguishers:* Each tow truck shall be equipped with either:

1. A fire extinguisher having an Underwriters Laboratories rating of 5 B:C or more; or

2. Two fire extinguishers, each of which has an Underwriters Laboratories rating of 4 B:C or more.

d. *Steering wheel clamp:* A steering wheel clamp, rope, or its equivalent shall be of sufficient strength to adequately lock the steering mechanism of a towed vehicle in a straightforward position.

e. *Tow sling or tow plate:*

1. Every tow truck shall be equipped with a tow sling, plate, bar, or equivalent that is structurally adequate for any weight drawn. Slings or plates shall be properly and securely mounted on the tow truck without excessive slack.

2. The tow plates, slings, and tow-bars shall be securely attached to the towed vehicle by means of chains, hooks, straps, or equivalent. Attachment chains will have a capacity equal to the weight of the towed vehicle. At least two chains, hooks, straps, or equivalent shall be used.

f. *Attachments:*

1. Every towed vehicle shall be coupled to the tow truck with attachments of a structural strength adequate to safely tow the vehicle.

2. Attachments shall be securely attached to the towing and towed vehicle with no more slack left in the attachment than is necessary to permit proper turning.

(11) Each tow truck shall display on the door or side panel the trade name to their respective business, as registered with the NOPD. The letters are to be at least 2½ inches in height and shall be permanently affixed to the tow truck.

(12) Capacities and specifications of towing equipment:

a. The minimum standards of each tow truck license shall be determined solely by the manufacturer's specifications for the capabilities and capacities of the tow trucks and all towing equipment.

b. Each tow truck shall be equipped with only those winches and cranes that have been produced and constructed by a manufacturer of such equipment who carries product liability insurance, and which regularly produces winches and cranes of guaranteed quality.

1. A winch or crane will not be prohibited by this subsection if the tow truck owner possesses certification from a reputable testing laboratory, regularly engaged in the testing of such equipment or similar equipment, indicating that the capacity of the winch or crane is not less than the weight for which application has been made.

2. All costs of such testing and certification shall be borne by the tow truck owner/applicant.

(13) No tow truck shall tow another vehicle, unless the tow truck has a manufacturer's rating of 10,000 gross vehicle weight rating (GVWR) or higher, and the tow truck has been issued the appropriate towing license plate required by the State of Louisiana. Tow trucks with a manufacturer's rating of less than 10,000 GVWR shall not be permitted.

(14) All tow truck components (i.e., winches, booms, cables, cable clamps, thimbles, sheaves, guides, controls, blocks, slings, chains, hooks, and hydraulic components) are to be maintained in good condition at all times. Cable fittings for hooks, slings, etc., shall be assembled by factory recommendations and specifications. All portable equipment (i.e., shovel, broom, reflectors, flashlights, fire extinguisher, etc.) shall be permanent accessories and be available on the truck at all times.

(15) It is required that the owner/operator carry on board the towing vehicle the following: Proof of all required insurance including a hazardous material policy, if applicable.

(16) Tow truck equipment specifications:

a. At no time shall any tow truck exceed its manufacturer's gross vehicle weight rating or the manufacturer's rated capacity for the towing assembly.

b. At no time will a tow truck attach to a vehicle which, by its size and/or weight, would make towing such vehicle an unsafe movement. That is, a tow truck and its load should never exceed the capabilities of the towing vehicle to safely accelerate, stop, or maneuver.

(17) Towing services shall determine the method and manner of removing vehicles; provided, however, that they shall exercise due care in removal operations and shall follow the lawful direction of any law enforcement officer directing the removal so as not to impede traffic or endanger the general public and property.

(18) Each tow truck authorized on the City of New Orleans towing allocation list shall display on the left front window above the brake tag the NOPD decal, recognizing their approved participation on the towing allocation list.

(19) Towing services and operators on the towing allocation list, in accordance with the provisions of this article, shall be liable and answerable for damages for all injuries or damages whatsoever caused directly or indirectly by the use or operation of the towing allocation list tow truck, whether at the time of the injury or damages such tow truck was being used or operated by the owner, agent, servant or employee or other persons not agents, servants or employees of the holder, unless proof is shown that the vehicle was stolen.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1014. Storage facilities.

Storage facilities shall meet all City of New Orleans requirements as follows:

(1) *Towing / storage facility business practices.*

a. Storage facility business hours for purposes of inspection of records, place of business, and towing equipment shall be Monday through Friday, 8:00 a.m. to 5:00 p.m., excluding holidays.

b. When an operator is not open for business and does not have personnel present at the place of business, the operator shall post a clearly visible telephone number at the business location to advise the public how to make contact for the release of vehicles or personal property.

c. All billing invoices that are provided to the redeemer of the vehicle shall be consecutively numbered and shall contain the following information:

1. Date of service and tow truck operator's name.

2. The name of any police agency requesting the tow, if applicable.

3. If the call for service is for a private individual, then an invoice must contain the full name, address, driver's license

number or some form of permanent identification of the person requesting the tow.

4. Itemized fees for service; and
5. The date the vehicle was released.

d. Any invoice, bill, statement, authorization or other form utilized by a towing company, which is to be signed by the owner (or agent) of a vehicle to be towed, must be of a format approved by the NOPD. This form must clearly denote what service is being authorized by signature. That is, there will be a separate signature line which merely authorizes the towing of the vehicle and another signature line to authorize any repairs to the vehicle.

e. No repairs shall be performed upon any vehicle unless there is an explicit signed written agreement authorizing such repairs.

f. Towing companies must submit a sample copy of their invoices to the NOPD towing and recovery unit to be kept on file there. Any invoice which does not meet the criteria outlined above will be in violation of these regulations and any charges for services on an unauthorized invoice will be forfeited. Towing companies shall furnish copies of invoices required herein with their application to the towing allocation list.

g. A copy of the invoice shall be filed by invoice number at the business location and a copy of any voided invoices shall be retained in this same file.

h. The address that the towing service lists on its application shall be the business location where its business records are kept. The application shall also list the locations of all storage areas for vehicle redemption.

i. The owner of a storage facility will be required to maintain a suitable office to transact business and to accommodate the public. It shall be staffed from at least 8:00 a.m. to 5:00 p.m., Monday through Friday, except holidays, throughout the year. Such facilities must be maintained properly, be clean, be presentable at all times and shall be subject to inspection by the NOPD towing and recovery unit.

j. Towing services must make business records available for inspection upon request by law enforcement officers, which information shall be confidential and shall not be released or deemed a public record.

(2) *Storage procedures:*

a. All vehicles shall be handled and returned in substantially the same condition as they existed before being towed.

b. All storage facilities shall employ reasonable safeguards and procedures so that all personal belongings and contents in the vehicle are intact and returned to the vehicle's owner or agent upon release of the vehicle. Reasonable requests for the return of essential property to the owner or agent of the property prior to the release of the vehicle shall be considered and honored wherever possible.

c. All personal property left in a vehicle and not claimed prior to a towing company obtaining a permit to sell such vehicle will be handled in accordance with existing applicable civil law. Reasonable requests for the return of essential property shall be honored whenever possible.

d. Any person who shows proof of ownership or written authorization from the impounded vehicle's

registered or legal owner may inspect and view the vehicle without charge during normal business hours.

(3) *Storage facility:*

a. Storage areas must be secured against unauthorized entry in such a way as to give security to the property contained therein.

b. Storage lots shall be designed to be adequate in size for the individual towing service's need for storing vehicles. The storage facility shall be of sufficient size to accommodate a minimum of 20 stored vehicles. Shared use of a storage facility by more than one towing and recovery business is prohibited, unless authorized by the Louisiana Department of Public Safety and Corrections.

c. If a facility uses outdoor storage, fence material shall be of wood or metal design or of no less quality wire than 14½ gauge hog wire.

1. The fence must not be less than six feet in height.

2. All lots shall have at least one gate of the same quality material as the fence.

3. If such construction upon existing lot(s) is in violation of municipal zoning ordinances or other laws, the operator may file a petition for an alternate means of compliance and a proposed security plan with the NOPD towing and recovery unit.

d. If the storage is an open area, it shall be adequately lighted as described herein.

1. Such storage area must have security with reasonable human attendance.

2. Such open area must be paved or have a sufficiently hard or gravel surface to prevent problems in entry or exit during inclement weather.

3. A conspicuous sign shall be maintained at all times at the entrance to the impound lot and at the impound lot office stating the name of business, telephone number, after hours telephone number, and hours of operation.

4. All impound lots will be lighted during all hours of darkness.

5. The gate to the impound lot(s) shall be locked during the hours of darkness except to provide reasonable ingress and egress in connection with towing service operations.

6. All storage facilities are subject to inspection by the NOPD and must meet the applicable standards defined herein.

(4) *[Minimum security requirements.]* The foregoing shall be considered minimum security requirements.

a. The towing allocation list operator shall, at all times, keep the NOPD advised of the address of the storage facility furnished by it under this requirement. Each vehicle storage facility as provided herein must be approved by the NOPD. Each storage facility shall be inspected by the NOPD and shall contain a minimum of 7,200 square feet of storage area. This is inclusive of a separate and secure area where vehicles towed due to towing allocation duties are properly separately stored.

b. Nothing contained in this section shall be considered to supersede or otherwise affect applicable provisions of the zoning ordinance of the city.

c. Whenever any vehicle has been towed (other than by owner's request)

to a storage facility where fees are charged for such storage or parking, the owner or operator of the storage facility shall, within 24 hours of the time such vehicle is towed to that storage facility, notify the NOPD towing and recovery unit that the vehicle has been towed for storage. The storage operator shall provide to the law enforcement authorities or their designees:

1. The police item number;
2. The location from which the vehicle was towed;
3. A description of the vehicle;
4. The license plate number and vehicle identification number of the vehicle;
5. The name and address of the location to which the vehicle was towed; and
6. An official report of stored vehicle card must be filed with the department of public safety, office of motor vehicles, dealer support section or its agent.

d. Each towing service shall be licensed as a separate legal entity.

e. Towing operators intending to lease or rent storage facilities from established business firms shall file such plan of lease or rent with the NOPD for approval. Such plan must include specific terms delineating the responsibility of the operator relating to compliance with these regulations and assurance that accountability is maintained.

f. Towing operators will maintain all records dealing with the towing and storage of vehicles for a minimum of five years. The NOPD shall have the right to enter and inspect all towing/storage facilities during normal working hours and these documents will be made available upon request.

g. All towing services shall maintain impoundment records which shall include the following information:

1. The date and time the call for service was received and from whom it was received, when applicable.
2. The police item number.
3. A description of the vehicle including make, model, color, vehicle identification number, and license plate number.
4. The date, time, and place at which the operator began the towing operation.
5. The date at which the impounded vehicle was released to the owner.
6. The name of the driver of the tow truck.
7. Letters of notification as required by these rules.
8. Proof of administrative costs.
9. Records of release of vehicle(s).

(5) *Storage rates.* All storage facility operators shall charge rates as set forth in the rules and regulations of the Louisiana Public Service Commission.

(6) *Owner notification of a stored vehicle.*

a. Within seven days of the time that a vehicle is placed in a storage facility, the operator of the storage facility shall notify in writing, by certified letter, return receipt requested, the last registered owner of the vehicle (at the owner's last known address) and the lien holder, should there be any.

b. The storage operator shall provide to the owner:

1. The police item number.
2. The location and name of the storage facility.
3. The vehicle identification number.

4. The vehicle license plate number.
5. A description of the vehicle.
6. The name of the person or agency that had the vehicle towed and/or placed in storage.
7. The date that the vehicle was placed in storage.
8. The condition of the vehicle.
9. The notice of the owner's right to an administrative hearing.
10. The address to which the request for a hearing must be sent.
11. The date by which the request for a hearing must be mailed, by certified letter, return receipt requested, which shall be ten days from the date that the owner's notification is postmarked.

c. Administrative fees:

1. Towing services may charge the registered owner/lienholder those administrative costs incurred by the filing of the official report of stored vehicle card with the office of motor vehicles along with any postal charges related to the mailing of the official report of stored vehicle card or certified letters to the registered owner/lienholder.
2. All costs must be documented with receipts which shall be made available to the registered owner/lienholder upon demand. Failure to comply will result in the forfeiture of all administrative costs, towing, and storage fees.
3. At no time will administrative costs exceed $25.00 for in-state notifications and $30.00 for out-of-state notifications.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 6. TOWING ALLOCATION LIST PROCEDURE

Sec. 162-1015. NOPD towing allocation list dispatch—Accident scenes, recovered stolen vehicles, police emergencies, and compulsory liability insurance/security impoundment.

(a) Accident scenes, police emergencies. Whenever a motor vehicle has been involved in an accident or collision within the limits of the City of New Orleans and is unable to proceed safely, or the driver is physically unable to drive the motor vehicle, the investigating officer shall request of the driver that the driver designate a towing business to tow the motor vehicle. In the event that the driver is physically unable to designate a towing business, or expresses no preference for a towing business, the towing business next on the towing allocation list maintained by the NOPD shall be dispatched to the scene of the accident to tow the motor vehicle. For any other emergency requirements for a towing service by the NOPD, this same procedure and rotation shall be followed.

(b) For towing and impoundment of vehicles as required for violation of state law regarding compulsory liability insurance/security, a separate towing allocation list for this purpose shall be utilized. The towing business next on the towing allocation list maintained by the NOPD shall be dispatched to the scene of an impoundment to tow the motor vehicle.

(c) For towing and impoundment of recovered stolen vehicles, a separate towing allocation list shall be utilized. Whenever the police locates a vehicle which has been reported stolen and the owner of the vehicle cannot be located or is unwilling or unable to remove the vehicle from the recovery location, and the vehicle no longer has any evidentiary value to the police, the towing business next on the towing allocation list maintained by the NOPD shall be dispatched to tow the vehicle.

(d) For towing and impoundment of abandoned and nuisance motor vehicles, the NOPD shall use its allocation lists. Whenever the parking enforcement division notifies the NOPD that is cannot tow or store an abandoned or nuisance vehicle, the towing business next on a towing allocation list maintained by the NOPD shall be dispatched to tow the vehicle. The towing business shall not lose its place in the towing allocation list from which it was chosen when picking up an abandoned and nuisance motor vehicle.

(e) The NOPD shall log the following information:

(1) Police item number;

(2) Time and date of the dispatch;

(3) Description of the vehicle to be towed;

(4) Purpose of the tow request for services;

(5) Name(s) of the dispatching officer(s); and

(6) Name(s) of the towing business(es) called.

(f) If tow truck operators are unable to respond when summoned by special request or through the NOPD towing allocation list, they must immediately notify the NOPD and shall not summon a substitute. Multiple failures to respond when summoned will subject the towing service business to review and possible removal from the NOPD towing allocation list.

(g) For towing and impoundment of vehicles as required for violation of this Code regarding illegal dumping, a separate towing allocation list for this purpose shall be utilized. The towing business next on the towing allocation list maintained by the NOPD shall be dispatched to the scene of an impoundment to tow the motor vehicle.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1016. Schedule of fees; charge or fee increases.

Whenever a motor vehicle has been towed through a towing service business obtained from the NOPD towing allocation list, the owner/operator of the vehicle being towed shall be responsible for the payment of fees associated with the towing and recovery, and storage, if applicable. The maximum charges or fees for emergency towing by a vehicle owner or operator using the towing allocation list, and for towing performed without the knowledge and consent of the owner or operator of a vehicle, shall be set in accordance with the mandatory tariff schedule set forth by the Louisiana Public Service Commission Schedule of Prescribed Rates and Requirements for Non-Consensual Towing and Recovery Services. Notwithstanding the foregoing, in no instance shall victims of certain crimes be responsible for the payment of fees associated with the towing, recovery, and/or storage of a stolen vehicle in accordance with section 154-705 and section 154-781 of the Code.
(M.C.S., Ord. No. 28755, § 1, 8-5-21; M.C.S., Ord. No. 29085, § 1, 7-7-22)

Sec. 162-1017. Administrative hearing.

The owner of any vehicle towed through a towing service obtained from the NOPD towing allocation list without the knowledge and consent of the owner or operator shall have the right to an administrative hearing pursuant to the Louisiana Administrative Procedures Act, R.S. 45:95 et seq. to determine if the towing and storage of such vehicle was proper. The purpose of the hearing is to determine the validity of the tow and storage. Request for hearing shall be submitted in writing to the NOPD towing and recovery unit. The owner of the vehicle must make a request for such hearing within ten calendar days of the date the owner receives notification by the towing business/storage facility.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1018. Response to towing allocation list, response time.

(a) In any case where public safety considerations permit, and where the vehicle operator specifically requests that a particular licensed tow company provide for the removal, towing and/or storage of his vehicle, the vehicle operator's request shall be honored even if the towing company requested is not a listed towing allocation operator; provided, however, where the public health, safety and welfare dictate an

allocation operator be used, it shall be the duty of law enforcement officials to direct the removal by listed towing allocation operator.

(b) The maximum allowable response time by a licensed towing company requested by the vehicle operator, other than a listed towing

allocation operator, shall be 45 minutes from notification by the vehicle owner or the law enforcement officer. Upon the expiration of such 45 minutes and the dispatching of a listed towing allocation operator, the towing allocation list operator shall have sole authority for removal of vehicles.

(c) All towing businesses must be able to respond in accordance with all traffic laws and safe driving practices to the scene within a 45-minute time period on a 24-hour, 365-day basis.

(d) Towing businesses shall ensure that all operators possess the knowledge and skills to determine the proper sizing, weight requirements, and type of equipment necessary to handle each towing assignment on a damage free basis. In those instances where a towing business representative determines that a different type of equipment is necessary, that business shall be allowed to summon its own equipment, such delivery within a time period not to exceed an additional 30 minutes. If the towing business does not possess the equipment necessary to relocate or clear an accident safely, or to handle the towing and recovery of a recovered stolen vehicle, an immediate notification to the on-scene police officer is required so that the next towing business on the towing allocation list may be officially notified to respond by the NOPD.

(e) Towing businesses designated to respond on the towing allocation list for towing and impoundment of vehicles in violation of state compulsory liability insurance/security shall respond and utilize damage-free towing equipment only.

(f) Towing businesses shall have communication equipment at their facility to provide direct contact between the tow representative and their tow wagons. Citizen band radios and pagers are not sufficient equipment for this purpose.

(g) The allocation of multiple vehicle accident scenes shall be assigned on a "one car - one tow" system. The investigating police officer shall notify the police communications dispatcher of the vehicle license numbers of those vehicles requiring towing support. The sequence of the license plates submitted shall determine the assignment of the towing business in that order of towing allocation list. The towing business shall be notified of their assigned vehicle by license plate at dispatch.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1019. Licensee requirements.

(a) It shall be the duty of the driver of each tow truck that picks up wrecked or disabled vehicles for the purposes of towing the same away to clear the street or highway of all debris, parts, glass, and automotive fluids.

(b) The licensee shall be responsible and liable for any damages or losses inflicted to vehicles lifted, hauled, or transported, or subjected to any other activity performed which is the subject of the licensee's responsibilities and shall be responsible for maintaining the safety and security of contents of the vehicle in his care and custody.

(c) A vehicle removed from the scene shall be transported to its point of destination or storage by the most direct route practical.

(d) Towing companies which are also engaged in the automotive body repair service shall have clearly printed on the front of all invoices or receipts for towing services the following:

(1) A statement which informs the owner or operator of a vehicle towed pursuant to towing allocation list responsibilities that the owner or operator is under no obligation to have body repair or any other work performed on the towed vehicle by the business which towed the vehicle;

(2) The maximum daily vehicle storage charge;

(3) The right of the owner or operator to remove a vehicle upon payment of the accrued daily storage fee and towing fee.

(e) All towing companies shall be party to a reciprocal assistance agreement under which requests for assistance in the performance of allocation responsibilities shall be honored by

any other allocation list operator when feasible. Assistance by a company other than an approved towing allocation business is prohibited.

(f) Towing companies shall immediately inform the NOPD whenever a vehicle to which it has been dispatched is placarded as a carrier of hazardous material. The towing company shall not move a placarded vehicle except under the on-site supervision of department of fire officials (NOFD). However, the NOPD after consultation with NOFD officials may direct the removal of the placarded vehicle without such on-site supervision.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 7. HEAVY DUTY VEHICLES

Sec. 162-1020. Applicant qualifications.

(a) An applicant for a heavy-duty tow truck allocation shall comply or present substantial evidence of his intention and ability to comply with the minimum qualifications herein listed. In any event, an applicant who has been determined by the superintendent, or their designee, to be eligible for heavy duty tows shall, within four days of such determination, provide the superintendent, or their designee, with copies of purchase orders for any equipment which must be purchased to meet equipment qualifications established herein. Any such equipment to be ordered must be available for service by the licensee within 90 days of a determination of heavy-duty towing allocation eligibility. Failure to meet these deadlines may result in the loss of the applicant's eligibility. Every towing company making application shall have operated a heavy-duty tow truck service domiciled in the parish for at least two continuous years immediately prior to submission of a towing allocation application. The city council may approve the application of a towing company not domiciled in the parish to provide service to the 15th Ward (Algiers) after having received a recommendation thereon from the superintendent and upon a determination that such area would otherwise receive inadequate or delayed service.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1021. Equipment.

Each applicant for heavy-duty tow truck allocation under this article shall own and have in operable condition, not less than two heavy-duty tow trucks conforming to the following specifications:

(1) *Heavy-duty tow truck minimum specifications:*

- (a) Gross vehicle weight rating of not less than 33,000 pounds as rated by the manufacturer or certifying laboratories; normally 3½ tons.
- (b) A minimum of 102 inches from the rear of passenger cab to center of rear axle for single-axle trucks or 102 inches to the center of bogie on tandem trucks.
- (c) Single or tandem rear axles equipped with dual rear wheels and tires.
- (d) Five-speed manual or automatic transmission.
- (e) A service brake system, air only, capable of controlling the movement of or stopping and holding the combination of vehicles under normal and adverse conditions. The air brake system shall be equipped to provide for the transfer of air from the wrecker's brake system to that of the towed vehicle.
- (f) A parking brake system separate from the service brake which shall be maintained in proper working order.

(2) *Boom and winch minimum specifications (bare drums):*

- (a) Minimum rated boom capacity of 25 tons.
- (b) Mechanical or hydraulic power winches with a total rated capacity of not less than 25 tons or as per manufacturer rating.
- (c) Minimum of 200 feet of wire rope per winch at least 9/16-inch in diameter of rated breaking strength of 27,000 pounds.

(3) *Required accessories.*

(a) Chain equipped with hooks at least three-eighths inch in diameter.

(b) At least 75 feet of auxiliary air lines equipped with necessary transfer fittings.

(c) Heavy-duty truck towing hitch.

(d) Flashing system with two revolving amber lights mounted on each towing vehicle, body clearance lights, reflectors and at least one work light mounted which has the capacity to light the scene of an accident under darkened or foggy conditions.

(e) One or more brooms, a shovel and 50 pounds of chemical fire extinguisher.

(f) Power up and power down winch operating from the rear of the tow truck. All winches must be operational. Electrical and hand winches shall not be used.

(g) Tow trucks must have throttle control and hydraulic, air or manual brakes on rear wheels. A front push bumper may be provided on trucks that are so designed.

(h) All tow trucks must be equipped with a two-way radio or other telecommunications device enabling communication with a base station having telephone service or with telephone service direct. Radios must be equipped with a business frequency; no citizen band radios will be permitted. Applicable F.C.C. licenses must be maintained and displayed upon request by any law enforcement agency.

(i) Lock-out tools for entry into locked vehicles or vehicles wherein occupants have no ready and suitable means of egress.

(j) Four low-pressure air recovery cushions for use in righting trailers and tractor trailers or in lieu thereof a notarized agreement between the towing allocation list operator and a firm located in the parish or within five miles of the city boundaries which provides for air recovery cushions service upon request of the towing company at a cost to the vehicle owner or operator not in excess of the maximum allowable cost stipulated in the towing allocation application.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1022. Transportation of vehicles from scenes.

(a) Towing operators are required to transport the vehicle from the accident scene or the scene of a recovered stolen vehicle only to a location specified by the vehicle owner/driver or to the towing business storage facility.

(b) Subsequent relocation towing, retrieval, and/or repair of the vehicle may only be authorized through the signing of an order of repair by the owner at this storage location only. No repair orders shall be signed on the scene of an accident or stolen vehicle recovery.

(c) Towing operators transporting vehicles impounded for violation of state compulsory liability insurance shall transport these vehicles only to the designated storage facility.

(d) Towing invoices shall contain standard language that must be approved by the NOPD to clearly indicate that the approval signature for the towing of a vehicle as required by the towing allocation system does not include any authorization or involvement in any repair service decision.

(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1023. Exclusion from tow allocation program.

(a) The NOPD may deny participation in the tow allocation program to any towing service company that fails to comply with any rule, regulation, criterion or standard imposed pursuant to this article, or for any other good cause. Participation in the tow allocation program is a privilege, not a right.

(b) The NOPD shall provide each towing service company excluded from participation in the towing allocation program with a written notice setting forth the reasons for exclusion. This notice shall be mailed to the business address identified on the most recent application on file and shall set forth the manner in which the company may request reconsideration.

(c) A towing service company excluded from participation in the tow allocation program may, within ten days of the notice of exclusion, request reconsideration by submitting a written request via certified letter to the NOPD, along with any documentation supporting the request.

(d) Within 30 days of a request for reconsideration, the superintendent, or an authorized designee, shall hold an informal, in-person hearing to discuss the applicant's request for reconsideration. The superintendent shall notify the applicant in writing of the disposition of a request for reconsideration within ten days of this meeting.

(e) Any towing company aggrieved by a decision of the superintendent may appeal to the city council. Any such appeal shall be made in writing through the clerk of council within ten calendar days from the date of the decision.

(f) A towing service company excluded from participation under this section may apply for participation in the tow allocation program in subsequent years.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1024. Relationship to other laws/ regulations.

Nothing in this article or in the NOPD towing allocation list requirements exempts any towing business or towing vehicle from any other state or federal laws or regulations dealing with towing, recovery and storage.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 8. TOWING REQUIREMENTS FOR ALL ACCIDENT SCENE/EMERGENCY RESPONSES

Sec. 162-1025. Accident scene and stolen vehicle recovery scene requirements.

Owners and/or operators of motor vehicles involved in an accident or stolen vehicle recoveries shall cause the damaged or recovered stolen vehicle to be removed from the public roadways, adjacent service lanes, or other city and state property within one hour after completion of the police investigation of the incident or accident. Any vehicle remaining in such areas will be considered as abandoned and hazardous and shall be subject to removal on the order of the NOPD. The NOPD is responsible for conducting all such follow-up after proper investigation of an accident or stolen vehicle recovery to cause such vehicle to be removed within this time limit. The NOPD reserves the right to remove a vehicle which remains in any hazardous position or obstructs the free flow of traffic through a towing service from the towing allocation list if the owner/operator's towing service cannot respond to clear the accident scene, other hazardous condition, or stolen vehicle recovery location within a one-hour response time upon notification. Towing service businesses, whether called from the NOPD towing allocation list or by the owner/operator of the accident vehicle(s) or recovered stolen vehicle(s), shall be responsible for the clearing of all debris, including, but not limited to automotive parts and fluid from an accident or stolen vehicle recovery scene, per each vehicle assigned by the tow truck driver, other towing business employee, or the towing business assignee. The investigating police officer shall monitor the clean-up of an accident or stolen vehicle recovery scene, prohibiting the towing and removal of the vehicle until all such debris, including, but not limited to automotive parts and fluid has been cleared. If a tow truck summoned from the towing allocation list arrives at the scene and is unable to provide the necessary services, they must immediately notify the NOPD and shall not summon a substitute unless

the other tow truck is from the same company and such delivery must be within a time period not exceeding an additional 30 minutes.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 9. PROHIBITED ACTS

Sec. 162-1026. Prohibited response to an accident scene, police investigation or disabled vehicle.

Tow truck operators shall not respond to the scene of a police investigation unless called by the police or by the owner or operator of a disabled vehicle. No person, including, but not limited to, the tow truck owner, or his agent, employee or operator, shall stop at the scene of an accident, at the scene of a stolen vehicle recovery, or at or near a disabled vehicle, for the purpose of soliciting an engagement for towing service. No tow truck owner, or his agent, employee or operator shall stop at the scene of an accident, at the scene of a stolen vehicle recovery, or at or near a disabled vehicle unless he has been summoned to such scene by the owner or operator of a disabled vehicle or has been requested to perform such services by the NOPD or other police agency.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1027. Prohibited use of emergency equipment.

Rotating or strobe beacon lights shall not be used except while at the scene of the accident/emergency or while towing a vehicle. No towing service company or tow truck operator may operate or utilize a police radio monitoring device to obtain information regarding police emergencies, recovered stolen vehicles, or vehicular accident scene for the purpose of soliciting towing service. The possession of radios and/or scanning devices which access police radio frequencies, in any vehicle or tow truck assigned to the towing business is prohibited.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1028. Removal of vehicle.

(a) No towing service business shall tow or remove any vehicle from the scene of any accident, stolen vehicle recovery, or other towing emergency unless summoned to the scene by the owner or operator of the vehicle or the NOPD.

(b) No towing service business shall be allowed to tow or remove any vehicle from the scene of an accident, stolen vehicle recovery, or other towing emergency unless the towing service business complies with state law and this article.

(c) No towing service business shall remove any wrecked, disabled, or recovered stolen vehicle from the scene where an accident has occurred or a stolen vehicle has been recovered or attach a tow truck to such wrecked, disabled, or recovered stolen vehicle until the investigating police officers have completed their investigation. Operators may in emergency cases move a vehicle involved in an accident, if the movement is necessary to extricate a person from a wreckage or to remove an immediate hazard to life and/or property. In no event shall the movement be more than is reasonable and necessary.

(d) Tow truck operators shall not, without the express authorization of the responsible investigating agency, move any vehicle from a public highway or street, or from any public property with such vehicle is abandoned, stolen, or damaged.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1029. Repairs, alterations limited.

No towing service business shall require the performance of repair work on a disabled, wrecked, or recovered stolen vehicle in connection with providing towing service for the vehicle. No towing service shall make repairs or alterations to a disabled, wrecked, or recovered stolen vehicle without first having been authorized by the owner of such vehicle, except for emergency alterations necessary to permit the towing of such disabled, wrecked, or recovered stolen vehicle by the towing service or its agents.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1030. Written statement of services.

No operator shall charge for services which are not itemized and documented on an invoice and/or written statement detailing the charges for any towing services, the location to which the vehicle will be towed and/or stored, and a listing of any services to be performed in addition to the

towing services as well as the charges for these services. The tow truck driver shall not remove any disabled vehicle without signing such written statement and obtaining the signature of the customer on such statement. The only exception to this requirement is when the tow truck has been dispatched from the NOPD towing allocation list and the owner or operator/driver is not present or is incapable of making or declines to make arrangements for the removal of the vehicle.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1031. Unauthorized removal.

No towing service shall tow or remove any vehicle to any location other than to the towing service's approved storage facility unless authorized by the registered owner of the vehicle, the operator, or the NOPD.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

DIVISION 10. PENALTIES

Sec. 162-1032. Termination of towing allocation privilege.

(a) Failure to comply with the provisions of this article by a towing company approved to perform towing allocation responsibilities, unless otherwise indicated herein, shall result in the revocation of their privilege by the superintendent.

(b) If a towing allocation permit is terminated during the calendar year, the business may follow the appellate process outlined in section 162-1023.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1033. Criminal penalties for noncompliance.

Any person who fails to comply with sections 162-1010 through 162-1016 contained in this article shall be in violation of this article, subject to prosecution in municipal court, and such person shall be fined, upon conviction, not less than $100.00 nor more than $500.00 for the first violation during a one-year period. The second violation during a one-year period shall require a fine of not less than $250.00 nor more than $500.00, and a mandatory total of 60 community service hours performed within a 30-day period collecting and picking up litter and trash on the public roads, streets, and highways, and up to six months in jail. Three or more violations during a one-year period shall require a fine of not less than $400.00 nor more than $500.00 for each violation, and a mandatory total of 90 community service hours performed within a 45-day period collecting and picking up litter and trash on the public roads, streets, and highways for each violation, and up to six months in jail for each violation. A conviction for any provision of this article shall also be grounds for removal from the NOPD towing allocation list for a period of one year from the date of such conviction.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Sec. 162-1034. Towing zones.

The NOPD may establish no more than four geographic zones based upon existing police district boundaries to assist in the prompt service delivery requirement. Each towing business shall be allowed to participate in the towing allocation list for accidents/police emergencies, the list for stolen vehicles, and the list for impoundment of vehicles in violation of state law regarding compulsory liability insurance/security, in one or more of these zones. The four towing zones identified by police districts are: Zone 1 (4th), Zone 2 (2nd and 6th), Zone 3 (1st, 3rd, and 8th), and Zone 4 (5th and 7th). However, should NOPD determine that four zones are not needed, it may establish separate city-wide call allocation lists for accidents/police emergencies, recovered stolen vehicles, and impoundment of vehicles in violation of state law regarding compulsory liability insurance/security.
(M.C.S., Ord. No. 28755, § 1, 8-5-21)

Secs. 162-1035—162-1280. Reserved.

ARTICLE XII. RESERVED*

Secs. 162-1281—162-1630. Reserved.

*__Editor's note—__M.C.S., Ord. No. 28755, adopted August 5, 2021, repealed Art. XII, §§ 162-1281, 162-1282, 162-1331—162-1333, 162-1376—162-1382, 162-1431—162-1441, 162-1486—162-1488, 162-1531—162-1538, 162-1581—162-1585, which pertained to tow zones established by city and derived from Code 1956, §§ 12-270—12-300. The user's attention is directed to § 162-1034.

ARTICLE XIII. COURTESY VEHICLES

Sec. 162-1631. Contract courtesy vehicle service.

(a) Any CPNC holder may, within the limitations and restrictions of the CPNC held with notice to the director of the department of public works, contract with a person or entity for the provision of courtesy vehicle service. A CPNC holder contracting with a person or entity for the provision of courtesy transportation is prohibited from soliciting the general public as customers of the contracting person or entity or as users of such transportation service. A CPNC holder contracting with a person or entity for the provision of courtesy transportation shall specifically identify, in a contemporaneously maintained transportation log, produced on request of any representative of the city, the contracting party, the person, entity or groups for which such transportation service is provided and the point of origin and destination of the transportation.

(b) A CPNC holder contracting with a person or entity for the provision of courtesy transportation may only transport passengers from point of origin to one point of destination, provided that one of the two points is the place of business of the person or entity contracting for the provision of courtesy vehicle service, with the following two exceptions:

(1) The CPNC holder has filed with the director of the department of public works a written plan detailing the various points of destination. The plan may be disapproved by the director of public works. If approval is not granted within five calendar days, or if the request is denied, the applicant shall have the right to appeal to the Civil District Court for the Parish of Orleans within 30 working days of the denial; or

(2) The courtesy transportation is a charter where the passenger has the absolute discretion as to destination, route and time of departure and return.

(M.C.S., Ord. No. 17,164, § 1, 9-7-95; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 24724, § 3, 1-5-12; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1632. Off-street loading and unloading.

A courtesy vehicle CPNC holder must provide off-street parking for the vehicle when not in use. Loading and unloading of passengers at the CPNC holder's place of business, stated in the current occupational license provided to the director of the department of public works in the courtesy vehicle CPNC application, shall only take place in appropriate passenger or loading zones.

(M.C.S., Ord. No. 17,164, § 1, 9-7-95; M.C.S., Ord. No. 21480, § 5, 4-1-04; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1633. Violation; penalty.

(a) A violation by a courtesy vehicle CPNC holder or its driver of any of the regulations set forth in this article shall result in a fine and/or suspension or revocation of the CPNC according to the following:

(1) First violation shall result in a fine of not less than $50.00 nor more than $200.00, to be determined by a duly authorized hearing examiner following a hearing on the matter.

(2) Second violation shall result in a fine of not less than $250.00 nor more than $500.00, to be determined by a duly authorized hearing examiner following a hearing on the matter.

(3) Third violation shall result in an automatic suspension of the courtesy vehicle CPNC for a length of time to be determined by a duly authorized hearing examiner following a hearing on the matter.

(4) Fourth violation shall result in the revocation of the courtesy vehicle CPNC. Prior to such revocation, the CPNC holder shall be entitled to a hearing on the matter before a duly authorized hearing examiner.

(b) Any violation of any of the regulations set forth in this article may result in the suspension or revocation of the courtesy vehicle CPNC, to be determined by a duly authorized hearing examiner following a hearing on the matter.
(M.C.S., Ord. No. 17,164, § 1, 9-7-95)

ARTICLE XIV. PEDICAB SERVICE*

DIVISION 1. GENERALLY

Sec. 162-1634. Definitions.

The following words and terms, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bureau shall be the ground transportation bureau of the department of public works.

Operator includes every person in actual operation of the pedicab licensed for operation as a for-hire vehicle under this chapter. This person may share additional, company-related titles, such as owner, employee of the owner, or independent contractor.

Owner shall mean any person who is the actual legally registered owner of the company and the vehicles defined and described in this chapter.

Pedal carriage shall mean a pedal pub, pedal bar, or any other manually powered or motor-assisted quadricycle-type vehicle designed to transport two or more passengers in seats arrayed alongside the vehicle.

Pedicab shall mean any bicycle-like vehicle duly licensed to be operated as such by the department of public works and used primarily for the purpose of providing for-hire transportation over a route or to a destination and upon which one or more persons may ride as passenger(s) while being propelled exclusively by the manual strength of a company hired person.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21; M.C.S., Ord. No. 28678, § 1, 5-20-21)

Sec. 162-1635. Special regulations.

In addition to the other applicable provisions of this chapter, all holders of a pedicab certificate of public necessity and convenience (CPNC holders) and pedicab operators shall comply with the applicable provisions of this article.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

*__Editor's note—__M.C.S., Ord. No. 24156, § 1, adopted Oct. 21, 2010, amended art. XIV in its entirety and enacted similar provisions as set out herein. The former art. XIV derived from M.C.S., Ord. No. 24111, § 1, adopted Sept. 2, 2010.

[The next page is CD162:103]

Sec. 162-1636. Certificate required.

(a) No pedicab shall be operated on the streets of the city unless the owner of such vehicle has first applied for and received a certificate of public necessity and convenience (CPNC) qualifying a pedicab in the manner provided in this chapter.

(b) It shall be unlawful for any person to transport or offer to transport passengers for hire in any pedicab which does not have affixed to vehicle thereof a valid for-hire vehicle registration number issued along with a valid CPNC as set forth by the director of the ground transportation bureau.

(c) All CPNC registration numbers and/or vehicle registration plates shall remain as the property of the city.

(d) CPNCs and/or and registration plates shall not be transferred, sold or given from one owner to another including the sale of one pedicab company in its entirety to another.

(e) All unused CPNCs shall be returned to the ground transportation bureau of the department of public works.

(f) The director of the ground transportation bureau shall track all CPNCs and after the renewal period if the CPNC has not been renewed it shall be determined to be unused.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1637. Inter-parish operation of pedicabs prohibited.

Pedicabs of the type subject to regulation under this chapter in the Parish of Orleans shall be bound to operating within the boundaries of the Parish of Orleans and shall not accept a fare or transport passenger going to or coming from a parish outside of Orleans. Inter-parish operation is prohibited.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1638. Nonparish-licensed operators.

No owner or operator of any pedicab authorized to operate in any parish other than the Parish of Orleans or in any political subdivision thereof shall stop or park anywhere on the city's streets where such stopping or parking is prohibited to any pedicab or other for-hire vehicle operating under a permit from the city, or stop or park anywhere in the city with intent to violate this Code. No such owner or operator of any such vehicle shall operate such vehicle in any manner contrary to the provisions of any law of this state or this Code. No such owner or operator of any such vehicle at any time shall transport passengers for hire within the parish of Orleans without meeting the provisions herein.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1639. Pedicab liability coverage.

All pedicabs operating in the parish shall have current liability coverage for each vehicle. The liability coverage for a pedicab shall be represented by a policy of liability insurance issued by an insurance company authorized to do business in the state, either as an admitted company or a surplus line company certified to do business in the state, provided that if same is written in a surplus line company, and such policy shall provide for payment of a sum of not less than $100,000.00 to satisfy all claims for damages by reason of bodily injury to or death of any one person resulting from any one accident, and subject to such limit for one person; for payment of a sum not less than $300,000.00 to satisfy all claims for damages by reason of bodily injury to or death of two or more persons resulting from any one accident; and for payment of a sum not less than $50,000.00 to satisfy all claims for damage to property resulting from any one accident by reason of the ownership, operation, maintenance or use of such vehicle upon any street.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1640. Maintenance and appearance of vehicle.

Each operator of a pedicab, or driver, shall be fully responsible for the exterior and interior physical appearance of the pedicab. Each driver shall be required to maintain the pedicab and his or her person in a neat and clean condition at all times. Interiors of all pedicabs must be kept free

of all debris. They must be maintained free and clear of all paraphernalia and other items not necessary for the operation of such pedicab. The minimum penalty for one violation of this section within a one-year period shall be $50.00. The penalty for two violations within one year of the first violation shall be a minimum $100.00 fine plus up to a ten-day suspension from operating any for-hire vehicle. The penalty for three or more violations within a one-year period of the first violation shall be a minimum fine of $150.00 fine, and/or suspension for a defined period of time from operating any for-hire vehicle, or revocation of the license to operate any for-hire vehicle.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1641. Vehicle requirements.

Each pedicab in operation must meet the following minimum specifications:

(a) Unibody frame construction;

(b) Three wheels;

(c) Rubber on all wheels;

(d) A width of no more than 55 inches and length of no more than ten feet;

(e) Absent of electric or gasoline-powered engine;

(f) Headlights that have a beam of at least 300 feet;

(g) Flashing taillights that are visible from at least 500 feet;

(h) Reflectors on the spokes of all three wheels;

(i) Hydraulic, mechanical disk, or drum brakes that are unaffected by wet conditions;

(j) Body painted with bright, reflective paint.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1642. Pedicab driver photo identification and uniform.

All drivers are required to wear a photo identification and uniform clothing containing the operator's name and the affiliated company, of a design specified by the director of the ground transportation bureau of the department of public works. This identification shall be worn during all duty hours and shall be worn to be plainly visible at all times. Every driver must wear a uniform T-shirt, jacket, collared shirt, or sweater with the pedicab company's logo.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1643. Passenger as controller of cab.

It shall be unlawful for a pedicab operator to cause a passenger to wait without the passenger's consent or to pick up additional passengers en route without the passenger's consent.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1644. Number of passengers per vehicle.

It shall be unlawful to load more passengers in a pedicab than there is seating space available, except that children who are two years of age or younger and held in the arms of an adult may be carried in excess of the above. No pedicab shall be loaded with passengers in such a manner as to obstruct the view of the operator or otherwise interfere with the safe operation of the vehicle.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

DIVISION 2. TRAFFIC LAWS AND WAITING AREAS

Sec. 162-1645. Pedicab traffic laws.

All pedicab operators must obey all the same traffic laws as described in article XII, sections 154-1401 to 154-1424, which will be enforced by the ground transportation bureau investigators, police, or any commissioned policing authority.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1646. Pedicab and for-hire vehicle waiting areas.

Pedicabs shall be prohibited from parking on sidewalks and all street parking of pedicabs shall be in adherence to current parking laws. While waiting for a fare, the operator of a pedicab shall not restrict the free movement of

pedestrians. All loading and unloading of passengers from a roadway must be from a curb lane. The pedicab should be as close as possible to the curb and in no circumstances more than three feet from the curb while parked and while loading and unloading a passenger.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1647. Restricted areas defined.

(a) It shall be unlawful for any pedicab to inhabit, stand or park in neutral grounds of the city with their vehicles while waiting to obtain a passenger.

(b) It shall be unlawful for a pedicab to transport passengers on city streets with a posted speed limit which exceeds a rate of 35 miles per hour except where noted below.

(c) Pedicabs shall be permitted to transport passengers on any city thoroughfare dedicated as a bicycle lane or corridor which is clearly marked for said use irrespective of posted speed limit for motor vehicle traffic.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1648. Unlawful to alter rates.

It shall be unlawful for any person to alter in any manner the established rates of hire for such vehicle except as by the Council of the City of New Orleans.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

DIVISION 3. TRADE NAMES AND NEW LINES

Sec. 162-1649. Trade name to be registered.

The trade name applicable to each vehicle operated under the provisions of this article shall be registered with and approved by the ground transportation bureau. Such registration shall set forth the full name and address of the lawful owner or owners of such trade name and shall specify the color scheme of vehicles to be operated under such trade name. Each change in color scheme or of lettering of such vehicle shall likewise notify and be approved by the ground transportation bureau. No new trade name or color schemes which are identical or deceptively similar to any trade name or color scheme already registered with the ground transportation bureau shall be approved by the ground transportation bureau.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1650. Identification of vehicles.

(a) A pedicab operated under the provisions of this article shall conform in all respects to the color scheme as set forth for the registered trade name under which it is to be operated. In addition, the vehicle's registered certificate number assigned by the ground transportation bureau and the telephone number of the pedicab company shall be permanently affixed to the vehicle as prescribed by the bureau.

(b) The full name of the owner of each for-hire carrier vehicle operated as a pedicab and the number of the vehicle's certificate shall be conspicuously affixed to the vehicle in letters and figures at least two inches high in a location to be determined by the bureau. Proof of the for-hire vehicle renewal certificate shall appear inside the pedicab in a manner also to be determined by the bureau in accordance to the provisions herein.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1651. Current record; complaints; notices.

All pedicab line operators shall:

(a) Maintain a current record of pedicab CPNC numbers and each operator per vehicle that is on the line;

(b) Refer any and all complaints by passengers of pedicabs to the ground transportation bureau; and

(c) Distribute any and all notices issued by the director of the department of public works to each and all operators of the line. Such distribution shall be in written form within five days of receipt of such notice by the line owner.

(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1652. Violation; penalty.

A violation by a pedicab line of any regulations set forth in this article shall result in a fine to the violator of not more than $500.00 per violation, to be determined by the director of the department of public works pursuant to a hearing in accordance with R.S. 49:951 et seq.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

DIVISION 4. FARES

Sec. 162-1653. Legal fares and payment thereof required.

(a) It shall be unlawful for any pedicab operator to ask, demand or collect any rates of fare other than as specified herein.

(b) It shall be unlawful for any passenger of any such vehicle to refuse to pay the operator thereof the legal rate charged pursuant to the provisions of this article.

(c) The department of public works shall review all ground transportation fares each consecutive odd year, and submit a report in a national peer city comparative analysis format to the mayor and the city council.

(d) An individual pedicab operator may, upon the collection of a fare from a passenger, accept a gratuity for the provision of transport services if the passenger deems appropriate to do so.

(e) It shall be unlawful for a pedicab operator to force payment of gratuity or to attempt to coerce, intimidate or cajole a passenger into paying a gratuity beyond that which the passenger deems appropriate.

(f) Fare rates must be posted and permanently affixed in a location on the pedicab that is visible to passengers.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1654. Maximum rate per trip.

No operator of any pedicab shall charge any passenger more than the amount allowed such operator for the trip under this chapter.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1655. Established fares.

For distances up to and including six city blocks, each pedicab company shall set its fare schedule at a rate not to exceed $5.00 per passenger transported; each subsequent city block of transport may incur an additional fare of up to $1.00 per passenger. After having exceeded the first six city blocks, and in the event that a portion equal to roughly one-half of one city block is traveled, the operator shall be permitted to charge an additional $0.50 based upon his/her discretion.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

DIVISION 5. PUBLIC NECESSITY

Sec. 162-1656. Number of pedicabs.

(a) No individual may be an owner, partner, minority holder, or otherwise associated in a manner of ownership capacity with more than one pedicab company.

(b) No one owner or company may operate with more than 15 pedicabs and no more than half of the total pedicab CPNCs issued citywide, except when authorized to operate with a temporary certificate per section 162-1665 herein.

(c) The maximum total number of pedicabs CPNCs to be issued citywide shall not exceed 65. This number may only be raised following a market analysis recommending such an increase. Any increase of pedicab CPNCs shall only be considered after completion of a petty cab market analysis report, which, upon completion, shall be transmitted as a communication to the city council public works, sanitation and environment committee.

(1) A pedicab market analysis must be initiated by the chair of the city council public works, sanitation and environment committee and the director of the ground transportation bureau, who shall transmit as a communication to the city council a joint letter documenting initiation of the analysis. Prior to submitting the letter, the parties shall consult with relevant stakeholder groups, including

French Quarter residents, business groups, and economic development entities.

(2) Only third party entities outside of the City of New Orleans executive branch, as defined in Home Rule Charter section 4-101, are eligible to complete a pedicab market analysis.

(3) A completed market analysis shall include an examination of the geographic proliferation and impact of pedicabs, particularly in French Quarter, along with all other modes of transit. It shall also consider economic development opportunities and additional needed enforcement that would result from enhanced pedicab use in other neighborhoods, as well as broader sustainable tourism model practices applicable citywide. The study must be done in consultation with relevant stakeholder groups, including neighborhood associations, business and economic development entities, the pedicab industry, and pedicab operators.

(d) The surplus of pedicab CPNCs, which shall be defined as the difference between the number of pedicab CPNCs issued and the maximum permitted citywide, shall be maintained by the ground transportation bureau. The director of the ground transportation bureau shall use best efforts to ensure that at least 35 percent of the approved surplus pedicab CPNCs are allocated to registered disadvantaged business enterprises, consistent with Chapter 70, Article IV, Division 2 of the City Code.

(e) Any pedicab company or individual operator shall be free to operate uninhibited in all parts of the city except in those areas restricted within the provisions set forth in this article.

(f) No pedicab company shall have a favored territory or zone of operation over another pedicab company, but an owner may deploy operators as needed.

CPNCs shall not be transferred, sold or given from one owner to another. In the event of a sale of a pedicab company, and its assets, in its entirety to another, the purchaser must apply for applicable permits as set forth in this article. (M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28912, § 1, 1-6-22; M.C.S., Ord. No. 29345, § 1, 2-16-23)

Sec. 162-1657. Reserved.

Editor's note—M.C.S., Ord. No. 28912, § 1, adopted Jan. 6, 2022, repealed § 162-1657, which pertained to pilot period and derived from M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 25056, § 1, 10-18-12; M.C.S., Ord. No. 25156, § 1, 1-10-13; M.C.S., Ord. No. 25284, § 1, 4-11-13; M.C.S., Ord. No. 25485, § 1, 9-12-13; M.C.S., Ord. No. 25627, § 1, 12-5-13; M.C.S., Ord. No. 25712, § 1, 2-20-14; M.C.S., Ord. No. 25816, § 1, 4-24-14.

DIVISION 6. PEDICAB BUSINESS AND OPERATOR APPLICATIONS

Sec. 162-1658. Pedicab business application procedures.

(a) To obtain operating authority for a pedicab service, a person must make written application to the ground transportation bureau on a form prescribed by the bureau. The application must be sworn or affirmed.

(b) All applicants prior to consideration for certificates of public necessity and convenience for pedicabs must give proof of title or leasing agreements for passenger bicycle taxis which conform to the specifications herein within 30 days of initial application. If more time is required, the applicant may request in writing one extension, which shall be awarded at the discretion of the director of the ground transportation bureau.

(c) All applicants must show proof of commercial address within Orleans Parish, and must show ability to lease or own a warehouse facility sufficient to house their fleet of vehicles within the Parish of Orleans.

(d) The applications must include:

(1) A detailed description of the proposed service, or business plan, the viable implementation of which shall be determined by the director of the ground transportation bureau.

(2) The name, address, telephone number, and Louisiana driver's license number of the applicant and each officer, director, partner, and any other person who will participate in the business decisions of or who has the authority to enter contracts on behalf of the ground transportation service.

(3) Certified copies of any documents required by state law to be filed for the business entity to legally exist, and a statement from the Louisiana Secretary of State certifying that the business is in good standing if state law requires the entity to file documents with the Louisiana Secretary of State.

(4) A description of the applicant's ground transportation service experience, if applicable.

(5) Proof of insurance coverage or commitment letter for such required under this chapter.

(6) An affidavit that there are no outstanding judgments that arise out of circumstances related to ground transportation service against a person.

(7) Additional information required on the application form prescribed by the department.

(e) A person may apply for multiple CPNCs on a single application form, provided that the application complies with this article.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1659. Application fee required.

(a) An application for operating authority must be accompanied by an application fee of $50.00 for administrative expenses.

(b) A person who applies for multiple CPNCs on one application shall pay only one application fee.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1660. Annual licensing fee required

The fees charged by the department of public works for each certificate of public necessity and convenience for pedicabs are as follows:

(1) Initial license $100.00

(2) Annual renewal 100.00
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1661. CPNC hearing.

(a) The ground transportation bureau shall hear publicly all applicants seeking certificates of public necessity and convenience for pedicabs on at least a biannual basis.

(b) All applicants must submit a completed application at least ten days prior to said publicly noticed hearing; failing to meet this deadline, the applicant must defer public hearing to the next biannual meeting.

(c) Final selection of an applicant shall be made by the director of the ground transportation bureau who shall notify all applicants, successful or otherwise, of the status of their application in writing within ten days of the selection.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1662. Standards for issuing and denying certificate.

In a decision and recommendation to approve or deny an initial or renewal application for operating authority, the bureau shall consider whether:

(1) All applicable requirements of this chapter have been met;

(2) A certificate of necessity and convenience for any type of for-hire vehicle has previously been revoked;

(3) The applicant advertised, offered, or provided pedicab service before the application was approved.
(M.C.S., Ord. No. 24156, § 1, 10-21-10)

Sec. 162-1663. Appeal of application denials.

(a) The department shall notify an applicant in writing of the denial of an application and the reason for the denial. The notice must include a statement of the applicant's right to appeal.

(b) An applicant may appeal a denial of the application to the Civil District Court for the Parish of Orleans no later than thirty (30) working days after the notice of denial is mailed to the applicant.

(c) The city council shall issue a decision on the appeal no later than 30 days after receipt of the written appeal.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 24724, § 4, 1-5-12)

Sec. 162-1664. Pedicab renewal application.

(a) *[Annual renewal.]* An owner that maintains a fleet of pedicabs must annually apply for a renewal for each certificate of public necessity and public convenience on a form prescribed by the bureau.

(b) *[Good standing.]* No owner in good standing shall be denied an annual renewal.

(c) *Delinquency penalty.* A certificate of public necessity and convenience (CPNC) for pedicab vehicles expires on March 31 of each year and must be renewed within the month following expiration (April) for a fee of $100.00. A CPNC renewal that is submitted in the month of May is subject to a delinquency penalty of $100.00 in addition to the renewal fee of $100.00. A CPNC renewal that is submitted in the month of June is subject to a delinquency penalty of $100.00 in addition to the renewal fee and the May delinquency penalty. A CPNC shall not be renewed after June 30; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be in writing before July 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of July. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(d) *Revocation of certificates of public necessity and convenience (CPNC).* A certificate of public necessity and convenience (CPNC) that is not renewed by June 30 is suspended. A CPNC shall be revoked if a renewal is not submitted in April, May, or June, or within the extended time period granted by the director or the designee.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 26306, § 1, 3-26-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1665. Temporary operating permits.

During special or other events that attract a large number of visitors to the city, if a pedicab for-hire service experiences periods which demonstrably require more pedicabs than are currently registered with the city, the owner may request supplemental temporary pedicab permits by submitting a written application which shall state the reason why supplemental pedicabs are needed and identify the pedicabs to be used. Supplemental pedicabs authorized by a supplemental operating permit are temporary and:

(a) Are subject to fees for daily or weekly use which shall be set at a level of half of those levels assessed for special charter fees in subsection 162-195(2) of the Municipal Code of Ordinances.

(b) Shall be issued no sooner than noon of the day before the event; and shall be valid until no later than noon of the day after the event.

(c) Must comply with the pedicab requirements of this article.

(d) Must comply with the insurance requirements of this article.

(e) Are subject to inspection by the department of public works, who may at any time order unsafe vehicles to be removed from service.

(f) Must be operated by a New Orleans licensed pedicab company.

(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1666. Operator's license application.

Prior to operating a pedicab for hire, the operator must obtain an operating permit. In order to obtain the permit, the following must be provided:

(a) A valid driver's license issued in the United States;

(b) Proof that the applicant is at least 18 years old (the driver's license is acceptable).

(c) A completed application determining whether the applicant:

(1) Has ever been convicted of a felony or a misdemeanor and, if so, the details thereof;

(2) Has ever been licensed as a driver or chauffeur and, if so, whether such license has ever been revoked and for what cause;

(3) The driver is physically qualified to drive a pedicab safely and the driver's hearing and eyesight are unimpaired;

(4) Has sufficient knowledge of the traffic laws and rules of the city.

(d) $40.00 processing fee.

(M.C.S., Ord. No. 24156, § 1, 10-21-10)

DIVISION 7. PEDICAB INSPECTIONS

Sec. 162-1667. Pedicab vehicle inspections.

It shall be unlawful for any person to operate a pedicab without it passing an annual inspection.

(a) The holder of each pedicab vehicle grant shall annually obtain from the department of public works an inspection receipt that indicates that the pedicab vehicle has passed inspection. A copy of said receipt shall be maintained with the vehicle at all times in a manner prescribed by the bureau.

(b) Any pedicab vehicle found not to conform to the standards and tolerances provided for in this article shall not be approved by the department of public works and shall be ordered out of service. The department of public works shall make or cause to be made, at least every 12 months, inspections of pedicab vehicles to ensure their compliance with this article. The department of public works shall maintain a record of each inspection and shall provide the owner a copy of same. Once a pedicab vehicle is inspected and found to be in compliance with this article, the department of public works shall furnish an inspection receipt to the company representative undergoing the inspection. Such inspection receipt shall be maintained with the vehicle at all times in a manner prescribed by the bureau.

(c) Annually, the owner shall pay $20.00 inspection fee per pedicab vehicle.

(d) If a pedicab is involved in an accident or collision during the term of the operating authority, the owner shall notify the ground transportation bureau within five days after the accident or collision. Before operating the pedicab again under the operating authority, an owner shall have the vehicle reinspected for safety and shall send to the department of public works a sworn affidavit that the vehicle has been restored to its previous condition.

(e) All new approved pedicab companies in the year of inaction of this article shall be issued an inspection gratis by the department of public works.

(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1668. Advertising authorized.

(a) The placement of placards, signs, images, insignias or logos shall be permitted on the body of a pedicab as approved by the director of the department of public works.

(b) Advertisement images shall not obscure the visibility of the registration number or plate.

(c) Advertisements shall be limited to exclude the following:

(1) Lewd, crass, vulgar or sexually explicit content or images.

(2) Political slogans or propaganda.

(3) Advertisements which emit their own source of illumination.

Bumper stickers shall be prohibited.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1669. Disadvantaged business enterprise.

In approving pedicab certificate of public necessity and convenience (CPNC) holders, the director of the ground transportation bureau shall be required to make every reasonable effort to ensure that a minimum 35 percent of the approved pedicab businesses are registered disadvantaged business entrepreneurs in accordance with chapter 70, article IV, division 2 of the City Code.
(M.C.S., Ord. No. 24156, § 1, 10-21-10; M.C.S., Ord. No. 29345, § 2, 2-16-23)

DIVISION 8. PEDAL CARRIAGES

Sec. 162-1670. Prohibited acts.

It shall be unlawful for any person to operate a pedal carriage or to offer to transport passengers for hire in any pedal carriage within the City of New Orleans.
(M.C.S., Ord. No. 28678, § 1, 5-20-21)

Secs. 162-1671—162-1699. Reserved.

ARTICLE XV. TRANSPORTATION NETWORK COMPANIES

DIVISION 1. GENERALLY

Sec. 162-1700. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Transportation network company (TNC) means a person or organization, whether a corporation, partnership, sole proprietorship, or other entity that connects passengers with drivers using their personal vehicle for purposes of for-hire transportation services by means of a TNC digital network.

Transportation network company digital network (TNC digital network) means any online-enabled application, software, website, or system offered or utilized by a TNC that enables the prearrangement of rides with TNC drivers.

Transportation network company driver (TNC driver) means a person who uses his or her personal vehicle to provide for-hire transportation services for passengers matched through a TNC digital network. A TNC driver need not be an employee of a TNC.

Transportation network company services (TNC services) means the transportation of a passenger between points chosen by the passenger and is prearranged by a TNC using a TNC digital network. TNC services commence from the moment a TNC driver logs onto a TNC digital network and ceases when the driver logs off the TNC digital network.

Transportation network company vehicle (TNC vehicle) means any motor vehicle being used to provide TNC services through a TNC digital network that is:

(1) Owned or leased by the TNC driver, or otherwise authorized for use by the TNC driver to provide TNC services, and is not owned or leased by a TNC;

(2) Not licensed as a limousine, horse-drawn carriage, pedicab, general charter tour vehicle, sightseeing tour vehicle, courtesy vehicle, non-emergency medical vehicle, airport shuttle, or any other classification of for-hire vehicle, excluding taxi cabs with Certificates of Public Necessity and Convenience registered in Orleans Parish, as provided under Article III of this chapter or licensed by any other political subdivision or the Louisiana Public Service Commission; and

(3) For one year from the effective date of this article, a TNC may not enable a passenger to request service from a specific type of vehicle which if granted a CPNC would conform to the definition of a limousine or otherwise is able to be classified or typed as a limousine under this chapter, notwithstanding vehicle color.

(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 27485, § 1, 8-10-17)

Sec. 162-1701. TNC permit required.

No TNCs shall operate without first having applied for and received a TNC permit in the manner provided in this article. Any person or entity found operating a TNC without a TNC permit shall be subject to a fine of no less than $500.00 for the first offense and shall be prohibited from obtaining a TNC permit for one calendar year from the date of the offense. For second or subsequent offenses violators shall be subject to the maximum fine allowed by law and shall be permanently prohibited from obtaining a TNC permit.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1702. Occupational license required.

No applicant shall receive a TNC permit without first having applied for and received an occupational license from the department of revenue. The occupational license application shall include proof of registration to conduct business in the state and the name, address, and contact information of an agent for service of process within the state, and the address of an

office located within Orleans Parish. A physical office must be maintained in the parish; a P.O. Box is not sufficient.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1703. TNC permits are privileges.

TNC permits are privileges and not rights. The director of public works or his designee has full discretion in determining whether a TNC permit shall be issued. TNC permits are not transferrable.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1704. TNC permit application.

An application for a TNC permit shall be submitted to the department of public works on forms to be furnished by the director of the department of public works, and the applicant shall furnish the following information with each application:

(1) The name and form of business under which the service will be operated;

(2) The name, phone number, mailing address, and street address (if different from the mailing address) of the applicant's agent for service of process;

(3) Proof of current coverage of insurance as required by this article;

(4) A general description of the means and methodology used to charge passengers and the standard rates for for-hire vehicle transportation services rendered; and

(5) Any additional information as requested by the director of the department of public works for administration of this section.

(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1705. TNC permit fees.

The department of public works shall charge an annual TNC permit fee of $15,000.00. The TNC shall also remit quarterly payments to the department of public works in an amount equal to $0.50 per trip originating in Orleans Parish each quarter. These fees shall be assessed in addition to any other fees charged in any other provision of this chapter. Six months after the effective date of this article, the department of public works shall evaluate the fees and assessments established herein as to whether they are sufficient to offset the cost of the enforcement of this article.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1706. Reserved.

Sec. 162-1707. Accessibility.

(a) TNC drivers shall comply with all applicable laws relating to accommodation of service animals.

(b) A TNC shall not impose additional charges for providing services to persons with physical disabilities because of those disabilities

(c) As of January 1, 2016, any TNC that has at least 50 vehicles operating on its TNC digital network shall provide that:

(1) No less than three percent of all TNC vehicles in its network shall comply with vehicle guidelines set forth in the Americans with Disabilities Act (ADA) with the average time available per week for such vehicles being reasonably within the average time available per week of all TNC vehicles on its TNC digital network;

(2) No less than three percent of the total time available per week of all TNC vehicles in its network shall be achieved by TNC vehicles that comply with vehicle guidelines set forth in the Americans with Disabilities Act (ADA); or

(3) The TNC shall make its TNC digital network available to all accessible taxicab CPNC holders to allow passengers to book rides on the TNC digital network with accessible taxicabs. The TNC shall make available the same or substantially the same software TNC digital network functionality as it provides for TNC vehicles, but is not required to accept payment through the TNC digital

network. The TNC shall provide this service to accessible taxicabs at its own expense.

(d) Prior to January 1, 2016, TNCs shall make reasonable efforts to provide accessibility options to passengers.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1708. TNC website requirements

A TNC shall provide the following information on its website:

(a) TNC's customer service telephone number and/or email address;

(b) TNC's zero tolerance policy and how to report TNC drivers whom the passenger(s) suspect have violated the zero tolerance policy as set forth in section 162-1739 of this chapter;

(c) TNC's method and rate calculation formula

(d) Procedures for reporting a complaint about a TNC driver; and

(e) Complaint telephone and/or email address for the ground transportation bureau.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. 27992, § 3, 2-7-19)

DIVISION 2. TRANSPORTATION NETWORK COMPANY DRIVERS

Sec. 162-1709. TNC driver registry

(a) A TNC shall maintain a registry of all employed or contracted TNC drivers. The registry shall include the following information for every employed or contracted TNC driver:

(1) Full name;

(2) Date of birth;

(3) Louisiana driver's license number;

(4) Louisiana motor vehicle registration number of vehicle that will be used to provide TNC services or Louisiana license plate number of vehicle that will be used to provide TNC services; and

(5) Active dates of employment or contracts.

(b) A TNC shall electronically update its registry with the department of public works on the first day of each month and upon request. Registries must be furnished to the department of public works within 24 hours of such request. Failure to provide such information or update its TNC driver registry shall be grounds for the suspension or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1710. TNC driver background checks.

(1) A TNC shall not allow a TNC driver to perform TNC services unless or until the TNC has performed or caused to be performed background checks on TNC driver applicants and TNC drivers that comply with the standards pursuant to sections 162-241 and 162-242 and are in accord with the policies and regulations of the department of public works implementing such standards.

(2) The methodology shall include a local and national criminal background check for each applicant which shall include:

(a) Multi-State/Jurisdictional Criminal Records Locator or other similar nationwide database criminal history record check to determine if a person has been arrested for and/or convicted of a crime with validation (primary source search), which shall include a social security trace or other similar identification check to identify additional relevant information about applicants, including first name, last name, middle name or initial, aliases, maiden name, alternate spellings, and nicknames, date of birth, Social Security Number, any known addresses; and

(b) Any records search which bases jurisdictional criminal record searches on identified places of residence shall additionally require identical records searches for Orleans, Jefferson, St. Bernard, St. Tammany, Tangipahoa, Plaquemines, and St. Charles Parishes; and,

(c) Results or findings of such a search must be confirmed with the jurisdiction or court system to determine disposition of proceedings; and

(d) National Sex Offender Registry database; and

(e) A driving record check to verify compliance with section 162-243(b) of this chapter.

(3) The details of the background check methodology to be used by a TNC in the certification of their TNC drivers shall be provided to the department of public works at the time of application to operate as a TNC within the city of New Orleans. This detailed methodology must be presented in writing and shall meet or exceed the standards provided in subsection (1), above. Further, the TNC must notify the department of public works of any changes to its methodology and receive prior approval before implementing such changes.

(4) These background checks shall be conducted at least once every two years for the duration of individuals operating under the TNC.

(5) Criteria used in evaluating criminal records shall be consistent across all individuals operating under the TNC. Differing criteria may not be applied to evaluation of background check results based upon race, color, religion, sex (including pregnancy), national origin, age, disability, or sexual orientation.

(6) A TNC shall maintain records of all criminal background and driving record checks performed on all employed or contracted TNC drivers operating in the City of New Orleans for a period of no less than two years. If the director of public works or a New Orleans Police Department official requests access to such records, the TNC, or its designee, must provide the records to either entity within 24 hours of the request. Such records may only be accessed when a complaint number has been generated by the department of public works or the New Orleans Police Department. Failure to conduct criminal background and driving record checks or failure to maintain such criminal background check and driving records check records or provide them upon request shall be grounds for the suspension and/or revocation of a TNC permit.

(7) A TNC may also satisfy the background check requirement by following the requirements applicable to CPNC for-hire vehicle operators under this chapter.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

[Secs. 162-1711, 162-1712. Reserved.]

Sec. 162-1713. TNC driver drug testing.

(a) Every quarter, the department of public works is authorized to send to any TNC a list of up to 25 TNC drivers for random drug testing. Within five days of receiving the list, the TNC shall advise such drivers they must obtain a drug test from a department of public works-approved testing facility within ten days.

(b) A TNC shall require a TNC driver to submit a drug test within 24 hours upon being involved in a traffic accident while providing TNC services.

(c) TNC drivers must sign a waiver to allow approved facilities to send results directly to the TNC and department of public works.

(d) Any TNC driver who fails to timely submit to drug testing or refuses to comply with the instructions and/or testing protocol of the drug testing facility shall be prohibited from operating as a TNC driver for a period of one year. Further, the TNC shall prevent the driver from accessing the TNC's digital network for a period of one year.

(e) Any TNC driver whose test results indicate that the TNC driver tested positive for any controlled substance listed in R.S. 40:961, et seq., or any combination thereof, shall be prohibited from operating as a TNC driver for a period of one year. Further, the TNC shall prevent the driver from accessing the TNC's digital network for a period of one year.

(f) If a person testing positive for a controlled dangerous substance has a valid and legal prescription for the medication for which he tested positive, such person may continue as a TNC driver under the following circumstances:

(1) The prescription must be issued by a licensed physician;

(2) The prescription must be accompanied by a written certification from the physician that:

a. The medication was prescribed prior to the drug test;

b. The physician is familiar with the person's medical history including drug and alcohol use and other medications;

c. The person has not been diagnosed with any substance abuse issue, and that the prescribed drug will not adversely affect that applicant's ability to operate a motor vehicle safely; and

d. The medication was not prescribed as permitted by R.S. 40:1046.

(g) Failure of the TNC to comply with these provisions shall be grounds for suspension or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

DIVISION 3. TRANSPORTATION NETWORK COMPANY DRIVER VEHICLES

Sec. 162-1714. Maximum age of TNC vehicles.

No vehicle having a vehicle age greater than eight years may be used to provide TNC services in the City of New Orleans. For purposes of this article, the term "vehicle age" shall be determined based on the vehicle's model year, and a "year" shall be measured through the last day of that respective calendar year. (For example, a vehicle with a model year of 2000 shall have a vehicle age of one year as of January 1, 2001). If a vehicle owner can demonstrate that the odometer had less than 600 miles on it at the time of purchase, the vehicle age shall be measured from the date the vehicle was purchased.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 26590, § 1, 9-17-15)

Sec. 162-1715. TNC vehicle inspection.

A TNC shall certify that all motor vehicles providing TNC services through its TNC digital network have been inspected by a state-certified mechanic or garage prior to allowing them provide such services in the City of New Orleans. A TNC shall require and certify that an annual re-inspection has been performed on all motor vehicles providing TNC services through its TNC digital network. TNCs must keep all vehicle services records for a period of no less than two years and make them available to the department of public works upon request. Failure to have a TNC vehicle inspected or failure to maintain vehicle inspection records or provide them upon request shall be grounds for the suspension and/or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1716. Criteria and regulation of TNC vehicle inspection standards.

(a) The TNC safety inspection shall cover brakes, windshield, lights, turn signals, steering, pollution control devices, tires, and suspension.

(b) There shall be no unrepaired body damage or any body condition that would create a safety problem or interfere with the operation of the vehicle.

(c) The TNC general appearance inspection shall include an interior inspection of each vehicle to ensure the vehicle interior is maintained in a reasonable condition, including door panels, arm rest, floor covering and seats that are free of holes, snags and soiled spots.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1717. Nonscheduled TNC vehicle inspections.

Notwithstanding any other provisions in this article, the department of public works shall have the power and authority to require periodic inspections of any motor vehicles currently registered as TNC vehicles while providing TNC services.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1718. TNC vehicle identification.

All TNC vehicles shall be identified by consistent trade dress (i.e. distinctive signage or display on the vehicle) when providing TNC services that is sufficiently large and color contrasted as to be readable during daylight hours at a distance of at least 50 feet. The trade dress shall be sufficient to allow a passenger, government official, or member of the public to associate a vehicle with a particular TNC. Acceptable forms of trade dress include, but are not limited to, symbols or signs on vehicle doors, roofs, or grills. Magnetic or removable trade dress is acceptable. TNCs shall file a photograph or digital image of their trade dress with the department of public works. A TNC permit holder shall be liable for violations of this section upon a showing that the TNC knew or should have known about such violations. Such a showing shall be grounds for the suspension and/or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

DIVISION 4. TRANSPORTATION NETWORK COMPANY INSURANCE

Sec. 162-1719. TNC services time periods.

For purposes of this article, TNC services shall have two distinct time periods:

(a) Period One runs from the time a TNC driver logs onto the TNC digital network until he or she accepts a passenger match, and from the time the driver has completed the transaction, or the last passenger exits the vehicle, whichever is later, until the driver accepts another passenger match or logs off the TNC digital network.

(b) Period Two runs from the time a TNC driver accepts a passenger match until the driver has completed the transaction, or the last passenger exits the vehicle, whichever is later.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1720. TNC duty to inform drivers.

A TNC shall disclose in writing to TNC drivers, as part of its written agreement with those drivers and before allowing TNC drivers to accept a request for TNC services, the insurance coverage and limits of liability that the TNC provides while a driver makes himself or herself available for TNC services, and shall advise a TNC driver in writing :

(a) That the driver's personal automobile insurance policy may not provide any liability or other related coverage, including, but not limited to uninsured or underinsured motorist, comprehensive, or collision coverage while the driver makes himself or herself available for TNC services or is performing TNC services;

(b) That if the vehicle used to provide TNC services has any security interest, privilege, or lien, that the TNC driver must notify the entity possessing that security interest, privilege, or lien that they are using the vehicle to perform TNC services.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1721. TNC insurance coverage.

A TNC shall maintain insurance coverage placed with an insurer authorized to provide coverage in the state or with a surplus line insurer eligible under R.S. 22:431, et seq., that provides primary liability coverage and other coverages for TNC services during TNC service periods as provided below. The requirement for a TNC to maintain insurance coverage as described by this division may be satisfied by any of the following:

(a) An insurance policy obtained by a TNC.

(b) An insurance policy obtained by a TNC driver that is specifically written to cover TNC services.

(c) Any combination of insurance policies obtained by the TNC and an insurance policy obtained by a TNC driver that is specifically written to cover TNC services.

A TNC may meet its obligations to maintain insurance coverage under this article with a policy obtained by the TNC driver pursuant to subsections (b) or (c), only if the TNC verifies that the policy or policies in question are specifically written to cover TNC services and that any policy obtained by a TNC driver in that regard is maintained. If an insurance policy obtained by a TNC driver to meet the requirements of subsections (b) or (c) ceases to exist at any time for any reason, including, but not limited to, lapse or cancellation, or does not provide coverage for any reason the TNC's insurance policy shall provide all required coverage under this article beginning with the first dollar of a claim and shall have the duty to defend such claim.

Any insurance policy obtained to comply with this section shall add the City of New Orleans as an insured and be filed annually with the Louisiana Public Service Commission. The policy shall provide for notification to the City Attorney of the City of New Orleans of non-renewal or cancellation of such policy.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1722. TNC insurance coverage limits.

(a) A TNC shall ensure that TNC services are covered by an insurance policy or policies subject to the following coverage requirements:

(1) During TNC service Period One, TNC services shall be covered by a policy or policies of primary liability insurance in the amount of at least $50,000.00 for death or personal injury of any one person, at least $100,000.00 for death or personal injury of two or more persons, and at least $25,000.00 for property damage per incident.

(2) During TNC service Period Two, TNC services shall be covered by a policy or policies of primary liability insurance in the amount of at least $1,000,000.00 for death, personal injury and property damage. The policy or policies shall also provide uninsured or underinsured motorist coverage in the amount of at least $1,000,000.00.

(3) In addition to the coverage limits provided for in this section, a TNC shall also provide all other state-mandated coverages for motor vehicles as required by the state motor vehicle safety responsibility law, R.S. 32:851, et seq.

(b) This section shall not limit the liability of a TNC arising out of an automobile accident involving a TNC driver in any action for damages against a TNC for an amount above the required insurance. Coverage under this section shall not be dependent on a personal automobile insurance policy first denying a claim, nor shall a personal automobile insurer be required to first deny a claim.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1723. Reserved.

Sec. 162-1724. Duty to comply with claims coverage investigation.

A TNC and any insurer potentially providing coverage under this division shall cooperate to facilitate the exchange of relevant information with directly-involved parties and their insurers and any insurer of the TNC driver, if applicable, including, but not limited to, the precise times that a TNC driver logged on and off of the TNC's digital network in the 12-hour period immediately preceding and in the 12-hour period immediately following the accident and a clear description of the coverage, exclusions and limits under any automobile insurance policy maintained under this division.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1725. Proof of insurance.

TNC drivers shall carry with them at all times during the provision of TNC services proof of

insurance coverage, including any coverage from the driver's own policy that is specifically written to cover the provision of TNC services, or coverage from a policy obtained by the TNC, or both, as applicable. In the event of an accident, a TNC driver shall provide this insurance coverage information to any other party involved in the accident, and to a police officer and ground transportation bureau inspector, upon request.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. 27992, § 3, 2-7-19)

Sec. 162-1726. Failure to maintain required insurance.

Failure to maintain all required insurance at any time for any reason shall be grounds for the suspension and/or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1727. TNC driver notification of insurance companies and lienholders.

Any terms or conditions in the agreement between the TNC permit holder and TNC driver, or between the TNC permit holder and any passenger, that would act as a waiver of the TNC permit holder's liability to the passenger or the public, are declared contrary to public policy, null, void, and unenforceable.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

DIVISION 5. RATES

Sec. 162-1728. Rates.

(a) TNCs may charge rates based upon a calculation of time and/or distance. Passengers shall be provided the method by which the rates will be calculated and the option to obtain an estimated total fare prior to pick-up based upon information provided when requesting service. At a minimum, a TNC vehicle fare shall be no less than the charge for activation of a taximeter pursuant to this chapter. A TNC shall not apply any surcharge to passengers for use except as authorized by this chapter.

(b) Any time there is a temporary or permanent increase in rates or change in rate calculation which will or may result in a temporary or permanent increase in rates, prior to passenger acceptance of the fare and completion of the order, the TNC shall clearly and without prompting display the increase of the fare in the form of a mathematical multiple and total cost estimation.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1729. Rates to or from Louis Armstrong International Airport.

The minimum charge for trips to or from the Louis Armstrong International Airport shall be no less than $33.00 per trip.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1730. Rates during emergencies.

TNCs and TNC drivers may not increase rates during a state of emergency as declared by the governor or parish governing body, except as permissible according to La. R.S. 29:732.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1731. Passenger receipts.

(a) Upon completion of a trip, a TNC shall provide customers with a receipt that lists the:

(1) TNC driver name;

(2) TNC vehicle description and license plate number;

(3) Trip ID;

(4) Date of trip;

(5) Distance of trip, including the point of origin and ultimate destination;

(6) Time of trip;

(7) Fare charges;

(8) Extra charge;

(9) Total charges;

(10) TNC name and contact information; and

(11) Words "Ground Transportation Bureau and For-Hire Vehicle Bureau. For compliments or concerns, please call 504-658-7176."

(b) A TNC shall maintain such receipts for a period of at least two years. Such records may only be accessed when a department of public works complaint number or New Orleans Police Department complaint number has been generated. Upon request of the department of public works or New Orleans Police Department, such receipts shall be made available within 72 hours.

(c) On an annual basis, a TNC shall provide aggregated, not personally identifiable passenger and trip data to the department of public works.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

DIVISION 6. OPERATING REQUIREMENTS

Sec. 162-1732. Reserved.

Sec. 162-1733. TNC driver operating hours.

TNC drivers shall not provide TNC services for more than 12 consecutive hours in any 24-hour period.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1734. Prohibition against street hailing.

TNC drivers shall not provide TNC services unless a TNC has matched the driver to a passenger through a TNC digital network. A TNC driver shall not accept on-demand rides from persons on the street. TNC drivers shall provide immediate electronic proof that any ride in progress has been prearranged through a TNC upon demand by the department of public works or law enforcement personnel.
(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1735. Prohibition against use of taxicab stands.

TNC drivers shall not pick up or discharge a passenger in any designated taxicab stand areas.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1736. Refusal to carry passengers.

(a) No TNC driver shall refuse to take any passenger who has requested service via TNC digital network to a destination within ten miles outside of the city limits, once the request has been accepted. This section shall also apply for trips to or from any municipal airport operated by the city for TNC drivers authorized to perform such trips.

(b) Transportation network companies shall reasonably ensure adequate and non-discriminatory pick up and drop off service to and from all areas in the geographic boundaries of the City of New Orleans.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1737. Operating at Louis Armstrong International Airport.

No TNC or TNC driver shall pick up passengers at the Louis Armstrong International Airport unless specifically authorized to do so by the New Orleans Aviation Board. The New Orleans Aviation Board may impose fees and costs for the permission to pick up passengers at the Louis Armstrong International Airport in addition to any other fees and costs set forth in this chapter.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1738. Passenger match information.

Prior to passenger entering a TNC vehicle, the TNC shall provide a passenger with the following information:

(1) TNC driver's first name;

(2) A photograph clearly identifying the TNC driver; and

(3) Make, model, and license plate number of the TNC driver's vehicle.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1739. Zero tolerance policy.

Every TNC shall establish and maintain a zero tolerance policy on the use of drugs or alcohol by its TNC drivers while providing TNC services. Immediately upon receiving a passenger credible complaint, the TNC shall suspend the TNC driver and conduct an investigation into the allegation. The suspension shall remain in place throughout the duration of the investigation. Within 24 hours, a TNC shall notify the department of public works of any credible passenger complaints lodged against any TNC driver accused of violating its zero tolerance policy, as well as the results of such investigation. Any TNC driver found to have violated the TNC's zero tolerance policy shall be prohibited from operating as a TNC driver or as a for-hire operator within the City of New Orleans for a period of no less than one year from the date of the violation.

(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

DIVISION 7. RECORDKEEPING REQUIREMENTS

Sec. 162-1740. Trip sheets and records.

(a) Every TNC shall keep daily records including all trip requests, complaints, accepted trip requests, daily application sign-in and sign-out logs, vehicle collision reports, service response time reports, reports of crime against TNC drivers and passengers, lost property reports, and TNC vehicle identification information. Such records may be maintained electronically and shall be preserved for a period of not less than two years and be available for examination by the director of public works within 24 hours of request. Failure to maintain such records or to timely provide them shall be grounds for the suspension and/or revocation of a TNC permit.

(b) Falsifying any records outlined in this article shall be grounds for suspension and/or revocation of a TNC permit.

(M.C.S., Ord. No. 26339, § 2, 4-9-15; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1741. Privacy protections.

A TNC shall not disclose to a third party any personally identifiable information concerning a user of the TNC digital network unless:

(a) The TNC obtains the user's consent for release of such information;

(b) The disclosure is necessary to comply with a legal obligation; or

(c) The disclosure is necessary to protect or defend the terms and conditions for use of the service or to investigate violations of the terms and conditions.

This limitation of disclosure does not apply to the disclosure of aggregated user data and other information about the user that is not personally identifiable. Violations of this section shall be grounds for the suspension and/or revocation of a TNC permit. The city attorney shall have the right to file suit in a court of competent jurisdiction to seek appropriate remedies for any violations of this provision.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

DIVISION 8. PENALTIES

Sec. 162-1742. Penalties for violations by TNCs.

Unless otherwise provided for in this article, for violations of this chapter, a TNC shall be subject to a fine of up to $500.00 for a first offense and/or possible suspension or revocation of its TNC permit; for subsequent offenses a TNC shall be subject to a fine up to the maximum amount allowable in the Municipal Court of Orleans Parish and/or possible suspension or revocation of its TNC permit.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1743. Penalties for violations by TNC drivers.

Unless otherwise provided for in this article, for violations of this chapter, a TNC driver shall be subject to immobilization and/or impoundment of the TNC vehicle and a fine of up to $500.00 for a first offense; for subsequent offenses drivers shall be subject to immobilization and/or

impoundment of the TNC vehicle and a fine of up to the maximum amount allowable in the Municipal Court of Orleans Parish.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1744. TNC permit holder liability.

A TNC shall be liable for violations of this chapter or those committed by a TNC driver using a TNC digital network upon a showing that the TNC knew or should have known about such violations. Such a showing shall be grounds for the suspension and/or revocation of a TNC permit.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1745. Denial, revocation, or suspension of TNC permit.

Unless contrary to the provisions of this article, a TNC shall be subject to the permit denial, revocation, and suspension regulations outlined in sections 162-241—162-250.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1746. Mandatory alternative dispute resolution, jurisdiction, and choice of law provisions.

For any services rendered pursuant to this article:

(a) Any provision in a contract between a TNC, TNC driver, or a TNC passenger requiring alternative dispute resolution including, but not limited to, mediation or arbitration, prior to or instead of accessing the court system, shall not be enforceable.

(b) Any provision in a contract between a TNC, TNC driver, or a TNC passenger which seeks to prevent a litigant from filing suit in a court of competent jurisdiction in the State of Louisiana shall not be enforceable.

(c) Any provision in a contract between a TNC, TNC driver, or a TNC passenger which seeks to mandate or limit choice of law rules shall not be enforceable.

(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Sec. 162-1747. Prohibition against waiver or limitation of liability.

For any services rendered pursuant to this article, any terms or conditions in the agreement between the TNC and TNC driver, or between the TNC and any passenger that would act as a waiver or limitation of the TNC's liability to a TNC driver, a passenger or the public, or of the TNC driver's liability to the passenger or the public, shall not be enforceable.
(M.C.S., Ord. No. 26339, § 2, 4-9-15)

Secs. 162-1748—162-1799. Reserved.

ARTICLE XVI. SCHOOL BUSES

DIVISION 1. GENERALLY

Sec. 162-1800. Certificate required.

(a) No school bus shall be operated on the streets of the city unless the owner of such vehicle has first applied for and received a certificate of public necessity and convenience (CPNC) in the manner provided in this chapter.

(b) It shall be unlawful for any person to transport or offer to transport passengers in any school bus which does not have affixed to the windshield thereof a valid for-hire vehicle inspection certificate issued along with a valid CPNC as set forth by the director of public works.

(c) All certificates of public necessity and convenience shall remain as the property of the city.

(d) Notwithstanding section 162-321, school bus CPNCs shall not be transferred, sold, or given from one holder to another including the sale of one company in its entirety to another.

(e) Delinquency penalty. A CPNC expires on April 30 of each year and must be renewed within the month following expiration (May) for a fee of $150.00. A CPNC renewal that is submitted in the month of June is subject to a delinquency penalty of $150.00 in addition to the renewal fee of $150.00. A CPNC renewal that is submitted in the month of July is subject to a delinquency penalty of $150.00 in addition to the

renewal fee and the June delinquency penalty. A CPNC shall not be renewed after July 31; however, the director of the department of public works (or his designee) at his discretion may make an exception for good cause shown by the CPNC holder. The request for an exception must be made in writing before August 1 and if granted is subject to a delinquency penalty of $50.00 per month beginning in the month of August. This delinquency penalty shall be in addition to the fees and penalties outlined above.

(f) Revocation of CPNC. A CPNC that is not renewed by July 31 is suspended. A CPNC shall be revoked if a renewal is not submitted in May, June, July or within the extended time period granted by the director or the designee.

(g) Extension for acquiring a vehicle and fee. Compliance with the requirement that a CPNC holder must have a vehicle in service may be extended for a period of time by the director of the department of public works (or his designee) for good cause. The first extended time period is limited to a maximum of 90 days. Additional extensions may be granted but the aggregate of such extensions is limited to a maximum of one year. There is no fee for the first extension. Additional extensions are subject to a fee of $50.00 per month. If a vehicle is not placed into service within the extended time period granted by the director or the designee, the CPNC shall be revoked.

(M.C.S., Ord. 27992, § 2, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1801. Special regulations for school buses.

In addition to the other applicable provisions of this chapter, all holders of a school bus certificate of public necessity and convenience and school bus operators shall comply with the applicable provisions of this article.

(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1802. School bus liability insurance coverage.

All school buses operating in the city shall have current liability coverage for each vehicle.

(a) The liability coverage for a school bus engaged exclusively in the transport of children to and from school and related activities shall be represented by a policy of liability insurance issued by an insurance company authorized to do business in the state, either as an admitted company or a surplus line company certified to do business in the state eligible under R.S. 22:431 et seq., and such policy shall provide for payment of a sum of not less than $1,000,000.00 to satisfy all claims for damages by reason of death, personal injury, and property damage from any one accident by reason of the ownership, operation, maintenance, or use of such vehicle union and street.

(b) The liability coverage for a school bus that is additionally engaged in transport for hire to parties other than schools or traveling more than ten miles outside of the city shall be represented by a policy of liability insurance issued by an insurance company authorized to do business in the state, either as an admitted company or a surplus line company certified to do business in the state eligible under R.S. 22:431 et seq., and such policy shall provide for payment of a sum of not less than $5,000,000.00 to satisfy all claims for damages by reason of death, personal injury, and property damage from any one accident by reason of the ownership, operation, maintenance, or use of such vehicle upon any street.

(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1803. School bus parking and waiting areas.

School buses shall be prohibited from parking, waiting, or being stored in areas which are prohibited or restricted by Chapter 154 of this Code or the Comprehensive Zoning Ordinance. Vehicles found to be parked, stored, or otherwise not actively operating in any such area shall be subject to administrative action by the ground transportation bureau under the provisions of this chapter in addition to action by any other enforcement agency of the city.

(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1804. CPNC pre-requisite for contracting for service.

(a) The owner, operator, or any other person in possession of a school bus as defined by this Chapter shall not contract with the owner, operator, institution, or entity responsible for the students who will be transported in said vehicle without the issuance of a CPNC and presence of a valid inspection certificate.

(b) Owners, operators, institutions, and/or entities responsible for the students for whom transportation is being provided shall ensure potential vendors possess the requisite documentation from the City of New Orleans prior to allowing such vendor to transport children.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Secs. 162-1805—162-1809. Reserved.

DIVISION 2. SCHOOL BUS DRIVER REGULATIONS

Sec. 162-1810. School bus driver permit required.

It shall be unlawful for any person to operate a school bus, or other for-hire vehicle utilized in the transportation of preprimary, primary, or secondary students to or from school or related events within the city without possessing a current school bus driver's permit.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1811. Identification and uniform.

All school bus drivers are required to wear photo identification containing the operator's name and the affiliated company. This identification shall be worn during all duty hours and shall be worn to be plainly visible at all times.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1812. School bus driver background checks.

(a) Applicants must be 21 years of age or older.

(b) Applicants for a school bus driver's permit, or a renewal thereof, must undergo a criminal background investigation as described in R.S. 17:15 and 15:587.1.

(c) Applicants must have a current and acceptable driving record verified as required by R.S. 17:491.1.

(1) Drivers must report moving violation convictions in accordance with CDL requirements.

(2) No driver or applicant shall be employed as a school bus driver if within the past five years, he/she has been convicted of, or has forfeited a bond on, any charge of:

A. DUI, possession, distribution, or use of a controlled dangerous substance, as defined by R.S. 40:963 et seq.;

B. Leaving the scene of an accident involving an injury or fatality; or

C. Any felony involving the use of a motor vehicle.

(d) Drivers must have a commercial driver's license (CDL) issued by the state of Louisiana, which includes a Passenger (P) and School Bus (S) endorsement. Airbrake authorization shall also be required for operators of vehicles equipped with airbrakes

(e) Drivers must pass a physical and eye examination meeting current CDL requirements annually. A copy of the examination record must be filed with the bureau before the beginning of each school year.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1813. Drug screenings.

Applicants for a school bus driver permit must pass initial drug and alcohol screening requirements and United States Department of Transportation-directed random testing, as specified by the Federal Motor Carrier Safety Administration.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1814. Training certificate and line letter.

(a) Initial applicants for a school bus driver permit must submit a letter of employment from a school bus company operating within the city and documentation of completed training as required by the State of Louisiana Department of Education.

(b) Renewal applicants must submit documentation of completing continued certification to include a minimum of eight hours biannually.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1815. School bus attendants (aides).

It shall be unlawful for any individual to be employed as a school bus attendant on any school bus which has been issued a CPNC under this article without first having been issued a school bus attendant permit. This section shall not apply to a school bus attendant employed directly by a school. The application criteria for a school bus attendant shall be the same as an applicant for a school bus driver's permit except for the driving requirements as outlined in section 162-1812(c) through (e), and section 162-1814.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Secs. 162-1816—162-1819. Reserved.

DIVISION 3. SCHOOL BUS VEHICLE REQUIREMENTS

Sec. 162-1820. Maintenance and appearance of school buses.

Each school bus driver shall be fully responsible for the exterior and interior physical appearance of the vehicle. Interiors of all school buses must be kept free of debris. Dashboards must be maintained free and clear of paraphernalia and other items not necessary for the operation of such vehicle. The penalty for one violation of this section within a one-year period shall be $50.00. The penalty for a second violation within a one-year period shall be a minimum $75.00 fine plus a minimum ten-day suspension from operating any school bus. The penalty for a third or subsequent violation within a one-year period shall be a minimum $100.00 fine plus a minimum 90-day suspension from operating any school bus.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1821. School bus vehicle requirements.

No vehicle shall be approved to operate as a school bus under this chapter unless the vehicle is manufactured specifically to transport students and meets the specifications outlined in this chapter.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1822. School bus age requirements.

(a) Any used school bus purchased for use in the city by or for a school system shall meet current state legal requirements for motor vehicles and shall meet state specifications for school buses that were in effect on the date the vehicle was manufactured. No vehicle with rated capacity of more than ten passengers shall be classified as a school bus and thereby used to transport students to and from school and school-related activities unless said vehicle originally was manufactured and certified as a school bus and maintained the certification as a school bus all in accordance with federal and state requirements throughout the life of the vehicle.

(b) All replacement school buses used on daily routes, at the time they are acquired by the owner, shall be no more than ten model years old for all owners/operators and school districts. The number of years shall be determined from the date of the model year.

(c) Any school bus used as an activity or backup bus, at the time it is acquired by the owner and placed in service, shall be no more than 15 model years old. The number of years shall be determined from the date of the model year.

(d) Any school bus used as an activity or backup bus that is older than 15 model years shall not be used more than 60 consecutive school days in a school year.

(e) School buses shall not exceed the age of 25 model years.

(f) For purposes of this section, the vehicle's age shall be determined based on the vehicle's model year, such that a vehicle with a model year of 2000 shall have a vehicle age of one year as of January 1, 2001.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1823. Inspection required.

(a) Every school bus for which a CPNC has been issued pursuant to the provisions of this chapter shall be submitted to the for-hire vehicle inspection station by the CPNC holder, or their authorized designee, for mechanical inspection semi-annually.

(b) One of the two required inspections must be conducted in the months of June, July, or August prior to the beginning of the school year.

(c) Other inspections may be required pursuant to the provisions of this chapter.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Sec. 162-1824. Nonscheduled inspections.

All school buses shall at all times be subject to inspection by personnel of the ground transportation bureau and be maintained in a condition of mechanical fitness with respect to each element of safety as required by law. The department of public works shall have the power and authority to require inspections from time to time, other than those herein prescribed, when same through reason and sound judgment are deemed necessary.
(M.C.S., Ord. 27992, § 2, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1825. Criteria and regulation of inspection of school buses.

(1) General inspection requirements:

(a) Notwithstanding any other provision of this chapter to the contrary, the director of the department of public works, or his designee, shall have the authority to inspect school buses where they are customarily housed or at inspection locations deemed appropriate by the director.

(b) Every school bus shall be painted National School Bus Glossy Yellow except that the hood shall be painted the same color or lusterless black and its roof may be painted white. Bumpers shall be painted glossy black, except that for increased night visibility they may be covered with a retroreflective material.

(c) Investigators shall issue a "do not operate" for vehicles with improper emergency safety equipment, non-functioning stop arms or signals, no brake lights, broken door handles, balding tires, or for safety hazards.

(d) Each school bus shall be maintained in a clean condition. There shall be no tears or rust holes in the vehicle body and no loose pieces such as fenders, bumpers or trim hanging from the vehicle body. There shall be no unrepaired body damage or any condition that would create a safety problem or interfere with the operation of the vehicle. Failure to maintain a vehicle in such a condition may result in a "do not operate."

(e) The time frame that deficient vehicles may operate with minor deficiencies, such as no hubcaps and deficiencies with signage, is set at three days or the next inspection date, whichever is sooner.

(2) School buses shall be inspected in accordance with the following criteria:

(a) Proof of insurance;

(b) CPNC certificate;

(c) Vehicle registration;

(d) License plate;

(e) Proof of insurance;

(f) A current and valid motor vehicle inspection certificate (brake tag).

(3) Exterior check list:

(a) Brakes;

(b) Lighting systems;

(c) Stop arms;

(d) Crossing control arm;

(e) Audible backing alarm;

(f) Mirrors;

(g) Service door;

(h) Emergency exit door;

(i) Bumpers;

(j) Tires;

(k) Mud flaps;

(l) Windshield, windows, glass;

(m) Exhaust system;

(n) Battery;

(o) Paint.

(4) Interior checklist:

(a) Stepwell, aisle and floor covering;

(b) Emergency equipment (first aid kit, fire extinguisher, warning devices);

(c) Defrosters;

(d) Sun shield;

(e) Instrument panel;

(f) Seat belts, as required by manufacturer specifications;

(g) Seats and guard rails.

(5) Information to be displayed:

(a) The words "School Bus" must be on the front and rear of the vehicle in plain, black letters at least eight inches in height.

(b) CPNC identification number on the sides between the rear wheel and bumper, rear and front;

(c) CPNC holder name displayed on the sides at the bottom center of the bus,

(d) Bus company name displayed at the beltline;

(e) The location of the battery identified by the word "battery" or "batteries" on the battery compartment door in two-inch lettering;

(f) "Handicap" symbol, identifying the bus as equipped for or transporting student with disabilities; however, the symbol shall not be placed on the glass of the rear emergency exit;

(g) The stop arms shall be painted red with the word "Stop" in white letters, or the stop arms may be covered by a manufactured decal with the same color combination.

(M.C.S., Ord. 27992, § 2, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Secs. 162-1826—162-1829. Reserved.

DIVISION 4. OPERATING REQUIREMENTS

Sec. 162-1830. School bus trip sheets and records.

(a) Pre-trip and post-trip inspection checklists, which shall be subject to the approval of the director of public works, must be completed by drivers each day and maintained by the CPNC holder for a period of no less than two years and be available for examination by the director of public works, or his designee.

(b) Every business entity or individual operating a school bus shall keep daily records including dispatch records, vehicle safety complaints, all accepted telephone calls, daily vehicle sign out logs, vehicle collision reports, service response time reports, reports of crime against for hire drivers, lost property reports, CPNC numbers, and drivers of each vehicle for which a CPNC has been issued. Such records shall be preserved for a period of two years and be available for examination by the director of public works, or his designee.

(M.C.S., Ord. 27992, § 2, 2-7-19; M.C.S., Ord. No. 28624, § 2, 3-11-21)

Sec. 162-1831. School bus locations.

Prior to the start of each school year, the storage location of all school buses as well as the schools generally serviced by such buses must be filed with the bureau. Any changes or alterations must be submitted in writing to the bureau within five business days of changing the locations.
(M.C.S., Ord. 27992, § 2, 2-7-19)

Secs. 162-1832—162-1899. Reserved.

Chapters 163–165

RESERVED

Chapter 166

VIEUX CARRÉ*

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*__Cross references—__Residential district regulations, comprehensive zoning ordinance, art. 5, §§ 18, 19; other district regulations, comprehensive zoning ordinance, art. 5, §§ 21—21C; provisions regarding the Vieux Carré housing and historic preservation, § 26-233; show windows abutting over sidewalk or not in conformance with the regulations considered a nuisance to be evaded, § 26-515; mayoralty permits required for various callings or occupations or occasions, § 30-69; restrictions regarding certain entertainment in the Vieux Carré and Jackson Square, § 30-1451 et seq.; certain restrictions for sales in the central business district and Jackson Square for mayoralty permits, § 34-216 et seq.; merchandising of certain items restricted in the Vieux Carré, § 54-490; Vieux Carré residential fund, § 70-151 et seq.; certain restrictions for sale of artifacts by mayoralty permit holders in certain areas, § 110-76 et seq.; certain restrictions on sales by artists holding mayoralty permits in Jackson Square and the central business district, § 110-121 et seq.; restrictions on sales of flowers in the central business district and Jackson Square, § 110-151 et seq.; restrictions on sales of food by mayoralty permit holders in Jackson Square and the central business district, § 110-186 et seq.; certain restrictions regarding soliciting in the central business district and Vieux Carré, § 110-221 et seq.; restrictions on sales by transient vendors in Jackson Square and Vieux Carré, § 110-256 et seq.; tour vehicles and buses, § 162-896; awning to be specially equipped on certain streets, § 134-129.

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ARTICLE I. IN GENERAL

Sec. 166-1. Purpose.

The Vieux Carre shall have for its purpose the preservation of such buildings in the Vieux Carre section of the city as, in the opinion of the Vieux Carre Commission, shall have architectural and historical value and which should be preserved for the benefit of the people of the city and state.
(Code 1956, § 65-6)

Sec. 166-2. Boundaries.

The Vieux Carre section of the city is hereby defined to comprise all that area within the city limits within the following boundaries: the river, uptown side of Esplanade Avenue, the riverside of Rampart Street and the lower side of Iberville Street.
(Code 1956, § 65-6)

Sec. 166-3. Private floodlights prohibited.

The public sidewalks, places and alleys, exteriors, roofs, outer walls and fences of buildings and other constructions and signs visible from any public street, place or position in the Vieux Carre section shall not be illuminated by privately-controlled floodlights or other illumination except as permitted by this chapter.
(Code 1956, § 65-11)

Sec. 166-4. Show case regulations.

(a) All show cases existing on June 13, 1940, erected upon public property shall be allowed to remain, be repaired or be duplicated if they do not project farther than 18 inches beyond the property line.

(b) In the renovation or remodeling of any structure in the Vieux Carre of this city which on June 13, 1940 had a show case or show cases on public property, there may be additional show cases similar to those existing on June 13, 1940 erected on such property subject to the written approval of the Vieux Carre Commission.
(Code 1956, § 65-12)

Cross reference—Standards for storefront and show windows, § 26-511 et seq.

Sec. 166-5. Overhanging balconies.

No overhanging balconies or galleries of wrought or cast iron may be removed, but other new or additional balconies may be erected if:

(1) Supported by brackets or iron columns;

(2) At least nine feet above the level of the sidewalk; and

(3) Conform to the quaint and distinctive architecture of the Vieux Carre.

Permits for all such new construction or any renovation shall be subject to the requirements of this article.
(Code 1956, § 65-13)

Sec. 166-6. Conflicts.

The provisions of this chapter shall govern and take precedence over any other provisions of this Code.
(Code 1956, § 65-16)

Secs. 166-7—166-20. Reserved.

ARTICLE II. ADMINISTRATION

DIVISION 1. GENERALLY

Sec. 166-21. Stopping work commenced without permit.

The director of the Vieux Carre Commission shall promptly stop any work attempted to be done without or contrary to a permit issued under this chapter and shall promptly prosecute any person responsible for such a violation of this chapter or engaged in such violation. Any officer or authorized agent of the commission shall exercise concurrent or independent powers with the director in prosecuting violations of this chapter and stopping any work attempted to be done without or contrary to the permits required by this chapter.
(Code 1956, § 65-15)

Secs. 166-22—166-30. Reserved.

DIVISION 2. VIEUX CARRE COMMISSION*

Sec. 166-31. Created; appointment; terms; vacancies.

(a) *Established.* There is hereby created a commission to be known as the Vieux Carre Commission of the city.

(b) *Recommendation and appointment of members.* The Vieux Carre Commission shall consist of nine members, all of whom shall be citizens of the city. They shall be appointed by the mayor with the advice and consent of the council. The members of the commission shall be appointed by the mayor as follows: one from a list of two persons recommended by the Louisiana Historical Society; one from a list of two persons recommended by the Louisiana State Museum Board; one from a list of two persons recommended by the chamber of commerce of the city; three qualified architects from a list of six qualified architects recommended by the New Orleans Chapter of the American Institute of Architects and three at large.

(c) *Term; vacancies.* Each of the members of the Vieux Carre Commission shall be appointed for a term of four years. Whenever the term of a member of the commission expires the mayor shall appoint his successor from a list selected by the body which made the original selection from which the vacancy has occurred.
(Code 1956, §§ 65-1—65-3)

Sec. 166-32. Employees and committees.

The Vieux Carre Commission may select and employ such persons as may be necessary to carry out the purposes for which it is created. The city attorney shall be ex officio the attorney for the commission. The commission may designate and appoint various committees with such powers and duties as the commission may have and prescribe.
(Code 1956, § 65-4)

Sec. 166-33. Rules and regulations; meetings; reports and recommendations.

The Vieux Carre Commission shall make such rules and regulations as it may deem advisable and necessary for the conduct of its affairs not inconsistent with the laws of the city and state. The commission shall meet at least quarterly, but meetings may be held at any time by the commission on the written request of any of the nine members or on the call of the chairman or the mayor. The commission shall make annual reports to the mayor and council containing a statement of its activities. It shall make its recommendations for the future, but recommendations may be made by the council to the commission at any time.
(Code 1956, § 65-5)

Sec. 166-34. Special commissions for the Vieux Carre Commission.

The director and employees of the Vieux Carre Commission, upon the Vieux Carre director's request and consent and with the approval of the city attorney, the chief administrative officer, and the head of any other agency of the city shall be authorized to assist such other agency in the enforcement of any city ordinance, pursuant to an agreement between the agencies, whenever such enforcement would serve to promote the preservation of the historic character of the Vieux Carre district; any such agreements shall not limit or restrict any other powers of the commission or of its staff conferred by other provision of this Code or any other city ordinance or law or conferred by any special law or any special law enforcement commissions the Vieux Carre Commission or its staff may receive from the superintendent of police for enforcement of such city ordinances, as agreed upon by the superintendent and the director of the Vieux Carre Commission.

Sec. 166-35. Submission of plans for exterior changes to commission.

Before the commencement of any work in the erection of any new building or in the alteration or addition to, or painting or repainting or demolishing of any existing building, where any portion of the exterior of the building is in the Vieux Carre section, application by the owner for a permit therefor shall be made to the Vieux Carre Commission, accompanied by the full plans and specifications thereof so far as they relate to the proposed appearance, color, texture of materials and architectural design of the exterior, including the

*Cross reference—Number of reader permittees to be determined by the Vieux Carre Commission, § 30-1286.

front, sides, rear and roof of such building, alteration or addition or of any out building, party wall, courtyard, fence or other dependency thereof.
(Code 1956, § 65-8)

Sec. 166-36. Commission recommendations and action thereon.

The Vieux Carre Commission shall upon due consideration report thereon promptly its recommendations, including such changes, if any, as in its judgment are reasonably necessary to comply with the requirements of this chapter, by sending them, in writing, to the director of the department of safety and permits with the application and documents referred to in this article and, if they are found by the director to comply reasonably with the requirements of this article and if such application and intended work shall conform also to all other regulations, ordinances and laws of the city, the director shall issue promptly a permit for such work and indicate on such permit the extent and nature of the work to be performed thereunder.
(Code 1956, § 65-9)

Sec. 166-37. Procedure for appeal of commission action to council.

If the applicant for a permit shall refuse to accede to reasonable changes or decisions by the Vieux Carre Commission, according to its guidelines, the applicant may then appeal such decision or recommendation to the council. The appeal shall be filed within 30 days of the date that the Vieux Carre Commission notifies, in writing, the applicant of its changes or decision. The notice shall be by ordinary mail sent to the address of record of the applicant.
(Code 1956, § 65-10)

Sec. 166-38. Citation procedures.

Pursuant to the enforcement of the restrictions of this article, the department of police is hereby authorized to grant enforcement and citation powers to the inspectors of the Vieux Carre Commission for the purposes of obtaining compliances with this article only. Such powers of the Vieux Carre Commission inspectors shall be in addition to the normal enforcement and citation powers of the department of police.
(Code 1956, § 65-39.1)

Secs. 166-39—166-50. Reserved.

DIVISION 3. FEES

Sec. 166-51. Review and processing fees.

(a) The Vieux Carre Commission shall charge review and processing fees according to the following: On all buildings, structures or alterations which fall within the Vieux Carre and which require a permit from the Vieux Carre Commission in addition to requiring a building permit under this Code, an additional 50 percent surcharge is added to the permit fee and plan checking fee charged by the director of the department of safety and permits. Such fees will be collected by the director of the department of safety and permits as delineated in M.C.S., Ordinance No. 11,625, § 103.6.5.1, as amended, known as the building code of the city.

(b) On all new applications for occupational licenses as well as those applications involving a change of ownership only within the Vieux Carre and which require review by the Vieux Carre Commission, the following fees will be assessed in addition to the licensing fees as set forth in section 150-963:

(1) Nonrefundable application processing fee, $25.00.

(2) Additional licensing fee, $50.00.

Such fees will be collected by the bureau of revenue in accordance with section 150-964.

(c) On all new applications for alcoholic beverage outlet permits as well as those applications involving a change of ownership only within the Vieux Carre and which require review by the Vieux Carre Commission, the following fees will be assessed in accordance with the permit and processing fees as set forth in section 10-122:

(1) Nonrefundable application processing fee, $25.00.

(2) Additional permit fee, $100.00.

Such fees will be collected by the bureau of revenue in accordance with section 10-122.
(Code 1956, § 65-16.2)

Sec. 166-52. Fees for facade donations.

A $2,000.00 charge for nonrevenue-producing property and a $3,500.00 charge for revenue-producing property are required for the acceptance of a facade within the Vieux Carre by the mayor and council. Five hundred dollars is due at the time of the application to the Vieux Carre Commission and is nonrefundable. The remainder of the charge is due upon the execution of the act of donation.
(Code 1956, § 65-16.1)

Secs. 166-53—166-75. Reserved.

ARTICLE III. SIGNS*

Sec. 166-76. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Display includes erect, paint, repaint, place, replace, hang, rehang, repair, maintain, paint directly upon a building or other structure, inlay, imbed in or otherwise exhibit in public view.

Sign includes any symbol, device, image, poster, flag, banner, billboard, design or directional sign used for advertising purposes, whether painted upon, attached to, erected on or otherwise maintained on any premises, containing any words, letters or parts of letters, figures, numerals, phrases, sentences, emblems, devices, trade names or trade marks by which anything is made known, such as are used to designate an individual, a firm, an association, a corporation, a profession, a business or a commodity or product, which is visible from any public highway and is used to attract attention.
(Code 1956, § 65-17)

Cross reference—Definitions generally, § 1-2.

*__Cross reference__—Signs, ch. 134.

Sec. 166-77. General prohibition of miscellaneous signs.

The display of signs of a miscellaneous character visible from the public streets, highways and alleys within the Vieux Carre section of the city, except as otherwise provided in this article, and according to the rules and regulations herein provided for, is prohibited.
(Code 1956, § 65-18)

Sec. 166-78. No signs to be displayed in certain places.

No sign shall be displayed from the parapet or roofs of any buildings along either Decatur Street or French Market Place, both sides, from Esplanade Avenue to Ursuline Street or facing Ursuline Street from Decatur Street to the Mississippi River.
(Code 1956, § 65-19)

Sec. 166-79. Signs must conform to character of section.

In addition to the prohibitions contained in this article, approval of the display of a sign in the Vieux Carre section of the city shall be granted by the Vieux Carre Commission only when such signs and the plans therefor, so far as they relate to the appearance, color, size, position, method of attachment, texture of materials and design, conform to the quaint and distinctive character of the section or do not injuriously affect it or impair the value to the community of those buildings having architectural or historical worth.
(Code 1956, § 65-20)

Sec. 166-80. Permit required for signs in certain area; exceptions.

No sign shall be displayed in the Vieux Carre unless a permit therefor shall first have been applied for to the Vieux Carre Commission and issued in accordance with section 166-36, but no permit shall be required in case of a theatre or commercial establishment changing the bill of its acts and features or the nature of its commodities and wares and the prices thereof on established and approved frames, commonly known as "menu boards" or "menu boxes."
(Code 1956, § 65-21)

Sec. 166-81. What signs may advertise.

No sign of any character shall be displayed in the Vieux Carre unless such sign advertises a bona fide business conducted in or on the premises and, if it does do so, not exceeding 50 percent of the area of such sign may be used to advertise products or commodities actually sold on the premises.
(Code 1956, § 65-22)

Sec. 166-82. Signs no longer complying as to advertisements to be taken down.

Any sign displayed which no longer advertises a bona fide business conducted upon the premises shall, upon notification by the Vieux Carre Commission or its agent (who is hereby specifically authorized to so proceed), be taken down, removed or obliterated within five days after such notification and failure so to comply on the part of the owner, occupant, agent or person having the beneficial use of any building or premises upon which such sign may be found shall subject such person to the penalty provided in section 1-13.
(Code 1956, § 65-23)

Sec. 166-83. Only one sign per shop, etc.

One sign only shall be allowed per street face for each store, shop or bona fide place of business, and this sign shall be no larger than the maximum stipulated in this article, regardless of the amount of front footage.
(Code 1956, § 65-24)

Sec. 166-84. Signs not to be placed on balcony, fence, etc.

No sign shall be placed upon a balcony, gallery, canopy, shed, roof, door or window or placed in any manner whatsoever so as to disfigure or conceal any architectural feature or detail of any building. No sign shall be displayed from any fence, wall or open lot unless it conforms in proportion to the allowable area and does not exceed the maximum.
(Code 1956, § 65-25)

Sec. 166-85. Length of permitted projection of signs.

No sign shall project more than 48 inches beyond the building line, except that for the purpose of illumination a hood may be used with not to exceed six inches additional projection.
(Code 1956, § 65-26)

Sec. 166-86. Surface area of signs.

Except in the Vieux Carre Entertainment District (see section 166-92), the surface area of any sign shall be in direct proportion to the amount of front footage of each store, shop or bona fide business and shall be as follows:

(1) For single-faced or painted wall signs, attached flat against the wall, there shall be allowed 30 square inches of sign surface area to each foot of lot frontage.

(2) For double-faced signs, suspended by brackets or arms perpendicularly from the wall of a building there shall be allowed 60 square inches of sign surface area to each running foot of lot frontage. The area of such a double-faced sign shall be taken to mean the sum of the areas of each face.

(3) In no case shall the area of any one single-faced or painted wall sign exceed eight square feet, the maximum allowable size for such a sign.

(4) In no case shall the area of any one single-faced or painted wall sign be less than two square feet, unless by special permission of the Vieux Carre Commission.

(5) In no case shall the area of any one double-faced sign exceed a total for both sides of 16 square feet, the maximum allowable size for such sign.

(6) In no case shall the area of any one double-faced sign be less than four square feet, unless by special permission of the commission.

(7) In the case where two or more businesses are conducted on the premises of a single ownership having a front footage of 25

feet or less, the allowable sign area shall be increased by one and one-half times except in a specialty urban marketplace.

(Code 1956, § 65-27; M.C.S., Ord. No. 18,389, § 1, 8-21-97)

Sec. 166-87. Illuminated signs generally.

Illuminated signs may be illuminated only by steady incandescent floodlight, one per sign face, with a maximum wattage of 75 watts, and all such light sources shall be concealed:

(1) By hoods; or

(2) By any acceptable method of indirect lighting approved by the Vieux Carre Commission.

(Code 1956, § 65-28)

Sec. 166-88. Building code applicable to signs.

All signs under this article shall be further governed by the existing regulations of the building code of the city which are not in conflict with this article.

(Code 1956, § 65-30)

Sec. 166-89. Applications for signs to be submitted to commission.

All applications for permits to display signs within the Vieux Carre Section of the city shall be submitted to the Vieux Carre Commission for approval before a permit therefor may be issued in conformity with section 166-36.

(Code 1956, § 65-31)

Sec. 166-90. Form of application to display signs; accompanying drawings.

Application for a permit to display signs in the Vieux Carre Section of the city shall be made to the commission upon forms furnished by the commission. Such an application shall also be accompanied by sketches and drawings showing details of construction and foundation when required by the building code of the city and shall delineate the size, shape, design, coloring, lighting and position in relation to the building from or upon which it shall be displayed.

(Code 1956, § 65-32)

Sec. 166-91. Violating signs, etc., to be removed.

Any sign or exterior illumination of walls, exteriors, roofs or appurtenances of buildings displayed contrary to the provision of this article shall be removed.

(Code 1956, § 65-33)

Sec. 166-92. Bourbon Street, Vieux Carre Entertainment District; special sign regulations.

All provisions of this chapter not in conflict with this section shall apply to the Bourbon Street, Vieux Carre Entertainment District which is defined as those buildings which are situated on property fronting on Bourbon Street from the downtown side of Iberville Street to the uptown side of St. Ann Street. The following special provisions shall also apply to this district only and shall take precedence over any other conflicting provisions of this Code. In no case should the size of any sign interfere with the integrity of the buildings to which the sign is attached. Location and size of all signs are subject to prior approval by the Vieux Carre Commission.

(1) *Permitted signs.*

a. Each place of business shall be allowed to erect one category sign and one inventory sign.

b. One category sign, identifying the category of business being advertised, may be erected for each business operated on the premises where public space is provided immediately behind the facade of the premises.

1. Category signs which are single-faced flat signs must be attached to, erected parallel to the face of, or painted on the facade of the building. Such sign shall not cover any window, door or other architectural detail.

2. Category signs may be double-faced signs with two faces back-to-back the angle between which

is no greater than 90 degrees and the space between which is no greater than 18 inches.

c. Each business shall be allowed one inventory sign which shall be a single-faced flat sign no greater than two square feet which shall advertise the products, services, and/or prices of the business. No more than 30 square inches may be used to identify the name or type of the business.

(2) *Allowable sign area.* The formula specified below describes the maximum sign areas which may be permitted for category signs provided such sign areas are not deemed inappropriate for specific applications by the Vieux Carre Commission:

a. The allowable sign area shall be computed at eight percent of the public space area of the Bourbon Street facade defined as the height times the base. Height is defined as the distance between the floor and ceiling where they intersect the Bourbon Street facade. Base is defined as the linear footage fronting on Bourbon Street. Thus, height times base times eight percent equals the allowable sign area.

b. The only portion of the Bourbon Street facade of any building that may be used to calculate the sign area is that portion immediately behind the front facade used to invite the occupancy of the public customer. The warehouse, storage, office and similar ancillary uses of space as well as halls, stairways, and other common passages may not be used to calculate the Bourbon Street facade.

c. Business operations at upper floors shall not consider any doorway or other access at the street level as part of the area of the Bourbon Street facade.

d. The area of double-faced signs shall be calculated as provided for in section 166-86. However in no case shall the category sign for any business be greater than 50 square feet if a double-faced sign or 25 square feet if a single-faced flat sign.

(3) *Limitations of display.* No signs whatsoever shall be erected above the first floor level of any building. Category and inventory signs of businesses other than those operated on the first floor fronting on Bourbon Street may erect allowable signs at the doorway, carriageway or other ground floor access to the business premises.

(4) *Termination of legally nonconforming signs.* Any sign is legally nonconforming which was lawful under the provisions of any prior zoning ordinance or lawful by operation of law, such as prescription, but does not conform to the limitations of this section. Such signs may be displayed and maintained for no longer than three years after the effective date of this section, provided that the burden of establishing a sign to be legally nonconforming rests entirely with the person claiming such status for a sign except that the right to display and maintain any legal nonconforming sign shall terminate and the sign shall be subject to removal by the Vieux Carre Commission if any of the following conditions occur:

a. Discontinuance of the business that a sign pertains to; or

b. If sign is damaged, destroyed or becomes obsolete for any cause whatsoever including acts of God.

(5) *Allowable illumination.* Self-illuminating nonflashing neon shall are permitted when such signs meet all the additional requirements of this section.

(Code 1956, § 65-34)

Sec. 166-93. Sign violations.

Any operator of a building or business displaying a sign in violation of this chapter is guilty of a misdemeanor. The operator of a building or busi-

ness shall be deemed to be any person on the premises who has the responsibility for conducting or operating the business or who has responsibility for the sale of goods or services within the building.
(M.C.S., Ord. No. 18,390, § 1, 8-21-97)

Secs. 166-94—166-120. Reserved.

ARTICLE IV. PRESERVATION OF EXISTING BUILDINGS AND STRUCTURES

Sec. 166-121. Preservation of existing structures by owner or person having legal custody thereof.

All buildings and structures in that section of the city known as the Vieux Carre section and so defined generally in section 166-1 and section 166-2 under the jurisdiction of the Vieux Carre Commission, as provided by article 14 of section 22A of the Louisiana Constitution, shall be preserved against decay and deterioration and free from certain structural defects in the following manner, by the owner thereof or such other person or persons who may have legal custody and control thereof. The owner or other person having legal custody and control thereof shall repair such building if it is found to have any of the following defects:

(1) Those which have parts thereof which are so attached that they may fall and injure members of the public or property.

(2) Deteriorated or inadequate foundation.

(3) Members of exterior walls, partitions or other vertical supports that split, lean, list or buckle due to defective material or deterioration.

(4) Members of exterior walls, partitions or other vertical supports that are of insufficient size to carry imposed loads with safety.

(5) Members of exterior ceilings, roofs, ceiling and roof supports, balconies, galleries, porches or steps (stairs, stairways) or other exterior horizontal members which sag, split or buckle due to defective material or deterioration.

(6) Members of exterior ceilings, roofs, ceiling and roof supports, balconies, galleries, porches or steps (stairs, stairways) or other exterior horizontal members that are of insufficient size to carry imposed loads with safety.

(7) Exterior fireplaces or chimneys which list, bulge or settle due to defective material or deterioration.

(8) Exterior fireplaces or chimneys which are of insufficient size or strength to carry imposed loads with safety.

(9) Deteriorated, crumbling or loose plaster on the exterior.

(10) Deteriorated or ineffective waterproofing of exterior walls, roofs, foundations or floors, including broken windows or doors.

(11) Defective or lack of weather protection for exterior wall coverings, including lack of paint, or weathering due to lack of paint or other protective covering.

(12) Any fault or defect in the building which renders the same structurally unsafe or not properly watertight.

(13) Defective or deteriorated exterior or floor supports; or exterior flooring or floor supports of insufficient size to carry imposed loads with safety.

(Code 1956, § 65-36; M.C.S., Ord. No. 18,391, § 1, 8-21-97)

Sec. 166-122. Enforcement of article; powers and duties of inspectors.

Upon request, the department of safety and permits shall aid the Vieux Carre Commission in making all necessary inspections in connection with the enforcement of this article, and furnish the Vieux Carre Commission with copies of the reports of their inspections to aid in such enforcement. Employees of the department of safety and permits shall have the same right to inspect premises in connection with the enforcement of

this article as they now have in relation to zoning and other violations under the jurisdiction of such department.
(Code 1956, § 65-38)

Sec. 166-123. Duty of commission to assist in enforcement of article.

It shall be the duty of the Vieux Carré Commission, through its director or other proper officer, to send notices to all persons who may be guilty of a violation of this article and inform them of defects in their buildings or structures which must be remedied, in compliance with this article. If such notice has not been complied with after 30 days shall elapse from the giving of such notice, then it shall be the duty of the director of the Vieux Carré Commission to prosecute or to cause to have prosecuted such violations of this article in the municipal courts of the city, or such other court of competent jurisdiction as may be proper, either civil or criminal. This duty shall not be mandatory where the director believes or has good reason to believe that the person to whom notice has been sent is complying or attempting to comply with the provisions of this article.
(Code 1956, § 65-39)

Sec. 166-123.1. Failure to correct defects after knowledge thereof.

Failure of the owner, or the other proper person having legal custody of the structure or building, to correct the defects as outlined in section 166-121 after knowledge of the existence of such defects has been brought to their attention, shall constitute a violation of this article and shall be punishable as provided in section 1-13.
(M.C.S., Ord. No. 17,535, § 1, 5-2-96)

Sec. 166-124. Construction with existing laws.

This article shall not be construed to repeal the provisions of any existing laws and ordinances establishing building and zoning requirements for the city generally or any other section of this chapter, except such as may directly conflict herewith.
(Code 1956, § 65-40)

Sec. 166-125. Merchandising of certain items prohibited—Vieux Carré.

(a) It shall be a violation of this section for any person to place, hang or otherwise attach any poster, printed material, work of art, T-shirt or parts of T-shirts or any other articles of clothing, or parts of articles or any facsimiles of T-shirts or articles of clothing or any representation or message which may be imprinted on an aforementioned article or facsimile of clothing or any other merchandise on the facade of any building in the Vieux Carré, which is that area of the city bounded by Esplanade Avenue, North Rampart Street, Canal Street and the Mississippi River. Facade shall include but not be limited to any door, window or shutter whether permanently attached to the building or not, even when such door, window, or shutter opens to the interior of the building.

(b) In no instance shall any person place any such articles or signs so that they lean against the facade of the building, or occupy the space defined by the outermost frame of any open door or window for a depth of 36 inches into the establishment.

(c) The restrictions contained herein may be enforced as provided in chapter 6 of the Code of the City of New Orleans.

(d) The penalty for each violation of this section shall be in accordance with section 6-37 of the Code of the City of New Orleans. Each poster, piece of printed material or other merchandise, work of art, T-shirt, article of clothing or part thereof, facsimile or representation or message shall constitute a separate violation.
(M.C.S., Ord. No. 25719, § 1, 3-13-14)

Secs. 166-126—166-150. Reserved.

ARTICLE V. BOURBON STREET TOURISM PROMOTION REGULATIONS

Sec. 166-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adult activities shall mean the display, selling or dissemination of explicit sexual material as defined in section 54-259.

Gifts or *novelties* means mass-produced articles, tokens or items not otherwise unique or original in design, materials or workmanship generally intended for household use or adornment. Novelties or gifts shall not include furniture, antique furniture or accessories, clothing, books or magazines.

Massage means the giving or doing of any one or all of the following for compensation or with the expectation of any recompense having a monetary value: Physical massage of a person, steam baths, hot-box reducing exercise, magnetic baths, colon irrigation or any other similar activity commonly rendered or engaged in for health purposes in private or semiprivate surroundings.

Souvenirs means an item, exclusive of books, maps or magazines, or candy or other comestibles serving as a curio, token, remembrance, memento or keepsake of this city typical or characteristic of the city or bearing the name of the city or any geographic areas or streets thereof or events associated with this city, including but not limited to events, such as Mardi Gras or the Sugar Bowl.

Tattooing means the inscription of a tattoo upon the body.

Tout ensemble means the historic character and ambience, characterized by quaint, historic or distinctive architectural styles; landscaped patios, courtyards, public alleys and squares; interesting and diverse retail shopping stores and shops; pleasing and proportionately scaled streetscapes; buildings attractive to and compatible with pedestrian activity; use and presence of indigenous building materials and flora; and diverse peoples, cultural attractions and facilities.

T-shirt means any garment or article of clothing, including but not limited to T-shirts, sweatshirts, tank tops, shirts or scrub shirts, which is designed or intended generally to be worn on or over the chest and containing any communicative verbiage, graphics or images imprinted or to be imprinted on the garment or article of clothing, exclusive of a garment manufacturer's mark or logo, exclusive of decorative words and information woven or dyed into the fabric by the manufacturer of the fabric and exclusive of handstitching, needlework or embroidery.
(Code 1956, § 65-41)

Cross reference—Definitions generally, § 1-2.

Sec. 166-152. Unlawful activities.

It shall be unlawful for any person in the public way of Bourbon Street or on any parcel of property fronting on or designated by a municipal number on Bourbon Street between St. Ann and Canal Streets to engage in tattooing, adult activity, massage or the sale of souvenirs, gifts, novelties or T-shirts.
(Code 1956, § 65-42)

Sec. 166-153. Grandfather exemption.

Persons who are found to be in violation of sections 102-111 through 102-115 which is consistent with R.S. 40:1031 through 40:1036 et seq., are excluded from grandfather provisions of this article. Any person who, on the effective date of the ordinance from which this article was derived, is conducting and operating and who possesses all applicable city licenses and permits to operate a business or retail sales activity which has included activities prohibited by that ordinance on such effective date shall be entitled to continue such activities as a part of such business or retail sales activity, but only at the specific location where the person now conducts and operates the business or retail sales activity; provided however, that the right to continue such activity shall terminate at such location upon the occurrence of any of the following events:

(1) The person so operating the business or retail sales activity ceases to do business for 90 consecutive days for reasons other than acts of God, storm, flood, hurricane, fire, riot or insurrection, property damage not caused by his own intentional act, or repairs thereof.

(2) The person operating the business or retail sales activity is found guilty of a criminal violation of failure to pay city or state sales taxes; provided that the activities prohibited by this article may continue to be conducted under the grandfa-

ther exemption of this section on the parcels of property used for the business or retail sales activity, if and only if:

a. The activities are continued by an owner or assignee of the owner of the parcels who is neither the same person or a partner, joint venturer, agent, nor business associate of the convicted person;

b. The council, after an application advertised at least twice in the official journal and after a public hearing held not less than 24 hours nor more than one month after the second advertisement, declares by resolution that the owner and assignees, if any, have made all reasonable and lawful efforts within his or their power to ensure compliance with city and state sales tax laws by all businesses operating on such parcels.

(Code 1956, § 65-43)

Sec. 166-154. Violations and penalties.

The first violation of any such provision of this article shall be punishable by a fine not to exceed $1,000.00 or by imprisonment for not more than six months, or both. The second or any subsequent offense of any such provision of this chapter shall be punishable by a fine not to exceed $2,000.00 or by imprisonment for not more than six months, or both. Each day that any violation of this article shall continue shall constitute a separate offense.

(Code 1956, § 65-44; M.C.S., Ord. No. 29865, § 1, 3-21-24)

Chapters 167–169

RESERVED

Chapter 170

WATERWAYS*

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*__Cross references—__Litter, § 66-281 et seq.; flood damage prevention, § 78-36 et seq.

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ARTICLE I. IN GENERAL

Sec. 170-1. Pollution of waters prohibited.

The dumping, pumping or discharging of waste and/or fuel oils into the Mississippi River or any other river or bayou situated within the parish or flowing through or adjoining the parish boundaries and the dumping, pumping or discharging of waste and fuel oils into Lake Pontchartrain or any other lake situated within or adjoining the boundaries of the parish is hereby strictly prohibited.
(Code 1956, § 66-1)

Sec. 170-2. Responsibility of officers in charge of vessels.

The captain or other person in command of a vessel from which fuel oil or waste is dumped, pumped or discharged into the Mississippi River or any other river or bayou situated in the parish or flowing through or adjoining the parish boundaries or into Lake Pontchartrain or any other lake situated within or adjoining the boundaries of the parish shall be responsible for such dumping, pumping or discharging of waste or fuel oil and shall be guilty of violating the provisions of section 170-1.
(Code 1956, § 66-2)

Sec. 170-3. Structures not to be erected, etc., in or on Bayou St. John.

No building permit shall be issued for the construction, structural alteration, reconstruction or repair of any building or structure designed for or used for any purposes, residential or otherwise, which shall be located in the bed of or on the banks of Bayou St. John or designed to float in the waters of the Bayou from its head at Hagan Avenue to its mouth at Lake Pontchartrain, except for structures granted conditional uses in an OS-R District as provided in the Comprehensive Zoning Ordinance.
(Code 1956, § 66-4; M.C.S., Ord. No. 30431, § 1, 8-21-25)

Sec. 170-4. Enforcement; penalty.

In case any building, structure or house boat of a permanent residential character is erected, structurally altered, reconstructed, repaired, maintained or used in violation of the terms of section 170-3, the proper city official, in addition to other remedies, may institute appropriate proceedings to prevent such unlawful erection, alteration, repair, maintenance or use and to restrain, correct or abate such violation or to prevent any other unlawful act prohibited by such section. The director of the department of safety and permits. shall enforce the regulations of section 170-3.
(Code 1956, § 66-5)

Secs. 170-5—170-50. Reserved.

ARTICLE II. BOAT AND WATER SAFETY*

Sec. 170-51. Rights of city, landowners protected.

This article shall not be construed as waiving or prejudicing any rights of the city, the public or any private landowners.
(Code 1956, § 66-12.2)

Sec. 170-52. Safety requirements for non-navigable waterways.

Children ages 12 and under, shall be required to have a life preserver before boarding paddle boats, canoes, and skiffs within the boundaries of Audubon and City Park. The vendor who rents or leases such equipment to the public within the parks must supply the life preservers.
(Code 1956, § 66-18)

Sec. 170-53. Information as to renters of skiffs, etc.

Owners of skiffs and other pleasure craft at West End and other lake resorts who rent such skiffs and pleasure craft to persons shall compel all persons to whom such skiffs or pleasure crafts are rented to give the name, occupation, place of business and residence of each occupant of such skiff or pleasure craft. Such information

*__Cross reference—__Use of private watercraft prohibited in City Park, § 106-3.

__State law reference—__Local regulations regarding speed limits, R.S. 34:851.27.

shall be kept in a substantial and durable book to be subject at all times to the inspection of the police authorities.
(Code 1956, § 66-3)

Sec. 170-54. Speed limit—In parts of Lake Pontchartrain.

The operation of any vessel or watercraft powered by a motor, whether then operating under motor power or otherwise, in Lake Pontchartrain at a rate of speed in excess of five miles per hour within 100 yards of the seawall and within 200 yards of the water's edge of the bathing beach from the entrance of the New Basin Canal to Little Woods is hereby forbidden.
(Code 1956, § 66-11)

Sec. 170-55. Same—In parts of Bayou Sauvage, Venetian Waterway, Irish Bayou, Chef Menteur Pass and connecting waterways.

The operation of any vessel or watercraft powered by a motor in excess of five miles per hour is forbidden as follows:

(1) In Bayou Sauvage or Venetian Waterway from the entrance of Bayou Sauvage or Venetian Waterway at Chef Menteur Pass to the point of crossing of the borrow pit of the protective levee.

(2) In Irish Bayou from the east entrance of Irish Bayou to the point of crossing of the borrow pit of U.S. Highway No. 11.

(3) In the borrow pit of U.S. Highway No. 11 from the intersection with the protective levee to its northern termination point near Lake Pontchartrain.

(4) In Chef Menteur Pass from its entrance at Lake Pontchartrain to its point of intersection with the Gulf Intracoastal Waterway.

(5) The entirety of the Marquez Canal from its entrance at Lake Saint Catherine to its point of intersection with the Chef Menteur Pass.

(Code 1956, § 66-11.1; M.C.S., Ord. No. 29804, § 1, 2-1-24)

Sec. 170-56. Same—Entering or leaving Lake Ponchartrain channel.

No vessel or watercraft while traveling in any channel, whether entering or leaving any of the tributaries of the south shore of Lake Pontchartrain within the control of the city, shall be permitted to operate at a speed in excess of five miles per hour.
(Code 1956, § 66-12)

Sec. 170-57. Same—Entering or leaving of Bayou Sauvage, Venetian Waterway or Irish Bayou channels.

No vessel or watercraft while traveling in any channel whether entering or leaving any of the tributaries of Bayou Sauvage or Venetian Waterway or Irish Bayou and connecting waterways shall be permitted to operate at a speed in excess of five miles per hour.
(Code 1956, § 66-12.1)

Sec. 170-58. Owner presumed operator.

The registered owner of a boat who is on the craft at the time of the arrest for a violation of sections 170-54 or 170-56 shall be presumed to be the operator of the boat.
(Code 1956, § 66-13)

Sec. 170-59. No swimming in certain areas in or near Lake Pontchartrain.

There shall be no swimming or bathing in:

(1) The New Basin Canal from the Lake Avenue Bridge to its entrance into Lake Pontchartrain;

(2) Those parts of Lake Pontchartrain known as the New Yacht Club Pen and the Old Yacht Club Pen; or

(3) The channel which is formed by the confluence or merger of the entrance to the Yacht Club Pens and the entrance to the New Orleans Canal into Lake Pontchartrain from the Coast Guard Station to the North Jetty.

(Code 1956, § 66-14)

Sec. 170-60. Swimming, fishing or scuba diving prohibited in skiing or armed scuba diving areas.

(a) It shall be unlawful to swim or bathe or fish or scuba dive in the following areas of Lake Pontchartrain wherein water skiing is practiced:

(1) That portion of the lake from the east breakwater of Lake Pontchartrain Beach to Franklin Avenue, extending from the shoreline into the lake a distance of 200 yards.

(2) That portion of the lake from the west breakwater of Lake Pontchartrain Beach to London Avenue Canal and extending from the shoreline into the lake a distance of 200 yards.

(3) That portion of the lake between the extension of Canal Boulevard and the extension of the Orleans Canal for a distance of 200 yards from the shoreline.

(b) It shall be unlawful to swim or bathe or fish at any time in the following areas of Lake Pontchartrain wherein armed scuba diving shall be confined:

(1) The first 50 yards from the north shoreline of the Municipal Yacht Harbor breakwater, extending from the Orleans-Jefferson Parish line to 50 feet from the east end of such breakwater, to be measured westward 50 feet from such east end.

(2) The first 50 yards along the entire length of the east side of the New Orleans Airport seawall.

(c) Scuba diving without weapons, fishing, swimming and bathing shall be lawful in all other areas of the lake not prohibited by this section and by section 170-59, which shall remain in full force and effect.
(Code 1956, § 66-16)

Sec. 170-61. Swimming prohibited in Bayou St. John.

It shall be unlawful to swim or bathe in Bayou St. John, from its head at Hagan Avenue to Robert E. Lee Boulevard.
(Code 1956, § 66-17)

Sec. 170-62. Abandoning or long-term mooring of boats prohibited along Bayou St. John.

It shall be unlawful to abandon or moor boats for longer than 24 hours along Bayou St. John or along the bridges that cross Bayou St. John. For purposes of this division, "Bayou St. John" includes its head at Hagan Avenue to Desaix Boulevard. Boats found to be in violation of this division shall be subject to impoundment.
(M.C.S., Ord. No. 26025, § 1, 9-4-14)

Sec. 170-63. Notice requirement.

The department of police may impound a boat under this section only after prior notice has been given. Notice shall be given by affixing printed information in a conspicuous place on the boat stating that the boat shall be subject to impoundment unless the boat is removed by the owner or legal possessor within 48 hours after the notice is affixed. The affixed notice shall indicate the date the notice was attached, the date upon which the boat is subject to impoundment, and contact information for retrieval purposes.
(M.C.S., Ord. No. 26025, § 1, 9-4-14)

Sec. 170-64. Impoundment.

Impounded boats shall be held by the department of police until claimed by the owner or legal possessor or disposed of in accordance with state law governing disposition of lawfully seized movable property. Any owner or legal possessor who seeks to recover an impounded boat shall be required to demonstrate proof of ownership and pay all related fees at the time of recovery.
(M.C.S., Ord. No. 26025, § 1, 9-4-14)

Sec. 170-65. Fees.

If any boat is impounded, an impoundment fee of $150.00 and, after the first 24 hours, a storage fee of $10.00 per day for each day that the boat is impounded shall be assessed upon recovery. Total fees, excluding impoundment fee, shall not exceed $250.00 per boat.
(M.C.S., Ord. No. 26025, § 1, 9-4-14)

Sec. 170-66. Disposition.

The department of police shall retain custody and possession of impounded boats for a period of not less than five months from the date of impoundment, unless recovered by the owner or legal possessor. After such time, the impounded boat may be disposed of pursuant to state law governing disposition of lawfully seized property. The purchaser of any unclaimed boat shall not be liable for the impoundment fee or any storage fees accumulated prior to the date of purchase.
(M.C.S., Ord. No. 26025, § 1, 9-4-14)

Secs. 170-67—170-109. Reserved.

ARTICLE III. COASTAL ZONE MANAGEMENT PROGRAM*

DIVISION 1. GENERALLY

Sec. 170-110. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Act means the state and local Coastal Resources Management Act of 1978, as amended, R.S. 49:214.21—49:214.40.

Administrator means the administrator or his designee of the local coastal program within as provided for in R.S. 49:214.26, as amended.

After-the-fact permits means a coastal use permit which is issued after the commencement of a use. Such a permit may only be issued after all legal issues resulting from the commencement of a use without a coastal use permit have been resolved.

Alterations of waters draining in coastal water means those uses or activities that would alter, change, or introduce polluting substances into runoff and thereby modify the quality of coastal waters. Examples include water-control impoundments, upland and water-management programs, and drainage projects from urban, agricultural and industrial developments and removal of toxic or other waste products.

Approved local program means a local coastal-management program which has been and continues to be approved by the secretary pursuant to R.S. 49:214.28, also referred to as "local program."

Best practical techniques means those methods or techniques which would result in the greatest possible minimization of the adverse impacts listed in guideline 1.7 and in specific guidelines applicable to the proposed use. Those methods or techniques shall be the best methods or techniques which are in use in the industry or trade or among practitioners of the use, and which are feasible and practical for utilization.

City planning commission means the city planning commission.

Coastal use permit means a permit required by R.S. 49:214.30, but does not mean or refer to, and is in addition to, any other permit or approval required or established pursuant to any other constitutional provision or statute.

Coastal water dependent uses means those which must be carried out on, in or adjacent to coastal water areas or wetlands because the use requires access to the water body or wetland or requires the consumption, harvesting or other direct use of coastal resources, or requires the use of coastal water in the manufacturing or transporting of goods. Examples include surface and subsurface mineral extraction, fishing, ports and necessary supporting commercial and industrial facilities, facilities for the construction, repair and maintenance of vessels, navigation projects, and fishery processing plants.

Coastal waters means those bays, lakes, inlets, estuaries, rivers, bayous, and other bodies of water within the boundaries of the coastal zone which have measurable seawater content under normal weather conditions over a period of years.

Coastal zone means the coastal waters and adjacent shore lands within the boundaries of the coastal zone established in R.S. 49:214.24, which are strongly influenced by each other, and in proximity to the shorelines, and uses of which have a direct and significant impact on coastal waters.

Commission means the Louisiana Coastal Commission.

Compensatory mitigation means replacement, substitution, enhancement, or protection of ecological values to offset anticipated losses of those values caused by a permitted activity.

Contact means contact for the local coastal program and is designated by the administrator.

Department means the state department of natural resources.

*__Cross reference—__Planning, ch. 118.

State law reference—Coastal zone management act, R.S. 49:213.1 et seq.

Department of environmental quality means the state department of environmental quality as created by the Environmental Quality Act 449 of 1983.

Development levees means those levees and associated water-control structures whose purpose is to allow control of water levels within the area enclosed by the levees to facilitate drainage or development within the leveed areas. Such levee systems also commonly serve for hurricane or flood protection, but are not so defined for purposes of these guidelines.

Direct and significant impact means a modification or alteration in the physical or biological characteristics of coastal waters which results from an action or series of actions caused by man.

Director means the director of a city department or his designated representative responsible for overseeing the permitting process.

Evaluating body means either the state department of natural resources, coastal management section, or the local coastal program represented by an appropriate city department.

Ecological value means the ability of an area to support vegetation and fish and wildlife populations.

Exempt means activities not requiring a local coastal use permit.

Fastlands means lands surrounded by publicly owned, maintained or otherwise validly existing levees or natural formations as of January 1, 1979, or as may be lawfully constructed in the future, which levees or natural formations would normally prevent activities, not to include the pumping of water for drainage purposes, within the surrounded area from having direct and significant impacts on coastal waters. Wetlands may be found within the boundaries of fastlands.

Feasible and practical means those locations, methods and/or practices which are of established usefulness and efficiency and allow the use or activity to be carried out successfully.

Guidelines means those rules and regulations adopted pursuant to R.S. 49:214.27.

Hurricane or *flood-protection levees* means those levees and associated water-control structures whose primary purpose is to prevent occasional surges of flood- or storm-generated high water. Such levee systems do not include those built to permit drainage or development of enclosed wetland areas.

Hydrologic and sediment transport modifications means those uses and activities intended to change water circulation, direction of flow, velocity, level, or quality or quantity of transported sediment. Examples include locks, water gates, impoundments, jetties, groins, fixed and variable weirs, dams, diversion pipes, siphons, canals, and surface water and groundwater withdrawals.

Impoundment levees means those levees and associated water-control structures whose primary purpose is to contain water within the levee system either for the prevention of the release of pollutants, to create freshwater reservoirs, or for management of fish or wildlife resources.

Levees means any use or activity which creates an embankment to control or prevent water movement, to retain water or other material, or to raise a road or other lineal use above normal or flood water levels. Examples include levees, dikes and embankments of any sort.

Linear facilities means those uses and activities which result in creation of structures or works which are primarily linear in nature. Examples include pipelines, roads, canals, channels, and power lines.

Local government means the city council and its authorized agencies.

Minerals means oil, gas, sulfur, geothermal, geopressured, salt, or other naturally occurring energy or chemical resources which are produced from below the surface in the coastal zone. Not included are such surface resources as clam or oyster shells, dirt, sand, or gravel.

Mitigation means all actions taken by an applicant to avoid, minimize, restore and compensate for loss of an area's ability to support vegetation, fish and wildlife populations due to a permitted activity.

Office of environmental affairs means the City of New Orleans Office of Environmental Affairs

Oil, gas and other mineral activities means those uses and activities which are directly involved in the exploration, production, and refining of oil, gas and other minerals. Examples include geophysical surveying, establishment of drill sites and access to them, drilling, on-site storage of supplies, products and waste materials, production, refining, and spill cleanup.

Permitting body means either the state department of natural resources (coastal management section) or the city department(s) implementing the local coastal program.

Radioactive wastes means wastes containing source, special nuclear, or by-product material as defined by the Atomic Energy Act of 1954, as amended (68 U.S.C. § 923).

Secretary means the secretary of the state department of natural resources.

Sediment deposition systems means controlled diversions of sediment-laden water in order to initiate land building or sediment nourishment or to minimize undesirable deposition of sediment in navigation channels or habitat areas. Typical activities include diversion channels, jetties, groins, or sediment pumps.

Shoreline modifications means those uses and activities planned or constructed with the intention of directly or indirectly changing or preventing change of a shoreline. Examples include bulkheading, piers, docks, wharves, slips and short canals, and jetties.

Spoil deposition means the deposition of any excavated or dredged material.

Surface alterations means those uses and activities which change the surface or usability of a land area or water bottom. Examples include fill deposition, land reclamation, beach nourishment, dredging (primarily aerial), clearing, draining, surface mining, construction and operation of transportation, mineral, energy and industrial facilities, and industrial, commercial and urban developments.

Use means any use or activity within the coastal zone which has a direct and significant impact on coastal waters.

Waste disposal means those uses and activities which involve the collection, storage and discarding or disposing of any solid or liquid material. Examples include littering; landfill; open dumping; incineration; industrial waste treatment facilities; sewerage treatment; storage in pits, ponds or lagoons; ocean dumping and subsurface disposal.

Water or *marsh management plan* means a systematic development and control plan to improve and increase biological productivity, or to minimize land loss, saltwater intrusion, erosion or other such environmental problems, or to enhance recreation.

(Code 1956, § 15A-2; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Cross reference—Definitions generally, § 1-2.

State law reference—Definitions, R.S. 49:214.23(11).

Sec. 170-111. Purpose.

The principal purpose of this article is to provide the authorities and procedures for implementing a unified coastal use permitting process. This regulation is based on the policies, guidelines and procedures set forth in R.S. 49:214.21 et seq. in the Final Environmental Impact Statement of the Louisiana Coastal Resources Program, and the Orleans Parish Coastal Zone Management Plan. This regulation provides procedures for local government determination of what activities require a coastal use permit, whether the activity is a use of state or local concern, and the process for the issuance, denial, modification, suspension and/or revocation of coastal use permits and general coastal use permits for uses of local concern in the parish.

(Code 1956, § 15A-1; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Local coastal management programs authorized, R.S. 49:213.9.

Sec. 170-112. Priority of article.

The principal purpose of this article is to provide the authorities and procedures for implementing a unified coastal use permitting process. This regulation is based on the policies, guidelines and

procedures set forth in R.S. 49:214.21 et seq. in the final environmental impact statement of the Louisiana Coastal Resources Program, and the Orleans Parish Coastal Zone Management Plan. This regulation provides procedures for local government determination of what activities require a coastal use permit, whether the activity is a use of state or local concern, if the activities require a coastal use permit, and the process for the issuance, denial, modification, mitigation, suspension and/or revocation of coastal use permits and general coastal use permits for uses of local concern in the parish.
(Code 1956, § 15A-38)

State law references—Local coastal management programs, R.S. 49:214.28(c); existing authority of certain state departments and local governments retained, R.S. 49:214.31(D).

Sec. 170-113. Scope of article.

Local coastal program objectives, policies and performance standards which directly or indirectly affect uses of state concern shall not be construed as being regulatory or binding on either the permit applicant or the coastal management division (CMD) of the department of natural resources but are for the purpose of submitting the parish environmental review comments to the state on applications for uses of state concern. Local policies which contain prohibitions, restrictions or performance standards beyond the scope of the coastal use guidelines (CUG) shall be considered as advisory by the parish, the CMD, and permit applicants (i.e., mandatory policies with "shalls" are modified such that "should" is the operative verb). Parish comments to CMD on proposed uses of state concern shall be based on the policies of the LCP and may recommend specific project alternatives and conditions. CMD consideration of parish recommendations shall be based on the conformance of the recommendation with the CUG's. Recommendations which reflect further detailing of the CUG's as they apply to the parish shall be given substantial consideration by the CMD with the objective of ensuring consistency with the goals of the parish local coastal zone management program. Recommendations which are not in conformance with the CUG shall not be considered by the CMD.
(Code 1956, § 15A-42)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-114. Invalidity of any provisions.

If any provision or item of this article, or the application thereof, is held invalid, such invalidity shall not affect other provisions, items or applications of this article which can be given effect without the invalidated provisions, items or applications. To this end the provisions of this article are hereby declared severable.
(Code 1956, § 15A-40)

Sec. 170-115. Status of conflicting ordinances.

All ordinances or parts of ordinances in conflict herewith are hereby repealed, except as set forth in section 170-112.
(Code 1956, § 15A-41)

Sec. 170-116. Public hearing.

Whenever a hearing is required in this article such hearing shall be announced to the public at least 30 days in advance. All interested persons shall be afforded a reasonable opportunity to submit data, views or arguments, orally or in writing at such hearing. At the time of the announcement of the public hearing all materials pertinent to the hearing, including documents, studies, and other data, in the possession of the party calling the hearing, must be made available to the public for review and study. As similar materials are subsequently developed, they shall be made available to the public as they become available to the party which conducted the hearing.
(Code 1956, § 15A-2(30))

Secs. 170-117—170-160. Reserved.

DIVISION 2. WETLAND UNITS

Sec. 170-161. Management Unit V: Viavant.

The Viavant Management Unit is bounded by Florida Avenue and Bayou Bienvenue on the south, the Mississippi River Gulf Outlet on the north, and Paris Road on the east. Due to significant modification, this unit has been designated as a transitional area.

(1) *Goal:* To provide, where appropriate, land in Viavant as an industrial development reserve to meet long-range industrial needs.

(2) *Objectives:*

a. To resist the extension of public facilities into the area until other available industrial land is absorbed, except in unusual circumstances.

b. Support efforts of the board of commissioners of the Port of New Orleans and the coastal management section, department of natural resources to establish a Port of New Orleans Special Area, to include Viavant, which would allow the necessary expansion of the Port of New Orleans and port-related industry without causing undue deterioration to the coastal zone.

(3) *Policies:* To require coastal use permits in conformance with the LCRP for any activities which will result in modifications to coastal wetlands, until such time as this area is placed under special management.

(Code 1956, § 15A-2.1)

Sec. 170-162. Management Unit VII: New Orleans East/Special.

This management unit is bounded on the south by the Orleans Parish/St. Bernard Parish line, on the north by the Gulf Intracoastal for points west of its intersection with the Lake Pontchartrain and Vicinity Hurricane Protection Levee, on the west by Paris Road, on the west (north of the GIWW) by the hurricane protection levee, on the north and east by the shore of Lake Pontchartrain and on the east by Chef Menteur Pass. While limited areas of this unit bordering the GIWW, MRGO and Chef Menteur Pass have been modified by dredge spoil deposition the unmodified land area in this unit is mostly vacant wetlands. The majority of wetlands in this unit is included in the Bayou Sauvage National Wildlife Refuge. Two potential particular areas have been identified in this unit. One is Point-aux-Herbes in the northernmost section and the other is the Venetian Isles Marsh between Bayou Sauvage and the GIWW.

(1) *Goal:* To preserve viable wetlands in recognition of their ecological and recreational value.

(2) *Objectives:*

a. To establish land use and control measures that would allow uses that are compatible with and would minimally impact wetland areas, while prohibiting inappropriate and environmentally damaging uses.

b. To allow coastal landowners some reasonable use of their land so as not to cause an unconstitutional taking.

c. To establish performance standards for any use permitted in wetland areas.

d. To control erosion.

(3) *Policies:*

a. To create a zoning district within the city comprehensive zoning ordinance of the city that would be applied to coastal wetlands. This district would have the following purpose: to protect and preserve appropriate wetland areas and to permit minimal negative impact from man.

b. To apply this zoning district to appropriate areas as identified in the comprehensive land use plan and this document.

c. To strictly enforce existing housing, building code and floodplain performance standards.

d. To incorporate the state coastal resources program's Guidelines for Uses into the local coastal management program to ensure that these performance standards are applied to uses of local concern.

e. To minimize new canal development where possible and to minimize envi-

ronmental impacts of canal and slip construction.

f. In order to minimize the impacts of board road construction to access oil well sites in wetland, recommendations shall be made to the state in accordance with parish coastal management guidelines.

g. Mitigation or compensation should be required for areas to be adversely impacted.

h. Shorelines should be established by methods other than bulkheading (i.e., rip-rap, matting material or natural vegetation).

(4) *Goal:* To allow limited port and marine-oriented industrial development in appropriate areas.

(5) *Objectives:*

a. To create a zoning district within the city's comprehensive zoning ordinance whose purpose is to permit an appropriate use for limited port and marine-oriented industrial development requiring access to and utilization of coastal waters.

b. To establish special development requirements to ensure that such marine-oriented industrial development will not significantly degrade the coastal environment.

(6) *Policies:*

a. To apply the special port and marine-oriented industrial zoning district to appropriate areas as identified in the land use plan and in the parish coastal management plan.

b. To require that significant industrial developments permitted in this district include adequate mitigating features to compensate for wetlands modified by development.

c. To strictly enforce building code and floodplain performance standards.

d. To incorporate the state coastal resources program's Guidelines for Uses into the local program to ensure that these performance standards are applied to uses of local concerns.

(7) *Goal:* To increase recreational access to and expand water-oriented recreational opportunities in the coastal zone for residents and visitors.

(8) *Objectives:*

a. To create a zoning district within the city's comprehensive zoning ordinance that would have the following purpose: to allow the orderly and systematic development of particular areas suited to marine-oriented recreational facilities.

b. To establish special development requirements to ensure that such marine-oriented recreational development will not significantly degrade the coastal environment.

(9) *Policies:*

a. To apply the special marine-oriented recreational zoning district to appropriate areas as the parish coastal management plan.

b. To require that significant recreational developments permitted in this district include adequate mitigating features to offset environmental damages caused by the development.

c. To strictly enforce building code and floodplain performance standards.

d. To incorporate the state coastal resources program's Guidelines for Uses into the local program to ensure that these performance standards are applied to uses of local concern.

(Code 1956, § 15A-2.2)

Sec. 170-163. Management Unit VIII: Chef Menteur/Rigolets.

This management unit is bounded by Lake Borgne on the south, the Rigolets on the north and east and Lake Pontchartrain on the north. The Chef Menteur/Rigolets Management Unit is characterized by viable wetlands, approximately 27,000 acres, and is an important fish and wildlife habitat. This management unit also contains a potential "particular area": the Chef Menteur

Highway Corridor. This corridor has traditionally been the site of fishing camps.

(1) *Goal:* To conserve renewable natural resources.

(2) *Objectives:*

a. To establish land use and control measures that would allow uses that are compatible with and would minimally impact wetland areas, while prohibiting uses that are inappropriate and environmentally damaging.
b. To allow coastal landowners some reasonable use of their land so as not to cause an unconstitutional taking.
c. To establish minimum performance standards for any use permitted in wetland areas.
d. To control erosion.

(3) *Policies:*

a. To create a zoning district within the city's comprehensive zoning ordinance that would apply to coastal wetlands wherein limited uses would be allowed which would maintain the nearby wetlands in a near pristine state. This district would have the following purposes: to protect and preserve coastal wetland areas minimally impacted by man.
b. To apply this zoning district to appropriate areas as identified in the land use plan and this document.
c. To strictly enforce existing housing, building code and floodplain performance standards.
d. To incorporate the state coastal resource program's Guidelines for Uses into the local program to ensure that these performance standards are applied to uses of local concern.
e. To minimize new canal dredging where possible, and to minimize detrimental impacts of new canals and slip construction, in accordance with the parish coastal management guidelines.
f. To minimize the impacts of broad road construction to access oil well sites in wetlands, in accordance with the parish coastal management guidelines.
g. Mitigation, the improving of one area of marsh or swamp to replace another area destroyed by a use, should be required as a condition of the permit, depending on the magnitude of the permitted use and the destruction associated with it.
h. Shorelines should be stabilized by methods other than bulkheading (i.e. rip-rap, matting material or natural vegetation).

(4) *Goal:* To allow orderly recreational and residential development in areas of higher elevations near existing access roads and development.

(5) *Objectives:*

a. To apply the recreation and residential zoning district to the Chef Menteur Highway Corridor as identified in the coastal zone plan.
b. To strictly enforce existing housing, building code and floodplain performance standards.
c. To incorporate the state coastal resources program's Guidelines for Uses into the local program to ensure that these performance standards are applied to uses of local concern.

(6) *Goal:* To eliminate or reduce pollution of lakes and other water bodies.

(7) *Objectives:*

a. To determine which camps can be served by existing sewers and into which areas sewers can reasonably be extended.
b. To seek state participation in financial provisions for extension of sewer services.
c. To establish specifications for state-of-the-art disposal systems in areas where sewers cannot be extended.

(8) *Goal:* To minimize the cumulative impacts of camp development and construction.

(9) *Objectives:*

a. To ensure that adequate open space is maintained between structures.

b. To allow sunlight to penetrate beneath structures.
c. To limit the disturbance of wetlands during and after construction.

(10) *Policies:*

a. To limit lot development to a predetermined percentage of total lot or tract area.
b. To elevate all construction above flood elevations to prohibit major restrictions on water flow and allow sunlight to penetrate underneath the structures.

(11) *Goal:* To control shoreline erosion.

(12) *Objectives:*

a. To reduce destruction of wetlands.
b. To abate the reduction of land area dimensions.
c. To prevent the loss of archaeological sites.

(13) *Policies:*

a. To construct artificial barrier islands to prevent shoreline erosion.
b. To place rip-rap or matting material along shorelines of rapidly eroding waterways.
c. To divert water from the Mississippi River to restore eroding marsh areas.

(Code 1956, § 15A-2.3)

State law references—Coastal management program, R.S. 49:213.6; special areas, R.S. 49:214.29.

Secs. 170-164—170-220. Reserved.

DIVISION 3. COASTAL USE PERMITS

Subdivision I. Generally

Sec. 170-221. Required.

It shall be unlawful to proceed with any use of state or local concern within the coastal zone of the parish without a valid coastal use permit unless the activity is exempted from permitting by the Act or by provisions within this article.
(Code 1956, § 15A-3)

Secs. 170-222—170-280. Reserved.

*Subdivision II. Uses Requiring Coastal Use Permit**

Sec. 170-281. Specific uses requiring coastal use permits.

The following shall be considered as uses of state or local concern subject to the requirements of section 170-221:

(1) Dredging or filling and discharges of dredged or fill material.

(2) Levee siting, construction, operation and maintenance.

(3) Hurricane and flood protection facilities, including the siting, construction, operation and maintenance of such facilities.

(4) Urban developments, including the siting, construction or operation of residential, commercial, industrial, and governmental structures and transportation facilities.

(5) Energy development activities, including any siting, construction, or operation of generating, processing and transmission facilities, pipeline facilities, and exploration for and production of oil, natural gas and geothermal energy.

(6) Mining activities, including surface, subsurface, and underground mining, sand or gravel mining and shell dredging.

(7) Wastewater discharge, including point and nonpoint sources.

(8) Surface water control or consumption, including marsh management projects.

(9) Shoreline modification projects and harbor structures.

(10) Waste disposal activities.

(11) Recreational developments, including siting, construction and operation of public and private recreational facilities and marinas.

(12) Industrial development, including siting, construction, or operation of such facilities.

(13) Any other activities or projects that would require a permit or other form of consent or authorization from the U.S. Army Corps of

*State law reference—Coastal use permits, R.S. 49:214.30.

Engineers, the Environmental Protection Agency or the state department of natural resources.

(14) Activities which impact barrier islands, salt domes, chenniers and beaches.

(15) Drainage projects.

(Code 1956, § 15A-5)

State law references—Types of uses, R.S. 49:214.25; local coastal management programs, R.S. 49:214.28(c)(3).

Sec. 170-282. Coastal use permits requiring wetland mitigation.

The Orleans Parish Coastal Zone Management Program will require mitigation for coastal wetland losses, caused by permitted activities, consistent with the requirement of the Louisiana Coastal Resources Program (LCRP) and attendant regulations and guidelines.

The Orleans Parish Coastal Zone Management Program will require that the determination of mitigation requirements for permitted activities, as well as the appropriateness of mitigation proposals to offset losses, be based on losses/gains of wetland habitat values, measured by the same method utilized by the DNR.

(M.C.S., Ord. No. 22577, § 1, 4-5-07)

Secs. 170-283—170-320. Reserved.

Subdivision III. Uses Not Requiring Coastal Use Permit

Sec. 170-321. Activities not requiring coastal use permits.

The following activities normally do not have direct and significant impacts on coastal waters; hence, a coastal use permit is not required:

(1) Agricultural, forestry, and aquaculture activities on land consistently used in the past for such activities.

(2) Hunting, fishing, trapping, where permitted.

(3) Normal maintenance or repair of existing structures including emergency repairs of damage caused by accident, fire, or the elements, not to exceed 50 percent of the total value of the original structure, or as indicated in the floodplain performance requirements.

(4) The preservation of scenic, historic, and scientific areas and wildlife preserves.

(5) Construction and modification of navigational aids such as channel markers and anchor buoys.

(6) Activities which do not have a direct and significant impact on coastal waters.

(Code 1956, § 15A-7)

State law reference—Activities not requiring a coastal use permit, R.S. 49:214.34.

Sec. 170-322. Permits issued in lieu of coastal use permits.

Coastal use permits shall not be required for the location, drilling, exploration and production of oil, gas, sulphur and other minerals subject to regulation by the office of conservation of the department of natural resources as of January 1, 1979. The parameters and procedures of the inlieu permit process are as provided for under existing Memorandum of Understanding between the Coastal Management Section and the Office of Conservation and the rules and procedures of the Office of Conservation.

(Code 1956, § 15A-6)

State law reference—Existing authority of certain state departments and local governments retained, R.S. 49:214.31(B).

Sec. 170-323. Activities on lands five feet or more above sea level or within fastlands.

(a) Activities occurring wholly on lands five feet or more above sea level or within fastlands do not normally have direct and significant impacts on coastal waters. Consequently, a coastal use permit for such uses generally need not be applied for.

(b) However, if a proposed activity exempted from permitting in subsection (a) is determined by the secretary of DNR or the director to have a direct and significant impact on coastal waters or will result in discharges into coastal waters, or significantly change existing water flow into coastal waters, then the person proposing the activity shall notify the director and provide such infor-

mation regarding the proposed activity as may be required by the director in deciding whether the activity is a use subject to a coastal permit.

(c) Should it be found that a particular activity exempted by subsection (a) may have a direct and significant impact on coastal waters, the director may conduct such investigation as may be appropriate to ascertain the facts and may require the persons conducting such activity to provide appropriate factual information regarding the activity so that a determination may be made as to whether the activity is a use subject to a permit.

(d) The director or the secretary shall determine whether a coastal use permit is required for a particular activity. A coastal use permit will be required only for those elements of the activity which have direct and significant impacts on coastal waters.

(e) The secretary's decision whether an activity subject to this section requires a coastal use permit shall be appealable to the secretary pursuant to the provisions of section 213.11(D) of the Act and the regulations adopted pursuant thereto. Provided, however, that upon an appeal to the secretary by the person conducting or proposing to conduct the activity, the burden of proof shall be on the secretary. Upon an appeal by any other person, the burden of proof shall be on the appellant. The director's decision whether an activity subject to this section requires a coastal use permit shall be appealable to Civil District Court for the Parish of Orleans. Provided, however, that upon an appeal to the director by the person conducting or proposing to conduct the activity, the burden of proof shall be on the director. Upon an appeal by any other person, the burden of proof shall be on the appellant.

(f) The exemption described in this section shall not refer to activities occurring on cheniers, salt domes, barrier islands, beaches and similar isolated, raised land forms in the coastal zone. It does refer to natural ridges and levees.
(Code 1956, § 15A-8; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-324. Emergency uses.

(a) Coastal use permits are not required in advance for conducting uses necessary to correct emergency situations.

(1) Emergency situations are those brought about by natural or manmade causes such as storms, floods, fires, wrecks, explosions spills, which would result in hazard to life, loss of property, or damage to the environment if immediate corrective action were not taken.

(2) This exemption applies only to those corrective actions which are immediately required for the protection of lives, property or the environment necessitated by the emergency situation.

(b) Prior to undertaking such emergency uses, or as soon as possible thereafter, the person carrying out the use shall notify the directors and give a brief description of the emergency use and the necessity for carrying it out without a coastal use permit. A verbal or written authorization from the directors shall be sufficient to carry out the emergency use.

(c) As soon as possible after the emergency situation arises any person who has conducted an emergency use shall report on the emergency use to the directors. A determination shall be made as to whether the emergency use will continue to have direct and significant impacts on coastal waters. If so, the person shall apply for an after-the-fact permit. The removal of any structure or works occasioned by the emergency and the restoration of the condition existing prior to the emergency use may be ordered if the permit is denied in whole or in part.
(Code 1956, § 15A-9)

State law reference—Coastal use permit exemption for emergencies, R.S. 49:213.11(F).

Sec. 170-325. Normal maintenance and repair.

(a) Normal repairs and the rehabilitation, replacement or maintenance of existing structures shall not require a coastal use permit provided that:

(1) The structure or work was lawfully in existence, currently serviceable, and in active use during the year preceding the repair, replacement or maintenance.

(2) The repair or maintenance does not result in an additional encroachment into a wetland area.

(3) The repair or maintenance does not involve dredge or fill activities.

(4) The repair or maintenance does not result in a structure or facility that is significantly different in magnitude or function from the original.

(5) The repair or maintenance does not violate the building code or floodplain performance standards.

(b) This exemption shall not apply to the repair or maintenance of any structure or facility built or maintained in violation of the coastal management program.

(c) Coastal use permits will normally authorize periodic maintenance, including maintenance dredging. All maintenance activities authorized by coastal use permits shall be conducted pursuant to the conditions established for that permit. Where maintenance is performed which is not described in an applicable coastal use permit, it shall conform to this section.
(Code 1956, § 15A-10)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-326. Construction of a residence or camp.

(a) The construction of a residence or a camp shall require a coastal use permit. Only those structures adhering to the building code, development standards of the comprehensive zoning ordinance, and floodplain performance standards will be permitted. Construction of a residence or camp will be permitted provided that:

(1) The terms shall refer solely to structures used for noncommercial and nonprofit purposes and which are commonly referred to as single-family and not multiple-family dwellings.

(2) The terms shall refer solely to the construction of one such structure by or for the owner of the land for the owner's use and not to practices involving the building of more than one such structure as in subdividing, tract development, speculative building, or recreational community development.

(b) A coastal use permit shall also apply to the construction of the structure and appurtenances such as septic fields, out-buildings, walkways, gazebos, small wharves, landings, boathouses, private driveways, and similar works, but not for the installation and maintenance of septic or sewerage facilities.
(Code 1956, § 15A-11; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-327. Navigational aids.

(a) The construction and modification of navigational aids shall not require a coastal use permit.

(b) The term shall include channel markers, buoys, marker piles, dolphins, piling, pile clusters, etc.; provided that the exemption does not apply to associated dredge or fill uses or the construction of mooring structures, advertising signs, platforms, or similar structures associated with such facilities. All navigational aids constructed pursuant to this section shall conform to United States Coast Guard standards and requirements.
(Code 1956, § 15A-12)

Sec. 170-328. Agricultural, forestry and aquaculture activities.

(a) Agricultural, forestry and aquacultural activities on lands consistently used in the past for such use permit shall not require a coastal use permit provided that:

(1) The activity is located on lands or in waters which have been used on an ongoing basis for such purposes, consistent with normal practices, prior to the effective date of the Act;

(2) The activity does not require a permit from the U.S. Army Corps of Engineers and meets federal requirements for such exempted activities; and

(3) The activity is not intended to, nor will it result in, changing the agricultural, for-

estry, or aquacultural use for which the land has been consistently used in the past to another use.

(b) The exemption includes but is not limited to normal agricultural, forestry and aquacultural activities such as plowing; seeding; grazing; cultivating; insect control; fence building and repair; thinning; harvesting for the production of food, fiber and forest products; maintenance and drainage of existing farm, stock or fish ponds; digging of small drainage ditches; or maintenance of existing drainage ditches and farm or forest roads carried out in accordance with good management practices.
(Code 1956, § 15A-13)

Sec. 170-329. Blanket exemption.

No use or activity shall require a coastal use permit if:

(1) The use or activity was lawfully commenced or established prior to the implementation of the coastal use permit process, as per the requirements of the zoning ordinance;

(2) The secretary determines that a use within a fastland or above five feet mean sea level (MSL) does not have a direct or significant impact on coastal waters; or

(3) The director or administrator determines one is not required pursuant to section 170-321.

(Code 1956, § 15A-14)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Secs. 170-330—170-360. Reserved.

Subdivision IV. Uses of State Concern and Uses of Local Concern

Sec. 170-361. Criteria for determination.

The following are the criteria for determination as to whether uses are of state or local concern:

(1) The specific terms of the uses as classified in the Act;

(2) The relationship of a proposed use to a particular use classified in the Act;

(3) If a use is not predominantly classified as either state or local by the Act or the use overlaps the two classifications, it shall be of local concern unless it:

a. Is being carried out with state or federal funds;

b. Involves the use of or has significant impacts on state or federal lands, water bottoms or works;

c. Is mineral or energy development, production or transportation related;

d. Involves the use of, or has significant impacts on, barrier islands or beaches or any other shoreline which forms part of the baseline for the state's offshore jurisdiction;

e. Will result in major changes in the quantity or quality of water flow and circulation or in salinity or sediment transport regimens; or

f. Has significant interparish or interstate impacts.

(Code 1956, § 15A-16)

State law references—Types of uses, R.S. 49:214.25; local coastal management programs, R.S. 49:214.28(c)(3).

Sec. 170-362. Uses of state concern.

Those uses which directly and significantly affect coastal waters and which are in need of coastal management and which have impacts of greater than local significance or which significantly affect interests of regional, state, or national concern, shall be considered uses of state concern. Uses of state concern shall include, but not be limited to:

(1) Any dredge or fill activity which intersects with more than one water body.

(2) Projects involving use of state-owned lands or water bottoms.

(3) State publicly funded projects.

(4) National interest projects.

(5) Projects occurring in more than one parish.

(6) All mineral activities, including exploration for, and production of, oil, gas and other minerals, all dredge and fill uses associated therewith, and all other associated uses.

(7) All pipelines for the gathering, transportation or transmission of oil, gas and other minerals.

(8) Energy facility siting and development.

(9) Uses of local concern which may significantly affect interests of regional, state or national concern.

(Code 1956, § 15A-17)

Sec. 170-363. Uses of local concern.

Those uses which directly and significantly affect coastal waters and are in need of coastal management, but are not uses of state concern, should be regulated primarily at the local level if the local government has an approved program. Uses of local concern shall include, but not be limited to:

(1) Privately funded projects which are not uses of state concern.

(2) Publicly funded projects which are not uses of state concern.

(3) Maintenance of uses of local concern.

(4) Jetties or breakwaters.

(5) Dredge or fill projects not intersecting more than one water body.

(6) Bulkheads.

(7) Piers.

(8) Camps and cattlewalks.

(9) Maintenance dredging.

(10) Private water control structures of less than $15,000.00 in cost.

(11) Uses on cheniers, salt domes, or similar land forms.

(Code 1956, § 15A-18)

Sec. 170-364. Appeals.

Within 30 days after public notice of the decision, the applicant, the secretary of DNR, any affected local government or affected local, state or federal agency, an aggrieved person or any person adversely affected by a decision may file an appeal of this decision to Civil District Court for the Parish of Orleans. The courts must give the case "preference and priority" and allow trial de novo at the request of the party.

(Code 1956, § 15A-19; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Reconsiderations, judicial review, R.S. 49:214.35.

Secs. 170-365—170-400. Reserved.

Subdivision V. Coastal Use Guidelines

Sec. 170-401. Applicable to all uses.

(a) *Guideline 1.1.* The guidelines in this subdivision must be read in their entirety. Any proposed use may be subject to the requirements of more than one guideline or section of guidelines and all applicable guidelines must be complied with.

(b) *Guideline 1.2.* Conformance with applicable water and air quality laws, standards and regulations, and with those other laws, standards and regulations which have been incorporated into the coastal resources program shall be deemed in conformance with the program except to the extent that these guidelines would impose additional requirements.

(c) *Guideline 1.3.* The guidelines include both general provisions applicable to all uses and specific provisions applicable only to certain types of uses. The general guidelines apply in all situations. The specific guidelines apply only to the situations they address. Specific and general guidelines should be interpreted to be consistent with each other. In the event there is an inconsistency, the specific shall prevail.

(d) *Guideline 1.4.* These guidelines are not intended to nor shall they be interpreted so as to result in an involuntary acquisition or taking of property.

(e) *Guideline 1.5.* No use or activity shall be carried out or conducted in such a manner as to constitute a violation of the terms of a grant or

donation of any lands or water bottoms to the state or any subdivision thereof. Revocations of such grants and donations shall be avoided.

(f) *Guideline 1.6.* Information regarding the following general factors shall be utilized by the permitting authority in evaluating whether the proposed use is in compliance with the guidelines:

(1) Type, nature and location of use.

(2) Elevation, soil and water conditions and flood and storm hazard characteristics of site.

(3) Techniques and materials used in construction, operation and maintenance of use.

(4) Existing drainage patterns and water regimes of surrounding area, including flow, circulation, quality, quantity and salinity, and impacts on them.

(5) Availability of feasible alternative sites or methods for implementing the use.

(6) Designation of the area for certain uses as part of a local program.

(7) Economic need for use and extent of impacts of use on economy of locality.

(8) Extent of resulting public and private benefits.

(9) Extent of coastal water dependency of the use.

(10) Existence of necessary infrastructure to support the use and public costs resulting from use.

(11) Extent of impacts on existing and traditional uses of the area and on future uses for which the area is suited.

(12) Proximity to and extent of impacts on important natural features such as beaches, barrier islands, tidal passes, wildlife and aquatic habitats, and forest lands.

(13) The extent to which regional, state and national interests are served, including the national interest in resources and the siting of facilities in the coastal zone as identified in the coastal resources program.

(14) Proximity to, and extent of impacts on, special areas, particular areas, or other areas of particular concern of the state program or local programs.

(15) Likelihood of, and extent of impacts on, resulting secondary impacts and cumulative impacts.

(16) Proximity to, and extent of impacts on, public lands or works, or historic, recreational or cultural resources.

(17) Extent of impacts on navigation, fishing, public access, and recreational opportunities.

(18) Extent of compatibility with natural and cultural setting.

(19) Extent of long-term benefits or adverse impacts.

(g) *Guideline 1.7.* It is the policy of the coastal resources program to avoid the following adverse impacts. To this end, all uses and activities shall be planned, sited, designed, constructed, operated and maintained to avoid to the maximum extent practicable significant:

(1) Reductions in the natural supply of sediment and nutrients to the coastal system by alterations of freshwater flow.

(2) Adverse economic impacts on the locality of the use and affected governmental bodies.

(3) Detrimental discharges of inorganic nutrient compounds and coastal waters.

(4) Alterations in the natural concentration of oxygen in coastal waters.

(5) Destruction or adverse alterations of streams, wetlands, tidal passes, inshore waters and water bottoms, beaches, dunes, barrier islands, and other natural biologically valuable areas or protective coastal features.

(6) Adverse disruption of existing social patterns.

(7) Alterations of the natural temperature regime of coastal waters.

(8) Detrimental changes in existing salinity regimes.

(9) Detrimental changes in littoral and sediment transport processes.

(10) Adverse effects of cumulative impacts.

(11) Detrimental discharges of suspended solids into coastal waters, including turbidity resulting from dredging.

(12) Reductions or blockage of water flow or natural circulation patterns within or into an estuarine system or a wetland forest.

(13) Discharges of pathogens or toxic substances into coastal waters.

(14) Adverse alteration or destruction of archaeological, historical or other cultural resources.

(15) Fostering of detrimental secondary impacts in undisturbed or biologically highly productive wetland areas.

(16) Adverse alteration or destruction of unique or valuable habitats, critical habitat for endangered species, important wildlife or fishery breeding or nursery areas, designated wildlife management or sanctuary areas, or forest lands.

(17) Adverse alteration or destruction of public parks, shoreline access points, public works, designated recreation areas, scenic rivers, or other areas of public use and concern.

(18) Adverse disruptions of coastal wildlife and fishery migratory patterns.

(19) Land loss, erosion and subsidence.

(20) Increases in the potential for flood, hurricane or other storm damage, or increases in the likelihood that damage will occur from such hazards.

(21) Reductions in the long-term biological productivity of the coastal ecosystem.

(h) *Guideline 1.8.* In those guidelines in which the modifier maximum extent practicable is used, the proposed use is in compliance with the guideline if the standard modified by the term is complied with. If the modified standard is not complied with, the use will be in compliance with the guideline if the permitting authority finds, after a systematic consideration of all pertinent information regarding the use, the site and the impacts of the use as set forth in guideline 1.6, subsection (f) of this section, and a balancing of their relative significance, that the benefits resulting from the proposed use would clearly outweigh the adverse impacts resulting from noncompliance with the modified standard and there are no feasible and practical alternative locations, methods and practices for the use that are in compliance with the modified standard and:

(1) Significant public benefits will result from the use;

(2) The use would serve important regional, state or national interests, including the national interest in resources and the siting of facilities in the coastal zone identified in the coastal resources program; or

(3) The use is coastal water dependent.

The systematic consideration process shall also result in a determination of those conditions necessary for the use to be in compliance with the guideline. Those conditions shall assure the use is carried out utilizing those locations, methods and practices which maximize conformance to the modified standard; are technically, economically, environmentally, socially and legally feasible and practical and maximize or offset those adverse impacts listed in guideline 1.7, subsection (g) of this section, and in the guideline at issue.

(i) *Guideline 1.9.* Uses shall to the maximum extent practicable be designed and carried out to permit multiple concurrent uses which are appropriate for the location and to avoid unnecessary conflicts with other uses of the vicinity.

(j) *Guideline 1.10.* These guidelines are not intended to be, nor shall they be, interpreted to allow expansion of governmental authority beyond that established by R.S. 49:213.1 through 49:213.21, as amended; nor shall these guidelines be interpreted so as to require permits for specific uses legally commenced or established prior to the effective date of the coastal use permit program nor to normal maintenance or repair of such uses. (Code 1956, § 15A-28(a))

Sec. 170-402. Levees.

(a) *Guideline 2.1.* The leveeing of unmodified or biologically productive wetlands shall be avoided to the maximum extent practicable.

(b) *Guideline 2.2.* Levees shall be planned and sited to avoid segmentation of wetland areas and systems to the maximum extent practicable.

(c) *Guideline 2.3.* Levees constructed for the purpose of developing or otherwise changing the use of a wetland area shall be avoided to the maximum extent practicable.

(d) *Guideline 2.4.* Hurricane and flood protection levees shall be located at the nonwetland/wetland interface or landward to the maximum extent practicable.

(e) *Guideline 2.5.* Impoundment levees shall only be constructed in wetland areas as part of approved water or marsh management projects or to prevent release of pollutants.

(f) *Guideline 2.6.* Hurricane or flood protection levee systems shall be designed, built and thereafter operated and maintained utilizing best practical techniques to minimize disruptions of existing hydrologic patterns, and the interchange of water, beneficial nutrients and aquatic organ-

isms between enclosed wetlands and those outside the levee system.
(Code 1956, § 15A-28(b))

Sec. 170-403. Linear facilities.

(a) *Guideline 3.1.* Linear use alignments shall be planned to avoid adverse impacts on areas of high biological productivity or irreplaceable resource areas.

(b) *Guideline 3.2.* Linear facilities involving the use of dredging or filling shall be avoided in wetland and estuarine areas to the maximum extent practicable.

(c) *Guideline 3.3.* Linear facilities involving dredging shall be of the minimum practical size and length.

(d) *Guideline 3.4.* To the maximum extent practicable, pipelines shall be installed through the push ditch method and the ditch backfilled.

(e) *Guideline 3.5.* Existing corridors, rights-of-way, canals, and streams shall be utilized to the maximum extent practicable for linear facilities.

(f) *Guideline 3.6.* Linear facilities and alignments shall be, to the maximum extent practicable, designed and constructed to permit multiple uses consistent with the nature of the facility.

(g) *Guideline 3.7.* Linear facilities involving dredging shall not traverse or adversely affect any barrier island.

(h) *Guideline 3.8.* Linear facilities involving dredging shall not traverse beaches, tidal passes, protective reefs or other natural gulf shorelines unless no other alternative exists. If a beach, tidal pass, reef or other natural gulf shoreline must be traversed for a nonnavigation canal, they shall be restored at least to their natural condition immediately upon completion of construction. Tidal passes shall not be permanently widened or deepened except when necessary to conduct the use. The best available restoration techniques which improve the traversed area's ability to serve as a shoreline shall be used.

(i) *Guideline 3.9.* Linear facilities shall be planned, designed, located and built using the best practical techniques to minimize disruption of natural hydrologic and sediment transport patterns, sheet flow, and water quality, and to minimize adverse impacts on wetlands.

(j) *Guideline 3.10.* Linear facilities shall be planned, designed, and built using the best practical techniques to prevent bank slumping and erosion, saltwater intrusion, and to minimize the potential for inland movement of storm-generated surges. Consideration shall be given to the use of locks in navigation canals and channels which connect more saline areas with fresher areas.

(k) *Guideline 3.11.* All nonnavigation canals, channels and ditches which connect more saline areas with fresher areas shall be plugged at all waterway crossings and at intervals between crossings in order to compartmentalize them. The plugs shall be properly maintained.

(l) *Guideline 3.12.* The multiple use of existing canals, directional drilling and other practical techniques shall be utilized to the maximum extent practicable to minimize the number or size of access canals, to minimize changes of natural systems and to minimize adverse impacts on natural areas and wildlife and fisheries habitat.

(m) *Guideline 3.13.* All pipelines shall be constructed in accordance with parts 191, 192, and 195 of title 49 of the Code of Federal Regulations, as amended, and in conformance with the commissioner of conservation's Pipeline Safety Rules and Regulations and those safety requirements established by R.S. 45:408, whichever would require higher standards.

(n) *Guideline 3.14.* Areas dredged for linear facilities shall be backfilled or otherwise restored to the preexisting conditions upon cessation of use for navigation purposes to the maximum extent practicable.

(o) *Guideline 3.15.* The best practicable techniques for site restoration and revegetation shall be utilized for all linear facilities through on-site and/or off-site mitigation activities.

(p) *Guideline 3.16.* Confined and dead-end canals shall be avoided to the maximum extent practicable. Approved canals must be designed and constructed using the best practical techniques to avoid water stagnation and eutrophication.
(Code 1956, § 15A-28(c))

Sec. 170-404. Dredged spoil deposition.

(a) *Guideline 4.1.* Spoil shall be deposited utilizing the best practical techniques to avoid disruption of water movement, flow, circulation and quality.

(b) *Guideline 4.2.* Spoil shall be used beneficially to the maximum extent practicable to improve productivity or create new habitat, reduce or compensate for environmental damage done by dredging activities, or prevent environmental damage. Otherwise, existing spoil disposal areas or upland disposal shall be utilized to the maximum extent practicable rather than creating new disposal areas.

(c) *Guideline 4.3.* Spoil shall not be disposed of in a manner which could result in the impounding or draining of wetlands or the creation of development sites unless the spoil deposition is part of an approved levee or land surface alteration project.

(d) *Guideline 4.4.* Spoil shall not be disposed of on marsh, known oyster or clam reefs, or in areas of submersed vegetation to the maximum extent practicable.

(e) *Guideline 4.5.* Spoil shall not be disposed of in such a manner as to create a hindrance to navigation or fishing, or hinder timber growth.

(f) *Guideline 4.6.* Spoil disposal areas shall be designed and constructed and maintained using the best practicable techniques to retain the spoil at the site, reduce turbidity, and reduce shoreline erosion when appropriate.

(g) *Guideline 4.7.* The alienation of state-owned property shall not result from spoil deposition activities without the consent of the department of natural resources.
(Code 1956, § 15A-28(d))

Sec. 170-405. Shoreline modification.

(a) *Guideline 5.1.* Nonstructural methods of shoreline protection shall be utilized to the maximum extent practicable.

(b) *Guideline 5.2.* Shoreline modification structures shall be designed and built using best practical techniques to minimize adverse environmental impacts.

(c) *Guideline 5.3.* Shoreline modification structures shall be lighted or marked in accordance with U.S. Coast Guard regulations, not interfere with navigation, and should foster fishing, other recreational opportunities, and public access.

(d) *Guideline 5.4.* Shoreline modification structures shall be built using best practical materials and techniques to avoid the introduction of pollutants and toxic substances into coastal waters.

(e) *Guideline 5.5.* Piers and docks and other harbor structures shall be designed and built using best practical techniques to avoid obstruction of water circulation.

(f) *Guideline 5.6.* Marinas and similar commercial and recreational developments shall to the maximum extent practicable not be located so as to result in adverse impacts on open productive oyster beds, or submersed grass beds.

(g) *Guideline 5.7.* Neglected or abandoned shoreline modification structures, piers, docks, mooring and other harbor structures shall be removed at the owner's expense, when appropriate.

(h) *Guideline 5.8.* Shoreline stabilization structures shall not be built for the purpose of creating fill areas for development unless part of an approved surface alteration use.

(i) *Guideline 5.9.* Jetties, groins, breakwaters and similar structures shall be planned, designed and constructed so as to avoid to the maximum extent practicable downstream land loss and erosion.
(Code 1956, § 15A-28(e))

Sec. 170-406. Surface alterations.

(a) *Guideline 6.1.* Industrial, commercial, urban, residential, and recreational uses are necessary to provide adequate economic growth and development. To this end, such uses will be permitted in those areas of the coastal zone that are suitable and acceptable for such development. Those uses shall be consistent with the other guidelines and

shall, to the maximum extent practicable, take place only:

(1) On lands five feet or more above sea level or within fastlands; or

(2) On lands which have foundation conditions sufficiently stable to support the use, and where flood and storm hazards are minimal or where protection from these hazards can be reasonably well achieved, and where the public safety would not be unreasonably endangered; and

a. The land is already in high intensity of development use;
b. There is adequate supporting infrastructure; or
c. The vicinity has a tradition of use for similar habitation or development.

(b) *Guideline 6.2.* Public and private works projects such as levees, drainage improvements, roads, ports, and public utilities are necessary to protect and support needed development and shall be encouraged where applicable. Such projects shall, to the maximum extent practicable, take place only when:

(1) They protect or serve those areas suitable for development pursuant to guideline 6.1, subsection (a) of this section;

(2) They are consistent with the other guidelines; and

(3) They are consistent with all relevant adopted state, local and regional plans.

(c) *Guideline 6.3.* Reserved.

(d) *Guideline 6.4.* To the maximum extent practicable, wetland areas shall not be drained or filled. Any approved drain or fill project shall be designed and constructed using best practicable techniques to minimize present and future property damage and adverse environmental impacts. Only areas used to build or drive on will be filled.

(e) *Guideline 6.5.* Coastal water-dependent uses shall be given special consideration in permitting because of their reduced choice of alternatives.

(f) *Guideline 6.6.* Areas modified by surface alterations activities shall, to the maximum extent practicable, be revegetated, refilled, cleaned and restored to their predevelopment condition upon termination of the use.

(g) *Guideline 6.7.* Site clearing shall to the maximum extent practicable be limited to those areas immediately required for physical development. Only areas used to build on or drive on will be cleared.

(h) *Guideline 6.8.* Surface alterations shall, to the maximum extent practicable, be located away from critical wildlife areas and vegetation areas. Alterations in wildlife preserves and management areas shall be conducted in strict accord with the requirements of the wildlife management body.

(i) *Guideline 6.9.* Surface alterations which have high adverse impacts on natural functions shall not occur, to the maximum extent practicable, on barrier islands and beaches, isolated cheniers, isolated natural ridges or levees, or in wildlife and aquatic species or spawning areas, or in important migratory routes.

(j) *Guidelines 6.10.* The creation of low dissolved oxygen conditions in the water or traps for heavy metals shall be avoided to the maximum extent practicable.

(k) *Guideline 6.11.* Surface mining shall be carried out utilizing the best practical techniques to minimize adverse environment impacts.

(l) *Guideline 6.12.* The creation of underwater obstructions which adversely affect fishing or navigation shall be avoided to the maximum extent practicable.

(m) *Guideline 6.13.* Surface alteration sites and facilities shall be designed, constructed, and operated using the best practicable techniques to prevent the release of pollutants or toxic substances into the environment and minimize other adverse impacts.

(n) *Guideline 6.14.* To the maximum extent practicable only material that is free of contaminants and compatible with the environmental setting shall be used as fill.
(Code 1956, § 15A-28(f))

Sec. 170-407. Hydrologic and sediment transport modifications.

(a) *Guideline 7.1.* The controlled diversion of sediment-laden waters to initiate new cycles of marsh building and sediment nourishment shall

be encouraged and utilized whenever such diversions will enhance the viability and productivity of the outfall area. Such diversions shall incorporate a plan for monitoring and reduction and/or amelioration of the effects of pollutants in the freshwater source.

(b) *Guideline 7.2.* Sediment deposition systems may be used to offset land loss, to create or restore wetland areas or enhance building characteristics of a development site. Such systems shall only be utilized as part of an approved plan. Sediment from these systems shall only be discharged in the area in which the proposed use is to be accomplished.

(c) *Guideline 7.3.* Undesirable deposition of sediments in sensitive habitat or navigation areas shall be avoided through the use of the best preventive techniques.

(d) *Guideline 7.4.* The diversion of fresh water through siphons and controlled conduits and channels, and overland flow to offset saltwater intrusion and to introduce nutrients into wetlands shall be encouraged and utilized whenever such diversion will enhance the viability and productivity of the outfall area. Such diversions shall incorporate a plan for monitoring and reduction and/or amelioration of the effects of pollutants present in the freshwater source.

(e) *Guideline 7.5.* Water or marsh management plans shall result in an overall benefit to the productivity of the area.

(f) *Guideline 7.6.* Water control structures shall be assessed separately based on their individual merits and impacts and in relation to their overall water or marsh management plan of which they are a part.

(g) *Guideline 7.7.* Weirs and similar water control structures shall be designed and built using the best practical techniques to prevent cut arounds, permit tidal exchange in tidal areas, and minimize obstruction of the migration of aquatic organisms.

(h) *Guideline 7.8.* Impoundments which prevent normal tidal exchange and/or the migration of aquatic organisms shall not be constructed in brackish and saline areas to the maximum extent practicable.

(i) *Guideline 7.9.* Withdrawal of surface water and groundwater shall not result in saltwater intrusion or land subsidence to the maximum extent practicable.
(Code 1956, § 15A-28(g))

Sec. 170-408. Disposal of wastes.

(a) *Guideline 8.1.* The location and operation of waste storage, treatment, and disposal facilities shall be avoided in wetlands to the maximum extent practicable, and best practical techniques as approved by the state department of environmental quality shall be used.

(b) *Guideline 8.2.* The generation, transportation, treatment, storage and disposal of hazardous wastes shall be pursuant to the substantive requirements of the department of natural resources adopted pursuant to Act 334 of 1978 and approved pursuant to the Resource Conservation and Recovery Act of 1976 P.L. 94-580, and pursuant to the substantive requirements of the department of environmental quality adopted pursuant to Act 449 of 1979 and Act 97 of 1983, as amended.

(c) *Guideline 8.3.* Waste facilities located in wetlands shall be designed and built to withstand all expectable adverse conditions without releasing pollutants as approved by the department of environmental quality.

(d) *Guideline 8.4.* Waste facilities shall be designed and constructed using best practical techniques to prevent leaching, control leachate production, and prevent the movement of leachate away from the facility as approved by the department of environmental quality.

(e) *Guideline 8.5.* The use of overland flow systems for nontoxic, biodegradable wastes, and the use of sump lagoons and reservoirs utilizing aquatic vegetation to remove pollutants and nutrients shall be permitted after proper review by the department of environmental quality.

(f) *Guideline 8.6.* All waste disposal sites shall be marked and recorded with the department of environmental quality and all components of waste shall be identified and approved by same.

(g) *Guideline 8.7.* Waste facilities in wetlands with identifiable pollution problems that are not feasible and practical to correct shall be closed and either removed or sealed, and shall be properly revegetated using the best practical techniques as approved by the department of environmental quality.

(h) *Guideline 8.8.* Waste shall be disposed of only at approved disposal sites as approved by the department of environmental quality.

(i) *Guideline 8.9.* Radioactive or hazardous wastes shall not be temporarily or permanently disposed of in the coastal zone.
(Code 1956, § 15A-28(h))

Sec. 170-409. Uses that result in the alteration of waters draining into coastal waters.

(a) *Guideline 9.1.* Upland and upstream water management programs which affect coastal waters and wetlands shall be designed and constructed to preserve or enhance existing water quality, volume, and rate of flow to the maximum extent practicable.

(b) *Guideline 9.2.* Runoff from developed areas shall to the maximum extent practicable be managed to stimulate natural water patterns, quantity, quality and rate of flow as approved by the department of environmental quality.

(c) *Guideline 9.3.* Runoff and erosion from agricultural lands shall be minimized through the best practical techniques.
(Code 1956, § 15A-28(i))

Sec. 170-410. Oil, gas and other mineral activities.

(a) *Guideline 10.1.* Geophysical surveying shall utilize the best practical techniques to minimize disturbance or damage to wetlands, fish and wildlife and other coastal resources.

(b) *Guideline 10.2.* To the maximum extent practicable, the number of mineral exploration and production sites in wetland areas requiring flotation access shall be held to the minimum number, consistent with good recovery and conservation practices and the need for energy development, by directional drilling, multiple use of existing access canals and other practical techniques.

(c) *Guideline 10.3.* Exploration, production and refining activities shall, to the maximum extent practicable, be located away from critical wildlife areas and vegetation areas. Mineral operations in wildlife preserves and management areas shall be conducted, in strict accordance with the requirements of the wildlife management body.

(d) *Guideline 10.4.* Mineral exploration and production facilities shall be to the maximum extent practicable designed, constructed and maintained in such a manner to maintain natural water flow regimes, avoid blocking surface drainage, and avoid erosion.

(e) *Guideline 10.5.* Access routes to mineral exploration, production and refining sites shall be designed and aligned so as to avoid adverse impacts on critical wildlife and vegetation areas to the maximum extent practicable. Once access routes are no longer needed, the site, to the extent possible, will be restored to its original condition.

(f) *Guideline 10.6.* Drilling and production sites shall be prepared, constructed, and operated using the best practical techniques to prevent the release of pollutants or toxic substances into the environment.

(g) *Guideline 10.7.* All drilling activities, supplies, and equipment shall be kept on barges, on drilling rigs, within ring levees, or on the well site.

(h) *Guideline 10.8.* Drilling ring levees shall to the maximum extent practicable be replaced with smaller production levees or removed entirely.

(i) *Guideline 10.9.* All drilling and production equipment, structures, and storage facilities shall be designed and constructed utilizing best practical techniques to withstand all expectable adverse conditions without releasing pollutants.

(j) *Guideline 10.10.* Mineral exploration, production and refining facilities shall be designed and constructed using best practical techniques to minimize adverse environmental impacts.

(k) *Guideline 10.11.* Effective environmental protection and emergency or contingency plans shall be developed and complied with for all mineral operations.

(l) *Guideline 10.12.* The use of dispersants, emulsifiers and other similar chemical agents on oil spills is prohibited without the prior approval of the Coast Guard or Environmental Protection Agency On-Scene Coordinator, in accordance with the National Oil and Hazardous Substances Pollution Contingency Plan.

(m) *Guideline 10.13.* Mineral exploration and production sites shall be cleared, revegetated, detoxified and otherwise restored as near as practicable to their original condition upon termination of operations to the maximum extent practicable.

(n) *Guideline 10.14.* The creation of underwater obstructions which adversely affect fishing or navigation shall be avoided to the maximum extent practicable.

(Code 1956, § 15A-28(j))

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Secs. 170-411—170-445. Reserved.

Subdivision VI. Permit Applications

Sec. 170-446. Review agent.

The city office of environmental affairs has been designated as the review agency for coastal use permits in the parish and applications for such permits can be obtained from those offices.

(Code 1956, § 15A-4; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-447. General requirements.

(a) Any person seeking to obtain a coastal use permit is required to file a completed application to the state or to the office of environmental affairs. The state and the office of environmental affairs can provide the application forms and instructions, including example plats and interpretive assistance, to any interested party. The office of environmental affairs will conduct the required environmental review/assessment and make appropriate recommendations to the state department of natural resources, and the applicant. The staff of the office of environmental affairs shall be available for consultation prior to submission of an application and such consultation is strongly recommended. Application forms may be periodically revised to obtain all information necessary for review of the proposed project.

(b) Separate applications shall be made for unrelated projects or projects involving noncontiguous parcels of property. Joint applications may be made in cases of related construction involving contiguous parcels of property.

(Code 1956, § 15A-20; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-448. Content of application.

The application submitted shall contain the same information required for a permit from the U.S. Army Corps of Engineers and such additional information as the directors determine to be reasonably necessary for proper evaluation of an application.

(Code 1956, § 15A-21)

Sec. 170-449. Processing the application.

(a) When an apparently complete application for a coastal zone permit is received, the permitting agent shall immediately assign it a number for identification, acknowledge receipt thereof, and advise the applicant of the number assigned to it.

(b) Application processing will begin when an application that is apparently complete is accepted by the permitting agent.

(c) Within two working days of receipt of an apparently complete application by the state or office of environmental affairs, a copy of the application and all attachments and the local decision as to whether the use is one of state or local concern shall be sent to the administrator and/or secretary.

(d) Public notice as described in section 170-452 will be issued within ten days of receipt of an apparently complete application by the administrator.

(e) The director shall evaluate the proposed application pursuant to section 170-453, to determine the need for a public hearing.

(f) The director, pursuant to section 170-454, shall either send a draft permit to the applicant for acceptance and signature or send notice of denial to the applicant within 30 days of the giving of public notice or within 15 days after the closing of the record of a public hearing, if held, whichever is later.

(g) Public notice of permit decisions shall be given pursuant to section 170-452.

(h) The applicant, the secretary, any affected local government or affected federal, state, or local agency, any aggrieved person, or any other person adversely affected by a coastal use permit decision may file an appeal of this decision to civil district court of the Parish of Orleans.

(Code 1956, § 15A-23; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law references—Submission of coastal use permit application, R.S. 49:214.30(C)(1); appeal of decision, R.S. 49:214.30(D); reconsiderations, judicial review, R.S. 49:214.35.

Sec. 170-450. Determination of use; review.

(a) The director shall make the initial determination as to whether the use is one of state concern or local concern on all applications filed with the local government. This determination shall be based on the criteria set forth in sections 170-361 through 170-363.

(b) The determination and a brief explanation of the rationale behind the determination shall be forwarded to the administrator within two working days of receipt of the apparently complete application.

(c) The administrator shall review the decision and rationale and shall let it stand or reverse it. If the administrator reverses the local decision, notice, including a brief explanation of the rationale for the reversal, shall be sent to the local government within two working days of the application from the local government.

(d) The appropriate permitting body for the use, as determined by the administrator, shall thereafter be responsible for the coastal use permit review process. The administrator's determination is binding unless reconsidered and reversed by the secretary.

(Code 1956, § 15A-15)

State law references—Types of uses, R.S. 49:214.25; local coastal management programs, R.S. 49:214.28(c)(3); coastal use permits, R.S. 49:214.30(c).

Sec. 170-451. Additional information.

(a) If an application is found to be incomplete or inaccurate after processing has begun, or if it is determined that additional information from the applicant is necessary to assess the application adequately, processing will be stopped pending receipt of the necessary changes or information from the applicant and the processing periods provided for in section 170-449(d) will be interrupted. Upon receipt of the required changes or information, a new processing period will begin.

(b) If the applicant fails to respond within 30 days to any request or inquiry of the permitting body, the permitting agent may advise the applicant that his application will be considered as having been withdrawn unless and until the applicant responds within 15 days of the date of the letter.

(Code 1956, § 15A-26)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-452. Public notice and consideration of public comment.

(a) Public notice of the receipt of all apparently complete applications for coastal use permits shall be given by causing the publication of notice of the application once in the official journal of the parish. Notice shall be considered given upon publication in the official parish journal. The notice shall set forth that any comments on the proposed activity shall be submitted to the office of environmental affairs within 25 days from the date of official journal publication of the notice.

(b) The director shall consider comments received in response to the public notice in its subsequent actions on the permit application. Comments received will be made a part of the official file on the application. If comments received relate to matters within the special expertise of another governmental body, the permitting

body may seek advice of that agency. If necessary, the applicant will be given the opportunity to furnish his proposed resolution or rebuttal to all objections from government agencies and other substantive adverse comments before a final decision is made on the application.
(Code 1956, § 15A-24; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-453. Public hearings on applications.

(a) A public hearing may be held in connection with the consideration of an application for a new coastal use permit and when it is proposed that an existing permit be modified or revoked.

(b) Any person may request in writing within the comment period specified in the public notice that a public hearing be held to consider material matters at issue in a coastal use permit application. Upon receipt of any such request, the director shall determine whether the issues raised are substantial and there is a valid public interest to be served by holding a public hearing.

(c) Public hearings are appropriate when there is significant public opposition to a proposed use, or there have been requests from legislators or from local governments or other local authorities or in controversial cases involving significant economic, social, or environmental issues. The director has the discretion to require hearings in any particular case. Failure of the director to hold a hearing on an application may not be appealed to the secretary.

(d) If the determination is made to hold a public hearing, such hearings shall be held by the city planning commission, and such hearing shall be placed on the calendar of a regularly scheduled meeting of the planning commission, allowing 30 days for public notice.

(e) If a request for a public hearing has been received, and the decision is made that no hearing will be held, public notice of the decision shall be given.
(Code 1956, § 15A-25)

Sec. 170-454. Decisions on permits.

(a) The permitting body will determine whether or not the coastal use permit should be issued. Permits shall be issued only for those uses found to be consistent with policies enumerated in division 2, the city building code (Ordinance No. 17,525 C.C.S., as amended), the coastal use guidelines enumerated in sections 170-401 through 170-410 and the state program. Permit decisions will be made only after a full and fair consideration of all information before the permitting body, and shall represent an appropriate balancing of social, environmental and economic factors. The permitting body shall prepare a short and plain statement explaining the basis for his decision on all applications. This statement shall include the director's conclusions on the conformity of the proposed use with the guidelines of the state and local program. The statement shall be dated, signed, and included in the record prior to final action on the application.

(b) If the final decision is to issue the coastal use permit, the permitting body will forward two copies of the draft permit to the applicant for his signature accepting the conditions on the permit, along with its findings on the application. The applicant will return one signed copy to the permitting body. If the final decision is to deny the permit, the applicant shall be sent a copy of the statement prepared pursuant to subsection (a), setting forth the reason for denial.

(c) Final action on the coastal use permit application is the signature of the issuing official on the permit or the mailing of the letter notifying the applicant of the denial.
(Code 1956, § 15A-27; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-455. Conditions of permit.

(a) By accepting the coastal use permit, the applicant agrees to:

(1) Carry out or perform the use in accordance with the plans and specifications approved by the director.

(2) Comply with any conditions imposed by the director.

(3) Adjust, alter, or remove any structure or other physical evidence of the permitted use if, in the opinion of the director, it proves to be beyond the scope of the use as approved or is abandoned.

(4) Provide, if required by the director, an acceptable surety bond in an appropriate amount to ensure adjustment, alteration, or removal should the director determine it necessary.

(5) Hold and save the state, the city, the department, and their officers and employees harmless from any damage to persons or property which might result from the work activity, or structure permitted.

(6) Certify that any permitted construction has been completed in an acceptable and satisfactory manner and in accordance with the plans and specifications approved by the directors. The director may, when appropriate, require such certification be given by a registered professional engineer.

(b) The director shall place such other conditions on the permit as are appropriate to ensure compliance with the coastal management program.
(Code 1956, § 15A-29; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-456. Fee schedule.

(a) All fees for coastal use permits or requests for determination required under this article shall be paid as set forth below except that no fee for an application that is determined to be a use of state concern shall be collected, or if collected shall be returned after such a determination has been made:

(1) All uses whose total cost is $100,000.00 or less will be assessed a fee of $100.00.

(2) All uses whose total cost will exceed $100,000.00 will be assessed a fee of $300.00.

(b) Where work for which a coastal use permit is required by this article is started or proceeded with prior to obtaining such permit, the fees above specified shall be increased 100 percent, but the payment of such fee shall not relieve any persons from fully complying with the requirements of this article in the execution of their work, nor from any other penalties prescribed herein.
(Code 1956, § 15A-22; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-457. Appeals.

Within 30 days after public notice of the decision, the applicant, the secretary of DNR, any affected local government or affected local, state or federal agency, an aggrieved person or any person adversely affected by a decision under this subdivision may petition for reconsideration to Civil District Court of Orleans Parish. The courts must give the case preference and priority and allow trial de novo at the request of the party.
(Code 1956, § 15A-30; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Reconsiderations, judicial review, R.S. 49:214.35(B).

Secs. 170-458—170-490. Reserved.

Subdivision VII. Modification, Suspension or Revocation of Permits

Sec. 170-491. Modifications and variances.

(a) The terms and conditions of a coastal use permit may be modified to allow changes in the permitted use, in the plans and specifications for that use, in the methods by which the use is being implemented, or to assure that the permitted use will be in conformity with the coastal management program. Changes which would significantly increase the impacts of a permitted activity shall be processed as new applications for permits pursuant to sections 170-361 through 170-364 and 170-450, not as a modification.

(b) A coastal use permit may be modified upon request of the permittee:

(1) If mutual agreement can be reached on a modification, written notice of the modification will be given to the permittee.

(2) If mutual agreement cannot be reached, a permittee's request for a modification shall be considered denied.

(Code 1956, § 15A-31)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-492. Suspensions.

(a) The director may suspend a coastal use permit upon finding that:

(1) The permittee has failed or refuses to comply with the terms and conditions of the permit or any modifications thereof;

(2) The permittee has submitted false or incomplete information in his application or otherwise; or

(3) The permittee has failed or refused to comply with any lawful order or request of the director.

(b) The director shall notify the permittee in writing that the permit will be suspended and the reasons therefor and order the permittee to cease immediately all previously authorized activities. The notice shall also advise the permittee that he will be given, upon request made within ten days of receipt of the notice, an opportunity to respond to the reasons given for the suspension.

(c) After consideration of the permittee's response, or, if none, within 30 days after issuance of the notice, the director shall take action to reinstate, modify or revoke the coastal use permit and shall notify the permittee of the action taken.

(Code 1956, § 15A-32; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-493. Revocations.

If, after compliance with the suspension procedures in section 170-492, the director determines that revocation or modification of the coastal use permit is warranted, written notice of the revocation or modification shall be given to the permittee.

(Code 1956, § 15A-33; M.C.S., Ord. No. 22577, § 1, 4-5-07)

Sec. 170-494. Enforcement.

If the permittee fails to comply with a cease and desist order or the suspension or revocation of a coastal use permit, the director shall seek appropriate civil and criminal relief as provided by section 213.17 of the Act.

(Code 1956, § 15A-34; M.C.S., Ord. No. 22577, § 1, 4-5-07)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Secs. 170-495—170-530. Reserved.

DIVISION 4. GENERAL PERMITS

Sec. 170-531. Issuance.

(a) The directors may, after compliance with the procedures set forth in sections 170-449 and 170-452, issue general permits for certain clearly described categories of uses requiring coastal use permits. After a general permit has been issued, individual uses falling within those categories will not require full individual permit processing unless the directors determine, on a case-by-case basis, that the public interest requires full review.

(b) General permits may be issued only for those uses that are substantially similar in nature, that cause only minimal adverse impacts when performed separately, that will have only minimal adverse cumulative impacts and that otherwise do not impair the fulfillment of the objectives and policies of the coastal management program.

(Code 1956, § 15A-35)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-532. Reporting.

(a) Each person desiring to commence work on a use subject to a general permit must give notice to the directors and receive written authorization prior to commencing work. Such authorization shall be issued within 30 days of receipt of the notice.

(b) Such notice shall include:

(1) The name and address of the person conducting the use.

(2) Such descriptive material, maps and plans as may be required by the directors for that general permit.

(Code 1956, § 15A-36)

Sec. 170-533. Conditions of general permits.

(a) The directors shall prescribe such conditions for each general permit as may be appropriate.

(b) A general permit may be revoked if the directors determine that such revocation is in the public interest and consistent with the coastal management program.

(Code 1956, § 15A-37)

State law reference—Enforcement, R.S. 49:214.36(B), (C).

Sec. 170-534. Appeals.

Appeals shall be as provided in section 170-457.

(Code 1956, § 15A-38)

Secs. 170-535—170-595. Reserved.

ARTICLE IV. GARBAGE FROM VESSELS IN PORT*

Sec. 170-596. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Authorized garbage collector means any person holding an unsuspended and unrevoked authorization from the department of health to collect garbage from vessels within the Port of New Orleans.

Department of health means the department of health for the city.

Garbage means waste material, such as food scraps, table refuse, galley refuse, refuse from stores of vessels, spoiled fruits, vegetables and animal products, including such waste material in passengers' and crews' quarters, derived, in whole or in part, from fruits, vegetables or animal products.

Land means not only that part of the earth's surface usually indicated by that term, but includes any building, platform or other structure affixed to land, whether permanent or temporary, and any pier, dock, wharf or bridge extending into or across the Mississippi River within the Port of New Orleans.

Port of New Orleans means the area presently encompassed within such port by existing law within the parish or which may be hereafter restricted or extended by valid legislation.

Vessel means every description of craft or other contrivance used, or capable of being used, as a means of transportation on or in water.

(Code 1956, § 28-22)

Cross reference—Definitions generally, § 1-2.

State law reference—Similar provisions of state law, R.S. 40:1131.

Sec. 170-597. Discharging, etc., garbage from vessels or keeping it thereon.

For the purposes of protecting the public welfare, health and safety, the following acts are hereby prohibited and made unlawful:

(1) Throwing, emptying, discharging or depositing garbage from any vessel into the Mississippi River within the Port of New Orleans;

(2) Throwing, emptying, discharging, carrying or depositing garbage or causing, suffering or procuring garbage to be thrown, emptied, discharged, carried or deposited from any vessel onto land within the Port of New Orleans; and

(3) The retention or maintenance of garbage on vessels within the Port of New Orleans except in tightly closed containers and under such method or treatment and for such duration as may be prescribed by the department of health.

(Code 1956, § 28-23)

*__Cross reference—__Solid waste, ch. 138.

Sec. 170-598. Removal of garbage from vessels.

Garbage accumulated on board any vessel within the Port of New Orleans shall only be removed from such vessel and disposed of by authorized garbage collectors and then by such methods, in such manner and under such conditions as the department of health may direct.

(Code 1956, § 28-24)

State law reference—Similar provision of state law, R.S. 40:1132, 40:1133A, 40:1133B.

Sec. 170-599. License and bond of garbage collector.

No person shall engage in the business of collecting garbage from any vessel within the Port of New Orleans unless he is approved and licensed as an authorized garbage collector by the department of health and until, as a condition precedent to being so licensed, he shall have furnished in favor of the city his bond, with good and solvent security, in the sum of $500.00, conditioned that he shall faithfully comply with the provisions of this article and all orders, rules and regulations promulgated by the department of health pursuant to the provisions hereof.
(Code 1956, § 28-25)

Sec. 170-600. Rules and regulations; enforcement.

The department of health shall adopt and promulgate all such orders, rules and regulations as may be necessary to carry out the provisions of this article, and shall administer and enforce such orders, rules and regulations and the provisions of this article.
(Code 1956, § 28-26)

Sec. 170-601. Inspections and investigations.

The department of health shall make such inspections and investigations as it, from time to time, may deem necessary to carry out the provisions of this article.
(Code 1956, § 28-27)

Sec. 170-602. Authority for inspections; refusal to permit.

Any officer, representative or agent of the department of health may inspect any vessel within the Port of New Orleans, upon presentation of proper appointment from the department of health, in order to enforce the provisions of this article and any officer in charge of such vessel who refuses such inspection shall be subject to the penal provisions hereof.
(Code 1956, § 28-28)

Sec. 170-603. Costs of disposal.

All costs incurred in the disposal of garbage by vessels within the Port of New Orleans shall be paid by the owners or operators thereof, except the cost of inspection and supervision by the department of health.
(Code 1956, § 28-29)

State law reference—Similar provisions of state law, R.S. 40:1134—40:1136.

Secs. 170-604—170-640. Reserved.

ARTICLE V. MUNICIPAL YACHT HARBOR*

Sec. 170-641. Purpose.

This article shall provide procedures, restrictions and conditions applicable to the leasing of the property upon which boathouses in the Municipal Yacht Harbor are situated.
(M.C.S., Ord. No. 22155, § 1, 3-2-06; M.C.S., Ord. No. 23805, § 1, 11-19-09)

Sec. 170-642. Lease terms and requirements.

The leases on the property upon which boathouses in the Municipal Yacht Harbor are located shall have a term of 60 years, running between specific dates to be set forth in the lease term provision of said lease. Upon the transfer of a lease on the property upon which boathouses in the Municipal Yacht Harbor are located by a current lessee, the new lessee shall be issued a new lease incorporating the then current lease conditions as may have been established by the New Orleans Municipal Yacht Harbor Management Corporation, a public benefit corporation, at that time.
(M.C.S., Ord. No. 22155, § 1, 3-2-06; M.C.S., Ord. No. 23108, § 1, 5-15-08; M.C.S., Ord. No. 23805, § 1, 11-19-09)

*__Editor's note—__M.C.S., Ord. No. 22155, § 1, adopted March 2, 2006, amended art. V in its entirety and enacted similar provisions to read as herein set out. The former art. V derived from Code 1856, §§ 2D-2—2D-4, 43-65; M.C.S., Ord. No. 17,245, § 1, adopted Nov. 2, 1995; M.C.S., Ord. No. 19,202, § 1, adopted April 8, 1999; and M.C.S., Ord. No. 19981, § 1, adopted Dec. 14, 2000.

Sec. 170-643. Authorization to enter into leases.

The New Orleans Municipal Yacht Harbor Management Corporation is hereby authorized to enter into subleases in accordance with subsection 2-926(2) of this Code.
(M.C.S., Ord. No. 22155, § 1, 3-2-06; M.C.S., Ord. No. 23108, § 1, 5-15-08)

Sec. 170-644. Trespass at public boat launch.

(a) Trespass upon the premises of the New Orleans Public Boat Launch is the intentional, unauthorized entry upon the premises of the public boat launch or remaining upon the premises of the boat launch by a person when he knows his entry or remaining upon the premises is unauthorized or under circumstances where he reasonably should know his entry or remaining upon the premises is unauthorized. The New Orleans Municipal Yacht Harbor Corporation shall cause the premises of the public boat launch to be posted in areas of ingress and egress with signs indicating at what hours of the day or night that entry to or remaining upon the premises is prohibited without authorization. Except for special events specifically authorized by the New Orleans Municipal Yacht Harbor Corporation, the premises of the public boat launch shall be closed to the public between the hours of 9:00 p.m. and 5:00 a.m. on the following day. Entry to and use of the premises is permitted for the purpose of actively launching or retrieving a motor or sailing vessel of at least six feet in length. Active launching or retrieving as stated above is authorized 24 hours per day.

(b) For the purposes of this article, the premises of the public boat launch is the area bounded by Lake Pontchartrain, the Jefferson Parish line and the lake side of Breakwater Drive in the seventh municipal district.

(c) It shall be unlawful for any person to commit the crime of trespass upon the premises of the public boat launch.
(M.C.S., Ord. No. 22155, § 1, 3-2-06)

Sec. 170-645. Construction, alteration and remodeling of boathouses.

(1) *Definitions.* As used herein these terms shall have the following meanings:

1.1 *Boathouse:* Each of the boathouses located at Municipal Yacht Harbor and erected over and in the waters of Lake Pontchartrain and that is leased by MYHMC to a lessee; more particularly the leased premises, as defined and described in the applicable boathouse lease. As used here, a boathouse is distinct and separate from an adjacent boathouse even though it might be leased or occupied or used as one structure by the same lessee. Also as used here, a boathouse is considered a boathouse regardless of the condition of the structure or the absence of all or a portion of the structure.

1.2 *Boathouse group:* There are five boathouse groups. They are defined as boathouses 1 through 36, boathouses 37 through 37a, boathouses 38 through 77, boathouses 78 through 96, and boathouses 100 through 137.

1.3 *Boathouse lease:* The lease between MYHMC and any lessee with respect to a boathouse.

1.4 *Lessee:* Any person or entity that leases a boathouse at Municipal Yacht Harbor from MYHMC.

1.5 *MYHMC:* Municipal Yacht Harbor Management Corporation.

1.6 *Original front wall of the boathouse:* The street side of the wall, as originally constructed, between the boathouse and the adjacent street, being either North Roadway or Breakwater Drive. This wall is consistent from boathouse to boathouse within each boathouse group.

1.7 *First floor:* The level of a boathouse that is the first full or partial level above the water.

1.8 *Second floor:* The level of a boathouse that is the first full or partial level above the first floor.

1.9 *Third floor:* The level of a boathouse that is the first full or partial level above the second floor.

1.10 *Front of the boathouse:* The end of the boathouse closest to the adjacent street, being either North Roadway or Breakwater Drive.

1.11 *Rear of the boathouse:* The end of the boathouse closest to the marina.

(2) *General provisions.*

2.1 Before the commencement of any work for the construction, alteration, addition to or modification of any existing boathouse, application by the lessee for a permit therefore shall be made to the New Orleans Municipal Yacht Harbor Management Corporation ("MYHMC"), a public benefit corporation of the city. If MYHMC issues a certificate, in such form as MYHMC shall from time to time approve, stating that the work complies with the design criteria of MYHMC (a compliance certificate) pursuant to its design criteria, or is deemed to have done so by passage of time (where such is provided for in MYHMC's design criteria and boathouse work compliance procedures), then and only then, a boathouse lessee may submit an application for a permit to the director of the department of safety and permits or his designee, accompanied by the MYHMC compliance certificate and drawings and specifications therefore. Said drawings and specifications must comply with all applicable building code requirements subject to all waivers that each such applicant shall have been eligible for prior to August 29, 2005. If the drawings and specifications are found by the director of the department of safety and permits to comply reasonably with all regulations, ordinances and laws of the city, a permit for such work shall be issued promptly.

2.2 The subject boathouse structures, situated completely within and upon city property and which boathouses are or may become the property of the city upon the termination of the boathouse leases, shall not be altered or added to in any manner which shall interfere with or reduce the capability of such boathouse to serve its original and prime purpose, which is to house medium- to large-size motor yachts in boat slips with a minimum 40-foot length.

2.3 No construction, alteration, addition to or modification of any boathouse shall interfere with the structural integrity, drainage or functioning of adjoining boathouses or interfere with such adjacent boathouses' lessees' peaceful enjoyment of their boathouses by impeding the view from or access to the boathouses they lease.

2.4 In order to avoid a hazard to navigation, no vessel shall be moored in such a manner as to project beyond the end of a boathouse, nor shall any vessel be moored across the end of and outside of a boathouse.

2.5 Any permit issued by the department of safety and permits pursuant to this section is predicated upon the compliance certificate issued by MYHMC. Accordingly, any violation of the terms and conditions of the MYHMC compliance certificate, as determined by MYHMC, shall also constitute a violation of the permit issued by the department of safety and permits pursuant to plans and specifications submitted to the department of safety and permits pursuant to subsection 2.1 hereof.

2.6 For boathouses that suffered less than 50 percent damage in Hurricane Katrina on August 29, 2005, as determined by the department of safety and permits, boathouse lessees shall be permitted to repair and restore their boathouse improvements without being required to elevate the second floor above the level at which it existed on August 28, 2005, regardless of any provision contained herein or in any other regulation, law or ordinance.

(3) *Requirements.* Figures A through G are included to illustrate the practical application of requirements set forth in the text of sections (1) through (3) and their subsections. In case of conflict between the text and a figure, the text shall govern.

Subject to the foregoing, the following uniform standards are established:

3.1 *Katrina damage less than 50 percent.* Each applicant, unless he or she intends to elevate in accordance with chapter 78 regardless, must obtain and submit to MYHMC a written finding by the department of safety and permits that the damage occasioned by Hurricane Katrina was not so substantial as to trigger a requirement that the second floor be raised in accordance with chapter 78 of the New Orleans City Code, with MYHMC having no obligation to commence review of applicant's plans and specifications prior to its receipt of a valid certificate or finding by the department of safety and permits on that issue.

3.2 *Foundation.* Foundations must be designed to comply with all applicable codes, rules and regulations. MYHMC makes no representations as to the capacity of existing pilings to support loads imposed on them, new or existing. However, all boathouse modifications that include a third floor must include the installation of new pilings to support all loads imposed on them by the boathouse being constructed, altered, added on to or modified, and by neighboring boathouses, all as determined by the registered design professional in responsible charge.

3.3 *Structural system.* Structural systems must be designed to comply with all applicable codes, rules and regulations. MYHMC makes no representations as to the capacity of existing structural systems to support loads imposed on them.

Structural systems must support all loads imposed on them by the boathouse being constructed, altered, added on to or modified, and by neighboring boathouses, all as determined by the registered design professional in responsible charge.

All construction must be permanently fixed to the foundation. Manufactured homes such as trailers or homes that maintain their integral delivery chassis are not permitted.

3.4 *Common walls.* If a boathouse is separated from all adjacent boathouses not owned or occupied by the boathouse lessee, by means of walls having a fire-resistance rating of not less than two hours as provided for in the Louisiana State Uniform Construction Code, the director of the department of safety and permits shall deem the boathouse to qualify as having an occupancy classification of R-3 in accordance with the Louisiana State Uniform Construction Code, thus qualifying the boathouse for review under the Louisiana State Construction Code as a one-family dwelling.

3.5 *Flood-resistant materials below the base flood elevation.* All materials utilized below the base flood elevation must be flood-damage resistant, as defined in FEMA Technical Fact Sheet No. 1.7, "Coastal Building Materials" (12/10).

3.6 *Dimensions and exteriors.* The dimensions and exteriors of the boathouses shall be maintained so as to present a uniform appearance with those in the same boathouse group.

3.7 *Boat slip.* Each boathouse must contain a boat slip of at least 40 feet in length. Where lessee leases and/or occupies adjacent boathouses, the required slip must be provided within each boathouse.

3.8 *First floor improvements.*

(See Figure A)

3.8.1 First floor construction and uses are limited to those permitted in FEMA Technical Fact Sheet No. 1.4, "Lowest Floor Elevation" (12/10) or subsequent rules on revisions on that topic, subject to such discretion as

the department of safety and permits has and chooses, in its sole discretion, to exercise.

3.8.2 An open deck shall be constructed on the first floor and to the rear of the original front wall of the boathouse. This open deck must be constructed between the slip and the original front wall or any enclosed area that exists. The deck must be constructed across the entire width of the boathouse and shall be a minimum of 48 inches in width.

3.8.3 Catwalks which are parallel to the long dimension of the boathouse shall be constructed on at least one side of every boathouse and extend from the open deck required by subsection 3.7.2 [3.8.2] to the rear end of the boathouse. Catwalks shall not exceed 30 inches in width within each boathouse.

3.8.4 No wall, screen, fence or similar construction may be erected to divide the open decks required by subsection 3.7.2 [3.8.2] or the catwalks required by subsection 3.7.3 [3.8.3]. However, railings may be placed along the edges of the open decks and catwalks immediately adjacent to the slip.

3.8.5 At the first floor level only, a boathouse lessee may enclose or screen an area that extends a maximum of 6 feet from the original front wall of the boathouse toward the street for storage or to conceal garbage/trash receptacles.

3.9 *Second floor improvements.*

(See Figures B, C, D and E)

3.9.1 Unless exempted by the department of safety and permits pursuant to section 3.1 hereof, the second floor shall be constructed so that the bottom of the lowest horizontal structural member supporting the second floor shall be a minimum of one foot above the city base flood elevation and the top of the second floor is no higher than three feet above the city base flood elevation.

3.9.2 A second floor of a boathouse may be constructed from the original front wall of the boathouse to the rear of the boathouse. The first 40 feet from the original front wall of the boathouse may be enclosed. All or part of the next 20 feet toward the rear of the boathouse may be enclosed and incorporated into the first 40 feet of enclosed area if the boathouse lessee obtains the written consent of the boathouse lessees of the nearest boathouses in each direction that are not owned or occupied by the boathouse lessee. In no event may this enclosed area of a second floor extend beyond 60 feet from the original front wall of the boathouse. (See Figures D and E)

3.9.3 An open deck may be constructed at the second floor in all or part of the remaining length of the boathouse toward its rear. No fence, wall, screen or similar construction may be erected on any side of an open deck. (See Figures D and E)

3.9.4 At the second floor only, the boathouse lessee may erect a deck that extends toward the street as provided in the following subsections:

3.9.4.1 For boathouses on Breakwater Drive with second floors at the level which existed on August 28, 2005, the front deck may extend up to 24 feet from the original front wall of the boathouse or to a minimum of five feet from, Breakwater Drive, whichever is greater. A roof may be constructed over such decks but the roof may not extend more than 12 feet beyond the original front wall of the boathouse. No fence, wall, screen or similar construction may be erected on any side of such decks except that, the first 12 feet extending from the original front wall of the boat-

house may be enclosed and incorporated into the living area if the boathouse lessee obtains the written consent of the boathouse lessees of the nearest boathouses in each direction that are not owned or occupied by the boathouse lessee. In no event may a roof or an enclosed area of a second floor extend beyond the first 12 feet from the original front wall of the boathouse. (See Figures B and D)

3.9.4.2 For boathouses on Breakwater Drive with second floors above the city base flood elevation, the front deck may extend up to 12 feet from the original front wall of the boathouse. A roof may be constructed over such decks but the roof may not extend past the edge of the deck. No fence, wall, screen or similar construction may be erected on any side of such decks. (See Figures C and E)

3.9.4.3 For boathouses on North Roadway with second floors at the level which existed on August 28, 2005, the front deck may extend to the seawall between the boathouse and North Roadway. A roof may be constructed over such decks but the roof may not extend past the edge of the deck. No fence, wall, screen or similar construction may be erected on any side of such decks except that the first eight feet extending from the original front wall of the boathouse may be enclosed and incorporated into the living area if the boathouse lessee obtains the written consent of the boathouse lessees of the nearest boathouses in each direction that are not owned or occupied by the boathouse lessee. In no event may an enclosed area of a second floor extend beyond the first eight feet from the original front wall of the boathouse. (See Figures B and D)

3.9.4.4 For boathouses on North Roadway with second floors above the city base flood elevation, the front deck may extend up to eight feet from the original front wall of the boathouse. A roof may be constructed over such decks but the roof may not extend past the edge of the deck. No fence, wall, screen or similar construction may be erected on any side of such decks. (See Figures C and E)

3.9.5 he minimum height of any railing shall be governed by applicable codes and rules administered by the department of safety and permits and/or other government authorities with jurisdiction. Regardless of any of the foregoing provisions, all second floor decks shall have a railing at the edges which does not exceed 44 inches in height.

3.10 *Third floor improvements.*

(See Figure F)

3.10.1 A third floor may be constructed toward the rear of the boathouse as an enclosed area, a deck with or without a roof, or a combination thereof. It must be set back ten feet from the original front wall of the boathouse and may not extend more than 60 feet from the original front wall of the boathouse. The third floor may not be constructed closer than three feet to the nearest boathouse in each direction which is not owned or occupied by the boathouse lessee.

3.10.2 The top of a third floor may not be higher than 11 feet, six inches above the top of the second floor.

3.11 *Stairs.* Stairs from the first floor to either the second floor or the open deck level which existed on August 28, 2005 may not be constructed forward of the original front wall of the boathouse. Stairs and a landing not to exceed a width of four feet, or as required by code, may be constructed forward of, and parallel to, the original front wall of the boathouse from

the open deck level which existed on August 28, 2005 to the second floor when the second floor is required to be constructed above the City of New Orleans Base Flood Elevation. Such stairs are subject to the approval of MYHMC on a finding of MHYHC in its sole discretion that stairs are architecturally appropriate and consistent with the goal of maintaining a consistent appearance. Stairs to the third floor may not be constructed within ten feet from the original front wall of the boathouse.

3.12 *Height.*

(See Figure G)

3.12.1 The highest point of a boathouse roof over a second floor may be no higher than 30 feet above the highest level of the public street immediately adjacent to the boathouse. The highest point of a boathouse roof over a third floor may be no higher than 42 feet above the highest level of the public street immediately adjacent to the boathouse.

3.12.2 No floor level above the third floor is permitted.

3.13 *Roof slope.*:

(See Figure G)

The slope of all boathouse roofs must be three inches of rise for every 12 inches of run, to match the predominant slope of existing boathouses. Roofs must slope uniformly towards adjacent boathouses, except that all or part of roofs located above a third floor may slope toward the front and/or rear of the boathouse.

3.14 *Roof size.*

(See Figure H)

No horizontal distance between a roof valley and a roof ridge may exceed 15 feet or half of the width of a single boathouse, whichever is less.

3.15 *Roof drainage.* Boathouses are required to have gutter and downspout systems that collect rainfall runoff from the roof. The system shall discharge the collected water into the marina. It is the responsibility of the lessee constructing, altering, adding on to or modifying its boathouse to provide a gutter and downspout system adequate for its boathouse and any adjoining boathouses that shared a storm drainage system at the time that construction commenced.

3.16 *Roof overhangs.* No roof overhang may extend closer than two feet to the nearest adjacent boathouse not leased or occupied by the lessee.

Figures A through G on the following pages are included within and form a part of Section 170-645, as amended and reordained by virtue of M.C.S., Ordinance No. 24590.

3.17 *Breakwater Drive parking spaces.* On Breakwater Drive, boathouses shall provide parking for a minimum of two vehicles between the original front wall of the boathouse and Breakwater Drive. Such parking spaces shall be a minimum of eight feet, six inches wide by 18 feet long by seven feet, six inches high. Parking spaces and driveways shall be paved with concrete or similar approved hard-paved surface materials, extending from the edge of the street continuously to the bulkhead. Parking spaces and driveways are to be used for parking of motor vehicles on a day-to-day basis; no boats, vessels, watercraft, recreational vehicles, campers or trailers of any kind shall be kept overnight in the driveway or parking spaces.

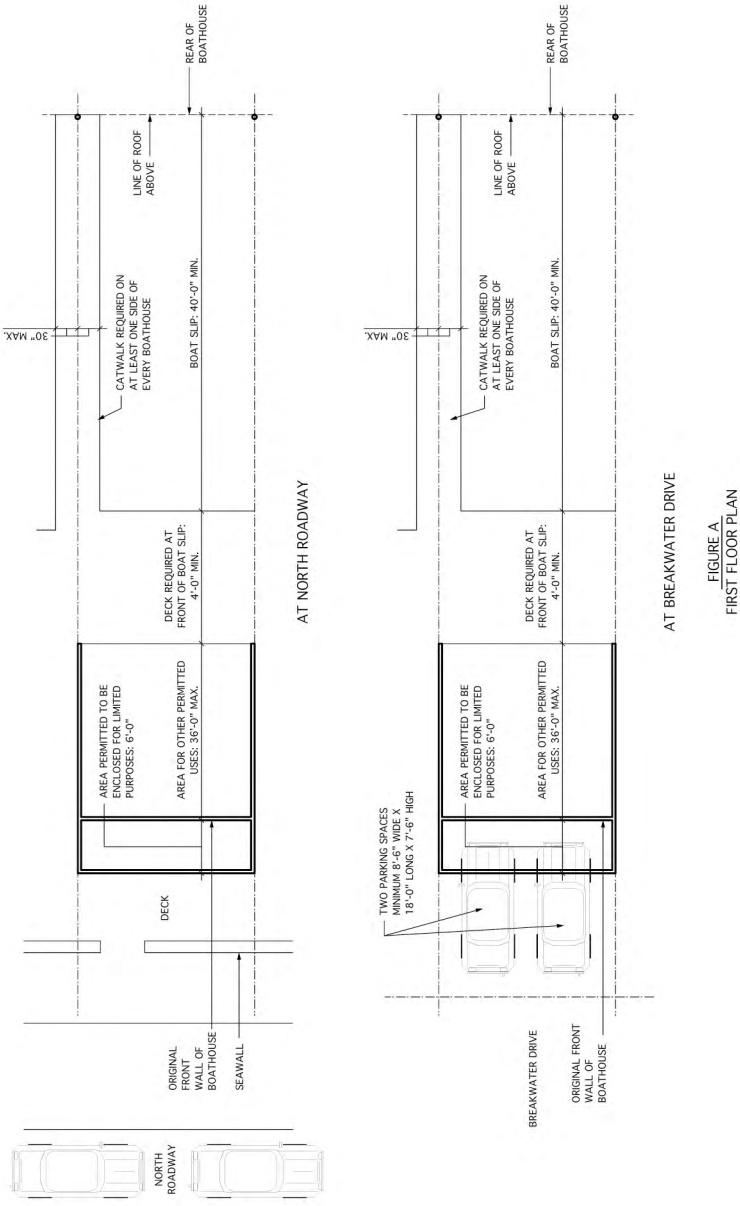
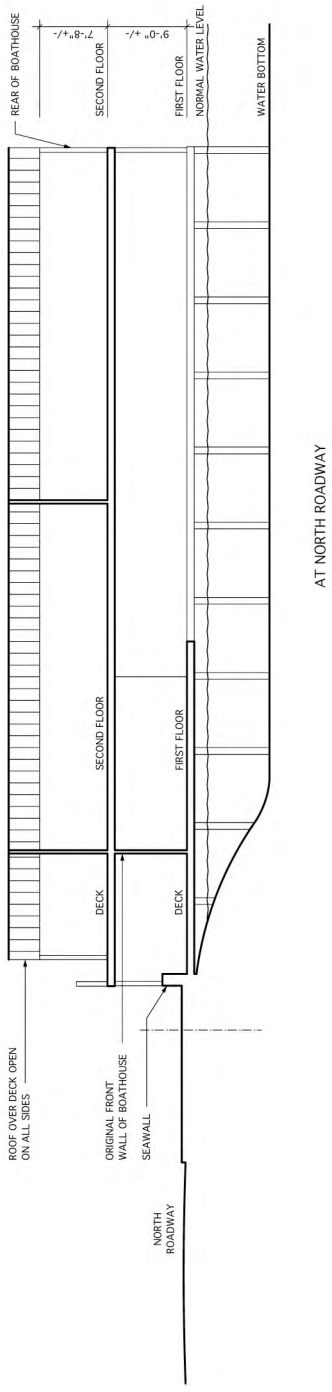


FIGURE A
FIRST FLOOR PLAN



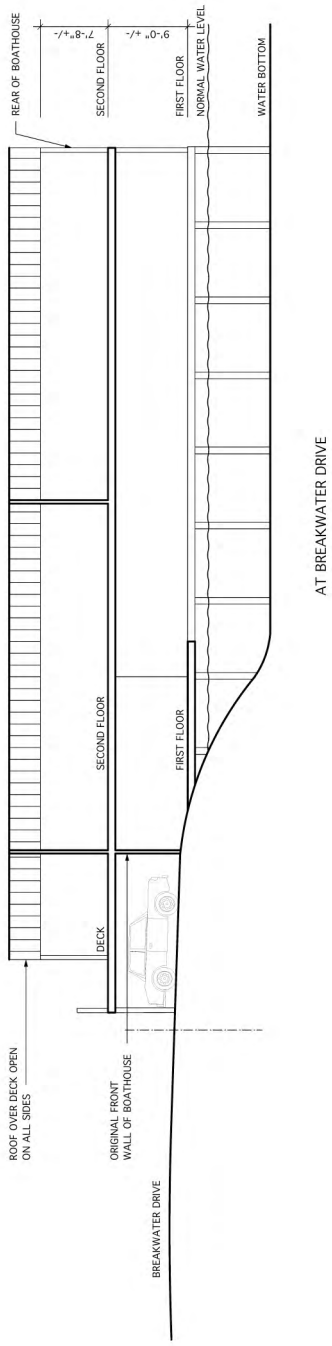


FIGURE B
SECOND FLOOR NOT ELEVATED & NO THIRD FLOOR

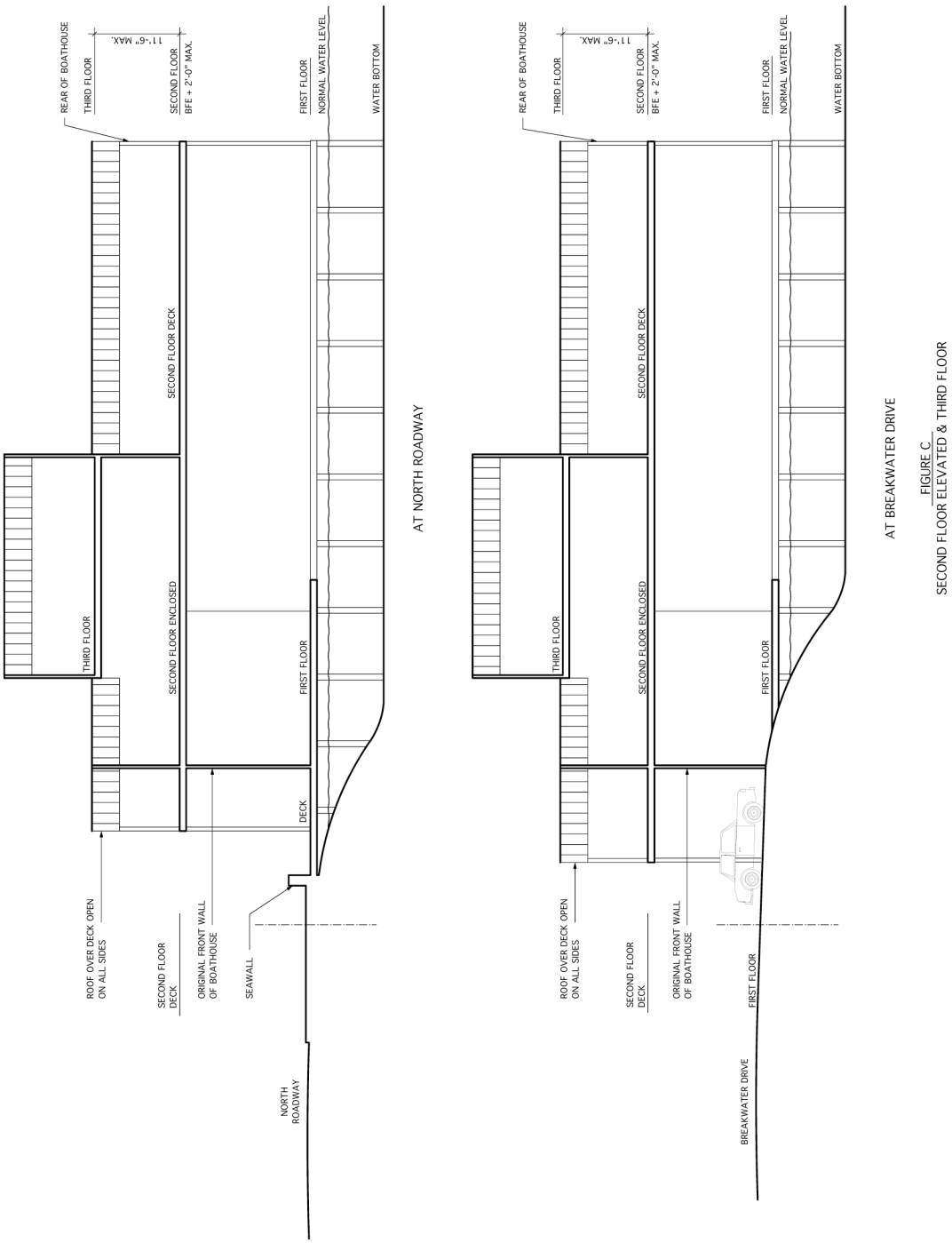


FIGURE C
SECOND FLOOR ELEVATED & THIRD FLOOR

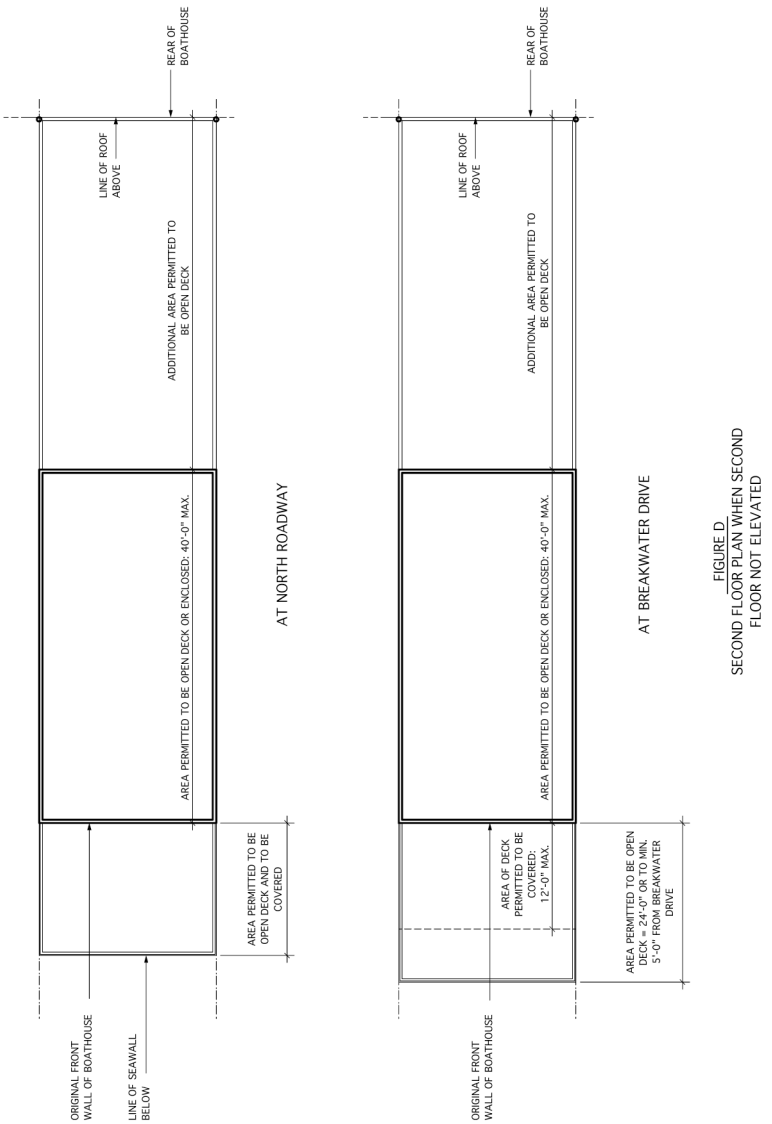


FIGURE D
SECOND FLOOR PLAN WHEN SECOND FLOOR NOT ELEVATED

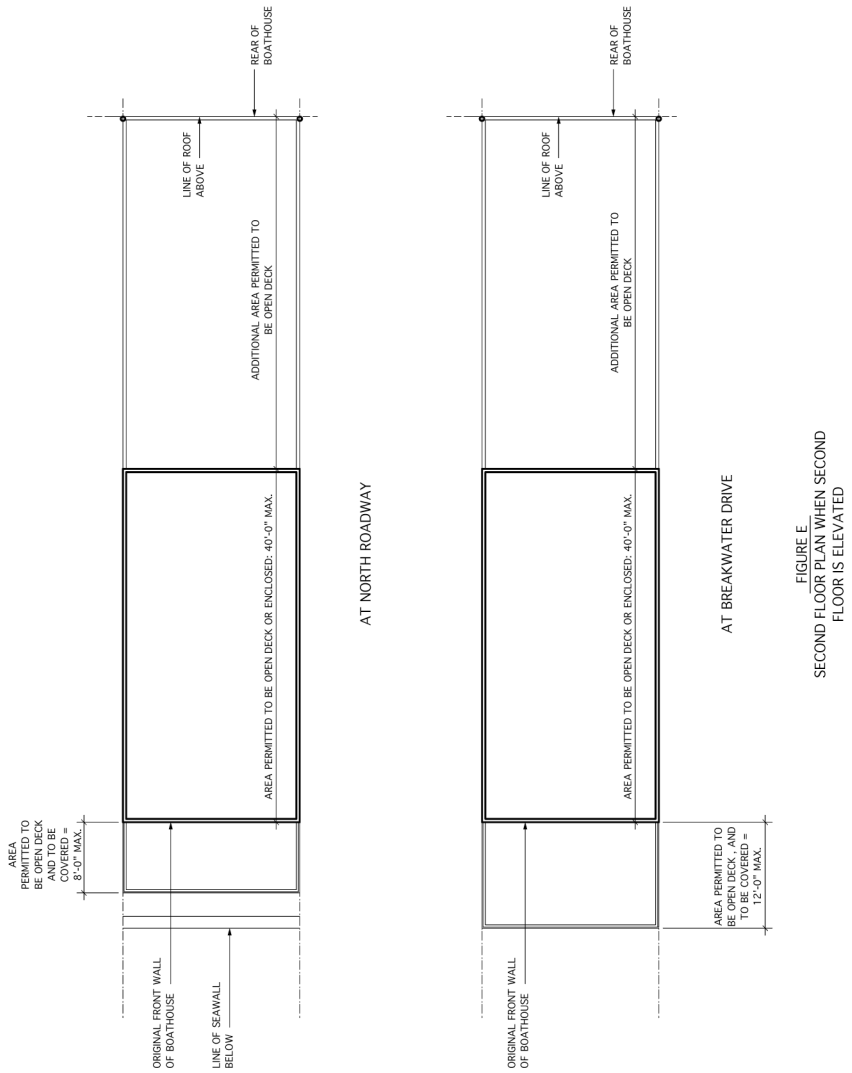


FIGURE E
SECOND FLOOR PLAN WHEN SECOND FLOOR IS ELEVATED

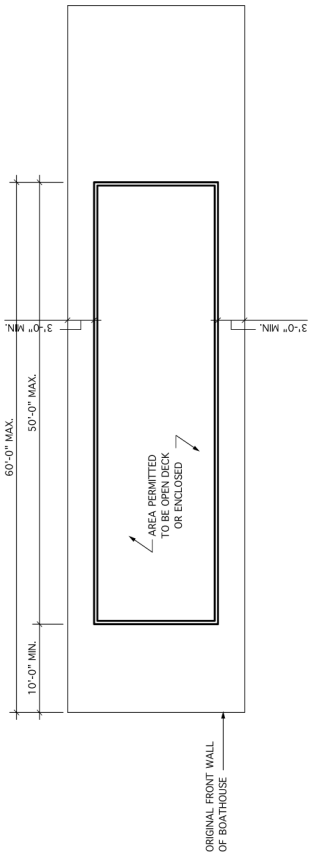


FIGURE F
THIRD FLOOR PLAN

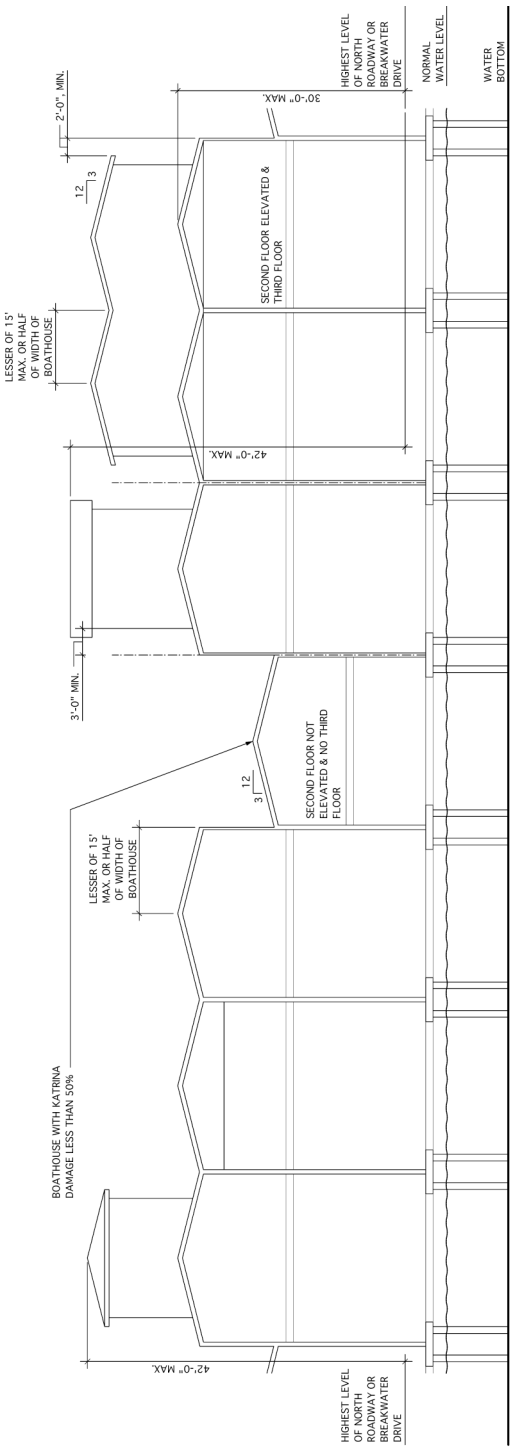


FIGURE G
ELEVATION AT REAR OF BOATHOUSES

(M.C.S., Ord. No. 22155, § 1, 3-2-06; M.C.S., Ord. No. 23108, § 1, 5-15-08; M.C.S., Ord. No. 23805, § 1, 11-19-09; M.C.S., Ord. No. 24590, § 1, 9-22-11; M.C.S., Ord. No. 25159, § 1, 1-10-13)

CODE COMPARATIVE TABLE

1956 CODE

This table gives the location within this Code of those sections of the 1956 Code, as updated through April 7, 1994, which are included herein. Sections of the 1956 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1956 Code, as updated through April 7, 1994, which are included herein. Ordinances adopted prior to such date were incorporated into the 1956 Code, as supplemented. This table contains some ordinances which precede April 7, 1994, but which were never included in the 1956 Code, as supplemented, for various reasons. Ordinances adopted since April 7, 1994, and not listed herein, have been omitted as repealed, superseded or not of a general and permanent nature.

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14,630	6-20-91	1	70-415.1—70-415.7
14,884	11-26-91	1	150-1260
15,188	5- 7-92	1	70-101
15,958	6-17-93	1	86-133(4)
16,114	10- 7-93	1	70-101
16,479	4-21-94	1(12-6.1)	162-1
16,438	4-21-94	1(33A-1)—1(33A-4)	2-925—2-928
16,447	4-21-94		154-12
16,457	4-21-94		154-882
16,461	4-21-94	1	34-45
16,474	4-21-94		154-1191
16,479	4-21-94	1(12-6.1)	162-1
16,480	4-21-94		162-606
16,483	5- 5-94		150-313
16,484	5- 5-94		150-241
16,498	5-23-94	1	54-414
16,542	7- 7-94		150-243
16,571	7- 7-94	1(18B-1), 1(18B-2)	70-404, 70-405
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16,596	8- 4-94	1	154-1194
16,625	9- 1-94		2-33
16,643	9-23-94		154-861
16,661	10- 6-94	1	30-40
16,672	10- 6-94		158-766
16,673	10- 6-94	1(42-128), 1(42-129)	54-529, 54-530
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		1(42-526)	54-528
16,687	10- 6-94		154-684
16,707	10-20-94		146-275
16,714	10-20-94		150-369
16,718	10-20-94		10-49
16,719	10-20-94		10-123
16,720	10-20-94		10-124
16,721	10-20-94		10-129
16,722	10-20-94		10-119
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16,724	10-20-94		10-368
16,748	11- 3-94		10-341
16,792	12- 8-94		150-369
16,828	12-15-94		18-13

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16830	2- 2-95	1		162-184(f)
		2a)		162-287
		2b)		162-321
		2c)		162-657
		2d)		162-743
		2e)		162-745
16,856	1- 5-95			138-63
16,865	1- 5-95	1		54-26
		2		54-254
16,868	1-19-95			130-139
16,880	2- 2-95	1(12-2-1)		162-1
		1(12-45f)		162-200
		2(a)		162-287
		2(b)		162-321
		2(c)		162-657
				162-745
		2(d)		162-743
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		2(f)		162-746
16,888	2- 2-95			154-1197
16,890	2-16-95			154-1194
16,895	2-16-95	1	Rpld	162-3
16,923	2-16-95	1		2-975(a)
16,924	3- 2-95	1		54-151
16,926	3- 2-95	1	Added	54-336(e)
16,948	3- 2-95	1		54-445
16,952	3-16-95	1		30-70(29)
16,957	3-16-95	1		114-87(a)
16,979	4- 6-95	1		2-975(a)
16,980	4- 6-95	1		2-33(b), (c)(4)
16,993	4-20-95	1		138-63
16,994	4-20-95	1		114-202(e)(4)
16,996	4-20-95	1		162-741
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16,998	4-20-95	1		10-341(c)
17,005	5- 4-95	1		154-1561
17,006	5- 4-95	1		54-25
17,018	5- 4-95	1		70-554(c)
17,041	5-18-95	1		34-118—34-120
17,042	5-18-95	1	Added	54-342.5(5)
17,045	5-18-95	1		62-95
17,062	6- 1-95	1		150-391(1)
17,064	6- 1-95	1		150-367
17,071	6- 1-95	1		162-747
17,080	6-15-95	1		70-408
17,094	6-15-95	1		150-1009
17,095	6-15-95	1		150-616
17,096	6-15-95	1		150-313
17,097	6-15-95	1	Rpld	10-402
17,098	7- 6-95	1	Added	30-43
17,100	7- 6-95	1	Added	134-205
17,128	7-20-95	1		154-137
17,129	8- 8-95	1		70-101
17,130	8- 8-95	1		70-101
17,146	8- 8-95	1		34-45(1)

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17,161	8-17-95	1		154-608
17,164	9- 7-95	1		162-1
				162-151
				162-377
				162-381
			Added	162-187.5
				162-1631—162-1633
17,197	9- 7-95	1		10-341(d), (e)
17,201	9-21-95	1		66-282
		2	Rpld	66-281
				66-283
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17,209	9-21-95	1	Added	18-341(m)
17,216	9-21-95	1	Added	154-244
17,239	10-19-95	1		10-261
17,240	10-19-95	1	Added	54-336(b)(10)
17,245	11- 2-95	1		170-642, 170-643
17,252	11- 2-95	1	Added	90-39
17,271	11-16-95	1—9		Adopting Ordinance, p. ix
17,282	11-16-95	1	Added	66-288
17,299	12- 1-95	1		6-34(25)—(27)
17,317	12- 7-95	1	Rpld	82-276
17,357	12-28-95	1		62-95
17,360	12-28-95	1	Added	150-369(33)
17,387	1-18-96	1	Rpld	54-405
17,388	1-18-96	1	Added	54-404(d)
17,389	1-18-96	1	Added	54-405
17,390	1-18-96	1	Added	154-1665
17,391	1-18-96	1		154-1194
17,392	2- 1-96	1		154-923(a)(2)
17,396	2- 1-96	1		50-86(b)
17,416	2- 1-96	1		34-2, 34-3
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17,423	2-15-96	1	Added	2-7
17,424	2-15-96	1	Rpld	70-430, 70-431
17,431	3- 7-96	1		2-975(a)
17,433	3- 7-96	1	Added	154-926
		2		154-699(5)
17,443	3- 7-96	1	Rpld	2-106—2-109
17,444	3- 7-96	1	Rpld	106-61—106-64
17,457	3- 7-96	1	Added	54-411(c), (d)
17,459	3- 7-96	1	Added	2-301
17,460	3-21-96	1		150-78
17,475	4- 3-96	1		34-45(3)
		2		34-46
17,497	4-18-96	1, 2	Added	150-243(15)
17,502	4-18-96	1		84-159
17,515	5- 2-96	1		10-157(a)(1), (3), (8)
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17,518	5- 2-96	1		84-49
17,521	5- 2-96	1		34-45(1)
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17,522	5- 2-96	1		66-314

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		3		154-983
17,560	6- 6-96	1	Rnbd	30-40
			as	30-43
			Rnbd	30-41—30-43
			as	30-40—30-42
			Added	30-44—30-57
		3		146-276
		4		158-691(a)
17,611	6-20-96	1	Added	2-1000
17,612	6-20-96	1	Added	2-719
17,613	6-20-96	1		2-718, 2-772, 2-784(a)
17,624	6-20-96	1		70-415.21
17,639	7- 3-96	1	Added	54-192
17,673	7-18-96	1		154-1561(a)
17,711	8-15-96	1		110-192
17,722	8-15-96	1		154-869(a)
17,727	8-15-96	1		162-942(d)
17,742	9- 5-96	1		154-861(b)
17,755	9-19-96	1	Added	34-44(a)(7)
17,759	9-19-96	1		154-1561(a)
17,789	10- 3-96	1		162-942(d)
17,794	10- 3-96	1		154-1191
17,823	10-17-96	1		162-942
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17,824	11- 7-96	1		58-36
17,860	11-26-96	1		154-1194
17,884	11-26-96	1		114-204(5)
17,885	11-26-96	1		114-231(a)—(e)
17,911	12- 5-96	1		58-36
17,921	12-19-96	1		30-69
		2		110-46
17,923	12-19-96	1		62-95
17,953	12-19-96	1	Added	70-415.51—70-415.54
17,965	1- 9-97	1		150-863
17,967	1- 9-97	1		70-408(c)—(f)
17,974	1- 9-97	1		70-101
18,009	1- 9-97	1		10-341(c)
18,026	1-23-97	1		34-77(1)
18,027	1-23-97	1		34-44(a)
18,043	2- 6-97	1	Added	70-565
18,048	2- 6-97	1		10-1
18,049	2- 6-97	1	Rpld	10-8
18,050	2- 6-97	1	Added	10-160
18,051	2- 6-97	1		18-76(a)
18,052	2- 6-97	1		10-78(a), (b)
18,053	2- 6-97	1		10-79
18,054	2- 6-97	1		10-80
18,055	2- 6-97	1		10-102
18,056	2- 6-97	1		10-103
18,058	2- 6-97	1		10-156
18,059	2- 6-97	1		10-157(a)(12)—(15),

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18,060	2- 6-97	1	Added	10-157(a)(25)
18,063	2- 6-97	1	Added	54-27
18,066	2- 6-97	1	Added	2-8
18,067	2- 6-97	1		10-404
18,095	3- 6-97	1	Added	70-6
18,097	3- 6-97	1	Added	70-415.81—70-415.84
18,137	3- 6-97	1	Added	54-378
18,138	3- 6-97	1	Added	54-379
18,141	3-20-97	1		10-122(1), (3), (5)
		2	Added	10-122(10)
18,142	3-20-97	1	Added	10-53
18,143	3-20-97	1	Added	10-54
18,144	3-20-97	1		10-401
18,185	4- 3-97	1		154-177(b)(4)
		2		154-178(d)
18,189	4- 3-97	1	Added	10-12
18,190	4- 3-97	1	Added	10-101(12)
18,191	4- 3-97	1		154-1037(a)
18,219	5- 1-97	1		114-231(c)
18,228	5-15-97	1	Added	2-926.1
18,230	5-15-97	1	Added	27-1—27-10
18,234	5-15-97	1		154-12(a)
18,265	6- 5-97	1		70-101
18,277	6-19-97	1		34-45(8)
18,279	6-19-97	1		6-37(i)
18,303	6-19-97	1	Added	54-380
18,337	7-17-97	1		2-6
18,338	7-17-97	1		2-9
18,381	8-12-97	1		154-651
18,382	8-21-97	1		106-214(f)
18,385	8-21-97	1		154-861(b)
18,388	8-21-97	1	Rpld	162-605
18,389	8-21-97	1		166-86
18,390	8-21-97	1	Added	166-93
18,391	8-21-97	1		166-121
18,392	8-21-97	1		154-861(b)
18,393	8-21-97	1		154-1197(1)
18,395	8-21-97	1		154-651
18,399	9- 4-97	1		66-136
		2		66-202
		3		66-203(3)a., c.
18,417	9- 4-97	1		114-161
18,420	9- 4-97	1		154-651
18,421	8-12-97	1		146-194(c)
18,423	9-18-97	1	Added	54-151(d)
18,432	9-18-97	1		34-45(4)
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18,452	10- 1-97	1		62-36
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		4	Added	54-156, 54-157
		5	Added	54-447, 54-448
18,464	10- 1-97	1		10-341(c)
18,475	10-16-97	1		162-186
18,476	10-16-97	1		58-36
18,480	10-16-97	1	Added	6-34(25)

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18,491	11- 6-97	1, 2	Added	54-417, 54-418
18,492	11- 6-97	1		154-923(6)
18,527	11-25-97	1		154-877
18,534	11-25-97	1	Added	154-874(c), (d)
18,537	11-25-97	1		10-341(c)
18,551	12- 4-97	1		106-1(b)(1)
18,576	1- 8-98	1		70-415.101—70-415.104
18,587	2- 5-98	1		114-163
18,599	12-18-97	1		62-95
18,621	2- 5-98	1, 2		70-601—70-621
18,625	2-19-98	1		66-136
		2		66-203(3)a.
		3	Rpld	66-203(3)c.
18,630	2-19-98	1		30-55(a)
18,635	2-19-98	1		18-14(a), (d)
18,636	2-19-98	1		114-87(a)
18,637	3- 5-98	1	Added	150-46.1—150-46.6
18,638	3- 5-98	1		18-18
		2		18-88
18,656	3-19-98	1		150-441
18,688	4- 2-98	1		154-861(b)
18,689	4-16-98	1, 2		106-214(a), (f)
18,692	4-16-98	1		150-241
		2		150-243
		3		150-276
18,694	4-16-98	1		154-1087
18,700	4-16-98	1		90-86
		2		162-245
18,701	4-16-98	1, 2	Added	14-213, 14-214
18,706	5- 7-98	1		106-174
18,721	5-21-98	1	Rpld	150-1252
18,724	6- 4-98	1		154-177(b), (c)
18,725	6- 4-98	1		34-45(2)
		2		34-46
18,733	6- 4-98	1		154-1194
18,736	6- 4-98	1	Added	150-370(c)
		2	Added	150-391(3)
		3	Rnbd	150-391(3)—(8)
			as	150-391(4)—(9)
18,747	6- 4-98	1		162-449(a)
18,751	6- 4-98	1		54-377
		2, 3		38-11, 38-12
18,752	6- 4-98	1	Added	106-106.1
18,753	6- 4-98	1, 2		154-1561
18,774	7- 1-98	1	Added	150-544
18,775	7- 1-98	1		34-45
18,794	7- 1-98	1		54-379
		2		86-1
18,830	8-20-98	1		154-861(b)
18,854	8-20-98	1		58-36
18,857	9- 3-98	1		66-136
		2	Added	66-208
18,925	10- 6-98	1		Ch. 10, Art. III, Div. 2, Subdiv. V(title)

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18,926	10- 6-98	1		10-311(a)
18,927	10- 6-98	1		10-311(a)(4)
18,928	10- 6-98	1	Added	10-311(a)(5)
18,937	10-15-98	1		54-411(c), (d)
18,939	10-15-98	1		34-45(5), 34-46
18,991	11-19-98	1	Added	50-86(j)
19,004	12- 1-98	1		62-95
19,006	12- 1-98	1	Added	26-404—26-406
19,007	12- 1-98	1	Added	6-34(29)
19,015	12- 1-98	1	Added	26-77—26-79
19,027	12-17-98	6		154-1191
19,029	12-17-98	1	Added	146-546—146-560
19,031	12-17-98	1	Added	18-14(e)
19,032	12-17-98	1		154-861(b)
19,035	12-17-98	2		58-36
19,067	1- 7-99	1		150-707
19,082	1-21-99	1		2-6(a), (b)
19,086	2- 4-99	1	Added	54-151(c)
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			Added	54-151(d)(6)
19,096	2- 4-99	1	Added	6-34(30)
19,114	2-18-99	1		130-36
		2	Added	131-1—131-50
19,119	2-18-99	1		54-411(a), (c), (d)
19,129	3- 4-99	1	Added	2-931
19,137	3- 4-99	1		154-1197(1)
19,146	3-31-99	1		30-55(b)
19,148	3-31-99	1	Added	162-996—162-1017
		3	Rpld	162-996—162-999, 162-1041—162-1044, 162-1086—162-1089, 162-1131—162-1134, 162-1176, 162-1216—162-1226
19,149	3-31-99	1	Added	154-546
19,150	3-31-99	1		30-47(i)
19,193	4- 8-99	1		30-1731
19,202	4- 8-99	1	Added	170-646
19,213	4-22-99	1	Added	114-204(9)
19,218	5- 6-99	1	Added	1-20
19,228	5- 6-98	1		154-861(b)
		2		154-1195(a)
19,230	5- 6-98	1		114-231(d)
19,241	6- 3-99	1		34-45, 34-46
19,255	6- 3-99	1		34-45, 34-46
19,260	6- 3-99	1		162-1
19,275	6-17-99	1		154-383(a)(2)
19,278	6-17-99	1	Rpld	86-1, 86-36—86-53, 86-81—86-89, 86-131—86-134, 86-161—86-168
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19,286	6-17-99	1		154-861(b)
19,309	7- 1-99	1		34-45, 34-46

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			Added	34-1—34-21, 34-23—34-51
19,335	9- 2-99	1		154-2
19,336	9- 2-99	1	Added	70-415.121
19,356	9- 2-99	1		154-2
19,357	9- 2-99	1		154-867, 154-973, 154-975—154-978, 154-980
19,358	9- 2-99	1		34-4(a)(11)
19,371	9-16-99	1		154-699
19,386	9-16-99	1	Added	150-369(34)
19,389	9-16-99	1	Added	10-136
19,397	10- 7-99	1		34-30(c)
		2	Added	34-37(l)
19,402	10- 7-99	1	Added	54-496
19,420	10-21-99	1		66-138(7)
19,421	10-21-99	1		154-1197(1)
19,426	11- 4-99	1		34-4(a), 34-5
19,462	11-18-99	1		70-101
19,463	11-18-99	1		154-1194
19,478	12- 1-99	1		62-95
19,506	12-16-99	1		154-1191
19,515	1- 6-00	1		34-30(b, e)
19,524	1- 6-00	1		34-6
19,532	2- 3-00	1		70-415.51—70.415.54
19,535	2- 3-00	1		110-190
19,582	3- 2-00	1		154-869
19,583	3- 2-00	1		154-699
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19,609	4- 6-00	1		162-1, 162-151
19,612	4- 6-00	1	Rpld	154-867
19,622	4-19-00	1		114-163
19623	4-19-00	1		54-487
19,624	4-19-00	1		154-177(a)(3) 154-178 154-1298
19,625	4-19-00	1		34-4, 34-5
19,664	5- 4-00	1		34-2
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19,676	5-18-00	1		34-28
19,680	6- 1-00	1		82-277
19,705	6- 1-00	1		34-4
19,710	6-15-00	1		131-4, 131-5, 131-37—131-39
19,791	8- 3-00	1	Added	26-3—26-8
19,828	9-21-00	1	Added	66-101—66-103
19,838	10- 5-00	1	Added	66-401—66-407

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19,858	10- 5-00	1		6-34
19,859	10- 5-00	1		6-34
19,860	10-19-00	1		66-405(f)
			Added	66-408
19,861	10-19-00	1		66-103
19,866	10-19-00	1		84-23(b), (d), 84-108(c)
		2		84-133(b),(d), 84-218(c)
19,902	11- 2-00	1		34-2
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19,908	11-16-00	1		34-24
19,919	11-16-00	1		154-1194
19,932	12- 1-00	1		62-95
19,934	12- 1-00	1		18-228
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19,935	12- 1-00	I		138-58(a)(2)
19,936	12- 1-00	I		30-70
19,937	12- 1-00	I		150-951—150-972
19,938	12- 1-00	I		150-1104
19,939	12- 1-00	I		150-1105
19,940	12- 1-00	I		150-1106
19,941	12- 1-00	1	Added	150-1107
19,942	12- 1-00	I	Added	50-149
19,943	12- 1-00	I		74-154
19,944	12- 1-00	I		74-155
19,960	12- 1-00	I	Added	6-45
19,962	12- 1-00	I		6-34
19,963	12-12-00	1		138-57(a) 138-58 138-63
19,964	12-12-00	I		10-122(7), (8)
19,967	12-14-00	1		14-276
19,969	12-14-00	I		134-85
19,970	12-14-00	I		70-560
19,971	12-14-00	I		70-563
19,972	12-14-00	I	Rpld	70-564
19,998	1-18-01	I	Added	2-1101—2-1104
20,001	1-18-01	1		146-584
20,002	1-18-01	1	Added	146-108
20,003	1-18-01	1		146-314
20,004	1-18-01	1		154-1145(a), (b)
20,005	1-18-01	1		146-440
20,006	1-18-01	1		146-583
20,007	1-18-01	1		154-1090
20,008	1-18-01	I		82-280(a)
20,013	1-18-01	1		70-101
20,025	2- 1-01	I		10-52(b)
20,032	2- 1-01	1		18-228
20,037	2- 1-01	1		54-404

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20,096	4- 5-01	1		130-36, 130-37
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20,098	4- 5-01	1	Added	88-1—88-19
20122	4-19-01	1		154-1194
20,123	5- 3-01	1		34-5
20,142	5- 3-01	1		34-14(4)
20216	7- 5-01	1		30-775
				30-801
20,259	7-19-01	1		158-286(c)
20,261	8- 2-01	1		66-282
		2		154-177(b)(4)
				154-178(a)(16)
			Dltd	154-403
20,273	8- 2-01	1		158-286(c)
20,276	8- 2-01	1		6-44(a)
		2		6-37(h)
20279	8- 2-01	1		154-1093
20317	8-16-01	1		27-2
				27-4(d)
			Added	27-5(i)
			Rltd	(i)
			as	(j)
				27-8(d), (g), (h) (k)(1), (l)
20332	8-16-01	1	Added	154-882(e)
20351	9- 6-01	1		154-1194
20,345	9- 6-01	1	Dltd	82-311—82-321
			Added	82-311—82-322
20,356	9- 6-01	1		10-1
20361	9-20-01	1	Added	87-9
20370	9-20-01	1	Rpld	54-412
20,372	9-20-01	1		154-103
		2		50-37
20,383	10- 4-01	1		134-85(6)b
20404	10- 4-01	1		34-30(b)
20405	10- 4-01	1		58-36
20,439	11-15-01	1		54-404
20,440	11-15-01	1		54-404
20,450	11-15-01	1		34-4, 34-5
20,453	11-15-01	1	Added	66-283
20,457	11-15-01	1		58-36
20,460	11-30-01	1	Added	70-701—70-708
20,466	11-30-01	1		62-95
20,487	12-20-01	1		150-391(1)
20511	1- 3-02	1	Added	26-11
20,515	1-17-02	5		162-187.5(b)(2)
20,521	1-17-02	1	Added	110-193
20,523	2- 7-02	I		2-1102
20,525	2- 7-02	I		2-1102(a), (b)
20,527	2- 7-02	1		150-391
20556	2-21-02	1	Added	150-46.7

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20,633	4-18-02	1		154-1085(a)
20634	4-18-02	1		154-1088(a)
20635	4-18-02	1		154-1091(a)
20636	4-18-02	1		154-1096(a)
20638	4-18-02	1		
				162-753(a)
			Added	162-605
			Added	162-755
20642	4-18-02	1		110-186
20646	4-18-02	1		10-101
20,655	5- 2-02	1		150-243
20,684	5- 2-02	1		114-161
		4		114-204
20,724	5-16-02	1		150-370(b)
20,729	5-16-02	1		2-33(5)—(9)
20,731	5-16-02	1		154-1193, 154-1194
20759	6-20-02	1		150-37
20,760	6-20-02	1		18-2
		2	Added	18-2.1
20,765	6-20-02	1		150-37
20,766	6-20-02	1	Added	110-97—110-101
20791	7-12-02	1	Added	18-341(n)
20,795	7-11-02	1		106-1(b)(1)
20807	7-31-02	1	Added	6-34(38), (39)
20808	8- 8-02	1	Added	30-50(b)(1)e.
20,853	8-22-02	1		146-501
20,861	9-19-02	1	Added	66-283.5
		2		6-34
		3		162-1002
		4		66-282
20,871	10-10-02	1	Added	114-170
20,874	10-10-02	1		150-530
		2		150-243
20,904	10-17-02	1		154-404
		2		154-177(b)(4)
		3	Added	154-178(a)(18)
20922	11-26-02	1		62-95
20925	11-26-02	1		2-1102
20926	11-26-02	1		2-1103
20957	12-19-02	1		150-46.3
20966	2- 6-03	1		2-777
20969	12-19-02	1		150-580
20970	1- 9-03	1		162-549
21,053	4-16-03	1		154-1193
21,067	4-16-03	1		154-1194
21,077	5- 1-03	1	Added	70-415.122—70-415.125
21,079	5- 1-03	I		2-1102(a)
21,094	5- 1-03	1	Rpld	30-1281—30-1296
21,095	5- 1-03	1		110-121

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21,120	6- 5-03	1		154-1561(b)
21123	6- 5-03	1		146-583
21127	6- 5-03	1		162-842
21,148	6-19-03	1		6-34
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21187	7-17-03	1		30-1488
		2	Added	30-1489, 30-1490
21,222	8- 7-03	1	Added	54-502
21228	9- 4-03	1, 2		26-146—26-303
21,279	9-19-03	1		114-133
21,288	10- 2-03	1		114-56
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21,320	10-16-03	1		170-647 (note)
21,322	11- 6-03	1—4	Added	54-193—54-196
21,323	11- 6-03	1	Added	54-154.1
21340	11-20-03	1		26-170
21341	11-20-03	1		110-121—110-132
21342	12- 1-03	1		138-59(a), (b)
21343	12- 1-03	1	Rpld	138-60
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21352	12- 1-03	1		154-876(a)
21353	12- 1-03	1		154-811
21354	12- 1-03	1		154-777(i)
21355	12- 1-03	1		154-777(d)
21356	12- 1-03	I		154-778(d)
21357	12- 1-03	1		154-699
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21360	12- 1-03	1		138-57(b)(4), (8)
21363	12- 1-03	1		18-15
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21372	12- 1-03	1		114-218
21273	12- 1-03	1		114-163
21344	12- 1-03	1	Added	70-415.126—70-415.129
21349	12- 1-03	1		62-95
21350	12- 1-03	1		2-1102
21351	12- 1-03	1		2-1103
21387	1- 8-04	1		150-521(17)
21397	1- 8-04	1		114-205
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21408	1-22-04	1	Added	2-10
21426	2-20-04	1		30-69, 30-1452 34-35, 110-46(a) 110-77, 110-152 110-186, 110-259(b)
21428	2-19-04	1		10-2
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21442	3- 4-04	1	Added	70-415.145—70-415.164

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21548	5-20-04	1	Added	10-402
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21549	5-20-04	1	Added	26-6(b)(8)
21550	5-20-04	1	Added	54-34
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21570	6- 3-04	1		114-165
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21589	7- 1-04	1		10-157(23), (26)
21606	7- 1-04	1	Added	54-491.1
21607	7- 1-04	1		170-647
21621	8- 5-04	1		30-1121 30-1146, 30-1147 30-1149—30-1151
21622	8- 5-04	1	Added	54-498.1
21652	8-19-04	1		10-123(a), (b)
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21657	8-19-04	1	Added	138-44(d)
21658	8-19-04	1		10-49
21659	8-19-04	1		10-132
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21730	10- 7-04	1		98-37(4), (6)
21763	11- 4-04	1	Added	34-22.1(d), (e)
21770	11-18-04	1		150-369(16)
21779	11-18-04	1	Added	2-267—2-269
21784	12- 1-04	1		62-95

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21791	12- 1-04	1	Rpld	170-647
21798	12- 1-04	1		34-3(2)
21810	12-16-04	1		162-745
21822	1-20-05	1		154-925
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21857	2-17-05	1		154-877
21858	3- 3-05	1	Added	110-259(c)
21859	3- 3-05	1	Added	26-447
21867	3- 3-05	1		146-494
21876	3-17-05	1		154-874
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21886	4- 7-05	1	Added	154-580
21912	4- 7-05	1	Added	66-287.1
21914	4- 7-05	1		154-699
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21921	4-21-05	1	Added	2-929
21923	4-21-05	1	Added	18-341(n)
21928	5- 5-05	1		162-745(a), (b)
21953	5- 5-05	1		154-925(b)
21962	5-19-05	1		154-1194
21964	5-19-05	1		154-1191
21967	6- 2-05	1	Rpld	66-101—66-103
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21991	6- 2-05	1	Added	114-173
22007	6-16-05	1	Added	6-34(36)
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22055	9- 8-05	1	Added	70-7
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22057	10-12-05	1	Added	54-256.1
22076	11- 3-05	1		150-77
22082	11-17-05	1	Added	30-44(b)(6)
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22084	11-17-05	1	Added	138-58.1
22085	11-17-05	1	Added	162-380(1)e.

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22093	12- 1-05	1		2-1102
22094	12- 1-05	1		2-1103
22104	12-15-05	1	Added	154-925.1
22106	12-15-05	1	Added	2-975(d)
22117	1- 5-06	1	Added	138-63(h)
22118	1- 5-06	1	Added	162-943
22127	1-19-06	1		2-975(d)
22130	1-19-06	1	Added	26-76.1
22131	1-19-06	1		26-6
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22147	2-16-06	1	Added	110-11
22150	3- 2-06	1		162-745
22151	3- 2-06	1	Added	162-747(d)(1)
22155	3- 2-06	1		170-641—170-646
22166	3-16-06	1	Added	106-300—106-303
22191	4- 6-06	1	Added	10-262(d)
22194	4-20-06	1	Added	78-140
22195	4-20-06	1	Added	78-141
22196	4-20-06	1		26-6
22203	4-20-06	1	Added	26-262
22204	4-20-06	1		66-282(f)
22207	5- 3-06	1		150-46—150-51
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22208	5- 3-06	1		150-370
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			as	150-391(3)—(8)
22209	5- 3-06	1	Added	150-53
22218	5- 3-06	1	Added	70-415.225—70-415.227
22226	5- 3-06	1	Added	26-9, 26-10
22230	5-25-06	1	Added	30-58—30-65
22243	5-25-06	1	Added	26-261(g)
22307	7-20-06	1		70-565
22323	7-20-06	1	Rpld	2-1103
22354	8-25-06	1		78-38(b)
22355	8-25-06	1		26-261(g)
22356	8-25-06	1	Added	26-262
22387	10- 5-06	1		62-95
22410	10- 5-06	1	Added	2-59
22412	10- 5-06	1	Added	22-174
22444	11- 2-06	1	Added	2-120
22453	12- 4-06	1		154-1191
22458	12- 1-06	1		62-95
22459	12- 1-06	I		2-1102
22460	12- 1-06	1		2-1103
22472	12- 1-06	1	Added	70-415.230—70-415-232
22499	2- 1-07	1	Added	26-263
22513	2- 2-07	1	Added	106-172

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22554	3- 1-07	1	Added	10-157(a)(26)
22565	3-15-07	1	Added	26-448
22567	4- 5-07	1		162-745
22568	4- 5-07	1		162-747(d)(1)
22577	4- 5-07	1		170-110, 170-111
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22600	4-19-07	1	Added	130-39
22601	4-19-07	1		138-37—138-47
		2	Added	66-282(e), (f)
22618	5- 3-07	1		154-877
22661	6- 7-07	1	Added	66-289—66-291
22662	6- 7-07	1	Added	1-21
22,663	6- 7-07	1		26-404—26-406
22664	6- 7-07	1	Added	6-34(37)
22723	7-12-07	1	Added	66-138(15)
22763	8-15-07	1	Added	26-263(b)
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22810	9- 6-07	1		2-780
22814	9-20-07	1	Added	158-1041—158-1059
22856	10-18-07	1		70-405
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22860	10-18-07	1		162-183(b)
22861	10-18-07	1		162-606(a)
22888	11- 1-07	1		2-1120
22882	11- 1-07	1		26-3(a)
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22893	11-15-07	1	Added	26-12
22930	12- 6-07	1		158-41—158-52, 158-91—158-94, 158-131—158-139, 158-181—158-183
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22938	12-20-07	1—4	Added	26-14
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22939	12-20-07	2—5	Added	26-16
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22940	12-20-07	2—5	Added	26-18
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22941	12-20-07	1—3	Added	34-1.1
22978	1-24-08	1		154-2
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22983	1-24-08	1		34-22.1
22824	10- 4-07	1		130-39(a), (d)
		2	Added	130-40
22909	11- 3-07	I		62-95
22910	11-30-07	I		2-1102
22911	11-30-07	I		2-1103
22996	2-15-08	1		18-13(a)
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23005	2-21-08	1		26-3—26-12
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23008	3- 6-08	1		138-43
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23045	3-20-08	1	Added	6-46
23046	3-20-08	1		6-38
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23052	4- 3-08	1	Added	54-28
23060	4- 3-08	1	Added	150-369(35)
23076	4-17-08	1		162-189(b)
23079	5- 1-08	1		162-747(d)(1)
23100	5- 1-08	1	Added	2-12
23101	5-15-08	1		2-326
23108	5-15-08	1		170-642
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23128	6-19-08	1		54-1
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23129	6-19-08	1		154-2
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23144	7-10-08	1		154-651
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23146	7-18-08	1	Added	2-1121
23148	7-10-08	1		162-745
23167	7-10-08	1		70-405.1
23171	7-11-08	1		26-263(h)
23174	7-24-08	1		6-46(c)
23202	8-29-08	1		70-433(b)
			Added	70-433(c)—(e)
23213	8-29-08	1		2-269

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23215	9-11-08	1		154-1081—154-1096
23233	9-18-08	1		162-745
23242	9-18-08	1		78-40
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			Added	78-137.1, 78-137.2
23263	10- 2-08	1	Added	106-178
23326	11-20-08	1	Rpld	60-565
23327	11-20-08	1		26-8(b)(5)
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23275	11- 6-08	1		130-39
23276	11- 6-08	1		10-2(b)
23335	12- 1-08	1		62-95
23355	12- 1-08	1		2-975(d)
23336	12- 1-08	1		2-1102
23337	12- 1-08	1		2-1103
23368	1- 8-09	1		34-4(a)
		2	Rpld	34-6(c)
23376	1- 8-09	1		58-36
23383	1-22-09	1	Rpld	2-501—2-519
23390	2- 5-09	1	Added	34-36(c)
			Added	34-37(o)
23402	3- 3-09	1		154-1703
23421	3- 5-09	1	Rpld	2-901
23422	3-19-09	1		154-861(b)
23423	3-19-09	1		154-876
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23424	3-19-09	1		154-699
23425	3-19-09	1		154-1137
23427	3-19-09	1		154-811
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23428	3-19-09	1		154-1086
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23442	4- 2-09	1		70-562
23469	4- 2-09	1		154-777
23490	4- 2-09	1		28-58(c)
23492	4-23-09	1	Added	162-155
23493	4-23-09	1		162-186
23506	4-23-09	1		162-183
23507	4-23-09	1		162-745
23538	5- 7-09	1	Added	142-36—142-139
23544	5- 7-09	1		2-691(a)
		2		2-692(a)
23547	5- 7-09	1		110-91
23553	5-21-09	1		84-22
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			Added	84-108(d)
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23567	6- 4-09	1	Added	2-904
23568	6- 4-09	1	Added	10-286(c)
23573	6-18-09	1		2-902
23579	6-18-09	1		162-745
23580	6-18-09	1		162-746
23581	6-18-09	1		162-747(a)
23582	6-18-09	1		162-753
23587	6-18-09	1	Added	70-432.1
23426	3-19-09	1		154-1032
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23508	5- 7-09	1	Added	146-494(f)
23519	5- 7-09	1	Rpld	110-189
23629	7-23-09	1		66-36
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23639	7-23-09	1		162-745
23640	7-23-09	1		162-753
23641	7-23-09	1		62-95
23645	8- 3-09	1		6-38(b)
23646	7-23-09	1		10-157(a)(18)
23653	8- 6-09	1		2-898(a)
23665	8- 7-09	1		122-15
			Added	122-16
23668	8- 6-09	1		34-22(a)
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23679	8-20-09	1	Added	28-61.1
23680	8-20-09	1		6-39
23708	9-17-09	1		162-842
23749	10- 1-09	1	Added	2-60
		2	Added	2-34
23764	11- 5-09	1		26-3
23783	11- 5-09	1		26-481
23785	11- 5-09	1	Added	142-38(18)—(20)
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23799	11-19-09	1		30-76
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23805	11-19-09	1		170-641
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23812	12- 1-09	1		2-1102
23813	12- 1-09	I		2-1103
23816	12- 1-09	1		70-563(a), (b), (e)
			Added	70-563(f)
		2		134-85(1)(6)
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23817	12- 1-09	1	Rpld	150-1001
23818	12- 1-09	1		154-1090
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23819	12- 1-09	1		118-43(a)(2)—(4)
			Added	118-43(a)(5)
23820	12- 1-09	1		26-2(c)
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23843	1- 7-10	1		18-228
23846	1- 7-10	1		34-4(a)(1)
23853	1-21-10	1		18-230
23886	2-25-10	1		2-1121(1)
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23906	3-11-10	1		154-777(h), (k)
23910	3-11-10	1		154-1701
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23911	3-11-10	1		2-8
23912	3-11-10	1		6-31, 6-32
23939	4- 8-10	1		150-369(12)
23970	5- 6-10	1	Added	18-305—18-313
23971	5- 6-10	1		62-95(1)j., k., (2)
			Added	62-95(3), (4)
23986	6- 1-10	1	Added	70-417.1
23987	6- 1-10	1		142-38(8), (19)
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24016	6-17-10	1	Added	70-415.235—70-415.237
24044	7-15-10	1		154-778(e)
24083	8-26-10	1		142-38(6)
				142-39
24110	9- 2-10	1	Added	2-8(e)
24111	9- 2-10	1	Added	162-1634—162-1669
24115	9- 2-10	1		154-607(b)
24126	9- 2-10	1	Added	2-316—2-321
24132	9-16-10	1	Added	2-87
24156	10-21-10	1		162-1634—162-1669
024193	11- 4-10	1		154-2
		2		154-1701
24218	2-17-11	1		162-1002
24225	12- 1-10	1		62-95
24226	12- 1-10	I		2-1102
24227	12- 1-10	I		2-1103
24231	12- 1-10	1		138-57(a)
				138-58
24239	12- 1-10	1		28-54(b)
24240	12-16-10	1		2-269
24242	12-16-10	1		2-269
24246	12-16-10	1	Added	54-505

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24248	12-16-10	1	Added	54-449
24249	12-16-10	1		54-251
24259	1- 6-11	1		138-57(a)
24293	2-17-11	1		10-122(8), (9)
24308	2-17-11	1		66-106(a)(2)
24309	2-17-11	1		66-107
24310	2-17-11	1		66-111
24311	2-17-11	1		154-811
24312	2-17-11	1		154-812
24313	2-17-11	1		154-813
24314	2-17-11	1		154-814
24315	2-17-11	1		154-815
24316	2-17-11	1		154-816
24317	2-17-11	1	Rpld	154-818, 154-819
24318	2-17-11	1		162-1002(d)—(f)
24321	3- 3-11	1		28-58(a), (c)
24322	3- 3-11	1		6-46
24328	3- 3-11	1		154-777(d)—(h)
24337	3- 3-11	1		114-56
24341	3- 3-11	1		34-4(a)(1)
24350	3-17-11	1	Added	54-412
24372	4- 7-11	1		142-38(9)
24384	4- 7-11	1	Added	6-34(41)
24395	4-28-11	1		2-1120
24403	4-28-11	1	Added	30-75(c)
24404	4-28-11	1		6-31
			Added	6-34(40)
			Added	6-36(8)
24407	5- 5-11	1		6-39(a)
24416	5- 5-11	1, 2		70-101
24428	6- 2-11	1		26-481
22429	6- 2-11	1		26-482
24430	6- 2-11	1		26-483
24431	6- 2-11	1		26-484
24432	6- 2-11	1		26-485
24433	6- 2-11	1		26-486
24435	6- 2-11	1		30-1551—30-1156
			Added	30-1557
24437	6- 2-11	1		138-58
24452	6- 2-11	1		134-121—134-130
24470	6-16-11	1	Rpld	66-284
24554	8-18-11	1	Added	26-410—26-413
24560	8-18-11	1		28-38(6)
24563	9- 1-11	1		162-455
024572	9- 1-11	1		82-280
24573	9- 1-11	1	Added	82-281
24574	9- 1-11	1		162-747(a)
24588	9- 1-11	1	Added	154-314(2)
24590	9-22-11	1		170-645
24596	9-22-11	1		162-182
24628	10-20-11	1		2-8(c)
		2		2-8(e)
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24629	10-20-11	1		154-177(b)(4)
24636	10-20-11	1	Added	54-419

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24663	11- 3-11	1		34-4(a)(1)
24665	11- 3-11	1		162-1
		2		162-200
24667	11-17-11	1		114-259
24668	11-17-11	1		114-56
		2		114-204(8)
24673	11-17-11	1		162-1
		2		162-183(c)
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24682	12- 1-11	1		2-1102
24683	12- 1-11	1		2-1103
24706	12-15-11	1	Added	146-36
24713	12-15-11	1		2-291
24721	1- 5-12	1	Added	54-414(b)(1)e.
24724	1- 5-12	1		162-98
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		3		162-1631(b)(1)
		4		162-1663(a), (b)
24747	2-16-12	1		162-242(b)
24805	3-15-12	1	Added	70-417.2
24808	3-15-12	1		54-408(a)
24813	4- 5-12	1		154-12(a)
24834	4- 5-12	1		66-136
		2	Added	66-209
24840	4-19-12	1		162-53
24841	4-19-12	1		162-56
24842	4-19-12	1		162-57
24843	4-19-12	1		162-59
24844	4-19-12	1		162-195
24845	4-19-12	1		162-197
24846	4-19-12	1		162-202
24847	4-19-12	1		162-245
24848	4-19-12	1		162-321
24849	4-19-12	1		162-380
24850	4-19-12	1		162-389
24851	4-19-12	1		162-609
24852	4-19-12	1		162-611
24853	4-19-12	1		162-692
24854	4-19-12	1		162-58
24855	4-19-12	1		146-193
24859	4-19-12	1		162-201
24860	4-19-12	1		162-203
24861	4-19-12	1		162-247
24862	4-19-12	1		162-613
24863	4-19-12	1		162-657
24864	4-19-12	1		162-659
24865	4-19-12	1		162-660
24866	4-19-12	1		162-661
24867	4-19-12	1		162-792
24875	6- 7-12	1		162-97
24876	6- 7-12	1		162-1
		2		162-200
24894	6-28-12	1	Added	70-415.238—70-415.240
24948	7-12-12	1		154-534(a)

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24960	7-26-12		Rpld	162-196
24961	7-26-12	1		162-97
24962	7-26-12	1		162-187
24963	7-26-12	1		162-189(c)
24975	7-26-12	1		142-38(15)
				142-39
24994	8-23-12	1		162-380
25014	9- 6-12	1		34-4
25017	9-20-12	1		154-1702
25019	9-20-12	1		50-148
25023	9-20-12	1		Ch. 62 (tit.)
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25032	10- 4-12	1		110-256
		2	Added	110-259(b)(5)
		3	Added	110-265.1
		4		110-269
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25054	10-18-12	1	Added	142-38(21)
25056	10-18-12	1		162-1657
25098	11-15-12	1		22-81
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25102	11-15-12	1		2-269
25108	11-30-12	I		2-1102
25109	11-30-12	I		2-1103
25118	12- 6-12	1	Rpld	2-301
25126	12-20-12	1		150-1002
		2		150-1012
25156	1-10-13	1		162-1657
25159	1-10-13	1		170-645(3.11)
25196	2- 7-13	1	Added	70-415.241—70-415.243
25205	3- 7-13	1		18-1—18-8
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25206	3- 7-13	1, 2		26-15
25242	3- 7-13	1		2-971—2-978
25260	3-21-13	1		28-2(c)
25284	4-11-13	1		162-1657
25295	4-18-13	1		154-1194
25305	5- 2-13	1		154-12
25318	5-16-13	1		146-548(b)
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25328	6- 6-13	1		162-247
25356	6-20-13	1		162-242
25357	6-20-13	1		162-241
25366	6-20-13	1	Added	118-45—118-50
25369	6-20-13	1		70-456—70-465
25371	6-20-13		Rpld	70-432
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25372	6-20-13	1	Rpld	70-496—70-512
25376	6-20-13	1	Rpld	46-36—46-56
25400	7-11-13	1	Rpld	2-261—2-269
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25407	7-25-13	1	Rpld	110-48
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25408	7-25-13	1		54-419(c)(4), (d)—(f)
25428	8- 8-13	1		90-121, 90-122
25429	8- 8-13	1	Added	70-415.244—70-415.246
25432	8- 8-13	1		70-281
25454	8-22-13	1		26-146—26-149, 26-150, 26-151—26-155, 26-156—26-187, 26-188—26-200, 26-201—26-213, 26-214—26-230, 26-231—26-237, 26-238—26-241, 26-242
25455	8-22-13	1		6-31—6-44
25469	9-12-13	1		58-36
25485	9-12-13	1		162-1657
25522	10-10-13	1		62-57
25552	10-24-13	1	Rpld	26-204
25582	11-21-13	1		2-1102
25583	11-21-13	1		2-1103
25599	11-21-13	1		138-57
25627	12- 5-13	1		162-1657
25651	1- 9-14	1		34-4(a)(1)
25659	1-23-14	1	Added	154-984
25661	1-23-14	1		34-17
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		4		34-37(n)
		5	Added	34-38(h)
25699	2-20-14	1		84-157(a)—(c)
25700	2-20-14	1		86-4
25704	2-20-14	1		66-312—66-318
25711	2-20-14	1		10-52
25712	2-20-14	1		162-1657(a)
25719	3-13-14	1	Added	166-125
25722	3-13-14	1		110-186 110-188(e)(3)
25728	3-27-14	1		2-59
25746	3-27-14	1		162-202(e)
25747	3-27-14	1		154-861
25774	4-10-14	1	Added	26-243
25793	4-10-14	1		2-975
25794	4-24-14	1	Added	162-944—162-946
25795	4-24-14	1		162-942(b), (c)
25813	4-24-14	1		34-1
		2		34-1.1(c)
			Added	34-1.1(d)
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		5	Added	34-6(g)
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		10		34-23(a)
		11		34-49(c)
25816	4-24-14	1		162-1657(a)
25818	4-24-14	1		162-657(a)
25834	5- 8-14	1	Added	70-415.247—70-415.249
25851	5- 8-14	1		34-3
25900	6- 5-14	1		2-319(a)(iv)
25919	6-19-14	1		26-18
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25920	6-19-14	1		26-16
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25921	6-19-14	1		26-14
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25940	7-10-14	1		106-300
25965	8-14-14	1		154-877
25988	8-14-14	1		34-1
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		4		34-15(6), (7)
			Added	34-15(8)
		5		34-16(c)
			Added	34-16(d)
		6		34-24(2)—(9)
			Added	34-24(10)
26000	8-21-14	1		142-38(5)
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26003	9- 4-14	1		162-1
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26011	9- 4-14	1		146-493
26025	9- 4-14	1	Added	170-62—170-66
26026	9- 4-14	1		2-263
26027	9- 4-14	1		162-659 (tit.)
				162-659(b)
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26035	9- 4-14	1		2-973
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26036	9- 4-14	1		146-5 (tit.)
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26037	9-18-14	1		26-3—26-9
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26038	9-18-14	1		146-491
26070	10- 2-14	1		154-874(c)
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26071	10- 2-14	1	Rpld	146-491

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26094	10-16-14	1		34-4(a)(1)
26118	11- 6-14	1	Added	70-415.253—70-415.255
26145	11-20-14	1		2-1102
26146	11-20-14	1		2-1103
26158	11-20-14	1	Added	70-415.256—70-415.258
26168	12- 4-14	1		162-189
26201	1-22-15	1		66-36—66-42, 66-71—66-78
26257	2-26-15	1		162-184
26262	2-26-15	1		26-15
26263	2-26-15	1		146-584
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		2	Added	146-586
26288	3-12-15	1		162-197
26289	3-12-15	1		162-81
		2		162-377
		3		162-379(a)
26305	3-26-15	1		162-651
26306	3-26-15	1		162-187(a)(3)
			Added	162-187(a)(4), (5)
			Added	162-187.5(h)(3)—(5)
			Added	162-189(d)
			Added	162-200(7)(c)—(e)
				162-1664(c), (d)
26328	3-26-15	1		146-586
26332	4- 9-15	1		162-96(a)
		2		162-183(b)
26333	4- 9-15	1		66-72
26338	4- 9-15	1		66-36
26339	4- 9-15	1		162-2
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26340	4- 9-15	1		66-73(8)
26341	4- 9-15	1		2-819
26366	4- 9-15	1		66-73(5), (6)
26367	4-23-15	1		70-462
26376	4-23-15	1		154-1521
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26379	4-23-15	1		154-1523(a)
26392	5- 7-15	1		162-201
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26415	5-14-15	1		66-36
26429	5-14-15	1	Rpld	66-408
26432	6- 4-15	1		162-247(c)
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26469	7- 9-15	1	Added	70-415.259—70-415.261
26476	7- 9-15	1		154-699(2), (3)
26477	7- 9-15	1		154-1136—154-1149
26494	7- 9-15	1	Added	2-59(f)
26505	7- 9-15	1		162-745 162-746 162-747 162-753 162-755
26513	7-23-15	1		6-31 6-35(c), (d) 6-36(b)(7), (e), (h)(2) 6-37(a), (c) 6-41
26521	8- 6-15	1	Added	70-801—70-812
26557	8- 6-15	1		162-613
26583	9-17-15	1		162-792
26584	9-17-15	1		162-745
26587	9-17-15	1		154-861
26589	9-17-15	1	Added	162-606(c)
26590	9-17-15	1		162-1714
26591	9-17-15	1		162-200(5)
26595	10- 1-15	1		162-246 162-247
26596	10- 1-15	1		162-241 162-242 162-245
26599	10- 1-15	1		154-1301—154-1312
26604	10- 1-15	1	Added	70-415.262—70-415.264
26607	10- 1-15	1	Added	70-496—70-503
26608	10- 1-15	1		162-842
26642	10-15-15	1		146-146
26644	10-15-15	1		70-415.1—70-415.6
26646	11- 5-15	1		146-436—146-459
26651	11- 5-15	1		2-719
26658	11- 5-15	1		154-1701
26696	11-19-15	1		146-71
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26751	1- 7-16	1		10-371
26785	2- 4-16	1		154-699
26786	2- 4-16	1		154-1090
26807	2- 4-16	1		150-111
26810	2-18-16	1		26-6(b)(1), (2)
26815	3-17-16	1	Added	70-434
26816	3-17-16	1		54-505
26841	4- 7-16	1	Added	2-745
26854	4- 7-16	1		110-121(b)
26879	4-21-16	1	Added	118-43(a)(6)
26901	4-21-16	1		82-351—82-357
26905	5- 5-16	1		70-802(7)
26906	5- 5-16	1		78-1, 78-51—78-67, 78-76—78-82, 78-101, 78-102, 78-121—78-129
26928	5-19-16	1	Added	18-341(p)
26933	6- 9-16	1	Added	26-10
26949	6- 9-16	1		106-262
26962	6-23-16	1	Added	70-504—70-507
26972	7-14-16	1		150-441 150-874(b) 150-969(i) 150-1002
27049	9- 8-16	1	Added	54-357, 54-358, 54-361
27050	9- 8-16	1		150-481
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27051	9- 8-16	1		150-627
27065	9- 8-16	1	Added	10-101(13)
		2		10-544
27133	10-20-16	1		162-152
27148	11- 3-16	1		162-377
27149	11- 3-16	1		162-609(b), (c)
27150	11- 3-16	1	Added	162-792(c)
27151	11- 3-16	1		162-58
27173	11- 3-16	1		10-501 10-502 10-511
27180	11- 3-16	1		162-377
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27189	11-17-16	1		2-1103
27204	12- 1-16	1	Added	26-613—26-620
27210	12- 1-16	1		70-415.1
27211	12- 1-16	1		150-441
27232	1-12-17	1		54-23
27256	1-12-17	1		154-1138
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